SUPPLEMENT NO. 35
VOLUMES I AND II
May 2026

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 52-907, enacted March 10, 2026.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 243, adopted December 16, 2025.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 34
VOLUMES I AND II
November 2025

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 52-810, enacted September 16, 2025.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 240, adopted June 25, 2024.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 33
VOLUMES I AND II
May 2025

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 52-604, enacted January 7, 2025.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 32
VOLUMES I AND II
January 2025

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 52-561, adopted October 15, 2024.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 31
VOLUMES I AND II
October 2024

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 52-493, adopted May 28, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 30
VOLUMES I AND II
January 2024

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 52-265, adopted September 19, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 29
VOLUMES I AND II
May 2023

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 52-051, adopted March 21, 2023.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 5
VOLUMES I AND II
October 2009

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48-418, adopted September 15, 2009.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 28
VOLUMES I AND II
July 2022

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 51-894, adopted June 28, 2022.

See the Code Comparative Table—Volume II for further information.

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CDi:12.1—CDi:14	CDi:13—CDi:14.1
CDi:19, CDi:20	CDi:19, CDi:20
CDi:23—CDi:24.1	CDi:23—CDi:24.1
CDi:27—CDi:30	CDi:27—CDi:30
CDi:33—CDi:38.1	CDi:33—CDi:38.1
CDi:66.1—CDi:70	CDi:67—CDi:70.1
CDi:79, CDi:80	CDi:79, CDi:80

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SUPPLEMENT NO. 27
VOLUMES I AND II
November 2021

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 51-654, adopted October 12, 2021.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Ordinance No. 237, adopted September 22, 2020.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title Page	Title Page
xiii—xx	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH-7	SH-7, SH-8
C-213	C-213
C-243—C-254	C-243—C-248
C-261—C-264	C-261—C-263
	C-303—C-321
COCT-3, COCT-4	COCT-3, COCT-4
CHTi:1—CHTi:7	CHTi:1—CHTi:7
1.04-3—1.04-6	1.04-3—1.04-6.1
2-1, 2-2	2-1, 2-2
2.04-7—2.04-10.1	2.04-7—2.04-10.1
	2.06-1—2.06-7
	2.11-1—2.11-4
2.12-1—2.12-4.1	2.12-1—2.12-4.1
2.12-13—2.12-14.1	2.12-13—2.12-14.3
	2.76-1—2.76-6
	2.77-1, 2.77-2

Remove Old Pages	*Insert New Pages*
3.49-1—3.49-6	3.49-1—3.49-6.1
3.49-11, 3.49-12	3.49-11, 3.49-12
4.04-1—4.04-10.2	4.04-1—4.04-10.3
4.08-1—4.08-7	4.08-1—4.08-7
4.12-1—4.12-11	4.12-1—4.12-11
4.16-1—4.16-16	4.16-1—4.16-20
6.04-11—6.04-14	6.04-11—6.04-14.1
6.04-33—6.04-37	6.04-33—6.04-38
7.60-1—7.60-4	7.60-1—7.60-4
	VOLUME II
Title Page	Title Page
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10.04-9—10.04-15	10.04-9—10.04-15
11.04-1—11.04-11	11.04-1—11.04-11
11.24-1, 11.24-2	11.24-1—11.24-4
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16.14-1—16.14-6.1	16.14-1—16.14-6.1
17.12-9—17.12-14.2	17.12-9—17.12-14.2
	31-1
	31.01-1—31.01-3
App. A-3—App. A-4.3	App. A-3—App. A-4.2
	App. A-100.49—App. A-100.61
CCT:31	CCT-31, CCT-32
SR-1—SR-5	SR-1—SR-5
CDi:1—CDi:12	CDi:1—CDi:12.1
CDi:19—CDi:38.1	CDi:19—CDi:38.1
CDi:43—CDi:44.2	CDi:43—CDi:44.2
CDi:55, CDi:56	CDi:55—CDi:56.1
CDi:65, CDi:66	CDi:65—CDi:66.1
CDi:77—CDi:80	CDi:77—CDi:80

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SUPPLEMENT NO. 26
VOLUMES I AND II
October 2020

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 51-343, adopted September 8, 2020.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH-7	SH-7
3-1, 3-2	3-1, 3-2
3.20-1—3.20-10	3.20-1
7.60-1—7.60-4	7.60-1—7.60-4
VOLUME II	
xiii—xx	xiii—xx
10.04-1, 10.04-2	10.04-1—10.04-2.1
10.04-9—10.04-11	10.04-9—10.04-15
CCT:31	CCT:31
CDi:5, CDi:6	CDi:5, CDi:6
CDi:11, CDi:12	CDi:11, CDi:12
CDi:23—CDi:24.1	CDi:23—CDi:24.1
CDi:32.1—CDi:38	CDi:33—CDi:38.1
CDi:60.1—CDi:62	CDi:61—CDi:62.2

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SUPPLEMENT NO. 25
VOLUMES I AND II
May 2020

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 51-194, adopted March 24, 2020.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Charter Ordinance No. 233, adopted May 14, 2019.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
iii	iii
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH-7	SH-7
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C-197—C-204	C-197—C-200
C-295	C-295—C-302
COCT-3, COCT-4	COCT-3, COCT-4
2-1, 2-2	2-1, 2-2
2.04-7—2.04-10.1	2.04-7—2.04-10.1
2.12-41, 2.12-42	2.12-41—2.12-42.1
	2.15-1—2.15-9
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11.60-1, 11.60-2	11.60-1, 11.60-2
11.60-9, 11.60-10	11.60-9—11.60-10.1
11.96-13, 11.96-14	11.96-13—11.96.14.1
16.14-1—16.14-6.1	16.14-1—16.14-6.1
17.12-9—17.12-14.4	17.12-9—17.12-14.4
App. A-1—App. A-4	App. A-1—App. A-4.3

Remove Old Pages	*Insert New Pages*
App. A-53—App. A-62	App. A-53—App. A-72.1
CCT:29, CCT:30	CCT:29—CCT:31
CDi:27—CDi:32.1	CDi:27—CDi:32.1
CDi:50.1—CDi:52	CDi:51—CDi:52.1
CDi:67, CDi:68	CDi:67—CDi:68.1

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SUPPLEMENT NO. 24
VOLUMES I AND II
December 2019

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 51-144, adopted November 19, 2019.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Charter Ordinance No. 232, adopted August 28, 2018.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH-5, SH-6	SH-5—SH-7
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C-153—C-164	C-153—C-159
C-255—C-258	C-255—C-258
	C-293—C-295
COCT-3, COCT-4	COCT-3, COCT-4
CHTi-1—CHTi-6	CHTi:1—CHTi:7
1-1	1-1
	1.08-1—1.08-5
2.04-1, 2.04-2	2.04-1, 2.04-2
2.04-7—2.04-10	2.04-7—2.04-10.1
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3.11-3, 3.11-4	3.11-3, 3.11-4
3.11-11—3.11-12.1	3.11-11—3.11-12.1

Remove Old Pages	*Insert New Pages*
4.04-1—4.04-10.2	4.04-1—4.04-10.2
4.12-1—4.12-10	4.12-1—4.12-11
5-1, 5-2	5-1, 5-2
5.82-1	5.82-1
6.04-9—6.04-12	6.04-9—6.04-12.1
7-1	7-1
7.22-1—7.22-6	7.22-1
9.03-1—9.03-2.1	9.03-1—9.03-2.1
9.03-9, 9.03-10	9.03-9—9.03-10.1
	VOLUME II
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11-1, 11-2	11-1, 11-2
11.04-1—11.04-10	11.04-1—11.04-11
11.08-1, 11.08-2	11.08-1
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11.40-1	11.40-1
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11.52-1—11.52-6.1	11.52-1—11.52-6.1
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App. A-41—App. A-52	App. A-41—App. A-52.2
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SR-1—SR-5	SR-1—SR-5
CDi:1—CDi:4	CDi:1—CDi:4
CDi:9—CDi:24	CDi:9—CDi:24.1
CDi:27—CDi:32	CDi:27—CDi:32.1
CDi:35—CDi:38	CDi:35—CDi:38

Remove Old Pages	*Insert New Pages*
CDi:41—CDi:44	CDi:41—CDi:44.2
CDi:47—CDi:50	CDi:47—CDi:50.1
CDi:53—CDi:60	CDi:53—CDi:60.2
CDi:63—CDi:80	CDi:63—CDi:80

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SUPPLEMENT NO. 23
VOLUMES I AND II
November 2018

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50-870, adopted October 16, 2018.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Charter Ordinance No. 230, adopted February 23, 2018.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH-5, SH-6	SH-5, SH-6
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C-245, C-246	C-245, C-246
C-255—C-258	C-255—C-258
C-261	C-261—C-292
COCT-3	COCT-3, COCT-4
CHTi-3—CHTi-6	CHTi-3—CHTi-6
2.04-1—2.04-4	2.04-1—2.04-4.1
2.26-1—2.26-4	2.26-1—2.26-3
3-1, 3-2	3-1, 3-2
	3.06-1—3.06-10
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4.16-9—4.16-10.1	4.16-9—4.16-10.1
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7.20-1	7.20-1
7.60-1, 7.60-2	7.60-1, 7.60-2

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11.04-5, 11.04-6	11.04-5—11.04-6.1
11.08-1, 11.08-2	11.08-1, 11.08-2
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App. A-57—App. A-61	App. A-57—App. A-61
	App. A-100.31—App. A-100.47
CCT:27, CCT:28	CCT:27—CCT:29
SR-1—SR-5	SR-1—SR-5
CDi:1—CDi:8	CDi:1—CDi:8.1
CDi:13—CDi:18	CDi:13—CDi:18
CDi:27—CDi:30	CDi:27—CDi:30.1
CDi:37—CDi:42.2	CDi:37—CDi:42.2
CDi:49—CDi:58.2	CDi:49—CDi:58.2
CDi:65, CDi:66	CDi:65—CDi:66.1

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SUPPLEMENT NO. 22
VOLUMES I AND II
May 2018

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50-670, adopted February 6, 2018.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
iii	iii
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH-5, SH-6
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2.10-1, 2.10-2	2.10-1—2.10-4
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3.11-11, 3.11-12	3.11-11—3.11-12.1
3.26-1—3.26-4	3.26-1
	3.55-1—3.55-12
4-1	4-1
4.04-1—4.04-10.1	4.04-1—4.04-10.2
	4.08-1—4.08-7
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5.48-1—5.48-3	5.48-1—5.48-3
	5.50-1, 5.50-2
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6.04-1—6.04-18.1	6.04-1—6.04-18.1
6.04-33—6.04-36	6.04-33—6.04-37
6.08-1—6.08-3	6.08-1—6.08-4
7.60-1—7.60-3	7.60-1—7.60-4
9-1	9-1
	9.05-1—9.05-8
	VOLUME I I
xiii—xx	xiii—xx

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	10.34-1—10.34-3
11.04-1—11.04-4	11.04-1—11.04-4.1
11.20-1—11.20-4	11.20-1—11.20-4.1
11.22-1—11.22-4	11.22-1—11.22-4
11.44-1—11.44-3	11.44-1—11.44-5
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CDi:30.1—CDi:42.1	CDi:31—CDi:42.2
CDi:49—CDi:58	CDi:49—CDi:58.2
CDi:67—CDi:70	CDi:67—CDi:70.1

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SUPPLEMENT NO. 21
VOLUMES I AND II
October 2017

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50-591, adopted September 26, 2017.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
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C-69—C-72	C-69—C-71
C-109, C-110	C-109, C-110
C-115, C-116	C-115, C-116
C-165—C-190	C-165—C-171
C-240.1—C-240.4	C-240.1—C-240.3
C-257, C-258	C-257—C-261
COCT-3	COCT-3
CHTi-1—CHTi-6	CHTi-1—CHTi-6
2.12-1—2.12-4	2.12-1—2.12-4.1
2.12-9, 2.12-10	2.12-9—2.12-10.1
3.11-1—3.11-8	3.11-1—3.11-8.3
3.11-13, 3.11-14	3.11-13, 3.11-14
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5.26-1, 5.26-2	5.26-1—5.26-2.1
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15-1—15.01-23	15-1—15.01-27

Remove Old Pages	*Insert New Pages*
CCT:27	CCT:27, CCT:28
CDi:1, CDi:2	CDi:1, CDi:2
CDi:6.1—CDi:30	CDi:7—CDi:30.1
CDi:33—CDi:42.1	CDi:33—CDi:42.1
CDi:45, CDi:46	CDi:45, CDi:46
CDi:55, CDi:56	CDi:55, CDi:56
CDi:59, CDi:60	CDi:59, CDi:60

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SUPPLEMENT NO. 20
VOLUMES I AND II
May 2017

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50-440, adopted April 25, 2017.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
2.12-41—2.12-46	2.12-41—2.12-46
2.26-1—2.26-4	2.26-1—2.26-4
3-1, 3-2	3-1, 3-2
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	3.15-1—3.15-8
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3.97-1—3.97-4	3.97-1—3.97-4
6.04-9—6.04-16	6.04-9—6.04-16
7.40-7, 7.40-8	7.40-7, 7.40-8
8-1	8-1
	8.02-1—8.02-5
VOLUME II	
xiii—xx	xiii—xx
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15.01-5, 15.01-6	15.01-5—15.01-6.1
16.14-1—16.14-6.1	16.14-1—16.14-6.1
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27.06-1—27.06-13	27.06-1—27.06-13
App. A-3—App. A-4.1	App. A-3—App. A-4.1

Remove Old Pages	*Insert New Pages*
	App. A-90.11, App. A-90.12
	App. A-100.21—App. A-100.30
CCT-21—CCT:26	CCT-21—CCT-27
SR-1—SR-5	SR-1—SR-5
CDi:5, CDi:6	CDi:5—CDi:6.1
CDi:11, CDi:12	CDi:11—CDi:12.1
CDi:21—CDi:28.1	CDi:21—CDi:28.1
CDi:37—CDi:42	CDi:37—CDi:42.1
CDi:49—CDi:50.2	CDi:49—CDi:50.2
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CDi:63—CDi:68	CDi:63—CDi:68.1
CDi:73—CDi:80	CDi:73—CDi:80

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SUPPLEMENT NO. 19
VOLUMES I AND II
December 2016

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50-341, adopted October 18, 2016.

See the Code Comparative Table—Volume II for further information.
Included in the Charter is:

Charter Ordinance No. 227, adopted March 15, 2016.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 18
VOLUMES I AND II
April 2016

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50-161, adopted March 15, 2016.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 17
VOLUMES I AND II
October 2015

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 50-081, adopted September 22, 2015.

See the Code Comparative Table—Volume II for further information.

Included in the Charter Ordinances is:

Charter Ordinance No. 225, adopted April 21, 2015.

See the Charter Ordinance Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 16
VOLUMES I AND II
May 2015

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49-954, adopted March 24, 2015.

See the Code Comparative Table—Volume II for further information.

Included in the Charter Ordinances is:

Charter Ordinance No. 224, adopted January 6, 2015.

See the Charter Ordinances Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 15
VOLUMES I AND II
December 2014

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49-886, adopted November 25, 2014.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 14
VOLUMES I AND II
April 2014

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49-675, adopted March 25, 2014.

See the Code Comparative Table—Volume II for further information.

Included in the Charter Ordinances is:

Ordinance No. 220, adopted June 25, 2013.

See the Charter Ordinance Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 13
VOLUMES I AND II
October 2013

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49-573, adopted September 17, 2013.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 12
VOLUMES I AND II
April 2013

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49-441, adopted February 12, 2013.

See the Code Comparative Table—Volume II for further information.

Included in the Charter Ordinances is:

Charter Ordinance No. 219, adopted November 20, 2012.

See the Charter Ordinance Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 11
VOLUMES I AND II
December 2012

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49-295, adopted June 26, 2012.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Ordinance No. 218, adopted March 20, 2012.

See the Charter Ordinance Comparative Table—Volume I for further information.

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C-131—C-137	C-131—C-135
C-191—C-196	C-191—C-196
C-237	C-237—C-245
COCT-1, COCT-2	COCT-1, COCT-2
CHTi-1—CHTi-8	CHTi-1—CHTi-7
1.04-1—1.04-10	1.04-1—1.04-11
1.06-1—1.06-3	1.06-1—1.06-4
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4.04-1—4.04-10	4.04-1—4.04-10
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SUPPLEMENT NO. 10
VOLUMES I AND II
December 2011

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49-152, adopted November 22, 2011.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Ordinance No. 215, adopted July 19, 2011.

See the Charter Ordinance Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CDi:61, CDi:62	CDi:61—CDi:62.1
CDi:66.1—CDi:68	CDi:67—CDi:68.1

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SUPPLEMENT NO. 9
VOLUMES I AND II
September 2011

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 49-042, adopted August 16, 2011.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Ordinance No. 214, adopted December 21, 2010.

See the Charter Ordinance Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xx	xiii—xx
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
	SH-1 (following Checklist of Up-to-Date Pages)
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COCT-1, COCT-2	COCT-1, COCT-2
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SUPPLEMENT NO. 8
VOLUMES I AND II
February 2011

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48-945, adopted February 15, 2011.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CDi:63—CDi:64.1	CDi:63—CDi:64.1
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CDi:73, CDi:74	CDi:73, CDi:74
CDi:85—CDi:88	CDi:85—CDi:88

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SUPPLEMENT NO. 7
VOLUMES I AND II
November 2010

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48-882, adopted October 26, 2010.

See the Code Comparative Table—Volume I for further information.

Included in the Charter is:

Ordinance No. 213, adopted April 13, 2010.

See the Charter Ordinance Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
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4.04-7—4.04-10	4.04-7—4.04-10
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CDi:71—CDi:74	CDi:71—CDi:74

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SUPPLEMENT NO. 6
VOLUMES I AND II
May 2010

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48-718, adopted April 20, 2010.

See the Code Comparative Table—Volume I for further information.

Included in the Charter Ordinances is:

Ordinance No. 210, adopted August 4, 2009, effective October 13, 2009.

See the Charter Ordinance Comparative Table—Volume I for further information.

Remove old pages	*Insert new pages*
VOLUME I	
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xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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C-189, C-190	C-189, C-190
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4.16-7, 4.16-8	4.16-7—4.16-8.1
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Remove old pages	*Insert new pages*
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6-1	6-1
6.04-1—6.04-28	6.04-1—6.04-28
9-1	9-1
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SUPPLEMENT NO. 4
VOLUMES I AND II
June 2009

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 48-332, adopted June 2, 2009.

See the Code Comparative Table—Volume II for further information.

Included in the Charter Ordinances is:

Charter Ordinance No. 208, adopted October 28, 2008.

See the Charter Ordinance Comparative Table—Volume I for further information.

Remove old pages	*Insert new pages*
VOLUME I	
iii	iii
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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6.16-1, 6.16-2	6.16-1
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xiii—xx	xiii—xx
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Remove old pages	*Insert new pages*
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11.36-1—11.36-3	11.36-1—11.36-3
	11.37-1, 11.37-2
11.48-1, 11.48-2	11.48-1, 11.48-2
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17.12-1—17.12-14	17.12-1—17.12-15
19.08-1—19.08-8	19.08-1—19.08-9
19.12-1—19.12-5	19.12-1—19.12-7
19.16-1	19.16-1
19.22-1—19.22-8	19.22-1—19.22-8
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SUPPLEMENT NO. 3
VOLUMES I AND II
December 2008

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47-965, adopted August 26, 2008.

See the Code Comparative Table—Volume II for further information.

Remove old pages	*Insert new pages*
VOLUME I	
iii	iii
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
C-127, C-128	C-127, C-128
1.04-3, 1.04-4	1.04-3, 1.04-4
2.28-19—2.28-22	2.28-19—2.28-22.2
3.72-1—3.72-12	3.72-1—3.72-14
5.10-1—5.10-3	5.10-1—5.10-3
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CDi:27—CDi:46	CDi:27—CDi:46.1
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SUPPLEMENT NO. 2
VOLUMES I AND II
August 2008

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47-884, adopted May 13, 2008.

See the Code Comparative Table—Volume II for further information.

Remove old pages	*Insert new pages*
VOLUME I	
xiii—xix	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
C-123—C-126	C-123—C-125
C-131—C-134	C-131, C-132
C-141, C-142	C-141, C-142
2.04-1—2.04-21	2.04-1—2.04-20
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SUPPLEMENT NO. 1
VOLUMES I AND II
March 2008

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 47-750, adopted February 8, 2008

See the Code Comparative Table—Volume II for further information.

Included in the Charter Ordinances is:

Charter Ordinance No. 205, adopted March 27, 2007.

See the Charter Ordinance Comparative Table—Volume I for further information.

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OC, CORRECTION
VOLUMES I AND II
October 2007

CODE OF ORDINANCES

City of

WICHITA, KANSAS

Looseleaf Supplement

This OC, Correction, is issued to correct pages appearing in the Republication of this Code and should be inserted as directed below.

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CODE OF ORDINANCES

CITY OF

WICHITA, KANSAS

VOLUME I

Published in 2007 by Order of the City Council

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P.O. Box 2235 Tallahassee, FL 32316

CURRENT OFFICIALS

of the

CITY OF

WICHITA, KANSAS

Lily Wu
Mayor

J.V. Johnston, Vice Mayor (District V)
Joseph Shepard (District I)
Becky Tuttle (District II)
Michael Hoheisel (District III)
Dalton Glasscock (District IV)
Maggie Ballard (District VI)
City Council

Dennis Marstall
City Manager

Jennifer Magana
City Attorney

Shinita Rice
City Clerk

Jo Hensley
Deputy City Clerk

PREFACE

This Republication constitutes a republication of the general and permanent ordinances of the City of Wichita, Kansas.

Source materials used in the preparation of the Code was the 1972 Code, as supplemented through Ordinance No. 46-624, passed July 19, 2005. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the Wichita Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included in the same manner. If the new material is to be included between chapters 12 and 13, it will be designated as chapter 12.5.) Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the dash are an abbreviation which represents a certain portion of the volume. The number to the right of the dash represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the dash indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the dash indicates the letter of the appendix. The following are typical parts of codes of ordinances, which

may or may not appear in this Code at this time, and their corresponding prefixes:

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Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross-references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Eric Grant, Vice-President of Supplementation, and Janet Cramer, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Gary E. Rebenstorf, Director of Law and City Attorney, and Joe Allen Lang, First Assistant Attorney, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of

Ordinances which will make the active law of the City readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the City's affairs.

Copyright

All editorial enhancements of this Code are copyrighted by Municipal Code Corporation and the City of Wichita, Kansas. Editorial enhancements include, but are not limited to: organization; table of contents; section catchlines; prechapter section analyses; editor's notes; cross references; state law references; numbering system; code comparative table; state law reference table; and index. Such material may not be used or reproduced for commercial purposes without the express written consent of Municipal Code Corporation and the City, of Wichita, Kansas.

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ADOPTION OF CODE

ORDINANCE NO. 31-990

AN ORDINANCE ADOPTING A NEW REVISION AND CODIFICATION OF ORDINANCES OF THE CITY OF WICHITA, KANSAS; PROVIDING SPECIFICALLY FOR THE REPEAL OF ORDINANCE NO. 31-447 PROVIDING GENERALLY FOR THE REPEAL OF CERTAIN OTHER ORDINANCES OF THE CITY NOT INCLUDED THEREIN; EXCEPTING CERTAIN GENERAL AND SPECIAL ORDINANCES OF THE CITY FROM REPEAL; SAVING CERTAIN RIGHTS, DUTIES, FORFEITURES AND PENALTIES; AND PROVIDING FOR THE CONSTRUCTION THEREOF.

WHEREAS, on January 18, 1972, the Governing Body of the City of Wichita, Kansas, authorized by Ordinance No. 31-989 the revision and codification of the general ordinances of the City of Wichita, pursuant to K.S.A. 12-3014, and 12-3015 of K.S.A. 1971 Supplement 1-301 and

WHEREAS, such revision and codification was made in conformity with K.S.A. 12-3014, and 12-3015 of K.S.A. 1971 Supplement 1-301.

NOW, THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. That the ordinances of the City of Wichita, Kansas, of a general and permanent nature, as codified in the Titles 1 to 28, both inclusive, except Titles 8 and 27, which have been set aside for future expansion, are ordained as general ordinances and adopted as "The Code of the City of Wichita, Kansas."

SECTION 2. That all of the provisions of the "The Code of the City of Wichita, Kansas," shall be in force and effect on and after the 1st day of March, 1972, and all ordinances of a general and permanent nature, adopted by the Board of Commissioners, in force on December 30, 1971, and not contained in the "Code of the City of Wichita, Kansas," are hereby repealed from and after the 1st day of March, 1972, except as herein provided.

SECTION 3. That the repeal of ordinances provided for in the preceding section of this ordinance shall not affect any offense or act committed or done, or any penalty or forfeiture incurred or any contract or right established or accruing before the 1st day of March, 1972; nor shall such repeal affect any ordinance or resolution promising or guaranteeing the payment of money by the City or authorizing the issuance of bonds or other instruments of indebtedness of such City or any contract or obligation assumed by such City; nor shall such repeal affect the administrative ordinances or resolutions of the Governing Body not in conflict or inconsistent with the provisions of this Code; nor shall such repeal affect any right or franchise conferred by any ordinance or resolution of the Governing Body on any person or corporation; nor shall such repeal affect ordinances not in conflict with the Code creating positions, establishing duties for such positions and setting up salaries or wages for officers and employees of the City; nor shall it affect ordinances relating to the Wichita Employees' Retirement System or Wichita Policemen's and Firemen's Retirement System; nor shall it affect ordinances establishing, amending or changing the corporate limits or boundaries of the City of Wichita; nor shall

repeal affect any prosecution, suit or other proceedings pending, or any judgment rendered on or before the effective date of this ordinance, nor shall it affect any ordinance of the City adopted and in effect after the 1st day of January, 1972.

SECTION 4. That any ordinance relating to the following subjects shall be deemed to be not of a general nature and is excepted from repeal by the provisions of this ordinance to wit; Ordinances relating to the purchase and condemnation or appropriation of private property for public use; ordinances opening, dedicating, widening, vacating or narrowing streets, avenues, alleys and other highways; ordinances establishing or changing grades of streets, avenues, alleys or boulevards; ordinances creating districts for public improvements of whatever kind or nature; ordinances levying general taxes; ordinances levying special assessment of taxes; ordinances designating depositories of, and for funds and moneys of the City of Wichita; Charter Ordinances; and ordinances creating industrial districts.

SECTION 5. That Ordinance No. 31-447 be and the same is hereby repealed in its entirety.

SECTION 6. That this ordinance shall be in force and effect from and after its passage, approval and publication once in the official City paper.

ADOPTED at Wichita, Kansas, this 18th day of January, 1972.

JACK H. GREENE
Mayor

ATTEST:

RALPH C. EBERLY
City Clerk

(SEAL)

Approved as to form this January 7, 1972

JOHN DEKKER
Director of Law

CERTIFICATE

SEDGWICK COUNTY
STATE OF KANSAS SS
CITY OF WICHITA

I, Ralph C. Eberly, City Clerk of the City of Wichita, Kansas, do hereby certify that the ordinances of the City of Wichita published in this volume are true and correct copies of the original ordinances passed by the Governing Body of the City of Wichita, Kansas.

WITNESS my hand and seal of office this 1st day of March, 1972.

RALPH C. EBERLY
City Clerk

(SEAL)

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(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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48-918	12-21-2010	Include	10
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49-254	4-10-2012	Include	11
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49-257	4-10-2012	Include	11
49-263	4-24-2012	Include	11
49-267	5- 8-2012	Include	11
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49-282	6-19-2012	Include	11
49-287	6-19-2012	Include	11
49-292	6-26-2012	Include	11
49-293	6-26-2012	Include	11
49-294	6-26-2012	Include	11
49-295	6-26-2012	Include	11
49-308	7-17-2012	Include	12
49-309	7-17-2012	Include	12
49-312	7-24-2012	Include	12
49-331	8-21-2012	Include	12
49-335	8-28-2012	Include	12
49-336	8-28-2012	Include	12
49-360	10-16-2012	Include	12
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49-762	6-17-2014	Include	15
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49-816	8-26-2014	Include	15
49-840	10-14-2014	Include	15
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Ch. Ord. 231	8-28-2018	Include	24
Ch. Ord. 232	8-28-2018	Include	24
50-868	10- 9-2018	Include	24
50-875	10-23-2018	Omit	24
50-881	11-13-2018	Include	24
50-886	11-20-2018	Include	24
50-894	11-27-2018	Omit	24
50-896	11-27-2018	Include	24
50-897	11-27-2018	Include	24
50-912	1- 8-2019	Include	24
50-917	1-15-2019	Include	24
50-918	1-15-2019	Include	24
50-924	2-12-2019	Omit	24
50-932	3- 5-2019	Include	24
50-933	3- 5-2019	Include	24
50-935	3-22-2019	Include	24
50-936	3-19-2019	Include	24
50-938	3-19-2019	Omit	24
50-948	3-19-2019	Include	24

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50-957	4-23-2019	Include	24
51-042	5-21-2019	Include	24
51-043	5-28-2019	Include	24
51-044	5-28-2019	Include	24
51-049	6-18-2019	Include	24
51-059	6-25-2019	Include	24
51-063	7-23-2019	Include	24
51-064	7-23-2019	Include	24
51-069	7-16-2019	Omit	24
51-070	7-16-2019	Omit	24
51-090	9-10-2019	Include	24
51-091	9-10-2019	Include	24
51-092	9-10-2019	Include	24
51-093	9-10-2019	Include	24
51-094	8-20-2019	Include	24
51-127	11-12-2019	Include	24
51-144	11-19-2019	Include	24
Ch. Ord. 233	5-14-2019	Include	25
51-153	12-10-2019	Include	25
51-157	12-10-2019	Include	25
51-158	12-10-2019	Include	25
51-165	1- 7-2020	Include	25
51-166	1- 7-2020	Include	25
51-169	1-14-2020	Include	25
51-189	2-21-2020	Include	25
51-194	3-24-2020	Include	25
51-209	4-21-2020	Include	26
51-295	6-16-2020	Include	26
51-307	7- 3-2020	Omit	26
51-335	8-11-2020	Include	26
51-336	8-11-2020	Omit	26
51-343	9- 8-2020	Omit	26
Ch. Ord. 234	8-13-2019	Include	27
Ch. Ord. 236	9-15-2020	Include	27
Ch. Ord. 237	9-22-2020	Include	27
51-352	10-13-2020	Include	27
51-370	11-24-2020	Include	27
51-382	12- 8-2020	Include	27
51-383	12- 8-2020	Include	27
51-390	12-22-2020	Omit	27
51-400	12-22-2020	Include	27
51-411	2- 9-2021	Include	27
51-429	4-13-2021	Omit	27
51-552	5-11-2021	Include	27
51-553	5-18-2021	Include	27
51-558	5-25-2021	Include	27

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51-565	6- 8-2021	Include	27
51-566	6- 8-2021	Include	27
51-587	7-13-2021	Omit	27
51-588	7-13-2021	Include	27
51-589	7-13-2021	Include	27
51-620	8-17-2021	Include	27
51-621	8-10-2021	Include	27
51-626	9-14-2021	Include	27
51-639	9-28-2021	Include	27
51-640	9-28-2021	Include	27
51-654	10-12-2021	Include	27
51-663	11- 9-2021	Include	28
51-716	2-22-2022	Include	28
50-441	4-25-2017	Include	28
51-723	3- 8-2022	Include	28
51-729	4- 5-2022	Include	28
51-738	4-19-2022	Include	28
51-739	4-19-2022	Include	28
51-745	4-26-2022	Include	28
51-855	5-10-2022	Include	28
51-864	6- 7-2022	Include	28
51-875	6-21-2022	Include	28
51-884	6-28-2022	Include	28
51-885	6-28-2022	Include	28
51-886	6-28-2022	Include	28
51-887	6-28-2022	Include	28
51-888	6-28-2022	Include	28
51-889	6-28-2022	Include	28
51-890	6-28-2022	Include	28
51-891	6-28-2022	Include	28
51-892	6-28-2022	Include	28
51-893	6-28-2022	Include	28
51-894	6-28-2022	Include	28
51-681	12-14-2021	Include	29
51-682	12-14-2021	Include	29
51-898	7-12-2022	Include	29
51-938	9-13-2022	Include	29
51-945	9-20-2022	Include	29
51-946	9-20-2022	Include	29
51-962	10-25-2022	Include	29
51-963	10-25-2022	Include	29
51-972	11-22-2022	Include	29
51-973	11-22-2022	Include	29
52-006	12-27-2022	Include	29
52-019	1- 3-2023	Include	29
52-035	2-28-2023	Omit	29

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52-051	3-21-2023	Include	29
52-047	4- 4-2023	Include	30
52-175	5-23-2023	Include	30
52-183	5-23-2023	Include	30
52-184	6-13-2023	Include	30
52-192	6-13-2023	Include	30
52-203	6-27-2023	Include	30
52-204	7-11-2023	Omit	30
52-217	7-18-2023	Include	30
52-239	8- 8-2023	Include	30
52-244	8-15-2023	Include	30
52-245	8-15-2023	Include	30
52-246	8-15-2023	Include	30
52-248	8-15-2023	Include	30
52-249	8-15-2023	Omit	30
52-265	9-19-2023	Include	30
52-266	9-19-2023	Omit	30
52-267	9-26-2023	Omit	30
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52-279	10-24-2023	Include	31
52-282	11-21-2023	Include	31
52-289	11-28-2023	Include	31
52-315	12-26-2023	Include	31
52-325	1- 9-2024	Include	31
52-326	1- 9-2024	Include	31
52-332	1-23-2024	Include	31
52-337	2-13-2024	Include	31
52-338	2-13-2024	Include	31
52-348	2-27-2024	Include	31
52-353	3-19-2024	Include	31
52-355	3-19-2024	Include	31
52-362	4- 9-2024	Include	31
52-367	4-23-2024	Include	31
52-489	5-14-2024	Omit	31
52-490	5-21-2024	Include	31
52-493	5-28-2024	Include	31
52-508	6-25-2024	Include	32
52-536	8-20-2024	Include	32
52-539	8-27-2024	Include	32
52-540	8-27-2024	Include	32
52-541	8-27-2024	Include	32
52-544	9-10-2024	Include	32
52-545	9-10-2024	Include	32
52-549	9-17-2024	Include	32
52-551	9-17-2024	Omit	32
52-552	9-24-2024	Omit	32

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52-553	9-24-2024	Omit	32
52-554	10- 1-2024	Omit	32
52-555	10- 1-2024	Omit	32
52-556	10- 1-2024	Omit	32
52-557	10- 8-2024	Omit	32
52-558	10- 8-2024	Omit	32
52-559	10- 8-2024	Omit	32
52-560	10- 8-2024	Omit	32
52-561	10-15-2024	Include	32
52-562	10-22-2024	Omit	32
52-563	10-22-2024	Omit	32
52-564	10-22-2024	Omit	32
52-565	10-22-2024	Omit	32
52-566	11-19-2024	Omit	33
52-568	11-19-2024	Include	33
52-569	11-19-2024	Include	33
52-570	11-26-2024	Omit	33
52-571	11-26-2024	Omit	33
52-572	11-26-2024	Omit	33
52-573	11-26-2024	Omit	33
52-574	12- 3-2024	Omit	33
52-575	12-10-2024	Include	33
52-576	12-10-2024	Include	33
52-577	12-10-2024	Include	33
52-579	12- 3-2024	Omit	33
52-580	12-10-2024	Omit	33
52-581	12-10-2024	Omit	33
52-582	12-10-2024	Omit	33
52-583	12-10-2024	Omit	33
52-584	12-17-2024	Omit	33
52-585	12-17-2024	Omit	33
52-586	12-17-2024	Include	33
52-587	12-17-2024	Include	33
52-588	12-17-2024	Include	33
52-590	12-17-2024	Omit	33
52-591	12-17-2024	Omit	33
52-592	12-17-2024	Omit	33
52-593	12-17-2024	Omit	33
52-594	12-20-2024	Omit	33
52-595	12-17-2024	Omit	33
52-596	12-17-2024	Omit	33
52-597	12-17-2024	Omit	33
52-598	12-17-2024	Omit	33
52-599	12-17-2024	Omit	33
52-600	1- 7-2025	Include	33
52-601	1- 7-2025	Include	33

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52-602	1- 7-2025	Include	33
52-603	1- 7-2025	Include	33
52-604	1- 7-2025	Include	33
52-605	1-14-2025	Omit	33
52-606	1-14-2025	Omit	33
52-609	1-21-2025	Omit	33
52-610	1-21-2025	Omit	33
52-611	1-21-2025	Omit	33
52-612	1-21-2025	Omit	33
52-613	1-21-2025	Omit	33
52-614	1-21-2025	Omit	33
52-615	1-21-2025	Omit	33
52-616	1-21-2025	Omit	33
52-617	1-21-2025	Omit	33
52-618	1-28-2025	Omit	33
52-619	1-28-2025	Omit	33
52-620	1-28-2025	Omit	33
52-622	2-11-2025	Omit	33
52-624	2-18-2025	Omit	33
52-625	2-18-2025	Omit	33
52-626	2-25-2025	Omit	33
52-627	2-25-2025	Omit	33
52-628	2-25-2025	Omit	33
52-629	3- 4-2025	Omit	33
52-630	3- 4-2025	Omit	33
52-631	3- 4-2025	Omit	33
Ch. Ord. 239	1- 9-2024	Include	34
Ch. Ord. 240	6-25-2024	Include	34
52-632	3-18-2025	Include	34
52-633	3-25-2025	Include	34
52-634	3-25-2025	Include	34
52-635	3-25-2025	Omit	34
52-636	4- 1-2025	Omit	34
52-637	4- 8-2025	Omit	34
52-638	4- 8-2025	Omit	34
52-639	4-22-2025	Omit	34
52-640	4-22-2025	Omit	34
52-641	5-13-2025	Omit	34
52-642	5-13-2025	Omit	34
52-643	5-13-2025	Omit	34
52-644	5-13-2025	Omit	34
52-645	5-13-2025	Omit	34
52-646	5-13-2025	Omit	34
52-647	5-13-2025	Omit	34
52-648	5-13-2025	Omit	34
52-649	5-13-2025	Omit	34

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52-650	5-13-2025	Omit	34
52-651	5-13-2025	Omit	34
52-652	5-13-2025	Omit	34
52-653	5-13-2025	Omit	34
52-654	5-13-2025	Omit	34
52-655	5-13-2025	Omit	34
52-656	5-13-2025	Omit	34
52-657	5-13-2025	Omit	34
52-658	5-13-2025	Omit	34
52-659	5-13-2025	Omit	34
52-660	5-13-2025	Omit	34
52-661	5-13-2025	Omit	34
52-662	5-13-2025	Omit	34
52-663	5-13-2025	Omit	34
52-664	5-13-2025	Omit	34
52-665	5-13-2025	Omit	34
52-666	5-13-2025	Omit	34
52-667	5-13-2025	Omit	34
52-668	5-13-2025	Omit	34
52-669	5-13-2025	Omit	34
52-670	5-13-2025	Omit	34
52-671	5-13-2025	Omit	34
52-672	5-13-2025	Omit	34
52-673	5-13-2025	Omit	34
52-674	5-13-2025	Omit	34
52-675	5-13-2025	Omit	34
52-676	5-13-2025	Omit	34
52-677	5-13-2025	Omit	34
52-678	5-13-2025	Omit	34
52-679	5-13-2025	Omit	34
52-680	5-13-2025	Omit	34
52-681	5-13-2025	Omit	34
52-682	5-13-2025	Omit	34
52-683	5-13-2025	Omit	34
52-684	5-13-2025	Omit	34
52-685	5-13-2025	Omit	34
52-686	5-13-2025	Omit	34
52-687	5-13-2025	Omit	34
52-688	5-13-2025	Omit	34
52-689	5-13-2025	Omit	34
52-690	5-13-2025	Omit	34
52-691	5-13-2025	Omit	34
52-692	5-13-2025	Omit	34
52-693	5-13-2025	Omit	34
52-694	5-13-2025	Omit	34
52-695	5-13-2025	Omit	34

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52-696	5-13-2025	Omit	34
52-697	5-13-2025	Omit	34
52-698	5-13-2025	Omit	34
52-699	5-13-2025	Omit	34
52-700	5-13-2025	Omit	34
52-701	5-13-2025	Omit	34
52-702	5-13-2025	Omit	34
52-703	5-13-2025	Omit	34
52-704	5-13-2025	Omit	34
52-705	5-13-2025	Omit	34
52-706	5-13-2025	Omit	34
52-707	5-13-2025	Omit	34
52-708	5-13-2025	Omit	34
52-709	5-13-2025	Omit	34
52-710	5-13-2025	Omit	34
52-711	5-13-2025	Omit	34
52-712	5-13-2025	Omit	34
52-713	5-13-2025	Omit	34
52-714	5-13-2025	Omit	34
52-715	5-13-2025	Omit	34
52-716	5-13-2025	Omit	34
52-717	5-13-2025	Omit	34
52-718	5-13-2025	Omit	34
52-719	5-13-2025	Omit	34
52-720	5-13-2025	Omit	34
52-721	5-13-2025	Omit	34
52-722	5-13-2025	Omit	34
52-723	5-13-2025	Omit	34
52-724	5-13-2025	Omit	34
52-726	5-13-2025	Omit	34
52-728	5-13-2025	Omit	34
52-730	5-13-2025	Omit	34
52-731	5-20-2025	Include	34
52-732	5-20-2025	Omit	34
52-733	5-20-2025	Omit	34
52-734	5-20-2025	Omit	34
52-735	5-20-2025	Omit	34
52-736	5-20-2025	Omit	34
52-737	5-20-2025	Omit	34
52-738	5-20-2025	Omit	34
52-739	5-27-2025	Include	34
52-740	5-27-2025	Include	34
52-741	5-27-2025	Omit	34
52-742	6- 3-2025	Omit	34
52-743	6- 3-2025	Omit	34
52-744	6-10-2025	Omit	34

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52-745	6-17-2025	Omit	34
52-746	6-17-2025	Omit	34
52-747	6-17-2025	Include	34
52-748	6-17-2025	Omit	34
52-749	6-17-2025	Omit	34
52-750	6-17-2025	Omit	34
52-751	6-17-2025	Omit	34
52-752	6-17-2025	Omit	34
52-753	6-24-2025	Include	34
52-754	6-24-2025	Include	34
52-755	7- 8-2025	Omit	34
52-756	7- 8-2025	Omit	34
52-757	7- 8-2025	Omit	34
52-758	7- 8-2025	Omit	34
52-759	7- 8-2025	Omit	34
52-760	7-15-2025	Include	34
52-761	7-22-2025	Omit	34
52-762	7-22-2025	Omit	34
52-763	7-22-2025	Omit	34
52-764	7-22-2025	Omit	34
52-765	7-22-2025	Omit	34
52-767	7-22-2025	Omit	34
52-768	7-22-2025	Omit	34
52-769	7-22-2025	Omit	34
52-770	7-22-2025	Omit	34
52-771	7-22-2025	Omit	34
52-772	7-22-2025	Omit	34
52-773	7-22-2025	Omit	34
52-774	7-22-2025	Omit	34
52-775	7-22-2025	Omit	34
52-776	7-22-2025	Omit	34
52-777	7-22-2025	Omit	34
52-778	8-12-2025	Omit	34
52-779	8-12-2025	Omit	34
52-780	8-26-2025	Omit	34
52-781	8-26-2025	Omit	34
52-782	8-26-2025	Omit	34
52-783	8-26-2025	Omit	34
52-784	8-26-2025	Omit	34
52-785	8-26-2025	Omit	34
52-786	8-26-2025	Omit	34
52-787	8-26-2025	Omit	34
52-788	8-26-2025	Omit	34
52-789	8-26-2025	Omit	34
52-790	8-26-2025	Omit	34
52-791	8-12-2025	Omit	34

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52-792	8-19-2025	Omit	35
52-793	8-19-2025	Omit	35
52-794	8-19-2025	Omit	35
52-795	8-19-2025	Omit	35
52-796	8-19-2025	Omit	35
52-797	8-26-2025	Include	35
52-798	8-26-2025	Include	35
52-799	8-26-2025	Omit	35
52-800	8-26-2025	Omit	35
52-801	8-26-2025	Omit	35
52-802	8-26-2025	Omit	35
52-803	8-26-2025	Omit	35
52-804	8-29-2025	Omit	35
52-806	9- 9-2025	Omit	35
52-807	9-16-2025	Include	35
52-808	9-16-2025	Include	35
52-809	9-16-2025	Include	35
52-810	9-16-2025	Include	35
52-811	9-16-2025	Omit	35
52-812	9-16-2025	Omit	35
52-813	9-16-2025	Omit	35
52-814	9-23-2025	Include	35
52-821	9-23-2025	Omit	35
52-823	10-21-2025	Omit	35
52-824	10-21-2025	Omit	35
52-825	10-21-2025	Omit	35
52-826	10-21-2025	Omit	35
52-834	10-28-2025	Include	35
52-835	11-25-2025	Include	35
52-839	11-25-2025	Omit	35
52-840	11-25-2025	Include	35
52-841	11-25-2025	Omit	35
52-842	11-25-2025	Omit	35
52-843	11-25-2025	Omit	35
52-844	11- 6-2025	Omit	35
52-845	12- 2-2025	Omit	35
52-846	12- 9-2025	Include	35
52-847	12- 9-2025	Include	35
52-850	12- 9-2025	Omit	35
52-851	12- 9-2025	Omit	35
52-852	12- 9-2025	Omit	35
52-853	12- 9-2025	Omit	35
52-854	12- 9-2025	Omit	35
52-855	12- 9-2025	Omit	35
52-856	12- 9-2025	Omit	35
52-857	12- 9-2025	Omit	35

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52-858	12- 9-2025	Omit	35
241 (Charter Ord.)	12-16-2025	Include	35
242 (Charter Ord.)	12-16-2025	Include	35
243 (Charter Ord.)	12-16-2025	Include	35
52-859	12-16-2025	Include	35
52-860	12-16-2025	Include	35
52-861	12-16-2025	Include	35
52-862	12-16-2025	Include	35
52-863	12-16-2025	Include	35
52-864	12-16-2025	Include	35
52-865	12-16-2025	Omit	35
52-866	12-16-2025	Omit	35
52-867	12-23-2025	Omit	35
52-868	12-23-2025	Omit	35
52-869	12-23-2025	Omit	35
52-870	12-23-2025	Omit	35
52-871	12-23-2025	Omit	35
52-872	12-23-2025	Omit	35
52-873	12-23-2025	Omit	35
52-874	12-23-2025	Omit	35
52-875	12-23-2025	Omit	35
52-876	12-23-2025	Omit	35
52-877	12-23-2025	Omit	35
52-878	1-13-2026	Include	35
52-880	1-13-2026	Omit	35
52-881	1-13-2026	Omit	35
52-882	1-13-2026	Omit	35
52-883	1-13-2026	Omit	35
52-884	1-13-2026	Omit	35
52-885	1-20-2026	Include	35
52-886	1-20-2026	Include	35
52-889	1-27-2026	Omit	35
52-890	1-27-2026	Omit	35
52-891	2- 3-2026	Omit	35
52-892	2- 3-2026	Omit	35
52-893	2-10-2026	Omit	35
52-894	2-10-2026	Omit	35
52-895	2-10-2026	Omit	35
52-896	2-10-2026	Omit	35
52-897	2-10-2026	Omit	35
52-898	2-10-2026	Omit	35
52-899	2-10-2026	Omit	35
52-900	2-24-2026	Include	35

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
52-902	2-24-2026	Include	35
52-903	2-24-2026	Omit	35
52-904	2-27-2026	Omit	35
52-905	2-24-2026	Omit	35
52-906	2-24-2026	Omit	35
52-907	3-10-2026	Include	35
52-908	3-10-2026	Omit	35
52-910	3-10-2026	Omit	35
52-911	3-10-2026	Omit	35
52-912	3-10-2026	Omit	35
52-913	3-10-2026	Omit	35
52-914	3-10-2026	Omit	35
52-915	3-24-2026	Omit	35
52-916	3-24-2026	Omit	35
52-917	3-17-2026	Omit	35

CHARTER ORDINANCE NO. 1

(Repealed by Charter Ordinance No. 7)

CHARTER ORDINANCE NO. 2

(Repealed by Charter Ordinance No. 9)

CHARTER ORDINANCE NO. 3

(Relating to changes in city government, was voted down at a referendum election held January 19, 1965.)

CHARTER ORDINANCE NO. 4

CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, PROVIDING THAT SECTION 13-10, 117 OF THE GENERAL STATUTES OF KANSAS, 1949, SHALL NOT APPLY TO SAID CITY AND EXEMPTING SAID CITY THEREFROM AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISION ON THE SAME SUBJECT; PROVIDING THAT THE COST OF THE IMPROVEMENT OF A MAJOR TRAFFIC STREET IN SAID CITY SHALL INCLUDE THE COST OF ACQUISITION OF RIGHT OF WAY TO EXTEND AND WIDEN STREET, ROUNDING OF CORNERS AND STRAIGHTENING OF STREETS, PERMANENT CONSTRUCTION OR RECONSTRUCTION, BRIDGES, CULVERTS, DRAINAGE, GUTTERS, CURBING, SIDEWALKS, CURB CUTS, CURB CUTBACKS, DRIVE-WAYS AND INCIDENTALS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, a commission-manager city of the first class, by the power invested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to and exempts itself from, and makes inapplicable to it, Section 13-10, 117 of the General Statutes of Kansas, 1949, which applies only to cities with a population of over 120,000 and applying to said city, and to provide substitute and additional provisions as hereinafter provided.

SECTION 2. The improvement or reimprovement of a major traffic street may include the acquisition of right of way to extend or widen said street or for the rounding of corners, or for the straightening of the street. The improvement, in addition to permanent construction or reconstruction, may also include bridges, culverts, drainage, gutters, curbing, sidewalks, curb cuts, curb cutbacks, driveways and incidentals. For the purposes of this ordinance the resolution declaring a street to be a major traffic street as provided in Section 13-10, 115 of the General Statutes of Kansas, 1949, shall be conclusive that such street is a major traffic street.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition or referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision C-3 of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

Passed by the governing body not less than two-thirds of the members elect voting in favor thereof, this 19th day of May, 1964.

VINCENT L. BOGART
Mayor

ATTEST:

ROBERT G. FINCH
City Clerk

(SEAL)

CHARTER ORDINANCE NO. 5*

(Repealed by Charter Ordinances No. 19 and 24)

*For state law as to firemen's and policemen's pension fund, see K.S.A. 13-14a01 to 13-14a14.

CHARTER ORDINANCE NO. 6

(Repealed by Charter Ordinance No. 21)

CHARTER ORDINANCE NO. 7

(Repealed by Charter Ordinance No. 18)

CHARTER ORDINANCE NO. 8

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM CERTAIN PROVISIONS OF SECTION 76-3a07, KANSAS STATUTES ANNOTATED, AND PROVIDING A SUBSTITUTE LEVY, COMMENCING WITH BUDGET YEAR 1967.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. That the governing body of the City of Wichita, Kansas, by the power vested in it by Article 12, Section 5, of the constitution of the state of Kansas, hereby elects to and exempts itself from and makes inapplicable to it that part of Section 76-3a07, Kansas Statutes Annotated, pertaining to the levying of a tax as follows:

> " . . . the governing body of the city of Wichita shall levy an annual tax commencing with the budget year of 1967 at the rate of one and one-half mills on the dollar on all taxable tangible property in such city.",

which section applies only to the City of Wichita, and hereby provides a substitute provision as hereinafter set forth.

SECTION 2. That the City of Wichita shall levy an annual tax commencing with the budget year 1967 at the rate of one and one-half (1 ½) mills on the dollar on all the taxable tangible property in such city, the amount of such tangible, taxable property to be calculated each year on the basis of the equalized assessed valuation determined by the County Assessor of Sedgwick County, Kansas for the preceding year, such levy to be employed in the manner and for the purposes prescribed by said Section 76-3a07, Kansas Statutes Annotated. That said Section 76-3a07, Kansas Statutes Annotated, shall continue to be applicable to the City of Wichita except only as provided for herein.

SECTION 3. That this ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. That this is a charter ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this ordinance as provided in Article 12, Section 5, Subdivision (c) (3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

Passed by the Board of Commissioners, not less than two-thirds of the members-elect voting in favor thereof, this 1st day of March, 1966.

WILLIAM D. TARRANT
Mayor

ATTEST:

RALPH C. EBERLY
City Clerk

Approved as to form:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 9

(Repealed by Charter Ordinance No. 12)

CHARTER ORDINANCE NO. 10

(Repealed by Charter Ordinance No. 13)

CHARTER ORDINANCE NO. 11

(Repealed by Charter Ordinances No. 19 and 24)

CHARTER ORDINANCE NO. 12

A CHARTER ORDINANCE AMENDING AND REPEALING CHARTER ORDINANCE NO. 9 OF THE CITY OF WICHITA, KANSAS; EXEMPTING THE CITY OF WICHITA, KANSAS FROM K.S.A. 79-1949; PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT; AND REMOVING ANY LIMITATION OF TAX LEVY.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. That Charter Ordinance No. 9 of the City of Wichita, Kansas, is hereby repealed.

SECTION 2. That the governing body of the City of Wichita, Kansas, by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to and exempts itself from and makes inapplicable to it K.S.A. 79-1949, which applies only to cities of the first class having a population of more than 150,000, and applying to said City, and to provide substitute and additional provisions as hereinafter provided.

SECTION 3. That the governing body of the City of Wichita, Kansas, is hereby authorized and empowered to levy taxes in each year for the following city purposes; provided, that city purposes specifically authorized by other statutes are not excluded herein because of enumeration. That said levy shall be on each dollar of assessed tangible valuation of said city for the following purposes:

General Government, including but not limited to: Protection of life and property; health and sanitation; highways; judgments; war service memorial; bridge; building, rebuilding and repairing; and sewage disposal.

Special Provisions of General Government, including but not limited to: Recreation, airports, forestry and playgrounds; library, public health nurse association; charity, association aid.

Said governing body may levy an amount necessary in accordance with the requirements of its adopted budget. That any levy limit previously contained in K.S.A. 79-1949 is hereby removed and that there be no aggregate levy limit.

SECTION 4. That this ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 5. That this is a charter ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE BOARD OF COMMISSIONERS, not less than two-thirds of the members-elect voting in favor thereof, this 29th day of May, 1967.

CLARENCE E. VOLLMER
Mayor

ATTEST:

RALPH C. EBERLY
City Clerk

Approved as to form:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 13

(Repealed by Charter Ordinance No. 56)

CHARTER ORDINANCE NO. 14

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS FROM A PART OF K.S.A. 13-1348a AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT; RELATING TO ELECTIONS ON THE QUESTION OF ISSUING GENERAL OBLIGATION BONDS FOR THE PURPOSE OF PURCHASING LAND FOR PARK, PARKWAY, BOULEVARD OR AIRPORT PURPOSES OR FOR THE CONSTRUCTION, ENLARGEMENT, RECONSTRUCTION, REPAIR OR ADDITION TO OR OF ANY IMPROVEMENTS TO ANY SUCH LANDS FOR ANY SUCH PURPOSES OR ANY SUCH LANDS AND ANY SUCH IMPROVEMENTS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. That the City of Wichita, Kansas by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to and exempts itself from and makes inapplicable to it that part of K.S.A. 13-1348a which limits elections on bond issues to a general or regular City election, which statute applies only to cities having a Board of Park Commissioners, created under K.S.A. 13-1346 and to provide substitute and additional provisions as hereinafter provided.

SECTION 2. That the question of the issuance of bonds as authorized by 13-1348a may be submitted to a vote of the qualified electors of the City of Wichita, Kansas at a general or regular city election and also at a special bond election called for that purpose.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a Charter Ordinance, and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum be held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, the 24th day of October, 1967.

CLARENCE E. VOLLMER
Mayor

ATTEST:

RALPH C. EBERLY
City Clerk

Approved as to form:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 15

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM K.S.A. 13-1802; AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT RELATING TO MEMBERS OF THE BOARD OF CITY COMMISSIONERS HOLDING OFFICES OTHER THAN WITH THE CITY OF WICHITA.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. That the City of Wichita, Kansas, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to and exempts itself from and makes inapplicable to it that part of K.S.A. 13-1802, which limits offices that may be held by the Mayor and City Commissioners and to provide substitute and additional provisions, as hereinafter provided.

SECTION 2. That no member of the Board of Commissioners, or the Mayor, shall hold any office of profit or trust under the laws of any state or the United States, or hold any county or other city office; nor shall the Mayor or any Commissioner ever be elected or appointed to any office, the compensation of which was increased or fixed by the Board of Commissioners, while he was a member thereof, until after the expiration of at least two years after he has ceased to be a member of said board; PROVIDED, that nothing herein contained shall limit the appointment of the Mayor or any Commissioner without compensation to any board of the City of Wichita during their respective terms of office.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a Charter Ordinance, and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum be held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 7th day of November, 1967.

CLARENCE E. VOLLMER
Mayor

ATTEST:

RALPH C. EBERLY
City Clerk

Approved as to form:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 16

(Repealed by Charter Ordinance No. 32)

CHARTER ORDINANCE NO. 17

(Repealed by Charter Ordinance No. 80)

CHARTER ORDINANCE NO. 18

(Repealed by Charter Ordinance No. 23)

CHARTER ORDINANCE NO. 19

(Amended and repealed—See Charter Ordinance No. 116 and 131)

CHARTER ORDINANCE NO. 20

(Repealed by Charter Ordinance No. 26)

CHARTER ORDINANCE NO. 21

(Repealed by Charter Ordinance No. 67)

CHARTER ORDINANCE NO. 22

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 13-2102; AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from and hereby makes inapplicable to it K.S.A. 13-2102, which statutes applies only to cities of the first class, and said City of Wichita hereby provides substitute and additional provisions as hereinafter set forth.

SECTION 2. The City of Wichita, Kansas, shall adopt a personnel policy and procedure concerning the manner in which non-resident employees of the City of Wichita shall be employed and remain with the City. Said policy shall be adopted in the same manner as other personnel policies have been adopted and are enforced in the City of Wichita.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one days after final publication unless sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3), of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members-elect voting in favor thereof, this 12th day of May, 1970.

A. PRICE WOODARD, JR.
Mayor

ATTEST:

RALPH C. EBERLY
City Clerk

Approved as to form:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 23

(Repealed by Charter Ordinance No. 25)

CHARTER ORDINANCE NO. 24

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 25

(Repealed by Charter Ordinance No. 42.)

CHARTER ORDINANCE NO. 26

(Repealed by Charter Ordinance No. 43.)

CHARTER ORDINANCE NO. 27

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 28

(Repealed by Charter Ordinance No. 134)

CHARTER ORDINANCE NO. 29

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 12-1503; PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT RELATING TO THE BOARD OF EXAMINERS OF PLUMBERS AND GAS FITTERS, THE APPOINTMENT OF MEMBERS THERETO, TERMS OF OFFICE THEREFOR AND VACANCIES THEREON.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 12-1503, and provide substitute and additional provisions as hereinafter set forth in this ordinance. Such referenced provisions are either enactments or a part thereof which are applicable to this city, but are not applicable uniformly to all cities.

SECTION 2. (Repealed and amended—See Charter Ordinance No. 60, §§ 1 and 3.)

SECTION 3. This ordinance shall be published once each week for two (2) consecutive weeks in the official city newspaper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by the majority of the electors voting thereon.

PASSED by the Governing Body, not less than two-thirds of the members-elect voting in favor thereof, the 10th day of July, 1973.

JAMES M. DONNELL
Mayor

ATTEST:

RALPH C. EBERLY
City Clerk

Approved as to form:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 30

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 13-461; PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT RELATING TO THE MEMBERS' APPOINTMENT, TERMS OF OFFICE AND VACANCIES OF THE ART MUSEUM BOARD.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 13-461, and provide substitute and additional provisions as hereinafter set forth in this ordinance. Such referenced provisions are either enactments or a part thereof which are applicable to this city, but are not applicable uniformly to all cities.

SECTION 2. (Amended—See Charter Ordinance No. 106, § 1.)

SECTION 3. This ordinance shall be published once each week for two (2) consecutive weeks in the official city newspaper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by the majority of the electors voting thereon.

PASSED by the Governing Body, not less than two-thirds of the members-elect voting in favor thereof, the 10th day of July, 1973.

JAMES M. DONNELL
Mayor

ATTEST:

RALPH C. EBERLY
City Clerk

Approved as to form:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 31

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 32

(Repealed and amended—See Charter Ordinance No. 36)

CHARTER ORDINANCE NO. 33

(Amended and repealed—See Charter Ordinance No. 45)

CHARTER ORDINANCE NO. 34

A CHARTER ORDINANCE AMENDING SECTION 20-A OF CHARTER ORDINANCE NO. 27 OF THE CITY OF WICHITA, KANSAS, AND REPEALING SAID ORIGINAL SECTION 20-A HERETOFORE CONTAINED IN SECTION 3 OF SAID CHARTER ORDINANCE NO. 27.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Section 20-A of Charter Ordinance No. 27 of the City of Wichita, Kansas, is hereby amended to read as follows:

(Amended and repealed—See Charter Ordinance No. 76, § 1.)

SECTION 2. The original of Section 20-A of Charter Ordinance No. 27 of the City of Wichita, Kansas is hereby repealed.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 27th day of November, 1973.

JAMES M. DONNELL
Mayor

ATTEST:

RALPH C. EBERLY
City Clerk

Approved as to from:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 35

(Repealed by Charter Ordinance No. 98)

CHARTER ORDINANCE NO. 36

(Repealed by Charter Ordinance No. 44)

CHARTER ORDINANCE NO. 37

(Repealed by Charter Ordinance No. 42)

CHARTER ORDINANCE NO. 38

(Repealed by Charter Ordinance No. 93)

CHARTER ORDINANCE NO. 39

(Repealed by Charter Ordinance No. 56)

CHARTER ORDINANCE NO. 40

(Repealed by Charter Ordinance No. 54)

CHARTER ORDINANCE NO. 41

(Repealed by Charter Ordinance No. 56)

CHARTER ORDINANCE NO. 42

(Repealed by Charter Ordinance No. 50)

CHARTER ORDINANCE NO. 43

(Repealed by Charter Ordinance No. 226)

CHARTER ORDINANCE NO. 44

(Repealed by Charter Ordinance No. 66)

CHARTER ORDINANCE NO. 45

(Repealed by Charter Ordinance No. 125)

CHARTER ORDINANCE NO. 46

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 47

(Repealed by Charter Ordinance No. 75)

CHARTER ORDINANCE NO. 48

(Repealed by Charter Ordinance No. 56)

CHARTER ORDINANCE NO. 49

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 50

(Repealed by Charter Ordinance No. 57)

CHARTER ORDINANCE NO. 51

(Repealed by Charter Ordinance No. 55)

CHARTER ORDINANCE NO. 52

(Repealed by Charter Ordinance No. 98)

CHARTER ORDINANCE NO. 53

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 54

A CHARTER ORDINANCE REPEALING CHARTER ORDINANCE NO. 40 OF THE CITY OF WICHITA, KANSAS, EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 13-1801, RELATING TO THE QUALIFICATIONS OF ELECTED CITY OFFICIALS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Charter Ordinance No. 40 of the City of Wichita, Kansas, is hereby repealed.

SECTION 2. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 3. This is a charter ordinance and shall take effect sixty-one days after final publication, unless a sufficient petition for a referendum is filed and a referendum held on the ordinance, as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members-elect voting in favor thereof, this 14th day of December, 1976.

JAMES M. DONNELL
Mayor

ATTEST:

DONALD C. GISICK
City Clerk

CHARTER ORDINANCE NO. 55

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 56

(Repealed by Charter Ordinance No. 166)

CHARTER ORDINANCE NO. 57

(Repealed by Charter Ordinance No. 77)

CHARTER ORDINANCE NO. 58

(Repealed by Charter Ordinance No. 98.)

CHARTER ORDINANCE NO. 59

(Repealed by Charter Ordinance No. 78)

CHARTER ORDINANCE NO. 60

A CHARTER ORDINANCE AMENDING SECTION 2 OF CHARTER ORDINANCE NO. 29 OF THE CITY OF WICHITA, KANSAS PERTAINING TO THE BOARD OF EXAMINERS OF PLUMBERS AND GAS FITTERS AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Section 2 of Charter Ordinance No. 29 of the City of Wichita is hereby amended to read as follows:

SECTION 2. (Amended—See Charter Ordinance No. 106, § 4.)

SECTION 3. The original of Section 2 of Charter Ordinance 29 of the City of Wichita, Kansas is hereby repealed.

SECTION 4. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed and a referendum held on the ordinance, as provided in Article 12, Section 5, Subsection (e)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 28th day of February, 1978.

CONNIE A. PETERS
Vice Mayor

ATTEST:

DONALD C. GISICK
City Clerk

Approved as to form:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 61

(Repealed by Charter Ordinance No. 98.)

CHARTER ORDINANCE NO. 62

(Repealed by Charter Ordinance No. 185.)

CHARTER ORDINANCE NO. 63

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS FROM CERTAIN PROVISIONS OF K.S.A. 1977 SUPPLEMENT 41-719 AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS WHICH RELATE TO THE CONSUMPTION OF ALCOHOLIC LIQUOR UPON PROPERTY LEASED BY THE CITY UNDER THE PROVISIONS OF THE INDUSTRIAL REVENUE BOND ACT.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. That the governing body of the City of Wichita, Kansas, by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to and exempts itself from and makes inapplicable to it that part of K.S.A. 1977 Supplement 41-719, pertaining to the consumption of alcoholic liquor upon property leased by a city under the provisions of K.S.A. 12-1740 to 12-1749, inclusive and any amendments thereto, as follows:

> "Provided, however, the limitations, aforesaid, shall not apply to real property leased by a city to others under the provisions of K.S.A. 12-1740 and 12-1749, both sections inclusive, and any amendments thereto, if such real property is actually being used for hotel or motel purposes or purposes incidental thereto . . . "

and hereby providing substitute and additional provisions as hereinafter set forth.

SECTION 2. That the limitations of K.S.A. 1977 Supplement 41-719, pertaining to the consumption of alcoholic liquor in public places, shall not apply to any real property leased by the City of Wichita, Kansas, to others under the provisions of K.S.A. 12-1740 to 12-1749, both sections inclusive, and any amendments thereto, notwithstanding the purpose of which such real property is actually being used. That said K.S.A. 1977 Supplement 41-719 shall continue to be applicable to the City of Wichita, Kansas, except only as provided for herein.

SECTION 3. That this ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 4. That this is a charter ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed, and a referendum held on this ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE BOARD OF CITY COMMISSIONERS, not less than two-thirds of the members elect voting in favor thereof, this 12th day of September, 1978.

CONNIE A. PETERS
Mayor

ATTEST: (SEAL)

DONALD C. GISICK
City Clerk

CHARTER ORDINANCE NO. 64

(Repealed by Charter Ordinance No. 133)

CHARTER ORDINANCE NO. 65

(Repealed by Charter Ordinance No. 166)

CHARTER ORDINANCE NO. 66

A CHARTER ORDINANCE REPEALING CHARTER ORDINANCE NO. 44 OF THE CITY OF WICHITA, KANSAS, EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 13-1455, RELATING TO THE PURCHASE OF SUPPLIES AND EQUIPMENT FOR THE CITY BY THE CITY PURCHASING MANAGER.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Charter Ordinance No. 44 of the City of Wichita, Kansas, is hereby repealed.

SECTION 2. This Charter Ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 3. This is a Charter Ordinance and shall take effect sixty-one days after final publication, unless a sufficient petition for a referendum is filed and a referendum held on the ordinance, as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the membership voting in favor thereof, this 12th day of December, 1978.

CONNIE A. PETERS
Mayor

ATTEST: (Seal)

DONALD C. GISICK
City Clerk

Approved as to form:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 67

(Repealed by Charter Ordinance No. 79)

CHARTER ORDINANCE NO. 68

A CHARTER ORDINANCE EXEMPTING THE BOARD OF PARK COMMISSIONERS OF THE CITY OF WICHITA, KANSAS, AND THE WICHITA AIRPORT AUTHORITY, WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 13-1331, AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT, AND PROVIDING THAT WHERE IMPROVEMENTS ARE CONSTRUCTED ON OR TO REAL ESTATE OWNED BY THE WICHITA AIRPORT AUTHORITY AND LEASED TO A TENANT INDUSTRY UNDER THE AUTHORITY OF K.S.A. 3-154 THROUGH 3-160, INCLUSIVE, OTHER PROVISIONS SHALL BE APPLICABLE.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt the Board of Park Commissioners of the City of Wichita, Kansas, and the Wichita Airport Authority, Wichita, Kansas, from and hereby makes inapplicable to them K.S.A. 13-1331, which statute applies only to cities of the first class with a population of more than one hundred fifty thousand (150,000), who have established a Board of Park Commissioners pursuant to K.S.A. 13-1346, and cities having a population of more than two hundred fifty thousand (250,000), who have established by ordinance an airport authority pursuant to K.S.A. 3-162, and said City of Wichita hereby provides substitute and additional provisions as hereinafter set forth.

SECTION 2. The provisions of Charter Ordinance No. 67 shall apply to contracts for construction, reconstruction or improvements to be made in any park or upon property under the jurisdiction of the Board of Park Commissioners of the City of Wichita, Kansas, and in any airport or upon the property under the jurisdiction of the Wichita Airport Authority, Wichita, Kansas.

SECTION 3. Where improvements are constructed on or to real estate owned by the Wichita Airport Authority, which improvements will be

financed by special facilities revenue bonds issued by the Wichita Airport Authority under the authority of K.S.A. 3-154 through 3-160, inclusive, and the Airport Authority/Tenant lease agreement provides that the tenant shall construct the improvements contemplated by the lease agreement, none of the provisions of said statute shall be applicable and the tenant industry shall contract for such improvements provided, however, that all the provisions of the lease agreement between the Wichita Airport Authority and such tenant industry shall be applicable as to such improvements and all city codes shall also be applicable; provided, further, that performance bonds, maintenance bonds and labor and material bonds in amounts not less than the contract price naming the Wichita Airport Authority as an additional obligee and with sureties to be approved by the Wichita Airport Authority shall be filed with the Wichita Airport Authority clerk before the commencement of any work and provided, further, that no funds derived from tax levies shall be employed in any such construction.

SECTION 4. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 5. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, subdivision C-3 of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 12th day of December, 1978.

CONNIE A. PETERS
Mayor

ATTEST:

DONALD C. GISICK
City Clerk

Approved as to form:

JOHN DEKKER
Director of Law

CHARTER ORDINANCE NO. 69

(Amended and repealed—See Charter Ordinance No. 133)

CHARTER ORDINANCE NO. 70

(Repealed by Charter Ordinance No. 166)

CHARTER ORDINANCE NO. 71

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 72

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISIONS OF SECTION 12-1222, KANSAS STATUTES ANNOTATED, AND PROVIDING SUBSTITUTE PROVISIONS FOR THE APPOINTMENT AND TERMS OF MEMBERS OF THE BOARD OF DIRECTORS OF THE CITY OF WICHITA LIBRARY AND PROVIDING SUBSTITUTE PROVISIONS FOR THE ELIGIBILITY OF SUCH MEMBERS AND THE MANNER OF FILLING VACANCIES TO SUCH BOARD OF DIRECTORS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. That the City of Wichita, Kansas, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to and exempts itself from and makes inapplicable to it the provisions of K.S.A. 12-1222, which apply to said city and provides substitute and additional provisions relating to the appointment and terms of members of the Board of Directors of the City of Wichita Library and additional and substitute provisions relating to the terms of office of such members of the Board and the manner of filling vacancies to such Board as follows:

SECTION 2. (Amended—See Charter Ordinance No. 106, § 6.)

SECTION 3. This Charter Ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed requiring a referendum to be held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 29th day of January, 1980.

TONY CASADO
Mayor

ATTEST: (Seal)

DONALD C. GISICK
City Clerk

CHARTER ORDINANCE NO. 73

(Repealed by Charter Ordinance No. 83)

CHARTER ORDINANCE NO. 74

(Repealed by Charter Ordinance No. 83)

CHARTER ORDINANCE NO. 75

(Repealed by Charter Ordinance No. 90)

CHARTER ORDINANCE NO. 76

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 77

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISIONS OF K.S.A. 13-14, 106 AND K.S.A. 1979 SUPP. 13-14, 107 AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT; AND REPEALING CHARTER ORDINANCE NO. 57 OF THE CITY OF WICHITA, KANSAS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself and hereby makes inapplicable to it K.S.A. 13-14, 106 and K.S.A. 1979 Supp. 13-14, 107 which sections apply only to cities of the first class having a population of more than one hundred seventy-five thousand, and hereby provides substitute and additional provisions as are hereafter set forth.

SECTION 2. The City of Wichita, Kansas is authorized and empowered by Ordinance to establish and continue a retirement system for all employees of such city and all employees of the Board of Park Commissioners of such city, the Library Board of such city, the Art Museum Board of such city, the Community Grievance Advisory Board of such city, the Civil Rights and Equal Employment Commission of such city, the Administrative Staff of the Metropolitan Transit Authority of such city, and the Airport Authority of such city, not already covered by the police and fire pension plans adopted pursuant to Charter Ordinance No. 19, as amended by Charter Ordinance No. 24, No. 27, No. 31, No. 34, No. 46, No. 49, No. 53, No. 55, No. 64 and No. 76, providing for age and disability retirement, subject to the following limitations:

(a) To defray a portion of the cost of any such retirement plan, the governing body shall provide for a salary deduction of not to exceed seven percent (7.00%) on all salaries of such employees;

(b) The annual retirement allowance in any case shall not exceed seventy-five percent (75.00%) of the employee's average annual compensation during the three (3) consecutive years of employment prior to retirement during which he received the highest total compensation and such annual retirement allowance shall be paid in twelve (12) equal monthly installments.

SECTION 3. The City of Wichita, Kansas, by virtue of the Home Rule powers recited in Section 1 herein, hereby elects to exempt itself, and hereby makes inapplicable to it K.S.A. 1979 Supp. 13-14, 107 and, for the purpose of defraying a portion of the cost of such retirement system, the governing body of the City of Wichita, Kansas, is hereby authorized and empowered to levy a tax without mill limitation, which levy may be in addition to the limits of levies now provided by law in such city, or the city may use any miscellaneous revenues in the general government fund, or revenues from both such tax levy and such miscellaneous fund.

SECTION 4. Charter Ordinance No. 57 of the Code of the City of Wichita, Kansas, is hereby repealed.

SECTION 5. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 6. This is a Charter Ordinance and shall become effective February 18, 1981, unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY not less than two-thirds of the members elect voting in favor thereof, this 9th day of December, 1980.

ROBERT G. KNIGHT
Mayor

ATTEST: (Seal)

DONALD C. GISICK
City Clerk

CHARTER ORDINANCE NO. 78

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM CERTAIN PROVISIONS OF K.S.A. 13-1348a, AS AMENDED BY SECTION 40, CHAPTER 173, OF THE 1981 SESSION LAWS OF KANSAS, RELATING TO THE ISSUANCE OF GENERAL OBLIGATION BONDS FOR PARKS, PARKWAYS, BOULEVARDS OR AIRPORT PURPOSES, PROVIDING SUBSTITUTE PROVISIONS THEREFOR, AND REPEALING CHARTER ORDINANCE NO. 59.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The governing body of the City of Wichita, Kansas, by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to and exempts itself from and makes inapplicable to it that part of K.S.A. 13-1348a, as amended by Section 40, Chapter 173 of the 1981 Session Laws of Kansas, pertaining to the issuance of general obligation bonds for parks, parkways, boulevards or airport purposes, which part reads as follows, to-wit:

"No bonds shall be issued under authority conferred by this section until the question of the issuance of such bonds has been submitted to a vote of the qualified electors of the city at a general or regular city election or a special bond election and a majority of the electors voting on the question have voted in favor thereof.

In lieu of the foregoing election requirements, where, by resolution of a board of park commissioners or airport authority, net income of an airport facility is pledged to the municipality for payment of bonds issued hereunder, a resolution may be adopted by the governing body of the municipality stating the purpose for which such bonds are to be issued, and the total amount of the bonds proposed to be issued along with a finding by the governing body that revenues pledged by resolution of the board of park commissioners or airport authority will be sufficient to retire general obligation bonds issued hereunder. Such resolution and finding by the governing body of the municipality shall be published once each week for two consecutive weeks in the official newspaper of such municipality. Whereupon such bonds may be issued unless a petition requesting election on the proposition signed by electors or such city equal in number to not less than two per cent (2%) of the municipality who voted at the last preceding general election, is filed with the Clerk of such municipality within sixty (60) days following the last publication of such resolution. In the event such petition is filed, the governing body of such municipality shall submit the proposition to the voters at an election called for such purpose and held not less than thirty (30) days nor more than sixty (60) days after the filing of such petition. No bonds shall be issued unless a majority of the electors voting on such proposition vote in favor thereof. Such election shall be called and held in the manner provided by the general bond law." and the City hereby provides a substitute provision as set out in Section 2 hereof.

SECTION 2. Bonds issued under authority of K.S.A. 13-1348a, as amended by Section 40, Chapter 173 of the 1981 Session Laws of Kansas, and as further modified by this Charter Ordinance, are authorized to be issued without an election. The Board of Park Commissioners of the City of Wichita, Kansas, or the Airport Authority of the City of Wichita, Kansas, may pledge by resolution, but such shall not be required to pledge, the net income of a park facility or an airport facility for payment of such bonds so issued.

SECTION 3. Charter Ordinance No. 59 is hereby repealed.

SECTION 4. This Charter Ordinance shall be published once a week for two consecutive weeks in the official city newspaper.

SECTION 5. This is a Charter Ordinance, and shall become effective the 14th day of October, 1981, unless within sixty-one (61) days after final publication a sufficient petition is filed in the office of the City Clerk calling for a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than ⅔ of the members elect voting in favor thereof, this 4th day of August, 1981.

R. C. BROWN
Mayor

ATTEST:

DONALD C. GISICK
City Clerk

CHARTER ORDINANCE NO. 79

(Repealed by Charter Ordinance No. 111)

CHARTER ORDINANCE NO. 80

CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, REPEALING CHARTER ORDINANCE NO. 17 OF THE CITY OF WICHITA, KANSAS; PROVIDING THAT K.S.A. 13-1011 AS AMENDED BY SECTION 34, CHAPTER 173 OF THE 1981 SESSION LAWS OF KANSAS SHALL NOT APPLY TO THE CITY OF WICHITA AND EXEMPTING THE CITY OF WICHITA THEREFROM, AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS OF THE SAME SUBJECT; PROVIDING FOR STREET AND ALLEY IMPROVEMENTS, RESOLUTIONS TO BE ADOPTED, PETITIONS WHICH ARE NECESSARY AND PROVIDING FOR THE MANNER IN WHICH SAID IMPROVEMENT ARE TO BE CONSTRUCTED.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. That the governing body of the City of Wichita, Kansas, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to and exempts itself from and makes inapplicable to it K.S.A. 13-1011 as amended by Section 34, Chapter 173 of the 1981 Session Laws of Kansas, which applies only to cities of the first class, and applying to said city, and to provide additional provisions as hereinafter provided.

SECTION 2. (a) When the governing body deems it necessary to grade, regrade or improve any street, lane or avenue or alley or any part thereof, within the limits of the City, for which a special tax is to be levied, such body shall by resolution declare the work or improvements to be done. Such resolution shall be published once in the official paper of the City. If the resident owners of more than one-half of the property liable for taxation thereof do not, within twenty (20) days after such publication, file with the Clerk of the City their protest against the work or improvement, the governing body shall have power to cause such work to be done or such improvement to be made and to contract therefore and to levy taxes as provided by law. The work may be done before, during or after the collection of a special assessment.

(b) No provision of this act shall prevent the governing body from grading or regarding any street, lane, or alley or part thereof, and pay therefore out of the general improvement fund of such city.

(c) No resolution to pave, macadamize, grade or repave, remacadamize, or regrade any street, lane or alley shall be valid unless a petition requesting such improvement has been filed with the City Clerk, which petition must be signed by the resident owners of not less than one-half (½) of the feet fronting or abutting upon the street, lane or alley to be improved. The feet fronting or abutting upon such street, lane or alley owned or held by the persons who are not residents of the City shall not be taken into account in determining the sufficiency of any such protest or any such petition. In case of paving, such petition shall state the width of the paving and the kind of material to be used, but shall not include the naming of the brand material or the name of the manufacturer thereof.

(d) As used in this section, "improve" means curb, gutter, pave, macadamize, recurb, regutter, repave or remacadamize.

SECTION 4. This Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 5. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision C-3 of the Constitution of the State of Kansas, in which case, the Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 11th day of August, 1981.

R. C. BROWN
Mayor

ATTEST:

DONALD C. GISICK
City Clerk

CHARTER ORDINANCE NO. 81

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 82

(Repealed by Charter Ordinance No. 166)

CHARTER ORDINANCE NO. 83

(Repealed by Charter Ordinance No. 221)

CHARTER ORDINANCE NO. 84

(Repealed by Charter Ordinance No. 98)

CHARTER ORDINANCE NO. 85

(Repealed by Charter Ordinance No. 164)

CHARTER ORDINANCE NO. 86

(Repealed by Charter Ordinance No. 136)

CHARTER ORDINANCE NO. 87

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 88

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 13-1008d THROUGH K.S.A. 13-1008h AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT, RELATING TO SIDEWALKS AND THE FINANCING OF SAME.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, a commission-manager city of the first class, by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from, and makes inapplicable to it, the provisions of K.S.A. 13-1008d through 13-1008h, and provide substitute and additional provisions as hereinafter set forth in this ordinance. Such referenced provisions are either enactments or a part thereof which are applicable to other cities, but are not applicable uniformly to all cites or all cities of the same class.

SECTION 2. (a) Any city of the first class having a population of not less than sixty thousand (60,000) is authorized to construct, reconstruct and/or repair sidewalks within the city and to levy special assessments therefore upon the owners of lots and tracts abutting thereon.

(b) It shall be the duty of the owner of the abutting property to keep sidewalk in repair. When any sidewalk becomes inadequate or unsafe for travel thereon, the Director of Operations and Maintenance or his authorized representative may, after giving five days' written notice by certified mail, return receipt requested, to the owner or his or her agent, if known, of the necessity therefore, make all necessary repairs, construction or reconstruction at any time. The construction, reconstruction and/or repairs may be made by force account or by contract and an account of the cost thereof shall be kept and reported to the governing body.

(c) The cost of all sidewalks constructed under the provisions of this act shall be assessed to the property abutting on such sidewalks.

(d) When a sidewalk or sidewalks has or have been constructed, reconstructed and/or repaired, special assessments shall be levied for the expense thereof. The governing body shall, as soon as the cost is ascertained, levy an assessment against the lots or pieces of land chargeable therefore, by ordinance, and the property owner shall have thirty (30) days after the publication of the ordinance within which to make full payment of the assessment. The City Clerk shall mail a notice not less than fifteen (15) days prior to the end of the thirty (30) days to the owner of record of the property, but failure of the owner to receive notice shall not affect the validity of the assessment. The governing body of said city may issue bonds in the manner provided in the general bond law to finance the unpaid balance of any such special assessments or the cost of construction, reconstruction and repair may be financed until the assessment is paid, out of the fund provided for the maintenance of streets or general improvement fund if such cost has been budgeted as an expense of such fund, and when the assessment and the interest thereon are paid, they shall be credited to such fund.

(e) The cost of constructing, reconstructing and repairing all sidewalks abutting on lots or pieces of land belonging to the city or the United States, and that portion of the sidewalk extending from the projected property line to the curb and which does not abut on and which is not in front of or along side of any lot or piece of land, shall be paid for by the city unless the United States shall pay the cost of the sidewalk abutting on property owned by the United States, and may be paid for out of the fund provided for the maintenance of streets or general improvement fund or by the issuance of bonds and the levying of taxes to pay such bonds.

(f) The temporary financing of repairs may be borne by the city out of the fund for maintaining streets or out of the general fund or general improvement fund or temporary notes may be issued during construction, reconstruction or repair of such sidewalks and before the issuance of sidewalk bonds.

(g) The assessment may be levied to be paid in one installment or in not more than five installments at the discretion of the governing body, and when installments are certified to the county clerk, interest at the rates specified on the bonds hereinabove authorized to be issued shall be added; provided, that when bonds are not issued, the interest on the installments shall be equal to the average net interest cost incurred by the city in its issuance of general obligation bonds next preceding the assessment. The assessment shall include the cost of materials, labor, engineering and supervision, publication expense, cost of printing bonds, if applicable, removing old sidewalk, and all other expenses properly chargeable against the project; provided, that certain costs not ascertained at the time of figuring the expense, such as publication of the assessment ordinance, printing of bonds, etc., may be estimated; provided, that the costs relating to bonds shall be deducted if the assessment is paid within the thirty days provided for herein.

SECTION 3. This is a Charter Ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c) (3) of the Constitution of Kansas, in which case the ordinance shall become effective by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 5th day of July, 1983.

MARGALEE WRIGHT
Mayor

ATTEST: (Seal)

DONALD C. GISICK
City Clerk

CHARTER ORDINANCE NO. 89

(Repealed by Charter Ordinance No. 98)

CHARTER ORDINANCE NO. 90

(Repealed by Charter Ordinance No. 223)

CHARTER ORDINANCE NO. 91

(Repealed by Charter Ordinance No. 221)

CHARTER ORDINANCE NO. 92

(Repealed by Charter Ordinance No. 134)

CHARTER ORDINANCE NO. 93

(Repealed by Charter Ordinance No. 112)

CHARTER ORDINANCE NO. 94

(Repealed by Charter Ordinance No. 111)

CHARTER ORDINANCE NO. 95

(Repealed by Charter Ordinance No. 105)

CHARTER ORDINANCE NO. 96

(Repealed by Charter Ordinance No. 105)

CHARTER ORDINANCE NO. 97

(Repealed by Charter Ordinance No. 134)

CHARTER ORDINANCE NO. 98

(Repealed by Charter Ordinance No. 122)

CHARTER ORDINANCE NO. 99

(Repealed by Charter Ordinance No. 134)

CHARTER ORDINANCE NO. 100

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 75-3338(c) AND K.S.A. 5-3341 AND PROVIDING FOR SUBSTITUTE PROVISIONS ON THE SAME SUBJECT, RELATING TO BLIND PERSON PREFERENCE IN OPERATION OF VENDING FACILITIES.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, a city of the first class, by power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it, the provisions of K.S.A. 75-3338(c) and K.S.A. 75-3341 and provide substitute provisions as hereinafter set forth in this Ordinance. Such referenced provisions are either enactments or a part thereof which are applicable to the City, but are not applicable uniformly to all cities.

SECTION 2. The term "vending facilities" includes automatic vending machines, snack bars, curb services, shelters, auxiliary equipment as rules and regulations of the Division of Services for the Blind of the Department of Social and Rehabilitation Services prescribes and as are necessary for the sale of the articles or services referred to in paragraph (4) of Subsection (a) of K.S.A. 75-3339, which are, or may be operated by blind licensees. Provided, however, that "vending facilities" shall not include cafeterias and further provided that the decision to operate any of the above on city premises is in the sole discretion of the City.

SECTION 3. The City shall not be subject to the mandatory arbitration provision set forth at K.S.A. 75-3341. Any dispute between the City, the blind licensee or the Division of Services for the Blind shall be resolved as a matter of contract rights, if a contract exists, in a court of law if the parties are unable to otherwise resolve their differences.

SECTION 4. The provisions of this Charter Ordinance shall not be construed to prevent the Division of Services for the Blind of the Department of Social and Rehabilitation Services from

bidding and submitting proposals shall comply with all City requirements and specifications for the undertaking.

SECTION 5. This Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 6. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision C-3 of the Constitution of the State of Kansas, in which case, the Ordinance shall become effective if approved by a majority of the electors voting thereon.

CHARTER ORDINANCE NO. 101

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 102

(Relating to selection of city councilmembers, was voted down at a referendum election held November 4, 1986.)

CHARTER ORDINANCE NO. 103

A CHARTER ORDINANCE CHANGING THE TITLES OF THE GOVERNING BODY OF THE CITY OF WICHITA AND OF THE MEMBERS THEREOF AS USED IN K.S.A. 12-1001 to 12-1020, CHARTER ORDINANCES NOS. 43 AND 93, AND THE CODE OF THE CITY OF WICHITA.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. It is the intent of this Charter Ordinance to exempt the City of Wichita from only that part of the Commission-Manager form of government which establishes titles for the governing body and the members thereof, to provide substitute titles for the same, and to retain all other provisions of K.S.A. 12-1001 to 12-1020, Charter Ordinances Nos. 43 and 93, and the Code of the City of Wichita. The substitution of terms is not intended to make and does not connote any substantive change to existing enactments.

SECTION 2. The City of Wichita, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself from certain titles and terms used in part of K.S.A. 12-1001 to K.S.A. 12-1020, inclusive, and to provide substitute and additional provisions as hereinafter set forth in this ordinance.

SECTION 3. The term "council" is substituted for the term "board of commissioners" or "commission" wherever used for the governing body of the City of Wichita.

SECTION 4. The term "council member" is substituted for the term "commissioner" wherever used for the members of the governing body of the City of Wichita.

SECTION 5. All provisions of K.S.A. 12-1001 to 12-1020, Charter Ordinances Nos. 43 and 93, and the Code of the City of Wichita are hereby retained and remain in full force in this ordinance.

SECTION 6. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 7. This is a Charter Ordinance and shall take effect April 14, 1987, unless a sufficient petition for a referendum is filed requiring a referendum be held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 6th day of January, 1987.

TONY CASADO
Mayor

ATTEST: (Seal)

DALE E. REA
Deputy City Clerk

CHARTER ORDINANCE NO. 104

(Repealed by Charter Ordinance No. 143)

CHARTER ORDINANCE NO. 105

(Repealed by Charter Ordinance No. 227)

CHARTER ORDINANCE NO. 106

A CHARTER ORDINANCE RELATING TO THE TERMS OF APPOINTMENT OF CERTAIN APPOINTIVE BOARDS AND COMMISSIONS OF THE CITY OF WICHITA, KANSAS, AMENDING SECTION 2 OF CHARTER ORDINANCE 30; SECTION 2 OF CHARTER ORDINANCE 45; SECTION 5 OF CHARTER ORDINANCE 56; SECTION 2 OF CHARTER ORDINANCE 60; SECTION 2 OF CHARTER ORDINANCE 62; SECTION 2 OF CHARTER ORDINANCE 72; SECTION 1 OF CHARTER ORDINANCE 81; AND SECTION 12 OF CHARTER ORDINANCE 83, OF THE CODE OF THE CITY OF WICHITA, KANSAS, AND REPEALING THE ORIGINALS OF SAID SECTIONS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Amended and repealed—See Charter Ordinance No. 119.)

SECTION 2. (Amended and repealed—See Charter Ordinance No. 119.)

SECTION 3. (Repealed by Charter Ordinance No. 166.)

SECTION 4. (Amended and repealed—See Charter Ordinance No. 197.)

SECTION 5. (Amended and repealed—See Charter Ordinance No. 119.)

SECTION 6. (Amended and repealed—See Charter Ordinance No. 119.)

SECTION 7. (Amended and repealed—See Charter Ordinance No. 120.)

SECTION 8. (Amended and repealed—See Charter Ord. No. 110.)

SECTION 9. All appointments made by the City Council to boards and commissions subject to this charter ordinance shall expire June 30, 1989, whether made before or after the effective date of this charter ordinance. Thereafter, the terms shall be as established by ordinance.

SECTION 10. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 11. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 20th day of October, 1987.

ROBERT G. KNIGHT
Mayor

ATTEST: (Seal)

JOHN MOIR
Director of Finance/City Clerk

CHARTER ORDINANCE NO. 107

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 12-1758, AND PROVIDING FOR SUBSTITUTE PROVISIONS ON THE SAME SUBJECT RELATING TO PUBLIC BUILDING COMMISSIONS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas (the "City") pursuant to Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 12-1758, and provide substitute provisions as hereinafter set forth in this Ordinance. Such statute is applicable to the City, but was part of an enactment which is not uniformly applicable to all cities.

SECTION 2. (Amended and repealed—See Charter Ordinance No. 162, § 2.)

SECTION 3. This Charter Ordinance shall be published once a week for two consecutive weeks in the official City newspaper and shall take effect 61 days after final publication, unless a sufficient petition is filed and a referendum held on the Charter Ordinance, as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case the Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED AND APPROVED by the Governing Body of the City of Wichita, Kansas, on November 17, 1987.

ROBERT G. KNIGHT
Mayor

(Seal)

ATTEST:

JOHN MOIR
Director of Finance/City Clerk

CHARTER ORDINANCE NO. 108

A CHARTER ORDINANCE PERTAINING TO THE BOARD OF DIRECTORS AND OFFICERS OF CERTAIN CEMETERIES AND EXEMPTING THE CITY OF WICHITA FROM CERTAIN PROVISIONS OF K.S.A. 13-14c01, 13-14c03, AND 13-14c04, AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS RELATING THERETO.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, a city of the first class, by power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it, certain provisions of K.S.A. 13-14c01, 13-14c03, and 13-14c04 and provide substitute and additional provisions as hereinafter set forth in this Ordinance but to remain under all other provisions of said statutes not modified herein. Such referenced provisions are either enactments or a part thereof which are applicable to the City, but are not applicable uniformly to all cities.

SECTION 2. The City Council shall constitute the Board of Directors and Trustees of any cemetery placed under the control of the City. The City Council shall succeed to all powers and authority over any cemetery previously placed in the Historic Wichita Board. The City Council shall have the duty to maintain and control the property and affairs of such cemetery and shall have the power to expend cemetery funds to maintain, care for, and improve such cemetery in accordance with K.S.A. 13-14c01 et seq. The authority for the City Council to act as said Board of Directors and Trustees is in addition to and supplemental to the provisions of K.S.A. 13-14c01.

SECTION 3. The Board of Directors and Trustees shall have the same organization, officers, and terms as now or hereafter provided by law for the City Council and any provisions of K.S.A. 13-14c03 inconsistent with such organization, officers, and terms shall be inapplicable to the City.

SECTION 4. It shall be the duty of the Director of Finance or such other officer as may be

determined by the City Council to act as treasurer of the Board of Directors and Trustees, and any inconsistent provisions of K.S.A. 13-14c04 shall be inapplicable to the City.

SECTION 5. This ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 6. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case the Ordinance shall become effective if approved by a majority of the electors voting thereon.

ADOPTED at Wichita, Kansas, this 5th day of January, 1988.

ROBERT G. KNIGHT
Mayor

ATTEST: (Seal)

John Moir
Director of Finance/City Clerk

CHARTER ORDINANCE NO. 109

(Repealing Charter Ordinance No. 93—Defeated at a special election on August 2, 1988.)

CHARTER ORDINANCE NO. 110

A CHARTER ORDINANCE AMENDING SECTION 8 OF CHARTER ORDINANCE NO. 106 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO THE CONVENTION AND TOURISM COMMITTEE ESTABLISHED BY CHARTER ORDINANCE NO. 74 AND AS AMENDED AT CHARTER ORDINANCE NO. 83, AND 106 OF THE CODE OF THE CITY OF WICHITA, KANSAS, AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Amended and repealed—See Charter Ordinance No. 119.)

SECTION 2. Appointments made by the City Council to the Convention and Tourism Committee shall expire June 30, 1989, whether made before or after the effective date of this charter ordinance. Thereafter, the terms shall be as established by ordinance.

SECTION 3. Section 8 of Charter Ordinance No. 106 is hereby repealed.

SECTION 4. This ordinance shall be published once each week for two consecutive weeks in the official City paper.

SECTION 5. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 14th day of June, 1988.

SHELDON KAMEN
Mayor

ATTEST:

JOHN MOIR
Director of Finance/City Clerk

CHARTER ORDINANCE NO. 111

(Repealed by Charter Ordinance No. 228)

CHARTER ORDINANCE NO. 112

A CHARTER ORDINANCE ESTABLISHING THAT CITY COUNCIL MEMBERS SHALL BE NOMINATED AND ELECTED FROM DISTRICTS, EXEMPTING THE CITY OF WICHITA, KANSAS, FROM K.S.A. 25-2110, 25-2110a, K.S.A. 12-1003, AND 12-1006 AND REPEALING CHARTER ORDINANCE NO. 93.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

It is the intent of this Charter Ordinance to exempt the City of Wichita, Kansas, from only those sections of the Commission-Manager form of government explicitly set out herein and to remain under all other provisions of K.S.A. 12-1001 through 12-1020, except when modified by other ordinances.

The City of Wichita, Kansas, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 25-1110, 25-1110a and K.S.A. 12-1003, and 12-1006 and provide substitute and additional provisions as follows:

SECTION 1. Composition. Commencing with the election to be held in 1989, City Council members from districts I and III shall be nominated and elected from districts. Commencing with the election of 1991 City Council members from the remaining Districts shall be nominated and elected from districts. Each Council district shall be represented by one (1) Council member.

SECTION 2. (Amended and repealed—See Charter Ordinance No. 226, §§ 6, 11.)

SECTION 3. Qualifications. Each Council member shall be a citizen of the United States, a qualified elector, and a resident of the City of Wichita and their respective district at the time of filing for election and thereafter for the duration of their term.

SECTION 4. (Amended and repealed—See Charter Ordinance No. 226, §§ 7, 11.)

SECTION 5. (Repealed—See Charter Ordinance No. 226, § 11.)

SECTION 6. (Amended and repealed—See Charter Ordinance No. 130, § 1.)

SECTION 7. Council Districts. The initial districts from which district Council members I and III shall be nominated and elected in 1989 shall be those established by the commission of electors and adopted by ordinance by the City Council in accordance with Charter Ordinance No. 93. Commencing in 1991, districts from which council members shall be nominated and elected shall be those established in accordance with the provisions as set forth in this Charter Ordinance.

SECTION 8. (Amended and repealed—See Charter Ordinance No. 173, § 1.)

SECTION 9. (Amended and repealed—See Charter Ordinance No. 173, § 1.)

SECTION 10. Repeal. Charter Ordinance No. 93 of the City of Wichita, Kansas, is hereby repealed.

SECTION 11. Publication. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 12. Election. This is a charter ordinance and is hereby made subject to a vote of the electors of the City of Wichita, Kansas. It shall take effect only if approved by a majority of the electors voting thereon.

PASSED by the governing body, not less than two-thirds of the members elect voting in favor thereof, this 6th day of September, 1988.

Editor's note—Charter Ordinance No. 93 was repealed by Charter Ordinance No. 112.

SHELDON KAMEN
Mayor

ATTEST:

JOHN MOIR
Director of Finance/City Clerk

CHARTER ORDINANCE NO. 113

(Never approved by Council)

CHARTER ORDINANCE NO. 114

A CHARTER ORDINANCE PROVIDING FOR THE ELECTION OF A MAYOR BY ALL THE ELECTORS OF THE CITY OF WICHITA, KANSAS, EXEMPTING THE CITY OF WICHITA, KANSAS, FROM K.S.A. 12-1007 AND AMENDING CHARTER ORDINANCE NO. 93.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

It is the intent of this Charter Ordinance to exempt the City of Wichita, Kansas, from only those sections of the Commission-Manager form of government explicitly set out herein and to remain under all other provisions of K.S.A. 12-1001 through 12-1020, except where modified by other Charter Ordinances that are now in existence or may be enacted in the future.

In addition to the exemption from state statute set forth in other Charter Ordinances now in existence or enacted in the future, the City of Wichita, Kansas, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 12-1007.

SECTION 1. Composition. Commencing with the election to be held in 1989, the Mayor shall be elected at large by all qualified electors of the City. The Mayor shall be an additional member of the governing body.

SECTION 2. Mayor's Powers and Duties. The powers and duties of the Mayor under this Charter Ordinance shall, except as modified herein, remain the same as presently set forth in simple ordinances, Charter Ordinances and state law unless such powers and duties are amended by City Council action.

SECTION 3. Eligibility. Any person desiring to become a candidate for Mayor shall file with the City Clerk before the filing deadline a statement of such candidacy on a form furnished by the City Clerk. The City Clerk shall record the same and transmit it, together with the filing fee or petition, forthwith to the Sedgwick County Election Commissioner.

Each such filing shall be accompanied by a filing fee of ten dollars ($10.00); or, in lieu of such filing fee, by a petition signed by one hundred (100) qualified electors of the City at large.

SECTION 4. Qualifications. The Mayor shall be a citizen of the United States, a qualified elector, and a resident of the City of Wichita at the time of filing of election and thereafter for the duration of the term.

SECTION 5. Election and Term. In the primary election, each qualified elector of the City of Wichita shall be entitled to vote for one (1) candidate for mayor. The two (2) mayor candidates receiving the greatest number of votes cast shall be placed on the general election ballot. ***See also Charter Ord. 208.***

SECTION 6. General Election. In the general election for Mayor all qualified electors of the City shall be entitled to vote for one candidate for Mayor. The candidate receiving the highest number of votes cast shall serve as Mayor.

SECTION 7. (Amended and repealed—See Charter Ordinance No. 130, § 2.)

SECTION 8. Amendment. Charter Ordinance No. 93 is hereby amended to delete reference to a five-member commission and provide for a governing body consisting of such members as is provided by this Charter Ordinance and other Charter Ordinances that are now in existence or may be enacted in the future.

SECTION 9. Publication. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 10. Election. This is a charter ordinance and is hereby made subject to a vote of the electors of the City of Wichita, Kansas. It shall take effect only if approved by a majority of the electors voting thereon.

PASSED by the governing body, not less than two-thirds of the members elect voting in favor thereof, this 6th day of September, 1988.

SHELDON KAMEN
Mayor

ATTEST: (SEAL)

JOHN MOIR
Director of Finance/City Clerk

CHARTER ORDINANCE NO. 115

A CHARTER ORDINANCE ESTABLISHING A SIXTH CITY COUNCIL POSITION AND ESTABLISHING PROCEDURES FOR THE APPOINTMENT AND ELECTION OF A MEMBER TO SUCH POSITION AND AMENDING CERTAIN PROVISIONS OF CHARTER ORDINANCE NO. 112.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Composition. Following the general election of 1989, the governing body shall consist of the Mayor and six (6) council members.

SECTION 2. Initial Method of Selection. A sixth council position shall be created following the general election of 1989. Such position shall be at-large and the member shall be nominated and appointed by the governing body for a two (2) year term in accordance with the provisions set forth by ordinance for the filling of a council vacancy. Notice of such vacancy shall be deemed given at the first council meeting following the general election of 1989.

SECTION 3. Term. After the initial two (2) year term, the sixth council position created by this ordinance shall be subject to nomination and election at the regular City elections in 1991 and for a two (2) year term and in 1993 and every four (4) years thereafter for a four (4) year term.

SECTION 4. Qualifications. The sixth council member shall be a citizen of the United States, a qualified elector, and a resident of the City of Wichita at the time of appointment and thereafter for the duration of their term.

SECTION 5. Revision for 1991 Election. As part of the process of revision of boundary lines as set forth in Charter Ordinance No. 112, the council shall take whatever action is necessary to determine whether the sixth council position shall be elected at-large or by district in 1991 and thereafter. In the event the Council does not take such action in a timely manner, the sixth Council position shall be elected by district in 1991 and thereafter.

SECTION 6. Amendment of Charter Ordinance No. 112. If a sixth district is created by the process set forth in Section 5, all references in Charter Ordinance No. 112 to five (5) districts and one-fifth (1/5) of the population shall be amended and deemed to read six (6) districts and one-sixth (1/6) of the population accordingly.

SECTION 7. Publication. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 8. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum to be held on the ordinance as provided in Article 12, section 5, subsection (c)(3) of the Constitution of the State of Kansas in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 31st day of January, 1989.

SHELDON KAMEN
Mayor

ATTEST: (Seal)

JOHN MOIR
Director of Finance/City Clerk

Approved as to Form:

THOMAS R. POWELL
Director of Law

CHARTER ORDINANCE NO. 116

A CHARTER ORDINANCE AMENDING SECTION 3.4 OF SECTION 3 OF CHARTER ORDINANCE NO. 19 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO THE DEFINITION OF POLICEMAN OR FIREMAN UNDER THE POLICEMEN'S & FIREMEN'S RETIREMENT SYSTEM OF WICHITA, KANSAS, AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Amended—See Charter Ordinance No. 161, § 1.)

SECTION 2. Section 3.4 of Section 3 of Charter Ordinance No. 19 of the City of Wichita, Kansas, is hereby repealed.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official City paper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 2nd day of May, 1989.

ROBERT G. KNIGHT
Mayor

ATTEST: (SEAL)

JOHN MOIR
Director of Finance/City Clerk

Approved as to Form:

THOMAS R. POWELL
Director of Law

CHARTER ORDINANCE NO. 117

(Repealed by Charter Ordinance No. 223.)

CHARTER ORDINANCE NO. 118

(Repealed by Charter Ordinance No. 122)

CHARTER ORDINANCE NO. 119

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, PERTAINING TO THE METHOD OF APPOINTMENT AND SIZE OF APPOINTIVE BOARDS AND COMMISSIONS; EXEMPTING THE CITY OF WICHITA FROM THE PROVISIONS OF K.S.A. 3-163 AND 3-165; PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT RELATING TO AIRPORT AUTHORITIES, AND AMENDING SECTION 3 OF CHARTER ORDINANCE 56; SECTION 4 OF CHARTER ORDINANCE 62; SECTIONS 1, 2, 5, AND 6 OF CHARTER ORDINANCE 106; SECTION 1 OF CHARTER ORDINANCE 110, AND REPEALING THE ORIGINALS OF SAID SECTIONS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Amended and repealed—See Charter Ordinance No. 137, § 1.)

SECTION 2. (Amended and repealed—See Charter Ordinance No. 137, § 2.)

SECTION 3. (Repealed by Charter Ordinance No. 166.)

SECTION 4. Section 1 of Charter Ordinance 106 amending Section 2 of Charter Ordinance 30 of the City of Wichita, Kansas (pertaining to the Wichita Art Museum) is hereby amended to read as follows:

"SECTION 2. The Art Museum Board shall consist of seven members appointed by the City Council of the City of Wichita, and such other ex officio members as shall be designated by ordinance. The official members of the said board shall be designated by the City Council of the City of Wichita. The members of such Art Museum Board shall be appointed and hold their offices for such terms as shall be established by ordinance. Ex officio members of the board shall have a voice, but no vote in the deliberations of the board. Vacancies on the board shall be filled for the unexpired term."

SECTION 5. (Amended and repealed—See Charter Ordinance No. 125.)

SECTION 6. (Repealed by Charter Ordinance No. 185.)

SECTION 7. (Repealed by Charter Ordinance No. 185.)

SECTION 8. Section 6 of Charter Ordinance 106 amending Section 2 of Charter Ordinance 72 of the City of Wichita, Kansas (pertaining to the Library Board) is hereby amended to read as follows:

"SECTION 2. There is hereby authorized a Board to be known as 'The Board of Directors of the City of Wichita Library.' The Board shall consist of fourteen members to be appointed by the City Council for such terms and subject to such limitations of terms as shall be designated by ordinance. All appointments made or to be made hereunder shall be made in accordance with the provisions of Chapter 2.12 of the Code of the City of Wichita, Kansas. Any member chosen to fill a vacancy occurring other than by expiration of term shall be for the unexpired term of the member whom he or she is to succeed."

SECTION 9. Section 1 of Charter Ordinance 110 amending Section 8 of Charter Ordinance 106 of the City of Wichita, Kansas (pertaining to the Convention and Tourism Committee) is hereby amended to read as follows:

"SECTION 12. The 'Convention and Tourism Committee' shall continue as established to advise the City Council concerning the program and expenditures for convention and tourism.

(a) The Committee shall consist of seven members appointed by the City Council. Members of the Committee will be appointed for such terms as shall be adopted by ordinance and will serve until their successors are appointed and qualified for office. Any vacancies in the membership of the Committee will be filled by the appointment of a member, as in the case of the original appointment, for the unexpired term of a member whose office shall be vacant.

(b) The City Council shall ensure that in appointing members to said Committee, that there are members who shall be representatives from the hotel, motel and/or tourist court business.

(c) In appointing members to said Committee, the City Council shall attempt to create a representative balance of large and small businesses and businesses from the various geographic areas of the city.

(d) Any member of said Committee who shall leave the business from which he was appointed shall vacate his position and his successor shall be appointed by the City Council to fill the unexpired term.

(e) Employees of the City of Wichita, Kansas, or for purposes of this ordinance only, members of other boards or commissions of the City may be appointed to said Committee.

(f) The Convention and Tourism Committee shall adopt rules and bylaws in accordance and compliance with the standard bylaws of the City of Wichita, Kansas, which shall become effective when approved by the City Council.

(g) Said Committee shall elect from its members a president and two (2) vice-presidents for a term of one year each. Specific duties and responsibilities of these officers shall be stipulated in the bylaws of the Committee.

(h) Said Committee shall hold regular meetings at a time and place as established in the bylaws adopted by the Committee, all subject to the approval of the City Council as provided in subsection (f) above. All regular meetings shall be open to the public.

(i) The City Manager at the request of the City Council shall make available whatever clerical or secretarial personnel may be required by said Committee.

(j) No member of the Conventional and Tourism Committee shall receive any compensation whatsoever for his or her services.

(k) The governing body of the City of Wichita, Kansas, upon adoption of said transient guest tax, shall have the authority to contract for convention and tourism programs to be implemented.

SECTION 10. The Originals of Section 3 of CHARTER ORDINANCE 56, Section 4 of CHARTER ORDINANCE 62, Sections 1, 2, 5, and 6 of

CHARTER ORDINANCE 106, and Section 1 of CHARTER ORDINANCE 110 of the Code of the City of Wichita, Kansas, are hereby repealed.

SECTION 11. This ordinance shall be published once each week for two consecutive weeks in the official City paper.

SECTION 12. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

ADOPTED at Wichita, Kansas, this 18th day of July, 1989.

BOB KNIGHT
Mayor

ATTEST: (Seal)

JOHN MOIR
Director of Finance/City Clerk

CHARTER ORDINANCE NO. 120

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 121

(Repealed by Charter Ordinance No. 122)

CHARTER ORDINANCE NO. 122

(Repealed by Charter Ordinance No. 224.)

CHARTER ORDINANCE NO. 123

(Repealed by Charter Ordinance No. 131)

CHARTER ORDINANCE NO. 124

(Repealed by Charter Ordinance No. 221)

CHARTER ORDINANCE NO. 125

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, VESTING IN THE BOARD OF PARK COMMISSIONERS CERTAIN SEMIAUTONOMOUS POWERS, AUTHORITY, AND CONTROL AND VESTING IN THE GOVERNING BODY OF THE CITY CERTAIN POWERS, AUTHORITY, AND CONTROL AS SET FORTH; CREATING THE DEPARTMENT OF PARKS AND RECREATION; EXEMPTING THE CITY OF WICHITA FROM THE PROVISIONS OF K.S.A. 13-1347, 13-1348, 13-1351, 13-1352, AND 13-1353; AND REPEALING THE ORIGINALS OF CHARTER ORDINANCE NOS. 45 AND 119, § 5.

WHEREAS, the governing body desires to maintain a Board of Park Commissioners with title to all current park property, to designate certain duties to the Board of Park Commissioners, and to vest in the City of Wichita other authority over parks, parkways and boulevards, recreation, and forestry;

NOW THEREFORE BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS,

SECTION 1. The City of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself and hereby makes inapplicable to it certain provisions of K.S.A. 13-1347, 13-1348, 13-1351, 13-1352, and 13-1353 and 13-1354, which provisions are applicable to this City and not applicable uniformly to all cities, and provide substitute and additional provisions as hereinafter set forth in this ordinance.

SECTION 2. The City of Wichita is hereby declared to be the successor in interest to all power and authority and control heretofore vested in the Board of Park Commissioners, including as the same relates to parks, parkways, boulevards, playgrounds, and shade trees; title to all property, real and personal, owned or held by the Board of Park Commissioners, except as set forth in Section 5; and all debts, contracts, and obligations

lawfully entered into by the Board of Park Commissioners during the period such powers were exercised by such Board.

SECTION 3. In K.S.A. 13-1351, 13-1352, and 13-1353 the term "governing body of the City of Wichita" is substituted whenever the terms "board of park commissioners" "board of park commissioners of any city" "board of park commissioners of any city of the first class" or "board of park commissioners of any city of the first class having a population of more than 80,000" is used. All other provisions of said statutes are retained and remain in force and effect for the City of Wichita. The City of Wichita shall have the authority to carry out said provisions on behalf of the Board of Park Commissioners pertaining to any property that continues to be titled in the name of the Board of Park Commissioners.

SECTION 4. The City of Wichita hereby establishes and continues in effect the Board of Park Commissioners as a board of the City with such appointment, removal, term, officers, and organization as may be set forth by ordinance. The Board of Park Commissioners shall be a semiautonomous board and shall have such powers, authority, and control as are set forth in Section 5 and may hereafter be set forth by ordinance.

SECTION 5. (a) The Board of Park Commissioners shall be vested with and retain title to all parks and park land and facilities currently held or titled in the name of the Board of Park Commissioners. No title or any interest in such property shall be transferred, encumbered, or disposed of except by action of the Board of Park Commissioners. Any land donated to the Board of Park Commissioners for park purposes shall be held by the Board of Park Commissioners and be used exclusively for park purposes; any funds donated to the Board of Park Commissioners for purposes of purchasing park land shall be held by the Board of Park Commissioners and used exclusively for the purchase of park land by the Board of Park Commissioners. All other land acquired by purchase, transfer, donation, eminent domain, or otherwise for park or recreation purposes after the effective date of this charter ordinance shall be held in the name of the City of Wichita. Such

property once acquired shall not be disposed of, encumbered, or transferred without the approval and consent of the Board of Park Commissioners. Property designated permanently for park purposes by the City shall not be converted to other uses or permanently altered without the consent of the Board of Park Commissioners.

(b) The Board of Park Commissioners shall develop and recommend a proposed park and recreation plan and shall submit the plan, together with a summary of hearings thereon, to the governing body of the City. The governing body may either approve the plan or return it with any change or recommendation to the Park Board for proposed amendment or further recommendation. Thereafter, the governing body shall adopt a final plan as recommended by the Park Board or as further amended by the governing body. Any plan may be amended from time to time by the same procedure.

(c) The Board of Park Commissioners shall establish the necessary rules and regulations on behalf of the City for the conduct and control of parks and recreation facilities.

SECTION 6. The City of Wichita shall establish a Department of Park and Recreation with such organization, functions, and duties as may be set forth by ordinance.

SECTION 7. Charter Ordinance Nos. 45 and 119, § 5, are hereby repealed.

SECTION 8. This ordinance shall be published once each week for two consecutive weeks in the official City paper.

SECTION 9. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

SECTION 10. (Added—See Charter Ordinance No. 144)

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 17 day of April, 1990.

BOB KNIGHT
Mayor

ATTEST: (Seal)

JOHN MOIR
Director of Finance/City Clerk

CHARTER ORDINANCE NO. 126

(Repealed by Charter Ordinance No. 173)

CHARTER ORDINANCE NO. 127

(Relating to salaries of city council members, was voted down at a referendum election held February 26, 1991)

CHARTER ORDINANCE NO. 128

(Relating to salary of the vice mayor, was voted down at a referendum election held February 26, 1991)

CHARTER ORDINANCE NO. 129

(Relating to salary of the mayor, was voted down at a referendum election held February 26, 1991)

CHARTER ORDINANCE NO. 130

(Repealed by Charter Ordinance No. 226)

CHARTER ORDINANCE NO. 131

(Amended and repealed by Charter Ordinance No. 193)

CHARTER ORDINANCE NO. 132

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, AMENDING SECTION 15 OF CHARTER ORDINANCE NO. 131 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO INVESTMENTS BY THE POLICE AND FIRE RETIREMENT SYSTEM.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Amended and repealed—See Charter Ordinance No. 165, § 1.)

SECTION 2. The original of Section 15 of Charter Ordinance No. 131 is hereby repealed.

SECTION 3. PUBLICATION. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. PETITION FOR REFERENDUM. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3), of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 14th day of May, 1991.

FRANK M. OJILE
Vice Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

CHARTER ORDINANCE NO. 133

(Amended and repealed—See Charter Ordinance No. 156)

CHARTER ORDINANCE NO. 134

(Repealed by Charter Ordinance No. 192 § 26)

CHARTER ORDINANCE NO. 135

(Repealed by Charter Ordinance No. 223.)

CHARTER ORDINANCE NO. 136

(Repealed by Charter Ordinance No. 172.)

CHARTER ORDINANCE NO. 137

(Repealed by Charter Ordinance No. 178.)

CHARTER ORDINANCE NO. 138

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISIONS OF KANSAS STATUTES ANNOTATED CHAPTER 12, ARTICLE 22 "PARKING STATIONS" AND FROM CHAPTER 13, ARTICLE 13c "MUNICIPAL PARKING AUTHORITY"; PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECTS RELATING TO THE ESTABLISHMENT OF PARKING DISTRICTS WITHIN THE CITY OF WICHITA, KANSAS; PROVIDING FOR THE ISSUANCE OF GENERAL OBLIGATION SPECIAL ASSESSMENT BONDS TO FINANCE THE CONSTRUCTION OF PARKING FACILITIES TO BE LOCATED WITHIN PARKING DISTRICTS; THE AUTHORITY TO PURCHASE OR ACQUIRE BY EMINENT DOMAIN PARKING FACILITIES TO BE LOCATED WITHIN PARKING DISTRICTS; THE AUTHORITY TO OPERATE AND MAINTAIN PARKING FACILITIES WITHIN PARKING DISTRICTS; AND THE AUTHORITY TO LEASE PARKING FACILITIES TO BUSINESSES LOCATED WITHIN A PARKING DISTRICT.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS, AS FOLLOWS:

SECTION 1. Exemption from Kansas Statute Annotated. The City of Wichita, Kansas, a Council-Manager City of the first class, by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from, and makes inapplicable to it the provisions of Kansas Statutes Annotated Chapter 12, Article 22 "Parking Stations" and Chapter 13, Article 13c "Municipal Parking Authority" and amendments thereto, and provides substitute and additional provisions as hereinafter set forth in this charter ordinance. Such referenced provisions are either enactments or a part thereof which are applicable to this city, but are not applicable uniformly to all cities.

SECTION 2. Title of Charter Ordinance. This Charter Ordinance may be referred to as the City of Wichita, Kansas Parking District Ordinance.

CHARTER ORDINANCE NO. 138

SECTION 3. Definitions (Amended—See Charter Ordinance No. 225, § 1). As used in this Charter Ordinance.

(a) "Parking District" means a parking district that may be established by the City Council in accordance with this charter ordinance.

(b) "City" means the City of Wichita, Kansas.

(c) "City Council" means the Governing body of the City of Wichita, Kansas.

(d) "Parking Facilities" means place or facility located within a Parking District that is acquired, constructed, improved, operated and maintained in accordance with this Charter Ordinance and which is used for the parking and storing of motor and other vehicles and shall, without limiting the foregoing, include all real and personal property, sidewalks, and pedestrian access ways, driveways, roads, approaches, structures, terminals of all kinds, garages, meters, mechanical equipment, and all appurtenances and facilities either on, above or under the ground which are usable in connection with such parking or storing of vehicles.

(e) "Parking Station" means individual parking spaces that accommodates one vehicle.

(f) "Costs" means costs incurred for preparation of preliminary reports, the preparation of plans and specifications, the preparation and publication of notices of hearings, resolutions, ordinances and other proceedings, necessary fees and expenses of consultants and interest accrued on borrowed money during the period of construction together with the cost of land, materials, labor and other lawful expenses incurred in planning and doing any improvement and may include a charge of not to exceed five percent (5%) of the total cost of an improvement or the cost of work done by the city for the services rendered by the city in the administration and supervision of such improvement by its general officers and where property and/or improvements already owned by the city and previously financed by the issuance of other city bonds is to become part of a parking facility the costs may include not to exceed the principal amount of such outstanding bonds plus

interest or if such property was not financed by issuance of bonds, the acquisition cost expended by the City in acquiring the property.

(g) "Consultant" means engineers, architects, planners, attorneys, and other persons deemed competent to advise and assist the City Council in the planning and the making of improvements.

SECTION 4. Purpose of the Charter Ordinance (Amended—See Charter Ordinance No. 225, § 2). It is declared to be the purpose of the act to promote and stimulate the development and re-development of buildings and property located within parking districts by providing parking to serve the needs of retail, residential and commercial uses that are located within such districts and that may be stimulated to locate in such areas based on the availability of parking.

SECTION 5. Establishment of a Parking District (Amended—See Charter Ordinance No. 225, § 3).

(a) The City Council may on its own motion, initiate council proceedings to establish or modify a parking district by resolution. Such resolution shall contain the following:

(1) A description of the boundaries of the proposed parking district.

(2) A general description of where such parking facilities are to be located within the parking district and an estimate of the number of parking stations to be located in each parking facility. The location of parking facilities and the number of parking stations may after the district is established, without further hearing, be from time to time be amended to meet the parking needs of the district as they arise.

(3) The time and place of a public hearing to be held by the City Council to consider establishment of the district.

(b) A copy of the resolution shall be mailed to each owner of land within the proposed parking district not less than ten (10) days before the date set for hearing on the establishment or modification of a parking district.

(c) The City Council may after the public hearing establish or modify a parking district by ordinance.

SECTION 6. Acquisition of Property. The City for purposes of establishing parking facilities within parking districts shall have the authority to acquire fee title to real property by gift, purchase, exchange or eminent domain as provided by K.S.A. 26-501 to 26-516 inclusive and amendments thereto.

SECTION 7. Initiation of Improvements; Notice and Hearing; Adoption of Resolution. After a parking district has been established, construction of parking facilities therein may be initiated for a period of up to ten (10) years. This initial period of time may be extended by the City Council. Parking facilities may be initiated by resolution of the governing body or by petition.

(a) Resolution projects shall be initiated by resolution of the City Council that (1) sets a time and place for a hearing; (2) provides an estimate of the probable cost; (3) identifies the location of the proposed parking facility; (4) provides an estimate of parking stations that will be constructed; and (5) sets forth the proposed area that is to be benefited and assessed.

(b) Notice of hearing for resolution initiated projects shall be given by not less than two (2) publications in the official city newspaper. The two (2) publications shall be a week apart and at least three (3) days shall elapse between the last publication and the hearing.

(c) Petitions for parking facilities shall (1) Provide an estimate of the probable cost; (2) provide an estimate of parking stations that will be constructed; (3) identify the location of the proposed parking facility; and (4) set forth the area that is to be benefited and assessed.

(d) Names may not be withdrawn from a petition by the signers thereof after the City Council commences consideration of the petition or later than seven (7) days after such filing, whichever

comes first. The petition shall contain a notice that the names of signers may not be withdrawn after such period of time.

(e) Petitions may be found to be sufficient if signed by either (i) majority of resident owners of record of property liable for the assessment under the proposal, or (ii) the owners of record of more than one-half of the area liable to be assessed under the proposal.

(f) The City Council may upon the filing of a valid petition proceed without notice to hold a hearing on the advisability of constructing the parking facility.

(g) Landowners may submit petitions that are not sufficient under subsection (e) above. If such a petition is submitted the City Council may proceed to initiate the petitioned parking facility as a resolution initiated project. A landowner submitting a petition that is insufficient under subsection (e) shall if the project is initiated by the City Council be bound to proceed with the project and to accept any special assessment made against property owned by the petitioner as if the petitioner had submitted a sufficient petition and the project had been initiated pursuant to a sufficient petition.

SECTION 8. Adoption of Resolution Authorizing Commencement of Construction of a Parking Facility and Commencement of Construction. The City Council may by a majority vote of the members-elect thereof, at any time within six (6) months after the final adjournment of the hearing on the advisability of acquiring and constructing a parking facility within a parking district, adopt a resolution authorizing the construction of the parking facility in accordance with the finding of the City Council upon the advisability of constructing the parking facility in question. After adoption of an authorizing resolution construction of the parking facility may proceed.

SECTION 9. Establishment of a Benefit District, Apportionment of Costs, and Assessment of Costs. (a) The benefit district for parking facilities initiated by petition or by resolution shall consist of property that upon adoption of the authorizing resolution will not be required in part or in whole to provide off-street parking if the use of the property is changed to a use that would otherwise require additional off-street parking.

(b) The costs of constructing a parking facility shall be spread to property in a benefit district on a pro rata basis to each property in the benefit district, in accordance with the number of off-street parking spaces that otherwise would be required, that will be waived due to the existence of the parking facility.

(c) The benefit district for a parking facility shall be established based upon the City Council making a determination as to which property within a parking district will be eligible to obtain a waiver of off-street parking requirements once a resolution authorizing construction of a parking facility is adopted.

(d) The costs of constructing a parking facility shall be assessed one hundred percent (100%) to the benefit district, provided, however, at the option of the City Council, a portion of the cost, to be determined by the City Council, may be paid or financed under authority of and in accordance with requirements set forth at K.S.A. 1990 Supp. 12-1770 et seq. "Redevelopment of Central Business District Areas Act" (Tax Increment Finance Act) or K.S.A. 1990 Supp. 12-1795 et seq. "Self-Supported Municipal Improvement District" and/or amendments thereto.

SECTION 10. Assessment; Notice and Hearing; Levy of Assessment. As soon as the total cost of constructing a parking facility is determined, notice of time, place, and date that the governing body will meet to consider proposed assessments shall be published in the official City newspaper. Thereafter not less than ten (10) days after such publication of the notice the City Council shall hold a hearing on the proposed assessment. Thereafter, at such meeting or any adjournment thereof, the City Council shall pass upon all objections and may amend any assessment upon a finding that the assessment as proposed is improper in some manner. Thereafter, the assessment with accrued interest may be levied as a special tax, and shall be payable in not more than fifteen (15) equal annual installments, as set by the City Council. All assessments shall bear interest at such rate as the governing body determines, not

to exceed the maximum rate of interest prescribed by K.S.A. 10-1009 and amendments thereto. The owner of any property so assessed may at any time prior to a date which shall be fixed by the governing body pay the whole of the assessment against any lot or parcel with interest accrued to the date of payment to the city finance director.

SECTION 11. Supplemental Assessments; Reassessments and New Assessments, When. (a) Upon notice and hearing as provided for in the original assessment, the City Council may make supplemental assessments to correct omissions, errors or mistakes in the assessment relating to the total cost of the improvement.

(b) When an assessment is, for any reason whatsoever, set aside by a court of competent jurisdiction as to any parcel or parcels of land, or in event the City Council finds that the assessment or any part thereof is excessive or determines on advice of counsel in writing, that it is or may be invalid for any reason, the City Council may, upon notice and hearing as provided for the original assessment, make a reassessment or a new assessment as to such parcel or parcels.

SECTION 12. Authority to Issue General Obligation Bonds. (a) Costs payable by special assessment which have been paid in full prior to the date set by the City Council as provided in Section 10 shall be paid from assessments so collected.

(b) The remaining costs payable by special assessment, to be paid by installments shall be paid by the issuance and sale of general obligation special assessment bonds as provided by law.

(c) During the progress of construction of any parking facilities the City Council may issue temporary notes of the City as provided by law to pay cost of construction, and upon completion of the work, bonds of the City shall be issued and sold as provided heretofore.

SECTION 13. Leasing. The City may lease parking facilities located within parking districts to property owners therein for a term of not more than fifteen (15) years. In addition to such other terms as may be negotiated and agreed to;

(a) The lease shall provide that the lessee will offer the parking facilities for the use of the public. Provided, however, parking stations leased for residential uses may be excluded from the open to public requirement.

(b) The rent for such parking shall be an amount that at a minimum equals the expense the City incurs in connection with the operation and maintaining of the parking facility.

SECTION 14. Publication. This Charter Resolution shall be published once each week for two (2) consecutive weeks in the official City newspaper.

SECTION 15. Effective Day of Ordinance. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum to be held on the ordinance as provided in Article II, section 5, subsection (c)(3) of the Constitution of the State of Kansas in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, the 22nd day of October, 1991.

City of Wichita

By BOB KNIGHT
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

CHARTER ORDINANCE NO. 139

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISION OF KANSAS STATUTES ANNOTATED 13-10,136 AS AMENDED AT CHAPTER 64, 1991 SESSION LAWS OF THE STATE OF KANSAS, 13-10, 137, 13-10, 138 AS AMENDED AT CHAPTER 64, 1991 SESSION LAWS OF THE STATE OF KANSAS, AND 3-10,139; PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS OF THE SAME SUBJECTS RELATING TO DELAYING OR ABATING PAYMENT OF SPECIAL ASSESSMENT FOR PUBLIC IMPROVEMENTS SUBJECT TO THE CONDITIONS AND IN THE MANNER PROVIDED FOR HEREIN.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS, AS FOLLOWS:

SECTION 1. Exemption from Kansas Statutes Annotated. The City of Wichita, Kansas, a council-manager city of the first class, by the power vested in it by Article II, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself from, and make inapplicable to it the provisions of Kansas States Annotated 13-10,136 as amended at Chapter 64, 1991 Session Laws of the State of Kansas, 13-10,137, 13-10,138 as amended at Chapter 64, 1991 Session Laws of the State of Kansas, and 13-10,139 and amendments thereto, and provides substitute and additional provisions as hereinafter set forth in this Charter Ordinance. Such reference provisions are either enactments or a part thereof which are applicable to the City, but are not applicable uniformly to all cities.

SECTION 2. Amended and Repealed. ***See Charter Ord. 212.***

SECTION 3. City Clerk Shall Not Certify Delayed Special Assessments; Filing of Notice with Register of Deeds; Certification When Payments Become Due. Special assessments for which payment is delayed under Section 2 hereof shall not be certified to the county clerk by the city clerk at the time the ordinance levying such special assessments is adopted by the City Council. Instead, the city clerk shall, for property which is granted a delay in payment of special assessments under Section 2 hereof, file with the Register of Deeds of Sedgwick County, Kansas, a notice stating that special assessments have been delayed and identifying the property and the general nature of the improvement(s) for which the special assessments were levied. At such time as payment of all or any portion of such special assessments is spread against such property, or any portion thereof, the city clerk shall certify such assessments to the county clerk to be collected in the same manner as other taxes.

SECTION 4. Principal and Interest Payments During Delayed Period; Revenues from Public Improvement Charges; Assessments of Costs Incurred by the City. Whenever the City Council grants a delay in or an abatement of the payment of assessments under the provisions of this ordinance, it shall provide for the payment of the principal and interest of bonds issued for the payment of the costs of such improvement during the period for which such delay has been granted by the levy of a tax upon all the taxable property of the City in the manner provided for the payment of bonds payable by the city at large. The portion of the bonds issued for the payment of the cost of constructing public improvements which are payable by the city at large during the period granted as a delay in the payment of assessments shall be considered bonds payable by the city at large and not bonds the cost of which are repayable from special assessments. Revenues derived from any service charges derived from such improvements may be used to pay the principal and interest thereon. All costs incurred by the city at large by reason of and during the time of the delay in the parent of assessments shall be paid by special assessments against the property against which such costs were originally assessed and the proceeds thereof paid into the general bond and interest fund of the city. In no event shall said amount exceed the original assessment plus prorated interest which would have been charged initially for the installment payment schedule for the special assessment for which the delay was granted.

SECTION 5. PUBLICATION. This charter ordinance shall be published once each week for two (2) consecutive weeks in the official city newspaper.

SECTION 6. EFFECTIVE DATE. This is a charter ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum to be held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than ⅔ of the members elect voting in favor thereof, the 22nd day of October, 1991.

City of Wichita, Kansas

BOB KNIGHT
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

CHARTER ORDINANCE NO. 140

(Repealed by Charter Ordinance No. 226)

CHARTER ORDINANCE NO. 141

(Repealed by Charter Ordinance No. 192 § 26)

CHARTER ORDINANCE NO. 142

(Repealed by Charter Ordinance No. 223.)

CHARTER ORDINANCE NO. 143

A CHARTER ORDINANCE AUTHORIZING THE ISSUANCE OF REVENUE BONDS OR GENERAL OBLIGATION BONDS FOR THE ACQUISITION OF LAND, BUSES, EQUIPMENT, SUPPLIES, MATERIALS, SPARE PARTS, CONTRACTS OR OTHER PROPERTY REASONABLY REQUIRED FOR THE OPERATION OF THE CITY'S PUBLIC TRANSIT SYSTEM OR FOR REFUNDING BONDS PREVIOUSLY ISSUED FOR SUCH PURPOSES; EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 13-3111, 13-3112 AND 13-3113, AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS THEREFOR AND REPEALING CHARTER ORDINANCE NO. 104.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Repeal of Charter Ordinance No. 104. Charter Ordinance No. 104 is hereby repealed.

SECTION 2. Exemption From Certain Statutes. The City of Wichita, Kansas, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 13-3111, 13-3112 and 13-3113 and provide substitute and additional provisions as follows:

SECTION 3. Issuance of Revenue Bonds. The governing body may adopt an ordinance providing for the issuance of revenue bonds without an election or provision for protest, the proceeds of which such City may use to acquire land, buses, equipment, supplies, materials, spare parts, contracts and other property reasonably required for a public transit system or for refunding bonds previously issued for such purposes. All refunding bonds issued under this section shall be issued in the manner prescribed by and subject to the provisions of K.S.A. 10-116a.

Any such revenue bonds issued by the City under this section shall be payable solely and only from a pledge of the net income derived by the City from its public transit system financed with the proceeds of such bonds and other transit facilities not so financed, but the City may also

pledge to levy an ad valorem tax of not to exceed two (2) mills and to employ such tax for so long as any such bonds remain outstanding and unpaid. The City may also provide that contributions, grants, or other financial assistance from the state or federal governments or any other source shall be employed in the operation of the public transit system so long as any such bonds remain outstanding.

All revenue bonds issued by the City pursuant to this section hereof shall be issued as provided in K.S.A. 10-1201 et seq., except to the extent that such statutes are in conflict with this act.

SECTION 4. Issuance of General Obligation Bonds. The governing body may adopt an ordinance providing for the issuance of general obligation bonds without an election or provision for protest, the proceeds of which such City may use to acquire land, buses, equipment, supplies, materials, spare parts, contracts and other property reasonably required for a public transit system or for refunding bonds previously issued for such purposes. All refunding bonds issued under this section shall be issued in the manner prescribed by and subject to the provisions of K.S.A. 10-427 and 10-427a.

Any such general obligation bonds issued by the City under this section may be payable from a pledge of the net income derived by the City from its public transit system financed with the proceeds of such bonds and other transit facilities not so financed, but shall also be general obligations of the City payable from unlimited ad valorem taxes. The City may also provide that contributions, grants, or other financial assistance from the state or federal government or any other source shall be employed in the operation of the public transit system so long as any such bonds remain outstanding.

All general obligation bonds issued by the City pursuant to this section shall be issued as provided in the general bond law (K.S.A. 10-101, et seq.)

SECTION 5. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 6. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum to be held on the ordinance as provided in Article 12, Section 5, Subsection (C)(3) of the Constitution of the State of Kansas, in which case the Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 11th day of February, 1992.

BOB KNIGHT
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

CHARTER ORDINANCE NO. 144

A CHARTER ORDINANCE OF THE CITY OF WICHITA PROVIDING ADDITIONAL PROVISIONS ON THE POWER, AUTHORITY, AND CONTROL OF CERTAIN PROPERTY OWNED BY THE CITY OF WICHITA; PROVIDING RESTRICTIONS ON THE USE OF CERTAIN LAND BETWEEN McLEAN BOULEVARD AND THE ARKANSAS RIVER; AND AMENDING CHARTER ORDINANCE NO. 125 BY THE ADDITION OF SUPPLEMENTAL SECTIONS

WHEREAS, the City of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, has previously by Charter Ordinance No. 125, elected to exempt itself and make inapplicable to it certain provisions of state law, which provisions were applicable to this City and not applicable uniformly to all cities, and provide substitute and additional provisions as set forth therein; and

WHEREAS, the City of Wichita, desires to adopt additional provisions relating to restrictions on the use of property owned by the City by the addition of additional sections to Charter Ordinance No. 125;

NOW THEREFORE BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Charter Ordinance No. 125 of the City of Wichita is hereby amended to add the following section:

"Section 10. (a) All real property subject to this Section and owned by the City of Wichita or the Board of Park Commissioners shall be subject to the restrictions on use established by this Section. Such restrictions shall apply to such property owned on the date of this ordinance and shall continue to apply to the property whether owned by the City, Board of Park Commissioners, or some other person or entity. These restrictions may hereafter be reduced to a less restrictive use or removed from any or all of the property by action of two-thirds of the members elect of the governing body. Any such action to reduce or remove restrictions shall be by resolution of the governing body.

"(b) This Section shall apply to that property located between McLean Boulevard and the Arkansas River and between Central Avenue and Douglas Avenue. The street boundaries shall continue to apply in the event of the relocation of any street.

That portion of the property North of Second Street shall be hereafter restricted to public use, meaning that such property shall be publicly owned and accessible to the public.

That portion of the property South of Second Street shall be hereafter restricted to and maintained as open space, committed to use for the purpose of public recreation and enjoyment.

"(c) The restrictions in this Section shall apply only to the property designated in this Section. Nothing in the restrictions of this Section shall be deemed to cause such property to be otherwise designated for park or recreation purposes under the procedures of Section 5.

SECTION 2. This ordinance shall be published once each week for two consecutive weeks in the official City paper.

SECTION 3. This is a charter ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

Passed by the Governing Body, not less than two-thirds of the members elect voting in favor thereof, this 25th day of February, 1992.

BOB KNIGHT
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

CHARTER ORDINANCE NO. 145

(Repealed by Charter Ordinance No. 147)

CHARTER ORDINANCE NO. 146

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, AMENDING SECTION 20-D OF CHARTER ORDINANCE NO. 131 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO RE-EMPLOYMENT OF RETIREES OF THE POLICE AND FIRE RETIREMENT SYSTEM.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Amended and repealed—See Charter Ordinance No. 184, § 1.)

SECTION 2. The original of Section 20-D of Charter Ordinance No. 131 is hereby repealed.

SECTION 3. PUBLICATION. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. PETITION FOR REFERENDUM. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3), of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 18th day of August 1992.

BOB KNIGHT
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

CHARTER ORDINANCE NO. 147

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISIONS OF THE WATER POLLUTION ACT, K.S.A. 12-3101 THROUGH K.S.A. 12-3107, AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS RELATING TO THE ESTABLISHMENT, OPERATION AND MAINTENANCE OF SEWER SYSTEMS AND TO THE ISSUANCE OF BONDS FOR THE PURPOSE OF PAYING FOR THE GROUNDS AND IMPROVEMENTS NECESSARY FOR THE OPERATION OF SUCH SYSTEMS; AND REPEALING CHARTER ORDINANCE NO. 145 OF THE CITY OF WICHITA.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, by virtue of the powers vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself and hereby makes inapplicable to it Sections 12-3101, 12-3102, 12-3103, 12-3104, 12-3105, 12-3106 and 12-3107, Kansas Statutes Annotated, which apply to said City and the City provides further substitute and additional provisions as set forth herein.

SECTION 2. Definitions. For the purpose of this Charter Ordinance, the words and phrases "Sewer," "Sewer System" or "Sewer Systems" shall mean sanitary and/or storm sewers that exist at the time this Charter Ordinance is adopted or that are hereafter established and all appurtenances necessary in the maintenance and operation of the same, including, but not limited to, pumping stations, sewage treatment plants, main sewers, intercepting sewers, outfall sewers, surface drains, channels, rivers, streams and other flood control facilities and works for the collection, transportation, pumping, treating, and disposing of water carried wastes or storm or surface waters.

SECTION 3. Sewer Systems; powers of municipality. The City of Wichita, Kansas, shall have all the powers necessary or convenient to plan, alter, enlarge, extend, improve, construct, reconstruct, develop, redevelop, operate and maintain a Sewer System or Sewer Systems, including such powers as the City of Wichita may, from time to time, establish by way of ordinances adopted by the governing body of the City and including, but not by way of limitation, the following powers:

(a) To impose service charges on property served by the City's Sewer System or Sewer Systems. The method of calculating and fixing such service charge shall be as established by rules and regulations heretofore or hereafter adopted;

(b) To provide that sewer service charges authorized in subparagraph (a) above shall, when delinquent, be certified by the Clerk of the City to the County Clerk of Sedgwick County to be placed on the tax roll for collection, subject to the same penalties and to be collected in like manner as other taxes, and such charges shall, thereafter, constitute a lien upon the real estate served by the Sewer System or Sewer Systems and against which such charges were made;

(c) To use the proceeds of the sewer service charges authorized in subparagraph (a) above to plan, alter, enlarge, extend, improve, construct, reconstruct, develop, redevelop, operate and maintain a Sewer System or Sewer Systems;

(d) To issue general obligation bonds or revenue bonds, as authorized by law, and to use the proceeds of the same to plan, alter, enlarge, extend, improve, construct, develop and redevelop a Sewer System or Sewer Systems;

(e) To use the proceeds of the sewer service charges authorized in subparagraph (a) above to pay the principal and interest on bonds heretofore or hereafter issued for the planning, altering, enlarging, extending, improving, constructing, reconstructing, developing, redeveloping, operating and maintaining of a Sewer System or Sewer Systems.

(f) To contract with agencies of the federal government, public bodies of this state or other states, or with any private person or body for jointly planning, altering, enlarging, extending, improving, constructing, reconstructing, developing, redeveloping, operating and maintaining a Sewer System or Sewer Systems;

(g) To contract with agencies of the federal government, public bodies of this state or other

states or with any private person or body for receiving and treating sewage or stormwater from outside of the city limits of the City;

(h) To plan, alter, enlarge, extend, improve, construct, reconstruct, develop, redevelop, operate and maintain a Sewer System or Sewer Systems outside the city limits of the City and to have the right of eminent domain outside the city limits of the City in order to acquire land and right of way for a Sewer System or Sewer Systems;

(i) To borrow money and to apply for and accept advances, loans, grants, contributions or any other form of financial assistance from the federal government, the state, county or any other public body for the purposes of this act, and the City may, when contracting with the federal government for any such financial assistance, include in any such contract such conditions imposed pursuant to federal law as the City may deem reasonable and appropriate;

(j) To, under authority granted herein, establish a sanitary Sewer System utility, a storm Sewer System utility, and to combine its sanitary Sewer System utility and storm Sewer System utility and its water utility into one or more utilities; and

(k) To establish a unified and consolidated billing system for its sanitary Sewer System utility, its storm Sewer System utility and its water utility, whether or not the same are combined as provided for in subparagraph (j) above.

SECTION 4. Same; rules and regulations authorized; billing and collection of sewer service charges; discontinuance of water service, when. The City of Wichita, Kansas, shall have the power by ordinance or resolution to adopt rules and regulations that shall include, but not be limited to, providing for the management and operation of its Sewer System or Sewer Systems, prohibiting the discharge into such Sewer System or Sewer Systems of matter deleterious to the proper operation of the Sewer System or Sewer Systems and the general health, safety and welfare of the community, establishing the types and characteristics of sewage and stormwater that may be discharged into the Sewer System or Sewer Systems, establishing the method for calculating and fixing the service charge for property served by the City's Sewer System or Sewer Systems, requiring security for the payment thereof, and providing methods and rules of collection, and providing for the disposition of the revenue therefrom. In the event any person, firm, corporation, political unit or organization living or operating on property served by the City's Sewer System or Sewer Systems shall neglect, fail or refuse to pay the service charges fixed by the governing body of the City, the City may, as authorized by rules and regulations adopted under the authority of this section and if a unified and consolidated billing system has been established, refuse the delivery of water through the pipes and mains of its publicly owned waterworks until such time as such charges are fully paid.

SECTION 5. Issuance of Sewer System revenue bonds; requirements. (a) The City of Wichita, Kansas, shall have the power to issue revenue bonds from time to time in its discretion to finance the planning, altering, enlarging, extending, improving, constructing, and reconstructing of a Sewer System or Sewer Systems under this act. Such bonds shall be made payable, as to both principal and interest, solely from the income, proceeds, revenues, and funds of the City derived from or held in connection with its Sewer System or Sewer Systems: Provided, however, that payment of such bonds, both as to principal and interest, may be further secured by a pledge of any loan, grant or contribution from the federal government.

(b) Bonds issued under this section shall not constitute an indebtedness within the meaning of any constitutional or statutory debt limitation or restriction, and shall not be subject to the provisions of any other law relating to the authorization, issuance or sale of bonds. Bonds issued under the provisions of this Charter Ordinance are declared to be issued for an essential public and governmental purpose and, together with interest thereon and income therefrom, shall be exempted from all taxes.

(c) Bonds issued under this section shall be authorized by ordinance or resolution of the governing body and may be issued in one or more

series and shall bear such date or dates, be payable on demand or mature at such time or times, bear interest at such rate or rates, not exceeding the maximum rate of interest prescribed by K.S.A. 10-1009, be in such denomination or denominations, be in such form, have such rank or priority, be executed in such manner, and be subject to such terms of redemption (with or without premium), be secured in such manner, and have such other characteristics as may be provided by such ordinance or resolution issued pursuant thereto.

SECTION 6. Same; powers supplemental and additional. The powers herein granted to plan, alter, enlarge, extend, improve, construct, reconstruct, develop, redevelop, operate and maintain a Sewer System or Sewer Systems and to issue bonds shall be supplemental to and not amendatory of the provisions of all other laws and shall not be construed to limit the City's authority under the provisions of any other laws.

SECTION 7. Charter Ordinance No. 145 of the City of Wichita is hereby repealed.

SECTION 8. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 9. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed requiring a referendum to be held on this ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED by the governing body, not less than two-thirds of the members elect voting in favor thereof, the 22nd day of December, 1992.

FRANK OJILE
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

CHARTER ORDINANCE NO. 148

(Repealed by Charter Ordinance No. 226)

CHARTER ORDINANCE NO. 149

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 12-1761, AND PROVIDING FOR SUBSTITUTE PROVISIONS ON THE SAME SUBJECT RELATING TO PUBLIC BUILDING COMMISSIONS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas (the "City") pursuant to Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 12-1761, and provide substitute provisions as hereinafter set forth in this Charter Ordinance. Such statute is applicable to the City, but is not uniformly applicable to all cities.

SECTION 2. (Amended and repealed—See Charter Ordinance No. 162, § 5.)

SECTION 3. This Charter Ordinance shall be published once a week for two consecutive weeks in *The Daily Reporter,* the official newspaper of the City, and shall take effect 61 days after final publication, unless a sufficient petition is filed and a referendum held on the Charter Ordinance, as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case the Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED AND APPROVED by the Governing Body of the City of Wichita, Kansas, not less than two-thirds of the members elect voting in favor thereof, this 5th day of January, 1993.

FRANK M. OJILE
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

Approved as to Form:

GARY E. REBENSTORF
City Attorney

CHARTER ORDINANCE NO. 150

A CHARTER ORDINANCE AMENDING SECTION 16 OF CHARTER ORDINANCE NO. 131 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO EXEMPTIONS UNDER THE POLICE AND FIRE RETIREMENT SYSTEM AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Amended and repealed—See Charter Ordinance No. 155)

SECTION 2. The original of Section 16 of Charter Ordinance No. 131 of the City of Wichita, Kansas is hereby repealed.

SECTION 3. This ordinance shall be published once a week for two consecutive weeks in the official city paper.

SECTION 4. This is a Charter Ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subsection (C)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective is approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 9th day of March, 1993.

FRANK M. OJILE
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

Approved as to Form:

GARY E. REBENSTORF
Director of Law

CHARTER ORDINANCE NO. 151

(Repealed by Charter Ordinance No. 228)

CHARTER ORDINANCE NO. 152

(Repealed by Charter Ordinance No. 223)

CHARTER ORDINANCE NO. 153

A CHARTER ORDINANCE AMENDING SECTION 4 OF CHARTER ORDINANCE NO. 105 PERTAINING TO REFUNDING OF LICENSE FEES FOR ALCOHOLIC LIQUOR AND CEREAL MALT BEVERAGES AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1: Section 4 of Charter Ordinance No. 105 shall be amended to read as follows:

"No refund shall be made of any portion of a license fee paid for any period during which the licensee was prevented from operating."

SECTION 2: The original of Section 4 of Charter Ordinance No. 105 is hereby repealed.

SECTION 3: Publication. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 4: This is a charter ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum to be held on the ordinance as provided in Article 12, Section 5, subsection (c)(3) of the Constitution of the State of Kansas in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 24th day of August, 1993.

Elma Broadfoot
Mayor

Attest:

Patricia L. Burnett
Deputy City Clerk

Approved as to Form:

Gary E. Rebenstorf
Director of Law

CHARTER ORDINANCE NO. 154

A CHARTER ORDINANCE CREATING SECTIONS 26 AND 27 OF THE POLICE AND FIRE RETIREMENT SYSTEM OF THE CITY OF WICHITA PERTAINING TO MAXIMUM BENEFITS AND DISTRIBUTION OF BENEFITS.

WHEREAS, the City of Wichita has created by Charter Ordinance a retirement system for commissioned officers of the Wichita Police Department and the Wichita Fire Department; and

WHEREAS, the Police and Fire Retirement System has become a qualified retirement plan under the Internal Revenue Code; and

WHEREAS, to comply with the requirements of the Internal Revenue Code it is necessary to add certain provisions to the retirement system.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Section 26 of the retirement system created by Charter Ordinance No. 131 of the City of Wichita, Kansas, shall read as follows:

Maximum Benefits. Benefits paid under this system shall not exceed the limitations of Internal Revenue Code Section 415, the provisions of which are incorporated by reference.

SECTION 2. (Amended and repealed—See Charter Ordinance No. 161, § 3.)

SECTION 3. This ordinance shall be published once each week for two (2) consecutive weeks in the official city newspaper.

SECTION 4. This is a Charter Ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 16th day of November, 1993.

ELMA BROADFOOT
Mayor

ATTEST:

PAT BURNETT
Deputy City Clerk

Approved as to Form:

GARY E. REBENSTORF
Director of Law

CHARTER ORDINANCE NO. 155

A CHARTER ORDINANCE AMENDING SECTION 1 OF CHARTER ORDINANCE NO. 150 WHICH AMENDED SECTION 16 OF CHARTER ORDINANCE NO. 131 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO EXEMPTIONS UNDER THE POLICE AND FIRE RETIREMENT SYSTEM AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1: (Amended and repealed—See Charter Ordinance No. 180, § 6.)

SECTION 2. The original of Section 1 of Charter Ordinance No. 150 of the City of Wichita, Kansas, is hereby repealed.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY not less than two-thirds of the members elect voting in favor thereof, this 8th day of November, 1994.

ELMA BROADFOOT
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

Approved as to Form:

GARY E. REBENSTORF
Director of Law

CHARTER ORDINANCE NO. 156

A CHARTER ORDINANCE AMENDING AND REPEALING CHARTER ORDINANCE NO. 133, OF THE CITY OF WICHITA, KANSAS: PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT RELATING TO EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISIONS OF SECTION 13-1024C, KANSAS STATUTES ANNOTATED THAT RELATES TO ISSUANCE OF GENERAL OBLIGATION BONDS TO PAY FOR PUBLIC IMPROVEMENTS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The governing body of the City of Wichita, Kansas by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to and exempts itself from, and makes inapplicable to it the provisions of K.S.A. 13-1024C and amendments thereto, and provides substitute and additional provisions as hereinafter set forth in this Charter Ordinance. K.S.A. 13-1024C contains provisions which are applicable to this City, but are not applicable uniformly to all cities.

SECTION 2. The City of Wichita, Kansas is hereby authorized to issue General Obligation Bonds of the City without an election for the purpose of paying for the construction, purchase or improvement of any public improvement, including the land necessary therefore, and for the purpose of rebuilding, adding to or extending the same as the necessities of the City may require and for the purpose of paying for mobile radio equipment, library, book mobiles and equipment therefore. Such bonds shall be issued, registered, sold, delivered and retired in accordance with the provisions of the general bond law. The provisions of this Charter Ordinance are supplemental to all other state statutes, charter ordinances and ordinances relating to such improvements and, subject to limitations hereof, shall not be construed to prevent the City from using other available state statutes, charter ordinances and ordinances. For purposes of this charter ordinance, the term "public improvement" shall mean any improvement, including the land necessary thereto, that when constructed, purchased, improved, rebuilt, extended or added to, will serve a public purpose, specifically including along with all other public improvements the construction, purchase, including the land necessary thereto, improvement, rebuilding, extending or adding to convention facilities, including a hotel with meeting rooms that supplement existing convention facilities that are connected to or are located adjacent to such existing convention facilities, which hotel and meeting rooms will be owned by the City of Wichita, Kansas or owned in part by the City of Wichita, Kansas and in part by a private developer or other governmental agency, when it is found by the governing body that the convention hotel and/or meeting room project being considered will serve a public purpose.

SECTION 3. Nothing herein contained shall be construed in a manner that would exempt the City of Wichita, Kansas in the issuance of bonds pursuant to the authority contained herein from the bonded and debt limitation set forth in K.S.A. 10-306 through 10-311.

SECTION 4. Charter Ordinance No. 133 is hereby repealed.

SECTION 5. This Charter Ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 6. This is a Charter Ordinance and will take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this ordinance as provided in Article 12, Section 5, Subdivision (c) of the Constitution of Kansas, in which case this Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE CITY COUNCIL, not less than two-thirds of the members elect voting in favor thereof, the 21st day of February, 1995.

ELMA BROADFOOT
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

Approved as to Form:

GARY E. REBENSTORF
City Attorney

CHARTER ORDINANCE NO. 157

(Never adopted by Council.)

CHARTER ORDINANCE NO. 158

(Repealed by Charter Ordinance No. 228)

CHARTER ORDINANCE NO. 159

(Repealed by Charter Ordinance No. 241)

CHARTER ORDINANCE NO. 160

A CHARTER ORDINANCE AMENDING SECTION 11 OF CHARTER ORDINANCE NO. 131 WHICH AMENDED SECTION 11 OF CHARTER ORDINANCE NO. 19 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO ACCOUNTING, RESERVES, AND ACTUARIAL STUDIES OF THE POLICE AND FIRE RETIREMENT SYSTEM, AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1: (Amended and repealed—See Charter Ordinance No. 180, § 4.)

SECTION 2. The original of Section 11 of Charter Ordinance No. 131 amending Section 11 of Charter Ordinance No. 19 of the City of Wichita, Kansas, is hereby repealed.

SECTION 3. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the Ordinance as provided in Article 12, Section 5, subdivision (c)(3), of the Constitution of Kansas, in which case the Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 19th day of December, 1995.

BOB KNIGHT,
Mayor

ATTEST:

PATRICIA L. BURNETT
Deputy City Clerk

Approved as to Form:

GARY E. REBENSTORF
Director of Law

CHARTER ORDINANCE NO. 161

(Amended and repealed by Charter Ordinance No. 193)

CHARTER ORDINANCE NO. 162

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISIONS OF K.S.A. 12-1759, 12-1760, 12-1762, 12-1763 (1995 SUPP.) AND 12-1767, PROVIDING FOR SUBSTITUTE PROVISIONS ON THE SAME SUBJECT RELATING TO THE PUBLIC BUILDING COMMISSION AND AMENDING AND SUPPLEMENTING CHARTER ORDINANCES NO. 107 AND 149.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. ELECTION TO EXEMPT FROM CERTAIN STATUTES AND AMENDING AND SUPPLEMENTING CERTAIN CHARTER ORDINANCES. The City of Wichita, Kansas (the "City") pursuant to Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 12-1759, 12-1760, 12-1762, 12-1763 (1995 Supp.) and 12-1767, and to provide such substitute provisions as hereinafter set forth in this Charter Ordinance. Such statutes are applicable to the City, and are part of an enactment which is not uniformly applicable to all cities. In addition, the City hereby as set forth herein amends and supplements Charter Ordinances No. 107 and 149.

SECTION 2. AMENDMENT OF SECTION 2 OF CHARTER ORDINANCE NO. 107 PERTAINING TO THE CREATION OF A PUBLIC BUILDING COMMISSION, ACQUISITION OF EQUIPMENT, SITES, FACILITIES AND EQUIPMENT AND PLEDGE OF REVENUE. Section 2 of Charter Ordinance No. 107 shall be amended and supplemented to read as follows:

(a) The City, by ordinance, may create a public building commission (the "Commission") for the purpose of acquiring a site or sites for constructing, reconstructing, equipping and furnishing a building or buildings or other facilities of a revenue producing character, including parking facilities, and in addition for the purpose of acquiring and installing equipment of a revenue producing character. Such building or buildings, facilities or equipment shall be maintained and operated for the affairs of any federal, state, city, school district, Sedgwick County, Kansas, municipal corporation, quasi-municipal corporation, political subdivision or body politic, or agency thereof, (hereafter jointly referred to as "Governmental Agencies") doing business, maintaining an office or rendering a public service within Sedgwick County, Kansas.

(b) The Commission may acquire land and facilities located within Sedgwick County that are adjacent to or near any educational institution under the supervision and control of the state board of regents or may acquire by lease, land and facilities located within Sedgwick County that constitute a part of the campus of any such institution. The Commission may construct, reconstruct, equip and furnish such facilities on such land and lease such land and facilities to the official governing body of such institution. Any such lease entered into shall pledge the net revenue from such land and facilities. The City also may pledge such funds as may be necessary from those which are provided to be paid over to the board of trustees from the annual tax levy as provided by K.S.A. 76-3a07, and amendments thereto. Sedgwick County also may pledge such funds as may be necessary from those which are provided to be paid over to such institution from a special levy authorized for such purpose under K.S.A. 19-117, and amendments thereto. The governing body of the City or Sedgwick County may designate any surplus from such tax levy as may be necessary to guarantee the rentals under any such lease, and the City or Sedgwick County is hereby exempted from the provisions of K.S.A. 10-1101 to 10-1122, inclusive, and 79-2925, and amendments thereto, to the extent necessary to enable the City or Sedgwick County to make covenant to effect such guarantee.

SECTION 3. ORDINANCE SPECIFICATIONS. The ordinance that creates the Commission shall specify the functions of the Commission and shall specify the number of members for the governing body of the Commission, which shall not be fewer than three nor more than nine, except where the Commission will provide for leasing of equipment or the leasing of a building or buildings and/or facilities to a city, Sedgwick County, a school district, state university or state agency, in which case the governing body of such

city, Sedgwick County, school district, state university or the secretary of administration that leases equipment, building, buildings or facilities from the Commission shall each be entitled to appoint one member on the Commission.

SECTION 4. POWERS OF THE COMMISSION. The Commission shall have the power to do all things necessary or incidental to the purpose of constructing or acquiring or enlarging, furnishing and equipping buildings and facilities and operating and maintaining such to be made available for use by governmental agencies and for the purpose of acquiring and installing equipment and operating and maintaining such equipment to be made available for use by governmental agencies.

SECTION 5. AMENDMENT OF SECTION 2 OF CHARTER ORDINANCE NO. 149 PERTAINING TO THE ISSUANCE OF REVENUE BONDS, REFUNDING BONDS AND LIMITATION AS TO DEBT. Section 2 of Charter Ordinance No. 149 shall be amended and supplemented to read as follows:

After the negotiation of a lease or leases with one or more public bodies for the use of public buildings or equipment proposed to be acquired or constructed under the authority of K.S.A. 12-1757 to 12-1768, inclusive, as amended and supplemented, and Charter Ordinances No. 107 and 149 of the City (collectively the "Act"), the Public Building Commission may issue revenue bonds of the Commission to provide funds for the purpose of acquiring, erecting, equipping, repairing, maintaining and operating buildings and other facilities, to acquire sites necessary and convenient therefore, and to acquire and install equipment and to pay all costs and expenses incident thereto, or to refund its outstanding bonds through the issuance of refunding bonds in the manner prescribed by and, except as otherwise provided in the Act, subject to the provisions of K.S.A. 10-116a. Except as otherwise provided by K.S.A. 10-116a, such revenue bonds shall be payable solely from the rents and revenues to be derived from the operation, management or use of the buildings, other facilities or equipment acquired by the commission; provided that, nothing herein shall prevent the Commission from pledging its interest in any such building or other facilities or equipment acquired by the Commission to the payment of such revenue bonds issued pursuant to the Act and this Charter Ordinance. The Public Building Commission shall have no power to levy taxes, and bonds issued by the Commission shall not constitute a debt of the Commission within the meaning of any statutory or constitutional limitation as to debt.

SECTION 6. FIXING OF RATES AND CHARGES. The Commission shall be authorized to establish and fix rates, rentals, fees and charges, for the use of any and all buildings or space therein or other facilities owned and operated by the Commission and for the use of any equipment owned, maintained and operated by the Commission sufficient at all times to pay maintenance and operational costs of such buildings facilities or equipment and the principal of and the interest on the bonds issued by the Commission as the same shall become due and payable and to make all payments to any accounts created by any bond resolution.

SECTION 7. RENTAL OF BUILDING SPACE, OTHER FACILITIES AND EQUIPMENT. The Commission shall have the authority to rent all or any part of its buildings, facilities and/or equipment to any Governmental Agencies including state universities doing business, maintaining an office or rendering a public service in Sedgwick County, Kansas and to rent any space as may not be needed by such Governmental Agencies for such buildings, or other facilities as the Commission may determine will primarily serve the comfort and convenience of the occupants of its buildings or other facilities.

SECTION 8. REVENUE BONDS ISSUANCE PROTEST AND ELECTION.

(a) Before any revenue bonds are authorized or issued under the provisions of this Charter Ordinance and the Act, the Commission shall adopt a resolution specifying the amount of such bonds and the purpose of the issuance thereof. Such resolution shall be published in the official City newspaper.

(b) The resolution shall provide that if within 30 days after the last date of publication of the

resolution a petition in opposition to the resolution, signed by not less than 5% of the electors of the City or by not less than 5% of the electors of Sedgwick County or school district if the lease is to be with such entities, is filed with the Sedgwick County Election Officer, the Board of County Commissioners of Sedgwick County shall submit the question to the voters at an election called for that purpose or at the next agreed election. Such resolution shall be published once a week for two consecutive weeks in the official City newspaper.

(c) No construction shall be let or approved and no equipment shall be purchased by the Commission until after the expiration of the protest period provided under this section.

SECTION 9. INVALIDITY OF PART. If any part or application of this Charter Ordinance is held invalid, the remainder of this Charter Ordinance or its application to other situations or persons shall not be affected.

SECTION 10. REPEALING SECTION 2 OF CHARTER ORDINANCES NO. 107 AND 149. Section 2 of Charter Ordinances No. 107 and No. 149 as the same previously existed are hereby repealed.

SECTION 11. PUBLICATION AND ELECTION. This Charter Ordinance shall be published once a week for two consecutive weeks in the official City newspaper and shall take effect sixty-one days after final publication, unless a sufficient petition is filed and a referendum held on this Charter Ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case this Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED AND APPROVED by the governing body, not less than two-thirds of the members elect voting in favor thereof this 30th day of April, 1996.

CITY OF WICHITA, KANSAS

BOB KNIGHT,
Mayor

ATTEST:

PAT BURNETT
City Clerk

CHARTER ORDINANCE NO. 163

(Repealed by Charter Ordinance No. 224.)

CHARTER ORDINANCE NO. 164

(Repealed by Charter Ordinance No. 224.)

CHARTER ORDINANCE NO. 165

A CHARTER ORDINANCE AMENDING SECTION 1 OF CHARTER ORDINANCE NO. 132 WHICH AMENDED SECTION 15 OF CHARTER ORDINANCE NO. 131 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO INVESTMENTS BY THE POLICE AND FIRE RETIREMENT SYSTEM AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1: Section 1 of Charter Ordinance No. 132 which amended Section 15 of Charter Ordinance No. 131 of the City of Wichita, Kansas, is hereby amended to read as follows:

(Amended and repealed—See Charter Ordinance No. 176, § 3.)

SECTION 2. The original of Section 1 of Charter Ordinance No. 132 of the City of Wichita, Kansas, is hereby repealed.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY not less than two-thirds of the members elect voting in favor thereof, this 25th day of March, 1997.

Bob Knight
Mayor

Attest:

Pat Burnett
City Clerk

Approved as to Form:

Gary E. Rebenstorf
Director of Law

CHARTER ORDINANCE NO. 166

A CHARTER ORDINANCE REPEALING CHARTER ORDINANCES NOS. 56, 65, 70, 82, SECTION 3 OF CHARTER ORDINANCE NO. 106, AND SECTION 3 OF CHARTER ORDINANCE NO. 119 ALL PERTAINING TO THE WICHITA METROPOLITAN TRANSIT AUTHORITY.

WHEREAS, under the authority of Article 12, Section 5, of the Constitution of the State of Kansas the City of Wichita, Kansas, has previously exempted itself from the provisions of K.S.A. 13-3103, 13-3104 and 13-3106 which pertain to the operation of transit systems by cities of the first class; and

WHEREAS, the City of Wichita has previously operated such a transit system by a transit authority created by charter ordinance; and

WHEREAS, the City of Wichita now wishes to assume operation of the transit system directly as a part of its municipal operations as provided for in K.S.A. 13-3101 through 13-3116 and Article 12, Section 5, of the Constitution of the State of Kansas.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The originals of Charter Ordinances Nos. 56, 65, 70, 82, Section 3 of Charter Ordinance No. 106, and Section 3 of Charter Ordinance No. 119 are hereby repealed.

SECTION 2. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 3. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum is filed requiring a referendum to held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of electors voting thereon.

PASSED AND APPROVED by the governing body, not less than two-thirds of the members voting in favor thereof, this April 1, 1997.

Bob Knight
Mayor

Attest:

Pat Burnett
City Clerk

Approved as to Form:

Gary E. Rebenstorf
Director of Law

CHARTER ORDINANCE NO. 167

(Repealed by Charter Ordinance No. 224.)

CHARTER ORDINANCE NO. 168

(Repealed by Charter Ordinance No. 224.)

CHARTER ORDINANCE NO. 169

(Repealed by Charter Ordinance No. 178.)

CHARTER ORDINANCE NO. 170

(Repealed by Charter Ordinance No. 224.)

CHARTER ORDINANCE NO. 171

A CHARTER ORDINANCE OF THE CITY OF WICHITA AMENDING SECTION 1 OF THE CHARTER ORDINANCE NO. 142 PERTAINING TO THE APPOINTMENT OF MUNICIPAL COURT JUDGES; AND REPEALING THE ORIGINAL OF SAID SECTION

BE IT SO ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Amended and repealed—See Charter Ordinance No. 186, § 1.)

SECTION 2. The original of Section 1 of Charter Ordinance No. 142 is hereby repealed.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

Passed by the Governing Body, not less than two-thirds of the members elect voting in favor thereof, this November 18, 1997.

_____
Bob Knight, Mayor

ATTEST:

_____
Pat Burnett, City Clerk

Approved as to form:

_____
Gary E. Rebenstorf, Director of Law and City Attorney

CHARTER ORDINANCE NO. 172

(Board of Health—Not effective.)

CHARTER ORDINANCE NO. 173

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, PERTAINING TO THE REVISION OF COUNCIL DISTRICT BOUNDARIES; AMENDING SECTION 1 OF CHARTER ORDINANCE NO. 126 AND SECTION 9 OF CHARTER ORDINANCE NO. 112; REPEALING THE ORIGINALS OF CHARTER ORDINANCE NO. 126 AND SECTION 9 OF CHARTER ORDINANCE NO. 112.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Section 8 of Charter Ordinance No. 112 as amended by Section 1 of Charter Ordinance No. 126 is hereby amended to read as follows:

"SECTION 8. Revision of Boundary Lines. Commencing in July of 1990, in July of 1992, in July of 2002, and in July of every tenth year thereafter, the Council shall appoint a commission of the electors of the City who shall examine the plan of districts and shall, by September 30 of each such year, recommend to the Council such revisions in the boundary lines of the districts so as to meet the requirements stated below in Section 9. On or prior to December 31 of each such year, the Council by ordinary ordinance shall re-establish the district boundaries as recommended by the commission of electors or shall reject, in whole or in part the recommendations of the commission of electors and reestablish the boundaries as it sees fit so as to meet the requirements stated below in Section 9. The Council shall certify the boundaries so re-established to the Election Commissioner of Sedgwick County. The commission appointed to recommend revisions to district lines shall have at least one elector from each district.

Any territory hereafter annexed to or consolidated with the City of Wichita, Kansas, shall at the time of such annexation or consolidation be added to an adjacent district or districts by an ordinary ordinance of the Council; provided that if any territory annexed or consolidated prior to June 1 of the year preceding a City election shall contain qualified voters sufficient in number to upset the approximate equality of the established districts by a deviation of ten percent (10%) or more, the Council shall provide for redistricting the City in accord with the procedures described in this section.

In the event that the revision of district boundaries shall result in an incumbent Council member residing outside that member's district, such Council member shall continue to be qualified to serve until the completion of the term for which elected. Further, if a Council member moves out of the district from which elected within four (4) months of the end of the members term, such member shall continue to be qualified to complete the term for which elected."

SECTION 2. Section 9 of Charter Ordinance No. 112 is hereby amended to read as follows:

"SECTION 9. Requirements for Re-establishing District Boundary Lines. The boundary lines for the six (6) Council districts shall be re-established by the commission of electors and Council so as to:

1. Contain within each district a population which to the greatest extent feasible is equal to one-sixth (1/6) of the total population of the City, but which under no circumstances shall be greater or less than one-sixth (1/6) of the total population of the City by more than five percent (5%), based on the U.S. decennial census or upon the most current population data then available.

2. Maintain a reasonably compact area in each district and avoid any noncontiguous zones or any unusually exaggerated extension of district lines.

3. Follow election precinct lines as established by the Sedgwick County Election Commissioner and be described in terms of the wards and precincts contained in each district.

4. Avoid use of number of registered voters by party or other partisan data.

5. Maintain, as much as possible, the integrity of broadly cohesive areas of interest."

SECTION 3. Repeal. The originals of Charter Ordinance No. 126 and Section 9 of Charter Ordinance No. 112 of the City of Wichita, Kansas, are hereby repealed.

SECTION 4. Publication. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 5. This is a Charter Ordinance and will take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this ordinance as provided in Article 12, Section 5, of the Constitution of the State of Kansas, in which case this Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED by the governing body, not less than two-thirds of the members elect voting in favor thereof, this October 20, 1998.

Bob Knight, Mayor

ATTEST:

Pat Burnett, City Clerk

Approved as to form:

Gary E. Rebenstorf, Director of Law

CHARTER ORDINANCE NO. 174

(Repealed by Charter Ordinance No. 221)

CHARTER ORDINANCE NO. 175

(Repealed by Charter Ordinance No. 224)

CHARTER ORDINANCE NO. 176

(Amended and repealed by Charter Ordinance 193)

CHARTER ORDINANCE NO. 177

(Repealed and Amended by Charter Ordinance No. 203)

CHARTER ORDINANCE NO. 178

A CHARTER ORDINANCE OF THE CITY OF WICHITA PERTAINING TO THE MEMBERSHIP AND GOVERNANCE OF THE WICHITA AIRPORT AUTHORITY; EXEMPTING THE CITY OF WICHITA FROM PROVISIONS OF K.S.A. 3-163, 3-164, AND 3-165; AND REPEALING CHARTER ORDINANCE NOS. 137 AND 169.

WHEREAS, the City of Wichita has created and established the Wichita Airport Authority pursuant to the provisions of K.S.A. 3-162, *et seq.,* and thereafter exempted itself from certain provisions of said statutes by Charter Ordinance No. 119, as amended by Charter Ordinance No. 137, and by Charter Ordinance No. 169; and

WHEREAS, the City of Wichita chooses to further exempt itself from certain provisions of said statutes in order to provide changes to the composition and membership of the Wichita Airport Authority, to establish the members of the governing body of the City of Wichita as the members of the Authority, and to grant to such members all powers and authority to govern the Wichita Airport Authority and to exercise all power, rights, and control of the Wichita Airport Authority; and

WHEREAS, the City of Wichita intends that the Wichita Airport Authority shall continue as a body corporate and politic and that nothing by this action is intended to affect any legal rights, responsibilities, obligations, or title to property now or hereafter held in the name of the Wichita Airport Authority;

NOW THEREFORE BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 3-163, 3-164, and 3-165, and to provide substitute and additional provisions as hereinafter set forth in this ordinance. Such referenced provisions are either enactments or a part thereof which are applicable to this city and not applicable uniformly to all cities.

SECTION 2. (a) The governing body of the City of Wichita is hereby established as the governing body of the Wichita Airport Authority and the members of the governing body of the City of Wichita are hereby established as the members of the Wichita Airport Authority. Such members shall continue to exercise all power, authority and control heretofore vested in the Wichita Airport Authority.

(b) The governing body of the City of Wichita acting as the governing body and members of the Wichita Airport Authority shall have such composition, qualifications, officers, terms of office, quorum, and procedures for the transaction of business as is now or hereafter established by law and ordinance for the governing body of the City of Wichita. Provided, that when State law or Charter Ordinance requires the Wichita Airport Authority to act in a different manner or under different procedures than is required for the governing body of the City of Wichita, such different procedures shall control for actions of the Wichita Airport Authority.

SECTION 3. The City of Wichita shall maintain such offices, employees, and safety force on behalf of the Wichita Airport Authority as is deemed appropriate for the orderly transaction and management of the business of the municipal airports.

SECTION 4. The City of Wichita is hereby authorized to establish an airport advisory board with such composition, powers, and duties as may hereafter be set forth by ordinance.

SECTION 5. Nothing in this Charter Ordinance shall be deemed to affect the continued existence of the Wichita Airport Authority as a body corporate and politic pursuant to K.S.A. 3-162, with all powers, authority, and control heretofore vested in such Wichita Airport Authority so far as the same relates to the municipal airports and the operation thereof.

SECTION 6. Charter Ordinance Nos. 137 and 169 are hereby repealed.

SECTION 4. This Charter Ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 5. This is a Charter Ordinance and will take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this ordinance as provided in Article 12, Section 5, Subdivision (c) of the Constitution of Kansas, in which case this Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 24th day of August, 1999.

_____
Bob Knight, Mayor

ATTEST:

_____
Patricia L. Burnett, City Clerk

Approved as to Form:

_____
Gary E. Rebenstorf, City Attorney

[The next page is C-138.1]

SECTION 2. (a) The governing body of the City of Wichita is hereby established as the governing body of the Wichita Airport Authority and the members of the governing body of the City of Wichita are hereby established as the members of the Wichita Airport Authority. Such members shall continue to exercise all power, authority and control heretofore vested in the Wichita Airport Authority.

(b) The governing body of the City of Wichita acting as the governing body and members of the Wichita Airport Authority shall have such composition, qualifications, officers, terms of office, quorum, and procedures for the transaction of business as is now or hereafter established by law and ordinance for the governing body of the City of Wichita. Provided, that when State law or Charter Ordinance requires the Wichita Airport Authority to act in a different manner or under different procedures than is required for the governing body of the City of Wichita, such different procedures shall control for actions of the Wichita Airport Authority.

SECTION 3. The City of Wichita shall maintain such offices, employees, and safety force on behalf of the Wichita Airport Authority as is deemed appropriate for the orderly transaction and management of the business of the municipal airports.

SECTION 4. The City of Wichita is hereby authorized to establish an airport advisory board with such composition, powers, and duties as may hereafter be set forth by ordinance.

SECTION 5. Nothing in this Charter Ordinance shall be deemed to affect the continued existence of the Wichita Airport Authority as a body corporate and politic pursuant to K.S.A. 3-162, with all powers, authority, and control heretofore vested in such Wichita Airport Authority so far as the same relates to the municipal airports and the operation thereof.

SECTION 6. Charter Ordinance Nos. 137 and 169 are hereby repealed.

SECTION 4. This Charter Ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 5. This is a Charter Ordinance and will take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this ordinance as provided in Article 12, Section 5, Subdivision (c) of the Constitution of Kansas, in which case this Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 24th day of August, 1999.

_____
Bob Knight, Mayor

ATTEST:

_____
Patricia L. Burnett, City Clerk

Approved as to Form:

_____
Gary E. Rebenstorf, City Attorney

CHARTER ORDINANCE NO. 179

(Repealed by Charter Ordinance No. 226)

CHARTER ORDINANCE NO. 180

(Amended and repealed by Charter Ordinance No. 193)

CHARTER ORDINANCE NO. 181

A CHARTER ORDINANCE AMENDING SECTION 1 OF CHARTER ORDINANCE NO. 167 PERTAINING TO JUDGES OF THE MUNICIPAL COURT AND CREATING AN ADMINISTRATIVE TRAFFIC COURT AND ADMINISTRATIVE HEARING OFFICER, PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Repealed by Charter Ordinance No. 202, § 10.

SECTION 2. The original of Section 1 of Charter Ordinance No. 167 is hereby repealed.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 4. This is a Charter Ordinance and will take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case, this Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this December 14, 1999.

Bob Knight, Mayor

APPROVED:

Pat Burnett
City Clerk

Approved as to Form:

Gary E. Rebenstorf
Director of Law

CHARTER ORDINANCE NO. 182

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, ESTABLISHING A MUNICIPALLY OWNED AND OPERATED ELECTRIC UTILITY FOR THE CITY OF WICHITA AND EXEMPTING THE CITY FROM THE PROVISIONS OF K.S.A. 13-1220, 13-1221, 13-1222, 13-1223, 13-1224, 13-1225, 13-1226, 13-1227, 13-1228, 13-1228a, 13-1229, 13-1230, 13-1231, 13-1232, 13-1234a, 13-1235, 13-1236, AND 13-1237

WHEREAS, the City of Wichita desires to ensure that the citizens of Wichita have the lowest possible rates for reliable, safe, and environmentally sound electrical energy; and

WHEREAS, the Municipal Electric Utility Task Force established by the City Manager under the direction of Resolution R-99-296 has recommended that a municipal electric utility be established and that such City-owned assets as are necessary to service City-owned electric loads through the production of electricity, the purchase of wholesale electricity, and the distribution of electricity be transferred to such municipal electric utility, and the City Council adopted such recommendations on November 23, 1999, and directed that the necessary steps be taken to create such a municipal electric utility; and

WHEREAS, the City of Wichita is a city organized and existing under the Constitution and laws of Kansas and authorized to own and operate a municipal electric utility and to engage in the generation, transmission, local distribution, purchase and sale of electrical energy; and

WHEREAS, the City currently owns or controls transmission or distribution facilities used to deliver all the electric energy used by certain consumers; and

WHEREAS, the City Council has authorized a feasibility study to determine the feasibility, costs, and benefits of the municipal electric utility hereafter providing electric service to customers within and outside the City; and

WHEREAS, the establishment of a municipal electric utility is found to be in the public interest and will promote the health, safety, and welfare of the City and its inhabitants;

NOW THEREFORE BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The city of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself and hereby makes inapplicable to it the provisions of K.S.A. 13-1220, 13-1221, 13-1222, 13-1223, 13-1224, 13-1225, 13-1226, 13-1227, 13-1228, 13-1228a, 13-1229, 13-1230, 13-1231, 13-1232, 13-1234a, 13-1235, 13-1236, and 13-1237, which provisions are applicable to this City and not applicable uniformly to all cities, and provide substitute and additional provisions as hereinafter set forth in this charter ordinance.

SECTION 2. There is hereby established a municipal electric utility for the City of Wichita known as the Wichita Electric Utility or such other name as may be hereafter adopted by ordinance.

SECTION 3. The governing body of the City shall have and may exercise any and all legal powers and authority granted by statute to a board of public utilities or to a city in which a board of public utilities has been established. In addition, the City shall have and may exercise any and all legal powers and duties necessary to implement this charter ordinance and to establish a municipal electric utility, including but not limited to owning and operating a municipal electric utility, engaging in the generation, transmission, local distribution, purchase, and sale of electricity, furnishing electrical power to City facilities and to any person within or without the City, and having and exercising such other powers granted to municipal electric utilities and municipal electric-light plants by the Constitution and laws of the State of Kansas. Nothing in this Charter Ordinance shall be interpreted to affect the continued operation and ownership of any municipal water-works plant of the City as otherwise established by law, ordinance, or regulation.

SECTION 4. The City may hereafter exercise its power and authority as set forth in Section 3 by ordinance. The operations of the Wichita Electric Utility are established under the City Manager. The City Manager may hereafter transfer to the Wichita Electric Utility such City-owned assets as are necessary to serve electric loads through the generation, transmission, local distribution, purchase, and sale of electricity.

SECTION 5. If any of the provisions of this Charter Ordinance are held invalid for any reason, the remaining provisions shall remain in full force and effect the same as if such part held to be invalid had not been included herein.

SECTION 6. This Charter Ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 7. This is a Charter Ordinance and will take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this ordinance as provided in Article 12, Section 5, Subdivision (c) of the Constitution of Kansas, in which case this Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor, thereof, this December 21, 1999.

CITY OF WICHITA

_____
Bob Knight, Mayor

ATTEST:

_____
Pat Burnett, City Clerk

Approved as to Form:

_____
Gary E. Rebenstorf, City Attorney

CHARTER ORDINANCE NO. 183

(Repealed by Charter Ordinance No. 221)

CHARTER ORDINANCE NO. 184

(Amended and repealed by Charter Ordinance No. 193)

CHARTER ORDINANCE NO. 185

A CHARTER ORDINANCE REPEALING CHARTER ORDINANCE NO. 62, AND SECTIONS 6 AND 7 OF CHARTER ORDINANCE NO. 119 OF THE CITY OF WICHITA, KANSAS, EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISION OF K.S.A. 1977 SUPP. 17-2341, RELATING TO THE BOARD OF COMMISSIONERS OF THE HOUSING AUTHORITY OF THE CITY OF WICHITA, KANSAS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Charter Ordinance No. 62 of the City of Wichita, Kansas, is hereby repealed.

SECTION 2. Sections 6 and 7 of Charter Ordinance NO. 119 of the City of Wichita are hereby repealed.

SECTION 3. This Charter Ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for referendum is filed requiring a referendum to be held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3), of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting thereof, this 23rd day of January, 2001.

_____
Bob Knight, Mayor

ATTEST:

_____
Pat Burnett, City Clerk

Approved as to Form:

_____
Gary E. Rebenstorf
Director of Law

CHARTER ORDINANCE NO. 186

(Repealed by Charter Ordinance No. 223.)

CHARTER ORDINANCE NO. 187

(Repealed by Charter Ordinance No. 226)

CHARTER ORDINANCE NO. 188

(Repealed by Charter Ordinance No. 226)

CHARTER ORDINANCE NO. 189

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISIONS OF K.S.A. 17-2341, AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT, PERTAINING TO THE ESTABLISHMENT OF THE HOUSING AUTHORITY BOARD OF THE CITY OF WICHITA, KANSAS, AND ESTABLISHING THE MEMBERSHIP THEREOF.

WHEREAS, the City of Wichita hereby resolves and elects to establish the Housing Authority Board pursuant to the provisions of K.S.A. 17-2340, *et seq.,* and exempt itself from certain provisions of said statutes; and

WHEREAS, the City of Wichita, in order to provide for the composition and membership of the Wichita Housing Authority Board, establishes the members of the governing body of the City of Wichita as the members of the Wichita Housing Authority Board along with one additional member who is a tenant receiving public housing or Section 8 assistance from the City of Wichita; and

WHEREAS, the City of Wichita grants to such members all powers of authority to govern the Wichita Housing Authority Board and to exercise all power, rights, and control of the Wichita Housing Authority Board; and

WHEREAS, the City of Wichita intends that the Housing Advisory Board established by Section 2.12.1170 of this Code shall continue in existence in an advisory capacity to the city council, city manager of the Wichita Housing Authority Board;

NOW THEREFORE BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 17-2341, and to provide substitute and additional provisions as hereinafter set forth in this ordinance. Such referenced provisions are either enactments or a part thereof which are applicable to this city and not applicable uniformly to all cities.

SECTION 2. (Amended and repealed by Charter Ordinance No. 232, § 1.)

SECTION 3. The City of Wichita shall maintain such offices and employees on behalf of the Wichita Housing Authority Board as is deemed appropriate for the orderly transaction and management of the business of the Board.

SECTION 4. The City of Wichita is hereby authorized to establish a Housing Advisory Board with such composition, powers, and duties as may hereafter be set forth by ordinance.

SECTION 5. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 6. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum is filed and a referendum held on the Ordinance as provided in Article 12, Section 5, Subdivision (c) of the Constitution of the State of Kansas, in which case the Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 21st day of August, 2001.

_____
Bob Knight, Mayor

ATTEST:

_____
Pat Burnett, City Clerk

Approved as to Form:

_____
Gary E. Rebenstorf, Director of Law

CHARTER ORDINANCE NO. 190

A JOINT CHARTER RESOLUTION EXEMPTING SEDGWICK COUNTY, KANSAS AND CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS FROM CERTAIN PROVISIONS OF K.S.A. 65-201, et seq. RELATING TO JOINT LOCAL BOARDS OF HEALTH AND TO APPOINTMENT OF THE LOCAL HEALTH OFFICER: PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS RELATING THERETO; AND REPEALING CHARTER RESOLUTION 41 OF SEDGWICK COUNTY, KANSAS AND CHARTER ORDINANCE 136 OF THE CITY OF WICHITA.

WHEREAS, K.S.A. 19-101 et seq. provides that counties may exercise certain home rule powers, including adopting charter resolutions which exempt such counties from acts of the Kansas legislature, subject to certain restrictions contained in K.S.A. 1993 Supp. 19-101a; and

WHEREAS, Sedgwick County, Kansas is a county within the meaning of the provisions of K.S.A. 19-101 et seq.; and

WHEREAS, Article 12, Section 5 of the Constitution of the State of Kansas grants home rule authority to cities, including the City of Wichita, Kansas; and

WHEREAS, K.S.A. 65-201, et seq. is not uniformly applicable to all counties or cities within the state of Kansas; and

WHEREAS, the Board of Sedgwick County Commissioners desires, by charter resolution, to exempt the County from certain provisions of K.S.A. 65-201, et seq. and to provide substitute and additional provisions therefore; and

WHEREAS, such proposed action is not restricted or limited by the provisions of K.S.A. 19-101a; and

WHEREAS, the City of Wichita, Kansas, by charter ordinance hereby elects to exempt itself and makes inapplicable to it certain provisions of K.S.A. 65-201, et seq. and to provide substitute and additional provisions therefore.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF COUNTY COMMISSIONERS

OF SEDGWICK COUNTY, KANSAS AND ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS THAT:

SECTION 1. Repeal of Existing Charter Resolution No. 41. Sedgwick County Charter Resolution No. 41 is hereby repealed.

SECTION 2. Repeal of Existing Charter Ordinance No. 136. City of Wichita Charter Ordinance No. 136 is hereby repealed.

SECTION 3. Exemption. Sedgwick County, Kansas (the "County") is hereby exempted from the provisions of K.S.A. 65-201, 65-205, 65-206, 65-207, 65-208, and 65-209, inclusive, and shall be governed by the following substitute and additional provisions contained in this charter resolution.

SECTION 4. Sedgwick County Board of Health. The Board of County Commissioners of Sedgwick County shall act as the Sedgwick County Board of Health. The Sedgwick County Manager shall appoint a person licensed to practice medicine and surgery, preference being given to persons who have training in public health, who shall serve in an advisory capacity to the Sedgwick County Board of Health and as the local health officer. The local health officer shall hold office at the pleasure of the Sedgwick County Manager.

SECTION 5. Exemption. The City of Wichita, Kansas is hereby exempted from the provisions of K.S.A. 65-201, 65-205, 65-206, 65-207, 65-208, and 65-209, inclusive, and shall be governed by the following substitute and additional provisions contained in this charter ordinance.

SECTION 6. City of Wichita Public Health Powers. The City of Wichita is hereby authorized to establish by ordinance such governmental structure as it deems appropriate from time to time for the orderly transaction and management of public health matters. The City Manager is authorized to address such matters affecting public health as and in the manner he deems fit within the administration of the affairs and business of the City.

SECTION 7. Severability. If any provision or section of this joint charter resolution or charter ordinance is deemed or ruled unconstitutional or otherwise illegal or invalid by any court of competent jurisdiction, such illegality or invalidity shall not affect any other provision of this joint resolution or ordinance. this joint charter resolution and charter ordinance shall be construed and enforced as if such illegal or invalid provision had not been contained herein.

SECTION 8. Effective Date of Charter Resolution. This charter resolution shall be published once a week for two consecutive weeks in the official County newspaper, and shall take effect on January 1, 2002, unless a sufficient petition for a referendum is filed and a referendum held on the resolution as provided in K.S.A. 19-101b, in which case, the ordinance shall become effective upon approval by a majority of the electors voting thereon.

SECTION 9. Effective Date of Charter Ordinance. This is a charter ordinance which shall be published once a week for two consecutive weeks in the official City newspaper, and shall take effect on January 1, 2002, unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision C-3 of the Constitution of the State of Kansas, in which case, the ordinance shall become effective upon approval by a majority of the electors voting thereon.

_____
Bob Knight, Mayor

ATTEST:

_____
Pat Burnett, City Clerk

Approved as to Form:

_____
Gary E. Rebenstorf,
Director of Law and City Attorney

CHARTER ORDINANCE NO. 191

(Repealed by Charter Ordinance No. 223.)

CHARTER ORDINANCE NO. 192

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 16-706; 16-707; 16-708; 16-709; 16-710; 16-711; 16-712; 16-713; 16-714; 16-715; 16-716; 16-717; 16-718; and 16-721 AND AMENDMENTS THERETO AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT, RELATING TO PAWNBROKERS AND PAWNBROKING BUSINESSES; SECONDHAND DEALERS AND PRECIOUS METAL DEALERS, PROVIDING FOR LICENSING THEREOF, PROHIBITING CERTAIN ACTS AND DECLARING VIOLATIONS THEREOF TO BE A CRIME; AND REPEALING THE ORIGINALS OF CHARTER ORDINANCE NOS. 134 AND 141.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from and make inapplicable to it the provisions of K.S.A. 16-706; 16-707; 16-708; 16-709; 16-710; 16-711; 16-712; 16-713; 16-714; 16-715; 16-716; 16-717; 16-718; and 16-721 and amendments thereto and provide substitute and additional provisions as hereinafter set forth in this ordinance. Said chapter is applicable to this City, but is not applicable uniformly to all cities.

SECTION 2. (Amended and repealed—See Charter Ordinance No. 233, § 1.)

SECTION 3. (Amended and repealed—See Charter Ordinance No. 206, § 1.)

SECTION 4. PAWNBROKER, SECONDHAND DEALER, AND PRECIOUS METAL DEALER—ELIGIBILITY REQUIREMENTS. No pawnbroker, secondhand dealer, or precious metal dealer license or renewal thereof shall be granted to:

(a) Any person who is not a citizen of the United States;

(b) Any person who, within 10 years immediately preceding the date of making application, has been convicted of or has pleaded guilty to any felony, under the Kansas Criminal Code or pursuant to the laws of any city, state or of the United States or shall have forfeited his bond to appear in Court to answer charges for any such offense; or any person who within 10 years immediately preceding the date of making application has been convicted of or has pleaded guilty to a misdemeanor crime of robbery, theft, forgery, burglary, consumer fraud, securing execution of a document by fraud or deception, or any other similar offense pursuant to the laws of any city, state or of the United States.

(c) Any partnership unless all the partners shall be eligible to receive a license as an individual;

(d) Any person who has had his license revoked for cause under the provisions of this ordinance or any similar ordinances or statutes of other municipalities or states;

(e) A corporation, if any manager, officer or director thereof, would be ineligible as an individual to receive a license hereunder for any reason. A corporation if any stockholder owning in the aggregate more than twenty percent of the stock of such corporation would be ineligible as an individual for any reason other than age and citizenship requirements.

(f) Any person who is not at least 21 years of age;

(g) Any person who does not own the premises for which a license is sought, unless he has a written lease therefore for at least three fourths of the period for which the license is to be issued;

(h) Any person whose spouse would be ineligible to receive a license hereunder for any reason other than the age and citizenship requirements.

(i) Any person, who at the time of application for renewal of any license issued hereunder, would not be eligible for such license upon a first application.

(j) Any person whose business location does not comply with the provisions of Title 28 of the Code of the City of Wichita.

SECTION 5. (Amended and repealed—See Charter Ordinance No. 200, §§ 1 and 2.)

SECTION 6. Change of Location. Whenever a licensee shall change his/her place of business to another location within the City of Wichita, he/she shall, at least thirty (30) days prior to said change, excluding Saturdays. Sundays, and legal holidays, give written notice by certified or registered mail, return receipt requested thereof to the City Treasurer who shall then issue a duplicate license, provided the new location complies with the provisions of Title 28 of the Code of the City of Wichita, Kansas, which shall show, in addition to all of the information appearing on the old license, a record of the change of

location and the date thereof, which new license shall be authority for the operation of such business under such license at such location.

SECTION 7. Change of Ownership. A person must apply for a new license upon any change, directly or beneficially, in the ownership of any pawnshop, secondhand dealership or precious metal dealership. No license shall be transferable or assignable.

SECTION 8. Expiration of License. Each license shall expire one year from the date of issuance and may be renewed only by making an application as provided. To assure re-issuance of a license prior to expiration, applications for renewal should be made at least thirty (30) days before the expiration date.

SECTION 9. Issuance of License; Posting. The City Treasurer shall issue a license to an applicant within thirty (30) days after receipt of a verified application, unless it is determined after examination by the chief of police or his designee, that the person is not eligible for a license pursuant to the provisions of this ordinance. The license issued pursuant to this section shall be posted in a conspicuous place at or near the entrance to the licensed premises so that it may be easily read at any time.

SECTION 10. Suspension or Revocation of License—Notice of Hearing. (a) Any license issued under this ordinance may be suspended or revoked after due notice and hearing if the licensee (1) has failed to pay the annual license fee; (2) violated any provision of this ordinance; or (3) becomes ineligible for a license because of any of the provisions of Sections 4 or 5 of this ordinance; or (4) said licensee has given a false statement as to a material fact submitted to the City Treasurer during the application process. Any license issued pursuant to this ordinance shall be revoked, after due notice and hearing thereon, if it is proved at the hearing that the licensee sold any handgun to a minor.

Said hearing herein provided shall be held by the governing body of the City of Wichita, Kansas, within thirty (30) days after notice thereof. No revocation or suspension or surrender of any license shall impair or affect the obligation of any preexisting lawful contract between the licensee and others.

(b) Within thirty (30) days after the order of the City Council revoking or suspending any license, the licensee may appeal from such order to the district court of the county in the manner as provided by law; provided that any appeal taken from an order revoking any such license shall not suspend the order of revocation during the pendency of such appeal.

SECTION 11. Unauthorized Transfer of Property. (a) It shall be unlawful for any individual to pawn, pledge, trade or sell any article, under the provisions of this ordinance, to a licensee and use any name other than his or her true legal name.

(b) It shall be unlawful for any individual to pawn, pledge, trade or sell any article to a licensee, by means of any written instrument, with knowledge that the writing falsely states or represents some material matter.

(c) It shall be unlawful for any individual to pawn, pledge, trade or sell any article to a licensee if such person is not the legal owner or the agent of the legal owner who is authorized to pawn, pledge, sale or trade such item.

SECTION 12. (Amended and repealed—See Charter Ordinance No. 206, § 2.)

SECTION 13. (Amended and repealed—See Charter Ordinance No. 206, § 3.)

SECTION 14. Pawnbrokers: Articles Acquired to be Retained for Ninety-day Period. (a) It shall be unlawful for any pawnbroker to sell, transfer, or convey any pawned or pledged property, which he/she shall have received under the operation of his business, for at least ninety days, except when said property is redeemed by the pledge or upon payment of the principal and charges.

(b) If any pledged article is not redeemed within such redemption period, the pawnbroker shall become vested with all right, title, and interest of the pledgor, or his/her assigns, to such pledged article, to hold and dispose of as his/her own property. Any other provision of law relat-

ing to the foreclosure and sale of pledges shall not be applicable to any pledge, the title to which is transferred in accordance with this section.

SECTION 15. Prohibited Transactions. It is unlawful for any pawnbroker or his or her clerk or employee, to receive in pledge, trade, or purchase any article or item from any person under 18 years of age, or from any person, who at the time of the transaction is physically or mentally incapacitated due to consumption of alcohol or the use of narcotic drugs, or from any person who the licensee has reason to suspect or believe is under the influence of alcohol or drugs.

SECTION 16. Pawnbrokers: Contract Requirements.

a) Every loan made by a pawnbroker for which goods are received in pledge as security shall be evidenced by a written contract, in ink, a copy of which shall be furnished to the borrower. The loan contract shall set forth the loan period, which shall be one (1) month, the date on which the loan is due and payable, and the charges, and it shall clearly inform the borrower of his right to redeem the pledge during the redemption period of sixty (60) days after due date. Except as otherwise herein provided, the holder of such contract shall be presumed to be the person entitled to redeem the pledge, and the pawnbroker shall deliver the pledge to the person presenting the contract upon payment of the principal and charges. Provided, however, that it shall be the duty of the pawnbroker to inquire of the person presenting the contract what his/her name and address is, and if the name and address is different from the name and address of the person who pledged the property, then the pawnbroker shall require the legal name and address of the person presenting the contract as well as his driver's license number if the same is available, and if the same is not available, then such other valid identification as the person might have upon his person, and the pawnbroker shall thereafter make the same available to the Police Department upon request.

SECTION 17. Pawnbrokers: Interest and Charges on Pawnbroker Transactions: Applicability of Other Laws: Maximum Charges; Terms of Loans. (a) No pawnbroker shall contract for, charge, or receive directly or indirectly on or in connection with any pawnbroker transaction any charges, whether for interest, storage, insurance service fee, handling, compensation, consideration or expense which in the aggregate are greater than the charges provided and authorized by this ordinance. Any other provisions of law relating to interest, storage and such charges shall not be applicable to any pawnbroker transaction made in accordance with this ordinance.

(b) Whenever any loan is made by a pawnbroker for which goods are received in pledge, the following maximum amounts may be charged:

(1) On any amount a charge may be added in an amount not to exceed ten percent (10) per month or one hundred twenty percent (120%) per annum of the amount advanced to the borrower; and

(2) The maximum amount of a loan authorized by this act shall not exceed the amount set out in K.S.A. 16-719 and amendments thereto.

(c) The term of any loan made under the provisions of this ordinance, shall be one (1) month. Loans may be ended or renewed by the payment of the charges herein provided monthly. The charges authorized herein, shall be deemed to be earned at the time the loan is made and shall not be subject to refund. On loans pursuant to this ordinance, no insurance charges or any other charges of any nature whatsoever shall be permitted.

SECTION 18. Pawnbrokers: Inspection of Books and Premises. Every pawnbroker and every person employed by a pawnbroker, in the conduct of his/her business, shall admit to any and every part of the premises designated in the license at any time, any law enforcement officer or official of the Wichita Police Department authorized by the Chief of Police, to examine any goods, articles, items, pledges, pawns, books, computer records, or other records on the premises, and to search for and to place a hold upon (pursuant to the provisions of Section 13 above) any article known or believed by such officer or official to have been stolen.

SECTION 19. Pawnbrokers; Secondhand Dealers; and Precious Metal Dealers: Redelivery of

Stolen Property and Statement of Ownership. (a) When converted or stolen property has been pawned or purchased by a pawnbroker, secondhand dealer, or precious metal dealer and the pawnbroker, secondhand dealer, or precious metal dealer refuses to redeliver such property to the rightful owner upon demand and presentation of a bill of sale or other proper indicia of ownership by the owner, and legal action by the rightful owner to recover the property becomes necessary, the court may assess the pawnbroker, if the court finds that the pawnbroker, secondhand dealer or precious metal dealer wrongfully withheld the converted or stolen property.

(b) Pawnbrokers, Secondhand Dealers, and Precious Metal Dealers shall require of every person from whom the dealer receives or purchases secondhand items for resale a signed statement on forms approved by the Wichita Police Department stating that said person is the legal owner of the item or is an agent of the legal owner who is authorized to sell such item and stating the length of ownership of the item.

(c) It is unlawful for any pawnbroker, secondhand dealer or precious metals dealer to receive, trade, transfer, or possess or co-sign property which such dealer or his or her agent knows to be stolen.

SECTION 20. (Amended and repealed—See Charter Ordinance No. 206, § 4.)

SECTION 21. (Amended and repealed—See Charter Ordinance No. 206, § 5.)

SECTION 22. Prohibited Transactions. (a) It is unlawful for any precious metal dealer or his or her clerk or employee, to receive in trade or purchase any article or item from any person under 18 years of age, or from any person, who at the time of the transaction is physically or mentally incapacitated due to consumption of alcohol or the use of narcotic drugs, or from any person who the licensee has reason to suspect or believe is under the influence of alcohol or drugs.

(b) It shall be unlawful for any secondhand dealer or his or her clerk or employee hereunder to purchase or receive any article or property under the provisions of this ordinance from any person under the age of eighteen (18) years unless said person is accompanied by a parent or guardian who states in writing, that such transaction is taking place with such parent's or guardian's full knowledge and consent. It shall be the duty of such secondhand dealer to preserve and keep on file such written statements of consent on forms approved by the Wichita Police Department. Further, such written consent may be retained by the secondhand dealer hereunder and used for subsequent transactions with the minor without the presence of the parent or guardian.

(c) It is unlawful for any secondhand dealer or his or her clerk or employee, to receive, trade, or purchase any article or item from any person under 18 years of age, or from any person, who at the time of the transaction is physically or mentally incapacitated due to consumption of alcohol or the use of narcotic drugs, or from any person who the licensee has reason to suspect or believe is under the influence of alcohol or drugs.

SECTION 23. Secondhand Dealers Precious Metal Dealers: Inspection of Books and Premises. Every secondhand dealer and precious metal dealer and every person employed by them in the conduct of their business, shall admit to any and every part of the premises designated in the license at any time, any law enforcement officer or other official designated by the Chief of Police of the City to examine any goods, articles, items, books, or other records on the premises, and to search for and to place a hold upon pursuant to the provisions of Section 21 above any article known or believed by such officer or official to have been stolen.

SECTION 24. PENALTIES. (a) Any person violating any of the provisions of this act shall be guilty of a misdemeanor and upon conviction shall be fined an amount not exceeding one thousand dollars ($1,000.00) or shall be imprisoned not to exceed six (6) months, or shall be punished by both such fine and imprisonment.

(b) In addition to the penalties described in this section the City may recover in civil action in any court of competent jurisdiction the amount of the license tax imposed by this title, and no property of such debtor shall be exempt from

forced sale under any process of the law for such indebtedness except such exemptions as are allowed by the constitution of this state.

SECTION 25. Severability. If any section, subsection, subdivision, paragraph, sentence, clause, or phrase in this ordinance, or any part thereof, or application thereof to any person, firm, corporation, public agency, or circumstances, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not effect the validity or effectiveness of the remaining portions of this chapter of any part thereof.

It is hereby declared to be the legislative intent of the City Council that this ordinance would have been adopted had such unconstitutional or invalid provision, clause, sentence, paragraph, section, or part thereof not then been included.

SECTION 26. The originals of Charter Ordinance Nos. 134 and 141 of the Code of the City of Wichita, Kansas, are hereby repealed.

SECTION 27. This ordinance shall be published once a week for two (2) consecutive weeks in the official city newspaper.

SECTION 28. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this December 18, 2001.

Bob Knight
Mayor

APPROVED:

Pat Burnett
City Clerk

Approved as to Form:

Gray E. Rebenstorf
Director of Law

CHARTER ORDINANCE NO. 193

(Amended and repealed—See Charter Ordinance No. 194)

CHARTER ORDINANCE NO. 194

(Amended and repealed—See Charter Ordinance No. 195)

CHARTER ORDINANCE NO. 195

(Amended and repealed—See Charter Ordinance No. 205)

CHARTER ORDINANCE NO. 196

(Amended and Repealed—See Charter Ordinance No. 198.)

CHARTER ORDINANCE NO. 197

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, RELATING TO THE MEMBERSHIP OF THE BOARD OF APPEALS OF PLUMBERS AND GAS FITTERS; AMENDING SECTION 4 OF CHARTER ORDINANCE NO. 106; AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Repealed—See Charter Ordinance No. 219, § 2.)

SECTION 2. The original of Section 4 of Charter Ordinance No. 106 is hereby repealed.

SECTION 3. The Ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5(c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED AND ADOPTED BY THE GOVERNING BODY, not less than two-thirds of the members-elect voting in favor thereof, this 5th day of August, 2003.

Carlos Mayans, Mayor

ATTEST:

Pat Graves, City Clerk

APPROVED AS TO FORM:

Gary E. Rebenstorf

CHARTER ORDINANCE NO. 198

(Repealed by Charter Ordinance No. 228)

CHARTER ORDINANCE NO. 199

(Repealed by Charter Ordinance No. 224)

CHARTER ORDINANCE NO. 200

A CHARTER ORDINANCE AMENDING SECTION 5 OF CHARTER ORDINANCE NO. 192 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO RESTRICTIONS ON TRANSFERS OF STOCK IN CORPORATIONS LICENSED AS SECONDHAND DEALERS, AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1: Section 5 of Charter Ordinance No. 192 of the City of Wichita, Kansas, is hereby amended to read as follows:

SECTION 5. Transfer of Stock by Stockholder of Corporate Licensee; Effect. Except as hereinafter provided in this section, it shall be unlawful for any shareholder of a corporate licensee to transfer any stock in said corporation to any person who would be ineligible to receive a license as an individual, and any such transfer shall be null and void. Provided, that if any such stockholder of a corporate licensee shall become deceased, and his or her heirs or devisees to whom said stock descends by descent and distribution or by will shall be ineligible to receive a license hereunder, then the legal representatives of said deceased stockholders estate, his or her heirs and devisees shall have fourteen (14) months from the date of the death of said stockholder within which to sell said stock to a person eligible to receive a license hereunder, with the provisions of the probate code and any amendments thereto. If said legal representatives, heirs and devisees shall fail, refuse or neglect to so convey said stock within the time herein before prescribed, then said stock shall revert to and become the property of the corporation for which the corporation shall pay to said legal representatives, heirs or devisees the book value of such stock. If the stock in any corporation shall be the subject of any trust heretofore or hereafter created, the trustee or trustees and the beneficiaries of each trustee and beneficiary of said trust who is twenty-one (21) years of age or older must be a person who would be eligible to receive a license, or the trustee shall be and he is hereby authorized and required, within fourteen

(14) month after the effective date of the trust, to sell said stock to a person eligible to receive a license under this ordinance, and he/she shall hold and disburse the proceeds thereof in accordance with the terms of the trust or the license of the corporation shall be forfeited. During the fourteen (14) month periods herein before mentioned, a corporation shall not be denied a license or have its license revoked if it meets all of the other requirements necessary to have a license as provided by this act. The prohibitions and restrictions which this section imposes on stock transfers to a stockholder who would not be eligible to receive a license as an individual shall not apply with respect to stocks that are publicly traded on the national or regional stock exchanges or through the NASDAQ system.

SECTION 2. The original of Section 5 of Charter Ordinance No. 192 of the City of Wichita, Kansas, is hereby repealed.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY not less than two-thirds of the members elect voting in favor thereof, this 26th day of October, 2004.

CARLOS MAYANS, Mayor

ATTEST: (Seal)

KAREN SUBLETT,
City Clerk

Approved as to Form:

GARY E. REBENSTORF,
Director of Law

CHARTER ORDINANCE NO. 201

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 13-10,107 AND K.S.A. 13-10,109 AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT RELATING TO CONSTRUCTING SEWERS OUTSIDE THE CITY LIMITS OF THE CITY OF WICHITA, KANSAS, INCLUDING AREAS WITHIN THE CITY LIMITS OF OTHER CITIES, ISSUING GENERAL OBLIGATION BONDS OF THE CITY OF WICHITA, KANSAS, TO PAY FOR THE SAME AND SPECIALLY ASSESSING THE COST THEREOF AGAINST PROPERTY DEEMED BENEFITED.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS, AS FOLLOWS:

SECTION 1. EXEMPTION OF STATUTE. The City of Wichita, Kansas, a city of the first-class by powers vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby exempts itself from and makes inapplicable to it the provisions of K.S.A. 13-10,107 and K.S.A. 13-10,109, and amendments thereto, and provides substitute and additional provisions as hereinafter set forth in this Charter Ordinance, said statutes being applicable to the City of Wichita, Kansas, but not being applicable uniformly to all cities.

SECTION 2. SEWER IMPROVEMENTS OUTSIDE THE CITY LIMITS AND/OR WITHIN BOUNDARIES OF OTHER CITIES. The City of Wichita, Kansas, is hereby authorized to make sanitary sewer improvements authorized by and in the manner provided for in the general improvement and assessment law as contained in Chapter 12, Article 6(a), of Kansas Statutes Annotated (the "General Improvement Law"), in those incorporated areas beyond their corporate limits and within five (5) miles thereof, including areas that include territory within other cities within such distance. Financing of the improvements, including the levy of special assessments, shall be made as provided for in the General Improvement Law as if the improvements were within the corporate limits of the City of Wichita, Kansas. The City of Wichita, Kansas, is hereby

authorized to impose upon the properties served with sanitary sewers, pursuant to authority granted herein, user fees which may be based upon the cost of operation and maintenance of the sewer improvements and also the recovery of an equitable portion of the capital improvement cost of any such improvements originally charged to or assessed against the property within the corporate limits of such city. The user fees herein authorized shall be a lien against the property served and may be collected in the same manner as delinquent real estate taxes.

SECTION 3. This ordinance shall be published once each week for two (2) consecutive weeks in the official City of Wichita, Kansas, paper.

SECTION 4. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for referendum is filed and a referendum held on this ordinance as provided in Article 12, Section 5, subsection (c)(3) of the Constitution of the State of Kansas, in which case, this Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds (⅔) of the members of the elect voting in favor thereof, this 28th day of June, 2005.

/s/ Carlos Mayans,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Gary E. Rebenstorf
Director of Law

Effective Date 10-17-06

CHARTER ORDINANCE NO. 202

(Repealed by Charter Ordinance No. 224)

CHARTER ORDINANCE NO. 203

(Repealed by Charter Ordinance No. 228)

CHARTER ORDINANCE NO. 204

(Repealed by Charter Ordinance No. 224)

CHARTER ORDINANCE NO. 205

Amended and Repealed. ***See Charter Ord. 209.***

CHARTER ORDINANCE NO. 206

SECTION 1. The original of Section 3 of Charter Ordinance No 192 is hereby amended to read as follows:

"SECTION 3. License Required, Fee, Licenses to Conduct Business Off Premises.

(a) No person, whether as principal officer, agent, or employee, shall conduct, pursue, carry on, or operate in the city, any business, or occupation commonly known as a pawnbroker, secondhand dealer, or precious metal dealer, without having first obtained a license therefor. The application for such license shall be made on forms provided by the City and shall be in writing and shall state the full name, including previous names and/or aliases used, date of birth and place of residence, including street address, of the applicant. If the applicant is a partnership, the application shall give the full name, date of birth and place of residence, including street address, of each partner, and if the applicant be a corporation, then the name, date of birth and address, including street address, of each stockholder possessing twenty or more percent of the stock of the corporation shall be stated thereon. The application shall also contain the address of the place where the business is to be conducted and the hours of the day and the days of the week during which the applicant proposes to engage in business. Not more than one place of business shall be maintained under the same license, but more than one license may be issued to the same licensee upon compliance with all the provisions of this Act governing the issuance of the initial license.

(b) Fees: Pawnbrokers shall pay an annual fee of five hundred dollars ($500.00). Secondhand dealers shall pay an annual fee of one hundred dollars ($100.00). Precious metal dealers shall pay an annual license fee of one hundred fifty dollars ($150.00). A permit fee of seventy-five

dollars ($75.00) shall be assessed for any off premises business permit issued pursuant to Subsection (g).

(c) Off Premises Business Permit: Any person, licensed pursuant to this ordinance, may apply for a off premises business permit to conduct the business of a pawnshop, secondhand dealer or precious metals dealer off the licensed premises of such business.

(d) Such person shall complete the application for such license on forms provided by the City. Such application shall state the address of the place or places where the business is to be conducted, the location of the dealers licensed premises within the City of Wichita, if any, and the dates and the number of days for such sale or event.

(e) No off premises business permit shall be issued for a period of longer than six days.

(f) No more than three off premises business permits shall be issued to any person within a twelve-month period.

(g) There shall be a fee assessed for the off premises business permit of $75.00. This fee is in addition to any licensing fee set forth in Subsection (b).

(h) No off premises business permit may be issued to any person who is ineligible, except due to the limitations contained in Section 4(g), to obtain a pawnbroker, secondhand dealers license, precious metal dealers license pursuant to this ordinance.

(i) All provisions of this Act regarding record keeping, reporting requirements to the Wichita Police Department, holding requirements and all other provisions, shall be applicable to persons issued an off premises business permit. Out of state businesses issued an off premises business permit shall retain all property received within the corporate city limits of the City of Wichita for at least fourteen (14) days as required by Sections 13 and 21 of this Ordinance."

SECTION 2. (Amended and repealed—See Charter Ordinance No. 233, § 2.)

SECTION 3. The original of Section 13 of Charter Ordinance No. 192 is hereby amended to read as follows:

"SECTION 13. Pawnbrokers: Articles Acquired to be Held.

(a) Every pawnbroker shall segregate all property purchased, pledged, pawned or received, from property purchased or received from other pledgors or sellers and shall attach to the property or to the container in which the property is held a tag indicating the name of the pledgor or seller and the date on which the property was purchased or received. Further, every pawnbroker shall retain possession of purchased property upon the licensed premises and withhold the property from resale or salvage use for fourteen (14) calendar days from the date of the transaction and shall make the pawned, purchased, pledged, or received property available for inspection at his licensed premises by any police officer or official designated by the police chief during regular business hours while in his possession. Articles received by an off premises business permit must be held for fourteen (14) calendar days at a location, designated by the licensee which is within the City's limits. During said period of time, the article shall not be changed or altered in any manner. Notwithstanding the provisions of this Subsection, a pawnbroker may return any property to the person pawning the same unless a hold has been placed upon the property pursuant to Subsection (b) below.

(b) When a police officer or other person employed and authorized by the Wichita Police Department has reasonable cause to believe that any property received by a pawnbroker is stolen the police officer may place a hold notice upon the property. All property upon which a hold notice has been placed must be held by the

dealer at the licensed premises for sixty (60) calendar days unless released sooner by authority of the Police Chief or his designee. After sixty (60) calendar days, unless other disposition is authorized by the Police Chief or his designee, the hold is automatically released and the pawnbroker may dispose of the property pursuant to law and subject to the provisions of Section 14 below.

(c) The holding requirements of subsection (a) shall not apply to phonographic records, cassette tapes, compact discs or video games when such items are not purchased, traded, pawned or sold in conjunction with an operation system or stereo equipment. Items which are sold, purchased, traded or pawned during any normal business day to or from the same individual shall be considered 'sold in conjunction' for the holding requirements in this section."

SECTION 4. (Amended and repealed—See Charter Ordinance No. 233, § 3.)

SECTION 5. (Amended and repealed—See Charter Ordinance No. 233, § 4.)

SECTION 6. The originals of Sections 3, 12, 13, 20 and 21 of Charter Ordinance No. 192 are hereby repealed.

SECTION 7. This ordinance shall be published once a week for two consecutive weeks in the official city news paper.

SECTION 8. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this November 20, 2007.

/s/ Carlos Mayans,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Gary E. Rebenstorf,
Director of Law

CHARTER ORDINANCE NO. 207

(Repealed by Charter Ordinance No. 223)

CHARTER ORDINANCE NO. 208

(Repealed by Charter Ordinance No. 226)

[The next page is C-205]

CHARTER ORDINANCE NO. 209

(Repealed by Charter Ordinance No. 214, § 38, adopted 12-21-2010)

See Charter Ord. 214.

CHARTER ORDINANCE NO. 210

(Repealed by Charter Ordinance No. 224)

CHARTER ORDINANCE NO. 211

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISIONS OF K.S.A. 10-1210 AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1: The City of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself and hereby makes inapplicable to it K.S.A. 10-1210, pertaining to publication of intended utility improvements, which section is part of a nonuniform enactment that includes (in K.S.A. 10-1202(b)) a provision applicable only to any city of the first class owning and operating a municipal electric utility, which is located in a county having a population of more than twenty thousand (20,000) and not more than thirty thousand (30,000) and an assessed tangible valuation of more than one hundred thirty-five million dollars ($135,000,000), and the City hereby provides a substitute provision for K.S.A. 10-1210 as set out in Section 2 hereof.

SECTION 2. Publication of intended improvements; protest; election. The governing body, by a two-thirds vote of the members thereof, or where the utilities are under the control and management of a board of public utilities, said board by a three-fifths vote thereof, may contract for or make repairs, alterations, extensions, reconstructions, enlargements or improvements of any of its municipally owned utilities and issue or cause to be issued revenue bonds in payment of the cost thereof without submitting to a vote of the electors of such municipality the proposal to make such repairs, alterations, extensions, reconstructions, enlargements or improvements and to issue such bonds in payment of the cost thereof: Provided, That such repairs, alterations, extensions or improvements will not cause duplication of existing utility service furnished by a private utility: Provided, however, That the governing body or other proper officers of any such municipality shall, before issuing such bonds, cause to be published in the official paper of said municipality or, if said municipality has no official paper, then some paper of general circulation in such municipality, a notice of its intention so to do which notice shall describe the nature of the proposed repair, alteration, reconstruction, enlargement or improvement, state the total amount of the cost thereof and the amount of the bonds to be issued for the payment thereof: Provided, however, If, within fifteen days after the publication as aforesaid of such notice, there shall be filed with the clerk of such municipality a written protest against such proposed repairs, alterations, extensions, reconstructions, enlargements or improvements and such bond issue, signed by not less than twenty percent of the qualified electors of such municipality, the governing body of such municipality shall thereupon submit such proposed project and the proposed bond issue to the electors of such municipality at a special election to be called for that purpose upon at least ten days' notice, to be held not later than sixty days after the filing of such protest or at a regular city election or general election which will occur not sooner than thirty days nor not later than sixty days after the filing of such protest. In the event that a majority of such voters voting on such proposition at such election shall vote in favor thereof, such repairs, alterations, extensions, reconstructions, enlargements or improvements shall be made and such bonds may be issued in payment of the cost thereof. Any municipality may issue revenue bonds under this act to refund all or any portion of its outstanding general obligation notes or bonds which have been issued for the purpose of making repairs, alterations, extensions, reconstructions, enlargements or improvements to its municipally-owned utilities, provided the municipality has complied with the procedures set forth herein which are required for the issuance of revenue bonds for the purpose of paying the cost of such repairs, alterations, extensions, reconstructions, enlargements or improvements.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a Charter Ordinance and shall become effective sixty-one days after final publication, unless a sufficient petition for refer-

endum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY not less than two-thirds of the members elect voting in favor thereof, this 13th day of April, 2010.

Signed by the Mayor:

/s/ Carl Brewer,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

APPROVED AS TO FORM:

/s/ Gary E. Rebenstorf,
City Attorney and Director of Law

CHARTER ORDINANCE NO. 212

A CHARTER ORDINANCE AMENDING SECTION 2 OF CHARTER ORDINANCE NO. 139 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO DELAY OF SPECIAL ASSESSMENTS, AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1: The provisions of Section 2 of Charter Ordinance No. 139 of the City of Wichita, Kansas, are hereby amended to read as follows:

SECTION 2. DELAY OF SPECIAL ASSESSMENTS. The City Council may authorize and provide for a delay in or an abatement of the payment of special assessments for the cost of constructing public improvements subject to the conditions and in the manner provided for herein.

(a) The City Council may authorize and provide for a delay in the payment of a part or all of an assessment for the costs of constructing a parking facility located within a parking district that is being financed under authorization of Charter Ordinance 138 if the property the delay is being sought for, at the time bonds are issued, provides off-street parking on the property that meets off-street parking requirements for the use the property is subject to at that time. Delayed assessments shall be due and payable at the time the use of such property changes to a use that requires more off-street parking spaces than are being provided for on the property. The delay of the payment of assessments may, at the discretion of the City Council, be continued on a partial basis on the portion of the assessment that exceeds the cost of the parking spaces that are needed to meet off-street parking requirements. E.g., if the property was originally assessed for 20 spaces and only 12 spaces are

needed, then the delay for payment of assessment can be continued on the portion of the assessment that equals the 8 spaces that will not be used.

(b) The City Council may authorize and provide for a delay in the payment of special assessments for the cost of constructing public improvements in unplatted and undeveloped areas of the City. The City Council may provide for a delay in the commencement of payment of some or all special assessments upon such property for a designated period not to exceed fifteen years or until such property is platted or developed if the same occurs prior to the conclusion of the period designated. In the event such property has not developed 50% of its area at the conclusion of the period designated, an additional extension of ten years before commencement of payments may be granted to such property. All assessments shall be due and payable at the time such property, or any portion thereof, is platted or developed, or at the expiration of the designated period or any extension of such period. The payments for such property, or any portion thereof, shall be spread against such property, or any portion thereof as if the time for payment of the special assessments had not been delayed. When payments become due on a portion of the property, the payments against such property shall be spread in a pro rata manner based on the ratio the area of such property bears to the area of the entire property originally delayed. For the purpose of this act, undeveloped areas shall mean those areas which:

(1) are in excess of 2½ acres;

(2) have not been platted;

(3) are undeveloped;

(4) have a population density of less than one family per acre;

(5) are not served by such public improvement; and,

(6) neither the owner of such area nor such owner's spouse, nor any entity in which either has greater than 5% ownership interest has petitioned for this improvement.

(c) In addition, in the case of special assessments for drainage improvements on property which has been platted for development the City Council may authorize and provide for a delay in the payment of special assessments for the cost of constructing storm water drainage improvements on such property, for a designated period of not to exceed five years or such earlier time as of which street improvements are approved for the property, as referenced in (4) below, or the letter or credit referenced in (3), below, is released. Storm water drainage deferral is subject to the following conditions:

(1) The property for which the storm water drainage improvements are deferred must be platted and must not yet be served by street pavement (either public or private).

(2) The property eligible for the storm water drainage deferral must not exceed fifty percent (in either size and/or lot count) of the benefit.

(3) A letter of credit in the amount of 35% of the storm water drainage project cost must be provided per the requirements of the City of Wichita and, for a benefit district utilizing storm water drainage deferral the release of the letter of credit shall end the deferral period.

(4) If or when street pavement, either publically or privately funded, is approved for any lot

within the benefit district for which the storm water sewer assessment is deferred, the development deferral for all lots will expire. Approval of streets will be defined as awarding of the contract for publically constructed streets, or the final plan approval for private street improvements.

(d) The City Council may authorize and provide for a delay in or abatement of the payment of all or any portion of special assessments for the construction of public improvements levied against residential property when, in the opinion of the City Council such payment would work a hardship on the owners of such property. The City Council may provide conditions and requirements for qualification for any such delay or abatement, either by way of ordinance adopted by the City Council or by way of regulations and policies promulgated by the city pursuant to City Council direction."

SECTION 2. The original of Section 2 of Charter Ordinance No. 139 of the City of Wichita, Kansas, is hereby repealed.

SECTION 3. This ordinance shall be published once each week for two consecutive weeks.

SECTION 4. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY not less than two-thirds of the members elect voting in favor thereof, this 8th day of June, 2010.

/s/ CARL BREWER,
Mayor

ATTEST: (Seal)

/s/ KAREN SUBLETT,
City Clerk

Approved as to Form:

/s/ GARY E. REBENSTORF,
Director of Law

CHARTER ORDINANCE NO. 213

(Repealed by Charter Ordinance No. 221)

CHARTER ORDINANCE NO. 214

(Repealed and Amended by Charter Ordinance No. 215)

CHARTER ORDINANCE NO. 215

(Repealed by Charter Ordinance No. 230)

CHARTER ORDINANCE NO. 217

(Repealed by Charter Ordinance No. 224.)

CHARTER ORDINANCE NO. 218

(Repealed by Charter Ordinance No. 224.)

CHARTER ORDINANCE NO. 219

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS, RELATING TO THE MEMBERSHIP OF THE BOARD OF APPEALS OF PLUMBERS AND GAS FITTERS, AMENDING SECTION 1 OF CHARTER ORDINANCE No. 197 AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Amended and repealed—See Charter Ordinance No. 234, §§ 1, 2.)

SECTION 2. The original of Section 1 of Charter Ordinance No. 197 is hereby repealed.

SECTION 3. The Ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

[The next page is C-239]

SECTION 4. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5(c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED AND ADOPTED BY THE GOVERNING BODY, not less than two-thirds of the members-elect voting in favor thereof, this 20th day of November, 2012.

Carl Brewer, Mayor

ATTEST:

Karen Sublett, City Clerk

APPROVED AS TO FORM:

Gary E. Rebenstorf

CHARTER ORDINANCE NO. 220

(Repealed by Charter Ordinance No. 224)

CHARTER ORDINANCE NO. 221

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 12-1692, 12-1693, 12-1694, AND K.S.A. 12-1695 AND AMENDMENTS THERETO, AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT, RELATING TO THE LEVY OF A TRANSIENT GUEST TAX AND PROVIDING FOR PURPOSES FOR EXPENDITURE OF SUCH FUNDS, AND REPEALING CHARTER ORDINANCES NOS. 83, 91, 124, 174, 183 AND 213.

SECTION 1. The City of Wichita, Kansas, a city of the first class, by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from, and makes inapplicable to it, the provisions of K.S.A. 12-1692, 12-1693, 12-1694, and K.S.A. 12-1695 and amendments thereto, and provide substitute and additional provisions as hereinafter set forth in this ordinance. Such referenced provisions are either enactments or a part thereof which are applicable to this city, but are not applicable uniformly to all cities.

SECTION 2. (Amended and repealed—See Charter Ordinance No. 243, § 1.)

SECTION 3. (Amended and repealed—See Charter Ordinance No. 243, § 2.)

SECTION 4. (Amended and repealed—See Charter Ordinance No. 243, § 3.)

SECTION 5. (Amended and repealed—See Charter Ordinance No. 243, § 4.)

SECTION 6. (Amended and repealed—See Charter Ordinance No. 243, § 5.)

SECTION 7. The Secretary of Revenue or the Secretary's authorized representative shall have the right at all reasonable times during business hours to make such examination and inspection of the books and records of a business as may be necessary to determine the accuracy of such reports.

SECTION 8. For each and every month, or any part thereof, the tax provided for by this ordinance remains unpaid after the same becomes due and payable by the business, there shall be added to such tax, as a penalty, ten percent (10%) of the amount of said tax for the first month or any part thereof the same is unpaid, and for each and every month thereafter, two percent (2%) of the amount of said tax shall be added until the same is fully paid. In no case shall the total penalty exceed thirty percent (30%) of said tax.

SECTION 9. The administration and collection of said tax shall be by the Secretary of Revenue, as provided by K.S.A. 12-1694 and amendments thereto, and herein.

SECTION 10. A "Tourism and Convention Fund" is hereby established to receive disbursements of moneys from the Secretary of Revenue, as provided in subsection (c) of K.S.A. 12-1694 and amendments thereto.

SECTION 11. (Amended and repealed—See Charter Ordinance No. 243, § 6.)

SECTION 12. The originals of Charter Ordinances Nos. 83, 91, 124, 174, 183 and 213 of the City of Wichita, Kansas, are hereby repealed.

SECTION 13. This Charter Ordinance shall expire and no longer be in effect on January 14, 2034.

SECTION 14. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 15. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 28th day of January, 2014.

/s/ Carl Brewer,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Gary E. Rebenstorf
Director of Law

CHARTER ORDINANCE NO. 222

(Repealed by Charter Ordinance No. 228)

CHARTER ORDINANCE NO. 223

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 12-4107, 12-4108, 13-628a AND 13-628d AND AMENDMENTS THERETO RELATING TO APPOINTMENT OF MUNICIPAL COURT JUDGES AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS OF THE SAME SUBJECT AND REPEALING CHARTER ORDINANCES 90, 117, 135, 142, 152, 186, 191 AND 207.

SECTION 1. Be it ordained by the governing body of the City of Wichita, Kansas, a city of the first class, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, that it hereby elects to exempt itself from and makes inapplicable to it, the provisions of K.S.A. 12-4107, 12-4108, 13-628a and 13-628d and provide substitute and additional provisions hereinafter set forth in this ordinance. Such referenced provisions are either enactments or a part thereof which are applicable to the City, but are not applicable uniformly to all cities.

SECTION 2. (Amended and repealed—See Charter Ordinance No. 242, § 2.)

SECTION 3. The City of Wichita shall establish the position of municipal court administrator which shall be responsible for directing the administrative, non-judicial operations of the municipal court, clerk of the municipal court, chief probation officer and who shall be responsible to the chief judge for implementation of the policies of the court regarding judicial functions. The City shall also establish the position of clerk of the municipal court and chief probation officer. The organization, functions and duties of the municipal court administrator, clerk of the municipal court and chief probation officer shall be set forth in an ordinance by the City Council.

SECTION 4. (a) The judges of the municipal court shall be selected as herein provided for terms of four years, the initial terms commencing on the third Tuesday in April.

(b) In the event that a vacancy for the office of municipal court judge is filled during the four-year term provided by subsection (a), then that position shall expire on the expiration date of the term in which the appointment was made.

SECTION 5. The compensation of the judges of the municipal court shall be fixed by the City Council, and salaries for the judges shall be in the same pay grade. Compensation of a judge shall not be diminished during a term of office unless economic conditions cause a reduction in salary for other city employees in similar pay grades. Each municipal court judge shall be evaluated annually according to procedures established by the City Council. Such evaluation shall determine if the judge is qualified to continue to serve as a municipal court judge and if a merit increase should be granted. The evaluation process shall be set forth by a policy adopted by the City Council. The judges shall give their full time to the duties of their office. The judges shall be eligible for all City employment benefits and participation in the city retirement system.

SECTION 6. No judge of the municipal court shall engage in the practice of law.

SECTION 7. Any person who is selected as a municipal court judge shall:

(a) Be a citizen of the United States and a resident of Sedgwick County, Kansas, at the time of his or her selection as well as the time for taking and holding office;

(b) Have been regularly admitted to practice law in the State of Kansas; and

(c) Comply with the residency requirements set forth in City Council Policy No. 25; and

(d) For a period of not less than three years, have engaged in the active practice of law as a lawyer, judge of a court of record or any court in this state, full-time teacher of law in any accredited law school or any combination thereof.

SECTION 8. The judges of the municipal court shall, with the assistance of the City Attorney and the municipal court administrator, prescribe and adopt rules of practice and procedure for the municipal court not inconsistent with sound principles of municipal court administration of justice, this ordinance or with the ordinances of the City or the laws of this state. Said rules shall be revised and updated.

SECTION 9. (a) There is hereby established a Municipal Judge Nominating Commission, which

shall consist of five (5) members. Two (2) non-lawyer members of the nominating commission shall be appointed by the City Council. The other three (3) members of the nominating commission shall be lawyers nominated by the governing body of the Wichita Bar Association and appointed by the City Council. In the event the Wichita Bar Association does not nominate members, three (3) lawyers shall be appointed by the City Council. Each member of the commission shall be a qualified elector of the City of Wichita. The commission shall appoint one of its members as chairperson and one as vice-chairperson under such procedures and for such term as the commission may determine by majority vote. The members of the commission shall serve for such term as is provided by ordinance for appointive boards and commissions. Vacancies shall be filled in the same manner as the original appointment.

(b) Whenever a vacancy occurs in the office of municipal court judge, or whenever a vacancy will occur in such office on a specified future date, the City Attorney shall give notice of such vacancy or expiration of term of office to the Chairperson of the nominating commission. The Chairperson shall call an organizing meeting of the commission to be held with five (5) days after receipt of such notice for the purpose of nominating persons for appointment to such office. The commission shall determine the rules necessary for the conduct of its proceedings and the discharge of its duties. The commission shall not take any final action except at regularly scheduled meetings. A majority of the members of the commission shall constitute a quorum to do business, but no final action shall be taken except upon a vote of the majority of the members of the commission.

(c) Applications for the office of municipal court judge shall be submitted to the City Clerk in such time, manner, and form as may be determined by the City Manager. The City Clerk shall forward the same to the nominating commission.

(d) It shall be the duty of the commission to nominate not less than three (3) persons for each municipal court judge office which is vacant or which term has or will expire, and shall submit the names of the persons so nominated to the City Council. Any person so nominated shall have the qualifications prescribed by statute and ordinance. In order that a vacancy in the office of municipal court judge does not exist for an inordinate length of time, the commission shall conduct the business of selecting nominees for appointment to such office and certifying the same to the City Council as promptly and expeditiously as possible, having due regard for the importance of selecting the best possible nominees. In no event shall the commission submit its nominations to the City Council more than thirty (30) days after notice, unless the City Council permits the extension of such period.

(e) An incumbent municipal court judge shall be deemed to be a candidate for reappointment unless the judge notifies the City Clerk prior to sixty (60) days from the end of his or her term that he or she does not seek to be reappointed. If there is no notification, it shall be assumed that the incumbent wishes to remain in office. The City Council shall have the discretion to consider and vote whether to reappoint an incumbent municipal court judge without referral to the nominating commission. In making its determination, the Council may consider the judge's annual evaluations in determining if such judge should be retained. If the City Council does not exercise its discretion to consider and vote to reappoint an incumbent judge, the procedure for filling a vacancy set out in subsections (b), (c) and (d) of this ordinance will be invoked. In such an instance, an incumbent judge shall be a candidate for nomination under such procedure.

(f) The City Council shall appoint one of the nominees so submitted, or reject all nominees and request the nomination by the commission of additional nominees. If the commission declines to nominate additional nominees within thirty (30) days after being so requested by the City Council, the City Council shall make the appointment from among the persons indicating an interest in the office.

(g) An appointee to the office of municipal court judge shall take and hold office for the term or remainder thereof provided herein, and until reappointed or until a successor is appointed.

SECTION 10. Judges of the municipal court of Wichita, Kansas, shall be subject to recall or removal as provided in the Rules of the Kansas Supreme Court Relating to Judicial Conduct. Further, the chief judge and the two senior district court judges of the Eighteenth Judicial District will act as a committee with the authority to suspend a judge of the municipal court for good cause shown.

Judges may be removed or not retained by the City Council for violations of the City's Human Resources policies or based upon the results of an annual performance evaluation performed by the City Council.

SECTION 11. (Amended and repealed—See Charter Ordinance No. 242, § 3.)

SECTION 12. The originals of Charter Ordinances Nos. 90, 117, 135, 142, 152, 186, 191 and 207 of the Code of the City of Wichita, Kansas, are hereby repealed.

SECTION 13. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 14. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 6th day of January, 2015.

/s/ Carl Brewer,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Sharon L. Dickgrafe
Interim Director of Law

CHARTER ORDINANCE NO. 224

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 12-4112, 12-4203, 12-4208, 12-4212, 12-4213, 12-4305, 12-4410, 12-4411, 12-4509, 12-4511, 12-4516 AND 12-4156a AND AMENDMENTS THERETO RELATING TO MUNICIPAL COURT PROCEDURES AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS OF THE SAME SUBJECT AND REPEALING CHARTER ORDINANCES 122, 163, 164, 167, 168, 170, 175, 199, 202, 204, 210, 217, 218 AND 220.

SECTION 1. Be it ordained by the governing body of the City of Wichita, Kansas, a Council-Manager City of the first class, by the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby elects to exempt itself from, and makes inapplicable to it the provisions of K.S.A. 12-4112; 12-4203; 12-4208; 12-4212; 12-4213; 12-4305; 12-4410; 12-4411; 12-4509; 12-4511; 12-4516 and 12-4516a; and amendments thereto, and provides substitute and additional provisions as hereinafter set forth in this ordinance. Such referenced provisions are either enactments or a part thereof which are applicable to this city, but are not applicable uniformly to all cities.

SECTION 2. Municipal Court Costs. (a) Costs may be assessed against accused persons for the administration of justice in any municipal court case where:

(1) the accused person is found guilty; or

(2) the accused person pleads guilty; or

(3) the accused person has failed to comply with a traffic citation as set forth by ordinance.

The costs shall be assessed in accordance with the terms contained in Section 1.04.070 of the Code of the City of Wichita, Kansas, and amendments thereto.

(b) If it appears to the court that the prosecution was instituted without probable cause and for malicious motives, the court may require the complaining witness or other person instituting the prosecution to appear and answer concerning that person's motives for instituting the prosecution. If upon hearing the court determines that the prosecution was instituted without probable cause and from malicious motives, all costs in the case shall be assessed against the complaining witness or other person initiating the prosecution.

(c) At the conclusion of each municipal case, the court shall, where applicable, assess the costs against the responsible party.

SECTION 3. (Amended and repealed—See Charter Ordinance No. 237, §§ 3, 13.)

SECTION 4. Persons under arrest; procedures, right to post bond, release on personal recognizance.

(a) Any person arrested by a law enforcement officer shall be taken immediately by the law enforcement officer to the police station or detention facility of the City or to a location in the City designated by the municipal judge. At that time, the person shall have the right to post bond for the person's appearance in accordance with K.S.A. 12-4301 and K.S.A. 12-4302, and amendments thereto, except as hereinafter provided.

(b) A law enforcement officer may detain a person arrested for violation of a municipal ordinance in protective custody for a period not to exceed six hours, including custody in a city or county jail, if such officer has probable cause to believe that: (1) such person may cause injury to oneself or others, or damage to property; and (2) there is no responsible person or institution to which such person might be released. Any person so held in protective custody shall be permitted to consult with counsel or other persons who may act on such person's behalf. Such person held in protective custody for six hours shall be given an opportunity to post bond for such person's appearance in the municipal court.

(c) Any person held in custody pursuant to the provisions of this section, and who has not made bond for such person's appearance, may be held in custody until the earliest practical time for such person's appearance in municipal court upon a warrant being issued by the municipal court in accordance with K.S.A. 12-4209, and amendments thereto.

(d) Any person who remains in custody for 48 hours pursuant to the provisions of this section after arrest, and who is awaiting a first appearance before a municipal judge in the absence of a warrant being issued, shall be released on the person's personal recognizance. Bond shall be set within 18 hours of the person being placed in custody.

SECTION 5. Schedule of Fines for Violation of Certain Ordinances.

(a) The chief municipal judge shall establish a schedule of fines which shall be imposed for municipal ordinance violations that are classified as ordinance traffic infractions. Also, the municipal judge may establish a schedule of fines which shall be imposed for the violation of certain other ordinances. Such fines shall be imposed upon a voluntary entry of appearance and upon a plea of guilty or no contest to a complaint alleging such violation. Any fine so established shall be within the minimum and maximum allowable fines established by ordinance for such offenses by the governing body. The following traffic violations are specifically excluded from any schedule of fines:

(1) Reckless driving;

(2) Driving while under the influence of alcohol or drugs;

(3) Driving on a suspended or revoked license; and

(4) Refusal of a blood or alcohol test following conviction.

(b) The municipal judge may authorize the Clerk of the Municipal Court or some other person to accept such voluntary appearance by mail or in person, plea of guilty or no contest and payment of the fine imposed by the schedule. Payment may be made by mail or in person and may be made by any method accepted by the City of Wichita and at any location authorized by the chief judge. The complaint shall not have been complied with if a check is not honored for any reason, or the fine is not paid in full prior to the time specified in the notice to appear. When a person charged with an ordinance traffic infraction or other ordinance violation on a schedule of fines makes payment by mail without executing a written waiver of right to trial and plea of guilty or no contest, the payment shall be deemed such an appearance, waiver of right to trial and plea of no contest.

(c) The schedule of fines and persons authorized to accept such pleas shall be conspicuously displayed in the office where such voluntary appearance, plea of guilty and payment of fines occur.

(d) Whenever any person has been found guilty of a violation of city ordinance upon a verdict or plea, the court may suspend the imposition of the sentence, but in no event shall the total period of suspension of sentence exceed the maximum term provided by ordinance for the violation.

SECTION 6. Procedure for Discovery. The code of criminal procedure shall govern, insofar as applicable, the procedure for discovery. Depositions shall not be taken or used except by written agreement of both parties filed with the court or by order of the court and subject to the code of criminal procedure, insofar as applicable.

SECTION 7. Court Costs and Establishing Court Costs for Post-Conviction Motions.

(a) All parties shall be entitled to the use of subpoenas to compel attendance of witnesses within the state. The municipal court judge or clerk or any person so authorized by the judge's written authorization shall issue a subpoena which may be served by a law enforcement officer upon the named persons. Disobedience may constitute contempt.

(b) Fees and mileage of subpoenaed witnesses shall be assessed in the amount set forth in Section 1.04.070 of the Code of the City of Wichita, Kansas, and amendments thereto. The fees and mileage for the attendance of witnesses shall be assessed as costs; provided, the municipal judge may direct that fees and mileage of witnesses subpoenaed by the accused person be charged against such person if the judge finds that there has been abuse of the use of subpoenas by the accused person.

(c) Whenever any motions or applications for the post-conviction remedies are filed, the cost for filing such motion or application shall be assessed in the amount set forth in Section 1.04.070 of the Code of the City of Wichita, and amendments thereto. The cost shall be paid by the person filing such motion or application. Provided, however, that if it be shown to the court that the person filing such motion or application is indigent, the court may, in its discretion, waive the costs provided for herein and the court shall make a finding of indigency and shall note upon the motion, application or order resulting therefrom that the costs referred to herein have been waived.

SECTION 8. (Amended and repealed—See Charter Ordinance No. 237, §§ 8, 13.)

SECTION 9. (Amended and repealed—See Charter Ordinance No. 229, §§ 1, 2.)

SECTION 10. The municipal judge may parole any person confined to jail as a result of a conviction of a violation of a City ordinance and may set such conditions and restrictions of such parole as the judge sees fit to impose, for a term of parole not exceeding two years, and may at any time discharge such person for good cause shown; provided, however, that nothing herein shall authorize or empower the municipal judge to grant parole to any person confined to jail as a result of a conviction of a violation of a City ordinance which provides for a mandatory, minimum sentence of imprisonment, before such person has served such minimum sentence.

The term of parole ordered by the court is subject to renewal and extension for additional periods not exceeding an additional two years for any misdemeanor case upon the municipal court's finding that the defendant has not yet successfully completed the conditions imposed therein within the original term of such parole.

After notice and hearing, the municipal judge may revoke such parole for violation of conditions by directing the Chief of Police or the warrant office to execute the sentence and again confine the accused person to jail for the time specified by the court, which shall not exceed the initial jail sentence imposed, less the time served.

SECTION 11. (a) Whenever a person is found guilty of the violation of an ordinance, the municipal judge may, unless otherwise required by law to impose a mandatory, minimum sentence or fine, imprisonment, or both: (1) release the person without imposition of sentence; (2) release the person on probation after the imposition of sentence, without imprisonment or the payment of a fine or a portion thereof, subject to conditions imposed by the court; (3) impose a sentence of house arrest as provided for in K.S.A. 21-6609, and amendments thereto; or (4) impose such sentence of fine, imprisonment or both, as may be authorized for the ordinance violation.

(b) Whenever a person is found guilty of the violation of an ordinance and there is evidence that the act constituting the violation of the ordinance was substantially related to the possession, use or ingestion of a cereal malt beverage or an alcoholic beverage by such person, the judge may, in addition to the disposition authorized by subsection (a), order such person to attend and satisfactorily complete an alcohol or drug education or training program certified by the chief judge or licensed by the Secretary of Social and Rehabilitation Services or the Secretary of the Department for Children and Families.

(c) Except as provided in subsection (d), in addition to or in lieu of any other sentence authorized by law, whenever a person is convicted of having violated, while under 21 years of age, Section 4.04.017, 4.04.040, 11.38.158 or Chapter 5.26 of the Code of the City of Wichita, and amendments thereto, the municipal judge shall order such person to submit to and complete an alcohol and drug evaluation by a community-based alcohol and drug safety action program certified pursuant to K.S.A. 8-1008, and amendments thereto, and to pay a fee not to exceed the fee established by that statute for such evaluation. If the judge finds that the person is indigent, the fee may be waived.

(d) If the person is 18 or more years of age, but less than 21 years of age and is convicted of a violation of Section 4.04.017, and amendments thereto, involving cereal malt beverage, the provisions of subsection (c) are permissive and not mandatory;

(e) In addition to any other sentence authorized by law, whenever a person is convicted of any criminal offense, the municipal judge shall determine whether the defendant committed a domestic violence offense, as defined by Section 1.06.010. If the judge determines that the defendant has committed a domestic violence offense, the court shall place a domestic violence designation on the criminal case and shall sentence the defendant, in addition to any conditions set forth in paragraph (f) below, to undergo a domestic violence offender assessment conducted by a certified batterer intervention program and follow all recommendations made by such program unless otherwise ordered by the court. The court may order a domestic violence offender assessment prior to sentencing if the assessment or evaluation would assist the court in determining an appropriate sentence. The entity completing the assessment or evaluation shall provide the assessment or evaluation and recommendations to the court and the court shall provide the domestic violence offender assessment to any entity responsible for supervising such defendant. A defendant ordered to undergo a domestic violence offender assessment shall be required to pay for the assessment and, unless otherwise ordered by the court, for completion of all recommendations.

The court shall not place a domestic violence designation on the criminal case and the defendant shall not be subject to the provisions of this section only if the court finds on the record that:

(1) the defendant has not previously committed a domestic violence offense or participated in a diversion upon a complaint alleging a domestic violence offense; and

(2) the domestic violence offense was not used to coerce, control, punish, intimidate or take revenge against a person with whom the offender is involved or has been involved in a dating relationship or against a family or household member.

(f) The court may impose any conditions of probation or suspension of sentence that the court deems proper, including, but not limited to, requiring that the defendant:

(1) Avoid such injurious and vicious habits, as directed by the court or the probation officer;

(2) avoid such persons or places of disreputable or harmful character, as directed by the court or the probation officer;

(3) report to the probation office as directed;

(4) permit the probation officer to visit the defendant at home or elsewhere;

(5) work faithfully at suitable employment insofar as possible;

(6) remain within the state unless the court grants permission to leave;

(7) pay a fine or costs, applicable to the ordinance violation, in one or several sums and in the manner as directed by the court;

(8) support the defendant's dependents;

(9) reside in a residential facility located in the community and participate in educational counseling, work and other correctional or rehabilitative programs;

(10) perform community or public service work for local governmental agencies, private corporations organized not for profit, or charitable or social service organizations performing services for the community;

(11) perform services under a system of day fines whereby the defendant is required to satisfy fines, costs or reparation or restitution obligations by performing services for a period of days determined by the court on the basis of ability to pay, standard of living, support obligations and other factors;

(12) make reparation or restitution to the aggrieved party for the damage or loss caused by the defendant's crime, in an amount and manner determined by the court and to the person specified by the court; or

(13) reimburse the city, in accordance with any order made under subsection (g), for all or part of the reasonable expenditures by the city to provide counsel and other defense services to the defendant.

(g) In addition to or in lieu of any other sentence authorized by law, whenever a person is found guilty of the violation of an ordinance the judge may order such person to reimburse the city for all or a part of the reasonable expenditures by the city to provide counsel and other defense services to the defendant. In determining the amount and method of payment of such sum, the court shall take account of the services provided, the financial resources of the defendant and the nature of the burden that payment of such sum will impose. A defendant who has been required to pay such sum and who is not willfully in default in the payment thereof may at any time petition the court which sentenced the defendant to waive payment of such sum or any unpaid portion thereof. If it appears to the satisfaction of the court that payment of the amount due will impose manifest hardship on the defendant or the defendant's immediate family, the court may waive payment of all or part of the amount due or modify the method of payment.

SECTION 12. (Amended and repealed—See Charter Ordinance No. 237, §§ 11, 13.)

SECTION 13. (Amended and repealed—See Charter Ordinance No. 237, §§ 12, 13.)

SECTION 14. The originals of Charter Ordinances Nos. 122, 163, 164, 167, 168, 170, 175, 199, 202, 204, 210, 217, 218 and 220 of the Code of the City of Wichita, Kansas, are hereby repealed.

SECTION 15. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 16. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 6th of January, 2015.

/s/ Carl Brewer,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Sharon L. Dickgrafe
Interim Director of Law

CHARTER ORDINANCE NO. 225

A CHARTER ORDINANCE AMENDING AND REPEALING SECTIONS 3, 4, AND 5 OF CHARTER ORDINANCE NO. 138 OF THE CITY OF WICHITA, KANSAS, PERTAINING TO PARKING DISTRICTS WITHIN THE CITY OF WICHITA, KANSAS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS.

SECTION 1. Section 3 of Charter Ordinance No. 138 of the City of Wichita, Kansas is hereby amended to read as follows:

Definitions. As used in this Charter Ordinance.

(a) "Parking District" means a parking district that may be established by the City Council in accordance with this charter ordinance.

(b) "City" means the City of Wichita, Kansas.

(c) "City Council" means the Governing body of the City of Wichita, Kansas.

(d) "Parking Facilities" means place or facility located within a Parking District that is acquired, constructed, improved, operated and maintained in accordance with this Charter Ordinance and which is used for the parking and storing of motor and other vehicles and shall, without limiting the foregoing, include all real and personal property, sidewalks, and pedestrian access ways, driveways, roads, approaches, structures, terminals of all kinds, garages, meters, mechanical equipment, and all appurtenances and facilities either on, above or under the ground which are usable in connection with such parking or storing of vehicles.

(e) "Parking Station" means individual parking spaces that accommodates one vehicle.

(f) "Costs" means costs. incurred for preparation of preliminary reports, the preparation of plans and specifications, the preparation and publication of notices of hearings, resolutions, ordinances and other proceedings, necessary fees and expenses of consultants and interest accrued on borrowed money during the period of construction together with the cost of land, materials, labor and other lawful expenses incurred in planning and doing any improvement and may include a

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charge of not to exceed five percent (5%) of the total cost of an improvement or the cost of work done by the city for the services rendered by the city in the administration and supervision of such improvement by its general officers and where property and/or improvements already owned by the city and previously financed by the issuance of other city bonds is to become part of a parking facility the costs may include not to exceed the principal amount of such outstanding bonds plus interest or if such property was not financed by issuance of bonds, the cost the acquisition cost expended by the City in acquiring the property.

(g) "Consultant" means engineers, architects, planners, attorneys, and other persons deemed competent to advise and assist the City Council in the planning and the making of improvements.

SECTION 2. Section 4 of Charter Ordinance No. 138 of the City of Wichita, Kansas is hereby amended to read as follows:

Purpose of the Charter Ordinance. It is declared to be the purpose of the act to promote and stimulate the development and re-development of buildings and property located within parking districts by providing parking to serve the needs of retail, residential and commercial uses that are located within such districts and that may be stimulated to locate in such areas based on the availability of parking.

SECTION 3. Section 5 of Charter Ordinance No. 138 of the City of Wichita, Kansas is hereby amended to read as follows:

Establishment of a Parking District.

(a) The City Council may on its motion, initiate council proceedings to establish or modify a parking district by resolution. Such resolution shall contain the following:

(1) A description of the boundaries of the proposed parking district. (2) A general description of where such parking facilities are to be located within the parking district and an estimate of the number of parking stations to be located in each parking facility. The location of parking facilities and the number of parking stations may after the district is established, without further hearing, be from time to time be amended to meet the parking needs of the district as they arise. (3) The time and place of a public hearing to be held by the City Council to consider establishment of the district.

(b) A copy of the resolution shall be mailed to each owner of land within the proposed parking district not less than 10 days before the date set for hearing on the establishment or modification of a parking district.

(c) The City Council may after the public hearing establish or modify a parking district by ordinance.

SECTION 4. The original versions of Sections 3, 4, and 5 of Charter Ordinance No. 138 of the City of Wichita, Kansas are hereby repealed.

SECTION 5. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City paper.

SECTION 6. This is a Charter Ordinance which shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum to be held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3), of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 21st day of April, 2015.

/s/ Carl Brewer,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Sharon Dickgrafe
Interim City Attorney

CHARTER ORDINANCE NO. 226

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 12-1008 PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS PROVIDING FOR SALARIES OF CITY COUNCIL MEMBERS AND MAYOR OF THE GOVERNING BODY OF THE CITY OF WICHITA AND ESTABLISHING TERMS FOR CITY COUNCIL MEMBERS AND MAYOR AND REPEALING CHARTER ORDINANCES 43, 130, 140, 148, 179, 187, 188 AND 208 IN THEIR ENTIRETY AND REPEALING SECTIONS 2, 4 AND 5 OF CHARTER ORDINANCE 112.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

"The City of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself and hereby makes inapplicable to it, K.S.A. 12-1008, which section applies only to cities of the first class having a population of more than 150,000 operating under the commission-manager form of government and provide substitute and additional provisions as follows:"

SECTION 1. (Repealed by Charter Ordinance No. 231, § 1.)

SECTION 2. (Repealed by Charter Ordinance No. 231, § 1.)

SECTION 3. (Repealed by Charter Ordinance No. 231, § 1.)

SECTION 4. is hereby created to read as follows:

"Bonds for Council Members. The Council members shall be bonded in the amount of $20,000 each, which may be included under the blanket bond of the City of Wichita covering all employees."

SECTION 5. (Repealed by Charter Ordinance No. 231, § 1.)

SECTION 6. Section 2 of Charter Ordinance 112 is hereby amended to read as follows:

"Eligibility. Any person desiring to become a candidate for City Council member shall file with the City Clerk before the filing deadline a statement of such candidacy on a form furnished by the City Clerk. The City Clerk shall record the same and transmit it, together with the filing fee or petition, within three business days to the Sedgwick County Election Commissioner.

Each such filing shall be accompanied by a filing fee of fifty dollars or, in lieu of such filing fee, by a petition signed by one hundred (100) qualified electors of the council district for which the petition is filed."

SECTION 7. Section 4 of Charter Ordinance 112 is hereby amended to read as follows:

"The timing of City primary and general elections shall be governed by the provisions of K.S.A. 25-2102 et seq. and amendments thereto. General and Primary elections will be conducted in the manner prescribed by applicable Charter Ordinances and state law.

City elections shall be nonpartisan."

SECTION 8. is hereby created to read as follows:

"Term of Office. Council members shall be elected for a four-year term and until successors have been duly elected and qualified. Council members whose terms expire in April of 2017 or April of 2019 shall continue to serve until their successor is duly elected and qualified following the election held on the Tuesday following the first Monday of November in 2017 and 2019 respectively. The term of office for each newly elected Council member shall commence on the second Monday in January following the election. No Council member shall serve more than two full consecutive terms."

SECTION 9. is hereby created to read as follows:

"Mayor's Term of Office. The Mayor shall be elected for a four-year term and until a successor has been duly elected and qualified. The Mayor whose term expires in April of 2019 shall continue to serve until his successor is duly elected and qualified following the election held on the Tuesday following the

first Monday of November in 2019. The term of office for such newly elected Mayor shall commence on the second Monday of January following the election. No Mayor shall serve more than two full consecutive terms."

SECTION 10. Charter Ordinances 43, 130, 140, 148, 179, 187, 188 and 208 are hereby repealed in their entirety.

SECTION 11. Sections 2, 4 and 5 of Charter Ordinance 112 are hereby repealed.

SECTION 12. This ordinance shall be published once each week for two consecutive weeks in the official newspaper.

SECTION 13. This is a Charter Ordinance and will take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this Ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case, this Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED by the governing body, not less than two-thirds of the members elect voting in favor thereof this 8th day of December, 2015.

/s/ Jeff Longwell,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Jennifer Magaña
Director of Law

CHARTER ORDINANCE NO. 227

A CHARTER ORDINANCE REPEALING CHARTER ORDINANCE NO. 105 OF THE CITY OF WICHITA, KANSAS, EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 41-2622, 41-2702, 41-2703(c) AND 41-310 AND AMENDMENTS THERETO, ESTABLISHING A SCHEDULE OF FEES FOR ALCOHOLIC LIQUOR AND CEREAL MALT BEVERAGE LICENSES AUTHORIZED BY TITLE 4 OF THE CODE OF THE CITY OF WICHITA, KANSAS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1: Charter Ordinance No. 105 of the city of Wichita, Kansas, is hereby repealed.

SECTION 2. This Charter Ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 3. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for referendum is filed requiring a referendum to be held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3), of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 15th day of March, 2016.

/s/ _____
Jeff Longwell, Mayor

ATTEST:

/s/ _____
Karen Sublett, City Clerk

Approved as to Form:

/s/ _____
Jennifer Magaña, City Attorney
and Director of Law

CHARTER ORDINANCE NO. 228

A CHARTER ORDINANCE ESTABLISHING THE METHODS OF BUILDING PUBLIC IMPROVEMENT PROJECTS, EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISIONS OF K.S.A. 13-1017 AND REPEALING CHARTER ORDINANCES 111, 151, 158, 198, 203, AND 222.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. "Exemption from K.S.A. 13-1017.

The City of Wichita, Kansas, a city of the first class by the power invested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to and does exempt itself from and makes inapplicable to it K.S.A. 13 1017, which applies only to cities of the first class and applies to said City, and provides substitute and additional provisions as herein set forth."

SECTION 2. "Requirements - Public Improvements.

(a) Before the construction or reconstruction of any sidewalk, curb, gutter, bridge, pavement, sewer or the public improvement of any street, highway, public grounds, or construction, reconstruction or demolition of any public building or facility, or any other kind of public improvement in the City of Wichita is commenced or ordered by the governing body, or by the governing body of any Board, Authority, or other agency of the City which is granted the authority to make public improvements by the statutes of the State of Kansas, or under their authority, a detailed estimate of the cost of the improvements shall be made under oath by the City Engineer (or some other competent and credentialed city staff person). Such estimate shall be submitted to the appropriate governing body for its action thereon. In all cases where the estimated cost of the contemplated building, facility or other improvement amounts to more than fifty thousand dollars ($50,000.00), the governing body of the City, Board, Authority, or other agency of the City shall by a resolution determine whether the work can best be

accomplished by the City forces or by contract. If the work is to be done by other than City forces, sealed proposals for the improvements shall be invited by advertisement, published by the City or any Board, Authority or other agency of the City once in the official City paper or as otherwise allowed by statute or ordinance. The appropriate governing body shall thereafter let all such work by contract to the lowest responsive and responsible bidder, if there is any whose bid does not exceed the estimate; provided that the appropriate governing body, in lieu of awarding the bid to the lowest responsive and responsible bidder, may reject all bids submitted. If all bids submitted exceed the estimated cost, the governing body may reject all bids or may accept the bid and contract with the lowest responsive and responsible bidder exceeding the engineer's estimate, if the governing body finds that course of action to be in the best interest of the City.

(b) If the governing body rejects all responsive and responsible bids submitted or chooses to not enter into a contract at the lowest price exceeding the engineer's estimate, the same proceedings as before shall be repeated. Thereafter, if no responsive and responsible bid is received, the governing body shall have power to make the improvements within the estimated cost thereof and shall further have the power to purchase the necessary tools, machinery, apparatus, and materials; employ the necessary labor; and construct the necessary plant or plants for the purpose of carrying into effect the provisions of this ordinance.

(c) The City Council may adopt by resolution a pre-bid qualification policy for bidders that sets standards that bidders must meet and maintain to be eligible to bid on City public improvement projects. If a pre-bid qualification policy is established, then the City shall not accept bids from bidders who do not meet pre-bid qualification standards that have been set for the public improvement project being bid. The City Council may adopt by ordinance the pre qualification standards used by any federal or State of Kansas agency, or those of any other Kansas municipality for standard or elective application to City projects, or may by resolution authorize staff to establish independent pre-bid qualification standards.

(d) The City Council may also adopt by resolution a policy on change orders. If a change order policy is adopted then change orders exceeding fifty thousand dollars ($50,000.00), shall be exempt from bid requirements and exempt from separate City Council approval set forth herein, up to the authority limit pre-approved by City Council resolution. A policy that exempts bid requirements and separate City Council approval shall apply only to change orders that arise from unforeseen conditions that are discovered after bids are let and shall apply only to change orders that do not expand the scope of work to be performed under the original contract. A change order policy shall set a default authority level for staff on change orders exceeding fifty thousand dollars ($50,000.00) at ten percent (10%) of the original bid, but may allow City Council to set a staff authority level for change orders on any specific project at either a lesser or greater ratio to the original bid.

(e) This section should not be construed to include any repair or maintenance work not amounting to substantial alteration, addition or change to any structure, street or facility. 'Public improvement' as used herein shall not include the making of repairs or the maintenance of any building, street, sidewalk or other public facility in the City by employees of the City, of a Board, Authority, or other agency of the City and shall not include the making of any expenditures from the City, Board, Authority, or other agency of the City for such purposes."

SECTION 3. "Commencement of Improvement.

Before any type of public improvement is commenced, the money to pay for the same shall be available in the City Treasury as provided by law or provision may be made for the issuance of internal improvement bonds to pay for any such improvements as provided by law."

SECTION 4. "Exemptions from Bid Requirements.

None of the requirements found in Section 2 of this Charter Ordinance shall apply under the following circumstances:

(a) To improvements which are constructed on or to real estate owned by the City of Wichita and leased to a tenant industry under the authority of K.S.A. 12-1740, *et seq*., as amended. In such cases, the tenant industry shall contract for such improvements, provided, that all the provisions of the Lease Agreement between the City of Wichita and such tenant industry and all City Codes shall be applicable to the construction of such improvements, provided, further that before the commencement of any such construction work the tenant industry shall provide instrument(s) of surety guaranteeing the full and faithful completion of construction of such improvements and in an amount to be approved by the City of Wichita, and provided, further that no funds derived from tax levies shall be employed in such construction;

(b) To public improvements which are to be constructed on or to real estate owned, in whole or in part, by the City of Wichita and which public improvements are to be constructed by a developer pursuant to a development agreement between the City of Wichita and such developer; provided, that such developer has been chosen to develop such public improvements in accordance with all requirements of law and the procedures and policies of the City of Wichita; provided, further that all the provisions of such development agreement between the City of Wichita and the developer and all City Codes shall be applicable to the construction of such public improvements, provided, further that before the commencement of any such construction work the developer shall provide instruments of surety guaranteeing the full and faithful completion of construction of such improvements and in an amount to be approved by the City of Wichita, and provided, further that the provisions of this subsection may only be utilized if the governing body has, prior to the commencement of the construction of such public improvements, conducted a public hearing to consider whether to implement the provisions of this subsection and adopted an ordinance approving the said construction under the provisions of this Charter Ordinance, which ordinance shall be approved by at least two-thirds of the members of the governing body."

SECTION 5. "Design-Build Projects.

(a) The requirements of Section 2 of this Charter Ordinance shall also not apply to projects that are constructed according to a design-build method of construction. For purposes herein 'design-build' shall be defined to mean a method of constructing public improvements in which one company or a consortium of companies are responsible for both design and construction under a lump-sum, fixed price or a not to exceed price contract that covers both design and construction activities. This method is used to obtain the greatest constructed value for the disclosed project budget. A design-build project shall be initiated by the City seeking invitations for proposals. Invitations for proposals shall contain project conditions, requirements and parameters.

(b) Design-build proposals shall set forth initial design concepts and the scope of work to be provided. Design-build projects shall be awarded on the basis of the greatest public value to be obtained, measured by design concepts, choice of and utilization of materials to best advantage, experience of company or consortium of companies submitting proposals, life cycle costing and upon other pertinent criteria that shall be set by the City Council prior to the acceptance of proposals. The City Council reserves the right to reject all proposals submitted."

SECTION 6. "Construction Manager at Risk Projects.

(a) The requirements of Section 2 of this Charter Ordinance shall also not apply to projects that are constructed according to a construction manager at risk method of construction. For purposes herein, 'construction manager at risk' shall be defined to mean

a method of constructing public improvements in which one company or a consortium of companies is responsible for completion of a project at an agreed constructed value and on an agreed schedule, and is required to solicit competitive bids for the trade packages developed for the project and to enter into the trade contracts with the lowest responsible bidders. The competitive bids obtained on the trade packages shall be available for review and audit by the City and its representatives within three days upon request.

(b) The construction manager at risk method may be used when the City Council finds that to do so will serve the public interest due to any of the following criteria: the potential of substantial savings of time or money, the ability to overlap design and construction phases is required to meet the needs of the end user, the need for an accelerated schedule to make repairs resulting from an emergency or exigency, or the project presents significant phasing or technical complexities or both requiring the use of an integrated team of designers and contractors to solve project challenges.

(c) A construction manager at risk project shall be initiated by the City presenting invitations for proposals. A construction manager at risk shall be selected before completion of construction documents, and as early as the initiation of the project. Invitations for proposals shall contain project conditions, requirements and parameters. Submitted proposals shall address the proposer's experience with similar projects and the project delivery system, references from design professionals and owners of projects constructed using this delivery system, the proposer's project management approach, its identification and intended solution to the presenting project challenges, its bonding capacity, an overview of its preconstruction services, construction planning services, construction coordination services and safety plan, along with stated fees for all services, including general conditions, overhead and profits.

(d) The construction manager at risk contract shall be awarded on the basis of the greatest public value to be obtained, measured by the criteria and elements of each project as identified in this Section, all of which are to be set by the City Council prior to the acceptance of proposals. The City Council reserves the right to reject all proposals submitted."

SECTION 7. Repeal.

Charter Ordinances No. 111, 151, 158, 198, 203 and 222 are hereby repealed.

SECTION 8. Publication.

This Charter Ordinance shall be published once each week for two consecutive weeks in the official City paper.

SECTION 9. Effective date.

This is a Charter Ordinance which shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum be held on the Ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas, in which case the Ordinance shall become effective if approved by a majority of the electors voting thereon.

Passed by the Governing Body, not less than two thirds of the members elect voting in favor thereof, this 28 day of March, 2017.

/s/ _____
Jeff Longwell, Mayor

Attest:

/s/ _____
Karen Sublett, City Clerk

Approved as to form:

/s/ _____
Jennifer Magaña, City Attorney
and Director of Law

CHARTER ORDINANCE NO. 229

(Repealed by Charter Ordinance No. 237, § 13)

CHARTER ORDINANCE NO. 230

A CHARTER ORDINANCE OF THE CITY OF WICHITA KANSAS, AMENDING CHARTER ORDINANCE NO. 215 RELATING TO THE POLICE AND FIRE RETIREMENT SYSTEM OF THE CITY OF WICHITA AND REPEALING THE ORIGINAL OF SAID CHARTER ORDINANCE.

WHEREAS, the City of Wichita, Kansas, has created and continued, by various charter ordinances, a retirement system for commissioned officers of the Wichita Police Department and Wichita Fire Department (the "Retirement System"); and,

WHEREAS, since their original adoption, the charter ordinances providing for the creation, modification and continuation of the Retirement System have been from time to time amended, supplemented and/or replaced; and,

WHEREAS, as part of the process to update tax provisions, and to adjust certain provisions relating to optional reversionary annuities and purchases of service credit, the City of Wichita desires to amend certain provisions of the retirement plans within the Retirement System; and,

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, a city of the first class, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby continues its election, initially made in Charter Ordinance No. 19 of the City of Wichita, and preserved in subsequent charter ordinances amendatory thereto, to exempt itself from and makes inapplicable to it Section 13-14a01 through and including Section 13-14a14 of the Kansas Statutes Annotated; and further, the City hereby enacts the following sections hereof in substitution of, and as a complete replacement for, all currently existing provisions of Charter Ordinance No. 215 of the City of Wichita.

SECTION 2. Name and Effective Date.

The Police & Fire Retirement System of Wichita, Kansas, hereinafter referred to as the "Retirement System" is hereby established to

provide retirement, survivor, death and other benefits for Police and Fire Officers of the City of Wichita and their dependents, continuing the provisions of the Retirement System, which was established January 1, 1965.

SECTION 3. Definitions.

The following words and phrases as used in this ordinance, unless a different meaning is plainly required by the context, shall have the following meanings:

"Act of Duty" means an act performed by a Member within the scope of occupational duties inherently involving special risks not generally assumed by a citizen in the ordinary walks of life, for the purpose of protecting life or property, including any act of heroism as a Member.

"Actuarial Tables" means such tables of mortality and rates of interest as may be adopted by the Board.

"Board" means the Board of Trustees of the Police & Fire Retirement System.

"City" means the municipal government of the City of Wichita, Kansas.

"City Council" means the governing body of the City of Wichita, Kansas.

"Deferral Period" means that period of time between the date a vested employee leaves Service and the date upon which the employee is eligible for and begins to receive a pension benefit.

"Deferred Retiree" means a vested Member who has withdrawn from Service, has not elected to receive a refund of contributions and any applicable interest, and is eligible to receive retirement benefits at a future date.

"Disability" means total inability to perform permanently the duties of the position held by the Member at date of Disability due to a physical or mental incapacity resulting from external force or violence or disease.

"DROP" means the Deferred Retirement Option Plan available to Retirement System Members for a maximum period of five (5) years. The DROP is to be phased in over a three (3) year period starting on January 1, 2000. From January 1, 2000 to December 31, 2000, no Member may utilize the DROP; beginning January 1, 2001 to December 31, 2001, Members may select a backward DROP of up to one (1) year; beginning January 1, 2002 to December 31, 2002, Members may select a backward DROP of up to three (3) years; beginning January 1, 2003, Members may select a backward DROP of up to five (5) years.

"DROP Period" means the number of months between the actual retirement date under the DROP and the Member's date of Withdrawal from Service.

"Final Average Salary" means the average annual Salary for the three (3) highest consecutive years of Service within the last ten (10) years of Service as a Member, and which shall be computed on the basis of the seventy-eight (78) consecutive pay periods within which the Salary is the highest.

"Fund" means the Police & Fire Retirement Fund as first established by Charter Ordinance No. 5 of the City of Wichita, Kansas.

"Internal Revenue Code" refers to the Internal Revenue Code of 1986 or 1954, as applicable to governmental plans, and regulations promulgated with respect to the Internal Revenue Code.

"Member" means any Police or Fire Officer of the City receiving compensation and contributing to the Police & Fire Retirement System of Wichita.

"Minor Child" or "Minor Children" eligible for consideration under the provisions of the ordinance means children of the blood and adopted children, provided the proceedings for adoption shall have been initiated at least one (1) year prior to the date of death of the Member or Retiree.

"Other Governmental Employment" shall mean a Member's documented prior periods of fulltime employment in a position or positions in federal, state or local government (other than the City of Wichita) or periods of military service, whether active or reserve.

"Past Wichita Employment" shall mean a Member's documented prior periods of fulltime

employment in a position or positions with the City of Wichita, other than as a Police or Fire Officer.

"Permissive Service Credit Purchases" from and after March 1, 2018, shall mean money transfers to the Police & Fire Retirement System for the purpose of purchasing Permissive Service Credit, based on Other Governmental Employment or Past Wichita Employment, as provided in Section 38 of this Charter Ordinance.

"Permissive Service Credit," except as hereafter specified for purposes of Section 36, shall mean additional service credit purchased by a Member based on Other Governmental Employment or Past Wichita Employment, as provided in Section 38 of this Charter Ordinance, provided, however, that for purposes of Section 36, the term shall have the meaning assigned to it in Subsection (k)(4) of Section 36.

"Police or Fire Officer" means, in the case of a Police Officer, any employee of the Police Department of the City holding the rank of Police Officer, including probationary Police Officers or any higher rank; and, in the case of a Fire Officer, any employee of the Fire Department of the City holding the rank of fire fighter, including probationary fire fighter or any higher rank; and in any case, commissioned officers. Effective June 29, 1996, the term "Police or Fire Officer" includes safety officers employed by the Wichita Airport Authority who shall be considered Fire Officers for purposes of electing representatives to the Board. The term "Police or Fire Officer" shall not include: (1) any person privately employed as a Police or Fire Officer; (2) any person temporarily employed as a Police or Fire Officer for an emergency; or, (3) any civilian employee in the Police or Fire departments.

"Prior Service" means service rendered by a Member prior to January 1, 1965.

"Regular Interest" means interest at seven percent (7%) per annum, compounded monthly.

"Retiree" means a Police or Fire Officer who is receiving a retirement benefit from the Retirement System.

"Salary" means the base rate of pay being paid in accordance with a Salary ordinance (and shall include longevity pay, educational pay, EMT pay, MICT, acting, Kelly, court appearance, bomb tech pay, flight pay, standby pay, and shift differential in the computation of benefits). Salary in excess of the limitations set forth in Section 401(a)(17) of the Internal Revenue Code shall be disregarded.

"Service" means employment with the City as a Police or Fire Officer and those periods of military service, Sick Leave, and/or Disability for which Members are entitled to Service credit under the provisions of this ordinance.

"Service-Connected Disability" means any physical or mental incapacity resulting from external force, violence, or occupational disease occasioned by an Act of Duty as a Police or Fire Officer, imposed by the ordinance or rules and regulations of the City, or any other Disability, which may be directly attributable to the performance of an Act of Duty.

"Service-Connected Disease" shall be applicable to any Member having five (5) years of Service or more, and shall mean any sickness, disease, or illness of the heart, lungs, or respiratory tract of a Member which may be determined to be directly attributable to his or her employment as a Police or Fire Officer, including exposures to heat and extreme cold, inhalation of heavy smoke, fumes or poisonous, toxic or chemical gases, while in the performance of an Act of Duty.

"Sick Leave" shall be defined as part of Service: provided that unused accumulated Sick Leave shall not be used to meet the existing age or Service requirements heretofore established under Plans A, B, and C-79.

"Withdrawal from Service" means complete severance of employment of any Member as an employee of the City by resignation, discharge, or dismissal.

SECTION 4. Continuation of Three Plans.

There are hereby continued in existence Plans A, B, and C-79. Plan A applies to all Police and Fire Officers entering the Service of the City between December 31, 1964 and January 1, 1979. Plan B applies to those Police and Fire

Officers with Prior Service who chose to participate in Plan B. Plan C-79 applies to Police and Fire Officers newly employed or re-employed by the City on or after January 1, 1979.

It is the intent that the Police & Fire Retirement System of Wichita, KS plan be established as a qualified governmental pension plan under Section 401(a) and 414(d) of the Internal Revenue Code. Retirement plan assets are to be held in a trust as required under Section 401(a) of the Internal Revenue Code. The Board shall distribute the corpus and income of the retirement plan to the members and their beneficiaries in accordance with the retirement plan's law. At no time prior to the satisfaction of all liabilities with respect to members and their beneficiaries shall any part of the corpus and income be used for, or diverted to, purposes other than the exclusive benefit of the members and their beneficiaries. Upon complete or partial termination of the retirement plan, the rights of members to benefits accrued to the date of termination, to the extent funded, or to the amounts in their accounts are nonforfeitable, and amounts in their accounts may be distributed to them.

SECTION 5. Membership.

Membership of the Retirement System shall include:

(a) Any person becoming a Police or Fire Officer on or after January 1, 1965.

(b) Any person who was a Police or Fire Officer on December 31, 1964. Any Police or Fire Officer who was temporarily absent on December 31, 1964, due to sickness or Disability, and any such person on an approved leave of absence on said date for any cause, provided such leave shall not have extended for more than one (1) year continuously, except for military service, shall be considered as a Police or Fire Officer on such date.

SECTION 6. Retirement System Funding.

An annual determination shall be made of the actuarial reserve requirements for the benefits provided herein for the Members and their beneficiaries based upon such Member's current and future Services. In addition to interest income and other income accruing to the Retirement System, these requirements shall be by Member contributions and City contributions as follows:

(a) From and after August 7, 1999, each Member of Plan A shall contribute eight percent (8%) of Salary earned and accruing after such date, each Member of Plan B shall contribute six percent (6%) of Salary earned and accruing after such date, and each Member of Plan C-79 shall contribute seven percent (7%) of Salary earned and accruing after such date as their share of the cost of the benefits provided herein.

These contributions shall be made in the form of a deduction from Salary.

(b) The City shall make bi-weekly contributions in an amount, which will be sufficient to provide actuarial reserves for earned benefits and the expenses of plan administration. In the event that Police and Fire Officers are paid other than on a bi-weekly basis, the City shall make such contributions with the same frequency as Police and Fire Officers are paid.

(1) To provide for any unfunded accrued liability, the City shall contribute a sum sufficient to amortize such liability over a period of not more than twenty years.

(2) The amount of City contribution provided in this section shall be established by applying percentage rates of contribution as actuarially determined to the salaries being paid to the Members during each payroll period, and the resulting amounts shall be remitted by the City to the Retirement System concurrently with the payment of the salaries of the Members.

(3) For the purpose of funding all obligations of the Retirement System under the provisions of this ordinance over and above Member contributions and other income accruing to the Retire-

ment System, as herein provided, the City may levy a tax, which levy shall be in addition to the levies now authorized by law for corporate or other purposes.

(4) The City shall pick up the employee contribution required by subsection (a) of this section for all Salary earned after the effective date of this subsection. The contributions so picked up shall be treated as employer contributions in determining tax treatment under the Internal Revenue Code. The City shall pick up these employee contributions from funds established and available in the salaries account, which fund would otherwise have been designated as employee contributions and paid to the Retirement System. Employer contributions picked up by the City pursuant to this subsection shall be treated for all other purposes of this and other laws of the City in the same manner and to the same extent as employer contributions made prior to the effective date of this subsection. This subsection is effective for pay periods beginning on and after January 1, 1994.

(5) Forfeitures may be used to reduce City contributions but should not be used to increase benefits, in compliance with Section 401(a)(8) of the Internal Revenue Code.

SECTION 7. Composition; Expenditures.

(a) The Fund shall consist of all moneys received from contributions made by employees, refunds made by employees on re-employment, investments, earnings, and moneys paid into the Fund by the City.

(b) All benefits paid from the Retirement System shall be distributed in accordance with the requirements of section 401(a)(9) of the Internal Revenue Code and the regulations under that section, as applicable to a governmental plan within the meaning of Section 414(d) of the Internal Revenue Code. This is being adopted in accordance with Section 823 of the Pension Protection Act of 2006. In order to meet these requirements, the Retirement System shall be administered in accordance with the following provisions:

(1) Distribution of a Member's benefit must begin by the required beginning date, which is the later of the April 1 following the calendar year in which the Member attains age 70 ½ or April 1 of the year following the calendar year in which the Member retires. If a Member fails to apply for retirement benefits by the later of either of those dates, the Board shall begin distribution of the monthly benefit as required by this rule in the form provided in Sections 13 or 15;

(2) The Member's entire interest must be distributed over the Member's life or the lives of the Member and a designated beneficiary, or over a period not extending beyond the life expectancy of the Member or of the Member and a designated beneficiary. The life expectancy of a Member or the Member's spouse may not be recalculated after the benefits commence;

(3) The Retirement System, pursuant to a qualified domestic relations order, may establish separate benefits for a Member and nonmember;

(4) If a Member dies before the required distribution of the Member's benefits has begun, the Member's entire interest much be either:

(A) distributed (in accordance with federal regulations) over the life or life expectancy of the designated beneficiary, with the distributions beginning no later than December 31 of the calendar year immediately following the calendar year in which the Member died; or

(B) distributed within five years of the Member's death;

(5) If a Member dies after the required distribution of benefits has begun, the remaining portion of the Member's interest must be distributed at least as rapidly as under the method of distribution before the Member's death;

(6) The amount of an annuity paid to a Member's beneficiary may not exceed the maximum determined under the incidental death benefit requirement of Section 401(a)(9)(G) of the Internal Revenue Code, and the minimum distribution incidental benefit rule under Treasury Regulation Section 1.401(a)(9)-6, Q&A 2;

(7) The death and disability benefits provided by the Retirement System are limited by the incidental benefit rule set forth in Section 401(a)(9)(G) of the Internal Revenue Code, and Treasury Regulation Section 1.401-1(b)(1)(i) or any successor regulation thereto. As a result, the total death or disability benefits payable may not exceed 25% of the cost for all of the Members' benefits received from the Retirement System; and

(8) Notwithstanding the other provisions of this rule or the provisions of the Treasury Regulations, benefit options may continue so long as the option satisfies Section 401(a)(9) of the Internal Revenue Code based on a reasonable and good faith interpretation of that section.

(c) The Board is authorized to expend funds for the following purposes: clerical and secretarial work, stationery, supplies and printing; and professional services of actuaries, accountants, physicians, and attorneys, the foregoing list not being intended to limit or exclude expenditures for other proper purposes.

(d) The Board may not engage in a transaction prohibited by section 503(b) of the Internal Revenue Code.

(e) Effective as of July 1, 1989, the Board will determine the amount of any benefit that is determined on the basis of actuarial assumptions using assumptions adopted by the Board by rule; such benefits will not be subject to employer discretion. The Board rules adopted for this purpose are incorporated into this section as part of the plan document.

SECTION 8. Accounting and Actuarial.

(a) The assets of the Retirement System shall be held for the express purposes set forth in the provisions of this ordinance. An adequate system of accounts and records shall be established and maintained.

(b) An actuarial experience study of the Retirement System shall be made at least once every five (5) years by an actuary engaged by the Board to check demographic and economic assumptions used in the calculations of liabilities and costs. An annual actuarial valuation of the Retirement System shall be made as of December 31st of each year for the purpose of establishing its financial condition and checking its current operating experience.

(c) Any excess balance in the Retirement System as determined in such valuation shall be applied to reduce the City's rate of contribution in succeeding years. Such contribution adjustments shall be made upon recommendation of the actuary.

SECTION 9. Management-Policy Direction.

The Retirement System continued and maintained by this ordinance shall be construed to be a trust, separate and distinct from all other entities. The responsibility for the direction and operation of the Retirement System, and for making effective the provisions hereof, is hereby vested in a Board. The Board shall consist of sixteen (16) Members, as follows:

(a) The City Manager, or an individual appointed by the City Manager (the City Manager's Designee);

(b) The Chief of the Police Department and the Chief of the Fire Department;

(c) Seven (7) trustees appointed by the City Council who need not be employees of the City. Trustees appointed by the Council shall be appointed for such terms and shall be subject to such limitation of terms as adopted by ordinance;

(d) Three (3) Police Officers and three (3) Fire Officers, each having at least five (5) years of Service, who shall be Members of the Retirement System and shall be elected by the Members from the respective occupational groups according to rules of election to be adopted by the Board. Elected trustees shall serve four-year terms expiring on December 31st of the fourth year following their election;

(e) The City Manager's designee shall serve a two (2) year term ending on August 31st of the second year following appointment;

(f) An elected or appointed trustee shall continue in office until the trustee's successor is elected or appointed, and has qualified. Any elected trustee shall be disqualified to serve in that capacity upon termination of Service with the City. If a vacancy occurs in the office of elected trustees, a successor shall be elected for the unexpired term of office within thirty (30) days by a special election, unless the regular bi-annual election occurs sooner. If a vacancy occurs in the office of an appointive trustee, such vacancy shall be filled for the unexpired term in the same manner as the office was previously filled;

(g) Each trustee shall take an oath that, so far as it devolves upon the trustee, the trustee will diligently and honestly administer the affairs of the Board, and that the trustee will not knowingly or willfully permit to be violated any of the provisions of the ordinances applicable to the Retirement System. Such oath shall be subscribed by the trustee making it, and certified by the officer before whom it is taken, and immediately filed with the City Clerk. A trustee shall be deemed to have qualified for membership on the Board when such oath shall have been filed;

(h) Subject to the limitations prescribed herein, the Board shall from time to time establish rules and regulations for the administration of the Retirement System and to implement the provisions of this ordinance as may be required. It shall hold regular meetings at least quarterly in each year and such special meetings as may be deemed necessary. The annual meeting shall be held in the month of January of each year. All meetings shall be open to the public. A record of proceedings of all meetings shall be kept by the Board;

(i) Each trustee shall be entitled to one (1) vote on the Board, and the concurrence of a majority vote of the trustees present at the meeting shall be necessary; provided, however, that in all matters relating to: (1) changes in the ordinances requiring City Council action; (2) Disability applications; (3) hiring or dismissal of consultants; and (4) alteration of the Investment Committee's recommendations for investment advisor, actuary, asset allocation plan and investment policy, at least nine (9) affirmative votes shall be required for passage; and

(j) A trustee shall receive no Salary while serving in that capacity, provided, however, that Police and Fire Officers elected to the Board shall be permitted to receive their regular Salary from the City of Wichita.

SECTION 10. Officers and Their Duties.

The Board shall have the following officers, whose duties shall be prescribed by the by-laws to be adopted by the Board:

(a) A President, a First Vice President, and a Second Vice President shall be elected from among its trustees.

(b) The Administrator of the Retirement System shall be the Pension Manager who is appointed to such position by the City Manager.

(c) The City Treasurer, ex-officio, shall be treasurer of the Retirement System.

(d) The City Attorney, ex-officio, shall be legal counsel to the Board, and shall represent the Board in all litigation affecting the Retirement System.

(e) An actuary shall be appointed to serve as technical advisor in the administration of the Retirement System on matters pertaining to the technical and actuarial aspects thereof.

(f) A specializing physician or physicians shall be appointed at the discretion of the Board to pass upon claims for Service Connected and non-Service Connected Disability benefits, on medical questions pertaining to such claims, and on any other matters requiring medical advice that may arise in administration of the Retirement System.

SECTION 11. Administration.

Subject to the direction of the Board, the Administrator of the Retirement System shall:

(a) Employ such clerical and professional services as may be required for the proper operation of the Retirement System, whose compensation shall be fixed by the City Council;

(b) Establish and maintain records, files, and accounts in such form and scope as will give effect to the requirements of the Retirement System in accordance with the provisions hereof;

(c) Accumulate actuarial data concerning the operating experience of the Retirement System in such form as is necessary for the annual actuarial valuations and periodic actuarial studies in accordance with the recommendations of the actuary;

(d) Prepare periodic reports as may be required for the efficient administration of the Retirement System;

(e) The Administrator shall also prepare each year the annual report of the Board, to be submitted to the City Council embodying, among other things, a statement of assets, liabilities and reserves certified by the actuary, an accountant's balance sheet supported by a statement of income and expenditures, a listing of investments owned by the Retirement System, a detailed statement of investments acquired and disposed of during the year covered by the report, and such other financial and statistical data as may be deemed necessary for a proper interpretation of the condition of the Retirement System and the results of its operations. The Board shall cause to be distributed among the Members of the Retirement System a synopsis of such annual report.

SECTION 12. Investments.

(a) The Board shall invest and reinvest any portion of the Fund not needed for immediate benefit payments through a joint investment fund comprised of assets of the Wichita Employees' Retirement System and Police & Fire Retirement Systems (which may do business, in the aggregate, under the name "Wichita Retirement System" or "Wichita Retirement Systems"). The joint investment fund shall be overseen by an investment committee comprised of trustee representatives elected from both Boards and a City Manager's designee (to be known as "The Joint Investment Committee as Trustees of the Wichita Retirement Systems"), which committee shall be authorized to execute agreements with investment managers, actuaries, custodians, subcustodians and consultants on behalf of the Wichita Retirement Systems. The administrator shall be an ex-officio, non-voting Member of the investment committee.

(b) To achieve the investment objective of making the Fund as productive as possible, the following standards and limitations are set forth:

(1) In investing and reinvesting monies in the Fund and in acquiring, retaining, managing, and disposing of investments of the Fund, there shall be exercised the judgment and care under the circumstances then prevailing which people of prudence, discretion, and intelligence exercise in the management of their own affairs, not in regard to specula-

tion, but in regard to the permanent disposition of their funds, considering the probable income as well as the probable safety of their capital. Within the limitations of the foregoing standard and subject to the following requirements, there may be acquired, retained, managed, and disposed of as investments of the Fund every kind of investment which people of prudence, discretion, and intelligence acquire, retain, manage, and dispose of for their own account;

(2) The proportion of the funds invested in corporate preferred and common stocks shall not exceed seventy percent (70%);

(3) Investments may be made in any pooled arrangement such as a mutual fund, separate account, or commingled fund operated by a qualified investment counselor, an insurance company, or a bank;

(4) Investments managed by in-house staff will be restricted to high-grade marketable fixed income securities;

(5) Other investments separately managed by a qualified investment counselor, an insurance company, or a bank, who represent that they act as a fiduciary, will be handled similarly to most other clients of the managing firm, except for holdings of money market instruments or their equivalent;

(6) The Board shall impose whatever limitations are deemed appropriate under its investment policy statement;

(7) The proportion of the Fund invested in securities of a corporation organized under the laws of a country other than the United States of America and securities issued by a foreign country or political subdivision thereof shall not exceed a total of thirty-five percent (35%);

(8) Notwithstanding any contrary provision in this ordinance, assets of the Retirement System may be transferred to a group trust meeting the requirements of Revenue Ruling 2011-1 that is operated or maintained exclusively for the commingling and collective investment of monies provided that the funds in the group trust consist exclusively of trust assets of pension, profit-sharing and stock bonus trusts or custodial accounts qualifying under Section 401(a) of the Internal Revenue Code that are exempt under Section 501(a) of such Code; individual retirement accounts that are exempt under Section 408(e) of the Internal Revenue Code; eligible governmental plan trusts or custodial accounts under Section 457(b) of the Internal Revenue Code that are exempt under Section 457(g) of such Code; custodial accounts under Section 403(b)(7) of the Internal Revenue Code; retirement income accounts under Section 403(b)(9) of the Internal Revenue Code; and governmental plans under Section 401(a)(24) of the Internal Revenue Code. Following the investment committee's selection of such a group trust for investment, and upon the transfer of assets of the Retirement System to such group trust, the group trust shall be deemed adopted as a part of each of the plans of the Retirement System as required by Revenue Ruling 2011-1 for the duration of such investment.

For purposes of valuation, the value of the interest maintained by the plan in such group trust shall be the fair market value of the portion of the group trust held for the plan, determined in accordance with generally recognized valuation procedures.

(c) Nothing in this ordinance, however, shall be construed so as to give the Board at any time authority to invest directly or indirectly in any:

(1) Real estate; except in pooled arrangements such as a mutual fund, separate account or commingled fund operated by a qualified investment counselor or an insurance company. The amount of such investment shall not exceed ten percent (10%) of the Fund;

(2) Private equity; except in a commingled fund-of-funds vehicle operated by a registered investment advisor or a bank. The amount of such investment shall not exceed ten percent (10%) of the Fund;

(3) Timber; except in a commingled fund vehicle operated by a registered investment advisor or a bank. The amount of such investment shall not exceed ten percent (10%) of the Fund;

(4) Mortgages secured by real estate, except insured mortgages under Titles 203, 207, 220 and 221 of the Federal Housing Act;

(5) Oil and gas leases or royalties; or

(6) Commodities (including but not limited to wheat, gold, gasoline, options, or financial futures); provided, however, that the restriction on investments contained in this paragraph shall not apply to funds which are invested in a mutual fund, separate account or commingled fund operated by a registered investment advisor or insurance company.

(d) The Board shall have the power to hold, purchase, sell, assign, transfer, and dispose of any of the securities in which monies of the Retirement System have been invested, as well as the proceeds from such investments, and any other property belonging to the Retirement System.

(e) All investments shall be clearly marked to indicate ownership of the Retirement System, and to the extent possible, shall be registered in its name. No securities shall be purchased or sold, or in any manner hypothecated, except by action of the Board duly entered in the record of its proceedings.

(f) Any limitations affecting the purchase of securities shall be applicable only at the time of purchase and shall not require the liquidation of an investment at any time.

(g) No trustee or employee of the Board shall have any direct interest in the income or gains from any investment made by the Board, nor shall any such person receive any pay or emolument for services in connection with any investment. No trustee or employee of the Board shall become an endorser or surety, or in any manner an obligor for money loaned or borrowed from the Retirement System. Proof that any such person has violated any of these restrictions shall make him guilty of a misdemeanor or larceny, as the case may be, and such person shall be punishable therefore as provided by law.

SECTION 13. Distribution of Contributions.

(a) Any Member withdrawing from Service prior to retirement shall be entitled to a distribution, in a single sum, of the Member's accumulated contributions. Those Members withdrawing from Service after December 31, 1999 shall receive interest at the rate of five percent (5%) per year on such contributions, which shall be credited to accumulated contributions as of the last day of December of each year beginning with the year 1999 through the year 2006. Beginning January 31, 2007 interest shall be credited monthly to accumulated contributions at the rate of five percent (5%) per year, compounded monthly. No interest shall be allowed in any case in which the contributions, and any prior interest earned, were in the fund for any period following termination. The payment of a distribution under the provisions of this section shall automatically effect a waiver and forfeiture of all of such Member's accrued rights and benefits in the Retirement System. The Board may, in its sole discretion, withhold payment of a distribution for a period of not to exceed ninety (90) days after receipt of a written request for the same.

(b) Any Member who has received such distribution shall be considered a new Member under Plan C-79 upon re-employment provided that if such Member shall render at least three (3) years of Service following such Member's latest re-employment, such Member shall be entitled to regain his or her previously forfeited Service credits upon repayment of all amounts received as refunds, including Regular Interest from date of refund to date of repayment. The time and manner of making such repayments shall be fixed by the Board. Any Member who terminates employment and leaves the Member's contributions in the Retirement System, if rehired, shall be classified as a Member under Plan C-79.

(c) Upon death of a Member leaving no survivors eligible for a benefit from the Retirement System, such Member's accumulated contributions plus interest, if applicable, shall be paid in a single sum to such person or persons as the member shall have nominated by written designation duly executed and filed with the Board. If no such designation shall have been made, payment shall be made to the Member's legal representative.

(d) After termination of all benefit payments to the Member, surviving spouse, and/or Minor Children, a distribution shall be made to the designated beneficiary or legal representative of the Member, surviving spouse, or Minor Children consisting of the excess, if any, of the Member's accumulated contributions, together with interest thereon if applicable, over all such benefit payments made by the Retirement System to or for the benefit of the Member.

(e) Optional direct transfer of eligible rollover distribution shall be as required under Section 401(a)(31) of the Internal Revenue Code.

SECTION 14. Eligibility for Service Retirement; Indexing Deferred Benefits.

(a) Under Plan A or Plan B, any Member having at least twenty (20) years of Service may retire and receive a Service retirement benefit.

(b) Under Plan C-79, all Police and Fire Officers employed on or after January 1, 1979, having at least twenty (20) years of Service, and having attained age fifty (50), may retire on a Service retirement benefit; provided, that from and after January 1, 1979, any Member who has completed thirty (30) years of Service shall be eligible to receive, regardless of age, a retirement benefit, computed in accordance with a Service retirement benefit.

(c) A Member under Plan C-79 having at least twenty (20) years of Service may retire prior to the attainment of age fifty (50) by leaving active Service as a Police or Fire Officer of the City; leaving the Member's contributions in the Retirement Fund; and deferring the payment of the Member's retirement benefits until the Member has attained age fifty (50). If such Member has a Deferral Period of at least one (1) full month, such Member shall be entitled to a retirement benefit calculated as follows:

(1) A base retirement benefit calculated under Section 15 and

(2) A benefit (which may calculate as no actual increase in benefits), which shall be calculated for each calendar year or full months, in the case of a partial year in such Member's Deferral Period.

(3) The benefit calculation in subparagraph (2) shall be the base benefit calculation in subparagraph (1) adjusted annually for each calendar year or full months in the Member's Deferral Period. The determination of whether a Member is due a benefit increase for a specific calendar year in which the Member has at least one (1) full month of Deferral Period shall be made by determining, for that calendar year, the smaller of (1) 1.055; or (2) the ratio of national average earnings for the second preceding calendar year to national average earnings for the third preceding calendar year. If the smaller of these two amounts is greater than 1.0, the Member shall be entitled to a benefit increase for that calendar year equal to the Member's base retirement benefit, as calculated under subparagraph (1), multiplied by such smaller amount. Any benefit increase for a partial year in the Member's Deferral Period shall be pro-rated for each month, based on the full year increase.

(d) A Member under Plan C-79 with at least ten (10) years of Service may withdraw from Service and elect to leave such Member's contributions in the Retirement System until such time as such Member is eligible to receive a retirement benefit. If such Member has a Deferral Period of at least one (1) full month, such Member shall be entitled to a retirement benefit calculated as provided for above.

(e) For purposes of compliance with the Internal Revenue Code and related guidance, the normal retirement benefit, which is the benefit calculated under Section 15(c), for a

Member under Plan C-79 is non-forfeitable upon attainment of normal retirement age, which is age fifty-five (55), and the completion of ten (10) years of service, whichever is later. The retirement benefit is only payable after a Withdrawal from Service and is subject to the provisions of Sections 31 and 32. This subsection is not to be construed as a reduction or limitation of rights heretofore existing, nor as an indication that vested benefits would be forfeitable before the stated age is attained.

SECTION 15. Calculation of Retirement Benefit.

(a) Any Member in Plan A or Plan B having twenty (20) years or more of Service may make application to be retired, and if such application is made, the Board shall retire such Member and shall pay such Member a monthly benefit in an amount equal to fifty percent (50%) of such Member's Final Average Salary at date of his or her retirement, plus an additional two and one-half percent (2.50%) per year for each year above twenty (20) years up to a maximum of seventy-five percent (75%) of Final Average Salary. For purposes of computing a retirement benefit, unused Sick Leave will be added to Service so long as the computed benefit does not exceed seventy-five percent (75%) of Final Average Salary. The accumulated, unused Sick Leave shall not be used to meet the twenty (20) year Service requirement. A fractional period of Service of less than a full year shall be considered in the calculation of the benefit.

(b) Any Member in Plan C-79 having twenty (20) years or more of Service and who has attained the age of fifty (50) years may make application to be retired, and if such application is made, the Board shall retire such Member and shall pay such Member a monthly benefit in an amount equal to fifty percent (50%) of such Member's Final Average Salary at date of retirement, plus an additional two and one-half percent (2.50%) per year for each year above twenty (20) years up to a maximum of seventy-five percent (75%) of Final Average Salary. For purposes of computing the retirement benefit, unused Sick Leave will be added to Service so long as the computed benefit does not exceed seventy-five percent (75%) of Final Average Salary. The accumulated, unused Sick Leave shall not be used to meet the twenty (20) year Service requirement. A fractional period of Service of less than a full year shall be considered in the calculation of the benefit.

(c) Any Member having ten (10) years and less than twenty (20) years of Service may become a Deferred Retiree by electing to leave such Member's contributions and interest, if any, in the Retirement System. If such Member leaves the Member's contributions and interest in the Retirement System until the Member reaches age fifty-five (55) years, the Member shall be entitled to a retirement benefit as calculated in Section 14(d) herein. (Such benefit shall be calculated by multiplying the Member's years of Service by an amount equal to two and one-half percent (2.50%) and multiplying that product by the Member's Final Average Salary.) Upon retirement and commencement of the receipt of the retirement benefit, such Member shall not be entitled to any survivor's benefits.

SECTION 16. Military Service.

(a) Notwithstanding any provisions of this plan to the contrary, contributions, benefits, and service credit with respect to qualified military service will be provided in accordance with Section 414(u) of the Internal Revenue Code.

(b) Effective with respect to deaths occurring on or after January 1, 2007, while a Member is performing qualified military service (as defined in chapter 43 of title 38, United States Code), to the extent required by Section 401(a)(37) of the Internal Revenue Code, survivors of a Member in a State or local retirement or pension system, are entitled to any additional benefits that the system would provide if the Member had resumed employment and then died, such as accelerated vesting or survivor benefits that are contingent on the Member's death while employed.

(c) Beginning January 1, 2009, to the extent required by Sections 3401(h) and 414(u)(12) of the Internal Revenue Code, a Member receiving differential wage payments (while the Member is performing qualified military service (as defined in chapter 43 of title 38, United States Code))

from an employer shall be treated as employed by that employer and the differential wage payment shall be treated as earned compensation. This provision shall be applied to all similarly situated Members in a reasonably equivalent manner.

SECTION 17. Monthly Payments.

Any benefit hereunder shall be payable in monthly installments.

SECTION 18. Optional Annuity.

An optional annuity, as herein provided, means a benefit computed according to the approximate equivalent formula recommended by the actuary and adopted by the Board, payable during the lifetime of the specified beneficiary only if such beneficiary survives the Retiree who was receiving a reduced Service retirement annuity. In the event that:

(a) the specified beneficiary predeceases the Retiree; or,

(b) the Retiree revokes the election at the time of a divorce from the specified beneficiary; or,

(c) the Retiree remarries after a divorce from the specified beneficiary;

the optional annuity election shall terminate, and the Retiree's reduced Service retirement annuity shall revert to the Service retirement annuity calculated for the Member had the Member not selected the optional annuity. This recalculated Service retirement annuity shall be payable beginning the first of the month following notice of the event causing termination of the optional annuity election.

The amount of the optional annuity shall be that specified in the Member's notice of election, and shall not, in any event, be more than the amount of the Member's reduced Service retirement annuity.

If the election has not been earlier terminated by one of the events identified in (a), (b) or (c), above, the optional annuity shall begin on the day following the death of the Retiree.

SECTION 19. Permanent Service-Connected Disability Benefits.

Any Member, who shall, while engaged in the performance of his or her duties, be permanently injured or disabled, other than as the result of an occupational disease, and upon an examination by a physician or physicians appointed by the Board of Trustees, be found to be physically or mentally disabled as a result of such permanent Disability or injury so as to render him incapable to perform the duties of the position held by the Member at date of Disability, shall be entitled to be retired, and the Board of Trustees shall thereupon order such Member's retirement and upon being retired, the Member shall be paid a benefit equal to seventy-five percent (75%) of the Salary in effect on the date when Salary payments ceased. The benefit shall be established according to the charter ordinance that is in effect at the time Salary payments ceased.

Any Police or Fire Officer incurring an occupational disease due to service-connected causes, who upon examination by a physician or physicians appointed by the Board is found by at least two (2) out of three (3) such physicians to be physically or mentally disabled as the direct result and proximate cause of such disease so as to render him incapable to perform the duties of the position held by the Member at date of Disability, shall be entitled to be retired at a benefit equal to fifty percent (50%) of his or her Salary in effect upon the date when Salary payments ceased. The benefit shall be established according to the charter ordinance that is in effect at the time Salary payments ceased.

The Board of Trustees may, when they deem it advisable, call back for re-examination by a physician, any Member retired by reason of permanent Disability under the provisions of this ordinance, and if said examination discloses that said Member is then able to perform his or her duties in said department, he or she may be returned to Service; and if said Member, upon request, fails or refuses to return to duty, then all payments from said System shall cease.

The Disability benefit shall be recomputed when the Member attains age fifty-five (55). At such time the Member attains age fifty-five (55), the Disability benefit shall be recomputed in the same manner as a Service retirement benefit

which would have been received had the Member been continuously in Service in the grade occupied at date absence on account of Disability began, subject to periodic Salary changes in such grade. In such a case, Service credit shall be granted during the period of payment of the Disability benefit, prior to attainment of age fifty-five (55), toward the recomputed Disability benefit.

SECTION 20. Non-Service Connected Disability.

Any Member having at least seven (7) years of credited Service, under the age of fifty-five (55) years, who becomes totally and permanently disabled due to any cause other than Service-Connected Disability, while an employee of the City, shall be entitled to a Non-Service Connected Disability benefit. The benefit shall be equal to thirty percent (30%) of the Final Average Salary plus one (1) percentage point for each year of Service above seven (7) years, up to a maximum of fifty percent (50%) of Final Average Salary. Accumulated unused Sick Leave will be added to Service so long as the computed benefit does not exceed fifty percent (50%) of Final Average Salary. The benefit shall be reduced by any amounts received by the Member from public funds as Salary, or other forms of compensation during Disability, exclusive of payments under Federal Social Security.

Non-Service Connected Disability shall be considered total and permanent if it results in some impairment of mind or body due to mental or physical incapacity resulting from external force, or violence, or disease that substantially precludes a Member from performing with reasonable regularity the substantial and material parts of any gainful work or occupation that the Member would be competent to perform were it not for the fact that the impairment is founded upon conditions which render it reasonably certain that it will continue indefinitely.

The benefit shall be payable during continuing Disability of the Member, but the Member shall be subject to periodic medical examinations as herein provided.

Should a Member recover from Disability and re-enter the Service of the City as a Police or Fire Officer, and shall render at least three (3) years of Service thereafter, the Member shall be credited for Service retirement benefit purposes with the periods of time during which the Member shall have received a Non-Service Connected Disability benefit; otherwise, such Member re-entering Service shall not be entitled to Service credit for the periods of such Disability.

Disability incurred while in military service shall not be considered for benefits under the provisions of this ordinance.

A Non-Service Connected Disability shall begin to accrue upon commencement of Disability, provided that if the Member is receiving Salary, the benefit shall begin to accrue from the date Salary has ceased. If written application for the benefit shall not have been filed with the Board prior to the expiration of ninety (90) days from date of Disability, the benefit shall begin to accrue from the date application therefore has been filed, but in no event prior to the time when payments to the Member on account of Salary have ceased.

SECTION 21. Administration of Disability Annuities.

(a) The determination of Disability from any cause shall be made upon the basis of reports of examinations made by at least two (2) physicians designated by the Board.

(b) A Member receiving service-connected or non-Service Connected Disability benefits shall be required, at the discretion by the Board of Trustees, to submit to an examination at least once each year by a physician or physicians designated by the Board to establish that the Member is incapacitated for active Service as a Police or Fire Officer and is entitled to continue to receive a Disability benefit. The Board may terminate a Disability benefit upon evidence that the Member is no longer disabled for Service. If such termination occurs and the Member does not re-enter the Service, he or she shall be entitled to a refund of the excess, if any, of the contributions made by the Member, without interest, over the amounts received by the Member on the Disability benefit.

If medical examination or an investigation made by the Board discloses that the Member is engaged in or is able to engage in any gainful occupation resulting in earnings for services rendered in any capacity, payment of the Disability benefit shall be reduced to an amount which, when added to the Member's income from such gainful occupation, does not exceed the rate of Salary currently being paid for the rank similar to that held by the Member at commencement of Disability.

(c) Each Member in receipt of a Disability benefit shall submit to the Board at least once each year, an authenticated copy or duplicate original of the Member's complete United States Income Tax Return, being a statement of income from gainful occupation for the preceding twelve (12) months. Any adjustment in benefit payments, as aforesaid, shall be based upon such statement of income.

(d) Should any Member receiving a Disability benefit refuse to submit to a medical examination or supply the Board with required statements of income, as herein above provided, benefit payments by the Retirement System shall be discontinued until compliance with the provisions hereof. Should such refusal continue for one (1) year, all rights of the Member to any Disability benefit shall be revoked by the Board. Upon finding that a Member receiving a Disability benefit has deliberately falsified information contained in his or her statement of income, all rights of the Member in any Disability benefit shall be revoked by the Board.

SECTION 22. Backward Deferred Retirement Option Plan (DROP).

(a) Any Member eligible to retire on or after January 1, 2001 may, at the time of applying for retirement benefits, elect a backward DROP benefit with payment as provided herein. A Member electing a backward DROP must select an effective backward DROP date. The Member must be eligible to receive a Service retirement benefit on the effective backward DROP date.

(b) The maximum allowable DROP Period for a backward DROP is sixty (60) months. The DROP Period is the period between the Member's effective backward DROP date and the date of the Member's Withdrawal from Service.

(c) For purposes of benefit calculations, the Member's retirement date will be the effective backward DROP date.

(d) A Member's unused Sick Leave credit at the Member's date of election of the backward DROP may be added to the Member's Service at the Member's effective backward DROP date.

(e) The Member's monthly retirement benefit is calculated as of the Member's effective backward DROP date and is payable at the Member's Withdrawal from Service.

(f) The Member's DROP benefit is calculated by:

(1) multiplying the Member's monthly retirement benefit from (e), times the number of months selected by the Member as the backward DROP Period;

(2) plus any applicable post-retirement adjustments;

(3) plus interest at an annual rate of five percent (5%) compounded monthly.

(g) Application for withdrawal of the DROP account balance shall be made within ninety (90) days of the Member's Withdrawal from Service. Payment of the amount calculated in (f) shall be made only in a lump sum payment, a direct rollover, or some combination of the two.

SECTION 23. Service-Connected Death.

(a) Upon death of a Member, regardless of the Member's age or length of Service, resulting directly from service-connected causes; or an occupational disease if the Member had at least five (5) years of Service, and in the case of an occupational disease if death occurred within three (3) years from the date of commencement of the disease and the cessation of Salary payments to the Member, whichever is later, a surviving spouse shall be entitled to a benefit equal to fifty percent (50%) of the Member's final Salary at the date of the Member's death. This benefit payable to a surviving spouse hereunder shall be payable during such surviving spouse's lifetime.

(b) If such Member is also survived by a Minor Child or Minor Children, each such child shall be entitled to a benefit of ten percent (10%) of such Member's final Salary. Such benefit shall be paid to the custodial parent or guardian/ conservator of each such child. The combined payments to a surviving spouse and Minor Children shall in no event exceed seventy-five percent (75%) of such Member's final Salary. In the event that the combined payments do exceed such amount, the benefit of the surviving spouse shall be reduced so that combined payments equal seventy-five percent (75%) of such Member's final Salary. At the time that combined payments no longer exceed such amount, the benefit of the surviving spouse shall be increased so that combined payments equal seventy-five percent (75%) of such Member's final Salary, but in no event shall the benefit of the surviving spouse be an amount greater than fifty percent (50%) of such Member's final Salary.

(c) If such Member dies leaving no surviving spouse, each Minor Child of such Member then surviving shall be entitled to a benefit of twenty percent (20%) of such Member's final Salary. Such benefit shall be paid to the custodial parent or guardian/conservator of each child. The combined payments on account of such Minor Children shall not exceed sixty percent (60%) of such Member's final Salary. In the event that combined payments exceed such amount, the benefits for such children shall be reduced pro rata so that total payments equal sixty percent (60%) of such Member's final Salary.

(d) Benefits paid on account of Minor Children shall terminate upon the first to occur of the following:

(1) The Minor Child reaching the age of eighteen (18) years;

(2) Death of the Minor Child; or

(3) Marriage of the Minor Child.

(e) The determination of whether death is Service-Connected or not shall be made in the manner provided for in the administration of Disability benefits.

SECTION 24. Non-Service Connected Death.

(a) Upon death of a Member who has at least three (3) years of Service:

(1) whose death is not due to Service-Connected causes; or

(2) who is on Sick Leave receiving Salary on the date of death and whose death is not due to Service-Connected causes; or

(3) who is on approved leave of absence extending not more than twelve (12) continuous months on the date of death and whose death is not due to Service-Connected causes,

the surviving spouse of such Member shall be eligible to receive a benefit if such surviving spouse was the lawfully wedded spouse at the time of the death of such Member. Such surviving spouse shall continue to be eligible to receive a benefit for such spouse's lifetime. The amount of such benefit shall be as calculated in subparagraph (c) below and shall be subject to adjustment as provided in subparagraph (e) below.

(b) Upon death of a Retiree:

(1) who is receiving Service or Non-Service Connected Disability pension benefits on the date of death; or

(2) who is receiving a Service retirement benefit or is a Deferred Retiree and has at least twenty (20) years of Service at the date of death,

the surviving spouse of such Retiree shall be eligible to receive a benefit if i) such surviving spouse was the lawfully wedded spouse of such Retiree on the date such Retiree retired or began receiving either a Service or Non-Service Connected Disability pension benefit, and ii) such surviving spouse is at least forty (40) years of age at the time of the death of such Retiree, or if less than forty (40) years of age has, at the time of death of such Retiree, the care and custody of a Minor Child or Children of such Retiree. A surviving spouse who is not eligible to receive a benefit because such surviving spouse is less than forty (40) years of age shall become eligible to receive a benefit on the date that such surviving spouse attains the age of forty (40) years, so

long as such surviving spouse has not remarried. A surviving spouse who is eligible to receive a benefit shall continue to receive a benefit for such spouse's lifetime so long as such surviving spouse does not remarry after the date such Retiree dies and prior to such surviving spouse attaining the age of forty (40) years. The amount of such benefit shall be calculated as provided in subparagraph (c) below and shall be subject to adjustment as provided in subparagraph (e) below.

(c) Subject to adjustment because of the requirements of subparagraph (e) below, the benefit to be paid to a surviving spouse who is eligible to receive such a benefit under either paragraph (a) or (b) above, shall be equal to thirty-five percent (35%) of such Member or Retiree's Final Average Salary, increased by one percentage point for each year of Service greater than three (3) years, up to a maximum benefit of fifty percent (50%) of Final Average Salary. Provided, however, for a Member or Retiree under Plan B, such benefit shall be equal to fifty percent (50%) of such Member or Retiree's final Salary.

(d) If a Member or Retiree dies under circumstances set out in subsection (a) or (b) above, each surviving Minor Child of such Member or Retiree shall be entitled to a benefit as calculated herein and subject to adjustment because of the requirements of subparagraph (e) below. The amount of such benefit, if a benefit is also being paid to a surviving spouse of such Member or Retiree, shall be ten percent (10%) of such Member or Retiree's Final Average Salary. The amount of such benefit, if no benefit is being paid to a surviving spouse of such Member or Retiree, shall be fifteen percent (15%) of such Member or Retiree's Final Average Salary. The benefit for a Minor Child shall be paid to the custodial parent or conservator of each such Minor Child. When a Minor Child is receiving a ten percent (10%) benefit and the benefit being paid to a surviving spouse of the Member or Retiree on account of whose death each benefit was initially paid is terminated, the benefit to be paid to such Minor Child shall increase to fifteen percent (15%) of such Member or Retiree's Final Average Salary.

(e) (1) The combined monthly benefit payment to a surviving spouse and Minor Children shall not exceed sixty-six and two-thirds percent (66 2/3%) of the Final Average Salary of the Member or Retiree on account of whose death the benefits are being paid. In the event that the calculation of such benefit results in such combined monthly benefit payment in excess of that amount, the benefit of the surviving spouse shall be reduced so that the combined monthly benefit payment equals sixty-six and two-thirds percent (66 2/3%) of such Member or Retiree's Final Average Salary. The benefit for such surviving spouse shall be increased at such time as the combined monthly benefit payment no longer exceeds such sixty-six and two-thirds percent (66 2/3%) limit, but in no event shall such increase result in such surviving spouse's benefit exceeding the amount originally calculated under subsection (c). When no benefit is being paid to a surviving spouse because the benefit calculated for the surviving spouse has been reduced to zero because of the adjustment set out above, any adjustment to the benefits paid to Minor Children because the combined monthly benefit payments exceed sixty-six and two-thirds percent (66 2/3%) of such Member or Retiree's Final Average Salary shall be made pro rata among such Member or Retiree's Minor Children, and such adjustment shall continue until the combined monthly benefit payment can be paid to eligible Minor Children without exceeding such sixty-six and two-thirds percent (66 2/3%) limit.

(2) The combined monthly benefit payment to Minor Children where there is no benefit being paid to a surviving spouse because no surviving spouse is eligible for such a benefit shall not exceed fifty percent (50%) of the Final Average Salary of the Member or Retiree on account of whose death the benefits are being paid. In the event that combined monthly payments exceed such amount, the benefit of each such Minor Child shall be reduced

pro rata so that combined monthly payments equal fifty percent (50%) of such Member or Retiree's Final Average Salary. In no event shall the benefit paid a Minor Child exceed fifteen percent (15%).

(3) The combined monthly benefit payment to a surviving spouse and Minor Children or to Minor Children shall not exceed the amount of the monthly Service retirement or Disability retirement benefit being paid on the date of the death of the Retiree on account of whose death such benefit payments are being made. In the event that the calculation of such benefit results in a combined monthly benefit payment in excess of such amount, i) the benefit of the surviving spouse shall be reduced so that the combined monthly benefit payment equals such Service retirement or Disability retirement benefit; or ii) if no benefit payment is being paid to a surviving spouse, the benefits of all Minor Children shall be reduced pro rata so that the combined monthly benefit payment equals such Service retirement or Disability retirement benefit. Once reduced, these benefit payments shall be increased in the same manner and subject to the same limitations as set forth in (e) (1) and (e) (2) above.

(f) Benefit payments for a Minor Child shall terminate upon such child reaching eighteen (18) years of age, the death of such child, or the marriage of such child, whichever shall occur first.

(g) The surviving spouse of a Retiree who retired on or after January 1, 2000 and thereafter dies under circumstances set out in subsections (b)(1) or (b)(2) above, shall not be limited by either the age requirement or the remarriage limitations set forth in subparagraph (b) herein. Provided, however that such surviving spouse, in order to be eligible to receive a benefit, shall have been such Retiree's lawfully wedded spouse for at least twelve (12) months immediately preceding the death of such Retiree.

(h) A Member who, on or after January 1, 2000, selects an effective backward DROP date which is prior to January 1, 2000, shall nevertheless be considered to have retired on or after January 1, 2000 for the purposes of determining the eligibility of such Member's surviving spouse for a benefit.

(i) For a Member or Retiree under Plan B, benefit payments on account of Minor Children shall be paid only if such Member or Retiree dies leaving no surviving spouse or dies leaving a surviving spouse who remarries prior to age forty (40). Under either such circumstance, the Minor Children of such Member or Retiree shall share equally a benefit equal to fifty percent (50%) of such Member or Retiree's final Salary.

SECTION 25. Post Retirement Adjustments.

For all Members retiring for any reason from and after February 1, 1974, upon completion of thirty-six (36) months of retirement, the monthly retirement benefits payable to such Retiree, or the monthly retirement benefits payable to the spouse or the Minor Child or Children of such Retiree, shall be increased two percent (2%) per year based on the original benefit, not compounded.

SECTION 26. Funeral Benefit.

The designated beneficiary of a Member who retired after November 21, 1973 under either Plan A, Plan B, or Plan C-79 shall be paid a funeral benefit of seven hundred fifty dollars ($750.00).

SECTION 27. Assignments Prohibited.

The right to a refund or a service retirement, Disability, death, or any benefit under the provisions of this ordinance, whatever name called, is personal with the recipient thereof, and the assignment or transfer of any such benefit, or any part thereof shall be void, except as may be provided herein. Any such refund or benefit shall not answer for debts contracted by the person receiving the same, and it is the intention of this ordinance that they shall not be subject to execution, attachment, garnishment, or affected by any judicial proceedings, except such benefit or any accumulated contributions due and owing

from the System to any recipient are subject to claims of an alternate payee under a "qualified domestic relations order".

SECTION 28. Qualified Domestic Relations Orders.

As used in this section, the terms "alternate payee" and "qualified domestic relations order" shall have the meaning ascribed to them in section 414(p) of the Internal Revenue Code. The City of Wichita shall not be a party to any action under Article 10 of Chapter 60 of the Kansas Statutes Annotated but is subject to orders from such actions issued by the district court of the county where such action was filed and may also accept orders which it deems to be qualified under this section from courts having jurisdiction of such actions outside the State of Kansas. Orders from such actions shall specify either a specific amount or specific percentage of the amount of the benefit or any accumulated contributions due and owing from the Fund and to be distributed to the alternate payee. The order must contain the following information:

(a) Name, address, and social security number of the employee and alternate payee;

(b) Clearly identifies the appropriate Police & Fire Retirement System and plan;

(c) Creates or recognizes the existence of an alternate payee's rights to, or assigns to an alternate payee the right to receive a portion of the benefits otherwise payable to the employee;

(d) The date of marriage and divorce/separation;

(e) Statement that the benefit is payable only at the time of retirement of the employee or at the time the employee withdraws from Service, if the employee withdraws his or her contributions from the Fund;

(f) That the benefit is payable only during the lifetime of the retired employee or alternate payee should the alternate payee predecease the employee;

(g) Payment to the alternate payee shall be a lump sum if payment to the employee is lump sum, monthly if payment to the employee is monthly; and

(h) An employee who elects to participate in the DROP shall be treated as having retired for the purposes of a qualified domestic relations order.

The order to be qualified cannot allow the calculation of the lump sum payment or monthly benefit to be calculated in a manner which results in a payment or benefit in excess of the limits of the plan; cannot allow the alternate payee to be named as a surviving spouse or a survivor at the death of the retired employee; and cannot allow the alternate payee to name a beneficiary.

SECTION 29. Current Retiree Benefit Catch-Up Provision.

For Retirees who have been receiving a Service or Disability retirement benefit for ten (10) years or more as of January 1, 2000, and for the surviving spouses of deceased Retirees who retired and began receiving a Service or Disability retirement benefit prior to January 1, 1990, the pension benefit payable to such Retirees and such surviving spouses shall be increased by a factor of two percent (2%) per year for each year since such Retiree or the deceased Retiree began receiving a Service retirement benefit. This increase is a one-time benefit adjustment. This increase shall be applied to both the base pension benefit and any post-retirement adjustment, combined. The increased pension benefit calculated under this section shall in no event exceed $8,183.00 annually.

SECTION 30. Special Provisions for Safety Officers Employed by the Wichita Airport Authority.

Safety officers employed by the Wichita Airport Authority of the City of Wichita on June 29, 1996 shall be transferred on that date from the Wichita Employees' Retirement Plans to the Police and Fire Retirement System's Plan C-79. Notwithstanding provisions of any other sec-

tions contained herein, the following provisions shall be applicable for such safety officers transferred as of June 29, 1996:

(a) Service credit under the Wichita Employees' Retirement Plans shall be considered Service for purposes of meeting Service eligibility requirements for benefits under the Police and Fire Retirement System Plan C-79;

(b) Service under the Wichita Employees' Retirement Plans shall not be considered in the determination of the amount of any benefit payable by the Police and Fire Retirement System Plan C-79, unless the Member has purchased Permissive Service Credit for that period of employment under Section 38; and

(c) Under no circumstances will the total retirement benefit payable to a safety officer as a result of this transfer exceed an amount equal to seventy-five percent (75%) of his or her Final Average Salary regardless whether the source of the benefit is the Wichita Employees' Retirement System or the Police and Fire Retirement System.

SECTION 31. Re-employment of Retirees.

(a) Any Member under the Retirement System who is receiving a retirement benefit and who is re-employed as a commissioned Police or Fire Officer with the City of Wichita, or in a non-commissioned position under the Wichita Employee's Retirement System, shall have such Member's retirement benefit immediately suspended, and no benefit payments shall be made during the entire time such Member is so employed. However, nothing is intended to prohibit such member from participation in the appropriate retirement system and the accrual of additional Service for credit.

(b) Upon termination of such employment as a commissioned officer, payment of the retirement benefit shall be resumed; provided, however, nothing herein shall be construed to prohibit the employment of a retired police or fire commissioned officer in an advisory or consultant capacity on an independent contractor basis.

(c) Under no circumstances will the total retirement benefit payable to a re-employed Member exceed an amount equal to seventy-five percent (75%) of his or her Final Average Salary regardless whether the source of the benefit is the Wichita Employees' Retirement System or the Police and Fire Retirement System.

SECTION 32. Fraud.

Any person who knowingly makes a false statement in connection with the application for or the receipt of benefits, or falsifies or permits to be falsified, any record or records of this Retirement System, in an attempt to defraud the Retirement System, shall forfeit all rights to benefits hereunder. The Retirement System and the City shall have the right to recover by setoff or otherwise, any payments based on such false statement or falsified record.

SECTION 33. Limited Extension of Option and its Effective Date.

Any Police or Fire Officer who had previously elected to participate in Plan B shall have an option at any time prior to retirement to elect participation in Plan A by paying into the Retirement System a sum of money, without interest, equal to the difference in contributions which would have been paid by such Police or Fire Officer had they elected Plan A on January 1, 1965; provided, that once having made such election, such Police or Fire Officer shall not be permitted to revert back to Plan B.

SECTION 34. Benefit and Disability Rights Under Prior Laws Saved.

This ordinance shall not affect the rights nor decrease the Disability or retirement benefits of any Member or such Member's beneficiaries, who has died, been permanently disabled, or retired under any previously authorized and existing pension or retirement system. Any Member in service at the time of the effective date of this ordinance, who is at said time entitled to a benefit under any previously authorized pension or Retirement System shall not have such benefit reduced by virtue of the application of the provisions of this ordinance.

SECTION 35. Invalidity of Part.

If any provisions of this ordinance or the application thereof to any person or circumstances is held invalid, such invalidity shall not affect other provisions or applications of this ordinance, which can be given effect without the invalid provision or application, and to this extent, the provisions of this ordinance are declared to be severable.

SECTION 36. Compliance with Code Section 415 Limitations on Contributions and Benefits.

a) Notwithstanding any other provisions of the Retirement System to the contrary, the Member contributions paid to and retirement benefits paid from the plan shall be limited to such extent as may be necessary to conform to the requirements of Section 415 of the Internal Revenue Code for a qualified pension plan.

(b) *Participation in Other Qualified Plans: Aggregation of Limits.*

(1) The 415(b) limit with respect to any Member who at any time has been a Member in any other defined benefit plan as defined in Section 414(j) of the Internal Revenue Code maintained by the Member's employer in this plan shall apply as if the total benefits payable under all such defined benefit plans in which the Member has been a Member were payable from one (1) plan.

(2) The 415(c) limit with respect to any Member who at any time has been a Member in any other defined contribution plan as defined in Section 414(i) of the Internal Revenue Code maintained by the Member's employer in this plan shall apply as if the total annual additions under all such defined contributions plans in which the Member has been a Member were payable from one (1) plan.

(c) *Basic 415(b) Limitation.*

(1) Before January 1, 1995, a Member may not receive an annual benefit that exceeds the limits specified in Section 415(b) of the Internal Revenue Code, subject to the applicable adjustments in that section. On and after January 1, 1995, a Member may not receive an annual benefit that exceeds the dollar amount specified in Section 415(b)(1)(A) of the Internal Revenue Code, subject to the applicable adjustments in Section 415(b) of the Internal Revenue Code and subject to any additional limits that may be specified in the Retirement System. In no event shall a Member's benefit payable under the plan in any limitation year be greater than the limit applicable at the annuity starting date, as increased in subsequent years pursuant to Section 415(d) of the Internal Revenue Code and the regulations thereunder.

(2) For purposes of Section 415(b) of the Internal Revenue Code, the "annual benefit" means a benefit payable annually in the form of a straight life annuity (with no ancillary benefits) without regard to the benefit attributable to after-tax employee contributions (except pursuant to Section 415(n) of the Internal Revenue Code) and to rollover contributions (as defined in Section 415(b)(2)(A) of the Internal Revenue Code). The "benefit attributable" shall be determined in accordance with Treasury Regulations.

(d) *Adjustments to Basic 415(b) Limitation for Form of Benefit.*

If the benefit under the plan is other than the form specified in subsection (c)(2), then the benefit shall be adjusted so that it is the equivalent of the annual benefit, using factors prescribed in Treasury Regulations.

(1) If the form of benefit without regard to the automatic benefit increase feature is not a straight life annuity or a qualified joint and survivor annuity, then the preceding sentence is applied by either reducing the Section 415(b) of the Internal Revenue Code limit applicable at the annuity starting date or adjusting the form of benefit to an actuarially equivalent amount [determined using the assumptions specified in Treasury Regulation

Section 1.415(b)-1(c)(2)(ii)] that takes into account the additional benefits under the form of benefit as follows:

(2) For a benefit paid in a form to which Section 417(e)(3) of the Internal Revenue Code does not apply [a monthly benefit], the actuarially equivalent straight life annuity benefit that is the greater of (or the reduced limit applicable at the annuity starting date which is the "lesser of" when adjusted in accordance with the following assumptions):

(A) The annual amount of the straight life annuity (if any) payable to the Member under the plan commencing at the same annuity starting date as the form of benefit to the Member, or

(B) The annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the form of benefit payable to the Member, computed using a 5% interest assumption (or the applicable statutory interest assumption) and (i) for years prior to January 1, 2009, the applicable mortality tables described in Treasury Regulation Section 1.417(e)-1(d)(2) (Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code); or

(3) For a benefit paid in a form to which Section 417(e)(3) of the Internal Revenue Code applies [a lump sum benefit], the actuarially equivalent straight life annuity benefit that is the greatest of (or the reduced Section 415(b) of the Internal Revenue Code limit applicable at the annuity starting date which is the "least of" when adjusted in accordance with the following assumptions):

(A) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable, computed using the interest rate and mortality table, or tabular factor, specified in the plan for actuarial experience;

(B) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable, computed using a 5.5 percent interest assumption (or the applicable statutory interest assumption) and (i) for years prior to January 1, 2009, the applicable mortality table for the distribution under Treasury Regulation Section 1.417(e)-1(d)(2) (the mortality table specified in Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code; or

(C) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable (computed using the applicable interest rate for the distribution under Treasury Regulation Section 1.417(e)-1(d)(3) (the 30-year Treasury rate (prior to January 1, 2007, using the rate in effect for the month prior

to retirement, and on and after January 1, 2007, using the rate in effect for the first day of the plan year with a one-year stabilization period)) and (i) for years prior to January 1, 2009, the applicable mortality rate for the distribution under Treasury Regulation Section 1.417(e)-1(d)(2) (the mortality table specified in Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code), divided by 1.05.

(e) *Benefits Not Taken into Account for 415(b) Limitation.*

For purposes of this section, the following benefits shall not be taken into account in applying these limits:

(1) Any ancillary benefit which is not directly related to retirement income benefits;

(2) That portion of any joint and survivor annuity that constitutes a qualified joint and survivor annuity;

(3) Any other benefit not required under Section 415(b)(2) of the Internal Revenue Code and Treasury Regulations thereunder to be taken into account for purposes of the limitation of Section 415(b)(1) of the Internal Revenue Code.

(f) *Other Adjustments in 415(b) Limitation.*

(1) In the event the Member's retirement benefits become payable before age sixty-two (62), the limit prescribed by this section shall be reduced in accordance with Treasury Regulations pursuant to the provisions of Section 415(b) of the Internal Revenue Code, so that such limit (as so reduced) equals an annual straight life benefit (when such retirement income benefit begins) which is equivalent to a one hundred sixty thousand dollar ($160,000) (as adjusted) annual benefit beginning at age sixty-two (62).

(2) In the event the Member's benefit is based on at least fifteen (15) years of service as a full-time employee of any police or fire department or on fifteen (15) years of military service, the adjustments provided for in (1) above shall not apply.

(3) The reductions provided for in (1) above shall not be applicable to pre-retirement disability benefits or pre-retirement death benefits.

(g) *Ten Thousand Dollar ($10,000) Limit.*

Notwithstanding the foregoing, the retirement benefit payable with respect to a Member shall be deemed not to exceed the 415 limit if the benefits payable, with respect to such Member under this plan and under all other qualified defined benefit pension plans to which the Member's employer contributes, do not exceed ten thousand dollars ($10,000) for the applicable limitation year and for any prior limitation year and the employer has not at any time maintained a qualified defined contribution plan in which the Member participated.

(h) *Effect of COLA without a Lump Sum Component on 415(b) Testing.*

Effective on and after January 1, 2009, for purposes of applying the limits under Section 415(b) of the Internal Revenue Code (the "Limit") to a Member with no lump sum benefit, the following will apply:

(1) a Member's applicable Limit will be applied to the Member's annual benefit in the Member's first limitation year without regard to any cost of living adjustments under Section 25;

(2) to the extent that the Member's annual benefit equals or exceeds the Limit, the Member will no longer be eligible for cost

of living increases until such time as the benefit plus the accumulated increases are less than the Limit; and

(3) thereafter, in any subsequent limitation year, a Member's annual benefit, including any cost of living increases under Section 25, shall be tested under the then applicable benefit Limit including any adjustment to the Section 415(b)(1)(A) of the Internal Revenue Code dollar limit under Section 415(d) of the Internal Revenue Code, and the regulations thereunder.

(i) *Effect of COLA with Lump Sum Component on 415(b) Testing.*

On and after January 1, 2009, with respect to a Member who receives a portion of the Member's annual benefit in a lump sum, a Member's applicable Limit will be applied taking into consideration cost of living increases as required by Section 415(b) of the Internal Revenue Code and applicable Treasury Regulations.

(j) *Section 415(c) Limitations on Contributions and Other Additions.*

After-tax Member contributions or other annual additions with respect to a Member may not exceed the lesser of $40,000 (as adjusted pursuant to Section 415(d) of the Internal Revenue Code) or 100% of the Member's compensation.

(1) Annual additions are defined to mean the sum (for any year) of employer contributions to a defined contribution plan, Member contributions, and forfeitures credited to a Member's individual account. Member contributions are determined without regard to rollover contributions and to picked-up employee contributions that are paid to a defined benefit plan.

(2) For purposes of applying Section 415(c) of the Internal Revenue Code and for no other purpose, the definition of compensation where applicable will be compensation actually paid or made available during a limitation year, except as noted below and as permitted by Treasury Regulation Section 1.415(c)-2, or successor regulation; provided, however, that Member contributions picked up under Section 414(h) of the Internal Revenue Code shall not be treated as compensation.

(3) Compensation will be defined as wages within the meaning of Section 3401(a) of the Internal Revenue Code and all other payments of compensation to an employee by an employer for which the employer is required to furnish the employee a written statement under Sections 6041(d), 6051(a)(3) and 6052 of the Internal Revenue Code and will be determined without regard to any rules under Section 3401(a) of the Internal Revenue Code that limit the remuneration included in wages based on the nature or location of the employment or the services performed (such as exception for agricultural labor in Section 3401(a)(2) of the Internal Revenue Code).

(A) However, for limitation years beginning after December 31, 1997, compensation will also include amounts that would otherwise be included in compensation but for an election under Section 125(a), 402(e)(3), 402(h)(1)(B), 402(k), or 457(b) of the Internal Revenue Code. For limitation years beginning after December 31, 2000, compensation shall also include any elective amounts that are not includible in the gross income of the Member by reason of Section 132(f)(4) of the Internal Revenue Code.

(B) For limitation years beginning on and after January 1, 2009, compensation for the limitation year shall also include compensation paid by the later of 2½ months after a Member's severance from employment or the end of the limitation year that includes the date of the Member's severance from employment if:

(I) the payment is regular compensation for services during the Member's regular

working hours, or compensation for services outside the Member's regular working hours (such as overtime or shift differential), commissions, bonuses or other similar payments, and, absent a severance from employment, the payments would have been paid to the Member while the Member continued in employment with the employer; or

(II) the payment is for unused accrued bona fide sick, vacation or other leave that the Member would have been able to use if employment had continued; or

(III) payments pursuant to a nonqualified unfunded deferred compensation plan, but only if the payments would have been paid to the Member at the same time if the Member had continued employment with the employer and only to the extent that the payment is includible in the Member's gross income.

Any payments not described in paragraph (B) above are not considered compensation if paid after severance from employment, even if they are paid within 2½ months following severance from employment, except for payments to a Member who does not currently perform services for the employer by reason of qualified military service (within the meaning of Section 414(u)(1) of the Internal Revenue Code) to the extent these payments do not exceed the amounts the Member would have received if the Member had continued to perform services for the employer rather than entering qualified military service.

A Member who is in qualified military service (within the meaning of Section 414(u)(1) of the Internal Revenue Code) shall be treated as receiving compensation from the employer during such period of qualified military service equal to (i) the compensation the Member would have received during such period if the Member were not in qualified military service, determined based on the rate of pay the Member would have received from the employer but for the absence during the period of qualified military service, or (ii) if the compensation the Member would have received during such period was not reasonably certain, the Member's average compensation from the employer during the twelve month period immediately preceding the qualified military service (or, if shorter, the period of employment immediately preceding the qualified military service).

(C) Back pay, within the meaning of Treasury Regulation Section 1.415(c)-2(g)(8), shall be treated as compensation for the limitation year to which the back pay relates to the extent the back pay represents wages and compensation that would otherwise be included under this definition.

(4) For limitation years beginning on or after January 1, 2009, a Member's compensation for purposes of subsection (k) shall not exceed the annual limit under Section 401(a)(17) of the Internal Revenue Code.

(k) *Service Purchases under Section 415(n)*.

Effective for permissive service credit contributions made in limitation years beginning after December 31, 1997, if a Member makes one or more contributions to purchase permissive service credit under the plan, then the requirements of Section 415(n) of the Internal Revenue Code will be treated as met only if:

(1) the requirements of Section 415(b) of the Internal Revenue Code are met,

determined by treating the accrued benefit derived from all such contributions as an annual benefit for purposes of Section 415(b) of the Internal Revenue Code, or

(2) the requirements of Section 415(c) of the Internal Revenue Code are met, determined by treating all such contributions as annual additions for purposes of Section 415(c) of the Internal Revenue Code.

(3) For purposes of applying this section, the system will not fail to meet the reduced limit under Section 415(b)(2)(C) of the Internal Revenue Code solely by reason of this subparagraph and will not fail to meet the percentage limitation under Section 415(c)(1)(B) of the Internal Revenue Code solely by reason of this section.

(4) For purposes of this section the term "permissive service credit" means service credit-

(A) recognized by the system for purposes of calculating a Member's benefit under the system,

(B) which such Member has not received under the system, and

(C) which such Member may receive only by making a voluntary additional contribution, in an amount determined under the system, which does not exceed the amount necessary to fund the benefit attributable to such service credit.

Effective for permissive service credit contributions made in limitation years beginning after December 31, 1997, such term may include service credit for periods for which there is no performance of service, and, notwithstanding clause (B), may include service credited in order to provide an increased benefit for service credit which a Member is receiving under the system.

(5) The system will fail to meet the requirements of this section if-

(A) more than five years of nonqualified service credit are taken into account for purposes of this subparagraph, or

(B) any nonqualified service credit is taken into account under this paragraph before the member has at least five years of participation under the system.

(6) For purposes of paragraph (5), effective for permissive service credit contributions made in limitation years beginning after December 31, 1997, the term "nonqualified service credit" means permissive service credit other than that allowed with respect to-

(A) service (including parental, medical, sabbatical, and similar leave) as an employee of the Government of the United States, any State or political subdivision thereof, or any agency or instrumentality of any of the foregoing (other than military service or service for credit which was obtained as a result of repayment described in Section 415(k)(3) of the Internal Revenue Code),

(B) service (including parental, medical, sabbatical, and similar leave) as an employee (other than as an employee described in clause (A)) of an education organization described in Section 170(b)(1)(A)(ii) of the Internal Revenue Code which is public, private, or sectarian school which provides elementary or secondary education (through grade 12), or a comparable level of education, as determined under the applicable law of the jurisdiction in which the service was performed,

(C) service as an employee of an association of employees who are described in clause (A), or

(D) military service (other than qualified military service under Section 414(u) of the Internal Revenue Code) recognized by the system.

In the case of service described in clause (A), (B), or (C), such service will be nonqualified service if recognition of such service would cause a Member to receive a retirement benefit for the same service under more than one plan.

(7) In the case of a trustee-to-trustee transfer after December 31, 2001, to which Section 403(b)(13)(A) of the Internal Revenue Code or Section 457(e)(17)(A) of the Internal Revenue Code applies (without regard to whether the transfer is made between plans maintained by the same employer)-

(A) the limitations of paragraph (5) will not apply in determining whether the transfer is for the purchase of permissive service credit, and

(B) the distribution rules applicable under federal law to the system will apply to such amounts and any benefits attributable to such amounts.

(8) For an eligible Member, the limitation of Section 415(c)(1) of the Internal Revenue Code shall not be applied to reduce the amount of permissive service credit which may be purchased to an amount less than the amount which was allowed to be purchased under the terms of a Plan as in effect on August 5, 1997. For purposes of this paragraph an eligible Member is an individual who first became a Member in the system before January 1, 1998.

(l) *Modifications of Contributions for 415(c) and 415(n) Purposes.*

Notwithstanding any other provision of law to the contrary, the system may modify a request by a Member to make a contribution to the system if the amount of the contribution would exceed the limits provided in Section 415 of the Internal Revenue Code by using the following methods:

(1) If the law requires a lump sum payment for the purchase of service credit, the system may establish a periodic payment plan for the Member to avoid a contribution in excess of the limits under Section 415(c) or 415(n) of the Internal Revenue Code.

(2) If payment pursuant to subparagraph (1) will not avoid a contribution in excess of the limits imposed by Section 415(c) or 415(n) of the Internal Revenue Code, the system may either reduce the Member's contribution to an amount within the limits of those sections or refuse the Member's contribution.

(m) *Repayments of Cashouts.*

Any repayment of contributions (including interest thereon) to the plan with respect to an amount previously refunded upon a forfeiture of service credit under the plan or another governmental plan maintained by the Retirement System shall not be taken into account for purposes of Section 415 of the Internal Revenue Code, in accordance with applicable Treasury Regulations.

(n) *Reduction of Benefits Priority.*

Reduction of benefits and/or contributions to all plans, where required, shall be accomplished by first reducing the Member's benefit under any defined benefit plans in which the Member participated, such reduction to be made first with respect to the plan in which the Member most recently accrued benefits and thereafter in such priority as shall be determined by the plan and the plan administrator of such other plans, and next, by reducing or allocating excess forfeitures for defined contribution plans in which the Member participated, such reduction to be made first with respect to the plan in which the Member most recently accrued benefits and thereafter in such priority as shall be established by the plan and the plan administrator for such other plans provided, however, that necessary reductions may be made in a different manner and priority pursuant to the agreement of the plan and the plan administrator of all other plans covering such Member.

SECTION 37. Direct Rollovers of Defined Benefit Plan Distributions.

(a) Except as otherwise indicated herein, this section shall apply to all rollovers made after December 31, 2001.

(b) For purposes of compliance with Section 401(a)(31) of the Internal Revenue Code, this section applies notwithstanding any contrary provision or retirement law that would otherwise limit a distributee's election to make a rollover. A distributee may elect, at the time and in the manner prescribed by the Board, to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

(1) "Eligible rollover distribution" means any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include: any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or the life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more; any distribution to the extent such distribution is required under Section 401(a)(9) of the Internal Revenue Code; the portion of any distribution that is not includible in gross income; and any other distribution that is reasonably expected to total less than $200 during the year. Effective January 1, 2002, a portion of a distribution will not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions that are not includible in gross income. However, such portion may be transferred only (i) to an individual retirement account or annuity described in Section 408(a) or (b) of the Internal Revenue Code or to a qualified defined contribution plan described in Section 401(a) of the Internal Revenue Code, that agrees to separately account for amounts so transferred (and earnings thereon), including separately accounting for the portion of the distribution that is includible in gross income and the portion of the distribution that is not so includible; (ii) on or after January 1, 2007, to a qualified defined benefit plan described in Section 401(a) of the Internal Revenue Code or to an annuity contract described in Section 403(b) of the Internal Revenue Code, that agrees to separately account for amounts so transferred (and earnings thereon), including separately accounting for the portion of the distribution that is includible in gross income and the portion of the distribution that is not so includible; or (iii) on or after January 1, 2008, to a Roth IRA described in Section 408A of the Internal Revenue Code. Effective January 1, 2002, the definition of an eligible rollover distribution also includes a distribution to a surviving spouse, or to a spouse or former spouse who is an alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Internal Revenue Code.

(2) "Eligible retirement plan" means any of the following that accepts the distributee's eligible rollover distribution:

(A) an individual retirement account described in Section 408(a) of the Internal Revenue Code;

(B) an individual retirement annuity described in Section 408(b) of the Internal Revenue Code;

(C) an annuity plan described in Section 403(a) of the Internal Revenue Code;

(D) a qualified trust described in Section 401(a) of the Internal Revenue Code;

(E) effective January 1, 2002, an annuity contract described in Section 403(b) of the Internal Revenue Code;

(F) effective January 1, 2002, a plan eligible under Section 457(b) of the Internal Revenue Code that is maintained by a state, political

subdivision of a state, or any agency or instrumentality of a state or a political subdivision of a state that agrees to separately account for amounts transferred into that plan from the Retirement System; or

(G) effective January 1, 2008, a Roth IRA described in Section 408A of the Internal Revenue Code.

(3) "Distributee" means an employee or former employee. It also includes the employee's or former employee's surviving spouse and the employee's or former employee's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Internal Revenue Code. Effective January 1, 2007, a distributee further includes a nonspouse beneficiary who is a designated beneficiary as defined by Section 401(a)(9)(E) of the Internal Revenue Code. However, a nonspouse beneficiary may rollover the distribution only to an individual retirement account or individual retirement annuity established for the purpose of receiving the distribution, and the account or annuity will be treated as an "inherited" individual retirement account or annuity.

(4) "Direct rollover" means a payment by the plan to the eligible retirement plan specified by the distributee.

(c) Rollover contributions and/or direct rollovers of distributions made after December 31, 2001 will be accepted for the purchase of prior or future service credit from the types of plans specified.

(d) The plan will accept a direct rollover of an eligible rollover distribution from:

(1) A qualified plan described in Section 401(a) or 403(a) of the Internal Revenue Code.

(2) An annuity contract described in Section 403(b) of the Internal Revenue Code.

(3) An eligible plan under Section 457(b) of the Internal Revenue Code which is maintained by a state, political subdivision of a state, or an agency or instrumentality of a state or political subdivision of a state.

(e) The plan will accept a participant contribution of an eligible rollover distribution from:

(1) A qualified plan described in Section 401(a) or 403(a) of the Internal Revenue Code.

(2) An annuity contract described in Section 403(b) of the Internal Revenue Code.

(3) An eligible plan under Section 457(b) of the Internal Revenue Code which is maintained by a state, political subdivision of a state, or an agency or instrumentality of a state or political subdivision of a state.

(f) The plan will accept a participant rollover contribution of the portion of a distribution from an individual retirement account or annuity described in Section 408(a) or 408 (b) of the Internal Revenue Code that is eligible to be rolled over and would otherwise be includible in gross income.

SECTION 38. Permissive Service Credit Purchases.

Subject to any applicable limitations in Section 36 of this Charter Ordinance, Members in current pay status shall be permitted to purchase Permissive Service Credit, based on Other Governmental Employment or Past Wichita Employment, provided the Member is not using such prior period of employment to establish service credit under any other Wichita or other governmental retirement system. The Permissive Service Credit shall be applied like Service as an increased benefit accrual factor ("multiplier"), for purposes of Sections 15(a), 15(b), 15(c), 20, 22(e)(for purposes of computing benefit as of effective backward DROP date) and 24(c). The increased multiplier may be purchased in bi-weekly increments in an amount not to exceed 12.5% of final average salary (5 years of service). In the case of Permissive Service Credit based on Past Wichita Employment, such credit shall also be counted like Service for purposes of meeting minimum Service period qualifications

for benefits and retirement allowances under Sections 14(b), 14(c), 14(d), 14(e), 15(a), 15(b), 15(c), 20 (except it shall not be treated as Service "rendered" after reemployment under the fourth paragraph of such section), 22(a), 23 and 24 of this Retirement System.

Permissive Service Credit shall not be granted until the Member has paid to the Plan the full actuarial cost thereof, as determined by the System, together with any fees for determining such cost. Purchases may be funded in whole or in part with a rollover from another qualified plan, as permitted by Section 37 of this Charter Ordinance. The Board shall establish a uniform rule for the implementation of this provision. The cost of such Permissive Service Credit purchase shall be determined as the increase in the actuarial present value of the Member's plan benefit after the purchase as compared to the actuarial present value of the Member's plan benefit before the purchase, and the calculations shall be based on actuarial assumptions adopted by the Board upon the recommendation of the Actuary.

Any Member wishing to determine the cost of purchasing service credit hereunder shall be required to pay the actual cost of any fee to determine the actuarial cost of the service credit, regardless of whether or not the service credit is actually purchased.

The total benefits actually paid from the Retirement System to the Member or his or her beneficiaries after the Permissive Service Credit Purchase shall be guaranteed to be not less than the total amount of contributions that the Member has made, including money transfers for Permissive Service Credit Purchases.

SECTION 39. The Original of Charter Ordinance No. 215 of the City of Wichita, Kansas, is hereby repealed.

SECTION 40. Publication.

This ordinance shall be published once each week for two (2) consecutive weeks in the official city newspaper.

SECTION 41. Petition for Referendum.

This is a charter ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3), of the Constitution of Kansas, in which case the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED by the governing body of the City of Wichita, Kansas, and signed by the Mayor, this 23rd day of February, 2018.

/s/ Jeff Longwell,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Jennifer Magaña
Director of Law and City Attorney

CHARTER ORDINANCE NO. 231

A CHARTER ORDINANCE AMENDING CHARTER ORDINANCE NO. 226 REPEALING SECTIONS 1, 2, 3, AND 5 PERTAINING TO GOVERNING BODY COMPENSATION AND PROVIDING SUBSTITUTE PROVISIONS, BY ORDINARY ORDINANCE, FOR GOVERNING BODY COMPENSATION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Sections 1, 2, 3 and 5 Charter Ordinance No. 226 of the Code of the City of Wichita, Kansas, are hereby repealed. The compensation of Mayor and City Council Members shall be established by ordinary ordinances enacted by the City Council following passage of this ordinance.

SECTION 2. This ordinance shall be published once each week for two consecutive weeks in the official newspaper.

SECTION 3. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition of referendum held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

SECTION 4. The originals of Sections 1, 2, 3 and 5 of Charter Ordinance 226 are hereby repealed.

PASSED by the governing body, not less than two-thirds of the members elect voting in favor thereof this 28th day of August, 2018.

/s/ Jeff Longwell,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Jennifer Magaña
Director of Law

CHARTER ORDINANCE NO. 232

A CHARTER ORDINANCE AMENDING CHARTER ORDINANCE NO. 189 OF THE CITY OF WICHITA, KANSAS, EXEMPTING SAID CITY FROM THE PROVISIONS OF K.S.A. 17-2341, AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT, PERTAINING TO THE ESTABLISHMENT OF THE HOUSING AUTHORITY BOARD OF THE CITY OF WICHITA, KANSAS, AND ESTABLISHING THE MEMBERSHIP THEREOF.

WHEREAS, the Governing Body of the City of Wichita, by Resolution of December 21, 1965, established a local housing authority (now known as the Wichita Housing Authority) under the laws of Kansas, as a body constituted, politic, and delegated the powers and to have all those powers constituted and appointed under and by virtue of the laws of the State of Kansas so known, except the authority to construct low-cost housing units; and

WHEREAS, the 1965 Resolution was subsequently amended to provide the power of acquisition and rehabilitation of property, to provide for a cooperative agreement which included construction of Project KANS 4-5 to house elderly families and to amend the Annual Contribution Contract for federal financing of such project, and, as of December 11, 1973, the power to construct Project KANS 4-5 (the 1965 Resolution, together with all subsequent amendments, being hereinafter referred to as the "Housing Authority Resolution"); and

WHEREAS, by Charter Ordinance No. 189 of the City of Wichita, the Governing Body, in 2001, exempted The City from the provisions of K.S.A. 17-2341, and provided substitute and additional provisions on the same subject, establishing the members of the Governing Body of the City of Wichita as the members of the Wichita Housing Authority Board along with one additional member who is a tenant receiving public housing or Section 8 assistance from the City of Wichita; and

WHEREAS, the City of Wichita granted to such members all powers of authority to govern

the Wichita Housing Authority and to exercise all power, rights, and control of the Wichita Housing Authority; and

WHEREAS, a separate advisory board referenced by Charter Ordinance No. 189 was subsequently discontinued by the repeal of City Code sections 2.12.1170, 2.12.1172 and 2.12.1175, in August of 2010; and

WHEREAS, the Governing Body of the City desires to update the provisions of Charter ordinance No. 189 of the city of Wichita and to clarify the powers and roles of the City of Wichita and the Wichita Housing Authority in connection with the transition of public housing units to a plan of project-based assistance pursuant to the federal Rental Assistance Demonstration program;

NOW THEREFORE BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas, by virtue of the power vested in it by Article 12, Section 5, of the Constitution of the State of Kansas, hereby amends SECTION 2 of Charter Ordinance No. 189 of the City of Wichita, Kansas, to read as follows:

SECTION 2. (a) Pursuant to the provisions of K.S.A. 17-2340, there is hereby continued in existence an agency and authority of the City of Wichita to be known as the Wichita Housing Authority. The Wichita Housing Authority Board shall be granted all powers and authority to govern the Wichita Housing Authority and to exercise all powers, rights and control of the Wichita Housing Authority as have been or may hereafter be delegated by the City of Wichita pursuant to the Housing Authority Resolution and any subsequent amendments thereto, or by this Charter Ordinance, including, hereafter, the power to act as the sole or managing member of any limited liability company serving as the general partner in any limited partnership leasing housing properties from the City of Wichita, Kansas. Provided, however, that all delegations of powers relating to the issuance of revenue bonds, or establishment of the terms, conditions and provision for payment thereof, for purposes permitted pursuant to the municipal housing law, K.S.A. 17-2337 through K.S.A. 17-2365, shall be deemed non-exclusive, with the City reserving the right to exercise such powers directly whenever such shall be deemed necessary or desirable by the Governing Body of the City.

(b) The membership of the Wichita Housing Authority Board shall consist of the members of the governing body of the City of Wichita, and one additional member who shall be a tenant receiving public housing or Section 8 assistance from the City of Wichita. Such additional member shall be appointed by the mayor with the approval of the city council.

(c) The members of the Wichita Housing Authority Board who are also members of the governing body of the City of Wichita shall have such qualifications and terms of office as is now or hereafter established by law and ordinance for the governing body of the City of Wichita. The member of the Wichita Housing Authority Board who is a tenant receiving public housing or Section 8 assistance from the City of Wichita shall be subject to the minimum standards of conduct and qualifications of appointive members of boards and commissions as set forth by the City Code.

(d) The Wichita Housing Authority Board shall have such composition, officers, quorum and procedures for the transaction of business as is now or hereafter established by law and ordinance for the governing body of the City of Wichita. Provided, that when State law or Charter Ordinance requires the Wichita Housing Authority Board to act in a different manner or under different procedures than is required for the governing body of the City of Wichita, such different procedures shall control for actions of the Wichita Housing Authority Board.

SECTION 2. SECTION 2 of Charter Ordinance No. 189, as it previously existed, is hereby repealed and replaced by the amended version set forth in SECTION 1, above.

SECTION 3. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City newspaper.

SECTION 4. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum is filed and a referendum held on the Ordinance as provided in Article 12, Section 5, Subdivision (c) of the Constitution of the State of Kansas, in which case the Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 28th day of August, 2018.

(SEAL)

/s/ Jeff Longwell,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

APPROVED AS TO FORM:

/s/ Jennifer Magaña
Director of Law and City Attorney

CHARTER ORDINANCE NO. 233

A CHARTER ORDINANCE AMENDING SECTION 2 OF CHARTER ORDINANCE NO. 192 AND SECTIONS 2, 4 AND 5 OF CHARTER ORDINANCE NO. 206 OF THE CODE OF THE CITY OF WICHITA, KANSAS, PERTAINING TO PAWNBROKERS, SECONDHAND DEALERS AND PRECIOUS METAL DEALERS AND REPEALING THE ORIGINALS OF SAID SECTIONS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. (Amended and repealed—See Charter Ordinance No. 238, § 1.)

SECTION 2: The original of Section 2 of Charter Ordinance No. 206 is hereby amended to read as follows:

"SECTION 12. **Pawnbrokers:** Records to be kept, register to be delivered to police department.

(a) It shall be the duty of every pawnbroker to maintain at his/her place of business a book, register or other permanent record, in which shall be legibly printed, lettered or typed, by the pawnbroker or his/her employee, in the English language, at the time of such loan, consignment, purchase, trade or receipt of any item received as a pawnbroker, a record thereof containing the information listed in Subsections (1) through (7) of this section. Such entries shall be made at the time of the purchase or receipt of such property. All such records shall be made on forms approved by the Wichita Police Department. Entries shall not, in any manner, be erased, obliterated or defaced.

Such records must include:

(1) The time and date of the transaction;

(2) The name of the employee conducting the transaction and the manager or owner on duty;

(3) The full legal name, (first, middle and last), date of birth, sex, height, weight, race and address (which

shall include the street address, and not merely a post office box number) of the person selling, trading or leaving the property;

(4) The type and identifying numbers of identification presented at the time of the transaction by the person with whom the transaction was made. Such identification shall include a valid driver's license with expiration date, including the state where such license is issued, or, in the event such person has no driver's license, a valid identification card issued by any state or two pieces of identification issued by a governmental agency, one of which shall be descriptive of the person identified. At all times, one piece of current government issued picture identification will be required;

(5) A detailed description of the property bought or received in pledge, including: brand name, serial number, model number, title or name, engravings, size, pattern, color, markings and shape, the caliber, barrel length, and type of action of any firearm and whether it is a pistol, rifle or shotgun, and any peculiarity likely to identify the property. The description of jewelry shall include the type of metal employed, all letters and marks inscribed thereon, the weight and size and gemstone description, including the number of stones;

(6) The price paid or the amount loaned and annual percentage interest rate charged; and

(7) A signed statement that the person is the legal owner of the item or is an agent of the legal owner who is authorized to pawn, pledge, sell or trade such item and stating the length of ownership of the item. If the owner's agent is pawning, pledging, selling or trading the item, the owner's name and address shall be provided at the time of the transaction.

After July 1, 2021, in addition to the requirements set forth above, every pawnbroker will obtain a digital scan of the seller's thumb and if the thumb is missing, the fingerprint shall be taken from the index finger and shall obtain a photographic or scanned image of the identification card of the seller, sufficiently clear to allow the information on the identification card to be read.

(b) It shall be the duty of every pawnbroker to furnish a full, true and correct transcript of the record of all transactions conducted on the preceding day. These transactions shall be recorded in such format as may be required by the Chief of Police or his designee. It shall be the duty of every pawnbroker to furnish a full, true and correct transcript of the record of all transactions on the preceding day (except those between dealers licensed under this ordinance) to the Wichita Police Department or its designee. These transactions shall be submitted electronically on such forms in such format as may be required by the Chief of Police or his designee. Such information must be transmitted to the Wichita Police Department or its designee no later than 5:00 p.m. on the next business day.

In the event the City has entered into a contract for an electronic reporting system of transactions, it shall be the exclusive means by which such transactions are to be reported to the department. Every pawnbroker shall operate and maintain a computer system with Internet access and photographic capability sufficient to meet the reporting requirements set forth above. Any failure or malfunction of such equipment on the part of the pawnbroker shall not exempt the dealer from the recording and reporting requirements of this section. The pawnbroker shall immediately notify the police department of any such failure or malfunction

and shall have such failure resolved as soon as practicable, but not less than two business days.

(c) No such report need be made concerning property or merchandise acquired from another licensee involving the purchase or other acquisition from the other licensee, where the other licensee has made the reports required by this section with respect to such property or merchandise.

(d) All records required by this Section, including those submitted electronically, shall be maintained by the pawnbroker at the pawnbroker's place of business for not less than two (2) years following the date of the transaction.

(e) Every pawnbroker, agent or employee of such pawnbroker or dealer who fails, neglects or refuses to make the reports called for by this Section, or who reports any material matter falsely to the Chief of Police or his designee, is guilty of a violation of this Charter Ordinance.

(f) Reports made pursuant to this Section shall be available for inspection only by law enforcement officers, City, County and District Attorneys and their employees, for law enforcement purposes."

SECTION 3. (Amended and repealed—See Charter Ordinance No. 238, § 1.)

SECTION 4. (Amended and repealed—See Charter Ordinance No. 238, § 1.)

SECTION 5. The originals of Section 2 of Charter Ordinance No. 192 and Sections 2, 4, and 5 of Charter Ordinance No. 206 are hereby repealed.

SECTION 6. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City paper.

SECTION 7. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 14th day of May, 2019.

/s/ Jeff Longwell,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Jennifer Magaña
City Attorney and Director of Law

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(e) Reports made pursuant to this Section shall be available for inspection only by law enforcement officers, City, County and District Attorneys and their employees, for law enforcement purposes.

(f) Where used consumer cellular phones or electronic devices are sold, traded, exchanged or involved in any other transaction and such devices are received through the use of an automated kiosk, such property and/or transaction is not subject to the reporting requirements of Subsection (a) if:

(1) As a part of the record of the transaction, the following information is documented: the date, time and place of the transaction; the legal name, date of birth, residence and phone number of the seller; a detailed description of the device or devices, including the brand name, color, model number, title or name, size, markings, serial number and/or any other identifying number; the amount paid for the device or devices, and the employee or live representative remotely handling the transaction. Such records shall be submitted to the Wichita Police Department within twenty-four (24) hours after receipt of the consumer cellular phone or electronic device in a manner designated by the Wichita Police Department. All information submitted under this subsection shall be kept confidential for law enforcement use only and shall not be a public record. Such records must be retained by the business operating the automated kiosk for a period not less than two (2) years following the date of the transaction.

(2) At the time of the transaction, in order to accept the used consumer cellular phones or electronic device, the business will cross-reference the identifying features of the device in a national lost and stolen database and will refuse to accept any device that has been recorded as lost or stolen in the database."

SECTION 4: The original of Section 5 of Charter Ordinance No. 206 is hereby amended to read as follows:

"SECTION 21. **Secondhand Dealers and Precious Metal Dealers**. Items acquired to be held:

(a) Every secondhand dealer and precious metal dealer (except persons whose dealership in secondhand merchandise is limited exclusively to used motor vehicle sales) shall segregate the property purchased or received from the property purchased or received from other sellers and attach to the property or to the container in which the property is held a tag indicating the name of the seller and the date on which the property was purchased or received. Further, every secondhand dealer and precious metal dealer shall retain possession of the purchased property at the licensed premises and withhold the property from resale or salvage use for fourteen (14) calendar days from the date of the transaction and shall make the purchased property available for inspection at his/her place of business by any police officer or other official designated by the chief of police during regular business hours while in his/her possession. However, the provisions of this section do not apply to property or transactions designated in Section 20(d) as being exempt from the reporting requirements.

(b) When a police officer has reasonable cause to believe that any property received by a secondhand dealer or precious metal dealer is stolen, the police officer may place a hold notice upon the property. All property upon which a hold notice has been placed must be held by the dealer at the local place of business for sixty (60) calendar days unless released sooner by authority of the Police Chief or his designee. After sixty (60) calendar days,

unless other disposition is authorized by the Police Chief or his designee, the hold is automatically released and the secondhand dealer, or precious metal dealer may dispose of the property.

(c) The holding requirements of Subsection (a) shall not apply to phonographic records, cassette tapes, compact discs or video games when such items are not purchased, traded, pawned or sold in conjunction with an operation system or stereo equipment. Items which are sold, purchased, traded or pawned during any normal business day to or from the same individual shall be considered "sold in conjunction" for the holding requirements in this section.

(d) The holding requirements of Subsection (a) shall not apply to used consumer cellular phones or electronic devices that are sold, traded, exchanged or involved in any other transaction and such devices are received through the use of an automated kiosk, if:

(1) Such devices received are shipped to a secure off-site location as approved by the Chief of the Wichita Police Department or the Chief's designee. Devices shipped under this subsection must be held for thirty (30) calendar days after submitting the complete report required in Section 20(f)(a) to the Wichita Police Department, subject to return and inspection by any officer of the Wichita Police Department upon request. The off-site location may be located outside of the City of Wichita and/or the State of Kansas.

(2) The licensee shall comply within twenty-four (24) hours with a request from the Wichita Police Department to open the automated kiosk to allow officers the opportunity to inspect any device within such kiosk or to review any recorded data therein.

(3) Any items found to be recorded as stolen or otherwise subject to a civil or criminal investigation must be shipped to any requesting law enforcement officer with all shipping costs to be borne by the secondhand goods dealer."

SECTION 5. The originals of Section 2 of Charter Ordinance No. 192 and Sections 2, 4, and 5 of Charter Ordinance No. 206 are hereby repealed.

SECTION 6. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City paper.

SECTION 7. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 14th day of May, 2019.

/s/ Jeff Longwell,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Jennifer Magaña
City Attorney and Director of Law

CHARTER ORDINANCE NO. 234

A CHARTER ORDINANCE OF THE CITY OF WICHITA, KANSAS RELATING TO THE MEMBERSHIP OF THE BOARD OF APPEALS OF PLUMBERS AND GAS FITTERS, AMENDING SECTION 1 OF CHARTER ORDINANCE 219 AND REPEALING THE ORIGINAL OF SAID SECTION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Section 1 of Charter Ordinance No. 219 of the City of Wichita, is hereby amended to read as follows:

"There is hereby authorized a Board of Appeals of Plumbers and Gas Fitters, which shall consist of the Director of the Metropolitan Area Building and Construction Department ("MABCD"), or the duly authorized representative, who shall serve as the secretary of the board, and nine other members, as follows:

(1) One mechanical contractor whose experience and training is specific to, but not limited to, mechanical contracting (appointed by the City);

(2) One master plumber whose experience and training is specific to, but not limited to, new residential plumbing (appointed by the County);

(3) One master lawn sprinkler whose experience and training is specific to, but not limited to, lawn sprinkler systems (appointed by the City);

(4) One master plumber whose experience and training is specific to, but not limited to, service and repair plumbing (appointed by the County);

(5) One licensed professional engineer whose experience and training is specific to, but not limited to, the design of mechanical systems (appointed by the County);

(6) One master plumber whose experience and training is specific to, but not limited to, industrial and commercial plumbing (appointed by the City);

(7) One master plumber whose primary profession involves the installation of plumbing and plumbing systems (appointed by the City);

(8) One journeyman plumber whose primary profession involves the installation of plumbing and plumbing systems (appointed by the County); and

(9) One public at large member (appointed jointly by the City and the County).

The board shall elect its own chair and make such rules as are necessary for the conduct of its business."

SECTION 2. The original of Section 1 of Charter Ordinance No. 219 is hereby repealed.

SECTION 3. Upon the effective date of this Ordinance, the terms for the current members of the plumbing board shall terminate, and the governing bodies for Sedgwick County and the City of Wichita shall appoint board members to new terms for the positions indicated within this Ordinance. Subject to provisions within the UBTC and any other applicable City ordinances and County resolutions, current board members would be eligible for new appointments to the plumbing board.

SECTION 4. The Ordinance shall be published once each week for two consecutive weeks in the official city newspaper.

SECTION 5. This is a charter ordinance and shall take effect sixty-one days after final publication unless a sufficient petition for referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5(c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED AND ADOPTED BY THE GOVERNING BODY, not less than two-thirds of the members-elect voting in favor thereof, this 13th day of August, 2019.

/s/ Jeff Longwell,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Jennifer Magaña
City Attorney and Director of Law

CHARTER ORDINANCE NO. 236

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 13-1209 AND K.S.A. 13-1210 AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT RELATING TO WATERWORKS IMPROVEMENTS AND THE ISSUANCE OF BONDS FOR THE PURPOSE OF PAYING FOR SAID IMPROVEMENTS.

WHEREAS, Article 12, § 5 of the Constitution of the State of Kansas (the "Act") empowers cities to determine their local affairs and government and provides that such power and authority granted thereby to cities shall be liberally construed for the purpose of giving to cities the largest measure of self-government, including passing charter ordinances which exempt such cities from non-uniform statutes and acts of the Kansas Legislature; and

WHEREAS, the City of Wichita, Kansas (the "City") is a city duly created and organized, under the laws of the State of Kansas; and

WHEREAS, K.S.A. 13-1209 and K.S.A. 13-1210 are part of an enactment of the Kansas Legislature (K.S.A. 13 1209 *et seq.*) relating to the purchase, construction or extension of waterworks, including in areas outside of the corporate boundaries of the city and the issuance of bonds for such purposes, which enactment is applicable to the City, but is not uniformly applicable to all cities within the State of Kansas; and

WHEREAS, the City Council of the City (the "Governing Body") desires, by charter ordinance, to exempt the City from the provisions of K.S.A. 13-1209 and K.S.A. 13-1310, and to provide substitute and additional provisions therefor.

NOW, THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

Section 1. Exemption. The City, by virtue of the powers vested in it by the Act, hereby elects to exempt itself from and hereby makes inapplicable to it the provisions of K.S.A. 13-1209

and K.S.A. 13-1210, and does hereby provide the following substitute and additional provisions in place thereof:

(a) The City of Wichita, Kansas (the "City") shall have full power and authority to purchase, construct or extend waterworks for the purpose of supplying the City and its inhabitants with water, and may maintain, operate and regulate the same, and prescribe the rates at which water shall be furnished; and the City may acquire, by purchase or appropriate proceedings in condemnation, all grounds deemed necessary either within or without the City upon which to erect such works, and upon which to lay pipes and mains for the purpose of conveying water to consumers; and for the purpose of protecting, maintaining and operating such works, the City shall have the same jurisdiction over any grounds acquired outside of the City for such purposes, as if such grounds were within the City.

(b) The City is hereby authorized to make waterworks improvements authorized and in the manner provided for in the General Improvement and Assessment law as contained in K.S.A. 12-6a01 *et seq*. (the "General Improvement Law"), and in those areas beyond the corporate limits of the City and within (5) miles thereof, including areas that include territory within other cities within such distance; provided that such other cities shall have consented to the making of such improvements. The financing of such waterworks improvements, including the levy of special assessments, shall be made as provided for in the General Improvement Law as if the improvements were located within the corporate limits of the City. The City is hereby authorized to impose upon the properties served with waterworks improvements pursuant to the authority granted herein, user fees which may be based upon the cost of operation and maintenance of such waterworks improvements and also the recovery of an equitable portion of the capital improvement cost of any such improvements originally charged to or assessed within the property within the corporate limits of such city. The user fees authorized shall be a lien against the real property served by such waterworks improvements and may be collected in the same manner as delinquent real estate taxes.

(c) The City shall have the power and authority to issue general obligation bonds as provided by law, and the proceeds derived from the sale of the same, or such part thereof as may be necessary, may be used by such city for the purpose of acquiring said grounds and for the purpose of purchasing, constructing or extending such waterworks. As an alternative, the City may also issue general obligation bonds to pay the costs of improvements constructed pursuant to the authority provided in subsection (b) hereof; such bonds to be issued as provided for in the General Improvement Law.

Section 2. Severability. If any provision or section of this Charter Ordinance is deemed or ruled unconstitutional or otherwise illegal or invalid by any court of competent jurisdiction, such illegality or invalidity shall not affect any other provision of this Charter Ordinance. In such instance, this Charter Ordinance shall be construed and enforced as if such illegal or invalid provision had not been contained herein.

Section 3. Effective Date. This Charter Ordinance shall be published once a week for two consecutive weeks in the official City newspaper, and shall take effect sixty-one (61) days after final publication, unless a petition signed by a number of electors of the City equal to not less than ten percent (10%) of the number of electors who voted at the last preceding regular City election shall be filed in the office of the Clerk, demanding that this Charter Ordinance be submitted to a vote of the electors, in which event this Charter Ordinance shall take effect when approved by a majority of the electors voting at an election held for such purpose.

PASSED with at least a two-thirds (2/3) vote of the entire Governing Body of the City of Wichita, Kansas, on September 15, 2020 and signed by the Mayor.

(SEAL)

/s/ Brandon J. Whipple,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

APPROVED AS TO FORM:

/s/ Jennifer Magaña
Director of Law and City Attorney

CHARTER ORDINANCE NO. 237

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA, KANSAS FROM THE PROVISIONS OF K.S.A 12-4111, 12-4113, 12-4202, 12-4203, 12-4204, 12-4207, 12 4208, 12-4210, 12-4211, 12-4212, 12-4215, 12-4516, AND 12 4516a AND AMENDMENTS THERETO RELATING TO MUNICIPAL COURT PROCEDURES AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS OF THE SAME SUBJECT AND REPEALING SECTIONS 3, 8, 12 AND 13 OF CHARTER ORDINANCE 224 AND ALL SECTIONS OF CHARTER ORDINANCE 229.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

Be it ordained by the governing body of the City of Wichita, Kansas, a Council Manager City of the First Class, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself from, and makes inapplicable to it the provisions of K.S.A. 12-4111, 12 4113, 12-4202, 12-4203, 12-4204, 12 4207, 12 4208, 12- 4210, 12-4211, 12-4212, 12-4215, 12-4516, and 12 4516a, and amendments thereto, and provide substitute and additional provisions as hereinafter set forth in this ordinance. Such referenced provisions are either enactments or a part of an enactment, which are applicable to this City, but are not applicable uniformly to all cities.

SECTION 1. (Amended and repealed—See Charter Ordinance No. 239, § 1.)

SECTION 2. Section 2 is hereby created to read as follows:

"Law Enforcement Officers and Court Services Officers - Powers.

a. The governing body of the City of Wichita may employ law enforcement officers who shall have power to execute all process issued by any Municipal Court Judge within the state and deliver to him or her for that purpose, to detain persons, to place them in custody and to arrest them pursuant to the Code of the City of

Wichita and the Kansas Municipal Court Procedures Act, K.S.A. 12-4101 *et seq*. and amendments thereto.

The powers of law enforcement officers with respect to the code of criminal procedure shall not be reduced by this Code.

b. 1. The governing body of the City of Wichita may employ court services officers who shall have the limited authority to serve process and execute warrants issued by a Wichita Municipal Court Judge. For the purpose of executing these warrants, a court services officer may detain such persons, place them in custody and arrest them pursuant to a valid Wichita Municipal Court warrant. Such arrests may only take place in the Wichita Municipal Court of individuals who have surrendered themselves to the court on the warrant or have otherwise appeared before the Municipal Court.

2. Court Services Officers are authorized to fingerprint individuals arrested on Municipal Court warrants as described in this section, or as otherwise directed by a Wichita Municipal Court Judge and, as required, transport such individuals to or from the Sedgwick County Adult Detention Facility. Court service officers may release individuals from custody as directed by a Wichita Municipal Court Judge.

3. Court services officers are authorized to serve and execute summonses, notices to appear, citations, complaints and all other process issued by any Wichita Municipal Court Judge.

4. Court services officers are not authorized to enforce any provisions of the Code of the City of Wichita or other state or federal laws. Further, such officers are not authorized to execute arrests outside the confines of Wichita Municipal Court or execute warrants issued by other courts or jurisdictions.

5. Court services officers may not detain an individual or execute a warrantless arrest unless authorized by a Wichita Municipal Court Judge or as allowed by K.S.A. 22-2403 and amendments thereto."

SECTION 3. Section 3 of Charter Ordinance 224 is hereby amended to read as follows:

"Power to make an arrest or detain.

a. A law enforcement officer may arrest a person when:

1. The officer has a warrant commanding that such person be arrested; or

2. The law enforcement officer has no warrant, but a warrant for the person's arrest has been issued by a Municipal Court in the state; or

3. The officer has probable cause to believe that the person is committing or has committed a violation of an ordinance and that person has intentionally inflicted bodily harm on another person; or

4. The law enforcement officer having no warrant has detained such person when:

A. The officer has probable cause to believe that the person is committing or has committed a violation of a municipal ordinance and that such person will not be apprehended or evidence of the violation of the ordinance will be irretrievably lost unless such person is immediately detained, or such person may cause injury to themselves or others or damage to property unless immediately detained; or

B. Any violation of an ordinance has been or is being committed

by such person in the officer's view and any of the following conditions also exist:

i. Such person refuses to give a written promise to appear in court when served with a notice to appear; or

ii. Such person is unable to provide identification of themselves to the reasonable satisfaction of the law enforcement officer; or

iii. Such person is not a resident of the State of Kansas; or

iv. The law enforcement officer has probable cause to believe that such person may cause injury to themselves or others or may damage property unless immediately arrested.

5. A law enforcement officer may execute an arrest for any misdemeanor offense, except a traffic or tobacco infraction, that has been or is being committed by the person in the officer's view and such misdemeanor has been designated specifically by the Chief of Police, with the approval of the Municipal Court Judge, as an offense for which an arrest shall be made.

b. In addition to the provisions set forth above, a law enforcement officer may detain a person when:

1. The law enforcement officer has reason to believe that a warrant for the persons arrest has been issued by any municipal court; or

2. The officer has probable cause to believe that the person is committing or has committed a violation of a municipal ordinance and that such person will not be apprehended or evidence of the violation of the ordinance will be irretrievably lost unless such person is immediately detained, or such person may cause injury to themselves or others or damage to property unless immediately detained; or

3. Any violation of an ordinance has been or is being committed by such person in his or her view.

c. A law enforcement officer having detained a person pursuant to the paragraphs (b)(2) or (b)(3) may release the person or may prepare and serve upon such person a complaint and notice to appear, as provided by this code and shall then release such accused person from such detention, except in such instances where the law enforcement officer has power and authority to arrest such accused person as set forth in this code.

d. A court services officer may arrest or detain a person when:

1. The officer has a warrant issued by a Wichita Municipal Court Judge commanding that such person be arrested and such person has surrendered himself or herself to the Municipal Court on such warrant or has otherwise appeared before the Municipal Court.; or

2. The court services officer has no warrant, but a warrant for the person's arrest has been issued by a Wichita Municipal Court Judge and

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such person has surrendered himself or herself to the Municipal Court on such warrant or has otherwise appeared before the Municipal Court.

3. Court services officers may not detain an individual or execute a warrantless arrest unless authorized by a Wichita Municipal Court Judge or as allowed by K.S.A. 22-2403 and amendments thereto.

4. Except as allowed by K.S.A. 22-2403 and amendments thereto, a court services officer may not execute arrests outside the confines of the Wichita Municipal Court or execute warrants issued by other courts or jurisdictions.

5. Court services officers may release individuals from custody as directed by a Wichita Municipal Court Judge.

e. Court services officers are authorized to serve and execute summonses, notices to appear, citations, complaints and all other process issued by any Wichita Municipal Court Judge.

f. Court services officers are authorized to fingerprint individuals arrested on warrants issued by a Wichita Municipal Court Judge or as otherwise directed by a Wichita Municipal Court Judge and, as required, transport individuals to or from the Sedgwick County Adult Detention Facility.

SECTION 4. Section 4 is hereby created to read as follows:

"Complaint Requirements.

a. A complaint shall be in writing and shall be signed either personally or electronically by the complainant. A complaint shall be deemed valid if the complainant has signed, either manually or electronically, the complaint or an affidavit incorporated into the complaint and/or attached to the complaint.

b. A complaint shall be deemed "in writing" if the information is inscribed on a tangible medium or stored in an electronic or other medium and is retrievable in perceivable form.

c. More than one violation may be charged in the same complaint. Traffic, tobacco or other infractions, misdemeanor traffic and criminal offenses may be charged on the same complaint or notice to appear.

d. A complaint is valid if it bears the manual or electronic signature of the law enforcement officer, community service officer, parking control officer, or other official designated by the Code of the City of Wichita to enforce ordinance violations. Such electronic signature must comply with the provisions of this Code.

e. Except as otherwise provided in this Code, a complaint shall be deemed sufficient if it contains the information and data elements as set forth in K.S.A. 8-2106(b) and/or K.S.A. 12 12-4205a and amendments thereto."

SECTION 5. Section 5 is hereby created to read as follows:

"Complaint How Issued.

a. A copy of a complaint shall be served, together with a notice to appear or a warrant by a law enforcement officer, court services officer, process server or other official designated by the Code of the City of Wichita to enforce ordinance violations upon the accused person, and forthwith, the complaint shall be filed with the Municipal Court. Additionally, the Municipal Court Administrator, with the concurrence of the Chief Municipal Court Judge may designate court and probation personnel to serve complaints or notices to appear which have been filed with the court. Such court or probation personnel are not authorized to serve or execute arrest or bench warrants issued by a Municipal Court Judge.

b. In addition to those individuals set forth in this section to serve citations, notices to appear and complaints, a process server

may be approved by the court to serve notices to appear, citations and complaints.

c. Unless provided for by this Code or state law, city personnel or process servers appointed to serve complaints, citations or notices to appear, pursuant to this Section, do not have the authority to arrest or detain an individual pursuant to an arrest or bench warrant.

d. The City Attorney shall cause a notice to appear to be issued, unless he or she has good reason to believe that the accused person will not appear in response to a notice to appear, in which case, the City Attorney may request that a warrant be issued. Such warrant will be issued if the complaint is positively sworn to and the Municipal Court Judge has probable cause to believe that (a) there has been the commission of a violation of a municipal ordinance, (b) the accused person committed such violation, and (c) the accused person will not appear in response to a notice to appear.

e. If a City Attorney fails either to cause a notice to appear or to request a warrant to be issued, on a complaint initially filed with the Municipal Court, the Municipal Court Judge may, upon affidavits filed with him or her alleging the violation of an ordinance, order the City Attorney to institute proceedings against any person. Any such Municipal Court Judge shall be disqualified from sitting in any case wherein such order was entered and is further prohibited from communicating about such case with the Municipal Court Judge *pro tem* appointed by the Municipal Judge to preside therein."

SECTION 6. Section 6 is hereby created to read as follows:

"Notice to Appear - Contents.

A notice to appear shall describe the offense charged, shall summon the accused person to appear, shall contain a space in which the accused person may agree, in writing, to appear, except as otherwise ordered by the court, at a time not less than five (5) days after such notice to appear is given, unless the accused person shall demand an earlier hearing. A notice to appear may be signed by a Municipal Court Judge, the Clerk of the Municipal Court, the City Attorney, an Assistant City Attorney, a law enforcement officer, a community services officer, a parking control officer or an official designated by the Code of the City of Wichita to enforce ordinance violations."

SECTION 7. Section 7 is hereby created to read as follows:

"Service - Return.

The notice to appear shall be served upon the accused person by delivering a copy to him or her personally, or by leaving it at the dwelling house of the accused person or usual place of abode with some person of suitable age and discretion then residing therein, or by mailing it to the last known address of said person. A notice to appear may be served by any law enforcement officer, community services officer, parking control officer, court services officer, the Municipal Court Judge, the Clerk of the Municipal Court, and their designees, the City Attorney, an Assistant City Attorney, a private process server approved by the Municipal Court or other individual designated by the Code of the City of Wichita to enforce ordinance violations. If mailed, the notice to appear shall be mailed by a law enforcement officer, a community services officer, a parking control officer, a court services officer, the Municipal Court Judge, the Clerk of the Municipal Court and their designees, the City Attorney, private process server approved by the Municipal Court or other individual designated by the Code of the City of Wichita to enforce ordinance violations. Upon service by mail, the person serving the notice to appear shall execute a verification to be filed with a copy of the notice to appear. Said verification shall be deemed sufficient if in substantially the following form:

The undersigned hereby certifies that on the ____ day of _____, ____, a copy of the notice to appear was mailed to _____ at _____.

/s/_____
Signature of Person
Serving Notice to Appear

SECTION 8. Section 8 of Charter Ordinance 224 is hereby amended to read as follows:

"Warrant - contents.

A warrant shall contain the name of the accused person, or if unknown, any name or description by which the accused person may be identified with reasonable certainty, shall describe the nature of the violation of an ordinance of the City, shall command that the accused person be arrested by a law enforcement officer or court services officer, shall be signed by the Municipal Court Judge, and shall state the type and amount of the appearance bond required. A warrant shall be deemed sufficient if substantially in the form set forth in K.S.A. 12-4208, and amendments thereto. A warrant shall be deemed valid if ordered by the Municipal Court Judge and issued electronically by the court's computer system. Further, the requirement that the judge sign the warrant shall be sufficiently fulfilled if the warrant is electronically issued with an electronic signature by the judge or if the electronically issued warrant is printed and signed by the judge after the arrest of the accused person."

SECTION 9. Section 9 is hereby created to read as follows:

"Warrant - Service.

A warrant may be directed to any law enforcement officer within the state and may be executed any place within the state by the arrest of an accused person. A warrant may be directed to a court services officer and may be executed by the arrest of the accused person who has surrendered himself or herself or otherwise appeared before the Wichita Municipal Court. The officer need not have the warrant in his or her possession at the time of the arrest, but upon request, the officer shall show the warrant to the accused person as soon as possible. If the officer does not have the warrant in his or her possession at the time of the arrest, the officer shall then inform the accused person of the offense charged, of the fact that a warrant has been issued and the amount of the bond required."

SECTION 10. Section 10 is hereby created to read as follows:

"Electronic citations.

a. Electronic citations may be issued by law enforcement officers, community service officers, parking control officers or other officials designated to enforce ordinance violations in compliance with K.S.A. 8 2119 and 12-4215 *et seq*. and amendments thereto.

b. For the purposes of an electronic citation, including the notice to appear and complaint issued under this Section, an electronic signature indicated by the law enforcement officers or other official designated by the Code of the City of Wichita to enforce ordinance violations' typed name, agency, and agency identification number has the same effect and is sufficient as a manual signature as required by the provisions of this Code and as required in K.S.A. 8-2106, 8-2108, K.S.A. 12 4202, 12-4204, 12-4207, Subsection (b) of K.S.A. 22-3201 or K.S.A. 79 3393 and amendments thereto.

c. A notice to appear, compliant or citation as provided by K.S.A. 8-2106, K.S.A. 12-4201 through K.S.A. 12-4207 or K.S.A. 79-3393 and amendments thereto shall be deemed to be written as if on paper form or on a document printed from an Electronic Citation System.

d. For the purposes of signing a citation or notice to appear as required by this Code or as provided by K.S.A. 8-2106, 8-2107 and 12-4204 and amendments thereto, a person being charged by a law enforcement officer, a community services officer, a parking control officer or other official designated to enforce ordinance violations, shall be deemed to have signed the citation or notice to appear if the person physically signs the paper notice to appear or, in the case of an electronic citation, verbally acknowledges that the person promises to appear on or before the date set at or with the designated court. To secure a verbal promise to appear, the

law enforcement officer shall ask, "Do you agree to appear at the Wichita Municipal Court on or before _____ (date)?" The officer shall accurately record the response of the person being charged as: Yes, no, or no response."

SECTION 11. The original of Section 12 of Charter Ordinance 224 is hereby amended to read as follows:

"Expungements of Convictions.

a. Except as otherwise provided by this section, any person who has been convicted of a violation of a city ordinance may petition the municipal court for the expungement of such conviction and related arrest records if three (3) or more years have elapsed since the person:

   1. Satisfied the sentence imposed; and
   2. Was discharged from probation, parole or a suspended sentence.

b. Except as otherwise provided by this section, any person who has fulfilled the terms of a diversion or deferred judgment agreement based on a violation of an ordinance of the City of Wichita may petition the court for the expungement of such diversion or deferred judgment agreement and related arrest records if three (3) or more years have elapsed since the terms of the diversion or deferred judgment agreement were fulfilled.

c. Any person convicted of a violation of any ordinance that is prohibited by either K.S.A. 12-16,124(a) or (b) and amendments thereto, and which was adopted prior to July 1, 2014, or who entered into a diversion or deferred judgment agreement in lieu of further criminal proceedings for such violation, may petition the convicting court for the expungement of such conviction, diversion or deferred judgment agreement and related arrest records.

d. Any person convicted of the violation of a City ordinance which would also constitute a violation of K.S.A. 21-3512, prior to its repeal, or a violation of K.S.A. 21-6419, and amendments thereto, or who entered into a diversion or deferred judgment agreement in lieu of further criminal proceedings for such violation, may petition the convicting court for the expungement of such conviction, diversion or deferred judgment agreement and related arrest records if:

   1. One or more years have elapsed since the person satisfied the sentence imposed or the terms of a diversion or deferred judgment agreement and was discharged from probation, parole, conditional release or a suspended sentence; and
   2. Such person can prove they were acting under coercion caused by the act of another. For purposes of this subsection, "coercion" means: threats of harm or physical restraint against any person; a scheme, plan or pattern intended to cause a person to believe that failure to perform an act would result in bodily harm or physical restraint against any person; or the abuse or threatened abuse of the legal process.

e. No person may petition for expungement until five or more years have elapsed since the person satisfied the sentence imposed or the terms of a diversion or deferred judgment agreement and was discharged from probation, parole, conditional release or a suspended sentence, if such person was convicted of the violation of a city ordinance which would also constitute:

   1. Vehicular homicide, as defined by K.S.A. 21-3405, prior to its repeal or K.S.A. 21-5406 and amendments thereto;
   2. Driving while the privilege to operate a motor vehicle on the public highways of this state has been canceled, suspended or revoked, as prohibited by K.S.A. 8-262, and

amendments thereto and Section 11.42.030 of the Code of the City of Wichita;

3. Perjury resulting from a violation of K.S.A. 8-261a and amendments thereto;

4. A violation of the provisions of K.S.A. 8-142 Fifth, and amendments thereto, relating to fraudulent applications;

5. Any crime punishable as a felony wherein a motor vehicle was used in the perpetration of such crime;

6. Failing to stop at the scene of an accident and perform the duties required by Sections 11.12.010 through 11.12.050 of the Code of the City of Wichita, and amendments thereto;

7. A violation of the provisions of Section 11.13.010 of the Code of the City of Wichita, and amendments thereto, relating to motor vehicle liability insurance coverage; or

8. A violation of K.S.A. 21-3405b, prior to its repeal.

f. No person may petition for expungement:

1. Until five (5) or more years have elapsed since the person satisfied the sentence imposed and the terms of a diversion or deferred judgment agreement and was discharged from probation, parole, conditional release or a suspended sentence, if such person was convicted of a first offense of Section 11.38.150 of the Code of the City of Wichita, and amendments thereto relating to Driving Under the Influence of Alcohol and/or Drugs.

2. No person may petition for expungement until ten (10) or more years have elapsed since the person satisfied the sentence imposed and was discharged from probation, parole, conditional release or a suspended sentence, if such person was convicted of a second or subsequent violation of the provisions of Section 11.38.150 of the Code of the City of Wichita and amendments thereto relating to Driving Under the Influence of Alcohol and/or Drugs.

3. The provisions of this subsection shall apply to all violations committed on or after July 1, 2006.

g. There shall be no expungement of convictions or diversions for a violation of Section 11.38.155 of the Code of the City of Wichita, and amendments thereto relating to the Driving of a Commercial Vehicle while Under the Influence of Alcohol and/or Drugs.

h. There shall be no expungements of any conviction or any part of the offender's criminal record for any offender who is required to register as provided by the Kansas Offender Registration Act, K.S.A. 22-4001, *et seq*., while the offender is required to register as provided in the Kansas Offender Registration Act.

i. When a petition for expungement is filed, the court shall set a date for a hearing of such petition and shall cause notice of such hearing to be given to the prosecuting attorney and the arresting law enforcement agency. The petition shall state the:

1. Defendant's full name;

2. Full name of the defendant at the time of arrest, conviction or diversion, if different than the defendant's current name;

3. Defendant's sex, race and date of birth;

4. Crime for which the defendant was arrested, convicted or diverted;

5. Date of the defendant's arrest, conviction or diversion; and

6. Identity of the convicting court, arresting law enforcement agency or diverting authority.

j. The municipal court shall prescribe a fee to be charged as costs for a person petitioning for an order of expungement pursuant to this section.

k. Any person who may have relevant information about the petitioner may testify at the hearing. The court may inquire into the background of the petitioner and shall have access to any reports or records relating to the petitioner that are on file with the secretary of corrections or the prisoner review board.

l. At the hearing on the petition, the court shall order the petitioner's arrest record, conviction, diversion or deferred judgment expunged if the court finds that:

1. The petitioner has not been convicted of a felony in the past two years and no proceeding involving any such crime is presently pending or being instituted against the petitioner;

2. The circumstances and behavior of the petitioner warrant the expungement; and

3. The expungement is consistent with the public welfare.

m. When the court has ordered an arrest record, conviction, diversion or deferred judgment expunged, the order of expungement shall state the information required to be contained in the petition. The Clerk of the Municipal Court shall send a certified copy of the order of expungement to the Kansas Bureau of Investigation, which shall notify the Federal Bureau of Investigation, the Secretary of Corrections and any other criminal justice agency, which may have a record of the arrest, conviction, diversion or deferred judgment. If the case was appealed from Municipal Court, a motion to expunge the arrest, conviction, diversion or deferred judgment shall be filed with the District Court. The District Court Clerk shall send a certified copy of the order of expungement to the Municipal Court. The Clerk of the Municipal Court shall send a certified copy of the order of expungement to the Kansas Bureau of Investigation, which shall notify the Federal Bureau of Investigation, the Secretary of Corrections and any other criminal justice agency, which may have a record of the arrest, conviction, diversion or deferred judgment. The Municipal Court shall order the case expunged once the certified copy of the order of expungement is received. After the order of expungement is entered, the petitioner shall be treated as not having been arrested, convicted or diverted of the crime, except that:

1. Upon conviction for any subsequent crime, the conviction that was expunged may be considered as a prior conviction in determining the sentence to be imposed.

2. The petitioner shall disclose that the arrest, conviction, diversion or deferred judgment occurred if asked about previous arrests, convictions, diversions or deferred judgments:

A. In any application for licensure as a private detective, private detective agency, certification as a firearms trainer pursuant to K.S.A. 75-7b21, and amendments thereto; or employment as a detective with a private detective agency, as defined by K.S.A. 75-7b01, and amendments thereto, as security personnel with a private patrol operator as defined by K.S.A. 75-7b01 and amendments thereto or with an institution as defined in K.S.A. 76 12a01 and amendments thereto, of the Kansas Department for Aging and Disability Services:

B. In any application for admission, or for an order of reinstatement, to the practice of law in this state;

C. To aid in determining the petitioner's qualifications for

employment with the Kansas Lottery or for work in sensitive areas within the Kansas Lottery as deemed appropriate by the executive director of the Kansas Lottery;

D. To aid in determining the petitioner's qualifications for executive director of the Kansas Racing and Gaming Commission, for employment with the commission or for work in sensitive areas in pari-mutuel racing as deemed appropriate by the executive director of the commission, or to aid in determining qualifications for licensure or renewal of licensure by the commission;

E. To aid in determining the petitioner's qualifications for the following under the Kansas Expanded Lottery Act: (i) lottery gaming facility manager or prospective manager, racetrack gaming facility manager or prospective manager, licensee or certificate holder; or (ii) an officer, director, employee, owner, agent or contractor thereof;

F. Upon application for a commercial driver's license under K.S.A. 8-2,125 through 8-2,142, and amendments thereto;

G. To aid in determining the petitioner's qualifications to be an employee of the state gaming agency;

H. To aid in determining the petitioner's qualifications to be an employee of a tribal gaming commission or to hold a license issue pursuant to a tribal-state gaming compact;

I. In any application for registration as a broker-dealer, agent, investment adviser or investment adviser representative all as defined in K.S.A. 17-12a102, and amendments thereto;

J. In any application for employment as a law enforcement officer, as defined in K.S.A. 22-2202 or K.S.A. 74-5602, and amendments thereto; or

K. To aid in determining the petitioner's qualifications for a license to carry a concealed weapons pursuant to the Personal and Family Protection Act, K.S.A. 75-7c01 *et seq*., and amendments thereto.

1. The court, in the order of expungement, may specify other circumstances under which the arrest, conviction, diversion or deferred judgment is to be disclosed; and

2. The conviction may be disclosed in a subsequent prosecution for an offense which requires as an element of such offense a prior conviction of the type expunged.

L. To aid in determining the petitioner's qualifications for a license to act on a bail enforcement agent pursuant to K.S.A. 75-7e01 through 75-7e09 and K.S.A. 50-6, 141 and amendments thereto.

M. The Court, in the order of expungement, may specify other circumstances under which the arrest, conviction, diversion or deferred judgment to be disclosed.

n. Whenever a person is convicted of an ordinance violation, pleads guilty and pays a fine for such violation, is placed on parole or probation or is granted a suspended sentence for such a violation, the person shall be informed of the abil-

ity to expunge the arrest records or conviction. Whenever a person enters into a diversion or deferred judgment, the person shall be informed of the ability to expunge the diversion or deferred judgment.

o. Subject to the disclosures required in this section, in any application for employment, license or other civil right or privilege, or any appearance as a witness, a person whose arrest records, conviction, diversion or deferred judgment if an offense has been expunged under this statute may state that such person has never been arrested, convicted or diverted of such offense.

p. The conviction may be disclosed in a subsequent prosecution for an offense which requires as an element of such prior conviction of the type expunged. Whenever the record of any arrest, conviction, diversion or deferred judgment has been expunged under the provisions of this section or under the provisions of any other existing or former statute, the custodian of the records of arrest, conviction, diversion or deferred judgment and incarceration relating to that crime shall not disclose the existence of such records, except when requested by:

1. The person whose record was expunged;
2. A private detective agency or a private patrol operator, and the request is accompanied by a statement that the request is being made in conjunction with an application for employment with such agency or operator by the person whose record has been expunged;
3. A court, upon a showing of a subsequent conviction of the person whose record has been expunged;
4. The Secretary for Aging and Disability Services or a designee of the secretary, for the purpose of obtaining information relating to employment in an institution, as defined in K.S.A. 76-12a01, and amendments thereto, of the Kansas Department of Aging and Disability Services of any person whose record has been expunged;
5. A person entitled to such information pursuant to the terms of the expungement order;
6. A prosecuting attorney, and such request is accompanied by a statement that the request is being made in conjunction with a prosecution of an offense that requires a prior conviction as one of the elements of such offense;
7. The Supreme Court, the Clerk or Disciplinary Administrator thereof, the state Board for Admission of Attorneys or the state board for discipline of attorneys, and the request is accompanied by a statement that the request is being made in conjunction with an application for admission, or for an order of reinstatement, to the practice of law in this state by the person whose record has been expunged;
8. The Kansas Lottery, and the request is accompanied by a statement that the request is being made to aid in determining qualifications for employment with the Kansas Lottery or for work in sensitive areas within the Kansas lottery as deemed appropriate by the executive director of the Kansas Lottery;
9. The Governor or the Kansas Racing and Gaming Commission, or a designee of the Commission, and the request is accompanied by a statement that the request is being made to aid in determining qualifications for executive director of the commission, for employment with the commission, for work in sensitive areas in pari-mutuel racing as deemed appropriate by the executive director of the commission or

for licensure, renewal of licensure or continued licensure by the commission;

10. The Kansas Racing and Gaming Commission, or a designee of the Commission, and the request is accompanied by a statement that the request is being made to aid in determining qualifications for the following under the Kansas Expanded Lottery Act: (A) Lottery gaming facility managers and prospective managers, racetrack gaming facility managers and prospective managers, licensees and certificate holders; and (B) their officers, directors, employees, owners, agents and contractors;

11. The state gaming agency, and the request is accompanied by a statement that the request is being made to aid in determining qualifications: (A) to be an employee of the state gaming agency; or (B) to be an employee of a tribal gaming commission or to hold a license issued pursuant to a tribal-state gaming compact;

12. The Kansas Securities Commissioner, or a designee of the Commissioner, and the request is accompanied by a statement that the request is being made in conjunction with an application for registration as a broker-dealer, agent, investment adviser or investment adviser representative by such agency and the application was submitted by the person whose record has been expunged;

13. The Attorney General, and the request is accompanied by a statement that the request is being made to aid in determining qualifications for a license to:

    A. Carry a concealed weapon pursuant to the Personal and Family Protection Act; or

    B. Act as a bail enforcement agent pursuant to K.S.A. 75-7e01 through 75 7e09 and K.S.A. 50-6, 141 and amendments thereto.

14. The Kansas Sentencing Commission;

15. The Kansas Commission on Peace Officers' Standards and Training and the request is accompanied by a statement that the request is being made to aid in determining certification eligibility as a law enforcement officer pursuant to K.S.A. 74-5601 et seq., and amendments thereto; or

16. A law enforcement agency and the request is accompanied by a statement that the request is being made to aid in determining eligibility for employment as a law enforcement officer as defined by K.S.A. 22-2202, and amendments thereto."

SECTION 12. The original of Section 13 of Charter Ordinance 224 is hereby amended to read as follows:

"Expungement of Arrest Records.

a. Any person who has been arrested on a violation of a City ordinance of the City of Wichita may petition the court for the expungement of such arrest record. For the purposes of this section, expungement means the sealing of records such that they are unavailable except to the petitioner and criminal justice agencies as provided by K.S.A. 22-4701 *et seq*. and amendments thereto and except as provided by this Code.

b. When a petition for expungement is filed, the court shall set a date for hearing on such petition and shall cause notice of such hearing to be given to the prosecuting attorney and the arresting law enforcement agency. When a petition for expungement is filed, the official court file shall be separated from the other records of the court and shall be disclosed only to the judge of the court and members

of the staff of the court designed by the judge, the prosecuting attorney, the arresting law enforcement agency and other persons when authorized by a court order subject to any conditions imposed by the order. The petition shall state:

1. The petitioner's full name;
2. The full name of the petitioner at the time of arrest, if different from the petitioner's current name;
3. The petitioner's sex, race and date of birth;
4. The crime for which the petitioner was arrested;
5. The date of the petitioner's arrest; and
6. The identity of the arresting law enforcement agency.

A municipal court shall prescribe a fee to be charged as costs for a person petitioning for an order of expungement pursuant to this section, except that no fee shall be charged to a person who was arrested as a result of a victim of identity theft under K.S.A. 21-4108 prior to its repeal or K.S.A. 21-6107 and amendments thereto. Any person who may have relevant information about the petitioner may testify at the hearing. The court may inquire into the background of the petitioner.

c. At the hearing on a petition for expungement, the court shall order the arrest record and subsequent court proceedings, if any, expunged upon finding:

1. The arrest occurred because of mistaken identity;
2. A court has found that there was no probable cause for the arrest;
3. The petitioner was found not guilty in court proceedings;
4. The arrest was for a violation of any ordinance that is prohibited by either K.S.A. 12-16,124(a) or (b) and amendments thereto and which was adopted prior to July 1, 2014; or
5. The expungement would be in the best interests of justice and:
   A. charges have been dismissed; or
   B. no charges have been or are likely to be filed.

d. When the court has ordered expungement of an arrest record and subsequent court proceedings, if any, the order shall state the information required to be stated in the petition and shall state the grounds for expungement under subsection (c). The Clerk of the Municipal Court shall send a certified copy of the order to the Kansas Bureau of Investigation which shall notify the Federal Bureau of Investigation, the Secretary of Corrections and any other criminal justice agency which may have a record of the arrest. If an order of expungement is entered, the petitioner shall be treated as not having been arrested.

e. If the ground for expungement is as provided in subsection (c)(5), the court shall determine whether, in the interest of public welfare, the records should be available for any of the following purposes:

1. In any application for employment as a detective with a private detective agency, as defined by K.S.A. 75-7b01, and amendments thereto; as security personnel with a private patrol operator, as defined by K.S.A. 75-7b01, and amendments thereto; or with an institution, as defined in K.S.A. 76-12a01, and amendments thereto, of the Kansas Department of Aging and Disability Services;
2. In any application for admission, or for an order of reinstatement, to the practice of law in this state;
3. To aid in determining the petitioner's qualifications for employment with the Kansas lottery or for work in sensitive areas within the Kansas Lottery as deemed appropriate by the executive director of the Kansas Lottery;

4. To aid in determining the petitioner's qualifications for executive director of the Kansas Racing Commission, for employment with the commission or for work in sensitive areas in pari-mutuel racing as deemed appropriate by the executive director of the commission, or to aid in determining qualifications for licensure or renewal of licensure by the commission;

5. In any application for a commercial driver's license under K.S.A. 8-2,125 through 8-2,142, and amendments thereto;

6. To aid in determining the petitioner's qualifications to be an employee of the state gaming agency;

7. To aid in determining the petitioner's qualifications to be an employee of a tribal gaming commission or to hold a license issued pursuant to a tribal-state gaming compact; or

8. In any other circumstances which the court deems appropriate.

f. The court shall make all expunged records and related information in such court's possession, created prior to, on and after July 1, 2011, available to the Kansas Bureau of Investigation for the purpose of:

1. Completing a person's criminal history record information within the central repository in accordance with K.S.A. 22-4701 *et seq*., and amendments thereto; or

2. Providing information or documentation to the Federal Bureau of Investigation, in connection with the national instant criminal background check system, to determine a person's qualification to possess a firearm.

g. Subject to any disclosures required under subsection (e), in any application for employment, license or other civil right or privilege, or any appearance as a witness, a person whose arrest records have been expunged as provided in this section may state that such person has never been arrested.

h. Whenever a petitioner's arrest records have been expunged as provided in this section, the custodian of the records of arrest, incarceration due to arrest or court proceedings related to the arrest, shall not disclose the arrest or any information related to the arrest, except as directed by the order of expungement or when requested by the person whose arrest record was expunged."

SECTION 13. The originals of Sections 3, 8, 12 and 13 of Charter Ordinance 224 and Charter Ordinance 229 of the Code of the City of Wichita are hereby repealed.

SECTION 14. This ordinance shall be published once a week for two consecutive weeks in the official city newspaper.

SECTION 15. This is a charter ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum to be held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas in which case the ordinance shall become effective if approved by a majority of the election voting thereon.

PASSED by the governing body, not less than two-thirds of the members elect voting in favor thereof this 22nd day of September, 2020.

/s/ Brandon J. Whipple,
Mayor

ATTEST:

/s/ Karen Sublett,
City Clerk

Approved as to Form:

/s/ Jennifer L. Magaña
City Attorney and Director of Law

CHARTER ORDINANCE NO. 238

A CHARTER ORDINANCE AMENDING SECTIONS 1, 3 AND 4 CHARTER ORDINANCE NO. 233 OF THE CODE OF THE CITY OF WICHITA, KANSAS, PERTAINING TO SECONDHAND DEALERS AND REPEALING THE ORIGINALS OF SAID SECTIONS.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1: The original of Section 1 of Charter Ordinance No. 233 is hereby amended to read as follows:

"SECTION 2.

Definitions.

As used in this ordinance, the following terms shall have the meanings indicated in this section:

(a) "Automated kiosk" means an interactive device that is installed within a secure retail space and that has the following technological functions:

(1) The kiosk is monitored remotely by a live representative during all business hours of operation.

(2) A seller's identity must be verified at the time of any transaction by requiring the seller produce identification consisting of a valid driver's license that includes the expiration date and the state where such license is issued. In the event the seller has no driver's license, a valid identification card issued by any state or two pieces of identification issued by a governmental agency, one of which shall be descriptive of the person identified may be used. At all times, one piece of current government issued picture identification will be required.

(3) The kiosk provides secure storage of goods accepted.

(4) The kiosk is equipped to capture and store images during any transaction.

(5) The kiosk is equipped to electronically report all transactions to the Wichita Police Department.

(b) "Electronic Serial Number" or "ESN" means a number that uniquely identifies a mobile electronic device.

(c) "International Mobile Equipment Identifier" or "IMEI" means a number that uniquely identifies a mobile electronic device.

(d) "Pawnbroker" means any person who loans money on deposit or pledge of personal property or other valuable item, other than intangible personal property, or who deals in the purchase of personal property on condition of selling the same back again at a stipulated price, or the employee of such persons, but such terms shall not include any person operating under the supervision of the State Banking Commissioner, Credit Union Administrator or the Consumer Credit Commissioner of this state.

(e) "Person" means any individual, firm, company, partnership, corporation or association.

(f) "Precious metal" means gold, silver or platinum group metals or any used articles or other used personal property containing such metals, but shall not include coins purchased for their numismatic value rather than their metal content or ingots or other industrial residue or byproducts composed of such metals purchased from manufacturing firms.

(g) "Precious metal dealer" means any person who engages in the business of purchasing precious metal for the purpose of reselling such metal in any form or the employee of such person.

(h) "Secondhand" means previously owned by a member of the general public prior to the transaction at hand. It does not include property previously owned by a wholesaler, retailer, or another secondhand dealer.

(i) "Secondhand dealer" means any person, firm, company, partnership, association, or corporation or their employee engaged in the business of buying, selling, trading, exchanging or otherwise dealing in secondhand merchandise of any sort or description, whether or not he or she deals in other goods and regardless of where goods are bought, except the term shall not include the following persons:

(1) Persons whose dealership in secondhand merchandise is limited exclusively to antiques, books, magazines, handbills, collectibles, toys, and/or posters;

(2) Grocers or other persons primarily engaged in the business of the retail sale of food who purchase recyclable food and beverage containers for resale;

(3) Persons who only obtain such merchandise incidental to the making of a new sale, provided however that this exception shall not apply to retailers who obtain firearms of any kind incidental to the making of a new sale;

(4) Persons who are licensed as pawnbrokers as defined herein;

(5) Persons whose dealership in secondhand merchandise is limited exclusively to precious metals and who are licensed as Precious Metal Dealers as defined herein;

(6) Persons who are licensed as scrap processors as defined in Title 3 of the Code of the City of Wichita;

(7) Charitable institutions which receive used merchandise for resale;

(8) Persons whose dealership in secondhand merchandise is limited exclusively to clothing, clothing accessories, costume jewelry, apparel, military surplus, dishes, linens, textiles, home appliances, and/or furniture;

(9) Persons whose dealership in secondhand merchandise is limited exclusively to cassette tapes, compact discs, phonograph records, VHS, BETA and DVD videotapes and/or computer software; and

(10) Persons whose dealership in secondhand merchandise is limited exclusively to heavy industrial equipment, motor vehicles and/or motor vehicle parts, components and/or accessories."

SECTION 2: The original of Section 3 of Charter Ordinance No. 233 is hereby amended to read as follows:

"SECTION 20. **Secondhand Dealers and Precious Metal Dealers:** Records to be kept:

(a) It shall be the duty of every secondhand dealer and precious metal dealer to maintain at his/her place of business a book, register or other permanent record, in which shall be legibly printed, lettered or typed, by the dealer or his/her employee, in the English language, at the time of such consignment, purchase, trade or receipt of any item, a record thereof containing the information listed in Subsections (1) through (7) of this Section. Such entries shall be made at the time of purchase or receipt of such property. All such records shall be made on forms approved by the Wichita Police Department. Entries shall not, in any manner, be erased, obliterated or defaced.

(1) The time and date of the transaction;

(2) The name of the employee conducting the transaction and the manager or owner on duty;

(3) The full legal name, (first, middle and last), date of birth, sex, height, weight, race, and address (which shall include the street address, and not merely a post office box number) of the person selling, trading or leaving the property;

(4) The type and identifying numbers of identification presented at the time of the transaction by the person with whom the transaction was made. Such identification shall include a valid driver's license with expiration date, including the state where such license is issued, or, in the event such person has no driver's license, a valid identification card issued by any state or two pieces of identification issued by a governmental agency, one of which shall be descriptive of the person identified. At all times, one piece of current government issued picture identification will be required.

(5) A detailed description of the property bought or received in pledge, including brand name; serial number, model number, title or name; engravings, size, pattern, color, markings and shape, the caliber, barrel length, and type of action of any firearm and whether it is a pistol, rifle or shotgun and any peculiarity likely to identify the property. The description of jewelry shall include the type of metal employed, all letters and marks inscribed thereon, and the weight and size and gemstone description, including the number of stones;

(6) The price paid; and

(7) A signed statement that the person is the legal owner of the item or is an agent of the legal owner who is authorized to sell or trade such item and stating the length of ownership of the item. If the owner's agent is pawning, pledging, selling or trading the item, the owner's name and address shall be provided at the time of the transaction.

After July 1, 2021, in addition to the requirements set forth above, every secondhand dealer (other than those secondhand dealers that qualify as an automated kiosk, which are subject to the additional requirements described below) shall obtain a photographic image or video of the seller, sufficiently clear to allow the seller to be identified, and shall obtain a photographic or scanned image of the identification card of the seller, sufficiently clear to allow the information of the identification card to be read.

After July 1, 2021, in addition to the requirements set forth above, every precious metal dealer and every automated kiosk shall obtain a digital scan of the seller's thumb and if the thumb is missing, the fingerprint shall be taken from the index finger, and shall obtain a photographic or scanned image of the identification card of the seller, sufficiently clear to allow the information of the identification card to be read.

(b) It shall be the duty of every precious metal dealer and secondhand dealer to furnish a full, true and correct transcript of the record of all transactions on the preceding day except those between dealers licensed under this ordinance, to the Wichita Police Department or its designee. These transactions shall be submitted electronically on such forms in such format as may be required by the Chief of Police or his designee. Such information must be transmitted to the Wichita Police Department or its designee no later than 5:00 p.m. on the next business day. If an Electronic Serial Number (ESN) or International Mobile Equipment Identifier (IMEI) is not readily accessible at the time of the transaction, secondhand dealers shall report the Electronic Serial Number no later than ten business days from the date of the transaction. The holding period as set forth in this ordinance shall not begin until all required EMS and IMEI numbers have been properly reported.

In the event the City has entered into a contract for an electronic reporting system of transactions, it shall be the exclusive means by which such transactions are to be reported to the department. Every

precious metal dealer and secondhand dealer shall operate and maintain a computer system with internet access and photographic capability sufficient to meet the reporting requirements set forth above. Any failure or malfunction of such equipment on the part of the dealer shall not exempt the dealer from the recording and reporting requirements of this section. The dealer shall immediately notify the police department of any such failure or malfunction and shall have such failure resolved as soon as practicable, but not less than two business days.

(c) All records required by this Section, including those submitted electronically, shall be maintained by the dealer at the dealer's place of business for not less than two (2) years following the date of the transaction.

(d) Exception, the following types of property and/or transactions are not subject to the reporting requirements of this section:

(1) Recyclable food and beverage containers, and other recyclable plastic, glass, or metal containers.

(2) Newsprint or newspapers.

(3) Transactions involving the purchase of antiques, books, magazines, handbills, collectibles, toys, and/or posters.

(4) Transactions involving the purchase of clothing, clothing accessories, costume jewelry, apparel, military surplus, dishes, linens, textiles, home appliances, and/or furniture.

(5) Transactions involving the purchase of photographic film, including lithographic and x-ray film for reprocessing.

(6) Transactions between dealers licensed pursuant to this ordinance.

(7) Transactions involving materials purchased from a regulated public utility.

(8) Where precious metals are acquired from another licensee licensed hereunder or licensed by the State of Kansas where the other licensee has made the reports required by this section or by the State of Kansas with respect to such precious metal.

(9) Where precious metals are acquired from another licensee who is licensed in this state in a transaction involving the purchase or other acquisition.

(10) Where precious metals are acquired from another person licensed as a precious metal dealer who is licensed in this state in a transaction involving the purchase or other acquisition from the other licensee of his or her stock in trade, or a substantial part thereof in bulk, where the other precious metal dealer has made the reports required by this section with respect to such precious metals.

(11) Where precious metals are acquired by a licensee incidental to a new sale where the precious metals being traded in were sold by the licensee to the person trading such precious metals on new merchandise.

(12) Where jewelry is in the possession of the licensee for purposes of being repaired. The term repair means to restore to the same condition or modification of any item of jewelry.

(e) Reports made pursuant to this Section shall be available for inspection only by law enforcement officers, City, County and District Attorneys and their employees, for law enforcement purposes.

(f) Where used consumer cellular phones or electronic devices are sold, traded, exchanged or involved in any other transaction and such devices are received through the use of an automated kiosk, such property and/or transaction is not subject to the reporting requirements of Subsection (a) if:

(1) As a part of the record of the transaction, the following information is

documented: the date, time and place of the transaction; the legal name, date of birth, residence and phone number of the seller; a detailed description of the device or devices, including the brand name, color, model number, title or name, size, markings, serial number and/or any other identifying number; the amount paid for the device or devices, and the employee or live representative remotely handling the transaction. Such records shall be submitted to the Wichita Police Department within twenty-four (24) hours after receipt of the consumer cellular phone or electronic device in a manner designated by the Wichita Police Department. All information submitted under this subsection shall be kept confidential for law enforcement use only and shall not be a public record. Such records must be retained by the business operating the automated kiosk for a period not less than two (2) years following the date of the transaction.

(2) At the time of the transaction, in order to accept the used consumer cellular phones or electronic device, the business will cross-reference the identifying features of the device in a national lost and stolen database and will refuse to accept any device that has been recorded as lost or stolen in the database."

SECTION 3: The original of Section 4 of Charter Ordinance No. 233 is hereby amended to read as follows:

"SECTION 21. **Secondhand Dealers and Precious Metal Dealers.** Items acquired to be held:

(a) Every secondhand dealer and precious metal dealer shall segregate the property purchased or received from the property purchased or received from other sellers and attach to the property or to the container in which the property is held a tag indicating the name of the seller and the date on which the property was purchased or received. Further, every secondhand dealer and precious metal dealer shall retain possession of the purchased property at the licensed premises and withhold the property from resale or salvage use for fourteen (14) calendar days from the date of the transaction and shall make the purchased property available for inspection at his/her place of business by any police officer or other official designated by the chief of police during regular business hours while in his/her possession. However, the provisions of this section do not apply to property or transactions designated in Section 20(d) as being exempt from the reporting requirements.

(b) When a police officer has reasonable cause to believe that any property received by a secondhand dealer or precious metal dealer is stolen, the police officer may place a hold notice upon the property. All property upon which a hold notice has been placed must be held by the dealer at the local place of business for sixty (60) calendar days unless released sooner by authority of the Police Chief or his designee. After sixty (60) calendar days, unless other disposition is authorized by the Police Chief or his designee, the hold is automatically released and the secondhand dealer, or precious metal dealer may dispose of the property.

(c) The holding requirements of Subsection (a) shall not apply to phonographic records, cassette tapes, compact discs or video games when such items are not purchased, traded, pawned or sold in conjunction with an operation system or stereo equipment. Items which are sold, purchased, traded or pawned during any normal business day to or from the same individual shall be considered "sold in conjunction" for the holding requirements in this section.

(d) The holding requirements of Subsection (a) shall not apply to used consumer

cellular phones or electronic devices that are sold, traded, exchanged or involved in any other transaction and such devices are received through the use of an automated kiosk, if:

(1) Such devices received are shipped to a secure off-site location as approved by the Chief of the Wichita Police Department or the Chief's designee. Devices shipped under this subsection must be held for thirty (30) calendar days after submitting the complete report required in Section 20(f)(a) to the Wichita Police Department, subject to return and inspection by any officer of the Wichita Police Department upon request. The off-site location may be located outside of the City of Wichita and/or the State of Kansas.

(2) The licensee shall comply within twenty-four (24) hours with a request from the Wichita Police Department to open the automated kiosk to allow officers the opportunity to inspect any device within such kiosk or to review any recorded data therein.

(3) Any items found to be recorded as stolen or otherwise subject to a civil or criminal investigation must be shipped to any requesting law enforcement officer with all shipping costs to be borne by the secondhand goods dealer."

SECTION 4. The originals of Sections 1, 3 and 4 of Charter Ordinance No. 233 are hereby repealed.

SECTION 5. This Charter Ordinance shall be published once each week for two consecutive weeks in the official City paper.

SECTION 6. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof, this 16th day of May, 2023.

/s/ Brandon Whipple
Mayor

ATTEST:

/s/ Jamie Buster
City Clerk

Approved as to Form:

/s/ Jennifer L. Magaña
City Attorney and Director of Law

CHARTER ORDINANCE NO. 239

A CHARTER ORDINANCE AMENDING CHARTER ORDINANCE 237 PERTAINING TO MUNICIPAL COURT PROCEDURES BY CREATION OF A SUBSTITUTE PROVISION.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

Be it ordained by the governing body of the City of Wichita, Kansas, a Council Manager City of the First Class, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas:

SECTION 1. The original of Section 1 of Charter Ordinance 237 is hereby amended to read as follows:

Definitions.

In addition to the definitions contained in K.S.A. 12-4113, which are incorporated herein by reference, the following terms shall have the following meanings:

a. "Complaint" means a sworn written statement or a written statement of the essential facts constituting a violation of an ordinance signed by a law enforcement officer, community service officer, parking control officer or other official designated by the Code of the City of Wichita to enforce ordinance violations.

b. "Community Service Officer" is an employee of the City of Wichita who is designated pursuant to the provisions of Section 11.16.040(c) to enforce ordinance violations of Title 11 of the Code of the City of Wichita. Except as provided by K.S.A. 22-2403 and amendments thereto, such employees are not authorized to arrest or detain individuals.

c. "Court Services Officer" is an employee of the City of Wichita who is authorized to serve notices to appear, complaints, citations, maintain or assert custody or supervision over persons accused or convicted of a crime and execute arrest warrants issued by a Wichita Municipal Court Judge. Such persons may also detain or arrest individuals as authorized by K.S.A. 22-2403. For the purposes of executing municipal court warrants as set forth above, a court services officer may detain such persons, place them in custody and arrest them pursuant to a Wichita Municipal Court warrant. Such arrests may only take place in the Wichita Municipal Court for individuals who have surrendered themselves to the court on the warrant or have otherwise appeared before the Municipal Court. Court Services Officers are authorized to fingerprint individuals arrested on Municipal Court warrants as described in this section, or as otherwise directed by a Wichita Municipal Court Judge and, as required, transport such individuals to or from the Sedgwick County Adult Detention Facility. Court services officers may release individuals from custody as directed by a Wichita Municipal Court Judge. Court Service officers are not authorized to enforce any ordinance violations of this code.

d. "Electronic citation" means a charging citation, complaint or notice to appear which is prepared by a law enforcement officer, community service officer, parking control officer, or other official designated by the Code of the City of Wichita to enforce ordinance violations on an electronic data device with the intent that data collected will be electronically filed with the Municipal Court as provided for by the provisions of K.S.A. 12-4201 through 12-4207, and amendments thereto, for the prosecution of a municipal ordinance violation. The data elements collected shall conform with the requirements of K.S.A. 12-4201 through 12-4207 and amendments thereto or the requirements of the Secretary of Revenue or the Secretary's designee pursuant to K.S.A. 79-3393 and amendments thereto, as applicable.

e. "Electronic Citation System" means the device, database or computer software

used to create, store, transmit or exchange the data included in an electronic citation, notice to appear or complaint.

f. "Electronic signature" means any electronic method of signing a document that meets the following requirements:

1. Identifies and authenticates a particular person as the signer of the document, is unique to the person using it, is capable of certification, and is under the sole control of the person using it.

2. Is attached to or logically associated with the document in such a manner that if the document is altered in any way without authorization of the signer, the signature is invalid.

3. Indicates that person's intent to issue, enter or otherwise authenticate the document.

4. An electronic signature indicated by the law enforcement officers or other designated official's typed name and agency identification number has the same effect and is as sufficient as a manual signature.

g. "Entered" means filed with the Clerk of the Municipal Court. A document may be entered in either paper form or electronic form.

h. "Filing or filed" means:

1. When the document is in paper form, delivering the original document to the Clerk of the Municipal Court. Filing is complete when the Clerk of the Municipal Court receives the original document.

2. When the document is in electronic form, creating and saving the document, or transmitting it, in such a way that it is unalterably retained in the electronic records of the Clerk of the Municipal Court. A document is "unalterably retained" in an electronic record when it may not be edited or otherwise altered except by a person with authorization to do so. Filing is complete when the document has first been unalterably retained in the electronic records of the Clerk of the Municipal Court.

i. "Issued" applies to documents in either paper form or electronic form. A document that is first created in paper form is issued when it is signed. A document that is first created in electronic form is issued when it is signed, filed with the Clerk of the Municipal Court and retained in the Electronic Repository.

j. "Original" means:

1. A document first created and existing only in paper form, bearing the original signature of the person who signed it. The term also includes each copy in paper form that is printed through the facsimile transmission of the copy bearing the original signature of the person who signed it.

2. A document existing in electronic form, including the electronic form of the document and any copy that is printed from the electronic form.

k. "Parking Control Officer" means an employee of the City of Wichita or an independent contractor meeting minimum insurance requirements reasonably established by the City Attorney who is designated pursuant to Section 11.16.040(d) of the Code of the City of Wichita to enforce parking ordinance violations of the City of Wichita. Except as provided by K.S.A. 22-2403 and amendments thereto. Parking Control Officers are not authorized to arrest or detain individuals.

l. "Process Server" means an individual designated by or contracted with the City of Wichita to serve Municipal Court notices to appear, summons, citations or complaints and who are properly authorized by the Sedgwick County District Court pursuant to K.S.A. 60-303(d)(3), and amendments thereto,

to serve as an appointed process server. Such individual does not have the authority to arrest or detain an individual. Except as provided by K.S.A. 22-2403 and amendments thereto, such persons are not authorized to arrest or detain individuals.

m. "Signature" means any symbol, including but not limited to, the name of an individual, which is executed by that individual, personally or through an authorized agent, with the intent to authenticate or to effect the issuance or entry of a document. The term includes an electronic signature. A document may be signed by the use of any manual, mechanical or electronic means that causes the individual's signature to appear in or on the document. Any party challenging the validity of a signature shall have the burden of pleading, producing evidence and proving the following:

1. The signature was not the act of the person whose signature it appears to be; or

2. If the signature is an electronic signature, the requirements of the Uniform Electronic Transaction Act and/or Kansas Supreme Court Rule 122 have not been met.

n. "Warrant" is a written order made by a Municipal Court Judge directed to any law enforcement officer or court services officer commanding the officer to arrest the person named or described in it."

SECTION 2. The original of Section 1 of Charter Ordinance 237 is hereby repealed.

SECTION 3. This ordinance shall be published once a week for two consecutive weeks in the official city newspaper.

SECTION 4. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication, unless a sufficient petition for a referendum is filed requiring a referendum to be held on the ordinance as provided in Article 12, Section 5, Subsection (c)(3) of the Constitution of the State of Kansas in which case the ordinance shall become effective if approved by a majority of the election voting thereon.

PASSED by the governing body, not less than two-thirds of the members elect voting in favor thereof this 9th day of January, 2024.

/s/ Lily Wu
Mayor

ATTEST:

/s/ Jamie Buster
City Clerk

Approved as to form:

/s/ Jennifer Magaña
City Attorney and
Director of Law

CHARTER ORDINANCE NO. 240

A CHARTER ORDINANCE EXEMPTING THE CITY OF WICHITA FROM PROVISIONS OF K.S.A. 64-101 RELATING TO THE DESIGNATION OF AN OFFICIAL CITY NEWSPAPER AND PROVIDING SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. The City of Wichita, Kansas by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, hereby elects to exempt itself from, and make inapplicable to it, the provisions of K.S.A. 64-101 and amendments thereto and provide substitute and additional provisions as hereinafter set forth in this ordinance. The state statute is applicable to the city, but not applicable uniformly to all cities throughout the State of Kansas.

SECTION 2. The Governing Body shall designate from time to time by Resolution one or more newspapers or the City website, www.wichita.gov, as the official newspaper of the City for publication of legal notices, advertisements or publications of any kind which may be required to be published in the Official City Newspaper by the laws of the State of Kansas, United States of America or of the City of Wichita.

SECTION 3. Any newspaper that is an official City newspaper on the effective date of this ordinance shall continue to be the official City newspaper unless or until such time as the Governing Body shall adopt a resolution providing otherwise. Any publication in any newspaper, which at the time of the publication was an official City newspaper, shall be valid notwithstanding the adoption subsequent to the publication of a resolution changing the designation of the official City newspaper.

SECTION 4. This ordinance shall be published once a week for two (2) consecutive weeks in the official city newspaper.

SECTION 5. This is a charter ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case the ordinance shall become effective if approved by a majority of electors voting thereon.

PASSED by the governing body of the City of Wichita, Kansas, this 25th day of June, 2024.

/s/ Lily Wu
Mayor

ATTEST:

/s/ Jamie Buster
City Clerk

Approved as to form:

/s/ Jennifer Magaña
City Attorney and
Director of Law

CHARTER ORDINANCE NO. 241

A CHARTER ORDINANCE REPEALING CHARTER ORDINANCE NO. 159 OF THE CITY OF WICHITA PERTAINING TO JUDGES OF THE MUNICIPAL COURT BY THE ADDITION OF THE POSITION OF JUDGE OF THE NEIGHBORHOOD COURT.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Charter Ordinance No. 159 of the City of Wichita is hereby repealed in its entirety.

SECTION 2. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 3. This is a Charter ordinance and will take effect sixty-one (61) days after final publication unless a sufficient petition for a referendum is filed and a referendum held on this ordinance as provided in Article 12, Section 5, Subdivision (c) of the Constitution of Kansas, in which case this Charter Ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED by the governing body of the City of Wichita, Kansas, this 16th day of December 2025.

/s/ Lily Wu
Mayor

ATTEST:

/s/ Shinita Rice
City Clerk

Approved as to form:

/s/ Jennifer Magaña
City Attorney and
Director of Law

CHARTER ORDINANCE NO. 242

A CHARTER ORDINANCE AMENDING SECTIONS 2 AND 11 OF CHARTER ORDINANCE 223 PERTAINING TO JUDGES OF THE WICHITA MUNICIPAL COURT

SECTION 1. Be it ordained by the governing body of the City of Wichita, a city of the first class, by the power vested in it by Article 12, Section 5 of the Constitution of the State of Kansas, and hereby elects to exempt itself from and makes inapplicable to it the provisions of K.S.A. 12-4107, 12-4108, 13-628a and 13-268d and provide substitute and additional provisions hereinafter set forth in this ordinance. Such referenced provisions are either enactments or part of an enactment which are applicable to the City, but are not applicable uniformly to all cities.

SECTION 2. Section 2 of Charter Ordinance 223 is hereby amended to read as follows:

The judicial power of the City shall be vested in the Wichita Municipal Court composed of divisions as determined by the City Council. The City Council shall designate one of the municipal court judges to serve as the chief judge in charge of the administration of the judicial functions of the court. All municipal court judges shall serve at the pleasure of the City Council.

SECTION 3. Section 11 of Charter Ordinance 223 is hereby amended to read as follows:

(a) The judges of the municipal court shall have concurrent jurisdiction over all criminal and traffic offenses, administrative violations or other such violations of ordinances of the City arising within the corporate limits of the City.

(b) The divisions of the court shall be in session on each day of the year except Saturdays, Sundays, and legal holidays.

(c) The chief judge shall annually, in conjunction with budget preparation, submit for the approval of the City Council a schedule of the hours during which each division of court shall be in session.

(d) In each division of the court, there shall be daily dockets scheduled for the trial of

cases and the transaction of all business assigned for disposition to such division. In the rules of practice and procedure authorized by the Kansas Code of Procedure for Municipal Courts, K.S.A. 12-4101 et seq. and applicable charter ordinances establishing the rules of the court, the judges shall prescribe the schedule of such dockets for the trial and disposition of criminal, traffic and administrative violations.

(e) Each judge at a regular session of the division shall have and exercise all the powers and functions which he or she might have and exercise if he or she were the sole judge of the court.

(f) The provisions of K.S.A. 12-4107, and amendments thereto, relating to judges pro tempore shall apply, and the compensation of judges pro tempore shall be fixed by the City Council with input received from the chief judge.

SECTION 4. The originals of Sections 2 and 11 of Charter Ordinance 223 of the Code of the City of Wichita, Kansas, are hereby repealed.

SECTION 5. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 6. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED by the governing body of the City of Wichita, Kansas, this 16th day of December, 2025.

/s/ Lily Wu
Mayor

ATTEST:

/s/ Shinita Rice
City Clerk

Approved as to form:

/s/ Jennifer Magaña
City Attorney and
Director of Law

CHARTER ORDINANCE NO. 243

A CHARTER ORDINANCE REPEALING SECTION 8 AND AMENDING AND REPEALING SECTIONS 2, 3, 4, 5, 6, AND 11 OF CHARTER ORDINANCE 221, WHICH EXEMPTED THE CITY OF WICHITA, KANSAS, FROM THE PROVISIONS OF K.S.A. 12-1692, 12-1693, 12-1694, AND K.S.A. 12-1695 AND AMENDMENTS THERETO, AND PROVIDED SUBSTITUTE AND ADDITIONAL PROVISIONS ON THE SAME SUBJECT, RELATING TO THE LEVY OF A TRANSIENT GUEST TAX AND PROVIDING FOR PURPOSES FOR EXPENDITURE OF SUCH FUNDS.

SECTION 1. Section 2 of Charter Ordinance 221 is hereby amended to read as follows:

"As used in this ordinance, the following words and phrases shall have the meanings respectively ascribed to them herein:

(a) "Person" means an individual, firm, partnership, corporation, joint venture or other association of persons;

(b) "Hotel, motel, or tourist court" means any structure or building which contains rooms furnished for the purposes of providing lodging, which may or may not also provide meals, entertainment or various other personal services to transient guests, and which is kept, used, maintained, advertised or held out to the public as a place where sleeping accommodations are sought for pay or compensation by transient or permanent guests and having more than two (2) bedrooms furnished for the accommodation of such guests;

(c) "Transient guest" means a person who occupies a room in a hotel, motel or tourist court for not more than twenty-eight (28) consecutive days;

(d) "Business" means any person engaged in the business of renting, leasing or letting living quarters, sleeping accommodations, rooms or a part thereof in connection with any motel, hotel, or tourist court.

(e) "Convention and tourism facility" means a hotel, parking facility, convention center, visitor's center, museum, exhibition hall, or other cultural or tourism facility that is deemed to result in increased lodging facility occupancy, visitors, and tourism for the City of Wichita.

(f) "Convention and tourism promotion" means: (1) Activities designed to attract visitors into the City of Wichita through marketing and promotional efforts, including but not limited to advertising, directed to at least one or more convention and tourism market segments consisting of group tours, pleasure travelers, association meetings, conventions, trade shows, corporate meetings, festivals and travel; and (2) support of those community and cultural activities, festivals and organizations which encourage or which are deemed to result in increased lodging facility occupancy, visitors, and tourism for the City of Wichita.

(g) "Accommodations Broker" means any business which maintains an inventory of two or more rooms in one or more locations which are offered for pay to a person or persons for not more than 28 consecutive days."

SECTION 2. Section 3 of Charter Ordinance 221 is hereby amended to read as follows:

"That a transient guest tax of six percent (6%) shall continue to be levied in the City of Wichita, Kansas upon the gross receipts derived from or paid directly or through an accommodations broker by transient guests for lodging or sleeping accommodations exclusive of charges for incidental services or facilities in any hotel, motel or tourist court."

SECTION 3. Section 4 of Charter Ordinance 221 is hereby amended to read as follows:

"The transient guest tax levied pursuant to this ordinance shall be based upon gross rental receipts collected by any business or accommodations broker."

SECTION 4. Section 5 of Charter Ordinance 221 is hereby amended to read as follows:

"The tax levied pursuant to this ordinance shall be paid by the consumer or user to the business or accommodations broker and it shall be the duty of each and every business or accommodations broker to collect from the consumer or user the full amount of any such tax, or an amount equal as nearly possible or practicable to the average equivalent thereto. Each business or accommodations broker collecting the tax levied hereunder shall be responsible for paying over the same to the State Department of Revenue in the manner prescribed by this ordinance, and the State Department of Revenue shall administer and enforce the collection of such tax."

SECTION 5. Section 6 of Charter Ordinance 221 is hereby amended to read as follows:

"The tax levied and collected pursuant to Section 3 of this ordinance shall become due and payable by the business monthly, on or before the 25th day of the month immediately succeeding the month in which it is collected, subject to the conditions and provisions of Section 15 herein, but any person filing an annual or quarterly return under the Kansas Retailer's Sales Tax Act, as prescribed in K.S.A. 79-3607, and amendments thereto, may, with the approval of the Secretary of Revenue and upon such conditions as the Secretary of Revenue may prescribe, pay the tax required by this ordinance on the same basis and at the same time he or she pays said retailer's sales tax. Each business shall make a true report to the Department of Revenue, on a form prescribed by the Secretary of Revenue, providing such information as may be necessary to determine the amounts to which such tax shall apply for all gross rental receipts for the applicable month or months, which report shall be accompanied by the tax disclosed thereby. Records of gross rental receipts shall be kept separate and apart from the records of other retail sales made by a business in order to facilitate the examination of books and records as provided herein."

SECTION 6. Section 11 of Charter Ordinance 221 is hereby amended to read as follows: "Revenue from the transient guest tax shall be expended in the priority as follows:

1st. To pay any bond, lease or contractual obligation, existing at the time of passage of this ordinance, resulting from or directly attributable to the construction or use of an existing convention and tourism facility.

2nd. To pay for any future obligation including, but not limited to, bonds, leases or contracts for the maintenance, modification, expansion or new construction of the Century II Convention Complex.

3rd. To pay for any future obligation including, but not limited to, bonds, leases or contracts for the maintenance, modification, expansion or new construction of a convention or tourism facility.

4th. To pay any deficit incurred in the operation or maintenance of any city owned convention or tourism facility.

5th. To pay any administrative costs to maintain the Tourism and Convention Fund, including but not limited to Administrative Charges and an allocation of a portion of City audit fees.

6th. Any funds remaining shall be held in reserve to pay for convention and tourism promotion.

7th. Revenue from said tax shall be expended only for convention and tourism promotion and convention and tourism facilities within the corporate city limits of Wichita unless an equal transient guest tax is levied by the Board of County Commissioners of Sedgwick County, Kansas, and the City Council authorizes by resolution such expenditures."

SECTION 7. Section 8 and the originals of Section 2, Section 3, Section 4, Section 5, Section 6 and Section 11 of Charter Ordinance No. 221 of the City of Wichita, Kansas, are hereby repealed.

SECTION 8. This ordinance shall be published once each week for two consecutive weeks in the official city paper.

SECTION 9. This is a Charter Ordinance and shall take effect sixty-one (61) days after final publication unless a sufficient petition for referendum held on the ordinance as provided in Article 12, Section 5, Subdivision (c)(3) of the Constitution of the State of Kansas, in which case, the ordinance shall become effective if approved by a majority of the electors voting thereon.

PASSED BY THE GOVERNING BODY, not less than two-thirds of the members elect voting in favor thereof this 16th day of December 2025.

/s/ Lily Wu
Mayor

ATTEST:

/s/ Shinita Rice
City Clerk

Approved as to form:

/s/ Jennifer Magaña
City Attorney and
Director of Law

CHARTER ORDINANCE COMPARATIVE TABLE

This table shows the location of any Charter ordinance amending the Code commencing with the Republication of this Code.

Charter Ordinance Number	Adoption Date	Effective Date	Section		Amended Ordinance
196	4- 1-03	6- 1-06	1		Ch. Ord. 151
			2	Rpld	Ch. Ord. 111, § 2
197	8- 5-03		1		Ch. Ord. 106, § 4
198	12-16-03	2-25-04	1		Ch. Ord. 196, § 1
			2	Rpld	Ch. Ord. 151, § 1
199	6-15-04		1		Ch. Ord. No. 164, § 3
			2		Ch. Ord. No. 170, § 1
			3		Ch. Ord. No. 122, § 3
200	10-26-04		1		Cj. Ord. No. 192, § 5
201	6-28-05			Added	Ch. Ord. 201
202	8- 8-06	10-17-06	1		Ch. Ord. 168, § 2
			2	Rpld	Ch. Ord. 168, § 3
			3		Ch. Ord. 168, § 4
			4		Ch. Ord. 168, § 5
			5		Ch. Ord. 168, § 6
			6		Ch. Ord. 168, § 7
			7	Rpld	Ch. Ord. 168, § 8
			8	Rpld	Ch. Ord. 168, § 9
			9		Ch. Ord. 168, § 10
			10	Rpld	Ch. Ord. 181, § 1
203	9-19-06	11-29-06	1		Ch. Ord. 177, § 1
204	10-24-06	1- 2-07	1		Ch. Ord. 175, § 1
205	3-27-07		1—41	Rpld	Ch. Ord. 195, §§ 1—41
				Added	Ch. Ord. 205, §§ 1—41
206	11-20-07	1-30-09	1		Ch. Ord. 192, § 3

Charter Ordinance Number	Adoption Date	Effective Date	Section		Amended Ordinance
			2, 3		Ch. Ord. 192, §§ 12, 13
			4, 5		Ch. Ord. 192, §§ 20, 21
207	6-10-2008	8-20-2008	1	Rpld	Ch. Ord. 90, § 7
208	10-28-2008		1		Ch. Ord. 112, § 4, Ch. Ord. 114, § 5
209	6-16-2010	8-26-2010	1		Ch. Ord. 205, §§ 1—41
210	8- 4-2009	10-13-2009	1		Ch. Ord. 202, § 9
211	4-13-2010	6-25-2010	1	Added	Ch. Ord. 211
212	6- 8-2010		1		Ch. Ord. 139, § 2
213	4-13-2010	4-13-2010	1		Ch. Ord. 183, § 1
214	12-21-2010		1—37	Added	Ch. Ord. 214
			38	Rpld	Ch. Ord. 209
215	7-19-2011		1—37	Added	Ch. Ord. 215
			38	Rpld	Ch. Ord. 214
217	3-20-2012		1		Ch. Ord. 122, § 1
			2		Ch. Ord. 204, § 1
			3		Ch. Ord. 175, § 13
218	3-20-2012		1		Ch. Ord. 164, § 2
219	11-20-2012	Rpld	1		Ch. Ord. 197, § 1
220	6-25-2013		1—9	Added	Ch. Ord. 220
			1		Ch. Ord. 164, § 1
			2		Ch. Ord. 218, § 1
			3		Ch. Ord. 202, § 1
			4	Rpld	Ch. Ord. 164, § 1
			5	Rpld	Ch. Ord. 218
			6	Rpld	Ch. Ord. 168, §§ 1, 4—7
			7	Rpld	Ch. Ord. 202, §§ 1, 3—6
221	1-28-2014		1—15	Added	Ch. Ord. 221
			12	Rpld	Ch. Ord. 83, Ch. Ord. 91, Ch. Ord. 124, Ch. Ord. 174, Ch. Ord. 183, Ch. Ord. 213
222	8-26-2014		1		Ch. Ord. 198
			1—4	Added	Ch. Ord. 222
223	1- 6-2015		1—14	Added	Ch. Ord. 223

Charter Ordinance Number	Adoption Date	Effective Date	Section		Amended Ordinance
			12	Rpld	Ch. Ord. 90, Ch. Ord. 117, Ch. Ord. 135, Ch. Ord. 142, Ch. Ord. 152, Ch. Ord. 186, Ch. Ord. 191, Ch. Ord. 207
224	1- 6-2015		1—16	Added	Ch. Ord. 224
			14	Rpld	Ch. Ord. 122, Ch. Ord. 163, Ch. Ord. 164, Ch. Ord. 167, Ch. Ord. 168, Ch. Ord. 170, Ch. Ord. 175, Ch. Ord. 199, Ch. Ord. 202, Ch. Ord. 204, Ch. Ord. 210, Ch. Ord. 217, Ch. Ord. 218, Ch. Ord. 220
225	4-21-2015		1		Ch. Ord. 138, § 3
			2		Ch. Ord. 138, § 4
			3		Ch. Ord. 138, § 5
			4	Rpld	Ch. Ord. 138, §§ 3—5
			1—6	Added	Ch. Ord. 225
226	12- 8-2015		1—13	Added	Ch. Ord. 226
			6		Ch. Ord. 112, § 2
			7		Ch. Ord. 112, § 4
			10	Rpld	Ch. Ord. 43, Ch. Ord. 130, Ch. Ord. 140, Ch. Ord. 148, Ch. Ord. 179, Ch. Ord. 187, Ch. Ord. 188, Ch. Ord. 208
			11	Rpld	Ch. Ord. 112, §§ 2, §§ 4, 5
227	3-15-2016		1—3	Rpld	Ch. Ord. 105
228	3-28-2017		1—6	Added	Ch. Ord. 228
			7	Rpld	Ch. Ord. 111, Ch. Ord. 151, Ch. Ord. 158, Ch. Ord. 198, Ch. Ord. 203, Ch. Ord. 222

Charter Ordinance Number	Adoption Date	Effective Date	Section		Amended Ordinance
229	12-12-2017		1—4	Added	Ch. Ord. 229
			1		Ch. Ord. 224, § 9
230	2-23-2018		1—41	Added	Ch. Ord. 230
			1, 39	Rpld	Ch. Ord. 215
231	8-28-2018		1—4	Added	Ch. Ord. 231
			1	Rpld	Ch. Ord. 226, §§ 1—3, 5
232	8-28-2018		1—4	Added	Ch. Ord. 232
			1	Rpld	Ch. Ord. 189, § 2
233	5-14-2019		1—7	Added	Ch. Ord. 233
			1		Ch. Ord. 192, § 2
			2—4		Ch. Ord. 206, §§ 2, 4, 5
234	8-13-2019		1—5	Added	Ch. Ord. 234
			1		Ch. Ord. 219, § 1
			2	Rpld	Ch. Ord. 219, § 1
236	9-15-2020		1—3	Added	Ch. Ord. 236
			1		Ch. Ord. 219, § 1
			2	Rpld	Ch. Ord. 219, § 1
237	9-22-2020		1—12	Added	Ch. Ord. 237
			3		Ch. Ord. 224, § 3
			8		Ch. Ord. 224, § 8
			11		Ch. Ord. 224, § 12
			12		Ch. Ord. 224, § 13
			13	Rpld	Ch. Ord. 224, §§ 3, 8, 12, 13
				Rpld	Ch. Ord. 229, §§ 1—4
238	5-16-2023		1—6	Added	Ch. Ord. 238
			1—3	Rpld	Ch. Ord. 233, §§ 1, 3, 4
239	1- 9-2024		1	Rpld	Ch. Ord. 237, § 1
240	6-25-2024			Added	Ch. Ord. 240, §§ 1—5
241	12-16-2025		1	Rpld	Ch. Ord. 159
242	12-16-2025		2, 3		Ch. Ord. 223, §§ 2, 11
243	12-16-2025		1—6		Ch. Ord. 221, §§ 2—6, 11

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Sec. 1.04.010. How Code designated and cited.

The ordinances embraced in the following titles, chapters and sections of this code shall constitute and be designated as "The Code of the City of Wichita, Kansas," and may be so cited.

Sec. 1.04.020. Definitions and rules of construction.

In the construction of this Code and of all ordinances of the city, the following definitions and rules of construction shall be observed, unless they are inconsistent with the manifest intent of the city council or the context clearly requires otherwise:

BOND. "Bond" means when a bond is required, an undertaking in writing shall be sufficient.

CITY. "The city" means the City of Wichita, in the County of Sedgwick, in the State of Kansas.

CITY COUNCIL. "City council" means the City Council of the City of Wichita.

COMPUTATION OF TIME. The time within which an act is to be done shall be computed by excluding the first and including the last day, and if the last day is Sunday, that day shall be excluded.

COUNTY. "The county" means the County of Sedgwick in the State of Kansas.

DEPARTMENT OF COUNTY HEALTH. "Department of community health" means the Wichita-Sedgwick County Department of Community Health as combined.

DIRECTOR OF COMMUNITY HEALTH. "Director of community health" means the director of community health of Wichita of Wichita-Sedgwick County Department of Community Health as combined.

GENDER. Words importing the masculine gender include the feminine and neuter.

IN THE CITY. "In the city" means and includes any territory within the corporate limits of the City of Wichita, the police jurisdiction thereof, and any other territory over which regulatory power has been conferred on the city by general or specific act, except as otherwise specified.

JOINT AUTHORITY. All words giving a "joint authority" to three or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.

MONTH. "Month" means a calendar month.

NUMBER. Words used in the singular include the plural and words used in the plural include the singular.

OATH. "Oath" includes an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases "swear" and "sworn" are equivalent to the words "affirm" and "affirmed."

OR, AND. "Or" may be read as "and," and the word "and" as "or," where the sense require it.

OWNER. "Owner," applied to a building or land, includes not only the owner of the whole, but any part owner, joint owner, tenant in common or joint tenant of the whole or a part of such building or land.

PERSON. "Person" includes a firm, partnership, association or persons, corporation, organization or any other group acting as a unit, as well as an individual.

PERSONAL PROPERTY. "Personal property" includes every species of property, except real property.

PRECEDING, FOLLOWING. "Preceding and following" means next before and next after, respectively.

PROPERTY. "Property" includes real, personal and mixed property.

REAL PROPERTY. "Real property" includes lands, tenements and hereditaments.

SIDEWALK. "Sidewalk" means any portion of a street between the curb and the adjacent property line intended for the use of pedestrians.

STATE. "The state" means the State of Kansas.

STREET. "Street" means and includes public streets, avenues, boulevards, highways, roads, alleys, lanes, viaducts, bridges and the approaches thereto and all other public thoroughfares in the city and including those roadways and rights-of-way located in public parks, recreational areas and airport properties which have been designated for vehicular traffic by the board of park commissioners.

TENANT, OCCUPANT. The words "tenant and occupant," applied to a building or land, mean any person who occupies the whole or a part of such building or land, whether alone or with others.

WRITING, WRITTEN. The words "writing and written" include typewriting, printing on paper and any other mode of representing, words and letters.

YEAR. The word "year" means a calendar year.
(Ord. No. 28-603 § 1)

Sec. 1.04.023. Criminal intent.

(a) A person commits a crime only if such person voluntarily engages in conduct, including an act, an omission or possession.

(b) A person who omits to perform an act does not commit a crime unless a law provides that that the omission is an offense or otherwise provides that such person has a duty to perform the act.
(Ord. No. 49-254 § 1, 4-10-12)

Sec. 1.04.025. Culpability.

(a) Except as otherwise provided, a culpable mental state may be established by proof that the conduct of the accused person was committed 'intentionally,' 'knowingly,' or 'recklessly.'

(b) Culpable mental states are classified according to relative degrees, from highest to lowest, as follows:

(1) Intentionally;

(2) Knowingly;

(3) Recklessly.

(c) Proof of a higher degree of culpability than that charged constitutes proof of the culpability charged. If recklessness suffices to establish an element, that element also is established if a person acts knowingly or intentionally. If acting knowingly suffices to establish an element, that element also is established if a person acts intentionally.

(d) If the definition of a crime does not prescribe a culpable mental state, a culpable mental state is nevertheless required unless the definition plainly dispenses with any mental element.

filed with the court that should the defendant be found guilty of the pending charge or charges, the city attorney will request that the court not impose a sentence of incarceration. When the city attorney has filed such a determination that incarceration will not be sought, the court may not impose a sentence that exceeds the maximum fine imposed by the ordinances of the city for the violation or violations committed by the defendant, and if the defendant has made application to the court for the appointment of counsel pursuant to Section 1.04.210 of this Code, the court shall advise the defendant that counsel will not be appointed to represent him or her.
(Ord. No. 43-108 § 1)

Sec. 1.04.070. Costs and witness fees in cases before the Municipal Court.

(a) The sum of fifty-eight dollars shall be assessed as court costs against each person charged with such a violation of any of the ordinances of this city, unless found not guilty. The fifty-eight dollars in court costs shall include all costs required by state statute, as well as a three dollar domestic violence program fee and a four dollar public defender fee. However, this subsection shall not apply to persons who make payment to avoid prosecution of a charge that involves a parking violation as provided in Section 11.92.040 of this Code.

(b) The sum of two dollars shall be assessed as a court technology fee against each person charged with such a violation of any of the ordinances of this city, unless found not guilty. The court technology fee is to be used by the court to help offset the cost to maintain and/or purchase technology enhancements, including but not limited to computer systems, computer networks, computer hardware, computer software, imaging systems, electronic kiosks, electronic ticket writers and docket management systems for the City of Wichita Municipal Court System. However, this subsection shall not apply to persons who make payment to avoid prosecution of a charge that involves a parking violation as provided in Section 11.92.040 of this Code.

(c) For each person who is charged with a violation of any of the ordinances of this city and such matter is set for appearance, a charge of ten dollars will be assessed, unless found not guilty.

(d) For each continuance of any pre-trial appearance, trial, sentencing, disposition, or presentence investigation granted at the request of the accused person, a cost of ten dollars shall be assessed against such accused person unless found not guilty.

(e) A cost of ten dollars shall be assessed for each extension of time to pay any fine, penalty or costs granted by the clerk of the municipal court at the request of an accused person.

(f) For each trial date attributable to the accused person for which subpoenas have been issued, and in addition to other costs provided for in this section, the sum of twenty-five dollars shall be assessed as court costs against such accused person, unless found not guilty by the court.

(g) In addition to other costs provided for in this section, the sum of ten dollars shall be assessed as court costs against each accused person who is found guilty and files a notice of appeal in district court.

(h) In addition to other court costs assessed pursuant to this section, fees and mileage for subpoenaed witnesses shall be assessed at the rate of ten dollars per day and forty cents per mile actually driven in excess of twenty miles.

(i) A cost of thirty-five dollars fifty dollars shall be assessed against each person for whom a municipal court bench warrant or show cause/probation violation warrant is ordered by the court for either failure to appear or failure to comply.

(j) A cost of fifty dollars shall be assessed against each person for whom a warrant is issued for failure to pay any fine, penalty or costs as provided in subsection (a) of this section.

(k) In addition to other court costs assessed pursuant to this section, the sum of twenty dollars shall be assessed as court costs against each accused person who fails to comply with a traffic citation, as set forth in Section 11.42.040(a) of this Code. This assessment shall be in addition to the reinstatement fee collected by the court pursuant to K.S.A. 8-2110(c) as amended, and as set forth in Section 11.42.040(c) of this Code, and shall be

retained by the municipal court to be used to reimburse the court for expenses incurred in complying with the procedures required by state law. Such sum shall be assessed for each charge on which the person fails to make satisfaction, regardless of the disposition of the charge for which the citation was originally issued.

(l) In addition to any other court costs assessed pursuant to this section, the sum of five dollars shall be assessed as court costs against each accused person who fails to comply with a traffic citation as set forth in Section 11.42.040(a) of this Code. This assessment shall be in addition to the reinstatement fee collected by the court pursuant to K.S.A. 8-2110(c) and amendments thereto, and as set forth in Section 11.42.040(c) of this Code. This fee shall be retained by the municipal court to be used to reimburse expenses for mailing notice as mandated by Section 11.42.040(b) of this Code, and K.S.A. 8-2110(b), and amendments thereto.

(m) Each person placed under supervision of a probation officer shall pay a probation fee of one hundred fifty dollars for each probation case supervised, except that in any case in which there is a determination of indigency, the fee specified may be reduced or waived by the judge.

(n) For those misdemeanor offenses as set out in K.S.A. 21-2501 that require the individual be fingerprinted before final disposition of the case, a twenty dollar fingerprint fee will be assessed as costs.

(o) Should the court order urinalysis testing, a fee of twenty dollars per test shall be assessed to the defendant as costs.

(p) The assessment and imposition of the court costs pursuant to this section shall be mandatory and the court shall not waive, remit, suspend, parole, or otherwise excuse the payment thereof except as set forth in subparagraph (r).

(q) All court costs assessed and imposed by this section shall be paid no later than sixty days following imposition; provided that the court may extend the time for such payment to one hundred twenty days for good cause shown. In no case shall the court order the time for payment of court costs assessed pursuant to this section extended beyond one hundred twenty days from the date of initial imposition.

(r) In lieu of payment of court costs assessed pursuant to this section, the court may order that the defendant perform community service specified by the court only after the defendant has filed an affidavit of such defendant's financial condition in accordance with Section 1.04.210(e), and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the court costs required herein. If the court also finds that such indigent defendant is unable to perform community service work, then the court may enter an order suspending the court costs imposed by this section.

(s) All court costs collected pursuant to this section shall be accounted for by the clerk of the municipal court and deposited to the general fund of the city and special trust fund with the exception of the two dollars court technology fee, which shall be deposited into the Court Technology Project Account.

(Ord. No. 45-338 § 1; Ord. No. 43-563 § 1; Ord. No. 47-066 § 1, 7-11-06; Ord. No. 47-580, §1, 9-25-07; Ord. No. 47-948, § 1, 8-12-08; Ord. No. 48-386, § 1, 7-28-09)

Sec. 1.04.075. Post conviction remedies in cases before the Municipal Court.

There is established the following costs for all post conviction remedies in cases before the Municipal Court.

(a) Whenever any motions or applications for post conviction remedies are filed, the cost for filing such motion or application shall be seventy-five dollars and shall be paid by the person filing such motion or application. Provided however, that if it be shown to the Court that the person filing such motion or application is indigent, the Court may, in its discretion, waive the costs provided for herein and the Court shall make a finding of indigency and shall note upon the motion, applica-

tion or order resulting therefrom that the costs referred to herein have been waived.

(b) The assessment and imposition of the court costs pursuant to this section shall be mandatory and the court shall not waive, remit, suspend, parole, or otherwise excuse the payment thereof except as set forth in subparagraph (s) of Section 1.04.070 of the Code of the City of Wichita.

(c) All court costs assessed and imposed by this section shall be paid no later than sixty days following imposition; provided that the court may extend the time for such payment to one hundred twenty days for good cause shown. In no case shall the court order the time for payment of court costs assessed pursuant to this section extended beyond one hundred twenty days from the date of initial imposition.

(d) All court costs collected pursuant to this section shall be accounted for by the clerk of the municipal court and deposited to the general fund of the city.

(Ord. No. 48-387, § 1, 7-28-09)

Sec. 1.04.080. Commitment upon failure to pay fine, penalty or costs.

(a) Any person convicted of violating any provision of this Code or other ordinance of the city and sentenced to pay any fine, penalty or costs, who shall fail or refuse to pay the same, or any person sentenced to imprisonment, shall stand committed and be confined in the city prison or city farm in the discretion of the court, until such fine or penalty and costs are paid or until such sentence has been served.

(b) A cost of ten dollars shall be assessed against each person for whom a municipal court commitment is issued for failure to pay any fine, penalty or costs, as provided in subsection (a) of this section.

(Ord. No. 38-449 § 2)

Sec. 1.04.120. Failure to appear in municipal court.

Any person charged with a violation of any section of the code of the city, which constitutes a misdemeanor or an infraction, who commits any of the following acts is guilty of a misdemeanor, and upon conviction, shall be punished by a fine of not more than five hundred dollars or by imprisonment for not more than six months, or by both such fine and imprisonment:

(a) Fails to appear in court at the designated time, after being released from custody on bond, with or without surety, or on their own recognizance;

(b) Fails to appear in court, at the designated time, in response to a summons or notice to appear personally served on him or her; or

(c) Fails to appear in court, at the designated time by order of the court, communicated to said person orally or in writing; or

(d) Fails to surrender his or herself to the court within thirty days after his or her conviction of a misdemeanor has become final, when released on an appearance bond with or without surety, or upon his or her own recognizance.

(Ord. No. 40-131 § 1)

Sec. 1.04.125. Appearance bond restrictions—Enforcement.

1. (a) Restrictions on Appearance Bonds. A municipal court judge may, to assure the public safety and the appearance of a person for trial, place restrictions on the association (including no contact orders with the victim or others) or place of abode of persons for violations of the code of the city during periods of release prior to trial, where a bond is posted for appearance before the municipal court pursuant to Charter Ordinance No. 122, K.S.A. 12-4301 and K.S.A. 12-4302.

(b) In determining which restrictions should be placed on an appearance bond, a municipal court judge shall, on the basis of available information, take into account the likelihood or propensity of the defendant to commit crimes while on release, in-

cluding whether the defendant will be likely to threaten, harass or cause injury to the victim of a crime or any witnesses thereto.

(c) A municipal court judge shall have authority to order restrictions in the form of a no contact order with the victim on any appearance bond posted before the defendant makes an appearance before the court for violations of any section of the code of the city that involve domestic violence crimes as deemed by ordinance or any other offense designated by the court.

(d) The appearance bond shall set forth all of the restrictions of the release.

(e) A person for whom restrictions are imposed and who continues to be detained as a result of the person's inability to meet the restrictions shall be entitled, upon application, to have the restrictions reviewed without unnecessary delay by the municipal court judge who imposed them. If the municipal court judge who imposed conditions of release is not available, then another municipal judge may review such conditions.

(f) A municipal court judge ordering the release of a person conditioned on restrictions specified in this section may, at any time, amend the order to impose additional or different conditions of release. If the imposition of additional or different restrictions results in the detention of the person, the provisions of subsection (e) of this section shall apply.

(g) Restrictions placed on an appearance bond may be continued in effect throughout any appeal taken from municipal court to district court pursuant to K.S.A. 12-4601, et seq. The court shall also have authority to modify or add restrictions as appropriate during this period of time.

2. Failure to Comply with Bond Conditions. Any person who is released from custody on an appearance bond, with or without surety, or on their own recognizance, that has restrictions placed on the bond pursuant to this section of the code, who knowingly violates or knowingly fails to comply with said restrictions shall be guilty of a misdemeanor, and upon conviction, shall be punished by a fine not to exceed two thousand-five hundred dollars and by imprisonment of not more than one year, or by both such fine and imprisonment.
(Ord. No. 40-945 § 1)

Sec. 1.04.130. Adoption of K.S.A. 1971 Supp. 22-2408 except paragraph (6) thereof.

K.S.A. 1971 Supp. 22-2408, except paragraph (6) thereof, is by reference incorporated in and by this publication made a part of the code of the city as fully as though set out at length herein, and is adopted as the ordinance providing for issuing notices to appear to persons arrested for violations of the municipal code of the city.
(Ord. No. 32-472)

Sec. 1.04.140. Municipal court—Sessions.

The municipal court of the city shall be in session at least once each day with the exception of Saturdays, Sundays and holidays, at the hours specified by the court, provided, however, additional sessions of court may be called at the order of each particular division at times specified by said order.
(Ord. No. 33-468)

Sec. 1.04.150. Municipal court—Neighborhood municipal court judge.

(a) Pursuant to Charter Ordinance No. 159, there is created the neighborhood municipal court consisting of not less than one judge. The judge shall have such jurisdiction, power and authority as is given to municipal court judges by state law and city ordinance.

(b) The neighborhood municipal court shall primarily address nuisance, environmental, traffic, and non-DUI drug and alcohol cases with the purpose of providing a visible presence in the

and court costs, but has refused to take advantage of community service or other options provided by the court to reduce outstanding fines and court costs;

3) The Defendant is not indigent; and

4) The payment of any assessed fines and court costs do not create a manifest hardship on the Defendant or his/her immediate family.

(Ord. No. 38-449 § 2; Ord. No. 51-589, § 3, 7-13-21)

Sec. 1.04.120. Failure to appear in municipal court.

Any person charged with a violation of any section of the code of the city, which constitutes a misdemeanor or an infraction, who commits any of the following acts is guilty of a misdemeanor, and upon conviction, shall be punished by a fine of not more than five hundred dollars or by imprisonment for not more than six months, or by both such fine and imprisonment:

(a) Fails to appear in court at the designated time, after being released from custody on bond, with or without surety, or on their own recognizance;

(b) Fails to appear in court, at the designated time, in response to a summons or notice to appear personally served on him or her; or

(c) Fails to appear in court, at the designated time by order of the court, communicated to said person orally or in writing; or

(d) Fails to surrender his or herself to the court within thirty days after his or her conviction of a misdemeanor has become final, when released on an appearance bond with or without surety, or upon his or her own recognizance.

(Ord. No. 40-131 § 1)

Sec. 1.04.125. Appearance bond restrictions—Enforcement.

1. (a) Restrictions on Appearance Bonds. A municipal court judge may, to assure the public safety and the appearance of a person for trial, place restrictions on the association (including no contact orders with the victim or others) or place of abode of persons for violations of the code of the city during periods of release prior to trial, where a bond is posted for appearance before the municipal court pursuant to Charter Ordinance No. 122, K.S.A. 12-4301 and K.S.A. 12-4302.

(b) In determining which restrictions should be placed on an appearance bond, a municipal court judge shall, on the basis of available information, take into account the likelihood or propensity of the defendant to commit crimes while on release, including whether the defendant will be likely to threaten, harass or cause injury to the victim of a crime or any witnesses thereto.

(c) A municipal court judge shall have authority to order restrictions in the form of a no contact order with the victim on any appearance bond posted before the defendant makes an appearance before the court for violations of any section of the code of the city that involve domestic violence crimes as deemed by ordinance or any other offense designated by the court.

(d) The appearance bond shall set forth all of the restrictions of the release.

(e) A person for whom restrictions are imposed and who continues to be detained as a result of the person's inability to meet the restrictions shall be entitled, upon application, to have the restrictions reviewed without unnecessary delay by the municipal court judge who imposed them. If the municipal court judge who imposed conditions of release is not available, then another municipal judge may review such conditions.

(f) A municipal court judge ordering the release of a person conditioned

on restrictions specified in this section may, at any time, amend the order to impose additional or different conditions of release. If the imposition of additional or different restrictions results in the detention of the person, the provisions of subsection (e) of this section shall apply.

(g) Restrictions placed on an appearance bond may be continued in effect throughout any appeal taken from municipal court to district court pursuant to K.S.A. 12-4601, et seq. The court shall also have authority to modify or add restrictions as appropriate during this period of time.

2. Failure to Comply with Bond Conditions. Any person who is released from custody on an appearance bond, with or without surety, or on their own recognizance, that has restrictions placed on the bond pursuant to this section of the code, who knowingly violates or knowingly fails to comply with said restrictions shall be guilty of a misdemeanor, and upon conviction, shall be punished by a fine not to exceed two thousand-five hundred dollars and by imprisonment of not more than one year, or by both such fine and imprisonment.
(Ord. No. 40-945 § 1)

Sec. 1.04.130. Adoption of K.S.A. 1971 Supp. 22-2408 except paragraph (6) thereof.

K.S.A. 1971 Supp. 22-2408, except paragraph (6) thereof, is by reference incorporated in and by this publication made a part of the code of the city as fully as though set out at length herein, and is adopted as the ordinance providing for issuing notices to appear to persons arrested for violations of the municipal code of the city.
(Ord. No. 32-472)

Sec. 1.04.140. Municipal court—Sessions.

The municipal court of the city shall be in session at least once each day with the exception of Saturdays, Sundays and holidays, at the hours specified by the court, provided, however, additional sessions of court may be called at the order of each particular division at times specified by said order.
(Ord. No. 33-468)

Sec. 1.04.150. Reserved.

Editor's note—Ord. No. 52-859, § 1, adopted Dec. 16, 2025, repealed § 1.04.150, which pertained to municipal court—neighborhood municipal court judge, and derived from Ord. No. 44-866 § 1; and Ord. No. 48-706 § 1, adopted Apr. 13, 2010.

Sec. 1.04.155. Administrative traffic court.

Repealed by Ordinance No. 47-093, adopted Aug. 8, 2006.

Sec. 1.04.160. Liability for crimes of another.

(a) A person is criminally responsible for a crime committed by another if such person, acting with the mental culpability required for the commission thereof, advises, hires, counsels

or procures the other to commit the crime or intentionally aids the other in committing the conduct constituting the crime.

(b) A person liable under subsection (a) hereof is also liable for any other crime committed in pursuance of the intended crime if reasonably foreseeable by him as a possible consequence of committing or attempting to commit the crime intended.

(c) A person liable under this section may be charged with and convicted of the crime although the person alleged to have directly committed the act constituting the crime: (1) lacked criminal or legal capacity; (2) has not been convicted; (3) has been acquitted; or (4) has been convicted of some other degree of the crime or of some other crime based on the same act.
(Ord. No. 33-908; Ord. No. 49-254 § 5, 4-10-12)

Sec. 1.04.170. Corporations—Criminal responsibility.

(a) A corporation is criminally responsible for acts committed by its agents when acting within the scope of their authority.

(b) "Agent" means any director, officer, servant, employee or other person who is authorized to act in behalf of the corporation.
(Ord. No. 33-905)

Sec. 1.04.175. Individual liability for corporate crime.

(a) An individual who performs criminal acts, or causes such acts to be performed, in the name of or on behalf of a corporation is legally responsible to the same extent as if such acts were in his own name or in his own behalf.

(b) An individual who has been convicted of a misdemeanor based on conduct performed by him for and on behalf of a corporation is subject to punishment as an individual upon conviction of such misdemeanor, although a lesser or different punishment is authorized for the corporation.
(Ord. No. 33-904)

Sec. 1.04.180. Attempt.

(a) An attempt is any overt act toward the perpetration of a misdemeanor done by a person who intends to commit such misdemeanor but fails in the perpetration thereof or is prevented or intercepted in executing such misdemeanor.

(b) It is not a defense to a charge of attempt that the circumstances under which the act was performed or the means employed or the act itself were such that the commission of the misdemeanor was not possible.

(c) Any person who attempts to commit a misdemeanor is guilty of a misdemeanor.

(d) An attempt to commit a crime which carries a penalty of one year in jail and/or a fine not to exceed $2,500.00 shall be punishable by a fine not to exceed $1,000.00 and/or six months imprisonment or by both such fine and/or imprisonment.

(e) An attempt to commit any other crime shall be punishable by a fine not to exceed $500.00 and/or thirty days imprisonment or by both such fine and/or imprisonment.
(Ord. No. 33-907; Ord. No. 49-254 § 6, 4-10-12)

Sec. 1.04.190. Conspiracy.

(a) A conspiracy is an agreement with another person to commit a misdemeanor or to assist to commit a misdemeanor. No person may be convicted of a conspiracy unless an overt act in furtherance of such conspiracy is alleged and proved to have been committed by him or by a co-conspirator.

(b) It is a defense to a charge of conspiracy that the accused voluntarily and in good faith withdrew from the conspiracy, and communicated the face of such withdrawal to one or more of his co-conspirators, before any overt act in furtherance of the conspiracy has been committed by him or by a co-conspirator.

(c) Any person who conspires to commit or to assist to commit a misdemeanor is guilty of a misdemeanor and shall be fined under the provisions of section 1.04.060.
(Ord. No. 33-906)

Sec. 1.04.200. Enforcement of Code by Metropolitan Area Building and Construction Department.

The Director of the Metropolitan Area Building and Construction Department and his or her designee, hereafter "Director," shall have the power of a law enforcement officer for the purpose of signing a complaint and serving said complaint and a notice to appear upon any person where the Director or his or her designee has probable cause to believe such person has or is violating a section of the Code of the city when such violation has occurred or is occurring in the presence of the Director or his or her designee, and where the Director has the responsibility of enforcing such ordinance. All references throughout this Code to the "Superintendent of Central Inspection" or "Office of Central Inspection" shall be construed to mean the Director of the Metropolitan Area Building and Construction Department or his or her designee. Any duties and responsibilities granted to the "Superintendent of Central Inspection" by this Code shall be applicable to the Director of the Metropolitan Area Building and Construction Department and his or her designee.

(Ord. No. 34-811; Ord. No. 52-561, § 1, 10-15-24)

Editor's note—Ord. No. 52-561, § 1, adopted Oct. 15, 2024, amended the title of § 1.04.200 to read as herein set out. The former § 1.04.200 title pertained to enforcement of Code by superintendent of central inspection.

Sec. 1.04.205. Enforcement of Code by city engineer.

The city engineer and the engineer's designees shall have the power of a law enforcement officer for the purpose of signing or serving a complaint and a notice to appear upon any person when the engineer or the engineer's designee has probable cause to believe such person has or is violating an ordinance that the engineer has the responsibility to enforce.

(Ord. No. 50-176 § 2, 4-26-16)

Sec. 1.04.210. Appointment of counsel for indigent defendants.

(a) The administrative judge of the municipal court shall prepare and file in the office of the clerk of the municipal court a list of attorneys who are eligible for assignment to represent indigent persons accused of municipal offenses. Such list shall be prepared pursuant to guidelines established by the administrative judge.

(b) Except as provided in section 1.04.065 of this Code, in all cases pending before the municipal court in which the defendant is subject to a sentence of a term of incarceration, the judge of the municipal court presiding at the defendant's first appearance shall advise the defendant, if he or she appears without counsel, that he or she is entitled to counsel unless defendant waives such entitlement, and that counsel will be appointed to represent the defendant if it is determined that the defendant is not financially able to employ an attorney.

(c) If it is determined that the defendant is not able to employ counsel, as provided in subsection (f) of this section, the court shall appoint an attorney, unless the defendant waives his or her right to counsel, from the list provided in subsection (a) of this section, or at the option of the court, may appoint counsel as provided for in subsection (k) hereof. However, when a written determination has been filed with the court by the city attorney, as provided for in section 1.04.065 of this Code, counsel shall not be appointed to represent the defendant.

(d) If, after the attorney's appointment, the attorney learns that the defendant has funds or other resources sufficient to enable the defendant to employ counsel, or that the city attorney has filed a written determination with the court that a sentence of incarceration will not be sought should the defendant be found guilty of the pending charge or charges, as provided in section 1.04.065 of this Code, the attorney shall so advise the court and ask permission to withdraw from the case or to be permitted to accept the compensation from the defendant for services.

(e) When any defendant who is entitled to have the assistance of counsel claims to be financially unable to employ counsel, the court shall require that the defendant file an affidavit containing such information and in the form adopted by the administrative judge. The court may interrogate the defendant under oath as to the contents of the affidavit; may require the

defendant to produce evidence upon the issue of the defendant's financial condition; and may require the city attorney, a city law enforcement officer or other municipal court employee to investigate and report upon the financial condition of the defendant.

(f) Upon the basis of the information provided for by subsection (e) of this section, the court shall determine whether the defendant is financially unable to employ counsel. In making such determination, the court shall consider the defendant's assets and income; the amount needed to support the defendant and the defendant's

immediate family; the anticipated cost of effective representation by employed counsel; and any property conveyed by the defendant without adequate monetary consideration after commission of the alleged offense. If the defendants assets and income are not sufficient to cover the anticipated cost of effective representation by employed counsel taking into account the nature of the proceedings, the defendant shall be determined indigent in full or in part and the court shall appoint an attorney as provided in subsection (c) of this section. If the court determines that the defendant is financially able to employ counsel, or that the city attorney has filed a written determination with the court that a sentence of incarceration will not be sought should the defendant be found guilty of the pending charge or charges, as provided in section 1.04.065 of this Code, the court shall so advise the defendant and shall give the defendant a reasonable opportunity to employ an attorney of the defendant's own choosing.

(g) The court shall inform the defendant for whom counsel is appointed that the amount expended by the city in providing counsel and other defense services may be entered as a judgment against the defendant if the defendant is convicted and found to be financially able to pay the amount, and that an action to recover such amount may be brought against any person to whom the defendant may have transferred or conveyed any of the defendant's property without adequate monetary consideration after the date of the commission of the alleged crime. A determination by the court that the defendant is financially unable to employ counsel or pay other costs or the defendant's defense may preclude a recovery from the defendant but may not preclude recovery from any person to whom the defendant may have transferred any property without adequate monetary consideration after the date of the commission of the alleged crime.

(h) The determination that a defendant is indigent shall be subject to review at any time by the court.

(i) An attorney who performs services as provided in this section shall be entitled to compensation at the conclusion of such services. Compensation for such services shall be paid in accordance with the standards provided in this section. Claims for compensation shall be certified by the claimant and shall be reviewed and approved by one or more judges of the municipal court before whom the services were performed. Each claim shall be supported by a written statement specifying in detail the time expended, the services rendered, the expenses incurred, and any other compensation or reimbursement received. Upon review and approval by the judge or judges of the municipal court, each claim for compensation shall be submitted to the clerk of the municipal court, who shall then be authorized to pay the claim.

(j) A fee schedule is established for the determination of the amount of compensation to be paid to court-appointed counsel in the municipal court:

(1) Driving under the influence of alcohol and/or drugs:

(a) Preparation time: fifteen dollars per hour;

(b) Trial time: twenty dollars per hour; and

(c) Maximum compensation for both preparation time and in-court time shall not exceed one hundred dollars.

(2) All other misdemeanor cases:

(a) Preparation time: fifteen dollars per hour;

(b) Trial time: twenty dollars per hour; and

(c) Maximum compensation for both preparation time and in-court time shall not exceed fifty dollars.

(3) All cases in which a guilty or nolo contendere plea is entered or in which diversion is granted:

(a) Preparation time: fifteen dollars per hour;

(b) In-court time: twenty dollars per hour; and

(c) Maximum compensation for both preparation time and in-court time shall not exceed thirty dollars.

(k) In lieu of appointing an attorney from a list of attorneys as provided for in subsection (c) and compensating such appointed attorney as provided for above, the court may contract with an eligible attorney or attorneys to provide a defense for all defendants in municipal court who are determined to be indigent and where no conflict exists which would preclude representation by an attorney or attorneys. Any contract entered into by the court for purposes of providing counsel to indigent defendants shall be subject to budget limitations as established by the governing body of the city. Selection of attorneys to represent indigent defendants by contract shall be made in a manner that complies with city administrative regulation.

(Ord. No. 43-109 § 1)

CHAPTER 1.06. DEFERRED JUDGMENT PROGRAM

Sec. 1.06.010. Definitions.
Sec. 1.06.020. Deferred judgment—Agreements, time limits.
Sec. 1.06.030. Deferred judgment—When agreements to be offered.
Sec. 1.06.040. Deferred judgment—Information to be provided by defendant.
Sec. 1.06.050. Deferred judgment—Factors to consider for deferred judgment.
Sec. 1.06.060. Deferred judgment—When prohibited.
Sec. 1.06.070. Provisions of deferred judgment agreement.
Sec. 1.06.080. Deferred judgment agreements—Copy to KBI.
Sec. 1.06.090. Deferred judgment—Nonadmissible evidence.
Sec. 1.06.100. Failure to fulfill deferred judgment agreement.

Sec. 1.06.010. Definitions.

The following terms as used in this Chapter shall have the following meanings:

'City attorney' means the City Attorney of the City of Wichita, Kansas, or any of his or her authorized assistants.

'Complaint' means complaint, citation or notice to appear in municipal court.

'Dating Relationship' means a social relationship of a romantic nature. In addition to any other factors the court deems relevant, the trier of fact may consider the following when making a determination of whether a relationship exists or existed. Nature of the relationship, length of time the relationship existed, frequency of interaction between the parties and time since termination of the relationship, if applicable.

'Deferred judgment' means referral of a defendant in a criminal case other than that charging an alcohol related offense to a supervised program after the defendant has entered a plea of guilty, but prior to the court entering judgment and imposing sentencing on that plea.

'Deferred judgment agreement' means the specification of formal terms and conditions which defendant must fulfill in order to have his or her guilty plea set aside and the charges against such person dismissed.

'Domestic violence' means an act or threatened act of violence against a person with whom the offender is involved or has been involved in a dating relationship, or an act or threatened act of violence against a family or household member by a family or household member. Domestic violence also includes any other crime committed against a person or against property or any municipal ordinance violation against a person or against property, when directed against a person with whom the offender is involved or has been involved in a dating relationship or when directed against a family or household member by a family or household member.

'Domestic violence offense' means any crime committed whereby the underlying factual basis includes an act of domestic violence.

'Family or household members' means persons 18 years of age or older who are spouses, former spouses, parents or stepparents and children or stepchildren, and persons who are presently residing together or who have resided together in the past, and persons who have child in common regardless of whether they have been married or who have lived together at any time. Family or household member also includes a man and woman if the woman is pregnant and the man is alleged to be the father, regardless of whether they have been married or have lived together at any time.
(Ord. No. 43-182 § 1; Ord. No. 40-821 § 1; Ord. No. 49-254, § 7, 4-10-12; Ord. No. 49-526, § 1, 6-25-13; Ord. No. 51-891, § 1, 6-28-22)

Sec. 1.06.020. Deferred judgment—Agreements, time limits.

(a) There shall be a deferred judgment program made available to defendants charged with crimes involving domestic violence or certain other crimes which, in the discretion of the city attorney, are eligible for such treatment.

(b) In any case in which the defendant has entered a plea of guilty, the court accepting the plea has the power, with the written consent of the defendant and his or her attorney of record and the city attorney, to continue the case for a period not to exceed eighteen months from the date of entry of such plea for the purpose of entering judgment and sentence upon such plea of guilty; except that such eighteen-month period

may be extended for an additional one hundred eighty days if the failure to pay restitution is the sole condition of supervision which has not been fulfilled, because of inability to pay. During such time that judgment is deferred and sentencing is suspended, the court shall place the defendant under the supervision of the division coordinator in the office of the city prosecutor.

(c) Prior to entry of a plea of guilty to be followed by deferred judgment and sentence, the city attorney is authorized to enter into a written agreement to be signed by the defendant, his or her attorney of record, and the city attorney under which the defendant obligates himself or herself to adhere to the conditions of the agreement. The deferred judgment agreement shall provide that if the defendant fulfills the obligations of the program described therein, as determined by the city attorney, the city attorney shall act to have the plea of guilty previously entered withdrawn and the criminal charges against the defendant dismissed with prejudice.
(Ord. No. 40-821 § 2)

Sec. 1.06.030. Deferred judgment—When agreements to be offered.

(a) After a complaint has been filed charging a defendant with a violation of the city code and after the city attorney has considered the factors listed in Section 1.06.050 of this chapter, if it appears to the city attorney that deferred judgment of the defendant would be in the interests of justice and of benefit to the defendant and the community, the city attorney may propose a deferred judgment agreement to the defendant. The terms of each deferred judgment agreement shall be established by the city attorney in accordance with Section 1.06.070 of this chapter.

(b) The city attorney shall adopt written guidelines and policies for the implementation of a deferred judgment program. Such policies and guidelines shall list those crimes for which deferred judgment may be offered, provide for a conference with the defendant and establish other procedures where the city attorney elects to offer deferred judgment in a case.

(c) Each defendant shall be informed in writing of the deferred judgment guidelines adopted by the city attorney.
(Ord. No. 40-821 § 3)

Sec. 1.06.040. Deferred judgment—Information to be provided by defendant.

The city attorney may require any defendant requesting deferred judgment to provide information regarding prior criminal charges, education, work experience and training, family, residence in the community, medical history, including any psychiatric or psychological treatment or counseling, and other information relating to the deferred judgment program. In all cases, the defendant shall be present and have the right to be represented by counsel at the deferred judgment conference with the city attorney.
(Ord. No. 40-821 § 4)

Sec. 1.06.050. Deferred judgment—Factors to consider for deferred judgment.

(a) In determining whether the deferred judgment of a defendant is in the interests of justice and of benefit to the defendant and the community, the city attorney shall consider at least the following factors among all factors considered:

(1) The nature of the crime charged and the circumstances surrounding it;

(2) Any special characteristics or circumstances of the defendant;

(3) Whether the defendant is a first-time offender and if the defendant has previously participated in any diversion or deferred judgment program in any jurisdiction;

(4) Whether there is a probability that the defendant will cooperate with and benefit from the deferred judgment program;

(5) Whether the available deferred judgment program is appropriate to the needs of the defendant;

(6) The impact of the deferred judgment of the defendant on the community;

(7) Recommendations, if any, of the involved law enforcement agency;

(8) Recommendations, if any, of the victim;

(9) Provisions for restitution;

(10) Any mitigating circumstances.

(Ord. No. 821 § 5)

Sec. 1.06.060. Deferred judgment—When prohibited.

The city attorney shall not enter into a deferred judgment agreement on a complaint alleging a violation of an ordinance of the City of Wichita if the defendant has previously participated in a deferred judgment or diversion program in any jurisdiction for any prior case involving the same type of offense within five years of the date of the ordinance violation.

(Ord. No. 40-821 § 6; Ord. No. 49-526, § 1, 6-25-2013)

Sec. 1.06.070. Provisions of deferred judgment agreement.

(a) The deferred judgment agreement shall include specifically the waiver of all rights under the law or the constitution of the State of Kansas or of the United States to a speedy arraignment, a speedy trial and the right to trial by jury. Such agreement shall also specifically provide that, upon a breach by the defendant of any condition therein, the court shall enter judgment and impose sentence upon the defendant's guilty plea. The deferred judgment agreement may include, but is not limited to, provisions concerning payment of restitution, including court costs and deferred judgment costs, residence in a specified facility, maintenance of gainful employment, no contact with the complaining witness, and participation in programs offering medical, educational, vocational, social and psychological services, corrective and preventive guidance and other rehabilitative services.

(b) The deferred judgment agreement shall state:

(1) The defendant's full name;

(2) The defendant's full name at the time the complaint was filed, if different from the defendant's current name;

(3) The defendant's race, sex, and date of birth;

(4) The crime with which the defendant is charged;

(5) The date the complaint was filed;

(6) The municipal court with which the deferred judgment agreement is filed.

(Ord. No. 40-821 § 7)

Sec. 1.06.080. Deferred judgment agreements—Copy to KBI.

Any deferred judgment agreement entered into on a complaint alleging a violation of a city ordinance shall include the information set forth in Section 1.06.070(b) of this chapter. The city attorney shall forward to the Kansas Bureau of Investigation a copy of a deferred judgment agreement entered into by the city attorney only when required by rules and regulations adopted by the director of the bureau pursuant to K.S.A. 22-4704 and amendments thereto. The copy of the agreement shall be made available upon request to any county, district or city attorney who subsequently considers the person for diversion or deferred judgment.

(Ord. No. 40-821 § 8)

Sec. 1.06.090. Deferred judgment—Non-admissible evidence.

No statements made by the defendant or counsel in any deferred judgment conference or in any other discussion of a proposed deferred judgment agreement shall be admissible as evidence in criminal proceedings on crimes charged or facts alleged in the complaint.

(Ord. No. 40-821 § 9)

Sec. 1.06.100. Failure to fulfill deferred judgment agreement.

(a) If the city attorney finds at any time within the term of the deferred judgment or at the termination thereof that the defendant has failed to fulfill the terms of a specific agreement, then he or she shall make application to the municipal

court for a hearing on the matter. Upon notice to the defendant and his or her attorney of record, the court shall hold a hearing and make a determination as to whether there has been a breach of conditions by the defendant. The burden of proof at such hearing shall be by a preponderance of the evidence. If the court finds that there has been a breach of terms of a specific deferred judgment agreement, then the court shall enter judgment and impose sentence upon defendant's prior guilty plea.

(b) If the defendant has fulfilled the terms of a deferred judgment agreement, the city attorney shall act to have the plea of guilty previously entered withdrawn and the criminal charges filed against the defendant dismissed with prejudice. (Ord. No. 40-821 § 10)

CHAPTER 1.07 MENTAL HEALTH COURT DIVERSION AND PROBATION PROGRAM

Sec. 1.07.010. Mental Health Court Diversion and Probation Program.

Sec. 1.07.010. Mental Health Court Diversion and Probation Program.

(A) Whereas, the City of Wichita has an important governmental interest in reducing recidivism of the mentally ill in the criminal justice system, increasing the number of alternative jail strategies and increasing the quantity and quality of mental health and other services available to mentally ill offenders.

(B) Whereas, a Mental Health Court may be established and utilized as a diversion program and/or as a post-adjudicative condition of probation, in order to address issues of offenders with a diagnosed, recognizable mental illness, charged and/or convicted of a violation of City of Wichita ordinances.

(C) The City Attorney is hereby authorized to create a Mental Health Court Diversion Program. The Mental Health Court Diversion Program may be made available for eligible offenders, in such a manner, as specifically outlined in the Mental Health Court Handbook, developed by the City Attorney, and incorporated by reference herein. The City of Wichita Municipal Court is hereby authorized to establish and utilize a Mental Health Court Probation Program, available for eligible defendants, with a recognized mental illness, who have been sentenced to a probation term for a violation of a City of Wichita ordinance. Acceptance into the Mental Health Court Probation Program shall be by order of a City of Wichita Municipal Judge, or duly authorized City of Wichita Judge Pro Tem, and shall be utilized as a condition of probation.

(D) Eligible diversion and/or probation program participants must be diagnosed with a severe mental illness, which is defined as a diagnosable mental disorder of sufficient duration to meet the diagnostic criteria specified within the Diagnostic and Statistical Manual of Mental Disorders, 4th edition (DSM-IV), and subsequent editions thereof, published by the American Psychiatric Association. Eligible disorders include those listed in the DSM-IV with the exception of, substance abuse or dependence, anti-social personality disorder, neurological/general medical disorders, substance induced psychotic disorders, and developmental disorders, unless they co-occur with another diagnosable disorder that is accepted within this definition.

(E) The City Attorney may reject applicants to the Mental Health Court Diversion Program, as outlined within the Mental Health Court Handbook, incorporated herein by reference.

(F) The City Attorney shall adopt written guidelines and policies for the implementation of a Mental Health Court Diversion Program. The City of Wichita Municipal Court shall adopt written guidelines and policies for the Mental Health Court Probation Program.
(Ord. No. 48-418, § 1, 9-15-09)

CHAPTER 1.08. VICTIMS RIGHTS

Sec. 1.08.010. Title.
Sec. 1.08.020. Preamble.
Sec. 1.08.030. Definitions.
Sec. 1.08.040. Rights afforded to victims of ordinance violations.
Sec. 1.08.050. Rights of victims who are minors.
Sec. 1.08.060. Notification.
Sec. 1.08.070. Responsibility of city staff.
Sec. 1.08.080. Reservation of rights.

Sec. 1.08.010. Title.

"Victims Rights."
(Ord. No. 50-936, § 1, 3-19-19)

Sec. 1.08.020. Preamble.

Whereas, Article 15 of Section 15 of the Kansas Constitution and K.S.A. 74-7333 *et seq*. provides certain rights to victims of crime; and

Whereas, the governing body of the City deems it in the best interest of the City to ensure the fair and compassionate treatment of victims of certain ordinance violations; and

Whereas, the governing body of the City deems it to be in the best interest of the City to increase the effectiveness of the Municipal Court System by affording victims of certain violations certain basic rights and considerations; and

Whereas, K.S.A. 74-7333 requires governing bodies to adopt policies which at a minimum afford certain rights to victims of designated ordinance violations.
(Ord. No. 50-936, § 2, 3-19-19)

Sec. 1.08.030. Definitions.

a. "Ordinance Violation" means any act or omission charged in the Wichita Municipal Court as being in violation of the following ordinances of the City of Wichita, Kansas. Such term shall include any attempt or conspiracy to commit these violations charged pursuant to Section 1.04.180 and Section 1.04.190 of the Code of the City of Wichita.

1. Driving Under the Influence of Alcohol and/or Drugs in violation of Section 11.38.150 of the City of Wichita Municipal Code.
2. Driving a Commercial Motor Vehicle with .04 alcohol concentration or under the influence of drugs in violation of Section 11.38.155 of the City of Wichita Municipal Code.
3. Assault in violation of Section 5.10.010 of the City of Wichita Municipal Code.
4. Battery in violation of Section 5.10.020 of the City of Wichita Municipal Code.
5. Domestic Battery in violation of Section 5.10.025 of the City of Wichita Municipal Code.
6. Battery of a Law Enforcement Officer in violation of Section 5.10.035 of the City of Wichita Municipal Code.
7. Sexual Battery in violation of Section 5.68.220 of the City of Wichita Municipal Code.
8. Unlawful Interference with Law Enforcement in violation of Section 5.72.010 of the City of Wichita Municipal Code.
9. Provoking an Assault or Battery in violation of Section 5.10.030 of the City of Wichita Municipal Code.
10. Unlawful Restraint in violation of Section 5.83.010 of the City of Wichita Municipal Code.
11. Victim or Witness Intimidation in violation of Section 5.15.010 of the City of Wichita Municipal Code.
12. Adultery in violation of Section 5.68.120 of the City of Wichita Municipal Code.
13. Lewd and Lascivious Behavior in violation of Section 5.68.140 of the City of Wichita Municipal Code.
14. Sale of Sexual Relations in violation of Section 5.68.010 of the City of Wichita Municipal Code.
15. Buying Sexual Relations in violation of Section 5.68.020 of the City of Wichita Municipal Code.
16. Criminal Trespass in violation of Section 5.66.050 of the City of Wichita Municipal Code.

17. Criminal Damage to Property in violation of Section 5.66.010 the City of Wichita Municipal Code.

18. Interference or Harassment by telephone in violation of Section 5.82.010 of the City of Wichita Municipal Code.

19. Disorderly Conduct in violation of Section 5.24.010 of the City of Wichita Municipal Code.

20. Furnishing Alcoholic Liquor or Cereal Malt Beverage to a Minor in violation of Section 4.04.025 of the City of Wichita Municipal Code.

21. Petit Theft in violation of Section 5.42.010 of the City of Wichita Municipal Code.

22. Giving a Worthless Check in violation of Section 5.42.020 of the City of Wichita Municipal Code.

23. Unlawful Use of a Financial Card in violation of Section 5.42.035 of the City of Wichita Municipal Code.

24. Theft of Lost Property in violation of Section 5.42.060 of the City of Wichita Municipal Code.

25. Theft of Services in violation of Section 5.42.070 of the City of Wichita Municipal Code.

26. Criminal Deprivation of Property in violation of Section 5.42.080 of the City of Wichita Municipal Code.

27. Theft of Motor Fuel in violation of Section 5.42.090 of the City of Wichita Municipal Code.

28. Interference with a Lawful Business in violation of Section 5.66.055 of the City of Wichita Municipal Code.

29. Violation of a Protective Order in violation of Section 5.69.010 of the City of Wichita Municipal Code.

30. Animal Bite in violation of Section 6.04.060 of the City of Wichita Municipal Code.

31. Permitting a Dangerous Animal to be at Large in violation of Section 6.04.058 of the City of Wichita Municipal Code.

32. Unauthorized Transfer of Property to a Pawn Broker in violation of Charter Ordinance 192, Section 11 of the City of Wichita Municipal Code.

b. "Public Hearing" means the following stages in the process of adjudicating an ordinance violation:

1. The arraignment of a person accused of an ordinance violation;

2. Any hearing on any dispositive motions;

3. The trial;

4. Any sentencing hearing;

5. Any trial *de novo* in the Sedgwick County District Court;

6. Oral argument in the Kansas Court of Appeals and the Kansas Supreme Court;

7. Any subsequent modification of the sentence;

8. Any probation application hearing;

9. Any probation or deferred judgment revocation hearing;

10. Any diversion revocation hearing; and

11. Any expungement hearing.

c. "Victim" means any person who suffers direct or threatened physical, emotional or financial harm as the result of the commission or attempted commission of an ordinance violation against such person.

d. "Victims' family" means a spouse, surviving spouse, children, parents, legal guardian, siblings, step-parents or grandparents."
(Ord. No. 50-936, § 3, 3-19-19)

Sec. 1.08.040. Rights afforded to victims of ordinance violations.

Victims of ordinance violations shall have the following rights:

1. To be treated with courtesy, compassion and with respect for their dignity and privacy and to be required to suffer the

minimum necessary inconvenience from their involvement with the criminal justice system.

2. To receive, through formal and informal procedures, prompt and fair redress for the harm which they have suffered.

3. To have made available to them information regarding the availability of criminal restitution, recovery of damages in a civil cause of action, the Crime Victims Compensation Fund and other remedies and the mechanisms to obtain such remedies.

4. To have made available to them information about their participation in ordinance violation proceedings and the scheduling, progress and ultimate disposition of the proceedings.

5. To have their views and concerns ascertained and the appropriate assistance provided to them throughout the ordinance violation process.

6. To have their views and concerns brought to the attention of the court when the personal interests of victims are affected and when to do so would be appropriate and consistent with criminal law and procedure.

7. To have measures taken that provide for their safety and the safety of their families and that protect them from intimidation and retaliation.

8. To have enhanced training made available to appropriate city staff to sensitize them to the needs and concerns of victims, and to have guidelines developed for this purpose.

9. To be informed of the availability of health and social services and other relevant assistance so that they might continue to receive the necessary medical, psychological and social information.

(Ord. No. 50-936, § 4, 3-19-19)

Sec. 1.08.050. Rights of victims who are minors.

As used in this section, a minor is anyone who is less than eighteen (18) years of age. Victims of ordinance violations who are minors shall have the following rights in addition to those set forth elsewhere in this ordinance:

1. To have copies of all notices and other written information required to be furnished to victims by this ordinance be sent to the minor's parent or legal guardian.

2. To have oral explanations attempted in language understandable to a minor of the victim's age of all investigative and judicial proceedings in which the minor will be involved.

3. To be accompanied at all investigative and judicial proceedings by a relative, guardian, or other person who will contribute to the minor's sense of well-being; unless it is determined by the party conducting the proceedings that the presence of the particular person would substantially impede the investigation or prosecution of the case.

4. To have all investigative and judicial proceedings in which the minor's participation is required arranged so as to minimize the time when the minor must be present.

5. To be permitted to testify at all judicial proceedings in the manner which will be least traumatic to the minor, consistent with the rights of the defendant.

6. To be provided information about and referrals to appropriate social service programs to assist the minor and the minor's family in coping with the emotional impact of the ordinance violation and the subsequent proceedings in which the minor is involved.

(Ord. No. 50-936, § 5, 3-19-19)

Sec. 1.08.060. Notification.

1. In cases where an ordinance violation identified in Section 1.08.030 of this Code has occurred and an individual arrested, the Municipal Court

and City Attorney's office shall make reasonable efforts to contact the victim or victims' family prior to any arraignment proceedings, whenever practicable.

2. Method of Communication. Unless specifically stated otherwise, the requirements to provide information to the victim may be satisfied by either written or oral communication to the victim given reasonably in advance, under the circumstances, of the public hearing or other event by the police, prosecutor, victim assistance coordinator or court. The person responsible for providing such information shall do so in a timely manner and advise the victim of any significant changes in such information. Mailing of information to the last known address of the victim, or a telephone call to the last known telephone number of the victim shall be sufficient compliance with this section.

3. The absence of the victim from the court proceedings does not preclude the court from going forward with the proceeding. Nothing in Section 1.08.010 *et seq*. shall authorize the Municipal Court to set aside or to void a finding of guilty or not guilty or to set aside any sentence imposed on the grounds that one or more victims were not afforded a right enumerated in this Chapter.

4. The right of a victim to be notified of the time, date and location of any proceeding shall be deemed to carry with it the right to be notified of any continuances thereof.

5. At any point in time, a victim may submit a written waiver of the notification and other rights accruing to that victim pursuant to this ordinance to the court.

6. The victim should report the ordinance violation and cooperate with law enforcement authorities.

7. The victim shall provide to and maintain with the victim assistance coordinator a telephone number and address where the victim may be reached. If the victim fails to keep his or her telephone number and address current, his or her request for notice shall be deemed to have been withdrawn. At any time the victim may restore a request for notice of subsequent proceedings by submitting a written request to the victim assistance coordinator.

8. If a defendant's conviction is reversed by the Kansas Court of Appeals or the Kansas Supreme Court, and the case is returned to the trial court for further proceedings, the victim has the same rights that were applicable to the criminal proceedings that led to the appeal or other post-conviction relief proceeding.

9. After the final termination of a criminal prosecution by dismissal with prejudice or acquittal, a person who has received notice and the right to be present and heard is no longer entitled to such rights.

10. Costs of transportation for the victim to appear at any public hearings shall be borne by the victim and shall not be borne by the city unless the appearance is required pursuant to a subpoena or other order of the court.
(Ord. No. 50-936, § 6, 3-19-19)

Sec. 1.08.070. Responsibility of city staff.

1. It shall be the responsibility of the Chief of Police, the City Attorney and Municipal Court Administrator to ensure that all employees under their direction treat victims of crime with courtesy, compassion and respect; and

2. Appropriate city personnel shall be given enhanced training to sensitize them to the needs and concerns of victims.
(Ord. No. 50-936, § 7, 3-19-19)

Sec. 1.08.080. Reservation of rights.

1. Nothing in this ordinance shall be construed as creating a cause of action on behalf of any person against the City of Wichita or its employees for failure or inability to provide a right enumerated in this ordinance.

2. The rights afforded to victims of ordinance violations by this Chapter shall not be construed to invade the prerogatives of the prosecutors, the court or law enforcement nor shall they be construed to include the authority to direct the prosecution of the case.

3. The city, its employees and officers are not the agents of the victim and are not responsible for the collection of restitution owed to the victim pursuant to orders of the court. Amounts owed as fines, fees and costs to the city shall be satisfied first from amounts paid by defendants to the court.

4. This ordinance affords rights to victims or ordinance violations only to the extent that the rights so afforded do not interfere with the constitutional or statutory rights of the accused. (Ord. No. 50-936, § 8, 3-19-19)

CHAPTER 1.10. MUNICIPAL IDENTIFICATION CARDS

Sec. 1.10.010. Policy.
Sec. 1.10.020. Definitions.
Sec. 1.10.030. Authority of the Administering department.
Sec. 1.10.040. Issuance of Municipal ID cards.
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Sec. 1.10.060. Acceptance by City departments.
Sec. 1.10.070. Confidentiality.
Sec. 1.10.080. Counterfeit and fraudulent Municipal ID cards.
Sec. 1.10.090. Severability.

Sec. 1.10.010. Policy.

The Governing Body hereby declares its intention to develop a system and authorize the issuance of Municipal ID cards to provide residents an additional means to prove their residency in the City of Wichita for purposes of accessing City programs, services, and activities. Municipal ID cards also support residents with employment eligibility verification, as well as with providing identification to law enforcement, other municipal agents, and other providers of programs, services, and activities in the City.
(Ord. No. 52-634, § 1, 3-25-25)

Sec. 1.10.020. Definitions.

Unless otherwise expressly stated or the context clearly indicates a different intention, the following terms shall, for the purpose of this chapter, have the meanings indicated in this section:

(a) "Administering department" means the City Manager's Office or such other City department as the Manager may designate to administer the City of Wichita Municipal ID card program.

(b) "Municipal ID card" means an identification card issued by the City pursuant to this Chapter.

(c) "Resident" means an individual who can establish proof of identity and proof of residency pursuant to this Chapter.
(Ord. No. 52-634, § 2, 3-25-25)

Sec. 1.10.030. Authority of the Administering department.

(a) The Administering department shall have the authority to contract with a vendor to issue Municipal ID cards. The Administering department or vendor, as appropriate, shall develop and make applications for Municipal ID cards. Such applications shall be available for access and submission at any City department or facility where there is substantial contact with the residents of the City of Wichita in person as well as online. Such vendor shall abide by all applicable requirements of this Chapter and by all rules promulgated by the Administering department pursuant to this Section.

(b) The Administering department shall promulgate a list of acceptable documents to establish proof of identity and proof of residency within the City of Wichita pursuant to Section 1.10.050.

(c) The Administering department shall identify and implement measures, including, but not limited to, staff training, community outreach, and language assistance tools, to address the needs of individuals with limited English language proficiency in the administration of the Municipal ID program.

(d) The Administering department shall have the authority to promulgate any rules necessary to effectuate the purposes of Municipal ID card program that are not inconsistent with the provisions of this Chapter.
(Ord. No. 52-634, § 3, 3-25-25)

Sec. 1.10.040. Issuance of Municipal ID cards.

(a) Upon request, the Administering department or contracted vendor shall issue a Municipal ID card to any resident who meets the application and eligibility requirements set forth in Section 1.10.050 and pays the applicable fee as determined by the Administering department pursuant to Section 1.10.030(c).

(b) The Municipal ID card shall display, at minimum, the cardholder's name, photograph, date of birth, Municipal ID card number, and expiration date. The cardholder's address shall

be displayed if an address to receive mail is available to the cardholder, including a P.O. Box. Such Municipal ID card shall also, at the discretion of the cardholder, display the cardholder's gender.

(c) Any Municipal ID card issued shall state on its face the statement "Not valid for state ID." Any Municipal ID card issued shall also state on its face the statement "Not valid for voting."

(d) Any Municipal ID card issued shall include markings recognizing the Municipal ID Card has been issued by the City. Such Municipal ID card shall also be produced in a form intended to thwart replication or counterfeiting.

(e) Any Municipal ID card issued shall be valid for a maximum of three years and expire the earlier of three years from the date of issuance or when the cardholder is no longer a resident of the City of Wichita.

(f) In the event a Municipal ID card is stolen, lost or destroyed, the resident must re-apply and pay the applicable application fee for a replacement card unless otherwise waived pursuant to rules established by the Administering department. Replacement Municipal ID card applications shall be treated as new applications.
(Ord. No. 52-634, § 4, 3-25-25)

Sec. 1.10.050. Application and eligibility for Municipal ID cards.

(a) To obtain a Municipal ID card, a resident shall complete an application, under penalty of perjury, requiring proof of identity and proof of residency within the City of Wichita. Such forms of proof shall be issued by a governmental entity, or be issued by an entity that takes reasonable steps to verify the identity and/or residency of the individual to whom it is issued, or be of a type that is normally accepted as proof of identity and/or residency in the ordinary course of business. Acceptable forms of proof shall be limited to the list of acceptable documents to establish proof of identity and proof of residency within the City of Wichita once such list is promulgated by the Administering department.

(b) Any proof of identity or proof of residency which has been expired more than 10 years prior to the date of application will not be accepted for an application for a Municipal ID card.

(c) Any proof of identity or proof of residency in a language other than English must be accompanied by a certified English translation. Acceptance of such translated documentation, or any additional translation deemed necessary, shall be within the discretion of the Administering department.

(d) Any resident who is 18 years or older and satisfies the requirements of this Section shall be issued a Municipal ID card. Any resident who is aged at least 14 years but not yet 18 years shall be issued a Municipal ID card if an application submitted on their behalf is completed by their parent or legal guardian and the application satisfies the requirements of this Section. The parent or legal guardian may verify the minor applicant's residency, provided that the parent or legal guardian would meet the proof of identity and proof of residency requirements set forth in this Section. Residents not yet 14 years of age shall not be issued a Municipal ID card.

(e) The administering department or contracted vendor shall retain the original application and copies of an applicant's supporting documentation, including all proof of identity and proof of residency, pursuant to a records retention and disposal scheduled approved by the administering department.
(Ord. No. 52-634, § 5, 3-25-25)

Sec. 1.10.060. Acceptance by City departments.

(a) Each City department shall accept a Municipal ID card as valid identification and as valid proof of residency in the City. A Municipal ID shall be accepted by City departments unless such City department has reasonable grounds for determining the Municipal ID card is counterfeit, altered or improperly issued to the cardholder, or that the individual presenting the Municipal ID card is not the individual to whom it was issued. In such cases, the Municipal ID card shall be confiscated and returned to the administering department with a transmittal

letter documenting the circumstances justifying the confiscation. The administering department may, upon review, revoke the Municipal ID card or return it to the individual.

(b) This Section is not intended to replace, preempt or supersede any other requirements for the production of other forms of identification in connection with the administration of City programs, services, and activities. The requirements of this Section do not apply in circumstances where any other governing law requires the City to obtain different proof of identity or proof of residency, or when the City would be unable to comply with a condition imposed by a funding course that would imperil the City's access to funds from that or other sources.
(Ord. No. 52-634, § 6, 3-25-25)

Sec. 1.10.070. Confidentiality.

The administering department and any contracted vendor shall keep confidential to the extent permitted by applicable laws, including the Kansas Open Records Act, any identifying information or other data supporting the applications of individuals applying for and issued Municipal ID cards.
(Ord. No. 52-634, § 7, 3-25-25)

Sec. 1.10.080. Counterfeit and fraudulent Municipal ID cards.

It shall be a violation of this Chapter for any person or entity to undertake the following acts. Any person convicted of a violation of this Chapter shall be guilty of a misdemeanor and punished for that violation by a fine of not more than $100 per violation.

(a) To knowingly present false information in the course of applying for a Municipal ID card;

(b) To alter, copy or replicate a Municipal ID card without the express permission of the City;

(c) To use a Municipal ID card issued to another person, with the intent to cause another person or entity to believe the user of the Municipal ID card is the person to whom the Municipal ID card is issued; or

(d) To fail to surrender a Municipal ID card when required by the administering department pursuant to this Chapter.

(Ord. No. 52-634, § 8, 3-25-25)

Sec. 1.10.090. Severability.

If any section, clause, sentence or phrase of this Chapter is for any reason held illegal, invalid or unconstitutional by a court of competent jurisdiction, such action shall not affect the validity of any remaining provisions herein.
(Ord. No. 52-634, § 9, 3-25-25)

Title 2

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CHAPTER 2.02. INTERIM GOVERNMENT DURING DISASTER

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Sec. 2.02.010. Vacancies requiring special election.

Whenever a vacancy shall exist in a majority of elective officials of the governing board of the City of Wichita, Kansas, as a result of a natural disaster or calamity or for any reason other than by recall, and no regular city election will occur within twelve months, a special election shall be called by the city manager. The special election shall be governed by the election procedures provided in Chapter 25 of the Kansas Statutes Annotated, except that the following provisions shall govern the times and dates of each proceeding in such special election:

(a) The city manager shall call a special election and shall make publication of notice once in the official city paper, which notice shall set forth the date of the special election which shall be on a Tuesday;

(b) The filing deadline for candidates for the special city election shall be twelve noon of the Tuesday preceding by seven weeks the day of the special election;

(c) The special primary election of city officers shall be on the Tuesday preceding by four weeks the day of the special city election.

(Ord. No. 32-153 § 1 (part))

Sec. 2.02.020. Terms of officers selected during special election—Appointment of interim council members.

The city officers elected at the special election shall serve for the remainder of the unexpired terms of the vacant positions. Those unexpired terms of longest duration shall be filled in order by those receiving the highest number of votes. Until such time as an election can be held, the remaining members of the city council shall appoint interim council members to serve, and the appointments shall be made according to the procedure as set out in K.S.A. 13-1806.

(Editorially amended during 3-00 supplement; Ord. No. 32-153 § 1 (part))

Sec. 2.02.030. Commission chairmen to constitute governing board when board unable to serve.

In the event all members of the of city council are unable to serve as a result of a natural disaster or calamity or for any reason other than by recall, then the chairmen of the following boards shall constitute the governing body of the City of Wichita during the interim period until the vacancies are filled by election as herein provided:

(1) Board of park commissioners;

(2) Library board;

(3) Local housing authority;

(4) Metropolitan transit authority;

(5) Public building commission.

(Editorially amended during 3-00 supplement; Ord. No. 32-153 § 1 (part))

Sec. 2.02.040. Requirements of chairmen who serve on interim board.

All of the above chairmen must meet all the residency requirements and have all other qualifications of a regularly-elected city council member. In the event the chairman does not meet those requirements, he shall not serve, and the particular board shall, from their board, elect a member to serve in his stead.

(Editorially amended during 3-00 supplement; Ord. No. 32-153 § 1 (part))

Sec. 2.02.050. Interim mayor and vice mayor—Compensation of interim officers.

The chairman of the board of park commissioners shall serve as acting mayor, and the chairman

of the library board shall serve as acting vice mayor. Any person serving in an interim office shall receive the same compensation and benefits as the original holder of that office.
(Ord. No. 32-954 (part); Ord. No. 32-153 § 1 (part))

CHAPTER 2.04. CITY COUNCIL*

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*__Editor's note—__Ord. No. 47-858, §§ 1—48, adopted on March 28, 2008, amended chapter 2.04 in its entirety. The former chapter 2.04 pertained to similar provisions. See also the Code Comparative Table.

Sec. 2.04.005. City council; terminology and interpretation.

Unless otherwise apparent from the clear reading and intent of the Code of the City of Wichita:

(a) All references to the "city council," "council," or "members of the council," shall be deemed to be to the entire governing body and members thereof consisting of six council members and the mayor.

(b) All references to an individual "council member" shall be deemed to be a reference to each member of the governing body including the six council members and the mayor.

(c) All actions of the council shall be taken by a majority vote of the members, irrespective of the number in attendance, except when the city code calls for a specific number of votes or a different voting system. A "majority of the members" or a "majority of the council" shall mean four members, except when there is a vacancy or disqualification on the council.

(d) Actions of the council regarding routine procedural matters which are specifically identified in this code, and which are made by a motion of a "majority of a quorum," shall mean a majority of the members present at the meeting.

(Ord. No. 47-858, § 1, 3-28-08; Ord. No. 52-362, § 1, 4-9-24)

Sec. 2.04.010. Selection and term of officers.

The first order of business at a special meeting called on the second Monday in January of

each even-numbered year shall be to swear in the newly-elected city council members and mayor. The presiding officer shall be the mayor, chosen by the electorate in the manner and for the term as set forth by charter ordinance. The mayor shall be removed from office by recall or other procedures as may be set forth by law. A vice mayor shall be chosen by a majority written vote of the council from among its membership at its regular meeting on the second Tuesday in January and every year thereafter for a term of one year. The vice mayor shall serve at the pleasure of the council and shall be removed as an officer for cause, which shall be determined by majority (four) vote of the council.

Each officer shall serve for the term prescribed and until a successor has been duly elected and qualified.
(Ord. No. 47-858, § 2, 3-28-08; Ord. No. 50-120, § 1, 12-8-15; Ord. No. 50-886, § 1, 11-20-18)

Sec. 2.04.015. Filing for office.

Any member of the governing body may file, be nominated, or run for the office of mayor or council member while serving as a member of the governing body and remain on the governing body; provided that, such member may not file, be nominated, or run for more than one such office at one time. Upon election to such new office, the member must resign from the existing office prior to being sworn in as council member or mayor.
(Ord. No. 47-858, § 3, 3-28-08)

Sec. 2.04.020. Installation of officers.

(a) OATH OF MAYOR. Before assuming the duties of the office the mayor shall take the oath of office administered by the city clerk or a duly appointed or elected federal, state or municipal judge as follows:

"I do solemnly swear that I will support the Constitution of the United States, the Constitution of the State of Kansas, and will faithfully and impartially discharge the duties of the office of Mayor in and for the City of Wichita, Kansas, so help me God."

The mayor shall assume the chair immediately after the oath has been administered.

(b) OATH OF VICE MAYOR. Immediately after the election of the vice mayor, and after the mayor has been sworn in when applicable, the vice mayor shall take the oath of office administered by the city clerk or a duly appointed or elected federal, state or municipal judge. When the vice mayor takes the oath of office, the words "office of the Vice Mayor" shall be substituted where the oath states" office of the Mayor."
(Ord. No. 47-858, § 4, 3-28-08)

Sec. 2.04.030. Duties of officers.

The mayor shall be the official head of the city on formal occasions and shall serve as the leader in the activities and duties of the city council. As the official head of the city, the mayor shall not only lead but shall speak to the aims, policies and programs of the city, but his or her authority is restricted to that of a council member, except as hereinafter while serving as chairman of the council meetings. The mayor shall have no administrative or executive duties but shall refer all such matters to the city manager. The mayor shall preside at all meetings of the city council, shall sign all resolutions, proclamations, minutes, ordinances, contracts, revenue bonds and other official instruments approved by the city council; provided that, such documents and instruments may be signed in the manner provided in Section 2.04.035. The mayor shall have no veto power.
(Ord. No. 47-858, § 5, 3-28-08)

Sec. 2.04.031. Vice mayor to preside when.

In the absence of the mayor, the vice mayor shall substitute for the mayor on public occasions, shall preside at meetings as provided in this chapter for the mayor, and shall sign minutes, proclamations, resolutions, ordinances, contracts, revenue bonds and other official instruments approved by the city council as may be necessary in the absence of the mayor. The vice mayor shall assume no other duties of the mayor than specifically provided herein or as may be required by law.
(Ord. No. 47-858, § 6, 3-28-08)

sion as mayor in the absence from the city of the mayor, the vice mayor or other council members. (Ord. no. 47-858, § 7, 3-28-08)

Sec. 2.04.032. Order of succession.

The city council shall designate, by resolution, from the members thereof, the order of succession as mayor in the absence from the city of the mayor, the vice mayor or other council members. (Ord. no. 47-858, § 7, 3-28-08)

Sec. 2.04.035. Signing of documents.

(a) The mayor may delegate to the city manager the authority to sign or execute all documents and instruments in the name of the city manager which the mayor is authorized to sign or execute by law, council action or custom; provided that, such delegation shall not pertain to ordinances. Such delegation of authority shall be in writing under oath and a copy shall be filed with the city clerk; such delegation may also be accomplished according to policy adopted by city council. The delegation shall specify the nature of the documents and instruments, which the city manager is authorized to sign and the circumstances under which such authority may be exercised.

(b) The mayor may delegate to the city manager, the city clerk, or any designee of the city manager or city clerk, the authority to place a facsimile signature of the mayor upon documents and instruments which the mayor is authorized to sign by law, council action or custom; provided that, such delegation shall not pertain to ordinances and documents required to be notarized. The delegation of authority shall be in writing under oath and filed with the city clerk; such delegation may also be accomplished according to policy adopted by the council. The delegation shall specify the nature of the documents and instruments upon which a facsimile signature may be placed and the circumstances under which such authority may be exercised.

(c) The delegation of authority to sign or execute documents and instruments under subsections (a) and (b) is personal to the mayor and shall terminate at the end of the term or occurrence of a vacancy in the office of the mayor. The delegation under this section may be terminated in whole or part at any time in writing by the mayor or by action of the city council.

(d) This section shall be construed broadly so as to effectuate its general public purpose for efficiency and to give legal effect to the actions of the city council and the mayor. Nothing in this section shall be construed to limit the authority of city officials to use facsimile signatures under the Uniform Facsimile Signature of Public Officials Act or digital signatures under the Kansas Digital Signature Act.
(Ord. No. 47-858, § 8, 3-28-08)

Sec. 2.04.040. Vacancies.

(a) *Officers.* In the event of a vacancy occurring in the office of mayor or vice mayor because of resignation, ouster, disqualification, removal, death or other cause, except expiration of elected term, a notice of vacancy shall be announced at the regular council meeting following the date on which such vacancy occurs. The position shall be filled from among the remaining council members by written ballot of the majority of the governing body at the next regular meeting, at which all the remaining members are present, following notice of vacancy. The written balloting for filling the vacancy of mayor or vice mayor shall be in accordance with the procedures in subsection (b)(6) of this section. If the vacancy of the office of mayor or vice mayor results in a vacancy on the council, then the procedures in subsections (b), (c) and (d) of this section shall control to fill the council vacancy.

(b) *Members.* In the event of a vacancy occurring in the membership of the council, other than mayor, because of resignation, death, ouster, disqualification or other reasons except expiration of elected term, a notice of vacancy shall be announced at the first regular meeting following the date on which such vacancy occurs. The vacancy shall be filled pursuant to the following procedure:

(1) The district advisory board (DAB) within the district having the vacancy shall, following the petition deadline set by the governing body, hold a forum open to the public to screen all candidates who have filed a lawful petition for candidacy.

(2) At the conclusion of the public forum, said DAB shall, nominate five candidates

for further consideration by the DAB. Such nomination shall be based on an initial cumulative ranking of all candidates who have filed a lawful petition for candidacy, with each DAB member present ranking their five preferred candidates in order of preference. The five candidates with the most points shall have the highest cumulative ranks and shall be nominated for further consideration by the DAB. Such cumulative rank shall be determined by awarding a candidate five points for each first place vote, four points for each second place vote, three points for each third place vote, two points for each fourth place vote, one point for each fifth place vote, and zero points when unranked. The five candidates with the highest cumulative rank based on the foregoing shall be nominated for further consideration by the DAB. In the event of a tie for the fifth candidate (i.e., the lowest-ranked candidate nominated), the four highest-ranked candidates as well as any candidate tied for the fifth position shall be nominated for further consideration by the DAB.

(3) Once five or, in the case of a tie for the fifth candidate, more than five candidates have been initially nominated by the DAB, said DAB shall provide a cumulative rank of those nominated candidates for consideration by the governing body. Each DAB member present shall rank the nominated candidates in order of preference. Such cumulative rank shall be determined by awarding a candidate five points for each first-place vote, four points for each second-place vote, three points for each third-place vote, two points for each fourth-place vote, one point for each fifth-place vote, and zero points when unranked. The cumulative rank of the nominated candidates by DAB shall be calculated and provided for consideration by the governing body.

(4) If less than five lawful petitions for candidacy are filed and considered by the DAB, the DAB, after the public forum, shall forward all the names of the nominees to the governing body for consideration.

(5) The DAB shall forward to the governing body in writing the names of the candidates in order of preference according to the cumulative ranking vote of the DAB.

(6) At a regular meeting of the governing body following the receipt of the DAB nomination, at which all the remaining members are present, the remaining members of the governing body shall elect by written ballot from those nominated a new member to fill the unexpired term; provided that, such election shall be conducted by a cumulative ranking vote of the members. Each member shall rank the nominated candidates in order of preference. Such cumulative rank shall be determined by awarding a candidate five points for each first place vote, four points for each second place vote, three points for each third place vote, two points for each fourth place vote, one point for each fifth place vote, and zero points when unranked. The candidate with the most points shall have the highest cumulative rank and shall be selected to fill the unexpired term. In the event the remaining members of the governing body are unable to agree after the cumulative ranking vote describe herein, the vacancy election process shall automatically be scheduled for the next two consecutive regular meetings of the governing body, except that the lowest-ranked candidate shall be eliminated from consideration for the next vote. If the remaining members of the governing body are unable to agree by cumulative ranking vote of the members at the first of the next two consecutive regular meetings, then the lowest-ranked candidate shall be eliminated from consideration for the next vote. If the remaining members of the governing body are unable to agree

c. The salaries of City Council members and the Mayor shall be payable in bi-weekly installments.

d. In lieu of mandatory Social Security coverage which would otherwise be required by Section 11332 of the Omnibus Budget Reconciliation Act of 1990, an additional sum may be contributed to the City of Wichita Deferred Compensation Program on behalf of each member of the City Council and Mayor. The sum so contributed shall be considered compensation under the applicable Internal Revenue Regulations in order to permit its deferral into the program.
(Ord. No. 50-835, § 1, 8-28-18)

Sec. 2.04.050. Code of ethics for council members.

Council members occupy positions of public trust. All business transactions of such elected officials dealing in any manner with public funds, either directly or indirectly, must be subject to the scrutiny of public opinion both as to the legality and to the propriety of such transactions. In addition to the matters of pecuniary interest, council members shall refrain from making use of special knowledge or information before it is made available to the general public; shall refrain from making decisions involving business associates, customers, clients, friends and competitors; shall refrain from repeated and continued violation of city council rules; shall refrain from appointing immediate family members, business associates, clients or employees to municipal boards and commissions; shall refrain from influencing the employment of municipal employees; shall refrain from requesting the fixing of traffic tickets and all other municipal code citations; shall refrain from seeking the employment of immediate family members in any municipal operation; shall refrain from using their influence as members of the governing body in attempts to secure contracts, zoning or other favorable municipal action for friends, customers, clients, immediate family members or business associates; and shall comply with all lawful actions, directives and orders of duly constituted municipal officials as such may be issued in the normal and lawful discharge of the duties of these municipal officials.

Council members shall conduct themselves so as to bring credit upon the city as a whole and so as to set an example of good ethical conduct for all citizens of the community. Council members shall

by cumulative ranking vote of the members at the second of the next two consecutive regular meetings, the tie shall be broken by a coin toss between the two candidates with the highest cumulative rank at the last cumulative ranking vote of the members to select the candidate to fill the unexpired term.

(Ord. No. 47-858, § 9, 3-28-08; Ord. No. 52-362, § 2, 4-9-24)

Sec. 2.04.045. Compensation of Mayor and City Council.

a. The total salary and compensation of City Council members of the City of Wichita shall be established at $41,717. On or after the effective date of the repeal of Section 1 of Charter Ordinance 226, such wages shall be increased annually by an amount equal to the cost of living and merit increase, if any, included in the annual salary ordinance approved by the Council for exempt City employees, who are not represented by a bargaining unit, plus an automobile allowance as authorized by City Council policy. Council members elected following the passage of this ordinance will receive a salary equal to the salary of existing city council members.

b. The total salary and compensation of the Mayor of the City of Wichita shall be established at $93,863. On or after the effective date of the repeal of Section 2 of Charter Ordinance 226, such wages shall be increased annually by an amount equal to the cost of living and merit increase, if any, included in the annual salary ordinance approved by the Council for exempt City employees, who are not represented by a bargaining unit, plus an automobile allowance as authorized by City Council policy. Any Mayor elected following the passage of this ordinance will receive a salary equal to the salary of the existing Mayor.

c. The salaries of City Council members and the Mayor shall be payable in bi-weekly installments.

d. In lieu of mandatory Social Security coverage which would otherwise be required by Section 11332 of the Omnibus Budget Reconciliation Act of 1990, an additional sum may be contributed to the City of Wichita Deferred Compensation Program on behalf of each member of the City Council and Mayor. The sum so contributed shall be considered compensation under the applicable Internal Revenue Regulations in order to permit its deferral into the program.

(Ord. No. 50-835, § 1, 8-28-18)

Sec. 2.04.050. Reserved.

Editor's note—Ord. No. 52-549, § 7, adopted Sept. 17, 2024, repealed § 2.04.050, which pertained to code of ethics for council members, and derived from Ord. No. 47-858, § 10, adopted Mar. 28, 2008.

Sec. 2.04.051. Representing the city.

No member of the city council, employee of the city, or council appointee shall state a position or policy of the city until said position or policy has been adopted by an affirmative motion, ordinance or resolution of the council. No restraint on individual expression is hereby intended, so long as the council member, city employee or council appointee clearly indicates that the position expressed is his or her individual opinion and not the position or policy of the city.

(Ord. No. 47-858, § 11, 3-28-08)

Sec. 2.04.052. Confidentiality of information.

During the course of their duties, council members will receive confidential information or attorney-client privileged communications that for good reason may be withheld under the Kansas Open Records Act, Kansas Open Meetings Act and other laws. This will be information that is commercially sensitive or is personal to a particular individual or organization and may affect city's legal rights and responsibilities. Council members acknowledge that failure to observe confidentiality will impede the performance of the council by inhibiting information flows and undermining public confidence in the council. The confidentiality of this information will be protected by council members and not disclosed unless a resolution of the council to release the information is adopted by a majority vote of the council members.

(Ord. No. 47-858, § 12, 3-28-08)

Sec. 2.04.060. Employment of professional services.

Employment of professional services, such as furnished by appraisers, accountants, architects, lawyers, realtors, engineers and others of similar professions, shall be authorized by appropriate action of the majority of the city council members, or by the city manager when the contract for services is equal to or less than $50,000.00. Selection by the city council for employment shall be made from responses of qualified persons or firms interested in employment by the city. All selections by the city council members shall be by majority vote after recommendation by the city manager with respect to demonstrated competence and qualification for the type of services required at fair and reasonable prices, with a strong emphasis on qualifications, skills, expertise, and experience, provided, that the city council may designate itself to serve as the selection committee on projects of wide public interest.
(Ord. No. 47-858, § 13, 3-28-08; Ord. No. 49-618, § 1, 8-26-14)

Sec. 2.04.070. Appointments to municipal boards and commissions.

All appointments of members of boards and commissions of the city shall be made in accordance with the statutes of the State of Kansas, Chapter 2.07 and the policies and procedures of Chapter 2.12 of this Code.
(Ord. No. 47-858, § 14, 3-28-08; Ord. No. 52-549, § 8, 9-17-24)

Sec. 2.04.080. Legal notices.

The city council shall follow a policy with respect to legal notices concerning annexation, zoning, public hearings, condemnations, etc., as such notice may, in the opinion of the city attorney, be required by state statute or federal law.
(Ord. No. 47-858, § 15, 3-28-08)

Sec. 2.04.090. Approval of expenditures.

(a) The city council shall approve all contracts for public improvements and purchases in excess of $50,000.00 and all transfers of funds in excess of $50,000.00, in addition to such regular budget approvals as may be required by law; provided, however, that the approval of a majority of the council shall be required to overrule a recommendation of the city manager or to exercise approval in those cases where action by city ordinances is required.

(b) No individual council member shall incur any expense by travel or otherwise for the city except at the direction of a majority of a quorum of the council. Such approval shall be obtained prior to incurring the expense, except for the following circumstance: expenses totaling $500.00 or less which may be incurred if (1) funds for such expenditure are available in the adopted budget and (2) such council member notifies the council prior to the expenditure of the intended expense.
(Ord. No. 47-858, § 16, 3-28-08; Ord. No. 49-816, § 2, 8-26-14)

Sec. 2.04.100. Relationship between city council and city manager.

The members of the city council and the city manager shall observe scrupulously the relationship and the respective authorities and responsibilities of each as provided by the statutes, city ordinances, council rules or procedure and the ethics of good conduct. Generally speaking, the council shall act as a policy-making body only except as specifically provided otherwise by statute, and the city manager shall act as the administrative head of the city. The council shall delegate to the city manager all administrative duties not specifically required by statute to be performed by the council. No member of the city council shall interfere directly with the conduct of any municipal department except at the express direction of a majority (four) of the council. All instructions or direction to the city manager shall come from the council as a whole after approval of a majority (four) of the council. The city manager shall disregard any other instructions or directions and shall refer them to the council as a whole. Requests for routine information may be made to department heads by individual council members but all requests for lengthy or detailed reports shall be made only to the city manager. No instructions or directions

shall be given by individual council members to department heads or to other city employees who shall refer such instructions immediately to the city manager, who, in turn, shall bring such improper actions to the attention of the entire council for such action as may be appropriate in each individual case.
(Ord. No. 47-858, § 17, 3-28-08)

Sec. 2.04.110. Duties of city manager relative to city council.

The city manager shall act as the administrative head of the city and in such capacity shall direct the affairs of the city within the limits of the budget, the policies established by the city council and the requirements of the statutes. The city manager shall attend all meetings of the council unless excused by a majority (four) of the council. The city manager shall prepare and submit the annual budget to the council, shall keep the council advised as to the financial condition and requirements of the city and shall make recommendations to the council on all matters concerning the welfare of the city. The city manager shall have no vote in the public meetings of the governing body and shall refrain from attempting to establish policy except as he or she shall make recommendations to the city council as a whole. The city manager shall be employed by a majority (four) of the council and shall serve at the pleasure of the majority (four) of the council. The city manager shall refrain from any and all political activity whatsoever and shall so conduct himself or herself as to observe the highest standard of ethics of the city manager profession. When requested by the city manager (and not by individual members of the council) certain department heads and employees of the city shall attend council meetings. The city manager shall advise with the council on matters pertaining to the affairs of the city.
(Ord. No. 47-858, § 18, 3-28-08)

Sec. 2.04.120. Duties of city attorney relative to city council.

(a) The city attorney shall attend all meetings of the city council. The city attorney shall draft or cause to be drafted for his or her approval all ordinances, resolutions, contracts, releases, agreements and other instruments pertaining to legal actions of the city which shall have been approved as to form and legality by the city attorney before presentation to the council. No ordinances or resolutions or other documents shall be prepared by the city attorney unless requested by the city manager, unless such request shall have been placed on the agenda and approved by a majority (four) of the council. When requested by any member of the council, the city attorney shall furnish an opinion, either written or oral as may be appropriate in each case, concerning parliamentary rulings, interpretations of council rules of procedure and opinions as to legality of matters under consideration. The city attorney is the chief legal advisor to the council and the city manager, who are entitled to rely upon his or her legal opinions, which shall be considered final as they relate to municipal affairs except as they may be adjudicated in the courts.

(b) The city attorney shall be the parliamentarian for the council, and shall provide advice and counsel to the presiding officer on all infractions of the council rules and procedures for the conduct of meetings.
(Ord. No. 47-858, § 19, 3-28-08)

Sec. 2.04.130. Duties of city clerk relative to city council.

The city clerk shall be ex officio clerk of the council, shall keep minutes of the meetings and shall perform such other and further duties in the meetings as may be directed by the city council or the city manager. The city clerk shall keep the official records of the city as may be required by the statutes, shall be authorized to maintain summary form of minutes indicating official actions taken in council meetings and shall maintain recordings of all council meetings on file for a period of at least four years after each meeting. Summary minutes of each meeting shall show the attendance, a short summary of each matter acted upon, the action taken with respect to each matter, the vote, the deletions as ordered by the chair, reprimands as ordered by the chair, votes of reprimand or censure as directed by the council, and appeals.
(Ord. No. 47-858, § 20, 3-28-08)

Sec. 2.04.140. Sergeant-at-arms.

The chief of police or such other senior member or members of the police department, as he or she may be authorized to select by the city manager and as may be approved by the mayor, shall serve as sergeant-at-arms for council meetings. The sergeant-at-arms shall carry out all orders and instructions given by the presiding officer for the purpose of maintaining order and decorum at council meetings and shall be held harmless by the city for such acts as he or she may perform at the direction of the presiding officer. Upon instructions from the presiding officer, it shall be the duty of the sergeant-at-arms to remove from the room or to place under arrest any person who violates the order and decorum of the meeting and to cause a complaint to be filed against such person to be prosecuted under the provisions of the appropriate code, and the complaint in each case shall be signed by the presiding officer.
(Ord. No. 47-858, § 21, 3-28-08)

Sec. 2.04.150. Special committees.

Special committees shall be appointed by the mayor as directed or approved by a majority (four) of the council. Such special committees shall conduct their activities and shall report as directed by the majority (four) of the council. Such committees shall serve at the pleasure of the majority (four) of the council.
(Ord. No. 47-858, § 22, 3-28-08)

Sec. 2.04.180. Regular meetings.

Regular meetings of the City Council shall be held in the council chambers of City Hall on each Tuesday at 9:00 a.m., except that no regular meeting shall be held on the fifth Tuesday of a month. Regular meetings may be cancelled, or held from time to time at such other times and locations within the city or scheduled as a consent agenda/workshop meeting as determined at a prior meeting by a majority of the council members. Consent agenda/workshop meetings shall be held on the fourth Tuesday of each month at 9:00 a.m. in the First Floor Boardroom or other location so designated by a majority of the City Council. All regular and workshop meetings of the City Council shall be open to the press and to the public, except when closed under the procedures of the Kansas Open Meetings Act.
(Ord. No. 47-858, § 23, 3-28-08; Ord. No. 50-033, § 1, 7-14-15; Ord. No. 52-348, § 1, 2-27-24; Ord. No. 52-568, § 1, 11-19-24)

Sec. 2.04.190. Order of council business at regular meetings.

Regular meetings of the council shall be conducted according to the standing rules of procedure of the council in the following order of business:

I. *Opening of Regular Meeting.*

A. Call to Order. Promptly at the hour appointed for the meeting of the council, the mayor, or in his/her absence, the successor presiding officer shall take the chair and shall call the city council meeting to order.

B. Invocation. The presiding officer shall announce the invocation to be given by a member of a rotating panel invited for such purposes from all the religious faiths in the community.

C. Pledge of Allegiance. The presiding officer will lead in the presentation of the Pledge of Allegiance to the flag of the United States of America.

D. Attendance. The clerk shall note the attendance of the council members and shall enter as a matter of record their presence or absence during all or any part of the meeting.

E. Approval of Minutes of Previous Meeting. Minutes of the previous meeting or meetings shall be amended, corrected and approved and if approved by a majority of the quorum present and shall be entered in the permanent records of the city without being subject to further change or amendment. Minutes of previous meetings shall not be read aloud in their entirety unless so required by a vote of a majority (four) of the council.

F. Awards and Proclamations. The presiding officer will present the scheduled awards and proclamations.

G. Public Agenda. A public agenda shall be considered by the council. No action will be taken relative to items on this agenda other than referral to the City Manager for information. Requests to appear will be placed on the agenda on a "first-come, first-served" basis. Except as otherwise directed by the Presiding Officer of a regular meeting: (1) this portion of the meeting is limited to thirty minutes and shall be subject to a limitation of five minutes for each presentation with no extension of time permitted, (2) no speaker shall be allowed to appear more frequently than once every fourth meeting, and (3) members of the public desiring to present matters to the council on the public agenda must submit a request in writing to the office of the city clerk prior to twelve noon on the Tuesday preceding the council meeting. The request should state the name of the individual(s) desiring to be heard and the matter to be presented. Substitutes for the individual(s) to be heard or matters to be presented are not permitted. Item requests may be referred, at the discretion of the city manager, to appropriate staff for mediation prior to being placed on the public agenda if the individual(s) consents to said referral. Matters pertaining to personnel, quasi-judicial cases, litigation and violations of laws and ordinances are excluded from the agenda. Rules of decorum will be observed and enforced as provided in this Code.

II. *Council Business.*

A. Report of Board of Bids and Contracts. Following any discussion by the Council, a vote will be called to accept the report.

B. Petitions for Public Improvements. Following any discussion by the Council, a vote will be called to approve Petitions for Public Improvements which have one hundred percent of landowner approval.

C. Unfinished Council Business. Items on this agenda will be those items of unfinished business carried over from previous meetings and designated for further consideration by the council.

D. New Council Business. The new business agenda shall be prepared by the city manager and shall include all items to be presented officially to the city council by the city manager. Each item shall include sufficient summary explanation to make clear to members of the council and the public the matter to be discussed and the action requested. Additional or supplemental information may accompany the agenda or follow as soon thereafter as practicable. Items on this agenda shall be presented by the city manager or such members of the staff as the city manager may designate. Generally speaking, the order of presentation shall follow the agenda except as may be directed otherwise by the presiding officer and each item shall be concluded before the next item is discussed. Except for questions from council members for purposes of clarification, the manager shall be permitted to explain fully each individual item before detailed questions or discussion is had either by the members of the council or by members of the public present. Following the complete presentation of each item on the agenda and the specific recommendation of the city manager in connection with each item presented, the matter shall be opened for discussion from the floor to members of the public.

III. *Council Business Submitted by City Authorities.*

A. Planning Agenda. The planning agenda shall be prepared by the city manager. Items on the planning agenda shall include all regulatory and policy matters, which carry the recommendation of the Metropolitan Area Planning Commission, and may include other matters referred to the city council from the planning department. The city manager

may designate a time certain for hearing on items on this agenda that are of public interest. Public hearings on planning items are conducted by the planning commission under provisions of state law. Additional hearing on zoning applications will not be conducted by the council unless a written statement is filed with the city clerk by 5:00 p.m. on the Wednesday preceding the meeting in question:

1. Alleging unfair or incomplete hearing before the planning commission; or
2. Alleging new facts or evidence that was unavailable at the planning commission hearing; the council will determine from the written statement whether or not to return the matter to the planning commission for rehearing.

B. Housing Agenda. The city council meets as the governing body of the housing authority for consideration and action on items on this agenda, pursuant to state law, HUD regulations and city ordinance. The meeting of the housing authority is deemed called to order at the start of this agenda and adjourned at the conclusion. The designated housing member is also assembled with the city council, but only for purposes of the housing agenda portion of the meeting.

C. Airport Agenda. Pursuant to state law and the city's home rule powers, the city council meets as the governing body of the airport authority for consideration and action on items on this agenda. The meeting of the airport authority is deemed called to order at the start of this agenda and adjourned at the conclusion thereof.

IV. *Council Agenda.*

A. Council Member Agenda. The Council Member Agenda shall be used by individual council members to request that items or projects be placed on a future agenda for consideration by the council. A majority vote (four) shall be required to put an item on a future agenda and direct staff to begin work on the item.

B. Council Member Appointments. Appointments to city boards and commissions shall be made pursuant to Chapter 2.12 of this Code. The mayor or vice mayor shall make at-large appointments as required by state law or city ordinance.

V. *Consent Agenda.*

A. The consent agenda shall be prepared by the city clerk for each regular meeting or workshop. It shall be restricted to the necessary actions to be taken by the council in connection with the second reading of ordinances, routine resolutions or contracts in which the project has been previously approved by the council, or routine matters to be approved. Items on the consent agenda, although listed separately, shall be considered collectively as a consensus agenda and an affirmative vote of the council on the consent agenda will allow and be construed as an affirmative vote to take the recommended action as stated on each item, provided that when a council member has been recorded as voting against an ordinance on first reading, the council member shall be recorded as voting the same on subsequent readings on the consent agenda, unless otherwise indicated by the council member. Any item on the agenda may be considered separately by request of any member of the council or the city manager, in which event it will be set aside for separate discussion and remaining items on the agenda will be voted upon as a consensus agenda. Items pulled for discussion that are not deferred shall be open for public comment following staff's presentation.

B. It is recognized that the placement of items on the consent agenda can be subjective. In order to provide City staff with additional guidance, the following items are considered appropriate for the consent agenda:

1. Applications for licenses.

2. Community event requests.
3. Street closures.
4. Preliminary construction estimates.
5. Design services agreements and supplements to design services agreements.
6. Sale of remnant parcels and property previously designated as surplus.
7. Purchase of property for right-of-way.
8. Second reading ordinances.
9. Property acquisitions.
10. Minutes of advisory boards and commissions.
11. One-year agreements, agreement amendments or agreement extensions with a value of $100,000 or less.
12. Grant applications and awards if the local match is less than $100,000.
13. Change orders.
14. Settlement agreements.
15. Establishing public hearing dates for the repair and removal of dangerous structures.
16. Authorizing note and bond sales.
17. Zoning applications that have no protest and are recommended for approval by the DAB and MAPC.
18. Nuisance assessments.

C. A draft consent agenda will be presented to the mayor and vice mayor one week before the scheduled city council meeting. The mayor and vice mayor will make a preliminary determination if any of the consent agenda items should be moved to new business. The consent agenda will be considered only a draft until it is endorsed by the city council during its regular Friday agenda review meeting.

D. The full agenda will be considered final at Noon on the Friday proceeding the Tuesday city council meeting. Only items approved by a majority of the city council can be added after that deadline.

(Ord. No. 47-858, § 24, 3-28-08; Ord. No. 50-881, § 1, 11-13-18; Ord. No. 51-153, § 1, 12-10-19; Ord. No. 51-411, § 1, 2-9-21; Ord. No. 52-539, § 1, 8-27-24; Ord. No. 52-588, § 1, 12-17-24)

Sec. 2.04.195. Order of council business at workshop meetings.

I. Consent Agenda and Report of Board of Bids and Contracts.

A. Workshop meetings shall be regular meetings conducted on the fourth Tuesday of each month at 9:00 a.m. in the First Floor Boardroom of City Hall. Workshop meetings may be held at such other time and location within the city as may be determined at a prior meeting by a majority of the City Council members. Workshop meetings shall be conducted as follows:

B. Public Agenda. A public agenda shall be considered by the City Council. No action will be taken relative to items on this agenda other than referral to the City Manager for information. Requests to appear will be placed on the agenda on a "first-come, first-served" basis. Except as otherwise directed by the Presiding Officer of a regular meeting: (1) this portion of the meeting is limited to twenty-five minutes and shall be subject to a limitation of five minutes for each presentation with no extension of time permitted. Non-scheduled speakers may be allowed to speak if the twenty-five minute limit has not been reached; (2) no speaker shall be allowed to appear more frequently than once every fourth meeting; and (3) members of the public desiring to present matters to the City Council on the public agenda must submit a request in writing to the office of the City Clerk twenty-four hours prior to the meeting, or by noon on the Friday prior to the meeting if the day before the meeting is a holiday. The request should state the name of the individual(s) desiring to be heard and the matter to be presented.

Substitutes for the individual(s) to be heard or matters to be presented are not permitted unless the twenty-five minute limit is not reached. Item requests may be referred, at the discretion of the City Manager, to appropriate staff for mediation prior to being placed on the public agenda if the individual(s) consents to said referral. Rules of decorum will be observed and enforced as provided in this Code.

C. The City Council will receive the Report of Board of Bids and Contracts. Following any discussion by the City Council, a vote will be called to accept the report.

D. The consent agenda shall be prepared by the city clerk and shall be restricted to the necessary actions to be taken by the City Council in connection with ordinances, resolutions or other matters previously approved, placed on reading or adopted, or routine matters to be approved. The city manager or a staff member designated by the city manager will advise the City Council as soon as it is known that an item on the consent agenda is time sensitive and requires immediate action.

E. The separate items appearing on the consent agenda shall be considered collectively as consensus agenda and an affirmative vote of the City Council on the consent agenda will allow and be construed as an affirmative vote to take the recommended action as stated on each item, provided that when a council member has been recorded as voting against an ordinance on first reading, the council member shall be recorded as voting the same on subsequent readings on the consent agenda, unless otherwise indicated by the council member.

F. After the mayor, or presiding officer if the mayor is absent, announces the consent agenda for consideration, any member of the City Council may request that an item be pulled from the consent agenda. Any such item pulled from the consent agenda may be deferred to the next regular meeting of the City Council and appear as an item on the unfinished business portion of the agenda.

G. Any member of the City Council may request that any item on the consent agenda be considered separately for comment or clarification on the item, for purposes of declaring a conflict of interest or voting against the item. Items pulled for discussion that are not deferred shall be open for public comment following staff's presentation.

(Ord. No. 47-858, § 25, 3-28-08; Ord. No. 50-881, § 2, 11-13-18; Ord. No. 52-569, § 1, 11-19-24; Ord. No. 52-577, § 1, 12-10-24)

Sec. 2.04.200. Workshops.

The City Council may hold a workshop at which no action is taken, following the recess or adjournment of any council meeting. Such adjourned (recessed) workshop meetings of the City Council shall be held on the fourth Tuesday of each month at 9:00 a.m. in the First Floor Boardroom or other location so designated by a majority of the City Council. Such adjourned meetings shall be open to the press and to the public in accordance with the Kansas Open Meetings Act.

(Ord. No. 47-858, § 26, 3-28-08; Ord. No. 52-568, § 2, 11-19-24)

Sec. 2.04.210. Special meetings.

The mayor or any (four) council members shall have the power to call special meetings of the city council. The object of such special meeting shall be submitted to the council members in writing. The call and the object of such call and the action of the council thereon shall be entered in the minutes by the city clerk and no other business

shall be transacted except that mentioned in the call for the special meeting. A written notice of such special meeting, stating time, place and object, shall be served personally or electronically by facsimile or electronic mail upon each member of the council and the city manager or left at such persons' usual place of residence or business at least two hours before the time of such meeting, such service to be made in such a manner as is determined to reasonably provide actual notice of the special meeting. Such notice shall be issued by the city clerk and the city clerk may call upon the chief of police to, either in person or by some police officer, serve a copy of such notice if necessary and make a report to the city clerk of the manner of such service. Ordinarily, special meetings shall be held in the council chambers of city hall although such other arrangements may be made as shall be approved by a majority (four) of the council. All special meetings shall be open to the press and to the public in the manner provided in the Kansas Open Meetings Act.
(Ord. No. 47-858, § 27, 3-28-08)

Sec. 2.04.215. En banc meetings.

En banc meetings of the city shall be called in the same manner and by following the same procedure set out in Section 2.04.210 of this Code for the calling of special meetings for the city council.
(Ord. No. 47-858, § 28, 3-28-08)

Sec. 2.04.220. Order of business at special meetings.

In all special meetings of the city council the order of business shall be as follows, providing that the meeting shall be conducted in accordance with the rules of council procedure as adopted herein:

1. Call to order.
2. Roll call.
3. Reading of the call for the meeting by the city clerk.
4. Consideration of the business in the order embraced in the call for the meeting.
5. Adjournment.

(Ord. No. 47-858, § 29, 3-28-08)

Sec. 2.04.230. Conduct of council business.

A. *Public Hearings.* The mayor or any other member of the city council or the city manager may identify and designate an item of extraordinary interest for an upcoming meeting that may be scheduled at a time certain for public hearing. Unless otherwise directed by a majority of the council, such items shall be scheduled subject to city council guidelines pertaining to the number, order and time limits for speakers at such public hearings.

B. *Debate and Closure.* Public comments and comments from the city manager shall be allowed on all motions; provided, however, that any council member may at anytime move to close the public debate and, if seconded, all further discussion of the matter either by members of the public or the city manager shall cease and the council shall vote on said motion which, if passed by a majority vote (four), shall close public debate. Discussion and debate of the original motion may be continued among members of the city council until the mayor or any other council member moves the previous question. A move for the previous question, if seconded, shall immediately end all debate and discussion, and if passed by a supermajority vote (five), the original motion must be voted on without delay; provided, however, that the previous question shall not be implemented until all members of the council have had an opportunity to speak to the original motion. After the formal vote has been taken by the council, all further discussion of the matter shall cease unless appropriate affirmative action follows to place the matter again before the council for reconsideration.

C. *Agenda.* Except under the most unusual circumstances, all council meetings shall be conducted strictly in accordance with a written agenda in order that the members of the council, the city manager

and the public may be informed as to the matters to be considered and may have an opportunity either to prepare themselves or to be present for such purposes as may be appropriate. The agenda shall be made public in advance of the meeting following the furnishing of the weekly agenda to individual members of the council. The order in which the sections of the agenda will be considered will be as set forth in the order of business in Section 2.04.190. The agendas will be prepared in accordance with such procedures as may be established by the city manager.

D. *Recesses.* Recesses of the council shall be declared by the presiding officer or a majority (four) of the council; provided that a recess for a closed or executive session under the Kansas Open Meetings Act shall be by appropriate motion, seconded and approved by a majority (four) of the council.

E. *Adjournment.* Adjournment shall occur at the conclusion of the agenda or at the hour of six p.m. when moved, seconded and approved by a majority of members present; or as shall be announced by the chair at the conclusion of business in the event no majority is obtainable from members present; provided, that meetings may be continued beyond the hour of six p.m. when moved, seconded and approved by a majority of members present.

(Ord. No. 47-858, § 30, 3-28-08)

Sec. 2.04.235. Process for appeal of staff determinations.

Except as otherwise provided by in Section 2.04.237, where the City Council is hearing an appeal from staff recommendations regarding the denial, suspension or revocation of a license, or reviewing actions or decisions of city staff pursuant to appeal provisions set forth in city ordinances, the following procedures shall be used by the Council in conducting such hearing:

(a) The usual rules of procedure regarding time limitations for speakers are set aside. Parties shall be allowed adequate time to present their evidence and statements as to the basis of the appeal, and to support staffs decision.

(b) The Mayor, or Vice Mayor, will act as presiding officer. The presiding officer will rule on objections and will call parties to present evidence. Witnesses who testify will be sworn by the City Clerk.

(c) The hearing should be conducted in the following order of presentation:

(1) The parties will present a short opening statement regarding their position of the issues to be determined.

(2) Evidence in support of revocation, suspension or denial of a license or to support staffs decision is presented by the Assistant City Attorney or other city staff.

(3) City Council Members may ask questions of any witness and staff called by either party.

(4) Licensee, appellant or their attorney has the right to cross-examine each witness or city staff who testifies.

(5) Licensee or appellant or their attorney has the right to call witnesses on his or her behalf, including any city witnesses.

(6) The Assistant City Attorney representing staff may cross-examine each witness called on behalf of the licensee or appellant.

(7) City Council Members may ask questions of the licensee or appellant, even if he or she is not called as a witness.

(8) Opportunity for rebuttal by city staff or by the Assistant City Attorney may be granted at the discretion of the presiding officer.

(9) Unless granted additional time by the presiding officer, time for closing statements by the Assistant City

Attorney and the licensee, appellant or their attorney is limited to 10 minutes each.

(10) Appeal hearings are to be informal in nature. The Administrative Procedure Act at K.S.A. 77-501, *et. seq*. shall be used as guidelines for the hearing. Such rules, however, are not binding on the Council. The Council may hear and consider any relevant evidence or testimony and/or documents presented by either the City or the appellant.

(11) Hearings are open to the public. The proceedings of each appeal hearing shall be recorded on audio equipment. The recording of each hearing shall be kept by the city clerk for a minimum of ninety (90) days.

(12) The City Attorney shall serve as legal advisor for the Council. To ensure that all hearings are fair and impartial, information and communications between staff and the Assistant City Attorney representing staff who made the administrative or appeal decision shall not be shared or discussed with the City Attorney; however, non-substantive information may be shared to allow for scheduling. Likewise, the City Attorney shall not share or discuss information and communications to or from the City Council regarding the appeal to the Assistant City Attorney representing staff except substantive information to allow for scheduling.

(13) Any witness may be allowed to testify by two-way telephonic, audio or electronic audio-visual communication. Law Enforcement officers who are testifying regarding actions taken while undercover are not required to appear in person or in a manner which would reveal their identities.

(14) The City Council may discuss the testimony and arguments after evidence is presented. Upon a proper motion, the council may move to deliberate in executive session.

(d) The City Attorney and/or opposing side may submit suggested findings of fact to the Council.

(e) City Council decisions are to be made by motion. A majority vote of the members of the City Council is required to pass a motion. The Council should adopt findings of fact which establish a basis and provides support for its decision.

(f) Decisions may be made at the conclusion of the hearing or may be taken under advisement for later action. The Council's decision shall be rendered no later than thirty days following the conclusion of the hearing. The City Attorney and appellant will have had the opportunity to submit their suggested findings to the City Council.

(g) Prior to the hearing, upon request, the City Attorney shall provide to the Appellant, or his/her attorney, copies of all supporting documentation regarding staffs recommendations, as well as copies of all documents submitted to the City Council.

(h) Unless otherwise provided for by specific appeal provisions set forth in the city's ordinances, any appeal of a staffs determination may be taken by filing with the City Clerk a written notice of appeal to the City Council within ten (10) business days of the staffs decision. The Notice of Appeal shall specify: the name and address of the appellant; the date of application; the date of the denial, suspension, modification, revocation or imposition of additional conditions of the license or application and the factual basis for the appeal.

(1) Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before the City Council, no later than thirty days from the date of

the filing of the Notice of Appeal with the City Clerk. If the appeal is from a staff decision regarding the denial, suspension, or addition of conditions regarding a license issued pursuant to Titles 3 or 4 of the Code of the City of Wichita, the City Clerk shall place the appeal on the agenda of the next regular meeting of the City Council to establish the Council Appeal Panel to hear the appeal as set forth in Section 2.04.237. Such item shall be placed on the City Council Member Agenda. Any appeal shall stay the suspension, modification or revocation of the license until the matter is heard by the City Council or Council Appeal Panel.

(2) The City Council may approve the denial, suspension, modification, revocation, or imposition of additional conditions, overrule the denial, suspension, modification, revocation or imposition of additional conditions or modify the decision of staff.

(3) The Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation, modification or suspension of the license by the City Council.

(Ord. No. 50-146, § 1, 1-26-16; Ord. No. 51-738, § 1, 4-19-22)

Sec. 2.04.237. Council Appeal Panel Titles 3, 4, and 7.

(a) If an appeal is filed pursuant to Section 2.04.235, from a staff decision regarding the denial, suspension, revocation or addition of conditions of a license issued pursuant to Titles 3, 4 or 7 of the Code of the City of Wichita, the appeal shall be heard by a panel of three City Council Members appointed by the Mayor or City Council.

(b) Selection of Appeal Panel.

(1) At the first regular City Council Meeting following the filing of a notice of appeal, with the City Clerk, the Council will select three members to serve as the appeal panel.

(2) The selection of the Appeal Panel shall be placed as an item on the City Council Member Agenda.

(3) The City Council Member representing the District where the business is located may volunteer to set on the Council Appeal Panel. A total of no more than three City Council Members will be chosen to set on the Appeal Panel.

(4) The panel of three City Council members shall be chosen on a rotating basis by District Numbers 1—6 with the Mayor being number 7. Each panel will be chosen by numeric order. No member, with the exception of a City Council Member representing the District of the location of the business license who otherwise volunteers to serve on consecutive panels, may serve on consecutive panels, unless no other Council Members are available.

(5) If a Council Member is chosen, but is unable to serve, the Council Member for the next District shall be chosen.

(6) The City Council will approve a hearing date for such appeal no later than thirty (30) days from when the appeal panel is chosen.

(7) If an emergency suspension is appealed, prior to the next City Council meeting, the Mayor may choose a panel of 3 City Council Members to hear the appeal. The Council Member from the District where the licensed business is located should be appointed to the panel if that member is available.

(c) Appeal Panel Procedure. With the exception of the provisions set forth below, the Council Appeal Panel shall comply with the provisions of Section 2.03.235.

(1) The panel will select a presiding officer who will perform the Mayor's functions for the appeal hearing.

(2) The appeal panel shall convene at a time other than a regular council business meeting and shall be open to the public.

(3) The City Attorney shall serve as legal advisor for the Council. To ensure that all hearings are fair and impartial, information and communications between staff and the Assistant City Attorney representing staff who made the administrative or appeal decision shall not be shared or discussed with the City Attorney; however, non-substantive information may be shared to allow for scheduling. Likewise, the City Attorney shall not share or discuss information and communications to or from the City Council regarding the appeal to the Assistant City Attorney representing staff except substantive information to allow for scheduling.

(4) The City Clerk shall provide clerical support for the appeal panel and will ensure that an audio record of the proceedings is made and maintained in compliance with Section 2.03.235.

(d) The Council Appeal Panel shall have all the duties, responsibilities and authority of the full City Council in hearing the appeal.

(e) Any appeal of a decision of the Council Appeal Panel, shall be appealable as set forth in Section 2.03.235(h)(3).
(Ord. No. 51-738, § 2, 4-19-22; Ord. No. 52-248, § 1, 8-15-23)

Editor's note—Ord. No. 52-248, § 1, adopted Aug. 15, 2023, amended the title of § 2.04.237 to read as herein set out. The former § 2.04.237 title pertained to Council Appeal Panel—Titles 3 and 4 license denial or suspension appeals.

Sec. 2.04.238. Appeals from license suspensions, revocations, or imposition of administrative penalties due to gambling violations.

(a) Preamble.

Whereas, the City Council finds that in recent years there has been a proliferation of illegal gambling machines in bars, gas stations and other convenience stores;

Whereas, gambling devices are illegal when not offered in a state or tribal casino. Unregulated gambling devices are placed to specifically target lower income citizens;

Whereas, the City of Wichita has an important governmental interest in protecting its citizens from unregulated and unfair gambling devices;

Whereas, such devices are leased to some businesses with assurances of their legality. The proliferation of machines in the community has led citizens and business owners to believe that such machines are legal;

Whereas, the City Council wishes to treat all licensees and businesses equally, and be transparent in its intent to regulate and prohibit these devices; and

Wherefore, the City of Wichita enacts specific license penalties for licensed businesses that permit gambling devices on their premises.

(b) Following an appeal from the suspension, revocation or the assessment of an administrative penalty for a violation of state or local gambling laws, the following penalties shall be imposed by the City Council or Council Appeal panel if staff's determination is upheld:

(1) On a first offense, the licensee will receive a written warning of violation or notice of such violation by the service of a Search Warrant. No suspension will be ordered by City staff or the appeal panel.

(2) On a second offense, the license will be suspended for 90 days.

(3) On a third or subsequent offense, the license will be suspended for one year.

(4) On appeal, only a finding of extraordinary circumstances would dictate a more lenient or harsher penalty be imposed by the City Council.

(c) For the purposes of this section gambling device is defined in Section 5.36.010(d).
(Ord. No. 52-248, § 2, 8-15-23)

Sec. 2.04.240. Conduct of council business—Presiding officer.

The mayor shall preside at all meetings of the city council. In the absence of the mayor, the vice mayor shall preside. In the absence of both the mayor and the vice mayor, the next-in-line in the order of succession, designated pursuant to Section 2.04.032 of this Code, acting vice mayor shall preside. The chair shall be relinquished to such senior officer of the council that may be present at any time during council meetings. The presiding officer may make motions, second motions and debate from the chair subject only to such limitations of debate as by the same rules are imposed on all members. The presiding officer shall not be deprived of any of the rights and privileges of a council member by reason of acting as the presiding officer. He or she shall refrain from preempting the floor and shall recognize other members of the council in their turn for comment, motion and debate.

The presiding officer shall direct the conduct of and shall preserve strict order and decorum in all meetings of the council. He or she shall decide all questions of order subject, however, to an appeal to the council in which event a majority (four) vote of the council shall determine conclusively such question of order; shall direct the sergeant-at-arms to carry out the orders and instructions of the chair for the purpose of maintaining order and decorum in the council meeting; shall determine the order of discussion and debate; shall recognize as nearly as possible those individuals desiring to speak in the order in which requests are made to the chair; shall conduct council meetings strictly in accordance with the rules and procedures adopted by the council; shall issue the necessary and appropriate reprimands to those individuals who are out of order; and shall direct the clerk to record such reprimands and votes of censure as may be directed by the council under Section 2.04.330. In the event it shall become necessary to remove any person from a council meeting or to place any such person under arrest for violation of the order and decorum of the meeting, the complaint for prosecution shall be signed by the presiding officer whose actions in such matters if approved by a majority (four) of the council shall be saved harmless by the city.

If requested to do so by any council member, the presiding officer shall explain his or her rulings in connection with any particular point of order and shall refer to the city attorney any inquiries from individual council members with respect to interpretations of council rules of procedure. The ruling of the city attorney shall be final insofar as the interpretation of the rules may be concerned and such interpretation shall be observed by the presiding officer in his or her orders and conduct of the meeting.
(Ord. No. 47-858, § 31, 3-28-08)

Sec. 2.04.250. Conduct of council business—Appeals.

Any member of the council may appeal a ruling of the presiding officer, providing such appeal is

made immediately following the ruling to be appealed. In all cases of appeal, the decision of the majority (four) of the council shall be final. In the event that appeals are sustained against rulings or orders of the presiding officer, then the city clerk shall record a notice of such appeal and the action taken with an appropriate notation on the minutes of each meeting concerned.
(Ord. No. 47-858, § 32, 3-28-08)

Sec. 2.04.260. Conduct of council business—Attendance.

All members shall attend all meetings of the council excepting only when they are unable to do so because of illness, absence from the city or unavoidable press of other business. Members shall be prompt in attendance and those members who are tardy shall not be privileged to review actions taken prior to their attendance. Members shall refrain from absenting themselves from council meetings in order to influence voting, to delay business of the city, to make it impossible for the council to proceed in an orderly manner or otherwise to impose restrictions on the council. Members shall advise either the mayor or the city manager at least twenty-four hours in advance, except in the most unusual cases, of their intention to be absent and shall advise either the mayor or the city manager when they will be available at a later date in order that meetings may be adjourned to specific dates if necessary. Members shall accord each other the same courtesy and consideration in absences that they might request for themselves and shall not ask that any city business be delayed because of their absence from meetings except under the most unusual circumstances.

Member shall not leave the city council bench or the city council meetings except as they shall be excused for cause by the presiding officer. Members shall refrain from coming and going throughout city council meetings and from unnecessary or undue interruption of the meetings by repeated absences from the bench.
(Ord. No. 47-858, § 33, 3-28-08)

Sec. 2.04.270. Conduct of council business—Quorum.

A quorum shall consist of a majority of the members of the council who shall be authorized to transact ordinary and usual city business at any council meeting; provided, however, that four affirmative votes shall be required to approve matters of general policy, to revoke general policy matters previously approved, to remove officers of the council, to discharge or to employ the city manager, to adopt a vote of censure, to adopt ordinances, to adopt resolutions, to overrule previous decisions adopted by a vote of the majority (four) of the council, to overrule recommendations of the city manager, or to overrule recommendations of any advisory board or commission (except in actions in which a greater number is required by this Code or state statute). In those cases where a quorum is present but votes are passed, the majority of votes cast (exclusive of votes passed) shall prevail in those cases where sufficient prevailing votes are cast to qualify actions under the rules of procedure.
(Ord. No. 47-858, § 34, 3-28-08; Ord. No. 52-362, § 3, 4-9-24)

Sec. 2.04.280. Conduct of council business-Voting.

All members of the city council shall discharge the responsibility of their elective office and shall vote on all matters coming before the city council except in those particular cases of conflict of interest approved by the presiding officer in which case a member may request permission and may be authorized to pass his or her vote. Unless a member of the city council votes audibly to the contrary or unless a member of the city council is granted permission by the presiding officer to pass his or her vote on a particular matter, his or her silence in voting shall be recorded as an affirmative vote. Any member of the city council shall be entitled to ask for a roll call vote, in which case the presiding officer shall direct the clerk to poll the individual members in alphabetical order with the presiding officer being polled last. Written votes as required by rules of procedure shall not be waived in favor of voice votes except by unanimous consent of all city council members present at the particular meeting such waiver is desired. Members shall be permitted to qualify or to explain their votes and to ask that such explanation be recorded in the minutes by the clerk as a matter for the

record. Members absent from city council meetings at the time votes are cast shall not be privileged to cast their vote at a later time although such members shall be privileged to request the clerk to record them later in the meeting as being for or against the question providing such request is made during the course of the same meeting with the knowledge of all the council members present and with the approval of the presiding officer. Votes cast shall not be changed after a question has been decided and after intervening matters have been placed before the city council. Reconsideration of a matter in accordance with the rules of the city council shall entitle a completely new vote if such recommendation prevails and such new vote shall not be considered a changed vote.
(Ord. No. 47-858, § 35, 3-28-08)

Sec. 2.04.290. Conduct of council business—Decorum.

(a) *COUNCIL MEMBERS.* During city council meetings, council members shall preserve order and decorum and shall neither by conversation or otherwise delay or interrupt the proceedings or the peace of the city council nor refuse to obey the orders of the presiding officer or the rules of the city council. Every council member desiring to speak shall address the chair and upon recognition by the presiding officer shall confine himself or herself to the question under debate and shall avoid all personalities and indecorous language. Every council member desiring to question the administrative staff shall address the question to the city manager who shall be entitled either to answer the enquiries or to designate some member of his or her staff for that purpose. A council member, once recognized shall not be interrupted while speaking unless called to order by the presiding officer, unless a point of order is raised by another member or unless the speaker chooses to yield to questions from another member. If a council member is called to order while the member is speaking, the member shall cease speaking immediately until the question of order is determined. If ruled to be in order, the member shall be permitted to proceed. If ruled to be not in order, the member shall remain silent or shall alter his or her remarks so as to comply with rules of the city council. All members of the city council shall accord the utmost courtesy to each other, to city employees and to public members appearing before the city council and shall refrain at all times from rude and derogatory remarks, reflections as to integrity, abusive comments and statements as to motives and personalities. Council members shall confine their questions as to the particular matters before the city council and in debate shall confine their remarks to the issues before the city council. Council members shall be removed from the meeting for failure to comply with decisions of the presiding officer or for continued violations of the rules of the city council. If the presiding officer fails to act, any member may move to require the presiding officer to enforce the rules and the affirmative vote of a majority (four) of the members present shall require the presiding officer to act.

Except by consent of the majority of the members, no member shall speak longer than five minutes at any one time and not more than once on the same motion until all other members have had an opportunity to speak to the motion.

(b) *ADMINISTRATIVE STAFF MEMBERS AND EMPLOYEES.* Members of the administrative staff and employees of the city shall observe the same rules of procedure and decorum applicable to members of the council. While the presiding officer shall have the authority to preserve decorum in council meetings insofar as staff members and city employees are concerned, the city manager also shall be responsible to the council for the orderly conduct and decorum of all city employees under his or her direction and control. The city manager shall take such disciplinary action as may be necessary to insure that such decorum is preserved at all times by city employees in council meetings. Any person desiring to address the council shall be recognized by the chair, shall state his or her name for the record and shall limit his or her remarks to the matter under discussion. All remarks and questions addressed to the council shall be addressed to the council as a whole and not to any individual member thereof. No staff member, other than staff member having the floor, shall enter into any discussion either directly or indirectly without permission of the presiding officer.

(c) *MEMBERS OF PUBLIC.* Members of the public attending council meetings also shall observe the same rules of propriety, decorum and good conduct applicable to members of the council. Any person making personal, impertinent or slanderous remarks or who becomes boisterous while addressing the council or while attending the council meeting, shall be removed from the room if the sergeant-at-arms is directed by the presiding officer, and such person shall be barred from further audience before the council or further attendance in council meetings. Unauthorized remarks from the audience, clapping, stamping of feet, whistles, yells and similar demonstrations shall not be permitted by the presiding officer who shall call for order and if the call for order is not obeyed, direct the sergeant-at-arms to remove such offenders from the room. Aggravated cases shall be prosecuted on an appropriate complaint signed by the presiding officer. In case the presiding officer shall fail to act, any member of the council may move to require him or her to act, to enforce the rules and an affirmative vote of the majority (four) of the members shall require the presiding officer to act. Any member of the public desiring to address the council shall be recognized by the chair, shall advance to the microphone, shall state his or her name and address in an audible tone for the record and shall limit his or her remarks to the question under discussion. All remarks and questions addressed to the council shall be addressed to the council as a whole and not to any individual member thereof. All remarks and questions addressed to the administration of the city shall be addressed to the city manager and not to any individual city employee. No person other than the members of the council and the person having the floor shall enter into any discussion either directly or through a member of the council without the permission of the presiding officer.

The presiding officer may grant permission to nonmembers to address the council for not more than five minutes, provided there is no objection of any member of the council. If there is an objection, permission may be granted by a majority vote of the members present. By the same procedure, the limit of five minutes may be extended.

Members of the public wishing to speak for longer periods of time than five minutes are urged to contact the city manager prior to the meeting. Topics, which are unusually detailed or complicated, thus requiring a longer time for presentation, may be presented in writing to the city manager prior to the meeting to allow for printing and distribution to the council.
(Ord. No. 47-858, § 36, 3-28-08)

Sec. 2.04.300. Conduct of council business—Point of personal privilege.

Any member of the council shall have the right to raise a point of personal privilege during any council meeting. Except under the most unusual circumstances, such requests shall not be disapproved by the presiding officer or by a majority (four) of the council members.
(Ord. No. 47-858, § 37, 3-28-08)

Sec. 2.04.310. Conduct of council business—Point of order.

Any member of the council may raise a point of order at any time, both with respect to the conduct of the meeting, the procedure that is being followed, or any remarks that are being made. Points of order that are raised with respect to rules of procedure may be referred to the city attorney for a ruling, which shall be accepted as final by the presiding officer. Points of order raised with respect to indecorous or improper remarks made by any member of the council, by a member of the administrative staff of the city or by any member of the public shall be ruled upon immediately by the presiding officer. If such remarks are determined to be out of order, the presiding officer shall instruct the person speaking to cease such remarks and shall instruct the city clerk to delete such remarks from the record and to indicate for the record that such remarks have been deleted as having been ruled out of order. In the event a question is raised by a council member as to the propriety of the remarks themselves, the member raising the question shall be privileged to ask that the remarks either be repeated or be read from the record, in which case then the presiding officer shall make the appropriate ruling. Such remarks having been ruled upon and declared as out of order, all further

remarks of a similar type shall cease immediately. In the event such remarks do not cease, the presiding officer shall be obliged to terminate any further remarks and, in cases where such action is warranted, shall instruct the sergeant-at-arms to remove the offender from the meeting room.
(Ord. No. 47-858, § 38, 3-28-08)

Sec. 2.04.320. Conduct of council business—Reprimand.

In the event of indecorous behavior or improper conduct during council meetings or in the events remarks do not cease when ruled out of order by the chair, the presiding officer shall be obliged to issue a formal reprimand and to instruct the city clerk to include such reprimand as part of the official minutes of the meeting. In the event the presiding officer fails to issue a reprimand when such action is appropriate, any member of the council may move such a reprimand, which if approved by a majority (four) of the council, the presiding officer shall direct the city clerk to record the reprimand as a matter for record in the official minutes of the meeting.
(Ord. No. 47-858, § 39, 3-28-08)

Sec. 2.04.330. Conduct of council business—Censure

Action lacking propriety and good taste in manners and conduct, improper language and repeated and continued violations of the rulings of the chair shall make any member of the commission, any member of the city staff or any member of the public liable to a vote of censure for such improper action.
(Ord. No. 47-858, § 40, 3-28-08)

Sec. 2.04.340. Conduct of council business—Motions.

Generally speaking, action of the council shall be indicated by a vote of the council members present at each meeting after motions have been made and seconded by individual council members. Because of the small number of members (seven) of the council, the usual procedures established by Roberts' Rules of Order and customary parliamentary procedure are not always applicable, such rules and procedures having been developed essentially for larger groups. Therefore, simplified rules of procedure shall be established insofar as parliamentary procedure is concerned and motions by the individual council members shall be restricted to the following:

(a) *TO DISPOSE OF A MATTER WITHOUT ACTION.* In order to dispose of a matter without action by the council either affirmatively or negatively, and after such matter has been properly presented to the council from the appropriate agenda, the following motions shall be in order:

(1) "To receive and file" (not debatable).

(2) "To defer" (debatable). The motion to defer should state the length of time of the deferral, as recommended by Council members and/or staff, which time should be no longer than necessary.

(3) "To refer" (not debatable). Such action shall be appropriate in connection with investigation and report.

(4) "To postpone indefinitely" (debatable). This motion may be used to remove an item from the agenda without prejudice to said item so that it may be returned to the agenda at any later date in accordance with established procedure.

(b) *TO DISPOSE OF A MATTER WITH AFFIRMATIVE OR NEGATIVE ACTION.* In order to dispose of a matter with affirmative or negative action by the council after such matter has been presented properly from the appropriate agenda and after appropriate comment and recommendation from the city manager and public members present, the following motions shall be in order and shall be debatable:

(1) "To approve" (debatable). A specific recommendation or proposal.

(2) "To disapprove" (debatable). A specific recommendation or proposal.

(3) "To request" (debatable). A specific action.

(4) "To direct" (debatable). A specific action.

(c) *TO AMEND A MOTION.* In order to amend motions previously made, the motion "to amend" shall be in order. An amendment may clarify, modify, or be inconsistent with the original mo-

tion or may directly conflict with the spirit of the original motion, but it must have direct bearing upon the subject of that motion. A motion shall be amended before a vote has been taken. Motions to amend shall be debatable providing the original motion was a debatable motion.

(d) *TO SUBSTITUTE A MOTION.* In order to substitute a motion for a motion which has already been made and seconded, a motion "to substitute" shall be in order providing that the substitute motion shall be made immediately after the original motion has been made and seconded and before a vote has been taken. Substitute motions shall be made only once and shall be debatable providing the original motion was a debatable motion. Substitute motions shall not be used for purposes of confusing the issue.

(e) *TO RECONSIDER A MOTION.* In order that a motion previously passed may be placed before the council for reconsideration, a motion to "reconsider" shall be in order providing such motion to reconsider is made by a member of the side prevailing on the vote of the original motion, providing that any member may second a motion to reconsider, providing that such motion to reconsider shall be made during the same meeting that the original motion was passed and providing further that motions to reconsider shall be made only once on any particular subject in each meeting. Motions to reconsider shall be not debatable.

(f) *TO SUSPEND A RULE.* In order to suspend temporarily any particular rule for a particular purpose not contrary to statute or city ordinance, a motion "to suspend" a rule shall be in order and such a motion shall be not debatable. Suspension of a rule shall take effect for the particular rule in question only for the particular time in a particular meeting in question and shall not be considered as a permanent suspension of a rule. A motion to suspend a rule requires a majority vote of the members (four), providing that the rules with respect to written ballot shall not be suspended except by unanimous consent of the council.

(g) *TO REPRIMAND.* In order to reprimand any member of the administrative staff, any member of the public or member of the council, a motion "to reprimand" shall be in order providing such motion shall be made for a specific violation or for repeated violation of council rules and providing such motion shall be made after the particular matter under discussion and debate by the council has been brought to vote and conclusion. Motions to reprimand require the approval of a majority of the council members (four) and shall be not debatable.

(h) *TO CENSURE.* In order to accomplish a vote of censure, a motion "to censure" shall be in order providing such motion shall be made for a specific violation or for repeated violation of council rules and providing such motion shall be made after the particular matter under discussion and debate by the council shall have been brought to vote and conclusion. Motions to censure require the approval of a majority of the council and shall be not debatable.

(i) *TO AMEND A RULE.* In order to amend a rule of the council that is not codified in this chapter, a motion "to amend a rule" shall be in order providing proper notice of such intention to amend shall have been placed on the agenda at some previous meeting providing one week's notice. A motion to amend a rule shall require a majority vote of council and shall be not debatable.

(j) *TO ADJOURN A MEETING.* In order to adjourn a council meeting, a motion "to adjourn" shall be in order providing such motion is made at the ordinary or usual conclusion of business on the agenda and providing that motions to adjourn shall not be used to embarrass, to harass, to foreclose discussion and debate or for any other purpose other than the orderly termination of council proceedings at such times as may be appropriate in each particular meeting. Motions to adjourn shall require the vote of a majority of the council members and shall be not debatable and shall take precedence over any other motions at the end of council meetings and any other actions except points of order or privilege.
(Ord. No. 47-858, § 41, 3-28-08)

Sec. 2.04.350. Conduct of council business—Individual actions.

In addition to motions which may be made and seconded by members of the council, there shall

be certain actions which individual members shall be privileged to take at appropriate times without the necessity of such actions being placed in the form of motions. All such actions are subject to decision of the presiding officer or appeal, providing the appeal is made immediately after and in connection with the ruling of the chair. The following individual actions or requests shall be authorized:

(a) TO RAISE A POINT OF ORDER shall be made at any time by any member who alleges the rules of procedure are being violated. (See Section 2.04.310.)

(b) TO RAISE A POINT OF PERSONAL PRIVILEGE shall be made by any member desiring to request such personal privileges as may be authorized by the rules of procedure, providing that such request shall be made at the conclusion of any individual items of business on the agenda. (See Section 2.04.300.)

(c) TO REQUEST ADDITIONAL INFORMATION shall be made at any appropriate time during a council meeting.

(d) TO ENQUIRE shall be made at any appropriate time during a council meeting.

(e) TO COMMENT shall be made at any appropriate time during a council meeting.

(f) TO APPEAL shall be made immediately following and in connection with a ruling of the presiding officer. (See Section 2.04.250.)

(g) TO RECESS shall be made at any reasonable time and for any reasonable purposes during meetings, providing such requests shall not be made during debate or discussion or immediately prior to a vote or for purpose of influencing a vote or for harassing other members or individuals appearing before the council.

(h) TO BE EXCUSED FROM THE MEETING shall be made at reasonable times for good and sufficient reasons, providing that such requests shall not be made immediately prior to vote on any matters under debate or discussion or for the purpose of delaying action on any matters under consideration or for the purpose of reducing the number of members present in order to influence a vote or for the purpose of preventing a quorum being present to conduct business.

(i) TO PASS A VOTE shall be made in connection with any vote in which a member of the council may have a conflict of interest and shall not be used for the purpose of evading a vote or delaying or obstructing business.

(j) TO REQUEST A PARLIAMENTARY RULING shall be made at any time a member alleges the rules of procedure are being violated or at any time a member requests clarification either of rulings that have been made by the presiding officer or rulings that may be applicable under certain circumstances. Requests for parliamentary ruling shall be made to the city attorney as may be desired by any member of the council; providing, however, that the parliamentary ruling of the city attorney in connection with the rules of procedure shall be final and shall be mandatory on the presiding officer.

(k) TO MOVE THE PREVIOUS QUESTION shall be made at any appropriate time after a motion has been made and seconded when it is desired to bring the debate to an end and to bring about a vote on the matter under debate. The presiding officer shall call a vote on the original motion immediately after such move for the previous question has been seconded and passed by a super-majority vote of the council members (five), provided however, that the previous question shall not be implemented until all members of the council have had an opportunity to speak to the original motion. In the event the presiding officer does not act under these circumstances, the move for the previous question shall be made in the form of a motion which, if seconded and approved by a super-majority of the council members (five), shall make it mandatory that the presiding officer call the previous question for vote without further debate or other delay.
(Ord. No. 47-858, § 42, 3-28-08)

Sec. 2.04.360. Conduct of council business—Requesting state of emergencies.

The mayor or presiding officer shall have the authority to request a state of emergency when-

ever such declaration is in the interest of the city and essential in connection with the passage of an appropriate ordinance or other action of the council. Such request shall be made in writing, and approved by a majority (four) of the council.
(Ord. No. 47-858, § 43, 3-28-08)

Sec. 2.04.370. Presentation and form of ordinances.

(a) *Presentation.* No ordinance shall be presented to the city council unless the same is introduced or endorsed by a member of the city council, recommended by the city manager or submitted as a petition ordinance under state statute.

(b) *Format Of Proposed Ordinances.* An ordinance prepared for submission to the council should be in a standard format prescribed by the city attorney. An ordinance that amends the City Code or a proposed ordinance should be in legislative drafting format, with the language to be added underlined and language to be deleted bracketed and stricken. Except as provided in Subsection (c), the city attorney should prepare:

1. A written draft of a proposed ordinance for submission to the council before the first reading of the ordinance; and
2. A written draft of an amendment to a proposed ordinance before the council votes on the ordinance.

During a council meeting, the city attorney may make minor amendments to a proposed ordinance by hand and, for the purpose of providing a written draft, may request that the council postpone consideration of a proposed ordinance that has been significantly amended during the meeting.

(c) The city attorney shall approve all ordinances as to form and legality before passage by the city council. All ordinances shall first be read by title as required by law and laid over until a subsequent regular or consent meeting unless a public emergency be declared; provided, however, that no ordinance shall be declared an emergency which grants a franchise or special privilege.
(Ord. No. 47-858, § 44, 3-28-08)

Sec. 2.04.380. Presentation and form of resolutions.

No resolution shall be presented to the city council unless the same is introduced or endorsed by a member of the city council or recommended by the city manager. The city attorney shall approve as to form and legality all resolutions passed by the city council. Resolutions shall be adopted on one reading by the council.
(Ord. No. 23-264 § 34; Ord. No. 47-858, § 45, 3-28-08)

Sec. 2.04.390. Form and approval of proclamations.

All proclamations shall be handled in the usual course of city business as follows:

(a) Written request shall be submitted to the City Council office, via regular mail, fax, e-mail or hand delivered.

(b) Requests are reviewed by the administrative assistant with the Mayor.

(c) Thereafter requests for proclamations and the proposed language for the proclamation are processed with the following information for approval by the City Council:

1. Name of the requesting party
2. Name of the organization or group requesting the proclamation
3. Telephone number, fax number and e-mail of contact person
4. Requested date, time and venue for receipt of the proclamation

Separate, identical memos containing such information will be distributed individually to each Council member. Each Council member shall indicate his or her preference regarding the proclamation, sign his or her memo and return it to the administrative assistant for tabulation. If there is a consensus among the Council for presentation of the proclamation, the requesting party is advised and a presentation or pickup is scheduled. Proclamations will be signed by the mayor and issued at the next regularly scheduled council meeting or at a press conference or event. The

issuance of proclamations at council meetings shall be limited to three proclamations for each council meeting.
(Ord. No. 47-858, § 46, 3-28-08; Ord. No. 48-984, § 1, 4-12-11)

Sec. 2.04.400. Investigation and action on complaints.

(a) *INVOLVING MUNICIPAL POLICIES.* All complaints involving municipal policies shall be referred to the city council for appropriate action and, except in the most unusual cases, such action shall be preceded by report and recommendation of the city manager, who shall have been given ample opportunity and time in which to investigate and to render a report in connection with such complaint.

(b) *INVOLVING CHARGES OF UNFAIR, ETC., HEARINGS.* All complaints involving charges of unfair hearings or improper hearings or inadequate hearings before advisory boards and commissions shall be referred immediately to the particular board or commission concerned for a rehearing except when other procedures are provided by this Code or state statute; provided, however, that such referral shall be accompanied by a written statement from the person complaining of such improper hearing, which statement shall delineate the specific charges in order that the particular board or commission concerned may be able to take appropriate action.

(c) *RELATIVE TO CITY MANAGEMENT.* All complaints with respect to the management of the city shall be referred to the city manager for the necessary or appropriate action in each individual case. In the case of those complaints involving the management of the city wherein the council desires further information, the city manager when so requested by a majority (four) of the council shall be given adequate time in which to make the necessary investigation and report back to the council.
(Ord. No. 23-264 § 36; Ord. No. 47-858, § 47, 3-28-08)

Sec. 2.04.410. Recall.

Members of the city council are subject to recall by the electorate for the grounds and under the procedures established by KSA 25-4301 et seq. If any member is recalled under such procedures, a vacancy shall exist and shall be filled as authorized by law and the city code.
(Ord. No. 47-858, § 48, 3-28-08)

CHAPTER 2.05. ONGOING DISCLOSURE—BONDS AND TEMPORARY NOTES

Sec. 2.05.010. Undertaking to provide ongoing disclosure in connection with City of Wichita general obligation bonds issued for distribution through public offering.
Sec. 2.05.020. Undertaking to provide ongoing disclosure in connection with City of Wichita general temporary notes issued for distribution through public offering.

Sec. 2.05.010. Undertaking to provide ongoing disclosure in connection with City of Wichita general obligation bonds issued for distribution through public offering.

(a) This Section 2.05.010 establishes and constitutes a written undertaking which shall function as a master undertaking for the benefit of the holders as well as the beneficial owners of all general obligation bonds issued by the City of Wichita purchased for public distribution by one or more underwriters, on or after July 3, 1995 (the "Bonds"), as required to establish legal preconditions for sale of the Bonds through an underwriter or underwriters, under Section (b)(5)(i) of Securities and Exchange Commission ("SEC") Rule 15c2-12 (the "Rule") promulgated under the Securities Exchange Act of 1934, as amended.

(b) This Subsection (b) of Section 2.05.010 shall apply to all Bonds issued on or between July 3, 1995, and June 30, 2009.

(1) The City of Wichita, as issuer of the Bonds (the "Issuer") undertakes to provide the following information, at the times and to the recipients as provided in this Section 2.05.010(b):

(i) Annual Financial Information;

(ii) Audited Financial Statements; and,

(iii) Material Event Notices.

(2) So long as the Rule continues to require an undertaking to make ongoing disclosure as established herein, or performance of prior such undertakings, then, with respect to all of the Bonds issued subject to such requirements which remain Outstanding:

(i) The Issuer shall provide the Annual Financial Information on or before December 31 of each year (the "Report Date"), beginning in December 1996, to each then existing NRMSIR and the SID, if any. The Issuer may adjust the Report Date if the Issuer changes its fiscal year by providing written notice of the change of fiscal year and the new Report Date to each then existing NRMSIR and the SID, if any; provided that the new Report Date shall be not more than 365 days after the end of the new fiscal year and provided further that the final Report Date relating to the former fiscal year and the initial Report Date relating to the new fiscal year shall not exceed one year in duration. It shall be sufficient if the Issuer provides to each then existing NRMSIR and the SID, if any, the Annual Financial Information by specific reference to documents previously provided to each NRMSIR and the SID, if any, or filed with the Securities and Exchange Commission and, if such a document is a final official statement within the meaning of the Rule, available from the Municipal Securities Rulemaking Board ("MSRB"). The Issuer shall also provide to each NRMSIR and the SID, if any, copies of each final official statement (within the meaning of the Rule) which is produced on or after July 3, 1995, in connection with the offering of any of the Bonds, within 60 days after such official statement is finalized for distribution by the underwriter.

(ii) The Issuer shall provide the Audited Financial Statements as part of the Annual Financial Information described in the preceding paragraph of this subsection.

(iii) If a Material Event occurs, the Issuer shall provide a Material Event Notice in a timely manner to the MSRB and the SID, if any. Each "Material Event Notice" shall be so captioned, and shall prominently state the date, title and CUSIP numbers of the Bonds to which the Material Event(s) covered by the Material Event Notice pertain(s).

(iv) The Issuer shall provide, in a timely manner, to the MSRB and to the SID, if any, notice of any failure by the Issuer to provide Annual Financial Information on or before the Report Date to each then existing NRMSIR and the SID (if any) as required by the terms of this Section 2.05.010(b).

(3) The following are the definitions of the capitalized terms used in this Section 2.05.010(b) and not otherwise defined elsewhere in this Section 2.05.010(b):

(i) "Annual Financial Information" means the Issuer's Comprehensive Annual Financial Report ("CAFR"), presenting financial and statistical information for the previous fiscal year (prepared in accordance with the guidelines of the Government Finance Officers Association of the United States and Canada ("GFOA"), as the same may be from time to time amended), and operating data with respect to the Issuer, provided at least annually, of the type included in official statements relating to the Bonds (including some unaudited data).

(ii) "Audited Financial Statements" means the Issuer's general purpose financial statements for the previous fiscal year, prepared in accordance with generally accepted accounting principles ("GAAP") for governmental units as prescribed by the Governmental Accounting Standards Board ("GASB") (except as otherwise stated or disclosed in the notes thereto or as otherwise required by applicable law, as the same may be from time to time amended), which shall have been audited by such auditor(s) as shall be then required or permitted by applicable law.

(iii) "Material Event" means any of the following events, if material, with respect to any of the Outstanding Bonds:

(A) Principal and interest payment delinquencies;

(B) Non-payment related defaults;

(C) Unscheduled draws on debt service reserves reflecting financial difficulties;

(D) Unscheduled draws on credit enhancements reflecting financial difficulties;

(E) Substitution of credit or liquidity providers or their failure to perform;

(F) Adverse tax opinions or events affecting the tax-exempt status of the security;

(G) Modifications to rights of security holders;

(H) Bond calls;

(I) Defeasances;

(J) Release, substitution, or sale of property securing repayment of the securities;

(K) Rating changes.

(iv) "Material Event Notice" means written or electronic notice of a Material Event.

(v) "NRMSIR" means a nationally recognized municipal securities information repository, as recognized from time to time by the SEC for the purposes referred to in the Rule.

(vi) "Outstanding" when used with reference to any of the Bonds shall mean, as of a particular date, all Bonds theretofore authenticated and delivered under one or more Ordinances

of the City of Wichita, except: (i) theretofore canceled by the Fiscal Agent (as defined in the Ordinance(s) authorizing the issuance of such Bonds) or delivered to such Fiscal Agent for cancellation; (ii) Bonds for which payment or redemption monies or Government Securities (as defined in the Ordinance(s) authorizing the issuance of such Bonds), or both, in the necessary amounts have been deposited with the Fiscal Agent or other such depository as provided in the Ordinance(s) authorizing the issuance of such Bonds, in trust for the Owners thereof (whether upon or prior to maturity or the Redemption Date(s) of such Bonds); or (iii) Bonds in exchange for or in lieu of which Refunding Bonds have been authenticated and delivered pursuant to the terms of (and within the meaning of) the appropriate Ordinance(s).

(vii) "Redemption Date(s)" shall mean, when used with respect to any Bond(s), the date(s) established as such in the Ordinance(s) authorizing the issuance of such Bond(s).

(viii) "SID" means a state information depository as operated or designated as such by the State of Kansas for the purposes referred to in the Rule.

(4) Unless otherwise required by law and subject to technical and economic feasibility, and to annual appropriations, the Issuer will exercise its best efforts to employ such methods of information transmission as shall be requested or recommended by the designated recipients of the Issuer's information.

(5) This Section 2.05.010(b) or any provision hereof, shall be subject to nullification and repeal in the event that the Issuer first delivers to each then existing NRMSIR and the SID, if any, an opinion of nationally recognized bond counsel to the effect that those portions of the Rule that require this Section 2.05.010(b) as a condition for particular underwriter conduct, or any such provision, are invalid, have been repealed retroactively or otherwise do not apply to the Bond. This Section 2.05.010(b) may be amended without the consent of the holders or beneficial owners of any Bond(s), following the delivery by the Issuer to each then existing NRMSIR and the SID, if any, of the proposed amendment and the opinion of nationally recognized bond counsel to the effect that such amendment, and giving effect thereto, will not adversely affect the adequacy of this Section 2.05.010(b) or the adequacy of the Issuer's subsequent conduct for purposes of compliance with the Rule, provided, however, that no such amendment will be made unless the following conditions are satisfied:

(i) The amendment may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature, or status of the Issuer, or type of business conducted;

(ii) The undertaking, as amended, would have complied with the requirements of the Rule at the time of any primary offering to which the undertaking applies, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;

(iii) The amendment does not materially impair the interests of holders, as determined either by parties unaffiliated with the Issuer (such as the trustee or bond counsel) or by approving vote of holders of the Bonds pursuant to the terms of the governing instrument(s) at the time of the amendment;

(iv) If the amendment changes the type of operating data or financial information provided pursuant to the Issuer's undertaking, the Annual Financial Information containing the

amended operating data or financial information will explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided; and,

(v) If the amendment alters portions of the Issuer's undertaking specifying the accounting principles to be followed in preparing financial statements, the Annual Financial Information for the year in which the change is made will present a comparison between the financial statements or information prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles, which comparison should include a qualitative (and to the extent reasonably feasible, quantitative) discussion of the differences in the accounting principles and the impact of the change in principles on the presentation of the financial information. A notice of the change in accounting principles will be sent to the NRMSIRs or the MSRB, and the appropriate SID, if any.

(6) Any failure by the Issuer to perform in accordance with this Section 2.05.010(b) shall not constitute an "Event of Default" or "Default" within the meaning of any Ordinance(s) authorizing the issuance of any of the Bonds, and the rights and remedies provided to holders or beneficial owners of the Bonds under such Ordinance(s) upon the occurrence of such a "Default" or such an "Event of Default" shall not apply to any such failure.

(7) If any of the foregoing provisions or terms of this Section 2.05.010(b), or any application thereof, is held invalid, the invalidity shall not affect other applications of the provisions or terms of this Section 2.05.010(b) which reasonably can be given effect without the invalid provision or term or the application thereof, and to this end, the provisions of this Section 2.05.010(b) are declared to be severab1e:

(8) None of the provisions of this Section 2.05.010(b) are in any way intended to impose upon, or result in an assumption by, the City of Wichita or any of its officers, agents or employees, of any special duty or any civil law duty of care as to which any breach or alleged breach thereof could give rise to any claim for damages in tort, and the City hereby expressly disclaims any such duty or responsibility for damages, including (but not limited to) any direct, indirect, special or consequential damages. The provisions of this Section 2.05.010(b) shall not, in any way, create liability or a basis for liability on the part of the City of Wichita, Kansas or any officer or employee thereof for any damages that result from failure of the Issuer to timely perform any portion, provision, term or condition of the written undertaking on its part established herein, or for any damages that result from reliance upon any provision of this Section 2.05.010(b) or any administrative decision lawfully made thereunder. However, nothing in this subsection shall operate or be construed to limit the rights of any holder or beneficial owner of any Bond to seek enforcement of the undertakings herein expressed through proceedings for a decree of specific performance in equity.

(c) This Subsection (c) of Section 2.05.010 shall apply to all Bonds issued after the publication of this ordinance.

(1) The following are the definitions of the capitalized terms used in this Section 2.05.010(c) and not otherwise defined elsewhere in this Section 2.05.010(c):

(i) "Annual Financial Information" means the City's Comprehensive Annual Financial Report ("CAFR"), presenting financial and statistical information for the previous fiscal year (pre-

pared in accordance with the guidelines of the Government Finance Officers Association of the United States and Canada ("GFOA"), as the same may be from time to time amended), and operating data with respect to the City, provided at least annually, of the type included in official statements relating to the Bonds (including some unaudited data).

(ii) "Audited Financial Statements" means the City's general purpose financial statements for the previous fiscal year, prepared in accordance with GAAP for governmental units as prescribed by the GASB (except as otherwise stated or disclosed in the notes thereto or as otherwise required by applicable law, as the same may be from time to time amended), which shall have been audited by such auditor(s) as shall be then required or permitted by applicable law.

(iii) "City" means the city of Wichita, Kansas.

(iv) "EMMA" means the Electronic Municipal Market Access facility for municipal securities disclosure of the MSRB, or any other market access method approved under the Rule.

(v) "GAAP" means generally accepted accounting principles.

(vi) "GASB" means the Governmental Accounting Standards Board or its successors or assigns.

(vii) "Material Event" means any of the following events, if material, with respect to any of the Outstanding Bonds:

(A) Principal and interest payment delinquencies;

(B) Non-payment related defaults;

(C) Unscheduled draws on debt service reserves reflecting financial difficulties;

(D) Unscheduled draws on credit enhancements reflecting financial difficulties;

(E) Substitution of credit or liquidity providers or their failure to perform;

(F) Adverse tax opinions or events affecting the tax-exempt status of the security;

(G) Modifications to rights of security holders;

(H) Bond calls (other than mandatory sinking fund redemptions);

(I) Defeasances;

(J) Release, substitution, or sale of property securing repayment of the securities;

(K) Rating changes.

(viii) "Material Event Notice" means notice in Prescribed Form in accordance with EMMA of a Material Event.

(ix) "MSRB" means the Municipal Securities Rulemaking Board and any successors or assigns, or any other entities or agencies approved under the Rule.

(x) "Outstanding" when used with reference to any of the Bonds shall mean, as of a particular date, all Bonds theretofore authenticated and delivered under one or more ordinances of the City, except: (i) Bonds theretofore canceled by the fiscal agent or paying agent (as defined in the ordinance(s) authorizing the issuance of such

Bonds) or delivered to such fiscal agent or paying agent for cancellation; (ii) Bonds for which payment or redemption monies or government securities (as defined in the ordinance(s) authorizing the issuance of such Bonds), or both, in the necessary amounts have been deposited with the fiscal agent or paying agent or other such depository as provided in the ordinance(s) authorizing the issuance of such Bonds, in trust for the owners thereof (whether upon or prior to maturity or the Redemption Date(s) of such Bonds); or (iii) Bonds in exchange for or in lieu of which refunding bonds have been authenticated and delivered pursuant to the terms of (and within the meaning of) the appropriate ordinance(s).

(xi) "Prescribed Form" means such electronic format accompanied by such identifying information as shall have been prescribed by the MSRB and which shall be in effect on the date of filing of the applicable information.

(xii) "Redemption Date(s)" shall mean, when used with respect to any Bond(s), the date(s) established as such in the ordinance(s) authorizing the issuance of such Bond(s).

(xiii) "Report Date" means December 31st of each year, beginning December 31, 2009.

(2) The City, as an "obligated person" within the meaning of the Rule, undertakes to provide the following information, at the times and to the recipients as provided in this Section 2.05.010(c):

(i) Annual Financial Information;

(ii) Audited Financial Statements; and,

(iii) Material Event Notices.

(3) So long as the Rule continues to require an undertaking to make ongoing disclosure as established herein, or performance of prior such undertakings, then, with respect to all of the Bonds issued subject to such requirements which remain Outstanding:

(i) The City shall provide the Annual Financial Information in Prescribed Form in accordance with EMMA to the MSRB, on or before the Report Date. The City may adjust the Report Date if the City changes its fiscal year by providing written notice of the change of fiscal year and the new Report Date to the MSRB; provided that the new Report Date shall be six months after the end of the new fiscal year and provided further that the period between the final Report Date relating to the former fiscal year and the initial Report Date relating to the new fiscal year shall not exceed one year in duration. It shall be sufficient if the City provides to the MSRB the Annual Financial Information by specific reference to documents available to the public on the MSRB's Internet Web site, or filed with the SEC.

(ii) If not provided as part of the Annual Financial Information, the City shall provide the Audited Financial Statements when and if available to the MSRB in Prescribed Form in accordance with EMMA.

(iii) If a Material Event occurs, the City shall file a Material Event Notice in a timely manner in Prescribed Form in accordance with EMMA with the MSRB. Each "Material Event Notice" shall be so captioned, and shall prominently state the date, title and

CUSIP numbers of the Bonds to which the Material Event(s) covered by the Material Event Notice pertain(s).

(iv) The City shall provide in Prescribed Form in accordance with EMMA in a timely manner to the MSRB notice of any failure by the City to provide Annual Financial Information on or before the Report Date to the MSRB as required by the terms of this Section 2.05.010(c).

(4) The information listed in Subsection (c)(2) shall be provided by the City to the MSRB, at www.emma.msrb.org, in the Prescribed Form or by such other method of transmitting information that is approved by the SEC.

(5) This Section 2.05.010(c) or any provision hereof, shall be subject to nullification and repeal in the event that the City first delivers to the MSRB, an opinion of nationally recognized bond counsel to the effect that those portions of the Rule that require this Section 2.05.010(c) as a condition for particular underwriter conduct, or any such provision, are invalid, have been repealed retroactively or otherwise do not apply to the Bonds. This Section 2.05.010(c) may be amended without the consent of the holders or beneficial owners of any Bond(s), following the delivery by the City to the MSRB, of the proposed amendment and the opinion of nationally recognized bond counsel to the effect that such amendment, and giving effect thereto, will not adversely affect the adequacy of this Section 2.05.010(c) or the adequacy of the City's subsequent conduct for purposes of compliance with the Rule, provided, however, that no such amendment will be made unless the following conditions are satisfied:

(i) The amendment may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature, or status of the City, or type of business conducted;

(ii) The undertaking, as amended, would have complied with the requirements of the Rule at the time of any primary offering to which the undertaking applies, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;

(iii) The amendment does not materially impair the interests of holders, as determined either by parties unaffiliated with the City (such as the trustee or bond counsel) or by approving vote of holders of the Bonds pursuant to the terms of the governing instrument(s) at the time of the amendment;

(iv) If the amendment changes the type of operating data or financial information provided pursuant to the City's undertaking, the Annual Financial Information containing the amended operating data or financial information will explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided; and,

(v) If the amendment alters portions of the City's undertaking specifying the accounting principles to be followed in preparing financial statements, the Annual Financial Information for the year in which the change is made will present a comparison between the financial statements or information prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles, which comparison should include a qualitative (and to the extent reasonably feasible, quantitative) discussion of the differences in the accounting principles and the impact of the change

in principles on the presentation of the financial information. A notice of the change in accounting principles will be sent to the MSRB.

(6) Any failure by the City to perform in accordance with this Section 2.05.010(c) shall not constitute an "Event of Default" or "Default" within the meaning of any ordinance(s) authorizing the issuance of any of the Bonds, and the rights and remedies provided to holders or beneficial owners of the Bonds under such ordinance(s) upon the occurrence of such a "Default" or such an "Event of Default" shall not apply to any such failure.

(7) If any of the foregoing provisions or terms of this Section 2.05.010(c), or any application thereof, is held invalid, the invalidity shall not affect other applications of the provisions or terms of this Section 2.05.010(c) which reasonably can be given effect without the invalid provision or term or the application thereof, and to this end, the provisions of this Section 2.05.010(c) are declared to be severab1e.

(8) None of the provisions of this Section 2.05.010(c) are in any way intended to impose upon, or result in an assumption by, the City or any of its officers, agents or employees, of any special duty or any civil law duty of care as to which any breach or alleged breach thereof could give rise to any claim for damages in tort, and the City hereby expressly disclaims any such duty or responsibility for damages, including (but not limited to) any direct, indirect, special or consequential damages. The provisions of this Section 2.05.010(c) shall not, in any way, create liability or a basis for liability on the part of the City or any officer or employee thereof for any damages that result from failure of the City to timely perform any portion, provision, term or condition of the written undertaking on its part established herein, or for any damages that result from reliance upon any provision of this Section 2.05.010(c) or any administrative decision lawfully made thereunder. However, nothing in this subsection shall operate or be construed to limit the rights of any holder or beneficial owner of any Bond to seek enforcement of the undertakings herein expressed through proceedings for a decree of specific performance in equity.

(9) This Section 2.05.010(c) shall inure solely to the benefit of the holders of the Bonds as required by Section (b)(5)(i) of the Rule, and shall create no rights in any other person or entity.

(10) The City shall maintain records of all disclosure made pursuant to this Section 2.05.010(c), including the content of such disclosure, the names of the entities with whom such disclosure was filed and the date of filing such disclosure.

(Ord. No. 42-996 § 1; Ord. No. 48-366, § 1, 7-14-09)

Sec. 2.05.020. Undertaking to provide ongoing disclosure in connection with City of Wichita general temporary notes issued for distribution through public offering.

(a) This Section 2.05.020 establishes and constitutes a written undertaking which shall function as a master undertaking for the benefit of the holders as well as the beneficial owners of all general obligation temporary notes issued by the City of Wichita purchased for public distribution by one or more underwriters, on or after July 3, 1995 (the "Notes"), as might he required to establish legal preconditions for sale of some of the Notes through an underwriter or underwriters, under Section (b)(5)(i) of Securities and Exchange Commission ("SEC") Rule 1 5c2-12 (the "Rule") promulgated under the Securities Exchange Act of 1934, as amended.

(b) This Subsection (b) of Section 2.05.020 shall apply to all Notes issued on or between July 3, 1995, and June 30, 2009.

(1) The City of Wichita, as issuer of the Notes (the "Issuer") undertakes to provide the

following information, at the times and to the recipients as provided in this Section 2.05.020(b):

(i) Annual Financial Information;

(ii) Audited Financial Statements; and,

(iii) Material Event Notices.

(2) So long as the Rule (or the policy of the Issuer with respect to sale of the Notes) continues to require an undertaking to make ongoing disclosure as established herein, or performance of prior such undertakings, then, with respect to all of the Notes issued subject to such requirements which remain Outstanding:

(i) The Issuer shall provide the Annual Financial Information on or before December 31 of each year (the "Report Date"), beginning in December 1996, to each then existing NRMSIR and the SID, if any. The Issuer may adjust the Report Date if the Issuer changes its fiscal year by providing written notice of the change of fiscal year and the new Report Date to each then existing NRMSIR and the SID, if any; provided that the new Report Date shall be not more than 365 days after the end of the new fiscal year and provided further that the final Report Date relating to the former fiscal year and the initial Report Date relating to the new fiscal year shall not exceed one year in duration. It shall be sufficient if the Issuer provides to each then existing NRMSIR and the SID, if any, the Annual Financial Information by specific reference to documents previously provided to each NRMSIR and the SID, if any, or filed with the Securities and Exchange Commission and, if such a document is a final official statement within the meaning of the Rule, available from the Municipal Securities Rulemaking Board ("MSRB"). The Issuer shall also provide to each NRMSIR and the SID, if any, copies of each final official statement (within the meaning of the Rule) which is produced on or after July 3, 1995, in connection with the offering of any of the Notes, within 60 days after such official statement is finalized for distribution by the underwriter.

(ii) The Issuer shall provide the Audited Financial Statements as part of the Annual Financial Information described in the preceding paragraph of this subsection.

(iii) If a Material Event occurs, the Issuer shall provide a Material Event Notice in a timely manner to the MSRB and the SID, if any. Each "Material Event Notice" shall be so captioned, and shall prominently state the date, title and CUSIP numbers of the Notes to which the Material Event(s) covered by the Material Event Notice pertain(s).

(iv) The Issuer shall provide, in a timely manner, to the MSRB and to the SID, if any, notice of any failure by the Issuer to provide Annual Financial Information on or before the Report Date to each then existing NRMSIR and the SID (if any) as required by the teams of this Section 2.05.010(b).

(3) The following are the definitions of the capitalized terms used in this Section 2.05.020(b) and not otherwise defined elsewhere in this Section 2.05.020(b):

(i) "Annual Financial Information" means the Issuer's Comprehensive Annual Financial Report ("CAFR"), presenting financial and statistical information for the previous fiscal year (prepared in accordance with the guidelines of the Government Finance Officers Association of the United States and Canada ("GFOA"), as the same may be from time to time amended), and operating data with respect to the Issuer, provided at least annually, of the type in-

cluded in official statements relating to the Notes (including some unaudited data).

(ii) "Audited Financial Statements" means the Issuer's general purpose financial statements for the previous fiscal year, prepared in accordance with generally accepted accounting principles ("GAAP") for governmental units as prescribed by the Governmental Accounting Standards Board ("GASB") (except as otherwise stated or disclosed in the notes thereto or as otherwise required by applicable law, as the same may be from time to time amended), which shall have been audited by such auditor(s) as shall be then required or permitted by applicable law.

(iii) "Material Event" means any of the following events, if material, with respect to any of the Outstanding Notes:

(A) Principal and interest payment delinquencies;

(B) Non-payment related defaults;

(C) Unscheduled draws on debt service reserves reflecting financial difficulties;

(D) Unscheduled draws on credit enhancements reflecting financial difficulties;

(E) Substitution of credit or liquidity providers or their failure to perform;

(F) Adverse tax opinions or events affecting the tax-exempt status of the security;

(G) Modifications to rights of security holders;

(H) Note calls;

(I) Defeasances;

(J) Release, substitution, or sale of property securing repayment of the securities;

(K) Rating changes.

(iv) "Material Event Notice" means written or electronic notice of a Material Event.

(v) "NRMSIR" means a nationally recognized municipal securities information repository, as recognized from time to time by the SEC for the purposes referred to in the Rule.

(vi) "Outstanding" when used with reference to any of the Notes shall mean, as of a particular date, all Notes theretofore authenticated and delivered under one or more Ordinances of the City of Wichita, except: (i) Notes theretofore canceled by the Fiscal Agent (as defined in the Ordinance(s) authorizing the issuance of such Notes) or delivered to such Fiscal Agent for cancellation; (ii) Notes for which payment or redemption monies or Government Securities (as defined in the Ordinance(s) authorizing the issuance of such Notes), or both, in the necessary amounts have been deposited with the Fiscal Agent or other such depository as provided in the Ordinance(s) authorizing the issuance of such Notes, in trust for the Owners thereof (whether upon or prior to maturity or the Redemption Date(s) of such Notes); or (iii) Notes in exchange for or in lieu of which Refunding Notes have been authenticated and delivered pursuant to the terms of (and within the meaning of) the appropriate Ordinance(s).

(vii) "Redemption Date(s)" shall mean, when used with respect to any Note(s), the date(s) established as such in the Ordinance(s) authorizing the issuance of such Note(s).

(viii) "SID" means a state information depository as operated or designated as such by the State of Kansas for the purposes referred to in the Rule.

(4) Unless otherwise required by law and subject to technical and economic feasibil-

ity, and to annual appropriations, the Issuer will exercise its best efforts to employ such methods of information transmission as shall be requested or recommended by the designated recipients of the Issuer's information.

(5) This Section 2.05.020(b) or any provision hereof, shall be subject to nullification and repeal in the event that the Issuer first delivers to each then existing NRMSIR and the SID, if any, an opinion of nationally recognized bond counsel to the effect that those portions of the Rule (and those portions of any policy of the Issuer) that require this Section 2.05.020(b) as a condition for particular underwriter conduct, or any such provision, are invalid, have been repealed retroactively or otherwise do not apply to the Notes. This Section 2.05.020(b) may he amended without the consent of the holders or beneficial owners of any Note(s), following the delivery by the Issuer to each then existing NRMSIR and the SID, if any, of the proposed amendment and the opinion of nationally recognized bond counsel to the effect that such amendment, and giving effect thereto, will not adversely affect the adequacy of this Section 2.05.020(b) or the adequacy of the Issuer's subsequent conduct for purposes of compliance with the Rule, provided, however, that no such amendment will be made unless the following conditions are satisfied:

(i) The amendment may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature, or status of the Issuer, or type of business conducted;

(ii) The undertaking, as amended, would have complied with the requirements of the Rule at the time of any primary offering to which the undertaking applies, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;

(iii) The amendment does not materially impair the interests of holders, as determined either by parties unaffiliated with the Issuer (such as the trustee or bond counsel) or by approving vote of holders of the Notes pursuant to the terms of the governing instrument(s) at the time of the amendment;

(iv) If the amendment changes the type of operating data or financial information provided pursuant to the Issuer's undertaking, the Annual Financial Information containing the amended operating data or financial information will explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided; and,

(v) If the amendment alters portions of the Issuer's undertaking specifying the accounting principles to be followed in preparing financial statements, the Annual Financial Information for the year in which the change is made will present a comparison between the financial statements or information prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles, which comparison should include a qualitative (and to the extent reasonably feasible, quantitative) discussion of the differences in the accounting principles and the impact of the change in principles on the presentation of the financial information. A notice of the change in accounting principles will be sent to the NRMSIRs or the MSRB, and the appropriate SID, if any.

(6) Any failure by the Issuer to perform in accordance with this Section 2.05.020(b) shall not constitute an "Event of Default" or "Default" within the meaning of any Ordinance(s) authorizing the issuance of

any of the Notes, and the rights and remedies provided to holders or beneficial owners of the Notes under such Ordinance(s) upon the occurrence of such a "Default" or such an "Event of Default" shall not apply to any such failure.

(7) If any of the foregoing provisions or terms of this Section 2.05.020(b), or any application thereof, is held invalid, the invalidity shall not affect other applications of the provisions or terms of this Section 2.05.020(b) which reasonably can be given effect without the invalid provision or term or the application thereof, and to this end, the provisions of this Section 2.05.020(b) are declared to be severable.

(8) None of the provisions of this Section 2.05.020(b) are in any way intended to impose upon, or result in an assumption by, the City of Wichita or any of its officers, agents or employees, of any special duty or any civil law duty of care as to which any breach or alleged breach thereof could give rise to any claim for damages in tort, and the City hereby expressly disclaims any such duty or responsibility for damages, including (but not limited to) any direct, indirect, special or consequential damages. The provisions of this Section 2.05.020(b) shall not, in any way, create liability or a basis for liability on the part of the City of Wichita, Kansas or any officer or employee thereof for any damages that result from failure of the Issuer to timely perform any portion, provision, term or condition of the written undertaking on its part established herein, or for any damages that result from reliance upon any provision of this Section 2.05.020(b) or any administrative decision lawfully made thereunder. However, nothing in this subsection shall operate or be construed to limit the rights of any holder or beneficial owner of any Note to seek enforcement of the undertakings herein expressed through proceedings for a decree of specific performance in equity.

(c) This Subsection (c) of Section 2.05.020 shall apply to all Notes issued after the publication of this ordinance.

(1) The following are the definitions of the capitalized terms used in this Section 2.05.020(c) and not otherwise defined elsewhere in this Section 2.05.020(c):

(i) "Annual Financial Information" means the City's Comprehensive Annual Financial Report ("CAFR"), presenting financial and statistical information for the previous fiscal year (prepared in accordance with the guidelines of the Government Finance Officers Association of the United States and Canada ("GFOA"), as the same may be from time to time amended), and operating data with respect to the City, provided at least annually, of the type included in official statements relating to the Notes (including some unaudited data).

(ii) "Audited Financial Statements" means the City's general purpose financial statements for the previous fiscal year, prepared in accordance with GAAP for governmental units as prescribed by the GASB (except as otherwise stated or disclosed in the notes thereto or as otherwise required by applicable law, as the same may be from time to time amended), which shall have been audited by such auditor(s) as shall be then required or permitted by applicable law.

(iii) "City" means the city of Wichita, Kansas.

(iv) "EMMA" means the Electronic Municipal Market Access facility for municipal securities disclosure of the MSRB, or any other market access method approved under the Rule.

(v) "GAAP" means generally accepted accounting principles.

(vi) "GASB" means the Governmental Accounting Standards Board or its successors or assigns.

(vii) "Material Event" means any of the following events, if material, with respect to any of the Outstanding Notes:

(A) Principal and interest payment delinquencies;

(B) Non-payment related defaults;

(C) Unscheduled draws on debt service reserves reflecting financial difficulties;

(D) Unscheduled draws on credit enhancements reflecting financial difficulties;

(E) Substitution of credit or liquidity providers or their failure to perform;

(F) Adverse tax opinions or events affecting the tax-exempt status of the security;

(G) Modifications to rights of security holders;

(H) Note calls (other than mandatory sinking fund redemptions);

(I) Defeasances;

(J) Release, substitution, or sale of property securing repayment of the securities;

(K) Rating changes.

(viii) "Material Event Notice" means notice in Prescribed Form in accordance with EMMA of a Material Event.

(ix) "MSRB" means the Municipal Securities Rulemaking Board and any successors or assigns, or any other entities or agencies approved under the Rule.

(x) "Outstanding" when used with reference to any of the Notes shall mean, as of a particular date, all Notes theretofore authenticated and delivered under one or more ordinances of the City, except: (i) theretofore canceled by the fiscal agent or paying agent (as defined in the ordinance(s) authorizing the issuance of such Notes) or delivered to such fiscal agent or paying agent for cancellation; (ii) Notes for which payment or redemption monies or government securities (as defined in the ordinance(s) authorizing the issuance of such Notes), or both, in the necessary amounts have been deposited with the fiscal agent or paying agent or other such depository as provided in the ordinance(s) authorizing the issuance of such Notes, in trust for the owners thereof (whether upon or prior to maturity or the Redemption Date(s) of such Notes); or (iii) Notes in exchange for or in lieu of which refunding notes have been authenticated and delivered pursuant to the terms of (and within the meaning of) the appropriate ordinance(s).

(xi) "Prescribed Form" means such electronic format accompanied by such identifying information as shall have been prescribed by the MSRB and which shall be in effect on the date of filing of the applicable information.

(xii) "Redemption Date(s)" shall mean, when used with respect to any Note(s), the date(s) established as such in the ordinance(s) authorizing the issuance of such Note(s).

(xiii) "Report Date" means December 31st of each year, beginning December 31, 2009.

(2) The City of Wichita, as an "obligated person" within the meaning of the Rule, undertakes to provide the following information, at the times and to the recipients as provided in this Section 2.05.020(c):

(i) Annual Financial Information;

(ii) Audited Financial Statements; and,

(iii) Material Event Notices.

(3) So long as the Rule (or the policy of the Issuer with respect to sale of the Notes) continues to require an undertaking to make ongoing disclosure as established herein, or performance of prior such undertakings, then, with respect to all of the Notes issued subject to such requirements which remain Outstanding:

(i) The City shall provide the Annual Financial Information in Prescribed Form in accordance with EMMA to the MSRB, on or before the Report Date. The City may adjust the Report Date if the City changes its fiscal year by providing written notice of the change of fiscal year and the new Report Date to the MSRB; provided that the new Report Date shall be six months after the end of the new fiscal year and provided further that the period between the final Report Date relating to the former fiscal year and the initial Report Date relating to the new fiscal year shall not exceed one year in duration. It shall be sufficient if the City provides to the MSRB the Annual Financial Information by specific reference to documents available to the public on the MSRB's Internet Web site, or filed with the SEC.

(ii) If not provided as part of the Annual Financial Information, the City shall provide the Audited Financial Statements when and if available to the MSRB in Prescribed Form in accordance with EMMA.

(iii) If a Material Event occurs, the City shall file a Material Event Notice in a timely manner in Prescribed Form in accordance with EMMA with the MSRB. Each "Material Event Notice" shall be so captioned, and shall prominently state the date, title and CUSIP numbers of the Notes to which the Material Event(s) covered by the Material Event Notice pertain(s).

(iv) The City shall provide in Prescribed Form in accordance with EMMA in a timely manner to the MSRB notice of any failure by the City to provide Annual Financial Information on or before the Report Date to the MSRB as required by the terms of this Section 2.05.010(c).

(4) The information listed in Subsection (c)(2) shall be provided by the City to the MSRB, at www.emma.msrb.org, in the Prescribed Form or by such other method of transmitting information that is approved by the SEC.

(5) This Section 2.05.020(c) or any provision hereof, shall be subject to nullification and repeal in the event that the City first delivers to the MSRB, an opinion of nationally recognized bond counsel to the effect that those portions of the Rule that require this Section 2.05.020(c) as a condition for particular underwriter conduct, or any such provision, are invalid, have been repealed retroactively or otherwise do not apply to the Notes. This Section 2.05.020(c) may be amended without the consent of the holders or beneficial owners of any Note(s), following the delivery by the City to the MSRB, of the proposed amendment and the opinion of nationally recognized bond counsel to the effect that such amendment, and giving effect thereto, will not adversely affect the adequacy of this Section 2.05.020(c) or the adequacy of the City's subsequent conduct for purposes of compliance with the Rule, provided, however, that no such amendment will be made unless the following conditions are satisfied:

(i) The amendment may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature, or status of the City, or type of business conducted;

(ii) The undertaking, as amended, would have complied with the require-

ments of the Rule at the time of any primary offering to which the undertaking applies, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;

(iii) The amendment does not materially impair the interests of holders, as determined either by parties unaffiliated with the City (such as the trustee or bond counsel) or by approving vote of holders of the Notes pursuant to the terms of the governing instrument(s) at the time of the amendment;

(iv) If the amendment changes the type of operating data or financial information provided pursuant to the City's undertaking, the Annual Financial Information containing the amended operating data or financial information will explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided; and,

(v) If the amendment alters portions of the City's undertaking specifying the accounting principles to be followed in preparing financial statements, the Annual Financial Information for the year in which the change is made will present a comparison between the financial statements or information prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles, which comparison should include a qualitative (and to the extent reasonably feasible, quantitative) discussion of the differences in the accounting principles and the impact of the change in principles on the presentation of the financial information. A notice of the change in accounting principles will be sent to the MSRB.

(6) Any failure by the City to perform in accordance with this Section 2.05.020(c) shall not constitute an "Event of Default" or "Default" within the meaning of any ordinance(s) authorizing the issuance of any of the Notes, and the rights and remedies provided to holders or beneficial owners of the Notes under such ordinance(s) upon the occurrence of such a "Default" or such an "Event of Default" shall not apply to any such failure.

(7) If any of the foregoing provisions or terms of this Section 2.05.020(c), or any application thereof, is held invalid, the invalidity shall not affect other applications of the provisions or terms of this Section 2.05.020(c) which reasonably can be given effect without the invalid provision or term or the application thereof, and to this end, the provisions of this Section 2.05.020(c) are declared to be severab1e.

(8) None of the provisions of this Section 2.05.020(c) are in any way intended to impose upon, or result in an assumption by, the City or any of its officers, agents or employees, of any special duty or any civil law duty of care as to which any breach or alleged breach thereof could give rise to any claim for damages in tort, and the City hereby expressly disclaims any such duty or responsibility for damages, including (but not limited to) any direct, indirect, special or consequential damages. The provisions of this Section 2.05.020(c) shall not, in any way, create liability or a basis for liability on the part of the City or any officer or employee thereof for any damages that result from failure of the City to timely perform any portion, provision, term or condition of the written undertaking on its part established herein, or for any damages that result from reliance upon any provision of this Section 2.05.020(c) or any administrative decision lawfully made thereunder. However, nothing in this subsection shall operate or be construed to limit the rights of any holder or beneficial owner of any Note to seek

enforcement of the undertakings herein expressed through proceedings for a decree of specific performance in equity.

(9) This Section 2.05.020(c) shall inure solely to the benefit of the holders of the Notes as required by Section (b)(5)(i) of the Rule, and shall create no rights in any other person or entity.

(10) The City shall maintain records of all disclosure made pursuant to this Section 2.05.020(c), including the content of such disclosure, the names of the entities with whom such disclosure was filed and the date of filing such disclosure.

(Ord. No. 42-997, § 1; Ord. No. 48-367, § 1, 7-14-09)

and the City hereby expressly disclaims any such duty or responsibility for damages, including (but not limited to) any direct, indirect, special or consequential damages. The provisions of this Section 2.05.010(e) shall not, in any way, create liability or a basis for liability on the part of the City or any officer or employee thereof for any damages that result from failure of the City to timely perform any portion, provision, term or condition of the written undertaking on its part established herein, or for any damages that result from reliance upon any provision of this Section 2.05.010(e) or any administrative decision lawfully made thereunder. However, nothing in this subsection shall operate or be construed to limit the rights of any holder or beneficial owner of any Bond to seek enforcement of the undertakings herein expressed through proceedings for a decree of specific performance in equity.

(9) This Section 2.05.010(e) shall inure solely to the benefit of the holders of the Bonds as required by Section (b)(5)(i) of the Rule, and shall create no rights in any other person or entity.

(10) The City shall maintain records of all disclosure made pursuant to this Section 2.05.010(e), including the content of such disclosure, the names of the entities with whom such disclosure was filed and the date of filing such disclosure.

(11) The City may, from time to time, appoint or engage an agent to assist it in carrying out its obligations under this Section 2.05.010(e) and may discharge any such agent with or without appointing a successor agent.

(12) Nothing in this Section 2.05.010(e) shall be deemed to prevent the City from disseminating any other information, using the means of dissemination set forth in this subsection or any other means of communication, or including any other information in any Annual Financial Information or notice of occurrence of a Material Event in addition to that which is required by this Section 2.05.010(e). If the City chooses to include any information from any document or notice of occurrence of a Material Event in addition to that which is specifically required by this Section 2.05.010(e), the City shall not have any obligation under this Section 2.05.010(e) to update such information or include it in any future disclosure or notice of the occurrence of a Material Event.

(Ord. No. 42-996 § 1; Ord. No. 48-366, § 1, 7-14-09; Ord. No. 49-077, § 1, 9-13-2011; Ord. No. 50-932, § 1, 3-5-19)

2.05.020 Undertaking to provide ongoing disclosure in connection with City of Wichita general obligation temporary notes issued for distribution through public offering.

(a) This Section 2.05.020 establishes and constitutes a written undertaking which shall function as a master undertaking for the benefit of the holders as well as the beneficial owners of all general obligation temporary notes issued by the City of Wichita purchased for public distribution by one or more underwriters, on or after July 3, 1995 (the "Notes"), as might be required to establish legal preconditions for sale of some of the Notes through an underwriter or underwriters, under Section (b)(5)(i) of Securities and Exchange Commission ("SEC") Rule 15c2-12 (the "Rule") promulgated under the Securities Exchange Act of 1934, as amended.

(b) This Subsection (b) of Section 2.05.020 shall apply to all Notes issued on or between July 3, 1995, and June 30, 2009.

(1) The City of Wichita, as issuer of the Notes (the "Issuer") undertakes to provide the following information, at the times and to the recipients as provided in this Section 2.05.020(b):

(i) Annual Financial Information;

(ii) Audited Financial Statements; and,

(iii) Material Event Notices.

(2) So long as the Rule (or the policy of the Issuer with respect to sale of the Notes) continues to require an undertaking to make ongoing disclosure as established herein, or performance of prior such undertakings, then, with respect to all of the Notes issued subject to such requirements which remain Outstanding:

(i) The Issuer shall provide the Annual Financial Information on or before December 31 of each year (the "Report Date"), beginning in December 1996, to each then existing NRMSIR and the SID, if any. The Issuer may adjust the Report Date if the Issuer changes its fiscal year by providing written notice of the change of fiscal year and the new Report Date to each then existing NRMSIR and the SID, if any; provided that the new Report Date shall be not more than 365 days after the end of the new fiscal year and provided further that the final Report Date relating to the former fiscal year and the initial Report Date relating to the new fiscal year shall not exceed one year in duration. It shall be sufficient if the Issuer provides to each then existing NRMSIR and the SID, if any, the Annual Financial Information by specific reference to documents previously provided to each NRMSIR and the SID, if any, or filed with the Securities and Exchange Commission and, if such a document is a final official statement within the meaning of the Rule, available from the Municipal Securities Rulemaking Board ("MSRB"). The Issuer shall also provide to each NRMSIR and the SID, if any, copies of each final official statement (within the meaning of the Rule) which is produced on or after July 3, 1995, in connection with the offering of any of the Notes, within 60 days after such official statement is finalized for distribution by the underwriter.

(ii) The Issuer shall provide the Audited Financial Statements as part of the Annual Financial Information described in the preceding paragraph of this subsection.

(iii) If a Material Event occurs, the Issuer shall provide a Material Event Notice in a timely manner to the MSRB and the SID, if any. Each "Material Event Notice" shall be so captioned, and shall prominently state the date, title and CUSIP numbers of the Notes to which the Material Event(s) covered by the Material Event Notice pertain(s).

(iv) The Issuer shall provide, in a timely manner, to the MSRB and to the SID, if any, notice of any failure by the Issuer to provide Annual Financial Information on or before the Report Date to each then existing NRMSIR and the SID (if any) as required by the terms of this Section 2.05.020(b).

(3) The following are the definitions of the capitalized terms used in this Section 2.05.020(b) and not otherwise defined elsewhere in this Section 2.05.020(b):

(i) "Annual Financial Information" means the Issuer's Comprehensive Annual Financial Report ("CAFR"), presenting financial and statistical information for the previous fiscal year (prepared in accordance with the guidelines of the Government Finance Officers Association of the United States and Canada ("GFOA"), as the same may be from time to time amended), and operating data with respect to the Issuer, provided at least annually, of the type included in official statements relating to the Notes (including some unaudited data).

(ii) "Audited Financial Statements" means the Issuer's general purpose financial statements for the previous fiscal year, prepared in

accordance with generally accepted accounting principles ("GAAP") for governmental units as prescribed by the Governmental Accounting Standards Board ("GASB") (except as otherwise stated or disclosed in the notes thereto or as otherwise required by applicable law, as the same may be from time to time amended), which shall have been audited by such auditor(s) as shall be then required or permitted by applicable law.

(iii) "Material Event" means any of the following events, if material, with respect to any of the Outstanding Notes:

(A) Principal and interest payment delinquencies;

(B) Non-payment related defaults;

(C) Unscheduled draws on debt service reserves reflecting financial difficulties;

(D) Unscheduled draws on credit enhancements reflecting financial difficulties;

(E) Substitution of credit or liquidity providers or their failure to perform;

(F) Adverse tax opinions or events affecting the tax-exempt status of the security;

(G) Modifications to rights of security holders;

(H) Note calls;

(I) Defeasances;

(J) Release, substitution, or sale of property securing repayment of the securities; and

(K) Rating changes.

(iv) "Material Event Notice" means written or electronic notice of a Material Event.

(v) "NRMSIR" means a nationally recognized municipal securities information repository, as recognized from time to time by the SEC for the purposes referred to in the Rule.

(vi) "Outstanding" when used with reference to any of the Notes shall mean, as of a particular date, all Notes theretofore authenticated and delivered under one or more Ordinances of the City of Wichita, except: (i) Notes theretofore canceled by the Fiscal Agent (as defined in the Ordinance(s) authorizing the issuance of such Notes) or delivered to such Fiscal Agent for cancellation; (ii) Notes for which payment or redemption monies or Government Securities (as defined in the Ordinance(s) authorizing the issuance of such Notes), or both, in the necessary amounts have been deposited with the Fiscal Agent or other such depository as provided in the Ordinance(s) authorizing the issuance of such Notes, in trust for the Owners thereof (whether upon or prior to maturity or the Redemption Date(s) of such Notes); or (iii) Notes in exchange for or in lieu of which Refunding Notes have been authenticated and delivered pursuant to the terms of (and within the meaning of) the appropriate Ordinance(s).

(vii) "Redemption Date(s)" shall mean, when used with respect to any Note(s), the date(s) established as such in the Ordinance(s) authorizing the issuance of such Note(s).

(viii) "SID" means a state information depository as operated or designated as such by the State of Kansas for the purposes referred to in the Rule.

(4) Unless otherwise required by law and subject to technical and economic feasibility, and to annual appropriations, the Issuer will exercise its best efforts to employ such methods of information

transmission as shall be requested or recommended by the designated recipients of the Issuer's information.

(5) This Section 2.05.020(b) or any provision hereof, shall be subject to nullification and repeal in the event that the Issuer first delivers to each then existing NRMSIR and the SID, if any, an opinion of nationally recognized bond counsel to the effect that those portions of the Rule (and those portions of any policy of the Issuer) that require this Section 2.05.020(b) as a condition for particular underwriter conduct, or any such provision, are invalid, have been repealed retroactively or otherwise do not apply to the Notes. This Section 2.05.020(b) may be amended without the consent of the holders or beneficial owners of any Note(s), following the delivery by the Issuer to each then existing NRMSIR and the SID, if any, of the proposed amendment and the opinion of nationally recognized bond counsel to the effect that such amendment, and giving effect thereto, will not adversely affect the adequacy of this Section 2.05.020(b) or the adequacy of the Issuer's subsequent conduct for purposes of compliance with the Rule, provided, however, that no such amendment will be made unless the following conditions are satisfied:

(i) The amendment may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature, or status of the Issuer, or type of business conducted;

(ii) The undertaking, as amended, would have complied with the requirements of the Rule at the time of any primary offering to which the undertaking applies, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;

(iii) The amendment does not materially impair the interests of holders, as determined either by parties unaffiliated with the Issuer (such as the trustee or bond counsel) or by approving vote of holders of the Notes pursuant to the terms of the governing instrument(s) at the time of the amendment;

(iv) If the amendment changes the type of operating data or financial information provided pursuant to the Issuer's undertaking, the Annual Financial Information containing the amended operating data or financial information will explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided; and,

(v) If the amendment alters portions of the Issuer's undertaking specifying the accounting principles to be followed in preparing financial statements, the Annual Financial Information for the year in which the change is made will present a comparison between the financial statements or information prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles, which comparison should include a qualitative (and to the extent reasonably feasible, quantitative) discussion of the differences in the accounting principles and the impact of the change in principles on the presentation of the financial information. A notice of the change in accounting principles will be sent to the NRMSIRs or the MSRB, and the appropriate SID, if any.

(6) Any failure by the Issuer to perform in accordance with this Section 2.05.020(b) shall not constitute an "Event of Default" or "Default" within the meaning of any Ordinance(s) authorizing the issuance of any of the Notes, and the rights and remedies provided to holders or beneficial

owners of the Notes under such Ordinance(s) upon the occurrence of such a "Default" or such an "Event of Default" shall not apply to any such failure.

(7) If any of the foregoing provisions or terms of this Section 2.05.020(b), or any application thereof, is held invalid, the invalidity shall not affect other applications of the provisions or terms of this Section 2.05.020(b) which reasonably can be given effect without the invalid provision or term or the application thereof, and to this end, the provisions of this Section 2.05.020(b) are declared to be severable.

(8) None of the provisions of this Section 2.05.020(b) are in any way intended to impose upon, or result in an assumption by, the City of Wichita or any of its officers, agents or employees, of any special duty or any civil law duty of care as to which any breach or alleged breach thereof could give rise to any claim for damages in tort, and the City hereby expressly disclaims any such duty or responsibility for damages, including (but not limited to) any direct, indirect, special or consequential damages. The provisions of this Section 2.05.020(b) shall not, in any way, create liability or a basis for liability on the part of the City of Wichita, Kansas or any officer or employee thereof for any damages that result from failure of the Issuer to timely perform any portion, provision, term or condition of the written undertaking on its part established herein, or for any damages that result from reliance upon any provision of this Section 2.05.020(b) or any administrative decision lawfully made thereunder. However, nothing in this subsection shall operate or be construed to limit the rights of any holder or beneficial owner of any Note to seek enforcement of the undertakings herein expressed through proceedings for a decree of specific performance in equity.

(c) This Subsection (c) of Section 2.05.020 shall apply to all Notes issued on or between July 17, 2009, and November 30, 2010.

(1) The following are the definitions of the capitalized terms used in this Section 2.05.020(c) and not otherwise defined elsewhere in this Section 2.05.020(c):

(i) "Annual Financial Information" means the City's Comprehensive Annual Financial Report ("CAFR"), presenting financial and statistical information for the previous fiscal year (prepared in accordance with the guidelines of the Government Finance Officers Association of the United States and Canada ("GFOA"), as the same may be from time to time amended), and operating data with respect to the City, provided at least annually, of the type included in official statements relating to the Notes (including some unaudited data).

(ii) "Audited Financial Statements" means the City's general purpose financial statements for the previous fiscal year, prepared in accordance with GAAP for governmental units as prescribed by the GASB (except as otherwise stated or disclosed in the notes thereto or as otherwise required by applicable law, as the same may be from time to time amended), which shall have been audited by such auditor(s) as shall be then required or permitted by applicable law.

(iii) "City" means the city of Wichita, Kansas.

(iv) "EMMA" means the Electronic Municipal Market Access facility for municipal securities disclosure of the MSRB, or any other market access method approved under the Rule.

(v) "GAAP" means generally accepted accounting principles.

(vi) "GASB" means the Governmental Accounting Standards Board or its successors or assigns.

(vii) "Material Event" means any of the following events, if material, with respect to any of the Outstanding Notes:

(A) Principal and interest payment delinquencies;

(B) Non-payment related defaults;

(C) Unscheduled draws on debt service reserves reflecting financial difficulties;

(D) Unscheduled draws on credit enhancements reflecting financial difficulties;

(E) Substitution of credit or liquidity providers or their failure to perform;

(F) Adverse tax opinions or events affecting the tax-exempt status of the security;

(G) Modifications to rights of security holders;

(H) Note calls (other than mandatory sinking fund redemptions);

(I) Defeasances;

(J) Release, substitution, or sale of property securing repayment of the securities; and

(K) Rating changes.

(viii) "Material Event Notice" means notice in Prescribed Form in accordance with EMMA of a Material Event.

(ix) "MSRB" means the Municipal Securities Rulemaking Board and any successors or assigns, or any other entities or agencies approved under the Rule.

(x) "Outstanding" when used with reference to any of the Notes shall mean, as of a particular date, all Notes theretofore authenticated and delivered under one or more ordinances of the City, except: (i) theretofore canceled by the fiscal agent or paying agent (as defined in the ordinance(s) authorizing the issuance of such Notes) or delivered to such fiscal agent or paying agent for cancellation; (ii) Notes for which payment or redemption monies or government securities (as defined in the ordinance(s) authorizing the issuance of such Notes), or both, in the necessary amounts have been deposited with the fiscal agent or paying agent or other such depository as provided in the ordinance(s) authorizing the issuance of such Notes, in trust for the owners thereof (whether upon or prior to maturity or the Redemption Date(s) of such Notes); or (iii) Notes in exchange for or in lieu of which refunding notes have been authenticated and delivered pursuant to the terms of (and within the meaning of) the appropriate ordinance(s).

(xi) "Prescribed Form" means such electronic format accompanied by such identifying information as shall have been prescribed by the MSRB and which shall be in effect on the date of filing of the applicable information.

(xii) "Redemption Date(s)" shall mean, when used with respect to any Note(s), the date(s) established as such in the ordinance(s) authorizing the issuance of such Note(s).

(xiii) "Report Date" means December 31st of each year, beginning December 31, 2009.

(2) The City of Wichita, as an "obligated person" within the meaning of the Rule, undertakes to provide the following information, at the times and to the recipients as provided in this Section 2.05.020(c):

(i) Annual Financial Information;

(ii) Audited Financial Statements; and

(iii) Material Event Notices.

(3) So long as the Rule (or the policy of the Issuer with respect to sale of the Notes) continues to require an undertaking to make ongoing disclosure as established herein, or performance of prior such undertakings, then, with respect to all of the Notes issued subject to such requirements which remain Outstanding:

(i) The City shall provide the Annual Financial Information in Prescribed Form in accordance with EMMA to the MSRB, on or before the Report Date. The City may adjust the Report Date if the City changes its fiscal year by providing written notice of the change of fiscal year and the new Report Date to the MSRB; provided that the new Report Date shall be six months after the end of the new fiscal year and provided further that the period between the final Report Date relating to the former fiscal year and the initial Report Date relating to the new fiscal year shall not exceed one year in duration. It shall be sufficient if the City provides to the MSRB the Annual Financial Information by specific reference to documents available to the public on the MSRB's Internet Web site, or filed with the SEC.

(ii) If not provided as part of the Annual Financial Information, the City shall provide the Audited Financial Statements when and if available to the MSRB in Prescribed Form in accordance with EMMA.

(iii) If a Material Event occurs, the City shall file a Material Event Notice in a timely manner in Prescribed Form in accordance with EMMA with the MSRB. Each "Material Event Notice" shall be so captioned, and shall prominently state the date, title and CUSIP numbers of the Notes to which the Material Event(s) covered by the Material Event Notice pertain(s).

(iv) The City shall provide in Prescribed Form in accordance with EMMA in a timely manner to the MSRB notice of any failure by the City to provide Annual Financial Information on or before the Report Date to the MSRB as required by the terms of this Section 2.05.020(c).

(4) The information listed in Subsection (c)(2) shall be provided by the City to the MSRB, at www.emma.msrb.org, in the Prescribed Form or by such other method of transmitting information that is approved by the SEC.

(5) This Section 2.05.020(c) or any provision hereof, shall be subject to nullification and repeal in the event that the City first delivers to the MSRB, an opinion of nationally recognized bond counsel to the effect that those portions of the Rule that require this Section 2.05.020(c) as a condition for particular underwriter conduct, or any such provision, are invalid, have been repealed retroactively or otherwise do not apply to the Notes. This Section 2.05.020(c) may be amended without the consent of the holders or beneficial owners of any Note(s), following the delivery by the City to the MSRB, of the proposed amendment and the opinion of nationally recognized bond counsel to the effect that such amendment, and giving effect thereto, will not adversely affect the adequacy of this Section 2.05.020(c) or the adequacy of the City's subsequent conduct for purposes of compliance with the Rule, provided, however, that no such amendment will be made unless the following conditions are satisfied:

(i) The amendment may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature, or status of the City, or type of business conducted;

(ii) The undertaking, as amended, would have complied with the require-

ments of the Rule at the time of any primary offering to which the undertaking applies, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;

(iii) The amendment does not materially impair the interests of holders, as determined either by parties unaffiliated with the City (such as the trustee or bond counsel) or by approving vote of holders of the Notes pursuant to the terms of the governing instrument(s) at the time of the amendment;

(iv) If the amendment changes the type of operating data or financial information provided pursuant to the City's undertaking, the Annual Financial Information containing the amended operating data or financial information will explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided; and

(v) If the amendment alters portions of the City's undertaking specifying the accounting principles to be followed in preparing financial statements, the Annual Financial Information for the year in which the change is made will present a comparison between the financial statements or information prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles, which comparison should include a qualitative (and to the extent reasonably feasible, quantitative) discussion of the differences in the accounting principles and the impact of the change in principles on the presentation of the financial information. A notice of the change in accounting principles will be sent to the MSRB.

(6) Any failure by the City to perform in accordance with this Section 2.05.020(c) shall not constitute an "Event of Default" or "Default" within the meaning of any ordinance(s) authorizing the issuance of any of the Notes, and the rights and remedies provided to holders or beneficial owners of the Notes under such ordinance(s) upon the occurrence of such a "Default" or such an "Event of Default" shall not apply to any such failure.

(7) If any of the foregoing provisions or terms of this Section 2.05.020(c), or any application thereof, is held invalid, the invalidity shall not affect other applications of the provisions or terms of this Section 2.05.020(c) which reasonably can be given effect without the invalid provision or term or the application thereof, and to this end, the provisions of this Section 2.05.020(c) are declared to be severable.

(8) None of the provisions of this Section 2.05.020(c) are in any way intended to impose upon, or result in an assumption by, the City or any of its officers, agents or employees, of any special duty or any civil law duty of care as to which any breach or alleged breach thereof could give rise to any claim for damages in tort, and the City hereby expressly disclaims any such duty or responsibility for damages, including (but not limited to) any direct, indirect, special or consequential damages. The provisions of this Section 2.05.020(c) shall not, in any way, create liability or a basis for liability on the part of the City or any officer or employee thereof for any damages that result from failure of the City to timely perform any portion, provision, term or condition of the written undertaking on its part established herein, or for any damages that result from reliance upon any provision of this Section 2.05.020(c) or any administrative decision lawfully made thereunder. However, nothing in this subsection shall operate or be construed to limit the rights of any holder or

beneficial owner of any Note to seek enforcement of the undertakings herein expressed through proceedings for a decree of specific performance in equity.

(9) This Section 2.05.020(c) shall inure solely to the benefit of the holders of the Notes as required by Section (b)(5)(i) of the Rule, and shall create no rights in any other person or entity.

(10) The City shall maintain records of all disclosure made pursuant to this Section 2.05.020(c), including the content of such disclosure, the names of the entities with whom such disclosure was filed and the date of filing such disclosure.

(d) This Subsection (d) of Section 2.05.020 shall apply to all Notes issued on or between December 1, 2010 and February 26, 2019.

(1) The following are the definitions of the capitalized terms used in this Section 2.05.020(d) and not otherwise defined elsewhere in this Section 2.05.020(d):

(i) "Annual Financial Information" means the City's Comprehensive Annual Financial Report ("CAFR"), presenting financial and statistical information for the previous fiscal year (prepared in accordance with the guidelines of the Government Finance Officers Association of the United States and Canada ("GFOA"), as the same may be from time to time amended), and operating data with respect to the City, provided at least annually, of the type included in official statements relating to the Notes.

(ii) "Audited Financial Statements" means the City's general purpose financial statements for the previous fiscal year, prepared in accordance with GAAP for governmental units as prescribed by the GASB (except as otherwise stated or disclosed in the notes thereto or as otherwise required by applicable law, as the same may be from time to time amended), which shall have been audited by such auditor(s) as shall be then required or permitted by applicable law.

(iii) "City" means the city of Wichita, Kansas.

(iv) "EMMA" means the Electronic Municipal Market Access facility for municipal securities disclosure of the MSRB, or any other market access method approved under the Rule.

(v) "GAAP" means generally accepted accounting principles.

(vi) "GASB" means the Governmental Accounting Standards Board or its successors or assigns.

(vii) "MSRB" means the Municipal Securities Rulemaking Board and any successors or assigns, or any other entities or agencies approved under the Rule.

(viii) "Outstanding" when used with reference to any of the Notes shall mean, as of a particular date, all Notes theretofore authenticated and delivered under one or more ordinances or resolution(s) of the City, except: (i) Notes theretofore canceled by the fiscal agent or paying agent (as defined in the ordinance(s) or resolution(s) authorizing the issuance of such Notes) or delivered to such fiscal agent or paying agent for cancellation; (ii) Notes for which payment or redemption monies or government securities (as defined in the ordinance(s) or resolution(s) authorizing the issuance of such Notes), or both, in the necessary amounts have been deposited with the fiscal agent or paying agent or other such depository as provided in the ordinance(s) or resolution(s) authorizing the issuance of such Notes, in trust for the owners thereof (whether upon or prior to maturity or the Redemption Date(s) of such Notes); or (iii) Notes in exchange for

or in lieu of which refunding notes have been authenticated and delivered pursuant to the terms of (and within the meaning of) the appropriate ordinance(s) or resolution(s).

(ix) "Prescribed Form" means such electronic format accompanied by such identifying information as shall have been prescribed by the MSRB and which shall be in effect on the date of filing of the applicable information.

(x) "Redemption Date(s)" shall mean, when used with respect to any Note(s), the date(s) established as such in the ordinance(s) or resolution(s) authorizing the issuance of such Note(s).

(xi) "Report Date" means December 31st of each year, beginning December 31, 2011.

(xii) "Reporting Event" means any of the following events, with respect to any of the Outstanding Notes:

(A) Principal and interest payment delinquencies;

(B) Non-payment related defaults, if material;

(C) Unscheduled draws on debt service reserves reflecting financial difficulties;

(D) Unscheduled draws on credit enhancements reflecting financial difficulties;

(E) Substitution of credit or liquidity providers or their failure to perform;

(F) Adverse tax opinions, the issuance by the Internal Revenue Service of proposed or final determinations of taxability, Notice of Proposed Issue (IRS Form 5701-TEB) or other material notices or determinations with respect to the tax status of the security, or other material events affecting the tax status of the security;

(G) Modifications to rights of security holders, if material;

(H) Note calls, if material, and tender offers;

(I) Defeasances;

(J) Release, substitution, or sale of property securing repayment of the securities, if material;

(K) Rating changes;

(L) Bankruptcy, insolvency, receivership or similar event of the obligated person;

(M) The consummation of a merger, consolidation, or acquisition involving an obligated person or the sale of all or substantially all of the assets of the obligated person, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms, if material; and

(N) Appointment of a successor or additional trustee or the change of name of a trustee, if material.

(xiii) "Reporting Event Notice" means notice in Prescribed Form in accordance with EMMA of a Reporting Event.

(2) The City, as an "obligated person" within the meaning of the Rule, undertakes to provide the following information, at the times and to the recipients as provided in this Section 2.05.020(d):

(i) Annual Financial Information;

(ii) Audited Financial Statements; and

(iii) Reporting Event Notices.

(3) So long as the Rule continues to require an undertaking to make ongoing disclosure as established herein, or performance of prior such undertakings, then, with respect to all of the Notes issued subject to such requirements which remain Outstanding:

(i) The City shall provide the Annual Financial Information in Prescribed Form in accordance with EMMA to the MSRB, on or before the Report Date. The City may adjust the Report Date if the City changes its fiscal year by providing written notice of the change of fiscal year and the new Report Date to the MSRB; provided that the new Report Date shall not exceed one year from the end of the new fiscal year and provided further that the period between the final Report Date relating to the former fiscal year and the initial Report Date relating to the new fiscal year shall not exceed one year in duration. It shall be sufficient if the City provides to the MSRB the Annual Financial Information by specific reference to documents available to the public on the MSRB's Internet Web site, or filed with the SEC.

(ii) If not provided as part of the Annual Financial Information, the City shall provide the Audited Financial Statements when and if available to the MSRB in Prescribed Form in accordance with EMMA.

(iii) If a Reporting Event occurs, the City shall file a Reporting Event Notice in a timely manner not in excess of ten business days after the occurrence of the event in Prescribed Form in accordance with EMMA with the MSRB. Each "Reporting Event Notice" shall be so captioned, and shall prominently state the date, title and CUSIP numbers of the Notes to which the Reporting Event(s) covered by the Reporting Event Notice pertain(s).

(iv) The City shall provide in Prescribed Form in accordance with EMMA in a timely manner to the MSRB notice of any failure by the City to provide Annual Financial Information on or before the Report Date to the MSRB as required by the terms of this Section 2.05.020(d).

(4) The information listed in Subsection (d)(2) shall be provided by the City to the MSRB, at www.emma.msrb.org, in the Prescribed Form or to such other location and by such other method of transmitting information that is approved by the SEC.

(5) This Section 2.05.020(d) or any provision hereof, shall be subject to nullification and repeal in the event that the City first delivers to the MSRB, an opinion of nationally recognized bond counsel to the effect that those portions of the Rule that require this Section 2.05.020(d) as a condition for particular underwriter conduct, or any such provision, are invalid, have been repealed retroactively or otherwise do not apply to the Notes. This Section 2.05.020(d) may be amended without the consent of the holders or beneficial owners of any Note(s), following the delivery by the City to the MSRB, of the proposed amendment and the opinion of nationally recognized bond counsel to the effect that such amendment, and giving effect thereto, will not adversely affect the adequacy of this Section 2.05.020(d) or the adequacy of the City's subsequent conduct for purposes of compliance with the Rule, provided, however, that no such amendment will be made unless the following conditions are satisfied:

(i) The amendment may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature, or status of the City, or type of business conducted;

(ii) The undertaking, as amended, would have complied with the require-

ments of the Rule at the time of any primary offering to which the undertaking applies, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;

(iii) The amendment does not materially impair the interests of holders, as determined either by parties unaffiliated with the City (such as the trustee or bond counsel) or by approving vote of holders of the Notes pursuant to the terms of the governing instrument(s) at the time of the amendment;

(iv) If the amendment changes the type of operating data or financial information provided pursuant to the City's undertaking, the Annual Financial Information containing the amended operating data or financial information will explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided; and

(v) If the amendment alters portions of the City's undertaking specifying the accounting principles to be followed in preparing financial statements, the Annual Financial Information for the year in which the change is made will present a comparison between the financial statements or information prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles, which comparison should include a qualitative (and to the extent reasonably feasible, quantitative) discussion of the differences in the accounting principles and the impact of the change in principles on the presentation of the financial information. A notice of the change in accounting principles will be sent to the MSRB.

(6) Any failure by the City to perform in accordance with this Section 2.05.010(d) shall not constitute an "Event of Default" or "Default" within the meaning of any ordinance(s) or resolution(s) authorizing the issuance of any of the Notes, and the rights and remedies provided to holders or beneficial owners of the Notes under such ordinance(s) or resolution(s) upon the occurrence of such a "Default" or such an "Event of Default" shall not apply to any such failure.

(7) If any of the foregoing provisions or terms of this Section 2.05.010(d), or any application thereof, is held invalid, the invalidity shall not affect other applications of the provisions or terms of this Section 2.05.020(d) which reasonably can be given effect without the invalid provision or term or the application thereof, and to this end, the provisions of this Section 2.05.020(d) are declared to be severable.

(8) None of the provisions of this Section 2.05.020(d) are in any way intended to impose upon, or result in an assumption by, the City or any of its officers, agents or employees, of any special duty or any civil law duty of care as to which any breach or alleged breach thereof could give rise to any claim for damages in tort, and the City hereby expressly disclaims any such duty or responsibility for damages, including (but not limited to) any direct, indirect, special or consequential damages. The provisions of this Section 2.05.020(d) shall not, in any way, create liability or a basis for liability on the part of the City or any officer or employee thereof for any damages that result from failure of the City to timely perform any portion, provision, term or condition of the written undertaking on its part established herein, or for any damages that result from reliance upon any provision of this Section 2.05.020(d) or any administrative decision lawfully made thereunder. However, nothing in this subsection shall operate or be construed

to limit the rights of any holder or beneficial owner of any Note to seek enforcement of the undertakings herein expressed through proceedings for a decree of specific performance in equity.

(9) This Section 2.05.020(d) shall inure solely to the benefit of the holders of the Notes as required by Section (b)(5)(i) of the Rule, and shall create no rights in any other person or entity.

(10) The City shall maintain records of all disclosure made pursuant to this Section 2.05.020(d), including the content of such disclosure, the names of the entities with whom such disclosure was filed and the date of filing such disclosure.

(11) The City may, from time to time, appoint or engage an agent to assist it in carrying out its obligations under this Section 2.05.020(d) and may discharge any such agent with or without appointing a successor agent.

(12) Nothing in this Section 2.05.020(d) shall be deemed to prevent the City from disseminating any other information, using the means of dissemination set forth in this subsection or any other means of communication, or including any other information in any Annual Financial Information or notice of occurrence of a Reporting Event in addition to that which is required by this Section 2.05.020(d). If the City chooses to include any information from any document or notice of occurrence of a Reporting Event in addition to that which is specifically required by this Section 2.05.020(d), the City shall not have any obligation under this Section 2.05.020(d) to update such information or include it in any future disclosure or notice of the occurrence of a Reporting Event.

(e) This Subsection (e) of Section 2.05.020 shall apply to all Notes issued on or after February 27, 2019.

(1) The following are the definitions of the capitalized terms used in this Section 2.05.020(e) and not otherwise defined elsewhere in this Section 2.05.020(e):

(i) "Annual Financial Information" means the City's Comprehensive Annual Financial Report ("CAFR"), presenting financial and statistical information for the previous fiscal year (prepared in accordance with the guidelines of the Government Finance Officers Association of the United States and Canada ("GFOA"), as the same may be from time to time amended), and operating data with respect to the City, provided at least annually, of the type included in official statements relating to the Notes.

(ii) "Audited Financial Statements" means the City's general purpose financial statements for the previous fiscal year, prepared in accordance with GAAP for governmental units as prescribed by the GASB (except as otherwise stated or disclosed in the notes thereto or as otherwise required by applicable law, as the same may be from time to time amended), which shall have been audited by such auditor(s) as shall be then required or permitted by applicable law.

(iii) "City" means the city of Wichita, Kansas.

(iv) "EMMA" means the Electronic Municipal Market Access facility for municipal securities disclosure of the MSRB, or any other market access method approved under the Rule.

(v) "Financial Obligation" means: (a) a debt obligation; (b) a derivative instrument entered into in connection with, or pledged as security or

source of payment for, an existing or planned debt obligation; or (c) a guarantee of (a) or (b) hereof; *provided however*, the term Financial Obligation shall not include a municipal security as to which a final official statement has been provided to the MSRB consistent with the SEC Rule.

(vi) "GAAP" means generally accepted accounting principles.

(vii) "GASB" means the Governmental Accounting Standards Board or its successors or assigns.

(viii) "Material Event" means any of the following events, with respect to any of the Outstanding Notes:

(A) Principal and interest payment delinquencies;

(B) Non-payment related defaults, if material;

(C) Unscheduled draws on debt service reserves reflecting financial difficulties;

(D) Unscheduled draws on credit enhancements reflecting financial difficulties;

(E) Substitution of credit or liquidity providers or their failure to perform;

(F) Adverse tax opinions, the issuance by the Internal Revenue Service of proposed or final determinations of taxability, Notice of Proposed Issue (IRS Form 5701-TEB) or other material notices or determinations with respect to the tax status of the security, or other material events affecting the tax status of the security;

(G) Modifications to rights of security holders, if material;

(H) Note calls, if material, and tender offers;

(I) Defeasances;

(J) Release, substitution, or sale of property securing repayment of the securities, if material;

(K) Rating changes;

(L) Bankruptcy, insolvency, receivership or similar event of the obligated person;

(M) The consummation of a merger, consolidation, or acquisition involving an obligated person or the sale of all or substantially all of the assets of the obligated person, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms, if material; and

(N) Appointment of a successor or additional trustee or the change of name of a trustee, if material.

(O) Incurrence of a Financial Obligation of the obligated person, if material, or agreement to covenants, events of default, remedies, priority rights, or other similar terms of a Financial Obligation of the obligated person, any of which affect security holders, if material; and

(P) Default, event of acceleration, termination event, modification of terms, or other similar events under the terms of a Financial Obligation of the obligated person, any of which reflect financial difficulties.

(ix) "Material Event Notice" means notice in Prescribed Form in accordance with EMMA of a Material Event.

(x) "MSRB" means the Municipal Securities Rulemaking Board and any suc-

cessors or assigns, or any other entities or agencies approved under the Rule.

(xi) "Outstanding" when used with reference to any of the Notes shall mean, as of a particular date, all Notes theretofore authenticated and delivered under one or more ordinances or resolution(s) of the City, except: (i) Notes theretofore canceled by the fiscal agent or paying agent (as defined in the ordinance(s) or resolution(s) authorizing the issuance of such Notes) or delivered to such fiscal agent or paying agent for cancellation; (ii) Notes for which payment or redemption monies or government securities (as defined in the ordinance(s) or resolution(s) authorizing the issuance of such Notes), or both, in the necessary amounts have been deposited with the fiscal agent or paying agent or other such depository as provided in the ordinance(s) or resolution(s) authorizing the issuance of such Notes, in trust for the owners thereof (whether upon or prior to maturity or the Redemption Date(s) of such Notes); or (iii) Notes in exchange for or in lieu of which refunding notes have been authenticated and delivered pursuant to the terms of (and within the meaning of) the appropriate ordinance(s) or resolution(s).

(xii) "Prescribed Form" means such electronic format accompanied by such identifying information as shall have been prescribed by the MSRB and which shall be in effect on the date of filing of the applicable information.

(xiii) "Redemption Date(s)" shall mean, when used with respect to any Note(s), the date(s) established as such in the ordinance(s) or resolution(s) authorizing the issuance of such Note(s).

(xiv) "Report Date" means December 31st of each year, beginning December 31, 2019.

(2) The City, as an "obligated person" within the meaning of the Rule, undertakes to provide the following information, at the times and to the recipients as provided in this Section 2.05.020(e):

(i) Annual Financial Information;

(ii) Audited Financial Statements; and

(iii) Material Event Notices.

(3) So long as the Rule continues to require an undertaking to make ongoing disclosure as established herein, or performance of prior such undertakings, then, with respect to all of the Notes issued subject to such requirements which remain Outstanding:

(i) The City shall provide the Annual Financial Information in Prescribed Form in accordance with EMMA to the MSRB, on or before the Report Date. The City may adjust the Report Date if the City changes its fiscal year by providing written notice of the change of fiscal year and the new Report Date to the MSRB; provided that the new Report Date shall not exceed one year from the end of the new fiscal year and provided further that the period between the final Report Date relating to the former fiscal year and the initial Report Date relating to the new fiscal year shall not exceed one year in duration. It shall be sufficient if the City provides to the MSRB the Annual Financial Information by specific reference to documents available to the public on the MSRB's Internet Web site, or filed with the SEC.

(ii) If not provided as part of the Annual Financial Information, the City shall provide the Audited Financial State-

ments when and if available to the MSRB in Prescribed Form in accordance with EMMA.

(iii) If a Material Event occurs, the City shall file a Material Event Notice in a timely manner not in excess of ten business days after the occurrence of the event in Prescribed Form in accordance with EMMA with the MSRB. Each "Material Event Notice" shall be so captioned, and shall prominently state the date, title and CUSIP numbers of the Notes to which the Material Event(s) covered by the Material Event Notice pertain(s).

(iv) The City shall provide in Prescribed Form in accordance with EMMA in a timely manner to the MSRB notice of any failure by the City to provide Annual Financial Information on or before the Report Date to the MSRB as required by the terms of this Section 2.05.020(e).

(4) The information listed in Subsection (e)(2) shall be provided by the City to the MSRB, at www.emma.msrb.org, in the Prescribed Form or to such other location and by such other method of transmitting information that is approved by the SEC.

(5) This Section 2.05.020(e) or any provision hereof, shall be subject to nullification and repeal in the event that the City first delivers to the MSRB, an opinion of nationally recognized bond counsel to the effect that those portions of the Rule that require this Section 2.05.020(e) as a condition for particular underwriter conduct, or any such provision, are invalid, have been repealed retroactively or otherwise do not apply to the Notes. This Section 2.05.020(e) may be amended without the consent of the holders or beneficial owners of any Note(s), following the delivery by the City to the MSRB, of the proposed amendment and the opinion of nationally recognized bond counsel to the effect that such amendment, and giving effect thereto, will not adversely affect the adequacy of this Section 2.05.020(e) or the adequacy of the City's subsequent conduct for purposes of compliance with the Rule, provided, however, that no such amendment will be made unless the following conditions are satisfied:

(i) The amendment may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature, or status of the City, or type of business conducted;

(ii) The undertaking, as amended, would have complied with the requirements of the Rule at the time of any primary offering to which the undertaking applies, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;

(iii) The amendment does not materially impair the interests of holders, as determined either by parties unaffiliated with the City (such as the trustee or bond counsel) or by approving vote of holders of the Notes pursuant to the terms of the governing instrument(s) at the time of the amendment;

(iv) If the amendment changes the type of operating data or financial information provided pursuant to the City's undertaking, the Annual Financial Information containing the amended operating data or financial information will explain, in narrative form, the reasons for the amendment and the impact of the change in the type of operating data or financial information being provided; and

(v) If the amendment alters portions of the City's undertaking specifying the accounting principles to be followed in preparing financial state-

ments, the Annual Financial Information for the year in which the change is made will present a comparison between the financial statements or information prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles, which comparison should include a qualitative (and to the extent reasonably feasible, quantitative) discussion of the differences in the accounting principles and the impact of the change in principles on the presentation of the financial information. A notice of the change in accounting principles will be sent to the MSRB.

(6) Any failure by the City to perform in accordance with this Section 2.05.020(e) shall not constitute an "Event of Default" or "Default" within the meaning of any ordinance(s) or resolution(s) authorizing the issuance of any of the Notes, and the rights and remedies provided to holders or beneficial owners of the Notes under such ordinance(s) or resolution(s) upon the occurrence of such a "Default" or such an "Event of Default" shall not apply to any such failure.

(7) If any of the foregoing provisions or terms of this Section 2.05.020(e), or any application thereof, is held invalid, the invalidity shall not affect other applications of the provisions or terms of this Section 2.05.020(e) which reasonably can be given effect without the invalid provision or term or the application thereof, and to this end, the provisions of this Section 2.05.020(e) are declared to be severable.

(8) None of the provisions of this Section 2.05.020(e) are in any way intended to impose upon, or result in an assumption by, the City or any of its officers, agents or employees, of any special duty or any civil law duty of care as to which any breach or alleged breach thereof could give rise to any claim for damages in tort, and the City hereby expressly disclaims any such duty or responsibility for damages, including (but not limited to) any direct, indirect, special or consequential damages. The provisions of this Section 2.05.020(e) shall not, in any way, create liability or a basis for liability on the part of the City or any officer or employee thereof for any damages that result from failure of the City to timely perform any portion, provision, term or condition of the written undertaking on its part established herein, or for any damages that result from reliance upon any provision of this Section 2.05.020(e) or any administrative decision lawfully made thereunder. However, nothing in this subsection shall operate or be construed to limit the rights of any holder or beneficial owner of any Note to seek enforcement of the undertakings herein expressed through proceedings for a decree of specific performance in equity.

(9) This Section 2.05.020(e) shall inure solely to the benefit of the holders of the Notes as required by Section (b)(5)(i) of the Rule, and shall create no rights in any other person or entity.

(10) The City shall maintain records of all disclosure made pursuant to this Section 2.05.020(e), including the content of such disclosure, the names of the entities with whom such disclosure was filed and the date of filing such disclosure.

(11) The City may, from time to time, appoint or engage an agent to assist it in carrying out its obligations under this Section 2.05.020(e) and may discharge any such agent with or without appointing a successor agent.

(12) Nothing in this Section 2.05.020(e) shall be deemed to prevent the City from disseminating any other information, using the means of dissemination set forth in this subsection or any other means of communication, or including any other information in any Annual Financial Information or notice of occur-

rence of a Material Event in addition to that which is required by this Section 2.05.020(e). If the City chooses to include any information from any document or notice of occurrence of a Material Event in addition to that which is specifically required by this Section 2.05.020(e), the City shall not have any obligation under this Section 2.05.020(e) to update such information or include it in any future disclosure or notice of the occurrence of a Material Event.

(Ord. No. 42-997, § 1; Ord. No. 48-367, § 1, 7-14-09; Ord. No. 49-078, § 1, 9-13-2011; Ord. No. 50-933, § 1, 3-5-19)

Editor's note—Ord. No. 50-933, § 1, adopted Mar. 5, 2019, changed the title of § 2.05.020 from undertaking to provide ongoing disclosure in connection with City of Wichita general temporary notes issued for distribution through public offering to undertaking to provide ongoing disclosure in connection with City of Wichita general obligation temporary notes issued for distribution through public offering.

CHAPTER 2.06. NONDISCRIMINATION

Sec. 2.06.010. Policy prohibiting discrimination.
Sec. 2.06.020. Nondiscrimination in contracting.
Sec. 2.06.030. Definitions.
Sec. 2.06.040. Civil rights declared.
Sec. 2.06.050. Unlawful discriminatory practices.
Sec. 2.06.060. Interpretation.
Sec. 2.06.070. Enforcement.
Sec. 2.06.080. Severability.

Sec. 2.06.010. Policy prohibiting discrimination.

The practice or policy of discrimination against persons by reason of their actual or perceived age, color, disability, familial status, gender identity, genetic information, national origin or ancestry, race, religion, sex, sexual orientation, veteran status or any other factor protected by law ("protected class") is a matter of concern to the City, since such discrimination not only threatens the rights and privileges of the inhabitants of the City but also menaces the institutions and foundations of a free democratic state. It is hereby declared the policy of the City, in exercise of its police power for the protection of the public safety, health and general welfare, for the maintenance of business and good government, and for the promotion of the City's trade and commerce, to eliminate and prevent discrimination or segregation based on a protected class. It is further declared to be the policy of the City to assure equal opportunity and encouragement for every person, regardless of their membership in a protected class, to secure and hold, without discrimination, employment in any field of work or labor for which the person is otherwise properly qualified; to assure equal opportunity for all persons within this City to full and equal public accommodations and the full and equal use and enjoyment of the services, facilities, privileges and advantages of all governmental departments or agencies, and to assure equal opportunity for all persons within this City in housing, without distinction on account of membership in a protected class.
(Ord. No. 51-654, § 1, 10-12-21; Ord. No. 52-279, § 1, 10-24-23)

Sec. 2.06.020. Nondiscrimination in contracting.

(a) It is the policy of the City to promote the principles of equal opportunity in its contracting activities by assuring that those seeking to do business with the City will treat contractors, subcontractors, and employees equally and will not engage in discrimination against their contractors, subcontractors, or employees because of their age, color, disability, familial status, gender identity, genetic information, national origin or ancestry, race, religion, sex, sexual orientation, veteran status or any other factor protected by law ("protected class").

(b) It is also the policy of the City to ensure that work performed on behalf of the City is done in a cost effective and high-quality manner. Employees who are treated fairly are more productive in their jobs and less likely to change jobs, thus helping to ensure that government contracts are both cost effective and completed in a professional manner.

(c) All City contracts for goods or services shall include provisions prohibiting discrimination in employment and in the performance of contracts on the basis of age, color, disability, familial status, gender identity, genetic information, national origin or ancestry, race, religion, sex, sexual orientation, veteran status or any other factor protected by law ("protected class"). This prohibition shall extend to retaliation for opposition to any practices forbidden under this Section, against any person seeking accommodations, advantages, facilities, privileges, services, or membership in all business, social, or other establishments or organizations operated by that contractor. All contractors shall include a similar provision in all subcontracts.
(Ord. No. 51-654, § 2, 10-12-21)

Sec. 2.06.030. Definitions.

The definitions contained in the Kansas Act Against Discrimination, K.S.A. 44-1001 to 44-1044; the Kansas Age Discrimination in Employment Act, K.S.A. 44-1111 to 44-1121; and the Discrimination Against Military Personnel

Act, K.S.A. 44-1125 to 44-1128, all as may be amended from time to time, shall apply to this Chapter unless specifically defined herein.

Aggrieved Individual means any individual who has a belief that such individual has been injured by an Unlawful Discriminatory Practice as set forth herein.

Days means calendar days. If a deadline falls on a day City Hall is not open (e.g. a weekend, a holiday recognized by the City or emergency closure) the deadline will be extended to the next day City Hall is open.

Employee means any individual who is employed by an Employer and receives a salary or wages from such Employer but does not include any individual employed by such individual's parents, spouse or child or in the domestic service of any individual. The term Employee does not include an independent contractor.

Employer means:

(1) Any individual or entity (e.g. corporation, partnership, limited liability company, association, labor organization, mutual company, joint-stock company, trust, unincorporated organization) doing business within the City of Wichita which has four or more Employees for each working day in each of 20 or more calendar weeks in the current or preceding calendar year;

(2) The City; and

(3) Any City contractor.

For purposes of this Chapter, the term does not include:

(1) The United States or any department or agency thereof, a corporation wholly owned by the government of the United States or an Indian tribe; or

(2) A Nonprofit Fraternal or Social Association/Corporation.

Gender Identity means an individual's actual or perceived (by the individual or another) gender-related identity, expression, appearance, mannerisms, or other gender-related characteristics regardless of the individual's designated sex at birth.

Hearing Officer means a Municipal Court Judge of the City.

Investigator means one or more individual(s) designated by the City Manager.

Nonprofit Fraternal or Social Association/Corporation means an association or corporation that meets all of the following requirements:

(1) It is organized in good faith for social or fraternal purposes;

(2) Membership entails the payment of bona fide initiation fees or regular dues;

(3) There exists a regularly established means of self-government by the members thereof clearly set forth in a constitution or bylaws adopted by the membership;

(4) Membership is limited and there is a regularly established means of and criteria for admitting members and for expulsion of members by the existing membership or by their duly elected or appointed delegates; and

(5) It is not operated, directly or indirectly for purposes of profit for any individual or groups of individuals other than the membership as a whole.

To the extent not otherwise included, the term also includes any bona fide membership club that is exempt from taxation under Title 26, Section 501(c) of the United States Code. The term does not include a labor organization.

Place of Public Accommodation shall include every establishment within the City that is open to the general public and offers any product, service or facility. The term Place of Public Accommodation shall include, but not be limited to, all taverns, hotels, motels, apartment hotels, apartment houses with one or more tenant units, restaurants or any place where food or beverages are sold, retail and wholesale establishments, theaters, motion picture houses, museums, bowling alleys, golf courses and all public conveyances, as well as the stations or terminals thereof.

The term Place of Public Accommodation shall not include any establishment operated by a Nonprofit Fraternal or Social Association/Corporation, or bona fide civic, political or religious organization which restricts its products, facilities and services to the members of such association/corporation or organization, their guests, or individuals who promote the principles for which the association/corporation or organization is established or maintained.

Race means traits associated with race, including but not limited to, hair texture and hair styles inclusive, but not limited to, braids, afros, bantu knots, cornrows, curls, locs, twists, or hair that is tightly coiled or tightly curled.

Religious Organization means a church, mosque, temple, synagogue, non-denominational ministry, interdenominational and ecumenical organization, mission organization, faith-based charity, faith-based social agency, faith-based educational institution, or other entity principally devoted to religious practice, teaching or education.

Rent means to lease, to sublease, to let or otherwise to grant the right to occupy premises not owned by the occupant in exchange for payment or other consideration.

Respondent means the individual or entity against whom a complaint alleging discrimination or retaliation has been filed with the City.

Sexual Orientation means an individual's actual or perceived (by the individual or another) emotional, romantic or sexual attraction to other people, such as heterosexual, homosexual, bisexual, pansexual or asexual.

Unlawful Discriminatory Practices means those practices prohibited by Section 2.06.050 of this Chapter.
(Ord. No. 51-654, § 3, 10-12-21; Ord. No. 52-279, § 2, 10-24-23)

Sec. 2.06.040. Civil rights declared.

(a) The right of an otherwise qualified person to be free from discrimination because of that person's age, color, disability, familial status, gender identity, genetic information, national origin or ancestry, race, religion, sex, sexual orientation or military or veteran status is recognized as, and declared to be, a civil right. This right shall include, but not be limited to, all of the following:

(1) The right to obtain and hold employment and the benefits associated therewith without discrimination.

(2) The right to the full enjoyment of any of the accommodations, advantages, facilities or privileges of any place of public accommodation without discrimination.

(3) The right to engage in property transactions, including obtaining housing for rental or sale and credit therefor, without discrimination.

(4) The right to exercise any right granted under this Chapter without suffering coercion or retaliation.

(Ord. No. 51-654, § 4, 10-12-21)

Sec. 2.06.050. Unlawful discriminatory practices.

In order to protect specific individuals within the City from discrimination on the basis of an individual's protected classification, it shall be a duty of each individual or entity doing business within the City to not commit the following Unlawful Discriminatory Practices:

(a) Employment - It shall be an Unlawful Discriminatory Practice for an Employer to refuse to hire or employ, or to discharge from employment or to otherwise discriminate against an otherwise qualified individual in compensation or in terms, conditions, or privileges of employment, because of an individual's protected classification. This chapter shall not apply to a Religious Organization with respect to the employment of individuals performing work connected with the carrying on of the organization's religious teaching, ministry, religious duties or practices, advancement of religion, or other religious activities.

(b) Housing - It shall be an Unlawful Discriminatory Practice for an individual

or entity to discriminate against any individual in the terms, conditions or privileges of the sale or Rent of real property within the City including Rental Housing, or in the provision of services or facilities in connection therewith, on the basis of an individual's protected classification or to discriminate against any individual in such individual's use or occupancy of Rental Housing within the City on the basis of an individuals' protected classification. For purposes of this subsection, "protected class" includes not only the protected classes listed in Section [2.06.010] of this [chapter], but also citizenship.

This provision shall not apply to the Rent of real property containing dwelling units occupied or intended to be occupied by no more than four persons or families living independently of each other if the owner actually maintains and occupies one of such dwelling units as the owner's residence. Additionally, nothing in this Chapter shall prohibit:

(1) A Religious Organization or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a Religious Organization, from limiting the sale, rental or occupancy of real property or Rental Housing which it owns or operates for other than a commercial purpose to individuals of the same religion or individuals who promote the religious principles for which it is established or maintained, or from giving preference to such individuals.

(2) A Nonprofit Fraternal or Social Association/Corporation, which as an incident to its primary purpose or purposes provides real property or Rental Housing which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such real property or Rental Housing to individuals who are members or individuals who promote the principles for which it is established or maintained, or from giving preference to such individuals.

(c) Public Accommodation - It shall be an Unlawful Discriminatory Practice for the owner, operator, lessee, manager, agent, or Employee of any Place of Public Accommodation to refuse, deny or make a distinction, directly or indirectly, in offering its goods, services, facilities, privileges, advantages or accommodations to any individual. For purposes of this subsection, "protected class" includes not only the protected classes listed in Section [2.06.010] of this [chapter], but also citizenship. Nothing in this Chapter shall be interpreted to apply to a Religious Organization's performance of a religious function, including but not limited to the:

(1) Provision of goods, services, facilities, privileges, advantages or accommodations related to the solemnization or celebration of a marriage, or

(2) Performance of its religious teachings, ministry, religious duties or practices, advancement of religion, or other religious activities.

(Ord. No. 51-654, § 5, 10-12-21; Ord. No. 52-279, § 3, 10-24-23)

Sec. 2.06.060. Interpretation.

Nothing in this Chapter shall be construed to:

(a) Prohibit an Employer from requiring an Employee, during the Employee's hours at work, to adhere to reasonable dress or grooming standards not prohibited by other provisions of federal, state, or local law.

(b) Require an Employer to hire unqualified individuals or to retain Employees when there is a legitimate non-discriminatory or non-retaliatory reason to hire another candidate or terminate employment, or prevent any adverse action against an

Employee that would have been taken regardless of the Employee's membership in a protected class.

(c) Prohibit an Employer from requiring all of its Employees, as a condition of employment, to utilize the Employer's applicable established internal human resource procedure(s) to address any allegation of discrimination or retaliation in the workplace. The fact that an Employer requires an Employee to utilize the Employer's applicable established internal human resource procedure(s) to address any allegation of discrimination or retaliation in the workplace shall not, in itself, be deemed a violation of this Chapter. However, an Employee may simultaneously file a complaint with the City as provided in this Chapter, and completion of the Employer's procedures is not a prerequisite to filing a complaint with the City.

(d) Require any person or entity subject to this Chapter to make changes requiring a building permit to any existing facility, except as otherwise required by law.

(e) Prohibit an Employer or Place of Public Accommodation from posting signs for restrooms and dressing rooms based on gender.

(f) Prohibit a Nonprofit Fraternal or Social Association/Corporation or Religious Organization from limiting membership as is calculated by the association/corporation or organization to promote the principles for which it is established or maintained.

(g) Be construed or applied in a manner that violates any law or unlawfully infringes upon any rights under the First Amendment of the United States Constitution, Section 7 of the Kansas Constitution Bill of Rights, the Adoption Protection Act (K.S.A. 60-5322, and amendments thereto), or the Kansas Preservation of Religious Freedom Act (K.S.A. 60-5301 et seq., and amendments thereto).

(h) Make it lawful to retaliate against individuals for exercising their rights to oppose unlawful discrimination.

(Ord. No. 51-654, § 6, 10-12-21)

Sec. 2.06.070. Enforcement.

(a) An Aggrieved Individual may file a written complaint with the City Clerk that the individual has been, or is being, subjected to an alleged Unlawful Discriminatory Practice(s) as prohibited by this Chapter. The complaint may be filed personally or through an attorney (or if a minor, through the minor's parent, legal guardian or attorney) and shall be completed on a form provided by the City. The complaint form shall state the names and contact information of the Aggrieved Individual, the individual(s) and/or entity/entities alleged to have committed the Unlawful Discriminatory Practice(s), a description of the alleged unlawful conduct, and all other information as may be required by the form provided by the City. The complaint form shall only be considered complete if all information required by the City's form has been provided to the extent such information is reasonably available to the Aggrieved Individual.

(b) The complaint form must be filed within one-hundred eighty (180) Days of the alleged Unlawful Discriminatory Practice, unless the act complained of constitutes a continuing pattern or practice of discrimination, in which event, it must be filed within one-hundred eighty (180) Days of the last act of discrimination.

(c) The complaint may be referred to a mediator selected by the City Manager from a list of mediators approved in advance by the City Council. Mediation costs will be paid by the City.

(d) If mediation is not successfully completed within sixty (60) Days of the referral, or a party chooses not to pursue mediation, the complaint shall be referred to the Investigator.

(e) Upon receipt of a completed complaint, the Investigator shall notify the Respondent(s) of the complaint, providing sufficient details related to the complaint so the Respondent(s) may respond. The Investigator shall give the Respondent(s) thirty (30) Days to file a written

answer to the complaint, and to provide any documentation or evidence related to the complaint. The Investigator may, at the request of Respondent(s), extend the answer period an additional thirty (30) Days. If the Respondent accused of violating the provisions of this Chapter is the City, the City will engage an independent Investigator who shall not otherwise be an Employee, agent, or contractor of the City. If the Respondent is the City, nothing in this Chapter shall affect the employee grievance processes in contract or policy.

(f) Following the conclusion of the answer period, the Investigator may initiate an investigation period, requesting that the Aggrieved Individual and/or Respondent(s) provide additional information, documentation, statements or testimony as needed to facilitate the investigation of the complaint. This investigation period shall be concluded within a reasonable period of time following the submission of additional information, documentation, or testimony.

(g) Upon conclusion of the investigation period, the Investigator shall forward all evidence and other information received during the investigation to the Law Department. The Law Department will make a determination whether probable cause exists that: (i) the Respondent(s) committed an Unlawful Discriminatory Practice, and (ii) imposition of a penalty pursuant to this Chapter:

(1) Would not constitute an unlawful burden of a person's right to exercise of religion pursuant to Section 7 of the Kansas Constitution Bill of Rights or the Kansas Preservation of Religious Freedom Act (K.S.A. 60-5301 et seq., and amendments thereto), or an unlawful burden of a person's freedom of speech, expression, or association (as protected by the First Amendment of the United States Constitution or the Kansas Constitution); or

(2) If imposition of a penalty would constitute a burden, application of such burden to the person would be in furtherance of a compelling governmental interest and such application would be the least restrictive means of furthering that compelling governmental interest.

(h) If the Law Department finds that probable cause does not exist, then the Law Department shall notify the Aggrieved Individual and the Respondent(s) within a reasonable period of time, and this notification shall be considered a final order and no further action shall be taken by the City.

(i) If the Law Department finds probable cause does exist, the Law Department shall notify the Aggrieved Individual and Respondent(s) and request conciliation and settlement. If a party refuses to participate in conciliation and settlement, or if a settlement agreement is not executed within sixty (60) Days of the date of the finding of probable cause (unless such time is extended by the Law Department for good cause and with the agreement of all parties), the matter shall be referred to the Hearing Officer for review, who shall sit as an Administrative Judge for purposes of this Chapter.

(j) Upon referral to the Hearing Officer, the Hearing Officer shall schedule a hearing on the complaint. The parties shall be given ten (10) Days' written notice via certified mail of the date, time, and place of the hearing. At such hearing, the parties and the Law Department shall be entitled to call witnesses and to present such other evidence as appropriate. The hearing shall be conducted in accordance with such procedures as may be established by the Hearing Officer, but the rules of evidence used in courts of law need not be strictly enforced.

(k) Any determination of the Hearing Officer that the Respondent(s) committed an Unlawful Discriminatory Practice shall be issued in writing within sixty (60) Days of the hearing, shall be based upon the preponderance of the evidence, and shall set forth the essential elements and facts of the determination. If the Hearing Officer finds that a civil violation of this Chapter has occurred, the Hearing Officer may impose a civil penalty upon the Respondent(s) in the amount of up to $2,000 for each violation. The prevailing party is free to pursue their reasonable and necessary costs and fees accrued during the case.

Any fines collected under this section shall be used to offset the costs of enforcement of this Chapter. The Hearing Officer is further authorized, in his or her discretion and in lieu of a civil penalty, to require reasonable educational requirements or community service upon the Respondent to address violations of this Chapter, by written order. Hearings shall be recorded or transcribed by a court reporter, and transcripts of hearings shall be maintained by Municipal Court.

(l) The filing of a complaint for the alleged violation of this Chapter or a response thereto shall in no way preclude any party from seeking other relief under state or federal law. Appeals from any final determination of the Hearing Officer shall be made pursuant to K.S.A. 60-2101(d) and its amendments.
(Ord. No. 51-654, § 7, 10-12-21)

Sec. 2.06.080. Severability.

Should any section, subsection, sentence, clause or phrase of this Chapter, or the application thereof to any person or circumstance, be declared unconstitutional, invalid or unenforceable, such determination shall not affect the validity of the remaining portions of this Chapter.
(Ord. No. 51-654, § 8, 10-12-21)

CHAPTER 2.07. CODE OF ETHICS

Sec. 2.07.010. Purpose.
Sec. 2.07.020. Definitions.
Sec. 2.07.030. Code of ethics.
Sec. 2.07.040. Ethics Board; ethics officer; procedures.
Sec. 2.07.050. Whistleblower protection.
Sec. 2.07.060. Severability.

Sec. 2.07.010. Purpose.

This Chapter hereby establishes the Code of Ethics for City Officials. The purpose of this Code of Ethics is to establish minimum ethical standards of conduct for elected and appointed officials of the City and to provide procedures for investigating alleged violations of the Code of Ethics. It is intended to prevent unethical behavior, avoid the appearance of impropriety, provide meaningful redress, and encourage transparency.

Government service is a public trust, and those who serve the public as part of its government must perform and discharge their duties consistent with the highest moral principles, serving always the best interests of the City and its citizens. Representative government is based on the consent of the governed, under a system whereby every citizen has a right to expect those who govern or serve in the government to act not for themselves but for the governed as a whole. Because government can act only through its officials and employees, it is ever incumbent upon them to honor the public trust and instill confidence in government by their own integrity and conduct in all official actions.

The provisions of this Code of Ethics will be considered in addition to other legal requirements addressing ethical behavior of elected and appointed officials of the City. If this Code of Ethics and another legal requirement apply to the same behavior in question, the two will be interpreted in harmony if possible, but if not, the more specific legal requirement will govern.
(Ord. No. 52-549, § 1, 9-17-24)

Sec. 2.07.020. Definitions.

(a) *'Active Member of a Political Party'* means an individual who is being paid to work for a political party or campaign, currently serving as a precinct committee member, or currently serving in county, state or national party leadership.

(b) *'Advisory Board'* means any board or commission created by the authority of the City and whose members are appointed by the Mayor, City Council, or the City Manager.

(c) *'Advisory Board Member'* means any member appointed by the Mayor, Council Member, or City Manager to serve on a board or commission created by the authority of the City.

(d) *'Business Entity'* means any corporation, partnership, proprietorship, trust or joint venture in which either the official or their spouse has a legal or equitable interest exceeding $5,000 or 5%, whichever is less.

(e) *'Conflict of Interest'* means a situation in which an official has a substantial interest in an activity which would preclude them from acting in an ethical manner in the execution of their official City duties.

(f) *'Donor'* means an individual, business, or organization that gives or presents an official with something of value.

(g) *'Gift'* means anything accepted by a person, whether tangible or intangible, including but not limited to money, goods, services, discounts, gratuities, hospitality, or favors. This does not include campaign contributions which are properly reported.

(h) *'Official'* means the Mayor, City Council Members, and Advisory Board Members of the City.

(i) *'Patronage'* means an official's act of breaching their official authority to unduly influence the appointment of a person to a City office.

(j) *'Relatives'* means spouse, domestic partner, child, mother, father, mother-in-law, father-in-law, sibling, sister-in-law, brother-in-law, grandparent, grandchild, and any other family member living in the same household.
(Ord. No. 52-549, § 2, 9-17-24)

Sec. 2.07.030. Code of ethics.

City officials shall:

(a) Be dedicated to the ideals of honor and integrity in all public and personal relationships.

(b) Conduct themselves so as to maintain public confidence in the City and its officials.

(c) Make it their duty to improve operations and productivity and use time wisely so all citizens know that full value is being received for each tax dollar spent.

(d) Seek no favors, nor use the prestige of office for private gain, nor use (1) confidential information, (2) information available to you before the City makes it available to the general public, or (3) government equipment or supplies to secure a profit or enhance wealth.

(e) Ensure that expenditures made by the City are in the interest of the City, for the betterment of the City, and only for appropriate City business, and refrain from actions unreasonably benefitting specific individuals or groups at the expense of the city as a whole.

(f) Avoid conflicts of interest by refraining from participating in decisions or being involved in transactions in which officials, their relatives, or business entity have an interest. If, for any reason, involvement cannot be avoided, the official must make a full disclosure of association.

(g) Address constituents' concerns and needs, striving to provide the highest level of service with equity, neither granting special favor nor discriminating against any citizen.

(h) Work in full cooperation with other officials and employees as they carry out the lawful discharge of their duties, unless prohibited by law or recognized confidentiality of material, to perform the operations of government, and refrain from requesting correction of any municipal code violation beyond the proper process, including but not limited to the fixing of traffic tickets.

(i) Refrain from assisting or representing the private interests of another before any commission or board, and refrain from unduly influencing City staff on projects benefiting private parties.

(j) File a yearly report with the City Clerk that includes any gift valued at fifty dollars or more that is intended or has the appearance or effect of influencing the performance of the duties of an official given by a person or group of persons to an official or their relatives, when those who are conferring the gift have an interest in the City or an interest that may be affected by the performance or non-performance of that official.

(k) Take reasonable steps to inform their relatives about this ordinance and the implications of accepting a gift or gifts from someone with an interest in the City or an interest that may be affected by the performance or non-performance of that official.

(l) Avoid the appearance of improper influence and refrain from ever receiving, soliciting, or accepting a gift or gifts valued over one hundred fifty dollars from a specific donor over a one-year period ending on December 31, which is intended or has the appearance or effect of influencing the performance of the duties of an official given by a person or group of persons to an official or their relatives, when those who are conferring the gift have an interest in the City or an interest that may be affected by the performance or non-performance of that official. Any gift not authorized by this subsection may be authorized by the City Council by majority vote in a meeting of the City Council, otherwise such unauthorized gift or gifts must be returned to the donor or transmitted to the City Clerk to be used by the City or to be sold, with the proceeds of such sale deposited into the

general fund of the City. The City Clerk shall be notified within seven business days of the receipt of any gift not authorized by this subsection. The following exceptions apply to this subsection:

(1) An official or their relatives accepting an honor or award presented by an appropriate governmental, professional, or fraternal organization, for the performance of duties. The value of each honor or award shall not exceed one hundred fifty dollars individually.

(2) The Mayor, City Council Members, or their relatives attending an event or meeting hosted by a nonprofit organization, educational institution or service, government, political or policy-based organization, community development organization, or faith-based organization in which the presence of the official is requested. The official may accept complimentary food and admission to the event or meeting from the organization hosting the event or meeting.

(m) Refrain from making any promise, private in nature, the performance of which would require an official to act beyond the proper scope of the duties of the office or act in a manner which would or could compromise the integrity of public office.

(n) Never use any information coming to an official confidentially in the performance of governmental duties as a means for making a private profit or gaining benefit for the official or their relatives.

(o) Never use City equipment or resources for activities outside of official duties.

(p) Prohibit the hiring of officials' relatives for full-time or part-time employment in any department in which the official has a direct policy-making or advisory role.

(q) Refrain from patronage and do not interfere with or express improper interest in the City hiring process.

(r) Remain impartial in their consideration of the City's business, including the approval of public policies and awarding of contracts. Do not be unduly influenced by family relationships, business interests or religious affiliation in the formulation or adoption of rules, regulations, ordinances, resolutions, or other policy matters.

(Ord. No. 52-549, § 3, 9-17-24)

Sec. 2.07.040. Ethics Board; ethics officer; procedures.

(a) There is hereby created an Ethics Board.

(b) The purpose of the Ethics Board shall be to enforce the Code of Ethics.

(c) The Ethics Board shall have seven members. Each Council Member and the Mayor shall have one appointment, which requires approval by a majority of the Council. The term of membership shall be two years.

(d) The members of the Ethics Board shall be subject to the requirements of Sections 2.12.010, 2.12.020, and 2.12.030 of the Code of the City of Wichita, except that Section 2.12.010(9) and Sections 2.12.020(4) and (10) of the Code of the City of Wichita shall not apply to the Ethics Board.

(e) The members of the Ethics Board shall also be subject to the following additional requirements:

(1) May not be a member of the City Council, or the spouse or domestic partner of a member of the City Council.

(2) May not be an employee of the City of Wichita or the spouse or domestic partner of an employee of the City of Wichita.

(3) May not hold elected public office or be a candidate for any elected public office.

(4) May not be an elected or appointed member of any local, state, or national committee of any political party, nor be an active member of a political party or active member of any partisan political club or organization, nor substantially

involved (paid or unpaid) with a current or the most recent campaign for City Council or Mayor in the City of Wichita.

(5) May not have been convicted of a felony or crime of moral turpitude.

(6) Have good moral standing and reputation.

(7) Have no conflict of interest including but not limited to owning business entities under or negotiating a contract with, selling goods or services to, or receiving economic development incentives from the City.

(8) Be representative of the demographics of the City.

(9) Complete a criminal background check prior to City Council approval of appointment.

(f) There is hereby created the office of Ethics Officer, who shall be engaged and compensated as an independent contractor of the City. The Ethics Officer shall:

(1) Provide proactive and remedial education to officials as appropriate, provide responses to ethical inquiries made by officials and the public on matters that are not the subject of a pending complaint, conduct investigations into ethics complaints under this Code of Ethics, and facilitate meetings of the Ethics Board.

(2) Be qualified with a background in academia, law, or other profession that is focused on public service or ethics.

(3) Serve for a term appointment of two years, with the option for reappointment for additional two-year terms.

(4) Be selected by City Council after the Ethics Board interviews and selects no less than one, but no more than three names for the City Council to consider. The City Council will then interview or otherwise vet the candidates and select the Ethics Officer by a cumulative rank voting process at the next regularly scheduled meeting following completion of the vetting process. If the City Council determines that none of the candidates are appropriately qualified, the Ethics Board will be asked to select new candidates for consideration.

(5) Ensure City staff provide a complete copy of the Code of Ethics prior to a newly elected Council Member taking office or, in the case of Advisory Board members, within thirty days of the member's appointment. Ethics training for these City officials will be included in their orientation process provided by City staff.

(6) Ensure periodic training on the Code of Ethics is administered to City officials.

(7) Serve as the resource for ethical inquiries made by officials and the public, along with coordination with outside legal counsel as necessary. Opinions issued by the Ethics Officer or outside legal counsel may be appealed to the Ethics Board, which shall be convened for such purpose. The ruling of the Ethics Board in such an appeal shall be final.

(g) The Ethics Board shall determine alleged violations of the Code of Ethics pursuant to the following procedures:

(1) For consideration by the Ethics Board, an alleged violation of the Code of Ethics must be made in writing using the prescribed form, signed by the complainant(s) under oath and notarized, and filed with the City Clerk. For purposes of this subsection, an electronic submission is considered "in writing." The City Clerk shall date stamp the face of the complaint when received by their office. The Ethics Officer, who may consult with outside legal counsel to the Ethics Board, shall review the complaint and take no further action on any complaint that they determine to be incomplete, frivolous or groundless on its face, or which fails to state a violation of the Code of Ethics. If the Ethics Officer determines the complaint is sufficient, the Ethics Officer shall begin the investigation.

(2) When an investigation begins pursuant to this section, the Ethics Officer shall deliver a copy of the complaint to the respondent(s) against whom the complaint is made, and at the same time provide copies of the complaint to the City Manager and all members of the City Council. In the absence of an Ethics Officer, a member of the Ethics Board shall serve in the place of the Ethics Officer for purposes of determining if a complaint is incomplete, frivolous, or groundless on its face, or fails to state a violation. Selection of a member to serve this purpose generally shall occur on a rotating basis beginning with the District 1 appointee and ending with the Mayor's appointee, although exceptions shall be made based on availability and to avoid selecting a member appointed by the City Council Member who is the subject of a complaint.

(3) The respondent(s) shall have seven business days from receipt of the complaint in which to file a written response to the complaint with the Ethics Officer. If requested within seven business days, the Ethics Officer may extend to 14 business days if satisfied that good cause was shown. The Ethics Officer and/or outside counsel shall perform an investigation and, when completed, present their findings and legal advice to the Ethics Board in executive session after which the Board shall make decisions and vote in the public meeting.

(4) At the conclusion of the investigation, the Ethics Board's written report shall consist of the following items:

(i) Summary of complaint.

(ii) Scope of investigation.

(iii) Summary of facts.

(iv) Applicable section(s) of the Code of Ethics involved.

(v) The findings of the Ethics Board.

(5) This report shall be provided to the complainant(s), the respondent(s), the outside counsel to the Ethics Board, the City Attorney, and the City Council. Within seven business days of the distribution of this report, the complainant(s) or respondent(s) may request additional review by the Ethics Board if there is a dispute on the facts of the complaint or interpretation of the Code of Ethics. At the conclusion of that period of seven business days, if no further review is requested, the findings become final. Any evidence collected during the investigation will be retained for the length of the official's term.

(6) Violation of the Code of Ethics by an elected official may result in any of the following, as determined by the Ethics Board:

(a) Written report of the board summarizing findings and made available to the public.

(b) Required education/training intended to prevent future violation.

(c) Fine of no less than $100 and no more than $1,000 for each violation to be paid by the elected official from personal funds and not from the City budget.

(i) Any fine revenue received shall be designated for ethics education.

(7) Violation of the Code of Ethics by an appointed official may result in any of the following as determined by the Ethics Board:

(a) Written report of the board summarizing findings and made available to the public.

(b) Required education/training intended to prevent future violation.

(c) Recommendation to the City Council to remove the official from their position.

(8) Failure to pay the levied fine within 60 days or get required education/training within reasonable timeframe as determined by the Ethics Officer shall result in the Ethics Board (1) reviewing any extenuating circumstances and (2) considering issuance of a public censure. The Ethics Officer shall present any public censure at the next available meeting of the City Council.

(Ord. No. 52-549, § 4, 9-17-24)

Sec. 2.07.050. Whistleblower protection.

The City will not tolerate intimidation, coercion, or discrimination of any kind against officials, employees, or other individuals who voice opposition to unlawful action.

(a) For purposes of this subsection, 'whistleblower' means a current or former official or employee who discloses information to appropriate City officials or employees that they reasonably believe is evidence of:

(1) A violation of any law, ordinance, rule, or regulation; or

(2) Mismanagement, a gross waste of funds, or an abuse of authority; or

(3) A substantial or specific danger to public health or safety.

(b) No official or employee who in good faith reports a violation shall suffer harassment, retaliation, or adverse consequences. An employee who retaliates against someone who has reported a violation in good faith is subject to discipline up to and including termination of employment. An official who retaliates against someone who has reported a violation in good faith is subject to investigation by the Ethics Board.

(c) Anyone filing a complaint concerning a violation or suspected violation should act in good faith and have reasonable grounds for believing the information disclosed indicates a violation. Any allegations made by an employee or official that prove not to be substantiated and which prove to have been made maliciously or knowingly to be false will be viewed as a serious offense and will be handled accordingly.

(d) No action will be taken or not taken with respect to any employee or official as a reprisal for being a whistleblower.

(Ord. No. 52-549, § 5, 9-17-24)

Sec. 2.07.060. Severability.

If any section, subsection, sentence, clause, or phrase of this ordinance is for any reason held invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this ordinance.

(Ord. No. 52-549, § 6, 9-17-24)

CHAPTER 2.08. ADMINISTRATIVE CODE

Sec. 2.08.010. Office of city manager.
Sec. 2.08.030. Appointment and term.
Sec. 2.08.040. Qualifications.
Sec. 2.08.050. Salary and bond.
Sec. 2.08.060. Oath.
Sec. 2.08.070. Powers and duties generally relative to council.
Sec. 2.08.080. Administration of city affairs; enforcement of laws and ordinances.
Sec. 2.08.090. Appointment of officers and employees.
Sec. 2.08.100. Authority to discipline appointive officers; examination of affairs of departments, officers, etc.
Sec. 2.08.120. Departments created and established.
Sec. 2.08.130. Office of administration.
Sec. 2.08.140. Department of public works.
Sec. 2.08.150. Department of law.
Sec. 2.08.160. Department of water and pollution control.
Sec. 2.08.170. Police department.
Sec. 2.08.180. Fire department.
Sec. 2.08.190. Department of environmental health.
Sec. 2.08.200. Metropolitan area planning department.
Sec. 2.08.210. Department of housing.
Sec. 2.08.215. Department of park and recreation.
Sec. 2.08.216. Department of economic development.
Sec. 2.08.217. Department of finance.
Sec. 2.08.218. Municipal court administrator.
Sec. 2.08.220. Directors of departments responsible to city manager—Division heads responsible to department heads.
Sec. 2.08.230. Duties of officers and employees generally.
Sec. 2.08.240. Appointment of personnel in departments and offices.
Sec. 2.08.260. Authority granted city manager by state law not restricted.

Sec. 2.08.010. Office of city manager.

There is created the office of city manager. The office of city manager shall consist of such deputies, assistants and other employees as may be necessary for the efficient operation of said office. The office of city manager shall be responsible for carrying out the duties and obligations of the city manager as set forth in state statutes, city ordinances, policies and regulations. In addition, the city manager's office shall be responsible for carrying out the duties as may be assigned to the office by the city manager.
(Ord. No. 39-844 § 1)

Sec. 2.08.030. Appointment and term.

The city manager shall be appointed by the city council of the city, and shall hold his office at the pleasure of the board.
(Ord. No. 23-263 § 2)

Sec. 2.08.040. Qualifications.

The city manager shall be chosen solely upon the basis of administrative ability, and his choice shall not be limited by any residence qualifications.
(Ord. No. 23-263 § 2)

Sec. 2.08.050. Salary and bond.

The city manager shall receive a salary to be fixed by city council and shall give bond for the faithful performance of his duties in such amount as may be provided by ordinance.
(Ord. No. 23-263 § 3)

Sec. 2.08.060. Oath.

The city manager shall take and subscribe an oath of office for the faithful performance of his duties as city manager.
(Ord. No. 23-263 § 3)

Sec. 2.08.070. Powers and duties generally relative to council.

The city manager shall have a seat, but no vote, in all public meetings of the council. He shall make recommendations to the council on all matters concerning the welfare of the city. The city manager shall prepare and submit the annual budget of the city to the council, and shall keep the city fully advised as to the financial conditions and needs of the city.
(Ord. No. 23-263 § 4)

Sec. 2.08.080. Administration of city affairs; enforcement of laws and ordinances.

The administration of the affairs and business of the city shall be in the hands of the city manager. He shall see that the laws and the ordinances of the city are enforced.
(Ord. No. 23-263 § 5)

Sec. 2.08.090. Appointment of officers and employees.

The city manager shall appoint and remove all heads of departments and all the subordinate officers and employees of the city. All appointments shall be made upon merit and fitness alone.
(Ord. No. 39-844 § 2)

Sec. 2.08.100. Authority to discipline appointive officers; examination of affairs of departments, officers, etc.

The city manager shall be responsible for the discipline of all appointive officers of the city, and may, without notice, cause the affairs of any department or the conduct of any officer or employee to be examined.
(Ord. No. 23-263 § 7)

Sec. 2.08.120. Departments created and established.

The following named and designated departments and offices of the city are created and established:

(1) Public works department, director of public works;

(2) Law department, director of law and city attorney;

(3) Water department and pollution control, director of water and pollution control;

(4) Police department, chief of police;

(5) Fire department, fire chief;

(6) Department of environmental services, director of environmental services and city public health officer;

(7) Metropolitan area planning department, director of metropolitan planning;

(8) Housing department, director of housing;

(9) Department of finance, director of finance;

(10) Department of park and recreation, director of park and recreation; and

(11) Wichita transit, general manager.
(Ord. No. 46-617 § 1)

Sec. 2.08.130. Office of administration.

The office of administration shall be directly under the city manager and shall consist of such staff as may be necessary to carry on the work of the office. The office of administration shall be responsible for personnel management, public affairs and information, legislative activities, data processing and community facilities management.
(Ord. No. 39-844 § 4)

Sec. 2.08.140. Department of public works.

The department of public works shall consist of a director of public works and such staff as may be necessary to carry on the work of the department. The department of public works shall be responsible for design and preparation of plans for public works projects of the city and for the supervision of the construction of such projects; for the direction and coordination of maintenance for city streets, alleys, and bridges including snow removal; public buildings and ground maintenance; shall be responsible for the central motor pool and for all vehicle and equipment maintenance; shall be responsible for all traffic control regulation and design in the city.
(Ord. No. 39-844 § 5)

Sec. 2.08.150. Department of law.

The department of law shall consist of the city attorney as director of law, and such staff as may be necessary to carry on the work of the department. The department shall be responsible for handling the legal affairs of the city in accordance with this Code and other ordinances of the city and the laws of the state.

The city attorney shall in person or by deputy attend all cases wherein the city is a party in all courts, and shall in person or by deputy attend all official meetings of the city council, and render legal services to all of the departments and officers of the city as may be required.
(Ord. No. 39-844 § 6)

Sec. 2.08.160. Department of water and pollution control.

The department of water and pollution control shall consist of the director of water and pollution control and such staff as may be necessary to carry on the work of the department. The department shall be responsible for all functions of the water and sewer utilities, including administration, operations, planning, maintenance, billing, accounting and customer service.
(Ord. No. 39-844 § 7)

Sec. 2.08.170. Police department.

The police department of the city shall consist of the chief of police and all staff members necessary to carry on the work of the department. The police department shall be responsible for all the police functions and activities of the city relating to the protection of life and property and the suppression and prevention of crime in the city in accordance with the laws of the state, this Code and other ordinances of the city.
(Ord. No. 39-844 § 8)

Sec. 2.08.180. Fire department.

The fire department of the city shall consist of the fire chief and such staff as may be necessary to carry on the work of the department. The department shall be responsible for all activities associated with fire prevention, suppression, training, investigation, inspection, and education.
(Ord. No. 39-844 § 9)

Sec. 2.08.190. Department of environmental health.

(a) The department of environmental services shall consist of a director of environmental services, who shall also serve as the city's public health officer, and such staff as may be necessary to carry on the work of the department. The department is responsible for developing, organizing, coordinating, directing and implementing environmental health programs in the City of Wichita and by interlocal agreement may undertake the same functions for Sedgwick County and other incorporated communities in Sedgwick County.

(b) Unless the context clearly means otherwise, whenever in the Code of the City of Wichita, Kansas reference is made (with or without capitalization) to the Wichita-Sedgwick County department of community health, the Wichita-Sedgwick County department of public health, the Wichita-Sedgwick County board of health, the department of community health, the department of health, health department, the board of health or the department of environmental health, from and after the effective date of the ordinance codified in this section, each such reference shall mean the department of environmental services.

(c) Unless the context clearly means otherwise, whenever in the Code of the City of Wichita, Kansas reference is made (with or without capitalization) to the health officer, the public health officer, the director of community health, the director of community health/housing, the director of public health, the director of the Wichita-Sedgwick county department of community health, the director of the health department of the City of Wichita, Kansas, the environmental health director or the director of the department of environmental health, from and after the effective date of the ordinance codified in this section, each such reference shall mean the director of the department of environmental services.
(Ord. No. 46-617 § 2)

Sec. 2.08.200. Metropolitan area planning department.

The metropolitan area planning department shall consist of a director of metropolitan area planning department and such staff as may be necessary to carry on the work of the department. The metropolitan area planning department shall be responsible for supervising, directing, and coordinating all plans leading to a comprehensive development plan; advise the metropolitan area planning commission, provide technical staff assistance to county and city.
(Ord. No. 39-844 § 11)

Sec. 2.08.210. Department of housing.

The department of housing shall consist of a director of housing and such staff as may be necessary to carry on the work of the department.

The department shall be responsible for city housing activities including public housing. Section 8 vouchers, housing development, home ownership, neighborhood revitalization, and neighborhood improvement services.
(Ord. No. 44-142 § 2)

Sec. 2.08.215. Department of park and recreation.

The department of park and recreation shall consist of a director of park and recreation and such staff as may be necessary to carry on the work of the department. This department shall be responsible for maintenance and operation of parks and recreation facilities and the provision of recreation programs. The department shall provide staff support to the board of park commissioners as may be necessary to permit the Board to carry out its duties under Section 2.12.350(b).
(Ord. No. 40-949 § 2)

Sec. 2.08.216. Department of economic development.

The department of economic development shall consist of the director of economic development and such staff as may be necessary to carry on the work of the department This department shall be responsible for industrial development, and central inspection.
(Ord. No. 39-844 § 13)

Sec. 2.08.217. Department of finance.

The department of finance shall consist of the director of finance and such staff as may be necessary to carry on the work of the department. The department of finance shall be responsible for retirement and insurance; supervision, control of receipts, expenditures and fiscal records of the city; shall issue financial reports and manage the city's debts; shall prepare and administer the city's annual operating budget; shall be responsible for purchasing; investment of monies; issuance of bonds; capital expenditures and all auditing thereof; shall be or designate a secretary of the council and keep minutes of the meetings; shall be responsible for the performance of all the statutory requirements of the office of city clerk; shall administer oaths when required; and shall prepare all necessary documents required for bond transcripts.
(Ord. No. 43-573 § 5)

Sec. 2.08.218. Municipal court administrator.

(a) Pursuant to the provisions of Charter Ordinance No. 135 there is hereby established a municipal court administrator, who shall be appointed by the city manager and shall be an employee of the city. The compensation of the municipal court administrator shall be set by the city council.

(b) The municipal court administrator shall serve as a department head and report directly to the city manager. The municipal court clerk and chief probation officer shall report directly to the municipal court administrator. The municipal court administrator, subject to the direction and control of the city manager, shall be responsible for personnel and administrative matters involving all municipal court employees, probation employees, and warrant office employees, except for those matters that involve administration of the judicial function of the municipal court.

(c) The municipal court administrator shall be responsible to the administrative judge of the Wichita municipal court for the implementation of the policies of the municipal court with respect to the judicial functions of the municipal court.

(d) The municipal court administrator shall be responsible for directing the nonjudicial operations of the municipal court clerk's office, probation section, warrant office and all administrative matters including, but not limited to, preparation of dockets, records, collection and recording of fines, provision of probation services and issue and process of warrants.

(e) Pursuant to Charter Ordinance No. 135, there is hereby established a clerk of the municipal court, who shall be appointed by the city manager and shall be an employee of the city. The compensation of the clerk of the municipal court shall be set by the city council.

The clerk shall issue all process of the court, administer oaths, file and preserve all papers,

CHAPTER 2.10. WICHITA CITIZEN'S REVIEW BOARD*

Sec. 2.10.010. Establishment of the Wichita Citizen's Review Board.
Sec. 2.10.015. Definitions.
Sec. 2.10.020. Purpose of the Wichita Citizen's Review Board.
Sec. 2.10.030. Specific duties of the Wichita Citizen's Review Board.
Sec. 2.10.040. Membership.
Sec. 2.10.045. Qualifications.
Sec. 2.10.050. Terms of office. Members of the Wichita Citizen's Review Board shall serve four-year terms. Removal.
Sec. 2.10.060. Meetings and officers.
Sec. 2.10.070. Recommendations of the Board.
Sec. 2.10.080. Reserved.
Sec. 2.10.090. Review of post discipline or administrative matters.

Sec. 2.10.010. Establishment of the Wichita Citizen's Review Board.

The Wichita Citizen's Review Board is hereby established.
(Ord. No. 50-603, § 1, 10-17-17)

Sec. 2.10.015. Definitions.

As used in this chapter, the following terms shall be defined as:

Conviction means: a) entering into a diversion agreement for a felony offense or a crime of domestic violence in lieu of further criminal proceedings on a complaint alleging a violation of such crime; b) conviction of a violation of an ordinance of a city in this state, a resolution of a county in this state, or any law of another state which would constitute a crime; and c) receiving punishment under the Uniform Code of Military Justice or Kansas Code of Military Justice for an act which was committed on a military reservation and which would constitute a crime if committed off a military reservation in this state.

Domestic violence means: an act of violence against a person with whom the offender is involved or has been involved in a dating relationship, or an act of violence against a family or household member by a family or household member. Domestic violence also includes any other crime committed against a person or against property or any municipal ordinance violation against a person or against property, when directed against a person with whom the offender is involved or has been involved in a dating relationship or when directed against a family or household member by a family or household member.

Enforcement action means: any law enforcement act during a nonconsensual contact with an individual(s) in 1) determining the existence of probable cause to take into custody or to arrest an individual; 2) constituting a reasonable and articulable suspicion that an offense has been or is being committed so as to justify the detention of an individual or the investigatory stop of a vehicle; or 3) determining the existence of probable cause to conduct a search of an individual or a conveyance.

Immediate family means: a parent, stepparent, sibling, child, stepchild or spouse.

Post discipline means: any administrative, civil or criminal investigation of officer misconduct has been concluded, including any and all appeals, grievances or other remedies available to the officer have been exhausted.

Racial or other biased-based policing means: the unreasonable use of race, ethnicity, national origin, gender or religion by a law enforcement office in deciding to initiate an enforcement action. It is not racial or other biased-based policing when race, ethnicity, national origin, gender or religion is used in combination with other identifying factors as part of a specific individual description to initiate an enforcement action.
(Ord. No. 50-603, § 2, 10-17-17)

Sec. 2.10.020. Purpose of the Wichita Citizen's Review Board.

The purpose of the Wichita Citizen's Review Board (hereafter "Board") is to advise and assist the City of Wichita and its police department in

*__Editor's note—__Ord. No. 50-603, §§ 1—11, Oct. 17, 2017, amended ch. 2.10 in its entirety to read as herein set out. Former ch. 2.10, §§ 2.10.010—2.10.080, pertained to Wichita Community Advisory Board, and derived from Ord. No. 49-282, §§ 1—8, adopted June 19, 2012.

policy development, education, community outreach and communications related to police community relations.

The Board will work to create a dialogue between community representatives and the Wichita Police Department. A primary purpose of the Board will be to improve relations between law enforcement and the community and be available to provide community perspective on policy, programs, and priorities of the department.
(Ord. No. 50-603, § 3, 10-17-17)

Sec. 2.10.030. Specific duties of the Wichita Citizen's Review Board.

The Wichita Citizen's Review Board shall:

1. Assist the Police Department with community outreach opportunities.

2. Advise the Police Department about community concerns.

3. Receive annual reports regarding racial and other biased-based policies from the Wichita Police Department.

4. Serve as the Community Advisory Board, as set forth in K.S.A. 22-4611b, to assist the City of Wichita and its police department in policy development, education, community outreach and communications related to racial and other biased-based policing.

5. Review existing police department policies, procedures, and practices when necessary.

6. Review post discipline findings of an official Professional Standards Bureau Investigation of misconduct by law enforcement officers upon request of the Chief of Police or the Board. The Board may issue a written report of the Board's findings and recommendations of such review of a Professional Standards investigation. This written report shall be considered an "open record" under the Kansas Open Records Act.

(Ord. No. 50-603, § 4, 10-17-17; Ord. No. 51-729, § 1, 4-5-22)

Sec. 2.10.040. Membership.

a. The Board shall consist of thirteen (13) members. The Mayor and City Council will appoint seven members. Six members will be appointed by the City Manager. Members shall be residents of the City of Wichita.

b. Membership of the Board will reflect the diversity of the residents of the City of Wichita, including ethnicity, race, gender, religion, sexual orientation, socio-economic, age, and residency.

c. Board members selected should be individuals with an interest or experience in police and/or community relations.
(Ord. No. 50-603, § 5, 10-17-17; Ord. No. 50-912, § 1, 1-8-19; Ord. No. 51-729, § 2, 4-5-22)

Sec. 2.10.045. Qualifications.

a. Individuals must possess the following qualifications to be appointed to the Board:

1. Be at least eighteen (18) years of age;
2. Be a resident of the City of Wichita;
3. Not be employed by the City of Wichita or be the immediate family member of an employee of the City of Wichita;
4. Not be a member of or the immediate family member of any member of the Wichita City Council;
5. Be a citizen of the United States;
6. Have no pending criminal charges in any local, state, or federal jurisdiction or court of law;
7. May not currently be on probation, parole, or participating in a diversion or deferred judgment agreement for any misdemeanor conviction for the following offenses:
    a. Possession of controlled substances;
    b. Battery or resist of a law enforcement officer;

c. Crimes of dishonesty or false statements; or

d. Crimes of moral turpitude, which include charges of prostitution, patronizing a prostitute, promoting prostitution, sale of sexual relations, buying sexual relations, soliciting for immoral purposes, indecent exposure, lewd and lascivious behavior, sodomy, promoting sodomy for hire, patronizing a person offering sodomy for hire, sexual battery, loitering for the purposes of solicitation, indecent liberties with a child, incest, adultery, bigamy, promoting obscenity, promoting obscenity to minors, displaying material harmful to minors, and possession, sale or distribution of any illegal drug.

8. Is not registered as a sex offender with any state, county, or local government;

9. May not have been convicted of a felony or a misdemeanor domestic violence offense as defined by Section 1.06.010 of the Code of the City of Wichita or the statutes of the State of Kansas;

10. Is not an elected local, state, or federal public official or a candidate for any such office;

11. Is not a party or representative of a party making a claim against the City of Wichita for any action or inaction of an employee of the City of Wichita;

12. Is not a present law enforcement officer or the immediate family member of any such law enforcement officer.

In addition to the above qualifications, all applicants (or members, where applicable) for appointment to the board must:

1. Submit to a criminal background check; and

2. If appointed to the Board:

a. Be enrolled in the Wichita Police Department's Citizens' Police Academy within the third available academy session beginning after his or her appointment;

b. Complete racial profiling training presented by the Kansas Attorney General within six (6) months of appointment;

c. Participate in KOMA/KORA training provided by the City of Wichita within a reasonable time after appointment.

d. Sign a confidentiality agreement that information reviewed and discussed regarding the post discipline review of a Professional Standards investigation will be kept confidential and not be disclosed to the public.

(Ord. No. 50-603, § 6, 10-17-17; Ord. No. 50-912, § 2, 1-8-19)

Sec. 2.10.050. Terms of office. Members of the Wichita Citizen's Review Board shall serve four-year terms. Removal.

a. Members of the Board shall serve a term of two years. All Board appointments shall begin on April 1st of each year. Except as set forth below, no member shall serve more than four consecutive full terms. Any individual serving as an appointed board member, on the date of passage of these amendments, shall continue to serve until a successor has been duly appointed and qualified. Such individuals shall be eligible for re-appointment of no more than two additional two-year terms. Members shall be notified in writing as to whether they will be reappointed to the Board.

b. In the event a vacancy occurs or the individual no longer meets the eligibility requirements during the term of any member, the City Manager, Mayor or City Council Member may appoint a successor to serve the unexpired term. A successor appointed to complete an unexpired term shall be eligible to serve up to four consecutive terms in addition to the unexpired term. Members appointed by the Mayor or City Council

will be replaced by the Mayor or City Council. Members appointed by the City Manager will be replaced by the City Manager.

c. A member may be removed from the Board for the following reasons:

1. No longer meets the eligibility requirements described in Section 2.10.045;
2. Misses more than three (3) consecutive board meetings or fifty percent of board meetings in a twelve (12) month period;
3. Fails to attend and complete racial profile training, KOMA and KORA training, and the Wichita Police Department's Citizens Police Academy within the times specified in Section 2.10.045;
4. Does not pass the criminal background check in accordance with the criteria set forth in Section 2.10.045 of the Code of the City of Wichita, except subsection (7)(b), "battery or resist law enforcement officer";
5. Fails to comply with and abide by the terms of the confidentiality agreement for board membership.

Members appointed by the Mayor and City Council shall be subject to removal by the Mayor or City Council. Members appointed by the City Manager shall be subject to removal by the City Manager.
(Ord. No. 50-603, § 7, 10-17-17; Ord. No. 50-912, § 3, 1-8-19; Ord. No. 51-729, § 3, 4-5-22)

Sec. 2.10.060. Meetings and officers.

a. The Board shall meet at least once quarterly at the times and places established by the Board. The meetings shall be subject to all applicable provisions of the Kansas Open Meetings Act, K.S.A. 75-4317, *et seq*. The City Manager, after notice, may call additional meetings if necessary to address significant or time sensitive issues.

b. On or before July 1 of each year, the Board shall meet and organize its membership by electing a chairperson, vice-chairperson and secretary. The terms of such offices shall be for a period not to exceed two years.

c. A member of the Wichita Police Department shall attend all meetings.

d. Notice and minutes of all meetings shall be provided to the City Clerk.

e. The Board shall abide by the Kansas Open Meetings Act, K.S.A. 75-4317 *et seq.*, and the Kansas Open Records Act, K.S.A. 45-215 *et seq*.
(Ord. No. 50-603, § 8, 10-17-17; Ord. No. 50-912, § 4, 1-8-19)

Sec. 2.10.070. Recommendations of the Board.

Recommendations of the Board shall be approved by majority vote of the members present and voting. The quorum required for the Board to conduct business shall be the number of members representing at least one half of the total number of members duly appointed to the Board. The Board may adopt lawful rules, regulations, and by-laws, consistent with the provisions of this chapter as it deems necessary for its operation.
(Ord. No. 50-603, § 9, 10-17-17; Ord. No. 50-912, § 5, 1-8-19)

Sec. 2.10.080. Reserved.

Sec. 2.10.090. Review of post discipline or administrative matters.

a. In addition to the responsibilities set forth in this Chapter, the Board may review, at the request of the Chief of Police or the Board, cases of misconduct of Wichita Police Department personnel investigated by Professional Standards Bureau. Only cases which are post discipline may be reviewed. Review shall not be heard until all pending case(s) and any applicable appeals, grievances or other review of the incident have been concluded. A request by the Board to review post discipline findings must be made no later than five years from the date the discipline was imposed or completion of the investigation by Professional Standards. The Board, in executive session, shall be provided the disciplinary summary of any officer(s) involved in a complaint reviewed by the Board. Personal identifiers of the officers will be redacted. The disciplinary summary may include disciplinary history sur-

rounding excessive force, officer-involved shootings and false or dishonest reports of any officer(s) involved, whether the complaint was founded or unfounded and detail any disciplined administered, if there was any discipline.

b. Review of post discipline or administrative matters heard by the Board shall be considered to be the review of personnel matters. Disciplinary action is a confidential personnel matter and will not be revealed to the public. Pursuant to K.S.A 75-4319(b)(1), the review of these matters will not be open to the public.

c. The Board shall establish all necessary procedures to implement the review of post discipline matters brought before them. Included within these procedures will be notification to all applicable police personnel involved in the review in accordance with the Police Department Procedure Manual. The individual making the initial complaint to the Professional Standards Bureau shall be notified of the Board's review of PSB findings and may address the Board during the executive session portion of the meeting when the Board is reviewing the matter. Such individual will not be allowed to attend the Board's deliberation or discussion of the complaint while in executive session. A copy of any written decision or findings made by the Board after its review will be provided to the complainant. All police reports, videos, interviews, or other investigative files submitted to the Board for review shall have the personal identifiers of all involved citizens, witnesses and officers redacted.

d. The Board's review will be for the purpose of reviewing any applicable administrative regulations and advising the Chief of Police, the City Manager, the Mayor and City Council on practices and training relevant to issues or concerns uncovered as part of the investigation.

e. All deliberations of the Board will be confidential. Following such deliberations, the Board may issue a written report regarding its findings and recommendations. This written report shall be considered an "open record" under the Kansas Open Records Act. The report shall not name the officer or officers involved in the Professional Standard's Investigation.

The individual bringing the initial PSB complaint, Chief of Police, Professional Standards Bureau, City Manager, the Mayor, City Council, and any involved personnel will be notified in writing of the Board's decision and receive a copy of any written report issued by the Board.
(Ord. No. 50-603, § 11, 10-17-17; Ord. No. 50-912, § 6, 1-8-19; Ord. No. 51-729, § 4, 4-5-22)

CHAPTER 2.11. DIVERSITY, INCLUSION AND CIVIL RIGHTS ADVISORY BOARD

Sec. 2.11.010. Establishment of the Diversity, Inclusion and Civil Rights Advisory Board.
Sec. 2.11.015. Definitions.
Sec. 2.11.020. Purpose of Diversity, Inclusion and Civil Rights Advisory Board.
Sec. 2.11.030. Specific duties of the Diversity, Inclusion and Civil Rights Advisory Board.
Sec. 2.11.040. Membership.
Sec. 2.11.045. Qualifications.
Sec. 2.11.050. Terms of office and removal.
Sec. 2.11.060. Meetings and officers.
Sec. 2.11.070. Recommendations of the Board.
Sec. 2.11.080. Bylaws.

Sec. 2.11.010. Establishment of the Diversity, Inclusion and Civil Rights Advisory Board.

The Diversity, Inclusion and Civil Rights Advisory Board ("Board") is hereby established.
(Ord. No. 51-400, § 1, 12-22-20)

Sec. 2.11.015. Definitions.

As used in this chapter, the following terms shall be defined as:

1. "Bias" is systematic patterns where our brains stray from rationality in judgment which can result in attitudes for or against a person, group or concept especially in a way considered to be unfair.
2. "Culture" is the attitudes and behavior characteristic of a particular social group.
3. "Discrimination" is unfair treatment because of race, color, religion, sex, national origin, disability, age or genetic information.
4. "Diversity" refers not only to innate diversity (like race, age, gender, etc.), but also behavioral diversity like cultural fluency and cross-functional knowledge. It means understanding that each individual is unique and recognizing our individual differences.
5. "Equality" is treating everyone the same way while assuming that everyone starts out on equal footing with equal opportunities.
6. "Equity" is working toward fair outcomes for people or groups by treating them in ways that address their unique barriers.
7. "Inclusion" is the result of welcoming, respecting, supporting, involving, valuing and empowering those around you equally.
8. "Unconscious Bias" is an implicit association, whether about people, places, or situations, which are often based on mistaken, inaccurate, or incomplete information and include the personal histories we bring to the situation.

(Ord. No. 51-400, § 2, 12-22-20)

Sec. 2.11.020. Purpose of Diversity, Inclusion and Civil Rights Advisory Board.

The purpose of the Diversity, Inclusion and Civil Rights Advisory Board is to nurture organizational development to create a culture that values intrinsic diversity, civil rights and inclusion in services, programs and policies by identifying and addressing discrimination and barriers to diversity, inclusion and civil rights, and initiating equitable strategies to connect the City of Wichita with community partners.
(Ord. No. 51-400, § 3, 12-22-20)

Sec. 2.11.030. Specific duties of the Diversity, Inclusion and Civil Rights Advisory Board.

The Diversity, Inclusion and Civil Rights Advisory Board shall:

1. Make recommendations to the Mayor and City Council on strategies to engage Wichita's diverse residents, business and community leaders.
2. Work with residents, staff, and elected officials to develop, update and implement a strategic plan that guides the work of the Wichita's Diversity, Inclusion and Civil Rights Advisory Board.
3. Promote the work of the Diversity, Inclusion and Civil Rights Advisory Board

through collaborations, presentations and other community outreach and initiatives.

4. Serve as a conduit for community engagement, education and gathering input that will influence the development of recommendations presented to the Mayor and City Council.

(Ord. No. 51-400, § 4, 12-22-20)

Sec. 2.11.040. Membership.

1. The Board shall consist of no more than seventeen (17) members appointed by the Mayor and City Council.

2. Membership of the Board will reflect the diversity of residents of the City of Wichita, including ethnicity, race, gender, gender identity, religion, sexual orientation, socio-economic and age.

3. Board members selected should be individuals with an interest or experience in diversity, equity, inclusion and/or civil rights.

(Ord. No. 51-400, § 5, 12-22-20)

Sec. 2.11.045. Qualifications.

1. Individuals must possess the following qualifications to be appointed to the Board:

a. Must live or work within the City of Wichita.

b. Not be employed by the City of Wichita or be the immediate family member of an employee of the City of Wichita.

c. Not be a member of or the immediate family member of any member of the Wichita City Council.

d. Is not registered as a sex offender with any state, county, or local government.

e. Is not an elected local, county state, or federal public official or a candidate for any such office.

f. Is not a party or representative of a party making a claim against the City of Wichita for any action or inaction of an employee of the City of Wichita.

2. In addition to the above qualifications, all applicants (or members, where applicable) for appointment to the board must submit to a background check.

3. If appointed to the Board:

a. Complete diversity and inclusion training to be developed/identified in partnership with the City Manager.

b. Complete KOMA/KORA training provided by the City of Wichita prior to voting on any item before the Board.

(Ord. No. 51-400, § 6, 12-22-20; Ord. No. 51-723, § 1, 3-8-22)

Sec. 2.11.050. Terms of office and removal.

Members of the Diversity, Inclusion and Civil Rights Advisory Board shall serve two-year terms.

1. Diversity, Inclusion and Civil Rights Advisory Board terms shall commence April 1st and expire March 31st. The maximum term of all members shall be not more than four terms. A term is equal to two years of service. A vacancy shall be filled for the unexpired term of a member in the same manner as an original appointment.

2. The minimum number of members of the Diversity, Inclusion and Civil Rights Advisory Board shall be seven (7) members.

3. The members of the Diversity, Inclusion and Civil Rights Advisory Board shall be appointed from the broadest possible base of the community at large, with consideration from the following groups:

a. Youth (age 16—18).

b. Young Adult. (Age 19—24.)

c. Disability Services. (Person with a disability.)

d. LGBTQ.

e. Veteran.

f. Faith Leader. (Faith leaders are people of all genders who are recognized by their faith community, both formally or informally, as play-

ing authoritative and influential leadership roles within faith institutions to guide, inspire or lead others.)

g. NAACP. (Officer, Board member or designee.)

h. USD 259. (Director of Equity, Diversity and Accountability or designee.)

i. Women's Advocacy Group.

j. Homeless Services. (An individual who has experienced homelessness.)

k. A community member of an underrepresented group.

l. Seven Community members, one appointment per Council Member and Mayor.

4. In the Board's first year, appointments shall be limited to a total of 11 individuals, seven of whom will be the individual appointments of the Mayor and Council Members pursuant to Section 3 and four of whom will be at-large appointments by the Mayor from the groups identified in Section 3(a-1), all of which are to be approved by the City Council. These will be considered a partial term during the development of the Board. The first full term will commence April 1, 2022, through March 31, 2024.

5. The City Manager will assign staff to serve as the *ex officio* secretary to Diversity, Inclusion and Civil Rights Advisory Board for purposes of gathering data from city departments, maintaining records, minutes and the handling of administrative matters without the right to vote or to perform any other function than provide administrative services, with the oversight of the Board's Secretary. The *ex officio* secretary will submit minutes to the City staff liaison to post along with the agenda package.

6. Any member of the advisory board shall be removed from office by the City Council after due notice and hearing for nonattendance at three consecutive meetings, or for absence of more than fifty percent of the meetings held during any twelve-month period of time. A meeting canceled for lack of a quorum is considered a meeting for purposes of recording attendance. The *ex officio* secretary will provide written notice to the non-attending board or commission member and the City Manager. A vacancy shall be declared unless the board member requests a hearing before the City Council within ten days after notice is provided.

7. Each member of the advisory board shall disclose any conflict of interest, as defined in the bylaws to be adopted by the Board, as may arise in connection with matters being considered by the advisory board of which they are a member and shall refrain from discussing or voting on any such matters.

8. All appointments shall be made to city boards and commissions by written notice of appointment, which notice shall clearly state that such appointment is made subject to all the provisions outlined within, the term of the appointment, and that members so appointed may be removed by the City Council for violation of any of the rules and regulations hereby established.

(Ord. No. 51-400, § 7, 12-22-20; Ord. No. 51-723, § 2, 3-8-22)

Sec. 2.11.060. Meetings and officers.

1. The Diversity, Inclusion and Civil Rights Advisory Board will meet on a monthly basis, with appropriate notice to the public, and with the appropriate provisions that meetings may be called by any one of the principal officers (chair or vice-chair) or by any majority of the members.

2. The minimum number of officers of the Diversity, Inclusion and Civil Rights Advisory Board shall be not less than three officers to be known as a chair, co chair and parliamentarian notwithstanding any other provision of this Code to the contrary, and such other officers as such board itself may deem necessary. All officers are to be elected by the members of the board for a

maximum of one term. Officer elections will occur on or before October 1st of each year providing the officer and officers-elect with a three-month transition period. The terms of such offices shall not exceed two years.

a. Chair - The chair shall preside at all regular meetings, call special meetings as deemed necessary, and be responsible for preparing the agenda for meetings with the assistance of the City staff liaison. The Chair shall represent the Board to the public and may give presentations and provide testimony. Additionally, the Chair shall serve as the deciding vote in the event of a tie.

b. Co-Chair - The co-chair shall serve when the Chair is absent or not participating in a particular agenda item.

c. Parliamentarian - The Parliamentarian shall preserve the order and decorum of the meeting based on the Roberts Rules of Order Revised, subject to an appeal to the majority of the Diversity, Inclusion and Civil Rights Board.

3. City Staff Liaisons - The city staff liaisons shall provide assistance, including, but not limited to: arranging the meeting space and time; notifying Board members and the public; distributing agendas and minutes; providing information about relevant city policies, procedures, plans, and procedures, and external resources to the Board; training new members, and requesting budget funds annually for the Board. The staff liaison is not a member or officer of the Board.
(Ord. No. 51-400, § 8, 12-22-20; Ord. No. 51-723, § 3, 3-8-22)

Sec. 2.11.070. Recommendations of the Board.

Recommendations of the Board shall be approved by majority vote of the members present and voting. The quorum required for the Board to conduct business shall be the number of members representing at least one-half of the total number of members duly appointed to the Board. The Board may adopt lawful rules, regulations and bylaws, consistent with the provisions of this Chapter as it deems necessary for its operation.
(Ord. No. 51-400, § 9, 12-22-20)

Sec. 2.11.080. Bylaws.

1. Board members will develop bylaws by March 31, 2021 and submit to City for legal review.

2. A majority of Board members may propose to amend the Board's bylaws at a regularly scheduled meeting, provided that the meeting agenda specifically mentions the proposed amendment to the bylaws.

3. The Board must send the proposed amendments to the staff liaison for legal review.
(Ord. No. 51-400, § 10, 12-22-20)

CHAPTER 2.12. BOARDS, AGENCIES AND COMMISSIONS

Sec. 2.12.010. Policies for boards and commissions—Minimum standards of conduct and qualifications of appointive members of boards and commissions.
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Sec. 2.12.360. Same—Meetings, organization, staff support.
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Sec. 2.12.662. Duties of Wichita Sustainability Integration Board.
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Sec. 2.12.810. Reserved.
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Sec. 2.12.1019. Same—Criteria for determination of significance.
Sec. 2.12.1019.1. Same—Historic district designation criteria.
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Sec. 2.12.1301. Purpose of the Food and Farm Council.
Sec. 2.12.1302. Food and Farm Council; powers and duties.
Sec. 2.12.1303. Food and Farm Council; organization and dissolution.
Sec. 2.12.1304. Food and Farm Council; membership.
Sec. 2.12.1305. Food and Farm Council; meetings.
Sec. 2.12.1306. Food and Farm Council; severability.

Sec. 2.12.010. Policies for boards and commissions—Minimum standards of conduct and qualifications of appointive members of boards and commissions.

The following rules and regulations shall govern the qualifications and conduct of members appointed to the regulatory and advisory boards and commissions of the City, except as provided hereinafter:

(1) All persons appointed to any board or commission shall be residents of the city or shall reside within the territory subject to the jurisdiction of the respective board or commission, except in the case of members of the technical boards hereafter identified. Persons appointed to the board of electrical appeals, the board of code standards and appeals, the board of appeals of air conditioning, refrigeration and warm air heating, the board of appeals of plumbers and gas fitters, or the successors thereof, shall not be subject to residency requirements, provided that non-residents shall not make up more than two members less than a quorum of any such technical board, and provided further, that any non-resident member shall maintain a city-issued certificate or license pertaining to a trade covered by the board on which the non-member serves.

(2) No person regularly employed on a full-time basis by the City shall be appointed to any board or commission except in the case of members of the personnel advisory board and the employee retirement board.

(3) No member of the immediate family of any member of the city council shall be appointed to a City board or commission.

(4) Except as otherwise provided, no person shall be appointed for service as a member of more than one board or commission of the City at the same time; provided, that persons selected to serve on the citizens advisory committee for the workable program for community improvement and members of the Wichita Sustainability Integration Board shall be exempt from the provisions of this subsection.

(5) No person shall be appointed to any board or commission who has served for eight consecutive years on such same board or commission unless two years have elapsed since the last service. Provided, that service prior to July 1, 1987, shall not be counted in determining eligibility for appointment under this provision.

(6) Except when otherwise required by statute, as nearly as practicable, fifty percent of all members of City boards and commissions shall be public members whose business or professions are not related directly to the affairs conducted by the board or commission to which such persons are appointed.

(7) Voting. All City boards and commissions shall discharge the responsibility of their appointive office and shall vote on all matters coming before the board or commission, except in those particular cases of conflict of interest approved by the presiding officer, in which case a member may request permission and may be authorized to pass his vote. Unless a member of the board or commission votes audibly to the contrary, or unless a member of the board or commission is granted permission by the presiding officer to pass his vote on a particular matter, his silence in voting shall be recorded as an affirmative vote.

(8) Conflict of Interest. Each board or commission member of the city shall refrain from violating any of the statutes of the state (K.S.A. 75-4301 et seq.) which regulate conflicts of interest of public officers and employees, where such statutes are applicable to the board or commission members.

(9) Public Participation. It is the policy of the city to allow public participation on items coming before each board and commission in open meeting. Following the presentation of each item on the agenda, the matter shall be opened for discussion from the floor by members of the public. Each public member shall be subject to a limitation of five minutes for each presentation unless extended by a vote of the majority of the board or commission. The presiding officer shall have the discretion to reasonably limit public comment where such presentation is exercised in a dilatory manner, is unduly repetitious or is not pertinent to the agenda item. Such time standards shall not be construed to restrict public discussion or hearings where otherwise controlled by ordinance or state or federal law. Rules of decorum as provided in this Code for members of the public before the City Council shall be observed where appropriate. Any members of the public shall be allowed to submit items for the agenda, except for items pertaining to personnel, litigation, and other matters subject to executive session. Members of the public desiring to so present matters to the board or commission shall submit a request in writing stating the name of the individual(s) desiring to be heard and the matter to be presented, which request shall be submitted in the time and matter provided by such board or commission for placing items on its agenda. Items for the agenda unusually detailed or complicated, thus requiring more than five minutes for

presentation, may be presented in writing prior to the meeting to allow for duplication and distribution to the board or commission.

(Ord. No. 45-794 § 1; Ord. No. 40-038 § 1; Ord. No. 51-626, § 1, 9-14-21)

Sec. 2.12.020. Organizational structure of appointive boards and commissions.

The following rules and regulations shall govern the organizational structure of appointive boards and commissions of the city:

(1) As used in this ordinance, the term "appointive boards and commissions" includes but is not limited to the following

1. Airport Advisory Board
2. Animal Control Advisory Board
3. Board of Code Standards and Appeals
4. Board of Electrical Appeals
5. Bicycle and Pedestrian Advisory Board
6. Board of Park Commissioners
7. Wichita Board of Zoning Appeals
8. Community Services Block Grant Review Committee
9. District Advisory Boards for Districts 1, 2, 3, 4, 5 and 6
10. Design Council
11. Wichita Employees Retirement System Board of Trustees
12. Historic Preservation Board
13. Sedgwick County Juvenile Corrections Board
14. Library Board
15. Metropolitan Area Planning Commission
16. Public Building Commission
17. Police and Fire Retirement Board
18. Plumbers and Gas Fitters Board of Appeals
19. Sedgwick County Community Corrections Advisory Board
20. Self-Supported Municipal Improvement District Advisory Board
21. Storm Water Advisory Board
22. Transit Advisory Board
23. Tourism Business Improvement District Board
24. Wichita/Sedgwick County Access Advisory Board

This term shall not include temporary or ad hoc committees established by the City Council or City Manager.

(2) All appointments to boards and commissions shall expire March 31, 2018 whether made before or after the effective date of the ordinance codified in this section, and thereafter all terms shall commence April 1st and expire on March 31st. The terms for board members set to expire prior to March 31st shall be extended until March 31, 2018. Except as set forth below, the maximum term of all members shall be not more than two years or until a successor has been duly appointed and qualified. A vacancy shall be filled for the unexpired term of a member in the same manner as an original appointment.

(3) The minimum number of members of any board or commission shall be five members.

(4) The minimum number of officers of any board or commission shall be not less than three officers to be known as a president and two vice-presidents notwithstanding any other provision of this Code to the contrary, and such other officers as such board itself may deem necessary, all officers to be elected by the members of the board for a maximum term of not to exceed one year, and for a maximum tenure of office not to exceed two consecutive terms.

(5) A regular schedule of meetings shall be established by each board or commission,

with appropriate notice to the public, and with a minimum schedule providing for meetings to be held not less than once each month and more often as the work load requires, and with the appropriate provisions that meetings may be called by any one of the principal officers (president or vice-presidents) or by any majority of the members.

(6) The members of each board or commission shall be appointed from the broadest possible base of the community at large, and not from any specific organization or group except as may be otherwise provided for advisory boards.

(7) A regular full-time city employee shall be assigned as ex officio secretary to each board and commission for purposes of maintaining records, minutes and the handling of administrative matters without the right to vote or to perform any other function than provide administrative services.

(8) Any member of a board or commission shall be removed from office by the City Council after due notice and hearing for nonattendance at three consecutive meetings, or for absence of more than fifty percent of the meetings held during any twelve-month period of time. A meeting canceled for lack of a quorum is considered a meeting for purposes of recording attendance. The ex officio secretary will provide written notice to the non-attending board or commission member and the City Manager. A vacancy shall be declared unless the board member requests a hearing before the City Council within ten days after notice is provided.

(9) Each member of any board or commission shall disclose any conflict of interest as may arise in connection with matters being considered by the board or commission of which he is a member, and shall refrain from discussing or voting on any such matters.

(10) The City Council shall reserve the right to review all decisions of subsidiary boards and commissions except as may otherwise be provided by law, in order that aggrieved citizens may have the right of appeal to an elected body from the decision of an appointive body of the city.

(11) All appointments shall be made to city boards and commissions by written notice of appointment, which notice shall clearly state that such appointment is made subject to all the provisions outline herein, the term of the appointment, and that members so appointed may be removed by the City Council for violation of any of the rules and regulations hereby established.

(Ord. No. 50-576, § 1, 8-15-17)

Editor's note—Ord. No. 50-576, § 1, adopted Aug. 15, 2017, repealed the former § 2.12.020 and enacted a new § 2.12.020 as set out herein. The former § 2.12.020 pertained to similar subject matter and derived from Ord. No. 40-038 § 2).

Sec. 2.12.030. Same—Procedure and appointment of members to boards and commissions.

(a) Each council member shall have one appointee on seven-member and two on fourteen-member boards and commissions, unless otherwise provided by statute or city ordinance.

(b) The city manager shall notify the appropriate city council member in the regular council agenda four weeks in advance of the expiration of the term of an appointment, or immediately whenever a vacancy occurs because of resignation, death or other cause. The notice from the manager shall contain appropriate information incident to the policies hereinbefore established, and whether the incumbent is ineligible for reappointment because he has served two consecutive terms on a board or commission with this restriction. (For the purpose of this section, notice of all expirations effective June 30, 1989, is deemed given.)

(c) The appointment to the office shall be made with the approval of the majority of the city council at the second regular council meeting following formal notice of vacancy.

(d) All appointments shall be accepted in writing by the appointee, confirming that the appointee accepts the policies and standards of conduct outlined herein as a condition precedent to his appointment and holding office.
(Ord. No. 40-704 § 1)

Sec. 2.12.040. Same—Administrative execution by the city manager.

The city manager is directed and authorized with respect to the administrative execution of the foregoing rules and regulations:

(1) To apply the policies and standards therein to all boards and commissions of the city created by ordinance or resolution and to draft the necessary ordinances to place such minimum standards and policies into effect;

(2) To apply such standards and policies to all boards and commissions created by statute, insofar as the same may be authorized by the statute, and to prepare a report to the city council with respect to such legislative changes as may be necessary to carry out such policies in full;

(3) To provide a standard form to be known as "Certificate of Appointment" to each appointee;

(4) To provide each appointee with a complete statement of the policies and standards herein outlined by rules and regulations;

(5) To provide a standard form to be known as "Certificate of Acceptance," such forms to provide among other things that the appointee accept such appointment subject to the policies and standards outlined hereinbefore;

(6) To furnish each member appointed hereafter to any subsidiary board or commission with such certificate of appointment in order that no misunderstanding may arise as to the ethical standards of conduct and terms and conditions governing such appointment to be accepted by the execution of the acceptance of appointment;

(7) To accomplish such clearance of appointees as may be established as necessary from time to time by the city council.

(Ord. No. 33-299 (part))

Sec. 2.12.050. Same—Exceptions to policies, procedures and standards of conduct.

The city council of the city recognizes that situations may arise which require clarification of the foregoing policies and procedures established by these rules and regulations, and that the public interest may require that exceptions be made therefrom in specific cases. In any such case, the city council may take formal action to make such clarification and/or exception; provided, that the clarification or exception be publicly disclosed together with the reasons therefor; and provided further, that these rules and regulations shall not apply when in conflict with the statutes of the state and appropriate exceptions shall be made by the city council.
(Ord. No. 33-299 (part))

Sec. 2.12.060. Wichita Art Museum—Continuity of ownership, regulation, and control.

(a) The Wichita art museum board created by Ordinance No. 23-237 is abolished effective January 1, 1998.

(b) The City of Wichita is declared to be the successor in interest to all power and authority and control heretofore vested in the Wichita art museum board by state law or city ordinance, including as the same relates to all property, real and personal, owned or held by the Wichita art museum board, and all debts, contracts, and obligations lawfully entered into by the Wichita art museum board during the period such powers were exercised by such board, upon the event of subsection (a) of this section.
(Ord. No. 43-645 § 1)

Sec. 2.12.070. Wichita Art Museum—Authority to contract.

(a) The City of Wichita may enter into a contract with a not-for-profit Kansas corporation to provide for the general supervision and care of the Wichita art museum and the objects of art belonging to the city or exhibited therein. Such contract may provide that the corporation shall serve as the agent and representative of the city to provide housing, to care for, exhibit and maintain art, including paintings and other objects of art owned by the city; to acquire by purchase, gift, bequest, or exchange, paintings, prints, statues, and other objects of art; as well as to maintain the Roland P. Murdock collection.
(Ord. No. 43-645 § 2)

Sec. 2.12.080. Wichita Art Museum—Contract for operation and management.

(a) Any contract entered by the city under the authority of Section 2.12.070 shall substantially conform to the following minimum requirements:

(1) The corporation shall maintain its status as a non-for-profit Kansas corporation, exempt from taxation under Section 501(c)(3) of the Internal Revenue Code, and shall maintain articles of incorporation and by-laws consistent with the ordinance codified in this section.

(2) The corporation shall operate though a board of trustees consisting of not to exceed thirty-six members who shall serve without compensation.

(3) The board of trustees shall act as a whole on major issues of policy. The administration and daily operation of the museum shall be left to a director to be employed by the board of trustees.

(4) The board of trustees shall adopt the necessary rules and regulations for the exhibition and maintenance of the objects of art held or exhibited at the Wichita art museum.

(5) The board of trustees shall submit an annual budget for approval by the city council.

(6) The city shall continue to retain title to and be responsible for the objects of art titled in the name of the city or the Wichita art museum. No title or any interest in such property shall be transferred, encumbered, or disposed of except by action of the board of trustees, upon approval of the city council.

(7) The corporation operating through its board of trustees shall have such authority and duties pertaining to the operation of the Wichita art museum as may be agreed from time to time by the city council and the board of trustees of the corporation.

(8) The agreement may be terminated by the parties at any time upon mutual agreement, by either party upon written notice, or by either party immediately upon material breach of the agreement.

(b) Upon termination of the contract, the city council shall retain all powers and authority over the operation and management of the Wichita art museum and ownership of all objects of art held in the name of the city or the Wichita art museum.
(Ord. No. 43-645 § 3)

Sec. 2.12.170. Board of bids and contracts—Established.

A board of bids and contracts is established.
(Ord. No. 22-062 § 1)

Sec. 2.12.180. Same—Composition; chairman, vice-chairman and secretary.

(a) (Amended.)

(b) The city manager shall be the chairman of the board of bids and contracts, and the director of public works shall be vice-chairman of such board. In the absence of both chairman and vice-chairman, the remaining members of the board shall choose one of their number to act as chairman. The city clerk or his duly appointed deputies in his absence, shall act as secretary of the board of bids and contracts but shall have no vote in the deliberation of the board of bids and contracts.
(Ord. No. 42-287 § 1)

Sec. 2.12.190. Same—Powers and duties.

The duties of the board of bids and contracts shall be to carry out the procedures prescribed in this section with reference to the purchase of materials, supplies, equipment and letting of contracts for the construction of any and all public improvements.

Letting of Contracts on Public Improvements.

(1) In all matters pertaining to the construction or reconstruction of city streets, sidewalks, sewers and other public improvements required to be constructed on contracts let on sealed bids by the city, the city shall cause to be contained in the city's official published notice of its invitation for sealed bids, a statement that on the date and place specified in such notice, the board of bids and contracts shall publicly open all bids received by the city under such notice.

(2) After the opening of such bids, the board of bids and contracts shall tabulate the bids received on each contract, and the city engineer shall examine such bid tabulations and advise such board of his findings. Thereupon the board shall determine the lowest responsible bidder on each contract as bid, and shall make its recommendations to the city council for its governmental action on all contracts required to be let on sealed bids.

(3) The report and tabulation provided for in this section shall include the name of the bidder and the amount of his bid, and shall be maintained in the office of the city clerk as support for the board of bids and contracts' recommendation to the city council.

(4) Board of bids' recommendations shall be made in compliance with requirements set forth in Charter Ordinance No. 111 or as said charter ordinance shall be amended from time to time.

(Ord. No. 40-392 § 1)

Sec. 2.12.200. Same—Limitations of.

The powers and duties granted and designated in the preceding section are administrative and managerial and shall not be interpreted as impairing the obligation of the board of commissioners or the administrative agencies of the city to process, approve and execute contracts for public improvements under powers and duties granted and defined to cities of the first class under the laws of the state.
(Ord. No. 22-062 § 4)

Sec. 2.12.330. Board of park commissioners—Created.

There is created and established a board of park commissioners as provided and authorized by the terms and provisions of K.S.A. 13-1347 and Charter Ordinance No. 125.
(Ord. No. 40-949 § 3)

Sec. 2.12.340. Same—Membership and term.

Membership on the board of park commissioners shall consist of seven residents of the city appointed by the city council. The terms of office shall be as set forth in Section 2.12.020(1). The director of park and recreation shall serve as a non-voting ex officio member of the board.
(Ord. No. 40-949 § 4)

Sec. 2.12.350. Same—Purpose and duties.

(a) Purpose. The board shall hold title to park property as set forth in Charter Ordinance No. 125 and shall counsel the governing body relative to the park and recreation activities of the city.

(b) Duties. The board shall have the duties set forth in Charter Ordinance No. 125 and the following duties and responsibility:

1. Monitor the planning, coordination, and execution of the city's park and recreation programs and facilities by the department of parks and recreation and advise the city manager and city council on such matters and promptly report in writing any instance of environmentally irresponsible action taking place in any city park to the city manager and city council.

2. Evaluate sites and facilities suitable for the present or future use of residents of the city and make recommendations relative to the acquisition or disposition of any land used or to be used for public park and recreation purposes. The board shall give notice and conduct public hearings on behalf of the city and shall make recommendations to the city council relative to all such acquisition or disposition.

3. Continue to hold title to property previously held and to act upon the sale or disposition of all park property in accordance to the provisions of Charter Ordinance No. 125, Section 5(a).

4. Make recommendations concerning operating budget priorities for park and recreation services.

5. Make recommendations on park projects and their priority for the capital improvement program.

6. Solicit grants and gifts of sites, facilities, and funds and seek the cooperation of agencies and groups in the development and maintenance of park and recreational facilities.

7. Make recommendations on development, maintenance, and improvement needs of golf courses.

8. Recommend financing mechanisms for the implementation of the park and open space plan.

9. Such other responsibilities as may be assigned from time to time by the city council.

10. The city council shall seek the advice and counsel of the board of park commissioners before taking action on policy matters that pertain to duties set forth in this subsection.

(Ord. No. 40-949 § 5)

Sec. 2.12.360. Same—Meetings, organization, staff support.

The board of park commissioners shall meet at least once each month. The board shall conduct meetings, elect officers, and adopt by-laws in accordance with the policy for boards and commissions. The director of park and recreation shall provide the necessary staff support to insure that the board receives informational support and professional and technical assistance necessary to carry on its duties and conduct its meetings.
(Ord. No. 40-949 § 6)

Sec. 2.12.370. Same—Continuity of regulation and control.

The city is declared to be the successor in interest to all power and authority and control heretofore vested in the board of park commissioners by Chapters 9.04, 9.08, 9.28, 13.04, and other provisions of the Code of the City of Wichita. All permits and licenses heretofore lawfully issued and all rules and regulations heretofore lawfully adopted by the board of park commissioners under this Code shall continue in full force and effect under their terms as such permits, licenses, rules and regulations of the city. All reference in this Code to the "board of park commissioners" shall be deemed to be reference to the "City of Wichita" except where otherwise provided in the ordinance codified in this section or Charter Ordinance No. 125 or where the context clearly provides otherwise.
(Ord. No. 40-949 § 7)

Sec. 2.12.376. Limitation of power and authority previously granted to board of park commissioners.

From and after 12:01 a.m. on November 1, 1975, all power and authority previously granted

to the board of park commissioners over airports shall terminate and the board shall have and exercise no further authority or control over airports.
(Ord. No. 34-007)

Sec. 2.12.380. Wichita-Sedgwick County Metropolitan Planning Commission—Creation.

There is created the Wichita-Sedgwick County Metropolitan Area Planning Commission, as authorized by K.S.A. 1965 Supp. 12-716, et seq. Its membership, authority, function, responsibility, budget and staff shall be as established in agreements between the cooperating agencies, unless provided for herein.
(Ord. No. 29-610 § 1)

Sec. 2.12.390. Same—Planning area jurisdiction.

The area of planning jurisdiction for comprehensive planning, as may be defined by statute or further agreement between the cooperating agencies, shall include all of Sedgwick County and such other areas which, in the opinion of the commission, bear a direct relationship to the development of the area. The planning commission shall hold hearings on all zoning matters within the City of Wichita and within the unincorporated area three miles from the City of Wichita or from any city becoming a member of the metropolitan area planning commission; or for such area as may be determined appropriate if zoning is established under the provisions of K.S.A. 1965 Supp. 19-2919, et seq. The planning commission shall have subdivision jurisdiction within the City of Wichita and the unincorporated area within three miles thereof, and/or such other unincorporated area as may be determined appropriate by the board of county commissioners of Sedgwick County, either by resolution of that board or by concurrence with subdivision regulations adopted by the planning commission. The planning commission shall also have such other jurisdiction as may be possessed by any member governing body or their planning commission when expressly delegated to the Wichita-Sedgwick County metropolitan area planning commission by resolution or ordinance. All matters pertaining to planning, zoning or subdivision affecting land within three miles of any member city or county shall be referred to the local planning commission, if there be one, for discussion and recommendation before said matter shall be considered before the metropolitan area planning commission for action.
(Ord. No. 29-610 § 2)

Sec. 2.12.400. Same—Member cities, counties—Acceptance—Dissolution.

Any city in Sedgwick County, or county abutting Sedgwick County, or any city within such county, wishing to attach itself as a member, may become a member by first notifying the Wichita-Sedgwick County metropolitan area planning commission at least fifteen days before adopting an ordinance (city) or resolution (county), which ratifies this joint ordinance-resolution (and amendments or supplements thereto), and existing agreements between the cooperating cities and counties concerning the metropolitan area planning commission. The ordinance-resolution shall provide for the ratification and concurrence of the ordinance-resolution codified in Sections 2.12.380 to 2.12.410 and any agreements concerning the establishment of the metropolitan area planning commission, as well as any delegation of or assignment of areas of planning jurisdiction. The ordinance-resolution shall also provide that in addition to all existing agreements being ratified, all future and amendatory agreements are also ratified unless within thirty days after service of such agreement upon a member city or county, they reject said amendment or new agreement. Such ordinance or resolution shall not become effective until all member units have been served a copy thereof. In the event any member shall wish to terminate its membership, the adoption of an ordinance or resolution shall be required, provided that such ordinance or resolution shall not become effective for sixty days after its service upon an officer of the metropolitan area planning commission.
(Ord. No. 29-610 § 3)

Sec. 2.12.410. Same—Agreements.

The city and the county, concurrently with the adoption of the joint ordinance-resolution codi-

fied in Sections 2.12.380 to 2.12.410, shall enter into an agreement specifying the general purpose of the planning commission; designating the functions in addition to those contained herein; determining the number and qualifications of its members; providing for the manner of cooperation, the means and methods of operation and functioning of the planning commission, including the creation of a planning department; providing for the employment of personnel and consultants; determining the proportionate share of costs and expenses and such other matters as may be determined proper for consideration. Copies of such agreement shall be served upon the clerks of the member cities or counties and the chairmen of their planning commissions, if there are any.
(Ord. No. 29-610 § 4)

Sec. 2.12.560. Board of zoning appeals—Formation.

A board of zoning appeals is created. "Board" when used in Sections 2.12.560 through 2.12.610 of the city code, means the board of zoning appeals. The board shall consist of the duly appointed members of the Metropolitan Area Planning Committee ("MAPC") as defined by the Wichita-Sedgwick County Zoning Code. The terms of office and filling of vacancies shall be done in accordance with the established rules of the MAPC as hereto in effect and as may be amended by the MAPC. The members of the board shall elect from among their number a chairperson to serve for a term of one year, and shall appoint a secretary who may be an officer or employee of the city. The city council of the city shall have the power to remove any member of the board appointed by the city council to MAPC for cause. No member shall receive any compensation for such member's services.
(Ord. No. 42-816 § 1; Ord. No. 50-427, § 1, 3-21-17)

Sec. 2.12.570. Same—Meetings.

The board of zoning appeals shall meet no less than once each month and shall fix a time, place and day for each regular meeting. The minutes shall be maintained and shall show evidence presented, findings of fact by the board, decision of the board and the vote on each question, and shall be a permanent public record and kept on file in the office of the planning department.
(Ord. No. 28-291 § 2; Ord. No. 24-606 § 1)

Sec. 2.12.580. Same—Procedure.

(a) The board of zoning appeals shall adopt rules of procedure as may be necessary and proper to govern its own proceedings; such rules to be not in conflict with law or ordinance.

(b) All applications to the board of zoning appeals for any type of proceeding shall be in writing and shall be filed at the office of the secretary of the board of zoning appeals. Applications shall be filed upon forms provided for that purpose by the secretary of the board and shall be accompanied by a fee as established by the schedule adopted by the governing body. Applications for variances and appeals shall be accompanied by a current certified list, prepared by a local abstract firm, of the names and mailing addresses of all owners of record of real property within the area to be considered in the application and to all owners of record of real property located within two hundred feet of the exterior boundaries of the property to be considered in the application.

(c) The secretary of the board of zoning appeals shall cause to be published in the official paper of the city, a notice as to the time, place, date and subject of hearing, of a public hearing for each application; such notice to appear once in the official city paper no less than twenty days prior to the date of hearing. The secretary shall also cause notice to be given by mail no less than twenty days prior to the date of the hearing, to each party to the appeal or other proceeding, to each member of the metropolitan planning commission, and to all owners of record of real property within two hundred feet of the exterior boundaries of the property to be considered in the application, as such owners are listed on the current certified lists accompanying the application.

(d) Every decision or determination by the board shall be filed in the office of the Metropolitan Area Planning Department not more than five working days following the date of hearing and shall become a public record.
(Ord. No. 45-325 § 1; Ord. No. 42-816 § 2)

Sec. 2.12.590. Same—Jurisdiction.

A. APPEALS. Appeals to the board may be taken by any person aggrieved, or by any officer of the city or any governmental agency or body affected by any decision of the officer administering the provisions of Title 28, Title 24 or Chapter 10.32 of this Code. Such appeal shall be taken within a reasonable time as provided by the rules of the board, by filing a notice of appeal specifying the grounds thereof. The officer from whom the appeal is taken, when notified by the secretary of the board, shall forthwith transmit to the board all the papers constituting the record upon which the action appealed from was taken. The board shall have power to hear and decide appeals where it is alleged there is error in any order, requirement, decision or determination made by an administrative official in the enforcement of Title 28 of this Code.

B. VARIANCES. The board may authorize in specific cases a variance from the specific terms of Title 28 or Title 24 which will not be contrary to the public interest and where, owing to special conditions, a literal enforcement of the provisions of Title 28 or Title 24 will, in an individual case, result in unnecessary hardship, and provided that the spirit of Title 28 or Title 24 shall be observed, public safety and welfare secured, and substantial justice done. Such variance shall not permit any use not permitted by Title 28 (zoning ordinance) in such zoning district. A request for a variance may be granted upon a finding by the board that all of the following conditions have been met:

1. That the variance requested arises from such condition which is unique to the property in question and which is not ordinarily found in the same zone or district; and is not created by an action or actions of the property owner or the applicant;

2. That the granting of the permit for the variance will not adversely affect the rights of adjacent property owners or residents;

3. That the strict application of the provisions of Title 28 or Title 24 of which variance is requested will constitute unnecessary hardship upon the property owner represented in the application;

4. That the variance desired will not adversely affect the public health, safety, morals, order, convenience, prosperity, or general welfare; and

5. That granting the variance desired will not be opposed to the general spirit and intent of Title 28 (zoning ordinance) or Title 24 (sign ordinance).

C. CONDITIONS OF DETERMINATION. In exercising the foregoing powers, the board, in conformity with the provisions of this act, may reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination, and to that end shall have all the powers of the officer from whom the appeal is taken, may attach appropriate conditions, and may issue or direct the issuance of a permit.
(Ord. No. 45-325 § 2; Ord. No. 28-291 § 4; Ord. No. 24-606 § 1)

Sec. 2.12.600. Same—Limitations.

The board shall not have the authority to reopen a case once a decision has become final, unless an error in the proceedings has been found within two years from the date on which the board issued its decision.

In the event a rehearing is held under the terms of this provision, notice of hearing shall be given in the same manner as required for the original hearing, and a public hearing shall be held in accordance with the procedures outlined in Section 2.12.580 of this Code.
(Ord. No. 28-291 § 5; Ord. No. 24-606 § 1)

Sec. 2.12.610. Same—Appeal.

Any person, official or governmental agency dissatisfied with any order or determination of the board may bring action in the district court of Sedgwick County to determine the reasonableness of any such order or determination.
(Ord. No. 28-291 § 6; Ord. No. 24-606 § 1)

Sec. 2.12.620. Public building commission—Composition.

The Wichita public building commission shall be composed of not to exceed nine regular members and not to exceed two provisional members as hereinafter set forth. The members shall be appointed by the city council as follows:

(a) Seven members of the commission shall be appointed from the citizens of the city at large. The terms of office shall be set forth in Section 2.12.020(1) of this chapter.

(b) The board of county commissioners of Sedgwick County, Kansas and the President of Wichita State University may each recommend for appointment to the commission one member to represent said entity on the Wichita public building commission. Upon receipt of the recommendations for appointment, the appointments shall be made. The terms of office shall be as set forth in Section 2.12.020(1) of this chapter.

(c) The provisional members of the commission shall be the Secretary of Administration of the State of Kansas or the designated representative of the Secretary and a representative of the board of education of unified school district No. 259, who may sit as members of the Wichita public building commission only where such commission will provide for a building or for equipment which will house offices or will furnish equipment to agencies of the State of Kansas or the school district, respectively and only when a recommendation for such appointment has been received from the appropriate authority.

(Ord. No. 43-203 § 1)

Sec. 2.12.630. Same—Continuation, powers and authority.

(a) The Wichita public building commission (the "commission") previously created by ordinances of the city, is continued in existence.

(b) The commission shall have all the powers and authority granted to public building commissions under the Public Building Commission Act (K.S.A. 12-1757 et seq.) (the "Act"), as amended, chartered by charter ordinances of the City of Wichita, Kansas sometimes hereafter referred to as the "city" and as from time to time hereafter amended and chartered from, subject to substitute and additional provisions set forth in Charter Ordinances Nos. 107, 149, 162, amendments thereto, and subject to substitute and additional provisions of charter ordinances that may be from time to time hereafter passed and adopted by the city ("City Charter ordinances").

(c) The commission shall adopt a seal.

(d) The city manager of the city shall designate and provide any and all support services to be used by the commission to include staff support and legal representation by the city law department; and, in addition, the city's bond counsel shall be bond counsel for the commission.

(e) Upon dissolution of the commission, title to all property owned by the commission shall vest in and become the property of the city.

(Ord. No. 43-203 § 2)

Sec. 2.12.640. Same—Functions of the commission.

The commission shall be authorized pursuant and subject to powers and authority granted or continued herein under authority granted by the Act and City Charter ordinances to serve the following functions:

(a) To acquire a site or sites for constructing, reconstructing, equipping and furnishing a building or buildings or other facilities of a revenue-producing character, including parking facilities, and, in addition, to acquire and install equipment of a revenue-producing character. Such building or buildings, facilities, or equipment shall be maintained and operated for the affairs of Sedgwick County, Kansas or any federal, state, state university, city, school district, municipal corporation, quasi-municipal corporation, political subdivision, or body politic, or agency thereof, doing business, maintaining an

office, or rendering a public service within Sedgwick County, Kansas ("governmental agencies");

(b) To acquire land and facilities located within Sedgwick County, Kansas, that are adjacent to or are near any educational institution under the supervision and control of the State Board of Regents, or acquire, by lease, land and facilities located within Sedgwick County, Kansas, that constitute a part of the campus of any such institution. The commission may construct, reconstruct, equip, and furnish such facilities on such land and lease such land and facilities to the official governing body of such institution. The city also may pledge funds as may be necessary from those which are provided to be paid over to the board of trustees from the annual tax levy as provided by K.S.A. 76-3a07, and amendments thereto. The commission may also approve contracts which include a pledge by Sedgwick County of such funds as may be necessary from those which are provided to be paid over to such institution from a special levy authorized for such purpose under K.S.A. 19-117, and amendments thereto;

(c) To acquire fee simple title to real estate, including easements and reversionary interests in streets, alleys and other public places and personal property required for its purposes, by purchase, gift, devise or by the exercise of the power of eminent domain, and to take title in the corporate name of the commission;

(d) To rent all or any part of its buildings, facilities and/or equipment to any governmental agencies and rent any space as may not be needed by such governmental agencies or such buildings or other facilities as the commission may determine will primarily serve the comfort and convenience of the occupants of its buildings or other facilities;

(e) To after negotiation of a lease or leases with one or more governmental agencies is complete, issue revenue bonds of the commission to provide funds for the purpose of acquiring, erecting, equipping, repairing, maintaining and operating buildings and other facilities; to acquire sites necessary and convenient therefor; and to acquire and install equipment to pay all costs and expenses incident thereto, or to refund its outstanding bonds;

(f) To repair, maintain and operate buildings and to repair, maintain and operate land and facilities adjacent to or near Wichita State University;

(g) To sue and be sued;

(h) To convey title to the governmental agencies to the equipment and/or land and buildings thereon, for whose benefit the public building commission has held title, after the payment of revenue bonds issued for the purpose of acquiring such equipment and/or land and buildings thereon for the benefit of any such political subdivision. Conveyance may be made of portions of the land as portions of the revenue bonds are paid or retired, or provision is made for their payment by the deposit of a like amount of money. In the event the governmental agency for whose benefit the public building commission has held title fails or refuses to accept title of the property in question, then the public building commission is authorized to sell to any person or entity for a reasonable price.

(i) Under no circumstances shall any income of the public building commission inure to the benefit of any private person.

(Ord. No. 43-203 § 3; Ord. No. 50-341 § 1, 10-18-16)

Sec. 2.12.650. Savings clause.

If any clause, sentence, or section of Ordinance No. 43-203 shall be held to be invalid, it shall not affect the remaining provisions of this ordinance. (Ord. No. 43-203 § 4)

Sec. 2.12.660. Establishment of the Wichita Sustainability Integration Board.

The Wichita Sustainability Integration Board is hereby established.
(Ord. No. 51-626, § 2, 9-14-21)

Sec. 2.12.661. Purpose of Wichita Sustainability Integration Board.

The purpose of the Wichita Sustainability Integration Board is to advise the City Council and City staff on sustainability matters affecting the City's long-term livability and economic vitality. The Board will collaborate with residents, schools, businesses and other partners to advance the City's environmental goals, including:

(1) Economic opportunities and energy use practices that optimize financial, health and environmental benefits, including demand reduction, energy efficiency, building and vehicle efficiency, emissions reduction, energy transition, public and active transportation, and renewable energy expansion.

(2) Climate resiliency planning including resource conservation, air and water quality, transportation, land management, education, food systems and quality of life.

(3) Waste and material management practices that optimize financial, health and environmental benefits, including waste reduction, recycling, composting and procurement policy.

(4) Community outreach initiatives that help to educate residents and businesses on sustainability initiatives that enhance the quality of life in Wichita.

(5) Affordability and resiliency of all services vital to quality of life.

(Ord. No. 51-626, § 3, 9-14-21)

Sec. 2.12.662. Duties of Wichita Sustainability Integration Board.

The duties of the Wichita Sustainability Integration Board shall include, but not be limited to, the following:

(1) Act in the interest of sustainable practices, recognizing all three aspects of sustainability, including environmental stewardship, social responsibility and economic development.

(2) Make advisory policy recommendations to the City Council on environmental issues such as air quality, water quality, and resource conservation to protect the natural environment.

(3) Advise the City Council, any other boards and commissions, and City staff in assessing the environmental impact of proposed undertakings, including physical projects as well as policy changes, that fall in part or in total under the City's jurisdiction.

(4) Recommend to the City Council additional environmental policy provisions and ordinances for enactment, as well as actions and programs that will maintain or improve environmental quality and conservation of natural resources.

(5) Request that the City Council authorize studies on matters pertaining to environmental quality and natural resources and recommend, when necessary, the employment of professional qualified persons to carry out such studies.

(6) Establish educational programs and public forums to engage community residents, schools, businesses, and other institutions about sustainability and environmental issues.

(7) Support environmental programs, volunteer opportunities and initiatives in which community residents, schools, and businesses can participate and contribute.

(8) Identify and pursue local, regional, state and national programs and grants in support of sustainable practices.

(9) Support the City of Wichita Comprehensive Plan and any other adopted long-range plans of the City of Wichita.

(Ord. No. 51-626, § 4, 9-14-21)

Sec. 2.12.663. Requirements.

Individuals must possess the following qualifications to be appointed to the Board:

(1) Be a resident of the City of Wichita.

(2) Not be employed by the City of Wichita or be the immediate family member of an employee of the City of Wichita.

(3) Not be a member of or the immediate family member of the Wichita City Council.

(4) Be a citizen of the United States.

(Ord. No. 51-626, § 5, 9-14-21)

Sec. 2.12.664. Membership and term.

Membership on the Board shall consist of seven (7) residents of the City appointed by the City Council. These members should represent at least one of the following areas of expertise:

(1) Business/industry.

(2) Climate change and resilience.

(3) Economic development.

(4) Education.

(5) Emergency management.

(6) Energy use/conservation.

(7) Finance.

(8) Food systems.

(9) Green building.

(10) Local environmental issues.

(11) Natural ecosystems.

(12) Renewable energy.

(13) Transportation.

In addition to the members appointed by the City Council, each of the following boards and commissions shall appoint a representative to the Board. Such member shall have the same duties and responsibilities of the appointed Board members, including the right to vote on matters coming before the board. These committees, boards and commissions include:

(1) Bicycle and Pedestrian Advisory Board.

(2) Board of Park Commissioners.

(3) Diversity, Inclusion and Civil Rights Advisory Board.

(4) Mayor's Youth Council.

(5) Metropolitan Area Planning Commission.

(6) Stormwater Advisory Board.

(7) Transit Advisory Board.

The terms of office shall be as set forth in Section 2.12.020(1) of the Code of the City of Wichita. The Director of Public Works & Utilities shall serve as a non-voting ex officio member of the Board.

(Ord. No. 51-626, § 6, 9-14-21)

Sec. 2.12.665. Meetings and officers.

(1) The Board shall meet at least once quarterly at the times and places established by the Board. The meetings shall be subject to all applicable provisions of the Kansas Open Meetings Act, K.S.A. 75-4317 et seq. The Board, after notice, may call additional meetings if necessary to address significant or time sensitive issues.

(2) On or before July 1 of each year, the Board shall meet and organize its membership by electing a chairperson and vice-chairperson. The terms of such offices shall be for a period not to exceed two years.

(3) Notice and minutes of all meetings shall be provided to the City Clerk.

(4) The Board shall abide by the Kansas Open Meetings Act, K.S.A. 75-4317 et seq., and the Kansas Open Records Act, K.S.A. 45-215 et seq.

(5) The Board shall conduct meetings, elect officers and adopt bylaws in accordance with the policies for boards and commissions.

(6) The Director of Public Works & Utilities shall provide the necessary staff support to ensure that the Board receives informational

support and professional and technical assistance necessary to carry on its duties and conduct its meetings.
(Ord. No. 51-626, § 7, 9-14-21)

Sec. 2.12.666. Recommendations of the Board.

Recommendations of the Board shall be approved by majority vote of the members present and voting. The quorum required for the Board to conduct business shall be the number of members representing at least one-half of the total number of members duly appointed to the Board. The Board may adopt lawful rules, regulations and bylaws consistent with the provisions of this section as it deems necessary for its operation.
(Ord. No. 51-626, § 8, 9-14-21)

Sec. 2.12.800. Reserved.

Editor's note—Ord. No. 48-795, § 1, adopted Aug. 17, 2010, repealed § 2.12.800 in its entirety. Formerly said section pertained to human services board—creation and derived from Ord. No. 40-735, § 1.

Sec. 2.12.810. Reserved.

Editor's note—Ord. No. 48-795, § 1, adopted Aug. 17, 2010, repealed § 2.12.810 in its entirety. Formerly said section pertained to human services board—purpose and derived from Ord. No. 43-470, § 1.

Sec. 2.12.820. Community services block grant review committee—Powers—Authority.

The community services block grant review committee shall be vested with the power and authority to participate in planning, implementation and evaluation of programs to be funded from grants made available under the Community Services Block Grant Act.
(Ord. No. 45-000 § 1)

Sec. 2.12.830. Community services block grant review committee—Composition—Appointment—Qualifications.

The committee shall consist of twelve members organized in the following manner:

1. Public Sector. Four members within the city or county, as designated from time to time by the city council.

   Seats designated in this sector of the committee may be filled by elected, appointed officials or other appointees as selected by the city council. The city council has sole discretion in designating the four members represented in the public sector of the community services block grant review committee. The terms of office shall be two years. No person serving as a representative of the public sector may serve more than two consecutive terms.

2. Private Sector. Four seats shall be designated by the city council, selected from representatives of private or nonprofit organizations; officials or members of business, industry, labor, religious, welfare, education or other major groups and interests in the community. The representatives of private organizations shall speak and act on behalf of the organizations or constituencies they represent. The terms of office shall be two years. No person serving as a representative of the private sector may serve more than two consecutive terms.

3. Low-Income Sector. Four representatives of low-income shall be elected to the committee every two years, one from each quadrant within the city. The general government department shall provide a plan for the selection of low-income representatives to the council in accordance with democratic selection procedures. All low-income representatives shall reside within the specific geographic area they represent on the committee, or the immediately adjacent area of the county. The terms of office

shall be two years. No person serving as a representative of low-income may serve more than two consecutive terms.

4. Qualifications. All committee members shall reside in the City of Wichita or Sedgwick County. All members shall comply with Kansas Statutes K.S.A. 75-4301, et seq., Public Officers and Employees.

5. Conflicts of Interest. No person may sit on the committee who is an officer or an employee of an organization contracting to perform a component of the general government department Community Services Block Grant work program, unless mandated by federal regulation. No federal employee may serve as an agent or attorney of the committee or department in its dealing with any federal agency.

(Ord. No. 45-000 § 2)

Sec. 2.12.950. Application to industrial revenue bond issues.

(a) From the effective date of the ordinance codified in this section, no industrial revenue bonds of the city shall be issued until:

(1) There shall be included in the lease agreement between the city and its industrial revenue bond lease tenant provisions requiring said tenant to comply with the ordinances of the city, as presently exist or as may be hereinafter adopted, pertaining to civil rights and equal employment opportunity; and

(2) The industrial revenue bond lease tenant has submitted to the citizen rights and

Sec. 2.12.950. Application to industrial revenue bond issues.

(a) From the effective date of the ordinance codified in this section, no industrial revenue bonds of the city shall be issued until:

(1) There shall be included in the lease agreement between the city and its industrial revenue bond lease tenant provisions requiring said tenant to comply with the ordinances of the city, as presently exist or as may be hereinafter adopted, pertaining to civil rights and equal employment opportunity; and

(2) The industrial revenue bond lease tenant has submitted to the citizen rights and services board of said city, tenant's equal employment opportunity/affirmative action program for review and approval and said program has been approved.

(b) The provisions for exemption contained in the civil rights and equal employment opportunity ordinances of the city shall apply to industrial revenue bond lease tenants when any industrial revenue bond tenant has and maintains during the term of the bonds a current federally approved equal employment opportunity plan, and submits to the citizen rights and services board of the city a current federal certificate of compliance. A current federal certificate of compliance will mean that an industry has been approved and is presently operating under a certificate or is performing work under a contract for the federal government or an agency thereof. A tenant's submission of a current federal certificate of compliance to the citizen rights and services board of this city shall satisfy the requirement set out in subdivision (a)(2) of this section. (Ord. No. 38-407 § 9)

Sec. 2.12.955. Emergency procedures.

In accordance with Charter Ordinance No. 44, the following emergency procedures are exempt from the requirements set forth in Section 2.12.950:

(a) Emergencies. Sanitary sewer stoppages or breaks; water line breaks; street repairs resulting from such stoppages and breaks; and major equipment repairs where parts are available from only the original manufacturer or from a local franchised dealer, and

(b) Public Exigency. Where in those circumstances after advertising for bids and no bids are received, and the needs of the city are exigent to continue current level services, the purchasing manager is authorized to negotiate for purchases in excess of the amount established by law as the maximum amount. (Editorially amended during 300 supplement; Ord. 34-693 § 12)

Sec. 2.12.1008. Sister cities advisory board—Established—Membership.

There is created and established a board of the city to be known as "the sister cities advisory board," the members of which shall be appointed by the city council, and shall consist of seven members.

The terms of office shall be as set forth in Section 2.12.020(1).

All members of the board shall serve without compensation.

In addition to the regularly appointed members of the board, the mayor shall be an ex officio member with the right to participate in all its deliberations, but without voting privileges. The mayor shall also serve as honorary president. A representative of the mayor's office shall serve also as an ex officio nonvoting member of said board.

The board shall meet at least once each month at such time and place as may be fixed by the president. Special meetings may be called by the president or by any three members of the board by giving notice at least twenty-four hours in advance of said special meeting to all members of the board.
(Ord. No. 40-709 § 3)

Sec. 2.12.1010. Same—Bylaws—Meetings.

The board shall adopt rules and bylaws in accordance and compliance with the standard bylaws of the city, which shall become effective when approved by the city council.

Said board shall elect from among its members a president, vice president, secretary and treasurer. Specific duties and responsibilities of these officers shall be stipulated in the bylaws of the board.

The board shall meet at least once each month at such time and place as may be fixed by the president. Special meetings may be called by the president or by any three members of the board by giving notice at least twenty-four hours in advance of said special meeting to all members of the board.
(Ord. No. 39-235 § 2)

Sec. 2.12.1012. Same—Duties.

The board shall be an advisory board to the city council on matters relating to the city's implementation of sister city programs with Tlalnepantla, Mexico, Cancun, Mexico, Orleans, France, and Kaifeng City, People's Republic of China. The duties of the board shall be:

(a) Such duties as assigned by the city council;

(b) Appoint such project subcommittees as best fulfill the obligations of the board, such as but not limited to trade and commerce, professional and technical, organizational relations, cultural, youth and education, finance, membership, community relations and city government;

(c) Raise and receive moneys and accept any gift or donation to the sister cities advisory board and administer the same subject to the approval or satisfaction of the city council;

(d) Support, coordinate, foster, develop and sponsor sister city exchange programs of a cultural, educational, social, business, economic or governmental nature; provided, however, that prior to sponsoring any such sister city exchange programs the city shall obtain an insurance policy approved as to form by the city attorney and issued either by an insurance company licensed to do business in the state or by an insurance carrier which must qualify either by having and maintaining at all times total assets in excess of one million dollars or which has been engaged as an insurance carrier in the insurance business continually for more than twenty-five years, which insurance policy must provide general comprehensive liability coverage of the board and the City of Wichita in the amount of five hundred thousand dollars per single occurrence or accident. Said policy of insurance shall provide coverage for all activities of the board and City of Wichita in connection with the sponsoring of any and all exchange programs under this section. Such policy shall be effective until at least thirty days after written notice of cancellation has been provided the board and the City of Wichita.
(Ord. No. 39-235 § 3)

Sec. 2.12.1014. Same—Annual report.

The sister cities advisory board shall make annual reports not later than March 1st of each year, covering the preceding calendar year. Such reports are to be filed with the city clerk and to cover all financial transactions involving moneys raised and received and any gifts or donations.
(Ord. No. 32-994 § 4)

Sec. 2.12.1015. Historic preservation board—General provisions.

There is created and established a board to be known as the 'Historic Preservation Board' of the city.

(a) *Scope of Duties.* The duties of the board are to advise the City Council on city-owned historic resources and to safeguard the architectural and cultural heritage of the city through the preservation of historic resources. The board may carry out these duties through the identification, documentation and designation of the city's historic resources; administration of city ordinances governing the designation, alteration, and removal of historic resources and Wichita Register Historic Properties; assistance with educational programs, eco-

nomic development and tourism; and coordination of public and private historic preservation activities.

(b) *Members.* The board shall be composed of seven members to be appointed by the mayor with the approval of the City Council. The membership of the board shall be composed of members, who shall have demonstrated special interest, knowledge, or training, in fields closely related to historic preservation. A minimum of three members shall be preservation related professionals, who have experience in such fields as architecture, history, conservation, curation, engineering, cultural anthropology, landscape architecture, architectural history, planning, archaeology, urban design, geography, real estate, law, finance, building trades or related areas.

(c) *Terms.* The terms of office shall be as set forth in subsection (1) of Section 2.12.020.

(d) *Officers.* Annually, the board shall elect a president and two vice-presidents from its members. In the president's absence, one of the vice-presidents shall conduct the meeting.

(e) *Meetings.* The board shall meet at least once each month, with additional meetings upon call by the president or upon petition of a simple majority of the members. Four members present shall constitute a quorum, and issues shall be decided by a simple majority vote of the members present. The minutes of each meeting shall be filed in the office of the city clerk. A copy of the minutes of each meeting shall also be filed with the State Historic Preservation Office. All meetings of the board shall be open to the public.

(f) *Ex Officio Members.* A representative from the Office of Central Inspection, a representative of the Metropolitan Area Planning Department, a representative of the planning commission, the library historian, the city archaeologist and the historical museum director shall sit on the board as ex officio members. None of the ex officio members shall be allowed to vote, but shall assist the board in its various functions.

(g) *Committees and Subcommittees.* The board may establish through its bylaws, a design review committee and such additional committees or subcommittees as necessary or convenient to carry out the various functions and duties of the board. Such committees or subcommittees may be made up of no more than three voting members of the board and may include members outside the Historic Preservation Board. Committees may meet upon such schedule and for such purposes as established by the board.

(h) *Staff of the Board.* The board shall receive staff support as directed by the City Manager. The Director of Planning or a designee shall serve as secretary to keep minutes of all meetings, handle correspondence, and perform such other duties as the board may direct.

(i) *Succeeded Powers of Historic Wichita Board.* The City Council shall succeed to all powers and authority previously placed in the Historic Wichita Board except as may be placed in the Historic Preservation Board by this code. Further, the board shall exercise the powers and duties of the Historic Wichita Board over city cemetery property unless and until the effective date of a certain charter ordinance providing that the city council shall become the board of directors and trustees of such cemetery property."

(Ord. No. 41-921 § 1; Ord. No. 48-301, § 1, 3-24-09)

Sec. 2.12.1016. Definitions.

As used in this chapter, the following words, terms and phrases shall have the meanings set out below:

Applicant for Certificate of Appropriateness shall mean:

(a) the property owner; or

(b) an agent or other person acting on behalf of the property owner with the owner's consent.

Applicant for nomination of a Wichita Register Historic Property shall mean the person or group who initiates and signs the application to nominate a property or district for listing on the Wichita Register of Historic Places. An applicant may be:

(i) the property owner, or in the case of an application for a Wichita Register Historic District, owners of a minimum of fifty percent of the property , land or area within the proposed historic district;

(ii) a majority of the Historic Preservation Board;

(iii) a majority of the City Council;

(iv) other, if accompanied by written consent of the property owner.

(v) Members of the public, if nominating publically owned properties.

Area means properties near to or adjacent to one another, capable of being described in such a manner that their collective location may be established and boundaries definitely ascertained.

Board means the Historic Preservation Board of the City of Wichita.

Building means a structure, such as a house, barn, church, hotel, courthouse, City Hall, social hall, commercial structure, library, factory, mill, train depot, theater, school, mausoleum, store or similar construction. The term also may refer to a small group of buildings consisting of a main building and subsidiary buildings which constitute an historically and functionally related unit such as a courthouse and jail, house and barn, mansion and carriage house, church and rectory, and farmhouse and related outbuildings.

Certificate of Appropriateness means a certificate issued by the Board indicating its approval of plans for the alteration, construction, removal, or demolition of a Wichita Register Historic Property or a building or structure within a Wichita Register Historic District, based primarily on design considerations.

Certificate of Economic Hardship means a certificate issued by the Board indicating its approval of plans for the alteration, construction, removal, or demolition of a Wichita Register Historic Property or a building or structure within a Wichita Register Historic District, based primarily on economic considerations.

Certified Local Government means a program of the National Park Service designated to promote the preservation of prehistoric and historic sites, structures, objects, buildings, and historic districts by establishing a partnership between local government, the State Historic Preservation Officer and the National Park Service. A certified local government carries out the purposes of the National Historic Preservation Act and the Kansas Historic Preservation Act as amended.

Character-defining features means those physical characteristics and elements that indicate the integrity of design and materials of a Wichita Register Historic Property or a building or structure within a Wichita Register Historic District.

Contributing Feature means a significant building, site, structure, or object which adds to the architectural qualities, character-defining features, historic association or archeological values of a Wichita Register Historic Property or Wichita Register Historic District because:

(a) It was present during the pertinent historic time; or

(b) It possesses integrity and reflects its significant historic character or is capable of yielding important information about the pertinent historic period.

Demolition means the partial or complete removal of a building or structure, the components of a building or structure, or the manmade components of the site where the building or structure is located, including walks, driveways, retaining walls, and fences.

Demolition by neglect means the failure to provide ordinary and necessary maintenance and repair to a Wichita Register Historic Property or a building or structure within a Wichita Register Historic District whether such neglect is willful or not, on purpose or by design, by the owner or any party in possession of such a site, which results in any of the following conditions:

(1) The deterioration of exterior features so as to create or permit a dangerous or unsafe condition to exist, as defined by Section 18.16.040.

(2) The deterioration of exterior walls, roof, chimneys, doors, windows, porches, steps or trim; the lack of adequate waterproofing; or deterioration of interior features or foundations which will or could result in permanent damage, injury or loss of or to exterior features.

Design review committee means a committee of no more than three voting members with one alternate which may be appointed by the president when necessary to assist the board in reviewing Certificates of Appropriateness. The design review committee shall work closely and informally with preservation staff to review, report and recommend action to the board regarding Certificate of Appropriateness for all projects which may be assigned to them. The design review committee shall follow the guidelines adopted by the Board for such review. Any denial, recommendation or decision made by the committee shall include an explanation detailing the basis for such decision. 'Emergency Demolition' means the demolition of a building or structure which the Superintendent of Central Inspection has determined is unfit for use or human habitation and conditions exist which are dangerous to the health, welfare or safety of the occupants of such structure, the occupants of neighboring structures, dwellings or other residents of the City.

Feasible and prudent alternative means an alternative solution that can be reasonably accomplished and that is sensible or realistic. Factors that shall be considered when determining whether or not a feasible and prudent alternative exists include, but are not limited to, the following:

(1) Technical issues;

(2) Design Issues;

(3) The project's relationship to the community-wide plan, if any;

(4) Economic issues; and

(5) Planning issues or alternatives.

Historic resource means a district, site, land, area, building, structure or object, including appurtenances and environmental setting, which has historical, cultural, aesthetic, architectural and/or archaeological significance, or other character-defining features with potential importance or value.

Historically or Architecturally important feature means the quality present in a structure, property or district because it:

1. Is associated with an event or events that significantly contributed to the broad patterns of the history or architectural heritage of the city, state or nation;

2. Is associated with the life of a person(s) significant to the history of the city, state or nation;

3. Embodies distinctive characteristics of a type, design, period or method of construction;

4. Represents the work of a master craftsman or possesses high artistic value.

5. Exemplifies the cultural, political, economic, social or historic heritage of city, state or nation.

6. Contains elements of design, detail, materials, or craftsmanship which represent a significant construction innovation.

7. Is part of or related to a square, park or other distinctive area that was or should be developed or preserved according to a plan based on a historic or architectural motif.

8. Is an established and familiar visual feature of a neighborhood or of the community.

9. Has yielded or is likely to yield archeological or artifacts and/or information.

Integrity means a property's original and historic characteristics, construction, elements, qualities, design, architectural features, distinctive style, craftsmanship, composition, color, texture and other visual characteristics.

Lot means a portion of a subdivision or other parcel of land intended as a unit of ownership and occupied or intended to be occupied by one main structure and accessory structures or a complex of structures, including open spaces and parking. A lot may be more than one lot of record or may be a metes and bounds described tract having its principal frontage upon a street or officially approved place.

Non-contributing Feature means a building, site, structure, or object that does not add to the architectural qualities, character-defining features, historic association, or archeological values of a Wichita Register Historic District or Wichita Register Historic Property because:

(a) It was not present during the pertinent time; or

(b) Due to alterations, disturbances, additions, or other changes, it no longer possesses integrity, nor reflects its significant historic character or is incapable of yielding important information about the pertinent historic period.

Object means those physical items that have functional, aesthetic, cultural, historical or scientific value and are relatively small in scale and simply constructed. While an object may be, by nature or design, movable, it should be located in a specific setting or environment appropriate to its significant historic use, role or character. Objects include, but are not limited to: sculptures, monuments, street signs, fence posts, hitching posts, mileposts, boundary markers, statuary, and fountains.

Owner(s) of Record means those individuals, partnerships, firms, corporations, public agencies, or any other legal entity holding title to property but not including legal entities holding mere easements or leasehold interests. (May also be referred to as property owner(s).) Current owner(s) of record are those listed as owners on the records of the register of deeds.

Permit means a building, demolition, moving, sign, fence, parking lot, roofing, siding, or swimming pool permit which is issued by the Office of Central Inspection.

Person means any individual, firm, association, organization, partnership, business, trust, corporation, or company.

Preservation staff means personnel assigned to provide staff services for the Historic Preservation Board.

Project Classification means for the purpose of the Certificate of Appropriateness, projects involving a Wichita Register Historic Property, or a building, object or structure within a Wichita Register Historic District shall be classified as major or minor.

(1) Major projects include:

(A) (i) Any undertaking requiring a permit for a Wichita Register Historic Property, unless determined minor by preservation staff and/or the design review committee; or(ii) Any undertaking requiring a permit on a site, land, area, object, building or structure within a Wichita Register Historic District unless determined minor by preservation staff and/or the design review committee; or

(B) (i) Any demolition permit or moving permit for any building, or structure listed as a Wichita Register Historic Property or

(ii) Any demolition permit or moving permit for any building, or structure within a Wichita Register Historic District;

(C) Any project deemed major by the design review committee regarding:(i) Wichita Register Historic Properties;

(ii) Buildings, site, land, area, object, or structures within a Wichita Register Historic District;

(2) Minor Projects Include: any project requiring a permit that proposes to repair or restore an existing element or feature, or replace an element or material with identical material and design to that which is existing for:

(i) Wichita Register Historic Properties; or

(ii) Buildings, site, land, area, object, or structures within a Wichita Register Historic District;

Project means any activity requiring a permit which would affect, change, or impact the appearance, or integrity of a Wichita Register Historic Property, or a building, site, land, area, object, or structure within a Wichita Register Historic District.

State Historic Preservation Officer or *SHPO* means the person designated by the Governor of the State of Kansas to administer the State Historic Preservation Program for the purpose of carrying out the provisions of the National Historic Preservation Act of 1966, as amended, and related laws and regulations. The terms State Historic Preservation Office or SHPO may also refer to the staff of the State Historic Preservation Officer.

Structure means anything constructed or erected, the use of which requires permanent or temporary location on or in the ground, including, but not limited to: buildings, fences, gazebos, signs, billboards and swimming pools.

Undesignated Historic Resource means those structures or buildings which have been determined and listed by the City Council by ordinance as having historical, cultural, aesthetic, architectural and/or archaeological significance or other character defining features.

Wichita Register Historic District means a group of historic resources or properties which are significant as a cohesive unit and contribute to the historical, architectural, archaeological or cultural values of the city, state or nation and which is so designated by the City Council.

Wichita Register Historic Property means property individually listed on Wichita's Register of Historic Places by the Board and the City Council according to the procedures and provisions in this Chapter."

(Ord. No. 42-146 § 1; Ord. No. 48-301, § 2, 3-24-09)

Sec. 2.12.1017. Declaration of policy.

The city council finds and declares as a matter of public policy that the identification, designation, protection, enhancement, preservation and use of historic resources is a public necessity and is required in the interest of the culture, prosperity, education and welfare of the people. The purposes of the ordinance codified in Sections 2.12.1015 through 2.12.1025 are:

(a) To protect, enhance and perpetuate historic resources which represent or reflect distinctive and important elements of the city's cultural, social, economic, political, archaeological and architectural history;

(b) To safeguard the city's historic and cultural heritage as embodied and reflected in such historic resources;

(c) To stabilize and improve property values in such locations of historic resources; and thus to strengthen the economy of the city;

(d) To promote and encourage restoration, rehabilitation, and maintenance of neighborhoods and districts and thus combat urban blight and decay;

(e) To foster civic pride in the beauty and noble accomplishments of the past;

(f) To protect and enhance the city's attractions to tourists and visitors and provide incidental support and stimulus to business and industry; and

(g) To promote the use and adaptive reuse of historic resources for the culture, education, enjoyment and economic welfare of the city's citizens and visitors.

(Ord. No. 41-921 § 3)

Sec. 2.12.1018. Wichita Register Listing.

The City Council may designate certain historic resources in the city and define, amend and delineate the boundaries thereof through listing on the Wichita Register of Historic Places.. Such listing shall be in addition to any other zoning district designation established in Chapter 28 of this Code. The prefix "H" shall indicate the property's designation.

(Ord. No. 41-921 § 4; Ord. No. 48-301, § 3, 3-24-09)

Sec. 2.12.1019. Same—Criteria for determination of significance.

In making such listing as set forth in Section 2.12.1018 of this Code, the City Council shall consider listing if a building, structure, site, land, area, object or district is at least fifty years old, retains a significant degree of integrity and meets one or more of the following criteria:

(a) Is associated with events that have made a significant contribution to the broad pattern of history of the city, county, state or nation;

(b) Is associated with a significant person or group of persons in the history of the city, county, state or nation;

(c) Embodies distinctive characteristics of a type, period, or method of construction, represents the work of a master builder/architect, possesses high artistic values, or represents a distinguishable entity whose components may lack individual distinction;

(d) Yields or is likely to yield information important in prehistory or history;

Criteria a, b, c, d shall be justified on the Wichita Register of Historic Places nomination form to be submitted by the applicant.

(Ord. No. 41-921 § 5; Ord. No. 48-301, § 4, 3-24-09)

Sec. 2.12.1019.1. Same—Historic district designation criteria.

The following shall apply to nomination of a Wichita Register Historic District:

(a) The boundaries of such historic districts shall be drawn so as to include all buildings, structures, sites, objects or land areas which meet one or more of the criteria set out herein or which directly affect or relate to such buildings, structures, sites, objects or land areas meeting one or more criteria of this section, provided that at least seventy-five percent of the total structures within the boundaries are of architectural, historical, archaeological, or cultural importance or value as determined by the board.

(b) A Wichita Register of Historic Places inventory nomination form accompanied by the following information is to be submitted to and retained by the Metropolitan Area Planning Department; and is required for establishment of an historic district:

(1) A list of specific historic resources located within the proposed district boundaries and a description of the particular importance or value of each such historic resource, such description to include the following:

(A) Approximate date of construction, and dates of major alterations, if known,

(B) Builder and/or architect, if known,

(C) Architectural style,

(D) Primary building materials,

(E) Current owner of record,

(F) Legal description of each property;

(2) A map showing the boundaries of the proposed historic district and the location of each structure of importance or value identified by a number or letter designation;

(3) Photographs of each building, structure, site, object, or land area.

(c) Establishment of an historic district or boundaries thereof shall be subject to the procedure specified in Section 2.12.1021.

(d) Applications to increase the boundaries of an historic district may be made if one or more of the following conditions are met:

(1) When buildings, structures, sites, objects, or land areas of importance or value that are related to such historic district are requested for inclusion;

(2) When facts previously undisclosed to or unknown by the Historic Preservation Board are revealed which indicate that a particular building or site is possessed of special architectural, archaeological, cultural character or economic viability of the district.

(e) Applications to reduce the boundaries of an historic district may be made when one or more of the following conditions have been met:

(1) When it can be shown that a particular building, structure, site, object or land area, has no historic, architectural, archaeological, or cultural character or value to the viability of the district;

(2) When it can be shown that no degradation of the district either physical, historical, architectural, archaeological, or cultural character will result from exclusion of property from the district.

(Ord. No. 41-921 § 6; Ord. No. 48-301, § 5, 3-24-09)

Sec. 2.12.1019.2. Same—Who may nominate.

A Wichita register of historic places inventory nomination form, completed by the applicant, must be submitted by one of the following:

(a) The property owner, or a minimum of fifty percent of property owners of record within an applicant historic district;

(b) A majority of the historic preservation board;

(c) A majority of the city council;

(d) Other, if accompanied by written consent of owner.

(Ord. No. 41-921 § 7)

Sec. 2.12.1020. Historic preservation board—Function.

The board will have the following functions:

(a) The board shall survey and inventory the historic resources within the city and those which may be eligible for listing on the Wichita Register of Historic Places and shall administer the identification, documentation and designation of such properties, and shall present verification of significance to the Metropolitan Area Planning Commission and the City Council.

(b) Consistent with those criteria set forth in Section 2.12.1019 of the Code of the City of Wichita, the board shall identify criteria to be used in determining whether certain buildings, sites, structures, land areas, districts, and interiors should be designated as Wichita Register Historic Properties or Wichita Register Historic Districts.

(c) The board shall administer Certificate of Appropriateness review for projects regarding Wichita Register Historic Properties, and buildings, sites, land areas, objects, or structures within a Wichita Register Historic District according to spec-

ified guidelines to determine whether to grant or deny approval of proposed undertakings. The design criteria shall be:

(1) The Secretary of Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings' and amendments thereto:

(a) A property shall be used for its historic purpose or be placed in a new use that requires minimal change to the defining characteristics of the building and its site and environment.

(b) The historic character of a property shall be retained and preserved. The removal of historic materials or alteration of features and spaces that characterize a property shall be avoided.

(c) Each property shall be recognized as a physical record of its time, place and use. Changes that create a false sense of historical development, such as adding conjectural features or architectural elements from other buildings, shall not be undertaken.

(d) Most properties change over time; those changes that have acquired historic significance in their own right shall be retained and preserved.

(e) Distinctive features, finishes, and construction techniques or examples of craftsmanship; that characterize a historic property shall be preserved.

(f) Deteriorated historic features shall be repaired rather than replaced. Where the severity of deterioration requires replacement of a distinctive feature, the new feature shall match the old in design, color, texture, and other visual qualities, and, where possible, materials. Replacement of missing features shall be substantiated by documentary, physical, or pictorial evidence.

(g) Chemical or physical treatments, such as sandblasting, that cause damage to historic materials shall not be used. The surface cleaning of structures, if appropriate, shall be undertaken using the gentlest means possible.

(h) Significant archeological resources affected by a project shall be protected and preserved. If such resources must be disturbed, mitigation measures shall be undertaken.

(i) New additions, exterior alterations, or related new construction shall not destroy historic materials that characterize the property. The new work shall be differentiated from the old and shall be compatible with the massing, size, scale, and architectural features to protect the historic integrity of the property and its environment.

(j) New additions, adjacent or related new construction shall be undertaken in such a manner that if removed in the future, the essential form and integrity of the historic property and its environment would be unimpaired. or

(2) Specific Design Review Guidelines as adopted by the Wichita City Council for the following Wichita Register Historic Districts and any and all other local historic districts hereafter designated by the City Council:

(a) East Douglas Avenue;

(b) Topeka/Emporia Avenue;

(c) Park Place/Fairview Avenue and;

(d) Bitting Avenue.

(d) The board shall review and provide comment to the Wichita Area Planning Commission on any proposed zoning change or any publicly funded projects of construction such as street, lighting, paving, sidewalks, etc., excepting maintenance which occurs within a two-hundred foot radius of any Wichita Register Historic Property or Wichita Register Historic District.

(e) The board shall review and comment on projects determined by the city archaeologist to pose a threat to an archaeological site.

(f) The board may suggest sources of funds for preservation and restoration activities and for acquisitions, to include federal, state, municipal, private and foundation sources.

(g) The board may recommend incentives for preservation.

(h) If the board finds that certain buildings, structures, land, areas, or districts cannot be preserved without acquisition, the board may recommend to the city council that the fee or a lesser interest in the property be acquired by gift, or purchase, using funds or facilities available for preservation or restoration.

(i) The board may annually review the status of historic resources and districts and include in the board minutes a report of such review.

(j) The board shall make or cause to be made, a preservation plan with authorization hereby to review and update the preservation plan as needed.

(k) The board may implement a receivership program for facade easement donations for the purpose of historic preservation.

(l) The board may recommend programs and legislation to the city council to encourage historic preservation in the city.

(m) The board shall review all determinations of the Superintendent of Central Inspection, that any Wichita Register Historic Property or any building or structure within a Wichita Register Historic District is dangerous and unsafe pursuant to chapter 18.16 and make any appropriate order regarding the repair or removal of such structure.

(n) The Board shall act as the advisory board to the City to assist the City in carrying out its responsibilities as a Certified Local Government. These responsibilities are outlined in the 'Procedures for Implementation of Certified Local Governments in Kansas' and as provided by the SHPO. The Board shall also carry out the City's responsibilities as outlined in any agreement with the SHPO to undertake reviews pursuant to K.S.A. 75-2724 and amendments thereto. Environs review is not applicable to Wichita Register Historic Properties or Wichita Register Historic Districts.

(o) The board may review and recommend local incentives which may encourage the listing of historic properties These may be in the form of tax rebates, permit fee waivers, utility reductions or other means to stimulate interest in historic preservation available only to properties listed on the Wichita Register of Historic Places. Such incentives shall be by agreement between the City, the property owner and the respective business or utility providing the reduction or rebate.

(Ord. No. 41-921 § 8; Ord. No. 48-301, § 6, 3-24-09)

Sec. 2.12.1021. Procedure for listing of historic resources and historic districts.

An application for listing on the Wichita Register of Historic Places requires the following:

(a) *Nomination:* A Wichita Register of Historic Places nomination form and, for districts, district preservation guidelines as defined in Section 2.12.1021.1, shall be submitted to the Metropolitan Area Planning Department. Nomination forms and guidelines, when required, must be submitted to the planning department not

less than thirty (30) days prior to the scheduled meeting of the Historic Preservation Board.

(b) *Notice of Hearing:* The applicant shall place a sign(s) on the property(ies) proposed for designation informing the general public that a public hearing will be held on a specific date concerning the proposed listing. The sign(s) shall be provided by the City, and placed in a location designated by the City. Such signs must be placed and remain in place for a period of not less than ten (10) days preceding the public hearing. The sign may be removed at the conclusion of the public hearing or upon withdrawal of the nomination. Failure to post the sign(s) in accordance with these procedures may result in a delay of the public hearing.

(c) *Hearing:* Upon receipt of such nomination, a hearing, by the Historic Preservation Board will be scheduled either at its regular meeting or at a special meeting, provided that published notice be given fifteen days prior to the date of such hearing. The owner or owners of any proposed Wichita Register Historic Property or property which is a part of a proposed Wichita Register historic District shall be mailed written notice at least fifteen days prior to the hearing relating to the designation of such property, the amendment to any designation thereof, or the proposed rescission of any designation or the amendment thereto. The board shall afford a full and fair hearing to all interested persons. The board may solicit expert testimony regarding the historic and architectural importance of the property or district under consideration for designation. All interested persons may appear in person or by representative and present evidence or comment. The board shall make its decision within a reasonable time, preferably at the close of the hearing. In the event a member of the board shall make application, evidence shall be presented in the same manner as all other persons and the board member shall not vote on the matter contained in the application. An affirmative vote of a majority of the members present is required to constitute an approval of any application presented to the board.

(d) *[Requirements.]* After consideration by the board, the applicant shall submit application for designation to the Metropolitan Area Planning Department, division of current plans. The following materials are required as part of the designation application:

(1) The historic preservation board recommendation;

(2) Required filing fee, unless submitted by the city council or the historic preservation board;

(3) Legal description and map of the boundaries of the proposed designation;

(4) Completed Wichita Register of Historic Places nomination form;

(5) District preservation guidelines as defined in Section 2.12.1021.1, if applicable;

(6) List of property owner(s) of record.

(e) *[Nomination.]* The nomination for listing on the Wichita Register of Historic Places or designation as a Wichita Register Historic District, shall be placed on the next possible Metropolitan Area Planning Commission meeting agenda for public hearing as provided in this Code to consider the listing. At the conclusion of its hearing, the Metropolitan Area Planning Commission shall set forth in writing its findings as to whether the listing is consistent with adopted plans and shall transmit such findings to the City Council.

(f) *[Enactment.]* After notice and public hearing as required by law in a zoning case under Title 28 of this Code, the City Council may enact by ordinance the historic property or his-

toric district designation. Upon passage of such ordinance, the city clerk shall file a certified copy of the ordinance with the county register of deeds, and provide an affidavit of public notice stating the fact of the designation to the county clerk. A copy of such affidavit shall be sent to the owner or owners of all affected property.

(g) *[Approval.]* Upon approval of the property or historic district designation, the ordinance listing such property by the City Council, the Metropolitan Area Planning Department shall set out on the official zoning map of the city, a designation corresponding to the case number and delineation of the property or properties involved. Designation shall not alter the uses permitted by the existing zoning classification or district regulations affecting the property.

(h) *[Objection; Public Hearing.]* When individuals owning more than thirty percent of the land, property or area within a proposed Wichita Register Historic District, object in writing and file with the city clerk or in person at the public hearing before the City Council, a two-thirds majority affirmative vote by the city council is required for approval of the designation.

(Ord. No. 41-921 § 9; Ord. No. 48-301, § 7, 3-24-09)

Sec. 2.12.1021.1. District preservation guidelines.

Preservation guidelines for Wichita Register Historic Districts, to be completed by the applicant, are required to be submitted with a nomination application. The district preservation guidelines shall include, but not be limited to the following:

(a) Guidelines for those seeking a Certificate of Appropriateness pursuant to Section 2.12.1023, including, but not limited to, the following:

(1) Acceptable materials for any construction, additions, remodeling or rehabilitation activities;

(2) Appropriate architectural character, scale, and detail for any construction, additions, remodeling or rehabilitation activities;

(3) Acceptable appurtenances to new and existing structures;

(4) Acceptable textures, and ornamentation;

(5) Acceptable accessories on new or existing structures;

(6) Such other building regulations which would have impact on either new or existing buildings;

(7) Acceptable standards for changes to noncontributing resources within the district;

(8) Acceptable signage.

(9) Acceptable fences or other enclosures.

(b) Guidelines for public improvements in such districts, including but not limited to: street lighting, street furniture, signs, landscaping, utility facilities such as electric poles and wires, telephone lines, design textures of sidewalks and streets, and such other elements as deemed necessary for enhancement and preservation.

(Ord. No. 41-921 § 10; Ord. No. 48-301, § 8, 3-24-09)

Sec. 2.12.1022. Historic district designation administrative requirements.

The following shall apply:

(a) When the Historic Preservation Board considers an area as a possible Wichita

Register Historic District, the board shall, prior to rendering its final recommendations, submit the nomination package including district preservation guidelines to city departments, boards and commissions, and other public agencies directly affected.

(b) In addition, the board shall, prior to rendering its final recommendation, make the district preservation guidelines available upon request to landowners in the proposed historic district.

(c) Board-approved graphics for designated structures within a such district may be prepared and made available to the owners of designated structures."

(Ord. No. 41-921 § 11; Ord. No. 48-301, § 9, 3-24-09)

Sec. 2.12.1023. Certificate of Appropriateness Review for Wichita Register Historic Properties and Wichita Register Historic Districts.

The following procedures/requirements apply to Certificate of Appropriateness review:

(a) *[Permit.]* A permit for any project affecting a Wichita Register Historic Property, or a building, site, land, area, object, or structure within a Wichita Register Historic District shall not be issued to any applicant by the Office of Central Inspection unless an application for a Certificate of Appropriateness has first been reviewed and approved by either the preservation staff, the Historic Preservation Board and/or the City Council. Projects not requiring a permit, but which propose to alter features which have been defined in a district's preservation guidelines as requiring protection, shall require a Certificate of Appropriateness application. Projects which will or have the potential to damage or destroy historic features of a Wichita Register Historic Property, or any building, site, land, area, object, or structure which is located within a Wichita Register Historic District shall be subject to Certificate of Appropriateness review.

(b) *[Requirements.]* When applying for a Certificate of Appropriateness, the applicant shall provide plans, specifications or other documentation pertaining to the work as required on board-adopted application forms. A completed Certificate of Appropriateness application and accompanying materials must be submitted to the Metropolitan Area Planning Department. Preservation staff or design review committee will review the application and determine if the proposed work is a major or minor project. Such application must be submitted no less than fifteen (15) days prior to the scheduled meeting of the Historic Preservation Board.

(c) *Notice of Hearing:* For major projects, the applicant shall place a sign(s) on the property(ies) informing the general public that a public hearing will be held on a specific date concerning the proposed alterations of the property. The sign(s) shall be provided by the City, and placed in a location(s) designated by the City. Such sign(s) must be placed on the property (ies) for a period of no less than ten (10) days prior to the Historic Preservation Board meeting.

(d) *[Major Projects]* A Certificate of Appropriateness for a major project shall receive preliminary review by the design review committee or preservation staff. Preservation staff or the committee shall then report and make a recommendation to the board. The board shall review the application and recommend approval, approval with conditions, or denial within thirty days of the receipt of the application. Preservation staff shall notify the applicant of the board's decision and provide a copy to the Office of Central Inspection and the applicant. If an appeal of the board's decision is filed, by the applicant or any interested party, with the preservation staff within seven (7) business days of the board's decision, the Certificate of

(e) Final inspection is to be made by the Office of Central Inspection when all demolition related debris, contaminated soil, paving, concrete, foundations, and utilities have been removed from the property and disposed of properly.

(f) Failure to complete. In the event the certificate holder fails to complete the demolition within the time established by the date set by subsection (d), or abandons the project site, the Office of Central Inspection shall inspect the demolition site to determine the extent of work yet to be completed. The Superintendent of Central Inspection may issue an order to complete, as provided for in subsection (g).

(g) Order to complete. An order to complete may be issued by the Superintendent of Central Inspection in the event a demolition project is either abandoned or not completed in the allotted time. This order shall be posted on site and copies sent to owner of record, contractor, and lienholder. For the purpose of this section, lienholder shall include the bonding company and insurer, if any. An order to complete shall be issued in accordance with provisions for unsafe buildings or structures in the Uniform Building Code.

(h) If the order to complete is not complied with within the allotted time, the Superintendent of Central Inspection shall forfeit the bond, the proceeds of such bond shall be paid into the general fund.

(i) The City Council, on appeal of the decision of the Historic Preservation Board, may approve the Certificate of Appropriateness if it determines that feasible and prudent alternatives do not exist to the alteration, demolition or moving of the proposed project.

(j) The City Council may deny the Certificate of Appropriateness if it determines that in the interest of preserving historical values, the Wichita Register Historic Property, or building, site, land, area, object, or structure within a Wichita Register Historic District should not be demolished, moved or altered.

(k) In the event of an emergency demolition of a Wichita Register Historic Property, or a building, site, land, area, object, or structure within a Wichita Register Historic District, Office of Central Inspection staff shall notify the preservation staff as soon as possible.
(Ord. No. 42-645; Ord. No. 48-301, § 11, 3-24-09)

Sec. 2.12.1024.1. Review of demolition and moving permits—Undesignated Historic Resources.

An application to the Office of Central Inspection for a demolition or moving permit shall require notification to preservation staff if the permit is for property approved by the City Council as an Undesignated Historic Resource. The following procedure applies:

(a) Within fifteen days of receipt of the application by the Office of Central Inspection, a written notice shall be sent by certified mail to the owner or owners of such building, site or structure. The notice shall describe the property including its location and boundaries, justification of its historic or architectural significance, and statement of interim controls as provided in subsection (c). The notice shall also be delivered to the Office of Central Inspection with acknowledgment of receipt by the Superintendent of Central Inspection required.

(b) Immediate but temporary interim controls, as provided in subsection (c) below, prohibiting any alteration or demolition, may be placed by the preservation planner on any building, site or structure that is identified in the preservation plan as an Undesignated Historic Resource and for which a notice of interim control has been mailed, until effective evaluation of the building, site or structure can be made, provided that the interim period does not exceed thirty days. This thirty-day period may be extended by resolution of City Council but in no event may the interim control period exceed one hundred eighty days.

(c) The Office of Central Inspection is prohibited from issuing any permit for any building, site or structure upon which interim

control has been placed unless the Superintendent of Central Inspection or his designee certifies to the preservation planner that such permit is necessary due to emergency public safety reasons, or the demolition is approved by the preservation planner.

(d) The preservation planner shall, in the case of an Undesignated Historic Resource, work with the owner of the property to provide alternatives to demolition, or if demolition is the conclusive alternative, staff shall document or cause to be documented the resource with photographs, and/or measured drawings.

(e) If in the interim period, the Undesignated Historic Resource becomes listed on the Wichita Register of Historic Places pursuant to this subsection and Sections 2.12.1019, 2.12.1019.2 and 2.12.1021 and a permit application to demolish or move is sought, the procedure in Section 2.12.1024 shall apply.

(f) Any person applying for a demolition permit, affected by the provisions of this section and who is aggrieved thereby, may request and shall be granted an informal hearing on the matter before the Director of Planning. Such person shall file in the office of the Director of Planning, a written request for an informal hearing and setting forth a brief statement of the grounds there for, within ten days after the day of the decision complained of. Upon receipt of such petition, the Director of Planning shall set a time and place for such informal hearing and shall give the petitioner written notice thereof. At such informal hearing, the petitioner shall be given an opportunity to be heard and to show why the determination of preservation planner should be modified or withdrawn. The informal hearing shall be commenced not later than five business days after the day on which the petition was filed. Upon application of the petitioner, the Planning Director may postpone the date of the informal hearing for a reasonable time beyond such five day period, if in his judgment the petitioner has submitted a good and sufficient reason for such postponement.

(g) The Director of Planning shall notify the individual of his or her decision in writing, stating the reasons such decision. Service of the decision shall be by certified mail, return receipt requested. Service of process by certified mail shall be considered obtained upon the delivery of the certified mail envelope.

(h) Any person dissatisfied with any order or determination of the Director of Planning made under his or her authority pursuant to this section may appeal such order or determination to the City Council. An appeal must be filed with the City Clerk no more than ten business days from the date of the written order appealed from. The City Council will hear the appeal at its next regularly scheduled meeting, but in no case, not later than thirty days from the filing of such appeal.

(Ord. No. 41-921 § 14; Ord. No. 48-301, § 12, 3-24-09)

Sec. 2.12.1024.2. Wichita Register Historic Property—Demolition by Neglect.

In the event of Demolition by Neglect, as defined in Section 2.12.1016, of a Wichita Register Historic Property, or a building. site, land, area, object, or structure within a Wichita Register Historic District on public or private property, the following provisions shall apply:

(a) If a Wichita Register Historic property or a contributing feature within a designated Wichita Register Historic District has been determined by the Historic Preservation Board to be the subject of Demolition by Neglect, the board or staff shall notify the Superintendent of Central Inspection to issue a written notice specifying the conditions of deterioration and the minimum items of repair or maintenance necessary to correct or prevent further deterioration.

(b) Such notice shall be sent by certified mail, return receipt requested, addressed to the owner of the property, or other responsible person, at his or her last known address, or the address shown on the real property tax records in the clerk's office of the county. Such notice, when so addressed and deposited with the postal service with proper postage prepaid, shall be deemed complete and sufficient. In the event that notification cannot be accomplished, as aforesaid, after reasonable efforts, notice shall be accomplished by posting a public notice on the property.

(c) The notice shall provide:

(1) That corrective action commence no later than thirty days from the receipt or posting of the notice, unless an extension is granted by the Historic Preservation Board or City Council.

(2) The owner shall demonstrate continual progress and all repairs shall be completed within a reasonable period of time.

(3) The owner(s) of record of the subject property, or any person therein, may, within ten days request a hearing before the Historic Preservation Board challenging the finding, of Demolition by Neglect and/or the notice to repair. If such request for a hearing is received within this time period, a hearing will be at the next regular meeting of the Historic Preservation Board.

(d) The board shall review all evidence of Demolition by Neglect at the scheduled hearing. The board shall review the options and procedures set forth in Section 18.16.070 to determine the appropriate action necessary.

(e) In the event that the Historic Preservation Board finds that the actions provided in subsections (a) and (c) of this section would impose a substantial hardship on the owner or any or all persons with any right, title or interest in the subject property, then the board shall establish a period of forty-five (45) days and direct staff to seek alternative methods to preserve the Wichita Register Historic Property and any contributing structure located within the Wichita Register Historic District.

(f) If no alternative is found to preserve the structure without undue hardship to the owner, and the structure is determined a threat to human safety and is in violation of city code, a demolition permit may be issued.

(g) The provisions of this section shall supersede Sections 20.04.180 and 18.40.180 of this Code when applied to removal and demolition of Wichita Register Historic Properties. Any requirements imposed upon an applicant by the Historic Preservation Board under this section may be appealed to the city council.

(Ord. No. 41-921 § 15; Ord. No. 48-301, § 13, 3-24-09)

Sec. 2.12.1024.3. Certificate of Economic Hardship.

(a) *Purpose.* A Certificate of Economic Hardship serves as an alternative to a Certificate of Appropriateness whenever a Certificate of Appropriateness would otherwise be required. The purpose of the Certificate of Economic Hardship is to provide relief where the application of this code would otherwise impose undue economic hardship.

(b) *Application for Certificate.*

(i) An application for a Certificate of Economic Hardship shall be made on a form prepared by preservation staff. Such application may be made in conjunction with, or separately from, an Application for a Certificate of Appropriateness or upon the denial of a Certificate of Appropriateness. The Board shall schedule a public hearing concerning such applications within thirty days.

(ii) The notification and appeal provisions of Section 2.12.1023 shall apply to applications for Certificates of Economic Hardship.

(iii) The board may solicit expert testimony or request that the applicant produce any or all of the following information before it makes a determination on the application:

(A) Estimate of the cost of the proposed construction, alteration, demolition or removal, and an estimate of any additional cost that would be incurred to comply with the recommendations of the board for changes necessary for the issuance of a certificate of appropriateness;

(B) A report from a qualified or bonded person with experience in rehabilitation as to the structural soundness of any structures on the property and their suitability for rehabilitation;

(C) Estimated market value of the property in its current condition; after completion of the proposed construction, alteration, demolition, or removal; after any changes recommended by the board; and, in the case of a proposed demolition, after renovation of the existing property for continued use;

(D) In the case of a proposed demolition, an estimate from an architect, developer, real estate consultant, appraiser, or other real estate professional experienced in rehabilitation as to the economic feasibility of rehabilitation or reuse of the existing structure on the property;

(E) If the property is income-producing, the annual gross income from the property for the previous two years; itemized operating and maintenance expenses for the previous two years; and depreciation deduction and annual cash flow before and after debt service, if any, during the same period;

(F) Remaining balance on any mortgage or other financing secured by the property and annual debt service, if any, for the previous two years;

(G) All appraisals obtained within the previous two years by the owner or applicant in connection with the purchase, financing, or ownership of the property;

(H) Any listing of the property for sale or rent, price asked and offers received, if any, within the previous two years;

(I) Assessed value of the property according to the two most recent assessments;

(J) Real estate taxes for the previous two years;

(K) Form of ownership or operation of the property, whether sole proprietorship, for-profit or not-for-profit corporation, limited partnership, joint venture, or other;

(L) Any other information considered necessary by the board to a determination as to whether the property does yield or may yield a reasonable return to the owners.

(c) *Determination.* The board shall review all the evidence and information required of an applicant for a Certificate of Economic Hardship and make a determination of whether the denial of the application will deprive the owner of the property or reasonable use of, or reasonable economic return on, the property. Written notice of the determination shall be provided in the same manner as notification of a determination concerning a Certificate of Appropriateness.
(Ord. No. 48-301, § 14, 3-24-09)

Sec. 2.12.1024.4. Reserved.

Sec. 2.12.1024.5. Notice of Hearing of Certified Local Government Review of Applications for State or National Listings and Environs Review of Major Projects.

(a) Nomination forms for listing on the Register of Historic Kansas Places or the National Register of Historic Places must be submitted to the Planning Department not less than fifteen (15) days prior to the scheduled meeting of the Historic Preservation Board. The applicant for listing on the Register of Historic Kansas Places or National Register of Historic Places shall place a sign(s) on the property(ies) proposed for state or national listing informing the general public that a public hearing will be held on a specific date concerning the proposed listing. The sign(s) shall be provided by the City, and placed in a location designated by the City. Such signs must be placed and remain in place for a period of not less than ten (10) days preceding the public hearing. The sign may be removed at the conclusion of the public hearing or upon withdrawal of the nomination. Failure to post the sign(s) in accordance with these procedures may result in a delay of the public hearing.

(b) Application forms for review of projects by the certified local government must be filed with Planning Department not less than fifteen (15) days prior to the scheduled meeting of the Historic Preservation Board. The applicant for major projects occurring within the environs of property listed on the Register of Historic Kansas Places or the National Register of Historic Places shall place a sign(s) on the property(ies) on which such projects are being proposed, informing the general public that a public hearing will be held on a specific date concerning the proposed listing. The sign(s) shall be provided by the City, and placed in a location designated by the City. Such signs must be placed and remain in place for a period of not less than ten (10) days preceding the public hearing. The sign may be removed at the conclusion of the public hearing and must be removed by the applicant at the end of all proceedings on the application or upon withdrawal of the application. Failure to post the sign(s) in accordance with these procedures may result in a delay of the public hearing.
(Ord. No. 48-301, § 15, 3-24-09)

Sec. 2.12.1025. Same—Penalty.

(a) It is unlawful to construct, reconstruct, structurally alter, remodel, renovate, restore, demolish, deface, move or maintain Wichita Register Historic Property, or a building, site, land, area, object, within a Wichita Register Historic District in violation of the provisions of this chapter.

(b) It is unlawful for any owner or individual in control of a Wichita Register Historic Property or a building, site, land, area, object, or structure within a Wichita Register Historic District to fail to provide reasonable care, appropriate maintenance and upkeep of such property for the protection, preservation, and enhancement of such property.

(c) It is unlawful for any person, owner, individual, firm or corporation to enlarge, alter, convert, demolish or change the use of any property listed on the Wichita Register Historic Property or a building or structure within a Wichita Register Historic District without first obtaining a building permit or other permit as required by the Code of the City of Wichita.

(d) In addition to other remedies, the City may institute any appropriate action or proceedings to prevent such unlawful construction, restoration, demolition, moving or maintenance to restrain, correct or abate such violation. Any person who violates any provision of the ordinance codified in the sections cited above shall be guilty of a separate offense for each day or portion thereof during which any such violation is committed, continued or permitted, and each offense shall be punishable by a fine of not more than five hundred dollars.
(Ord. No. 41-921 § 16; Ord. No. 48-301, § 16, 3-24-09)

Sec. 2.12.1026. Reserved.

Editor's note—Ord. No. 50-088, § 6, adopted Oct. 13, 2015, repealed § 2.12.1026 which pertained to cemetery interment, monument permit fee, the sale of cemetery spaces, and penalties, and derived from § 17 of Ord. No. 41-921.

Cross reference—Permit use fees for city cemeteries, see Chapter 3.70 of this Code.

Sec. 2.12.1030. Establishment of the Wichita-Sedgwick County Addiction Intervention Coalition.

The Wichita-Sedgwick County Addiction Intervention Coalition is hereby established.
(Ord. No. 52-739, § 1, 5-27-25)

Sec. 2.12.1031. Purpose of the Wichita-Sedgwick County Addiction Intervention Coalition.

The purpose of the Wichita-Sedgwick County Addiction Intervention Coalition (the "Coalition") is to evaluate and recommend effective allocation of the Municipalities Fight Addiction Fund settlement funds to local governments as a result of Kansas Fights Addiction Act (K.S.A. 75-775 et seq.). To this effect, the Coalition shall provide advice and recommendations to the City Council of City of Wichita and the Board of County Commissioners of Sedgwick County on matters pertaining to substance abuse prevention and treatment services, to assist in preparation of the Request for Proposal/Request for Bids ("RFP/RFB") and subsequent evaluation of respective responses for substance abuse prevention and treatment services funded by opioid settlement funds, and to monitor the effectiveness of such substance abuse prevention and treatment services and programs receiving opioid settlement funds.
(Ord. No. 52-739, § 2, 5-27-25)

Sec. 2.12.1032. Wichita-Sedgwick County Addiction Intervention Coalition; functions and responsibilities.

The functions and responsibilities of the Wichita-Sedgwick County Addiction Intervention Coalition shall include the following:

(a) Advise and make recommendations to the City Council of City of Wichita and the Board of County Commissioners of Sedgwick County on the use of opioid settlement funds for substance abuse prevention and treatment services in alignment with the established strategic plan.

(b) Assist appropriate City of Wichita and Sedgwick County departments with preparation of Request for Proposals/ Request for Bids (RFP/RFB) for services contemplated under the strategic plan.

(c) Review and evaluate responses to RFP/ RFB and make recommendations to the respective governing bodies or their designated purchasing departments as may be appropriate in order to facilitate selection and contracting for services contemplated under the strategic plan.

(d) Monitor and evaluate the effectiveness of substance abuse prevention and treatment services funded and programs receiving opioid settlement funds.

(e) Advise the City Council of City of Wichita and the Board of County Commissioners of Sedgwick County regarding the implementation of the strategic plan and make recommendations to allocate funding accordingly.

(Ord. No. 52-739, § 3, 5-27-25)

Sec. 2.12.1033. Wichita-Sedgwick County Addiction Intervention Coalition; organization, composition, and dissolution.

(a) The Wichita-Sedgwick County Addiction Intervention Coalition (the "Coalition") shall be comprised of not less than eleven (11) and not more than fifteen (15) members. Such members shall be selected from across the substance abuse treatment and prevention community, including but not limited to social service, parole, probation, medical, mental health, academic, court, and law enforcement agencies.

(b) The Chairman of the Sedgwick County's Board of County Commissioners (the "BOCC") may elect to appoint one (1) Commissioner of the BOCC to serve as a non-voting Ex-Officio member of the Coalition.

(c) The City of Wichita's City Council (the "City Council") may elect to appoint one (1) Council Member to serve as a non-voting Ex-Officio member of the Coalition.

(d) No member of the immediate family of any member of the City Council, nor the BOCC shall eligible to serve on the Coalition.

(e) No person shall be appointed a member of the Coalition unless such person is a resident of Sedgwick County at the time of the appointment.

(f) Except as specified in subsections (b) and (c) of this Section, all such appointed members shall be considered voting members subject to conflicts of interest and recusal provisions set forth below.

(g) Members of the WSAIC shall be appointed for a period of two (2) years.

(h) First appointments shall be done on May 14th of 2025 or as soon thereafter as both governing bodies appoint such members. First term for all such first appointments shall being on the date such members are appointed and end on December 31, 2027. In the event a member of the Coalition does not complete their term, any member appointed to fill such vacancy shall be appointed to serve the remainder of the unexpired term.

(i) After December 31, 2027, all subsequent regular appointments shall be made on the first week of January of each year on as-needed basis. Nothing shall preclude governing bodies from jointly appointing a new member of the Coalition at other times as may be necessary to replace an existing member or fill a vacant position.

(j) No member shall serve more than two consecutive full terms. Any partial term a member may serve due to a vacancy shall not count as a term for purposes of this term limitation.

(k) Any member of the Coalition who misses three (3) consecutive meetings or attends less than half of the meetings over a consecutive 12-month period, shall be subject to removal subject to the process specified in subsection (q)(3) of this Section.

(l) All Coalition members shall be appointed in the following manner:

(1) Except as specified in subsections (b) and (c) of this Section, the City of Wichita's City Manager (the "City Manager") and Sedgwick County's County Manager (the "County Manager") shall prepare an agreed-upon list of individuals recommended to be appointed to act as Coalition members;

(2) Both the City Manager and County Manager shall jointly recommend to both governing bodies to appoint such recommended individuals to serve as members of the Coalition; and

(3) Except as specified in subsections (b) and (c) of this Section, for any such individual to be appointed, a simple majority vote of each respective governing body is required.

(m) No member shall continue to serve if such members ceases to be a resident of Sedgwick County. If a member of the Coalition no longer meets the member eligibility criteria, such member shall submit their resignation from the Coalition to both the City Manager and the County Manager.

(n) Each member of the Coalition shall disclose any conflict of interest, as defined in the bylaws to be adopted by the Coalition, as may arise in connection with matters being considered by the Coalition and shall refrain from discussing or voting on any such matters. No member of the Coalition shall participate in the discussions pertaining to nor vote on matters for which the member has a conflict of interest.

(o) Coalition members shall not receive compensation, nor shall they be reimbursed for personal expenses.

(p) All appointments to the Coalition shall be made by written notice of appointment, which shall clearly state that such appointment is made subject to all the provisions outlined herein, the term of the appointment, and that members so appointment may be removed by the joint decision of the City and County Manager for violation of any of the rules and regulations herein established or violation of additional rules established through bylaws or both.

(q) Subject to other exceptions outlined in this Section, a member's term shall continue until any of the following occurs:

(1) The resignation, incapacity or death of the member;

(2) The end of the term of the member for which such member was appointed to serve; or

(3) The member's removal upon joint recommendation of the City and County Manager and a simple majority vote of both respective governing bodies.

(r) Primary staff support to the Council will be provided by the City Manager's and County Manager's designees. City and County staff will provide technical and professional support to the Council programming operations on an as-needed basis.

(s) The dissolution of the Coalition shall be done by ordinance of the City Council or resolution by the Board of County Commissioners.
(Ord. No. 52-739, § 4, 5-27-25)

Sec. 2.12.1034. Wichita-Sedgwick County Addiction Intervention Coalition; meetings.

(a) The Wichita-Sedgwick County Addiction Intervention Coalition (the "Coalition") shall fix the time and place at which its meetings shall be held. Meetings shall be held within Sedgwick County and shall be subject to the Kansas Open Meeting Act, K.S.A. 75-4317 et seq., and amendments thereto. Notice and minutes of all meetings shall be provided to the City Clerk and the County Clerk.

(b) The Coalition shall abide by the Kansas Open Meeting Act, K.S.A. 75-4317 et seq., and the Kansas Open Records Act, K.S.A. 45-215 et seq.

(c) The majority of the Coalition then serving shall constitute a quorum at any regular or special meeting; and a majority of those present in either case shall have power to act in all matters.

(d) The members of the Coalition shall be subject to the provisions of the laws of the State of Kansas relating to conflicts of interest of political subdivision's officers and employees, including, but not limited to, K.S.A. 75-4301 et seq., and amendments thereto.

(e) The Coalition shall conduct meetings, elect officers and adopt by-laws which shall not conflict with the parameters established in this Resolution.
(Ord. No. 52-739, § 5, 5-27-25)

Sec. 2.12.1035. Wichita-Sedgwick County Addiction Intervention Coalition; severability.

If any provisions or section of this Joint Ordinance and Resolution is deemed or ruled unconstitutional or otherwise illegal or invalid by any court of competent jurisdiction, such illegality or invalidity shall not affect any other provision of this Joint Ordinance and Resolution. This Joint Ordinance and Resolution shall be construed and enforced as if such illegal or invalid provision had not been contained herein.
(Ord. No. 52-739, § 6, 5-27-25)

Sec. 2.12.1036. Wichita-Sedgwick County Addiction Intervention Coalition; effect.

The Sedgwick County Clerk is directed to publish this Joint Resolution and Ordinance once in the official County newspaper. This joint Resolution and Ordinance shall take effect and be in force upon approval and shall be published once in the official County and City newspaper.
(Ord. No. 52-739, § 7, 5-27-25)

Sec. 2.12.1040. Wichita Airport Authority—Creation.

There is created an airport authority as provided and authorized by the terms and provisions of House Bill No. 2070 (Chapter 5, 1975 Session Laws) enacted during the legislative session of 1975 by the legislature of the State of Kansas.
(Ord. No. 34-006 (part))

Sec. 2.12.1041. Same—Name of authority.

The airport authority shall be officially named "The Wichita Airport Authority."
(Ord. No. 34-006 (part))

Sec. 2.12.1042. Same—Composition of authority.

(a) The governing body of the city is established as the governing body of the Wichita airport authority and the members of the governing body of the city are established as the members of the Wichita airport authority. Such members shall continue to exercise all power, authority and control heretofore vested in the Wichita airport authority.

(b) The governing body of the city acting as the governing body and members of the Wichita airport authority shall have such composition, qualifications, officers, terms of office, quorum and procedures for the transaction of business as is now or hereafter established by law and ordinance for the governing body of the city; provided, that when state law or Charter Ordinance requires the Wichita airport authority to act in a different manner or under different procedures than is required for the governing body of the city, such different procedures shall control for actions of the Wichita airport authority.

(c) The terms of office of each member currently appointed to the Wichita airport authority shall expire on the effective date of this ordinance.* Notice of the expiration of terms under the procedures of Section 2.12.030 shall be deemed given.
(Ord. No. 44-315 § 1)

*__Editor's note—__Ordinance 44-315, which enacted Section 2.12.1042, is effective on 11-1-99.

Sec. 2.12.1048. Same—Power and authority.

When an airport authority has been established as provided herein, and the members thereof have been qualified in the manner provided by law, such authority shall be vested with all powers, authority and control heretofore vested in the governing body, the board of park commissioners or other body of the city, so far as the same relates to municipal airports, and such airport authority shall have every power, authority and control over municipal airports as is or may hereafter be vested in the board of park commissioners, the governing body or other body of the city, except that all general obligation bonds required or authorized by law to be issued relating to municipal courts, and all taxes levied for the maintenance and improvements of municipal courts, shall be issued and levied by the governing body of the city.
(Ord. No. 34-006 (part))

Sec. 2.12.1049. Same—Airport operations—Office facilities and employees.

The city shall maintain such offices, employees and safety force on behalf of the Wichita Airport

Authority as is deemed appropriate for the orderly transaction and management of the business of the airports. The operations of the municipal airports shall hereafter be established as a department or division of the city under the city manager on behalf of the Wichita airport authority with such organization, functions, and duties as may be otherwise set forth by ordinance and administrative regulation.
(Ord. No. 44-315 § 2)

Sec. 2.12.1050. Same—Authority to contract.

The airport authority may contract with any person, firm, corporation or governmental entity for the transaction of its business and may appoint, employ and discharge such agents, consultants, employees and servants as it may deem necessary, and fix the duties and compensation of all such appointees, and require any of them to give security for the faithful performance of their duties.
(Ord. No. 34-006 (part))

Sec. 2.12.1051. Same—Safety force.

There is created a safety force, the members of which shall be appointed by the city on behalf of the Wichita airport authority.

A safety officer appointed hereunder shall have the same power, authority, responsibility and immunity as duly appointed and commissioned police officers of the city; provided, however, this authority shall be exercised only within and upon the property under the control and jurisdiction of the airport authority and on roads adjacent thereto.

Nothing contained herein shall in any way be construed to limit or restrict the police power of the city.
(Ord. No. 44-315 § 3)

Sec. 2.12.1052. Same—Assumption of duties by authority.

The airport authority authorized and created herein shall assume the duties, obligations and authorities granted herein as of 12:01 a.m. on November 1, 1975.
(Ord. No. 34-006 (part))

Sec. 2.12.1053. Airport advisory board—Created.

There is created an advisory board to the city known as the airport advisory board.
(Ord. No. 44-315 § 4)

Sec. 2.12.1054. Airport advisory board—Membership—Appointment—Terms.

(a) The airport advisory board shall consist of not to exceed thirteen members. Seven members shall be appointed by the governing body of the city. Five members may be nominated by the board of county commissioners of Sedgwick County and appointed by the city council. The chairman of the regional economic area partnership shall serve ex officio with full power to vote and participate.

(b) The terms of office shall be as set forth in Section 2.12.020(1).

(c) The members shall receive no compensation for their services, but may be reimbursed for all necessary expenses incurred in the performance of their duties as members of such board.
(Ord. No. 44-436; Ord. No. 44-315)

Sec. 2.12.1055. Airport advisory board—Organization.

The board shall conduct meetings, elect officers and adopt by-laws in accordance with the policy for boards and commissioners. The city manager shall provide the necessary staff support to insure that the board receives informational support and professional and technical assistance necessary to carry on its duties and conduct its meetings.
(Ord. No. 44-315 § 6)

Sec. 2.12.1056. Airport advisory board—Duties.

The board shall advise the city on such matters pertaining to the operations of the municipal airports and perform such other duties as may be requested by such city council from time to time.
(Ord. No. 44-315 § 7)

Sec. 2.12.1067. Emergency communications consolidation agreement.

The City Council of the City of Wichita, Kansas and the board of county commissioners of Sedgwick County, Kansas, agree to continue consolidation of their emergency communications as authorized by K.S.A. 12-2908.
(Ord. No. 42-252 § 1)

Sec. 2.12.1068. Sedgwick County Emergency Communications Advisory Board—Created.

There is created the Sedgwick County emergency communications advisory board.
(Ord. No. 42-252 § 2; Ord. No. 49-242, § 1, 3-20-2012)

Sec. 2.12.1069. Same—Membership and term of office.

(a) The Sedgwick County emergency communications advisory board shall consist of the following permanent membership:

1. The Sedgwick County Sheriff;
2. The Sedgwick County Fire Chief;
3. The Sedgwick County Director of Emergency Medical Services;
4. The Sedgwick County Director of Emergency Management;
5. The Chief of the Wichita Police Department;
6. The Chief of the Wichita Fire Department;
7. The Chief of the Derby Police Department; and
8. The Chief of the Derby Fire Department.

(b) In addition to the positions described above, the following positions are subject to inclusion on the Sedgwick County Emergency Communications Advisory Board.

1. Manager Representatives. The Sedgwick County and the Wichita City Managers may each designate a representative to this Board.
2. Suburban Representatives. The permanent membership shall appoint one agency head from a suburban law enforcement agency within Sedgwick County and one agency head from a suburban fire agency within Sedgwick County to five-year terms as voting members. These two individuals will represent the interests of all suburban law enforcement and suburban fire agencies within Sedgwick County.
3. City of First-Class Representatives. The designation of any city in Sedgwick County, Kansas (besides Wichita and Derby) as a city of first class shall trigger automatic membership rights. At such time as the respective city is designated a city of first class pursuant to K.S.A. 13-101, the chief of police and chief of the fire department of the respective city shall be authorized to join the Sedgwick County Emergency Communications Board.

(c) The members of the Sedgwick County Emergency Communications Advisory Board shall assume membership upon appointment or election to their respective positions. They will serve on the Emergency Communications Advisory Board as long as they hold their respective elected office or appointed position. Notwithstanding the foregoing, any permanent member or selected representative may resign from, or decline the position on, the Sedgwick County Emergency Communications Advisory Board by submitting such intent in writing to the Sedgwick County Manager's Office. An updated list of active members shall be kept by the Sedgwick County Manager's Office.
(Ord. No. 42-252 § 3; Ord. No. 49-242, § 2, 3-20-2012; Ord. No. 52-885, §§ 1.1, 2, 1-20-26; Ord. No. 52-886, § 1, 1-20-26)

Sec. 2.12.1070. Same—Meetings, officers, recordkeeping.

The Sedgwick County emergency communications advisory board shall convene for its meetings at such time and place as shall be fixed by the board's president. The Sedgwick County emergency communications advisory board shall

elect one member as its president and one member as its vice-president. The terms of the president and vice-president shall be for one year. The president will act as leader of convened meetings, enforce membership rules and will be the official spokesperson and representative of the board. The vice president will assume the duties of the president in the president's absence. The director of Sedgwick County emergency communications will act as staff to the advisory board and serve in an ex officio capacity on the advisory board. The director of Sedgwick County emergency communications shall cause a proper record to be kept of all proceedings of the emergency communications advisory board.
(Ord. No. 42-252 § 4; Ord. No. 49-242, § 3, 3-20-2012)

Sec. 2.12.1071. Same—Responsibilities generally.

The Board shall review and approve the operational policies and procedures and other related matters regarding the Emergency Communications department in context of effect on all agencies dispatched by Sedgwick County Emergency Communications. The board may review recommendations of new technologies utilized by the Sedgwick County emergency communications department which directly supports the 911 infrastructure.
(Ord. No. 42-252 § 5; Ord. No. 49-242, § 4, 3-20-2012; Ord. No. 52-885, §§ 1.2, 2, 1-20-26; Ord. No. 52-886, § 2, 1-20-26)

Sec. 2.12.1072. Same—Organization, functions, administrative responsibility and location of operations.

The Sedgwick County manager will select a director of emergency communications for the day-to-day operations of the Sedgwick County emergency communications department. The emergency communications advisory board may participate in the recruitment process if requested to do so by the county manager. The department of emergency communications upon the effective date of this joint resolution and ordinance, and so long as it remains in effect, will continue to provide emergency communications for all county emergency communications as well as City of Wichita police and fire at the same or higher level than existed at the effective date of this agreement. No charge shall be made to the City of Wichita for the provision of such communication services unless and until (A) the Sedgwick County manager shall have first consulted with the City of Wichita and with all other users of the emergency communications service herein described and (B) the service charge shall apply to all users of such service. The Sedgwick County emergency communications department will continue to physically be located at 714 N. Main Street, Wichita, Kansas. The administrative responsibility of the operation and employment of consolidated operating personnel of the department of emergency communications is assigned to the county manager of Sedgwick County. Upon request, administrative reports shall be provided to the City of Wichita.
(Ord. No. 42-252 § 6; Ord. No. 49-242, § 5, 3-20-2012)

Sec. 2.12.1073. Reserved.

Editor's note—Ord. No. 49-242, § 7, adopted March 20, 2012, repealed § 2.12.1073 in its entirety. Formerly, said section pertained to budget requirements and derived from Ord. No. 42-252, § 7.

Sec. 2.12.1074. Wichita-Sedgwick County Emergency Communications Department.

The operation of the emergency communications department, established January 1, 1977, is continued except as modified by this agreement. The director of such department shall be appointed by the Sedgwick County manager as herein provided for, and shall serve at the pleasure of the county manager. The director of emergency communications shall serve in the capacity of a department head, and shall exercise day-to-day supervision over all subordinate employees within the department, who shall be appointed in accordance with, and be subject to, the provisions of the administrative code and personnel manual of the county. It shall be the responsibility of county personnel services to make such examinations, conduct such tests, obtain such records, and generally supervise the personnel recruitment efforts of the emergency communica-

tions department as may reasonably be necessary in accordance with the general personnel practices and procedures of the county.
(Ord. No. 42-252 § 8)

Sec. 2.12.1074.1. Same—Personnel.

On the effective date of this agreement all employees of the department of emergency communications on such date shall become employees of Sedgwick County. These employees shall have such salary and benefits as shall be agreed upon in writing by the city manager and county manager by December 1, 1993, for implementation on January 1, 1994.
(Ord. No. 42-252 § 9)

Sec. 2.12.1075. Same—Equipment.

All equipment presently utilized in emergency communications will be assigned to Sedgwick County which shall be solely responsible for providing all necessary space for use by the emergency communications department. Title to all new equipment or real estate acquired by the department of emergency communications shall be in Sedgwick County and shall be financed by Sedgwick County. Upon termination of this agreement, all equipment and real estate acquired or purchased for the department of emergency communications on or prior to December 31, 1993 will be returned to the city and the county on the basis of seventy-three percent to the city and twenty-seven percent to the county; however, all equipment, personal property and real property acquired or purchased for said department on or after January 1, 1994 will become and remain the sole property of Sedgwick County. During the pendency of this agreement, Sedgwick County shall have authority to sell, trade or otherwise dispose of any equipment, personal property or real property which, in the sole discretion of the county, is surplus or obsolete property; and the proceeds of such sale, trade or disposition shall become the sole property of Sedgwick County.
(Ord. No. 42-252 § 10)

Sec. 2.12.1076. Duration of agreement.

The term of this agreement shall be for one year commencing January 1, 1994. On December 31, 1994, and on each December 31st thereafter, this agreement shall automatically renew for another yearly term unless either the board of Sedgwick County commissioners or city council of the City of Wichita, Kansas, shall terminate the agreement. Termination by either party, to be effective, must be in writing and provided to the other party prior to January 1st of the final year in which this agreement is to remain in effect.
(Ord. No. 42-252 § 11)

Sec. 2.12.1077. Agreement—Effective dates.

This joint resolution and ordinance codified in Sections 2.12.067 through 2.12.077 shall constitute an agreement between the City of Wichita and Sedgwick County and will take effect on February 1, 2026, upon compliance with K.S.A. 12-2908 et seq. and its publication once in the official city and county newspaper. A fully executed and attested copy shall be filed with the county clerk of Sedgwick County and the city clerk of the City of Wichita.
(Ord. No. 42-252 § 13; Ord. No. 49-242, § 6, 3-20-2012; Ord. No. 52-885, § 1.3, 1-20-26; Ord. No. 52-886, § 3, 1-20-26)

Secs. 2.12.1085—2.12.1088. Reserved.

Editor's note—Ord. No. 48-795, § 1, adopted Aug. 17, 2010, repealed §§ 2.12.1085—2.12.1088 in their entirety. Formerly said sections pertained to Energy Commission—Created—Term—City Council member appointed—Ex officio members and compensation; Officers, meetings adoption of bylaws and rules; Resposibilities; Oath and derived from Ord. No. 35-776; Ord. No. 35-615(part).

Sec. 2.12.1093. Utility location and coordination council—Established—Membership—Terms—Compensation.

There is established a utility location and coordination council that shall have a membership of nine appointees to the executive board, one from each of the following:

(1) Arkansas-Louisiana Gas Company—Division manager;

(2) City of Wichita—Director of public works;

(3) City of Wichita—Director of water and water pollution control, and Wichita gas utility;

(4) The gas service company—Division manager;

(5) Kansas Gas & Electric Company—Regional manager;

(6) Southwestern Bell Telephone Company—Division manager;

(7) Wichita-Sedgwick county metropolitan area planning department—Director of planning;

(8) Air Capital Cablevision, Inc.—Manager of franchising and development,

(9) Sedgwick county director of public works/engineer.

Appointments to the council shall bear no time-of-service limitations and shall be made by the respective directors of the above-listed organizations following written notification to the city council.

All members of the council shall serve without compensation.
(Ord. No. 35-559 (part))

Sec. 2.12.1094. Same—Officers—Meetings—Adoption of rules.

The officers of the board shall be a chairperson and a vice chairperson who shall be elected by the board from among its members at the first regular meeting in July of each year. The board shall meet at least monthly at such time and place as may be fixed by the chairperson. Special meetings may be called by the chairperson or by three members of the board by giving notice at least twenty-four hours in advance of said special meeting to all members of the board. The board may adopt such bylaws and rules as it may deem necessary within the authority conferred and subject to the approval of the city council.
(Ord. No. 35-559 (part))

Sec. 2.12.1095. Same—Secretary—Other staff.

The city manager will assign staff members as secretary to the council and such other staff members as may be required.
(Ord. No. 35-559 (part))

Sec. 2.12.1096. Same—Duties.

It shall be the function of the council to set policy and guidelines, develop design and location standards for utility construction in public rights-of-way, to develop procedures for standardization of mapping and recordkeeping in connection with utility installations, to coordinate capital planning and budgeting, to develop liaison systems between the city and private utility operations, to promote safety in construction, and to minimize public inconvenience caused by construction in public rights-of-way.

A subcommittee or working committee shall be composed of delegates from:

(1) Public works engineering (City);

(2) Public works maintenance (City);

(3) Western Union Telegraph Company;

(4) K. G. & E,

(5) Southwestern Bell Telephone Company;

(6) Gas service company;

(7) Arkla Gas Service Company;

(8) Department of water and water pollution control (City);

(9) Cable T.V.;

(10) Traffic engineering (City);

(11) Public works engineering (County);

(12) Railroads;

(13) McConnell Air Force Base—Civil engineering.

This committee shall be involved with the daily operations of utility location and coordination by meeting weekly to review field operations and proposed plans.
(Ord. No. 35-559 (part))

Sec. 2.12.1097. Same—Oath.

Each member of the utility location and coordination council shall, before entering upon the duties of his office, take and subscribe to an oath to support the Constitution of the United States and the Constitution of the state and to faithfully administer and discharge the duties of a member of the utility location and coordination council.
(Ord. No. 35-559 (part))

Sec. 2.12.1100. Wichita Private Industry Council—Creation.

There is hereby created the Wichita private industry council in accordance with Title VII of the Comprehensive Employment and Training Act Amendments of 1978, Public Law 95-524, October 17, 1978.
(Ord. No. 36-014 (part))

Sec. 2.12.1101. Wichita Private Industry Council—Planning area jurisdiction.

The area of planning jurisdiction for comprehensive employment and training shall be within the city limits.
(Ord. No. 36-014 (part))

Sec. 2.12.1102. Wichita Private Industry Council—Composition, appointment of members, terms of office and vacancies.

The city council shall appoint fourteen private industry council members representative of industry and the business community, including small business and minority business enterprises, organized labor, community-based organizations and educational agencies and institutions. The council may include members of existing or newly formed organizations and representatives of persons eligible to participate in activities under Title VII of the Comprehensive Employment and Training Act Amendments of 1978. In no event shall representatives of business and industry have less than a majority on the council and, when possible, at least half of such business and industry representatives shall be from small business, i.e. pri-

vate, for profit enterprises employing five hundred or fewer employees. The terms of office shall be as set forth in Section 2.12.020(1).
(Ord. No. 40-709 § 10)

Sec. 2.12.1103. Wichita Private Industry Council—Chairperson and vice chairpersons.

The private industry council (P.I.C.) shall have a chairperson who shall be elected by the members of the P.I.C. from among representatives of business and industry. The first vice chairperson and second vice chairperson shall be elected by the P.I.C. council from among its members and the city shall provide professional, clerical and technical staff to serve the council.
(Ord. No. 36-066)

Sec. 2.12.1104. Wichita Private Industry Council—Relationship to Wichita Manpower Area Planning Council.

In addition to any other duties, the chairperson of the Wichita private industry council shall, in person or by designated representative selected from the private industry council membership, serve as a nonvoting, ex officio member of the Wichita manpower area planning council. Also, in addition to any other duties, the chairperson of the Wichita manpower area planning council shall, in person or by designated representative selected from the Wichita manpower area planning council, serve as a nonvoting, ex officio member of the Wichita private industry council.
(Ord. No. 36-014 (part))

Sec. 2.12.1105. Wichita Private Industry Council—Task forces.

The chairperson is authorized to appoint task forces, subcouncils or work groups necessary to advise in the preparation of the CETA Title VII plan for the city.
(Ord. No. 36-014 (part))

Sec. 2.12.1106. Wichita Private Industry Council—Meetings.

The council shall meet at least once each month at such time and place as may be fixed by the council.
(Ord. No. 36-014 (part))

Sec. 2.12.1107. Wichita Private Industry Council—Duties.

The primary duties of the Wichita private industry council as set forth in Title VII of the Comprehensive Employment and Training Act Amendments of 1978 shall be:

(1) Serve in an advisory capacity to the city in the development and implementation of programs under Title VII; and

(2) Consult with the city as prime sponsor with respect to other programs under CETA.

In carrying out its responsibilities, the council may utilize, to the extent appropriate, community-based organizations, labor organizations, educational agencies and institutions and economic development programs.
(Ord. No. 36-014 (part))

Sec. 2.12.1108. Wichita Private Industry Council—Components of the plan.

The CETA Title VII program plan is a statement of how the city intends to use CETA Title VII funds, and to coordinate its activities with other employment and training programs operating within its jurisdiction. The components of the plan shall include but not be limited to the program description, the project operating plan, the program and occupational summaries for private service employment and the vocational nonfinancial agreement as set forth in the CETA rules and regulations.
(Ord. No. 36-014 (part))

Sec. 2.12.1120. Design council—Created.

There is created a design council.
(Ord. No. 44-141 § 1; Ord. No. 48-795, § 3, 8-17-2010)

Sec. 2.12.1122. Design council—Members and term.

(a) The Design Council shall consist of 11 members appointed by the Mayor with the approval of the City Council. The City Manager shall appoint an additional member. The Manager's designee shall sit on the Council as an Ex Officio Member without voting privileges, but will provide technical assistance to the Design Council in performance of its functions as provided for by City ordinance.

(b) With the exception of the representative designated by the City Manager, the terms of office shall be as set forth in Section 2.12.020(1). All members of the Council shall serve without compensation.

(c) The Council shall consist of the following persons qualified and interested in the aesthetic quality of the community:

(1) Two Architects;

(2) Two Landscape Architects;

(3) Two Engineers;

(4) Two Artists;

(5) One Graphic Designer;

(6) Two Representatives at-large; and

(7) One Ex Officio Member appointed by the City Manager.

While it is the intent of the ordinance codified in Sections 2.12.1120—2.12.1128 to insure the above areas of representation on the Design Council, other qualified persons with experience in art/design may be substituted as appointees, from time to time when necessary, so long as the overall composition of the Design Council is consistent with the scope of qualifications in this subsection.
(Ord. No. 44-810 § 1; Ord. No. 48-795, § 4, 8-17-10; Ord. No. 50-395, § 1, 1-3-17; Ord. No. 51-165, § 1, 1-7-20)

Sec. 2.12.1124. Design council—Purpose and objectives.

The purpose of the Design Council is to make recommendations on the incorporation of Public Art and aesthetic design into public projects. The Design Council will make recommendations to develop and define the design criteria for public improvements projects. It shall make recommendations on the appropriateness of the inclusion of Public Art and aesthetic design into a project. The Design Council will serve in an advisory capacity to the City Council and Public Arts Program Staff and as a liaison with private, public persons or entities, and Artists and Art Groups, including the Arts Council, Inc. It shall oversee the administration of the Percent For Art Program as established in Chapter 2.15 of this Code and the development of all policies and procedures necessary for the administration of such Program.

The Design Council shall make recommendations to the City Council on the selection and promotion of Public Art, the coordination and development of Public Art in the City, and advise the City Council on establishing public participation in and interaction with public space and encourage private contributions and participation in the implementation of the Public Art Program. The Design Council shall advise and make recommendations to the City Council on the expansion of Public Art within the City and encourage private and community support and involvement in the implementation of the Public Art Program.
(Ord. No. 44-141 § 3; Ord. No. 48-795, § 5, 8-17-10; Ord. No. 50-395, § 2, 1-3-17; Ord. No. 51-165, § 2, 1-7-20)

Sec. 2.12.1126. Design council—Officers, meetings, rules.

(a) The officers of the council shall be the chairperson and vice chairperson who shall be elected by the council from among its members at the first regular meeting after the council has been created and thereafter on an annual basis.

(b) The council shall meet at least once per month at such time and place as may be fixed by the council. Special meetings may be called by the chair, or by three members of the council by giving notice at least 24 hours in advance of such special meeting to all members of the council, and/or the City Manager or City Council.

(c) The council shall adopt such bylaws and rules as it may deem necessary within the authority conferred and subject to the approval of the City Council. The council shall be subject to the policy for boards and commissions.
(Ord. No. 44-141 § 4; Ord. No. 48-795, § 6, 8-17-10)

Sec. 2.12.1128. Design council—Staffing.

The City Manager shall assign such staff support to the council as to ensure that the council receives informational support and professional and technical assistance necessary to carry on its duties and conduct its meetings.
(Ord. No. 44-141 § 5; Ord. No. 48-795, § 7, 8-17-10)

Sec. 2.12.1130. Downtown Wichita Self-Supported Municipal Improvement District Advisory Board.

(a) The governing body of the City does hereby establish and create an Advisory Board for the District representative of businesses located within the District. The Advisory Board shall develop assessments, budgets, and policies for the District and perform such other duties as may be prescribed by this ordinance or designated by the City Council from time to time.

(b) The Advisory Board shall consist of seven (7) to nine (9) voting members who shall be representative of businesses from varying geographic areas in the District, including:

(1) Two (2) from the area North of Douglas Avenue, West of the Santa Fe railroad tracks;

(2) Two (2) from the area South of Douglas Avenue, West of the Santa Fe railroad tracks;

(3) Two (2) from the area East of the Santa Fe railroad tracts, including at least one (I) representative from Old Town;

(4) One (1) to three (3) at-large;

(5) One (1) ex officio representative from the City of Wichita (non-voting);

(6) One (1) ex officio representative from the Wichita Downtown Development Corporation (non-voting).

Members of the Advisory Board shall be appointed by the City Council. The Wichita Downtown Development Corporation, as a representative of the business owners in the District, may submit a list of nominees (one name for each vacancy) to be considered by the City Council for appointment to the Advisory Board, which nominees may be selected or rejected by the City Council, in the exercise of its discretion. If any nominee is rejected by the City Council, the Wichita Downtown Development Corporation may submit an additional name (one for each vacancy) to be considered by the City Council, which nominee may be accepted or rejected, until all positions have been filled with voting members. Thereafter, upon expiration of any term or the existence of a vacancy, the Wichita Downtown Development Corporation may present nominations to the City Council to fill such positions in the same manner. The members shall be appointed for a term of office as provided in Section 2.12.020(1).

(c) The Advisory Board shall adopt by-laws, select officers, and conduct business consistent with K.S.A. 12-1794, et seq., and in accordance with the policies for boards and commissions in City Code Section 2.12.010, et seq., except the Advisory Board shall not be subject to Section 2.12.010(1), (4), (6), and Section 2.12.020(3), (5).
(Ord. No. 44-895, § 9, 3-20-01)

Sec. 2.12.1135. Wichita Transit Advisory Board—Created.

There is hereby created an advisory board to the City known as the Wichita Transit Advisory Board.
(Ord. No. 48-101, § 1, 10-21-08; Ord. No. 48-138, § 1, 12-16-08)

Sec. 2.12.1136. Wichita Transit Advisory Board—Membership—Appointment—Terms.

(a) The Wichita Transit Advisory Board shall consist of twenty-one members. Twenty members shall be residents of Sedgwick County and shall be appointed by the governing body of the City,

provided that there shall be no more than eight members who are not residents of the City of Wichita. One member shall be nominated by the Wichita Access Advisory Board or its successor and appointed by the governing body of the City. The terms of office shall be as set forth in Section 2.12.020(1).

(b) The members shall receive no compensation for their services, but may be reimbursed for all necessary expenses incurred in the performance of their duties as members of such Board.

(Ord. No. 48-101, § 1, 10-21-08; Ord. No. 48-138, § 2, 12-16-08)

Sec. 2.12.1137. Wichita Transit Advisory Board—Organization.

The Board shall conduct meetings, elect officers, and adopt by-laws in accordance with the policy for boards and commissions. The City Manager shall provide the necessary staff support to insure that the Board receives informational support and professional and technical assistance necessary to carry on its duties and conduct its meetings.
(Ord. No. 48-101, § 1, 10-21-08; Ord. No. 48-138, § 3, 12-16-08)

Sec. 2.12.1138. Wichita Transit Advisory Board—Duties.

The Board shall advise the City on such matters pertaining to the operations of the municipal fixed route and paratransit public transportation systems, licensed or franchised private transportation and perform such other duties as may be requested by such City Council from time to time.
(Ord. No. 48-101, § 1, 10-21-08; No. 48-138, § 4, 12-16-08)

Sec. 2.12.1140. Wichita Bicycle and Pedestrian Advisory Board—Created.

There is created a City of Wichita Bicycle and Pedestrian Advisory Board to consist of 11 members.
(Ord. No. 49-441, § 1, 2-12-2013)

Sec. 2.12.1141. Wichita Bicycle and Pedestrian Advisory Board—Members and term.

(a) Seven members of the Wichita Bicycle and Pedestrian Advisory Board will be appointed by the City Council and four will be appointed by the City Manager. After the initial Wichita Bicycle and Pedestrian Advisory Board appointments in 2013, all appointments to the Wichita Bicycle and Pedestrian Advisory Board shall occur following an application and recommendation process coordinated by the Bicycle and Pedestrian Advisory Board.

(b) The initial appointments to the Wichita Bicycle and Pedestrian Advisory Board shall be staggered, consisting of six two-year terms and five one-year terms. After the initial appointment, the duration of all appointments shall be consistent with Section 2.12.020(1).

(c) The terms of office shall be set forth in Section 2.12.010 and 2.12.020. Members of the Wichita Bicycle and Pedestrian Advisory Board should include, but shall not be limited to, a mix of the following.

(1) A diverse group of citizens interested in making Wichita a better place to bicycle and walk. This includes but is not limited to:

- Experienced and inexperienced bicyclists; and
- Bicyclists and/or pedestrians representing seniors, students, and/or persons with disabilities.

(2) Different stakeholder groups including, but not limited to:

- Bicycle and/or walking clubs (advocacy and/or riding clubs);
- Representatives of business organizations, and bicycle and/or walk friendly businesses;
- Schools and neighborhood organizations;
- Organizations concerned with community health; and
- Organizations concerned with bicycling and/or walking safety.

(1) Different stakeholders representing geographical locations throughout the city.
(Ord. No. 49-441, § 2, 2-12-2013)

Sec. 2.12.1142. Wichita Bicycle and Pedestrian Advisory Board—Purpose and objectives.

The purpose of the Wichita Bicycle and Pedestrian Advisory Board shall be to advise the Mayor; City Council; the City Manager; all departments; all offices of the city; city boards and committees; and other public agencies that provide

services within the city, on matters related to bicycling and/or walking and the impact that their actions may have on the bicycling and/or walking environment. This includes, but is not limited to:

(a) the creation, development, and revision of plans and policies related to bicycling and walking, including the Wichita Bicycle Master Plan;

(b) the implementation of plans and policies related to bicycling and walking, including the Wichita Bicycle Master Plan;

(c) the routing, operation, and safety of bicyclists and pedestrians;

(d) the establishment of priorities for new bicycle and/or pedestrian facilities or enhancement of existing bicycle and/or pedestrian facilities;

(e) funding for new bicycle and/or pedestrian facilities or enhancement of existing bicycle and/or pedestrian facilities, including the City Capital Improvement Program;

(f) the designs for new bicycle and/or pedestrian facilities or enhancement of existing bicycle and/or pedestrian facilities;

(g) the designs for improvements to roadways that impact plans and policies related to bicycling and walking;

(h) the language of ordinances and regulations that effect bicycling and/or walking;

(i) the establishment of priorities for maintenance and cleaning of roads, paths, sidewalks, and other facilities used by bicyclists and/or pedestrians; and

(j) the implementation of education and enforcement policies, projects and programs related to bicycling and walking.

(Ord. No. 49-441, § 3, 2-12-2013)

Sec. 2.12.1143. Wichita Bicycle and Pedestrian Advisory Board—Meetings, rules.

The Wichita Bicycle and Pedestrian Advisory Board shall conduct meetings, elect officers, and adopt by-laws in accordance with Section 2.12.020(1).

(Ord. No. 49-441, § 4, 2-12-2013)

Sec. 2.12.1144. Wichita Bicycle and Pedestrian Avisory Board—Staffing.

The City Manager shall assign such staff support to the Wichita Bicycle and Pedestrian Advisory Board to ensure that it receives informational support and professional and technical assistance necessary to carry on its duties and conduct its meetings. The staff support shall include, but not be limited to representatives from the Police, Public Works and Utilities, Planning, Transit, and Park and Recreation departments to attend the regularly scheduled meetings.

(Ord. No. 49-441, § 5, 2-12-2013)

Secs. 2.12.1150—2.12.1157. Reserved.

Editor's note—Ord. No. 48-795, § 1, adopted Aug. 17, 2010, repealed §§ 2.12.1150—2.12.1157 in their entirety. Formerly said sections pertained to Wichita Alternative Correctional Housing Adisory Board—Established—Members and term, qualifications; purpose and objective; officers, meetings, rules and staffing and derived from Ord. No. 45-160, § 1; 44-819, §§ 11—13.

Sec. 2.12.1160. Storm Water Advisory Board—Created.

There is hereby created an advisory board to the City known as the Wichita Storm Water Advisory Board.

(Ord. No. 48-895, § 1, 11-16-2010)

Sec. 2.12.1161. Storm Water Advisory Board—Membership—Appointment—Terms.

(a) Storm Water Advisory Board shall be composed of ten members (nine of whom shall be voting members) each appointed for a period of two (2) years and continuing until their successor is appointed and qualified. Each member

may serve multiple terms. In the event of death, resignation or other disqualification of any member, his or her successor shall be appointed to fill only the unexpired term created by such vacancy. Appointees shall be qualified by experience and/or education and have experience dealing with such issues as may, from time-to-time, come before the Board for consideration. The nine voting members shall be appointed by the City Council, upon the recommendations of the following entities:

2.1 One member shall be appointed upon the recommendation of the Wichita Area Builders' Association (WABA);

2.2 One member shall be appointed upon the recommendation of the Certified Commercial Investment Member, Kansas Chapter (CCIM);

2.3 One member shall be appointed upon the recommendation of the Wichita Area Association of Realtors (WAAR);

2.4 One member shall be appointed upon the joint recommendation of the Sierra Club, Kansas Chapter of Southwind and River-City Wraps;

2.5 One member shall be appointed upon the recommendation of Sedgwick County Public Works;

2.6 One member shall be appointed upon the recommendation of Wichita Public Works & Utilities;

2.7 One member shall be appointed upon the recommendation of the Sedgwick County Storm Water Management Advisory Board (SMAB);

2.8 One member shall be appointed upon the recommendation of the Wichita Society of Professional Engineers (WSPE); and,

2.9 One member shall be appointed upon the recommendation of the Wichita City Manager.

In addition, the Kansas Department of Health & Environment, South Central District Watershed Field Coordinator shall be permitted to participate, *ex officio*, as a tenth, but non-voting member, who shall not count towards determination of a quorum.

(b) The members shall receive no compensation for their services, but may be reimbursed for all necessary expenses incurred in the performance of their duties as member of such Board.
(Ord. No. 48-895, § 2, 11-16-10)

Sec. 2.12.1162. Storm Water Advisory Board—Organization.

The Board shall conduct meetings, elect officers, and adopt by-laws in accordance with the policy for boards and commissions. The City Manager shall provide the necessary staff support insure that the Board receives informational support and professional and technical assistance necessary to carry on its duties and conduct its meetings.
(Ord. No. 48-895, § 3, 11-16-10)

Sec. 2.12.1163. Storm Water Advisory Board—Duties.

The SWAB shall advise the City Council and City Staff on matters pertaining to storm water management polices impacting new development, re-development, residential, and commercial construction within the City of Wichita and perform such other duties as may be requested by the City from time to time.

Any changes proposed to be made to the content of the City of Wichita Storm Water Management Ordinance, and directly associated Policies adopted to aid in the enforcement of the Ordinance, shall be reviewed by the Board in a timely manner and recommendations forwarded to the City Council for their consideration in discussion and adoption of any proposed changes.

The Director of Public Works shall have the option of utilizing the Board to review any proposed additional/deletion of provisions contained in the Wichita/Sedgwick County Storm Water Manual approved for use by the City in conjunction with the adoption of the Storm Water Management Ordinance, and such other matters as he may deem appropriate.

Any and all deliberations and actions engaged in by the Board shall be done in consideration of provisions contained in the City of Wichita's Municipal Separate Storm Water Sewer (MS4) Permit issued to the City by the Kansas Department of Health and Environment, including direct decrees to the City by the Environmental Protection Agency.
(Ord. No. 48-895, § 4, 11-16-10)

Secs. 2.12.1170—2.12.1175. Reserved.

Editor's note—Ord. No. 48-795, § 1, adopted Aug. 17, 2010, repealed §§ 2.12.1170—2.12.1175 in their entirety. Formerly said sections pertained to The housing advisory board—Established—Members and term; purpose and objectives; officers, meetings, rules and staffing and derived from Ord. No. 44-846, §§ 1—3.

Sec. 2.12.1180. Establishment of Affordable Housing Review Board.

The Affordable Housing Review Board is hereby established.
(Ord. No. 51-739, § 1, 4-19-22)

Sec. 2.12.1181. Purpose of the Affordable Housing Review Board.

The purpose of the Affordable Housing Review Board ("Board") shall be to provide professional expertise and community perspective in the evaluation of proposals for affordable housing programming, as well as recommendations for funding. The Board advises the City Council and City staff on affordable housing matters. The Board shall incorporate principles of equity into its decision-making to properly serve the City's minority communities.
(Ord. No. 51-739, § 2, 4-19-22)

Sec. 2.12.1182. Affordable Housing Review Board; powers and duties.

The Affordable Housing Review Board shall have the following powers and duties:

1. The Board shall review applications for the following Affordable Housing programming: Affordable Housing Fund, HOME-Housing Development Loan Program, HOME-American Rescue Plan (ARP) projects related to housing development, and HOME-Community Housing Development Organization set-aside for housing development. The Board must principally decide how proposals for various programming align with the overall goals and requirements of the programs. City staff will review applications, communicate with organizations submitting applications, and summarize all applications for review by the Board.
2. Recommend to the City Council funding recommendations for the following Affordable Housing programs: Affordable Housing Fund, HOME-Housing Development Loan Program, HOME-ARP projects related to housing development, and HOME-Community Housing Development Organization set-aside for housing development.
3. To exercise any other power which may be delegated to the Board by the City Council.

(Ord. No. 51-739, § 3, 4-19-22)

Sec. 2.12.1183. Affordable Housing Review Board; appointment, terms and dissolution.

1. The Affordable Housing Review Board ("Board") shall be composed of seven members. Each member of the governing body shall appoint one member who resides in Sedgwick County, Kansas with the goal of having expertise in finance/underwriting, law, housing services, construction, housing development, capacity building, and/or community engagement. Board members should represent the diversity of the community and include minority community leaders as funding decisions will directly impact minority neighborhoods. Members of the Board shall not receive compensation nor shall they be reimbursed for personal expenses. Members of the Board shall not be comprised of representatives of organizations or individuals who may receive funding by which the Board recommends.

2. The Board may establish separate neighborhood or city advisory committees on an ad hoc basis consisting of persons living or owning

property within the city or neighborhood. In the case of neighborhood advisory committees, the Board shall determine the boundaries of each neighborhood. The Board shall consult with each neighborhood or advisory committee as needed to review the operations and activities of various Affordable Housing programming concerning any matter which comes before that particular committee.

3. The term of office of the Board members shall be as set forth in Section 2.12.020(2) of the Code of the City of Wichita. For the initial establishment of the Board, three Board members will serve four year terms (District 1, District 3, and District 6) and four Board members to serve two year terms (District 2, District 5, District 4, City Wide- Mayor), in an attempt to align with the current term limits of the appointing Council Members. Following the expiration of the seats with two year terms, the Council Members of Districts 2, 5, 4 and City-wide will replace the appointment with a Board member to serve a four year term.

4. The Board members are subject to the provisions of Sections 2.12.010, 2.12.020 and 2.12.030 of the Code of the City of Wichita, except as otherwise stated herein.

5. Primary staff support to the Board will be provided by the City Manager or designee. City staff will provide technical and professional support for Affordable Housing programming operations.
(Ord. No. 51-739, § 4, 4-19-22)

Sec. 2.12.1184. Affordable Housing Review Board; organization.

1. The Affordable Housing Review Board ("Board") shall select, annually, from its membership, a chairperson, and a vice-chairperson.

2. The Board shall fix the time and place at which its meetings shall be held. Meetings shall be held within the City and shall be subject to the Kansas Open Meeting Act, K.S.A. 75-4317 et seq., and amendments thereto. Notice and minutes of all meeting shall be provided to the City Clerk.

3. The Board shall abide by the Kansas Open Meeting Act, K.S.A. 75-4317 et seq., and the Kansas Open Records Act, K.S.A. 45-215 et seq.

4. The quorum required for the Board to conduct business shall be the number of members representing at least one-half of the total number of members duly appointed to the Board. No action of the Board shall be binding unless taken at a meeting at which at least a quorum is present. Recommendations of the Board shall be approved by majority vote of the members present and voting.

5. The Board shall conduct meetings, elect officers and adopt by-laws in accordance with the policies for boards and commissions.

6. The members of the Board shall be subject to the provisions of the laws of the State of Kansas which relate to conflicts of interest of city officers and employees, including, but not limited to, K.S.A. 75-4301 et seq., and amendments thereto.
(Ord. No. 51-739, § 5, 4-19-22)

Sec. 2.12.1190. Establishment of Golf Board of Governors; dissolution of Golf Advisory Committee.

The Golf Board of Governors is hereby established. The Golf Advisory Committee is hereby dissolved.
(Ord. No. 51-898, § 1, 7-12-22)

Sec. 2.12.1191. Purpose of the Golf Board of Governors.

The purpose of the Golf Board of Governors ("Board") shall be to counsel the governing body of the City relative to the golf system activities of the City, provide input and advice regarding policies and procedures of the golf system, provide input and advice regarding financial and operational plans for the golf system and to fulfill such duties as may have been or may hereafter be conferred by the City.
(Ord. No. 51-898, § 2, 7-12-22)

Sec. 2.12.1192. Golf Board of Governors; powers and duties.

The Golf Board of Governors shall have the following powers and duties:

1. The Board shall approve of green fees, cart rental fees, driving range fees and other fees and charges for the golf system.

2. The Board shall prepare an annual operating budget for the golf enterprise fund.

3. The Board shall approve of membership categories and an associated fee schedule for the golf system.

4. The Board shall approve of golf system policies and procedures as presented by the Director of Golf.

5. The Board shall approve of merchandising plan for the golf system.

6. The Board shall approve of customer service plan for the golf system.

7. The Board shall approve of sales and marketing plan for the golf system.

8. The Board shall prepare golf system quarterly performance reports for the City Council, including an annual report.

9. The Board shall prepare a 10-year Capital Improvement Plan for the golf system.

10. The Board shall prepare a player development plan for the golf system, including support for youth golf programs.

11. The Board shall have such other responsibilities as may be assigned from time to time by the City Council.

12. The City Council shall seek the advice and counsel of the Board before taking action on policy matters that pertain to duties set forth in this section.

(Ord. No. 51-898, § 3, 7-12-22)

Sec. 2.12.1193. Golf Board of Governors; appointment, terms and dissolution.

1. The Golf Board of Governors shall be composed of seven (7) voting members to be approved by the City Council, with the goal having the Board composed of the following appointees:

a. One (1) golfer nominated by the Men's and Women's clubs of the Auburn Hills Golf Course;

b. One (1) golfer nominated by the Men's and Women's clubs of the Arthur B. Sim Golf Course;

c. One (1) golfer nominated by the Men's and Women's clubs of the MacDonald Golf Course;

d. One (1) golfer nominated by the Men's and Women's clubs of the Tex Consolver Golf Course;

e. One (1) appointee, with a food and beverage management background, made by the Director of Golf, or their designee;

f. One (1) appointee, with a merchandising or retail management background, made by the Director of Golf, or their designee; and

g. One (1) appointee, with a golf, park, or recreation background, made by the Director of Golf, or their designee.

2. A representative from the Board of Park Commissioners shall serve as a non-voting *ex officio* member of the Golf Board of Governors, with such representative to be appointed by the Board of Park Commissioners.

3. The Director of Golf of the City, or their designee, shall serve as a non-voting *ex officio* member of the Golf Board of Governors.

4. Appointees shall be subject to all provisions of Section 2.12.010 of the City Code which sets the minimum standards of conduct and qualifications for appointive members of boards and commissions of the City of Wichita.

5. All members of the Golf Board of Governors shall hold office for a term of two (2) years, or until their successor shall be appointed and qualified. All terms shall commence April 1st and expire March 31st of any given year. A vacancy shall be filled for the unexpired term of a member in the same manner as an original appointment.

6. The members of the Golf Board of Governors are subject to the provisions of Sections 2.12.010, 2.12.020 and 2.12.030 of the Code of the City of Wichita, except as otherwise stated herein.

7. Primary staff support to the Golf Board of Governors will be provided by the City Manager or designee. City staff will provide technical and professional support for golf programming operations.
(Ord. No. 51-898, § 4, 7-12-22)

Sec. 2.12.1194. Golf Board of Governors; organization.

1. The Golf Board of Governors ("Board") shall select, annually, from its membership, the officers of the Board pursuant to its bylaws.

2. The Board shall fix the time and place at which its meetings shall be held. Meetings shall be held within the City and shall be subject to the Kansas Open Meeting Act, K.S.A. 75-4317 et seq., and amendments thereto. Notice and minutes of all meeting shall be provided to the City Clerk.

3. The Board shall abide by the Kansas Open Meeting Act, K.S.A. 75-4317 et seq., and the Kansas Open Records Act, K.S.A. 45-215 et seq.

4. The quorum required for the Board to conduct business shall be the number of members representing at least one-half of the total number of members duly appointed to the Board. No action of the Board shall be binding unless taken at a meeting at which at least a quorum is present. Actions of the Board shall be approved by majority vote of the members present and voting.

5. The Board shall conduct meetings, elect officers and adopt bylaws in accordance with the policies for boards and commissions.

6. The members of the Board shall be subject to the provisions of the laws of the State of Kansas which relate to conflicts of interest of city officers and employees, including, but not limited to, K.S.A. 75-4301 et seq., and amendments thereto.
(Ord. No. 51-898, § 5, 7-12-22)

Sec. 2.12.1200. Abolishment of boards, councils, agencies and commissions.

Except for boards, councils, agencies and commissions created by state statute, board, agencies and commissions created by entities other than the City of Wichita, the Wichita Employees Retirement Board of Trustees, the Police and Fire Retirement Board of Trustees, board of bids and contracts, utility location and coordination council, and as provided herein, all boards, agencies and commissions of the City of Wichita established and created by Charter Ordinance or ordinary ordinance in the Code of the City of Wichita, Kansas, shall be and are abolished on June 1, 2011.
(Ord. No. 45-013A § 1; Ord. No. 44-460 § 1; Ord. No. 48-795, § 8, 8-17-10)

Sec. 2.12.1201. Continuation of existence after June 1, 2011.

(a) For the purposes of concluding its affairs, each board, council, agency, or commission abolished under section 2.12.1200 shall continue in existence until July 1, 2011, next succeeding the date of abolition of such board, council, agency, or commission. During this period of time and notwithstanding the abolition of such board, council, agency or commission hereunder, each such board, council, agency or commission shall exercise all of the powers, duties and functions of such board, council, agency or commission. Upon the expiration of this period on the next succeeding July 1, 2011, each such board, council, agency, or commission shall cease all activities and shall have no further authority to act unless such board, council agency, or commission is continued or reestablished in accordance with subsection (b). No board, council, agency or commission abolished and not continued

or reestablished shall have less than the period of time provided for in this subsection to conclude its affairs.

(b) Any board, council, agency, or commission subject to abolition under this ordinance may be continued in existence or reestablished by act of the governing body, but no such continuance or reestablishment shall be for a period of time in excess of two years. No new board, council, agency or commission which has the same or substantially the same jurisdiction or purpose as any board, council, agency, or commission subject to abolition under section 2.12.1200 shall be created, established or organized by act of the governing body to exist for a period of time in excess of two years. Each such board, council, agency or commission continued or reestablished and each such new board, council, agency, or commission created, established or organized, shall be subject to abolition under the ordinance codified in sections 2.12.1200 and 2.12.1201.
(Ord. No. 45-013A § 2; Ord. No. 44-460 § 2; Ord. No. 48-795, § 9, 8-17-10)

Secs. 2.12.1202—2.12.1299. Reserved.

Sec. 2.12.1300. Establishment of Food and Farm Council.

The Food and Farm Council is hereby established.
(Ord. No. 52-900, § 1, 2-24-26)

Sec. 2.12.1301. Purpose of the Food and Farm Council.

The purpose of the Food and Farm Council ("Council") is to convene diverse stakeholders to advocate for an equitable, sustainable and resilient food system in the City of Wichita and Sedgwick County and provide a forum to bring together stakeholders from diverse food-related sectors for discussions and coordination of community wide efforts to improve access, affordability, stability, and availability of local, culturally appropriate, and nutritionally adequate food for all. The Council will promote policies using a systems perspective in a manner that is consistent with the goals of the City of Wichita/Sedgwick County Food System Master Plan. Those goals include to:

1. Increase local food production;
2. Protect natural resources;
3. Increase access to healthy food;
4. Reduce food waste;
5. Foster social equity;
6. Grow our regional economy;
7. Build upon the community's food culture; and
8. Support community health and wellness.

(Ord. No. 52-900, § 2, 2-24-26)

Sec. 2.12.1302. Food and Farm Council; powers and duties.

The powers and duties of the Food and Farm Council shall include, but not be limited to, the following:

1. Support implementation of the City of Wichita/Sedgwick County Food System Master Plan and any other adopted, relevant long-range plans of the City of Wichita and Sedgwick County, Kansas, which support any Purpose identified in Section [2.12.1301] of this Joint Ordinance and Resolution.
2. Serve as an advisory body and make policy recommendations to the City Council of the City of Wichita and the Board of County Commissioners of Sedgwick County, Kansas on issues related to the City of Wichita/Sedgwick County Food System Master Plan and any other adopted, relevant long-range plans of the City of Wichita and Sedgwick County, Kansas, which support any Purpose identified in Section [2.12.1301] of this Joint Ordinance and Resolution.
3. Provide assistance and advice to any other boards, commissions and staff of the City of Wichita and of Sedgwick County, Kansas in assessing the effect that actions taken or to be taken by the

governing bodies would have on the food system in the City of Wichita and Sedgwick County.

4. Provide a forum for food system collaboration among stakeholders in the City of Wichita and Sedgwick County.

5. Compile feedback and other information from food system stakeholders in the City of Wichita and Sedgwick County and make recommendations to the appropriate governing bodies based on that feedback and other information.

6. Support education and awareness among food system stakeholders of the food system in the City of Wichita and Sedgwick County.

7. Support awareness of funding opportunities among food system stakeholders, including, but not limited to, local, regional, state and national programs and grants in support of food systems.

8. Support representation of historically disenfranchised communities in implementation of the City of Wichita/Sedgwick County Food System Master Plan.

9. Establish separate neighborhood or city advisory committees on an *ad hoc* basis to ensure engagement of diverse, community-reflective stakeholders in its initiatives and partnerships. In the case of subcommittees, the Council shall determine the members of each. The Council shall consult with each subcommittee as needed to review the operations and activities of the City of Wichita/Sedgwick County Food System Master Plan concerning any matter which comes before that particular committee.

10. Exercise any other power which may be delegated to the Council by joint action of the City Council of the City of Wichita and the Board of County Commissioners of Sedgwick County, Kansas.

(Ord. No. 52-900, § 3, 2-24-26)

Sec. 2.12.1303. Food and Farm Council; organization and dissolution.

1. The Council and its members shall be subject to the provisions of Sections 2.12.010, 2.12.020 and 2.12.030 of the Code of the City of Wichita, except as otherwise stated herein.

2. Members of the Council shall serve a term of two years. All Council appointments shall begin on April 1st of each year. In the event a member of the Council does not complete their term, any member appointed to fill such vacancy shall be appointed to serve the remainder of the unexpired term.

3. Except as set forth below, no member shall serve more than four (4) consecutive full terms. Any partial term a member may serve due to a vacancy shall not count as a term for purposes of this term limitation.

4. Members of the Council shall serve at the pleasure of the respective governing body that appointed them. In addition, any member of the committee who misses three (3) consecutive meetings or attends less than half of the meetings held over a consecutive 12-month period, shall be subject to removal.

5. No member of the Council who is appointed by a Sedgwick County Commissioner shall continue serving on the Council after the appointing Commissioner's term of office ends.

6. Each member of the Council shall disclose any conflict of interest, as defined in the bylaws to be adopted by the Council, as may arise in connection with matters being considered by the Council of which they are a member and shall refrain from discussing or voting on any such matters. No member of the Council shall participate in the discussions and/or vote related to a matter for which the member has a conflict of interest.

7. Members of the Council shall not receive compensation, nor shall they be reimbursed for personal expenses.

8. All appointments to the Council shall be made by written notice of appointment, which notice shall clearly state that such appointment

is made subject to all the provisions outlined within, the term of the appointment, and that members so appointed may be removed by the appointing governing body for violation of any of the rules and regulations hereby established.

9. Primary staff support to the Council will be provided by the City Manager and County Manager or designee. City and County staff will provide technical and professional support for Food and Farm Council programming operations on an as-needed basis.

10. The Food and Farm Council may be dissolved by ordinance of the City Council or Resolution by the Board of County Commissioners.
(Ord. No. 52-900, § 4, 2-24-26)

Sec. 2.12.1304. Food and Farm Council; membership.

1. The Food and Farm Council members should reflect the diversity of residents of the City of Wichita and Sedgwick County, including ethnicity, race, gender, ability, gender identity, religion, sexual orientation, socio-economic status and age.

2. No person shall be appointed a member of the Council unless he or she is a resident of such county at the time of the appointment, nor shall any member continue to serve if he or she ceases to be a resident of such county. If a member of the Council no longer meets the member eligibility specifications, such member shall submit their resignation from the Council to the governing board who appointed them.

3. There shall be fourteen (14) voting members on the Food and Farm Council, with appointments to be distributed as follows:

a. One (1) voting member of the Food and Farm Council shall be appointed by each of the seven (7) members of the City Council of the City of Wichita, consistent with subsection [4] below.

b. One (1) voting member of the Food and Farm Council shall be appointed by each of the five (5) members of the Board of County Commissioners of Sedgwick County, with two (2) voting members of the Food and Farm Council appointed as representatives at-large who shall reside within Sedgwick County, consistent with subsection 4 below.

c. All appointments will be nominated and appointed by a simple majority of the governing body.

d. The Food and Farm Council may conduct business so long as both the City of Wichita and Sedgwick County have made at least half of their respective appointments.

4. The seven (7) voting members appointed by the City Council of the City of Wichita shall serve on the Food and Farm Council as subject matter experts and liaisons to important food systems partners with consideration from the following groups: urban food producers, urban food retailers, emergency food assistance programs, food justice and equity groups, food distributors, institutional food purchasers, and coalitions or organizations in health, food systems and community development.

a. The City Manager will assign staff to serve as *ex officio* Food and Farm Council members as needed for purposes of gathering data from City departments, maintaining records, minutes and the handling of administrative matters without the right to vote or to perform any other function than provide administrative services.

5. The seven (7) voting members appointed by the Board of County Commissioners of Sedgwick County shall serve on the Food and Farm Council as subject matter experts and liaisons to important food systems partners with consideration from the following groups: rural food producers, rural food retailers, natural resources/conservation organizations, health/nutrition groups, small food processors and value added product manufacturers, workforce and business developers, and food and farm training and education programs.

a. The County Manager will assign staff to serve as the *ex officio* Food and Farm Council members as needed for purposes of gathering data and the handling of

administrative matters without the right to vote or to perform any other function than provide administrative services.

6. In the event that an appointment to the Food and Farm Council cannot be made consistent with subsections 3 and 4 above, another qualified person may be substituted as an appointee. Such substitution should only occur when an appointment cannot be made consistent with subsections 3 and 4 above, and only so long as the substitute appointee represents one or more of the following:

a. Persons bringing significant experience related to building a thriving food economy, range of production systems, sectors, and marketing channels (including, but not limited to, producers of animal protein, producers of specialty crops, commodity producers, and/or producers engaged in direct marketing of products);

b. Persons bringing significant experience related to healthy food access (including, but not limited to, neighborhood residents or leaders, engineers, planners, transit riders and professionals, community gardeners, health professionals, dieticians, neighborhood retailers, local wellness organizations, those experiencing food insecurity and urban/rural grocers);

c. Persons interested in Food Systems policy and governance.

(Ord. No. 52-900, § 5, 2-24-26)

Sec. 2.12.1305. Food and Farm Council; meetings.

1. The Council shall fix the time and place at which its meetings shall be held. Meetings shall be held within Sedgwick County and shall be subject to the Kansas Open Meeting Act, K.S.A. 75-4317 *et seq.,* and amendments thereto. Notice and minutes of all meetings shall be provided to the City Clerk and the County Clerk.

2. The Council shall abide by the Kansas Open Meeting Act, K.S.A. 75-4317 *et seq.*, and the Kansas Open Records Act, K.S.A. 45-215 *et seq*.

3. The quorum required for the Council to conduct business shall be the number of members representing at least one-half of the total number of members duly appointed to the Council. No action of the Council shall be binding unless taken at a meeting at which at least a quorum is present. Recommendations of the Council shall be approved by majority vote of the members present and voting.

4. The Council shall conduct meetings, elect officers and adopt by-laws in accordance with the policies for boards and commissions.

5. The members of the Council shall be subject to the provisions of the laws of the State of Kansas relating to conflicts of interest of city officers and employees, including, but not limited to, K.S.A. 75-4301 *et seq.*, and amendments thereto.

(Ord. No. 52-900, § 6, 2-24-26)

Sec. 2.12.1306. Food and Farm Council; severability.

If any provision or section of this Joint Ordinance and Resolution is deemed or ruled unconstitutional or otherwise illegal or invalid by any court of competent jurisdiction, such illegality or invalidity shall not affect any other provision of this Joint Ordinance and Resolution. This Joint Ordinance and Resolution shall be construed and enforced as if such illegal or invalid provision had not been contained herein.

(Ord. No. 52-900, § 7, 2-24-26)

CHAPTER 2.16. BONDS

Sec. 2.16.010. Generally.
Sec. 2.16.020. City treasurer.
Sec. 2.16.030. Place of filing.

Sec. 2.16.010. Generally.

In addition to the specific bond enumerated in the chapter for the city treasurer, a blanket position bond in the amount of ten thousand dollars is to be secured on each city employee.
(Ord. No. 27-963 § 1)

Sec. 2.16.020. City treasurer.

The city treasurer shall furnish a bond in the principal sum of one hundred thousand dollars conditioned that he will account for all moneys coming into his hands belonging to the city and win faithfully perform the office of city treasurer of the city.
(Ord. No. 27-963 § 1)

Sec. 2.16.030. Place of filing.

All bonds required by this chapter shall be filed in the office of city clerk.
(Ord. No. 27-963 § 1)

CHAPTER 2.18. DEPOSITORIES

Sec. 2.18.010. Designation of depositories.
Sec. 2.18.030. Investment of surplus funds.

Sec. 2.18.010. Designation of depositories.

All funds and moneys of the city required for current operations shall be placed by the director of finance according to law in any one or more of the state or national banks, state or nationally chartered savings and loan associations or federally chartered savings banks located in the county and designated for such deposits in accordance with K.S.A. 9-1401, as it may from time to time be amended, and the investment policy of the City of Wichita.
(Ord. No. 41-317 § 1)

Sec. 2.18.030. Investment of surplus funds.

The City Manager of the City of Wichita, Sedgwick County, Kansas, is authorized to arrange for the investment of city funds. The director of finance has management responsibility for the investment program and shall establish written procedures for the operation of the investment program. Funds shall be invested in accordance with K.S.A. 12-1675, as the same may be from time to time amended, and further defined by the procedural guidelines outlined in the City of Wichita's investment policy. In order of importance, the primary objectives of all such investments shall be; safety of principal, maintenance of adequate liquidity, and return on investment. All moneys earned and collected from investments authorized under this chapter shall be credited in accordance with the budget as adopted by the city council or as may otherwise be required by law.
(Ord. No. 41-317 § 2)

CHAPTER 2.20. DISPOSAL OF PROPERTY—LOST, STOLEN, UNCLAIMED OR CONFISCATED

Sec. 2.20.010. Applicability of chapter.
Sec. 2.20.020. Custody; reclamation by owner within thirty days.
Sec. 2.20.030. Notice of intent to sell; requirements as to sale, etc.
Sec. 2.20.040. Failure of owner to claim before sale; sale to highest bidder, etc.
Sec. 2.20.050. Costs to be paid by owner if property claimed after publication.
Sec. 2.20.060. Disposition of proceeds of sale.

Sec. 2.20.010. Applicability of chapter.

This chapter relates to and embraces all lost, stolen, strayed, abandoned, unclaimed or confiscated property which of itself is not contraband or the possession of which is not unlawful, which is now or which may hereafter come into the possession of the authorized officers of the city.
(Ord. No. 7451 § 1)

Sec. 2.20.020. Custody; reclamation by owner within thirty days.

All personal property of the character described in section 2.20.010, shall be delivered to the custody of the director of department of administration who shall retain the possession of such property for a period of thirty days, except as elsewhere herein provided, unless the owner or person entitled to the possession of such property shall sooner claim such property and establish his ownership and right to possession thereof.
(Ord. No. 7451 § 2)

Sec. 2.20.030. Notice of intent to sell; requirements as to sale, etc.

If the owner or person entitled to the possession of property as described in this chapter, shall fail to claim such property within thirty days, then at such time or at any time thereafter, notification shall be published in the official city paper, setting forth a detailed description of such property and stating that unless the same be claimed within ten days, such property will be sold at public auction (which may include on-line auction) to the highest bidder, and stating the time and place of such sale; provided, that if such property be livestock, the value of which is less than the cost of keeping the same for the periods described in this section such property shall be advertised immediately and sold after a three days' notice given as herein provided. In lieu of sale, bicycles may be disposed of by the police department at its discretion pursuant to section 11.48.180.
(Ord. No. 7451 § 3; Ord. No. 50-290 § 1, 7-26-16)

Sec. 2.20.040. Failure of owner to claim before sale; sale to highest bidder, etc.

If the owner or person entitled to the possession of property advertised under the preceding section shall fail to claim the same at any time before the date of such sale, then it shall be sold to the highest bidder therefor for cash, and the purchaser thereof shall take a good and perfect title thereto.
(Ord. No. 7451 § 4)

Sec. 2.20.050. Costs to be paid by owner if property claimed after publication.

If the owner or person entitled to the possession of property contemplated by this chapter shall claim the same after the publication of the same as provided in Section 2.20.030, he shall pay the actual cost of publication, together with the actual cost of keeping such property during its custody.
(Ord. No. 7451 § 4)

Sec. 2.20.060. Disposition of proceeds of sale.

Any funds received from the sale of any property as provided in this chapter, less the cost of publication and keeping the same for sale and the costs of such sale, shall be paid directly to the police benefit fund.
(Ord. No. 7451 § 5)

CHAPTER 2.21. DISPOSAL OF PROPERTY—USED OR OBSOLETE

Sec. 2.21.010. Applicability of chapter.
Sec. 2.21.020. Sales to be for cash; conduct.
Sec. 2.21.030. Proceeds to be deposited with city treasurer; written report required.
Sec. 2.21.040. Crediting of moneys derived from sale.

Sec. 2.21.010. Applicability of chapter.

This chapter relates to sales for cash of used or obsolete personal property of any of the administrative departments operating under the city manager, which property is no longer needed by or useful to the city. This chapter does not cover personal property falling within the terms of Chapter 2.20. Neither does this chapter cover used equipment that is traded in on other equipment for replacement purposes.
(Ord. No. 13-919 § 1)

Sec. 2.21.020. Sales to be for cash; conduct.

All sales of personal property covered by this chapter shall be for cash and shall be conducted by the city purchasing agent, or under his express written authority. In any case where the city purchasing agent deems it advisable, he may conduct such sales as public sales by advertising for bids in the official city paper, reserving authority to reject any and all bids. In cases where the city purchasing agent does not deem such a public sale advisable, he shall either conduct private sales, or authorize the head of the administrative department in question to conduct a private sale.
(Ord. No. 13-919 § 2)

Sec. 2.21.030. Proceeds to be deposited with city treasurer; written report required.

In the case of any sale of personal property covered by this chapter, the city purchasing agent, where he conducts such sales, or the administrative department head, where he conducts such sales, shall by the close of the following business day, cause the proceeds of such sale to be deposited with the city treasurer, along with a written report of such sale on a form to be furnished by the city purchasing agent, showing the following information:

(a) Date of sale;

(b) Name and address of purchaser;

(c) List of property sold;

(d) Sale price.

(Ord. No. 13-919 § 3)

Sec. 2.21.040. Crediting of moneys derived from sale.

All moneys derived from sales of personal property, under this chapter, shall be credited by the director of administration, to the funds from which such property was originally purchased, as nearly as can be determined.
(Ord. No. 13-919 § 4)

CHAPTER 2.24. ASSESSMENTS FOR IMPROVEMENTS

Sec. 2.24.010. Assessment procedure established.
Sec. 2.24.020. Ascertainment of value—Appraisers.
Sec. 2.24.030. Notice of meeting of appraisers and special session of board of city commissioners.
Sec. 2.24.040. Hearing of complaints—Notice of assessment.
Sec. 2.24.050. Levy and collection—Limitation on suits to set aside assessments.
Sec. 2.24.060. Interpretation and construction.
Sec. 2.24.070. Deferral of payment of special assessments.
Sec. 2.24.075. Eligibility criteria for indefinite deferral of payment of special assessments.
Sec. 2.24.080. Provision for delaying special assessment for residential property assessed in connection with arterial street improvements.
Sec. 2.24.090. Certification by the city clerk of assessments on which payment has been deferred.
Sec. 2.24.100. Owner-occupied residential property defined.
Sec. 2.24.110. Provision for payment of principal and interest required for bonds issued for improvements for which the governing body has granted an indefinite deferral of payment.

Sec. 2.24.010. Assessment procedure established.

Where any public improvements are made within the City of Wichita, Kansas, and the cost or a portion of the cost thereof is to be paid by and assessed to property within a benefit district on the basis of assessed valuations of the lots and pieces of land therein without regard to the buildings or improvements thereon as fixed by appraisers appointed by the mayor and confirmed by the governing body of the City of Wichita, Kansas, the procedure shall be as hereinafter set forth.
(Ord. No. 24-915 § 1)

Sec. 2.24.020. Ascertainment of value—Appraisers.

The governing body shall determine and assess to each lot or parcel of ground liable for such special assessment the amount to be paid thereon, which amount shall be determined by the assessed value of the lots and pieces of land without regard to the buildings or improvements thereon, which value shall be ascertained by three disinterested appraisers appointed by the mayor and confirmed by the governing body. It shall be the duty of said appraisers within five days after being notified of their appointment to proceed to appraise such lots and pieces of land as may be designated by the governing body after having taken and subscribed an oath to make a true and impartial appraisement.
(Ord. No. 24-915 § 2)

Sec. 2.24.030. Notice of meeting of appraisers and special session of board of city commissioners.

Upon receipt of the said appraisal of lots and pieces of land, the city clerk shall report same to the city council, which council shall set a date for a special session of the city council to be held for the purpose of considering complaints of landowners regarding the land values fixed by said appraisers.

The city clerk shall cause to be published once in the official city paper a notice of said hearing substantially in the following form and content:

"NOTICE TO PROPERTY OWNERS

"Notice is hereby given to the property owners owning property liable for special assessment for the paving and otherwise improving of alleys and streets, the construction of sewers, the construction of a pumping station and the acquiring of right-of-way for sewers, as indicated below, that the appraisers' reports fixing the valuation of the property liable for special assessment therefor, were read to the Council members on Tuesday, _____

"The appraisers will meet in the City Council Room, 201 City Building, 204 South Main, on_____, _____, at 9 a.m. The appraisers will explain the formulas used in setting valuations, discuss those set and hear complaints or protests on valuations as set.

"Appraisers' valuation of any lot or piece of land included within the benefit district may be appealed to the City Council at their special session which is set for 9 a.m. on Tuesday, _____, 201 City Building; PROVIDED, that such complaint must be filed in writing and detailed on a form to be furnished by the City Clerk at least 4 days prior to the special session of the City Council; and, PROVIDED, that the landowner has first given the apprais-

ers an opportunity to review and adjust the land value by the landowner's attendance and presentation at said appraiser's hearing."

In addition, on the date of publication of said notice, the city clerk shall mail a notice, in substantially the same form and content as the notice prescribed herein, of said appraisers' meeting and the special session of the city council to the owner of each lot or parcel of land liable for special assessment for such improvement at his or its last known place of residence.

Proof of mailing said notices shall be made by affidavit signed by the, city clerk.
(Ord. No. 31-930 § 1; Ord. No. 24-915 § 3)

Sec. 2.24.040. Hearing of complaints—Notice of assessment.

At its special session, the governing body shall hear and consider complaints that may have been filed in writing with the city clerk as set forth by Section 2.24.030, as to the valuation of any lot or piece of land appraised as aforesaid; and said governing body at said special session may alter the valuation of any lot or piece of land if, in their opinion, the same has been appraised too high or too low. The governing body shall thereafter enact and publish an ordinance which shall hold good for all the installments, fixing said assessment hereinbefore provided as to each lot or parcel of ground. The city clerk shall mail, on date of publication levying said special assessment, a written notice to the owner of each lot or parcel of ground stating and setting forth:

(1) The name of the person or persons notified;

(2) The description of the project for which the assessment was levied;

(3) The legal description of the property assessed;

(4) The amount of the assessment levied against such property. Such notice shall further advise the persons notified that the assessment can be paid without interest within thirty days from the date of the notice.

(Ord. No. 31-930 § 2; Ord. No. 24-915 § 4)

Sec. 2.24.050. Levy and collection—Limitation on suits to set aside assessments.

The amounts levied against each lot or parcel of ground to pay for the bonds falling due in each year, and the interest due, shall be levied and collected the same as other taxes. No suit to set aside said assessment shall be brought after the expiration of thirty days from the publication of the ordinance fixing said assessment.
(Ord. No. 24-915 § 5)

Sec. 2.24.060. Interpretation and construction.

The procedure outlined above shall be construed as being in accordance with the statutes of the State of Kansas and any provision herein deemed or finally determined to be contrary to the provisions of said statutes shall be void provided that in such event the remaining provisions of this chapter shall remain in full force and effect.
(Ord. No. 24-915 § 6)

Sec. 2.24.070. Deferral of payment of special assessments.

Whenever the governing body causes the creation of an improvement district for the purpose of assessing to property in that improvement district all or a portion of the costs associated with the construction of any public improvement, it may authorize and provide for indefinite deferral of the payment of such assessments for owner-occupied residential property for whom such payment would be a hardship. Such deferral shall be based on eligibility criteria and subject to the conditions set out in Section 2.24.075 of this Code.
(Ord. No. 42-824 § 1)

Sec. 2.24.075. Eligibility criteria for indefinite deferral of payment of special assessments.

Eligibility criteria for indefinite deferral of payment of special assessments.

(a) The following criteria are established to determine those property owners eligible

for indefinite deferral of payment of special assessments pursuant to the provisions of Section 2.24.070:

(1) Applicant must own the property assessed or be purchasing the property under a valid land sales contract;

(2) Applicant must reside in the property assessed;

(3) Property for which a deferral is sought must be located within the limits of the city and shall be a parcel not exceeding two acres in size and shall be a single building site; provided, however, that if a property owner meets all the criteria of this section except that the property assessed exceeds two acres in size, the property owner shall be eligible for indefinite deferral of that portion of the special assessment against such property equivalent to the ratio two acres bears to the total acreage of the property assessed;

(4) Applicant's family's adjusted gross annual income shall not exceed the U.S. Department of Housing and Urban Development's median income family limits, very low-income level, based on the actual median income for the city. These guidelines are subject to change on an annual basis and shall be applied hereunder based on the then existing guidelines. Further, the annual principal and interest on the assessments must be in excess of one percent (1.0%) of the owners' adjusted gross annual income as reported for federal income tax purposes.

An applicant or family member of an applicant who is a disabled person and/or over the age of sixty-five years and who is a head of household shall be counted as three persons in determining household size. An applicant or family member of an applicant who is not a head of household but who is disabled and/or over the age of sixty-five years shall be counted as two persons in determining family size.

(5) The appraised value of the property for which the deferral is being sought cannot exceed the average home value for existing homes within the Wichita MSA. This amount shall be obtained from the Wichita State University Center for Real Estate.

(b) The following terms, for the purposes of this chapter of the city code, shall have the have the following meanings:

(1) "Disabled person" means any person who has a physical or mental impairment that substantially limits one or more major life activities.

(2) "Head of household" means any person who, at the time application is made for deferral, is eligible to file a federal income tax return as head of household or is eligible to file a joint tax return under the Internal Revenue Code of the United States. Only one spouse may be designated as head of household.

(3) "Major life activities" means functions such as caring for oneself, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning and working.

(4) "Physical or mental impairment" means any physiological disorder or condition, cosmetic disfigurement or anatomical loss affecting one or more of the following body systems: neurological; musculoskeletal; special sense organs; respiratory, including speech organs; cardiovascular; reproductive; digestive; genitourinary; hemic and lymphatic; skin; and endocrine; or any mental or psychological disorder, such as mental retardation, organic brain syndrome, emotion or mental illness, and a specific learning disability. The term "physical or mental impairment" in-

cludes but is not limited to such diseases and conditions as orthopedic, visual, speech and hearing impairments, cerebral palsy, epilepsy, muscular dystrophy, multiple sclerosis, cancer, heart disease, diabetes, mental retardation, emotional illness, and drug addiction or alcoholism.

(c) An applicant who meets the eligibility requirements of this section and who is granted an indefinite deferral of payment of special assessments shall consent to the filing of a lien against the applicant's property in the amount of the special assessment deferred. At the time of application, the applicant will be required to pay the cost of the filing and subsequent release of the lien. The fee for such filing and release shall be determined by the Register of Deeds and is subject to change. An applicant who is granted a deferral shall be required to furnish the city any information necessary to confirm the applicant's continued eligibility. In addition, before special assessment payments are deferred for years subsequent to the year in which deferral is first granted, the applicant shall consent to the filing of a lien against the applicant's property in the amount of each yearly special assessment payment which is deferred.

(d) Deferred payments of special assessments granted under the provisions of this section shall become due and payable upon a transfer of ownership of the property; except that transfer by way of gift, devise or interstate succession to a person or persons eligible for deferral hereunder shall not cause such deferred payments to become due and payable.

(e) It is the intent of this section to provide a hardship deferral of special assessments on owner-occupied residential property for those years when payment is due and in which the owner(s) are eligible for such deferral. In years in which such payment is due and the owner is not eligible, the special assessment payment will be due and payable for that year in the same manner as for other property in the improvement district. It is the intent of the governing body in providing this program for hardship deferral of special assessments that the full amount of the original assessment (principal and interest) against properties whose owner(s) are granted deferral(s) will ultimately be paid to the city.

(f) Nothing contained herein shall be interpreted to limit the governing body's authority to adopt other provisions for the deferral of special assessments or to reduce or abate special assessments when it deems it advisable to do so under criteria it deems appropriate.

(Ord. No. 43-977 § 1; Ord. No. 46-556 § 1, 3-22-05)

Sec. 2.24.080. Provision for delaying special assessment for residential property assessed in connection with arterial street improvements.

The governing body may, in addition to deferring payment of special assessments pursuant to Sections 2.24.070 and 2.24.075, authorize and provide for delay of payment of special assessments from the cost of improvements spread in improvement districts against residential property in connection with arterial street improvements. Such delay of special assessments shall be established and provided for in city council policy. Such city council policy may provide for partial abatement of such delayed assessment from the date an assessment is first spread through the fifteenth year from the date the assessment is spread. The policy may provide for total abatement after year fifteen.

(Ord. No. 39-845 § 2; Ord. No. 38-660 (part))

Sec. 2.24.090. Certification by the city clerk of assessments on which payment has been deferred.

Ordinances levying special assessments for the costs of improvements in an improvement district upon property for which the governing body has granted an indefinite deferral of payment shall state that such assessment is deferred indefi-

nitely providing that eligibility criteria set out in Section 2.24.075 continue to be met. The city clerk will also file with the county register of deeds a notice stating that special assessments have been deferred and identifying the property. The city clerk shall, when certifying such special assessments to the county clerk, note thereon the words "payment deferred indefinitely." Such special assessments, when levied and certified, and if they become due upon change in property ownership to a noneligible owner or change in use of said property according to the schedule in Section 2.24.080 of this Code, shall be collected as other taxes.
(Ord. No. 36-660 (part))

Sec. 2.24.100. Owner-occupied residential property defined.

For the purpose of this chapter, owner-occupied residential property means property zoned for residential use or property zoned other than residential but where actual use is residential.
(Ord. No. 36-660 (part))

Sec. 2.24.110. Provision for payment of principal and interest required for bonds issued for improvements for which the governing body has granted an indefinite deferral of payment.

Whenever the governing body shall grant indefinite deferral of payment of assessments under the provisions of this chapter, the governing body shall provide for the payment of the principal and interest of bonds issued for the payment of the costs of such improvements by the levy of a tax upon all of the taxable property of the city in the manner provided for the payment of bonds payable by the city at large. That portion of the bonds issued for payment of costs of improvements in the improvement district which are payable by the city at large for such properties granted indefinite deferral of payment of assessment shall be considered bonds payable by the city at large and not bonds the cost of which are payable from special assessments. Upon change in ownership to a noneligible owner or change in property use, the costs incurred by the city at large by reason of and during the time of deferral of payment of assessments shall be paid by special assessments against the property in accordance with the time period of such change and amount due as set out in the schedule in Section 2.24.080 of this Code and the proceeds thereof paid into the general bond and interest fund of the city. Upon determination that such indefinitely deferred special assessments have become due, the city clerk shall notify the county clerk of the balance of such assessment that is to be collected in the manner provided by law. In no event shall said amount exceed the original assessment plus prorated interest which would have been charged initially if such deferral had not been granted.
(Ord. No. 36-660 (part))

CHAPTER 2.25. EXPENSE RECOVERY FOR ENVIRONMENTAL EMERGENCY RESPONSE

Sec. 2.25.010. Definitions.
Sec. 2.25.020. Strict liability.
Sec. 2.25.030. Recovery of expenses.
Sec. 2.25.040. Applicability of state and federal laws.
Sec. 2.25.050. Report of release—Responsibility.

Sec. 2.25.010. Definitions.

(a) "Emergency action" means all exigent activities conducted in order to prevent or mitigate harm to the public health and safety or the environment from a release or threatened release of any material into or upon land, water or air.

(b) "Governmental entity" includes the City of Wichita, the Wichita-Sedgwick County hazardous materials response team, and any entity responding under a mutual aid agreement with the city.

(c) "Person" includes any individual, corporation, association, partnership, firm, trustee, legal representative, or any combination thereof.

(d) "Recoverable expenses" includes the full costs of the responding governmental entity that are reasonable, necessary and allocable to an emergency action. Recoverable expenses shall not include expenditures that are incurred in the course of providing routine firefighting protection. Expenses allowable for recovery may include, but are not limited to:

(1) Disposable materials and supplies consumed and expended specifically for the purpose of the emergency action;

(2) Compensation of employees for the time and efforts devoted specifically to the emergency action;

(3) Rental or leasing of equipment used specifically for the emergency action (e.g., protective equipment or clothing, scientific and technical equipment);

(4) Replacement costs for equipment owned by the governmental entity that is contaminated beyond reuse or repair, if the equipment was a total loss and the loss occurred during the emergency action (e.g., self-contained breathing apparatus irretrievably contaminated during the response);

(5) Decontamination of equipment contaminated during the response;

(6) Special technical services specifically required or the response (e.g., costs associated with the time and efforts of technical experts or specialists not otherwise provided for by the governmental entities);

(7) Other special services specifically required for the emergency action;

(8) Laboratory costs of analyzing samples taken during the emergency action;

(9) Any costs of cleanup, storage, or disposal of the released material;

(10) Costs associated with the services, supplies and equipment procured for a specific evacuation of persons or property;

(11) Medical expenses incurred as a result of response activities;

(12) Legal expenses and administrative costs that may be incurred as a result of the emergency action, including efforts to recover expenses pursuant to this chapter.

(e) "Release" means any spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping or disposing into or upon land, water or air, of any material which the city determines may be harmful to the public health and welfare or to the environment.

(f) "Threatened release" means any imminent or impending event potentially causing but not resulting in a release, but causing the governmental entities to undertake an emergency action. (Ord. No. 41-458 § 1)

Sec. 2.25.020. Strict liability.

Any person causing or responsible for a release or threatened release resulting in an emergency action shall be strictly liable to the governmental entity for the recoverable expenses resulting from the emergency action. There shall be a rebuttable presumption that any person owning or control-

ling property causing a release or threatened release is responsible for such release or threatened release.
(Ord. No. 41-458 § 2)

Sec. 2.25.030. Recovery of expenses.

(a) Itemization of Recoverable Expenses. The staff of the governmental entity involved in the emergency action shall keep an itemized record of its recoverable expenses resulting from the emergency action. Promptly after completion of the emergency action, staff shall certify those expenses to the city clerk.

(b) Submission of Claim. The city clerk shall submit a written, itemized claim for the total certified expenses incurred by the governmental entity for the emergency action to the responsible party and a written notice that, unless the amounts are paid in full to the governmental entity within thirty days after the date of the mailing of the claim and notice, legal counsel will file a civil action for the stated amount.

(c) Lien on Property. The governmental entity involved in an emergency action may cause a lien in the amount of the recoverable expenses to be placed on any real property located within the boundaries of the governmental entity owned by the person causing or responsible for the emergency action.

(d) Civil Suit. The governmental entity involved in an emergency action may bring a civil action for recovery of the recoverable expenses against any and all persons causing or responsible for the emergency action.

(e) Distribution of Moneys Recovered. Moneys recovered under this chapter shall be credited to the appropriate funds of the governmental entity from which moneys were expended in performing the emergency action.
(Ord. No. 41-458 § 3)

Sec. 2.25.040. Applicability of state and federal laws.

Nothing in this chapter shall be construed to conflict with state or federal laws requiring persons causing or responsible for releases or threatened releases from engaging in remediation activities and/or paying the costs thereof.
(Ord. No. 41-458 § 4)

Sec. 2.25.050. Report of release—Responsibility.

In the event a release occurs, the person causing or responsible for such release shall immediately notify the governmental entity and request emergency action.

Failure of any person to report any release shall be a misdemeanor and upon conviction thereof shall be punished by a fine of not more than one thousand dollars or by imprisonment of not more than one year or both such fine and imprisonment.
(Ord. No. 41-458 § 5)

CHAPTER 2.26. SCHEDULES OF FEES FOR PLANNING AND ZONING APPLICATIONS

Sec. 2.26.010. Fees for zoning applications.
Sec. 2.26.020. Fees for board of zoning appeals applications.
Sec. 2.26.030. Fees for subdivision applications and proceedings.
Sec. 2.26.040. Fees for planning applications and proceedings pertaining to signs.

Sec. 2.26.010. Fees for zoning applications.

For the purpose of defraying costs of zoning proceedings, the governing body establishes the following schedule of fees:

(1) *Change of zoning district boundaries or classification.* Upon the filing of each application for a change of zoning district boundaries or classification where authorized by the zoning ordinance, the following shall be paid based on the zoning classification requested:

"RR", "SF-20", "SF-10", "SF-5", "TF-3" . . . . . $660 plus $35 per acre

"MF-18", "MF-29", "MH", "U", "B", "NO", "GO", "NR" $990 plus $35 per acre

"LC", "GC", "CBD", "OW", "IP", "LI", "GI" . . . . . $1,320 plus $35 per acre

(2) *Community Unit Plan.* Upon the filing of each application for a Community Unit Plan (C.U.P.), the following shall be paid:

Original - when filed separately . . . . . $1,320 plus $35 per acre

Original - when filed with rezoning application . . . . . $880 plus $35 per acre

Major Amendments (design or use change that would affect 50% or more of the area contained within the C.U.P.) $1,320

Minor Amendments (design or use change that would affect less than 50% of the area contained within the C.U.P.) $880

(3) *Planned Unit Development.* Upon the filing of each application for a Planned Unit Development (P.U.D.), the following shall be paid:

Original . . . . . $1,320 plus $35 per acre

Major Amendments (design or use change that would affect 50% or more of the area contained within the P.U.D.) $1,320

Minor Amendments (design or use change that would affect less than 50% of the area contained within the P.U.D.) $880

(4) *Protective overlay.* No fee shall be charged to process a Protective Overlay (P.O.) except in the following instances:

A fee of $660 shall be paid upon the filing of a new application for a Protective Overlay.

A fee of $660 shall be paid upon the filing of each application for an amendment or termination of a Protective Overlay in any district, except for property zoned "LC" Limited Commercial or "GC" General Commercial six (6) acres in size or larger.

Property zoned "LC" Limited Commercial or "GC" General Commercial six (6) acres in size or larger held in a single ownership or under single control shall be charged a fee equal to that charged for a Community Unit Plan as established in Sec. 2.26-010(2).

(5) *Conditional Use.* Upon the filing of each application for a conditional use (C.U.), the following shall be paid:

Residential Use $495

Non-Residential Use . . . . . $825 plus $35 per acre

Renewal ..... one-half the fee listed for the applicable use

Filed with zone change application one-half the fee listed for the applicable use

(6) *Deferral.* An applicant requesting deferral of a case shall be charged a fee of $165 to cover administrative costs at such time that the deferral is granted.

(7) *Adjustment.* A fee shall be charged for processing an adjustment to a Community Unit Plan, Planned Unit Development, Conditional Use, Protective Overlay, or Zoning standard. If the applicant appeals the Zoning Adjustment to the Board of Zoning Appeals, said fee shall be credited toward the fee required for a Variance as established in Sec. 2.26.020.

Residential Use	$195
Non-Residential Use.....	$275
Additional Zoning Adjustment on same lot.....	$85
Administrative Permit for wireless facility	$275
Administrative Permit for Short Term Rental.....	$275

(8) *Withdrawal.* If an applicant should withdraw an application that requires governing body approval within two (2) weeks after the Planning Commission hearing, the applicant shall be refunded fifteen percent (15%) of the application fee.

(9) *Receipt.* A written receipt shall be issued to the person making such payment and records thereof shall be kept in such a manner as prescribed by law.

(Ord. No. 45-177 § 1; Ord. No. 44-715 § 1; Ord. No. 49-887, § 1, 11-25-14; Ord. No. 50-626, § 1, 11-28-17; Ord. No. 52-731, § 1, 5-20-25)

Sec. 2.26.020. Fees for board of zoning appeals applications.

For the purpose of defraying costs of Board of Zoning Appeals (BZA) proceedings, the governing body establishes the following schedule of fees to be paid at the time of filing for the application:

(1)	Appeals of Administrative Interpretations.....	$140
	Zoning Verification Letter..	$140
	Zoning Interpretation Letter	$140
(2)	Variances for Residential Uses.....	$580 plus $40 per zoning lot
	Additional variance on same zoning lot	$165
(3)	Variances for Non-Residential Uses	$825 plus $40 per zoning lot
	Additional variance on same lot.....	$250
(4)	Modified Site Plan Review .	$140
(5)	Time Extension for BZA conditions.....	$80

A separate fee shall be required for each proceeding.

(Ord. No. 45-177 § 2; Ord. No. 44-117 § 2; Ord. No. 49-887, § 2, 11-25-14; Ord. No. 50-626, § 1, 11-28-17; Ord. No. 52-731, § 2, 5-20-25)

Sec. 2.26.030. Fees for subdivision applications and proceedings.

For the purpose of defraying costs of subdivision applications and proceedings, the governing body establishes the following schedule of fees:

(a) *Subdivision applications.* Upon the filing of each application for subdivision approval, the following shall be paid:

(1) A fee of $275 for a sketch plat. Said fee shall be credited toward the fee required for a preliminary plat as established in Sec. 2.26.030(2).

(2) A fee of $990 plus $20 per lot for a preliminary plat. If the property is zoned or approved for rezoning to other than a one-family or two-

family district, a $20 per acre fee will be charged instead of $20 per lot.

(3) A fee of $990 plus $20 per lot for a one-step plat. If the property is zoned or approved for rezoning to other than a one-family or two-family district, a $20 per acre fee will be charged instead of $20 per lot.

(4) Whenever an overall preliminary plat is finaled out in portions, each final plat after the first shall be charged a fee of $660 for administration purposes.

(5) A fee of $305 shall be charged for any revised preliminary or final plat which, in the opinion of the Director of Planning, requires a rehearing before the Subdivision and Utility Advisory Committee. If, in the opinion of the Director of Planning, proposed revisions are so significant as to constitute a new plat, the fee required for a preliminary plat as established in Sec. 2.26.030(2) will be charged.

(b) *Lot split applications.* Upon the filing of each application for lot split approval, the following shall be paid:

(1) Residential zoned lot split $305 plus $85 per lot.

(2) Office, commercial or industrial zoned lot split $440 plus $85 per lot.

(c) *Vacation applications.* The filing fee for vacation applications shall be $580. A lesser fee of $305 shall be assessed for reprocessing a vacation case previously considered and approved by the planning commission and governing body, but never completed.

(d) *Amending letter of credit, performance bond, or cash guarantee.* The fee for amending a letter of credit, performance bond or cash guarantee that was submitted to assure the construction of required improvements shall be $85.

(e) *Street name change.* The fee for processing a street name change request shall be $330.

(f) *Rescind platting requirement.* The fee for processing a request to rescind platting requirements associated with a zone change request shall be $165.

(g) *Additional costs.* For subdivision applications, the charges associated with engineering costs and recording documents are in addition to the filing fees. These will be billed to the applicant.

(Ord. No. 45-993 § 1; Ord. No. 49-887, § 3, 11-25-14; Ord. No. 50-626, § 1, 11-28-17; Ord. No. 52-731, § 3, 5-20-25)

Sec. 2.26.040. Fees for planning applications and proceedings pertaining to signs.

For the purpose of defraying costs, the governing body establishes the following schedule of fees:

(a) *Sign Code Adjustment*. A fee of $275 shall be charged for processing a sign code adjustment application. After the $275 original fee for a sign code adjustment, any additional adjustments on the same lot shall require an $85 fee for each additional adjustment requested on the same application as the original adjustment. If the applicant appeals the sign code adjustment to the Board of Zoning Appeals, the fee for the adjustment shall be credited toward the fee required for a variance as established in Section 2.26.020.

(b) *Special Review Approval for Off-Site Billboard Sign Permits.* A fee of $745 shall be charged for processing a special review approval for off-site billboard sign permit application.

(Ord. No. 46-450 § 1; Ord. No. 49-887, § 4, 11-25-14; Ord. No. 50-626, § 1, 11-28-17; Ord. No. 52-731, § 4, 5-20-25)

CHAPTER 2.27. EXPENSE RECOVERY FOR ALCOHOL OR DRUG RELATED VEHICLE ACCIDENT EMERGENCY RESPONSE

Sec. 2.27.010. Costs of emergency response.
Sec. 2.27.020. Definitions.
Sec. 2.27.030. Expense collectible by city.
Sec. 2.27.040. Limit of liability.
Sec. 2.27.050. Testimony hereunder not admissible in criminal proceeding.
Sec. 2.27.060. Remedies not limited.

Sec. 2.27.010. Costs of emergency response.

(a) Any person who, while under the influence, operates a motor vehicle in such manner as to cause an incident which results in an appropriate emergency response to such incident by the city shall be liable for the expense of such emergency response.

(b) Any person who, while under the influence, operates a boat or vessel in such manner as to cause an incident which results in an appropriate emergency response to such incident by the city shall be liable for the expense of such emergency response.

(c) Any person who, while under the influence, operates a civil aircraft in such a manner as to cause an incident which results in an appropriate emergency response to such incident by the city shall be liable for the expense of such emergency response.
(Ord. No. 41-483 § 1)

Sec. 2.27.020. Definitions.

For the purposes of this chapter, the phrases listed shall have the following meanings:

(a) "Under the influence" means the condition of a person who is under the influence of alcohol, any drug, or a combination thereof to such a degree that the person is rendered incapable of safely operating a motor vehicle, boat, vessel or civil aircraft. In determining whether or not a person is under the influence, the presumption set forth in Section 11.38.150(a)(1) of this Code, and amendments thereto, shall apply. For the purposes of this chapter, if a person is under the influence of any drug, or combination of drugs, it is irrelevant that the person is or has been entitled to use the drug under the laws of this state and shall not constitute a defense to the liability created herein.

(b) "Emergency response" means all exigent services provided by the city in investigating an incident or acting to prevent injury or damage to persons or property or to mitigate injury or damage to persons or property threatened or caused by an incident involving the operation of a motor vehicle, boat, vessel, or civil aircraft by a person who is under the influence.

(c) "Expense of an emergency response" means reasonable costs and expenses incurred by the city in making an appropriate emergency response to an incident; including, but not limited to, the costs and expenses associated with providing police, fire, rescue, public works or utility services, or any combination of such services, at the scene of an incident. Such term shall, however, only include those costs and expenses directly arising because of such response to the particular incident.

(d) "Incident" means any occurrence, event, mishap, happening or accident, whether or not there is a collision, which results in damage or injury to persons or property.
(Ord. No. 41-483 § 2)

Sec. 2.27.030. Expense collectible by city.

The expense of an emergency response shall be a charge against the person liable for the expense under this chapter. Such charge shall constitute a debt of such person and shall be collectible by the city in the same manner as in the case of any obligation under a contract.
(Ord. No. 41-483 § 3)

Sec. 2.27.040. Limit of liability.

In no event shall a person's liability under this chapter for the expense of an emergency response exceed five hundred dollars for a single incident.
(Ord. No. 41-483 § 4)

Sec. 2.27.050. Testimony hereunder not admissible in criminal proceeding.

Any testimony, admission, or any other statement made by the defendant in any proceeding brought pursuant to this article, or any evidence derived from the testimony, admission, or other statement, shall not be admitted or otherwise used in any criminal proceeding arising out of the same incident.
(Ord. No. 41-483 § 5)

Sec. 2.27.060. Remedies not limited.

It is not the intent of this chapter to occupy the field of recovery of the expense of an emergency response by the city, nor is it the intent of this chapter to otherwise limit the remedies available to the city to recover the expense of an emergency response to any incident not covered by the provisions of this chapter.
(Ord. No. 41-483 § 6)

CHAPTER 2.28. RETIREMENT SYSTEM*

Sec. 2.28.010. Purpose.
Sec. 2.28.020. Definitions.
Sec. 2.28.030. Contribution by employees and by the city.
Sec. 2.28.040. Participation in Plan No. 3.
Sec. 2.28.045. Other governmental service.
Sec. 2.28.050. Vesting of contributions under Plan No. 3.
Sec. 2.28.060. Election to continue participation in Plan No. 3.
Sec. 2.28.070. Composition; expenditures.
Sec. 2.28.080. Administration.
Sec. 2.28.090. Investment authority.
Sec. 2.28.100. Termination of employment.
Sec. 2.28.110. Eligibility for defined benefit retirement on account of age and service.
Sec. 2.28.120. Calculation of retirement benefits paid by reason of age and length of service.
Sec. 2.28.121. Military service.
Sec. 2.28.130. Purchase of future service under Plan No. 1 and Plan No. 2.
Sec. 2.28.140. Indexing of deferred retirement benefits.
Sec. 2.28.150. Disability retirement.
Sec. 2.28.160. Post retirement adjustment.
Sec. 2.28.170. Optional reversionary allowance.
Sec. 2.28.180. Death and survivor benefits in the event of the death of a retiree.
Sec. 2.28.190. Death and survivor benefits in the event of the death of an employee.
Sec. 2.28.200. Death benefits payable to beneficiary of retired member.
Sec. 2.28.210. Distribution of vested accounts.
Sec. 2.28.220. Special provisions for safety personnel employed by the Wichita Airport.
Sec. 2.28.230. Deferred retirement option plan (DROP) for Plan No. 1.
Sec. 2.28.240. Deferred retirement option plan (DROP) for Plan No. 2.
Sec. 2.28.250. Re-employment.
Sec. 2.28.260. Employees of joint department transferred to Sedgwick County.
Sec. 2.28.270. Qualified domestic relations orders.
Sec. 2.28.280. Assignments prohibited—Not subject to sale, execution, garnishment, or attachment.
Sec. 2.28.290. Resolving questions of eligibility.
Sec. 2.28.300. Reservation of right to amend or repeal chapter-vested rights.
Sec. 2.28.400. Defined contribution plan limit.
Sec. 2.28.410. Direct rollovers of defined contribution plan distributions.
Sec. 2.28.420. Defined benefit plan limit.
Sec. 2.28.430. Direct rollovers of defined benefit plan distributions.

*__Charter references__—See Charter Ordinance No. 7. Prior ordinance history; Ordinances 28-427, 27-914, 26-172, 25-864, 21-403, and 18-584.

Sec. 2.28.010. Purpose.

The purpose of the Wichita employees' retirement plan, hereinafter referred to as the "retirement plan," is to establish an orderly means whereby noncommissioned personnel employed by the city who have attained retirement age or who have become disabled as set forth in this chapter may be retired from active service without prejudice and without inflicting a hardship on the employees retired, and to enable employees to accumulate reserves for themselves and their dependents to provide for old age, disability, death and termination of employment, and for the purpose of effecting economy and efficiency in the administration of governmental affairs. To accomplish this purpose, the city has established the Wichita employees' retirement plan, which shall consist of Plan No. 1, Plan No. 2 and Plan No. 3, which plans shall be managed by one board of trustees to be known as the Wichita employees' retirement board of trustees. Plan No. 1 shall apply to all employees who were employed prior to July 18, 1981 and who chose to remain in this plan by making an election in writing prior to December 18, 1981. Plan No. 2 shall apply to all employees hired or rehired on or after July 18, 1981 and prior to January 1, 1994, those employees who voluntarily elected, in writing, to convert from Plan No. 1 to Plan No. 2 prior to December 18, 1981, and those employees who transfer from Plan No. 3. Plan No. 3 shall apply to all employees hired on or after January 1, 1994, who have not become members of Plan No. 2.

It is the intent that the Wichita employees' retirement plan be established as a qualified governmental pension plan under Section 401(a) and 414(d) of the Internal Revenue Code. Retirement plan assets are to be held in a trust as required under Section 401(a) of the Internal Revenue Code. The board shall distribute the corpus and income of the retirement plan to the members and their beneficiaries in accordance with the retirement plan's law. At no time prior to the satisfaction of all liabilities with respect to members and their beneficiaries shall any part of the corpus and income be used for, or diverted to, purposes other than the exclusive benefit of the members and their beneficiaries. Upon complete or partial termination of the retirement plan, the

rights of members to benefits accrued to the date of termination, to the extent funded, or to the amounts in their accounts are nonforfeitable, and amounts in their accounts may be distributed to them.
(Ord. No. 44-812 § 1)

Sec. 2.28.020. Definitions.

Unless otherwise expressly stated or the context clearly indicates a different intention, the following terms shall, for the purpose of this chapter, have the meanings indicated in this section:

"*Board*" means the Wichita employees' retirement board of trustees.

"*City*" means the City of Wichita, Kansas, and includes employees under the jurisdiction of the City Manager eligible for benefits under this chapter.

"*Deferral period*" means that period of time between the date a vested employee leaves service and the date upon which the employee is eligible for and begins to receive a pension benefit.

"*Disabled*" or "*disability*" means the total inability to perform permanently any duties for the City which such employee might reasonably be expected to perform in view of the employee's training, experience and education.

"*DROP*" means Deferred Retirement Option Plan.

"*DROP account*" means the notational account established to reflect an amount equivalent to the accumulation of the participating member's monthly retirement benefit payments (including post retirement adjustments) if the member had retired upon participation in DROP and interest under Section 2.28.230 or 2.28.240.

"*Employee*" means any person regularly appointed or elected and receiving salary from the City on a full-time basis. For purposes of Plan No. 2 membership, "employee" shall also mean any member of the City Council elected on or after July 1, 1973, who has served at least seven years in that capacity, whether continuously or not, and who has paid into the fund the full amount which would have been deducted from such council member's salary under Plan No. 2, together with interest on such sum at the rate of seven percent per annum. "Employee" does not include seasonal, temporary, limited or part-time employees, nor commissioned police and fire personnel who are covered under a separate retirement ordinance; nor persons who have retired under any retirement plan or program of the City of Wichita and who are receiving a benefit from such program. "Employee" also does not include any person appointed by the City Council as City Manager, or appointed by the city manager as an employee in pay grade 001 through 006 inclusive of the management pay plan of the City under an offer of employment which provides the option of either membership in Wichita's employees' retirement Plan No. 3 or the International City Management Association deferred compensation and/or retirement programs, unless such person files in writing an irrevocable selection of membership in Wichita employees' retirement Plan No. 3 within sixty days of commencing employment.

"*Final average salary*" means the average annual salary for the three highest consecutive years of credited service within the last ten years of credited service as an employee prior to retirement and which shall be computed on the basis of the seventy-eight consecutive pay periods within which the salary is highest.

"*Fund*" means the Wichita Employees' Retirement Fund.

"*Investment credit*" is a prorated share of the increased or decreased value of the fund as a result of investment activities.

"*Minor child*" or "*minor children*" means a child or children of the blood or adopted children under the age of eighteen.

"*QDRO*" means qualified domestic relations order.

"*Salary*" means the monthly rate of pay being paid in accordance with the City's pay

plan or salary ordinances, and also includes longevity pay in the computation of retirement benefits.

(a) For employees in Plan No. 1, salary shall also include overtime pay, lump sum vacation pay, or any fees or allowances for automobile use or other expenses.

(b) For employees in Plan No. 2, salary does not include overtime pay, lump sum vacation pay, or any fees or allowances for automobile use or other expenses.

"*Self-direction responsibility*" means an employee is to determine the asset allocation and specific investments for such employee's Vested account, following an election to continue participation in Plan 3 as provided for by Section 2.28.060.

"*Service*" means the period beginning on the first day upon which a person first becomes an employee of the city covered by the retirement plan and ending on the date of the latest termination of such employment, excluding all intervening periods during which such employee shall have been separated from employment with the city due to resignation, dismissal, layoff or expiration of any term of appointment and all periods of leaves of absence without pay; and all periods of time for which the employee has requested and received a refund of his or her contributions to the retirement system or vested account.

Periods during which a member is receiving disability retirement benefits shall be counted as service under the following circumstances:

(a) For employees in Plan No. 1, any such periods shall be credited as service if such employee is re-employed by the city after having received such disability retirement benefits;

(b) For employees in Plan No. 2, any such period shall be credited as service if such employee is re-employed by the city after having received such disability retirement benefits and is so employed for at least three years thereafter.

"*Sick leave," unused and accumulated,* shall be defined as service; provided the sick leave shall not be used to meet existing age or vesting requirements.

"*Vested*" means for a Plan No. 1 or Plan No. 2 employee the completion of seven years of service, not including unused and accumulated sick leave.

"*Vested account*" means those contributions and investment credits in the account of an employee in Plan No. 3 which are subject to distribution for the benefit of such employees or his or her beneficiaries. Employee contributions shall become part of such employee's "vested account" upon deduction from the employee's salary. Investment credits earned on employee contributions shall become part of such employee's "vested account" when earned. City contributions and investment credits thereon shall become part of an employee's "vested account" in accordance with the following schedule:

(a) Twenty-five percent of such contributions and investment credits shall become part of an employee's "vested account" after three years continuous service;

(b) Fifty percent of such contributions and investment credits shall become part of an employee's "vested account" after five years continuous service; and

(c) One hundred percent of such contributions and investment credits shall become part of an employee's "vested account" after seven years continuous service.

The portion of any city contributions and the earnings thereon which are forfeited by an employee who terminates employment with less than seven years service, shall be applied toward city contributions which the city would otherwise be required to deposit in the fund.

Benefits paid from and employee contributions made to the retirement plan shall not exceed the maximum benefits and maximum annual additions, respectively, permissible under Section 415 of the Internal Revenue Code.
(Ord. No. 45-392 § 1; Ord. No. 44-812 § 2; Ord. No. 47-451, § 1, 3-27-07)

Sec. 2.28.030. Contribution by employees and by the city.

(a) For employees in Plan No. 1:

(1) Each employee shall contribute six and four-tenths percent of his or her salary. Such six and four-tenths percent shall be deducted from each employee's salary on each payroll;

(2) For the purpose of funding the obligation of the system under the provisions of this chapter over and above member contributions and other income accruing to the system, as herein provided, the city shall levy a tax without mill limitation, which levy may be in addition to the limits of levies now provided by law in such city for corporate or other purposes;

(3) The city shall pick up the employee contribution required by subsection (a)(1) of this section for all salary earned after the effective date of this subsection. The contributions so picked up shall be treated as employer contributions in determining tax treatment under the United States Internal Revenue Code. The city shall pick up these employee contributions from funds established and available in the salaries account, which fund would otherwise have been designated as employee contributions and paid to the retirement fund. Employee contributions picked up by the city pursuant to this subsection shall be treated for all other purposes of this and other laws of the city in the same manner and to the same extent as employee contributions made prior to the effective date of this subsection.

The effective date of this subsection shall be November 19, 1983 pursuant to Section 414(h)(2) of the United States Internal Revenue Code; these employee contributions so picked up shall not be included in gross income for tax purposes until such time as they are distributed by refund or benefit payment.

(b) For employees in Plan No. 2:

(1) Each employee shall contribute four and seven-tenths percent of the employee's salary to the fund. Such contribution shall be deducted from each employee's salary at the time of payment;

(2) For the purpose of funding the obligations of the system under the provisions of this chapter over and above member contributions and other income accruing to the system, as herein provided, the city shall levy a tax without mill limitation, which levy may be in addition to the limits of levies now provided by law in such city for corporate or other purposes;

(3) The city shall pick up the employee contribution required by subsection (a) of this section for all salary earned after the effective date of this subsection. The contributions so picked up shall be treated as employer contributions in determining tax treatment under the United States Internal Revenue Code.

The city shall pick up these employee contributions from funds established and available in the salaries account, which fund would otherwise have been designated as employee contributions and paid to the retirement fund. Employee contributions picked up by the city pursuant to this subsection shall be treated for all other purposes of this and other laws of the city in the same manner and to the same extent as employee contributions made prior to the effective date of this subsection.

(c) For employees in Plan No. 3:

(1) Each employee shall contribute four and seven-tenths percent of salary to the fund. Such contribution shall be deducted from the employee's salary at the time of payment. Provided, an employee who has

elected to continue participation in Plan No. 3 after seven years of service may contribute such additional amounts into the plan as may be permitted by the rules of the Internal Revenue Service in effect at the time of contribution;

(2) The city shall contribute four and seven-tenths percent of salary, less forfeitures from nonvested terminations, for each employee participating in Plan No. 3;

(3) Employee and city contributions shall be deposited in the fund within five working days of deduction of the employer's contribution;

(4) Employee and city contributions will be credited at least monthly with investment earnings at the rate earned by the fund;

(5) The city shall pick up the employee contribution required by subsection (c)(1) of this section for all salary earned after the effective date of this subsection. The contributions so picked up shall be treated as employer contributions in determining tax treatment under the United States Internal Revenue Code. The city shall pick up these employee contributions from funds established and available in the salaries account, which funds would otherwise have been designated as employee contributions and paid to the retirement fund. Employee contributions picked up by the city pursuant to this subsection shall be treated for all other purposes of this and other laws of the city in the same manner and to the same extent as employee contributions made prior to the effective date of this subsection.

(d) Compensation in excess of the limitations set forth in Section 401(a)(17) of the Internal Revenue Code shall be disregarded. The limitation on compensation for employees shall not be less than the amount which was taken into account under the retirement plan as in effect on July 1, 1993. For this purpose, an "eligible employee" is an individual who was a member of the retirement plan before the first plan year beginning after December 31, 1995.
(Ord. No. 44-812 § 3)

Sec. 2.28.040. Participation in Plan No. 3.

Each employee of the city hired on or after January 1, 1994 shall participate in Plan No. 3 until the employee completes seven years of service. In determining when an employee completes seven years of service for purposes of vesting, the employee may include prior city service purchased under the provisions of Section 2.28.045(b) or 2.28.250(g). Upon completion of seven years of vested service, the employee then must make an election as provided for in Section 2.28.060.
(Ord. No. 45-127 § 1)

Sec. 2.28.045. Other governmental service.

(a) Each employee of the city hired on or after April 1, 2001, may utilize prior documented Sedgwick County governmental service to meet all or part of the seven-year vesting requirement. If such prior documented service credit together with purchased service credit, if any, is equal to or exceeds seven years, the employee then must make an election as provided for in Section 2.28.060. The calculation of any pension benefit will be based only upon service with the city.

(b) Each employee of the city hired on or after April 1, 2001 may purchase up to but not to exceed ten years of prior documented Sedgwick County governmental service upon payment of the full actuarial cost of the service credit being purchased to include actuarial fees for determining the actuarial cost. Service for retirement purposes shall include purchased service credit and actual service as a participant in the Wichita Employees' Retirement System. If such purchased service credit, together with governmental service credit described in (a) above, if any, is equal to or exceeds seven years, the employee then must make an election as provided for in Section 2.28.060.

(c) Each noncommissioned employee of the city hired on or after April 1, 2001 directly from Sedgwick County as a result of a consolidation of services, having met the vesting requirements of the Kansas Public Employees' Retirement System (KPERS), may:

(1) Remain a member of KPERS; or

(2) Become a member of the Wichita Employees' Retirement System under (a) or (b) above; or

(3) Become a member of the Wichita Employees' Retirement System under Section 2.28.040 of this chapter;

(4) Selection of option (1), (2) or (3) above shall be exercised at the date of employment with the city.

(d) Prior Sedgwick County governmental service shall be documented on forms prescribed by pension management. It shall be the responsibility of such noncommissioned employee to obtain the required prior service documentation.
(Ord. No. 45-127 § 2)

Sec. 2.28.050. Vesting of contributions under Plan No. 3.

(a) Employee contributions and investment credits thereon are one hundred percent vested upon deduction from the employee's salary.

(b) City contributions and investment credits thereon shall become vested in accordance with the following schedule:

(1) Twenty-five percent after three years service;

(2) Fifty percent after five years service;

(3) One hundred percent after seven years service;

(c) Forfeited city contributions (the difference between those city contributions vested as in (b)(1), (2) or (3) above and the city's matching contributions) shall be applied toward contributions the city would otherwise be required to deposit in the fund.
(Ord. No. 44-812 § 5)

Sec. 2.28.060. Election to continue participation in Plan No. 3.

(a) Upon completion of seven years' service, each employee participating in Plan No. 3 shall, within ninety days thereafter, advise the executive secretary of the employee's decision to continue to participate in Plan No. 3. This election must be in writing and once made shall be irrevocable. If the employee does not advise the executive secretary to the contrary, it shall be conclusively presumed that the employee desires to participate in Plan No. 2;

(b) If the employee elects to continue in Plan No. 3, the balance of the employee's account on the date of election shall remain a part of Plan No. 3 and the employee shall be entitled only to those benefits which are provided vested employees under Plan No. 3.

(c) An employee electing to continue in Plan No. 3 shall assume self-direction responsibility with respect to the employee's vested account.
(Ord. No. 45-392 § 2; Ord. No. 44-812 § 6)

Sec. 2.28.070. Composition; expenditures.

(a) The fund shall consist of all moneys received from contributions made by employees, refunds made by employees on re-employment, investments, earnings and moneys paid into such fund by the city.

(b) All benefits paid from the retirement plan shall be distributed in accordance with the requirements of Section 401(a)(9) of the Internal Revenue Code and the regulations under that section, as applicable to a governmental plan within the meaning of Section 414(d) of the Internal Revenue Code. This is being adopted in accordance with Section 823 of the Pension Protection Act of 2006. In order to meet these requirements, the retirement plan shall be administered in accordance with the following provisions:

(1) Distribution of a member's benefit must begin by the required beginning date, which is the later of the April 1st following the calendar year in which a participant attains age 70 ½ or the April 1st of the year following the calendar year in which the member retires. If a member fails to apply for retirement benefits by the later of either of those dates, the Board shall begin distribution of the monthly benefit as required by this rule in the form provided in Sections 2.28.120 or 2.28.210;

(2) The member's entire interest must be distributed over the member's life or the

lives of the member and a designated beneficiary, or over a period not extending beyond the life expectancy of the member or of the member and a designated beneficiary. The life expectancy of a member or the member's spouse may not be recalculated after the benefits commence;

(3) The retirement system, pursuant to a qualified domestic relations order, may establish separate benefits for a member and nonmember;

(4) If a member dies before the required distribution of the member's benefits has begun, the member's entire interest must be either:

(A) distributed (in accordance with federal regulations) over the life or life expectancy of the designated beneficiary, with the distributions beginning no later than December 31st of the calendar year immediately following the calendar year in which the member died; or

(B) distributed within five years of the member's death;

(5) If a member dies after the required distribution of benefits has begun, the remaining portion of the member's interest must be distributed at least as rapidly as under the method of distribution before the member's death;

(6) The amount of an annuity paid to a member's beneficiary may not exceed the maximum determined under the incidental death benefit requirement of Section 401(a)(9)(G) of the Internal Revenue Code, and the minimum distribution incidental benefit rule under Treasury Regulation Section 1.401(a)(9)-6, Q&A-2;

(7) The death and disability benefits provided by the retirement system are limited by the incidental benefit rule set forth in Section 401(a)(9)(G) of the Internal Revenue Code and Treasury Regulation Section 1.401-1(b)(1)(i) or any successor regulation thereto. As a result, the total death or disability benefits payable may not exceed 25% of the cost of all of the members' benefits received from the retirement system; and

(8) Notwithstanding the other provisions of this rule or the provisions of the Treasury Regulations, benefit options may continue so long as the option satisfies Section 401(a)(9) of the Internal Revenue Code based on a reasonable and good faith interpretation of that section.

(c) The board is authorized to expend funds for the following purposes: clerical and secretarial work, stationery, supplies and printing; and professional services of actuaries, accountants, physicians and attorneys, the foregoing list not being intended to limit or exclude expenditures for other proper purposes.

(d) The board may not engage in a transaction prohibited by Section 503(b) of the Internal Revenue Code.

(e) Effective as of July 1, 1989, the Board will determine the amount of any benefit that is determined on the basis of actuarial assumptions using assumptions adopted by the Board by rule; such benefits will not be subject to employer discretion. The Board rules adopted for this purpose are incorporated into this section as part of the plan document.
(Ord. No. 44-812 § 7; Ord. No. 48-344, § 1, 6-16-09)

Sec. 2.28.080. Administration.

(a) The board shall administer the fund, which shall consist of contributions for Plan No. 1, Plan No. 2 and Plan No. 3. The Wichita employees' retirement board shall consist of sixteen members, as follows:

(1) The city manager, or the city manager's designee;

(2) One employee to be appointed by the city manager;

(3) Seven members appointed by the city council, who need not be employees of the city; and

(4) Seven employees of the city to be elected at-large by all employees of the city.

(b) Terms of members of the Wichita employees' retirement board are as follows:

(1) For those members appointed by the city council, the terms of office shall be as set forth in Section 2.12.020(1);

(2) For those members elected at-large by employees eligible for benefits under the city employees' retirement plans, those terms shall be for four years;

(3) For the member appointed by the city manager, the member so appointed shall be for a two-year term ending on August 31st of the second year following such appointment. The city manager's designee shall serve for a two-year term and end on August 31st in the year after the term of the city manager's appointed member.

(c) Administration.

(1) Any elected or appointed member of the board shall be removed from the board after due notice and hearing for nonattendance at three consecutive meetings or for absence of more than fifty percent of the meetings held during any twelve-month period of time. A meeting canceled for lack of a quorum is considered a meeting for purposes of recording attendance. The pension manager will provide written notice to the non-attending board member and the city manager. A vacancy shall be declared unless the board member requests a hearing within ten days after notice is provided. In the case of a board member appointed by the city council, any hearing shall be conducted and determined by the city council. In the case of a board member elected at-large by employees, any hearing shall be conducted by the board at its next regular meeting, and a majority vote will be necessary to reinstate such board member. In the case of a board member appointed by the city manager, any hearing shall be conducted and determined by the city manager;

(2) In the case of a vacancy in the board membership appointed by the city council, the city council shall immediately appoint another member to serve the balance of such term. In the case of a vacancy in any of the seven employee representatives, employees eligible to vote for such membership shall immediately elect a successor, except that in the case of a vacancy in the employee member position appointed by the city manager, the successor of such employee member position shall be an employee appointed by the city manager;

(3) In the case of a vacancy in the administrative office of the city manager, the person designated as the acting official shall immediately take office only until the appointment and qualification of a permanent successor;

(4) The president and vice-presidents of the board shall be elected by members of the board. The city manager shall appoint an employee to serve as executive secretary of the board and keep such records and minutes as the city manager and the board may prescribe. The city treasurer, ex officio, is designated as the custodian of the fund and shall post such additional bond as the board may deem necessary;

(5) The board shall meet once a month on the third Wednesday, and shall meet more or less often as determined by the president or executive secretary;

(6) The board is authorized and directed to establish and maintain proper accounts necessary to give effect to this chapter, in accordance with generally accepted accounting principles as issued by the governmental accounting standards board. The board shall adopt and file with the city clerk rules and regulations for the administration of this chapter, and for the direction and supervision of the fund consistent with the provisions thereof;

(7) The board shall make recommendations to the city council as to sources of funds for meeting the city's share of the cost of the fund and as to probable cost of the

system as between employees under the jurisdiction of the city manager, the library board and the art museum;

(8) All expense incurred by the board shall be paid from the fund; and

(9) The board may also recommend to the city council any changes or amendments to this chapter.

(Ord. No. 46-227 § 1; Ord. No. 44-812 § 8)

Sec. 2.28.090. Investment authority.

(a) Except as provided in subsection (c), the board shall invest and reinvest any portion of the fund not needed for immediate benefit payments through a unitized joint investment fund comprised of assets of the Wichita employees' and police and fire retirement systems. The joint investment fund shall be invested by an investment committee comprised of members from both boards and a city manager's designee. The executive secretary shall be an ex officio, non-voting member of the investment committee. To achieve the investment objective which is to make the moneys as productive as possible, certain standards and limitations (based on cost at time of purchase) are set forth in this section as follows:

(1) In investing and reinvesting moneys in the fund and in acquiring, retaining, managing and disposing of investments of the fund there shall be exercised the judgment and care under the circumstances then prevailing which people of prudence, discretion and intelligence exercise in the management of their own affairs, not in regard to speculation, but in regard to the permanent disposition of their funds, considering the probable income as well as the probable safety of their capital. Within the limitations of the foregoing standard and subject to the following requirements, there may be acquired, retained, managed and disposed of as investments of the fund every kind of investment which people of prudence, discretion and intelligence acquire, retain, manage and dispose of for their own account;

(2) The proportion of the funds invested in corporate, preferred and common stocks shall not exceed 70 percent;

(3) The proportion of the fund invested in securities of a corporation organized under the laws of a country other than the United States of America and securities issued by a foreign country or political subdivision thereof shall not exceed a total of 35 percent;

(4) Investments managed by in-house staff will be restricted to high-grade marketable fixed income securities;

(5) Investments may be made in any pooled arrangement such as a mutual fund, separate account, or commingled fund operated by a qualified investment counselor, an insurance company or a bank;

(6) Other investments separately managed by a qualified investment counselor, an insurance company or a bank, who represent that they act as a fiduciary, will be handled similarly to most other clients of the managing firm, except for holdings of money market instruments or their equivalent;

(7) The board shall impose whatever limitations are deemed appropriate under its investment policy statement;

(8) Notwithstanding any contrary provision in Chapter 2.28 of the Code of the City of Wichita, assets of the Fund may be transferred to a group trust meeting the requirements of Revenue Ruling 2011-1 that is operated or maintained exclusively for the commingling and collective investment of monies provided that the funds in the group trust consist exclusively of trust assets of pension, profit-sharing and stock bonus trusts or custodial accounts qualifying under Section 401(a) of the Internal Revenue Code that are exempt under Section 501(a) of such Code; individual retirement accounts that are exempt under Section 408(e) of the Internal Revenue Code; eligible governmental plan trusts or custodial accounts under Section 457(b) of the Internal Revenue Code that are exempt under Section 457(g) of such Code; custodial accounts under Section 403(b)(7) of the Internal Revenue Code; retirement income accounts under Section 403(b)(9) of the Internal Revenue Code; and governmental plans under Section 401(a)(24) of the Internal Revenue Code. Following the investment committee's selection of such a group

trust for investment, and upon the transfer of assets of the Fund to such group trust, the group trust shall be deemed adopted as a part of the retirement plan for the duration of such investment.

For purposes of valuation, the value of the interest maintained by the plan in such group trust shall be the fair market value of the portion of the group trust held for the plan, determined in accordance with generally recognized valuation procedures.

(b) Nothing in this chapter, however, shall be construed so as to give the board at any time authority to invest directly or indirectly in any:

(1) Real estate, except in pooled arrangement such as a mutual fund, separate account or commingled fund operated by a qualified investment counselor or an insurance company. The amount of such investments shall not exceed ten percent of the Fund;

(2) Private equity; except in a commingled fund-of-funds vehicle operated by a registered advisor or a bank. The amount of such investment shall not exceed ten percent of the Fund;

(3) Timber; except in a commingled fund vehicle operated by a registered investment advisor or a bank. The amount of such investment shall not exceed ten percent of the Fund;

(4) Mortgages secured by real estate, except insured mortgages under Titles 203, 207, 220 and 221 of the Federal Housing Act;

(5) Oil and gas leases or royalties; or

(6) Commodities (including but not limited to wheat, gold or gasoline, or financial futures); provided, however, that the restriction on investment contained in this paragraph shall not apply to funds which are invested in a mutual fund, separate account or commingled fund operated by a registered investment advisor or insurance company.

(c) The board shall not be responsible for investing or reinvesting any portion of an employee's vested account for which an employee has assumed self-direction responsibility of the investing and reinvesting of such an employees' vested account as provided for in Section 2.28.060 of this chapter.
(Ord. No. 45-392 § 3; Ord. No. 44-812 § 9; Ord. No. 47-451, § 2, 3-27-07; Ord. No. 48-918, § 1, 12-21-2010; Ord. No. 49-036, § 1, 7-19-2011)

Sec. 2.28.100. Termination of employment.

(a) An employee in Plan No. 1 or Plan No. 2 terminating employment with the city may upon written request to the board:

(1) Withdraw the total of all contributions made by the employee plus interest on such contributions at the rate of five percent per year compounded monthly; or

(2) If the employee has contributions eligible for rollover distribution as defined by Section 402(f)(2)(A) of the Internal Revenue Code;

(i) Elect to have all or a portion of such eligible contributions paid directly to an eligible retirement plan, as that term is further defined by Section 2.28.420, or traditional IRA; and

(ii) Withdraw any remaining contributions not rolled over under subsection (i); or

(3) Elect to leave his or her contributions in the fund and defer the retirement benefit in accordance with Section 2.28.140; or

(4) Elect to receive a retirement benefit based on age and service in accordance with Section 2.28.120.

(b) An employee in Plan No. 3 terminating employment with the city may upon written request to the board:

(1) Withdraw the total of his or her vested account; or

(2) If the employee's vested account is eligible for rollover distribution:

(i) Elect to have all or a portion of such eligible contributions paid directly to an eligible retirement plan, as that term is further defined by Section 2.28.410, or traditional IRA; and

(ii) Withdraw any remaining contributions not rolled over under subsection (i).

(Ord. No. 45-162 § 1; Ord. No. 44-812 § 10; Ord. No. 47-451, § 3, 3-27-07)

Sec. 2.28.110. Eligibility for defined benefit retirement on account of age and service.

(a) *For employees under Plan No. 1:*

(1) For purposes of compliance with the Internal Revenue Code and related guidance, upon attaining the age of 60 years, and having at least seven years of service (whichever is later), an employee has a nonforfeitable right to his or her normal retirement benefit, which is the benefit calculated under Section 2.28.120(a)(1). The retirement benefit is only payable upon the employee's retirement. This subsection is not to be construed as a reduction or limitation of rights heretofore existing, nor as an indication that vested benefits would be forfeitable before the stated age is attained.

(2) An employee who has completed at least 30 years of service shall be eligible to receive a retirement benefit regardless of age. The amount of such benefit shall be calculated as provided in Section 2.28.120.

(3) An employee who has completed at least seven years of service and desires to retire voluntarily after having attained the age of 55 years and who has not yet attained the age of 60 years shall be eligible to receive a reduced retirement benefit. The amount of such benefit shall be calculated as provided in Section 2.28.120.

(4) An employee who has completed at least seven years of service may, upon terminating employment before age 60, receive a refund of his or her contributions with interest at five percent per year compounded monthly. Such employee may elect to leave his or her contribution in the fund and such employee shall be eligible for a retirement benefit at such time as the employee satisfies the age requirements of subsections (a)(1) or (3) of this section. The amount of such benefit shall be calculated as provided in Section 2.28.120 and Section 2.28.140.

(b) *For employees under Plan No. 2:*

(1) For purposes of compliance with the Internal Revenue Code and related guidance, upon attaining the age of 62 years, and having at least seven years of service (whichever is later), an employee has a nonforfeitable right to his or her normal retirement benefit, which is the benefit calculated under Section 2.28.120(b)(1). The retirement benefit is only payable upon the employee's retirement. This subsection is not to be construed as a reduction or limitation of rights heretofore existing, nor as an indication that vested benefits would be forfeitable before the stated age is attained.

(2) An employee who has completed at least seven years of service and desires to retire voluntarily after having attained the age of 55 years and who has not yet attained the age of 62 years shall be eligible to receive a reduced retirement benefit. The amount of such benefit shall be calculated as provided in Section 2.28.120.

(3) An employee who has completed at least seven years of service may, upon terminating employment before age 62, receive a refund of his or her contributions with interest at five percent per year compounded monthly. Such employee may elect to leave his or her contribution in the

fund and such employee shall be eligible for a retirement benefit at such time as the employee satisfies the age requirements of subsections (1) or (2) of this section. The amount of such benefit shall be calculated as provided in Section 2.28.120 and Section 2.28.140.

(Ord. No. 44-812 § 11; Ord. No. 47-451, § 4, 3-27-07; Ord. No. 49-036, § 2, 7-19-2011)

Sec. 2.28.120. Calculation of retirement benefits paid by reason of age and length of service.

(a) An employee under Plan No. 1 who retires by reason of age and service shall receive during his or her lifetime a retirement benefit, payable in equal monthly installments, based on the following:

(1) Those employees attaining the retirement age of sixty years, and having at least seven years of service, shall receive an annual retirement benefit calculated by multiplying such employee's final average salary by a factor calculated by multiplying such employee's years of service and any fraction thereof, by two and one-half percent. The maximum annual retirement benefit shall not be more than seventy-five percent of final average salary.

(2) Those employees who have completed thirty years of service shall be eligible to receive, regardless of age, a retirement benefit equal to seventy-five percent of final average salary.

(3) Those vested employees who elect to retire between fifty-five and sixty years of age, shall be entitled to a retirement benefit, equal to the benefit calculated under subsection (1) of this subsection; provided, however, such benefit shall be reduced by a percentage factor that is calculated by multiplying the number of full months needed for such employee to reach age sixty by the percentage set forth below which corresponds to such employee's full years of service at retirement as follows:

No. Years Service	*Reduction*
At least 30 years service	None
At least 29 but less than 30 years service	.05 of 1%
At least 28 but less than 29 years service	.10 of 1%
At least 27 but less than 28 years service	.15 of 1%
At least 26 but less than 27 years service	.20 of 1%
At least 25 but less than 26 years service	.25 of 1%
At least 24 but less than 25 years service	.30 of 1%
At least 23 but less than 24 years service	.35 of 1%
At least 22 but less than 23 years service	.40 of 1%
At least 21 but less than 22 years service	.45 of 1%
At least 7 but less than 21 years service	.50 of 1%

(4) In the event of retirement after December 31, 1993, by a person who has been employed in a joint department which has been transferred from the administrative control of the city to the administrative control of Sedgwick County, the reduction required by subsection (3) of this subsection shall be determined based upon the combined credited service with the city and the consecutive service with Sedgwick County following the transfer of the joint department. The pension benefit payable to such retiree, however, will in all other respects be based entirely upon the service earned by the person prior to the time of the transfer, final average salary at the time of the transfer, and the benefit formula in effect at the time of the transfer.

(b) An employee under Plan No. 2 who retires by reason of age and service shall receive during his or her lifetime a retirement benefit, payable in equal monthly installments, based on the following:

(1) Those employees attaining the retirement age of sixty-two years, and having at least

seven years of service, shall receive an annual retirement benefit calculated by multiplying such employee's final average salary by a factor calculated by multiplying such employee's years of service and any fraction thereof, by two and one-quarter percent. The maximum annual retirement benefit shall not be more than seventy-five percent of final average salary.

(2) Those vested employees who elect to retire between fifty-five and sixty-two years of age, shall be entitled to a retirement benefit, equal to the benefit calculated under subsection (1) of this subsection; provided, however, such benefit shall be reduced by a percentage factor that is calculated by multiplying the number of full months needed for such employee to reach age sixty-two by six tenths of one percent.

(3) In the event of retirement on or after January 1, 2002 by a person who has been employed in a joint department which has been transferred from the administrative control of the city to the administrative control of Sedgwick County, the pension benefit payable to such retiree shall be based upon the combined service with the city and the consecutive service with Sedgwick County following the transfer and the final average salary at the time of retirement.

(c) Benefits payable under Plan No. 1 or Plan No. 2 are subject to Section 401(a)(17) of the Internal Revenue Code.

(d) Salary in excess of the limitations set forth in Section 401(a)(17) of the Internal Revenue Code shall be disregarded.
(Ord. No. 45-127 § 3)

Sec. 2.28.121. Military service.

(a) Notwithstanding any provision of this plan to the contrary, contributions, benefits and service credit with respect to qualified military service will be provided in accordance with Section 414(u) of the Internal Revenue Code.

(b) Effective with respect to deaths occurring on or after January 1, 2007, while a member is performing qualified military service (as defined in chapter 43 of title 38, United States Code), to the extent required by Section 401(a)(37) of the Internal Revenue Code, survivors of a member in a State or local retirement or pension system, are

entitled to any additional benefits that the system would provide if the member had resumed employment and then died, such as accelerated vesting or survivor benefits that are contingent on the member's death while employed.

(c) Beginning January 1, 2009, to the extent required by Sections 3401(h) and 414(u)(2) of the Internal Revenue Code, a member receiving differential wage payments (while the member is performing qualified military service (as defined in chapter 43 of title 38, United States Code)) from an employer shall be treated as employed by that employer and the differential wage payment shall be treated as earned compensation. This provision shall be applied to all similarly situated individuals in a reasonably equivalent manner.
(Ord. No. 44-812 § 13; Ord. No. 48-344, § 2, 6-16-09)

Sec. 2.28.130. Purchase of future service under Plan No. 1 and Plan No. 2.

Any vested employee under Plan No. 1 or Plan No. 2 may purchase up to but not to exceed sixty months future service upon payment of the full actuarial cost of the service credit being purchased to include actuarial fees for determining the actuarial cost. Installment payments shall not be permitted.

Such employee wishing to determine the cost of purchasing service credit hereunder shall be required to pay the actual cost, if any, of the actuarial fee to determine the actuarial cost of the service credit regardless of whether or not the service credit is actually purchased.

The actuarial cost of service credit calculation is based on actuarial assumptions adopted by the board by rule.
(Ord. No. 44-812 § 14)

Sec. 2.28.140. Indexing of deferred retirement benefits.

An employee in Plan No. 1 or Plan No. 2 who terminates employment and elects to defer receipt of his or her retirement benefit or elects to leave his or her contributions in the fund until such time he or she is eligible to receive a retirement benefit, shall, if such employee has a deferral period of at least one full month, be entitled to a retirement benefit calculated as follows:

(a) A base retirement benefit calculated under Section 2.28.120; and

(b) A benefit (which may calculate as no actual increase in benefits) which shall be calculated for each calendar year or full months, in the case of a partial year in such employee's deferral period.

The benefit calculation in subsection (b) of this section shall be the base benefit calculation in subsection (a) adjusted annually for each calendar year or full months in the employee's deferral period. The determination of whether an employee is due a benefit increase for a specific calendar year in which the employee has at least one full month of deferral period shall be made by determining, for that calendar year, the smaller of (1) 1.055; or (2) the ratio of national average earnings for the second preceding calendar year to national average earnings for the third preceding calendar year. If the smaller of these two figures is greater than 1.0, the employee shall be entitled to a benefit increase for that calendar year in the amount of the employee's base retirement benefit, as calculated under subsection (a) of this section, multiplied by such smaller figure. Any benefit increase for a partial year in the employee's deferral period shall be pro-rated for each month, based on the full year increase.
(Ord. No. 44-812 § 15; Ord. No. 47-451, § 5, 3-27-07)

Sec. 2.28.150. Disability retirement.

(a) For employees under Plan No. 1:

(1) Service-Connected Disability. An employee shall be eligible for retirement and for a retirement benefit if he or she becomes permanently and totally disabled from engaging in the performance of any duties for the city which such employee might reasonably be expected to perform in view of his or her training, experience, and education; and such disability is shown to have arisen out of and in the course of his or her employment by the city. Such em-

ployee shall be eligible for a retirement benefit equal to sixty percent of the employee's salary in effect when salary payments ceased.

(2) Nonservice-Connected Disability. An employee having at least seven years of service, under the age of sixty years, who becomes permanently and totally disabled from engaging in the performance of any duties for the city which such employee might reasonably be expected to perform in view of his training, experience and education, shall be entitled to a retirement benefit. The retirement benefit in the case of a nonservice-connected disability shall be equal to thirty percent of the employee's final average salary, plus one percentage point for each year of service in excess of seven years, up to a maximum of fifty percent of final average salary.

(b) For employees under Plan No. 2:

(1) Service-Connected Disability. An employee shall be eligible for retirement and for a retirement benefit if he or she becomes permanently and totally disabled from engaging in the performance of any duties for the city which such employee might reasonably be expected to perform in view of his or her training, experience, and education, and such disability is shown to have arisen out of and in the course of his or her employment by the city. Such employee shall be eligible for a retirement benefit equal to fifty percent of the employee's salary in effect when salary payments ceased.

(2) Nonservice-Connected Disability. An employee having at least seven years of service, under the age of sixty-two years, who becomes permanently and totally disabled from engaging in the performance of any duties for the city which such employee might reasonably be expected to perform in view of his training, experience and education, shall be entitled to a retirement benefit. The retirement benefit in the case of a nonservice-connected disability shall be equal to twenty-five percent of the employee's salary in effect when salary payments ceased.

(c) For employees under Plan No. 3:

(1) Service-Connected Disability. An employee shall be eligible for retirement and for a retirement benefit if he or she becomes permanently and totally disabled from engaging in the performance of any duties for the city which such employee might reasonably be expected to perform in view of his or her training, experience, and education; and such disability is shown to have arisen out of and in the course of his or her employment by the city. Such employee shall be eligible for a retirement benefit equal to fifty percent of the employee's salary in effect when salary payments ceased; or receive a refund of the employee's Plan No. 3 vested account.

(2) Nonservice-Connected Disability. An employee having at least seven years of service, under the age of sixty-two years, who becomes permanently and totally disabled from engaging in the performance of any duties for the city which such employee might reasonably be expected to perform in view of his training, experience and education, shall be entitled to a retirement benefit. Such employee shall be eligible for a retirement benefit equal to twenty-five percent of the employee's salary in effect when salary payments ceased; or receive a refund of the employee's Plan No. 3 vested account.

(d) Administration of Disability Annuities.

(1) In order to obtain a disability retirement benefit, an employee shall apply in writing to the board. The board will establish rules and regulations governing the application process. The determination of disability from any cause shall be made by the board based upon medical information from examinations made by at least two physicians who may or may not be the claimant's physician or physicians and

any other relevant information. The retirement benefit may be made retroactive to the date when salary ceased.

(2) A member receiving either service-connected or nonservice-connected disability retirement benefits shall be required, at the discretion of the board, to submit to an examination at least once each year by a physician or physicians designated by the board to establish that the member is still disabled. The board may terminate a disability retirement benefit upon evidence that the member is no longer disabled. If such termination occurs and the member does not re-enter service, he or she shall be entitled to a refund of the excess, if any, of the contributions made by the member, without interest, over the amounts received by the member as disability retirement benefits.

(3) No disability retirement benefits shall be paid if the disability was caused by willful misconduct or intoxication of the disabled employee. Any amount received under the State Worker's Compensation Act (except medical expenses) shall be deducted from the disability retirement benefit.

(4) Each member receiving a disability retirement benefit shall submit to the board, once each year, a copy of the Federal Income Tax Return filed by the member for such year.

(5) A member who has retired by reason of disability and thereafter resumes employment for salary other than with the city, shall have his or her disability retirement benefit reduced to an amount which, when added to his or her income from such employment does not exceed the salary currently being paid for the position classification most similar to that held by the member when salary payments ceased. Should a member be re-employed by the city, the disability retirement benefit shall immediately cease. Such member will resume participation in the retirement plan in which such member was participating at the time of disability. A member resuming participation in Plan No. 1 shall be entitled to service credit for the period such member was receiving disability retirement benefits. A member resuming participation in Plan No. 2 who is reemployed for at least three years thereafter shall be entitled to service credit for the period such member was receiving disability retirement benefits. In the event such member's period of reemployment is less than three years, such member shall not be entitled to service credit as provided above.

(6) Application for a retirement based on age and length of service shall be deemed to be an irrevocable waiver of any claim for disability benefits.

(7) The failure of a member to submit to an examination, as required under subparagraph (2) of this subsection, or to submit a Federal Income Tax Return, as required under subparagraph (4) of this subsection, shall be grounds for the board to terminate such member's disability retirement benefit.

(Ord. No. 44-812 § 16)

Sec. 2.28.160. Post retirement adjustment.

(a) *For employees under Plan No. 1:* Those employees who have retired for any reason under Plan No. 1 shall, upon completion of twelve months of retirement, have the retirement benefit payable to such retired employee, increased by an amount each year equal to three percent of the original retirement benefit.

(b) *For employees under Plan No. 2:* Those employees who have retired for any reason under Plan No. 2 shall, upon completion of twelve months of retirement, have the retirement benefit payable to such retired employee, increased by an amount each year equal to two percent of the original retirement benefit.

(Ord. No. 44-812 § 17; Ord. No. 47-451, § 6, 3-27-07)

Sec. 2.28.170. Optional reversionary allowance.

An employee under Plan No. 1 or Plan No. 2 may, subject to such rules as the board may from

time to time establish, elect to receive a reduced retirement benefit with the proviso that such reduced retirement benefit, or such part thereof, as may be specified by the employee in the employee's notice of election, shall be continued after the employee's death for the life of the employee's spouse or other beneficiary named in such election. The amount payable to a beneficiary under this section shall not be more than the reduced retirement benefit payable to the retired employee. Such benefit and the amount provided for the beneficiary shall not exceed an amount as is determined according to the approximate equivalent formula recommended by the actuary and adopted by the board. Should the named beneficiary predecease a retired employee who elects a reduced retirement benefit, the benefit payable to such retired employee shall revert to the retirement benefit calculated for the employee had such employee not elected the reduced retirement benefit. This recalculated retirement benefit shall be payable beginning the first of the month following notice of the beneficiary's death.
(Ord. No. 44-812 § 18)

Sec. 2.28.180. Death and survivor benefits in the event of the death of a retiree.

(a) Upon the death of a member who retired under Plan No. 1, the following benefits shall be payable to such member's surviving spouse, if any, and/or minor child or children, if any:

(1) In the event of the death of a member who retired under Plan No. 1 and who shall leave a surviving spouse and no minor child or children:

(i) If such member retired prior to January 1, 2000, such surviving spouse, upon proof of marriage to such member, shall be entitled to receive, in addition to all other benefits payable hereunder, a monthly benefit payable for the remainder of the natural life of such surviving spouse, equal to fifty percent of the monthly benefit being paid to such member at the time of such member's death; provided, however, in no event other than to comply with the 75% limitation contained hereinbelow shall such surviving spouse's monthly benefit be less than fifty percent of the monthly benefit calculated at the time of such member's retirement as adjusted over time for post retirement adjustments. Such surviving spouse shall not be entitled to the benefit unless the surviving spouse was such member's lawfully wedded spouse at the time of retirement.

(ii) If such member retired on or after January 1, 2000, such surviving spouse, upon proof that such spouse was such member's lawfully wedded spouse for at least 12 months prior to such member's death, shall be entitled to receive a monthly benefit payable for the remainder of the natural life of the surviving spouse equal to fifty percent of the monthly benefit being paid to such member at the time of such member's death; provided, however, in no event other than to comply with the 75% limitation contained hereinbelow shall such surviving spouse's monthly benefit be less than fifty percent of the monthly benefit calculated at the time of such member's retirement as adjusted over time for post retirement adjustments.

(2) In the event of the death of a member who retired under Plan No. 1 and who shall leave no surviving spouse but a minor child or children:

(i) If such member retired prior to January 1, 2000, the minor child or children of such member shall be entitled to no benefit hereunder.

(ii) If such member retired on or after January 1, 2000, each minor child of such member shall be entitled to a benefit of twenty percent of such member's final average salary. Such benefit shall be paid to the custodial parent or guardian/conservator of each minor child. In no event shall total payments hereunder on ac-

count of such minor children exceed sixty percent of such member's final average salary. In the event such payments would exceed sixty percent of such member's final average salary, each such benefit shall be reduced pro-rata.

(3) In the event of the death of a member who retired under Plan No. 1 and who shall leave a surviving spouse and a minor child or children:

(i) If such member retired prior to January 1, 2000, the surviving spouse of such member shall be entitled to benefits as provided in subsection (a)(1)(i) above. The minor child or children of such member shall be entitled to no benefit hereunder.

(ii) If such member retired on or after January 1, 2000, the surviving spouse of such member shall be entitled to benefits as provided in subsection (a)(1)(ii) above subject to the limitation set forth below. Each such child shall be entitled to a benefit of ten percent of such member's final average salary. Such benefit shall be paid to the custodial parent or guardian/conservator of each such child. In no event shall total payments to a surviving spouse and on account of minor children exceed seventy-five percent of such member's final average salary. In the event such payments would exceed seventy-five percent of such member's final average salary, the benefit payable to such member's surviving spouse shall be reduced so that total payments equal seventy-five percent of such employee's final average salary. At such time that total payments no longer exceed seventy-five percent of such member's final average salary, the benefit of such surviving spouse shall be increased so that total payments equal seventy-five percent of such member's final average salary but in no event shall such surviving spouse's benefit be increased to a level greater than fifty percent of the monthly benefit calculated at the time of such member's retirement as adjusted over time for post retirement adjustments.

(b) Upon the death of a member who retired under Plan No. 2, the following benefits shall be payable to such member's surviving spouse, if any, and/or minor child or children, if any:

(1) In the event of the death of a member who retired under Plan No. 2 and who shall leave a surviving spouse and no minor child or children:

(i) If such member retired prior to January 1, 2000, such surviving spouse, upon proof of marriage to such member, shall be entitled to receive, in addition to all other benefits payable hereunder, a monthly benefit payable for the remainder of the natural life of such surviving spouse, equal to twenty-five percent of the monthly benefit being paid to such member at the time of such member's death; provided, however, in no event other than to comply with the 75% limitation contained hereinbelow shall such surviving spouse's monthly retirement be less than twenty-five percent of the monthly benefit calculated at the time of such member's retirement as adjusted over time for post retirement adjustments. Such surviving spouse shall not be entitled to the benefit unless the surviving spouse was such member's lawfully wedded spouse at the time of retirement.

(ii) If such member retired on or after January 1, 2000, such surviving spouse, upon proof that such spouse was such member's lawfully wedded spouse for at least twelve months prior to such member's death, shall be entitled to receive a monthly benefit payable for the remainder of the natural life of the surviving spouse equal to fifty percent of the monthly

benefit being paid to such member at the time of such member's death; provided, however, in no even other than to comply with the 75% limitation contained hereinbelow shall such surviving spouse's monthly benefit be less than fifty percent of the monthly benefit calculated at the time of such member's retirement as adjusted over time for post retirement adjustments.

(2) In the event of the death of a member who retired under Plan No. 2 and who shall leave no surviving spouse but a minor child or children:

(i) If such member retired prior to January 1, 2000, the minor child or children of such member shall be entitled to no benefit hereunder.

(ii) If such member retired on or after January 1, 2000, each minor child of such member shall be entitled to a benefit of twenty percent of such member's final average salary. Such benefit shall be paid to the custodial parent or guardian/conservator of each minor child. In no event shall total payments hereunder on account of such minor children exceed sixty percent of such member's final average salary. In the event such payments would exceed sixty percent of such member's final average salary, each such benefit shall be reduced prorata.

(3) In the event of the death of a member who retired under Plan No. 2 and who shall leave a surviving spouse and a minor child or children:

(i) If such member retired prior to January 1, 2000, the surviving spouse of such member shall be entitled to benefits as provided in subsection (b)(1)(i) above; the minor child or children of such member shall be entitled to no benefit hereunder.

(ii) If such member retired on or after January 1, 2000, the surviving spouse of such member shall be entitled to benefits as provided in subsection (b)(1)(ii) above subject to the limitation set forth below. Each such child shall be entitled to a benefit of ten percent of such member's final average salary. Such benefit shall be paid to the custodial parent or guardian/conservator of each such child. In no event shall total payments to a surviving spouse and on account of minor children exceed seventy-five percent of such member's final average salary. In the event such payments would exceed seventy-five percent of such member's final average salary, the benefit payable to such member's surviving spouse shall be reduced so that total payments equal seventy-five percent of such employee's final average salary. At such time that total payments no longer exceed seventy-five percent of such member's final average salary, the benefit of such surviving spouse shall be increased so that total payments equal seventy-five percent of such member's final average salary but in no event shall such surviving spouse's benefit be increased to a level greater than fifty percent of the monthly benefit calculated at the time of such member's retirement as adjusted over time for post retirement adjustments.

(c) A minor child shall be eligible for the benefit until age eighteen, death, or marriage, whichever occurs first.

(d) An employee participating in the DROP for Plan No. 1 or Plan No. 2 shall not be considered a member who retired under either Plan No. 1 or Plan No. 2 for purposes of this section.

(Ord. No. 44-812 § 19; Ord. No. 46-655 § 1, 9-20-05)

Sec. 2.28.190. Death and survivor benefits in the event of the death of an employee.

(a) For employees under Plan No. 1 or Plan No. 2, death benefits and survivor's annuities shall be as follows:

(1) Upon death of an unmarried employee or an employee whose spouse is not qualified for the survivor's benefit provided hereinafter:

(i) The beneficiary designated by such employee, if such employee leaves no surviving minor child or children, shall receive a death benefit in addition to any death benefits which may be paid under the Kansas Workers Compensation Act. If no beneficiary was named, or if the beneficiary so named does not survive such employee, payment of the benefit shall be made to such employee's estate. Such benefit shall be in an amount equal to one month's salary for each full year of service, but in no event greater than six months' salary. The rate of salary being received at time of death shall be used as the basis for such computation. A person regularly employed and whose salary has ceased, by the expiration of sick leave or for any other reason and who has not resigned, shall be regarded as an employee for purpose of eligibility for this death benefit if death occurs within thirty days after the last salary paid.

(ii) If such employee has at least seven years service and dies leaving a surviving minor child or children, each such minor child shall be entitled to a benefit of twenty percent of such employee's final average salary. Such benefit shall be paid to the custodial parent or guardian/conservator of each child. In no event shall total payments hereunder on account of minor children exceed sixty percent of such employee's final average salary. In the event such payments would exceed sixty percent of such employee's final average salary, each such benefit shall be reduced prorata.

(2) Upon the death of a married employee with at least seven years of service:

(i) The surviving spouse of such employee shall be entitled to receive a benefit equal to fifty percent of the benefit the deceased employee would have received had the employee been on an unreduced retirement at the time of such employee's death. Such benefit shall be payable for the remainder of the natural life of the surviving spouse.

(ii) The surviving spouse of such employee shall be entitled to the benefit set forth in subsection (a)(2)(i) of this section, subject to reduction as provided below. If such employee leaves a surviving minor child or children, each such child shall be entitled to a benefit of ten percent of such employee's final average salary. Such benefit shall be paid to the custodial parent or guardian/conservator of each such child. In no event shall total payments to a surviving spouse and on account of minor children exceed seventy-five percent of such employee's final average salary. In the event such payments would exceed seventy-five percent of such employee's final average salary, the benefit payable to such employee's surviving spouse shall be reduced so that total payments equal seventy-five percent of such employee's final average salary. At such time that total payments no longer exceed seventy-five percent of such employee's final average salary, the benefit of such surviving spouse shall be increased so that total payments equal seventy-five percent of such employee's final average salary but in no event shall such surviving spouse's benefit be increased to a level greater

than fifty percent of such employee's benefit at the time of such employee's death.

(b) A minor child shall be eligible for the benefit until age eighteen, death or marriage, whichever occurs first.

(c) An employee participating in the DROP for Plan No. 1 or Plan No. 2 shall for purposes of this section be considered an employee.
(Ord. No. 44-812 § 20)

Sec. 2.28.200. Death benefits payable to beneficiary of retired member.

In the event of the death of a retired member, in addition to all other benefits payable under this chapter, following proof of such member's death satisfactory to the board, the beneficiary designated by such member shall be entitled to receive:

(a) For such member retired under Plan No. 1, the sum of one thousand five hundred dollars.

(b) For such member retired under Plan No. 1 or Plan No. 2:

(1) The benefit for such member accrued from the first day of the month during which such member's death occurred through the date of such member's death;

(2) The balance of such member's contributions and interest accrued through the effective retirement date that had not been paid as a retirement benefit or as calculated in subsection (b)(1) of this section.

(c) For such member retired under Plan No. 1 who is participating in the DROP in accordance with Section 2.28.230, the beneficiary of such member, in addition to receiving any benefits payable through subsections (a) and (b) of this section, shall be entitled to receive distribution of the DROP account in accordance with Section 2.28.230(g)(1).

(d) For such member retired under Plan No. 2 who is participating in the DROP in accordance with Section 2.28.240, the beneficiary of such member, in addition to receiving any benefits payable through subsections (a) and (b) of this section, shall be entitled to receive distribution of the DROP account in accordance with Section 2.28.240(f)(1).
(Ord. No. 44-812 § 21; Ord. No. 47-451, § 7, 3-27-07)

Sec. 2.28.210. Distribution of vested accounts.

(a) The vested account of a former employee shall be paid to such employee upon written request filed with the board in the form specified by the board. Payment shall be made under the form of payment elected by the former employee from the forms of payment made available by the board.

(b) The vested account of a deceased employee or deceased former employee shall be paid to the beneficiary designated by such deceased employee or such deceased former employee upon written request of the beneficiary filed with the board. Payment shall be made under the form of payment elected by such beneficiary from the forms of payment made available by the board.

(c) Subject to rules adopted by the board and in compliance with Section 401(a)(31) of the Internal Revenue Code, if a former employee or surviving spouse of an eligible rollover distribution elects to have such distribution paid directly to an eligible retirement plan and specified the eligible retirement plan to which such distribution is to be paid (in such form and such time as the board may prescribe), such distribution shall be made in the form of a direct trustee-to-trustee transfer.
(Ord. No. 44-812 § 22)

Sec. 2.28.220. Special provisions for safety personnel employed by the Wichita Airport.

Safety personnel employed by the Wichita Airport of the City of Wichita who are members of Wichita employees' retirement Plan No. 1 or Plan No. 2 shall be transferred on June 29, 1996, to Wichita Police and Fire Retirement Plan C-79.

Notwithstanding any other provisions of Plan No. 1, such personnel shall be considered members of Plan No. 1 or Plan No. 2 subject to the following conditions and limitations:

(a) A member who had completed seven or more years of service as of June 29, 1996, shall retain such service for the purposes of Plan No. 1 or Plan No. 2;

(b) Service rendered after June 29, 1996, and considered service under the Wichita police and fire retirement system pursuant to Section 3.9 of Charter Ordinance No. 131, and as it may from time to time be amended, shall be considered service under Plan No. 1 or Plan No. 2 for purposes of satisfying the service eligibility requirements for benefits under Plan No. 1 or Plan No. 2;

(c) Service rendered after June 29, 1996, shall not be considered in the determination of the amount of any benefit payable under Plan No. 1 or Plan No. 2;

(d) Salary earned after June 29, 1996, shall not be considered in the computation of benefits payable under Plan No. 1 or Plan No. 2;

(e) Benefits payable under Plan No. 1 or Plan No. 2 shall be based upon the employee's average annual salary computed as of June 29, 1996, and service credit pursuant to subsections (a) and (b) of this section;

(f) Benefits payable under Plan No. 1 or Plan No. 2 shall commence no earlier than the date the employee terminates employment with the city; provided, however, that for purposes of retirement without penalty for early retirement from Plan No. 1 or Plan No. 2, normal retirement age shall be age fifty-five years;

(g) In order to fund the cost of the benefit granted these employees by subparagraph (f) of this section, those employees who have completed seven years of service by June 29, 1996, shall contribute six and six-tenths percent of their salary to the Wichita Employees' retirement fund for a period of seventy-eight pay periods following their transfer to Wichita police and fire retirement Plan C-79;

(h) Benefits payable under Plan No. 1 or Plan No. 2 shall be adjusted in accordance with Section 2.28.140. The deferral period shall be the period between June 29, 1996, and the date upon which the employee begins to receive the benefits; and

(i) Under no circumstances will the total retirement benefit payable to a safety officer as a result of this transfer exceed an amount equal to seventy-five percent of his or her final average salary plus applicable post-retirement adjustments, notwithstanding whether the source of the benefit is the Wichita employees' retirement plans or the police and fire retirement system.

Safety officers whose employment by the Wichita Airport commences after June 29, 1996, shall not be considered employees under the Wichita employees' retirement plans.
(Ord. No. 44-812 § 23)

Sec. 2.28.230. Deferred retirement option plan (DROP) for Plan No. 1.

Employees may participate in the DROP under the following conditions:

(a) An employee under Plan No. 1 who would be eligible upon termination to receive a retirement benefit may elect to remain in active service and participate in the DROP.

(b) The employee may elect to participate for a maximum of five years. The period of participation elected shall be known as the DROP period. Only one such election can be made, and such election is irrevocable subject to subsections (l) and (m) of this section.

(c) The employee must be eligible, but for the decision to remain in active service, to receive a service retirement benefit on the date of election to participate in the DROP and such election shall be made prior to such employee's receipt of any retirement benefit.

(d) Accumulated, unused sick leave shall increase service, but shall not be used to meet minimum age requirements. Use of sick leave for DROP participation shall reduce the employee's accumulated, unused sick leave by the number of hours utilized for the retirement benefit calculation.

(e) For an employee with at least thirty years of service, accumulated, unused annual leave shall be cashed in to be added to the employee's final average salary for the service retirement benefit calculation under the DROP. Use of annual leave for the DROP service retirement benefit calculation shall reduce the employee's accumulated, unused annual leave account by the number of hours used for the retirement benefit calculation.

(f) Beginning the month of the employee's DROP election and continuing only for the elected DROP period, additions to the employee's notational DROP account will consist of:

(1) The calculated retirement benefit (net of distributions to any alternate payee under a QDRO);

(2) Any post-retirement adjustments to be made when appropriate; and

(3) Interest at the rate of five percent per year compounded monthly on (1) and (2) above.

(g) At termination of employment the employee may elect one of three options for the distribution of the DROP account:

(1) A lump sum payment of the DROP account; or

(2) A qualified plan-to-plan transfer or IRA rollover; or

(3) A combination of (1) and (2) above.

(h) Distribution of the DROP account will be made within ninety days of termination of employment.

(i) Payment of the retirement benefit will be made to the retired employee following termination of employment.

(j) Failure to complete the DROP period as a result of the employee's actions (e.g., voluntary resignation or termination with cause), shall result in the loss of accrued interest under subsection (f) of this section.

(k) Employee contributions to the fund shall continue during the DROP period. In the event the employee does not terminate employment at the end of the DROP period, employee contributions to the fund shall continue until termination of employment.

(l) This subsection applies after August 29, 2008, to an employee who is not participating in the DROP on August 29, 2008. An employee who elects a DROP period and then chooses to remain in active service beyond that DROP period shall be treated at retirement and termination of employment as if the member had never participated in the DROP except that sick leave used to increase service, and the annual leave used to increase the employee's final average salary, will not be reinstated. The member's retirement benefit shall be calculated taking into consideration the member's entire period of service and final average salary during that service, but in any event the maximum annual retirement benefit shall not be more than seventy-five percent of final average salary.

(m) This subsection applies after August 29, 2008, to an employee who is participating in the DROP on August 29, 2008. An employee who has elected a DROP period and then chooses to remain in active service beyond that DROP period (1) shall have his or her DROP account frozen as of the end of the elected DROP period and (2) shall only accrue additional service credit for the service that occurs after the DROP period (using the final average salary as of the commencement of the DROP period), but in any event the maximum annual retirement benefit, net of any applicable post retirement adjustments, shall not be more than seventy-

five percent of the final average salary as of the commencement of the DROP period. In the event that the employee had already earned the maximum annual retirement benefit at his or her DROP election date, no additional service credit shall accrue. An employee covered by this subsection (m) may elect to be covered by subsection (l) of this section (in lieu of this subsection (m)) upon the employee's termination of employment.

(Ord. No. 44-812 § 24; ; Ord. No. 47-451, § 8, 3-27-07; Ord. No. 47-965, § 1, 8-26-08)

Sec. 2.28.240. Deferred retirement option plan (DROP) for Plan No. 2.

Employees may participate in the DROP under the following conditions:

(a) An employee under Plan No. 2 who would be eligible upon termination to receive a retirement benefit may elect to remain in active service and participate in the DROP.

(b) The employee may elect to participate for a maximum of five years. The period of participation elected shall be known as the DROP period. Only one such election can be made, and such election is irrevocable subject to subsections (k) and (l) of this section.

(c) The employee must be eligible, but for the decision to continue in active service, to receive a service retirement benefit on the date of election to participate in the DROP and such election shall be made prior to such employee's receipt of any retirement benefit.

(d) Accumulated, unused sick leave shall increase service, but shall not be used to meet minimum age requirements. Use of sick leave for DROP participation shall reduce the employee's accumulated, unused sick leave by the number of hours utilized for the retirement benefit calculation.

(e) Beginning the month of the employee's DROP election and continuing only for the elected DROP period, additions to the employee's notational DROP account will consist of:

(1) The calculated retirement benefit (may be net of distributions to any alternate payee under a QDRO);

(2) Any post-retirement adjustments to be made when appropriate; and

(3) Interest at the rate of five percent per year compounded monthly on (1) and (2) above.

(f) At termination of employment, the employee may elect one of three options for the distribution of the DROP account:

(1) A lump sum payment of the DROP account; or

(2) A qualified plan-to-plan transfer or IRA rollover; or

(3) A combination of (1) and (2) above.

(g) Distribution of the DROP account will be made within ninety days of termination of employment.

(h) Payment of the retirement benefit will be made to the retired employee following termination of employment.

(i) Failure to complete the DROP period as a result of the employee's actions (e.g., voluntary resignation or termination with cause) would result in the loss of accrued interest under subsection (f) of this section.

(j) Employee contributions to the fund shall continue during the DROP period. In the event the employee doe not terminate employment at the end of the DROP period, employee contributions to the fund shall continue until termination of employment.

(k) This subsection applies after August 29, 2008, to an employee who is not participating in the DROP on August 29, 2008. An employee who elects a DROP period and then chooses to remain in active service beyond the DROP period shall be treated at retirement and termination of

employment as if the member had never participated in DROP except that sick leave used to increase service will not be reinstated. The member's retirement benefit shall be calculated taking into consideration the member's entire period of service and final average salary during that service, but in any event the maximum annual retirement benefit shall not be more than seventy-five percent of final average salary.

(l) This subsection applies after August 29, 2008, to an employee who is participating in the DROP on August 29, 2008. An employee who has elected a DROP period and then chooses to remain in active service beyond that DROP period (1) shall have his or her DROP account frozen as of the end of the elected DROP period and (2) shall only accrue additional service credit for the service that occurs after the DROP period (using the final average salary as of the commencement of the DROP period), but in any event the maximum annual retirement benefit, net of any applicable post retirement adjustments, shall not be more than seventy-five percent of the final average salary as of the commencement of the DROP period. In the event that the employee has already earned the maximum annual retirement benefit at his or her DROP election date, no additional service credit shall accrue. An employee covered by this subsection (l) may elect to be covered by subsection (k) of this section (in lieu of this subsection (l)) upon the employee's termination of employment.

(Ord. No. 44-812 § 25; Ord. No. 47-451, § 9, 3-27-07; Ord. No. 47-965, § 2, 8-26-08)

Sec. 2.28.250. Re-employment.

If an employee under Plan No. 1 or Plan No. 2 terminates employment and later is re-employed by the city, the following provisions shall apply to such employee's re-entry into the retirement plans:

(a) An employee re-entering service prior to July 18, 1981 shall re-enter as a member in Plan No. 1.

(b) An employee re-entering service after July 17, 1981 and prior to January 1, 1994 shall re-enter as a member in Plan No. 2.

(c) An employee re-entering service after December 31,shall re-enter as a member of Plan No. 3.

(d) In the event the employee terminated employment, received a refund of contributions and was re-employed as a member of Plan No. 1, such employee may purchase credit for all or part of his or her prior service by paying into the fund an amount equal to the percentage of the amount refunded that the service credit being purchased bears to the prior service, plus seven percent annual interest, compounded monthly, from the date of refund to the date of purchase;

(e) In the event the employee terminated employment under Plan No. 1, received a refund of contributions and was re-employed as a member of Plan No. 2, such employee may purchase credit for all or part of his or her prior service by paying into the fund an amount equal to the percentage of the amount refunded that the service credit being purchased bears to the prior service, plus seven percent annual interest, compounded monthly, from the date of refund to the date of purchase; provided, however, such payment shall be prorated by applying the ratio that the current Plan No. 2 employee contribution bears to 6.4%.

(f) In the event the employee terminated employment under Plan No. 2 prior to January 1, 1994, received a refund of contributions and was re-employed as a member of Plan No. 2, such employee may purchase credit for all or part of his or her prior service by paying into the fund an amount equal to the percentage of the amount refunded that the service credit being purchased bears to the prior service, plus seven percent annual interest, compounded monthly, from the date of refund to the date of purchase; provided, however, that the amount of such pay-

ment for an employee purchasing prior Plan No. 2 service before January 1, 1994 shall be prorated by the ratio that the current percentage of employee contribution bears to 4.1%.

(g) In the event the employee terminated employment, received a refund of contributions and was re-employed as a member of Plan No. 3, such employee may purchase credit for all or part of his or her prior service by paying into the fund an amount equal to the percentage of the amount refunded that the service credit being purchased bears to the prior service, plus seven percent annual interest, compounded monthly, from the date of refund to the date of purchase; provided, however, the amount of such payment for an employee purchasing prior Plan No. 1 service shall be calculated in the manner described in subsection (e) above; and provided further that the amount of such payment for an employee purchasing prior Plan No. 2 service shall be prorated by the ratio that the current percentage of employee contributions bears to 4.1%. The ratio to be applied for prorating the amount of payment for the purchase of prior Plan No. 2 service after February 18, 2000 shall be the current percent of employee contribution divided by the percentage of employee contributions in effect for such prior service.

(h) In the event the employee terminated employment, received a refund of contributions, was re-employed as a member of Plan No. 3 and purchased prior service in accordance with (d), (e), (f), or (g) above, such employee would achieve vesting as indicated in Section 2.28.050 (b). If such employee purchased seven or more years of service, such employee must make a plan election in accordance with Section 2.28.060 (a).

(i) The maximum number of years of service credit which can be purchased is ten years.

(Ord. No. 45-127 § 4; Ord. No. 47-451, § 10, 3-27-07)

Sec. 2.28.260. Employees of joint department transferred to Sedgwick County.

(a) Employees transferred to Sedgwick County who are vested members of Plan No. 1 or Plan No. 2 at the time of the transfer, may make a one-time election to continue participation in said plan if the actuarially required employee and employer contributions are made to the fund during the period of employment with Sedgwick County. In the event said contributions cease or are less than actuarially required, participation in Plan No. 1 or Plan No. 2 shall also cease.

(b) A member of the Wichita Employees' Retirement System who elects to remain a member of Plan No. 1 or Plan No. 2 as provided in (a) above, shall not be an employee of Sedgwick County for the purposes of this chapter. Sedgwick County shall be the employer of an employee who elects to continue participation in the retirement system for the limited purposes of filing reports and remitting contributions to the retirement system as required under this chapter.

(c) Employees transferred to the City of Wichita who are vested members of KPERS at the time of transfer, may make a one-time election to continue participation in said plan if the actuarially required employee and employer contributions are made to KPERS during the period of employment with the city. In the event said contributions cease or are less than actuarially required, participation in KPERS shall also cease.

(d) A member of KPERS who elects to remain a member of KPERS as provided in (c) above, shall not be an employee of the city for the purposes of this ordinance. The city shall be the employer of an employee who elects to continue participation in KPERS for the limited purposes of filing reports and remitting contributions to KPERS as required under this chapter.

(Ord. No. 45-127 § 5)

Sec. 2.28.270. Qualified domestic relations orders.

As used in this section, the term "alternate payee" and "qualified domestic relations order" shall have the meaning ascribed to them in Sec-

tion 414(p) of the Internal Revenue Code of 1954, as amended. The city shall not be a party to any action under Article 10 of Chapter 60 of the Kansas Statutes Annotated but is subject to orders from such actions issued by the district court of the county where such action was filed and may also accept orders which it deems to be qualified under this section from courts having jurisdiction of such actions outside the State of Kansas. Orders from such actions shall specify either a specific amount or specific percentage of the amount of the benefit or any accumulated contributions due and owing from the fund and to be distributed to the alternate payee. The order must contain the following information:

(a) Name, address and social security number of the employee and alternate payee;

(b) Clearly identifies the appropriate Wichita retirement system and plan;

(c) Creates or recognizes the existence of an alternate payee's rights to, or assigns to an alternate payee the right to receive a portion of the benefits otherwise payable to the employee;

(d) The date of marriage and of divorce/separation;

(e) Statement that the benefit is payable at the time of retirement of the employee or at the time the employee terminates his or her employment if the employee withdraws his or her contributions from the fund;

(f) That the benefit is payable only during the lifetime of the retired employee or alternate payee should the alternate payee predecease the employee; and

(g) Payment to the alternate payee shall be a lump sum if payment to the employee is lump sum, monthly if payment to the employee is monthly;

(h) An employee who elects to participate in the DROP shall be treated as having retired for the purposes of a qualified domestic relations order.

The order to be qualified cannot allow the calculation of the lump sum payment or monthly benefit to be calculated in a manner which results in a payment or benefit in excess of the limits of the plan; cannot allow the alternate payee to be named as a surviving spouse or a survivor at the death of the retired employee; and cannot allow the alternate payee to name a beneficiary.
(Ord. No. 44-812 § 28)

Sec. 2.28.280. Assignments prohibited—Not subject to sale, execution, garnishment, or attachment.

Any assignment by an employee, retired employee or beneficiary of any allowance or benefit payable under this chapter shall be null and void. Each such allowance and benefit shall be for the support of the employee or beneficiary entitled thereto, and shall not be subject to sale, execution, garnishment or attachment, except such allowance or benefit or any accumulated contributions due and owing from the fund to any recipient are subject to claims of an alternate payee under a qualified domestic relations order.
(Ord. No. 44-812 § 29)

Sec. 2.28.290. Resolving questions of eligibility.

The retirement board is authorized to resolve any questions of eligibility under the provisions of this chapter.
(Ord. No. 44-812 § 30)

Sec. 2.28.300. Reservation of right to amend or repeal chapter-vested rights.

The city council expressly saves and reserves unto itself the power and authority to amend, modify, supplement, repeal or abolish this chapter, and the retirement system created and reestablished hereby, at any time. No person shall acquire any vested rights hereunder, save and except those persons whose right to retire by reason of age and length of service shall not have those rights reduced or abridged. Provided, however, that in the event of termination or partial termination of the retirement system created by this chapter, all affected participants' interest under the plan as of the date of such termination or partial termination shall be nonforfeitable to

the extent funded. And further, that no funds contributed to the retirement system created by this chapter, by either the participants or the city, shall revert to the city for use for other purposes unless and until all obligations under the retirement system have been fully and finally satisfied.
(Ord. No. 44-812 § 31)

Sec. 2.28.400. Compliance with Code Section 415 Limitations on Contributions and Benefits.

(a) *[Limitation.]* Notwithstanding any other provisions of the retirement system to the contrary, the member contributions paid to and retirement benefits paid from the plan shall be limited to such extent as may be necessary to conform to the requirements of Section 415 of the Internal Revenue Code for a qualified pension plan.

(b) *Participation in Other Qualified Plans: Aggregation of Limits.*

(1) The 415(b) limit with respect to any member who at any time has been a member in any other defined benefit plan as defined in Section 414(j) of the Internal Revenue Code maintained by the member's employer in this plan shall apply as if the total benefits payable under all such defined benefit plans in which the member has been a member were payable from one (1) plan.

(2) The 415(c) limit with respect to any member who at any time has been a member in any other defined contribution plan as defined in Section 414(i) of the Internal Revenue Code maintained by the member's employer in this plan shall apply as if the total annual additions under all such defined contributions plans in which the member has been a member were payable from one plan.

(c) *Basic 415(b) Limitation.*

(1) Before January 1, 1995, a member may not receive an annual benefit that exceeds the limits specified in Section 415(b) of the Internal Revenue Code, subject to the applicable adjustments in that section. On and after January 1, 1995, a member may not receive an annual benefit that exceeds the dollar amount specified in Section 415(b)(1)(A) of the Internal Revenue Code, subject to the applicable adjustments in Section 415(b) of the Internal Revenue Code and subject to any additional limits that may be specified in the retirement system. In no event shall a member's benefit payable under the plan in any limitation year be greater than the limit applicable at the annuity starting date, as increased in subsequent years pursuant to Section 415(d) of the Internal Revenue Code and the regulations thereunder.

(2) For purposes of Section 415(b) of the Internal Revenue Code, the "annual benefit" means a benefit payable annually in the form of a straight life annuity (with no ancillary benefits) without regard to the benefit attributable to after-tax employee contributions (except pursuant to Section 415(n) of the Internal Revenue Code) and to rollover contributions (as defined in Section 415(b)(2)(A) of the Internal Revenue Code). The "benefit attributable" shall be determined in accordance with Treasury Regulations.

(d) *Adjustments to Basic 415(b) Limitation for Form of Benefit.* If the benefit under the plan is other than the form specified in subsection (c)(2), then the benefit shall be adjusted so that it is the equivalent of the annual benefit, using factors prescribed in Treasury Regulations.

(1) If the form of benefit without regard to the automatic benefit increase feature is not a straight life annuity or a qualified joint and survivor annuity, then the preceding sentence is applied by either reducing the Section 415(b) of the Internal Revenue Code limit applicable at the annuity starting date or adjusting the form of benefit to an actuarially equivalent amount [determined using the assumptions specified in Treasury Regulation Section 1.415(b)—1(c)(2)(ii)] that takes into account the additional benefits under the form of benefit as follows:

(2) For a benefit paid in a form to which Section 417(e)(3) of the Internal Revenue Code does not apply [a monthly benefit], the actuarially equivalent straight life annuity benefit that is the greater of (or the reduced Limit applicable at the annuity starting date which is the "lesser of" when adjusted in accordance with the following assumptions):

(A) The annual amount of the straight life annuity (if any) payable to the member

under the plan commencing at the same annuity starting date as the form of benefit to the member, or

(B) The annual amount of the straight life annuity commencing at the same annuity starting date that has the same actuarial present value as the form of benefit payable to the member, computed using a five percent interest assumption (or the applicable statutory interest assumption) and (i) for years prior to January 1, 2009, the applicable mortality tables described in Treasury Regulation Section 1.417(e)-1(d)(2) (Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code); or

(3) For a benefit paid in a form to which Section 417(e)(3) of the Internal Revenue Code applies [a lump sum benefit], the actuarially equivalent straight life annuity benefit that is the greatest of (or the reduced Section 415(b) of the Internal Revenue Code limit applicable at the annuity starting which is the "least of" when adjusted in accordance with the following assumptions):

(A) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable, computed using the interest rate and mortality table, or tabular factor, specified in the plan for actuarial experience;

(B) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable, computed using a 5.5 percent interest assumption (or the applicable statutory interest assumption) and (i) for years prior to January 1, 2009, the applicable mortality table for the distribution under Treasury Regulation Section 1.417(e)-1(d)(2) (the mortality table specified in Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue Service guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code); or

(C) The annual amount of the straight life annuity commencing at the annuity starting date that has the same actuarial present value as the particular form of benefit payable (computed using the applicable interest rate for the distribution under Treasury Regulation Section 1.417(e)-1(d)(3) (the 30-year Treasury rate (prior to January 1, 2007, using the rate in effect for the month prior to retirement, and on and after January 1, 2007, using the rate in effect for the first day of the plan year with a one-year stabilization period)) and (i) for years prior to January 1, 2009. the applicable mortality rate for the distribution under Treasury Regulation Section 1.417(e)-1(d)(2) (the mortality table specified in Revenue Ruling 2001-62 or any subsequent Revenue Ruling modifying the applicable provisions of Revenue Ruling 2001-62), and (ii) for years after December 31, 2008, the applicable mortality tables described in Section 417(e)(3)(B) of the Internal Revenue Code (Notice 2008-85 or any subsequent Internal Revenue guidance implementing Section 417(e)(3)(B) of the Internal Revenue Code), divided by 1.05.

(e) *Benefits Not Taken into Account for 415(b) Limitation.* For purposes of this section, the following benefits shall not be taken into account in applying these limits:

(1) Any ancillary benefit which is not directly related to retirement income benefits;

(2) That portion of any joint and survivor annuity that constitutes a qualified joint and survivor annuity;

(3) Any other benefit not required under Section 415(b)(2) of the Internal Revenue Code and Treasury Regulations thereunder to be taken into account for purposes of the limitation of Section 415(b)(1) of the Internal Revenue Code.

(f) *Other Adjustments in 415(b) Limitation.*

(1) In the event that the member's retirement benefits become payable before age sixty-two (62), the limit prescribed by this section shall be reduced in accordance with Treasury Regulations pursuant to the provisions of Section 415(b) of the Internal Revenue Code, so that such limit (as so reduced) equals an annual straight life benefit (when such retirement income benefit begins) which is equivalent to a one hundred sixty thousand dollar ($160,000) (as adjusted) annual benefit beginning at age sixty-two (62).

(2) In the event the member's benefit is based on at least fifteen (15) years of service as a full-time employee of any police or fire department or on fifteen (15) years of military service, the adjustments provided in (1) above shall not apply.

(3) The reductions provided for in [subsection (f)] (1) above shall not be applicable to pre-retirement disability benefits or pre-retirement death benefits.

(g) *Less than Ten Years of Service Adjustment for [Section] 415(b) Limitations.* The maximum retirement benefits payable to any member who has completed less than ten (10) years of service shall be the amount determined under subsection (c) multiplied by a fraction, the numerator of which is the number of the member's years of service and the denominator of which is ten (10). The reduction provided by this subsection cannot reduce the maximum benefit below ten percent. The reduction provided for in this subsection shall not be applicable to pre-retirement disability benefits or pre-retirement death benefits.

(h) *Ten Thousand Dollar Limit.* Notwithstanding the foregoing, the retirement benefit payable with respect to a member shall be deemed not to exceed the [Section] 415[(b)] limit if the benefits payable, with respect to such member under this plan and under all other qualified defined benefit pension plans to which the member's employer contributes, do not exceed $10,000.00 for the applicable limitation year and for any prior limitation year and the employer has not at any time maintained a qualified defined contribution plan in which the member participated.

(i) *Effect of COLA without a Lump Sum Component on [Section] 415(b) Testing.* Effective on and after January 1, 2009, for purposes of applying the limits under Section 415(b) of the Internal Revenue Code ("the Limit") to a member with no lump sum benefit, the following will apply:

(1) A member's applicable Limit will be applied to the member's annual benefit in the member's first limitation year without regard to any cost of living adjustments under 2.28.160;

(2) To the extent that the member's annual benefit equals or exceeds the Limit, the member will no longer be eligible for cost of living increases until such time as the benefit plus the accumulated increases are less than the Limit; and

(3) Thereafter, in any subsequent limitation year, a member's annual benefit, including any cost of living increases under 2.28.160, shall be tested under the then applicable benefit Limit including any adjustment to the Section 415(b)(1)(A) of the Internal Revenue Code dollar limit under Section 415(d) of the Internal Revenue Code, and the regulations thereunder.

(j) *Effect of COLA with a Lump Sum Component on 415(b) Testing.* On and after January 1, 2009, with respect to a member who receives a portion of the member's annual benefit in a lump sum, a member's applicable Limit will be applied taking into consideration cost of living increases as required by Section 415(b) of the Internal Revenue Code and applicable Treasury Regulations.

(k) *Section 415(c) Limitations on Contributions and Other Additions.* After-tax member contributions or other annual additions with respect to a member may not exceed the lesser of $40,000.00 (as adjusted pursuant to Section 415(d) of the Internal Revenue Code) or 100% of the member's compensation.

(1) Annual additions are defined to mean the sum (for any year) of employer contributions to a defined contribution plan, member contributions, and forfeitures credited to a member's individual account. Member contributions are

determined without regard to rollover contributions and to picked-up employee contributions that are paid to a defined benefit plan.

(2) For purposes of applying Section 415(c) of the Internal Revenue Code and for no other purpose, the definition of compensation where applicable will be compensation actually paid or made available during a limitation year, except as noted below and as permitted by Treasury Regulation Section 1.415(c)-2, or successor regulation; provided, however, that member contributions picked up under Section 414(h) of the Internal Revenue Code shall not be treated as compensation.

(3) Compensation will be defined as wages within the meaning of Section 3401(a) of the Internal Revenue Code and all other payments of compensation to an employee by an employer for which the employer is required to furnish the employee a written statement under Sections 6041(d), 6051(a)(3) and 6052 of the Internal Revenue Code and will be determined without regard to any rules under Section 3401(a) of the Internal Revenue Code that limit the remuneration included in wages based on the nature or location of the employment or the services performed (such as the exception for agricultural labor in Section 3401(a)(2) of the Internal Revenue Code).

(A) However, for limitation years beginning after December 31, 1997, compensation will also include amounts that would otherwise be included in compensation but for an election under Section 125(a), 402(e)(3), 402(h)(1)(B), 402(k), or 457(b) of the Internal Revenue Code. For limitation years beginning after December 31, 2000, compensation shall also include any elective amounts that are not includible in the gross income of the member by reason of Section 132(f)(4) of the Internal Revenue Code.

(B) For limitation years beginning on and after January 1, 2009, compensation for the limitation year shall also include compensation paid by the later of 2½ months after a member's severance from employment or the end of the limitation year that includes the date of the member's severance from employment if:

(I) the payment is regular compensation for services during the member's regular working hours, or compensation for services outside the member's regular working hours (such as overtime or shift differential), commissions, bonuses or other similar payments, and, absent a severance from employment, the payments would have been paid to the member while the member continued in employment with the employer; or

(II) the payment is for unused accrued bona fide sick, vacation or other leave that the member would have been able to use if employment had continued; or

(III) payments pursuant to a nonqualified unfunded deferred compensation plan, but only if the payments would have been paid to the member at the same time if the member had continued employment with the employer and only to the extent that the payment is includible in the member's gross income.

Any payments not described in paragraph (B) above are not considered compensation if paid after severance from employment, even if they are paid within 2½ months following severance from employment, except for payments to the member who does not currently perform services for the employer by reason of qualified military service (within the meaning of Section 414(u)(1) of the Internal Revenue Code) to the extent these payments do not exceed the amounts the member would have received if the member had continued to perform services for the employer rather than entering qualified military service.

A member who is in qualified military service (within the meaning of Section 414(u)(1) of the Internal Revenue Code)

shall be treated as receiving compensation from the employer during such period of qualified military service equal to (i) the compensation the member would have received during such period if the member were not in qualified military service, determined based on the rate of pay the member would have received from the employer but for the absence during the period of qualified military service, or (ii) if the compensation the member would have received during such period was not reasonably certain, the member's average compensation from the employer during the 12-month period immediately preceding the qualified military service (or, if shorter, the period of employment immediately preceding the qualified military service).

(C) Back pay, within the meaning of Treasury Regulation Section 1.415(c)-2(g)(8), shall be treated as compensation for the limitation year to which the back pay relates to the extent the back pay represents wages and compensation that would otherwise be included under this definition.

(4) For limitation years beginning on or after January 1, 2009, a member's compensation for purposes of subsection (k) shall not exceed the annual limit under Section 401(a)(17) of the Internal Revenue Code.

(l) *Service Purchases under Section 415(n).* Effective for permissive service credit contributions made in limitation years beginning after December 31, 1997, if a member makes one or more contributions to purchase permissive service credit under the plan, then the requirements of Section 415(n) of the Internal Revenue Code will be treated as met only if:

(1) The requirements of Section 415(b) of the Internal Revenue Code are met, determined by treating the accrued benefit derived from all such contributions as an annual benefit for purposes of Section 415(b) of the Internal Revenue Code, or

(2) The requirements of Section 415(c) of the Internal Revenue Code are met, determined by treating all such contributions as annual additions for purposes of Section 415(c) of the Internal Revenue Code.

(3) For purposes of applying this section, the system will not fail to meet the reduced limit under Section 415(b)(2)(C) of the Internal Revenue Code solely by reason of this subparagraph and will not fail to meet the percentage limitation under Section 415(c)(1)(B) of the Internal Revenue Code solely by reason of this section.

(4) For purposes of this section the term "permissive service credit" means service credit:

(A) Recognized by the system for purposes of calculating a member's benefit under the system,

(B) Which such member has not received under the system, and

(C) Which such member may receive only by making a voluntary additional contribution, in an amount determined under the system, which does not exceed the amount necessary to fund the benefit attributable to such service credit.

Effective for permissive service credit contributions made in limitation years beginning after December 31, 1997, such term may include service credit for periods for which there is no performance of service, and, notwithstanding clause (B), may include service credited in order to provide an increased benefit for service credit which a member is receiving under the system.

(5) The system will fail to meet the requirements of this section if:

(A) More than five years of nonqualified service credit are taken into account for purposes of this subparagraph, or

(B) Any nonqualified service credit is taken into account under this paragraph before the member has at least five years of participation under the system.

(6) For purposes of paragraph (5), effective for permissive service credit contributions made in limitation years beginning after December 31,

1997, the term "nonqualified service credit" means permissive service credit other than that allowed with respect to:

(A) Service (including parental, medical, sabbatical, and similar leave) as an employee of the Government of the United States, any State or political subdivision thereof, or any agency or instrumentality of any of the foregoing (other than military service or service for credit which was obtained as a result of a repayment described in Section 415(k)(3) of the Internal Revenue Code),

(B) Service (including parental, medical, sabbatical, and similar leave) as an employee (other than as an employee described in clause (A)) of an education organization described in Section 170(b)(1)(A)(ii) of the Internal Revenue Code which is a public, private, or sectarian school which provides elementary or secondary education (through grade 12), or a comparable level of education, as determined under the applicable law of the jurisdiction in which the service was performed.

(C) Service as an employee of an association of employees who are described in clause (A), or

(D) Military service (other than qualified military service under Section 414(u) of the Internal Revenue Code) recognized by the system.

In the case of service described in clause (A), (B), or (C), such service will be nonqualified service if recognition of such service would cause a member to receive a retirement benefit for the same service under more than one plan.

(7) In the case of a trustee-to-trustee transfer after December 31, 2001, to which Section 403(b)(13)(A) of the Internal Revenue Code or Section 457(e)(17)(A) of the Internal Revenue Code applies (without regard to whether the transfer is made between plans maintained by the same employer):

(A) The limitations of paragraph (5) will not apply in determining whether the transfer is for the purchase of permissive service credit, and

(B) The distribution rules applicable under federal law to the system will apply to such amounts and any benefits attributable to such amounts.

(8) For an eligible member, the limitation of Section 415(c)(1) of the Internal Revenue Code shall not be applied to reduce the amount of permissive service credit which may be purchased to an amount less than the amount which was allowed to be purchased under the terms of a Plan as in effect on August 5, 1997. For purposes of this paragraph an eligible member is an individual who first became a member in the system before January 1, 1998.

(m) *Modification of Contributions for 415(c) and 415(n) Purposes.* Notwithstanding any other provision of law to the contrary, the system may modify a request by a member to make a contribution to the system if the amount of the contribution would exceed the limits provided in Section 415 of the Internal Revenue Code by using the following methods:

(1) If the law requires a lump sum payment for the purchase of service credit, the system may establish a periodic payment plan for the member to avoid a contribution in excess of the limits under Section 415(c) or 415(n) of the Internal Revenue Code.

(2) If payment pursuant to subparagraph (1) will not avoid a contribution in excess of the limits imposed by Section 415(c) or 415(n) of the Internal Revenue Code, the system may either reduce the member's contribution to an amount within the limits of those sections or refuse the member's contribution.

(n) *Repayments of Cashouts.* Any repayment of contributions (including interest thereon) to the plan with respect to an amount previously refunded upon a forfeiture of service credit under the plan or another governmental plan maintained by the retirement system shall not be taken into account for purposes of Section 415 of the Internal Revenue Code, in accordance with applicable Treasury Regulations.

(o) *Reduction of Benefits Priority.* Reduction of benefits and/or contributions to all plans, where required, shall be accomplished by first reducing the member's benefit under any defined benefit plans in which the member participated, such reduction to be made first

with respect to the plan in which the member most recently accrued benefits and thereafter in such priority as shall be determined by the plan and the plan administrator of such other plans, and next, by reducing or allocating excess forfeitures for defined contribution plans in which the member participated, such reduction to be made first with respect to the plan in which the member most recently accrued benefits and thereafter in such priority as shall be established by the plan and the plan administrator for such other plans provided, however, that necessary reductions may be made in a different manner and priority pursuant to the agreement of the plan and the plan administrator of all other plans covering such member.
(Ord. No. 45-162 § 5; Ord. No. 48-344, § 6, 6-16-09; Ord. No. 48-918, § 2, 12-21-2010)

Sec. 2.28.410. Direct rollovers of defined contribution plan distributions.

(a) Except as otherwise indicated herein, this section shall apply to rollovers made after December 31, 2001.

(b) For purposes of compliance with Section 401(a)(31) of the Internal Revenue Code, this section applies notwithstanding any contrary provision or retirement law that would otherwise limit a distributee's election to make a rollover. A distributee may elect, at the time and in the manner prescribed by the Board, to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

(1) *"Eligible rollover distribution"* means any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include: any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or the life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more; any distribution to the extent such distribution is required under Section 401(a)(9) of the Internal Revenue Code; the portion of any distribution that is not includible in gross income; and any other distribution that is reasonably expected to total less than $200 during the year. Effective January 1, 2002, a portion of the distribution will not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions that are not includible in gross income. However, such portion may be transferred only (i) to an individual retirement account or annuity described in Section 408(a) or (b) of the Internal Revenue Code or to a qualified defined contribution plan described in Section 401(a) of the Internal Revenue Code; (ii) on or after January 1, 2007, to a qualified defined benefit plan described in Section 401(a) of the Internal Revenue Code or to an annuity contract described in Section 403(b) of the Internal Revenue Code, that agrees to separately account for amounts so transferred (and earnings thereon), including separately accounting for the portion of the distribution that is includible in gross income and the portion of the distribution that is not so includible; or (iii) on or after January 1, 2008, to a Roth IRA described in Section 408A of the Internal Revenue Code. Effective January 1, 2002, the definition of eligible rollover distribution also includes a distribution to a surviving spouse, or to a spouse or former spouse who is an alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Internal Revenue Code.

(2) *"Eligible retirement plan"* means any of the following that accepts the distributee's eligible rollover distribution:

(A) An individual retirement account described in Section 408(a) of the Internal Revenue Code;

(B) An individual retirement annuity described in Section 408(b) of the Internal Revenue Code;

(C) An annuity plan described in Section 403(a) of the Internal Revenue Code;

(D) A qualified trust described in Section 401(a) of the Internal Revenue Code;

(E) Effective January 1, 2002, an annuity contract described in Section 403(b) of the Internal Revenue Code;

(F) Effective January 1, 2002, a plan eligible under Section 457(b) of the Internal Revenue Code that is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or a

political subdivision of a state that agrees to separately account for amounts transferred into that plan from the retirement system; or

(G) Effective January 1, 2008, a Roth IRA described in Section 408A of the Internal Revenue Code.

(3) *"Distributee"* means an employee or former employee. It also includes the employee's or former employee's surviving spouse and the employee's or former employee's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Internal Revenue Code. Effective January 1, 2007, a distributee further includes a nonspouse beneficiary who is a designated beneficiary as defined by Section 401(a)(9)(E) of the Internal Revenue Code. However, a nonspouse beneficiary may rollover the distribution only to an individual retirement account or individual retirement annuity established for the purpose of receiving the distribution, and the account or annuity will be treated as an "inherited" individual retirement account or annuity.

(4) *"Direct Rollover"* means a payment by the plan to the eligible retirement plan specified by the distributee.

(c) Rollover contributions and/or direct rollovers of distributions made after December 31, 2001, will be accepted for the purchase of prior or future service credit or for vested Plan 3 participant accounts from the types of plans specified.

(d) The plan will accept a direct rollover of an eligible rollover distribution from:

(1) A qualified plan described in Section 401(a) or 403(a) of the Internal Revenue Code, including after-tax employee contributions.

(2) An annuity contract described in Section 403(b) of the Internal Revenue Code, excluding after-tax employee contributions.

(3) An eligible plan under Section 457(b) of the Internal Revenue Code which is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or political subdivision of a state.

(e) The plan will accept a participant contribution of an eligible rollover distribution from:

(1) A qualified plan described in Section 401(a) or 403(a) of the Internal Revenue Code.

(2) An annuity contract described in Section 403(b) of the Internal Revenue Code.

(3) An eligible plan under Section 457(b) of the Internal Revenue Code which is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or political subdivision of a state.

(f) The plan will accept a participant rollover contribution of the portion of a distribution from an individual retirement account or annuity described in Section 408(a) or 408(b) of the Internal Revenue Code that is eligible to be rolled over and would otherwise be includible in gross income.
(Ord. No. 45-162 § 3; Ord. No. 48-344, § 4, 6-16-09)

Sec. 2.28.420. Reserved.

Editor's note—Ord. No. 48-344, § 5, adopted June 16, 2009, repealed § 2.28.420 in its entirety. Formerly, said section pertained to Defined benefit plan limit and derived from Ord. No. 45-162, § 4.

Sec. 2.28.430. Direct rollovers of defined benefit plan distributions.

(a) Except as otherwise indicated herein, this section shall apply to rollovers made after December 31, 2001.

(b) For purposes of compliance with Section 401(a)(31) of the Internal Revenue Code, this section applies notwithstanding any contrary provision or retirement law that would otherwise limit a distributee's election to make a rollover. A distributee may elect, at the time and in the manner prescribed by the Board, to have any portion of an eligible rollover distribution paid directly to an eligible retirement plan specified by the distributee in a direct rollover.

(1) *"Eligible rollover distribution"* means any distribution of all or any portion of the balance to the credit of the distributee, except than an eligible rollover distribution does not include: any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or the life expectancy) of the distributee or the

joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more; any distribution to the extent such distribution is required under Section 401(a)(9) of the Internal Revenue Code; the portion of any distribution that is not includible in gross income; and any other distribution that is reasonably expected to total less than $200 during the year. Effective January 1, 2002, a portion of a distribution will not fail to be an eligible rollover distribution merely because the portion consists of after-tax employee contributions that are not includible in gross income. However, such portion may be transferred only (i) to an individual retirement account or annuity described in Section 408(a) or (b) of the Internal Revenue Code or to a qualified defined contribution plan described in Section 401(a) of the Internal Revenue Code; (ii) on or after January 1, 2007, to a qualified defined benefit plan described in Section 401(a) of the Internal Revenue Code or to an annuity contract described in Section 403(b) of the Internal Revenue Code, that agrees to separately account for amounts so transferred (and earnings thereon), including separately accounting for the portion of the distribution that is includible in gross income and the portion of the distribution that is not so includible; or (iii) on or after January 1, 2008, to a Roth IRA described in Section 408A of the Internal Revenue Code. Effective January 1, 2002, the definition of eligible rollover distribution also includes a distribution to a surviving spouse, or to a spouse or former spouse who is an alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Internal Revenue Code.

(2) *"Eligible retirement plan"* means any of the following that accepts the distributee's eligible rollover distribution:

(A) An individual retirement account described in Section 408(a) of the Internal Revenue Code;

(B) An individual retirement annuity described in Section 408(b) of Internal Revenue Code;

(C) An annuity plan described in Section 403(a) of the Internal Revenue Code;

(D) A qualified trust described in Section 401(a) of the Internal Revenue Code;

(E) Effective January 1, 2002, an annuity contract described in Section 403(b) of the Internal Revenue Code;

(F) Effective January 1, 2002, a plan eligible under Section 457(b) of the Internal Revenue Code that is maintained by a state, political subdivision of a state, or any agency or instrumentality of a state or a political subdivision of a state that agrees to separately account for amounts transferred into that plan from the retirement system; or

(G) Effective January 1, 2008, a Roth IRA described in Section 408A of the Internal Revenue Code.

(3) *"Distributee"* means an employee or former employee. It also includes the employee's or former employee's surviving spouse and the employee's or former employee's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Section 414(p) of the Internal Revenue Code. Effective January 1, 2007, a distributee further includes a nonspouse beneficiary who is a designated beneficiary as defined by Section 401(a)(9)(E) of the Internal Revenue Code. However, a nonspouse beneficiary may rollover the distribution only to an individual retirement account or individual retirement annuity established for the purpose of receiving the distribution, and the account or annuity will be treated as an "inherited" individual retirement account or annuity.

(4) *"Direct Rollover"* means a payment by the plan to the eligible retirement plan specified by the distributee.

(c) Rollover contributions and/or direct rollovers of distributions made after December 31, 2001, will be accepted for the purchase of prior or future service credit only from the types of plans specified.

(d) The plan will accept a direct rollover of an eligible rollover distribution from:

(1) A qualified plan described in Section 401(a) or 403(a) of the Internal Revenue Code.

(2) An annuity contract described in Section 403(b) of the Internal Revenue Code.

(3) An eligible plan under Section 457(b) of the Internal Revenue Code which is maintained by a state, political subdivision of a state, or an agency or instrumentality of a state or political subdivision of a state.

(e) The plan will accept a participant contribution of an eligible rollover distribution from:

(1) A qualified plan described in Section 401(a) or 403(a) of the Internal Revenue Code.

(2) An annuity contract described in Section 403(b) of the Internal Revenue Code.

(3) An eligible plan under Section 457(b) of the Internal Revenue Code which is maintained by a state, political subdivision of a state; or an agency or instrumentality of a state or political subdivision of a state.

(f) The plan will accept a participant rollover contribution of the portion of a distribution from an individual retirement account or annuity described in Section 408(a) or 408 (b) of the Internal Revenue Code that is eligible to be rolled over and would otherwise be includible in gross income.

(Ord. No. 45-162 § 5; Ord. No. 48-344, § 6, 6-16-09)

CHAPTER 2.30. VOLUNTARY DEFERRED COMPENSATION PLAN

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Sec. 2.30.010. Purpose of the plan.

The purposes set forth in this chapter are to enable the City of Wichita to attract to and retain in its employ persons of competence, and to establish the Deferred Compensation Trust hereinafter referred to as the "plan" as provided in Section 457 of the Internal Revenue Code, as amended for all City of Wichita employees who desire to participate herein in accordance with the provisions set forth in this chapter.
(Ord. No. 43-665 § 1)

Sec. 2.30.020. Definitions.

Wherever used in this chapter, unless the context clearly indicates otherwise, the following terms shall have the meanings set forth below:

a. "Administrator" means the management board created by Section 2.30.030.

b. "Beneficiary" means the person or entities designated by a participant, pursuant to Section 2.30.140, to receive benefits under this plan.

c. "Code" means the Internal Revenue Code of 1986, as amended, or any future United States internal revenue law. References herein to specific section numbers shall also be deemed to refer to Treasury Regulations thereunder and to corresponding provision of any future United States revenue law.

d. "Compensation" means all payments made to an employee by the employer as remuneration for services rendered, including salaries and fees.

e. "Deferred compensation" means the amount of compensation not yet earned which the participant and the employer mutually agree will be deferred.

f. "Eligible participant" means Teamster represented transit employees of the City of Wichita who execute a participation agreement assenting to the provisions of this plan.

g. "Employee" means any employee (including an elected or appointed official) who performs services for and receives any type of compensation from the employer for whom services are rendered.

h. "Employer" means the City of Wichita, State of Kansas.

i. "Includible compensation" means compensation for services performed for the employer including compensation excludible from the participant's gross income under Section 457 of the Code as a result of deferrals under the plan established by the employer, or another eligible deferred compensation plan described in Section 457(b) of the Code maintained by the employer, or under Sections 401(k), 125, 132(f)(4), 403(b), SEP, or 414(h)(2) of the Code.

j. "Normal retirement age" means:

1. The age designated by the participant between (i) the earliest age at which the participant has the right to retire under the employer's basic retirement plan without the employer's consent and to receive immediate retirement benefits

without actuarial or similar reduction because of early retirement, and (ii) age seventy-two, or

2. The age at which the participant terminates service with the employer; provided, however, that a participant's election to defer amounts in excess of the maximum deferral allowed but within the limited catch-up permitted by Section 457 of the Code shall constitute a designation of an age pursuant to this section; and provided further, that if a participant does not designate an age pursuant to this section, such participant shall be deemed to have designated the age specified in subsection (j)(1)(i) of this section.

k. "Participant" means any employee who executes a participation agreement assenting to the provisions of the deferred compensation plan, once the participant agreement has been approved by the administrator.

l. "Participation agreement" means the agreement executed and filed by an employee with the employer pursuant to Section 2.30.050, in which the employee elects to become a participant in the deferred compensation plan.

m. "Plan year" means the calendar year.

n. "Total amount deferred" means, with respect to each participant, the sum of all compensation deferred under the deferred compensation plan, plus income or loss thereon, calculated in accordance with Section 2.30.070 by the methods designated in the participant's participation agreement(s) under which such compensation was deferred and in any subsequent election(s) to change methods, less the amount of any expenses or distributions.

o. "Trust" means the trust created under Section 2.30.060 which shall consist of all deferred compensation under the plan, plus any gains and income thereon, less any losses, fees, expenses paid by the trust, and distributions to participants or beneficiaries.

p. "Trustee" means the management board created by Section 2.30.030 or such other person, persons or entities selected by the management board who agrees to act as trustee hereunder. This term also refers to the person holding the assets of any custodial account or holding any annuity contract described in Section 2.30.130.

q. "Unforeseeable emergency" means severe financial hardship to a participant resulting from a sudden and unexpected illness or accident of the participant or of a dependent (as defined in Section 152(a) of the Code) of the participant, loss of the participant's property due to casualty, or other similar extraordinary and unforeseeable circumstances arising as a result of events beyond the control of the participant. The need to send a participant's child to college or the desire to purchase a new home shall not constitute an unforeseeable emergency. The administrator (or recordkeeper, if the function is delegated to the recordkeeper) shall determine in its sole discretion whether a hardship to a participant constitutes an unforeseeable emergency.

(Ord. No. 43-665 § 3; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.030. Management board.

The management board shall consist of the pension manager of the City of Wichita, one member appointed by the city manager of the City of Wichita which member shall have investment experience, one member elected from their number by the retired participants in the plan, and three members elected from among their number by the current active employees participating in the plan.

(Ord. No. 43-665 § 5)

Sec. 2.30.040. Administration.

This plan shall be administered by the management board. Subject to any applicable laws and

any approvals required by the employer, the management board shall have full power and authority to adopt rules and regulations for the administration of the plan; to interpret, alter, amend or revoke any rules and regulations so adopted; to approve investment options available to the participants, including the option to participate in directed brokerage arrangements; to retain a third party administrator and/or recordkeeper for plan administration; and to recommend changes to the plan and code to the city council.
(Ord. No. 43-665 § 7; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.050. Participation.

Each employee electing to participate in this plan shall become a participant hereunder upon executing a participation agreement, provided that no compensation may be deferred for any calendar month unless an agreement providing for such deferral has been entered into before the beginning of such month. Each participation agreement shall be in such form as administrator shall from time to time prescribe, and shall set forth, by amount, the total compensation of participant to be deferred in accordance with the terms of this plan, the desired effective date thereof (subject to requirements of the Internal Revenue Code and regulations and applicable terms of the plan) and such other information as the administrator shall from time to time deem advisable or necessary in order to effectuate the purposes of this plan.

Employer agrees, and hereby orders, that out of participant's biweekly compensation, the sum as set forth in the effective participation agreement for each individual participant per pay period shall be credited and paid into a deferred compensation account. The balance of the compensation shall be paid to participant in equal proportionate amounts each pay period. The amount of deferred compensation may be changed by a new agreement at any time as long as the participation agreement is signed prior to the beginning of the month in which the affected compensation is earned. The amount so deferred will be in accordance with Section 457 of the Code.

Participants opting to invest through any self-directed brokerage option available as an investment option under the plan will be responsible for entering into and complying with the direct agreements and arrangements required by the self-directed brokerage provider for such purposes. Further, by the act of participating in a self-directed brokerage investment option, the participant authorizes the establishment and funding of accounts with the self-directed brokerage provider and the performance by the employer and administrator of all obligations and instructions provided for under their own agreements with the self-directed brokerage provider as a condition of making the self-directed brokerage option available to plan participants.

Except as may be provided for in the separate plan document and adoption agreement approved by the City Council, with respect to deferral of post-severance compensation, an employee shall cease to make deferrals under this plan as of the date of termination of his employment, and the participant may request distribution of his account at any time thereafter. Participants may also request in-service distributions as allowed by the terms of the plan document. As soon as administratively practicable following the participant's formal request, the participant's benefits hereunder shall be distributed to the participant or participant's beneficiaries in accordance with the provisions of Section 2.30.100 hereof.

Prior to termination of employment, a participant may terminate additional deferrals pursuant to the applicable terms of the plan. In the event a participant so terminates future deferrals hereunder while continuing participant's employment, the total amount deferred shall continue to be administered in accordance with the terms of this plan and the benefits attributable thereto shall only be distributed at such time and in such manner as is specified in Section 2.30.100 hereof.
(Ord. No. 43-665 § 9; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.060. Deferred compensation trust.

Employer shall establish a trust to be called "City of Wichita Employees Deferred Compensa-

tion Trust" to provide a convenient method of setting aside a portion of employees' compensation to meet the obligations under the plan. All amounts of deferred compensation under the trust, all property and rights purchased with such amounts, and all income attributable to such amounts, property or rights shall be for the exclusive benefit of participants and beneficiaries. The participant and participant's beneficiary shall have only the right to receive the benefits payable under the plan. The provisions of this section shall supersede and control any other provisions of this agreement which could be interpreted to be in conflict herewith.
(Ord. No. 43-665 § 11; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.070. Participant's account.

Administrator, in coordination with any designated recordkeeper, shall maintain a deferred compensation account for each participant to which it shall credit the deferred compensation of the participant. The participant's deferred compensation account shall be credited with earnings thereon, if any, and shall be credited or debited, as the case may be, with the net amount of any gains or losses which may result from the investment of all or any portion of the amount in participant's deferred compensation account. The employer shall not be liable for any losses or any investment credited to any deferred compensation account.
(Ord. No. 43-665 § 13; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.080. Investment of trust assets.

The administrator shall have the sole authority to select the investment options available to participants for the investment of assets in the deferred compensation trust. Investments may be made available by the administrator in but not limited to insurance, annuities, all investments eligible under any city or state employee retirement programs and in such other investment sources as is permitted by applicable state law, including any self-directed brokerage option permitted by the plan.

The net interest, accumulations and increments resulting from the investments shall be credited to and held in the appropriate accounts for the benefit of participants until distribution as hereinafter specified.
(Ord. No. 43-665 § 15; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.090. Quarterly statement of accounts and fees.

As of the last day of each calendar quarter, this plan shall be in effect, and as of the day of termination of participant's employment, administrator, in coordination with any designated recordkeeper, shall cause to be prepared a statement of each participant's account showing the total amount deferred on the valuation date after deducting reasonable expenses therefrom. Reasonable expenses shall include, but not necessarily be limited to, accounting, legal, commissions, consulting and management fees. The only cost to be borne by the employer is that of payroll deduction. However, members of the management board are to receive no salary. The employer shall not be responsible for any loss due to the investment or failure of investment of funds and assets in the deferred compensation account, nor shall employer be required to replace any loss whatsoever which may result from the investment.
(Ord. No. 43-665 § 17; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.100. Employment termination.

For the purpose of the plan, participant's employment with employer is deemed to be terminated on the day after the last day the participant is on the employer's payroll when any of the following events occur:

a. Cessation of employment of participant (by resignation or otherwise) for the convenience of either participant, employer, or both;

b. Retirement of participant pursuant to the provisions of any plan for retirement by which employees of the employer may terminate their employment with the employer to a status commonly referred

to as "retired"; (employer's present employee benefits permit retirement for length of service or length of service and age or for physical disability);

c. Death of participant while an employee.
(Ord. No. 43-665 § 19)

Sec. 2.30.101. Participant selection of payment option of deferred benefits.

Each active or inactive participant in the employer's voluntary deferred compensation plan may select an option by which the amount deferred will be paid to the participant or to the participant's beneficiary(ies) upon or after termination of participant's employment with employer by notifying the administrator and any designated recordkeeper of the selection of payment options available to participants under the provisions of the plan, and subject to the provisions of Section 2.30.100 for employment termination, deferred compensation payments shall be made in accordance with the option selected by a participant. All such selections shall only become effective upon receipt by the administrator.

A participant may request a trustee-to-trustee transfer of assets to a governmental defined benefit plan for the purchase of permissible service credit (as defined in Internal Revenue Code section 415(n)(3)(A)) under such plan or a repayment to which Internal Revenue Code section 415 does not apply by reason of subsection (k)(3) thereof. Such participant may be an employee as defined in Section 2.30.020.
(Ord. No. 45-161 § 1; Ord. No. 43-665 § 21; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.110. Qualified domestic relations orders.

(a) As used in this section, the term "alternate payee" and "qualified domestic relations order" shall have the meaning ascribed to them in Section 414(p) of the United States Internal Revenue Code of 1954, as amended. The City of Wichita shall not be a party to any action under Article 10 of Chapter 60 of the Kansas Statutes Annotated but effective for all transfers, payments and distributions made after December 31, 2001, is subject to orders from such actions issued by the district court of the county where such action was filed and may also accept orders which it deems to be qualified under this section from courts having jurisdiction of such actions outside the State of Kansas. Orders from such actions shall specify either a specific amount or specific percentage of the total of the participant's account balance to be distributed to the alternate payee.

(b) The order must contain the following information:

(1) Name, address and Social Security number of the employee and alternate payee;

(2) Clearly identifies the plan;

(3) Creates or recognizes the existence of an alternate payee's rights to, or assigns to an alternate payee the right to receive a portion of the account balance otherwise payable to the employee;

(4) The date of marriage and of divorce/separation;

(5) Payment to an alternate payee may be made upon acceptance of the order;

(6) The alternate payee shall be responsible for any taxes payable on the portion of the account balance received.
(Ord. No. 45-161 § 2; Ord. No. 43-665 § 23)

Sec. 2.30.120. Financial hardships.

In the event of an unforeseeable emergency as defined in Section 2.30.020(p) of this chapter, a participant may request that the administrator, in coordination with any designated recordkeeper, pay to the participant all or a portion of such participant's total amount deferred to the date of payment. If the application for payment is approved by the administrator or recordkeeper, payment will be made within thirty days following such approval. Payment shall be limited strictly to that amount reasonably necessary to meet the situation constituting the unforeseeable emergency, and payments may not be made to the extent that a hardship is or may be relieved through reimbursement or compensa-

tion by insurance or otherwise, by liquidation of the participant's assets (to the extent such liquidation does not itself cause severe financial hardship), or by cessation of deferrals under the plan.
(Ord. No. 43-665 § 25; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.130. Exclusive benefit.

All amounts of deferred compensation under the plan, all property and rights purchased with such amounts, and all income attributable to such amounts, property or rights shall be for the exclusive benefit of participants and beneficiaries:

a. In trust, pursuant to Section 2.30.060 of the Code of the City of Wichita;

b. In one or more custodial accounts described in Section 401(f) of the Code, pursuant to a separate written agreement between the administrator and such custodian, and/or

c. In one or more annuity contracts described in Section 401(f) of the Code.

For purposes of the Code and the plan adopted by the employer, the person holding the assets of any such custodial account or holding any such annuity contract shall be treated as the trustee thereof.
(Ord. No. 43-665 § 27)

Sec. 2.30.140. Designation of beneficiaries.

Each participant, by filing notice in writing with administrator or any designated recordkeeper, shall have the right to designate such beneficiary or beneficiaries who, if alive, shall receive any unpaid benefits hereunder in the event of a participant's death. Any such designation or designations may be revoked or changed from time to time by notice in writing filed by participant with administrator or designated recordkeeper. In the absence of any such designation, or the revocation of all prior designations without a new designation, or if any designated beneficiary or beneficiaries shall predecease participant, any such unpaid benefits at the death of participant shall be paid to participant's surviving spouse, or if none, to participant's estate. Such notice of beneficiary designation shall be in such form and contain such terms as administrator, in coordination with any designated recordkeeper, shall from time to time prescribe.
(Ord. No. 43-665 § 29; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.150. Nonalienation of interest.

Except for plan loans approved pursuant to the Loan Policy maintained by the administrator, no right or benefit of any participant or of such participant's beneficiary under this plan shall be subject to anticipation, alienation, assignment, sale, pledge, encumbrance or charge, and any attempt to otherwise anticipate, alienate, assign, sell, pledge, encumber or charge the same shall have no force or effect. If any participant or beneficiary shall violate the terms of this section, or shall become bankrupt, then such participant's or beneficiary's rights and benefits hereunder shall, in the sole and absolute discretion of administrator, cease and terminate, and in such event administrator shall hold or apply an amount equal to the then-value of such rights and benefits, or any part thereof, for the benefit of participant or such participant's beneficiary(ies), spouse, children or other dependents, or any of them, in such manner and in such amounts as city shall direct.
(Ord. No. 43-665 § 31; Ord. No. 49-017, § 1, 6-7-11; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.160. Employment rights.

The adoption and maintenance of this plan shall not, in and of itself, be deemed to constitute or be evidence of a contract of employment between any participant and employer. Nothing herein shall be deemed to give to any participant the right to be retained in the employ of employer or to interfere with the right of employer to discharge any participant at any time, subject only to the terms of such employment agreements as may otherwise exist between participant and employer. Conversely, nothing herein shall be deemed to give employer the right to require any participant to remain in its employ or to interfere with participant's right to terminate employment at any time.
(Ord. No. 43-665 § 33; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.170. Amendments or termination of plan.

Employer shall have the right to alter or amend this plan at any time or times, to any extent and in any manner it shall deem advisable or appropriate in order to incorporate changes made to the Internal Revenue Code or other applicable law, or to the basic plan document and/or adoption agreement, by action of the City Council in an open, public meeting.

The employer is not, nor shall be, under any obligation or liability to maintain this plan for any given length of time, and shall, in its sole and absolute discretion, have the right to terminate this plan at any time without liability whatsoever therefore. This plan shall terminate as to all participants if employer shall deliver to each participant a notice of termination specifying the date as of which such termination shall be effective. Upon such termination of this plan, the employer shall determine the then-value of the total amount deferred in the account of each participant which, notwithstanding any provision hereof to the contrary, shall, to the extent permitted by law, be paid to such participant or such participant's beneficiary(ies) in accordance with the provisions of the plan.

Notwithstanding anything herein to the contrary, no such amendment or determination shall deprive any participant or such participant's beneficiary(ies) of the right to receive benefits equal to the value of the total amount deferred in the participant's account adjusted to the effective date of such amendment or termination.
(Ord. No. 45-161 § 3; Ord. No. 43-665 § 35; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.180. Construction.

This plan and the interests created hereunder shall be construed, administered, regulated and governed in all respects under and by the laws of the State of Kansas.
(Ord. No. 34-138 (part); Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.190. Binding effect.

This plan shall inure to the benefit of, and shall be binding upon, employer, each participant and such participant's beneficiary or beneficiaries, and their respective legal representatives, successors and assigns.
(Ord. No. 43-665 § 37; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.200. Employer participation.

The employer, at it's sole discretion, may add to the amounts payable to any eligible participant, as defined in Section 2.30.020(f), additional compensation for services to be rendered by the eligible participant to the employer during a biweekly pay period, provided:

a. The eligible participant has elected to have such additional compensation deferred, invested, and distributed pursuant to the plan, prior to the beginning of the month in which the compensation is earned, and

b. Such additional compensation deferred, when added to all other compensation deferred under the plan, does not exceed the maximum deferral permitted by the Code.

(Ord. No. 43-665 § 39; Ord. No. 51-875, § 1, 6-21-22)

Sec. 2.30.210. Unconstitutionality.

Should any section, part or provision hereof be declared by the courts to be invalid or unconstitutional, such decision shall not affect the validity of the ordinance as a whole or any part thereof other than the part so declared to be unconstitutional.
(Ord. No. 34-138 (part))

CHAPTER 2.32. POLICEMEN'S AND FIREMEN'S PENSION FUND

(Chapter 2.32 repealed by Charter Ordinance No. 5.)

CHAPTER 2.36. FIREMEN'S RELIEF ASSOCIATION

Sec. 2.36.010. Composition generally.
Sec. 2.36.020. Officers—Terms—Bond—Supervisory committee.
Sec. 2.36.030. Maintenance of records and accounts.
Sec. 2.36.040. Organization; adoption of by-laws, rules and regulations.

Sec. 2.36.010. Composition generally.

The Wichita Firemen's Relief Association shall be composed of the regularly appointed members of the city fire department.
(Ord. No. 23-351 § 1)

Sec. 2.36.020. Officers—Terms—Bond—Supervisory committee.

The officers of the Firemen's Relief Association shall be as follows:

(a) A president, vice president and assistant secretary-treasurer, each of whom shall serve for one year and until his successor has been elected and installed in office; a secretary-treasurer, who shall serve for three years and until his successor has been elected and installed in office; two directors, each of whom shall serve a two-year term and to be elected alternately each year. The president, vice president, secretary-treasurer and two directors, shall constitute the board of directors of the association. The secretary-treasurer and the assistant secretary-treasurer of the Firemen's Relief Association shall furnish a ten thousand dollar bond to the association and the city of Wichita to secure his faithful performance herein.

(b) A supervisory committee which shall be composed of the chief of the fire department, the city manager or his duly designated representative and one member of the fire department, who shall be elected for a term of three years, by the members of the Firemen's Relief Association.

(c) The supervisory committee shall have powers and duties as prescribed in the constitution and by-laws of the association, which shall include the consideration and approval or disapproval of all recommendations for benefit to any member of the fire department or his dependents, and of all proposed expenditures by the association.

(Ord. No. 28-754 § 1; prior Ord. No. 26-931 § 1)

Sec. 2.36.030. Maintenance of records and accounts.

The officers of the Firemen's Relief Association shall cause to be maintained:

(a) Records of claims and accounts to regularly show approval by board of directors and supervisory committee;

(b) Separate bank account for Firemen's Relief Association funds;

(c) An annual audit of accounts by a certified public accountant employed by Firemen's Relief Association;

(d) An annual examination of records by treasurer of the Firemen's Relief Association and the city financial advisor;

(e) Provision for two counter-signatures on all expenditures from bank accounts.

(Ord. No. 23-351 § 1)

Sec. 2.36.040. Organization; adoption of by-laws, rules and regulations.

It shall be the duty of the Firemen's Relief Association to organize in such a manner, and to adopt such constitution and bylaws and rules and regulations not in conflict with this chapter, and not in conflict with the laws of the State of Kansas as, in their judgment, they deem advisable in carrying out the purpose of General Statutes 1949, Sections 40-1701 to 40-1707, as amended.
(Ord. No. 23-351 § 1)

CHAPTER 2.40. FEDERAL SOCIAL SECURITY

Sec. 2.40.010. Authority to make deductions.
Sec. 2.40.020. Retroactive contribution—Generally.
Sec. 2.40.030. Same—Repayment.
Sec. 2.40.040. Rules and regulations.

Sec. 2.40.010. Authority to make deductions.

From and after the effective date of coverage into the Federal Social Security System of the employees of the city, the board of park commissioners of the city and the Wichita library board, the city treasurer, and the treasurers of such two boards, are hereby authorized and directed to deduct, withhold and pay over to the authorized state agency all contributions required by Federal Social Security to be so deducted, withheld and paid over as to all persons in covered employment with the city and the two abovementioned boards.
(Ord. No. 18-583 § 1)

Sec. 2.40.020. Retroactive contribution—Generally.

As to the retroactive contributions for the period from January 1, 1951, to the effective date of the agreement providing for Federal Social Security coverage, the city treasurer and the treasurers of the board of park commissioners and the Wichita library board are authorized and directed to deduct, withhold and pay over to the Wichita Employees' Retirement Fund such additional sums as may be necessary to repay and refund to the Wichita Employees' Retirement Fund the contribution advanced by such fund together with reasonable interest at a rate of not to exceed three percent per annum.
(Ord. No. 18-583 § 2)

Sec. 2.40.030. Same—Repayment.

The Wichita Employees' Retirement Board*, shall prepare a schedule of deductions required to repay it for advances made and shall, wherever practicable, allow a period of two years for repayment; provided, however, that where the employee shall not have been covered by the Wichita Employees' Retirement System previous to January 1, 1953, such repayment time shall be one year; provided further, that in case of any resignation, termination of employment or death of any employee whose retroactive social security contribution shall not then have been repaid to the Wichita Employees' Retirement Fund, the city treasurer and the treasurers of the two boards are authorized and directed to deduct, withhold and pay over to the Wichita Employees' Retirement Fund the full then existing balance due such fund regardless of the amount.
(Ord. No. 18-583 § 3)

*__Cross reference—__Wichita Employees' Retirement Board, see § 2-55 of this volume.

Sec. 2.40.040. Rules and regulations.

The Wichita Employees' Retirement Board is hereby authorized to make reasonable rules and regulations to implement this chapter and to file a copy of such rules and regulations with the city clerk.
(Ord. No. 18-583 § 4)

CHAPTER 2.44. RESERVE POLICE FORCE

Sec. 2.44.010. Reserve police force—Creation and appointment.
Sec. 2.44.020. Same—Service on voluntary basis without compensation.
Sec. 2.44.030. Same—Control by chief of police—Powers and duties.
Sec. 2.44.040. Same—Rules and regulations.

Sec. 2.44.010. Reserve police force—Creation and appointment.

There is hereby created within the police department a reserve police force, the members of which shall be appointed by the city manager upon recommendation of the chief of police.
(Ord. No. 23-993 § 1)

Sec. 2.44.020. Same—Service on voluntary basis without compensation.

Members of the reserve police force shall serve on a voluntary basis without pay and within the corporate limits of the City of Wichita.
(Ord. No. 23-993 § 2)

Sec. 2.44.030. Same—Control by chief of police—Powers and duties.

The chief of police shall be the commanding officer of the reserve police force and shall have control of the assignment, training, stationing and direction in work of the members thereof. Members of the reserve police force shall have all police powers, but shall perform only such duties as are assigned by the chief of police.
(Ord. No. 23-993 § 3)

Sec. 2.44.040. Same—Rules and regulations.

The chief of police shall, with the approval of the city manager, prescribe rules and regulations for the conduct and control of the reserve police force.
(Ord. No. 23-993 § 4)

CHAPTER 2.56. CAMPAIGN CONTRIBUTION AND EXPENDITURE REPORTS

Sec. 2.56.010. Campaign finance reporting.
Sec. 2.56.020. Reports required when.
Sec. 2.56.030. Contribution limited per campaign.
Sec. 2.56.040. Duties of city clerk.
Sec. 2.56.050. Violations—Penalty.

Sec. 2.56.010. Campaign finance reporting.

All candidates for nomination or election to the city council shall comply with all requirements of the campaign finance act of the State of Kansas, K.S.A. 25-4142 et seq., as amended, and the provisions of this chapter. Where the provisions of this chapter are more restrictive than the provisions of the state statute, the more restrictive provision shall apply for purposes of enforcement under the city code.
(Ord. No. 41-496 § 1)

Sec. 2.56.020. Reports required when.

Each candidate for nomination or election to the city council, required to file any report under the provisions of the Campaign Finance Act, K.S.A. 25-4142 et seq., as amended, shall file an additional copy of such report with the city clerk within twenty-four hours of the time specified for filing the report by the Campaign Finance Act. For any contribution accepted by a candidate for nomination or election to the city council from a limited liability company or corporation as defined by state law, such report shall also include the name of a principal owner of the limited liability company or corporation responsible for making the contribution.
(Ord. No. 41-496 § 2; Ord. No. 52-355, § 1, 3-19-24)

Sec. 2.56.030. Contribution limited per campaign.

(a) The aggregate amount contributed to a candidate for nomination or election to the city council and to his or her candidate committee and to all political committees and dedicated to a particular candidate's campaign by any person shall not exceed five hundred dollars for each primary election and an equal amount for each general election.

(b) It is unlawful for any person to intentionally make any contribution in violation of the provisions set forth in subsection (a). Upon conviction, such person shall be punished with a fine not to exceed two thousand five hundred dollars and imprisonment not to exceed one year of confinement.

(c) It is unlawful for any person to intentionally accept any contribution in violation of the provisions set forth in subsection (a). Upon conviction, such person shall be punished with a fine not to exceed two thousand five hundred dollars and imprisonment not to exceed one year of confinement.
(Ord. No. 44-852 § 1; Ord. No. 50-119, § 1, 12-8-15; Ord. No. 52-355, § 2, 3-19-24)

Sec. 2.56.040. Duties of city clerk.

The city clerk shall:

(1) Furnish to any person all appropriate city election ordinances affecting candidates, together with a narrative explanation thereof;

(2) Make such reports and statements available for public inspection during regular office hours.

(Ord. No. 41-496 § 4)

Sec. 2.56.050. Violations—Penalty.

Violations of any of the provisions of this chapter shall constitute a misdemeanor, and any violation thereof shall be punished by a fine not to exceed two thousand five hundred dollars and imprisonment not to exceed one year of confinement.
(Ord. No. 41-496 § 5; Ord. No. 52-355, § 3, 3-19-24)

CHAPTER 2.61. DISTRICT ADVISORY BOARDS

Sec. 2.61.010. Created.
Sec. 2.61.020. District advisory boards—Composition, selection and terms.
Sec. 2.61.030. District advisory boards—Purpose, functions and responsibilities.
Sec. 2.61.040. Meetings and procedures.
Sec. 2.61.050. Chairperson, officers, sub-committees.
Sec. 2.61.060. Administrative and legal services.
Sec. 2.61.070. Policies for boards.

Sec. 2.61.010. Created.

There are created and established six district advisory boards, one for each city council district, effective as of January 3, 2000.
(Ord. No. 44-459 § 1)

Sec. 2.61.020. District advisory boards—Composition, selection and terms.

Each district advisory board shall be comprised of eleven members who shall serve a term of one year, which term may be renewed by the appropriate district city council member. In any event, the term shall end when the term of office ends for the respective district city council member. The selection of members to serve on each district advisory board and the filling of vacancies shall be determined by the individual city council members for the respective city council districts, which process may be reviewed by the city council within the first year after the date of adoption of the ordinance codified in this section. A person appointed for service as a district advisory board member may serve as a member of one other board or commission of the city at the same time. The composition of each district advisory board should reflect the demographics of the citizens in each city council district, including geography, gender, ethnic and racial diversity, neighborhood, business, and community interests. Appointments to the district advisory boards shall be submitted by the city council member of each district to the city council for affirmation of the appointments.
(Ord. No. 44-634 § 1)

Sec. 2.61.030. District advisory boards—Purpose, functions and responsibilities.

Each district advisory board shall generally provide the district city council member and the city council advice and recommendations regarding matters of public policy, citizen engagement and problems or issues specific to the district served. The functions of each district advisory board shall include, but not be limited to:

(a) Review and advise the district city council member on capital improvements and planning issues;

(b) Review and make recommendations on local traffic concerns;

(c) Formulate programs within the district to encourage and strengthen citizen involvement to foster effective relationships with local government on behalf of individuals, community groups, neighborhoods and businesses within the district;

(d) Serve as an informational exchange and make recommendations to the district city council member and the metropolitan area planning commission regarding zoning and land use matters;

(e) Establish and implement an effective method to disseminate and communicate information of interest to residents of the district served;

(f) Advise the district city council member regarding appointments to city advisory boards and commissions;

(g) Create ad hoc committees, taskforces and study groups that advise and report only to the district advisory board which created the same, regarding district area concerns or problems;

(h) Work closely with neighborhood organizations, homeowners associations and community-based groups to overcome obstacles to citizen actions and involvement with neighborhoods and community;

(i) Serve, in close cooperation and coordination with district council member and city staff, as an informal ombudsman for the

district and as liaisons for public access to the city governing body on issues of importance to the community;

(j) Serve as a vehicle for citizen involvement, education and input; a forum for citizens to provide comments and direction to address issues of concern for the district served and the community.

(Ord. No. 44-666 § 1)

Sec. 2.61.040. Meetings and procedures.

Each district advisory board shall establish a regular meeting schedule at locations convenient to the public. District advisory board meetings shall be held a minimum of one meeting per month. Meetings may be called by the District council member or by members of the district advisory board in addition to the regularly scheduled meetings. Rules of procedure shall be determined by administrative policy drafted by the city manager and approved by the city council.

(Ord. No. 44-459 § 4)

Sec. 2.61.050. Chairperson, officers, sub-committees.

The district city council member shall serve as the chairperson of the district advisory board. The district city council member shall appoint a pro tem chairperson to serve in the absence of the district city council member. Other officers, subcommittees and procedures shall be determined by the administrative policy authorized by Section 2.61.040.

(Ord. No. 44-459 § 5)

Sec. 2.61.060. Administrative and legal services.

Administrative services shall be provided to the district advisory boards by city staff appointed and assigned by the city manager or a person designated by the city manager to supervise and coordinate the district advisory boards and neighborhood services. Staff shall be assigned as deemed necessary to provide services to district advisory boards and such other duties as may be assigned by the city manager. All staff members shall be city employees. Legal services shall be provided by the department of law.

(Ord. No. 44-459 § 6)

Sec. 2.61.070. Policies for boards.

The provisions of Sections 2.12.010, 2.12.020, 2.12.040 and 2.12.050, providing policies for boards and commissions, shall apply to the district advisory boards, unless otherwise provided by this Chapter 2.61.

(Ord. No. 44-459 § 7)

CHAPTER 2.62. DEFENSE OF SUITS BROUGHT AGAINST CITY OFFICERS OR EMPLOYEES

Sec. 2.62.100. Findings—Permanent fund established.
Sec. 2.62.110. Definitions.
Sec. 2.62.120. City officers' and employees' liability protection fund.
Sec. 2.62.130. City shall provide legal assistance in defense of suits.
Sec. 2.62.140. Payment of judgments rendered against officers or employees.
Sec. 2.62.150. Notice to city of suit against officer or employee.

Sec. 2.62.100. Findings—Permanent fund established.

Whereas, the Legislature of the State of Kansas has passed the necessary enactments to allow cities and other governmental subdivisions of the state to pay for the expense of defense of public officers and employees when the same are sued for nonfeasance, misfeasance and malfeasance of duties, or to purchase insurance for such protection; and has provided the cities may expend public funds to pay certain judgments rendered against their officers and employees, or to purchase insurance for such protection; the governing body of the city determines it advisable to establish a permanent fund for the payment of such costs in lieu of paying for the same out of the general operating fund.
(Ord. No. 35-356 (part))

Sec. 2.62.110. Definitions.

Unless otherwise expressly stated or the context clearly indicates a different intention, the following terms shall, for the purpose of this chapter, have the meanings indicated in this section:

(a) "City" means the City of Wichita, Kansas, and includes all boards, commissions and authorities appointed by the city commission.

(b) "City-county jointly funded agencies" means all agencies operated jointly by the City of Wichita and Sedgwick County, Kansas, including the metropolitan area planning department, the sanitary landfill operation, the health department, the communications department, flood control, and animal control for rabies.

(c) "Employee" or "officer" means any person regularly elected or appointed and receiving compensation from the city, or one of its appointed boards, commissions or authorities, whether funding for such compensation is derived from the city or the city and county acting jointly, and whose activities are under the direct supervision of the city or the city and county acting jointly, and members of the city commission and advisory boards, either elected or appointed by the city commission, even though such advisory board members receive no compensation, except such employees or officers who are covered by an insurance policy provided by the city which covers the acts protected by this chapter.

(d) "Wrongful act" includes false arrest, erroneous service of papers, false imprisonment, malicious prosecution, assault and battery, libel, slander, defamation of character, personal injury, property damage, violation of property rights or deprivation of any rights, privileges or immunities secured by the Constitution and laws of the United States of America, or the State of Kansas or the ordinances of the City of Wichita, or any error or misstatement or act of omission or neglect or breach of duty by any officer or employee in their official capacity or any matter claimed against an officer or employee solely by reason of his or her having served or acted in one or more of the capacities as an officer or employee, for which said officer or employee may be held liable to another party injured in an action at law, suit in equity, or other proper proceeding for redress. However, no act shall be deemed to be a wrongful act unless committed in the regular course of duty by the officer or employee.

(Ord. No. 35-356 (part))

Sec. 2.62.120. City officers' and employees' liability protection fund.

There is created a fund designated as the "city officers' and employees' liability protection fund."

The fund shall consist of moneys budgeted by the board of city commissioners from sources permitted pursuant to K.S.A. 75-4358 as amended or as otherwise permissible by law. Said fund shall provide for the payment of expenses except attorney fees, and may provide for the payment of judgements for officers and employees of the city pursuant to the provisions of this chapter. Said fund may also provide for the payment of the city's share of any judgment to be paid for any city-county employee pursuant to the provisions of this chapter.
(Ord. No. 35-356 (part))

Sec. 2.62.130. City shall provide legal assistance in defense of suits.

In the event any officer or employee of the city shall be sued for damages for any alleged wrongful act, or in the event any former officer or employee of the city shall be sued for any alleged wrongful act occurring while holding such office or while so employed, the city shall provide the necessary legal counsel and the fund heretofore established shall pay the other necessary expenses for the defense of the action. Legal counsel shall be provided by the department of law of the city. The same legal assistance will be provided employees of city-county jointly funded agencies if the employee elects to be represented by the city attorney's office.
(Ord. No. 35-356 (part))

Sec. 2.62.140. Payment of judgments rendered against officers or employees.

(a) The city may, as determined by the board of city commissioners, pay any judgment obtained against any officer or employee or any former officer or employee of the city for a wrongful act committed within the scope and in the performance of the duties of his or her office or employment; provided, however, the city shall not pay for any such judgment if the wrongful act was committed wilfully, wantonly and maliciously. Payment of judgements, when authorized by the city commission, shall be made from the city officers' and employees' liability protection fund, or, if that fund is insufficient, such judgments shall be paid from whatever source permitted by law.

(b) The city and county may, as determined by the board of city commissioners and the board of county commissioners, pay any judgment obtained against any officer or employee or any former officer or employee of a city-county jointly funded agency for a wrongful act committed within the scope and in the performance of the duties of his or her office or employment; provided, however, the city and county shall not pay for any such judgment if the wrongful act was committed wilfully, wantonly and maliciously. Payment of judgments, when authorized by the city and county commissions, shall be made from funds heretofore established by each of the commissions acting individually. Such payment, when made, shall be shared in the same proportion as the budget for the particular city-county jointly funded agency is shared by the city and county.
(Ord. No. 35-356 (part))

Sec. 2.62.150. Notice to city of suit against officer or employee.

The city shall not provide for the defense of any officer or employee or former officer or employee in the manner heretofore provided unless notified in writing of such action by the plaintiff or the officer or employee involved within fifteen days after the commencement of the action. Such notice shall be filed with the city commission, who shall, on the next regular working day, notify the city attorney and, if necessary, the county commission.
(Ord. No. 35-356 (part))

CHAPTER 2.64. PURCHASING POLICY

Sec. 2.64.010. Purchasing manager's duties and authority to contract.
Sec. 2.64.020. Public bidding required.
Sec. 2.64.030. Exemption of vendors.
Sec. 2.64.040. Pre-qualification of vendors.

Sec. 2.64.010. Purchasing manager's duties and authority to contract.

The city purchasing manager shall purchase all supplies, equipment and materials for the city and every department thereof, and shall keep a true and accurate account of all purchases so made. Further, the purchasing manager shall have the authority to enter into contracts and agreements for supplies, services, materials and equipment where the contract sum does not exceed $50,000.00. The purchasing manager shall have the additional authority to enter into contracts and agreements as shall be specifically granted by the governing body.
(Ord. No. 45-690 § 1; Ord. No. 35-856 § 1; Ord. No. 49-816, § 3, 8-26-14)

Sec. 2.64.020. Public bidding required.

The City Purchasing Manager shall advertise for bids in the official City newspaper for all purchases which exceed the sum of $50,000.00. The $50,000.00 bidding limitation shall apply to all except the following purchases which may be negotiated by the City Purchasing Manager:

(a) *Emergencies.* Sanitary or storm sewer stoppages or breaks, water line breaks, gas line breaks, street repairs resulting from such stoppages or breaks, and other emergencies as designated and approved by the City Manager;

(b) *Sole Source of Supply.* When materials, supplies or services to be purchased are available from only one person, firm, original manufacturer or local franchised dealer. This includes major equipment repairs or other existing equipment where parts are only available from the original manufacturer or local franchised dealer;

(c) *Public Exigency.* In those instances when public exigency will not permit the delay incident to advertising as determined and approval by the City Manager;

(d) *No Bids Received.* In those instances when no bids have been received after formal advertising, the Purchasing Manager is authorized to negotiate those purchases subject to ratification and approval by the governing body;

(e) *Price Established by Law.* The Purchasing Manager is authorized to enter into contracts for materials, supplies or services where the prices are established by law;

(f) *Resale Items.* The Purchasing Manager is authorized to negotiate purchases for materials, supplies or services for resale to the public;

(g) *High Technology Items.* The Purchasing Manager is authorized to negotiate purchases of high technology items subject to ratification and approval by the governing body;

(h) *Insurance.* The Purchasing Manager is authorized to negotiate the purchase of all insurance coverages subject to ratification and approval by the governing body;

(i) *Service Agreements for Major Equipment.* The Purchasing Manager is authorized to negotiate service agreements for major equipment maintenance with the manufacturer or an authorized service agency;

(j) *Intergovernmental Cooperative Contracts and Agreements.* The Purchasing Manager is authorized to purchase supplies, services and equipment from contracts and agreements of other governmental entities which have been awarded, subject to public bidding and approved by the proper governmental entities' authority;

(k) *Security Matters.* The Purchasing Manager is authorized to enter into contracts for materials, supplies or

services related to the security of city-owned facilities, city personnel, city-owned property or the general public;

(l) *Kansas State Use Catalog.* The Purchasing Manager is authorized to purchase supplies, services and equipment from the Kansas State Use Catalog and will determine when products meet City requirements, are comparable in quality, and are offered at a fair and reasonable price;

(m) *Extensions from Competitive Bids.* The Purchasing Manager is authorized to purchase additional construction services at agreed unit cost prices using unexpended funds from within the appropriate departmental budget, to the extent that such unit pricing was previously established by competitive bidding. Such extensions may be done either during or a reasonable time after the administration of the contract establishing the applicable unit cost prices, and in either case, shall be considered new contracts and not change orders; and

(n) The Purchasing Manager is authorized to approve contracts for design services for residential subdivision projects if such projects are financed through use of public bonds and the contracting process has followed procedures and been subject to City staff oversight as described in administrative regulation.

(Ord. No. 45-690 § 2; Ord. No. 38-122; Ord. No. 35-856 § 2; Ord. No. 49-679, § 1, 7-22-2014; Ord. No. 49-816, § 4, 8-26-14; Ord. No. 51-938, § 1, 9-13-22)

Sec. 2.64.030. Exemption of vendors.

Any vendor submitting a bid to the city who is a "sole source of supply," as determined by the city purchasing manager, may be exempted from compliance with the procedural requirements of any ordinance or rules of any board of the city pertaining to the filing of statements, plans or reports concerning such vendor's work force. For the purpose of this ordinance, "sole source of supply" shall mean:

(a) Any vendor who is the only seller of goods or services available to the city; or

(b) A vendor selling a product or service which is necessary for the well being of the city and which, if purchased elsewhere, would be economically impractical. This exception shall not be applicable to the use of federal funds, and further this exception to procedural requirements is not in any way intended to be a waiver of any federal, state or local rules or laws prohibiting discrimination.

(Ord. No. 35-856 § 3)

Sec. 2.64.040. Pre-qualification of vendors.

For any or all projects, the purchasing manager may implement a requirement for pre-bid qualification of bidders, setting standards that bidders must meet and maintain to be eligible to bid on City public improvement projects. In lieu of adopting an independent pre-bid qualification policy, the purchasing manager may utilize the pre-bid qualification standards and list of pre-qualified bidders used by any federal or state of Kansas agency or any other Kansas municipality. If a pre-bid qualification requirement is established, then the City shall not accept bids from bidders who do not meet the pre-bid qualification standards designated in the bid documents. (Ord. No. 49-816, § 5, 8-26-14)

CHAPTER 2.74. EMPLOYEE BENEFIT CONTRIBUTION FUND

Sec. 2.74.010. Established.

Sec. 2.74.010. Established.

(a) The City of Wichita, Kansas, in accordance with the provisions of K.S.A. 12-16, 102, establishes an employee benefit contribution fund for the purpose of paying the city's share of employee benefits prescribed by subsection (b) of this section.

(b) The city's share of the cost of employee benefits authorized for payment from the fund created in this chapter shall include the following:

(1) Social security (FICA);

(2) Employees' retirement system;

(3) Police and fire pension;

(4) Workers' compensation;

(5) Unemployment claims.

(Ord. No. 40-006 § 1)

CHAPTER 2.76. OPEN PUBLIC RECORDS

Sec. 2.76.010. Title.
Sec. 2.76.020. Policy and purpose.
Sec. 2.76.030. Appointment of Local FOI Officer; duties.
Sec. 2.76.040. Official records custodians by department, appointment and duties.
Sec. 2.76.050. Public request for access.
Sec. 2.76.060. Requests for records; general procedures.
Sec. 2.76.070. Procedures for inspection of public records.
Sec. 2.76.080. Procedures for copying public records.
Sec. 2.76.090. Audio, video, photographic and other similar records—Procedures for access.
Sec. 2.76.100. Audio, video or photographic records—Law enforcement—Procedure for access.
Sec. 2.76.110. Delay notice.
Sec. 2.76.120. Denial of requests.
Sec. 2.76.130. Payment of fees.
Sec. 2.76.140. Exceptions.

Sec. 2.76.010. Title.

The title of this Chapter shall be "Open Public Records."
(Ord. No. 51-620, § 1, 8-17-21)

Sec. 2.76.020. Policy and purpose.

(a) It is hereby declared to be the policy of the City that all public records which are made, maintained or kept by or are in the possession of the City, its officers and employees, shall be open for public inspection as provided by and subject to the restrictions imposed by the Kansas Open Records Act, K.S.A. 45-215 et seq., and any amendments thereto.

(b) The provisions of the Kansas Open Records Act, K.S.A. 45-215 et seq., and any amendments thereto, shall be liberally construed and applied to promote this policy with the presumption that producing records be the rule rather than the exception.

(c) It is the purpose of this Chapter:

(1) To adopt procedures to be followed in requesting access to and obtaining copies of public records;

(2) To adopt procedures to be followed by City staff in responding to requests for providing full access to and copies of public records and to set out general duties and procedures to assist City officials and employees in observing the letter and spirit of the KORA and the City's policy as set forth in this Section;

(3) To protect public records from damage, disorganization or distortion; and

(4) To prevent excessive disruption of the City's essential functions.

(d) All definitions, exclusions, and other provisions of the Kansas Open Records Act (hereinafter "KORA"), as set forth in K.S.A. 45-215 et seq., and any amendments thereto, are by reference incorporated in and by this publication made part of this Chapter as though set out in full herein.
(Ord. No. 51-620, § 2, 8-17-21)

Sec. 2.76.030. Appointment of Local FOI Officer; duties.

(a) The City Council of the City of Wichita hereby appoints the City Clerk as the Local Freedom of Information Officer (LFIO).

(b) The City Clerk, or designee, as the LFIO, shall be responsible for the following duties:

(1) Prepare and provide educational materials and information regarding the KORA.

(2) Assist City employees and the public in resolving open records disputes.

(3) Respond to inquiries regarding open records matters.

(4) Prepare a brochure and other information about the KORA, the rights of requesters, responsibilities of the City, and procedures for inspecting and obtaining copies of public records.

(5) Display, distribute or otherwise make available, the brochure in the City Council office and all other City departments where it is available to members of the public who request public information in person, and have the brochure available online.

(6) Coordinate open records requests received by the City Clerk.

(7) Ensure that City employees are aware of the requirements of the KORA and their responsibilities pursuant to the KORA and the City Code.

(8) Be available to departmental personnel and requesters for consultation where the application of the law may be unclear and a ruling is necessary. The LFIO will consult with the Department of Law for legal review of records to be produced under the KORA and may consult with the City Manager's Office prior to making a final determination.

(Ord. No. 51-620, § 3, 8-17-21)

Sec. 2.76.040. Official records custodians by department, appointment and duties.

(a) All Department Directors are appointed as official record custodians for public records not on file in the office of the City Clerk that are kept and maintained within their respective departments.

(b) Each of the official custodians appointed in Subsection (a) of this section may designate any subordinate officers or employees to serve as record custodians. Whenever an official custodian appoints another person as a record custodian, the official custodian shall notify the City Clerk in writing of such designation and the City Clerk shall maintain a list of all such designations. It shall be the responsibility of the Department Directors to ensure that designated record custodians are kept up to date with any personnel or staffing changes.

(c) Duties of custodians. All department heads and employees appointed or designated under this section shall be responsible for the following duties and will consult with the LFIO and/or Law Department when questions arise under any of these responsibilities:

(1) Being knowledgeable of the provisions of the KORA and its application within their area of supervision.

(2) Knowing the types of public records maintained within the custodian's supervision and whether those records are open or exempted by the KORA.

(3) Being the point of contact for public requests for access to records and providing timely assistance and information upon request.

(4) Prominently displaying or making available to the public the brochure prescribed by the LFIO that contains basic information about the rights of a requester, responsibilities of a public agency, and the procedures for inspection or obtaining a copy of public records under the KORA.

(5) Assuring that the response to a request does not result in damage or disorganization to records under the custodian's supervision or does not cause excessive disruption of the department's essential functions, and advising the LFIO and Department of Law if it is determined that response to the request may cause such problems.

(6) Assuring that records are not removed from the department premises without written authorization from the record custodian.

(7) Coordinating a response to the request in a timely manner and consulting with the Department of Law when needed.

(Ord. No. 51-620, § 4, 8-17-21)

Sec. 2.76.050. Public request for access.

(a) All City offices keeping and maintaining open public records shall provide the public with the following information upon request:

(1) The local open records brochure.

(2) Regular office hours and any additional times in which inspection and copying of public records will be allowed.

(3) The title and location of the record custodians (City Clerk/LFIO, and designees) and departmental custodians.

The City Clerk/LFIO will provide each department with a list of records custodians.

(4) The fee schedule for access and copies.

(5) Procedures to be followed in requesting inspection or copying of records.

(Ord. No. 51-620, § 5, 8-17-21)

Sec. 2.76.060. Requests for records; general procedures.

Any person requesting access to an open public record shall abide by, and each records custodian shall apply the following general procedures:

(a) Consistent with the policy, duties and procedures established by the KORA, the City's official and appointed record custodians shall provide full access and assistance in a timely and efficient manner to persons who request access to open public records.

(b) Record custodians shall adopt and apply procedures which will ensure the protection and preservation of public records with respect to the manner in which such records are inspected and copied.

(c) Record custodians shall take necessary measures, not inconsistent with their duties, to ensure that the essential functions of the custodian's office, department or agency are not disrupted by requests for record inspection and copying.

(d) All persons requesting inspection of or a copy of open public records must make such request in writing, except as otherwise provided in this Chapter, and include their name, address and a reasonable description of the record document(s) they desire to inspect and copy. Although no particular form is required, the official custodian shall provide a City form for the requestor's convenience. No written request shall be required for requests made for records which have been reproduced for free public distribution.

(e) A written request shall be sufficient if it reasonably describes the record sought. In instances where the requester cannot provide sufficient information to identify a record, the custodian shall assist in making such identification, if possible.

(f) All record inspection and copying requests are to be submitted by the person requesting the record. The official or record custodian may demand reasonable identification of any person requesting a record.

(g) Hours for making requests in person for inspection and/or copying shall be all regular working hours for each day the office maintains regular working office hours.

(h) All record custodians are hereby authorized to impose fees for access to public records as set forth in Chapter 2.77 of this Code, and amendments thereto.

(i) Each request for access to open public records shall be responded to as soon as possible, but no later than the end of the third business day following the date that the request was received. If a response is not provided within three working days and must be delayed, the records custodian shall proceed as set forth within Section 2.76.110, and amendments thereto.

(j) The record custodian will allow access to an open public record only in the area of City Hall or other building in which the record is kept.

(k) The above procedure, as well as any other inspection and copying procedures shall be available in the office of the official custodian.

(Ord. No. 51-620, § 6, 8-17-21)

Sec. 2.76.070. Procedures for inspection of public records.

(a) Each department should handle requests for "inspection only" of records. Such requests shall be made in accordance with the provisions set forth in Section 2.76.060, and amendments thereto.

(b) All inspections of open public records shall be performed by, or under the supervision of, the record custodian responsible for such records. Under no circumstances will a public record be removed from such premises for public inspection. If the record custodian is unable to provide inspection access to the public record at the time of the request, the custodian may schedule the inspection for a time certain no later than the end of the third business day following the request.

(c) For requests where the record custodian believes that a specific record may be exempted from disclosure under the provisions of the KORA, the record custodian shall inform the requester that the record must be reviewed to determine if it is exempt from disclosure and that a response will be made to the requestor no later than the end of the third business day following the request. During that time period, the custodian shall contact the Law Department and obtain a legal opinion pertaining to the disclosure of such record. If the record is exempt from disclosure under the provisions of the KORA, the custodian, with direction from the Law Department, shall deny inspection thereof. If the record is determined to be an open public record, the custodian will contact the requestor no later than the end of the third business day following the request and schedule an inspection for a time certain.

(d) Where a request has been made for inspection of any open public record which is readily available to the record custodian, there will be no inspection fee charged to the requester. If the request for inspection requires search or retrieval of records, the requester should be notified of the estimated costs as set forth in Section 2.77.070 of this Code and amendment thereto, and that no work will be undertaken until there is payment of such estimated costs.
(Ord. No. 51-620, § 7, 8-17-21)

Sec. 2.76.080. Procedures for copying public records.

(a) Each department should handle all requests for copying records in accordance with the provisions set forth in Section 2.76.070, and amendments thereto.

(b) All copying of open public records shall be performed by, or under the supervision of, the record custodian responsible for such records.

(c) The requester should be notified of the estimated costs as set forth in Section 2.77.070 of this Code and amendments thereto, and that no work will be undertaken until there is payment of such estimated costs. When staff time needed to respond to a request will exceed five (5) hours or the estimated actual cost for staff time needed to fill the request exceeds two hundred dollars ($200), staff shall make reasonable efforts to contact the requester and engage in interactive communication about mitigating costs to fill the request. The requester is not obligated to mitigate costs. As used in this subsection, "reasonable efforts to contact the requester" means contacting the requester through the means of communication provided to the agency by the requester.

(d) If staff has made a reasonable effort to contact the requester and the requester has failed to respond by the end of the third business day, the records request will be deemed to be withdrawn until a subsequent contact has been made by the requester to the City of Wichita.

(e) In cases where a request for copies of a specific record or records requires search or retrieval of records, the requester should be notified of the estimated costs as set forth in Section 2.77.070 of this Code and amendment thereto, and that no work will be undertaken until there is payment of such estimated costs. Once records are located and/or retrieved, additional fees may be assessed for review of such records in order to determine whether the records, or any portion thereof, are open and copies may be provided. Costs may include the cost to review and redact the requested records but shall not include incidental costs incurred that are not attributable to furnishing the requested records. No copy fees shall be assessed when multiple copies of the record requested have been prepared for free public distribution or when the record custodian determines that the cost of charging and handling the fee exceeds the cost of providing a copy without charge.

(f) In cases where the records requested are available online, the record custodian shall so inform the requester and provide information on where the records may be accessed in lieu of making paper copies thereof. However, if the requester continues to request paper copies of the records, the record custodian shall provide paper copies after collecting the appropriate copy fees.

(g) Mechanical reproduction of a record shall not be undertaken when it is the judgement of the records custodian that any available means of mechanically reproducing the subject record is likely to cause damage to such record.

(h) Removal of open public records from the office where kept and maintained for purposes of making copies shall be permitted only with the written permission of the official department custodian. It shall be unlawful for any person to fail to return records that have been removed from any City department or facility at the time and place where such return has been promised. Upon conviction for a violation of this subsection, a person may be fined up to five hundred ($500) dollars, be sentenced to three (3) days in jail, or be both so fined and imprisoned.

(i) Record custodians are encouraged to provide copies of records electronically if possible, and to the extent allowed by law.
(Ord. No. 51-620, § 8, 8-17-21; Ord. No. 52-747, § 1, 6-17-25)

Sec. 2.76.090. Audio, video, photographic and other similar records—Procedures for access.

(a) Pursuant to the provisions of K.S.A. 45-219(a), and amendments thereto, a record custodian is not required to provide copies of videotapes or films, photographs, radio or recording tapes or discs, slides, graphics, illustrations or similar audio or visual items or devices unless such items or devices were shown or played at a public meeting of the City Council. This provision shall not apply to video, photos or audio items that are stored as computer data. Access to an audio or video recording made and retained by law enforcement as a criminal investigation record shall be allowed as set forth in Section 2.76.100 of this Chapter, and amendments thereto.

(b) A record custodian shall not be required to provide copies of any records or devices described in Subsection (a) herein that are copyrighted by a person other than the City of Wichita.

(c) If the records described in Subsection (a) herein are deemed to be open public records, a requester may be provided viewing or listening access in the office where the records are kept, or other area within City Hall or other City building or facility where equipment exists that allows such viewing or listening access. Such access shall be subject to the following procedures:

(1) Viewing or listening access shall be provided by advance appointment only to ensure that city staff is available to provide and monitor such viewing.

(2) City staff shall be present at all times during viewing or listening access with fees for staff time to be charged as set forth in Chapter 2.77 of this Code, and amendments thereto.

(3) Recording or photographing of such records is prohibited during viewing or listening access and no recording or photographic devices shall be allowed in the area where viewing or listening access is allowed.

(Ord. No. 51-620, § 9, 8-17-21)

Sec. 2.76.100. Audio, video or photographic records—Law enforcement—Procedure for access.

(a) Pursuant to the provisions of K.S.A. 45-254, and amendments thereto, every audio or video recording made and retained by law enforcement using a body camera or a vehicle camera shall be considered a criminal investigation record as defined in K.S.A. 45-217, and amendments thereto.

(b) Release and viewing access to such records of the Wichita Police Department shall be in accordance with the provisions and requirements of K.S.A. 45-254 (b)—(d), and amendments thereto.

(c) Release and viewing or listening access to video and audio records, as well as photographic records of the Wichita Police Department, may be additionally authorized by policies of the Chief of Police, in accordance with state law and as developed and set forth in writing in the Policy and Procedure Manual of the Wichita Police Department.

(d) When viewing or listening access to such records is provided, the procedures set forth in Section 2.76.090(c), and amendments thereto, shall be followed.
(Ord. No. 51-620, § 10, 8-17-21)

Sec. 2.76.110. Delay notice.

If a record custodian cannot respond to a request for open public records by the end of the third business day following the date that the request was received, a written delay notice shall be sent to the requester stating the reason for the delay and shall set forth a date by which the record will be made available. If a subsequent delay or delays become necessary, a written notice with a date by which the record will be made available shall be sent to the requester for every delay.
(Ord. No. 51-620, § 11, 8-17-21)

Sec. 2.76.120. Denial of requests.

A record custodian may deny a request for inspection and/or copies of records if it is determined that the records are not required by law to be disclosed, that such a request will place an unreasonable burden upon the City, or that such request was made with the intent to disrupt City activity. In no instance should a record custodian issue a denial of access to a public record without first consulting with the Law Department. When a denial is issued, it shall be done in writing and must provide the requester with information as to why the records access was denied and the statutory basis for such denial.
(Ord. No. 51-620, § 12, 8-17-21)

Sec. 2.76.130. Payment of fees.

(a) Fees for inspection and/or copying of public records are hereby authorized and shall be calculated by the record custodian in accordance with the amounts established in Chapter 2.77 of this Code, and amendments thereto.

(b) All fees collected for inspection and/or copying of public records shall be assessed, collected and remitted by the record custodian as set forth in Chapter 2.77 of this Code, and amendments thereto.

(c) No record copying charge shall be assessed against officers or employees of the City who make requests which are reasonably necessary to the performance of their official duties.
(Ord. No. 51-620, § 13, 8-17-21)

Sec. 2.76.140. Exceptions.

The provisions of this Chapter shall not apply to following:

(a) Information that is extracted from public records and routinely passed to citizens verbally during the normal course of business;

(b) Records produced pursuant to a subpoena, discovery order in a criminal or civil case or other court order for production of records; or

(c) Records obtained through an automated system set up for online purchase of such records.

(Ord. No. 51-620, § 14, 8-17-21)

CHAPTER 2.77. FEES CHARGED FOR ACCESS TO PUBLIC RECORDS

Sec. 2.77.010. Title.
Sec. 2.77.020. Statement of purpose, review.
Sec. 2.77.030. Inspection/research fees.
Sec. 2.77.040. Copying fees.
Sec. 2.77.050. Computer data.
Sec. 2.77.060. Additional copy/delivery fees.
Sec. 2.77.070. Prepayment of fees.
Sec. 2.77.080. Payment.
Sec. 2.77.090. Exceptions.

Sec. 2.77.010. Title.

The title of this Chapter shall be Fees Charged for Access to Public Records.
(Ord. No. 51-621, § 1, 8-10-21)

Sec. 2.77.020. Statement of purpose, review.

It is the purpose of this Chapter to establish reasonable fees and charges for providing access to or copies of public records of the City to a records requester to avoid utilizing general funds of the City to subsidize these special services. Such fees and charges may also include, but are not limited to, other costs incurred such as inspection, research, search of data storage devices, extracting data from computerized databases, running data reports, organization and review of documents retrieved, postage and shipping. Only the actual cost of furnishing the records, including the cost of actual staff time to make the information available, may be assessed. The official record custodians shall periodically recommend to the City Council such changes in this Chapter as may be necessary to secure this purpose.
(Ord. No. 51-621, § 2, 8-10-21; Ord. No. 52-747, § 2, 6-17-25)

Sec. 2.77.030. Inspection/research fees.

(a) When a request has been made for inspection or copying of any public record which is not readily available to the record custodians, research, review and/or supervision fees shall be charged as follows:

(1) Staff personnel: $5.00 each 15-minute increment or portion thereof.

(2) Attorney time: $10.00 each 15-minute increment or portion thereof.

(3) Information Technology personnel: As set forth in Section 2.77.040, and amendments thereto.

(4) Retrieval of documents stored offsite at Underground Storage shall be the actual cost to the City per box, including staff time, in retrieving such records.

(b) Fees for staff time required to monitor the in-house inspection of documents or viewing or listening access to records as allowed by this code shall be charged at the applicable rate set forth in subsection (a), however, there shall be no charge for the first thirty (30) minutes of such staff time required.

(c) To determine applicable staff costs, the City shall use, in good faith, the lowest cost category of staff reasonably necessary to access or furnish copies of public records. Charges assessed shall not exceed the employee's salary or hourly rate not including the costs of employee benefits.
(Ord. No. 51-621, § 3, 8-10-21; Ord. No. 52-747, § 3, 6-17-25)

Sec. 2.77.040. Copying fees.

(a) When a request has been made for copying of any public record, a fee of $.25 per page may be charged for black and white photocopies and $1.00 per page for color copies. Such fees shall include the cost of labor, materials and equipment.

(b) For copying of any public records that cannot be reproduced by the City's photocopying equipment and must be copied offsite, the requestor shall be charged the actual cost to the City, including staff time, in reproducing such records.

(c) Mechanical reproduction of a record shall not be undertaken when it is the judgment of the record custodian that any available means of mechanically reproducing the subject records is likely to cause damage to such records.
(Ord. No. 51-621, § 4, 8-10-21)

Sec. 2.77.050. Computer data.

When a request has been made for inspection or copying of any public record which involves a search of data storage devices and/or extracting data from computerized databases or running data reports, fees shall be charged as follows:

(a) Information Technology staff time: $9.50 for each 15-minute increment or portion thereof.

(b) Where a request for computer data involves subsequent review of such data for a determination if the records are open public records, staff time required to review and make such determination will be charged as research fees set forth in Section 2.77.030 and amendments thereto.

(Ord. No. 51-621, § 5, 8-10-21)

Sec. 2.77.060. Additional copy/delivery fees.

(a) Where a request for open public records involves use of a data storage device to provide electronic copies of the records, the fee charged shall be $1.15 per CD or DVD disc and $5.00 per USB thumb drive. For any other data storage device, it shall be the actual cost to the City.

(b) Where a request for public records involves mailing or shipping such records, the charges shall be determined and assessed by the records custodian based upon the current postal rates for U.S. Mail service or actual shipping charges covering mailing and handling costs accrued in responding to requests.

(c) Where a request for public records involves faxing copies of such records, the fees shall be as follows:

(1) Local shall be $.25 per faxed page.

(2) Long distance shall be $.50 for the first faxed page and $.25 per additional faxed page.

(Ord. No. 51-621, § 6, 8-10-21)

Sec. 2.77.070. Prepayment of fees.

(a) A record custodian shall require prepayment of the fees as established by this Chapter. Record custodians shall notify any person requesting access to open public records of all estimated costs for fulfilling the records request and that no work will be undertaken to make the records available for inspection nor will copies be made until there is payment of such estimated costs. Any overage or underage in the prepayment shall be settled prior to inspection of the requested record or delivery of the requested copies.

(b) The requester should be notified of the estimated costs as set forth in Section 2.77.070 of this Code and amendments thereto, and that no work will be undertaken until there is payment of such estimated costs. When the staff time needed to respond to a request will exceed five (5) hours or the estimated actual cost for staff time needed to fill the request exceeds two hundred dollars ($200), staff shall make reasonable efforts to contact the requester and engage in interactive communication about mitigating costs to fill the request. The requester is not obligated to mitigate costs. As used in this subsection, "reasonable efforts to contact the requester" means contacting the requester through the means of communication provided to the agency by the requester.

(c) If staff has made a reasonable effort to contact the requester and the requester has failed to respond by the end of the third business day, the records request will be deemed to be withdrawn until a subsequent contact has been made by the requester to the City of Wichita.

(d) No record shall be made available to the requester for inspection or copies made thereof until such prepayment of fees has been made.

(e) A convenience fee may be charged per transaction consistent with City policy.

(f) No fees assessed by this Chapter shall be waived; however, the official department record custodian may exercise his or her discretion to waive any copying fee when such fee is less than $5.00.

(Ord. No. 51-621, § 7, 8-10-21; Ord. No. 52-747, § 4, 6-17-25)

Sec. 2.77.080. Payment.

All fees charged under this Chapter shall be paid to the custodian of the records inspected and/or copied unless the requester has established an account for purposes of billing and payment with the City. All fees received by the record custodians with the exception of fees from the Airport are required to be paid to the City General Fund, and shall be remitted to the City Treasurer by the record custodians on a schedule to be determined by the City Treasurer.
(Ord. No. 51-621, § 8, 8-10-21)

Sec. 2.77.090. Exceptions.

The fees set forth by this Chapter shall not apply to the exceptions set forth in Section 2.76.140 of this Code and amendments thereto.
(Ord. No. 51-621, § 9, 8-10-21)

Title 3

BUSINESS—REGULATIONS AND LICENSING*

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CHAPTER 3.01. UTILITY REGULATION

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Sec. 3.01.010. Definitions.

As used in Sections 3.01.010—3.01.070, the following terms are defined in this section:

"Access line" means the following billed main lines and trunks, whether provided on a retail or wholesale basis: residential lines; business lines; ISDN lines (channels); trunks connected to a PBX or PBX-like switch where all stations served by such PBX are used by a single customer of the provider of the trunks; where stations served by a PBX or PBX-like switch are not used by a single customer of the provider of the trunks, each station served by the PBX or PBX-like switch shall constitute an access line; Centrex or Centrex-like stations; simulated exchange access lines provided by a central office-based switching arrangement where all stations served by such simulated exchange access lines are used by a single customer of the provider of such arrangement; where stations are served by simulated exchange access lines provided by a central office based switching arrangement and the stations served are not used by a single customer of the provider of such arrangement, each station shall constitute an access line; and pay phone lines. "Access line" shall include wireless telecommunications services subject to 47 C.F.R. Part 24. "Access line" shall not include the following: wireless telecommunications services subject to 47 C.F.R. Part 22; unbundled loop facilities; and special access services.

"Franchise" means a current franchise granted by the City of Wichita for any telecommunications services under the procedures and provisions of K.S.A. 12-2001, et seq., as amended.

"Provider" means any business, including any person, providing local telecommunications services to another through an access line.

"Telecommunications" means the transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received.

"Telecommunications service" means the offering of telecommunications for a fee directly to the public, or to such classes of users as to be effectively available directly to the public, regardless of the facilities used.
(Ord. No. 43-127 § 1)

Sec. 3.01.020. Telecommunications service occupation tax.

There is imposed an occupation tax on the privilege of engaging in the business of furnishing telecommunications services. This tax is levied upon providers in the amount of one dollar eighty-one cents per month for each access line served by the provider for local telecommunication service within the City of Wichita. The occupation tax shall be paid to the city by the provider based upon the number of access lines served on the last day of the month for which the occupation tax is imposed.
(Ord. No. 43-127 § 2)

Sec. 3.01.030. Payment and reporting.

A. Each provider that is obligated to pay the occupation tax imposed hereunder shall report the amount of access lines served and such other information deemed necessary by the city treasurer on forms to be established and furnished by the city treasurer. The provider shall pay the occupation tax due on a monthly basis within thirty days of the last day of the month for which the occupation tax is imposed. The city council

shall be authorized to adopt by resolution rules and regulations deemed necessary from time to time to account for and collect the occupation tax.

B. For each and every month, or any part thereof, that the tax is provided for by Sections 3.01.010—3.01.070 remains unpaid after the same becomes due and payable by the provider, there shall be added to such tax, as a late charge, the sum of one and one-half percent per month.
(Ord. No. 43-127 § 3)

Sec. 3.01.040. Credit for franchise payments.

A. A provider who is operating under a franchise shall receive credit on the occupation tax due to be paid hereunder to the extent that such payment would be duplicative of payments such provider is making under its franchise.

B. Any provider that makes payment to the holder of a franchise in a monthly sum equal to or greater than the occupation tax imposed by Sections 3.01.010—3.01.070 shall receive a credit on the occupation tax due to be paid hereunder, provided that the holder of franchise remits such payment to the city pursuant to its obligations under the franchise.
(Ord. No. 43-127 § 4)

Sec. 3.01.050. Franchise rights not waived.

Nothing in Sections 3.01.010—3.01.070 shall be construed to preclude the city from requiring a franchise from any person, firm, partnership, corporation or entity who uses the streets and right-of-way of the city for the purpose of constructing and operating a telecommunications system. Any tax payment received by the city under Sections 3.01.010—3.01.070 shall not be deemed to waive or diminish the city's rights under K.S.A. 12-2001, et seq.
(Ord. No. 43-127 § 5)

Sec. 3.01.060. Violations.

It is unlawful for a provider to fail or refuse to pay the occupation tax imposed hereunder. In addition, it is unlawful for a provider to engage in the business of furnishing telecommunications service within the city during times that the occupation tax is unpaid and past due.
(Ord. No. 43-127 § 6)

Sec. 3.01.070. Penalties.

Any person who violates any of the provisions of Sections 3.01.010—3.01.070 shall, upon conviction, be deemed guilty of a misdemeanor and shall be punished by a fine not exceeding two thousand five hundred dollars. Each and every day of operation in violation of Sections 3.01.010—3.01.070 shall constitute a separate offense.
(Ord. No. 43-127 § 7)

Sec. 3.01.110. Natural gas—Definitions.

As used in Sections 3.01.120 through 3.01.200, the following terms are defined in this section:

"City" means the City of Wichita, Kansas.

"Consumer" or "user" means, without limitation, any individual person, business, corporation, company, partnership, firm, limited liability corporation, limited liability partnership, unincorporated association, joint venture, trust, municipality, or public corporation served by a franchised entity or provider through a distribution system.

"Distribution system" or "distribution facilities" means a pipeline or system of pipelines, including without limitation mains, pipes, boxes, reducing and regulating stations, laterals, conduits, and services extensions, together with all necessary appurtenances thereto, or any part thereof, for the purpose of supplying natural gas or other energy for light, heat, power, and all other purposes.

"Franchised entity" means any entity that has a franchise granted by the City of Wichita for the supplying of natural gas under the procedures and provisions of K.S.A. 12-2001, et seq., as amended; such entities at the effective date of the ordinance codified in Sections 3.01.110 through 3.01.200 are Peoples Natural Gas Company as the assign of Arkansas-Louisiana Gas Company (Ordinance No. 38-076) and Kansas Gas Service Company, a Division of ONEOK, Inc., as the assign of Gas Service Company (Ordinance No. 38-075).

"Gross receipts" means:

(a) Any and all compensation and other consideration derived directly or indirectly by the provider from:

(1) Any transportation, distribution, or sale of natural gas to a consumer for any use, including domestic, commercial, and industrial purposes, and including without limitation interruptible, single, and firm sales; and

(2) Any operation or use of any or all of the distribution facilities in the public right-of-way by the provider or others including without limitation charges as provided in tariffs filed and approved, and shall also include all fees or rentals received by the provider for the lease or use of pipeline capacity within the corporate limits of the city.

(b) Except that "gross receipts" shall not include:

(1) Connection and disconnection fees, reconnection fees, returned check charges, temporary service charges, and delayed or late payment charges as such terms are used in tariffs or in the natural gas industry;

(2) Compensation from the sale of natural gas when:

(A) The customer purchases the natural gas as a separate and identifiable commodity that is not subject to a regulated tariff rate, and

(B) On which the volumetric rate is applied; or

(3) Compensation from the sale of natural gas when a franchise fee has been paid by another franchised entity on the same transaction.

"MCF" means a measurement of natural gas equal to one thousand cubic feet; a cubic foot is the quantity of natural gas occupying one cubic foot of space at a pressure of 14.73 PSIA and a temperature of sixty degrees Fahrenheit. It is assumed for purposes of Sections 3.01.110 through 3.01.200 that one MCF equals one million British Thermal Units (BTUs).

"Other energy" means energy provided in a gaseous, liquid, or slurry mixture form through pipelines for light, heat, power, and all other purposes as an alternative or replacement for natural gas, but specifically shall not include electrical energy.

"Provider" means any business, including any individual person, business, corporation, company, partnership, firm, limited liability corporation, limited liability partnership, unincorporated association, joint venture, trust, municipality, or public corporation providing the transportation, distribution, or sale of natural gas or other energy to a consumer, whether through its own distribution system, the distribution system of a franchised entity, or through the distribution system of another, and shall also include a consumer transporting natural gas or other energy for its own use.

"Public right-of-way" means present and future streets, alleys, rights-of-way, and public easements, including easements dedicated in plats of the City of Wichita for streets and alleys.

"Settlement prices" means the settlement prices for natural gas futures contracts traded on the New York Mercantile Exchange (NYMEX) on the fifteenth day of each month as published dally in the Wall Street Journal (WSJ) on the following business day (or the next day in which a settlement price is published).

"Volumetric rate" means eleven and nine-tenths cents (11.9 ¢) per MCF, or such amount as may be hereafter calculated and filed with the city clerk according to the provisions of Sections 3.01.110 through 3.01.200.
(Ord. No. 43-969 § 1)

Sec. 3.01.120. Natural gas—Application of ordinance.

From and after the effective date of the ordinance codified in Sections 3.01.110 through 3.01.200, no natural gas or other energy shall be transported, distributed, or sold by any provider to any consumer for use within the corporate

limits of the city through a distribution system located in whole or in part in the public right-of-way of the city except in accordance with the provisions of the ordinance codified in Sections 3.01.110 through 3.01.200. Sections 3.01.110 through 3.01.200 apply to any distribution to a consumer within the city whether or not the portion of the distribution system serving the consumer is in the public right-of-way so long as any portion of the distribution system of the provider is in the public right-of-way.
(Ord. No. 43-969 § 2)

Sec. 3.01.130. Natural gas—Franchise required.

(a) Every provider subject to Sections 3.01.110 through 3.01.200 shall obtain a franchise from the city under the provisions of K.S.A. 12-2001, et seq., for the use of distribution systems located in public right-of-way. Any provider which only uses the distribution system of a franchised entity and which reports and pays a sum equal to the compensation calculated by Section 3.01.140(b) to the city through such franchised entity shall be exempt from the requirement of a separate franchise. Any interstate pipeline transportation company which is otherwise a provider under Sections 3.01.110 through 3.01.200 shall not be required to obtain a separate franchise under this section, provided that all users of such interstate pipeline transportation company who are located within the city shall obtain a franchise and shall report and pay a sum equal to the compensation calculated by Section 3.01.140(b) and a sum equal to five percent of the amount paid for the transportation of such natural gas.

(b) The franchise required under Sections 3.01.110 through 3.01.200 shall substantively contain the following elements:

1. In consideration of and as compensation for the franchise, the provider shall agree to pay to the city a sum equivalent to fees calculated in accordance with Section 3.01.140.

2. The payments and compensation paid by the provider shall be in lieu of all other licenses, taxes, charges, and fees, except that the usual general property taxes and special ad valorem property taxes, sales and excise taxes, and any permit fees and charges for pavement cuts or other permit fees and charges based on restoring premises to their same condition, or charges made for privileges which are not in any way connected with the natural gas or other energy business, as such, will be imposed on the provider and are not covered by the franchise fee payments.

3. The provider shall agree that the city shall have access to and the right to examine and audit all records reasonably necessary to verify the payment of the franchise fees. If any such payment is found to be incorrect, then payment shall be made upon a corrected statement. The provider shall agree that for each and every month, or any part thereof, that the franchise compensation remains unpaid after the same becomes due and payable by the provider, there shall be added as a late charge a sum equivalent to the statutory rate for interest on the unpaid amount.

4. Provider shall agree to hold the city harmless from any and all damages arising from the exercise of any right or privilege granted under Sections 3.01.110 through 3.01.200 and the franchise, and from any and all damages accruing from the neglect or mismanagement of its employees, agents or servants in the exercise of any right or privilege granted under Sections 3.01.110 through 3.01.200 and the franchise.

5. Subject to the approval of the regulatory body having jurisdiction and control over rules and regulations of the provider at the time in question, the provider shall agree that the city has the right to make such reasonable rules and regulations for the protection of its property and for the distribution and sale of gas, and the appropriate conduct of business as the city may from time to time deem necessary.

6. The franchise shall be non-exclusive.

7. The franchise shall be for a term expiring no later than the earliest date of expiration of the franchise of any franchised entity and subject to reopener and renegotiation upon events materially affecting the rights or obligations of the city or provider.

8. In the event the provider owns or maintains all or any portion of a distribution system, it shall agree to provisions on the use of the public right-of-way and the construction, location, and relocation of facilities, and the quality of standards of service, all substantively equivalent to those of the franchised entities.

9. The provider shall agree to file its acceptance in writing of the provisions, terms, and conditions of the franchise with the city clerk within sixty days after final passage and approval of the franchise ordinance.

(Ord. No. 43-969 § 3)

Sec. 3.01.140. Natural gas—Calculation of fees.

(a) Natural Gas Fees by a Provider Required to Have a Franchise. In consideration of and as compensation for the franchise granted to the provider by the city, the provider shall make an accounting on a monthly basis to the city of all sales, distribution, or transportation to any consumer or user for use within the city by the provider or by others through the distribution facilities of the provider. The provider shall pay the city a franchise fee calculated as follows:

(1) A sum equal to five percent of the gross receipts;

(2) A sum equal to the volumetric rate multiplied by the number of MCF of natural gas transported or distributed by the provider.

Such sums shall be adjusted for uncollectible receivables and uncollectible receivables which are later collected. Such payments shall be made to the city under procedures established by the city treasurer within thirty days of the last day of the month to which such accounting shall apply.

(b) Natural Gas Fees by a Provider Through a Franchised Entity. In consideration of and as compensation for the use of the public right-of-way, any provider using the distribution system of a franchised entity (other than provider) shall pay the city through the franchised entity a fee calculated in the manner provided in Section 3.01.140(a)(2). Such payments shall be made monthly under procedures established by the franchised entity.

(c) Other Energy Fees. In consideration of and as compensation for the franchise granted to the provider by the city, the provider shall make an accounting and provide compensation to the city for the transportation, distribution, and sale of other energy to any consumer or user for use within the city by the provider or by others through the distribution facilities of the provider. The provider shall pay the city a franchise fee that is calculated in a manner provided in each franchise that is substantially equivalent to the fees paid by providers of natural gas, taking into account the alternative form of the energy, its value per unit, and the amount of energy necessary for light, heat, power, or other purposes.

(Ord. No. 43-969 § 4)

Sec. 3.01.150. Natural gas—Adjustment of volumetric rate.

The volumetric rate shall be recalculated annually by the city beginning January 1, 2000, based upon the settlement prices. The volumetric rate calculation form on file with the city clerk and incorporated herein by reference shall be used for the recalculation of the volumetric rate. The recalculation shall be effective each January 1st and shall be based on settlement prices for the twelve month period beginning in July of the second preceding year and ending in June of the preceding year. For the fifteenth day of each month during said twelve month period, the settlement prices for the next twelve months will be summed and divided by twelve to determine an average settlement price. The average settlement prices for each of the twelve months shall then be

summed and divided by twelve and multiplied by five percent to obtain the volumetric rate to be effective January 1st of the next succeeding year. The volumetric rate shall be calculated in July annually by the city and shall be effective upon filing of the completed volumetric rate calculation form with the city clerk without the requirement of amendment of the ordinance codified in Sections 3.01.110 through 3.01.200.
(Ord. No. 43-969 § 5)

Sec. 3.01.160. Natural gas—Reporting and collection provisions.

(a) All providers using the public right-of-way for the transportation, distribution, or sale of natural gas or other energy, whether through their own distribution facilities, through the distribution facilities of a franchised entity, or through the distribution facilities of another, shall report or register such use with the city treasurer on such forms as are established and furnished by the city treasurer and subject to such administrative fees necessary to cover the costs of the effective administration of Sections 3.01.110 through 3.01.200 as established by the city treasurer. Such registration shall include the name, address, and agent for the provider and shall include such information on the method and means of transportation, distribution, or sale to consumers as may be reasonably required by the city for enforcement of Sections 3.01.110 through 3.01.200. The city shall have access to and the right to examine and audit such records necessary to verify the payment of compensation.

(b) Franchised entities may serve as the agent for providers using the distribution system of the franchised entity for the purpose of reporting and collection under Sections 3.01.110 through 3.01.200.

(c) Franchised entities with a current and effective franchise and any provider which reports and pays a sum equal to the fees calculated by Section 3.01.140(b) to the city through a franchised entity shall be exempt from the separate reporting and registration requirements of Sections 3.01.110 through 3.01.200.
(Ord. No. 43-969 § 6)

Sec. 3.01.170. Natural gas—Times.

(a) All providers shall make application for a franchise within thirty days of the effective date of the ordinance codified in Sections 3.01.110 through 3.01.200, unless the provider is exempt from the requirement of a separate franchise under the provisions of Section 3.01.130(a). It is the intent of Sections 3.01.110 through 3.01.200 that a franchise ordinance consistent with the requirements of Section 3.01.130 will be submitted to the governing body for consideration according to statutory procedures immediately upon such application.

(b) All providers exempted from the requirement of a separate franchise under Section 3.01.130(a) shall be responsible for fees required by Sections 3.01.110 through 3.01.200 upon the effective date of the franchise ordinance for the franchised entity which authorizes the franchised entity to collect payments from the provider on behalf of the city.

(c) Any provider hereafter becoming subject to Sections 3.01.110 through 3.01.200 shall immediately comply with the provisions of Sections 3.01.110 through 3.01.200 prior to use of the public right-of-way for the transportation, distribution, or sale of natural gas or other energy.

(d) The fees calculated under Section 3.01.140 shall be assessed and shall be effective as of January 1, 1999.
(Ord. No. 43-969 § 7)

Sec. 3.01.180. Natural gas—Violations.

It is unlawful for a provider to transport, distribute, or sell natural gas or other energy to a consumer in violation of Sections 3.01.110 through 3.01.200.
(Ord. No. 43-969 § 8)

Sec. 3.01.190. Natural gas—Penalties.

The city may seek such criminal or civil penalties as are provided by law, ordinance, or regulation. Any person who violates any of the provisions of Sections 3.01.110 through 3.01.200 shall, upon conviction, be deemed guilty of a misdemeanor and shall be punished by a fine not exceeding two thousand five hundred dollars.

Each and every day of operation in violation of Sections 3.01.110 through 3.01.200 shall constitute a separate offense.

The city shall have the right to seek an injunction or such other equitable relief in the appropriate court to stop any violation of Sections 3.01.110 through 3.01.200 or of any permit or other form of authorization granted hereunder and shall have such other remedies as are and as may be from time provided by law, ordinance, or regulation.
(Ord. No. 43-969 § 9)

Sec. 3.01.200. Natural gas—Savings clause.

If any clause, sentence, or section of the ordinance codified in Sections 3.01.110 through 3.01.200 shall be held to be invalid, it shall not affect the remaining provisions of the ordinance codified in Sections 3.01.110 through 3.01.200.
(Ord. No. 43-969 § 10)

CHAPTER 3.02. PROPERTY TAXES

Sec. 3.02.010. Certification of payment.

Sec. 3.02.010. Certification of payment.

(a) All applicants for any city business and occupational license required within Titles 3, 4, 7, 10, 16, 18, 19, 21, 22, 24, 25 and 26 of the Code of the City of Wichita, Kansas, must make application to the license collector upon a form provided by the city before such license may be issued.

(b) At the time the application is made and prior to the issuance of any license under said chapters, each applicant shall certify that he does not owe any personal property taxes to Sedgwick County, Kansas, which are delinquent, and no license shall be issued to a person owing delinquent personal property taxes or certifying a false statement.
(Ord. No. 30-299 § 1)

CHAPTER 3.03. RETAILER'S SALES TAX

Sec. 3.03.010. Revenue pledged for highway projects.
Sec. 3.03.020. Continuity of tax pledge.

Sec. 3.03.010. Revenue pledged for highway projects.

The governing body of the City of Wichita, Kansas, pledges one half of any revenue received from the City of Wichita's portion of a one percent sales tax to relieve the tax levies of the City of Wichita upon the taxable tangible property within the City of Wichita with continued compliance with the provisions of the "State Tax Lid Law" (K.S.A. 79-5001 et seq), and pledges the remaining one-half of the one percent of any revenues received to Wichita road, highway and bridge projects including right-of-way acquisitions. Each year the City of Wichita budget will be amended to reduce the property tax requirement by one half of the projected sales tax receipts. The remaining one half of the projected sales tax receipts will be added to funds for road, highway and bridge projects including right-of-way acquisitions.
(Ord. No. 39-196 § 1)

Sec. 3.03.020. Continuity of tax pledge.

It is the specific intent of the governing body of the City of Wichita that the City of Wichita continue to use the tax revenues as outlined in this chapter and that this pledge be continued as a matter of faith and trust between the people and the present and future governing bodies of the City of Wichita.
(Ord. No. 39-196 § 2)

CHAPTER 3.04. IN GENERAL*

Sec. 3.04.010. Licenses required.
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Sec. 3.04.030. Applications, fee.
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Sec. 3.04.050. Penalty for nonpayment of fees.
Sec. 3.04.060. Proration of fees generally.
Sec. 3.04.065. Appeals—License application denials.
Sec. 3.04.070. Revocation.
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Sec. 3.04.080. Inspections.
Sec. 3.04.090. Display.
Sec. 3.04.100. Payment of fees and receipts therefor.
Sec. 3.04.110. Penalty for violation of title.

Sec. 3.04.010. Licenses required.

It is unlawful for any person, whether as principal, officer, agent, servant or employee:

(a) To conduct, pursue, carry on or operate within the corporate limits of the city any of the callings, trades, professions, businesses or occupations, specified in this title, without having first paid to the license collector an occupation tax, license tax or permit fee as prescribed in this title, and having first procured a license or permit to engage in and carry on such calling, trade, profession, business or occupation;

(b) To fail to comply with all of the regulations provided in this title.

(Ord. No. 15-606 § 1)

Sec. 3.04.020. Regulations generally, etc.

License taxes are hereby levied and regulations imposed upon the respective callings, trades, professions, businesses or occupations conducted, pursued, carried on or operated within the corporate limits of the city as specified and prescribed in this title.

(Ord. No. 15-606 § 2)

*__Cross reference—__As to dog licenses, see Chapter 6.08. As to license plates on motor vehicles, see § 11.40.300. As to state motor vehicle operator's or chauffeur's license, see §§ 11.40.380 to 11.40.400. As to bicycle licenses, see Chapter 11.48. As to contractor's licenses, see §§ 18.06.160 to 18.06.250. As to electrical licenses, see Chapter 19.48. As to plumbers' and gas fitters' licenses, see §§ 21.04.170 to 21.04.190.

Sec. 3.04.030. Applications, fee.

All new applicants for a city occupational license must make application to the license collector upon a form provided by the city before such license may be issued. The application fee shall be one dollar which shall not be refundable.

There shall be no refunds of any license fees under the code of the City of Wichita unless the application fee has not been approved by the licensing authority, and a request for a refund be made to the city treasurer within three days from such disapproval. There shall be no refund or rebate of any portion of a license fee after the issuance thereof; provided, however, that in the event of the death of a licensee occurring within ninety days of issuance of a license, then for any license for which the fee is ten dollars or more, a refund pro-rated for the unused portion of said license shall be allowed; provided further, that application for said refund is made within the calendar year that the license is to be in effect, and is made by a legal representative of the deceased.

(Ord. No. 32-163 § 1; Ord. No. 28-601 § 1; Ord. No. 15-606 § 92)

Sec. 3.04.040. Separate licenses required for each place of business, etc.

A separate license shall be obtained for each place of business conducted, operated, maintained or carried on by each person engaged in any occupation, calling or trade, for which a license is required by this title.

(Ord. No. 15-606 § 100)

Sec. 3.04.050. Penalty for nonpayment of fees.

All licenses not paid within thirty days after the date of expiration shall pay a penalty of ten percent of the amount of the license fee and ten percent of the amount of the license fee shall be added for each additional thirty days from the date of expiration.

(Ord. No. 15-606 § 93)

Sec. 3.04.060. Proration of fees generally.

Every person beginning business in the first thirty days of the license term shall pay the full

amount of the license. Every person beginning business after the first thirty days of the term shall have expired shall be required to take out a license under this title by paying pro rata for the remainder of the license term of the amount required for license; provided, that when a license fee is specified by the day, week or month, the above provisions for prorating shall not apply; provided further, that where license fees are provided by special provisions of this Code regulating any trade, calling or occupation, the pro rata provisions for license fees in each such provision shall govern; provided further, that no license fees of less than five dollars for six months, or ten dollars annually, provided for in this title, shall be prorated.
(Ord. No. 15-606 § 97)

Sec. 3.04.065. Appeals—License application denials.

Any applicant for a license under the terms of Chapter 3.04, or any other portion of the Code of the City of Wichita, Kansas, pertaining to city licenses, who has been administratively denied the issuance of a license under the application procedures provided in the Code of the City of Wichita, Kansas, shall have a right of appeal from the denial to the board of city commissioners by filing a written request therefor with the city clerk. The notice of appeal must be filed with the city clerk within ten days of the denial of such license application unless otherwise provided in the Code of the City of Wichita, Kansas.
(Ord. No. 33-587 (part))

Sec. 3.04.070. Revocation.

Any license issued under the terms and provisions of this title shall be revoked by the board of commissioners of the city, under five days' written notice to the person holding any such license, for any of the following reasons:

(a) If a licensee has fraudulently obtained the license by giving false information in the application therefor;

(b) If the licensee has violated any of the provisions of this title or any rule or regulation made by the board of commissioners of the city regulating the conduct of the particular calling, trade, profession, business or occupation covered by such license;

(c) If a licensee has become ineligible to obtain a license under this title;

(d) For the nonpayment of any license fees payable under this title;

(e) For permitting any gambling or any violation either of the intoxicating liquor laws of the state or of Title 4 of this Code, upon the licensed premises;

(f) For the conviction of the licensee in any court for the violation of any laws of this state or ordinances of the city regulating such calling, trade, profession, business or occupation;

(g) For conviction of the licensee in any court of any offense against the laws of the state or ordinances of the city involving moral turpitude; provided, expressly, that where any calling, trade, profession, business or occupation licensed under this title is governed by a specific section of this Code containing an express provision for the revocation of such license, the terms of such specific section of this Code relating to revocation of the license shall supersede and take precedence over the revocation provisions contained in this chapter; provided further, that whenever the term "conviction" is used in any section of this title it shall include being placed on diversion; provided further, that in case a license is revoked on any of the grounds set out above, no new license to carry on such calling, trade, profession, business or occupation shall be issued under the provisions of this title to the licensee, for six months from the date that the revocation takes effect.

(Ord. No. 38-862; Ord. No. 15-606 § 94)

Sec. 3.04.075. Suspension.

A. SUSPENSION. When, in the opinion of the chief of police, the operation of any private club, tavern, dance hall, poolhall, teenage poolhall or any place of business that allows either the sell-

ing or consumption of malt beverage, has become detrimental to the public safety, peace, health or welfare, the chief of police may summarily suspend any or all city licenses of the business for a temporary period.

B. APPEAL. Any person may appeal to the city council the decision of the chief of police to temporarily suspend a public license or licenses. The appeal must be in writing to the city council and must be presented within ten days from the date of the suspension.

C. REVOCATION. It is vested in the city council the right to permanently revoke any or all city licenses of the business when after having a hearing requested by the chief of police, it is deemed detrimental to the public safety, peace, health or welfare; and the action of the city council shall be final.
(Ord. No. 28-013 § 1)

Sec. 3.04.080. Inspections.

All trades, professions, businesses and occupations licensed under this title shall be open and subject to inspection at all reasonable times by the proper officers of the city, under its police powers, in order for such officers to ascertain that persons conducting such trades, professions, businesses and occupations are complying with all of the police and health regulations of the city.
(Ord. No. 15-606 § 95)

Sec. 3.04.090. Display.

All persons licensed under this title, including their employees, not having a permanent location, shall carry their license with them and every person shall present his license for inspection when requested to do so by any officer of the city.
(Ord. No. 15-606 § 96)

Sec. 3.04.100. Payment of fees and receipts therefor.

Any persons engaged in or intending to engage in any calling, trade, profession, business or occupation upon which a license tax is levied by this title shall pay the tax to the license collector who shall give a receipt therefor, stating the amount paid, the nature of the license desired, for what time and to whom to be issued, and if possible the exact location of the office or headquarters where such calling, trade, professions, business or occupation is to be carried on.
(Ord. No. 15-606 § 98)

Sec. 3.04.110. Penalty for violation of title.

Any person who shall conduct, pursue or carry on or operate within the corporate limits of the city any calling, trade, profession or occupation for which a license or the payment of a license tax is required by this title or shall assist directly or indirectly in so doing in any manner or to any extent, either as owner or proprietor or as an officer of any corporation, or as manager, superintendent, agent, servant or employee of any person after license tax should have been paid or a license obtained to conduct, pursue, carry on or operate such calling, trade, profession or occupation shall be deemed to do so unlawfully. Any person in violation of this title shall be deemed guilty of a misdemeanor.

Any person, whether as principal or as agent, who shall violate any other provision of this title than those immediately above enumerated, shall be guilty of a misdemeanor and, upon conviction, shall be fined in any sum not less than twenty-five dollars nor more than one hundred dollars. Each day's violation shall be a separate offense.

In addition to the penalty described in this section the city may recover in civil action in any court of competent jurisdiction the amount of the license tax imposed by this title, and no property of such debtor shall be exempt from forced sale under any process of the law for such indebtedness except such exemptions as are allowed by the constitution of this state.
(Ord. No. 15-606 §§ 102, 103)

CHAPTER 3.05. ADULT ENTERTAINMENT ESTABLISHMENTS AND ADULT HOTELS

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Sec. 3.05.190. Invalidity of part.

Sec. 3.05.020. Definitions.

For the purpose of this chapter, the words and phrases used herein shall have the following meanings unless otherwise clearly indicated by the context:

(a) "Adult entertainment establishment" means any commercial establishment which is an adult bookstore, adult motion picture theater, adult hotel, or adult motion picture arcade as defined herein.

(b) "Adult bookstore" or "adult video store" means an establishment which as one of its principal business purposes, offers for sale or rental for any form of consideration any one or more of the following:

(1) Books, magazines, periodicals or other printed matter or photographs, films, motion picture, video cassettes, or video reproductions, slides, or other visual representations which depict or describe "specified sexual activities" or "specified anatomical areas"; or

(2) Instruments, devices, or paraphernalia which are designed for use in connection with "specified sexual activities." A commercial establishment may have other principal business purposes that do not involve the offering for sale or rental of material depicting or describing "specified sexual activities" or "specified anatomical areas" and still be categorized as "adult bookstore" or "adult video store" so long as one of its principal business purposes is the offering for sale or rental for consideration the specified materials which depict or describe "specified sexual activities" or "specified anatomical areas" (as defined below).

(c) "Adult motion picture theater" means an enclosed building designed for five or more patrons used for presenting any material distinguished or characterized by an emphasis on matters depicting, or relating to "specified sexual activities" or "specified anatomical areas" (as defined below) for observation of patrons therein. The term does not include an adult hotel as defined below.

(d) "Adult motion picture arcade" means any place at which slug or coin operated, electronically or mechanically controlled, still or motion picture machines, projector or other image producing devices are maintained to show images to five or fewer persons per machine at any time, and which presents material which is distinguished or characterized by an emphasis on depicting or describing "specified sexual activities" or "specified anatomical areas" (as defined below) for observation by patrons therein. The term does not include an adult hotel as defined below.

(e) "Adult hotel" means a hotel or motel wherein a substantial or significant portion of the material presented over image-producing devices within individual rooms, that are occupied by guests, are distinguished or characterized by an emphasis on matter depicting or describing "specified sexual activities" or "specified anatomical areas" (as defined below).

(f) "Employee" means any and all persons, including independent contractors who work in or at or render any services di-

rectly related to the operation of an adult entertainment establishment but shall not include independent contractors indirectly related to such operation such as janitorial services, construction, maintenance, pest control, and trash removal.

(g) "Specified anatomical areas" means the following:

(1) Less than completely and opaquely covered:

a. Human genitals, pubic region;

b. Anal cleft or cleavage of the buttocks; and female breasts below a point immediately above the top of the areola;

(2) Human male genitals in a discernible turgid state, even if completely and opaquely covered.

(h) "Specific sexual activities" means the following:

(1) Human genitals in a state of sexual stimulation or arousal;

(2) Acts of human masturbation, sexual intercourse or sodomy;

(3) Fondling or other erotic touching of human genitals, pubic region, buttocks or female breasts with the intent to arouse or gratify the sexual desires of the entertainer, employer, or customer.

(i) "Person" means any person, partnership or corporation or joint venture.

(j) "Operator" means any person operating, conducting or maintaining an adult entertainment establishment.

(k) "Morals charge" includes those charges involving prostitution, pimping or promoting prostitution, indecent exposure, illegal use, possession or sale of narcotic or nonnarcotic drugs, sodomy, lewd and lascivious behavior, sexual battery, indecent liberties with a child, incest, bigamy and crimes against nature.

(l) "Diversion" or "diversion agreement" means any formal referral of a defendant in a criminal case to a supervised performance program which upon successful completion results in the dismissal of the charges or complaint which is authorized pursuant to the laws of any city, state, or of the United States.

(Ord. No. 41-431 § 1)

Sec. 3.05.030. License required.

(a) Except as provided in subsection (e) below, from and after the effective date of the ordinance codified in this chapter, no adult entertainment establishment shall be operated or maintained in the city without first obtaining a license to operate issued by the city.

(b) A license may be issued only for one adult entertainment establishment located at a fixed certain place. Any person which desires to operate more than one adult entertainment establishment must have a license for each.

(c) No license or interest in a license may be transferred to any other person.

(d) It is unlawful for any employee or operator to knowingly work in or about, or to knowingly perform any service directly related to the operating of any unlicensed adult entertainment establishment.

(e) All existing adult entertainment establishments at the time of the passage of the ordinance codified in this chapter must submit application for a license within sixty days of the date the ordinance codified in this chapter becomes effective. If an application for such license is not made within a sixty-day period, then such existing adult entertainment establishment shall cease operation. Nothing herein shall be construed to prohibit the city's right to refuse to grant a license to an existing adult entertainment establishment that upon application is not eligible for a license under this chapter.

(Ord. No. 41-431 § 2)

Sec. 3.05.040. Application for license.

(a) Any person desiring to secure a license shall make application in duplicate to the city treasurer's office. The application shall be verified

and accompanied by the license fee. Both copies of the application shall be filed with the city treasurer's office.

(b) The application for a license shall be on a form provided by the city treasurer's office. A partnership application, and the application of any officer or director of a corporation and any stockholders holding more than five percent of the stock of a corporate application shall furnish the following information under oath:

(1) Name and address, including all aliases;

(2) The name of the owner of the premises upon which the adult entertainment establishment is to be located;

(3) The address of the adult entertainment establishment to be operated by the applicant;

(4) A statement by the applicant that he or she is familiar with the provisions of this chapter and is complying with them.

(Ord. No. 41-431 § 3)

Sec. 3.05.050. License fees.

For any adult entertainment establishment the annual license fee shall be one hundred dollars.

(Ord. No. 41-431 § 4)

Sec. 3.05.060. License—Eligibility requirements.

To receive a license to operate an adult entertainment establishment, applicants must meet the following standards:

(a) If the applicant is an individual (1) the applicant must be at least eighteen years of age; (2) the applicant shall not have been convicted of or pleaded nolo contendere to or participated in a diversion agreement after having been charged with a felony or any morals charge as defined herein in any jurisdiction within the last five years immediately preceding the date of the application.

(b) If the applicant is a partnership, joint venture, corporation or any other type of organization where two or more persons have a financial interest:

(1) All persons having a financial interest in the partnership, joint venture or any other type of organization shall be at least eighteen years of age. Financial interest in a corporation includes any officer or director of the corporation and any stockholder holding more than five percent of the stock of a corporation.

(2) No person having a financial interest in the partnership, joint venture, corporation or other type of organization shall have been convicted of or pleaded nolo contenders to, or participated in a diversion program after having been charged with a felony or any morals charge within the immediate five years preceding the date of the application.

(Ord. No. 41-431 § 5)

Sec. 3.05.070. Examination of application by city council.

If an application for a license is in proper form and accompanied by the license fee as provided for in Section 3.05.050 the city council shall examine the application. If the applicant is fully qualified pursuant to the criteria set forth in this chapter, the city council shall issue a license to the applicant within thirty days of the filing of the application. If the city council fails to issue the license based on the application within thirty days after it is filed, it shall be deemed granted. If the city council denies the application within thirty days of the filing of the application, the application is deemed finally denied and the same application may not be made within one year unless there are changed circumstances. If the council denies the application, the applicant may appeal the denial pursuant to the provisions of K.S.A. 60-2101(d) and amendments thereto. If the city council takes action to deny an application, and that action occurs over thirty days after it is filed, the denial shall be of no effect, except that this provision is not intended to limit the ability of

the city council to revoke the license for any of the reasons in Section 3.05.160 of this Code. If the applicant is not present in person or by an attorney during the council session in which action is taken, written notice of the action shall be mailed to the applicant or attorney forthwith. All enforcement of the prohibitions in this chapter related to operating without a license shall be stayed during the greater of the expiration of the appeal period or pending decision on judicial review in the district court of the council's action. This stay shall apply to both initial and renewal licenses.
(Ord. No. 45-533 § 1 (part); Ord. No. 41-431 § 6)

Sec. 3.05.090. Display of license required.

The license shall be displayed in a conspicuous public place within premises licensed as an adult entertainment establishment.
(Ord. No. 41-431 § 7)

Sec. 3.05.100. Renewal of licenses.

(a) Every license issued pursuant to this chapter shall terminate at the expiration of one year from the date of issuance, unless sooner revoked, and must be renewed before operation is allowed in the following year. Any operator desiring to renew a license shall make application for renewal to the city treasurer's office. The application for renewal shall be filed in duplicate and dated by the city treasurer. An application for renewal license filed after the expiration date of the license shall be denied by the city council if the premises the renewal license is being sought for does not comply with the distance requirements set forth in Section 3.05.150. A renewal application shall in all other respects be treated as an application for an initial license.
(Ord. 45-533 § 1 (part); Ord. No. 40-516 § 10)

Sec. 3.05.110. General regulations and prohibited conduct.

Every operator or employee of an adult entertainment establishment shall comply with the following regulations and the failure to comply with the regulations shall be unlawful:

(a) No person under the age of eighteen shall be employed in or around an adult entertainment establishment;

(b) No person under the age of eighteen shall be permitted to enter or remain in an adult entertainment establishment.

(c) No persons shall be knowingly employed in or around an adult entertainment establishment who within one year prior to employment was released from probation from a conviction for a crime of, or participated in a diversion agreement after being charged with a morals charge or a felony.

(d) Every adult entertainment establishment and every person employed by the establishment in the conduct of his or her business shall admit to any and every part of the premises designated in the license at any time any law enforcement officer or official of the city or its police department authorized by the chief of police for inspection of the premises to assure compliance with the regulations of the city. Except that this provision does not apply to rooms occupied by patrons of an adult hotel during periods of such occupancy.

(e) Every adult entertainment establishment must maintain for inspection a list of all employees providing services directly related to the operation of the establishment including their date of birth, race, sex, and social security number.

(Ord. No. 41-431 § 8)

Sec. 3.05.120. Alcoholic beverages.

No alcohol, liquor or cereal malt beverage shall be sold or consumed on the premises of an adult entertainment establishment except this provision shall not apply to rooms rented and occupied by patrons in an adult hotel.
(Ord. No. 41-431 § 9)

Sec. 3.05.130. Private rooms and closed booths prohibited.

(1) Every adult motion picture arcade shall be physically arranged in such a manner that the interior portion of all viewing areas are visible from a common area of the premises and shall not

be obscured by any curtains, drapes, doors or other enclosure except under the following conditions:

(a) The booth is designed for a single occupant;

(b) The booth has a door or curtains which cannot be locked; which may extend downward not closer than fifteen inches from the floor, and which has an open space at the top so that the top of the door or curtain does not extend upward more than six feet from the floor;

(c) Conspicuous signs state, "only one occupant per booth";

(d) There are no openings between booths; and

(e) It can readily be determined from outside the booth that there is no more than one occupant inside the booth.

(2) No licensee, manager, employee or agent shall permit or allow two or more occupants to occupy any booth which has been designated as a booth designed for a single occupant.

(3) No person shall enter into or remain in a booth which has been designated with a sign stating "only one occupant per booth" while another occupant is in the booth.
(Ord. No. 41-431 § 10)

Sec. 3.05.140. Compliance with other regulations required.

No license shall be granted for an adult entertainment establishment unless the licensee fully complies with the health regulations, building codes, zoning ordinances, fire prevention and safety regulations of the city.
(Ord. No. 41-431 § 11)

Sec. 3.05.150. Distance requirements.

(a) No license shall be granted for an adult entertainment establishment or adult hotel which is located within five hundred feet of a church, public or parochial school, public park, residential zoning district, erotic dance studio as defined in Section 3.06.010 of this Code, or any other adult entertainment establishment or adult hotel.

(b) Provided, however, that adult entertainment establishment or adult hotel licenses may be issued for all establishments engaged in the business of adult entertainment establishments or adult hotels as of the date of enactment of the ordinance codified in this chapter, that are located within five hundred feet of a church, public park, public or parochial school, residential zoning district, erotic dance studio as defined in Section 3.06.010 of this Code, or other adult entertainment establishment or adult hotel, so long as the premises are used or held for use as an adult entertainment establishment or adult hotel. This distance is to be measured from the nearest property line of the residential zoning district, church, public or parochial school, public park or other adult entertainment establishment or adult hotel to the nearest property line of the premises on which the adult entertainment establishment or adult hotel is located or of any parking lot designated to be used by the patrons of such an establishment. Provided, however, that:

(1) Such license, once issued, shall not be renewed to any person or premises not identified in the original license; further, that should such a licensed establishment cease to be used for such purpose for a period of ninety days or more, then and in that event, no new adult entertainment establishment or adult hotel license shall be issued for the establishment except as specifically provided by this chapter.

(2) Should a licensed establishment cease to be used for such purpose for a period of ninety days or more, then and in that event the existing license shall be deemed to expire at twelve a.m., noon, on the 91st calendar day of non-use. In no event shall this provision be construed to extend the term of a license issued under this section. Should a license expire pursuant to this provision, the licensee may make application to the license collector for a refund of the portion of license fee attributed to the remaining period of the license. All such applications must be filed at least thirty days prior to the end of the

original term of the license. No refunds shall be made for a period of time less than thirty days.

Periods of time during which such establishments are being remodeled or repaired because of normal wear and tear, desire to improve the quality of the premises, or damage caused by fire or natural disaster such as floods or windstorms, shall not be included in computing the above ninety-day period, provided, that any remodeling or repair must be commenced within ninety days after closure of any structure and completed within a reasonable time thereafter. The chief of police of the Wichita police department shall be notified in writing within thirty days of closing of such establishment for remodeling or repair, such notice to state the date of commencement and estimated or actual completion of remodeling or repair. Any establishment shall not be relicensed and shall cease to be used as an adult entertainment establishment or adult hotel if repair is not commenced within ninety days after such closure, if such repairs are not completed within a reasonable time thereafter and/or if the chief of police is not notified within the thirty-day time period.
(Ord. No. 41-431 § 12)

Sec. 3.05.160. Suspension and revocation of license.

(a) The chief of police after actual service of ten days' written notice to the person holding a license for an adult entertainment establishment or adult hotel pursuant to this title, shall have the authority to suspend such license for a period not to exceed thirty days, for any violation of the provisions of this chapter or other ordinances or statutes regulating conduct in adult entertainment establishments or adult hotels; provided, however that the licensee may appeal such order of suspension to the city council within seven days from the date of such order.

(b) The city council after actual service of ten days' written notice to the person holding a license for an adult entertainment establishment, pursuant to this title, may cause to be suspended for a period of not more than thirty days or may permanently revoke such license for the following reasons:

(1) If the licensee has fraudulently obtained the license by giving false information in the application therefor;

(2) If the licensee, manager, operator, or employee has violated any of the provisions of this chapter;

(3) If the licensee has become ineligible to obtain a license under this chapter;

(4) The nonpayment of any license fees payable hereunder;

(5) For knowingly employing a person who has been, within one year prior to the date of employment, or who during the period of employment is adjudged guilty of or participated in a diversion agreement after being charged with a felony or a morals charge, or within one year prior to employment has been released from probation from a felony or a morals charge.

Provided, that if any of the grounds for revocation herein enumerated are violated by an employee, a manager, or agent, then in absence of proof of knowledge by the licensee, there shall be no revocation, except as herein provided, but there may be a suspension of not more than thirty days; it being further provided that in the event any licensee is subjected to more than two such suspensions in any twelve-month period, his or her license may be revoked on the third such violation.

Upon appeal taken from an order of suspension or revocation the court may stay the order of suspension or revocation upon a showing by the appellant and a finding by the court that a substantial likelihood exists that the movant will eventually prevail on the merits and that the movant will suffer irreparable injury unless the stay is granted. If there is no stay by the court then the order of suspension or revocation shall not be suspended during the pendency of any such appeal. In case of the revocation of a license of any licensee, no new license shall be issued to such person or to any person acting for or on his or her behalf, for a period of six months after the revocation becomes effective.
(Ord. No. 41-431 § 13)

Sec. 3.05.170. Penalty.

Any person who violates any provision of this chapter is guilty of a misdemeanor and, upon

conviction thereof, shall be punished by a fine not to exceed five hundred dollars or by imprisonment for not more than ninety days, or by both such fine and imprisonment.
(Ord. No. 40-516 § 17)

Sec. 3.05.180. Injunctions.

Section 3.05.150 of this chapter is adopted as part of the zoning laws and regulations of the City of Wichita, Kansas, as though said section was fully set forth in Title 28 of this Code. The city attorney may bring an action in the District Court of the Eighteenth Judicial District or any other appropriate court having jurisdiction to enjoin the violation of said section of this Code.
(Ord. No. 40-516 § 18)

Sec. 3.05.190. Invalidity of part.

Should any court declare any section, clause or provision of the chapter to be unconstitutional, such decision shall affect only such section, clause or provision so declared unconstitutional and shall not effect any other section, clause or provision of this chapter.
(Ord. No. 40-516 § 19)

CHAPTER 3.06. AFTER-HOURS ESTABLISHMENTS

Sec. 3.06.010. Purpose.
Sec. 3.06.020. Definitions.
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Sec. 3.06.040. Application—Contents.
Sec. 3.06.050. Fee schedule.
Sec. 3.06.060. Administrative procedures.
Sec. 3.06.070. Immediate suspension due to an immediate threat to public safety.
Sec. 3.06.080. Appeal Procedure.
Sec. 3.06.090. List of Managers.
Sec. 3.06.100. Security Personnel and Control of Premises.
Sec. 3.06.110. Right of Access.
Sec. 3.06.120. Additional regulations and observation thereof required.
Sec. 3.06.130. Premises capacity.
Sec. 3.06.140. False statement of age unlawful.
Sec. 3.06.150. Distance requirements.
Sec. 3.06.160. Conflict in licenses.
Sec. 3.06.170. Violations not exclusive.
Sec. 3.06.180. Penalties.
Sec. 3.06.190. Reserved.

Sec. 3.06.010. Purpose.

The City of Wichita finds that some after-hours establishments within the city contribute to public intoxication, noise, disorderly conduct, assaults, violent crime and other similar problems connected primarily with the routine congregation of persons around such after-hours establishments, especially those which are managed without adequate security and attention to preventing these problems.

The City of Wichita finds that a significant amount of police resources are being expended to address safety issues at after-hours establishments and safety risks are abundant when City personnel are not allowed to enter the facility for safety checks on locked doors and fire suppression devices. The purpose of this Chapter is to regulate the operation of all after-hours establishments so as to minimize the negative effects and to preserve the public safety, health and welfare. (Ord. No. 50-863, § 2, 9-25-18)

Sec. 3.06.020. Definitions.

The following words, as used in this Chapter, have the meanings set forth below:

"After-hours establishment" means any building with an occupancy classification of A, B, E, F, H, M, or S pursuant to the 2018 International Building Code, and/or subsequent versions of the IBC adopted by the City of Wichita, which is used as a venue for a single event, series of events or ongoing activity or business, occurring alone or as part of another business, to which individuals, who are not employees or contractors of the business or establishment, are invited or allowed to enter or remain on the premises and which is open anytime between midnight and 6:00 a.m., and the property or building is not otherwise licensed for the sale of alcoholic beverages or cereal malt beverages or otherwise licensed by the City of Wichita or State of Kansas for a business at that location. This term shall apply to occupancy classified buildings that are owned, leased, or rented as venues for private parties. This term shall not include churches, hospitals, hotels, motels or other boarding houses or private homes. A combination of two or more of the following factors is prima facie evidence that an establishment is an "after-hours establishment":

1) Playing of music either recorded or live;

2) Entertainment such as trivia or games;

3) Sporting events in person or broadcasted on screens;

4) Crowds in excess of 20 people;

5) Alcoholic beverages present;

6) Food by an unlicensed vendor offered for purchase or as a benefit of paid entry;

7) Entry allowed only upon payment of a fee or membership;

8) Establishment monitored by security guards;

9) Advertisements or notifications on social media or by other means that invite the public to attend or participate in functions or activities located on the premises of such establishment.

"Alcoholic beverages" means any alcoholic liquor, as defined by Section 4.04.010(b) of the Code of the City of Wichita and amendments

thereto, or any cereal malt beverage, as defined by Section 4.04.010(h) of the Code of the City of Wichita and amendments thereto.

"Cereal malt beverages" means any fermented but undistilled liquor brewed or made from malt or from a mixture of malt or malt substitute or any flavored malt beverage, as defined in K.S.A. 41-2729, and amendments thereto, but does not include any such liquor which is more than 3.2% alcohol by weight.

"Chief of Police" means the Chief of the Wichita Police Department or designee.

"Conviction" or "violation" shall include, but is not limited to, being placed on diversion or being adjudged guilty upon entering a plea of no contest.

"Fire Chief" means the Chief of the Wichita Fire Department or designee.

"Games" mean an activity engaged in for diversion or amusement.

"License" means the authority to conduct the business of an after-hours establishment within the city limits.

"Licensee" means any person to whom a current license has been issued under this Chapter authorizing such person to conduct the business of an after-hours establishment within the city limits.

"MABCD" is the Metropolitan Area Building and Construction Department, its director and designees.

"Manager" means a person, regardless of the job title or description, who is operating the establishment or who has discretionary powers to organize, direct, carry on, or control the operations of an after-hours establishment. Authority to engage in one or more of the following functions is prima facie evidence that a person is a Manager of the after-hours establishment:

(1) Hire or terminate employees; or

(2) Contract for the purchase of furniture, equipment, or supplies, except for the occasional replenishment of stock; or

(3) Disburse funds of the business, except for the receipt of regularly replaced items of stock; or

(4) Make or participate in making policy decisions regarding operations of the Establishment.

"Music" as used in this Chapter shall apply to live musicians, disc jockeys, and all music amplified through speakers or loud enough to be heard outside of the establishment.

"Old Town Entertainment District" means that area of the City of Wichita bounded by: Central on the North including all property abutting Central to the North, Wabash on the East, including all property abutting Wabash to the East, St. Francis Street on the West, including all property abutting St. Francis to the West, and Douglas on the South including all property abutting Douglas to the South.

"Person" means any individual, owner, operator, corporation, partnership, or association.

"Premises" means any place where an after-hours establishment is operated or maintained and includes all hallways, bathrooms, parking areas, and other adjacent portions of the premises, which are under the control of the licensee or which are utilized by the licensee and are accessible to the public during operating hours.

"Private home" means a building or structure used primarily as a private residence. The term is meant to encompass private citizens gathering in their own homes.

"Trivia" means a quizzing game.

"Venue" means any interior or exterior area, building, room, lot, or space used as a location for people to gather.
(Ord. No. 50-863, § 3, 9-25-18; Ord. No. 52-289, § 1, 11-28-23)

Sec. 3.06.030. License required and exceptions.

A. Except as provided below, it is unlawful for any person to either as the owner, principal, officer, agent, servant, responsible person or employee, to own, lease, manage, maintain or operate an after-hours establishment without

first obtaining a license and paying all fees as required by this chapter, and complying with all other applicable provisions of this code.

B. No separate after-hours establishment license shall be required under this chapter for a business licensed by the State of Kansas or City of Wichita, including but not limited to: entertainment establishment, drinking establishment, drinking establishment restaurant, licensed community event, licensed temporary entertainment district, or sexually oriented businesses.

C. A license under this section is not transferable to another person or location. A change in ownership shall require the new owner to pay a new application fee and secure a new license. (Ord. No. 50-863, § 4, 9-25-18; Ord. No. 52-289, § 2, 11-28-23)

Sec. 3.06.040. Application—Contents.

A. Before any license is granted or issued for an after-hours establishment, an application shall be filed with the City Treasurer, setting forth the following facts:

1. The name, address, social security number, date of birth of the applicant and telephone number where the applicant can be reached between the hours of 8:00 a.m. and 5:00 p.m.;
2. Location of the after-hours establishment;
3. Hours and days the after-hours establishment is to be open and closed;
4. A statement that the applicant is familiar with the conditions imposed and agrees to comply with the conditions of the terms of this Chapter;
5. Maximum occupant load of the building, facility or area;
6. A description of the nature of the activity that will take place at the after-hours establishment.

B. In addition, the applicant must furnish:

1. The names and addresses of the owner of the premises which such establishment is located;
2. The manager or operator and, if a corporation or partnership, all the names and addresses of the officers of such corporation or partnership and any individual who owns twenty-five or more percent of the stock of such corporation. If the license is to be held by a corporation, the resident agent and registered office of said corporation;
3. The name, address, social security number, and date of birth of the applicant, owner, manager and any other responsible persons of the establishment. If a corporation, all the names, addresses, social security numbers and date of birth of the officers, managers or directors of such corporation and any individual who owns twenty-five or more percent of the stock of such corporation. If the license is to be held by a corporation, the resident agent and registered office of said corporation. If the applicant is a partnership, all the names, addresses, social security numbers, and date of birth of all partners of the partnership;
4. A plan to ensure that adequate traffic control, crowd protection and security will be maintained and that underage patrons will not be admitted to the establishment;
5. An emergency management plan, consisting of, but not limited to: fire evacuation, storm shelter provisions, patron crowd control, and emergency access for police, fire and ambulance;
6. Proof of liability insurance;
7. The name of the private security agency, if any, to be employed to provide security for the after-hours establishment;
8. Detailed plans and drawing of after-hours establishment and adjoining areas indicating the entertainment space, the waiting area for persons seeking admission, the parking areas, all restrooms, coat rooms, game rooms and all other

spaces accessible by patrons and all interior and exterior doors and windows, and all sources of exterior lighting;

9. A statement as to whether the applicant has ever had any license denied, revoked or suspended by the City of Wichita or the State of Kansas or any other governmental entity, the reason therefor and the business activity or occupation of the individual subsequent to such suspension, revocation or denial; and

10. A statement that the applicant consents and agrees that any member of the Police Department, Fire Department, or MABCD of the City may, at any time, enter and inspect any part of such premises.

11. In addition to the requirements set forth above, all after-hours establishments located within the Old Town Entertainment District shall submit a written safety plan on a form developed and approved by the Chief of Police, which at a minimum, includes the following:

    (a) The number and location of personnel responsible for crowd management;

    (b) The occupancy load of the establishment, average patron attendance, and the type of entertainment events held at the establishment;

    (c) The establishment's written identification checking and patron search procedures;

    (d) The establishment's written procedures for handling violent or criminal incidents and other emergencies and its notification procedures of the Wichita Police or Fire Departments regarding such incidents;

    (e) The establishment's written procedures for crowd control and preventing overcrowding;

    (f) A description of the training provided or completed by personnel including conflict de-escalation training;

    (g) The establishment's written plan for maintaining order in areas adjacent to the licensed premises;

    (h) Current contact information for the individual or position responsible for addressing safety, security and citizen or neighborhood complaints;

C. A license shall be denied if one or more of the following conditions exist:

1. Any applicant, owner, establishment manager, officer, manager or director of a corporate applicant, any person owning more than twenty-five (25) percent or more of the stock of a corporate applicant, or any partner of a partnership applicant of the after-hours establishment has, within the preceding ten (10) years, has plead guilty, been convicted of or placed on diversion for a:

    (a) Felony; or

    (b) For any conviction or diversion of a misdemeanor within the last three years involving:

        i. Laws pertaining to any controlled substance(s) prohibited by the Uniform Controlled Substance Act, K.S.A. 65-4101 et seq. and amendments thereto:

        ii. Laws pertaining to alcohol or cereal malt beverage;

        iii. Prostitution;

        iv. Public indecency;

        v. A sex crime or other person crime as defined by Chapter 21 of the Kansas Statutes Annotated;

        vi. Any crime of violence or physical force;

        vii. Any weapons charge; or

        viii. Violations of this Chapter or Chapters 3.30 of the Code of the City.

2. An applicant is less than twenty-one (21) years of age.

3. The premises do not comply with the housing, fire and zoning codes of the City of Wichita.

4. The applicant has knowingly made a false, misleading or fraudulent statement of fact to the City in the application process.

5. The application is incomplete or if it contains any material misrepresentation.

6. The application does not propose adequate measures for the protection of the public health, safety and welfare in terms of traffic control, crowd protection and security, the monitoring of the ages of patrons or an emergency management plan.

7. A license shall not be renewed if two or more "documented incidents" of "trigger events" according to Chapter 8.02 occurred within 90 days or if the applicant is under indictment, charge or information for any felony or for any violation of Title 3, 4 or 5 of the Code of the City of Wichita.

D. The application is filed with the City Treasurer. The license will not be issued until the application has been reviewed and approved by the Chief of Police, Metropolitan Area Building and Construction Department (MABCD) and the Fire Chief.

E. Upon submission of a completed application, a license shall be granted within 60 days unless a disqualifying factor is discovered. The City may take additional time for review and/or approval for good cause shown.

F. As a condition of issuing a license for an after-hours establishment, the Chief of Police may impose conditions which are necessary to protect the public health, safety and welfare. Conditions shall be based upon specific and articulable facts reasonably related to ensuring public health and safety, including but not limited to the protection of minors from alcohol and other criminal activity, prevention of public nuisances, enhancement of fire protection, traffic control, crowd control, security personnel, security lighting and emergency access. Such conditions are only subject to change at:

1. The time of renewal of the license; or

2. After a hearing before the City Council upon a request by the applicant to modify the conditions.

(Ord. No. 50-863, § 5, 9-25-18; Ord. No. 52-289, § 3, 11-28-23)

Sec. 3.06.050. Fee schedule.

The fee schedule under this chapter shall be an annual fee of $250 or a single event fee of $50. (Ord. No. 50-863, § 6, 9-25-18; Ord. No. 52-289, § 4, 11-28-23)

Sec. 3.06.060. Administrative procedures.

A. An after-hours establishment license may be suspended, revoked, or denied if:

1. Any data furnished on the application is incomplete, false or is not updated as required by this Chapter;

2. Failure to comply with any condition of the after-hours establishment license;

3. The licensee or a manager has become ineligible to hold a license;

4. The owner, manager, partner, director or other person owning twenty-five percent or more of the stock of a corporate licensee or a partner of a partnership licensee is convicted of any violation, which would make them ineligible to obtain an after-hours establishment license;

5. The premises are in violation of the health, housing, fire, zoning or building codes of the City of Wichita, or the State of Kansas;

6. Evidence of a material variance in the actual plan and design of the premises from the plans submitted pursuant to this Chapter, or from the original design of the premises when initially licensed, with the concurrence of the MABCD;

7. Any Police Officer, Fire Department Official, Office of MABCD is refused access to inspect the premises during business hours;

8. The premises are in violation of the maximum occupant load of such building;

9. The licensee or any employee, agent or responsible person is found to be in violation of the provisions of this Chapter or any other ordinance, rule or regulation by the City Council of the City of Wichita;

10. The licensee fails to comply with additional security requirements or other conditions imposed by the Chief of Police, pursuant to the provisions of this Chapter; or

11. Two or more "documented incidents" of a "trigger event" within 90 days, as defined by Chapter 8.02 have occurred on or within the parking lot of the licensed premises of the after-hours establishment.

12. The premises is a nuisance to the neighborhood based on trash and debris on the property or flowing from the property.

13. There is a refusal to allow immediate entry to the property during any hours in which any person is present on the premises.

B. The Chief of Police shall provide written notice of the intent to revoke, suspend or deny an after-hours establishment license by personal service or by certified mail, return receipt requested. The notice shall be sent to the mailing address of the licensee on file with the City Treasurer. The notice shall provide the effective date of the revocation or suspension of the license. Such notice shall detail the reasons or basis for the revocation, denial, or suspension of the license. No revocation or suspension shall be imposed on less than five (5) business days' notice to the licensee, and shall specify the rights of the licensee to appeal any such denial, revocation or suspension.

C. In lieu of suspension or revocation, the Chief of Police may impose additional conditions on the license to protect the public health, safety and welfare. The imposition of such additional conditions shall be based on violations occurring on the premises by the licensee, his/her employees, patrons, agents or responsible person of the provisions of this Chapter, the laws of the City of Wichita, or state or federal laws. Conditions shall be based upon specific and articulable facts reasonably related to ensuring public health and safety, including but not limited to: the protection of minors from alcohol, protection of patrons from criminal activity, including but not limited to homicide, aggravated assault, weapon offenses, drug offenses and disorderly conduct, prevention of public nuisances, enhancement of fire protection, traffic control, crowd control, security lighting and emergency access.

D. The Chief of Police shall notify the licensee in writing of any additional conditions imposed on the licensee. Such notice shall specify the additional conditions, set forth facts which support the basis for the addition of such conditions and a time frame for completion of such additional conditions. Such conditions may include, but are not limited to the following:

1. Restrictions upon the hours of operation of the establishment;

2. Restrictions upon the maximum occupancy within the establishment;

3. Requiring the owner, licensee or responsible person to identify individuals that are prohibited from entering onto the premises;

4. Completion of improvements upon the licensed premises that have an impact on mitigating crime such as fences, lights, security cameras or other devices;

5. Increased presence of security personnel;

6. Other conditions which may be appropriate to remedy violations of this Chapter by the licensee.

(Ord. No. 50-863, § 7, 9-25-18)

Sec. 3.06.070. Immediate suspension due to an immediate threat to public safety.

A. The Chief of Police, or designee, may require a licensee of an after-hours establishment to cease operations and disperse all patrons if any person who is either the owner, principal, officer, agent, servant, responsible person or employee, to own, lease, manage, maintain or operate an after-hours establishment refuses to allow entry to the establishment by Wichita Police Department, Wichita Fire Department or MABCD or whenever conduct by disorderly patrons reaches a magnitude that presents an immediate threat to the public safety and well-being of the patrons and the general public in the vicinity of the establishment. The establishment shall remain closed until the Chief of Police or designee has determined the threat has subsided.

B. After an immediate suspension, the establishment may resume business provided that the situation giving rise to the emergency temporary suspension of the establishment has been addressed effectively as determined by the Chief of Police. The Chief or designee shall promptly complete a report outlining the basis for his/her decision to suspend activity and recommendations to adequately remedy the deficiencies to the after-hours establishment's security or safety plans. A copy of the report shall be provided to the licensee, at the time the report is submitted to the Chief. The Chief or his designee shall, within five (5) business days, meet with the licensee regarding the report and make a finding to either continue the temporary suspension for a designated period, end the suspension, or recommend revocation of the license. Within three (3) business days of receiving the notice of temporary suspension, the licensee may appeal the Chief's decision to the City Council. The notice of appeal shall be filed with the City Clerk. The City Council shall conduct a hearing pursuant to Section 2.04.235 of the Code of the City of Wichita at the Council's next available meeting, which must not be more than ten business days from the filing of the notice of appeal.

C. It is unlawful for any person to fail to comply with a directive to close issued by the Chief of Police or designee under the authority of this section. Failure to comply is a misdemeanor punishable pursuant to 3.06.180.
(Ord. No. 50-863, § 8, 9-25-18)

Sec. 3.06.080. Appeal Procedure.

A. Unless otherwise specified by this Chapter, any applicant or licensee aggrieved by the denial, suspension, modification, revocation or imposition of additional conditions, of an after-hours establishment license may file with the City Clerk a written notice of appeal to the City Council within 14 days of the decision by the Chief of Police or his/her designee. The Notice of Appeal shall specify:

1. the name and address of the appellant;
2. the date of the application;
3. the date of the denial, suspension, modification, revocation or imposition of additional conditions of the license or application;
4. the factual basis for the appeal.

B. Pursuant to Section 2.04.237 of the Code of the City of Wichita, upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before a panel of the City Council, no later than thirty days from the date of the filing of the Notice of Appeal with the City Clerk. Any appeal shall stay the suspension, modification or revocation of the license until the matter is heard by the City Council.

C. The City Council may approve the denial, suspension, modification, revocation, or imposition of additional conditions, overrule the denial, suspension, modification, revocation or imposition of additional conditions or modify the decision of the Chief of Police.

D. In any hearing before the City Council pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation, is *prima facie* evidence of such violation of the provisions of this chapter of the Code of the City of Wichita.

E. The Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation, modification or suspension of the license by the City Council.
(Ord. No. 50-863, § 9, 9-25-18; Ord. No. 52-289, § 5, 11-28-23)

Sec. 3.06.090. List of Managers.

If, at any time after the filing of the application or during the term of a license, a new manager is hired who has not been identified to the Wichita Police Department, the applicant or licensee is required to furnish, within ten business days, the name, address and date of birth of such manager or responsible person to the City Treasurer. Similarly, the licensee is required to notify the City Treasurer whenever a person listed on the application or supplemental list is discharged. The Chief of Police or his/her designee shall investigate the criminal history of all such managers or responsible persons and may revoke or decline to renew a license when any such person has the disqualifying history described in this chapter.
(Ord. No. 50-863, § 10, 9-25-18)

Sec. 3.06.100. Security Personnel and Control of Premises.

A. It is the obligation of the owner, manager, licensee or responsible person and a condition of the license to maintain, at all times when the after-hours establishment is open for business, adequate security personnel for the premises of such business.

B. The owner, licensee, manager or responsible person shall provide for the orderly dispersal of patrons from the premises of an after-hours establishment at closing time, and shall prevent patrons from congregating or loitering on the premises of the establishment.

C. The owner, licensee, manager or another responsible person shall be responsible to ensure that an adequate number of security personnel are employed and in attendance before, during and following any event as is necessary in order to maintain order and ensure compliance with all applicable federal, state and city laws and ordinances.

D. The owner, licensee, manager or responsible party of an after-hours establishment is responsible for exercising appropriate control over its invitees on the premises for such purposes as preventing unnecessary noise, litter, trespass, loitering, property damage, traffic obstruction and similar activities which may constitute a nuisance.

E. If the history of operation of an after-hours establishment shows inadequate control of litter, the health officer may impose appropriate regulations, including the posting of a bond, to ensure litter prevention or clean-up as a condition of continued validity of the existing license or of the issuance of a future license. Such decision may be appealed pursuant to the procedures set forth in this chapter.

F. One of the purposes of the security personnel requirement is to maintain the public peace and order on the premises of an after-hours establishment. The licensee is under a continuing obligation to take reasonable measures, including to call the police department, to curtail any conduct which is or threatens to be in violation of state or local laws or offensive to public health, decency, morality, or peace and order, including, without limitation, minors in possession of liquor or tobacco products, use or possession of controlled substances, crimes of violence and disorderly conduct. Failure to immediately notify law enforcement of criminal activity occurring on the licensed premises shall be grounds for revocation or suspension of the license.
(Ord. No. 50-863, § 11, 9-25-18)

Sec. 3.06.110. Right of Access.

During any hours in which any person is present on the premises, all after-hours establishments shall be open to inspection by MABCD, Fire, Zoning, and Wichita Police Officers or other law enforcement agencies. Failure to allow entry may result in an immediate suspension or long-term suspension or revocation of the license.
(Ord. No. 50-863, § 12, 9-25-18)

Sec. 3.06.120. Additional regulations and observation thereof required.

A. No licensee, owner, principal, officer, manager, responsible person or other employee of an after-hours establishment coming in contact with members of the public may knowingly, or in circumstances when he or she should have known, allow or permit the following to occur on the premises:

1. *CONTROLLED SUBSTANCES.* Controlled substances may not be possessed, offered for sale or consumed on the premises of the after-hours establishment.
2. *EMPLOYMENT OF MINORS UNDER EIGHTEEN.* Persons under eighteen years of age may not be employed in, about or on the premises of an after-hours establishment.
3. *ILLEGAL CONSUMPTION OF ALCOHOL.* Alcoholic liquor or cereal malt beverages may not be consumed or possessed by any person at an after-hours establishment after midnight, but before the hour of midnight, the premises may operate as a BYOB establishment pursuant to K.S.A. 41-719 (j).
4. *LOITERING:* No patron of the establishment, while on the premises of such establishment, shall be allowed to loiter, create a public nuisance or breach of the peace.
5. *MAXIMUM NOISE LEVELS.* Noise may not exceed the maximum allowable noise levels set forth in Chapter 7.41 of the Code of the City of Wichita. Noise shall not be of such volume, intensity or duration as to disturb a person of reasonable sensibilities. The owner, manager or responsible person shall be strictly liable for all noise produced within the after-hours establishment.

(Ord. No. 50-863, § 13, 9-25-18)

Sec. 3.06.130. Premises capacity.

It shall be the duty of the Fire Chief and the Director of the Metropolitan Area Building Department to determine the number of persons who can safely be accommodated at any one time in any building, premises or location where any after-hours establishment is located. The Fire Chief and the Director of the Metropolitan Area Building Department shall rate and limit the occupancy of the building, premises or location and furnish a certificate thereof to the owner or operator of such after-hours establishment, which owner shall be required to post such certificate near the main exit in the building. Such owner, operator, licensee or responsible person is hereby required to limit the attendance at such after-hours establishment to such capacity as has been determined by the Fire Chief and Director of the Metropolitan Area Building Department. It shall be unlawful to post a certificate of occupancy showing a greater capacity than that shown by the Metropolitan Area Building Department and Fire Chief.

The penalty assessed by the court for violating the premise's maximum occupancy, shall not be less than the minimum penalty required by Section 15.01.110 of the Code of the City of Wichita.

(Ord. No. 50-863, § 14, 9-25-18)

Sec. 3.06.140. False statement of age unlawful.

It is unlawful for any person to make any false statement as to his or her age for the purpose to gain admission to, or remain in any after-hours establishment, or for the purpose of enabling any other person to gain admission to or remain in any after-hours establishment. Such action shall be punished by a fine not more than $500 nor more than 30 days imprisonment or both.

(Ord. No. 50-863, § 15, 9-25-18)

Sec. 3.06.150. Distance requirements.

A. An after-hours establishment license does not permit and shall not be issued to any person for the operation of an after-hours establishment if such establishment is within 300 feet of any church, public park, public or parochial school or residential zoning district.

B. The distance is to be measured from the nearest property line of the residential zoning district, church or public or parochial school to the nearest property line of the premises on which the establishment is located or to any parking lot designated to be used by the patrons of such establishment.

C. The distance requirements in this section shall not apply to property which has received the appropriate zoning approval for such use, as required by the Wichita-Sedgwick County Unified Zoning Code.
(Ord. No. 50-863, § 16, 9-25-18)

Sec. 3.06.160. Conflict in licenses.

A. An after-hours establishment license does not permit and shall not be issued to any person for the operation of an after-hours establishment if such establishment is licensed to sell alcoholic liquor or cereal malt beverage or if alcoholic liquor or cereal malt beverage will be offered, consumed or served on the premises; and

B. An after-hours establishment license shall not replace any city or state license or permit that would be required based on the services offered at the establishment.
(Ord. No. 50-863, § 17, 9-25-18)

Sec. 3.06.170. Violations not exclusive.

The provisions of this Chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be taken by the city for a violation of any ordinance of the city or statute of the State of Kansas.
(Ord. No. 50-863, § 18, 9-25-18)

Sec. 3.06.180. Penalties.

Any person convicted of this chapter shall be punished by a fine of not less than $1,000.00 nor more than $2,500 and up to one year imprisonment.
(Ord. No. 50-863, § 19, 9-25-18)

Sec. 3.06.190. Reserved.

Editor's note—Ord. No. 52-289, § 6, adopted Nov. 28, 2023, repealed § 3.06.190, which pertained to licensing of existing entities that qualify as after-hours establishment, and derived from Ord. No. 50-863, § 20, adopted Sept. 25, 2018.

CHAPTER 3.07. ESCORT SERVICES

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Sec. 3.07.005. Preamble.

Whereas, the City of Wichita has endeavored to license the operation of escort services within the city limits and has adopted regulation of said businesses to discourage their use to promote sexual activity among licensees and the general public; and

Whereas, courts in various jurisdictions of the United States have held that it is a legitimate exercise of a governing body's police powers to restrict through licensing the extent to which escort services may be utilized as devices to engage in sexually oriented businesses; and

Whereas, the City of Wichita has experienced a correlation between arrests for prostitution and other prohibited sexual activity and the operation of escort services; and

Whereas, the city desires to protect the health, safety and welfare of its citizenry; and

Whereas, it is not the intent of the city to suppress any right of free association protected by the First Amendment to the United States Constitution, but to enact a content neutral ordinance which addresses the public health concerns of escort services; and

Whereas, it is a proper exercise of governmental regulation to base fees on actual costs of review, issuance, enforcement and regulation of business and franchise licensing; and

Wherefore, the City of Wichita enacts this ordinance amending the current licensing ordinances applicable to escorts and escort services. (Ord. No. 45-909 § 1)

Sec. 3.07.010. Definitions.

The following words, as used in this chapter, shall have the meaning ascribed to them in this section:

(a) "Consideration" is money or money's worth.

(b) "Crimes involving moral turpitude" includes charges of prostitution, patronizing a prostitute, promoting prostitution, indecent exposure, lewd and lascivious behavior, sodomy, promoting sodomy for hire, patronizing a person offering sodomy for hire, sexual battery, loitering for the purposes of solicitation, indecent liberties with a child, incest, adultery, bigamy, promoting obscenity, promoting obscenity to minors, displaying material harmful to minors, and possession, sale or distribution of any illegal drug.

(c) "Designated health officer" shall mean the city health director and his or her designated representative.

(d) "Employee" means any and all persons including independent contractors who work in, at, or render any services to, the patrons of an escort service, or who render any services directly related to the operation of an escort service.

(e) "Escort" is any person who is held out to the public as available for hire and who,

for monetary consideration in the form of a fee, commission or salary, consorts with or accompanies, or who offers for monetary consideration, to consort with or accompany another or others to or about social affairs, places of entertainment or amusement within any place of public resort or within any private quarters.

(f) "Escort service" is any person, as defined herein, which for a fee, commission, profit, reward, payment or other monetary consideration furnishes, refers, or offers to furnish or refer escorts, provides or offers to introduce patrons to escorts, or arranges for escorts to accompany patrons to or about social affairs, places of entertainment or amusement, about any place of public resort or within any private quarters.

(g) "Escort service runner" is any person, not an escort, who for a salary, fee, hire, reward or profit, as the agent for either an escort service or a patron, contacts or meets with escort patrons or escort services at any location other than the established open office, as defined hereunder, whether that person is employed by the escort service or any business, or is self-employed.

(h) "Licensee" is a person who is the holder of a valid license under this chapter. A licensee includes an agent, servant, employee or other person while acting on behalf of that licensee whenever such licensee is or would be prohibited from doing or performing an act or acts under this title.

(i) "Offer to provide acts of sexual conduct" is to offer, propose or solicit to provide sexual conduct to a patron. Such definitions include all conversations, advertisements and acts which would lead a reasonably prudent person to conclude that such acts were to be provided.

(j) "Open office" is an office at the licensed escort service address from which escort business is transacted. To qualify as an open office it is required that:

(1) Business hours be established and posted, that the office be open to the public and patrons or prospective patrons during such business hours, and that the office be accessible to business invitees, license officials and law enforcement officers through a security system during all other hours that escorts are working;

(2) The office be managed by the owner or management employee of the owner having authority to bind the service to escort and patron contracts, and adjust patron and consumer complaints;

(3) All telephone lines and numbers listed to the escort service or advertised as escort service numbers terminate at the open office and at no other location;

(4) An index of all employees and escorts be kept in the open office, along with copies of the licenses of those employed to work as escorts or escort service runners, and said index shall be open to inspection at the request of any law enforcement officer who is on official duty;

(5) All business records be kept in the open office, including records of escort calls and referrals, stating the name and driver's license number (or other form of picture identification) of the patron, as well as the state of issuance of the driver's license (or other picture identification). Such records shall also include the date and time of referral, name of the escort who accompanied the patron, whether the referral resulted in a contract, and the total fee received from the patron, if any. The business records described in this section shall be subject to inspection at the request of any law enforcement officer who is making said request for inspection pursuant to said officer's lawful duties as a law enforcement officer. The refusal of a licensee to allow such an inspection shall not be a criminal violation of

the ordinance codified in this chapter nor shall it be considered grounds for suspending, revoking or otherwise taking punitive measures or action against the licensee or the escort service's license. However, in the event of such a refusal, such an inspection may be conducted upon the issuance of a valid search warrant, issued under the authority of K.S.A. 22-2501, and amendments thereto;

(6) All of the business records required to be kept and maintained by an escort service licensed under the ordinance codified in this chapter shall be retained by the escort service for a minimum period of one year, and shall be subject to verification on a quarterly basis by the chief of police or the chief's duly authorized representative upon request. This quarterly examination of the records shall be permitted solely for the purpose of verifying that such records are being kept, and shall not be for the purpose of gathering information. Refusal by the licensee to allow examination of such records for the sole purpose of verifying that the licensee is in compliance with the record-keeping requirements of the ordinance codified in this chapter shall not be deemed to be a criminal violation, however, if the refusal is unreasonable it may result in revocation or suspension of the escort service's license.

(k) "Operator" is any person operating, maintaining or conducting the business of an escort service.

(l) "Patron" is a customer or any person who contracts with an escort service for the purpose of hiring an escort, or for monetary consideration contracts with, or hires an escort.

(m) "Person" is any individual, firm, corporation, partnership, limited partnership, joint venture or association of any kind.

(n) "Service-oriented escort" is an escort who:

(1) Operates from an open office; and

(2) Does not employ or use an escort service runner; and

(3) Does not advertise that sexual conduct will be provided, or work for an escort service which so advertises; and

(4) Does not offer, solicit, agree to provide or provide sexual conduct.

(o) "Service-oriented escort service" is an escort service which:

(1) Maintains an open office at an established place of business; and

(2) Does not use an escort service runner; and

(3) Does not advertise, order, solicit, agree to provide or provide sexual conduct to a patron; and

(4) Employs or provides only escorts who are licensed pursuant to this chapter.

(p) "Sexual conduct" means the engaging in or the commission of an act of sexual intercourse, oral-genital contact, anal copulation, or the touching of the sexual organs, pubic region, buttocks or female breast of a person for the purpose of arousing or gratifying the sexual desire of another person.

(q) "Sexual gratification" is sexual conduct as defined in subsection (o) of this section.

(r) "Sexual stimulation" is to excite or arouse the prurient interest of another, or to offer or solicit acts of sexual conduct as defined in subsection (o) of this section.

(s) "Sexually oriented acts" are sexual conduct as defined in subsection (o) of this section.

(t) "Sexually oriented escort" is an escort who:

(1) Employs as an employee, agent or independent contractor, an escort service runner; or

(2) Works for, as an agent, employee or independent contractor, or is referred to a patron by a sexually oriented escort service; or

(3) Advertises that sexual conduct will be provided, or as an agent, employee or independent contractor, works for or is referred to a patron by an escort service which so advertises; or

(4) Solicits, offers, agrees to provide or does provide acts of sexual conduct to an escort patron; or

(5) Accepts an offer or solicitation to provide acts of sexual conduct for a fee in addition to the fee charged by the escort service.

(u) "Sexually oriented escort service" is an escort service which:

(1) Engages in advertising to make the prospective patron believe that acts of sexual conduct or sexual stimulation will be provided; or

(2) Uses as escorts persons known to have violated the laws regarding felonies or crimes of moral turpitude as defined herein; or

(3) Does not maintain an open office; or

(4) Employs as an employee, agent or independent contractor, or uses an escort service runner; or

(5) Advertises that sexual conduct will be provided or that escorts which provide such sexual conduct will be provided, referred or introduced to a patron; or

(6) Solicits, offers or agrees to provide or does provide acts of sexual conduct to a patron; or

(7) Employs, contracts with, provides or refers escorts who do not possess escort licenses as required pursuant to this chapter; or

(8) Does not deliver contracts to every patron or customer; or

(9) Employs, contracts with, refers, or provides to a patron a sexually oriented escort.

(Ord. No. 45-909 § 2; Ord. No. 42-566 § 1)

Sec. 3.07.020. License required.

It is unlawful within the city limits for any person, whether as principal, officer, agent, servant or employee to conduct, manage, operate, maintain or perform services as an escort service without having first obtained a license to do so as required by this chapter.
(Ord. No. 42-269 § 2)

Sec. 3.07.030. Sexually oriented escort services unlawful.

It is unlawful within the city limits for any person, whether as principal, officer, agent, servant or employee to conduct, manage, operate, maintain or perform services as a sexually oriented escort service regardless of license.
(Ord. No. 42-269 § 3)

Sec. 3.07.040. License exclusive to person and premises issued.

(a) The license required pursuant to this chapter shall be issued for one premises or one person. The address of the premises for which the license is requested and the name of the person who will be the licensee shall be clearly stated in all applications and renewal requests.

(b) Licenses issued hereunder may not be transferred from one premises to another or from one person to another, and shall be renewable only if the renewal license is to be issued to the same person. Within thirty days after the sale or transfer of any interest in an escort service, any license heretofore issued shall be null and void. A new application shall be made by any person desiring to own or operate the escort service.

(c) No escort service shall be operated under any name or conducted under any designation not specified in the license for that business.
(Ord. No. 42-269 § 4)

Sec. 3.07.050. License fees.

For every escort service there shall be an annual license fee of five hundred dollars. This fee shall accompany all initial license applications and all renewal requests, and a license shall not be issued until the fee is paid in full.
(Ord. No. 45-909 § 3; Ord. No. 42-269 § 5)

Sec. 3.07.060. License renewal.

The term of a license issued pursuant to the provisions of this chapter is one year. Any escort service license which has not been suspended or revoked may be renewed for a period of one year on written application to the city treasurer's office. Such application shall be under oath on a form provided by the city treasurer, and shall contain all the information required by Section 3.07.090, and any amendments thereto.

Application for a license renewal must be made not later than thirty days prior to the date of expiration of the license.
(Ord. No. 42-269 § 6)

Sec. 3.07.070. Applicability of regulations to existing businesses.

The provisions of this chapter shall be applicable to all businesses participating in the activities described in this chapter, regardless of when established. All existing escort services at the time of the passage of the ordinance codified in this chapter must submit an application for a license within sixty days of the effective date of the ordinance codified in this chapter.
(Ord. No. 42-269 § 7)

Sec. 3.07.080. Display of license required.

The license issued pursuant to the requirements of this chapter shall be displayed in a conspicuous public place within the premises licensed as an escort service.
(Ord. No. 42-269 § 8)

Sec. 3.07.090. Application for escort service license.

(a) Any person desiring to obtain a license to operate an escort service shall make written application in duplicate to the city treasurer's office. The application shall be verified and accompanied by the license fee. Both copies of the application shall be filed with the city treasurer's office.

(b) The application shall be on a form provided by the city. All applicants shall provide the following information under oath:

(1) The full true name and any other aliases used by the applicant;

(2) The present address and telephone number of the residence and business of the applicant;

(3) The proposed address and name or names of the escort service for which a license is sought, and the hours that the escort service will be open to the public;

(4) The name of the owner of the premises upon which the escort service is to be located;

(5) Written proof that the applicant is at least eighteen years of age;

(6) All prior criminal convictions excepting minor traffic offenses, and the date and locations of such convictions;

(7) Two photographs of the applicant two inches by two inches in size, taken within thirty days immediately preceding the date of application. One photograph will be sent to the chief of police and one photograph shall be affixed to the license;

(8) Fingerprints of the applicant;

(9) Information as to whether such individual or business has ever been refused any similar license or permit, or has had any similar license or permit issued to such individual or business in Wichita or elsewhere revoked or suspended, and the reason or reasons therefor; and

(10) A statement by the applicant that he or she is familiar with the provisions of this chapter and is complying and will comply with them.

(c) If the applicant is a corporation, the name of the corporation shall be set forth exactly as shown in its Articles of Incorporation or Charter, together with the state and date of incorporation,

the names, residential addresses, and dates of birth of each of its current officers and directors, and each stockholder holding more than five percent of the stock in the corporation. The corporation applicant shall designate one of its officers to act as its responsible managing officer. Such designated person shall complete and sign all application forms and provide all information required in subsection (b) of this section, but only one application fee shall be charged.

(d) If the applicant is a partnership, the application shall set forth the names, residential addresses, and dates of birth of each of the partners, including limited partners. If the applicant is a limited partnership, it shall furnish a copy of its certificate of limited partnership. If one or more of the partners is a corporation, the provisions of subsection (c) of this section pertaining to corporations shall apply. The partnership or limited partnership applicant shall designate one of its partners to act as its responsible managing partner. Such designated person shall complete and sign all application forms and provide all information required in subsection (b) of this section, but only one application fee shall be charged.
(Ord. No. 42-269 § 9)

Sec. 3.07.100. License—Eligibility requirements.

To receive a license to operate an escort service, applicants must meet the following standards:

(a) If the applicant is an individual:

(1) The required fees must have been paid;

(2) The application must conform in all respects to the provisions of this chapter;

(3) The applicant must not have knowingly made a false or misleading statement of a material fact in the application;

(4) The applicant must be at least eighteen years of age;

(5) The applicant must not, within five years immediately preceding the date of the filing of the application, have been convicted of or pleaded nolo contendere in any jurisdiction to a felony, or any crime involving moral turpitude as defined in this chapter. The term "conviction" shall include being placed on diversion;

(6) The applicant must not have had a similar type of license in any jurisdiction previously suspended or revoked for good cause within five years immediately preceding the date of the filing of the application;

(7) The operation of the business as proposed, if permitted, must comply with all applicable building, fire, health and zoning laws.

(b) If the applicant is a partnership, joint venture, corporation or any other type of organization where two or more persons have a financial interest:

(1) All persons having a financial interest in the partnership, joint venture or any other type of organization shall be at least eighteen years of age. Financial interest in a corporation includes any officer or director of the corporation and any stockholder holding more than five percent of the stock of a corporation.

(2) No person having a financial interest in the partnership, joint venture, corporation or other type of organization shall, in any jurisdiction, have been convicted of, pled nolo contendere to, or participated in a diversion program, after having been charged with a felony or any crime involving moral turpitude within the immediate five years preceding the date of the application.

(Ord. No. 42-269 § 10)

Sec. 3.07.110. Examination of application by city council.

If an application for a license is in proper form and accompanied by the license fee as provided for in Section 3.07.050, the city council shall, after review and recommendation by the city manager, examine the application. If the applicant is fully

qualified pursuant to the guidelines set forth in this chapter, the city council shall issue a license to the applicant within thirty days from the date of the filing of the application. If the city council fails to act on the application within thirty days after it is filed, it shall be deemed granted. If the city council denies the application within thirty days of the filing of the application, the application is deemed finally denied and the same application may not be made within one year unless there are changed circumstances. If the council denies the application, the applicant may appeal the denial pursuant to the provisions of K.S.A. 60-2101(d), and amendments thereto, within thirty days of the denial. If an application is denied by the city council over thirty days after it is filed, the denial shall be of no effect except that this provision is not intended to limit the ability of the city council to revoke the license for any of the reasons in Section 3.07.120 of this Code.
(Ord. No. 42-269 § 11)

Sec. 3.07.120. Suspension or revocation of escort service license.

(a) Any license issued for the operation of an escort service pursuant to this chapter may be suspended or permanently revoked upon the following grounds:

(1) The licensee has fraudulently obtained the license by giving false information in the application therefor, or has otherwise made a material misrepresentation of fact in the application;

(2) The licensee has become ineligible to obtain a license under this chapter;

(3) The licensee, any employee, agent, manager, operator or any other person connected or associated with the license as a partner, director, officer, or stockholder has offered or agreed to or rendered the service of a sexually oriented escort;

(4) The licensee, employee, agent, manager, operator or any other person connected or associated with the license as a partner, director, officer or stockholder has otherwise violated any of the provisions of this chapter;

(5) The nonpayment of any license fees payable hereunder;

(6) The licensee has been convicted, subsequent to the issuance of any license of a crime which is either a felony or a crime involving moral turpitude as defined herein;

(7) For employing a person who has been, within three years prior to the date of employment, or who during the period of employment is adjudged guilty of a felony or a crime involving moral turpitude, as defined herein, or within three years prior to employment has been released from probation from a conviction of a felony or a crime involving moral turpitude as defined herein. It is further provided that the term "adjudged guilty" shall include being placed on diversion. It shall be an absolute defense to an alleged violation of this section that the escort employed by the escort service was a licensed escort under the ordinance codified in this chapter;

(8) The licensee is a corporation and is not or is no longer qualified to transact business in the State of Kansas.

(b) To revoke a license, the chief of police, upon five days' written notice to the licensee, shall have the authority to suspend such license for a period not to exceed thirty days. The cause for such revocation shall be set forth in the notice, and the licensee may appeal such an order of suspension in writing to the city council within seven days from the date of such order.

(c) The city council, upon five days' written notice to the licensee may permanently revoke or cause to be suspended such license for any of the reasons enumerated in subsection (a) above. Provided, that if any of the grounds for revocation herein enumerated are violated by an employee, manager, operator or agent, then in the absence of proof of knowledge by the licensee, there shall be no revocation, but there may be a suspension of not more than thirty days; it being further provided that in the event any licensee is subjected to

more than two such suspensions in any twelve-month period, his or her license may be revoked on the third such violation.

(d) An appeal taken from an order of suspension or revocation shall not suspend the order of revocation or suspension during the pendency of such appeal. In case of the revocation of any license, no new license shall be issued to such licensee or to any person acting for or on his or her behalf for a period of three years.

(e) For the purposes of subsections (b) and (c) above, written notice shall be deemed sufficient upon the mailing of the notice to the most recent address on the application of the licensee on file in the office of the city treasurer.
(Ord. No. 42-566 § 2)

Sec. 3.07.130. Compliance with other regulations required—Distance requirements from churches, schools, public parks and residential zoning districts.

No license shall be granted for an escort service until the health code, building code, zoning ordinances, fire prevention and safety regulations of the city are fully complied with, and it is unlawful and a violation of this chapter to maintain or conduct an escort service without being in compliance, at all times, with all health code, building code, zoning ordinance, fire prevention and safety regulations of the city. Further, no license shall be granted for an escort service which is located within five hundred feet of any church, public or parochial school, public park or residential zoning district.

The distance is to be measured from the nearest property line of the residential zoning district, church, public or parochial school, or public park to the nearest property line of the premises on which the establishment is located or of any parking lot designated to be used by the patrons of such establishment.

Provided, however, that escort service licenses may be issued for all establishments presently engaged in the business of an escort service and located within five hundred feet of any church, public park, public or parochial school, or residential zoning district, so long as the premises are used or held for use as an escort service; should such an establishment cease to be used for such purposes for a period of ninety days or more, then and in that event, no new escort service license shall be issued for the establishment. Periods of time during which such establishment is being remodeled or is being repaired because of damage caused by fire or natural disasters such as floods or windstorms, shall not be included in computing the above ninety-day period; provided, however, that any remodeling or repair must be commenced within ninety days after closure of any given structure and completed within a reasonable time thereafter. The chief of police of the Wichita police department shall be notified in writing within thirty days of closing of such establishment for remodeling or repair, such notice to state the date of commencement and estimated or actual completion of remodeling or repair. Any establishment shall not be relicensed and shall cease to be used as an escort service if repair is not commenced within ninety days after such closure, if such repair is not completed within a reasonable time thereafter and/or the chief of police is not notified within the thirty-day time period.
(Ord. No. 43-465 § 1)

Sec. 3.07.140. Escort service duties.

(a) The escort service shall provide to each patron a written contract and receipt of payment for services. The contract shall clearly state the type of services to be performed, the length of time such services shall be performed, the total amount of money such services shall cost the patron, and any special terms or conditions relating to the services to be performed.

(b) The escort service shall maintain an open office at the licensed location. The address of that office shall be included in all patron contracts and published advertisements. Private rooms or booths where the patron may meet with the escort shall not be provided at the open office or at any other location by the escort service.

(c) The escort service, in terms of licensing consequences, is responsible and liable for the acts of all its employees and subcontractors in-

cluding, but not limited to, telephone receptionists and escorts who are referred by that service while the escort is with the patron.

(d) The escort service shall commence business from an open office within thirty days after issuance of the license. In the event an escort service licensee shall not commence business in an open office within thirty days after issuance of a license, or shall discontinue business or close the open office for a period of thirty days, such license shall terminate and be revoked automatically without action by the chief of police or city council.

(e) Every owner, operator, responsible managing employee, manager, or anyone in control of an escort service shall maintain a daily register, approved as to form by the police department, containing the following information:

(1) The identification of all employees employed by such establishment, together with a copy of the escort license for those employees working as escorts;

(2) The hours of employment of each employee for each day; and

(3) The names of all patrons, including their true full names, driver's license number and state of issuance (or some other form of picture identification), hours of employment of the escort service, name of the escort or other employees providing services to this particular patron, the location where escort services were rendered, and the fee charged for such services. The daily register described in this section shall be subject to inspection at the request of any law enforcement officer who is making said request for inspection pursuant to said officer's lawful duties as a law enforcement officer. The refusal of a licensee to allow such an inspection shall not be a criminal violation of the ordinance codified in this chapter nor shall it be considered grounds for suspending, revoking or otherwise taking punitive measures or action against the licensee or the escort service's license. However, in the event of such a refusal, an inspection may be conducted upon the issuance of a valid search warrant, issued under the authority of K.S.A. 22-2501, and amendments thereto. The daily register described in this section shall be kept and maintained at the open office or licensed premises for a period of one year.

(f) Any changes in information required to be submitted by this chapter must be given to the city treasurer's office in writing within ten days of any such change.
(Ord. No. 42-566 § 3)

Sec. 3.07.150. Prohibited activities.

(a) It is unlawful for a licensee to provide escort services as described in this chapter to individuals under eighteen years of age unless written authorization by a parent or legal guardian is issued to the escort when acting as such.

(b) It is unlawful within the city limits for an escort service to advertise or hold out to the public the availability of an escort or escort service without obtaining a license therefor as provided in this chapter. Whether the actual business of the escorts or the escort service is performed, the escort service license number must be prominently displayed in such advertisements.
(Ord. No. 42-269 § 15)

Sec. 3.07.160. Escort/escort service runner—License required.

(a) It is unlawful for any person within the city limits to:

(1) Work, perform services, or act as an escort or escort service runner as defined in this chapter without a license issued pursuant to the provisions of this chapter;

(2) Work, perform services, or act as an escort or escort service runner unless employed by a licensed escort service;

(3) Work, perform services, or act as a sexually oriented escort, or work as an escort service runner for a sexually oriented escort service, regardless of license.

(b) Such person, when providing services or working as an escort or escort service runner, shall carry the license required by subsection

(a)(1) of this section upon their person and display the license upon request of any law enforcement official. Failure to display such license upon demand is a violation of this chapter punishable as set forth in Section 3.07.210 of this chapter.
(Ord. No. 42-269 § 16)

Sec. 3.07.170. Escort/escort service runner—License application, renewal.

(a) Any person desiring an escort or escort service runner's license shall make written application in duplicate to the city treasurer's office on a form provided by the city. The application shall be verified and accompanied by the license fee. Both copies of the application shall be filed with the city treasurer's office and shall provide the following information under oath:

(1) The full true name and any other aliases used by applicant;

(2) The present residential address and telephone number of applicant;

(3) Written proof that the applicant is at least eighteen years of age;

(4) Two photographs, two inches by two inches in size, taken within the last thirty days immediately preceding the date of application. One photograph shall be sent to the chief of police and one photograph shall be affixed to the license;

(5) All criminal convictions, except for minor traffic offenses, and the dates and places of such convictions;

(6) Fingerprints of the applicant; and

(7) Correspondence, written memoranda or record from a medical doctor or doctor of osteopathy licensed in the State of Kansas that the applicant has been examined no less than thirty days prior to the application date and is free of the following communicable diseases: HIV (human immunodeficiency virus), AIDS (acquired immune deficiency syndrome), viral hepatitis (including type A, B and C), tuberculosis, chlamydia trichomoniosis, gonorrhea, syphilis, herpes genitalia and human papilloma virus. This provision shall not be applicable to escort service runners.

(b) All persons working or providing services as escorts or escort service runners at the time of the passage of the ordinance codified in this chapter must submit an application for an escort or escort service runner's license within thirty days of the date the same becomes effective.

(c) Every escort or escort service runner's license issued pursuant to this chapter will expire one year from the date of issuance and must be renewed before working or performing services as an escort or escort service runner in the following year. Application for renewal must be made to the city treasurer no later than thirty days prior to the date of expiration for the escort or escort service runner's license, and must be accompanied by the license fee provided in Section 3.07.180 of this Code.
(Ord. No. 45-909 § 4; Ord. No. 42-269 § 17)

Sec. 3.07.180. Escort/escort service runner—License fees.

There shall be an annual fee of one hundred dollars for an escort or escort service runner's license. This fee shall accompany all initial license applications and all renewal requests, and a license shall not be issued until the fee is paid in full.
(Ord. No. 45-909 § 5; Ord. No. 42-269 § 18)

Sec. 3.07.190. Escort/escort service runner—License eligibility.

(a) A copy of each application for an escort or escort service runner's license shall be forwarded to the chief of police for investigation of the applicant. It shall be the duty of the chief of police to investigate such applicant to determine whether he or she is qualified under the provisions of this chapter. The chief of police shall report to the city treasurer not later than ten working days after receipt of the application. The city treasurer shall issue or deny the license to work or perform services as an escort or escort service runner based upon the results of the police investigation. Any applicant who has been denied the issuance of an escort or escort service runner's license shall have a right of appeal as set forth in Section

3.04.065 of this Code, and then pursuant to the provisions of K.S.A. 60-2101(d), and any amendments thereto.

(b) No license to work or perform services as an escort or an escort service runner shall be issued to:

(1) Any person who has not attained eighteen years of age;

(2) Any person who, within three years immediately preceding the date of making application, has been convicted or released from probation or parole for conviction of any crime involving moral turpitude, as defined in this chapter, and the term "conviction," as used herein, includes being placed on diversion;

(3) Any person who has knowingly made a false or misleading statement of a material fact or omission of a material fact in their application for an escort or escort service runner's license.

(4) Any person who has not provided the required correspondence, written memoranda or record from a licensed doctor that he or she is free of communicable disease as of the date of application, as required in subsection 3.07.170(a)(7) of this Code.

(Ord. No. 45-909 § 6; Ord. No. 42-269 § 19)

Sec. 3.07.195. Health requirements.

It is unlawful for an escort to provide any service for compensation described in Section 3.07.010(e) if he or she is infected with a communicable or transmissible disease described in Section 3.07.170(a)(7). Escorts shall submit to physical examinations and laboratory tests, as may be required by the designated health officer, if there is probable cause to believe the escort carries infection of communicable disease transmissible via their services. The cost of such examinations and test shall be paid by the escort and the escort shall execute an authorization, waiver and/or release, valid under the Health Insurance Portability and Accountability Act, for all lab results and medical records from such examination to the designated health officer.

(Ord. No. 45-909 § 7)

Sec. 3.07.200. Suspension or revocation of an escort/escort service runner's license.

(a) The chief of police, upon five days' written notice to the person holding an escort or escort service runner's license, shall have the authority to suspend such license for a period not to exceed thirty days, for any of the following reasons:

(1) False information or data was given, or material facts were omitted from the person's application;

(2) The fee required to be paid by this chapter is not paid;

(3) The licensee becomes ineligible to obtain a license;

(4) The licensee is adjudged to have violated the regulations of any of the provisions of this chapter;

(5) Subsequent to obtaining an escort or escort service runner's license, the licensee has been convicted in any jurisdiction of a crime involving moral turpitude, as defined in this chapter, and providing that the term "convicted" shall also include being placed on diversion.

(6) If an escort licensee is infected with a disease described in this chapter at subsection 3.07.170(a)(7) which is transmissible via rendering his or her services.

(7) If an escort licensee refuses to submit to any test required by the designated health officer under Section 3.07.195 of this chapter for the diseases described at subsection 3.07.170(a)(7) of this chapter.

(b) The licensee may appeal such order of suspension to the city council within seven days from the date of such order.

(c) The city council, upon five days' written notice to the person holding an escort or escort service runner's license may permanently revoke or cause to be suspended for a period of not more

than thirty days such license for any of the reasons enumerated in subsection (a) of this section.

(d) Any appeal taken from an order of revocation or suspension shall not suspend the order during the pendency of any such appeal. In the case of the revocation of an escort or escort service runner's license, no new license shall be issued to such person for a period of three years after the revocation becomes effective.

(e) For the purposes of subsections (a) and (b) of this section, written notice shall be deemed sufficient upon the mailing of the notice to the most recent address on the application of the licensee on file in the office of the city treasurer.
(Ord. No. 45-909 § 8; Ord. No. 42-269 § 20)

Sec. 3.07.210. Penalty.

(1) Any person who violates any provision of this chapter is guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine not to exceed one thousand dollars or by imprisonment for not more than six months or both such fine and imprisonment. Upon a second or a subsequent conviction, the court shall impose a mandatory minimum jail sentence of five consecutive days and no person shall be eligible for probation or parole until serving the entire minimum sentence.

(2) For the purposes of determining whether a conviction is a first, second, or subsequent conviction in sentencing under this section, "conviction" shall include being convicted of a violation of this section or of a law of this state or of another state or an ordinance of any municipality which prohibits the acts that this section prohibits. It is irrelevant whether an offense occurred before or after conviction for a previous offense.
(Ord. No. 45-909 § 9; Ord. No. 42-269 § 21)

Sec. 3.07.220. Invalidity of part.

Should any court declare any section, clause or provision of this chapter to be unconstitutional, such decision shall affect only such section, clause or provision so declared unconstitutional and shall not effect any other remaining section, clause or provision of this chapter.
(Ord. No. 42-269 § 22)

CHAPTER 3.08. MISCELLANEOUS FEES*

Sec. 3.08.030. Reserved.
Sec. 3.08.040. Circuses, rodeos, wild animal shows and carnivals (Reserved).
Sec. 3.08.060. Reserved.
Sec. 3.08.080. Reserved.
Sec. 3.08.090. Reserved.
Sec. 3.08.130. Reserved.
Sec. 3.08.170. Money transportation.
Sec. 3.08.200. Reserved.
Sec. 3.08.250. Shooting galleries.
Sec. 3.08.300. Ticket brokers or scalpers.

Sec. 3.08.030. Reserved.

Editor's note—Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed § 3.08.030, which pertained to cabarets, etc., and derived from Ord. No. 40-037 § 1; and Ord. No. 48-352, § 1, adopted June 23, 2009.

Sec. 3.08.040. Circuses, rodeos, wild animal shows and carnivals.

Repealed by Ordinance No. 47-285, adopted Nov. 14, 2006.

Sec. 3.08.060. Reserved.

Editor's note—Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed § 3.08.060, which pertained to clairvoyants, fortunetellers, palmists, etc., and derived from Ord. No. 28-606 § 1; and Ord. No. 15-606 § 31.

Sec. 3.08.080. Reserved.

Editor's note—Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed § 3.08.080, which pertained to directories, and derived from Ord. No. 15-606 § 39.

*__Cross references—__Advertising—See §§ 3.64.020, 3.66.040; Airport limousines—See § 3.88.120; Ambulances—See § 3.80.030; Amusement device—See § 3.23.030; Amusement parks and rides—See § 3.20.020; Auctions and auctioneers—See §§ 3.36.010, 3.36.050, 3.36.120; Automobile wrecking—See § 3.48.030; Bankrupt, fire and closing-out sales—See § 3.32.010; Bathhouses and massage salons—See § 3.56.040; Billiard and pool tables—See § 3.16.040; Contractors—See § 18.06.170; Dances and dance halls—See § 3.28.040; Detectives and detective agencies—See § 3.72.050; Drain layers—See § 16.08.070; Electricians—See § 19.08.040; Gasfitters—See § 21.04.180; Liquor and beverages—See §§ 4.08.010, 4.12.060; Plumbers—See § 21.04.180; Pyrotechnic display—See § 15.08.030; Sureties and bondsmen—See § 3.68.040; Taxicabs—See § 3.84.350; Theaters, shows, etc.—See § 3.12.020; Trailer camps and sites—See § 26.04.100; Trailers outside camps—See § 26.04.150.

Sec. 3.08.090. Reserved.

Editor's note—Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed § 3.08.090, which pertained to domino tables, and derived from Ord. No. 39-250 § 9.

Sec. 3.08.130. Reserved.

Editor's note—Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed § 3.08.130, which pertained to itinerant photographers, and derived from Ord. No. 15-606 § 64.

Sec. 3.08.170. Money transportation.

Persons engaged in the business of the transportation of money or securities for hire, shall pay a license fee of one hundred dollars per year, due March first.
(Ord. No. 15-606 § 59)

Sec. 3.08.200. Reserved.

Editor's note—Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed § 3.08.200, which pertained to penny arcades, and derived from Ord. No. 34-060; and Ord. No. 21-492 § 14.

Sec. 3.08.250. Shooting galleries.

The license fee for engaging in the operation of shooting galleries either with live ammunition, air or spring-propelled mechanism or any electric eye, for each location, shall be seven dollars and fifty cents per day or thirty-seven dollars and fifty cents per year, due March first.
(Ord. No. 21-492 § 12)

Sec. 3.08.300. Ticket brokers or scalpers.

Any person, buying, selling or dealing in theater or amusement tickets at a price varying from the regular advertised box office price shall pay a license fee of two hundred dollars per year, due March first.
(Ord. No. 15-606 § 84)

CHAPTER 3.09. ANIMAL EXHIBITIONS, RODEOS AND ANIMAL SHOWS

Sec. 3.09.010. Definitions.
Sec. 3.09.020. License required.
Sec. 3.09.030. License fees.
Sec. 3.09.040. License nontransferable.
Sec. 3.09.050. License application.
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Sec. 3.09.070. Display of license.
Sec. 3.09.080. Suspension or revocation of license.
Sec. 3.09.090. Enforcement and inspection.
Sec. 3.09.100. Compliance with ordinances.
Sec. 3.09.110. Insurance requirement.
Sec. 3.09.120. Operation regulations.
Sec. 3.09.130. Violations, penalty.
Sec. 3.09.140. Compliance with state statute.

Sec. 3.09.010. Definitions.

(1) 'Animal Exhibition' means a show or exhibition with domestic animals, wild animals, or dangerous wild animals where no contact is permitted by law between spectators and the animals.

(2) 'Animals' means domestic animals, wild animals and dangerous wild animals as defined in this section.

(3) 'Dangerous wild animals' means, including, but limited to coyotes, bobcats, foxes, wolves, lions, tigers, leopards, jaguars, cheetahs, mountain lions, or any hybrid thereof; bears or any hybrid thereof; other carnivorous animals of a similar nature and species and venomous reptiles.

(4) 'Director of Central Inspection' means the Superintendent of the Office Of Central Inspection of the City of Wichita, or his/her designee.

(5) 'Director of Environmental Services' means the director of the Department Of Environmental Services of the City of Wichita or his/her designee.

(6) 'Domestic Animal' means cattle, swine, sheep, goats, horses, mules, domesticated deer, all creatures of the Pratite family that are not indigenous to this state, including, but not limited to, ostriches, emus, and rheas.

(7) 'Domesticated deer' means any member of the family Cervidae which was legally obtained and is being sold or raised in a confined area for breeding stock, for any carcass, skin or part of such animal; for exhibitions or for companionship.

(8) 'Indoor Rodeo' means a rodeo in which all parties, competitions, exhibitions and/or demonstrations are conducted inside buildings or structures that are covered by roofs, and which are fully enclosed by solid walls and closeable openings, such as windows and doors. Outdoor loading, unloading and temporary penning of livestock into and from the indoor facility or facilities is allowed. An indoor rodeo may include outdoor storage of livestock, but shall not include any outdoor practices, competitions, exhibitions and/or demonstrations.

(9) 'Outdoor Rodeo' means a rodeo in which any or all practices, competitions, exhibitions and/or demonstrations, and any related livestock storage, are conducted outside of buildings or structures as defined by 'indoor rodeo'.

(10) 'Petting Zoo' means a show or exhibit of domestic animals on exhibition for physical contact with humans.

(11) 'Rodeo' means a competition, exhibition or demonstration involving persons, equines and/or bovines in which participants display various skills in one or more events such as, but not limited to, bareback riding, saddle bronco riding, steer wrestling, roping, team roping, tie-down roping, team penning, barrel racing, bull riding or similar events.

(12) 'Wild Animals' means non-domesticated animals, birds and reptiles which are native to North America. Such term does not include dangerous wild animals as defined in this section."
(Ord. No. 47-285, § 1, 11-14-06)

Sec. 3.09.020. License required.

1. It shall be unlawful for any rodeo, animal exhibition or petting zoo to exhibit, conduct or carry on any exhibition, show or event without obtaining a license for such exhibition, show or event.

2. No license shall be issued for an outdoor rodeo, except for rodeos conducted on property owned by the City of Wichita or Sedgwick County.

Outdoor rodeos held on property owned by the City of Wichita or Sedgwick County shall comply with the requirements of Chapter 3.11 of the Code of the City of Wichita relating to Community Events.

3. No license shall be issued for any animal exhibition of any dangerous wild animal, as defined by this section, except as allowed by Section 6.08.020 of the Code of the City of Wichita.

EXCEPTIONS: The provisions of this chapter shall not apply to:

a. Institutions accredited by the American Zoo and Aquarium Association or the Zoological Association of America;

b. The Kansas Department of Wildlife and Parks;

c. A licensed or accredited research, veterinary or medical institution;

d. A United States Department of Agriculture licensed exhibition of dangerous wild animals while transporting such animals as part of a circus, carnival, rodeo or fair.

(Ord. No. 47-285, § 2, 11-14-06)

Sec. 3.09.030. License fees.

(a) An application for a rodeo, animal exhibition or petting zoo shall be accompanied by a license application fee. A license may be issued by the day, weekly or annually. The fees for such licenses shall be as follows:

Daily	$100.00
Weekly	$300.00
Yearly	$500.00

(b) A license shall be valid and effective only for the dates and times of operation set forth in the license. No exhibition or event may be conducted during any hours or other dates.
(Ord. No. 47-285, § 3, 11-14-06)

Sec. 09.040. License nontransferable.

A license is not transferable to any other person, nonprofit or business entity, and cannot be used at a location other than those listed on the application and approved for licensing.
(Ord. No. 47-285, § 4, 11-14-06)

Sec. 3.09.050. License application.

An application for a rodeo, animal exhibition or petting zoo license shall be obtained from the City Treasurer's Office. The application shall contain the following information:

a. The name, date of birth and address of the applicant, or if the applicant is a nonprofit or business entity, the names, residential addresses and personal information of those persons authorized to execute contracts on behalf of the entity;

b. If the applicant is a corporation, or other entity obligated to register the state or local government in its home state, the name and permanent address of that entity's registered agent or office;

c. The name and address under which the applicant intends to conduct his, her, or its business;

d. The specific dates and times for which events or exhibitions will be conducted;

e. A signed statement on behalf of the applicant that the information is true and correct;

f. A signed statement on behalf of the applicant to establish that such events or exhibitions will be in compliance with animal control and sanitary waste requirements of the City of Wichita;

g. Documentation that the location where the exhibitions, show or events will be held is in compliance with zoning requirements of the Unified Zoning Code of Wichita and Sedgwick County;

h. Proof of liability insurance as required by Section 3.09.110;

i. Name and address of the licensed veterinarians who are responsible for care and treatment of all animals or livestock to be used in the event or exhibition.

(Ord. No. 47-285, § 5, 11-14-06)

Sec. 3.09.060. Issuance of license.

(a) A license for a rodeo, animal exhibition or petting zoo, may be issued only upon completion of the application; payment of the required licens-

ing fees and a showing that the proposed event or exhibition will not be in violation of any state, federal or local law.

(b) Applications for a rodeo, animal exhibition or petting zoo shall not be made less than twenty business days before the event, or exhibition. Upon receipt of a properly completed application, the City Treasurer's Office shall forward the application to the appropriate City departments for investigation and recommendation regarding issuance of the license.

(c) If a license is not issued, written notice shall be mailed or hand delivered to the applicant indicating the reason for the denial. Such notice shall also set forth information regarding the applicant's right to appeal the denial.
(Ord. No. 47-285, § 6, 11-14-06)

Sec. 3.09.070. Display of license.

The licensee shall display the license issued while any activities are being conducted pursuant to the license. The license shall be posted in plain view at the location and made available to law enforcement officers and other enforcement officers for the City of Wichita.
(Ord. No. 47-285, § 7, 11-14-06)

Sec. 3.09.080. Suspension or revocation of license.

(a) The Director of Environmental Services may suspend for a period not to exceed 30 days or may revoke any license issued under this chapter, for any of the following reasons:

(1) Fraud, misrepresentation or false statement contained in the application;

(2) Failure to pay the appropriate licensing fee;

(3) Violation of any of the provisions of this chapter;

(4) Violation of any of the provisions of Title 6 of the Code of the City of Wichita or any other state or federal law related to the care and treatment of livestock, domestic or wild animals.

(b) The Director of Environmental Services shall notify the licensee of the suspension or revocation of his or her license, setting forth the grounds for such revocations; which shall be mailed by certified mail to the licensee's permanent address appearing on the application or hand delivered to the licensee.

(c) Any person aggrieved by the suspension or revocation of a license as provided in this chapter shall have the right of appeal to the Wichita City Council as set forth in Section 3.94.120(b).
(Ord. No. 47-285, § 8, 11-14-06)

Sec. 3.09.090. Enforcement and inspection.

The Director of Environmental Services or his or her designee and the Superintendent of Central Inspection or his or her designee, are authorized to inspect and approve the licensee's premises to insure compliance with all state and federal laws and the ordinances of the City of Wichita governing public health, safety and welfare.
(Ord. No. 47-285, § 9, 11-14-06)

Sec. 3.09.100. Compliance with ordinances.

All licensees shall comply with all ordinances and regulations of the City of Wichita. A violation of the provisions of this chapter or any ordinance of the City of Wichita shall constitute grounds for revocation or suspension.
(Ord. No. 47-285, § 10, 11-14-06)

Sec. 3.09.110. Insurance requirement.

All licensees, except petting zoos, shall provide proof of and maintain liability insurance coverage or secure a bond in an amount of not less than $250,000 for each occurrence covering destruction of or damage to property and death or bodily injury to a person caused by an animal utilized in or present at any exhibition, show or event. Petting zoos shall provide and maintain liability insurance coverage or secure a bond in an amount of not less than $100,000 for each occurrence covering destruction of or damage to property and death or bodily injury to a person caused by an animal utilized in or present at exhibition, show or event. Such policy must name the city and the

Department of Environmental Services as additional insureds prior to the exhibition, show or event.

Any insurer shall notify the Department of Environmental Services, in writing, of any expiration, reduction or cancellation of liability insurance required by this subsection not later than ten days before the expiration, reduction or cancellation takes effect. Any surety company who secured the performance of a bond shall notify Department of Environmental Services, in writing, of any expiration, reduction or cancellation of the bond as required by this subsection, not later than ten days before the expiration, reduction or cancellation takes effect.
(Ord. No. 47-285, § 11, 11-14-06)

Sec. 3.09.120. Operation regulations.

All rodeos, animal exhibitions or petting zoos shall conform to the following regulations and requirements:

1. Animals shall be maintained and treated in accordance with Chapter 6.04 of the Code of the City of Wichita.
2. Rodeo animals that are to be ridden, roped, raced, displayed or otherwise participate in rodeo events or shows must be penned in by fencing materials that meet generally accepted industry standards and are normally used to confine livestock.
3. All animals must be fenced, caged, or penned in an enclosure of sufficient strength and design for the purpose of maintaining or transporting the animal.
4. Animals must not be used in any form of live entertainment where the animal is likely to be caused undue distress or result in injury or death.
5. All animals transported into the City of Wichita, must comply with the provisions of K.S.A. 47-607, et seq.
6. All cages, pens, stalls or other areas where animals are maintained or exhibited shall be cleaned daily. Manure and other refuse shall be disposed of as provided in Chapter 6.12 of the Code of the City of Wichita.
7. The licensee and/or the operator of any exhibition, rodeo event, or show shall make available upon demand of any employee of the Department of Environmental Services all documentation regarding vaccinations, health, ownership and veterinary care for each animal exhibited.
8. All animals or livestock used, ridden, shown or exhibited by a licensee shall be treated humanely. All operations, events, shows and exhibitions must comply with K.S.A. 21-4310 and Section 6.04.035 of the Code of the City of Wichita.
9. Law enforcement shall be immediately notified of the escape of any animal. The licensee shall be liable for any costs incurred by the City of Wichita or other governmental agency resulting from the escape of an animal unless the escape is due to a criminal act by another person or a natural event.
10. Any animal injured in any rodeo, show or exhibition shall be given immediate care by a qualified, licensed veterinarian. Licensees and exhibitors shall have a written protocol for first aid and medical attention in the event of an injury. Exhibitors and operators shall maintain appropriate first aid equipment and supplies at an exhibition, event, or show.
11. The licensee shall file a report with the Department of Environmental Services of any bite on a human by any animal exhibited. Such report shall contain the necessary information as required by Chapter 6.04.
12. Any petting zoo which allows physical contact between patrons and spectators and the animals, must comply with the following requirements:
    a. Signs must be placed at the entrance and exit of the exhibit to educate the public regarding the risk of transmission of diseases from farm animals to humans.

b. Animal contact is not allowed where food or beverages are being prepared, sold or served.

c. Hand-washing stations must be provided.

d. Eating, drinking and smoking shall not be permitted in areas where interaction with animals is permitted.

e. Only food provided by the animal exhibitor may be fed to the animals. Animal food shall not be provided in containers that are human food items.

13. No physical contact is allowed between patrons and dangerous wild animals.

14. No physical contact is allowed between patrons and wild animals.

15. Licensees shall have a veterinarian on site or immediately available (on call) during any performance or exhibition.

16. No dangerous wild animal shall be allowed to be tethered, leashed or chained outdoors or allowed to run at large.

17. A dangerous wild animal shall not be brought to any public property or commercial or retail establishment, except to bring the animal to a licensed veterinarian or veterinarian clinic.

(Ord. No. 47-285, § 12, 11-14-06)

Sec. 3.09.130. Violations, penalty.

Any person who violates any of the provisions of this chapter is guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine not to exceed five hundred dollars ($500). Each day that any violation of this chapter continues shall constitute a separate offense and shall be punishable hereunder as a separate violation.

(Ord. No. 47-285, § 13, 11-14-06)

Sec. 3.09.140. Compliance with state statute.

Nothing in this Chapter shall be interpreted to authorize any person licensed hereunder to maintain, transport or exhibit animals in violation of any state statute, nor shall compliance with the provisions of this Chapter relieve any person from compliance with the state statutes regarding the care, maintenance and transportation of livestock or animals.

(Ord. No. 47-285, § 14, 11-14-06)

CHAPTER 3.10. PORTABLE STORAGE CONTAINER CONTRACTOR LICENSING

Sec. 3.10.010. Title.
Sec. 3.10.020. Purpose.
Sec. 3.10.030. Applicability.
Sec. 3.10.040. Definitions.
Sec. 3.10.050. License to engage in business of portable storage container contractor.
Sec. 3.10.055. Revocation.
Sec. 3.10.060. Removal of portable storage containers.
Sec. 3.10.070. Cost of portable storage container removal.
Sec. 3.10.080. Penalty for violation of chapter, rule or order.
Sec. 3.10.090. Severability.

Sec. 3.10.010. Title.

This chapter shall be known as the "portable storage container contractor-licensing ordinance of the City of Wichita, Kansas."
(Ord. No. 46-114 § 1)

Sec. 3.10.020. Purpose.

The purpose of the regulations set forth in this chapter shall be to eliminate potential hazards to motorists and pedestrians; to encourage placement of portable storage containers which, by their location and design, are harmonious to the buildings and sites which they occupy, and are in compliance with the requirements of the Wichita-Sedgwick County unified zoning code; to provide an opportunity to achieve a reasonable balance between the outdoor storage needs of businesses and industry while improving and preserving the visual qualities of the community; to provide for the administration of the regulations imposed and set forth herein; and to promote the public health, safety and general welfare.
(Ord. No. 46-114 § 2)

Sec. 3.10.030. Applicability.

The provisions of this chapter shall apply to the placement, location, erection, relocation or affixing by use and location of all portable storage containers located out-of-doors. No portable storage container shall be placed, located, erected, relocated, altered or affixed by use or location that would be contrary to the provisions of this Code. The provisions contained in this chapter shall be considered together with the provisions of the Wichita-Sedgwick County unified zoning code.
(Ord. No. 46-114 § 3)

Sec. 3.10.040. Definitions.

"Portable storage container" means any box, container or barrel which is used to store merchandise and/or equipment outside of an enclosed permanent building or structure, which does not qualify as a building or structure under Title 18 of the code of the City of Wichita. An enclosed permanent building or structure means a building or structure that is enclosed by walls as defined in Title 18 of the code of the City of Wichita.

"Portable storage container contractor" means any person or company engaged in the business of renting, leasing or otherwise providing portable storage containers, which involves in whole or part the placement, location, erection, relocation, alteration or affixing of portable storage containers.

"Superintendent of central inspection" means the superintendent of central inspection for the City of Wichita, Kansas, or his designee.

"Unified zoning code" means the Wichita/Sedgwick County unified zoning code.
(Ord. No. 46-114 § 4)

Sec. 3.10.050. License to engage in business of portable storage container contractor.

All persons engaged in the business of selling, renting or otherwise providing portable storage containers, which involves in whole or part the placement, location, erection, relocation, alteration or affixing of portable storage containers shall be required to obtain a license from the city to conduct such business. This shall be an annual license, and the fee shall be one hundred dollars.

Only licensed portable storage container contractors may place, locate, erect, relocate, alter or affix any portable storage container governed by this chapter.

Exception:

Portable storage containers that are owned by the owner of the zoning lot on which the portable storage container is to be placed, or by the owner/operator of the business located on the zoning lot on which the portable storage container is to be located, may place, locate, erect, relocate or affix a portable storage container, provided that the container is placed, located or relocated as otherwise required by this chapter.

(Ord. No. 46-114 § 5)

Sec. 3.10.055. Revocation.

The building official may, upon his own motion, and may upon the verified complaint in writing of any person, require any portable storage container contractor to appear before the board of code standards and appeals for hearing upon ten days' notice in writing, and mailed to his last known post office address, and the board shall have the power to place on probation for a specified time period, temporarily suspend or permanently revoke the license if the holder thereof is found guilty of or commits any one or more of the following acts or omissions:

(a) Willful and deliberate disregard and violation of the provisions of this title or any other ordinance of the city, or failure to comply with any lawful order of the superintendent of central inspection;

(b) Misrepresentations of a material fact by application in obtaining a license;

(c) Repeated failure to place, locate or relocate portable storage containers in accordance with this chapter or the Wichita-Sedgwick County unified zoning code.

(Ord. No. 46-114 § 6)

Sec. 3.10.060. Removal of portable storage containers.

(a) The superintendent of central inspection may remove or cause to be removed any abandoned, dangerous, defective, illegal or prohibited portable storage container subject to removal under the provisions of this chapter which has not been removed within the time period specified in this chapter, or any other portable storage container maintained in violation of the provisions of this chapter. The superintendent of central inspection shall prepare a notice which shall describe the portable storage container and specify the violation involved and which shall state that if the portable storage container is not removed or the violation is not corrected within fifteen days, the portable storage container shall be removed in accordance with the provisions of this section.

(b) The notice shall be mailed or given to the owner of the portable storage container, or the occupant of the property upon which the portable storage container is located or their employee or representative, or to the owner of the property on which the portable storage container is located as shows on the records of the register of deeds.

(c) In addition, any portable storage container placed on private property in violation of any provision of this chapter may be removed and impounded by the superintendent of central inspection. The superintendent of central inspection shall prepare a notice and specify the violation involved, which shall state that if the portable storage container is not removed within fifteen days, or the violation not corrected within seventy-two hours, the portable storage container may be impounded. This notice shall be served upon the owner or agent of the portable storage container and where possible, upon the occupant of the property where the portable storage container is located. The portable storage container shall be retained by the superintendent of central inspection for a period of thirty days, after which it may be disposed of in any manner deemed appropriate by the city. The owner may recover such portable storage container within thirty days upon payment of a service charge of one hundred dollars per portable storage container and payment of all direct city costs associated with its removal and its storage.

(d) Any person having an interest in a portable storage container or the property on which the portable storage container is located may appeal the determination of the superintendent of central inspection ordering removal or compliance by

filing a written notice of appeal within ten days of the date of written notice from the superintendent of central inspection.
(Ord. No. 46-114 § 7)

Sec. 3.10.070. Cost of portable storage container removal.

Any portable storage container removed by the superintendent of central inspection may be disposed of in any manner deemed appropriate by the city. The cost of abatement or removal shall include any and all incidental expenses incurred by the city in connection with the portable storage container abatement or removal. These costs shall be certified to the city clerk, who shall assess the costs as a special assessment against the lot or parcel of land on which the portable storage container was located in the manner provided by law.
(Ord. No. 46-114 § 8)

Sec. 3.10.080. Penalty for violation of chapter, rule or order.

Any person violating any of the provisions of this chapter or any reasonable rule or order of the superintendent of central inspection, or causing, permitting or suffering the same to be done, is guilty or a misdemeanor and shall be punished by a fine of not more than five hundred dollars.
(Ord. No. 46-114 § 9)

Sec. 3.10.090. Severability.

If any section or provision of this ordinance is for any reason held illegal, invalid or unconstitutional, such action shall not affect the remaining provisions of this ordinance that shall remain valid to the extent possible.
(Ord. No. 46-114 § 10)

CHAPTER 3.11. COMMUNITY EVENTS

Sec. 3.11.010. Purpose.
Sec. 3.11.020. Definitions.
Sec. 3.11.030. Community events coordinator.
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Sec. 3.11.040. Authority of the Community Events Coordinator.
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Sec. 3.11.060. Application.
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Sec. 3.11.190. Other permits, licenses and fees.
Sec. 3.11.200. Limitations and restrictions.
Sec. 3.11.205. Use of all terrain vehicles and golf carts.
Sec. 3.11.210. Penalties.
Sec. 3.11.220. Block parties—Approval required.

Sec. 3.11.010. Purpose.

It is the purpose of this Chapter to establish a process for permitting community events to use City streets, parks, and City-owned facilities. The City recognizes that substantial community benefits may result from community events. They can provide cultural enrichment, promote economic vitality and enhance community identity. They may also provide funding opportunities for service organizations. This Chapter is to provide a coordinated process for managing community events occurring on public and private property to ensure the health and safety of event patrons, residents, workers, and other visitors; to prohibit illegal activities from occurring at the community events; and to protect the rights of community event permit holders. It is also the intent of the Council to protect the rights of people to engage in expressive activities in the City's public places and to establish the least restrictive and reasonable time, place and manner regulation of these activities, without regard to the expressive content of those activities.
(Ord. No. 47-046, § 1, 6-20-06)

Sec. 3.11.020. Definitions.

(a) *'Applicant'* means any person who has filed a written application for a community event or street closure that is responsible for conducting the event and the responsible organization, corporation or other group on whose behalf the individual is requesting the permit.

(b) *'Chief of Police'* means the Chief of Police for the City of Wichita and his or her designee.

(c) *'Church'* means private property utilized on a regular basis, but in no case less than a weekly basis, for worship services including, without limitation, a synagogue or mosque.

(d) *'City'* means the City of Wichita.

(e) *'Closure of streets'* means the restriction of vehicular traffic to a street or roadway or portion thereof, and includes the manual control of traffic at intersections by police.

(f) *'Community event'* means an outdoor event on public or private property or which occurs in City of Wichita parks with an expected attendance at any one time during the event of 250 or more persons, organized for a particular and limited purpose and time;

Such events shall include, but not be limited to: races, motor vehicle events, carnivals, festivals, community celebrations, shows, exhibitions, circuses and fairs. Such term shall also include parades when held in conjunction with a community event as defined by this section, which event is sponsored or conducted by the same applicant. Such term shall not include events, other than races, occurring solely on sidewalks or public rights-of-way immediately adjacent to public streets.

(g) *'Community event coordinator'* means the Director of the Park and Recreation Department or his or her designee.

(h) *'Extraordinary police services'* means responsive police services which are in addition to and in excess of the normal police services provided to the location or off-site as a direct result of the event.

(i) *'Fire chief'* means the Fire Chief for the City of Wichita or his or her designee.

(j) *'Motor vehicle'* means every self-propelled vehicle other than a motorized wheelchair.

(k) *'Motorcycle'* means every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground.

(l) *'Motor vehicle event'* means motorcades, automobile cruises, motorcycle runs, motorcycle rallies or parades in which more than 80% of the entries are motor vehicles.

(m) *'Parade'* means an organized procession of persons, motor vehicles, bicycles, floats, animals or large objects or any combination thereof traveling in unison along or upon a street or roadway in the City which requires the closure of streets or the regulation of vehicular traffic by law enforcement to prevent a conflict with the normal or regular flow of traffic upon the street or roadway.

(n) *'Park property'* means all grounds, roadways and land acquired and owned by the City and all grounds, roadways and land owned by the Board of Park Commissioners of the City of Wichita, Kansas, which are designated for use as a park or recreational facility by the city council and are under the management of the Department of Park and Recreation of the City of Wichita.

(o) *'Permit holder'* means the person who has been issued a community event permit by the City of Wichita.

(p) *'Person'* shall mean a natural person or a legal entity such as, but not limited to an individual, firm, association, joint stock company, partnership or corporation.

(q) *'Private property'* means all property that is located within the boundaries of the city, except for property that is owned by the city.

(r) *'Public property'* means any public land, outdoor park and outdoor recreational facilities, streets, highways, municipal parking lots, parkways or alleys, public spaces and rights-of-way within the city.

(s) *'Race'* means any organized activity:

(1) Involving running, walking, biking, jogging, and includes, but is not limited to, fun runs, wheelchair races, rollerblading, marathons and triathlons, and events involving other means of transportation;

(2) Which is a scheduled public gathering of persons utilizing a fixed course that moves from one location to another when any portion of the event occurs on a public street, highway, trail, or sidewalk; and

(3) That is not held entirely within a City park or on privately maintained property, roads or streets.

This term does not include 'parades' as that term is defined herein and are events regulated pursuant to Chapter 3.14 of this Code.

(t) *'Street'* or *'highway'* means the entire width between property lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic. Where the word "highway" or the word "street" is used in this title, it means street, avenue, boulevard, thoroughfare, trafficway, alley and any other public way for vehicular travel by whatever name unless the context clearly indicates otherwise.

(u) *'Superintendent of central inspection'* means the Director of the Sedgwick County, Kansas Metropolitan Area Building and Construction Department or his or her designee.

(v) *'Temporary entertainment district'* means a defined area, which includes city streets and public sidewalks, on which the city council has authorized the sale, possession or consumption of alcoholic liquor for a specified period of time, during a community event which has been properly licensed under this chapter.

(w) *'Vehicle'* means every device in, upon or by which any person or property is or may be transported or drawn upon a street, highway or roadway.
(Ord. No. 47-046, § 2, 6-20-06; Ord. No. 48-129, § 1, 12-9-08; Ord. No. 48-353, § 1, 6-23-09; Ord. No. 48-548, § 1, 12-1-09; Ord. No. 48-757, § 1, 6-22-10, eff. 1-1-11; Ord. No. 48-766, § 1, 7-20-10, eff. 1-1-11; Ord. No. 50-039, § 1, 7-21-15; Ord. No. 52-315, § 1, 12-26-23)

Sec. 3.11.030. Community events coordinator.

The Director of the Park and Recreation Department is hereby directed to carry out the provisions of the Chapter. In reviewing and approving community event applications, the Community Events Coordinator may consult as necessary representatives of City departments, including, but not limited to, the following departments: City Manager's Office, Metropolitan Area Building and Construction Department, Park and Recreation, Public Works, Fire, Police, Transit and Arts and Cultural Services. The Law Department shall provide all legal services, legal advice and opinions regarding issues pertaining to this Chapter.
(Ord. No. 47-046, § 3, 6-20-06; Ord. No. 50-553, § 1, 7-18-17; Ord. No. 51-043, § 1, 5-28-19; Ord. No. 52-315, § 2, 12-26-23)

Sec. 3.11.035. Enforcement.

The Wichita Police Department, the Wichita Fire Department and the Metropolitan Area Building and Construction Department and authorized representatives of such departments shall be responsible for the enforcement of all provisions of this Code.
(Ord. No. 48-757, § 2, 6-22-10, eff. 1-1-11; Ord. No. 50-553, § 2, 7-18-17)

Sec. 3.11.038. Exceptions.

With the exception of Section 3.11.050 regarding street closures, the provisions of this Chapter shall not apply to the following activities:

1. Community events conducted by the City of Wichita.
2. Events consisting only of a parade, whether regulated or exempted by the provisions of Section 3.14.020 of the Code of the City of Wichita.
3. Funeral processions as regulated by Chapter 3.74 of the Code of the City of Wichita.
4. Outdoor events occurring at permanent amusement parks licensed pursuant to Chapter 3.20 of the Code of the City of Wichita.
5. Social or political protests, rallies, gatherings, assemblies or vigils occurring on public property, which consist solely of the displaying of signs or banners, singing and the delivering of speeches.
6. Outdoor events held at a members-only facility where no extraordinary police services are required.
7. Events held entirely inside the Riverfront Stadium.
8. Farmers Markets licensed pursuant to Chapter 3.94 of the Code of the City of Wichita.
9. Auctions as regulated by Chapter 3.36 of the Code of the City of Wichita.
10. Performances of Street Performers and Artists as defined and regulated by Chapter 10.36 of the Code of the City of Wichita and amendments thereto.
11. Sporting events, contests, practices or tournaments occurring at sport complexes or playing fields where the scope of the event is limited to the sporting event for which the property is designed to be utilized.
12. Events held at a private residence or in a residential neighborhood by persons residing in that neighborhood where no admission is charged, and no extraordinary police services are required.
13. Outdoor events conducted by or on behalf of a church, public or private schools, colleges or universities, when conducted

entirely on the property of such church or school and where no extraordinary police services are required.

14. Outdoor events that are attended by persons to whom a private invitation, as opposed to a public announcement, has been extended for such persons' attendance at the event and the event is not open to the public at large.

15. Outdoor events occurring at entertainment establishments licensed pursuant to Chapter 3.30 of the Code of the City of Wichita.

16. Events held entirely on the grounds of the following facilities when the facility or the City of Wichita is a sponsor of the event: Botanica, the Wichita Gardens, CityArts, Exploration Place, Kansas Aviation Museum, Kansas Firefighters Museum, Mid-America All-Indian Center, Old Cowtown Museum, Wichita Area Treatment Education and Remediation Center (WATER), Wichita-Sedgwick County Historical Museum, Wichita Art Museum, the Wichita Boathouse/Kansas Sports Hall of Fame, Wichita Dwight D. Eisenhower National Airport, Colonel James Jabara Airport, Museum of World Treasures, The Advanced Learning Library and all other Wichita Public Library branches, and all park property.

(Ord. No. 48-757, § 3, 6-22-10, eff. 1-1-11; Ord. No. 50-039, § 2, 7-21-15; Ord. No. 50-553, § 3, 7-18-17; Ord. No. 52-315, § 3, 12-26-23)

Sec. 3.11.040. Authority of the Community Events Coordinator.

The Community Events Coordinator is authorized to:

(a) Administer and apply this Chapter;

(b) Represent the City, under the authority of the City Manager, in discussions and in establishing agreements with applicants;

(c) Review applications for community event permits;

(d) Deny applications for community events;

(e) Issue community event permits;

(f) Establish, under the authority of the City Manager, any implementing regulations/guidelines consistent with this Chapter and other provisions of the Municipal Code applicable to the event. Said regulations/guidelines, and any amendments thereto, shall be considered to be terms and/or conditions for an event or permit placed on the event by the Community Events Coordinator, and failure by an applicant or promoter of an event to follow such regulations or to conform to any such terms and/or conditions shall be grounds for denial or revocation of a permit as set forth in Sections 3.11.090(g) and 3.11.105(b) of this Code and any amendments thereto;

(g) The Community Events Coordinator is authorized to review and grant requests for street closures associated with a community event as set forth in Section 3.11.150 and amendments thereto; and

(h) The Community Events Coordinator is authorized, for good cause, to waive the requirements regarding time limits for turning in applications for community events and street closures as set forth in Sections 3.11.065(b), 3.11.070(c), 3.11.150(b)(1) and 3.11.220(c) and amendments thereto, for providing written notice of an event pursuant to an annual community event permit as set forth in Section 3.11.055(c) and amendments thereto, and for adding additional vendors or mobile food vendors to a community event as set forth in Sections 3.11.062(d), and 3.11.063 and amendments thereto.

(i) The Community Events Coordinator is authorized to waive the requirements regarding fees as set forth in Section 3.11.070(a), but only when:

(1) The request to waive fees is received by the Community Events Coordinator prior to any deadline to pay fees for the proposed event;

(2) The applicant requesting waiver of fees is a public or private school,

educational institution, civic organization, or not-for-profit organization; and

(3) The applicant demonstrates that the proposed event will not generate a profit sufficient to pay the fees as set forth in Section 3.11.070(a).

(Ord. No. 47-046, § 4, 6-20-06; Ord. No. 48-757, § 4, 6-22-10, eff. 1-1-11; Ord. No. 50-039, § 3, 7-21-15; Ord. No. 50-553, § 4, 7-18-17; Ord. No. 51-043, § 2, 5-28-19; Ord. No. 52-315, § 4, 12-26-23)

Sec. 3.11.050. Permit required.

(a) It shall be unlawful for any person to conduct a community event without a community event permit as required by this Chapter.

(b) It shall be unlawful for the owner of any private property to rent, lease or otherwise allow the use of such property for a community event which is not properly licensed as required by this Chapter.

(c) The issuance of a community event permit shall not negate the responsibility of the permit holder to acquire all other necessary and applicable licenses or permits which may be required for the event except as provided in subsection (d) herein.

(d) A community event permit shall operate as an umbrella permit and shall include all vendors participating in the event and any tent or other temporary structure used as a part of the event when the event promoter complies with the requirements of subsections (e), (f) and (g), as applicable.

(e) For all vendors participating in the event who would otherwise be required to obtain a separate transient merchant license pursuant to Chapter 3.95 of this code and any amendments thereto, the event promoter shall be responsible for providing all information that is required by Section 3.11.062 of this code and amendments thereto and must pay all fees as required by Section 3.95.050 of this code.

(f) For any tent or other temporary structure to be used as a part of the event and for which a permit is required by Section 15.01.090 of this code and any amendments thereto, the event promoter shall be responsible for providing any information and must pay all fees as required by Section 15.01.090.

(g) All information and fees as required in subsections (e) and (f) herein must be submitted with the permit application as set forth in Section 3.11.062 of this code and amendments thereto.

(Ord. No. 47-046, § 5, 6-20-06; Ord. No. 48-757, § 1, 6-22-2010, eff. 1-1-2011; Ord. No. 50-553, § 5, 7-18-17)

Sec. 3.11.055. Annual permit for certain properties.

(a) A permit to conduct community events shall be issued on an annual basis for the Intrust Bank Arena and any other properties as approved by the Community Events Coordinator.

(b) The fee for such annual permits shall be $500 or as otherwise established by a resolution approved by the City Council pursuant to Section 3.11.070(a).

(c) The annual permit shall allow unlimited events where public access is not impeded and that occur completely upon the sidewalk area and/or the parking lot immediately adjacent to the Intrust Bank Arena, or immediately adjacent to any other properties where an annual permit has been approved. Such events shall also be exempt from the application process set forth in Section 3.11.060 of this Chapter. The licensee will provide written notice of at least ten (10) business days in advance of such events to the Community Events Coordinator, however, this notice requirement may be waived if circumstances exist that justify such a waiver and there is no objection from other City departments impacted by such event. Written notice shall be made on a form or in such manner as approved by the Community Event Coordinator and shall include proof of liability insurance and a list of any other licenses or permits issued for said event.

(d) Events as described in Subsection (c) herein that require a street closure or will otherwise impede public access or utilize property in addi-

tion to that which is immediately adjacent to set forth in Subsection (c) herein shall be subject to all requirements of this Chapter, including, but not limited to, filing an application within the time limits as required by Section 3.11.060. No additional fee shall be required to accompany said application, however all other requirements of a community event permit shall be applicable.

(e) The issuance of an annual community event permit shall not negate the responsibility of the licensee to acquire all other necessary permits or licenses that are applicable to or may be required for such an event. Additionally, an annual community event permit shall operate as an umbrella permit and shall include all vendors participating in any event and any tent or other temporary structure used as a part of any event conducted by the licensee during the term of such annual permit when the event promoter complies with the requirements of Section 3.11.050 (e), (f) and (g), as applicable. Provided, however, the annual community event fee set forth in paragraph (b) herein shall include any fees required by Sections 3.95.050 and 15.01.090 of this code, and amendments thereto, for vendors participating as transient merchants and for any tent or temporary structure used in any community event conducted by the licensee during the term of the annual permit.

(f) The Community Events Coordinator reserves the right to deny approval of any event submitted pursuant to an annual community event permit for any of the reasons set forth in Section 3.11.090 except Subsection (o), and such denial may be appealed as set forth in Section 3.11.110.

(Ord. No. 49-487, § 5, 4-23-2013, eff. 4-26-2013; Ord. No. 50-553, § 6, 7-18-17; Ord. No. 52-315, § 5, 12-26-23)

Sec. 3.11.060. Application.

(a) To receive a community event permit, the applicant must file a completed community event application with the Director of the Park and Recreation Department, or other designated representative, on a form provided by the City. Incomplete applications will not be accepted. The applicant must provide the following information:

(1) The type of proposed use, event, or activity; i.e., fun run, carnival, festival;

(2) The street or other public or private property and the specific area or areas thereof which will be utilized in connection with the proposed use, event, or activity;

(3) The date or dates and the specific times thereof, including set-up and tear-down, that the public property is to be utilized for the described use, event, or activity;

(4) The name, address and telephone number of the person, entity or organization sponsoring or conducting the proposed event;

(5) The name, address and telephone number of the person or persons to be contacted regarding the application or permit;

(6) The number of past participants who attended previous events sponsored by the applicant, if available;

(7) The maximum number of persons which the applicant shall permit to attend at any time;

(8) Whether alcohol or cereal malt beverages will be available at the event;

(9) The applicant shall submit a site plan which includes:

(a) Any plans for fencing, and the size and location of the gates contained in such fence;

(b) The plans for supplying potable water, including the source, amount available and location of outlets;

(c) The placement of any stages;

(d) A map of the event identifying any and all street closures and placement of any barricades, with a designation of the types of barricades to be used;

(e) The plans for providing toilet and lavatory facilities, including the

source, number and location, type, and the means of disposing of waste deposited;

(f) The plans for collection and disposing of solid waste material;

(g) The plans, if any, to illuminate the location of the community event, including the source and amount of power and the location of lamps;

(h) The plans for parking vehicles, including size and location of lots, points of highway access and interior roads including routes between highway access and parking lots and any shuttle service;

(i) The plans for sound and sound amplification, if any, including number, location and power of amplifiers and speakers;

(j) The placement and size of any signage for the event;

(k) The plans for seating, tables, bleachers or seating facilities;

(l) The plans, location, and fencing for any beer gardens or other areas serving cereal malt beverages;

(m) The plans for electrical power and generators, if applicable;

(n) The plans and location of any tents or canopies and the size of any such tent or canopy;

(o) The plans and location of any portable amusement park or inflatable rides;

(p) The plans and locations, if any, where alcohol or cereal malt beverage will be sold or consumed.

(10) The applicant shall submit a site plan which includes:

(a) Date of parade or event;

(b) A map or diagram of the route to be traveled, the starting point and termination point;

(c) Approximate number of persons, animals and vehicles which will constitute such parade or motor vehicle event, including the type of animals and description of the vehicles;

(d) The time when such parade or motor vehicle event will start and terminate;

(e) A statement as to whether the parade or motor vehicle event will occupy all or only a portion of the streets proposed to be traversed;

(f) The time and location by streets of any assembly areas for such parade or motor vehicle event.

(11) Security. All security must be provided by certified law enforcement officers and/or approved private security firms licensed pursuant to Chapter 3.72 of the Code of the City of Wichita. The applicant shall be responsible for all costs incurred in providing security for the event;

(12) The plans for food and beverage concessions and concessionaires who will be allowed to operate on the grounds, including the names and addresses of all concessionaires and their license or permit numbers, if applicable;

(13) The plans and specific description for each of any other type of vendor or amusement or entertainment provider who will be allowed to operate on the grounds, including the names and addresses of such vendors and their license or permit numbers, if any;

(14) Proof of liability insurance for the event as required by Section 3.11.130;

(15) Receipt for payment of the application fee as set forth in Section 3.11.070.

(b) The applicant shall submit a detailed security plan, which shall be reviewed by the Chief of Police for approval. The security plan required herein, as well as any security plan otherwise required by this Chapter, shall satisfy the following obligations:

(1) Maintain, at all times when the proposed event is scheduled to occur, including set-up and tear-down, adequate security personnel for the event;

(2) Provide for the orderly dispersal of patrons from the event at the end of the event and prevent patrons from congregating or loitering on the premises of the event;

(3) Ensure that an adequate number of security personnel are employed and in attendance in order to maintain order and ensure compliance with all applicable federal and state laws and city ordinances;

(4) Exercise appropriate control over event patrons on the event premises for such purposes as preventing unnecessary noise, litter, trespass, loitering, property damage, traffic obstruction and similar activities which may constitute a nuisance;

(5) Fulfill the purpose of the security personnel requirement to maintain the public peace and order on the event premises. The applicant or responsible person is under a continuing obligation to take reasonable measures, including calling emergency personnel, to curtail any conduct which is in violation of state or local laws or offensive to public health, decency and morality, or peace and order, including, without limitation, minors in possession of alcoholic beverage, use or possession of controlled substances, crimes of violence such as homicide, aggravated battery, battery, aggravated assault, assault, rape, criminal threat and disorderly conduct. Failure to immediately notify law enforcement of criminal activity occurring on the event premises may be grounds for revocation or suspension of the license and denial of future license applications.

(c) The Chief of Police shall establish a formula for determining the minimum number of officers necessary to provide traffic enforcement and rerouting of traffic for parades which are part of a community event. All traffic enforcement, street closures and redirection of traffic necessitated by a parade or motor vehicle event must be provided by certified law enforcement officers. The criteria set forth by the Chief shall be the sole criteria utilized in determining the City personnel necessary for the parade or motor vehicle event. In establishing the formula, the following criteria shall be utilized by the Chief of Police:

(1) Number of entries or participants;

(2) Whether the parade includes motor vehicles or all participants are walking;

(3) Duration and length of parade;

(4) Time and day of the week of the parade;

(5) The number and types of intersections required to be closed;

(6) The amount of traffic to be rerouted;

(7) Whether entire or partial roads are closed.

(d) All applications must be complete, including payment of the application and community event licensing fees, and submitted in accordance with the time limits established by Section 3.11.070.

(Ord. No. 47-046, § 6, 6-20-06; Ord. No. 48-129, § 2, 12-9-08; Ord. No. 48-757, § 6, 6-22-2010, eff. 1-1-2011; Ord. No. 48-766, § 2, 7-20-2010, eff. 1-1-2011; Ord. No. 52-315, § 6, 12-26-23)

Sec. 3.11.062. Additional information required for community event umbrella permit.

For community events considered to be an umbrella permit as set forth in Sections 3.11.060 and 3.11.055 of this code, and amendments thereto, the following information is required to accompany a community event permit application:

(a) Complete information regarding any and all participating vendors who qualify as transient merchants" under Chapter 3.95 of the Code of the City of Wichita. This information shall include, at a minimum, the vendors name, date of birth, address, proof of a current sales tax license from the State of Kansas or proof of exempt status from the state sales tax, the business name of the vendor, a brief description of the business to be conducted and/or the merchandise to be sold and, for food vendors, the number of the vendor's license from the Kansas Department of Agriculture.

(b) The transient merchant information must be submitted by the applicant on a form and in such detail as required by the Community Events Coordinator.

(c) Vendors required to obtain a transient merchant permit who are not included as part of the originally submitted and approved or pending community event permit application may be subsequently added thereto if the applicant provides the required information and fees required by this section for the vendor or vendors to the Community Events Coordinator.

(d) Additional vendors may be added to a community event umbrella permit by an applicant until five (5) business days prior to the commencement date of the community event.

(Ord. No. 50-553, § 8, 7-18-17)

Sec. 3.11.063. Community events with mobile food vendors.

As of January 1, 2017, mobile food vendors are no longer considered transient merchants under the Code of the City of Wichita and are not included as vendors covered by the umbrella permit described in Sections 3.11.050 and 3.11.055 and amendments thereto. A mobile food vendor participating in any community event in the City of Wichita shall have a current and valid license as required by Chapter 3.15 of the City Code. An applicant for a community event permit or promoter of a community event covered by an annual permit who desires to allow mobile food vendors to sell food at such community event shall, in a manner approved by the Community Events Coordinator and when submitting a community event permit application provide for each mobile food vendor participating in such event: The business name of the mobile food vending operation, the Kansas Department of Agriculture food establishment permit number for the mobile food vendor, the mobile food vendor's contact information, and the City of Wichita mobile food vending license number. A mobile food vendor who is not included as part of the originally submitted and approved or pending community event permit application may be subsequently added thereto if the applicant provides the information required by this section for the mobile food vendor to the Community Events Coordinator no later than (3) business days prior to the commencement date of the community event. Such additional mobile food vendor's participation in the event is subject to the approval of the Community Events Coordinator."

(Ord. No. 50-553, § 9, 7-18-17)

Sec. 3.11.065. Regulations for alcohol consumption or sale at community events or in temporary entertainment districts.

(a) Any applicant, who desires to sell or allow the consumption of alcoholic liquor or cereal malt beverage at a community event, shall submit an application to the Community Events Coordinator for the sale or consumption of such alcoholic liquor or cereal malt beverages at such community event or in a temporary entertainment district.

(b) Such written application must be made on a form provided by the Community Events Coordinator. The application must be submitted to the Community Events Coordinator not less than 45 days before the date of the proposed community event or temporary entertainment district.

(c) The written application shall contain the following information:

(1) The name and address of the applicant;

(2) The dates and times when alcoholic liquor or cereal malt beverages will be served at such event;

(3) All necessary and applicable state and City licenses and/or permits for the sale of alcoholic liquor or cereal malt beverage at such event, or written documentation that an application is pending for such permits, or licenses;

(4) A detailed security plan;

(5) A plan as to how the event promoter will prevent the off-premises consumption of alcohol and the consumption of alcohol by minors;

(6) A detailed site map indicating:

(a) Entry and exit points to the event venue(s);

(b) Description of the signage, barriers or maps which will be used to designate the area in which alcoholic liquor or cereal malt beverages may be consumed;

(c) The number and exact locations of all alcoholic liquor or cereal malt beverage sale/distribution booths;

(d) The location of any licensed drinking establishments that desire to participate in the temporary entertainment district, and a designation of the area of the licensed premises of such drinking establishment(s) which have been extended into the temporary entertainment district.

(7) Whether entry to the event or temporary entertainment district is restricted to invited guests, or open to the public;

(8) The type of alcoholic liquor or cereal malt beverage to be sold or dispensed and the means or method which will be used to sell, dispense or distribute the alcohol to event attendees;

(9) The identity of the on-site supervisor of the alcoholic liquor or cereal malt beverage service;

(10) The name, address and licensee of any drinking establishment, which is adjacent to the event and which has extended its licensed premises into the temporary entertainment district if such event is occurring on the public streets and sidewalks of the City of Wichita. Only those drinking establishments listed on the community event application will be granted approval by the City Council to utilize the City streets, sidewalks or other public property for the extension of their licensed premises;

(11) The name and address of any adjacent businesses which are to be included in the event area or temporary entertainment district;

(12) A list of streets, alleys and/or street rights-of-way to be closed to motor vehicle traffic for such event or temporary entertainment district and the dates and times for such street closures;

(13) If signs are to be used to designate areas were alcoholic liquor or cereal malt beverage may be consumed, a diagram showing the number, size and location of such signs.

(d) The City Council shall review written applications for temporary entertainment districts and may, by resolution, authorize the possession, sale and/or consumption of alcoholic liquor on streets and alleys which have been closed to motor vehicle traffic and sidewalks in the designated temporary entertainment district. In determining if approval should be given, the City Council shall consider those factors set forth in Section 3.11.080 of the Code of the City of Wichita, Kansas.

(e) Approval by the City Council, pursuant to this Section, shall not be required for community events held on locations exempted from the prohibitions of consuming alcohol in public, as designated by Section 4.04.045 of the Code of the City of Wichita or those events which occur on private property.

(f) Alcoholic liquor or cereal malt beverages served at a community event or in a temporary entertainment district are to be served in distinctively different containers than those in which non-alcoholic drinks are served.

(g) Alcoholic liquor or cereal malt beverages served at a community event or in a temporary entertainment district are not to be sold or served in pitchers, buckets or carafes and no person is to be served or allowed to purchase more than two alcoholic drinks at the same time.

(h) Alcoholic liquor or cereal malt beverages shall not be served, sold or consumed in glass bottles, glass containers or glass vessels at a community event or in a temporary entertainment district.

(i) If multiple alcoholic liquor or cereal malt beverage vendors or licensees are participating in a community event or temporary entertainment district, each vendor or licensee must serve their alcoholic liquor or cereal malt beverage in distinctive containers which identify such vendor or licensee.

(j) It shall be unlawful for any person, at a community event or in a temporary entertainment district, to sell, serve or allow the consumption of alcoholic liquor or cereal malt beverages to or by any individual who is not wearing a wristband or other identifying device to indicate that the individual is the legal age for consumption of alcoholic liquor or cereal malt beverage.

(k) It shall be unlawful for any person to possess or consume alcoholic liquor or cereal malt beverages at a community event or in a temporary entertainment district unless such person is wearing a wristband to indicate that such individual is the legal age for consumption of alcoholic liquor or cereal malt beverage.

(l) It shall be unlawful for any person to distribute, sell or allow the consumption of any alcoholic liquor on the streets or sidewalks within a temporary entertainment district without obtaining the approval of the City Council and any and all necessary state and local permits for the sale of such alcoholic liquor.
(Ord. No. 48-353, § 1, 6-23-09; Ord. No. 48-548, § 2, 12-1-09; Ord. No. 48-757, § 7, 6-22-2010, eff. 1-1-2011; Ord. No. 50-553, § 7, 7-18-17)

Sec. 3.11.070. Fees.

(a) All applications for a community event license shall include an application fee which shall not be refundable, the amount of which shall be set by the City Manager and approved by a resolution of the City Council.

(b) All applicants for events whether held on private or public property shall be responsible for any applications, fees, licenses, permits and any rental fees which may be required based upon the scope and nature of event. The City Manager shall establish a schedule of fees for special events. Such schedule of fees shall be approved by a resolution of the City Council.

(c) No application shall be accepted by the Community Events Coordinator less than ten business days prior to the proposed event, except as set forth in Section 3.11.055 of this Chapter.

(d) Applications for a community event submitted less than 30 business days, but more than ten business days prior to a proposed event require an additional administrative fee of $75.00 to expedite the application, except as set forth in Section 3.11.055 of this Chapter.
(Ord. No. 47-046, § 7, 6-20-06; Ord. No. 48-757, § 8, 6-22-2010, eff. 1-1-2011; Ord. No. 49-487, § 1, 4-23-2013, eff. 4-26-2013)

Sec. 3.11.080. Review process.

Subject to Section 3.11.090, the Community Events Coordinator shall approve a community event permit if it is determined that all of the following criteria have been met:

(a) The event will not obstruct the operation of emergency vehicles or equipment in or through the particular permit area;

(b) The proposed event does not present a safety, noise, or traffic hazard;

(c) The proposed event conforms to regulations regarding the use or allowable number of participants for the proposed venue, location, or site; and

(d) The proposed event does not violate any provisions of the Code of the City of Wichita, the laws of the State of Kansas or the laws of the United States, except as provided in Subsection 3.11.090(h);

(e) If the proposed event is to occur on park property, the event conforms to regulations of the Board of Park Commissioners;

(f) If the event requires the closure of public streets, such street closures have been approved pursuant to this Chapter;

(g) If the event requests exclusive use of park property, such request has been approved by the City Council pursuant to Section 9.03.170 of the Code of the City of Wichita;

(h) The proposed parade or motor vehicle event complies with the provisions of Section 3.14.050;

(i) In deciding whether to approve an application, no consideration may be given to the message of the event, the content of speech, the identity or associational relationships of the applicant, or to any assumptions or predictions as to the amount of hostility which may be aroused in the public by the content of speech or message conveyed by the event.

(Ord. No. 47-046, § 8, 6-20-06; Ord. No. 48-129, § 3, 12-9-08; Ord. No. 48-757, § 9, 6-22-2010, eff. 1-1-2011; Ord. No. 48-766, § 3, 7-20-2010, eff. 1-1-2011; Ord. No. 49-487, § 2, 4-23-2013, eff. 4-26-2013; Ord. No. 52-315, § 7, 12-26-23)

Sec. 3.11.090. Denial of permit.

The Community Events Coordinator may deny an application for a Community Events Permit if he or she finds any of the following:

(a) One or more of the approval criteria specified in Section 3.11.080 is not met;

(b) The applicant has knowingly made a false, misleading or fraudulent statement of fact to the City in the application process;

(c) The application is incomplete, does not include payment of required fees, or does not contain the information required by this Chapter;

(d) The application does not satisfy the requirements of this Chapter or administrative regulations adopted by the Community Events Coordinator;

(e) The applicant fails to comply with any conditions of approval including, but not limited to:

(1) Remittance of fees, charges or deposits;

(2) Proof of liability insurance required;

(3) Obtaining all other permits and licenses as required by the City Code for the proposed event.

(f) The applicant, in the last two years, has had a previous community event permit revoked for failure to comply with the terms or conditions of the permit, or for violations of the ordinances of the City of Wichita.

(g) The applicant, in the last two years, has organized a community event which did not conform to the plans and application submitted to the Community Events Coordinator or which failed to comply with any conditions for such event placed on the event by the Community Event Coordinator.

(h) The proposed event would be in violation of the Code of the City of Wichita, the laws of the State of Kansas or the laws of the United States, however, events proposed to occur in a location or for a use not allowed by the Wichita-Sedgwick County Unified Zoning Code shall be set for a public hearing before the City Council and if approved, may be granted a permit, but no such event shall be approved for a duration exceeding ten (10) calendar days.

(i) The event fails to conform to regulations regarding the use and allowable number of participants for the proposed venue, location or site.

(j) The proposed event fails to conform to regulations adopted by the Director of Parks and Recreation.

(k) The applicant, event vendors or participants have failed to comply with the terms and conditions of a prior community event permit.

(l) The applicant, within the last two years, has failed to obtain the appropriate permits and licenses for a previous community event.

(m) The applicant demonstrates an unwillingness or inability to conduct the proposed event pursuant to the terms of this Chapter.

(n) The City does not have the necessary resources to accommodate the event because of its locations and/or duration.

(o) The application was not filed more than ten business days prior to the proposed event with the Community Event Coordinator.

The applicant shall be notified of the denial in writing. The denial shall set forth the specific reasons for the denial of the application.
(Ord. No. 47-046, § 9, 6-20-06; Ord. No. 48-129, § 4, 12-9-08; Ord. No. 48-757, § 10, 6-22-2010, eff. 1-1-2011; Ord. No. 49-487, § 3, 4-23-2013, eff. 4-26-2013)

Sec. 3.11.105. Revocation of permit—Notice of hearing.

(a) Any permit issued under this Chapter may be revoked by the Community Event Coordinator, the Chief of Police, Fire Chief or Superintendent of Central Inspection after written notice, if the permit holder has (1) failed to pay the permit fee, (2) violated any provision of this Chapter, (3) becomes ineligible for a permit because of any of the provisions of this Chapter, or (4) the permit holder has given a false statement as to a material fact submitted to the Community Event Coordinator during the application process.

(b) A permit may also be revoked if: (1) the event fails to conform to the terms and conditions of the permit, (2) the event is in violation of the ordinances of the City of Wichita, the law of the State of Kansas or, the laws of the United States, (3) the event has failed to obtain the appropriate permits and licenses for the event or (4) the event presents a safety, noise or traffic hazard.

(c) The filing of charges or a conviction in a court of law is not required to establish that the permit holder has violated the terms and conditions of this Chapter or other law. However, a certified copy of conviction from any local or state court for such violation is prima facia evidence of a violation. A conviction shall include being placed on diversion or being adjudged guilty upon entering a plea of no contest.
(Ord. No. 48-757, § 11, 6-22-2010, eff. 1-1-2011)

Sec. 3.11.110. Appeal procedure.

(a) Any applicant or permit holder aggrieved by the denial or revocation of a community event permit may file with the City Clerk a written Notice of Appeal to the City Council within seven business days of the decision by the Community Events Coordinator. The Notice of Appeal shall specify:

(1) The name and address of the appellant;

(2) The date of application;

(3) The date of the denial or revocation of the permit;

(4) The factual basis for the appeal.

(b) The Notice of Appeal shall be accompanied by a fee of $100.00. Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before the City Council, no later than 30 days from the date of the filing of the Notice of Appeal with the City Clerk. Any appeal shall stay the denial of the permit until the matter is heard by the City Council.

(c) The City Council may approve, overrule or modify the decision of the Community Events Coordinator.

(d) The Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101. Any such appeal to the District Court shall not stay the denial or revocation of the permit by the City Council.

(e) In case of the revocation of any permit, no new permit shall be issued to such applicant or to any person acting on his or her behalf for a period of two years from the date of the revocation.
(Ord. No. 47-046, § 10, 6-20-06; Ord. No. 48-129, § 5, 12-9-08; Ord. No. 48-757, § 12, 6-22-10, eff. 1-1-11)

Sec. 3.11.130. Insurance requirements.

The permit holder for events occurring on public or park property shall procure and maintain in full force and effect during the term of the permit a policy of insurance from an insurance company authorized to do business in the State of Kansas, which policy includes the City of Wichita, its officers and agents, as named insureds and which provides general liability coverage in an amount not less than $500,000.00 per occurrence and a minimum of $50,000.00 property

damage coverage. Proof of insurance shall be submitted to the City prior to issuance of the permit and maintenance of this insurance shall be a condition of the permit.
(Ord. No. 47-046, § 12, 6-20-06)

Sec. 3.11.140. Community event temporary signage.

Directional signs for walks and races may be installed on the event route, including the City right-of-way or other private property with the property owner's permission, by the permit holder or his/her designee, provided that each sign is less than two square feet in size, and installed less than two hours prior to the start of the event and removed within one hour of the completion of the event, irrespective of the provisions of Title 24. All other signs must be placed in conformance with all applicable sign code provisions. A site map showing the type and location of the proposed directional signs and any other signage must be submitted as part of the community event permit application and be approved by the City.

All necessary permits for such signs must be obtained.
(Ord. No. 47-046, § 13, 6-20-06)

Sec. 3.11.150. Street closures.

(a) The Community Events Coordinator, with the approval of the Chief of Police and the City Traffic Engineer, is authorized to approve all street closure requests which are necessary as part of a community event application except as set forth in subsections (b) or (c)(2) of this Section or Section 3.11.220(g) and any amendments thereto.

(b) All street closure requests which are necessary as part of a temporary entertainment district application must be approved by the City Council as set forth in Section 3.11.065(d) and amendments thereto. Such approvals may be considered to be routine matters that can be placed on the City Council's consent agenda pursuant to Section 2.04.190(V) of this Code and any amendments thereto.

(c) The following requirements must be met before a street closure is approved:

1. A completed application for a street closure must be submitted to the Community Events Coordinator at least 45 days prior to the date of the proposed street closure. An administrative fee of $25.00 shall accompany any application for a street closure. Such fee shall not be required for street closures as part of a block party as authorized by Section 3.11.220. This fee covers administrative expenses and notification of transit, ambulance, police and fire departments of the street closure.

2. The applicant is responsible for attempting to secure the cooperation of all property owners/residents affected by the street closing and will notify all such property owners/residents in writing of the upcoming event by either mailing or delivering such notice to them. The written notice required by this section shall include a statement that any affected property owner/resident may contact city staff to express approval or disapproval or objection to the street closure, along with the phone number and email address for the Community Events Coordinator. The applicant shall provide proof of compliance with this requirement by attaching to the community event permit application a copy of the notice sent and a list of the name and address of the property owners/residents to whom such notice was sent. Failure to notify any property owners/residents may result in the denial of the application or require a change in the scheduled closing date. If more than one-third (⅓) of the property owners/residents affected by the street closure object to or express disapproval, the request for street closure shall be set for a hearing in front of the City Council for final determination.

3. The applicant must be the responsible party or event promoter for the event.

4. The applicant will provide a sketch of the street area indicating the area to be closed and the location of all properties adjacent to the area being closed.

5. The closure of the street affected by the event must not cause a significant hardship to pedestrian or vehicular traffic. Alternative routes must be available for public and emergency vehicles.

6. The applicant is responsible for obtaining and placing barricades for the street closure and for removing the barricades promptly after the event is concluded.

7. The applicant must, promptly after the conclusion of the event, clean the right-of-way to its condition prior to the street closure.

8. The applicant must allow City personnel, emergency vehicles and police officers to lawfully enter the area. Orders or directions given by police or fire officials in the lawful discharge of their duties must be obeyed.

9. If required, the applicant must hire and pay compensation for a Wichita Police Officer, who is a certified law enforcement officer, to direct traffic which must be re-routed due to the street closure.

(d) The community event permit holder, any holder of a temporary permit license to sell alcoholic liquor, and any drinking establishment serving, selling or distributing alcoholic liquor on City streets or sidewalks, which have been closed pursuant to this Section as a temporary entertainment district, shall meet with the Community Events Coordinator and City staff, as directed by the Community Events Coordinator, to review security plans and procedures to be utilized by the vendors relating to the sale and consumption of alcoholic liquor.
(Ord. No. 47-046, § 14, 6-20-06; Ord. No. 48-128, § 1, 12-16-08; Ord. No. 48-353, § 3, 6-23-09; Ord. No. 48-548, § 3, 12-1-09; Ord. No. 48-757, § 13, 6-22-10, eff. 1-1-11; Ord. No. 49-487, § 4, 4-23-13, eff. 4-26-13; Ord. No. 51-043, § 3, 5-28-19; Ord. No. 52-315, § 8, 12-26-23)

Sec. 3.11.155. Hours of operation for community events.

Outdoor entertainment for events licensed, pursuant to this Chapter, shall cease between the hours of 11:00 p.m. to 8:00 a.m. Sunday through Thursday and midnight to 8:00 a.m. on Friday and Saturday.

The provisions of this section shall not apply to fun runs, roadway foot races, fundraising walks, bikeathons, bike races or similar type events scheduled between 8:00 a.m. on December 31st through 12:00 midnight on January 1 st of any year, subject to appropriate staff review.

The time limitations set forth in this section may be waived by a Resolution approved by the City Council for events occurring within the Downtown Core Area. For the purposes of this section, Downtown Core Area is defined as that area of the City of Wichita bounded by Central on the North, Washington on the East, Seneca on the West and Kellogg on the South. Such Resolution will set forth the specific times approved for any such community event.
(Ord. No. 48-353, § 4, 6-23-09; Ord. No. 49-628, § 1, 12-10-13; Ord. No. 20-670, § 1, 2-6-18)

Sec. 3.11.160. Display of community event permit.

A copy of the signed approval letter from the Special Events Coordinator shall be exhibited upon demand of any City official.
(Ord. No. 47-046, § 15, 6-20-06)

Sec. 3.11.170. Use of City name or logo without authorization.

It shall be unlawful for the permit holder conducting a community event to use the words 'the City of Wichita' or 'City of Wichita' to suggest or indicate that the event is sponsored by the City or to use a facsimile of the seal or logo of the City of Wichita in the promotional materials or advertising for the event without the City's authorization.
(Ord. No. 47-046, § 16, 6-20-06)

Sec. 3.11.180. Administrative regulations.

The Community Events Coordinator, or her/his designee, may adopt administrative regulations that are consistent with and that further the terms and requirements set forth within this Chapter. All such administrative regulations must be in writing, and failure of an applicant or event promoter to comply with any administrative regulation pertaining to such applicant's or promoter's event shall be grounds for denial of a subsequent permit as set forth in Section 3.11.090(g) of this Code and any amendment thereto; and shall further be grounds for revocation of a permit as set forth in Section 3.11.105(b) and any amendments thereto.
(Ord. No. 47-046, § 17, 6-20-06; Ord. No. 50-039, § 4, 7-21-15)

Sec. 3.11.185. Races—Administrative regulations and guidelines applicable.

In accordance with and pursuant to Sections 3.11.030, 3.11.040 and 3.11.180 of this Code, the Director of the Park and Recreation Department has developed and adopted administrative regulations and guidelines applicable to community events which are races, as that term is defined in Section 3.11.020(s) and amendments thereto. These regulations are set forth in a document titled, "City of Wichita Race/Organized Walk Permit Regulations," and are hereby adopted and made part of this Chapter as if fully set forth herein. Violations of, or failure to comply with such regulations, shall be grounds for denial of a subsequent permit as set forth in Section 3.11.090(g) of this Code and any amendment thereto. Additionally, violations of, or failure to comply with such regulations shall also be considered grounds for revocation of a permit as set forth in Section 3.11.105(b) of this Code and any amendments thereto. These regulations, and any amendments thereto, shall be published on the City's website and a copy thereof made available in the office of the Park and Recreation Department.
(Ord. No. 50-039, § 5, 7-21-15; Ord. No. 52-315, § 9, 12-26-23)

Sec. 3.11.190. Other permits, licenses and fees.

The issuance of a community event permit does not relieve any person from the obligation to obtain any other permit, license or pay any additional fees, including rental fees, required pursuant to this Code or other governmental entity or department of the City of Wichita.
(Ord. No. 47-046, § 18, 6-20-06)

Sec. 3.11.200. Limitations and restrictions.

The issuance of a community event permit does not relieve any person from limitations or restrictions contained in the Code of the City of Wichita relating to noise, sanitation, consumption of cereal malt beverages or alcoholic liquor or street obstructions.
(Ord. No. 47-046, § 19, 6-20-06)

Sec. 3.11.205. Use of all terrain vehicles and golf carts.

Subject to the operational requirements set forth below, the operation of all-terrain vehicles is authorized by licensees, agents, servants, volunteers or employees of licensees on city streets, roadways and bike paths when utilized in conjunction with a community event.

1. When operated on a street or highway which is not closed to vehicular traffic, all vehicles must obey all traffic rules and regulations; and
2. No all-terrain vehicle shall be operated on any public highway, street or road between sunset and sunrise unless equipped with lights as required by law for motorcycles.

For the purposes of this section, all-terrain vehicle is defined as any motorized nonhighway vehicle traveling on three or more tires. Such term shall also include vehicles commonly referred to as golf carts, ATVs or "gators".
(Ord. No. 50-553, § 10, 7-18-17)

Sec. 3.11.210. Penalties.

(a) Any person who intentionally violates any of the provisions of this Chapter shall be guilty of a misdemeanor.

(b) Each day a violation exists shall constitute a separate offense.
(Ord. No. 47-046, § 20, 6-20-06; Ord. No. 48-757, § 14, 6-22-2010, eff. 1-1-2011)

Sec. 3.11.220. Block parties—Approval required.

(a) No person shall engage in, participate, form or hold a block party, unless written approval for the block party has been obtained from the City of Wichita as provided herein:

(b) A block party shall mean a temporary gathering of area residents held on a blockaded portion of their residential street or alley within the City of Wichita.

(c) Requests to utilize a street for a block party or other similar neighborhood event shall be made by filing an application with the Community Events Coordinator. Such application shall be submitted no less than five business days prior to the proposed event. The Community Events Coordinator, with the approval of the Chief of Police, is authorized to close a local street for the purposes of a block party for a period not to exceed five hours.

(d) The applicant must include a petition in favor of the event signed by two-thirds of residents and businesses on both sides of the street to be closed. Only a street classified by the City as a residential street may be utilized for a block party or other similar neighborhood event.

(e) The application will be subject to such additional rules and regulations adopted by City staff to ensure that the street closure will not obstruct the operation of emergency vehicles or equipment in or through the area and that the proposed block party does not present a safety, noise or traffic hazard.

(f) Streets may not be blockaded for a period of time which exceeds five hours.

(g) Any applicant for a permit under this Chapter who has been administratively denied the issuance of a permit shall have a right of appeal from the denial to the Wichita City Council by filing a written request therefor with the City Clerk. The Notice of Appeal must be filed with the City Clerk within five days of the denial of such permit application. The appeal shall be heard at the next regularly scheduled meeting of the City Council.

The City Council may approve the denial, overrule the denial or modify the request for the permit.

The City Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101.

(h) Approval for a block party does not relieve any person from the obligation to obtain any other permit or license required pursuant to this Code or other governmental entity.

(i) Approval for a block party does not relieve any person from limitations or restrictions contained in the Code of the City of Wichita relating to noise, sanitation, consumption of cereal malt beverages or alcoholic liquor or street obstructions.
(Ord. No. 47-046, § 2, 6-20-06)

CHAPTER 3.12. RESERVED*

*__Editor's note—__Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed ch. 3.12, §§ 3.12.010—3.12.060, which pertained to theaters and shows, and derived from Ord. No. 10-907, § 1; Ord. No. 10-907, §§ 1, 5; Ord. No. 28-599, § 1 (part); Ord. No. 39-250, § 16; Ord. No. 8283, §§ 1, 2; and Ord. No. 9129, § 1.

CHAPTER 3.13. RESERVED*

*__Editor's note—__Ord. No. 48-767, § 15, adopted July 20, 2010, repealed Ch. 3.13, §§ 3.13.010—3.13.120 in their entirety. Formerly, said chapter pertained to parades and derived from Ord. No. 38-112 § 2. The users' attention is directed to Ch. 3.14 for similar provisions.

CHAPTER 3.14. PARADES

Sec. 3.14.010. Definitions.
Sec. 3.14.020. Permit required; unlawful acts; exceptions.
Sec. 3.14.030. Application.
Sec. 3.14.040. Fees.
Sec. 3.14.050. Standards for issuance.
Sec. 3.14.060. Notice to other city officials.
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Sec. 3.14.085. Appeal to City Council.
Sec. 3.14.090. Duties of permit holder.
Sec. 3.14.100. Public conduct during parades and motor vehicle events.
Sec. 3.14.110. Revocation of permit.
Sec. 3.14.120. Indemnification.
Sec. 3.14.130. Severability.

Sec. 3.14.010. Definitions.

[The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

'Applicant' means any person who has filed a written application for a parade that is responsible for conducting the parade and the responsible organization, corporation or other group on whose behalf the individual is requesting the permit.

'Chief of Police' shall mean the Chief of Police of the City of Wichita, Kansas.

'City' means the City of Wichita, Kansas.

'City personnel and equipment fee' is an amount of money that the city requires a parade permit holder to pay to cover the actual costs of providing traffic control and clean-up associated with providing city personnel and equipment in connection with the parade activity.

'Closure of streets' means the restriction of vehicular traffic to a street or roadway or portion thereof, and includes the manual control of traffic at intersections by police.

'FireCchief' shall mean the Fire Chief of the City of Wichita, Kansas.

'March' means a parade of persons on foot, in wheelchairs or strollers, and does not include the use of motorized vehicles, bicycles, floats or animals. The march is facilitated by mobile police officers on motorcycles, bicycles, on foot or in vehicles who create and maintain a zone of protection around marchers and provide traffic control as they move along the route.

'Motor vehicle' means every self-powered vehicle other than a motorized wheelchair.

'Motor vehicle event' means motorcades, automobile cruises, motorcycle runs, motorcycle rallies or parades in which more than 80% of the entries are motor vehicles.

'Motorcycle' means every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground.

'Parade' means: an organized procession of persons, motor vehicles, bicycles, floats, animals or large objects, or any combination thereof traveling in unison along or upon a street or roadway which requires the closure of streets and/or intersections or the regulation of vehicular traffic by police to prevent a conflict with the normal or regular flow of traffic upon the street or roadway.

'Parade permit' is a permit as required by this Chapter.

'Permit holder' means the person who has been issued a parade permit by the City of Wichita.

'Person' is any person, firm partnership, association, corporation, company or organization of any kind.

'Roadway' means that portion of a street improved, designed or ordinarily used for vehicular traffic exclusive of the berm or shoulder.

'Sidewalk' means that portion of a street between the curb line or the lateral lines of a roadway and the adjacent property lines intended for use by pedestrians.

'Street' means the entire width between property lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic. Where the word 'street' is used in this chapter, it

means street, avenue, boulevard, thoroughfare, trafficway, alley and any other public way for vehicular traffic by whatever name unless the context clearly indicates otherwise.

'Vehicle' means every device in, upon or by which any person or property is or may be transported or drawn upon a street, highway or roadway.

(Ord. No. 48-767, § 1, 7-20-2010)

Sec. 3.14.020. Permit required; unlawful acts; exceptions.

(a) It shall be unlawful for any person to stage, present or conduct any parade without first having obtained a parade permit.

(b) Parades which are part of a community event, as defined by Section 3.11.020, shall obtain a community event permit as required by Chapter 3.11 of the Code of the City of Wichita. No additional permit or fees for these activities will be required by this chapter.

(c) It shall be unlawful for any person to participate in a parade or motor vehicle event for which the person knows a parade or community event permit has not been granted.

(d) It shall be unlawful for any person in charge of, or responsible for the conduct of, a parade or community event to knowingly fail to comply with any condition of the parade or community event permit.

(e) This chapter shall not apply to:

(1) Funeral processions, which are regulated by Chapter 3.74 of the Code of the City of Wichita;

(2) A governmental agency acting within the scope of its functions;

(3) Sidewalk processions or marches conducted entirely on sidewalks which observe and comply with traffic regulations and traffic control devices.

(Ord. No. 48-767, § 2, 7-20-2010)

Sec. 3.14.030. Application.

A person seeking issuance of a parade permit shall file an application with the City Treasurer on forms provided by the City Treasurer.

(a) *Application filing period.* An application for a parade permit shall be filed with the City Treasurer not less than seven business days before the date on which it is proposed to conduct the parade. The applications shall be signed by the applicant.

(b) *Late applications.* The Chief of Police, or his or her designee, shall consider applications that are received after the seven day filing period. The Chief of Police, or his or her designee, shall approve a late application if he or she finds that there is adequate time to review the application, there are City personnel and equipment available to support the parade activity, and the standards for permit issuance set forth in Section 3.14.050 are met. The speech content of the parade shall not be a consideration in whether or not approval of a late application is granted.

(c) *Approval / disapproval of application.* The Chief of Police, or his or her designee, shall be responsible for the processing and review of the application. The Chief of Police, or his or her designee, shall act upon the application for a parade permit within four business days after the filing thereof. The applicant will be notified by the City Treasurer if the application has been approved or disapproved. If, due to the nature or scope of the parade, the application cannot be reviewed within four business days, the Chief of Police, or his or her designee, shall notify the applicant within four business days after the filing of the application that additional time is required. The length of any additional time necessary to consider the application shall be no greater than is reasonably necessary, considering the nature and scope of the parade. However,

in no event shall the Chief of Police approve or disapprove an application less than forty-eight hours

prior to the parade. If the Chief of Police, or his or her designee, disapproves the application, the City Treasurer shall mail to the applicant, within five business days after the date on which the application was filed, a written notice of disapproval, which shall set forth the reasons for disapproval of the permit and the applicant's right of appeal. The Chief of Police, or his or her designee, is empowered to consider alternative dates, times and locations presented by the applicant provided these alternatives meet the standards for issuance set forth in Section 3.14.050. No additional processing fee will be charged for consideration of alternative dates, times and locations, provided the alternatives are presented by the applicant contemporaneously with the notice of disapproval.

(d) *Application contents.* The application for a parade permit shall set forth the following information:

(1) The name, address and telephone number of the person or entity seeking to conduct such parade;

(2) If the parade is proposed to be conducted for, on behalf of, or by an organization, the name, address and telephone number of the headquarters of the organization, and of the authorized and responsible heads of such organization;

(3) The name, address and telephone number of the person who will be responsible for the conduct of the parade;

(4) The date when the parade is to be conducted;

(5) A map or diagram of the route to be traveled, the starting point and the termination point;

(6) The approximate number of persons, animals and vehicles which will constitute the parade; including the type of animals and description of any vehicles;

(7) The time when such parade will start and terminate;

(8) A statement as to whether the parade will occupy all or only a portion of the width of the streets proposed to be traversed;

(9) The time and location by streets of any assembly areas for such parade.

(Ord. No. 48-767, § 3, 7-20-2010)

Sec. 3.14.040. Fees.

(a) *Processing fee.* At the time of filing of an application for a parade permit, there shall be paid a processing fee of $50.00 for the administrative costs associated with processing the application.

(b) *City personnel and equipment fee.* In addition to the processing fees, parade permit applicants, for parades occurring on or after January 1, 2011, shall pay, upon issuance of the permit, a percentage or portion of the actual City Personnel and Equipment Fees necessitated by the parade.

The percentage or portion of City Personnel and Equipment Fees subject to recovery shall be established by the City Manager. Such schedule of recoverable fees shall be approved by a resolution of the City Council.

(c) *[Determination.]* The Chief of Police shall establish a formula for determining the minimum number of law enforcement officers necessary to provide traffic enforcement and rerouting of traffic for the proposed parade. All traffic enforcement, street closures and redirection of traffic necessitated by a parade must be provided by certified law enforcement officers. The criteria set forth by the Chief shall be the sole criteria utilized in determining the City personnel necessary for the parade. In establishing the formula, the following criteria shall be utilized by the Chief of Police:

(1) Number of entries or participants;

(2) Whether the parade includes motor vehicles or all participants are walking;

(3) Duration of parade;

(4) Time and day of the week of the event;

(5) The number and type of streets and intersections to be closed;

(6) The amount of traffic to be rerouted;

(7) Whether entire or partial roads are closed.

In determining the amount of officers needed to provide traffic control for the parade, the Chief shall not consider the speech content of the parade activity. No costs shall be assessed for the security required for the parade.

(d) *[Marches.]* All marches, as defined by this chapter, shall not be required to pay city personnel or equipment fees. Such marches shall only pay the application fee of fifty dollars ($50.00).

(e) *Fee reconsideration.* If any person or organization disagrees with the determination of the amount of the City Personnel and Equipment Fee, that person or organization may request reconsideration in accordance with the appeal procedures set forth in Section 3.14.080. This reconsideration procedure shall be exclusive means for fee reconsideration, and no elected or appointed official may otherwise waive or fail to assess processing fees and personnel and equipment fees.

(f) *Fee refunds.* If the permit holder is unable to hold or conduct the approved parade due to inclement weather or some other cause not within the permit holder's control, the permit holder may submit a written request for the refund of City Personnel and Equipment Fees to the City Treasurer within ten days after the date on which the parade was to be held. The City Treasurer shall reduce the City Personnel and Equipment Fee to ensure that the permitee is charged only for the actual costs of City personnel and equipment provided in support of the parade activity. The City Treasurer shall refund any excess City Personnel and Equipment Fees paid, except for the fifty dollar ($50.00) processing fee.
(Ord. No. 48-767, § 4, 7-20-2010)

Sec. 3.14.050. Standards for issuance.

The Chief of Police or his or her designee shall approve issuance of a permit as provided for under this chapter when, from a consideration of the application and from such other information as may otherwise be obtained, he or she finds that:

(a) The conduct of the parade will not substantially interrupt the safe and orderly movement of other traffic contiguous to its route;

(b) The conduct of the parade will not require the diversion of so great a number of police officers of the City as to prevent normal police protection to the City;

(c) The concentration of persons, animals and vehicles at assembly points of the parade will not interfere with adequate fire and police protection of, or ambulance service to, areas contiguous to such assembly areas;

(d) The conduct of such parade will not interfere with the movement of emergency equipment;

(e) The conduct of the parade is not reasonably likely to cause injury to persons, property, roadways or public property;

(f) The parade is scheduled to move from its point of origin to its point of termination expeditiously and without unreasonable delays en route;

(g) The parade is not to be held for the sole purpose of advertising any product, goods, or event, and is not designed to be held purely for private profit.

Provided, however, that this prohibition shall not apply to signs identifying organizations or sponsors furnishing or sponsoring floats or transportation for any given parade;

(h) The course and/or time of the proposed parade does not interfere with the parade of any other person or organization who currently holds or has applied for a parade permit;

(i) The permit application is incomplete;

(j) The applicant has had a parade permit revoked within the preceding two years of the application;

(k) The applicant has failed to pay all necessary fees;

(l) The parade is scheduled to be conducted between the heavy traffic demand hours of seven a.m. and nine a.m. and four p.m. and six p.m.

(m) No parade permit shall be issued for a parade to be held on any portion of highways U.S. 54, I-235, I-135 and K-96.

(o) The applicant shall designate the starting point of the parade and its termination point. No parade shall travel over any portion of a street on the same route more than once during one parade but shall move from point of origin to point of destination in a reasonably continuous manner.

The speech content of the parade shall not be a consideration in reviewing the standards for permit issuance.
(Ord. No. 48-767, § 5, 7-20-2010)

Sec. 3.14.060. Notice to other city officials.

Immediately upon the issuance of a parade permit, the City Treasurer shall send a copy thereof to the following:

(a) The City Manager;

(b) The Chief of Police;

(c) The Fire Chief;

(d) The Director of Wichita Transit;

(e) The Sedgwick County Director of Emergency Communications (911);

(f) The Director of Public Works;

(g) The City Engineer;

(h) The Director of Park and Recreation (when proposed route cuts through or is adjacent to a park).
(Ord. No. 48-767, § 6, 7-20-2010)

Sec. 3.14.070. Contents of permit.

Each parade permit shall state the following information:

(a) Date and location of the parade;

(b) Starting time and termination time of the parade;

(c) The portions of the streets to be traversed that may be occupied by the parade;

(d) The maximum length of the parade in miles or fractions thereof;

(e) Such other information as the Chief of Police or his or her designee shall find necessary to the enforcement of this chapter.
(Ord. No. 48-767, § 7, 7-20-2010)

Sec. 3.14.080. Appeal procedure.

(a) Any person aggrieved by the denial or revocation or a parade permit shall have the right to appeal the denial or revocation by filing an immediate request for a hearing which shall be conducted by the City Manager. The hearing on appeal shall be scheduled and held by the City Manager no later than three business days after the notice of appeal is filed with the City Manager's Office. The sole issue for determination by the City Manager shall be whether the decision of the Chief of Police, or his or her designee, was within the scope of his or her authority, supported by substantial evidence and not arbitrary and capricious. The filing of a written appeal under this subsection shall not stay any fees assessed, denial of a parade permit or revocation of a parade permit by the Chief of Police or his or her designee.

(b) The City Manager's decision regarding an appeal for reconsideration of the determination of the amount of the City Personnel and Equipment Fees shall not be appealable to the City Council.
(Ord. No. 48-767, § 8, 7-20-2010)

Sec. 3.14.085. Appeal to City Council.

(a) In the event that an applicant or a permit holder desires to appeal the decision of the City Manager regarding the denial or revocation of a permit to the City Council, written notice of such appeal shall be filed with the City Clerk within ten business days of the date upon the City Manager's written decision. Any appeal taken

from the decision of the City Manager shall stay the Manager's order until the matter is heard and a decision rendered by the City Council.

(b) The City Clerk shall schedule a hearing before the City Council at its next regularly scheduled meeting, which shall occur no later than thirty days from the date of the filing of the Notice of Appeal with the City Clerk.

(c) The City Council may approve the denial or revocation, overrule the denial or revocation or modify the decision of the City Manager.

(d) The Council's decision may be appealed to the Eighteenth Judicial District Court of Kansas pursuant to K.S.A. 60-201, et seq., and any amendments thereto. Any such appeal to the District Court shall not stay the order by the City Council.
(Ord. No. 48-767, § 9, 7-20-2010)

Sec. 3.14.090. Duties of permit holder.

(a) A permit holder hereunder shall comply with all permit directions and conditions and with applicable laws and ordinances.

(b) The person heading or leading such activity shall carry the parade permit upon his person during the conduct of the parade, and shall be responsible for moving the parade from its point of origin to its point of termination expeditiously and without unreasonable delays in route.
(Ord. No. 48-767, § 10, 7-20-2010)

Sec. 3.14.100. Public conduct during parades and motor vehicle events.

(a) No person shall unreasonably hamper, obstruct or impede, or interfere with any parade, motor vehicle event, or any person, vehicle or animal participating or used in a parade or motor vehicle event.

(b) No driver of any vehicle shall drive between the vehicles or persons comprising a parade or motor vehicle event when such vehicles or persons are in motion and are conspicuously designated as a parade or motor vehicle event. Provided, however, that this prohibition shall not apply to police, fire or ambulance vehicles when engaged in police, fire or ambulance functions.

(c) The Chief of Police and Director of Public Works shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a street or part thereof constituting a part of a parade or motor vehicle event, and to post signs to such effect. It shall be unlawful for any person to park or leave unattended any vehicle in violation thereof. No person shall be liable for parking on an un-posted street in violation of this chapter.

(d) It shall be unlawful for any person as a parade or motor vehicle event participant to discharge or fire any gun, pistol, air rifle, pellet gun, BB gun or any firearm, as a part of, during, or along any parade route while a parade is in progress, provided, however, that firearms loaded with blank ammunition which when discharged does not produce any noise greater than that produced by .22 caliber blank ammunition may be used as a part of the parade. This prohibition shall not apply to law enforcement officers engaged in the performance of their duties.
(Ord. No. 48-767, § 11, 7-20-2010)

Sec. 3.14.110. Revocation of permit.

If, after issuance of the parade permit and before the date of the parade, there is a violation of any term, condition, restriction or limitation of such permit, the Chief of Police, or his or her designee, shall conduct a review or investigation to determine whether the violation can be remedied prior to the date of the parade. If the violation can be remedied, the parade will proceed as set forth in the permit. If the violation cannot be remedied prior to the date of the parade, the parade permit will be revoked. If the violation occurs during the conduct of the parade, the Chief of Police, or his or her designee, may revoke the permit and immediately terminate all parade activity if he or she determines that the public safety is jeopardized by the violation of parade permit standards. The Chief of Police, or his or her designee, also has the authority to revoke the parade permit and terminate the parade activity when a public emergency arises where police resources required for that emergency are so great that deployment of police services for the parade would have an immediate and adverse effect upon the welfare and safety of persons or

property. Appeal of the permit revocation may be taken in accordance with the appeal procedures set forth in Section 3.14.080.
(Ord. No. 48-767, § 12, 7-20-2010)

Sec. 3.14.120. Indemnification.

(a) Applicants or parade sponsors must execute a written indemnity agreement in the form required by the City, indemnifying and holding harmless, the City and its officers and employees against all claims, damages or causes of action arising from the parade resulting in injury, damage or death or damage to personal property.

(b) The applicant shall take all reasonable measures necessary to protect the parade participants or marchers.
(Ord. No. 48-767, § 13, 7-20-2010)

Sec. 3.14.130. Severability.

If any section, subsection, sentence, clause or phrase of this ordinance is for any reason held invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this ordinance.
(Ord. No. 48-767, § 14, 7-20-2010)

CHAPTER 3.15. MOBILE FOOD VENDORS

Sec. 3.15.010. Definitions.
Sec. 3.15.020. Mobile food vending—License and decal required.
Sec. 3.15.030. Exceptions.
Sec. 3.15.040. License application.
Sec. 3.15.050. Fee.
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Sec. 3.15.085. Inspections.
Sec. 3.15.090. License denial, revocation, and appeal.
Sec. 3.15.100. Term and transferability.
Sec. 3.15.110. Posting.
Sec. 3.15.120. Enforcement—Personnel authorized.
Sec. 3.15.130. Penalty for violation.
Sec. 3.15.140. Severability.

Sec. 3.15.010. Definitions.

The words and phrases listed below when used in this Chapter shall have the following meanings:

(a) 'City' means the City of Wichita, Kansas.

(b) 'City Approved Event' means any event sponsored by the City or any community event sanctioned by a permit issued by the City pursuant to Chapter 3.11 of this Code.

(c) 'Director of the Metropolitan Area Building and Construction Department' means the director and his or her designee.

(d) 'Food and/or Beverage' means articles used for food or drink for humans or animals, chewing gum, and/or articles used for components of any such article, in accordance with the definition of food within K.S.A. 65-656 and amendments thereto.

(e) 'Enforcement Officer' shall include employees of the Wichita Police Department, Wichita Fire Department or the Metropolitan Area Building and Construction Department authorized to enforce the provisions of this Chapter.

(f) 'Mobile Food Vending' means to conduct, hold, carry on, pursue or operate a business of vending, peddling, hawking and/or selling any Food and/or Beverage from a Mobile Food Unit.

(g) 'Mobile Food Vendor' means any person, corporation, association, or other entity, however organized, that offers any Food or Beverage for sale from a Mobile Food Unit, subject to the exceptions set forth in Section 3.15.030.

(h) 'Mobile Food Unit' or 'Unit' means any self-contained mobile vehicle, trailer, cart, wagon, or other type of conveyance from which any Food and/or Beverage is offered for sale.

(i) 'Person' means an individual, corporation, partnership, company, agency, institution, or any other entity.

(j) 'Public Property' means any property publicly owned, including but not limited to streets, sidewalks, alleys, parks, parking lots, easements, improved or unimproved land, or any buildings or physical structures owned or managed by the City of Wichita or other governmental agency.

(k) 'Public right-of-way' means the entire width of the area from property line to property line including all area intended, designed or used for vehicular or pedestrian traffic and the area between the roadway and the abutting private property line.

(l) 'Restaurant' means an establishment where the principal business is the sale of food and beverages in a ready-to-consume state, but shall not include a Tavern or Drinking Establishment, as those terms are defined in this Code.

(m) 'Special event' means a City Approved Event where an applicant intends to engage in Mobile Food Vending pursuant to a special event license rather than an annual license. A special event licensee may not engage in Mobile Food Vending at a special event for more than ten (10) consecutive days, and/or at more than

three (3) special events in the past year, and/or at special events totaling fifteen (15) days or more in the past year.

(n) 'Fire Code Official' shall mean the Chief of the Wichita Fire Department or his or her designee.

(Ord. No. 50-382, §§ 1, 2, 12-13-16; Ord. No. 52-490, § 1, 5-21-24)

Sec. 3.15.020. Mobile food vending—License and decal required.

(a) It is unlawful for any person to engage in Mobile Food Vending within the corporate limits of the City of Wichita, Kansas, without obtaining a license and decal in accordance with this Chapter.

(b) The City Treasurer upon approval of a license application shall issue a Mobile Food Vending license and a decal bearing the year covered by the license for an annual license or the dates covered by the license for a special event license. A valid decal must be securely attached to the Mobile Food Unit to the upper left portion of the vending window so that it is clearly visible at all times or as near as possible to such location.

(Ord. No. 50-382, §§ 1, 3, 12-13-16; Ord. No. 52-490, § 2, 5-21-24)

Editor's note—Ord. No. 52-490, § 2, adopted May 21, 2024, amended the title of § 3.15.020 to read as herein set out. The former § 3.15.020 title pertained to mobile food vending—license required.

Sec. 3.15.030. Exceptions.

(a) The provisions of this Chapter shall not apply to the following activities:

(1) Persons providing catering services to a private event and not open for the sale of food and/or beverage to the general public;

(2) Ice cream trucks licensed and operating pursuant to Chapter 3.89 of the City Code, however an ice cream truck selling food other than ice cream food stuffs pursuant to the license required in Chapter 3.89 must obtain the license set forth in this Chapter and must comply with all provisions herein when selling food other than ice cream food stuffs;

(3) Sidewalk vendors licensed and operating pursuant to Chapter 3.97 of the City Code; or

(4) Door to door sales or delivery of prepared food not intended for immediate consumption.

(b) The provisions of this Chapter shall apply to the sale of agricultural, farm, garden or aquacultural products or fruits grown within the State of Kansas by producers or growers and their agents. Persons engaging in such sales that also fall within the definition of a Mobile Food Vendor must obtain the license required by this Chapter, however, no fee as set forth in Section 3.15.050, and amendments thereto, shall be charged for such license.

(Ord. No. 50-382, §§ 1, 4, 12-13-16)

Sec. 3.15.040. License application.

Any person desiring to obtain the license required by this Chapter shall complete and submit a written license application on a form provided by the City Treasurer for each individual Mobile Food Unit. The application shall require the following information:

(a) The full legal name, date of birth, permanent address, business mailing address, email address and telephone number of the applicant and the contact person for the business, if different from the applicant;

(b) The name under which the Mobile Food Unit does business ("dba" name) and, if applicable, the registered name of the legal entity owning the Mobile Food Unit (corporation, limited liability company, partnership, limited partnership association, firm or other name);

(c) The name of the owner and the type, make and vehicle identification number or other identifying number of the vehicle from which the applicant proposes to conduct business;

(d) The applicant's valid Kansas sales tax number;

(e) A brief description of the nature of the business and the Food and/or Beverage to be offered for sale;

(f) A copy of an inspection report completed by the Fire Code Official and/or the Director of the Metropolitan Area Building and Construction Department that determines the Mobile Food Unit is in compliance with the requirements of this Chapter. Alternatively, the applicant may submit a copy of an inspection report completed by the Central Kansas Fire Marshal Mobile Food Coalition or any similar regulatory inspection authority to which the City is a party that determines the Mobile Food Unit is in compliance with the inspection requirements of that authority, though an inspection by the Fire Code Official and/or the Director of the Metropolitan Area Building and Construction Department may still be required to ensure that the Mobile Food Unit is in compliance with this Chapter. Such inspection must occur within 30 days of the application;

(g) A statement as to whether the applicant has ever had a mobile vending license or other similar license, permit or registration revoked or suspended under the Code of the City of Wichita or any similar laws of any other city or state;

(h) A statement that the applicant understands and agrees that the license issued pursuant to this Chapter will not be used or represented in any way as an endorsement of the applicant by the City of Wichita or by any department, officer, or elected or appointed official of the City;

(i) Proof of a valid driver's license for operation of the class of vehicle or vehicles identified in the application to be used in the business for the applicant and any agents or employees of the applicant who will be involved in driving the identified vehicle or vehicles;

(j) Proof that the applicant has procured a policy of general liability insurance covering the mobile vending operation and vehicle or vehicles written by an insurance carrier licensed to do business in Kansas, with minimum limits of $500,000 combined, single limit for bodily and property damage per occurrence and $1,000,000 in the general aggregate; and evidence of compliance with these insurance requirements shall be in the form of a certificate of insurance that shall be submitted with the application;

(k) The application shall contain a statement certifying that all of the information provided in the application is true and correct and must be signed personally and acknowledged by an individual applicant, by a partner for a partnership applicant, by an officer legally authorized to sign for a corporate application or by a member of a limited liability company legally authorized to sign company documents;

(l) The application shall also contain a statement that no person whose duties include working upon the premises of the Mobile Food Unit is a registered sex offender, and that applicant has, subject to audit, performed the necessary background check of all such persons to ensure that the statement is correct;

(m) The application shall also contain a statement by the applicant that when the Mobile Food Unit associated with the license application herein is not in use, it will be stored or parked in compliance with all ordinances and regulations of the City of Wichita and that failure by the applicant to legally store the Mobile Food Unit may result in the suspension or revocation of the applicant's license; and

(n) The application shall also contain a statement by the applicant or partner, officer or member that he or she is familiar with the provisions of this chapter and is complying and will comply with all requirements set forth within.

(o) An application for a special event license shall contain information identifying the City Approved Event where the applicant intends to engage in Mobile Food Vending, as well as information noting any other special event licenses that were issued to the applicant in the past year and the dates authorized for Mobile Food Vending by such prior licenses. Any special event license issued under this Chapter will only authorize Mobile Food Vending by the applicant at and during the City Approved Event identified in the application. No special event license will be issued for more than ten (10) consecutive days, and/or if the applicant has already received three (3) or more special event licenses in the past year, and/or if the applicant has been issued one (1) or more special event licenses in the past year totaling fifteen (15) days or more.

(Ord. No. 50-382, §§ 1, 5, 12-13-16; Ord. No. 52-490, § 3, 5-21-24)

Sec. 3.15.050. Fee.

An application for a Mobile Food Vending license shall be accompanied by a non-refundable fee for each vehicle from which the applicant intends to conduct business according to the following schedule and shall be valid and effective only for the dates as set out therein:

(a) $350 for an annual license, with such license effective from January 1 until December 31 of the year paid by the fee; or

(b) $50 for a special event license.

Fees paid for annual licenses issued under this Chapter prior to January 1, 2025, shall be prorated as determined by staff.

(Ord. No. 50-382, §§ 1, 6, 12-13-16; Ord. No. 52-490, § 4, 5-21-24)

Sec. 3.15.060. Standards for issuance of license.

(a) To receive a license to operate as a Mobile Food Vendor issued by the City Treasurer's office, an applicant must meet the following standards:

(1) The required fees must be paid;

(2) The application must be complete and provide all information required by Section 3.15.040 and amendments thereto;

(3) The applicant must not have knowingly made a false or misleading statement of a material fact in the application;

(4) The applicant must be at least eighteen years of age;

(5) The applicant has certified, subject to audit, that he/she has performed the necessary background check to ensure that no person whose duties include working upon the premises of the Mobile Food Unit is a registered sex offender;

(6) The applicant has provided a statement that the Mobile Food Unit associated with the license application will be stored or parked in compliance with all ordinances and regulation of the City of Wichita; and

(7) The applicant must not have had a similar type of license in any jurisdiction previously suspended or revoked for good cause within two (2) years immediately preceding the date of the filing of the application.

(8) An inspection completed by the Fire Code Official and/or the Director of the Metropolitan Area Building and Construction Department that the Mobile Food Unit is in compliance with this Chapter. Alternatively, an inspection completed by the Central Kansas Fire Marshal Mobile Food Coalition or any similar authority to which the City is a party that determines the Mobile Food Unit is in compliance with the inspection requirements of that authority, though an inspection by the Fire Code Official and/or the Director of the Metropolitan Area Building and Construction Department may still be required to ensure that the Mobile Food Unit is in compliance with this Chapter.

(b) If a license is denied for providing false information or making any false statement on an application, the applicant, any partnership,

corporation, limited liability company or other business entity of which the applicant is an officer or member thereof shall be ineligible to reapply for a license under this chapter for one (1) calendar year from the date of the license denial.

(c) The issuance of a license shall not constitute approval of the business or activity or otherwise prohibit enforcement of this Chapter or any other applicable ordinances, laws, rules or regulations.
(Ord. No. 50-382, §§ 1, 7, 12-13-16; Ord. No. 52-490, § 5, 5-21-24)

Sec. 3.15.070. Operating conditions.

All Mobile Food Vendors operating within the city limits of the City of Wichita shall comply with the following conditions:

(a) Location. Mobile Food Vendors may vend on property within the City as permitted by the Wichita/Sedgwick County Unified Zoning Code and subject to the following:

(1) Mobile Food Vendors may not be parked or operate on public or private property where the Unit, signage, a line of customers or any other aspect of the Unit's operation would: (1) hinder the flow of traffic on any street, hinder the flow of bicycles within any bike lane or route, (3) hinder the flow of pedestrians along any sidewalks, (4) block or reduce to less than five (5) feet in width any accessible route to persons with disabilities, or (5) block or obstruct access to any driveway or access point to any property. Provided, however, this provision shall not apply when a Mobile Food Unit is operating on a street that is closed pursuant to valid permit in association with a community event that is approved as required in Chapter 3.11 of this Code.

(2) For fire safety purposes, a Mobile Food Unit that is utilizing flammable liquids or gases shall maintain a minimum separation distance of ten (10) feet from any other Unit and a minimum separation distance of twenty (20) feet from any building openings such as doors and windows. The distance from building openings may be reduced to ten (10) feet if written consent is obtained from the building property owner.

(3) No Mobile Food Vendor shall vend on Public Property within 150 feet as measured from the front door of any Restaurant which is open for business unless authorized in writing by the owner or manager of any such Restaurant. Such written authority to operate within 150 feet of a Restaurant or Restaurants shall be maintained on the premises of the Mobile Food Unit at all times it is operating pursuant thereto and produced upon request by an Enforcement Officer.

(4) No Mobile Food Vendor shall vend on Public Property within 500 feet of the location for which a community event permit has been issued during the hours of the event as specified in the event permit, unless authorized in writing by the event promoter. Distance shall be measured from the boundary of the event footprint nearest to the location proposed to be used for mobile food vending. Any written authority to operate within 500 feet of a community event shall be maintained on the premises of the Mobile Food Unit at all times it is operating pursuant thereto and produced upon request by an Enforcement Officer.

(5) Every Unit shall be stationary while vending.

(6) Whenever any vehicle is used for Mobile Food Vending upon a street, alley, sidewalk or other public right-of-way within the City, such vehicle must be legally parked and no mobile food vendor shall sell any food to

any person standing in the street. Provided, however, this provision shall not apply when a Mobile Food Unit is operating on a street that is closed pursuant to valid permit in association with a community event that is approved as required in Chapter 3.11 of this Code.

(7) No Mobile Food Vendor shall vend on Park property except as allowed by the Park Regulations as set forth in Chapter 9.03 of this Code and specifically in compliance with the provisions of Section 9.03.200 of this Code and any amendments thereto.

(b) Written Permission of Property Owner. All Mobile Food Vendors operating on private property or on Public Property other than public right-of-way shall acquire the written permission of the property owner, manager, tenant or other person in charge of the property allowing the use and location of the Mobile Food Unit on said property. For Public Property owned by the City of Wichita, written permission shall be obtained from the City Manager or designee. Any written permission required by this subsection shall be kept on the premises of the Mobile Food Unit and produced upon request by an Enforcement Officer.

(c) Hours of Operation. Mobile Food Vendors are prohibited from operating during the hours of 1:00 a.m. to 6:00 a.m.

(d) Fire and Building/Construction Safety. All Mobile Food Units shall comply with the following requirements and are subject to inspections pursuant to Section 3.15.085 of this Code and amendments thereto:

(1) Compressed gas or liquid propane shall be limited to a maximum quantity of two hundred (200) pounds for designed or manufactured Mobile Food Units. Compressed gas or liquid propane shall be limited to a maximum quantity of one hundred (100) pounds in aggregate while in use for all other Mobile Food Units. Compressed gas or liquid propane cylinders must be secured and movement and must be protected from impact and vibration damage. Compressed gas or liquid propane piping, including valves and fitting, shall be adequately protected from tampering and impact and vibration damage. A listed alarm for compressed gas or liquid propane shall be installed in the Mobile Food Unit within the vicinity of the compressed gas or liquid propane system components.

(2) Gas cooking appliances in Mobile Food Units shall be secured in place and connected to fuel-supply piping with an ANSI-listed appliance connector in accordance with the manufacturer's installation instructions of the Mobile Food Unit appliances and the connector.

(3) Mobile Food Units which produce grease laden vapors shall have a Type I hood system for commercial cooking operation with a fire suppression system in the hood that is inspected biannually and properly tagged. Mobile Food Units which use other warming apparatus or produce steam shall have a Type II hood system. The hood systems must be cleaned frequently and adequately to minimize grease buildup and other contaminants. No hood system is required for those Mobile Food Units which do not perform cooking or use heat-producing devices.

(4) One minimum size 2A-10BC class fire extinguisher is required for each Mobile Food Unit and shall be serviced annually. For Mobile Food Units which produce grease laden vapors, one Class K portable fire extinguisher is required and shall be serviced annually.

(5) Mobile Food Units shall not contain exposed wiring or splices, and shall

use approved covers for all outlet boxes. Extension cords and flexible cords shall be grounded, be directly connected to a permanently installed power source, have the proper ampacity for use, be free from damage or deterioration, and not be a substitute for permanent wiring.

(e) Prohibited Sales. Mobile Food Vendors are prohibited at all times from selling or offering for sale alcoholic beverages, cereal malt beverages, or tobacco products without first being properly licensed pursuant to any applicable federal, state or local laws.

(f) Lights. No flashing lights are permitted on the Mobile Food Unit. No direct light from a Mobile Food Unit may be shined on adjacent property or cause a glare or distraction for vehicles, bicycles, or pedestrians.

(g) Signs. Signage mounted on the side of a Mobile Food Unit shall not exceed the dimensions of the Unit by more than one (1) foot in any direction.

(h) Sound Devices. The production of amplified music or chimes from a Mobile Food Unit is allowed between the hours of 10:00 AM and 8:30 PM provided that the sound from the amplified music or chimes is inaudible at any distance greater than three hundred (300) feet from the vehicle.

(i) Trash and Site Cleanup. All Mobile Food Vendors shall ensure that a trash receptacle shall be provided with each Mobile Food Unit. Such receptacle must be attached to the Unit or located within fifteen (15) feet of the Unit and cannot interfere with vehicle access, pedestrian movement or accessible routes to and around the Unit. Immediately upon the cessation of vending, the Mobile Food Vendor shall remove and properly dispose of all trash and litter accumulated at the vending site.

(j) Seating. No seating and/or tables shall be permitted that hinder the flow of traffic on any street, hinders the flow of bicycles within any bike lane or route, hinders the flow of pedestrians along any sidewalks, blocks or reduces to less than five (5) feet in width any accessible route or blocks or obstructs access to any driveway or access point to any property. No seating shall be permitted inside the Mobile Food Unit.

(k) Licenses and Permits. All Mobile Food Vendors and employees thereof shall acquire and maintain all required licenses, permits and inspections applicable to the use and operation of Mobile Food Units from all applicable jurisdictions. Evidence of such licenses, permits and/or inspections applicable to any vehicle, equipment, operator or employee shall be kept in the Unit and produced upon request by an Enforcement Officer authorized to enforce the provisions of this Chapter.

(l) Food Handling. No Mobile Food Vendor or any employee, agent, or representative thereof shall vend Food and/or Beverages without meeting the conditions set forth in Chapter 7.20 of this Code and specifically in compliance with the provisions of Section 7.20.020 of this Code and amendments thereto.

(m) Wastewater Disposal. No wastewater resulting from the Mobile Food Vending operation shall be disposed of on the ground or in a stormwater drain. All wastewater must be disposed of in accordance with Chapter 16.32 of this Code and specifically in compliance with Section 16.32.030 of this Code and amendments thereto.

(Ord. No. 50-382, §§ 1, 8, 12-13-16; Ord. No. 52-490, § 6, 5-21-24)

Sec. 3.15.080. Right to close or relocate a Mobile Food Vendor.

Any law enforcement officer has the right to close down or request a Mobile Food Unit to relocate, where, in the opinion of such officer, the Mobile Food Unit is causing or contributing to an imminent public safety hazard. Such hazards

shall include, but not be limited to, situations where the operation of a Mobile Food Vending Unit is causing a traffic hazard, a fire hazard, is impeding free or uninterrupted passage of vehicles and/or pedestrians upon public streets, sidewalks or alleyways, selling food or beverages that are not safe for human consumption or operating a Mobile Food Unit without the license required by this Chapter.
(Ord. No. 50-382, §§ 1, 9, 12-13-16)

Sec. 3.15.085. Inspections.

The Fire Code Official and/or the Director of the Metropolitan Area Building and Construction Department shall have the authority to inspect any Mobile Food Unit to ensure that all requirements of the license and this Chapter are met and complied with.
(Ord. No. 52-490, § 7, 5-21-24)

Sec. 3.15.090. License denial, revocation, and appeal.

(a) If a license is not issued, the City Treasurer or designee shall indicate in writing the reason(s) for denial and inform the applicant of the applicant's right to an appeal of the denial in accordance with the provisions of this Section.

(b) A license may be suspended for up to 30 days or revoked by the Chief of Police or designee or other city personnel authorized to enforce the provisions of this Chapter for any of the following reasons:

(1) The licensee fails to provide true and correct information on the application;

(2) The licensee fails to continuously maintain insurance upon the Mobile Food Unit in accordance with requirements of this chapter;

(3) The licensee allows a registered sex offender to work upon the premises of the Mobile Food Unit;

(4) The licensee or any employee or agent thereof commits a violation of any provision of this Chapter or any federal, state, or local law, rule or regulation applicable or related to mobile food vending; or

(5) The licensee becomes otherwise ineligible to hold a Mobile Food Vending license.

Notice of such suspension or revocation shall be shall be mailed by the City Treasurer or designee to the licensee's address as shown on the license application form and/or personally served upon the licensee. Such notice shall be in writing and shall set forth the reason(s) for revocation and the licensee's right to an appeal in accordance with the provisions of this Section, provided, however, any appeal of a license suspension or revocation shall not suspend or revoke the license during the pendency of the appeal.

(c) Appeal process.

(1) Upon the denial of an application for, or suspension or revocation of a mobile food vending license, the applicant or licensee shall have the right to appeal such action within ten (10) business days of the notice of denial, suspension or revocation being mailed to the applicant's address as shown on the license application form, and/or personal service upon the applicant or licensee. Such an appeal must be in writing and filed with the City Clerk, setting forth the grounds for the appeal. Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before the City Council, no later than thirty (30) days from the date of the filing of the Notice of Appeal with the City Clerk. Any appeal shall stay a suspension or revocation of the license or permit until the matter is heard by the City Council.

(2) The City Council may approve the denial, suspension or revocation, overrule the denial, suspension, or revocation or modify the decision to deny, suspend or revoke a license made by any city personnel authorized to enforce the provisions of this Chapter.

(3) In any hearing before the City Council pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation, is prima facie evidence of such violation.

(4) The City Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, suspension or revocation of the license, or any modification imposed thereupon by the City Council.

(5) Reserved.

(6) If a license is revoked for any reason, the applicant, any partnership or any business entity of which the applicant is an officer or member thereof shall be ineligible to reapply for a license under this chapter for two (2) calendar years from the date of the license revocation.

(Ord. No. 50-382, §§ 1, 10, 12-13-16)

Sec. 3.15.100. Term and transferability.

A license and decal must be obtained for each individual vehicle being used in a mobile food vending operation. Licenses and decals may not be transferred between persons or vehicles.

(Ord. No. 50-382, §§ 1, 11, 12-13-16; Ord. No. 52-490, § 8, 5-21-24)

Sec. 3.15.110. Posting.

Any person licensed under this Chapter must keep their license posted in a conspicuous place inside the vehicle. The decal must be posted on the upper left portion of the vending window so that it is clearly visible at all times or as near as possible to such location. Such license and decal must be current and may be used only by the licensee.

(Ord. No. 50-382, §§ 1, 12, 12-13-16; Ord. No. 52-490, § 9, 5-21-24)

Sec. 3.15.120. Enforcement—Personnel authorized.

In addition to all law enforcement officers, the following personnel employed by the City shall have the power to enforce the provision of this chapter:

(a) Fire Department personnel;

(b) The Director of Public Works and Utilities or designee;

(c) The Traffic Engineer or designee;

(d) The Zoning Administrator or designee; and

(e) Metropolitan Area Building and Construction Department Inspectors.

(Ord. No. 50-382, §§ 1, 13, 12-13-16)

Sec. 3.15.130. Penalty for violation.

Any person convicted of a violation of this Chapter shall be guilty of a misdemeanor and shall be punished by a fine of not less than five hundred dollars ($500.00) and not to exceed two thousand five hundred dollars ($2,500.00). Each day that any violation of this chapter occurs, shall constitute a separate offense and shall be punishable as a separate offense.

(Ord. No. 50-382, §§ 1, 14, 12-13-16; Ord. No. 52-490, § 10, 5-21-24)

Sec. 3.15.140. Severability.

Should any section, clause, sentence, or phrase of this ordinance be found to be unconstitutional or is otherwise held invalid by any court of competent jurisdiction, such invalidity shall not affect the validity of any remaining provisions herein.

(Ord. No. 50-382, §§ 1, 15, 12-13-16)

CHAPTER 3.16. COMMUNITY ANTENNA TELEVISION SYSTEMS

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Sec. 3.16.010. Definitions.

For the purposes of this chapter, the following terms, phrases, words, abbreviations, and their derivations, shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number.

(a) "CATV" means a community antenna television system as hereinafter defined;

(b) "City" means the City of Wichita, Kansas, a municipal corporation of the State of Kansas, in its present incorporated form or in any later reorganized, consolidated, enlarged or reincorporated form;

(c) "Commission" means the present governing body of the city or any future board constituting the legislative body of the city;

(d) "Community antenna television system" means a system of antenna, coaxial cables, wires, wave guides or other conductors, equipment or facilities designed, constructed or used for the purpose of providing television or FM radio service by cable or through its facilities as herein contemplated;

(e) "Franchise" means and includes any authorization granted hereunder in terms of a franchise, privilege, permit, license or otherwise to construct, operate and maintain a CATV system in the city;

(f) "Grantee" means the person, firm or corporation to whom or which a franchise, as hereinabove defined, is granted by the commission under this chapter and the lawful successor, transferee or assignee of said person, firm or corporation;

(g) "Gross annual receipts" means any and all compensation and other consideration in any form whatever, including installation charges, and any contributing grant or subsidy received directly or indirectly by a grantee from subscribers or users in payment for television or FM radio signals or service received within the city.

Gross annual receipts shall not include any taxes on services furnished by the grantee imposed directly on any subscriber or user by any city, state or other governmental unit and collected by the grantee for such governmental unit, nor shall gross annual receipts include any item specifically prohibited by Federal Communications Commission regulations;

(h) "Property of grantee" means all property owned, installed or used by a grantee in the conduct of a CATV business in the city under the authority of a franchise granted pursuant to this chapter;

(i) "Street" means the surface of and the space above and below any public street, road, highway, freeway, lane, path, alley, court, sidewalk, parkway or drive, now or hereafter existing as such within the city;

(j) "Subscriber" means any person or entity receiving for any purpose the CATV service of a grantee.

(Ord. No. 35-295 (part))

Sec. 3.16.020. Operation franchise.

A nonexclusive franchise to construct, operate and maintain a CATV system within all or any portion of the city may be granted by the commission to any person, firm or corporation, whether operating under an existing franchise or not, who or which offers to furnish and provide such system under and pursuant to the terms and provisions of this chapter. All applicants for a franchise, in addition to other requirements provided, shall pay a fee of five hundred dollars, the fee to be used by the city to pay expenses of processing the application. In the event that the applicant fails to receive the franchise, then that portion of the application fee which has not been expended shall be returned to said applicant.

No provision of this chapter may be deemed or construed as to require the granting of a franchise when in the opinion of the commission it is not in the public interest.

(Ord. No. 32-354 § 2)

Sec. 3.16.030. Uses permitted by grantee.

Any franchise granted pursuant to the provisions of this chapter shall authorize and permit the grantee to engage in the business of operating and providing a CATV system in the city, and for that purpose to erect, install, construct, repair, replace, reconstruct, maintain and retain in, on, over, under, upon, across and along any public street, such poles, wires, cable, conductors, ducts, conduit, vaults, manholes, amplifiers, appliances, attachments and other property as may be necessary and appurtenant to the CATV system; and in addition, so to use, operate and provide similar facilities or properties rented or leased from other persons, firms or corporations, including but not limited to any public utility or other grantee franchised or permitted to do business in the city.

The grantee shall use existing poles, towers or other existing facilities wherever possible and it shall be the sole responsibility of the grantee to negotiate and enter into any and all contracts with the owner of such facilities to secure the necessary space thereon or therein for its operation under this franchise and the grantee shall permit any other utility or utilities by appropriate contract or agreement negotiated by the parties to use any and all facilities constructed or erected by the grantee. All the agreements and installations shall be subject to all existing and future ordinances and regulations of the city.

In the event that existing facilities are inadequate to carry or handle the request of the grantee herein and it becomes necessary to do extensive rebuilding or excavating of an existing utility, a permit for such rebuilding or excavating may be refused by the city engineer. Unless the refusal is appealed to the city commission within thirty days, it shall become final. The city commission will determine whether or not the order of the city engineer will stand in the event the order is appealed.

The grantee will not erect a separate system of poles in the city or on the street therein, but may erect poles where shown to be necessary when the necessity, the location and the style of pole have been approved by the city engineer. The erection of poles shall be subject to all existing and future ordinances and regulations of the city applicable thereto.

The grantee's transmission and distribution system, poles, wires and appurtenances shall be located, erected and maintained so as not to endanger or interfere with the lives of persons, or to interfere with improvements the city may deem proper to make, or to unnecessarily hinder or obstruct the free use of the streets, alleys, bridges or other public property. Removal of poles or equipment when necessary to avoid such interference will be at the grantee's expense.

The construction and maintenance of the transmission and distribution system shall be in accordance with the provisions of the National Electrical Safety Code of the National Board of Fire Underwriters, and such applicable ordinances and regulations of the City of Wichita affecting electrical installations, which may be presently in effect, or changed by future ordinances.

All installations of equipment shall be of permanent nature, durable and installed in accordance with good engineering practices, and of sufficient height to comply with all existing city regulations, ordinances and state laws so as not to interfere in any manner with the right of the public or individual property owner, and shall not interfere unduly with the travel and use of public places by the public during the construction, repair or removal thereof and shall not unduly obstruct or impede traffic.

In the maintenance and operation of its television transmission and distribution system in the streets, alleys and other public places, and in the course of any new construction or addition to its facilities, the grantee shall proceed so as to cause the least possible inconvenience to the general public.

The grantee shall not make nor cause to be made any opening or obstruction in the streets or other public places without first having obtained the permission of the director of public works.

The grantee may make a charge to subscribers for installation or connection to its CATV system and a fixed maximum monthly charge as filed and approved, as herein provided. No increase in the rates and charges to subscribers, as set forth in the schedule filed and approved with grantee's application, may be made without the prior approval of the commission expressed by resolution after giving notice of the increase and allowing for a public hearing thereon.
(Ord. No. 35-295 (part))

Sec. 3.16.040. Duration of franchise.

No franchise granted by the commission under this chapter shall be for a term in excess of fifteen years following the date of acceptance of such franchise by the grantee or the renewal thereof.

Any such franchise granted hereunder may be terminated prior to its date of expiration by the commission in the event that the commission shall have found, after thirty days' notice of any proposed termination and public hearing, that:

(a) The grantee has failed to comply with any provision of this chapter, or has, by act or omission, violated any term or condition of any franchise or permit issued hereunder; or

(b) Any provision of this chapter has become invalid or unenforceable and the commission further finds that such provision constitutes a consideration material to the grant of said franchise; or

(c) The city acquires the CATV system property of the grantee.

(Ord. No. 32-354 § 4)

Sec. 3.16.050. Franchise payments.

Any grantee granted a franchise under this chapter shall pay to the city, during the life of such franchise, a sum equal to a percentage of the gross annual receipts of the grantee. Such payment by the grantee to the city shall be made annually, or as otherwise provided in the grantee's franchise, by delivery of the same to the city treasurer.

The grantee shall file with the city, within thirty days after the expiration of any calendar year or portion thereof during which such franchise is in force, a financial statement prepared by a certified public accountant, showing in detail the gross annual receipts, as defined herein, of grantee during the preceding calendar year or portion thereof. It shall be the duty of the grantee to pay to the city, within fifteen days after the time for filing such statements, the sum hereinabove prescribed or any unpaid balance thereof for the calendar year or portion thereof covered by such statements.

The city shall have the right to inspect the grantee's records showing the gross receipts from which its franchise payments are computed and the right of audit and recomputation of any and all amounts paid under this chapter. No acceptance of any payment shall be construed as a release or as an accord and satisfaction of any claim the city may have for further or additional sums payable under this chapter or for the performance of any other obligation hereunder.

In the event of any holding over after expiration or other termination of any franchise granted hereunder, without the consent of the city, the

grantee shall pay to the city reasonable compensation and damages, of not less than one hundred percent of its total gross profits during said period.
(Ord. No. 32-354 § 5)

Sec. 3.16.060. Limitations of franchise.

(a) Any franchise granted under this chapter shall be nonexclusive.

(b) No privilege or exemption shall be granted or conferred by any franchise granted under this chapter except those specifically prescribed herein.

(c) Any privilege claimed under any such franchise by the grantee in any street or other public property shall be subordinate to any prior lawful occupancy of the streets or other public property.

(d) Any such franchise shall be a privilege to be held in personal trust by the original grantee. It cannot in any event be sold, transferred, leased, assigned or disposed of, in whole or in part, either by forced or involuntary sale, or by voluntary sale, merger, consolidation or otherwise, without the prior consent of the commission expressed by resolution, and then only under such conditions as may therein be prescribed. Any such transfer or assignment shall be made only by an instrument in writing, a duly executed copy of which shall be filed in the office of the city clerk within thirty days after any such transfer of assignment. The consent of the commission may not be arbitrarily refused; provided, however, the proposed assignee must show financial responsibility and must agree to comply with all provisions of this chapter; and provided, further, that no such consent shall be required for a transfer in trust, mortgage or other hypothecation as a whole, to secure an indebtedness.

(e) Time shall be of the essence of any such franchise granted hereunder. The grantee shall not be relieved of his obligation to comply promptly with any of the provisions of this chapter or by any failure of the city to enforce prompt compliance.

(f) Any right or power in, or duty impressed upon, any officer, employee, department or board of the city shall be subject to transfer by the city to any other officer, employee, department or board of the city.

(g) The grantee shall have no recourse whatsoever against the city for any loss, cost, expense or damage arising out of any provision or requirement of this chapter or of any franchise issued hereunder or because of its enforcement.

(h) The grantee shall be subject to all requirements of city ordinances, rules, regulations and specifications heretofore or hereafter enacted or established.

(i) Any such franchise granted shall not relieve the grantee of any obligation involved in obtaining pole space from any department of the city, utility company, or from others maintaining poles in streets.

(j) Unless otherwise specifically provided, any franchise granted hereunder shall be in lieu of any and all other rights, privileges, powers, immunities and authorities owned, possessed, controlled or exercisable by grantee, or any successor to any interest of grantee, of or pertaining to the construction, operation or maintenance of any CATV system in the city; and the acceptance of any franchise hereunder shall operate, as between grantee and the city, as an abandonment of any and all of such rights, privileges, powers, immunities and authorities within the city, to the effect that, as between grantee and the city, any and all construction, operation and maintenance by any grantee of any CATV system in the city shall be, and shall be deemed and construed in all instances and respects to be, under and pursuant to the franchise, and not under or pursuant to any other right, privilege, power, immunity or authority whatsoever.
(Ord. No. 32-354 § 6)

Sec. 3.16.070. Rights reserved to city.

(a) Nothing herein shall be deemed or construed to impair or affect, in any way, to any extent, the right of the city to acquire the property of the grantee, either by purchase or through the exercise of the right of eminent domain, at a fair and just value, which shall not include any amount for the franchise itself or for any of the rights or privileges granted, and nothing herein contained shall be construed to contract away or to modify or abridge, either for a term or in perpetuity, the city's right of eminent domain.

(b) There is reserved to the city every right and power which is required to be reserved or provided by any ordinance of the city, and the grantee, by its acceptance of any franchise, agrees to be bound thereby and to comply with any action or requirements of the city in its exercise of such rights or power, heretofore or hereafter enacted or established.

(c) Neither the granting of any franchise hereunder nor any of the provisions contained herein shall be construed to prevent the city from granting any identical, or similar, franchise to any other person, firm or corporation, within all or any portion of the city.

(d) There is reserved to the city the power to amend any section or part of this chapter so as to require additional or greater standards of construction, operation, maintenance or otherwise, on the part of the grantee.

(e) Neither the granting of any franchise nor any provision hereof shall constitute a waiver or bar to the exercise of any governmental right or power of the city.

(f) The commission may do all things which are necessary and convenient in the exercise of its jurisdiction under this chapter and may determine any question of fact which may arise during the existence of any franchise granted hereunder. The city attorney is authorized and empowered to adjust, settle or compromise any controversy or charge arising from the operations of any grantee under this chapter, either on behalf of the city, the grantee or any subscriber, in the best interest of the public. Either the grantee or any member of the public who may be dissatisfied with the decision of the city attorney may appeal the matter to the commission for hearing and determination. The commission may accept, reject or modify the decision of the city attorney, and the commission may adjust, settle or compromise any controversy or cancel any charge arising from the operations of any grantee or from any provision of this chapter.
(Ord. No. 32-354 § 7)

Sec. 3.16.080. Permits, installation and service.

(a) Within one hundred and twenty days after acceptance of any franchise, the grantee shall proceed with due diligence to obtain all necessary permits and authorizations, which are required in the conduct of its business, including, but not limited to, any utility joint use attachment agreements, microwave carrier licenses, and any other permits, licenses and authorizations to be granted by duly constituted regulatory agencies having jurisdiction over the operation of CATV systems, or their associated microwave transmission facilities. Grantee shall further obtain a letter of compliance from the Federal Communications Commission.

(b) Within one hundred and twenty days after obtaining all necessary permits, licenses and authorizations, grantee shall commence construction and installation of the CATV system.

(c) Within ninety days after the commencement of construction and installation of the system, grantee shall proceed to render service to subscribers, and the completion of the construction and installation shall be pursued with reasonable diligence thereafter, so that service to all areas designated on the map accompanying the application for franchise, as provided in Section 3.16.190, shall be provided within four years from the date that service was first provided. Grantee shall make reports to the city each sixty days after construction begins regarding the progress made toward completion of the system.

(d) Failure on the part of the grantee to commence and diligently pursue each of the foregoing requirements and to complete each of the matters set forth herein, shall be grounds for termination of all or any portion of such franchise, under and pursuant to the terms of Section 3.16.040; provided, however, that the commission in its discretion may extend the time for the commencement and completion of construction and installation for additional periods in the event the grantee, acting in good faith, experiences delays by reason of circumstances beyond his control.
(Ord. No. 35-295 (part))

Sec. 3.16.090. Property of grantee—Location.

(a) Any poles, wires, cable lines, conduits or other properties of the grantee to be constructed or installed in streets, shall be so constructed or installed only at such locations and in such man-

ner as shall be approved by the city engineer acting in the exercise of his reasonable discretion.

(b) The grantee shall not install or erect any facilities or apparatus in or on other public property, places or rights-of-way, or within any privately owned area within the city which has not yet become a public street but is designated or delineated as a proposed public street on any tentative subdivision map approved by the city, except those installed or erected upon public utility facilities now existing, without obtaining the prior written approval of the city engineer.

(c) In those areas and portions of the city where the transmission or distribution facilities of both the public utility providing telephone service and those of the utility providing electric service are underground or hereafter may be placed underground, then the grantee shall likewise construct, operate and maintain all of its transmission and distribution facilities underground. For the purposes of this subsection, "underground" includes a partial underground system, e.g., streamlining. Amplifiers in grantee's transmission and distribution lines may be in appropriate housings upon the surface of the ground as approved by the city engineer.
(Ord. No. 32-354 § 9)

Sec. 3.16.100. Property of grantee—Removal and abandonment.

(a) In the event that the use of any part of the CATV system is discontinued for any reason for a continuous period of twelve months, or in the event such system or property has been installed in any street or public place without complying with the requirements of grantee's franchise or this chapter, or the franchise has been terminated, canceled or has expired, the grantee shall promptly, upon being given ten days' notice, remove from the streets or public places all such property and poles of such system other than any which the city engineer may permit to be abandoned in place. In the event of such removal, the grantee shall promptly restore the street or other area from which such property has been removed to a condition satisfactory to the city engineer.

(b) Any property of the grantee remaining in place thirty days after the termination or expiration of the franchise shall be considered permanently abandoned. The city engineer may extend such time not to exceed an additional thirty days.

(c) Any property of the grantee to be abandoned in place shall be abandoned in such manner as the city engineer shall prescribe. Upon permanent abandonment of the property of the grantee in place, the property shall become that of the city, and the grantee shall submit to the city engineer an instrument in writing, to be approved by the city attorney, transferring to the city the ownership of such property.
(Ord. No. 32-354 § 10)

Sec. 3.16.110. Changes required by public improvements.

The grantee shall, at its expense, protect, support, temporarily disconnect, relocate in the same street or other public place, or remove from the street or other public place, any property of the grantee when required by the city engineer by reason of traffic conditions, public safety, street vacation, freeway and street construction, change or establishment of street grade, installation of sewers, drains, water pipes, power lines, signal lines and tracts of any other type of structures or improvements by public agencies; provided, however, that the grantee shall in all such cases have the privileges and be subject to the obligations to abandon any property of the grantee in place, as provided in Section 3.16.100.
(Ord. No. 32-354 § 11)

Sec. 3.16.120. Street work failure.

Upon failure of the grantee to commence, pursue, or complete any work required by law or by the provisions of this chapter or by its franchise to be done in any street or other public place, within the time prescribed, and to the satisfaction of the city engineer, the city engineer, at his option, may cause such work to be done and the grantee shall pay to the city the cost thereof in the itemized amounts reported by the city engineer, plus ten percent to the city within thirty days after receipt of such itemized report.
(Ord. No. 35-295 (part))

Sec. 3.16.130. Faithful performance bond.

(a) The grantee shall, concurrently with the filing of an acceptance of award of any franchise granted under this chapter, file with the city clerk and at all times thereafter maintain in full force and effect for the term of such franchise or any renewal thereof, at grantee's sole expense, a corporate surety bond in a company and in a form approved by the city attorney, in the amount of one hundred thousand dollars, renewable annually, and conditioned upon the faithful performance of grantee, and upon the further condition that in the event grantee shall fail to comply with any one or more of the provisions of this chapter, or of any franchise issued to the grantee hereunder, there shall be recoverable jointly and severally from the principal and surety of such bond any damages or loss suffered by the city as a result thereof, including the full amount of any compensation, indemnification or cost of removal or abandonment of any property of the grantee as prescribed which may be in default, plus a reasonable allowance for attorney's fees and costs, up to the full amount of the bond; the condition to be a continuing obligation for the duration of such franchise and any renewal thereof and thereafter until the grantee has liquidated all of its obligations with the city that may have arisen from the acceptance of the franchise or renewal by the grantee or from its exercise of any privilege therein granted. The bond shall provide that thirty days' prior written notice of intention not to renew, cancellation or material change be given to the city.

(b) Neither the provisions of this section nor any bond accepted by the city pursuant hereto, nor any damages recovered by the city thereunder, shall be construed to excuse faithful performance by the grantee or limit the liability of the grantee under any franchise issued hereunder or for damages, either to the full amount of the bond or otherwise.
(Ord. No. 32-354 § 13)

Sec. 3.16.140. City indemnification.

(a) The grantee shall, concurrently with the filing of an acceptance of award of any franchise granted under this chapter, furnish to the city and file with the city clerk, and at all times during the existence of any franchise granted hereunder, maintain in full force and effect, at its own cost and expense, a liability insurance policy in the amount of two million dollars, in a company licensed to do business in the State of Kansas, and in a form satisfactory to the city attorney, indemnifying and saving harmless the city, its officers and employees, from and against any and all claims, demands, actions, suits and proceedings by others, against all liability to others, including but not limited to any liability for damages by reason of or arising out of any failure by the grantee to secure consents from the owners, authorized distributors or licensees of programs to be delivered by the grantee's CATV system, and against any loss, cost, expense and damages resulting therefrom, or from any violation or infringement of any copyright, trademark, franchise or similar right; because of any breach of the right of privacy; from violation of any copyright or trade-mark statute or law; because of any unfair competition; including reasonable attorney's fees, arising out of the exercise or enjoyment of its franchise, irrespective of the amount of the comprehensive liability insurance policy required hereunder.

(b) The grantee shall, concurrently with the filing of an acceptance of award of any franchise granted under this chapter, furnish to the city and file with the city clerk, and at all times during the existence of any franchise granted hereunder, maintain in full force and effect, at its own cost and expense, a general comprehensive liability insurance policy, in protection of the city, its officers, boards, commissions, agents and employees, in a company licensed to do business in the State of Kansas and a form satisfactory to the city attorney, protecting the city and all persons against liability for loss or damage for personal injury, death and property damage, occasioned by the operations of grantee under such franchise, with minimum liability limits of two hundred fifty thousand dollars for personal injury or death of any other person, and five hundred thousand dollars for personal injury or death of two or more persons in any one occurrence, and one hundred thousand dollars for damage to property resulting from any one occurrence.

(c) The policies mentioned in the foregoing paragraph shall name the city, its officers, boards, commissions, agents and employees, as additional insured and shall contain a provision that a written notice of cancellation or reduction in coverage of the policy shall be delivered to the city ten days in advance of the effective date thereof; if such insurance is provided by a policy which also covers grantee or any other entity or person other than those above named, then such policy shall contain the standard cross-liability endorsement.
(Ord. No. 32-354 § 15)

Sec. 3.16.150. Inspection of property and records.

(a) At all reasonable times, the grantee shall permit any duly authorized representative of the city to examine all property of the grantee, together with any appurtenant property of the grantee situated within or without the city, and to examine and transcribe any and all maps and other records kept or maintained by the grantee or under its control which deal with the operations, affairs, transactions or property of the grantee with respect to its franchise. If any such maps or records are not kept in the city, or upon reasonable request made available in the city, and if the commission determines that all examination thereof is necessary or appropriate, then all travel and maintenance expense necessarily incurred in making such examination shall be paid by grantee.

(b) The grantee shall prepare and furnish to the city engineer and the director of administration at the times and in the form prescribed by either of the officers, such reports with respect to its operations, affairs, transactions or property, as may be reasonably necessary or appropriate to the performance of any of the rights, functions or duties of the city or any of its officers in connection with the franchise.

(c) The grantee shall at all times make and keep in the city full and complete plans and records showing the exact location of all CATV system equipment installed or in use in streets and other public places in the city.

(d) The grantee shall file with the city engineer, on or before the last day of March of each year, a current map or set of maps drawn to scale, showing all CATV system equipment installed and in place in streets and other public places of the city.
(Ord. No. 32-354 § 15)

Sec. 3.16.160. Operational standards.

The CATV system shall be installed and maintained in accordance with the highest and best accepted standards of the industry to the effect that subscribers shall receive the highest possible service. Grantee shall comply with the minimum requirements of the Federal Communications Commission.
(Ord. No. 32-354 § 16)

Sec. 3.16.170. Miscellaneous provisions.

(a) When not otherwise prescribed herein, all matters herein required to be filed with the city shall be filed with the city clerk.

(b) The grantee shall pay to the city a sum of money sufficient to reimburse it for all publication expenses incurred by it in connection with the granting of a franchise pursuant to the provisions of this chapter. Such payment shall be made within thirty days after the city furnishes the grantee with a written statement of such expenses.

(c) The grantee shall maintain an office within the city limits at a location which subscribers may call without incurring added message or toll charges so that CATV maintenance service shall be promptly available to subscribers at all times.

(d) No person, firm or corporation in the existing service area of the grantee shall be arbitrarily refused service; provided, however, that the grantee shall not be required to provide service to any subscriber who does not pay the applicable connection fee or monthly service charge.

(e) Grantee shall build the cable system with the capacity for return communication on at least a nonvoice basis.

(f) Grantee shall comply with all the requirements of the Federal Communications Commission relating to CATV installations.
(Ord. No. 32-354 § 17)

Sec. 3.16.180. Agreement for use of utility poles and facilities.

When any portion of the CATV system is to be installed on existing utility poles and facilities, certified copies of the agreements for such joint use of poles and facilities shall be filed with the city clerk. The agreement shall indicate all charges therefor.
(Ord. No. 32-354 § 18)

Sec. 3.16.190. Application for franchise.

(a) Application for a franchise hereunder shall be in writing, shall be filed with the city clerk, and shall contain the following information:

(1) The name and address of the applicant. If the applicant is a partnership, the name and address of each partner shall also be set forth. If the applicant is a corporation, the application shall also state the names and addresses of its directors, main officers, major stockholders and associates, and the names and addresses of parent and subsidiary companies;

(2) A statement and description of the CATV system proposed to be constructed, installed, maintained or operated by the applicant; the proposed location of such system and its various components; the manner in which applicant proposes to construct, install, maintain and operate the same; and, particularly, the extent and manner in which existing or future poles or other facilities of other public utilities will be used for such system;

(3) A description, in detail, of the public streets, public places and proposed public streets within which applicant proposes or seeks authority to construct, install or maintain any CATV equipment or facilities; a detailed description of the equipment or facilities proposed to be constructed, installed or maintained therein; and the proposed specific location thereof;

(4) A map specifically showing and delineating the proposed service area or areas within which applicant proposes to provide CATV services and for which a franchise is requested, together with a calendar of construction for each area of said map;

(5) A statement or schedule in a form approved by the city manager of proposed rates and charges to subscribers for installation and services, and a copy of proposed service agreement between the grantee and its subscribers shall accompany the application. For unusual circumstances, such as underground cable required, or more than one hundred fifty feet of distance from cable to connection of service to subscribers, an additional installation charge over that normally charged for installation as specified in the applicant's proposal may be charged, with easements to be supplied by subscribers. For remote, relatively inaccessible subscribers within the city, service may be made available on the basis of cost of materials, labor and easements if required by the grantee;

(6) A copy of any contract, if existing, between the applicant and any public utility providing for the use of facilities of such public utility, such as poles, lines or conduits;

(7) A statement setting forth all agreements and understandings, whether written, oral or implied, existing between the applicant and any person, firm or corporation with respect to the proposed franchise or the proposed CATV operation. If a franchise is granted to a person, firm or corporation posing as a front or as the representative of another person, firm or corporation, and such information is not disclosed in the original application, such franchise shall be deemed void and of no force and effect whatsoever;

(8) A financial statement prepared by a certified public accountant, showing applicant's financial status and his finan-

cial ability to complete the construction and installation of the proposed CATV system;

(9) The commission may at any time demand, and applicant shall provide, such supplementary, additional or other information as the commission may deem reasonably necessary to determine whether the requested franchise should be granted;

(10) A statement setting forth those signals which the applicant would bring into the city, and in addition thereto, a program setting forth the channels to be used;

(11) A statement setting forth the number and proposals concerning public access channels, educational access channels and government access channels;

(12) A statement showing the amount of franchise payment to be made in accordance with Section 3.16.050 of this chapter.

(b) Upon consideration of any such application, the commission may refuse to grant the requested franchise or the commission may, by ordinance, grant a franchise for a CATV system to any such applicant as may appear from the application to be in its opinion best qualified to render proper and efficient CATV service to television viewers and subscribers in the city. The commission's decision in the matter shall be final. If favorably considered, the application submitted shall constitute and form part of the franchise as granted.

(c) Any franchise granted pursuant to this chapter shall include the following condition:

"The CATV system herein franchised shall be used and operated solely and exclusively for the purpose expressly authorized by ordinance of the City of Wichita, and no other purposes whatsoever."

Inclusion of the foregoing statement in any such franchise shall not be deemed to limit the authority of the city to include any other reasonable condition, limitation or restriction which it may deem necessary to impose in connection with such franchise pursuant to the authority conferred by this ordinance, nor shall it in any manner limit any right, grant or privilege authorized by the Federal Communications Commissions.

(d) The city commission may grant a conditional franchise based on the programming, as set forth in Section 3.16.190(a)(10) above, contingent upon a certificate of compliance from the Federal Communications Commission, and if the applicant fails to receive a certificate of compliance from the Federal Communications Commission, then the franchise shall be declared to be null and void.
(Ord. No. 32-354 § 19)

Sec. 3.16.200. Notice of application—Placing on agenda.

The application for franchise filed with the city clerk shall be carried as an item of notice on the city manager's agenda in accordance with the procedure established for placing items on the city manager's agenda, and notice of the application having been filed shall be placed in the official city newspaper and in any other news media determined by the city manager as appropriate, together with the date that a hearing will be held to consider said application. Not less than five weeks from the date the item appears on the city manager's agenda, a public hearing will be held in a regular city commission meeting. In the event additional applications are filed, they will be placed on the agenda as soon as possible for notice purposes, and the same procedure and publication of notice will be followed by the city manager, setting the hearing date to coincide with the earliest application filed, and in the event applications are filed, in the opinion of the city manager, too close to the hearing date to provide adequate time for notice, then the city commission may either extend the hearing date or set a date in the future for the late applications.

It is the intent herein that all applications be heard at the same public meeting if at all practical.

Upon acceptance of an application and approval of the applicant by the city commission, the city attorney shall prepare on ordinance granting a franchise to the successful applicant and the

ordinance shall be placed on first reading and notice of said ordinance published in the official city newspaper. Following one week's notice, the ordinance shall be placed on the city council agenda for passage and adoption.
(Ord. No. 32-354 § 20)

Sec. 3.16.210. Renewal of franchise.

Any franchise granted under this chapter is renewable at the application of the grantee, in the same manner and upon the same terms and conditions as required herein for obtaining the original franchise, except those which are by their terms expressly inapplicable; provided, however, that notice and public hearing shall be provided before any such franchise shall be renewed. It is expressly stated that the renewal of a franchise is at the option of the city council.
(Ord. No. 32-354 § 21)

Sec. 3.16.220. Acceptance and effective date of franchise.

(a) No franchise granted pursuant to the provisions of this chapter shall become effective unless and until the ordinance granting same has become effective and, in addition, unless and until all things required in this section and in Sections 3.16.130 and 13.16.140(a), (b) are done and completed, all of such things being declared to be conditions precedent to the effectiveness of any such franchise granted hereunder. In the event any of such things are not done and completed in the time and manner required, the council may declare the franchise null and void.

(b) Within thirty days after the adoption date of the ordinance awarding a franchise, the grantee shall file with the city clerk his written acceptance, in form satisfactory to the city attorney, of the franchise, together with the bond and insurance policies required by Sections 3.16.130 and 3.16.140(a), (b), respectively, and his agreement to be bound by and to comply with and to do all things required of him by the provisions of this chapter and the franchise. Such acceptance and agreement shall be acknowledged by the grantee before a notary public, and shall in form and content be satisfactory to and approved by the city attorney.
(Ord. No. 32-354 § 22)

Sec. 3.16.230. Violations.

(a) From and after the effective date of the ordinance codified herein, it is unlawful for any person to establish, operate or to carry on the business of distributing to any persons in this city any television signals or radio signals by means of a CATV system unless a franchise therefor has first been obtained pursuant to the provisions of this chapter, and unless such franchise is in full force and effect.

(b) From and after the effective date of the ordinance codified herein, it is unlawful for any person to construct, install or maintain within any public street in the city, or within any other public property of the city, or within any privately-owned area within the city which has not yet become a public street but is designated or delineated as a proposed public street on any tentative subdivision map approved by the city, any equipment or facilities for distributing any television signals or radio signals through a CATV system, unless a franchise authorizing such use of such street or property or area has first been obtained pursuant to the provisions of this chapter, and unless such franchise is in full force and effect.
(Ord. No. 39-854 § 1)

CHAPTER 3.20. RESERVED*

*__Editor's note—__Ord. No. 51-209, § 1, adopted Apr. 21, 2020, repealed Ch. 3.20, §§ 3.20.010, 3.20.015, 3.20.020, 3.20.022, 3.20.023, 3.20.025, 3.20.030, 3.20.040, 3.20.060, 3.20.065, 3.20.067, 3.20.070—3.20.090, 3.20.095, and 3.20.100, which pertained to amusement parks and rides, and derived from Ord. No. 48-789, §§ 1—16, adopted Aug. 10, 2010.

CHAPTER 3.22. HAUNTED HOUSES, HALLOWEEN HOUSES AND MYSTERY MANSIONS

Sec. 3.22.010 Definitions.
Sec. 3.22.015. Enforcement of provisions of Code.
Sec. 3.22.020. License or permit required—Fee.
Sec. 3.22.030. License—Exception.
Sec. 3.22.035. Application.
Sec. 3.22.040. Liability insurance.
Sec. 3.22.050. Reserved.
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Sec. 3.22.062. Right of access.
Sec. 3.22.065. Premises capacity.
Sec. 3.22.067. Inspection of premises.
Sec. 3.22.070. Penalty for violation of chapter.
Sec. 3.22.080. Administrative procedures.
Sec. 3.22.090. Appeal procedure.

Sec. 3.22.010 Definitions.

Chief of police means the Chief of the Wichita Police Department or his/her designee.

Fire chief means the Director of the Fire Department of the City of Wichita, Kansas, or his/her designee.

Fire watch means a temporary measure intended to ensure continuous and systematic surveillance of a building or portion thereof by one or more qualified individuals or standby personnel when required by the fire chief for the purpose of identifying and controlling fire hazards, detecting early signs of unwanted fire, raising an alarm of fire and notifying the fire department.

Halloween season means the period of time from September 1st through November 2nd of any calendar year.

Haunted house, indoor means any indoor permanent or temporary building, structure or facility, or portion thereof, which provides walkways or any other system that transports passengers through a facility or course so arranged that the means of egress are not readily apparent due to theatrical distractions or displays, are not plainly visible due to low illumination, or are not readily accessible or available due to the type of course, pathways or method of transportation through the building or structure, and where the public is invited to view, be entertained, scared or amused by simulated creations of sound, theatrical displays or distractions, or sight and feeling of a ghoulish, ghostly, spectral, imaginary and haunting nature in the spirit of and celebration of the holiday known as Halloween. Unless otherwise specified, such term shall include temporary and permanent haunted houses, indoor.

Haunted walk/field, outdoor means an attraction similar to haunted houses, indoor, which occurs primarily outdoors but may include both outdoor or indoor areas where egress to a public way is not readily identifiable, where the public is invited to view, be entertained, scared or amused by simulated creations of sound, theatrical distractions, sight and feeling of a ghoulish, ghostly, spectral, imaginary and haunting nature in the spirit of and celebration of the holiday known as Halloween.

Permanent haunted house means a 'haunted house, indoor' that meets the requirements of the Wichita-Sedgwick County Unified Zoning Code as related to "Recreation and Entertainment, Indoor" uses, as well as all City of Wichita Building, Fire, Electrical, Elevator, Mechanical, Plumbing And Sewer Codes, which may operate year round.

Person means any individual, firm, association, company, partnership, or other legal entity.

Superintendent of central inspection means the superintendent or person in charge of the office of central inspection of the city or his/her designee.

Temporary haunted house, indoor or temporary haunted walk/field, outdoor means a haunted house, indoor, or haunted walk/field, outdoor that is operated only during the Halloween season.
(Ord. No. 34-677 (part); Ord. No. 49-042, § 1, 8-16-2011)

Sec. 3.22.015. Enforcement of provisions of Code.

(a) The Office of Central Inspection of the City of Wichita, the Wichita Police Department, the Wichita Fire Department, the Wichita Department of Public Works & Utilities and the authorized representatives of such departments, shall be responsible for the enforcement of all provisions of this Code.

(b) The provisions of this Code are in addition to any other health, fire, zoning, building code or life safety requirements within the ordinances of the Code of the City of Wichita or laws of the State of Kansas.
(Ord. No. 49-042, § 2, 8-16-2011)

Sec. 3.22.020. License or permit required—Fee.

(a) It is unlawful for any person to engage, conduct, pursue, operate, authorize or permit, within the corporate limits of the city, a temporary haunted house, indoor or haunted walk/field, outdoor, whether or not an admittance fee is charged, without first obtaining a license from the city treasurer and paying a license fee of $100.00.

In addition to the application fee, an inspection fee not to exceed $50.00 will be assessed for each subsequent inspection(s) of the property by the office of central inspection or the fire department to determine compliance with the provisions of this Code at the time of licensing. No inspection fee shall be assessed for the initial inspection, or when the first re-inspection verifies that corrections required during initial inspection have been resolved. Further, the applicant or his/her contractors or other agents are responsible for obtaining any and all permits and inspections required pursuant to the Building, Fire, Electrical, Mechanical, Plumbing and Elevator Codes of the City of Wichita.

(b) It is unlawful for any person to engage, conduct, pursue, operate, authorize or permit, within the corporate limits of the city, a permanent haunted house, indoor, whether or not an admittance fee is charged, without first obtaining a license from the city treasurer and paying a license fee of $250.00.

In addition to the application fee, an inspection fee not to exceed $50.00 will be assessed for each subsequent inspection(s) of the property by the office of central inspection or the fire department to determine compliance with the provisions of this Code at the time of licensing or during the annual license period when modifications to egress paths or systems, theatrical distraction or displays, or egress path illumination are made. Such modifications must be inspected and approved by the City of Wichita Fire Department and/or Office of Central Inspection. No inspection fee shall be assessed for the initial annual license inspection, or when the first re-inspection verifies that corrections required during initial inspection have been resolved. Further, the applicant or his/her contractors or other agents are responsible for obtaining any and all permits and inspections required pursuant to the Building, Fire, Plumbing, Sewer, Mechanical, Elevator and Electrical Codes of the City of Wichita.

(c) No license shall be issued for the operation of a haunted house, indoor or haunted walk/field, outdoor in any residential zoning district except those located in buildings of churches, schools or upon public property with the written approval of the municipality, department or agency authorized to issue such approval for use of the property.

(d) The license for temporary haunted houses, indoor or haunted walks/fields, outdoor shall be effective for one annual Halloween season as defined by this chapter.

(e) The license for permanent haunted houses, indoor shall be effective for 12 months.
(Ord. No. 43-216 § 1; Ord. No. 49-042, § 3, 8-16-2011)

Sec. 3.22.030. License—Exception.

Nothing in this chapter shall be construed to require any license for a haunted house operated in conjunction with an amusement park as determined by Chapter 3.20 of this Code.
(Ord. No. 34-677 (part))

Sec. 3.22.035. Application.

(a) Before any license is granted or issued for a haunted house, indoor or haunted walk/field, outdoor, an application shall be filed with the city treasurer, setting forth the following facts:

(1) The name, address, date of birth of the applicant and a telephone number where the applicant can be reached between the hours of eight a.m. and five p.m. and during the hours of operation of the haunted house, indoor or haunted walk/field, outdoor;

(2) Address of the haunted house, indoor or haunted walk/field, outdoor;

(3) Property owner's name, address and phone number;

(4) Dates for which the license is desired;

(5) Hours and days the haunted house, indoor or haunted walk/field, outdoor is to be open and closed;

(6) A statement that the applicant is familiar with the conditions imposed by the terms of this chapter;

(7) Written consent of the property owner;

(8) Site and/or floor plan of all proposed indoor or outdoor permanent or temporary buildings, structures, facilities or property;

(9) Plan for parking and restroom facilities;

(10) Maximum occupant load of the buildings, facilities or areas.

(b) In addition, the applicant must furnish:

(1) The name(s) and address(es) of the owner(s) of the premises where such haunted house, indoor or haunted walk/field, outdoor is located;

(2) The manager or operator and, if a corporation or partnership, all the names and addresses of the officers of such corporation or partnership and any individual who owns 25 percent or more of the stock of such corporation. If the license is to be held by a corporation, the resident officer of the corporation. If the applicant is a partnership, all the names, addresses, social security numbers and dates of birth of all partners of the partnership;

(3) The name, address and date of birth of the applicant, owner, manager or other responsible person of the haunted house, indoor or haunted walk/field, outdoor;

(4) An emergency management plan, consisting of, but not limited to, fire and storm evacuation, patron crowd control and emergency access for police, fire and ambulance;

(5) Detailed plans and drawings of the haunted house, indoor or haunted walk/field, outdoor shall be submitted to the Office of Central Inspection and the Wichita Fire Department, indicating the waiting area for persons seeking admission, the parking areas, all restrooms, emergency exits and all other areas accessible by patrons;

(6) A statement as to whether the applicant has ever had any license denied, revoked or suspended by the City of Wichita or the State of Kansas or any other governmental entity, the reason therefor and the business activity or occupation of the individual subsequent to such suspension, revocation or denial;

(7) A statement as to whether the applicant has ever been convicted of a felony or other crime as set forth in this section which would make the applicant ineligible to be licensed pursuant to the terms of this Chapter;

(8) A statement that the applicant consents and agrees that any member of the police department, fire department, office of central inspection and department of public works and utilities may, at any time, enter and inspect any part of such premises.

(c) A license shall be denied if one or more of the following conditions exist:

(1) Any applicant, owner, officer, manager or director of a corporate applicant, any person owning 25 percent or more of the stock of a corporate applicant, or any partner of a partnership applicant if the partner has, within the preceding ten years, been convicted of or placed on diversion for a:

a. Felony;

b. A crime for which the individual is required to register as a sex offender pursuant to K.S.A. 22-4901, et seq. or laws or statutes in other local, state or federal jurisdictions which require an offender to be registered as a sex offender;

c. For any conviction or diversion of a misdemeanor within the last three years involving:

i. Laws pertaining to any controlled substance(s) prohibited by the Uniform Controlled Substance Act, K.S.A. 65-4104, et seq. or other laws of the state of Kansas or the United States and amendments thereto;

ii. Prostitution;

iii. Public Indecency;

iv. A sex crime or other person crime as defined by Chapter 21 of the Kansas Statutes Annotated;

v. Any weapons charge.

(2) An applicant is less than 18 years of age;

(3) The premises do not comply with The Health, Building, Fire, Electrical, Mechanical, Plumbing, Elevator and Zoning Codes of the City of Wichita, except as allowed by the provisions of Section 3.22.020(c) regarding the location of the temporary haunted house, indoor or haunted walk/field, outdoor;

(4) The applicant has knowingly made a false, misleading or fraudulent statement of fact to the city in the application process;

(5) The application is incomplete or if it contains any material misrepresentation;

(6) The applicant, in the last two years has violated the provisions of this Chapter or has had a previous haunted house, indoor or haunted walk/field, outdoor license revoked for failure to comply with the term and conditions of the license or for violations of the ordinances of the City of Wichita.

(d) The application is filed with, and the license fee is paid to the city treasurer. The license will not be issued until the application has been reviewed and approved by the chief of police, the office of central inspection and the fire chief.

(e) No permanent haunted house, indoor license will be issued to any facility which is not property zoned for "Recreation and Entertainment, Indoor" pursuant to the Wichita-Sedgwick County Unified Zoning Code. All activities of a permanent haunted house, indoor must occur completely inside the structure or facility licensed as a permanent haunted house, indoor.

(f) Applications for a license or renewal will not be accepted by the city treasurer less than 30 days prior to the opening of the haunted house, indoor or haunted walk/field, outdoor, or expiration of a current license.
(Ord. No. 49-042, § 4, 8-16-2011)

Sec. 3.22.040. Liability insurance.

(a) No person within the corporate limits of the city shall be licensed to engage in the operation of a haunted house, indoor or haunted field/walk, outdoor until he has deposited and filed with the city treasurer, a public liability insurance policy with coverage of not less than $500,000.00 for injury or death to any one person and one million dollars for injury or death to any number of persons in any one accident.

(b) It is unlawful for any person to operate a haunted house, indoor or haunted walk/field, outdoor without obtaining and maintaining in force, during the operation of the haunted house, indoor or haunted walk/field, outdoor, liability insurance in the amounts required by this Code.

(c) It is the responsibility of the licensee to notify the city treasurer of any change, cancellation or termination of insurance coverage.
(Ord. No. 34-677 (part); Ord. No. 49-042, § 5, 8-16-2011)

Sec. 3.22.050. Reserved.

Editor's note—Ord. No. 49-042, § 13, adopted August 16, 2011 repealed § 3.22.050 in its entirety. Formerly said section pertained to precautions required and derived from Ord. No. 34-677(part).

Sec. 3.22.060. Standards, rules and regulations.

Every person engaging in, conducting, pursuing or operating a haunted house, indoor or haunted walk/field, outdoor within the corporate limits of

the city, shall comply with the following standards, rules and regulations covering the operation of the haunted house, indoor or haunted walk/field, outdoor:

(a) Before any license is issued, the building or structure shall be inspected and approved by representatives of the office of central inspection and the fire department.

(b) The building or structure shall be of sound structural condition.

(c) Fire protection shall be provided as required by the currently adopted City of Wichita Fire Codes. This shall include, but not be limited to, fire extinguishers, an approved automatic fire detection system, sprinkler system and an emergency notification system with a prerecorded, approved message. The fire chief may approve a fire watch to be temporarily used in lieu of, or in conjunction with, automatic fire and/or smoke detection systems sprinkler systems and/or other emergency notification systems when such fire watch would adequately protect the safety of public while on the licensee's premises. The fire chief shall determine the type and number of personnel required for the fire watch and the licensee shall be responsible for all personnel and other costs associated with the required fire watch.

(d) Each floor level shall be provided with at least two approved exits, and steps with three or more risers shall be equipped with handrails.

(e) Exit and emergency lighting shall be provided.

(f) All corridors, hallways or walkways that are part of a required primary path of emergency egress from the building or facility shall be a minimum of 36 inches wide, with minimum maneuvering clearances at required egress doors as required by the building code. Mazes and/or hallways that are not part of the primary path of emergency egress shall not be less than two feet, six inches wide.

(g) All mazes shall have exit facilities each twenty feet.

(h) All decorations and materials used shall be flame resistant or treated and maintained fire retardant.

(i) All employees must be trained in emergency procedures regarding evacuation of the facility.

(j) All emergency staff shall carry flashlights and know the location of all exits, fire extinguishers, light switches, electrical panels and emergency phones;

(k) Open flames or space heaters are prohibited indoors, and may only be allowed outdoors with prior fire department authorization and approval;

(l) Storage or use of flammable or combustible liquids, gasses and solids is prohibited.

(m) All buildings or structures and the surrounding grounds and premises shall be cleaned, inspected and secured after the operation is closed for the season.

(n) A telephone shall be available on the premises for emergency use at all times when the premises are open to the public.

(o) Off-street parking shall be located on the licensed premises or on an abutting lot immediately adjacent to the structure or facility.

(p) All electrical facilities, wiring, appliances, motors and devices of whatever nature shall be approved by the office of central inspection.

(q) Structural materials, electrical facilities, mechanical devices, decorations, appliances, motors and other devices of whatever nature shall be constructed, used and maintained so that no hazard is created that is contrary to any code adopted by the City of Wichita.

(r) Suitable arrangements for restroom facilities and sanitary sewage disposal must be provided. A minimum of one toilet or portable toilet shall be provided for every

two hundred people based on the approved maximum premises capacity (occupant load) of the facility. Each facility will have at least one toilet which is handicap accessible.

(s) The property and all structures shall be maintained in a clean and sanitary manner by the owner or operator.

(t) Noise may not exceed the maximum allowable noise levels established in Chapter 7.41 of the Code of the City of Wichita. Noise shall not be of such volume, intensity or duration as to disturb a person or reasonable sensibilities.

(u) Haunted houses, indoor shall not be opened to the public or operate earlier than nine a.m. nor remain open to the public or operate later that two a.m. Haunted walks/fields, outdoor shall not be opened to the public or operate earlier than nine a.m. nor remain open to the public or operate later than twelve midnight Sunday through Thursday, except on October 31st, or later than two a.m. on Friday and Saturday or on October 31st.

(v) Any modifications to plans submitted and approved, at the time of licensing or licensing renewal, must be inspected and approved by the office of central inspection and the fire department.

(Ord. No. 43-216 § 2; Ord. No. 49-042, § 6, 8-16-2011)

Sec. 3.22.062. Right of access.

During any hours of operation and at times when the licensee, operator or their employees or agents are on the premises, all haunted houses, indoor and haunted walks/fields, outdoor shall be open for inspection(s) by the Wichita Fire Department, Office of Central Inspection officials, Department of Public Works and Utilities officials and Wichita Police Department or other law enforcement agencies.

(Ord. No. 49-042, § 7, 8-16-2011)

Sec. 3.22.065. Premises capacity.

It shall be the duty of the fire chief and the superintendent of central inspection to determine the number of persons who can be safely accommodated at any one time in any building, premises or location where any haunted house, indoor or haunted walk/field, outdoor is located. The fire chief and the superintendent of central inspection shall rate and limit the maximum occupant load of the building, premises or location and furnish a certificate thereof to the owner or operator of such haunted house, indoor or any building or structure which is part of a haunted walk/field, outdoor, which owner shall be required to post such certificate near the main entrance in the facility. Such owner, operator, licensee or responsible person is hereby required to limit the attendance at such haunted house, indoor or haunted walk/field, outdoor to such maximum occupant load capacity as has been determined by the fire chief and superintendent of central inspection. It shall be unlawful to post a certificate of maximum occupant load showing a greater capacity than that shown by the office of central inspection and fire chief.

(Ord. No. 49-042, § 8, 8-16-2011)

Sec. 3.22.067. Inspection of premises.

It shall be unlawful to conduct or operate any haunted house, indoor or haunted walk/field, outdoor which has not been inspected and approved by the office of central inspection and the fire department.

(Ord. No. 49-042, § 9, 8-16-2011)

Sec. 3.22.070. Penalty for violation of chapter.

Any person who violates any provisions of this chapter, shall be guilty of a misdemeanor and shall be punished by a fine not to exceed $500.00. Each day's violation shall be a separate offense.

(Ord. No. 34-677 (part); Ord. No. 49-042, § 10, 8-16-2011)

Sec. 3.22.080. Administrative procedures.

(a) A haunted house, indoor or haunted walk/field, outdoor license may be suspended, or revoked if:

(1) Any information furnished on the application is incomplete, false or is not updated as required by this chapter;

(2) Failure to comply with any condition of the haunted house, indoor or haunted walk/field, outdoor license;

(3) The licensee or a manager has become ineligible to hold a license;

(4) The owner, manager, partner, director or other person owning 25 percent or more of the stock of a corporate licensee or a partner of a partnership licensee is convicted of any violation or crime which would make them ineligible to obtain a haunted house, indoor or haunted walk/field, outdoor license;

(5) The premises are in violation of the health, building, fire, electrical, mechanical, plumbing, elevator or zoning codes, except as allowed by Section 3.22.020(c) of the City of Wichita regarding the location of the haunted house, indoor or haunted walk/field, outdoor, or the laws of the State of Kansas;

(6) Evidence of a material variance in the actual plan and design of the premises from the plans submitted pursuant to this chapter, or from the original design of the premises when initially licensed;

(7) Any law enforcement officer, fire department, public works and utilities or office of central inspection official, is refused access to inspect the premises during any hours of operation and at times when the licensee, operator or their employees or agents are on the premises;

(8) The premises are in violation of the maximum occupant load of such building, structure or facility;

(9) The licensee or any employee or agent of the licensee is found to be in violation of the provisions of this chapter or any other ordinance, rule or regulation of the City of Wichita.

For the purposes of this section, 'conviction' or 'violation' shall include being placed on diversion or being adjudged guilty upon entering a plea of no contest.

(b) The superintendent of central inspection, fire chief or chief of police shall provide written notice of the intent to revoke or suspend a haunted house, indoor or haunted walk/field, outdoor license by personal service or by certified mail, return receipt requested. The notice shall be sent to the mailing address of the licensee on file with the city treasurer. The notice shall provide the effective date of the revocation or suspension of the license. Such notice shall detail the reasons or basis for the revocation or suspension of the license. No revocation or suspension shall be imposed on less than five days notice to the licensee, and shall specify the rights of the licensee to appeal any such revocation or suspension.
(Ord. No. 49-042, § 11, 8-16-2011)

Sec. 3.22.090. Appeal procedure.

(a) Any applicant or licensee aggrieved by the denial, suspension or revocation of a haunted house, indoor or haunted walk/field, outdoor license may file with the city clerk a written notice of appeal to the city council within ten business days of the decision by the superintendent of central inspection, chief of police or fire chief or their designees. The notice of appeal shall specify:

(1) The name and address of the appellant;

(2) The date of application;

(3) The date of the denial, suspension or revocation of the license or application;

(4) The factual basis for the appeal.

(b) Upon receipt of a complete and timely filed notice of appeal, the city clerk shall schedule a hearing before the city council, no later than 20 days from the date of the filing of the notice of appeal with the city clerk. Any appeal shall stay the suspension or revocation of the license until the matter is heard by the city council.

(c) The city council may approve the denial, suspension or revocation, overrule the denial, suspension or revocation or modify the decision of the superintendent of central inspection, chief of police or fire chief.

(d) The council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation, modification or suspension of the license by the city council.
(Ord. No. 49-042, § 12, 8-16-2011)

CHAPTER 3.23. LODGING ESTABLISHMENT LICENSE

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Sec. 3.23.010. Purpose.

The purpose of this Chapter is to establish standards to protect the health, safety and welfare of the residents and guests in the City of Wichita, Kansas. These objectives include but are not limited to protecting the public from unsafe, unhealthy or unsanitary lodging facilities; correcting and preventing conditions that may adversely affect persons utilizing lodging facilities; providing minimum standards for the operation and maintenance of Lodging Establishments; and meeting consumer expectations of the quality and safety of Lodging Establishments.
(Ord. No. 52-835, § 2, 11-25-25)

Sec. 3.23.020. Definitions.

(a) Disqualifying Criminal Activity means trigger events sufficient to constitute a chronic nuisance as described in Chapter 8.02 of the Code of the City of Wichita.

(b) Employee means any person employed by a licensee in the business of furnishing sleeping accommodations.

(c) Guest or Guests means a person whose name and address is registered on the registry maintained by the Lodging Establishment and/or who is the bona fide occupant of a room of the Lodging Establishment.

(d) Licensed premises means the premises specified in an approved application for a license under this chapter which are owned or in the possession of the licensee.

(e) Licensee means any person or designee thereof to whom a current license has been issued pursuant to this chapter authorizing the sale or the furnishing of sleeping accommodations.

(f) Lodging Establishment means every building or other structure which is kept, used, maintained, advertised or held out to the public as a place where sleeping accommodations are offered for pay to transient guests including extended stay transient guests and in which two or more rooms are used individually for the accommodation of such guests, regardless of whether such building or structure is designated as a cabin camp, tourist cabin, motel or other type of lodging unit. A short-term rental defined in Chapter 3.40 is not a Lodging Establishment.

(g) Manager means the manager or assistant manager, or both, of any Lodging Establishment licensed under this chapter who is in charge of the daily operations of the establishment. A manager shall be deemed to be employed in connection with the leasing, renting or sale of accommodations.

(h) Person means any natural person, corporation, partnership, trust or association.

(i) Regulatory authority means any employee of the City of Wichita, Sedgwick County or State of Kansas who is tasked with overseeing compliance with the Municipal Code, Kansas Statutes or Administrative Regulations.
(Ord. No. 52-835, § 3, 11-25-25)

Sec. 3.23.030. License required and fees.

(a) It is unlawful for any person either as the owner, principal, officer, agent, servant, responsible person or employee, to own, lease, manage, maintain or operate a Lodging Establishment without having first obtained a license from City Licensing and paying a license fee of $200.

(b) A Lodging Establishment license expires one year after date of issuance. A license under this section is not transferable to another person or location. A change in ownership shall require the new owner to pay a new application fee and secure a new Lodging Establishment license.

(c) Chapter 3.23 goes into effect January 1, 2026. Lodging Establishments licensed by the State of Kansas on or before January 1, 2026, must submit an application to City Licensing by March 31, 2026. Late applicants shall pay an administrative fee of $5 per day for each day a license is not submitted after March 31, 2026.
(Ord. No. 52-835, § 4, 11-25-25)

Sec. 3.23.040. Exceptions.

Nothing in this Chapter shall be construed to require any license for the following activities:

(a) Facilities for disabled or developmentally disabled persons which are licensed by the Kansas Department for Aging and Disability Services;

(b) Correctional or Work Release Facility, as set forth in K.S.A. 75-5302 *et seq*. and as amended;

(c) Facilities licensed as Alternative Correctional Housing Facilities licensed pursuant to Chapter 20.08 of the Code of the City of Wichita;

(d) Child Care, Day Care or Maternity Centers as defined by K.S.A. 65-503 *et seq*.;

(e) Any Lodging Establishment operated in connection with any premises licensed, which is registered or permitted by the Secretary of Health and Environment, the Secretary of Social and Rehabilitation Services, the Secretary of Corrections or the Secretary of Aging, and which is inspected and regulated by the licensing agency;

(f) Any short-term rental as defined by Section 3.40.040 of the Code of the City of Wichita; and

(g) Dormitory lodging provided by camps, primary, secondary and post-secondary schools.
(Ord. No. 52-835, § 5, 11-25-25)

Sec. 3.23.050. Application—Contents.

1. Before any license is granted by the City of Wichita Licensing Department, an application shall be filed for such license setting forth the following facts:

(a) The applicant must attest to be an owner of the Lodging Establishment or an officer of the corporation that owns the establishment;

(b) The name, address, last 4 digits of Social Security number, date of birth of the applicant and telephone number where the applicant can be reached between the hours of 8:00 a.m. and 5:00 p.m.;

(c) Location of the Lodging Establishment;

(d) A statement that the applicant is familiar with the conditions imposed by the terms of this Chapter;

(e) Number of rooms, units or areas to be used for lodging;

(f) A statement as to whether the applicant has ever had any license denied, revoked or suspended by the City of Wichita or the State of Kansas or any other governmental entity, the reason therefore and the business activity or occupation of the individual subsequent to such suspension, revocation or denial;

(g) A statement that the applicant consents and agrees that any member of the Police Department or Fire Department or other regulatory authority as defined in this Chapter, at any time, enter and inspect any part of such premises;

(h) Proof of a minimum $1,000,000 general liability insurance policy that covers incidents involving guests of the Lodging Establishment; and

(i) A copy of the Kansas Lodging Establishment license issued pursuant to K.S.A. 36-501, *et seq*. and all amendments

thereto. The license must be submitted with the application or the application will be considered incomplete.

2. The application shall be approved or denied within 30 days of submission of a completed application and all accompanying documents. Incomplete applications will not be considered for approval. An application shall be approved unless there is an enumerated disqualifying factor or all requirements are not met.
(Ord. No. 52-835, § 6, 11-25-25)

Sec. 3.23.060. Denial of license.

A license shall be denied if one or more of the following conditions exist:

(a) The application did not meet the requirements or provide the necessary documents.

(b) The premises do not comply with the health, housing, fire and zoning codes of the City of Wichita and Sedgwick County, including but not limited to: Uniform Building and Trade Code, Unified Zoning Code, International Fire Code, and Chapters 7, 8, 18, 19 and 20 of the Code of the City of Wichita and any amendments thereto or any other maintenance code adopted for use by a regulatory authority.

(c) The premises do not comply with the requirements set forth in the Kansas Lodging Establishment Act. K.S.A. 36-501 *et seq*. and amendments thereto.

(d) The applicant has knowingly made a false, misleading or fraudulent statement of fact to the City of Wichita or State of Kansas in the application process.

(e) The location is under suspension or revocation with outstanding violations that have not been cleared, unless the location is operating under an improvement plan approved by the appropriate regulatory authority.

(f) A Lodging Establishment license shall not be granted on a location that has been deemed a public nuisance in accordance with the Code of the City of Wichita and applicable abatement processes have not been established or fulfilled without consent of the Chief of Police.

(g) A license shall not be granted to a location that is in arrears on administrative penalties, chronic nuisance fees, false alarm fees, parking fees, Transient Guest Taxes, property taxes, business improvement district fees or other fees owed to the City of Wichita, State of Kansas or Sedgwick County without an active payment plan that is not in arrears and authorization by the Chief of Police or designee.

(h) A license may not be granted if the applicant has had a Lodging Establishment license that was revoked in the prior 5 years.

(i) An applicant shall not reapply for a license until 6 months from the date of the denial of a Lodging Establishment license.
(Ord. No. 52-835, § 7, 11-25-25)

Sec. 3.23.070. Inspections.

(a) An initial inspection by the City of Wichita is not required to obtain the license. The City of Wichita will rely on the State of Kansas lodging inspection. After licensing, the Lodging Establishment will be subject to random inspections or inspections as the result of complaints or observable violations of Wichita ordinances. A regulatory authority shall have the right of entry and access thereto, at any reasonable time. Room occupants shall be afforded a 4-hour notice prior to inspection. Such notice may be served in person or by posting the same on the door of the room.

(b) Allowed access at reasonable times after due notice. After the regulatory authority presents official credentials and provides notice of the purpose of, and an intent to conduct, an inspection, the person in charge shall allow the regulatory authority to determine if the Lodging Establishment is in compliance with the Code of the City of Wichita, State Statute, or its

Administrative Regulations by allowing access to the establishment, allowing inspection, and providing information and records specified in this Code and to which the regulatory authority is entitled according to law, during the Lodging Establishment's hours of operation and other reasonable times.

(c) Non-health-hazardous or life-threatening violations; opportunity to correct. During an inspection, if the regulatory authority discovers that a licensee has failed to comply with the Code of the City of Wichita, State Statute, or its Administrative Regulations, and the violation is not life-threatening or a potentially serious health hazard, the issues shall be dealt with in accordance with policies and ordinances of the department that controls the area of violation.

(d) Health-hazardous or life-threatening violations; opportunity to correct. During an inspection, if the regulatory authority discovers that a licensee has failed to comply with this article or the rules and regulations established by the Code of the City of Wichita, State Statute, or its Administrative Regulations, and the violation is or may become life-threatening or a potentially serious health hazard, the authority shall:

(1) Immediately lock, secure or close the area of violation and post a sign indicating that the room, area and/or Lodging Establishment is closed.

(2) Inform the licensee or his agent, or employee in writing that a violation exists.

(3) Re-inspect the Lodging Establishment to determine if the violation still exists.

(4) Pursuant to Section 3.23.100 which authorizes the Chief of Police or a regulatory authority to close a Lodging Establishment when health and safety issues exist that could endanger the public.

(e) Timely correction.

(1) The licensee shall at the time of inspection correct any health hazardous or life threatening violation of the codes and implement corrective actions to prevent violation from recurring.

(2) Considering the nature of the potential hazard involved and the complexity of the corrective action needed, the regulatory authority may agree to or specify a longer time frame for the licensee to correct health hazardous or life threatening violation and terms under which occupants would be allowed.

(3) If the regulatory authority finds the licensee still in violation of either life threatening or non-life threatening violations after re-inspection and does not allow an extension of time, the regulatory authority shall notify the licensee in writing of the intention to suspend or revoke the permit and allow the licensee an opportunity for a hearing.

(Ord. No. 52-835, § 8, 11-25-25)

Sec. 3.23.080. Sanitation and housekeeping.

(a) Lodging Establishments shall be kept in a clean and sanitary condition, in good repair, and shall be maintained and operated with strict regard to the health and safety of the patrons. Non-compliance for the following items shall be unlawful:

(1) Walls, floors and ceilings of guest rooms shall be kept clean and in good repair. Furnishings, including draperies, beds, appliances, furniture and lamps, shall be kept clean and in good repair;

(2) Clean and proper housekeeping shall be employed in guest rooms and related facilities:

i. A room in use shall be cleaned at least each time a different guest rents the room. If the same guest continuously occupies a room, such as in the case of an extended stay lodging facility, the room shall be cleaned at least weekly.

ii. Clean towels and washcloths shall be provided in the guest room each day that guest room is occupied by a different guest.

iii. Clean bed linens shall be provided in the guest room each day that guest room is occupied by a different guest. If the same guest continuously occupies a room, bed linens and towels shall be changed at least weekly. Bedspreads shall be clean and maintained in good repair.

iv. Mattresses and box springs shall be clean and in good repair. The sleeping surfaces of a mattress in use shall be completely covered by a sheet. Excessively damaged or soiled mattresses and/or box springs shall be replaced.

v. Single-service drinking glasses and/or utensils, if provided in guest rooms, shall be individually wrapped.

(b) Ice provided for guests and patrons' use shall be from a commercial source or made from a potable water supply. The ice shall be protected from contamination, which shall include the following:

(1) Ice machines, dispensers or chests shall be sheltered from the weather, kept in good repair and the ice compartment shall be kept clean and free of mold, rust, debris, foreign objects or other contaminants. All establishments that replace or add a new ice machine shall only provide dispensing type self-service ice machines;

(2) Ice machines and ice trays within guest refrigerators shall be kept clean and sanitary. Ice shall be removed from the ice bin and ice trays each time a different guest rents the room; and

(3) An approved scoop with a handle that is seamless and without cracks shall be provided for each bin-type ice machine or chest. The scoop may be stored in a holster in the ice compartment, in a smooth non-absorbent holder outside the ice machine or chest, or in another manner acceptable to the regulatory authority.

(c) The guest rooms, buildings and premises shall be kept neat and free of refuse and debris.

(1) Garbage and refuse shall be stored in a covered durable, leakproof and pest-proof non-absorbent container. Outdoor trash containers shall be stored on a smooth, hard surface such as concrete or machine-laid asphalt that is sloped to drain, or other methods approved by the regulatory authority.

(2) Plant growth or other items in close proximity to the Lodging Establishment and its attendant facilities shall be maintained so as not to create a nuisance through harborage (cover) for pests such as insects, rodents, reptiles and other small animals.

(3) Items creating harborage for insects or pests, or creating a health or safety hazard, shall be removed.

(d) Pests. Every Lodging Establishment shall be constructed and maintained to prevent the entrance, harborage, or breeding of flies, cockroaches, bedbugs, fleas, rats, mice, birds, and all other insects and pests. Routine inspections of the premises shall be conducted to control and minimize the presence of pests and eliminate harborage conditions.

1. Regulation. Professional pest services shall be used for preventive maintenance and for control and elimination of the presence of pests.

2. Removal. Dead or trapped birds, insects, rodents, and other pests shall be removed from control devices and the premises at a frequency that prevents their accumulation, decomposition, or the attraction of pests.

(Ord. No. 52-835, § 9, 11-25-25)

Sec. 3.23.090. Administrative procedures.

(a) A Lodging Establishment license may be modified, penalized, suspended, or revoked if:

(1) Any data furnished on the application is incomplete, false or is not updated as required by this Chapter;

(2) Failure to comply with any condition or modification of the lodging license;

(3) The premises are in violation of the health, housing, fire, zoning or building codes of the City of Wichita, or the State of Kansas and the issues were not corrected by the date specified by the regulatory authority;

(4) Any regulatory authority including Police Officer, Fire Department Official, MABCD or other code enforcement or health officer of the City is refused access to inspect the premises during normal business hours;

(5) The licensee or any employee, agent or responsible person is found to be in violation of the provisions of this Chapter or has violated a state or federal law or ordinance of the City on the premises or regarding the licensed premises;

(6) The Lodging Establishment has been deemed a chronic nuisance pursuant to Chapter 8.02 of the Code of the City of Wichita and the establishment has not entered into an abatement agreement or has not complied with an abatement agreement;

(7) The Lodging Establishment allows rentals by the hour. Hourly rentals are prohibited and unlawful;

(8) The Lodging Establishment fails to keep an up-to-date registry with the names of each guest renting a room or fails to produce the record for the regulatory authority;

(9) A licensee or location is in arrears on administrative penalties, chronic nuisance fees, false alarm fees, parking fees, Transient Guest Taxes, property taxes, business improvement district fees or other fees owed to the City of Wichita, State of Kansas or Sedgwick County or has not made all required payments on a payment plan for such fees or taxes;

(10) Nothing in this ordinance shall be interpreted as penalizing a Lodging Establishment or the owner or employees of such Lodging Establishment, solely for requesting assistance or reporting an incident to the police department. The City encourages Lodging Establishments and employees to promptly report to the police department harmful or potentially harmful acts or conduct on the part of patrons. The licensee may be penalized, suspended or revoked if the licensee fails to mitigate or resolve circumstances that allow or permit violence to occur.

(b) The regulatory authority shall provide written notice of the intent to revoke, suspend, amend or deny a Lodging Establishment license by personal service or by first class mail. The notice shall be sent to the mailing address of the licensee on file with City Licensing. The notice shall provide the effective date of the revocation or suspension of the license. Such notice shall detail the reasons or basis for the revocation, denial, or suspension of the license. No revocation or suspension shall be imposed on less than five (5) business days' notice to the licensee and shall specify the rights of the licensee to appeal any such denial, revocation or suspension except in the case of a closure due to immediate threat of public safety or pursuant to terms of other federal, state or local laws.

(c) In lieu of suspension or revocation, the City regulatory authority may impose an administrative penalty up to $5,000 and/or additional conditions on the license to protect public health, safety and welfare. The imposition of such additional conditions shall be based on violations occurring on the premises by the licensee, his/her employees, guests, agents or responsible person of the provisions of this Chapter, the laws of the City of Wichita, or State or Federal laws. Conditions shall be based upon specific and articulable facts reasonably related to insuring public health and safety, including but not limited to: the protection of minors, protection of guests from criminal activity, including but not limited to homicide, aggravated assault, weapon offenses, drug offenses and disorderly conduct, prevention of public nuisances, enhancement of fire protection, traffic control, security lighting and property condition issues. The licensee has the same right to appeal any additional conditions as they would a suspension or revocation.

(d) The Chief of Police or designee or other regulatory authority shall notify the licensee in writing of any additional conditions imposed on the licensee. Such notice shall specify the additional conditions, set forth facts which support the basis for the addition of such conditions and a time frame for completion of such additional conditions.
(Ord. No. 52-835, § 10, 11-25-25)

Sec. 3.23.100. Immediate suspension due to immediate threat to public safety.

(a) The Chief of Police, or designee, may require a licensee of a Lodging Establishment to cease operations and disperse all guests whenever conduct or risk reaches a magnitude that presents an immediate threat to the public safety and well-being of the guests and general public in the vicinity of the establishment. A regulatory authority may require a licensee of a Lodging Establishment to cease operation and disperse all guests when the condition of the building or its systems is so hazardous as to constitute an immediate danger to health and life safety. The establishment shall remain closed until the threat has passed.

(b) The Chief of Police or designee or other regulatory authority may temporarily suspend a license without 5 days' written notice or make additional security requirements without 5 days' written notice if it is determined that the condition of the building or its systems is so hazardous as to constitute an immediate danger to health and life safety or has a lack of security sufficient to protect the public and the lack of security poses a substantial risk of harm to patrons or others or the premises are in such a condition as to pose an immediate threat of injury or illness. An emergency suspension without 5 days' written notice shall only be used in cases where there has been a significant violent act or a credible threat of future violence or premises conditions that pose an immediate threat of injury or illness. The suspension shall be effective immediately upon verbal notification by the Chief of Police or designee or regulatory authority to the licensee, manager, agent or representative and shall be effective for up to ten days as needed to restore order or to ensure the safety of the public. In lieu of suspension, the Chief or designee or regulatory authority may assess an administrative penalty up to $5,000 and/or require additional conditions of operation. The Chief of Police or designee or regulatory authority shall officially notify the licensee in person or in writing by depositing such notice in first class mail to the address listed on the license the first business day after a suspension or imposition of additional conditions. The notice shall include the reason for the suspension or conditions, the length and dates of suspension, and rights of appeal.

(c) If the Chief of Police or designee or regulatory authority is unable to effect personal notification of an emergency suspension, notice will be posted upon the licensed property and sent by first class mail to the primary contact or owner listed on the license.

(d) It is unlawful for any person to fail to comply with any directive issued by the Chief of Police or regulatory authority under the authority of this section. A subsequent violation will result in criminal penalty, suspension, revocation or administrative penalty.

(e) An emergency suspension issued by the Chief or designee or regulatory authority does not preclude the issuance of an additional period of suspension or other penalty pursuant to Section 3.23.070.

(f) The provisions of this Chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be taken by the City for a violation of any ordinance of the City or statute of the State of Kansas.
(Ord. No. 52-835, § 11, 11-25-25)

Sec. 3.23.110. Appeal procedure.

(a) Unless otherwise specified by this Chapter, any applicant or licensee aggrieved by the denial, suspension, modification, revocation or imposition of additional conditions, of a lodging license may file with the City Clerk a written notice of appeal to the City Council within 14 calendar

days of the decision by the Chief or designee or regulatory authority. The Notice of Appeal shall specify:

(1) The name and address of the appellant;

(2) The date of application;

(3) The date of the denial, suspension, modification, revocation or imposition of additional conditions of the license or application; and

(4) The factual basis for the appeal.

(b) Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall place the appeal on the next City Council agenda so an appeal panel may be chosen pursuant to City Code Section 2.04.237. Any appeal shall stay the suspension, modification or revocation of the license until the matter is heard by the City Council.

(c) The City Council, may approve the denial, suspension, modification, revocation, or imposition of additional conditions, overrule the denial, suspension, modification, revocation or imposition of additional conditions or modify the decision of the Chief or designee or regulatory authority and assess an administrative penalty up to $5,000.

(d) Upon receipt of a request by the Chief of Police or regulatory authority for a suspension in excess of 30 days or revocation, the City Clerk shall schedule the case before the City Council following the procedure set forth in Section 2.04.237.

(e) An emergency suspension or additional conditions issued by the Chief or designee or regulatory authority may be appealed, but the suspension or additional conditions will not be stayed pending the appeal. In an appeal of an emergency suspension, in an effort to hear the appeal immediately, the Mayor may appoint a panel of three City Council members prior to the next scheduled City Council meeting so long as all other conditions of Section 2.04.237 are met. If available, the panel should include the City Council member from the District in which the licensed premises is located. The panel should make every effort to hear the appeal within 5 business days.

(f) In any hearing before the City Council pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation, is *prima facia* evidence of such violation.

(g) The Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation, modification or suspension of the license by the City Council.
(Ord. No. 52-835, § 12, 11-25-25)

Sec. 3.23.120. Penalty.

Any person convicted of violating the provisions of this chapter shall be guilty of a misdemeanor and upon conviction shall be fined fine of not more than $2,500 or imprisonment for not more than one year, or by both.
(Ord. No. 52-835, § 13, 11-25-25)

Sec. 3.23.130. Violations not exclusive.

The provisions of this Chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be taken by the City for a violation of any ordinance of the city or statute of the State of Kansas.
(Ord. No. 52-835, § 14, 11-25-25)

Sec. 3.23.140. Civil remedies.

In addition to the provisions set forth in this Chapter, the City Attorney may commence legal proceedings in Sedgwick County District Court to abate property as a criminal nuisance pursuant to K.S.A. 22-3901 *et seq.* and Chapter 60.
(Ord. No. 52-835, § 15, 11-25-25)

Sec. 3.23.150. Severability.

If any section, subsection, sentence, clause or phrase of this ordinance is for any reason held invalid or unconstitutional by the decision of any

court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this ordinance.
(Ord. No. 52-835, § 16, 11-25-25)

CHAPTER 3.24. RESERVED*

*__Editor's note—__Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed ch. 3.24, §§ 3.24.010—3.24.110, which pertained to coin-operated amusement and music devices, and derived from Ord. No. 28-960, §§ 1—6, 8—11; Ord. No. 33-576 (part); and Ord. No. 33-796 (part).

CHAPTER 3.26 RESERVED*

*__Editor's note—__Ord. No. 50-642, § 13, adopted Dec. 19, 2017, repealed ch. 3.26, §§ 3.26.010—3.26.090, which pertained to permits for charitable solicitation events and derived from Ord. No. 48-950, §§ 1—9, adopted Mar. 8, 2011.

CHAPTER 3.28. RESERVED*

*__Editor's note—__Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed ch. 3.28, §§ 3.28.010—3.28.190, which pertained to dances and dance halls, and derived from Ord. No. 30-836, §§ 1—3, 5—16; Ord. No. 31-401, § 1; Ord. No. 39-250, § 8; and Ord. No. 48-352, §§ 2, 19, adopted June 23, 2009.

CHAPTER 3.30. ENTERTAINMENT ESTABLISHMENTS

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Sec. 3.30.200. Violations not exclusive.

Sec. 3.30.010. Purpose.

The City of Wichita encourages the development of Arts and Culture and recognizes that having entertainment establishments provide a means for such activity. The City of Wichita further recognizes that having a variety of entertainment in the City promotes a rich and diverse cultural experience.

The City of Wichita also recognizes that entertainment establishments serving alcohol have demonstrated the potential for creating an environment where various types of disturbances, excessive noise and disorderly conduct by inebriated patrons may occur. These negative effects are adverse to the public safety and the quality of life in the community.

The City of Wichita finds and determines that some nightclubs and entertainment establishments within the City contribute to public intoxication, public urination, noise, disorderly conduct, assaults, and other similar problems connected primarily with the routine congregation of persons around such nightclubs, especially those which are managed without adequate security and attention to preventing these problems.

The City of Wichita finds that in the Old Town Entertainment District, a significant amount of police resources are being expended to address safety issues at large entertainment establishments located within the District.

The purpose of this Chapter is to regulate the operation of all entertainment establishments so as to minimize the negative effects and to preserve the public safety, health and welfare. It is not the City's intent to regulate or restrict the type or content of entertainment provided in these establishments. All licensees will be responsible for controlling patron conduct on the premises of such establishments, making adequate provisions for security and crowd control to minimize disturbances caused by the operation of such entertainment establishments.
(Ord. No. 48-352, § 3, 3-23-09; Ord. No. 50-409, § 1, 1-17-17)

Sec. 3.30.020. Definitions.

The following words, as used in this Chapter, have the meanings set forth below:

"Abutting" means touching or directly contiguous to.

"Adjacent" means an area which is no further than twenty-five (25) feet from the licensed premises, unless otherwise provided by a specific section of this Code.

"Alcoholic beverage" means any alcoholic liquor or any cereal malt beverage as those terms are defined by Sections 4.04.010(b) and 4.04.010(h) of the Code of the City of Wichita and amendments thereto.

"Art" or "fine art" means works that are visual in nature, including, but not limited to, paintings, drawings, watercolors, graphics, sculptures, prints, ceramics, textiles and photos which are

created by an artist to display or sell and produced or intended primarily for aesthetic purposes rather than utility.

"Art gallery" means any establishment whose primary purpose is to exhibit and/or offer for sale works of fine art or precious/semi-precious metals. For the purposes of this Chapter, such an establishment will have a legal capacity not to exceed two hundred (200) people and will not be licensed to sell any alcoholic beverage on a permanent basis. In the event that temporary alcoholic beverage sales are conducted on the premises of an art gallery, such sales shall conform with all applicable state and city laws regulating the same.

"Ambient music" means low-level, background music, which is inaudible from any portion of the exterior of the premises. Ambient music does not include music played by a disc jockey, "DJ" or music that is used for karaoke or other live performances. Ambient music may include music played by a jukebox, when such music is inaudible from any portion of the exterior of the premises.

"Chief of Police" means the Chief of the Wichita Police Department or his/her designee.

"Coffee shop" means any establishment whose primary purpose is to serve coffee or teas along with food items. For the purposes of this Chapter, such an establishment will have a legal capacity not to exceed one hundred (100) people and will not be licensed to sell any alcoholic beverage on a permanent basis. In the event that temporary alcoholic beverage sales are conducted on the premises of a coffee shop, such sales shall conform with all applicable state and city laws regulating the same.

"Criminal Nuisance Violation" means an offense which is not reported to law enforcement by the licensee occurring on the licensed premises by the licensee or patrons of the entertainment establishment relating to commercial gambling, prostitution, violations of any law regulating controlled substances, violation of any law related to alcoholic liquor, or any felony or misdemeanor committed for the benefit of or at the direction of, or in association with any criminal street gang with the specific intent to promote, further or assist in any criminal conduct by gang members.

"Criminal Street Gang" means any organization, association or group, whether formal or informal, which engages in those activities set forth in K.S.A. 22-3901(j).

"Entertainment" means any single event, a series of events, or an ongoing activity or business, occurring alone or as part of another business, to which the public is invited or allowed to watch, listen, or participate, or is conducted for the purposes of holding the attention of, gaining the attention of, or diverting or amusing patrons, including, but not limited to any of the following:

(a) Dancing by patron(s) to live or recorded music;

(b) The presentation of music played on sound equipment operated by an agent or contractor of the establishment, commonly known as "disc jockey" or "DJ";

(c) The presentation of live music whether amplified or un-amplified;

(d) The presentation of music videos, music concerts or other similar forms of musical entertainment from any source; or

(e) Any amusement or event such as live music or other live performance which is knowingly permitted by any Entertainment Establishment, including, but not limited to, presentations by single or multiple performers, such as hypnotists, pantomimes, comedians, dance acts, concerts, dances, live bands, karaoke or other live music.

"Entertainment Establishment(s)" means any event center or any person or entity which provides entertainment as defined by this Chapter, or any person or entity which provides a venue for any such entertainment. Such term shall not include book readings, storytelling, the playing of ambient music, or other similar activities for which no fee is charged.

"Entertainment License" means a license obtained from the City, pursuant to the provisions of this Chapter, for the purposes of operating an Entertainment Establishment.

"Event Center" means premises which are frequently rented out for public or private activities that are not repeated on a weekly basis, and which are not open to the public on a daily basis at times other than when an event is scheduled.

"Health Officer" means the Director of Public Works and Utilities or his/her designee.

"ID Scanner" means a device capable of deciphering any electronically readable information encoded on the magnetic strip or bar code of a drivers' license or non-drivers' identification card issued by the Department of Revenue and which transports this information into a database for alert notifications, storing, later review or use by the licensee or others.

"License" means the authority to conduct the business of an entertainment establishment within the city limits.

"Licensee" means any person to whom a current license has been issued under this Chapter authorizing such person to conduct the business of an entertainment establishment within the city limits.

"Loitering" means remaining idle in essentially one location, to be dilatory, to tarry, to dawdle and shall include, but not be limited to, standing around, hanging out, sitting, kneeling, sauntering or prowling.

"Manager" means a person, regardless of the job title or description, who is operating the establishment or who has discretionary powers to organize, direct, carry on, or control the operations of an Entertainment Establishment or teen club. Authority to engage in one or more of the following functions is prima facie evidence that a person is a Manager of the Entertainment Establishment or teen club:

(a) Hire or terminate employees; or

(b) Contract for the purchase of furniture, equipment, or supplies, except for the occasional replenishment of stock; or

(c) Disburse funds of the business, except for the receipt of regularly replaced items of stock; or

(d) Make or participate in making policy decisions regarding operations of the Establishment.

"Music" as used in this Chapter shall not apply to radios or ambient music.

"Music store / music only venue" shall mean any establishment that sells musical instruments or offers music lessons or offers open jam session opportunities to musicians. For the purposes of this Chapter, such an establishment will have a legal capacity not to exceed one hundred (100) people and will not be licensed to sell any alcoholic beverage on a permanent basis. In the event that temporary alcoholic beverage sales are conducted on the premises of a music store/music only venue, such sales shall conform with all applicable state and city laws regulating the same.

"Nonprofit dance" means any dance held by a fraternal, social, school, church or other nonprofit organization which is merely incidental to its principal purpose and where the general public is not solicited or permitted.

"Non-profit organization" means an organization or institution organized under Internal Revenue Code Section 501(c)(3) and recognized as a public charity or private foundation established for a religious, charitable, scientific, literary or public safety purpose.

"Occupancy" shall be the maximum number of persons approved for occupancy by the Director of the Metropolitan Area Building and Construction Department and the City Fire Marshal pursuant to the International Building Code.

"Office of Central Inspection" means and includes the Metropolitan Area Building and Construction Department.

"Old Town Entertainment District" means that area of the City of Wichita bounded by: Central on the North, including all property abutting Central to the North, Wabash on the East, including all property abutting Wabash on the East, St. Francis Street to the West, includ-

ing all property abutting St. Francis to the West and Douglas on the South, including all property abutting Douglas to the South.

"Old Town Large Assembly Entertainment Establishment" means an entertainment establishment located within the Old Town Entertainment District, as defined by this Chapter and which has:

1) A maximum occupancy equal to or greater than two hundred (200) people if licensed as a drinking establishment by the City of Wichita; or

2) A maximum occupancy equal to or greater than two hundred seventy-five (275) people if licensed as a drinking establishment/restaurant or event center by the City of Wichita; or

3) A maximum occupancy greater than two hundred seventy-five (275) people if licensed as a teen club or if no alcoholic liquor is served or consumed on the licensed premises; or

4) A maximum occupancy greater than two hundred (200) people if the licensee allows patrons or guests to consume alcohol on the premises of such business as permitted by K.S.A. 41-719(i) *et seq*.

If multiple establishments are licensed within the same physical structure with a common connecting area, the occupancy of all establishments shall be utilized to determine if the establishments are an Old Town Large Assembly Entertainment Establishment.

"Person" means any individual, owner, operator, corporation, partnership, or association.

"Photo identification" means a valid driver's license, non-driver identification card, government issued identification card or a current school identification card which contains the individual's photograph.

"Premises" means any place where an entertainment establishment is operated or maintained and includes all hallways, bathrooms, parking areas, and other adjacent portions of the premises, which are under the control of the licensee or which are utilized by the licensee and are accessible to the public during operating hours.

"Responsible Person" means any person who is any of the following:

a. The person who owns the Entertainment Establishment or teen club; or

b. The person in charge of the Entertainment Establishment or teen club; or

c. The person using the Entertainment Establishment or teen club under a special arrangement, contract or rental agreement; or

d. The Entertainment Establishment's manager, on-site supervisor, or other employee who is responsible for the operation of the establishment;

"Superintendent" means the Director of the Metropolitan Area Building and Construction Department or his or her designee.

"Teen Club" is any building or part or other enclosed place where a teen dance is held or teen dancing is permitted, not including:

a. An accredited public or private school or college;

b. Property owned or controlled by the federal, state, or local government;

c. A facility operated by an organization which has been recognized as exempt from federal income taxation when teen dancing is but an occasional activity incidental to the facility's primary purposes.

(Ord. No. 48-352, § 4, 3-23-09; Ord. No. 49-177, § 1, 1-10-12; Ord. No. 49-751, § 1, 5-20-14; Ord. No. 50-409, § 2, 1-17-17)

Sec. 3.30.030. License required.

A. It is unlawful for any person either as the owner, principal, officer, agent, servant, responsible person or employee, to own, lease, manage, maintain or operate a teen club or entertainment establishment without having first obtained a license from the City Treasurer.

B. A teen club or entertainment establishment license expires one year after date of issue.

C. A license under this section is not transferable to another person or location. A change in ownership shall require the new owner to pay a new application fee and secure a new entertainment establishment or teen club license.
(Ord. No. 48-352, § 5, 3-23-09)

Sec. 3.30.040. Reserved.

Editor's note—Ord. No. 52-245, § 1, adopted Aug. 15, 2023, repealed § 3.30.040, which pertained to license continuance, and derived from Ord. No. 48-352, § 6, adopted Mar. 23, 2009.

Sec. 3.30.050. License—Exceptions.

Nothing in this chapter shall be construed to require any license for the following activities:

(a) Entertainment in private residences where no admission is charged;

(b) Entertainment conducted by any public or parochial school under direct faculty supervision or by any church when the dance or live entertainment is directly supervised by the church authorities;

(c) Entertainment conducted for service men or women or both, under the direct supervision of United Service Organizations;

(d) Entertainment officially sanctioned by or conducted in a fraternity or sorority house, occupied by bona fide students of a school or college, in which the public is not invited;

(e) Dance lessons, theatrical and performing arts lessons;

(f) Any entertainment conducted by the City of Wichita;

(g) Assemblies, music concerts, live performances or re-enactments which are sponsored by or which occur on the property of public or parochial schools, or City of Wichita public libraries;

(h) Entertainment, dances, live performances, or other events for which a community event permit has been issued by the City of Wichita;

(i) The use of a radio, juke box, television or video games, which is incidental to the primary function of serving food;

(j) Licensed motion picture theaters;

(k) Book readings, book signings, poetry recitations and any other similar entertainment consisting of the spoken word, including plays;

(l) Entertainment consisting of ambient or incidental music provided for the guests by musicians such as a piano player, harpist, strolling violinist, mariachi band or guitarist. If there is an admission charge required to observe such entertainment, it will not be considered incidental;

(m) Pool hall, billiard hall or bowling alley that does not provide space for dancing;

(n) Theaters where patrons sit in parallel rows of fixed seats or dinner theaters;

(o) Entertainment conducted in connection with a regularly established recreation or theme park.
(Ord. No. 48-352, § 7, 3-23-09; Ord. No. 48-548, § 4, 12-1-09)

Sec. 3.30.060. License—Fees.

A. For any entertainment establishment or teen club other than those types of establishments set forth in subsection B., the following license fees shall be paid:

For one day	$25.00
For one month or less	100.00
For six months or less	275.00
For one year or less	400.00

B. For any establishment offering entertainment that is regulated by this chapter and is an art gallery, coffee shop or music store/music only

venue as those terms are defined in Section 3.30.020, an annual license fee of $50.00 shall be paid.
(Ord. No. 48-352, § 8, 3-23-09; Ord. No. 49-177, § 2, 1-10-12)

Sec. 3.30.070. Hours of operation.

(a) It is unlawful for any licensee, owner, manager, or responsible person of a teen club to permit or allow entertainment between the hours of midnight and noon. No person, except an employee, licensee, owner, manager or responsible person shall be on the licensed premises of a teen club and the premises shall be closed between the hours of midnight and 7:00 a.m.

(b) Other than those types of establishments set forth in subsection (d), it shall be unlawful for any licensee, owner, manager or responsible person of an entertainment establishment to permit or allow entertainment between the hours of 2:00 a.m. and noon. No person, except an employee, licensee, owner, manager or responsible person shall be on the licensed premises of an entertainment establishment and the premises shall be closed between the hours of 2:00 a.m. and 7:00 a.m.

(c) For the purposes of this section, "employee" shall be defined as an individual who is employed by, works on or upon the licensed premises and receives financial compensation from the licensee.

(d) For any establishment offering entertainment that is regulated by this Chapter and is an art gallery, coffee shop or music store/music only venue as those terms are defined in Section 3.30.020, it shall be unlawful for any licensee, owner, manager or responsible person of such an establishment to permit or allow entertainment between the hours of 2:00 a.m. and noon. Provided, however, music student recitals, music lessons, or closed recording sessions may be conducted at any time the premises are open. Such premises shall be closed between the hours of 2:00 a.m. and 5:00 a.m.

(e) At closing time, all entertainment establishments and teen clubs shall conform to the following procedures:

(1) The lights are to be fully illuminated;

(2) Except as set forth below for premises located within the Old Town Entertainment District, the music, dancing or other live entertainment is to be stopped no later than closing time;

(3) For establishments that sell and/or allow the serving and consumption of alcoholic liquor, all alcoholic liquor is to be removed from all tables and no patron shall be in possession of any alcoholic liquor; and

(4) Patrons are to be directed to vacate the premises in a timely and orderly manner as required by Section 3.30.075 of this Code.

(5) All music, live dancing or other live entertainment must stop thirty minutes before closing or at 1:30 a.m., whichever time is later, for all entertainment establishments located within the Old Town Entertainment District.

(Ord. No. 48-352, § 9, 3-23-09; Ord. No. 48-548, § 5, 12-1-09; Ord. No. 49-177, § 3, 1-10-12; Ord. No. 49-360, § 3, 10-16-12; Ord. No. 49-751, § 2, 5-20-14; Ord. No. 50-409, § 3, 1-17-17)

Sec. 3.30.075. Failure to exit, disperse or vacate premises in a timely manner prohibited.

(a) No licensee, owner, manager or any responsible person of an entertainment establishment, shall permit or allow any person to remain in or upon the licensed premises of the entertainment establishment between the hours of 2:00 a.m. and 7:00 a.m. or remain in or upon the property abutting or adjacent thereto between the hours of 1:00 a.m. and 7:00 a.m.

(b) No licensee, owner, manager or any responsible person, shall permit or allow any person to remain in or upon the property of the licensed premises of a teen club or remain in or upon the property abutting or adjacent thereto between the hours of midnight and 7:00 a.m.

(c) All licensees, owners, managers or any other responsible person, shall direct patrons to vacate in a timely and orderly manner the

licensed premises of an entertainment establishment or teen club and all property abutting or adjacent thereto, including parking lots.

(d) All licensees, owners, managers or any other responsible person shall ensure that reasonable measures are in place and reasonable efforts are made to deter disorderly conduct on the property adjacent to the premises and to minimize damage, nuisance or other harm to such property arising out of disorderly conduct engaged in by patrons of the licensee or persons attempting or waiting to enter the licensed premises and/or leaving the licensed premises.

(e) As used in this section, "vacate in a timely and orderly manner" means a person shall not remain in or upon the property or licensed premises, without just or legal cause, after being asked to leave by the owner, licensee, manager, responsible person or person entitled to possession or in control of the property thereof or willfully impede other persons from vacating the premises in a timely and orderly manner.

(f) As used in this section, "reasonable measures" include, but are not limited to, requesting disorderly patrons outside of the establishment to disperse, calling law enforcement if a dispute escalates to a public disturbance, properly monitor and staff waiting lines to enter into the establishment, ban patrons who have been disorderly in the past, having sufficient and properly trained staff to patron ratios and having an approved safety plan in place as required by Section 3.30.080(b)(4).

(g) Law enforcement officers of the City of Wichita or other individuals designated by the City may request persons to vacate, disperse, or leave property abutting or adjacent to a licensed establishment upon request of the owner of said property.

(h) For the purposes of this section, law enforcement officers shall be considered to be "in control" of all city owned property including parking lots abutting or adjacent to licensed premises.
(Ord. No. 49-360, § 4, 10-16-12; Ord. No. 49-751, § 3, 5-20-14; Ord. No. 51-893, § 1, 6-28-22)

Sec. 3.30.080. Application—Contents.

a. Before any license is granted or issued for a teen club or entertainment establishment, an application shall be filed with the City Treasurer, setting forth the following facts:

1. The name, address, Social Security number, date of birth of the applicant and telephone number where the applicant can be reached between the hours of 8:00 a.m. and 5:00 p.m.;
2. Location of the teen club or entertainment establishment;
3. Date for which the license is desired;
4. Hours and days the teen club or entertainment establishment is to be open and closed;
5. A statement as to whether or not cereal malt beverages or alcoholic liquor will be sold to patrons at the location of the entertainment establishment;
6. A statement that the applicant is familiar with the conditions imposed by the terms of this Chapter;
7. Maximum occupant load of the building, facility or area;
8. A description of the nature of entertainment to be provided.

b. In addition the applicant must furnish:

1. The names and addresses of the owner of the premises which such establishment is located;
2. The manager or operator and, if a corporation or partnership, all the names and addresses of the officers of such corporation or partnership and any individual who owns twenty-five or more percent of the stock of such corporation. If the license is to be held by a corporation, the resident agent and registered office of said corporation;
3. The name, address, Social Security number, and date of birth of the applicant, owner, manager and other responsible person of the establishment. If a corpora-

tion, all the names, addresses, Social Security numbers and date of birth of the officers, managers or directors of such corporation and any individual who owns twenty-five or more percent of the stock of such corporation. If the license is to be held by a corporation, the resident agent and registered office of said corporation. If the applicant is a partnership, all the names, addresses, Social Security numbers, and date of birth of all partners of the partnership;

4. A plan to insure that adequate traffic control, crowd protection and security will be maintained and that ages of patrons admitted to the establishment will be maintained;

5. An emergency management plan, consisting of, but not limited to: fire evacuation, storm shelter provisions, patron crowd control, and emergency access for police, fire and ambulance;

6. In addition to the requirements set forth above, all entertainment establishments shall submit a written safety plan on a form developed and approved by the Chief of Police, which at a minimum, includes the following:

   a. The number and location of personnel responsible for crowd management;

   b. The occupancy load of the establishment, average patron attendance, and the type of entertainment events held at the establishment;

   c. The establishment's written identification checking and patron search procedures;

   d. The establishment's written procedures for insuring that only persons twenty-one (21) years or older are served alcohol;

   e. The establishment's written procedures for handling violent or criminal incidents and other emergencies and its notification procedures of the Wichita Police or Fire Departments regarding such incidents;

   f. The establishment's written procedures for crowd control and preventing overcrowding;

   g. A description of the training provided or completed by personnel including conflict de-escalation training;

   h. The establishment's written plan for maintaining order on areas adjacent to the licensed premises; and

   i. Current contact information for the individual or position responsible for addressing safety, security and citizen or neighborhood complaints.

7. The name of the private security agency, if any, to be employed to provide security for the club or entertainment establishment;

8. Detailed plans and drawing of the teen club or entertainment establishment and adjoining areas indicating the dance floor, the waiting area for persons seeking admission, the parking areas, all restrooms, coat rooms, game rooms and all other spaces accessible by patrons and all interior and exterior doors and windows, and all sources of exterior lighting;

9. A statement as to whether the applicant has ever had any license denied, revoked or suspended by the City of Wichita or the State of Kansas or any other governmental entity, the reason therefor and the business activity or occupation of the individual subsequent to such suspension, revocation or denial; and

10. A statement that the applicant consents and agrees that any member of the Police Department or Fire Department as well as other code enforcement or health officers of the City may, at any time, enter and inspect any part of such premises.

c. A license shall be denied if one or more of the following conditions exist:

1. Any applicant, owner, establishment manager, officer, manager or director of a corporate applicant, any person owning more than twenty-five (25) percent or more of the stock of a corporate applicant, or any partner of a partnership applicant of the teen club or entertainment establishment has, within the preceding ten (10) years, been convicted of or placed on diversion for a:
    a. Felony; or
    b. For any conviction or diversion of a misdemeanor within the last three years involving:
        i. Laws pertaining to any controlled substance(s) prohibited by the Uniform Controlled Substance Act, K.S.A. 65-4101, *et seq*. and amendments thereto:
        ii. Laws pertaining to alcohol or cereal malt beverage;
        iii. Prostitution;
        iv. Public indecency;
        v. A sex crime or other person crime as defined by Chapter 21 of the Kansas Statutes Annotated;
        vi. Any crime of violence or physical force;
        vii. Any weapons charge; or
        viii. Violations of this Chapter, or Sections 3.08.030 or Chapter 3.28 of the Code of the City.
2. An applicant is less than twenty-one (21) years of age.
3. The premises do not comply with the health, housing, fire and zoning codes of the City of Wichita.
4. The applicant has knowingly made a false, misleading or fraudulent statement of fact to the City in the application process.
5. The application is incomplete or if it contains any material misrepresentation.
6. The application does not propose adequate measures for the protection of the public health, safety and welfare in terms of traffic control, crowd protection and security, the monitoring of the ages of patrons or an emergency management plan.
7. If the license sought to be renewed is for an establishment located within the Old Town Entertainment District, a license shall not be renewed if three or more unreported criminal nuisance violations, as defined by this Chapter, occurred on the premises within the twelve-month period preceding the application or if the applicant is under indictment, charge or information for any felony for any crime enumerated in Subsection (c)(1) at the time of the application.
8. An applicant has unpaid Administrative Penalties, parking fees, water bills or any other administrative fees owed to the City of Wichita regarding a business owned by the applicant which remain unpaid for a period of 90 days or more.

d. In order to prohibit an entertainment establishment from constituting a "Night Club in the City," as defined by the Wichita-Sedgwick County Unified Zoning Code, conditions relating to the type of entertainment allowed at such establishment may be placed upon a license by the Metropolitan Area Building and Construction Department (MABCD).

e. The application is filed with, and the license fee is paid to the City Treasurer. The license will not be issued until the application has been reviewed and approved by the Chief of Police, MABCD and the Fire Chief.

f. The Chief of Police may impose such conditions on the issuance of the license which are necessary to protect the public health, safety and welfare. Conditions shall be based upon specific and articulable facts reasonably related to insuring public health and safety, including but not

limited to the protection of minors from alcohol and other criminal activity, prevention of public nuisances, enhancement of fire protection, traffic control, crowd control, security personnel, security lighting and emergency access. Such conditions are only subject to change at:

i. The time of renewal of the license;

ii. After a hearing before the City Council upon a request by the applicant to modify the conditions or;

iii. As an additional condition imposed pursuant to Section 3.30.090(c). The applicant may appeal to the City Council the imposition of additional conditions pursuant to the requirements of Section 3.30.100.

(Ord. No. 48-352, § 10, 3-23-09; Ord. No. 48-548, § 6, 12-1-09; Ord. No. 50-409, § 4, 1-17-17; Ord. No. 52-245, § 2, 8-15-23)

Sec. 3.30.090. Administrative procedures.

a. A teen club or entertainment establishment license may be modified, penalized, suspended, revoked, or denied if:

1. Any data furnished on the application is incomplete, false or is not updated as required by this Chapter;

2. Failure to comply with any condition of the teen club or entertainment establishment license;

3. The licensee or a manager has become ineligible to hold a license;

4. The owner, manager, partner, director or other person owning twenty-five percent or more of the stock of a corporate licensee or a partner of a partnership licensee is convicted of any violation, which would make them ineligible to obtain an entertainment establishment or teen club license;

5. The premises are in violation of the health, housing, fire, zoning or building codes of the City of Wichita, or the State of Kansas;

6. Evidence of a material variance in the actual plan and design of the premises from the plans submitted pursuant to this Chapter, or from the original design of the premises when initially licensed, with the concurrence of MABCD;

7. Any Police Officer, Fire Department Official, MABCD or other code enforcement or health officer of the City is refused access to inspect the premises during normal business hours;

8. The premises are in violation of the maximum occupant load of such building;

9. The licensee or any employee, agent or responsible person is found to be in violation of the provisions of this Chapter or has violated a state or federal law or ordinance of the City on the premises or regarding the licensed premises;

10. The licensee fails to comply with additional security requirements or other conditions imposed by the Chief of Police, pursuant to the provisions of this Chapter; or

11. Three or more criminal nuisance violations, as defined by this Chapter, have occurred on the licensed premises of entertainment establishments within the previous 12 months of the application.

12. A licensee, manager, agent, representative or employee allowed or permitted gambling as defined in Chapter 5.36 of the Code of the City of Wichita or K.S.A. 21-6403 through K.S.A 21-6408 in or upon the licensed premises;

13. The licensed premises was the site of repeated violent acts in a six-month period, such as homicide, assault, battery, aggravated battery, disorderly conduct, rape or criminal threat or repeated acts of violence occurred adjacent to the licensed premises by people who exited the licensed establishment and the license holder has not taken appropriate steps to ensure the safety of the public. Nothing in this ordinance shall be interpreted as penalizing an entertainment establishment or the owner or employees of such entertainment

establishment, solely for requesting assistance or reporting an incident to the police department. The City encourages entertainment establishments and employees to promptly report to the police department harmful or potentially harmful acts or conduct on the part of patrons. The licensee may be penalized, suspended or revoked if the licensee fails to mitigate or resolve circumstances that allow or permit violence to occur.

14. For the purposes of this section, "conviction" or "violation" shall include being placed on diversion or being adjudged guilty upon entering a plea of no contest.

b. The Chief of Police shall provide written notice of the intent to revoke, suspend or deny an entertainment establishment or teen club license by personal service or by first class mail. The notice shall be sent to the mailing address of the licensee on file with the City Treasurer. The notice shall provide the effective date of the revocation or suspension of the license. Such notice shall detail the reasons or basis for the revocation, denial, or suspension of the license. No revocation or suspension shall be imposed on less than five (5) business days' notice to the licensee, and shall specify the rights of the licensee to appeal any such denial, revocation or suspension.

c. In lieu of suspension or revocation, the Chief of Police may impose additional conditions on the license to protect the public health, safety and welfare. The imposition of such additional conditions shall be based on violations occurring on the premises by the licensee, his/her employees, patrons, agents or responsible person of the provisions of this Chapter, the laws of the City of Wichita, or state or federal laws. Conditions shall be based upon specific and articulable facts reasonably related to insuring public health and safety, including but not limited to: the protection of minors from alcohol, protection of patrons from criminal activity, including but not limited to homicide, aggravated assault, weapon offenses, drug offenses and disorderly conduct, prevention of public nuisances, enhancement of fire protection, traffic control, crowd control, security lighting and emergency access.

d. The Chief of Police shall notify the licensee in writing of any additional conditions imposed on the licensee. Such notice shall specify the additional conditions, set forth facts which support the basis for the addition of such conditions and a time frame for completion of such additional conditions. Such conditions may include, but are not limited to the following:

1. Prohibiting the establishment from alcohol sales of any kind;
2. Restrictions upon the hours of operation of the establishment;
3. Restrictions upon the maximum occupancy within the establishment;
4. Requiring the owner, licensee or responsible person to identify individuals that are prohibited from entering onto the premises;
5. Completion of improvements upon the licensed premises that have an impact of mitigating crime such as fences, lights, security cameras or other devices;
6. Increased presence of security personnel; and
7. Other conditions which may be appropriate to remedy violations of this Chapter by the licensee.

(Ord. No. 48-352, § 11, 3-23-09; Ord. No. 50-409, § 5, 1-17-17; Ord. No. 52-245, § 3, 8-15-23)

Sec. 3.30.095. Immediate suspension due to immediate threat to public safety.

a. The Chief of Police, or Acting Chief, may require a licensee of an entertainment establishment to cease operations and disperse all patrons whenever conduct by disorderly patrons reaches a magnitude that presents an immediate threat to the public safety and well-being of the patrons and general public in the vicinity of the establishment. The establishment shall remain closed until the threat has passed.

b. The Chief of Police or Acting Chief may temporarily suspend a license without 5 days' written notice or make additional security requirements without 5 days' written notice if it is

determined that the licensee has a lack of security sufficient to protect the public and the lack of security poses a substantial risk of harm to patrons or others. An emergency suspension without 5 days' written notice shall only be used in cases where there has been a significant violent act or a credible threat of future violence. The suspension shall be effective immediately upon verbal notification by the Chief of Police or Acting Chief or designee to the licensee, manager, agent or representative and shall be effective for up to ten days as needed to restore order or to ensure the safety of the public. In lieu of suspension, the Chief of Police or Acting Chief may require additional conditions of operation including but not limited to restricted hours, additional security personnel, wands, security cameras, bag checks, restrictions on type of bags allowed in establishment or reduction in maximum capacity. The Chief or designee shall promptly complete a report outlining the basis for the decision to suspend the license and recommendations to adequately remedy the deficiencies of the establishment's security or safety plans. A copy of the report shall be provided to the City Manager on the first business day following the suspension or the placement of additional conditions. The Chief of Police or designee shall officially notify the licensee in writing by depositing such notice in first class mail to the address listed on the license the first business day after a suspension or imposition of additional conditions. The notice shall include the reason for the suspension or conditions, the length and dates of suspension, and rights of appeal.

c. If the Chief of Police or designee is unable to effect personal notification of an emergency suspension, notice will be posted upon the licensed property and sent by first class mail to the primary contact or owner listed on the license.

d. The licensee or a designee shall meet with the Chief of Police or designee within 3 calendar days of an emergency suspension.

e. It is unlawful for any person to fail to comply with any directive issued by the Chief of Police or designee under the authority of this section.

f. An emergency suspension issued by the Chief of Police or designee does not preclude the Chief from issuing an additional period of suspension or other penalty pursuant to Section 3.30.090.

g. The provisions of this Chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be taken by the City for a violation of any ordinance of the City or statute of the State of Kansas.
(Ord. No. 50-409, § 6, 1-17-17; Ord. No. 52-245, § 4, 8-15-23)

Sec. 3.30.100. Appeal Procedure.

a. Unless otherwise specified by this Chapter, any applicant or licensee aggrieved by the denial, suspension, modification, revocation or imposition of additional conditions, of an entertainment establishment or teen club license may file with the City Clerk a written notice of appeal to the City Council within 14 calendar days of the decision by the Chief of Police or his/her designee. The Notice of Appeal shall specify:

(1) The name and address of the appellant;

(2) The date of application;

(3) The date of the denial, suspension, modification, revocation or imposition of additional conditions of the license or application;

(4) The factual basis for the appeal.

b. Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall place the appeal on the next City Council agenda so an appeal panel may be chosen pursuant to City Code Section 2.04.237. Any appeal shall stay the suspension, modification or revocation of the license until the matter is heard by the City Council.

c. The City Council, may approve the denial, suspension, modification, revocation, or imposition of additional conditions, overrule the denial, suspension, modification, revocation or imposition of additional conditions or modify the decision of the Chief of Police and assess an administrative penalty up to $5,000.

d. Upon receipt of a request by the Chief of Police for a suspension in excess of 30 days or revocation, the City Clerk shall schedule the case before the City Council following the procedure set forth in Section 2.04.237.

e. An emergency suspension or additional conditions issued by the Chief of Police or Acting Chief may be appealed, but the suspension or additional conditions will not be stayed pending the appeal. In an appeal of an emergency suspension, in an effort to hear the appeal immediately, the Mayor may appoint a panel of three City Council members prior to the next scheduled City Council meeting so long as all other conditions of Section 2.04.237 are met. If available, the panel should include the City Council member from the District in which the licensed premises is located. The panel should make every effort to hear the appeal within 5 business days.

f. In any hearing before the City Council pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation, is *prima facia* evidence of such violation of the provisions of Section 3.30.090 of the Code of the City of Wichita.

g. The Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation, modification or suspension of the license by the City Council.
(Ord. No. 48-352, § 12, 3-23-09; Ord. No. 50-409, § 7, 1-17-17; Ord. No. 52-245, § 5, 8-15-23)

Sec. 3.30.110. List of Managers.

If, at any time after the filing of the application or during the term of a license, a new manager is hired who has not been identified to the Wichita Police Department, the applicant or licensee is required to furnish, within ten business days, the name, address and date of birth of such manager or responsible person to the City Treasurer. Similarly, the licensee is required to notify the City Treasurer whenever a person listed on the application or supplemental list is discharged. The Chief of Police or his/her designee shall investigate the criminal history of all such managers or responsible persons and may revoke or decline to renew a license when any such person has the disqualifying history described in Section 3.30.080.
(Ord. No. 48-352, § 13, 3-23-09)

Sec. 3.30.120. Security Personnel and Control of Premises.

a. It is the obligation of the owner, manager, licensee or responsible person and a condition of the license to maintain, at all times when the teen club or entertainment establishment is open for business, adequate security personnel for the premises of such business.

b. It is the obligation of the owner, manager, licensee or responsible person of a teen club or entertainment establishment where dancing occurs, to maintain illumination in such entertainment establishment at a minimum level of one candle feet at a plane three feet above the dance floor.

c. The owner, licensee, manager or responsible person shall provide for the orderly dispersal of patrons from the premises of the teen club or entertainment establishment at closing time, and shall prevent patrons from congregating or loitering on the premises of the teen club or entertainment establishment.

d. The owner, licensee, manager or other responsible person shall be responsible to ensure that an adequate number of security personnel are employed and in attendance before, during and following each entertainment event as is necessary in order to maintain order and ensure compliance with all applicable federal, state and city laws and ordinances.

e. There must be a person in charge of and responsible for security on duty at all times when the teen club or entertainment establishment is open to the public or when patrons are leaving the premises at closing time. Security personnel will remain on the premises for a period of not less than thirty minutes after the closing time of such establishment to direct the orderly dispersal of patrons from the premises of the establishment.

f. The owner, licensee, manager or responsible party of a teen club or entertainment establishment is responsible to exercise appropriate control over its invitees on the premises for such purposes as preventing unnecessary noise, litter, trespass, loitering, property damage, traffic obstruction and similar activities which may constitute a nuisance.

g. If the history of operation of a teen club or entertainment establishment shows inadequate control of litter, the health officer may impose appropriate regulations, including the posting of a bond, to ensure litter prevention or clean-up as a condition of continued validity of the existing license or of the issuance of a future license. Such decision may be appealed pursuant to the procedures set forth in Section 3.30.100.

h. One of the purposes of the security personnel requirement is to maintain the public peace and order on the premises of the teen club or entertainment establishment. The licensee is under a continuing obligation to take reasonable measures, including to call the police department, to curtail any conduct which is or threatens to be in violation of state or local laws or offensive to public health, decency and morality, or peace and order, including, without limitation, minors in possession of liquor or tobacco products, use or possession of controlled substances, crimes of violence and disorderly conduct. Failure to immediately notify law enforcement of criminal activity occurring on the licensed premises shall be grounds for revocation or suspension of the license.

(Ord. No. 48-352, § 14, 3-23-09; Ord. No. 50-409, § 8, 1-17-17)

Sec. 3.30.125. Old Town Large Assembly Entertainment Establishment Requirements.

In addition to the operational requirements set forth in the this Chapter, due to the high concentrations of entertainment establishments in the Old Town Entertainment District and the large impact on police resources which are consumed due to activities of large occupancy entertainment establishments, the following additional requirements shall apply to all Large Assembly Entertainment Establishment licenses within the Old Town Entertainment District. These requirements are imposed on businesses which meet the definition of Entertainment Establishment as defined by this Chapter and are located within the Old Town Entertainment District.

a. An ID Scanner shall be utilized by the establishment to properly identify patrons. Such device must be used, at a minimum, from the hours of 11:00 p.m. to close, on Friday and Saturday, and on evenings when a special event or concert is occur-

ring. At the discretion of the licensee, information may be used to ban patrons from the licensed premises;

b. Appropriate signage, approved by the Chief of Police or his/her designee, must be displayed inside the entertainment establishment and immediately adjacent to entrances and exits informing patrons of their responsibility to exit in an orderly manner and the penalties for failing to exit in an orderly manner as set forth by Section 5.48.038 of this Chapter; and

c. No patron or individual under the age of twenty-one (21) may be on the licensed premises after 12:00 a.m. midnight unless such individual is an employee of the licensee, under the direct supervision of an on-site manager, licensee or other employee who is twenty-one (21) years of age or older.

(Ord. No. 50-409, § 9, 1-17-17)

Sec. 3.30.130. Right of Access.

During any hours in which any person is present on the premises, all teen clubs and entertainment establishments shall be open to inspection by City Health, Fire, Zoning, Building and license inspectors and Wichita Police Officers or other law enforcement agencies. Failure to allow entry may result in suspension or revocation of the license.

(Ord. No. 48-352, § 15, 3-23-09; Ord. No. 50-409, § 10, 1-17-17)

Sec. 3.30.140. Restrictions on admission to teen clubs.

A. There may not be admitted into a teen club any person nineteen years of age or older or less than thirteen years of age except:

(1) a manager or employee of the club; or

(2) a parent or legal guardian accompanying his or her child or ward; or

(3) a spouse of a person who can legally be admitted to the club.

B. The licensee, manager or responsible person of an entertainment establishment or teen club may not admit or allow the admittance of any person who does not possess and display satisfactory photo identification, as defined by Section 3.30.020. A school identification card with satisfactory photo identification indicating that the individual is in eighth grade or high school may be accepted by the licensee, manager or responsible person of a teen club.

(Ord. No. 48-352, § 16, 3-23-09)

Sec. 3.30.150. Additional regulations and observation thereof required.

A. No licensee, owner, principal, officer, manager, responsible person or other employee of a teen club or entertainment establishment coming in contact with members of the public may knowingly, or in circumstances when he or she should have known, allow or permit the following to occur on the premises:

(1) *CONTROLLED SUBSTANCES.* Controlled substances may not be possessed, offered for sale or consumed on the premises of the teen club or entertainment establishment.

(2) *EMPLOYMENT OF MINORS UNDER EIGHTEEN.* Persons under eighteen years of age may not be employed in, about or on the premises of an entertainment establishment where cereal malt liquor or alcoholic liquor is dispensed or consumed.

(3) *ILLEGAL CONSUMPTION OF ALCOHOL.* Alcoholic liquor or cereal malt beverages may not be consumed or possessed by any person under the age of twenty-one years. Any such minor shall be requested by the owner, licensee, manager or responsible person to immediately leave the premises.

(4) *LOITERING:* No patron of the establishment, while on the premises of such establishment, shall be allowed to loiter, create a public nuisances or breach of the peace.

(5) *MAXIMUM NOISE LEVELS*. Noise may not exceed the maximum allowable noise levels set forth in Chapter 7.41 of the Code of the City of Wichita. Noise shall not be of such volume, intensity or duration as to disturb a person of reasonable sensibilities. The owner, manager or responsible person shall be strictly liable for all noise produced within the entertainment establishment or teen club.

(6) *TEEN CLUBS:* No patron over eighteen may enter into or remain upon the premises of a teen club.

(Ord. No. 48-352, § 17, 3-23-09)

Sec. 3.30.160. Premises capacity.

It shall be the duty of the Fire Chief and the Director of the Metropolitan Area Building Department to determine the number of persons who can safely be accommodated at any one time in any building, premises or location where any teen club or entertainment establishment is located. The Fire Chief and the Director of the Metropolitan Area Building Department shall rate and limit the occupancy of the building, premises or location and furnish a certificate thereof to the owner or operator of such teen club or entertainment establishment, which owner shall be required to post such certificate near the main exit in the building. Such owner, operator, licensee or responsible person is hereby required to limit the attendance at such teen club or entertainment establishment to such capacity as has been determined by the Fire Chief and Director of the Metropolitan Area Building Department. It shall be unlawful to post a certificate of occupancy showing a greater capacity than that shown by the Metropolitan Area Building Department and Fire Chief.

The penalty assessed by the court for violating the premise's maximum occupancy, shall not be less than the minimum penalty required by Section 15.01.110 of the Code of the City of Wichita.

(Ord. No. 48-352, § 18, 3-23-09; Ord. No. 50-409, § 11, 1-17-17)

Sec. 3.30.170. False statement of age unlawful.

It is unlawful for any person to make any false statement as to his or her age for the purpose of gaining admission to, or remaining in any teen club or entertainment establishment, or for the purpose of enabling any other person to gain admission to or remain in any teen club or entertainment establishment where cereal malt beverage or alcoholic liquor is dispensed or consumed.

(Ord. No. 48-352, § 19, 3-23-09)

Sec. 3.30.180. Distance requirements.

An entertainment establishment license does not permit and shall not be issued to any person for the operation of an entertainment establishment if such establishment:

A. Is licensed to sell alcoholic liquor or cereal malt beverage or if alcoholic liquor or cereal malt beverage will be offered, consumed or served on the premises; and

B. The location is within 300 feet of any church, public park, public or parochial school or residential zoning district.

The distance is to be measured from the nearest property line of the residential zoning district, church or public or parochial school to the nearest property line of the premises on which the establishment is located or to any parking lot designated to be used by the patrons of such establishment.

Renewal of entertainment establishment licenses, otherwise subject to this subsection, may be made for all establishments presently licensed and located within three hundred feet of any church, public park, public or parochial school, residential or zoning district, so long as the premises are used or held for use as a place in which a entertainment establishment license and one of the following licenses is held:

(1) Class A private club;

(2) Class B private club;

(3) Drinking establishment; or

(4) A license to sell cereal malt beverages for consumption on the premises; provided, however, that should such an establishment cease to be used for such purposes for a period of ninety days or more, then and in that event, no new entertainment

establishment license shall be issued for the establishment. Periods of time during which such establishment is being remodeled or is being repaired because of damage caused by fire or natural disasters such as floods or wind-storms, shall not be included in computing the above ninety-day period; provided, however, that any remodeling or repair must be commenced within ninety days after closure of any given structure and completed within a period not to exceed six months. Additionally, the Special Investigations Bureau of the Wichita Police Department shall be notified within thirty days of closing of such establishment for remodeling or repair, such notice to state the date of commencement and completion of remodeling or repair.

The distance requirements in this section shall not be applicable to property which has received the appropriate zoning approval for such use, as required by the Wichita-Sedgwick County Unified Zoning Code."
(Ord. No. 48-548, § 7, 12-1-09)

Sec. 3.30.190. Penalties.

(a) Any person who violates any of the provisions of this chapter within the corporate limits of the City, shall be deemed guilty of a misdemeanor and upon conviction hereof shall be punished by the following fines:

(1) Upon a first conviction, not more than two thousand five hundred dollars;

(2) Upon a second conviction, not less than two hundred fifty dollars nor more than two thousand five hundred dollars;

(3) Upon a third conviction, not less than five hundred dollars nor more than two thousand five hundred dollars;

(4) Upon a fourth or subsequent conviction, not less than one thousand dollars nor more than two thousand five hundred dollars;

(b) The imposition of the fines established in subparagraphs (a)(2) through (4) herein shall be mandatory and the court shall not waive, remit, suspend, parole or otherwise excuse the payment thereof except that the court may order that the perform community service specified by the court but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by Section 1.04.210(e) and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed herein.

(c) For the purposes of determining whether a conviction is a first or subsequent conviction for sentencing, conviction includes being convicted of a violation of this chapter. It is irrelevant whether an offense occurred before or after conviction for a previous offense or whether the offense occurred at or upon the same licensed premises.
(Ord. No. 48-548, § 8, 12-1-09)

Sec. 3.30.200. Violations not exclusive.

The provisions of this Chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be taken by the city for a violation of any ordinance of the city or statute of the State of Kansas.
(Ord. No. 50-409, § 12, 1-17-17)

CHAPTER 3.31. ENTERTAINMENT TRANSPORTATION LICENSES

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Sec. 3.31.010. Definitions.

For purposes of this Chapter:

"Alcoholic beverage" means any "alcoholic liquor", as defined by Section 4.04.010(c) of the Code of the City of Wichita and amendments thereto, or any cereal malt beverage, as defined by Section 4.04.010(i) of the Code of the City of Wichita and amendments thereto.

"Allow" means fail to stop or take action to prevent or control violations of this Chapter once a problem has been discovered.

"Chief of Police" means the Chief of Police or a designee.

"Entertainment Transportation Vehicle" or "ETV" means any motor vehicle that is designed or constructed to accommodate and transport more than one passenger for hire, whether it is operated on a fixed route or schedule, and where the passengers hire the motor vehicle not only as a means of transportation but also for an entertainment or social purpose. "Entertainment transportation vehicle" includes, but is not limited to, trucks, buses, and wagons/trailers pulled by a motor vehicle. Such term does not include City of Wichita Transit vehicles, limousines, sedans, shuttles, taxicabs, medical transport or electric-assist pedal carriages or passenger transportation vehicles used exclusively by schools, churches, or daycare programs for church, schools or daycare purposes. Motor vehicles hired or utilized primarily to transport passengers to destinations outside the corporate city limits of the city are not considered to be an ETV.

"Exotic Dancer" means any person who dances "for hire" for purposes of entertainment.

"For hire" means a transaction whereby any money, thing of value, charge tickets, surcharge, payment, pecuniary consideration or compensation, reward, donation, tip, or any other remuneration or profit is paid.

"License holder" means a person, company, corporation or association which has applied for, and has been granted, an Entertainment Transportation Vehicle license.

"Minor" means any person under 18 years of age.

"Open container" means any container containing alcoholic beverages, the contents of which are immediately capable of being consumed or the seal of which has been broken.

"Operator" means any individual who physically operates an Entertainment Transportation Vehicle under this Chapter. This person may share additional, company-related titles, such as owner, employee of the owner, holder or independent contractor.

"Owner" means the person who holds the legal title of the Entertainment Transportation Vehicle.

"Passenger" means any person on an Entertainment Transportation Vehicle other than the operator, licensee or an employee of the licensee, whether or not that individual has paid compensation to the ETV license holder.

"Person" means any individual, partnership, corporation, association or public or private organization of any character.

"Solicit" means the distribution of flyers or other material, or an appeal by bell, horn, whistle, words, or gestures by a driver or his or her agent directed at individuals or groups for the purpose of attracting passengers for immediate hire.

"Taxicab" means a motor vehicle regularly engaged in the business of carrying passengers for hire, donation, gratuity or any other form of remuneration, having a seating capacity of less than nine persons and not operated on a fixed route.
(Ord. No. 52-217, § 2, 7-18-23)

Sec. 3.31.020. License required.

A. No Entertainment Transportation Vehicle shall be used or operated on a for hire basis by any person in the city limits of Wichita without an owner or operator having first obtained an Entertainment Transportation Vehicle License. Each license covers all vehicles in the fleet and shall be valid for one year.

B. It shall be unlawful for any person to transport or offer to transport passengers in any Entertainment Transportation Vehicle which does not have available for inspection a valid license issued through the City of Wichita.

C. No license issued pursuant to this Chapter may be assigned, transferred, sold, or given from one person or entity to another.
(Ord. No. 52-217, § 3, 7-18-23)

Sec. 3.31.030. Application requirements.

A. An application for an Entertainment Transportation Vehicle License shall be filed with City Licensing. Forms will be provided by the City Licensing and payment of the yearly fee will be charged upon submission of the application.

B. The application shall require the following information:

1. Name and address of applicant:
    a. Sole-proprietor—Name and address of the owner.
    b. Partnership—Names and addresses of all partners.
    c. Corporation or association—Names and addresses of all of the officers, directors, and members.
2. Business name (d/b/a), business address and telephone number if different from above.
3. Prior experience of applicant in transport of passengers.
4. Number of passenger vehicles, the VIN for each vehicle, proof of insurance, a copy of proof of ownership or other evidence of lawful control for each vehicle to be operated under the license.
5. Procedures for training operators.
6. Rules and regulations governing operator appearance and conduct.
7. Disclosure of federal, state and municipal convictions within the past 10 years and any outstanding charges, not including traffic offenses. Applicant agrees to a record check by the City of Wichita to verify the information provided.

C. An applicant will be ineligible for consideration if:

1. Any of the owners, partners, officers, directors, or members has been convicted of, forfeited bond, pleaded guilty or nolo contendere to, or been released from incarceration for a felony, prostitution, obscenity, or any crime of a sexual nature such as sexual battery, rape, or lewd and lascivious conduct in any jurisdiction within ten years immediately preceding the date of application; or has been convicted of the misdemeanor violations of the same nature or violations of Chapter 4 of the Municipal Code of the City of Wichita in the preceding five years from the date of application.
2. Any portion of the application is incomplete or contains incorrect or untruthful information.
3. A license issued pursuant to Titles 3 or 4 of the Code of the City of Wichita has been suspended, revoked or denied in the prior six months or the license expired while the license was under investigation for revocation of such license.
4. Any of the owners, partners, officers, directors or members have been operating as an Entertainment Transportation

Vehicle without a license the previous six months. This provision shall not be in effect until March 1, 2024.

(Ord. No. 52-217, § 4, 7-18-23)

Sec. 3.31.040. Issuance or denial.

A. A determination for issuance of a license shall be made within 30 days of submission of a completed application and payment of fees.

B. Any entity whose application for a license is denied by the City of Wichita may file a written appeal pursuant to Section 3.31.130.

C. The fee for the issuance of an Entertainment Transportation Vehicle License is $100.

(Ord. No. 52-217, § 5, 7-18-23)

Sec. 3.31.050. Annual renewal.

A. All licenses issued under the provisions of this Chapter shall expire twelve months following the date on which the license was issued.

B. All applicants for renewal must submit an application renewal as provided by City Licensing.

C. If a licensed Entertainment Transportation Vehicle license holder fails to renew prior to the end of the renewal period, the license shall expire and the renewal shall be treated as a new application.

(Ord. No. 52-217, § 6, 7-18-23)

Sec. 3.31.060. Insurance required.

A. Before any license is issued, or before the renewal of such license is granted, the applicant shall be required to file an insurance policy and/or certificate of insurance with City Licensing evidencing insurance coverage as required in this Section.

B. Insurance coverage as provided in subsection (A) means:

1. Holders of Entertainment Transportation Vehicle Business Licenses shall maintain commercial general (public) liability insurance in the amount of $1,000,000, inclusive of contractual liability, written on an occurrence basis. This insurance shall be issued by an insurance company qualified to do business in the State of Kansas.
2. Such license holders shall also maintain commercial automobile liability insurance that shall afford protection to any third party sustaining injury or damage as a result of the negligent operation of any entertainment transportation or other motor vehicle affiliated with the company in minimum amounts of $1,000,000. These policies shall be issued by an insurance company qualified to do business in the State of Kansas. These policies shall provide for the minimum coverage amounts (set as described above) to apply to each Entertainment Transportation Vehicle for liability imposed by law for damages on account of bodily injuries, death or personal damages, other than injuries, death or property damages of the company or operator, in any one accident resulting from the ownership, maintenance or use of such Entertainment Transportation Vehicle.

C. The operation of any Entertainment Transportation Vehicle within the city limits without having in force the public liability insurance policy as outlined in this Section is hereby declared to be a violation of this Chapter and shall be cause for criminal prosecution and suspension, revocation or administrative penalty.

D. All changes in insurance coverage must be reported to City Licensing within five days of change.

(Ord. No. 52-217, § 7, 7-18-23)

Sec. 3.31.070. Vehicle requirements; safety standards.

A. The vehicle shall be in compliance with inspection and condition rules and regulations of the State of Kansas. Upon request of law enforcement, such inspection information will be provided by the licensee.

B. Every vehicle operating under this Chapter shall be kept in a clean and satisfactory condition. All safety equipment must be in good working condition. The aisles and seats should

be free of obstructions that could limit ingress/egress in an emergency. The vehicle should be kept clean of empty alcoholic beverage and other containers.

C. Every vehicle operating under this Chapter must be equipped with adequate seating and safety equipment as determined by the laws and regulations of the State of Kansas.
(Ord. No. 52-217, § 8, 7-18-23)

Sec. 3.31.080. Records and reports.

A. Each license holder shall maintain business records of its Entertainment Transportation Vehicles at a single location. The records must contain the following information:

1. An identification of the Entertainment Transportation Vehicles operating each day;
2. An identification of the persons operating the Entertainment Transportation Vehicles each day and a statement of the hours each driver operated the vehicle each day; and
3. A summary of the locations visited by the ETV on each booking.

B. A licensee shall make records available for inspection by a law enforcement officer or designated officials. Failure to do so will not result in criminal prosecution, but may result in an administrative penalty, suspension or revocation.
(Ord. No. 52-217, § 9, 7-18-23)

Sec. 3.31.090. Entertainment transportation vehicle: standards of conduct.

A. It shall be considered cause for suspension, revocation, modification or administrative penalty for an ETV operator or license holder, agent or employee to violate the following standards of conduct:

1. No ETV operator, license holder, agent or employee will allow disorderly conduct, brawling, verbal threats or abuse toward pedestrians, drivers or other passengers, fighting, nudity, littering, alcohol violations, standing on seat while bus in motion, or other unruly behavior.
2. No ETV operator, license holder, agent or employee shall drop or release passengers at any business that has notified the ETV operator or licensee that drop offs are not allowed at that location.
3. No ETV operator, license holder, agent or employee shall permit exotic dancing for hire as entertainment upon or within 100 feet of the ETV.
4. Every ETV shall carry in the vehicle a list of rules as they pertain to passenger behavior. The information should include rules pertaining to alcohol use, hours of operation, nudity, littering and disorderly conduct.
5. Every ETV operator, license holder, agent or employee shall notify in writing the leasing party of the rules and ordinances as they apply to passengers.
6. No ETV operator, license holder, agent or employee may permit more passengers to be carried in an Entertainment Transportation Vehicle than for which there is proper seating, and at no time shall the operator allow any passenger to ride in any area of the Entertainment Transportation Vehicle not specifically designed or designated as a seat or proper standing area with handrail.
7. No ETV operator, license holder, agent or employee will permit any passenger 17 years of age or younger to ride in an Entertainment Transportation Vehicle unaccompanied by an adult with the minimum age of 21.
8. No ETV operator, license holder, agent or employee will operate or staff an Entertainment Transportation Vehicle with any amount of alcohol or illegal drugs in their system. An operator will not operate a vehicle after consuming any prescription drugs that could impair driving.

9. No ETV operator shall operate an Entertainment Transportation Vehicle while possessing a lighted cigarette, cigar, or pipe while transporting passengers.

10. No ETV operator, license holder, agent or employee shall allow a person to operate an ETV without a Kansas Commercial Driver's License with a passenger endorsement.

11. Refusal of entry and inspection shall be grounds for suspension, administrative penalty or revocation of the license, except a traffic stop will not be initiated absent reasonable suspicion of an articulable crime or infraction. If reasonable suspicion justifies the stop, refusal of inspection shall be grounds for suspension, administrative penalty or revocation of license.

B. Violations of the Standards of Conduct may also result in criminal charges if they are contrary to other sections of the Code of the City of Wichita or Kansas Statutes Annotated.
(Ord. No. 52-217, § 10, 7-18-23)

Sec. 3.31.100. Alcohol in an entertainment transportation vehicle.

A. It shall be unlawful for an ETV operator, license holder, agent or employee to:

1. Provide alcoholic beverage to a passenger for a fee or as part of the passenger transport service;

2. Provide or stock any alcoholic beverage in the Entertainment Transportation Vehicle;

3. Allow the consumption of alcoholic beverages in the vehicle after midnight if persons under the age of 21 are present;

4. Allow a passenger or staff to consume alcoholic beverages if under the age of 21;

5. Allow any consumption of alcoholic beverage between the hours of 2:30 a.m. and 7:00 a.m.

B. In addition to criminal penalties, a violation of this section may also cause a license to be revoked, suspended, modified or penalized.
(Ord. No. 52-217, § 11, 7-18-23)

Sec. 3.31.110. Right of inspection.

The right of immediate entry to and inspection of any Entertainment Transportation Vehicle by any duly authorized officer or agent of the city, or by any law enforcement officer, shall be a condition on which every license is issued and the application for and acceptance of any license shall conclusively be deemed to be the consent of the applicant, licensee or permit holder to such immediate entry and inspection. Such consent shall not be revocable during the term of the license or permit. Such right of immediate inspection shall be at any time when the ETV is occupied or maintained by the operator or any passenger. A traffic stop will not be initiated absent reasonable suspicion of an articulable crime or infraction. Refusal of entry and inspection shall be grounds for revocation of the license.
(Ord. No. 52-217, § 12, 7-18-23)

Sec. 3.31.120. Suspension and revocation.

A. A license issued under the provisions of this Chapter may be revoked, suspended, otherwise restricted, or not renewed by the Chief of Police if the holder thereof has:

1. Violated any of the provisions of this Chapter or failed to comply with any rule or regulation established by the State of Kansas.

2. Allowed on the permitted vehicles violations of any provisions of the Code of the City of Wichita or laws of the State of Kansas or of the United States including but not limited to, violations for excessive noise, nuisance, disorderly conduct, battery or alcohol violations.

3. Failed to pay fees or administrative penalties assessed against the license within 30 days of assessment.

4. Made a misrepresentation or false statement when obtaining or renewing a certificate or additional permits, or transferring a certificate.

5. Failed to maintain proper insurance as enumerated in Section 3.31.060.

6. Allowed a driver to operate the vehicle while transporting customers without having a Kansas issued Commercial Driver's License with a passenger endorsement.

7. The ETV was not kept in a clean or safe condition.

8. Failed to comply with additional licensing conditions set by the Chief of Police pursuant to a previous violation, so long as the ETV licensee was properly notified of the additional conditions and was provided opportunity to appeal such conditions.

9. Permitted a person to drive passengers in an ETV while under charges for DUI, reckless driving or evade and elude are pending or allowed a person convicted or placed upon diversion for such a charge in the previous 12 months to drive passengers in an ETV.

10. Permitted a person to drive passengers in an ETV if the operator has been convicted, pled guilty, has been placed on probation or parole, pleaded nolo contendere, or has been released from incarceration within a period of five years prior to the date of application for violation of any of the following criminal offenses under the laws of Kansas, any other state or of the United States: homicide, rape, aggravated assault, kidnapping, robbery, theft, burglary, child sexual abuse, any sex-related offense, leaving the scene of an accident or the felony possession, sale or distribution of narcotic drugs or controlled substances.

11. Failed to allow inspection of vehicle or records as required in this Chapter.

B. Prior to any action to revoke, suspend, place on probation, otherwise restrict or assess an administrative fee, the licensee shall be given notice by first class mail to the address listed on their license of the proposed action to be taken and shall have appeal rights as outlined in 3.31.130.

C. If the Chief of Police determines that operation of the ETV poses a threat to the public safety, the Chief of Police may enact an emergency suspension of the holder's certificate to remain in effect until the holder has the opportunity to meet in person with the Chief of Police. The meeting shall be heard no longer than ten days from the emergency suspension.

D. In lieu of suspension or revocation or in addition to a suspension, the Chief of Police may impose an administrative penalty not to exceed $1,500 or impose additional requirements such as an outright ban of alcohol on the ETV, placement of security cameras, additional security while the vehicle is transporting passengers, or a capacity reduction.

E. A licensee will be responsible for any action of an employee, co-owner, or any agent of the ETV for actions that relate to the operation of the ETV and a license may be suspended, revoked or penalized based on the actions of one of those parties.
(Ord. No. 52-217, § 13, 7-18-23)

Sec. 3.31.130. Appeal procedure for ETV license.

A. Unless otherwise specified by this Chapter, any applicant or licensee aggrieved by the denial, suspension, modification, revocation or imposition of additional conditions, of an ETV license may file with the Office of the Chief of Police a written notice of appeal within 14 days of the decision by the Chief of Police or his/her designee. The Notice of Appeal shall specify:

1. The name and address of the appellant;

2. The date of application;

3. The date of the denial, suspension, modification, revocation or imposition of additional conditions of the license or application;

4. The factual basis for the appeal; and

5. Any information, statements, evidence or written testimony the appellant wishes to be considered in the appeal.

B. Upon receipt of a complete and timely filed Notice of Appeal, the Chief of Police shall review the information submitted by the Appellant and any information submitted by the City of Wichita. A decision shall be rendered in writing no later than 14 days from the date of the filing of the Notice of Appeal with the Chief of Police. Any appeal shall stay the suspension, modification or revocation of the license until the matter is heard by the Chief of Police.

C. The Chief of Police may approve the denial, suspension, modification, revocation, or imposition of additional conditions, overrule the denial, suspension, modification, revocation or imposition of additional conditions or modify the prior decision.

D. The decision of the Chief of Police may be appealed within 14 days of the date of the letter or notification by filing a Notice of Appeal with the City Clerk. Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before the City Council, no later than thirty days from the date of the filing of the Notice of Appeal with the City Clerk. Any appeal shall stay the suspension, modification or revocation of the license until the matter is heard by the Council Appeal Panel pursuant to Section 2.04.237 of the Code of the City of Wichita. The Council Appeal Panel may approve the denial, suspension, modification, revocation, or imposition of additional conditions, overrule the denial, suspension, modification, revocation or imposition of additional conditions or modify the decision of the Chief of Police.

E. In any stage of the appeal, a certified copy of a conviction from any local, state, or federal court for any violation, is *prima facia* evidence of a violation of that law.

F. The Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation, modification or suspension of the license by the Council Appeal Panel.
(Ord. No. 52-217, § 14, 7-18-23)

Sec. 3.31.140. Penalties.

Any person convicted of a violation of this Chapter shall be punished by a fine not more than $1,500 and/or a maximum jail sentence not to exceed six months.
(Ord. No. 52-217, § 15, 7-18-23)

Sec. 3.31.150. Violations not exclusive.

The provisions of this Chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be taken by the City for a violation of any ordinance of the City or statute of the State of Kansas.
(Ord. No. 52-217, § 16, 7-18-23)

Sec. 3.31.160. Severability.

If any provision or clause of this Chapter or the application thereof to any person or circumstance is held to be unenforceable by a court of competent jurisdiction, such clause or provision and the remainder of this Chapter shall remain effective and enforceable to the fullest extent allowed by law, and all clauses and provisions of this Chapter are hereby declared to be severable.
(Ord. No. 52-217, § 17, 7-18-23)

CHAPTER 3.32. RESERVED*

*__Editor's note—__Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed ch. 3.32, §§ 3.32.010, 3.32.015, and 3.32.020—3.32.110, which pertained to business termination and liquidation sales, and derived from Ord. No. 37-645, §§ 1—12.

CHAPTER 3.36. RESERVED*

*__Editor's note—__Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed ch. 3.36, §§ 3.36.010—3.36.200, which pertained to auctions and auctioneers, and derived from Ord. No. 11-304, §§ 1—4; Ord. No. 15-606, §§ 9, 10; Ord. No. 16-433, §§ 1—7; Ord. No. 28-597 § 1 (part); Ord. No. 32-752; and Ord. No. 39-250, § 4.

CHAPTER 3.40. SHORT-TERM RENTAL PROPERTY LICENSING

Sec. 3.40.010. Short-term rental licensing.
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Sec. 3.40.030. Definitions.
Sec. 3.40.040. Short-term rentals permitted.
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Sec. 3.40.110. Inspection of property during period of license.
Sec. 3.40.120. Maximum occupancy—Gatherings.
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Sec. 3.40.180. Violations not exclusive.
Sec. 3.40.190. Initial compliance.
Sec. 3.40.200. Severability.

Sec. 3.40.010. Short-term rental licensing.

(Ord. No. 52-265, § 1, 9-19-23)

Sec. 3.40.020. Intent and purpose.

This Chapter applies to the owning and operation of Short-Term Rentals as defined by this Chapter. The purpose and intent of this Chapter is to establish standards to regulate and provide a licensing process for Short-Term Rentals to protect the health, safety and general welfare of Short-Term Rental Transient Guests and neighboring residents of the City of Wichita.
(Ord. No. 52-265, § 2, 9-19-23)

Sec. 3.40.030. Definitions.

"Advertise" means the act of drawing the public's attention to a Short-Term Rental to promote the availability of the Dwelling Unit for use as a Short-Term Rental. Such advertising may be found in any medium, including but not limited to, newspaper, magazine, brochure, website, or mobile application.

"Booking Service" means any reservation and/or payment service provided by a Person or entity that facilitates a Short-Term Rental transaction between an Owner and a prospective Transient Guest, and for which the Person or entity collects or receives, directly or indirectly through an agent or intermediary, a fee in connection with the reservation and/or payment services provided for the Short-Term Rental transaction.

"Dwelling Unit" means a building or portion of a building that contains living facilities for not more than one family and that includes provisions for sleeping, cooking, eating and sanitation. For the purposes of this ordinance, this definition does not include hotels or motels.

"Hosting Platform" means a Person or entity that participates in the Short-Term Rental business by providing, and collecting or receiving a fee for, Booking Services through which an Owner may offer premises to a Transient Guest on a short-term basis. Hosting Platforms usually, though not necessarily, provide Booking Services through an online platform that allows an Owner to advertise the premises through a website provided by the Hosting Platform and the Hosting Platform conducts a transaction by which potential Transient Guests arrange their use and their payment, whether the would-be Transient Guest pays rent directly to the Owner or to the Hosting Platform.

"Inspection Team" means, including but not limited to, members of the Metropolitan Area Planning Department, the Metropolitan Area Building Construction Department, and the Wichita Fire Department who are responsible for inspections to ensure housing, zoning building, fire and neighborhood code compliance of Short-Term Rentals.

"License" means the authority to conduct the business of owning or operating a Short-Term Rental Unit(s).

"Licensee" means any Person to whom a current License has been issued under this Chapter authorizing such Person to conduct the business of owning or operating a Short-Term Rental Unit(s) within the City Limits.

"Licensed Premises" means the premises specified in an approved application for a License under this Chapter which are owned or operated by the Licensee.

"MABCD" means the Director of the Metropolitan Area Building and Construction Department and his or her designees.

"MAPD" means the Director of the Metropolitan Area Planning Department and his or her designees.

"Non-Owner Occupied" means any Dwelling Unit, which is not the Owner's primary place of residence, and which is not considered to be Owner Occupied as defined by this Chapter. Non-Owner Occupied also includes Short-Term Rentals in which the Owner resides in the residence, is the Owner's primary place of residence, but the Owner is not onsite during the period the unit(s) is rented as a Short-Term Rental.

"Owner" means the individual(s), natural or corporate, in possession of lawful title to real property. As used in this Chapter, Owner may also include any authorized agent of the possessor of lawful title to real property. The term "Owner" may be used interchangeably with the terms "Person" and "Licensee."

"Owner Occupied" means any Dwelling Unit in which the Owner resides and which is the Owner's primary place of residence. To be considered Owner Occupied, the Owner must be onsite during the period of time the unit(s) is rented as a Short-Term Rental.

"Person" means any individual, Owner, operator, company, corporation, partnership, or association.

"Resident Agent" means any Person or business entity, that resides or are located within the City Limits of the City of Wichita, however organized, appointed by an Owner or Licensee, who shall have the express authority to receive communications, service of process, summons, notices and other legal process on behalf of the Owner or Licensee.

"Responsible Party" means the manager or assistant manager, Owner, Licensee or any other Person in charge of the Short-Term Rental Unit(s) licensed under this Chapter. Such term shall include any Person who resides, uses, owns, manages or controls property where a Short-Term Rental License is required.

"Short-Term Rental" means the use of a residential Dwelling Unit or structure to provide rooms for temporary lodging or lodging and meals for Transient Guests for a period of 28 days or less for which compensation is paid to the Owner or Responsible Party. The dwelling or structure may be manager or Owner Occupied.

"Short-Term Renter" means any individual, Person, corporation or entity who has entered into any written or oral agreement to rent, use or occupy a Short-Term Rental.

"Short-Term Rental Unit" means the Dwelling Unit or portion thereof that is rented for 28 days or less. Each Dwelling Unit within a multifamily apartment building that is rented for 28 days or less is considered a Short-Term Rental Unit.

"Transient Guest" means a Person who occupies a room for a period of not more than 28 days at a time other than the Owner's immediate family (related by blood, marriage, or adoption) or any Person residing with the Owner in a Short-Term Rental.

"Zoning Administrator" means the individual or entity designated by the Planning Director to enforce the provisions of this Chapter."
(Ord. No. 52-265, § 3, 9-19-23; Ord. No. 52-540, § 1, 8-27-24)

Sec. 3.40.040. Short-term rentals permitted.

a. Owner Occupied Short-Term Rental Units are allowed, as a matter of right, as permitted by the Wichita Sedgwick County Unified Zoning Code.

b. Non-Owner Occupied Short-Term Rental Units are allowed as permitted by the Wichita-Sedgwick County Unified Zoning Code. If additional zoning approval is required, an application for such zoning approval must be submitted to MAPD before an application for licensing is submitted to the City's Licensing Department.
(Ord. No. 52-265, § 4, 9-19-23)

Sec. 3.40.050. General provisions.

Each Owner or Responsible Party shall:

a. Maintain a valid City License for purposes of operating any one or more Short-Term Rental(s) within the City of Wichita. A separate license is required for each dwelling unit or structure utilized as a Short-Term Rental.

b. Pay all applicable local, state, and federal taxes, including income taxes, associated with the operation of each Short-Term Rental Unit.

c. Maintain liability insurance coverage for each Short-Term Rental Unit in the minimum amount of Two Hundred Fifty Thousand Dollars ($250,000) per Short-Term Rental Unit to insure against damages to guest(s) caused by the Owner or Responsible Party, and to insure against damages caused by Short-Term Rental guest(s) or the Owner when such damages are incurred by other persons including, but not limited to, neighbors or invited guests. Liability insurance provided by a third party, such as an online booking platform, is acceptable proof of the required liability insurance.

d. Clearly display inside each Short-Term Rental Unit a copy of the applicable Short-Term Rental License issued pursuant to this Chapter.

e. Include the Short-Term Rental License number issued by the City of Wichita on all marketing materials for each respective Short-Term Rental Unit. For the purposes of this subsection, marketing materials include, but are not limited to: a business card, printed letterhead, any other printed or written material, or any internet posting/publication, postings in any Booking Service or Housing Platform, electronic billboard, or telephonic transmission of information, designed to inform persons of the Short-Term Rental service offered by the Owner or Responsible Party.

f. Display inside each Short-Term Rental Unit a current "Good Neighbor Agreement." The Good Neighbor Agreement will be provided by the City and shall inform the Transient Guests of the maximum overnight occupancy, maximum gathering occupancy and relevant City ordinances, and explain that Transient Guests of any Short-Term Rental Units are required to comply with all relevant City ordinances and State Statutes.

g. Be available twenty-four (24) hours per day, seven (7) days a week or have designated a Responsible Party to be available to respond to complaints regarding the operation or occupancy of the Short-Term Rental. Such person shall be available to come to the premises, if required, within thirty minutes to resolve any complaint.

h. Comply with all the terms and conditions of this Chapter and all other applicable City codes and State statutes, including but not limited to: Wichita-Sedgwick County Unified Building and Trade Code, Wichita-Sedgwick County Unified Zoning Code, International Fire Code, and Chapters 7, 8, 15, 18, 19, 20, 21, 22 and 28 of the Code of the City of Wichita and any amendments thereto.

i. If licensed as Owner-Occupied remain on the premises of the Short Term Rental during such time as the dwelling unit is rented as a Short-Term Rental.

j. Not discriminate against any person or persons on the basis of race, color, sex, religion, national origin, ancestry, disability, sexual orientation, sexual identity, gender identity or age; in the rental or leasing a Short-Term Rental Unit.

k. Not allow the occupancy of guests to exceed the number of occupants allowed pursuant to Section 3.40.120.

(Ord. No. 52-265, § 5, 9-19-23)

Sec. 3.40.055. Responsibilities of short-term renters.

1. Any Short-Term Renter shall:

a. Not allow or permit activities on the premises which produce any excessive, unnecessary, unusual, or loud noises which (1) create a nuisance or (2) which interfere with the use or enjoyment of any Person of reasonable sensibilities.

b. Not allow or permit any event or gathering to exceed the size limitations established by Section 3.40.120 of the Code of the City of Wichita.

c. Not rent the premises for the purpose of allowing the use of the property for or by any individual under the age of 18 years of age unless the Short-Term Renter remains on the premises of the property at all times.

d. Not allow or permit the consumption of alcoholic liquor or cereal malt beverage as defined in Section 4.04.010 of the Code of the City of Wichita by individuals under the age of 21 years of age.

e. Not allow or permit the possession, use or consumption of illegal drugs.

f. Not allow or permit the use of sound amplifying equipment in outdoor areas of a Short-Term Rental after 10:00 p.m. Sound amplification equipment means a digital audio player, electronic audio equipment, musical instrument, sound amplifier, or other mechanical or electronic sound-making device that produces, reproduces or amplifies sound.

2. a. In addition to the Zoning Administrator, the provisions of this section may be enforced by any law enforcement officer; and

b. Upon violation of this section, the Zoning Administrator or a law enforcement officer may issue a criminal complaint setting forth the violation of this subsection.

3. The provisions of this section shall apply to Short-Term Renters regardless of whether the property is properly licensed as a Short-Term Rental under the provisions of this Chapter.

4. Upon conviction for violation of this section, the Person shall be deemed guilty of a misdemeanor and shall be punished by a fine not to exceed five hundred dollars ($500) and/or for imprisonment of a term not to exceed six (6) months. Each day that any violation of this Chapter continues shall constitute a separate offense and shall be punishable hereunder as a separate violation.

(Ord. No. 52-540, § 2, 8-27-24)

Sec. 3.40.060. License required.

a. It shall be unlawful for any Owner or Responsible Party to operate, rent, own maintain, or otherwise permit or allow any Short-Term Rental without a valid License issued by the City's Licensing Department in accordance with this Chapter upon the payment of a license fee. The annual license fee for Short-Term Rentals is $225.00. A separate license is required for each dwelling unit or structure utilized as a Short-Term Rental. Revenue from fees collected pursuant to this paragraph shall be used to offset costs to administer, manage and enforce this Chapter.

b. It shall be unlawful for any Owner, Responsible Party or other person to advertise in any medium, including but not limited to Hosting Platforms, Booking Services, newspapers, magazines, brochures, websites or mobile applications the use of any structure as a Short-Term Rental that is not properly licensed pursuant to the provisions of this Chapter.

c. It shall be unlawful for any Owner, Responsible Party or other person to advertise in any medium, including but not limited to Hosting Platforms, Booking Services, newspapers, magazines, brochures, websites or mobile applications the use of any structure as a Short-Term Rental that is not properly licensed pursuant to the provisions of this Chapter without including the current license number assigned to the Short-Term Rental by the City's Licensing Department.

d. It shall be unlawful for any Owner, Responsible Party or other person to violate the terms and conditions of this Chapter.
(Ord. No. 52-265, § 6, 9-19-23)

Sec. 3.40.070. Inspections.

a. Upon the filing of a complaint with the Zoning Administrator, Short-Term Rental Units shall be inspected by members of the Inspection Team, as set forth in this Chapter.

b. The Inspection Team shall perform the inspection in compliance with applicable city codes for the purpose of verifying that the premises are in compliance with the City's housing, fire, building, zoning and all other applicable City Codes.

c. Following such inspections, if Code violations are found to exist, the Inspection Team must perform a re-inspection of the premises. No License shall be re-issued until the re-inspection is completed and any violations remedied.

d. The fee for such re-inspection shall be $50.00.

e. Any Owner or Responsible Party who fails to appear for a scheduled inspection or re-inspection, or any Owner or Responsible Party that refuses consent to inspect at a scheduled inspection, shall be charged a re-inspection fee of $50.00. A scheduled inspection or re-inspection may be rescheduled with no re-inspection fee assessed if rescheduled within no less than seven (7) days' prior notice to MAPD.
(Ord. No. 52-265, § 7, 9-19-23)

Sec. 3.40.080. Application.

Before any License shall be granted by the City's licensing department, an application shall be filed for such License setting forth the following facts:

a. The name, address, and date of birth of the applicant and telephone number where the applicant can be reached between the hours of 8:00 a.m. and 5:00 p.m.;

b. The name, address, and date of birth of the applicant, Owner, Manager and other Responsible Party of the Short-Term Rental. If a corporation, all the names, addresses, and dates of birth of the officers, managers or directors of such corporation and any individual who owns twenty-five (25) or more percent of the stock of such corporation. If the License is to be held by a corporation, the Resident Agent and registered office of said corporation. If the applicant is a partnership, all the names, addresses, and dates of birth of all partners of the partnership;

c. For Owners applying for an Owner Occupied Short-Term Rental license, two documents giving proof of Owner occupation must be provided. Each document must be current and show the Owner's name and address matching that of the property to be utilized for a Short-Term Rental. Acceptable documentation includes: (1) A Kansas Driver's License; (2) other valid State of Kansas Identification Card; (3) Sedgwick County Voter Registration Card; (4) current employer verification of residential address from the employer on company letterhead; (5) current automobile, life or health insurance policy; (6) paycheck/check stub; (7) IRS W-2 Form; (8) a bank statement or (9) other documentation showing the owner's residential address;

   Identifying information (Drivers License Numbers, Account Numbers and Social Security Numbers) for the individual(s) may be redacted on copies submitted to the City's licensing department;

d. If the Owner does not have a local address within thirty (30) miles of the City limits of the City of Wichita, then he or she must appoint a person or management company, located within the City limits of the City of Wichita to serve as his or her Resident Agent by providing the name, company name, if any, address, e-mail address, if any, and telephone number of the Resident Agent. Any Resident Agent appointed by the Owner shall have written, express and actual authority to receive communications,

service of process, summons, notices and other legal process on behalf of the Owner;

e. If the Owner appoints a Resident Agent, the application must be accompanied by the Owner's written, notarized authorization granting the Resident Agent express, actual authority to sign documents, to receive service, and to act on the behalf of the Owner or Licensee;

f. The physical address of the Short-Term Rental Unit;

g. Maximum occupancy of the Short-Term Rental Unit(s);

h. Number of rooms, units or areas to be used as a Short-Term Rental Unit;

i. The name, phone number, email, and business address of the Owner or Responsible Party who will be available twenty-four (24) hours per day, seven (7) days a week to respond to complaints regarding the operation or occupancy of the Short-Term Rental. Such person shall be available to come to the premises, if required, within thirty minutes to resolve any complaint;

j. A scaled floor plan on a form provided by the City Licensing Department showing the layout and square footage of the Short-Term Rental Unit(s). Such floor plan, at a minimum, shall include a designation and location of bedrooms, bathrooms, and kitchens, the dimensions of such rooms and the means of ingress and egress within each room and the dwelling unit;

k. A notarized statement signed by the Owner or Responsible Party that the Short-Term Rental will be operated in compliance with all the terms and conditions of this Chapter and all other applicable City Codes and State statutes, including, but not limited to: Wichita-Sedgwick County Unified Building and Trade Code, Wichita-Sedgwick County Unified Zoning Code, International Fire Code, and Chapters 7, 8, 15, 18, 19, 20, 21, 22 and 28 of the Code of the City of Wichita and any amendments thereto;

l. Proof of insurance as required by Section 3.40.050 of this Chapter;

m. A notarized statement signed by the Owner or Responsible Party that all applicable taxes on the property have been paid and that any income from the rental of such property is being reported as taxable income to the Internal Revenue Service;

n. A statement as to whether the applicant has ever had any License denied, revoked, or suspended by the City of Wichita or the State of Kansas or any other governmental entity, the reason therefor and the business activity or occupation of the individual subsequent to such suspension, revocation or denial; and

o. A statement that the Owner, Responsible Party, or any employee thereof will not, in renting or leasing a Short-Term Rental Unit, discriminate against any person or persons on the basis of race, color, sex, religion, national origin, ancestry, disability, sexual orientation, sexual identity, gender identity or age.

(Ord. No. 52-265, § 8, 9-19-23)

Sec. 3.40.090. Denial of license.

A License shall be denied or not renewed if one or more of the following conditions exist:

a. The premises does not comply with the health, housing, fire and zoning codes of the City of Wichita, including but not limited to: Wichita-Sedgwick County Unified Building and Trade Code, Wichita-Sedgwick County Unified Zoning Code, International Fire Code, and Chapters 7, 8, 15, 18, 19, 20, 21, 22 and 28 of the Code of the City of Wichita and any amendments thereto;

b. The applicant has knowingly made a false, misleading or fraudulent statement of fact to the City of Wichita on the application;

c. The application is incomplete or contains any material misrepresentation;

d. Within the five (5) years prior to the date of application, the applicant, or any person with a financial interest of twenty-five (25) percent or greater in the Short-Term Rental stated in the application, has committed or allowed to be committed while operating any Short-Term Rental any violation of this Chapter; and

e. Within the five (5) years prior to the date of application, the applicant, or any person with a financial interest of twenty-five (25) percent or greater in the Short-Term Rental stated in the application has had a Short-Term Rental License suspended or revoked pursuant to any provision of this Chapter.

(Ord. No. 52-265, § 9, 9-19-23)

Sec. 3.40.100. Term of license.

a. A Short-Term Rental License expires one (1) year after the date of issuance.

b. A Short-Term Rental License is not transferable to another person or location. A change in ownership shall require the new Owner or Responsible Party to pay a new application fee and secure a new Short-Term Rental License.

(Ord. No. 52-265, § 10, 9-19-23)

Sec. 3.40.110. Inspection of property during period of license.

Exterior Inspections:

The Wichita Fire Department, Metropolitan Area Planning Department and Metropolitan Area Building and Construction Department (Inspection Team) and any other code officers shall have the right to inspect the exterior premises each Short-Term Rental Unit, without prior notice, during the period of the License to determine compliance with this Ordinance and the Wichita-Sedgwick County Unified Building and Trade Code, Wichita-Sedgwick County Unified Zoning Code, International Fire Code, and Chapters 7, 8, 15, 18, 19, 20, 21, 22 and 28 of the Code of the City of Wichita and any amendments thereto.

Interior Inspections:

Absent exigent circumstances, whenever it is necessary to make an inspection to enforce any provisions of this Chapter, the Wichita-Sedgwick County Unified Building and Trade Code, Wichita-Sedgwick County Unified Zoning Code, International Fire Code, and Chapters 7, 8, 15, 18, 19, 20, 21, 22 and 28 of the Code of the City of Wichita and any amendments thereto or whenever the Inspection Team has reasonable suspicion that there exists conditions which make the property unsafe, dangerous, hazardous, or a public nuisance, the Inspection Team shall have the right, after giving seventy-two (72) hours' written notice to the Owner or Licensee, to enter a Short-Term Rental, at all reasonable times, to inspect the same or to perform any duty imposed by this Chapter provided that such entry is made in accordance with the law. At the time of inspection, if the Short-Term Rental is occupied, then the Inspection Team shall first attempt to make contact with the occupant, present proper credentials, and request entry. If the Short-Term Rental is unoccupied, then the Inspection Team shall contact the Owner, Licensee, or Registered Agent thereof to request entry. If the Inspection Team is unable to make contact with the Owner, Licensee, or Registered Agent, or the Inspection Team is denied consent to enter, then the Inspection Team shall have the right to seek entry by way of an administrative search warrant or other lawful means.

(Ord. No. 52-265, § 11, 9-19-23)

Sec. 3.40.120. Maximum occupancy—Gatherings.

a. The maximum overnight occupancy of a Short-Term Rental Unit is limited to a maximum of two adults per bedroom, plus an additional two adults for each unit excluding studio or efficiencies, such that a two-bedroom house would have an overnight occupancy of six adults, or a three-bedroom house would have an overnight occupancy of eight adults. For the purposes of this subsection, an adult is any person over 12 years of age;

b. Gatherings of persons in excess of the maximum overnight occupancy prescribed by Subsection "a." above, shall not exceed two times the maximum overnight occupancy or 20 persons, whichever is less;

c. All such gatherings shall conclude and attendees disburse by 10:00 p.m.;

d. In addition to the Zoning Administrator, the provisions of this section may be enforced by any law enforcement officer;

e. Upon violation of this section, the Zoning Administrator or a law enforcement officer may issue a criminal complaint setting forth the violation of this subsection; and

f. Upon conviction for violation of this subsection, the person shall be deemed guilty of a misdemeanor and shall be punished by a fine or not to exceed five hundred dollars ($500) and/or imprisonment of a term not to exceed six (6) months. Each day that any violation of this Chapter continues shall constitute a separate offense and shall be punishable hereunder as a separate violation.
(Ord. No. 52-265, § 12, 9-19-23)

Sec. 3.40.130. Notice of license denial/ suspension/revocation.

The Zoning Administrator shall provide written notice to the Owner or Responsible Party of the intent to deny, revoke, or suspend a Short-Term Rental License by personal service or certified mail, return receipt requested.

The notice shall be sent to the mailing address of the Licensee on file with the City's Licensing Department. Such notice shall detail the reason or basis for the denial, suspension or revocation of the License. It shall also specify the rights of the Licensee to appeal any such denial, revocation or suspension.
(Ord. No. 52-265, § 13, 9-19-23)

Sec. 3.40.140. Suspension of license.

a. A License may be suspended by the Zoning Administrator for a period not to exceed thirty (30) days, if:

1. The Licensee or other Responsible Party knew or should have known that activities on the Licensed Premises were in violation of Section 3.40.120 of the Code of the City of Wichita relating to Maximum Occupancy and Gathering limitations for the Licensed Premises.
2. The premises do not comply with the provisions of this Chapter and/or the health, housing, fire and zoning codes of the City of Wichita, including but not limited to: Wichita-Sedgwick County Unified Building and Trade Code, Wichita-Sedgwick County Unified Zoning Code, International Fire Code, and Chapters 7, 8, 15, 18, 19, 20, 21, 22 and 28 of the Code of the City of Wichita and any amendments thereto.

(Ord. No. 52-265, § 14, 9-19-23)

Sec. 3.40.150. Revocation of license.

A License may be revoked by City Council at the recommendation of the Zoning Administrator:

a. If a Licensee or Responsible Party has fraudulently obtained the License by giving false information in the application therefor;

b. If the Licensee or Responsible Party has committed two (2) or more instances of violations of this Chapter, or other applicable City ordinances or State statutes within a 12-month period;

c. If the Licensee or Responsible Party fails to maintain required liability or Short-Term Rental insurance;

d. If a Licensee or Responsible Party has become ineligible to obtain a License under this Chapter;

e. If a Licensee or Responsible Party fails to bring the premises into compliance with the terms and conditions of this Chapter within the time frames for initial compliance as set forth in Section 3.40.190; and

f. For the nonpayment of any License or inspection fees payable under this Chapter.

(Ord. No. 52-265, § 15, 9-19-23)

Sec. 3.40.160. Appeals process.

a. Unless otherwise specified by this Chapter, any Applicant or Licensee aggrieved by the denial or suspension of a Short-Term Rental

License may file with the City Clerk a written notice of appeal to the City Council within ten (10) business days of the decision by the Zoning Administrator or his/her designee. The Notice of Appeal shall specify:

1. The name and address of the appellant;
2. The date of application;
3. The action appealed from;
4. The date of the action appealed from; and
5. The factual basis for the appeal.

b. Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before the City Council, no later than thirty (30) days from the date of the filing of the Notice of Appeal with the City Clerk. Any appeal shall stay the suspension or revocation of the License until the matter is heard by the City Council.

c. The City Council or Council Appeal Panel may approve the denial, suspension, revocation, or overrule the denial, suspension, revocation or may modify the decision of the Zoning Administrator.

d. The City Council's or the Council Appeal Panel's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation, modification or suspension of the License by the City Council.
(Ord. No. 52-265, § 16, 9-19-23)

Sec. 3.40.170. Enforcement and penalties.

a. Except as otherwise provided, the Zoning Administrator has the duty and authority to enforce the provisions of this Chapter.

b. The Zoning Administrator shall send a written notice by personal service or by First Class Mail to the Licensee, Responsible Party, Registered Agent, if one is established, or to the Owner of record as listed in the real property records of the Sedgwick County Clerk.

c. The written notice must include:

1. A statement that a violation of this Chapter has been observed or otherwise determined to exist;
2. A brief description of the nature of the violation;
3. With the exception of violations of Sections 3.40.055 and 3.40.120, notice of a 30-day compliance period (or longer if appropriate in the reasonable determination of the Zoning Administrator) within which to come into compliance; and
4. A reference to the penalty provisions of this Section.

d. Penalty. With the exception of violations of Sections 3.40.055 and 3.40.120, if the property has not been brought into compliance within the compliance period set forth by the notice prescribed under Subsection c. above or any period of extension granted by the Zoning Administrator, any Person who shall own, operate, or manage a Short-Term Rental in violation of a License granted under this Chapter, or without a License when a License is required by this Chapter, shall be deemed guilty of a misdemeanor and upon conviction shall be punished by a fine not to exceed five hundred dollars ($500) and/or imprisonment of a term not to exceed six (6) months. Each day that any violation of this Chapter continues shall constitute a separate offense and shall be punishable hereunder as a separate violation.

In addition to the penalty described in this Section, the City may seek injunctive relief, or revocation of a License as further provided in this Chapter.
(Ord. No. 52-265, § 17, 9-19-23; Ord. No. 52-540, § 3, 8-27-24)

Sec. 3.40.180. Violations not exclusive.

The provisions of this Chapter are in addition to any other violations enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be

taken by the City for a violation of any ordinance of the City of Wichita or Statute of the State of Kansas.
(Ord. No. 52-265, § 18, 9-19-23)

Sec. 3.40.190. Initial compliance.

With the exception of zoning approval, each Owner or Responsible Party is required to come into compliance with the terms and conditions of this Chapter within six (6) months of the effective date of the ordinance. If additional zoning approval is required, such approval must be obtained from the Metropolitan Area Planning Commission or City Council within twelve (12) months from the date of approval of this ordinance.
(Ord. No. 52-265, § 19, 9-19-23)

Sec. 3.40.200. Severability.

If any section, subsection, sentence, clause or phrase of this ordinance is for any reason held invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this ordinance.
(Ord. No. 52-265, § 20, 9-19-23)

CHAPTER 3.41. ALARM SYSTEMS*

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Sec. 3.41.010. Purpose.

The City Council has determined that the high number of false alarm responses being required of law enforcement, fire and emergency medical personnel in response to alarm system activations in the City requires adoption of the following regulations to reduce the number of such false alarms.

*__Editor's note—__Ord. No. 49-785, §§ 1—26, adopted July 22, 2014, repealed Chapter 3.40, which pertained to alarm systems, and enacted Chapter 3.41, which pertains to similar subject matter, as set out herein. Former Chapter 3.40 derived from Ord. No. 41-440. See also the Code Comparative Table for complete derivation.

Sec. 3.41.020. Definitions.

As used in this Chapter, the following words shall have the following meanings:

"Alarm Administrator" means the person(s) designated by the Chief of Police to administer the provisions of this Chapter, and monitor, control and review alarm response procedures and alarm business activities.

"Alarm Business" means any individual, partnership, corporation or other entity which has as one of its principal business purposes the altering, installing, leasing, selling, maintaining, repairing or servicing an alarm system or fire alarm system or which causes any of these activities to take place. Such term shall also include alarm monitoring companies who engage in the activity of monitoring alarm systems.

"Alarm Monitoring Company" means the person who shall be responsible for determining that an alarm system has been activated and notifying the communications center of the alarm activation and the need of an emergency response by law enforcement, fire or emergency medical personnel.

"Alarm site" means a single fixed premises or location served by an alarm system or systems. Each unit, if served by a separate alarm system in a multi-unit building or complex, shall be considered a separate alarm site.

"Alarm System" means an assembly of equipment, devices or a single device arranged to signal the presence of a hazard requiring urgent attention and to which law enforcement, fire or emergency medical personnel are expected to respond. The following devices shall not constitute an alarm system:

1. Smoke alarms;
2. Other alarms designated to merely give internal on-premises notification of an alarm condition;
3. Alarm devices affixed to motor vehicles;
4. Hand-held personal safety devices not connected to a central monitoring system or station;

5. Security alarm systems which are not monitored by an alarm monitoring company.

"Alarm User" means any person who has an operational alarm system on premises under the person"s control.

"ANSI/SIA Control Panel Standard CP-01" means the ANSI - American National Standard Institute approved security industry association - SIA CP-01 Control Panel Standard, as may be updated from time to time, that details recommended design features for security system control panels and their associated arming and disarming devices to reduce the incidence of false alarms. Control panels built and tested to this standard or any subsequent standard established by Underwriters Laboratory (UL), or other nationally recognized testing organizations, will be marked to state: "Design evaluated in accordance with SIA CP-01 Control Panel Standard Features for False Alarm Reduction."

"Automatic Dialing Device" means an alarm system which automatically sends over regular telephone lines, by direct dialing or otherwise, a prerecorded voice message or coded signal indicating the existence of the emergency situation the alarm system is designed to detect.

"Board" means the Board of Electrical Appeals.

"Certified alarm installer" means an individual who holds a certificate issued by the City of Wichita, evidencing such person to be qualified to install, service, maintain, repair and replace residential and commercial alarm systems.

"Chief of Police" means the Chief of Police of the City or a designated representative.

"City" means the City of Wichita, Kansas.

"City Attorney" means the City Attorney or Director of Law of the City or a designated representative.

"City Manager" means the City Manager of the City or a designated representative.

"City Treasurer" means the City Treasurer of the City or a designated representative.

"Communications center" means the Sedgwick County Department of Emergency Communications.

"Direct connect" means an alarm system which has the capability of transmission and reception of alarm system signals directly to the communications center.

"Director of Emergency Communications" means the Director of the Sedgwick County Department of Emergency Communications or a designated representative.

"Director of Metropolitan Area Building and Construction Department (MABCD)"means the Director of the Metropolitan Area Building and Construction Department (MABCD) of the City or a designated representative.

"Emergency medical personnel" means employees of the Sedgwick County Emergency Medical Service.

"False alarm" means: 1) the activation of an alarm system in the City resulting in a request for response by law enforcement, fire or emergency medical personnel when a situation requiring a response does not, in fact, exist at the time of activation of the alarm; or 2) an alarm system designed to be used to report a robbery or holdup, when used for any other purpose.

A false alarm may be the result of, but not limited to, mechanical or electronic failure, malfunction, improper installation, improper adjustment, accidental tripping, misoperation, misuse, defect or negligence of a person.

"Fire alarm" means an alarm to which fire personnel have been requested to be dispatched to respond.

"Fire alarm system" means an alarm system designed to signal the presence of a hazard requiring urgent attention and to which fire personnel are expected to respond.

"Fire Chief" means the Chief of the Wichita Fire Department or a designated representative.

"Fire personnel" means employees of the Wichita Fire Department.

"Governmental building alarm system" means any alarm system installed in any location owned or used by the United States government, the state and its political subdivisions, the City of Wichita or any agencies thereof. For the purposes of this Chapter, this shall include any location owned or used by public schools.

"Law enforcement personnel" means any person vested by law with a duty to maintain public order or to make arrests for violations of the laws of the state or ordinances of the City and includes regular and reserve personnel of the Wichita Police Department.

"MABCD" means the Metropolitan Area Building and Construction Department of the City.

"Medical alarm system" means an alarm system designed to signal the presence of a hazard requiring urgent attention and to which emergency medical personnel are expected to respond.

"Multiple alarm system" means any of the following:

a. Separate structures each having their own alarm system which are located at the same street address and are owned by the same person or business; or

b. A single structure which has more than one alarm system, or more than one alarm business monitoring alarms within the structure.

"Person" means any person, firm, partnership, association, corporation, company or organization of any kind.

"Security alarm" means an alarm to which law enforcement personnel have been requested to be dispatched to respond.

"Security alarm system" means an alarm system designed to signal the presence of a hazard requiring urgent attention and to which law enforcement personnel are expected to respond.

"Smoke alarm" means a single- or multiple-station alarm responsive to smoke and not connected to a system.

"UBTC" means the Wichita-Sedgwick County Unified Building and Trade Code.

Sec. 3.41.025. Direct connection and automatic dialing prohibited—Exceptions—Penalty.

All direct connections, direct-dials, or automatic-dialing devices of alarm systems to the communications center shall be prohibited except governmental building alarm systems. It is unlawful for any person to use a randomized automatic dialing device to dial directly into the communications center whether by dialing 911 or otherwise. Every person who is convicted of violating this Section shall be guilty of a misdemeanor.

Sec. 3.41.030. License required.

(a) It is unlawful for any person to engage in the operation of an alarm business within the City without having first obtained a license to operate such a business from the City Treasurer.

(b) Any person who violates the provisions of this Section shall be guilty of a misdemeanor and shall be punished by a fine of not more than $500.00 or imprisonment of a term not to exceed six months or by both such fine and imprisonment.

Sec. 3.41.035. Certifications—Persons engaged in installation or repair of alarm systems.

(a) It is unlawful for any person to engage in the altering, installing, maintaining, repairing or servicing of an alarm system within the City limits, or causing the same to take place without having been certified for the particular classification of system involved.

(b) Any person desiring to engage in or work in the business of installing, repairing or altering alarm systems shall make application to the MABCD for a certificate.

(c) A security alarm certificate issued to an individual wishing to engage in the business of or perform the act of installing, repairing or replacing security alarm systems shall authorize such individual to engage in such activities.

(d) No certificate shall be issued to any individual to install security systems who is not certified by the Kansas Electronic Security Alliance, Electronic Security Association, or other national testing agency with a test designed specifically for alarms.

(e) A fire alarm certificate issued to an individual wishing to engage in the business of or perform the act of installing, repairing or replacing fire alarm systems shall authorize such individual to engage in such activities.

(f) No certificate shall be issued to any individual to install, repair or replace fire alarm systems who is not certified by the National Institute for Certification in Engineering Technologies (NICET II, III or IV) or the International Municipal Signal Association (IMSA I or II).

(g) The fee for certificates shall be established by the Director of MABCD to cover the administrative costs of issuing such certificates. All such certificates shall be renewed every two years upon payment of a fee established by the Director of MABCD to cover the administrative costs of issuing such certificates. All certificates expire on the 31st day of December of each odd-numbered year and no reduction shall be made for part of the year being elapsed. Certificates which have not been renewed by March 1st after their expiration, may be subject to appearance before the Board prior to reissuance of a certificate.

(h) The Board of Electrical Appeals is authorized to cancel, suspend and/or revoke the certificate of any alarm installer issued by the MABCD.

Sec. 3.41.038. Apprentice and/or helper.

An apprentice or helper shall be permitted to perform the act of installing, repairing or replacing any alarm system within the City when he or she is on the job site with and under the direct supervision of an alarm technician certified by Section 3.41.035 of this code. Both individuals must be employed by a licensed alarm contractor. If an apprentice or helper works without the required supervision, both the alarm contractor and the apprentice/helper shall be guilty of violating the terms of this Chapter.

Sec. 3.41.040. License fee.

(a) Each application for an alarm business license, whether a new application, renewal, as a result of a license revocation, or due to a change in business ownership or other status shall be accompanied by an annual fee of $100.00.

Sec. 3.41.050. License application—form and content.

(a) Any person wanting to obtain a license to operate an alarm business in the City shall make application on a form provided therefore to the City Treasurer. Said application shall be verified, accompanied by the required application fee and contain at a minimum the following information:

(1) Date of application;

(2) Name, address and telephone number of the business and type of business organization (individual, partnership, corporation or limited liability company). If an individual, the name, date of birth, race, sex, address, telephone number and email address of the proposed licensee; if the business is a partnership, corporation or limited liability company, the same information required of an individual applicant is required of all partners, officers, or members of the business.

(3) The name, telephone number and email address of a primary contact person to whom any inquiries regarding the license application may be directed;

(4) Any name under which the applicant will be doing business as ("dba") if different from the name provided in subsection (2), however, a business shall be limited to only one "dba" name per license, and must obtain a separate license for any additional "dba" name.

(5) Name, address, telephone number and email address of the person certified, as required by Section 3.41.035 of this code, who is responsible for repair and maintenance of the alarm systems;

(6) A list of all felony convictions of any person required to be named on the application;

(7) A statement that monitoring for the alarm systems leased or installed by the alarm business will be offered on a 24-hour, seven-day-a-week basis;

(8) A statement that the applicant and all agents, representatives and employees of the applicant will, at all times, comply with all the laws of the United States and state, ordinances of the City and resolutions of Sedgwick County in the operation of the alarm business;

(9) The applicant will provide a statement that no agent, representative or employee of the applicant whose duties include entry into personal residences or any other premises is a registered sex offender, and that applicant has, subject to audit by the Chief of Police, performed the necessary background check of any agent, representative or employee to insure that such statement is correct.

(10) A copy of such person's certification as required by Section 3.41.035 if such person is also engaged in the business of or engages in the altering, installing, maintaining, repairing or servicing alarm systems. For purposes of this subsection, a license may be issued to any firm, co-partnership or corporation of which at least one active member or officer who devotes full-time to the firm, co-partnership or corporation has received such certification;

(11) A statement certifying that the alarm business has provided to the Alarm Administrator or his or her designee a complete and current customer list in a format acceptable to the Alarm Administrator or a designated representative;

(12) Proof of general liability insurance coverage. Such insurance policy shall be written with an insurance company licensed to do business in the state and shall have minimum limits of coverage of $300,000.00 per occurrence; and

(13) A Certificate of Good Standing from Kansas, or other state of incorporation or registration, if the applicant is a corporation, partnership or limited liability company.

(b) The application must be signed by an individual applicant personally; a partnership application must be signed and acknowledged by a partner; a corporation or limited liability company application must be signed by an officer of the corporation or a member of the limited liability company legally authorized to sign corporation or company documents.

(c) All applicants shall, in addition to the payment of the above fees, submit payment to the Alarm Administrator of all fees and/or penalties assessed under the terms of this Chapter prior to submitting the license application as a requirement of completing the application process.

Sec. 3.41.060. Investigation of application—Issuance, term, posting and renewal of license, license nontransferable.

(a) Upon receipt of an application for an alarm business license and payment of the required fees, the City Treasurer shall refer the application to the Chief of Police, Director of MABCD and the City Attorney for investigation and recommendation regarding issuance of the license. Approval shall be recommended so long as the application is complete and provides all required information, except that no license shall be issued for any of the following reasons:

(1) Any individual applicant, or, if the applicant is a corporation, partnership or other business entity, any owner, manager, partner, director, officer or member of the business has ever been convicted of a felony;

(2) If the applicant, within two years immediately preceding the date of making application, has violated any provision or requirement of this Chapter;

(3) If the alarm business to be licensed owes any fees and/or penalties assessed in accordance with this Chapter.

(4) If the alarm business to be licensed has failed to provide to the Alarm Administrator, at the time of license application, a complete and current customer list in a format acceptable to the Alarm Administrator; or.

(5) If the alarm business to be licensed has failed to provide proof of current liability insurance as required by Section 3.41.050 by submitting such proof with the license application.

(6) If the applicant has failed to provide a statement that no agent, representative or employee of the applicant whose duties include entry into personal residences or any other premises is a registered sex offender, or has failed to perform the necessary background check of any agent, representative or employee to insure that such statement is correct.

(b) For the purposes of this Section, the filing of charges or a conviction in a court of law is not required to establish that a licensee or applicant has violated any of provisions or requirements of this Chapter. A copy of a journal entry showing the disposition of such a violation from any local or state court shall be considered prima facia evidence of a violation. A conviction shall include being adjudged guilty upon entering a plea of no contest, but shall not include being placed on diversion.

(c) Upon favorable recommendation of the Chief of Police, Director of MABCD, and the City Attorney, the City Treasurer shall issue an alarm business license to an applicant.

(d) A license issued pursuant to the terms of this Chapter shall be displayed and available for inspection on the business premises of the licensee.

(e) A license issued under the terms of this Chapter shall be for a term of one year from the date of issuance, which term or fee shall not be adjusted or extended for late renewal applications. Renewal of such license shall be accomplished in the same manner as issuance of the initial license.

(f) No license issued under this Chapter shall be transferable or assignable. Such license shall be issued for one particular business entity, which shall be stated in the application, and may not be transferred to any other business entity upon sale or change of ownership thereof.

(g) No license will be issued under this Chapter for more than one name under which the licensee will be doing business ("dba") if different from the name provided in Section 3.41.050(a)(2). A business shall be limited to only one "dba" name per license and must obtain a separate license for any additional "dba" name.

(h) If an applicant is denied an alarm business license under this Section, the applicant has the right to appeal by following the procedure as set forth in Section 3.41.080. If an appeal is not filed within ten business days, the denial shall be final.

Sec. 3.41.070. Revocation or suspension of license.

(a) Any license issued under this Chapter may be suspended, for a period not to exceed 30 calendar days, or revoked by the Chief of Police, the Director of MABCD, or the City Treasurer if it is determined that the licensee, or if the licensee is an organization, any of its officers, directors, partners, associates or employees has:

(1) Made any false statement or given any false information in connection with an application for a license or a renewal or a reinstatement thereof;

(2) Violated any provision of this Chapter;

(3) Committed any act which would be grounds for denial of an application for a license or otherwise becomes ineligible for a license;

(4) Failed to pay the annual license fee or any other fees or penalties assessed under this Chapter.

(b) If the Chief of Police, the Director of MABCD, or City Treasurer suspends or revokes an alarm business license under the provisions of this Section, the licensee shall be notified in writing,

which notice shall be either personally served upon the licensee or sent by certified mail, return receipt requested. The written notice of the suspension or revocation shall include:

(1) The reason for suspension or revocation;

(2) The effective time and date of the suspension or revocation;

(3) If a suspension, the length of time of such suspension;

(4) If applicable, a statement regarding any action which may be taken so the license may be reinstated;

(5) The date by which the licensee must surrender the license to the City Treasurer; and

(6) A statement of the right to reconsideration of, and appeal from, the revocation and the procedure to be followed as required in Section 3.41.080.

(c) If an appeal is not filed within ten business days, the action of the Chief of Police, the Director of MABCD, or the City Treasurer shall be final.

(d) If a license is suspended under this Section, the license may be reinstated if the reason for suspension is removed and the Alarm Administrator is notified in writing of such removal.

(e) If a license is revoked under this Section, the former licensee shall not be issued a new license for a period of not less than two years from the date of revocation. Engaging in the operation of an alarm business within the City without a business license shall constitute a violation of Section 3.41.030 of this Chapter, and shall be punishable as set forth therein.

Sec. 3.41.080. Appeal procedure.

(a) Any applicant or licensee aggrieved by the denial, suspension, or revocation of an alarm license may file with the City Clerk a written Notice of Appeal to the City Council within ten business days of the decision by the Chief of Police, Director of MABCD or City Treasurer . The Notice of Appeal shall specify:

(1) The name and address of the appellant;

(2) The date of application;

(3) The date of the denial, suspension, or revocation of the license or application;

(4) The factual basis for the appeal.

(b) Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before the City Council, no later than 30 calendar days from the date of the filing of the Notice of Appeal with the City Clerk The City Clerk shall also notify the Chief of Police, Director of MABCD, Law Department and/or City Treasurer who shall prepare the record of denial, suspension or revocation and forward all documentation for review to the City Clerk within ten business days.

(c) Any appeal shall stay the only the suspension or revocation of the license until the matter is heard by the City Council.

(d) The City Council may approve the denial, suspension, or revocation, overrule the denial or suspension, or modify the decision of the Chief of Police, Director of MABCD, Law Department, or City Treasurer. The decision of the City Council shall be effective immediately. All appeals to the governing body shall be on the record.

(e) The Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation, or suspension of the license by the City Council.

Sec. 3.41.090. Installation requirements.

(a) All alarm systems or any of its component parts shall be installed in accordance with Section 4 of the UBTC.

(b) Fire alarm systems shall be installed in accordance with the provisions of Title 15 of the City of Wichita Code and Sections 2 and 4 of the UBTC.

(c) Upon enactment of this ordinance, alarm installation companies shall use only ANSI/SIA CP-01 listed alarm control panels on new installations, panel replacements or upgrades of security alarm systems.

(d) It is unlawful for any person to install or replace a fire alarm system unless a permit has been issued for such work. Permits and inspection shall be obtained as required by Section 4 of the UBTC.

Fire Alarm System Installation
Permit Fee Schedule

0—10 Devices	$50.00
11—25 Devices	$90.00
26—100 Devices	$140.00
101—200 Devices	$200.00
201—400 Devices	$350.00
401—600 Devices	$525.00
Over 600 Devices	$525.00 plus $50.00 for each additional 100 devices or fraction thereof

(1) Any person who installs any fire alarm devices for which a permit and inspection are required without first obtaining a permit shall pay a special permit fee of double the amount of the permit issuance as listed above.

(2) Where extra inspections are made because of faulty construction or failure to make necessary repairs, a fee established by the Director of MABCD to cover the administrative costs may be charged for each inspection.

(3) Reserved.

(4) Every permit issued by MABCD under the provisions of this Code shall expire by limitation and become null and void if the work authorized by the permit is not commenced within 180 calendar days from the date of such permit, or if the work authorized by such permit is suspended or abandoned at any time after the work is commenced for a period of 180 calendar days, or 180 calendar days have expired since an inspection, as required by Section 4 of the UBTC was requested and such inspection was approved by the building authority.

Sec. 3.41.100. Alarm business required operational practices.

Each alarm business licensed under this Chapter will be required to conduct its operations in compliance with the following standards and practices:

(a) It shall be the responsibility of the alarm business, at time of installation of an alarm system, to:

(1) Offer service either directly or through an agent for that alarm system on a 24-hour, seven-day-a-week basis for the purposes of repairing or servicing the system to correct any malfunctions which may occur. This information shall be provided in writing at the time of the lease or installation. The alarm business shall have a person certified, pursuant to Section 3.41.035, who is responsible for repair and maintenance of the alarm system.

(2) Provide the Alarm User written instructions on how to operate the system and any user maintenance which may be required. These instructions shall be clear, concise and in language the Alarm User can read and understand.

(3) Provide the Alarm User a written copy of the City of Wichita's false alarm penalties and procedures, provided by the Alarm Administrator.

(b) An alarm monitoring company, at the time of alarm activation, shall attempt to verify each alarm signal, utilizing ECV (Enhanced Call Verification) before contacting the communications center for a response; except hold-up, panic, medical or fire alarm signals, which must be dispatched immediately upon receipt of such signals per City Code 15.01.010.

(c) An alarm monitoring company, when contacting the communication center regarding an alarm, shall provide the Alarm User's name, address, permit number, and a description of the zone coverage for the

alarm. For the purpose of clarity and uniformity in the reporting of alarm conditions to the communications center by alarm monitoring companies, the Director Of Emergency Communications shall establish such rules and regulations as are reasonably necessary.

(d) At the time of licensing or renewal of a license issued pursuant to this Chapter, each alarm business shall submit to the Alarm Administrator, or a designated representative, a current and complete customer list in a format acceptable to the Alarm Administrator. Such information shall remain confidential, shall not be released to the public and shall be used to assist in creating tracking and response data by the Alarm Administrator.

Sec. 3.41.110. Alarm system registration fee.

(a) Each alarm system for which the Alarm User elects to have law enforcement or fire personnel response must be registered with the Alarm Administrator for a fee of $25.00. Renewals shall be subject to the same fee as initial registrations. No registration or renewal fees shall be charged for governmental building alarm systems.

Sec. 3.41.115. Alarm system registration and annual renewal by alarm user.

(a) It shall be the responsibility of the Alarm User to register their alarm system(s) with the Alarm Administrator within five business days of installation. Registration shall be completed using a form provided by the Alarm Administrator and shall be subject to the registration fee set forth in Section 3.41.110.

(b) Medical alarm systems shall not be required to be registered with the Alarm Administrator. However, if an alarm activation from a medical alarm system is received by the communication center requesting law enforcement personnel response for any situation other than a medical emergency, the system shall then be subject to registration with the Alarm Administrator and all fees and/or penalties shall also apply as set forth in this Chapter.

(c) All registrations shall include the following information:

(1) The address of the Alarm Site where the alarm system is located;

(2) The name, complete address, and telephone number of the Alarm User or designated representative who will be responsible for the proper maintenance and operation of the alarm system;

(3) The classification of the Alarm Site as residential, commercial, medical only, or government alarm system;

(4) Mailing address, if different from the address of the Alarm Site;

(5) The name, complete address and telephone number of the designated representative(s) who respond to the Alarm Site in the event the Alarm User is unable to respond to allow law enforcement, fire or emergency medical personnel access to the location;

(6) The name, complete address and telephone number of the alarm business responsible for the installation of the alarm system;

(7) The name, complete address and telephone number of the alarm business responsible for monitoring the alarm system, if different from the installation business.

(d) Alarm registrations shall expire one year after the date of issuance, which term or fee shall not be adjusted or extended for late renewals. The Alarm Administrator shall notify the Alarm User of the necessity to renew the alarm registration 30 calendar days prior to the expiration date.

(e) No fee shall be assessed for registration renewals if the Alarm User has not had a false alarm, as defined by this Chapter, within the 12 months preceding the registration renewal date.

(f) On the renewal form provided by the Alarm Administrator, the Alarm User shall verify that all contact and alarm business information on file with the Alarm Administrator is correct. All in-

correct information must be corrected with the Alarm Administrator within ten business days of the renewal notification.

(g) No registrations issued under this Chapter shall be transferable. Any change of address or ownership of a business or residence shall require the alarm system to be re-registered and shall be subject to the fee set forth in Section 3.41.110.

(h) It is unlawful for any Alarm User or the owner of any premises with an alarm system to operate or use an alarm system or allow operation or use of an alarm without the alarm being registered. Pursuant to Section 3.41.120(b), an administrative penalty of $150.00 shall be assessed against the Alarm User for failure to register or renew the registration of the system after being notified by the Alarm Administrator of the need to register or renew the alarm system.

(i) All information provided on registration and renewal forms shall remain confidential, shall not be released to the public and shall be used to assist in creating tracking and response data by the Alarm Administrator. The Alarm Administrator shall have the right to audit the information provided to verify its accuracy.

Sec. 3.41.118. Duties of alarm users.

It shall be the responsibility of the Alarm User to:

(a) Register and annually renew their alarm system with the Alarm Administrator as set forth in Section 3.41.115;

(b) Maintain the premises and alarm system in a manner that will reduce or eliminate false alarms;

(c) Respond or cause a representative to respond to the alarm system's location within 30 minutes upon notification of an alarm activation, to provide the right of entry to the premises for law enforcement, fire, or emergency medical personnel, or to provide alternative security for the premises;

(d) Ensure that an alarm is not manually activated by the Alarm User or any other person for any reason other than an occurrence of an event that the alarm system was intended to report;

(e) Notify the Alarm Administrator if there is a change of address or ownership of a business or residence, change of alarm monitoring company for the location or if there is updated information, within ten business days of the change occurring.

Sec. 3.41.120. False alarm fee and disputes.

(a) Except as otherwise provided in this Chapter, an Alarm User to which law enforcement personnel or fire personnel are requested to respond to a false alarm, shall be charged a false alarm fee. The Alarm User shall be assessed the following fees for each false alarm:

Number Of Alarms	False Alarm Fee—Security Alarms	False Alarm Fee—Fire Alarm
1	$0.00	$0.00
2	$40.00	$100.00
3	$40.00	$100.00
4	$60.00	$150.00
5	$60.00	$150.00
6	$120.00	$300.00
7—9	$200.00	$500.00
10th or more	$350.00	$750.00

Graduated false alarm fees will be based only on the same type of previous false alarm. No response fee shall be charged for the first false alarm, regardless of type, each registration year.

False alarms resulting from the following shall not be counted against the Alarm User and no response fee shall be charged:

(1) When it is reasonable to assume that the alarm was due to violent conditions of nature including an electrical storm which have been verified by the National Weather Service to have been in the area where the alarm system is located at the time of the activation;

(2) Cable, line or power failure which has been specifically verified by the appropriate utility company serving the alarm location;

(3) For those alarms where the communications center is notified within four minutes of receipt of notification of the alarm that emergency medical, law enforcement or fire personnel are not required;

(4) For those alarms resulting from valid situations requiring an urgent response by law enforcement, fire or emergency medical personnel as verified by a report filed by such personnel; or

(5) For those alarms received from a medical alarm system;

(6) For alarms from governmental building alarm systems.

(b) If an alarm is received by the communications center from an alarm system which has not been registered or renewed with the City, as required in Section 3.41.115, an administrative penalty of $150.00 shall be assessed against the Alarm User for having failed to register or renew the system. Such penalty shall be in addition to the false alarm charges assessed to the alarm user.

(c) Should a disagreement arise over whether any particular false alarm fee or administrative penalty should be assessed, the facts surrounding the circumstances of the alarm activation shall, within 30 calendar days of the date of the first invoice for the alarm, be presented in writing by the Alarm User, along with a $10.00 administrative fee for each false alarm being disputed, to the Alarm Administrator. The Alarm Administrator shall promptly forward the written fee dispute to the Chief of Police or for fire alarms, the Chief of the Wichita Fire Department. The Chief of Police or the Fire Chief shall, after consideration of all the information presented, determine whether a false alarm fee should be assessed. In the event of determination that no false alarm fee should be assessed, the $10.00 administrative fee shall be refunded to the Alarm User or alarm business, provided the Alarm User does not have any other outstanding fees owed. Failure to submit an appeal within 30 calendar days of notification shall constitute a waiver of the right to contest the assessment of the fees or penalties.

(d) If disagreement still exists after consideration by the Chief of Police or the Fire Chief, the facts surrounding the alarm activation shall be presented to the City Manager who shall, after consideration of all the information presented, determine whether a false alarm fee should be assessed. All such disagreements must be presented in writing by the Alarm User or alarm business to the City Manager within 30 days after the date of notification of the Chief of Police's or Fire Chief's determination that a false alarm fee is due as a result of the particular alarm being questioned; otherwise the determination that the fee is due shall be deemed correct.

(e) In making the determinations required by subsections (d) and (e) of this Section, the Chief of Police, Fire Chief or the City Manager shall give consideration to the following, if presented, in addition to all other information presented:

(1) The purpose of this Chapter as expressed in Section 3.41.010 of this Code;

(2) The Alarm User's history of valid and false alarms;

(3) Violent conditions of nature, including electrical storms, existing at the time of the activation;

(4) Other circumstances not reasonably subject to control by the Alarm User or alarm business;

(5) Information from utility companies concerning cable, line or power failures or problems;

(6) Information from law enforcement, fire or emergency medical personnel who responded to the alarm activation; and

(7) The presence or absence of any direct or indirect evidence that a situation requiring an urgent response existed at the time of the alarm activation.

(f) The false alarm fee or administrative penalty under this Section shall be due and payable to the Alarm Administrator or a designated representative within 30 days after receipt of notification that such fee is due. Further, if the fee is not paid within 60 days of such notification, a late fee in the amount of $10.00 per alarm call shall be

added to the amount due. An additional late fee of $10.00 will be assessed on each false alarm fee which remains unpaid 90 days following notification. After 90 days, following notice to the Alarm User, the account may be turned over for collection. The City Attorney is authorized to use any legal means to recover the administrative penalties and fees assessed by this Chapter.

Sec. 3.41.123. Suspension of response.

(a) Response to alarm systems by law enforcement or fire personnel may be suspended if:

(1) An alarmed location has more than six false alarms during the 12-month registration period; and/or

(2) An alarmed location fails to pay fees or penalties as set forth in this Chapter.

(b) Written notice that the communication center will not respond to further alarms will be mailed to the Alarm User and any alarm monitoring company via certified mail, and shall specify the date on which response will be suspended, which date shall be no less than 30 calendar days from the date of the notice.

(c) Response may be reinstated if the alarm user:

(1) Pays, or otherwise resolves to the satisfaction of the Alarm Administrator, all fees and/or penalties: and

(2) Submits a certification from an alarm company, properly licensed by City of Wichita, stating that the alarm system has been inspected and repaired (if necessary), is in proper working order, and that the Alarm User has been re-trained on the proper use of the alarm system.

(d) Reinstatement of response will be effective within five business days of the Alarm Administrator's receipt of payment and certification by the alarm company.

Sec. 3.41.125. Duties and authority of the alarm administrator.

The Alarm Administrator shall:

(a) Establish a procedure for the notification to an Alarm User of a false alarm. The notice shall include the following information:

1. The date and time of law enforcement response to the false alarm; and
2. A statement urging the Alarm User to ensure that the alarm system is properly operated, inspected, and serviced in order to avoid false alarms and resulting fines.

(b) The Alarm Administrator may require a conference with an Alarm User and the alarm installation company and/or monitoring company responsible for the repair or monitoring of the alarm system to review the circumstances of each false alarm. For these purposes, the alarm company must have a designated contact on record with the Alarm Administrator.

(c) The Alarm Administrator may create and implement an on-line Alarm User Awareness Class. The Alarm Administrator may request the assistance of alarm associations, alarm companies and law enforcement agencies in developing and implementing the class. The class shall inform alarm users of the problems created by false alarms and teach Alarm Users how to avoid generating false alarms. Providing that the Alarm User does not have outstanding fees owed to the City of Wichita, A passing test score on the on-line test may be used to satisfy fees and/or penalties incurred for one false alarm per registration year. The class must be completed by the Alarm User within 60 days of receiving notification or assessment of a false alarm fee and/or penalty.

(d) The Alarm Administrator shall maintain statistics and records which may be utilized to determine the effectiveness of this Code in reducing false alarms. Such re-

cords shall include the number of registered alarm systems, the increase or decrease of registered alarm systems from the previous year, the number of false alarms each year, the decrease or increase in the number of false alarms and the total of all false alarm fees assessed and the amount of false alarm fees collected each year.

Sec. 3.41.128. Confidentiality of information.

All information submitted in compliance with this Chapter shall be held in strictest confidence; shall be deemed a public record exempt from disclosure; and shall be kept so the contents thereof shall not be known except to persons responsible for administration and enforcement of this Chapter. Nothing herein, however, shall prevent the use of such information for law enforcement purposes.

Sec. 3.41.130. Ad hoc committee.

(a) The City Council may appoint an ad hoc committee to advise the council on matters relating to alarm regulation.

(b) The membership of the ad hoc committee shall be as determined by the City Council.

(c) Upon completion of the work for which the committee was requested and submission of its report, the committee shall be dissolved.

Sec. 3.41.135. Penalty.

Except as otherwise provided for by this Chapter, every person who violates any of the provisions of this Chapter shall be guilty of a misdemeanor and shall be punished by a fine of not more than $500.00. Each day any violation of this Chapter continues shall constitute a separate offense.

Sec. 3.41.140. Validity.

Should any section, paragraph, sentence, clause or phrase of this Chapter be declared unconstitutional or invalid for any reason, the remainder shall not be affected thereby and shall remain in full force and effect, and the same shall not affect the validity of the remaining portions.

Sec. 3.41.145. Government immunity.

Alarm registration is not intended to, nor will it, create a contract, duty or obligation, either expressed or implied, of response. Any and all liability and consequential damage resulting from the failure to respond to a notification is hereby disclaimed and governmental immunity as provided by law is retained. By applying for an alarm registration, the Alarm User acknowledges that the Wichita Police Department response may be influenced by factors such as: the availability of police units, priority of calls, weather conditions, traffic conditions, emergency conditions, staffing levels and prior response history.

Sec. 3.41.150. Enforcement.

The Wichita Police Department, Wichita Fire Department and Metropolitan Area Building and Construction Department and the authorized representatives of such departments shall be responsible for the enforcement of all provisions of this Chapter.

CHAPTER 3.44. MISCELLANEOUS SALES

Sec. 3.44.100. Miscellaneous sales defined.
Sec. 3.44.110. License required—Fee.
Sec. 3.44.120. Regulations.
Sec. 3.44.130. Sale registration.

Sec. 3.44.100. Miscellaneous sales defined.

The term "miscellaneous sale" means any garage, basement, yard, rummage or other similar sale of six or more miscellaneous items that were originally purchased by the applicant for his or her ultimate use or consumption, or any sale limited exclusively to the sale of seasonal items other than fireworks including, but not limited to, Christmas trees and decorations, pumpkins, gourds and decorative corn, by schools, churches or other nonprofit organizations when conducted wholly by members of any such entity on any school, church or nonprofit organization property which is located along a collector street, arterial street or frontage road for an expressway or freeway, as those streets and roads are identified in the city's transportation plan.
(Ord. No. 42-484 § 1; Ord. No. 50-327 § 1, 9-27-16)

Sec. 3.44.110. License required—Fee.

No person shall conduct or carry on in the city a miscellaneous sale without having first obtained a license therefor and paid the license collector the required fee of two dollars and fifty cents per day.
(Ord. No. 39-908 § 2; Ord. No. 50-327 § 2, 9-27-16)

Sec. 3.44.120. Regulations.

All miscellaneous sales shall conform to the following regulations:

APPLICATION. Application for the miscellaneous sales shall be submitted to the city treasurer and such application shall contain a statement that all items comply with the definition outlined in Section 3.44.100.

SALES LIMITS. For all miscellaneous sales other than those limited exclusively to the sale of Christmas trees and decorations, only two sales per calendar year shall be permitted for any address and no more than one sale for any address shall be permitted within any six-month period. Each sale shall be limited to three consecutive days; provided, however, that schools, churches, and nonprofit organizations may conduct such sales with no restriction on the duration of the same when such sale is conducted for the sole benefit of such school, church or nonprofit organization, is conducted on school, church or commercial property, wholly by members of any such entity, and such school, church or nonprofit organization pays the fee as required in Section 3.44.110. For miscellaneous sales limited exclusively to the sale of Christmas trees and decorations, such sales shall be permitted only during the months of November and December. All such sales shall be conducted only between the hours of seven a.m. and ten p.m. and the site shall be maintained in a clean and orderly condition. All temporary fences, signage, fixtures, structures, material and equipment associated with such sales shall be removed from the site within ten days following the conclusion of the sale.

SIGNS. Signs advertising the sale allowed according to the provisions of Chapter 24.04 of the Code of the City of Wichita.
(Ord. No. 42-484 § 2; Ord. No. 50-327 § 3, 9-27-16)

Sec. 3.44.130. Sale registration.

Miscellaneous sales occurring outside of the city limits or estate sales occurring inside or outside of the city limits may complete the application and pay the applicable fee, as set forth above, to the city treasurer to have the sale listed on the city's website and mobile application of area garage/miscellaneous sales.
(Ord. No. 50-327 § 4, 9-27-16)

CHAPTER 3.48. MOTOR VEHICLE WRECKING

Sec. 3.48.001. Definitions.
Sec. 3.48.010. License required.
Sec. 3.48.020. Application for license—Issuance.
Sec. 3.48.030. Fee—Separate license for each place of business.
Sec. 3.48.040. Transfer of license prohibited.
Sec. 3.48.050. Regulations.

Sec. 3.48.001. Definitions.

"Motor vehicle wrecking," means anyone engaged in the business of buying, acquiring or dealing in motor vehicles of a type usually licensed by the state, and which motor vehicles are intended to be wrecked, dismantled or disassembled; or anyone who maintains or uses any building, premises or place to work, dismantle or disassemble any such motor vehicle, and who possesses for sale, offers to sell, or sells any part of any motor vehicle wrecked, dismantled, or disassembled at such building, premises or place; or anyone who stores, or who causes, suffers or allows to remain, on any lot or parcel of land, three or more motor vehicles of a type usually licensed under the laws of the state, and from which parts have been, or are to be, removed, or which for more than thirty days have not been capable of operation under their own power.
(Ord. No. 27-925 § 1)

Sec. 3.48.010. License required.

It is unlawful for any person to engage in the operation of a motor vehicle wrecker business within the city, unless such person has procured from the city a license to engage in such business. No person shall be granted a license to engage in such business or occupation unless such applicant possesses, controls, uses or has the use of a premises where the business can be lawfully conducted and shall have an office at such location.
(Ord. No. 27-925 § 2)

Sec. 3.48.020. Application for license—Issuance.

Upon the filing with the city treasurer of an application for a license to engage in the business or occupation regulated by this chapter, it shall be the duty of the city treasurer to cause the application to be investigated, and if the facts therein stated are true and it shall be shown that the applicant is qualified as required by this chapter, he shall approve such application and issue a license to the applicant.
(Ord. No. 27-925 § 3)

Sec. 3.48.030. Fee—Separate license for each place of business.

At the time of the granting of the license required by this chapter, there shall be paid to the city treasurer the sum of seventy-five dollars, provided, however, that on and after July 1, 1986, the fee for such license shall be one hundred dollars, payable semiannually on April first and October first. Each licensee shall be required to procure one license for each place of business, operated by such person within the corporate limits of the city.
(Ord. No. 39-250 § 5)

Sec. 3.48.040. Transfer of license prohibited.

No license issued under the terms of this chapter shall be transferable.
(Ord. No. 27-925 § 5)

Sec. 3.48.050. Regulations.

Each person engaged in the business as a motor vehicle wrecker shall comply with the following regulations:

BUILDING AND FENCE REQUIREMENTS. The activities of a motor vehicle wrecker shall be conducted entirely within an enclosed building; provided, that should the property so used exceed an area of fifteen thousand square feet, the council may grant permission to enclose the property with a fence or wall, and no motor vehicle or part thereof shall be parked, stored or displayed on the outside of such building, fence or wall. Fencing shall conform in all respects to the zoning ordinance when applicable. Solid fencing requirements may be waived by the council for nonconforming uses, when the property is not adjacent to residential zoning districts, and the property is enclosed by a six-foot high, chain link or woven

wire fence, with a three-strand barbed wire extension at the top completely enclosing the business operation.

Premises which may not conform with the building or the fence requirement of this section, but at which the business of a motor vehicle wrecker is being conducted on November 13, 1964, shall be brought into conformity with this section within ninety days after such date.

REGISTER. Every motor vehicle wrecker shall keep a bound "book of records" in which, at the time of acquiring or purchasing any motor vehicle, he shall record in ink a full and accurate record of such transaction, which record shall at all times be accessible to the police department and shall include the following:

1. The date of purchase.
2. The name and address of the person from whom the same was purchased.
3. The make and type of car, truck, tractor or accessory.
4. The number of the engine and license number of automobile or truck purchased or the identifying number of the accessories purchased.

A copy of each entry into the "book of records" shall be furnished to the police department each month.
(Ord. No. 27-925 § 6)

CHAPTER 3.49. WRECKER SERVICES

Sec. 3.49.010. Definitions.
Sec. 3.49.020. License—Required—Nontransferable—Expiration date—Location.
Sec. 3.49.030. License—Application—Fees—Renewal.
Sec. 3.49.040. License—Issuance—Storage facilities.
Sec. 3.49.050. License—Display.
Sec. 3.49.060. License—Refusal to issue or renew.
Sec. 3.49.070. License—Suspension.
Sec. 3.49.080. License—Revocation.
Sec. 3.49.090. Reserved.
Sec. 3.49.100. Powers and duties of Chief of Police.
Sec. 3.49.110. Emergency wrecker dispatched service call procedures.
Sec. 3.49.120. Reserved.
Sec. 3.49.125. Impounded vehicles.
Sec. 3.49.130. Fees for emergency wrecker service.
Sec. 3.49.140. Requirements and operating procedures for emergency wrecker service.
Sec. 3.49.150. Right of inspection.
Sec. 3.49.160. Compliance with State Law.
Sec. 3.49.170. Reserved.
Sec. 3.49.180. Reserved.
Sec. 3.49.190. Driving or directing wrecker to scene of accident prohibited—Exceptions.
Sec. 3.49.200. Wrecker operator to furnish name of person or agency requesting service.
Sec. 3.49.210. Soliciting wrecker business at scene of accident prohibited—Presence at scene as evidence of violation.
Sec. 3.49.215. Operator's certificate required.
Sec. 3.49.220. Emergency wrecker service operator.
Sec. 3.49.225. Qualifications for emergency wrecker services operator certificate.
Sec. 3.49.230. Application for emergency wrecker operator's certificate.
Sec. 3.49.235. Investigation.
Sec. 3.49.240. Fee.
Sec. 3.49.245. Reserved.
Sec. 3.49.255. Renewal.
Sec. 3.49.260. Certificate.
Sec. 3.49.265. Suspension or revocation of certificate.
Sec. 3.49.270. Appeal procedure for denial, suspension or revocation of emergency wrecker company license or denial, suspension or revocation of operator's certificate.
Sec. 3.49.275. Penalty for violation.

Sec. 3.49.010. Definitions.

Unless otherwise specified in this Chapter, the following terms, as used in this Chapter, mean as follows:

Accident means any occurrence which renders a vehicle wrecked or disabled as defined in this section.

Authorized public agency means an officer of the police department, the Sedgwick County Sheriff's Office, the Kansas Highway Patrol, an employee for the Sedgwick County or City Fire Department or a dispatcher for the Special Police Information Data Entry and Retrieval Unit (SPIDER) of the police department.

Chief of Police means the Chief of Police for the City of Wichita and his or her designee.

Dispatched service call means an occasion when the dispatcher for the Special Police Information Data Entry and Retrieval Unit (SPIDER) of the Wichita Police Department calls licensed emergency wrecker at the request of the owner or person in charge of a wrecked or disabled vehicle or at the request of a law enforcement officer to remove a vehicle because it is wrecked or disabled.

Emergency wrecker company means a person who owns, controls, or has a financial interest in an emergency wrecker service.

Emergency wrecker service means the business of towing wrecked vehicles from the streets of the City upon request of an authorized public agency.

Heavy tow means the towing of any vehicle with a Gross Vehicle Weight greater than 10,000 pounds and that is on a roadway, level shoulder, or other level surface that can be accessed with a tow truck.

Impounded vehicle means any wrecked or disabled vehicle or any other vehicle which has been towed by order of an authorized public agency and which is not to be released except by authority of an authorized public agency.

Lack of fitness means crimes that would endanger the safety of the public by risk of personal safety or to the safety of a citizen's property.

Licensee means a person licensed to engage in emergency wrecker service.

Moral Turpitude means crimes of intent, including but not limited to: committing fraud, larceny, murder, rape, robbery, arson, theft, assault, kidnapping, embezzlement, burglary, transport-

ing stolen property, extortion, blackmail, forgery, knowingly receiving stolen property, perjury, willful tax evasion, issuing bad checks, bribery, counterfeiting, contributing to the delinquency of a minor, lewdness, human trafficking, prostitution or attempts to engage in any of the above behavior or crimes.

Motor vehicle means every vehicle which is self-propelled, and which has a vehicle identification number.

Owner means any person who holds the legal title of a vehicle or who has the legal right of possession thereof, or the legal right of control of a vehicle.

Specialized tow means any tow which requires the up-righting of a vehicle, winching over 30 feet or the removal of a submerged vehicle from a body of water.

Standard tow means the towing of any vehicle with a Gross Vehicle Weight less than 5,000 pounds and that is on a roadway, level shoulder, or other level surface that can be accessed with a tow truck.

Street means any street, alley, avenue, lane, public place, square or highway within the corporate limits of the City.

Vehicle means every device in, upon or by which any person or property is or may be transported or drawn upon a street, which has a vehicle identification number, except devices moved by human power or used exclusively upon stationary rails or tracks.

Vehicle Identification Number means an identifying number, serial number, engine number, transmission number or other distinguishing number or mark, placed on a vehicle, engine, transmission or other essential part by its manufacturer or by authority of the division of vehicles or Kansas Highway Patrol or in accordance with the laws of another state or county.

Wrecked vehicle means any vehicle that has been damaged as the result of colliding with another vehicle or object so as to reasonably necessitate that such vehicle be removed by a wrecker.

Wrecker means any motor vehicle designed to be used primarily for removing wrecked or disabled vehicles upon any street.

Wrecker contractor means the Emergency Wrecker service company or companies who have been awarded a contract by the City of Wichita, after a competitive selection process, for the impounding of motor vehicles by the Wichita Police Department.

Wrecker rotation list means a list of wrecker companies licensed on June 1st of each year, maintained by the Chief of Police, as provided for in this Chapter.

(Ord. 45-668 § 1; Ord. No. 36-968 (part); Ord. No. 49-207, § 1, 2-28-12; Ord. No. 51-352, § 1, 10-13-20; Ord. No. 52-047, § 1, 4-4-23)

Sec. 3.49.020. License—Required—Nontransferable—Expiration date—Location.

No persons may engage in emergency wrecker service inside the City without first obtaining an emergency wrecker company license from the City. Only one license may be issued to each emergency wrecker company. A license is not assignable or transferable. Emergency wrecker company licenses shall be for a twelve-month period. Such licenses shall be renewed on June 1st of each year. The term of licenses shall be from June 1st to May 31st. The license issued to an emergency wrecker company authorizes the licensee and all its bona fide employees to engage in emergency wrecker service. Any person engaging in emergency wrecker services inside the City shall operate from a single location inside the City.

(Ord. No. 35-599 (part); Ord. No. 48-758, § 1, 6-22-10; Ord. No. 49-174, § 1, 12-20-11; Ord. No. 49-207, § 2, 2-28-12; Ord. No. 51-716, § 1, 2-22-22; Ord. No. 51-745, § 1, 4-26-22; Ord. No. 51-855, § 1, 5-10-22)

Sec. 3.49.030. License—Application—Fees—Renewal.

(a) A person desiring to engage in emergency wrecker service in the City shall file with the City Treasurer a written application upon a form provided for that purpose, which must be signed

by the applicant or the applicant's authorized agent. Applications will only be accepted by the City Treasurer from March 1st to April 30th each year for the renewal of or a new application for a license. The following information is required in the application:

(1) Business name, address and telephone number of the emergency wrecker company;

(2) Number and types of wreckers to be operated;

(3) Vehicle identification number of each wrecker;

(4) The location of the facilities to be owned or leased by the applicant for the purpose of operating the emergency wrecker service;

(5) The name, address and telephone number of the owner of the emergency wrecker company;

(6) An agreement that the applicant will participate in the wrecker rotation list;

(7) Proof that the applicant has secured the payment of compensation to the applicant's employees as set forth in K.S.A. 44-532(b) and amendments thereto;

(8) A maximum fee schedule for standard towing, heavy duty towing, specialized towing, storage, mileage, and all other fees including fuel surcharges and any additional administrative fees;

(9) A copy of the wrecker service's certificate of public service from the Kansas Corporation Commission;

(10) A list of all personnel who are employed by the licensee and will, at any time, be required to operate an emergency wrecker. The licensee shall provide the employee's name, date of birth, driver's license number and class of issued driver's license. Drivers are to be employees of the licensee. Independent contractors are not allowed to operate an emergency wrecker vehicle or tow vehicles pursuant to this Chapter;

(11) A certification, pursuant to Section 3.02.010 of the Code of the City of Wichita, by the applicant that he or she does not owe any personal property taxes, motor vehicle taxes, or real estate taxes to Sedgwick County, Kansas which are delinquent for any real or personal property utilized for the business or storage of vehicles as part of an emergency wrecker company. No license shall be issued to a person owing delinquent taxes or certifying a false statement;

(12) A certification that there is no violation within the last ten years by the licensee or applicant of a city, state, or federal law for a crime of moral turpitude, financial crime, theft, false writing or felony or misdemeanor crime that indicates a lack of fitness of the applicant to perform emergency wrecker services; and

(13) A certification that the licensee or applicant has not been arrested within last twelve months for or is currently under indictment or a criminal charge for or convicted of violations of city, state or federal law for a crime of moral turpitude, financial crime, theft, false writing or felony or misdemeanor crime that indicates a lack of fitness of the applicant to perform emergency wrecker services.

(b) A fee of $50.00 for processing the initial application or any renewals thereof must be submitted with the application; this fee accompanying the applicant shall not be refundable.

(c) Every license issued pursuant to this Chapter shall terminate at the expiration of 12 months from the date of issuance, unless sooner revoked, and must be renewed before operation of an emergency wrecker service is allowed to continue. Anyone desiring to renew a license shall follow the procedures in subsection (a) of this Section for an initial application.

(d) Failure to submit a schedule of fees with the annual application will result in utilizing the last schedule of fees submitted by the licensee.
(Ord. No. 46-551 § 1; Ord. No. 48-758, § 2, 6-22-10; Ord. No. 49-207, § 3, 2-28-12; Ord. No. 49-886, § 1, 11-25-14; Ord. No. 51-352, § 2, 10-13-20; Ord. No. 52-047, § 2, 4-4-23)

Sec. 3.49.040. License—Issuance—Storage facilities.

The City Treasurer shall, after approval from the Chief of Police, issue a license to participate in the emergency wrecker service to applicants complying with the provisions of this Chapter and shall issue an emergency wrecker license. No license authorizing emergency wrecker service shall be issued unless the following requirements are met:

(a) *Vehicles.* Each applicant, in order to secure a license under this Chapter, must own and/or lease the following vehicles in the following numbers and be equipped as follows:

(1) Three wreckers. Each shall be not less than 16,500 gross vehicle weight (GVW) and, shall be equipped with a power-operated winch line and rollback truck with a factory-rated lifting capacity of not less than 5,000 pounds, single line capacity, shall carry as standard equipment a mobile or cellular phone, trailer, tow bar, safety chains, fire extinguisher, wrecking bar, broom and shovel, and shall be clearly and permanently marked with the name of the licensee on each side of the vehicle.

(b) *Storage facilities.* Each applicant, in order to be licensed under this Chapter, must own and/or lease facilities for the storage of vehicles having the following space and equipment requirements:

(1) Storage. Vehicle storage space must be provided at a location which is within the corporate limits of the City and in compliance with applicable zoning ordinances. Such space must have a capacity for storing at least 15,000 square feet. This storage space must be fenced and secured from unauthorized entry. This space must also be kept accessible to vehicles, in conformance with all health and zoning ordinances and lighted in a manner in which the entire storage area is lit. This storage space must be available for receiving towed vehicles on a 24-hour, seven-day-per-week basis, however, the licensee shall not be required to release vehicles from the storage area between the hours of 7:00 p.m. and 7:00 a.m.

(c) *Insurance policies.* In order to be licensed under this Chapter, each licensee shall maintain and pay the premiums for the following insurance policy or policies:

(1) Public liability insurance indemnifying the public generally against damages arising out of the operation of emergency wrecker service. The licensee shall be responsible for entering the City on such policy or policies of insurance as a named insured. Such policy or policies of insurance shall be in an amount of at least $500,000.00 for one person $500,000.00 for one accident and $500,000.00 property damage and a minimum aggregate limit of $1,000,000.00. This coverage can be provided as a combined single limit. In the insurance certificate, the insurance company must state that the City will be given written notice if the policy is canceled or changed within ten days prior to the effective date thereof. The applicant shall file certificates of insurance with the City Clerk;

(2) Garage keeper's minimum liability policy covering fire, theft or damage to or loss of property while in tow or otherwise in the care, custody and control of the licensee. The licensee shall be responsible for entering the City on such policy or policies of insurance as a named insured. Such policy or policies of insurance shall be in an amount of at least $100,000.00 for each individual claim up to a maximum aggregate limit of $200,000.00 per occurrence. In the insurance certificate, the insurance

company must state that the City will be given written notice if the policy is canceled or changed within ten days prior to the effective date thereof. The applicant shall file certificates of insurance with the City Clerk.

(d) *Endorsement.* Each policy required herein shall contain an endorsement providing for ten days written notice to the Chief of Police of the City prior to any material change therein or cancellation thereof.

(Ord. No. 46-551 § 2; Ord. No. 47-884, § 1, 5-13-08; Ord. No. 49-207, § 4, 2-28-12; Ord. No. 51-855, § 2, 5-10-22; Ord. No. 52-047, § 3, 4-4-23)

Sec. 3.49.050. License—Display.

(a) Each license issued pursuant to this Chapter must be posted and kept in a conspicuous place in the wrecker establishment.

(b) Every licensee shall, within ten days after a partial change of control in the ownership or in management, or of change of address or trade name, notify the Chief of Police of such changes.
(Ord. No. 35-599 (part))

Sec. 3.49.060. License—Refusal to issue or renew.

(a) The City Treasurer shall refuse to approve issuance or renewal of an emergency wrecker company license for one or more of the following reasons:

(1) The making of any false statement as to any material matter in an application for a license, or a license renewal, or in a hearing concerning the license;

(2) Violation within the last ten years by the licensee, applicant or any employee of the licensee or applicant of a provision of this Chapter;

(3) Violation within the last ten years by the licensee or applicant of a city, state, or federal law for a crime of moral turpitude, financial crime, theft, false writing or felony or misdemeanor crime that indicates a lack of fitness of the applicant to perform emergency wrecker services;

(4) The licensee or applicant has been arrested within last twelve months for or is currently under indictment or a criminal charge for or convicted of violations of city, state or federal law for a crime of moral turpitude, financial crime, theft, false writing or felony or misdemeanor crime that indicates a lack of fitness of the applicant to perform emergency wrecker services;

(5) If the applicant, or any partner or corporate officer of the applicant, has had an emergency wrecker service license issued under this Chapter and the same has been revoked within 18 months prior to the application.

(b) A decision to approve or deny an application for any license issued pursuant to this chapter must be determined within 30 days of submission of a complete application to the City Treasurer.
(Ord. No. 35-599 (part); Ord. No. 51-352, § 3, 10-13-20)

Sec. 3.49.070. License—Suspension.

(a) The Chief of Police or designee, upon five days' written notice to the licensee, shall have the authority to suspend an emergency wrecker company license for a period not to exceed thirty days for one or more of the following reasons:

(1) Failure of the licensee to maintain such licensee's wrecker or equipment in a good and safe working condition;

(2) Violation by the licensee or an employee of the licensee of a provision of this Chapter;

(3) Violation by an emergency wrecker driver of a provision of the motor vehicle or traffic laws of this state or City while in the scope of his employment in the emergency wrecker service;

(4) Failure of the licensee to comply with the terms and conditions of the City's nondiscrimination and equal opportunity plan;

(5) Failure of the licensee to maintain the required liability and worker's compensation insurance policies as required by this Chapter;

(6) Obtaining the license by fraudulent conduct or false statements;

(7) The wrecker or towing service violated the fee and charge schedule by overcharge or by charging for a service not performed;

(8) The wrecker or towing service consistently refuses to respond to requests for service by the police department or consistently fails to answer telephone calls from the police department at the telephone number supplied by the business for towing services;

(9) The wrecker or towing service responds to the scene of an accident, emergency, or impoundment situation, when not specifically called to do so, and solicits wrecker or towing business;

(10) The City of Wichita is not satisfied with the general services of the owner and/or employees or with the cooperation it has received from such wrecker or towing service or other justifiable cause; and

(11) The wrecker or towing service fails to have a valid certificate of public service issued from the Kansas Corporation Commission.

(b) With notification to the licensee by writing or personal communication, the Chief of Police or a designee may immediately suspend an emergency wrecker company license for a period not to exceed 90 days for the following reasons:

(1) Violation of a city, state, or federal law for a crime of moral turpitude, financial crime, theft, false writing or felony or misdemeanor crime that indicates a lack of fitness of the applicant to perform emergency wrecker services that occurred since application was filed; or

(2) The licensee or applicant is under indictment or criminal charge or convicted of violations of city, state or federal law for a crime of moral turpitude, financial crime, theft, false writing or felony or misdemeanor crime that indicates a lack of fitness of the applicant to perform emergency wrecker services.

(Ord. No. 46-551 § 3; Ord. No. 49-207, § 5, 2-28-12; Ord. No. 51-352, § 4, 10-13-20; Ord. No. 52-047, § 4, 4-4-23)

Sec. 3.49.080. License—Revocation.

The Chief of Police, or designee, upon five days' written notice to the licensee, shall have the authority to revoke an emergency wrecker company license for one or more of the following reasons:

a) The making of a false statement as to a material matter in an application for a license or license renewal;

b) Failure of the licensee or any employee of the licensee to comply with the fee schedule provided in this Chapter or charging for a service not performed;

c) Violation of any of the provisions of this Chapter by the licensee or any employee of the licensee;

d) Suspension of the licensee's emergency wrecker company license three times within a 24-month period;

e) Failure of the licensee to comply with Section 3.49.230 of this Code and amendments thereto, relating to nondiscrimination;

f) Violation, by the licensee or applicant, of city, state, or federal law for a crime of moral turpitude, financial crime, theft, false writing and felony or misdemeanor crime that indicates a lack of fitness of the applicant to perform emergency wrecker services that occurred since application was filed;

g) The licensee or applicant is under indictment or criminal charge or convicted of violations of city, state or federal law for a crime of moral turpitude, financial crime, theft, false writing and felony or

misdemeanor crime that indicates a lack of fitness of the applicant to perform emergency wrecker services.

(Ord. No. 41-627 § 4; Ord. No. 49-207, § 6, 2-28-12; Ord. No. 51-352, § 5, 10-13-20)

Sec. 3.49.090. Reserved.

Editor's note—Ord. No. 51-352, § 6, adopted Oct. 13, 2020, repealed § 3.49.090, which pertained to appeal from refusal to issue or renew, suspension or revocation of a license, and derived from Ord. No. 35-599 (part); and Ord. No. 49-207, § 7, adopted Feb. 28, 2012.

Sec. 3.49.100. Powers and duties of Chief of Police.

In addition to the powers and duties prescribed elsewhere in this Chapter, the Chief of Police is authorized to:

(a) Enforce all provisions of this Chapter;

(b) Adopts rules and regulations, after reasonable notice to the licensees, not inconsistent with the provisions of this Chapter, with respect to the investigation of applicants and other matters incidental or appropriate to his powers and duties as may be necessary for the proper enforcement of the provisions of this Chapter;

(c) Conduct, when appropriate, periodic investigations of emergency wrecker companies throughout the City;

(d) Keep records of service adequacy and responsiveness of licensees and provide these records to the City Treasurer upon request;

(e) Ensure that wrecker fee schedules are accessible to the public by posting the schedule on the police and/or City website, having the fee schedule available for review upon request of officers and citizens at accident scenes and posted at Wichita Police Department substations.

(Ord. No. 35-599 (part); Ord. No. 49-207, § 8, 2-28-12; Ord. No. 49-886, § 2, 11-25-14)

Sec. 3.49.110. Emergency wrecker dispatched service call procedures.

(a) The Chief of Police shall establish a list consisting of emergency wrecker companies licensed under this Chapter.

(b) The wrecker list shall contain the name, address, phone number and towing rates for each emergency wrecker company licensed by the City of Wichita.

(c) The emergency wrecker service list, including the tow fees charged by each company, shall be posted on the City's website and be made readily available to all law enforcement officers and to the owners or persons in charge of wrecked or disabled vehicles upon request.

(d) If the owner or person in charge of the vehicle chooses a specific wrecker service, this choice will be relayed to SPIDER by the law enforcement officer so that a dispatched service call may be made.

(e) When an emergency wrecker is needed, the need will be immediately made known to the dispatcher for Special Police Information Data Entry and Retrieval Unit (SPIDER). On receiving the first communication, the dispatcher at the SPIDER unit must call the emergency wrecker company chosen by the owner or person in charge of such vehicle, if so designated. If the driver or person in charge of the vehicle fails to designate or choose an Emergency Wrecker Service, or the Emergency Wrecker Service chosen is not available for dispatch, the SPIDER dispatcher will contact the next Emergency Wrecker Service on the rotation list. If two vehicles are to be towed, the Emergency Wrecker Service will be requested to dispatch either a wrecker capable of handling two vehicles or two wreckers. In the event the first company called has no wreckers available, then the dispatcher at the SPIDER unit shall call the company which appears next on the list or, in the event the first wrecker service company called fails or is unable to respond within 45 minutes under nominal conditions, then the dispatcher shall call the next wrecker company appearing on the list. A call to a specific location for a single accident

shall be considered as one call and only one company will be called; provided, however, that if necessary, additional companies may be called. (Ord. No. 36-968 (part); Ord. No. 49-207, § 9, 2-28-12; Ord. No. 49-886, § 3, 11-25-14)

Sec. 3.49.120. Reserved.

Editor's note—Ord. No. 49-207, § 14, adopted February 28, 2012, repealed § 3.49.120 in its entirety. Formerly, said section pertained to owner preference requests and derived from Ord. No. 35-599(part).

Sec. 3.49.125. Impounded vehicles.

(a) When an authorized public agency requests the impounding of an abandoned, wrecked or disabled vehicle, or the vehicle is being impounded pursuant to the provisions of Section 11.97.010 of the Code of the City of Wichita, the dispatcher for Special Police Information Data Entry and Retrieval Unit (SPIDER) will contact the contractor for the City of Wichita.

(b) The maximum allowable fees to be charged by the wrecker contractor for towing and storage charges for vehicles impounded by the City of Wichita shall be set forth by the contract between the City and the contractor. Such fees shall not exceed those set forth in Section 3.49.130.

(c) All vehicles impounded by the City of Wichita shall be subject to the release and notice provisions of Chapter 11.97.

(d) All vehicles impounded shall be sold by public auction. The terms and conditions of the sale of the vehicles and disposition of the auction proceeds shall be set forth in the contract between the City and the contractor.
(Ord. No. 49-207, § 10, 2-28-12)

Sec. 3.49.130. Fees for emergency wrecker service.

(a) Only emergency wrecker companies licensed by the City of Wichita shall be subject to these regulations governing fees to be charged by emergency wrecker services.

(b) A wrecker service shall submit a schedule of towing fees with the annual application for licensing. Fees for the following services shall not exceed those fees set forth in the contract for impounding vehicles as negotiated with the City of Wichita pursuant to Section 11.97.060 of the Code of the City of Wichita:

Waiting Time per 15 Minutes

Lot Fee

WPD Administrative Processing Fee

Title Verification Fee

Other than the lot fee, WPD Processing Fee and Title Verification Fee, no other administrative fees may be charged by the emergency wrecker company.

(c) Failure to submit fee schedules with the annual application will result in utilizing the last fee schedule submitted.

(d) Wrecker services companies may not charge rates in excess of those filed with their licensing application for emergency wrecker services.

(e) No fees, including fuel surcharge, other than those submitted in the licensing application, may be charged by the emergency wrecker company.
(Ord. No. 46-551 § 4; Ord. No. 47-884, § 2, 5-13-08; Ord. No. 49-207, § 11, 2-28-12; Ord. No. 49-886, § 4, 11-25-14; Ord. No. 51-855, § 3, 5-10-22; Ord. No. 52-047, § 5, 4-4-23)

Sec. 3.49.140. Requirements and operating procedures for emergency wrecker service.

An emergency wrecker company licensee shall comply with the following requirements and procedures:

(a) Maintain 24-hour wrecker service;

(b) Arrive at the accident or to the place designated by the dispatcher at the Special Police Information Data Entry and Retrieval unit (SPIDER) within a reasonable time after having been notified to do so, such response time not to exceed 45 minutes from the time the call or contact is received, except in inclement weather;

(c) Deliver, in every instance, the wrecked or disabled vehicle to its storage facility or other location as directed by the owner or agent of the vehicle;

(d) When directed by an officer at the scene of an accident, temporarily remove vehicles which are creating a traffic hazard to a side street or other place as may be directed by the officer;

(e) Report to the City's licensing agent all changes in emergency wreckers and equipment used in the licensee's emergency wrecker service;

(f) Completely remove from the site of an accident all resulting wreckage, debris, reasonable amounts of automotive fluids which are dropped or spilled, and any and all other reasonable amounts of injurious substances dropped upon the highway from such vehicle including all broken glass, which remains in the street, but excluding truck or vehicle cargoes, before leaving the site. In the event two or more wreckers are called to the same accident, both operators shall be equally responsible for the removal of debris from the right of way;

(g) Not permit the use of a wrecker by another licensee;

(h) The licensee shall not permit an individual to drive a wrecker unless the individual holds a valid driver's license, a valid operator's certificate as required by Section 3.49.225, and is a current employee of the licensee. Drivers are to be employees of the licensee. Independent contractors are not allowed to operate an emergency wrecker vehicle or tow vehicles pursuant to this Chapter;

(i) The licensee and its employees shall not assess or collect fees or charges in excess of those filed with its licensing application;

(j) The licensee and its employees shall not prohibit or refuse to allow the owner, operator or person in possession of the vehicle, who has proof of title or registration, to have access to any personal property in an impounded vehicle for forty-eight (48) hours after such vehicle has been towed and such personal property shall be released to the owner or as otherwise provided by state law;

(k) Have all wreckers clearly and permanently marked with the name of the licensee on both doors of the vehicle;

(l) All wrecker drivers of the licensee shall wear shirts identifying the licensee's company name;

(m) The licensee shall, upon request by a vehicle owner, disclose the name and address of its insurance carrier;

(n) Carry in all vehicles owned or leased by the licensee "Wrecker Operator Receipt Books" which shall contain forms that shall be filled out and signed by an authorized public agency at the scene of an impound. The form will authorize the licensee or the licensee's agent or employee to tow the vehicle, will contain a space to be marked by the authorized public agency indicating whether the vehicle shall be held as evidence in a criminal matter, and will state that the licensee assumes liability for the vehicle being towed along with any and all property contained therein. Such forms shall be subject to prior approval by the City's licensing agent and it shall be the responsibility of the licensee to provide such forms;

(o) Carry in all vehicles owned or operated by the licensee a copy of the licensee's schedules of fees;

(p) Shall at all times comply with K.S.A. 8-1103 and amendments thereto;

(q) The owner of a vehicle towed shall have access to any personal property in such vehicle for 48 hours after such vehicle has been towed and such personal property shall be released to the owner or as otherwise required by state law;

(r) Shall accept, at no additional fee, credit card, debit card or cash payments for any towing, storage or other fees and costs due from the owner of the vehicle for emergency wrecker service;

(s) Upon request by any law enforcement officer, or the owner of a vehicle to be towed, the emergency wrecker operator shall provide proof of a valid and unexpired emergency wrecker service operator's certificate issued pursuant to this Chapter;

(t) Shall provide storage facilities for receiving towed vehicles on a 24-hour, seven-day-per-week basis, 365 days a year;

(u) Shall provide for the release of vehicles from storage facilities Monday through Friday from 7:30 a.m. to 6:00 p.m. and Saturday 9:00 a.m. to 1:00 p.m. The office may be closed on Sundays and for the following holidays: New Year's Day, Memorial Day, Fourth of July, Labor Day, Thanksgiving and Christmas. Storage fees may not be charged for days or holidays when the business is closed if the vehicle is claimed by the owner within the next three business days following the closure for a Sunday or Holiday; and

(v) Shall maintain adequate records and documentation regarding the fees charged, and the sale, disposition and release of such vehicles. Such records shall be maintained for a period not to exceed two years from the date of the tow or disposition of vehicles towed pursuant to this Chapter.

(Ord. No. 46-551 § 5; Ord. No. 49-207, § 12, 2-28-12; Ord. No. 49-886, § 5, 11-25-14; Ord. No. 51-855, § 4, 5-10-22; Ord. No. 52-047, § 6, 4-4-23)

Sec. 3.49.150. Right of inspection.

The Chief of Police or his or her designee, in order to verify compliance with the terms of this Chapter, shall have the right to inspect, examine or audit, during normal business hours and upon reasonable notice, all documents, records or other information that pertains to fees charged and the sale, disposition and release of vehicles towed or impounded as provided for in this Chapter.

(Ord. No. 51-855, § 5, 5-10-22)

Sec. 3.49.160. Compliance with State Law.

All vehicles impounded and/or towed pursuant to this chapter shall be disposed of, sold and/or released in accordance with the provisions of K.S.A. 8-1101, et seq.

(Ord. No. 35-599 (part); Ord. No. 49-207, § 13, 2-28-12)

Sec. 3.49.170. Reserved.

Editor's note—Ord. No. 49-207, § 14, adopted February 28, 2012, repealed § 3.49.170 in its entirety. Formerly, said section pertained to fee payable to the city and derived from Ord. No. 46-551, § 6.

Sec. 3.49.180. Reserved.

Editor's note—Ord. No. 49-207, § 14, adopted February 28, 2012, repealed § 3.49.180 in its entirety. Formerly said section pertained to exceptions and derived from Ord. No. 35-599(part).

Sec. 3.49.190. Driving or directing wrecker to scene of accident prohibited—Exceptions.

No person shall drive a wrecker to the scene of an accident or collision on the streets of the City, or send or direct a wrecker to the scene of an accident or collision on the streets of the City, unless such person has been requested to go to such scene, or to direct or send a wrecker to such scene, by the owner of a vehicle which has been wrecked or disabled in such accident or collision, or by a representative of an authorized public agency.

(Ord. No. 35-599 (part))

Sec. 3.49.200. Wrecker operator to furnish name of person or agency requesting service.

It is unlawful for any person in charge of or operating a wrecker to remove a wrecked or

disabled vehicle from the scene of an accident or collision on the streets of the City without furnishing a police officer or any representative of an authorized public agency at such scene the name of the person or agency requesting the removal of such disabled or wrecked vehicle when requested by such Police Officer or representative of such authorized public agency to do so.
(Ord. No. 35-599 (part))

Sec. 3.49.210. Soliciting wrecker business at scene of accident prohibited—Presence at scene as evidence of violation.

No person shall solicit in any manner, directly or indirectly, on the streets of the City, the business of towing any vehicle which is wrecked or disabled on a street, regardless of whether the solicitation is for the purpose of soliciting the business of towing, removing, repairing, wrecking, storing, trading or purchasing such vehicle. Proof of the presence of any wrecker or motor vehicle owned or operated by any person engaged in the wrecker business, either as owner, operator, employee or agent, on any street in the City at or near the scene or situs of a wreck, accident or collision, which has not been called to the scene by the owner or a representative of an authorized public agency, within one hour after the happening of a wreck, accident or collision, shall be prima facie evidence of a solicitation in violation of this Section.
(Ord. No. 35-599 (part))

Sec. 3.49.215. Operator's certificate required.

It shall be unlawful for any person to report for and make an emergency wrecker tow unless the operator of the wrecker shall have in their possession an operator's certificate issued under the provisions of this chapter.
(Ord. No. 49-886, § 6, 11-25-14)

Sec. 3.49.220. Emergency wrecker service operator.

Any person who owns an emergency wrecker company as defined by this chapter, or any employee of such company who reports for and makes an emergency wrecker tow within the city shall:

(a) Be 18 years of age or older;

(b) Be a person of good moral character; and

(c) Possess an operator's certificate.

(Ord. No. 49-886, § 7, 11-25-14)

Sec. 3.49.225. Qualifications for emergency wrecker services operator certificate.

Each applicant for an operator's certificate shall undergo an investigation by the Chief of Police to determine if an operator's certificate will be issued. An operator's certificate shall not be issued to any person who:

(a) Made false or misleading statements of fact in the application;

(b) Within five years of the date of application had an operator's certificate revoked;

(c) Is now registered as a sex offender with any state;

(d) Within five years preceding the date of the application has been found guilty of, pleaded guilty to, pleaded nolo contendere to or been convicted of a federal, state or local law of any city for leaving the scene of a motor vehicle accident or driving under the influence of alcohol or drugs, or

(e) Within five years preceding the date of application has been found guilty of, pleaded guilty to, pleaded nolo contendere to or has been convicted of a felony.

(Ord. No. 49-886, § 8, 11-25-14)

Sec. 3.49.230. Application for emergency wrecker operator's certificate.

(a) *Filing.* Every person desiring to report for an emergency tow within the city shall file with the City Treasurer a written application for an operator's certificate.

(b) *Application form.* The application for an operator's certificate shall be made upon a printed form to be provided by the City Treasurer and shall request the following information and such other information as may be deemed proper by the City Treasurer:

1. The name, residential address, telephone number and date of birth of the applicant;
2. The applicant's drivers' license number and state of issuance;
3. The number of times, dates and places within the preceding five years the applicant has been arrested or convicted for traffic violations, driving under the influence of alcohol or drugs and/or leaving the scene of an accident;
4. Whether the applicant has been convicted of a felony within the preceding five years;
5. Whether the applicant is required to register as a sex offender with any state;
6. The business name, address and telephone number of the emergency wrecker company for which the applicant is employed;
7. Verification by a licensed emergency wrecker company that the applicant is a current employee of the licensed company at the time of submission of the application.

(Ord. No. 49-886, § 9, 11-25-14)

Sec. 3.49.235. Investigation.

After a complete and fully executed application for an operator's certificate has been filed with the City Treasurer, the Chief of Police shall cause the application to be investigated.
(Ord. No. 49-886, § 10, 11-25-14)

Sec. 3.49.240. Fee.

The operator's certificate shall not be issued or renewed until the fee for such certificate shall have been paid. A fee of $50.00 shall be assessed by the City Treasurer. A non-refundable fee of $25.00 will be assessed to the applicant to defray the cost of investigation and the application process.
(Ord. No. 49-886, § 11, 11-25-14)

Editor's note—Ord. No. 49-886, § 11, 11-25-14, added a new Section 3.49.240. The previously existing Section 3.49.240 was redesignated as a new Section 3.49.275.

Sec. 3.49.245. Reserved.

Editor's note—Ord. No. 51-352, § 7, adopted Oct. 13, 2020, repealed § 3.49.245, which pertained to granting or denial; appeals, and derived from Ord. No. 49-886, § 12, adopted Nov. 25, 2014.

Sec. 3.49.250. Expiration and transferability of certificate.

(a) All operators' certificates shall be valid for two years from the date of issuance.

(b) No certificate issued under the provisions of this chapter shall be transferable from one individual to another; or by an individual from employment by one emergency wrecker service company to employment with another emergency wrecker service company;

(c) An individual may hold multiple permits allowing such individual to be employed by more than one emergency wrecker service company, however, no additional permit will be issued without written authorization from all emergency wrecker service companies with which the individual is or seeks to be permitted. The fee for an additional permit shall be as set forth in Section 3.49.240.
(Ord. No. 49-886, § 13, 11-25-14)

Sec. 3.49.255. Renewal.

An operator's certificate may be renewed by the City Treasurer in accordance with the requirements of Section 3.49.230 upon a written application on a form provided by the City Treasurer.
(Ord. No. 49-886, § 14, 11-25-14)

Sec. 3.49.260. Certificate.

An appropriate certificate shall be furnished to each operator by the City Treasurer, showing their name, name of licensed emergency wrecker service company, license number and the years for which the certificate is valid. Every emergency

wrecker services operator, while on duty, shall have the certificate in their possession at all times.
(Ord. No. 49-886, § 15, 11-25-14)

Sec. 3.49.265. Suspension or revocation of certificate.

(a) Any false statement or misrepresentation of a material fact, made by an applicant for the purpose of securing an operator's certificate, or any renewal thereof, shall be deemed good and sufficient cause for refusal to grant, or, if granted, for revocation or suspension of a certificate."

(b) Every holder of an operator's certificate issued under this code shall comply with all city, state and federal laws. Failure to do so will justify suspension or revocation of the certificate by the Chief of Police.

(c) An operator's certificate may be suspended or revoked at any time the certificate holder becomes ineligible to hold the certificate pursuant to the requirements set forth in this chapter or for a violation of the requirements of this Chapter which are applicable to emergency wrecker service operators.

(d) The Chief of Police shall provide written notice of the intent to revoke, suspend or deny an operator's certificate by personal service or by certified mail, return receipt requested. The notice shall be sent to the mailing address of the licensee on file with the City Treasurer. The notice shall provide the effective date of the revocation or suspension of the certificate. Such notice shall detail the reasons or basis for the revocation, denial, or suspension of the certificate. No revocation or suspension shall be imposed on less than five days' notice to the licensee, and shall specify the rights of the licensee to appeal any such denial, revocation or suspension.
(Ord. No. 49-886, § 16, 11-25-14)

Sec. 3.49.270. Appeal procedure for denial, suspension or revocation of emergency wrecker company license or denial, suspension or revocation of operator's certificate.

(a) Any applicant or licensee aggrieved by the denial, suspension, modification, revocation or imposition of additional conditions, of an emergency wrecker company license or of an operator's certificate may file with the City Clerk a written notice of appeal to the City Council within ten business days of the decision by the Chief of Police or his/her designee. The Notice of Appeal shall specify:

(1) The name and address of the appellant;

(2) The date of application;

(3) The date of the denial, suspension, modification, revocation or imposition of additional conditions of the operator's certificate;

(4) The factual basis for the appeal.

(b) Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before the City Council or designated appeals panel, no later than 30 days from the date of the filing of the Notice of Appeal with the City Clerk. Any appeal shall stay the suspension, modification or revocation of the certificate until the matter is heard by the City Council, or any appeals panel thereof.

(c) The City Council, or designated appeals panel, shall conduct a hearing pursuant to Section 2.04.235 of this Code, and may approve the denial, suspension, modification, revocation, or imposition of additional conditions, overrule the denial, suspension, modification, revocation or imposition of additional conditions or modify the decision of the Chief of Police.

(d) In any hearing before the City Council or designated appeals panel pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation alleged is prima facie evidence of such violation alleged.

(e) The Council's or designated appeals panel's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation,

modification or suspension of the operator's certificate by the City Council or designated appeals panel.
(Ord. No. 49-886, § 17, 11-25-14; Ord. No. 51-352, § 8, 10-13-20)

Editor's note—Ord. No. 51-352, § 8, adopted Oct. 13, 2020, changed the title of § 3.49.270 from appeal procedure to appeal procedure for denial, suspension or revocation of emergency wrecker company license or denial, suspension or revocation of operator's certificate.

Sec. 3.49.275. Penalty for violation.

Every person who is convicted of violating any of the provisions of this Chapter shall be guilty of a misdemeanor and shall be punished by a fine of not more than $500.00, or by six months' imprisonment, or by both such fine and imprisonment.
(Ord. No. 35-599 (part); Ord. No. 49-886, § 18, 11-25-14)

Editor's note—Ord. No. 49-886, § 18, 11-25-14, resdesignated the previously existing Section 3.49.240 as a new Section 3.49.275.

CHAPTER 3.51. SOLID WASTE COLLECTION AND DISPOSAL

Sec. 3.51.010. Solid waste collection and disposal service.
Sec. 3.51.020. Definitions.
Sec. 3.51.030. License required.
Sec. 3.51.040. Application; fee.
Sec. 3.51.050. Issuance.
Sec. 3.51.060. Contract.
Sec. 3.51.070. Notice of denial and appeal.
Sec. 3.51.080. Transfer of license.
Sec. 3.51.090. Authority of the city council.
Sec. 3.51.100. Disposal and recycling sites.
Sec. 3.51.110. Penalty.

Sec. 3.51.010. Solid waste collection and disposal service.

(a) It is the policy of the city to provide a freedom of choice to citizens based upon an open market system in selecting their solid waste collector and to provide unrestricted opportunity for free enterprise.

(b) In order to protect the public health, safety and well-being; to limit the sources of air pollution, noise and traffic within the city; to protect property values; to maintain an environment conducive to quality living within the city and to provide for safe and sanitary collection and disposal of solid waste; the city shall license one or more solid waste collectors to make arrangements with citizens for the collection and disposal of solid waste within the city.

(c) Under the authority of K.S.A. 12-2101, et seq., and its home rule authority, the city may provide for the collection and disposal of solid waste within the city by contract.
(Ord. No. 43-581 § 1)

Sec. 3.51.020. Definitions.

(a) "Solid waste" for purposes of this chapter means refuse, garbage, trash, residential trash, commercial trash, and industrial solid waste, as defined in Section 7.08.020.

(b) "Solid waste collector" for purposes of this chapter will have a different meaning than the definition contained in Section 7.08.020, and shall mean any person who engages in the collection or disposal of solid waste, as defined in this chapter, within the City of Wichita for hire.
(Ord. No. 43-581 § 2)

Sec. 3.51.030. License required.

No person shall engage in the business of collecting solid waste within the city or the business of disposing of solid waste at a permitted site within the city without first applying for and receiving a license from the city as required by this chapter. The license required by this chapter shall be in addition to and not satisfied by any other permit or license as may be required by this or any other state, local or federal agency.
(Ord. No. 43-581 § 3)

Sec. 3.51.040. Application; fee.

Applications for a solid waste collector license shall be made to the the City upon such form and in such manner as may be prescribed by the Director of Public Works. Each solid waste collector shall submit an application by November 1, 2011. A new solid waste collector shall apply prior to operating a solid waste collection service within the City. Applications for an initial license shall be granted or denied within thirty (30) days of the receipt of the application. An applicant will be deemed not in violation of this chapter during the pendency of the initial application. All licenses shall be renewed by November 1st of each year. Each existing solid waste collector shall submit an application for renewal, on forms provided by the Director of Public Works, for a solid waste collector license at least ninety (90) days prior to November 1st of each year, beginning in 2012.
(Ord. No. 43-581 § 4; Ord. No. 49-107, § 1, 10-18-2011)

Sec. 3.51.050. Issuance.

Upon completion of the application, the Director of Public Works shall either grant or deny a license for solid waste collection services. A license for solid waste collection services shall be issued by the Director of Public Works if the following conditions have been met:

(1) The applicant has executed a contract with the City providing for the terms and conditions contained in Section 3.51.060 of the solid waste collection services to be rendered within the City. Such agreement may be executed by the

city manager, or his/her designee, on behalf of the City, after approval of such agreement as to form by the City Attorney.

(2) The applicant has paid the decal license fees as required by Section 7.08.140.

(3) The applicant has provided a plan for how its hauling company will provide a pay as you throw system of trash disposal for its current and potential future customers, including an option for low-volume users at a reduced price. The plan will be implemented by November 1, 2012.

(4) The applicant has provided a plan for how its hauling company will provide the option of single stream recycling to its current and potential future customers. The plan will be implemented by November 1, 2012.

(Ord. No. 43-581 § 5; Ord. No. 49-107, § 2, 10-18-2011)

Sec. 3.51.060. Contract.

Every solid waste collector required to be licensed under this chapter shall enter into a contract with the city, such contract shall provide substantially as follows:

(1) The city shall grant the solid waste collector the right and privilege to collect and dispose of solid waste in the city.

(2) The term of the contract shall be for a term not to exceed ten years.

(3) The solid waste collector shall maintain a current license as required by this chapter.

(4) The solid waste collector shall be subject to all ordinances of the city currently existing or hereafter adopted during the term of this contract pertaining to the collection or disposal of solid waste in the city. The solid waste collector will have met all of the requirements to obtain a solid waste license, as mentioned in Section 3.51.50. Nothing in the contract shall constitute a waiver of or be construed as waiving the right of a solid waste collector to oppose, challenge, or seek judicial review of, in such manner as is now or hereafter provided by law, any such ordinance proposed, adopted, or promulgated by the city. Nothing in the contract shall be construed to relieve the city from the requirements of state statute or city ordinance in the adoption of new ordinances or amendments.

(5) The contract may be canceled at any time in writing by a solid waste collector provided that it has arranged for any continued service required by Section 7.08.140(d).

(6) The contract may be canceled at any time by the city upon notice in the event of any change in law or regulation or other circumstances that materially affect the position or financial obligations of the city under the contract, provided that the contracts of all similarly situated solid waste collectors will be treated the same.

(7) The solid waste collector shall indemnify and hold the city, its officers and employees and agents harmless from any claims or suits arising out of acts or omissions of the solid waste collector in the operations under this chapter.

(8) The contract required by this chapter may be assigned from one person to another with the approval of the director of public works, which approval shall not be unreasonably withheld.

(9) The contract shall not be construed to be in conflict with the cash basis or budget law pursuant to K.S.A. 12-2102.

(10) The contract will prohibit unlawful discrimination as provided by regulation for city contracts.

(11) The contract shall not preclude a solid waste collector from being licensed by or entering agreements with other parties or governmental entities to provide for the collection and disposal of solid waste.

(Ord. No. 43-581 § 6; Ord. No. 49-107, § 3, 10-18-2011)

Sec. 3.51.070. Notice of denial and appeal.

(a) The applicant for a solid waste collector's license shall be notified of a denial of the application by certified letter not later than ten days after taking such action.

(b) An applicant for a license for solid waste collection services may appeal the denial of such license to the city council. Should an applicant seek an appeal from the denial of a license, the applicant shall furnish notice of such request for appeal to the city clerk not later than ten days after the date of their registered letter advising the applicant of the denial of the license.

(c) Upon receipt of a request for appeal, the city clerk shall thereupon fix the date and time at which the city council shall hear the appeal. Based upon the record

before the director of public works and the statement of the applicant, the city council will either grant or deny the license.
(Ord. No. 43-581 § 7)

Sec. 3.51.080. Transfer of license.

The solid waste collection license required by this chapter is transferable from one person to another with the approval of the director of public works, which approval shall not be unreasonable denied.
(Ord. No. 43-581 § 8)

Sec. 3.51.090. Authority of the city council.

Nothing contained in this chapter shall be construed to limit the city in the exercise of its police powers, including without limitation the right to establish by ordinance the type of container, the frequency and hours of collection, fee schedules, location of containers, and recycling options within the City of Wichita.
(Ord. No. 43-581 § 9)

Sec. 3.51.100. Disposal and recycling sites.

Licensed solid waste collectors operating within the city shall dispose of solid waste as defined in this chapter at a facility licensed for the disposal of such waste materials and will comply with all city, state and federal ordinances, statutes and regulations pertaining to the collection and disposal of solid waste. Each solid waste collection vehicle operated by a solid waste collector licensed under this chapter shall display a valid current license identification in a manner and location to be prescribed by the director of public works. Nothing contained in this chapter shall be construed as a flow control provision.
(Ord. No. 43-581 § 10)

Sec. 3.51.110. Penalty.

Any person who violates any of the provisions of this chapter shall, upon conviction, be deemed guilty of a misdemeanor and shall be punished by a fine not exceeding two thousand five hundred dollars.
(Ord. No. 43-581 § 11)

CHAPTER 3.52. SOLID WASTE TRANSFER STATIONS

Sec. 3.52.010. Solid waste transfer stations.
Sec. 3.52.020. Definitions.
Sec. 3.52.030. License required.
Sec. 3.52.040. Application; fee.
Sec. 3.52.050. Issuance.
Sec. 3.52.060. Contract.
Sec. 3.52.070. Tipping fee.
Sec. 3.52.080. Notice of denial and appeal.
Sec. 3.52.090. Transfer of license.
Sec. 3.52.100. Disposal and recycling sites.
Sec. 3.52.110. Penalty.

Sec. 3.52.010. Solid waste transfer stations.

(a) In order to protect the public health, safety and well-being, limit the sources of air pollution, noise and traffic within the city; to protect property values, maintain an environment conducive to quality living within the city and to provide for safe and sanitary collection and disposal of solid waste, the city shall license solid waste transfer stations for the collection and shipping of municipal solid waste.

(b) Under the authority of K.S.A. 12-2101, et seq., K.S.A. 65-3410 and its home rule authority, the city may provide for the collection and disposal of solid waste within the city and may regulate and license trash collection.
(Ord. No. 44-229 § 1)

Sec. 3.52.020. Definitions.

(a) "Solid waste" for purposes of this chapter means refuse, garbage, trash, residential trash, commercial trash, and industrial solid waste, as defined in Section 7.08.020 of the Code of the City of Wichita.

(b) "Transfer station" for the purpose of this chapter means any enclosed facility where solid wastes are transferred from one vehicle or rail car to another or where solid wastes are stored and consolidated before being transported for disposal elsewhere.
(Ord. No. 44-229 § 2)

Sec. 3.52.030. License required.

No person shall engage in the business of operating a transfer station within the city without first applying for and receiving a license from the city as required by this chapter. The license required by this chapter shall be in addition to and not satisfied by any other permit or license as may be required by this or any other state, local or federal agency.
(Ord. No. 44-229 § 3)

Sec. 3.52.040. Application; fee.

Applications for a transfer station license shall be made to the city upon such form and in such manner as may be prescribed by the director of public works. A fee of twenty-five dollars shall be charged for each application for license or license renewal to defray the administrative costs of the licensing program. Each transfer station operator shall submit an application prior to operating a transfer station within the city. All licenses shall be for a term not to exceed five years. Applications for an initial license shall be granted or denied within thirty days of the receipt of the application. Each transfer station operator shall submit an application for renewal, on forms provided by the director of public works, for a transfer station license at least ninety days prior to expiration of the license.
(Ord. No. 44-229 § 4)

Sec. 3.52.050. Issuance.

Upon completion of the application, the director or public works shall either grant or deny a license for a transfer station. A license for a transfer station shall be issued by the director of public works if the following conditions have been met:

(1) The applicant has executed a contract with the city providing for the terms and conditions contained in Section 3.52.060 for the solid waste transfer station. Such agreement shall be executed by the city manager, or his/her designee, on behalf of the city, after approval of such agreement as to form by the city attorney.

(2) The applicant has paid the license fee as required by this chapter.

(3) The applicant has received approval of a conditional use permit.

(Ord. No. 44-229 § 5)

Sec. 3.52.060. Contract.

Every transfer station is required to be licensed under this chapter and each transfer station operator shall enter into a contract with the city as a condition to being granted a transfer station license. Such contract shall provide substantially as follows:

(1) Right; Privilege. The city shall grant to the transfer station operator the right and privilege to transfer solid waste from one vehicle or rail car to another or to store and consolidate solid waste before transporting for disposal elsewhere.

(2) Term. The term of the contract shall be for a term not to exceed ten years.

(3) License Required. The transfer station operator shall maintain a current license as required by this chapter.

(4) Subject to Ordinance. The transfer station and operator shall be subject to all ordinances of the city currently existing or hereafter adopted during the term of this contract pertaining to the storage, transfer or consolidation of solid waste in the city.

(5) Community-wide Clean Up. The transfer station operator shall provide two free weekends per year during which time citizens may bring solid waste into the transfer station at no charge. A minimum of ten-days' notice will be given to the transfer station to prepare for free weekends. The transfer station will be required to staff the facility to accommodate the demand. The transfer station shall count all loads and maintain records as usual but shall not collect fees from citizens participating in the community-wide cleanup.

(6) Neighborhood/Bulky Waste Clean Up. The transfer station operator shall collect a tipping fee on the transfer of solid waste for the neighborhood/bulky waste clean up program to provide funding for neighborhood/bulky waste clean up efforts. The amount of the tipping fee shall be determined by the director of public works sufficient to fund the program based upon the anticipated volume of solid waste expected to be brought to the transfer station as provided in Section 3.52.070.

(7) Host Fee. The transfer station operator shall collect a tipping fee on the transfer of solid waste to provide for improvement of traffic control, signalization upgrades, street maintenance upgrades, litter control, stormwater control and environmental remediation. The amount of the tipping fee shall be determined by the director of public works sufficient to fund the program based upon the anticipated volume of solid waste expected to be brought to the transfer station as provided in Section 3.52.070.

(8) Household/Small Quantity Hazardous Waste. The transfer station operator shall collect a tipping fee on the transfer of solid waste to provide for operation of the household/small quantity hazardous material disposal program. The amount of the tipping fee shall be determined by the director of public works sufficient to fund the program based upon the anticipated volume of solid waste expected to be brought to the transfer station as provided in Section 3.52.070.

(9) Radioactive Waste. No radioactive waste shall be accepted, stored or transferred at a licensed solid waste transfer station. A licensed transfer station operator must have an operating plan to screen for radioactive waste that has been approved by the director of public works.

(10) Yard Waste Storage. Any yard waste accepted at the transfer station for storage, consolidation or shipment shall be stored indoors.

(11) Unsecured Loads. The transfer station operator shall collect a surcharge on unsecured loads brought into the transfer station to be determined as a percentage

of the per ton charge which is to be turned over to the city to offset the cost of litter control on public rights-of-way.

(12) Natural Disasters, Storm Damage, Flooding, Acts of God. The transfer station operator shall accept all city-hauled waste as a result of natural disasters, storm damage, flooding or acts of God at no charge.

(13) Other City Waste. The transfer station operator shall accept all city-hauled waste from city-owned trash receptacles.

(14) Tires Prohibited. Any tires or tire pieces received at the transfer station shall be transferred to proper disposal facilities.

(15) Asbestos. Waste containing asbestos may be received as allowed by appropriate law and regulations, but must be transferred to the proper disposal facilities.

(16) Emergency Plan. A licensed transfer station operator must have an emergency operating plan that has been approved by the director of public works.

(15) Cancellation. The contract specified herein may be canceled by the contractor by giving thirty days written notice to the city. The contract may be canceled by the city at any time upon written notice in the event of any change in law or regulation or other circumstances that materially affect the position or financial obligations of the city under the contract.

(16) Indemnification. The transfer station operator shall indemnify and hold the city, its officers and employees and agents harmless from any claims or suits arising out of acts or omissions of the transfer station operator in the operations under this chapter.

(17) Assignment. The contract required by this chapter may not be assigned without the approval of the director of public works.

(18) Cash Basis. The contract shall not be construed to be in conflict with the cash basis or budget law pursuant to K.S.A. 12-2102.

(19) Discrimination Prohibited. The contract will prohibit unlawful discrimination as provided by regulation for city contracts.

(20) Other Licenses, Agreements. The contract shall not preclude a transfer station operator from being licensed by or entering agreements with other parties or governmental entities to provide for the collection and disposal of solid waste.

(Ord. No. 44-229 § 6)

Sec. 3.52.070. Tipping fee.

(a) Prior to January 1st of each year, the director of public works shall recommend to the city council the tipping fee charges applicable to transfer stations operating within the city which are needed to provide for the community-wide clean up program, the neighborhood bulky waste clean up program, the host fee, and the household quantity hazardous waste program. The city council shall adopt by resolution a tipping fee which shall be applied to the transfer of all municipal solid waste at transfer stations within the city limits. Such moneys shall be deposited with the city on a quarterly basis.

(b) Records of the operation shall be available to the city at reasonable times for audit of the collection and payment of fees.

(Ord. No. 44-229 § 7)

Sec. 3.52.080. Notice of denial and appeal.

(a) The applicant for a transfer station license shall be notified of a denial of the application by certified letter not later than ten days after taking such action.

(b) An applicant for a transfer station license may appeal the denial of such license to the city council. Should an applicant seek an appeal after the denial of a license, the applicant shall furnish notice of such request for appeal to the city clerk not later than ten days after the date of the registered letter advising the applicant of the denial of the license.

(c) Upon receipt of a request for appeal, the city clerk shall thereupon fix the date and time at which the city council shall hear the appeal. Based upon the record before the director of

public works and the statement of the applicant, the city council will either grant or deny the license.
(Ord. No. 44-229 § 8)

Sec. 3.52.090. Transfer of license.

The transfer station license required by this chapter is transferable from one person to another with the approval of the director of public works, which approval shall not be unreasonably withheld.
(Ord. No. 44-229 § 9)

Sec. 3.52.100. Disposal and recycling sites.

Licensed transfer stations operating within the city shall dispose of solid waste as defined in this chapter at a facility licensed for the disposal of such waste materials and will comply with all city, county, state and federal ordinances, statutes and regulations pertaining to the collection and transfer of solid waste. Each solid waste collection vehicle operated by a transfer station licensed under this chapter shall display a valid current license identification in a manner and location to be prescribed by the director of public works. Nothing contained in this chapter shall be construed as a flow control provision.
(Ord. No. 44-229 § 10)

Sec. 3.52.110. Penalty.

Any person who violates any of the provisions of this chapter shall, upon conviction, be deemed guilty of a misdemeanor and shall be punished by a fine not exceeding two thousand five hundred dollars per day.
(Ord. No. 44-229 § 11)

CHAPTER 3.55. MASSAGE THERAPY BUSINESSES

Sec. 3.55.010. Definitions.
Sec. 3.55.020. Exceptions.
Sec. 3.55.030. License required.
Sec. 3.55.040. Application for license.
Sec. 3.55.050. Standards for issuance of license.
Sec. 3.55.060. Permit required, exception.
Sec. 3.55.070. Application for permit.
Sec. 3.55.080. Standards for issuance of permit.
Sec. 3.55.085. Licensing of existing massage practitioners.
Sec. 3.55.090. Fees.
Sec. 3.55.100. Display of license—Massage therapy business.
Sec. 3.55.110. Display of permits and identification cards—Massage therapist.
Sec. 3.55.120. Duration of license or permit, renewal thereof.
Sec. 3.55.130. Suspension or revocation of license or permit, notice.
Sec. 3.55.140. Appeal procedure.
Sec. 3.55.150. Sanitary requirements.
Sec. 3.55.160. Inspection of premises; immediate right of entry.
Sec. 3.55.170. Operating requirements—Massage therapy business.
Sec. 3.55.180. Prohibited acts.
Sec. 3.55.190. Persons under age eighteen prohibited services.
Sec. 3.55.200. Transfer of license or permit.
Sec. 3.55.210. Applicability to existing businesses and providers of massage therapy.
Sec. 3.55.220. Penalties.
Sec. 3.55.230. Invalidity of part.
Sec. 3.55.240. Injunctive relief or civil remedies.

Sec. 3.55.010. Definitions.

Unless otherwise expressly stated or the context clearly indicates a different intention, the following terms shall, for the purposes of this chapter, have the meaning indicated in this section:

(1) "Accredited institution" means a post-secondary institution that is accredited by one of the regional agencies of the higher learning commission or an institution recognized by the Kansas Board of Regents to provide vocational, technical or post-secondary education in the state.

(2) "Chief of Police" means the chief of police of the city or a designated representative.

(3) "City" means the City of Wichita, Kansas.

(4) "Clean" means the absence of soil, dirt, and debris.

(5) "Client" means any person who receives any service of a massage therapy business.

(6) "Council" means the Wichita City Council.

(7) "Crimes involving moral turpitude" includes charges of sale of sexual relations, prostitution, buying sexual relations, patronizing a prostitute, human trafficking, promoting prostitution, aggravated human trafficking, sodomy, soliciting for immoral purposes, public nudity, lewd and lascivious behavior, sexual battery, loitering for the purposes of solicitation, indecent liberties with a child, incest, adultery, bigamy, promoting obscenity, promoting obscenity to minors, displaying material harmful to minors, any crime set forth in Article 55 of Chapter 21 of the Kansas Statutes Annotated, possession, sale or distribution of any illegal drug or controlled substance or any other offenses similar to those listed herein that are contrary to the laws of any city, state or of the United States.

(8) "Disinfect" means to use an EPA-registered product effective against methicillin resistant staphylococcus aureus (MRSA) and vancomycin resistant enterococcus faecalis or faecium (VRE) according to manufacturer's instructions.

(9) "Employee" means any and all persons employed in any capacity by the operator of a massage therapy business, including independent contractors, who work in, at, or render any services to the patrons of a massage therapy business or who render any service directly related to the operation of a massage therapy business.

(10) "EPA" means the United States Environmental Protection Agency.

(11) "Health officer" means the director of public works of the city or a designated representative.

(12) "Laundered" means using either regular commercial laundering or a noncommercial laundering process in which the towels, robes, bandages, pads or other articles are washed on a hot water setting with detergent and at least one cup of bleach or an antibacterial agent used in accordance with product label instructions in a clothes washer and dried on a high heat setting in a dryer; or a noncommercial laundering process in which the towels, robes, linens, or other articles are immersed in water with a temperature of at least one hundred forty degrees Fahrenheit for at least fifteen minutes during the washing or rinsing operation.

(13) "License" means the license issued by the city to operate a massage therapy business.

(14) "Massage therapist" means any person who administers massage therapy, except as exempted in section 3.55.020.

(15) "Massage therapist school" means an approved massage therapy education program that meets the criteria established in this chapter, and any amendments thereto, and is both authorized in the jurisdiction in which it is located and that reflects a curriculum acceptable to an accrediting body recognized by the United States Department of Education. Education received outside of the United States must be substantially equivalent to the criteria of this chapter and must be recognized by the jurisdiction in which it is located.

(16) "Massage therapy" or "massage" means care and services provided in a system of therapeutic, structured touch, palpation or movement of the skin, muscle, tendons, fascia and the lymphatic system of another person's body in order to enhance or restore the general health and well-being of the recipient. Such a system includes, but is not limited to techniques such as effleurage, commonly called stroking or gliding; petrissage, commonly called kneading; tapotement or percussion; friction, vibration, compression; stretching within the normal anatomical range of movement; hydrotherapy; or such techniques which may be applied with or without the aid of lubricants, salt or herbal preparations, water, hot and cold application or a massage device that mimics or enhances the actions possible by human hands.

Massage therapy shall not include diagnosis or treatment or use of procedures for which a license to practice medicine or surgery, chiropractic, or podiatry is required, and does not include the laying on of hands performed within the context of religious or spiritual beliefs.

(17) "Massage therapy business" means any business offering or providing massage therapy for consideration except as exempted in section 3.55.020; and whether at a fixed place of business or at a location designated by the customer or client through outcall massage services. The term "massage therapy business" includes a massage therapist who is the sole owner, operator and employee of a massage therapy business operating as a sole proprietorship.

(18) "Offer" includes any form of communication, by any medium.

(19) "Official transcript" means a document certified by a school on a form approved and prescribed by the United States Department of Education or other regulating authority, indicating the hours and types of coursework, examinations and scores that were completed by the student.

(20) "Operator" means the person to whom a massage therapy business license is issued.

(21) "Outcall massage" means the engaging in or carrying on of massage therapy for compensation in a location other than the business operations address set forth in the massage establishment's massage therapy business license.

(22) "Permit" means the permit issued by the city to a massage therapist.

(23) "Person" means any individual, corporation, partnership, association, firm, joint venture, company or other state franchised business entity such as a professional association, limited liability company, limited liability partnership or other organization of any kind.

(24) "Sole proprietorship" means and includes any legal form of business organization where the business owner (sometimes referred to as the "sole proprietor") is the only person employed by that business to provide massage services.

(Ord. No. 50-248 § 1, 4-26-16)

Sec. 3.55.020. Exceptions.

The provisions of this chapter shall not apply to the following:

(1) Persons holding an unrevoked license or certificate to practice any of the healing arts under the laws of the state; persons licensed under the laws of this state to practice any of the following: podiatry, as a physical therapist, as a professional nurse or as a practical nurse while such persons are engaged in their licensed practice; and all persons working under the supervision and control of such licensed persons while engaged in their licensed practice;

(2) Any medical care facility as defined and licensed under the laws of this state applicable to such medical care facility or persons employed thereby, while engaged in their usual duties for such medical care facility;

(3) Any adult care home as defined and licensed under the laws of this state applicable to such adult care home or persons employed thereby, while engaged in their usual duties for such adult care home;

(4) Any person engaged in barbering or in the practice of cosmetology or apprentice while carrying out their particular profession or business and holding a valid, unrevoked license or certificate of registration issued under the laws of this state applicable to such barbering or cosmetology practice;

(5) Employees of schools supported primarily by taxation, of schools exempt from payment of property taxes, and of "proprietary schools," approved by the Kansas Board of Regents while engaged in their usual duties for the school;

(6) Any person providing massage therapy to a person related to them by blood or marriage when there is no charge for such massage therapy;

(7) Massage therapy students enrolled in a proprietary school approved by the Kansas Board of Regents while under the direct supervision of a licensed massage therapist; or

(8) A trainer of any duly constituted athletic team while in the normal course of his or her duties.

(Ord. No. 50-248 § 2, 4-26-16)

Sec. 3.55.030. License required.

It is unlawful for any person to operate a massage therapy business without a valid license as required by this chapter.

(Ord. No. 50-248 § 3, 4-26-16)

Sec. 3.55.040. Application for license.

(a) Any person desiring to obtain a license to operate a massage therapy business shall make written application to the city treasurer's office.

(b) The application shall be verified and accompanied by the license fee.

(c) All applicants shall provide the following information under oath:

(1) The full true name and any other aliases used by the applicant;

(2) If the applicant is an individual, the name, date of birth, race, sex, address, telephone number and email address of the proposed licensee;

(3) The name, address and telephone number of the business and type of business organization (individual, partnership, corporation or limited liability company). If the business is a partnership, corporation or limited liability company, the same information required of an individual applicant in subsections (2), (8), (9) and (10) is required of all partners, officers, directors, managers, members or persons owning more than five percent of the common or preferred stock of the business;

(4) The proposed address and name or names of the premises upon which the massage therapy business for which a license is sought will be located and any name under which the applicant plans to conduct business ("dba" name);

(5) The hours that the massage therapy business service will be open to the public, including such times that the door or doors providing entry to the massage therapy business may be locked as allowed in subsection 3.55.170(e) and amendments thereto;

(6) The name of the owner of the premises upon which the message therapy business is to be located;

(7) A certificate of good standing from Kansas, or other state of incorporation or registration, if the applicant is a corporation, partnership or limited liability company;

(8) A statement that the applicant or any partner, officer, director, manager, member or person owning more than five percent of the common or preferred stock of the business has not within five years preceding the date of application been convicted of, or on diversion or deferred judgment for any felony or any crime of moral turpitude as defined in subsection 3.55.010(7);

(9) A statement that the applicant or any partner, officer, director, manager, member or person owning more than five percent of the common or preferred stock of the business is currently under indictment, charge or information for any felony or any crime of moral turpitude as defined in subsection 3.55.010(7);

(10) A statement as to whether the applicant or any partner, officer, director, manager, member or person owning more than five percent of the common or preferred stock of the business is a registered sex offender;

(11) Information as to whether such individual or business has ever been refused any similar license or permit, or has had any similar license or permit issued to such individual or business in the city or elsewhere revoked or suspended, and the reason thereof; and

(12) A statement by the applicant that he or she is familiar with the provisions of this chapter and is complying and will comply with them.

(Ord. No. 50-248 § 4, 4-26-16)

Sec. 3.55.050. Standards for issuance of license.

(a) To receive a license to operate a massage therapy business, all applicants must meet the following standards:

(1) The required fees must be paid;

(2) The application must be complete and provide all information required by section 3.55.040;

(3) The applicant must not have knowingly made a false or misleading statement of a material fact in the application;

(4) The applicant must be at least eighteen years of age;

(5) The applicant must not, within five years immediately preceding the date of the filing of the application, have been convicted in any jurisdiction of a felony or crime involving moral turpitude as defined in this chapter. For the purposes of this section the term "conviction" shall include being placed on diversion, enter-

ing into a deferred judgment program, or being adjudged guilty upon entering a plea of no contest;

(6) The applicant must not be currently under indictment, charge or information for any felony or any crime of moral turpitude as defined in subsection 3.55.010(7);

(7) The applicant must not be a registered sex offender with any federal, state or local government;

(8) The applicant must not have had a similar type of license in any jurisdiction previously suspended or revoked for good cause within five years immediately preceding the date of the filing of the application; and

(9) The operation of the business as proposed, if permitted, must comply with all applicable building, fire, health and zoning laws, including compliance with Article IV.E of the Wichita/Sedgwick County unified zoning code when located in a residence. Additionally, any business operating out of a residence shall obtain a home occupation license as required by chapter 3.96 of this Code.

(b) If the applicant is a partnership, corporation, limited liability company or other type of organization where two or more persons have a financial interest the following standards must be met:

(1) All persons having financial interest in the partnership, corporation or other type of organization shall be at least eighteen years of age. Financial interest in a corporation includes any officer or director of the corporation and any stockholder holding more than five percent of the stock of a corporation;

(2) No person having a financial interest in the partnership, corporation, limited liability company or any other type of organization shall, in any jurisdiction, have been convicted of, pled no contest to, or participated in a diversion or deferred judgment program, after having been charged with a felony or any crime involving moral turpitude as defined in section 3.55.010(7) within the immediate five years preceding the date of the application;

(3) No person having a financial interest in the partnership, corporation, limited liability company or any other type of organization shall be currently under indictment, charge or information for any felony or any crime of moral turpitude as defined in subsection 3.55.010(7); and

(4) No person having a financial interest in the partnership, corporation, limited liability company or any other type of organization shall be a registered sex offender with any federal, state or local government.

(Ord. No. 50-248 § 5, 4-26-16)

Sec. 3.55.060. Permit required, exception.

It is unlawful for any individual person to practice massage therapy without a valid massage therapist permit as required by this chapter. Provided, however, permits are not required for students enrolled in a massage therapy program at an accredited institution during the time such student is completing a clinical requirement for graduation and is practicing massage therapy while under the direct supervision of a massage therapist who holds a valid permit under this chapter. Direct supervision requires the presence of the massage therapist holding a permit under this chapter to be on the same premises as the student providing massage therapy services.
(Ord. No. 50-248 § 6, 4-26-16)

Sec. 3.55.070. Application for permit.

(a) Any person desiring to secure a permit to practice massage therapy shall make written application to the city treasurer on a form provided for that purpose. The application shall be accompanied by the required licensee fee and shall provide the following information:

(1) The applicant's full name, address, date of birth, any other used aliases, gender, present and previous employment for the past five years and current phone number and current email address, if available;

(2) The applicant's city, state and country of residence for the five years immediately preceding the date of the application;

(3) A statement that the applicant is a citizen or lawful resident of the United States and is not less than eighteen years of age;

(4) A statement that the applicant has not been convicted of a felony or any crime involving moral turpitude as defined in section 3.55.010(7) within five years immediately preceding the date of the application. For the purposes of this section the term "conviction" shall include being placed on diversion, entering into a deferred judgment program, or being adjudged guilty upon entering a plea of no contest;

(5) A statement that the applicant is not currently under indictment, charge or information for any felony or any crime of moral turpitude as defined in subsection 3.55.010(7);

(6) A statement that the applicant is not a registered sex offender with any federal, state or local government;

(7) Proof of any education, training and experience the applicant may have had qualifying applicant to administer the service of a massage therapist as required by section 3.55.080(5) or, if applicable, section 3.55.085(2) of this code;

(8) Information as to any prior permit or license allowing the practice of massage therapy issued to the applicant within the past five years. Specifically, the applicant shall provide information as to the type of license, the issuing agency or jurisdiction, the address and phone number of the issuing agency or jurisdiction, the time period covered by the prior license and whether any such license issued to applicant in any jurisdiction was ever revoked or suspended and the reason or reasons for such revocation or suspension; and

(9) Information as to whether applicant has ever been refused or denied any permit or license allowing the practice of massage therapy within the past five years and the specific date of such refusal or denial, the jurisdiction where such refusal or denial occurred, the address and phone number of the agency denying or refusing such license or permit and reason for such refusal or denial.

(Ord. No. 50-248 § 7, 4-26-16)

Sec. 3.55.080. Standards for issuance of permit.

To receive a permit to provide services as a massage therapist an applicant must meet the following standards:

(1) The applicant must be at least eighteen years of age and a lawful citizen or resident of the United States.

(2) The applicant must not have been convicted or released from imprisonment after conviction of a felony or any crime involving moral turpitude within five years immediately preceding the date of application. For the purposes of this section the term "conviction" shall include being placed on diversion, entering into a deferred judgment program, or being adjudged guilty upon entering a plea of no contest.

(3) The applicant must not be currently under indictment, charge or information for any felony or any crime of moral turpitude as defined in subsection 3.55.010(7);

(4) The applicant must not be a registered sex offender with any federal, state or local government.

(5) The applicant must provide one of the following:

(a) Proof the applicant has sat for and passed the Massage and Bodywork Licensure exam (MBLEx); or

(b) Proof the applicant has sat for and passed the National Certificate of

Therapeutic Massage and Bodywork exam (NCTMB) prior to February 1, 2015; or

(c) An official transcript showing the applicant has successfully completed a minimum of five hundred instructor taught classroom hours within a recognized massage therapist school; or

(d) Proof of one hundred fifty hours of education from an accredited institution, at least twelve hours of continuing education units in the last five years, and membership in a nationally recognized massage therapy association.

(6) The applicant must not have had a similar type of permit or license suspended or revoked in any jurisdiction within five years immediately preceding the date of the filing of the application.

(Ord. No. 50-248 § 8, 4-26-16)

Sec. 3.55.085. Licensing of existing massage practitioners.

For a period of one year after the effective date of this chapter, an applicant may obtain a renewable permit to provide services as a massage therapist by meeting the following standards:

(1) The applicant must meet the requirements contained in subsection (1), (2), (3), (4) and (6) of section 3.55.080, and amendments thereto; and

(2) The applicant meets one of the following requirements:

(a) The applicant has completed a minimum of five hundred hours of instruction relating to massage therapy at a massage school or comparable legal authority in another state verified by affidavit; or

(b) The applicant has completed at least three hundred hours of training in massage therapy during the past three years; or

(c) The applicant has practiced for at least ten hours per week for five years verified by affidavit and at least one additional form of documentation including, but not limited to tax returns, gross tax receipts, business advertising literature or monthly client receipts; or

(d) The applicant has successfully passed a nationally recognized certification examination provided by the National Certification Board for Therapeutic Massage and Bodywork.

(Ord. No. 50-248 § 9, 4-26-16)

Sec. 3.55.090. Fees.

(a) For every massage therapy business there shall be a two-year license fee of $200.00. This fee shall accompany all initial and renewal license applications and no license shall be issued until the fee is paid in full.

(b) For every massage therapist permit there shall be a two-year permit fee of $75.00. This fee shall accompany all initial and renewal applications for a permit and no permit shall be issued until the fee is paid in full.

(c) There shall be a fee of $5.00 for replacement of the identification card required in section 3.55.110.

(d) All fees set forth in this section are nonrefundable and no fees shall be pro-rated.

(Ord. No. 50-248 § 10, 4-26-16)

Sec. 3.55.100. Display of license—Massage therapy business.

The license issued pursuant to the requirements of this chapter shall be displayed in a conspicuous public place within the premises licensed as a massage therapy business. Failure to display such license shall be deemed a violation of this chapter and punishable as set forth in section 3.55.220.

(Ord. No. 50-248 § 11, 4-26-16)

Sec. 3.55.110. Display of permits and identification cards—Massage therapist.

All massage therapists holding a permit under the provisions of this chapter shall, at all times when working in a massage therapy business or providing any service regulated by this chapter, have in their possession a valid identification card issued by the city and bearing the massage therapist's permit number and photograph. Such identification card shall be laminated to prevent alteration. All persons granted permits under this chapter shall at all times keep their permits available for inspection upon request by any law enforcement officer, health officer, or designated representative thereof. It is unlawful for any permit holder to engage in any activity within the purview of this chapter without having such permit in his or her possession and failure to do so shall be punishable as set forth in section 3.55.220.
(Ord. No. 50-248 § 12, 4-26-16)

Sec. 3.55.120. Duration of license or permit, renewal thereof.

A license to operate a massage therapy business and a permit to perform services as a massage therapist issued pursuant to the provisions of this chapter are both valid for a term of two years. Such license and permits must be renewed to continue operation of a massage therapy business or before performing services as a massage therapist in the following year. Application for renewal must be made not later than thirty days prior to the date of expiration of the license.
(Ord. No. 50-248 § 13, 4-26-16)

Sec. 3.55.130. Suspension or revocation of license or permit, notice.

(a) A license or permit issued pursuant to this chapter may be suspended for up to thirty days by the health officer or the chief of police. Any suspension shall be upon five days' written notice of the permit holder or licensee, or if the licensee is a corporation or other business entity, any of its officers, directors, partners, associates, managers, persons owning more than five percent of a corporation's stock or any employee thereof has:

(1) Failed to provide complete information as requested on any application or if any data is not updated as required by this chapter; or

(2) Failed to pay the license fee; or

(3) Violated any provision of this chapter or any other ordinance, rule or regulation by the city council which is not specified in subsection (b) below as grounds for revocation of a license or permit; or

(4) Has aided or abetted the commission of, or knowingly allowed or encouraged any act which is a violation of this chapter which is not specified in subsection (b) below as grounds for revocation of a license or permit; or

(5) A license or permit issued under this chapter may be suspended if the premises are in violation of the sanitary requirements set forth in section 3.55.150 of this chapter, or are in violation of the health, fire, zoning or building codes of the city or the state.

(b) A license or permit issued pursuant to this chapter may be revoked by the health officer or the chief of police. Any revocation shall be upon five days' written notice of the licensee or permit holder, or if the licensee is a corporation or other business entity, any of its officers, directors, partners, associates, managers, persons owning more than five percent of a corporation's stock or any employee thereof:

(1) Has knowingly made any false statement or given any false information in connection with an application for a permit or license or a renewal of a permit or license; or

(2) Has been convicted of, or is under indictment, charge or information for any felony or any crime of moral turpitude as defined in subsection 3.55.010(7) or any act which would be grounds for denial of an applica-

tion for a permit or license, or otherwise becomes ineligible for a license or permit; or

(3) Has failed to allow the entry upon and inspection of the premises as required by section 3.55.160 of this chapter; or

(4) A license or permit issued under this chapter may be revoked upon the commission by the licensee or permit holder of four or more offenses as set forth in subsection (a) above within a two-year period. For the purposes of this provision, it is irrelevant whether an offense occurred before or after suspension for a previous offense or whether the offense or offenses occurred on or upon the same licensed premises.

(c) For the purposes of this section, "conviction" shall include being placed on diversion or deferred judgment or being adjudged guilty upon entering a plea of no contest, and the filing of charges or a conviction in a court of law is not required to establish that a licensee or permit holder has violated any provision of this chapter or any other ordinance, rule or regulation by the city council. A certified copy of conviction from any local or state court is prima facie evidence of a violation.

(d) For the purposes of subsections (a) and (b) of this section, the health officer or the chief of police shall provide written notice of the intent to revoke, suspend or deny a massage therapy business license or a massage therapist permit by personal service or by certified mail, return receipt requested. The notice shall be sent to the mailing address of the licensee on file with the city treasurer. The notice shall provide the effective date of the revocation or suspension of the license or permit. Such notice shall detail the reasons or basis for the suspension or revocation of the license or permit and shall specify the rights of the licensee to appeal any such revocation or suspension.
(Ord. No. 50-248 § 14, 4-26-16)

Sec. 3.55.140. Appeal procedure.

(a) Any applicant, licensee or permit holder aggrieved by the denial, suspension or revocation of a massage therapy business license or a massage therapist permit may file with the city clerk a written notice of appeal to the city council within ten business days of the decision by the health officer or chief of police or his or her designee. The notice of appeal shall specify:

(1) The name and address of the appellant;

(2) The date of application;

(3) The date of the denial, suspension or revocation of the license, permit or application; and

(4) The factual basis for the appeal.

(b) Upon receipt of a complete and timely filed notice of appeal, the city clerk shall schedule a hearing before the city council, no later than thirty days from the date of the filing of the notice of appeal with the city clerk. Any appeal shall stay the suspension or revocation of the license or permit until the matter is heard by the city council.

(c) The city council may approve the denial, suspension or revocation, overrule the denial, suspension, or revocation or modify the decision of the health officer or the chief of police.

(d) In any hearing before the city council pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation, is prima facie evidence of such violation.

(e) The city council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the district court shall not stay the denial, suspension or revocation of the license, or any modification imposed thereupon by the city council.
(Ord. No. 50-248 § 15, 4-26-16)

Sec. 3.55.150. Sanitary requirements.

All massage therapy business facilities and equipment must comply strictly with the following sanitary conditions:

(1) All surfaces of floors, walls, and ceilings and all equipment used in massage therapy must be capable of being cleaned easily.

(2) All surfaces subject to dermal contact used in the treatment of clients must be completely cleaned and disinfected after every use or covered with a fresh, sanitary, disposable liner or cover or with a cloth sheet or cover that has not been previously used for a different client since laundering.

(3) Towels, robes, bandages, pads, paper, or other articles that come into contact with any part of the client's body must be laundered, cleaned and disinfected, or disposed of after each use and before being used by a different client.

(4) Covers, liners, or sheets designated in subsection (3) of this section must be stored prior to use in a sanitary dust-proof environment.

(5) Lavatory and toilet facilities must be provided, along with adequate and convenient hand-washing facilities, including hot and cold running water, soap and towels, which are accessible to employees.

(6) Wet and dry heat rooms, shower compartments, and toilet rooms shall be thoroughly cleaned and disinfected each day the business is in operation. Bathtubs shall be thoroughly cleaned and disinfected after each use.

(Ord. No. 50-248 § 16, 4-26-16)

Sec. 3.55.160. Inspection of premises; immediate right of entry.

The premises of a massage therapy business shall be open to inspection by any health, fire, zoning, and license and building code enforcement personnel of the city, as well as city police officers or personnel from other law enforcement agencies during any hours in which any person is present thereon. Such inspections shall be for the purposes of determining compliance with the provisions of this chapter. Failure by any person to allow any code enforcement inspector or law enforcement official immediate access to the premises or to hinder such inspector or officer in any manner shall be grounds for revocation or suspension of any massage therapy business license and/or employee permit.

(Ord. No. 50-248 § 17, 4-26-16)

Sec. 3.55.170. Operating requirements—Massage therapy business.

(a) *Written receipts to clients available.* A massage therapy business shall make available upon request by a patron a written receipt of payment for massage therapy services. The receipt shall clearly state the type of services performed and the total amount of money such services cost the client.

(b) *Employee registers required.* The owner, operator, supervising employee or anyone in control of a massage therapy business shall maintain daily register/time sheet for all employees of the massage therapy business on a form approved by the chief of police and shall contain the identifying information for all employees, including the name, address, birth date, gender and duties of each employee, the hours of employment on a daily basis of each employee, and such other information as may be required by the health officer or chief of police. The daily register required in this subsection shall be kept on file upon the same premises as the licensed business for a period of one year, and shall be kept for all persons deemed "employees" as that term is defined in section 3.55.010(9) and amendments thereto.

(c) *[Permits for employees.]* The owner, operator, supervising employee or anyone in control of a massage therapy business shall maintain a copy of the massage therapist permit for all employees who are required to be licensed by this chapter.

(d) *Hours of operation.* A licensed massage therapy business shall be closed and operations shall cease between the hours of 12:00 midnight and 6:00 a.m. each day.

(e) *[Public entry.]* The door or doors providing entry to a massage therapy business by the public shall remain unlocked during business hours when the establishment is open for business or when clients are present. Provided,

however, if a massage therapy business is operating as a sole proprietorship and does not have staff available to assure security and safety for clients and massage staff behind closed doors, the door or doors providing entry area to the massage therapy business may be locked during business hours.

(f) *Conduct of premises.* All licensees licensed under the provisions of this chapter shall at all times be responsible for the conduct of all employees, independent contractor massage therapists and the employees of an independent contractor massage therapist while on the licensed premises and for any act or omission constituting a violation of the provisions of this chapter. Any violation of city, state or federal laws committed on the licensed premises by such licensee, employee, independent contractor massage therapist or the employee of an independent contractor massage therapist affecting the eligibility or suitability of such person to hold a license may be grounds for suspension or revocation of the same.

(g) *Supervision of licensed premises.* A licensee shall have the premises supervised at all times when open for business. The licensee, the licensee's resident agent if a corporation, or a person employed and permitted as a massage therapist shall be personally upon the premises and supervising the business at all such times and shall not violate or permit others to violate any applicable provision of this chapter. The violation of any such provision by any agent or employee of the licensee shall constitute a violation by the licensee.
(Ord. No. 50-248 § 18, 4-26-16)

Sec. 3.55.180. Prohibited acts.

It shall be unlawful and punishable as set forth in section 3.55.220 for any operator, agent or employee of an operator, massage therapist, independent contractor massage therapist, or employee of an independent contractor massage therapist to commit any of the following acts:

(1) Permit to be performed, offer to perform or perform with any client any sexual act prohibited by state statute or city ordinance; including sale of sexual relations; or

(2) Permit to be performed, offer to perform or perform with any client an act of sexual intercourse, oral-genital contact, anal copulation, the touching of the sexual organs, pubic region, female breast of a person, or manual or other contact stimulation of the genitalia for the purpose of arousing or gratifying the sexual desires of the operator, agent, employee, massage therapist or client; or

(3) Expose while administering massage therapy for compensation the human male or female genitals, anus, anal cleft or cleavage; the female breast below a horizontal line across the top of the areola at its highest point, which includes the entire lower portion of the human female breast, but does not include any portion of the cleavage of the human female breast exhibited by a dress, blouse, shirt, leotard, bathing suit or other wearing apparel, provided the areola is not exposed in whole or in part; or covered male genitals in a discernibly turgid state; or

(4) While in the presence of any person, or while administering or receiving massage therapy fail to cover with a fully opaque covering the human male or female genitals, anus, anal cleft or cleavage; the female breast below a horizontal line across the top of the areola at its highest point, which includes the entire lower portion of the human female breast, but does not include any portion of the cleavage of the human female breast exhibited by a dress, blouse, shirt, leotard, bathing suit or other wearing apparel, provided the areola is not exposed in whole or in part; or

(5) For any person who owns, rents, leases, operates or manages a massage business to cause, allow, or permit in or about said massage business, any person to engage in the acts prohibited in this section.

(Ord. No. 50-248 § 19, 4-26-16)

Sec. 3.55.190. Persons under age eighteen prohibited services.

No licensee or permit holder shall perform or permit any massage therapy to be provided to a person under the age of eighteen years, provided a person under the age of eighteen years may utilize or receive massage therapy from a massage therapist if accompanied by a parent or legal guardian and a parent or legal guardian has authorized such therapy in writing.
(Ord. No. 50-248 § 20, 4-26-16)

Sec. 3.55.200. Transfer of license or permit.

No massage therapy business license or massage therapist permit is transferable or assignable and such authority as a license or permit confers shall be conferred only on the licensee or permit holder and the location named therein. Additionally, if a massage therapy business or the business entity that holds the license of such a business changes either the name of the business entity or the name under which the entity is doing business ("dba" name), the existing license shall not transfer and a new license shall be required to continue to conduct a massage therapy business.
(Ord. No. 50-248 § 21, 4-26-16)

Sec. 3.55.210. Applicability to existing businesses and providers of massage therapy.

(a) The provisions of this chapter shall be applicable to all existing massage therapy establishments or businesses currently participating in the activities described and regulated by this chapter, regardless of when established. All existing massage therapy businesses at the time of the passage of the ordinance codified in this chapter must submit an application for a license within one hundred twenty days of the effective date thereof.

(b) The provisions of this chapter shall also apply to all persons who are currently engaged in the provision of massage therapy or are participating in the provision of activities described and regulated by this chapter. Such persons must submit an application for a massage therapist permit within one hundred twenty days of the effective date of the ordinance codified in this chapter.
(Ord. No. 50-248 § 22, 4-26-16)

Sec. 3.55.220. Penalties.

Any person who violates any of the provisions of this chapter within the corporate limits of the city shall be deemed guilty of a misdemeanor and upon conviction hereof shall be punished by a fine of not more than $2,500.00 or by imprisonment for not more than one year or by both such fine and imprisonment, however, upon a conviction of an offense related to the conduct of a massage business, the court shall impose a mandatory minimum fine of no less than $250.00. Upon a conviction of an offense relating to the conduct of an individual massage therapist, the court shall impose a mandatory minimum fine of no less than $100.00.
(Ord. No. 50-248 § 23, 4-26-16)

Sec. 3.55.230. Invalidity of part.

Should the court declare any section, clause or provision of this chapter to be unconstitutional such decision shall affect only such section, clause or provision so declared unconstitutional and shall not affect any other section, clause or provision of this chapter.
(Ord. No. 50-248 § 24, 4-26-16)

Sec. 3.55.240. Injunctive relief or civil remedies.

In addition to any other legal remedy provided in this chapter, the operation of a massage therapy business without a license or the violation of this chapter is deemed a public nuisance and may be enjoined by the city.
(Ord. No. 50-248 § 25, 4-26-16)

CHAPTER 3.56. RESERVED*

*__Editor's note—__Ord. No. 50-248 § 26, adopted April 26, 2016, repealed chapter 3.56, which pertained to bathhouses and massage salons and derived from Ord. No. 35-641 (part); Ord. No. 40-576 §§ 1, 2 and Ord. No. 39-252 § 1. Similar provisions may now be found at chapter 3.55, massage therapy businesses.

CHAPTER 3.64.
ADVERTISING—VEHICULAR*

Sec. 3.64.010. License—Required.
Sec. 3.64.020. Same—Fees.
Sec. 3.64.030. Same—Certain advertising exempt from payment of fees.
Sec. 3.64.040. Vehicles using sound-producing devices—Prohibited in congested district; exception.
Sec. 3.64.050. Same—Hours of operation; parking prohibited.

Sec. 3.64.010. License—Required.

It shall be unlawful for any person to engage in advertising by radios, public address systems, loudspeakers or other sound-producing devices, signs, banners, posters, persons, or any advertising device placed on any automobile, truck, wagon or other vehicle which shall be operated upon the streets of the city, without first procuring a license therefor from the license collector.
(Ord. No. 17-657 § 1)

Sec. 3.64.020. Same—Fees.

The following fees shall be paid to the license collector before any person may secure a license required by the preceding section: For each vehicle, two dollars per day, five dollars per week or twenty-five dollars for six months.

Any person operating in excess of five vehicles as referred to in the preceding section may, in lieu of the license provided for above for individual vehicles, obtain a fleet license by payment of a fleet license tax as follows: (a) More than five but less than twenty-five vehicles, fifty dollars for six months; (b) more than twenty-five but less than fifty vehicles, one hundred dollars for six months; (c) more than fifty vehicles, one hundred dollars, plus one dollar for every vehicle over fifty.
(Ord. No. 17-657 § 1)

Sec. 3.64.030. Same—Certain advertising exempt from payment of fees.

In such cases where the advertising referred to in this chapter is exclusively for political, religious or charitable purposes and for nonprofit motives, no fee shall be collected by the license collector, but a free permit shall be issued by him upon the presentation of proper documentary evidence certifying as to the particular political, religious, charitable or nonprofit motive to be advertised. The permit shall be issued for that purpose only.
(Ord. No. 17-657 § 1)

Sec. 3.64.040. Vehicles using sound-producing devices—Prohibited in congested district; exception.

Vehicles referred to in this chapter engaged in advertising by means of any sound-producing device shall be prohibited in the congested district; provided, however, that any person operating his own vehicle upon which he carries the sign or advertising of his own business shall be exempt from the provisions of this section.

For the purpose of this section the congested district shall be defined as follows: (a) That district bound by Lewis Street, the Arkansas River, Central Avenue and the elevated tracks; (b) Douglas Avenue from the Arkansas River to Seneca Street; (c) Douglas Avenue from the elevated tracks to Hydraulic Avenue.
(Ord. No. 17-657 § 1)

Sec. 3.64.050. Same—Hours of operation; parking prohibited.

Vehicles referred to in this chapter where sound-producing devices are used in connection therewith shall not be allowed to operate between the hours of 8:00 P.M. and 8:00 A.M. and that any such vehicle shall not be permitted to park on the streets or alleys for the purpose of advertising.
(Ord. No. 17-657 § 1)

*__Cross references__—For provisions as to loud and unnecessary noises, see Chapter 5.58; For permit fees as to signs and billboards, see Chapter 24.04; For provisions relating to unlawful advertising, see Chapter 5.04.

CHAPTER 3.66. RESERVED*

*__Editor's note—__Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed ch. 3.66, §§ 3.66.010—3.66.090, which pertained to advertising—distributing signs, bills and posters, and derived from Ord. No. 13-161, §§ 1—4; Ord. No. 36-974; and Ord. No. 39-250 § 1.

CHAPTER 3.68. RESERVED*

*__Editor's note—__Ord. No. 49-108, § 1, adopted October 25, 2011, effective January 31, 2012, repealed Ch. 3.68, §§ 3.68.005—3.68.190 in its entirety. Formerly, said chapter pertained to Sureties and Bondsmen and derived from Ord. No. 23-426, §§ 1—19 and subsequent amendatory provisions. See also the Code Comparative Table.

CHAPTER 3.70. PERMIT USE FEES FOR CITY CEMETERIES

Sec. 3.70.010. Cemetery interment permit required.
Sec. 3.70.020. Monument permit required.
Sec. 3.70.030. Disinterment permit required.
Sec. 3.70.040. Fees.
Sec. 3.70.050. Penalties.

Sec. 3.70.010. Cemetery interment permit required.

It is unlawful for any person, whether as principal, officer, agent, servant or employee to inter the remains or cremains of any person in a cemetery under the management and control of the City without first having applied for and obtained an interment permit from the City Treasurer.
(Ord. No. 50-088, § 1, 10-13-2015)

Sec. 3.70.020. Monument permit required.

It is unlawful for any person, whether as principal, officer, agent, servant or employee to place any monument marker or memorial on a grave site in a cemetery under the management and control of the City without first having applied for and obtained a monument permit from the City Treasurer.
(Ord. No. 50-088, § 2, 10-13-2015)

Sec. 3.70.030. Disinterment permit required.

It is unlawful for any person, whether as principal, officer, agent, servant or employee to reopen a grave to disinter the remains of any person in a cemetery under the management and control of the City without first having applied for and obtained a disinterment permit from the City Treasurer.
(Ord. No. 50-088, § 3, 10-13-2015)

Sec. 3.70.040. Fees.

The fees for interment or disinterment permits shall be in an amount equal to that charged to the City by the contractor performing the service of opening and closing a grave or reopening and closing a grave. The fee for a monument permit shall be in the amount of $50.00. In addition, an administrative fee of $25.00 shall be charged for any permit issued pursuant to this section.

Fees collected for interment and disinterment permits are to be applied to the expense of opening and closing of grave sites and the administrative costs of the City. The additional administrative fees collected are to be deposited into the City's Cemetery Fund and shall be used to maintain, care for and improve the cemeteries under the management and control of the City.
(Ord. No. 50-088, § 4, 10-13-2015)

Sec. 3.70.050. Penalties.

Any person violating any of the provisions of this chapter shall be guilty of a misdemeanor and shall be punished by a fine not to exceed $500.
(Ord. No. 50-088, § 5, 10-13-2015)

CHAPTER 3.72. PRIVATE SECURITY OFFICERS AND PRIVATE SECURITY AGENCIES*

Sec. 3.72.005. Reserved.
Sec. 3.72.010. Definitions.
Sec. 3.72.015. Scope of regulations, authority of licensees and permittees.
Sec. 3.72.020. Persons not deemed to be engaged in private security business.
Sec. 3.72.030. License required—Private security agency.
Sec. 3.72.040. Private security permit required.
Sec. 3.72.050. Private security agency license, application form and content, grounds for denial.
Sec. 3.72.055. Fees—Private security agency license—New and renewal.
Sec. 3.72.060. Bond required—Private security agency; conditions, amount and term.
Sec. 3.72.070. Insurance required—Private security agency.
Sec. 3.72.080. License form, content and duration.
Sec. 3.72.090. Records of employees to be kept by private security agency.
Sec. 3.72.100. Revocation or suspension of permit/license.
Sec. 3.72.110. Revocation or suspension of permit/license, notice and hearing procedures.
Sec. 3.72.120. Qualifications for a private security permit.
Sec. 3.72.130. Application for private security permit—Approval of issuance.
Sec. 3.72.140. Permit—Information and display required.
Sec. 3.72.150. Temporary basic private security permit.
Sec. 3.72.160. Fees—Permits and training—New and renewal.
Sec. 3.72.170. Permit duration.
Sec. 3.72.180. Transferability of permits—Multiple permits.
Sec. 3.72.190. Termination of employment.
Sec. 3.72.200. Permits allowed for persons not employed by a private security agency.
Sec. 3.72.205. Equipment and duty gear authorized by Chief of Police—Carrying unauthorized equipment or wearing of unauthorized duty gear prohibited.
Secs. 3.72.210—3.72.280. Reserved.
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Sec. 3.72.286. Electronic control device permit—Suspension/revocation, grounds therefore and right to hearing.
Sec. 3.72.287. Severability.
Sec. 3.72.290. Uniform requirements.
Sec. 3.72.300. Uniforms—Prohibited acts.
Sec. 3.72.310. Vehicles.
Sec. 3.72.320. Arrest by a private person.
Sec. 3.72.330. Impersonating a private security officer.
Sec. 3.72.340. Penalty.

*__Editor's note—__Ord. No. 47-918, § 1, adopted June 24, 2008, amended Ch. 3.72, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Ch. 3.72 pertained to private merchant police, watchmen and security officers. See also the Code Comparative Table.

Sec. 3.72.005. Reserved.

__Editor's note—__Ord. No. 49-762, § 1, adopted June 17, 2014, repealed § 3.72.005, which pertained to preamble and derived from Ord. No. 49-513, § 1, 6-11-2013.

Sec. 3.72.010. Definitions.

For the purpose of this chapter, the words and phrases used herein shall have the following meanings unless otherwise clearly indicated by the context:

(1) "Agency" means an establishment engaged in doing business for another.

(2) "Arrest" means the act of stopping, and the taking or detaining in custody by authority of law.

(3) "Authorized equipment and duty gear" means equipment and duty gear authorized by the Chief of Police that may be carried or used by private security officers permitted under this chapter.

(4) "Basic responsibilities of a private security officer" means to observe and report crimes and incidents; on occasion to stop and question; to provide security against loss from fire or mechanical equipment failure and enforce property rules and regulations; to control access to specific areas of a facility or building; and to act occasionally as a crowd monitor or to maintain order. These responsibilities shall include vehicle patrol when an approved classroom course on defensive driving has been completed. These responsibilities shall not include: authority beyond that of a private citizen, the right to use physical force in the performance of these duties except to protect the private security officer and others from clear and immediate threat of serious bodily harm, or acting in the capacity of a private security officer for other than a client for which the private security officer is contracted to provide services.

(5) "Business" means commercial, industrial or professional dealings, activity or the supply of services engaged in as a means of livelihood.

(6) "Client" means any person who engages the services of a private security agency.

(7) "Chief of Police" as used in this chapter means the Chief of the Wichita Police Department or his or her authorized designee.

(8) "Citizen's arrest" or "Arrest by a private person" shall have the meaning as set forth in K.S.A. 22-2403 and any amendments thereto, which states that a person who is not a law enforcement officer may arrest another person when: (1) A felony has been or is being committed and the person making the arrest has probable cause to believe that the arrested person is guilty thereof; or (2) any crime, other than a traffic infraction, has been or is being committed by the arrested person in the view of the person making the arrest.

(9) "For hire" includes all compensation paid directly or indirectly.

(10) "License" means the authority to conduct business by a private security agency within the city limits.

(11) "Licensee" means any person to whom a current license has been issued under this chapter authorizing such person to conduct business as a private security agency within the city limits.

(12) "Person" means any natural person, corporation, partnership or association.

(13) "Permit" means the authority to work as a private security officer in the city limits, and pursuant to the following classifications:

(a) "Temporary basic private security permit" means the permit issued to a person who meets the qualifications required of a private security officer but who has not yet completed the basic private security course. A person with a temporary basic permit may carry out the basic responsibilities of a private security officer, but is not authorized to carry any equipment including handcuffs.

(b) "Basic private security permit" means the permit issued to a person having completed the basic private security course, including a defensive driving classroom course given by either the city of Wichita or a private driving instructor approved in writing by the Chief of Police, and meeting the qualifications required of a private security officer. This permit shall allow the person to perform the basic duties of a private security officer including vehicle patrol. This permit shall not allow the person to carry any equipment other than handcuffs.

(c) "Advanced private security permit" means the permit issued to a person who has completed both the basic and advanced private security courses and meets the qualifications required of a private security officer. This permit shall allow the individual to perform the basic duties of a private security officer to include vehicle patrol and the carrying of authorized equipment as approved in writing by the Chief of Police.

(14) "Private detective" and "Private detective agency" shall have the meaning ascribed to said terms by K.S.A. 75-7b01(b) and (c) and any amendments thereto.

(15) "Private security officer" means any person regularly employed by a person, firm or corporation, and whose duties, in addition to patrolling, guarding, transporting and watching the property of the employer or any client of the employer, include conducting investigations concerning the reputation or character of employees or prospective employees, and investigations concerning the location of property of the employer that becomes

lost or stolen. For the purposes of this chapter, "private security officer" shall not include persons working for an armored car service.

(16) "Private security agency" means any person, firm or corporation who engages in a business for hire to provide a protective service for the property of others, and whose duties and activities in that connection include patrolling, guarding, transporting or watching the property of a subscriber, purchaser or client under a contract or agreement to provide a protective service. For the purposes of this chapter, "private security agency" shall not include armored car services.

(Ord. No. 47-918, § 1, 6-24-08; Ord. No. 49-513, § 2, 6-11-2013; Ord. No. 49-762, § 2, 6-17-2014)

Sec. 3.72.015. Scope of regulations, authority of licensees and permittees.

(1) The provisions of this Chapter are intended to regulate uniformed private security officers as that term is defined in Section 3.72.010(15) herein.

(2) It is not the intent of this Chapter to regulate any of the following:

(a) activities performed in a non-uniformed or plain-clothes capacity; or

(b) activities that fall under the regulation of the statutes of this state or any similar laws from other jurisdictions regulating private investigators; or

(c) activities that are allowed pursuant to the right to carry a firearm recognized pursuant to any federal, state or local law; or

(d) The business of transporting prisoners under a contract with any state or county government or the federal government.

(3) No license or permit issued pursuant to this Chapter provides the holder thereof with any authority to direct traffic on the streets or highways of the City of Wichita.

(4) A licensee or permitee under this Chapter who engages in any activity or business that involves the wearing of non-uniformed or plain clothing must have legal authority for such activity independent of the license or permit issued pursuant to this Chapter.

(Ord. No. 47-918, § 2, 6-24-08; Ord. No. 49-513, § 3, 6-11-2013; Ord. No. 49-762, § 3, 6-17-2014)

Sec. 3.72.020. Persons not deemed to be engaged in private security business.

The following persons shall not be deemed to be engaging in the private security business and the provisions of this chapter are not applicable to:

(1) Any person employed in any capacity if such employee's duties are carried out exclusively on private property owned or under the control of his or her employer; provided, however, that it is unlawful for such employees to wear a distinctive uniform, including a badge, except as follows:

(a) Directly from his or her residence to his or her place of employment,

(b) During his or her tour of duty while actively engaged in the duties of his or her employment,

(c) Directly from his or her place of employment to his or her residence,

(d) The wearing of any distinctive uniform into any tavern or private club is prohibited, and the wearing of any distinctive uniform, including a badge, at any time other than that which has been specified in (a) through (c) above is a violation of this chapter, and shall be punished as set forth in Section 3.72.340.

(2) Any officer or employee of the United States of America or of this state or a political subdivision thereof while engaged in the performance of his or her official duties;

(3) A person engaged exclusively in the business of obtaining and furnishing information as to the financial rating of persons;

(4) A charitable philanthropic society or association duly incorporated under the laws

of any state which is organized and maintained for the public good and not for private profit;

(5) An attorney at law, in performing his or her duties as such attorney at law;

(6) A licensed collection agency or an employee thereof while acting within the scope of his or her employment, while making an investigation incidental to the business of the agency, including an investigation of the location of a debtor or the debtor's property where the contract with an assignor creditor is for collection of claims owed or due or asserted to be owed or due or the equivalent thereof;

(7) Admitted insurers and agents and insurance brokers licensed by the state, performing duties in connection with insurance transacted by them;

(8) The legal owner of personal property which has been sold under the conditional sales agreement or a mortgagee under the terms of a chattel mortgage;

(9) Any bank or other financial institution or any employee thereof whose duties are to provide security and protection services, including transportation of property and provision of cash services for automated teller machines at various locations;

(10) A person engaged solely in the business of securing information about persons or property from public records;

(11) An insurance adjustor;

(12) A licensed private detective; no private detective license or private detective agency license shall authorize the holder thereof to engage in activity regulated by this Chapter without obtaining the license required herein; and

(13) An armored car company or any person employed thereby. The term 'armored car company' shall have the meaning as set forth in the Armored Car Industry Act of 1993, 15 USCS §5901 et seq. and amendments thereto, and which is subject to regulation by that act in order to engage in the business of transporting and protecting currency, bullion, securities, precious metals, and other articles of unusual value in interstate commerce.

(Ord. No. 47-918, § 3, 6-24-08; Ord. No. 49-513, § 4, 6-11-2013)

Sec. 3.72.030. License required—Private security agency.

It is unlawful for any person to engage in the private security business or operate a private security agency in this city without a license as required by this chapter. A private detective license or a private detective agency license issued by the State of Kansas or any other jurisdiction shall not authorize a person to perform the duties of a private security agency as those duties are defined in this chapter, and any person acting as or performing the duties of a private security agency without obtaining the appropriate license required by this chapter shall be considered in violation of this section regardless of whether he or she is in possession of a private detective license or a private detective agency license. Violation of this section is a misdemeanor and shall be punished as set forth in Section 3.72.240.

(Ord. No. 47-918, § 4, 6-24-08; Ord. No. 49-513, § 5, 6-11-2013)

Sec. 3.72.040. Private security permit required.

(1) It is unlawful for any person to act as or perform the duties of a private security officer within the city until such person has obtained from the Chief of Police a private security permit. These permits shall be issued in the following categories: Temporary Basic Private Security, Basic Private Security, Advanced Private Security, and Advanced Private Security and Firearm.

(2) It is unlawful for any person to act as or perform the duties of a particular category of private security officer without having obtained the permit required for that particular category of private security officer.

(3) A private detective license or a private detective agency issued by the State of Kansas or any other jurisdiction shall not authorize a person to perform the duties of a private security officer

as those duties are defined in this chapter, and any person acting as or performing the duties of a private security officer without obtaining the appropriate license required by this chapter shall be considered in violation of this section regardless of whether he or she is in possession of a private detective license or a private detective agency license."

(4) It is also unlawful for a manager, owner, operator or any person in charge of any private security agency within the city to hire a person as a private security officer without first having that person obtain from the Chief of Police a private security officer permit, or the appropriate category of private security permit.

Violation of any of the provisions of this section is a misdemeanor and shall be punished as set forth in Section 3.72.240.
(Ord. No. 47-918, § 5, 6-24-08; Ord. No. 49-513, § 6, 6-11-2013)

Sec. 3.72.050. Private security agency license, application form and content, grounds for denial.

Every firm desiring to be licensed in the City of Wichita, Kansas, as a private security agency shall make application therefore to the City of Wichita. An application for a license under this chapter shall be on a form prescribed by the City Treasurer's Office and accompanied by the required application fee, certificate of insurance and corporate surety bond as required by this chapter. An application shall be verified and shall include:

(1) The name of the agency under which the applicant intends to do business and the complete address of the applicant's principal place of business, including the name and number of the street, or, if the street where the business is located is not numbered, the number of the post office box.

(2) The full name and residence address of the applicant and personal information;

(3) If the license is to be held by a corporation, the Resident Agent and Registered Office of said corporation;

(4) The full name, date of birth, Social Security number and residence address of each of its partners, officers, directors or associates;

(5) Full color photos of any vehicle or vehicles used by the agency and any uniform or uniforms worn by employees of the agency as required by Section 3.72.290 and 3.72.310 of this Chapter;

(6) Before an application for a license may be granted, the applicant, or if the applicant is a corporation, partnership or other business entity, all of the officers, directors, partners, or associates shall:

(a) Be at least 21 years of age,

(b) Comply with such other qualifications as the Chief of Police may fix by rule or regulation;

(7) The Chief of Police or the City Attorney or his or her designee may deny a license if the applicant or, if the applicant is a corporation, partnership or other business entity, any of its officers, directors, partners or associates has:

(a) Committed any act which, if committed by a licensee, would be grounds for the suspension or revocation of a license under this chapter, or

(b) Been convicted of a felony, or

(c) Within ten years immediately prior to the date of application been convicted of any crime involving dishonesty or fraud, any weapons charge, any crime of violence, any crime involving physical force, or violation of any law regulating any controlled substance; or

(d) While unlicensed, committed or aided and abetted the commission of any act for which a license is required by this chapter, or

(e) Knowingly provided false information or made any false statement in his/her application or

(f) Provided incomplete information or failed to provide any requested information on his/her application.

(8) A licensee may request reconsideration of the denial of his/her application by following the procedures set forth in Section 3.04.065 of this Code, and any amendments thereto.

(9) If a license is denied for knowingly providing false information or making any false statement on an application, the applicant, whether an individual or a business entity, shall be ineligible to reapply for a license under this chapter for one calendar year from the date of the license denial.

(10) For the purposes of this section, "conviction" shall not include charges for which a person has successfully completed a diversion or deferred judgment program or which have been expunged or pardoned pursuant to the law of any applicable jurisdiction.

(Ord. No. 47-918, § 6, 6-24-08; Ord. No. 49-513, § 7, 6-11-2013)

Sec. 3.72.055. Fees—Private security agency license—New and renewal.

Every new application for a Private Security Agency license shall be accompanied by a fee of $300.00 per year, and for new applications received on or after July 1, 2014, a fee of $400.00 per year. Every application for a Private Security Agency license renewal shall be accompanied by a fee of $100.00 per year and for renewal applications received on or after July 1, 2014, a fee of $200.00. All fees are non-refundable and no fees shall be pro-rated.

(Ord. No. 47-918, § 7, 6-24-08; Ord. No. 49-513, § 8, 6-11-2013)

Sec. 3.72.060. Bond required—Private security agency; conditions, amount and term.

No license shall be issued under this chapter unless the applicant files a corporate surety bond with the city clerk. Such bond shall be executed by a company authorized to do business in this state in the sum of five thousand dollars, conditioned for the faithful and honest conduct of his/her business by such applicant. The city attorney shall approve each such bond as to its form, execution and sufficiency of the sureties. Such bond shall be taken in the name of the people of this city, and every person injured by any unlawful act of the principal or the principal's employees or agents, whether licensed or not, may bring an action on the bond in his/her own name to recover damages suffered by reason of such unlawful act.

Every licensee shall maintain on file at all times the surety bond required by this chapter in full force and effect. Bonds executed and filed with the city clerk's office pursuant to this chapter shall remain in force and effect until the surety has terminated future liability by a thirty-day notice to the city clerk.

(Ord. No. 47-918, § 8, 6-24-08)

Sec. 3.72.070. Insurance required—Private security agency.

All private security licensees shall carry insurance for the purpose of indemnifying third persons for bodily injury, in amounts not less than five hundred thousand dollars for each bodily injury and one million dollars aggregate limit; and further, to indemnify third persons for any damage to property as the result of the actions of said private security officer or employee, in the amount of not less than two hundred thousand dollars per claimant and five hundred thousand dollars aggregate limit. The insured shall cause to be filed a certificate of insurance with the city clerk approved as to form by the city attorney. It shall be the business licensee's responsibility to determine that its insurance carrier has notified the city clerk of any lapse or cancellation in coverage within ten days of notification to the insured.

The policy shall also provide coverage in the amounts of not less than one hundred thousand dollars per claimant and three hundred thousand dollars aggregate limit for false arrest, slander and malicious prosecution.

(Ord. No. 47-918, § 9, 6-24-08)

Sec. 3.72.080. License form, content and duration.

(1) A license, when issued, shall be in such form as may be determined by the city treasurer's office, and shall include:

(a) The name of the licensee;

(b) The name under which the licensee is to operate;

(c) The number and date of the license.

(2) Any license issued shall be valid for a period of one year from the date of issuance and shall not be assignable. Renewal of any such license shall be made as prescribed for obtaining an original license, including payment of the appropriate fee required by this chapter, and providing proof of the required bond and insurance coverage.

(3) It shall be unlawful for any private security agency to operate on an expired license. Any license presented for renewal that has expired shall be processed as a new agency license and shall be assessed the fee for a new agency as set forth in Section 3.72.055 of this Code.
(Ord. No. 47-918, § 10, 6-24-08)

Sec. 3.72.090. Records of employees to be kept by private security agency.

All private security agencies licensed under this ordinance are responsible for maintaining a record of each private security officer permitted under this ordinance. Such record shall include a copy of all information and/or documentation required to obtain a permit, which includes proof of identification, training, drug screening, etc., and any other information that the chief of police may require, as well as a copy of the employee's most recent permit. Records required to be maintained by this section shall be kept for all current employees and for one calendar year after any employee is no longer employed by an agency.
(Ord. No. 47-918, § 11, 6-24-08)

Sec. 3.72.100. Revocation or suspension of permit/license.

Any permit or license issued pursuant to this chapter may be suspended or revoked by the chief of police if it is determined that the permitee, or licensee, or if the licensee is a corporation or other business entity, any of its officers, directors, partners associates or employees has:

(1) Made any false statement or given any false information in connection with an application for a permit or license or a renewal or reinstatement of a permit or license; or

(2) Violated any provision of this chapter; or

(3) Committed any act which would be grounds for denial of an application for a permit or license or otherwise becomes ineligible for a permit or license; or

(4) Failed to pay the annual permit or licensing fee; or

(5) Has aided or abetted the commission of any act which is a violation of this chapter; or

(6) If a licensee, failed to maintain on file with the City Clerk the surety bond required by this chapter; or

(7) If a licensee, failed to maintain in force the insurance coverage required by this chapter; or

(8) If a licensee knowingly allowed or encouraged the violation of any of the provisions of this chapter by any employee.
(Ord. No. 47-918, § 12, 6-24-08)

Sec. 3.72.110. Revocation or suspension of permit/license, notice and hearing procedures.

If the chief of police suspends or revokes a permit or license under the provisions of this section, the following procedure will apply:

(1) Notice shall be in writing and shall be personally served upon the permitee or licensee or sent by certified mail, return receipt requested, and shall include:

(a) The reason for suspension/revocation;

(b) The effective time and date of the suspension/revocation;

(c) If a suspension, the length of time of such suspension;

(d) The date by which and to whom the permitee or licensee must surrender the permit or license; and

(e) Information regarding the permitee's or licensee's right to a hearing and appeal.

(2) The permitee or licensee may request reconsideration of the suspension/ revocation by filing with the chief of police a written request for a reconsideration hearing within ten business days after receipt of the notice of revocation. Filing of a request for a reconsideration hearing shall stay the suspension/revocation of the permit or license until the chief of police conducts said hearing and renders a final decision.

(3) If a request for a reconsideration hearing is not made within ten business days, the action suspending or revoking the permit or license shall be final.

(4) If a request for a reconsideration hearing is made within ten business days, the chief of police shall serve as a hearing officer on the reconsideration of the permit or license suspension/revocation, and shall consider evidence presented by any interested person. The chief of police shall render a decision on the basis of a preponderance of the credible evidence presented at the hearing, which shall be recorded.

(5) The chief of police shall render a decision within ten business days of the hearing and that decision shall affirm, reverse or modify the suspension/ revocation. Written notice of the decision of the chief of police shall be personally served upon the permitee or licensee or sent by certified mail, return receipt requested, and shall include:

(a) If the suspension/revocation is affirmed, the reason for such and date by which and to whom the permitee or licensee must surrender the permit or license;

(b) If the suspension/revocation is reversed, the reason for the reversal;

(c) If the suspension/revocation is modified, the reason for the modification and the extent of the modification; and

(d) The right of the permitee or licensee to appeal the decision of the chief of police to the city council.

(6) In the event a permitee or licensee desires to appeal the decision of the chief of police to the city council, written notice of such appeal shall be filed with the city clerk within ten business days of the date upon the chief's written decision. Upon receipt of such notice the city clerk shall notify the chief of police who shall forward all relevant information and exhibits to the city clerk within ten business days. Any appeal taken from the decision of the chief of police shall stay the order of suspension/ revocation until the matter is heard and a decision rendered by the city council.

(7) The city council shall review the record presented and will affirm or reverse in full or in part the action of the chief of police. All such appeals to the city council shall be on the record.

(8) The permitee or licensee may appeal the decision of the city council to the Sedgwick County District Court in the manner provided by state statute. Any appeal to the district court shall not stay the decision of the city council.

(9) For the purposes of subsections (1) and (5) above, if written notice is served by certified mail, return receipt requested, it shall be deemed sufficient upon the mailing of the notice to the most recent address on the application of the permitee or licensee.

(Ord. No. 47-918, § 13, 6-24-08)

Sec. 3.72.120. Qualifications for a private security permit.

To obtain a permit to work as a private security officer, a person must meet the following qualifications:

(1) Be at least 18 years of age;

(2) Be able to communicate effectively with both the general public and public safety personnel;

(3) Have no felony conviction, nor be currently under indictment, charge or information for, or on diversion or deferred judgment for a felony offense;

(4) Have no adjudication as a juvenile offender for an act that would constitute a felony if committed by an adult:

(a) Within five years preceding the date of application for a non-person offense, or

(b) Within ten years preceding the date of application for a person offense;

(5) Have no misdemeanor conviction, shall not be currently under indictment, charge or information for, or on diversion or deferred judgment for a misdemeanor offense or have been adjudicated to be a juvenile offender as a result of the commission of an act that would constitute a misdemeanor if committed by an adult:

(a) Within five years preceding the date of application for weapons charges, crimes of violence, or crimes involving physical force;

(b) Within two years preceding the date of application for any other misdemeanor crimes not included in subsection (5)(a);

(c) For the purposes of this section, "conviction" shall not include charges for which a person has successfully completed a diversion or deferred judgment program or which have been expunged or pardoned pursuant to the law of any applicable jurisdiction.

(6) Have no history of or present mental, psychological or emotional impairment, unless, in the opinion of a licensed psychiatrist or psychologist, such impairment would not adversely affect the permitee's ability to carry out the duties of a private security officer.

(Ord. No. 47-918, § 14, 6-24-08; Ord. No. 49-513, § 9, 6-11-2013)

Sec. 3.72.130. Application for private security permit—Approval of issuance.

(1) The application for a private security permit shall contain:

(a) A full set of the applicant's fingerprints;

(b) Two passport-sized color photographs of the applicant taken within the preceding 30 days;

(c) Proof of age and identity which must be provided by presentation of a government-issued or other official or apparently official document that is not encrypted, containing a photograph and signature of the application;

(d) A letter from the agency stating that the applicant is being considered for employment;

(e) A drug screening test, the results of which are no older than 30 days preceding the date of application, which has been performed by a licensed laboratory certified to conduct such testing, indicating the applicant is free from the use of amphetamines, barbiturates, benzodiazepines, cannabinoid, cocaine metabolites, opiates and phencyclidine; and

(2) All questions on the application form shall be answered truthfully and fully in the applicant's own handwriting. Falsifying or omitting any information requested on the application shall be cause for denying a permit. If a permit is denied for providing false information or making a false statement on an application, the applicant shall be ineligible to reapply for a permit under this chapter for one calendar year from the date of the permit denial.

(3) Private security officers shall be required to satisfactorily complete the course of study for private security officers which has been approved in writing by the Chief of Police. Said course of study shall be completed within 90 days from the date of application; provided, however, that the Chief of Police may, upon written request and for good cause shown, extend the 90 days course completion requirement, or waive the training requirement. If an applicant has successfully completed the currently approved course or courses of study for private security officers within one calendar year prior to his or her application and can show satisfactory proof thereof, the applicant will be considered to have complied with the training requirement for the category of permit corresponding to the level of training completed.
(Ord. No. 47-918, § 15, 6-24-08; Ord. No. 49-513, § 10, 6-11-2013; Ord. No. 49-762, § 4, 6-17-2014)

Sec. 3.72.140. Permit—Information and display required.

Every person engaged in the business of or operating as a private security officer, under the provisions of this chapter, shall have a permit which includes a photograph, thumbprint and signature of the holder, and any weapon such officer is authorized to possess and use in the course of such officer's duties, if applicable, and shall display said permit upon demand by any law enforcement officer. This permit will be in the form approved by the Chief of Police.

It is unlawful for any permit holder to engage in any activities within the purview of this chapter without having such permit in his or her possession. Upon suspension, revocation or expiration of this permit, it shall be surrendered immediately to the Chief of Police.
(Ord. No. 47-918, § 16, 6-24-08; Ord. No. 49-513, § 11, 6-11-2013)

Sec. 3.72.150. Temporary basic private security permit.

An individual meeting the requirements of Section 3.72.120 of this chapter may be issued a temporary basic private security permit to perform the duties of a private security officer for a period not to exceed ninety days; provided, however, that the chief of police may, upon written request and for good cause shown, extend the ninety day duration of a temporary permit. No such temporary permit may be renewed and no individual shall be eligible for more than one temporary permit within a two year period.
(Ord. No. 47-918, § 17, 6-24-08)

Sec. 3.72.160. Fees—Permits and training—New and renewal.

The following fees are established for the permitting and training of private security officers. All fees are non-refundable and no fees shall be pro-rated:

(1) *Permit fees:*

- (a) *Initial permit:* $45.00; for applications received on or after July 1, 2014, $50.00.
- (b) *Additional permit (for private security officers employed by more than one agency)*: $35.00; for applications received on or after July 1, 2014, $40.00.
- (c) *Permit renewal:* $35.00; for applications received on or after July 1, 2014, $40.00.
- (d) *Additional permit renewal:* $35.00; for applications received on or after July 1, 2014, $40.00.
- (e) *Permit replacement:* $25.00; for applications received on or after July 1, 2014, $30.00.
- (f) *Fingerprinting and criminal history records check:* Fee as set by the Kansas Bureau of Investigation

(2) Training fees:

- (a) Basic training: *
- (b) Advanced training: *

* Fees for training courses are set by designated training providers and are subject to review and approval by the Chief of Police.
(Ord. No. 47-918, § 18, 6-24-08; Ord. No. 48-802, § 1, 8-24-2010; Ord. No. 49-513, § 12, 6-11-2013; Ord. No. 49-762, § 5, 6-17-2014)

Sec. 3.72.170. Permit duration.

(1) The permit fee for the private security permit shall be in accordance with the schedule contained in Section 3.72.160. No permit shall be issued for less than the full amount of such fee, and such permit shall be valid only for one year from the date of issuance and upon expiration must be surrendered as herein provided or renewed.

(2) It is unlawful to act or perform the duties of a private security officer within the city on an expired permit. If a permit is presented for renewal that has been expired for longer than thirty days, it shall be processed as an initial permit and assessed the fee as set forth in Section 3.72.160 of this Code.

(3) It is unlawful for a manager, owner, operator or any person in charge of any private security agency within the city to allow a person to work as a private security officer on an expired permit.
(Ord. No. 47-918, § 19, 6-24-08)

Sec. 3.72.180. Transferability of permits—Multiple permits.

(1) No permit granted under the provisions of this chapter shall be transferable from one individual to another; or by an individual from employment by one private security agency to employment with another private security agency.

(2) An individual may hold multiple permits allowing such individual to be employed by more than one private security agency, however, no additional permit will be issued without written authorization from all private security agencies with which the individual is or seeks to be permitted. The fee for an additional permit shall be as set forth in Section 3.72.160.
(Ord. No. 47-918, § 20, 6-24-08)

Sec. 3.72.190. Termination of employment.

(1) It shall be unlawful for any agency that employs a private security officer, upon the termination such person's employment, to fail to immediately notify the police department of such termination and to collect the person's permit and surrender it to the police department. If for any reason such agency is unable to collect a permit upon termination of a private security officer, notification of the police department shall be made in writing within ten days explaining in full detail why the permit was not collected.

(2) It is unlawful for any private security officer regulated by the provisions of this chapter to fail to immediately surrender such person's permit upon termination of his or her employment as a private security officer. If the agency that employed the private security officer fails to collect the person's permit as required in subsection (1) herein, the person shall be responsible for turning in his or her permit to the police department.
(Ord. No. 47-918, § 21, 6-24-08)

Sec. 3.72.200. Permits allowed for persons not employed by a private security agency.

The City recognizes that certain employers who are not required to be licensed under the provisions of this chapter, and whose employees are not required to be permitted under this chapter may nonetheless desire that select employees obtain a private security permit. Such permits may be authorized by the chief of police under the following circumstances:

(1) The employer must not be a private security agency as defined by Section 3.72.010(18) of this Code.

(2) The employee must meet all requirements of the particular permit for which he or she is applying, except those made inapplicable by this section.

(3) As a part of the permit application, the employee must have a written request from his or her current employer that such employee be allowed to obtain a private security permit.

(4) The employee must obey all the requirements of this chapter and any other ordinance of the City of Wichita that is applicable to a person who holds a valid private security permit, including the requirement that the person surrender his or her permit upon termination of employment.
(Ord. No. 47-918, § 22, 6-24-08)

Sec. 3.72.205. Equipment and duty gear authorized by Chief of Police—Carrying unauthorized equipment or wearing of unauthorized duty gear prohibited.

A list of authorized equipment and duty gear which may be carried, used and/or worn by private security officers permitted under this chapter and according to each category of permit shall be in writing and signed by the Chief of Police. Such list shall be posted on the Wichita Police Department's website and otherwise made available to all private security officers, agencies, and permit applicants. Carrying or use of any unauthorized equipment or wearing of any unauthorized duty gear by a private security officer permitted under this chapter or carrying or use of any equipment not authorized for the category of permit possessed by any private security officer is a violation of this article and shall be punished as set forth in Section 3.72.340.
(Ord. No. 49-513, § 23, 6-11-2013)

Secs. 3.72.210—3.72.280. Reserved.

Editor's note—Ord. No. 49-762, §§ 6—13, adopted June 17, 2014, repealed §§ 3.72.210—3.72.280, which pertained to firearm permit and derived from Ord. No. 47-918, adopted June 24, 2008. See also the Code Comparative Table for complete derivation.

Sec. 3.72.285. Electronic control device—Permit to carry required, issued by chief of police, requirements.

(1) A permit allowing a private security officer to carry an electronic control device as authorized equipment shall be issued by the Chief of Police and shall be valid for one year from the date of issuance provided that all of the following requirements are met:

(a) All persons applying for a permit to carry an electronic control device or seeking to renew an existing permit to carry an electronic control device shall provide proof of satisfactory completion of a training course for the use of such device as approved by the Chief of Police. Such course of training must be completed prior to the electronic control device permit or renewal permit being issued, and shall be provided by an instructor certified by the electronic control device manufacturer. Training requirements and qualification standards shall be in writing and signed by the Chief of Police, and shall be posted on the Wichita Police Department's website and otherwise made available to all private security officers, agencies, and permit applicants.

(b) The private security officer is currently in possession of a valid and unexpired advanced private security permit.

(c) The agency employing the private security officer provides a written statement to the Chief of Police that the officer has the agency's permission to carry an electronic control device while performing the officer's duties of employment.

(2) A private security officer shall carry only the approved civilian version of any brand of electronic control device. A list of approved models shall be in writing and signed by the Chief of Police, and shall be posted on the Wichita Police Department's website and otherwise made available to all private security officers, agencies, and permit applicants.

(3) It is unlawful for any private security officer to carry an electronic control device while performing his or her duties as a private security officer without obtaining a permit as required in subsection (1) herein.

(4) The permit to carry an electronic control device shall be documented on the private security officer's advanced permit, which must be in the officer's possession at any time the officer is carrying the electronic control device.

(5) Upon expiration, an electronic control device permit must be either renewed or surrendered as set forth in Section 3.72.190.

Any person who violates or fails to comply with any of the provisions set forth in this Section shall be considered in violation of this article and shall be punished as set forth in Section 3.72.340.
(Ord. No. 49-513, § 24, 6-11-2013)

Sec. 3.72.286. Electronic control device permit—Suspension/revocation, grounds therefore and right to hearing.

The Chief of Police may suspend or revoke any Electronic Control Device permit if the holder of a permit fails to comply with provisions of Section 3.72.285, or for other good cause. The holder of the permit shall immediately be given notice of the cause of such suspension or revocation and an opportunity to be heard as set forth in Section 3.72.110, and subject to the procedures set forth therein.
(Ord. No. 49-513, § 25, 6-11-2013)

Sec. 3.72.287. Severability.

If any section, subsection, or clause of the ordinance codified in Sections 3.72.050 through 3.72.287 shall be deemed to be unconstitutional or otherwise invalid, the validity of the remaining sections, subsections, and clauses shall not be affected.
(Ord. No. 49-513, § 26, 6-11-2013)

Sec. 3.72.290. Uniform requirements.

(1) Every permitted private security officer shall, at a minimum, display on the outermost garment the name of the private security agency by whom the permitted security officer is employed, the word "Security" and identification which contains the last name of the private security officer.

(2) The name of the private security agency and the word "Security" shall be of a size, style, shape, design and type which is clearly visible by a reasonable person under normal conditions.

(3) Such uniforms and any insignias worn by a permitted private security officer shall be distinctively different from those worn by officers of the Wichita Police Department, the Sedgwick County Sheriff's Office, the Kansas Highway Patrol, or any reserve component of the foregoing agencies.

(4) Every private security agency shall provide to the Chief of Police a full color picture of the uniform or uniforms, including any external vest carrier, that are worn by employees of said agency. The photos shall be maintained on file with the police department and must be updated by the agency with each license renewal application and whenever there is any change in the uniform, within 30 calendar days of such change. Submission of photos may be by electronic means. Failure to submit such photo shall be considered a violation of this article and shall be punished as set forth in Section 3.72.340.
(Ord. No. 47-918, § 31, 6-24-08; Ord. No. 49-513, § 18, 6-11-2013)

Sec. 3.72.300. Uniforms—Prohibited acts.

(1) It is unlawful for any private security officer to wear a uniform or display any badge, shoulder patch, logo or any other insignia or identification which contains the words "Law Enforcement" and/or similar word(s) including, but not limited to: police, agent, enforcement agent, detective, task force, fugitive recovery agent or any other combination of names which gives the impression that the bearer is in any way connected with the federal government, state government or any political subdivision of a state government.

(2) It is unlawful for any person to wear a private security uniform as required in Section 3.72.290 until a private security permit has been issued to such individual by the Chief of Police.

(3) It is unlawful for any permitted private security officer to wear a private security uniform as required in Section 3.72.290 or any other distinctive badge, shoulder patch, logo or other insignia or identification except as follows:

(a) Directly from the individual's residence to the individual's place of employment;

(b) During the individual's tour of duty while actively engaged as a private security officer; and

(c) Directly from the individual's place of employment to the individual's residence.

(4) It is unlawful for any permitted private security officer to wear a private security uniform or any other distinctive uniform, badge, shoulder patch, logo or other insignia or identification into any tavern, private club or drinking establishment, except when the establishment has employed the private security officer to work in the capacity as a private security officer.

(5) It is unlawful for any permitted private security officer to wear an external vest carrier as a part of his or her uniform unless the vest complies with the following criteria:

(a) The words "Private Security" appear on the front and back of the vest. The words must be in a color that contrasts with the color of the vest and must be at least three inches in height on the back of the vest and two inches high on the front of the vest.

(b) The vest has no more than five external pouches and/or holsters.

(c) All external pouches and/or holsters are to be placed on the front lower portion of the vest. No external pouches or holsters are allowed to be placed on the back or rear of the vest.

(d) No vest will be equipped with a holster for a firearm.

(e) No vest shall be equipped with security "add-ons" such as sleeves, collars, groin protectors, shoulder pads or coccyx protectors.

(f) The vest shall conform to the requirements of Section 3.72.290, specifically, the name of the private security agency by whom the security officer is employed and identification which contains the security officer's last name shall be displayed. The vest is also subject to the restrictions set forth in subsection (1) through (4) herein.

(6) It is unlawful for any permitted private security officer to wear a tactical or bullet resistant vest that is designed to be worn as an internal vest or underneath other items of clothing as an external vest.

Any person who violates any of the provisions set forth in this Section shall be considered in violation of this article and shall be punished as set forth in Section 3.72.340.
(Ord. No. 47-918, § 32, 6-24-08; Ord. No. 49-513, § 19, 6-11-2013)

Sec. 3.72.310. Vehicles.

(1) The vehicles used to conduct the business of a private security agency within the City of Wichita by any licensee shall be of a design and color scheme distinctly different from that of the marked patrol vehicles of the Wichita Police Department, the Sedgwick County Sheriff's Office and the Kansas Highway Patrol. In addition, such vehicles shall be equipped only with lighting devices as required or authorized by state law and city ordinance. The word or words, "Security" or "Private Security" shall be prominently displayed on both sides of such vehicles, with the letters being of a size, style, shape, design and type which is clearly visible by a reasonable person under normal conditions.

(2) No private security vehicle shall have the word "Police" painted, placed or otherwise displayed upon such vehicle, nor shall any insignia be painted, placed or otherwise displayed upon such vehicle which is similar to, or which could be confused with, a law enforcement vehicle.

(3) Every private security agency shall provide to the Chief of Police a full color picture of the vehicle or vehicles that are being operated by employees of said agency. The photos shall be maintained on file with the police department and must be updated by the agency with each license renewal application and whenever there is any change in the vehicles used by the agency, within 30 calendar days of such change. Submission of photos may be by electronic means. Failure to submit such photo shall be considered a violation of this article and shall be punished as set forth in Section 3.72.340.
(Ord. No. 47-918, § 33, 6-24-08; Ord. No. 49-513, § 20, 6-11-2013)

Sec. 3.72.320. Arrest by a private person.

A private security officer may exercise the power of making a citizen's arrest only as set forth in K.S.A. 22-2403 and Section 3.72.010(9) of this Code, and any amendments thereto.
(Ord. No. 47-918, § 34, 6-24-08; Ord. No. 49-513, § 21, 6-11-2013)

Sec. 3.72.330. Impersonating a private security officer.

Any person who shall wear a private security uniform or badge, or shall otherwise represent

himself or herself to be a private security officer while such person is not duly permitted under this chapter to exercise the duties of a private security officer shall be deemed guilty of a misdemeanor and shall be punished as set forth in Section 3.72.340.
(Ord. No. 47-918, § 35, 6-24-08; Ord. No. 49-513, § 22, 6-11-2013)

Sec. 3.72.340. Penalty.

Any person, who, within the corporate limits of the City of Wichita, violates any of the provisions of this chapter, or fails to comply with any requirements of this chapter shall be guilty of a misdemeanor and shall be punished by a fine of not less than one hundred dollars nor in excess of two thousand five hundred dollars.
(Ord. No. 47-918, § 36, 6-24-08)

CHAPTER 3.74. FUNERAL ESCORT SERVICE LICENSING

Sec. 3.74.010. License required.
Sec. 3.74.020. Application.
Sec. 3.74.030. License fee—Term.
Sec. 3.74.040. Insurance.
Sec. 3.74.050. License renewal and changed or new information.
Sec. 3.74.060. Right of entry and inspection.
Sec. 3.74.070. License suspension or revocation.
Sec. 3.74.080. Application of regulations to existing businesses.
Sec. 3.74.090. Violation—Penalty.

Sec. 3.74.010. License required.

No person shall engage in the operation of a funeral escort service within the corporate limits of the city without first obtaining a license for such service as provided in this chapter.

"Funeral escort service" means and includes any person or entity hired to direct and/or control traffic for a funeral procession while escorting the procession through the streets and highways of the city.
(Ord. No. 46-203 § 1)

Sec. 3.74.020. Application.

Any person desiring to operate a funeral escort service shall make application for a license with the city treasurer's office. The application shall be on such form and contain such information as the city treasurer shall require, including the following:

(a) The name and residential address of the applicant and personal information, or if the applicant is a firm or corporation, the names, residential addresses and personal information of persons owning a financial interest therein;

(b) The name and address under which the applicant intends to conduct his or her business;

(c) The number and type of funeral escort vehicles proposed to be operated by the applicant;

(d) A copy of the applicant's liability and workers compensation insurance policy as specified in Section 3.74.040;

(e) For each vehicle to be used as a funeral escort vehicle, a copy of documentation showing that the vehicle has been designated as an authorized emergency vehicle pursuant to the statutes of the state of Kansas;

(f) A copy of a valid Kansas driver's license for the applicant, and any employee of the applicant who will be operating a funeral escort vehicle; and

(g) Documentation that the applicant, all employees of the applicant or other persons operating funeral escort vehicles for the applicant's service have satisfactorily completed a defensive driving course from an accredited defensive driving program or school.
(Ord. No. 46-419 § 1)

Sec. 3.74.030. License fee—Term.

An application for a funeral escort service license shall be accompanied by a fee of one hundred dollars and shall be valid for one calendar year.
(Ord. No. 46-203 § 3)

Sec. 3.74.040. Insurance.

(a) It shall be the responsibility of the licensee under this chapter to ensure that all vehicles operated under the authority of a funeral escort service license meet and maintain the insurance requirement established in this chapter. No license to operate a funeral escort service shall be issued until these conditions are met. As proof of compliance with these conditions, and before any license to operate a funeral escort service shall be issued, the applicant shall:

(1) File with the city clerk an insurance policy or policies, to be approved as to form and endorsement by the city attorney, issued by an insurance company licensed to do business in the state or by an insurance carrier which must qualify either by having and maintaining at all times total

assets in excess of one million dollars, or which has been engaged as an insurance carrier in the insurance business continually for more than twenty-five years.

The insurance policy must provide insurance coverage for each and every vehicle licensed and operated as part of the funeral escort service with a liability coverage of not less than one million dollars for the injury to or death of one person in any one accident and, subject to the limit for one person, to a limit of not less than one million dollars because of injury or death of two or more persons in any one accident, and to a limit of not less than five hundred thousand dollars for property damages in any one accident. Such policy of insurance shall cover each and every funeral escort vehicle at all times while the service is licensed by the city and shall be effective whether the vehicle at the time of an accident was being driven by the licensee or any employee, agent, or lessee or the licensee.

Such policy of insurance shall list each and every vehicle to be insured under the policy and agree to pay any final judgment against the insured resulting from negligent or reckless operation of any and all such vehicles listed therein. Such policy shall further contain an agreement that, upon failure to pay any final judgment of personal injury, including death, rendered against the insured or against any owner, lessee or licensee, or operator of the funeral escort vehicle so insured, the judgment creditor may maintain an action directly against the insurer in any court of proper jurisdiction to compel payment. Nothing contained in the policy or any endorsement thereof for any violation on the part of the insured or the provisions of the policy shall release the company from liability under this section in payment of such judgment.

Such policy shall be effective until at least twenty days after written notice of such cancellation has been filed with the city clerk of the city, and written acknowledgment of the service of such notice has been given to the company by the city clerk.

Such policy shall contain all of the conditions required by the laws of the state and by the insurance commissioner of the state and shall provide for actual notice to the city of any changes to be made in such policy.

(2) An applicant may file with the city clerk an insurance policy approved as to form and endorsement by the city attorney which complies with all the requirements of subsection (a)(1) of this section, except that such policy may be of a blanket type so long as each and every vehicle operated by the licensee under this chapter is covered by said policy at all times such vehicle is operated to provide funeral escort services, even though such vehicle may not be specifically described in such policy.

(b) The failure of any licensee to pay any judgment against him within ten days after such judgment becomes final and is not superseded by a proper bond on appeal shall be ground for the cancellation of all licensee issued to any such licensee.

(c) The cancellation, withdrawal or other termination of any insurance policy required by this chapter, or failure to maintain the same in accordance with the provision of this section shall automatically terminate any license issued for the funeral escort service covered by such insurance policy, surety bond or other type of assuring agreement.
(Ord. No. 46-203 § 4)

Sec. 3.74.050. License renewal and changed or new information.

(a) The city shall mail a license renewal application form to all licensed funeral escort services annually. The funeral escort services must comply with all of the requirements for licensing set forth in this chapter, included payment of the fee set forth in Section 3.74.030.

(b) Changed Information. A licensed funeral escort service shall notify the city within ten days in writing of any change in information required to be provided with a license application, or of required information for any new employees.
(Ord. No. 46-203 § 5)

Sec. 3.74.060. Right of entry and inspection.

To ensure compliance with the regulations of the city, any duly authorized officer or agent of the city or any law enforcement officer shall at all times be permitted the right of entry and inspection of any and every part of the premises designated in the license, or any vehicle designated on the license or being used as a funeral escort vehicle.
(Ord. No. 46-203 § 6)

Sec. 3.74.070. License suspension or revocation.

(1) The chief of police or the chief's designee may, upon five days' notice, suspend or revoke a license under this chapter if it is determined that the licensee or, if the licensee is a firm or corporation, any person listed on the application, has:

(a) Made any false statement or given any false information in connection with an application for a license or a renewal or reinstatement thereof;

(b) Violated any of the provisions of this chapter, or failed to maintain any of the requirements of licensure;

(c) Violated any rule of the chief of police adopted pursuant to the authority contained in this chapter;

(d) Committed three or more violations of Chapter 11.37 of the city code within a calendar year;

(e) Allowed an employee or any other person to operate a vehicle covered by his or her funeral escort service license who has committed three or more violations of Chapter 11.37 of the city code within a calendar year;

(f) Operated or allowed any employee or other person to operate a funeral escort vehicle without a valid Kansas driver's license;

(g) Operated or allowed any employee or other person to operate a funeral escort vehicle without having successfully completed a defensive driving course as required in this chapter;

(h) Operated or allowed any employee or other person to operate a funeral escort vehicle in a reckless or negligent manner, which operation unreasonably endangers the safety of any person or the public at large, or causes an unreasonable risk of damage to either public or private property; or

(i) Operated or allowed any employee or other person to operate a funeral escort vehicle while the vehicle, operator and any passenger therein were not in compliance with Section 11.37.030 of the Code of the City of Wichita, and any amendments thereto.

(2) If the chief of police or the chief's designee suspends or revokes a funeral escort service license under the provisions of this section, notice shall be given in writing. Such notice shall set forth the reasons for the suspension or revocation, and shall inform the licensee that such an order may be appealed to the city council by filing a written request with the city clerk within ten days from the date contained on the notice. Upon receipt of such notice, the city clerk shall notify the chief of police who shall forward all relevant information and exhibits to the city clerk within ten days. The city council shall hear the matter on the record and may affirm or reverse the action of the chief of police. An order of suspension or revocation shall be stayed during the pendency of any such appeal. The licensee may appeal the decision of the city council to the district court of the county in the manner provided by state statute. An order suspending or revoking a license hereunder shall not be stayed by an appeal from the city council to the district court.

(3) The city clerk shall notify a Sedgwick County clerk of any suspension or revocation of any license pursuant to this chapter.
(Ord. No. 46-203 § 7)

Sec. 3.74.080. Application of regulations to existing businesses.

The provisions of this chapter shall be applicable to all businesses participating in the activities described in this chapter, regardless of when established. All existing funeral escort services at the time of the passage of the ordinance codified in this chapter must submit application for a license within ninety days of the date the ordinance codified in this chapter becomes effective. If an application for such license is not made within a ninety-day period, then such existing funeral escort service shall cease operation. Nothing herein shall be construed to prohibit the city's right to refuse to grant a license to an existing funeral escort service that upon application is not eligible for a license under this chapter.
(Ord. No. 46-203 § 8)

Sec. 3.74.090. Violation—Penalty.

Any person violating any provision of this chapter is guilty of a misdemeanor and shall be punished by a fine of not more than one thousand dollars.
(Ord. No. 46-203 § 9)

CHAPTER 3.80. AMBULANCES*

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Sec. 3.80.005. Metropolitan transit authority—Definition.

Unless the context clearly means otherwise, wherever in this Chapter 3.80 reference is made to the metropolitan transit authority, from and after the effective date of the ordinance codified in this section each such reference shall mean the Wichita-Sedgwick County Board of Health.
(Ord. No. 42-159 § 1)

*Traffic regulations—See Sections 11.16.100 and 11.16.110.

Sec. 3.80.010. Definitions.

(1) "Ambulances" as used in this chapter means a vehicle or vehicles equipped or used for the transportation of wounded, injured, sick, or deceased persons for hire within the corporate limits of the City of Wichita, Kansas. The term "ambulance" shall not include vehicles used for the purposes of picking up, upon the request of relatives or municipal or other authorities in the case of deceased persons whose families cannot be located, dead bodies, either at a home, a hospital, or other place for the purpose of transporting such deceased persons to a mortuary, nor shall it include the vehicles or vehicle used for the purpose of transporting such deceased persons for funeral and burial purposes.

(2) "City" is the City of Wichita, Kansas.

(3) "Person" is any person, firm, partnership, association, corporation, company, or organization of any kind.

(4) "Governing body" is the city council of the city.

(5) "Designated supervisory agency" is the metropolitan transit authority, City of Wichita.

(6) "Supervisory official" is the authorized representative of the metropolitan transit authority charged with the responsibility of insuring compliance with all the provisions of this chapter.

(7) "License collector" is the license section, city treasurer division, City of Wichita.
(Ord. No. 36-913 § 1)

Sec. 3.80.020. Contents of application for license.

Any person, in order to secure a license as herein required for the operation of an ambulance company, and before any such license shall be granted or issued, shall file with the metropolitan transit authority an application for such license

on such form and containing such information as the metropolitan transit authority may require, including but without limitation the following:

(a) The name of the applicant, or if a firm, partnership, association, corporation, company or organization of any kind the names and addresses of persons owning a financial interest therein, the number and type of ambulances proposed to be operated by the applicant, the name of the liability insurance company to whom application has been made for liability coverage;

(b) A complete description of each vehicle to be operated by the applicant, including the model, motor number, and state license number;

(c) A copy of the proposed liability insurance policy as specified in Section 3.80.040;

(d) A list of the charges to be made by the applicant for services rendered to the public in the event a license is issued under the provisions of this chapter.

(Ord. No. 36-913 § 2)

Sec. 3.80.030. License fee.

Applications hereunder shall be accompanied by a license fee of one hundred dollars. In the event said license is denied by the board of commissioners, the license fee is to be refunded to the applicant.

(Ord. No. 23-946 § 3)

Sec. 3.80.035. License fee routing.

All license fees paid by the applicant to the metropolitan transit authority at time of application for a license under the provisions of this chapter shall be forwarded by the metropolitan transit authority to the license collector upon approval of application.

(Ord. No. 36-913 § 3)

Sec. 3.80.040. Liability insurance.

Before any license shall be issued under the provisions of this chapter, the applicant therefor shall file with the city clerk, approved as to form and endorsement by the city attorney, an insurance policy providing liability coverage for the licensees in the operation of an ambulance company.

(Ord. No. 33-577)

Sec. 3.80.050. Hearing on approval of application.

Upon the filing of the application as specified in Section 3.80.020, the metropolitan transit authority shall set the time at which public hearing will be held by the metropolitan transit authority upon such application with such notice thereof as the metropolitan transit authority may deem advisable. Upon hearing the metropolitan transit authority may recommend approval of such application and insuring agreement upon such conditions, terms and limitations as in their discretion may be deemed necessary or advisable for the protection of the public interest, and shall specifically approve the rates to be charged by the licensee during the term of the license. At such hearing, which may be adjourned from time to time, the metropolitan transit authority shall hear testimony for and against both the question as to whether or not public convenience shall be promoted and public necessity would require such ambulance service and whether or not persons in lawful operation of ambulances operating under a certificate of convenience and necessity and a license issued under the provision of this chapter, if any, are incapable of rendering service required to meet the needs of the public. If the metropolitan transit authority should find that public convenience will be promoted by the ambulance service and that persons in lawful operation of ambulances presently operating under a certificate of convenience and necessity and a license issued under the provisions of this chapter, if any, are incapable of rendering service required to meet the needs of the public, a certificate of convenience and necessity shall be issued and the metropolitan transit authority shall recommend to the board of city commissioners that a license be issued. If the metropolitan transit authority finds that public convenience and necessity does not require the operation of additional ambulances in the city, a certificate of convenience and necessity and the license shall be denied and the applicant shall be entitled to have refunded the

license fees deposited with the license collector and the insurance policies deposited with the city clerk. Such denial may be appealed to the board of city commissioners. The licenses issued under the provisions of this chapter shall become due on January 1st of each year and shall expire on December 31st of the year of their issue.
(Ord. No. 34-115 § 1; Ord. No. 23-946 § 5)

Sec. 3.80.060. Certificates of public convenience and necessity required.

No person shall engage in the operation of any ambulance company nor shall any license be granted or issued to operate an ambulance company within the corporate limits of the city until the metropolitan transit authority shall first find that public convenience will be promoted and public necessity requires such ambulance service under the terms and provisions of this chapter.
(Ord. No. 34-115 § 2; Ord. No. 23-946 § 6)

Sec. 3.80.070. License required.

It is unlawful for any person to engage in the operation of an ambulance company or ambulance business without having first obtained a license as herein provided.
(Ord. No. 23-946 § 7)

Sec. 3.80.080. Issuance of license—Temporary licenses—Fees.

(a) Upon approval by the board of commissioners of the action of the metropolitan transit authority, a license shall be issued to the owner of the ambulance company by the metropolitan transit authority in the same manner and upon the terms of this chapter, provided nothing herein contained shall prevent the board of commissioners, upon due cause shown, from granting temporary permits or licenses to operate ambulances in the city for a limited period of time only provided such temporary or special permit or license may be revoked at any time by the commission in its sole discretion.

(b) Before the issuance of the license provided for in this chapter, the applicant therefor shall pay to the metropolitan transit authority an annual license fee in the sum of twenty dollars for each ambulance owned, operated or leased by the licensee.
(Ord. No. 36-913 § 4)

Sec. 3.80.090. License and certificate of convenience and necessity nontransferable.

A license or a certificate of convenience and necessity issued under the provisions of this chapter is not assignable or transferable and shall run to the exclusive benefit of the licensee.
(Ord. No. 23-946 § 9)

Sec. 3.80.100. Certificate of public convenience and necessity—Factors to be determined.

For determining whether or not a certificate of public convenience and necessity shall be issued, the metropolitan transit authority shall take into consideration that the systems of transportation are rendering the service required to meet the needs of the public and whether or not persons in lawful operation of ambulances operating under a certificate and a license issued under the provisions of this chapter are capable of rendering service required to meet the needs of the public, the financial responsibility of the applicant, and all other facts which are necessary to determine whether or not public convenience and necessity requires the operation of additional ambulance service within the corporate limits of the city.
(Ord. No. 34-115 § 4; Ord. No. 23-946 § 10)

Sec. 3.80.110. Revocation or suspension of license or certificate for failure to comply with chapter.

The metropolitan transit authority upon five days' notice of hearing may suspend or revoke any license or certificate of convenience and necessity issued under the provisions of this chapter if the licensee has failed or neglected to comply with any of the terms of this chapter. The metropolitan transit authority may continue said hearing as in their discretion may be advisable to allow the licensee to comply with the terms of this chapter.

The failure of any licensee to pay any judgment against him within ten days after such judgment

becomes final, and is not superseded by a proper bond on appeal, shall be grounds for the cancellation of all licenses issued to any such licensee.

The cancellation, withdrawal, or other termination of any insurance policy or other type of assuring agreement, or failure to maintain the same in accordance with the provisions of this chapter shall automatically terminate the use of any ambulance covered by such insurance policy.

Any licensee who knowingly operates its business in such a manner as to favor or give advantage to any mortuary operating in the city shall be subject to having its license and certificate of convenience and necessity suspended or revoked by the metropolitan transit authority.

Any licensee who fails to render good service to the public after ten days' notice from the metropolitan transit authority of the failure to render good service to the public shall be subject to having its license and certificate of convenience and necessity suspended or revoked as herein provided.

Any decision by the metropolitan transit authority to suspend or revoke a license or certificate for failure to comply with this chapter may be appealed by the licensee, in writing, to the governing body of the city.
(Ord. No. 36-913 § 5)

Sec. 3.80.115. Licensee's operational responsibilities.

Each ambulance operator or company licensed under this chapter shall maintain written records of its activities, including any and all complaints relating to service and charges, and such records shall reflect the action taken on such complaints; further such records shall be subject to inspection by the governing body of the city or its duly designated supervisory agency.

The licensee shall use due diligence in supervising the activities of the dispatchers, drivers, emergency medical technicians, and other company personnel to insure full compliance with the provisions of this chapter and to maintain reasonable standards of service to the public.

Licensees, supervisors, drivers, dispatchers, emergency medical technicians, and other ambulance company personnel shall fully cooperate at all times with the supervisory official charged with the responsibility of insuring the maintenance of a high level of ambulance service for the public.
(Ord. No. 36-913 § 6)

Sec. 3.80.120. Duties of director of community health.

The director of community health shall inspect or cause to be inspected the vehicles and premises designated in the application hereunder and shall certify his approval to the metropolitan transit authority when he finds that such vehicles and premises are suitable from the standpoint of health and sanitation for the conduct of an ambulance business and that all state laws and local ordinances relating to health and sanitation have been complied with. Upon the issuance of a license and a certificate of necessity as herein provided the applicant, the director of community health shall, at least once each three months, cause an inspection to be made of the ambulances operated by the licensee and the premises used by the licensee in its operation of an ambulance business to determine that from the standpoint of health and sanitation that the vehicles and premises are suitable for the conduct of an ambulance business.
(Ord. No. 34-115 § 5; Ord. No. 23-946 § 12)

Sec. 3.80.130. Duties of metropolitan transit authority.

The metropolitan transit authority shall cause to be inspected the vehicles designated in the application hereunder and shall certify its approval when it finds that such vehicles are suitable from the standpoint of safety for the conduct of an ambulance business and that all state laws and local ordinances relating to safety have been complied with. The metropolitan transit authority after the issuance of a license and certificate of public convenience hereunder shall cause the vehicles operated by the licensee to be inspected once each three months to determine that the vehicles are suitable from the standpoint of safety

for the conduct of an ambulance business and that all state laws and local ordinances relating to safety are being complied with.
(Ord. No. 34-115 § 6; Ord. No. 23-946 § 13)

Sec. 3.80.140. Rates to be charged public—Application for increase.

Any person issued a license and certificate of convenience and necessity under the provisions of this chapter shall charge the public the rates set forth in their application for a license, and should the licensee desire to raise the rates, they shall file an application with the metropolitan transit authority for permission to raise their rates. The metropolitan transit authority shall fix a time and place for hearing thereon, which shall not be more than thirty days after such application. At such hearing, the metropolitan transit authority may in their discretion recommend to the board of city commissioners that the applicant be allowed to increase the rates charged to the public by the licensee. It is unlawful for any licensee to charge the public higher rates than those listed in the licensee's application for a license or higher rates than those authorized by the board of commissioners, as herein provided. It is grounds for the revocation of a license and of the certificate of convenience and necessity issued under the terms of this chapter for a licensee to violate the provisions of this section.
(Ord. No. 34-115 § 7; Ord. No. 23-946 § 14)

Sec. 3.80.145. Exemptions.

The terms and limitations of Sections 3.80.020, 3.80.030, 3.80.035, 3.80.040, 3.80.050, 3.80.060, 3.80.070, 3.80.080, 3.80.090, 3.80.100, 3.80.110, 3.80.115, 3.80.120, 3.80.130, 3.80.140 and 3.80.150 of this Code shall not apply in any instances to any ambulance service that has been established and exists pursuant to a contract between the city and the board of county commissioners of Sedgwick County, Kansas, and any ambulance service being operated pursuant to a contract between the city and the board of county commissioners shall be exempt from the application of the above cited sections of the code.
(Ord. No. 36-913 § 7)

Sec. 3.80.147. Exemptions extended.

Should any existing contract providing for ambulance service between the city and the board of county commissioners of Sedgwick County, Kansas terminate, the ordinance exemptions made available to the county through 3.80.145 shall continue for a period of an additional one year, measured from the effective contract termination date.
(Ord. No. 45-748 § 1; Ord. No. 45-528 § 1)

Sec. 3.80.150. License required of ambulance personnel.

(a) There shall be three classifications of licenses for ambulance personnel, which shall be as follows:

(1) Ambulance driver;

(2) Emergency medical technician basic (EMT basic);

(3) Emergency medical technician advanced (EMT advanced);

(b) It is unlawful for any person to act as ambulance personnel in the city without having first secured one of the above-named licenses. It is also unlawful for any person who is licensed as an ambulance driver only to act as either an EMT basic or as an EMT advanced. Furthermore, it is unlawful for a person licensed as an EMT basic to act as an EMT advanced. Whenever an ambulance responds to an emergency call, the ambulance must be staffed with a minimum of two persons, one of whom must be an EMT.
(Ord. No. 32-835 (part); Ord. No. 23-946 § 15)

Sec. 3.80.160. Ambulance driver—EMT basic and EMT advanced license applicant.

The licenses required by Section 3.80.150 of shall be applied for in writing on such forms as the metropolitan transit authority shall provide and shall contain such information as may be required. In addition, the application for the ambulance driver's license shall contain the following:

(1) Whether or not the applicant has heretofore been licensed as an ambulance driver,

and, if so, when, in what municipality, or state, whether such license has been revoked or suspended, and the date thereof;

(2) The number of times or places the applicant has been arrested or convicted of traffic violations;

(3) Whether the applicant has ever been convicted of a felony or misdemeanor, giving particulars of each conviction;

(4) Applicant shall furnish four recent photographs of himself not less than two and one-half inches by three and one-fourth inches, or submit to photographs by the designated supervisory agency in which case the applicant shall be charged a fee to defray the cost of the four photographs. One of the photographs shall be attached to a copy of the application filed with the police department, one photograph shall be attached to the copy of the application filed with the designated supervisory agency, one photograph kept in the individual's record file, and the fourth photograph is affixed to the driver's license identification card;

(5) The applicant shall furnish the names of three reputable persons residing in the city as character references;

(6) The applicant shall furnish a certificate by a physician licensed to practice medicine and surgery in the State of Kansas, that the applicant is of sound physique with good eyesight and not subject to epilepsy, vertigo, or heart trouble, or any other infirmity of body or mind which might render the applicant unfit for the safe operation of an ambulance.

(Ord. No. 30-913 § 8)

Sec. 3.80.170. Qualifications.

Every applicant for a license issued under Section 3.80.150 of shall not be less than eighteen years of age and shall be able to read and speak and write the English language and shall be clean of dress and person and not addicted to the use of intoxicating liquors or narcotics.

(Ord. No. 33-809 § 2; Ord. No. 32-835 (part); Ord. No. 23-946 § 17)

Sec. 3.80.180. Examination of applicant—Issuance of license.

(a) Upon the filing of an application for a license as an ambulance driver or EMT, the metropolitan transit authority shall cause the applicant to be examined as to his knowledge of the provisions of this chapter and of Title 11 of relating to the operation of ambulances and traffic as well as geography of the city, and if the applicant fails to show a reasonable knowledge of such matters, he shall be refused the license. If the applicant is found by the metropolitan transit authority to be a fit person to operate an ambulance within the city according to the above standards, it shall issue the applicant a driver's license identification card under the provisions of this law.

(b) (1) A person making application for an emergency medical technician basic's license shall have successfully completed a basic training program for emergency medical technicians, which shall be equivalent to the emergency medical technicians course under the auspices of the University of Kansas Medical School, before such license will be issued.

(2) A person applying for an emergency medical technician basic's license need not be certified by examination by the National Register of EMT's to have his application approved if less than one year has passed between the time his application is approved and the time he completed a basic training program for emergency medical technicians. In all other cases, he must be certified by examination by the National Register of Emergency Medical Technicians. A person whose license was issued before he was certified by the National Register of EMT shall have that license revoked one year from the date he completed the basic training program for emergency medical technicians unless he has before that time been certified by examination by the National Register of Emergency Medical Technicians.

(3) Renewal of the EMT basic license shall be year-to-year and shall be dependent upon satisfactory evidence of current certification with the National Registry of Emergency Medical Technicians.

(c) (1) A person making application for an emergency medical technician advanced license shall, before being issued such license, be in possession of/or meet the qualifications to be eligible to be issued an emergency medical technician basic license, and shall have been certified by examination by the National Register of Emergency Medical Technicians, and further, shall have sufficient clinical instruction and experience to demonstrate proficiency to administer drugs or intravenous therapy, to telemeter physiological data, to perform cardiac defibrillation, and properly transport patients under the direction of a physician. The course to be taken to meet the requirements of clinical instruction necessary to be approved for an EMT advanced license must be approved by the Medical Society of Sedgwick County. Certification of this qualification must be given by a physician responsible for the training courses.

(2) Renewal of the EMT advanced license shall be year-to-year, and shall be dependent upon satisfactory completion of refresher or continuing education courses of thirty-two hours yearly. This course shall be approved by the Medical Society of Sedgwick County.

(Ord. No. 36-913 § 9)

Sec. 3.80.190. Transferability.

A license issued under the provisions of this chapter shall not be transferable.

(Ord. No. 32-835 (part); Ord. No. 23-946 § 19)

Sec. 3.80.200. Conviction of certain crimes to bar issuance.

Except as otherwise provided herein, no license shall be issued to any person who has been convicted under the laws of this state or another state or the ordinances of the city of any of the following violations:

(1) Felony;

(2) Any offense involving moral turpitude;

(3) Hit-and-run driving;

(4) Any offense involving narcotics, barbiturates, or amphetamines. If more than three years have lapsed since the conviction and the supervisory official believes the applicant to now be a fit person for such occupation, and if he so determines the applicant to be qualified, he may grant such license. If the metropolitan transit authority approves such application, a license be issued, provided, however, that the metropolitan transit authority may issue a temporary license for a period not to exceed thirty days during the time investigation of the applicant may be conducted, such temporary license to expire automatically at the end of thirty days from the date of issuance.

(Ord. No. 36-913 § 10)

Sec. 3.80.210. Expiration and renewal fees.

All licenses issued under this chapter shall expire on the thirty-first day of December each year. For the original application and issuance of an ambulance driver's license identification card, a fee of fifteen dollars shall be charged the applicant and paid to the metropolitan transit authority by him. For the original application and issuance of an EMT basic license or an EMT advanced license, a fee of five dollars shall be charged the applicant and paid to the metropolitan transit authority by him. Upon the expiration of the license, the person holding the license shall be required to obtain a new license upon the payment of the renewal fee of five dollars per license, provided that in case the person shall apply for a renewal license on or before December twentieth of each year, no new license application shall be required, provided further, however, that before any renewal license is issued, the applicant must secure the approval of the metropolitan transit authority upon the requirements provided for in this chapter and new photographs shall be re-

quired for proper identification. No refund shall be made for any reason whatsoever, and no license shall be prorated.
(Ord. No. 36-913 § 11)

Sec. 3.80.220. Grounds for suspension or revocation.

Any license provided for in this chapter may be suspended or revoked by the designated supervisory agency for any reason for which the original license could be denied, and, in addition, for any of the following reasons:

(1) Upon conviction for violation of any state or federal law;

(2) For conviction of drunkenness in the police court of the city while the licensee is on duty as an ambulance driver or EMT basic or EMT advanced. An appeal of such conviction to the district court shall not operate as a stay of said suspension as provided herein;

(3) For failure to make full report of an accident as required by this chapter to the police department;

(4) For permitting any other person to use his license;

(5) For obliterating or erasing any official entry on his license identification card;

(6) In the event the driver of an ambulance is convicted in the police court of the city for driving an ambulance while under the influence of intoxicating liquor or is convicted of having liquor in his possession while operating an ambulance, the driver's license shall be revoked permanently by the metropolitan transit authority.

(7) In the event a person holding an ambulance driver's license or EMT basic license or EMT advanced license recommends to any person, other than members of the ambulance driver's or EMT basic or EMT advanced own immediate family, that any deceased person be taken to any particular mortuary in the city or recommends the service of any particular person to any one with whom the driver or attendant may come into contact in connection with his duties as an ambulance driver or attendant, that person's ambulance driver or attendant license shall be revoked permanently by the metropolitan transit authority.

(Ord. No. 36-913 § 12)

Sec. 3.80.230. License to be surrendered upon suspension or revocation.

Whenever a person holding a license under this chapter has that license suspended or revoked, the supervisory official shall take up that license and driver license identification card and record the reason for such revocation or suspension and the term thereof.
(Ord. No. 36-913 § 13)

Sec. 3.80.240. Appeal from revocation and suspension.

Revocation or suspension of any license issued under this chapter shall be subject to appeal to the metropolitan transit authority and to the city council.
(Ord. No. 34-115 § 12; Ord. No. 32-835 (part); Ord. No. 23-946 § 24)

Sec. 3.80.250. File reports with police.

Unless prevented by an emergency, it shall be the duty of each ambulance driver to, within one-half hour after conveying any injured, sick, or dead persons to any public or private hospital, or removing him or them therefrom, or after conveying or removing any such person or persons within the city to another place within the city, or beyond its limits, any person owning or operating an ambulance hereunder, his agent, or employee shall notify the police department of such operation. Such notice shall give the name and address of such injured, sick, or dead person when such information is available and the place to and from which such person was removed. Within twenty-four hours after the removal of such injured, sick, or dead person, such person owning or operating an ambulance hereunder, his agent or employee, shall file a written report with the chief of police, giving the information required above and any other relevant information which the police de-

partment might require. The police department shall provide written forms upon which the information required in this section shall be written.
(Ord. No. 23-946 § 25)

Sec. 3.80.260. Ambulance operators to notify police department of emergency calls.

Every person operating an ambulance in the streets of the city, which answers calls in emergency cases, shall upon receipt of the call to convey a patient in an emergency case immediately notify the police department of such call, giving the location of the patient, the time the call is received, and, if possible, the hospital to which the patient is to be removed.
(Ord. No. 23-946 § 26)

Sec. 3.80.270. Ambulance drivers—Duty as to discharge of injured and ill persons—Speed limits to be observed.

(a) It shall be the duty of the operator of an ambulance in an emergency case to discharge any injured, ill or deceased person at the hospital nearest the place where the injured, ill or deceased person is picked up unless otherwise directed by the injured or ill person, spouse, or legal guardian except for major burn or critically injured patient(s). The discharge of major burn patient(s) shall be made directly to the local burn treatment center in accordance with protocols established by the local medical society. The discharge of critically injured patient(s) will be to the trauma facility within the city possessing the highest level of trauma care capabilities as verified by the American College of Surgeons, nearest the place where the injured person is picked up and in accordance with protocols established by the local medical society. It is unlawful for a driver of an ambulance to operate said ambulance in excess of forty-five miles per hour unless the posted speed is in excess of forty-five miles per hour. It is unlawful for the driver of an ambulance to enter an intersection controlled by stop-and-go lights or by a stop sign at the speed in excess of ten miles per hour, unless the signal is green.

(b) A facility shall be treated as if the facility has a trauma care capability at a level verified by the American College of Surgeons, as to discharge of critically injured patient(s) under subsection (a) of this section, if the following conditions have been met:

(1) Application for site visit has been submitted to the American College of Surgeons for one of the levels of trauma care capability that is recognized as being verifiable by the American College of Surgeons.

(2) The board of directors or other appropriate officials of such facility certifies to the Wichita/Sedgwick County board of health (board of health) that the facility is currently capable of and has in place and will continue to have in place at all material times a program that meets the clinical requirements of the American College of Surgeons for the requested level of verification contained in its application. Documentation that substantiates the certification shall be submitted to the board of health.

(3) The facility agrees to and has entered into an appropriate agreement that indemnifies and holds the city, the board of county commissioners of the county and board of health harmless from any and all claims, demands, liabilities and costs that arise or allegedly arise from the treatment of critically injured trauma patient(s) that are discharged to the facility pursuant to provisions contained herein.

(4) The board of health finds that the conditions contained herein have been met by the facility.

(c) If the board of health finds that a facility has met the conditions then such facility shall be treated as if it has received a verification of the American College of Surgeons at the level sought in such application subject to subsection (d); provided, however, that such level shall not be deemed to exceed the highest level previously granted by the American College of Surgeons to any other facility within the city.

(d) A facility shall be entitled to receive critically injured trauma patient(s) pursuant to board of health findings under subsection (b) of this section for a period of time not to exceed five months or the date that the American College of Surgeons make a final decision on the application whichever time comes first.
(Ord. No. 40-443 § 1)

Sec. 3.80.280. Penalties.

Any person convicted of violating any provisions of this chapter shall be punished by a fine of not more than five hundred dollars.
(Ord. No. 32-835 (part); Ord. No. 23-946 § 29)

CHAPTER 3.82. MEDI-COACHES

Sec. 3.82.010. Definitions.
Sec. 3.82.020. Red lights, sirens prohibited.
Sec. 3.82.030. Safety equipment.
Sec. 3.82.040. License application—Information—Fee.
Sec. 3.82.050. Liability insurance required.
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Sec. 3.82.080. License required.
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Sec. 3.82.110. Revocation of license.
Sec. 3.82.120. Inspection of vehicles.
Sec. 3.82.130. Rates.
Sec. 3.82.140. Appeals.

Sec. 3.82.010. Definitions.

"Medi-coach," as used in this chapter, means a vehicle equipped or used for the transportation of nonambulatory persons confined to a wheelchair or similar apparatus including a litter or bed so long as no medical care is required or provided during the period of transportation in the medi-coach. Provided, however, the term medi-coach shall not include those vehicles operated by the City of Wichita or Sedgwick County, Kansas, or a charitable nonprofit organization for the convenience of wheelchair handicapped persons as an incidental part of the organization's purpose and where no charge is made for the service.

"Medical care" means the providing of any medical services which are required to be provided or monitored by a physician, registered nurse, or emergency medical technician.

"Emergency medical technician" shall mean any person certified by the State of Kansas as an emergency medical technician, emergency medical technician-intermediate, emergency medical technician defibrillator, mobile intensive care technician, first responder and any future category established by the State of Kansas for emergency care providers.

"Board of health" shall mean the Wichita-Sedgwick County board of health.

"Director of community health" shall mean the director of the Wichita-Sedgwick County department of community health or his designated representative.

"Person" means any person, firm, partnership, association, corporation, company or organization of any kind.
(Ord. No. 42-158 § 1)

Sec. 3.82.020. Red lights, sirens prohibited.

Medi-coaches are not emergency vehicles and shall not have red and/or blue lights or sirens attached thereto.
(Ord. No. 42-158 § 2)

Sec. 3.82.030. Safety equipment.

Medi-coaches shall be equipped with floor locks, shoulder and waist straps and such other safety devices which, in the opinion of the director of community health, are necessary for public protection. The vehicles may have one additional passenger seat to be used only by a passenger serving or helping the nonambulatory person.
(Ord. No. 42-158 § 3)

Sec. 3.82.040. License application—Information—Fee.

Any person, in order to secure a license as herein required for the operation of a medi-coach, and before any such license shall be granted or issued, shall file with the license collector an application for such license on such form and containing such information as the license collector may require, including but without limitation the following:

(a) The name of the applicant, or if a firm, partnership, association, corporation, company or organization of any kind, the names and addresses of persons owning a financial interest therein, a list of all felony convictions of any person required to be named on the application, the number and type of medi-coaches proposed to be operated by the applicant, the name of the liability insurance company to whom application has been made for liability coverage;

(b) A complete description of each vehicle to be operated by the applicant, including the model, motor number and state license number;

(c) A copy of the proposed liability insurance policy;

(d) A list of the charges to be made by the applicant for services rendered to the public in the event a license is issued under the provisions of this chapter;

(e) Applications hereunder shall be accompanied by a license fee of fifteen dollars.

(Ord. No. 42-158 § 4)

Sec. 3.82.050. Liability insurance required.

Before any license shall be issued under the provisions of this chapter, the applicant therefor shall file with the city clerk, approved as to form and endorsement by the city attorney, an insurance policy providing liability coverage for the licensees in the operation of a medi-coach.

(Ord. No. 42-158 § 5)

Sec. 3.82.060. Hearing by board of health—Issuance.

Upon the filing of the application as specified, the director of community health shall set the time at which a public hearing will be held by the board upon such application with such notice thereof as the director of community health may deem advisable. The hearing shall be at the first regular meeting of the board following receipt of the completed application. Upon hearing, the board may approve such application and insuring agreement upon such conditions, terms and limitations as in their sole discretion may be deemed necessary or advisable for the protection of the public interest so long as no owner, manager, partner, director or officer of the applicant has ever been convicted of a felony, and shall specifically approve the rates to be charged by the licensee during the term of the license. At such hearing, which may be adjourned from time to time, the board shall hear testimony for and against both the question as to whether or not public convenience shall be promoted and public necessity would require such medi-coach service and whether or not persons in lawful operation of medi-coaches operating under a certificate of convenience and necessity and a license issued under the provisions of this chapter, if any, are incapable of rendering service required to meet the needs of the public. If the board should find that public convenience will be promoted by the medi-coach service and that persons in lawful operation of medi-coaches presently operating under a certificate of convenience and necessity and a license issued under the provisions of this chapter, if any, are incapable of rendering service required to meet the needs of the public, a certificate of convenience and necessity and a license shall be issued. If the board finds that public convenience and necessity does not require the operation of additional medi-coaches in the city, a certificate of convenience and necessity and the licenses shall be denied. The licenses issued under the provisions of this chapter shall become due on January 1st of each year and shall expire on December 31st of the year of their issue.

(Ord. No. 42-158 § 6)

Sec. 3.82.070. Need established before issuance.

No person shall engage in the operation of any medi-coach nor shall any license be granted or issued to operate a medi-coach within the corporate limits of the city until the board of health shall first find that public convenience will be promoted and public necessity requires such medi-coach service under the terms and provisions of this chapter.

(Ord. No. 42-158 § 7)

Sec. 3.82.080. License required.

It is unlawful for any person to engage in the operation of a medi-coach service or business without having first obtained a license as herein provided.

(Ord. No. 42-158 § 8)

Sec. 3.82.090. License nontransferable.

A license or a certificate of convenience and necessity issued under the provisions of this chapter is not assignable or transferable and shall run to the exclusive benefit of the licensee.

(Ord. No. 42-158 § 9)

Sec. 3.82.100. Public convenience and necessity determined.

For determining whether or not a certificate of public convenience and necessity shall be issued,

the board of health shall take into consideration the systems of transportation already operating, the question of whether or not the existing systems of transportation are rendering the service required to meet the needs of the public and whether or not persons in lawful operation of medi-coaches operating under a certificate and a license issued under the provisions of this chapter are capable of rendering service required to meet the needs of the public, the financial responsibility of the applicant, and all other facts which are necessary to determine whether or not public convenience and necessity requires the operation of additional medi-coach service within the corporate limits of the city.
(Ord. No. 42-158 § 10)

Sec. 3.82.110. Revocation of license.

The board of health, upon thirty days' notice of hearing, may suspend or revoke any license or certificate of convenience and necessity issued under the provisions of this chapter if the licensee has failed or neglected to comply with any of the terms of this chapter or has otherwise become ineligible to obtain a license under this chapter. The board may continue the hearing as in their discretion may be advisable to allow the licensee to comply with the terms of this chapter.

The failure of any licensee to pay any judgment against him within ten days after such judgment becomes final, and is not superseded by a proper bond on appeal shall be grounds for the cancellation of all licenses issued to any such licensee.

The cancellation, withdrawal, or other termination of any insurance policy or other type of assuring agreement, or failure to maintain the same in accordance with the provisions of this chapter shall automatically terminate the use of any medi-coach covered by such insurance policy.

Any licensee who fails to render good service to the public after ten days' notice from the board of health of the failure to render good service to the public shall be subject to having its license and certificate of convenience and necessity suspended or revoked as herein provided.
(Ord. No. 42-158 § 11)

Sec. 3.82.120. Inspection of vehicles.

The board of health shall cause to be inspected the vehicles designated in the application hereunder and shall certify its approval when it finds that such vehicles are suitable from the standpoint of safety and that all state laws and local ordinances relating to safety have been complied with. The board of health, after the issuance of a license and certificate of public convenience hereunder, shall cause the vehicles operated by the licensee to be inspected once each three months to determine that the vehicles are suitable from the standpoint of safety, and that all state laws and local ordinances relating to safety are being complied with.
(Ord. No. 42-158 § 12)

Sec. 3.82.130. Rates.

Any person issued a license and certificate of convenience and necessity under the provisions of this chapter shall charge the public the rates set forth in their application for a license, and should the licensee desire to raise the rates, they shall file an application with the city clerk for permission to raise their rates. The city clerk shall forward the application to the board of health. The board of health shall fix a time and place for hearing thereon, which shall not be more than thirty days after such application has been properly referred to the board. At such hearing, the board may in their discretion allow the applicant to increase their rates charged to the public by the licensee.

It is unlawful for any licensee to charge the public higher rates than those listed in the licensee's application for a license or higher rates than those authorized by the board, as herein provided. It shall be grounds for the revocation of a license under the terms of this chapter for a licensee to violate the provisions of this section.
(Ord. No. 42-158 § 13)

Sec. 3.82.140. Appeals.

Any person who has been denied a license under this chapter or whose license or certificate of convenience and necessity has been suspended or revoked shall have a right of appeal to the city council from such decision by filing a written

request therefor with the city clerk. The notice of appeal must be filed within ten days of the decision being appealed.
(Ord. No. 42-158 § 14)

Chapter 3.84. WICHITA TAXICAB CODE*

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*__Editor's note—__Ord. No. 49-278, § 1, adopted May 22, 2012, amended the title of Ch. 3.84 to read as herein set out. Former title was entitled Taxicab and Paratransit Code.

__Case law references—__For case upholding the validity of a former ordinance of the city providing for licensing of taxicabs, see *City of Wichita v. Home Cab Co.,* 42 P. (2d) 972. See also, *People's Taxicab Co. v. City Wichita,* 140 Kan. 129, 34 P. (2d) 545; *Home Cab Co. v. City of Wichita,* 36 P. (2d) 1012.

__Case law reference—__For cases upholding validity of former taxicab ordinances, in which it was held that the power of the city was based more on necessary implications than upon the definite wording of the legislative power conferred upon the city, see *Desser v. City of Wichita,* 96 Kan-820, 153 P 1194, L. R. A. 1916D, 246, and *City of Wichita v. Home Cab Co.,* 141 Kan. 697, 42 P. (2d) 972. See also, *Brown v. City of Topeka,* 74 P. (2d) 142.

__Cross reference—__As to establishment of taxicab stands and taxicab call box locations, see §§ 11.52.010 and 11.52.020 of this Code. As to parking in taxicab stands, see § 11.52.030. As to transporting persons for purpose of prostitution, etc., see § 5.68.040 of this Code.

Sec. 3.84.010. Title.

This chapter shall be known and may be cited as the 'Wichita Taxicab Code.'
(Ord. No. 38-870 (part); Ord. No. 49-278, § 1, 5-22-2012)

Sec. 3.84.020. Purpose.

In order to promote the public welfare in the city, it is the purpose of this chapter to require that those persons owning, operating or responsible for the operation of taxicabs, as defined in this chapter, do so in a safe, fair and efficient manner.
(Ord. No. 38-870 (part))

Sec. 3.84.025. Enforcement of Provisions of Code.

The Wichita Police Department, the Wichita Department of Public Works and Utilities, the Wichita Airport Authority, the authorized representatives of such departments, and the Taxicab Enforcement Officer shall be responsible for the enforcement of all provisions of this Code.
(Ord. No. 49-278, § 2, 5-22-2012)

Sec. 3.84.030. Definitions.

As used in this Code, unless the context otherwise requires, the following terms shall have the meaning ascribed:

1. '*Airport Property*' means any property, facilities and improvements owned, leased and/or under the control and jurisdiction of the Wichita Airport Authority and roads and streets contained thereon.
2. '*Central place of business*' means an office located within the City of Wichita and staffed by personnel responsible for the operations of the taxicab company for which the taxicab company license is issued.
3. '*City*' means the City of Wichita, Kansas.
4. '*City Manager*' means the City Manager of the City or his/her designee.
5. '*City Treasurer*' means the City Treasurer of the City or his/her designee.
6. '*Cruising*' means the continuous or repeated operation over the public streets of a taxicab in search of picking up or solicitation of prospective passengers.
7. '*Director of Airports*' means the Director of the Wichita Airport or his/her designee.
8. '*Director of Public Works and Utilities*' means the Director of the Department of Public Works and Utilities of the City of Wichita, or his/her designee.
9. '*Emergency vehicle starting service*' means the use of a taxicab vehicle for the jump starting of another vehicle having a dead or disabled battery.
10. '*Exclusive ride*' means exclusive use of a taxicab by one or more passengers at a time having common origins and destinations.
11. '*Fixed route*' means a specific route along which a taxicab vehicle operates at given times and dates.
12. '*Fixed schedule*' means taxicab service which is provided in an area by means of vehicles serving specific locations on a given and fixed time schedule.
13. '*Group ride*' means the use of a taxicab by a group of passengers who generally enter the taxicab at the same location and disembark at the same destination, and pay a single fare for the trip.
14. '*Major body damage*' means substantial damage to a vehicle's fender(s), hood, quarter panel(s), door(s) or trunk lid.
15. '*Motor vehicle*' means every vehicle which is self-propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.
16. '*Person*' means any individual, firm, association, company, partnership, or other legal entity.
17. '*Police Chief*' means the Chief of the Wichita Police Department or his/her designee.
18. '*Radio dispatch*' means a two-way system including cellular or wireless telephones

capable of handling voice and/or data communications for the purpose of dispatching vehicles and receiving calls from the drivers of such vehicles.

19. *'Rate card'* means a card issued by the City Treasurer for display in each taxicab, which contains: a) the rate of fare then in force; b) information advising the passenger of their right to a receipt; c) information regarding passenger's rights pursuant to this code and d) contact information for the Taxicab Enforcement Officer.

20. *'Shared ride'* means the nonexclusive use of a taxicab by two or more passengers, generally traveling between different points of origin and/or destination, but in the same general direction and each paying an individual fare for the trip.

21. *'Street'* means street, avenue, boulevard, thoroughfare, trafficway, alley and any other public way for vehicular travel.

22. *'Taxicab Enforcement Officer'* means the individual or his or her designee appointed by the City Manager to administer the provisions of this code.

23. *'Taxicab'* means any motor vehicle which is furnished for hire on a call or demand basis to transport persons, packages or messages where the route traveled and trip destination are controlled by the passenger, and a charge or fare is based upon time and mileage recorded and indicated on a taximeter except that the following shall not be considered to be taxicabs:

    a. Motor buses operated by Wichita Transit of the City of Wichita;

    b. Motor buses and motor vehicles engaged exclusively in the transportation of students to and from school, commonly known as school buses;

    c. Vehicles operated by a person or company used to transport persons who are the employees, patrons, guests, residents or customers of the person or company, where the provision of such transportation is incidental to the business of such person or company and no fee is charged;

    d. Group riding or an arrangement between individuals whereby they pool their private transportation resources either by using the personal automobile of one member of the group with the others contributing to the costs of operating the same, or by rotating the use of their personal automobiles with joint contributions to the cost by the other members of the group or when any employer provides transportation for its employees and for no other individuals.

    e. Vehicles which are licensed as shuttles or limousines by the City of Wichita.

24. *'Taxicab company'* means any person, company or corporation licensed under the provisions of this chapter who provides a taxicab service on a city-wide basis and who holds legal title, or who has the legal right of possession, or the legal right of control of the vehicle or vehicles utilized in providing, the service.

25. *'Taxicab Company License'* means the license under which a person, firm, partnership, association or corporation is authorized to provide taxicab services as defined by this chapter.

26. *'Taxicab driver's license'* means the license issued under this chapter to an individual to drive a taxicab.

27. *'Taxicab vehicle permit'* means the permit issued or a vehicle designated as a taxicab.

28. *'Taximeter'* means a meter instrument or device attached to a taxicab which measures the distance driven and the waiting time upon which the fare is based.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 3, 5-22-2012)

Sec. 3.84.035. Taxicab Enforcement Officer.

The Taxicab Enforcement Officer is authorized to:

(a) Administer and enforce the provisions of this code;

(b) Represent the City and serve as a liaison between the public, licensees and the Wichita hotel and tourism industry in resolving complaints regarding the operation of taxicabs;

(c) Coordinate with the Police Chief, Director of Public Works and Utilities, and Director of Airports to determine the denial, revocation and/or suspension of licenses and permits.

(d) Establish, under the authority of the City Manager, any implementing regulations or guidelines which are consistent with the requirements of this Code.

(Ord. No. 49-278, § 4, 5-22-2012)

Sec. 3.84.040. Taxicab Company Licensing requirements.

(a) No person shall conduct business as a taxicab company or allow to be operated upon the streets of the city any taxicab without first having obtained a license from the City Treasurer as hereinafter provided. A separate commercial ground transportation operating permit, including the payment of permit fees, may be required by the Director of Airports in accordance with Airport Standard Operating Procedures and policies for commercial ground transportation services on Airport property.

(b) The holder of a taxicab company license shall be responsible for obtaining and monitoring all taxicab vehicle permits for vehicles operated as a taxicab.

(c) A taxicab company licensee shall also be responsible for seeing that all standards and requirements pertaining to the taxicab company, taxicab vehicle or taxicab driver are complied with.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 5, 5-22-2012)

Sec. 3.84.050. Requirements for obtaining a taxicab company license.

(a) Any person, firm, partnership, association or corporation meeting the following requirements shall be issued a taxicab company license. An application for such a license, as specified in Section 3.84.070, shall be made to the City Treasurer. Such application shall be reviewed by the Taxicab Enforcement Officer, Director of Public Works and Utilities, and the Police Chief and, if approved, shall be in effect for one year from the date of issuance.

(b) No company license shall be approved unless the applicant meets the following minimum standards. The applicant shall have:

1. A central place of business open and staffed a minimum of eight hours a day, five days a week;

2. A dispatch system capable of receiving calls and dispatching service, and in operation seven days a week twenty-four hours a day;

3. Sufficient operational taxicabs to provide service on a city-wide basis, defined here as requiring a minimum of ten vehicles meeting the vehicle standards specified in Section 3.84.140;

4. All taxicabs shall be so equipped and operated that they may be dispatched by radio;

5. The capability to respond to a request for service, inside the corporate limits of the city in a reasonable time;

6. Facilities and personnel sufficient to insure that the requirements of this chapter are met by every taxicab operated by the company;

7. Insurance in force which meets or exceeds the requirements of Section 3.84.100;

8. A supervisor on duty and in charge of taxicab operations all hours during which service is made available by the company;

9. The maintenance of written records of all complaints relating to service and charges

of the taxicab drivers and the actions taken by the supervisor or other company personnel as to such complaints.

(Ord. No. 38870 (part); Ord. No. 49-278, § 6, 5-22-2012)

Sec. 3.84.060. Right of inspection and entry.

(a) The taxicab company licensee, and any person employed by the company, shall allow access and inspection by any official designated to enforce the provisions of this chapter to any records, taxicabs and taximeters necessary to verify compliance with the requirements of this Code.

(Ord. No. 38870 (part); Ord. No. 49-278, § 7, 5-22-2012)

Sec. 3.84.070. Application for taxicab company license.

All persons applying for a taxicab company license shall file with the City Treasurer an application on forms provided by the City Treasurer which includes:

1. The name of the applicant the names, addresses, e-mail addresses and telephone numbers of the owners of the company or in the case of a corporation, the owner of any capital stock thereof, and the address of the central place of business;
2. The number of taxicabs to be operated under the company license with a complete description of each vehicle including the number of persons it is constructed to carry, the model, the year of production, the vehicle identification number and the state license number;
3. Proof that the insurance requirements specified in Section 3.84.100 have been met;
4. A description of the proposed color scheme, insignia, trade style and/or any other distinguishing characteristics of the proposed vehicle design;
5. Business name, address, e-mail address and telephone number of the taxicab company;
6. Proof that each taxicab is currently registered with the State of Kansas;
7. Whether the applicant, partner, or shareholder has been convicted of a felony within the previous five years, has been or is a registered sex offender, has been convicted of violating any provisions of this code or has ever had a license under this chapter suspended or revoked;
8. A schedule of proposed fees.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 8, 5-22-2012)

Sec. 3.84.080. Payment of fees.

The application for a taxicab company license shall be accompanied by the annual license fee of two hundred dollars. In addition, an annual vehicle permit fee of one hundred dollars for each vehicle to be operated by the taxicab company shall accompany the company license application.

All such fees are annual, and must be paid at the time of the application or application renewal. No license shall be issued unless all licensing fees have been paid to the City Treasurer.

The Director of Airports may establish additional permit fees in accordance with Airport Standard Operating Procedures and policies for commercial ground transportation services on Airport property.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 9, 5-22-2012)

Sec. 3.84.090. Eligibility requirements.

No taxicab company license or renewal thereof shall be granted to:

(a) Any person who within five years immediately preceding the date of making application, has been convicted of or has pleaded guilty to any felony, pursuant to the laws of any city, state or of the United States or shall have forfeited his bond to appear in court to answer charges for any such offense;

(b) Any partnership, unless all the partners shall be eligible to receive a license as an individual;

(c) Any person, partnership or corporation who, within the two years preceding the application, has had a license revoked under the provisions of this chapter;

(d) A corporation, if any manager, officer or director thereof, would be ineligible, as an individual, to receive a license hereunder for any reason. A corporation, if any stockholder owning in the aggregate more than twenty percent of the stock of such corporation, would be ineligible as an individual for any reason other than age;

(e) Any person who is not at least eighteen years of age;

(f) Any person who at the time of application for renewal of any license issued hereunder would not be eligible for such license upon a first application;

(g) Any person who is now or has ever been registered as a sexual offender with any federal, state, county or local government.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 10, 5-22-2012)

Sec. 3.84.100. Insurance requirements.

(a) It shall be the responsibility of the taxicab company licensee to see that all taxicabs operated by the company meet and maintain the insurance requirements established in this chapter.

(b) An insurance policy, covering each and every taxicab owned, operated or leased by the company shall be provided from an insurance company licensed to do business in the state and having the following insurance policy limits:

1. Liability coverage of not less than one hundred thousand dollars for the injury to, or death of, one person in any one accident and, a limit of not less than three hundred thousand dollars because of injury to, or death of, two or more persons in any one accident, and to a limit of not less than fifty thousand dollars for property damages in any one accident or the minimum limits that may be established by state or federal laws for the type/size of vehicle or number of passengers transported;

2. Such policy of insurance shall be in effect and cover each and every taxicab while licensed by the city and shall be effective whether the taxicab is being driven by: the owner, his agent, employee, taxicab driver, lessee or licensee.

3. Such policy shall be effective until at least twenty days after written notice of such cancellation has been filed with the Taxicab Enforcement Officer and written acknowledgment of the service of such notice has been given to the company by the Taxicab Enforcement Officer;

4. Such policy shall contain all of the conditions required by the laws of the state and by the insurance commissioner of the state and shall provide for actual notice to the Taxicab Enforcement Officer of any changes, cancellation or termination of such policy.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 11, 5-22-2012)

Sec. 3.84.105. Duty of taxicab company licensees to enforce compliance by drivers.

(a) No taxicab company licensee will allow an individual to drive a taxicab, if the licensee knows or has reasonable cause to know that the individual has failed to comply with this code, the rules and regulations established by the Director of Airports on Airport property, the Taxicab Enforcement Officer, or other applicable state or federal law;

(b) Each taxicab company licensee shall insure that no taxicab is operated in an unsafe mechanical condition, with major body damage, or after being ordered out of service by an official designated to enforce the terms and conditions of this Code;

(c) Each taxicab company licensee will be responsible to provide overall taxicab service to the public;

(d) Each taxicab company licensee will promptly respond to all complaints by passengers, and other members of the public;

(e) Each taxicab company licensee will promptly respond to all requests for information from the Director of Public Works and Utilities, Chief of Police, Director of Airports or the Taxicab Enforcement Officer or their designees;

(f) The taxicab company licensee shall maintain the company's daily dispatch records for a period of two years. These dispatch records shall be available for inspection at all times by the Taxicab Enforcement Officer or other law enforcement agencies, and officials designated to enforce the terms and conditions of this Code.
(Ord. No. 49-278, § 12, 5-22-2012)

Sec. 3.84.108. Non-transferability of taxicab company license.

No taxicab company license may be sold, assigned, mortgaged or otherwise transferred, nor may there by any modification of ownership as to stock transfer, new or additional partners, by the licensee.
(Ord. No. 49-278, § 13, 5-22-2012)

Sec. 3.84.110. Revocation/suspension of taxicab operating permit.

The Taxicab Enforcement Officer shall provide written notice of the intent to revoke or suspend a taxicab company license by personal service or by certified mail, return receipt requested. The notice shall be sent to the mailing address of the company licensee on file with the City Treasurer. The notice shall provide the effective date of the revocation or suspension of the license. Such notice shall detail the reasons or basis for the revocation or suspension of the license. No revocation or suspension shall be imposed on less than five days notice to the licensee, and shall specify the rights of the licensee to appeal any such denial, revocation or suspension.

In addition to revocation or suspension of company license for failure to comply with the requirements of this chapter, license may also be revoked or suspended for the following reasons:

1. The failure of any company licensee to pay any judgment against it within ten days after such judgment becomes final and is not superseded by a proper bond on appeal.
2. The cancellation, withdrawal or other termination of insurance or failure to maintain the same in accordance with the provisions of this Code.
3. The taxicab company licensee has violated any of the provisions of this code or failed to comply with any rule or regulation established by the City of Wichita.
4. The failure of a taxicab company licensee to rectify any violations of this Code.
5. The company licensee made a misrepresentation or false statement when obtaining a license, renewal of a license or additional licenses or permits.
6. The company licensee becomes ineligible to obtain a license.

In case of the revocation of any license, no new license shall be issued to such licensee for a period of two years from the date of the revocation.

In addition to the provisions of this section, the Director of Airports may suspend or revoke operating permits for operation of taxicabs while on airport property in accordance with Airport Standard Operating Procedures and policies for commercial ground transportation services.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 14, 5-22-2012)

Sec. 3.84.120. Type of vehicles.

Any motor-propelled passenger carrying vehicle, including vehicles commonly referred to as vans having a passenger capacity up to sixteen persons plus the driver, may be used as a taxicab vehicle as long as such vehicles meet and adhere to the vehicle standards and requirements of this chapter.
(Ord. No. 38-870 (part))

Sec. 3.84.130. Taxicab vehicle license.

(a) It shall be the responsibility of a taxicab company licensee to obtain a taxicab vehicle permit for each vehicle owned, operated, leased or employed in any way by the taxicab company licensee. The request for each such permit shall be made at the time of filing the company license application.

(b) For each vehicle permit requested, an annual fee of one hundred dollars shall be paid at the time of the filing of the taxicab company license application or renewal application. Such fee shall include costs for inspections required by Section 3.48.150.

(c) All persons applying for a taxicab permit shall file with the City Treasurer an application on forms provided by the City Treasurer which includes:

1. The name of the applicant, business name, address and telephone number of the taxicab company;
2. Make, model, year of production, the vehicle identification number and the state license number of the vehicle;
3. Proof that the insurance requirements specified in Section 3.84.100 have been met; and
4. Proof that the vehicle is currently registered with the State of Kansas.

(d) In addition to the annual fee prescribed by this chapter, the request for vehicle permits shall be accompanied by a vehicle inspection record for each vehicle, as specified in Section 3.84.150. This inspection record must verify that the vehicle for which a permit is being requested has been inspected and meets all vehicle requirements specified in this chapter. In no event shall a permit be issued for a vehicle which fails to meet the requirements of this chapter.

(e) Each taxicab must have a permit issued by the City Treasurer. The permit will identify each vehicle by a unique number in accordance with rules and procedure established by the Taxicab Enforcement Officer.
(Ord. No. 40-380 § 1; Ord. No. 49-278, § 15, 5-22-2012)

Sec. 3.84.140. Taxicab vehicle standards.

Vehicles may be used as taxicabs provided such motor vehicles meet the following standards and requirements:

1. The maximum average fleet age of taxicabs to be operated under any company license shall be eight years. The average fleet age shall be determined at the time of application for or renewal of taxicab company license each year and shall be calculated by adding the ages of all vehicles to be operated under the license and dividing the total by the total number of those vehicles. The age of each vehicle shall be determined by subtracting its model year from the current calendar year. Vehicles added to a fleet or replacing other fleet vehicles during a license year shall be no older than the maximum average fleet age allowed for the calendar year in which they are added or replaced.
2. Any vehicle used as a taxicab shall be kept clean, of good appearance, in good repair, properly equipped and in a safe condition. All pollution control equipment and safety devices originally installed by the manufacturer shall also be maintained in good working order. To assure compliance, all such vehicles shall be submitted for inspections as specified in Section 3.84.150.
3. Safety seat belts shall be provided for each passenger the vehicle is constructed to accommodate. Such seat belts shall at all times be maintained in a functional manner and be submitted for inspections as specified in Section 3.84.150.
4. Doors must be provided which open directly into the area of the vehicle used for passenger seating. These doors must be easily opened from the inside by a passenger. For a nonvan type vehicle, a minimum of four doors must be provided. In addition for nonvan type vehicles, windows must also be easily opened from the inside.
5. Every vehicle shall be equipped with sufficient nonglare headlights, proper rear lights and be capable of being properly heated in winter or during periods of cold weather and air-conditioned in summer or during periods of warm weather.
6. Every vehicle shall be well painted and in the color scheme or manner specified in the taxicab company's license application.

7. Every vehicle shall be equipped with a frame for the proper display of the vehicle permit, the taxicab driver's license, and a rate card.

8. Every vehicle shall have plainly painted on each side of the vehicle and the rear of the vehicle, in letters at least two inches in height the name and telephone number of the company operating the taxicab. A number assigned by the company for identifying the vehicle shall also be painted in the same general locations with numerals at least four inches in height. No advertising which covers or obstructs the view of this information shall be allowed.

(Ord. No. 89-894 § 1; Ord. No. 49-278, § 16, 5-22-2012)

Sec. 3.84.150. Taxicab vehicle inspections.

(a) To insure compliance with the foregoing provisions, each taxicab shall be inspected within thirty days prior to receiving a permit and at least once each six months thereafter so long as the vehicle remains permitted as a taxicab. Such inspections shall be conducted by the Director of Public Works and Utilities. The inspections shall include inspections of the vehicle surface, taximeter, motor, mechanical and safety equipment and underbody according to standards specified by the Director of Public Works and Utilities. Any vehicle not passing inspection shall not be permitted; or if permitted, shall not be operated as a taxicab until all deficiencies are corrected. A re-inspection fee of $25.00 will be assessed for the re-inspection of any vehicle which fails an initial inspection. Random inspections of taxicabs and records shall be made by the Director of Public Works and Utilities or his/her designated representatives to insure compliance with the terms and conditions of this code. A company licensee shall make a taxicab available for inspection with at least forty-eight (48) hours notice when ordered to do so by the Director of Public Works and Utilities or the Taxicab Enforcement Officer.

(b) A record of each inspection for every vehicle permitted as a taxicab shall be maintained at the office of the taxicab company's place of business along with receipts for any repairs made to the vehicle. Each vehicle shall have attached a sticker or decal showing the date of the last inspection. These records shall be maintained by the taxicab company until the vehicle is no longer utilized as a taxicab.

(c) All complaints regarding taxicab conditions shall be referred to the taxicab company who shall keep a record of all complaints received and the disposition thereof.

(Ord. No. 40-380 § 2; Ord. No. 49-278, § 17, 5-22-2012)

Sec. 3.84.155. Inspection Compliance Decal Required.

(a) It shall be unlawful for any person to drive, allow or cause to be driven any taxicab that does not have a current inspection compliance decal affixed.

(b) Such inspection decal shall be placed in the lower corner of the driver's side front window.

(c) The taxicab company licensee shall remove and return to the Taxicab Enforcement Officer decals of any taxicab which is removed from service.

(Ord. No. 49-278, § 18, 5-22-2012)

Sec. 3.84.160. Nontransferability of taxicab vehicle license.

(a) A taxicab vehicle permit is not transferable. If a taxicab is sold, has its ownership transferred, or is no longer being used for taxi service, the company licensee shall have the vehicle permit returned to the Taxicab Enforcement Officer. All distinctive taxicab markings shall be removed before the vehicle is placed into operation for any other purpose.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 19, 5-22-2012)

Sec. 3.84.170. Revocation/suspension of taxicab vehicle license.

If at any time a taxicab is found to be in violation of this chapter, the Taxicab Enforcement Officer may have the vehicle permit suspended or revoked pursuant to the provisions of Section 3.84.110. The licensee shall not allow the vehicle to be put into service until the improper condi-

tions have been corrected; and the taxicab is re-inspected and the taxicab permit is reissued by the City Treasurer.

If for any reason, a taxicab has not been used for service for a period of thirty days or more, the Taxicab Enforcement Officer may, upon seven days written notice to the licensee, revoke the taxicab vehicle permit.

In addition to the provisions of this section, the Director of Airports in accordance with Airport Standard Operating Procedures and policies for commercial ground transportation services may suspend or revoke operating permits issued for the operation of taxicabs while on Airport property."
(Ord. No. 38-870 (part); Ord. No. 49-278, § 20, 5-22-2012)

Sec. 3.84.180. Additional taxicab vehicles.

Provided that all provisions of this chapter are met, the holder of a taxicab company license may add additional vehicles to those already contained in its license. It shall be the responsibility of the taxicab company licensee to see that a vehicle inspection record is completed for such vehicles and that the inspection record is added to the existing license. Such information shall be forwarded to the City Treasurer. The vehicle permit fee must also be paid at the time the inspection record is presented for addition to the company license.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 21, 5-22-2012)

Sec. 3.84.190. Taximeters.

The following requirements shall be adhered to for taximeters in taxicabs:

1. The taximeter shall be an instrument or device, mechanical or electronic, which is connected to the taxicab in such a manner that it is capable of measuring the distance upon which the fare to be charged the passenger shall be based, and on the recording of figures on the dial the fare (in dollars and cents) as it accrues.
2. The accuracy of the taximeter shall not be allowed to vary by more than two percent to the prejudice of the passenger, nor more than four percent in favor of the passenger. Taxicab company licensees shall be responsible for the accuracy of taximeters installed in taxicabs operated under their license.
3. All taximeters shall be subject to inspection and test by the Director of Public Works and Utilities. Any taxicab bearing a taximeter found not to conform to the tolerance established in this section may be ordered out of service and not returned to service until the taximeter is re-inspected and conforms to the established tolerance values.
4. The taximeter shall be set according to the schedule of rates posted in the taxicab and as are specified by this chapter. When used for the calculation of a fare, no other or different fare shall be charged to a passenger than is recorded on the reading face of the taximeter for the trip.
5. Each taximeter shall be so mounted in the taxicab that the amount of fare to be charged shall, at all times, be plainly visible from the inside of the vehicle to all occupants of the vehicle. Every taximeter shall be so attached to the taxicab that it is possible for a person standing outside the vehicle to tell whether the taximeter is in use or not. Between the hours of sunset and sunrise, the dial of the taximeter shall be illuminated whenever it is in use.
6. Taximeters shall be inspected at least once a year or as often as necessary, by the Director of Public Works and Utilities and following testing and inspecting any meter, the company licensee shall seal the same. Meters will be tested and calibrated at the time of issuance or renewal of a vehicle permit or at least once a year by the Director of Public Works and Utilities. It is unlawful for any person to break the seal on a taximeter or to tamper with the taximeter in any manner, or to knowingly change the calculation rate to any rate other than as provided by this

chapter, except that such seal may be broken for the sole purpose of repairing the taximeter. A vehicle may be returned to service following repairs of the taximeter but must be re-inspected by the Director of Public Works and Utilities and the taximeter sealed no later than five days from the date of such repair. A re-inspection fee of twenty-five dollars ($25.00) shall be assessed for any re-inspections of the taximeter required by this section.

7. It is unlawful for any person operating a taxicab in the city equipped with a taximeter and for which a metered fare is applicable to fail to have the meter in operation while carrying any person other than the driver or student driver thereof, the owner, or its authorized agent or employee, or any member of the police department while on duty and in uniform.

8. The taximeter shall be set in operation at the time a passenger enters the taxicab and be stopped when the taxicab is halted to discharge such passenger; provided, that no waiting time shall be charged for the time consumed by unavoidable traffic delay.

(Ord. No. 40-380 § 3; Ord. No. 49-278, § 22, 5-22-2012)

Sec. 3.84.200. Taxicab driver's license required.

(a) It shall be unlawful for any person to act as the driver of a taxicab in the city without first having secured a Taxicab driver's license therefore and having in his or her possession at all times, a valid State of Kansas, Class C driver's license. It shall also be the responsibility of the taxicab company licensee to assure that no driver is allowed to operate a taxicab, in service, without holding and displaying a valid taxicab driver's license as specified in this chapter.

(b) A taxicab driver's license may be issued to qualified applicants upon the payment of fifteen dollars ($15.00) plus the costs of investigation. If the taxicab driver's license has been revoked, no new license shall be issued for a period of two years following the revocation. A ten dollar ($10) fee shall be charged for all replacement taxicab driver licenses.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 23, 5-22-2012)

Sec. 3.84.210. Taxicab driver's license application—Information to be given.

(a) A taxicab driver's license shall be applied for in writing on such forms as the Treasurer may provide and contain such information as may be required, including the following:

(1) The name, residential address, telephone number and date of birth of the applicant.

(2) The type(s) of vehicle(s) which the applicant will drive under the license.

(3) Whether the applicant has been licensed as a taxicab driver and if so, when, and by what municipality or state, and whether such license has been revoked or suspended, and the date thereof;

(4) The number of times, dates and places, within the last five years, the applicant has been arrested or convicted for traffic violations, driving under the influence of alcohol or drugs and/or leaving the scene of an accident;

(5) Whether the applicant has been convicted of a felony within the last five years;

(6) Whether the applicant is now or has ever been registered as a sex offender with any federal, state, county or local government;

(7) The applicant shall furnish a copy of his/her valid Kansas Class C driver's license.

(8) The City Treasurer shall photograph the applicant. Such photograph will be attached to the applicant's license. Photographs are to be re-taken no less than every six years.

(9) The applicant shall submit proof of attendance of a customer service class approved by the City Treasurer or enrollment in a customer service class. Such class must be attended within twenty-

four months prior to the date of the application, or within ninety (90) days following the application date.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 24, 5-22-2012)

Sec. 3.84.215. Criminal background investigation.

All applicants for a taxi driver's license will undergo a criminal background and driver's license check. The City Treasurer shall collect background check fees of ten dollars ($10.00) from all applicants.

(Ord. No. 49-278, § 25, 5-22-2012)

Sec. 3.84.220. Taxicab driver's license qualifications.

(a) Every applicant for a taxicab driver's license shall:

(1) Be at least 18 years of age;

(2) Be able to adequately speak and understand the English language so as to perform the duties of a taxicab driver;

(3) Be clean and neat in dress and person, and not addicted to the use of intoxicating liquor or drugs;

(b) A taxicab driver's license shall not be issued to any person who:

(1) Has been found guilty of, pleaded guilty to or been convicted of a felony (federal or any state) within five years of the application.

(2) Is now or has ever been registered as a sexual offender with any state, county or local government.

(3) Within five years of the date of application has been found guilty of, pleaded guilty to or been convicted of a violation of federal, state law or a traffic ordinance of any city involving leaving the scene of a motor vehicle accident or driving under the influence of alcohol or drugs.

(4) Failed to provide proof of attendance of an approved customer service class within twenty-four months of the date of the application or provide proof of registration in such class scheduled within ninety days from the date of the application. Such training shall include information regarding disability awareness and sensitivity to those individuals with disabilities.

(c) The Taxicab Enforcement Officer shall prepare and administer a written and oral test for new applicants that will test the applicant's:

(1) Knowledge of taxicab and driver requirements contained in applicable codes and regulations.

(2) Knowledge of vehicle safety requirements;

(3) Knowledge of the geography of the city and the area, and knowledge of local public and tourist destinations and attractions.

(d) An applicant who fails the examination may retake the examination once at no additional charge. If the applicant fails the second test or any test thereafter, the person shall not be permitted to retake the test for sixty (60) days after failure, and, for each additional test, the applicant shall pay another application fee.

(e) The written examination is not required for the renewal of a taxicab driver's license unless the applicant's license has expired, been revoked or suspended for a period of more than one year.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 26, 5-22-2012)

Sec. 3.84.230. Taxicab driver's license examination of applicant—Issuance.

Upon the filing of an application, the designated supervisory agency shall cause the applicant to be examined as to his knowledge of the provisions of this chapter and Title 11 relating to the operation of taxicabs and traffic, as well as geography of the city, and if the applicant fails to show a reasonable knowledge of such matters he shall be refused a license. The designated supervisory agency may require an examination of the applicant as to his driving ability. If the applicant is found by the designated supervisory agency to be a fit person to operate a taxicab within the city according to the above standards, the designated

supervisory agency shall issue a taxicab driver's license identification card under the provisions of this chapter.
(Ord. No. 38-870 (part))

Sec. 3.84.240. Taxicab driver's license identification card and issuance—Contents.

The taxicab driver's license identification card shall be issued after the individual's application has been approved by the City Treasurer. Such card shall be of a form prescribed by the Taxicab Enforcement Officer and shall contain the picture of the driver affixed in such a manner that another picture cannot be substituted therefore without detection. The taxicab driver's license identification card number and its expiration date shall also be shown on the card.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 27, 5-22-2012)

Sec. 3.84.250. Taxicab driver's license replacement when lost—Contents of duplicate—Information to police.

In case of a loss of a driver's license identification card, such driver may file with the City Treasurer a sworn and notarized statement of the facts concerning the loss, and if the City Treasurer is satisfied that the facts justify the issuing of a replacement taxicab driver's license identification card, he or she shall issue such duplicate license identification card upon payment of a fee of ten dollars. Such duplicate card shall be plainly marked "duplicate," and the number of the original taxicab driver's license identification card shall be furnished to the police department, as well as the number of the duplicate.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 28, 5-22-2012)

Sec. 3.84.260. Taxicab driver's license display—Maintenance.

The driver's license identification card shall be conspicuously displayed in such a manner that the entire card is visible from the rear seat of the taxicab which the driver is operating, and the only driver's license identification card displayed shall be the one belonging to the driver who is on duty at that time. The card shall be laminated with transparent material, so that the same shall be clearly discernible to, and can be read by, the passenger in the rear seat. No driver shall operate a taxicab unless he shall have his driver identification card so displayed. The driver shall be responsible for keeping the card in a good condition and it shall be unlawful to have a torn or illegible card.
(Ord. No. 38-870 (part))

Sec. 3.84.270. Taxicab driver's license—Nontransferable.

No driver's license identification card issued under the provisions of this chapter shall be transferable.
(Ord. No. 38-870 (part))

Sec. 3.84.280. Reserved.

Editor's note—Ord. No. 49-278, § 49, adopted May 22, 2012, repealed § 3.84.280 in its entirety. Formerly said section pertained to Taxicab driver license—Convictions of certain crimes to bar issuance and derived from Ord. No. 39-073.

Sec. 3.84.290. Taxicab driver's license—False statement or misrepresentation by applicant.

Any false statement or misrepresentation of any material fact made by an applicant for the purpose of securing a taxicab driver's license or any renewal thereof shall be deemed good and sufficient cause for refusal to grant or if granted for revocation of such license.
(Ord. No. 38-870 (part))

Sec. 3.84.300. Taxicab driver's license—Expiration and renewal—Fees.

All taxicab driver's licenses shall expire twelve months from the date of issuance. For the original or renewal application and issuance of a license, a fee of fifteen dollars shall be paid by the applicant to the City Treasurer. Upon the expiration of the license, the driver shall be required to obtain a new license upon the payment to the City Trea-

surer of a renewal fee of fifteen dollars. No refund shall be made for any reason whatsoever and no license shall be prorated.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 29, 5-22-2012)

Sec. 3.84.310. Reserved.

Editor's note—Ord. No. 49-278, § 49, adopted May 22, 2012, repealed § 3.84.310 in its entirety. Formerly said section pertained to taxicab driver's license fee and derived from Ord. No. 38-870(part).

Sec. 3.84.320. Taxicab driver conduct and standards.

(a) No taxicab driver shall, nor shall any taxicab company licensee knowingly or negligently allow a taxicab driver to:

1. Permit another person to use his taxicab driver's license;
2. Operate any vehicle while under the influence of alcohol or drugs; or in a careless or reckless manner or in a manner contrary to the laws of the city or the state;
3. Use a taxicab vehicle in the commission of any crime;
4. Use profane or obscene language while operating a taxicab;
5. Smoke or chew tobacco while inside the taxi;
6. Charge a fare higher than that authorized by this chapter or defraud passenger in any way;
7. Be discourteous to a passenger or fail to accede to a passenger's reasonable requests;
8. Drive a passenger to his destination by any other than the most direct route, unless requested to do so by the passenger, or allowed to because of the type of service involved;
9. Refuse or neglect to carry any orderly person anywhere in the city, unless previously engaged or unable to do so;
10. Solicit business in any way other than in a normal tone of voice while seated in or standing adjacent to a taxicab;
11. Work any excessive length of time so as to impair the safe operation of a vehicle.
12. Solicit business for any hotel, or to attempt to divert patronage from one hotel to another.
13. Sell intoxicating liquor, drugs or solicit or participate in any immoral or illegal act or use the vehicle for any purpose other than the transporting of passengers, messages or packages.
14. Sleep in their vehicles, or play loud music while their vehicle is occupying a taxicab stand or zone.
15. Permit unauthorized nonpaying passengers to ride in their taxicab.
16. Refuse when requested or required, to assist a passenger to enter the taxicab and to load and unload all luggage, except that a taxicab driver shall not be required to lift a passenger or items weighing more than fifty (50) pounds.
17. Fail to operate his or her taxicab in accordance with the laws of the State of Kansas and the City of Wichita, and without due regard for the safety convenience and comfort of passengers and the general public.
18. Fail to maintain their personal appearance by being neat and clean in dress and person.
19. Fail to keep clothing in good repair, free of rips, tears and stains.
20. Fail to wear foot wear at all times.
21. The following articles of clothing, when worn as outer garments are prohibited:

    Underwear, tank tops, swimwear, body shirts, trunks, or similar attire.
22. Fail to, prior to the beginning of each shift and at the end of each shift, inspect the taxicab to make sure that all equipment on the vehicle is operating properly and that there is no major body damage to the

cab. All equipment defects or body damage shall immediately be reported to the owner and taxicab company.

23. Operate any taxicab which is unsafe or which has major body damage.

24. Solicit for sale any product or service other than ground transportation services as expressly authorized pursuant to this code.

25. Operate any taxicab which is not in a clean and/or sanitary condition.

26. Leave the scene of an accident.

27. Fail to make a full report of an accident to a law enforcement officer.

28. Permit any person to use his or her taxicab driver's license.

29. Refuse to serve a person with a disability who can otherwise use a taxicab;

30. Charge higher fares or fees for carrying individuals with disabilities and their equipment than are charged to other persons;

31. Refuse to provide assistance with the stowing of mobility devices (wheelchairs, walkers, etc.);

32. Refuse to allow service animals to ride with passengers with disabilities.

(b) Taxicab driver licensees shall report to the taxicab enforcement officer within two business days any arrest or conviction for any felony, any crime for which the individual is required to register as a sex offender, or any state law or a traffic ordinance of any city involving leaving the scene of a motor vehicle accident or driving under the influence of alcohol or drugs.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 30, 5-22-2012)

Sec. 3.84.323. Receipts for fares.

Every driver of a taxicab, when requested by a .paying passenger, shall give a receipt showing the name of the taxi company, the permit number, the date and the amount of the fare. A sign shall, at all times, be displayed in the taxicab in full view of any passenger, advising them of the availability of a receipt.
(Ord. No. 49-278, § 31, 5-22-2012)

Sec. 3.84.330. Taxicab driver's license—Grounds for suspension or revocation.

The taxicab driver's license provided for in this chapter may be suspended or revoked as provided for in Section 3.84.110, for any reason for which the original license could be denied or for violation of any other applicable section of this code. In addition to the provisions of this section, the Director of Airports in accordance with Airport Standard Operating Procedures and policies for commercial ground transportation services may suspend or revoke operating permits issued for the operation of taxicabs while on Airport property.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 32, 5-22-2012)

Sec. 3.84.340. Taxicab driver's license to be surrendered upon suspension or revocation.

(a) Whenever a taxicab driver's license is suspended or revoked, the taxicab driver shall surrender his/her taxicab driver's license identification card to the Taxicab Enforcement Officer.

(b) In case of the revocation of any license, no new license shall be issued to such licensee for a period of two years from the date of the revocation.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 33, 5-22-2012)

Sec. 3.84.350. Reserved.

Editor's note—Ord. No. 49-278, § 49, adopted May 22, 2012, repealed § 3.84.350 in its entirety. Formerly said section pertained to company operating permit revocation or suspension and derived from Ord. No. 38-870(part).

Sec. 3.84.360. Forms of service.

Under the conditions and requirements specified in this chapter, any person licensed as a

taxicab company may utilize any or all vehicles licensed as a taxicab for the provision of any of the following types of service:

1. Exclusive/group ride;
2. Shared ride;
3. Fixed route;
4. Fixed schedule;
5. Package delivery;
6. Emergency vehicle starting;
7. Vehicle unlocking service;
8. Message Delivery.

The company licensee shall indicate, at the time of the license application, the type or types of service to be provided and rates charged for each service.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 34, 5-22-2012)

Sec. 3.84.370. Exclusive/group ride service.

Taxicabs employed in exclusive or group ride service shall use taximeters, as specified in this chapter, for the determination of fares. The fares to be charged for such services shall be those as allowed for in this chapter. No taxicab driver, once a passenger has occupied his taxicab, shall permit any other passenger to occupy or ride in the taxicab unless the passenger first employing the taxicab consents to the acceptance of the additional passenger. In time of emergency or during inclement weather, the company licensee may authorize taxicab drivers to group passengers without the consent of the first passenger if common origins and destinations are involved.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 35, 5-22-2012)

Sec. 3.84.380. Shared ride service.

Separately or in conjunction with exclusive ride service, taxicabs may be employed for shared ride service. If used for shared ride service, fares for shared service shall be as allowed in Section 3.84.450. When operating as a shared ride vehicle, nonexclusive use of a taxicab by two or more passengers may be provided and even if dissimilar origins and/or destinations are involved. However, in no case shall the passengers presently utilizing a shared ride vehicle be subjected to unreasonable route deviations or delays in order to service additional passengers. In all cases, the fare charged any passenger shall be based on the minimum number of zones that would be involved in determining a shared ride fare as specified in Section 3.84.450.

A vehicle used solely for shared ride service does not need to be equipped with a taximeter. On the sides and rear of such a vehicle, in letters at least two inches high it shall be indicated that the vehicle only provides shared ride service.

If a vehicle is to be employed as both an exclusive or shared ride vehicle, it shall be equipped with a taximeter as required by Section 3.84.370. It shall be indicated on the sides and rear of the vehicle, in letters at least two inches high, that both exclusive or shared ride service is available. The driver of such a vehicle shall also verbally inform all passengers of the two forms of service available.

Any vehicle offering shared ride service shall also post inside the vehicle, in a conspicuous location, and in an easily readable format, a map of the zones employed for determining fares and a table showing the fares to be charged for travel between any pair of zones.
(Ord. No. 38-870 (part))

Sec. 3.84.390. Fixed route and fixed schedule service.

The taxicab company licensee may designate specific vehicles for use in fixed route or fixed schedule forms of service. A licensee who wishes to provide fixed route or fixed schedule service shall:

1. Indicate, at the time of the company license application, the intention to provide such service(s), or may at any time during the period covered by the license, apply to the Taxicab Enforcement Officer for authorization to provide such service;
2. Indicate in the application the precise route or time schedule to be followed and the days and hours of operation;

3. If approved, display on the sides of the vehicle, for fixed route services, a representation of the route in letters and graphics large enough to be easily read by potential customers. For a fixed schedule service, the primary locations to be served at fixed times shall be indicated on the sides of the vehicles in letters or graphics large enough to be easily read by potential customers;

4. Apply in writing to the Taxicab Enforcement Officer for approval to alter any fixed route or fixed schedule service;

5. Adhere to the fare requirements specified in this chapter;

6. Not have a fixed route or fixed schedule service approved which is found to be substantially similar to an existing City of Wichita Transit Service bus route or service. The City of Wichita Transit Service shall have the right to make this determination;

7. If approved, not operate vehicles designated for fixed route or fixed schedule service in any other form of service allowed by this chapter.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 36, 5-22-2012)

Sec. 3.84.400. Package delivery and emergency vehicle starting service.

Vehicles designated for exclusive and/or shared ride services may also be employed for package delivery services and emergency vehicle starting services. The fares to be charged for such services shall be those as specified in Section 3.84.470. In no event shall a vehicle already employed by a passenger be diverted from the completion of that trip in order to provide package delivery or emergency vehicle starting, services unless a medical emergency is indicated.

(Ord. No. 38-870 (part))

Sec. 3.84.410. Operational standards or requirements.

If not in conflict with other requirements of this chapter, or unless not applicable because of the nature of a particular form of service, the following standards or requirements shall apply to all of the forms of service identified in this chapter.

1. No taxicab licensed under this chapter shall at any time carry passengers in excess of its licensed capacity. Further, no taxicab shall be used for any personal or private purposes at any time.

2. Any taxicab may pick up passengers upon signal at any time within the corporate limits of the city, provided no traffic or safety hazard would be created in doing so. In no event, however, may a taxicab driver solicit passengers at a location designated for the loading and unloading of City of Wichita Transit Services bus passengers.

3. Provided that no traffic laws and no traffic or safety hazards are created, taxicab drivers may solicit passengers through cruising or legal parking of a vehicle upon the public streets of the city. In no event shall a driver leave a vehicle in order to solicit a passenger. A specific on-street location may be designated as a 'taxi stand' upon approval by the city traffic engineer.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 37, 5-22-2012)

Sec. 3.84.420. Revocation or suspension of operating permit, driver's license or vehicle license for violations involving service.

(a) If it is found by the Taxicab Enforcement Officer that the preceding provisions involving the forms of service allowed by this chapter are being violated, he or she may revoke or suspend, as it deems appropriate or as specified in any sections of this chapter, the taxicab company license and/or taxicab vehicle permit and/or taxicab driver's license of an offending party.

(b) In case of the revocation of any license, no new license shall be issued to such licensee for a period of two years from the date of the revocation.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 38, 5-22-2012)

Sec. 3.84.430. Fares—General maximums and filing rates.

The rate of fare to be charged by every person operating, controlling or driving a licensed taxicab, within the limits of the city, shall be set in accordance with the type of service that the taxicab is providing and the conditions specified in this chapter.

For each form of service specified in this chapter, City Council, shall establish by resolution a maximum rate of fare. A taxicab company licensee may petition the Taxicab Enforcement Officer, who will notify the City Council, at any time of a requested change in a maximum rate of fare.

The actual rate of fare to be charged may be less than or equal to the maximum rate of fare. Each taxicab company licensee shall file with the Taxicab Enforcement Officer the actual rates of fare that shall be charged for all services being provided by the company licensee. Except as provided in Section 3.84.480, no fare other than those on file with the Taxicab Enforcement Officer may be charged for a service. At all times, the fares posted in a vehicle, on the vehicle, or set on a taximeter shall correspond to those on file with the Taxicab Enforcement Officer.

A taxicab company licensee shall file with the Taxicab Enforcement Officer a notice of the intent to change any rate of fare and provided that the following conditions are met, such fares shall be allowed:

1. The new rate will not exceed the maximum rate of fare established by the City Council;
2. The change in the rate of fare will take effect on the first day of January, April, July or October;
3. No driver will be allowed to charge the new rate of fare or operate a vehicle until the new rates are posted in and on the vehicle and in the event the rate involves use of a taximeter, the taximeter must have been reset to the new rate of fare and inspected and sealed by the Director of Public Works and Utilities.

Notwithstanding the provisions of this section, a taxicab company may establish a minimum rate of ten dollars ($10.00) for transportation from the Wichita Mid-Continent Airport.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 39, 5-22-2012)

Sec. 3.84.440. Exclusive/group service rates of fare.

In addition to the preceding requirements, taxicabs and drivers providing exclusive, group ride, and shared ride service shall adhere to the following requirements for rates of fare:

1. The rates used by a company licensee shall be based upon mileage and the same fractions of a mile as are used in setting the maximum rate specified in Section 3.84.430;
2. When employed by any individual or group for exclusive, group or shared ride service, the rates of fare shall be calculated with a taximeter as is specified in Section 3.84.370. However, in those situations indicated below in which the taximeter rate is not applicable, the driver shall inform all passengers of how the fares are to be determined;
3. For an individual, the fare for a trip shall be as indicated on the taximeter;
4. For a trip involving more than one passenger, and provided that the passengers are traveling together, the fare shall be the total of the individual fare plus a surcharge for each additional passenger. In the event that the passengers have dissimilar destinations, the taxicab driver may request prepayment of an estimated fare, with the last passenger exiting the taxicab responsible for the actual fare determined on the taximeter. Any refund or additional charge shall be made to the last passenger;
5. For a trip involving more than one passenger and who are not traveling together, the following conditions shall apply for determining the fare(s):
   (a) For passengers having the same origin and destination, or for which no

route deviations are involved to serve different destinations, each passenger may be charged the fare determined by the taximeter;

(b) In all other situations, the fare shall be calculated by the dispatcher determining the shortest distance that would be involved for each passenger's trip on an individual basis and applying the appropriate mileage rates to that distance regardless of the actual mileage involved;

6. Waiting time shall mean that time in which a taxicab is waiting commencing four minutes after it arrives at the place of call or that time which a taxicab, at the direction of the passenger, is waiting or not in motion. A fare for waiting time may be charged and shall be in accordance with the requirements specified in Section 3.84.430;

7. The rates of fare being used shall be painted, in letters at least two inches high, on both sides of the taxicab;

8. No extra charge may be made for transporting any items belonging to a passenger, including personal luggage and aids necessary for transit by disabled persons, if those items will fit within the interior of the taxicab including the trunk, each item can be carried by a single person and all such items can be carried by the passenger or passengers and driver in a single trip to the taxicab.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 40, 5-22-2012)

Sec. 3.84.450. Shared ride service rates of fare.

In addition to the preceding requirements, taxicabs and drivers providing shared ride service shall adhere to the following requirements for rates of fare:

1. In all situations involving trips by more than one passenger, the rates of fare for each passenger shall be determined individually;

2. The rates of fare being used shall be painted, in letters at least two inches high, on both sides of the taxicab;

3. No extra charge is to be made for transporting any items belonging to a passenger, including personal luggage and aids necessary for travel by disabled persons, if those items will fit within the interior of the taxicab including the trunk, each item can be carried by a single person and all such items can be carried by the passenger or passengers and driver in a single trip to the taxicab.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 41, 5-22-2012)

Sec. 3.84.460. Fixed route and fixed schedule service rates of fare.

In addition to the preceding requirements, taxicabs and drivers providing fixed routes and/or fixed schedule service shall adhere to the following requirements for rates of fare:

1. The rate of fare shall be a flat rate, per capita based charge;

2. The rates of fare being used shall be painted, in letters at least two inches high, on both sides of the taxicab;

3. No extra charge is to be made for personal luggage or packages that a passenger can reasonably carry into a vehicle or for aids necessary for travel by disabled persons. In the event that a passenger's additional luggage or packages takes up the space that could be occupied by another passenger, an additional fare equal to the charge that would be made to a passenger may be made.

(Ord. No. 38-870 (part))

Sec. 3.84.470. Package delivery and emergency vehicle starting services, rates of fare.

In addition to the preceding requirements, taxicabs and drivers providing package delivery and/or emergency vehicle starting services shall adhere to the following requirements for rates of fare:

1. For service in picking up and delivering packages or parcels, the ordinary rates

provided by Section 3.84.440 or 3.84.450 shall be charged. For taxicab companies providing both exclusive and shared services in the same vehicles, potential customers shall be informed of the options;

2. For exclusive ride vehicles, waiting time shall be calculated as provided for in Section 3.84.440. For the delivery of multiple packages to different locations, waiting time may be charged for each stop;

3. For shared ride vehicles, a flat rate surcharge may be added for each stop made to deliver a package;

4. For emergency vehicle starting services a flat rate charge shall be employed as is provided by Section 3.84.430.

(Ord. No. 38-870 (part))

Sec. 3.84.480. Special fares.

In addition to the rates published under Sections 3.84.440 through 3.84.470, the holder of a taxicab company license may also file discount fares for groups or situations such as, but not limited to: children, senior citizens, frequent users, off-peak use periods and provided that:

1. The Taxicab Enforcement Officer is notified in writing of such rates;

2. The discount rates are less than the approved maximum and also less than the rate actually filed by the company licensee for the type of service involved;

3. The discount rates are made available to all qualified parties without prejudice.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 42, 5-22-2012)

Sec. 3.84.490. Fares—Additional requirements and conditions.

The following conditions relating to rates of fare shall also be adhered to:

1. Every taxicab shall have the rates of fare applicable to the types of service available conspicuously posted on a printed notice and in a form approved by the Taxicab Enforcement Officer. These rates shall be the same as those on file with the Taxicab Enforcement Officer.

2. For exclusive, group and shared ride service upon demand, the owner or driver of a taxicab shall give to each person or passenger employing such vehicle a receipt.

3. Every driver of a taxicab shall have the right to demand payment of the regular fare, in advance, and may refuse employment unless so prepaid.

4. It is unlawful for any person engaging a taxicab to refuse to pay any fare lawfully registered in a taximeter or posted in the vehicle. It is unlawful for any person to hire any taxicab with intent to defraud the person from whom it is hired or engaged of the value of taxicab service.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 43, 5-22-2012)

Sec. 3.84.500. Revocation or suspension of operating permit, driver's license or vehicle license for violations involving fares.

If it is found by the Taxicab Enforcement Officer that the preceding provisions involving rates of fare allowed by this chapter are being violated, it may revoke or suspend, specified in Section 3.84.110, the taxicab company license and/or taxicab vehicle permit and/or taxicab driver's license of an offending party.

(Ord. No. 38-870 (part); Ord. No. 49-278, § 44, 5-22-2012)

Sec. 3.84.510. Service to public owned airports.

Any taxicab vehicle licensed under the authority of this chapter may provide service to and from Wichita Mid-Continent and Colonel James Jabara Airports.

(Ord. No. 38-870 (part))

Sec. 3.84.520. Special airport operating requirements.

In addition to the requirements of this code, the Director of Airports, in accordance with Air-

port Standard Operating Procedures and policies may impose additional rules and regulations for commercial ground transportation services on Airport Property.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 45, 5-22-2012)

Sec. 3.84.530. Fees for operating at airports.

The Director of Airports may assess commercial ground transportation operator fees for operating to or from Airport property.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 46, 5-22-2012)

Sec. 3.84.540. Disposition of articles left in taxicabs.

Whenever any package, article, baggage or goods of any kind shall be left in any taxicab, the driver of the taxicab, upon discovery, shall notify the police department of the city as soon as possible.
(Ord. No. 38-870 (part))

Sec. 3.84.550. Taxicab checkout, verification of driver's license.

Every taxicab driver shall display and exhibit his license to the taxicab operator's supervisor or representative on duty at the time to the commencement of the driver's tour of duty before such driver is permitted to operate a taxicab on any tour of duty. After a taxicab is assigned to a driver, he shall sign a checkout sheet giving his name, address and phone number and the number of the cab assigned to him.
(Ord. No. 38-870 (part))

Sec. 3.84.560. Maintenance of dispatch records.

The holder of a company operating permit shall maintain a company's daily dispatch records for a period of at least two years. These dispatch records shall be available for inspection at all times by the designated supervisory agency or law enforcement agencies.
(Ord. No. 38-870 (part))

Sec. 3.84.570. Appeal from revocation, suspension or orders authorized under other provisions of this chapter.

(a) Any applicant or licensee aggrieved by the denial, suspension, or revocation of a license or permit issued pursuant to the terms of this chapter, may file with the City Clerk a written notice of appeal to the City Council within ten (10) business days of the decision by the Taxicab Enforcement Officer or his/her designee. The Notice of Appeal shall specify:

(1) the name and address of the appellant;

(2) the date of application;

(3) the date of the denial, suspension or revocation of the license, permit or application;

(4) the factual basis for the appeal.

(b) Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before the City Council, no later than thirty days from the date of the filing of the Notice of Appeal with the City Clerk. Any appeal shall stay the suspension or revocation of the license until the matter is heard by the City Council.

(c) The City Council may approve the denial, suspension or revocation, overrule the denial, suspension or revocation or modify the decision of the Taxi Enforcement Officer.

(d) The Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation, modification or suspension of the license by the City Council.
(Ord. No. 38-870 (part); Ord. No. 49-278, § 47, 5-22-2012)

Sec. 3.84.580. Penalties.

Any person violating any provision of this chapter shall be punished by a fine not to exceed five hundred dollars ($500.00).
(Ord. No. 38-870 (part); Ord. No. 49-278, § 48, 5-22-2012)

CHAPTER 3.85. CHARTER LIMOUSINE SERVICE

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Sec. 3.85.010. Definitions.

The following words and phrases, when used in this chapter, have the meaning respectively ascribed to them in this section:

(1) "Charter limousine" means any specially constructed luxury motor vehicle of four or six doors, which may be equipped with jump seats, with a nine person maximum capacity, and which with chauffeur provided is hired out for exclusive use to persons, on an hourly basis, by a licensed charter limousine service. This term shall also include the following four-door luxury sedans which when less than five years of age may be used in the same manner and for the same purpose: Cadillac, Lincoln Town Car, Chrysler Imperial, Mercedes-Benz, and Rolls Royce.

(2) "Charter limousine service" means any person, company or corporation licensed under the provisions of this chapter who provides such service, and who holds the legal title, or who has the legal right of possession, or the legal right of control of the vehicle or vehicles utilized in providing the service.

(3) "Designated supervisory agency" means the metropolitan transit authority.

(4) "Supervisory official" means the authorized representative of the metropolitan transit authority, charged with the responsibility of insuring compliance with the provisions of this chapter.

(5) "Governing body" means the city council of the city.

(6) "License collector" means the license section of the city treasurer division.

(7) "Street" means any street, alley, avenue, lane, public place, square or highway within the corporate limits of the city.

(Ord. No. 42-160 § 1)

Sec. 3.85.020. Door handles—Required.

Every charter limousine shall have a knob or handle upon the side of the doors and windows thereof by which the doors and windows may be easily opened from the inside as well as from the outside.

(Ord. No. 35-818 (part))

Sec. 3.85.030. Disposition of articles left in charter limousines.

Whenever any package, article, baggage or goods of any kind is left in a charter limousine, the driver of the same, upon discovery, shall make delivery thereof immediately to the police department of the city.

(Ord. No. 35-818 (part))

Sec. 3.85.040. Restrictions as to carrying passengers.

No charter limousine service licensed under this chapter shall at any time allow its vehicles to carry passengers in excess of such vehicle's designed and constructed passenger capacity, and in no instance more than two passengers in the front seat with the driver of the vehicle.

(Ord. No. 35-818 (part))

Sec. 3.85.050. Fixed routes and regular schedules prohibited.

No person shall operate a charter limousine either over a fixed or regular route or on a regular time schedule for the purpose of picking up passengers: provided, however, that nothing in this section shall be construed to prevent the driver of a chartered limousine from traveling the same route in the conduct of bona fide charter limousine service.

(Ord. No. 35-818 (part))

Sec. 3.85.060. Receipt for charter fee to be given upon demand.

Upon demand, the driver of a charter limousine or the limousine service representative shall give to the person who hired such vehicle a receipt showing the date and number of hours of such charter, the address from which the passenger started, the point of destination and stops in the route, and the amount paid for the charter.

(Ord. No. 35-818 (part))

Sec. 3.85.070. Checkout sheet and daily charter log—Valid Kansas driver's license required.

(a) Every charter limousine driver shall show his/her valid Kansas state driver's license to the service supervisor or representative on duty at the time of a charter assignment before such driver is permitted to operate the charter limousine on the streets of the city.

(b) After the assignment is made, the driver shall complete and sign a checkout sheet which shall include but not be limited to the following information: driver's name, address, phone number; state driver's license number; and the state license plate of the vehicle assigned.

(c) Every charter limousine driver shall maintain a daily charter-log where the following information shall be recorded for each charter: date, time, origin and destination; number of passengers; and amount charged.

(d) The checkout sheet and the charter-lot required under this section shall be provided by the limousine service operator or company or corporation holding the license required under the provisions of this chapter after first securing the approval of such forms from the governing body of the city or its duly designated supervisory agency.

(e) All such completed forms shall be retained by the charter limousine service licensed under this chapter for at least the calendar year next preceding the current calendar year and shall be available for inspection at all times by the designated agency of the governing body of the city.

(f) Failure to comply with the provisions of this section shall constitute ground for suspension of the charter limousine service license, in accordance with the provisions of this chapter, for a period of time of not more than sixty days.
(Ord. No. 35-818 (part))

Sec. 3.85.080. Payment of charter fee in advance.

The operator of the charter limousine service shall have the right to demand payment of the charter fee in advance, and may refuse employment unless so prepaid.
(Ord. No. 35-818 (part))

Sec. 3.85.090. No orderly person to be refused service—Exception.

No charter limousine service shall refuse to be engaged by any orderly person anywhere in the city, unless previously engaged or unable to do so.
(Ord. No. 35-818 (part))

Sec. 3.85.100. Refusal to pay charter fee.

It is unlawful for a person engaging a charter limousine to refuse to pay the lawfully established and agreed upon charter fee. It is unlawful for any person to engage the service of a charter limousine with intent to defraud the person or company or corporation from whom or which it is engaged of the monetary value of such service.
(Ord. No. 35-818 (part))

Sec. 3.85.110. Charter duration and fees—Minimums.

The minimum duration of charter and minimum charter fees to be charged by every person operating or controlling any licensed charter limousine service within the limits of the city or outside the city, and within such distances as are established and fixed by the statute of the state shall be as follows:

(1) For a specially constructed luxury vehicle, a minimum of thirty-five dollars per chartered hour or fraction thereof;

(2) For a luxury sedan, a minimum of twenty-five dollars per chartered hour of fraction thereof;

(3) A minimum of two hours per charter;

(4) Any other specific minimum established by the governing body.

(Ord. No. 42-160 § 2)

Sec. 3.85.120. Collecting charter fees different from those established by chapter.

It is unlawful for any operator of a charter limousine service to charge and collect a different minimum than those provided by Section 3.85.110 of the city code or those which may be established at any time in the future by the governing body.
(Ord. No. 35-818 (part))

Sec. 3.85.130. Shortest convenient route to be taken—Exception.

It is unlawful for any operator or driver of a charter limousine to transport any passenger to the destination given by such passenger by any but the shortest convenient route, unless otherwise directed by the passenger, in which case the directions of the passenger shall be followed.
(Ord. No. 35-818 (part))

Sec. 3.85.140. Limousines to be kept clean, sanitary and in good repair.

(a) Every charter limousine shall at all times be kept in a clean and sanitary condition and shall be well painted. It shall be properly heated in winter; and it shall be maintained in good repair and safe operating condition, with sufficient nonglare headlights and proper rear lights. To insure compliance with the foregoing provisions, the charter limousine operator shall make his vehicles available for inspection by the designated agency of the governing body. Final authority for determining the acceptability and service-

ability of a charter limousine in compliance with the provisions of this chapter, including the frequency of inspection of vehicles to be used as charter limousines, shall rest with the designated agency of the governing body.

(b) No vehicle shall be used as a charter limousine until the holder of the license for the limousine service has first complied with the provisions of this chapter and such vehicle has been inspected and approved for service in accordance with the provisions of subsection (a) of this section.

(c) The condition and data pertaining to each vehicle inspected shall be recorded on a charter limousine inspection check-sheet, the form of which shall first be approved by the designated supervisory agency. The inspection check-sheet record shall be retained by the designated supervisory agency, and a copy thereof shall be provided to the charter limousine operator or company holding the license for the service. Such check-sheet reports or records of inspection shall be available at all times for review by the governing body of the city or its duly designated supervisory agency.

(d) If it is determined, after a proper inspection, that a charter limousine fails to comply with the provisions of subsections (a) through (c) of this section, the designated supervisory agency shall have the authority to direct such vehicle out of service until the improper conditions and appearance of the vehicle have been corrected and the vehicle has been reinspected and approved by the supervisory agency.

(e) Such inspections and reinspections shall be performed as frequently as the designated supervisory agency may deem necessary to assure compliance with the provisions of this section and to maintain the safety and appearance of the vehicles utilized by the charter limousine service.
(Ord. No. 35-818 (part))

Sec. 3.85.150. Safety seat belts—Required.

All charter limousine services licensed under the provisions of this chapter shall be required to equip their vehicles with three sets of safety seat belts in the back seat and three sets of safety seat belts in the front seat. The safety seat belts shall at all times be maintained in an orderly manner and neatly displayed in order that passengers can conveniently see and use them.
(Ord. No. 35-818 (part))

Sec. 3.85.160. Construction of limousines.

Every vehicle used and operated on the streets of the city as a charter limousine must be a specially factory-constructed luxury motor vehicle made to accommodate a maximum of nine persons including the driver. This type of vehicle shall be equipped with no fewer than four nor more than six doors opening directly into the seats to be used by the occupants, and each of which shall have a knob or handle on the inside of the compartment in which occupants are carried by which such door or doors are closed and may be easily opened from the inside as well as from the outside.
(Ord. No. 35-818 (part))

Sec. 3.85.170. Standards of service.

(a) Each holder of a certificate of public convenience and necessity issued under the provisions of this chapter shall maintain a central place of business and keep the same open at the normal and regular hours peculiar to the charter limousine industry for the purpose of receiving calls and dispatching charter limousines. Each holder shall answer for calls for service inside the corporate limits of the city as soon as reasonably possible, and if the requested service cannot be rendered within a reasonable time, the prospective passenger shall be advised as to the reason for the delay and shall be notified as to how much time will elapse before the requested service will be provided.

(b) Each charter limousine service licensed under this chapter shall have a supervisor on duty and in charge of the charter limousine service operation. The names of such supervisors and the scheduled hours of their tours of duty shall be submitted every three months to the designated supervisory agency by the operator of the charter limousine service.

(c) The company's supervisor shall use due diligence in supervising the service's activities to insure full compliance with the provisions of this

chapter and to maintain reasonable standards of service to the public. They shall maintain the required written records of their supervisory activities, including all complaints relating to service and charges, and shall reflect the action taken by the supervisor on such complaints.

(d) The required records shall be subject to inspection by the governing body of the city or its duly designated supervisory agency at any time.

(e) Supervisors and operators of the charter limousine service shall cooperate at all times with the supervisory official charged with the responsibility of insuring the maintenance of a high level of charter limousine service for the public.

(f) If it should be determined by the designated supervisory agency that any holder of a certificate of public convenience and necessity is not providing charter limousine service in accordance with the standards and requirements set forth in this chapter, notice shall be served upon such holder as to the nature of such deficiency of service, and such holder shall be allowed thirty days from the date of such notice to comply with the standards of service and requirements. If, upon the expiration of such thirty days, the holder has not remedied the deficiency and continues not to comply with the standards and requirements, then the designated supervisory agency may suspend or revoke any certificate of convenience and necessity and may recommend to the board of commissioners of the city that the board suspend or revoke any license issued to such holder under the provisions of this chapter.
(Ord. No. 36-326 (part))

Sec. 3.85.180. Observance of traffic regulations.

Drivers of charter limousines shall observe all traffic rules and regulations, and in case of parades, funeral processions and public occasions, shall obey such special instructions as may be given by the police department.
(Ord. No. 35-818 (part))

Sec. 3.85.190. License—Required.

(a) No person, whether acting as owner, principal, agent, employee, lessee or licensee shall operate or permit to be operated upon the streets of the city any charter limousine without first having procured from the city council of the city the license therefor as provided in Sections 3.85.200 through 3.85.240 and displaying thereon a decal to be issued by the designated supervisory agency showing that the vehicle is licensed in accordance with this chapter. Such license shall permit the hourly chartering to an individual or individuals of a special type luxury limousine not ordinarily or regularly used in connection with a taxicab-type operation.

(b) Before such license is granted or issued, an application shall be filed with the designated supervisory agency.
(Ord. No. 41-639 § 1)

Sec. 3.85.200. License—Contents of application.

(a) Any person, whether acting as owner, principal, agent, employee, lessee or licensee, in order to secure a license as required by this chapter for the operation of a charter limousine service and before any such license shall be granted or issued, shall file with the designated supervisory agency an application for such license on such form and containing such information as the designated supervisory agency may require including, but not limited to the following:

(1) The full name and address of the owner of the vehicle or vehicles to be utilized by the service;

(2) The trade name under which the charter limousine service shall be operated; the names and addresses of the owners of any capital stock thereof, or partners;

(3) The general territory covered by the chartered limousines in their operation;

(4) The maximum number of passengers the applicant proposes to carry per vehicle;

(5) The principal place of business, telephone number and address;

(6) A proper showing of convenience and necessity;

(7) A schedule of proposed rates to be charged by the hour, day, week or month; provided, however, that no less than fifteen

dollars per chartered hour or portion thereof shall be charged, with a two hour minimum charge per charter.

(b) All applications for licenses to be issued under the provisions of this chapter shall be referred to the duly designated supervisory agency for its recommendation to the governing body as to the need and desirability of such service, and for such final action as the body may deem appropriate.

(c) Before the issuance of the license provided for in this section, the applicant, at the time of application, shall: pay to the designated supervisory agency the annual license fee required by Section 3.85.230 and submit proof of liability insurance coverage in compliance with Section 3.85.210.
(Ord. No. 36-326 (part))

Sec. 3.85.210. License—Liability insurance coverage.

(a) Before any license for a charter limousine service shall be issued under the provisions of this chapter or any other ordinance of the city providing for the issuance of charter limousine service licenses, the owner or operator thereof shall either:

(1) File with the city clerk, approved as to form and endorsement by the city attorney, an insurance policy issued either by an insurance company licensed to do business in the state or by an insurance carrier which must qualify either by having and maintaining at all times total assets in excess of one million dollars, or which has been engaged as an insurance carrier in the insurance business continually for more than twenty-five years;

(A) The insurance policy must provide insurance coverage for each and every charter limousine owned, operated or leased by the grantee with a liability coverage of not less than one hundred thousand dollars for the injury to or death of one person in any one accident and, subject to said limit for one person, to a limit of not less than three hundred thousand dollars because of injury to or death of two or more persons in any one accident, and to a limit of not less than one hundred thousand dollars for property damages in any one accident. Such policy of insurance shall cover each and every charter limousine at all times while the service is licensed by the city and shall be effective whether the charter limousine at the time of an accident was being driven by any one of the following persons: the owner, his agent, employee, lessee or licensee,

(B) Such policy of insurance shall list each and every charter limousine to be insured under the policy and agree to pay any final judgment against the insured resulting from negligent or reckless operation of any and all such vehicles listed therein. Such policy shall further contain an agreement that, upon failure to pay any final judgment of personal injury, including death, rendered against the insured or against any owner, lessee or licensee, or operator of the charter limousine so insured, the judgment creditor may maintain an action directly against the insurer in any court of proper jurisdiction to compel payment. Nothing contained in the policy or any endorsement thereof for any violation on the part of the insured of the provisions of the policy shall release the company from liability under this section in payment of such judgment,

(C) Such policy shall be effective until at least twenty days after written notice of such cancellation has been filed with the city clerk of the city, and written acknowledgment of the service of such notice has been given to the company by the city clerk of the city,

(D) Such policy shall contain all of the conditions required by the laws of the state and by the insurance com-

missioner of the state and shall provide for actual notice to the city of any changes to be made in such policy; or

(2) File with the city clerk, approved as to form and endorsement by the city attorney, an insurance policy complying with all the requirements of subdivision (1) of this subsection, except that such policy may be of a blanket-type, so long as each and every vehicle operated by the licensee under this chapter is covered by said policy at all times such vehicle is operated to provide charter limousine services even though such vehicle may not be specifically described in such policy.

(b) The failure of any licensee to pay any judgment against him within ten days after such judgment becomes final and is not superseded by a proper bond on appeal shall be grounds for the cancellation of all licenses issued to any such licensee.

(c) The cancellation, withdrawal or other termination of any insurance policy, surety bond or other type of assuring agreement or failure to maintain the same in accordance with the provisions of this section shall automatically terminate any license issued for the charter limousine service covered by such insurance policy, surety bond or other type of assuring agreement.
(Ord. No. 35-818 (part))

Sec. 3.85.220. License—Hearing on and approval of application.

Upon the filing of the application and form of an assuring agreement or surety bond as described in Section 3.85.210, the designated supervisory agency shall set the time at which a public hearing will be held by that agency upon such application, with such notice thereof as that agency may deem advisable. Following the hearing, the designated supervisory agency may recommend to the board of city commissioners approval of such application and form of surety bond or other type of assuring agreement upon such conditions, terms and limitations as in their discretion may be deemed necessary or advisable for the protection of the public interest.
(Ord. No. 35-818 (part))

Sec. 3.85.230. License—Issuance—Temporary licenses—Fees.

(a) Upon approval by the city council of the application and form of surety bond or other type of assuring agreement, a license shall be issued to the owner or operator of the charter limousine service in the same manner and upon the same terms of this chapter; provided, however, nothing contained in this chapter shall prevent the city council of the city, upon due cause shown, from granting temporary licenses or special permits to operate charter limousines in the city for a limited period of time only at the recommendation of the designated supervisory agency, provided such temporary license or special permit may be revoked at any time by the council in its sole discretion.

(b) Before the issuance of the license provided for in this chapter, the applicant therefor shall pay to the designated supervisory agency an annual license fee in the sum of two hundred dollars, which will become due annually on the month and day in which the original application was approved by the governing body. In the event the license is denied, one hundred dollars of the application fee shad be nonrefundable. Upon proof satisfactory to the designated supervisory agency that the operating license of the charter limousine service has been lost by the operator, a duplicated license shall be issued upon the payment of a fee of five dollars.
(Ord. No. 41-639 § 2)

Sec. 3.85.240. Same—Nontransferable.

A license issued under the provisions of this chapter is not transferable under any conditions or circumstances.
(Ord. No. 35-818. (part))

Sec. 3.85.250. Certificate of public convenience and necessity—Required.

No person shall engage in the operation of a charter limousine or charter limousine service,

nor shall any license be granted or issued to operate such charter limousines within the corporate limits of the city unless the designated supervisory agency first finds that public convenience would be promoted and public necessity requires such charter limousine service under the terms and provisions of this chapter.
(Ord. No. 36-326 (part))

Sec. 3.85.260. Certificate of public convenience and necessity—Application.

(a) Any person not holding or securing a certificate of public convenience and necessity, or any person holding or securing such certificate who desires such certificate for additional charter limousines, shall first file an application as provided for in Section 3.85.200 with the designated supervisory agency and pay the license fee required by Section 3.85.230, and also deposit with the city clerk the insurance policy or application for authority to file another type of assuring agreement as required in this chapter.

(b) The application shall be submitted to the designated supervisory agency for the purpose of determining whether or not the public convenience and necessity requires the operation of such charter limousine service, or additional vehicles, as proposed by such applicant.
(Ord. No. 36-326 (part))

Sec. 3.85.270. Certificate of public convenience and necessity—Approval or disapproval.

(a) The designated supervisory agency shall fix a time and place for hearing on the application provided for in Section 3.85.260 which shall not be more than thirty days after such application has been properly referred to the supervisory agency. The supervisory agency shall then cause a notice to be served upon every charter limousine service operating charter limousines within the city of the date, time and place of such hearing.

(b) At such hearing, which may be adjourned from time to time, the supervisory agency may hear testimony upon and consider the following, among others:

(1) Whether or not public convenience will be promoted by such additional charter limousine service;

(2) Whether or not public necessity would require such additional charter limousine service;

(3) The effect of such additional charter limousine service on the business of existing agencies of public transport;

(4) The effect of traffic congestion and safety of the public streets;

(5) Whether the requirements of public convenience and necessity can be adequately met and complied with only by the issuance of additional certificates;

(6) Whether or not the applicant is in a position to financially render such services as will promote public convenience and necessity.

(c) If the supervisory agency finds that public convenience will be promoted by the additional charter limousine service, and that the public necessity requires such service, it shall grant a certificate of public convenience and necessity and recommend to the board of commissioners that a license be issued.

(d) If the supervisory agency finds that public convenience and necessity does not require the operation of additional charter limousines in the city, a certificate shall not be granted and the supervisory agency shall recommend to the board of commissioners that a license be denied and the applicant shall be entitled to have refunded the license fee deposited with the designated supervisory agency and the insurance policies deposited with the city clerk. Such denial may be appealed to the board of city commissioners.
(Ord. 36-326 (part))

Sec. 3.85.280. Certificate of public convenience and necessity—Entitles holder to license—Limited to five-year terms.

(a) The holder of a valid certificate of convenience and necessity is entitled to a license to operate the number of charter limousines provided for in such certificate so long as the certificate holder pays the license fee required by Section 3.85.230, provides and maintains the insurance policy required by this chapter and oth-

erwise complies with this chapter and all ordinances of the city relating to charter limousines. All regular certificates of convenience and necessity for the operation of a charter limousine business granted by the designated supervisory agency shall be issued for a period of time not to exceed five years from the date of the issuance of such certificate.

(b) Renewals of certificates may be granted by the designated supervisory agency upon the expiration of the five-year term upon proper application being filed by the holder in accordance with the terms and provisions of this chapter.
(Ord. No. 36-326 (part))

Sec. 3.85.290. Certificate of public convenience and necessity—Not transferable—Change in stock ownership or corporate structure of holder.

(a) The certificates of convenience and necessity heretofore and hereafter granted by the designated supervisory agency to operate a charter limousine service within the corporate limits of the city shall not be transferable.

(b) A change in the stock ownership of ten percent or more of the outstanding stock, or any change in the corporate structure of a corporation holding a certificate of convenience and necessity under this chapter, including a change effected by a merger, consolidation or reorganization, without first obtaining the approval of the designated supervisory agency to such change shall constitute grounds for the revocation or suspension of the certificate and any license held by such corporation as provided in this chapter.
(Ord. No. 36-326 (part))

Sec. 3.85.295. License fee—Routing.

All license fees paid by the applicant at time of application for a license under the provisions of this chapter shall be forwarded by the designated supervisory agency, upon approval of such application, to the license collector.
(Ord. No. 36-326 (part))

Sec. 3.85.300. Certificate of public convenience and necessity—Designated supervisory agency may reduce number of limousines operating thereunder.

The designated supervisory agency may, upon its own application or the application of other transportation system or charter limousine services operating within the corporate limits of the city, upon one week's notice to all persons interested, hear evidence to determine whether or not the charter limousines operating in the city are more than sufficient for the public convenience and necessity of the city, and if upon the hearing of such evidence the designated supervisory agency finds that there are more charter limousines operating in the corporate limits of the city than are necessary for public convenience and necessity, the designated supervisory agency shall have the power to reduce the number of charter limousines operating under any certificate.
(Ord. No. 36-326 (part))

Sec. 3.85.310. Certificate of public convenience and necessity—Factors to be considered in making determination.

In determining whether or not a certificate of public convenience and necessity shall be issued, the designated supervisory agency shall take into consideration the systems of transportation already operating, probable congestion of traffic with an additional system of transportation, the question of whether or not the existing systems of transportation are rendering the service required to meet the needs of the public and all other factors which are necessary to determine whether or not public convenience and necessity require the operation of additional charter limousine service within the corporate limits of the city.
(Ord. No. 36-326 (part))

Sec. 3.85.320. Revocation or suspension of license or certificate—Failure to comply with chapter.

(a) The designated supervisory agency, upon five days notice, may suspend or revoke any license or certificate of convenience and necessity

issued under the provisions of this chapter, if the licensee has failed or neglected to comply with any of the terms of this chapter.

(b) If the driver of a charter limousine is convicted in the police court of the city for driving a charter limousine while under the influence of intoxicating liquor or drugs of any kind, or if such driver is convicted of having liquor or drugs of any kind in his possession while operating a charter limousine:

(1) The license required by this chapter for the charter limousine service may be suspended by the designated supervisory agency for a period of not more than one year from the date of such conviction; and/or

(2) That particular vehicle may never again be authorized as a charter limousine within the limits of the city; and/or

(3) The convicted driver shall not be again authorized to drive a charter limousine within the limits of the city.

(c) The designated supervisory agency, upon careful and judicious study of the facts and circumstances leading to such conviction, shall immediately notify the operator of the charter limousine service, in writing, of any punitive decision.

(d) It shall be the responsibility of the operator of the charter limousine service to insure compliance with subdivisions (2) and (3) of subsection (b), and failure to do so may result in the permanent revocation of its license and certificate of convenience and necessity.
(Ord. No. 35-818 (part))

Sec. 3.85.330. Revocation or suspension of license or certificate—Complaints on violations—Intentional neglect or disregard of judgment.

(a) The designated supervisory agency shall notify, in writing, the holder of a license or certificate issued under the provisions of this chapter of complaints of violations of this chapter, which notice shall grant such holder five days to show cause why its license or certificate should not be suspended or revoked.

(b) The wilful action of any licensee to intentionally neglect or disregard, or his failure to pay, any judgment against him within ten days after such judgment becomes final, and is not superseded by a proper bond on appeal, shall be grounds for the revocation of any and all licenses and certificates issued to any such licensee.
(Ord. No. 35-818 (part))

Sec. 3.85.340. Revocation or suspension of license or certificate—Termination upon termination of insurance.

The cancellation, withdrawal or other termination of any insurance policy, surety bond or other type of assuring agreement, or failure to maintain the same in accordance with the provisions of this chapter, shall automatically terminate any license issued for the charter limousine service covered by such insurance policy, surety bond or other type of assuring agreement.
(Ord. No. 35-818 (part))

Sec. 3.85.350. Revocation or suspension of license or certificate—For charging unauthorized charter fees.

In case any charter limousine service or charter limousine driver either charges a charter fee which is less than, or which charters a limousine for less time than, the minimums authorized by Sections 3.85.110 and 3.85.200, or any other specific minimums established by the governing body, the designated supervisory agency shall suspend the license of the charter limousine service, as the circumstances may warrant, for a period of not less than ten nor more than thirty days.
(Ord. No. 36-326 (part))

Sec. 3.85.360. Driver's license—Required.

It is unlawful for any person to act as the driver of a charter limousine in the city unless such person has in his/her possession a current and valid state driver's license, and has complied with the requirements and provisions of Section 3.85.070. Drivers shall not be less than twenty-one years of age. Further, it is the responsibility of the charter limousine service to maintain a cur-

rent listing of the individuals utilized as drivers, and copy of such listing shall be provided to the designated supervisory agency.
(Ord. No. 35-818 (part))

Sec. 3.85.370. Driver's license—Authorized driver's listing and information to be given.

The driver's listing required by Section 3.85.360 shall contain such information as may be required by the designated supervisory agency, including the following:

(1) The complete name, date of birth, current address and phone number;

(2) The state driver's license number and its expiration date;

(3) If a driver's license has ever been revoked or suspended, and the date thereof;

(4) Arrest or conviction for traffic violations, misdemeanor, or felony; and, if any, giving particulars of each arrest or conviction in a separate communication.

(Ord. No. 35-818 (part))

Sec. 3.85.380. Driver's license—Conviction of certain crimes to bar drivers from operating limousines—Exceptions.

(a) No charter limousine service shall allow any person to drive a charter limousine within the city limits, if such person has been convicted under the laws of this state or any other state, or the ordinances of the city, of any of the following criminal offenses within a three-year period immediately preceding employment as a charter limousine driver:

(1) A felony;

(2) Any offense involving moral charges, as defined by Section 3.73.020;

(3) Hit and run;

(4) Illegal sale, possession, manufacture or transportation of intoxicating liquor;

(5) Any offense involving narcotics, barbiturates or amphetamines.

(b) If, at the discretion of the designated supervisory agency, and after careful consideration has been given to all the factors pertaining to and having led to the conviction, the supervisory agency believes that the individual is now a fit person to drive a charter limousine, authority may be granted to the charter limousine service to employ such individual.
(Ord. No. 35-818 (part))

Sec. 3.85.390. Driver's license—Grounds for suspension or revocation of authority to drive charter limousines.

The authority granted by a charter limousine service to an individual to drive a charter limousine, within the limits of the city, in accordance with the provisions of this chapter, may be suspended or revoked by the designated supervisory agency for any of the reasons outlined in Section 3.85.380 and, in addition, for any of the following:

(1) Upon conviction of violation of any federal, state or city law;

(2) For leaving the scene of an accident;

(3) For failure to make full report of an accident to the police department of the city;

(4) For permitting an unauthorized person to drive a charter limousine;

(5) Upon conviction of a third major traffic violation during a twelve-month period. A major traffic violation is speeding, reckless driving, nonobservance of lights or signs, making a turn where not permitted and driving on the wrong side of the street;

(6) In case any charter limousine driver either charges a charter fee which is less than, or which charters a limousine for less time than, the minimum authorized by Sections 3.85.110 and 3.85.200, the designated supervisory agency shall suspend or revoke the authority of such driver to drive a charter limousine, as the circumstances may warrant, for a period of not less than ten days;

(7) In case any charter limousine driver is convicted in the police court of the city for

driving a charter limousine while under the influence of intoxicating liquor or is convicted of having liquor in his possession while operating a charter limousine, the designated supervisory agency shall suspend or revoke the authority of such driver to drive a charter limousine, as the circumstances may warrant, for a period not to exceed one year from the date of such conviction;

(8) The designated supervisory agency shall suspend the authority of a charter limousine driver to drive such vehicle for a period of time not to exceed ninety days for the following reasons:

(A) Repeated convictions of traffic violations,

(B) Noncooperation with the authorized representative of the designated supervisory agency.

(Ord. No. 36-326, (part))

Sec. 3.85.400. Driver's license—Appeal from revocation, suspension or orders authorized under other provisions of chapter.

(a) An order of revocation or suspension or any order entered by an enforcement official under the provisions of this chapter, not otherwise provided for, shall be subject to appeal of the governing body of the city or its duly designated supervisory agency.

(b) Such appeal shall be in writing, setting forth with sufficient particularity the order or orders appealed from and the reason why such order or orders should be reviewed. An aggrieved party shall have the right to be heard and to present evidence at the hearing set for such purpose.

(Ord. No. 35-818 (part))

Sec. 3.85.410. Penalties.

(a) Any person owning, controlling or operating, or any driver or operator of a charter limousine or other vehicle not authorized or equipped in accordance with the provisions of this chapter, or of a charter limousine of which the authority to operate within the city has been revoked or suspended, who continues to operate charter limousines in the city shall be deemed guilty of a misdemeanor and upon conviction thereof, shall be punished by a fine not exceeding one thousand dollars.

(b) Any person violating any provision of this chapter for which no punishment is specifically provided shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of five hundred dollars.

(c) Each and every day of operation of a charter limousine service and/or of a charter limousine in violation of the provisions of this chapter shall constitute a separate offense and shall be punished as such.

(Ord. No. 41-639 § 3)

CHAPTER 3.88. RESERVED*

*__Editor's note—__Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed ch. 3.88, §§ 3.88.010—3.88.040, 3.88.045, 3.88.050—3.88.100, 3.88.105, 3.88.110, 3.88.115, 3.88.120—3.88.220, 3.88.225, and 3.88.230—3.88.280, which pertained to airport limousines, and derived from Ord. No. 15-042, §§ 1, 3—13; Ord. No. 22-740, § 22; Ord. No. 33-614; Ord. No. 34-106, §§ 1, 3, 5—13; Ord. No. 38-871; and Ord. No. 39-910, § 1.

CHAPTER 3.89. ICE CREAM STREET VENDORS

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Sec. 3.89.230. Time when sales unlawful.
Sec. 3.89.240. Penalty.
Sec. 3.89.250. Constitutionality.

Sec. 3.89.010. Ice cream street vendors—Compliance with chapter required.

It is unlawful for any person, firm, partnership or corporation to conduct, hold, carry on, pursue or operate a business of vending, huckstering, peddling or similar enterprise, for selling ice cream products of any kind upon or within any public right-of-way, public street, alley, avenue, boulevard or sidewalk within the corporate boundaries of the City of Wichita, Kansas, unless the regulations set forth and contained in the sections of this chapter are complied with and followed.
(Ord. No. 32-735 (part))

Sec. 3.89.020. Definitions.

The following words and phrases when used in this chapter shall, for the purpose of this chapter, have the meanings respectively ascribed to them in this section except when the context otherwise requires:

"Ice cream street vendor" means any person, firm, partnership or corporation who travels by any type of vehicle from house to house, or place to place, selling or offering for sale any ice cream food stuffs within the corporate limits of the City of Wichita; provided, however, that no person, firm, partnership or corporation shall be considered an ice cream street vendor when orders are taken for ice cream food stuffs to be delivered to the ultimate consumer on a prearranged day subsequent to the date of sale.

"Vehicle" means every device in, upon or by which any person or property is or may be transported or drawn upon a street or highway except devices used exclusively upon stationary rails or tracks.

Mobile Operations—Exception. For the purposes of this chapter, a "mobile vehicle operation" is one conducted from a truck, trailer or any other vehicle that travels from place to place and from which ice cream food products of any nature whatsoever are sold or distributed, except that this chapter does not apply to the mobile operations conducted by any milk deliverymen operating in compliance with the city's ordinance relating to milk and food handling.
(Ord. No. 32-735 (part))

Sec. 3.89.030. Vehicle license permit procedure and vehicle inspection.

(a) No person, firm, partnership or corporation shall engage in retail mobile operations hereunder unless and until it has been granted an occupation license by the city treasurer of the City of Wichita, Kansas.

(b) Any person, in order to secure such a license, shall file with the license collector an application on such form and containing such information as the license collector may require, including but without limitation to the following:

(1) The name of the applicant, or if a firm, partnership, association, corporation, company or organization of any kind the names and addresses of persons owning financial

interest therein, the number and type of vehicles proposed to be operated by the applicant, and, if applicable, the name of the liability insurance company to whom application has been made for liability coverage;

(2) A complete description of each vehicle to be operated by the applicant, including, if applicable, the type, the model, motor number, chassis number and state license number.

(c) The following fees shall be required for license to issue, except for those exceptions contained in Section 3.99.040 of the Code of the City, of Wichita, and shall be paid to the license collector:

Per day, per vehicle	$2.00
Per month, per vehicle	10.00
Per six months, per vehicle	25.00

(d) A license issued under the provisions of this chapter is not assignable or transferable, and shall run to the exclusive benefit of the licensee.

(e) Vehicle Inspection.

(1) The chief of police shall cause to be inspected the vehicles designated in the application hereunder and shall certify his approval to the license collector when he finds that such vehicles are suitable from the standpoint of safety for the conduct of an ice cream street vending business and that all state laws and local ordinances relating to safety have been complied with. The chief of police, after the issuance of a license hereunder, shall cause the vehicle operated by the licensee to be inspected once each year to determine that said vehicle is suitable from the standpoint of safety for the conduct of an ice cream street vending business and that all state laws and local ordinances relating to safety are being complied with.

(2) The director of the health department of the City of Wichita, Kansas, is authorized to enforce the rules and regulations of said department and to conduct periodic inspections, in addition to those inspections conducted by the chief of police, of all vehicles and equipment used in the sale or distribution of any ice cream food products of any nature whatsoever, for the purpose of enforcing said rules and regulations. In addition, before a license shall be issued for vending any ice cream food products of any nature whatsoever, it must also be approved by the health department and such approval shall not be given unless the health department determines that the vehicle being used is clean and sanitary; that all food stuffs have been prepared in a licensed facility if required; that they are properly labeled, packaged or wrapped; and that they are maintained at suitable temperatures according to recognized standards.

(Ord. No. 38-100 § 1)

Sec. 3.89.050. Liability insurance.

There shall be filed with the city clerk a certificate of insurance covering all motorized vehicles operated hereunder in such form as the city clerk may deem proper, issued by an insurance company approved by the Insurance Commissioner of the State of Kansas, and authorized to do business in the State of Kansas, insuring the public against injury, loss or damage resulting to persons or property from the use, maintenance and operation of any motorized vehicle operated hereunder for which such permit is granted in an amount of not less than fifty thousand dollars for injury to any one person; and an amount of not less than one hundred thousand dollars for injury to all persons injured in any one occurrence; and property damage not less than twenty-five thousand dollars per each occurrence.

(Ord. No. 38-100 § 2)

Sec. 3.89.060. Parking curb side only.

It is unlawful for the operator of a mobile vehicle unit to stop, stand or park such vehicle in any street, alley, avenue, boulevard or sidewalk or other public right-of-way for the purpose of dispensing its products to customers, so as to obstruct the free flow of traffic in the street; provided, that an operator may stop, stand or park

such vehicle at the curb side of the street, but that no vehicle will remain standing in any one location for a period exceeding ten minutes.
(Ord. No. 32-735 (part))

Sec. 3.89.070. Markings and lighting on vehicle.

It is unlawful for any motorized vehicle to be operated upon any street, alley, avenue, boulevard, sidewalk or other public right-of-way delivering or dispensing any ice cream goods or products of any nature whatsoever unless there is clearly marked upon such a vehicle a prominent sign visible to both the front and rear with the wording "Caution—Children," and flashing amber (yellow) caution lights on all four comers of the vehicle visible from front, rear and both sides.
(Ord. No. 38-100 § 3)

Sec. 3.89.080. Speed of vehicle.

It is unlawful for any such vehicle-vendor to exceed a speed of fifteen miles per hour when cruising neighborhoods seeking sales or when attempting to make a sale.
(Ord. No. 32-735 (part))

Sec. 3.89.090. Double parking.

It is unlawful for any vehicle-vendor to double park, or park in any manner contrary to any ordinance relating to parking when attempting a sale or when making a sale.
(Ord. No. 32-735 (part))

Sec. 3.89.100. U-turns.

It is unlawful for any vehicle-vendor to make a U-turn on any block.
(Ord. No. 32-735 (part))

Sec. 3.89.110. Driving backwards.

It is unlawful for any vehicle-vendor to drive his vehicle backwards to make or attempt any sale.
(Ord. No. 32-735, (part))

Sec. 3.89.120. Selling to customer in street—Unlawful.

It is unlawful for any vehicle-vendor to sell to any person who is standing in the street.
(Ord. No. 32-735 (part))

Sec. 3.89.130. Riders in or on vehicle.

It is unlawful for any vehicle-vendor to permit any person to ride in or on the vehicle except a bona fide assistant or assistants.
(Ord. No. 32-735 (part))

Sec. 3.89.140. Sale in congested district—Boundaries—Unlawful.

It is unlawful for any vehicle-vendor to sell or attempt to sell within that congested district of the City of Wichita bounded by:

(a) That district bounded by Lewis Street, the Arkansas River, Central Avenue and the elevated tracks;

(b) Douglas Avenue from the Arkansas River to Seneca Street;

(c) Douglas Avenue from the elevated tracks to Hydraulic Avenue.

All selling shall be limited to those residential areas of the City of Wichita that are outside the boundaries set forth in the preceding sentence.
(Ord. No. 32-735 (part))

Sec. 3.89.150. Routes.

It is unlawful for any vehicle-vendor to sell or attempt to sell along any particular route more than three times during a twenty-four hour period.
(Ord. No. 32-735 (part))

Sec. 3.89.160. Setting within fifty feet of intersection—Unlawful.

It is unlawful for the operator of any vehicle dispensing ice cream food products of any kind whatsoever to engage in the business of vending, huckstering or peddling any of its products within fifty feet of any street intersection within the corporate boundaries of the City of Wichita, Kansas.
(Ord. No. 32-735 (part))

Sec. 3.89.170. Selling in public parks—Unlawful.

It is unlawful for any person to dispense ice cream food products of any kind whatsoever from a mobile vehicle in any public park of the City of Wichita, Kansas, or public parking lot within the City of Wichita, Kansas, unless express permission is granted by the governing body of the City of Wichita, Kansas.
(Ord. No. 32-735 (part))

Sec. 3.89.180. Unauthorized passengers—Unlawful.

No person other than the authorized operator of a vehicle and other persons expressly authorized by the owner or lessee of a vehicle shall be in or upon said vehicle.
(Ord. No. 32-735, (part))

Sec. 3.89.190. Vehicle stationary during sale.

Every vehicle shall be stationary while in the process of selling or dispensing ice cream food products of any kind whatsoever while upon a public street, alley, avenue, boulevard, sidewalk or other public right-of-way within the City of Wichita, Kansas.
(Ord. No. 32-735 (part))

Sec. 3.89.200. Sales—Curb side only.

Whenever any vehicle is used for the sale or dispensing of ice cream food products of any nature whatsoever upon a public street, alley, avenue, boulevard, sidewalk or other public right-of-way within the City of Wichita, Kansas, said transaction shall occur on the side of the vehicle which is next to the curb of the street.
(Ord. No. 32-735 (part))

Sec. 3.89.210. Sales near schools—Time when unlawful.

Whenever a vehicle is used for selling or dispensing of ice cream food products of any nature whatsoever, no transaction will occur within two blocks from the boundaries of any public or private school property for a period commencing thirty minutes before the regular school day of any such school and continuing until thirty minutes after the adjournment of the regular school day of any such school.
(Ord. No. 32-735 (part))

Sec. 3.89.220. Sound devices—Regulation—Time of use.

No sound device or bell shall be allowed or used by any vehicle dispensing ice cream food products of any kind whatsoever, with the exception that amplified music or chimes are allowed provided that such are not audible any distance greater than three hundred feet and that they be turned off when the vehicle is stationary for the purpose of making sales or otherwise; provided, that the use of amplified music or chimes is prohibited before ten a.m. and after eight-thirty p.m. of each day.
(Ord. No. 32-735 (part))

Sec. 3.89.230. Time when sales unlawful.

It is unlawful for any person, firm, partnership or corporation to sell or distribute ice cream food products of any kind whatsoever upon or within any public right-of-way, public street, alley, avenue, boulevard or sidewalk within the corporate boundaries of the City of Wichita, Kansas, between eight-thirty p.m. of each day and continuing until ten a.m. on the following day.
(Ord. No. 32-735 (part))

Sec. 3.89.240. Penalty.

Any person, firm, partnership or corporation violating any of the provisions and sections of this chapter is guilty of a misdemeanor. Each and every day that such violation continues shall constitute a separate offense. In addition, the governing body of the City of Wichita, upon thirty days' notice of hearing, may suspend or revoke any license issued under the provisions of this chapter if the licensee has failed or neglected to comply with any terms of this chapter. In addition to the penalty afore-described, the city may recover in a civil action in any court of competent jurisdiction the amount of the license fee imposed by this chapter, and no property of such debtor shall be exempt from forced sale under any pro-

cess of the law for such indebtedness except such exemptions as are allowed by the Constitution and laws of this state.
(Ord. No. 32-735 (part))

Sec. 3.89.250. Constitutionality.

Should any section, paragraph, sentence, clause or phrase of this chapter be declared unconstitutional or not valid for any reason, the remainder of this chapter shall not be thereby affected.
(Ord. No. 32-735 (part))

CHAPTER 3.90. RESERVED*

*__Editor's note—__Ord. No. 50-032, § 1, adopted July 14, 2015, repealed Chapter 3.90, §§ 3.90.005—3.90.170 which pertained to scrap processors and derived from Ord. No. 41-445 §§ 1—9, 12, 13, 15; and Ord. No. 48-690, §§ 1—23, adopted March 23, 2010.

CHAPTER 3.91. RESERVED*

*__Editor's note—__Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed ch. 3.91, §§ 3.91.010—3.91.170, which pertained to cultural markets, and derived from Ord. No. 48-610, §§ 1—17, adopted Feb. 9, 2010; and Ord. No. 49-312, §§ 1—6, adopted July 24, 2012.

CHAPTER 3.92. SCHOOL BUS FRANCHISE

Sec. 3.92.010. Definitions.
Sec. 3.92.020. Franchise required.
Sec. 3.92.030. Application.
Sec. 3.92.040. Hearing.
Sec. 3.92.050. Penalty for violation.

Sec. 3.92.010. Definitions.

"School bus" means every motor vehicle owned privately or by a public or governmental agency operated for the transportation of children to or from school for compensation paid by such passengers for such transportation to or from school or school functions or activities, but shall exclude taxicabs as defined in Section 3.84.010 of the Code of the City of Wichita, and vehicle hauling passengers for hire within the city under franchise issued by the city, and shall also exclude private car pools wherein not more than five students are transported in a motor vehicle designed and used primarily for the personal transportation needs of the owner thereof or his family.

"School" means any place of public or private instruction of children, including but not limited to private, public or parochial schools.

"Public streets" means any street, alley, avenue, lane, court or public place in the City of Wichita.
(Ord. No. 28-171 § 1)

Sec. 3.92.020. Franchise required.

It is unlawful to operate a school bus upon the public streets of the city without first having secured a franchise agreement from the board of commissioners of the city to use the public streets of the city in the carrying on of such business, which franchise agreement may be granted by the governing body of such city under such terms and conditions as may be provided by ordinance, and by authority vested in the governing body of the city under the provisions of Ch. 12, Art. 20, of the K.S.A., or other provisions of law.
(Ord. No. 28-171 § 2)

Sec. 3.92.030. Application.

Before any franchise ordinance is considered for enactment by the governing body, an application shall be filed with the city clerk for such franchise on such form and containing such information as the city clerk may require, including but without limitations, the following:

(a) The name and business address of the applicant, and if the applicant is a corporation, the names and addresses of the officers and directors of such corporation, and if a partnership, the names and addresses of all the partners;

(b) A complete description of all vehicles proposed to be used as school buses, the number of persons each of such vehicles are constructed to carry, the model, the motor number, and the state license number, together with such other information as the city manager or the board of commissioners may require;

(c) The number of passengers applicant proposes to carry per vehicle;

(d) A proper showing of convenience and necessity;

(e) The trade name under which such vehicles shall be operated;

(f) A schedule of rates proposed to be charged the passengers on such school buses;

(g) The routes and territory proposed to be served by applicant;

(h) The name of any liability insurance company to whom application has been made for liability coverage and that has been denied;

(i) A copy of the form of liability insurance policy proposed to be carried by applicant, including limits of coverage therein, and a certificate thereon issued by an insurance company licensed to do business in the state of Kansas, of its willingness to issue such insurance, which policy shall be conditioned for the benefit of persons suffering bodily injury or death, or sustaining

property damage by virtue of the negligent operation by applicant or its employees of such school bus or buses.

Such application shall be accompanied by a fee of ten dollars payable to the city treasurer of the city, which shall in no event be returned to the applicant and which shall be in addition to any franchise tax or consideration required to be paid to the city in the event of the enactment of a franchise ordinance as to such applicant.
(Ord. No. 28-171 § 3)

Sec. 3.92.040. Hearing.

Upon the filing of the application above described, the city commission shall set the time at which public hearing will be held by the commission upon such application, with such notice thereof as the commission may deem advisable. Upon hearing, the city commission, upon finding that public convenience will be promoted and public necessity would require such service as proposed to be rendered by applicant, may enter into a franchise agreement with applicant upon such conditions, terms and limitations as in their sole discretion may be deemed necessary or advisable for the protection of the public interest.
(Ord. No. 28-171 § 4)

Sec. 3.92.050. Penalty for violation.

Any person convicted of violating any of the provisions of this chapter shall be punished by a fine of not more than five hundred dollars or by imprisonment in the city jail for a period of not exceeding one year, or by both such fine and imprisonment.

In addition to the penalties hereinbefore provided for the violation hereof, the city manager shall cause to be filed such legal proceedings as the department of law of the city deems necessary to enforce by civil action the provisions hereof.
(Ord. No. 28-171 §§ 5, 6)

CHAPTER 3.93. COMMUNICATIONS SERVICES

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Sec. 3.93.600. Effective date.

ARTICLE 1. SCOPE OF CHAPTER

Sec. 3.93.010. Scope.

This chapter shall apply to any public or private entity who seeks to construct, install, or operate a communications system or facilities, as such terms are defined herein, within the right-of-way, unless such entity already has an existing

valid franchise from the city to construct, install, or maintain a communications system in the right-of-way prior to the effective date of the ordinance codified in this chapter or is otherwise exempt from this requirement by operation of applicable state law. Provided, however, that all of the provisions related to construction or permitting specifications adopted pursuant to the city's police powers, to the extent that they do not conflict with the material terms of an existing franchise, shall be fully applicable to all such franchisees. This chapter shall apply to city-owned or controlled communications systems except to the extent such lines or facilities are utilized on an internal, noncommercial basis by the city or any of its departments. This chapter shall not apply to the provision of cable service.
(Ord. No. 44-845 § 1)

ARTICLE 2. FINDINGS, AUTHORITY AND DEFINITIONS

Sec. 3.93.020. Declaration of findings.

The city declares as a legislative finding that the right-of-way within the City of Wichita:

A. Is a unique and physically limited resource;

B. Is critical to the travel and transport of persons and property in the city;

C. Is intended for public uses and must be managed and controlled consistent with that intent; and can be partially occupied by the facilities of utilities and public service entities, to the enhancement of the health, welfare, and general economic well being of the city and its citizens; and

D. Requires adoption of specific additional regulations to ensure minimal inconvenience to the public, coordinate users, maximize available space, reduce maintenance and costs to the public, and facilitate entry of a maximum number of providers of cable, telecommunications, and other services in the public interest.

(Ord. No. 44-845 § 2.1)

Sec. 3.93.030. Adopted pursuant to home rule powers.

The city adopts the ordinance codified in this chapter and any franchises granted hereunder pursuant to K.S.A. 12-2001, its home rule powers, and other applicable law. Any rights contained within a franchise or license granted pursuant to this chapter are subject to the home rule powers of the city to adopt and enforce chapters necessary to the health, safety and welfare of the public. Every franchisee or licensee shall comply with all applicable laws enacted by the city pursuant to its home rule powers to the extent consistent with federal law.
(Ord. No. 44-845 § 2.2)

Sec. 3.93.040. Defined terms.

For purposes of this chapter, the following terms, phrases, words and their derivatives shall have the meanings set forth in this section, unless the context clearly indicates that another meaning is intended. Words used in the present tense include the future tense, words in the single number include the plural number, and words in the plural number include the singular. The words "shall" and "will" are mandatory, and "may" is permissive. Words not defined shall be given their common and ordinary meaning.

"Access lines" means the following billed lines and trunks, whether provided on a retail or wholesale basis: residential lines; DSL and or ISDN lines (channels); PBX trunks; Centrex or Centrex-like stations; simulated exchange access lines provided by a central office based switching arrangement where all stations served by such simulated exchange access lines are used by a single customer of the provider of such arrangement; where stations are served by simulated exchange access lines provided by a central office based switching arrangement and the stations served are not used by a single customer of the provider of such arrangement, each station shall constitute an access line; and pay phone lines unless prohibited by applicable law. "Access line" shall include wireless telecommunications services subject to 47 C.F.R. Part 24. "Access line" shall not include the following: wireless telecom-

munications services subject to 47 C.F.R. Part 22; unbundled loop facilities; and special access services.

"Affiliate" means each person, directly or indirectly, controlling, controlled by, or under common control with a franchisee; provided that affiliate shall in no event mean any limited partner, member or shareholder holding an interest of less than fifteen percent of such franchisee.

"Antenna" means any device that transmits and/or receives radio waves for voice, data or video communications purposes including, but not limited to, television, AM/FM radio, microwave, cellular telephone and similar forms of communications. A combination of panels, boxes, or other antenna physically connected and designed in conjunction to receive signals at one location in the system shall be considered one antenna.

"Cable services" means:

1. The one-way transmission to subscribers of video programming, or other programming service; and
2. Subscriber interaction, if any, which is required for the selection or use of such video programming or other programming service;

"City" means the City of Wichita, Kansas.

"Co-location" means the shared use of facilities, such as poles, ducts or conduit, including but not limited to the placement of conduit owned by more than one right-of-way user in the same trench or boring and the placement of equipment owned by more than one user in the same conduit. Co-location does not include interconnection of facilities or the sale or purchase of capacity (whether bundled or unbundled).

"Communication service" or "service" means the transmission of writing, signs, signals, pictures, sounds or other forms of intelligence through cables, wires or lines, including, but not limited to, any "telecommunications service," "enhanced service," "information service," interconnection, including interconnect of cellular or PCS or other mobile services, "open video service," or "internet service," as such terms are now, or may in the future be, defined under federal law, and including all instrumentalities, facilities, apparatus, and services (among other things, the receipt, forwarding and delivery of telecommunications) incidental to such transmission. This term does not include "cable services," but these services shall be subject to separate cable franchising requirements and application.

"Communications system" or "system" means the cables, wires, lines, optic fiber, and any associated converters, equipment, or other facilities designed, constructed or occupied by a franchisee or others for the purpose of producing, receiving, amplifying or distributing communications service to or from locations within the city.

"Facilities" means any portion of a system located in, along, over, upon, under or through the right-of-way.

"Franchise" or "agreement" means the individual franchises that are governed by this chapter and agreed to and executed by franchisee.

"Franchisee" means any entity who currently has a franchise granted by the city, or who is granted a franchise pursuant to this chapter and that entity's agents, employees, lawful successors, assignees or transferees.

"Franchise fee" means the fee imposed by the city on a franchisee pursuant to Article 4 of this chapter.

"Gross receipts" means all revenues received directly or indirectly by a franchisee or its affiliates for communications services that either originate or terminate within the corporate limits of the city, and all revenue derived from the use of facilities. This term shall be interpreted as expansively as legally permissible and shall incorporate any and all new services, technologies or sources of revenue that may develop over the course of the term of the franchise. For illustration purposes only, such gross receipts shall specifically include, but shall not be limited to, all revenue of a franchisee derived from the following:

1. Recurring local exchange service revenues from businesses and residences which include basic telephone exchange service, touch tone, custom calling services and measured local calls;

2. Recurring local exchange service revenues from public, semipublic and private coin telephone use;
3. Local directory assistance (411);
4. Line status verification/busy interrupt;
5. Local operator assistance;
6. Information delivery service;
7. Cellular, PCS or other mobile revenue attributable to franchisee's use of right-of-way (such as interconnect fees, or cell sites connections);
8. Nonrecurring local exchange service revenue, which shall include customer service charges for installation of lines and reconnection of service;
9. Revenue received by the franchisee from reseller service providers, unless the reseller has a franchise with the city and directly pays a franchise fee or occupation tax on such revenues to the city;
10. Internet/data access charges or services, including all high-speed and traditional subscriber line charges or services (such as, without limitation, T1, T3, OC3, frame relay, DSL, ISDN, cable modem, special access or point to point);
11. Revenue from rent, lease, physical use, or co-location of the facilities or a portion thereof for any purpose;
12. Late charges, penalties or interest received from customers;
13. Sale of accounts receivable; and
14. All other applicable revenues not listed herein.

"Gross receipts" shall not include revenues from cable services subject to a cable services franchise, from the provision of interexchange services or uncollected debt, and any federal, state or local taxes or franchise fees separately stated on a customer's bill. Provided, that a franchisee shall include uncollected debt in gross receipts at the time it is actually collected.

"License" means the individual grant of the right to use the right-of-way for a communications system solely for private use of the licensee and not for resale or lease to others.

"Licensee" means any entity granted a license pursuant to this chapter and not otherwise required by this chapter or state law to have a franchise.

"Linear foot" means the length in feet of cable, wire, fiber or other linear facilities physically connected, wrapped or lashed as a single cable or bundle of cables, or with respect to underground facilities, means the length of a conduit or an array of conduits contemporaneously installed during the same construction project by a single provider. Where applicable, a separate franchise shall be required for each separate entity who owns or controls facilities within an array of conduits.

"Open video services" means any video programming services provided to any person by a franchisee certified by the FCC to operate an open video system pursuant to Section 47 U.S.C. 573, as may be amended, regardless of the facilities used.

"Pass through service" means the facilities for a communication system that merely pass through the city from one point to another point and from which no gross receipts are directly attributable from subscribers or other carriers within the city.

"Public project" means any project planned or undertaken by the city or any governmental entity for construction, reconstruction, maintenance or repair of public facilities or improvements, or any other purpose of a public nature.

"Public project for private development" means a public project, or that portion thereof arising solely from a request or requirement of a third party (noncity or governmental) primarily for the benefit and use of a third party.

"Reseller service provider" means a person or business providing service within the city that does not own or control its own facilities in the right-of-way, but instead uses the right-of-way by interconnecting with or using the network ele-

ments of another service provider utilizing the right-of-way, and/or by leasing excess capacity from a facility-based service provider.

"Right-of-way" means the surface and space on, above and below every municipal street, alley, road, highway, lane or city right-of-way dedicated or commonly used now or hereafter for utility purposes, including but not limited to overhead lighting facilities, and including utility easements wherein the city now or hereafter acquires the right and authority to locate or permit the location of utilities consistent with communications facilities. This term shall not include any county, state, or federal right-of-way or any property owned or controlled by any person or agency other than the city, except as provided by applicable laws or pursuant to an agreement between the city and any such person or agency. "Right-of-way" shall not include property owned or held by the city and not typically considered rights-of-way such as city parks and city buildings.

"Wired access point antenna" means any antenna located in the right-of-way connected directly to wire, cable, or fiber optic communications facilities within the city or any antenna having its highest point positioned in the right-of-way at a height that is otherwise subject to separate zoning and wireless siting ordinances.
(Ord. No. 44-845 § 2.3)

ARTICLE 3. GRANT OF FRANCHISES AND AUTHORITY TO USE THE RIGHT-OF-WAY

Sec. 3.93.050. Registration.

All providers of communications services that intend to place facilities in the right-of-way shall register with the city engineer. Such providers shall be required to obtain a franchise, license, or other permit to use the right-of-way in the manner provided by this chapter, a right-of-way management ordinance, or other provisions of this Code. Such registration shall be in such form as may reasonably be required by the city engineer. After the receipt of a completed registration, the city shall determine the type of application required of the provider.
(Ord. No. 44-845 § 3.1)

Sec. 3.93.060. Nonexclusive.

Franchises and licenses granted pursuant to this chapter shall be nonexclusive. The city specifically reserves the right to grant, at any time, franchises or other rights to use the right-of-way for any purpose and to any other person, including itself, as it deems appropriate, subject to applicable federal and state law.
(Ord. No. 44-845 § 3.2)

Sec. 3.93.070. Grant.

Any franchise granted pursuant to the terms of this chapter shall convey the right, privilege and authority to construct, operate and maintain facilities in, through and along the city's right-of-way for the purposes of supplying communications services on a nonexclusive basis within the city, subject, however, to the terms and conditions herein set forth and within an individual franchise. As a condition of any such grant, a franchisee is required to obtain and is responsible for any necessary permit, license certification, grant, registration or any other authorization required by any appropriate governmental entity, including, but not limited to, the city, the FCC or the KCC, subject to the franchisee's right to challenge in good faith such requirements as established by the FCC, KCC or other city ordinance.

No franchise granted pursuant to this chapter shall provide authority to provide cable service as a cable operator (as defined by 47 U.S.C. Section 522(5)) within the city. Upon a franchisee's request for a franchise to provide cable service as a cable operator (as defined by 47 U.S.C. Section 522(5)) within the city, the city agrees to timely negotiate such franchise in good faith with the franchisee. Neither does this chapter authorize the grant of a franchise to operate an open video system without payment of fees permitted by 47 U.S.C. Section 573(c)(2)(B) and without complying with FCC regulations promulgated pursuant to 47 U.S.C. Section 573, and first obtaining a separate or amended franchise.
(Ord. No. 44-845 § 3.3)

Sec. 3.93.080. Grant of a license.

Licenses granted pursuant to the terms of this chapter and any right-of-way management chap-

ter shall be solely for private use of the licensee and not for the resale or lease of communications services or system to others. Such license shall be granted only for specific routes or locations described in the license and for such term as described in the license.

All references in this chapter to the grant of a "franchise" and the rights and obligations of a "franchisee" shall likewise apply to the grant of a "license" and the rights and obligations of a "licensee" without the necessity of stating "franchise or license" except where the context clearly indicates application only to a franchise.
(Ord. No. 44-845 § 3.4)

Sec. 3.93.090. Nature of grant of franchise.

Franchises granted under authority of this chapter shall not convey title, equitable or legal, in the right-of-way, and gives only the right to occupy right-of-way, for the purposes and for the period stated in the individual franchises. A franchise does not excuse the franchisee from obtaining appropriate access or pole attachment agreements before locating its facilities on another person's facilities.
(Ord. No. 44-845 § 3.5)

Sec. 3.93.100. Acceptance.

No franchise or license granted under this chapter shall be effective until the franchisee or licensee shall have executed a written agreement setting forth the particular terms and provisions under which the rights to occupy and use the right-of-way will be granted. Such agreement may incorporate by reference provisions of this chapter, a right-of-way management ordinance, or other code provisions or city regulations. Written acceptance of a franchise in the manner provided by state law may constitute the writing required by this subsection.
(Ord. No. 44-845 § 3.6)

Sec. 3.93.110. Term.

A. The specific length of the term of the franchises granted hereunder shall be set out in the individual franchise. The term of the franchise notwithstanding, upon written request of either the city or a franchisee, the franchise may be reviewed at any time after four years from the effective date of the franchise and either the city or the franchisee may propose amendments to any provision of the franchise by giving thirty days written notice to the other of the amendment(s) desired. The city and franchisee shall negotiate in good faith in an effort to agree upon mutually satisfactory amendment(s).

B. Upon written request of either the city or the franchisee, the city and the franchisee shall negotiate in good faith in an effort to agree upon mutually satisfactory amendment(s) at any time upon any of the following events:

1. Change in federal, state or local law, regulation or order which materially affects any rights or obligations of either the city or a franchisee, including but not limited to the scope of the grant to the franchisee or the compensation to be received by the city;
2. Change in the structure or operation of the communications industry or the service provided though the system which materially affects any rights or obligations of either the city or a franchisee, including but not limited to the scope of the grant to the franchisee or the compensation to be received by the city;
3. Any other material and unintended change or shift in the economic benefit the city or the franchisee relied upon and anticipated upon entering into the franchise.

C. The compensation provision of the individual franchise shall be reopened and renegotiated in good faith if communication consumers within the city have access to alternative providers of communications services who use the right-of-way and do not pay a franchise fee or other payment substantially equivalent to what is required under this chapter and the franchise, which results in the application of compensation requirements that are discriminatory and not competitively neutral with respect to the franchisee. The use of right-of-way provisions of a franchise shall be reopened and renegotiated if consumers within the city have access to alternative providers of communications services through systems who use the right-of-way and do not have

requirements on the use of right-of-way substantially equivalent to the requirements of this chapter or a franchise, which results in a material and unfair disadvantage to the franchisee. Upon any such event, the city shall have up to one hundred eighty days after written request of the franchisee in which to restore competitive neutrality, provided that any adjustment in compensation resulting from renegotiations under this subsection C shall be effective no later than ninety days after receipt of such written request.

D. Failure of the city and franchisee to agree upon mutually satisfactory amendments or to successfully renegotiate the materially affected provisions of the franchise under subsection B or C of this section shall give rise to dispute resolution as follows: At the expiration of one hundred eighty days from the date of the written request (or sooner if requested by both the city and the franchisee) the city and the franchisee shall each select a representative who shall jointly select a third representative. The three representatives shall hear the positions of the city and franchisee and shall determine the matters in disagreement by majority vote. Such decision shall be presented to the city and the franchisee as the renegotiated language under subsection B or C of this section. Rejection of the dispute resolution by either the city or the franchisee shall give rise to a right to terminate the franchise, or at the option of the parties, the franchise shall remain in effect according to its then existing terms.

E. The franchise shall remain in effect according to its terms pending completion of any review or renegotiation provided by this section.
(Ord. No. 44-845 § 3.7)

Sec. 3.93.120. Amendment and renewal.

Any amendment of a franchise shall be subject to the procedures of the Franchise Act, K.S.A. 12-2001, et seq. No franchise or license shall be extended in term or renewed until any ongoing violations or defaults in the performance of the franchise or license agreement or the requirements of this chapter have been cured, or a plan detailing the corrective action to be taken by the franchisee or licensee has been approved by the city.
(Ord. No. 44-845 § 3.8)

Sec. 3.93.130. Use of right-of-way—Police powers—Franchisees' use subordinate.

Facilities shall be placed with adequate clearance from existing public or private utilities in the right-of-way or a public project so as not to impact or be impacted by such public or private utilities or improvements or public project. Every franchisee shall construct and maintain its facilities in accordance with all applicable federal, state and local laws, including all permit requirements, fee payments, and all other city codes and chapters in effect as of the date of the ordinance codified in this chapter or hereinafter adopted to the extent not in contravention of state or federal law. The grant of a franchise pursuant to this chapter does not in any way impact the continuing authority of the city through the proper exercise of its home rule powers to adopt and enforce ordinances necessary to provide for the health, safety and welfare of the public. In granting a franchise the city makes no express or implied representation or warranty regarding its rights to authorize the installation or construction of facilities on any particular segment of right-of-way. The burden and responsibility for making all such determinations in advance of construction or installation shall be entirely upon the franchisee. The use of the right-of-way authorized by a franchise granted pursuant to this chapter shall in all matters be subordinate to the city's use and rights therein, except to the extent that the city's use of the right-of-way is for the provision of commercial communications services. A franchisee shall coordinate the placement of its facilities in a manner that minimizes adverse impact on public and private improvements, as reasonably determined by the city engineer.
(Ord. No. 44-845 § 3.9)

Sec. 3.93.140. No interference.

Every franchisee shall construct and maintain its facilities so as not to interfere with other users of the right-of-way. Except as may otherwise be provided, a franchisee shall notify all residents affected by the proposed work prior to commencement of such work. Notice shall include, where reasonably possible, ten days in advance of construction, a letter, and/or door hanger describing

the work to be done, time of beginning and completing the work, the name of the company, and a phone number to contact the company seven days a week, twenty-four hours a day. All construction and maintenance by a franchisee or its subcontractors shall be performed in accordance with industry standards. All facilities determined by the city engineer to be in interference shall be moved by the franchisee at the franchisee's own expense.
(Ord. No. 44-845 § 3.10)

Sec. 3.93.150. Exclusion of certain locations/facilities.

Prior to a franchisee's installation of any facilities in the right-of-way and after it provides the city with its proposed plans for the facilities, the city may in its reasonable discretion designate certain locations or facilities in the right-of-way to be excluded from use by a franchisee for its facilities, including but not limited to ornamental or similar specially-designed streets lights, or other facilities or locations which, in the reasonable judgment of the city engineer do not have electrical service adequate or appropriate for the franchisee's facilities or cannot safely bear the weight or wind loading thereof, or any other facility or location that in the reasonable judgment of the city engineer is incompatible with the proposed facilities or would be rendered unsafe or unstable by the installation, provided that all franchisees are treated in a similar manner. The city engineer may further exclude certain other facilities that have been designated or planned for other use or are not otherwise available for use by a franchisee due to engineering, technological, proprietary, legal, or other limitations or restrictions as may be reasonably determined by the city. The city shall provide a written explanation for any denial for a particular location and shall work with a franchisee to identify other suitable routes.
(Ord. No. 44-845 § 3.11)

Sec. 3.93.160. Location, type and design of facilities subject to approval.

A. The design, location, and nature of all facilities shall be subject to the reasonable review and approval of the city engineer in a nondiscriminatory manner. This is a means to properly manage and control all right-of-way usage in the city, and to protect the public health, safety, and welfare. The review and approval is to ensure efficient coordination relating to right-of-way use relating to public and private utilities and to evaluate the configuration and size of facilities that may be located in the right-of-way or other public or private property.

B. Except as provided herein, all facilities constructed by a franchisee shall be placed underground unless otherwise agreed to by the city.

1. Whenever any one or more existing facilities for electrical, cable, or communications services are located underground in the right-of-way, all new or replacement facilities shall be placed underground.
2. Where there are obstructions in the right-of-way such as trees, shrubs, utilities, commercial signs, manmade structures, or other like obstructions which make the cost of underground construction unreasonable, a franchisee may request waiver of this requirement, in which event the city will not unreasonably withhold its consent.
3. When a franchisee is allowed to place facilities above ground under this section, the franchisee may attach its facilities to an existing utility pole pursuant to a properly executed agreement with the pole owner; provided, however, that any necessary replacement of the pole in order to accommodate the attachment shall be subject to the proper exercise of the city's police powers, and in no instance shall a franchisee erect a new pole within an existing aerial pole line absent the city's prior authorization.
4. Aboveground pedestals, vaults, or other aboveground facilities, may be installed only if approved by the city where alternative underground facilities are not feasible or where underground requirements are otherwise waived pursuant to this section, and shall generally be located behind the sidewalk where feasible and shall be screened from public view. Facil-

ities in rear lot easements shall be exempt from the screening requirements except when they are within fifty feet of a street or highway.

5. The underground requirements of this subsection B shall not apply to the maintenance and repair of existing facilities, as determined by the city engineer.

C. Except as may otherwise be provided by other applicable chapters of the city, where reasonable and appropriate and where adequate public right-of-way exist, a franchisee shall place aboveground facilities underground in conjunction with city capital improvement projects and/or at specific locations requested by the city provided that such placement is practical, efficient, and economically feasible.

D. Wired access point antenna located on the right-of-way, other city-owned, or controlled property shall not be authorized by this chapter, but shall require a separate lease or use agreement with the city. Wireless facilities shall be subject to the wireless ordinance of the city.

E. All facilities, whether on right-of-way or public or private property, shall also be subject to size and height limitations or other applicable zoning restrictions in accordance with any generally applicable ordinance adopted by the city.
(Ord. No. 44-845 § 3.12)

Sec. 3.93.170. Co-location and additional facilities requirements—Planned infrastructure.

A. Prior to trenching and/or constructing any new or additional underground conduit within the right-of-way, a franchisee shall certify in writing to the city engineer that it has made appropriate inquiry to all existing utilities and other entities possessing a right to occupy the right-of-way as to the availability of existing or planned trenching and/or conduit that the franchisee could reasonably utilize to meet its needs, and that no such conduit is available or planned at a reasonable cost by any other entity on the time schedule reasonably needed by franchisee. Entities contacted for purposes of this section shall respond to the contacting party within fifteen working days following such request.

B. All entities subject to this chapter shall make space in its trench and/or conduit within the right-of-way available to other franchisees consistent with the federal requirements of 47 U.S.C. Section 224.

C. Upon a determination that no such trenching and/or conduit is available, a franchisee may trench and/or install new conduit pursuant to the following requirements:

1. The franchisee shall provide written notification of the proposed construction activity to all other existing utilities and franchise holders, who shall have fifteen days from the receipt of such notification to indicate in writing to the city and the franchisee as to whether they desire to jointly undertake the construction of such trenching and/or conduit or otherwise co-locate their facilities or a system at such time. Any utility or franchise holder electing to jointly construct or co-locate its facilities or a system with that of franchisee shall share in the pro-rata costs of such construction or co-location of facilities and/or system reasonably incurred by franchisee and shall participate in the project on the same time schedule as reasonably established by both the franchisee and the city acting through the utility location and coordination council established by Sections 2.12.1093, et seq., of this Code.

2. When a franchisee installs any new trench and/or conduit, the franchisee shall, at the request of the city engineer to enable co-location by city or other entities, install sufficient additional space and/or conduit or other related facilities to meet the city's planned infrastructure needs and needs of other entities planning development of facilities in the area. Such excess conduit shall at the option of the franchisee either (1) be owned by the city, or (2) be owned by a franchisee. If ownership of the conduit is transferred to the city, the city shall reimburse the franchisee in the amount of the incremental cost of the labor and material of installing the excess conduit simultaneous with the franchisee's con-

duit. Such reimbursements are subject to review and approval by the city. If the franchisee retains ownership of the excess conduit, the franchisee shall be obligated to make such conduit and/or trench space available to any other user of the rights-of-way on a nondiscriminatory basis at not more than the prorata cost of that portion of the excess conduit determined by the total labor and material cost of all facilities at that location. Such requirements shall be administered and applied on a competitively neutral and nondiscriminatory basis to maximize the available space in the rights-of-way and to minimize the total number of excavations and cost of total communications infrastructure installation.

(Ord. No. 44-845 § 3.13)

Sec. 3.93.180. Right-of-way management code.

The city reserves its rights to adopt a right-of-way management and construction standards chapter of general applicability pursuant to its public health, safety and welfare authority which shall apply to any franchise granted pursuant to this chapter except where inconsistent with a material term of any such franchise.

(Ord. No. 44-845 § 3.14)

Sec. 3.93.190. Underground facility locating service.

A franchisee shall cooperate with and participate fully in a reputable underground facility locating service and shall participate in Kansas One Call to insure that damage and/or interference with other underground facilities occupants is minimized.

(Ord. No. 44-845 § 3.15)

Sec. 3.93.200. Conditions relating to private property.

If (1) a franchisee should in the course of the construction and/or reconstruction of the system elect to place underground facilities in the public utility easement on private property where there was, at the time of the franchisee's election, space available for the installation of such plant within the right-of-way, and (2) a franchisee should fail, neglect or refuse to take pre-construction photography (or videography) of the condition of any private property upon which underground construction is to occur, a franchisee shall have the burden of proof as to the condition of the private property prior to the initiation of such construction in any subsequent complaint resolution, arbitration or judicial procedure between a franchisee and the private property owner. If a franchisee enters private property for the purposes of construction where there is no dedicated public easement, the franchisee shall first secure the private property owner's written consent.

(Ord. No. 44-845 § 3.16)

Sec. 3.93.210. Permit requirements.

This chapter and individual franchises establish the general rules and scope of authority for a franchisee to construct and maintain its communications system within the right-of-way. The franchisee is still required to obtain individual permitting approval from the city engineer prior to engaging in actual construction of its specific facilities within the right-of-way. At least fifteen days before the beginning of any installation, removal or relocation of its facilities, a franchisee shall submit detailed plans of the proposed action to the city engineer. The city engineer shall, within fifteen days of receipt of such plans, either approve the plans or inform the franchisee of the reasons for disapproval. The franchisee shall designate a responsible contact person with whom representatives of the city engineer can communicate with on all matters relating to facilities installation and maintenance.

A. Prior to any excavation within the right-of-way, a franchisee shall obtain a permit, pay all applicable fees, and perform such work in accordance with applicable provisions of the city ROW management code, and any ordinances or regulations that may be adopted by the city regarding excavation work.

B. Every franchisee shall post a bond with the city in accordance with the city's ordinances in an amount determined by the city engineer, to guarantee the timeliness

and quality of any construction, repair and restoration work, including damage to public or private property, and to guarantee the removal of its facilities from the city's right-of-way should such removal be required upon the expiration of its franchise. Such bond amount shall not exceed the estimated costs of the specific construction activity, and within six months of satisfactory completion of the construction project the bond amount shall be reduced to an amount of no more than one tenth of the initial face amount of the bond. The city attorney in the reasonable exercise of its discretion may waive the bond requirements upon a sufficient demonstration of self-insurance.

C. Prior to the commencement of any construction or alteration of its facilities located in the right-of-way, a franchisee shall, if requested by the city engineer, furnish to the city engineer a subsurface utility engineering study based on available records maintained by existing utility companies, on the proposed route of construction, expansion or alteration, which must be approved by the city engineer. The study must consist of the following tasks:

1. All available plans, plats and other location data indicating the existence and approximate location of all facilities along the proposed construction route;
2. Completion of a visual survey and written record of the location and dimensions of any aboveground features of any underground facilities along the proposed construction route, including but not limited to manholes, valve boxes, utility boxes, post and visible street cut repairs;
3. Plot and incorporate the data obtained from completion of tasks 1 and 2 as set forth in this subsection, onto the franchisee's proposed system route maps, plan sheets and computer aided drafting and design (CADD) files; and
4. Provide all such data collected into a CADD file (or other format as may be identified by the city engineer) compatible with that used by the city engineer and deliver a copy to the city engineer.

(Ord. No. 44-845 § 3.17)

Sec. 3.93.220. Franchisees subject to wireless ordinances.

Any franchise notwithstanding, all franchisees operating wireless communications systems within the city are subject to all of the applicable ordinances and zoning requirements of the city related to such activities.
(Ord. No. 44-845 § 3.18)

Sec. 3.93.230. As-built drawings.

Every franchisee shall keep and maintain accurate records and as-built drawings, in both paper and electronic format, of all facilities (except customer service lines) constructed, reconstructed, or relocated in the right-of-way of arterial streets (as designated by Section 11.96.100) after the date hereof. Such facilities shall be horizontally and vertically located at least every one hundred feet and at any other alignment change. All points of facilities shall be horizontally located from street centerline, or section or quartersection lines or corners. Vertical locations on all points of facilities shall consist of elevations in either city datum or United States Geological Survey datum. The franchisee shall cooperate promptly and fully with the city and take all reasonable measures necessary to provide accurate and complete information regarding the nature and horizontal and vertical location of its facilities located within rights-of-way when requested by the city or its authorized agents for a public project. Such location and identification shall be at the sole expense of the franchisee without expense to the city, its employees, agents or authorized contractors.
(Ord. No. 44-845 § 3.19)

Sec. 3.93.240. Agent.

Every franchisee shall designate and maintain an agent, familiar with the facilities, who is

responsible for timely satisfaction of the information needs of the city and other users of the right-of-way.
(Ord. No. 44-845 § 3.20)

Sec. 3.93.250. Franchisees responsible for costs.

The franchisee shall be responsible for all costs borne by the city that are directly associated with a franchisee's installation, maintenance, repair, operation, use, and replacement of its facilities within the right-of-way, that are not otherwise accounted for as part of the permit fee established pursuant to the right-of-way ordinance. All such costs shall be itemized and the city's books and records related to these costs shall be made available upon request to the franchisee. The franchisee shall be responsible for its own costs incurred removing or relocation its facilities when required by the city due to city requirements relating to maintenance and use of the right-of-way for city purposes.
(Ord. No. 44-845 § 3.21)

ARTICLE 4. FRANCHISE AND LICENSE FEES

Sec. 3.93.260. Application fees.

No franchise shall be issued without submission of an application and payment of a nonrefundable application fee to the city of five thousand dollars. Every franchisee shall also be responsible for payment of any reasonable costs incurred by the city in processing these applications or in adapting or executing a franchise for use by the franchisee to the extent such costs exceed the application fees paid.
(Ord. No. 44-845 § 4.1)

Sec. 3.93.270. Franchise fees.

Every franchisee (but not licensee) shall pay to the city as compensation for the use of the right-of-way pursuant to any franchise granted under this chapter the following franchise fees to the city:

A. Interim Period. From the effective date of the ordinance codified in this chapter to June 30, 2002, franchisees providing communications services either originating or terminating within the city shall pay the sum of one dollar and eighty-one cents per month for each access line served by the franchisee within the city limits ("access line charge"), or at the option of a franchisee, five percent of gross receipts, provided that in no event during this "interim period" shall franchisee's total monthly payment be less than the amount due pursuant to an access line charge.

B. Effective July 1, 2002. Effective July 1, 2002 and thereafter, all franchisees providing communications services either originating or terminating within the city shall pay five percent of gross receipts.

C. Pass Through Services. Every franchisee that provides pass through services within the city who does not otherwise pay a gross receipts fee, shall pay an annual fee of two dollars and fifty cents per linear foot of right-of-way occupied by the franchisee's facilities. Beginning in 2003, the annual fee shall be adjusted in an amount equal to the change in the Consumer Price Index for all Urban Consumers (CPI-U) for the preceding year; this annual rate and the adjustment thereof shall be maintained by the city treasurer.

(Ord. No. 44-845 § 4.2)

Sec. 3.93.280. License fees.

Every licensee shall pay to the city the costs for the use of the right-of-way pursuant to any license granted under this chapter or a right-of-way management ordinance the following license fees to the city:

A. Application Fee. Prior to the grant of a license, an applicant for a license shall submit an application and make payment of a nonrefundable application fee based upon a charge of fifty cents per linear foot of right-of-way to be occupied by the facilities, up to a maximum of five thousand dollars. Every licensee shall also be responsible for payment of any reasonable costs incurred by the city in processing these applications or in adapting or exe-

cuting an agreement for use by the licensee to the extent such costs exceed the application fees paid.

B. License Fee. A licensee shall pay to the city an annual fee based upon two dollars and fifty cents per linear foot of right-of-way occupied by the licensee's facilities. Such annual fee may be adjusted to one dollar and twenty-five cents per linear foot for that portion of the right-of-way for which licensee would otherwise qualify for a minor street permit under the city code. Beginning in 2003, the annual fee shall be adjusted in an amount equal to the change in the Consumer Price Index for all Urban Consumers (CPI-U) for the preceding year; this annual rate and the adjustment thereof shall be maintained by the city treasurer.

(Ord. No. 44-845 § 4.3)

Sec. 3.93.290. Timing of payment of fees.

Unless otherwise agreed to as part of the franchise, all franchise fees shall be due and payable on a monthly basis within thirty calendar days of the last day of each preceding month, except that annual franchise and license fees shall be due and payable for each calendar year in a lump sum on or before July 1 of that calendar year. The annual fee shall be pro rated on a monthly basis from the effective date for the initial year of the franchise or license.
(Ord. No. 44-845 § 4.4)

Sec. 3.93.300. Interest on late payments and under payments.

If any franchise fee, or any portion thereof, is not postmarked or delivered on or before the due date, interest thereon shall accrue from the due date until received, at the applicable statutory interest rate.
(Ord. No. 44-845 § 4.5)

Sec. 3.93.310. Fee statement.

Each franchise fee payment shall be accompanied by a statement showing the manner in which the franchise fee was calculated. If any fee statement is determined to understate the fee owed, then such additional amount owed shall be made with a corrected statement, including interest on such amount as provided herein. Within ninety calendar days following the end of the calendar year, each person that paid a franchise fee shall submit a statement, certified as true, setting forth its gross receipts, and describing what revenues or receipts were included and excluded in the fee calculations for the calendar year, and describing any adjustments made in determining the franchise fee, or if applicable shall submit an accounting of the amount of linear feet of right-of-way occupied by the franchisee's facilities.
(Ord. No. 44-845 § 4.6)

Sec. 3.93.320. No accord and satisfaction.

No acceptance by the city of any franchise fee shall be construed as an accord that the amount paid is in fact the correct amount, nor shall acceptance of any franchise fee payment be construed as a release of any claim of the city.
(Ord. No. 44-845 § 4.7)

Sec. 3.93.330. Maintain records.

Every franchisee shall at all times maintain complete and accurate books of account and records of the business, ownership, and operations of the franchisee with respect to the system in a manner that allows the city to determine whether the franchisee has properly calculated its franchise fee in compliance with this chapter. Should the city reasonably determine that the records are not being maintained in such manner, the franchisee shall correct the manner in which the books and/or records are maintained so that the franchisee comes into compliance with this section for a period of five years. All financial books and records which are maintained in accordance with FCC regulations and the regulations of any governmental entity that regulates utilities in Kansas, and generally accepted accounting principles shall be deemed to be acceptable under this section.
(Ord. No. 44-845 § 4.8)

Sec. 3.93.340. Right of inspection.

The city or its designated representatives shall have the right to inspect, examine or audit, dur-

ing normal business hours and upon reasonable notice, all documents, records or other information that pertains to a franchisee's system and/or franchise fee obligations under this chapter and applicable franchise. In addition to access to the records of the franchisee for audits, upon request, a franchisee shall provide reasonable access to records necessary to verify compliance with the terms of this chapter and any franchise.
(Ord. No. 44-845 § 4.9)

Sec. 3.93.350. Payment of taxes—Franchise fee not a tax.

The franchise fees required herein as part of any franchise shall be in addition to, not in lieu of, all taxes, charges, assessments, licenses, fees and impositions otherwise applicable that are or may be imposed by the city, except that the franchisee shall be entitled to a credit in payment of franchise fees in the amount of any telecommunications service occupation tax due pursuant to Chapter 3.01 of this Code, as may be amended. The franchise fee is compensation for use of the right-of-way and shall in no way be deemed a tax of any kind.
(Ord. No. 44-845 § 4.10)

Sec. 3.93.360. Duty to notify city of resellers.

Within thirty days of a franchisee carrying any communications services of any reseller service provider through the franchisee's facilities, the franchisee shall notify the city of the name and address of such reseller service provider and provide to the city a written commitment as to the payment of franchise fees for the revenues attributable to such reseller service provider.
(Ord. No. 44-845 § 4.11)

Sec. 3.93.370. Sale or lease of conduit.

Except as otherwise may be provided by law, a franchisee shall not lease, sell or authorize the use of any conduit within the city's right-of-way to a nonaffiliated third person for the installation of that person's communications system for any purpose if that person has not obtained a duly issued franchise, or other grant by the city to use the right-of-way and which includes the authority to use or maintain such system.
(Ord. No. 44-845 § 4.12)

Sec. 3.93.380. Bundled services.

Gross receipts from bundled services shall be deemed attributable to services subject to the franchise fee. The burden will be on the franchisee to prove in a manner reasonably acceptable to the city that any receipt or charge is not intended to be included within gross receipts. For the purpose of calculating gross receipts, discounts shall be applied equally to all services; the same percentage of discount shall be applied to each service included in the bundled bill.
(Ord. No. 44-845 § 4.13)

ARTICLE 5. OPEN VIDEO SERVICE

Sec. 3.93.390. Open video service.

If a franchisee, granted a franchise pursuant to this chapter, intends to offer in the city open video services, it shall comply with all applicable federal, state and local laws, including rules of the Federal Communications Commission applicable to such service. The city may in its discretion modify the terms of a franchise or otherwise require a franchisee to obtain a separate franchise to implement such requirements as the city may be authorized to make applicable to a franchisee. This may include a payment of a franchise fee to the city of five percent of the open video system gross revenues, and conditions related to public, educational, and governmental access channels and funding.
(Ord. No. 44-845 § 5)

ARTICLE 6. TRANSFER OF OWNERSHIP

Sec. 3.93.400. Consent of city required.

No franchisee shall sell, transfer, lease, assign, sublet, or dispose of in whole or in part, either by forced or involuntary sale, or by ordinary sale, consolidation, or otherwise, a franchise granted hereunder or any of the rights or privileges granted by such franchise, without the prior written con-

sent of the city. Such consent shall not be unreasonably withheld, delayed or denied. The city reserves the right to be reimbursed for its reasonable costs relating to a transfer of ownership.
(Ord. No. 44-845 § 6.1)

Sec. 3.93.410. Exception to consent requirement.

Any assignment or transfer shall not require consent of the city when the franchise is assigned, sold or transferred between wholly-owned subsidiaries of a parent corporation, provided that the franchisee provides advance written notice to the city. In all such instances, the new franchisee shall be responsible for all franchise requirements and obligations.
(Ord. No. 44-845 § 6.2)

Sec. 3.93.420. Assigning franchise rights, interests and obligations.

Notwithstanding Section 3.93.400, the city acknowledges and agrees that a franchisee may assign or collaterally assign, in whole or in part, its rights, interests and obligations hereunder without limitation to any of its affiliates, any party providing financing to a franchisee, and any successors and assigns of the foregoing without the consent of the city. A franchisee will provide the city with notice of any such assignment. The city agrees that the holder of any security interest shall not be prevented or impeded by the city from enforcing such security interest and shall not terminate the franchise without the prior written consent of the assignee. The city shall execute all consents to assignment and/or acknowledgements of any security interest as are required by a franchisee to give effect to the foregoing. Such acknowledgements may contain an agreement to allow the holder of such security interest to cure defaults by the franchisee under this chapter or a franchise granted pursuant to it and consent to allow the assignment to the successors-in-interest of the holder of such security interest.
(Ord. No. 44-845 § 6.3)

ARTICLE 7. GENERAL CONDITIONS

Sec. 3.93.430. Compliance with laws.

A franchise granted pursuant to terms of this chapter shall include a provision which acknowledges that the city and the franchisee shall comply with all applicable federal, state and local laws, ordinances, regulations and policies, including, but not limited to, all laws, ordinances, regulations and policies relating to construction and use of public property.
(Ord. No. 44-845 § 7.1)

Sec. 3.93.440. Enforcement—Attorney's fees.

The city shall be entitled to enforce this chapter, and, any franchises granted pursuant to it, through all remedies lawfully available, and a franchisee shall pay the city reasonable attorneys' fees in the event that the franchisee is determined judicially to have violated the terms of this chapter or a franchise.
(Ord. No. 44-845 § 7.2)

Sec. 3.93.450. Advertising, signs or extraneous markings.

No franchisee shall place or cause to be placed any sort of signs, advertisements or other extraneous markings, whether relating to a franchisee or any other person or entity on the public right-of-way, except such necessary minimal markings as approved by the city as are reasonably necessary to identify the facilities for service, repair, maintenance or emergency purposes, or as may be otherwise required to be affixed by applicable law or regulation.
(Ord. No. 44-845 § 7.3)

Sec. 3.93.460. Tree protection.

In the attachment, installation, removal, reattachment, reinstallation, relocation or replacement or otherwise of the facilities, franchisees shall comply with the tree pruning ordinance of the city.
(Ord. No. 44-845 § 7.4)

Sec. 3.93.470. Forfeiture of privilege.

In case of failure on the part of a franchisee, its successors and assigns, to comply with any of the material provisions of this chapter or franchise granted hereunder, or if a franchisee, its successors and assigns, should do or cause to be done any act or thing prohibited by or in violation of the material terms of this chapter or a franchise,

the franchisee, its successors and assigns, shall forfeit all rights and privileges permitted herein, and all rights under the franchise shall cease, terminate and become null and void, provided that such forfeiture shall not take effect until the city shall carry out the following proceedings: Before the city proceeds to forfeit a franchise, it shall first serve a written notice upon the franchisee, setting forth in detail the neglect or failure complained of, and the franchisee shall have thirty days thereafter in which to cure the default by complying with the conditions of this chapter or the franchise. If at the end of such thirty day period the city determines that the conditions have not been complied with the city shall take action by an affirmative vote of the city council present at the meeting and voting, to terminate the franchise; setting out the grounds upon which such franchise is to be canceled or terminated. A franchisee may, upon thirty days notice to the city, appeal to district court.
(Ord. No. 44-845 § 7.5)

Sec. 3.93.480. Removal of facilities.

Upon expiration of a franchise, whether by lapse of time, by agreement between a franchisee and the city, or by forfeiture thereof, a franchisee shall remove, at its sole cost, from public property any and all of its facilities that are the subject of its franchise within a reasonable time after such expiration, not to exceed one hundred eighty days, and, it shall be the duty of the franchisee immediately upon such removal to restore the right-of-way from which the facilities are removed to as good a condition as the same were before the removal was effected and as otherwise required by the city. Notwithstanding the foregoing, upon request of a franchisee, the city may allow underground facilities to be left in place when it is not practical or desirable to require removal.
(Ord. No. 44-845 § 7.6)

Sec. 3.93.490. Relocation of facilities.

A. Every franchisee shall promptly locate, remove, relocate or adjust any facilities located in a right-of-way if reasonably necessary and requested by the city for a public project. Such location, removal, relocation or adjustment for a particular public project shall be performed by the franchisee once without expense to the city, its employees, agents, or authorized contractors and shall be specifically subject to rules and regulations of the city pertaining to such; provided, that if the franchisee demonstrates to the satisfaction of the city that the facility was originally established in a private easement that thereafter became part of the right-of-way, the removal, relocation or adjustment shall be without expense to the franchisee. If additional location, removal, relocation or adjustment is the result of the inaccurate or mistaken information of the franchisee, the franchisee shall be responsible for costs associated with such without expense to the city.

B. The franchisee shall not be responsible for the expenses of relocation to accommodate any new public project for private development. The expenses attributable to such a project shall be the responsibility of the third party upon the request and appropriate documentation of the franchisee. Before such expenses may be billed to the third party, the franchisee shall be required to coordinate with the third party and the city on the design and construction to ensure that the work required is necessary and done in a cost effective manner. Upon the request of the franchisee or the third party, the allocation of expenses attributable to the project shall be made in the reasonable determination of the city. Eligible third parties may request to have the city specially assess those expenses billed by the franchisee under this section. The city will use its best efforts, but is not required, to continue to provide a location in the right-of-way for the franchisee's facilities as part of a public project, provided that the franchisee has cooperated promptly and fully with the city in the design of its facilities as part of the public project.

C. Every franchisee shall temporarily remove or raise or lower its wires or other facilities upon request of any other person requesting relocation of facilities and holding a validly issued building or moving permit of the city. The expense of such temporary removal, raising or lowering shall be paid by the party or parties requesting the same, and the franchisee may request such payment in advance. A franchisee shall be given not less than fifteen days written notice from the permit holder detailing the time and location of the moving

operations, and not less than twenty-four hours advance notice from the permit holder advising of the actual operation. The city shall not be liable for any such expense or notice requirement for the moving of houses or structures by the city or its contractors.
(Ord. No. 44-845 § 7.7)

Sec. 3.93.500. Nondiscrimination.

All franchises and licenses shall provide that a franchisee or licensee will not, on the grounds of race, color, sex, religion, national origin, ancestry, disability, or age discriminate or permit discrimination against any person in the use of city facilities or in activities under the franchise or license.
(Ord. No. 44-845 § 7.8)

ARTICLE 8. CONFIDENTIAL INFORMATION

Sec. 3.93.510. Confidential information.

By entering into a franchise, the franchisee acknowledges and agrees that the franchise and certain information required to be filed with the city pursuant to this chapter and such franchise are subject to inspection and copying by the public pursuant to the provisions of the Kansas Open Records Act, K.S.A. 45-215 et seq. To the extent allowed by Kansas law, if requested by a franchisee, the city shall preserve a franchisee's information obtained in the course of a franchisee's use of the right-of-way hereunder as confidential, and with the same degree of care in protecting its own confidential or proprietary information, however, in no event less than reasonable care. It is understood and agreed by a franchisee that the city has the right to disclose information obtained pursuant to this chapter to governmental agencies having requisite governmental or judicial authority over the terms of the franchise, provided that the city has given the franchisee prior written notice of impending disclosure and the franchisee has a reasonable opportunity to seek confidential status or protective order or other such appropriate remedy. The obligations under this Article 8 shall survive termination of such franchise.
(Ord. No. 44-845 § 8)

ARTICLE 9. LIABILITY AND INDEMNIFICATION

Sec. 3.93.520. Protection against harm or damage.

It shall be the responsibility of every franchisee to take adequate measures to protect and defend its facilities in the right-of-way from harm or damage. If the franchisee fails to accurately or timely locate facilities when requested, it has no claim for cost or damages against the city and its authorized contractors unless such party is responsible for the harm or damage by its negligence or intentional conduct. The franchisee shall be responsible to the city and its agents, representatives and authorized contractors for all damages including, but not limited to, delay damages, repair costs, down time, construction delays, penalties or other expenses of any kind arising out of the failure of the franchisee to perform any of its obligations under this chapter or franchise except to the extent the damaged party is responsible for the harm or damage by its negligence or intentional conduct. Provided, however, the city and its authorized contractors shall be responsible to take reasonable precautionary measures including calling for utility locations and observing marker posts when working near a franchisee's system.
(Ord. No. 44-845 § 9.1)

Sec. 3.93.530. City held harmless.

Every franchisee shall hold and save and defend the city its officers, employees, agents and authorized contractors, harmless from and against all claims, damages, expense, liability and costs including attorney fees, to the extent occasioned in any manner by the grant of a franchise to a franchisee or its enforcement by city and franchisee's occupancy including construction, operation, maintenance and use of the right-of-way, except to the extent otherwise specified in Section 3.93.520. In the event a claim shall be made or an action shall be instituted against the city arising from any of the causes enumerated in this section, then upon notice by the city to the franchisee, the franchisee shall assume liability for the defense of

such actions at the cost of the franchisee, subject to the option of the city to appear and defend, at its own cost, any such case.
(Ord. No. 44-845 § 9.2)

ARTICLE 10. INSURANCE

Sec. 3.93.540. Insurance required.

During the term of any franchise, unless specified otherwise, every franchisee shall obtain and maintain insurance coverage at its sole expense, with financially reputable insurers that are licensed to do business in the State of Kansas. Should the franchisee elect to use the services of an affiliated captive insurance company for this purpose, that company shall possess a certificate of authority from the Kansas Insurance Commissioner. The franchisee shall provide not less than the following insurance:

A. Workers' compensation as provided for under any worker's compensation or similar law in the jurisdiction where any work is performed with an employers' liability limit equal to the amount required by law.

B. Commercial general liability, including coverage for contractual liability and products completed operations liability on an occurrence basis and not a claims made basis, with a limit of not less than two million dollars combined single limit per occurrence for bodily injury, personal injury, and property damage liability. The city shall be included as an additional insured with respect to liability arising from the franchisee's operations under this chapter or the franchise.

(Ord. No. 44-845 § 10.1)

Sec. 3.93.550. Certificate of insurance.

A franchisee shall, as a material condition of its franchise, prior to the commencement of any work and prior to any renewal thereof, deliver to the city a certificate of insurance, satisfactory in form and content to the city, evidencing that the above insurance is in force and will not be cancelled or materially changed with respect to areas and entities covered without first giving the city thirty days prior written notice. The franchisee shall make available to the city on request the policy declarations page and a certified copy of the policy in effect, so that limitations and exclusions can be evaluated for appropriateness of overall coverage.
(Ord. No. 44-845 § 10.2)

Sec. 3.93.560. Liability not limited.

Nothing contained in this chapter or an individual franchise shall limit a franchisee's liability to the city to the limits of insurance certified or carried.
(Ord. No. 44-845 § 10.3)

ARTICLE 11. UNLAWFUL TO OPERATE WITHOUT A FRANCHISE

Sec. 3.93.570. Franchise required.

It is unlawful for any person to construct, operate or maintain a communications system or to provide communications services in the city utilizing city rights-of-way without a valid, unexpired franchise or license, unless otherwise specifically authorized under applicable federal or state law. Any person who violates any provisions of this chapter shall be guilty of a misdemeanor and shall be subject to a fine of two thousand five hundred dollars per day. The payment of such fine notwithstanding, all such violators shall be subject to all other applicable provisions of this chapter to the fullest extent allowed by law, including but not limited to the payment of a franchise fee.
(Ord. No. 44-845 § 11)

ARTICLE 12. INVALIDITY AND REMEDIES

Sec. 3.93.580. Validity of provisions.

The invalidity in whole or in part of any provision of this chapter shall not affect the validity of any other provision.
(Ord. No. 44-845 § 12.1)

Sec. 3.93.590. Franchise rights and remedies.

The right and remedies of the parties under a franchise shall be cumulative and in addition to

any other rights and remedies provided by law or equity. A waiver of a breach of any provision thereof shall not constitute a waiver of any other breach. The laws of the State of Kansas shall govern this chapter and any franchises granted hereunder.
(Ord. No. 44-845 § 12.2)

ARTICLE 13. EFFECTIVE DATE

Sec. 3.93.600. Effective date.

This chapter shall be included in the code of the City of Wichita and shall be effective upon passage and publication once in the official city paper.
(Ord. No. 44-845 § 13)

CHAPTER 3.94. ORGANIZED FARMER'S MARKETS

Sec. 3.94.010. Findings and purpose.
Sec. 3.94.020. Definitions.
Sec. 3.94.030. License required.
Sec. 3.94.040. License fees.
Sec. 3.94.050. License nontransferable.
Sec. 3.94.060. License application.
Sec. 3.94.070. Issuance of license.
Sec. 3.94.080. Display of license.
Sec. 3.94.100. Revocation of license.
Sec. 3.94.110. Prohibited acts.
Sec. 3.94.120. Appeals.
Sec. 3.94.130. Enforcement.
Sec. 3.94.140. Violations, penalty.
Sec. 3.94.150. Compliance with state statute.

Sec. 3.94.010. Findings and purpose.

It is hereby found that farmer's markets, as defined herein, operate businesses or conduct activities, in most cases, as retail operations and with a personal profit or non-profit purpose. The Governing Body finds that it is necessary, in the interest of the public health, safety, and welfare, to regulate the time, place, and manner of farmer's market activities within the City. It is the purpose of this chapter, therefore, to control certain farmer's market activities, to require certain licensing procedures, to assist in regulating farmer's markets, to protect consumers, and to protect adjoining property owners as well as the integrity of residential and commercial districts within the City.
(Ord. No. 47-026, § 1, 5-16-06)

Sec. 3.94.020. Definitions.

For the purpose of this chapter, the following words shall have the following meanings, unless the context otherwise requires.

(a) "Farmer's Market" means an outdoor place or market area with a formalized location where more than one Kansas farmer or grower gathers to sell agricultural products they have grown or raised. Other activities and other sellers may be accommodated at the market, but the sale of agricultural products shall be the focal point of the market activity. Other products that may be sold would typically include dried flowers, plants, nursery products, crafts and handicrafts that are made in the home, original artwork and certain prepared foods as approved by the City of Wichita Environmental Services Department, such as baked goods, preserves, pickles and cheese.

(b) "Person" means any individual, corporation, partnership, association or other entity.

(c) "Market Operator" means the person responsible for running and managing the farmer's market on a day-to-day, week-to-week and/or month-to-month basis. The Market Operator is the designated person responsible for operational decisions such as vendor selection and enforcement of the market's adopted and prescribed vendor rules and regulations. The market's rules and regulations must be in accordance with all relevant federal, state and local regulations. A copy of the rules and regulations for the market must be submitted to the City for review before a Farmer's Market license is issued.

(d) "Merchandise" means any agricultural produce, plants, nursery products, flowers, baked goods, handicrafts, goods, wares, food, food products, or any product of any kind that can be bought and sold.

(e) "Transient merchant", "itinerant merchant" or "itinerant vendor" shall be as defined in Chapter 3.95 of the Code of the City of Wichita.
(Ord. No. 47-026, § 2, 5-16-06)

Sec. 3.94.030. License required.

It shall be unlawful for any market operator or person, or any agent, servant or employee to engage in, carry on, or conduct a farmer's market without first having obtained the required license from the City. A separate farmer's market license is required for each location at which a farmer's market is held or conducted.
(Ord. No. 47-026, § 3, 5-16-06)

Sec. 3.94.040. License fees.

(a) An application for a farmer's market license shall be accompanied by a license application fee. Market operators may elect to include participating vendors and sellers who are otherwise required to be licensed by this Chapter as part of the market operator's license (but excluding those vendors or sellers defined in items (c)(i), and (c)(ii) below), or may elect to have participating vendors and sellers who are otherwise required to be licensed by the city separately obtain their required city licenses. The application fees for a farmer's market may be issued by the week, by the month, or on an annual basis per the following fee schedule:

Per week	$50.00
Per month	$75.00
Per 7 month growing season	$150.00

(b) A license shall be valid and effective only for the dates and times of operation set forth in the license, and for not longer than one seven month growing season, and no sales shall be conducted during any other hours on any other dates.

(c) A farmer's market license may be a blanket license for participating vendors, except for the following types of vendors, producers or sellers who are *required* to obtain their own separate City of Wichita license as set forth in the Code of the City of Wichita:

(i) Food vendors, food processors, food establishments or temporary food establishments as defined in State Law and by Chapter 7.22 of the Code of the City of Wichita. When a licensee is applying for said license solely to participate in an organized, city-licensed farmer's market, the license fees as set forth in Chapter 7.22 shall be waived.

(ii) Activities and/or operations of such a nature as to be considered an amusement ride, ride device, circus, carnival, rodeo or wild animal show per the Code of the City of Wichita.

(Ord. No. 47-026, § 4, 5-16-06)

Sec. 3.94.050. License nontransferable.

A license is not transferable to any other market operator, person, firm or corporation and cannot be used for any activity or at a location other than those listed on the application and approved for licensing.

(Ord. No. 47-026, § 5, 5-16-06)

Sec. 3.94.060. License application.

A farmer's market operator shall obtain a license through the City Treasurer's office. A license may be issued only upon the completion of a license application that shall be on a form provided by the City Treasurer. A separate farmer's market license is required for each location at which a farmer's market is held or conducted. The farmer's market application shall contain the following information:

(a) Name, date of birth and contact information of the market operator and applicant;

(b) The name and permanent address of the market operator making application, and, if the market operator is not an individual, the names and addresses of the officers of the corporation or members of the partnership, association, or other entity, as the case may be;

(c) If the market operator is a corporation, the name and permanent address of the market operator's registered agent or office;

(d) Proof of a current sales tax license from the State of Kansas for the market operator and all transient merchant vendors, or proof of exempt status from state sales tax;

(e) Address of the location where the market operator intends to operate the farmer's market;

(f) A brief description and/or listing of the name and nature of the type of business to be conducted and the types and mix of vendors who will participate in the farmer's market activities;

(g) Completed information regarding any and all participating vendors that qualify as "transient merchants" under Chapter 3.95 of the Code of the City of Wichita. Such transient merchant information must be submitted on a form and in detail as required by the City and as provided in

the farmer's market license application. If any transient merchant vendor not included as part of the originally submitted and approved farmer's market license application subsequently participate in a licensed farmer's market, the market operator shall immediately provide the City required information for the vendor or vendors, or shall direct the transient merchant vendor or vendors to obtain required City transient merchant license or licenses. "Transient merchants" who participate in a farmer's market may separately apply for their own license with the City of Wichita if they are not included as part of the farmer's market license application. However, any participating "transient merchant" shall be licensed under either the farmer's market license or under their own separately-obtained "transient merchant" license;

(h) The specific date(s) and times for which the right to operate the farmer's market is desired;

(i) A sketch or drawing of the proposed farmer's market site showing the approximate dimensions of the area being used, the proximity to buildings, parking lots, rights-of-way or other such areas, and a description of any structure, implement, stand, display prop, or other such items used for the farmer's market, including signs, banners or other attention getting devices;

(j) The name, address, telephone number and written permission of the owner, or tenant in possession of the location described in the application, upon which the applicant intends to conduct the farmer's market operation and activities;

(k) A statement as to whether or not the market operator and applicant has within two years prior to the date of the application been convicted of any felony; and

(l) A signed statement from the market operator and applicant indicating that all of the information provided is true and correct.

The requirements of subsection (d) pertaining to providing proof of sales tax license information from the State of Kansas for all vendors and all requirements of subsection (g) shall not apply to any farmer's market operator operating upon City owned property pursuant to a lease or management agreement with the City. Any such market operator shall provide completed information regarding any and all participating vendors as required by the lease or management agreement with the City.
(Ord. No. 47-026, § 6, 5-16-06; Ord. No. 49-267, § 1, 5-8-2012)

Sec. 3.94.070. Issuance of license.

(a) A farmer's market license may be issued only upon completion of the application, payment of required license fees, and a showing that the farmer's market, activity, operator or licensee is not proposing to operate in violation of the prohibited acts stated in Section 3.94.110, or in violation of any state, federal or local law. Application for a farmer's market license shall be made not less than 10 business days prior to the date(s) for which the activity is scheduled. Upon receipt of a properly completed application for a farmer's market license, the City Treasurer shall refer the application to the appropriate city departments for investigation and recommendation regarding issuance of the license.

(b) If a license is not issued, written notice shall be mailed, faxed, electronically issued or hand delivered to the applicant indicating the reason for the denial, and shall also set forth information regarding the right of the applicant to appeal the denial.

(c) The issuance of a license shall not otherwise prohibit enforcement of this chapter or any other laws, and further, shall not authorize the licensee to operate his or her business in violation of the Wichita-Sedgwick County Unified Zoning Code, as set forth in Title 28 of this Code.
(Ord. No. 47-026, § 7, 5-16-06)

Sec. 3.94.080. Display of license.

A licensee shall be required to display the farmer's market license while any activities pursuant to the license are being conducted. The license shall be posted in plain view to all customers or others at the location, and to law enforcement officers and other enforcement officers of the city.
(Ord. No. 47-026, § 8, 5-16-06)

Sec. 3.94.100. Revocation of license.

(a) The Superintendent of Central Inspection may revoke any license issued under this chapter, for any of the following reasons:

(1) Fraud, misrepresentation or false statement contained in the application for license.

(2) Fraud, misrepresentation or false statement made in the course of carrying on the business.

(3) Any violation of the provisions of this chapter.

(4) Any violation of Chapter 7.41 of the City Code, pertaining to the prohibition of loud and unnecessary noise.

(5) Any violation of the provisions of any lease or management agreement with the City of Wichita.

(b) The superintendent of central inspection shall notify the licensee of the revocation of his or her license in writing, setting forth the grounds for revocation, which shall be hand delivered to the licensee, or mailed to the licensee's permanent address appearing on the application. Upon five days' written notice to the person holding any license issued under the provisions of this chapter the Superintendent of Central Inspection shall have authority to revoke the license.

(c) Any person aggrieved by the revocation of a license as provided in this chapter shall have the right of appeal to the city council as set forth in Section 3.94.120(b).
(Ord. No. 47-026, § 9, 5-16-06; Ord. No. 49-267, § 2, 5-8-2012)

Sec. 3.94.110. Prohibited acts.

It is unlawful for any farmer's market operator, seller, grower, producer, food service vendor or transient merchant to:

(a) Conduct business or carry on activities in violation of any zoning requirements of the city, including setback requirements, and as specifically outlined in Art. III, Sect. III-D.6.jj of the Wichita-Sedgwick County Unified Zoning Code;

(b) Create noise in violation of Chapter 7.41 of the city code;

(c) Provide any false or misleading information in completion of any license application;

(d) Fail to obtain permission of the property owner where such activity is being conducted;

(e) Fail to provide, at the request of the purchaser or customer, a written receipt for purchases exceeding $5.00 (five dollars) or as required by the State of Kansas;

(f) Fail to provide any customer, or other such person, her or his name, the name of the company or organization represented, the name of the product, or make any representation as to identity which is false or misleading;

(g) Fail to allow authorized law enforcement officers or other enforcement officers of the city to enter into or upon the premises or to otherwise interfere with any inspection of the premises or business;

(h) Fail to remove any structure, device, trash, or debris caused, created or associated with the farmer's market activities in an outdoor area;

(i) Erect or display more than two (2) temporary signs to generally advertise the farmer's market, with no such sign exceeding 16 square feet in area, or for any seller and/or vendor to erect or display more than one sign or any sign greater than 10 square feet in total area. Sign permits shall not be required for signs as described above. Such signs shall not be erected more than 24 hours prior to the market's opening for sales to the public, and shall be removed within 24 hours of the markets closing for sales to the public. Streamers, pennants, search lights and any device with flashing, blinking, rotating or moving action are prohibited from use, and no sign shall be placed upon the public right-of-way, or within the vision site triangles for public street intersec-

tions or driveways as set forth in the Sign Code (Title 24.04.200 of the Code of the City of Wichita);

(j) Erect or construct any structure, tent, or building greater than 150 square feet in size, unless a building permit for a larger structure, tent or building is obtained;

(k) Conduct business or carry on activities within 50 feet of any driveway entrance or access lane from a public street to an existing business;

(l) Conduct business or carry on activities within the city right-of-way or other publicly owned property;

(m) Conduct business or carry on activities between the hours of 9:00 p.m. and 6:00 a.m. The requirements governing location and placement of farmers markets and activities in subsections (a), (i), (j), (k), (l) and (m) shall not be applicable to farmers markets or farmer's market vendors who participate in a community event which has been approved and issued a permit by the City of Wichita's Community Event Coordinator pursuant to the ordinances of the City of Wichita, or farmer's market events that are authorized by Wichita Festivals, Inc., pursuant to Chapter 3.14 of the Code of the City of Wichita.

(Ord. No. 47-026, § 10, 5-16-06)

Sec. 3.94.120. Appeals.

An applicant or licensee may appeal the decision of the Superintendent of Central Inspection that either denies an application for a license, or revokes a license as provided in Section 3.94.100 (b). Such appeal shall be to the City Council, and must be filed in writing with the city clerk within ten (10) days after the notice of denial or revocation, has been mailed or hand-delivered to an applicant or licensee. The City Council shall conduct the hearing as soon as practical following the submittal of the appeal request, and in accordance with City Council Agenda Process guidelines or procedures established by the City Manager.

(Ord. No. 47-026, § 11, 5-16-06)

Sec. 3.94.130. Enforcement.

In addition to all law enforcement officers of the city, the Superintendent of Central Inspection and all deputies under his or her supervision, and all health officers who are authorized representatives of the Director of the Division of Environmental Services shall have the power to enforce the provisions of this chapter.

(Ord. No. 47-026, § 12, 5-16-06; Ord. No. 49-267, § 3, 5-8-2012)

Sec. 3.94.140. Violations, penalty.

Any person who violates any of the provision of this chapter is guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine not to exceed five hundred dollars ($500). Each day that any violation of this chapter continues shall constitute a separate offense and shall be punishable hereunder as a separate violation.

(Ord. No. 47-026, § 13, 5-16-06)

Sec. 3.94.150. Compliance with state statute.

Nothing in this Chapter shall be interpreted to authorize any person licensed hereunder to transact business as a farmer's market in violation of any state statute governing the conduct of transient merchants and merchant sales, nor shall compliance with the provisions of this Chapter relieve any person from compliance with the state statutes requiring the licensing of transient merchants or merchant sales.

(Ord. No. 47-026, § 14, 5-16-06)

CHAPTER 3.95. ITINERANT MERCHANTS

Sec. 3.95.010. Findings and purpose.
Sec. 3.95.020. Definitions.
Sec. 3.95.030. Exceptions.
Sec. 3.95.040. License required.
Sec. 3.95.050. License fee.
Sec. 3.95.060. License nontransferable.
Sec. 3.95.070. License application.
Sec. 3.95.080. Issuance of license.
Sec. 3.95.090. Display of license.
Sec. 3.95.100. Revocation of license.
Sec. 3.95.110. Prohibited acts.
Sec. 3.95.120. Appeals.
Sec. 3.95.130. Enforcement.
Sec. 3.95.140. Violations, penalty.
Sec. 3.95.150. Compliance with state statute.

Sec. 3.95.010. Findings and purpose.

It is hereby found that transient merchants operate businesses or conduct activities, in most cases, as retail operations or with a personal profit purpose. It is also found that transient merchants have operated temporary businesses or conducted activities in violation of municipal laws, have created traffic and parking problems, have trespassed on property, and have disturbed or annoyed residential and commercial districts. It is further found by the governing body that it is necessary, in the interest of the public health, safety, and welfare, for the governing body to regulate the time, place, and manner of transient merchant activities within the city.

It is the purpose of this chapter to therefore regulate transient merchant activities, to require a licensing procedure, to assist in identifying transient merchants, to protect consumers, and to protect property owners and the integrity of residential and commercial districts within the city.
(Ord. No. 45-685 § 1)

Sec. 3.95.020. Definitions.

For the purpose of this chapter, the following words shall have the following meanings, unless the context otherwise requires:

(a) "Person" means any individual, corporation, partnership, association or other entity.

(b) "Transient merchant," "itinerant merchant" or "itinerant vendor" means any person, as owner, principal officer, agent, servant, or employee, whether a resident of the city or not, who engages in, does or transacts any temporary or transient business of selling and delivering any merchandise within the city, and who, in furtherance of such purpose, hires, leases, uses or occupies any building, structure, motor vehicle, tent, railroad boxcar, boat, public room in hotels, lodging houses, apartments, shops or any real estate within the city, for the exhibition and sale of such merchandise, either privately or publicly. Persons who engage in the business of selling or offering for sale merchandise from locations within doorways, lobbies or areaways shall be included in the definition of these terms and shall be subject to the provision of this chapter only when such sales of merchandise are to pedestrians on or within any public right-of-way.

A person shall be deemed a transient merchant and the requirements of this chapter shall be applicable to such person regardless of whether the person is sponsoring or operating the activity in question or is participating in the activity as a seller or exhibitor.

(c) "Merchandise" means any goods, wares, food, food products, agricultural produce, flowers, or any product of any kind that can be bought and sold.
(Ord. No. 45-685 § 2)

Sec. 3.95.030. Exceptions.

(a) A person engaging in the following activities shall not be considered a transient merchant for the purposes of this chapter, and the licensing provisions required herein shall not apply:

(1) Sales at wholesale to retail merchants by commercial travelers or selling agents in the usual course of business;

(2) Sales of merchandise by exhibiting samples, or by catalogue or brochure for future delivery;

(3) Sales conducted within trade centers, convention centers, shopping malls and exhibition halls located in hotels or motels;

(4) Sales or displays at fairs, expositions, or promotional events where such activity is sponsored by the City, or another governmental entity;

(5) Sales or displays at sales, events, bazaars, athletic events, or concessions primarily sponsored or operated by public or private schools, educational institutions, civic organizations, or not-for-profit organizations

(6) Auctions, as regulated by Chapter 3.36 of this Code;

(7) Garage, or miscellaneous sales, as regulated by Chapter 3.44 of this Code;

(8) Sales of Christmas trees and other seasonal items as regulated by Chapter 3.44 of this Code;

(9) Sales that are considered Street and Sidewalk vending, and are regulated by Chapter 3.97 of this Code;

(10) Sales by Mobile Food Vendors that are regulated by Chapter 3.15 of this Code;

(11) Sales of agricultural products, nursery products and foliage plants through an organized farmer's market;

(12) Isolated sales upon public sidewalks for which a permit has been issued as required by Section 10.04.131 of the City Code;

(13) Sales of newspapers; and

(14) Sales by minors who are not transacting business as an employee or agent of another person or entity that would otherwise require a transient merchant license for such activity.

(b) A transient merchant not otherwise exempted from the provisions of this Chapter shall not be relieved or exempted from the provisions of this Chapter by reason of temporary association with any local dealer, auctioneer, trader, contractor or merchant or by conducting a temporary or transient business in connection with or in the name of any local dealer, auctioneer, trader, contractor or merchant.
(Ord. No. 46-594 § 1; Ord. No. 50-382, § 16, 12-13-16; Ord. No. 52-315, § 10, 12-26-23)

Sec. 3.95.040. License required.

It shall be unlawful for any person or for any agent, servant or employee to engage in, carry on, or conduct the business of a transient merchant without first having obtained a license from the city. Any person conducting the business of a transient merchant upon the premises of a community event where the promoter of such event has obtained a license and complied with the provisions as set forth in Section 3.11.050(c) or 3.11.055(e) of this code, and amendments thereto, shall be considered in compliance with this section.
(Ord. No. 45-685 § 4; Ord. No. 50-553, § 11, 7-18-17)

Sec. 3.95.050. License fee.

(a) Every application for a transient merchant's license shall be accompanied by the appropriate license fee, which shall be according to the following schedule:

(1) Ten dollars for each day, or portion thereof;

(2) Thirty-five dollars for each week;

(3) Fifty dollars for each month; or

(4) One hundred dollars for six months.

(b) A license shall be valid and effective only for the date(s) set out in the license, and only between the hours of seven a.m. and twelve midnight on such date(s), and no sales shall be conducted by any person during any other hours on any date.
(Ord. No. 45-685 § 5)

Sec. 3.95.060. License nontransferable.

A license is not transferable to any other person, firm or corporation and cannot be used for any activity or at a location other than those listed on the application and approved for licensing.
(Ord. No. 45-685 § 6)

Sec. 3.95.070. License application.

A transient merchant may obtain a license through the city treasurer's office. A license may be issued only upon the completion of a license application which shall be on a form provided by the city treasurer. The application shall contain the following information:

(a) Name, date of birth and physical description of applicant;

(b) The name and permanent address of the transient merchant making application, and, if the transient merchant is not an individual, the names and addresses of the officers of the corporation or members of the partnership, association, or other entity, as the case may be;

(c) If the applicant is a corporation, the name and permanent address of the applicant's registered agent or office;

(d) Proof of a current sales tax license from the State of Kansas or proof of exempt status from state sales tax;

(e) Address of the location where the applicant intends to offer merchandise for sale.

(f) A brief description of the name and nature of the business to be conducted and the merchandise to be sold;

(g) The date(s) and times for which the right to do business is desired;

(h) A sketch or drawing of the proposed site showing the approximate dimensions of the area being used, the proximity to buildings, parking lots, right-of-ways or other such areas, and a description of any structure, implement, stand, display prop, or other such items used for the activity, including signs, banners or other attention getting devices;

(i) The name, address, telephone number and written permission of the owner, or tenant in possession of the location described in the application, upon which the applicant intends to offer goods, merchandise, or personal property for sale;

(j) A statement as to whether or not the applicant has within two years prior to the date of the application been convicted of any felony, misdemeanor, or violation of any municipal ordinance regulating transient merchants, and if so, the nature of the offense, the location thereof, and the punishment or penalty assessed therefore; and

(k) A signed statement from the applicant indicating that all of the information provided is true and correct.

(Ord. No. 45-685 § 7)

Sec. 3.95.080. Issuance of license.

(a) A transient merchant's license may be issued only upon completion of the application, payment of fees, and a showing that the business, activity or licensee is not proposing to operate in violation of the prohibited acts stated in Section 3.95.110 or in violation of any state, federal or local law. Application for a transient merchant's license shall be made not less than five business days prior to the date(s) for which the activity is scheduled. Upon receipt of a properly completed application for a transient merchant license, the city treasurer shall refer the application to the appropriate city departments for investigation and recommendation regarding issuance of the license. Such recommendations shall be made and the license either approved or denied within five business days of the receipt of both the properly completed application and the required license fee. The license shall be approved by the superintendent of the office of central inspection, or his or her designee. Failure to make a decision regarding issuance of the license within five business days shall be considered approval of the license.

(b) If a license is not issued, written notice shall be mailed or hand delivered to the applicant indicating the reason for the denial, and shall also set forth information regarding the right of the applicant to appeal the denial.

(c) The issuance of a license shall not constitute approval of the activity or otherwise prohibit enforcement of this chapter or any other laws, and further, shall not authorize the licensee to

operate his or her business in violation of the Wichita-Sedgwick County unified zoning code, as set forth in Title 28 of this Code.

(d) Unless approved by the City of Wichita's community events committee as part of an event which has been issued a community event's permit, no more than four transient merchant licenses will be issued for a zoning lot during the same, or for overlapping time periods. The term "zoning lot" shall be as defined in Title 28 of this Code.
(Ord. No. 46-594 § 2; Ord. No. 52-315, § 11, 12-26-23)

Sec. 3.95.090. Display of license.

A licensee shall be required to display the transient merchant's license while any activities pursuant to the license are being conducted. The license shall be posted in plain view to all customers or others at the location, and to law enforcement officers and other enforcement officers of the city.
(Ord. No. 45-685 § 9)

Sec. 3.95.100. Revocation of license.

(a) The superintendent of the office of central inspection may revoke any license issued under this chapter, for any of the following reasons:

(1) Fraud, misrepresentation or false statement contained in the application for license.

(2) Fraud, misrepresentation or false statement made in the course of carrying on the business.

(3) Any violation of the provisions of this chapter.

(4) Any violation of Chapter 7.41 of the city code, pertaining to the prohibition of loud and unnecessary noise.

(b) The superintendent of central inspection shall notify the licensee of the revocation of his or her license in writing, setting forth the grounds for revocation, which shall be hand delivered to the licensee, or mailed to the licensee's permanent address appearing on the application.

(c) Any person aggrieved by the revocation of a license as provided in this chapter shall have the right of appeal to the city council as set forth in Section 3.95.120(b).
(Ord. No. 45-685 § 10)

Sec. 3.95.110. Prohibited acts.

It is unlawful for any transient merchant to:

(a) Conduct business or carry on activities in violation of any zoning requirements of the city, including setback requirements;

(b) Use any electronic device for amplification in an outdoor area or to otherwise create, or gather people who create, noise sufficient so as to disturb surrounding residential or commercial areas, in violation of Chapter 7.41 of the city code;

(c) Provide any false or misleading information in completion of the license application;

(d) Fail to obtain permission of the property owner where such activity is being conducted;

(e) Fail to provide, at the request of the purchaser or customer, a written receipt for purchases exceeding five dollars;

(f) Fail to provide any customer, or other such person, her or his name, the name of the company or organization represented, the name of the product, or make any representation as to identify which is false or misleading;

(g) Fail to allow authorized law enforcement officers or other enforcement officers of the city to enter into or upon the premises or to otherwise interfere with any inspection of the premises or business;

(h) Fail to remove any structure, device, trash or debris caused, created or associated with the transient merchant's activities in an outdoor area;

(i) Erect or display more than one sign or any sign greater than sixteen square feet in total area; however, a sign permit shall not be required for this single, sixteen square foot sign, and further,

streamers, pennants, search lights and any device with flashing, blinking, rotating or moving action are prohibited from use, and no sign shall be placed upon the public right-of-way;

(j) Erect or construct any structure, tent, or building greater than one hundred fifty square feet in size, unless a building permit for a larger structure, tent or building is obtained;

(k) Conduct business or carry on activities within fifty feet of any driveway entrance or access lane from a public street to an existing business;

(l) Conduct business or carry on activities within the city right-of-way or other publicly owned property;

(m) The business or activities of a transient merchant must be upon property that is accessory to an existing primary use;

(n) Conduct or carry on more than one transient merchant business or activity on the same zoning lot at any one time;

(o) Conduct business or carry on activities other than between the hours of seven a.m. and twelve midnight.

Relating to the location and placement of transient merchant activities, subsections (a), (i), (k), (l) and (n) of this section shall not be applicable to transient merchants who participate in a community event which has been approved and issued a permit by the City of Wichita's community event committee pursuant to the ordinances of the City of Wichita.
(Ord. No. 46-594 § 3)

Sec. 3.95.120. Appeals.

(a) Any applicant who is denied issuance of a license may seek a review and hearing on the denial before the superintendent of central inspection, or his or her authorized designee. Such an appeal must be filed in writing with the city clerk within ten calendar days of the denial stating the specific reasons why the denial is being appealed. Upon receipt of the appeal, a hearing shall be scheduled within five business days. Within five business days following the hearing, the hearing officer shall issue his or her decision in writing. It is the responsibility of the person filing the appeal to provide sufficient information to the city clerk so that such person may be notified consistent with the schedule herein stated. Otherwise, all notices will be sent to the permanent address appearing on the application.

(b) An applicant or licensee may appeal the decision of the superintendent of central inspection which either denies an application for a license, or revokes a license as provided in Section 3.95.100(b). Such appeal shall be to the city council, and must be filed in writing with the city clerk within ten days after the notice of denial or revocation, has been mailed or hand-delivered to an applicant or licensee. The city council shall set a hearing on any appeal at the next regularly scheduled city council meeting.
(Ord. No. 45-685 § 12)

Sec. 3.95.130. Enforcement.

In addition to all law enforcement officers of the city, the superintendent of central inspection and all deputies under his or her supervision, and all health officers who are authorized representatives of the director of the department of environmental health shall have the power to enforce the provisions of this chapter.
(Ord. No. 45-685 § 13)

Sec. 3.95.140. Violations, penalty.

Any person who violates any of the provision of this chapter is guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine not to exceed one thousand dollars. Each day that any violation of this chapter continues shall constitute a separate offense and shall be punishable hereunder as a separate violation.
(Ord. No. 45-685 § 14)

Sec. 3.95.150. Compliance with state statute.

Nothing in this chapter shall be interpreted to authorize any person licensed hereunder to transact business as a transient merchant in violation of any state statute governing the

conduct of transient merchants, nor shall compliance with the provisions of this chapter relieve any person from compliance with the state statutes requiring the licensing of transient merchants. (Ord. No. 45-685 § 15)

CHAPTER 3.96. HOME OCCUPATIONS

Sec. 3.96.010. License required—Fee.

Sec. 3.96.010. License required—Fee.

All persons engaged in a home occupation, and anyone who shall commence a home occupation shall obtain from the city treasurer a license for such home occupation. The fee for such license shall be thirty-five dollars annually. Applications for such license shall require such information as may be necessary to enable the superintendent of central inspection to determine whether such home occupation is in conformance with the ordinance regulating home occupations.
(Ord. No. 45-559 § 1; Ord. No. 37-119)

CHAPTER 3.97. STREET AND SIDEWALK VENDING

Sec. 3.97.010. Definitions.
Sec. 3.97.020. Exceptions.
Sec. 3.97.030. Street and sidewalk vending—License required.
Sec. 3.97.040. License application.
Sec. 3.97.050. License exceptions.
Sec. 3.97.060. License—Display.
Sec. 3.97.070. License fees—Exceptions.
Sec. 3.97.080. License duration, renewal.
Sec. 3.97.090. License denial, suspension, revocation.
Sec. 3.97.100. Food vendors—Special regulations.
Sec. 3.97.110. Street and sidewalk vending—General restrictions.
Sec. 3.97.120. Street vending—Restrictions.
Sec. 3.97.130. Sidewalk vending prohibited—Exemptions.
Sec. 3.97.140. Sidewalk vending in the central business district—Restrictions.
Sec. 3.97.150. Penalty.

Sec. 3.97.010. Definitions.

For the purposes of this chapter, the following words and phrases when used herein shall have the meanings respectively ascribed to them in this section except when the context otherwise clearly indicates:

(a) *"Central business district"* means that area of the City of Wichita bounded by:

(1) Lewis Street, the Arkansas River, Elm Street and Washington Avenue; and

(2) Douglas Avenue from the Arkansas River to Seneca Street.

(b) *"Food"* means any raw, cooked, or processed edible substance, ice, beverage, or ingredients used or intended for use or for sale in whole or in part for human consumption.

(c) *"Person"* means any individual, or any corporation, firm, partnership, association, organization, joint venture, charitable organization or any other group acting as a unit or any representative thereof.

(d) *"Sidewalk or sidewalk area"* means that portion of a street or public right-of-way between the curb lines, or the lateral lines of a roadway and the adjacent property line intended for use by pedestrians.

(e) *"Sidewalk vending"* means engaging in the business of peddling, vending, selling, or displaying for sale any merchandise or food wherein the sale of the said merchandise or food takes place when both the vendor and the vendee are upon a public sidewalk or sidewalk area.

(f) *"Street"* means the entire width between the curb lines or the lateral lines of a roadway or every way publicly maintained when part thereof is open to the use of the public for purposes of vehicular traffic. As used in this chapter, the word "street" shall include any public road, highway, street, avenue, thoroughfare, trafficway, boulevard, alley, lane and any other public way for vehicular traffic by whatever name unless the context clearly indicates otherwise.

(g) *"Street vending"* means engaging in the business of peddling, vending, selling, or displaying for sale any merchandise or food that occurs while the person travels by foot or any type conveyance from house to house or place to place, or is upon any street and/or adjacent to the curb or lateral line of any street, providing that the parking or placing of a vehicle, cart, stand, or temporary contrivance used to store, transport, or display merchandise or food shall not constitute street vending if both the vendor and vendee are upon the sidewalk.

(h) *"Vehicle"* means every device in, upon or by which any person or property is or may be transported or drawn upon a street or highway, and also includes any cart, stand, wagon, or other temporary contrivance used in the course of any vending operation.

(i) *"Vendor"* means any person as defined herein who is engaging in the business of street or sidewalk vending.

(Ord. No. 41-137 § 1; Ord. No. 48-937, § 1, 1-25-11)

Sec. 3.97.020. Exceptions.

This chapter shall not apply to:

(a) Ice cream street vendors, as defined and covered in Chapter 3.89 of this Code.

(b) Persons who take orders for merchandise or food when such merchandise or food is to be delivered to the ultimate consumer on a day subsequent to the date of the sale.

(c) Mobile operations conducted by any milk delivery persons operating in compliance with the law pertaining to such activity.

(d) Selling of merchandise as regulated by Section 10.04.130 of this Code and for which a permit is required as set forth in Section 10.04.131.

(e) Sales by Mobile Food Vendors that are regulated by Chapter 3.15 of this Code.

(Ord. No. 41-137 § 2; Ord. No. 50-382, § 17, 12-13-16)

Sec. 3.97.030. Street and sidewalk vending—License required.

No person shall engage in the business of street or sidewalk vending without first having obtained a license therefore as provided herein. (Ord. No. 41-137 § 3)

Sec. 3.97.040. License application.

Application for the license required herein shall be made to the city treasurer's office pursuant to the procedures set forth in Chapter 3.04 of this code. Such application shall be made on a form provided by the city treasurer's office and shall be accompanied by the appropriate license fee. (Ord. No. 41-137 § 4)

Sec. 3.97.050. License exceptions.

Nothing in this section shall be construed to require a license for:

(a) Any person or business which operates within the limits of interstate commerce when such license might constitute an undue burden on interstate commerce;

(b) For any charitable organization which has existed in the city for at least six months prior to the date of application. (Ord. No. 41-137 § 5)

Sec. 3.97.060. License—Display.

(a) Individual vendors licensed hereunder shall have their licenses on their persons at all times while conducting business. All other vendors hereunder who have representatives who conduct business under the authority of such vendor's license shall require such representatives to carry identification cards stating the name of the company, the name of the representative and the city license number for that vendor. The licensed vendor shall be responsible for the cost of obtaining such identification cards.

(b) The following acts shall be a violation of this chapter:

(1) Failure of any person licensed hereunder to present such license for inspection when requested to do so by any officer of the city, or by any person the licensee is soliciting for sales;

(2) Failure of any representative of a licensed vendor to present such representative's identification card when requested to do so by any officer of the city, or by any person the representative is soliciting for sales;

(3) For any vendor who has representatives to knowingly allow such representative to engage in street vending without obtaining identification cards as set forth in subsection (a), and without carrying such identification cards upon their persons. (Ord. No. 41-780 § 1)

Sec. 3.97.070. License fees—Exceptions.

(a) The following fees shall be required for license to issue, and shall be paid to the city treasurer's office at the time of application:

Per day, per vehicle	$ 6.25
Per month, per vehicle	31.75
Per six months, per vehicle	137.50
Per year, per vehicle	250.00

(b) No fee shall be charged for a license to an honorably discharged veteran who has been a resident of Sedgwick County for six months immediately preceding application for license. (Ord. No. 41-137 § 7)

Sec. 3.97.080. License duration, renewal.

(a) Any license issued pursuant to this chapter shall expire and become null and void at 11:59 p.m. on the last day of the period for which said license was issued.

(b) Any license issued pursuant to this chapter may be renewed with payment of the appropriate fee as set forth in Section 3.97.070 herein, prior to the expiration thereof.

(c) Any license issued pursuant to this chapter shall not include the period of time during which the annual Wichita River Festival is held. Any vendor wishing to engage in the vending of items during the Wichita River Festival should comply with the provisions of Chapter 3.14 of this Code. (Ord. No. 41-137 § 8)

Sec. 3.97.090. License denial, suspension, revocation.

(a) Licenses issuable pursuant to this chapter may be denied, suspended or revoked for any of the reasons set forth in Chapter 3.04 of this code.

(b) Any person who has been denied a license under this Chapter shall have a right of appeal as set forth in Section 3.04.065 of this Code.
(Ord. No. 41-137 § 9)

Sec. 3.97.100. Food vendors—Special regulations.

Before a license shall be issued for vending food, the operation must be approved by the department of health and such approval shall not be given unless the department of health determines that the vehicle being used, if any, is safe, clean and sanitary; that all food has been prepared in a licensed facility, if required; that said food is properly packaged or wrapped; and that it is maintained at suitable temperatures according to recognized standards.
(Ord. No. 41-137 § 10)

Sec. 3.97.110. Street and sidewalk vending—General restrictions.

(a) No street or sidewalk vendor shall use any sound device or sound reproducing or amplifying device in the course of conducting his or her business that is in violation of the provisions set forth in Chapter 5.58 of this Code.

(b) No street or sidewalk vendor shall sell any merchandise or food to any person standing in the street.

(c) No street or sidewalk vendor shall allow their vehicle or stand to obstruct the movement of pedestrians or other vehicles using the street or alley or public right-of-way.

(d) No vending shall be allowed on a street or sidewalk within a public park or on a street or sidewalk abutting a public park unless the vendor has entered into a special agreement with the city through the department of parks and recreation.

(e) No street or sidewalk vendor shall conduct business or carry on activities between the hours of one a.m. and six a.m.
(Ord. No. 41-137 § 11; Ord. No. 49-360, § 1, 10-16-2012)

Sec. 3.97.120. Street vending—Restrictions.

Any person engaged in the business of street vending shall be subject to the following restrictions or prohibitions:

(a) Street vending within the central business district as defined herein shall be prohibited.

(b) Sales may be conducted in residential districts, but no street vendor shall set up a stand or other movable or temporary contrivance on any public street or alley nor shall any street vendor be allowed to cross the lawn or other portions of the premises of others, except upon the duly constituted sidewalks and walks leading directly to the front doors of any residence.

(c) No street vendor shall park a vehicle or series of vehicles on any public street or alley for more than two hundred forty minutes in an eight-hour period at one

location. The parking of a vehicle within three hundred feet of the original location is considered one location.

(d) No street vendor shall sell merchandise or food within two blocks of any public or private school between the hours of seven a.m. and four thirty p.m., Monday through Friday. School governing boards or administrators may make arrangements to provide vending locations on school property.

(e) Street vending shall be conducted in residential districts only between the hours of eight a.m. and eight p.m. on any day, and street vending at any other hours in residential districts is strictly prohibited.

(Ord. No. 41-780 § 2)

Sec. 3.97.130. Sidewalk vending prohibited—Exemptions.

No person shall engage in sidewalk vending or any public sidewalk in the City of Wichita except as allowed in the central business district as defined and provided for in this chapter.
(Ord. No. 41-137 § 13)

Sec. 3.97.140. Sidewalk vending in the central business district—Restrictions.

Sidewalk vending in the central business district as defined in Section 3.97.010(a) of this chapter shall be subject to the following restrictions:

(a) Sidewalk vending shall be limited to the vending of food items only, however, the vending of fresh fruit and vegetables not intended for immediate consumption by the purchaser is prohibited.

(b) Vehicles used in the business of sidewalk vending in the central business district shall be so constructed as to provide a receptacle for all waste material generated by the said vending operation.

(c) There shall be no more than one vending vehicle per side, per city block.

(d) Vehicles used in the said vending operations shall not be:

(1) Left unattended at any time;

(2) Parked or placed within fifteen feet of any intersection;

(3) Parked or placed within twenty-five feet of any fire hydrant;

(4) Parked or placed upon any sidewalk that is less than eight feet side;

(5) Parked or placed in the same location for a period in excess of two hundred forty minutes in an eight-hour period. For the purpose of this paragraph, the same location shall mean any location within two hundred feet, measured in any direction, from the original location.

(Ord. No. 41-137 § 14)

Sec. 3.97.150. Penalty.

Any person who violates any provision of this chapter is guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine not to exceed five hundred dollars. Each day that any such violation of this chapter continues shall constitute a separate offense.
(Ord. No. 41-137 § 15)

CHAPTER 3.98. RESERVED*

*__Editor's note—__Ord. No. 52-315, § 12, adopted Dec. 26, 2023, repealed ch. 3.98, §§ 3.98.010 and 3.98.020, which pertained to laundromats, and derived from Ord. No. 29-739, §§ 1, 2.

Title 4

INTOXICATING LIQUORS AND BEVERAGES*

Ch. 4.04. In General

Ch. 4.12. Cereal Malt Beverages

Ch. 4.16. Private Clubs

*__Cross reference—__As to violations of this title as grounds for revocation of license, see § 3.04.070. As to operating vehicle while under influence of intoxicating liquor, see § 11.40.160. As to sale of beer or cereal malt beverages in Municipal Forum Building, see § 9.12.080. As to intoxication at dance or dance hall, see § 3.28.140. As to suspension of taxicab license, etc. for offenses with respect to intoxicating liquor, see § 3.84.430. As to suspension or revocation of taxicab driver's license for offenses in connection with intoxicating liquor, see § 3.84.570. As to suspension or revocation of license of driver of municipal airport vehicle for offenses in connection with intoxicating liquors, see §§ 3.88.230, 3.88.250.

CHAPTER 4.04. GENERAL PROVISIONS AND PROHIBITED ACTS*

Sec. 4.04.010. Definitions.
Sec. 4.04.015. Enforcement of Title 4 by commissioned law enforcement officers not employed by City of Wichita.
Sec. 4.04.017. Purchase or consumption of alcoholic beverage by minor; penalty; exceptions, use of preliminary breath test to determine violations.
Sec. 4.04.020. Certain sales at retail prohibited, hours of sale, Sunday sales.
Sec. 4.04.025. Alcoholic liquor and cereal malt beverage—Furnishing to minors, incapacitated persons—Prohibited acts.
Sec. 4.04.030. Unlawful hosting of minors consuming alcoholic liquor or cereal malt beverage.
Sec. 4.04.035. Reserved.
Sec. 4.04.040. Consumption and possession of alcoholic liquor and cereal malt beverages in public places prohibited—Exceptions.
Sec. 4.04.045. Exemptions.
Sec. 4.04.046. Reserved.
Sec. 4.04.060. Open saloons prohibited.
Sec. 4.04.070. Acts with regard to alcoholic liquor prohibited, exceptions, serving of complimentary alcoholic beverages at certain events allowed.
Sec. 4.04.075. Nuisances; places and properties operated or used in violation of this chapter.

Sec. 4.04.010. Definitions.

Unless otherwise expressly stated or the context clearly indicates a different intention, the following terms shall, for the purpose of this title, have the meanings indicated in this section. Any term used in this title that is not defined herein shall have the same meaning and definition as set forth in K.S.A. Chapter 41 and amendments thereto. Terms defined in Section 4.12.010 of this Code and amendments thereto shall apply to, and in the event of any conflict, shall take precedence over the definitions in this Section for terms used in Chapter 4.12 of this Code.

(a) *'Alcohol'* means the product of distillation of any fermented liquid, whether rectified or diluted, whatever the origin thereof, and includes synthetic ethyl alcohol but does not include denatured alcohol or wood alcohol.

(b) *'Alcoholic candy'* means the same as defined by K.S.A. 2020 Supp. 41-102 and amendments thereto.

(c) *'Alcoholic liquor'* means alcohol, spirits, wine, beer, and every liquid or solid, patented or not, containing alcohol, spirits, wine or beer and capable of being consumed as a beverage by a human being, but shall not include any cereal malt beverage.

(d) *'Barrier'* means any natural or manmade obstruction which precludes direct traffic, between a church or school and a private club, drinking establishment or a place of business at which cereal malt beverages are sold and is of such a character that it completely separates such establishments, including parking facilities. Barriers include, but are not limited to, rivers, railroad tracks, levees, and drainage ditches.

(e) *'Beer'* modified, or limited by other words, means a beverage, containing more than 3.2% alcohol by weight, obtained by alcoholic fermentation of an infusion or concoction of barley, or other grain, malt, and hops in water and includes beer, ale, stout, lager beer, porter, and similar beverages having such alcoholic content.

(f) *'Beneficial interest'* shall not include any interest a person may have as owner, operator, lessee or franchise holder of any licensed hotel or motel on the premises of which a club or drinking establishment is located.

(g) *'Bus'* means every motor vehicle designed for carrying more than ten passengers and used for transportation of persons; and every motor vehicle, other than a taxicab, designed and used for the transportation of persons for compensation.

(h) *'Caterer'* means an individual, partnership or corporation that sells alcoholic

*__Editor's note—__Ord. No. 50-159 § 1, adopted March 15, 2016, changed the title of Ch. 4.04 from "In General" to "General Provisions and Prohibited Acts."

liquor or cereal malt beverage by the individual drink or domestic beer, and provides services related to the serving thereof, on unlicensed premises that may be open to the public, but does not include a holder of a temporary permit or a special event retailer's permit, selling alcoholic liquor or cereal malt beverage in accordance with the terms of such permit.

(i) *'Cereal malt beverage'* means any fermented but undistilled liquor brewed or made from malt or from a mixture of malt or malt substitute or any flavored malt beverage, as defined in K.S.A. 41-2729, and amendments thereto, but does not include any such liquor which is more than 3.2% alcohol by weight.

(j) *'Class A club'* means a premises which is owned or leased by a corporation, partnership, business trust or association, and which is operated thereby as a bona fide nonprofit social, fraternal or war veterans' club, as determined by the director, for the exclusive use of the corporation stockholders, partners, trust beneficiaries or associates (hereinafter referred to as "members"), and their families and guests accompanying them, as provided in K.S.A. 41-2637 and amendments thereto.

(k) *'Class B club'* means a premises operated for profit by a corporation, partnership or individual to which members of such club may resort for the consumption of food or alcoholic beverages and for entertainment.

(l) *'Club'* means a Class A or Class B club.

(m) *'Common Consumption area'* means a defined indoor or outdoor area which is not otherwise licensed by the Kansas Liquor Control Act or the Club and Drinking Establishment Act where the possession and consumption of alcoholic liquor or cereal malt beverage is allowed pursuant to a common consumption area permit.

(n) *'Crime of moral turpitude'* means a crime involving dishonesty.

(o) *'Director'* means the Director of Alcoholic Beverage Control of the Kansas State Department of Revenue.

(p) *'Distributor'* shall have the meaning ascribed to it by K.S.A. 41-102 and amendments thereto.

(q) *'Domestic beer'* means beer which contains not more than 10% alcohol by weight and which is manufactured in this state.

(r) *'Drinking establishment'* means premises which may be open to the general public over 21 years of age, where alcoholic liquor or cereal malt beverage by the individual drink is sold.

(s) *'Drinking establishment/restaurant'* means premises which may be open to the general public, where alcoholic liquor or cereal malt beverage by the individual drink is sold and which derive not less than 30% of its gross revenues from sales of food and beverages for consumption on such premises in a two-month period. Failure on the part of the licensee to meet the 30% food sales criteria, or conviction of the licensee or any owner, officer, or employee of the licensee of any two violations of Section 4.16.130 of the City Code occurring on the licensed premises within one year shall result in the premises being reclassified as a drinking establishment as provided in Section 4.16.095(c) and any amendments thereto.

(t) *'Drinking establishment/large capacity venue'* means premises which may be open to the general public where alcoholic liquor and cereal malt beverage by the individual drink is sold and which:

(1) Offers entertainment, as that term is defined in Section 4.16.140 of the City Code and amendments thereto;

(2) Has an approved capacity of 850 or more persons; and

(3) Meets all other conditions for such a license as set forth in Section 4.16.140 of the City Code and amendments thereto.

(u) *'Drinking establishment/incidental'* means premises which may be open to the general public where alcoholic liquor and cereal malt beverage by the individual drink is sold and which derive not more than 50% of its gross revenues of overall sales from sales of alcohol for consumption on such premises in a two-month period, and which meets all other conditions for such license as set forth in Section 4.16.145 of the City Code and amendments thereto. Failure on the part of the licensee to meet the 50% alcohol sales criteria, or conviction of the licensee or any owner, officer, or employee, of the licensee or any two violations of Section 4.16.130 of the City Code occurring on the licensed premises within one year shall result in suspension of the license as provided in Section 4.16.095, and any amendments thereto.

(v) *'Employee'* means any person employed by a licensee in the business of selling cereal malt beverages or alcoholic liquor.

(w) *'Food'* means any raw, cooked or processed edible substance or ingredient, other than alcoholic liquor or cereal malt beverage, used or intended for use or for sale, in whole or in part, for human consumption.

(x) *'Gross revenues'* means only that income derived from cereal malt beverages, alcoholic liquor, and other food consumables, except where otherwise stated.

(y) *'Guest or Guests'* means a person or persons to whom a private or personal invitation, as opposed to a public announcement, has been extended for hospitality or entertainment. Paying customers or patrons of any kind of business establishment are not "guests" as the term is used in Section 4.04.040(d) of this Code.

(z) *'Hotel'* has the meaning ascribed to it by K.S.A. 36-501 and amendments thereto.

(aa) *'Individual drink'* means a beverage containing alcoholic liquor or cereal malt beverage served to an individual for consumption by such individual or another individual, but which is not intended to be consumed by two or more individuals. The term "individual drink" includes beverages containing not more than: (1) eight ounces of wine; (2) 32 ounces of beer or cereal malt beverage; or (3) four ounces of a single spirit or a combination of spirits.

(bb) *'Legal age for consumption of cereal malt beverage'* means 21 years of age, except that 'legal age for consumption of cereal malt beverage' shall mean 18 years of age if at any time the provisions of P.L. 98-363 penalizing states for permitting persons under 21 years of age to consume cereal malt beverage are repealed or otherwise invalidated or nullified.

(cc) *'Licensee'* means any person to whom a current license, temporary permit or special event retailer's permit has been issued pursuant to this title authorizing sale of cereal malt beverages and/or alcoholic liquor. This term shall also mean any person to whom a current license or temporary permit has been issued by the Director of Alcoholic Beverage Control pursuant to the Liquor Control Act or the Club and Drinking Establishment Act of the state of Kansas.

(dd) *'Manager'* means the manager or assistant manager, or both, of any establishment licensed under this Title who is in charge of the daily operations of the establishment. A manager shall be deemed to be employed in connection with the dispensing, selling, mixing or serving of alcoholic liquor.

(ee) *'Manufacture'* means to distill, rectify, ferment, brew, make, mix, concoct, process, blend, bottle or fill an original package with any alcoholic liquor, beer or cereal malt beverage.

(ff) *'Manufacturer'* shall have the meaning ascribed to it by K.S.A. 41-102 and amendments thereto.

(gg) *'Minor'* means any person under 21 years of age.

(hh) *'Morals charge'* means a charge involving the sale of sexual relations, buying sexual relations, human trafficking, any crime defined in article 55 of Chapter 21 of the Kansas Statutes Annotated and amendments thereto; violation of K.S.A. 21-5604 and amendments thereto; gambling; bigamy; any violation of Chapter 5.26 of the Code of the City of Wichita and amendments thereto; or any crime defined in Article 57 of Chapter 21 of the Kansas Statutes Annotated and amendments thereto.

(ii) *'Original package'* means any bottle, flask, jug, can, cask, barrel, keg, hogshead or other receptacle or container whatsoever, used, corked, or capped, sealed and labeled by the manufacturer of alcoholic liquor or cereal malt beverage to contain and to convey any alcoholic liquor or cereal malt beverage. Original container does not include a sleeve.

(jj) *'Person'* means any natural person, corporation, partnership, trust or association. As used in Chapter 4.12, 'Person' means any individual, firm, partnership, corporation or association.

(kk) *'Powdered alcohol'* means alcohol that is prepared in a powdered or crystal form for either direct use or for reconstitution in a nonalcoholic liquid.

(ll) *'Premises'* means the specific area described in the license or permit application and approved as the location upon which the cereal malt beverages and/or alcoholic liquor may be sold and/or consumed under the license or permit.

(mm) *'Public assembly area'* means the area of the licensed premises to which the general public has access for purposes including, but not limited to, food and drink consumption, entertainment, recreation, social functions or awaiting transportation.

(nn) *'Retailer'* means a person who is currently licensed under the Kansas Liquor Control Act and sells at retail, or offers for sale at retail, alcoholic liquors, or cereal malt beverages. 'Retailer' does not include a microbrewery, microdistillery or a farm winery, as those terms are defined in K.S.A. 41-102 and amendments thereto.

(oo) *'Sale'* means any transfer, exchange or barter in any manner or by any means whatsoever for a consideration; and includes all sales made by any person, whether principal, proprietor, agent, servant or employee.

(pp) *'Sample'* means a serving of alcoholic liquor which contains not more than: (1) One-half ounce of distilled spirits; (2) one ounce of wine; or (3) two ounces of beer or cereal malt beverage. A sample of a mixed alcoholic beverage shall contain no more than one-half ounce of distilled spirits.

(qq) *'School'* means the use of a site for instructional purposes on an elementary or secondary level, including both public schools as well as private schools that have curriculums similar to those in public schools.

(rr) (1) 'Sell at retail' and 'sale at retail' refer to and mean sales for use or consumption and not for resale in any form and sales to clubs, licensed drinking establishments, licensed caterers or holders of temporary permits.

(2) 'Sell at retail' and 'sale at retail' do not refer to or mean sales by a distributor, a microbrewery, a farm winery, a licensed club, a licensed drinking establishment, a licensed caterer or a holder of a temporary permit.

(ss) *'Special event'* means a picnic, bazaar, fair, festival or similar gatherings or events which have been issued a Community Event permit pursuant to Chapter 3.11 of the Code of the City of Wichita,

where a temporary permit for the sale of cereal malt beverages or alcoholic liquor is issued pursuant to regulations established by this title, and the Kansas Club and Drinking Establishment Act and amendments thereto.

(tt) *'Spirits'* means any beverage which contains alcohol obtained by distillation, mixed with water or other substance in solution, and includes brandy, rum, whiskey, gin or other spirituous liquors, and such liquors when rectified, blended or otherwise mixed with alcohol or other substances.

(uu) *'Temporary permit'* shall have the meaning ascribed to it by K.S.A. 41-2601 and amendments thereto.

(vv) *'To sell'* includes to solicit or receive an order for, to keep or expose for sale and keep with intent to sell.

(ww) *'Vehicle'* means every device in, upon or by which any person or property is or may be transported or drawn upon a highway, except electric personal assistive mobility devices or devices moved by human power or used exclusively upon stationary rails or tracks.

(xx) *'Wine'* means any alcoholic beverage obtained by the normal alcoholic fermentation of the juice of sound, ripe grapes, fruits or berries or other agricultural products, including such beverages containing added alcohol or spirits or containing sugar added for the purpose of correcting natural deficiencies.

(yy) *'Wholesaler'* means a distributor as defined by K.S.A. 41-2701 and amendments thereto.

(Ord. No. 43-700 § 1; Ord. No. 48-353 § 5, 6-23-09; Ord. No. 49-295 § 1, 6-26-12, eff. 7-1-12; Ord. No. 50-159 § 2, 3-15-16; Ord. No. 50-666, § 1, 1-23-18; Ord. No. 50-935, § 1, 3-22-19; Ord. No. 51-588, § 1, 7-13-21; Ord. No. 52-184, § 1, 6-13-23)

Sec. 4.04.015. Enforcement of Title 4 by commissioned law enforcement officers not employed by City of Wichita.

Any law enforcement officer commissioned by the State of Kansas has the legal authority to sign and serve a notice to appear for a violation of Title 4 upon any person when there is probable cause to believe such person has violated or is violating any provision of the title occurring within the city limits of Wichita. A written agreement granting such authority is required between the City of Wichita and the law enforcement agency.
(Ord. No. 52-561, § 2, 10-15-24)

Sec. 4.04.017. Purchase or consumption of alcoholic beverage by minor; penalty; exceptions, use of preliminary breath test to determine violations.

(a) Except with regard to serving of alcoholic liquor or cereal malt beverage as permitted by K.S.A. 41-308a, 41-308b, 41-727a, 41-2610, 41-2652, 41-2704, and 41-2727, and amendments thereto, and subject to any rules and regulations adopted pursuant to such statutes, and as permitted by Section 4.12.140 and 4.16.080 of this Code, and amendments thereto, no person under 21 years of age shall possess, consume, obtain, purchase or attempt to obtain or purchase any alcoholic beverage except as authorized by law.

(b) As used in this section, "alcoholic beverage" means any alcoholic liquor, as defined by Section 4.04.010(b) of the Code of the City of Wichita and amendments thereto, or any cereal malt beverage, as defined by Section 4.04.010(h) of the Code of the City of Wichita and amendments thereto.

(c) Violation of this section by a person 18 or more years of age but less than 21 years of age is a misdemeanor punishable by a minimum fine of $200, and not to exceed $500, or by imprisonment not to exceed 30 days, or by both such fine and imprisonment.

(d) Any person less than 18 years of age who violates this section is a juvenile offender under the Kansas juvenile justice code. Upon adjudication thereof and as a condition of disposition, the court shall require the offender to pay a fine of not less than $200 nor more than $500.

(e) In addition to any other penalty provided for a violation of this section:

(1) The court may order the offender to do either or both of the following:

(A) Perform 40 hours of public service; or

(B) Attend and satisfactorily complete a suitable educational or training program dealing with the effects of alcohol or other chemical substances when ingested by humans; and

(2) Upon a first conviction of a violation of this section, the court shall order the division of vehicles to suspend the driving privilege of such offender for 30 days. Upon receipt of the court order, the division shall notify the violator and suspend the driving privileges of the violator for 30 days whether or not that person has a driver's license.

(3) Upon a second conviction of a violation of this section, the court shall order the division of vehicles to suspend the driving privilege of such offender for 90 days. Upon receipt of the court order, the division shall notify the violator and suspend the driving privileges of the violator for 90 days whether or not that person has a driver's license.

(4) Upon a third or subsequent conviction of a violation of this section, the court shall order the division of vehicles to suspend the driving privilege of such offender for one year. Upon receipt of the court order, the division shall notify the violator and suspend the driving privileges of the violator for one year whether or not that person has a driver's license.

(f) This section shall not apply to the possession and consumption of cereal malt beverage by a person under the legal age for consumption of cereal malt beverage when such possession and consumption is permitted and supervised, and such beverage is furnished, by the person's parent or legal guardian.

(g) A law enforcement officer may request a person under 21 years of age to submit to a preliminary screening test of the person's breath to determine if alcohol has been consumed by such person if the officer has reasonable grounds to believe that the person has alcohol in the person's body except that, if the officer has reasonable grounds to believe the person has been operating or attempting to operate a vehicle under the influence of alcohol, the provisions of K.S.A. 8-1012, and amendments thereto, shall apply. No waiting period shall apply to the use of a preliminary breath test under this subsection. If the person submits to the test, the results shall be used for the purpose of assisting law enforcing officers in determining whether an arrest should be made for violation of this section. A law enforcement officer may arrest a person based in whole or in part upon the results of a preliminary screening test. Such results or a refusal to submit to a preliminary breath test shall be admissible in court in any criminal action, but are not per se proof that the person has violated this section. The person may present to the court evidence to establish the positive preliminary screening test was not the result of a violation of this section.

(Ord. No. 47-055 § 1, 6-27-06; Ord. No. 50-159 § 3, 3-15-16)

Sec. 4.04.020. Certain sales at retail prohibited, hours of sale, Sunday sales.

(a) No alcoholic liquor shall be sold by any person at retail within the corporate limits of the city unless such person shall be licensed therefor by the Kansas Liquor Control Act.

(b) No person shall sell at retail any alcoholic liquor in the original package within the corporate limits of the city:

(1) At or from premises located in areas zoned for more restricted or higher use than "NR" - Neighborhood Retail, under Title 28 of this Code;

(2) At or from premises located within 200 feet of any public or parochial school, college or church; provided, that if any school, college or church shall be established within 200 feet of any retail premises licensed under the provisions of the Kansas Liquor Control Act after such premises have been licensed, then such premises shall be an eligible location for retail licensing;

(3) At or from premises which do not conform to the Wichita-Sedgwick County Uniform Building and Trade Code, that violate the Wichita-Sedgwick County Unified Zoning Code, any city health or fire code, or any of the provisions of this title;

(4) On Easter Sunday, Thanksgiving Day and Christmas Day;

(5) Before 9 a.m. or after 11 p.m. on any day when the sale of alcoholic liquor at retail is permitted; or

(6) On any Sunday other than Easter Sunday before 9 a.m. and not later than 8 p.m.

(c) Any person who violates any of the provisions of this section is guilty of a misdemeanor and upon conviction shall be punished by a fine not to exceed $500 or by imprisonment not to exceed six months, or by both such fine and imprisonment.
(Ord. No. 44-813 § 1; Ord. No. 47-466 § 2, 4-24-07; Ord. No. 47-471 § 1, 5-1-07; Ord. No. 50-159 § 4, 3-15-16; Ord. No. 51-588, § 2, 7-13-21)

Sec. 4.04.025. Alcoholic liquor and cereal malt beverage—Furnishing to minors, incapacitated persons—Prohibited acts.

(a) No person shall furnish alcoholic liquor or cereal malt beverage to a minor.

(1) Furnishing alcoholic liquor or cereal malt beverage to a minor is recklessly, directly or indirectly selling, giving, exchanging, buying for, delivering, distributing or in any way furnishing any alcoholic liquor or cereal malt beverage to, for, on behalf of, or at the request of any minor.

(2) As used in this section, all terms have the meanings provided by Section 4.04.010 of the Code of the City of Wichita, Kansas, and amendments thereto.

(3) Any person violating any of the provisions of this subsection shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not less than $200 nor more than $1,000 or by imprisonment for not more than six months, or by both such fine and imprisonment.

(b) It shall be a defense to a prosecution under this section if:

(1) The defendant is a licensed retailer, club, drinking establishment, tavern, caterer, or holds a temporary permit or a special event retailer's permit, or is an employee thereof; and

(2) The defendant sold the alcoholic liquor or cereal malt beverage to the minor with reasonable cause to believe that the minor was 21 or more years of age; and

(3) To purchase the alcoholic liquor, the minor exhibited to the defendant a driver's license, Kansas nondriver's identification card or other official or apparently official document containing a photograph of the minor and purporting to establish that such minor was 21 or more years of age or of legal age for the consumption of alcoholic liquor or cereal malt beverage.

(c) This section shall not apply to wine intended for use and used by any church or religious organization for sacramental purposes.

(d) This section shall not apply to the furnishing of cereal malt beverage by a parent or legal guardian to such parent's child or such guardian's ward when such furnishing is permitted and supervised by the child's or ward's parent or legal guardian.

(e) No person shall recklessly, directly or indirectly, sell, give away, dispose of, exchange or deliver, purchase or buy for, distribute or permit the sale, gift or procuring of any alcoholic liquor to, for or on behalf of any person who is an

incapacitated person, or any person who is physically or mentally incapacitated by the consumption of such liquor. Violation of this section is a misdemeanor punishable by a fine of not less than $100 nor more than $250 or by imprisonment not exceeding 30 days, or by both such fine and imprisonment.
(Ord. No. 42-104 § 1; Ord. No. 47-055 § 2, 6-27-06; Ord. No. 49-255 § 1, 4-10-12; Ord. No. 49-263 § 1, 4-24-12; Ord. No. 50-159 § 5, 3-15-16)

Sec. 4.04.030. Unlawful hosting of minors consuming alcoholic liquor or cereal malt beverage.

a. Unlawfully hosting minors consuming alcoholic liquor or cereal malt beverage is knowingly or recklessly permitting a person's residence or any land, building, structure or room owned, occupied, leased, rented or procured by such person to be used by an invitee of such person or an invitee of such person's child or ward, in a manner that results in the unlawful possession or consumption therein of alcoholic liquor or cereal malt beverages by a minor.

b. Unlawfully hosting minors consuming alcoholic liquor or cereal malt beverage is a misdemeanor and upon conviction shall be sentenced to a fine of not less than $1,000 nor more than $2,500 and up to one year imprisonment. If the court sentences the offender to perform community or public service work as a condition of probation, the court shall consider ordering the offender to serve the community or public service at an alcohol treatment facility.
(Ord. No. 52-541, § 1, 8-27-24)

Sec. 4.04.035. Reserved.

Editor's note—Ord. No. 50-159 § 9, adopted March 15, 2016, repealed § 4.04.035 which pertained to prohibition of possession of open containers of alcoholic beverages or cereal malt beverages in downtown parks and derived from Ord. No. 43-476 § 1.

Sec. 4.04.040. Consumption and possession of alcoholic liquor and cereal malt beverages in public places prohibited—Exceptions.

(A) It is unlawful for any person within the corporate limits of the city to consume or to have in such person's possession any open container of alcoholic beverage upon the public streets, alleys, roads, sidewalks or highways, or inside vehicles while upon the public streets, alleys, roads or highways except as follows:

(1) Alcoholic liquor or cereal malt beverage may be sold and/or consumed at a special event or catered event held on public streets, alleys, roads, sidewalks or highways, provided that:

(a) such streets, alleys, roads, sidewalks or highways have been closed to motor vehicle traffic by the City Council, and

(b) when any of the following has occurred:

(1) a temporary permit for such event has been issued pursuant to K.S.A. 41-1201 and Section 4.16.154 of this Code and amendments thereto;

(2) when a caterer's licensee has provided the required notification pursuant to K.S.A. 41-2643 and amendments thereto; or

(3) when any business has been authorized to extend its licensed premises into the public street, alley, road, sidewalk or highway pursuant to K.S.A. 41-2608 and amendments thereto and as allowed by Section 4.16.055 of this Code and amendments thereto; and

(c) the consumption of alcoholic liquor or cereal malt beverage at such event has been approved by the City Council pursuant to Section 3.11.065 and amendment thereto.

(2) Alcoholic liquor or cereal malt beverage may be consumed in an area designated as a common consumption area that includes public streets, alleys, roads, sidewalks or highways, provided that:

(a) such streets, alleys, roads, sidewalks or highways have been closed to motor vehicle traffic by the City Council; and

(b) when a common consumption area permit has been issued pursuant to Section 4.08.030 and amendments thereto.

(3) Cereal malt beverage only may be possessed and/or consumed on any city street closed for a community event licensed pursuant to Chapter 3.11 of this Code where a written request for such consumption and possession and the community event are approved by the City Council.

(4) No alcoholic beverage may be consumed inside or on motor vehicles while on public streets, alleys, roads or highways at a special event, a catered event or within a common consumption area.

(5) No person shall remove any alcoholic beverage from inside the boundaries of a special event or a catered event as designated and/or approved by the City Council pursuant to Section 3.11.065 and amendments thereto, or from within an area designated as a common consumption area pursuant to Section 4.08.030 and amendments thereto. The boundaries of a special event, catered event, or common consumption area shall be clearly marked by signs, a posted map or other means which reasonably identify the area in which alcoholic beverages may be possessed or consumed at such special event or catered event or within such common consumption area.

(6) No person shall possess or consume alcoholic beverage or cereal malt beverage inside the premises licensed as a special event, the premises of a catered event or within an area designated as a common consumption area that was not sold or provided by the licensee holding either the special event retailers permit or the temporary permit for such special event, the licensed caterer catering the event, or by an adjacent drinking establishment which has extended its licensed premises into and made a part of the licensed premises for such special event pursuant to K.S.A. 41-1201(f) and amendments thereto and Section 4.16.070 of this Code and amendments thereto, or is participating in a common consumption area pursuant to Section 4.08.030 and amendments thereto.

(7) It shall be unlawful for any person to distribute, sell or allow the consumption of any alcoholic beverage on the streets or sidewalks within any special event, a catered event, or common consumption area without obtaining the approval of the City Council and any and all necessary state and local permits for the sale or consumption of such alcoholic beverages.

(8) Each licensee selling alcoholic liquor or cereal malt beverage for consumption on the premises of a special event for which a temporary permit has been issued shall be liable for violations of all laws governing the sale and consumption of alcoholic liquor or cereal malt beverage.

(9) Any community event which is licensed to allow the sale, possession and/or consumption of alcoholic liquor and/or cereal malt beverage shall comply with the provisions of Section 3.11.065 of this Code and amendments thereto regarding the possession, consumption or sale of such alcoholic liquor and/or cereal malt beverage.

(10) A person may possess alcoholic liquor or cereal malt beverage upon the public streets, alleys, roads or highways, or inside vehicles while upon the public streets, alleys, roads or highways when transporting a container of alcoholic liquor or cereal malt beverage from a licensed premises that is securely resealed as allowed by Section 4.16.158 of this Code and amendments thereto.

(a) As used in this section, "alcoholic beverage" means any alcoholic liquor, as defined by Section 4.04.010(b) of this Code and any amendments thereto, and/or any cereal malt bever-

age as defined by Section 4.04.040(i) of this Code and any amendments thereto.

(b) As used in this section, alcoholic beverage will be considered to be in an open container unless in the original and unopened container, or securely resealed as required by Section 4.16.158 of this Code and amendments thereto.

(c) No person shall consume alcoholic liquor on private property except:

(1) On premises where the sale of liquor by the individual drink is authorized by this title and by the Club and Drinking Establishment Act of the State of Kansas;

(2) Upon private property by a person occupying such property as an owner or lessee of an owner and by the guests of such person, if no charge is made for the serving or mixing of any drink or drinks of alcoholic liquor or for any substance mixed with any alcoholic liquor and if no sale of alcoholic liquor in violation of K.S.A. 41-803 and amendments thereto, takes place;

(3) In a lodging room of any hotel, motel or boarding house by the person occupying such room and by the guests of such person, if no charge is made for the serving or mixing of any drink or drinks of alcoholic liquor or for any substance mixed with any alcoholic liquor and if no sale of such alcoholic liquor in violation of K.S.A. 41-803 and amendments thereto take place;

(4) In a private dining room of a hotel, motel or restaurant, if the dining room is rented or made available on special occasion to an individual or organization for a private party and if no sale of alcoholic liquor in violation of K.S.A. 41-803 and amendments thereto takes place;

(5) On the premises of an unlicensed business as authorized by K.S.A. 41-719(j) and amendments thereto;

(6) On the premises of a manufacturer, microbrewery, microdistillery or farm winery, if authorized by K.S.A. 41 305, 41-308a, 41-308b or K.S.A. 41-354, and amendments thereto;

(7) Any person or entity who is licensed to sell alcoholic liquor in the original package at retail may conduct wine, beer and distilled spirit tastings on the licensed premises or adjacent premises, monitored and regulated by the Division of Alcoholic Beverage Control as set forth in K.S.A. 41-308d and Section 4.05.100 of this Code and amendments thereto; and

(8) On premises designated as a common consumption area by the City Council pursuant to Section 4.08.030 and which have a valid common consumption area permit issued by the Director of the Division of Alcoholic Beverage Control.

(d) No person shall consume or to have in such person's possession any open container of alcoholic liquor on public property except:

(1) On real property *leased* by a city to others under the provisions of K.S.A. 12-1740 through 12-1749, and amendments thereto, if such real property is

actually being used for hotel or motel purposes incidental thereto.

(2) In any state-owned or operated building or structure and on the surrounding premises, which is furnished to and occupied by any state officer or employee as residence.

(3) On premises licensed as a club or drinking establishment and located on property owned or operated by the Wichita Airport Authority.

(4) On property which has been specifically exempted by ordinance the title of which is vested in the City of Wichita.

(5) On premises designated as a common consumption area by the City Council pursuant to Section 4.08.030 and amendments thereto, and which have a valid common consumption area permit issued by the Director of the Division of Alcoholic Beverage Control.

(e) Any property located within the corporate limits of the City of Wichita that is under the control of the Kansas State Board of Regents and the Kansas State Board of Regents has exempted said property from the provisions of K.S.A. 41-719(c) and amendments thereto and said property is not used for classroom instruction.

(f) On the premises of any Kansas national guard regional training center or armory, and any building on such premises, as authorized by rules and regulations of the adjutant general and upon approval of the Kansas military board.

(g) Violation of any provision of this section is a misdemeanor punishable by a fine of not less than $50 nor more than $200 or by imprisonment for not more than six months, or both.

(Ord. No. 39-905 § 3; Ord. No. 48-353 § 6, 6-23-09; Ord. No. 48-548 § 9, 12-1-09; Ord. No. 49-295 § 2, 6-26-12, eff. 7-1-12; Ord. No. 50-159 § 6, 3-15-16; Ord. No. 50-666, § 2, 1-23-18; Ord. No. 51-588, § 3, 7-13-21)

Sec. 4.04.045. Exemptions.

(a) The city, by virtue of the authority contained in K.S.A. 41-719 and amendments thereto, exempts the following properties from any prohibition against consumption of alcoholic liquor on public property contained in K.S.A. 41-719 and amendments thereto, and in Section 4.04.040 of this Code and amendments thereto: CityArts, the education building of the Wichita Area Treatment Education and Remediation (WATER) Center, Sports Hall of Fame, Advanced Learning Library and grounds, Westlink, Evergreen, Ford Rockwell and Lionel Alford Regional Branch Libraries and grounds, Wichita-Sedgwick County Historical Museum, Century II, the Wichita Dwight D. Eisenhower National Airport, Colonel James Jabara Airport, Cowtown, the Wichita Art Museum building and grounds, Mid-America All-Indian Center building and grounds, the former Lawrence-Dumont Stadium and parking lot, the Central Branch Wichita Public Library, the Kansas Aviation Museum (Historic Wichita Municipal Airport), Botanica—the Wichita Gardens all buildings and grounds, Exploration Place building and grounds, the Ice Sports Center of Wichita building and grounds, the Wichita Boathouse building and grounds, the La Familia Senior Community Center, Inc. located at 841 W. 21st St. North building and grounds, and the First Tee Building and outdoor patio to be located at 1034 N. Roosevelt.

(b) The city, by virtue of the authority contained in K.S.A. 41-719 and amendments thereto, exempts the following properties from any prohibition against consumption of alcoholic liquor on public property contained in K.S.A. 41-719 and amendments thereto, and in Section 4.04.040 of this Code and amendments thereto: the Old Town Farm and Art Market, Nomar International Market, the Old Town Cinema Plaza, any open

public property that is owned by the City of Wichita, other than park property as that term is defined in paragraph (c) herein, and is located within the area bounded on the north by the south curb line of Douglas Avenue from the west curb line of Washington Avenue to the east bank of the Arkansas River, thence south to a line designated by the north edge of the Kellogg Flyover, thence east to the west curb line of Washington Avenue and thence north to the south curb line of Douglas Avenue to the point of origin, and any parking lots, parking garages, or parking facilities of any type that are owned by the City of Wichita and are located within the area bounded on the east by the west curb line of Hillside Avenue, on the north by the south curb line of Central Avenue and then the east curb line of Seneca Street and then the south curb line of McLean Boulevard, on the west by the east curb line of Meridian Avenue, and on the south by a line designated by the north edge of the Kellogg Flyover. Provided, however, unless such property is subject to a lease agreement approved by the Wichita City Council, the properties referred to in this subsection shall be considered exempted only under the following circumstances:

(1) When either a community event, temporary entertainment district or common consumption area has been approved by the City Council;

(2) If an activity does not require a community event permit, when the written consent of the City Manager or the Manager's designee has been obtained;

(3) When a license for the sale of alcohol has been issued if such license is necessary, or when licensed caterer has provided the required notification for the premises pursuant to K.S.A. 41-2643 and amendments thereto; and

(4) Any property subject to a lease agreement as set forth above shall be considered exempt at any time and the conditions upon which consumption of alcoholic liquor is allowed shall be subject to the control of the applicable lessee.

(c) The city, by virtue of the authority contained in K.S.A. 41-719 and amendments thereto, exempts all park property from any prohibition against consumption of alcoholic liquor on public property contained in K.S.A. 41-719 and amendments thereto, and in Section 4.04.040 of this Code and amendments thereto. For the purposes of this section, the term "park property" shall mean any real property owned or under the control of the City of Wichita or the Board of Park Commissioners that is designated for use as a park or recreational facility by the City Council, and shall include any property right, easement or other right of use, regardless of nature, when such right is granted or designated, in whole or in part, for use as a park, recreational facility or for other recreational purposes. Provided, however, unless such park property is subject to a lease agreement approved by the Wichita City Council or the Board of Park Commissioners, the park properties referred in this subsection shall be considered exempted only under the following circumstances:

(1) When either a community event, temporary entertainment district or common consumption area has been approved by the City Council;

(2) If an activity does not require a community event permit, when the written consent of the Director of Park and Recreation or the Director's designee has been obtained, or any designated permit subject to any terms and conditions as the Director shall impose has been obtained;

(3) When a license for the sale of alcohol has been issued if such license is necessary, or when licensed caterer has provided the required notification for the premises pursuant to K.S.A. 41-2643 and amendments thereto; and

(4) Any park property subject to a lease agreement as set forth above shall be considered exempt at any time and the conditions upon which consumption of alcoholic liquor is allowed shall be subject to the control of the applicable lessee.

(Ord. No. 45-732 § 1; Ord. No. 44-640 § 1; Ord. No. 48-353 § 7, 6-23-09; Ord. No. 48-548 § 10,

12-1-09; Ord. No. 48-791 § 1, 8-10-10; Ord. No. 49-263 § 1, 4-24-12; Ord. No. 49-840 § 1, 10-14-14; Ord. No. 50-159 § 7, 3-15-16; Ord. No. 50-267 § 1, 6-14-16; Ord. No. 50-666, § 3, 1-23-18; Ord. No. 50-804, § 1, 6-26-18; Ord. No. 50-935, § 2, 3-22-19; Ord. No. 51-042, § 1, 5-21-19; Ord. No. 51-127, § 1, 11-12-19)

Sec. 4.04.046. Reserved.

Editor's note—Ord. No. 51-588, § 34, adopted July 13, 2021, repealed § 4.04.046, which pertained to additional exemptions, and derived from Ord. No. 51-044, § 1, adopted May 28, 2019.

Sec. 4.04.060. Open saloons prohibited.

(a) It is unlawful for any person to own, maintain, operate or conduct, either directly or indirectly, an open saloon within the corporate limits of the city.

(b) For the purposes of this section, the words "open saloon" mean a place, public or private, where alcoholic liquor is sold or offered or kept for sale by drinks in any quantity of less than one hundred millimeters (3.4 fluid ounces) or sold or offered or kept for sale for the consumption on the premises where sold but does not include any premises where the sale of liquor is authorized by this title and by the Club and Drinking Establishment Act or, on and after January 1, 1988, any manufacturer, microbrewery, microdistillery or farm winery, if authorized by K.S.A. 41-305, 41-308a, 41-308b or Section 2 of 2012 Substitute for House Bill 2689, and amendments thereto.

(c) Any violation of the provisions of this section is a misdemeanor punishable by a fine of not more than five hundred dollars and by imprisonment for not more than ninety days. (Ord. No. 39-905 § 4; Ord. No. 49-295 § 3, 6-26-12, eff. 7-1-12)

Sec. 4.04.070. Acts with regard to alcoholic liquor prohibited, exceptions, serving of complimentary alcoholic beverages at certain events allowed.

No person shall manufacture, bottle, blend, sell, barter, transport, deliver, furnish or possess any alcoholic liquor for beverage purposes, except as specifically provided in this title and by the Kansas Liquor Control Act, by the Kansas Club and Drinking Establishment Act, or Article 27 of Chapter 41 of the Kansas Statutes Annotated, and amendments thereto, except that nothing contained in this act shall prevent:

(a) The possession and transportation of alcoholic liquor for the personal use of the possessor, the possessor's family and guests except that the provisions of this title and K.S.A. 41-407 and amendments thereto shall be applicable to all persons;

(b) The making of wine, cider, or beer by a person from fruit, vegetables or grains, or the product thereof, by simple fermentation and without distillation, if it is made solely for the use of the maker and the maker's family;

(c) Any duly licensed practicing physician or dentist from possessing or using alcoholic liquor in the strict practice of the medical or dental profession;

(d) Any hospital or other institution caring for sick and diseased persons, from possessing and using alcoholic liquor for the treatment of bona fide patients of such hospital or institution;

(e) Any drugstore employing a licensed pharmacist from possessing and using alcoholic liquor in the compounding of prescriptions of duly licensed physicians;

(f) The possession and dispensation of wine by an authorized representative of any church for the purpose of conducting any bona fide rite or religious ceremony conducted by such church;

(g) The sale of wine to a consumer in this state as allowed in K.S.A. 41-104(g) and amendments thereto;

(h) The serving of complimentary alcoholic liquor or cereal malt beverages at fund raising activities of charitable organizations as defined by K.S.A. 17-1760, and amendments thereto, and as qualified pursuant to 26 U.S.C.A. § 501(c) and by committees formed pursuant to K.S.A.

25-4142 et seq., and amendments thereto. The serving of such alcoholic liquor at such fund raising activities shall not constitute a sale pursuant to this title, the Kansas Liquor Control Act, the Club and Drinking Establishment Act or article 27 of chapter 41 of the Kansas Statutes Annotated, and amendments thereto. Any such fund raising activity shall not be required to obtain a license or a temporary permit pursuant to this title, the Kansas Liquor Control Act, the Club and Drinking Establishment Act or article 27 of chapter 41 of the Kansas Statutes Annotated, and amendments thereto; or

(i) The serving of complimentary alcoholic liquor or cereal malt beverage on the unlicensed premises of a business by the business owner or owner's agent at an event sponsored by a nonprofit organization promoting the arts and which has been approved by ordinance or resolution of the City Council and whereby the Director of the Alcoholic Beverage Control has been notified thereof no less than 10 days in advance.

(Ord. No. 39-905 § 5; Ord. No. 50-159 § 8, 3-15-16)

Sec. 4.04.075. Nuisances; places and properties operated or used in violation of this chapter.

Any room, house, building, boat, vehicle, airplane, structure or place of any kind where alcoholic liquors are sold, manufactured, bartered or given away, in violation of this Chapter, or any building, structure or boats where persons are permitted to resort for the purpose of drinking alcoholic liquors in violation of this Chapter, or any place where such liquors are kept for sale, barter or gift in violation of this Chapter, and all such liquors and all property kept in and used in maintaining such a place, are each and all of them hereby declared to be a common nuisance. Any person who maintains or assists in maintaining such common nuisance is guilty of a misdemeanor and shall be punished and subject to the legal process as set forth in K.S.A. 41-805 and amendments thereto.

(Ord. No. 50-159 § 9, 3-15-16)

CHAPTER 4.08 COMMON CONSUMPTION AREAS

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Sec. 4.08.005. Title.

The title of this Chapter shall be "Common Consumption Areas."
(Ord. No. 50-665, § 1, 1-23-18)

Sec. 4.08.010. Purpose.

It is the purpose of this Chapter to allow, by a Resolution approved by the City Council, the establishment of one or more common consumption areas within the City.
(Ord. No. 50-665, § 2, 1-23-18; Ord. No. 52-760, § 1, 7-15-25)

Sec. 4.08.020. Permit application.

(A) The City, a person who is a Kansas resident, or an organization or business that has its principal place of business in Kansas, who desires to hold a permit authorizing the consumption of alcoholic liquor or cereal malt beverages in an area, which is not otherwise subject to a license issued pursuant to the Kansas Liquor Control Act or the Club and Drinking Establishment Act, shall complete an application upon forms provided by the City Treasurer's Office. Such completed form and all applicable fees shall be filed with the City Treasurer's Office. The applicant shall provide all information requested by such forms and should allow a minimum of thirty (30) days for review of and approval of a properly completed application.

The permit application shall include the following information:

(1) The name and address of the applicant.

(2) If a corporation, a copy of the Articles of Incorporation and Bylaws and a list of all directors and officers of the corporation.

(3) A detailed and legible map of the proposed common consumption area including: location of any physical barriers and/or signage designating the consumption area, entrances and exits, location of attached licensed premises, identification of licensed premises that are adjacent but not to be attached to the proposed common consumption area, the current zoning classification for any proposed common consumption area and approximate location of security personnel.

(4) A detailed description of security arrangements within the proposed common consumption area.

(5) A list of dates, days of the week and hours of operation of the proposed common consumption area.

(6) Documentation showing possession and/or control of the proposed common consumption area, i.e., lease, use agreement or deed.

(7) The type of alcoholic liquor or cereal malt beverages to be consumed and the means or method which will be used to sell, dispense or distribute alcoholic liquor or cereal malt beverages to be consumed in the proposed common consumption area.

(8) The identity of the on-site supervisors or managers responsible for the proposed common consumption area.

(9) The name and address of any establishment licensed to sell alcoholic liquor or cereal malt beverages for consumption on the premises thereof, which is adjacent to the proposed common consumption area and which has or will obtain authorization from the Kansas Alcoholic Beverage Control to be attached to the proposed common consumption area.

(10) The name and address of any licensee who is or will be authorized by the Kansas Alcoholic Beverage control to participate in the proposed common consumption area.

(11) A list of all public streets, alleys, roads, highways and/or street rights-of-way within the proposed area and a statement as to whether such public streets, alleys, roads, highways and/or street rights of way will be closed to motor vehicle traffic during the period when consumption of alcoholic liquor or cereal malt beverages is authorized within the proposed common consumption area.

(12) An insurance certificate of general liability and liquor liability by an insurance company authorized to do business in the State of Kansas, which policy includes the City of Wichita, its officers and agents as named insureds and which provides general liability coverage in an amount not less than $1 million ($1,000,000) dollars per occurrence and a minimum of one hundred thousand ($100,000) dollars property damage per occurrence. Proof of insurance shall be submitted to the City prior to issuance of the permit and continued maintenance of this insurance shall be a condition of the permit.

(13) A plan as to how the permit holder will prevent off-premises consumption of alcoholic liquor or cereal malt beverages and the consumption of alcoholic liquor or cereal malt beverages by minors as part of the proposed common consumption area.

(14) A licensing fee of one hundred ($100) dollars shall accompany all applications. Such fee shall not be required if the City of Wichita is the applicant.

(B) Upon receipt of the application, application fee and all other necessary documents, the City Treasurer shall forward the application to the following departments for review and comment: Wichita Transit, Wichita Police Department, Wichita Fire Department, Wichita Law Department, Metropolitan Area Planning Department, and Wichita Parks Department. Such departments shall review the applications and accompanying documents within thirty (30) days of receipt from the City Treasurer's office. The departments shall provide written comments to the City Manager's Designee to be included in final staff recommendations to the City Council for its consideration in approving or denying the request to establish a common consumption area. The City Manager or designee will assist the applicant with addressing concerns noted by staff following their review.

(C) Following review of the application by city staff, the applicant will be notified of the hearing date scheduled before the City Council. The applicant will mail, by first class mail, notification of the public hearing, on a form provided by the City Treasurer, to all owners of record of real property located within two hundred (200) feet of the area proposed for the common consumption area. If the owner of the property is not the applicant, the applicant shall provide written notice to the owner of said property. The written notice required herein shall be placed in the mail with the postmark to be not less than ten (10) days prior to the date of the public hearing. The applicant shall be responsible for all costs associated with such notification required by this section. A certificate of mailing will be filed with the City Manager or designee at least five (5) days before the council hearing on the application.

(Ord. No. 50-665, § 3, 1-23-18; Ord. No. 51-588, § 4, 7-13-21; Ord. No. 52-760, § 2, 7-15-25)

Sec. 4.08.030. Authorization by City Council.

(A) Following the review of the application by city staff, the City Council shall review the application for the designation of a common consumption area, recommendations of city staff and may, by Resolution authorize the possession and consumption of alcoholic liquor or cereal malt beverages in designated common consumption areas. In determining if approval should be given, the City Council shall consider the following factors:

(1) The adequacy of security to be provided in the common consumption area.

(2) The proposed closure of any street, alley or roadway and whether such closure would cause significant hardship to pedestrians or vehicle traffic. Alternative routes must be available for public, transit and emergency vehicles.

(3) The zoning classification for the proposed consumption area and the compatibility of the consumption area with other uses near the location. Special consideration should be given regarding compatibility issues of applications which propose a common consumption area within three hundred (300) feet of any residential zoning district, public park, public or parochial school, church or other place of worship.

(4) No common consumption area will be approved at or on premises located in areas zoned for more restricted uses than LC - Limited Commercial pursuant to the Wichita-Sedgwick County Unified Zoning Code.

(5) No common consumption area will be approved at or on premises which do not conform to the Wichita-Sedgwick County Unified Building and Trade Code, health, housing or fire codes of the City of Wichita or any provision of the Wichita-Sedgwick County Unified Zoning Code.

(6) The distance between the proposed common consumption area and other common consumption areas approved by the City.

(7) Any protests or concerns expressed by neighborhood, businesses, residents or other citizens regarding the proposed common consumption area.

(8) The city staff's review and comments of the proposed application.

(9) If the application is for a renewal, the Wichita Police Department, Wichita Fire Department, and Metropolitan Area Planning Department shall provide the City Council with a report of all calls for service and number of arrests or citations issued for offenses occurring in or upon the designated common consumption area and the areas immediately adjacent to the common consumption area which are part of the common consumption area.

(10) No common consumption area permit shall be approved to authorize the consumption of alcoholic liquor or cereal malt beverages prior to 9:00 a.m. or after midnight. The provisions of this section shall not apply to events scheduled between 8:00 a.m. on December 31st through 8:00 a.m. on January 1st of any year.

(11) In addition, no common consumption area permit shall be issued to:

(a) A person who has been convicted of or has pled guilty to a felony within the five (5) years preceding the application under the laws of this state or any other state or of the United States;

(b) A person who has had a liquor license revoked for cause under the provisions of Article 26 of Chapter 41 of the Kansas Statutes Annotated;

(c) A person who has been convicted of or has pled guilty to being the keeper or is keeping or has forfeited bond to appear in court to answer charges of being a keeper of any property, whether real or personal, where sexual relations are being sold or offered for sale by a person who is eighteen (18) years of age;

(d) A person who has been convicted of or has pled guilty to being a proprietor of a gambling house or of pandering or other crimes or misdemeanors opposed to decency and morality or shall have forfeited bond to appear in court to answer charges for any such violations;

(e) A person who is not at least twenty-one (21) years of age;

(f) A person who, other than as a member of the governing body of

the City of Wichita or of Sedgwick County, appoints or supervises any law enforcement officer, or who is a law enforcement official;

(g) A person who intends to carry on the business authorized by the permit as agent of another;

(h) A person who at the time of application for renewal of any permit issued hereunder would not be eligible for such license upon a first application; and

(i) Any person, if the spouse of such person would be ineligible to receive such a license hereunder for any reason other than citizenship, or age, except that this subsection shall not apply in determining eligibility for a renewal permit or to a person whose spouse is a law enforcement officer.

If the City Council determines that the application for designation of a common consumption permit is to be approved, the City Council will adopt a Resolution setting forth the area designated as a common consumption area, the times, dates and/or days of the week that consumption of alcoholic liquor or cereal malt beverages may be consumed in such area, a list of all public streets, alleys, roads, highways and rights-of-way which may be closed and providing that all rules and regulations set forth in this chapter are to be complied with by the permit holder. The City Clerk shall provide the applicant a certified copy of the Resolution and submit a copy of the Resolution to the Director of the Alcoholic Beverage Control ("ABC") within ten (10) business days of approval by the City Council.

The Resolution approved by the City Council and the permit issued are for a period not to exceed one year. Staff shall provide a report to the City Manager regarding the status of a permitted common consumption area following an initial permit being in effect for six months. Such report shall contain information regarding any police incidents or reports of unlawful consumption of alcoholic liquor or cereal malt beverages occurring within the six-month period. Such permits are not transferrable or assignable.

(Ord. No. 50-665, § 4, 1-23-18; Ord. No. 51-588, § 5, 7-13-21; Ord. No. 52-760, § 3, 7-15-25; Ord. No. 52-797, § 1, 8-26-25)

Sec. 4.08.040. Regulations for common consumption areas.

(A) In conformance with state law and regulations adopted by the Alcohol Beverage Commission, all common consumption areas must be clearly marked using a physical barrier or a clearly apparent line of demarcation to distinguish the areas where consumption is allowed. Every common consumption area shall have signs conspicuously posted identifying the boundaries of such area in a size and manner that provides notice to persons entering or leaving the area.

(B) All alcoholic liquor or cereal malt beverages consumed in a common consumption area is to have distinctively different containers than those in which non-alcoholic drinks are served.

(C) In approved common consumption areas, alcoholic liquor or cereal malt beverages shall not be served or consumed in glass bottles, glass containers or glass vessels.

(D) Only properly licensed and zoned alcoholic liquor and cereal malt beverage licensees may participate in a common consumption area. If multiple alcoholic liquor or cereal malt beverage licensees are participating in the common consumption area, each licensee and/or vendor must serve their alcoholic liquor or cereal malt beverage in distinctive containers which identify such vendor or licensee.

(E) The permit holder shall provide to the City Treasurer a copy of the common consumption area permit issued by the Director of Alcoholic Beverage Control within ten (10) business days of issuance of the permit by the Director of Alcoholic Beverage Control. The permit holder shall promptly notify the City Treasurer within five (5) business days of service of any administrative actions or amendments to the common consumption area permit issued by the Director of the Alcoholic Beverage Control.

(F) The permit holder and all adjacent licensees shall comply with all rules and regulations issued by the Director of the Alcoholic Beverage Control relating to the common consumption area.

(G) All licensees immediately adjacent to or located within a common consumption area, who have requested that the licensee's premises participate in the common consumption area, must request and have received permission to participate in the common consumption area from the Director of Alcoholic Beverage Control. It is the responsibility of the permit holder and approved licensees to provide to the City Treasurer notification of any change, deletion or addition of licensees who are participating in the common consumption area. Such written notification must be received within ten (10) business days of any such change in licensees participating in the area.

(H) The permit holder shall take all reasonable steps necessary to ensure that no consumption of alcoholic liquor or cereal malt beverage occurs prior to 9:00 a.m. or after midnight in the common consumption area.

(I) Any licensee participating in a common consumption area shall be liable for all violations of laws governing the sale and consumption of alcoholic liquor or cereal malt beverages that occur on the licensee's premises.

(J) The common consumption area permit holder shall be liable for violations of all laws governing the sale and consumption of alcoholic liquor or cereal malt beverages which occur off the premises of licensees who have requested and received permission to participate in a common consumption area but within the common consumption area identified in the permit.

(K) The common consumption permit holder is responsible for obtaining and placing any barricades necessary for any approved streets, alleys, roads, highways and/or street rights-of-way closure and for removing the barricades promptly after the times approved for such common consumption area.

(L) If the area designated as a common consumption area is to be included within the area approved for a community event, such area must be properly permitted to allow for the sale of alcoholic liquor or cereal malt beverages during such event. The issuance of a community event permit or common consumption area permit does not relieve any person from the obligation to obtain any other permit, license or pay any additional fees required by the City of Wichita or other governmental entity or department of the City of Wichita for the temporary sale of alcoholic liquor and/or cereal malt beverages within the designated common consumption area.

(M) Any public street, alley, road or highway within a common consumption area that is required to be closed by the Resolution adopting the common consumption area shall be closed to vehicle traffic during the period of time consumption of alcoholic liquor or cereal malt beverages has been authorized.

(N) No person shall remove or be allowed by the permit holder to remove any alcoholic liquor or cereal malt beverage from inside the boundaries of a common consumption area.

(O) No person shall possess, consume or be allowed by the permit holder to possess or consume alcoholic liquor or cereal malt beverages inside the premises designated as a common consumption area that was not sold or provided by a licensee of an adjacent establishment which is participating in the common consumption area or which were not sold or provided by a permit holder with a special event retailers permit, a caterer's license or a temporary permit for a special event which includes the common consumption area.

(1) Permit the possession or consumption of alcoholic liquor or cereal malt beverages by a minor on premises subject to a common consumption area permit.

(2) It shall be a defense to a prosecution of a common consumption area permit holder, or any owner, officer, or employee thereof, under Subsection (A) that in order to possess or consume the alcoholic liquor or cereal malt beverage upon the premises, the minor exhibited to the defendant a driver's license, Kansas non-driver's identification card or other official or apparently official document that reason-

ably appears to contain a photograph of the minor and purporting to establish that such minor was twenty-one (21) or more years of age.

(3) Violation of this section is a misdemeanor punishable by a fine of not less than one hundred ($100) dollars and not more than five hundred ($500) dollars or imprisonment not exceeding six months, or by both such fine and imprisonment.

(Ord. No. 50-665, § 5, 1-23-18; Ord. No. 51-588, § 6, 7-13-21; Ord. No. 52-183, § 1, 5-23-23; Ord. No. 52-760, § 4, 7-15-25)

Sec. 4.08.045. Licensee participation and regulations.

(A) A common consumption area permit allows the possession and consumption of alcoholic liquor and cereal malt beverages in the designated common consumption area.

(B) No sales of alcoholic liquor or cereal malt beverage may occur within the permitted common consumption area, except as follows:

An establishment that is licensed to sell alcoholic liquor and/or cereal malt beverages for possession and consumption on a premises that is within or immediately adjacent to the permitted common consumption area may allow its legal patrons to remove alcoholic liquor and/or cereal malt beverages purchased on its licensed premises into the common consumption area, as follows:

(1) After receiving written approval from ABC to participate in a common consumption area, the establishment/licensee shall apply for and maintain a common consumption area participant permit.

(2) To apply for the permit, the establishment/licensee shall submit to the City a completed common consumption area participant permit application form, a copy of the ABC approval, and a $250 non-refundable fee.

(3) If approved, the common consumption area participant permit term shall coincide with the term of the common consumption area permit issued by the ABC, subject to termination by the City for failure to abide by this Chapter or by the rules and regulations of the Alcohol Beverage Commission.

(4) If the establishment/licensee no longer intends to participate in the common consumption area after obtaining the common consumption area participant permit, the establishment/licensee shall provide a copy of the ABC withdrawal form to the City within 48 hours of submission to the ABC.

(5) If approved, the establishment/licensee shall post the ABC approval and common consumption area participant permit in a conspicuous place on the establishment's premises at all times.

(C) The establishment/licensee must ensure that the common consumption area permit is in effect prior to allowing patrons to possess or consume alcoholic liquor or cereal malt beverages in the common consumption area.

(D) All establishments/licensees shall at all times comply with laws, ordinances, regulations and permit requirements related to the purchase, sale and consumption of alcoholic liquor and cereal malt beverages. All establishments/licensees shall be liable for all violations of laws governing the sale and consumption of alcoholic liquor or cereal malt beverage that occur on the establishment/licensee's premises.

(Ord. No. 52-797, § 2, 8-26-25)

Sec. 4.08.050. Right of entry and inspection.

The right of immediate entry to and inspection of any premises where the common consumption of alcoholic liquor or cereal malt beverages has been allowed by Resolution of the City Council by any duly authorized officer or agent of the city, or by any law enforcement officer, shall be a condition on any permit issued and the application for and acceptance of any permit shall conclusively be deemed to be the consent of the applicant and/or permit holder to such immediate entry and inspection. Such consent shall not be revocable during the term of the permit. Such right of immediate inspection shall be at any

time when the premises are occupied and is not limited to hours when common consumption is authorized. Refusal of such entry shall be grounds for revocation of the permit.
(Ord. No. 50-665, § 6, 1-23-18; Ord. No. 51-588, § 7, 7-13-21; Ord. No. 52-760, § 5, 7-15-25)

Sec. 4.08.060. Closing hours.

Except as otherwise authorized by this Chapter, no common consumption permit holder shall allow the consumption of alcoholic liquor or cereal malt beverage on its premises between the hours of midnight and nine a.m.

At closing time:

(1) The lights are to be fully illuminated;

(2) The music, dancing or other live entertainment is to be stopped; and

(3) All alcoholic liquor and cereal malt beverage is to be removed from all tables and no patron shall be in possession of any alcoholic liquor or cereal malt beverage.

(Ord. No. 50-665, § 7, 1-23-18; Ord. No. 51-588, § 8, 7-13-21)

Sec. 4.08.070. Revocation of permit.

(A) The City Council shall immediately revoke the permit of any permit holder whenever the state permit of the permit holder is revoked by the state for any reason.

(B) The City Council, upon five (5) days' written notice to a person holding a common consumption permit, may assess an administrative penalty not to exceed one thousand ($1,000) dollars, may assess such penalty and/or suspension for a period not to exceed thirty (30) days or may revoke such license for any of the following reasons:

(1) If the permit holder has fraudulently obtained the permit by giving false information in the application therefor or any hearing thereon;

(2) If the permit holder, manager, employee or agent has violated any of the provisions of this Title, Chapter 3.30 of the Code of the City of Wichita, any rule or regulation by the City Council, or the premises are in violation of the health, housing or fire codes of the City of Wichita or any provision of the Wichita-Sedgwick County Unified Building and Trade Code, or any provision of the Wichita-Sedgwick County Unified Zoning Code, or any law of the State of Kansas, or of the maximum occupant load of any such building or premises;

(3) If the permit holder has become ineligible to obtain a permit under this title;

(4) The permit holder's manager or employee has been intoxicated while on duty;

(5) If the permit holder or his/her manager or employee has permitted any disorderly person to remain on premises where alcoholic liquor is allowed to be consumed;

(6) If there has been a violation of a provision of the laws of this city or of this state or of any other state or the United States pertaining to the consumption of intoxicating or alcoholic liquors or cereal malt beverages, or any crime involving a morals charge on premises where alcoholic liquor or cereal malt beverage is consumed by such permit holder;

(7) There has been a violation of K.S.A. Supp. 21-6204 (maintaining, permitting a public nuisance) and amendments thereto, in or upon the premises of the permit.

(C) In any hearing before the City Council pursuant to this section, a certified copy of conviction from any local, state, or federal court, for any violation contained within Subsection (B) of this section, is prima facia evidence of violation. For the purposes of this section, "conviction" shall include being adjudged guilty upon entering a plea of no contest.

(D) Within twenty (20) days after the order of the City Council revoking or suspending any permit, the permit holder may appeal from such order to the Sedgwick County District Court of the state of Kansas in the manner as provided by law; provided that any appeal taken from an order revoking any such permit shall not suspend the order of revocation during the pendency of

such appeal. In case of the revocation of a permit of any permit holder, no new permit shall be issued to such person or to any person acting for or on his behalf, for a period of one (1) year after the revocation becomes effective.
(Ord. No. 50-665, § 8, 1-23-18)

Sec. 4.08.080. Suspension by Chief of Police.

(A) The Chief of Police, upon five (5) days written notice to the person holding a permit issued pursuant to this Chapter, shall have the authority to suspend such permit for a period of not to exceed thirty (30) days for any of the reasons set forth at Section 4.08.070 which reason does not, in the judgment of the Chief of Police, justify a recommendation of revocation.

(B) The Chief of Police, upon five (5) days written notice to the person holding any permit issued pursuant to this Chapter, shall have the authority to suspend such permit if the permit holder, the permit holder's manager, employee, or agent, or any person under the direction and control of the permit holder has committed a violation of Sections 7.41.010 or 7.41.030 (noise) of this Code, or any amendments thereto. Within any two (2)-year period of time, upon a first violation of said sections, the Chief of Police shall issue a written warning to the permit holder; upon a second violation, shall suspend such permit for a period of not more than five (5) days when consumption is designated to occur; upon a third violation, shall suspend or recommend to the City Council revocation of such license.

(C) The permit holder may appeal any order of suspension issued pursuant to this section by filing with the City Clerk a written notice of appeal to the City Council within twenty (20) days of the decision to suspend a permit by the Chief of Police. Notice of Appeal shall specify:

(1) The name and address of the appellant;

(2) The date of the suspension of the permit; and

(3) The factual basis for the appeal.

Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before the City Council, no later than thirty (30) days from the date of the filing of the Notice of Appeal with the City Clerk. Any appeal shall stay the suspension of the permit until the matter is heard by the City Council. The City Council may approve or overrule the suspension of a permit or may modify the decision to suspend a permit, and in addition, may impose an administrative penalty of up to one thousand ($1,000) dollars. In any hearing before the City Council pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation is prima facia evidence of such violation.

(D) The Council's decision may be appealed to the Sedgwick County District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the suspension or any modification imposed thereupon by the City Council.

(E) As used in this Section, any authority granted to the Chief of Police shall include his or her designee.
(Ord. No. 50-665, § 9, 1-23-18)

Sec. 4.08.085. Immediate suspension due to immediate threat to public safety.

(A) The Chief of Police, or Acting Chief, may require a common consumption permit holder or common consumption participant permit holder to cease operations and disperse all patrons whenever conduct by disorderly patrons reaches a magnitude that presents an immediate threat to the public safety and well-being of the patrons and general public in the vicinity of the common consumption area. The common consumption area shall remain closed until the threat has passed.

(B) The Chief of Police or Acting Chief may temporarily suspend a permit without five days' written notice or make additional security requirements without five days' written notice if it is determined that the permit holder has a lack of security sufficient to protect the public and the lack of security poses a substantial risk of harm to patrons or others. An emergency suspension without five days' written notice shall only be

used in cases where there has been a significant violent act or a credible threat of future violence. The suspension shall be effective immediately upon verbal notification by the Chief of Police or Acting Chief or designee to the licensee, permit holder, manager, agent or representative and shall be effective for up to ten days as needed to restore order or to ensure the safety of the public. In lieu of suspension, the Chief of Police or Acting Chief may require additional conditions of operation including, but not limited to, restricted hours, additional security personnel, wands, security cameras, bag checks, and restrictions on type of bags allowed in common consumption areas. The Chief, or designee, shall promptly complete a report outlining the basis for the decision to suspend the permit and recommendations to adequately remedy the deficiencies of the common consumption area's security or safety plans. A copy of the report shall be provided to the City Manager on the first business day following the suspension or the placement of additional conditions. The Chief of Police or designee shall officially notify the permit holder in writing by depositing such notice in first class mail to the address listed on the permit the first business day after a suspension or imposition of additional conditions. The notice shall include the reason for the suspension or conditions, the length and dates of suspension, and rights of appeal.

(C) If the Chief of Police or designee is unable to affect personal notification of an emergency suspension, notice will be posted upon the permit holder's property and sent by first class mail to the primary contact or owner listed on the license.

(D) The permit holder or a designee shall meet with the Chief of Police or designee within three calendar days of an emergency suspension.

(E) It is unlawful for any person to fail to comply with any directive issued by the Chief of Police or designee under the authority of this section.

(F) The provisions of this Chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be taken by the City for a violation of any ordinance of the City or statute of the State of Kansas.
(Ord. No. 52-797, § 3, 8-26-25)

Sec. 4.08.090. Penalty for violation.

Unless otherwise specified, violation of any provision of this chapter and amendments thereto, for which a penalty is not otherwise specifically provided is punishable by a fine not less than one hundred ($100) dollars and not to exceed five hundred ($500) dollars or imprisonment not to exceed six months, or both such fine and imprisonment.
(Ord. No. 50-665, § 10, 1-23-18; Ord. No. 52-760, § 6, 7-15-25)

CHAPTER 4.12. CEREAL MALT BEVERAGES

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Sec. 4.12.010. Definitions.

On and after April 1, 2019, as used in this Chapter, the following terms shall have the meanings indicated in this section.

(a) *'Cereal malt beverage'* means any fermented but undistilled liquor brewed or made from malt or from a mixture of malt or malt substitute or any flavored malt beverage, as defined in K.S.A. 41-2729, and amendments thereto, but does not include any such liquor which is more than 3.2% alcohol by weight.

(b) *'Cereal Malt Beverage Retailer'* means any person who is licensed under the Kansas Cereal Malt Beverage Act and this chapter and who sells or offers for sale any cereal malt beverage or beer containing not more than 6% alcohol by volume for use or consumption and not for resale in any form.

(c) *'Legal age for consumption of cereal malt beverage'* means 21 years of age, except that *'legal age for consumption of cereal malt beverage'* shall mean 18 years of age if at any time the provisions of P.L. 98-363 penalizing states for permitting persons under 21 years of age to consume cereal malt beverage are repealed or otherwise invalidated or nullified.

(d) *'Person'* means any individual, firm, partnership, corporation or association.

(e) *'Place of business'* means any place at which cereal malt beverages or beer containing not more than 6% alcohol by volume are sold.

(f) *'Off-premises retailer'* means a person currently licensed under the Kansas Cereal Malt Beverage Act and this chapter and who sells or offers for sale cereal malt beverages or beer containing not more than 6% alcohol by volume in original unopened containers that is not for consumption on the premises.

(g) *'On-premises retailer'* means a person currently licensed under the Kansas Cereal Malt Beverage Act and this chapter and who sells or offers for sale cereal malt beverages or beer containing not more than 6% alcohol by volume for consumption on the premises.

(Ord. No. 50-935, § 3, 3-22-19)

Sec. 4.12.020. License required, special event retailers' permit.

(a) It shall be unlawful for any person or cereal malt beverage retailer to sell any cereal malt beverage or beer containing not more than 6% alcohol by volume within the corporate limits of the city without first having obtained a license or permit from the City Treasurer as provided in this chapter. A separate license or permit is required for each place of business. Provided, however, cereal malt beverage may be sold without obtaining a separate license as required in this Chapter by a licensed drinking establishment of any type, a temporary permit holder, a licensed caterer, or a licensed Class A or Class B club, as allowed by K.S.A. 41-1201 and amendment thereto, the Kansas Club and Drinking Establishment Act and amendments thereto, and Sections 4.16.150, 4.16.152, 4.16.153, 4.16.154 and 4.16.160 of this Code and amendments thereto.

(b) A special event retailers' permit may be issued which shall allow the permit holder to offer for sale, sell and serve cereal malt beverage or beer containing not more than 6% alcohol by volume for consumption on unlicensed or unpermitted premises, which may be open to the public, subject to the following:

(1) A special event retailers' permit shall be issued for the duration of the special event, the dates and hours of which shall be specified in the permit;

(2) No more than four special event retailers' permits shall be issued to the same applicant in a calendar year;

(3) The permit holder shall prominently display at each event upon a poster or other device located at the entrance to the permitted premises the special event retailers' permit and the name of the person or agent of the organization holding the permit who is in charge of the event;

(4) A special event retailers' permit shall not be transferable or assignable; and

(5) A special event retailers' permit holder shall not be subject to the provisions of the Beer and Cereal Malt Beverage Keg Registration Act, K.S.A. 41-2901 et seq. and amendments thereto.

(Ord. No. 50-935, § 4, 3-22-19; Ord. No. 51-059, § 1, 6-25-19; Ord. No. 51-588, § 9, 7-13-21)

Editor's note—Ord. No. 50-935, § 4, adopted Mar. 22, 2019, repealed the former § 4.12.020 and enacted a new § 4.12.020 as set out herein. The former § 4.12.020 pertained to license required; sale in manner other than provided for in license prohibited, special event retailers' permit, and derived from Ord. No. 39-906 § 1; and Ord. No. 49-002, § 1, adopted May 10, 2011.

Sec. 4.12.025. Reserved.

Editor's note—Ord. No. 47-057, § 4, adopted June 27, 2006, repealed § 4.12.025 in its entirety. Formerly, said section pertained to possession and consumption of cereal malt beverage and derived from Ord. No. 39-359 § 4.

Sec. 4.12.030. Application for license or permit; investigation of applicant by chief of police.

Any person desiring to secure a cereal malt beverage retailer license or a special event retailer's permit under the provisions of this chapter shall make a verified application. Such application shall be upon a form provided by the City Treasurer and shall contain:

a. The name, date of birth and residence of the applicant.

b. The particular place for which a license is desired. If an applicant desires to include as part of the licensed premises any area other than the interior of a building, the applicant shall attach a drawing of the proposed licensed premises to each copy of the application for license under this section.

c. The name of the owner of the premises upon which the place of business is located.

d. A statement that the applicant is a citizen of the United States and not less than twenty-one years of age and that he has not, within two years immediately preceding the date of making application, been convicted of a felony or any crime involving moral turpitude, or been adjudged guilty of driving a motor vehicle under the influence of intoxicating liquor or

drugs, or of the violation of any other intoxicating liquor law of any city, state or of the United States, provided that the terms "conviction" and "adjudged guilty" shall include being placed on diversion.

e. The names and addresses of all persons who hold any financial interest in the particular place of business for which a license is desired.

f. Such application shall be accompanied by the license or permit fee provided for by ordinance. It shall be the duty of the chief of police to investigate such applicant to determine whether the applicant is qualified to receive a cereal malt beverage retailer license or a special event retailers' permit under the provisions of this chapter. The license or permit application shall be scheduled for consideration by the governing body at the earliest meeting consistent with current notification requirements.

g. License applications must bear a state stamp affixed prior to submission, as provided by K.S.A. 41-2702(e) and any amendments thereto.

h. A statement as to whether the applicant has ever had any license denied, revoked or suspended by the City of Wichita or the State of Kansas or any other governmental entity, the reason therefor and the business activity or occupation of the individual subsequent to such suspension, revocation or denial.

i. A statement that the applicant consents and agrees that any member of the Police Department or Fire Department as well as other code enforcement or health officers of the City may, at any time, enter and inspect any part of such premises.

j. A plan to insure that adequate traffic control, crowd protection and security will be maintained and that ages of patrons admitted to the establishment will be maintained.

k. An emergency management plan, consisting of, but not limited to: fire evacuation, storm shelter provisions, patron crowd control, and emergency access for police, fire and ambulance.

l. All first time applications for on-premises consumption shall include a security plan. Any establishment licensed for on-premises consumption that has not previously submitted a security plan, must submit a plan at renewal.

(Ord. No. 50-935, § 5, 3-22-19; Ord. No. 51-588, § 10, 7-13-21; Ord. No. 52-246, § 1, 8-15-23)

Editor's note—Ord. No. 50-935, § 5, adopted Mar. 22, 2019, repealed the former § 4.12.030 and enacted a new § 4.12.030 as set out herein. The former § 4.12.030 pertained to application for license; investigation of applicant by chief of police, and derived from Ord. No. 39-906 § 2.

Sec. 4.12.035. Security personnel and control of on-premises licenses.

In regard to on-premises CMB and beer license applicants and holders:

a. It is the obligation of the owner, licensee, manager, employee, representative or responsible person, and a condition of the license, to maintain at all times when the licensed establishment is open for business, adequate security personnel for the premises of such business.

b. The owner, licensee, manager, employee, representative or responsible person shall provide for the orderly dispersal of patrons from the premises of the licensed establishment at closing time, and shall prevent patrons from congregating or loitering on the premises of the establishment.

c. The owner, licensee, manager, employee, representative or responsible person shall be responsible to ensure that an adequate number of security personnel are employed and in attendance in order to maintain order and ensure compliance with all applicable federal and state laws and city ordinances.

d. The owner, licensee, manager, employee, representative or responsible person of a licensed establishment is responsible to exercise appropriate control over its invitees on the premises for such purposes as preventing unnecessary noise, litter, trespass, loitering, property damage, traffic obstruction and similar activities which may constitute a nuisance.

e. The purpose of the security personnel requirement is to maintain the public peace and order on the premises of the licensed establishment. The licensee is under a continuing obligation to take reasonable measures, including calling emergency personnel, to curtail any conduct which is in violation of state or local laws or offensive to public health, decency and morality, or peace and order, including, without limitation, minors in possession of alcoholic beverage, use or possession of controlled substances, crimes of violence such as homicide, aggravated battery, battery, aggravated assault, assault, rape, criminal threat and disorderly conduct. Failure to immediately notify law enforcement of criminal activity occurring on the licensed premises may be grounds for revocation or suspension of the license.

(Ord. No. 52-246, § 2, 8-15-23)

Sec. 4.12.040. Reserved.

Editor's note—Ord. No. 50-160, § 8, adopted March 15, 2016, repealed § 4.12.040 which pertained to photographs of applicant accompanying application for license; fingerprinting of applicant and derived from Ord. No. 39-906, § 3.

Sec. 4.12.045. License term, license and permit fees.

(a) A cereal malt beverage retailer license to sell cereal malt beverages or beer containing not more than 6% alcohol by volume in the City of Wichita shall be issued for the term of one calendar year. The following fees shall be paid for either a new or renewal license and shall accompany the application:

Retailer license: $200 per year;

Off-premises Retailer license: $50 per year.

(b) A Special Event Retailers' Permit shall be issued for the duration of the special event as provided in Section 4.12.020. A fee of $65 per day shall be paid for a Special Event Retailers' Permit and shall accompany the application.

(c) No fee required by this chapter or any portion thereof shall be pro-rated or refunded for any reason, except if, in the determination of the City Treasurer or his or her designee, the application of this section would result in a substantial and unfair burden upon the applicant.

(Ord. No. 50-160, § 1, 3-15-16; Ord. No. 50-935, § 6, 3-22-19)

Sec. 4.12.050. Examination of applicant by the city council; issuance or denial of license or permit.

If an application for a cereal malt beverage retailer license or a special event retailers' permit is in proper form and accompanied by the license fee the City Council shall examine the application and, after examination of the application, the City Council, if they approve the same, shall issue a license or permit to the applicant; provided

(a) That no cereal malt beverage retailer license or a special event retailers' permit shall be issued to:

(1) A person who is not a citizen of the United States;

(2) A person who, within two years immediately preceding the date of making application, has been convicted of, released from incarceration for or released from probation or parole for a felony or of any crime involving moral turpitude, drunkenness, or driving a motor vehicle while under the influence of intoxicating liquor or drugs, violation of any other intoxicating liquor law of any city, state or of the United States;

(3) A partnership, unless all members of such partnership shall otherwise be qualified to obtain a license;

(4) A corporation, if any manager, officer or director thereof, or any stockholder owning in the aggregate more than 25% of the stock of such corporation would be ineligible to receive a license hereunder for any reason other than the citizenship requirement.

(5) A person whose place of business is conducted by a manager or agent, unless such manager or agent possesses the same qualifications required of the licensee;

(6) A person whose spouse would be ineligible to receive a retailer's license for any reason other than citizenship, requirements or age, except that this subsection shall not apply in determining eligibility for a renewal license;

(7) A person whose spouse has been convicted of a felony or other crime which would disqualify a person from licensure under this chapter and such felony or other crime was committed during the time that the spouse held a license under this chapter; and

(8) A person who has failed to pay any outstanding administrative penalty imposed pursuant to Section 4.12.090(c) or Section 4.16.095(d) of the City Code and amendments thereto.

(b) No license shall be issued for premises wherein the use thereof would be in violation of the city zoning laws or the city building codes or fire codes. Notwithstanding the provisions of this subsection, a license under this section shall be issued to a farm winery or producer licensee who meets the requirements for a license and who is a registered agritourism operator as defined by state law, and such license shall not be denied on the basis of any zoning regulation or other regulation, ordinance or resolution of the City.

(c) The denial of a license or permit application shall be subject to the appeal process and provisions set forth in Section 4.12.090(c) and (d), except that the notice of appeal shall include the name and address of the appellant, the date of the license or permit application, the date of the denial of the application or permit and the factual basis for the appeal. The review conducted by the City Council shall be of the facts and circumstances of the license denial.

(Ord. No. 50-935, § 7, 3-22-19; Ord. No. 51-588, § 11, 7-13-21; Ord. No. 51-884, § 1, 6-28-22)

Editor's note—Ord. No. 50-935, § 7, adopted Mar. 22, 2019, repealed the former § 4.12.050 and enacted a new § 4.12.050 as set out herein. The former § 4.12.050 pertained to examination of applicant by the city council; issuance or denial of license, and derived from Ord. No. 39-906 § 4; Ord. No. 48-353, § 8, adopted June 23, 2009; and Ord. No. 50-160, § 2, adopted Mar. 15, 2016.

Sec. 4.12.070. Transferability of license.

No license issued under the provisions of this chapter shall be transferable, except, upon the death of a licensee, the surviving spouse, executor or administrator, if otherwise qualified, shall be entitled to the use of said license during the remainder of the license year.

(Ord. No. 25-971 § 10)

Sec. 4.12.080. Posting of license.

The license so issued to sell cereal malt beverages or beer containing not more than 6% alcohol by volume shall be kept posted in a conspicuous place in the place of business where cereal malt beverages or beer containing not more than 6% alcohol by volume are sold.

(Ord. No. 39-906 § 5; Ord. No. 50-935, § 8, 3-22-19)

Sec. 4.12.090. Reserved.

Editor's note—Ord. No. 52-246, § 3, adopted Aug. 15, 2023, repealed § 4.12.090, which pertained to suspension of license by chief of police, and derived from Ord. No. 42-626; Ord. No. 50-160, § 3, adopted Mar. 15, 2016; and Ord. No. 50-935, § 9, adopted Mar. 22, 2019.

Sec. 4.12.100. Place of business to comply with health and sanitary requirements.

The licensee, in the operation of a place of business selling cereal malt beverages or beer containing not more than 6% alcohol by volume for which a license is issued, shall, at all times, comply with all of the sanitary and health requirements and ordinances of the city and with all of the rules and regulations prescribed by the director of public health.
(Ord. No. 21-224 § 6; Ord. No. 50-935, § 10, 3-22-19)

Sec. 4.12.110. Hours of sale—Prohibited sales.

(a) It shall be unlawful for an on-premises retailer or an off-premises retailer to sell cereal malt beverages or beer containing not more than 6% alcohol by volume or to allow the same to be consumed:

(1) Before 6:00 a.m. or after 12:00 midnight Monday through Saturday;

(2) In the original package not earlier than 9:00 a.m. and not later than 8:00 p.m. on Sunday;

(3) On Easter Sunday; or

(4) For consumption on the licenses premises on Sunday, except in a place of business which is licensed as an on-premises retailer and which derives not less than 30% of its gross receipts from the sale of food for consumption on the licenses premises.

(b) No on-premises retailer, or employee or agent of such retailer, shall:

(1) Offer or serve any free cereal malt beverage or beer containing not more than 6% alcohol by volume to any person;

(2) Offer or serve to any person a drink of cereal malt beverage or beer containing not more than 6% alcohol by volume at a price that is less than the acquisition cost of the drink to the licensee;

(3) Sell, offer to sell or serve to any person an unlimited number of drinks during any set period of time for a fixed price, except at private functions not open to the general public;

(4) Encourage or permit, on the licensed premises, any game or contest which involves drinking cereal malt beverage or beer containing not more than 6% alcohol by volume or the awarding of drinks as prizes;

(5) Advertise or in any way, whether on or off the licensed premises, any of the practices prohibited under this subsection;

(6) Sell, offer to sell or serve any drink of cereal malt beverage or beer containing not more than 6% alcohol by volume for consumption off the premises; or

(7) Recklessly allow or permit any person to remove a drink of cereal malt beverage or beer containing not more than 6% alcohol by volume from the licensed premises.

(c) An on-premises retailer may:

(1) Offer free food or entertainment at any time;

(2) Sell, offer to sell and serve individual drinks at different prices throughout any day; or

(3) Sell or serve cereal malt beverage in a pitcher capable of containing not more than 64 fluid ounces.

(d) Violation of any provision of this section is a misdemeanor and punishable by a fine of not more than $500 or imprisonment not to exceed one year or by both such fine and imprisonment.

(e) Violation of any provision of this act shall be grounds for suspension or revocation of any license issued pursuant to this Chapter.

(f) Every licensee subject to the provisions of this section shall make available at any time upon request a price list showing the licensee's

current prices for all cereal malt beverages or beer containing not more than 6% alcohol by volume.
(Ord. No. 50-935, § 11, 3-22-19; Ord. No. 51-588, § 12, 7-13-21)

Editor's note—Ord. No. 50-935, § 11, adopted Mar. 22, 2019, repealed the former § 4.12.110 and enacted a new § 4.12.110 as set out herein. The former § 4.12.110 pertained to hours of sale—possession during excluded hours—prohibited sales, and derived from Ord. No. 42-539 § 2; Ord. No. 47-466, § 1, adopted Apr. 24, 2007; Ord. No. 47-471, § 2, adopted May 1, 2007; Ord. No. 49-295, § 4, adopted June 26, 2012, effective July 1, 2012; and Ord. No. 50-160, § 4, adopted Mar. 15, 2016.

Sec. 4.12.115. Removal from licensed premises prohibited.

It shall be unlawful for any person to remove any cereal malt beverage or beer containing not more than 6% alcohol by volume from the premises of a licensed on-premises retailer. Violation of this section is a misdemeanor punishable by a fine not to exceed one hundred dollars.
(Ord. No. 39-906, § 8; Ord. No. 50-935, § 12, 3-22-19)

Sec. 4.12.118. Condition of sales by off-premise and on-premise retailers.

(a) An off-premises retailer shall sell cereal malt beverages or beer containing not more than 6% alcohol by volume only at the premises identified on the license application, only at retail, and only in original and unopened containers.

(b) An off-premises retailer shall not sell cereal malt beverages or beer containing not more than 6% alcohol by volume for consumption at the licensed premises or permit cereal malt beverages or beer containing not more than 6% alcohol by volume to be consumed at the licensed premises.

(c) An on-premises retailer shall sell cereal malt beverages or beer containing not more than 6% alcohol by volume only at the premises identified on the license application and only at retail.
(Ord. No. 50-935, § 13, 3-22-19)

Sec. 4.12.120. Private rooms and closed booths prohibited.

No private rooms or closed booths shall be operated in a place of business selling cereal malt beverages or beer containing not more than 6% alcohol by volume. This provision shall not apply if the licensed premises are also currently licensed as a private club pursuant to the Kansas club and drinking establishment act.
(Ord. No. 39-906 § 9; Ord. No. 50-935, § 14, 3-22-19)

Sec. 4.12.130. Places of business to be open to public during business hours and law enforcement officers at all times.

Any place of business selling cereal malt beverages or beer containing not more than 6% alcohol by volume shall be open to the public at all times during business hours and to the law enforcement officers at all times.
(Ord. No. 39-359 § 6; Ord. No. 50-935, § 15, 3-22-19)

Sec. 4.12.135. Reserved.

Editor's note—Ord. No. 50-160, § 8, adopted March 15, 2016, repealed § 4.12.135 which pertained to prohibition of Sale of cereal malt beverages on credit and derived from Ord. No. 40-530, § 1.

Sec. 4.12.140. Minors prohibited from entering or remaining in certain licensed establishments.

(a) No person under the legal age for consumption of cereal malt beverage shall enter or remain on the premises of a place of business which is licensed as an on-premises retailer and which derives less than 30% of its gross receipts from the sale of food for consumption on the business premises, Violation of this subsection by a person eighteen or more years of age but less than twenty-one years of age is a misdemeanor punishable by a fine of not less than one hundred dollars and not more than two hundred fifty dollars. In addition to such fine the court may order the offender to perform forty hours of public service. Further, any person less than eighteen years of age who violates this section is

a juvenile offender under the Kansas Juvenile Offenders Code and upon adjudication thereof, shall be required as a condition of disposition to pay the fine or perform the public service, or both, specified as punishment for the offense under this subsection.

(b) No licensee, manager, employee or agent shall permit a person under the legal age for consumption of cereal malt beverages to enter or remain on the premises of a place of business which is licensed as an on-premises retailer and which derives less than 30% of its gross receipts from the sale of food for consumption on the business premises. No cereal malt beverage retailer, or manager, employee or agent of such retailer shall permit a person under the legal age for consumption of cereal malt beverage to possess, consume or purchase any cereal malt beverage in or about a place of business, except that an employee who is not less than eighteen years of age may dispense or sell cereal malt beverage or beer containing not more than 6% alcohol by volume, if:

(1) The place of business is licensed only to sell cereal malt beverage or beer containing not more than 6% alcohol by volume at retail in original and unopened containers for consumption off the premises;

(2) The place of business is a licensed food service establishment, as defined by K.S.A. 36-501 and amendments thereto, and not less than fifty percent of the gross receipts from the place of business is derived from the sale of food for consumption on the premises of the licensed place of business;

(c) It shall be a defense to a prosecution under this section if:

(1) The defendant is licensed as a cereal malt beverage retailer; or holds a special event, or is an employee thereof;

(2) The defendant sold the cereal malt beverage or beer containing not more than 6% alcohol by volume to the person with reasonable cause to believe that such person was of legal age for consumption of cereal malt beverage; and

(3) To purchase the cereal malt beverage or beer containing not more than 6% alcohol by volume, the person exhibited to the defendant a driver's license, Kansas non-driver's identification card or other official or apparently official document that reasonably appears to contain a photograph of the minor and purporting to establish that such person was of legal age for consumption of cereal malt beverage.

(Ord. No. 50-935, § 16, 3-22-19)

Editor's note—Ord. No. 50-935, § 16, adopted Mar. 22, 2019, repealed the former § 4.12.140 and enacted a new § 4.12.140 as set out herein. The former § 4.12.140 pertained to minors prohibited; entering or remaining in taverns, etc., prohibited, and derived from Ord. No. 42-104 § 2; and Ord. No. 48-353, § 9, adopted June 23, 2009.

Sec. 4.12.145. Reserved.

Editor's note—Ord. No. 50-160, § 8, adopted March 15, 2016, repealed § 4.12.145 which pertained to exceptions to Sunday closing and to presence of minors in taverns and derived from Ord. No. 39-906, § 10.

Sec. 4.12.150. Revocation, penalties or suspension of license.

a. The Chief of Police, upon not less than five days' written notice by first class mail or personal service, to a person holding a license to sell cereal malt beverages or beer containing not more than 6% alcohol by volume, may assess an administrative penalty up to $5,000 and/or suspend such license for a period not to exceed 30 days for any of the reasons listed in section (c), which violation does not in the Chief of Police or designee's judgment justify a recommendation of revocation to the City Council. In lieu of suspension, the Chief of Police or designee may assess an administrative penalty not to exceed $5,000 or require additional conditions of including but not limited to: limited hours, additional security personnel, wands, security cameras, bag checks, restrictions on type of bags allowed in establishment, or reduction in maximum capacity. The additional conditions shall be effective until the license is considered for renewal. At renewal, the condition may be extended as a condition of the license. Additional conditions are appealable within 14 days of being ordered and within 14 days of being extended as a

condition of renewal. The notice to the licensee shall provide the effective date of the placement of additional conditions or suspension of the license. Such notice shall detail the reasons or basis for the action and shall specify the rights of the license holder to appeal any such action.

b. The Chief of Police may petition the City Council to suspend a license in excess of 30 days or revoke a license for any of the reasons listed in subsection (c). The petition shall include the grounds for suspension or revocation and the requested length of suspension or revocation. The Chief of Police will notify the licensee of the request. Such notice shall include a copy of the petition, and notice of the date the item appears on the City Council agenda following the procedures set forth in Section 2.04.237. Notice shall be delivered in person or by first class mail to the licensee not less than five days before the hearing. After hearing the facts, the City Council appeal panel will determine if there should be a suspension or revocation, the length of suspension, and/or an administrative penalty not to exceed $5,000.

c. The following factors may be considered in determining if a license should be denied, suspended, revoked, or assessed an administrative penalty:

1. The owner, licensee, manager, employee, representative or responsible person has violated any of the provisions of this Chapter or Chapter 3.30 of the Code of the City of Wichita, any rule or regulation of the City Council or the licensed premises are in violation of the health, housing, fire, zoning or building codes of any local, state or federal jurisdiction, including but not limited to, occupancy exceeding licensed capacity of a premises; or the owner, licensee, manager, employee, representative or responsible person has violated any federal or state law or City ordinance, while on the licensed premises or pertaining to the licensed premise;
2. Drunkenness of a person holding such license, drunkenness of a licensee's manager or employee while on duty and while on the premises for which said license is issued, or for a licensee, his manager or employee permitting any intoxicated person to remain in or upon the licensee's place of business;
3. The sale or gift of cereal malt beverages or beer containing not more than 6% alcohol by volume to any person under the legal age for consumption of cereal malt beverages by a licensee, his manager or employee;
4. An owner, licensee, manager, employee, representative or responsible person permitted any person to mix drinks with materials purchased in such place of business or brought in for that purpose;
5. An owner, licensee, manager, employee, representative or responsible person allowed the sale or possession of or allowed or permitted any person to use or consume upon or in the licensed premises alcoholic liquor, as defined in Section 4.04.010 and amendments thereto, except beer containing not more than 6% alcohol by volume;
6. The licensee has been convicted of a violation of the beer and cereal malt beverage keg registration act;
7. The owner, licensee, manager, employee, representative or responsible person recklessly, directly or indirectly acted by selling, giving away, disposing of, exchanging or delivering, purchasing or buying for distributing or permitting the sale, gift or procuring of any cereal malt beverage or beer containing not more than 6% alcohol by volume to for, or on behalf of any person who is an incapacitated person, or any person who is physically or mentally incapacitated by the consumption of such cereal malt beverage;
8. The licensee fraudulently obtained the license by giving false information in the application therefor;
9. The licensee has become ineligible to obtain a license under this chapter;
10. An applicant or licensee has unpaid Administrative Penalties, parking fees, water bills or any other administrative

fees owed to the City of Wichita regarding a business owned by the applicant which has been unpaid for a period of 90 days or more;

11. The owner, licensee, manager, employee, representative or responsible person allowed or permitted gambling as defined in 5.36 of the Code of the City of Wichita or K.S.A. 21-6403 through K.S.A. 21-6408 in or upon the licensee's place of business;

12. The owner, licensee, manager, employee, representative or responsible person allowed the employment of persons under eighteen years of age in dispensing or selling cereal malt beverages or beer containing not more than 6% alcohol by volume;

13. The owner, licensee, manager, employee, representative or responsible person allowed the employment of a person in connection with the sale, serving or dispensing of cereal malt beverages or beer containing not more than 6% alcohol by volume if the licensee knows such person has been within the preceding two years adjudged guilty of a felony or of any violation of the intoxicating liquor laws of the city, this state, another state or the United States;

14. There has been a violation K.S.A. 21-6204 (maintaining, permitting a public nuisance) and amendments thereto, in or upon the licensee's place of business;

15. The owner, licensee, manager, employee, representative or responsible person refused to allow members of the Police Department or Fire Department as well as other code enforcement or health officers of the City to access to the licensed premises during business hours;

16. The owner, licensee, manager, employee, representative or responsible person failed to abide by security plan submitted by licensee;

17. The licensed premises was the site of repeated violent acts in a six-month period, such as homicide, assault, battery, aggravated battery, disorderly conduct, rape or criminal threat or repeated acts of violence occurred adjacent to the licensed premises by people who exited the licensed establishment and the owner, licensee, manager, employee, representative or responsible person has not taken appropriate steps to ensure the safety of the public. Nothing in this ordinance shall be interpreted as penalizing a CMB retailer or special event retailer, or the owner or employees of such retailers, solely for requesting assistance or reporting an incident to the police department. The City encourages CMB retailers, special event retailers and employees to promptly report to the police department harmful or potentially harmful acts or conduct on the part of patrons. The licensee may be penalized, suspended or revoked if the owner, licensee, manager, employee, representative or responsible person fails to mitigate or resolve circumstances that allow or permit violence to occur.

d. The provisions of subsections (a), (b) and (c) shall not apply if the place of business or premises are also currently licensed as a club or drinking establishment pursuant to this title and the Kansas Club and Drinking Establishment Act, or as a drinking establishment/restaurant pursuant to this title.

e. In case of the revocation of a license of any licensee, no new license shall be issued to such person or to any person acting for or on behalf, for a period of six months after the revocation.
(Ord. No. 39-0906 § 12; Ord. No. 48-353, § 10, 6-23-09; Ord. No. 50-160, § 5, 3-15-16; Ord. No. 50-935, § 17, 3-22-19; Ord. No. 52-246, § 4, 8-15-23)

Editor's note—Ord. No. 52-246, § 4, adopted Aug. 15, 2023, amended the title of § 4.12.150 to read as herein set out. The former § 4.12.150 title pertained to revocation or suspension of license by city council; grounds; right of appeal.

Sec. 4.12.160. Emergency suspension due to immediate threat to public safety.

a. The Chief of Police, or Acting Chief, may require a licensee to cease operations and disperse all patrons whenever conduct by disorderly

patrons reaches a magnitude that presents an immediate threat to the public safety and well-being of the patrons and general public in the vicinity of the establishment. The establishment shall remain closed until the threat has passed.

b. The Chief of Police or Acting Chief may temporarily suspend a license without 5 days' written notice or make additional security requirements without 5 days' written notice if it is determined that the establishment has a lack of security sufficient to protect the public and the lack of security poses a substantial risk of harm to patrons or others. An emergency suspension without 5 days' written notice shall only be used in cases where there has been a significant violent act or a credible threat of future violence. The suspension shall be effective immediately upon verbal notification by the Chief of Police or Acting Chief or designee to the owner, licensee, manager or responsible person and shall be effective for up to ten days as needed to restore order or to ensure the safety of the public. In lieu of suspension, the Chief of Police or Acting Chief may require additional conditions of operation including but not limited to restricted hours, additional security personnel, wands, security cameras, bag checks, restrictions on type of bags allowed in establishment, or reduced capacity. The Chief or designee shall promptly complete a report outlining the basis for the decision to suspend the license and recommendations to adequately remedy the deficiencies of the establishment's security or safety plans. A copy of the report shall be provided to the City Manager on the first business day following the suspension or additional conditions. The Chief of Police or designee shall officially notify the licensee in writing by personal service or depositing such notice in first class mail to the address listed on the license the first business day after a suspension or imposition of additional conditions. The notice shall include the reason for the suspension or conditions, the length and dates of suspension, and rights of appeal.

c. If the Chief of Police or designee is unable to effect personal notification of an emergency suspension, notice will be posted upon the licensed property and also sent by first class mail to the primary contact or owner listed on the license.

d. The licensee or a designee shall meet with the Chief of Police or designee within 3 calendar days of an emergency suspension.

e. It is unlawful for any person to fail to comply with any directive issued by the Chief of Police or designee under the authority of this section.

f. An emergency suspension issued by the Chief of Police or Acting Chief of Police does not preclude the Chief from issuing an additional suspension pursuant to Section 4.12.150.

g. The provisions of this Chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be taken by the City for a violation of any ordinance of the City or statute of the State of Kansas.
(Ord. No. 52-246, § 5, 8-15-23)

Sec. 4.12.170. Reserved.

Editor's note—Ord. No. 50-160, § 8, adopted March 15, 2016, repealed § 4.12.170 which pertained to wholesale licenses and derived from Ord. No. 11-759, § 9.

Sec. 4.12.180. Records to be kept; availability for inspection.

Every place of business shall be required to maintain sufficient records to indicate the percentage of gross business obtained from the sale of cereal malt beverages or beer containing not more than 6% alcohol by volume and shall be required to permit inspection of such records at all times during business hours by the City Treasurer or by his or her designee. Failure to maintain sufficient records to determine the percentage of gross revenues obtained from the sale of cereal malt beverages or beer containing not more than 6% alcohol by volume or failure to permit the inspection of such records at all times during business hours by proper agents of the city is a violation of this chapter and shall be subject to the penalty set forth in Section 4.12.220 and amendments thereto.
(Ord. No. 21-224 § 13; Ord. No. 50-935, § 18, 3-22-19)

Sec. 4.12.190. Possession on unlicensed premises prohibited.

(a) No person shall have in such person's possession any alcoholic liquor on premises where cereal malt beverages are sold, except beer containing not more than 6% alcohol by volume other than upon the premises of a club or drinking establishment licensed by this title and by the State of Kansas. Any person violating the provisions of this section shall be punished as set forth in Section 4.12.220.

(b) Cereal malt beverages may be sold on premises which are licensed for the sale of alcoholic liquor pursuant to both this Title and the Kansas Club and Drinking Establishment Act at any time when alcoholic liquor is allowed by law to be served on such premises.
(Ord. No. 39-906 § 14; Ord. No. 50-160, § 6, 3-15-16; Ord. No. 50-935, § 19, 3-22-19; Ord. No. 51-588, § 13, 7-13-21)

Sec. 4.12.195. Possession of open container on street prohibited.

(a) It is unlawful for any person to have any cereal malt beverage in his possession upon any public street or public right-of-way except in the original and unopened container, or to consume any cereal malt beverage upon any public street or public right-of-way within the city.

(b) The provisions of subsection (a) shall not apply to the possession or consumption of cereal malt beverage or beer containing not more than 6% alcohol by volume on any city street closed for a special event or community event licensed pursuant to Chapter 3.11 of the Code of the City of Wichita, where a written request for such consumption and possession and the special event are approved by city council.

(c) Any special event or community event which is licensed to allow the possession or consumption of cereal malt beverage or beer containing not more than 6% alcohol by volume shall comply with the provisions of Section 3.11.065 of the Code of the City of Wichita regarding the possession, consumption or sale of such cereal malt beverage.
(Ord. No. 42-772, § 1; Ord. No. 48-548, § 11, 12-1-09; Ord. No. 51-059, § 1, 6-25-19)

Sec. 4.12.197. Reserved.

Editor's note—Ord. No. 47-057, repealed § 4.12.197 which pertained to transportation of open containers of cereal malt beverage and derived from Ord. No. 39-497, § 2.

Sec. 4.12.200. Reserved.

Editor's note—Ord. No. 50-160, § 8, adopted March 15, 2016, repealed § 4.12.200 which pertained to prohibition on furnishing cereal malt beverage to persons under legal age for consumption and derived from Ord. No. 42-104, § 3, and Ord. No. 49-255, § 2, adopted April 10, 2012.

Sec. 4.12.215. Adequate lighting and enclosure of premises.

(a) The interior located within a building shall be adequately lighted during business hours with a minimum of at least one foot-candle of light thirty inches above the floor in all portions of the place of business where cereal malt beverages or beer containing not more than 6% alcohol by volume are served, dispensed or consumed.

(b) Any licensed premises which includes the exterior of a building and/or an outdoor area must be adequately lighted during all business hours.

(c) Any licensed premises which includes the exterior of a building must be enclosed by a fence in such a way as to allow access only through the interior of the building.

(d) Any licensed premises which is an outdoor area must have its boundaries clearly marked or fenced so as to allow access only through an official gate or entrance.
(Ord. No. 39-906 § 15; Ord. No. 50-935, § 20, 3-22-19)

Sec. 4.12.220. Penalty.

Any person who violates any of the provisions of this Chapter for which a penalty is not otherwise specifically provided is guilty of a misdemeanor and shall be punished by a fine of not more than $500 or by imprisonment not to exceed one year, or by both such fine and imprisonment.
(Ord. No. 40-530 § 2; Ord. No. 50-160, § 7, 3-15-16)

Sec. 4.12.225. Appeal.

a. The licensee may appeal any order of suspension, revocation, additional conditions, penalty or reclassification issued pursuant to this section by filing with the City Clerk a written notice of appeal to the City Council within 14 calendar days of the decision to suspend a license by the City Council or Chief of Police. Notice of Appeal shall specify:

(1) The name and address of the appellant;

(2) The date of the suspension or reclassification of the license; and

(3) The factual basis for the appeal.

b. Upon receipt of a complete and timely filed Notice of Appeal or request by the Chief of Police for a suspension in excess of 30 days or revocation, the City Clerk shall schedule the case before the City Council following the procedure set forth in Section 2.04.237. Any appeal shall stay the suspension or reclassification of the license until the matter is heard by the City Council. The panel of the City Council may revoke a license, approve or overrule the suspension or reclassification of a license or may modify the decision to suspend or reclassify a license, and in addition, may impose an administrative penalty of up to $5,000. In any hearing before the panel of the City Council pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation is prima facia evidence of such violation.

c. An emergency suspension or additional conditions issued by the Chief of Police or designee may be appealed, but the suspension or additional conditions will not be stayed pending the appeal. In an appeal of an emergency suspension, in an effort to hear the appeal immediately, the Mayor may appoint a 3 Council member appeal panel prior to the next scheduled City Council meeting so long as all other conditions of Section 2.04.237 are met. If available, the panel should include the Council member from the District in which the establishment is located. The panel should make every effort to hear the appeal within 5 business days.

d. The City Council's finding may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the suspension or reclassification of the license or any modification imposed thereupon by the City Council.
(Ord. No. 52-246, § 6, 8-15-23)

CHAPTER 4.16. DRINKING ESTABLISHMENTS, PRIVATE CLUBS AND SALE OF LIQUOR BY THE DRINK*

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Sec. 4.16.154. Temporary permits.
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Sec. 4.16.158. Removal of alcoholic liquor or cereal malt beverage from the premises of a club or drinking establishment.
Sec. 4.16.160. Drinking establishments and drinking establishment/restaurants—Allowing serving of samples.
Sec. 4.16.165. Dispensing and infusing alcoholic liquor.
Sec. 4.16.170. Reserved.
Sec. 4.16.175. Possession of alcoholic liquor or cereal malt beverage on licensed premises.
Sec. 4.16.180. Persons and entities ineligible for license.
Sec. 4.16.190. Penalty for violation.
Sec. 4.16.195. Appeal.

*__Editor's note—__Ord. No. 50-161 § 1, adopted March 15, 2016, changed the title of Ch. 4.16 from "Private Clubs" to "Drinking Establishments, Private Clubs and Sale of Liquor By the Drink."

Sec. 4.16.020. Reserved.

__Editor's note—__Ord. No. 50-161 § 23, adopted March 15, 2016, repealed § 4.16.020 which pertained to places designated for authorized consumption and derived from Ord. No. 39-907 § 1.

Sec. 4.16.030. Reserved.

__Editor's note—__Ord. No. 50-161 § 23, adopted March 15, 2016, repealed § 4.16.030 which pertained to consumption at a non-designated place and derived from Ord. No. 28-581 § 3.

Sec. 4.16.040. Allowing illegal consumption of alcoholic liquor or cereal malt beverage.

(a) No person shall allow consumption of alcoholic liquor or cereal malt beverage in violation of this chapter on any property owned, leased or otherwise under such person's control. Any person allowing such consumption shall thereby subject such person and the property on which such illegal consumption takes place to the penalties provided in this section.

(b) The person allowing such consumption shall be guilty of a misdemeanor and upon conviction thereof shall be subject to a fine not to exceed $500 or by imprisonment not to exceed six months or by both such fine and imprisonment.

(c) The property on which the violation takes place is declared to be a common nuisance and as such is subject to abatement as provided for any other common nuisance by city ordinance or as provided in K.S.A. 41-805 and amendments thereto.

(Ord. No. 32-915 (part); Ord. No. 28-581 § 4; Ord. No. 50-161 § 2, 3-15-16; Ord. No. 51-588, § 14, 7-13-21)

__Editor's note—__Ord. No. 51-588, § 14, adopted July 13, 2021, changed the title of § 4.16.040 from allowing illegal consumption of alcoholic liquor to allowing illegal consumption of alcoholic liquor or cereal malt beverage.

Sec. 4.16.050. License required—Sale of liquor by the drink prohibited.

(a) No person shall maintain or operate a drinking establishment, drinking establishment/restaurant, drinking establishment/hotel, drinking establishment/large capacity venue, drinking establishment/incidental, Class A club, or Class B club within the corporate limits of the City of Wichita without having in such person's possession for the location of the establishment a valid unexpired and unrevoked license issued under the provisions of K.S.A. Chapter 41 and this chapter.

(b) No person shall act as a caterer within the corporate limits of the City of Wichita without having in such person's possession a valid unexpired and unrevoked license issued under the provisions of K.S.A. Chapter 41 and this chapter.

(c) No person or organization shall sponsor, conduct or hold an event within the corporate limits of the City of Wichita which requires a temporary permit unless such person or organization has in such person or organization's possession a temporary permit issued under the provisions of K.S.A. Chapter 41 and this chapter.

(d) Violation of any of the provisions of this section is a misdemeanor and shall be punished as set forth in Section 4.16.190 and amendments thereto.
(Ord. No. 50-161 § 3, 3-15-16; Ord. No. 51-588, § 15, 7-13-21; Ord. No. 52-184, § 2, 6-13-23)

Sec. 4.16.055. Premises licensed; zoning compliance.

(a) Any drinking establishment, drinking establishment/restaurant, drinking establishment/hotel, drinking establishment/large capacity venue, drinking establishment/incidental, Class A club, or Class B club license issued pursuant to this chapter shall be for one particular premises that shall be stated in the application and in the license. Not more than one premises licensed under this chapter shall exist at a single legal address.

(b) No license shall be issued pursuant to this chapter unless a club or drinking establishment of any kind is allowed or provided for at such location by the Wichita/Sedgwick County Unified Zoning Code.

(c) The licensed premises of a license may be extended into a city street, alley, road, sidewalk or highway if:

(1) Such street, alley, road sidewalk or highway is closed to motor vehicle traffic by the City Council at any time during which alcoholic liquor or cereal malt beverage is to be sold or consumed; and

(2) Such extension has been approved by the City Council by ordinance or resolution that specifies the exact times during which alcoholic liquor or cereal malt beverage may be sold or consumed on the street, alley, road sidewalk or highway.

(Ord. No. 50-161 § 4, 3-15-16; Ord. No. 51-588, § 16, 7-13-21; Ord. No. 52-184, § 3, 6-13-23)

Sec. 4.16.057. Application for license or permit; investigation of applicant by chief of police.

Any person desiring to secure a license under the provisions of this Chapter shall make a verified application. Such application shall be upon a form provided by the City Treasurer and shall contain:

a. The name, date of birth and residence of the applicant.

b. The particular place for which a license is desired. If an applicant desires to include as part of the licensed premises any area other than the interior of a building, the applicant shall attach a drawing of the proposed licensed premises to each copy of the application for license under this section. The application must include the security plan in accordance with Section 4.16.077.

c. The name and contact information of the owner of the premises upon which the place of business is located.

d. A statement that the not less than twenty-one years of age and has not, within two years immediately preceding the date of making application, been convicted of a felony or any crime involving moral turpitude, or been adjudged guilty of driving a motor vehicle under the influence of intoxicating liquor or drugs, or of the violation of any other intoxicating liquor law of any city, state or of the United States, provided that the terms "conviction" and "adjudged guilty" shall include being placed on diversion.

e. The names and addresses of all persons who hold any financial interest in the particular place of business for which a license is desired.

f. A statement as to whether the applicant has ever had any license denied, revoked or suspended by the City of Wichita or the State of Kansas or any other governmental entity, the reason therefor and the business activity or occupation of the individual subsequent to such suspension, revocation or denial.

g. A statement that the applicant consents and agrees that any member of the Police Department or Fire Department as well as other code enforcement or health officers of the City may, at any time, enter and inspect any part of such premises.

h. A plan to insure that adequate traffic control, crowd protection and security will be maintained and that ages of patrons admitted to the establishment will be maintained.

i. An emergency management plan, consisting of, but not limited to: fire evacuation, storm shelter provisions, patron crowd control, and emergency access for police, fire and ambulance.

j. Such application shall be accompanied by the license or permit fee required by ordinance. It shall be the duty of the Chief of Police to investigate such applicant to determine whether the applicant is qualified to receive a license under the provisions of this chapter.

k. Information sufficient to determine the applicant's eligibility to receive a license in compliance with Section 4.16.180.

(Ord. No. 52-246, § 7, 8-15-23)

Sec. 4.16.060. License applications; fees.

(a) Application for all licenses required by this Chapter shall be upon forms provided by the City Treasurer's office and shall be filed with the City's Licensing Section. The applicant shall provide all information requested by such forms and pursuant to the provisions of this title.

(b) At the time application is made to the City Treasurer's office for a license pursuant to this section, the following fees shall accompany the application:

(1)	Class A private club, any category (fraternal/veterans; social, 500 members or less; social, over 500 members)	$500.00
(2)	Class B private club	$500.00
(3)	Drinking establishment, any category (restaurant, entire hotel)	$500.00
(4)	Drinking establishment (any category)/caterer	$500.00
(5)	Caterer	$500.00
(6)	Temporary permit, per day (maximum 3 consecutive days, 4 times per year, may be for duration of a Community Event)	$25.00

Provided, however, this section shall become effective only upon the effective date of the ordinance repealing Charter Ordinance No. 105. Prior to that date, the fees that are currently set by the City Council in Resolution R-95-549, dated November 28, 1995, shall remain in effect. Since the fees currently in effect are annual fees, the amounts shall be doubled for all biennial licenses issued upon the effective date of this ordinance.

No fee required by this chapter or any portion thereof shall be pro-rated or refunded for any reason except if, in the determination of the City Treasurer, the application of this section would result in a substantial and unfair burden upon the applicant.
(Ord. No. 50-161 § 5, 3-15-16; Ord. No. 51-884, § 2, 6-28-22)

Sec. 4.16.065. Term of license.

(a) The license required by Section 4.16.050(a) or (b) and amendments thereto shall be issued for a term of two years and shall extend for the time period covered by the state license for the same premises.

(b) Any city license expiring on the same date as the state license for the same premises shall be renewed and the fees required by Section 4.16.060 and amendments thereto paid no later than 10 business days after any renewal of the state license and shall remain in effect during this time period. The licensee shall be responsible for submitting an application for renewal of the city license at least 30 days in advance of the renewal date to allow time for the renewal process.

(c) Any establishment or business that is required to be licensed by the city as set forth in Section 4.16.050(a) or (b) and amendments thereto must obtain such license and pay the fee required in Section 4.16.060 and amendments thereto before the establishment opens for business under the original state license. Any subsequent renewal of such license shall be subject to the procedures set for in subsection (b) herein.

(d) Any extension of the effective term of the state license issued for an establishment or business shall extend the term of the city license that is issued pursuant to this chapter for the same premises. The city license shall extend for the same period of time as the state license extension, provided, however, the licensee shall be responsible for providing proof of any extension of the license by the state to the City Treasurer's office.
(Ord. No. 50-161 § 6, 3-15-16; Ord. No. 51-588, § 17, 7-13-21)

Sec. 4.16.068. Reserved.

Editor's note—Ord. No. 52-246, § 8, adopted Aug. 15, 2023, repealed § 4.16.068, which pertained to denial of license—appeal, and derived from Ord. No. 50-161 § 7, adopted Mar. 15, 2016.

Sec. 4.16.070. License exclusive to premises issued.

(a) The license provided in this Chapter shall be issued for one particular premises which shall be stated in the application and in the license. No license shall be issued for premises wherein the use thereof would be in violation of any provision of the Wichita-Sedgwick County Uniform Building and Trade Code, the Wichita-Sedgwick County Unified Zoning Code or the Fire Code of the City of Wichita. Nothing in this section shall be construed to require a fixed premise for persons licensed as a caterer pursuant to article 26 of Chapter 41 of Kansas Statutes Annotated.

(b) Any licensed premises which includes the exterior of a building and/or an outdoor area must be adequately lighted during all business hours.

(c) Except as provided in subsection (e), any licensed premises which includes the exterior of a building must be enclosed by a fence or approved diverters in such a way as to allow access only through a single structure designated as the official gate or entrance.

(d) Any licensed premises which is an outdoor area must have its boundaries clearly marked or fenced so as to allow access only through an official gate or entrances.

(e) Any licensed premises of a special event, for which a temporary permit has been issued pursuant to K.S.A. 41-2645 and amendments thereto, or an extension of the licensed premises pursuant to a sidewalk café permit or Open Air ICT permit shall be clearly marked by signs, a posted map or other means which reasonably identify the area in which alcoholic liquor may be possessed or consumed at such special event or pursuant to a sidewalk care permit or Open Air ICT permit.

(f) The licensed premises of a drinking establishment that is immediately adjacent to, or located within the licensed premises of a special event, for which the consumption of alcoholic liquor on public property has been approved either by a temporary permit or as a catered event, may be extended into and made a part of the licensed premises of the special event for the duration of the catered event or the temporary permit issued for such special event.
(Ord. No. 49-487 § 6, 4-23-13, eff. 4-26-13; Ord. No. 50-161 § 8, 3-15-16; Ord. No. 51-588, § 18, 7-13-21)

Editor's note—Prior to the reenactment of § 4.16.070, said section was repealed by Ord. No. 49-295 § 6, adopted May 26, 2012, effective July 1, 2012. The former § 4.16.070 pertained to no drinks promotion, allowing removal of alcoholic liquor from certained licensed premises, and derived from Ord. No. 39-907 § 11, and Ord. No. 47-056 § 2, adopted June 27, 2006.

Sec. 4.16.075. Reserved.

Editor's note—Ord. No. 50-161 § 23, adopted March 15, 2016, repealed § 4.16.075 which pertained to drinking establishments and drinking establishment/restaurants currently licensed, renewal thereof and derived from Ord. No. 48-353 § 12, adopted June 23, 2009.

Sec. 4.16.077. Security personnel and control of premises.

a. It is the obligation of the owner, licensee, manager, employee, representative or responsible person and a condition of the license to maintain, at all times when the licensed establishment is open for business, adequate security personnel for the premises of such business.

b. The owner, licensee, manager, employee, representative or responsible person shall provide for the orderly dispersal of patrons from the premises of the licensed establishment at closing time, and shall prevent patrons from congregating or loitering on the premises of the establishment.

c. The owner, licensee, manager, employee, representative or responsible person shall be responsible to ensure that an adequate number of security personnel are employed and in attendance in order to maintain order and ensure compliance with all applicable federal and state laws and city ordinances.

d. The owner, licensee, manager, employee, representative or responsible person of a licensed establishment is responsible to exercise appropriate control over its invitees on the premises for such purposes as preventing unnecessary noise, litter, trespass, loitering, property damage, traffic obstruction and similar activities which may constitute a nuisance.

e. The purpose of the security personnel requirement is to maintain the public peace and order on the premises of the licensed establishment. The owner, licensee, manager, employee, representative or responsible person is under a continuing obligation to take reasonable measures, including calling emergency personnel, to curtail any conduct which is in violation of state or local laws or offensive to public health, decency and morality, or peace and order, including, without limitation, minors in possession of alcoholic beverage, use or possession of controlled substances, crimes of violence such as homicide, aggravated battery, battery, aggravated assault, assault, rape, criminal threat and disorderly conduct. Failure to immediately notify law enforcement of criminal activity occurring on the licensed premises may be grounds for revocation or suspension of the license.
(Ord. No. 52-246, § 9, 8-15-23)

Sec. 4.16.080. Unlawful acts of licensee or permit holder.

It is unlawful for any licensee or holder of a temporary permit under this chapter to:

(a) Employ any person under the age of 21 years in connection with the mixing or dispensing of alcoholic liquor or cereal malt beverage;

(b) Knowingly employ or continue to employ any person in connection with the dispensing or serving of alcoholic liquor or cereal malt beverage or the mixing of drinks containing alcoholic liquor or cereal malt beverage who has been adjudged guilty of a felony or of any crime involving a morals charge in the court of this city, or of this state or any other state, or of the United States;

(c) Knowingly employ or continue to employ any person in connection with the dispensing or serving of alcoholic liquor or cereal malt beverage, or the mixing of drinks containing alcoholic liquor or cereal malt beverage, who has been adjudged guilty of two or more violations of K.S.A. 21-5607, and amendments thereto, furnishing alcoholic liquor or cereal malt beverage to minors, or a similar law of the City of Wichita, any other municipality, any other state, or of the United States, pertaining to furnishing alcoholic liquor or cereal malt beverage to minors within the immediately preceding five years, or who has been adjudged guilty of three or more violations of any intoxicating liquor law of the City of Wichita, any other municipality, any other state, or of the United States, not involving the furnishing of alcoholic liquor or cereal malt beverage to minors within the immediately preceding five years;

(d) In the case of a club, fail to maintain at the licensed premises a current list of all club members and their residences addresses or refuse to allow the Director, any or the Director's authorized agents, the City Attorney, the City Attorney's designee or any law enforcement officer to inspect such list;

(e) Purchase alcoholic liquor or cereal malt beverage from any person except from a person authorized by law to sell such alcoholic liquor or cereal malt beverage to such licensee or permit holder;

(f) Permit any employee of the licensee or permit holder who is under the age of 21 years of age to work on the premises where alcoholic liquor or cereal malt beverage is sold by such licensee or permit holder at any time when not under the on-premises supervision of either the licensee or permit holder, or an employee who is 21 years of age or over;

(g) Employ any person under the age of 18 years in connection with the serving of alcoholic liquor or cereal malt beverage.

(Ord. No. 39-907 § 3; Ord. No. 50-161 § 9, 3-15-16; Ord. No. 51-588, § 19, 7-13-21)

Sec. 4.16.085. Requirements for licensees.

All applicants for a drinking establishment license or a drinking establishment/restaurant license shall be required to provide the following as a part of such application:

a. A business plan which will be on a form provided by the City's licensing section and shall provide such information as set forth herein, including, but not limited to, a security plan, information as to hours of operation, proposed forms of entertainment, key personnel such as owner(s) and any on-site manager(s), insurance coverage information, a copy of any lease or purchase agreement for the licensed premises, a floor plan of the licensed premises and a site plan showing the location of parking spaces as required by the Uniform Zoning Code of the City. Failure to provide a complete business plan with the information required herein will result in denial of the requested license.

b. A food menu, a statement of monthly projected income and copies of vendor letters of intent as a part of such application. Failure to provide this information as part of the applicant's business plan will result in denial of the requested license.

c. Proof that the proposed licensed premises have been subject to a CPTED (Crime Prevention Through Environmental Design) inspection by the Wichita Police Department. The recommendation of such inspection shall be attached to the application.

d. Proof that the applicant and all listed on-sight managers of the establishment, or, if the applicant is a corporation, all listed on-site managers have attended a four-hour "safe bar" class conducted by the Wichita Police Department. Any manager subsequently hired by the licensee shall be required to show proof of attendance of the "safe bar" class within 45 days of such manager's date of employment at said establishment.

Failure to of any licensee to provide such proof shall be grounds for revocation of the license.

e. A list of all on-sight managers for the establishment, which list shall also be updated in writing with the City license section within 10 business days from the date any manager is no longer employed by the licensee or when any new manager is hired by the licensee.

f. Once the information required by this section has been provided to the City's licensing section by all new applicants and by all applicants who have not provided this information on a previous application, the provisions of this Section shall not apply to subsequent renewal applications for drinking establishments or drinking establishment/restaurants. Any material changes in the capacity of the licensed establishment will require an updated application with all information required by this section.

Provided, however, updates regarding any changes being made by an establishment in the information required in this section, and information regarding any on-sight manager(s) for the licensed premises as required in subsection (e) herein shall be sent to the City license section in writing within 10 business days.

(Ord. No. 48-353 § 13, 6-23-09; Ord. No. 52-246, § 10, 8-15-23)

Editor's note—Ord. No. 52-246, § 10, adopted Aug. 15, 2023, amended the title of § 4.16.085 to read as herein set out. The former § 4.16.085 title pertained to requirements for new licensees.

Sec. 4.16.087. Enforcement of required food sales percentage; audits.

Enforcement of the food sale percentages required for drinking establishment/restaurants by the provisions of this Title shall be by both random and regularly scheduled audits of such establishments.

(a) *Newly licensed establishments.* Every licensee of a newly licensed drinking establishment/restaurant shall be required to provide information as required in subsection (b) herein for an initial audit once the establishment has been in operation for a two month period. Once two months have passed from the date the drinking establishment/restaurant began operations, the licensee shall have an additional fifteen (15) days to remit all information to the City's licensing section for the final audit.

(b) *Audits of any licensed establishment.* Information for any audit required by this section shall be submitted on forms approved by the City and shall be sent to the City's licensing section. Such information will then be forwarded to the Special Investigations Bureau of the Wichita Police Department who shall be responsible for conducting or overseeing the audit process. Information which must be provided shall include, but not be limited to, copies of business records sufficient to demonstrate the total gross revenue during the two months in question for food sales and alcohol sales. Sufficient business records shall be deemed to include, but shall not be limited to, a list of vendors with verifying information, including written authorization from the licensee for any agent or agents of the City to contact vendors directly and obtain information regarding such records, a listing of monthly payments to food vendors and monthly payments to alcohol vendors. For the purposes of any audit required by this section, revenues from the sale of non-alcoholic beverages that are mixed with alcoholic liquor shall be counted as alcohol sales and not as food sales. Revenue from a cover charge, payment or fee to enter or remain in a drinking establishment/restaurant which amount or fee includes any portion or amount for food service or entitles the individual to eat at a buffet or food bar shall not be included as food sales for the purpose of an audit under this section.

Once an audit is requested by the police, the licensee shall have fifteen (15) days to remit all

required information to the licensing section. Failure to provide the necessary business records as required herein, or the failure of the records provided to demonstrate that the required food sale percentages are being maintained by the establishment will result in the reclassification of the premises from a drinking establishment/restaurant to a drinking establishment, as provided in Section 4.16.095, and any amendments thereto.
(Ord. No. 48-353 § 14, 6-23-09; Ord. No. 49-360 § 2, 10-16-12)

Sec. 4.16.088. Enforcement of alcohol sales percentage for drinking establishment/incidental licenses; audits.

Enforcement of the alcohol sales percentage required for drinking establishment/incidental licenses by the provisions of this Title shall be by both random and regularly scheduled audits of such establishments.

(a) *Newly licensed establishments*. Every licensee of a newly licensed drinking establishment/incidental premises shall be required to provide information as required in subsection (b) herein for an initial audit once the establishment has been in operation for a two month period. Once two months have passed from the date the drinking establishment/incidental began operations under the new license, the licensee shall have an additional fifteen (15) days to remit all information to the City's licensing section for final audit.

(b) *Audits of any licensed establishment*. Information for any audit required by this section shall be submitted on forms approved by the City and shall be sent to the City's licensing section. Such information will then be forwarded to the Special Investigations Bureau of the Wichita Police Department who shall be responsible for conducting or overseeing the audit process. Information which must be provided shall include, but not be limited to, copies of business records sufficient to demonstrate the total gross revenue from overall sales during the two months in question for alcohol sales and sales other than of alcohol. Sufficient business records shall be deemed to include, but shall not be limited to, a list of vendors with verifying information, including written authorization from the licensee for any agent or agents of the City to contact vendors directly and obtain information regarding such records, a listing of monthly payments to alcohol vendors, and records accounting for alcohol sales and sales other than of alcohol. For the purposes of any audit required by this section, revenues from the sale of non-alcoholic beverages that are mixed with alcoholic liquor shall be counted as alcohol sales.

Once an audit is requested by the police, the licensee shall have fifteen (15) days to remit all required information to the licensing section. Failure to provide the necessary business records as required herein, or the failure of the records provided to demonstrate that the alcohol sale percentages are being maintained by the establishment will result in suspension of the license as provided in Section 4.16.095, and any amendments thereto.
(Ord. No. 52-184, § 4, 6-13-23)

Sec. 4.16.090. Suspension, revocation, administrative penalty, additional conditions.

a. The Chief of Police or designee shall immediately petition to revoke the license of any licensee whenever the state license of the licensee is revoked by the state for any reason and the business remains in operation.

b. The Chief of Police or designee, upon no less than five days written notice by first class mail or personal service to a person holding a license issued pursuant to this Chapter, shall have the authority to suspend such license for a period not to exceed 30 days for any reason stated in subsection (d), which violation does not in the Chief of Police or designee's judgment justify a recommendation of revocation to the City Council. In lieu of suspension, the Chief of

Police or designee may assess an administrative penalty not to exceed $5,000 or require additional conditions of including but not limited to: limited hours, additional security personnel, wands, security cameras, bag checks, restrictions on type of bags allowed in establishment, or reduction in maximum capacity. The additional conditions shall be effective until the license is considered for renewal. At renewal, the conditions may be extended as a condition of the license. Additional conditions are appealable within 14 days of being ordered and within 14 days of being extended as a condition of renewal. The notice to the licensee shall provide the effective date of the placement of additional conditions or suspension of the license. Such notice shall detail the reasons or basis for the action and shall specify the rights of the license holder to appeal any such action.

c. The Chief of Police may petition the City Council to suspend a license in excess of 30 days or revoke a license for any of the reasons listed in subsection (d). The petition shall include the grounds for suspension or revocation and the requested length of suspension or revocation. The Chief of Police will notify the licensee of the request. Such notice shall include a copy of the petition, and notice of the date the item appears on the City Council agenda following the procedures set forth in Section 2.04.237. Notice shall be delivered in person or by first class mail to the licensee not less than five days before the hearing. After hearing the facts, the panel of the City Council will determine if there should be a suspension or revocation, the length of suspension, and/or an administrative penalty not to exceed $5,000.

d. The following factors may be considered in determining if a license should be modified, denied, suspended, revoked, or assessed an administrative penalty:

1. If the licensee has fraudulently obtained the license by giving false information in the application therefor or any hearing thereon;

2. If the owner, licensee, manager, employee, representative or responsible person has violated, any of the provisions of this Title, Chapter 3.30 of the Code of the City of Wichita, any rule or regulation by the City Council, or the licensed premises are in violation of the health, housing or fire codes of the City of Wichita or any provision of the Wichita-Sedgwick County Uniform Building and Trade Code, or any provision of the Wichita-Sedgwick County Unified Zoning Code, or any other law of the federal government or State of Kansas or ordinance of the City of Wichita while on the licensed premises or pertaining to the licensed premise.

3. If the licensee has become ineligible to obtain a license or permit under this title;

4. The licensee or the manager or employee has been intoxicated while on duty;

5. If the owner, licensee, manager, employee, representative or responsible person has permitted any disorderly person to remain on premises where alcoholic liquor is sold by such licensee;

6. If there has been a violation of a provision of the laws of this city or of this state or of any other state or the United States pertaining to the sale of intoxicating or alcoholic liquors or cereal malt beverages, or any crime involving a morals charge on premises where alcoholic liquor is sold by such licensee;

7. If the licensee or his managing officers or any employee, has purchased or displayed, on premises where alcoholic liquor is sold by such licensee, a federal waging occupational stamp issued by the United States Treasury Department;

8. If the licensee or his managing officers or any employee, has purchased and displayed, on premises where alcoholic liquor is sold by such licensee, a federal coin-operated gambling device stamp for the premises issued by the United States Treasury Department;

9. If the licensee holds a license as a Class B Club, drinking establishment or caterer

and has been found guilty of a violation of Article 10 of Chapter 44 of the Kansas Statutes Annotated;

10. For failure to maintain sufficient records to determine the percentage of gross revenues obtained from the sale of cereal malt beverages or alcoholic liquor;

11. For failure to permit the inspection of records at all times during business hours by proper agents of the City;

12. There has been a violation of K.S.A. 2012 Supp. 21-6204 (maintaining, permitting a public nuisance) and amendments thereto, in or upon the licensee's place of business;

13. If the owner, licensee, manager, employee, representative or responsible person refused to allow members of the Police Department or Fire Department as well as other code enforcement or health officers of the City right of entry during business hours;

14. Failure to abide by security plan submitted by licensee;

15. The licensed premises was the site of repeated violent acts in a six-month period, such as homicide, assault, battery, aggravated battery, aggravated assault, disorderly conduct, rape or criminal threat or repeated acts of violence occurred adjacent to the licensed premises by people who exited the licensed establishment and the owner, licensee, manager, employee, representative or responsible person has not taken appropriate steps to ensure the safety of the public. Nothing in this ordinance shall be interpreted as penalizing a drinking establishment or private club, or the owner or employees of such drinking establishment or private club, solely for requesting assistance or reporting an incident to the police department. The City encourages drinking establishments and private club owners and employees to promptly report to the police department harmful or potentially harmful acts or conduct on the part of patrons. The licensee may be penalized, suspended or revoked if the licensee fails to mitigate or resolve circumstances that allow or permit violence to occur;

16. An applicant or licensee has unpaid Administrative Penalties, parking fees, water bills or any other administrative fees owed to the City of Wichita regarding a business owned by the applicant which has been unpaid for a period of 90 days or more;

17. An owner, licensee, manager, employee, representative or responsible person allowed or permitted gambling as defined in Chapter 5.36 of the Code of the City of Wichita or K.S.A. 21-6403 through K.S.A. 21-6408 in or upon the licensee's place of business.

e. The Chief of Police upon five days written notice by first class mail or personal service to the person holding a drinking establishment/restaurant license shall reclassify the premises to a drinking establishment if the licensee fails to provide information showing the required amount of gross revenues from sales of food and the service of food for consumption on the licensed premises, or has been convicted of three violations of Section 4.16.130. In the event of such reclassification by the Chief of Police, the licensee shall be ineligible to apply for, hold or have any interest in any business licensed as a drinking establishment/restaurant for a period of one year from the date of the reclassification, and shall have 30 days within which to apply for the appropriate zoning which may be required as a result of the change in classification and shall be permitted a reasonable time thereafter within which to complete the process. For the purpose of determining whether a conviction is a third or subsequent conviction under this section, all convictions for violation of Section 4.16.130 occurring within the immediately preceding twenty-four months, including those prior to the effective date of this section, shall be aggregated and considered together and it is irrelevant whether an offense occurred before or after conviction for a prior offense.

f. As used in this Section, any authority granted to the Chief of Police shall include his or her designee.

(Ord. No. 40-746 § 1; Ord. No. 48-353 § 15, 6-23-09; Ord. No. 50-161 § 10, 3-15-16; Ord. No. 52-246, § 11, 8-15-23)

Editor's note—Ord. No. 52-246, § 11, adopted Aug. 15, 2023, amended the title of § 4.16.090 to read as herein set out. The former § 4.16.090 title pertained to revocation of license.

Sec. 4.16.095. Emergency suspension due to immediate threat to public safety.

a. The Chief of Police, or Acting Chief, may require a licensee to cease operations and disperse all patrons whenever conduct by disorderly patrons reaches a magnitude that presents an immediate threat to the public safety and well-being of the patrons and general public in the vicinity of the establishment. The establishment shall remain closed until the threat has passed.

b. The Chief of Police or Acting Chief may temporarily suspend a license without 5 days' written notice or make additional security requirements without 5 days' written notice if it is determined that the licensee has a lack of security sufficient to protect the public and the lack of security poses a substantial risk of harm to patrons or others. An emergency suspension without 5 days' written notice shall only be used in cases where there has been a significant violent act or a credible threat of future violence. The suspension shall be effective immediately upon verbal notification by the Chief of Police or Acting Chief or designee to the licensee, manager, agent or representative and shall be effective for up to ten days as needed to restore order or to ensure the safety of the public. In lieu of suspension, the Chief of Police or Acting Chief may require additional conditions of operation including but not limited to restricted hours, additional security personnel, wands, security cameras, bag checks, restrictions on type of bags allowed in establishment, or reduced maximum capacity. The Chief or designee shall promptly complete a report outlining the basis for the decision to suspend the license and recommendations to adequately remedy the deficiencies of the establishment's security or safety plans. A copy of the report shall be provided to the City Manager on the first business day following the suspension or additional conditions. The Chief of Police or designee shall officially notify the licensee in writing by personal service or depositing such notice in first class mail to the address listed on the license the first business day after a suspension or imposition of additional conditions. The notice shall include the reason for the suspension or conditions, the length and dates of suspension, and rights of appeal.

c. If the Chief of Police or designee is unable to effect personal notification of an emergency suspension, notice will be posted upon the licensed property and also sent by first class mail to the primary contact or owner listed on the license.

d. The licensee or a designee shall meet with the Chief of Police or designee within 3 calendar days of an emergency suspension.

e. It is unlawful for any person to fail to comply with any directive issued by the Chief of Police or designee under the authority of this section.

f. An emergency suspension issued by the Chief of Police or Acting Chief does not preclude the Chief from issuing an additional suspension or other penalty pursuant to Section 4.16.090(b).

g. The provisions of this Chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be taken by the City for a violation of any ordinance of the City or statute of the State of Kansas.

(Ord. No. 43-700 § 2; Ord. No. 50-161 § 11, 3-15-16; Ord. No. 52-246, § 12, 8-15-23)

Editor's note—Ord. No. 52-246, § 12, adopted Aug. 15, 2023, amended the title of § 4.16.095 to read as herein set out. The former § 4.16.095 title pertained to suspension or reclassification of license by chief of police.

Sec. 4.16.100. Display of license.

Every licensee shall cause his license to be framed and hung in plain view in a conspicuous place on the licensed premises.

In addition to display of the license, a current list of all authorized on-site managers shall be posted and made available to law enforcement upon request.
(Ord. No. 39-907 § 5; Ord. No. 48-353 § 16, 6-23-09)

Sec. 4.16.110. Right of entry and inspection.

The right of immediate entry to and inspection of any premises where alcoholic liquor or cereal malt beverage is sold by a licensee or holder of a temporary permit, or any premises subject to the control of any licensee or temporary permit holder, by any duly authorized officer or agent of the city, or by any law enforcement officer, shall be a condition on which any every license or temporary permit is issued and the application for and acceptance of any license or temporary permit shall conclusively be deemed to be the consent of the applicant and licensee permit holder to such immediate entry and inspection. Such consent shall not be revocable during the term of the license or temporary permit. Such right of immediate inspection shall be at any time when the premises are occupied and is not limited to hours when the club or drinking establishment is open for business. Refusal of such entry shall be grounds for revocation of the license or temporary permit.
(Ord. No. 41-476 § 1; Ord. No. 51-588, § 20, 7-13-21)

Sec. 4.16.120. Closing hours and hours of sale.

(a) No club, drinking establishment, drinking establishment restaurant or drinking establishment/large capacity venue shall allow the serving, mixing or consumption of alcoholic liquor or cereal malt beverage on its premises between the hours of 2:00 a.m. and 6:00 a.m. on any day. At closing time:

(1) The lights are to be fully illuminated;

(2) The music, dancing or other live entertainment is to be stopped;

(3) All alcoholic liquor or cereal malt beverage is to be removed from all tables and no patron shall be in possession of any alcoholic liquor or cereal malt beverage; and

(4) Patrons are to be directed to vacate the premises. No person other than employees of the establishment shall be allowed to remain on the licensed premises more than thirty minutes after closing time.

(b) No club or drinking establishment licensed pursuant to Article 26 of Chapter 41 of the Kansas Statutes Annotated shall be open to members and the public between the hours of 2:00 a.m. and 6:00 a.m. on any day except that this subsection shall not apply to restaurants or hotels licensed as drinking establishments.

(c) No caterer shall allow the serving, mixing or consumption of alcoholic liquor or cereal malt beverage between the hours of 2:00 a.m. and 6:00 a.m. on any day at an event catered by such caterer.

(d) Subsections (a)(4) and (b) shall not apply to a billiard hall that is licensed as a drinking establishment during any sanctioned billiards tournament occurring on the premises thereof. Patrons and persons other than employees shall be allowed to remain on the premises at all times sanctioned tournament games are being played, but all rules regarding serving, mixing, consumption or possession of alcoholic liquor or cereal malt beverage must be observed between the hours of 2:00 a.m. and 6:00 a.m. during such sanctioned tournaments. Further, the licensee of such billiard hall must provide notice in writing at least 24 hours in advance to the Wichita Police Department Special Investigations Section of his or her intent to hold such a tournament. Failure to notify the police as required, or remaining open in violation of this section under false pretenses or when no sanctioned pool tournament is being played shall be grounds for suspension or revocation of the establishment's license to sell alcoholic liquor or cereal malt beverage pursuant to 4.16.095 or 4.16.090 and amendments thereto.

For the purpose of this subsection, "billiard hall" shall mean a place of amusement whose chief purpose is providing the use of billiard or pool tables to the public for a fee.
(Ord. No. 50-805, § 1, 6-26-18; Ord. No. 51-588, § 21, 7-13-21)

Editor's note—Ord. No. 50-805, § 1, adopted June 26, 2018, amended § 4.16.120 in its entirety to read as herein set out. Former § 4.16.120 pertained to closing hours, and derived from Ord. No. 39-907 § 7; Ord. No. 48-353 § 17, adopted June 23, 2009; and Ord. No. 48-548 § 12, adopted Dec. 1, 2009.

Sec. 4.16.130. Permitting consumption by minors; minors prohibited from entering or remaining in drinking establishments; exceptions; penalties.

(a) No licensee, permit holder, or any owner, officer, or employee thereof, shall knowingly or unknowingly permit the possession or consumption of alcoholic liquor or cereal malt beverages by a minor on premises where alcoholic beverages are sold by such licensee or permit holder, except that a licensee's or permit holder's employee who is not less than 18 years of age may serve alcoholic liquor or cereal malt beverage under the on-premises supervision of the licensee or permit holder, or an employee who is 21 years of age or older.

(b) No licensee, owner, officer, or employee of a drinking establishment shall knowingly or unknowingly allow a minor to enter or remain on the premises of a drinking establishment and no minor shall enter or remain on the premises of a drinking establishment.

(c) It shall be a defense to a prosecution of a licensee, permit holder, or any owner, officer, or employee thereof, under subsection (a) or (b) if:

(1) The defendant allowed the possession or consumption of the alcoholic liquor or cereal malt beverage by the minor or allowed the minor to enter or remain upon the premises of a drinking establishment with reasonable cause to believe that the minor was 21 or more years of age; and

(2) To possess or consume the alcoholic liquor or cereal malt beverage, or to enter or remain upon the premises of a drinking establishment, the minor exhibited to the defendant a driver's license, Kansas non-driver's identification card or other official or apparently official document that reasonably appears to contain a photograph of the minor and purporting to establish that such minor was 21 or more years of age.

(d) Violation of this section is a misdemeanor punishable by a fine of not less than $100 and not more than $500 or imprisonment not exceeding 30 days, or by both such fine and imprisonment.

(e) Violation of this section by a person 18 or more years of age but less than 21 years of age is a misdemeanor punishable by a fine of not less than $200 and not more than $500. In addition to such fine, the court may order the offender to perform 40 hours of public service. Further, any person less than 18 years of age who violates this section is a juvenile offender under the Kansas Juvenile Offenders Code and upon adjudication thereof shall be required as a condition of disposition to pay the fine or perform the public service, or both, as set forth in herein.

(f) The provisions of subsection (b) of this section apply only to drinking establishments, as defined in Section 4.04.010 of this Code and amendments thereto but not to drinking establishments also licensed as a microdistillery or a microbrewery by the State of Kansas, or to any other license issued under this chapter. Provided, however, minors will be allowed on the premises of drinking establishments also licensed as a microbrewery by the State of Kansas only when accompanied by the minor's parent or legal guardian and are not allowed on such premises after 10:00 p.m. on any day. Minors will be allowed on the premises of a drinking establishment/large capacity venue as set forth in Section 4.16.140 or this Code and amendments thereto.
(Ord. No. 50-796, § 1, 5-22-18; Ord. No. 51-588, § 22, 7-13-21)

Editor's note—Ord. No. 51-588, § 22, adopted July 13, 2021, changed the title of § 4.16.130 from permitting consumption by minors; minors prohibited from entering or remaining in drinking establishments; exceptions for microdistilleries

and microbreweries; penalties to permitting consumption by minors; minors prohibited from entering or remaining in drinking establishments; exceptions; penalties.

Sec. 4.16.135. Removal of alcoholic liquor or cereal malt beverage from licensed premises prohibited; exceptions.

(a) No person shall remove any drink of alcoholic liquor or cereal malt beverage from premises licensed as a club or drinking establishment or from a caterer's premises, or from premises licensed pursuant to a temporary permit. Violation of this section by a person is a misdemeanor punishable by a fine not to exceed one hundred dollars.

(b) Exceptions. Subsection (a) herein shall not apply to:

(1) A person who removes alcoholic liquor or cereal malt beverage from premises licensed as a Class A club, Class B club, drinking establishment, drinking establishment/restaurant or drinking establishment/large capacity venue as allowed in Section 4.16.158 and any amendments thereto.

(2) A person who removes alcoholic liquor or cereal malt beverage from premises of a licensed drinking establishment, which is adjacent to or within the area of a special event when such drinking establishment has properly extended its premises into the premises of a special event that has been appropriately licensed for the sale and/or consumption of alcoholic liquor or cereal malt beverage at such special event and the sale and/or consumption of such alcoholic liquor or cereal malt beverage has been approved by the City Council.

(Ord. No. 39-907 § 9; Ord. No. 47-056 § 1, 6-27-06; Ord. No. 48-353 § 19, 6-23-09; Ord. No. 51-588, § 23, 7-13-21)

Editor's note—Ord. No. 51-588, § 23, adopted July 13, 2021, changed the title of § 4.16.135 from removal of alcoholic liquor from licensed premises prohibited; exceptions to removal of alcoholic liquor or cereal malt beverage from licensed premises prohibited; exceptions.

Sec. 4.16.140. Drinking establishment/large capacity venue—Licensing provisions, operating requirements.

(a) To obtain a license under the provisions of this Title to operate as a Drinking Establishment/Large Capacity Venue, the premises to be licensed must meet the following requirements:

(1) Capacity. The premises must have an approved capacity of 850 or more persons.

(2) Entertainment. The premises must offer entertainment. For the purposes of this license classification, the term 'Entertainment' shall mean any single event, a series of events, or an ongoing activity or business, occurring alone or as part of another business, to which the public is invited or allowed to watch, listen, or participate, or is conducted for the purpose of holding the attention of, gaining the attention of, or diverting or amusing patrons, including and limited to the following:

(a) Dancing by patrons to live music;

(b) The presentation of live music whether amplified or un-amplified;

(c) The presentation of music videos, music concerts or other similar forms of musical entertainment from any source; or

(d) Any amusement or event such as live music or other live performance including, but not limited to, presentations by single or multiple performers, such as hypnotists, pantomimes, comedians, dance acts, concerts, live bands, or other live music.

(3) Permanent Stage. The premises must have a built-in stage that is at least 200 square feet in size and that is not temporary or movable.

(4) Minors on premises. Patrons who are minors may be allowed on premises licensed as a Drinking Establishment/Large Capacity Venue as follows:

(a) Patrons between 18 and 21 years of age may remain on the premises from opening time until 12:00 midnight.

(b) Patrons under the age of 18 may remain on the premises from opening time until 11:00 p.m. on Sunday through Thursday nights and until 12:00 midnight on Friday and Saturday nights. This ordinance shall apply independently of the time restrictions set in the City's Curfew ordinance as set forth in Section 5.52.010 of this Code.

(c) Entertainment or shows extending past 12:00 midnight shall be open only to patrons who are 21 or older.

(d) The establishment must have a system in place for checking identification of all patrons, visibly identifying patrons who are of drinking age and ensuring that underage consumption of alcoholic liquor is not taking place.

(5) Video Surveillance. The establishment must maintain properly working digital cameras at all times which must be mounted in front of the establishment (both inside and outside), at all entry doors and outside all bathroom doors.

(6) Training. All managers and employees of the establishment must successfully compete the Club Violence Reduction Program (CVRP) training provided by the Wichita Police Department.

(7) Crowd Management Measures. All persons awaiting admission to the premises should be placed in a line, not blocking the sidewalk, and should be informed by employees of the establishment that persons who are not orderly will not be admitted to the premises. Any person not admitted to the premises should be asked to leave the area.

(8) Event notification. When a planned event is expected to have an attendance of 500 or more persons, or when patrons under 21 years of age are to be allowed on the premises, the manager of the establishment must send written or email notification to the Wichita Police Department no later than 10 (ten) calendar days prior to the scheduled event. Such notification shall be made to the Captain of the Bureau in which the licensed premises is located. The notification will include the number of anticipated attendees as well as the pre-defined security plan that is based upon such number. The Bureau Captain may request modifications to such security plans as may be required to insure the safety of patrons and surrounding businesses.

(9) Security. The establishment must submit pre-defined security plans as a part of the license application. Such plans must be approved by the Wichita Police Department prior to the operation of the establishment as a Drinking Establishment/Large Capacity Venue. Plans will be created based upon anticipated attendance of up to 500 persons, 501 to 1000 persons, and over 1000 persons. The establishment must use a licensed private security company that is bonded and insured. Security guards must be distinctively and uniformly attired for easy identification. Security guards will be spread throughout the establishment and not just at points of entry, and will be required to patrol the exterior and the parking lots of the premises. Security staff ratio to number of patrons will be determined based upon the pre-defined security plans submitted as part of the licensing process.

(10) Closing. Management of the premises, through the use of security staff, must ensure orderliness when patrons are exiting the establishment. This shall include use of security personnel to vacate abutting and adjacent properties, including parking lots.

(11) Premises located in Old Town. An establishment located within the Old Town Entertainment District, as that term is defined in Section 3.30.020 of this Code and amendments thereto, must also comply with all additional operational requirements for an Old Town Large

Assembly Entertainment Establishment, as set forth in Section 3.30.125 of this Code and amendments thereto.

(b) In addition to the requirements set forth in subsection (a) herein, premises licensed as a Drinking Establishment/Large Capacity Venue shall be subject to all other ordinances that are applicable to all licenses required by Chapter 4.16 of this Code and specifically to drinking establishments as set forth in this Code, except where expressly exempted. These ordinances include, but shall not be limited to, Sections 4.16.055, 4.16.060, 4.16.065, 4.16.068, 4.16.070, 4.16.080, 4.16.085, 4.16.090, 4.16.095, 4.16.100, 4.16.110, 4.16.120, 4.16.130(a)- (e), 4.16.135, 4.16.155, 4.16.160, 4.16.165, 4.16.175, 4.16.180, and 4.16.190, and any amendments thereto.

(c) Failure on the part of the licensee to meet the requirements for a Drinking Establishment/ Large Capacity Venue, or conviction of the licensee or any owner, officer, or employee of the licensee of any two violations of Section 4.16.130 of the City Code occurring on the licensed premises within one year shall result in the premises being reclassified as a drinking establishment as provided in Section 4.16.095(c) and any amendments thereto, and the appeal of any such order will proceed as set forth in Section 4.16.095(d) - (g) and amendments thereto.
(Ord. No. 51-588, § 32, 7-13-21)

Sec. 4.16.145. Drinking establishment/ incidental—Licensing provisions, operating requirements.

(a) To obtain a license under the provisions of this Title to operate as a drinking establishment/ incidental, the premises to be licensed must meet the following requirements:

(1) The premises may not sell or otherwise allow the consumption of alcohol on such premises unless the business is conducting its regular operations.

(2) No more than 50% of the gross revenues of overall sales of the business operating at the premises may be derived from sales of alcohol for consumption on such premises in a two-month period.

(3) The premises and all business operations shall be closed between the hours of 10:00 p.m. and 6:00 a.m. on any day.

(4) The premises may not charge a cover charge or entry fee at any time during business operations.

(5) The premises may not offer entertainment for which a license would be required under Chapter 3.30 of this Code.

(6) The premises may not offer outdoor service of food or beverage, including alcohol.

(7) The premises may not offer samples of alcoholic liquor free of charge.

(8) The premises must have a system in place for checking identification of all patrons, visibly identifying patrons who are of drinking age, and ensuring that underage consumption of alcoholic liquor is not taking place.

(b) All applicants for a drinking establishment/ incidental license shall be required to provide the following as part of such application:

(1) A business plan which will be on a form provided by the City's licensing section and shall provide such information as set forth herein, including, but not limited to, information as to hours of operation, key personnel such as owner(s) and any on-site manager(s), insurance coverage information, a copy of any lease or purchase agreement for the licensed premises, a floor plan of the licensed premises and a site plan showing the location of parking spaces as required by the Uniform Zoning Code of the City. Failure to provide a complete business plan with the information required herein will result in denial of the requested license.

(2) A description of business operations other than alcohol sales, a statement of monthly projected income and copies of vendor letters of intent as a part of such application. Failure to provide this information as part of the applicant's business plan will result in denial of the requested license.

(3) Proof that the proposed licensed premises have been subject to a CPTED (Crime Prevention Through Environmental Design) inspection by the Wichita Police Department. The recommendation of such inspection shall be attached to the application.

(4) Proof that the applicant and all listed on-sight managers of the establishment, or, if the applicant is a corporation, all listed on-site managers have attended a four-hour "safe bar" class conducted by the Wichita Police Department. Any manager subsequently hired by the licensee shall be required to show proof of attendance of the "safe bar" class within 45 days of such manager's date of employment at said establishment. Failure to of any licensee to provide such proof shall be grounds for revocation of the license.

(5) A list of all on-sight managers for the establishment, which list shall also be updated in writing with the City license section within 10 business days from the date any manager is no longer employed by the licensee or when any new manager is hired by the licensee.

(c) A premises licensed as a drinking establishment/incidental may:

(1) Sell or deliver wine by the bottle or carafe;

(2) Sell, offer to sell and serve individual drinks at different prices throughout any day; or

(3) Offer customer self-service of beer or wine from automated devices on licensed premises so long as the licensee monitors and has the ability to control the dispensing of such beer or wine or both from the automated device, and provided that there is compliance with all requirements for the use of such automated device as set forth in K.S.A. 2020 Supp. 41-2640 and any amendment thereto.

(d) In addition to the requirements set forth in subsection (a) herein, premises licensed as a Drinking Establishment/Incidental shall be subject to all other ordinances that are applicable to all licenses required by Chapter 4.16 of this Code and specifically to drinking establishments, except where expressly exempted.

(e) Failure on the part of the licensee to meet the requirements for a Drinking Establishment/Incidental license, or conviction of the licensee or any owner, officer, or employee of the licensee of any two violations of Section 4.16.130 of the City Code occurring on the licensed premises within one year shall result in suspension of the license as provided in Section 4.16.095, and any amendments thereto.
(Ord. No. 52-184, § 5, 6-13-23)

Sec. 4.16.150. Class A club license; rights of licensee.

A license for a Class A club shall allow the licensee to:

(a) Offer for sale, sell and serve alcoholic liquor or cereal malt beverage for consumption on the licensed premises by members and their families and guests accompanying them and to any reciprocal member as provided by K.S.A. 41-2637, and any amendments thereto; and

(b) Serve samples of alcoholic liquor or cereal malt beverage free of charge for consumption by members and their families and guests accompanying them and to any reciprocal member as provided by K.S.A. 41-2637 and any amendments thereto. No charge of any sort may be made for a sample serving. Samples may not be served to a minor. No samples may be removed from the licensed premises. No consideration shall be requested or required for entry onto the premises, participation in any event taking place on the premises or to remain on the premises.

(c) A Class A club licensee may also offer for sale, sell and serve alcoholic liquor for consumption on the licensed premises by individuals other than members of the

licensee, their families or guests during an event, provided that the licensee shall provide electronic notification to the Director at least 48 hours prior to any such event. The notice shall be made available to local law enforcement and shall consist of the date, time, location and the names of the contracting parties of the event. The licensee shall retain all documents regarding the event as required by the Director. For the purposes of this subsection, the term "event" means any function, occasion, celebration or other event held on the licensed premises for a specified duration of time and during which individuals who are not members of the licensee, their families or guests are permitted to enter and use the licensed premises pursuant to an agreement between the licensee and the contracting party.

(d) A Class A club licensee may allow removal of alcoholic liquor and cereal malt beverage from the licensed premises as allowed by K.S.A. 41-2653 and Section 4.16.158 of this Code and amendments thereto.

(e) A licensee is further authorized to engage in activities as set forth in K.S.A. 41-2637 and amendments thereto.

(Ord. No. 39-907 § 10; Ord. No. 50-161 § 13, 3-15-16; Ord. No. 51-588, § 24, 7-13-21)

Sec. 4.16.152. Class B club license; rights of licensee.

A license for a Class B club shall allow the licensee to:

(a) Offer for sale, sell and serve alcoholic liquor or cereal malt beverage for consumption on the licensed premises by members of such club and guests accompanying members, and to any reciprocal member as provided by K.S.A. 41-2641 and any amendments thereto; and

(b) Serve samples of alcoholic liquor or cereal malt beverage free of charge on the licensed premises for consumption by such members and their families and guests accompanying them. No charge of any sort may be made for a sample serving. Samples may not be served to a minor. No samples may be removed from the licensed premises. Providing samples is prohibited for any licensee who charges a cover charge or entry fee at any time during the business day. No consideration shall be requested or required for entry onto the premises, participation in any event taking place on the premises or to remain on the premises.

(c) A Class B club licensee may allow removal of alcoholic liquor and cereal malt beverage from the licensed premises as allowed by K.S.A. 41-2653 and Section 4.16.158 of this Code and amendments thereto.

(d) A licensee is further authorized to engage in activities as set forth in K.S.A. 41-2641 and amendments thereto.

(Ord. No. 50-161 § 14, 3-15-16; Ord. No. 51-588, § 25, 7-13-21)

Sec. 4.16.153. Caterers.

(a) A caterer's license shall allow the licensee to offer for sale, sell and serve alcoholic liquor or cereal malt beverage for consumption on unlicensed premises which may be open to the public.

(b) Every licensee shall cause the caterer's license to be placed in plain view on any premises within the City where the caterer is serving or mixing alcoholic liquor for consumption on the premises.

(c) Prior to any event at which a caterer will sell or serve alcoholic liquor or cereal malt beverage by the individual drink, the caterer shall provide electronic notification to the Director at least 48 hours prior to any event at which the caterer will sell alcoholic liquor or cereal malt beverage by the individual drink. The Director shall make electronic notification available to local law enforcement. Notice shall consist of the time, location and the names of the contracting parties of the event. For events where alcoholic liquor or cereal malt beverage is served, a licensee shall retain all documents for a period of three years for inspection by the

director. The documents retained shall include agreements, receipts, employees assigned to the event and records of alcoholic liquor or cereal malt beverage purchased. Notification shall not be required for weddings, funerals, events sponsored by religious institutions, or for business, industry or trade sponsored meetings, including, but not limited to, awards presentations and retirement celebrations.

(d) A licensee is further authorized to engage in activities as set forth in K.S.A. 41-2643 and amendments thereto.
(Ord. No. 50-161 § 15, 3-15-16; Ord. No. 51-588, § 26, 7-13-21)

Sec. 4.16.154. Temporary permits.

(a) A temporary permit shall allow the permit holder to offer for sale, sell and serve alcoholic liquor or cereal malt beverage for consumption on unlicensed premises, or on premises that are otherwise subject to a separate temporary permit that may be open to the public, subject to the terms of the permit.

(b) A temporary permit shall specify the premises for which such permit is issued and shall be issued only for premises as allowed by the Wichita-Sedgwick County Unified Zoning Code.

(c) A temporary permit shall be issued for a period of time not to exceed three consecutive days, the dates and hours of which will be specified in the permit. Not more than 12 temporary permits may be issued to any one applicant in a calendar year. Provided, however, that, pursuant to K.S.A. 41-1201 and amendments thereto, the director may issue a temporary permit for a special event which, in the director's discretion, may last no more than 30 days in duration.

(d) A holder of a temporary permit is further authorized to engage in activities as allowed by Chapter 41, Article 12 of the Kansas Statutes Annotated and amendments thereto, including, but not limited to, providing samples of wine, beer, cereal malt beverage and distilled spirits, sales of alcohol liquor at a charitable auction and sales of one or more limited issue porcelain containers containing alcoholic liquor.
(Ord. No. 50-161 § 16, 3-15-16; Ord. No. 51-588, § 27, 7-13-21; Ord. No. 51-884, § 3, 6-28-22)

Sec. 4.16.155. No drinks promotion, certain sales prohibited; penalties.

(a) No club, drinking establishment, drinking establishment/restaurant, drinking establishment/hotel, drinking establishment/large capacity venue, drinking establishment/incidental, caterer or holder of a temporary permit, nor any person acting as an employee or agent thereof shall:

(1) Offer or serve any free drink of cereal malt beverage or alcoholic liquor in any form to any person;

(2) Offer or serve to any person an individual drink at a price that is less than the acquisition cost of the individual drink to the licensee or permit holder;

(3) Sell, offer to sell or serve to any person an unlimited number of individual drinks during any set period of time for a fixed price, except at private functions not open to the general public or to the general membership of a club;

(4) Encourage or permit, on the licensed premises, any game or contest which involves drinking alcoholic liquor or cereal malt beverage or the awarding of individual drinks as prizes;

(5) Sell, offer to sell, or serve free of charge any form of powdered alcohol, as defined in K.S.A. 41-102, and amendments thereto; or

(6) Advertise or promote in any way, whether on or off the licensed premises, any of the practices prohibited under subsections (a)(1) through (5).

(b) A club, drinking establishment, drinking establishment/restaurant, drinking establishment/hotel, caterer or holder of a temporary permit may:

(1) Offer free food or entertainment at any time;

(2) Sell or deliver wine by the bottle or carafe;

(3) Sell, offer to sell and serve individual drinks at different prices throughout any day; or

(4) Sell or serve beer or cereal malt beverage or mixed alcoholic beverage in a pitcher;

(5) Offer samples of alcoholic liquor as authorized by the Kansas Club and Drinking Establishment Act and Section 4.16.160 of this Code and any amendments thereto.

(6) A club, drinking establishment, drinking establishment/restaurant, drinking/establishment/hotel or drinking establishment/large capacity venue may offer customer self-service of beer or wine from automated devices on licensed premises so long as the licensee monitors and has the ability to control the dispensing of such beer or wine or both from the automated device, and provided that there is compliance with all requirements for the use of such automated device as set forth in K.S.A. 2020 Supp. 41-2640 and any amendment thereto.

(7) A hotel of which the entire premises is licensed as a drinking establishment may distribute coupons to its guests redeemable on the hotel premises for drinks containing alcoholic liquor as allowed and approved by the Kansas Secretary of Revenue.

(8) A hotel of which the entire premises is not licensed as a drinking establishment may distribute coupons to its guests redeemable with one or more clubs or drinking establishments for drinks containing alcoholic liquor as allowed and approved by the Kansas Secretary of Revenue.

(c) Violation of any provision of this section is a misdemeanor and punishable by a fine of not more than $500 or imprisonment not to exceed six months or by both such fine and imprisonment.

(d) Violation of any provision of this act shall be grounds for suspension or revocation of the retailer's license or the assessment of an administrative penalty not to exceed $1,000 as provided by this title.

(e) For the purposes of this section:

(1) 'Day' means from 6:00 a.m. until 2:00 a.m. the following calendar day;

(2) 'Mixed alcoholic beverage' means a beverage that is made by combining alcoholic liquor with a non-alcoholic liquor or other edible substance, including, but not limited to, margarita, sangria, daiquiri or mojito; and

(3) Pitcher' means any container that is capable of containing more than 32 fluid ounces but not more than 64 fluid ounces that is used to serve alcoholic liquor or cereal malt beverage to one or more individuals.

(Ord. No. 39-907 § 11; Ord. No. 47-056 § 2, 6-27-06; Ord. No. 49-295 § 5, 6-26-12, eff. 7-1-12; Ord. No. 50-161 § 17, 3-15-16; Ord. No. 51-588, § 28, 7-13-21; Ord. No. 52-184, § 6, 6-13-23)

Editor's note—Ord. No. 52-184, § 6, adopted June 13, 2023, amended the title of § 4.16.155 to read as herein set out. The former § 4.16.155 title pertained to no drinks promotion, certain sales practices prohibited; penalties.

Sec. 4.16.158. Removal of alcoholic liquor or cereal malt beverage from the premises of a club or drinking establishment.

(a) No club, drinking establishment, drinking establishment/restaurant, drinking establishment/hotel, drinking establishment/large capacity venue, drinking establishment/incidental, caterer or holder of a temporary permit, nor any person acting as an employee or agent thereof shall:

(1) Sell, offer to sell or serve any drink of alcoholic liquor or cereal malt beverage for consumption off of the licensed premises; or

(2) Recklessly allow or permit any person to remove a drink of alcoholic liquor from the licensed premises or from the caterer's

premises, except as allowed in Subsection 4.16.135 of this Code and any amendments thereto.

(3) Violation of any provision of this subsection is a misdemeanor and punishable by a fine of not more than $500 or imprisonment not to exceed six months or by both such fine and imprisonment.

(b) Notwithstanding the provisions in subsection (a), a Class A club license, Class B club license, drinking establishment, drinking establishment/restaurant or drinking establishment/large capacity venue shall allow the licensee to allow legal patrons of the club or drinking establishment to remove alcoholic liquor or cereal malt beverage from the licensed premises in one or more containers, including in the original unopened container, subject to the following conditions:

(1) It must be otherwise legal for the licensee to sell the alcoholic liquor or cereal malt beverage;

(2) Each container of alcoholic liquor or cereal malt beverage must have been purchased by a patron of the licensed premises;

(3) The licensee or the licensee's employee must provide the patron with a dated receipt for the alcoholic liquor or cereal malt beverage;

(4) Before the container of alcoholic liquor or cereal malt beverage is removed from the licensed premises, the licensee or the licensee's employee must securely reseal any opened container, and place the container in a tamper-proof, transparent bag that is sealed in a manner that makes it visibly apparent if the bag is subsequently tampered with or opened;

(5) No original unopened containers of spirits may be removed from the licensed premises; and

(6) No alcoholic liquor or cereal malt beverage may be removed from the licensed premises after 11:00 p.m. unless such alcoholic liquor is wine that was purchased and partially consumed on the licensed premises.

(c) A patron may remove one or more containers of beer, domestic beer, and cereal malt beverage, as those terms are defined in this Title, that are sold on the licensed premises to consumers and served in refillable and sealable containers for consumption off the licensed premises if such containers:

(1) Contain between 32 and 64 fluid ounces;

(2) Have a label affixed that clearly indicates the licensee's name and the type of alcoholic beverage contained in such container; and

(3) Are not sold or removed from the premises after 11:00 p.m.

(d) All alcoholic liquor, cereal malt beverage and nonalcoholic malt beverage sold by a licensee shall be subject to the tax imposed by K.S.A. 79-41a02 and amendments thereto.
(Ord. No. 51-588, § 33, 7-13-21; Ord. No. 52-184, § 7, 6-13-23)

Sec. 4.16.160. Drinking establishments and drinking establishment/restaurants—Allowing serving of samples.

Any drinking establishment, drinking establishment/restaurant, and drinking establishment/large capacity venue license shall allow the licensee to offer for sale, sell and serve alcoholic liquor or cereal malt beverage for consumption on the licensed premises which may be open to the public, and to serve samples of alcoholic liquor or cereal malt beverage free of charge on licensed premises. No charge of any sort may be made for a sample serving. Samples may not be served to a minor. No samples may be removed from the licensed premises. Providing samples is prohibited for any licensee who charges a cover charge or entry fee at any time during the business day. No consideration shall be requested or required for entry onto the premises, participation in any event taking place on the premises or to remain on the premises.

Alcoholic liquor and cereal malt beverage for the sampling as provided in this section shall be withdrawn from the inventory of the licensee. A person other than the licensee or the licensee's

agent or employee may not dispense or participate in the dispensing of alcoholic beverages under this section, except that the holder of a supplier's permit or such permit holder's agent or employee may participate in and conduct product tastings of alcoholic beverages upon a licensee's premises as provided in K.S.A. 41-2656 and amendments thereto.

A drinking establishment licensee of any type is further authorized to engage in activities as set forth in K.S.A. 41-2642 and amendments thereto.
(Ord. No. 50-161 § 18, 3-15-16; Ord. No. 51-588, § 29, 7-13-21)

Sec. 4.16.165. Dispensing and infusing alcoholic liquor.

(a) Alcoholic liquor or cereal malt beverage shall be dispensed only from original containers, except any drinking establishment licensee or its agent or employee, may dispense:

(1) alcoholic liquor or cereal malt beverage from a machine or container used to mix alcoholic liquor or cereal malt beverage with other liquids or solids intended for human consumption;

(2) alcoholic liquor or cereal malt beverage from a machine or container used to chill alcoholic liquor, or cereal malt beverage that may contain additional liquids or solids intended for human consumption; or

(3) infused alcoholic liquor or cereal malt beverage from a container used to infuse alcoholic liquor or cereal malt beverage with other substances intended for human consumption.

(b) A drinking establishment licensee, or its agent or employee, shall not refill any original container with any alcoholic liquor or cereal malt beverage or any other substance.

(c) Any drinking establishment licensee, or its agent or employee, may infuse alcoholic liquor or cereal malt beverage with spices, herbs, fruits, vegetables, candy or other substances intended for human consumption if no additional fermentation occurs during the process.

(d) As used in this section:

(1) *'Dispense'* means to portion out servings of alcoholic liquor or cereal malt beverage for consumption. This term shall include the pouring of drinks of alcoholic liquor or cereal malt beverage and opening original containers of alcoholic liquor or cereal malt beverage by the licensee or licensee's employee for consumption by customers, and shall not include any self dispensing by a customer.

(2) *'Infuse'* means to add flavor or scent to a liquid by steeping additional ingredients in the liquid.

(Ord. No. 50-161 § 19, 3-15-16; Ord. No. 51-588, § 30, 7-13-21)

Sec. 4.16.170. Reserved.

Editor's note—Ord. No. 50-161 § 23, adopted March 15, 2016, repealed § 4.16.170 which pertained to licenses required and derived from Ord. No. 43-700 § 4.

Sec. 4.16.175. Possession of alcoholic liquor or cereal malt beverage on licensed premises.

(a) Nothing in this title shall be construed to prohibit a person from possessing, on premises licensed pursuant to this Chapter, alcoholic liquor or cereal malt beverage not purchased from the licensee.

(b) Nothing in this section shall prevent a licensee under this Chapter from adopting a policy prohibiting the possession, on the licensee's licensed premises, of alcoholic liquor or cereal malt beverage not purchased from the licensee.
(Ord. No. 50-161 § 20, 3-15-16)

Sec. 4.16.180. Persons and entities ineligible for license.

(a) No license shall be issued under the provisions of this chapter to:

(1) A person who is not a citizen of the United States;

(2) A person who has been convicted of or has pled guilty to a felony under the laws of this state or any other state or of the United States;

(3) A person who has had a license revoked for cause under the provisions of Article 26 of Chapter 41 of the Kansas Statutes Annotated;

(4) A person who has been convicted of being the keeper or is keeping any property, whether real or personal, where sexual relations are being sold or offered for sale by a person who is 18 years of age or older or has forfeited bond to appear in court to answer charges of being a keeper of any property, whether real or personal, where sexual relations are being sold or offered for sale by a person who is 18 years of age or older;

(5) A person who has been convicted of or has pled guilty to being a proprietor of a gambling house or of pandering or other crimes or misdemeanors opposed to decency and morality or shall have forfeited bond to appear in court to answer charges for any such violations;

(6) A person who is not at least 21 years of age;

(7) A person who, other than as a member of the governing body of the City of Wichita or of Sedgwick County, appoints or supervises any law enforcement officer, who is a law enforcement official or who is an employee of the director, except that the provisions of this subsection shall not apply to prohibit the issuance of a license for a Class A club to an officer of a post home of a congressionally chartered service or fraternal organization, or a benevolent association or society thereof;

(8) A person who intends to carry on the business authorized by the license as agent of another;

(9) A person who at the time of application for renewal of any license issued hereunder would not be eligible for such license upon a first application except as provided by subsection 10;

(10) Any person if the spouse of such person would be ineligible to receive such a license hereunder for any reason other than citizenship, requirements or age, except that this subsection shall not apply in determining eligibility for a renewal license or to a person whose spouse is a law enforcement officer;

(11) A person whose spouse has been convicted of a felony or other crime that would disqualify a person from licensure under this section and such felony or other crime was committed during the time the spouse held a license under this Title, the Kansas Liquor Control Act or the Kansas Club and Drinking Establishment Act;

(12) A person who has a beneficial interest in the manufacture, preparation or wholesaling or the retail sale of alcoholic liquor or cereal malt beverage or a beneficial interest in any other club, drinking establishment or caterer licensed pursuant to Article 26 of Chapter 41 of the Kansas Statutes Annotated and this title, except that:

(A) A license for premises located in a hotel may be granted to a person who has a beneficial interest in one or more clubs or drinking establishments licensed hereunder if such other clubs or establishments are located in hotel;

(B) A license for a club or drinking establishment which is a restaurant may be issued to a person who has a beneficial interest in other clubs or drinking establishments which are restaurants;

(C) A caterer's license may be issued to a person who has a beneficial interest in a club or drinking establishment and a license for a club or drinking establishment may be issued to a person who has a beneficial interest in a caterer;

(D) A license for a Class A club may be granted to an organization of which an officer, director or board member is a distributor or retailer licensed

under the liquor control act if such distributor or retailer sells no alcoholic liquor to such club;

(E) Any person who has a beneficial interest in a microbrewery, microdistillery or farm winery licensed pursuant to the Kansas Liquor Control Act may be issued any or all of the following: (1) Class B club license; (2) any drinking establishment license; and (3) caterer's license;

(F) Any person who has a beneficial interest in a manufacturer licensed pursuant to the Kansas Liquor Control Act may be issued one drinking establishment license.

(13) A co-partnership, unless all of the copartners are qualified to obtain a license;

(14) A corporation, if any officer, manager, or director thereof, or any stockholder owning in the aggregate more than 5% of the common or preferred stock of such corporation would be ineligible to receive a club license hereunder for any reason other than citizenship and residence requirements;

(15) A corporation, if any officer, manager or director thereof, or any stockholder owning in the aggregate more than 5% of the common or preferred stock of such corporation has been an officer, manager or director, or a stockholder owning in the aggregate more than five percent of the common or preferred stock, of a corporation which:

(A) Has had a license revoked under the provisions of the club and drinking establishment act of the State of Kansas,

(B) Has been convicted of a violation of the club and drinking establishment act or the cereal malt beverage laws of the State of Kansas;

(16) A trust, if any grantor, beneficiary or trustee would be ineligible to receive a license under this chapter for any reason, except that the provisions of subsection (6) shall not apply in determining whether a beneficiary would be eligible for a license; or

(17) A person who has failed to pay any outstanding administrative penalty imposed pursuant to Section 4.12.090(c) or Section 4.16.095(d) of the City Code.

(b) No club or drinking establishment license shall be issued under the provisions of this Chapter to:

(1) A person who does not own the premises for which a license is sought, or does not, at the time the application is submitted, have a written lease thereon, except that an applicant seeking a license for a premises which is owned by a city or county, or is a stadium, arena, convention center, theater, museum, amphitheater or other similar premises may submit an executed agreement to provide alcoholic beverage services at the premises listed in the application in lieu of a lease.

(Ord. No. 41-811 § 1; Ord. No. 50-161 § 21, 3-15-16; Ord. No. 51-588, § 31, 7-13-21)

Sec. 4.16.190. Penalty for violation.

Violation of any provision of this chapter and amendments thereto, for which a penalty is not otherwise specifically provided is punishable by a fine not to exceed $500 or imprisonment not to exceed six months, or both such fine and imprisonment.

(Ord. No. 43-700 § 5; Ord. No. 50-161 § 22, 3-15-16)

Sec. 4.16.195. Appeal.

a. The licensee may appeal any order of suspension, revocation, additional conditions, penalty or reclassification issued pursuant to this section by filing with the City Clerk a written notice of appeal to the City Council within 14 calendar days of the decision to suspend a license by the City Council or Chief of Police. Notice of Appeal shall specify:

(1) The name and address of the appellant;

(2) The date of the suspension or reclassification of the license; and

(3) The factual basis for the appeal.

b. Upon receipt of a complete and timely filed Notice of Appeal or request by the Chief of Police for a suspension in excess of 30 days or revocation, the City Clerk shall schedule the case before the City Council following the procedure set forth in Section 2.04.237. Any appeal shall stay the suspension or reclassification of the license until the matter is heard by the panel of the City Council. The City Council may revoke a license, approve or overrule the suspension or reclassification of a license or may modify the decision to suspend or reclassify a license, and in addition, may impose an administrative penalty of up to $5,000. In any hearing before the panel of the City Council pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation is prima facia evidence of such violation.

c. An emergency suspension or additional conditions issued by the Chief of Police or designee may be appealed, but the suspension or additional conditions will not be stayed pending the appeal. In an appeal of an emergency suspension, in an effort to hear the appeal immediately, the Mayor may appoint three members of City Council to an appeal panel prior to the next scheduled City Council meeting so long as all other conditions of Section 2.04.237 are met. If available, the panel should include the council member from the District in which the establishment is located. The panel should make every effort to hear the appeal within 5 business days.

d. The City Council's finding may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the suspension or reclassification of the license or any modification imposed thereupon by the City Council.
(Ord. No. 52-246, § 13, 8-15-23)

Title 5

PUBLIC SAFETY AND MORALS

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CHAPTER 5.01. ETHNIC INTIMIDATION OR BIAS CRIMES

Sec. 5.01.010. Ethnic intimidation or bias crimes.
Sec. 5.01.020. Penalty.
Sec. 5.01.030. Police department record keeping.
Sec. 5.01.040. Severability.

Sec. 5.01.010. Ethnic intimidation or bias crimes.

(a) Any person who violates or attempts to violate any of the following ordinances of the Code of the City of Wichita, Kansas, and any amendments thereto, by reason of any motive or intent relating to, or any antipathy, animosity or hostility based upon, the race, color, gender, religion, national origin, age, sexual orientation, ancestry, disability, or handicap of another individual or group of individuals shall be guilty of a misdemeanor:

1. Chapter 5.10, Assault and Battery;
2. Chapter 5.24, Disorderly Conduct;
3. Section 5.66.010, Criminal Damage to Property;
4. Section 5.66.050, Criminal Trespass;
5. Chapter 5.82, Interfering with Telephone Service;
6. Chapter 5.88, Unlawful Use of Weapons;

(b) Any person who, by reason of any motive or intent relating to, or any antipathy, animosity or hostility based upon, the race, color or gender, religion, national origin, age, sexual orientation, ancestry, disability, or handicap of another individual or group of individuals knowingly assemble with two or more persons and agree with such persons to violate any of the criminal laws of the state of Kansas or of the United States with force or violence shall be guilty of a misdemeanor.
(Ord. No. 41-937 § 1; Ord. No. 41-204 § 1)

Sec. 5.01.020. Penalty.

Upon a conviction of a violation of the provisions of this chapter a person shall be deemed guilty of a misdemeanor and shall be punished by a fine of not less than $250.00 nor more than $2,500.00 or by imprisonment for not more than one year, or by both such fine and imprisonment.
(Ord. No. 41-204 § 2; Ord. No. 49-256, § 1, 5-8-2012)

Sec. 5.01.030. Police department record keeping.

The police department shall, on a monthly basis, prepare a statistical summary concerning all criminal acts and ordinance violations committed within the City of Wichita during the previous month which there is reason to believe have been committed as a result of any motive or intent relating to any antipathy, animosity or hostility based upon the race, color, gender, religion, national origin, age, ancestry, sexual orientation, disability or handicap of an individual or group of individuals. A copy of the summary shall be forwarded to the city manager and to the civil rights and services board. The summary shall not contain the names of persons who are suspected or accused of having committed crimes or ordinance violations.
(Ord. No. 41-204 § 3)

Sec. 5.01.040. Severability.

Nothing in this chapter shall be construed to promote, encourage or condone any organization, group or religion.
(Ord. No. 41-204 § 4)

CHAPTER 5.02. ABANDONED ICE BOXES

Sec. 5.02.010. Declared nuisance.
Sec. 5.02.020. Leaving in places accessible to children prohibited; exceptions.

Sec. 5.02.010. Declared nuisance.

Abandoned, unattended or discarded iceboxes, refrigerators and other containers having airtight doors which, when closed cannot be opened from the inside are hereby declared to be an attractive nuisance to children and a menace to their health and safety when accessible to them out of doors.
(Ord. No. 19-441 § 1)

Sec. 5.02.020. Leaving in places accessible to children prohibited; exceptions.

It is unlawful for any person to leave outside in a place accessible to children, any abandoned, unattended or discarded icebox, refrigerator or other container of any kind which has an airtight door or an airtight snap lock which when closed cannot be opened from the inside; provided, however, that this section shall not apply if the airtight snap lock or airtight doors have first been removed from the icebox, refrigerator or container.
(Ord. No. 19-441 § 2)

CHAPTER 5.04. ADVERTISING

Sec. 5.04.010. Obscene advertising matter.
Sec. 5.04.020. Advertising—Use of streets, etc.

Sec. 5.04.010. Obscene advertising matter.*

Any person who pastes or posts, or causes to be pasted or posted, any obscene picture or other obscene advertising matter on any billboard or along or adjacent to any street, alley or public grounds in the city is guilty of a misdemeanor.
(Ord. No. 11-592, Chapter 4 § 57)

Sec. 5.04.020. Advertising—Use of streets, etc.†

It is unlawful for any person, by dress, banner, posture or any other device intended for advertising, to use the sidewalks, streets, alleys or parks of the city on foot, when such use is principally for advertising purposes.
(Ord. No. 32-916; Ord. No. 11-592, Chapter 7 § 89; Ord. No. 17-657 § 1)

***Cross reference—**For other provisions relating to obscenity, see §§ 5.68.150, 5.68.155.

†**Cross reference—**For provisions relating to licensing, see Chapters 3.64 and 3.66.

CHAPTER 5.05. OLD TOWN ENTERTAINMENT DISTRICT

Sec. 5.05.010. Preamble.
Sec. 5.05.020. Definitions.
Sec. 5.05.030. Offenses within the Old Town Entertainment District.
Sec. 5.05.040. Chief of police responsibilities in the Old Town Entertainment District.

Sec. 5.05.010. Preamble.

WHEREAS, the City of Wichita has encouraged and nurtured the development of the areas in and around the Old Town Entertainment District as an area where citizens live, work, do business, shop, access dining and participate in community events; and

WHEREAS, the City of Wichita has experienced unique enforcement issues and challenges with regard to the policing of this diverse entertainment area;

WHEREAS, the occurrence of criminal activity in the Old Town Entertainment District and areas adjacent thereto continues to occur despite law enforcement's increased efforts and presence within this district; and

WHEREAS, the City has determined that the presence of persons loitering in public places within the Old Town Entertainment District and committing crimes within this area contributes significantly to this unacceptable situation regarding the continued safety of patrons, residents and property in the area; and

WHEREAS, the City has an important governmental interest in protecting the health, safety, and welfare of its citizenry; to protect citizens from crime; preserve the quality of life; preserve property values and business investments; preserve the character of the Old Town Entertainment District and deter the spread of blight; and

WHEREAS, the City of Wichita enacts the ordinances codified in Chapter 5.05 to increase penalties for certain reoccurring crimes in this area as aggressive action necessary to preserve the streets and other public places within said District, the quality of life, property values, and business investments so that the public may use such places.
(Ord. No. 49-751, § 4, 5-20-2014)

Sec. 5.05.020. Definitions.

The following words, as used in this Chapter, have the meanings set forth below:

"Chief of Police" means the Chief of the Wichita Police Department or his/her designee.

"Old Town Entertainment District" means that area of the City of Wichita bounded by: Central on the North including all property abutting Central to the North, Wabash on the East, including all property abutting Wabash to the East, St. Francis Street on the West, including all preoperty abutting St. Francis to the West, and Douglas on the South including all property abutting Douglas to the South.
(Ord. No. 49-751, § 5, 5-20-2014)

Sec. 5.05.030. Offenses within the Old Town Entertainment District.

(a) Any person who is convicted of violating any of the following ordinances within the Old Town Entertainment District shall be subject to a mandatory minimum fine of $500.00 unless a higher mandatory minimum fine is required to be imposed by the court by the provisions of underlying charging ordinance due to the defendant's prior criminal history. Such minimum mandatory fine shall be in addition to any term of imprisonment set forth in the charging ordinance.

(1) Chapter 5.10—Assault and Battery

(2) Chapter 5.24—Disorderly Conduct

(3) Chapter 5.26—Drug Offenses

(4) Section 5.66.010—Criminal Damage to Property

(5) Section 5.66.050—Criminal Trespass

(6) Chapter 5.72—Obstruction of Legal Duty

(7) Chapter 5.88—Unlawful Use of Weapon

(8) Section 5.48.010—Loitering

(9) Section 5.48.038—Failure to Vacate Premises of Entertainment Establishment

(10) Section 5.48.035—Loitering at Entertainment Establishments

(11) Section 5.12.010—Tampering with an Automobile

(12) Chapter 5.42—Larceny

(13) Section 5.68.160—Urinating in Public

(14) Section 5.68.165—Defecating in Public

(15) 5.68.140—Lewd and Lascivious Behavior

(16) 5.68.220—Sexual Battery

(17) 5.68.240—Public Nudity

(b) The imposition of the fines for offenses established in subparagraph (a) shall be mandatory and the court shall not waive, remit, suspend, parole or otherwise excuse the payment thereof, except that the court may order that the defendant perform community service specified by the court but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by Section 1.01.210(e) and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed herein.

(c) Whenever a defendant has been placed on diversion, deferred judgment, probation or parole from a conviction of an offense set forth in subsection (a), the municipal court judge may impose a mapping restriction upon such defendant. A mapping restriction prohibits the defendant from entering into or remaining within the Old Town Entertainment District. A copy of such mapped area shall be provided to the defendant and shall be entered as part of the court record and as a condition of the defendant's diversion, deferred judgment or probation.

(d) Any person who is placed on diversion, deferred judgment, probation or parole upon a conviction for an offense listed in subsection (a) who is subject to the mapping restrictions by the court and who knowingly and willfully fails to comply with the mapping restriction, shall be punished by a fine not to exceed $1,000.00 or by imprisonment of not more than one year, or by both such fine and imprisonment.
(Ord. No. 49-751, § 6, 5-20-2014; Ord. No. 52-807, § 1, 9-16-25)

Sec. 5.05.040. Chief of police responsibilities in the Old Town Entertainment District.

(a) The Chief of Police and/or his designees are authorized to temporarily close streets in the Old Town Entertainment District or allow pedestrian only traffic on streets in order to facilitate the safe and orderly dispersal of patrons from the Old Town Entertainment District.
(Ord. No. 49-751, § 7, 5-20-2014)

CHAPTER 5.08. NUISANCE PARTIES AT SHORT-TERM RENTALS

Sec. 5.08.010. Definitions.
Sec. 5.08.020. Nuisance parties prohibited.
Sec. 5.08.030. Police order to disperse.
Sec. 5.08.040. Continuation of nuisance party constituting separate violation.
Sec. 5.08.050. Penalty.

Sec. 5.08.010. Definitions.

The following definitions apply to this Chapter:

a. Nuisance Party means a social gathering of five (5) or more people on residential property which is being utilized or advertised as a Short-Term Rental that results in any of the following occurring at the site of the gathering, on neighboring property or on an adjacent public street:

1. Unlawful sale, furnishing, possession or consumption of alcoholic beverages;
2. Violation of any of the provisions of Chapter 7.41 relating to noise;
3. Conduct which constitutes assault or battery;
4. Property damage;
5. Unlawful sale of sexual relations;
6. Illegal gambling;
7. Littering;
8. Outdoor urination or defecation in a place open to public view;
9. The standing or parking of vehicles in a manner that obstructs the free flow of traffic upon public sidewalks, streets, or public rights-of-way;
10. Conduct that threatens injury to persons or damage to property;
11. Unlawful use or possession of any illegal controlled substance;
12. Trespassing on adjacent or adjoining property;
13. Indecent exposure;
14. Setting off or discharging fireworks in violation of Title 15 of the Code of the City of Wichita;
15. Unlawful discharging of a firearm; or
16. Unlawful hosting of minors consuming alcohol.

b. Responsible Party means the manager or assistant manager, owner, licensee or any other person in charge of the Short-Term Rental Unit(s) which are advertised or utilized as a Short-Term Rental. Any person who resides, uses, owns, manages or controls property where a Short-Term Rental license is required under Chapter 3, whether a valid license is issued to a Responsible Party.

c. Short-Term Rental means the use of a residential dwelling unit or structure to provide rooms for temporary lodging or lodging and meals for Transient Guests for a period of 28 days or less for which compensation is paid to the owner or Responsible Party. The dwelling or structure may be owner or manager occupied. Such term shall also include residential Dwelling Units that are, or which are required to be licensed pursuant to Chapter 3.40 of the Code of the City of Wichita.

d. Short-Term Renter means any individual, person, corporation or entity who has entered into any written or verbal agreement to rent, use or occupy a Short-Term Rental.

e. Transient Guest means a person who occupies a room for a period of not more than 28 days at a time other than the owner's immediate family (related by blood, marriage, or adoption) or any person residing with the owner in a Short-Term Rental.

(Ord. No. 52-544, § 1, 9-10-24)

Sec. 5.08.020. Nuisance parties prohibited.

a. Subject to the limitations set forth in subsection (b), it shall be unlawful for any Responsible Party, Short-Term Renter, Transient Guest and/or

any person having the right of possession or use of any residential premises used as or advertised as a Short-Term Rental, as defined by this Code, whether individually or jointly with others, to cause, allow or otherwise permit a social gathering on the premises to become a Nuisance Party.

b. A "Responsible Party" shall only be responsible for violations of subsection (a) in circumstances where the Responsible Party:

i. Is on the premises when the violation occurs; or

ii. Has been made aware of the violation occurring by law enforcement or other city/county official and failed to take steps to stop or disperse the party; or

iii. There are facts and circumstances which exist which indicate that the Responsible Party knew or should have known that the unlawful party was occurring and failed to take steps to stop or disperse the party.

(Ord. No. 52-544, § 2, 9-10-24)

Sec. 5.08.030. Police order to disperse.

It shall be unlawful for any person not domiciled or residing at the site of a Nuisance Party to fail or refuse to leave the premises immediately after being told to leave by a police officer.
(Ord. No. 52-544, § 3, 9-10-24)

Sec. 5.08.040. Continuation of nuisance party constituting separate violation.

Continuation of a Nuisance Party for an hour or more after an order to disperse has been given by a police officer shall constitute a separate violation of 5.08.020.
(Ord. No. 52-544, § 4, 9-10-24)

Sec. 5.08.050. Penalty.

Upon a first conviction of a violation of the provisions of this Chapter a person shall be deemed guilty of a misdemeanor and shall be punished by a fine of not more than $500.

Upon a second or subsequent violation of the provisions of this Chapter, a person shall be deemed guilty of a misdemeanor and shall be punished by a fine of not less than $1,000 nor more than up to $2,500 or by imprisonment for not more than one year, or by both such fine and imprisonment.

In addition to the penalties set forth above, if the defendant is a Short-Term Rental Licensee upon conviction, the court may suspend a Short-Term Rental license for a period not exceeding ten (10) calendar days.
(Ord. No. 52-544, § 1, 9-10-24)

CHAPTER 5.10. ASSAULT AND BATTERY*

Sec. 5.10.010. Assault deemed misdemeanor.
Sec. 5.10.020. Battery deemed misdemeanor.
Sec. 5.10.025. Domestic battery.
Sec. 5.10.030. Provoking assault and/or battery deemed misdemeanor.
Sec. 5.10.035. Battery of a law enforcement officer.
Sec. 5.10.040. Penalty for violation.

Sec. 5.10.010. Assault deemed misdemeanor.

Any person who, within the corporate limits of the city, knowingly places another person in reasonable apprehension of immediate bodily harm, is guilty of a misdemeanor. No bodily contact is necessary.
(Ord. No. 31-263 § 1; Ord. No. 47-081, § 1, 7-25-06; Ord. No. 49-256, § 2, 5-8-2012)

Sec. 5.10.020. Battery deemed misdemeanor.

(a) Any person who, within the corporate limits of the city, (1) knowingly or recklessly causes bodily harm to another person or (2) knowingly causes physical contact with another person when done in a rude, insulting or angry manner, is guilty of a misdemeanor.

(b) Every person convicted under this section, shall be punished by fine of not more than $1,000.00 or one year imprisonment or both such fine and imprisonment.
(Ord. No. 43-180 § 1; Ord. No. 49-256, § 3, 5-8-2012)

Sec. 5.10.025. Domestic battery.

(a) Domestic Battery, within the corporate limits of the city, is: (1) knowingly or recklessly causing bodily harm by a family or household member to a family or household member or knowingly or recklessly causing bodily harm by an individual in a dating relationship to an individual with whom the offender is involved or has been involved in a dating relationship or (2) knowingly causing physical contact by a family or household member with a family or household member or knowingly causing physical contact by an individual in a dating relationship to an individual with whom the offender is involved or has been involved in a dating relationship when done in a rude, insulting or angry manner, is guilty of a misdemeanor.

(b) As used in subsection (a) of this section, "family or household member" means persons 18 years of age or older who are spouses, former spouses, parents or stepparents and children or stepchildren, and persons who are presently residing together or who have resided together in the past, and persons who have a child in common regardless of whether they have been married or who have lived together at any time. Family or household member also includes a man and woman if the woman is pregnant and the man is alleged to be the father, regardless of whether they have been married or have lived together at any time.

(c) As used in subsection (a) of this section 'dating relationship' means a social relationship of a romantic nature. In addition to any other factors the court deems relevant, the Trier of fact may consider the following when making a determination of whether a relationship exists or existed: nature of the relationship, length of time the relationship existed, frequency of interaction between the parties and the time since termination of the relationship, if applicable.

(d) Upon a first conviction, a person shall be sentenced to not less than 48 consecutive hours nor more than six months' imprisonment and fined not less than $200.00, nor more than $500.00. The court, in its discretion, may enter an order which requires the person to enroll in and successfully complete a domestic violence prevention program which has been approved by the Administrative Judge of the Municipal Court.

(e) Upon a second conviction the offender shall be sentenced to not less than 90 days nor more than one year's imprisonment and a fine of not less than $500.00 nor more than $1,000.00. The court shall impose a mandatory minimum jail sentence of five consecutive days and no person shall be eligible for probation or parole until serving the entire minimum sentence. The five days' imprisonment mandated by this paragraph may be served in a work release program only after such person has served 48 consecutive hours' imprisonment, provided such work release pro-

*__Editor's note—__Prior ordinance history: Ordinance No. 11-592, §§ 1, 2.

gram requires such person to return to confinement at the end of each day in the work release program. The offender shall serve at least five consecutive days imprisonment before the offender is granted probation, suspension or reduction of sentence or is otherwise released. As a condition of any grant of probation, suspension of sentence or parole or of any other release, the person shall be required to enter into and complete a treatment program for domestic violence prevention which has been approved by the Administrative Judge of the Municipal Court.

(f) For the purposes of determining whether a conviction is a first, second, or subsequent conviction in sentencing under this section:

(1) 'Conviction' includes being convicted of a violation of this section, or entering into a deferred judgment agreement in lieu of further criminal proceedings on a complaint alleging violation of this section.

(2) 'Conviction' includes being convicted of a violation of a law of this state or of another state or an ordinance of any municipality which prohibits the acts that this section prohibit or entering into a diversion or deferred judgment agreement in lieu of further criminal proceedings in a case alleging a violation of such a law or ordinance;

(3) Only convictions occurring in the immediately preceding five years shall be taken into account, but the court may consider other prior convictions in determining the sentence to be imposed within the limits provided for a first or second offense, whichever is applicable;

(4) It is irrelevant whether an offense occurred before or after conviction for a previous offense.

(Ord. No. 43-180 § 2; Ord. No. 49-256, § 4, 5-8-2012)

Sec. 5.10.030. Provoking assault and/or battery deemed misdemeanor.

Any persons who, within the corporate limits of the city, by signs, words or gestures, provoke or attempt to provoke another to commit an assault, or battery, or both, or any other breach of the peace is guilty of a misdemeanor.

(Ord. No. 31-263 § 3)

Sec. 5.10.035. Battery of a law enforcement officer.

(a) Any person who, within the corporate limits of the city:

(1) Knowingly or recklessly causes bodily harm or

(2) Knowingly causes physical contact with a uniformed or properly identified state, county or city law enforcement officer while such officer is engaged in the performance of such officer's duty, in a rude, insulting or angry manner, is guilty of a misdemeanor.

(b) Every person convicted under this section, shall be punished by fine of not more than $2,500.00 or one year imprisonment or both such fine and imprisonment.

(Ord. No. 47-081, § 2, 7-25-06; Ord. No. 47-287, § 1, 11-14-06; Ord. No. 49-256, § 5, 5-8-2012)

Sec. 5.10.040. Penalty for violation.

Every person who is convicted of violating Section 5.10.010 or Section 5.10.030 shall be punished by confinement in the city jail for a definite term which shall be fixed by the court and shall not exceed one month, or, a fine of not more than five hundred dollars, or both such confinement and fine.

(Ord. No. 41-420 § 1)

CHAPTER 5.12. AUTOMOBILES

Sec. 5.12.010. Molesting or tampering with.
Sec. 5.12.020. Moving or removing a motor vehicle without owner's or operator's permission.
Sec. 5.12.030. Penalty for violation.

Sec. 5.12.010. Molesting or tampering with.

Any person in the city who molests or tampers with the automobile of another person is guilty of a misdemeanor.
(Ord. No. 22-090 § 7)

Sec. 5.12.020. Moving or removing a motor vehicle without owner's or operator's permission.

(a) It is unlawful for any person to operate, move, possess, exert control over, or remove any motor vehicle without first having obtained permission from the owner, lessee, lienholder or authorized operator thereof to operate, move, possess, exert control over or remove such motor vehicle.

(b) This section shall not apply to the towing or removal of motor vehicles towed in compliance with city ordinances and state statutes by law enforcement or private property owners in compliance with Chapters 11.97 and 11.99 of the Code of the City of Wichita and amendments thereto.
(Ord. No. 21-487 § 1; Ord. No. 52-753, § 1, 6-24-25)

Editor's note—Ord. No. 52-753, § 1, adopted June 24, 2025, amended the title of § 5.12.020 to read as herein set out. The former § 5.12.020 title pertained to taking, etc., without owner's or operator's permission.

Sec. 5.12.030. Penalty for violation.

Every person who is convicted of violating any of the provisions of this chapter shall be guilty of a misdemeanor and shall be punished by a fine of not more than one thousand dollars ($1,000) or six (6) months imprisonment, or both such fine and imprisonment.

Upon a first conviction of Section 5.12.020, a person shall be sentenced to not less than thirty (30) days nor more than six (6) months imprisonment and fined not less than one hundred ($100) dollars. Upon a second or subsequent conviction, a person shall be sentenced to not less than sixty (60) days nor more than six (6) months imprisonment and fined not less than two hundred ($200) dollars. The person convicted shall not be eligible for release on probation, suspension or reduction of sentence or parole until the person has served the minimum mandatory sentence as provided herein. The mandatory provisions of this subsection shall not apply to any person where such application would result in a manifest injustice.
(Ord. No. 32-918; Ord. No. 52-753, § 2, 6-24-25)

CHAPTER 5.15. VICTIM OR WITNESS INTIMIDATION

Sec. 5.15.010. Victim or witness intimidation.

Sec. 5.15.010. Victim or witness intimidation.

(a) Intimidation of a witness or victim is preventing or dissuading, or attempting to prevent or dissuade with an intent to vex, annoy, harm or injure in any way another person or an intent to thwart or interfere in any manner with the orderly administration of justice:

(1) Any witness or victim from attending or giving testimony at any criminal trial, proceeding or inquiry authorized by law; or

(2) Any witness, victim or person acting on behalf of a victim from:

a. Making any report of the victimization of a victim to any law enforcement officer, prosecutor, probation officer, correctional officer, judicial officer or emergency communications dispatcher.

b. Causing a complaint to be sought and prosecuted, or causing a violation of probation or parole to be reported and prosecuted, and assisting in its prosecution.

c. Arresting or causing or seeking the arrest of any person in connection with the victimization of a victim.

(b) The following definitional sections shall apply to this section:

(1) "Victim" means any individual against whom any crime under the laws of this state, this municipality or any municipality in this state, is being, has been or is attempted to be committed;

(2) "Witness" means any individual:

a. Who has knowledge of the existence or nonexistence of facts relating to any criminal trial, proceeding or inquiry authorized by law.

b. Whose declaration under oath is received or has been received as evidence for any purpose.

c. Who has reported any crime to any law enforcement officer, prosecutor, probation officer, parole officer, correctional officer, community correctional services officer or judicial officer, or any emergency communications dispatcher.

d. Who has been served with a subpoena issued under the authority of a municipal court or any court or agency of this state, or

e. Who would be believed by any reasonable person to be an individual described in this subsection.

(c) Intimidation of a victim or witness is a misdemeanor, and such sentence shall include a term of imprisonment of not more than six months and/or a $1,000.00 fine or both such fine and imprisonment.

(Ord. No. 46-253 § 1; Ord. No. 49-256, § 6, 5-8-2012)

CHAPTER 5.16. BURIAL PLACES

Sec. 5.16.010. Desecrating a cemetery or burial place.
Sec. 5.16.020. Penalty for violation.

Sec. 5.16.010. Desecrating a cemetery or burial place.

(1) Desecrating a cemetery or burial place is knowingly and without authorization of law by means other than by fire or explosive:

(a) Damaging, defacing, destroying, tearing down or removing any tomb, monument, memorial, marker, grave, vault, crypt gate, tree, shrub, plant, gate, door, fence, wall, post or railing, or any enclosure for the protection of such cemetery or burial place or any other property in a cemetery;

(b) Obliterating any grave, vault, niche or crypt.

(2) Subsection (1) shall apply if the property is damaged to the extent of less than one thousand dollars.
(Ord. No. 41-693 § 1; Ord. No. 47-058, § 1, 6-27-06)

Sec. 5.16.020. Penalty for violation.

Every person who is convicted of violating any of the provisions of this chapter within the corporate limits of the city shall be guilty of a misdemeanor and shall be punished by a fine of not more than two thousand five hundred dollars or by imprisonment for not more than one year, or by both such fine and imprisonment.
(Ord. No. 41-693 § 2)

CHAPTER 5.20. CAMPING ON PUBLIC PROPERTY WITHOUT A PERMIT

Sec. 5.20.010. Preamble.
Sec. 5.20.015. Definitions.
Sec. 5.20.020. Unlawful camping.
Sec. 5.20.022. Unlawful camping—Immediate removal.
Sec. 5.20.023. Unlawful camping—Private property.
Sec. 5.20.025. Camping—Impounding of personal property.
Sec. 5.20.027. Notice of removal.
Sec. 5.20.028. Disposition of impounded property.
Sec. 5.20.030. Reserved.
Sec. 5.20.035. Enforcement of provisions of Code.
Sec. 5.20.040. Temporary camping permits—Issued by the City Manager.
Sec. 5.20.050. Violations—Penalty.
Sec. 5.20.055. Violations not exclusive.
Sec. 5.20.060. Severability.

Sec. 5.20.010. Preamble.

WHEREAS, the City of Wichita has an important governmental interest in ensuring the streets and public areas within the city are readily accessible and available to the public at large; and

WHEREAS, the use of these areas for camping purposes interferes with the rights of others to use the areas for which they were intended; and

WHEREAS, the use of these areas for camping purposes can constitute a public health and safety hazard which adversely impacts commercial areas and neighborhoods; and

WHEREAS, the purpose of this Chapter is to maintain streets, parks and other public property and areas within the City of Wichita in a clean, sanitary and accessible condition and to adequately protect the health, safety and public welfare of the community, while recognizing that, subject to reasonable conditions, camping and camping activities associated with special events can be beneficial to the cultural and educational climate in the city; and

WHEREAS, it is not the intent of the City of Wichita to punish any individual citizen based solely upon such individual's homelessness status, but to enact an ordinance ensuring ready and equal access to public property by the community while preserving the health, safety and welfare of all citizens.

WHEREFORE, the City of Wichita enacts the following ordinances prohibiting camping upon property within the city.
(Ord. No. 49-515, § 1, 6-18-13; Ord. No. 52-600, § 1, 1-7-25)

Sec. 5.20.015. Definitions.

As used in this Chapter:

(a) "Camp" means to use property for living accommodation purposes. Camping activities include, but are not limited to:

1. Sleeping activities or preparing to sleep including the laying down of bedding for the purpose of sleeping;
2. Storing or utilizing personal property used for camping, including, but not limited to, clothing, sleeping bags, bedrolls, blankets, sheets, luggage, backpacks, kitchen utensils, cookware or other similar materials;
3. Making any fire or cooking meals; and
4. Using any tent or camping in a parked operable or inoperable vehicle, camper, recreational vehicle, trailer or other such mode of transportation.

These activities constitute camping when it reasonably appears, in light of the circumstances, that a person or persons are using such property, location or vehicle as a living accommodation.

(b) "Flood control works" means the system comprised of flood walls, the "Big Ditch," the "MS" Mitch Mitchell Floodway," pump stations and ponding areas that serve to protect the city from flooding.

(c) "Personal Property" means any and all tangible property, and includes, but is not limited to, goods, materials, buckets, furniture, merchandise, tents, tarpaulins, bedding, sleeping bags, huts, lean-tos,

hammocks, personal items such as luggage, backpacks, clothing, wagons, trailers, shopping carts, campers, documents and medication, and other household items or any other shelter or structure.

(d) "Private Property" means all property that is located within the boundaries of the city, except for property that is owned, leased or controlled by the City of Wichita.

(e) "Public Property" means any publicly owned property, including, but not limited to, streets, sidewalks, alleys, golf courses, bike paths, walking trails, parks, parking lots, parking garages, easements, improved or unimproved land, or any buildings or physical structures owned, leased, or managed by the City or other governmental agency.

(f) "Public Right-of-Way" means the entire width of the area from property line to property line including all area intended, designed or used for vehicular or pedestrian traffic and the area between the roadway and the abutting private property line. For the purposes of this Chapter, such area shall include, but not be limited to, the area and the portion of the property between the sidewalk and curb, whether such area is paved or unpaved.

(g) "Temporarily Camp" means camping for a period not exceeding seventy-two (72) consecutive hours.

(Ord. No. 52-600, § 2, 1-7-25)

Sec. 5.20.020. Unlawful camping.

(a) It is unlawful and a public nuisance for any person or persons to Camp in or upon any public property or public right-of-way, unless such person or persons have been granted a temporary permit allowing such activity as set forth in Section 5.20.040 of this Chapter. Unless otherwise specified by this Chapter, a person found camping on Public Property or Public Right-of-Way shall be given 48 hours' notice to vacate the property. Such notice shall be served on such person, if present, or be posted near or upon the property in a visible location. A change in location of the Camp and/or Personal Property within the line of sight from the Camping location will not require a new 48-hour notice be given.

(b) A person may be cited with violation of this Section if the individual refuses to leave and/or remove all Personal Property within the period contained in the notice or has previously been provided notice that Camping on such Public Property or Public Right-of-Way is prohibited.

(c) A person may not be cited with violation of this Section if the individual is deemed homeless and there are no appropriate shelter beds available for such individual.

(Ord. No. 49-515, § 2, 6-18-13; Ord. No. 52-600, § 3, 1-7-25)

Sec. 5.20.022. Unlawful camping—Immediate removal.

(a) In order to protect the health, safety and welfare of the citizens of Wichita and its visitors, as well as the health and safety of those experiencing homelessness, Camping in areas which pose health and safety concerns or where Camping directly adversely affects the economic development of such area may be immediately abated as set forth below.

(b) It is unlawful and a public nuisance for any person to Camp on Public Property or on Public Right-of-Way at the locations listed below. Any such person violating this section may be removed, along with their Personal Property, immediately without prior notice. These areas include:

1. In or under bridges, overpasses, and/or highways;
2. Within 50 feet of bus shelters, medians, roadways, highways, traffic circles, round abouts, railways, bike paths, walking trials, wastewater delivery systems, water delivery systems, electric substations, or communication transmission systems;
3. Within 20 feet of any doorway, loading dock, elevator, stairway or fire escapes located on public or private property;

4. Any land deemed dangerous by virtue of contamination;
5. Any land used for flood control including the "MS Mitch Mitchell Floodway" (Big Ditch);
6. Within 500 feet of playground equipment, schools or childcare facilities, whether such playground equipment, school and childcare facilities are located on Public or Private Property;
7. Within 500 feet of property being utilized as the Multi-Agency Center;
8. Within 500 feet of a public or private swimming pool, splash pad or private or public golf course;
9. Inside or within 100 feet of park pavilions, community centers or park shelters; or
10. Inside or within 100 feet of a public restroom.

(c) A person may be cited with violation of this Section if the individual refuses to leave and/or remove all Personal Property immediately or has previously been provided notice that camping on such Public Property or Public Right-of-Way is prohibited.

(d) A person may not be cited with violation of this Section if the individual is deemed homeless and there are no appropriate shelter beds available for such individual.
(Ord. No. 52-600, § 4, 1-7-25)

Sec. 5.20.023. Unlawful camping—Private property.

(a) Unless such person is the owner, lessee or tenant of such property, it is unlawful and a public nuisance for any person to Camp on Private Property.

(b) It is unlawful and a public nuisance for any person to Camp or sleep on Private Property in any vacant or unoccupied barn, garage, shed, shop or other accessory structure.

(c) A person may be allowed to Temporarily Camp on Private Property with the written permission of the owner or person entitled to possession. Such permission must include the name, address and phone number of the person giving such authorization. It is unlawful for a person to Camp or Temporarily Camp on Private Property without authorization of the owner or occupant. Such person may be removed, along with their Personal Property immediately without prior notice.

(d) It is unlawful for any person to Camp on Private Property in any operable or inoperable automobile, truck, camper, recreational vehicle or other trailer or other such mode of transportation.

1. This section shall not apply to individuals who Temporarily Camp in such vehicles which are located on Private Property with the written permission of the owner. Such written permission must include the Name, Address and Phone Number of the person giving such authorization.
2. This section shall not apply to individuals who Temporarily Camp on commercial properties with permission of the property owner. Permission may be inferred if the property is commercial property and is posted in such a manner that overnight parking is allowed.
3. This section shall not apply to individuals who Camp or reside in campers, recreational vehicles or trailers which are located in RV or Trailer Parks which are licensed pursuant to Section 26.04.010 or to individuals who have obtained a permit pursuant to Section 26.04.050.

(e) A person may be cited with a violation of this Section if the individual refuses to leave and/or remove all Personal Property immediately or has been provided prior notice that Camping on such Private Property is prohibited. Signage which is clearly visible stating that the property is private or that no trespassing is allowed constitutes sufficient notice that Camping is not allowed on such private property.

(f) A person may not be cited with violation of this Section if the individual is deemed homeless and there are no appropriate shelter beds available for such individual.
(Ord. No. 52-600, § 5, 1-7-25)

Sec. 5.20.025. Camping—Impounding of personal property.

(a) It shall be unlawful for any person to fail to remove Personal Property located on property as described in Section 5.20.020 after 48 hours of receiving notice.

(b) All such Personal Property which is not removed following the required notice may be impounded by the City in accordance with the provisions set forth below.

(c) In the event Personal Property poses an immediate threat to the health or safety of the public, it may be removed without prior notice and discarded. For purposes of this section, "immediate threat" includes, but is not limited to, Personal Property that has been tainted with blood or other bodily fluids, feces, urine, bed bugs, fleas or other pests, soiled, wet or mildewed or property that blocks the ingress and egress to buildings, sidewalks, bike paths, walking trails or walkways.

(d) Evidence of a crime, contraband, explosives, firearms, weapons, fireworks or other flammable materials may be removed without prior notice.

(e) Personal Property may be immediately removed without prior notice for violations of Section 5.20.022 and 5.20.023 of the Code of the City of Wichita.
(Ord. No. 52-600, § 6, 1-7-25)

Sec. 5.20.027. Notice of removal.

(a) The notice required by Section 5.20.020 of this Chapter shall be deemed to have been served if a notice is served on the person in possession of or claiming ownership of the Personal Property or posted conspicuously on or near the Personal Property prior to removal of such property. The notice shall contain the following:

1. A statement that Personal Property is to be removed.
2. The location, date and time the notice was posted.
3. General description of the Personal Property to be removed.
4. A statement that the Personal Property will be discarded or impounded if not removed within 48 hours.
5. A statement that moving Personal Property to another area shall not be removing Personal Property as required by the notice.
6. Agency information for the individual to contact to retrieve impounded Personal Property.
7. Contact information for services for the homeless including WPD Homeless Outreach Program and the Multi-Agency Center.
8. A statement that impounded Personal Property may be discarded or otherwise disposed of if not claimed within 30 days after impoundment.

(b) Following removal of Personal Property without prior notice, a notice consistent with the provisions above will be posted in a visible location on the property from which the Personal Property was removed.
(Ord. No. 52-600, § 7, 1-7-25)

Sec. 5.20.028. Disposition of impounded property.

(a) Personal identifiable property such as identification documents and prescription medication in its original container should be impounded as Personal Property and retained by the City of Wichita for 30 days pursuant to Section 2.20.020 et seq.

(b) Items that are soiled, have been exposed to the elements, or of a de minimis monetary value shall be destroyed. The property site, including Personal Property, should be photographed prior to removal by the city employee or other person authorized by the City of Wichita to remove or impound such property.

(c) The City shall maintain a record of photographs of the items removed, the date(s) any Personal Property was impounded, released, discarded and/or disposed of.

(d) The owner or any other person entitled to the retained Personal Property may retrieve the Personal Property prior to its disposal upon submitting satisfactory proof of ownership. A person may establish proof of ownership by, among other methods, describing the location and date when the Personal Property was impounded and providing a reasonably specific and detailed description of the Personal Property.
(Ord. No. 52-600, § 8, 1-7-25)

Sec. 5.20.030. Reserved.

Editor's note—Ord. No. 52-600, § 9, adopted Jan. 7, 2025, repealed § 5.20.030, which pertained to definitions, and derived from Ord. No. 49-515, § 3, adopted June 18, 2013.

Sec. 5.20.035. Enforcement of provisions of Code.

The Wichita Police Department, Airport Police and Fire, and the Metropolitan Area Building and Construction Department are authorized to enforce and issue complaints for violations of this Chapter. Public Works & Utilities Department, the Park & Recreation Department, and any other department or individual designated and authorized by the City Manager by Administrative Regulation are authorized to enforce all other provisions of this Code.

All departments or other designated individuals shall complete all necessary training as recommended by the Chief of Police prior to enforcement of the provisions of this Code.
(Ord. No. 52-600, § 10, 1-7-25)

Sec. 5.20.040. Temporary camping permits—issued by the City Manager.

The City Manager, or the Manger's designee, may issue a temporary permit to allow camping on public property, or storage of personal property on public property in connection with a special event. A special event is intended to include, but not be limited to, programs operated by the departments of the city, youth or school events, marathons or other sporting events, scouting activities, historical reenactments or community events, as that term is defined in Section 3.11.020 of this Code. The City Manager or the Manager's designee shall adopt rules and regulations governing the criteria for the application for, and review and approval of such temporary camping and storage permits and is further empowered to ascertain that the operation or maintenance of any temporary camp or campsite or storage of personal property to which these permits will apply will in no way jeopardize the public health, safety or welfare. For this purpose, the City Manager or the Manager's designee is also empowered to implement additional rules and regulations as necessary, pertaining to all aspects of the temporary camping or storage permits, including the revocation of such permits issued pursuant to this section if the City Manager or the Manager's designee becomes satisfied that the maintenance or continuing operation of the camp or campsite or the storage of personal property is adverse to the public health, safety and welfare.
(Ord. No. 49-515, § 4, 6-18-13)

Sec. 5.20.050. Violations—Penalty.

Any person who is convicted of a violation of any of the provisions of this Chapter shall be deemed guilty of a misdemeanor and shall be punished by a fine not to exceed $200.00, or by imprisonment for not more than 30 days, or by both such fine and imprisonment. Provided, however, that if it be shown to the Court that the person convicted is indigent, the Court may, in its discretion, order that such person, in lieu of the payment of any fine imposed herein and/or court costs mandated by Chapter 1.04 of this Code for a violation of this Chapter, be allowed to perform public service to satisfy the payment of such fine and/or costs. The Court shall make a finding of indigency and shall note the same upon the court disposition sheet resulting from the violation, along with the number of public service hours to be performed by such person. In addition to the penalties set forth herein, the City Attorney may institute civil actions to abate a public nuisance under this Chapter.
(Ord. No. 49-515, § 5, 6-18-13; Ord. No. 52-600, § 11, 1-7-25)

Sec. 5.20.055. Violations not exclusive.

Violations of this Code are in addition to any other violation enumerated within the ordinances

of the Code of the City of Wichita. This Code in no way limits the penalties, actions or abatement procedures which may be taken by the city for a violation of this Chapter which is also a violation of any other ordinance of the city or statute of the State of Kansas.
(Ord. No. 52-600, § 12, 1-7-25)

Sec. 5.20.060. Severability.

If any Section, Subsection or Clause of this ordinance shall be deemed unconstitutional or otherwise invalid, the validity of the remaining sections, subsections, and clauses shall not be affected.
(Ord. No. 49-515, § 6, 6-18-13; Ord. No. 52-600, § 13, 1-7-25)

CHAPTER 5.22. UNLAWFUL POSSESSION OF CATALYTIC CONVERTERS

Sec. 5.22.010. Purpose.
Sec. 5.22.020. Unlawful possession of a catalytic converter.
Sec. 5.22.030. Penalty.

Sec. 5.22.010. Purpose.

Catalytic converter thefts are on the rise, in part, due to the ease and undetectable nature of committing these thefts in a matter of seconds using common tools such as a reciprocating saw. Loopholes in legislation ultimately protect criminals from prosecution unless a victim can be identified. Because catalytic converters are not traceable, locating a necessary victim to prosecute charges is nearly impossible. For the past several years, the majority of catalytic converter theft cases in the City of Wichita have gone unsolved, which is fundamentally unacceptable for the citizens.
(Ord. No. 51-962, § 1, 10-25-22)

Sec. 5.22.020. Unlawful possession of a catalytic converter.

(a) It shall be unlawful for any person to possess, accept, process, store, hold, keep, receive, reuse, or collect a catalytic converter that has been detached from a motor vehicle unless they can demonstrate a legitimate reason for such possession by producing either:

(1) A letter of permission from the Wichita Police Department to temporarily possess a catalytic converter that includes a law enforcement case number or property identification number; or

(2) An order from the court designating ownership of vehicle or the catalytic converter; or

(3) A bill of sale, purchase receipt, or vehicle title that includes the vehicle identification number of the source vehicle and accurate contact information for the owner of the source vehicle, signed by the owner of the source vehicle; or

(4) Proof that the catalytic converter belongs to a vehicle that is owned or was previously owned by the person in possession of the detached catalytic converter; or

(5) A work or service order that identifies the owner of the vehicle and the work or service being performed on the vehicle, so long as detachment of the catalytic converter is essential to the work performed.

(b) City officials or law enforcement personnel when acting within the scope of their employment disposing of lost, found, or stolen catalytic converters are exempt from the requirements of this section.

(c) Precious metal dealers or those who are regulated pursuant to K.S.A. 50-6109 et. seq. are exempt from the requirements of this section when acting within the scope of that statute.

(d) Failure to comply with the foregoing provisions shall result in the immediate confiscation of the catalytic converter by a law enforcement officer until such time as legal ownership may be determined or any criminal charges are adjudicated.

(e) "Catalytic converter" means a device installed in the exhaust system of a motor vehicle that uses a catalyst to convert pollutant gases into less harmful gases.
(Ord. No. 51-962, § 2, 10-25-22)

Sec. 5.22.030. Penalty.

(a) Any person convicted pursuant to this chapter shall be guilty of a misdemeanor, and shall be sentenced as follows: upon a first conviction, a person shall be sentenced to not more than six months imprisonment and fined not less than $250 nor more than $1,000. Upon a second or subsequent conviction a person shall be sentenced to not less than thirty days imprisonment nor more than one year's imprisonment, and fined not less than $500 nor more than $2,500. The person sentenced on a second or subsequent charge shall not be eligible for release on probation, suspension or reduction of sentence or parole until the person has served the minimum mandatory sentence as provided herein. Upon a

mandatory sentence, after 48 consecutive hours jail, the remainder may be served in work release or house arrest.

(b) A guilty finding, diversion or deferred judgment requires the catalytic converter be forfeited to the City of Wichita to be sold, destroyed or released to the rightful owner.
(Ord. No. 51-962, § 3, 10-25-22)

CHAPTER 5.24. DISORDERLY CONDUCT

Sec. 5.24.010. Disorderly conduct.
Sec. 5.24.020. Disturbance of public worship.
Sec. 5.24.030. Reserved.
Sec. 5.24.040. Same—Penalty.

Sec. 5.24.010. Disorderly conduct.

Disorderly conduct is one or more of the following acts that the person knows or should know will alarm, anger or disturb others or provoke an assault or other breach of the peace:

(a) Engaging in brawling or fighting; or

(b) Disturbing an assembly, meeting, or procession, not unlawful in its character; or

(c) Using fighting words. As used in this section, 'fighting words' means words that by their very utterance inflict injury or tend to incite the listener to an immediate breach of peace.

Every person convicted of violating this section shall be punished by imprisonment of a term not to exceed 30 days or a fine of not more than $500.00 or both such imprisonment and fine.
(Ord. No. 39-514 § 1; Ord. No. 49-256, § 7, 5-8-12; Ord. No. 52-561, § 3, 10-15-24)

Sec. 5.24.020. Disturbance of public worship.

Every person within the city limits who at any time interrupts or molests any religious society or any member thereof or any persons, when meeting or met together for the purpose of worship or performing any duties enjoined on or appertaining to them as members of such society, or disquiets or disturbs any congregation or assemblage of people, met for religious worship, by making a noise or by rude and indecent behavior or profane discourse within their place of worship, or so near to the same as to disturb the order or solemnity of the meeting, or menace or assault any person being there, is guilty of a misdemeanor; provided, that this section shall not be so construed as to deprive any religious society or assemblage of persons met for a religious purpose of the right of laying hands upon the persons who may be disturbing the congregation and turning them out of the church or place of worship.
(Ord. No. 11-592 § 47)

Sec. 5.24.030. Reserved.

Editor's note—Ord. No. 47-082, § 1, adopted July 25, 2006, repealed § 5.24.030 in its entirety. Formerly said section pertained to disturbing the peace or quiet of a family, etc., and derived from Ord. No. 34-189(part).

Sec. 5.24.040. Same—Penalty.

Unless otherwise specified, violation of any of the provisions of this chapter constitutes a misdemeanor, and any violation thereof shall be punished by a fine of not more than $500.00, or one year imprisonment, or by both such fine and imprisonment.
(Ord. No. 34-189 (part); Ord. No. 49-256, § 8, 5-8-12)

CHAPTER 5.26. DRUGS

Sec. 5.26.005. Definitions.
Sec. 5.26.010. Reserved.
Sec. 5.26.020. Unlawful acts regarding depressants, stimulants or other substances.
Sec. 5.26.030. Possession of drug paraphernalia, controlled substances illegal.
Sec. 5.26.035. Distribution of non-controlled substance.
Sec. 5.26.038. Distribution of controlled substance.
Sec. 5.26.039. Unlawful possession of a simulated controlled substance.
Sec. 5.26.040. Penalty.
Sec. 5.26.050. Policies for marijuana and marijuana paraphernalia offenses.

Sec. 5.26.005. Definitions.

As used in this Chapter, the following terms shall have the following meanings:

(a) *'Controlled substance'* means any drug, substance or immediate precursor included in any of the schedules designated in K.S.A. 65-4105, 65-4107, 65-4109, 65-4111 and 65-4113, and amendments thereto.

(b) (1) *'Controlled substance analog'* means a substance that is intended for human consumption, and:

(A) The chemical structure of which is substantially similar to the chemical structure of a controlled substance listed in or added to the schedules designated in K.S.A. 65-4105 or 65-4107, and amendments thereto;

(B) Which has a stimulant, depressant or hallucinogenic effect on the central nervous system substantially similar to the stimulant, depressant or hallucinogenic effect on the central nervous system of a controlled substance included in the schedules designated in K.S.A. 65-4105 or 65 4107, and amendments thereto; or

(C) With respect to a particular individual, which the individual represents or intends to have a stimulant, depressant or hallucinogenic effect on the central nervous system substantially similar to the stimulant, depressant or hallucinogenic effect on the central nervous system of a controlled substance included in the schedules designated in K.S.A. 65-4105 or 65 4107, and amendments thereto.

(2) *'Controlled substance analog'* does not include:

(A) A controlled substance;

(B) A substance for which there is an approved new drug application; or

(C) A substance with respect to which an exemption is in effect for investigational use by a particular person under Section 505 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355) to the extent conduct with respect to the substance is permitted by the exemption.

(c) *'Cultivate'* means the planting or promotion of growth of five or more plants which contain or can produce controlled substances.

(d) *'Distribute'* means the actual, constructive or attempted transfer from one person to another of some item whether or not there is an agency relationship. 'Distribute' includes, but is not limited to, sale, offer for sale or any act that causes some item to be transferred from one person to another. 'Distribute' does not include acts of administering, dispensing or prescribing a controlled substance as authorized by the Pharmacy Act of the State of Kansas, the Uniform Controlled Substances Act, or otherwise authorized by law.

(e) *'Drug'* means:

(1) Substances recognized as drugs in the official United States pharmacopoeia, official homeopathic pharmacopoeia of the United States or official national formulary or any supplement to any of them;

(2) Substances intended for use in the diagnosis, cure, mitigation, treatment or prevention of disease in man or animals;

(3) Substances, other than food, intended to affect the structure or any function of the body of man or animals; and

(4) Substances intended for use as a component of any article specified in paragraph (1), (2) or (3). It does not include devices or their components, parts or accessories.

(f) *'Drug paraphernalia'* means all equipment and materials of any kind which are used, or primarily intended or designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, ingesting, inhaling or otherwise introducing into the human body a controlled substance and in violation of this act. 'Drug paraphernalia' shall include, but is not limited to:

(1) Kits used or intended for use in planting, propagating, cultivating, growing or harvesting any species of plant which is a controlled substance or from which a controlled substance can be derived;

(2) Kits used or intended for use in manufacturing, compounding, converting, producing, processing or preparing controlled substances;

(3) Isomerization devices used or intended for use in increasing the potency of any species of plant which is a controlled substance;

(4) Testing equipment used or intended for use in identifying or in analyzing the strength, effectiveness or purity of controlled substances;

(5) Scales and balances used or intended for use in weighing or measuring controlled substances;

(6) Diluents and adulterants, including, but not limited to, quinine hydrochloride, mannitol, mannite, dextrose and lactose, which are used or intended for use in cutting controlled substances;

(7) Separation gins and sifters used or intended for use in removing twigs and seeds from or otherwise cleaning or refining marijuana;

(8) Blenders, bowls, containers, spoons and mixing devices used or intended for use in compounding controlled substances;

(9) Capsules, balloons, envelopes, bags and other containers used or intended for use in packaging small quantities of controlled substances;

(10) Containers and other objects used or intended for use in storing or concealing controlled substances;

(11) Hypodermic syringes, needles and other objects used or intended for use in parenterally injecting controlled substances into the human body;

(12) Objects used or primarily intended or designed for use in ingesting, inhaling or otherwise introducing marijuana, cocaine, hashish, hashish oil, phencyclidine (PCP), methamphetamine or amphetamine into the human body, such as:

(A) Metal, wooden, acrylic, glass, stone, plastic or ceramic pipes with or without screens, permanent screens, hashish heads or punctured metal bowls;

(B) Water pipes, bongs or smoking pipes designed to draw smoke through water or another cooling device;

(C) Carburetion pipes, glass or other heat resistant tubes or any other device used or intended to be used, designed to be used to cause vaporization of a controlled substance for inhalation;

(D) Smoking and carburetion masks;

(E) Roach clips, objects used to hold burning material, such as a marijuana cigarette, that has become too small or too short to be held in the hand;

(F) Miniature cocaine spoons and cocaine vials;

(G) Chamber smoking pipes;

(H) Carburetor smoking pipes;

(I) Electric smoking pipes;

(J) Air-driven smoking pipes;

(K) Chillums;

(L) Bongs;

(M) Ice pipes or chillers;

(N) Any smoking pipe manufactured to disguise its intended purpose;

(O) Wired cigarette papers; or

(P) Cocaine freebase kits.

Drug paraphernalia shall not include any products, chemicals or materials described in K.S.A. 21-5709(a) and amendments thereto.

(g) *'Immediate precursor'* means a substance which the State board of pharmacy has found to be and by rules and regulations designates as being the principal compound commonly used or produced primarily for use and which is an immediate chemical intermediary used or likely to be used in the manufacture of a controlled substance, the control of which is necessary to prevent, curtail or limit manufacture.

(h) *'Highway'* means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

(i) *'Isomer'* means all enantiomers and diastereomers.

(j) *'Marijuana'* means all parts of all varieties of the plant Cannabis whether growing or not, the seeds thereof, the resin extracted from any part of the plant and every compound, manufacture, salt, derivative, mixture or preparation of the plant, its seeds or resin.

'Marijuana' does not include:

(1) The mature stalks of the plant, fiber produced from the stalks, oil or cake made from the seeds of the plant, any other compound, manufacture, salt, derivative, mixture or preparation of the mature stalks, except the resin extracted therefrom, fiber, oil or cake or the sterilized seed of the plant which is incapable of germination;

(2) Any substance listed in Schedules II through V of the Uniform Controlled Substances Act;

(3) Cannabidiol (other trade name: 2-[(3-methyl-6-(1-methylethenyl)-2-cyclohexen-1-yl]-5-pentyl-1,3-benzenediol); or

(4) Industrial hemp as defined in K.S.A. 2021 Supp. 2-3901, and amendments thereto, when cultivated, produced, possessed or used for activities authorized by the Commercial Industrial Hemp Act.

(k) *'Narcotic drug'* means *any* of the following whether produced directly or indirectly by extraction from substances of vegetable

origin or independently by means of chemical synthesis or by a combination of extraction and chemical synthesis:

(1) Opium and opiate and any salt, compound, derivative or preparation of opium or opiate;

(2) Any salt, compound, isomer, derivative or preparation thereof which is chemically equivalent or identical with any of the substances referred to in paragraph (1) but not including the isoquinoline alkaloids of opium;

(3) Opium poppy and poppy straw;

(4) Coca leaves and any salt, compound, derivative or preparation of coca leaves and any salt, compound, isomer, derivative or preparation thereof which is chemically equivalent or identical with any of these substances, but not including decocainized coca leaves or extractions of coca leaves which do not contain cocaine or ecgonine.

(l) *'Opiate'* means any substance having an addiction-forming or addiction-sustaining liability similar to morphine or being capable of conversion into a drug having addiction-forming or addiction-sustaining liability. 'Opiate' does not include, unless specifically designated as controlled under K.S.A. 65-4102, and amendments thereto, the dextrorotatory isomer of 3-methoxy-n-methylmorphinan and its salts (dextromethorphan). 'Opiate' does include its racemic and levorotatory forms.

(m) *'Opium poppy'* means the plant of the species Papaver somniferum l. except its seeds.

(n) *'Or circumstances where one reasonably should know'* that an item will be used in violation of this section, shall include, but not be limited to, the following:

(1) Actual knowledge from prior experience or statements by customers;

(2) Inappropriate or impractical design for alleged legitimate use;

(3) Receipt of packaging material, advertising information or other manufacturer supplied information regarding the item's use as drug paraphernalia; or

(4) Receipt of a written warning from a law enforcement or prosecutorial agency having jurisdiction that the item has been previously determined to have been designed specifically for use as drug paraphernalia.

(o) *'Person'* means individual, corporation, government or governmental subdivision or agency, business trust, estate, trust, partnership, association or any other legal entity.

(p) *'Poppy straw'* means all parts, except the seeds, of the opium poppy, after mowing.

(q) *'Possession'* means knowingly having joint or exclusive control over an item with knowledge of and intent to have such control or knowingly keeping some item in a place where the person has some measure of access and right of control.

(r) *'Simulated controlled substance'* means any product which identifies itself by a common name or slang term associated with a controlled substance and which indicates on its label or accompanying promotional material that the product simulates the effect of a controlled substance.

(s) *'Street'* means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic.

(Ord. No. 48-718, § 1, 4-20-10; Ord. No. 51-889, § 1, 6-28-22)

Sec. 5.26.010. Reserved.

Editor's note—Ord. No. 51-946, § 1, adopted Sept. 20, 2022, repealed § 5.26.010, which pertained to possession of hallucinogenic drugs illegal, and derived from Ord. No. 42-599 § 1.

Sec. 5.26.020. Unlawful acts regarding depressants, stimulants or other substances.

Except as authorized by the Uniform Controlled Substances Act, K.S.A. 65-4101, et seq., no person shall possess or have under such person's control any of the following controlled substances or controlled substance analogs thereof:

(a) Any depressant designated in subsection (e) of K.S.A. 65-4105, subsection (e) of K.S.A. 65-4107, subsection (b) or (c) of K.S.A. 65-4109 or subsection (b) of K.S.A. 65-4111, and amendments thereto;

(b) Any stimulant designated in subsection (f) of K.S.A. 65-4105, subsection (d)(2), (d)(4) or (f)(2) of K.S.A. 65-4107 or subsection (e) of K.S.A. 65-4109, and amendments thereto;

(c) Any substance designated in subsection (g) of K.S.A. 65-4105, and amendments thereto, and designated in subsection (c), (d), (e), (f) or (g) of K.S.A. 65-4111 and amendments thereto; or

(d) Any anabolic steroids as defined in subsection (f) of K.S.A. 65-4109 and amendments thereto;

(e) Any substance designated in K.S.A. 65-4113 and amendments thereto;

(f) Any substance designated in subsection (h) of K.S.A. 65-4105 and amendments thereto.

(Ord. No. 42-599 § 2; Ord. No. 48-718, § 2, 4-20-2010; Ord. No. 49-256, § 9, 5-8-2012)

Sec. 5.26.030. Possession of drug paraphernalia, controlled substances illegal.

WHEREAS, fentanyl test strips (FTS) are a form of drug testing technology which has been shown to be effective at detecting the presence of fentanyl in drug samples prior to use;

WHEREAS, fentanyl is a powerful synthetic opioid that is used medically to treat severe pain;

WHEREAS, illicitly manufactured fentanyl is driving an increase in drug overdose deaths both nationally and in Kansas;

WHEREAS, the Centers for Disease Control (CDC) estimate that in the 12-month period ending October 2021, over 105,000 Americans died of drug overdoses and over 66 percent of those deaths were related to fentanyl and other synthetic opioids. In 2021, the United States suffered more fentanyl related deaths than gun related and auto related deaths combined;

WHEREAS, in order to save lives and reduce the number of overdoses caused by fentanyl, it is the desire of the City Council to allow individuals in the grip of addiction to possess and use fentanyl test strips without the threat of jail time for such possession, and to assure their own safety and prevent tragic overdoses; and

WHEREAS, it is the hope and desire of the City Council that law enforcement and the City Attorney utilize discretion in evaluating all the facts and circumstances as to whether criminal charges should be brought against individuals who possess fentanyl test strips.

(a) No person shall use or possess with intent to use:

(1) Any simulated controlled substance;

(2) Any drug paraphernalia to use, store, contain, conceal, inject, ingest, inhale or otherwise introduce into the human body a controlled substance, other than Marijuana, in violation of the Uniform Controlled Substances Act.

(b) No person shall distribute, possess with intent to distribute or manufacture with intent to distribute any drug paraphernalia, knowing, or under circumstances where one reasonably should know, that it will be used to:

(1) Manufacture, cultivate, plant, propagate, harvest, test, analyze or distribute a controlled substance other than marijuana; or

(2) Store, contain, conceal, inject, ingest, inhale or otherwise introduce a controlled substance, other than marijuana, into the human body.

(c) As used in this section, the terms listed *'of under circumstances where one reasonably should know'* that an item will be used in violation of this section shall include, but not be limited to, the following:

(1) Actual knowledge from prior experience or statements by customers;

(2) Inappropriate or impractical design for alleged legitimate use;

(3) Receipt of packaging material, advertising information or other manufacturer supplied information regarding the item's use as drug paraphernalia;

(4) Receipt of a written warning from a law enforcement or prosecutorial agency having jurisdiction that the item has been previously determined to have been designed specifically to use as drug paraphernalia.

(d) The fact that an item has not yet been used or did not contain a controlled substance at the time of the seizure is not a defense to a charge that the item was possessed with the intention for use as drug paraphernalia.

(e) It shall not be a defense to charges arising under this section that the defendant was acting in an agency relationship on behalf of another part in a transaction involving a controlled substance.

(f) In determining whether an object is drug paraphernalia, a court or other authority shall consider, in addition to all other logically relevant factors, the following:

(1) Statements by an owner or person in control of the object concerning its use.

(2) Prior convictions, if any, of an owner or person in control of the object, under any state or federal law relating to any controlled substance.

(3) The proximity of the object, in time and space, to a direct violation of the Uniform Controlled Substances Act.

(4) The proximity of the object to controlled substances.

(5) The existence of any residue of controlled substances in the object.

(6) Direct or circumstantial evidence of the intent of an owner or person in control of the object, to deliver it to a person the owner or person in control to the object knows, or should reasonably know, intends to use the object to facilitate a violation of the Uniform Controlled Substances Act. The innocence of an owner or person in control of the object as to a direct violation of the Uniform Controlled Substances Act shall not prevent a finding that the object is intended for use as drug paraphernalia.

(7) Oral or written instructions provided with the object concerning its use.

(8) Descriptive materials accompanying the object which explain or depict its use.

(9) National and local advertising concerning the object's use.

(10) Whether the owner or person in control of the object is a legitimate supplier of similar or related items to the community, such as a distributor or dealer of tobacco products.

(11) The manner in which the object is displayed for sale.

(12) The existence and scope of legitimate uses for the object in the community.

(13) Expert testimony concerning the object's use.

(14) Any evidence that alleged paraphernalia can or has been used to store a controlled substance or to introduce a controlled substance into the human body as opposed to any legitimate use for the alleged paraphernalia.

(15) Advertising of the item in magazines or other means which specifically glorify, encourage or espouse the illegal use, manufacture, sale or cultivation of controlled substances.

(g) It shall not be a violation of this section for any person to possess fentanyl test strips, unless such strips are possessed by the person for the purposes of the commission of a crime related to the sale and/or distribution of a controlled substance. For the purposes of this section, "fentanyl test strips" mean narcotic testing equipment used to determine the presence of fentanyl, synthetic controlled substance fentanyl analog or a fentanyl-related compound in a substance, drug or compound.

(h) The provisions of this section are severable. If any provision of this section is declared invalid, that invalidity shall not affect other provisions of the sections which can be given effect without the invalid provisions.

(Ord. No. 42-599, § 3; Ord. No. 47-709, § 1, 12-11-07; Ord. No. 48-718, § 3, 4-20-2010; Ord. No. 51-946, § 2, 9-20-22)

Sec. 5.26.035. Distribution of non-controlled substance.

(a) It shall be unlawful for any person to distribute or possess with the intent to distribute any substance, which is not a controlled substance, to a person who is over the age of eighteen:

(1) Upon an express representation that the substance is a controlled substance or that the substance is of such nature or appearance that the recipient will be able to distribute the substance as a controlled substance; or

(2) Under circumstances which would give a reasonable person reason to believe that the substance is a controlled substance.

(b) If any one of the following factors is established, there shall be a presumption that distribution of a substance was under circumstances which would give a reasonable person reason to believe that a substance is a controlled substance:

(1) The substance was packaged in a manner normally used for the illegal distribution of controlled substances;

(2) The distribution of the substance included an exchange of or demand for money or other consideration for distribution of the substance and the amount of the consideration was substantially in excess of the reasonable value of the substance; or

(3) The physical appearance of the capsule or other material containing the substance is substantially identical to a specific controlled substance.

(Ord. No. 48-718, § 4, 4-20-2010)

Sec. 5.26.038. Distribution of controlled substance.

It shall be unlawful for any person to distribute or possess with the intent to distribute any controlled substance or a controlled substance analog designated in K.S.A. 65-4113 and amendments thereto to a person who is over the age of 18.

(Ord. No. 49-256, § 10, 5-8-2012)

Sec. 5.26.039. Unlawful possession of a simulated controlled substance.

It shall be unlawful for any person to use or possess with the intent to use a simulated controlled substance.

(Ord. No. 49-256, § 11, 5-8-2012)

Sec. 5.26.040. Penalty.

(a) Except as provided in Subsection (b), a violation of the provisions of this chapter is a misdemeanor and, upon conviction, the sentence

shall be a fine not to exceed two thousand five hundred dollars ($2,500.00), and/or imprisonment of up to twelve (12) months in the Sedgwick County Jail.

(b) A violation of Section 5.26.010 of the Code of the Wichita for the possession of marijuana, as defined by this chapter, is a misdemeanor and upon a first conviction, the sentence shall be a fine not to exceed one thousand dollars ($1,000.00), and/or imprisonment of up to six (6) months in the Sedgwick County Jail. Upon a second conviction, the sentence shall be a fine not to exceed two thousand five hundred dollars ($2,500.00), and/or imprisonment of up to twelve (12) months in the Sedgwick County Jail.

(c) In addition to any other sentence authorized by this chapter, any person convicted of having violated the terms of this chapter, while under twenty-one (21) years of age, shall be ordered to submit to and complete a community-based alcohol and drug safety action program certified pursuant to K.S.A. 8-1008 and amendments thereto and to pay a fee for such evaluation. If the judge finds that the person is indigent, the fee may be waived.

(d) The municipal court judge shall order any person convicted of a charge alleging a violation of this chapter to pay the laboratory analysis fees specified in K.S.A. 28-176, and amendments thereto, as an additional cost provided that forensic laboratory services were rendered or administered in conjunction with the case. Any diversion agreement for a charge alleging a violation of this chapter shall also contain a provision requiring the defendant to pay such laboratory analysis fees provided that forensic laboratory services were rendered in conjunction with the case. Upon a finding that the defendant is indigent, such fee may be waived by the court.

(e) Any person who is diverted on a charge alleging a violation of this chapter may be required by the prosecutor to obtain a drug abuse evaluation. Based upon the results of such evaluation, the offender may be required to attend a drug abuse education, counseling or treatment program as a condition of such diversion agreement.

(Ord. No. 42-599 § 4; Ord. No. 48-718, § 5, 4-20-2010; Ord. No. 50-540, § 1, 6-13-17)

Sec. 5.26.050. Policies for marijuana and marijuana paraphernalia offenses.

(a) On April 7, 2015, citizens voted to adopt an ordinance reducing the penalties for possession of small quantities of marijuana and marijuana paraphernalia to a criminal infraction. Based on this vote, it is the Council's intent to enact an ordinance consistent with the spirit and intent of the ordinance approved by the Wichita voters, while remaining in compliance with provisions and dictates of state law.

(b) The purpose of this section is to ensure that individuals over the age of twenty-one (21) years of age, other than those excluded herein, possessing a small quantity of marijuana or who possess drug paraphernalia, as defined by the chapter, utilized to contain, store, use, ingest, smoke or inhale marijuana, are not arrested and suffer only a fine and/or community service and no other punishment or penalty for the possession of a small quantity of marijuana and/or marijuana paraphernalia. This section shall be liberally construed for the accomplishment of these purposes.

(c) For the purposes of this section:

(1) A small quantity of marijuana means the possession of thirty (32) grams or less of marijuana as defined by this chapter;

(2) Class A misdemeanor means an offense for which the statutory penalty is a fine not to exceed two thousand five hundred dollars ($2,500.00), and/or imprisonment of up to twelve (12) months in jail.

(3) Conviction includes being convicted of a violation of a law of this state or of another state or an ordinance of any municipality which prohibits the acts that this section prohibits or entering into a diversion or deferred judgment agreement in lieu of further criminal proceedings in a case alleging a violation of such a law or ordinance;

(d) Unless the arrest of an individual is required by state or federal law, a valid court order, or the identity of the individual cannot be determined, when any Wichita police officer

suspects any individual over the age of twenty-one (21) years of age, other than those excluded herein, of possession of a small quantity of marijuana or marijuana paraphernalia, that person shall not be required to post bond, suffer arrest, be taken into custody for any purpose or detained for any reason other than the issuance of a summons, suffer incarceration, suffer loss of driver's license, or any other punishment or penalty other than the issuance of a summons and, if found guilty, a fine of up to fifty (50) dollars and all applicable court costs and laboratory fees. There shall be a strong presumption that the proper disposition of any such case by the court is limited to the assessment of a fifty (50) dollar fine and all applicable court costs.

(e) Subsection (d) shall not apply to persons:

(1) Who have been convicted of a felony within the preceding five (5) years; or

(2) Who have been convicted of a Class A misdemeanor within the preceding three (3) years; or

(3) Who have been convicted in a state or municipal court of misdemeanor marijuana possession or marijuana paraphernalia on one or more prior occasions within the preceding three (3) years; or

(4) Who are arrested on suspicion of any felony, criminal misdemeanor or Driving Under the Influence of Alcohol and/or Drugs offense, other than possession of drug paraphernalia, arising from the same set of facts and circumstances as the alleged marijuana offense.

(f) The provisions of this section are severable. If any provision of this section is declared invalid, that invalidity shall not affect other provisions of the section which can be given effect without the invalid provision.

(g) The message of this section is that people should not use marijuana, but should also not lose opportunities for education and employment because of such use.
(Ord. No. 50-540, § 2, 6-13-17)

CHAPTER 5.28. INHALATION OF CERTAIN ELEMENTS

Sec. 5.28.010. Inhalation unlawful—Exceptions.

Sec. 5.28.010. Inhalation unlawful—Exceptions.

(A) Abusing toxic vapors is possessing, buying, using, smelling or inhaling the fumes of toxic vapors with the intent of causing a condition of euphoria, excitement, exhilaration, stupefaction, or dulled senses of the nervous system, or to sell, give, or offer to sell or give to any other person any of the elements, compounds or combination of both elements and compounds as defined in subsection (D), if such person has knowledge that the product will be used in violation of this section.

(B) This subsection shall not apply to the inhalation of anesthesia or other substances for medical or dental purposes.

(C) Abusing toxic vapors is a misdemeanor, and such sentence shall include a term of imprisonment of not more than six months and/or a $1,000.00 fine. In addition to any sentence or fine imposed, the court shall enter an order which requires that the person enroll in and successfully complete an alcohol and drug safety action education program or treatment program as provided in K.S.A. 8-1008, and amendments thereto, or both the education and treatment programs.

(D) For the purposes of this section, the term "toxic vapors" means the following substances or products containing such substances:

(1) Alcohols, including methyl, isopropyl, propyl or butyl;

(2) Aliphatic acetates, including ethyl, methyl, propyl or methyl cellosolve acetate;

(3) Acetone;

(4) Benzene;

(5) Carbon tetrachloride;

(6) Cyclohexane;

(7) Freons, including freon 11 and freon 12;

(8) Hexane;

(9) Methyl ethyl ketone;

(10) Methyl isobutyl ketone;

(11) Naphtha;

(12) Perchlorethylene;

(13) Toluene;

(14) Trichloroethane; or

(15) Xylene.

(E) In a prosecution for a violation of this section, evidence that a container lists one or more of the substances described in subsection (D) as one of its ingredients shall be prima facie evidence that the substance in such container contains toxic vapors and emits the fumes thereof. (Ord. No. 45-349 § 1; Ord. No. 30-856 § 1; Ord. No. 49-256, § 12, 5-8-2012)

CHAPTER 5.30. EMERGENCY CASES

Sec. 5.30.010. Defined.
Sec. 5.30.020. Report required.
Sec. 5.30.030. Penalty for violation.

Sec. 5.30.010. Defined.

For the purpose of the following section, the term "emergency case" is defined to be any case in which bodily injury is caused to any person by means of force and violence or by any unlawful or by accident; provided, that industrial accidents are hereby specifically excepted.
(Ord. No. 10-422 § 1)

Sec. 5.30.020. Report required.

(a) Unlawful failure to report a wound is, with no requirement of a culpable mental state, the failure by an attending physician or other person to report such person's treatment of any of the following wounds, to the office of the Chief of Police of the city or the office of the Sheriff of the county in which such treatment took place:

(1) Any bullet wound, gunshot wound, powder burn or other injury arising from or caused by the discharge of a firearm; or

(2) Any wound which is likely to or may result in death and is apparently inflicted by a knife, ice pick or other sharp or pointed instrument.

(b) Unlawful failure to report a wound is a misdemeanor punishable by a fine not to exceed $500.00 and 30 days imprisonment, or by both such fine and imprisonment.
(Ord. No. 10-422 § 2; Ord. No. 48-199, § 1, 3-10-09; Ord. No. 49-256, § 13, 5-8-2012)

Sec. 5.30.030. Penalty for violation.

Every person who is convicted of violating any of the provisions of this chapter shall be guilty of a misdemeanor.
(Ord. No. 32-924)

CHAPTER 5.32. FALSE POLICE CALLS

Sec. 5.32.010. False alarm.

Sec. 5.32.010. False alarm.*

(a) Any person who transmits in any manner to the Fire Department of any city or county a false alarm of fire, knowing at the time of such transmission that there is no reasonable ground for believing that such fire exists,; or

(b) Any person who makes a call in any manner for emergency service assistance including police, fire, medical or other emergency service, knowingly at the time of such call that there is no reasonable ground for believing such assistance is needed, is guilty of a misdemeanor.

(c) Any person convicted of giving a false alarm shall be punished by a fine of not more than $2,500.00 or one year imprisonment, or both such fine and imprisonment.

(Ord. No. 32-925; Ord. No. 20-552 § 1; Ord. No. 49-256, § 14, 5-8-2012)

*As to resisting police, see § 5.72.010.

CHAPTER 5.34. FENCING BORROW PITS, SAND PITS AND GRAVEL PITS

Sec. 5.34.010. Definitions.
Sec. 5.34.020. Required fencing.
Sec. 5.34.030. Violation deemed misdemeanor.
Sec. 5.34.040. Public nuisance declared—Abatement of nuisance.
Sec. 5.34.050. Notice of violations.
Sec. 5.34.060. Entering premises without consent of owner.
Sec. 5.34.070. Certain developed property excepted.
Sec. 5.34.080. Exception to fencing requirements.

Sec. 5.34.010. Definitions.

Unless otherwise specified herein, the following officers, parties and terms shall be defined as follows:

(1) "City" means the city of Wichita, Sedgwick County, Kansas.

(2) "Superintendent of central inspection" means the superintendent of the division of central inspection of the department of public works of the City of Wichita, Kansas, or his duly authorized representative.

(3) "Person" means a natural person, legal entity or organization including, but not limited to, an individual, firm, association, joint stock company, syndicate, joint venture, partnership or corporation.

(4) "Owner" means any person, who, alone, or jointly or severally with others:

(a) Shall have record legal title to any premises presently or in the future being operated as a borrow pit, sand pit or gravel pit, with or without accompanying actual possession thereof; or,

(b) Shall have charge of any such premises as owner, agent of the owner, executor, administrator, trustee, or guardian of the estate of the owner, lessee, tenant or anyone having the right of use of such borrow pit, sand pit, or gravel pit under authority of the legal titleholder.

(5) "Premises" shall mean a lot, plot or parcel of land being operated as, or previously operated as, a site for the operation of a borrow pit, sand pit or gravel pit, and in which water is ponded or trapped.

(6) "Borrow pit" shall mean a pit or bank from which material is taken, or has been taken, for use in filling or embanking or other similar uses and in which water is ponded or trapped.

(7) "Sand pit or gravel pit" shall mean an excavation from which sand or gravel is removed, or has been removed, and in which water is ponded or trapped.

(Ord. No. 27-273 § 1)

Sec. 5.34.020. Required fencing.

It is hereby declared to be unlawful for any person to operate or maintain within the city any borrow bit, sand pit or gravel pit unless the following conditions of operation, maintenance and public protection are established and maintained by the owner of such premises:

(1) A good and sufficient fence shall be constructed so as to completely enclose said borrow pit, sand pit or gravel pit.

(2) In no case shall the construction of the fence be within fifteen feet of the actual excavation at all points of said excavation and such fence may provide for reasonable access gates installed at the height of the fence, which gates shall be locked except during working hours when the pit is being used for the removal of sand, gravel or filling material or other business activity. Such fence shall be maintained in good repair.

(3) Such fences shall be a minimum height of fifty-eight inches and shall be of the following types construction:

(a) A forty-eight inch or higher chain-link fence with three or more strands of barbed wire; or

(b) A forty-eight inch or higher solid metal or solid masonry fence with three or more strands of barbed wire; or

(c) A forty-eight inch or higher wood fence which may have cracks or openings not in excess of five percent of the area of such fence, with three or more strands of barbed wire.

(4) Provided, however, that fences existing at the time of the taking effect of the ordinance codified in this section shall be inspected by the superintendent of central inspection and approved or disapproved by him, or he shall make requirements to have substantial compliance with the above section (3), (a), (b), and (c). In such cases the owners shall have the right to appeal the decision of the superintendent of central inspection, and approval of existing facilities by either the superintendent of central inspection or a majority of the city commissioners shall be deemed compliance with this chapter; provided further, no existing fence shall be approved unless it has three or more strands of barbed wire.

(5) Any fence authorized under the above section (4) herein which has a portion equal to three hundred feet added on or replaced, or in such condition to warrant replacing, must be replaced with fencing as authorized in section (3), (a), (b), and (c) herein.

(6) Whenever the term "barbed wire" is used herein, it shall mean any twisted wire with barbs spaced a minimum of four inches apart and placed at the top of the fence at an angle not to exceed one hundred sixty degrees facing away from the excavation.

(7) A particularly unique type of fencing, either architecturally or aesthetically designed, may be approved by the central inspection department and the city commission but only in those areas where no particular hazard to children is present because of the type of facility.

(Ord. No. 28-743 § 1; prior Ord. No. 27-273 § 2)

Sec. 5.34.030. Violation deemed misdemeanor.

Any violation of this chapter is to be deemed a misdemeanor.

(Ord. No. 27-273 § 3)

Sec. 5.34.040. Public nuisance declared—Abatement of nuisance.

Any violation of this chapter shall be regarded as a public nuisance and in addition to the remedy of prosecution provided in Section 5.34.030, the superintendent of central inspection is hereby authorized, empowered and directed to abate or suppress any such nuisance.

(1) For the purpose of carrying out the provisions of this section, the superintendent of central inspection is hereby authorized to enter into or upon any premises occupied by a borrow pit, sand pit or gravel pit, for the purpose of making an examination and to determine whether or not a nuisance exists.

(2) If, upon investigation, the superintendent of central inspection determines that a nuisance does exist, he shall, after giving proper notice as provided in Section 5.34.050 of this chapter, proceed to cause the nuisance to be abated or suppressed in order that the site comply with the requirements of Section 5.34.020 of this chapter, and to tax the costs thereof against the lot or tract of ground upon which the nuisance is located and maintained as provided by law.

(Ord. No. 28-743 § 2; prior Ord. No. 27-273 § 4)

Sec. 5.34.050. Notice of violations.

Whenever the superintendent of central inspection shall determine that there has been a violation of any provisions of this chapter constituting a public nuisance, he shall give notice of such alleged violation to the person or persons responsible therefor as hereinafter provided. Such notices shall conform to the following:

(1) They shall be in writing;

(2) The violations alleged to exist or to have been committed shall be itemized;

(3) They shall provide time for correction of the violation, such time not to exceed forty-eight hours; provided, that until corrections have been made it shall be the duty of the person responsible therefor to provide a guard at such location; and

(4) They shall be addressed to and served upon the owner and occupants of the premises, if there be any such occupants;

(5) Provided, that such notices shall be deemed properly served upon such owner, operator, or occupant if a copy thereof is sent by certified mail to his last known address; provided further, if the notice cannot be conveniently served by the aforedescribed method of service, service of the notice is to be made upon such person or persons by at least one publication in the official newspaper of the city, such publication to contain the conditions of notice.

(Ord. No. 28-743 § 3; Ord. No. 27-273 § 5)

Sec. 5.34.060. Entering premises without consent of owner.

Any person who shall, without the consent of the owner or occupant, enter upon the premises of a borrow, sand or gravel pit after all gates of such fences have been closed and locked or who knowingly permits a minor to enter upon said premises without the consent of the owner or occupant shall be guilty of a misdemeanor.

(Ord. No. 28-746 § 1; Ord. No. 27-273 § 6)

Sec. 5.34.070. Certain developed property excepted.

On all properties wherein there is located any sand pit, borrow pit or gravel pit, which property has been developed for uses other than commercial extraction of sand or fill material, and which has been developed as a commercial, residential park or other purpose wherein there has been a plan submitted to the metropolitan area planning commission, which plan or plat has been approved by that body, then the provisions of this chapter shall not apply to that property.

(Ord. No. 28-743 § 4)

Sec. 5.34.080. Exception to fencing requirements.

Requests for waiver shall be submitted in writing to the superintendent of central inspection. The superintendent of central inspection shall inspect or cause to be inspected the premises and shall submit a report and recommendation to the governing body for its review and consideration. The board of city commissioners may waive fencing requirements for borrow pits and/or sand pits or gravel pits when all or any portion of the borrow pit and/or sand pit or gravel pit is dedicated to the city for use as a drainage easement and when the easement has been approved by the governing body and duly recorded.

(Ord. No. 29-015 § 1)

CHAPTER 5.35. FENCES

Sec. 5.35.010. Electrically charged and barbedwire fences; spikes and broken glass on fences prohibited.
Sec. 5.35.020. Penalty for violation of provisions of chapter.

Sec. 5.35.010. Electrically charged and barbedwire fences; spikes and broken glass on fences prohibited.

(a) Electrically charged fences and barbed-wire fences are prohibited in all residential zoning districts except as is required by Section 5.34.020 of this code which relates to fencing at borrow pits, except for the exceptions allowed pursuant to Section 6.12.080 of this code, or in cases where the superintendent of central inspection determines that a barbed-wire fence is needed to protect the general public from an extreme hazard that might endanger life and limb if an adequate fence is not in place The use of sharp spikes, broken glass and similar material on fences and retaining walls is prohibited.

(b) Barbed wire shall be allowed in commercial and industrial zoning districts provided it is installed at least seventy-two inches above the ground.
(Ord. No. 35-118; Ord. No. 33-616 (part))

Sec. 5.35.020. Penalty for violation of provisions of chapter.

Any person violating any of the provisions of this chapter shall be guilty of a misdemeanor, and upon conviction shall be punished as provided for in Section 1.04.060 of this Code.
(Ord. No. 33-616 (part))

CHAPTER 5.36. GAMBLING*

Sec. 5.36-010. Definitions.
Sec. 5.36.020. Gambling.
Sec. 5.36.030. Permitting premises to be used for gambling.
Sec. 5.36.040. Possession of a gambling device.
Sec. 5.36.050. Penalty.

Sec. 5.36-010. Definitions.

For the purpose of this chapter, the words and phrases used herein shall have the following meanings unless otherwise clearly indicated by the context:

(a) *Bet* means a bargain in which the parties agree that, dependent upon chance, one stands the chance to win or lose something of value specified in the agreement. A bet does not include:

(1) Bona fide business transactions which are valid under the law of contracts including, but not limited to, contracts for the purchase or sale at a future date of securities or other commodities, and agreements to compensation for loss caused by the happening of the chance including, but not limited to, contracts of indemnity or guaranty and life or health and accident insurance;

(2) offers of purses, prizes or premiums to the actual contestants in any bona fide contest for the determination of skill, speed, strength, or endurance or to the bona fide owners of animals or vehicles entered in such a contest;

(3) a lottery as defined in this section;

(4) any bingo game by or for participants managed, operated or conducted in accordance with the laws of the state of Kansas by an organization licensed by the state of Kansas to manage, operate or conduct games of bingo;

(5) a lottery operated by the state pursuant to the Kansas lottery act;

(6) any system of parimutuel wagering managed, operated or conducted in accordance with the Kansas parimutuel racing act; or

(7) tribal gaming.

(8) charitable raffles as defined by this section; or

(9) a fantasy sports league as defined by this section.

(b) *Lottery* means an enterprise wherein for a consideration the participants are given an opportunity to win a prize, the award of which is determined by chance. A lottery does not include;

(1) A lottery operated by the state pursuant to the Kansas lottery act; or

(2) Tribal gaming.

(c) *Consideration* means anything which is a commercial or financial advantage to the promoter or a disadvantage to any participant. Mere registration without purchase of goods or services; personal attendance at places or events, without payment of an admission price or fee; listening to or watching radio and television programs; answering the telephone or making a telephone call and acts of like nature are not consideration.

As used in this subsection, consideration does not include:

(1) Sums of money paid by or for participants in any bingo game managed, operated or conducted in accordance with the laws of the state of Kansas by any bona fide nonprofit religious charitable, fraternal, educational or veteran organization licensed to manage, operate or conduct bingo games

*__Editor's note—__Ord. No. 48-198, § 6, adopted March 10, 2009, repealed Ch. 5.36 in its entirety. Sections 1—5 of said ordinance enacted new provisions creating a new Ch. 5.36. Former Ch. 5.36 pertained to similar subject matter and derived from Ord. No. 11-592, §§ 30—39 an Ord. No. 12-266, § 1

__Cross reference—__As to revocation of license for permitting gambling, see § 3.04.070 of this Code. As to gambling with respect to ball-casting devices, see § 3.24.060. As to who are deemed vagrants see § 5.84.040.

under the laws of the state of Kansas and it shall be conclusively presumed that such sums paid by or for such participants were intended by such participants to be for the benefit of the sponsoring organizations for the use of such sponsoring organizations in furthering the purposes of such sponsoring organizations, as set forth in the appropriate paragraphs of subsection (c) or (d) of section 501 of the internal revenue code of 1986 and as set forth in K.S.A. 79-4701 and amendments thereto;

(2) Sums of money paid by or for participants in any lottery operated by the state pursuant to the Kansas lottery act;

(3) Sums of money paid by or for participants in any system of parimutuel wagering managed, operated and conducted in accordance with the Kansas parimutuel racing act; or

(4) Sums of money paid by or for a person to participate in tribal gaming.

(d) *Gambling device* means:

(1) Any so-called "slot machine" or any other machine, mechanical device, electronic device or other contrivance an essential part of which is a drum or reel with insignia thereon, and (i) which when operated may deliver, as the result of chance, any money or property; or (ii) by the operation of which a person may become entitled to receive, as the result of chance, any money or property;

(2) Any other machine, mechanical device, electronic device or other contrivance (including, but not limited to, roulette wheels and similar devices) which is equipped with or designed to accommodate the addition of a mechanism that enables accumulated credits to be removed, is equipped with or designed to accommodate a mechanism to record the number of credits to be removed, or is otherwise designed, manufactured or altered primarily for the use in connection with gambling, and (i) which when operated may deliver, as the result of chance, any money or property, or (ii) by the operation of which a person may become entitled to receive, as the result of chance, any money or property;

(3) Any subassembly or essential part intended to be used in connection with any such machine, mechanical device, electronic device or other contrivance, but which is not attached to any such machine, mechanical device, electronic device or other contrivance as a constituent part; or

(4) Any token, chip, paper, receipt or other document which evidences, purports to evidence or is designed to evidence participation in a lottery or the making of a bet.

The fact that the prize is not automatically paid by the device does not affect its character as a gambling device.

As used in this subsection, gambling device does not include:

(1) Any machine, mechanical device, electronic device or other contrivance used or for use by a licensee of the Kansas Racing Commission as authorized by law and rules and regulations adopted by the commission or by the Kansas Lottery or Kansas Lottery retailers as authorized by law and rules and regulations adopted by the Kansas Lottery Commission;

(2) Any machine, mechanical device, electronic device or other contrivance, such as a coin operated blowing alley, shuffleboard, marble machine (a so-called pinball machine), or mechanical gun, which is not designed and manufactured primarily for use in connection with gambling, and (i) which when operated does not deliver, as a result of chance, any money or (ii) by the operation of which a person may not become entitled to receive, as the result of the application of an element of chance, any money;

(3) Any so-called claw, crane, or digger machine and similar devices which are designed and manufactured primarily for use at carnivals or country or state fairs; or

(4) Any machine, mechanical device, electronic device or other contrivance used in tribal gaming;

(e) *Gambling place* means any place, room, building, vehicle, tent or location which is used for any of the following: making and settling bets; receiving, holding, recording or forwarding bets or offers to bet; conducting lotteries; or playing gambling devices. Evidence that the place has a general reputation as a gambling place or hall, at or about the time in question, it was frequently visited by persons known to be commercial gamblers or know as frequenters of gambling places is admissible on the issue of whether it is a gambling place.

(f) "*Tribal gaming*" has the meaning provided by K.S.A. 74-9802 and amendments thereto.

(g) "*Tribal gaming commission*" has the meaning provided by K.S.A. 74-9802 and amendments thereto.

(h) *Fantasy sports league* means any fantasy or simulation sports game or contest in which no fantasy or simulation sports team is based on the current membership of an actual team that is a member of an amateur or professional sports organization and that meets the following conditions:

(1) All prizes and awards offered to winning participants are established and made known to the participants in advance of the game or contest and their value is not determined by the number of participants or the amount of any fees paid by those participants;

(2) All winning outcomes reflect the relative knowledge and skill of the participants and are determined predominantly by accumulated statistical results of the performance of individual athletes in multiple real-world sporting events; and

(3) No winning outcome is based:

(A) On the score, point spread or any performance or performances of any single real-world team or any combination of such teams; or

(B) solely on any single performance of an individual athlete in any single real-world sporting event.

(i) *Charitable raffle* means a raffle conducted by a nonprofit religious, charitable, fraternal, educational, or veterans' organization.

(j) *Nonprofit charitable organization* means any organization which is organized and operated for:

(1) The relief of poverty, distress, or other condition of public concern within this state;

(2) Financially supporting the activities of a charitable organization as defined in paragraph (1); or

(3) Conferring direct benefits on the community at large; and of which no part of the net earnings inures to the benefit of any private shareholder or individual member of such organization and has been determined by the administrator to be organized and operated as a bona fide charitable organization and which has been exempted from the payment of federal income taxes as provided by sections 501(c)(3), 501(c)(4), 501(c)(5), 501(c)(6) and 501(c)(7) of the Federal Internal Revenue Code of 1986, as amended, or determined to be organized and operated as a bona fide nonprofit charitable organization by the administrator.

(k) *Nonprofit fraternal organization* means any organization within this state which exists for the common benefit, brotherhood, or other interests of its members and is authorized by its written constitution, charter, articles of incorporation or bylaws to engage in a fraternal, civic or serve purpose within this state and has been determined by the administrator to be organized and operated as a bona fide fraternal organization and which has been exempted from the payment of federal income taxes as provided by section 501(c)(8) or section 501(c)(10) of the Federal Internal Rev-

enue Code of 1986, as amended, or determined to be organized and operated as a bona fide nonprofit fraternal organization by the administrator.

(l) *Nonprofit educational organization* means any public or private elementary or secondary school or institution of higher education which has been determined by the administrator to be organized and operated as a bona fide educational organization and which has been exempted from the payment of federal income taxes as provided by section 501(c)(3) of the Federal Internal Revenue Code of 1986, as amended, or determined to be organized and operated as a bona fide nonprofit educational organization by the administrator.

(m) *Non profit veterans' organization* means any organization within this state or any branch, lodge or chapter of a national or state organization within this state, the membership of which consists exclusively of individuals who qualify for membership because they were or are members of the Armed Services or Forces of the United States, or an auxiliary unit or society of such a nonprofit veterans' organization, the membership of which consists exclusively of individuals who were or are members of the Armed Services or Forces of the United States, or are cadets, or are spouses, widows or widowers of the individuals who were or are members of the Armed Services or Forces of the United States, and of which no part of the net earnings inures to the benefit of any private shareholder or individual member of such organization, and has been determined by the administrator to be organized and operated as a bona fide veterans' organization and which has been exempted from the payment of federal income taxes as provided by section 501(c)(4) or 501(c)(19) of the Federal Internal Revenue Code of 1986, as amended, or determined to be organized and operated as a bona fide nonprofit veterans' organization by the administrator.

(n) *Raffle* means a game of chance in which each participant buys a ticket or tickets from a nonprofit organization with each ticket providing an equal chance to win a prize and the winter being determined by a random drawing.
(Ord. No. 48-198, § 1, 3-10-09; Ord. No. 50-081, § 1, 9-22-15)

Sec. 5.36.020. Gambling.

Gambling is:

(a) Making a bet; or

(b) Entering or remaining in a gambling place with intent to make a bet, to participate in a lottery, or to play a gambling device.

Anyone gambling within the corporate limits of the city is guilty of a misdemeanor and shall be punished as set forth in Section 5.36.050, and any amendments thereto.
(Ord. No. 48-198, § 2, 3-10-09)

Sec. 5.36.030. Permitting premises to be used for gambling.

Permitting premises to be used for gambling is knowingly:

(a) Granting the use or allowing the continued use of a place as a gambling place; or

(b) Permitting another to set up a gambling device for use in a place under the offender's control.

(c) Anyone violating any of the provisions of this section shall be guilty of a misdemeanor and shall be punished as set forth in Section 5.36.050, and any amendments thereto.
(Ord. No. 48-198, § 3, 3-10-09; Ord. No. 49-256, § 15, 5-8-2012)

Sec. 5.36.040. Possession of a gambling device.

(a) Possession of a gambling device is knowingly possessing or having custody or control, as owner, lessee, agent, employee, bailee, or otherwise, of any gambling device.

(b) Anyone violating any of the provisions of this section shall be guilty of a misdemeanor and shall be punished as set forth in Section 5.36.050, and any amendments thereto.

(c) It shall be a defense to a prosecution under this section that the gambling device is an antique slot machine and that the antique slot machine was not operated for gambling purposes while in the owner's or the defendant's posses-

sion. A slot machine shall be deemed an antique slot machine if it was manufactured prior to the year 1950.

(d) It shall be a defense to a prosecution under this section that the gambling device is possessed or under custody or control of a manufacturer registered under the federal gambling devices act of 1962 (15 U.S.C. 1171 et seq.) or a transporter under contract with such manufacturer with the intent to transfer for use:

(1) By the Kansas lottery or Kansas lottery retailers as authorized by law and rules and regulations adopted by the Kansas lottery commission;

(2) by a licensee of the Kansas racing commission as authorized by law and rules and regulations adopted by the commission;

(3) in a state other than the state of Kansas; or

(4) in tribal gaming.

(Ord. No. 48-198, § 4, 3-10-09)

Sec. 5.36.050. Penalty.

Any person, who, within the corporate limits of the City of Wichita, violates any of the provisions of this chapter shall be guilty of a misdemeanor and upon conviction shall be punished by a fine not to exceed one thousand dollars ($1,000.00), or by six (6) month's imprisonment, or by both such fine and imprisonment.

(Ord. No. 48-198, § 1, 3-10-09)

CHAPTER 5.37. GRAFFITI

Sec. 5.37.010. Definitions.
Sec. 5.37.020. Enforcement—Personnel authorized.
Sec. 5.37.030. Defacement or damage of property by graffiti.
Sec. 5.37.033. Possession of graffiti implements by minors prohibited.
Sec. 5.37.035. Possession of graffiti implements prohibited in public places.
Sec. 5.37.038. Limiting access to graffiti implements.
Sec. 5.37.040. Graffiti declared public nuisance—Owner/occupant's duty to remove.
Sec. 5.37.050. Immediate removal of graffiti without notice authorized.
Sec. 5.37.060. Notice—Form.
Sec. 5.37.070. Notice—Service.
Sec. 5.37.080. Appeal hearing—Service of notice.
Sec. 5.37.090. Appeal—Hearing—Procedure.
Sec. 5.37.100. Owner removal notice.
Sec. 5.37.110. City removal—Authorized.
Sec. 5.37.120. City removal—Graffiti abatement levy computation.
Sec. 5.37.130. City removal—Graffiti abatement levy payment notice.
Sec. 5.37.140. Hearing on charges.
Sec. 5.37.150. Penalty.

Sec. 5.37.010. Definitions.

For the purposes of this chapter, the following terms shall have the meaning ascribed to them in this section:

(a) '*Aerosol paint*' means any aerosol container that contains anything other than a solution which can be removed with water after the solution dries.

(b) '*Broad tip markers*' means any marker or similar implement which has a writing tip which is ½ inch wide or greater and contains anything other than a solution that can be removed with water after the solution dries.

(c) '*Etching implements*' means tools, implements, products or solutions manufactured for the purpose of permanently altering glass, metal or other surfaces.

(d) '*Graffiti*' means any unauthorized writing, inscription, word, figure or design which is marked, etched, scratched, drawn or painted on any structural component of any building, structure, fence, wall, or other facility, regardless of the nature of the material used in its application or upon which it is applied.

(e) '*Graffiti implements*' means any aerosol paint container, broad-tipped marker, gum label, paint stick or graffiti stick, etching equipment, brush or any other device capable of scarring or leaving a visible mark on any natural or man-made surface.

(f) '*Graffiti removal levy*' means the charge made by the City and computed by the Office of Central Inspection for removing graffiti from property, plus all penalties for nonpayment of the charges which have accrued.

(g) '*Owner*' as used in this section, means any person so designated in the current files of the real estate division of the county clerk's office, and also any person having or claiming to have any legal or equitable interest in the premises.

(h) '*Paint stick*' or '*graffiti stick*' [means] any device containing a solid form of paint, chalk, wax, epoxy or other similar substance capable of being applied to a surface by pressure and leaving a mark of at least one-eighth of an inch in width.

(i) '*Property*' or '*premises*' means any lot, parcel, tract, or piece of land, improved or unimproved, in the city, and includes any building, fence, wall or other structure located thereon.

(j) '*Superintendent*' means the Superintendent of the Office of Central Inspection."

(Ord. No. 41-794 § 1; ; Ord. No. 48-803, § 1, 8-24-2010; Ord. No. 48-915, § 1, 12-14-2010)

Sec. 5.37.020. Enforcement—Personnel authorized.

In addition to all law enforcement officers, the following personnel employed by the city shall have the power to enforce the provisions of this chapter:

(1) All deputies under the supervision of the superintendent of the office of central inspection;

(2) All authorized personnel under the supervision of the director of public works;

(3) All health officers that are authorized representatives of the director of the Wichita-Sedgwick County department of community health.

(Ord. No. 41-794 § 2)

Sec. 5.37.030. Defacement or damage of property by graffiti.

Any person who writes, sprays, scratches or otherwise affixes graffiti upon any property, public or private, in which another has an interest and without the consent of such other person shall be guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not less than $250.00 or more than $1,000.00, or by imprisonment for not more than six months, or by both such fine and imprisonment. In addition to such penalty the court may order the defendant to perform the necessary labor to clean up, repair, or replace the property damaged by that person, or to pay any costs incurred by the owner or the City of Wichita related to the cleanup, repair or replacement of property damaged by that person.
(Ord. No. 49-256, § 16, 5-8-2012)

Sec. 5.37.033. Possession of graffiti implements by minors prohibited.

It is unlawful for any person under 18 years of age to possess, with the intent to place graffiti on the property of another, any graffiti implement while on any public, private or parochial school property, grounds, facilities, buildings, or structures, or within 100 feet of such properties, or upon the private property of another without the prior written consent of the owner or occupant of such private property. The provisions of this section shall not apply to the possession of felt tip markers by minors attending, or traveling to or from the school at which the minor is enrolled, if the minor is participating in a class at said school which formally requires the possession of felt tip markers.
(Ord. No. 48-803, § 2, 8-24-2010; Ord. No. 48-015, § 2, 12-14-2010; Ord. No. 48-945, § 1, 2-15-2011)

Sec. 5.37.035. Possession of graffiti implements prohibited in public places.

It is unlawful for any person to possess, with the intent to place graffiti on the property of another, any graffiti implement while in, upon or within one hundred (100) feet of any public facility, park, playground, swimming pool, skate park, recreational facility, or other public building owned or operated by the city, county, state, or federal government, or while in, under or within one hundred (100) feet of an underpass, bridge, abutment, storm drain, spillway or similar types of infrastructure unless otherwise authorized.
(Ord. No. 48-803, § 3, 8-24-2010; Ord. No. 48-015, § 3, 12-14-2010; Ord. No. 48-945, § 2, 2-15-2011)

Sec. 5.37.038. Limiting access to graffiti implements.

(a) It shall be unlawful for any person, other than a parent or legal guardian to sell, exchange, give, loan, or otherwise furnish, or cause or permit to be exchanged, given, loaned, or otherwise furnished, any aerosol paint container to any person under the age of eighteen (18) years without the written consent of the parents or guardian of the person.

(b) It shall be unlawful for any person to sell, deliver, give, exchange, give or lend, or cause or permit to be sold, exchanged, given, loaned or otherwise furnished any graffiti implements to any person who appears to be under the age of twenty-one (21) years without having first verified the individual's age by means of a photographic identification card such as a driver's license, state identification card, passport or military identification.

(c) The provisions of subsection (a) and (b) shall not apply to projects, lessons or educational instruction, when such items are required for such educational projects or instruction and the project or instruction is under the direct supervision of a parent, public or parochial school teacher or educator or private art instructor.
(Ord. No. 48-803, § 4, 8-24-2010; Ord. No. 48-015, § 4, 12-14-2010)

Sec. 5.37.040. Graffiti declared public nuisance—Owner/occupant's duty to remove.

The existence of graffiti upon any building, residence or other structure or property within the city is expressly declared to be a public nuisance and it shall be the duty of the owner and/or occupant of any building, residence or other structure or property that has been defaced by graffiti to clean up or otherwise cover such graffiti, or such graffiti shall be subject to abatement by the city as hereinafter provided. How-

ever, no person shall clean up or otherwise cover graffiti without first notifying the police department and allowing the police an opportunity to photograph such graffiti.
(Ord. No. 41794 § 4)

Sec. 5.37.050. Immediate removal of graffiti without notice authorized.

Whenever any city employee authorized to enforce this chapter finds graffiti on any property within the city which can be seen by any person using any public right-of-way, such authorized employee may forthwith, without notice to the owner, temporarily obliterate such graffiti, or cause the same to be temporarily obliterated, by the least destructive or damaging means then available. Such authorized employee shall then send notice to the owner to permanently remove the graffiti, following the procedures set out in Section 5.37.060.
(Ord. No. 41-794 § 5)

Sec. 5.37.060. Notice—Form.

Whenever any city employee authorized to enforce this chapter finds graffiti on any property within the city which can be seen by any person using any public right-of-way, such authorized employee shall cause a notice to remove graffiti to be served upon the owner, as shown in the current files of the real estate division of the county clerk's office.

The notice shall state the following:

1. The property owner has seven days from the date of the notice to remove the graffiti.
2. If the graffiti is not removed from the property within the seven-day period, the city will remove the graffiti.
3. Any costs associated with removing the graffiti will be the personal obligation of the property owner and a lien will be placed on the property for all costs associated with the clean-up.
4. If the owner fails to obtain a certificate of compliance, any additional expenses incurred by the city will be assessed against the property owner.
5. The property owner has the right to appeal the graffiti notice to the Superintendent of Central Inspection.
6. An appeal may be taken by filing a written Notice of Appeal with the Office of Central Inspection. The Notice of Appeal must be filed within five days from the date of the graffiti notice.
7. Failure to appeal will waive any objection to the city's proposed action and authorize the city to remove the graffiti from the owner's property.

(Ord. No. 41-794 § 6; Ord. No. 47-895, § 1, 8-12-08)

Sec. 5.37.070. Notice—Service.

The notice to remove graffiti shall be served upon the person whose name appears as the owner of the premises involved in the files of the real estate records division of the county clerk's office. Such service may be made either by personal delivery or by depositing the notice in the United States mail, postage prepaid, as certified, first class mail, return receipt requested, addressed to the owner at the most recent address appearing in the files of the real estate records division of the county clerk's office. If no address for the owner appears in the files of the real estate division of the county clerk's office or if no address appears upon the actual premises, then service of the notice to remove graffiti may be made by posting the notice in a conspicuous place upon the property. Proof of service of the notice shall be made by affidavit of the person effecting the service, and the affidavit shall be sufficient for all purposes.
(Ord. No. 41-794 § 7)

Sec. 5.37.080. Appeal hearing—Service of notice.

If there is an appeal filed with the superintendent, a copy of the notice of hearing shall he served by certified mail upon the owner who has appealed. The notice of hearing shall be served at least ten days before the hearing, and proof of service shall be made by an affidavit filed with the office of central inspection. Service shall be deemed completed at the time of the deposit of the

notice in a receptacle maintained by the United States Postal Service, with postage fully prepaid. The failure of any person to receive such notice of hearing shall not affect the validity of any proceedings under this chapter.
(Ord. No. 41-794 § 8)

Sec. 5.37.090. Appeal—Hearing—Procedure.

(a) At the time stated in the notice, the superintendent or his or her authorized designee shall hear and consider all relevant evidence, objections or protests, and shall receive testimony from owners, witnesses, including city personnel, and interested persons relative to the alleged public nuisance and to the proposed removal of the graffiti. The hearing may be continued without further notice.

(b) Upon conclusion of the hearing, the superintendent or his or her authorized designee, shall determine whether the premises, as maintained, constitute a public nuisance as set forth in this chapter. If the superintendent or his or her authorized designee finds that such public nuisance does exist, he or she shall determine how the nuisance is to be abated and shall establish a time, not to exceed seven days, within which removal shall take place; and in the event the owner fails to correct the nuisance within the time described, the city shall cause the nuisance to be abated and the cost incurred by the city shall become a personal obligation of the owner and tenant and a lien upon the property.

(c) A copy of the determination by the superintendent or his or her authorized designee shall be served by mail upon the owner of the affected premises. Service shall be completed at the time of its deposit in a receptacle maintained by the United States Postal Service, with postage fully prepaid.

(d) No legal proceeding or action shall lie against the city or any officer, agent or employee of the city to enjoin the enforcement of its determination or orders made pursuant to this chapter, unless such legal action is commenced within thirty days after the decision of the superintendent.
(Ord. No. 41-794 § 9)

Sec. 5.37.100. Owner removal notice.

Every owner served with a notice or order to remove graffiti who upon his or her own account removes the graffiti from his or her property shall upon completion of the work immediately give written notice thereof to the office of central inspection. Such notice shall be either delivered or mailed to the office of central inspection. Upon receipt of such notice an authorized employee of the office of central inspection shall cause the property to be inspected, and if no graffiti exists thereon, the owner shall be issued a certificate so stating. If graffiti still exists on the property, the authorized employee of the office of central inspection shall cause it to be removed and the cost will be assessed against the owner and tenant and become a lien on the property as if no such notice of removal was received from the owner.
(Ord. No. 41-794 § 10)

Sec. 5.37.110. City removal—Authorized.

If any owner served with a notice fails to remove the graffiti from such owner's property within the time stated in the notice, or order of the superintendent or his or her authorized designee after appeal, the owner shall be deemed to have consented to such removal by the city whose designated employee will thereupon be authorized to enter upon the property involved and remove the graffiti.
(Ord. No. 41-794 § 11)

Sec. 5.37.120. City removal—Graffiti abatement levy computation.

The superintendent or his or her authorized designee shall, after completing the removal of graffiti from any property, compute all expenses so incurred by the city, including any applicable administrative fees as determined by the office of central inspection. All expenses shall be charged to and become an indebtedness of the owner of such premises. Provided, however, that no such charge or levy shall be made against any property or the owner of property where the superintendent or his or her designee has received a written authorization signed by such owner, or his or her authorized representative, permitting the city, or any other volunteer group or organization engag-

ing in graffiti clean up with the city's consent, to enter upon such owner's property for the purpose of removing any and all graffiti that from time to time might be located on such property. Such written authorization shall be effective until withdrawn in writing by such owner and shall prevent any charge or levy for graffiti cleanup expenses incurred after the date of such written authorization and for long as it remains effective.
(Ord. No. 41-794 § 12)

Sec. 5.37.130. City removal—Graffiti abatement levy payment notice.

Upon computing the expenses, the superintendent or his or her authorized representative shall serve the graffiti abatement levy upon the owner of the property where graffiti was removed, as the owner is determined from the current files of the real estate division of the county clerk's office. The notice to pay graffiti abatement levy shall be in substantially the following form:

NOTICE TO PAY GRAFFITI ABATEMENT LEVY

In accordance with the provisions of Chapter 5.37 of the Code of the City of Wichita, Kansas, the Office of Central Inspection has caused the graffiti upon _____

_____
(legal)

AKA _____
(address)

to be removed at City expense.

You are hereby notified that the total cost of _____ is now due and payable to the City of Wichita, Kansas. Section 5.37.140 of the Code of the City of Wichita, Kansas, provides in part, that the property owner, tenant or any other interested person may demand a hearing within fifteen (15) days of this notice before the Board of Code Standards and Appeals on the reasonableness of the charges. Such demand shall be in writing, filed with the Office of Central Inspection and shall describe the property involved, the reasons for objecting, and the name, address and interest of the appellant.

If no hearing is demanded, this payment shall become delinquent within thirty (30) days from this notice and if the amount due is not otherwise collected, a lien for this amount, plus a fee for preparation of the lien and any civil penalty shall be attached on the affected property and thereafter bear interest at the rate of 12% per annum until paid.
(Ord. No. 41-794 § 13)

Sec. 5.37.140. Hearing on charges.

Within fifteen days from the date of the notice to pay, the property owner, tenant or any other interested person, may demand a hearing as to the reasonableness of such charges. Such demand shall be in writing and filed with the office of central inspection. It shall describe the property involved, state the reasons for objecting, and include the address of the applicant for service of notices in connection with such hearing. The superintendent or his or her authorized representative shall thereupon set a date for a hearing of such protest by the board of code standards and appeals. Such hearing shall be scheduled within a reasonable time. The superintendent or his or her authorized representative shall send written notice of such hearing in the manner provided in Section 5.37.080. At the time set for such hearing, the board shall hear all evidence pertinent to the reasonableness of the charges and shall then either confirm or modify the charges. The decision of the board shall be final and the superintendent or his or her authorized representative shall certify the cost of such removal to the city clerk upon completion of the appeal hearing, which amount shall then become a tax on the real property upon which the removal occurred. In the event the cost of graffiti removal is not assessed against the real property, the city may thereafter maintain an action in the appropriate court against the owner and/or occupant upon whom notice was served as required by this chapter to recover the cost of removing such graffiti.
(Ord. No. 41-794 § 14)

Sec. 5.37.150. Penalty.

(a) Any minor violating the provisions of this chapter shall be dealt with in accordance with juvenile court law and procedures.

(b) Any person violating the provisions of this chapter shall be guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not less than two hundred fifty dollars ($250.00) or more than one thousand dollars ($1,000.00), or by imprisonment for not more than six months or by both such fine and imprisonment.

(c) Upon a second or a subsequent conviction, the court shall impose a fine of not less than five hundred dollars ($500.00), nor more than one thousand dollars ($1,000.00), or by imprisonment for not more than six (6) months or by both such fine and imprisonment.

(d) For the purpose of determining whether a conviction is a first or subsequent conviction in sentencing under this section:

(1) Conviction includes being convicted of a violation of this chapter or entering into a diversion or deferred judgment agreement in lieu of further criminal proceedings on a complaint alleging such violation.

(2) Conviction includes being convicted of a violation of a law of this state or of another state or an ordinance of any municipality which prohibits the acts that this chapter prohibit or entering into a diversion or deferred judgment agreement in lieu of further criminal proceeding in a case alleging a violation of such a law or ordinances.

(3) It is irrelevant whether an offense occurred before or after conviction for a previous offense.

(e) In addition to the penalties set forth in this section, the court may order the defendant to perform the necessary labor to clean up, repair or replace the property damaged by that person or to pay any costs incurred by the owner related to the cleanup, repair or replacement of property damaged by that person.
(Ord. No. 48-803, § 5, 8-24-2010; Ord. No. 48-015, § 5, 12-14-2010)

CHAPTER 5.38. HOTELS AND ROOMING HOUSES

Sec. 5.38.010. Definitions.
Sec. 5.38.020. Register of transient guests to be kept; information to be shown.
Sec. 5.38.030. Registration of permanent guests.
Sec. 5.38.035. Registration of employees residing on premises.
Sec. 5.38.036. Fraud and cheating in obtaining accommodations.
Sec. 5.38.037. Prima facie evidence of intent to defraud an owner or innkeeper.
Sec. 5.38.040. Reserved.
Sec. 5.38.070. Smoking on beds.
Sec. 5.38.080. Burning of furnishings with lighted cigarettes, etc.
Sec. 5.38.090. Posting notice of Sections 5.38.070 to 5.38.100 in rooms.
Sec. 5.38.100. Penalty for violation of Sections 5.38.070 to 5.38.090.

Sec. 5.38.010. Definitions.

For purposes of this chapter, the following terms shall mean:

a. Sleeping accommodations - a private room or suite of rooms furnished for sleep, occupancy of which is provided to a transient or residential guest in exchange for valuable consideration.

b. Transient guest - any person who occupies a sleeping accommodation for a period of less than one week.

c. Residential guest - any person who occupies a sleeping accommodation for a period lasting one week or longer.

d. Lodging - any building, other structure, or group of structures in which four or more rooms are kept used, maintained, advertised, or held out to the public as having sleeping accommodations. Such facilities may be commonly called a hotel, motel, inn, rooming house, boarding house, camp, etc., but such description is neither definitive nor necessary.

(Ord. No. 10-500, § 1; Ord. No. 47-455, § 1, 4-10-07)

Sec. 5.38.020. Register of transient guests to be kept; information to be shown.

Every proprietor or manager of a hotel, rooming house, apartment house or any other place within the corporate limits of the city which caters to and permits transient guests for a consideration to occupy a room under his supervision shall maintain a register and require each transient guest to sign his name on the register, together with his home address. In the case of an organized group, for which all members' charges will be paid by the group's leader or organizer, the proprietor or manager may accept a list of the group members' names and home addresses in lieu of a separate registration for each guest. The proprietor or manager shall at the time of registering assign the guest to a room and enter the number of the room to which the guest is assigned on the register opposite the guest's name, together with the date of registration. When registration by group list is permitted, the assigned room number will be noted next to each party's name. When the guest shall check out that fact shall be noted on the register by the proprietor or the manager, together with the date of leaving. All such entries shall be made in ink and shall not in any manner be erased, obliterated or defaced.
(Ord. No. 10-500, § 2; Ord. No. 47-455, § 2, 4-10-07; Ord. No. 50-040, § 1, 7-21-15)

Sec. 5.38.030. Registration of permanent guests.

Where a register is maintained for transient guests, under the provisions of the preceding section, and the place also caters to permanent guests, the permanent guests shall be required to register in the same manner as the transient guests.
(Ord. No. 10-500 § 1)

Sec. 5.38.035. Registration of employees residing on premises.

Any employee of a hotel, rooming house, apartment house, or any other place within the corporate limits of the city which caters to and permits transient guests to occupy a room, who resides or lives upon the premises shall be required to

register with the proprietor or manager of said hotel, rooming house, or apartment house, and a suitable register will be maintained by said proprietor or manager.
(Ord. No. 25-429 § 1; 50-040, § 2, 7-21-15)

Sec. 5.38.036. Fraud and cheating in obtaining accommodations.

(a) Any person who shall obtain food, lodging or other accommodations with a value of $200.00 or less, at any inn, restaurant, hotel, boarding house, apartment house, dwelling unit or rooming house by means of any trick, deception or false representation, statement or pretense, with intent to defraud the owner or keeper thereof, and shall fail or refuse to pay therefor, shall be deemed guilty of a misdemeanor.

(b) Any person convicted of violating Section 5.38.046 shall be punished by a fine not to exceed $500.00 or by imprisonment for not more than six months, or by both such fine and imprisonment.
(Ord. No. 40-021 § 1; Ord. No. 49-256, § 17, 5-8-2012)

Sec. 5.38.037. Prima facie evidence of intent to defraud an owner or innkeeper.

The following shall be prima facie evidence of the intent to defraud an owner or innkeeper as provided in Section 5.38.036:

(1) Obtaining lodging, food or other accommodations by false pretense or by false or fictitious show or pretense of any baggage or other property;

(2) Paying for such food, lodging or other accommodation by a check or other negotiable paper on which payment was/had been refused;

(3) Leaving the inn, restaurant, hotel, boardinghouse, apartment house, dwelling unit or rooming house without paying or offering to pay for such food, lodging or other accommodation;

(4) Surreptitiously removing or attempting to remove baggage or other property; or

(5) Registering under a fictitious name.
(Ord. No. 40-021 § 2)

Sec. 5.38.040. Reserved.

Editor's note—Ord. No. 50-040, § 3, adopted July 21, 2015, repealed § 5.38.040, which pertained to register open to inspection by police and derived from Ord. No. 10-500 § 3.

Sec. 5.38.070. Smoking on beds.

It shall be unlawful for any person while in or on a bed in any hotel or public rooming house in the city to smoke a lighted cigarette, cigar or pipe.
(Ord. No. 23-217 § 1)

Sec. 5.38.080. Burning of furnishings with lighted cigarettes, etc.

It shall be unlawful for any person while in a hotel room or in a room of a public rooming house in the city to set fire to, burn, or cause to be burned, any bedding, furniture, curtains, draperies or household furnishings by means of any lighted cigarette, cigar or pipe, or by matches or other combustible material in lighting or attempting to light any cigarette, cigar or pipe.
(Ord. No. 23-217 § 2)

Sec. 5.38.090. Posting notice of Sections 5.38.070 to 5.38.100 in rooms.

It shall be the duty of the owner, manager or person in charge of any hotel or public rooming house to post a notice of Sections 5.38.070 to 5.38.100, which shall set forth in substance the terms and penalty contained in such sections, in each room of the hotel or public rooming house which is rented to the public.
(Ord. No. 23-217 § 3)

Sec. 5.38.100. Penalty for violation of Sections 5.38.070 to 5.38.090.

Any person violating any of the provisions of Sections 5.38.070 to 5.38.090 shall be guilty of a misdemeanor, and upon conviction shall be punished as provided for in Section 1.04.060 of this Code.
(Ord. No. 32-926 (part); Ord. No. 23-217 § 4)

CHAPTER 5.40. IMPERSONATING AN OFFICER

Sec. 5.40.010. Impersonating an officer.

Sec. 5.40.010. Impersonating an officer.

Any person who represents oneself to be a public officer or public employee or a person licensed to practice or engage in any profession or vocation for which a license is required by the laws of the State of Kansas, with knowledge that such representation is false, within the corporate limits of the city shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not more than one thousand dollars or one year imprisonment, or both such fine and imprisonment.
(Ord. No. 32-927; Ord. No. 11-592 § 94; Ord. No. 47-083, § 1, 7-25-06)

CHAPTER 5.42. LARCENY*

Sec. 5.42.005. Definitions.
Sec. 5.42.010. Petit theft.
Sec. 5.42.015. Prima facie evidence of intent to permanently deprive owner or lessor of possession, use or benefit of property.
Sec. 5.42.020. Giving a worthless check.
Sec. 5.42.025. Causing an unlawful prosecution for worthless check.
Sec. 5.42.035. Unlawful use of a financial card.
Sec. 5.42.060. Theft of lost or mislaid property.
Sec. 5.42.070. Theft of services.
Sec. 5.42.080. Criminal deprivation of property.
Sec. 5.42.090. Theft of motor fuel.

Sec. 5.42.005. Definitions.

As used in this chapter, the following terms shall have the following meanings:

(a) *Deception* means knowingly creating or reinforcing a false impression, including false impressions as to law, value, intention or other state of mind. Deception as to a person's intention to perform a promise shall not be inferred from the fact alone that such person did not subsequently perform the promise. Falsity as to matters having no pecuniary significance, or puffing by statements unlikely to deceive reasonable persons, is not deception.

(b) *Deprive permanently* means to:

(1) Take from the owner the possession, use or benefit of property, without an intent to restore the same;

(2) Retain property without intent to restore the same or with intent to restore it to the owner only if the owner purchases or leases it back, or pays a reward or other compensation for its return; or

(3) Sell, give, pledge or otherwise dispose of any interest in property or subject it to the claim of a person other than the owner.

(c) *Obtain* means to bring about a transfer of interest in or possession of property, whether to the offender or to another.

(d) *Obtains or exerts control* over property includes, but is not limited to, the taking, carrying away, sale, conveyance, transfer of title to, interest in, or possession of property.

(e) *Owner* means a person who has any interest in property;

(f) *Property* means anything of value, tangible or intangible, real or personal;

(g) *Services* means labor, professional services, cable television service, public or municipal utility or transportation service, telephone service, entertainment and the supplying of equipment for use.

(h) *Stolen property* means property over which control has been obtained by theft.

(i) *Threat* means a communicated intent to inflict physical or other harm on any person or on property.

(Ord. No. 49-256 § 18, 5-8-2012)

Sec. 5.42.010. Petit theft.

Petit theft is any of the following acts done with intent to deprive the owner permanently of the possession, use or benefit of his property:

(a) Obtaining or exerting unauthorized control over property or services having a value of less than one thousand five hundred dollars.

(b) Obtaining by deception control over property or services having a value of less than one thousand five hundred dollars.

(c) Obtaining by threat control over property or services having a value of less than one thousand five hundred dollars.

(d) Obtaining control over property or services having a value of less than one thousand five hundred dollars, knowing the property to have been stolen by another.

Any person convicted of petit theft shall be deemed guilty of a misdemeanor, and shall be

*__Cross reference—__Taking automobile without owner's permission, see § 5.12.020. For provisions relating to unlawful appropriation of water, gas and electricity, see § 5.86.010.

punished by a fine not to exceed two thousand five hundred dollars or by imprisonment for not more than one year, or by both such fine and imprisonment. In addition, whenever any person is convicted of petit theft, the court shall order such person to be fingerprinted and photographed immediately following such conviction unless such person has already been photographed and fingerprinted when charged with the specific offense which is the subject of such conviction. (Ord. No. 46-195 § 1; Ord. No. 49-256 § 19, 5-8-2012; Ord. No. 50-262 § 1, 6-21-16)

Sec. 5.42.015. Prima facie evidence of intent to permanently deprive owner or lessor of possession, use or benefit of property.

(a) In any prosecution under this title, the following shall be prima facie evidence of intent to permanently deprive the owner or lessor of property of the possession, use or benefit thereof:

(1) The giving of a false identification or fictitious name, address or place of employment at the time of obtaining control over the property;

(2) The failure of a person who leases or rents personal property to return the same within ten days after the date set forth in the lease or rental agreement for the return of the property, if notice is given to the person renting or leasing the property to return the property within seven days after receipt of notice, in which case the subsequent return of the property within the seven-day period shall exempt such transaction from consideration as prima facie evidence as provided in this section;

(3) Destroying, breaking or opening a lock, chain, key switch, enclosure or other device used to secure the property in order to obtain control over the property;

(4) Destruction of or substantially damaging or altering the property so as to make the property unusable or unrecognizable in order to obtain control over the property.

(5) The failure of a person who leases or rents from a commercial renter a motor vehicle under a written agreement that provides for the return of the motor vehicle to a particular place at a particular time, if notice has been given to the person renting or leasing the motor vehicle to return such vehicle within three calendar days from the date of the receipt or refusal of the demand. In addition, if such vehicle has not been returned after demand, the lessor may notify the local law enforcement agency of the failure of the lessee to return such motor vehicle and the local law enforcement agency shall cause such motor vehicle to be put into any appropriate state and local computer system listing stolen motor vehicles;

(6) The failure of a person who is provided with a use of a vehicle by the owner of the vehicle to return it to the owner pursuant to a written instruction specifying:

(A) The time and place to return the vehicle; and

(B) That failure to comply may be prosecuted as theft, and such instructions are delivered to the person by the owner at the time the person is provided with possession of the vehicle. In addition, if such vehicle has not been returned pursuant to the specifications in such instructions, the owner may notify the local law enforcement agency of the failure of the person to return such motor vehicle and the local law enforcement agency shall cause such motor vehicle to be put into any appropriate state and local computer system listing stolen motor vehicles;

(7) Removing a theft detection device, without authority, from merchandise or disabling such device prior to purchase; or

(8) The failure to replace or reattach the nozzle and hose of the pump used for the

dispensing of motor fuels or placing such nozzle and hose on the ground or pavement.

(b) In any prosecution for a misdemeanor in which the object of the alleged theft is a book or other material borrowed from a library, it shall be prima facie evidence of intent to permanently deprive the owner of the possession, use or benefit thereof if the defendant failed to return such book or material within 30 days after receiving notice from the library requesting its return, in which case the subsequent return of the book or material within the 30-day period shall exempt such transaction from consideration as prima facie evidence as provided in this section.

(c) In a prosecution for theft as defined in this chapter, and such theft is of services, the existence of any of the connections of meters, alterations or use of unauthorized or unmeasured electricity, natural gas, water, telephone service or cable television service, caused by tampering, shall be prima facie evidence of intent to commit theft of services by the person or persons using or receiving the direct benefits from the use of the electricity, natural gas, water, telephone service of cable television service passing through such connections or meters, or using the electricity, natural gas, water, telephone service or cable television service which has not been authorized or measured. Tampering includes, but is not limited to:

(1) Making a connection of any wire, conduit or device, to any service or transmission line owned by a public or municipal utility, or by a cable television service provider;

(2) Defacing, puncturing, removing, reversing or altering any meter or any connections, for the purpose of securing unauthorized or unmeasured electricity, natural gas, water, telephone service or cable television service;

(3) Preventing any such meters from properly measuring or registering;

(4) Knowingly taking, receiving, using or converging to such person's own use, or the use of another, any electricity, water or natural gas which has not been measured; or any telephone or cable television service which has not been authorized; or

(5) Causing, procuring, permitting, aiding or abetting any person to do any of the preceding acts.

(d) The word "notice" as used herein shall be construed to mean notice in writing and such notice in writing will be presumed to have been given three days following deposit of the notice as registered or certified matter in the United States Mail, addressed to such person who has leased or rented the personal property at the address as it appears in the information supplied by such person at the time of such leasing or renting, or to such person's last known address. (Ord. No. 42-810 § 1; Ord. No. 49-256 § 20, 5-8-2012)

Sec. 5.42.020. Giving a worthless check.

(a) Giving a worthless check is the making, drawing, issuing, or delivering or causing or directing the making, drawing, issuing or delivering of any check, order or draft on any bank, credit union, savings and loan association or depository for the payment of money or its equivalent with intent to defraud and knowing, at the time of the making, drawing, issuing or delivering of such check, order or draft, that the maker or drawer has no deposit in or credits with the drawee or has not sufficient funds in, or credits with, the drawee for the payment of such check, order or draft in full upon its presentation.

(b) Subsection (1) of this section shall apply if the check, draft or order is drawn for less than one thousand dollars.

(c) In any prosecution against the maker or drawer of a check, order or draft, payment of which has been refused by the drawee on account of insufficient funds, the making, drawing, issuing or delivering of such check shall be prima facie evidence of intent to defraud and of knowledge of insufficient funds in, or on deposit with the drawee; (1) unless the maker or drawer pays the holder thereof the amount due thereon

and a service charge not exceeding thirty dollars for each check, within seven days after notice has been given to the maker or drawer that such check, draft or order has not been paid by the drawee; or (2) if a postdated date is placed on the check, order or draft without the knowledge or consent of the payee.

(d) As used in this section, the word "notice" shall have the following meaning:

(1) "Notice" includes oral or written notice to the person entitled thereto. Written notice shall be presumed to have been given when deposited as restricted matter in the United States Mail, addressed to the person to be given notice at such person's address as it appears on such check, draft or order. Check is any check, order or draft on a financial institution. Financial institution means any bank, credit union, savings and loan association or depository.

(e) It shall not be a defense to a prosecution under this section that the check, draft or order upon which such prosecution is based:

(1) Was postdated, unless such check, draft or order was presented for payment prior to the posted date; or

(2) Was given to a payee who had knowledge or had been informed when the payee accepted such check, draft or order, that the maker did not have sufficient funds in the hands of the drawee to pay such check, draft or order upon presentation, unless such check, draft or order was presented for payment prior to the date the maker informed the payee there would be sufficient funds.

(f) Penalty. Any person convicted of giving a worthless check is guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand five hundred dollars or by imprisonment for not more than one year or by both such fine and imprisonment.
(Ord. No. 46-614 § 1; Ord. No. 49-256 § 21, 5-8-2012)

Sec. 5.42.025. Causing an unlawful prosecution for worthless check.

Causing an unlawful prosecution for worthless check is filing a complaint before a magistrate or supplying information upon which a prosecution for giving a worthless check is commenced with knowledge that the check, draft or order upon which such prosecution is based was postdated and such check, draft or order was presented for payment prior to the postdated date or when the payee had knowledge, when such payee accepted such check, draft or order, that there were no funds or insufficient funds in the hands of the drawee to pay such check, draft or order upon presentation and such check, draft or order was presented for payment prior to the date for payment prior to the date the maker informed the payee there would be sufficient funds.

Any person convicted of causing an unlawful prosecution for worthless checks is guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand five hundred dollars or by imprisonment for not more than one year, or by both such fine and imprisonment. In addition, any person convicted of such violation shall pay the taxable costs of the prosecution initiated by such person or upon information supplied by such person.
(Ord. No. 42-811 § 2)

Sec. 5.42.035. Unlawful use of a financial card.

(a) Criminal use of a financial card is any of the following acts done with intent to defraud and for the purpose of obtaining money, goods, property or services.

(1) Using a financial card without the consent of the card holder; or

(2) Knowingly using a financial card, or the number or description thereof, which has been revoked or canceled; or

(3) Using a falsified, mutilated, altered or nonexistent financial card or a number or description thereof.

(b) For the purposes of this section:

(1) *Financial card* means an identification card, plate, instrument, device, or number issued by a business organization authorizing the card holder to purchase, lease, or otherwise obtain money, goods, property, services or communication services or to conduct other financial transactions.

(2) *Card holder* means the person or entity to whom or for whose benefit a financial cared is issued.

(3) For the purposes of subsection (a)(2) hereof, a financial card shall be deemed canceled or revoked when notice in writing thereof has been received by the named holder thereof as shown on such financial card or by the records of the company.

(c) *Penalty.* Criminal use of a financial card is a misdemeanor if the money, goods, property or services obtained within a seven-day period are of the value of less than one thousand dollars. Any person convicted of criminal use of a financial card shall be punished by a fine not to exceed two thousand five hundred dollars, or by imprisonment for not more than one year, or by both such fine and imprisonment.
(Ord. No. 40-276 § 2; Ord. No. 47-041 § 1, 6-6-06; Ord. No. 49-256 § 22, 5-8-12)

Sec. 5.42.060. Theft of lost or mislaid property.

Any person who fails to take reasonable measures to restore lost, mislaid or property delivered to them by a mistake, to the owner, when the person has obtained control of such property, who knows or learns the identity of the owner thereof, and who intends to deprive the owner permanently of the possession, use or benefit of such property, shall be deemed guilty of a misdemeanor, and any person convicted thereof shall be punished by a fine not to exceed two thousand five hundred dollars or by imprisonment for not more than one year, or by both such fine and imprisonment.
(Ord. No. 32-928 (part); Ord. No. 47-084 § 1, 7-25-06; Ord. No. 49-256 § 23, 5-8-12)

Sec. 5.42.065. Receiving stolen property.

(a) A person commits the crime of receiving stolen property, with a value of less than one thousand five hundred dollars, if for the purposes of depriving the owner of a lawful interest therein, he or she receives, retains or disposes of property of another knowing that it has been stolen, or believing that it has been stolen.

(b) Evidence of the following is admissible in any criminal prosecution pursuant to this section to prove the requisite knowledge or belief of the alleged receiver:

(1) That he or she was found in possession or control of other property stolen on separate occasions from two or more persons;

(2) That he or she received other stolen property in another transaction within the year preceding the transaction charged;

(3) That he or she acquired the stolen property for a consideration which he or she knew was far below its reasonable value;

(4) That he or she obtained control over stolen property knowing the property to have been stolen or under such circumstances as would reasonably induce a person to believe the property was stolen.
(Ord. No. 49-256 § 24, 5-8-12; Ord. No. 50-262 § 2, 6-21-16)

Sec. 5.42.070. Theft of services.

Any person in the city who obtains services having a value of less than one thousand five hundred dollars from another by deception, threat, coercion, stealth, mechanical tampering or use of false token or device shall be deemed guilty of a misdemeanor, and any person convicted thereof shall be punished by a fine not to exceed five hundred dollars or by imprisonment for not more than one year, or by both such fine and imprisonment. "Services" within the meaning of this section include, but are not limited to, labor, professional services, cable television service,

public or municipal utility or transportation service, telephone service, entertainment and the supplying of equipment for use.
(Ord. No. 46-195 § 2; Ord. No. 50-262 § 3, 6-21-16)

Sec. 5.42.080. Criminal deprivation of property.

(a) Criminal deprivation of property is obtaining or exerting unauthorized control over property, other than a motor vehicle, with intent to deprive the owner of the temporary use thereof, without the owner's consent but not with the intent of depriving the owner permanently of the possession, use or benefit of such owner's property. Nothing herein shall prohibit the removal in a lawful manner, by towing or otherwise, or personal property unlawfully placed or left upon real property.

(b) Criminal deprivation of a motor vehicle is obtaining or exerting unauthorized control of a motor vehicle with intent to deprive the owner of the temporary use thereof, without the owner's consent but not with the intent of depriving the owner permanently of the possession, use or benefit of such owner's property. Nothing herein shall prohibit the removal in a lawful manner, by towing or otherwise, or personal property unlawfully placed or left upon real property.

(c) Any person convicted of criminal deprivation of a motor vehicle, as defined in K.S.A. 8-1437 and amendments thereto, shall be guilty of a misdemeanor, and shall be sentenced as follows: upon a first conviction, a person shall be sentenced to not less than thirty days nor more than one year's imprisonment and fined not less than one hundred dollars. Upon a second or subsequent conviction a person shall be sentenced to not less than sixty days nor more than one year's imprisonment, and fined not less than two hundred dollars. The person convicted shall not be eligible for release on probation, suspension or reduction of sentence or parole until the person has served the minimum mandatory sentence as provided herein. The mandatory provisions of this subsection shall not apply to any person where such application would result in a manifest injustice.

(d) Any person convicted of criminal deprivation of property that is not a motor vehicle, as defined in K.S.A. 8-1437, and amendments thereto, is guilty of a misdemeanor and shall be sentenced as follows: upon a first conviction, a person shall be sentenced to a fine not to exceed two thousand five hundred dollars or by imprisonment for not more than one year, or by both such fine and imprisonment. Upon a second or subsequent conviction, a person shall be sentenced to not less than thirty days imprisonment and fined not less one hundred dollars, except that the provisions of this section relating to a second or subsequent conviction shall not apply to any person where such application would result in a manifest injustice.
(Ord. No. 44-458 § 1; Ord. No. 51-890, § 1, 6-28-22)

Sec. 5.42.090. Theft of motor fuel.

(a) Any person who leaves the premises of an establishment at which motor fuel offered for retail sale was dispensed into the fuel tank of a motor vehicle by driving away in that motor vehicle without having made due payment or authorized charge for the motor fuel so dispensed, with the intent to defraud the retail establishment, upon conviction, shall be guilty of a class A nonperson misdemeanor.

1. Upon a first conviction, the defendant shall be ordered to a jail term not to exceed one year and/or a fine not to exceed two thousand five hundred dollars.
2. Upon a second conviction, the defendant shall be sentenced to a jail term not to exceed one year and/or a fine not to exceed two thousand five hundred dollars. Additionally, the court shall notify the Division of Vehicles of the conviction and pursuant to 2000 H.B. 2883, Section 1, the Division of Vehicles may suspend such person's driving privileges for a period of six months.
3. Upon a third, or subsequent conviction, the defendant shall be sentenced to a jail term not to exceed one year and/or a fine not to exceed two thousand five hundred

dollars. Additionally, the court shall notify the Division of Vehicles of the conviction and pursuant to 2000 H.B. 2883, Section 1, the Division of Vehicles may suspend such person's driving privileges for a period of one year.

(a) The failure to replace or reattach the nozzle and hose of the pump used for the dispensing of motor fuels, or placing such nozzle and hose on the ground or pavement shall be prima facie evidence of the intent to defraud.

(b) Any person whose driving privileged have been suspended under this section shall pay a reinstatement fee in the amount of one hundred dollars, pursuant to 2000 H.B. 2883, Section 1, which shall be remitted to the Division of Vehicles.

(c) As used in this section:

1. *Division of vehicles* means the Division of Vehicles of the Department of Revenue of the State of Kansas;
2. *Conviction* means a final conviction without regard whether sentence was suspended or probation granted after such conviction. Forfeiture of bail, bond or collateral deposited to secure a defendant's appearance in court, which forfeiture has not been vacated, shall be equivalent to a conviction.

(Ord. No. 44-686 § 1)

CHAPTER 5.44. LITTERING

Sec. 5.44.010. Definitions.
Sec. 5.44.020. Enforcement—Personnel authorized.
Sec. 5.44.030. Violations not exclusive.
Sec. 5.44.040. Illegal dumping.
Sec. 5.44.050. Littering prohibited.
Sec. 5.44.060. Establishment of illegal dumping reward program.
Sec. 5.44.070. Pilfering from donation receptacle.

Sec. 5.44.010. Definitions.

(a) "Appliances" includes, but is not limited to, large electronic or gas Appliances such as washers, dryers, dishwashers, freezers, microwaves, refrigerators, stoves, ranges, hot water heaters, furnaces, air conditioners and other such household Appliances. This list is not exhaustive of all types of Appliances subject to this Code.

(b) "Bulk Quantities" mean an amount of Waste Matter in an amount equal to or in excess of two cubic yards.

(c) "Electronic Waste" means computers, computer monitors, cell phones, televisions, audio equipment, video equipment, small Appliances such as coffee makers, microwaves, vacuum cleaners, and any other electronic equipment that is required to be specially disposed of pursuant to Kansas law.

(d) "Garbage" means all putrescible solid wastes, including, but not limited to, vegetable matter, discarded food containers or other matter that attends to the preparation, consumption, packing, canning, storage and decay of meats, fish, fowls, vegetables, and fruit.

(e) "Household Furniture" includes, but is not limited to, large furniture, such as armoires, couches, chairs, tables, dressers, recliners, desks, mattresses, box springs and such other Household Furniture of similar size.

(f) "Illegal Dumping" and "Illegally Dump" means the willful, intentional, or negligent depositing, dropping, dumping, placing, or throwing of any Waste Matter onto public or private property that is not expressly designated for the purpose of disposing of or the retention of Waste Matter.

(g) "Littering" or Littering of Waste Matter means the willful, reckless, intentional, or negligent discarding, throwing, dropping, placing, depositing, or sweeping, or causing any such acts, or any waste on land or water in other than appropriate storage containers or areas designated for such purposes onto public or private property of small quantities of Waste Matter related to consumer goods and that are reasonably understood to be ordinarily carried on or about the body of a living Person, including, without limitation, beverage containers, packaging, wrappers, wastepaper, receipts, cardboard, newspaper, magazines, cigarette butts, used gum, or similar Waste Matter that escapes or is allowed to escape from a container, receptacle, vehicle, or package.

(h) "Person" means any individual, firm, trust, partnership, joint stock company, joint venture, company, association or corporation.

(i) "Universal Waste" means lamps, batteries, mercury-containing devices, and lighting ballasts.

(j) "Upholstered Furniture" means furniture that is covered by soft, padded textile, vinyl, or similar covering, such as couches, sofas, and armchairs.

(k) "Waste Matter" means any form of tangible matter including, without limitation, any of the following:

1. All forms of Garbage, refuse, trash, junk, debris, recyclable materials, and solid waste.
2. Dirt, rock, soil, gravel, sand, compost of any form, wood chips or mulch, tree debris, grass clippings, agricultural products, or other aggregate material dumped or deposited as refuse.
3. Abandoned or discarded furniture and children's toys and accessories.
4. Construction materials, machinery, structures, or containers.

5. All forms of liquid waste including, without limitation, paints, chemical solutions, and contaminated water.

6. Any form of biological waste not otherwise designated by law as hazardous waste.

7. Abandoned or discarded Appliances or Electronic Waste.

(Ord. No. 44-999, § 1, 7-10-01; Ord. No. 52-809, § 1, 9-16-25)

Sec. 5.44.020. Enforcement—Personnel authorized.

In addition to all law enforcement officers, the following personnel employed by the city shall have the power to enforce the provisions of this Chapter:

(1) All deputies under the supervision of the Director of the Metropolitan Area Building and Construction Department; and

(2) All authorized personnel under the supervision of the Director of Public Works and Utilities.

(Ord. No. 44-999, § 2, 7-10-01; Ord. No. 52-809, § 2, 9-16-25)

Sec. 5.44.030. Violations not exclusive.

Violations of this chapter are in addition to any other violation enumerated within the ordinances of this Code. This chapter in no way limits the penalties, actions or abatement procedures which may be taken by the city for a violation of this chapter which is also a violation of any other ordinances of the city or statute of the state.

(Ord. No. 44-999 § 3)

Sec. 5.44.040. Illegal dumping.

(a) (1) It is unlawful for any Person to Illegally Dump Waste Matter, or to cause Waste Matter to be disposed of in a manner not otherwise authorized by this code or State or Federal law.

(2) If is unlawful for any Person owning or otherwise in possession or control of any real property within the City to permit or allow the Illegal Dumping of Waste Matter from such property to be Illegally Dumped, or to cause Waste Matter to be disposed of in a manner not otherwise authorized by this code or State or Federal law.

(3) It is unlawful for any Person to cause or permit the Illegal Dumping of Waste Matter on the right-of-way of any public highway, street, easement, thoroughfare, or upon any public property or grounds, or into any stream or dry watercourse within the City of Wichita.

(b) Each Person who participates in an act of Illegal Dumping is jointly and severally liable with any other Person who participates for all citations, fines, penalties or abatement costs related to the act of Illegal Dumping.

(c) In the criminal trial of a Person charged with violating this section, the fact finder may infer that the defendant did not have the right or authority to dump Waste Matter on private or public property if the property is owned or controlled by another Person, entity or government subdivision. The defendant has the burden of proving that he or she had the authority to dump the litter or Waste Matter and that the litter or Waste Matter dumped did not cause a public nuisance.

(d) Evidence showing any three or more items found in dumped Waste Matter to be identifiable or traceable to a specific individual shall constitute *prima facie* evidence that such waste matter was under the control of that individual and was so dumped or deposited where subsequently found with that individual's knowledge and consent. Such items shall include, but not be limited to, letters, bills, publications or other writings which display the name of the Person thereon, addressed to such Person or in any manner indicating that the item belongs or belonged to such Person. Presumptions in this section may be overcome by proof that the Person identified from the letters or other items caused the Waste Matter to be collected and transported for disposal at an approved site by a Person properly licensed to collect and dispose of Solid Waste or Waste Matter.

(e) Liability of owner or operator of vehicle or trailer used for Illegal Dumping. A vehicle or trailer owner is liable and responsible for Illegal Dumping when the owner's vehicle or trailer is used for Illegal Dumping irrespective of whether the owner knew or should have known of the intended use of the vehicle or trailer.

(f) Any Person violating this section is guilty of a misdemeanor. Each day that Waste Matter is placed, deposited, or dumped in violation of this section remains is a separate violation.

(g) This section does not restrict a private owner in the use of his or her own private property, unless the placing, depositing, or dumping of the Waste Matter on the property creates a public health and safety hazard, a public nuisance, or a fire hazard, as determined by the Director of the Metropolitan Area Building and Construction Department or the Department of Public Works and Utilities personnel.

(h) Except in cases for Major Violations as defined in subsection (k), any Person convicted of a violation of this section shall be punished by a mandatory fine of not less than $1,000 nor more than $2,500 upon a first conviction, or by imprisonment for not more than 12 months, or by both such fine and imprisonment. Upon a second or subsequent conviction by a mandatory fine of not less than $1,500 nor more than $2,500 or by imprisonment for not more than 12 months, or by both such fine and imprisonment. If upon the trial of any Person found guilty of a misdemeanor hereunder, it shall appear to the court that the violation complained of is continuing, the court shall enter such order as it shall deem appropriate to cause the violation to be abated.

(i) Except in unusual cases where the interests of justice would be best served by waiving or reducing the fine, the minimum fines provided by this section shall not be waived or reduced. Except that the court may order that the defendant perform community service specified by the court in lieu of the mandatory fines imposed, but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by Section 1.04.210(e) and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed.

(j) The court may require, in addition to any fine imposed upon a conviction, that, as a condition of probation and in addition to any other condition of probation, a Person convicted under this section remove, or pay the cost of removing, any Waste Matter which the convicted Person dumped or caused to be dumped upon public or private property.

(k) Except when the court requires the convicted Person to remove Waste Matter which he or she is responsible for dumping as a condition of probation, the court may, in addition to the fine imposed upon a conviction, require as a condition of probation, in addition to any other conditions of probation, that any Person convicted of a violation of this section pick up Waste Matter at a time and place within the jurisdiction of the court for not less than 12 hours.

(l) Major Violations: Major Violations are punishable as a misdemeanor and are subject to greater financial penalties because Illegal Dumping of this magnitude is a greater threat to the health, safety and welfare of the residents and the community and imposes a greater financial burden on the City to abate.

1. The following are considered Major Violations: (1) where the Illegal Dumping involves a Bulk Quantity, Harmful Waste Matter, mattress(es), tire(s), Household Furniture, Upholstered Furniture, an Appliance, Universal Waste, or Electronic Waste; or (2) where a Person received three citations for violations of this Chapter within a one-year period, the next instance of Illegal Dumping by that Person will be deemed a Major Violation.
2. A Person who commits a Major Violation shall be subject to a fine of $1,500 per violation or by imprisonment, not to exceed twelve (12) months in prison, or by such fine and imprisonment.

(m) Separate Violations: The following are considered separate instances of Illegal Dumping, each of which is subject to the above remedies:

1. Each individual mattress, individual tire, Appliance, item of Electronic Waste; item of Household Furniture, item of Upholstered Furniture, item of Universal Waste, or item of Harmful Waste Matter Illegally Dumped is a separate Major Violation. For example, Illegally Dumping both a mattress and an Appliance would constitute two (2) separate Major Violations, each of which is subject to the above penalty.
2. Each cubic yard of Waste Matter Illegally Dumped is a separate Major Violation. For example, Illegally Dumping two (2) cubic yards of Waste Matter would constitute two (2) separate Major Violations, each of which is subject to the above $1,500 penalty.
3. A Bulk Quantity of Waste Matter Illegally Dumped which also contains Harmful Waste Matter, a mattress, an Appliance, Upholstered Furniture, Household Furniture, or Electronic Waste may be cited both as a Bulk Quantity and separately as Harmful Waste Matter, a mattress, an Appliance, Universal Waste, Upholstered Furniture, Household Furniture, or Electronic Waste, and each constitutes a separate Major Violation. For example, Illegally Dumping an Appliance which measures more than a cubic yard would constitute two (2) separate Major Violations, each of which is subject to the above $1,500 penalty.
4. Each individual act or Illegal Dumping or Littering at the same location is a separate violation.
5. Each day an act of Illegal Dumping or Littering continues unabated is a separate violation.

(Ord. No. 44-999 § 3; Ord. No. 49-256, § 25, 5-8-2012; Ord. No. 52-809, § 3, 9-16-25)

Sec. 5.44.050. Littering prohibited.

(a) It is unlawful to Litter, as defined in subsection (c), in or upon any public or private property. Any Person, firm, or corporation violating this section is guilty of an infraction.

(b) This section does not restrict a private owner in the use of his or her own property, unless the Littering of Waste Matter on the property creates a public health and safety hazard, a public nuisance, or a fire hazard, as determined by the Director of the Metropolitan Area Building and Construction Department or personnel of the Public Works and Utilities Department.

(c) If the throwing, dumping or depositing of Litter was done from a motor vehicle, it shall be presumed that the throwing, dumping or depositing was done by the driver of the motor vehicle. Presumptions in this section may be overcome by proof that the Person identified from the litter caused the litter to be collected and transported for disposal at an approved site by Person licensed by the city to collect and dispose of solid waste.

(d) A Person, firm, or corporation convicted of a violation of this section shall be punished by a mandatory fine of not less than one hundred dollars nor more than one thousand dollars upon a first conviction, by a mandatory fine of not less than two hundred fifty dollars nor more than one thousand dollars upon a second conviction, and by a mandatory fine of not less than five hundred dollars nor more than one thousand dollars upon a third or subsequent conviction.

(e) Except in unusual cases where the interests of justice would be best served by waiving or reducing the fine, the minimum fines provided by this section shall not be waived or reduced. Except that a court may order that the defendant perform community service specified by the court in lieu of the mandatory fines imposed, but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by Section 1.04.210(e) and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed.

(Ord. No. 44-999 § 4; Ord. No. 52-809, § 4, 9-16-25)

Sec. 5.44.060. Establishment of illegal dumping reward program.

The city manager is authorized to establish a program to provide monetary incentives to

individuals who report violations of illegal dumping, as prohibited by Section 5.44.040, when such information leads to the arrest and conviction of such offender(s).
(Ord. No. 44-999 § 5)

Sec. 5.44.070. Pilfering from donation receptacle.

(a) When property or goods are deposited in or near a donation receptacle on private, semi-public or public property, the donation becomes the property of the agency whose receptacle it is in or near.

(b) Any Person pilfering through a donation receptacle or property deposited near a donation receptacle is presumed to be doing so for the purpose of attempting to convert such to their own use.

(c) It shall be unlawful for any Person to scatter, dump, pile, leave or lay any litter upon any public street, public right-of-way, sidewalk, other public property, or upon any premises belonging to another Person.

(d) Any Person convicted of violations of this section shall be punished by a mandatory fine of not less than $500.00 nor more than $1,000.00 upon a first conviction, or by imprisonment for not more than 12 months, or by both such fine and imprisonment. Upon a second or subsequent conviction by a mandatory fine of not less than $1,000.00 nor more than $2,000.00 or by imprisonment for not more than 12 months, or by both such fine and imprisonment. If upon the trial of any Person found guilty of a misdemeanor hereunder, it shall appear to the court that the violation complained of is continuing, the court shall enter such order as it shall deem appropriate to cause the violation to be abated.
(Ord. No. 52-809, § 5, 9-16-25)

CHAPTER 5.48. LOITERING

Sec. 5.48.010. Definitions.
Sec. 5.48.020. Loitering—Police order to disperse.
Sec. 5.48.030. Schools, school buildings, libraries—Prohibited conduct; violation declared loitering.
Sec. 5.48.035. Loitering prohibited near entertainment establishments.
Sec. 5.48.038. Failure to disperse from entertainment establishment.
Sec. 5.48.040. Reserved.
Sec. 5.48.050. Penalty.

Sec. 5.48.010. Definitions.

The following words and phrases when used in this chapter shall, for the purpose of this chapter, have the meanings respectively ascribed to them in this section except when the context otherwise requires:

LOITERING. "Loitering" means remaining idle in essentially one location and includes the concept of spending time idly; to be dilatory; to linger; to stay; to saunter; to delay; to stand around; and shall also include the colloquial expression "hanging around."

PUBLIC PLACE. "Public place" means any place to which the general public has access and a right to resort for business, entertainment or other lawful purpose, but does not necessarily mean a place devoted solely to the uses of the public. It shall also include the front or immediate area of any store, shop, restaurant, tavern or other place of business and also public grounds, areas or parks.
(Ord. No. 32-930 (part); Ord. No. 29-990, §§ 1, 2; prior Ord. No. 28-894 § 1; Ord. No. 23-216 § 1)

Sec. 5.48.020. Loitering—Police order to disperse.

(a) It is unlawful for any person to loiter, loaf, wander, stand or remain idle either alone and/or in consort with others in a public place in such manner so as to:

(1) Obstruct any public street, public highway, public sidewalk or any other public place or building by hindering or impeding or tending to hinder or impede the free and uninterrupted passage of vehicles, traffic or pedestrians;

(2) Commit in or upon any public street, public highway, public sidewalk or any other public place or building any act or thing which is an obstruction or interference to the free and uninterrupted use of property or with any business lawfully conducted by anyone in or upon or facing or fronting on any such public street, public highway, public sidewalk or any other public place or building, all of which prevents the free and uninterrupted ingress, egress, and regress therein, thereon and thereto.

(b) When any person causes or commits any of the conditions enumerated in subsection (a) of Section 5.48.020 herein, a police officer or any law enforcement officer shall order that person to stop causing or committing such conditions and to move on or disperse. Any person who fails or refuses to obey such orders shall be guilty of a violation of the provisions of this chapter.
(Ord. No. 32-930 (part))

Sec. 5.48.030. Schools, school buildings, libraries—Prohibited conduct; violation declared loitering.

It is unlawful for any person to disrupt the normal activity, disturb the peace, or to remain, to idle, or to loiter at any time on or about the premises or grounds of any public library, of any public or private school or school buildings, and/or assembly of students for any school activities or athletic events conducted by such public or private schools. Any student or any person who is not enrolled in said public or private school, or who has been suspended or dismissed from said public or private school, or who persists in staying or remaining on or about said premises or grounds without any lawful purpose shall be guilty of the offense of loitering.
(Ord. No. 32-930 (part))

Sec. 5.48.035. Loitering prohibited near entertainment establishments.

(a) *Purpose.* The City of Wichita finds that persons who loiter outside an entertainment establishment negatively impact the public's

safety and welfare. The areas outside these establishments have become the site of assaults and batteries. Prohibiting loitering outside entertainment establishments will assist law enforcement and club security staff in protecting entertainment establishment patrons and may decrease the incidence of crimes at these establishments by providing law enforcement officers with an additional crime-fighting tool that does not infringe on any person's basic rights.

(b) *Prohibition.* In the City of Wichita, it shall be unlawful for any person to loiter outside any entertainment establishment between the hours of 11 p.m. and 3 a.m.

(c) *Definitions.*

(1) For the purpose of this Section, unless a person is engaged in an activity described in Subsection (d), a person loiters outside an entertainment establishment when the person remains as a pedestrian for a period of over three minutes within 25 feet from the entrance or exit of the entertainment establishment or within 25 feet from any point of any lines formed at the entrance to an entertainment establishment.

(2) For the purposes of this section, an entertainment establishment is defined as a place of entertainment which is licensed pursuant to Chapter 3.30 of the Code of the City of Wichita.

(d) *Application.* This ordinance is not intended to prohibit any person from engaging in any lawful activity that must be conducted within 25 feet from the entrance or exit of an entertainment establishment or 25 feet from any point of any lines formed at the entrance to an entertainment establishment such as (1) waiting in line to enter an entertainment establishment, (2) being present in a smoking area designated by the entertainment establishment outside the entertainment establishment for patrons, or (3) waiting for a bus at a bus stop or waiting in line to enter a theater or other business. Lawful activity does not include any activity that can be conducted more than 25 feet from the entrance or exit of the entertainment establishment or more than 25 feet from any point on any lines formed at the entrance to an entertainment establishment.

(e) *Warning Required.* Before any law enforcement officer may cite or arrest a person under this subsection, the law enforcement officer or personnel working for the entertainment establishment must warn the person that his or her conduct is in violation of this ordinance and must give the person an opportunity to comply with the provisions of this ordinance.

(f) *Penalties.*

(1) *First Conviction.* Any person violating any provision of this Section shall be guilty of a misdemeanor and upon a first conviction shall be punished by a fine not to exceed $500.00 or by imprisonment of not more than six months, or by both such fine and imprisonment.

(2) *Subsequent Convictions.* Any person violating any provision of this Section a second time, within a one year period, shall be guilty of a misdemeanor and shall be punished by a fine of not less than $200.00 or more than $500.00, or by imprisonment of not more than six months, or by both such fine and imprisonment. Any person violating any provision of this Section a third time, and each subsequent time, within a three year period shall be guilty of a misdemeanor and shall be punished by a fine of not less than $500.00 or more than $1,000.00, or by imprisonment of not more than six months, or by both such fine and imprisonment.

(g) For the purposes of determining whether a conviction is a first, second, or subsequent conviction in sentencing under this section:

(1) "Conviction" includes being convicted of a violation of this section, or entering into a deferred judgment agreement in lieu of further criminal proceedings on a complaint alleging violation of this section.

(2) "Conviction" includes being convicted of a violation of a law of this state or of

another state or an ordinance of any municipality which prohibits the acts that this Section prohibit or entering into a diversion or deferred judgment agreement in lieu of further criminal proceedings in a case alleging a violation of such a law or ordinance;

(3) Only convictions occurring in the immediately preceding five years shall be taken into account, but the court may consider other prior convictions in determining the sentence to be imposed within the limits provided for a first or second offense, whichever is applicable.

(4) It is irrelevant whether an offense occurred before or after conviction for a previous offense.

(h) *Severability.* If any subsection, sentence, clause, phrase, or word of this Section be for any reason declared unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or the effectiveness of the remaining portions of this Section.
(Ord. No. 49-751, § 8, 5-20-2014)

Sec. 5.48.038. Failure to disperse from entertainment establishment.

(a) It shall be unlawful for any person to fail to vacate the licensed premises of an entertainment establishment and/or property abutting or adjacent thereto in a timely and orderly manner.

(b) It shall be unlawful for any person to willfully impede any other person from vacating the premises of an entertainment establishment in a timely and orderly manner.

(c) *Definitions.* For the purposes of this section, the words will have the meanings set for the below:

"Abutting" means touching or directly contiguous to.

"Adjacent" means an area which is no further than 25 feet from the licensed premises, unless otherwise provided by a specific section of this Code.

"Entertainment establishment" means a place of entertainment which is licensed pursuant to Chapter 3.30 of the Code of the City of Wichita.

"Vacate in a timely and orderly manner" means a person shall not remain in or upon the property or licensed premises or the property adjacent or abutting the licensed premises, without just or legal cause, after being asked to leave by the owner, licensee, manager, responsible person or person entitled to possession or in control of the property thereof or willfully impede other persons from vacating the premises in a timely and orderly manner.

(d) Law enforcement officers of the City of Wichita or other individuals designated by the City may request persons to vacate, disperse, or leave property abutting or adjacent to a licensed entertainment establishment upon request of the owner of said property.

(e) For the purposes of this section, law enforcement officers shall be considered to be "in control" of all City owned property including parking lots abutting or adjacent to licensed premises.
(Ord. No. 49-751, § 9, 5-20-2014)

Sec. 5.48.040. Reserved.

Editor's note—Ord. No. 50-643, § 6, adopted Dec. 19, 2017, repealed § 5.48.040, which pertained to begging, etc.—violation declared loitering and derived from Ord. No. 32-930 (part); Ord. No. 46-895, § 8, adopted Mar. 2, 2006.

Sec. 5.48.050. Penalty.

Unless otherwise specified, any person violating any of the provisions of this chapter shall be guilty of a misdemeanor and shall be punished by a fine of not more than $1,000.00 or one year imprisonment, or both such fine and imprisonment.
(Ord. No. 32-930 (part); Ord. No. 49-751, § 10, 5-20-2014)

CHAPTER 5.50 HARASSING AND AGGRESSIVE CONTACT

Sec. 5.50.010. Reserved.
Sec. 5.50.020. Definitions.
Sec. 5.50.030. Aggressive or harassing contact prohibited.
Sec. 5.50.040. Penalty.
Sec. 5.50.050. Severability.

Sec. 5.50.010. Reserved.

Editor's note—Ord. No. 52-603, § 1, adopted Jan. 7, 2025, repealed § 5.50.010, which pertained to purpose, and derived from Ord. No. 50-643, § 1, adopted Dec. 19, 2017.

Sec. 5.50.020. Definitions.

"Contact" means the intentional action by any person which attempts to attract the attention of any other person for the purpose of inducing such other person to slow, stop or which obstructs or hinders the movement of such other person to facilitate a transfer of anything to or from either person.

"Obstruct" means to hinder or slow progress, to retard progress, to make accomplishment of obtaining a goal slower or more difficult, to be or come in the way of or impede.

"Public Place" means a place to which the public or a substantial part of the public has access, including, streets, highways, transportation facilities, schools, places of amusement, parks, playgrounds and the common areas of the public and private buildings and facilities, including, parking lots or other areas intended for use by the public. It shall include the front, entryway, doorway, or vestibule or area of immediate access to any public place, store, shop, restaurant, tavern or other place of business.
(Ord. No. 50-643, § 2, 12-19-17)

Sec. 5.50.030. Aggressive or harassing contact prohibited.

It shall be unlawful for any person to engage in harassing or aggressive contact with another person in any public place in such a manner so as to:

(a) Intentionally touch or cause physical contact with another person without that person's consent;

(b) Intentionally block, obstruct or interfere with the safe and free passage of any person by any means, including, unreasonably causing a person to take evasive action to avoid physical contact;

(c) Using violent or threatening conduct toward another person which would cause a reasonable person to be fearful for his or her safety;

(d) Using profane or abusive language which is likely to provoke an immediate breach of the peace from another person or would cause a reasonable person to be fearful for his or her safety; or

(e) Approaching or following another person in a manner and with conduct, words or gestures which are intended or likely to cause a reasonable person to fear imminent bodily harm or damage to or loss of property or otherwise to be intimidated into transferring anything to the person.

(Ord. No. 50-643, § 3, 12-19-17)

Sec. 5.50.040. Penalty.

Any person who violates the provisions of this Chapter is guilty of a misdemeanor. Upon a conviction, a person shall be sentenced to a fine not to exceed five hundred (500) dollars and/or imprisonment not to exceed six months.
(Ord. No. 50-643, § 4, 12-19-17)

Sec. 5.50.050. Severability.

If any section, subsection, sentence, clause or phrase of this ordinance is for any reason held invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this ordinance."
(Ord. No. 50-643, § 5, 12-19-17)

CHAPTER 5.52. MINORS—CURFEW

Sec. 5.52.010. Curfew for certain minor children.
Sec. 5.52.020. Responsibility of parent, or person having custody.
Sec. 5.52.030. Penalty.
Sec. 5.52.040. Authority of mayor not affected.

Sec. 5.52.010. Curfew for certain minor children.

(a) It is unlawful for any minor under the age of eighteen years to loiter, idle, wander, stroll, or play in or upon the public streets, highways, roads, alleys, parks, playgrounds, or other public grounds, public places or public buildings, places of amusement or entertainment, eating places, vacant lots or other place unsupervised by an adult having the lawful authority to be at such place during the following periods of time:

(1) For minors age fifteen and under, between the hours of eleven p.m. on any day and six a.m. of the following day, except on Fridays and Saturdays when the hours shall be twelve midnight to six a.m. of the following day;

(2) For minors age sixteen and seventeen, between the hours of twelve midnight on any day and six a.m. of the following day, except on weekends when the hours shall be one a.m. to six a.m. of any Saturday or Sunday.

(b) The provisions of this section shall not apply in the following instances:

(1) When a minor is accompanied by his or her parent, guardian or other adult person having the lawful care and custody of the minor;

(2) When the minor is upon an emergency errand directed by his or her parent or guardian or other adult person having the lawful care and custody of such minor, without any detour or stop;

(3) When the minor is attending an official school, religious or other recreational activity supervised by adults and sponsored by the city, a civic organization, or another similar entity that takes responsibility for the minor, or going to or returning directly home, without any detour or stop, from an official school, religious or other recreational activity supervised by adults and sponsored by the city, a civic organization, or another similar entity that takes responsibility for the minor;

(4) When the minor is engaged in an employment activity, or going to or returning directly from lawful employment activity, without detour or stop, that makes it necessary to be in the above-referenced places during the prescribed period of time;

(5) When the minor is on the sidewalk abutting the minors residence or abutting the residence of a next-door neighbor if the neighbor did not complain to the police officer about the minor's presence;

(6) When the minor is attending or traveling directly to or from an activity involving the exercise of first amendment rights of free speech, freedom of assembly or free exercise of religion; and

(7) When the minor is in interstate travel through the city.

(Ord. No. 43-565 § 1)

Sec. 5.52.020. Responsibility of parent, or person having custody.

Except in circumstances set out in Section 5.52.010(b), it shall be unlawful for the parent, guardian or other adult person having the care and custody of a minor under the age of eighteen years to permit such minor to loiter, idle, wander, stroll, or play in or upon the public streets, highways, roads, alleys, parks, playgrounds, or other public grounds, public places or public buildings, places of amusement or entertainment, eating places, vacant lots or other place unsupervised by an adult having the lawful authority to be at such place during the following periods of time:

(1) For minors age fifteen and under, between the hours of eleven p.m. on any day and six a.m. of the following day, except

on Fridays and Saturdays when the hours shall be twelve midnight to six a.m. of the following day;

(2) For minors age sixteen and seventeen, between the hours of twelve midnight on any day and six a.m. of the following day, except on weekends when the hours shall be one a.m. to six a.m. of any Saturday or Sunday.

(Ord. No. 42-211 § 2)

Sec. 5.52.030. Penalty.

(a) Any minor violating the provisions of this section shall be dealt with in accordance with juvenile court law and procedure. Any police officer finding a minor under the age of eighteen years violating the provisions of this chapter shall warn the child to desist from such violation and immediately return home and shall cause a written notice to be served upon the parent, guardian or person in charge of such child, setting forth the manner in which the provisions of this chapter have been violated. For the purposes of this section, notice shall be deemed properly served upon such parent, guardian or person in charge of a child if a copy thereof is served upon him or her personally or if a copy thereof is sent by certified mail, return receipt requested, to his or her last known address; provided further, if the notice cannot be conveniently served by the aforesaid, service of the notice is to be made upon such parent, guardian or person in charge of a child by at least one publication in the official newspaper of the city, such publication to contain the conditions and reasons of the notice.

(b) Any parent, guardian or person having the care and custody of a child who shall permit, or by insufficient control allows, such child to violate the provisions of this chapter after receiving written notice that such child has previously violated such provisions shall be subject to a mandatory, minimum fine of fifty dollars and a maximum fine of five hundred dollars, plus costs, for the first such offense and a mandatory, minimum fine of one hundred dollars and a maximum fine of five hundred dollars plus costs, for a second or subsequent such offense, with a request to the appropriate court that consideration be given to community service for the offending juvenile as an alternative to any set fine.

(c) Any owner, operator or any employee of an establishment who shall knowingly permit a minor to remain upon the premises of the establishment during curfew hours shall be subject to a mandatory, minimum fine of fifty dollars and a maximum fine of five hundred dollars, plus court costs.

(1) For the purpose of this section "establishment" means any privately-owned place of business operated for a profit to which the public is invited, including, but not limited to, any place of amusement or entertainment.

(2) It is a defense to prosecution that the owner, operator or employee of an establishment promptly notified the police department that a minor was present on the premises of the establishment during curfew hours and refused to leave.

(Ord. No. 43-565 § 2)

Sec. 5.52.040. Authority of mayor not affected.

Nothing in this chapter shall affect the authority of the mayor to impose a curfew pursuant to Chapter 5.73 of this Code, and any amendments thereto.

(Ord. No. 41-578 § 4)

CHAPTER 5.54. MISDEMEANORS—COMPOUNDING OR CONCEALING

Sec. 5.54.010. Misdemeanors—Compounding or concealing.

Sec. 5.54.010. Misdemeanors—Compounding or concealing.

Every person having knowledge of the actual commission of any offense having been made in violation of the terms of this code, who shall take any money, property, gratuity or reward or any promise, engagement or undertaking thereof upon any agreement or understanding, express or implied, to compound or conceal any such offense or to abstain from the prosecution thereof or to withhold any evidence thereof, shall be guilty of a misdemeanor.
(Ord. No. 11-592 § 22)

CHAPTER 5.55. RESERVED*

*Editor's note—Ord. No. 48-200, § 1, 2, adopted March 10, 2009, repealed Ch. 5.55 in its entirety. Formerly said chapter pertained to Molotov Cocktails and derived from 29-958, §§ 1, 2; Ord. No. 32-931)

CHAPTER 5.56. MUNICIPAL AIRPORT AND PARKS*

Sec. 5.56.010. Municipal airport and park system.

Sec. 5.56.010. Municipal airport and park system.

Any act which is made an offense by any of the provisions of this code, or any other ordinance of the city shall also be considered an offense at the municipal airport or within any of the parks belonging to the city which lie outside of the corporate limits of the city.

*__Cross reference—__For general provisions as to municipal parks and airport, see Title 9.

CHAPTER 5.62. PARACHUTE JUMPING

Sec. 5.62.010. Permit required.
Sec. 5.62.020. Application for permit—Contents.
Sec. 5.62.030. Application to be accompanied by written permission from landowners in drop zone.
Sec. 5.62.040. Insurance to accompany application.
Sec. 5.62.050. Exhibitions to comply with FAA regulations.

Sec. 5.62.010. Permit required.

An exhibition of sky diving or parachute jumping may be conducted over the corporate limits of the city, upon issuance of a permit therefor, which permit shall be subject to the approval of the city manager.
(Ord. No. 40-055 § 1)

Sec. 5.62.020. Application for permit—Contents.

Application for such permit shall be made to the license officer of the city upon forms provided for this purpose by the officer, which shall contain as a minimum:

(a) The name of the organization sponsoring the event;

(b) The date and time of the proposed exhibition;

(c) The anticipated number of spectators expected to view the exhibition and the location of spectators with relation to the proposed drop zone;

(d) A description of the proposed drop zone to include a designation of the size of the drop zone and identification of all obstacles within or adjacent to the drop zone.

(Ord. No. 32-122 § 2)

Sec. 5.62.030. Application to be accompanied by written permission from landowners in drop zone.

The application for permit must be accompanied by the written permission of all the landowners within the drop zone, as set out in Section 5.62.020(d). In the event the drop zone is publicly owned, the responsible public body must consent in writing to the use of the public area for this purpose.
(Ord. No. 32-122 § 3)

Sec. 5.62.040. Insurance to accompany application.

The application for such permit shall be accompanied by a certificate of insurance executed by an insurance company licensed to do business within the state of Kansas reflecting a minimum liability coverage of one hundred thousand dollars, which certificate shall name the city of Wichita as co-insured for the specific event requested.
(Ord. No. 32-122 § 4)

Sec. 5.62.050. Exhibitions to comply with FAA regulations.

Exhibitions conducted within the scope of this chapter shall be subject to all restrictions of the Federal Aviation Administration regulating flights over the municipal area and regulating the conduct of such sky diving or parachute jumps.
(Ord. No. 32-122 § 5)

CHAPTER 5.63. NOISE

Sec. 5.63.010. Loud and unnecessary noise prohibited.
Sec. 5.63.020. Classification and measurement of noise.
Sec. 5.63.030. Excessive noise levels.
Sec. 5.63.040. Exceptions.
Sec. 5.63.050. Application.
Sec. 5.63.060. Review process.
Sec. 5.63.070. Appeal.
Sec. 5.63.080. Enforcement.
Sec. 5.63.090. Penalty.

Sec. 5.63.010. Loud and unnecessary noise prohibited.

(a) It is unlawful for any person to make, continue or allow to be made or continued, any excessive, unnecessary, unusual or loud noise which creates a nuisance or injures or endangers the comfort, repose, health or safety of others, or which interferes with the use or enjoyment of property of any person of reasonable sensibilities residing in or occupying the area unless the making and continuing of such noise is necessary for the protection and preservation of property or the health and safety of some individual. A determination of whether a sound violates this subsection shall include consideration of facts and circumstances, such as the cause, volume, intensity, nature, and duration, as well as consideration of the time of day or night and zoning and location of where the sound can be heard and the location from where such sound is emitting.

(b) The following acts, which enumeration shall not be deemed to be exclusive, are hereby declared to be noise nuisances in violation of this section and are unlawful:

(1) The playing or permitting or causing the playing of any radio, radio receiving set, television, phonograph, "boom box," loudspeaker, drum, juke box, nickelodeon, musical instrument, sound amplifier or similar device which produces, reproduces or amplifies sound when done in such a manner or with such volume, intensity or with continued duration so as to annoy, to distress or to disturb the quiet, comfort or repose of any person of reasonable sensibilities within the vicinity or hearing thereof. This subsection shall not apply to persons who have written authorization for an event which includes use of such a device, or to the police or public authorities who are using such a device in the performance of their duties.

(2) Steam Whistles. The blowing of any steam whistle attached to any stationary boiler, except to give notice of the opening or closing of the establishment or institution, or of the time to begin or stop work, or as a warning of danger.

(3) Exhaust of Steam Engines, etc. The discharge into the open air of the exhaust of any stationary steam engine, internal combustion engine, noise creating blower or power fans, or devices operated by compressed air, except through a muffler or other device which will effectively prevent loud or explosive noises therefrom.

(4) Motor Vehicles. The use of any motor vehicle, motorcycle, bus or other vehicle so out of repair or in such a manner as to create loud or unnecessary grating, grinding, rattling or other noise which shall annoy, distress or disturb the quiet, comfort or repose of any person of reasonable sensibilities within the vicinity.

(5) Street Vendors. The raucous shouting, whistling, yelling, singing, or hooting of street or sidewalk vendors or any other individual before 7:00 a.m. or after 10:00 p.m.

(6) Construction. The erection, including construction, excavation, demolition, alteration or repair work, or the permitting or causing thereof, of any building or other structure, or the operation or the permitting or causing the operation of any tools, or equipment used in construction, excavation, drilling, demolition, alteration or repair work:

(i) Other than between the hours of 7:00 a.m. and 10:00 p.m.;

(ii) This subsection shall not apply in cases of extreme and urgent necessity in the interest of public safety

and convenience, and then only by permit obtained from and issued by the Director of Public Works, or any of the Director's duly appointed assistants.

(7) Loading and Unloading. The creation of loud, excessive and unreasonable noise in connection with loading or unloading any vehicle, in the opening and destruction of bales, boxes, crates and containers or in the handling of ash, trash and garbage cans, either in the loading or unloading, or the creation by improper loading of excessive and unreasonable noise by the transportation of any materials over and along streets.

(8) Party or Gathering. The congregating or participating in any party or gathering of people from which emanates sound of a sufficient volume so as to create a nuisance or injures or endangers the comfort, repose, health or safety of others, or which interferes with the use or enjoyment of property of any person of reasonable sensibilities residing in or occupying the area. A police officer may order all such persons present at any such party or gathering to immediately disperse from the vicinity of any such party or gathering in lieu of being charged under this section. Owners or tenants are not required to leave their own dwelling unit. Owners or tenants residing in the dwelling unit where the party or gathering occurs shall, upon request of a police officer, shall cooperate fully in abating the disturbance. Failure to do so shall be considered to be in violation of this section.

(c) It shall be a defense to charges filed pursuant to subsection (a) of Section 5.63.010 that such noise levels did not exceed those set forth in Section 5.63.030. Such measurements shall be taken in accordance with the provisions of Section 5.63.020 pertaining to noise levels. It shall be the burden of the individual charged to present evidence of decibel readings obtained from properly calibrated testing equipment operated by an individual trained to operate such equipment. Such evidence shall be submitted to the City Attorney's Office no later than seven days prior to the trial date of any complaint. Failure to submit such evidence to the City Attorney's Office will waive any such defense.

(d) Exemptions. The following shall not be considered to be violation of this section:

1. Sounds from community events, community sporting events or college sporting events.
2. Sounds from law enforcement motor vehicles and other emergency motor vehicles, street cleaning or snow-clearing equipment.
3. Sounds from fireworks when discharged in accordance with applicable City ordinances.

(Ord. No. 52-810, § 1, 9-16-25)

Sec. 5.63.020. Classification and measurement of noise.

For the purposes of determining and classifying any noise from a fixed, stationary source as loud, unusual or unnecessary as declared to be unlawful and prohibited by subsection (a) of Section 5.63.010 herein, the following test measurements and requirements may be applied:

(a) Noise occurring within the jurisdiction of the city shall be measured at a distance of at least 25 feet from a noise source if located within the public right-of-way, and if the noise source is located on private property or property other than the public right-of-way, at least 25 feet from the property line of the property on which the noise source is located.

(b) (1) The noise shall be measured on the "A" weighing scale of sound level meter of standard design and quality and having characteristics established by the American National Standards Institute.

(2) For purposes of this section, measurements with sound level meters shall be made when the wind velocity at the time and place

of such measurement is not more than five miles per hour, or 25 miles per hour with a wind screen.

(3) In all sound level measurements consideration shall be given to the effect of the ambient noise level created by the encompassing noise of the environment from all sources at the time and place of such sound level measurement.

(Ord. No. 52-810, § 2, 9-16-25)

Sec. 5.63.030. Excessive noise levels.

(a) A noise measured or registered as provided herein from any source not exempted by this Chapter at a level which is equal to or in excess of the db(A) established for the time period and zones listed below or that exceeds the background level by five db(A), whichever is greater, is declared to be excessive, unusual, loud and unnecessary, for the purposes of 5.63.010:

Zone	8:00 a.m. to next 10:00 p.m.	10:00 p.m. to next 8:00 a.m.
Residential	55 db(A)	50 db(A)
Commercial	60 db(A)	55 db(A)
Light Industrial	70 db(A)	65 db(A)
Industrial	80 db(A)	75 db(A)
Parks	60 db(A)	55 db(A)
Old Town District as set forth in subsection (b)		

Background noise means noise from all sources other than that under specific consideration, including traffic operating on public thoroughfares, and is established by measuring the noise level over a 15-minute period of time.

(b) The noise levels for subsection (a) of this section shall be modified for the Old Town District as follows:

(1) Noise levels may exceed background levels by five db(A) to a maximum of 80 db(A).

(2) Noise levels shall be measured from the outside property line when measurements are being made of an activity on a property other than streets or public rights-of-way.

(3) Noise levels under this section may be increased or waived for approved licensed community events pursuant to Chapter 3.11 of the Code of the City of Wichita.

(c) For purposes of this section, the aforementioned zones shall be defined as follows:

(1) "Residential" means an area of single or multifamily dwellings where businesses may or may not be conducted in such dwellings. The zone includes areas where multiple unit dwellings, high-rise apartment districts and redevelopment districts are located. A residential zone may include areas containing accommodations for transients such as motels and hotels and residential areas with limited office development, but it may not include retail shopping facilities. "Residential" zone includes educational facilities, hospitals, nursing homes and similar institutions.

(2) "Commercial" means an area where offices, clinics and the facilities needed to serve them are located; an area with local shopping and service establishments located within walking distances of the residents served; a tourist-oriented area where hotels, motels and gasoline stations are located; a large integrated regional shopping center; a business district along a main street containing offices, retail businesses and commercial enterprises; a central business district; or a commercially dominated area with multiple unit dwellings.

(3) "Light industrial" means an area containing clean and quiet research laboratories, an area containing light industrial activities which are clean and quiet; an area containing warehousing; or an area in which other activities are conducted where the general environment is free from concentrated industrial activity.

(4) "Industrial" means an area in which noise restrictions on industry are necessary to protect the value of adjacent properties for other economic activity but shall not include agricultural operation.

(5) "Old Town District" means the Old Town overlay district as defined in the zoning code.

(6) "Parks" means any public park, recreational facility or other property under the ownership, jurisdiction or control of the Board of Park Commissioners of the City of Wichita or the City of Wichita.

(7) Adjacent Zones. When a noise source can be measured from more than one zone, the permissible sound level of the more restrictive zone shall govern.

(Ord. No. 52-810, § 3, 9-16-25)

Sec. 5.63.040. Exceptions.

The following activities, as long as they are conducted during daytime hours as a normal function of a permitted use and the equipment is maintained in proper working condition, are exempted from the provisions of this Chapter:

(a) Lawn maintenance;

(b) Repair of personal use vehicles; and

(c) Home repair of place of residence.

(Ord. No. 52-810, § 4, 9-16-25)

Sec. 5.63.050. Application.

To receive written authorization for the use of sound amplification equipment as authorized by 5.63.010(b)(1) and 5.63.030(b)(3) a person must complete and file an application for such authorization with an application for a community event, on a form approved by the City. The applicant must provide the following information:

(1) The type of proposed event or activity;

(2) The number of participants for the proposed event or activity;

(3) The location, including street address of the area to be utilized for the activity;

(4) The date or dates and specific times for the activity;

(5) The plans for sound control and sound amplification, including the number, location and power of amplifiers and speakers; and

(6) The name, address and phone number of the party responsible for the event.

(Ord. No. 52-810, § 5, 9-16-25)

Sec. 5.63.060. Review process.

(a) In determining if written authorization should be granted as allowed by Sections 5.63.010(b)(1) and 5.63.010(b)(3) of the Code of the City of Wichita, the following factors are to be considered by the Community Event Coordinator or his or her designee:

(1) The volume of the noise;

(2) The volume of the existing background noise, if any;

(3) The zoning of the area within which the noise emanates, as well as where the noise can be heard;

(4) The time of the day or night the noise occurs; and

(5) The duration of the noise.

(b) No authorization may be issued for the use of sound amplifiers, loud speakers or other similar devices between the hours of 10:00 p.m. and 8:00 a.m. Sunday through Thursday and the hours of 11:00 p.m. and 8:00 a.m. on Friday and Saturday.

(c) No authorization may be issued for noise levels in excess of 80 db (A).

(Ord. No. 52-810, § 6, 9-16-25)

Sec. 5.63.070. Appeal.

Any person denied written authorization for the use of sound amplification devices shall have a right of appeal to the Wichita City Council by filing a written request with the City Clerk. The notice of appeal must be filed with the City Clerk within ten days of the denial of such application and shall be heard at the next regularly scheduled

City Council meeting. The City Council's decision may be appealed to the Eighteenth Judicial District Court pursuant to K.S.A. 60-2101.
(Ord. No. 52-810, § 7, 9-16-25)

Sec. 5.63.080. Enforcement.

In addition to all law enforcement officers, the following personnel shall have the power to enforce the provisions of this Chapter:

(1) All deputies under the supervision of the Director of the Metropolitan Area Building and Construction Department; and

(2) All authorized personnel under the supervision of the Director of Public Works and Utilities.

(Ord. No. 52-810, § 8, 9-16-25)

Sec. 5.63.090. Penalty.

Any person who violates any of the provisions of this section within the corporate limits of the city is guilty of a misdemeanor and upon conviction thereof shall be fined in an amount not exceeding one thousand dollars ($1,000) or be imprisoned in jail for a period not to exceed six (6) months, or by both such fine and imprisonment. Each day a violation is committed or permitted to continue shall constitute a separate offense.
(Ord. No. 52-810, § 9, 9-16-25)

CHAPTER 5.64. PRISONERS—ESCAPE

Sec. 5.64.010. Escaping from custody.
Sec. 5.64.020. Attempting to set at liberty or rescue.
Sec. 5.64.030. Carrying instruments, etc., into place of confinement.
Sec. 5.64.040. Temporary release of prisoners from confinement; work release programs.

Sec. 5.64.010. Escaping from custody.

Any person in the custody of any commissioned or noncommissioned police officer or of an officer of the municipal court for the violation of any provision of this code or other city ordinance for which a sentence or a fine or imprisonment or both has been imposed, or may be imposed, who escapes from the custody of such officer or who attempts by force or violence to any person to effect his escape from such custody, shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not more than two thousand five hundred dollars or by twelve months' imprisonment, or by both such fine and imprisonment.
(Ord. No. 38-560 § 1; Ord. No. 47-085, § 1, 7-25-06)

Sec. 5.64.020. Attempting to set at liberty or rescue.*

Every person who attempts by force or violence to set at liberty or to rescue any person in the custody of any commissioned or noncommissioned police officer or of an officer of the municipal court either before or after conviction of any offense, shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not more than five hundred dollars or by six months' imprisonment or by both such fine and imprisonment.
(Ord. No. 38-560 § 2)

Sec. 5.64.030. Carrying instruments, etc., into place of confinement.

Every person who conveys or carries into any place of confinement in the city any disguised instruments or any other thing proper or useful to facilitate the escape of any person confined therein, whether such escape is effected or not, shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not more than five hundred dollars or six months' imprisonment, or by both such fine and imprisonment.
(Ord. No. 38-560 § 3)

Sec. 5.64.040. Temporary release of prisoners from confinement; work release programs.

Any person convicted of any provision of this code, having been sentenced to confinement in a place of restraint and is thereafter temporarily released from confinement by any municipal judge of this city to return to said place of confinement to complete the confinement term and who fails, refuses or otherwise does not return to the place of confinement on or before the scheduled time to do so, or who fails to remain within the geographical limits specified in the temporary release shall be deemed an escape from custody as provided in Section 5.64.010 of this chapter.
(Ord. No. 38-560 § 4)

*__Cross reference—__For provisions relating to resisting police, see §5.72.010.

CHAPTER 5.66. PROPERTY*

Sec. 5.66.010. Criminal damage to property.
Sec. 5.66.030. Trespassing upon city property.
Sec. 5.66.040. Dirt or earth—Removing or placing on streets, parks, airport, etc.
Sec. 5.66.045. Damage to drainage structures.
Sec. 5.66.050. Criminal trespass.
Sec. 5.66.055. Interference with the conduct of a lawful business.
Sec. 5.66.060. Prohibited activity in public pools and fountains.
Sec. 5.66.070. Tampering with or turning on fire hydrants.

Sec. 5.66.010. Criminal damage to property.

(a) Criminal damage to property is by means other than by fire or explosive:

(1) Knowingly damaging, mutilating, defacing, destroying, or substantially impairing the use of any property, in which another has an interest without the consent of such other person; or

(2) Damaging, mutilating, defacing, destroying or substantially impairing the use of any property, with intent to injure or defraud an insurer or lienholder.

(b) Criminal damage to property is a misdemeanor if the property damaged is of a value of less than $1,000.00, or is of the value of $1,000.00 or more and is damaged to the extent of less than $1,000.00.

(c) *Penalty.* Any person who is convicted of criminal damage to property shall be deemed guilty of a misdemeanor and shall be punished by a fine not to exceed $2,500.00, or by imprisonment for not more than one year, or by both such fine and imprisonment.
(Ord. No. 40-727 § 1; Ord. No. 47-040, § 1, 6-6-06; Ord. No. 49-256, § 26, 5-8-2012)

Sec. 5.66.030. Trespassing upon city property.

Any person who shall trespass upon any real property belonging to the city or who shall cut down, injure, destroy or carry away any tree placed or growing thereon or any timber being or growing on such land, or who shall dig, cut or carry away any grass, roots, fruits or plants or who shall cut down or carry away any grass, grain or corn or injure any building standing thereon or shall injure or damage any fences located thereon, is guilty of a misdemeanor and upon conviction shall be punished by a fine of not more than one thousand dollars or by imprisonment which shall not exceed six months or by both such fine and imprisonment.
(Ord. No. 11-592 § 12; Ord. No. 47-086, § 1, 7-25-06)

Sec. 5.66.040. Dirt or earth—Removing or placing on streets, parks, airport, etc.

It is unlawful for any person to remove any dirt or earth from or place any dirt or earth on any of the streets, alleys or other public grounds, including the public parks of the city and the airport, without first having obtained a permit from the director of public works or from the board of park commissioners; provided, that this section shall not apply to regular employees of the city working under the direction of the director of public works, the board of park commissioners or other proper city authority; provided further, that this section shall not apply to persons who are under contract with the city for the paving or grading, or repaving or regrading, of any street or alley or the construction of any sewer or other public work for the city.
(Ord. No. 3196 § 1)

Sec. 5.66.045. Damage to drainage structures.

It is unlawful for an owner or any other person to cut, breach, level, remove or in any other manner damage, modify or render ineffective any dike, levy or other drainage system placed in, on or under any real property now within or in the future added to the corporate limits of the city as a condition for approval of a plat, zoning, building permit, capital improvement or otherwise. Any person violating this section shall be deemed guilty of a misdemeanor.
(Ord. No. 35-605)

*__Cross reference—__For provisions relating to public property generally, see Title 9. For provisions relating to stolen property, see Chapter 5.42.

Sec. 5.66.050. Criminal trespass.

Criminal trespass is entering or remaining upon or in any land, structure, vehicle, aircraft or watercraft by a person who knows he/she is not authorized or privileged to do so, and:

(a) Such person enters or remains therein in defiance of an order not to enter or to leave such premises on property personally communicated to such person by the owner thereof or other authorized person; or

(b) Such premises or property are posted in a manner reasonably likely to come to the attention of intruders, or are locked or fenced or otherwise enclosed, or shut or secured against passage or entries; or

(c) Such person enters or remains therein in defiance of a restraining order issued pursuant to K.S.A. 60-1607, 60-3105, 60-3106, 60-3107, and any amendments to said statutory sections, and the restraining order has been personally served upon the person so restrained.

(d) Entering or remaining upon or in any public or private land or structure in a manner that interferes with access to or from any health care facility by a person who knows such person is not authorized or privileged to do so and such person enters or remains thereon or therein in defiance of an order not to enter or to leave such land or structure personally communicated to such person by the owner.

(1) As used in this section:

(A) 'Health care facility'" means any licensed medical care facility, certificated health maintenance organization, licensed mental health center, or mental health clinic, licensed psychiatric hospital or other facility or office where services of a health care provider are provided directly to patients.

(B) 'Health care provider' means any person: (1) Licensed to practice a branch of the healing arts; (2) licensed to practice psychology; (3) licensed to practice professional or practical nursing; (4) licensed to practice dentistry; (5) licensed to practice optometry; (6) licensed to practice pharmacy; (7) registered to practice podiatry; (8) licensed as a social worker; or (9) registered to practice physical therapy.

(e) Any person who commits a criminal trespass within the corporate limits of the city of Wichita shall be deemed guilty of a misdemeanor and upon conviction thereof shall be pushed by a fine of not more than $1,000.00 or imprisonment which shall not exceed six months, or by both such fine and imprisonment.

(f) Upon conviction of subsection (c) of this section, a person shall be sentenced to not less than 48 consecutive hours of imprisonment which must be served either before or as a condition of any grant of probation, suspension or reduction of sentence. Such imprisonment may be served in work release or house arrest.

(Ord. No. 45-356 § 1; Ord. No. 43-157 § 1; Ord. No. 49-256, § 27, 5-8-2012)

Sec. 5.66.055. Interference with the conduct of a lawful business.

(a) Interference with the conduct of a lawful business is:

(1) Conduct at or in any building owned, operated or controlled by a private individual or corporation that knowingly causes an obstruction to or interference with the free and uninterrupted use of such property as a lawful business by any employee, patron, patient or other invitee on such premises, or which prevents the free and uninterrupted ingress, egress or regress therein, thereon or thereto;

(2) Knowingly refusing or failing to leave any such building owned, operated or controlled by a private individual or corpora-

tion upon being requested to do so by the owner thereof, any law enforcement officer or other authorized individual.

(b) Any person who violates any of the provisions of this chapter within the corporate limits of the city shall be deemed guilty of a misdemeanor and upon conviction hereof shall be punished by the following fines:

(1) Upon a first conviction, not more than $2,500.00:

(2) Upon a second conviction, not less than $250.00 nor more than $2,500.00;

(3) Upon a third conviction, not less than $500.00 nor more than $2,500.00;

(4) Upon a fourth conviction, not less than $750.00 nor more than $2,500.00;

(5) Upon a fifth conviction, not less than $1,000.00; nor more than $2,500.00;

(6) Upon a sixth conviction, not less than $1,250.00 nor more than $2,500.00;

(7) Upon a seventh conviction, not less than $1,500.00 nor more than $2,500.00;

(8) Upon a eighth conviction, not less than $1,750.00 nor more than $2,500.00;

(9) Upon a ninth conviction, not less than $2,000.00 nor more than $2,500.00;

(10) Upon a tenth conviction, not less than $2,250.00 nor more than $2,500.00;

(11) And upon an eleventh or subsequent conviction, not less than $2,500.00.

In addition to the preceding fines such person may be punished by a term of imprisonment which shall not exceed six months, or by both such fines and imprisonment.

(c) The imposition of the fines established in subparagraphs (b)(2) through (11) herein shall be mandatory and the court shall not waive, remit, suspend, parole or otherwise excuse the payment thereof except that the court may order that the defendant perform community service specified by the court but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by Section 1.04.210(e) and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed herein.

(d) For the purposes of determining whether a conviction is a first or subsequent conviction in sentencing under this section, conviction includes being convicted of a violation of this section, and it is irrelevant whether an offense occurred before or after conviction for a previous offense.
(Ord. No. 41-574 § 1; Ord. No. 49-256, § 28, 5-8-2012)

Sec. 5.66.060. Prohibited activity in public pools and fountains.

Swimming, bathing or in any manner immersing one's body or any part thereof, or washing, immersing or setting any clothing, wearing apparel or other material of any type, or in any manner throwing, placing or disposing of any matter in any public decorative fountain or pool, except a city employee in the execution of his duties, is prohibited. Any person who, after being advised of such prohibition by properly posted sign or a law enforcement officer or other authorized representative of the city, refuses to desist in such activity is guilty of a misdemeanor. The violation of this section shall constitute a trespass on public property. This section shall not pertain to pools or fountains under the regulation and control of the board of park commissioners.
(Ord. No. 33-420)

Sec. 5.66.070. Tampering with or turning on fire hydrants.

Any person within the corporate limits of the city who tampers with any fireplugs, turns on fire hydrants or attempts to turn on fire hydrants, except for authorized members of the fire department or persons authorized by the fire chief shall be deemed guilty of a misdemeanor.
(Ord. No. 39-513 § 1)

CHAPTER 5.68. SEX TRAFFICKING, OBSCENITY AND MORALS OFFENSES

Sec. 5.68.010. The sale of sexual relations.
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Sec. 5.68.010. The sale of sexual relations.

(1) The sale of sexual relations is performing for hire, or offering or agreeing to perform for hire where there is an exchange of value, any of the following acts:

(a) Sexual intercourse;

(b) Sodomy; or

(c) Manual or other bodily contact stimulation of the genitals of any person with the intent to arouse or gratify the sexual desires of the offender or another.

(2) Any person who shall commit or offer or agree to commit an act of selling sexual relations shall be guilty of a misdemeanor and upon conviction under this section, shall be punished by a fine of not more than one thousand dollars or six months imprisonment or by both such fine and imprisonment.

(3) It shall be an affirmative defense to any prosecution under this section that the defendant committed the violation of this section because such defendant was subjected to human trafficking or aggravated human trafficking, as defined by K.S.A. 21-5426, and amendments thereto, or commercial sexual exploitation of a child, as defined by section 4 of Senate Substitute for House Bill No. 2034 (2013) and amendments thereto.

(Ord. No. 41-487 § 1; Ord. No. 49-552, § 2, 8-13-2013)

Sec. 5.68.020. Buying sexual relations.

Any person who knowingly buys sexual relations is guilty of a misdemeanor. For purposes of this chapter, "buying sexual relations" shall mean:

(a) Entering or remaining in a place where sexual relations are being sold or offered for sale with intent to engage in manual or other bodily contact stimulation of the genitals of any person with the intent to arouse or gratify the sexual desires of the offender or another, sexual intercourse, sodomy or any unlawful sexual acts with a person selling sexual relations who is 18 years of age or older; or

(b) Hiring a person selling sexual relations who is 18 years of age or older to engage in manual or other bodily contact stimulation of the genitals of any person with the intent to arouse or gratify the sexual desires of the offender or another, sexual intercourse, sodomy or any unlawful sexual act;

(c) Every person convicted under this section (5.68.020), shall be punished by a fine of not more than $2,500 or twelve months imprisonment or both such fine and imprisonment.

(d) In addition to any other sentence imposed, a person convicted under this section shall be fined $2,500. Pursuant to K.S.A.

12-4120 and amendments thereto, the Clerk of the Municipal Court shall remit $2,500 of any fine imposed and collected to the state treasurer.

(e) The court, in addition to any other sentence imposed, for any conviction under this section, may order the person convicted to enter into and complete a suitable educational and treatment program regarding commercial sexual exploitation.

(Ord. No. 41-486 § 1; Ord. No. 49-256, § 29, 5-8-2012; Ord. No. 49-552, § 3, 8-13-2013)

Sec. 5.68.030. Reserved.

Editor's note—Ord. No. 49-552, § 8, adopted Aug. 13, 2013, repealed § 5.68.030, which pertained to promoting prostitution and derived from Ord. No. 41-485, § 1; Ord. No. 49-256, § 30, adopted May 8, 2012.

Sec. 5.68.110. Soliciting for immoral purposes.

(a) It is unlawful to solicit any person upon the streets or in public places within the corporate limits of the city, to engage in an act of selling sexual relations.

(b) For the purposes of this section, the following terms shall have the meanings respectively ascribed to them:

(1) "Public place" is any place to which the general public has access and a right to resort for business, entertainment or other lawful purpose, but does not necessarily mean a place devoted solely to the uses of the public. Such term also includes the front or immediate area of any store, shop, restaurant, tavern or other place of business and all public grounds, areas and parks.

(2) "Selling sexual relations" is defined in 5.68.010.

(3) "Solicit" is an offer to buy or sell.

(c) Any person violating the provisions of this section (5.68.110) shall be deemed guilty of a misdemeanor, and any person convicted thereof shall be punished by a fine of not more than five hundred dollars or six months imprisonment or both such fine and imprisonment.

(Ord. No. 41-484 § 1; Ord. No. 49-256, § 31, 5-8-2012; Ord. No. 49-552, § 4, 8-13-2013)

Sec. 5.68.120. Adultery.

Adultery is sexual intercourse or sodomy by a person with another who is not his spouse if (a) such person is married; or (b) such person is not married and knows that the other involved in such intercourse is married. any person who shall be deemed guilty of adultery shall be guilty of a misdemeanor, and any person convicted thereof shall be punished by a fine not to exceed $500.00 and/or imprisonment of 30 days or both such fine and/or imprisonment.

(Ord. No. 32-934 (part); Ord. No. 11-592 § 29; Ord. No. 49-256, § 32, 5-8-2012)

Sec. 5.68.140. Lewd and lascivious behavior.

Lewd and lascivious behavior is:

(a) Publicly engaging in otherwise lawful sexual intercourse or sodomy with any person or animal with knowledge or reasonable anticipation that the participants are being viewed by others who are 16 or more years of age; or

(b) Publicly exposing a sex organ or exposing a sex organ in the presence of a person who is 16 or more years of age, is not the spouse of the offender and who has not consented thereto, with intent to arouse or gratify the sexual desires of the offender or another.

Any person committing lewd and lascivious behavior shall be deemed guilty of a misdemeanor, and any person convicted thereof shall be punished by a fine of not more than $500.00 or six months; imprisonment, or both such fine and imprisonment.

(Ord. No. 44-316 § 1; Ord. No. 47-087, § 1, 7-25-06; Ord. No. 49-256, § 33, 5-8-2012)

Sec. 5.68.150. Promoting obscenity unlawful—Definitions—Evidence—Defense to prosecution—Exceptions—Penalty.*

(a) It is declared to be unlawful to promote obscenity or to promote obscenity to minors. Promoting obscenity is recklessly:

(1) Manufacturing, selling, giving, providing, lending, mailing, delivering, transmitting, publishing, distributing, circulating, disseminating, presenting, exhibiting or advertising any obscene material or obscene device; or

(2) Possessing any obscene material or obscene device with intent to sell, give, provide, lend, mail, deliver, transfer, transmit, publish, distribute, circulate, disseminate, present, exhibit or advertise such material or obscene device; or

(3) Offering or agreeing to manufacture, issue, sell, give, provide, lend, mail, deliver, transfer, transmit, publish, distribute, circulate, disseminate, present, exhibit or advertise any obscene material; or

(4) Producing, presenting or directing an obscene performance or participating in a portion thereof which is obscene or which contributes to its obscenity.

(b) Evidence that materials or devices were promoted to emphasize their prurient appeal or sexual provocative aspect shall be relevant in determining the question of the obscenity of such materials or devices. There shall be a presumption that a person promoting obscene materials or obscene devices did so recklessly if:

(1) The materials or devices were promoted to emphasize their prurient appeal; or

(2) The person is not a wholesaler and promotes the materials or devices in the course of the person's business.

(c) (1) Any material or performance is "obscene" if:

a. The average person applying contemporary community standards would find that the material or performance, taken as a whole, appeals to the prurient interest;

b. The average person applying contemporary community standards would find that the material or performance has patently offensive representations or descriptions of (A) ultimate sexual acts, normal or perverted, actual or simulated, including sexual intercourse or sodomy, or (B) masturbation, excretory functions, sadomasochistic abuse or lewd exhibition of the genitals; and

c. Taken as a whole, a reasonable person would find that the material, or performance, lacks serious literary, educational, artistic, political or scientific value.

(2) 'Material' means any tangible thing which is capable of being used or adopted to arouse interest, whether through the medium of reading, observation, sound or other manner.

(3) 'Obscene device' means a device, including a dildo or artificial vagina, designed or marketed as useful primarily for the stimulation of human genital organs, except such devices disseminated or promoted for the purpose of medical or psychological therapy.

(4) 'Performance' means any play, motion picture, dance or other exhibition performed before an audience.

(5) 'Sexual intercourse' and 'sodomy' have the meanings provided by K.S.A. 21-5501 and amendments thereto.

(6) 'Wholesaler' means a person who sells, distributes or offers for sale or distribution obscene materials only for resale and not to the consumer and who does not manufacture, publish or produce such materials or devices.

(d) It is a defense to a prosecution for obscenity that:

(1) The persons to whom the allegedly obscene material or obscene device was dis-

*__Cross reference—__For provisions relating to obscene advertising, see § 5.04.010.

seminated, or the audience to an allegedly obscene performance, consisted of persons or institutions having scientific, educational or governmental justification for possessing or viewing the same.

(2) The defendant is an officer, director, trustee or employee of a public library and the allegedly obscene material was acquired by such library and was disseminated in accordance with regular library policies approved by its governing body; or

(3) The allegedly obscene material or obscene device was purchased, leased or otherwise acquired by a public, private or parochial school, college or university, and that such material was either sold, leased, distributed or disseminated by a teacher, instructor, professor or other faculty member or administrator of such school as part of or incident to an approved course or program of instruction at such school.

(e) The provisions of this section which prescribe a criminal penalty for exhibit of any obscene motion picture shown in a commercial showing to the general public shall not apply to a projectionist, or assistant projectionist, if such projectionist or assistant projectionist has no financial interest in the show or in its place of presentation other than regular employment as a projectionist or assistant projectionist and no personal knowledge of the contents of the motion picture. The provisions of this section shall not exempt any projectionist or assistant projectionist from criminal liability for any act unrelated to projection of motion pictures in commercial showings to the general public.

(f) Promoting obscenity is declared to be a misdemeanor punishable upon conviction by a fine of not more than $2,500.00, or by imprisonment in the city jail for a period of not exceeding one year, or both such fine and imprisonment.

(g) Upon any conviction for promoting obscenity, the court may require, in addition to any fine or imprisonment imposed, that the defendant enter into a reasonable recognizance with good and sufficient surety, in such sum as the court may direct, but not to exceed $50,000.00, conditioned to the effect that in the event the defendant is convicted of a subsequent offense of promoting obscenity within two years after such conviction, he shall forfeit the recognizance.
(Ord. No. 40-391 § 1; Ord. No. 49-256, § 34, 5-8-2012)

Sec. 5.68.155. Promoting obscenity to minors—Defined—Defense to prosecution—Penalty.

(a) Promoting obscenity to minors is promoting obscenity where the recipient of the obscene material, device, or a member of the audience of an obscene performance is a child under the age of 18 years. Any material, device or performance is 'obscene' if the average person applying contemporary community standards would find that such material or performance, taken as a whole, appeals to the prurient interest; that the material, device or performance has patently offensive representations or descriptions of ultimate sexual acts, normal or perverted, and that the material, device or performance, taken as a whole, lacks serious literary, educational, artistic, political or scientific value.

(b) Notwithstanding the provisions of K.S.A. 21-5204, to the contrary, it shall be an affirmative defense to any prosecution under this section that:

(1) The defendant had reasonable cause to believe that the minor involved was 18 years old or over, and such minor exhibited to the defendant a draft card, driver's license, birth certificate or other official or apparently official document purporting to establish that such minor was 18 years old or more; or

(2) An exhibition in a state of nudity is for a bona fide scientific or medical purpose or for an educational or cultural purpose for a bona fide school, museum or library.

(c) Promoting obscenity to minors is a misdemeanor, punishable upon conviction by a fine of not more than $2,500.00, or by imprisonment in the city jail for a period of not exceeding one year, or both such fine and imprisonment.

(d) Upon any conviction for promoting obscenity to minors, the court may require, in addition to any fine or imprisonment imposed, that the defendant enter into a reasonable recognizance with good and sufficient surety, in such sum as the court may direct, but not to exceed $50,000.00, conditioned to the effect that in the event the defendant is convicted of a subsequent offense of promoting obscenity to minors within two years after such conviction, he shall forfeit the recognizance.
(Ord. 36-172 § 2; Ord. No. 49-256, § 35, 5-8-2012)

Sec. 5.68.156. Displaying material harmful to minors.

(a) *Definitions.*

(1) 'Blinder Rack' means a device in which material is displayed in a manner that the lower two-thirds of the material is not exposed to view;

(2) 'Harmful to minors' means that quality of any description, exhibition, presentation or representation, in whatever form, of nudity, sexual conduct, sexual excitement or sadomasochistic abuse when the material or performance, taken as a whole or with respect to a prosecution for an act described by subsection (2)(a) of this section, that portion of the material that was actually exposed to the view of minors, has the following characteristics:

a. The average adult person applying contemporary community standards would find that the material, device or performance has a predominant tendency to appeal to a prurient interest in sex to minors; and

b. The average adult person applying contemporary community standards would find that the material, device or performance depicts or describes nudity, sexual conduct, sexual excitement or sadomasochistic abuse in a manner that is patently offensive to prevailing standards in the adult community with respect to what is suitable for minors; and

c. A reasonable person would find that the material, device or performance lacks serious literary, scientific, educational, artistic or political value for minors.

(3) 'Material' means any book, magazine, newspaper, pamphlet, poster, print, picture, figure, image, description, motion picture film, record, or recording tape, video tape.

(4) 'Minor' means any unmarried person under the age of 18 years.

(5) 'Nudity' means the showing of the human male or female genitals, pubic area, or buttocks with less than a full opaque covering; the showing of the female breast with less than a full opaque covering of any portion thereof below the top of the nipple; or the depiction of covered male genitals in a discernible state of sexual excitement;

(6) 'Performance' means any motion picture, film, video tape, played record, phonograph, or tape recording, preview, trailer, play, show, skit, dance or other exhibition performed or presented to or before an audience of one or more, with or without consideration.

(7) 'Person' means any individual, partnership, association, corporation, or other legal entity of any kind.

(8) A 'reasonable bona fide attempt' means an attempt to ascertain the true age of the minor by requiring production of a driver's license, marriage license, birth certificate or other governmental or educational identification card or paper and not relying solely on the oral allegations or apparent age of the minor.

(9) 'Sadomasochistic abuse' means flagellation or torture by or upon a person clad in undergarments, mask or bizarre costume, or in the condition of being fettered, bound or otherwise physically restrained on the part of one so clothed.

(10) 'Sexual conduct' means acts of masturbation, homosexuality, sexual intercourse or

physical contact with a person's clothed or unclothed genitals, pubic area, buttocks, or, a female's, breast.

(11) 'Sexual excitement' means the condition of human male or female genitals when in a state of sexual stimulation or arousal.

(b) *Offenses.* No person having custody, control or supervision of any commercial establishment shall knowingly:

(1) Display any material which is harmful to minors in such a way that minors, as a part of the invited general public, will be exposed to view such material or device; provided, however, a person shall be deemed not to have "displayed" material harmful to minors if the material is kept behind devices commonly known as "blinder racks" so that the lower two-thirds of the material is not exposed to view;

(2) Sell, furnish, present, distribute, allow to view, or otherwise disseminate to a minor, with or without consideration, any material or device which is harmful to minors; or

(3) Present to a minor or participate in presenting to a minor, with or without consideration, any performance which is harmful to a minor.

(c) *Defenses.* It shall be an affirmative defense to any prosecution under this section that:

(1) The allegedly harmful material or device was purchased, leased or otherwise acquired by a public, private or parochial school, college or university, and that such material was either sold, leased, distributed or disseminated by a teacher, instructor, professor or other faculty member or administrator of such school as part of or incidental to an approved course or program of instruction at such school.

(2) The defendant is an officer, director, trustee or employee of a public library and the allegedly harmful material or device was acquired by a public library and was disseminated in accordance with regular library policies approved by its governing body.

(3) An exhibition in a state of nudity is for a bona fide scientific or medical purpose, or for an educational or cultural purpose for a bona fide school, museum or library.

(4) With respect to a prosecution for an act described by subsection (b)(1) of this section, the allegedly harmful material was kept behind blinder racks.

(5) With respect to a prosecution for an act described by subsection (b)(1) or (b)(2) of this section, the defendant had reasonable cause to believe that the minor involved was 18 years old or over, and such minor exhibited to the defendant a draft card, driver's license, birth certificate or other official or apparently official document purporting to establish that such minor was 18 years old or more.

(6) With respect to a prosecution for an act described by subsection (b)(3) of this section, the allegedly harmful performance was viewed by the minor in the presence of such minor's parent or parents or such minor's legal guardian.

(d) The provisions of section 5.68.156 shall not apply to a retail sales clerk, if such clerk has no financial interest in the materials or performance or in the commercial establishment displaying or selling, furnishing, presenting such performance other than regular employment as a retail sales clerk. The provisions of this section shall not exempt any retail sales clerk from criminal liability for any act unrelated to regular employment as a retail sales clerk.

(e) If any provision or clause of this Section 5.68.156 or application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the section act which can be given effect without the invalid provision or application, and to this end the provisions of this act are declared to be severable.

(f) *Penalties.* Any person who shall be convicted of violating any provision of this section is guilty of a misdemeanor and shall be fined a sum not exceeding $1,000.00 and may be confined in jail for a definite term which shall be fixed by the court and shall not exceed six months. Each day that any violation of this section occurs or continues shall constitute a separate offense and shall be punishable as a separate violation. Every act, thing or transaction prohibited by this section shall constitute a separate offense as to each item, issue or title involved and shall be punishable as such. For the purpose of this section, multiple copies of the same identical title, monthly issue, volume and number issue or other such identical material shall constitute a single offense.
(Ord. No. 40-391 § 2; Ord. No. 49-256, § 36, 5-8-12)

Sec. 5.68.160. Urinating upon public or private property prohibited.

Any person within the corporate limits of the City of Wichita who urinates upon any highway, street, alley or upon the premises of any public place or building or upon private property, in open view of any person, when the same has not been designated or designed as a rest room, shall be guilty of a misdemeanor.
(Ord. No. 35-101)

Sec. 5.68.165. Defecating upon public or private property prohibited.

(a) It shall be unlawful for any person within the corporate limits of the City of Wichita to defecate upon any highway, street, alley or upon the premises of any public place or building, or upon private property in open view of any person when the same has not been designated or designed as a rest room.

(b) Any person who is convicted of a violation of this section shall be deemed guilty of a misdemeanor and shall be punished by a fine not to exceed $500.00, or by imprisonment for not more than 30 days, or by both such fine and imprisonment. Provided, however, that if it be shown to the Court that the person convicted is indigent, the Court may, in its discretion, order that such person, in lieu of the payment of any fine imposed herein and/or court costs mandated by Chapter 1.04 of this Code for a violation of this section, be allowed to perform public service to satisfy the payment of such fine and/or costs. The Court shall make a finding of indigency and shall note the same upon the court disposition sheet resulting from the violation, along with the number of public service hours to be performed by such person, which shall be determined by the Court and shall be at least ten hours and not to exceed 40 hours.
(Ord. No. 49-516, § 1, 6-18-13)

Sec. 5.68.170. Reserved.

Editor's note—Ord. No. 49-552, § 8, adopted Aug. 13, 2013, repealed § 5.68.170, which pertained to sodomy for hire and derived from Ord. No. 37-195 (part); Ord. No. 49-256, § 37, adopted May 8, 2012.

Sec. 5.68.180. Reserved.

Editor's note—Ord. No. 49-552, § 8, adopted Aug. 13, 2013, repealed § 5.68.180, which pertained to patronizing a person offering sodomy for hire and derived from Ord. No. 37-195 (part); Ord. No. 49-256, § 38, 5-8-2012.

Sec. 5.68.190. Reserved.

Editor's note—Ord. No. 49-552, § 8, adopted Aug. 13, 2013, repealed § 5.68.190, which pertained to promoting sodomy for hire and derived from Ord. No. 37-195 (part); Ord. No. 49-256, § 39, adopted May 8, 2012.

Sec. 5.68.200. Sodomy.

(a) Any person who commits sodomy with an animal, is guilty of a misdemeanor.

(b) Every person convicted under this section shall be punished by a fine of not more than $500.00, or by confinement for a period of six months, or by both such fine and imprisonment.
(Ord. No. 37-859; Ord. No. 47-087, § 2, 7-25-06; Ord. No. 49-256, § 40, 5-8-12; Ord. No. 51-894, § 1, 6-28-22)

Sec. 5.68.210. Loitering for the purpose of soliciting.

(a) It shall be unlawful for any person to loiter in or near any thoroughfare, or any other public place, in a manner and under circumstances manifesting the purpose of inducing, enticing,

soliciting or procuring another to commit an act in violation of any of the following sections of this Code: sections 5.68.010 (the sale of sexual relations), 5.68.020 (buying sexual relations), 5.68.110 (soliciting for immoral purposes). Among the circumstances which may be considered in determining whether such purpose is manifested are: that such person repeatedly stops or attempts to stop motor vehicle operators or pedestrians by hailing, waving of arms or any bodily gesture, or is a known seller or buyer of sexual relations. No arrest shall be made or notices to appear issued for a violation of this subsection unless the arresting officer first affords such person an opportunity to explain such conduct, and no one shall be convicted of violating this subsection if it appears at trial that the explanation given was true and disclosed a lawful purpose.

(b) For purposes of this section, "any public place" shall mean any place to which the general public has access and a right to resort for business, entertainment or other lawful purpose, but does not necessarily mean a place devoted solely to the uses of the public. It also includes the front or immediate area of any store, shop, restaurant, tavern or other place of business, and all public grounds, areas or parks.

(c) For purposes of this section, the term "loitering" means remaining idle in essentially one location and includes the concept of spending time idly; to be dilatory; to linger, to stay; to saunter; to delay; to stand around; and shall also include the colloquial expression "hanging around."

(d) For purposes of this section, the term "known seller or buyer of sexual relations" means a person who within two years previous to the date of arrest or issuing of a notice to appear for violation of this section has, within the knowledge of the arresting officer, been convicted of violating any statutes of the State of Kansas or any other state or ordinances of the City of Wichita, Kansas, or of any other city defining and punishing acts of soliciting, committing or offering or agreeing to commit the sale of sexual relations, buying sexual relations, or soliciting for immoral purposes.

(e) Any person who violates the provisions of this section shall be guilty of a misdemeanor and upon conviction thereof, shall be punished by a fine of not more than five hundred dollars or six months' imprisonment or both such fine and imprisonment.
(Ord. No. 42-637; Ord. No. 49-552, § 5, 8-13-13)

Sec. 5.68.215. Anti sex-trafficking emphasis area—enhanced penalties.

(a) The following described area of the city is designated to be an anti-sex trafficking emphasis area:

(1) An area bounded to the north at Twenty-First Street, on the east by Washington, on the south by Second Street, and on the west by Main Street, which becomes Park Place, which encompasses all areas within those parameters, including the property on both sides of each of the boundary streets.

(2) An area bounded to the north at Waterman, on the east by Washington, on the south by Forty-Seventh Street South, and to the west by Wichita, which encompasses all areas within those parameters, including the property on both sides of each of the boundary streets.

(3) An area bounded to the north by Thirteenth Street, on the east by Hillside, on the south by Second Street, and on the west by Cleveland, which encompasses all areas within those parameters, and including the property on both sides of each of the boundary streets.

(b) Any person who commits an unlawful act of the sale of sexual relations or a sale of sexual relations related act within the area set forth in subsection (a) is guilty of a misdemeanor and upon conviction shall be punished by a fine of not more than two thousand five hundred dollars or one year's imprisonment, or by both such fine and imprisonment. Upon a first conviction of a violation of this section, the court shall impose a fine not less than two hundred dollars nor more than five hundred dollars, and a mandatory jail sentence of not less than five consecutive days

nor more than six months' imprisonment. Upon a second conviction of a violation of this section, the court shall impose a fine of not less than five hundred dollars nor more than one thousand dollars and a mandatory jail sentence of not less than thirty consecutive days nor more than one year's imprisonment. Upon a third or a subsequent conviction of a violation of this section, the court shall impose a fine of not less than one thousand dollars nor more than two thousand five hundred dollars and a mandatory jail sentence of not less than ninety consecutive days nor more than one year's imprisonment. No person shall be eligible for probation or parole until serving the entire minimum sentence.

(c) For the purposes of this section, an unlawful act of the sale of sexual relations or a sale of sexual relations related act shall include the following sections of this Code, and any amendments thereto: sections 5.68.010 (the sale of sexual relations), 5.68.020 (buying sexual relations), 5.68.110 (soliciting for immoral purposes) or 5.68.210 (loitering for the purpose of solicitation). Prior convictions for promoting prostitution, prostitution, sodomy for hire, patronizing a person offering sodomy for hire, promoting sodomy for hire, patronizing a prostitute and sodomy shall be considered as unlawful acts of selling or buying sexual relations for the purposes of this section.

(d) For the purpose of determining whether a conviction is a first, second, third or subsequent conviction in sentencing under this section, it is irrelevant whether an offense occurred before or after conviction for a previous offense.

(e) The imposition of the fines established in subsection (b) herein shall be mandatory and the court shall not waive, remit, suspend, parole or otherwise excuse the payment thereof except that defendants who are in violation of this section due to their commission of an act in violations of sections 5.68.010 (the sale of sexual relations), 5.68.110 (solicitation for immoral purposes) or shall be eligible to have such fines suspended by their agreement to enter and successfully complete a court-ordered program of treatment and supervision. The court may also order that any defendant perform community service specified by the court but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by section 1.04.210(e) of this Code and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed herein.

(f) If any subsection, clause or provision of this section is for any reason held illegal, invalid or unconstitutional, such action shall not affect the remaining provisions of this section which shall remain valid to the extent possible.
(Ord. No. 42-638; Ord. No. 47-872, § 1, 4-22-08; Ord. No. 49-256, § 42, 5-8-12; Ord. No. 49-552, § 6, 8-13-13)

Sec. 5.68.218. Failure to comply with mapping restrictions.

(a) Whenever a defendant has been placed on diversion, deferred judgment, or released on probation or parole from a conviction of the sale of sexual relations or a sale of a sexual relations related act, the municipal judge may impose mapping restrictions upon such defendant. A mapping restriction prohibits the defendant from being in any area of the city that is mapped by the court. A copy of such mapped area shall be provided to the defendant and shall be entered as a part of the court record and as a condition of the defendant's probation, diversion or deferred judgment.

(b) Any person who has been placed on diversion or deferred judgment released on probation or parole upon a conviction of the sale of sexual relations or a sale of sexual relations related act who has been made subject to mapping restrictions by the court, and who, during the term of such defendant's diversion, deferred judgement or parole knowingly violates or knowingly fails to comply with said mapping restrictions, shall be guilty of a misdemeanor, and upon conviction, shall be punished by a fine not to exceed two thousand five hundred dollars and by imprisonment of not more than one year, or by both such fine and imprisonment.

(c) For the purposes of this section, the sale of sexual relations or a sale of sexual relations related act shall include a violation of the following sections of this Code, and any amendments thereto: 5.68.010 (the sale of sexual relations), 5.68.020 (buying sexual relations), 5.68.110 (soliciting for immoral purposes) or 5.68.210 (loitering for the purpose of solicitation).
(Ord. No. 42-639; Ord. No. 49-552, § 7, 8-13-13; Ord. No. 52-808, § 1, 9-16-25)

Sec. 5.68.220. Sexual battery.

(a) Sexual battery is the touching of a victim who is 16 or more years of age, who does not consent thereto, with the intent to arouse or satisfy the sexual desires of the offender or another.

(b) Any person who violates the provisions of this section shall be guilty of a misdemeanor and upon conviction thereof, shall be punished by a fine of not more than $2,500.00 or 12 months imprisonment or by both such fine and imprisonment.
(Ord. No. 41-809 § 1; Ord. No. 47-087, § 3, 7-25-06; Ord. No. 49-256, § 41, 5-8-12; Ord. No. 51-892, § 1, 6-28-22)

Sec. 5.68.230. Preamble.

Whereas, the City of Wichita has an important governmental interest in protecting order and morality, the city recognizes the societal disapproval of nudity in public places and among strangers, and has the constitutional power to combat this societal evil; and

Whereas, the City of Wichita has an important governmental interest in combating the secondary effects associated with nudity in public places where persons who are present appear nude or engage in sexual activity among strangers, and has the constitutional power to combat these societal evils; and

Whereas, the Supreme Court of the United States has held in *City of Renton v. Playtime Theaters, Inc.,* that the city may rely on relevant studies and evidence from other cities as the basis for its action taken to insure the public order and morality and combat the secondary effects associated with public nudity; and

Whereas, the city has reviewed information from studies and evidence developed for Adams County, CO, and the cities of Dallas, TX; Tucson, AZ; Garden Grove, CA; Oklahoma City, OK; Austin, TX; Indianapolis, IN; Phoenix, AZ; Amarillo, TX; and Los Angeles, CA, and that from these studies it is apparent that increased crime, especially crimes of a sexual nature, increased risk of public exposure to sexually transmitted diseases and other pathogens borne by human blood and bodily fluids, degradation of the aesthetic and commercial character of neighborhoods, depression of property values and degradation of the quality of life for the citizenry are all pernicious secondary effects of public nudity and the sexually oriented businesses which public nudity can encourage; and

Whereas, the Supreme Court of the United States has held in *Barnes v. Glen Theatre, Inc.,* that a governing body may prohibit nudity in public places to combat these societal evils; and

Whereas, the city desires to minimize and control these societal evils and thereby protect the health, safety, welfare and morals of the citizenry; to protect citizens from increased crime; preserve the quality of life; preserve property values, preserve the character of the city's neighborhoods and deter the spread of blight; and

Whereas, it is not the intent of the city to suppress any free expression protected by the First Amendment to the United States Constitution, but to enact a content neutral ordinance which addresses the societal evils of public nudity and its related secondary effects, with only incidental restrictions upon protected expression.

Wherefore, the City of Wichita enacts the ordinance codified in Sections 5.68.230 through 5.68.280 prohibiting nudity in a public place.
(Ord. No. 44-447 § 1)

Sec. 5.68.240. Public nudity prohibited.

(a) Public nudity is any person knowingly and intentionally, in a public place: (1) engaging in actual or simulated sexual intercourse, masturbation, sodomy, or any sex act which is prohibited by law, (2) appearing in a state of nudity; or (3) fondling the genitals of himself, herself, or another

person. It is unlawful for any person to engage in public nudity within the corporate limits of the city.

(b) Definitions.

(1) "Nudity" means the showing, in a public place, of the human male or female genitals, anus, anal cleft or cleavage, or the showing of the female breast below a horizontal line across the top of the areola at its highest point with less than a fully opaque covering. This definition shall include the entire lower portion of the human female breast, but shall not include any portion of the cleavage of the human female breast exhibited by a dress, blouse, shirt, leotard, bathing suit, or other wearing apparel, provided the areola is not exposed in whole or in part. "Nudity" also means the showing, in a public place, of the covered male genitals in a discernibly turgid state.

(2) "Public place" means any location frequented by the public, or where the public is present or likely to be present. Public place includes but is not limited to, streets, sidewalks, parks, and business and commercial establishments (whether for profit or not-for-profit and whether open to the public at large or where entrance is limited by a cover charge or membership requirement).

(Ord. No. 44-447 § 2)

Sec. 5.68.250. Permitting public nudity prohibited.

It is unlawful for any supervisor, manager, property owner, business owner, or employer to knowingly suffer or permit any person to engage in public nudity on premises under their control, or to knowingly suffer or permit any person to remain on such premises after that person has, while on the premises, engaged in public nudity.
(Ord. No. 44-447 § 3)

Sec. 5.68.260. Exceptions.

(a) The provisions of Section 5.68.240(a) of the Code of the City of Wichita shall not apply to any theatrical production that has serious literary, artistic, scientific or political value.

(b) The provisions of Section 5.68.240(a)(2) of the Code of the City of Wichita shall not apply to:

(1) a child under the age of ten years,

(2) a person appearing in a state of nudity modeling in an art class operated by:

(A) a proprietary school licensed by the state;

(B) a college, community college or university supported entirely or primarily by taxation;

(C) an accredited private college or university, or

(D) a non-profit educational or artistic organization:

(i) held within a structure in which no sign or advertising is visible on or from the exterior of the structure that indicates a nude person is available on the premises for viewing;

(ii) where in order to attend a student must enroll at least three days in advance; and

(iii) where no more than one nude model appears in the studio at one time.

(3) A mother breastfeeding her child.

(Ord. No. 44-447 § 4; Ord. No. 47-079, § 1, 7-18-06)

Sec. 5.68.270. Violation—Penalty.

Upon conviction of a violation of Sections 5.68.240 or 5.68.250, a person shall be guilty of a misdemeanor, and shall be punished by a fine of not more than two thousand five hundred dollars or one year of imprisonment, or both such fine and imprisonment.
(Ord. No. 44-447 § 5)

Sec. 5.68.275. Impoundment of vehicles involved in sex trafficking.

a. Purpose of Act.

1. Human trafficking endangers individuals and creates an environment that

prevents community members from enjoying the use of their property within the city.

2. Human trafficking is surrounded by and linked to a number of other crimes such as illegal narcotics, thefts, and crimes against persons.

3. The City of Wichita declares that any vehicle used immediately prior to or during the commission of a violation of Section 5.68.020 of the Code of the City of Wichita is a public nuisance per se, and while in the possession of the offender, the vehicle constitutes a continuing danger to the comfort, repose, health or safety of City residents, visitors, businesses and neighborhoods, rendering them insecure in life and in the use of property. Due to the existence of such public nuisance, the City declares it is necessary to impound the vehicle used by the offender and to hold the vehicle from further use by the offender for the mandatory holding period as provided for below. The purpose of such impoundment and mandatory holding period is to abate the public nuisance declared herein. The procedures for such impoundment are set forth as follows:

b. Impound.

1. If probable cause exists that a person is engaged in a violation of Section 5.68.020, that person shall be arrested for such violation and transported to Sedgwick County Jail. If the offender was driving a vehicle at the time of or immediately preceding the time the violation occurred, the vehicle shall be subject to being impounded. If the offender has no prior convictions for violations of this code or violations of similar offenses in other jurisdictions, the vehicle shall be impounded and eligible for release only after being impounded for a period of 72 hours. The offender and/or registered owner is responsible for all towing and impound fees as required by Section 11.97.030 of the Code of the City of Wichita. As required by state law, the Wichita Police Department shall notify the offender at the time of arrest where the impounded vehicle is being taken by the towing company.

2. If probable cause exists that a person is engaged in a violation of Section 5.68.020, that person shall be arrested for the violation and transported to Sedgwick County Jail. If the offender was driving a vehicle at the time of or immediately preceding the time the violation occurred, and the offender has a prior conviction for violations of this code or violations of similar offenses in other jurisdictions, the vehicle shall be impounded and eligible for release only after being impounded for a period of 20 consecutive days. The offender and/or registered owner is responsible for all towing, storage and impound fees as required by Section 11.97.030. As required by state law, the Wichita Police Department shall notify the offender, at the time of arrest, where the impounded vehicle is being taken by the towing company.

3. If probable cause exists that a person engaged in a violation of Section 5.68.020 of the Code of the City of Wichita, and the vehicle was abandoned or the suspect was not apprehended, the vehicle shall be impounded and eligible for release only after being impounded for a period of 72 hours. The registered owner is responsible for all towing and impound fees as required by Section 11.97.030. The owner will be notified of the impoundment and the location of the vehicle by mail the following business day at the address listed on the vehicle registration.

4. For the purposes of this Section, "similar offense" means a conviction of a violation of an ordinance of a city in this state, a resolution of a county in this state or any law of another jurisdiction that would constitute an offense that is comparable to the offense set forth in Section 5.68.020 of the Code of the City of Wichita.

5. Upon a written request to the Municipal Court, within five business days of the vehicle impound, the offender or the registered owner of the vehicle may contest the impoundment of the vehicle as provided for by this Section. The request shall state the grounds upon which the person requesting the hearing believes the impoundment invalid or unjustified and/or why the impoundment of the vehicle would constitute an undue hardship. A hearing shall be held in accordance with the provisions of Section 11.97.040 of the Code of the City of Wichita. The impound shall be declared lawful if there was probable cause that a violation of the provisions of Section 5.68.020 of the Code of the City of Wichita had occurred. If the Court determines that the impoundment did not comply with the provisions of this Section, the vehicle shall be ordered released immediately. If such a finding is made, all costs for impoundment and storage will be assessed to the City.

   Additionally, the judge, in his or her discretion, may release the vehicle prior to the expiration of the mandatory impound if undue hardship is shown by the offender or registered vehicle owner. If the court finds the offender or registered owner has shown that continued impoundment of the vehicle would constitute an undue hardship, the judge may order the vehicle released. If the vehicle is ordered released, the person retrieving the vehicle shall pay all costs associated with the impound prior to its release.
6. If the owner of the impounded vehicle fails to retrieve the vehicle from impound, the vehicle may be auctioned in accordance with K.S.A. 8-1101, *et seq*.
7. The final disposition of any criminal charge will not invalidate the impoundment of the vehicle or act as a basis for the return of any impound fees.

(Ord. No. 52-239, § 1, 8-8-23)

Sec. 5.68.276. Severability [of Section 5.68.275].

If any section, subsection, or clause of the ordinance codified in Section 5.68.275 shall be deemed to be unconstitutional or otherwise invalid, the validity of the remaining sections, subsections, and clauses shall not be affected.
(Ord. No. 52-239, § 2, 8-8-23)

Sec. 5.68.280. Severability.

If any section, subsection, or clause of the ordinance codified in Sections 5.68.230 through 5.68.280 shall be deemed to be unconstitutional or otherwise invalid, the validity of the remaining sections, subsections, and clauses shall not be affected.
(Ord. No. 44-447 § 6)

CHAPTER 5.69. PROTECTIVE ORDERS

Sec. 5.69.010. Violation of protective orders.

Sec. 5.69.010. Violation of protective orders.

(a) Violation of a protective order is knowingly or intentionally violating:

(1) A protection from abuse order issued pursuant to K.S.A. 60-3105, 60-3106 and 60-3107, and amendments thereto;

(2) An order issued by the city municipal court as a condition of pretrial release, diversion, probation, suspended sentence or post-release supervision, a condition of bond pending disposition of an appeal to district court, or at any other time during the criminal case that orders the person to refrain from having any direct or indirect contact with another person; or

(b) Any person who commits the crime of violation of a protective order shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not more than two thousand five hundred dollars or imprisonment which shall not exceed one year, or by both such fine and imprisonment.
(Ord. No. 43-181 § 1; Ord. No. 50-269 § 1, 7-12-16)

CHAPTER 5.70. PUBLIC RESTROOMS—ILLEGAL CONDUCT

Sec. 5.70.010. Public restrooms—Unlawful conduct—Penalty.
Sec. 5.70.020. Exceptions.

Sec. 5.70.010. Public restrooms—Unlawful conduct—Penalty.

Whenever a public restroom is clearly identified as being for the use of one sex only, and is in a building or facility open to the public, it is unlawful for any person of the opposite sex who is above the age of ten years to enter or remain within such restroom. Anyone violating this section shall be deemed guilty of a misdemeanor.
(Ord. No. 41-122 § 1)

Sec. 5.70.020. Exceptions.

The provisions of Section 5.70.010 shall not apply to persons who are upon the premises of such a restroom for the purpose of

(a) Cleaning;

(b) Making repairs;

(c) Any bona fide emergency involving the health or safety of an individual or the public in general.

(Ord. No. 41-122 § 2)

CHAPTER 5.72. RESISTING POLICE

Sec. 5.72.010. Interference with law enforcement.

Sec. 5.72.010. Interference with law enforcement.*

(a) Interference with law enforcement is falsely reporting to a law enforcement officer or state investigative agency that a crime has been committed, knowing that such information is false and intending that the officer or agency acts in reliance or upon such information; or

(b) Knowingly obstructing, resisting or opposing any person authorized by law to serve process in the service or execution or in the attempt to serve or execute any writ, warrant, process or order of a court, or in the discharge of any official duty.

(c) *Violation—Penalty.* Any person violating any provision of this section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than $2,500.00 and/or an imprisonment of not more than one year and/or both such fine and imprisonment.

(Ord. No. 33-550; Ord. No. 47-088, § 1, 7-25-06; Ord. No. 49-256, § 43, 5-8-2012)

***Cross reference—**As to false reports to police, see § 5.32.010. As to aiding prisoner to escape, see §§ 5.64.020, 5.64.030.

CHAPTER 5.73. RIOTING

Sec. 5.73.010. Curfew proclaimed—Closing businesses.
Sec. 5.73.020. Closing streets.
Sec. 5.73.030. Unlawful assembly.
Sec. 5.73.040. Remaining at an unlawful assembly.
Sec. 5.73.050. Rioting.

Sec. 5.73.010. Curfew proclaimed—Closing businesses.

Whenever riots, general disobedience or the threat of same occur in the city, and it is deemed necessary in order to suppress the riot or act of civil disobedience, the mayor or commissioner acting for the mayor shall have the power to do the following:

(1) To declare hours of curfew for all persons, and, during the hours of curfew, all persons shall be at their homes and shall not be on the streets, alleys or other public areas of the city. The curfew shall be declared in a proclamation of the mayor, which proclamation shall be delivered to the chief of police, who shall then see that the proclamation is delivered to all news media within the city. He shall also use public address systems throughout the city and immediately notify the public of the proclamation and curfew and warn the public that any violation of the curfew shall be deemed a misdemeanor and violators will be arrested.

(2) To declare all or any business establishments to be closed and remain closed until further order. Any person violating any of the above provisions after notice, and refusing to close and remain closed shall be deemed guilty of a misdemeanor. The mayor shall issue a proclamation which shall be delivered to the chief of police, who shall inform businesses of the proclamation.

(Ord. No. 29-423 § 1)

Sec. 5.73.020. Closing streets.

The chief of police shall have authority to temporarily close any and all streets, alleys and other public ways in the city to the public whenever, in his opinion, it is necessary in order to maintain the peace of the community.

(Ord. No. 29-423 § 2)

Sec. 5.73.030. Unlawful assembly.

(1) Unlawful assembly is the meeting or coming together of not less than five persons for the purpose of engaging in conduct constituting either disorderly conduct as defined by Section 5.24.010 of this Code and amendments thereto, or a riot, as defined by Section 5.73.050 of this Code and amendments thereto; or when in a lawful assembly of not less than five persons, agreeing to engage in such conduct.

(2) Any person who violates any of the provisions of this section is guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed five hundred dollars or by imprisonment for not more than six months or by both such fine and imprisonment.

(Ord. No. 41-575 § 1)

Sec. 5.73.040. Remaining at an unlawful assembly.

(1) Remaining at an unlawful assembly is wilfully failing to depart from the place of any riot or an unlawful assembly after being directed to leave by a law enforcement officer or other lawful authority.

(2) Any person who violates the provisions of this section within the corporate limits of the city is guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed five hundred dollars or by imprisonment for not more than one year or by both such fine and imprisonment.

(Ord. No. 41-575 § 2)

Sec. 5.73.050. Rioting.

(a) Riot is:

(1) Five or more persons acting together without lawful authority engaging in any use of force or violence which produces a breach of the public peace, or

(2) Any threat to use such force or violence against any person or property if accompanied by power or apparent power of immediate execution.

(b) Any person who violates the provisions of this section within the corporate limits of the city is guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed $2,500.00 or by imprisonment for not more than one year or by both such fine and imprisonment. (Ord. No. 41-575 § 3; Ord. No. 49-256, § 44, 5-8-2012)

CHAPTER 5.74. SOLICITING SALES

Sec. 5.74.010. Soliciting subscriptions to magazines, etc., and tangible personal property—Prohibited on streets, parks.

Sec. 5.74.010. Soliciting subscriptions to magazines, etc., and tangible personal property—Prohibited on streets, parks.

It is unlawful for any person to solicit on any public street or sidewalk, park or other public place or at any doorway or entrance way immediately abutting thereon, within the corporate limits of the city, the sale of any subscription to any magazine, periodical or other publication, newspapers excepted, or the sale of any tangible personal property, for delivery at a subsequent time. (Ord. No. 14-319 § 1)

CHAPTER 5.75. PUBLIC BUILDINGS

Sec. 5.75.010. Interference with conduct of public business—Defined.
Sec. 5.75.020. Interference with conduct of public business—Misdemeanor.

Sec. 5.75.010. Interference with conduct of public business—Defined.

Interference with the conduct of public business in public buildings is:

(a) Conduct at or in any public building owned, operated or controlled by the city or any of its political subdivisions so as to knowingly deny to any public official, public employee, or any invitee on such premises, the lawful rights of such official, employee, or invitee to enter, to use the facilities, or to leave, any such public building; or

(b) Knowingly impeding any public official or employee in the lawful performance of duties or activities through the use of restraint, abduction, coercion, or intimidation or by force and violence or threat thereof; or

(c) Knowingly refusing or failing to leave any such public building upon being requested to do so by the chief administrative officer, or his designee, charged with maintaining order in such public building, if such person is committing, threatens to commit, or incites others to commit, any act which did or would if completed, disrupt, impair, interfere with, or obstruct the lawful missions, processes, procedures or functions being carried on in such public building; or

(d) Knowingly impeding, disrupting or hindering the normal proceedings of any meeting or session conducted by any judicial or legislative body or official at any public building by any act of intrusion into the chamber or other areas designated for the use of the body, or official conducting such meeting or session, or by any act designed to intimidate, coerce or hinder any member of such body, or any official engaged in the performance of duties at such meeting or session; or

(e) Knowingly impeding, disrupting or hindering, by any act of intrusion into the chamber or other areas designed for the use of any executive body or official, the normal proceedings of such body or official.

(Ord. No. 31-886 § 1 (part); Ord. No. 49-256, § 45, 5-8-2012)

Sec. 5.75.020. Interference with conduct of public business—Misdemeanor.

Interference with the conduct of public business in public buildings is a misdemeanor.

Upon conviction such person shall be punished by a fine not to exceed $2,500.00 or one year imprisonment or both such fine and imprisonment.

(Ord. No. 31-886 § 1 (part); Ord. No. 49-256, § 46, 5-8-2012)

CHAPTER 5.78. SWIMMING AND BATHING

Sec. 5.78.020. Swimming or wading in park pools unlawful unless pool open to public.
Sec. 5.78.030. Throwing debris into pool; damaging.
Sec. 5.78.040. Unlawful to enter fenced area when pool not open.
Sec. 5.78.050. Penalty for violations.

Sec. 5.78.020. Swimming or wading in park pools unlawful unless pool open to public.

It is unlawful for any person to swim or wade in any swimming pool located in a public park within the City of Wichita, except when such pool is open to the public for swimming or wading.
(Ord. No. 25-258 § 1)

Sec. 5.78.030. Throwing debris into pool; damaging.

It is unlawful for any person to throw trash or debris into any swimming pool, or to mar, deface or otherwise damage any swimming pool located in a public park in the City of Wichita.
(Ord. No. 25-258 § 2)

Sec. 5.78.040. Unlawful to enter fenced area when pool not open.

It is unlawful for any person to enter within the fenced area surrounding any public swimming pool in the City of Wichita when such pool is not open to the public.
(Ord. No. 25-258 § 3)

Sec. 5.78.050. Penalty for violations.

Any person who violates any section of this chapter shall, upon conviction, be guilty of a misdemeanor.
(Ord. No. 25-258 § 4)

CHAPTER 5.82. TELEPHONE AND TELECOMMUNICATION HARASSMENT*

Sec. 5.82.010. Telecommunication harassment.

Sec. 5.82.010. Telecommunication harassment.

(a) It is unlawful for any person to commit Harassment by Telecommunication Device by using:

(1) A telecommunications device to:

(A) Knowingly make or transmit any comment, request, suggestion, proposal, image or text which is obscene, lewd, lascivious or indecent;

(B) Make or transmit a call, whether or not conversation ensues, with intent to abuse, threaten or harass any person at the receiving end;

(C) Make or transmit any comment, request, suggestion, proposal, image or text with intent to abuse, threaten or harass any person at the receiving end;

(D) Make or cause a telecommunications device to repeatedly ring or activate with intent to harass any person at the receiving end;

(E) Knowingly play any recording on a telephone, except recordings such as weather information or sports information when the number thereof is dialed, unless the person or group playing the recording shall be identified and state that it is a recording; or

(F) Knowingly permit any telecommunications device under one's control to be used in violation of this paragraph.

(2) Telefacsimile communication to send or transmit such communication as described in (a)(1) of this section to a court within the state of Kansas for a use other than court business, with no requirement of culpable mental state.

(b) As used in this section, "telecommunications device" includes telephones, cellular telephones, telefacsimile machines and any other electronic device which makes use of an electronic communication service, as defined in K.S.A. 22-2514, and amendments thereto.

(c) Any person who shall commit an act prohibited by this section shall be punished by a fine of not more than $2,500.00 or by one year imprisonment, or by both such fine and imprisonment.
(Ord. No. 51-144, §§ 1, 2, 11-19-19)

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*__Editor's note—__Ord. No. 51-144, §§ 1, 2, adopted Nov. 19, 2019, amended Ch. 5.82 in its entirety to read as herein set out. Former Ch. 5.82, § 5.82.010, pertained to telephone service—interfering, and derived from (Ord. No. 40-313 § 1; Ord. No. 47-089, § 1, adopted July 25, 2006; and Ord. No. 49-256, § 47, adopted May 8, 2012.

CHAPTER 5.83. UNLAWFUL RESTRAINT

Sec. 5.83.010. Unlawful restraint.

Sec. 5.83.010. Unlawful restraint.

(1) Unlawful restraint is knowingly and without legal authority restraining another so as to interfere substantially with his or her liberty.

(2) This section shall not apply to acts done in the performance of duty by any law enforcement officer of the State of Kansas or any political subdivision thereof. (3) Any merchant, or his or her agent or employee, who has probable cause to believe that a person has actual possession of and (a) has wrongfully taken, or (b) is about to wrongfully take merchandise from a mercantile establishment, may detain such person (a) on the premises or (b) in the immediate vicinity thereof, in a reasonable manner and for a reasonable period of time for the purpose of investigating the circumstances of such possession. Such reasonable detention shall not constitute an arrest nor an unlawful restraint.

Any person who commits unlawful restraint within the corporate limits of the City of Wichita shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not more than two thousand five hundred dollars or imprisonment which shall not exceed one year, or by both such fine and imprisonment.
(Ord. No. 42-098; Ord. No. 47-090, § 7-25-06)

CHAPTER 5.85. INTERFERENCE WITH A FIREFIGHTER

Sec. 5.85.010. Unlawful interference with a firefighter.
Sec. 5.85.020. Interference with emergency medical services personnel.

Sec. 5.85.010. Unlawful interference with a firefighter.

Unlawful Interference with a firefighter is knowingly:

(a) Interfering with any firefighter while engaged in the performance of such firefighter's duties;

(b) Obstructing, interfering with or impeding the efforts of any firefighter to reach the location of a fire or other emergency; or

(c) Unlawful interference with a firefighter is a misdemeanor. Any person convicted of violating this section shall be sentenced to a term of imprisonment of not more than six months and/or a fine not to exceed $1,000.00.

(Ord. No. 49-256, § 48, 5-8-2012)

Sec. 5.85.020. Interference with emergency medical services personnel.

(a) Unlawful interference with an emergency medical services attendant is knowingly:

(1) Interfering with any attendant while engaged in the performance of such attendant's duties; or

(2) Obstructing, interfering with or impeding the efforts of any attendant to reach the location of an emergency.

(b) Unlawful interference with an emergency medical services attendant is a misdemeanor. Any person convicted of violating this section shall be sentenced to a term of imprisonment of not more than six months and/or a fine not to exceed $1,000.00.

(Ord. No. 49-256, § 49, 5-8-2012)

CHAPTER 5.86. WATER, GAS AND ELECTRICITY

Sec. 5.86.010. Definitions.
Sec. 5.86.020. Unlawful acts.
Sec. 5.86.030. Presumption of violation.
Sec. 5.86.040. Wasting water or natural gas.

Sec. 5.86.010. Definitions.

For purposes of this chapter, the following words and phrases shall have the following meanings.

(a) "Customer" means the person in whose name a utility service is provided.

(b) "Divert" means to change the intended course or path of electricity, natural gas, water, cable television or other utility service, without the authorization or consent of the utility.

(c) "Person" means any individual, partnership, firm, association or corporation.

(d) "Reconnection" means the commencement of utility service other than by a utility company, to a customer or other person after service has been discontinued by the utility.

(e) "Tamper" means to rearrange, damage, injure, destroy, alter, interfere with or otherwise prevent from performing normal or customary function.

(f) "Telecommunication service" means any telephone service or the transmission of a message, signal or other communication by telephone or telegraph, or over telephone or telegraph facilities.

(g) "Utility service" means the provision of electricity, natural gas, water, steam, hot air, telecommunication, cable television or any other service or commodity furnished by the utility for compensation.

(Ord. No. 39-853 § 1)

Sec. 5.86.020. Unlawful acts.

It shall be unlawful for any person to commit, authorize, solicit, aid, abet or attempt any of the following acts.

(a) Divert, or cause to be diverted, utility service by any means whatsoever;

(b) Make, or cause to be made, any connection or reconnection with property owned or used by the utility to provide utility service without the authorization or consent of the utility company;

(c) Prevent any utility meter, or other device used in determining the charge for utility service, from accurately performing its measuring function by tampering or other means;

(d) Tamper with any property owned or used by the utility company to provide utility service;

(e) Use or receive the direct benefit of all or a portion of the utility service, with the knowledge of or reason to believe that the diversion, tampering, or unauthorized connection existed at the time of the use, or that the use or receipt was without the authorization or consent of the utility;

(f) Publish the number or code of an existing canceled, revoked, or nonexistent telephone number, credit card number or other credit device or method of numbering or coding which is employed in the issuance of telephone numbers, credit card numbers or other credit devices under circumstances evincing an intent to have such telephone number, credit card number, credit device or method of numbering or coding used to avoid the payment of a lawful charge for any telecommunication service, or knowing or having reason to believe that the same may be used to avoid the payment of any such charge;

(g) Obtain credit for or purchase any utility service by the use of any false, fictitious, or counterfeit telephone number, credit card number or other credit device, or by the use of any telephone number, credit card number or other credit device with-

out the authority of the person to whom the number or device was issued, or by the use of any telephone number, credit card number or other credit device knowing that such number or device has been revoked;

(h) Advertise, manufacture, distribute, sell, use, rent, or offer for sale, use, or rental any device of any description, or any plan or kit designed to obtain utility service, in violation of this chapter;

(i) Obtain utility service by means of false representations, or fraudulent or deceptive actions, designed to avoid the payment of any outstanding lawful charges for any utility services;

(j) Avoid the lawful charges, in whole or part, for any utility service, by the use of any fraudulent or deceptive scheme, device, means or method.

(Ord. No. 39-853 § 2)

Sec. 5.86.030. Presumption of violation.

There is a rebuttable presumption that there is a violation of this chapter if, on the premises controlled by the customer or by the person using or receiving the direct benefit of utility service, there is either, or both of the following:

(a) Any instrument, apparatus, or device primarily designed to be used to obtain utility service without paying the full lawful charge therefor.

(b) Any utility equipment that has been altered, tampered with, or bypassed so as to cause no measurement, inaccurate measurement, or to permit receipt of utility service without paying the full lawful charge therefor.

(Ord. No. 39-853 § 3)

Sec. 5.86.040. Wasting water or natural gas.

Any person within the corporate limits of the city who shall wilfully cause the waste of any water or natural gas conveyed by or through any pipe without consent of the person owning or having control of the pipe shall be deemed guilty of a misdemeanor.

(Ord. No. 39-853 § 4)

CHAPTER 5.88. WEAPONS

Sec. 5.88.010. Unlawful use of weapons.
Sec. 5.88.020. Unlawful discharge of a firearm, air rifles, pellet guns and BB guns.
Secs. 5.88.030—5.88.050. Reserved.

Sec. 5.88.010. Unlawful use of weapons.

(1) Unlawful use of a weapon is knowingly:

(a) Selling, manufacturing, purchasing, possessing or carrying any bludgeon, sandclub, night stick, metal knuckles or throwing star;

(b) Possessing with intent to use the same unlawfully against another, any bludgeon, sandclub, billy, blackjack, slingshot, nightstick, nun-chucks, sap gloves, or any other dangerous or deadly instrument of like character;

(c) Drawing a pistol, revolver or any other deadly weapon upon any person;

(d) As used in this section, "throwing star" means any instrument, without handles, consisting of a metal plate having three or more radiating points with one or more sharp edges and designed in the shape of a polygon, trefoil, cross, star, diamond or other geometric shape, manufactured for use as a weapon for throwing.

(2) Subsection (1)(c) of this subsection shall not apply to or affect any of the following:

(a) Law enforcement officers, or any person summoned by any such officers to assist in making arrests or preserving the peace while actually engaged in assisting such officer;

(b) Wardens, superintendents, directors, security personnel and keepers of prisons, penitentiaries, jails and other institutions for the detention of persons accused or convicted of a crime, while acting within the scope of their authority;

(c) Members of the Armed Services or Reserve Forces of the United States or the Kansas National Guard while in the performance of their official duty; or

(d) Individuals employed as security officers by the City of Wichita, who are authorized by the Chief of Police, with the approval of the City Manager, to carry firearms, while acting within the scope of their authority as a security officer for the City of Wichita.

(e) Historical re-enactors and actors when engaged in performances and demonstrations. Provided, however, this subsection shall only apply to those performances and demonstrations which have been approved in advance in writing by the City Manager or his designee.

(3) Any person who violates any of the provisions of this section within the corporate limits of the City shall be guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine not to exceed $2,500.00 or by imprisonment for not more than one year, or by both such fine and imprisonment.

(4) In addition to the penalty for violation of any of the provisions of this section, it shall be the duty of the Municipal Court Judge in the discretion of the court:

(a) To order any weapon or firearm seized in connection with such violation to be forfeited to the City and the same shall be disposed of by the Chief of Police as set forth below whenever the weapon is no longer needed for evidence;

(b) The Chief of Police may dispose of any forfeited weapon by:

(i) Forfeiting the weapon or firearm to the Wichita Police Department for use within the Police Department, for sale to a properly licensed federal firearms dealer or for trading to a properly licensed federal firearms dealer by the Police Department for other new or used firearms or accessories for the Police Department's use;

(ii) Forfeiting the weapon or firearm to the Kansas Bureau of Investigation for law enforcement, testing, compar-

ison or destruction by the Kansas Bureau of Investigation Forensic Laboratory;

(iii) Forfeiting the weapon or firearm to the Sedgwick County Regional Forensic Science Center for testing, comparison or other forensic purposes; or

(iv) Selling the weapon or firearm at public auction.

If weapons are sold as authorized above, the proceeds from any such sale shall be credited to the asset seizure and forfeiture fund of the Wichita Police Department. All transactions involving weapons disposed of under this subsection must have the prior approval of the City Manager. All sales of weapons are subject to review by the City council.

(c) Any weapon which cannot be forfeited or sold pursuant to subsection (b), due to the condition of the weapon, and any weapon which was used in the commission of a felony as described in K.S.A. 21-5401, 21-5402, 21-5403, 21-5404 and 21-5405 and amendments thereto, shall be destroyed.

(d) If a weapon is seized from an individual and the individual is not convicted of or adjudicated as a juvenile offender for the violation for which the weapon is seized, then within 30 days after the declining of charges or conclusion of prosecution of the case against the individual, including any period of appeal, the Wichita Police Department shall verify that the weapon is not stolen and upon such verification, shall notify the person from whom it was seized that the weapon may be retrieved. Such notification shall include the location where such weapon may be retrieved.

(e) Any stolen weapon confiscated in connection with any violation of this code shall be returned to the person entitled to possession, if known, when the same is no longer needed for evidence. All other weapons shall be disposed of as provided in subsection (6)(b) of this section.

(Ord. No. 49-309, §§ 1, 2, 7-17-2012; Ord. No. 49-522, § 1, 6-25-2013; Ord. No. 49-763, § 1, 6-17-2014)

Sec. 5.88.020. Unlawful discharge of a firearm, air rifles, pellet guns and BB guns.

(1) It is unlawful for any person to recklessly discharge or fire any gun, pistol, air rifle, pellet gun, BB gun or any other firearm within the corporate limits of the City.

(2) This section shall not apply to the discharge of any firearm if:

(a) The firearm is discharged at a private or public shooting range which has been approved by the Chief of Police;

(b) The firearm is discharged in the lawful defense of one's person, another person or one's property;

(c) The firearm is discharged by authorized law enforcement officers, animal control officers or a person who has a wildlife control permit issued by the Kansas Department of Wildlife, Parks and Tourism;

(d) The firearm is discharged using blanks; or

(e) The firearm is discharged in lawful self-defense or defense of another person against an animal attack.

(3) Any person who violates any of the provisions of this section is guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed $500.00 or by imprisonment for not more than one year, or by both such fine and imprisonment.

(4) In addition to the penalty for the violation of this section, it shall be the duty of the Municipal Court Judge to order any weapon seized in connection with such violation to be forfeited to the City and the same shall be disposed of by the Chief of Police.

(Ord. No. 46-612 § 2; Ord. No. 49-256, § 50, 5-8-2012; Ord. No. 49-523, § 1, 6-25-2013)

Sec. 5.88.030. Reserved.

Editor's note—Ord. No. 49-763, § 2, adopted June 17, 2014, repealed § 5.88.030, which pertained to air rifles, pellet guns and BB guns—Carrying within the City, and derived from Ord. No. 46-612, § 3; Ord. No. 49-256, § 51, 5-8-2012.

Sec. 5.88.040. Reserved.

Editor's note—Ord. No. 47-503, § 1, adopted June 26, 2007, repealed § 5.88.040 in its entirety. Formerly said section pertained to carrying concealed weapons in places prohibited by the Personal and Family Protection Act and derived from Ord. No. 47-321, § 1, 12-19-06.

Sec. 5.88.050. Reserved.

Editor's note—Ord. No. 47-504, § 1, adopted June 26, 2007, repealed § 5.88.050 in its entirety. Formerly said section pertained to carrying concealed weapon when posted otherwise or when under the influence of alcohol and/or drugs and derived from Ord. No. 47-322, § 1, 12-19-06.

CHAPTER 5.89. RESERVED.*

*__Editor's note—__Ord. No. 49-763, §§ 3—7, adopted June 17, 2014, repealed Chapter 5.89, §§ 5.89.010—5.89.050, which pertained to firearms and derived from Ord. No. 41-967, §§ 1, 4, 5; Ord. No. 46-612, §§ 4, 5. The user's attention is directed to Chapter 5.88 for similar provisions.

CHAPTER 5.90. WINDOW PEEPING

Sec. 5.90.010. Window peeping.

Sec. 5.90.010. Window peeping.

Any person, other than the occupants of the room, dwelling, apartment, rooming house or apartment house involved, who goes upon private property, without the permission of the owner or lessee thereof, and looks into such room, dwelling, apartment, rooming house or apartment house is guilty of "window peeping," a misdemeanor, and any person convicted thereof shall be punished by a fine of not more than five hundred dollars and/or six months' imprisonment.
(Ord. No. 33-912; Ord. No. 25-239 § 1)

CHAPTER 5.92. RETURN OF PUBLIC LIBRARY MATERIALS

Sec. 5.92.010. Failure to return library materials.
Sec. 5.92.020. Fraud in procuring library privileges.
Sec. 5.92.030. Notice of violation.
Sec. 5.92.040. Prosecution—Presumption of proof.
Sec. 5.92.050. Penalty.

Sec. 5.92.010. Failure to return library materials.

It is unlawful for any person to fail to return any book, newspaper, magazine, pamphlet, manuscript, article, art print, phonograph record, film or any other property owned by the Wichita Public Library after notice in writing to return the same within thirty days has been given to such person. Such notice shall be given after the expiration of the time which, by the rules of the library board, the book or other library material may be kept.
(Ord. No. 34-827 (part))

Sec. 5.92.020. Fraud in procuring library privileges.

It is unlawful for any person to give a fictitious name or address at the Wichita Public Library in order to obtain possession or use of any book or any other property of the Wichita Public Library, or to use a library card other than his or her own to secure without permission of the owner thereof possession of any book or other property of the Wichita Public Library, or to conceal his or her identity or place of employment or residence in any manner whatsoever in order to secure possession of any book, library card, or any other property of the Wichita Public Library.
(Ord. No. 34-827 (part))

Sec. 5.92.030. Notice of violation.

(a) For purposes of this chapter, whenever it appears that there has been a violation of Section 5.92.010 of this chapter, the librarian of the Wichita Public Library shall give notice of such alleged violation to the person or persons responsible therefor as herein provided. Such notice shall:

(1) Be in writing;

(2) Particularize the violations alleged to exist or have been committed;

(3) Specify that the person to whom the notice is issued shall have thirty days within which to correct the violations particularized;

(4) Be addressed to and served upon the holder of the library card at the address which is most recent as it appears from such person's application for a library card.

(b) Provided, that such notice shall be deemed properly served upon such holder or owner of a library card if a copy thereof is served upon him personally, or if a copy thereof is sent by certified mail to the address listed as most recent on his application for a library card.
(Ord. No. 34-827 (part))

Sec. 5.92.040. Prosecution—Presumption of proof.

(a) In any prosecution charging a violation of Section 5.92.010 of this chapter, proof that a particular individual was the registered holder of a particular library card which was used to secure any book or any other library property shall constitute in evidence a prima facie presumption that the record owner or holder of such library card was the person who utilized the same to secure a particular book or any other property of the Wichita Public Library at the point where and at the time when such violation occurred.

(b) The foregoing stated presumption shall apply only when the procedure as prescribed in Section 5.92.030 above has been followed.
(Ord. No. 34-827 (part))

Sec. 5.92.050. Penalty.

Any violation of any of the provisions of this chapter shall constitute a misdemeanor and shall be punishable by a fine not less than twenty-five dollars nor in excess of two hundred fifty dollars.
(Ord. No. 34-827 (part))

CHAPTER 5.98. MANUFACTURER'S IDENTIFICATION NUMBER

Sec. 5.98.010. Alteration.
Sec. 5.98.020. Purchase or sale of articles with altered or defaced identification.
Sec. 5.98.030. Possession of articles with altered or defaced identification.
Sec. 5.98.040. Violation—Penalty.

Sec. 5.98.010. Alteration.

No person shall change, cover, alter, remove, obliterate or deface the serial number or other manufacturer's number or identification letter, words or numbers of any of the following machines, apparatus or manufactured articles with the intent to conceal, destroy or misrepresent the identity or type of ownership of the following machines, apparatus or articles:

TVs, radios, phonographs, tape recorders or tape players, typewriters, adding machines and other office machines;

Handguns, rifles and shotguns;

Musical instruments such as clarinets, saxophones, trumpets and flutes;

Power equipment, including lawnmowers, tree saws, power drills, saws, sanders and buffers, but not excluding any mechanical equipment sold;

Gasoline engines, such as outboard motor engines and other engines, including automobile engines and transmissions;

Home appliances, such as vacuum cleaners, sewing machines, electric mixers;

Photographic equipment, such as cameras, motion picture projectors, slide projectors;

Binoculars;

Any machine, apparatus or article that carries a manufacturer's serial number, including such articles as boats, boat motors and camping trailers, but not excluding any other articles that bear manufacturer's serial numbers.
(Ord. No. 30-832 § 1)

Sec. 5.98.020. Purchase or sale of articles with altered or defaced identification.

No person shall knowingly buy, sell, receive, barter, trade, dispose of or have in his possession any of the aforenamed manufacturer's articles, devices, apparatus or machines from which the manufacturer's number or identification mark, or the name of the manufacturer, or maker, or model, or any other identification letters, or words, or numbers have been changed, covered, altered, removed, obliterated, defaced or destroyed.
(Ord. No. 30-832 § 2)

Sec. 5.98.030. Possession of articles with altered or defaced identification.

Possession of any of the aforenamed manufacturer's articles, devices, apparatus or machines from which the manufacturer's serial number or other manufacturer's number or identification mark, or the name of the manufacturer, or make or model, or any other identification letters, words or numbers have been changed, covered, altered, removed, obliterated, defaced or destroyed shall be prima facie evidence that the possessor has changed, covered, altered, removed, obliterated, defaced or destroyed the same with the intent to cancel, destroy or misrepresent the identity or type, or ownership of such machine, apparatus, or article.
(Ord. No. 30-832 § 3)

Sec. 5.98.040. Violation—Penalty.

Any person violating any provision of this chapter is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars, or one year imprisonment, or both such fine and imprisonment.
(Ord. No. 30-832 § 4)

CHAPTER 5.99. DATA PROCESSING SYSTEM

Sec. 5.99.010. Definitions.
Sec. 5.99.020. Disclosure of codes, passwords or other information necessary to gain access to the system.
Sec. 5.99.030. Gaining unauthorized access to the city of Wichita data processing system.
Sec. 5.99.040. Violation—Penalty.

Sec. 5.99.010. Definitions.

As used in this chapter:

(1) "Code" means any alphanumeric sequence designed or used to identify a person entering or using the data processing system of the city.

(2) "Password" means any alphanumeric sequence designed or used to gain access to any specific program or data contained in the data processing system of the city.

(3) "Data processing system" means data terminals and other hardware and all programs and other software used to provide any and all data processing support to the city, regardless of the location of the same.

(Ord. No. 38-584 § 1)

Sec. 5.99.020. Disclosure of codes, passwords or other information necessary to gain access to the system.

It is unlawful for any person having knowledge of any codes, passwords or other information necessary to gain access to the data processing system of the city to disclose the same to any person not authorized to possess them. For purposes of this section only those persons authorized in writing by the information systems director of the city shall be entitled to possess this information.

(Ord. No. 43-138 § 1)

Sec. 5.99.030. Gaining unauthorized access to the city of Wichita data processing system.

It is unlawful for any person to gain access to the data processing system of the city unless such person has been authorized such access in writing by the information systems director of the city prior to the occurrence of such access.

(Ord. No. 43-138 § 2)

Sec. 5.99.040. Violation—Penalty.

Any person violating any provision of this chapter is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars, or one year imprisonment, or both such fine and imprisonment.

(Ord. No. 38-584 § 4)

Title 6

ANIMALS*

Ch. 6.02. Animal Services Advisory Board

Ch. 6.04. Animal Control and Protection

Ch. 6.08. Dangerous and Exotic Animals

Ch. 6.12. Reserved

Ch. 6.16. Reserved

*__Cross reference—__For provision as to licenses for collection, etc., of dead animals or fowl, see § 7.12.030. As to duty of persons riding or driving animals to obey traffic regulations, see § 11.16.070. As to hitching animals to parking meters, see § 11.68.070. As to persons riding animals in parks, see § 11.88.050. As to hitting, tormenting or abusing animals in park zoo, see § 9.04.110. As to dead animals, etc., not disposed of as garbage, see Chapter 7.12.

CHAPTER 6.02. ANIMAL SERVICES ADVISORY BOARD*

Sec. 6.02.010. Animal Services Advisory Board—Established.
Sec. 6.02.020. Composition.
Sec. 6.02.030. Purpose.
Sec. 6.02.040. Meetings.

Sec. 6.02.010. Animal Services Advisory Board—Established.

An Animal Services Advisory Board is hereby established.
(Ord. No. 49-954 § 1, 3-24-2015; Ord. No. 52-834, § 1, 10-28-25)

Editor's note—Ord. No. 52-834, § 1, adopted Oct. 28, 2025, amended the title of § 6.02.010 to read as herein set out. The former § 6.02.010 title pertained to establishment of the Animal Control Advisory Board.

Sec. 6.02.020. Composition.

The Animal Services Advisory Board shall consist of seven at-large members appointed by the city council and Mayor with a goal of having one member from a certified local rescue group and a licensed or retired veterinarian. The board shall be assisted by a designated representative of the city to serve as the non-voting, secretary of the board and at least one representative from Animal Services to serve as advisor. All appointed board members must meet the provisions of section 2.12.010 of this Code. The board shall elect its own chair and make such rules as are necessary for the conduct of its business and shall be subject to the provisions of Section 2.12.020 of this Code. All seven members of the board shall be voting members unless a conflict is stated and approved.
(Ord. No. 49-954 § 2, 3-24-2015; Ord. No. 50-308 § 1, 8-23-16; Ord. No. 52-834, § 1, 10-28-25)

Sec. 6.02.030. Purpose.

The board shall provide recommendations to the Wichita Police Department, Division of Animal Services to encourage responsible pet ownership, ensure the humane treatment of all animals and promote public safety. The board shall have no authority relative to the interpretation of the administrative provisions of this Code, nor shall the board be empowered to waive requirements of this Code.
(Ord. No. 50-308 § 2, 8-23-16; Ord. No. 52-834, § 1, 10-28-25)

Editor's note—Ord. No. 50-308 § 2, adopted Aug. 23, 2016, repealed the former section 6.02.030 and enacted a new section as set out herein. The former section 6.02.030 pertained to purpose and duties and derived from Ord. No. 49-954 § 4, adopted March 24, 2015.

Sec. 6.02.040. Meetings.

The board shall meet at least quarterly. The board shall conduct meetings, elect officers, and adopt by-laws in accordance with the policy for boards and commissions as stated in Section 2.12.020 of the Municipal Code for the City of Wichita, Kansas. The Wichita Police Department shall provide the necessary staff support to insure that the board receives informational support and professional and technical assistance necessary to carry on its duties and conduct its meetings.
(Ord. No. 49-954 § 4, 3-24-2015)

*__Editor's note—__Ord. No. 52-834, § 1, adopted Oct. 28, 2025, amended the title of Ch. 6.02 to read as herein set out. The former Ch. 6.02 title pertained to the Animal Control Advisory Board.

CHAPTER 6.04. ANIMAL CONTROL AND PROTECTION

Sec. 6.04.010. Definitions.
Sec. 6.04.020. Enforcement of this Title.
Sec. 6.04.025. Trapping of abandoned cats.
Sec. 6.04.035. Cruelty to animals.
Sec. 6.04.036. Cruelty complaint—Municipal Court hearing.
Sec. 6.04.040. Control and protection of animals in general.
Sec. 6.04.045. Dangerous dog—Determination by Supervisor of Animal Services.
Sec. 6.04.046. Dangerous dog—Failure to comply with orders.
Sec. 6.04.047. Signs required.
Sec. 6.04.048. Registration and insurance.
Sec. 6.04.050. Interference with the duty of an animal control officer.
Sec. 6.04.052. Restrictions on the ownership of Pit Bulls.
Sec. 6.04.055. Animals prohibited—Exceptions.
Sec. 6.04.058. Permitting a dangerous animal to be at large.
Sec. 6.04.060. Animal bite violations.
Sec. 6.04.070. Procedures on retention, observation and disposition of animals which have bitten persons or other animals.
Sec. 6.04.080. Known rabid animal.
Sec. 6.04.090. Failure to confine biting animals.
Sec. 6.04.100. Injured animal.
Sec. 6.04.110. Procedure on registration, vaccination certificate and issuance of a license to keep a dog; vaccination requirements for cats and ferrets.
Sec. 6.04.120. False statements.
Sec. 6.04.130. Reserved.
Sec. 6.04.140. Vaccination and identification tags.
Sec. 6.04.150. License for keeping a dog.
Sec. 6.04.155. Dog breeder license; breeder inspections.
Sec. 6.04.156. Sale of animals.
Sec. 6.04.157. Maximum number of dogs and cats and maintaining livestock.
Sec. 6.04.158. Appeal from denial of breeder's license, animal maintenance permit, or determination that dog is a Pit Bull.
Sec. 6.04.159. Revocation or suspension of license or permit.
Sec. 6.04.160. Authorization for quarantine.
Sec. 6.04.165. Catteries.
Sec. 6.04.170. Dog and cat census.
Sec. 6.04.171. Keeping of certain fowl prohibited.
Sec. 6.04.172. Swine and goat maintenance.
Sec. 6.04.173. Domestic animal structures and enclosures.
Sec. 6.04.175. Health standards—Minimum listed.
Sec. 6.04.176. Pet shop, stables, kennel, commercial animal facilities, and animal "day care" regulations.
Sec. 6.04.177. Pigeons—Conditions for keeping—Letting loose in city.
Sec. 6.04.190. Violation—Penalty.
Sec. 6.04.210. Appeal from Animal Services rulings.
Sec. 6.04.215. Dogs prohibited in parks; exceptions.
Sec. 6.04.218. Designation of dog parks, off-leash areas; rules and regulations; penalties for offenses.
Sec. 6.04.220. Severability.

Sec. 6.04.010. Definitions.

As used in this chapter:

Abandoned cat means a cat which has returned to the feral state or which does not have a collar.

Adequate care means normal care and prudent attention to the needs and welfare of an animal, including that care normally needed to maintain good health of the animal, including clean and dry bedding and resting surfaces, grooming, removal of manure, and:

1. *Adequate food* means wholesome foodstuffs suitable for the animal provided at suitable intervals in a sanitary manner in quantities sufficient to maintain good health of the animal considering its age and condition; and
2. *Adequate health care* means the provision to an animal of all immunizations and preventive care required to maintain good health; space adequate to allow the animal to rest and exercise sufficient to maintain good health; and the provision to each sick, diseased or injured animal of necessary veterinary care or humane death; and
3. *Adequate shelter* means a structurally sound, properly ventilated, sanitary and weatherproof shelter suitable for the animal, considering the condition and age of the animal which provides access to shade from direct sunlight and regress from exposure to inclement weather conditions; and
4. *Adequate water* means a continual access to or access at suitable intervals to a supply of clean, fresh, potable water provided in a sanitary manner suitable for the condition of the animal.

Animal behaviorist professional means a specially trained expert in the principles of animal behavior and animal learning with a set of science-backed tools, such as behavior modification.

Animal day care means a commercial establishment that takes temporary possession of an animal, at the request of an owner, to provide safety, comfort and/or socialization of the animal.

Animal fighting paraphernalia means equipment, animals, or commodities designed or capable of use for the purpose of training animals to attack other animals, as in dogfighting or cockfighting, including, but not limited to: animal treadmills, drugs for healing animals such as anti-inflammatories, antibiotics or steroids, spurs, equipment used to threaten animals for the purpose of training for aggressive behavior, and/or equipment used to strengthen animal bodies. In determining whether an object is animal fighting paraphernalia, a court or other authority shall consider, in addition to all other logically relevant factors, the following:

1. Statements by an owner or person in control of the object concerning its use.
2. Prior convictions, if any, of an owner or person in control of the object under any state law or city ordinance relating to animal fighting, animal cruelty or gambling.
3. The proximity of the object, in time and space, to a direct violation of an animal fighting, animal cruelty or gambling statute or ordinance.
4. The proximity of the object, in time and space, to other objects also susceptible for use as animal fighting paraphernalia.
5. The existence of bloodstains or blood spatters on the object.
6. The manner in which the object is displayed for sale or is described in written material on the subject of animal fighting.
7. The existence and scope of legitimate uses for the object in the community.
8. Expert testimony concerning the object's use.
9. The proximity of the object, in time and space, to dogs showing evidence of wounds or scarring.

Animal Services Officer means any person employed by, contracted with or appointed by the City of Wichita, or any designee of the Chief of Police of the City of Wichita, for the purpose of aiding in the enforcement of this Code. As used in this Code, Animal Services Officer, Health Officer and Animal Control Officer are synonymous.

Animal shelter means the facility or facilities authorized to care for animals impounded or held under the authority of the ordinances of the City of Wichita or the State of Kansas.

Attack means violent or aggressive physical contact with a person or domestic animal or violent or aggressive behavior that confines the movement of a person, including, but not limited to, charging, cornering, chasing, or circling a person.

Bite means any actual or suspected abrasion, scratch, puncture, tear, bruise or piercing of the skin, caused by any animal, which is actually or suspected of being contaminated or inoculated with the saliva from the animal, directly or indirectly, regardless of the health of the animal causing such bite.

Cat means any of the small carnivorous mammal varieties of Felis Catus which are domesticated. Such term shall not include hybrid breeds of cats which have been bred to a wild animal.

Cattery means any premises where there is being maintained or harbored a total of five of more cats or more than two unspayed female cats, except veterinary hospitals. This term does not include foster homes operated under the auspices of rescue organizations licensed by the Kansas Department of Animal Health.

City Treasurer means the duly appointed treasurer of the city or his/her authorized representative.

Commercial animal establishment means any pet shop, animal day care, grooming shop, auction, riding school, stable, kennel, guard dog service, dog trainer or other business which keeps or maintains animals in stock for retail or wholesale trade or sale.

Dangerous dog means any dog that has been declared dangerous or potentially dangerous pursuant to 6.04.045.

Defecate means to excrete waste matter from the bowels.

Dog means any animal which is of the species Canis Familiaris. Such term shall not include hybrid breeds of dogs which have been bred to a wild animal.

Dog breeder means a person who raises or produces dogs or puppies for sale or profit.

It is presumed that a person who advertises the sale of dogs or puppies or a person who owns two or more unaltered female dogs is a dog breeder. Such term shall include persons who are licensed by the State of Kansas as an animal dealer, retailer breeder, animal breeder, hobby breeder or hobby kennel. Such term shall include a person who owns one or two unaltered Pit Bulls.

Domestic animal structure means all pens, houses or structures where domestic animals are confined, such as, but not limited to: hutches, cotes, lofts, kennels, dog runs, warrens, feed lots, barns or other buildings and enclosures. The term does not apply to perimeter fencing surrounding the property.

Domestic animals means all animals that have been domesticated, such as, but not limited to, dogs, cats, cattle, horses, swine, goats, rabbits, sheep, chickens, ducks, geese, turkeys, pigeons or other fowl.

Emotional support animal means any animal that provides emotional support alleviating one or more symptoms or effects of a person's disability. Emotional support animals provide companionship, relieve loneliness, and sometimes help with depression, anxiety, and certain phobias, but do not have special training to perform tasks that assist people with disabilities. Emotional support animals are not limited to dogs.

Ferret means a domesticated, small, elongated carnivorous mammal which belongs to the Mustelidae Family (Mustela putorius furo).

Foster care, group home or *rescue* means a person or organization, whether for profit or non-profit, which provides temporary care for animals from a licensed animal shelter at a private residence. Temporary care is a period of time not to exceed six months. Such term shall include foster, group and rescue homes operated under the auspices of rescue organizations licensed by the Kansas Animal Health Department.

Fowl means any domesticated or wild bird, including, but not limited to: chickens, hens, ducks, geese, pheasants, turkeys, doves, pigeons, parrots, parakeet and exotic birds.

Garbage means the putrescible animal and vegetable waste resulting from the handling, preparation, cooking and consumption of food for human beings.

Groomer means a person or establishment which provides animal grooming services.

Inhumane treatment means any treatment to any animal which deprives the animal of necessary sustenance, including food, water and protection from the weather; any treatment such as overloading, overworking, tormenting; beating, mutilating, teasing or other abnormal treatment; or causing or allowing the animal to fight with any other animal.

Kennel means any premises where there is being maintained a total of five or more adult dogs owned by the property resident.

Livestock means any cow, ox or other bovine, goat, sheep, horse, ratites, donkey, swine, mule or other animal of similar or larger size.

Microchip means a passive transponder which can be implanted in an animal and which is a component of a radio frequency identification (RFID) system.

Neighbor means any person residing within 200 feet from the outermost property line of the property where a domestic animal is owned, kept or harbored.

Owner, keeper or *harborer* means any person who possesses, harbors, keeps, feeds, shelters, maintains, offers refuge or asylum to any animal, or who professes to keeping, owning or harboring

of such animal. In addition, any person who signs a receipt as owner, keeper or harborer for the return of an animal from any shelter or animal holding facility, shall be presumed to be the owner, keeper or harborer of the animal. A parent or legal guardian shall be deemed to be an owner, keeper or harborer of animals owned, kept or harbored upon their premises by minor children who are less than 18 years of age. Such term shall also include any person who exercises control over or is in possession of any such animal.

Person means any individual, firm, association, joint stock company, syndicate, partnership, corporation, other state franchised business entity such as a professional association, limited liability company, or limited liability partnership, or other organization of any kind.

Picket means attaching a leash, rope, chain, lead, tether or other similar apparatus or device to the body of an animal and another inanimate or immovable object for the purpose of confining the animal or limiting the movement of the animal.

Pit Bull dog is defined to mean any and all of the following dogs:

1. The Staffordshire Bull Terrier breed of dogs;
2. The American Staffordshire Terrier breed of dogs;
3. The American Pit Bull Terrier breed of dogs;
4. Dogs which have the appearance and physical characteristics of being predominately of the breeds of dogs known as Staffordshire Bull Terrier, American Pit Bull Terrier or American Staffordshire Terrier.

A dog which possesses five out of the following eight characteristics shall be considered to be a Pit Bull:

1. Head is medium length, with a broad skull and very pronounced cheek muscles, a wide, deep muzzle, a well-defined, moderately deep stop, and strong under jaw. Viewed from the front the head is shaped like a broad, blunt wedge.
2. Eyes are round to almond shaped, are low in the skull and set far apart.
3. Ears are set high. Un-cropped ears are short and usually held rose or half prick, though some hold them at full prick.
4. Neck is heavy and muscular, attached to strong, muscular shoulders.
5. Body is muscular, with a deep, broad chest, a wide front, deep brisket, well-sprung ribs, and slightly tucked loins.
6. Tail is medium length and set low, thick at the base, tapering to a point.
7. Hindquarters are well muscled, with hocks, set low on the legs.
8. Coat is a single coat, smooth, short and close to the skin. Pit Bull puppies have the same characteristics, though in juvenile or adolescent form. Muscles, along with breadth and depth of head and chest may be less developed. Specifically excepted from this definition is any dog with proof, by a written certification from a veterinarian licensed by the State of Kansas, that the dog does not contain in its lineage any American Pit Bull Terrier, American Staffordshire Terrier or Staffordshire Bull Terrier.

Premises means a lot, plot or parcel of land including structures located thereon.

Public nuisance means any repeated acts of an animal that irritates, perturbs or damages rights and privileges common to the public or enjoyment of private property or indirectly injures or threatens the safety of a member of the general public. Such actions include, but are not limited to:

1. Damage to public or private property including, but not limited to: breaking, bruising, tearing up, digging up, crushing or injuring any lawn, garden, flower bed, plant, shrub or tree in any manner.

2. Rips any trash bag or tips any solid waste collection container which spills or scatters trash, debris, refuse or waste.

3. Repeatedly defecates upon any public place or upon premises not owned or controlled by the animal's owner, keeper or harborer, provided that this definition shall not apply where such waste is immediately removed and properly disposed of by the owner of such animal.

4. Allowing or permitting an animal to be maintained in an unsanitary condition so as to be offensive to sight or smell.

5. Causes a condition which endangers public health or safety.

Ratites means all creatures of the ratite family that are not indigenous to this state, including, but not limited to, ostriches, emus and rheas.

Refuse means all putrescible and non-putrescible waste materials (except animal body discharges) such as trash, garbage, dead animals, paper, cardboard, tin cans, grass, wood, metals, salvage or inert materials produced or accumulated in connection with the maintenance of domestic animals.

Retail means any transaction where the animal is sold to the final consumer.

Running at large means any animal, with the exception of a cat, that is not confined within a fenced enclosure or shelter capable of preventing the animal from exiting at will, unless under the control of a person, either by lead, cord, rope or chain; provided that an animal may be considered confined if it is on a leash, rope or chain which is sufficient to keep the animal on the premises where picketed in accordance with section 6.04.040(e)(14). For the purposes of this chapter, an animal shall not be considered running at large when on the owner's property and confined by an operating electronic fencing system when the premises are clearly and prominently marked to show the existence of the electronic fencing system and the animal is equipped with the necessary and operating components of the system required to confine the animal to the owner's property. Further, a dog shall not be considered to be running at large when it is unleashed inside a dog park owned or operated by the City of Wichita.

Sale or *offer for sale* includes transfers by sale or exchange.

Sanitary means clean, free from waste and free from infectious influences.

Secure enclosure means a locked enclosure or structure measuring at least six feet in width, 12 feet in length, and six feet in height, a secure top attached to the sides which provides proper protection from the elements for the dog, is suitable to prevent the entry of young children, and is designed to prevent the animal from escaping while on the owner's property, which has been inspected and approved by Animal Services Officer. Such enclosure shall have a concrete or wire floor to prevent the dog from digging out or escaping from the enclosure.

Stockyard means a public terminal stockyard posted by the packers and stockyards divisions of the United States Department of Agriculture.

Unaltered means an animal which has not been surgically sterilized.

Veterinarian means a doctor of veterinary medicine licensed by the State of Kansas.

Veterinarian hospitals mean a domestic animal hospital operated by a doctor of veterinary medicine, licensed by the state.

Vicious propensity means a known tendency or disposition to approach any individual or domestic animal in an attitude of attack when there is no provocation.

Waste or *wastes* means manure or the bodily discharge of all domestic animals, spilled feed or unconsumed feed and liquid cleaning wastes, including suspended solids resulting from cleaning operations.

Wild animal means any species that has established breeding populations currently within North America, which is self-sufficient in the natural environment, and the majority of whose populations are not domesticated.

(Ord. No. 47-695, § 1, 12-4-07; Ord. No. 48-300, § 1, 3-24-09; Ord. No. 48-583, § 1, 12-22-09; Ord.

No. 49-010, § 1, 5-24-11; Ord. No. 49-010(Corr. Copy), § 1, 7-11-11; Ord. No. 50-600, § 1, 10-10-17; Ord. No. 52-536, § 1, 8-20-24)

Sec. 6.04.020. Enforcement of this Title.

(a) The Wichita Police Department and members of the City of Wichita's Animal Control and all designees of Chief of Police of the City of Wichita shall be responsible for the enforcement of this title and is hereby authorized to make investigations and to serve notices and orders as necessary for enforcement of the provisions of this title, to pick up animals on public or private property, and to arrange and pay for confinement of such animals at an animal shelter in accordance with K.S.A. 47-1701, et seq., and amendments thereto, and to operate an animal shelter to aid the department's animal control functions, including charging the owner of any animal confined for the care thereof, and to seek reimbursement from the owner of any animal confined, whether the confinement is at the animal shelter operated by the department or by a third party. Such authority shall include, subject to budgetary control, authorization for formalization of an agreement with such animal shelter.

(b) Animal Control Officers and all members of the Wichita Police Department shall have the authority to sign complaints and serve notices to appear before the Municipal Court upon any person when the Animal Control Officer or Police Officer has probable cause to believe such person has or is violating a section of this Code. Such officer shall have the authority to issue, suspend or revoke licenses and permits as provided for by this title.

(c) In addition to fees provided for in this title, the Chief of Police of the City of Wichita or designee is authorized to establish a schedule of user or service fees and collect such fees for services performed, including, but not limited to:

1. Animal shelter boarding and animal redemption;
2. Shelter services provided to other jurisdictions;
3. Animal care and control items sold at the Wichita Animal Shelter;
4. Adoption fees for the adoption of animals from the Wichita Animal Shelter.
5. Research and copying of documents not subject to the Kansas Open Records Act requests;
6. Inspection services provided to other jurisdictions.
7. Enter into interlocal agreements with other jurisdictions to provide Animal Control Services.

(d) The Chief of Police of the City of Wichita or designee is authorized to adjust fees during instances of moratoriums, special events or special adoption programs.
(Ord. No. 47-695, § 2, 12-4-07; Ord. No. 48-300, § 2, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 2, 5-24-11; Ord. No. 49-010(Corr. Copy), § 2, 7-11-11)

Sec. 6.04.025. Trapping of abandoned cats.

(a) Abandoned cats located within the corporate limits of the city are declared a nuisance and menace to the public health which is to be abated by the Wichita Police Department.

(b) A cat that has reverted to a feral state or has no collar is presumed to be an abandoned cat. Such cat may be confined by a person on whose property such cat strays for pick-up by the City of Wichita's Animal Control, or be trapped by an Animal Control Officer.

(c) Animal Control Officers may utilize humane-type cage traps to apprehend any abandoned cat with such humane trap being placed by the Animal Control Officer on public property or private property with the consent of the owner.

(d) Animal Control Officer shall transport cats that have been trapped, picked up, confined or relinquished to the animal shelter with such cat being impounded as provided by K.S.A. 47-1701 et seq., as amended, unless sooner redeemed by an owner upon payment of a service charge and boarding fee to the city. Identification information, if available on a trapped cat,

shall be utilized by the Animal Control Officer or animal shelter to inform such owner that his cat has been impounded.
(Ord. No. 48-300, § 3, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 3, 5-24-11; Ord. No. 49-010(Corr. Copy), § 3, 7-11-11)

Sec. 6.04.035. Cruelty to animals.

(a) It is unlawful for any person to commit the crime of cruelty to animals. Cruelty to animals is:

(1) Knowingly or recklessly, but not maliciously killing or causing physical injury to any animal;

(2) Knowingly abandoning or leaving any animal in any place without making provisions for its proper care;

(3) Having physical custody of any animal and knowingly failing to provide adequate care, such as food, potable water, protection from the elements, opportunity for exercise and other care as is needed for the health or well-being of such kind of animal, or to carry any animal in or upon any vehicle in a cruel or inhumane manner. Any animal kept outside shall be provided with a structurally sound, weatherproof enclosure, large enough to accommodate the animal;

(4) Every operator of a motor vehicle or other self-propelled vehicle upon the streets and ways of the city, except emergency vehicles, shall immediately, upon injuring, striking, maiming or running down any animal, notify the Police Department (911) of the location, and the Police Department will notify such agency as may be providing injury services;

(5) For any person to have, keep or harbor any animal which is infected with any dangerous or incurable and/or painfully crippling condition except as hereinafter provided. A municipal court judge may order a person convicted under this section to turn the animal involved over to the animal shelter. All such animals taken by animal control may be destroyed humanely as soon thereafter as is conveniently possible. This section shall not be construed to include veterinary hospitals or animals under active veterinary care;

(6) Intentionally using a wire, pole, stick, rope or any other object to cause any equine, bovine or swine to lose its balance or fall, for the purpose of sport or entertainment.

(7) It is unlawful for any person to leave an animal in a standing or parked vehicle under conditions constituting an imminent threat to the safety of the animal. The Animal Control Officer may remove and impound an animal left under what reasonably appears to be such conditions. Removal and impoundment of an animal shall not limit the Animal Control Officer's ability to pursue charges or animal cruelty in Municipal Court.

(8) It is unlawful for any person to subject any animal to inhumane treatment, as defined by Section 6.04.010 of this Code.

(b) The provisions of this section shall not apply to:

(1) Normal or accepted veterinary practices;

(2) Bona fide experiments carried on by commonly recognized research facilities;

(3) Rodeo practices as described in the Professional Rodeo Cowboys Association Rules Governing the Care and Treatment of Livestock in PRCA Sanctioned Rodeos;

(4) The humane killing of an animal which is diseased or disabled beyond recovery for any useful purpose, or the humane killing of animals for population control, by a licensed veterinarian at the request of the owner thereof, or by any officer or agent of an incorporated humane society, the operator of an animal shelter or pound, a local or state health officer or a licensed veterinarian three business days following the receipt of any such animal at such society, shelter or pound.

(5) With respect to livestock, normal or accepted practices of animal husbandry, including the normal and accepted practices for the slaughter of such animals for food or by-products and the careful or thrifty management of one's herd or animals, including animal care practices common in the industry or region;

(6) The killing or injury of any animal by any person at any time which may be found outside of the owned or rented property of the owner or custodian of such animal and which is found injuring or posing a threat to any person, livestock or property;

(7) An Animal Control Officer trained in the use of a tranquilizer gun, using such gun with the appropriate dosage for the size of the animal, when such animal is vicious or could not be captured after reasonable attempts using other methods;

(8) Laying an equine down for medical or identification purposes;

(9) Normal or accepted practices of pest control, as defined in K.S.A. 2-2438a and amendments thereto; or

(10) Accepted practices of animal husbandry pursuant to regulations promulgated by the United States Department of Agriculture for domestic pet animals under the Animal Welfare Act, and amendments thereto.

(c) As used in this section,

(1) *equine* means a horse, pony, mule, jenny, donkey, or hinny.

(2) *bovine* means a cow, calf, bull or steer.

(3) *swine* means a pig, shoat, piglet, boar, barrow, gilt or sow.

(d) Cruelty to animals as described in this section is a misdemeanor punishable by a fine or not more than $2,500.00 and/or imprisonment of not more than 12 months, or any combination of such fine and imprisonment.
(Ord. No. 47-695, § 3, 12-4-07; Ord. No. 48-300, § 5, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 4, 5-24-11; Ord. No. 49-010(Corr. Copy), § 4, 7-11-11; Ord. No. 49-257, § 1, 4-10-12)

Sec. 6.04.036. Cruelty complaint—Municipal Court hearing.

(a) An Animal Control Officer or the representative of a duly incorporated humane society may, if a report has been made which shows evidence of cruelty or inhumane treatment of an animal against an individual before or after the individual has been convicted of such violation, sign an affidavit petitioning the Municipal Court Judge to immediately take custody and control of such animal if it appears to the Animal Control Officer or the representative of the duly incorporated humane society that it would be in the best interest of such animal to have the Municipal Court seize such animal.

(b) The Municipal Court Judge, upon receiving such affidavit and petition, shall set the matter for hearing within five business days from the date that the petition and affidavit are filed. If it appears from the affidavit that there is an imminent threat to the life of the animal, then the Municipal Court may set the hearing as soon as practical. The Municipal Court shall direct notice of the violation be served on the owner or harborer of such animal by serving such person with a summons to appear and a copy of the affidavit filed with the court. This summons and affidavit shall be served in the same manner as is required for serving a Notice to Appear under K.S.A. 12-4207.

(c) The Municipal Court Judge, after a hearing has been held, may order that an animal be seized and held in the Animal Shelter of the City of Wichita, or placed in the custody of a duly incorporated humane society if the following findings are made:

1. The person summoned to appear is the owner or harborer of the animal in question;

2. That there is probable cause to believe that a violation of any provision of section 6.04.035 has occurred or is occurring; and

3. Based upon that violation, it appears that it would be in the best interest of the

animal, to remove that animal from the control and custody of the owner or harborer.

(d) If the Municipal Court Judge orders that such animal shall be seized and brought into custody, then the Animal Control Officer or a representative of a duly incorporated humane society shall take such animal into custody and shall inspect such animal, care for or treat such animal or place such animal under the care of a licensed veterinarian for treatment, boarding or other care. If the Supervisor of Animal Control determines, based on information from his or her staff, an officer of a humane society, or a licensed veterinarian, that the animal is diseased or disabled beyond recovery for any useful purpose, then such animal may be destroyed humanely as soon thereafter as is conveniently possible, subject to the right of appeal stated below in subsection (i). The City of Wichita shall not be responsible for any costs that are incurred by an incorporated humane society as to the care of an animal placed in the custody of a humane society or as to treatment of an animal under the custody of a humane society received from a licensed veterinarian.

(e) If the owner or harborer of such an animal is convicted of violating any provision of section 6.04.035 of this Code and if the Municipal Court Judge finds that such animal would in the future be subjected to treatment or actions by the owner or harborer which violates any provision of section 6.04.035, such animal shall not be returned to or remain with such person. Such animal may be turned over to the animal shelter, humane society or licensed veterinarian for sale or other disposition.

(f) Expenses incurred for the care, treatment or boarding of any animal taken into custody pursuant to subsection (d) pending prosecution of the owner or harborer of such animal for cruelty to animals shall be assessed to the owner or harborer as a cost of the case if the owner or harborer is adjudicated guilty of such crime.

(g) If an Animal Control Officer has taken possession of the animal, the Animal Control Officer may petition the Municipal Court to be allowed to place the animal for adoption or euthanize the animal after five business days following notification to the owner or harborer of such animal, unless the owner or harborer files a renewable cash or performance bond with the Clerk of the Municipal Court where the animal is being held, in an amount equal to not less than the cost of care and treatment of the animal for 30 days. If the animal remains in the custody of the animal shelter for a period exceeding 30 days, after written notice to the owner or harborer, the Supervisor of Animal Control or designee may request the Municipal Court Judge to increase the amount of the bond to cover the costs of care for the animal.

(h) If the owner or harborer of such animal is adjudicated not guilty or if the Municipal Court Judge, after an adjudication of guilt is made, finds that such animal should be returned, such person may redeem such animal within seventy-two hours. If such animal is not redeemed within 72 hours, then the entity operating the animal shelter caring for the animal shall have ownership of such animal and shall determine the disposition of such animal. Any proceeds derived from such sale or disposition shall be paid directly to the treasurer of the entity operating the animal shelter, and no part of such proceeds shall accrue to any individual.

(i) An order issued by the Municipal Court Judge under this section may be appealed to the district court pursuant to the provisions contained in K.S.A. 60-2101(d) and amendments thereto. (Ord. No. 47-695, § 4, 12-4-07; Ord. No. 48-300, § 5, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 5, 5-24-11; Ord. No. 49-010(Corr. Copy), § 5, 7-11-11)

Sec. 6.04.040. Control and protection of animals in general.

(a) Any owner, keeper or harborer of any animal, other than cats, found running at large within the corporate limits of the city shall be deemed guilty of a misdemeanor. Knowledge or intention on the part of the owner, keeper or harborer shall not be elements of this offense. An Animal Services Officer may seize, impound and cause to be destroyed any such animal, including those animals not within the defini-

tions of the Kansas Pet Animal Act, using the procedures set out at K.S.A. 47-1710. The Supervisor of Animal Services may return the animal to its rightful owner, keeper or harborer upon request and may require the payment of a service charge and a boarding fee for days spent in confinement at the shelter prior to return of the animal. If any animal impounded for any reason is determined by the Animal Services Officer to require confinement separate from other like animals in order to protect the health and wellbeing of that animal, staff, the public, or other animals being housed at the animal holding facility due to any aggressive behavior and/or any disease or medical conditions, the boarding fee for such animal shall be twice the normal boarding fee established by the animal shelter.

Any person who is convicted of the charge of animal running at large shall be punished with a maximum fine not to exceed $1,000 and/or a jail sentence not to exceed 6 months. Mandatory minimum fines are as set forth below:

(1) Upon a first conviction, a fine of not less than $100.00 nor more than $1,000.00 shall be assessed.

(2) Upon a second conviction a fine of not less than $200.00 nor more than $1,000.00 shall be assessed.

(3) Upon a third or subsequent conviction, a fine of not less than $300.00 nor more than $1,000.00 shall be assessed and the owner must appear in Municipal Court.

(b) In addition to the penalties set forth in paragraph (a), the owner, keeper or harborer of any unaltered dog that has been impounded for running at-large shall be required to:

(1) Have an identification microchip implanted in the dog traceable to the current owner, and registered with the City of Wichita; and

(2) Have the dog surgically sterilized by a licensed veterinarian within thirty days of redemption of said dog, at his or her own expense. It shall be a violation of this ordinance to fail to have the dog surgically sterilized, or provide proof from a licensed veterinarian that said dog has previously been surgically sterilized, or has been surgically sterilized and microchipped within thirty days after redemption of said dog as indicated in this ordinance; or

(3) The owner, keeper or harborer may maintain the aforementioned dog intact by paying an additional unaltered animal fee, the amount of which shall be established by the Supervisor of Animal Services or designee, to redeem such dog from the Animal Shelter. Such dog may be maintained intact provided that the dog is not found to be running at large on any subsequent occurrence within the dog's lifetime.

(4) For any dog required to be surgically sterilized, the Supervisor of Animal Services shall collect payment for and issue a spay/neuter voucher at the time of the animal's redemption, and the owner, keeper or harborer shall provide documentation of the sterilization upon completion. Such voucher shall remain valid for thirty (30) days. Any owner, keeper or harborer failing to provide documentation of the sterilization procedure within thirty days of impoundment shall be deemed guilty of a misdemeanor. If the dog's owner had a valid dog license, such owner shall not receive a refund of the licensing fees paid for the altering or micro chipping of the dog. Upon the renewal of the license, the amount will be changed to reflect the altering and micro chipping of the dog.

(c) Upon the second occurrence of any intact dog impounded by Animal Services for running at large, the owner, keeper or harborer of such dog shall be required to have the animal surgically sterilized by a licensed veterinarian within thirty days of redemption of said dog at his or her own expense. For any animal required to be surgically sterilized, the Supervisor of Animal Services shall collect payment for and issue a spay/neuter voucher at the time of the animal's redemption, and the owner, keeper or harborer shall provide documentation of the sterilization upon completion. Any owner, keeper or harborer

failing to provide documentation of the sterilization procedure within thirty days of impoundment shall be deemed guilty of a misdemeanor.

(d) Animals which are kept on the premises of any pet store shall not be allowed, by the storeowner or any employee, to run at large inside the store or on the external premises of the pet store during business hours, and no person shall allow any animal under their care or control to run at large on the premises of any store during business hours. This provision shall not apply to animals participating in supervised training classes within an enclosed area of the store.

(e) Exceptions. In addition to exceptions enumerated in 6.04.218, animals may be permitted to run at large by authority of any federal, state or local law enforcement agency or by authority of a Department Head of the City of Wichita for official purpose or use so long as the animal is under the control of a trained handler.

(f) It is unlawful for any person to:

(1) Kill any squirrel or songbird within the corporate limits of the city, provided that it shall be permissible for Animal Services Officers or a person who has a wildlife control permit issued by the Kansas Department of Wildlife, Parks and Tourism to kill squirrels, skunks, birds, or other animals that have become so numerous as to cause destruction or nuisance to property or in the event of disease occurring among such squirrels, skunks, birds, or other animals that may be considered contagious to human beings;

(2) Interfere with or molest an animal used by the police or fire department of the city or other governmental agency or department in the performance of its lawful functions and duties or interfere with the handler of such animal in such a way that the handler is deprived of or inhibited in his control of such animal;

(3) Own, maintain, or have in his or her possession with the intent to use in the unlawful conduct of animal fighting, animal fighting paraphernalia;

(4) Own, keep or harbor on one's premises any animal, by a person convicted of animal fighting, pursuant to K.S.A. 21-6414 or convicted of cruelty to animals as defined by Section 6.04.035 of the Code of the City of Wichita or K.S.A. 21-6412 and amendments thereto;

(5) Own, keep or harbor any animal, which, by loud, frequent, excessive or habitual barking, howling, yelping or other noise or action, unreasonably interferes with the use or enjoyment of property of any person of reasonable sensibilities residing in or occupying the area;

(6) Allow any unspayed female dog in season to be in an area where there is access by an unconfined male dog;

(7) Allow an unconfined male dog in an area where there is access to any unspayed female dog in season;

(8) Own, keep or harbor a dog over five months of age within the corporate limits of the city without such dog having a current vaccination against rabies performed by a veterinarian, and the owner thereof securing an annual license for such dog issued by the City Treasurer. The Chief of Police or designee shall have the authority to establish appropriate licensing fees for such animals;

(9) Own, keep or harbor a cat over five months of age within the corporate limits of the city without such cat having a current vaccination against rabies performed by a veterinarian licensed by the State of Kansas;

(10) Sell or offer for sale, barter or give away any living baby chicks, rabbits, ducklings, or other fowl except pigeons, under two months of age or to sell, offer for sale, barter, give away or display animals or fowl as specified in this subsection which have been dyed, colored or otherwise treated so as to impart to them an artificial or unnatural color; provided, however, that this section shall not be construed to prohibit the sale of animals or fowl, as

specified in this subsection, in proper brooder facilities by hatchers or persons engaged in the raising and selling of such animals and fowls for recognized animal husbandry or commercial purposes;

(11) Continuously picket a dog for more than one continuous hour, except that picketing of the same dog may resume after a hiatus of three continuous hours. A dog may not be picketed for a total time period exceeding three hours, in any twenty-four-hour period.

For the purpose of picketing a dog, a chain, leash, rope, or tether shall be at least 10 feet in length.

a. A chain, leash, rope, collaring device, tether, or any assembly or attachments thereto used to picket a dog shall not weigh more than one-eighth (⅛) of the animal's body weight, or due to weight, inhibit the free movement of the animal within the area picketed;

b. Dogs shall be picketed in such a manner as to prevent injury, strangulation, or entanglement on fences, trees, or other man made or natural obstacles;

c. It is unlawful to attach chains or other tether restraint implements directly to a dog without the proper use of a collar, harness, or other device designed for that purpose and made from a material that prevents injury to the animal.

(12) Permit or allow any animal to be a public nuisance;

(13) Own, keep or harbor more animals than is permitted by the requirements of this title; and

(14) Entering or remaining on premises where the unlawful conduct of animal fighting is occurring whether the person knows or has reason to know that animal fighting is occurring on the premises.

(15) Own, keep or harbor a dog or cat over the age of five months that has not been microchipped, unless a veterinarian has declared a microchip to be dangerous or not in the best interest of the animal.

(Ord. No. 47-695, § 5, 12-4-07; Ord. No. 48-300, § 6, 3-24-09, eff. 7-1-09; Ord. No. 48-583, § 2, 12-22-09; Ord. No. 49-010, § 6, 5-24-11; Ord. No. 49-010(Corr. Copy), § 6, 7-11-11; Ord. No. 49-257, § 2, 4-10-12; Ord. No. 50-405, § 1, 1-10-17; Ord. No. 50-600, § 2, 10-10-17; Ord. No. 51-094, § 1, 8-20-19; Ord. No. 52-536, § 2, 8-20-24)

Sec. 6.04.045. Dangerous dog—Determination by Supervisor of Animal Services.

(a) The Supervisor of Animal Services or designee, based on the facts available, may declare a dog to be dangerous or potentially dangerous based on any one of the following guidelines:

1. The nature of any attack committed or wound inflicted by the animal and the need to put the community and owner on notice that the dog has displayed the propensity to inflict wounds or engage in aggressive or menacing behavior; or

2. The past history and seriousness of any attacks or wounds inflicted by the animal; or

3. The dog has exhibited an aggressive and vicious propensity toward persons or domestic animals and is capable of inflicting serious physical harm or death or damage to property; or

4. The conditions under which the animal is kept and maintained which could contribute to, encourage, or facilitate aggressive behavior, such as, but not limited to, allowing the animal to run at large, tethering in excess of legal limits as defined in this chapter, physical property conditions, presence of young children, the elderly, or infirm within or residing near the home, any past violations of this chapter, and/or failing to provide proper care, food, shelter, or water; or

5. Whether the dog was owned or harbored primarily or in part for the purpose of dog fighting, or any dog trained for dog fighting;

6. In determining whether to deem a dog dangerous, the factfinder may consider potentially mitigating circumstances including, but not limited to, whether the bite or scratch was made in a playful manner without any sign of aggression or whether it was a response to pain, abuse, criminal trespass, or intentional provocation;

7. Prior to a determination that a dog is dangerous or potentially dangerous, Animal Services shall notify, by mail, email, telephone or in-person, the owner or harborer of a dog under consideration, that such dog is potentially subject to a dangerous dog determination. The notice shall outline the process set forth in the ordinance and the factors utilized to make such a determination. The owner/harborer may submit a written response of any mitigating circumstances or facts that the owner/harborer deems relevant to the determination, including witness statements and any other written evidence. Any response, evidence or other documents must be received by Animal Services within 72 hours of the notice to the owner/harborer. The 72 hour time period will include weekends and holidays.

(b) If a dog is deemed dangerous or potentially dangerous, the level shall be specified based on the nature of the attack or wound combined with the totality of circumstances. The guidelines per level are advisory in nature and shall not bind the factfinder to a particular level if the totality of circumstances warrants a higher or lower level.

1. Potentially Dangerous: A minor bite, nip, scratch or abrasion where skin contact or nicks may be evident but no vertical puncture wound exists; or an attack, without an actual bite, which inhibits movement and/or otherwise qualifies as an "attack" pursuant to Section 6.04.010.

2. Level 1: Any attack as defined by Section 6.04.010 or bite in an aggressive manner that pierces the skin; or any attack or bite subsequent to being deemed dangerous or potentially dangerous on a prior occasion.

3. Level 2: Any bite that requires medical attention; or any bite that includes deep punctures or bruising even when no medical attention is sought; or any attack or bite incident involving predatory aggressive behavior toward a human or other domesticated animal while running at large, including, but not limited to: chasing, stalking, circling, inhibiting movement, predatory or aggressive pack behavior; or any bite subsequent to being deemed dangerous or potentially dangerous on a prior occasion.

4. Level 3: Any severe bite to a human requiring significant medical attention, wound closure, or other emergency medical attention; or an attack or bite with a demonstrated history of bites or attacks; or repeated non-compliance with Animal Services requirements that indicates a risk to the public; or circumstances otherwise indicating a pronounced and obvious risk to public health or safety.

(c) If a dog is deemed dangerous or potentially dangerous, conditions may be required of the dog's owner or harborer to guarantee the safety of the public including, but not limited to, attendance at an approved education course, canine aggression workshop or management plan, sterilization, liability insurance, or safety equipment such as a mandatory enclosure or enhanced fencing.

(d) If a dog is deemed potentially dangerous or dangerous, the following conditions are minimum requirements that shall be ordered at each level:

1. Potentially dangerous requirements: mandatory signage and registration in accordance with Sections 6.04.047 and 6.04.048 and microchipping pursuant to Section 6.04.046(e). If there are no further incidents or indications of aggression,

either charged in court or uncharged, and all requirements have been met, upon application by the owner to the Supervisor of Animal Services, the potentially dangerous dog designation and all restrictions that accompany it, may be removed after 24 months. The decision to lift the designation is at the discretion of the Animal Services Supervisor or designee and may be appealed to an administrative hearing before a Municipal Court judge.

2. Level 1 and Level 2: mandatory signage and registration in accordance with Sections 6.04.047 and 6.04.048, microchipping pursuant to Section 6.04.046(e), and a letter of acknowledgement of dangerous dog status from a landlord if one exists. If there are no further incidents or indications of aggression, either charged in court or uncharged, and all requirements have been met, upon application by the owner to the Supervisor of Animal Services, the Level 1 Dangerous Dog designation and all restrictions that accompany it, may be removed after 36 months. The decision to lift the designation is at the discretion of the Animal Services Supervisor or designee and may be appealed to an administrative hearing before a Municipal Court judge. The designation may never be removed from a Level 2 determination.

3. Level 3: Euthanasia is mandatory.

(e) A dog that is harbored or maintained outside the city limits of Wichita, but committed acts within the city limits of Wichita that would deem it dangerous or potentially dangerous, may be deemed dangerous or potentially dangerous and any orders made pursuant to that determination will apply if the dog enters the city limits of Wichita.

(f) Dangerous dog—Notification procedure. If the Supervisor of Animal Services or a designee determines that a dog is dangerous or potentially dangerous, the disposition will be determined based on the facts available and consistent with the provisions of this chapter. The Supervisor of Animal Services or a designee may impound the dog and shall notify the owner of any such determination by personal service, residential service at the person's usual place of abode by leaving a copy of the notice with some person of suitable age and discretion residing therein, or by certified mail addressed to the owner's last known address, or addressed to the location where the dog is maintained. If service is by certified mail Animal Services shall request return receipt with instructions to the delivering postal employee to show to whom delivered, the date of delivery, and address where delivered. Service of process by certified mail shall be considered obtained upon the delivery. If the certified mail envelope is returned with an endorsement showing refusal of delivery, the Supervisor of Animal Services or designee shall send a copy of the notice to the defendant by ordinary, first-class mail. Service shall be considered obtained upon the mailing of this additional notice by first-class mail.

(Ord. No. 50-600, § 3, 10-10-17; Ord. No. 51-639, § 1, 9-28-21; Ord. No. 52-536, § 3, 8-20-24)

Editor's note—Ord. No. 50-600, § 3, adopted Oct. 10, 2017, repealed the former § 6.04.045, and enacted a new § 6.04.045 as set out herein. The former § 6.04.045 pertained to dangerous dog—determination—notice and hearing—confinement or destruction and derived from Ord. No. 47-695, § 6, adopted Dec. 4, 2007; Ord. No. 48-300, § 7, adopted Mar. 24, 2009, effective July 1, 2009; Ord. No. 48-583, § 3, adopted Dec. 22, 2009; Ord. No. 49-010, § 7, adopted May 24, 2011; Ord. No. 49-010(Corr. Copy), § 7, adopted July 11, 2011).

Sec. 6.04.046. Dangerous dog—Failure to comply with orders.

(a) It is unlawful for an owner, keeper or harborer of a dangerous dog to permit the dog to be outside secure enclosure or home unless the dog is restrained by a substantial chain or leash and under physical restraint by a responsible person who is 18 years of age or older and possesses sufficient strength for physical control of the animal. In such event, the dangerous dog shall be securely muzzled and restrained with a chain or leash not exceeding four feet in length, and shall be under the direct control and supervision of the owner, keeper or harborer of the dangerous dog. The muzzle shall be made and used in a manner that will not cause injury to

the dog or interfere with its vision or respiration, but shall prevent it from biting any human or animal.

(b) Secure or approved enclosures required as a condition must be approved by the Supervisor of Animal Services or designee and be adequately lighted and kept in a clean and sanitary condition.

(c) The owner, keeper or harborer shall allow the access to the property where the dangerous animal is being harbored to facilitate inspections and insure compliance for the duration of the life of the animal or duration of the designation.

(d) If the owner, keeper or harborer of a dog that has been determined to be dangerous or potentially dangerous is required to have the animal surgically sterilized by a licensed veterinarian, it shall be completed within thirty days of the dangerous animal determination, at his or her own expense. For any animal required to be surgically sterilized, the Supervisor of Animal Services or designee shall collect payment for and issue a spay/neuter voucher at the time of the animal's redemption, and the owner, keeper or harborer shall provide documentation of the sterilization upon completion. If the dog's owner had a valid dog license, such owner shall not receive a refund of the licensing fees paid for the altering or microchipping of the dog. Upon the renewal of the license, the amount will be changed to reflect the altering and micro chipping of the dog.

(e) The owner, keeper or harborer of any dog that has been determined to be dangerous or potentially dangerous shall be required to have a microchip, traceable to the dangerous dog and the current owner, inserted into the dog and copies of documentation of said procedure available for review by the Supervisor of Animal Services. If the dog's owner had a valid dog license, such owner shall not receive a refund of the licensing fees paid for the altering or microchipping of the dog. Upon the renewal of the license, the amount will be changed to reflect the altering and microchipping of the dog.

(f) It is unlawful for anyone having prior felony convictions of Crimes Against Persons, Sex Offenses, Crimes Affecting Family Relationships and Children, and Crimes Involving Controlled Substances as defined in Chapter 21 of the Kansas Statutes Annotated to possess, harbor, own or reside on any premises with a dog deemed dangerous level 1 or 2 or 3.

(g) It shall be unlawful for any person to:

(1) Harbor, keep or maintain a dangerous dog level 1, 2 or 3 on property not owned by the person without the written consent of the landowner or for purposes of care or boarding; or

(2) Sell, barter or give away to another person a dog which has been deemed dangerous level 1, 2 or 3; or

(3) Own, keep or harbor more than two dogs which have been declared dangerous by this title; or

(4) Transfer ownership or long-term care of a dog deemed potentially dangerous to any person without a written acknowledgement of the court orders signed by the person receiving the potentially dangerous dog and filed with the Supervisor of Animal Services. The person receiving the dog shall sign a document acknowledging the dog is deemed potentially dangerous and agree to the requirements that accompany that designation and file such document with the Supervisor of Animal Services.

(5) After acknowledging ownership or long-term care of a dog deemed potentially dangerous, fail to comply with orders of fact-finder who deemed the dog potentially dangerous.

(6) Fail to comply with boarding requirements: Once released by Animal Services, any dog deemed dangerous level 1 or 2 shall be cared for by a licensed veterinarian or boarding facility in the event that short term boarding or housing becomes necessary. It may also be maintained in the temporary care of an animal behaviorist professional who is tasked with

evaluating the dog's behavior. In the event of the owner's or harborer's absence, a dangerous dog may not be cared for by persons living outside the household other than a licensed veterinarian, animal behaviorist professional, training or boarding facility.

(h) Should a previously determined dangerous or potentially dangerous dog be found running at large attack or inflict injury upon any person or domesticated animal or a previously determined dangerous or potentially dangerous dog be found running at large in violation of this section and the owner or harborer has not complied with the orders of the dangerous dog orders, the Judge of the Municipal Court shall, in addition to any other penalty provided in section 6.04.190, order the dog destroyed. Provided, however, the Judge of the Municipal Court may, at his or her discretion, only for the question of ordering the dog destroyed consider whether the attack or injury was sustained by a person or animal who, at the time, was committing a criminal trespass or other tort upon the premises of the owner of the dog, or was tormenting, abusing, or assaulting the dog, or has, in the past, been observed or reported to have tormented, aroused, or assaulted the dog or was committing or attempting to commit a crime.

(i) Failure to comply with any orders of the Supervisor of Animal Services, designee or any factfinder related to a dog being deemed dangerous or potentially dangerous is a misdemeanor and is punishable in accordance with Section 6.04.190(a).

(Ord. No. 50-600, § 4, 10-10-17; Ord. No. 52-536, § 4, 8-20-24)

Editor's note—Ord. No. 50-600, § 4, adopted Oct. 10, 2017, repealed the former § 6.04.046 and enacted a new § 6.04.046 as set out herein. The former § 6.04.046 pertained to dangerous dog—failure to confine—destruction and defenses and derived from Ord. No. 47-695, § 7, adopted Dec. 4, 2007; Ord. No. 48-300, § 8, adopted Mar. 24, 2009, effective July 1, 2009; Ord. No. 48-583, § 4, adopted Dec. 22, 2009; Ord. No. 49-010, § 8, adopted May 24, 2011; Ord. No. 49-010(Corr. Copy), § 8, adopted July 11, 2011.

Sec. 6.04.047. Signs required.

The owner of a dog deemed dangerous or potentially dangerous shall display in a prominent place at the entrance to his or her premises where the dog is housed a warning sign purchased from the City of Wichita Department of Animal Services indicating there is a dangerous dog on the premises. A sign is also required to be posted on the secure enclosure in which the animal is harbored. The Supervisor of Animal Services or designee may require additional signs if deemed necessary based on the layout of the property. Failure to post the required signs is a misdemeanor and is punishable in accordance with Section 6.04.190(a).

(Ord. No. 47-695, § 8, 12-4-07; Ord. No. 49-010, § 9, 5-24-11; Ord. No. 49-010(Corr. Copy), § 9, 7-11-11; Ord. No. 50-600, § 5, 10-10-17)

Sec. 6.04.048. Registration and insurance.

(a) The owner, keeper or person harboring a dangerous or potentially dangerous dog shall annually register the dog with the City of Wichita on such forms designated by Wichita Animal Services or designee. The owner, keeper or harborer shall complete an application and shall pay a $50.00 annual registration fee for a potentially dangerous dog to the City of Wichita or a $300 annual registration fee for a dog deemed dangerous level 1 or 2 and shall pay all costs associated with any other requirements ordered as a result of the dangerous dog designation. If the dog's owner had a valid dog license, such owner shall not receive a refund of the licensing fees paid for the altering or microchipping of the dog. Upon the renewal of the license, the amount will be changed to reflect the altering and microchipping of the dog.

(b) The owner, keeper or person harboring a dog deemed dangerous or potentially dangerous shall notify the Supervisor of Animal Services in writing a minimum of seven calendar days prior to any change in the address of the owner, keeper or person harboring the dog or the location of the dangerous dog and arrange for an inspection of the new property. Any owner, keeper or harborer of a dangerous dog who fails to comply with this provision shall be deemed guilty of a misdemeanor in accordance with Section 6.04.190(a).

(c) If the owner, keeper or person harboring a dangerous or potentially dangerous dog is required to maintain liability insurance, it shall be in the

amount of at least $100,000.00 dollars for each such dog against the potential injury or damage liabilities and hazards associated with the ownership or possession of such dog. The owner or person harboring a dangerous dog shall file with the Supervisor of Animal Services a certificate of insurance reflecting the required minimum insurance and shall notify the Supervisor of Animal Services of any changes to the insurance policy in writing within 7 calendar days of the change. Any owner, keeper or harborer who fails to comply with this provision shall be deemed guilty of a misdemeanor and punished in accordance with Section 6.04.190(a).
(Ord. No. 47-695, § 9, 12-4-07; Ord. No. 48-300, § 10, 3-24-09, eff. 7-1-09; Ord. No. 48-583, § 5, 12-22-09; Ord. No. 49-010, § 10, 5-24-11; Ord. No. 49-010(Corr. Copy), § 10, 7-11-11; Ord. No. 50-600, § 6, 10-10-17)

Sec. 6.04.050. Interference with the duty of an animal control officer.

It is unlawful for any person to:

(a) Interfere with, molest, injure or prevent the Animal Control Officer in the lawful discharge of his or her duties as herein prescribed, including interference when removing animals from private property and/or when investigating animal concerns.

(b) Provide false or misleading information to the Animal Control Officer when retrieving or claiming an animal from the shelter.

(c) Knowingly provide false or misleading information to the Animal Control Officer during the course of the Animal Control Officer's investigation into possible violations of this chapter or while performing the lawful discharge of the officer's duties.

(Ord. No. 47-695, § 10, 12-4-07; Ord. No. 49-010, § 11, 5-24-11; Ord. No. 49-010(Corr. Copy), § 11, 7-11-11; Ord. No. 50-405, § 2, 1-10-17)

Sec. 6.04.052. Restrictions on the ownership of Pit Bulls.

(a) All adult pit bulls within the City of Wichita are required to have an identification microchip implanted in the dog traceable to the current owner and registered with the City of Wichita. Such microchip information shall be included in the dog's annual license application with the City of Wichita. The owner, keeper or harborer shall pay all costs associated with the microchip procedure.

(b) It shall be unlawful for any person to own, keep or harbor an adult unaltered Pit Bull, unless such person is licensed as a dog breeder pursuant to section 6.04.155. No licensed dog breeder shall own, keep or harbor more than two unaltered adult Pit Bulls. Such dogs must be micro-chipped as required by this title. The provisions of this section shall not apply to any unaltered Pit Bull which was located within the City of Wichita as of July 1, 2009, and such dog was being utilized as: (1) a service dog to accommodate an individual with a disability recognized by the Americans with Disabilities Act, or (2) a show dog which has been certified to have been shown in a qualified show by December 31, 2009. No person shall own more than two such service dogs or show dogs, unless otherwise exempted in this title. Any person who owns such a show dog shall be required by March 31, 2010 to obtain a waiver from the Chief of Police or designee in order to retain the unaltered status of the Pit Bull. Such waiver shall be renewed on an annual basis under the guidelines specified by the Chief of Police or designee and shall cost the sum of $50.00 per waiver per year. Waivers can be revoked by the Chief of Police or designee pursuant to the provisions of 6.04.157. Any such service dog or show dog must be micro-chipped as required by this title. Sterilization of a Pit Bull described in this section, shall not be required upon certification, presented to the Supervisor of Animal Control, by a veterinarian licensed by the state of Kansas, that such sterilization would be injurious to such dog due to its health or age.

(c) It shall be unlawful for any person to own, keep or harbor more than two Pit Bulls unless otherwise exempted in this title.

(d) It shall be unlawful for more than two adult Pit Bulls, to be owned, kept, or harbored on the same premises or dwelling.

(e) Any person who owns a Pit Bull, as of July 1, 2009, shall have six months thereafter, to microchip and surgically sterilize such animal or apply for a breeder's license pursuant to this title, unless exempted under section (b) above. Sterilization of the Pit Bull shall not be required upon certification, presented to the Supervisor of Animal Control, by a veterinarian licensed by the State of Kansas that such sterilization would be injurious to such dog due to its health or age.

(f) Any person who had a current animal maintenance permit or variance for three or more Pit Bulls, at the time of passage of the ordinance shall be permitted to keep, but not replace such dogs until their number equals no more than two dogs. Such dogs must be registered, micro-chipped and surgically sterilized in accordance with this title, unless otherwise exempted within this title.

(g) Any person aggrieved by the determination of the Chief of Police or designee that a dog is a Pit Bull as defined by section 6.04.010 of this title, shall have the right to appeal such determination as set forth in section 6.04.158.

(h) The provisions of this section shall not apply to dogs which are temporarily located within the City of Wichita for participation in dog shows which are sanctioned by the American Kennel Club, United Kennel Club, the Wichita Kennel Club or the American Dog Breeders Association, or unless otherwise recognized by the Chief of Police or designee.

(i) Any individual who fails to comply with the requirements of this section shall be guilty of a misdemeanor.
(Ord. No. 48-300, § 10, 3-24-09, eff. 7-1-09; Ord. No. 48-583, § 6, 12-22-09; Ord. No. 49-010, § 12, 5-24-11; Ord. No. 49-010(Corr. Copy), § 12, 7-11-11)

Sec. 6.04.055. Animals prohibited—Exceptions.

It is unlawful for any person to have any animal at any festival or community event authorized under a permit issued pursuant to the City Code and occurring within the city, unless such animal is a specially trained service dog and actually in the control of the disabled person. For purposes of this section "festival event" means community events approved pursuant to Chapter 3.11 of the Code of the City of Wichita, and any other events held on city property wherein the City of Wichita issues a permit or license for the activity; provided, however, that such prohibition shall not apply to events where animals are required to be present as part of the event.
(Ord. No. 47-695, § 11, 12-4-07; Ord. No. 48-300, § 11, 3-24-09, eff. 7-1-09)

Sec. 6.04.058. Permitting a dangerous animal to be at large.

(a) Permitting a dangerous animal to be at large is the act or omission of the owner or custodian of an animal of dangerous or vicious propensities who, knowing of such propensities, permits such animal to go at large or keeps such animal without taking ordinary care to restrain it.

(b) Permitting a dangerous animal to be at large is a misdemeanor. Any person convicted of violating this section shall be sentenced to a term of imprisonment of not more than six months and/or a fine not to exceed one thousand dollars.
(Ord. No. 49-257, § 3, 4-10-12)

Sec. 6.04.060. Animal bite violations.

(a) No person who owns, possesses, harbors or exercises control over any animal shall do the following:

1. Permit or allow the animal to attack or bite any person or domestic animal not on the premises of such owner, keeper or harborer;
2. Permit or allow the animal to attack or bite any person or domestic animal upon the premises of the residence of such owner, keeper or harborer upon the premises of any business establishment not then open to the public. It is an affirmative defense to this paragraph if such premises are previously posted at each entrance with a prominent and conspicuous sign warning all persons of

the animal, and the animal is confined in a proper enclosure. It is also an affirmative defense to this paragraph that the attack or bite by the animal was necessary to prevent or apprehend a person engaged in committing an act of violence, robbery, theft or other crime upon the property;

3. Permit or allow the animal to attack or bite any person or animal upon the premises of any business establishment that is open to the public. It is an affirmative defense to this paragraph that the attack or bite by the animal was necessary to prevent or apprehend a person engaged in committing an act of violence, robbery, theft or other crime upon the property.

(b) For purposes of this section, the word "permit" shall mean allow or let happen. Knowledge or intention on the part of the person who owns, possesses, harbors or exercises control over the animal shall not be elements of this offense.

(c) The provisions of this section shall not apply to any law enforcement officer who uses an animal while engaged in law enforcement activities, nor to any owner, keeper or harborer of any animal which attacks or bites a person engaged in physically attacking or striking such owner, possessor or keeper or harborer.

(d) Penalties for violation of this section:

1. Upon a first conviction of any violation of the provisions of this section, a minimum fine of $500 shall be assessed.

2. Upon a second conviction of any violation of the provisions of this section, a minimum fine of $1,000 shall be assessed.

3. Upon a third or subsequent conviction, of a violation of any provisions of this section, a minimum fine of $2,500 shall be assessed.

4. In addition to the minimum fines set forth above, the Municipal Court Judge may impose a term of imprisonment not to exceed twelve months, and a fine not to exceed $2,500.

(Ord. No. 47-695, § 12, 12-4-07; Ord. No. 48-300, § 12, 3-24-09, eff. 7-1-09; Ord. No. 48-583, § 7, 12-22-09; Ord. No. 50-600, § 7, 10-10-17; Ord. No. 52-536, § 5, 8-20-24)

Sec. 6.04.070. Procedures on retention, observation and disposition of animals which have bitten persons or other animals.

(a) The owner of any animal, which has been determined by the Supervisor of Animal Control to have bitten a person or another animal shall confine the animal as directed by the Supervisor of Animal Control or surrender such animal to the Animal Shelter for rabies observation. The owner, keeper or harborer shall be responsible for the payment of any cost of such confinement and any additional fees relative to the confinement or maintenance of the animal. Any costs and/or additional fees assessed by the Chief of Police or designee shall be paid by the owner, keeper or harborer prior to the dog's release.

(Ord. No. 47-695, § 13, 12-4-07; Ord. No. 48-583, § 8, 12-22-09; Ord. No. 49-010, § 13, 5-24-11; Ord. No. 49-010(Corr. Copy), § 13, 7-11-11)

Sec. 6.04.080. Known rabid animal.

In a case of rabies exposure to domestic animals, such as, but not limited to dogs or cats, when such animal is known to be rabid or has been bitten by a rabid animal or an animal that can be assumed to be rabid using Kansas State Rabies Guidelines, the Supervisor of Animal Control may order such animal to be destroyed or confined for a period and in a manner recommended by the Compendium of Animal Rabies Control published by the National Association of State Public Health Veterinarians in a veterinary hospital, animal-care facility, or as specified by the Supervisor of Animal Control. In the case of domestic animals unvaccinated against rabies, the Supervisor of Animal Control may require post-exposure prophylaxis and 180-day confinement of such animals that have been exposed to a known rabid animal at a veterinary hospital,

an animal-care facility, or as specified by the Supervisor of Animal Control and recommended by the Compendium of Animal Rabies Control published by the National Association of State Public Health Veterinarians. The owner shall be responsible for the payment of any cost of such confinement and any additional fees relative to the confinement or maintenance of the animal, and including fees for post exposure prophylaxis and for any required testing done on the animal. The owner of any animal that is required to be tested for rabies, or any person that requests any animal to be tested, shall be responsible for paying all costs associated with the testing.
(Ord. No. 47-695, § 14, 12-4-07; Ord. No. 49-010, § 14, 5-24-11; Ord. No. 49-010(Corr. Copy), § 14, 7-11-11)

Sec. 6.04.090. Failure to confine biting animals.

It is unlawful for any person to fail to confine, fail to keep confined, or permit to run at large, any animal which has been ordered confined by the Supervisor of Animal Control for rabies observation or quarantine.
(Ord. No. 47-695, § 15, 12-4-07; Ord. No. 49-010, § 15, 5-24-11; Ord. No. 49-010(Corr. Copy), § 15, 7-11-11)

Sec. 6.04.100. Injured animal.

The owner of an injured animal taken to a veterinarian by the Supervisor of Animal Control or his or her designee is responsible for the payment of charges for veterinarian services related thereto. The owner shall reimburse the Animal Shelter for all expenditures the Supervisor of Animal Control may cause to be paid for veterinary services rendered to the owner's animal under this section.
(Ord. No. 47-695, § 16, 12-4-07; Ord. No. 49-010, § 16, 5-24-11; Ord. No. 49-010(Corr. Copy), § 16, 7-11-11)

Sec. 6.04.110. Procedure on registration, vaccination certificate and issuance of a license to keep a dog; vaccination requirements for cats and ferrets.

(a) The owner or harborer of a dog over five months old is required to annually register such dog with the City Treasurer, and to make application for and obtain a license to keep such dog as herein provided. Said license shall be valid for a period of 12 months or 36 months, depending on the length of the rabies vaccination. The owner or harborer of a dog with a three year rabies vaccination may choose a one or three year license. A refund will not be issued if the dog leaves their care or dies before the license has expired. So long as animals are not maintained for a period exceeding one hundred and eighty days, animals maintained in foster care or with a rescue organization, as defined in this title, shall not be required to be licensed until adopted or permanently placed. All dogs placed in foster care or with a rescue organization must be properly vaccinated within seven days of being placed in such foster care or rescue organization.

(b) The owner or harborer of a dog, cat or ferret over five months old is required to have such dog cat, or ferret inoculated as set forth below:

1. Inoculation must be performed by a person licensed to practice veterinary medicine in the State of Kansas.
2. Inoculation must be with a prophylactic vaccine approved by the United States Department of Agriculture and listed in the current National Association of State and Public Health Veterinarian's Compendium of Rabies Control.
3. A veterinarian must certify to the City Treasurer that such dog has been properly vaccinated in accordance with the current compendium of rabies control. A new vaccination tag shall be assigned to such dog.
4. Unless a licensed veterinarian certifies to the Supervisor of Animal Services that such vaccination would be injurious to such dog due to its age or health, all dogs or cats must be vaccinated for rabies by a licensed veterinarian at least every three years. Ferrets must be vaccinated for rabies annually.

(c) The City Treasurer shall create guidelines and instructions as to vaccinations and licensing information required from veterinarians and

how it is to be transmitted to the City Treasurer. If license fees are collected by veterinarians, they shall be submitted to the City Treasurer not later than 30 days following the last day of the month in which the license fee was collected.

(d) The owner of a dog will provide, upon request of the Supervisor of Animal Services or designee, proof of current licensure and vaccination.

(e) The owner of a cat or ferret will provide, upon request from the Supervisor of Animal Services or designee, proof of current vaccination.
(Ord. No. 47-695, § 17, 12-4-07; Ord. No. 48-300, § 13, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 17, 5-24-11; Ord. No. 49-010(Corr. Copy), § 17, 7-11-11; Ord. No. 52-536, § 6, 8-20-24)

Sec. 6.04.120. False statements.

(a) Any false statement in a rabies certification or application for a license to keep a dog or a dog breeder license shall render null and void the license issued to the owner for keeping such dog or breeding dogs.

(b) Any false statement in an application for an Animal Maintenance Permit or variance shall render null and void the permit issued to the owner to keep such animals.

(c) Any person who makes a false statement in any application, affidavit or other document required by this chapter, or any regulation prescribed thereby, is guilty of a misdemeanor.
(Ord. No. 47-695, § 18, 12-4-07; Ord. No. 48-300, § 14, 3-24-09, eff. 7-1-09)

Sec. 6.04.130. Reserved.

Editor's note—Ord. No. 48-300, adopted March 24, 2009, effective July 1, 2009, repealed § 6.04.130 in its entirety. Formerly said section pertained to Rabies vaccination required and derived from Ord. No. 47-695, § 19, adopted December 4, 2007.

Sec. 6.04.140. Vaccination and identification tags.

(a) The veterinarian administering the rabies vaccination shall issue a metallic tag for the particular dog vaccinated, on which tag shall be distinctly marked the veterinarian's name or veterinary clinic's name, address, and tag identification number. The year of issuance also shall be distinctly marked, which shall be the same as the year of vaccination or rabies certification for such animal. A new vaccination tag shall be issued in accordance with the procedures established in section 6.04.110. The owner of any dog which is determined by the Supervisor of Animal Control or designee to be running at large while not wearing a collar with identification consisting of the owner's name and current address, or if such dog is over five months old, a current rabies vaccination tag, is guilty of a misdemeanor.
(Ord. No. 47-695, § 20, 12-4-07; Ord. No. 48-300, § 15, 3-24-09, eff. 7-1-09; Ord. No. 48-583, § 9, 12-22-09; Ord. No. 49-010, § 18, 5-24-11; Ord. No. 49-010(Corr. Copy), § 18, 7-11-11)

Sec. 6.04.150. License for keeping a dog.

The license fee for keeping a dog is established at 15 dollars for each dog, provided an additional 35 dollar fee will be assessed for each dog if such dog is not spayed or neutered. Any dog that is in or has been retired from the U.S. Armed Forces, Service dog which is documented to have been individually trained to provide assistance to an individual with a disability, licensed Search and Rescue dog or a dog owned and used by a governmental entity for law enforcement or public safety purposes shall be exempt from the license fee upon obtaining the license to keep the dog, but shall be subject to all other requirements contained in this chapter. Emotional support animals are not exempt from licensing fees. The City Treasurer shall impose a five dollar annual penalty on all license renewals beginning thirty days following the expiration of the previous license.
(Ord. No. 47-695, § 21, 12-4-07; Ord. No. 52-536, § 7, 8-20-24)

Sec. 6.04.155. Dog breeder license; breeder inspections.

(a) No person shall be a dog breeder, as defined by section 6.04.010, unless such person is properly licensed by the City of Wichita as a breeder.

(b) All dog breeders, shall make an application for, and obtain an annual dog breeder's license as established and described by this section.

1. An application for a breeder's license shall be obtained from the City Treasurer's Office, Animal Services or the City of Wichita's website. The application shall contain the following information:
    a. The name, date of birth and address of the applicant;
    b. The name, breed, color, sex and age of all dogs owned by the applicant;
    c. Documentation that all animals are properly vaccinated and licensed;
    d. Name and address of the licensed veterinarian who is responsible for the care and treatment of the animals;
    e. A signed statement by the applicant that the information is true and correct;
    f. The permanent ID or microchip number of all animals owned, if available;
    g. A statement as to whether there is a fenced yard or fenced run available for the confinement of the dogs.
    h. A statement as to whether the applicant has ever had a licensed suspended or revoked which was issued by the State of Kansas pursuant to the Kansas Pet Animal Act. Such statement shall contain the date of any such suspension or revocation.
    i. The zoning classification for the premises where the animals will be maintained.
    j. A copy of any current license issued to the applicant by the State of Kansas pursuant to the Kansas Pet Animal Act.
2. The Chief of Police or designee is empowered to establish administrative requirements for obtaining dog breeder licenses. Application forms and administrative requirements can be obtained through Animal Services, City Treasurer, or the city website.

(c) Approval of dog breeder licenses shall be contingent upon the applicant's compliance with all administrative requirements set forth by the Chief of Police or designee including, but not limited to, proper veterinary care, health certification of breeding stock and offspring, and compliance with all applicable requirements, and/or regulations of the City of Wichita and the State of Kansas.

(d) The Chief of Police or designee may refuse to approve issuance or renewal of, or revoke, a breeder's license for one or more of the following conditions:

1. Failure of the applicant to provide proof that the animals are properly licensed and vaccinated;
2. The making of any false statement as to any material matter in the application for a license, or a license renewal, or in a hearing concerning the license;
3. Violation by the applicant of a provision of this title, the Kansas Pet Animal Act or any state or federal law relating to the care and treatment of animals;
4. Suspension or revocation of a license issued by the State of Kansas pursuant to the Kansas Pet Animal Act; or
5. The applicant has a history of allowing animals to run loose or escape, has otherwise been found to be neglectful, has had an animal identified as a nuisance, or has previously been determined to have violated the provisions of this title.

(e) No breeder's license shall be approved or renewed for premises zoned residential by the Wichita/Sedgwick County Unified Zoning Code.

(f) No breeder's license shall be approved for an individual who owns more than two unaltered pit bulls, unless otherwise exempted within this title. If the Chief of Police or designee refuses to

issue or renew a license under this section, such individual shall have the appeal rights established by section 6.04.158.

(g) The fee for a breeder license is established at fifty dollars annually. Such licenses shall expire one year from the date of issue. The City Treasurer shall impose a penalty of $50.00 dollars annually on all delinquent license renewals beginning 30 days following the expiration of the previous license. Failure by a person to obtain a breeder license as required by this section shall constitute a misdemeanor. Conviction of two or more violations of this Code within a two-year period may result in revocation of the breeders' license. The individual shall be precluded from obtaining a breeder's license for a period of 24 months following the revocation.

(h) All places and premises by licensed breeders or persons seeking approval for a breeder license as described by this chapter shall be open during reasonable hours for inspection by Animal Control in order to ensure the health, safety, and welfare of the animals on said property. If upon such an inspection by Animal Control any person who has been granted or applied for a license is found violating any of the regulations prescribed in this chapter, or any provisions within the Unified Zoning Code, or any administrative regulation established by the Chief of Police or designee such person shall be given a written notice of such violation. If such violation or violations of this Code do not or cannot cease within 24 hours of such notification, the permit, or license may be revoked or canceled by action of the Chief of Police or designee, pursuant to the procedures set forth in section 6.04.159 of this Code.

(i) It shall be unlawful for any breeder of Pit Bulls, as defined by this title, to engage in the breeding of such animals with an owner, keeper or harborer of a Pit Bull involved in the breeding process who is not also licensed as a breeder.

(j) Upon a first conviction of a violation of the provisions of this section, a minimum fine of $100.00 shall be imposed. Upon a second or subsequent conviction, of a violation of the provisions of this section, a minimum fine of $250.00 shall be imposed. In addition, the Municipal Court Judge may impose a term of imprisonment not to exceed six months and/or a fine not to exceed $1,000.00.
(Ord. No. 47-695, § 22, 12-4-07; Ord. No. 48-300, § 16, 3-24-09, eff. 7-1-09; Ord. No. 48-583, § 10, 12-22-09; Ord. No. 49-010, § 19, 5-24-11; Ord. No. 49-010(Corr. Copy), § 19, 7-11-11)

Sec. 6.04.156. Sale of animals.

It is unlawful for any person to offer any animal for sale, or to sell, exchange, barter or give away, or to accept any animal on any property not owned or rented by the seller or buyer unless the property is a pet shop, animal shelter licensed by the State of Kansas, or that property is licensed for the breeding or sale of animals and is in compliance with all City of Wichita zoning and licensing regulations. No person shall sell, barter, exchange, give away or accept animals on any shelter property unless authorized by the director. All printed documents, electronic or print media, advertisements, radio, and video, pertaining to the sale, exchange, or transfer of dogs for or produced by licensed breeders shall include the name of the breeder and his or her City of Wichita breeder license number. Violations of any provision of this section shall be considered a misdemeanor.
(Ord. No. 47-695, § 23, 12-4-07; Ord. No. 48-300, § 17, 3-24-09, eff. 7-1-09)

Sec. 6.04.157. Maximum number of dogs and cats and maintaining livestock.

(a) No person shall own, keep or harbor upon any premises or property, or in any dwelling of any type within the city:

1. Livestock;
2. More than three dogs;
3. More than three cats;
4. More than two rabbits;
5. More than three fowl; or
6. More than three pigeons;

unless such person has a current Animal Maintenance Permit or variance issued by the Chief of Police or designee authorizing the

maintenance of such animals. The provisions of this section shall not apply to common carriers transporting domestic animals to or through the city. Permits shall not be required for indoor non-commercial maintenance of fish, nonpoisonous amphibians and reptiles allowed by section 6.04.040, birds and small rodents. Any individual who fails to comply with the requirements of this section shall be deemed guilty of a misdemeanor.

(b) No person shall keep, own, or harbor upon any premises or property or in any dwelling of any type within the city, more than three different kinds of domestic animals or livestock unless such person has a current animal maintenance permit or variance issued by the Chief of Police or designee authorizing the maintenance of such animals. Any individual who fails to comply with the requirements of this section shall be deemed guilty of a misdemeanor.

1. Any person, rescue organization or foster care home, who desires to own, keep, or harbor livestock, or more than three dogs or more than three cats or more than two rabbits, or more than three fowl or pigeons, shall apply with the City of Wichita for an animal maintenance permit that shall permit the applicant to own, keep or harbor the animals specifically allowed in that permit.

2. Any person, rescue organization or foster care home, who desires to own, keep or harbor more than three different kinds of domestic animals shall apply with the City of Wichita for an animal maintenance permit that shall permit the applicant to own, keep or harbor more than three different kinds of domestic animals.

TABLE 1:

Kind of Animal	*Minimum Required For Permit*	*Maximum Allowed With Permit*	*Permit Fee*
Dogs, excluding pit bulls	4	4	$ 25.00
Cats	4	4	$ 25.00
Fowl	4	12 (25 pigeons)	$ 25.00
Sheep	1	One animal per acre	$100.00
Goats—(Nannies only)	1	One animal per acre	$100.00
Horses	1	One animal per acre	$100.00
Cattle	1	One animal per acre	$100.00
Ratites	1	One animal per acre	$100.00
Pig—Neutered, miniature Vietnamese Pot-Bellied	1	1	$ 25.00
Rabbits	4	12	$25.00
Other	3	(25 fur-bearing animals, i.e. chinchilla, mink)	$100.00

Owning more than three kinds of animals, regardless of number of animals, requires the owner to obtain an animal maintenance permit. Any combination of

permit fees will not exceed $100.00 per application. If a permit application is denied, 50 percent of the proposed permit fee will be retained for the administrative costs incurred.

3. It is unlawful for any person to own, harbor or maintain more animals or different types animals than is allowed by the animal maintenance permit issued to such person by the Chief of Police or designee.

4. The Chief of Police or designee is empowered to establish administrative requirements for obtaining an animal maintenance permit. Application forms and administrative requirements can be obtained through Animal Services, City Treasurer or the city website.

   The application shall contain the following information:

   a. The name, date of birth and address of the applicant.

   b. The name, breed, color, sex and age of all animals owned by the applicant.

   c. Documentation that all animals are properly vaccinated and licensed.

   d. Name and address of the licensed veterinarian who is responsible for the care and treatment of these animals.

   e. A signed statement by the applicant that the information is true and correct.

   f. The permanent ID or microchip number of all animals owned, if available.

   g. A statement as to whether the animals are spayed or neutered and whether there is a fenced yard or fenced run available for the confinement of the animals.

   h. The size of the premises in which the animals may be maintained.

   i. A diagram of the location of any and all domestic animal structures in which animals will be maintained.

   j. A signed statement on behalf of the applicant that maintenance of the animals will be in compliance with the animal control and sanitary waste requirements of the City of Wichita.

   k. A statement by the applicant that the zoning requirements of the Unified Zoning Code of the City of Wichita and Sedgwick County will be complied with.

   l. A statement as to whether the applicant has ever had a licensed suspended or revoked which was issued by the State of Kansas pursuant to the Kansas Pet Animal Act. Such statement shall contain the date of any such suspension or revocation.

   m. A copy of any current license issued to the applicant by the State of Kansas pursuant to the Kansas Pet Animal Act.

5. Approval of an animal maintenance permit shall be contingent upon the applicant's compliance with all administrative requirements set forth by the Chief of Police or designee, the provisions of this title and the rules and the rules and regulations of the City of Wichita and the State of Kansas. Such applicant must show:

   a. That the keeping of additional animals will not create a nuisance in the surrounding neighborhood, that humane care will be provided and that the premises where the animals are kept is suitable for the keeping of multiple animals and is in conformity with all city zoning requirements. The criteria to be evaluated include, without being limited to, the following:

      1) That the animals will be kept or maintained at all times in a safe and sanitary manner.

2) That the quarters in which such animals are kept or confined will be adequately lighted and ventilated and are so constructed and maintained that they can be kept in a clean and sanitary condition.

3) That the health and well-being of the animals will not in any way be endangered by the manner of keeping or confinement.

4) That the keeping of such animals will not harm the surrounding neighborhood or disturb the peace and quiet of the surrounding neighborhood.

5) That the keeping of such animals will not cause fouling of the air by offensive odors and thereby create or cause unreasonable annoyance or discomfort to neighbors or others in close proximity to the premises where the animals are kept or harbored.

6) That the animals will not unreasonably annoy humans, endanger the life, health or safety of other animals or persons or substantially interfere with the rights of citizens to the enjoyment of life or property.

7) That the animals will not make disturbing noises, including, but not limited to, continued and repeated or untimely howling, barking, whining or other utterances causing unreasonable annoyance, disturbance or discomfort to neighbors and others in close proximity to the premises where the animals are kept or harbored, or otherwise be offensive or dangerous to the public health, safety or welfare, by virtue of their behavior, number, type or manner of keeping.

8) That the applicant, or any person who will share in the care, custody and control of the animals, is not currently in violation of, or has not previously violated any applicable city, state or federal laws, codes, rules or regulations, including, but not limited to, those pertaining to the care and control of animals and the maintenance of their property, which would reflect adversely on their ability to fully comply with the conditions of the subject permit.

b. The Chief of Police or designee may deny any application where any one or more of the following conditions exist:

1) The applicant fails to show proof of the aforementioned requirements or an examination of the documentation submitted by the applicant.

2) An investigation by Animal Services reveals that the applicant has failed to meet the requirements of this section.

3) The applicant made a false statement as to any material matter in the application for a license of a license renewal, or in a hearing concerning the license.

4) Violation by the licensee or applicant of a provision of this title, the Kansas Pet Animal Act or any state or federal law relating to the care and treatment of animals.

5) If the applicant has had a breeder's license or animal

maintenance permit revoked within 18 months prior to the application.

6) If the applicant has had a license issued by the Kansas Department of Animal Health suspended or revoked within 18 months prior to the application.

7) Maintenance of the animals would be in violation of the Unified Zoning Code of the City of Wichita.

8) No animal maintenance permit shall be issued to own, keep, or harbor more than two adult Pit Bull dogs.

9) The applicant has a history of allowing animals to run loose or escape, has otherwise been found to be neglectful, has had an animal identified as a nuisance, or has previously been determined to have violated the provisions of this title.

c. The Chief of Police or designee shall state, in writing, the factual basis for his or her recommendation to grant or deny any application. The Chief of Police or designee shall consider past violations, the size, condition and location of the area where the animals will be kept, the size of the animals to be kept, past complaints concerning the applicant, the burden of proof and the criteria set forth in this section, or any other factors relative to the issue of keeping additional animals.

The permit shall be issued for the period not to exceed 12 months.

d. The fee for such animal maintenance permit shall be paid in accordance with Table 1 of Subsection (b)(2). All fees shall be nonrefundable and nontransferable. The animal maintenance permit shall be issued for the individual animals listed on the application and shall not be transferable to other animals. The fact an individual has previously been issued an animal maintenance permit may be considered but shall not be controlling to the Chief of Police or designee's decision to issue animal maintenance permit for a different animal.

The denial of any animal maintenance permit shall be subject to the appeal procedures set forth in section 6.04.158.

e. Any applicant who had more than three cats or more than three dogs or livestock prior to annexation of their property by the city, shall be permitted to keep but not replace said animals until their number equals the number of animals permitted by section 6.04.157(a). Any such applicant shall be required to apply for an animal maintenance permit and be required to pay a yearly renewal fee, provided that nothing in this section shall exempt or except any applicant or any other person from the registration, vaccination or any other requirement of this chapter.

f. Any individual who had a current animal maintenance permit or variance at the time of passage of this ordinance shall be permitted to keep but not replace said animals until their number equals the number of animals permitted by section 6.04.157(a). Any such applicant shall be required to apply for an animal maintenance permit and be required to pay a yearly renewal fee, provided that nothing in this section shall exempt or except any applicant or any other person from the registration, vaccination or any other requirement of this chapter.

g. Any individual who had a current animal maintenance permit or vari-

ance for livestock at the time of passage of this ordinance shall be permitted to keep but not replace said animals. Any such applicant shall be required to apply for an animal maintenance permit and be required to pay a yearly renewal fee, provided that nothing in this section shall exempt or except any applicant or any other person from the registration, vaccination or any other requirement of this chapter.

h. For the purposes of this section:

1) Nuisance for the purposes of this section, shall be defined as any act which is unreasonably annoying or vexatious to another or substantially interferes with the rights of others and shall include, but not be limited to, obnoxious odors, excessive noise, and creation of an environment attractive to other animals or insects. More than three substantiated violations of this title within a 12-month period will automatically constitute a nuisance.

2) Humane standards of care shall be defined to include, but not be limited to, accessibility of the animal to food and water, proper medical attention, proper shelter from the elements, and cleanliness in animal waste areas with regular waste removal.

3) Livestock includes, but is not limited to: horses, mules, cattle, sheep, llamas, ratites and goats.

i. Not more than one head of livestock shall be kept for each one acre of contiguous unbuilt land area, provided that the limitation shall not apply to a commercial riding stable, a riding academy, or a commercial stockyard with an approved manure disposal plan.

j. Owners of livestock within the city without an animal maintenance permit or variance on the date of the passage of this ordinance shall be allowed 12 months from the date of adoption to come into compliance with the acreage requirements set forth in subsection (1).

k. Owners of livestock within the city with a current animal maintenance permit or variance at the date of the adoption of the ordinance shall be permitted to keep, but not replace said animals.

l. All owners or harborers of livestock must comply with the provisions of section 6.04.173 regarding the maintenance of all domestic animal structures.

m. The holder of an animal maintenance permit will provide, upon request of the Supervisor of Animal Services or designee proof of licensure where applicable, and vaccination of any animals subject to the animal maintenance permit.

n. The premises designated in the animal maintenance permit shall be available for inspection by Animal Services to ensure compliance with the provisions of this code and the laws of the State of Kansas.

o. The holder of an animal maintenance permit will notify the City of Wichita if any of the animals subject to the animal maintenance permit is no longer owned by the individual. Any individual who fails to comply with the requirements of this section shall be deemed guilty of a misdemeanor.

6. Variances. Any application for a variance to own, keep, or harbor more than four dogs or four cats or any combination thereof in excess of four or for a variance to the requirements of this chapter based on physical or geographical features of the site, or required acreage for livestock, may be granted by the Chief of Police or

designee if he or she determines that the variance will not adversely affect public health and safety or the environment, pose a threat to the environment or constitute a nuisance to neighbors.

a. The applicant shall complete an application form and pay all applicable fees for an animal maintenance variance. Such application shall include the information set forth in the application for an animal maintenance permit. In addition to the fees set forth in subsection (b)(2), the applicant shall pay an initial inspection fee of $50.00 to the City of Wichita. No inspection fee shall be assessed for subsequent renewals of any variance.

b. In making the determination as to whether the variance request should be granted, the Chief of Police or designee shall rely on the criteria set forth in subsection (4) of this section.

c. The Chief of Police or designee shall notify the applicant for the variance of his or her determination of the request in writing stating the basis for any denial and any conditions placed on any granted variance request. Individuals aggrieved by any decision of the Chief of Police or designee relative to waivers may appeal to the City Council within ten days of the notice of such decision pursuant to section 6.04.210 of this Code.

(Ord. No. 48-300, § 18, 3-24-09, eff. 7-1-09; Ord. No. 48-583, § 11, 12-22-09; Ord. No. 49-010, § 20, 5-24-11; Ord. No. 49-010(Corr. Copy), § 20, 7-11-11; Ord. No. 52-536, § 8, 8-20-24)

Sec. 6.04.158. Appeal from denial of breeder's license, animal maintenance permit, or determination that dog is a Pit Bull.

(a) If the Chief of Police or designee has determined that an applicant is not eligible for a breeder's license or animal maintenance permit, he or she will make an appropriate determination based on the known facts and consistent with the provisions of this title.

(b) The Chief of Police or designee shall notify the individual of the denial in writing, stating the reasons for the denial of such application. Service of the notice shall be by certified mail, return receipt requested. Service of process by certified mail shall be considered obtained upon the delivery of the certified mail envelope.

(c) The applicant of a denied application or the owner of a dog deemed to be a pit bull may request an administrative review of the determination by filing a written request with the Chief of Police or designee within ten days of receipt of such notification.

(d) The Chief of Police or designee will conduct a hearing within ten days of receipt of the owner's request. At such hearing, testimony may be offered by the owner of the dog(s) or animals, the Animal Control Officers and/or staff of Animal Control, neighbors, or other affected persons, and veterinarians concerning the lineage of the dog, or the care and maintenance of the dog.

(e) The Chief of Police or designee shall determine an appropriate disposition based on the facts determined at the hearing and the provisions of this chapter and will notify the applicant in writing of the outcome of the hearing within five business days. The owner may appeal the hearing outcome as provided in section 6.04.210 of this Code.

(Ord. No. 48-300, § 19, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 21, 5-24-11; Ord. No. 49-010(Corr. Copy), § 21, 7-11-11)

Sec. 6.04.159. Revocation or suspension of license or permit.

(a) The Chief of Police or designee, upon written notice to the licensee or permit holder, shall have the authority to suspend or revoke any permit, license or variance granted by the Chief of Police or designee for one or more of the following reasons:

(1) Violation by the licensee or permit holder of the provisions of this title, the Kansas

Pet Animal Act, or other state or federal laws relating to the care and maintenance of animals.

(2) Obtaining the license or permit by fraudulent conduct, false statements or has otherwise made a material misrepresentation of fact in the application.

(3) Upon inspection, the Supervisor of Animal Control or designee observes premises which are not in a clean and sanitary condition in compliance with the health standards set forth in this title.

(4) The licensee or permit holder has violated any terms or conditions of the license, permit or variance.

(5) The animal's place of keeping constitutes a nuisance to the surrounding neighbors;

(6) Humane standards of care are not being met by the permittee;

(7) A violation of Unified Zoning Code has occurred;

(8) The licensee or permit holder had provided false information in their application.

(9) The licensee or permit holder has had a license issued by the State of Kansas pursuant to the Kansas Pet Animal Act or any other governmental agency related to the care of animals suspended or revoked.

(10) The licensee or permit holder cannot be contacted for an inspection within two weeks of an initial request for an inspection of such premises or the licensee or permit holder refuses the animal control officer access for an inspection.

(b) Individuals aggrieved by the suspension or revocation of any permit, license or variance may appeal to the City Council within ten days of the notice of such decision as set forth in section 6.04.210 of this Code.

(c) An appeal taken from an order of suspension or revocation shall not suspend the order of suspension or revocation during the pendency of such appeal.

(d) For the purposes of subsection (a) above, written notice shall be deemed sufficient upon the mailing of the notice to the applicant for the permit or license on file in the Office of the City Treasurer.
(Ord. No. 48-300, § 20, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 22, 5-24-2011; Ord. No. 49-010(Corr. Copy), § 22, 7-11-2011)

Sec. 6.04.160. Authorization for quarantine.

The Chief of Police or designee shall advise the City Manager, who shall report to the Mayor in the event a potential outbreak of rabies is suspected in the dog or cat population in the city. If the Mayor concurs with the Chief of Police or designee that the danger of the public safety from rabid animals is reasonably imminent, the Mayor is hereby authorized and it shall be his or her duty to issue a quarantine proclamation ordering persons owning, keeping or harboring any dog or cat to muzzle the same and/or confine it as provided in this chapter for such time as may be specified in such quarantine proclamation. Upon the issuance of such proclamation by the Mayor, any dogs, cats or other animals capable of transmitting rabies found running at large during the time specified by the Mayor in his quarantine proclamation may be killed by any officer of the city under procedures established by the Chief of Police or designee.
(Ord. No. 47-695, § 24, 12-4-07; Ord. No. 49-010, § 23, 5-24-2011; Ord. No. 49-010(Corr. Copy), § 23, 7-11-2011)

Sec. 6.04.165. Catteries.

All cats maintained at a cattery located on any residentially zoned lot as defined by the Unified Zoning Code shall be confined inside a structure.
(Ord. No. 48-300, § 21, 3-24-09, eff. 7-1-09)

Sec. 6.04.170. Dog and cat census.

Whenever deemed necessary, the Chief of Police or designee may conduct a dog and cat census of any or all areas of the city as needed to insure that all dogs over five months old harbored in the city are vaccinated and licensed and that all cats over five months old harbored in the city are properly vaccinated.
(Ord. No. 47-695, § 25, 12-4-07; Ord. No. 48-300, § 22, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 24, 5-24-2011; Ord. No. 49-010(Corr. Copy), § 24, 7-11-2011)

Sec. 6.04.171. Keeping of certain fowl prohibited.

It is unlawful for any person to keep or maintain roosters (male chickens), guinea cocks, pea-

cocks or other birds that by nature exhibit loud calls, within the corporate limits of the city, except for stockyards or packing house operations, special scientific operations in industrial areas or activities in conjunction with livestock shows; provided further, that other commercial, industrial or agricultural maintenance of roosters may be approved if the commercial, industrial or agricultural premises is located five hundred or more feet from any residentially zoned lot as defined by the Unified Zoning Code.
(Ord. No. 48-300, § 22, 3-24-09, eff. 7-1-09)

Sec. 6.04.172. Swine and goat maintenance.

(a) Except as provided in subsection (b) of this section, it is unlawful for any person to keep or maintain any swine or male goats within the corporate limits of the city, except for stockyards or packing house operations, special scientific operations in industrial areas or activities in conjunction with livestock shows. Other industrial or agricultural maintenance of swine may be approved, if the industrial or agricultural premises is located five hundred or more feet from any residentially zoned lot as defined by the Unified Zoning Code. This distance requirement may be waived by the Chief of Police or designee.

(b) Registered purebred miniature Vietnamese potbelly pigs and other similar registered purebred miniature pigs may be kept within the city limits, subject to the conditions stated in subsections (c) and (d) of this section.

(c) It is unlawful for any person to maintain a registered purebred miniature pig which:

(1) Weighs more than 80 pounds;

(2) Is not spayed or neutered upon reaching maturity;

(3) Has not undergone a blood test to show the animal is free from pseudo rabies; or

(4) Is maintained as a food source.

(d) It is unlawful for any person to:

(1) Keep a registered purebred miniature pig without a current animal maintenance permit as required by section 6.04.157 of the Code of the City of Wichita;

(2) Maintain more than one registered purebred miniature pig on any licensed premises.

(Ord. No. 48-300, § 24, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 25, 5-24-2011; Ord. No. 49-010(Corr. Copy), § 25, 7-11-2011)

Sec. 6.04.173. Domestic animal structures and enclosures.

(a) Domestic animal structures used for livestock and livestock feeding and watering troughs shall not be less than 200 feet from any adjacent dwelling and not less than 20 feet from any property line.

(b) Stables, coops, pens and other structures for the housing of animals shall comply with all zoning requirements of the City of Wichita-Sedgwick County Unified Zoning Code.

(c) The Chief of Police or designee will evaluate properties and may issue waivers of distance and setback requirements for domestic animal structures where such waivers do not adversely affect public health and safety, pose a threat to the environment or constitute a nuisance to neighbors. Criteria for review for such variance will include, in addition to site-specific requirements, the following requirements:

(1) That the animals will be kept or maintained at all times in a safe and sanitary manner;

(2) That the quarters in which such animals are kept or confined will be adequately lighted and ventilated and are so constructed and maintained that they can be kept in a clean and sanitary condition;

(3) That the health and well-being of the animals will not in any way be endangered by the manner of keeping or confinement;

(4) That the animals will not unreasonably annoy humans, endanger the life, health or safety of other animals or persons or substantially interfere with the rights of citizens to the enjoyment of life or property;

(5) That the keeping of such animals will not harm the surrounding neighborhood or unreasonably disturb the peace and quiet of the surrounding neighborhood;

(6) That the keeping of such animals will not cause fouling of the air by offensive odors and thereby create or cause unreasonable annoyance or discomfort to neighbors or others in close proximity to the premises where the animals are kept or harbored;

(7) That the animals will not repeatedly run or be found at large, will not damage property or deposit excretory matter upon the property of anyone other than their owner;

(8) That the animals will not make disturbing noises, i.e., continued and repeated or untimely howling, barking, whining or other similar utterances causing unreasonable annoyance, disturbance or discomfort to neighbors where the animals are kept or harbored, or otherwise be unreasonably offensive or dangerous to the public health, safety or welfare, by virtue of their behavior, number, type or manner of keeping;

(9) That the applicant or any person who will share in the care, custody and control of the animals, is not currently in violation of, or has not previously violated any applicable city, state or federal laws, codes, rules or regulations, including, but not limited to, those pertaining to the care and control of animals and the maintenance of their property, which would reflect adversely on their ability to fully comply with the conditions of the subject permit.

(e) In considering waivers for Domestic Animal Structures, the Chief of Police or designee will consider:

(1) Specific location of the animal structure or enclosure on the property in question;

(2) The size of the lot and distance of the structure or enclosure to adjacent property lines and dwellings;

(3) Structures located on or uses made of the adjacent property and the likelihood that a waiver would adversely affect the use of the adjacent property;

(4) Type and number of animals to be maintained and the potential for creation of a nuisance;

(5) Any history of complaints and violations concerning the permit holder's compliance with this Code or violations of local, state or federal law;

(6) Any comments of neighbors; and

(7) Any other available information concerning the potential for creation of a nuisance.

The Chief of Police or designee shall notify the applicant for the variance of his or her determination of the request in writing stating the basis for any denial and any conditions placed on any granted variance request. Individuals aggrieved by any decision of the Chief of Police or designee relative to waivers may appeal to the City Council within ten days' of notice of such decision as set forth in section 6.04.210 of this Code.
(Ord. No. 48-300, § 25, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 26, 5-24-2011; Ord. No. 49-010(Corr. Copy), § 26, 7-11-2011)

Sec. 6.04.175. Health standards—Minimum listed.

That the following minimum environmental health standards shall be observed and followed by persons subject to the terms of this title:

(a) All domestic animal structures shall be cleaned at least once each week or as often as necessary to prevent or control odors, fly breeding and rodent infestation; provided, however, that this shall not apply to grazing areas or to stockyards.

(b) Domestic animal structures owned or operated by a stockyard shall be cleaned as often as is necessary, as determined by the Supervisor of Animal Control or designee to control fly breeding or to control other conditions adversely affecting the public health.

(c) Collected fecal material and other solid organic waste shall be disposed of at a sanitary landfill or transfer station, fertilizer processing plant, by property dispersal on land used for agricultural purposes or other method approved by the Chief of Police or designee.

(d) Grain or protein feed shall be stored in tightly covered rodent-proof metal containers or rodent-proof bins.

(e) Premises subject to the terms of this Code shall be maintained free of rodent harborage.

(f) Use shall be made of effective chemical or other approved means for the control of rodents and flies.

(g) Use shall be made of soil sterilants and herbicides or other effective means for the control of weeds and grass around structures and buildings.

(h) All domestic animal structures and fences shall be maintained in good repair.

(i) Enclosures, including fences, for livestock shall be constructed in a manner to prevent domestic animals from breaking out or causing hazard to persons or property.

(j) Garbage shall not be fed to fowl.

(k) Refuse shall be stored in a manner approved by the Supervisor of Animal Control and disposed of at least once each week or as frequently as may be required by the Supervisor of Animal Control.

(l) Wastes accumulated from the cleaning of domestic animal structures shall be stored in suitable containers, with tight-fitting metal lids, and all such stored or accumulated wastes shall be disposed of at least once each week.

(m) Barbed-wire fences and electrically charged fences shall not be permitted in residentially zoned districts except in situations where the barbed wire fence or electrically charged fence is protected by an exterior fence.

(n) Holding lots, pens and floors of sheds and buildings where animals are held shall be surfaced with concrete or asphaltic materials and the drainage system of such surfaced areas shall include proper retaining walls and traps to control the waste from draining into water courses. Such drainage systems shall be subject to the approval of the Supervisor of Animal Control. The Supervisor of Animal Control may waive this standard for animal holding operations where such animal holding is longer than 24 hours or where dirt lots are more appropriate to the proper care of cattle, horses, sheep or other livestock.

(o) Wastes accumulated from the cleaning of domestic animal structures in commercial or industrial operations shall be stored on concrete slabs or on an area with an impermeable barrier as approved by the Supervisor of Animal Control. All solid wastes shall be properly disposed of at least once each week or as often as necessary to prevent any associated nuisances, or as approved by the Supervisor of Animal Control.

(p) Slaughter of animals is prohibited on residentially zoned lots or lots utilized for residential purposes. This prohibition shall not apply to processing of fish or game lawfully taken for individual consumption, nor shall it apply to the slaughter of animals as part of religious practices to be conducted on the property on which the slaughter occurs.

Any individual who fails to comply with the requirements of this section shall be deemed guilty of a misdemeanor.

(Ord. No. 48-300, § 26, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 27, 5-24-2011; Ord. No. 49-010(Corr. Copy), § 27, 7-11-2011)

Sec. 6.04.176. Pet shop, stables, kennel, commercial animal facilities, and animal "day care" regulations.

It shall be unlawful for any pet shop, rescue organization, animal foster care organization, commercial animal facility, groomer, breeder, kennel, stable or animal "day care" business to fail to:

(a) Maintain and retain records for a two-year period on all animals maintained in such facility. Such records shall show breed, color, markings, sex and age; date received and source, including name and address of owner or previous owner; date and disposition of animal, including name and address of new owner if applicable; disease prevention and/or treatment and by whom. Such records shall be made available to the Supervisor of Animal Control upon request for inspection;

(b) Provide cages and pens constructed of nontoxic, easily cleanable, water-impervious materials if used for confining animals and shall keep such cages and pens clean and sanitary at all times;

(c) Provide adequate space and ventilation to prevent overcrowding, odors, and minimize contagion;

(d) Provide general environmental conditions including endoparasite and ectoparasite control, clean wholesome food and water, weather protection and clean and sanitary facilities so as to enhance the health and well-being of such animals.

(e) Maintain a building temperature at a comfortable level. Maintain adequate ventilation by means of windows, doors, vents and fans.

(f) Provide each animal with sufficient space to stand up, lie down and turn around in a natural position without touching the sides or top of the enclosure. If additional space is not provided, either indoor or outdoor, then this enclosure must provide an adequate exercise area.

(g) All enclosures shall be kept clean and dry.

(h) Provide food which is free from contamination, and of sufficient quantity and nutritive value to meet the normal daily requirements for the condition and size of the animal.

(i) Provide all animals with fresh water available at all times, except as part of a veterinary treatment regimen.

(j) Provide veterinary care to maintain good health and general welfare.

(k) Maintain the premises of such business, and any domestic animal structures on such premises, in a clean and sanitary condition in compliance with the health standards set forth in this chapter.

(l) Comply with all provisions of the Unified Zoning Code.

Any individual who fails to comply with the requirements of this section shall be deemed guilty of a misdemeanor.
(Ord. No. 48-300, § 27, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 28, 5-24-11; Ord. No. 49-010(Corr. Copy), § 28, 7-11-11)

Sec. 6.04.177. Pigeons—Conditions for keeping—Letting loose in city.

Every person who owns, controls, keeps, maintains or harbors any pigeons in the city shall at all times keep them confined in proper cages or pens; provided, however, that what are generally known as seamless banded pigeons, being pigeons banded by a recognized association of pigeon fanciers, may be released in compliance with this section. This section shall not apply to common carriers of interstate commerce who have received shipments of such seamless banded pigeons in releasing such pigeons within the corporate limits of the city for the purpose of starting such pigeons in a pigeon race. Any person owning or keeping any seamless banded pigeons such as flying tipplers, tumblers, homing pigeons or rollers may release such pigeons for exercise or performance, upon the condition that

the owner or person who has possession of such pigeons shall not permit them to alight upon the buildings or property of others.
(Ord. No. 48-300, § 28, 3-24-09, eff. 7-1-09)

Sec. 6.04.190. Violation—Penalty.

(a) Except as otherwise provided for by the Code, a person violating any provision of this chapter is guilty of a misdemeanor and shall be punished by a fine of not more than $2,500 or by imprisonment of not more than one year, or both such fine and imprisonment, provided the minimum fine for the following enumerated sections of this chapter shall be assessed as follows:

Section	*Violation*	*Fine*
6.04.040(a)(1)	Violation of leash law 1st offense	$100.00
6.04.040(a)(2)	2nd offense	$200.00
6.04.040(a)(3)	3 or more offenses	$300.00/court appearance
6.04.040(b)	Failure to microchip after 1st impound	$50.00/court appearance
6.04.040(b)(1)	Sterilization violations after 1st impound	$100.00/(must show proof of sterilization, or court appearance)
6.04.040(c)	Fail to show proof of sterilization 2nd impound)	$150.00/court after appearance
6.04.060	Dog bite violations	
6.04.060(a)(1)	1st offense	$500.00/court appearance
6.04.060(a)(1)	2nd offense	$1,000.00/court appearance
6.04.060(a)(1)	3 or more offenses	$2,500.00/court appearance
6.04.080	Failure to confine rabies suspect animal	$250.00/court appearance
6.04.110	Failure to obtain a license to keep a dog	$50.00
6.04.140	No identification tags	$35.00
6.04.155	No required breeding license	Mandatory court appearance
AND:		
6.04.155(a)(1)	1st offense	$100.00
6.04.155(a)(2)	2nd offense	$250.00

(b) Each day that any violation of this chapter occurs shall constitute a separate offense and shall be punishable under this chapter as a separate violation.

(c) In addition to the penalties enumerated in subsections (a) and (b) of this section, the judge of the Municipal Court may, upon a person's third conviction of Sections 6.04.040(a), 6.04.040(a)(1), and 6.04.040(a)(2), involving the same animal within any twelve-month period, order such person's license to keep said animal revoked.

(d) Any person who continues to own or harbor an animal after the license for said animal has been revoked is guilty of a misdemeanor.
(Ord. No. 47-695, § 26, 12-4-07; Ord. No. 48-300, § 29, 3-24-09, eff. 7-1-09; Ord. No. 50-600, § 8, 10-10-17; Ord. No. 52-536, § 9, 8-20-24)

Sec. 6.04.210. Appeal from Animal Services rulings.

(a) Except for the designation of dangerous or potentially dangerous dogs, any person dissatisfied with any order or determination of the

Supervisor of Animal Services or designee made under his or her authority pursuant to this chapter may appeal such order or determination to the City Council or other body designated by City Council by ordinance to hear such appeals, An appeal shall be a de novo quasi-judicial proceeding from which further appeal may be taken to the District Court. An appeal must be filed with the City Clerk no more than 14 calendar days from the date of the written order appealed from. The City Council, or other body designated by City Council by ordinance to hear such appeals will hear the appeal no later than 30 days from the filing of such appeal.

(b) Dangerous or potentially dangerous Dog—Appeal of decision of Supervisor of Animal Services. The owner of a dog declared dangerous or potentially dangerous by the Supervisor of Animal Services or a designee may appeal the determination by filing a form provided by the City of Wichita Municipal Court within 14 calendar days of receipt of such notification. The completed form and any other documentation shall be submitted to the City of Wichita Municipal Court and a Municipal Judge will conduct an administrative hearing within 14 calendar days of receipt of the owner's appeal, unless good cause requires an extension of hearing date. The hearing shall be recorded by audio or audio and video means. A copy of the recording shall be made available to the dog's owner/harborer and a copy shall be retained by the City of Wichita for a period of not less than six months. The Municipal Court judge shall conduct an administrative hearing where the City and the dog's owner/harborer are allowed the opportunity to present witnesses, testimony and other evidence. Following such evidence, the hearing officer will consider the factors listed in Section 6.04.045(a)(1) through (6). The standard of preponderance of the evidence will be applied by the court to determine whether the dog should be deemed dangerous, potentially dangerous or the designation should be removed. Appeal hearings are intended to be informal in nature. Formal rules of evidence and civil procedure, including discovery, do not apply. The Kansas Rules of Civil Procedure and evidence shall be used as guidelines for conducting the hearing, but shall not be binding upon the court. The court may consider any relevant, non-privileged oral or documentary evidence presented by either party. If the court deems the dog dangerous or potentially dangerous, the Municipal Court judge shall place restrictions upon ownership in accordance with Section 6.04.045. The Municipal Court will notify the owner in writing of the outcome of the hearing within five business days. If an appeal or subsequent appeal is filed in the Municipal Court or District Court and the Appellant fails to appear for the hearing set by the court after being notified as to the time and date of the hearing, the appeal shall be dismissed for lack of prosecution. In such cases, the determination by the Supervisor of Animal Services or other fact-finder will remain in effect.

(c) Costs of care at all phases of determination and appeal: During all stages of any initial determination or the appeal process, the owner, keeper or harborer of such animal shall be responsible for the cost of keeping such animal in the animal shelter. If the dog in question is held at the shelter during the time of the appeal, the owner, keeper or harborer of such animal must file a renewable, non-refundable, cash or performance bond with the animal shelter where the animal is being held, within the appeal period, in an amount equal to the cost of care and treatment of the animal for 20 days. Said cash or performance bond shall be renewable for an additional 20 days and each successive 20 days the animal is held by Animal Services during the pendency of the appeal. Payment of said renewal shall be within five days of the running of the previous 20 day period. If said cash or performance bond, or its renewal, is not tendered to the Animal Shelter within the time specified above, then Animal Services shall have immediate ownership of such animal and the Supervisor of Animal Services shall determine the disposition of such animal. A determination that the dog is not dangerous or potentially dangerous will not result in a refund of the performance bond or any other fees assessed for the care or treatment of the animal. Absent such appeal, the Supervisor of Animal Services or designee may pick up and cause the animal to be destroyed, or in lieu of such destruction he or she may permit the

confinement of the animal in a manner and location that he or she deems appropriate or as provided in Section 6.04.046.

(d) Appeal from the decisions of Municipal Court Judge. After a Municipal Court Judge conducts an Administrative Hearing, the Municipal Court will notify the owner in writing of the outcome of the hearing within five business days. The owner/harborer may appeal the hearing outcome to the District Court of Sedgwick County within 14 days of the written notification. The District Court will review the case to determine if the Municipal Court Judge's decision was supported by substantial competent evidence and that the administrative order was neither arbitrary nor capricious in accordance with K.S.A. 60-2101.

(Ord. No. 50-600, § 9, 10-10-17; Ord. No. 51-639, § 2, 9-28-21)

Editor's note—Ord. No. 50-600, § 9, adopted Oct. 10, 2017, repealed the former § 6.04.210 and enacted a new § 6.04.210 as set out herein. The former § 6.04.210 pertained to appeal from Chief of Police or designee's rulings and derived from Ord. No. 47-695, § 27, adopted Dec. 4, 2007; Ord. No. 48-300, § 30, adopted Mar. 24, 2009, effective July 1, 2009; Ord. No. 49-010, § 29, adopted May 24, 2011; Ord. No. 49-010(Corr. Copy), § 29, adopted July 11, 2011.

Sec. 6.04.215. Dogs prohibited in parks; exceptions.

Except as otherwise allowed for by this title, it is unlawful for any person to allow or permit any dog to run at large in any park or to permit any dog, with or without a leash, except for service dogs or dogs used by public law enforcement agencies and under the control of a law enforcement officer, to enter any public beach, wading area, pond, fountain, stream or designated children's play area. The Director of Parks and Recreation and the Chief of Police or designee may ban dogs or other animals, or a specific dog or other animal from areas of any park where he or she determines the same to be a nuisance.

(Ord. No. 48-300, § 31, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 30, 5-24-11; Ord. No. 49-010, § 30, 7-11-11)

Sec. 6.04.218. Designation of dog parks, off-leash areas; rules and regulations; penalties for offenses.

(a) Dogs may be allowed to run at large only in dog parks and off-leash areas as designated by the Wichita City Council. The designation of such parks and off-leash areas shall be made at the recommendation of the Director of Park and Recreation and the Chief of Police or designee.

(b) It shall be unlawful for any dog owner to violate any of the following regulations regarding the use of any City designated dog park or off-leash area in a park owned by the City of Wichita:

(1) All dogs that enter the park must be over five months of age, not in heat, and have a valid license and current rabies vaccination with an accompanying tag. The tag must be securely affixed to the dog's collar at all times.

(2) All dogs must be leashed when entering or leaving the park's fenced enclosures and owners must retain possession of the leash at all times when within the parks fenced enclosure.

(3) Owners must be at least 14 years of age and remain within the park's fenced enclosure and in control of all dogs under their care at all times when within the park. Owners are limited to three dogs per visit.

(4) Owners shall immediately pick up their dogs' excrement and deposit it in the designated receptacle.

(5) Aggressive, vicious or contagious dogs are prohibited from use of the park.

(6) Owners shall immediately close and secure the gate upon entering or exiting the confines of the park's fenced enclosure.

(7) Entrance within the park in violation of its posted hours or when closed is prohibited.

(8) No animals, other than dogs, may be brought into the dog parks.

(9) Dogs must never be left unattended. The dog owner must be in reasonable control of his or her dog(s) at all times and keep a leash available at all times.

(10) Dogs may not be brought into the park if they are sick or unhealthy, have a history of aggressiveness, or have been adjudicated a dangerous dog.

(11) No food or treats for human or animal consumption, rawhide chews, alcoholic beverages, glass containers, bicycles, skateboards, motorbikes, scooters, or roller blades will be allowed in the dog park area. Littering is prohibited. Smoking is prohibited inside the park and within ten feet of the park's parameter.

(12) Dog owners must immediately fill any holes their dogs dig.

(13) Professional dog trainers and behaviorists are not permitted to use the park to conduct their business.

(14) All owners must have in his or her possession a baggy or some other form of equipment to clean up after his or her dog(s). All waste must be placed in a bag and placed in a waste receptacle provided at the park.

(15) No large dogs (over 25 pounds) will be allowed in the small-dog areas of the dog park. Such areas will be clearly marked.

(16) No small dogs (under 25 pounds) will be allowed in the large dog areas of the dog parks. Such areas will be clearly marked.

(17) All dog bites must be reported to Animal Services. If a bite occurs, the dog's owner must exchange his or her name and phone number with the victim of the bite.

(18) The City of Wichita, the Director of Parks and Recreation, and the Chief of Police or designee reserve the right to close a dog park for maintenance and repair, public safety reasons or for special events.

(c) It is unlawful for any person to:

(1) Enter or remain in a dog park at such time as such park is closed to the public as set out herein or at such time as provided for under the rules and regulations adopted by the Chief of Police or designee and Director of Parks and Recreation.

(2) Fail to immediately leash and restrain a dog in the dog park when advised to do so by the Animal Control Officer or the Director of Parks and Recreation or his or her designee.

(3) Fail to immediately leave the dog park when ordered to do so by a law enforcement officer, Animal Control Officer or the Director of Parks and Recreation or his or her designee.

(d) (1) Owners assume all risks, loss or injury for themselves or their dog(s) associated with or resulting from the use of the park.

(2) Owners making use of the dog park shall be responsible for injuries caused by their dogs to other persons and dogs. Persons responsible for any injuries or property damage shall hold the City of Wichita harmless for any such damage.

(e) Enforcement of the above rules and regulations is under the immediate supervision of the Chief of Police or designee and the Director of Parks and Recreation. Violators of dog park rules and regulations may be subject to one or more of the following:

(1) Removal from the park;

(2) Suspension of park privileges;

(3) Issuance of a Uniform Criminal Complaint or Notice to Appear.

(f) If an owner or individual is found guilty of violating the rules and regulations of a city-owned dog park of any other provisions of this section, such owner or individual shall be guilty of a misdemeanor.

(g) The Director of Parks and Recreation and the Chief of Police or designee shall promulgate additional regulations as are necessary to address health and safety concerns related to the operation of such parks. A copy of such regulations

shall be available for inspection at the Animal Shelter and the Office of the Director of Parks and Recreation during regular office hours.
(Ord. No. 48-300, § 32, 3-24-09, eff. 7-1-09; Ord. No. 49-010, § 31, 5-24-11; Ord. No. 49-010(Corr. Copy), § 31, 7-11-11)

Sec. 6.04.220. Severability.

Should any section or provision of this chapter for any reason be held void, unconstitutional or invalid, it shall not affect the validity of any other section or provision hereof which is in itself not void, unconstitutional or invalid.
(Ord. No. 47-695, § 28, 12-4-07)

CHAPTER 6.08. DANGEROUS AND EXOTIC ANIMALS*

Sec. 6.08.010. Definitions.
Sec. 6.08.020. Dangerous wild animal, wild animal and exotic animal—Presence in the city prohibited—Exceptions.
Sec. 6.08.030. Exhibition requirements.
Sec. 6.08.040. Transportation.
Sec. 6.08.050. Reserved.
Sec. 6.08.060. Authorization.
Sec. 6.08.070. Hearings.
Sec. 6.08.080. Administrative penalty.
Sec. 6.08.090. Penalty.
Sec. 6.08.100. Severability.

Sec. 6.08.010. Definitions.

As used in this chapter:

Dangerous wild animals means carnivorous animals of a similar nature and species and venomous or otherwise dangerous reptiles, including but not limited to, alligators, iguanas, turtles, pythons other than ball, anacondas, boa constrictors, monitor lizards, caiman, crocodiles, tegus, coyotes, bobcats, foxes, wolves, lions, tigers, leopards, jaguars, cheetahs, mountain lions, or any hybrid thereof; bears or any hybrid thereof. Such term shall not include nonpoisonous and nonvenomous amphibians and reptiles including python regius or ball pythons and tortoises, unless prohibited by federal or state law.

Exhibitor means a person whose business involves the showing or displaying of animals to the public and who is a Class C USDA licensee as defined by 9 C.F.R. § 1.1, and amendments thereto excludes the Sedgwick County Zoo or other government owned animal facility.

Exotic animal means those animals not normally native to North America and animals of any species the majority of whose population are wild. This term specifically includes animals such as, but not limited to, elephants, camels, antelope, monkeys, anteaters, kangaroos. The following animals are not considered exotic animals and are permitted within the City of Wichita:

1. Tropical or other fishes; except those prohibited by federal or state law.
2. Birds, except those prohibited by federal or state law.
3. Small animals such as gerbils, rats, mice, hamsters, guinea pigs, and ferrets; small mammals raised for harvesting fur salable into an existing market, such as chinchillas, nutria or mink.

Secondary perimeter means a fence, rope, elevation separation such as a stage, or some other physical arrangement as may be approved by the Chief of Police or designee by which the public is kept at such a distance from an animal as to avoid accidental or intentional contact with animals.

USDA license means a person licensed as a breeder (Class A), dealer (Class B) or exhibitor (Class C) in accordance with 9 C.F.R. § 1.1, et seq., as amended.

USDA licensed facility means a facility for the housing of dangerous wild animals or exotic animals operated by a person with an USDA license.

Veterinary clinic means a facility for the care and treatment of animals operated by a doctor of veterinary medicine licensed by the State of Kansas.

Wild animal means any species that has established breeding populations currently within North America, which is self-sufficient in the natural environment, and the majority of whose populations are not domesticated.

(Ord. No. 44-281 § 1; Ord. No. 47-286, § 1, 11-14-06; Ord. No. 49-011, § 1, 5-24-11; Ord. No. 49-011(Corr. Copy), § 1, 7-11-11; Ord. No. 50-600, § 11, 10-10-17)

Sec. 6.08.020. Dangerous wild animal, wild animal and exotic animal—Presence in the city prohibited—Exceptions.

(a) It is unlawful to exhibit, keep, maintain, control, harbor or possess dangerous wild animals, wild animals, or exotic animals within the corporate limits of the city except in accordance with the provisions of this section.

*__Editor's note__—Ord. No. 50-600, § 10, adopted Oct. 10, 2017, changed the title of ch. 6.08 from "Dangerous Exotic Animals" to "Dangerous and Exotic Animals."

(b) Dangerous wild animals, wild animals, and exotic animal are allowed within the city only under the following circumstances:

1. During exhibitions when under the direct supervision and presence of a person with the appropriate USDA license and in accordance with the requirements of Section 6.08.030;

2. While being transported directly to or from a USDA licensed facility when under the direct supervision and presence of a person with the appropriate USDA license and in accordance with the requirements of Section 6.08.040;

3. While being transported directly to or from a veterinary clinic when under the direct supervision and presence of a person with the appropriate USDA license and in accordance with the requirements of Section 6.08.040; or

4. While being held at a veterinary clinic.

(Ord. No. 50-600, § 12, 10-10-17)

Editor's note—Ord. No. 50-600, § 12, adopted Oct. 10, 2017, repealed the former § 6.08.020 and enacted a new § 6.08.020 as set out herein. The former § 6.08.020 pertained to presence in the city prohibited—exceptions and derived from (Ord. No. 44-281 § 2; Ord. No. 47-286, § 2, adopted Nov. 14, 2006.

Sec. 6.08.030. Exhibition requirements.

(a) Only Class C licensees who have registered as exhibitors as required by this chapter shall be allowed to exhibit exotic animals, wild animals and dangerous wild animals within the city.

(b) At least one Class C licensee must be present at all times at each exhibition and in direct physical control of the dangerous wild animals, wild animals or exotic animals being exhibited.

(c) Public contact with dangerous wild animals shall be prevented by a secure enclosure with a secondary perimeter to avoid public contact with the animals.

(d) Public contact with wild animals and exotic animals is permitted so long as a USDA licensee is present at all times and in direct control of exotic animal and proof of liability insurance is provided to Animal Services ten business days prior to any exhibition or event.

(e) Exhibitors must notify the Supervisor of Animal Services 10 calendar days prior to any exhibition within the city. The notice shall be in such manner as determined by the Supervisor of Animal Services and shall include the date, time and location of each exhibition.

(f) Prior to the conduct of any exhibition in the city, exhibitors shall file with the Animal Services copies of USDA permits applicable to these regulations. Upon the request of Animal Services prior to, during, or following an exhibition, exhibitors shall have available and present to the Supervisor of Animal Services or state health officials copies of health records, vaccination records and ownership records for the dangerous wild animals, wild animals or exotic animals exhibited.

(g) Exhibitors shall have a written protocol for first aid and medical attention in the event of an injury caused during exhibitions. Exhibitors shall maintain appropriate first aid equipment and supplies at an exhibition.

(h) Exhibitors shall maintain liability insurance covering any exhibition in the city in the amount of at least $250,000.00 and naming the city as an additional insured. A copy of the insurance shall be provided to the city prior to the exhibition.

Any insurer shall notify the city in writing, of any expiration, reduction or cancellation of liability insurance required by this subsection not later than ten days before the expiration, reduction or cancellation takes effect. Any surety company who secures the performance of a bond shall notify the city in writing, of any expiration, reduction or cancellation of the bond as required by this subsection, not later than ten days before the expiration, reduction or cancellation takes effect.

(i) All exhibitors shall comply with the requirements of section 3.09.120 regarding care and maintenance of any dangerous wild animal, wild animals, or exotic animals.

(j) All exhibitors shall be required to obtain an animal exhibition license pursuant to section 3.09.020 of the Code of the City of Wichita.
(Ord. No. 44-281 § 3; Ord. No. 47-286, § 3, 11-14-06; Ord. No. 49-011, § 2, 5-24-11; Ord. No. 49-011(Corr. Copy), § 2, 7-11-11; Ord. No. 50-600, § 13, 10-10-17)

Sec. 6.08.040. Transportation.

(a) *Exhibitions.* Dangerous wild animals, wild animals, and exotic animals transported to or from an exhibition in the city shall be under the direct physical control of a Class C licensee and contained in a secure cage inside an enclosed vehicle so as to prevent accidental or intentional contact with the public.

(b) *Veterinary Clinic.* Dangerous wild animals, wild animals, and exotic animals transported to or from a veterinary clinic in the city shall be under the direct physical control of a person with an USDA license and contained in a secure cage inside an enclosed vehicle so as to prevent accidental or intentional contact with the public.
(Ord. No. 44-281 § 4; Ord. No. 47-286, § 4, 11-14-06; Ord. No. 50-600, § 14, 10-10-17)

Sec. 6.08.050. Reserved.

Editor's note—Ord. No. 47-286, § 5, adopted Nov. 14, 2006, repealed § 6.08.050 in its entirety. Formerly said section pertained to registration and derived from Ord. No. 44-281 § 5.

Sec. 6.08.060. Authorization.

(a) The Chief of Police or designee shall make such rules and regulations as shall be reasonable and necessary to carry out the provisions of this chapter. This shall include the necessary forms, first aid and medical protocols, and informational material necessary for the registration of exhibitors, conduct of exhibitions and enforcement.

(b) The Chief of Police or designee shall require the filing of bite reports pertaining to dangerous wild animals consistent with those of Chapter 6.04.

(c) The Chief of Police or designee shall be responsible for the enforcement of this chapter and is authorized to make such investigation, to issue notices, orders and directions as are necessary for such enforcement, and shall register exhibitors as herein required.
(Ord. No. 44-281 § 6; Ord. No. 47-286, § 6, 11-14-06; Ord. No. 49-011, § 3, 5-24-11; Ord. No. 49-011(Corr. Copy), § 3, 7-11-11)

Sec. 6.08.070. Hearings.

Any person affected by any interpretation or requirement of Animal Services or any administrative penalty ordered under this chapter may request an Administrative Hearing pursuant to 6.04.210.
(Ord. No. 44-281 § 7; Ord. No. 47-286, § 7, 11-14-06; Ord. No. 49-011, § 4, 5-24-11; Ord. No. 49-011(Corr. Copy), § 4, 7-11-11; Ord. No. 50-600, § 15, 10-10-17)

Sec. 6.08.080. Administrative penalty.

Notwithstanding any other remedy or procedure set forth in this chapter, any person who is found to have violated any provisions of this chapter, or any order issued thereunder, may be assessed an administrative penalty. Such penalty may include the suspension or revocation of the right to conduct future exhibitions by the exhibitor. Any Administrative Penalty may be appealed to a Municipal Court pursuant to Section 6.04.210.
(Ord. No. 44-281 § 8; Ord. No. 50-600, § 16, 10-10-17)

Sec. 6.08.090. Penalty.

Any person who shall be convicted of violating any provision of this chapter or any order issued hereunder shall be deemed guilty of a misdemeanor and shall be punished by a fine of not more than one thousand dollars or by imprisonment for not more than six months or by both. Each day that any such violation occurs shall constitute a separate offense and shall be punished as a separate violation.
(Ord. No. 44-281 § 9)

Sec. 6.08.100. Severability.

If any part or parts of this chapter shall be held to be invalid, such invalidity shall not affect the remaining parts of this chapter. The governing body declares that it would have passed the

remaining parts of this chapter had it known that such part or parts thereof would be declared invalid.
(Ord. No. 44-281 § 10)

CHAPTER 6.12. RESERVED*

*__Editor's note—__Ord. No. 48-300, § 34, adopted March 24, 2009, effective July 1, 2009, repealed Ch. 6.12 in its entirety. Formerly said chapter pertained to keeping animals and fowl and derived from Ord. No. 46-247, § 1(part) and subsequent amendatory ordinances. The user's attention is directed to Ch. 6.04 for similar provisions.

CHAPTER 6.16. RESERVED*

*__Editor's note—__Ord. No. 48-300, § 34, adopted March 24, 2009, effective July 1, 2009, repealed Ch. 6.16 in its entirety. Formerly said chapter pertained to cats and derived from Ord. No. 39-797, §§ 1—7. The user's attention is directed to Ch. 6.04 for similar provisions.

Title 7

PUBLIC HEALTH

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CHAPTER 7.04. IN GENERAL

Sec. 7.04.010. Enforcement of provisions of Code, rules and regulations, etc.
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Sec. 7.04.080. Refuse to identify.
Sec. 7.04.090. Reserved.

Sec. 7.04.010. Enforcement of provisions of Code, rules and regulations, etc.

The Public Works and Utilities Department, the Wichita Police Department, the Metropolitan Area Building and Construction Department, and the Wichita Fire Department shall enforce all applicable provisions of Title 7 of this Code, other ordinances of the city, and rules and regulations in relation to the health, safety and environment of the city. Wichita-Sedgwick County Department of Community Health as used throughout this Code is now known as the Department of Public Works and Utilities. Superintendent or Office of Central Inspections as used throughout this Code is now known as the Metropolitan Area Building and Construction Department.
(Ord. No. 41-142 § 1; Ord. No. 52-051, § 1, 3-21-23)

Secs. 7.04.020—7.04.070. Reserved.

Editor's note—Ord. No. 52-051, § 2, adopted Mar. 21, 2023, repealed §§ 7.04.020—7.04.070, which pertained to authority of director to make rules and regulations; business, trades, etc., detrimental to health—notice to show cause why business, etc., should not be discontinued; businesses, trades, etc., detrimental to health—service of notice; businesses, trades, etc., detrimental to health—showing cause by affidavit; authority to order discontinuance if good cause now shown; business, trades, etc., detrimental to health—order final and conclusive; and communicable and infectious diseases, and derived from Ord. No. 41-142 §§ 2—7.

Sec. 7.04.080. Refuse to identify.

It is unlawful for any person to refuse to identify himself or herself by their correct name, address and birthdate when asked to do so by a person designated to enforce this Code when there is probable cause to believe that this person has violated a section of this title including employee first time violations of 7.60.075(a) and (d).
(Ord. No. 41-142 § 8; Ord. No. 52-051, § 3, 3-21-23)

Sec. 7.04.090. Reserved.

Editor's note—Ord. No. 52-051, § 2, adopted Mar. 21, 2023, repealed § 7.04.090, which pertained to sanitary inspections—tattooing, body piercing and permanent cosmetics, and derived from Ord. No. 44-099 § 1.

CHAPTER 7.08. GARBAGE AND REFUSE*

Sec. 7.08.010. Declaration of purpose and intent of code provisions regulating solid waste.
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Sec. 7.08.110. Bulky waste—Nonresidential.
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Sec. 7.08.150. Solid waste disposal.
Sec. 7.08.160. Salvaging.
Sec. 7.08.170. Enforcement.
Sec. 7.08.180. Littering and illegal dumping.
Sec. 7.08.190. Penalty.

Sec. 7.08.010. Declaration of purpose and intent of code provisions regulating solid waste.

Under the authority of the provisions of K.S.A. 12-2010, et seq., K.S.A. 64-3401, et seq., and under home rule powers, it is declared that the protection of the public health, safety and welfare of the citizens, the protection of property values, and the maintenance of an environment conducive to quality living in the city, requires a solid waste management system that will provide safe and sanitary storage, collection, processing and disposal of all solid waste produced in the city. It is the policy of the city to provide a freedom of choice to citizens in selecting their solid waste collection agency and to provide unrestricted opportunity for free enterprise. It is further the policy of the city that the normal solid waste produced be stored in accordance with recognized standards and collected by solid waste collectors. While extensive recycling is not a reality, it is recognized that recycling technology will be developed. The city encourages recycling efforts and in the meanwhile will provide a basic solid waste management system, including storage, collection and disposal activities that will provide adequate flexibility for adjustment and incorporation of recycling at such time as it is developed for practical utilization. Until such time as total solid waste recycling and/or processing becomes a reality it is the intent of the city, in cooperation and coordination with Sedgwick County, to provide at least one satisfactorily operated sanitary landfill for the sanitary disposal of solid waste produced in the city and such solid waste produced in the county as determined by the Sedgwick County commission. While the city solid waste management plan includes the provision that the city is presently providing and plans to continue to provide at least one sanitary landfill for the disposal of all solid waste produced in the city, it is recognized that other appropriate disposal and/or processing facilities may be proposed. Such other disposal and/or processing facilities may be utilized by solid waste collectors for disposal and/or processing of residential bulky waste, tree waste, commercial trash, industrial solid waste, bulky waste, demolition and construction waste and hazardous waste without modification of the plan provided that such facility is licensed in accordance with the laws of the state.
(Ord. No. 36-918)

*__Case law reference—__For case relative to definition of garbage as used in a former ordinance of city, see *City of Wichita v. Killion,* 245 P. 1056. See also, *Kirksey v. City of Wichita,* 175 P. 974.

Sec. 7.08.020. Definitions.

(1) "Agricultural solid waste" means the solid waste that results from the rearing, maintaining, and slaughtering of animals and the processing of animal products and orchard and field crops.

(2) "Apartment" means a structure or premises containing five or more dwelling units including condominiums and similar facilities; provided that occupants who are owners of an individual dwelling unit within an apartment where there is not a central management or home association may be handled as a single-family dwelling.

(3) "Bulky waste" means items whose large size or shape precludes or complicates the handling by normal collection, processing or disposal methods.

(4) "Commercial garbage" means garbage produced from activities on any premises other than an occupied dwelling unit.

(5) "Commercial trash" means solid waste normally generated by stores, offices, schools, institutions and other nonresidential occupancies that do not actually turn out a product, but does not include garbage, demolition and construction waste, hazardous waste, bulky waste, or manure.

(6) "Composting" means a control process of degrading organic matter by micro-organisms into a usable soil conditioner.

(7) "Containerized unit" means a solid waste storage container of one cubic yard capacity or larger that is flytight, watertight and rodent-proof and which is emptied into the collection vehicle by mechanical means or is attached to or loaded onto the collection vehicles for transportation to the disposal site.

(8) "Construction and demolition wastes" means waste lumber, masonry, concrete, other building materials and the resultant mixture with soil or other solid waste resulting from construction, remodeling, repair or demolition of buildings, structures, pavements, bridges and similar projects.

(9) "Demolition landfill" means a landfill used exclusively for the disposal of construction and demolition wastes.

(10) "Dwelling unit" means any room or group of rooms located within a building forming a single habitable unit with facilities that are used or intended to be used for living, sleeping, cooking, eating and a part of which is exclusively or occasionally appropriated to cookery. Mobile homes shall be included in this definition.

(11) "Garbage" means the animal and vegetable waste resulting from the handling, processing, storage, packaging, preparation, sale, cooking and serving of meat, produce and other foods and shall include unclean containers.

(12) "Hazardous wastes" means solid and liquid wastes which require special handling and/or disposal to avoid illness or injury to persons or damage to property and to protect and conserve the environment and shall include but not be limited to pesticides, acids, caustics, other dangerous chemicals, pathological wastes, flammable or explosive materials, oils and solvents and similar chemicals and materials that are significantly contaminated with one or more of the above-enumerated wastes and shall also include containers and materials that have been contaminated with hazardous wastes. Hazardous waste shall include, but not be limited to, those substances defined as hazardous waste under local, state, or federal regulations.

(13) "Health officer" means the director of the city department of environmental health or his or her authorized representative.

(14) "Industrial solid waste" means solid waste normally generated by industrial and manufacturing operations which may include metal, plastic and similar materials produced by commercial operations but does not include garbage, demolition and construction waste, hazardous waste, bulky waste, manure or commercial trash.

(15) "Licensed processing facility" means a sanitary landfill, transfer station, or other processing facility operating under K.A.R. 28-29-1 et. seq., and regulated by the Kansas department of health and environment or other state agency.

(16) "Mobile home park" means a parcel or tract of land used or intended to be used by one or more occupied mobile homes. For purposes of this chapter a mobile home park containing only one occupied mobile home shall be considered a single-family dwelling. A mobile home park containing two, three or four occupied mobile homes shall be considered a multifamily dwelling and a mobile

home park containing five or more occupied mobile homes shall be considered to be a mobile home park in relation to the requirements for mobile home parks in this chapter.

(17) "Multifamily dwelling" means a structure containing two, three, or four dwelling units.

(18) "Nuisance" means anything which (1) is injurious to health, or is offensive to the senses or any obstruction to the free use of property so as to interfere with the comfortable enjoyment of life or property, or (2) adversely affects an entire community or neighborhood, or any substantial number of persons even though the extent of the annoyance or damage inflicted upon individuals may be unequal, and (3) is caused by or is the result of the handling or disposal of solid waste.

(19) "Person" means any individual, firm, trust, partnership, association, corporation, or other business entity.

(20) "Recycling" means the process by which waste materials are transformed into new products in such a manner that the original products may lose their identity.

(21) "Residential bulky waste" means items of solid waste normally produced by persons in their dwellings or on their dwelling premises that are too large or too heavy to be placed in a thirty-to thirty-five-gallon container or residential collection containers provided by solid waste haulers and includes household appliances, furniture, plumbing fixtures, playground equipment, yard appliances and equipment and similar materials but does not include vehicle major component parts, hazardous waste, demolition and construction waste or tree waste.

(22) "Residential trash" means solid waste normally produced by persons in their dwellings or on their dwelling premises that can be stored for collection in a residential trash container described in Section 7.08.030(1)(a) and includes but is not limited to garbage, paper, rags, cans, bottles and other containers, household wares, leaves, grass clippings, vegetation prunings, manure from dogs, cats and similar animals, and tree trimmings or branches tied in bundles not more than four feet in length and not more than eighteen inches in diameter placed beside the storage container, provided that bulky waste, hazardous waste, demolition and construction waste, and large animal manure are excluded.

(23) "Salvage material" means solid waste material that can be reused.

(24) "Salvaging" means the controlled removal of reusable materials.

(25) "Sanitary landfill" means a sanitary landfill operating under K.A.R. 28-29-1 et. seq., and regulated by the Kansas department of health and environment or other state agency.

(26) "Single-family dwelling" means a structure containing one dwelling unit.

(27) "Solid waste" means useless, unwanted or discarded solid or liquid (including sewage) material relating to or produced by agricultural, commercial, domestic or industrial activities, including but not limited to garbage, paper, rock, cans, bottles and other containers, packing material, household wares, leaves, grass, parts of trees, shrubs and other vegetation, ashes, lumber, masonry, concrete and other building materials, appliances and furniture, pesticides, chemicals, pathological materials, radioactive, flammable and explosive materials, oils and solvents, manure, implements and machinery, street sweepings and mud trap accumulations, provided that the term solid waste does not include any uncontaminated earth, stone, minerals or junk vehicles.

(28) "Solid waste collection vehicles" shall include:

(a) "Covered truck" means a vehicle with a bed that has sideboards and tailgate with no openings and a cover which is fastened to the sides and end gate and which will effectively contain the solid waste enclosed therein. Such covered truck may be used only for the collection and transportation of industrial solid waste, demolition and construction waste, bulky waste and tree waste.

(b) "Enclosed truck" means a vehicle with a totally enclosed watertight truck bed. All doors or openings of the truck bed shall be kept closed at all times except when solid waste is being deposited therein or re-

moved therefrom and shall effectively contain the solid waste enclosed therein. Such enclosed truck may be used only for the collection and transportation of commercial trash (free of garbage), bulky waste and industrial solid waste.

(c) "Flatbed truck" means a vehicle with a truck bed that is to be used only for tree waste. Such tree waste shall be secured or contained with chains, ropes or otherwise on such flatbed truck and so loaded that no part of the load extends beyond the sides of the bed and so that branches hanging over the rear of the bed have ample clearance above ground level.

(d) "Open bed truck" means a vehicle with a truck bed with sideboards and end gate that effectively contain the solid waste placed thereon. Such open bed truck shall be used only for the collection and transportation of bulky waste, residential bulky waste and tree waste, provided that such waste is effectively contained thereon.

(e) "Packer truck" means a vehicle with an enclosed liquid-tight body containing mechanical devices that convey solid waste into the main compartment of the body and compress it. Such packer truck may be used only for the collection and transportation of residential trash, commercial garbage, commercial trash, industrial solid waste and bulky waste that can be contained therein.

(f) "Special truck" means a vehicle with an appropriate body and/or containers for the type of hazardous waste or special waste being collected and transported. Such special truck shall be equipped and operated as required by the health officer and shall be used for such hazardous waste and special waste as approved by the health officer.

(g) "Trailer" means a non-self-propelled vehicle which may be used only for the collection, storage and transportation of material approved by the health officer.

(h) "Sewage tank truck" means a vehicle with a truck bed or a trailer of watertight construction, that is constructed for the transport of liquid wastes. All openings of the truck bed shall be kept closed except when waste is being deposited therein or removed therefrom and shall effectively contain the solid waste enclosed therein. All hoses, valves, pumps, cylinders, diaphragms, pipes and connections are to be in good repair and free of leaks. Each valve is to have a safety plug or cap. Two-way pumps are prohibited without special exemption being issued by the health officer. Such sewage truck may be used only for the collection and transportation of sewage not otherwise classified as a hazardous waste.

(29) "Solid waste collector" means any governmental agency or any person collecting, transporting and disposing of a solid waste, subject to the conditions of this chapter. The city shall be exempt from all provisions of this chapter.

(30) "Tree waste" means all tree or shrub waste including tree stumps, but does not include leaves, tree trimmings or branches tied in bundles not more than four feet in length and not more than eighteen inches in diameter placed beside the solid waste storage containers, vegetation prunings or wood chips placed in such container, fireplace wood or other wood fuel.

(31) "Yard waste" means leaves, grass and turf clippings and any other material approved by the health officer.

(Ord. No. 45-723 § 1 (part); Ord. No. 43-478 § 1)

Sec. 7.08.030. Residential trash.

(a) Storage.

(1) Single-family Dwellings. The occupant of each single-family dwelling shall provide sufficient containers to store all residential trash accumulated on such premises between weekly collection periods. The containers shall be of such material and design as approved by the health officer and shall consist of thirty-to thirty-five-gallon plastic or metal containers or other containers approved by the health officer.

Plastic bags may be used for yard wastes. Subject to the approval of the health officer, seventy-to one hundred-eight-gallon containers on wheels with an attached lid which can be emptied mechanically into the solid waste collection vehicle may be used with the permission of the solid waste collector. All residential trash containers shall be watertight, rodentproof and flyproof with lids or closures maintained in place.

All residential trash produced on each single-family dwelling premises shall be stored in the containers on the premises where produced and placed for convenient access by the solid waste collector. Containers shall be stored behind the front yard set back, except when placed on the curb for pickup on the day of collection.

(2) Multifamily Dwellings. The owner of each occupied multifamily dwelling shall provide, for the use of the occupants, containers as required for single-family dwellings of sufficient quantity to contain all residential trash produced on the premises between collection periods or in lieu of such containers shall provide a containerized unit(s) of sufficient size to contain all residential trash produced on the premises between collection periods. The owner of each multifamily dwelling shall be responsible for the trash being in the containers and the condition and maintenance of the containers.

(3) Apartments and Mobile Home Parks. The owner of each apartment complex and each mobile home park shall provide sufficient containers (no more than ten thirty-to thirty-five-gallon containers placed on any one location) or containerized units to contain all of the residential trash produced by the occupants of the premises between collection periods. Mobile home parks may provide individual thirty-to thirty-five-gallon containers or seventy-to one hundred-eight-gallon containers on wheels with an attached lid which can be emptied mechanically into the solid waste collection vehicle for each mobile home and in such case shall provide weekly collection for each mobile home.

The owner shall be responsible for the trash being in the containers and for the condition and maintenance of the containers.

(b) Collection and Disposal.

(1) Single-family Dwellings. The occupant of each single-family dwelling shall arrange and pay directly, unless otherwise paid, for all of the residential trash produced on such premises to be collected by a solid waste collector at least once each week.

Any solid waste collector may offer and, if accepted, provide residential trash collection to single-family dwellings and may charge whatever such collector determines to be appropriate for such service, provided that such solid waste collector utilizes a packer truck licensed by the city for such collection service and disposes of such trash at a licensed sanitary landfill or licensed processing facility.

(2) Multifamily Dwellings, Apartments and Mobile Home Parks. The owner of each occupied multifamily dwelling, apartment and mobile home park shall arrange and pay for all of the residential trash produced on such premises to be collected by a solid waste collector at least once each week.

Any solid waste collector may offer, and if accepted, provide residential trash collection service to multifamily dwellings, apartments and mobile home parks and may charge whatever such collector deems to be appropriate for such service, provided that such solid waste collector uses a packer truck, or other approved collection equipment, licensed by the city for such collection service, and disposes of such trash at a licensed sanitary landfill or licensed processing facility.
(Ord. No. 45-723 § 1 (part); Ord. No. 36-033; Ord. No. 35-870 (part))

Sec. 7.08.040. Residential bulky waste.

Residential bulky waste may be stored on the premises of single-family dwellings, multifamily dwellings, apartments and mobile home parks outside of an enclosed building for no longer than seven days. The occupant of each occupied single-family dwelling and the owners of multifamily dwellings, apartments, mobile home parks and unoccupied single-family dwellings are responsible to arrange for the removal and collection of all residential bulky waste within seven days after it has been placed on the premises outside of an enclosed building.

Any solid waste collector may offer and, if accepted, provide residential bulky waste collection service for single-family dwellings, multifamily dwellings, apartments and mobile home parks and may charge whatever he determines to be appropriate for such service provided that such solid waste collector utilizes a truck licensed for residential bulky waste collection by the city and disposes of such bulky waste at a sanitary landfill or at another licensed solid waste processing or licensed disposal facility.

An individual may haul his or her own residential bulky waste to a sanitary landfill or other licensed solid waste processing or licensed disposal facility provided that he or she accomplishes such hauling without littering, and pays the disposal fee.
(Ord. No. 45-723 § 1 (part); Ord. No. 35-870 (part))

Sec. 7.08.050. Tree waste.

(a) Storage. Tree waste may be stored outside a building no longer than seven days.

(b) Collection, Transportation and Disposal. All tree waste shall be collected by a solid waste collector utilizing a solid waste collection vehicle licensed by the city for such collection service and shall be disposed of at a facility that is operated in accordance with the laws of the state; provided, that an individual may collect and transport tree waste produced on residential premises which are occupied by such individual so long as such individual secures such tree waste with chains, ropes or otherwise and accomplishes such transportation to such facility described above for disposal without littering and pays the prescribed disposal fee at such facility.
(Ord. No. 45-723 § 1 (part); Ord. No. 35-870 (part))

Sec. 7.08.055. Cleanup days.

The governing body may designate any four days during a calendar year as cleanup days. On days that are designated as cleanup days by the governing body, any individual may haul residential trash, bulky waste, tree waste and demolition and construction waste to any sanitary landfill operated by the city and deposit same at the sanitary landfill free of charge. For purposes of this section, "individual" does not include licensed solid waste collectors.
(Ord. No. 34-392)

Sec. 7.08.060. Recycling.

Recycling of solid waste material is encouraged on an individual and collective basis, provided that such recycling efforts do not result in degradation of the environment. Materials such as but not limited to paper, glass, plastic and metal, to be offered and/or collected for recycling, shall be stored in an enclosed building or an enclosed container until scheduled for collection. Such storage may be for a time period longer than seven days provided that such storage does not create a fire hazard, health hazard or other nuisance.

Transportation of solid waste materials to a recycling facility for processing shall be accomplished by a solid waste collector, with a vehicle licensed for such purpose, as determined by the health officer, or by the individual producing such material at such individual's residential premises in a manner that will prevent littering, or by a group of citizens provided that there is no remuneration for the transportation and such transportation prevents littering. Recycling facilities and/or processing operations shall be conducted in accordance with requirements as determined by the health officer and may be conducted only if approved by the health officer.
(Ord. No. 45-723 § 1 (part); Ord. No. 42-474 § 1)

Sec. 7.08.070. Composting.

Composting of biodegradable residential garbage, yard waste, and tree waste, on residential premises may be accomplished provided that the composting is of materials produced on the premises associated therewith and provided that such composting does not result in odors, fly breeding, rodent activity or other nuisance and provided further that such composting is carried out in accordance with guidelines provided by the health officer. Community composting and/or mulching programs may be established after approval of the project by the health officer.
(Ord. No. 45-723 § 1 (part); Ord. No. 42-474 § 2)

Sec. 7.08.075. Commercial composting of yard waste.

(a) Prior to commencing operation the owner of a commercial composting site shall apply for and obtain a yard waste composting facility permit from the State of Kansas. The application will be reviewed by the health officer, zoning administrator, planning director, fire chief, storm water administrator and approved by the Sedgwick County solid waste committee, prior to its submission to the state. All recommendations made during the review stage will become part of the application and permit.

(b) The operator will be required to show that the siting and operation of the commercial composting site is in compliance with the following:

(1) The facility must be in an area that is zoned industrial and must be one thousand feet from any residentially zoned land. The health officer will determine if there should be a buffer zone separating the facility from other commercial businesses.

(2) Surface water drainage must be diverted away from the compost site. When possible, surface drainage shall be captured in an on-site retention pond and used to augment or maintain moisture conditions in the composting operation. Drainage shall be controlled to prevent leachate runoff from the composting site. No waste water may be discharged from the site unless prior approval from the health officer is obtained in accordance with Section 16.20.020(c)(8) of this Code.

(3) The facility shall not be allowed to become a public health, safety, or welfare nuisance.

(A) The site must be operated in a manner which will prevent the harborage or breeding of insects or rodents.

(B) The facility shall be maintained to minimize the emission of objectionable odorous air contaminants. Odor from the facility shall not exceed limits established by local ordinance.

(C) Any processing equipment used on the facility shall be in compliance with state air quality regulations.

(D) Noise from the facility shall not violate the standards established by local ordinance.

(E) No commercial composting will take place in an area where the groundwater is less than ten feet below grade.

(F) The operator will be responsible for ensuring that no debris or litter accumulates at the facility.

(G) Only solid waste which is able to be composted shall be processed on the site.

(H) The windrow construction and turning frequency must be sufficient to maintain aerobic conditions. Windrows shall not exceed ten feet in height, or have a volume exceeding one hundred and fifty thousand cubic feet.

(I) All-weather accessible fire lanes must be maintained through the facility.

(4) The health officer will cause regular inspections of the facility to be made, as well as following up on environmental complaints that are received.

(Ord. No. 45-723 § 1 (part); Ord. No. 42-956 § 1)

Sec. 7.08.080. Commercial garbage.

Commercial garbage which is not disposed of through garbage grinders or by incinerators constructed and operated in accordance with the laws of the State of Kansas shall be stored on the premises where produced in a container(s) as approved by the health officer and which is liquid-tight, fly-tight and closed by a liquid-tight, fly-tight cover. The occupant of each premises producing commercial garbage shall arrange for all such stored commercial garbage to be collected by a solid waste collector using a packer truck at least two times each week or at more frequent intervals so as to prevent nuisances as determined by the health officer and transported and disposed of at a licensed sanitary landfill or licensed processing facility. Any solid waste collector may offer collection service for such commercial garbage in accordance with a schedule of charges that such collector determines to be appropriate, provided that such solid waste collector utilizes a packer truck licensed by the city for such collection service and disposes of such garbage at a licensed and approved sanitary landfill or processing facility.
(Ord. No. 45-723 § 1 (part); Ord. No. 35-870 (part))

Sec. 7.08.090. Commercial trash.

The occupant(s) of each premises producing commercial trash shall provide and store all such trash produced thereon in suitable containers or facilities. Such containers or facilities shall consist of individual covered containers (lids or covers maintained in place) of such material and design as approved by the health officer and/or containerized unit(s) or a totally enclosed facility constructed of masonry, concrete or metal. Such storage containers or facilities may also be used to store industrial solid waste and shall have sufficient capacity to contain all solid waste produced on the premises between collection and shall be maintained so as to prevent littering, fly or mosquito production, rodent harborage, odors or other nuisances. The occupant of each premises producing commercial trash shall arrange for all such stored trash to be collected by a solid waste collector using a solid waste collection vehicle licensed by the City of Wichita for such collection service at least once each week or at more frequent intervals so as to prevent nuisances as determined by the health officer. The solid waste collector shall dispose of such trash at a sanitary landfill or at another licensed solid waste processing or licensed disposal facility.

Any solid waste collector may offer collection service for commercial trash in accordance with a schedule of charges such collector determines to be appropriate.
(Ord. No. 45-723 § 1 (part); Ord. No. 35-870 (part))

Sec. 7.08.100. Industrial solid waste.

The occupant(s) of each premises producing industrial solid waste shall store all such solid waste produced thereon in suitable containers or facilities. Such containers or facilities shall consist of individual containers, containerized units or a fenced or walled facility. Such storage containers or facilities shall have sufficient capacity to contain all industrial solid waste produced on the premises between collection and shall be maintained so as to prevent littering, fly or mosquito production, rodent harborage, odors or other nuisances. Such storage containers or facilities need not be covered provided that no other type of trash or solid waste is stored therein and unless it is determined by the health officer that complete enclosure or cover is necessary to prevent the above-mentioned nuisances. The occupant of each premises producing industrial solid waste shall arrange for all such stored solid waste to be collected by a solid waste collector, using a solid waste collection vehicle licensed by the city for such collector service, at least once each week or at more frequent intervals so as to prevent nuisances as determined by the health officer. The solid waste collector shall dispose of such trash at a sanitary landfill or at another licensed solid waste processing or licensed disposal site. Any solid waste collector may offer collection service for industrial solid waste in accordance with a schedule of charges such collector determines to be appropriate.
(Ord. No. 45-723 § 1 (part); Ord. No. 35-870 (part))

Sec. 7.08.110. Bulky waste—Nonresidential.

Bulky waste other than residential bulky waste may be stored on a premises outside of an en-

closed building no longer than seven days. The occupant(s) of such premises shall arrange for the removal and collection of all such bulky waste, after it has been placed on the premises outside of an enclosed building, by a solid waste collector using a solid waste collection vehicle licensed by the City of Wichita for such collection service. The solid waste collector shall dispose of such bulky waste at a sanitary landfill or at another licensed solid waste processing or licensed disposal facility. Any solid waste collector licensed for that purpose may offer collection service for bulky waste in accordance with charge such collector determines to be appropriate.
(Ord. No. 45-723 § 1 (part); Ord. No. 35-870 (part))

Sec. 7.08.120. Demolition and construction waste.

The occupant of each premises and/or the contractor of a construction or demolition project shall collect and remove or arrange for the collection and removal of all construction and demolition waste produced on such premises or in relation to a demolition or construction project. All such construction and demolition waste shall be collected and removed by a solid waste collector using a solid waste collection vehicle licensed by the City of Wichita for such collection. An individual may haul his or her own residential construction and demolition waste to a sanitary landfill or other licensed solid waste processing or licensed disposal facility provided that he or she accomplishes such hauling without littering, and pays the disposal fee. Such demolition and construction waste shall be disposed of at a sanitary landfill or other licensed solid waste processing or licensed disposal facility.

Construction and demolition waste shall be removed on a continuing basis as produced on the premises or in relation to a demolition or construction project and in no case shall such waste remain on the premises or in relation to a demolition or construction project for a period of longer than thirty days.

Any solid waste collector licensed for that purpose may offer collection service for construction and demolition waste in accordance with a schedule of charges such collector determines to be appropriate.
(Ord. No. 45-723 § 1 (part); Ord. No. 35-870 (part))

Sec. 7.08.125. Liquid waste.

The occupant(s) of each premises producing liquid waste must store all such wastes in a suitably constructed holding tank. Such tanks must be so constructed as not to leak any liquid stored therein, and may only be connected to a sanitary sewer with prior approval from the sewer system operator. Under no circumstances may a holding tank be connected to a storm sewer. All such liquid wastes shall be collected and removed by a solid waste collector using a solid waste collection vehicle licensed by the city for such collection. The generator of the liquid waste will provide a sample of the waste to be collected to the collector, and also complete a manifest for the waste, on forms provided by the city. Liquid wastes that are not disposed of through a municipal or private sanitary sewer system must be disposed of at a facility approved and licensed by the State of Kansas for the disposal of sewage and industrial liquid waste in accordance with current state and federal regulations. It is unlawful to dispose of any prohibited discharges, including wastes classified as hazardous wastes as defined by local, state, or federal regulations at a sewage treatment plant. At the point of disposal the manifest(s) and sample(s) will be transferred to the plant operator and checked for total volume and declared contents. Disposal of the load at a sewage treatment plant may be denied by the director of the water and sewer department, who may also recover disposal fees from the generator(s).
(Ord. No. 45-723 § 1 (part); Ord. No. 43-478 § 3)

Sec. 7.08.130. Hazardous waste.

Hazardous waste shall be stored in containers, facilities, or other manner which in all cases will prevent leakage of liquids, and/or the concentration or generation of harmful or explosive vapors or materials, offensive odors, any harmful exposure or nuisance conditions. Containers shall be constructed of durable, corrosion resistant, watertight construction provided with tight-fitting lids or covers, properly labeled and kept in a safe location protected from tampering by unauthorized persons. The storage, collection, and transportation of hazardous waste shall be subject to the approval of the health officer. Hazardous waste shall be collected and removed from the premises where produced or stored as often as necessary to prevent harmful and/or nuisance conditions with such collection and removal frequency subject to the approval of the health officer with consultation from the fire department as appropriate.

The transportation of hazardous waste from the premises where produced or stored shall only be accomplished in a special truck licensed by the city, and

approved by the health officer for the specific hazardous waste involved. The hazardous waste being transported shall be identifiable by a container label, bill of lading and/or by some other satisfactory method and may be subject to modification or rendering harmless all as required and determined by the health officer.

The hazardous waste shall be disposed of at a site and/or in accordance with methods approved by the health officer.
(Ord. No. 45-723 § 1 (part); Ord. No. 34-029 (part); Ord. No. 27-569 § 1 (part))

Sec. 7.08.135. Radioactive waste disposal.

Disposal of any radioactive waste, as defined in Section 7.08.020(19), shall be prohibited at any landfill or solid waste facility owned or operated by the City of Wichita.
(Ord. No. 41-309 § 2)

Sec. 7.08.140. Solid waste collection vehicle standards, maintenance, licensing and fees.

(a) All solid waste collection vehicles of each solid waste collector collecting solid waste in the city shall be licensed, maintained and operated in accordance with the definitions and other sections of this chapter. Each solid waste collection vehicle prior to licensure and operation each year shall be inspected and approved by the health officer as to compliance with this chapter. Provided also that the director of the water and sewer department or authorized designee may review any or all applications for sewer tank truck licenses. Additionally, each operator of a sewer tank truck must have on file with the health officer a contingency plan for accidents that result in a spill of liquid wastes from the vehicle. Each solid waste collection vehicle shall be maintained in a safe and operable manner, be capable of providing collection services for which it is licensed, be kept in a clean condition, and have the name of the operator on each side of the truck in letters at least four inches in height.

(b) Each solid waste collector shall, for each solid waste collection vehicle operated by such collector, pay an annual license fee by November 1st of each year, starting in 2012, in accordance with the following schedule:

(1) Covered truck-to be used only for industrial solid waste, demolition and construction waste, bulky waste and tree waste, one hundred dollars; provided that, if the covered truck is used to transport the designated solid waste produced only from premises owned and/or occupied by the solid waste collector, the annual license fee shall be reduced to twenty-five dollars;

(2) Enclosed truck-to be used only for commercial trash, industrial solid waste and bulky waste, one hundred and fifty dollars;

(3) Flatbed truck-to be used only for tree waste, fifty dollars;

(4) Open bed truck-to be used only for bulky waste, residential bulky waste and tree waste, fifty dollars;

(5) Packer truck-to be used only for residential trash, commercial garbage, commercial trash, industrial solid waste and bulky waste, four hundred and fifty dollars;

(6) Special truck-to be used only for hazardous waste and special waste, both as approved by the health officer, fifty dollars;

(7) Trailer-to be used only for salvage material, yard waste, or tree waste, twenty-five dollars;

(8) Sewage tank truck-to be used only for sewage not otherwise classified as hazardous waste, one hundred dollars;

(c) Licenses shall be renewed by November 1st of each year, starting in 2012, with a ten percent penalty assessed after November 31st for each month or portion thereof for delinquent renewals. Initial license fees shall be prorated, in full month increments, for applications received after November 1st. This provision shall not apply to delinquent renewals. There shall be no refund of fees once paid.

(d) Each solid waste collector shall submit an application, on forms provided by the health officer, for a solid waste collection vehicle license for each solid waste collection vehicle prior to November 1st of each year and also prior to the operation of any additional solid waste collection vehicle in between licensure dates.

Each solid waste collector as a condition of receiving a license for a packer truck thereby agrees to provide weekly residential trash collection for any single-family dwelling or multifamily dwelling located in the city as requested by the occupant and/or owner of such dwelling upon payment of the agreed charges, provided that such solid waste collector already provides residential trash collection service to

one or more such dwellings located within the block of such dwelling for which service is requested. Refusal of such requested service in accordance with the heretofore stated conditions shall be cause for the revocation of a packer truck license. The health officer shall approve or disapprove the licensure category indicated on the application. The city treasurer, upon approval by the health officer and police department as to compliance with this chapter and payment of the appropriate fee, shall issue a solid waste collection vehicle license and two registration tags or decals bearing the number and vehicle category for each solid waste collection vehicle so approved for licensure and/or operation by the health officer. The city treasurer may delegate issuance of the license and registration tags or decals to the department of environmental health. One such tag or decal shall be securely attached to each side of the licensed solid waste vehicle by the solid waste collector in such a position that it shall be at all times clearly visible.

(e) With the approval of the health officer the license may be transferred to a replacement vehicle operated by the same licensee.

(f) Each solid waste collector shall provide collection service in accordance with a schedule as agreed by such solid waste collector and such collector's individual customers. In the case of breakdowns of collection equipment, the solid waste collector shall maintain standby equipment or otherwise arrange for collection services as scheduled or as soon as practicably possible. Residential solid waste collection service shall be scheduled and provided only during the hours of six a.m. to eight p.m. on Monday through Saturday; provided that the health officer may authorize nonscheduled Sunday collection requested by a solid waste collector when normal scheduled collection is negated by emergencies such as adverse weather.

(g) Solid waste collection vehicles when not in use for the collection of solid waste shall be parked, stored and maintained off of public right-of-way only in zoning districts GC, CBD, LI and GI. Solid waste collection vehicles are prohibited from being parked, stored or maintained on all public streets and private property in all other zoning districts as defined in the Wichita-Sedgwick County Unified Zoning Code, except when actually collecting solid waste or conducting reasonable and related business activities. Reasonable business activities do not include overnight parking, parking in excess of one hour during collection activities, or parking prior to the commencement or following completion of daily collection activities.
(Ord. No. 45-723 § 1 (part); Ord. No. 43-478 § 2; Ord. No. 49-107, § 4, 10-18-2011)

Sec. 7.08.150. Solid waste disposal.

It is unlawful for any person to process or dispose of solid waste other than in accordance with the provisions of this chapter.
(Ord. No. 45-723 § 1 (part); Ord. No. 35-870 (part))

Sec. 7.08.160. Salvaging.

Salvage or reclamation of materials shall be permitted only when facilities specifically designed for the purpose of salvaging or processing solid waste are provided, and when the salvage materials are properly controlled to prevent interference with prompt sanitary disposal of solid waste. All salvage operations shall be conducted in a manner that will not create a nuisance.
(Ord. No. 45-723 § 1 (part); Ord. No. 34-029 (part); Ord. No. 27-569 § 1 (part))

Sec. 7.08.170. Enforcement.

(a) The health officer shall be responsible for the enforcement of this chapter and is hereby authorized to conduct inspections and make investigations, to issue notices, orders and directions, and to take such actions and carry out such activities as are necessary for the enforcement of this chapter.

(b) In the event of necessity, the health officer or his or her designee shall be authorized to procure the right of entry, inspection and abatement by obtaining an administrative warrant from a judge of the district court.

(c) The health officer may authorize in specific cases a variance from the specific terms of this chapter which will not be contrary to the public interest and where, owing to special conditions, a literal enforcement of the provisions of this chapter will, in an individual case, result in unnecessary hardship, and provided that the spirit of this chapter shall be observed, public safety and welfare secured, and substantial justice done. A request

for a variance may be granted upon a finding by the health officer that all of the following conditions have been met:

(1) That the variance requested would not adversely affect the public health, safety, order, convenience, or general welfare;

(2) That granting the variance desired will not be opposed to the general spirit and intent of this chapter;

(3) That granting the variance will not result in littering, creating a health hazard or nuisance;

(4) That the strict application of the provisions of this chapter would result in an undue hardship, or would be unreasonable, impractical or not feasible.

(d) In granting a variance, the health officer may impose such conditions as he or she deems necessary to prevent and to control any littering; health hazard; nuisance; air, land or water pollution and to comply with the intent and purpose of all applicable local, state and federal laws. The health officer may also place any time limitations on the variance that he or she deems appropriate under the circumstances.

(e) A request for a variance shall be in writing and shall be filed with the health officer. Any person dissatisfied with any order or determination of the health officer may appeal such order or determination within ten days of notice of the determination to the city council.

(f) Whenever the health officer determines that there has been a violation of any provisions of this chapter, the health officer may give notice of such alleged violation(s) to the person or persons responsible therefore as hereinafter provided. Such notice shall: be in writing, particularize the violation(s) alleged to exist or to have been committed, provide a reasonable time for correction of the violation(s) particularized, be addressed to and served upon the owner and/or occupant of the premises or the operator of the vehicle or the equipment involved. A reasonable time under this subsection shall be five days, or such longer time as may be specifically stated in the notice. Notice shall be served upon such owner, occupant or operator by certified mail to his or her last known address, provided, further, that if the attempt to serve notice by this method is not successful, service of the notice is to be made upon such person or persons by at least one publication in the official newspaper of the City of Wichita. Such publication shall contain the conditions and reasons of the notice.

(g) The notice shall further state that the person or government entity to whom the notice is directed may file a request for a hearing before the health officer or his designee, provided however, that said notice must be filed no later than three days prior to the deadline for correction of the violation(s). The hearing shall be held for the purpose of defending the charges by the city and shall be held as soon as practicable after filing of the request. The person who requested the hearing shall be advised in writing of the date and time of the hearing.

(h) The provisions of [Section] 3.04.050, Penalty for nonpayment of fees; [Section] 3.04.065, Appeals for license denials and [Section] 3.04.075, Revocation, shall apply to the licenses established under this chapter.

(i) Failure to correct or file a request for hearing on the violation(s) of this chapter or other applicable ordinances of the City of Wichita, Kansas, by a solid waste collector after receiving notice thereof may result, in the revocation of the solid waste collection vehicle license of such solid waste collector by the health officer. Any such solid waste collector feeling aggrieved at such revocation may appeal, within ten days, the action of the health officer to the city council.

(j) In addition to the remedy of prosecution and enforcement, the health officer is hereby authorized, empowered and directed on proper notice as herein provided to abate or suppress any violation of the chapter and for the purpose of carrying out provisions of this section the health officer is hereby authorized to enter into or upon any premises or establishment for the purpose of making a thorough examination after the presence of the health officer is made known if the premises are occupied and attended and to determine whether a violation exists. If, upon examination, the health officer determines that a violation exists, the health officer shall, after giving proper notice as herein provided to the owner or occupant of the premises or operator of the vehicle or equipment involved and after the opportunity for a hearing, proceed to cause the condition causing the violation to be abated or suppressed by enlisting the services of the director of the department of public works or private contractor and tax the cost thereof against the lot or tract of ground upon which the violation is located and maintained or against the property of the owner of the vehicle or equipment

involved as provided by law. The cost of such abatement is to be certified to the clerk of the City of Wichita, after the violation has been abated or suppressed.
(Ord. No. 45-723 § 1 (part); Ord. No. 35-870 (part))

Sec. 7.08.180. Littering and illegal dumping.

It is unlawful for any person to litter, scatter or spill solid waste, dump or dispose of solid waste at any site other than at a licensed sanitary landfill or other licensed processing facility or to store, collect, transport, process, dispose of, sell or offer for sale solid waste or salvage materials so as to create a nuisance or other than as provided for in this chapter. Solid waste collection vehicles licensed as covered trucks shall be deemed to be in violation of this section if the cover is not in place providing an effective cover during the transporting of any solid waste contained therein.
(Ord. No. 45-723 § 1 (part); Ord. No. 35-870 (part))

Sec. 7.08.190. Penalty.

Any person who shall be convicted of violating any provisions of this chapter shall be deemed guilty of a misdemeanor and shall be punished by confinement for a definite term which shall be fixed by the court which shall not exceed six months, or a fine of not more than five hundred dollars or both such confinement and fine. Each day that any violation of this chapter occurs shall constitute a separate offense and shall be punishable as a separate violation. If upon trial of any person found guilty of a misdemeanor, it shall appear to the court that the violation complained of as proscribed in this chapter is continuing, the court shall enter such order as it shall deem appropriate to cause the violation to be abated.
(Ord. No. 45-723 § 1 (part); Ord. No. 40-087 § 1)

CHAPTER 7.12. DEAD ANIMALS AND OFFAL (Not Disposed of as Garbage)

Sec. 7.12.010. Declared nuisance; collection and disposal required.
Sec. 7.12.020. Rules and regulations.
Sec. 7.12.030. Methods of disposal generally; licenses for collectors.
Sec. 7.12.035. Dead animal and offal collection vehicle standards, maintenance, licensing and fees.
Sec. 7.12.040. Collector's license fee.
Sec. 7.12.050. Use of streets, etc., for private disposition prohibited; exception.
Sec. 7.12.080. Penalty for violation of chapter.

Sec. 7.12.010. Declared nuisance; collection and disposal required.

All dead animals, dead fowls, offal, meat scraps, bones, suet, unrendered animal fat, and waste cooking greases, located within the corporate limits of the city not properly kept under refrigeration or not disposed of as garbage, under the provisions of Chapter 7.08 are hereby declared a nuisance and menace to the public health, requiring the prompt and regular collection and disposal thereof under the authority and direction of the director of public health of the city.
(Ord. 22-874 § 1)

Sec. 7.12.020. Rules and regulations.

The director of public health of the city is hereby empowered to promulgate and enforce such reasonable rules and regulations as he shall deem necessary and proper to effectively protect the public health in connection with Sections 7.12.010 and 7.12.030 and consistent with the provisions of this chapter.
(Ord. No. 22-874 § 3)

Sec. 7.12.030. Methods of disposal generally; licenses for collectors.

All dead animals, dead fowls, offal, meat scraps, bones, suet, unrendered animal fat and waste cooking gams not properly kept under refrigeration or not disposed of as garbage, shall be turned over or delivered by the owner thereof:

(1) To the environmental health division of the department of community health of the city, provided, however, that such division shall not be required to collect or dispose of any of the above mentioned items except small animals and fowls; or

(2) Directly to a rendering plant approved by the State Livestock Sanitary Commissioner, or a rendering plant operating under the supervision of the Agricultural Research Service, U.S. Department of Agriculture; or

(3) To a collector having been issued a license as hereinafter provided in this chapter.

Any person to whom a license is issued under the term of this chapter shall dispose of such dead animals, dead fowls, offal, meat scraps, bones, suet, unrendered animal fat and waste cooking greases by delivering the same to a desiccating plant or rendering plant approved by the State Livestock Sanitary Commission or such other places as may be approved by the director of public health of the city.
(Ord. No. 39-518 § 3)

Sec. 7.12.035. Dead animal and offal collection vehicle standards, maintenance, licensing and fees.

(a) All trucks, vehicles or other conveyances used for the nation of dead animals, offal, meat scraps, bones, suet, unrendered animal fat and waste cooking greases in the city of Wichita shall be licensed, maintained and operated in accordance with this chapter. Each dead animal or offal collection vehicle prior to licensure and operation each year, shall be inspected and approved by the health officer as to compliance with this chapter. Each dead animal or offal collection vehicle shall be maintained in a safe and operable manner, be capable of providing collection services for which it is licensed, and be kept in a clean condition.

(b) Each dead animal or offal collector, other than governmental agencies, shall for each collection vehicle operated by such collector pay an annual license of twenty-five dollars.

(c) Such fees as heretofore prescribed shall not be applicable to dead animal and offal collection vehicles licensed after the effective date of the ordinance codified in this section, and all licenses

shall be renewed by May 1st of each year with a ten-percent penalty assessed after May 31st for each month or portion thereof for delinquent renewals. License fees shall be prorated but not refunded.

(d) Each dead animal and offal collector, including governmental agencies, shall submit an application on forms provided by the health officer for a collection vehicle license for each collection vehicle operated by him at least ninety days prior to May 1st of each year, and also prior to the operation of any additional collection vehicle in between license dates. Such application form shall contain information concerning name, address and phone number, make, model year, gross weight and license tag number of vehicle; type, make, model and capacity of body; and off-street location where the dead animal and offal collection vehicle is parked, stored and maintained when not in use for collection. In the event this off-street location shall be changed during the license period, the health officer shall immediately be notified of the new off-street location. Modification to include any other information on the application form shall be subject to review and approval by the city commission. The city treasurer, upon approval by the health officer as to compliance with this chapter and payment of the appropriate fee, shall issue a dead animal and offal collection vehicle license and two registration tags or decals bearing the number and vehicle category for each collection vehicle so approved for licensure and/or operation by the health officer. One such tag or decal shall be securely attached to each side of the licensed vehicle by the collector in such a position that it shall be at all times clearly visible.

(e) Dead animal and offal collection vehicles when not in use for the collection of dead animals and offal shall be parked, stored, and maintained off of public right-of-way only in zoning districts C, D, E and F. Dead animal and offal collection vehicles are prohibited from being parked, stored or maintained on all public streets and private property in zoning districts AA, A, RB, R-5, R-6, B, G, BB, OC and LC, as defined in Chapter 28.04 of the Code of the City of Wichita, Kansas, except when actually collecting dead animals and offal. The health officer shall verify the zoning district of the off-street location prior to final license approval by the health officer.

(f) All dead animals or offal collection vehicles which are not enclosed shall be completely covered with canvas which has been treated so as to be reasonably impervious to moisture, or in other approved mariner.
(Ord. No. 39-518 § 4)

Sec. 7.12.040. Collector's license fee.

All persons engaged or engaging in the business of the collection of dead animals, dead fowls, offal, meat scraps, bones, suet, unrendered animal fat and waste cooking greases shall pay a license fee of two hundred ninety dollars per year, due July first of each year. Provided, however, that on and after July 1, 1986, the fee for such license shall be four hundred dollars.
(Ord. No. 39-250 § 7)

Sec. 7.12.050. Use of streets, etc., for private disposition prohibited; exception.

It is unlawful for any person not having a license issued pursuant to this chapter to use the streets, alleys or avenues of the city for the purpose of collecting, removing or transporting dead animals, dead fowls, offal, meat scraps, bones, suet, unrendered animal fat and waste cooking greases not properly kept under refrigeration or not disposed of as garbage, except that the owner of such inedible material is expressly authorized to use the streets to transport and deliver such material to an approved rendering plant as defined and provided in this chapter.
(Ord. No. 22-874 § 6)

Sec. 7.12.080. Penalty for violation of chapter.

Any person convicted of violation of any of the terms of this chapter is guilty of a misdemeanor and upon conviction thereof shall be fined in the sum of not to exceed five hundred dollars for each and every offense or by imprisonment of not more

than six months or both such fine and imprisonment. Each and every day's violation shall be considered a separate offense.
(Ord. No. 40-088 § 1)

CHAPTER 7.20. RESERVED*

*__Editor's note—__Ord. No. 50-862, § 1, adopted Sept. 25, 2018, repealed Ch. 7.20, §§ 7.20.010—7.20.025, which pertained to restaurants and derived from Ord. No. 45-926 § 1 (part).

CHAPTER 7.22. RESERVED*

*__Editor's note—__Ord. No. 50-897, § 1, adopted Nov. 27, 2018, repealed Ch. 7.22, §§ 7.22.010—7.22.160, which pertained to food establishments, and derived from Ord. No. 45-165, §§ 1—8; Ord. No. 40-716, §§ 1—16; and Ord. No. 49-607, § 1, adopted Nov. 26, 2013.

CHAPTER 7.25. CHILD CARE FACILITIES.

Sec. 7.25.010. Definitions.
Sec. 7.25.020. License or registration required.
Sec. 7.25.030. Standards for operation.
Sec. 7.25.040. Inspection authorization.
Sec. 7.25.050. Access.
Sec. 7.25.060. Interference with a health officer or refusal to identify.
Sec. 7.25.070. Penalty.
Sec. 7.25.080. Severability.

Sec. 7.25.010. Definitions.

"Child care facility" means:

(a) Any child care center or preschool as defined by K.A.R. 28-4-420; or

(b) Any day care home or group day care home as defined by K.A.R 28-4-113; or

(c) Any day reporting program, drop-in program, mobile summer program, outdoor summer camp, or school-age program as defined by K.A.R. 28-4-576; or

(d) Any school-aged drop-in program as defined by K.A.R. 28-4-700; or

(e) Any residential center or group boarding home as defined by K.A.R. 28-4-268;

(f) Any maternity center as defined by K.S. A. 65-502; or

(g) Any detention center or secure care center as defined by K.A.R. 28-4-350; or

(h) Any secure residential treatment facility as defined by K.A.R. 28-4-330; or

(i) Any day care referral agency as defined by K.A.R. 28-4-185.

"Family day care home" means a child care operation in a private home as defined by K.S.A. 65-517.

"Health Officer" means the director of the Department of Environmental Services or his or her authorized representative.

"Person" means any individual, corporation, partnership, association, firm, joint venture, company, other state franchised business entity such as a professional association, limited liability company, or limited liability partnership or other organization of any kind.
(Ord. No. 47-723, § 1, 12-18-07)

Sec. 7.25.020. License or registration required.

No person shall operate a child care facility within the city limits without first having secured a license from the Kansas Department of Health and Environment. No person shall operate a family day care home or a child care facility that is a day care home, or group day care home within the city limits without first having registered or licensed the facility through the Kansas Department of Health and Environment and securing a home occupation license from the Office of Central Inspection.
(Ord. No. 47-723, § 2, 12-18-07)

Sec. 7.25.030. Standards for operation.

K.S.A. 65-507, 65-508, 65-510, 65-516, and 65-530 are incorporated by reference and shall apply as standards of operation to all child care facilities and family day care homes as defined in Section 7.25.010. In addition, the following additional standards shall apply to the child care facility types indicated:

(a) *Child care centers and preschools:* Kansas regulations for licensing preschools and child care centers, as published by the Kansas Department of Health and Environment (K.A.R. 28-4-123 through 28-4-132, and K.A.R. 28-4-420 through K.A.R. 28-4-442) are incorporated by reference and shall constitute the standards for operation of a child care center or preschool as defined by K.A.R. 28-4-420.

(b) *Licensed day care homes and group day care homes:* Kansas regulations for licensing day care homes and group day care homes, as published by the Kansas Department of Health and Environment (K.A.R. 28-4-113 through 28-4-119(b), and K.A.R. 28-4-123 through K.A.R. 28-4-132) are incorporated by reference and shall constitute the standards for operation of a

day care home as defined by K.A.R. 28-4-113(b), or group day care home as defined by K.A.R. 28-4-113(h).

(c) *School age programs:* Kansas regulations for licensing school age programs, as published by the Kansas Department of Health and Environment (K.A.R. 28-4-576 through 28-4-596) are incorporated by reference and shall constitute the standards for operation of drop-in programs, mobile summer programs, outdoor summer camps, and school-age programs as defined by K.A.R. 28-4-576.

(d) *Drop-in programs:* Kansas regulations for drop-in programs serving school age children and youth, as published by the Kansas Department of Health and Environment (K.A.R. 28-4-700 through 28-4-702.5) are incorporated by reference and shall constitute the standards for operation of a drop-in program as defined by K.A.R. 28-4-700.

(e) *Residential centers and group boarding homes:* Kansas regulations for licensing residential centers and group boarding homes, as published by the Kansas Department of Health and Environment (K.A.R. 28-4-123 through 28-4-132 and K.A.R. 28-4-268 through K.A.R. 28-4-280) are incorporated by reference and shall constitute the standards for operation of a residential center or group boarding home as defined by K.A.R. 28-4-268.

(f) *Maternity centers:* Kansas regulations for licensing maternity centers, as published by the Kansas Department of Health and Environment (K.A.R. 28-4-370 through 28-4-379) are incorporated by reference and shall constitute the standards for operation of a maternity center as defined by K.S.A. 65-502.

(g) *Detention and secure care centers:* Kansas regulations for licensing detention and secure care centers, as published by the Kansas Department of Health and Environment (K.A.R. 28-4-350 through K.A.R. 28-4-360) are incorporated by reference and shall constitute the standards for operation of a detention center or a secure care center as defined by K.A.R. 28-4-350.

(h) *Secure residential treatment facilities:* Kansas regulations for licensing secure residential treatment facilities, as published by the Kansas Department of Health and Environment (K.A.R. 28-4-330 through 28-4-343) are incorporated by reference and shall constitute the standards for operation of a secure residential treatment facility as defined by K.A.R. 28-4-330.

(i) *Day care referral agencies:* Kansas regulations for licensing day care referral agencies, as published by the Kansas Department of Health and Environment (K.A.R. 28-4-185 through 28-4-189) are incorporated by reference and shall constitute the standards for operation of a day care referral agency as defined by K.A.R. 28-4-185.

(j) *Family day care homes:* Kansas statutes for registration of family day care homes, (K.S.A. 65-516 through 65-526, and 65-528 through 65-531), and Kansas regulations for registration of family day care homes, as published by the Kansas Department of Health and Environment (K.A.R. 28-4-123 through 28-4-132), the Safety Evaluation Checklist as required by KSA 65-519 (a) (2), and all rules or regulations adopted by the Kansas Department of Health and Environment pursuant to K.S.A. 65-522 are incorporated by reference and shall constitute the standards for operation of a family day care home as defined by K.S.A. 65-517.

(Ord. No. 47-723, § 3, 12-18-07)

Sec. 7.25.040. Inspection authorization.

The Department of Environmental Services is authorized to inspect and provide other services for child care facilities and family day care homes licensed or registered by the Kansas Department of Health and Environment to aid enforcement of its regulations and statutes. The Health Officer is authorized to set and publish a schedule of fees, with City Council approval by resolution, for

inspections and other services sufficient to offset actual expenditures not otherwise fully reimbursed by grants from the Kansas Department of Health and Environment or for license fees for regulatory purposes. The child care facility license holder or registered provider, or the applicant for licensure or registration, shall be responsible for payment of fees. The Department of Environmental Services may also provide inspection services within other jurisdictions as an independent contractor.
(Ord. No. 47-723, § 4, 12-18-07)

Sec. 7.25.050. Access.

The Health Officer, after proper identification, shall be permitted to enter any child care facility or family day care home during its hours of operation for the purpose of making inspections to determine compliance with this chapter. The Health Officer shall be permitted to examine records maintained in the child care facility or family day care home during such inspection, or at other times upon reasonable notice.
(Ord. No. 47-723, § 5, 12-18-07)

Sec. 7.25.060. Interference with a health officer or refusal to identify.

It is unlawful for any person to:

(a) refuse to identify himself or herself by his or her correct name, address and birth date when asked to do so by the Health Officer during the inspection of a child care facility or family day care home, or at any time when the Health Officer has probable cause to believe that such person has violated a section of this chapter; or

(b) interfere with, molest, injure or willfully obstruct, resist or oppose the Health Officer in the lawful discharge of his or her duties as prescribed in this chapter.

(Ord. No. 47-723, § 6, 12-18-07)

Sec. 7.25.070. Penalty.

Any person who violates any of the provisions of this chapter is guilty of a misdemeanor, and upon conviction, shall be punished by a fine not to exceed one thousand dollars or by imprisonment of not more than six months, or by both such fine and imprisonment. Each day any violation hereof is found to exist or continues to exist shall be a separate offense and punishable as such hereunder.
(Ord. No. 47-723, § 7, 12-18-07)

Sec. 7.25.080. Severability.

Should any section or provision of this chapter for any reason be held void, unconstitutional or invalid, it shall not affect the validity of any other section or provision hereof which is in itself not void, unconstitutional or invalid.
(Ord. No. 47-723, § 8, 12-18-07)

CHAPTER 7.30. WATER WELLS

Sec. 7.30.010. Definitions.
Sec. 7.30.020. Inspection requirements.
Sec. 7.30.030. Water well sampling requirements.
Sec. 7.30.040. Responsibility and fees for permits, installations, inspections and sampling.
Sec. 7.30.050. Construction and connection requirements.
Sec. 7.30.061. Registration required.
Sec. 7.30.062. Application for registration—Issuance.
Sec. 7.30.063. Registration fee and transferability.
Sec. 7.30.064. Appeal of agency action.
Sec. 7.30.065. Invalidity of part.
Sec. 7.30.070. Water well record.
Sec. 7.30.080. Request for waivers.
Sec. 7.30.090. Referral of waivers.
Sec. 7.30.100. Inspection.
Sec. 7.30.105. Water wells in contaminated areas.
Sec. 7.30.110. Penalty.

Sec. 7.30.010. Definitions.

Unless otherwise specified the following terms as used in this code shall mean as follows:

"*Bacteriologically safe water sample*" means a water sample collected by the health officer and analyzed by a laboratory approved by the Department of Environmental Health that is determined to have no detectable fecal coliform in 100 ml.

"*Contaminated area*" means an area designated by official action of the Environmental Protection Agency or Kansas Department of Health and Environment as having groundwater that is environmentally contaminated to an extent that requires remediation or similar action for the protection of human health and the environment.

"*Contaminated water sample*" means a water sample which does not meet public drinking water standards. A water sample that does meet public drinking water standards for bacteria is defined as being a bacteriologically safe water sample.

"*Department*" means the Department of Environmental Health.

"*Domestic well*" means a water well used by any person, family unit or entity for personal use or other applications in households or commercial, governmental, or other non-industrial applications; or for watering of livestock, poultry, farm and domestic animals; or for irrigation of lands not exceeding a total of two acres for the growing of gardens, orchards, lawns and ornamental plantings.

"*Health officer*" means the director of the Department of Environmental Health or his or her authorized representative.

"*Non-community water supply wells*" are those wells that provide groundwater to the public for human consumption and serve at least 10 service connections or serve an average of 25 or more individuals daily at least 60 days of the year.

"*Personal use*" means the human consumption of water from a well for purposes including drinking, cooking, bathing and sewage disposal.

"*Pit well*" means any well installed in a structure or excavation below grade, including but not limited to wells in pits, vaults or storm cellars.

"*Screening tests*" are preliminary water tests performed through the use of disposable color change strips or appliances to determine if further testing is required.

"*Semi-public water wells*" are those wells that provide groundwater to the public for human consumption; and serve more than one person or family unit and that has fewer than 10 service connections or serves an average of less than 25 individuals daily fewer than 60 days out of the year.

"*Water well*" means any excavation that is drilled, cored, bored, washed, driven, dug, jetted, or otherwise constructed when the intended use of the excavation is for the location, diversion, artificial recharge, or acquisition of groundwater.

(Ord. No. 41-441, § 2; Ord. No. 43-156, § 1; Ord. No. 46-119, § 1, 4-6-04)

Sec. 7.30.020. Inspection requirements.

A. The Department of Environmental Health is authorized to inspect newly constructed, reconstructed, existing, or abandoned water wells, and

set a schedule of fees for inspection services. Inspection services may be provided by the City as an independent contractor.

B. A property owner or other holder of a legal interest in the property who knows or has reason to know of a water well on the property has an obligation to request a water well inspection under certain conditions. This obligation is triggered by construction, reconstruction, or abandonment of any existing active, inactive, or abandoned water well, or upon offering the property for a transfer of ownership. ;hn0 (Ord. No. 41-441, § 2; Ord. No. 46-119, § 2, 4-6-04)

Sec. 7.30.030. Water well sampling requirements.

A. The Department of Environmental Health is authorized to collect samples from any water well for the protection of public and environmental health. These samples may be taken for any analysis determined to be appropriate by the Director of Environmental Health. It may also be done at the request of the property owner.

B. The Department of Environmental Health is authorized to collect water samples from personal use water wells under the following circumstances:

1. Sampling shall be done for all newly constructed or reconstructed personal use water wells, and existing wells prior to the transfer of ownership of any property. These samples must at least be analyzed for bacteria and nitrates.
2. If a bacteriologically safe water sample is not obtained from a personal use well, the property owner must have the water well disinfected and sampled until a bacteriologically safe water sample is obtained.
3. If a contaminated water sample is obtained from a personal use well, the property owner must take whatever action is deemed necessary by the Department of Environmental Health to obtain a potable water supply.

C. The Department of Environmental Health is authorized to collect water samples from semipublic water wells for an annual bacteriological analysis and for organic or inorganic chemical analysis, if positive results are obtained through screening tests.

1. If a bacteriologically safe water sample is not obtained, the property owner must have the water well disinfected and sampled until a bacteriologically safe sample is obtained.
2. If a contaminated water sample is obtained, the property owner must take whatever action is deemed necessary by the Department of Environmental Health to obtain a potable water supply.

D. The Department of Environmental Health is authorized to collect water samples from noncommunity water supply wells for a semiannual bacteriological analysis and for organic or inorganic chemical analysis, if positive results are obtained through screening tests.

1. Until a bacteriologically safe or uncontaminated water sample has been obtained, the property owner must meet the following requirements:
   a. Any water used for cooking or human consumption must be bottled water from a source approved by the Department of Environmental Health.
   b. Any ice used on the premises must be packaged ice from a source approved by the Department of Environmental Health.
   c. Any water used for sanitizing must be sanitized by a chemical additive or by heating as approved by the Department of Environmental Health.
2. If a bacteriologically safe water sample is not obtained, the property owner must have the water well disinfected and sampled until a bacteriologically safe water sample is obtained.
3. If a contaminated water sample is obtained, the property owner must take whatever action is deemed necessary by

the Department of Environmental Health to obtain a potable water supply for personal use.

E. Any person with a legal interest in the affected property may request sampling and analysis of any water well on that property.
(Ord. No. 41-441, § 3; Ord. No. 46-119, § 3, 4-6-04)

Sec. 7.30.040. Responsibility and fees for permits, installations, inspections and sampling.

A. A property owner or state-licensed water well contractor registered with the City or the contractor's authorized agent shall obtain a permit prior to construction of any domestic water well to be located within the corporate limits of the City.

B. Only a state-licensed water well contractor registered with the City shall install a personal use water well within the corporate limits of the City.

C. The property owner shall be responsible for all fees for permits, and for inspection and sampling conducted pursuant to 7.30.030 A, B, C. and D. Requests for sampling by any other person with a legal interest in the property, pursuant to 7.30.030 E. shall be paid by the requesting party, unless the property owner has given prior written consent for that testing and assumed the financial responsibility for the same. All fees are to be determined by the Department of Environmental Health Director.
(Ord. No. 41-441, § 4; Ord. No. 46-119, § 4, 4-6-04)

Sec. 7.30.050. Construction and connection requirements.

The property owner shall be responsible for meeting the following requirements:

A. All active, inactive, or abandoned water wells are to meet current construction, location, and plugging standards.

B. The separation distance between wells and soils or foundations which have been treated or pretreated with a sub-surface pressurized application of a termiticide shall be in accordance with the separation distances specified by the labeling and application instructions for the termiticide used in accordance with the Federal Insecticide Fungicide and Rodenticide Act and other applicable State of Kansas Title 30 water well construction regulations. That minimum separation distance shall be presumed to be twenty-five feet, unless the property owner can demonstrate on written appeal to the Director of Environmental Health that a different distance for application of the specific termiticide used is appropriate and legally compliant. That appeal shall be heard and decided by the Director, or his or her designee, within 30 days of the receipt of the appeal, which shall be presented in writing.

C. Pressure Water Line and Sewer Line Requirements.

1. The sewer line is to be two or more feet below the water line, or:

2. If a sewer line is within ten feet of a water line, the sewer line is to be constructed of cast iron pipe with fitted joints or approved plastic pipe with solvent weld joints.

D. The property owner is to have personal use water wells disconnected and connection made to a public water supply system when deemed necessary by the Director of Environmental Health, to mitigate a public health nuisance, or at the time of listing of the affected property for sale, if:

1. A public water supply system is within one hundred fifty feet of the property lines; and

2. A potable water sample cannot be obtained from a properly constructed and located existing well or a newly constructed water well.

(Ord. No. 41-441, § 5; Ord. No. 46-119, § 5, 4-6-04)

Sec. 7.30.061. Registration required.

A. It is unlawful for any person to engage in the operation of a water well drilling business within the City, unless such person has registered with the City to engage in such business.

B. No person shall be registered by the City to engage in a business of water well drilling unless such applicant is licensed as a water well driller by the State of Kansas.
(Ord. No. 46-119, § 6)

Sec. 7.30.062. Application for registration—Issuance.

Upon the filing with the City Treasurer of an application for registration to engage in the business regulated by this chapter, it shall be the duty of the City Treasurer to cause the application to be investigated, and if the facts therein stated are true and it shall be shown that the applicant is qualified as required by this chapter, the City Treasurer shall approve such application and register the applicant. The denial or failure to issue such registration within 30 days of the date of submission of the application shall be appealable in writing to the Director of Environmental Health.
(Ord. No. 46-119, § 7)

Sec. 7.30.063. Registration fee and transferability.

The registration granted under this chapter shall be issued on an annual basis and shall not be transferable. At the time of the granting of the registration required by this chapter, the applicant shall pay to the City Treasurer all fees sufficient to cover the cost of registration as determined to be necessary for that purpose by the Director of the Department of Environmental Health. Reissuance of a registration to an existing business may be granted on or before the anniversary date of its original registration, upon its provision of current, satisfactory state licensure, and payment of a new application fee.
(Ord. No. 46-119, § 8)

Sec. 7.30.064. Appeal of agency action.

Any adverse action taken by the Director may be appealed within thirty days of the date of the action to the City Council. Such an appeal shall be taken in writing to the City Clerk. The City Council shall take up the appeal for consideration at the next regularly scheduled session. The City Council is empowered to approve, deny or modify the decision of the Director. Further appeal of the decision of the City Council may be taken pursuant to K.S.A. 60- 2101(d).
(Ord. No. 46-119, § 9)

Sec. 7.30.065. Invalidity of part.

Should any court declare any section, clause or provision of this chapter to be unconstitutional, such decision shall affect only such section, clause or provision so declared unconstitutional and shall not affect any other remaining section, clause or provision of this chapter.
(Ord. No. 46-119, § 10)

Sec. 7.30.070. Water well record.

Within 30 days after construction or reconstruction of a water well, the water well installer, whether a licensed water well contractor or property owner, shall submit a copy of the water well record to the health department.
(Ord. No. 41-441, § 7)

Sec. 7.30.080. Request for waivers.

A request for a waiver from any of the foregoing rules and regulations shall be submitted to the health department by the property owner in writing and shall contain all information relevant to the request.

A. The request shall specifically set forth why an exception should be considered.

B. The health department may grant a waiver when conditions warrant, and when a waiver is in keeping with the purposes of the Kansas Water Well Construction and Abandonment Administrative Regulations 28-30-2 et seq.

(Ord. No. 41-441, § 8)

Sec. 7.30.090. Referral of waivers.

If required, a request for waiver will be referred to the Kansas Department of Health and Environment for consideration prior to the issuance of a waiver by the health department.
(Ord. No. 41-441, § 9)

Sec. 7.30.100. Inspection.

The health officer shall be responsible for the enforcement of this chapter and is authorized to make such investigations, inspections, to issue notice, orders and directions, to take such actions and carry out such activities as necessary for the enforcement of this chapter.
(Ord. No. 41-441, § 10)

Sec. 7.30.105. Water wells in contaminated areas.

(a) From and after the date of this ordinance, no new water well shall be constructed and used for personal use if the Health Officer determines that such well is in a contaminated area;

(b) Any existing water well shall cease to be used for personal use if the Health Officer determines that (1) the well is in a contaminated area, (2) public water is available to the water well user, and (3) the cessation of use of the water well for personal use is in the best interest of public health, safety and welfare.
(Ord. No. 43-156, § 2)

Sec. 7.30.110. Penalty.

Any person, individual, partnership, corporation or association who violates any of the provisions of this chapter is guilty of a misdemeanor, and upon conviction, shall be punished by a fine not to exceed five hundred dollars or by imprisonment of not more than six months, or by both such fine and imprisonment. Each day any violation hereof is found to exist or continues to exist shall be a separate offense and punishable as such hereunder.
(Ord. No. 41-441, § 11)

CHAPTER 7.40. ENVIRONMENTAL HEALTH STANDARDS

Sec. 7.40.010. Definitions.
Sec. 7.40.020. Responsibility of health officer.
Sec. 7.40.030. Notice of violations.
Sec. 7.40.040. Nuisances.
Sec. 7.40.045. Relating to abandoned, wrecked, scrapped, partially dismantled, junked or inoperable vehicles and prohibiting the storage, parking or leaving of the same on private property.
Sec. 7.40.046. Notice.
Sec. 7.40.047. Removal.
Sec. 7.40.048. Liability of owner or occupant.
Sec. 7.40.050. Abatement or suppression of nuisances.
Sec. 7.40.060. Rank grass, weeds or other vegetation as nuisance—Abatement—Assessment of costs.
Sec. 7.40.065. Public notice of act.
Sec. 7.40.070. Nuisance lighting.
Sec. 7.40.080. Storage of salvage and junk materials.
Sec. 7.40.085. Storage of tires.
Sec. 7.40.090. Extermination of insects, rodents and other vermin.
Sec. 7.40.100. Salvage yards.
Sec. 7.40.110. Control of insects.
Sec. 7.40.115. Storage of dilapidated or deteriorated interior furniture.
Sec. 7.40.120. Violation is a misdemeanor—Order of abatement.

Sec. 7.40.010. Definitions.

Unless otherwise specified, the following terms as used in this chapter mean as follows:

"Abandoned vehicle" means a vehicle to which the last registered owner thereof has relinquished all further dominion and control or a vehicle that has remained on private property without the consent of the owner or person in control of the property for more than forty-eight hours.

"City" means Wichita, Sedgwick County, Kansas.

"City clerk" means the duly appointed city clerk of the City of Wichita, or his/her authorized representative.

"Control measures" means any chemical, structural, physical procedures or processes designed to eradicate, minimize, prevent or otherwise limit the reproduction and/or infestation of insects and rodents detrimental to public health.

"Director of public works" means the director of the department of public works of the City of Wichita, or his/her authorized representative.

"Excessive noise" means any sound which, by nature of its intensity, duration or other characteristics, may be detrimental to the health of an individual, or may be deemed unreasonably annoying or objectionable to the majority of individuals exposed to it so as to interfere with the comfortable enjoyment of life or property, notwithstanding the fact that the degree of such annoyance or objectionableness may be unequal.

"Health officer" means the director of the Wichita department of environmental health or his/her authorized representative.

"Human excreta" means the body discharge (both feces and urine) of humans.

"Inoperable" means a condition of being junked, wrecked, wholly or partially dismantled, discarded, abandoned or unable to perform the functions or purposes for which it was originally constructed, or

1. The absence of a current valid registration plate upon such vehicle permitting that vehicle to be operated on the public streets and highways of the State of Kansas, unless the vehicle has a non-highway vehicle title issued solely because the vehicle was not manufactured for street use, or

2. The absence of one or more of the parts of the vehicle necessary for the lawful operation of the vehicle on the public streets and highways, unless the vehicle has a non-highway title issued solely because the vehicle was manufactured for street use, or

3. The placement of the vehicle or parts thereof upon jacks, blocks, chains or other supports.

"Insects" means the classes Insecta and Arachnida of the phylum Arthropoda including flies, mosquitoes, fleas, lice, cockroaches, bedbugs, plant bugs, mites, ticks, spiders, and scorpions.

"Manure" means the body discharge of all animals except humans.

"Nuisance" means any condition which is injurious to health, or is a potential health hazard, or is indecent, or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property by an entire community or neighborhood, or by a majority of persons subjected to the condition, such condition being no less a nuisance because the extent of the annoyance or damage inflicted is unequal.

"Owner" means any person who is a holder of any legal or equitable interest in the premises, and alone or jointly or severally with others:

(a) Has record legal title to any dwelling or dwelling unit with or without accompanying actual possession thereof; or

(b) Has charge, care or control of any dwelling or dwelling unit and if the case permits, may include all persons who have an interest in a structure and any who are in possession or control thereof as owner or agent of the owner, contract purchase, or as executor, executrix, administrator, administratrix, trustee or guardian of the estate of the owner;

(c) Collects rent for a dwelling unit on behalf of or in place of the owner.

Any such person representing the owner shall be bound to comply with the provisions of this chapter to the same extent as if he/she were the owner, and upon failure to comply therewith shall be subject to the same penalties hereinafter set out.

"Person" means a natural person or a legal entity such as, but not limited to, an individual, firm, association, joint stock company, syndicate, partnership, or corporation.

"Premises" means a lot, plot or parcel of land including structures located thereon.

"Property" means any real property within the city which is not a street or highway.

"Refuse" means all putrescible and nonputrescible waste materials such as trash, debris, garbage, tree trimmings, grass cuttings, dead animals and solid industrial wastes but shall not include human or animal excrements.

"Rodents" mean the so-called domestic rats, *Rattus norvegicus,* and *Rattus rattus,* and domestic mice, *Mus musculus* and wild native rodents associated with the transmission or disease or causing nuisance to man or other animals.

"Salvage material" means materials of some value that are obtained from the disassembly of various kinds of machinery, mechanical appliance, and/or the demolition of buildings or structures.

"Salvage yards" means any premises used for:

(a) Sale and resale of used merchandise; or

(b) The disassembly of wrecked or used automobiles for the reuse and/or sale of automobile parts; or

(c) The storage and/or resale of various kinds of metal and/or used building materials.

"Sanitary sewage" means a combination of the watercarried wastes from residences, business buildings, institutions, and industrial establishments, together with such ground, surface, and storm waters as may be present.

"Waste water" means any water or liquids that is used for any purpose and then discharged on or from the premises where used.

"Water impoundments" are collections of water created by improper drainage or discharge, not including a natural water course, artificial pond, or lake, which may create breeding areas for mosquitoes and other health hazards.

"Weeds" are those plants defined as "noxious weeds" in K.S.A. 2-1314 and amendments thereto. (Ord. No. 45-320 § 1; Ord. No. 41-144 § 1)

Sec. 7.40.020. Responsibility of health officer.

The health officer shall be responsible for the enforcement of this chapter and is hereby authorized to make such investigations, to issue notice, orders and directions as are necessary for the enforcement of the provisions of this chapter. (Ord. No. 27-901 § 2)

Sec. 7.40.030. Notice of violations.

Whenever the health officer determines that there has been a violation of any provisions of this chapter, except the provisions of subsection (5) of Section 7.40.040, Section 7.40.045 and Section 7.40.060 hereof, he shall give notice of such alleged violation to the person or persons responsible therefor, as hereinafter provided. Such notices shall:

(1) Be in writing;

(2) Particularize the violations alleged to exist or have been committed;

(3) Provide a reasonable time for correction of the violation particularized;

(4) Be addressed to and served upon the owner and/or occupant of the premises.

Provided, that such notice shall be deemed properly served upon such owner, operator, or occupant, if a copy thereof is served upon him personally or if a copy thereof is sent by certified mail to his last known address; provided further, if the notice cannot be conveniently served by the aforesaid, service of the notice is to be made upon such person or persons by at least one publication in the official newspaper of the City of Wichita, such publication to contain the conditions and reasons of notice.
(Ord. No. 41-144 § 2)

Sec. 7.40.040. Nuisances.

It is unlawful for any person to maintain or to permit to exist any nuisance as described in this chapter. The following conditions or materials are declared to be injurious to the health and well being of citizens of the city and are declared to be nuisances together with those conditions not enumerated in this section by coming under the definition of nuisance as described in Section 7.40.010:

(1) Wastewater discharged or allowed to accumulate in such a manner that it does or may allow direct human contact with human or animal excrete, organic or inorganic pollution of ground or surface water, breeding, harboring or attraction of rodents, or the emission of offensive odors;

(2) Dead animals except those at slaughter houses and except those considered industrial refuse that are properly maintained for processing or disposal;

(3) The discharge into the atmosphere of any gaseous or particulate matter resulting from the combustion, reduction, processing or manufacturing of materials from any source which causes or may cause injury to the health of individuals, damage to business or property, endangers the public welfare from any known or anticipated adverse effects associated with the presence of such discharged matter in the ambient air, or emissions or from any single source which exhibit the following opacity:

(a) Greater than forty percent opacity for sources existing on or before January 1, 1971;

(b) Greater than twenty percent opacity for sources constructed after January 1, 1971;

(c) All incinerators regardless of date of construction are limited to twenty percent opacity.

The determination of opacity of air emissions or discharges shall be made by methods as set out in 40 CFR 60, appendix A, method 9, as amended, which is incorporated by reference;

(4) Open basement structures, excavations, swimming pools, storm cellars or other excavations that create hazards to any persons, collect water or produce mosquitoes except those excavations authorized by a current building permit and those excavations in use as part of occupied premises if maintained with adequate drainage and fencing consisting of material recognized for the purpose and having openings not larger than two inches in the least dimension;

(5) Growth of noxious weeds and/or unwanted or unkempt vegetation that are over twelve

inches high on any premises and in streets and alleys in front of and abutting on any premises in the city;

(6) Water impoundments;

(7) Refuse not stored or disposed of as provided for in Chapter 7.08 of this Code;

(8) Sanitary sewage or wastewater not managed or disposed of as provided for in Chapters 16.12 and 16.20 of this Code;

(9) Salvage material, junk or other materials on residential premises or vacant lots in residential areas except as provided for in Section 7.40.080;

(10) Animal excrement not managed or disposed of as provided in Chapter 6.12 of this Code;

(11) Excessive noise resulting from industrial or commercial operations;

(12) Minor auxiliary or accessory buildings or structures such as privies, sheds, barns, garages, tool houses and vacant houses and commercial structures which have become so dilapidated and deteriorated as to be a potential accident hazard, rat harborage, attractive nuisance to children or to be offensive to the senses;

(13) Interior furniture stored maintained or used on the exterior of a dwelling or dwelling unit which is so dilapidated and deteriorated as to be a potential accident hazard, a harborage for insects, rodents or vermin or which emits offensive odors.

(Ord. No. 46-120 § 1; Ord. No. 44-295 § 1)

Sec. 7.40.045. Relating to abandoned, wrecked, scrapped, partially dismantled, junked or inoperable vehicles and prohibiting the storage, parking or leaving of the same on private property.

No person shall park, store, leave or permit the parking, storing or leaving of any vehicle which is in an abandoned, wrecked, dismantled, inoperable, rusted, junked, or partially dismantled condition upon any private property within the city for a period in excess of two days. The presence of an abandoned, wrecked, dismantled, inoperable, rusted, junked or partially dismantled vehicle, or parts thereof, on private propel is declared a public nuisance which may be abated as such in accordance with the provisions of this chapter.

Any one of the following conditions shall be deemed prima facie evidence that a vehicle is inoperable:

(1) The absence of an effective registration plate upon such vehicle;

(2) The placement of the vehicle or parts thereof upon jacks, block, chains or other supports;

(3) The absence or condition of disrepair of one or more parts of the vehicle necessary or the lawful operation of the vehicle upon the streets and highways, including properly rated tires;

(3) The placement of materials or property within the vehicle which would preclude the lawful operation of the vehicle upon the streets or highways.

This section shall not apply to any vehicle enclosed within a building on private property or to any vehicle held in connection with a business enterprise, lawfully licensed by the city and properly operated in an appropriate business zone, pursuant to the zoning laws of the city.

(Ord. No. 45-320 § 2; Ord. No. 41-144 § 4)

Sec. 7.40.046. Notice.

Whenever the health officer determines that a nuisance, as defined in Section 7.40.045, exists in the City of Wichita, a written notice shall be served upon the occupant of the property where the nuisance exists, or where there is no occupant, upon the owner of the property, or his agent. Such service shall be by personal service or certified mail, return receipt requested. The notice shall contain a statement of the existence of the nuisance and a request that the vehicle(s) be removed within ten days. The notice shall advise that failure to comply with the notice to remove will result in removal of the vehicle(s) by the city,

or its designee with the costs of said removal to be assessed against the occupant or owner of the property.
(Ord. No. 45-230 § 3; Ord. No. 41-144 § 5)

Sec. 7.40.047. Removal.

If the vehicle(s) creating a nuisance is not removed by the deadline in the original notice, the City of Wichita, or its designee, shall have the right to take possession of the vehicle(s) and remove it from the premises. It is unlawful for any person to interfere with, hinder or refuse to allow the city or its designee to enter upon private property for the purpose of removing a vehicle under the provisions of this chapter. The vehicle(s) shall be placed in the custody of the chief of police for disposition consistent with the impound procedures of Chapter 11.97 and rules and relations of the Wichita police department.
(Ord. No. 45-230 § 4; Ord. No. 41-144 § 6)

Sec. 7.40.048. Liability of owner or occupant.

Upon the failure of the owner or occupant of property on which vehicles have been removed by the city to pay the unrecovered expenses incurred by the city in such removal, a lien shall be placed upon the property for the amount of such expenses.
(Ord. No. 41-144 § 7)

Sec. 7.40.050. Abatement or suppression of nuisances.

In addition to the remedy of prosecution and enforcement as provided in this chapter, the health officer is hereby authorized, empowered, and directed on proper notice as herein provided to abate or suppress any nuisance and for the purpose of carrying out the provisions of this section, the health officer is hereby authorized to enter into or upon any premises or establishment for the purpose of making a thorough examination and to determine whether a nuisance exists. If upon investigation the health officer determines that a nuisance exists, except for the nuisance specified in subsection (5) of Section 7.40.040 of this chapter, he shall after giving proper notice as herein provided to the owner or occupant of the premises on which the nuisance is located proceed to cause the nuisance to be abated or suppressed by enlisting the services of the director of the department of public works or private contractor and tax the cost thereof against the lot or tract of ground upon which the nuisance is located and maintained as provided by law. The cost of such abatement is to be certified to the city clerk of the city after the nuisance has been abated or suppressed; provided further that the health officer shall charge the cost of removal of an abandoned vehicle as herein defined to the owner of the motor vehicle in violation of this chapter or as a tax against the real property on which the nuisance occurred. The city may thereafter maintain an action in the appropriate court against any person or persons upon whom notice was served as required by chapter to recover the cost of removing or disposing of such motor vehicle in the event the cost of removing or disposing of such motor vehicle in the event the cost of abatement is not assessed against the real property. The abatement of a nuisance under the direction of the health officer shall not be a defense or excuse to the owner of a vehicle or property for not conforming with the provisions of this chapter.
(Ord. No. 29-880 § 4; prior Ord. No. 27-901, § 5)

Sec. 7.40.060. Rank grass, weeds or other vegetation as nuisance—Abatement—Assessment of costs.

(a) Rank grass, weeds or other vegetation over twelve inches in height upon any lot or piece of land or upon the streets and alleys in front of and abutting upon any such lot or piece of land within the city is declared a public nuisance. It is unlawful for the owner of any such lot or piece of land to permit rank grass, weeds or other vegetation in excess of twelve inches in height to exist and remain on said owner's land or upon the streets and alleys in front of and abutting upon any such lot or piece of land owned by said owner.

(b) Upon a determination by the health officer, that a nuisance such as is described in subsection (a) of this section exists that it constitutes a menace and danger to the health of the inhabitants of the city, or any neighborhood, family or resident thereof, the city shall, subject to the

provisions contained in this chapter, be permitted to abate such nuisance and assess the cost thereof against the owner of the land on which the nuisance is located.

(c) Before the city can proceed to abate a nuisance described in subsection (a) of this section, the health officer shall issue notice requiring the owner or the agent of the owner of the property on which said nuisance is located to remove and abate such nuisance with five days from the date such notice is mailed or served. Such notice shall be provided to the owner or agent of the owner of such property by restricted mail sent to the last known address of such owner or agent or by personal service. Such notice shall state that the recipient may, before the expiration of the stated waiting period, request a hearing before the health officer to contest the officer's determination that a nuisance exists.

(d) If the owner or agent of the owner fails to abate such nuisance with the period of time stated in the notice or such other period of time as directed by the health officer after a hearing before the officer in which the existence of a nuisance is confirmed and an order is issued to abate the same, the city may cause such nuisance to be abated. The city may, upon mailing notice of the cost of such abatement to the owner or agent of the owner of the property on which such nuisance exists, assess the total cost of such abatement to said real property. Such notice shall be sent by registered mail to the last known address of said owner or agent of said owner and shall state that the payment of such costs is due within thirty days following the receipt of such notice.

(e) If the cost of such removal or abatement and notice is not paid within said thirty-day period, the costs shall be certified by the health officer to the city clerk and shall be collected in the manner provided by K.S.A. 12-1, 115, and amendments thereto or shall be assessed and charged against the lot or parcel of ground on which the nuisance was located. If the cost is to be assessed, the city clerk, at the time of certifying other city taxes to the county clerk, shall certify the aforesaid costs, and the county clerk shall extend the same on the tax roll of the county against the lot or parcel of ground, and it shall be collected by the county treasurer and paid to the city as other city taxes are collected and paid. The city may pursue collection both by levying a special assessment and in the manner provided by K.S.A. 12-1, 115, and amendments thereto.

(f) Nothing contained in this chapter concerning the assessment of costs for the abatement of the nuisance described in subsection (a) of this section shall prohibit the city from prosecuting violations of said subsection (a) as a general misdemeanor.

(g) The health officer is empowered in the exercise of his/her discretion to exempt from both violation prosecution and abatement enforcement the owners and their agents or other persons in possession of properties on which rank grass, weeds or other vegetation over twelve inches in height are maintained for educational, aesthetic, conservation, recreational, productive or other beneficial purposes.

(h) In lieu of giving notice as provided above, the authorized public officer may, for the initial notice or any subsequent notice, send a one-time yearly written notification by mail or personal service. Such notice shall include the same information required above. In addition, such notice shall include a statement that no further notice shall be given prior to removal of weeds. If such a one-time notice is sent pursuant to this subsection, no additional notices are required to be sent prior to removal of weeds for one calendar year from the date of that notice.
(Ord. No. 45-230 § 5; Ord. No. 45-044 § 1)

Sec. 7.40.065. Public notice of act.

The city clerk shall cause a general public notice to be placed in the official city newspaper once each year during the month of April. The notice shall read substantially as follows:

PUBLIC NOTICE
CITY OF WICHITA, KANSAS
WEED AND VEGETATION ENFORCEMENT

Notice is hereby given to all property owners, representatives and tenants of property located within the city limits of Wichita, Kansas, that it is unlawful to allow the excessive growth of weeds, grass, and uncultivated plants.

Excessive growth means more than twelve inches in height. Violators will be subject to prosecution and assessment of costs for abatement of such violations. The weeds abatement ordinances are located in. Chapter 7.40 of the Wichita Municipal Code. Members of the public are welcome to review these laws during regular business hours at the Wichita City Hall, 455 N. Main, Wichita, Kansas.

(Ord. No. 45-230 § 6)

Sec. 7.40.070. Nuisance lighting.

(a) No person shall install, maintain and/or use an outdoor visible light or other source of illumination which is on private property and produces glare or direct illumination across a property line in a residential area of such intensity that it creates a nuisance or unreasonably interferes with the use or enjoyment of adjacent property.

(b) Outside lights must be made up of a light source and reflector so that, acting together, the light beam is controlled and not directed across a property line.

(c) This section shall not apply to street lights or lights installed, maintained and used in connection with the use and operation of any outdoor stadium; amphitheater, or athletic field which is open to the public.

(Ord. No. 41-312 § 1; Ord. No. 50-404, § 1, 1-10-17)

Sec. 7.40.080. Storage of salvage and junk materials.

No owner or occupant of any dwelling shall store salvage material or junk materials on any residential premises or on vacant lots in residential areas. The owner and/or occupant shall keep premises free of litter, refuse, salvage material and junk; provided, that building materials to be used within ninety days for construction on the premises, if properly authorized by a current building permit, may be kept if stored at least eighteen inches off the ground and not closer than forty-eight inches to a wall or fence provided the health officer may approve a lesser distance.

(Ord. No. 29-880 § 5; Ord. No. 27-901 § 8)

Sec. 7.40.085. Storage of tires.

The owner or operator of any premises where more than five hundred tires are stored for a period exceeding sixty days must provide at least one of the following methods of storage:

(1) Storage inside a building or other structure with enclosed walls and roof.

(2) Outdoors, in racks or cages which maintain at least fifty percent of the tires in a vertical position.

(3) Outdoors, in piles not exceeding eight feet or three tires in height (whichever is higher). Each such pile may not exceed three thousand seven hundred fifty square feet in area. Piles must be separated by a distance of fifty feet measured at their closest point. The owner or operator of the premises where the tires are stored must implement a mosquito control program approved by the health officer which may include chemical control measures or covering. This control plan must be submitted annually not later than March 31st of each year and any chemical control measures used must be the equivalent of those used by the Wichita-Sedgwick County department of community health mosquito control program. An exception shall be made in that no mosquito control program shall be required for piles entirely comprised of tires which have been shredded, chopped or otherwise treated to reduce their total volume to less than twenty percent of the original volume before treatment.

(Ord. No. 39-564 § 1)

Sec. 7.40.090. Extermination of insects, rodents and other vermin.

Every occupant of a single establishment shall be responsible for the extermination of any insects or rodents or other vermin therein or on the premises. Wherever two or more occupants are in the same building, the owner or operator of the building shall be responsible for such extermination; notwithstanding the foregoing, whenever infestation is caused mainly by improper

housekeeping, it shall be a joint responsibility of the owner and occupants to effect such extermination.
(Ord. No. 27-901 § 9)

Sec. 7.40.100. Salvage yards.

All salvage yards shall be located on premises as provided for in the city zoning regulations. All rackable salvage materials shall be stored on racks or in bins with at least eighteen inches of clearance between the bottom of the rack or bin and the ground and a width of forty-eight inches or less. No rack or bin shall be closer than forty-eight inches to a wall, fence or adjacent bin or rack. Non-rackable materials shall be stored with an exposed perimeter or in a manner specified by the health officer to prevent rodent harborage and breeding. All ground surface except lawn areas shall be kept free of all grasses and weeds, using soil sterilants, herbicides and/or other effective methods. An effective, continuous rodent poisoning, using anticoagulant rodenticides or other effective methods, shall be maintained at all salvage yards. Any person not complying with the provisions of the chapter shall be ineligible to receive a city license to conduct or carry on his business under provisions of Chapters 3.44 and 3.48 of this Code.
(Ord. No. 29-880 § 6; prior Ord. No. 27-901 § 10)

Sec. 7.40.110. Control of insects.

All premises in the city shall be maintained free of conditions that encourage or permit any unnecessary breeding of insects that are annoying or dangerous to residents of the city. Exterior windows and doors of all buildings used for human habitation, or for the storage, preparation or serving of food, shall be screened in a manner prescribed by the health officer. Whenever the health officer finds that it is impossible or impractical for owners or occupants to individually control populations of dangerous or annoying insects, he shall institute measures on a community-wide basis for a practical program for control including chemical and other suppressive means.
(Ord. No. 27-901 § 11)

Sec. 7.40.115. Storage of dilapidated or deteriorated interior furniture.

No owner or occupant of any dwelling shall store, use or maintain on the exterior of said dwelling, interior furniture which is so dilapidated or deteriorated as to be a potential accident hazard, a harborage for insects, rodents or vermin, or which emits offensive odors.
(Ord. No. 44-295 § 3)

Sec. 7.40.120. Violation is a misdemeanor—Order of abatement.

Any person who shall be convicted in the police court of violating any provisions of this chapter, except Section 7.40.060, shall be deemed guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars or by imprisonment of not more than six months or both such fine and imprisonment. Each day that any violation to this chapter occurs, it shall constitute a separate offense and shall be punishable hereinafter as a separate violation. Provided, however, that if upon trial of any person found guilty of a misdemeanor hereinunder it shall appear to the court that the nuisance complained of as proscribed in this chapter is continuing, the court shall enter such order as it shall deem appropriate to cause the nuisance to be abated.
(Ord. No. 40-089 § 1)

CHAPTER 7.41. RESERVED*

*__Editor's note—__Ord. No. 52-810, § 11, adopted Sept. 16, 2025, repealed Ch. 7.41, §§ 7.41.010—7.41.040, 7.41.042, 7.41.043, 7.41.045, 7.41.050, and 7.41.060, which pertained to noise, and derived from Ord. No. 41-581, §§ 4—6; Ord. No. 41-918, § 2; Ord. No. 44-294, § 1; Ord. No. 46-564, § 1; and Ord. No. 47-030, §§ 1—3, adopted May 16, 2006. Similar provisions may currently be found at Ch. 5.63.

CHAPTER 7.42. ODOR REGULATION

Sec. 7.42.010. Definitions.
Sec. 7.42.020. Emissions in excess of standards declared nuisance.
Sec. 7.42.030. Violation—Misdemeanor.
Sec. 7.42.040. Emissions prohibited.
Sec. 7.42.050. Testing.
Sec. 7.42.070. Penalty.

Sec. 7.42.010. Definitions.

As used in this chapter:

(1) "Ambient air" means outdoor air.

(2) "D/T (dilution to threshold)" means the number of times that the odor is as strong as its threshold concentration or the number of dilutions with pure air needed to dilute it to the threshold concentration.

(3) "Food establishment" means a business holding a food establishment permit issued by the City of Wichita under the provisions of Chapter 7.22 of the Code of the City of Wichita.

(4) "Objectionable odorous air contaminant" means an odor that adversely affects an individual or individuals of normal sensibilities. Odors emanating from food preparation activities in restaurants or food establishments are exempted from this definition.

(5) "Person" means a natural person or a legal entity such as but not limited to an individual, firm, association, joint stock company, syndicate, partnership or corporation. Person does not include governmental entities.

(6) "Restaurant" means a business holding a food service establishment license issued by the Kansas Department of Health and Environment.

(7) "Threshold concentration" means concentration below which an odor is no longer detectable by an average person.

(Ord. No. 43-663 § 1)

Sec. 7.42.020. Emissions in excess of standards declared nuisance.

The emission of any objectionable odorous air contaminant into the ambient air from any commercial or industrial source operation in amounts in excess of the standards set out in Section 7.42.040, is hereby declared to be a public nuisance.

(Ord. No. 41-411 § 2)

Sec. 7.42.030. Violation—Misdemeanor.

Any person who engages in commercial or industrial activity and who shall cause, permit or allow the emission of an objectionable odorous air contaminant in excess of the standard set out in Section 7.42.040 from any premises owned or occupied by such person or under such person's management or control is guilty of a misdemeanor.

(Ord. No. 43-663 § 2 (part))

Sec. 7.42.040. Emissions prohibited.

Emission of an objectionable odorous air contaminant or contaminants shall be deemed a violation of this chapter if odors are detected at or above 7 D/T (dilution to threshold) at any point located beyond the property line of the source of the emission.

(Ord. No. 43-663 § 2 (part))

Sec. 7.42.050. Testing.

(1) Testing shall be conducted by a representative of the Wichita-Sedgwick County Department of Community Health.

(2) Two odor measurements shall be made within a period of one hour with these measurements separated by a minimum of fifteen-minute intervals. Both measurements must detect odors at or above the standard contained in Section 7.42.040.

(3) Measurement of objectionable odorous air contaminants expressed as dilution to threshold (D/T) shall be in accordance with test procedures employed in the use of the Barnebey-Cheney Scentometer or its equivalent.

(Ord. No. 43-663 § 3)

Sec. 7.42.070. Penalty.

Any person, individual, partnership, corporation or association who violates any of the provisions of this chapter is guilty of a misdemeanor, and upon conviction, shall be punished by a fine not to exceed five hundred dollars or by imprisonment of not more than six months, or by both such fine and imprisonment. Each day any violation hereof is found to exist or continues to exist shall be a separate offense and punishable as such hereunder.
(Ord. No. 43-964 § 1)

CHAPTER 7.44. WORKSHOPS, FACTORIES AND STORES

Sec. 7.44.010. Overcrowding; inadequate light, ventilation, heat, etc.
Sec. 7.44.020. Air space required per person; fresh air supply, etc.
Sec. 7.44.030. Freedom from gases, vapors, dust or manufacturing impurities.
Sec. 7.44.040. To be kept in clean condition, free from effluvia of sewers or other nuisance.
Sec. 7.44.050. Separate toilets to be provided; number of employees per toilet.
Sec. 7.44.060. Inspection; requiring necessary arrangements to be made.

Sec. 7.44.010. Overcrowding; inadequate light, ventilation, heat, etc.

No person being the owner, proprietor, lessee, manager or superintendent of any store, factory, workshop or other structure or place of employment where men or women are employed for wages, shall cause, permit or allow the same or any portion or apartment thereof or any room in such store, factory, workshop or other structure or place of employment to be overcrowded, or inadequate, faulty or insufficient in respect to light, ventilation, heat or cleanliness.
(Ord. No. 5895 § 1)

Sec. 7.44.020. Air space required per person; fresh air supply, etc.

In every building, apartment or room in such building where one or more persons are employed, as provided in the preceding section, at least five hundred cubic feet of air space shall be allowed to each and every person employed therein, and fresh air shall be supplied by ventilation so as to render harmless all impurities, as near as may be, during the hours of employment. No part of such air supply shall be taken from any cellar or basement.
(Ord. No. 5895 § 1)

Sec. 7.44.030. Freedom from gases, vapors, dust or manufacturing impurities.

All places described in Section 7.44.010, shall so far as practicable, be kept free from gases, vapors, dust or impurities generated by manufacturing processes or otherwise and injurious to health.
(Ord. No. 5895 § 2)

Sec. 7.44.040. To be kept in clean condition, free from effluvia of sewers or other nuisance.

All place described in Section 7.44.010 shall be kept in a cleanly condition, free from the effluvia of a sewer, drain, privy, stable or other nuisance.
(Ord. No. 5895 § 2)

Sec. 7.44.050. Separate toilets to be provided; number of employees per toilet.

Separate toilets, properly ventilated, shall be provided for men and women in places regulated by this chapter. Not less than one toilet shall be provided for each eighteen employees or major fraction thereof.
(Ord. No. 5895 § 2)

Sec. 7.44.060. Inspection; requiring necessary arrangements to be made.

The director of public health shall visit, or cause to be visited by an officer of the department of public health, all places of employment or service referred to in Section 7.44.010, within the city as often as he shall deem necessary to see that the provisions of this chapter are complied with. He shall have such arrangements made as may be deemed necessary for the safety and health of the employees, pursuant to the terms of this chapter and such laws and ordinances as may be in force concerning health and sanitary measures.
(Ord. No. 5895 § 3)

CHAPTER 7.52. BIRD CONTROL

Sec. 7.52.010. Definitions.
Sec. 7.52.020. Nuisance declared.
Sec. 7.52.030. Notice to maintenance personnel.
Sec. 7.52.040. Enforcement.
Sec. 7.52.050. Preventative measures in new construction.
Sec. 7.52.060. Plan for action.
Sec. 7.52.070. Penalty.

Sec. 7.52.010. Definitions.

"Building manager" means any person who occupies, manages or owns a building, provided that for a single occupancy building such person occupying the building shall be deemed to be the building manager, provided further, that for a multioccupancy building the owner shall be deemed to be the building manager.

"Building occupant" means any person who leases, rents or owns a building or portion thereof and who physically occupies or has possession of a building or portion thereof.

"Health officer" means the director of the Wichita-Sedgwick County department of community health or his authorized representative, such as a public health physician, a public health sanitarian, public health engineer, or public health nurse.

"Owner" means a person who, alone or jointly or severally with others:

(a) Shall have record legal title to any property or structure thereon with or without accompanying actual possession thereof, or

(b) Shall have charge, care or control of any property or structure thereon as owner or agent of the owner, or as executor, executrix, administrator, administratrix, trustee or guardian of the estate of the owner.

"Person" means a natural person or a legal entity such as, but not limited to, an individual, firm, association, joint stock company, syndicate, partnership, or corporation.

"Premises" means a lot, plot or parcel of land including structures located thereon.
(Ord. No. 30-209 § 1)

Sec. 7.52.020. Nuisance declared.

The defecation of starlings and other blackbirds congregated for roosting purposes in urban areas and the congregation of pigeons in urban areas potentiating the transmission of psittacosis or other diseases to humans are detrimental to the health, safety and welfare of the people in Wichita, Kansas and are hereby declared to be a nuisance. It is unlawful for any owner or building manager to maintain or permit any roosting, nesting or feeding of starlings, other blackbirds and pigeons in or on any building, premises, or vegetation thereon, except as provided in Title 6 of this Code, provided that the city through the Wichita-Sedgwick County department of community health, its employees or agents thereof, may provide the services necessary to prevent or eliminate such roosting, nesting or feeding of starlings, other blackbirds and pigeons on any building, premises, or vegetation thereon and any occupant and owner shall permit and provide access in, on, and to such building, premises, or vegetation to such employees and agents as may be necessary to make investigations and to provide such services.

Any such employee or agent shall not, in making investigations and providing such services, thereby render himself liable personally. Any suit brought against any such employee or agent because of such act performed by him in making investigations and providing such services shall be defended by the department of law until the final termination of the proceedings thereof.
(Ord. No. 30-209 § 2)

Sec. 7.52.030. Notice to maintenance personnel.

The building manager shall be responsible for maintenance modifications and notification thereof to window washers, or the maintenance personnel and building occupants of such maintenance modifications or other safety precautions as may be necessary because of treatment or services provided to prevent or eliminate starling, other blackbirds and pigeon roosting, nesting and feeding.
(Ord. No. 30-209 § 3)

Sec. 7.52.040. Enforcement.

The health officer shall be responsible for the enforcement of this chapter and is hereby autho-

rized to make such investigations, to issue notices, orders, directions, and to provide services as are necessary for the enforcement of the provisions of this chapter including but not limited to chemical and/or mechanical treatment and services designed to destroy and/or relocate starlings, other blackbirds and pigeons without direct cost to building owners.
(Ord. No. 30-209 § 4)

Sec. 7.52.050. Preventative measures in new construction.

The superintendent of central inspection shall evaluate the plans for the construction of new commercial and industrial buildings and require modifications as indicated in accordance with regulations for the prevention of starling, other blackbirds and pigeon roosting on buildings. The health officer shall require structural modifications of existing buildings in accordance with regulations to prevent starlings, other blackbirds and pigeons from roosting on such buildings. The Wichita-Sedgwick County department of community health and the department of public works are authorized to develop and adopt regulations for such structural features of new and existing commercial and industrial buildings designed to prevent the roosting of starlings, other blackbirds and pigeons. All such regulations shall be subject to the approval of the city council and shall be binding and effective when filed in the office of the city clerk.
(Ord. No. 30-209 § 5)

Sec. 7.52.060. Plan for action.

Any building manager or owner may arrange for a qualified pest control operator to provide service or treatment, or for a qualified contractor to provide structural modification to any building, premises, or vegetation thereon to prevent or eliminate the roosting or nesting of starlings, other blackbirds or pigeons; provided that such building manager or owner and qualified pest control operator or qualified contractor submit the proposed plan for such service, treatment and structural modifications to the health officer and receives his written approval therefor prior to any such service, treatment or structural modification.
(Ord. No. 30-209 § 6)

Sec. 7.52.070. Penalty.

Any person who violates any provisions of this chapter is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars or by imprisonment of not more than six months or both such fine and imprisonment.
(Ord. No. 40-091 § 1)

CHAPTER 7.56. SMOKING AT PUBLIC MEETING PLACES*

Secs. 7.56.010—7.56.030. Reserved.
Sec. 7.56.040. Permits and fees.
Sec. 7.56.050.—7.56.070. Reserved.

Secs. 7.56.010—7.56.030. Reserved.

Editor's note—Ord. No. 48-851, § 1, adopted October 19, 2010 repealed §§ 7.56.010—7.56.030 in their entirety. Formerly said sections pertained to definitions; prohibition of smoking in certain places; conditions under which smoking at a place of business is permitted; promotion of occasional smoke-free events at smoker-friendly places of business; posting of signs and derived from Ord. No. 47-892, §§ 1—5, 6-3-08.

Sec. 7.56.040. Permits and fees.

On and as of August 31, 2010, as a result of changes in state statutes, smoking permits theretofore issued by the city under this chapter have become invalid and have ceased to operate. Permitees whose city permits were invalidated as a result of this change in law may obtain a refund of that portion of their permit fee represented by the fraction in which the numerator is the number of days that remained in their permit period as of August 31, 2010, and in which the denominator is 365.
(Ord. No. 47-892, § 6, 6-3-08; Ord. No. 48-851, § 2, 10-19-2010)

Secs. 7.56.050—7.56.070. Reserved.

Editor's note—Ord. No. 48-851, § 4, adopted October 19, 2010, repealed §§ 7.56.050—7.56.070 in their entirety. Formerly said sections pertained to violations and penalties; enforcement; and severability and derived from Ord. No. 47-892, §§ 7—9, 6-3-2008.

***Editor's note—**Ord. No. 47-892, §§ 1—9, adopted June 3, 2008, effective September 4, 2008, amended Ch. 7.56, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Ch. 7.56 pertained to similar subject matter. See also the Code Comparative Table.

CHAPTER 7.60. SALE OF CIGARETTES AND TOBACCO PRODUCTS

Sec. 7.60.010. Definitions.
Sec. 7.60.020. License required—Nontransferable—Expiration date.
Sec. 7.60.025. License application.
Sec. 7.60.030. License fee.
Sec. 7.60.035. License holder requirements.
Sec. 7.60.040. Reserved.
Sec. 7.60.050. Administrative penalty, suspension or revocation of license.
Sec. 7.60.060. Appeal from suspension or revocation or administrative penalty from 7.60.050(a) and (b).
Sec. 7.60.065. Appeal from suspension or revocation or administrative penalty of 7.60.050(c).
Sec. 7.60.070. Enforcement.
Sec. 7.60.075. Prohibited conduct.
Sec. 7.60.080. Penalty.
Sec. 7.60.090. Severability.
Sec. 7.60.100. Conflict of law.

Sec. 7.60.010. Definitions.

As used in this Chapter the following words shall have the following meanings:

Chief of Police means the Chief of the Wichita Police Department or any designee thereof.

Cigarettes means any roll for smoking, made wholly or in part of tobacco, irrespective of size or shape, and irrespective of tobacco being flavored, adulterated or mixed with any other ingredient if the wrapper is in greater part made of any material other than tobacco.

City Licensing is a division of the City Treasurer.

Conviction means, for the purposes of this Chapter, any court adjudication of guilt, diversion, or deferred judgment or payment of the fine if the ticket was not contested in court.

Director means the Director of Public Works and Utilities or his/her designee.

Electronic vaping devices means any device that may be used to deliver any aerosolized or vaporized substance to the person inhaling from the device, including, but not limited to, an e-cigarette, e-cigar, e-pipe, vape pen or e-hookah. Electronic vaping device includes any component, part, or accessory of the device, and also includes any substance intended to be aerosolized or vaporized during the use of the device, whether or not the substance contains nicotine.

Hookah product means a water pipe and any associated products and devices which are used to produce fumes, smoke, and/or vapor from the burning of material including, but not limited to, tobacco, shisha, or other plant material.

License holder means any person to whom a current license has been issued under this Chapter authorizing such person to conduct the business within the city limits. This term also includes a representative or manager who acts on behalf of the license holder or is otherwise in charge of the retail establishment.

Package means a container in which no more than 25 individual cigarettes are wrapped and sealed by the manufacturer of cigarettes prior to shipment to a wholesale dealer.

Person means any person, firm, partnership, association, corporation, company or organization of any kind.

Tobacco products means (1) any product containing, made of, or derived from tobacco or nicotine that is intended for human consumption or is likely to be consumed, whether inhaled, absorbed, or ingested by any other means, including, but not limited to, a cigarette, a cigar, pipe tobacco, chewing tobacco, hookah, snuff, or snus; (2) any electronic vaping device as defined in this section and any substances that may be aerosolized or vaporized by such device, whether or not the substance contains nicotine; or (3) any herbal product intended to mimic tobacco, contain tobacco flavoring or deliver nicotine; or (4) any component, part, or accessory of (1) or (2) or (3), whether or not any of these contain tobacco or nicotine, including, but not limited to, filters, rolling papers, blunt or hemp wraps, and pipes.

Sample means cigarettes, tobacco products, hookah products, liquid or electronic vaping devices distributed to members of the general public at no cost for the purpose of promoting the product.

Vending machine means any coin, currency or token operated machine, contrivance or device, by means of which tobacco products are sold in their original package.
(Ord. No. 42-423 § 1; Ord. No. 50-602, § 1, 10-17-17; Ord. No. 52-051, § 3, 3-21-23)

Sec. 7.60.020. License required—Nontransferable—Expiration date.

It is unlawful for any person to:

a. Business License. Engage in the operation of a business selling, excluding selling by vending machine, tobacco products, at one or more locations within the city, unless such person has procured from City Licensing a license to engage in such business at each such location.

b. Vending Machine License. Engage in the operation of a business of selling tobacco products from one or more vending machines unless such person has procured from City Licensing a license for each such vending machine and one business license as required by subsection (a).

c. A license issued under this section is non-assignable and non-transferable. Each license issued under this section shall expire on December 31st of the year in which issued.

(Ord. No. 42-423 § 2; Ord. No. 50-602, § 2, 10-17-17; Ord. No. 52-051, § 5, 3-21-23)

Editor's note—Ord. No. 52-051, § 5, adopted Mar. 21, 2023, amended the title of § 7.60.020 to read as herein set out. The former § 7.60.020 title pertained to permit required—nontransferable—expiration date.

Sec. 7.60.025. License application.

a. Before any license is granted, renewed or issued for sale of tobacco products, an application shall be filed with City Licensing, setting forth the following facts:

1. Applicant's name, address, email address, date of birth and telephone number at which the applicant can be reached between the hours of 8:00 a.m. and 5:00 p.m.;

2. Name and location of the premises to be licensed;

3. Hours and days the retail establishment is to be open and closed;

4. A statement that the applicant is familiar with the conditions imposed by the terms of this Chapter;

b. In addition the applicant must furnish:

1. The names and addresses of the owner of the premises in which such establishment is located;

2. The official address at which a complaint may be served and an acknowledgement that it is the duty of the applicant to keep the address updated with City Licensing within 10 days of any change;

3. A statement as to whether the applicant has ever had any license denied, revoked or suspended by the City of Wichita or the State of Kansas or any other governmental entity, the reason therefor and the business activity or occupation of the individual subsequent to such suspension, revocation or denial; and

4. A statement that the applicant consents and agrees that any City employee designated to enforce this code may, at any time, enter and inspect any part of such premises.

5. If incorporated, a certificate issued by the Kansas Secretary of State showing that the corporation or LLC is in good standing.

6. A copy of the State of Kansas license that allows the sale of tobacco products.

7. Payment for the license fee.

c. If all requirements are met, upon receipt of a fully completed application, a license will be issued by City Licensing. A license shall be denied if one or more of the following conditions exist:

1. An applicant has been denied a tobacco license in the six months prior to the current application.

2. An applicant has had any license or permit with the City of Wichita or the State of Kansas revoked in the previous 5 years.
3. An applicant is less than twenty-one (21) years of age.
4. The premises do not comply with the health, housing, fire and zoning codes of the City of Wichita.
5. The applicant has knowingly made a false, misleading or fraudulent statement of fact to the City in the application process.
6. The application is incomplete or it contains any material misrepresentation.
7. Within the previous five years, while holding a license, the applicant engaged in activity that would have suspended or revoked any permit or license issued by the City of Wichita or the State of Kansas, but it expired or was relinquished prior to a suspension or revocation.

(Ord. No. 52-051, § 6, 3-21-23)

Sec. 7.60.030. License fee.

a. The fee for each business license required by Section 7.60.020(a) of this Chapter shall be $260 per year.

b. The fee for the vending machine permit required by Section 7.60.020(b) of this Chapter shall be $15 dollars per year for each vending machine.

(Ord. No. 42-423 § 3; Ord. No. 49-608, § 1, 11-26-13; Ord. No. 50-602, § 3, 10-17-17; Ord. No. 50-870, § 1, 10-16-18; Ord. No. 52-051, § 7, 3-21-23)

Editor's note—Ord. No. 52-051, § 7, adopted Mar. 21, 2023, amended the title of § 7.60.030 to read as herein set out. The former § 7.60.030 title pertained to permit fee.

Sec. 7.60.035. License holder requirements.

a. Signage. No license holder shall sell, permit the sale of, or distribute tobacco products unless a notice, as set forth below, is posted at a licensed premise or vending machine where tobacco products are available for purchase, sale or distribution. The required notice must be posted in a manner conspicuous to both employees and consumers, unobstructed from view in their entirety, and within six feet of each register where tobacco products are available for purchase. The required notice shall state "NO PERSON UNDER THE AGE OF 21 MAY BE SOLD CIGARETTES OR TOBACCO PRODUCTS, INCLUDING ELECTRONIC VAPING DEVICES". The required notice will be at least 14" by 11" and the words on the notice will be legibly printed in a high contrast red color with capitalized letters at least one inch high. A sample of the required notice will be made available on the City of Wichita's official website for download.

b. Training. Upon issuance of any license, the license holder shall provide training to all employees or agents regarding legal requirements for the sale of tobacco products. Such training shall include information that the sale of tobacco products to persons under 21 years of age is illegal, the types of identification legally acceptable for proof of age, and that sales to persons under 21 years of age shall subject the license holder and employee to penalties as set forth in this Chapter. The license holder shall be responsible for providing ongoing education to all new agents or employees of the provisions in the law.

c. License Display. The license holder shall post the original license issued under this Chapter in a location within the establishment that is visible and easily readable by the public. The license shall be removed from display during periods of time when the license is suspended or revoked.

d. Vending Machine Reporting. Upon issuance of any vending machine license, and then semi-annually thereafter, the license holder shall provide the Director a list of locations where each vending machine is being operated.

(Ord. No. 52-051, § 8, 3-21-23)

Sec. 7.60.040. Reserved.

Editor's note—Ord. No. 52-051, § 9, adopted Mar. 21, 2023, repealed § 7.60.040, which pertained to prohibited conduct, and derived from Ord. No. 42-423 § 4; Ord. No.

50-602, § 4, adopted Oct. 17, 2017; Ord. No. 51-295, § 1, adopted June 16, 2020; and Ord. No. 51-553, § 1, adopted May 18, 2021.

Sec. 7.60.050. Administrative penalty, suspension or revocation of license.

a. A license for the sale of cigarettes or tobacco products issued under this Chapter may be suspended or revoked by the Director of Public Works if:

1. Any data furnished on the application is incomplete, false or is not updated as required by this Chapter;
2. The license holder has become ineligible to hold a license;
3. An enforcement agent is refused access to inspect the premises during normal business hours;
4. Any license holder, employee or any agent of the license holder refuses to disclose their identity or provides a false identity to an employee of the City of Wichita or State of Kansas who is inspecting the premises;
5. The license holder or any employee or any agent of the license holder is found to be in violation of the provisions of this Chapter;
6. The license holder or any employee or agent of the license holder violates any local, state, or Federal law applicable to tobacco products, electronic smoking devices or tobacco paraphernalia;
7. The license holder fails to pay an administrative penalty as set forth in subsection (b) within 90 days of its issuance;

b. The Director of Public Works shall impose an administrative penalty up to $1,500 per occurrence against the license holder when tobacco products were sold to a person under 21 years of age from the retail establishment as follows:

1. For a first violation, an administrative penalty of $250 will be assessed against the license holder.
2. For a second violation within a 24-month period, an administrative penalty of $500 will be assessed against the license holder.
3. For a third violation within a 24-month period, an administrative penalty of $750 and a suspension from selling tobacco products for seven days will be assessed against the license holder.
4. For a fourth violation within a 24-month period, an administrative penalty of $1,000 and a suspension from selling tobacco products for 30 days will be assessed against the license holder.
5. For a fifth or subsequent violation within a 24-month period, an administrative penalty of $1,500 will be assessed against the license holder and the license shall be revoked for a period of one year.

c. A license for the sale of cigarettes or tobacco products issued under this Chapter may be suspended up to one year or revoked and an administrative penalty up to $5,000 may be assessed by the Chief of Police or designee if:

i. An owner, licensee, manager, employee, representative or responsible person of the licensee has violated a Federal or State law or an ordinance of the City of Wichita at the business premises or pertaining to the business.

ii. The Chief of Police or designee shall notify the Director of Public Works and Utilities and City Licensing of any action within 5 days of it being issued.

d. Court prosecution or conviction of a violation is not necessary to prove an occurrence that triggers an administrative penalty or suspension or revocation. A journal entry of conviction or diversion shall serve as prima facie evidence of an occurrence.

e. Notice of penalty, suspension or revocation. The Director of Public Works and Utilities, for the purposes of subsections (a) and (b), or Chief of Police or designee, for the purposes of subsection (c), shall provide written notice of an administrative penalty or the intent to suspend or revoke a license by personal service or first

class mail to the retail establishment that is the subject of the action. The notice shall be personally delivered or sent by first class mail to the mailing address of the license holder on file with City Licensing. The notice shall provide the effective date of the revocation or suspension of the license or permit. Such notice shall detail the reasons or basis for the administrative penalty, suspension or revocation of the license and shall specify the rights of the license holder to appeal any such administrative penalty, revocation or suspension. The suspension or revocation may not begin for at least five days from the date that notification was sent.

f. Removal of product. The license holder of any license for the sale of cigarettes or tobacco products that has been suspended or revoked is required to remove all products and advertising for those products from view of the consumer, until suspension or revocation has been removed from the license. Failure to remove items is punishable as set forth in Section 7.60.080.

(Ord. No. 42-423 § 5; Ord. No. 50-602, § 5, 10-17-17; Ord. No. 52-051, § 10, 3-21-23; Ord. No. 52-244, § 1, 8-15-23)

Editor's note—Ord. No. 52-051, § 10, adopted Mar. 21, 2023, amended the title of § 7.60.050 to read as herein set out. The former § 7.60.050 title pertained to suspension or revocation of permit.

Sec. 7.60.060. Appeal from suspension or revocation or administrative penalty from 7.60.050(a) and (b).

a. Any applicant or license holder aggrieved by a denial, administrative penalty, suspension or revocation of a tobacco products license pursuant to (a) or (b) of Section 7.60.050 may file with the Director of Public Works a written notice of appeal within fourteen calendar days of the decision by the Director of Public Works. The notice of appeal shall specify:

1. The name and address of the appellant;
2. The date of application;
3. The date of the denial, suspension, revocation or administrative penalty of the license, or application; and
4. The factual basis for the appeal.

b. Upon receipt of a complete and timely filed notice of appeal, the Director of Public Works shall schedule a hearing no later than fourteen days from the date of the filing of the notice of appeal, unless good cause is shown for a delay. Any appeal shall stay the administrative penalty, suspension or revocation of the license or permit until the matter is heard by the Director of Public Works.

c. The Director may approve, overrule or modify the denial, administrative penalty, suspension or revocation.

d. In any hearing before the Director pursuant to this section, a certified copy of conviction from any local or state court is prima facie evidence of a violation.

e. The Director's decision may be appealed by filing a notice of appeal within 14 calendar days to the City Clerk. The appeal will be heard by a panel of the City Council following the procedure set forth in Section 2.04.237. Subsequent appeals may be filed with the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the district court shall not stay the suspension or revocation of the permit, or any modification imposed thereupon by the City Council.

(Ord. No. 42-423 § 6; Ord. No. 50-602, § 6, 10-17-17; Ord. No. 52-051, § 11, 3-21-23; Ord. No. 52-244, § 2, 8-15-23)

Editor's note—Ord. No. 52-244, § 2, adopted Aug. 15, 2023, amended the title of § 7.60.060 to read as herein set out. The former § 7.60.060 title pertained to appeal from suspension or revocation or administrative penalty.

Sec. 7.60.065. Appeal from suspension or revocation or administrative penalty of 7.60.050(c).

a. Any applicant or license holder aggrieved by a denial, administrative penalty, suspension or revocation of a tobacco products license pursuant to Section 7.60.050(c) may file with the City Clerk a written notice of appeal within fourteen calendar days of the decision by the Chief of Police. The notice of appeal shall specify:

1. The name and address of the appellant;
2. The date of application;

3. The date of the denial, suspension, revocation or administrative penalty of the license, or application; and

4. The factual basis for the appeal.

b. Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule the case before the City Council following the procedure set forth in Section 2.04.237 of the Code of the City of Wichita. Any appeal shall stay the suspension or revocation of the license until the matter is heard by the panel of the City Council. The panel may revoke a license, approve or overrule the suspension or revocation of a license or modify the decision to suspend, and in addition, may impose an administrative penalty of up to $5,000. In any hearing before the City Council pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation is prima facia evidence of such violation.

c. The City Council's finding may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the suspension or reclassification of the license or any modification imposed thereupon by the City Council.
(Ord. No. 52-244, § 3, 8-15-23)

Sec. 7.60.070. Enforcement.

Enforcement of the provisions of this chapter shall be primarily by the Director of Public Works & Utilities and his/her designated representative. In addition, commissioned law enforcement officers are authorized to enforce this chapter.
(Ord. No. 42-423 § 7; Ord. No. 50-602, § 7, 10-17-17)

Sec. 7.60.075. Prohibited conduct.

It is unlawful for any person:

a. To sell, give away, or provide in any manner, tobacco products to any person under the age of 21 years;

b. Under the age of 21 years, except as otherwise provided, to purchase or possess or attempt to purchase or possess tobacco products; provided, however, this shall not prohibit such person from working as an employee at an establishment licensed to sell tobacco products under this Chapter. Individuals, who are 18 years old or older, are authorized to sell tobacco products when employed at a business which sells such tobacco products. This ordinance shall not prohibit government employees and volunteers from undercover purchases or attempts to purchase carried out for the purpose of enforcing this chapter and any applicable state or federal law.

c. To allow employees under 18 years of age to sell tobacco products.

d. To sell or deliver tobacco products to any person who appears to be under the age of 27 years without having first verified the person's age by means of a photographic identification card such as a driver's license, state identification card, passport or military identification;

e. To sell cigarettes in broken packages; or

f. To sell tobacco products in a vending machine which does not clearly identify the operator of the machine, and which does not bear a conspicuous notice stating:

It is illegal for anyone under the age of 21 years to purchase cigarettes or other tobacco products.

Provided, however, that in the event a machine is found to not have such a notice, the operator of the machine shall be notified and given seven days within which to place such notice on the machine before being charged with a violation of this requirement;

g. To sell tobacco products in a vending machine in any establishment, or portion thereof, which is open to minors; provided, however, that this section shall not apply to:

1. The installation and use by the proprietor, or his or her agent, or employees, of tobacco vending

machines behind a counter, or in some place in such establishment, or portion thereof, to which access by minors is prohibited by law;

2. The installation and use of a tobacco vending machine in a commercial building, or industrial plant, or portions thereof, where the public is not customarily admitted and where machines are intended for the sole use of the employees employed therein who are not minors; or

3. A vending machine which has a lock-out device which is inoperable in the continuous standby mode, and which requires manual activation by the person supervising the operation of the machine each time a package of cigarettes tobacco products is purchased.

(Ord. No. 52-051, § 12, 3-21-23)

Sec. 7.60.080. Penalty.

a. Any person under 21 years of age found in possession of tobacco products as prohibited in Section 7.60.075(b) shall not be subject to criminal charges in Municipal Court but shall have that product immediately seized by a law enforcement officer or an environmental health officer as contraband. The product shall be destroyed unless the aggrieved person files a written appeal within 14 days of the seizure with the Office of the Chief of Police. The grievant shall submit any argument, witness statements or other material to the Chief of Police at the time of filing. The Chief of Police will consider the written material of the grievant as well as the any reports, videos or other information submitted by the officers involved. The Chief of Police will respond in writing within 14 days of receipt of the appeal. The issues for appeal are limited to:

1. Whether the item in question is a tobacco product; or

2. Whether the person was in possession of the contraband; or

3. Whether the person had the legal right to possess the contraband; or

4. Whether there was probable cause to seize the tobacco product.

5. The aggrieved party may appeal the decision of the Chief of Police by requesting a hearing before the City Council following the same procedure as set forth in Section 2.04.235 of this code. The decision of the City Council may be appealed to the District Court of Sedgwick County pursuant to K.S.A. 60-2101.

b. Any person convicted of violating the provisions of this Chapter other than 7.60.075 (b) shall be guilty of a misdemeanor, punishable by a minimum fine of $200 and maximum fine of $1,000 and/or 6 months jail.

c. No criminal prosecution shall be commenced in Wichita Municipal Court for any violation of 7.60.075(a) or (d) against any person other than a license holder, unless that person has received a written notice of a prior violation of the terms of this Chapter.

(Ord. No. 50-602, § 8, 10-17-17; Ord. No. 52-051, § 1, 3-21-23)

Editor's note—Ord. No. 50-602, § 8, adopted Oct. 17, 2017, repealed the former § 7.60.080 and enacted a new § 7.60.080 as set out herein. The former § 7.60.080 pertained to penalty for violation of the provisions of the chapter and derived from Ord. No. 42-423 § 8.

Sec. 7.60.090. Severability.

Should any section or provision of this chapter for any reason be held void, unconstitutional or invalid, it shall not affect the validity of any other section or provision of this chapter which is in itself not void, unconstitutional or invalid.

(Ord. No. 42-423 § 9)

Sec. 7.60.100. Conflict of law.

Nothing in this chapter shall be interpreted to authorize any person licensed hereunder to transact business selling or providing cigarettes or tobacco products in violation of any state statute or federal law governing such sales or activities, nor shall compliance with the provisions of this chapter relieve any person from compliance with any state statutes or federal laws governing such sales or activities.

(Ord. No. 50-602, § 9, 10-17-17)

CHAPTER 7.72. SWIMMING POOLS

Sec. 7.72.010. Definitions.
Sec. 7.72.020. Contingent restrictions for non-regulated swimming pools and non-regulated spa pools.
Sec. 7.72.030. License required—fees—Designation of manager—Notice to health officer.
Sec. 7.72.032. Wading Pools.
Sec. 7.72.040. Lifeguards required.
Sec. 7.72.050. Lifeguard plan.
Sec. 7.72.060. Operation in accordance with approved lifeguard plan.
Sec. 7.72.070. Pools without lifeguards.
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Sec. 7.72.090. Lifesaving equipment.
Sec. 7.72.095. Depth markers for swimming pools and spa pools.
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Sec. 7.72.110. Control of access.
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Sec. 7.72.121. Fecal and vomit accident response.
Sec. 7.72.130. Cleaning.
Sec. 7.72.140. Personal regulations.
Sec. 7.72.150. Violation of personal regulations.
Sec. 7.72.160. Daily records.
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Sec. 7.72.180. Plans and specifications for construction.
Sec. 7.72.190. Inspection by health officer.
Sec. 7.72.191. Requirements for design and construction of recreational water features.
Sec. 7.72.193. Additional requirements for regulated spa pools.
Sec. 7.72.197. Waivers.
Sec. 7.72.200. Suspension and revocation of license.
Sec. 7.72.201. Service of notice.
Sec. 7.72.202. Hearings and appeals.
Sec. 7.72.220. Penalty for violation of provisions of chapter.
Sec. 7.72.230. Severability clause.

Sec. 7.72.010. Definitions.

As used in this chapter, the following words and phrases shall have the following meanings:

"CT value" means the concentration (C) of free available chlorine in ppm multiplied by time (T) in minutes (CT value = C × T) that is necessary to kill any designated microorganism. The CT value for Giardia is forty-five and the value for Cryptosporidium is nine thousand six hundred.

"Health officer" means the director of the department of environmental health or his or her authorized representative.

"Lifeguard" means a person designated to carry out safety procedures and supervision of swimming and other use activities at a swimming pool who holds a current certificate in one or more of the following water safety courses: American Red Cross Lifeguard Training, Young Men's Christian Association Lifeguard, Boy Scouts of America BSA Lifeguard, or other equivalent credential as determined by the health officer.

"Manager" means a person designated by a property owner, his or her agent, or lessee to be responsible for the operation, supervision and maintenance of a regulated swimming pool, spa pool, or recreational water feature on that property. The property owner or lessee is deemed to be the manager for this chapter until the health officer is provided contrary information by compliance with Section 7.72.030.

"Non-regulated spa pool" means any spa pool located at an individual residence under the control of the owner or lessee, where the use of the spa pool is limited to recreational or therapeutic bathing by the members of the owner's or lessee's family and/or their invited, non-paying guests.

"Non-regulated swimming pool" means any swimming pool located at an individual residence under the control of the owner or lessee, where the use of the swimming pool is limited to swimming or bathing by members of the owner's or lessee's family or their invited non-paying guests. Whenever such non-regulated swimming pool is used for persons other than the owner or lessee, his or her family or their non-paying invited guests, such non-regulated swimming pool shall be made to comply with the provisions of this chapter applicable to regulated swimming pools.

"Person" means any individual, firm, partnership, association, corporation, joint venture, company, municipality, body politic or subdivision of the state, club, group, other state franchised business entity such as a professional association, limited liability company, or limited liability partnership or other organization of any kind.

"Recreational water feature" means any other recreational structure other than a swimming pool or spa pool which is open to the general public or which is semi-public, involving the use

of recirculated water in which people come into contact. This may include, but is not limited to, zero depth water features, interactive fountains, water slides, waterfalls or combinations of such water features. Water features not intended for human contact, such as ornamental fountains, are not included.

"Regulated spa pool" means any spa pool intended to be used by the general public or which is semi-public.

"Regulated swimming pool" means any swimming pool intended to be used by the general public, or which is semi-public.

"Semi-public" means any swimming pool, spa pool or other water feature which is intended to be used primarily by the occupants and their invited guests of any type of:

1) A permanent residence facility, e.g., apartment house, condominium, residential club, homeowners' association and other housing complex;

2) A temporary residence facility, e.g., hotel, motel and camp;

3) A commercial or non-commercial workout club, swim club, exercise facility or country club; or

4) An institution, such as a school, college, university, hospital, church, etc.

"Spa pool" means any spa, hot tub or special facility, other than a swimming pool, which is designed and intended for recreational and therapeutic use, and which is not drained, cleaned or refilled after each individual use. It may include, but not be limited to, units designed for hydro-jet circulation, hot water, cold water, mineral bath, air induction bubbles or any combination thereof. Common terminology for a spa includes, but is not limited to, "therapeutic pool," "hydrotherapy pool," "whirlpool," "hot spa" and "hot tub."

"Swimming pool" means any structure, basin, chamber or tank containing an artificial body of water intended for swimming, diving or recreational bathing and having a rim to bottom depth of two feet or more at any point.

"Wading pool" means any structure, basin, chamber or tank containing an artificial body of water for recreational bathing and having a rim to bottom depth of less than two feet at any point which is open to the general public or is semi-public.

(Ord. No. 46-592 § 1 (part))

Sec. 7.72.020. Contingent restrictions for non-regulated swimming pools and non-regulated spa pools.

The design, construction, and operation of non-regulated swimming pools or spa pools are not subject to the provisions of this chapter, except that whenever such non-regulated swimming pools or spa pools are used for persons other than the owner or lessee, his or her family or their invited non-paying guests such non-regulated swimming pools or spa pools shall be made to comply with the provisions of this chapter applicable to regulated swimming pools or spa pools.

Non-regulated swimming pools and spa pools, as defined in Section 7.72.010, shall be protected and enclosed with a fence or wall enclosure, impenetrable to humans, at least sixty inches in height. Gates leading to such pools shall be latched when not under supervision of an adult. Such latch shall reasonably ensure against accidental or unauthorized access to the swimming pool or spa pool by children. Fencing for the entire yard in which a swimming pool or spa pool is located is acceptable, provided such fence or wall complies with the above requirements. In lieu of the fencing specified above, such swimming pool or spa pool may be protected and enclosed, when not under the supervision of an adult, by means of a pool power safety cover meeting the most recent specifications approved by the American Society for Testing and Materials for swimming pool covers under the fixed designation standard F 1346 (ATSM F 1346), or with a locked spa pool cover.

(Ord. No. 46-592 § 1 (part))

Sec. 7.72.030. License required—fees—Designation of manager—Notice to health officer.

No person shall operate a regulated swimming pool, a regulated spa pool, or other recreational

water feature without a valid license issued by the city. Application shall be made to the city treasurer on an annual basis and shall be made upon a form provided by the city. The applicant shall pass a site inspection and document review by the department of environmental health and pay an annual licensing fee prior to issuance of a license. Fees for regulated facilities shall be as follows:

License Type	*License Fee*
Swimming pool, wading pool, spa pool, or other recreational water feature—annual	$200
Additional annual swimming pool, wading pool, spa pool, or other recreational water feature at the same location	$100
Seasonal (six or fewer months) swimming pool, wading pool, spa pool, or other recreational water feature	$125
Additional seasonal swimming pool, wading pool, spa pool, or other recreational water feature at the same location	$ 50

Swimming pools, spa pools, and other recreational water features operated by the City of Wichita or public school districts within the city limits shall not be required to pay licensing fees, but shall require licenses and be required to comply with all regulations within Chapter 7.72 of the city code.

The owner, owner's agent or lessee of every swimming pool, spa pool, wading pool or other recreational water feature regulated within this chapter shall designate a manager who shall be at least eighteen years old. The owner, owner's agent or lessee of the facility shall inform the health officer in writing of the name, address and telephone number of the manager, before the opening of the pool, spa or recreational water feature each year, and at any time there is a change of manager during the season of operation. The written notification shall also include the basis for admission and intended use of the regulated swimming pools, regulated spa pools, wading pools or recreational water features affected.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.032. Wading Pools.

When associated with regulated pools, a wading pool shall be separate and physically set apart from the shallow water areas of the swimming pools by a four-foot high barrier or at least six feet of deck from a regulated pool. Where a wading pool is adjacent to any area of a regulated pool exceeding four feet in depth, measured two feet horizontally from the pool edge, a minimum four-foot high barrier shall be installed separating the two pools. Wading pools shall have a maximum water depth less than twenty-four inches. The water depth at the perimeter shall not exceed eighteen inches.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.040. Lifeguards required.

The manager of every regulated swimming pool and every public or semi-public wading pool where children under the age of sixteen are permitted to swim unattended by an adult shall maintain lifeguards in attendance in the pool area whenever the swimming pool is in use. The number of lifeguards in attendance shall be as provided in Section 7.72.050.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.050. Lifeguard plan.

The owner, lessee or manager of every regulated swimming pool and public and semi-public wading pool that is required to maintain lifeguards in accordance with Section 7.72.040 shall submit to the health officer a lifeguard plan. Such lifeguard plan shall show how adequate lifeguard services are to be provided. The plan shall include a drawing of the pool, location of lifeguard elevated chairs and/or stations, water depths, numbers and locations of lifeguards under the various anticipated use and load conditions, type and location of safety equipment, and such other information as the health officer may request. The health officer shall either deny or approve the plan as submitted, or approve the plan after such modifications as he or she deems necessary to provide for adequate public safety.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.060. Operation in accordance with approved lifeguard plan.

The manager of regulated swimming pool and each wading pool that is required to have an approved lifeguard plan, or that otherwise has an approved lifeguard plan, shall operate his or her swimming or wading pool in accordance with such approved lifeguard plan. Any modifications to the approved lifeguard plan must be proposed in writing to the health officer for review. Only modifications approved by the health officer shall be implemented.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.070. Pools without lifeguards.

At those regulated swimming and wading pools that are not required to have an approved lifeguard plan, a warning sign shall be placed and maintained in plain view and shall state "Warning—No Lifeguard on Duty" with clear, legible letters at least four inches high. In addition, the sign shall also state "Children Less Than 16 Years Old Shall Not Use Pool Without An Adult in Attendance."
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.080. Elevated lifeguard platform or chair.

Regulated swimming pools and wading pools that are required to have an approved lifeguard plan, operated primarily for unorganized use and having an area of more than two thousand two hundred fifty square feet of water surface area shall be provided with an elevated lifeguard platform or chair. In such regulated swimming pools with four thousand square feet or more of water surface area, additional elevated chairs or stations shall be provided as required by the health officer, located so as to provide a clear, unobstructed view of the pool bottom in the area under surveillance. Unorganized use is use other than supervised instruction, training, competition, therapy, exhibitions and demonstrations.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.090. Lifesaving equipment.

One unit of lifesaving equipment shall be provided at all regulated swimming pools. For regulated swimming pools where lifeguards are not provided one unit of life-saving equipment shall consist of:

1. A ring buoy with an outside diameter of fifteen to seventeen inches which shall be attached to a three-sixteenths inch diameter rope long enough to reach at least one half the longest dimension of the pool.

2. A life pole or shepherd's crook type of pole having blunted ends with minimum length of twelve feet.

For regulated swimming pools where lifeguards are provided, one unit of lifesaving equipment shall consist of:

1. A ring buoy with an outside diameter of fifteen to seventeen inches which shall be attached to a three-sixteenths inch diameter rope long enough to reach at least one half the longest dimension of the pool. A rescue tube equipped with a strap or towrope at least six feet in length may be used in lieu of a ring buoy and life pole or shepherd's crook at pools providing lifeguards when lifeguards are present on duty.

2. A life pole or shepherd's crook type of pole having blunted ends with minimum length of twelve feet.

3. For regulated swimming pools where lifeguards are provided, a backboard with head immobilization and working straps shall be furnished. Swimming pools where lifeguards are not provided are not required to provide backboards.

One unit shall be presumed to be adequate for three thousand square feet of water surface area. In regulated swimming pools with more than three thousand square feet of water surface area, additional units shall be provided as required by the department of environmental health. Lifesaving equipment shall be mounted in conspicuous places, distributed around the swimming pool deck, lifeguard chairs or elsewhere, readily accessible, its function plainly marked and kept in repair and ready, usable condition. Bathers or others shall not be permitted to tamper with or

use lifesaving equipment for any purpose other than its intended use, or otherwise remove such equipment from its established location.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.095. Depth markers for swimming pools and spa pools.

Regulated swimming pools shall have the depth of the water conspicuously marked in feet at or above the waterline on the vertical pool wall and/or on the top of the coping or edge of the deck next to the pool. The depth markings shall be installed at the maximum and minimum water depths and at all points of slope change in increments of not less than two feet of change in water depth. They shall be arranged uniformly on both sides and both ends of the pool. The numerals of the markings shall be a minimum of four inches in height.

Regulated spa pools shall have at least one marker (minimum four inches in numeral height) indicating maximum depth readily visible to users.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.100. First aid.

Every regulated swimming pool requiring lifeguards shall be equipped with a first aid kit which shall be kept ready for use, filled with supplies appropriate for the treatment of injuries consistent with the training required of lifeguards at Section 7.72.010.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.110. Control of access.

When any outdoor regulated swimming pool, wading pool or regulated spa pool is not open for use, access to the pool shall be prevented with a fence or wall enclosure, impenetrable by humans, at least sixty inches in height. Gates leading to such pools shall be latched when not under supervision of an adult. Such latch shall reasonably ensure against accidental or unauthorized access to the pool by children. In lieu of the fencing specified above a swimming or working pool may be protected and enclosed, when not under the supervision of an adult, by means of a power safety cover meeting the most recent specifications approved by the American Society for Testing and Materials for swimming pool covers under the fixed designation standard F 1346 (ASTM F 1346). Spa pools may be protected by a locked spa pool cover.

When any indoor regulated swimming pool, wading pool or regulated spa pool is not open for use, access to the pool shall be prevented by lockable doors or other structures which effectively prevent access.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.120. Disinfecting materials, methods and water quality standards.

Regulated swimming pools, spa pools, wading pools or other recreational water features when in use shall be continuously disinfected by a chemical which imparts an easily measured, free available residual effect. When chlorine is used, a free chlorine residual of at least 1.0 ppm shall be maintained in swimming pools while in operation. A free chlorine residual of at least 2.0 ppm shall be maintained in spa pools and wading pools. A free chlorine residual of at least 2.0 ppm at point of contact shall be maintained in other recreational water features when in operation. Free chlorine residuals shall not exceed 5.0 ppm in swimming pools, spa pools, wading pools or recreational water features when in use. If other disinfectants are used, residuals of equivalent disinfecting strength shall be maintained. A testing kit, approved by the health officer, for measuring the concentration of the disinfectant shall be provided at each regulated swimming pool, regulated spa pool, wading pool or other recreational water feature. The health officer may accept other disinfecting materials or methods when those materials have been adequately demonstrated to provide a satisfactory residual effect which is easily measured and determined to be equally as effective under conditions of use as the chlorine concentration required herein, while not being dangerous to public health, create objectionable physiological effects or impart toxic properties to the water. The disinfected water shall be maintained in an alkaline condition as indicated by a pH of not less than 7.0 and not over 8.0. A pH testing kit accurate to the nearest 0.2 pH unit

shall be provided at each regulated swimming pool, regulated spa pool, wading pool or other recreational water feature. The total alkalinity of the water shall be at least 80 ppm. and at most 180 ppm., as measured by the methyl-orange test. Chemicals used in controlling the quality of water shall be demonstrated as imparting no toxic properties to the water. Such chemicals as may be used for algae control shall be approved for use by the health officer. The water in a swimming pool, wading pool or spa pool shall have sufficient clarity at all times so that the main drain is clearly visible and sharply defined when observed from the edge of the pool at a point adjacent thereto. For spa pools, the maximum allowable water temperature shall not exceed one hundred four degrees Fahrenheit.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.121. Fecal and vomit accident response.

The text of this section must be posted, or kept readily available with daily pool maintenance records, for pool staff to reference in the case of a fecal accident. At such time as a fecal accident occurs at any regulated swimming pool, regulated spa pool, wading pool or other recreational water feature, the facility must be immediately closed and access to the water prohibited. The health officer must be notified of fecal accidents involving diarrhea at such time as they occur. The manager shall immediately make a fecal accident report on a form provided by the health officer. On that form the manager shall record each fecal accident, date and time of the event, time of health officer notification if required, whether the accident involved formed stool or diarrhea, and recording of the chlorine levels and pH at the time of observation of the accident. Before reopening the pool, the manager shall record the pH, the procedures followed in response to the fecal accident (including the process used to increase chlorine levels if necessary), and the contact time. The fecal accident report shall be maintained and kept readily accessible with daily records for inspection by the health officer. The manager shall follow the most current Center for Disease Control and Prevention (CDC) recommended procedures for responding to fecal accidents in chlorinated recreational water venues. Before the facility is reopened for use the manager shall at a minimum take the following steps as referenced from the CDC Fecal Accident Response Recommendations for Aquatics Staff:

For fecal accidents involving solid stool, or for vomit accidents

1. Direct everyone to leave the facility. If multiple facilities use the same filter—all facilities shall be shut down. Do not allow anyone to enter the contaminated facility(s) until all decontamination procedures are completed.
2. Remove as much of the fecal material or vomitus as possible using a net or scoop and dispose of it in a sanitary manner. Clean and disinfect the net or scoop. The net or scoop may be disinfected after cleaning by leaving the cleaned net or scoop immersed in the facility during facility disinfection. VACUUMING STOOL FROM THE FACILITY IS NOT RECOMMENDED.
3. Raise the chlorine to 2 ppm (if less than 2 ppm), and ensure the pH is between 7.2-7.5. This chlorine concentration was selected to keep the facility closure time to approximately thirty minutes. Other concentrations or closure times can be used as long as the CT inactivation value (Figure 1) is kept constant.
4. Maintain the chlorine concentration at least 2.0 ppm, pH 7.2-7.5, for at least twenty-five minutes before reopening the facility. The health officer may require higher chlorine levels in the presence of chlorine stabilizers such as chlorinated isocyanurates. Ensure that the filtration system is operating while the facility reaches and maintains the proper free available chlorine concentration during the disinfection process.

Figure 1-Giardia Inactivation for Formed Fecal Accident

Chlorine Levels (ppm)	*Disinfection Time**
1.0	45 minutes

Chlorine Levels (ppm)	*Disinfection Time**
2.0	25 minutes
3.0	19 minutes

* These closure times are based on a 99.9% inactivation of Giardia cysts by chlorine, pH 7.5, 77° F (25° C). The closure times were derived from the Environmental Protection Agency (EPA) Disinfection Profiling and Benchmarking Guidance Manual. These closure times do not take into account "dead spots" and other areas of poor facility water mixing.

For fecal accidents involving diarrhea:

1. Direct everyone to leave the facility. If multiple facilities use the same filter—all facilities shall be shut down. Do not allow anyone to enter the contaminated facility(s) until all decontamination procedures are completed.
2. Remove as much of the fecal material as possible using a net or scoop and dispose of it in a sanitary manner. Clean and disinfect the net or scoop. The net or scoop may be disinfected after cleaning by leaving the cleaned net or scoop immersed in the facility during facility disinfection. VACUUMING STOOL FROM THE FACILITY IS NOT RECOMMENDED.
3. Raise the free available chlorine concentration to at least 20 ppm and maintain the pH between 7.2 and 7.5. This chlorine and pH level should be sufficient to inactivate Cryptosporidium and should be maintained for at least eight hours, equivalent to a CT inactivation value of 9600 (Figure 2).
4. Ensure that the filtration system is operating while the facility reaches and maintains the proper chlorine level during disinfection. If necessary, consult an aquatics professional to determine and identify the feasibility, practical methods, and safety considerations before attempting the hyperchlorination of any facility.
5. Backwash the filter thoroughly after reaching the CT value. Be sure the effluent is discharged directly to waste and in accordance with City of Wichita regulations. Do not return the backwash through the filter. Where appropriate, replace the filter media.
6. Participants may be allowed back into the facility after the required CT value has been achieved and the chlorine level has been returned to the normal operating range allowed by Section 7.72.120.

Figure 2-Crypto Inactivation Time for Diarrheal Accident

Chlorine Levels (ppm)	*Disinfection Time*
1.0	6.7 days
10	16 hours
20	8 hours
30	6 hours
40	4 hours

* Figures 1 and 2 are examples to achieve CT values. Disinfection time may be decreased by increasing the chlorine levels to achieve the required CT values.

(Ord. No. 46-592 § 1 (part))

Sec. 7.72.130. Cleaning.

Visible dirt on the bottom of a regulated swimming pool, wading pool or regulated spa pool shall be removed every twenty-four hours or more frequently as required. Visible scum or floating matter on the regulated swimming pool, wading pool or spa pool surface shall be removed every twenty-four hours by flushing or other effective means.

(Ord. No. 46-592 § 1 (part))

Sec. 7.72.140. Personal regulations.

A reasonable application of the following personal regulations shall be the responsibility of the manager of each regulated swimming pool, wading pool, regulated spa pool, or other recreational water feature:

1. All persons using a regulated swimming pool, wading pool or regulated spa pool, where a shower is provided, shall take a cleaning shower bath before entering the pool.
2. Where restrooms are provided at a regulated swimming pool, spa pool, or other

recreational water feature, all such restrooms shall have soap provided and available for hand washing.

3. Any person known to have any disease communicable through water shall be excluded from a regulated swimming pool, wading pool, regulated spa pool, or other recreational water feature. Persons having any considerable area of exposed subepidermal tissue, open blisters, or cuts shall be warned that these are likely to become infected and advised not to use the swimming pool, wading pool, regulated spa pool, or other recreational water feature. Where restrooms are provided at a regulated swimming pool, spa pool, or other recreational water feature, all such restrooms shall have soap provided and available for hand washing.

4. No running, boisterous or rough play, except supervised water sports, shall be permitted in the regulated swimming pool, wading pool, regulated spa pool, or other recreational water feature, or on the adjacent and nearby decks, runways, diving boards, floats, platforms or in dressing rooms and shower rooms.

5. Suitable signs embodying the above personal regulations and instructions shall be conspicuously posted at all regulated swimming pools, wading pools, regulated spa pools, or other recreational water features.

(Ord. No. 46-592 § 1 (part))

Sec. 7.72.150. Violation of personal regulations.

Any person willfully violating the personal regulations contained in Section 7.72.140 shall be deemed guilty of a misdemeanor.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.160. Daily records.

The owner, lessee or manager of each regulated swimming pool, wading pool, regulated spa pool, or other recreational water feature shall keep a daily record on forms furnished by the health officer. This data shall include disinfectant concentration, pH level, and other measurements specified by the health officer. A copy of the current license for each regulated swimming pool, spa pool, or other recreational water feature shall be kept with the daily records. These records shall be made available to the health officer and shall be maintained on site for a period of at least one year.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.170. Order of closure.

The health officer, because of epidemics or an outbreak of sickness related to a regulated swimming pool, wading pool, regulated spa pool or other recreational water feature, or because of the potential of transmission of disease or sickness through a regulated swimming pool, wading pool, regulated spa pool or other recreational water feature or because of failure to comply with the requirements of this chapter, may as a preventive public health measure, order such regulated swimming pools, wading pools, regulated spa pools, or other recreational water features to be closed and/or sample and test the water for constituents deemed necessary by the health officer of such regulated swimming pools, wading pools, regulated spa pools, or other recreational water features and/or order such modifications of water treatment or operation and use as he or she deems necessary.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.180. Plans and specifications for construction.

No person shall begin construction of a regulated swimming pool, regulated spa pool, wading pool or other recreational water feature or shall substantially alter or reconstruct any regulated swimming pool, regulated spa pool, or other recreational water feature, without first having submitted plans and specifications to the health officer for review, and without receiving a copy of these submitted plans and specifications approved by the health officer. At least two copies of the plans and specifications shall be submitted to the health officer with at least one copy being returned. The plans shall be drawn to scale and accompanied by proper specifications so as to permit a comprehensive, review of the plans,

including the piping and hydraulic details. The plans shall include design drawings and sectional views showing all necessary dimensions of both the pool and surrounding area. The plans shall also include a piping diagram showing all inlets and outlets; filtration, aeration and recirculation systems; water supply and waste water disposal, in sufficient detail, as well as pertinent elevations and data to permit a hydraulic analysis of the system. The specifications shall contain details on all treatment equipment including catalog identification of pumps, chlorinators, chemical feeders, filters, strainers, interceptors, and related equipment. The plans shall also show details on all electrical equipment, decks and steps. The basis of plans review of regulated swimming pools, wading pools and regulated spa pools by the health officer shall be the Proposed Minimum Standards for Public Pools (and Public Spas) published by the National Spa and Pool Institute. The basis of plans review for recreational water features shall be Section 7.72.191 of the city code. Regulated swimming pools, wading pools, regulated spa pools and recreational water features and facilities shall be built in accordance with the plans as approved unless subsequent approval of changes has been given in writing by the health officer.

All parts of the regulated swimming pool, wading pool, regulated spa pool or recreational water feature must be designed, constructed, maintained and operated so there are no slip, trip or fall hazards or other conditions that may pose a safety hazard. If night operation is proposed, at least six foot-candles of light shall be provided to any regulated pool deck and area, the recreational water feature floor and the water feature area. Lighting that may be exposed to the water of such pool or feature shall not exceed fifteen volts, shall be installed in accordance with manufacturer's specifications and be approved for such use by UL or NSF.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.190. Inspection by health officer.

The manager of every regulated swimming pool, regulated spa pool, wading pool or other recreational water feature shall notify the health officer at the time of completion of construction to permit inspection of such regulated structures and equipment prior to being open for use by the public. No regulated swimming pool, regulated spa pool, wading pool or other recreational water feature shall be used by the public until such inspection has been made and full compliance with the requirements of these regulations has been met. The health officer is authorized to conduct additional inspections and obtain such water samples as he or she deems necessary to protect public health and insure continued compliance with all provisions of this chapter and shall have the right of entry at any reasonable hour to all regulated swimming pools, regulated spa pools, wading pools or other recreational water features for this purpose.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.191. Requirements for design and construction of recreational water features.

(1) Waters discharged from all recreational water features such as interactive fountains or spray features shall not pond on the feature floor but shall flow by gravity through a main drain fitting to a below-grade sump or collection system which discharges to a surge tank. Access adequate for service and maintenance shall be provided to the sump and surge tank. A means of vacuuming and completely draining the tank shall be provided. Stairs or a ladder and necessary equipment shall be provided as needed to ensure safe entry into the tank. When an underground sump is utilized an automatic skimmer system shall be provided to adequately remove floating debris from the sump and surge tank system.

(2) The total volume in the surge tank, including all piping, must be a minimum of four thousand gallons. The volume in the surge tank, including all piping, must also be a minimum of three times the flow rate of all attraction pumps and the recirculation pump(s) combined, e.g., if the flow rate of all pumps is two thousand gallons per minute, a volume of at least six thousand gallons would be required. An automatic water level controller shall be provided. An overfill waste line with air gap shall be provided.

(3) All recreational water features shall require a recirculation filter system. The recirculation system must be on a separate loop and not interconnected with the jet spray pump. The filter system shall be capable of filtering and treating the entire water volume of the water feature within thirty minutes. If the surge tank in use exceeds the required minimum volume as stated in subsection (2) of Section 7.72.191, the time the filter system shall be capable of filtering and treating the entire volume of the water feature may be increased proportionately; e.g., if a six thousand gallon tank is required, and a twelve thousand gallon tank is in use, the filtration and treatment time may be increased to within sixty minutes. The filter system shall draft from the lowest portion of the surge tank and return filtered and treated water to the tank via equally spaced inlet fittings. The flow rate through these fittings shall not exceed twenty gallons per minute (gpm).

(4) The suction intake of the jet spray pump in the surge tank must not be located in the immediate vicinity of the suction intake of the recirculation pump. It must be located as close as possible to the recirculation return line inlet fittings.

(5) The feature spray devices must be designed, constructed, and installed so that they do not create a safety hazard. Nozzles that spray from the ground level must be flush with the ground, with openings no greater than one-half inch. Spray devices that extend above the ground must be high enough so they can be clearly seen and are not a trip hazard. The flow rate through the feature nozzles of the water features shall not exceed twenty feet per second, unless justified by the fountain designer and the fountain system manufacturer, and approved by the health officer.

(6) All foggers and jet nozzle sprays that produce finely atomized mists must be connected to a separate potable water source.

(7) Chemical feeders shall be provided and the disinfection feeder shall be capable of feeding 12mg/L of free chlorine to the filter return piping. Automated oxidation reduction potential (ORP) and pH controllers with sensing probes shall be provided to assist in maintaining proper disinfection and pH levels. A separate point-source chlorinator may be required on the jet spray piping if the proper free chlorine residual required in Section 7.72.120 cannot be properly maintained.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.193. Additional requirements for regulated spa pools.

(1) Rooms which contain regulated spa pools shall be provided with adequate air circulation to prevent condensation on the walls.

(2) Spa pools shall have a precaution sign mounted adjacent to the entrance to the spa. The sign shall state the following with clearly legible letters: CAUTION. (1) Elderly persons and those suffering from heart disease, diabetes, high or low blood pressure should not enter the spa. (2) Unsupervised use by children is prohibited. (3) Do not use while under the influence of alcohol, anticoagulants, antihistamines, vasoconstrictors, vasodilators, stimulants, hypnotics, narcotics or tranquilizers. (4) Do not use alone. (5) Observe a reasonable time limit. Long exposures may result in nausea, dizziness or fainting.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.197. Waivers.

The health officer may grant a variance to the requirements of this chapter when alternative methods are available to attain the objectives of this chapter, or the health officer determines that the variance will not adversely affect public health and safety. Individuals aggrieved by any decision of the health officer relative to waivers may appeal to the city council by making a written request for such an appeal to the city clerk within ten days of such decision.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.200. Suspension and revocation of license.

(a) The health officer may, upon ten days written notice, suspend or revoke a license for any of the following reasons:

(1) Violations of this Code with the potential to affect the public health or safety;

(2) Repeated violations of this Code, found in consecutive inspections;

(3) Interference with the regulatory authority in the performance of its duty; or

(4) Continued operation after an order of closure.

(b) Before suspension or revocation, the health officer shall notify the owner, lessee or manager of the regulated swimming pool, wading pool, regulated spa pool or other recreational water feature of the reasons for which such license is subject to suspension or revocation. The license to operate the regulated swimming pool, wading pool, regulated spa pool, or other recreational water feature shall be suspended or revoked at the end of the ten days following service of such notice unless a written request for a hearing is filed with the health officer by the owner, lessee or manager of the regulated swimming pool, wading pool, regulated spa pool, or other recreational water feature within such ten-day period. If no request for hearing is filed within the ten-day period, the suspension or revocation of the license to operate the regulated swimming pool, wading pool, regulated spa pool, or other recreational water feature becomes final.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.201. Service of notice.

A notice provided for in this Code is properly served when it is personally served on the owner, lessee or manager of the regulated swimming pool, wading pool, regulated spa pool or other recreational water feature, or when it is sent by registered or certified mail, return receipt requested, to the last known address of the owner or lessee of the regulated swimming pool, wading pool, regulated spa pool or other recreational water feature. A copy of the notice shall be filed in the records of the health officer.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.202. Hearings and appeals.

The hearing provided for in this Code shall be conducted by the health officer at a time and place he or she designates. The health officer shall make a final finding based upon oral and written evidence presented at the hearing and shall sustain, modify or rescind any notice or order considered in the hearing. A written report of the hearing decision, including the reason(s) for such decision shall be furnished to the owner, lessee or manager of the regulated swimming pool, wading pool, regulated spa pool or other recreational water feature by the health officer within ten days after the hearing. An owner, lessee or manager of a regulated swimming pool, wading pool, regulated spa pool or other recreational water feature dissatisfied with the determination made by the health officer at the hearing may appeal such determination to the city council by filing written notice of such appeal with the city clerk within ten days of notice of the health officer's determination. Such appeal shall be heard by the city council at its next scheduled regular session following the filing of the notice of appeal.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.220. Penalty for violation of provisions of chapter.

Any person violating any of the provisions of this chapter is guilty of a misdemeanor, and upon conviction, shall be punished by a fine not to exceed two thousand five hundred dollars or by imprisonment of not more one year, or by both such fine and imprisonment.
(Ord. No. 46-592 § 1 (part))

Sec. 7.72.230. Severability clause.

Should any section or provision of this chapter for any reason be held void, unconstitutional or invalid, it shall not affect the validity of any other section or provision of this chapter.
(Ord. No. 46-592 § 1 (part))

Title 8

NUISANCES

Ch. 8.01. Generally

Ch. 8.02. Excessive Calls for Police Service at Chronic Nuisance Properties

CHAPTER 8.01. GENERALLY

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Sec. 8.01.010. Purpose.

The purpose of the Neighborhood Nuisance Enforcement Code is to promote the health, safety and welfare of the residents of the City of Wichita, Kansas, and to protect neighborhoods against physical, visual and economic deterioration. To that end, the city intends this Code to prohibit nuisances that:

(1) Contribute to or cause injury or endangerment to the health, safety or welfare of others;

(2) Are contrary to community standards of decency;

(3) Are offensive to the senses;

(4) Obstruct the free use of property so as to essentially interfere with the comfortable enjoyment of life and property by the public; or

(5) Damage or contribute to the deterioration of property or improvements in the community.

(Ord. No. 45-319 § 1; Ord. No. 47-894, § 1, 5-20-08; Ord. No. 52-860, § 1, 12-16-25)

Sec. 8.01.020. Enforcement of provisions of Code.

The Metropolitan Area Building and Construction Department of the City of Wichita, and its authorized representatives shall be responsible for the enforcement of all provisions of this Code.
(Ord. No. 45-319 § 2; Ord. No. 52-860, § 2, 12-16-25)

Sec. 8.01.030. Inspection of property.

(1) The Director of MABCD or his/her designees are hereby authorized and directed to make inspections to determine the condition of residential property located within the city, in order that he or she may perform his/her duty of safeguarding, the welfare and safety of the general public and in order that he/she may ascertain that property as set forth in this title are properly maintained.

(2) The Director of MABCD or his/her designees shall not, in the discharge of his/her duties, thereby render himself/herself liable personally. Pursuant to Section 2.62.130 of the Code of the City of Wichita, any suit brought against an officer or employee of the city because of such act performed by him or her in the enforcement of any of the provisions of this title shall be defended by the department of law until the final termination of the proceedings therein.
(Ord. No. 45-319 § 3; Ord. No. 52-860, § 3, 12-16-25)

Sec. 8.01.040. Violations not exclusive.

Violations of this Code are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Code in no way limits the penalties, actions or abatement procedures which may be taken by the city for a violation of this title which is also a violation of any other ordinance of the city or statute of the State of Kansas.
(Ord. No. 45-319 § 4; Ord. No. 47-894, § 2, 5-20-08)

Sec. 8.01.050. Definitions.

"Abandoned vehicle" means a vehicle to which the last registered owner thereof has relinquished

all further dominion and control of a vehicle that has remained on private property without the consent of the owner or person in control of the property for more than forty-eight hours.

"Accessory structure" means a structure, the use of which is incidental to that of the main building and which is attached thereto or located on the same premises.

"*Apartment*" means a residential building designed or used for three or more dwelling units, including hallways, laundry facilities, common use areas and means of ingress and egress to such dwelling or dwelling units.

"*Basement*" means that portion of a dwelling between floor and ceiling which is partly below and partly above grade.

"City" means Wichita, Sedgwick County, Kansas.

"City clerk" means the duly appointed City Clerk of the City of Wichita, or his/her authorized representative.

"Control measures" means any chemical, structural, physical procedures or processes designed to eradicate, minimize, prevent or otherwise limit the reproduction and/or infestation of insects and rodents detrimental to public health.

"Dilapidation, deterioration or *disrepair"* means the condition or appearance of a building characterized by holes, breaks, rot, crumbling, cracking, peeling, rusting or other evidence of physical decay or neglect, excessive use or lack of maintenance.

"Director" means the Director of Metropolitan Area Building & Construction Department (MABCD) or their designees.

"Dwelling" means any building, manufactured home or mobile home which is wholly or partly used or intended to be used for living or sleeping by human occupants.

"Extermination" means the control and elimination of insects, rodents or other pests and termites by eliminating their harborage places; by removing or making inaccessible materials that may serve as their food; by poisoning, spraying, fumigating, trapping or by any other recognized and approved pest elimination method.

"Human excreta" means the body discharge (both feces and urine) of humans.

"Infestation" means the presence, within a structure, of any insects, rodents or other pests which may be harmful to the health or safety of the occupants or the soundness of the structure.

"Inoperable" means a condition of being junked, wrecked, wholly or partially dismantled, discarded, abandoned or unable to perform the functions or purposes for which it was originally constructed; or

1. The absence of a current valid registration plate upon such vehicle permitting that vehicle to be operated on the public streets and highways of the State of Kansas, unless the vehicle was manufactured or modified solely for non-highway use and a non-highway vehicle title has been issued solely because the vehicle was not manufactured for street use; or
2. The absence of one or more of the parts of the vehicle necessary for the lawful operation of the vehicle on the public streets and highways, unless the vehicle has a non-highway title issued solely because the vehicle was not manufactured for street use; or
3. The placement of the vehicle or parts thereof upon jacks, blocks, chains or other supports; or
4. The replacement of materials or property within the vehicle which would preclude the lawful operation of the vehicle upon streets or highways.

"Insects" means the classes Insecta and Arachnida of the phylum Arthropoda including flies, mosquitoes, fleas, lice, cockroaches, bedbugs, plant bugs, mites, ticks, spiders, and scorpions.

"Junk vehicle" means any vehicle which is wrecked, scrapped, ruined, partially dismantled, inoperative, abandoned and/or without a valid automobile license tag.

"Multifamily dwelling" means a structure containing two, three or four dwelling units.

"Noxious weeds" means plants and other vegetation defined by the Department of Agriculture as "noxious weeds" pursuant to K.S.A. 2-1314 and amendments thereto.

"Nuisance" means any condition which is injurious to health, or is a potential health hazard, or is indecent, or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property by an entire community or neighborhood, or by a majority of persons subjected to the condition, such condition being no less a nuisance because the extent of the annoyance or damage inflicted is unequal.

"Occupant" means any person, with or without the knowledge or consent of the owner, who has actual possession of a dwelling unit or rooming unit and who is living, sleeping, cooking or eating within the dwelling unit or rooming unit.

"Operator" means any person who has charge, care or control of a building, or part thereof, with or without the knowledge or consent of the owner, in which dwelling units or rooming units are let.

"Owner" means any person who is a holder of any legal or equitable interest in the premises, and alone or jointly or severally with others:

(a) Has record legal title to any dwelling or dwelling unit with or without accompanying actual possession thereof;

(b) Has charge, care or control of any dwelling or dwelling unit which may include all persons who have an interest in a structure and any who are in possession or control thereof as owner or agent of the owner, contract purchaser, or as executor, executrix, administrator, administratrix, trustee or guardian of the estate of the owner; or

(c) Collects rent for a dwelling unit on behalf of or in place of the owner; Any such person representing the owner shall be bound to comply with the provisions of this chapter to the same extent as if he/she were the owner, and upon failure to comply therewith shall be subject to the same penalties set out.

In the absence of substantial evidence to the contrary, records of the Sedgwick County Clerk's Office, Register of Deeds, certified copies of court records or judgments of any court, copies of lease agreements, contracts for deed, mortgages, tax records, rental agreements and other financial documents related to the property shall be conclusive evidence of the ownership of the property.

"Person" means any individual, firm, association, company, syndicate, partnership, or other legal entity, or a natural person for the purposes of the occupancy standards hereof, a natural person or a legal entity such as, but not limited to, an individual, firm, associate, joint stock company, syndicate, partnership, or corporation.

"Planned Sustainable Landscape" means a planned, intentional, and maintained planting of primarily native plants, grasses, vines, shrubs or trees, including but not limited to rain gardens, meadow vegetation, and ornamental plants. Planned sustainable landscapes do not include turf grass lawns left unattended for the purpose of returning to a natural state.

"Premises" means a lot, plot or parcel of land including structures located thereon. Premises shall also mean any lot, plot or parcel of land without any structures thereon.

"Property" means any real property within the city which is not a street or highway.

"Refuse" means all putrescible and nonputrescible waste materials such as trash, debris, garbage, tree trimmings, grass cuttings, dead animals and solid industrial wastes but shall not include human or animal excrements.

"Representative" shall mean any person or entity listed in the Sedgwick County, Kansas appraiser's office or treasurer's office for the purpose of paying taxes; a registered agent with the Kansas Secretary of State's office for corporate or partnership ownership; an agent or manager directed by the property owner, estate, or court

order to represent the interests of the property or to otherwise control activities on the real property; or a corporate officer.

"Residential bulky waste" means items of solid waste normally produced by persons in their dwellings or on their dwelling premises that are too large or too heavy to be placed in a thirty to thirty-five gallon container and includes household appliances, furniture, plumbing fixtures, playground equipment, yard appliances and equipment and similar materials but does not include vehicle major component parts, hazardous waste, demolition and construction waste or tree waste.

"Rodents" means the so-called domestic rats, Rattus norvegicus, and rattus rattus, and domestic mice, Mus musculus and wild native rodents associated with the transmission of disease or causing nuisance to man or other animals.

"Safe and sanitary" for purposes of this chapter shall mean free from conditions that are dangerous or could cause injury and free from elements such as filth or bacteria that endanger health.

"Salvage material" means materials of some value that are obtained from the disassembly of various kinds of machinery, mechanical appliance, and/or the demolition of building or structures.

"Single-family dwelling" means a structure containing one dwelling unit.

"Solid waste collector" means any governmental agency or any person collecting, transporting and disposing of a solid waste, subject to the conditions of this chapter.

"Storage" means the keeping outside of an enclosed building for more than seventy-two consecutive hours.

"Street" or *"highway"* means the entire width between property lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic. Where the word 'highway' or the word 'street' is used in this title, it means street, avenue, boulevard, thoroughfare, traffic way, alley and any other public way for vehicular travel by whatever name unless the context clearly indicates otherwise.

"Tenant" shall mean any person who has a severable or non-severable interest in the real property either by oral or written lease or covenant, or by other methods of conveying a limited interest in such lands; or any person who occupies or has possession of such real property.

"Tree waste" means all tree or shrub waste including tree stumps, but does not include leaves, tree trimmings or branches tied in bundles not more than four feet in length and not more than eighteen inches in diameter placed beside the solid waste storage containers, vegetation pruning or wood chips placed in such container, fireplace wood or other wood fuel.

"Unsecured structure" means: Any building or structure, including but not limited to vacant houses or other residential structures, garages, sheds, barns, tool houses and vacant commercial structures that are:

(1) Readily open to entry by unauthorized persons without the consent of the owner or agent of the owner; or

(2) Inhabited, occupied or used without the consent of the owner or agent of the owner.

"Vehicle" means any automobile, truck, tractor, farm machinery, motorcycle, motorized bicycle or other device designed of used for transportation of persons or property which, as originally built, contained an engine, regardless of whether it contains an engine at any other time.

"Visible" means that the shape of a vehicle is recognizable as a vehicle even if it is covered.

"Weeds" means any of the following:

1. Noxious weeds;

2. Invasive plants, brush and woody vines when not properly controlled;

3. Plants which are likely to cause environmental harm or harm to human health including, but not limited to, plants which are deemed a fire hazard and plants which harbor animal pests; or

4. Lawn grasses and other vegetation more than twelve (12) inches in height.

(Ord. No. 45-319 § 5; Ord. No. 47-894, § 3, 5-20-08; Ord. No. 52-860, § 4, 12-16-25)

Sec. 8.01.052. Responsibility to abate nuisances.

(a) It is unlawful for any property owner, representative, tenant or other such person with control, occupancy, or possession of real property to allow or maintain a nuisance, as defined by this Code, on any lot or parcel within the City, including sidewalks, alleys, easements and right-of-way.

(b) The property owner, representative, tenant, or other such person with control, occupancy, or possession of real property shall be responsible for the abatement of any nuisance.

(Ord. No. 47-894, § 4, 5-20-08)

Sec. 8.01.055. Nuisances.

It is unlawful to maintain or to permit to exist any nuisance as herein described. Every successor owner of property who, after proper notice of such nuisance, neglects to abate a continuing nuisance caused by a former owner or occupant, shall be responsible for such nuisance as provided for by this chapter. The following conditions or materials are declared to be injurious to the health and well being of citizens of the city and are declared to be nuisances together with those conditions not herein enumerated by coming under the definition of nuisance as described in Section 8.01.050.

(1) Open basement structures, excavations, storm cellars, or other excavations that create hazards to any persons, collect water or produce mosquitoes except those excavations authorized by a current building permit and those excavations in use as part of occupied premises if maintained with adequate drainage and fencing consisting of material recognized for the purpose and having openings not larger than two inches in the least dimension;

(2) Growth of weeds, vines or unwanted, uncultivated, or unkempt vegetation that are over twelve inches in length or height on any premises and in streets and alleys in front of and abutting on any premises in the city;

(3) Refuse not stored or disposed of as provided for by Section 8.01.110 of the Code of the City of Wichita;

(4) Salvage material, junk, appliances or other materials on residential premises or vacant lots in residential areas except as provided for by Section 8.01.100 of the Code of the City of Wichita;

(5) Minor auxiliary or accessory buildings or structures such as privies, sheds, barns, garages, tool houses and vacant houses and commercial structures which have become so dilapidated and deteriorated as to be a potential accident hazard, rat harborage, attractive nuisance to children or to be offensive to the senses;

(6) Interior furniture stored, maintained or used on the exterior of a dwelling or dwelling unit which is so dilapidated and deteriorated as to be a potential accident hazard, a harborage for insects, rodents or vermin or which emits offensive odors.

(7) Dead, or diseased, or broken trees or branches thereof, which have become dangerous, or which are likely to become dangerous to the public safety, or to the occupants of or property on private premises.

(8) Unsecured structures.

(9) Inoperable or junk vehicles as prohibited by Section 8.01.140 of the Code of the City of Wichita.

(10) Tree waste, as prohibited by Section 8.01.130 of the Code of the City of Wichita.

(Ord. No. 47-894, § 5, 5-20-08)

Sec. 8.01.060. Notice to abate.

(a) Whenever the Director determines that there has been a violation of any provisions of this Code, unless other notice requirements are set forth by the Code of the City of Wichita,

he/she shall give notice to abate such violation to the person or persons responsible therefore, as herein provided.

(b) The notice of abatement shall state:

(1) A common or legal description of the property, or both;

(2) The nature of the violation, including relevant ordinances, with sufficient information that would reasonably allow the recipient to determine the nature of the violation to allow for self-abatement;

(3) That the condition creating the violation shall be abated within a designated time period, not exceeding 30 days from the date of the notice, provided that an extension of one 10-day time period shall be granted if the owner or agent of the owner of the property demonstrates that due diligence is being exercised in abating the nuisance;

(4) That the recipient, upon written request, may obtain a hearing before the Director, provided such request is received by the Director of MABCD prior to the expiration of the designated waiting period;

(5) That failure to comply with the notice of abatement shall result in the City abating the violation with the assessment of costs made against the property or by filing for judgment against the recipient;

(6) That failure to pay such assessments within 30 days of the notice of costs shall result in the filing of a tax lien against the property; or the filing for judgment against the recipient, or both;

(7) That such violations are subject to criminal prosecution.

(c) Except as provided by subsection (d), the notice of abatement shall be served on the owner or agent of such property by certified mail, return receipt requested, or by personal service, or if the same is unoccupied and the owner is a nonresident, then by mailing a notice of certified mail, return receipt requested, to the last known address of the owner.

(d) If the owner or agent of the owner of the property has failed to accept delivery or otherwise failed to effectuate receipt of an order sent pursuant to this Section during the preceding 24-month period, the City may provide notice of the issuance of any further orders to abate or remove a nuisance from such property in the manner provided by subsection (c) or as provided in this subsection. The City may provide notice of the order by such methods including, but not limited to, door hangers, conspicuously posting notice of such order on the property, personal notification, telephone communication or first-class mail. If the property is unoccupied and the owner is a nonresident, notice provided by this section shall be given by telephone communication or first-class mail.

(e) If the notice cannot be conveniently served as set forth in Subsections (b), (c) and (d) of this section, service of the notice is to be made upon such person or persons by at least one publication in the official newspaper of the City of Wichita, such publication to contain the conditions and reasons of the notice.

(f) If the recipient of the notice of abatement makes a written request for hearing within the waiting period, then the City shall schedule a hearing within ten business days before the Director. The Director shall receive evidence, review the investigation, and prepare a written order. The order shall be sent by certified mail to all relevant parties within 10 days of the hearing, unless otherwise stated at the hearing, and prior to the City taking any action to abate the violation. The order shall describe the relevant facts relied upon, state the specific Code provisions being relied upon should a violation be found, and state any such other stipulations, methods of abatement, or orders as deemed necessary by the hearing officer.

(g) Any motor vehicle removed and abated from private property pursuant to this chapter shall be disposed of as provided by K.S.A. 8-1002 et seq., as amended.

(h) Owners or persons entitled to the lawful custody of impounded or abandoned motor vehicles who wish to contest the validity of the motor

vehicle tow may request a hearing for such purposes, pursuant to Section 11.97.040 of the Code of the City of Wichita.

(i) The Director determines that a violation of this Act exists, he or she may issue a Notice to Appear in Municipal Court for such violation. No other procedures or notice are required as a prerequisite to the issuance of a Notice to Appear. (Ord. No. 45-319 § 6; Ord. No. 47-894, § 6, 5-20-08; Ord. No. 52-860, § 5, 12-16-25)

Sec. 8.01.065. Abatement of nuisance by city; notice of costs; assessment and collection.

(a) If the recipient of the notice of abatement fails to comply with the notice within the period of time designated in the notice, or fails to comply with the notice after a hearing on the matter, then the City may go onto the property to abate the violation in a reasonable manner. The City shall not be responsible for damage to property due to reasonable methods of gaining entrance onto the property or for damages to property in the reasonable exercise of its duty to the public to abate the violations. The City may use its own employees or contract for services to abate the violations of the Code.

(b) If the City takes action to abate the violation, it shall provide a Notice of Costs to the property owner, representative, or tenant. The Notice of Costs shall be delivered by certified mail, return receipt requested, at the last known mailing address; or if the property is vacant or unoccupied, the Notice of Costs shall also be posted on the property in a reasonable manner. The recipient shall have 30 days from the date of the Notice to make full payment. The Notice of Cost shall state:

(1) The common or legal description of the property, or both;

(2) The nature of the violation, including relevant ordinances;

(3) The nature of the work performed to abate the violation;

(4) The costs incurred for the abatement of the violations in either a lump sum or in itemized form;

(5) That the notice is a demand for payment within thirty days from the date of notice;

(6) That failure to pay the entire amount within thirty days shall allow the City to file a tax lien against the property or to pursue litigation for the recovery of the costs, or both;

(7) That such additional remedies to recover costs shall include additional amounts including additional administrative costs, attorneys' fees when applicable, and interest; and

(8) That payment shall be made by check or money order made payable to the Metropolitan Area Building and Construction Department with no post-dating of the check, and sent to the address as stated within the notice with a written indication of the purpose for the payment and the address of the property where the violations occurred. Partial payments will not be accepted and shall be considered as non-payments.

(c) If the payment of costs is not made within the thirty-day period, the City may levy a special assessment for such costs against the lot or piece of land. The City Clerk at the time of certifying other City taxes to the County Clerk shall certify the aforesaid costs, and the County Clerk shall extend the same on the tax roll of the county against the lot or parcel of ground, and it shall be collected by the county treasurer and paid to the City as other City taxes are collected and paid. Provided further, the City may collect the costs in the manner provided at K.S.A. 12-1,115, as amended, by bringing an action in the appropriate court as a personal debt. The City may pursue both assessment and collection at the same time until the full cost, including applicable interests, court costs, attorneys' fees, and administrative costs have been paid in full.
(Ord. No. 47-894, § 7, 5-20-08; Ord. No. 52-860, § 6, 12-16-25)

Sec. 8.01.070. Insects, rodents and other vermin.

(a) Every owner or tenant of a single-family dwelling shall be responsible for the extermination of any insects or rodents, other vermin

therein or on the premises. Wherever two or more units are in the same building, the owner or operator of the building shall be responsible for such extermination. If the infestation is caused primarily by improper housekeeping, it shall be the joint responsibility of the owner and occupants to effect such extermination.

(b) All buildings shall be maintained free of conditions that encourage or permit any necessary breeding of insects that are annoying or dangerous to residents of the city. Exterior windows and doors used for ventilation of all dwellings shall be screened in a manner adequate to exclude insects.
(Ord. No. 45-319 § 7; Ord. No. 47-894, § 8, 5-20-08)

Sec. 8.01.080. Reserved.

Editor's note—Ord. No. 47-894, adopted May 20, 2008, repealed § 8.01.080 in its entirety. Formerly said section pertained to nuisance lighting prohibited and derived from Ord. No. 45-319 § 8.

Sec. 8.01.090. Reserved.

Editor's note—Ord. No. 47-894, adopted May 20, 2008, repealed § 8.01.080 in its entirety. Formerly said section pertained to unauthorized parking in residential districts and derived from Ord. No. 45-319 § 9.

Sec. 8.01.100. Outdoor storage prohibited.

(a) No owner or occupant of any dwelling shall store, use or maintain on the exterior or said dwelling, interior furniture which is so dilapidated or deteriorated as to be a potential accident hazard, a harborage for insects, rodents or vermin, or which emits offense odors.

(b) No owner or occupant of any dwelling shall store salvage or junk on any residential premises or on vacant lots in residential areas.

(c) The owner and/or occupant shall keep premises free of litter, refuse, salvage material and junk; provided, that building materials to be used with ninety days for construction on the premises, if properly authorized by a current building permit, may be kept if stored at least eighteen inches off the ground and not closer than forty-eight inches to a wall or fence, provided the Director may approve a lesser distance.
(Ord. No. 45-319 § 10; Ord. No. 52-860, § 7, 12-16-25)

Sec. 8.01.110. Trash refuse and debris.

Storage.

(a) Single-family dwellings. The occupant of each single-family dwelling shall provide sufficient containers to store all residential trash accumulated on such premises between weekly collection periods. The containers shall be of such material and design as approved by the Director and shall consist of thirty to thirty-five gallon plastic or metal containers with or without plastic bag liners or such other containers as approved by the Director. Plastic bags may be used for yard wastes. Subject to the approval of the Director, seventy to one hundred-eight gallon containers on wheels with an attached lid which can be emptied mechanically into the solid waste collection vehicle may be used with the permission of the solid waste collector, and if used shall be placed by the occupant of the dwelling, on the day of collection at a location designated by the solid waste collector.

All such residential trash produced on each single-family dwelling premises shall be stored in the containers on the premises where produced such thirty to thirty-five gallon containers located, on the day of collection, for convenient access by the solid waste collector and limited to seventy-five pounds maximum weight per container. All such residential trash containers shall be watertight, rodent proof and fly proof with lids or closures maintained in place.

(b) Multifamily dwellings. The owner of each occupied multifamily dwelling shall provide, for the use of the occupants, containers as required for single-family dwellings of sufficient quantity to contain all residential trash produced on the premises between collection periods or in lieu of such containers shall provide a containerized unit(s) of sufficient size to contain all residential trash produced on the premises between collection periods. The owner of each multifamily

dwelling shall be responsible for the trash being in the containers and the condition and maintenance of the containers.

(c) Apartments and manufactured home parks. The owner of each apartment and each mobile home park shall provide sufficient containers (no more than ten thirty to thirty-five gallon containers placed on any one location or containerized units to contain all of the residential trash produced by the occupants of the premises between collection periods. Mobile home parks may provide individual thirty to thirty-five gallon containers for each mobile home and in such case shall provide weekly collection for each mobile home.

The owner shall be responsible for the trash being in the containers and for the condition and maintenance of the containers.

(d) Residential bulky waste may be stored on the premises of single-family dwellings, multifamily dwellings, apartments and mobile home parks outside of an enclosed building for no longer than seven days. The occupant of each occupied single-family dwelling and the owners of multifamily dwellings, apartments, mobile home parks and unoccupied single-family dwellings are responsible to arrange for the removal and collection of all residential bulky waste within seven days after it has been placed on the premises outside of an enclosed building.
(Ord. No. 45-319 § 11; Ord. No. 52-860, § 8, 12-16-25)

Sec. 8.01.120. Tree waste.

(1) *Storage.* Tree waste may be stored outside a building no longer than seven days.

(2) *Collection, transportation and disposal.* All tree waste shall be collected by a solid waste collector utilizing a solid waste collection vehicle licensed by the city for such collection service and shall be disposed of at a facility provided by the city or at such other facility that is operated in accordance with the laws of the state; provided, that an individual may collect and transport tree waste produced on residential premises which are occupied by such individual so long as such individual secures such tree waste with chains, ropes or otherwise and accomplishes such transportation to such facility described above for disposal without littering and pays the prescribed disposal fee at such facility.
(Ord. No. 45-319 § 12)

Sec. 8.01.130. Weeds or other vegetation as a nuisance.

(a) Uncultivated or unkept grass, weeds, vines or other vegetation over twelve inches in height or length upon any lot or piece of land or upon the streets and alleys in front of and abutting is unlawful for the owner of any such lot or piece of land to permit uncultivated or unkept grass, weeds or other vegetation in excess of twelve inches in height or length to exist and remain on said owner's land or upon the streets and alleys in front of and abutting upon any such lot or piece of land owned by said owner.

(b) Upon a determination by the Director, that a nuisance such as is described in subsection (a) of this section exists and such nuisance has not been abated following a notice of violation pursuant to Section 8.01.060, such officer shall proceed to abate the nuisance.

(c) In lieu of giving notice as provided by Section 8.01.060 of the Code of the City of Wichita, the Director, for the initial notice or any subsequent notice, may send a one-time yearly written notification by mail or personal service. Such notice shall include the same information required above. In addition, such notice shall include a statement that no further notice shall be given prior to removal of weeds. If such a one-time notice is sent pursuant to this subsection, no additional notices are required to be sent prior to removal of weeds for one calendar year from the date of that notice.

(d) Exception. The provisions of this Section shall not apply to:

Planned sustainable landscape areas that meet the following criteria:

1. All landscape material is maintained in a healthy condition and managed so as not to include unintended vegetation;

2. The planned sustainable landscape does not contain invasive plants, brush, or

woody vines which are not properly controlled; turf grass; or any noxious weeds;

3. Landscape boundaries are clearly defined through edging or containment, and vegetation is not encroaching on a neighboring property or public right-of-way; and

4. The planned sustainable landscape meets the following setback requirements:

   (i) Three (3) feet from side and/or rear lot lines running the length of the property;

   (ii) Three (3) feed from any public street, sidewalk or alleyway; and

   (iii) No setback is required on side or rear lot lines where the defined landscape areas abuts another similar private or public landscape area, or if a solid fence at least four (4) feet in height is installed along the lot line adjoining the planned landscape.

(Ord. No. 45-319 § 13; Ord. No. 47-894, § 9, 5-20-08; Ord. No. 52-860, § 9, 12-16-25)

Sec. 8.01.135. Public notice of act.

The city clerk shall cause a general public notice to be placed in the official city newspaper once each year during the month of April. The notice shall read substantially as follows:

PUBLIC NOTICE

CITY OF WICHITA, KANSAS

WEED AND VEGETATION ENFORCEMENT

Notice is hereby given to all property owners, representatives and tenants of property located within the city limits of Wichita, Kansas, that it is unlawful to allow the excessive growth of weeds, grass, and uncultivated plants. Excessive growth means more than twelve inches in height. Violators will be subject to prosecution and assessment of costs for abatement of such violations. The weeds abatement ordinances are located in. Chapters 7.40 and 8.01 of the Wichita Municipal Code. Members of the public are welcome to review these laws during regular business hours at the Wichita City Hall, 455 N. Main, Wichita, Kansas.
(Ord. No. 47-894, § 10, 5-20-08)

Sec. 8.01.140. Inoperable or abandoned vehicles.

No person shall park, store, leave or permit the parking, storing or leaving of any vehicle which is in an abandoned, wrecked, dismantled, inoperable, rusted, junked, or partially dismantled condition upon any private property within the city. The presence of an abandoned, wrecked, dismantled, inoperable, rusted, junked or partially dismantled vehicle, or parts thereof, on private property is declared a public nuisance which may be abated as such in accordance with the provisions of this chapter.

Any one of the following conditions shall be deemed prima facie evidence that a vehicle is inoperable:

(1) The absence of an effective registration plate upon such vehicle;

(2) The placement of the vehicle or parts thereof upon jacks, blocks, chains or other supports;

(3) The absence or condition of disrepair of one or more parts of the vehicle necessary for the lawful operation of the vehicle upon the streets and highways, including properly inflated tires; and

(4) The placement of materials or property within the vehicle which would preclude the lawful operation of the vehicle upon the streets or highways.

This section shall not apply to any vehicle enclosed within a building on private property or to any vehicle held in connection with a business enterprise, lawfully licensed by the city and properly operated in an appropriate business zone, pursuant to the zoning laws of the city.
(Ord. No. 45-319 § 14)

Sec. 8.01.150. Reserved.

Editor's note—Ord. No. 47-894, adopted May 20, 2008, repealed § 8.01.150 in its entirety. Formerly said section pertained to notice and derived from Ord. No. 45-319 § 15.

Sec. 8.01.160. Removal.

Editor's note—Ord. No. 47-894, adopted May 20, 2008, repealed § 8.01.160 in its entirety. Formerly said section pertained to removal and derived from Ord. No. 45-319 § 16.

Sec. 8.01.170. Liability of owner or occupant.

Upon the failure of the owner or occupant of property on which vehicles have been removed by the city to pay the unrecovered expenses incurred by the city in such removal, a lien shall be placed upon the property for the amount of such expenses.
(Ord. No. 45-319 § 17)

Sec. 8.01.175. Hearings—Right of person aggrieved by service of abatement notices.

(a) Any person affected by any notice which has been issued in connection with the abatement of any nuisance as defined by this chapter, or of any rule or regulation adopted pursuant thereto, who is aggrieved thereby, and who believes the same to be contrary to the policies or regulations of the city, may request and shall be granted an informal hearing on the matter before the Director or his designated representative; provided that such person shall file in the office of the Director a written petition requesting such informal hearing and setting forth a brief statement of the grounds therefor, within ten days after the day notice was served. Failure to make a timely request for a hearing shall constitute a waiver of the person's right to contest the order of abatement. Upon receipt of such petition, the Director shall set a time and place for such informal hearing and shall give the petitioner written notice thereof. At such informal hearing, the petitioner shall be given an opportunity to be heard and to show why such notice should be modified or withdrawn. The informal hearing shall be commenced not later than ten days after the day on which the petition was filed; provided that upon application of the petitioner, the Director or his/her designee may postpone the date of the informal hearing for a reasonable time beyond such ten day period, if in his/her judgment the petitioner has submitted a good and sufficient reason for such postponement.

(b) After such informal hearing as provided for in subsection (a), the Director or his designated representative may sustain, modify or withdraw the notice, depending upon his findings as to whether the provisions of this chapter and of the rules and regulations adopted pursuant thereto have been complied with. If the Director sustains or modifies such notice, it shall be deemed to be an order.

(c) Any person affected by a determination of the Director may appeal such determination to the municipal court. Such appeal shall be taken within ten days of the issuance of the order by the Director.

(d) An appeal to the municipal court shall be a de novo administrative hearing from which further appeal may be taken to the district court.
(Ord. No. 47-894, § 11; Ord. No. 52-860, § 10, 12-16-25)

Sec. 8.01.180. Violation is a misdemeanor.

(a) Any person convicted in the Municipal Court of violating any provisions of this chapter, shall be deemed guilty of a misdemeanor and shall be punished by the following:

(1) Upon a first conviction, a fine of not more than one thousand dollars;

(2) Upon a second conviction, a fine of not less than two hundred dollars nor more than one thousand dollars;

(3) Upon a third conviction, a fine of not less than five hundred dollars nor more than two thousand dollars; and

(4) Upon a fourth or subsequent conviction, a fine of not less than one thousand dollars nor more than two thousand five hundred dollars.

In addition to the preceding fines such person may be punished by a term of imprisonment which shall not exceed twelve months, or by both such fines and imprisonment.

(b) The imposition of the fines established herein shall be mandatory and the court shall not waive, remit, suspend, parole or otherwise excuse the payment thereof except that the court may order that the defendant perform com-

munity service specified by the court but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by Section 1.04.210(e) and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed herein.

(c) In determining the appropriate fine or term of imprisonment for any violation of this chapter, the Court in utilizing its discretion to determine the appropriate sentence shall consider all relevant facts and circumstances regarding the offense. Such considerations include:

1. The nature, seriousness, and duration of the violation(s);
2. The degree of risk or actual harm posed by the violation(s) to occupants, tenants, neighbors or the public;
3. The impact of the conduct on occupants, tenants or the public health and safety of citizens or neighbors;
4. The resources of the defendant, including the size, scale, and profitability of the defendant's rental operations (if applicable), as well as the feasibility and cost of abatement in light of the defendant's available resources;
5. The actions of the defendant to make timely and reasonable efforts to correct the violation(s);
6. The actions of the defendant to cooperate with city officials;
7. The presence or absence of other prior violations, warnings, or enforcement actions;
8. Recommendations of the code official; and
9. Any mitigating circumstances including the mental capacity of the defendant.

Consideration of these factors is intended to ensure that penalties are proportionate to the circumstances of each case, allowing the Court to impose enhanced sanctions against chronic or egregious offenders while avoiding undue hardship on responsible property owners who make genuine efforts to maintain safe and clean premises and habitable housing.

(d) For the purposes of determining whether a conviction is a first or subsequent conviction in sentencing under this section:

(1) Conviction includes being convicted of a violation of this section, and it is irrelevant whether an offense occurred before or after conviction for a previous offense.

(2) Conviction includes being convicted of a violation of this chapter or entering into a diversion agreement in lieu of further criminal proceedings on a complaint alleging a violation of this section.

(3) Any convictions occurring during the five years prior to the date of the occurrence shall be taken into account when determining the sentence to be imposed.

(4) Prior convictions on any property, dwelling or dwelling unit owned, managed or operated by the same individual or entity, or a prior entity owned, operated or controlled by the defendant shall be considered as a prior conviction for sentencing purposes.

(e) Each day that any violation to this chapter occurs, it shall constitute a separate offense and shall be punishable hereinafter as a separate violation.

(f) In addition, the Municipal Court Judge may issue an order that any nuisance be abated, with costs being assessed against the Defendant.

(g) Further, the Court may order that the property be re-inspected by the Director to insure that the property has been brought into compliance with the provisions of this Code. If the owner or occupant denies entry, the Director shall take all necessary and prudent actions to obtain an administrative warrant to inspect such premises.

(Ord. No. 45-319 § 18; Ord. No. 47-894, § 12, 5-20-08; Ord. No. 52-860, § 11, 12-16-25)

CHAPTER 8.02. EXCESSIVE CALLS FOR POLICE SERVICE AT CHRONIC NUISANCE PROPERTIES

Sec. 8.02.010. Title.
Sec. 8.02.020. Purpose.
Sec. 8.02.030. Violations not exclusive.
Sec. 8.02.040. Definitions.
Sec. 8.02.050. Chronic Nuisance Property Prohibited.
Sec. 8.02.060. Notice of pre-chronic nuisance.
Sec. 8.02.070. Nuisance abatement conference.
Sec. 8.02.080. Nuisance Abatement Plan.
Sec. 8.02.090. Assessment of Police Service Costs.
Sec. 8.02.100. Appeal Rights of Responsible Party.
Sec. 8.02.110. Civil Remedies.
Sec. 8.02.120. Reserved.

Sec. 8.02.010. Title.

Excessive Calls for Police Service at Chronic Nuisance Properties.
(Ord. No. 50-357, § 1, 12-6-16)

Sec. 8.02.020. Purpose.

The purpose of this Chapter is to promote the health, safety and welfare of the residents of the City of Wichita, Kansas to protect neighborhoods from chronic incidents of violence, criminal conduct and other repetitive behaviors which are offensive to residents and which damage or contribute to the deterioration of property or improvements in the community. The procedures set forth below are intended to hold property owners, tenants and other responsible parties accountable for chronic and repeated criminal violations occurring on such property which result in repeated calls for police service.
(Ord. No. 50-357, § 2, 12-6-16)

Sec. 8.02.030. Violations not exclusive.

The provisions of this Chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This Chapter in no way limits the penalties, actions or abatement procedures which may be taken by the city for a violation of any ordinance of the city or statute of the State of Kansas.
(Ord. No. 50-357, § 3, 12-6-16)

Sec. 8.02.040. Definitions.

The following words and phrases, whenever used in this Chapter shall be defined as follows:

A. "Chief of Police" means the Chief of Police of the City of Wichita or his or her designee.

B. "Chronic Nuisance Property" means a dwelling, house, duplex, mobile home, building, shed, garage, entertainment establishment, drinking establishment, hotel, motel, public venues, lot, or any property, and the area immediately adjacent to such structures or buildings which is under the ownership or control of the Responsible Party on which three or more Trigger Events have occurred within a six month period.

C. "Code enforcement services" and "code enforcement" means City of Wichita or Sedgwick County employees who enforce condition and property codes, including Wichita Fire Department, Public Works and Utilities, Metropolitan Area Building and Construction Department, and Animal Services.

D. "Crime of Violence" means an offense, felony or misdemeanor, that has as one of its essential elements the use, attempted use, or threatened use of physical force against the person or property of another, or an offense that by its very nature involves a substantial risk that such physical force may be used in the course of committing the offense. Such offenses shall not include crimes of domestic violence.

E. "Documented Incident" means an incident where emergency, law enforcement or code enforcement services were called or responded to an incident or otherwise addressed an ongoing problem, other than domestic violence calls, that caused them to gather information and produce written documentation regarding the incident. This includes instances where no criminal charges are brought by the appropriate

prosecuting agency and no criminal convictions were obtained as a result of the incident.

F. "Nuisance Abatement Conference" means a meeting of which the Responsible Party has been notified to develop a plan to prevent future Trigger Events.

G. "Responsible Party" means any person who resides, uses, owns, manages or controls property where a Trigger Event occurs. Both the owners of the property and the parties renting or leasing the property would be considered a "Responsible Party".

H. "Shooting" means an incident where there is gunfire by known or unknown assailants.

I. "Trigger Event" means a Wichita Police Department, emergency services or code enforcement services documented incident, a criminal conviction or a criminal diversion, relating to:

1. Violation of any law relating to a crime of violence or threat of violence, excluding crimes of domestic violence as defined in Section 5.10.025 of the Code of the City of Wichita and K.S.A. 21-5414 and any amendments thereto;
2. Violation of any law prohibiting or regulating gambling;
3. Violation of any law prohibiting obscenity or promoting obscenity;
4. Violation of any law prohibiting the sale of sexual relations or promoting the sale of sexual relations;
5. Violation of any law prohibiting or regulating the possession, sale, distribution or use of controlled substances, and such violation was known, should have been known or allowed by Responsible Party;
6. Violation of any law regulating the sale or exchange of alcoholic liquor or cereal malt beverages;
7. Violation of any law regulating the sale or exchange of cigarettes or tobacco products;
8. Violation of any law prohibiting or regulating the possession, use or consumption of alcoholic liquor or cereal malt beverage;
9. Violation of any law prohibiting vehicle racing, stunting, exhibition of speed or side shows;
10. Violation of any law relating to the possession, discharge, transport or use of a firearm or other weapon including shots fired from or at a property and shots fired in the nearby area and associated with the property;
11. Violation of any law prohibiting or regulating Loud or Offensive noise as defined in the Code of the City of Wichita;
12. Violation of any law regarding dangerous dogs, dog or animal fighting, animal cruelty, or dogs running at large;
13. Violation of any law prohibiting inoperable vehicles, tall grass and weeds, zoning violations, illegal dumping, littering, and/or improper storage of bulky waste materials;
14. Violation of any law regulating housing or building codes standards;
15. Violation of any state or local licensing laws which relate to the health and safety of residents or consumers;
16. Violation of any law pertaining to licensing provisions of an Entertainment Establishment, Drinking Establishment or After-hours Establishment;
17. The property in question was found to harbor unverified catalytic converters or other stolen property or goods;

18. Any incident that led to a Special Weapons and Tactic (SWAT) deployment;

19. Any shooting event where a person was hit by a discharged firearm at the location in question, and shall be counted as two Trigger Events;

20. Any service of a criminal search warrant upon the property and shall be counted as two Trigger Events;

21. Any aggravated assault with a firearm and shall be counted as two Trigger Events; and

22. Hosting or allowing to be hosted an Entertainment Establishment, Drinking Establishment or Afterhours Establishment without a proper license, and shall be counted as two Trigger Events.

(Ord. No. 50-357, § 4, 12-6-16; Ord. No. 52-907, § 1, 3-10-26)

Sec. 8.02.050. Chronic Nuisance Property Prohibited.

The maintenance of Chronic Nuisance Property, as defined in this Chapter, is prohibited.
(Ord. No. 50-357, § 5, 12-6-16)

Sec. 8.02.060. Notice of pre-chronic nuisance.

A Responsible Party may be notified by the Chief of Police, or his/her designee, in writing upon a minimum of two Trigger Events, as defined in Section 8.02.040 occurring within a six month period that the property will be declared a Chronic Nuisance Property if another Trigger Event occurs within six months of the notification. Such notice shall be served on the Responsible Party by personal service or by certified mail to his/her last known address, or if none, to the address to which any tax statement is provided to such owner of the dwelling. If the certified mail is not retrieved and personal service has been attempted but unsuccessful, notice will be served by both first-class mail to last known address and posting upon the property of nuisance. (Ord. No. 50-357, § 6, 12-6-16; Ord. No. 52-907, § 2, 3-10-26)

Editor's note—Ord. No. 52-907, § 2, adopted Mar. 10, 2026, amended the title of § 8.02.060 to read as herein set out. The former § 8.02.060 title pertained to notice of chronic nuisance.

Sec. 8.02.070. Nuisance abatement conference.

Following the service of notice as set forth in Section 8.02.060 and upon a subsequent Trigger Event occurring within six months of the last notification, the Responsible Party may be notified that the property has been deemed a Chronic Nuisance.

The notice shall include:

1. Statement that a Chronic Nuisance exists, as defined by this Chapter, at the location specified in the notice and that the Responsible Party must submit a plan to abate such nuisance;

2. A brief description and dates of the commission of the acts which constitute the basis for the Chronic Nuisance declaration;

3. The date, time and place where the person is to appear and meet with a designated representative of the Wichita Police Department to participate in the nuisance abatement conference and present an abatement plan for approval; and

4. That failure to appear, make satisfactory arrangements for an alternative date and time for such hearing, or failure to comply with an abatement plan may result in the imposition of actual fees for police services on each subsequent call.

At the nuisance abatement conference, the designated representative of the Wichita Police Department and the Responsible Party shall discuss the facts constituting the Chronic

Nuisance and the Responsible Party will identify the actions to be taken in order to abate the nuisance.
(Ord. No. 50-357, § 7, 12-6-16; Ord. No. 52-907, § 3, 3-10-26)

Sec. 8.02.080. Nuisance Abatement Plan.

1. At the nuisance abatement conference, the Responsible Party shall provide a Nuisance Abatement Plan in writing;

2. The Nuisance Abatement Plan shall include a list of specific actions and a specific schedule of deadlines for said actions to abate the Chronic Nuisance as provided by the Responsible Party. Such plan shall be in effect for twelve months, unless extended in writing by agreement;

3. The plan will be discussed and finalized at the nuisance abatement meeting. The Responsible Party and a designated representative of the Wichita Police Department will approve the plan; and

4. The plan will be agreed upon and reduced to writing at the meeting or returned by the Responsible Party within 5 days after the meeting. The Responsible Party will be provided in person or by first class or electronic mail a notice of the right to appeal the imposition of the plan and notification that failure to comply with the terms and conditions of the plan could result in the assessment of costs for police services for subsequent police calls.
(Ord. No. 50-357, § 8, 12-6-16; Ord. No. 52-907, § 4, 3-10-26)

Sec. 8.02.090. Assessment of Police Service Costs.

1. The Responsible Party may be assessed the actual costs of hourly wages, including overtime, of all law enforcement or code enforcement personnel upon any subsequent Trigger Event occurring within twelve (12) months from the date of the scheduled abatement plan conference or the abatement plan's adoption if the Responsible Party:

(a) Fails to attend the abatement conference as required by Section 8.02.070;

(b) Fails to provide an acceptable nuisance abatement plan as set forth in Section 8.02.080; or

(c) Fails to comply with the terms and conditions of a nuisance abatement plan adopted as set forth in Section 8.02.080.

2. No fees shall be assessed against a Responsible Party while a nuisance abatement plan is in effect, and such person is attempting in good faith to comply with the terms of the plan.

3. The assessed costs of police services shall be determined by the hourly rate of pay, including any required overtime charges, as set forth in the salary Ordinance adopted by the City Council in effect at the time of the Trigger Event.

4. The Responsible Party will be notified of his/her right to appeal the assessment of any fees assessed for subsequent calls for police services.

5. If more than one Responsible Party has been notified, each party will owe an equal percentage of fees.
(Ord. No. 50-357, § 9, 12-6-16; Ord. No. 52-907, § 5, 3-10-26)

Sec. 8.02.100. Appeal Rights of Responsible Party.

1. Any Responsible Party who has been issued a notice of the designation of Chronic Nuisance Property, as defined by this Chapter, or who was required to participate in an abatement hearing, or who was assessed law enforcement personnel costs may request and shall be granted a hearing on the matter before the Chief of Police provided that such person shall file a written request for such hearing with the Chief of Police setting forth a brief statement of the grounds therefor, within fourteen (14) calendar days after the Nuisance Abatement Conference or assessment of police service costs. Failure to make a timely request for a hearing shall constitute a waiver of the person's right to contest the order of abatement or assessment of fees. Upon receipt of such request, the Chief of Police shall set a time and place for such hearing and shall give the Responsible Party written notice of the hearing,

either in person or by first class or electronic mail. At such hearing, the Responsible Party shall be given an opportunity to be heard and to show why abatement proceedings should be modified or withdrawn, or that costs of police services should not be assessed. The hearing shall commence no later than fourteen (14) calendar days after the notice of appeal is received by the Chief of Police unless good cause is shown to justify a later date.

2. Following such appeal hearing as provided for in Subsection (1), the Chief of Police may sustain, modify or withdraw the abatement proceedings or assessment of fees, depending upon findings as to whether the provisions of this Chapter have been complied with. Such findings will be provided, in writing, to the Responsible Party, no less than fourteen (14) calendar days following the hearing. The findings by the Chief of Police shall be deemed to be an order.

3. An appeal of the decision of the Chief of Police may be made to the City Council in writing no later than fourteen (14) calendar days following the issuance of the decision of the Chief of Police by filing such appeal with the City Clerk. Upon receipt of such request, the City Council shall choose three members to hear the appeal in accordance with Section 2.04.237 of the Code of the City of Wichita. The panel shall set a time and place for such hearing and shall give the Responsible Party written notice of the hearing. Absent good cause shown, such hearing shall be scheduled no later than thirty (30) days following receipt of such request for hearing. The procedures set forth in Section 2.04.235 and 2.04.237 of the Code of the City of Wichita shall be applied to any appeal heard by the City Council.

4. An appeal of the decision of the City Council shall be made to the 18th Judicial District Court in accordance with K.S.A. 60-2101 *et seq*. and amendments thereto.
(Ord. No. 50-357, § 10, 12-6-16; Ord. No. 52-907, § 6, 3-10-26)

Sec. 8.02.110. Civil Remedies.

In addition to the provisions set forth in this Chapter, the City Attorney may commence legal proceedings in Sedgwick County District Court to abate property designated as Chronic Nuisance Property as authorized by state statute.
(Ord. No. 50-357, § 11, 12-6-16)

Sec. 8.02.120. Reserved.

Editor's note—Ord. No. 52-907, § 7 adopted Mar. 10, 2026, repealed § 8.02.120, which pertained to council review, and derived from Ord. No. 50-357, § 12, adopted Dec. 6, 2016.

Title 9

PARKS, AIRPORTS AND PUBLIC PROPERTY*

Ch. 9.01. Sale or Lease of Real Estate

Ch. 9.03. Park Rules and Regulations

Ch. 9.04. Reserved

Ch. 9.05. Encroachments Upon Park Property

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Ch. 9.24. Helicopters and Helistops

Ch. 9.27. Boating Regulations on the Little Arkansas River

Ch. 9.28. Big Arkansas River and Bank Area

Ch. 9.29. Boating Regulations on the Big Arkansas River

Ch. 9.30. Ball Park and Athletic Field Regulations

Ch. 9.35. Airports

*__Cross reference—__As to offenses in municipal parks and airports, see § 15.56.010.

CHAPTER 9.01. SALE OR LEASE OF REAL ESTATE

Sec. 9.01.010. Sale or lease subject to restriction.
Sec. 9.01.020. Restriction.

Sec. 9.01.010. Sale or lease subject to restriction.

The sale or lease of all real estate which is now, or which may hereafter be owned by the city, shall be subject to a restrictive covenant upon the title to such property, or contained as a restriction within the lease of said property, that such property shall not be used for the operation of a gambling facility which consists of multigame, casino-style gambling on the premises.
(Ord. No. 42-068A § 1)

Sec. 9.01.020. Restriction.

All conveyance of interest in real property by the city, whether by deed, lease, contract for deed or other means, shall contain a restriction which shall be in substantially the following format:

> No existing building nor any building which is constructed or placed upon the property, either temporarily or permanently, shall be used for the purpose of housing the operation of any multigame, casino-style gambling on the premises.

(Ord. No. 42-068A § 2)

CHAPTER 9.03. PARK RULES AND REGULATIONS*

Sec. 9.03.010. Definitions.
Sec. 9.03.020. Authority and enforcement.
Sec. 9.03.030. Right of entry.
Sec. 9.03.040. Powers of use and park closure.
Sec. 9.03.050. Use of park equipment by non-city groups.
Sec. 9.03.060. Exceptions.
Sec. 9.03.070. Use of parks, recreation centers, picnic facilities and athletic fields.
Sec. 9.03.080. Permit application.
Sec. 9.03.090. Liability.
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Sec. 9.03.330. Golf.
Sec. 9.03.340. Archery.
Sec. 9.03.350. Hunting, tormenting, feeding or abusing animals.
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Sec. 9.03.370. Dumping.
Sec. 9.03.380. Trespassing.
Sec. 9.03.390. Animals and dog parks.
Sec. 9.03.400. Vehicles and parking.
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Sec. 9.03.410. Bicycling.
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Sec. 9.03.430. Use of playgrounds and equipment.
Sec. 9.03.440. Community events in parks.
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Sec. 9.03.460. Sanitation, trash, rubbish and related matters.
Sec. 9.03.470. Firearms and weapons.
Sec. 9.03.480. Fireworks and dangerous objects.
Sec. 9.03.490. Skate park rules and regulations.
Sec. 9.03.500. Possession and consumption of alcoholic liquor and cereal malt beverage—Exceptions and penalties.
Sec. 9.03.510. Interference.
Sec. 9.03.520. Additional policies.
Sec. 9.03.530. Exclusion from city areas or facilities.
Sec. 9.03.540. Violation—Penalty.

*__Cross reference—__As to persons on foot using parks principally for advertising, see § 5.04.020. As to motor vehicles and traffic in parks, see Chapter 11.88. As to removing dirt or earth from or placing in parks, see § 5.66.040. As to offenses in parks outside corporate limits, see 5.56.010. As to soliciting subscriptions, etc., in parks, see 5.74.010. As to use of park boulevard or drive to move building, see § 10.24.240.

Sec. 9.03.010. Definitions.

The following words and phrases, whenever used in this Chapter, shall be defined as follows:

Amplified sound means sound projected and transmitted by electronic equipment, including amplifiers.

Amplified speech means speech projected and transmitted by electronic means.

Bicycle means every vehicle propelled by human power upon which any person may ride having two or more wheels, any of which is more than 14 inches in diameter, but does not include any mobility device as defined by the Americans with Disabilities Act.

Board means the Board of Park Commissioners of the City of Wichita, Kansas.

Buildings means those structures or any portion thereof under the management of the Department of Park and Recreation of the City of Wichita.

Camp means to set up, or to remain in or at a campsite, for the purpose of remaining overnight, or establishing or maintaining a temporary place to live.

Campsite means any place where:

1. Any bedding, sleeping bag, tarpaulin, cot, bed, hammock, cardboard, newspapers, or other sleeping matter is placed, established, set up, used or maintained; or

2. Any stove, fire or cooking utensils or non-city designated cooking facilities which are placed, established, set up, used or maintained; or

3. Any tent, hut, lean-to, shack, trailer camper, vehicle or any part thereof, or any other shelter or structure which is placed, established, set up, used or maintained.

Camp paraphernalia includes, but is not limited to: tarpaulins, cots, beds, sleeping bags, hammocks, cooking equipment, stoves, lanterns, tents, huts, lean-tos, shacks, trailer campers, vehicles or any part thereof, any other sleeping matter, or any other shelter or structure.

Chief of Police means the chief of police of the city or his or her designee.

City means the City of Wichita.

City Council means the City Council of the City of Wichita.

City Manager means the City Manager of the City of Wichita, or his or her designee.

Director means the Director of the City of Wichita Park and Recreation Department or his or her designee.

Dockless Electric-Assisted Scooter Sharing System means an electric-assisted scooter share program in which companies distribute electric-assisted scooters throughout a city to be rented per trip. These scooters can be locked at any lawful location and not at a set location. Scooters are tracked via GPS and can be located by users.

Electric-assisted scooter means a self-propelled vehicle which is part of a Dockless Electric-Assisted Scooter Sharing System that has at least two wheels in contact with the ground, an electric motor, handlebars, a brake and a deck that is designed to be stood upon by the user when riding. Electric-assisted scooter does not include: (1) a vehicle that is powered by gasoline; or a motorized skateboard as defined by Title 11 of the Code of the City of Wichita.

Facilities or *area* means city-owned, board-owned or leased property, improved or unimproved parks and park amenities which are under the management of the Department of Park and Recreation of the City of Wichita.

Motorcycle means every motor vehicle having a seat or saddle for use of the rider and designed to travel on not more than three wheels in contact with the ground.

Motor-driven cycle means every motorcycle, including every motor scooter, Segway, four-wheeler or moped, and every bicycle with a motor attached.

Motor vehicle means every vehicle which is self-propelled.

Motorized wheelchair means any self-propelled vehicle designed specifically for use by a physically disabled person that is incapable of a speed in excess of 15 miles per hour.

Park or *parking* means the standing of a vehicle, whether occupied or not.

Park equipment means sporting equipment, bleachers, portable stages, landscaping equipment and other similar equipment utilized by the Department of Park and Recreation of the City of Wichita.

Park property means any real property owned or under the control of the city or the board of park commissioners that is designated for use as a park or recreational facility by the city council. For the purposes of this section, *under the control of* shall include any property right, including easements or other rights of use, regardless of nature, when such right is granted or designated, in whole or in part, for use as a park, recreational facility or for other recreational purposes.

Permit means a document that authorizes the use of parks, equipment or buildings as provided for and defined by this chapter.

Persons means individuals, groups, organizations, associations, partnerships, firms and corporations.

Public right-of-way means the entire width of the area from property line to property line including that area between the roadway and the abutting private property line.

Recreational vehicle means a vehicular-type unit built on or for use on a chassis and designed primarily as living quarters for recreational, camping, vacation or travel use and which has its own motor. *Recreational vehicle* shall include converted buses and motor homes.

Skateboard means a device for riding upon, either for sport or transportation, which is propelled by human power, consisting of an oblong piece of rigid material mounted upon wheels or rollers, but excluding wagons, scooters, strollers, carts and toy vehicles.

Vehicle means every device in, upon or by which any person or property is or may be transported or drawn upon a highway, except electric personal assistive mobility device or devices moved by human power or used exclusively upon stationary rails or tracks.
(Ord. No. 48-709 § 1, 4-13-10; Ord. No. 49-353 § 1, 10-16-12; Ord. No. 51-049, § 1, 6-18-19)

Sec. 9.03.020. Authority and enforcement.

(a) The city council authorizes the director, through the direction of the board, to implement and administer the policies, ordinances and regulations contained in this chapter. Whenever a power is granted to or a duty imposed on the director, the powers may be exercised or the duty performed by a designated representative of the director, unless this chapter expressly provides

otherwise. The director, together with the chief of police or their designees, shall enforce the provisions of this chapter.

(b) Violations of this chapter are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita. This code in no way limits the penalties, actions or procedures which may be taken by the city for a violation of this chapter, which is also a violation of any other ordinance of the city or statute or law of the State of Kansas or the United States.
(Ord. No. 48-709, § 2, 4-13-2010)

Sec. 9.03.030. Right of entry.

The director or chief of police, and/or their designees, may enter any park property, building or recreation facility, at any time, to inspect the premises for safety, compliance of use, hazards, or other reasons deemed necessary by the city.
(Ord. No. 48-709, § 3, 4-13-2010)

Sec. 9.03.040. Powers of use and park closure.

(a) *Hours.* Unless otherwise posted, or as provided for in this chapter, the use of all park property and recreation facilities is prohibited, without a permit, from the hours of midnight to 6:00 a.m.

The hours for the downtown skate park will be from 7:00 a.m. to 9:00 p.m. unless a permit has been issued by the director of park and recreation extending the hours of said park.

(b) *Park closure.* The director or his or her designee, may close park property or recreation facilities at any time there is an apparent danger to persons using the property or facility, or as necessary for the safety and protection of the public. It is unlawful to remain in an area closed by the director or his or her designee.
(Ord. No. 48-709, § 4, 4-13-2010)

Sec. 9.03.050. Use of park equipment by non-city groups.

Park equipment is provided for the express purpose of carrying out the functions of the City of Wichita and the department of park and recreation. Requests received from non-city, local groups or organizations for the use of park equipment shall be made, in writing, to the city. Such requests may be granted by the director provided that such use does not interfere with park operations. Appropriate fees may be charged for use of such equipment as established by the director with the approval of the city manager.
(Ord. No. 48-709, § 5, 4-13-2010)

Sec. 9.03.060. Exceptions.

The provisions of this chapter do not apply to the operation of city-owned or operated vehicles or personnel who are engaged in official city business.
(Ord. No. 48-709, § 6, 4-13-2010)

Sec. 9.03.070. Use of parks, recreation centers, picnic facilities and athletic fields.

(a) Parks, recreation centers, reservable picnic facilities, athletic fields or park property are available for the use of persons and groups subject to the issuance of a permit and payment of rental fees. All applications for use must be signed by an adult eighteen (18) years of age or over who shall agree to be responsible for use of such facilities. No use permit shall be granted if there is a conflict with a prior reservation.

(b) Any request which will place a major impact on a given facility, park or park property may be subject to city council review pursuant to Section 9.03.170. "Major impact" is defined as any activity that impedes the normal use of more than one area of any facility, park or park property by members of the general public. All requests are subject to the priority ranking classifications contained in Section 9.03.100.

(c) Applications or permits are immediately revocable or subject to denial if: (1) false statements are made in reserving a facility, building, or park property, or (2) the individual or group knowingly violates any rule or regulation established by the director or (3) fails to pay any required fees. Permit holders shall be responsible for the condition in which they leave park property. If park property has been damaged or abused

beyond normal wear, permit holders shall be responsible for reasonable costs to replace, repair or clean such property.

(d) Persons or groups may use any designated reservable or nonreservable facility of any part of such facility on a first come, first serve basis. Such groups must vacate any reserved facility or area at the time a permit holder group arrives. Individual picnic tables are available on a first come, first serve basis in all nonreservable areas.

(e) No use permit shall be granted for any reservable field before eight a.m., nor after nine p.m., unless the park has appropriate lighting.

(f) City or park personnel will open and close buildings and may be on duty to supervise the use of the facility.
(Ord. No. 48-709, § 7, 4-13-2010)

Sec. 9.03.080. Permit application.

(a) The director shall reserve the right to grant or deny all applications for the use of park property, recreation facilities or buildings within the city. Unless waived by the director, all applications for use of park property, recreation facilities or buildings shall be signed by an adult eighteen (18) years of age or over who shall be responsible for compliance with the terms of the permit.

(b) Requests for use shall be made a minimum of seven (7) days and a maximum of six months prior to the date of requested use.

(c) Denial of an application shall be based on the following criteria:

1. When a building, recreation facility or park property, with the required capacity for the proposed activity is not available;
2. Refusal by an applicant to agree, in writing, to the conditions of the permit;
3. Failure of an applicant to file an application in sufficient time for review;
4. Failure of an applicant to pay required fees;
5. Failure of an applicant to provide the required number of personnel to properly police and protect the activity and other users of the park property, facility or area due to the size or nature of proposed activity;
6. Filing of more than one application for the same park property, recreation facility or building at the same time. Under these circumstances, the director will give consideration to the application first received and the schedule of priority classification;
7. When usage of park property, recreation facilities or buildings may damage, destroy or detract from city property and or cause substantial harm, injury, discomfort or displeasure to the other persons in or near the park or park property;
8. A record or history of the applicant, permit holder or the event not complying with regulations of this chapter or terms and conditions of permits previously issued to the applicant.

(Ord. No. 48-709, § 8, 4-13-2010)

Sec. 9.03.090. Liability.

(a) All persons to whom a use permit is granted must agree, in writing, to hold the city harmless and indemnify the city from any and all liability for injury to persons or property occurring as the result of the activity sponsored by the permit holder. Permit holders shall be liable to the city for any and all damages to the park property, equipment and buildings which result from the activity of the permit holder or which is caused by any participant in said activity. A person exercising any of the privileges authorized by this chapter does so at his or her own risk without liability on the part of the city for any injury to such persons or property resulting therefrom.

(b) When an association or organization requests the use of park property or facilities, or when the city is involved with scheduling and/or coordinating their activities, a certificate of coinsurance naming the city as an additional insured must be filed with the city five days prior to the first day of use of such facilities or property. The city may require proof of liability insurance with a limit of bodily injury and property damage of not less than five hundred thousand dollars ($500,000.00) per occurrence and a minimum of

fifty thousand dollars ($50,000.00) property damage coverage and a certificate of co-insurance for any group for activities which are not considered low risk.
(Ord. No. 48-709, § 9, 4-13-2010)

Sec. 9.03.100. Priority of use.

(a) Use of park property, recreation facilities or buildings is based on the priority ranking as set forth in this section. Groups ranked at a low priority may be subject to rescheduling with thirty (30) days written notice. In such event, the city will attempt to relocate the group to another recreation facility, building or park property.

(b) Group priority ranking, in order of preference, shall be as follows:

1. City of Wichita and city park and recreation department sponsored activities;
2. Other governmental agency meetings open to the public;
3. Youth, family or adult community recreation activities open to the general public, sponsored or conducted by neighborhood, homeowners or other community organizations;
4. Groups conducting recreation activities open to only their own members (closed meetings);
5. Nonrecreation use, service organizational meetings, or restricted activities not open to the general public;
6. Non-profit organizations (§ 501(c)(3) corporations);
7. Religious, sectarian or political groups;
8. Out-of-city groups (fifty-one (51) percent of participants do not reside or work within the city limits).

(Ord. No. 48-709, § 10, 4-13-2010)

Sec. 9.03.110. Permit.

(a) The application for a permit shall include, but not be limited to, the following information:

1. Name of the applicant, the sponsoring organization(s), and name of the person in charge of the proposed activity;
2. Address and telephone number of applicant(s);
3. Park property, recreation facility or building being applied for and the area involved;
4. Starting time of the proposed activity;
5. Finishing time of the proposed activity;
6. Number of persons expected;
7. Additional city personnel or items requested, such as tables, chairs, and associated equipment;
8. Nature of the proposed activity or activities, including equipment and vehicles to be brought onto the recreation facility, building or park property;
9. The duration and nature of any amplified sound;
10. The name of individual(s) or groups who will receive money collected and the purpose for the collection of such money. Funds may only be collected by non-profit organizations pursuant to the provisions of Section 9.03.200;
11. Notice of requirement of certificate of insurance, if required.

(b) A permit issued, pursuant to this chapter, is not transferable to another person or location. A change in sponsorship for an event or activity shall require that a new application and fee be submitted for approval to the director.
(Ord. No. 48-709, § 11, 4-13-2010)

Sec. 9.03.120. Display of permits.

All permits issued under this chapter shall, upon request by any law enforcement officer or authorized representative of the director, be displayed to them for viewing or verification.
(Ord. No. 48-709, § 12, 4-13-2010)

Sec. 9.03.130. Rental guidelines.

(a) Minimum building or recreation facility rental periods are based on four-hour increments. The time indicated on the application will reflect the actual facility use time which includes setup,

decoration and clean up. Additional time beyond the four-hour block will be charged on an hourly rate.

(b) Setup, breakdown and basic cleanup will be the responsibility of the group utilizing the facility or building.

(c) Permanent decorations or materials in any building, facility, or on any structure are prohibited unless approval is obtained from the director or his or her designee.
(Ord. No. 48-709, § 13, 4-13-2010)

Sec. 9.03.140. Revocation of permit.

A permit may be revoked, if any terms or conditions of the permit are violated by the permit holder or any agent or employee of the permit holder. The permit may be revoked by the director with written notice to the person or persons to whom the permit was issued.
(Ord. No. 48-709, § 14, 4-13-2010)

Sec. 9.03.150. Right of appeal.

An applicant may appeal the decision of the director or his or her designee regarding the denial or revocation of permits issued pursuant to this chapter. The applicant must file such appeal through the following appeal process: first, to the city manager; second and final appeal is made to the city council.

(a) An applicant or permit holder may appeal a decision of the director that either denies an application for a permit, or revokes a permit. Such initial appeal shall be to the city manager. The appeal must be filed, in writing, with the city manager within ten (10) days from the date the notice of denial or revocation, was mailed or hand-delivered to the applicant or permit holder. The city manager shall review the appeal and render a decision no later than ten (10) days after receipt of the appeal.

(b) An applicant or permit holder may appeal the decision of the city manager. Such second and final appeal shall be to the city council. The appeal must be filed in writing with the city clerk within ten (10) days from the date the notice of the city manager's decision was mailed or hand delivered to the applicant or permit holder. The city council shall conduct the hearing as soon as practical following the submittal of the appeal request and in accordance with city council agenda process guidelines or procedures established by the city manager.
(Ord. No. 48-709, § 15, 4-13-2010)

Sec. 9.03.160. Fees and deposits.

(a) Fees and deposits may be levied to offset city expenses incurred in providing services. Basic rates for use of park property, recreation facilities and buildings are established by the director of park and recreation with the approval of the city manager. The schedule of fees shall be published by the director.

The director of park and recreation may waive or reduce fees and deposits if:

1. The applicant is another governmental entity or city department or division;
2. The applicant qualifies as a 501(c)(3) corporation and the event or activity benefits the community;
3. The proposed event is being sponsored by the City of Wichita or park and recreation department.

(b) Any waiver of fees which exceed five hundred dollars ($500.00) shall be approved by the city manager.

(c) Fees are non-refundable for use of park property and facilities.

(d) Any appeal of the denial by the director of park and recreation to waive or reduce fees shall be taken by the applicant pursuant to Section 9.03.150.
(Ord. No. 48-709, § 16, 4-13-2010)

Sec. 9.03.170. Approval—Major impact activities.

(a) Applications for activities which will cause a major impact on the use of a park or park facility may be reviewed by the city council.

(b) The city council, upon request of an applicant for an activity which will cause a major impact on a park or park facilities, may approve such activity including the closure of a park or

park facility, and the charging of admission for such activity. In determining if the exclusive use of a park, park area or facility should be granted, the council will consider the factors set forth in Section 9.03.080 and the following:

1. The event will not obstruct the operation of emergency vehicles or equipment in or through the particular permit area;
2. The proposed event does not present a safety, noise, or traffic hazard;
3. The proposed event conforms to regulations regarding the use or allowable number of participants for the proposed venue, location, or site;
4. The proposed event does not violate any provisions of the Code of the City of Wichita, the laws of the State of Kansas or the laws of the United States; and
5. If the event requires the closure of public streets, such street closures have been approved by the city council.

In deciding whether to approve an application, no consideration may be given to the message of the event, the content of speech, the identity or associational relationships of the applicant, or to any assumptions or predictions as to the amount of hostility which may be aroused in the public by the content of speech or message conveyed by the event.
(Ord. No. 48-709 § 17, 4-13-10)

Sec. 9.03.180. Security.

To ensure proper use and control of park property, recreation facilities and equipment, a security guard may be required when an event is the major use of a park or park facility. Additional security measures may be required to protect the general public and city property. Such costs for additional security shall be paid for by the permit holder.
(Ord. No. 48-709 § 18, 4-13-10)

Sec. 9.03.190. Damage to buildings, facilities and equipment.

Individuals or groups causing damage to any park property, building, grounds, fixtures, furniture or appurtenances shall be required to reimburse the city for all costs involved to restore the park property, building, grounds, fixtures, furniture or appurtenance to its original condition. Such individuals or groups shall be subject to refusal of use of such park property or facilities in the future.
(Ord. No. 48-709 § 19, 4-13-10)

Sec. 9.03.200. Sales for profit and solicitation.

(a) No person shall use any park property, recreation facility or building thereof for the primary purpose of advertising the sale of any product, goods, wares, merchandise, services or event that is designed to be held purely for private profit.

(b) The director may authorize the issuance of permits, on an annual basis, for trades, occupations, businesses or professions which are compatible with usual park activities and uses, are for the benefit to the park patrons, and do not conflict with established park concessions. The director shall charge a set fee or percentage of sale, to be approved by the city manager for the issuance of such permits.

(c) A person shall not solicit in any manner, or offer for sale any goods, wares or merchandise, or give or distribute handbills, advertising materials or literature except under the following conditions:

1. When a concession is operating under a lease or contract authorized by the city council; or
2. When the park, park property or recreation facility, or any portion thereof, is the location for a special event, which will not in any way detract from the use of the park property by the general public and the proceeds are used for charitable purposes.

(Ord. No. 48-709 § 20, 4-13-10)

Sec. 9.03.210. Parades.

It is unlawful for any person or persons to hold or stage any parade in or upon any streets or on park property without first applying for and

acquiring a permit to do so from the City of Wichita, which permit shall be issued in accordance with Chapter 3.13 of this Code.
(Ord. No. 48-709 § 21, 4-13-10)

Sec. 9.03.220. Distribution of advertising material.

(a) Except as otherwise provided, it is unlawful for any person, to post, distribute, display or exhibit signs, pictures, advertisements, circulars, handbills or any other written, drawn or printed material on any of the parks, playgrounds, golf courses, buildings or recreation facility or upon any other park property.

(b) Notwithstanding the provisions of subsection (a), any person or persons lawfully meeting in the parks, buildings, recreation facilities or on other park property, may post or distribute noncommercial written or printed material among the members of the group and only to the members and in the immediate area occupied by the group.

(c) It is the responsibility of the group or permit holder, before leaving the building, recreation facility or park property, to pick up and dispose of all litter and written materials resulting from the distribution of the written material.
(Ord. No. 48-709 § 22, 4-13-10)

Sec. 9.03.230. Injuring property or removing equipment.

(a) It is unlawful for any person to mark, deface, disfigure, injure, tamper with, displace or remove any buildings, bridges, tables, benches, fireplaces, railings, paving or paving materials, water lines or other public utilities or parts or appurtenances thereof, signs, notices or placards, whether temporary or permanent, monuments, statues, posts or other boundary markers or other structures or equipment, facilities or park property or appurtenances whatsoever, either real or personal, on any park property or recreation facilities.

(b) The provisions of subsection (a) shall not prohibit any person or persons from moving any portable table or bench, which has been placed in the park for use by the public, to an adjoining or nearby table within the immediate location of the temporary table or bench. No temporary table or bench shall be moved from its original location in such a manner that it is disassociated from the use and the area for which it was first placed in the park.
(Ord. No. 48-709 § 23, 4-13-10)

Sec. 9.03.240. Reserved.

Editor's note—Ord. No. 52-602, § 1, adopted Jan. 7, 2025, repealed § 9.03.240, which pertained to the prohibition of overnight camping, and derived from Ord. No. 48-709 § 24, adopted Apr. 13, 2010; and Ord. No. 52-600, § 14, adopted Jan. 7, 2025.

Sec. 9.03.250. Reserved.

Editor's note—Ord. No. 50-306 § 14, adopted August 23, 2016, repealed § 9.03.250. Formerly said section pertained to storage of personal property on park property probibited and derived from Ord. No. 48-709 § 25, adopted April 13, 2010.

Sec. 9.03.260. Fire.

(a) Open fires on park property are prohibited.

(b) Fires may be built in ovens, stoves, portable grills or other facilities designed and posted for that purpose. All such fires shall be extinguished before leaving the area. Fires may be prohibited entirely, as a protective measure, when ordered by designated authorities, including but not limited to: the City of Wichita Fire Department, County Fire Marshall, or State Fire Marshall.

(c) Charcoal briquettes, wood or other materials used for fire or cooking purposes shall be extinguished before being deposited in designated and posted areas or trash containers. No hot or burning coals or materials of any kind shall be dumped or deposited on the grass.
(Ord. No. 48-709 § 26, 4-13-10)

Sec. 9.03.270. Fishing.

(a) Fishing shall be permitted in areas that have been properly marked and posted with signs indicating that this activity is allowed.

(b) It is unlawful for any person to fish from the following areas:

Second Street Bridge

Douglas Avenue Bridge

Lewis Street Bridge

Nims Street Bridge

Murdock Street Bridge

(c) The director has the express authority to prohibit fishing in other areas, after proper notification, due to health or safety concerns.
(Ord. No. 48-709 § 27, 4-13-10)

Sec. 9.03.280. Horseback riding.

Horseback riding shall be permitted only in posted designated areas.
(Ord. No. 48-709 § 28, 4-13-10)

Sec. 9.03.290. Swimming, bathing, wading.

Swimming, bathing, or wading is permitted in posted designated areas, designated interactive play fountains and public pools. Pets or animals are not permitted in such designated areas, unless approved as a special event. Unless otherwise posted or designated as a special event, swimming or bathing is prohibited in public fountains, non-interactive water features, ponds, lakes, rivers or waterways in parks or on park property.
(Ord. No. 48-709 § 29, 4-13-10)

Sec. 9.03.300. Amplified sound.

Amplified sound, whether for speech, music, or otherwise, is prohibited without first obtaining a permit from the director.
(Ord. No. 48-709 § 30, 4-13-10)

Sec. 9.03.310. Hot air balloons, hang gliders, sky divers.

Except in the case of an emergency, the operation or landing of hot air balloons, hang gliders and sky divers is prohibited on park property without first obtaining a permit from the director.
(Ord. No. 48-709 § 31, 4-13-10)

Sec. 9.03.320. Model airplanes, boats, cars or model rockets.

The operation of motor-driven airplanes, boats, cars or model rockets is prohibited on park property except in designated areas.
(Ord. No. 48-709 § 32, 4-13-10)

Sec. 9.03.330. Golf.

The use of golf clubs for playing or practicing is prohibited on park property except in designated areas.
(Ord. No. 48-709 § 33, 4-13-10)

Sec. 9.03.340. Archery.

Archery shall be permitted only in posted designated areas on park property.
(Ord. No. 48-709 § 34, 4-13-10)

Sec. 9.03.350. Hunting, tormenting, feeding or abusing animals.

(a) It is unlawful for any person to hunt, torment or abuse any animal or bird in any public parks, recreation facilities or other park property.

(b) It is unlawful for any person to feed a wild animal or bird in any area in which such feeding has been prohibited by signs placed by the director.
(Ord. No. 48-709 § 35, 4-13-10)

Sec. 9.03.360. Going onto ice.

It is unlawful for any person to go onto the ice on any pool, pond, river or waterway in or adjacent to any building, recreation facility or other park property, except for ice skating or other similar activity, at times and places authorized by the director.
(Ord. No. 48-709 § 36, 4-13-10)

Sec. 9.03.370. Dumping.

Dumping rocks, soil, grass clippings, branches, leaves, equipment, vehicles, furniture, furnishings or accessories, or any other item or material onto park property is prohibited.
(Ord. No. 48-709 § 37, 4-13-10)

Sec. 9.03.380. Trespassing.

Trespassing into areas designated "No Trespassing" is prohibited. This includes, but is not limited to: rooms in buildings or recreational facilities, swimming pools during specific posted hours, fenced control areas such as storage areas, shop areas, holding areas, construction sites, and all other areas posted for protection of property, health, safety or welfare or where bodily injuries or damage to equipment, fixtures, accessories or property may occur.
(Ord. No. 48-709 § 38, 4-13-10)

Sec. 9.03.390. Animals and dog parks.

(a) Unless within a designated dog park, dogs are prohibited on park property unless kept on a leash at all times and under full control of the owner. The removal of feces of animals who defecate on park property is required of the owner or custodian of said animal.

(b) The director of park and recreation or his or her designee may ban dogs or other animals or a specific dog or other animal from areas of any park where he or she determines the animal to be a nuisance.

(c) The regulations established in Section 6.04.218 of the Code of the City of Wichita govern the conduct of users of designated dog parks and off-leash areas.
(Ord. No. 48-709 § 39, 4-13-10)

Sec. 9.03.400. Vehicles and parking.

(a) It is unlawful for any person to operate or park vehicles, motorcycles or motor-driven cycles on park property except on designated roadways or within designated areas. Such vehicles shall not be operated on designated bicycle, hiking or walking paths. The prohibitions of this section shall not be applicable to motorized wheelchairs or electric personal assistive mobility devices.

(b) Golf carts, ATVs and other motor vehicles may be used on park property, designated paths and all other areas, by permission of the Director of Park & Recreation or the Chief of Police.

(c) Unless authorized by the Director of Park & Recreation, the overnight parking of trailers, campers, motor homes or other motor vehicles is prohibited on park property.
(Ord. No. 51-049, § 2, 6-18-19; Ord. No. 51-092, § 1, 9-10-19; Ord. No. 52-602, § 2, 1-7-25)

Editor's note—Ord. No. 51-049, § 2, adopted June 18, 2019, amended § 9.03.400 in its entirety to read as herein set out. Former § 9.03.400 pertained to motor vehicles and parking and derived from Ord. No. 48-709, § 40, adopted Apr. 13, 2010.

Sec. 9.03.405. Operation of electric-assisted scooters on park property.

(a) The operation of electric-assisted scooters shall be permitted only on designated bicycle and multiuse paths and in designated areas.

(b) Electric-assisted scooters shall not be operated on sidewalks or unpaved surfaces.

(c) Electric-assisted scooters shall not be parked in a manner which impedes pedestrians, bicycles or motor vehicles.
(Ord. No. 51-049, § 3, 6-18-19)

Sec. 9.03.410. Bicycling.

Bicycling shall be permitted only on designated bike paths and in designated areas.
(Ord. No. 48-709 § 41, 4-13-10)

Sec. 9.03.420. Posted property.

Motor vehicles shall not be operated over roads which are posted against public use or provided with closed gates. Motor vehicles shall not be operated over bicycle, hiking, walking or horse riding trails.
(Ord. No. 48-709 § 42, 4-13-10)

Sec. 9.03.430. Use of playgrounds and equipment.

(a) It is unlawful for any person over the age of fourteen years of age to occupy or use playgrounds and playground equipment designed and intended for the use of children which deprives or prevents the use of such equipment by children. Any person who, after having been advised by any law enforcement officer or authorized representative of the director, to cease

and desist such use or occupancy, refuses or neglects to do so is guilty of a violation of this chapter.

(b) No person shall use or occupy playgrounds or playground equipment other than for the purposes intended. Any person who, after having been advised by any law enforcement officer or authorized representative of the director to cease

and desist such use or occupancy, refuses or neglects to do so is guilty of a violation of this chapter.

(c) The provisions of subsections (a) and (b) shall not apply to any parent, relative, guardian or person in lawful custody of a child who is participating with the child in the lawful use of the playground facilities in the use or occupancy of the playground and playground equipment or areas.
(Ord. No. 48-709, § 43, 4-13-2010)

Sec. 9.03.440. Community events in parks.

In addition to the requirements of this chapter, it is unlawful for any person to hold a community event, as defined by Section 3.11.020 of the Code of the City of Wichita, in or upon any park, recreation facility or other park property without first obtaining a community event permit.
(Ord. No. 48-709, § 44, 4-13-2010)

Sec. 9.03.450. Flora and turf.

It is unlawful for any person to remove or injure any form of plant life from park property, including the removal of wood, turf, grass, soil, rock, sand and gravel, except by a duly authorized city or park employee or authorized contractor in the performance of his/her duties or unless specifically authorized by the director.
(Ord. No. 48-709, § 45, 4-13-2010)

Sec. 9.03.460. Sanitation, trash, rubbish and related matters.

It is unlawful for any person in any park, recreation facility or other park property to:

(a) Throw, discharge, place or cause to be placed in the waters of any fountain, pond, lake, stream, bay or other body of water in or adjacent to any park, recreation facility or other park property or any tributary, stream, storm sewer or drain flowing into such waters, any substance, matter or thing, liquid or solid, which will or may result in the pollution of the water;

(b) Dump, deposit or leave any bottles, broken glass, ashes, paper, boxes, cans, dirt, rubbish, waste, garbage or refuse, or other trash, in any park, recreational facility or other park property except in proper receptacles where these are provided;

(c) Glass bottles are prohibited on all park property.

(Ord. No. 48-709, § 46, 4-13-2010)

Sec. 9.03.470. Firearms and weapons.

It is unlawful for any person to possess or discharge a firearm, air gun, or slingshot on park property.
(Ord. No. 48-709, § 47, 4-13-2010)

Sec. 9.03.480. Fireworks and dangerous objects.

It is unlawful for any person to possess or ignite firecrackers, rockets, torpedoes or fireworks on park property unless a permit has been issued by the director, and the fireworks display is approved by the Wichita Fire Chief.
(Ord. No. 48-709, § 48, 4-13-2010)

Sec. 9.03.490. Skate park rules and regulations.

The following rules and regulations shall apply to the riding of skateboards on park property:

Within a skate park, it shall be unlawful for any person to:

(a) Ride, operate, or use a skateboard unless that person is wearing a helmet designed for skateboarding with a chin strap, elbow pads designed for skateboarding with plastic elbow caps, and knee pads designed for skateboarding with plastic knee caps, which equipment shall be in good repair at all times during use.

(b) Ride, operate, or utilize a skateboard unless such equipment is in good repair at all times during use.

(c) Be on or use an individual apparatus within the skate park while another person is using it.

(d) Place or utilize additional obstacles or other materials (including but not limited to ramps or jumps) within the skate park.

(e) Use the skate park amenities when the surfaces of the amenities are wet or other conditions exist which would adversely affect the safety of skateboarders.

(f) Enter the skate park while under the influence of alcoholic beverages or drugs.

(g) Use or engage in profanity, reckless and boisterous behavior (including, but not limited to, tandem riding, pushing, horseplay, and bullying) or any activity which could endanger the safety of persons using the skate park or spectators.

(h) Engage in graffiti, tagging, or other defacing of park property or the property of others.

(i) Ride, operate, or utilize any device other than a skateboard, in-line skates or BMX bicycle (prohibited devices include, but are not limited to, motor vehicles, motorcycles, motor driven vehicles, motorized skateboards, motorized scooters and motorized skates) in or on skate park apparatus.

(j) Enter into a skate park while such park is closed.

(k) Stunts, tricks or luge skateboarding are:

1. Prohibited in the picnic areas, parking lots, curbs, and surrounding areas of the skate park.

2. Permitted in the skating area only.

(Ord. No. 48-709, § 49, 4-13-2010)

Sec. 9.03.500. Possession and consumption of alcoholic liquor and cereal malt beverage—Exceptions and penalties.

(a) The consumption and possession of alcoholic liquor or cereal malt beverages on park property shall be in compliance with the provisions of Title 4 of the Code of the City of Wichita, and shall be punished as set forth therein.

(b) It is unlawful to possess or consume alcoholic liquor or cereal malt beverage upon property over which easement rights have been granted to the city or to the Board of Park Commissioners when such easement is granted or used for public recreational purposes. Provided, however, the Director may grant written exceptions to this subsection.

(c) Any person violating subsection (b) of this section of the Code is guilty of a misdemeanor and shall be punished by a fine of not less than $50.00 nor more than $200.00, or by imprisonment for not more than six months, or by both such fine and imprisonment.

(Ord. No. 48-709, § 50, 4-13-2010; Ord. No. 49-353, § 2, 10-16-2012)

Sec. 9.03.510. Interference.

No person shall use, attempt to use or interfere with the use of any facility, building or park property which is reserved for another person or group holding a permit issued from the director.

(Ord. No. 48-709, § 51, 4-13-2010)

Sec. 9.03.520. Additional policies.

The director is hereby authorized to establish additional policies, which are not inconsistent with the provisions of this chapter.

Such policies shall be posted at properties subject to such regulations. Copies of such regulations shall be available at the office of the director during regular office hours.

(Ord. No. 48-709, § 52, 4-13-2010)

Sec. 9.03.530. Exclusion from city areas or facilities.

When, in the interest of public health, safety or welfare, persons or groups may be excluded by the director or his/her designee from any park property and or park facility. An order excluding persons or groups may be appealed pursuant to the provisions set forth in Section 9.03.150.

(Ord. No. 48-709, § 53, 4-13-2010)

Sec. 9.03.540. Violation—Penalty.

(a) It is a misdemeanor for any person to knowingly and willfully violate any provision of this chapter.

(b) Every person who is convicted of violating the provisions of this chapter may be punished by a fine of not more than five hundred dollars ($500.00).
(Ord. No. 48-709, § 54, 4-13-2010)

CHAPTER 9.04. RESERVED*

*__Editor's note—__Ord. No. 48-709, § 55, adopted April 13, 2010, repealed Ch. 9.04, §§ 9.04.010—9.04.220, which pertained to conduct in parks and derived from Ord. No. 20-129 § 2; Ord. No. 32-168 §§ 1, 4, 5, 8, 9, 11, 13, 14, 17, 20, 22; Ord. No. 32-484; Ord. No. 34-442; Ord. No. 36-573 §§ 3—5, 8—10; Ord. No. 38-112 § 14; Ord. No. 39-167 § 1; Ord. No. 39-266 §§ 1—4; Ord. No. 47-028, §§ 1—5, adopted May 16, 2006; Ord. No. 47-047, §§ 1, 2, adopted June 20, 2006; Ord. No. 47-486, §§ 1, 2, adopted May 15, 2007. The user's attention is directed to Chapter 9.03.

CHAPTER 9.05. ENCROACHMENTS UPON PARK PROPERTY

Sec. 9.05.010. Definitions.
Sec. 9.05.020. Definition of encroachment upon, below, over or across park property, deemed unlawful.
Sec. 9.05.030. Exceptions.
Sec. 9.05.040. Permits for existing encroachments—Standards, conditions and term for issuance of same.
Sec. 9.05.050. Existing encroachments not eligible for permit.
Sec. 9.05.060. Notice to abate.
Sec. 9.05.070. Abatement of nuisance by city; notice of costs; assessment and collection.
Sec. 9.05.080. Hearing by the director, appeals.
Sec. 9.05.090. Enforcement—Personnel authorized.
Sec. 9.05.100. Penalty for violation.
Sec. 9.05.110. Violations not exclusive.
Sec. 9.05.120. Severability.

Sec. 9.05.010. Definitions.

The following words and phrases, whenever used in this chapter, shall be defined as follows:

(1) *Board* means the Board of Park Commissioners of the City of Wichita.

(2) *City* means the City of Wichita, Kansas.

(3) *Council* means the Wichita City Council.

(4) *Director* means the Director of the City of Wichita Park and Recreation Department or designee.

(5) *Encroachment permit* means the authority to maintain an encroachment upon park property in the city pursuant to and within the limitations of the provisions of this chapter.

(6) *Notice of encroachment* means a document filed with the register of deeds of Sedgwick County to give notice that an encroachment permit has been issued for an encroachment upon park property by the city pursuant to the terms of this chapter.

(7) *Park property* means any real property owned by or under the control of the city or the board of park commissioners that is designated for use as a park or recreational facility by the city council.

(8) *Person* means any individual, corporation, partnership, association, firm, joint venture, company or other state franchised business entity such as a professional association, limited liability company, limited liability partnership or other organization of any kind.

(Ord. No. 50-306 § 2, 8-23-16)

Sec. 9.05.020. Definition of encroachment upon, below, over or across park property, deemed unlawful.

It is unlawful for a person to commit or engage in any of the following acts, allow to occur any of following described activities, or maintain or allow to exist any of the following described structures, objects or other material thing upon, below, over or across any park property, and, for the purposes of this chapter, shall be defined as an encroachment thereon:

(1) No person shall erect, construct, install, or place any structure, building, driveway, improvement, shed, fence, wall, dog run, dog house, tree house, playhouse, play equipment, TV or radio reception device, machinery, equipment, or apparatus of any type, whether stationary or moveable and whether permanent or temporary in character, or stockpile, store or place any organic or inorganic material used for the construction of such items.

(2) No person shall perform, cause or authorize any mowing, trimming, cutting, or grooming of park property, or perform any similar grounds maintenance for any purpose, or in any like manner encroach onto park property from privately or publicly owned lands.

(3) No person shall place, stockpile or store any gravel, stone, dirt, sand, wood, firewood, lumber or any other organic or inorganic material.

(4) No person shall place any electrical wire, conduit, or pipe, or any public service or private utility, into, upon, above, across or beneath park property.

(5) No person shall plant vegetation or construct or maintain any form of planting bed, vegetable garden or landscaping of any kind.

(6) No person shall utilize park property for access to private or commercial property for any reason.

(7) No person shall allow, authorize, build, construct, or place the discharge point of any sump pump, pool, water feature, or foundation drainage, or any storm water management measures, including but not limited to swales, drains and contouring, that directs or is intended to direct sump pump or foundation drainage discharge, onto park property. All discharge of sump pumps and foundation drainage adjacent to park property, shall be setback from the park property line, in such a manner that the water flow is discharged onto the originating property and flows in accordance with city and state drainage law.

(8) No person shall erect, construct, install or place any memorial such as, but not limited to, flowers, memorabilia, mementos, religious symbols or signs.

(Ord. No. 50-306 § 3, 8-23-16)

Sec. 9.05.030. Exceptions.

The provisions of section 9.05.010 shall not apply to any person who has a written agreement with the city or the board, including, but not limited to, a lease, easement or an encroachment permit issued pursuant to the provisions of section 9.05.040 which allows an encroachment otherwise prohibited by section 9.05.020, but only to the extent of the terms and conditions set forth in such written agreement, lease, easement or encroachment permit.

(Ord. No. 50-306 § 4, 8-23-16)

Sec. 9.05.040. Permits for existing encroachments—Standards, conditions and term for issuance of same.

(a) Any unlawful encroachment as described in section 9.05.020, and amendments thereto, upon park property that is in existence upon the date of passage of this chapter shall be subject to review by the director, who shall compile a list thereof. The director shall conduct a review of all existing encroachments subject to written standards developed for such purpose. These standards shall include, but not be limited to, the physical characteristics of the encroachment, the size of the encroachment, the purpose for or the use of the encroachment and whether the encroachment poses a public safety hazard. Additionally, an encroachment permit will not be granted allowing an encroachment to exist upon park property that is in violation of any land or deed restriction or is or has been acquired and/or developed with federal financial assistance provided by the National Park Service of the United States Department of the Interior in accordance with the Land and Water Conservation Fund Act of 1965, and amendments thereto. If a determination is made after review that an encroachment permit may be issued for the continued existence of the encroachment, written notice shall be served upon the owner and/or occupant of the property upon which the encroachment is located or that is associated with or adjacent to the encroachment by certified mail, return receipt requested, or by personal service. The notice shall describe the encroachment and provide options as set forth paragraphs (b), (c), (d), (e), (f) and (g) of this section regarding the continued existence of the encroachment.

(b) The recipient of the notice described in paragraph (a) herein shall have forty-five calendar days from the date of the notice to respond in writing thereto and inform the director of such person's intentions regarding maintaining the encroachment. Should the recipient elect to apply for an encroachment permit to maintain the encroachment, application for the permit must be made, and all conditions set forth in subparagraph (d) must be met, within forty-five additional calendar days from the date of the response to the director, provided, however, that an extension of one forty-five calendar day time period shall be granted if recipient demonstrates that due diligence is being exercised in making application for, and complying with the required conditions for such permit. If the recipient of the notice described in paragraph (a) herein fails to

respond to the notice or fails to complete an application for and comply with the conditions for an encroachment permit within the required period of time, the option to obtain an encroachment permit shall no longer be available to the owner and/or occupant of the property upon which the encroachment is located or that is associated with or adjacent to the encroachment. A notice to abate shall be sent to such person, following the process set forth in section 9.05.060 of this Code.

(c) An encroachment permit shall become null and void and subject to revocation by the director upon the sale or any change of ownership of the property upon which the encroachment is located or that is associated with or adjacent to the encroachment.

(d) An encroachment permit shall be issued to an applicant only if each of the following conditions are met:

(1) The encroachment must be in existence upon the effective date of the ordinance from which this section is derived to be eligible for an encroachment permit. No encroachment that comes into existence after the effective date of the ordinance from which this section is derived shall be eligible for such a permit.

(2) The encroachment must not present a public safety hazard. No encroachment permit will be issued if the existence thereof creates or causes a public safety hazard.

(3) The applicant must pay the required fee for the encroachment permit and must allow the director access to the applicant's property as necessary to photograph and otherwise document the encroachment as it exists at the time the encroachment permit is issued.

(4) The applicant must sign an agreement to indemnify, hold harmless and defend the city, the council, the board, and any of its agents or employees from and against any and all loss, damage, liability, cost or expense which arises, or is alleged to have arisen due to the existence of the encroachment.

(5) The applicant must acquire, at such applicant's own expense, general liability insurance in an amount not less than the maximum liability of a governmental entity for claims arising out of a single occurrence as provided by the Kansas Tort Claims Act or other similar future law (currently $500,000.00 per occurrence). The city shall be named as an additional insured under said policy and such policy shall properly protect and indemnify the city in an amount not less than aforesaid. The issuer may not cancel the insurance thereof without at least thirty days advance written notice to the director of park and recreation. A copy of such policy shall be furnished to city with the application for an encroachment permit and at the time of each annual renewal of such permit.

(6) The applicant shall not, nor permit anyone else to enlarge or expand the encroachment in any manner, nor shall such person erect, construct, install or place any encroachment in addition to that allowed by the encroachment permit required herein.

(7) The applicant shall sign a notice of encroachment which shall be in a form prepared and approved by the city attorney, and shall be filed with the office of the register of deeds for Sedgwick County. This chapter is intended to serve as notice to any subsequent purchaser of the property which is associated with the encroachment permit that the permit is null and void and subject to revocation and the encroachment subject to abatement upon any sale or change of ownership of said property.

(8) The encroachment for which an encroachment permit is issued shall be subject to any utility excavation or other work that must be done at the location of the encroachment by the city or any utility

operating under a city franchise. It shall be the responsibility of the permit holder to remove any or all of the encroachment, if necessary, for such work to proceed. Additionally, should damage to the encroachment occur during such utility excavation or other work, the city or utility operating under a city franchise will not be responsible for the repair or replacement of such encroachment if the encroachment is thereafter allowed by this chapter.

(9) The encroachment for which an encroachment permit is issued shall be subject to any redevelopment, change of use or to meet other needs of the park and recreation department regarding the park property where the encroachment is located, as determined by the council or the board.

(10) The applicant shall be subject to any additional terms, conditions and/or limitations placed upon the existing encroachment and made a part of the encroachment permit by the director, however, the applicant may, upon written request to the director, obtain a hearing before either the director or a designated hearing officer regarding such additional terms and conditions provided the request is received by the director within ten business days from the date of the issuance of the encroachment permit. Any hearing requested shall proceed in accordance with the provisions of section 9.05.080(a) of this Code.

(e) An encroachment permit shall be valid for a term of one year from the date of issuance and must be renewed on an annual basis, with payment of the required fee and subject to all requirements set forth in paragraph (d) of this section. Renewal must be made no later than thirty calendar days following the expiration date of the permit being renewed.

(f) The director is authorized, with the approval of the board, to implement an application process for the encroachment permit required by this section and setting any fees therefor.

(g) An encroachment permit shall be revoked by the director, if any of the following shall occur:

(1) Failure of any holder of an encroachment permit to maintain continued compliance with any of the conditions for obtaining such permit as set forth in paragraph (d) of this section;

(2) Failure of any holder of an encroachment permit to renew said permit within the time limits set forth in paragraph (e) of this section;

(3) The sale or change of ownership of the real property associated with an encroachment permit; or

(4) A determination by the council or the board regarding redevelopment of or changes in the use of the park property where the encroachment is located, in order to meet the needs of the department of park and recreation.

(h) Written notice of the revocation of an encroachment permit by the director shall be provided to the permit holder along with a notice to abate pursuant to the procedure set forth in section 9.05.060 of this Code. The notice shall include the reason for revocation of the encroachment permit and a statement that the recipient may, upon written request to the director, obtain a hearing before either the director or a designated hearing officer, provided the request is received by the director within ten business days from the date of the notice of revocation. Any hearing requested shall proceed in accordance with the provisions of section 9.05.080(a) of this Code. The provisions of the notice to abate shall be stayed pending the hearing on the permit revocation.

(Ord. No. 50-306 § 5, 8-23-16)

Sec. 9.05.050. Existing encroachments not eligible for permit.

If the review of an encroachment in existence at the time of the passage of Ordinance No. 50-306, from which this section is derived, results in a determination by the director that an encroachment permit shall not be issued for the continued existence of the encroachment, a writ-

ten notice to abate shall be sent to the owner and/or occupant of the property upon which the encroachment is located or that is associated with or adjacent to the encroachment, following the process set forth in section 9.05.060 of this Code.
(Ord. No. 50-306 § 6, 8-23-16)

Sec. 9.05.060. Notice to abate.

(a) Whenever any officer or city employee authorized to enforce the provisions of this chapter determines that there has been a violation of any of the provisions of section 9.05.020 of this code, and/or that an encroachment upon park property has occurred, written notice shall be given to the owner and/or occupant of the property upon which the encroachment is located or that is associated with or adjacent to the encroachment. If the violation or encroachment is not associated with any real property other than park property, written notice shall be given to the person committing the violation and/or responsible for maintaining the encroachment.

(b) The notice shall include the following information:

(1) The address and/or legal description of the real property associated with the violation and/or encroachment, if any;

(2) The nature of the violation and/or encroachment, with sufficient information that would reasonably allow the recipient to determine the nature of the violation and to allow for self-abatement;

(3) That the violation and/or encroachment shall be abated by the recipient within a designated time period, not exceeding thirty calendar days from the date of the notice, provided that an extension of one thirty calendar day time period shall be granted to the recipient of the notice to abate provided that the recipient makes such request in writing to the director prior to the expiration of the initial thirty calendar day time period and demonstrates that due diligence is being exercised in abating the violation and/or encroachment;

(4) That the recipient, upon written request to the director, may obtain a hearing before either the director or a designated hearing officer regarding the notice to abate, provided the request is received by the director within ten business days from the date of the notice to abate, which hearing shall proceed in accordance with the provisions of section 9.05.080(a) of this Code;

(5) That failure to comply with the notice to abate may result in the city abating the violation and/or encroachment with the assessment of costs made against any real property associated with the violation and/or encroachment, or by filing an action seeking judgment against the recipient thereof;

(6) That failure to pay such assessments within thirty calendar days of the notice of costs shall result in the filing of a lien against any real property associated with the violation and/or encroachment or the filing of an action seeking judgment against the recipient thereof, or both; and

(7) That such violation is subject to criminal prosecution.

(c) Except as provided by subsection (d), the notice to abate shall be served on the person or persons responsible for the violation and/or encroachment or the owner of any real property associated with the violation and/or encroachment by certified mail, return receipt requested, or by personal service, or if the any real property associated with the violation and/or encroachment is unoccupied and the owner is a nonresident, then by mailing a notice by certified mail, return receipt requested, to the last known address of the owner.

(d) If the intended recipient has failed to accept delivery or otherwise failed to effectuate receipt of the notice to abate sent pursuant to this section, the city may serve the notice to abate by such methods including, but not limited to, door hangers, conspicuously posting the notice to abate on the property, personal notification, or first class mail.

(e) If the notice to abate cannot be conveniently served as set forth in subsections (c) and (d) of this section, service is to be made upon the intended recipient by at least one publication in the official newspaper of the city, such publication to contain the conditions and reasons of the notice to abate.

(f) If an officer or employee authorized to enforce violations of this chapter determines that a violation exists, the officer or employee may issue a notice to appear in municipal court for such violation. No other procedures or notice are required as a prerequisite to the issuance of a notice to appear.
(Ord. No. 50-306 § 7, 8-23-16)

Sec. 9.05.070. Abatement of nuisance by city; notice of costs; assessment and collection.

(a) If the recipient of the notice to abate fails to comply with the terms therein and within the period of time designated in the notice, or fails to comply with the notice after a hearing on the matter, then the city may abate the violation and/or encroachment in a reasonable manner, which may include going upon the real property associated with the violation and/or encroachment. The city shall not be responsible for damage to property due to reasonable methods of gaining entrance onto the property or for damages to property in the reasonable exercise of its duty to the public to abate the violation and/or encroachment. The city may use its own employees or contract for services for such abatement.

(b) If the city takes action to abate the violation, it shall provide a notice of costs to the recipient of the notice to abate. The notice of costs shall be delivered by certified mail, return receipt requested, at the last known mailing address of the recipient; or if the property associated with the violation and/or encroachment is vacant or unoccupied, the notice of costs shall also be posted on the property in a reasonable manner. The recipient shall have thirty calendar days from the date of the notice to make full payment. The notice of cost shall state:

(1) The address or legal description of the property, if any;

(2) The nature of the violation, including relevant ordinances;

(3) The nature of the work performed to abate the violation and/or encroachment;

(4) The costs incurred for the abatement of the violations and/or encroachment in either a lump sum or in itemized form;

(5) That the notice is a demand for payment within thirty calendar days from the date of notice;

(6) That failure to pay the entire amount within thirty calendar days shall allow the city to file a lien against the associated property or to pursue litigation for the recovery of the costs, or both;

(7) That such additional remedies to recover costs shall include additional amounts including additional administrative costs, attorneys' fees when applicable, and interest;

(8) That payment shall be made by check or money order made payable to the City of Wichita, Kansas, with no post-dating of the check, and sent to the address as stated within the notice with a written indication of the purpose for the payment and the address of the property where the violation and/or encroachment occurred. Partial payments will not be accepted and shall be considered as non-payments.

(c) If the payment of costs is not made within the thirty calendar day period, the city may levy a special assessment for such costs against the lot or piece of land associated with the violation and/or encroachment. The city clerk at the time of certifying other city taxes to the county clerk shall certify the aforesaid costs, to be extended by the county clerk on the tax roll of the county against the lot or parcel of ground, and it shall be collected by the county treasurer and paid to the city as other city taxes are collected and paid. Provided further, the city may collect the costs in the manner provided at K.S.A. 12-1,115 and amendments thereto, by bringing an action in the appropriate court as a personal debt. The city may pursue both assessment and collection

at the same time until the full cost, including applicable interest, court costs, attorneys' fees, and any other reasonable costs associated with the action have been paid in full.

(d) Any assessment charged pursuant to this subsection shall be in addition to and not in lieu of any other penalties or remedies provided for in this chapter or any other applicable ordinance of the city and/or law of the state.
(Ord. No. 50-306 § 8, 8-23-16)

Sec. 9.05.080. Hearing by the director, appeals.

(a) If a written request for a hearing is made within the ten business day period as provided in sections 9.05.040(d)(10), 9.05.040(h) and 9.05.060(b)(4) of this chapter, then a hearing shall be scheduled within ten business days before the director or a designated hearing officer. The director or hearing officer shall receive evidence, review the facts relevant to the matter being heard and prepare a written order. The order shall be sent by United States mail addressed to the person requesting the hearing within ten business days of the hearing, unless otherwise stated at the hearing. The order shall describe the relevant facts and provide any specific code provision(s) or written review standard(s) being relied upon and any relevant information as deemed necessary by the director or designated hearing officer. The director or designated hearing officer may approve, overrule or modify the decision or determination that is the topic of the hearing request.

(b) The decision of the director or designated hearing officer may be appealed by a party to the hearing by filing with the city clerk a written notice of appeal within ten business days of the date of the written order of the director or designated hearing officer. The notice of appeal shall specify the name and address of the appellant, the date of the hearing from which the appeal is being taken and shall state a factual basis for the appeal. Upon receipt of a complete and filed notice of appeal, the city clerk shall proceed as follows:

(1) If the appeal involves an encroachment occurring upon, below, over or across park property to which title is held in the name of the board of park commissioners pursuant to section 5 of Charter Ordinance No. 125 of this code and amendments thereto, the notice of appeal should be forwarded by the city clerk to the board president, who shall schedule a hearing before the board at the next regularly scheduled board meeting.

(2) If the appeal involves an encroachment occurring upon, below, over or across park property to which title is held in the name of the city pursuant to section 5 of Charter Ordinance No. 125 of this code and amendments thereto, the city clerk shall schedule a hearing before the council no later than thirty days from the date of the filing of the notice of appeal with the city clerk.

(c) Any appeal shall stay any action regarding the violation and/or encroachment or an encroachment permit until the matter is heard by either the board or the council. The board or the council may approve, overrule or modify the decision of the director or designated hearing officer.

(d) The decision of the board or the council may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the district court shall not stay action regarding the violation and/or encroachment or the encroachment permit or other determination made or imposed by the board or the council.
(Ord. No. 50-306 § 9, 8-23-16)

Sec. 9.05.090. Enforcement—Personnel authorized.

In addition to all law enforcement officers, the following personnel employed by the city shall have the power to enforce the provisions of this chapter:

(1) Director of park and recreation or designee;

(2) All fire department personnel;

(3) Director of public works and utilities or designee; and

(4) Zoning administrator or designee.

(Ord. No. 50-306 § 10, 8-23-16)

Sec. 9.05.100. Penalty for violation.

Any person who is convicted of a violation of any of the provisions of this chapter shall be deemed guilty of a misdemeanor and shall be punished by a fine of not less than $100.00 and not more than $500.00. Each day that any violation of this chapter occurs shall constitute a separate offense and shall be punishable hereinafter as a separate violation. Provided, however, that if upon trial of any person found guilty of a violation of any of the provisions of this chapter it shall appear to the court that the violation and/or encroachment complained of as proscribed in this chapter is continuing, the court shall enter such order as it shall deem appropriate to cause the nuisance to be abated.

(Ord. No. 50-306 § 11, 8-23-16)

Sec. 9.05.110. Violations not exclusive.

Violations of this chapter are in addition to any other violation enumerated within the chapters of this code and in no way limits the penalties, actions or abatement procedures which may be taken by the city for a violation of this title which is also a violation of any other ordinance of the city or statute of the state. Additionally, violations of this chapter shall not limit or impede in any manner the ability of the city to bring an action in the District Court of the Eighteenth Judicial District or any other appropriate court having jurisdiction to enjoin any violation of the provisions of this chapter.

(Ord. No. 50-306 § 12, 8-23-16)

Sec. 9.05.120. Severability.

Should any section, clause, sentence, or phrase of this chapter be found to be unconstitutional or is otherwise held invalid by any court of competent jurisdiction, such invalidity shall not affect the validity of any remaining provisions herein.

(Ord. No. 50-306 § 13, 8-23-16)

CHAPTER 9.08. TREES AND SHRUBS*

Sec. 9.08.000. Definitions.
Sec. 9.08.001. Declaration of policy regarding costs of tree maintenance.
Sec. 9.08.002. Duties of Director of Park and Recreation.
Sec. 9.08.005. Injuring trees on public property.
Sec. 9.08.010. Injuring trees—Consent.
Sec. 9.08.020. Application for permission to alter trees.
Sec. 9.08.030. Duty of person altering; permitting wood, brush, logs, etc., to remain on sidewalk, etc., prohibited.
Sec. 9.08.050. Electric wires, etc.—Temporary removal or shutting-off current in order to alter.
Sec. 9.08.060. Notice to owner to remove or shut off current; duty upon notice—Exception.
Sec. 9.08.070. Tree nuisances declared.
Sec. 9.08.080. Duty of owners of private premises to abate.
Sec. 9.08.090. Notice to remove or abate; contents.
Sec. 9.08.095. Hearings—Right of person aggrieved by service of notices.
Sec. 9.08.098. Sustaining, modifying or withdrawing notices.
Sec. 9.08.100. Failure of occupant or owner of premises to comply with notice to abate or remove.
Sec. 9.08.110. Affixing, fastening, etc., notices, advertisements, placards, etc.
Sec. 9.08.120. Placing stones, cement, etc., near tree trunk.
Sec. 9.08.130. Guards or devices to prevent injury required during erection or repair of buildings, etc.
Sec. 9.08.140. Planting and maintenance: rules and regulations.
Sec. 9.08.150. Abutting property owners on streets and avenues to keep pruned at minimum height.
Sec. 9.08.160. Penalties.

Sec. 9.08.000. Definitions.

The following terms, as used in this chapter, shall have the following meanings:

'*Alter*' means to cut, girdle, prune, destroy, remove or in any manner injure a tree or large shrub.

'*City*' means the City of Wichita.

'*City Council*' means the City Council of the City of Wichita.

'*Dangerous tree*' means any tree, large shrub or part thereof, living or dead, which an officer finds is in such a condition and is located in such a place as to constitute a danger to persons or property in the vicinity of the tree.

'*Dead tree*' means any tree, large shrub or branch which an officer has determined that no part of the tree or branch is living.

'*Director*' means the Director of the Wichita Park and Recreation Department or his or her designee.

'*Diseased* or *infected tree*' means any tree or large shrub which is infected or infested with any tree or plant disease or insect, pest or larvae, which an officer finds that the uncontrolled presence of such disease or infestation constitutes a hazard to or could result in damage to or destruction of other trees in the community.

'*Officer*' means representatives of the Department of Park and Recreation, Office of Central Inspection and Department of Public Works who are designated and authorized to enforce the provisions of this Code.

'*Owner*' means the owner or person in control of the property.

'*Park property*' means all grounds, roadways and land acquired or owned by the City and all grounds, roadways and land owned by the Board of Park Commissioners of the City of Wichita, Kansas, which are designated for use as a park by the City Council.

'*Person*' means individuals, groups, organizations, associations, partnerships, firms and corporations.

'*Public property*' means any dedicated or undedicated public land, streets, parking lots, public spaces and rights-of-way within the City.

'*Public right-of-way*' means the entire width of the area from property line to property line, including the area between the roadway and the abutting private property line.

'*Sidewalk*' means that portion of a street between the curb line or the lateral lines of a roadway and the adjacent property lines intended for use by pedestrians.

*__Editor's note—__Ord. No. 48-824, § 22, adopted September 21, 2010, repealed Ch. 9.08, §§ 9.08.001—9.08.160 in their entirety. Sections 1—21 of said ordinances enacted new provisions to read as herein set out. Formerly said sections pertained to similar subject matter and derived from Ord. No. 25-972, §§ 1—19.

'*Street*' means the entire width between property lines of every way publicly maintained when any part of the area is open to use by the public for purposes of vehicular travel. Such term shall include highways, avenues, boulevards, trafficways, alleys or any other public way for vehicular travel by whatever name.

'*Trees*' means trees, tree materials and large shrubs.
(Ord. No. 48-824, § 1, 9-21-2010)

Sec. 9.08.001. Declaration of policy regarding costs of tree maintenance.

The cost of planting, maintaining, pruning, removal and care of trees in the public rights-of-way shall be the responsibility of the City of Wichita.
(Ord. No. 48-824, § 2, 9-21-2010)

Sec. 9.08.002. Duties of Director of Park and Recreation.

(a) The Director of Park and Recreation is responsible for all maintenance functions relating to trees in the public rights-of-way and on park and public property.

(b) The Director of Parks and Recreation, the Office of Central Inspection and the Wichita Department of Public Works, and their designated representatives shall be responsible for the enforcement of all provisions of this Code.

(c) All officers are hereby authorized to make such investigations, to issue notices, orders and directions as are necessary for the enforcement of the provisions of this chapter.
(Ord. No. 48-824, § 3, 9-21-2010)

Sec. 9.08.005. Injuring trees on public property.

It shall be unlawful for any person to intentionally alter any shade tree, shrub, flower, or other ornamental plant standing or growing, wholly or in part, in or on any park property, street or on any public property of the City.
(Ord. No. 48-824, § 4, 9-21-2010)

Sec. 9.08.010. Injuring trees—Consent.

(a) It shall be unlawful for any person to intentionally alter any tree standing or growing, wholly or in part in or on any street, public right-of-way, or other public property without the consent of the Director.

(b) The provisions of subsection (a) shall not apply to:

(1) The removal of branches which are less than two (2) inches in diameter which are required to be removed to maintain seven (7) feet of clearance above sidewalks and 13.5 feet of clearance above streets; and

(2) The removal of water sprouts, and suckers.
(Ord. No. 48-824, § 5, 9-21-2010)

Sec. 9.08.020. Application for permission to alter trees.

(a) Any person desiring to alter, spray or interfere with any tree, or any branch, root or part thereof, standing or growing, wholly or in part, in any street, or public right-of-way shall first request permission from the Director to do so. If permission is deemed prudent, the Director shall grant such permission.

(b) In the event of a storm, freeze or other environmental event resulting in damage to trees, the adjoining property owner will be allowed to remove broken or damaged branches in the right-of-way without permission from the Director. Disposal of debris generated by the adjoining property owner will be the responsibility of the property owner. Permission from the Director will be required for the removal of an entire tree.
(Ord. No. 48-824, § 6, 9-21-2010)

Sec. 9.08.030. Duty of person altering; permitting wood, brush, logs, etc., to remain on sidewalk, etc., prohibited.

It shall be the duty of any person altering any tree, branch or root referred to in Section 9.08.020, to remove the stump, fill the hole with dirt and clean up and haul away all wood, brush, logs, stumps and other debris resulting from the altering of such tree. No person shall permit any wood,

brush, logs or stumps to remain on any sidewalk, parking or any part of the street after a tree is altered.
(Ord. No. 48-824, § 7, 9-21-2010)

Sec. 9.08.050. Electric wires, etc.—Temporary removal or shutting-off current in order to alter.

It shall be the duty of any person owning or having charge of wires or any other conductors of electricity, which pass through or near trees within the limits of park property, streets, public rights-of-way and public property of the City, to cause such wires to be temporarily removed or the electricity in such wires to be shut off when it is necessary in order to alter or treat any such trees.
(Ord. No. 48-824, § 8, 9-21-2010)

Sec. 9.08.060. Notice to owner to remove or shut off current; duty upon notice—Exception.

When it shall become necessary to shut off the electricity or remove the wires as provided in Section 9.08.050, the Director shall give the owner of such electrical wires, a notice to shut off the electricity or remove the wires. It shall be the duty of the person owning such wires, to, within forty-eight hours from the time of such notice, cause the wires to be temporarily removed or the electricity to be shut off. When the work is completed which required the electricity to be shut off or wires to be removed, the Director shall notify the owner of such wires that the power may be restored. Where such wires are owned by a public utility company, in lieu of removing said wires or shutting off electricity, the Director may authorize the trees to be altered by the utility company under the supervision of the Director at no cost to the City.
(Ord. No. 48-824, § 9, 9-21-2010)

Sec. 9.08.070. Tree nuisances declared.

(a) All dead or broken trees, or branches thereof, within the corporate limits of the City, which have become dangerous, or which are likely to become dangerous to the public safety, or to persons or property within the vicinity of the tree are hereby declared to be and constitute a public nuisance.

(b) Diseased or infested trees within the corporate limits of the City are declared to be a public nuisance.

(c) Dangerous trees within the corporate limits of the City are declared to be a public nuisance.
(Ord. No. 48-824, § 10, 9-21-2010)

Sec. 9.08.080. Duty of owners of private premises to abate.

It shall be the duty of the owners of any private property, upon which any nuisance as described in Section 9.08.070 may be located, to cause the same to be promptly abated by treating or removing any designated tree or trees.
(Ord. No. 48-824, § 11, 9-21-2010)

Sec. 9.08.090. Notice to remove or abate; contents.

It shall be the duty of the Director, or other officer, to serve written notice, by personal service or registered or certified mail, of the existence of any nuisance as provided for in Section 9.08.070, to the owner or occupants of the property upon which the nuisance is situated. The notice shall require that all nuisances, as defined by Section 9.08.070, be promptly removed and abated. The notice shall require that all such nuisances be abated within a designated time period, not exceeding fourteen (14) days from the date of the notice, provided that an extension of one ten (10) day period shall be granted if the owner or agent of the owner of the property demonstrates that due diligence is being exercised in abating the nuisance.
(Ord. No. 48-824, § 12, 9-21-2010)

Sec. 9.08.095. Hearings—Right of person aggrieved by service of notices.

Any person affected by a notice, which has been issued pursuant to Section 9.08.090 who is aggrieved thereby, and who believes the same to be contrary to the policies or regulations of the City, may request and shall be granted an informal hearing on the matter before the Director or his or her designated representative. Such person shall file, in the Department of Parks and Recreation, a written request for such informal hearing and set forth a brief statement of the grounds therefor,

within ten days after the day notice was served. Upon receipt of such request, the Director shall set a time and place for the informal hearing and shall give written notice thereof. At such informal hearing, the individual shall be given an opportunity to be heard and to show why such notice should be modified or withdrawn. The informal hearing shall be commenced not later than ten days after the day on which the request was filed; provided that upon application of the individual, the Director may postpone the date of the informal hearing for a reasonable time beyond such ten day period, if in his or her judgment the individual has submitted a good and sufficient reason for such postponement.
(Ord. No. 48-824, § 13, 9-21-2010)

Sec. 9.08.098. Sustaining, modifying or withdrawing notices.

After an informal hearing as provided for in Section 9.08.095, the Director or his or her designated representative may sustain, modify or withdraw the notice, depending upon his findings as to whether the provisions of this chapter and of the rules and regulations adopted pursuant thereto have been complied with. If the Director or his or her designated representative sustains or modifies such notice, it shall be deemed to be an order.
(Ord. No. 48-824, § 14, 9-21-2010)

Sec. 9.08.100. Failure of occupant or owner of premises to comply with notice to abate or remove.

(a) If the occupant or owner of the private property fails or refuses to abate such nuisance within the time specified in the notice, it shall be the duty of the Director or other officer authorized to enforce this code, to cause such nuisance to be abated.

(b) If the City takes action to abate the violation, it shall provide a Notice of Costs to the property owner, representative, or tenant. The Notice of Costs shall be delivered by certified mail, return receipt requested, at the last known mailing address; or if the property is vacant or unoccupied, the Notice of Costs shall also be posted on the property in a reasonable manner. The recipient shall have thirty (30) days from the date of the Notice to make full payment. The Notice of Cost shall state:

(1) The common or legal description of the property, or both;

(2) The nature of the violation, including relevant ordinances;

(3) The nature of the work performed to abate the violation;

(4) The costs incurred for the abatement of the violations in either a lump sum or in itemized form;

(5) That the notice is a demand for payment within thirty days from the date of notice;

(6) That failure to pay the entire amount within thirty days shall allow the City to file a tax lien against the property or to pursue litigation for the recovery of the costs, or both;

(7) That such additional remedies to recover costs shall include additional amounts including additional administrative costs, attorneys' fees when applicable, and interest;

(8) That payment shall be made by check or money order made payable to the City of Wichita, Kansas, with no post-dating of the check, and sent to the address as stated within the notice with a written indication of the purpose for the payment and the address of the property where the violations occurred. Partial payments will not be accepted and shall be considered as non-payments.

(c) If the payment of costs is not made within the thirty-day period, the City may levy a special assessment for such costs against the lot or piece of land. The City Clerk, at the time of certifying other City taxes to the County Clerk, shall certify the aforesaid costs, and the County Clerk shall extend the same on the tax roll of the county against the lot or parcel of ground. The costs shall be collected by the County Treasurer and paid to the City as other City taxes are collected and paid. Provided further, the City may collect the costs in the manner provided at K.S.A. 12-1,115,

as amended, by bringing an action in the appropriate court as a personal debt. The City may pursue both assessment and collection at the same time until the full cost, including applicable interests, court costs, attorney's fees, and administrative costs have been paid in full.
(Ord. No. 48-824, § 15, 9-21-2010)

Sec. 9.08.110. Affixing, fastening, etc., notices, advertisements, placards, etc.

No person shall affix, fasten or tie any notice, advertisement, placard, wire, cable or anything to any tree growing wholly or in part in or on any public street rights-of-way or park, or public property without the consent of the Director.
(Ord. No. 48-824, § 16, 9-21-2010)

Sec. 9.08.120. Placing stones, cement, etc., near tree trunk.

It shall be unlawful for any person to place or maintain upon the ground within the public street, public rights-of-way or park property of the City, any stone, cement or other substance which shall impede the free passage of water and air to the roots of any growing tree therein, without leaving an open space of ground outside the trunk of such tree in an area not less than sixteen (16) square feet, or approximately four (4) feet by four (4) feet without first having secured the consent of the Director to do so.
(Ord. No. 48-824, § 17, 9-21-2010)

Sec. 9.08.130. Guards or devices to prevent injury required during erection or repair of buildings, etc.

In the erection or repair of any building or structure in the City, the owner shall place or cause to be placed guards or devices around all nearby trees within the streets, public rights-of-way, or park or public property of the City, as shall prevent injury to such trees.
(Ord. No. 48-824, § 18, 9-21-2010)

Sec. 9.08.140. Planting and maintenance: rules and regulations.

The Director shall determine when and where trees shall be planted on park property, public rights-of-way and streets, the kind of trees and all matters relating to the planting and maintenance thereof within the city. It shall be the duty of the Director to care for, maintain and protect trees planted upon the streets, public property and public rights-of-way and to make all rules and regulations necessary therefor.
(Ord. No. 48-824, § 19, 9-21-2010)

Sec. 9.08.150. Abutting property owners on streets and avenues to keep pruned at minimum height.

It shall be the duty of all persons owning or controlling any real estate abutting or adjoining any street to prune the trees on their premises so that the limbs and undergrowth shall not hang or extend down over the sidewalk or street abutting such property less than seven feet from the level of such sidewalk or 13.5 feet from such street as required by Section 11.22.020 of the Code of the City of Wichita.
(Ord. No. 48-824, § 20, 9-21-2010)

Sec. 9.08.160. Penalties.

(a) Any person violating any of the provisions of this chapter shall, upon conviction thereof, be punished by a fine of not more than two hundred dollars or be imprisoned for not more than thirty days or be so fined and imprisoned at the discretion of the court.

(b) In addition to the penalty set forth above, the court may order the defendant to perform the necessary labor to repair, remove or replace trees damaged by that person, or to pay any costs incurred by the Director related to the repair or replacement of trees damaged by that person.
(Ord. No. 48-824, § 21, 9-21-2010)

CHAPTER 9.12. CENTURY II*

Sec. 9.12.010. Authority.
Sec. 9.12.020. Rental charges.
Sec. 9.12.030. Lease agreement.
Sec. 9.12.040. Payment of fees.
Sec. 9.12.050. Termination of lease due to casualty.
Sec. 9.12.060. Alcoholic beverages.
Sec. 9.12.070. Subleases.
Sec. 9.12.080. Objectionable performance or persons.
Sec. 9.12.090. Public liability and property insurance.
Sec. 9.12.100. Observance of law.
Sec. 9.12.110. Invalidity of part.
Sec. 9.12.120. Permit parking for century ii events.

Sec. 9.12.010. Authority.

(1) The Division of Arts and Cultural Services Manager or his/her designee shall have full responsibility for the operation of the Century II Performing Arts and Convention Center (Century II facility), and shall have authority to act on behalf of the City of Wichita, Kansas in all matters pertaining to the Century II facility.

(2) Whenever the words "prior written approval" are used in this chapter, they refer to the approval of the Division of Arts and Cultural Services Manager or his/her designee.
(Ord. No. 49-308, § 1, 7-17-2012)

Sec. 9.12.020. Rental charges.

(1) Any person using the Century II facility shall pay for such use the amount set forth in the rental schedule established by the City Council by resolution; provided, however, the Division of Arts and Cultural Services Manager or his/her designee may, at his/her discretion, negotiate special rates when such rates are in the best interest of the Century II facility and the City of Wichita. The Division of Arts and Cultural Services Manager or his/her designee shall determine the classification of any use of the Century II facility for the purpose of setting the rental charge for such use, and his/her decision in this regard shall be final.

(2) Base Rental. The base rental charge shall include as regular services normal heat or air conditioning, general overhead lighting, one set-up per contracted event, sound equipment associated with each specific hall, and routine janitorial services.
(Ord. No. 49-308, § 2, 7-17-2012)

Sec. 9.12.030. Lease agreement.

(1) All leases shall be in writing on the City's standard form lease or upon terms negotiated by the City and executed on behalf of the City by the Division of Arts and Cultural Services Manager or his/her designee. The required fees shall be paid as scheduled in the lease, and as more specifically set out in City Code Section 9.12.040. No verbal agreement shall be binding on either party.

(2) A lessee, by entering into a lease agreement, thereby waives any claim against and shall indemnify, save and hold harmless the City and its elected officials and employees against any loss, claim, or judgment for injury to persons or damage to property occasioned by, arising from or in connection with the use of the premises by lessee, unless resulting from the gross and wanton negligence of Century II facility or its employees in the operation or maintenance of the premises, proximately causing such injury or damage.

(3) The lessee may be required, in the discretion of the Division of Arts and Cultural Services Manager or his/her designee, to have financial backing in escrow or cash surety for rentals, total ticket refund and stagehand expenses.

(4) Prior written approval is required for any performance involving the invitation of members of the audience to the stage area or dressing rooms.

(5) Lessee is responsible to make reasonable accommodations for ADA accessibility relating to lessee's event, including the distribution, operation and collection of assisted listening devices. Each party agrees to indemnify and hold harmless the other party from any liability, penalty, judgment, or claims including attorney fees paid or awarded, whether by judgment or alternative dispute resolution method, and whether civil, administrative or otherwise, which may arise or

*__Editor's note—__Ord. No. 49-308, §§ 1—13, adopted July 17, 2012, repealed the former Ch. 9.12, §§ 9.12.010—9.12.130, and enacted new §§ 9.12.010—9.12.120 as set out herein. The former Ch. 9.12 pertained to similar subject matter and derived from Ord. No. 42-081, §§ 1—15; Ord. No. 47-051, § 6, 6-20-2006.

be imposed in connection with that party's failure to comply with provision of the ADA or its enforcing regulations.

(6) Doors will be opened to the public a minimum of thirty (30) minutes before the advertised event time according to times established with lessee. If conditions warrant, doors will be opened earlier than planned, as determined by the Division of Arts and Cultural Services Manager or his/her designee. In no instance will the judgment of the Division of Arts and Cultural Services Manager or his/her designee be superseded by a promoter, director, the performers or any outside agency.
(Ord. No. 49-308, § 3, 7-17-2012)

Sec. 9.12.040. Payment of fees.

(1) Unless otherwise negotiated the following applies to all rentals:

Rental fees are due and payable in advance of the use of the Century II facility. To reserve a tentative booking date, a lease agreement must be fully executed. Upon execution of a lease agreement, a deposit of ten percent (10%) or more of the rental shall be paid. The balance of the rental must be paid no later than thirty (30) days in advance of the use of the Century II facility, or upon earlier receipt of an invoice as required to maintain the definite booking date. Deposits on any event are proof of sincerity by the lessee that an event will take place and the lessee is not speculating. Therefore, deposits are not returned on any event canceled except at the discretion of the Division of Arts and Cultural Services Manager or his/her designee.

(2) If compliance with the lease is deemed by the City impossible due to what is commonly understood to be an "Act of God" or if a curfew is proclaimed by the City, or if the City otherwise deems it necessary to protect life and property, then the advance deposit may be returned to the lessee and the lease canceled, with no detriment resulting to the City.

(3) Definite bookings are subject to alteration by majority vote of the City Council, which maintains ultimate control over use of the Century II facility.
(Ord. No. 49-308, § 4, 7-17-2012)

Sec. 9.12.050. Termination of lease due to casualty.

In case of fire, casualty, civil disturbances, or other unforeseen occurrence which the City deems to have made the fulfillment of a lease by the City impossible, said lease shall be immediately terminated; and in such case, rental charges shall be refunded for the time the premises were not actually used. The lessee shall waive any claim for damages in the event of such termination.
(Ord. No. 49-308, § 5, 7-17-2012)

Sec. 9.12.060. Alcoholic beverages.

The use of alcoholic beverages will be allowed only when used in conformance with all state laws and City ordinances and in accordance with the "Policy Regarding Alcoholic Beverages" on file in the Century II facility administrative office.
(Ord. No. 49-308, § 6, 7-17-2012)

Sec. 9.12.070. Subleases.

No lessee shall assign any lease on the Century II facility, or any portion thereof, or any rights under said lease, without prior written approval.
(Ord. No. 49-308, § 7, 7-17-2012)

Sec. 9.12.080. Objectionable performance or persons.

Any use of the Century II facility which is contrary to sound public policy shall be denied and any lease previously consummated may be revoked for such cause. Any person whose conduct is objectionable, disorderly or disruptive to the use of the Century II facility shall be refused entrance or shall be ejected from the premises. A further, but not exclusive, definition of "objectionable" shall mean the producing, presenting, directing or participating in an obscene performance; such performances may be discontinued at any time by the City and the lessee shall hold the City harmless from any claim for such actions. This section shall not be interpreted or applied or enforced to impede or chill First Amendment expression.
(Ord. No. 49-308, § 8, 7-17-2012)

Sec. 9.12.090. Public liability and property insurance.

The lessee shall furnish a public liability insurance policy issued by an insurance company authorized to do business in the State of Kansas, in which the lessee is named insured and the "City of Wichita and its representatives" are named as additional insureds, for general liability insurance in a sum not less than five hundred thousand dollars covering bodily injury or death for the benefit of one or more persons on account of any one accident, together with property damage liability insurance in a sum not less than five hundred thousand dollars, or combined single limit coverage in that amount for both bodily injury and property damage. Said policy shall be written for the entire time lessee has contracted to use the Century II facility and shall be in force as required by the lease agreement. Additions or reductions of insurance coverage from this requirement in a manner which adequately protects the public interest may be directed or authorized by the Division of Arts and Cultural Services Manager or his/her designee.
(Ord. No. 49-308, § 9, 7-17-2012)

Sec. 9.12.100. Observance of law.

All lessees of the Century II facility shall comply with all the laws of the United States and of the State of Kansas, with all ordinances of the City of Wichita and any Century II facility rules and regulations adopted or authorized by the City Council. Violations by the lessee may result in the City cancelling the lease and discontinuing lessee's use of the Century II facility for any other purpose until lessee provides assurance of its continuing future compliance.
(Ord. No. 49-308, § 10, 7-17-2012)

Sec. 9.12.110. Invalidity of part.

Should any court declare any section, clause or provision of this chapter to be unconstitutional such decision shall affect only such section, clause or provision so declared unconstitutional and shall not affect any other section, clause or provision of this chapter.
(Ord. No. 49-308, § 11, 7-17-2012)

Sec. 9.12.120. Permit parking for century ii events.

Permit parking for Century II events may be available in conjunction with a contract for Century II space rental. The provisions controlling the availability and use of such parking will be governed by the Lease Agreement for any given event, subject to the authority granted in City Code section 11.68.111.
(Ord. No. 49-308, § 12, 7-17-2012)

CHAPTER 9.20. RESERVED*

*__Editor's note—__Ord. No. 49-273, § 88, adopted May 22, 2012, repealed Ch. 9.20 in its entirety. Formerly said chapter pertained to aircraft and airports and derived from Ord. No. 14-401, §§ 1—6. The user's attention is directed to Ch. 9.35 for similar provisions.

CHAPTER 9.22. RESERVED*

*__Editor's note—__Ord. No. 49-273, § 88, adopted May 22, 2012, repealed Ch. 9.22 in its entirety. Formerly said chapter pertained to traffic rules and regulations at airport and derived from Ord. No. 30-036, §s; 1—6. The user's attention is directed to Ch. 9.35 for similar provisions.

CHAPTER 9.24. HELICOPTERS AND HELISTOPS

Sec. 9.24.010. Definitions.
Sec. 9.24.020. Location of heliports.
Sec. 9.24.030. Heliport imaginary surfaces.
Sec. 9.24.040. Licensing.
Sec. 9.24.050. Application for license.
Sec. 9.24.060. Change in license conditions.
Sec. 9.24.070. License renewal.
Sec. 9.24.080. License for a temporary heliport.
Sec. 9.24.090. Heliport design standards.
Sec. 9.24.100. Insurance required.
Sec. 9.24.110. Operations.
Sec. 9.24.120. Inspection.
Sec. 9.24.130. Revocation of license.
Sec. 9.24.140. Variances.
Sec. 9.24.150. Penalty.
Sec. 9.24.160. Severability.

Sec. 9.24.010. Definitions.

The following words and phrases, when used in this chapter, shall have the meaning respectively ascribed to them in this section:

(A) "Approach/takeoff path" means the flight track helicopters follow when landing at or taking off from a heliport.

(B) "FAA" means the Federal Aviation Administration.

(C) "Final approach and takeoff area (FATO)" means a defined area over which the final phase of the approach to a hover, or a landing, is completed and from which the takeoff is initiated.

(D) "Final approach reference area (FARA)" means a one-hundred-fifty-foot wide by at least one-hundred-fifty-foot long obstacle-free area with its center aligned on the final approach course. It is located at the end of a precision instrument FATO.

(E) "Helicopter" means a rotary wing aircraft that depends principally upon the lift generated by engine-driven rotors rotating on a substantially vertical axis for its primary means of propulsion.

(F) "Heliport" means the area of land, water, or structure, including any building or facilities thereon, used or intended to be used for the landing and takeoff of helicopters.

(G) "Heliport, hospital" means a heliport limited to serving helicopters engaged in air ambulance, or other hospital related functions.

(H) "Heliport, temporary" means a heliport that is a ground level area that is intended to be used on an infrequent basis or one time special events.

(I) "Heliport elevation" means the elevation, expressed as the distance above mean sea level, of the highest point in the final approach and takeoff area (FATO) or the final approach reference area (FARA).

(J) "Heliport imaginary surfaces" means the imaginary planes, centered about the FATO and the approach/takeoff path, that identify the objects to be evaluated to determine whether the objects should be removed, lowered, and or marked or lighted.

(K) "Hospital" means any building or structure licensed by the state and used for the care of the sick or injured.

(L) "Medical emergency site" means an unprepared site at or near the scene of an accident or similar medical emergency on which a helicopter may land to pick up a patient in order to provide emergency medical transport.

(M) "Obstruction" means any object, including a parked helicopter, exceeding the obstruction standards specified by Federal Aviation Regulation Part 77, objects Affecting Navigable Airspace, Subpart C, Obstruction Standards.

(N) "Operation" means a takeoff and landing by helicopter. A touch and go movement is counted as one operation.

(O) "Protection zone" means an area off the end of the FATO and under the approach/takeoff path to enhance the protection of people and property on the ground.

(P) "Residence" means any building or structure containing habitable rooms for

nontransient occupancy, designed primarily for living, sleeping, cooking and eating, which is being used as a dwelling for residential purposes, whether single-family or multifamily. Hotels, motels, boarding houses, nursing homes, hospitals, nursery schools and child care facilities shall not be considered residences. A structure located on a lot or tract of land used as a heliport shall not be considered as a residence within the terms of this definition.

(Q) "Safety area" means a defined area on a heliport surrounding the FATO which is free of objects, other than those required for air navigation purposes, and intended to reduce the risk of damage to helicopters accidentally diverging from the FATO.

(Ord. No. 43-712 § 1)

Sec. 9.24.020. Location of heliports.

(A) No heliport, other than a temporary heliport may be located within seven hundred fifty feet of a church, school or residence. All measurements made hereunder shall be in a straight line horizontally from the center of the touchdown pad of the heliport to the property line of the church, school or residence. If a heliport is located on a building, the measurement shall be the sum of the following:

(1) The number of feet the heliport is located above the ground; and

(2) The number of feet from a point on ground level where a vertical line from the center of the touchdown pad of the heliport strikes the ground to the property line of a church, school or residence.

(B) No heliport, other than a temporary heliport, shall be located within two thousand four hundred feet of any other heliport. All measurements made hereunder shall be made in a straight line horizontally from the center of touchdown pad of the heliport.

(C) Any temporary heliport shall be at ground level and comply with the minimum design standards set by the Wichita fire chief.

(D) Any licensed heliport existing on the date of the adoption of this ordinance shall not be required to meet the standard of this section, so long as it remains continuously licensed.

(Ord. No. 43-712 § 2)

Sec. 9.24.030. Heliport imaginary surfaces.

(A) Primary Surface. Each heliport shall have a primary surface, the area that coincides in size and shape with the designated takeoff and landing area of a heliport. This surface is a horizontal plane at the elevation of the established heliport elevation and shall be free of any obstruction.

(B) Approach Surface. Each heliport shall have an approach surface that begins at each end of the primary surface with the same width as the primary surface and extend outward and upward for a horizontal distance of four thousand feet where its width is five hundred feet. Each heliport shall provide at least two approach zones, which approach zones shall have an intersecting arc of not less than ninety degrees, and shall have an obstruction free glide slope of one foot vertically to eight feet horizontally. Curved and steeper approach surfaces may be allowed providing the operational capabilities of the using aircraft are not exceeded.

(C) Transitional Surfaces. Each heliport shall have a transitional surface that extends outward and upward from the lateral boundaries of the heliport primary surface and from the approach surfaces at a slope of two-to-one for a distance of two hundred fifty feet measured horizontally from the centerline of the primary and approach surfaces. No obstruction to air navigation shall be permitted within the transitional surface. Curved and steeper transitional surfaces may be allowed providing the operational capabilities of the using aircraft are not exceeded.

(Ord. No. 43-712 § 3)

Sec. 9.24.040. Licensing.

(A) License Required. It is unlawful for the owner, manager or operator of any property in the City of Wichita to install, maintain, or operate thereon a heliport as defined in this chapter, without first having obtained a license under this chapter.

(B) Heliport Fee. The fee for a heliport license shall be five hundred dollars. Such license shall be valid for a period of five years from date of issuance unless sooner revoked or terminated.

(C) Temporary Heliport Fee. The fee for a temporary heliport license under Section 9.24.080 shall be fifty dollars.

(D) No Refund of Fees. The applicant for a license or holder of a license shall not be entitled to a refund of any fee paid where the license is revoked or any change of status occurs.

(E) Exemptions.

(1) This chapter shall not apply in any instances to the operation of helicopters for law enforcement or public safety purposes when such helicopters are under the control or authority of the Wichita police departments, fire departments, and emergency medical services or any government entity. Any helicopter being used by the Wichita police departments, fire departments, and emergency medical services shall be exempt from the application of this chapter.

(2) No heliport license is required for a medical emergency site.

(F) Transferability. A license issued pursuant to the terms of this chapter may be sold, transferred or assigned, provided that the licensee gives written notice to the Wichita fire chief at least thirty days prior to any sale, transfer or assignment, and further provided that such license is in compliance with the terms and conditions of this chapter.
(Ord. No. 43-712 § 4)

Sec. 9.24.050. Application for license.

(A) An application for license required by Section 9.24.040, except for licenses for temporary heliports or variances, shall be obtained from the licensing office of the city treasurer. Such application shall be signed by the owner, manager, or operator of the property and shall be submitted in such form as the Wichita fire chief may prescribes. The application shall contain spaces to indicate approval by the Federal Aviation Administration, airport authority, metropolitan area planning commission, and the Wichita fire chief. Attached letters of approval from the FAA may be substituted as signatures of approval on the application form.

The application shall be accompanied by information requested by this chapter and shall include the following:

(1) Evidence of compliance with the Unified Zoning Code;

(2) A site plan;

(3) Map showing intended approach and takeoff routes;

(4) FAA letter of airspace determination;

(5) FAA statement of no objection to approach and takeoff routes;

(6) Number of operations daily for each type of helicopter listed;

(7) Days and hours of operations;

(8) Description of fueling facilities anticipated at the heliport;

(9) Name of insurance carrier and proof of insurance as required by this chapter;

(10) Evidence that existing airports/heliports are not negatively impacted by the application;

(11) Any other drawings, descriptive data, and inspection reports reasonably required to verify compliance with the provisions of this chapter, the city fire code, and any other applicable city, state or federal requirements.

(B) Upon review of the license application for compliance with the requirements of this chapter, the fire chief may grant the license, grant the license with conditions, or deny the license. Conditions may be imposed upon the license which include, but are not limited to, a prohibition on fueling when determined to be necessary as protection for the public safety.

(C) Any applicant may appeal a denial of a license or any condition placed on a license to the city council by a filing written notice with the city clerk within twenty days of such denial or conditions. The city clerk shall forward the record

reviewed by the fire chief and any additional information provided by the licensee to the city council. The city council shall review the record so presented and either affirm or reverse the action of the fire chief.
(Ord. No. 43-712 § 5)

Sec. 9.24.060. Change in license conditions.

Any change which affects or alters the terms and conditions of a heliport license pertaining to the number of daily operations for each type of helicopter listed, days and hours of operation, fueling facilities, or the relocation of the touchdown pad shall be submitted to the Wichita fire chief for approval before such changes in the license are effective.
(Ord. No. 43-712 § 6)

Sec. 9.24.070. License renewal.

(A) A heliport license granted under the provisions of this chapter may be renewed for an additional five-year term on or before the expiration date of the current license.

(B) Each licensee desiring to renew its license shall make application on forms provided by the Wichita fire chief at least sixty days prior to the expiration date of the license.

(C) The Wichita fire chief shall order inspections of the facility for compliance with this chapter. Upon successful completion of the inspection, the license shall be renewed.
(Ord. No. 43-712 § 7)

Sec. 9.24.080. License for a temporary heliport.

Any applicant desiring a temporary license for operation of a temporary heliport as provided by Section 9.24.040, may make an application for such license to the Wichita fire chief in such form and upon such terms as the Wichita fire chief may prescribe.

Prior to issuance of such license, the Wichita fire chief shall make any safety inspections which are necessary. The Wichita fire chief shall have the authority to establish minimum design standards for temporary heliports, provided that such standards are not inconsistent with any applicable city, state or federal standards. The City of Wichita police and fire departments shall be notified prior to issuance of a temporary heliport license. In no case will a temporary license be issued until the sites have been evaluated for safety hazards and community impact. The license shall state the expiration date, which shall not exceed one year from the date of issuance.

Such application shall be signed by the owner, manager, or operator of the property. The application shall be accompanied by information requested by this chapter and shall include the following:

(1) Reasons why a temporary heliport is being requested instead of requesting a permanent heliport;

(2) Period of time for which the temporary license is requested;

(3) A site plan;

(4) Map showing intended approach and takeoff routes;

(5) Number of operations daily for each type of heliport listed;

(6) Days and hours of operation;

(7) Name of insurance carrier and proof of insurance as required by this chapter;

(8) FAA letter of airspace determinations;

(9) FAA statement of no objection to approach and departure routes;

(10) Any other drawings, descriptive data, and inspection reports reasonably required to verify compliance with the provisions of this chapter, the city fire code, and any other applicable city, state or federal requirements.

(Ord. No. 43-712 § 8)

Sec. 9.24.090. Heliport design standards.

Heliport (public use, private use, hospital, temporary) design standards required under this chapter will coincide with the U.S. Department of Transportation, Federal Aviation Administration, "Heliport Design-Advisory Circular 150/5390-2A," as may be amended from time to time. Fire

safety standards required under this chapter in the then existing National Fire Protection Association, Standards for Heliports—NFPA 418.
(Ord. No. 43-712 § 9)

Sec. 9.24.100. Insurance required.

(A) Any persons licensed to operate and maintain a heliport shall carry or cause to be carried insurance insuring against all liabilities, judgments, costs, damages and expenses which may accrue against, be charged to, or recovered from licensee by reason or on account of damages to the property of, injury to or death of any person arising from the use and occupancy of and operations at the heliport by licensee or others. The city shall be named as an additional insured on such policy or policies to the extent of its maximum liability exposure under the terms of the Kansas Tort Claims Act.

(B) The licensee shall carry and keep in force the following insurance coverage in at least the amounts set out hereafter:

Comprehensive public liability insurance in the amount of at least two thousand dollars per accident.

Comprehensive property damage insurance in the amount of at least one thousand dollars per accident.

Such policies of insurance shall be with insurers authorized to do business in the State of Kansas.

(C) Such insurance coverage shall not be required of a licensed heliport during any periods of time that such heliport has temporarily discontinued use as a heliport, so long as the license has notified the licensee collector of such temporary discontinuance of use. Such notification and lack of insurance shall not prevent renewal of the license for such heliport, but the heliport shall not be used for any helicopter operations until the insurance required by this section has been filed with the city clerk.
(Ord. No. 45-521 § 1; Ord. No. 43-712 § 10)

Sec. 9.24.110. Operations.

(A) It is unlawful for any individual to operate or maintain a heliport in an unsafe condition, to permit reckless and unsafe flight operations in conjunction with the use of such heliport or to operate or maintain said heliport in violation of this chapter, or state or federal laws thereto pertaining.

(B) It is unlawful for any individual controlling or operating a heliport upon a structure or structures to allow a helicopter to remain at such heliport for a period of more than forty-eight continuous hours, except for those heliports located at a hospital.

(C) All buildings structures or ground areas used as a heliport shall be maintained in a safe and sanitary condition. All equipment or machinery required for a building or structure or ground level area when erected, altered or repaired, shall be maintained in good working order. The owner, manager, or operator shall be responsible for maintenance of all buildings, structures or ground area used as landing areas by helicopters.

(D) No helicopter shall land at a heliport within the city limits unless the pilot is registered as a licensed pilot with the FAA.

(E) It shall be unlawful for any person to take off or land any helicopter within the city limits at any point, except at airports or heliports for which a license has been issued under this chapter.
(Ord. No. 43-712 § 11)

Sec. 9.24.120. Inspection.

The Wichita fire chief shall have the authority to make periodic inspections of heliports to see that all requirements of license are met and complied with.
(Ord. No. 43-712 § 12)

Sec. 9.24.130. Revocation of license.

(A) The Wichita fire chief may revoke any license issued under this chapter, upon written notification, if the Fire Chief determines after investigation that:

(1) Alteration of the physical profile of the area surrounding a heliport renders its continued operation unsafe; or

(2) The insurance required by Section 9.24.100 has been canceled or suspended; or

(3) There is a violation of any of the license conditions; or

(4) There is a violation of any provision of this chapter.

(B) The licensee may appeal any license revocation to the city council by filing notice of the appeal with the city clerk within twenty days of the fire chief's decision. The city clerk shall forward the record reviewed by the fire chief and any additional information provided by the licensee to the city council. The city council shall review the record so presented and either affirm or reverse the action of the fire chief.
(Ord. No. 43-712 § 13)

Sec. 9.24.140. Variances.

(A) The Wichita fire chief is hereby granted authority to authorize in specific cases a variance from the specific terms of this chapter which will not be contrary to the public interest and where, owing to special conditions, a literal enforcement of the provisions of this chapter will result in unnecessary hardship, and provided that the spirit of this chapter shall be observed, public safety and welfare secured, and substantial justice done.

(B) The determination by the Wichita fire chief for the grant, grant with conditions or denial of the variance shall be in writing. Applications for variances shall be in writing and on forms provided by the fire chief.

(C) The applicant may appeal any determination on a variance to the city council by filing notice of the appeal with the city clerk within twenty days of the fire chief's decision. The city clerk shall forward the record reviewed by the fire chief and any additional information provided by the applicant to the city council. The city council shall review the record so presented and either affirm or reverse the action of the fire chief.
(Ord. No. 43-712 § 14)

Sec. 9.24.150. Penalty.

Any person who owns, manages, or operates a heliport in violation of the provisions of this chapter, in violation of a license granted under this chapter, or without a license when a license is required by this chapter, or who operates a helicopter in violation of this chapter shall be deemed guilty of a misdemeanor and upon conviction shall be punished by a fine of not more than one thousand dollars. Each day that any violation of this chapter continues shall constitute a separate offense and shall be punishable hereunder as a separate violation.

In addition to the penalty described in this section, the city may seek revocation of a license as further provided in this chapter or such equitable relief as may be determined by the court.
(Ord. No. 43-712 § 15)

Sec. 9.24.160. Severability.

If any section, subsection, sentence, clause, phrase, or portion of this chapter is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portions shall be deemed separate, distinct and independent provisions and such holding shall not affect the validity of the remaining portions of this chapter.
(Ord. No. 43-712 § 16)

CHAPTER 9.27. BOATING REGULATIONS ON THE LITTLE ARKANSAS RIVER

Sec. 9.27.010. Rules and regulations designated by chapter.
Sec. 9.27.020. Federal and state boating regulations.
Sec. 9.27.030. Definitions.
Sec. 9.27.040. Direction of traffic.
Sec. 9.27.050. Passing—Right-of-way.
Sec. 9.27.060. Central Avenue dam.
Sec. 9.27.070. Business of supplying boats.
Sec. 9.27.080. Boats for hire—Soliciting.
Sec. 9.27.090. Shining lights upon water craft.
Sec. 9.27.100. Tying at dock.
Sec. 9.27.110. Tying—Where prohibited.
Sec. 9.27.120. Speed limit.
Sec. 9.27.130. Docking upon signal of police.
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Sec. 9.27.160. Authorized loading at ramps, courtesy docks and loading areas.
Sec. 9.27.170. Reckless navigation.
Sec. 9.27.180. Throwing objects.
Sec. 9.27.190. Overloading.
Sec. 9.27.200. High water level.
Sec. 9.27.210. Power boats—Written permission required.
Sec. 9.27.220. Power boating—State registration.
Sec. 9.27.230. Certain boats confined to certain areas.
Sec. 9.27.240. Murdock bridge.
Sec. 9.27.250. Violation.
Sec. 9.27.260. Written consent—Procedure.

Sec. 9.27.010. Rules and regulations designated by chapter.

From and after the passage of this chapter, the use, operation, launching and docking of all water craft in and upon the Little Arkansas River, from the concrete dam near Central Avenue to the city limits, shall be governed by the following rules and regulations as set forth in this chapter.
(Ord. No. 41-435 § 1)

Sec. 9.27.020. Federal and state boating regulations.

All federal and state regulations pertaining to boats, boat equipment, boating activities, safety and safety equipment or any other water craft or water craft equipment shall be in place and effective for all water craft activities and water craft operating in and upon the Little Arkansas River, from the concrete dam near Central Avenue to the city limits. All other federal and state laws and regulations pertaining to boats, boat equipment, boating activities, safety and safety equipment or any other water craft or water craft equipment are incorporated herein and made a part hereof by reference. In the event federal and state laws and regulations are silent upon a matter addressed by this chapter, then the rules, regulations and restrictions herein shall control. In the event a federal or state law or regulation is enacted or implemented which speaks to an issue not addressed by this chapter, or which supersedes any of the provisions herein, then the federal or state law or regulation shall control.
(Ord. No. 41-435 § 2)

Sec. 9.27.030. Definitions.

For the purposes of this chapter, the following words and phrases used herein shall have the following meanings unless otherwise clearly indicated by the context:

(a) "Water craft" shall mean any row boat, canoe, power boat, paddle boat, electrically powered boat, sail craft or boat of any type, and shall include personal watercraft.

(b) "Power boat" shall mean any water craft powered by a combustible engine.

(c) "Aquaplaning" shall mean driving and/or riding in a power boat for pleasure.

(d) "Personal watercraft" shall mean those water craft commonly referred to as "jet skis" or "water bikes."

(e) "No wake speed" shall mean five miles per hour or less.
(Ord. No. 41-435 § 3)

Sec. 9.27.040. Direction of traffic.

All operation of water craft in or upon the Little Arkansas River shall be parallel to the banks of the river, except that cross-stream traffic shall be permitted for the purpose of turning to go in the opposite direction.
(Ord. No. 41-435 § 4)

Sec. 9.27.050. Passing—Right-of-way.

When passing one another from opposite directions, water craft operating in or upon the Little Arkansas River shall move to the right of the

approaching water craft. Any such water craft going in the same direction as another water craft and desiring to overtake and pass must yield the right-of-way to the slower water craft.
(Ord. No. 41-435 § 5)

Sec. 9.27.060. Central Avenue dam.

It is unlawful to operate any water craft in or upon the Little Arkansas River within one hundred fifty (150) feet of the Central Avenue dam, or between the "falls" area and the Central Avenue dam.
(Ord. No. 41-435 § 6)

Sec. 9.27.070. Business of supplying boats.

No person, firm or corporation shall operate a concession renting any row boats, canoes, power boats or other water craft to the public for use upon the Big Arkansas River and Bank Area without written permission of the city.
(Ord. No. 41-435 § 7)

Sec. 9.27.080. Boats for hire—Soliciting.

It is unlawful for any person, firm or corporation operating any water craft in or upon the Little Arkansas River for hire, or who accepts a fee, donation, contribution or remuneration of any kind, to solicit, pick up or discharge passengers from property under the ownership, jurisdiction or control of the city or the board of park commissioners of the city without written permission from the city.
(Ord. No. 41-435 § 8)

Sec. 9.27.090. Shining lights upon water craft.

It is unlawful for any person to project any searchlight, flashlight, or light of any kind into the faces or upon the occupants of any other water craft in or upon the Little Arkansas River. This section shall not apply to law enforcement officers or other government officials engaged in the performance of their official duties.
(Ord. No. 41-435 § 9)

Sec. 9.27.100. Tying at dock.

It is unlawful for any water craft to be tied at any designated area or dock along the Little Arkansas River unless the operator of such water craft is present.
(Ord. No. 41-435 § 10)

Sec. 9.27.110. Tying—Where prohibited.

It is unlawful for any person to tie a water craft of any type to any tree located upon property under the ownership, jurisdiction or control of the city or the board of park commissioners of the city, and no person shall drive stakes on such property for the purpose of tying or anchoring any watercraft. The tying of any type of water craft in or upon the Little Arkansas River shall be limited to designated areas which are so marked. It is unlawful for any person to leave any unattended water craft beneath any bridge crossing the Little Arkansas River or within the park system of the city unless permission is obtained in writing from the city.
(Ord. No. 41-435 § 11)

Sec. 9.27.120. Speed limit.

It is unlawful for any person to operate any water craft in or upon the Little Arkansas River at a speed greater than thirty-five miles per hour.
(Ord. No. 41-435 § 12)

Sec. 9.27.130. Docking upon signal of police.

Upon a signal from an occupant of a duly marked police boat, a uniformed law enforcement officer on the river bank, or from any duly appointed representative of the department of park and recreation, all water craft operating in or upon the Little Arkansas River shall immediately dock at the nearest bank indicated by such law enforcement officer or representative. Duly appointed representatives shall include representatives of the Kansas Department of Wildlife and Parks.
(Ord. No. 41-435 § 13)

Sec. 9.27.140. Riding prohibited when.

It is unlawful for any person to ride, or permit another to ride on any elevated decks or gunnels of any water craft operating in or upon the Little Arkansas River.
(Ord. No. 41-435 § 14)

Sec. 9.27.150. Intoxicated persons.

It is unlawful for any person to ride in any water craft located in or upon the Little Arkansas River while such person is under the influence of alcohol and/or drugs to a degree that renders the person incapable of safely operating or riding within or upon such water craft.
(Ord. No. 41-435 § 15)

Sec. 9.27.160. Authorized loading at ramps, courtesy docks and loading areas.

No person, firm or corporation shall use property along the Little Arkansas River that is under the ownership, jurisdiction or control of the city or the board of park commissioners of the city for the purpose of loading or unloading power boats or water craft of any type which requires a hauling trailer, or for the purpose of loading or unloading equipment, operators or passengers at any place other than authorized ramps, courtesy docks or loading areas, except by written consent of the city.
(Ord. No. 41-435 § 16)

Sec. 9.27.170. Reckless navigation.

It is unlawful for any person to navigate any water craft in a reckless manner in or upon the Little Arkansas River. Reckless navigation shall include, but shall not be limited to, operating a water craft in such a manner which unnecessarily interferes with the free and proper use of the navigable waters of the river or unnecessarily endangers other water craft therein, or the life and limb of any person.
(Ord. No. 41-435 § 17)

Sec. 9.27.180. Throwing objects.

It is unlawful for any person to throw any object from the bank, any bridge or water craft located in or upon the Little Arkansas River.
(Ord. No. 41-435 § 18)

Sec. 9.27.190. Overloading.

It is unlawful for any person operating any water craft in or upon the Little Arkansas River while such water craft is loaded with passengers and/or cargo beyond its safe carrying capacity. All water craft must meet all federal and state safety specifications for the loading of such water craft.
(Ord. No. 41-435 § 19)

Sec. 9.27.200. High water level.

No person shall have the authority to operate any water craft on the Little Arkansas River within the city at high water level except in emergencies or during rescue or search operations. The city shall close the boat ramp in Central Riverside park when, in its opinion, high water makes the river unsafe for water craft activities, and all water craft activities are prohibited during such times that the ramp is closed.
(Ord. No. 41-435 § 20)

Sec. 9.27.210. Power boats—Written permission required.

The use, operation, launching and docking of any power boat, including personal watercraft, upon the Little Arkansas River from the concrete dam near Central Avenue to the city limits of the city, is strictly prohibited, unless permission for such operation is obtained in writing from the city. Written permission will be granted in the form of a special permit, and all water craft receiving such permits shall meet the requirements set forth by the department of park and recreation. Requests for special permits must be submitted in writing to the department of park and recreation at least thirty days prior to the date of the requested operation. The use of any power boat for the purpose of aquaplaning and/or water skiing upon the Little Arkansas River is strictly prohibited, unless permission for such

operation is obtained in writing from the city as part of, and expressly granted within, a special permit.
(Ord. No. 41-435 § 21)

Sec. 9.27.220. Power boating—State registration.

All power boats operating in or upon the Little Arkansas River must be registered with the state and have current state registration numbers displayed upon said boat according to state regulations.
(Ord. No. 41-435 § 22)

Sec. 9.27.230. Certain boats confined to certain areas.

Power boats operating in or upon the Little Arkansas River shall confine their activities to the center of the river and shall not approach the bank except for the purpose of landing or entering the river. Slow moving water craft shall stay close to the bank of the river.
(Ord. No. 41-435 § 23)

Sec. 9.27.240. Murdock bridge.

It is unlawful for any power boat in or upon the Little Arkansas River to be operated at any point upstream from the Murdock bridge except going to and from boathouses and established landing places where such water craft are stored, unless permission for such operation is obtained in writing from the city. Permission must be obtained for each day's operation. In no case shall power boats operating upstream from or beneath the Murdock bridge operate in excess of "no wake speed."
(Ord. No. 41-435 § 24)

Sec. 9.27.250. Violation.

Any person who violates any of the provisions of this chapter shall be deemed guilty of a misdemeanor and shall be punished as set forth in Section 1.04.060 of this Code, and amendments thereto.
(Ord. No. 41-435 § 25)

Sec. 9.27.260. Written consent—Procedure.

Whenever the written consent or permission of the city is required either as a condition precedent to an action taken or to exempt a person from any of the provisions of this chapter, the same shall be obtained by submitting a request for such consent in writing to the department of park and recreation. Such consent shall be submitted at least thirty days prior to the date of the requested operation or exemption, or pursuant to procedures established by the department of park and recreation. Such written consent shall be valid only for the date, time and duration and for the purpose(s) specifically set forth within the written consent and shall further be subject to an administrative fee to be set and collected by the department of park and recreation.
(Ord. No. 41-435 § 26)

CHAPTER 9.28. BIG ARKANSAS RIVER AND BANK AREA

Sec. 9.28.010. Necessity declared.
Sec. 9.28.020. Boundaries—Designated park and recreation area.
Sec. 9.28.030. Business or commercial activity—Consent required.
Sec. 9.28.040. Maintenance and control.
Sec. 9.28.050. Rules and regulations.
Sec. 9.28.060. Building—Consent required.
Sec. 9.28.070. Chapter not exclusive.

Sec. 9.28.010. Necessity declared.

It is hereby declared necessary for the benefit of the public at large and for the orderly development and use of the Big Arkansas River and Bank Area to impose certain rules and regulations and restrictions concerning the use and development of that area.
(Ord. No. 31-237 § 1)

Sec. 9.28.020. Boundaries—Designated park and recreation area.

All of that area within the city limits of Wichita lying between the high-water marks, including the bed of the Big Arkansas River, is hereby designated as the Big Arkansas River and Bank Area, and the same is further designated as a park and recreation area under the control and jurisdiction of the board of park commissioners of the city, except as hereinafter provided.
(Ord. No. 31-237 § 2)

Sec. 9.28.030. Business or commercial activity—Consent required.

No person shall engage in any business or commercial activity or in the sale of any commodity or service within the Big Arkansas River and Bank Area without the written consent of the board of park commissioners.
(Ord. No. 31-237 § 3)

Sec. 9.28.040. Maintenance and control.

The department of public works of the city is hereby designated the responsibility for the maintenance and control over any and all bridges, dams, streets and roadways located within the Big Arkansas River and Bank Area.
(Ord. No. 31-237 § 4)

Sec. 9.28.050. Rules and regulations.

The board of park commissioners is hereby authorized and directed to promulgate appropriate rules and regulations governing the use of the area and for the conduct of persons therein, subject only to the requirements of K.S.A. 82a-815.
(Ord. No. 31-237 § 5)

Sec. 9.28.060. Building—Consent required.

It is unlawful for any person to build or construct any pier, dock, ramp, fence, building or other structure within the Big Arkansas River and Bank Area, as designated herein, without the prior written consent of the board of park commissioners.
(Ord. No. 31-237 § 6)

Sec. 9.28.070. Chapter not exclusive.

None of the provisions contained in this chapter shall in any way be construed to interfere with or diminish any rights, titles, interests, easements, grants, control or use heretofore vested in the State of Kansas, its agencies and commissions, the United States Corps of Engineers of the Wichita-Valley Center Flood Control Project.
(Ord. No. 31-237 § 7)

CHAPTER 9.29. BOATING REGULATIONS ON THE BIG ARKANSAS RIVER

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Sec. 9.29.035. Power boats, motor boats and personal watercraft prohibited upon the Big Arkansas River without permission.
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Sec. 9.29.060. Lincoln street dam, watercraft prohibited, exceptions.
Sec. 9.29.070. Seneca Street bridge.
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Sec. 9.29.090. Prohibited during festivals.
Sec. 9.29.100. Business of supplying boats.
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Sec. 9.29.120. Shining lights upon water craft.
Sec. 9.29.130. Tying at dock.
Sec. 9.29.140. Tying—Where prohibited.
Sec. 9.29.150. Speed limits.
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Sec. 9.29.170. Riding prohibited when, exceptions.
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Sec. 9.29.210. Time spent in loading ramps and courtesy docks.
Sec. 9.29.220. Reckless navigation.
Sec. 9.29.230. Throwing objects.
Sec. 9.29.235. Jumping from bridges—Prohibited.
Sec. 9.29.240. Overloading.
Sec. 9.29.250. Placement of buoys—Where prohibited.
Sec. 9.29.255. Abandoned watercraft—Removal.
Sec. 9.29.260. Dangerous water conditions—Authority to close river.
Sec. 9.29.265. Violation of dangerous water conditions order—Unlawful, exceptions.
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Sec. 9.29.280. Fishing—Where prohibited, bowfishing prohibited.
Sec. 9.29.290. Power boating—Permit required.
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Sec. 9.29.310. Power boating—State registration.
Sec. 9.29.320. Power boating permit—Fee, presenting upon request.
Sec. 9.29.330. Power boating activities allowed.
Sec. 9.29.340. Number of power boats allowed.
Sec. 9.29.350. Hours and days of power boat operation.
Sec. 9.29.360. Lighting on power boats.
Sec. 9.29.370. Mufflers required.
Sec. 9.29.380. Water skiing activities allowed.
Sec. 9.29.390. Violation and penalty.
Sec. 9.29.400. Written consent—Procedure.

Sec. 9.29.010. Rules and regulations designated by chapter.

From and after the passage of this chapter, the use, operation, launching and docking of all water craft in and upon the Big Arkansas River and Bank Area, shall be governed by the following rules and regulations as set forth in this chapter.
(Ord. No. 41-434 § 1)

Sec. 9.29.020. Federal and state boating regulations.

All federal and state regulations pertaining to boats, boat equipment, boating activities, safety and safety equipment or any other water craft or water craft equipment shall apply to all water craft activities and water craft operating in or upon the Big Arkansas River and Bank Area. All other federal and state laws and regulations pertaining to boats, boat equipment, boating activities, safety and safety equipment and any other water craft or water craft equipment are incorporated herein and made a part hereof by reference. In the event federal and state laws and regulations are silent upon a matter addressed by this chapter, then the rules, regulations and restrictions herein shall control. In the event a federal or state law or regulation is enacted or implemented which speaks to an issue not addressed by this chapter, or which supersedes any of the provisions herein, then the federal or state law or regulation shall control.
(Ord. No. 41-434 § 2)

Sec. 9.29.030. Definitions.

For the purposes of this chapter, the following words and phrases used herein shall have the following meanings unless otherwise clearly indicated by the context:

(1) *Water craft* or *watercraft* means any boat or vessel designed for water travel, including, but not limited to any row boat, canoe, kayak, standup paddle board,

power boat or motor boat, paddle boat, sail craft or boat of any type, and includes personal watercraft and air boats.

(2) *Power boat* or *motor boat* means any water craft powered by a combustible engine or electric motor or machinery or any kind, whether or not such machinery is the principal source of propulsion.

(3) *Personal watercraft* means those watercraft including, but not limited to, jet skis, water bikes, wave runners, wave jammers, and other similar one or two person watercraft being propelled or powered by machinery.

(4) *Director* means the director of the department of park and recreation or the director's designated representative.

(5) *Inflatable floatation device* means an inner tube or other water recreational form or apparatus that is inflated with air or foam and is non-navigable. This term includes inflatable or foam chaise loungers, air mattresses and other inflatable or foam devices.

(6) *Operate* means to navigate or otherwise use a watercraft of any kind.

(7) *Operator* means a person who is in actual physical control of any watercraft upon the river or while docking.

(8) *Swim* means to swim, stand, wade or be in the river or use the river for any recreational purpose.

(Ord. No. 41-434 § 3; Ord. No. 50-265 § 1, 6-21-16)

Sec. 9.29.035. Power boats, motor boats and personal watercraft prohibited upon the Big Arkansas River without permission.

(a) It shall be unlawful for any person to operate a power boat, motor boat or personal watercraft upon the Big Arkansas River at any point within the city limits without prior written approval from the director of the department of park and recreation.

(b) Upon obtaining written approval of the director, any operation of a power boat, motor boat or personal watercraft upon the Big Arkansas River and shall be subject to terms and conditions as set forth in the Wichita City Park Guidelines for Boating and any additional rules and regulations as may be established by said director. It shall be unlawful for any person to operate a watercraft upon the Big Arkansas River with written permission from the director but in violation of the provisions set forth in the Wichita City Park Guidelines for Boating, or in violation of any other rule or regulation established by the director.

(Ord. No. 50-265 § 2, 6-21-16)

Sec. 9.29.040. Direction of traffic.

All operation of water craft in or upon the Big Arkansas River and Bank Area shall be parallel to the banks of the river, except that cross-stream traffic shall be permitted for the purpose of turning to go in the opposite direction. All power boating and water skiing activities shall be confined to the center portion of the river, to the near left and right of the river's center line, and shall be in a counter-clockwise direction. The provisions of this section shall not apply to personal watercraft while operating within the designated personal watercraft area.

(Ord. No. 41-434 § 4)

Sec. 9.29.050. Passing—Right-of-way.

When passing one another from opposite directions, water craft operating in or upon the Big Arkansas River and Bank Area shall move to the right of the approaching water craft. Any such water craft going in the same direction as another water craft and desiring to overtake and pass must yield the right-of-way to the slower water craft. The provisions of this section shall not apply to personal watercraft while operating within the designated personal watercraft area.

(Ord. No. 41-434 § 5)

Sec. 9.29.060. Lincoln street dam, watercraft prohibited, exceptions.

It is unlawful for any water craft operating in or upon the Big Arkansas River and Bank Area

to come within one hundred fifty feet of the Lincoln Street dam, however canoes and kayaks are allowed in the safe boat passage. Swimming and use of any inflatable floatation device is strictly prohibited in the boat passage.
(Ord. No. 50-265 § 3, 6-21-16)

Editor's note—Ord. No. 50-265 § 3, adopted June 21, 2016, repealed the former section 9.29.060, and enacted a new section as set out herein. The former section 9.29.060 pertained to Lincoln Street dam and derived from Ord. No. 41-434 § 6.

Sec. 9.29.070. Seneca Street bridge.

It is unlawful for any power boat to operate in or upon the Big Arkansas River and Bank Area at any point upstream from the Seneca Street bridge or downstream of the Lincoln Street Dam to the Wichita city limits unless permission for such operation is obtained in writing from the city.
(Ord. No. 41-434 § 7)

Sec. 9.29.080. Confluence of the Big and Little Arkansas Rivers.

Unless prior written approval has been obtained from the director, it is unlawful for any person to operate a water craft in or upon the Big Arkansas River and Bank Area within fifty feet of the "falls" area at the confluence of the Big and Little Arkansas Rivers, within fifty feet of the fire pots at the foot of The Keeper of The Plains sculpture, or upon the Little Arkansas River between the "falls" area and Central Avenue.
(Ord. No. 41-434 § 8; Ord. No. 50-265 § 4, 6-21-16)

Sec. 9.29.090. Prohibited during festivals.

Unless a permit or the prior written approval of the director is obtained, all unauthorized water craft and watercraft activities are prohibited in or upon any portion or portions of the Big Arkansas River and Bank Area on days during which the same or portion thereof is being used for community events, special functions, ceremonies or festivals sanctioned by the city or by the Department of Water Resources of the State of Kansas.
(Ord. No. 41-434 § 9; Ord. No. 50-265 § 5, 6-21-16)

Sec. 9.29.100. Business of supplying boats.

No person, firm or corporation shall operate a concession renting any row boats, canoes, power boats or other water craft to the public for use upon the Big Arkansas River and Bank Area without written permission from the city.
(Ord. No. 41-434 § 10)

Sec. 9.29.110. Boats for hire—Soliciting.

It is unlawful for any person, firm or corporation operating a water craft in or upon the Big Arkansas River and Bank Area for hire, or who accepts a fee, donation, contribution or remuneration of any kind to solicit, pick up or discharge passengers from property under the ownership, jurisdiction or control of the city or the board of park commissioners of the city without written permission from the director.
(Ord. No. 41-434 § 11; Ord. No. 50-265 § 6, 6-21-16)

Sec. 9.29.120. Shining lights upon water craft.

It is unlawful for any person to project any searchlight, flashlight, or light of any kind into the faces or upon the occupants of any other water craft in or upon the Big Arkansas River and Bank Area. This section shall not apply to law enforcement officers or other government officials engaged in the performance of their official duties.
(Ord. No. 41-434 § 12)

Sec. 9.29.130. Tying at dock.

It is unlawful for any water craft to be tied at any designated area or dock along the Big Arkansas River and Bank Area unless the operator of such water craft is present.
(Ord. No. 41-434 § 13)

Sec. 9.29.140. Tying—Where prohibited.

It is unlawful for any person to tie a water craft of any type to any tree located upon property under the ownership, jurisdiction or control of the city or the board of park commissioners of the city, and no person shall drive stakes on such property for the purpose of tying or anchoring

any water craft. The tying of any type of water craft in or upon the Big Arkansas River and Bank Area shall be limited to designated areas which are so marked. No person shall tie or anchor any type of water craft beneath any bridge crossing the Big Arkansas River or within the park system of the city, including A. Price Woodard Parks (East and West near the Douglas Street bridge), unless permission is obtained in writing from the director.
(Ord. No. 41-434 § 14; Ord. No. 50-265 § 7, 6-21-16)

Sec. 9.29.150. Speed limits.

It is unlawful for any person to operate any water craft in or upon the Big Arkansas River and Bank Area at a speed greater than forty miles per hour except authorized in writing by the director. In no case shall power boats operate in excess of five miles per hour when passing beneath any bridge located within the area between the Lincoln Street dam and the Seneca Street bridge. No water craft shall operate in excess of five miles per hour when operating between the Kellogg Avenue overpass/bridge and the Lewis Street bridge, nor between the Douglas Street bridge and the First Street bridge.
(Ord. No. 41-434 § 15; Ord. No. 50-265 § 8, 6-21-16)

Sec. 9.29.160. Docking upon signal of police.

Upon a signal from an occupant of a duly marked police boat, a uniformed law enforcement officer on the river bank, or from any duly appointed representative of the department of park and recreation, all water craft operating in or upon the Big Arkansas River and Bank Area shall immediately dock at the nearest bank indicated by such law enforcement officer or representative. Duly appointed representatives shall include representatives of the Kansas Department of Wildlife and Parks.
(Ord. No. 41-434 § 16)

Sec. 9.29.170. Riding prohibited when, exceptions.

It is unlawful for any person to ride, or permit another to ride on any elevated decks or gunnels of any water craft operating in or upon the Big Arkansas River and Bank Area unless prior written authorization has been obtained from the director.
(Ord. No. 50-265 § 9, 6-21-16)

Editor's note—Ord. No. 50-265 § 9, adopted June 21, 2016, repealed the former section 9.29.170 and enacted a new section as set out herein. The former section 9.29.170 pertained to riding prohibited when and derived from Ord. No. 41-434 § 17.

Sec. 9.29.175. Operating a watercraft under the influence of alcohol or drugs.

It is unlawful for any person to operate or attempt to operate any watercraft located in or upon the Big Arkansas River and Bank Area while under the influence of alcohol, drugs or any combination of alcohol and any drug or drugs to a degree that renders the person incapable of safely operating a watercraft. Any violation of this section shall be subject to the definitions and provisions set forth in K.S.A. 32-1130, K.S.A. 32-1131 and K.S.A. 32-1138, and any amendments thereto, and any violator shall be subject to the penalties set forth therein.
(Ord. No. 50-265 § 10, 6-21-16)

Sec. 9.29.180. Intoxicated persons.

It is unlawful for any person to ride in any water craft located in or upon the Big Arkansas River and Bank Area while such person is under the influence of alcohol and/or drugs or any combination thereof to a degree that renders the person incapable of safely riding within or upon such water craft.
(Ord. No. 41-434 § 18; Ord. No. 50-265 § 11, 6-21-16)

Sec. 9.29.190. Alcohol—Where prohibited.

It is unlawful for any person to possess or consume any alcoholic liquor or cereal malt beverage on board any water craft or within any vehicle in or upon the Big Arkansas River and Bank Area.
(Ord. No. 41-434 § 19)

Sec. 9.29.200. Authorized loading at ramps, courtesy docks and loading areas.

It is unlawful for any person, firm or corporation to use property along the Big Arkansas River and Bank Area that is under the ownership, jurisdiction or control of the city or the board of park commissioners of the city for the purpose of loading or unloading power boats, or water craft of any type which requires the use of a hauling trailer, or for the purpose of loading or unloading equipment, operators or passengers at any place other than the authorized and designated ramps, courtesy docks and loading areas, except by written consent of the director.
(Ord. No. 41-434 § 20; Ord. No. 50-265 § 12, 6-21-16)

Sec. 9.29.210. Time spent in loading ramps and courtesy docks.

The use of loading ramps and courtesy docks for the purpose of rigging or working on water craft is prohibited. Time spent in ramps and docks must be kept to a minimum. Tow vehicles, trailers, equipment and water craft must be immediately removed from the ramp or courtesy dock when the loading of water craft, passengers or other equipment has been completed.
(Ord. No. 41-434 § 21)

Sec. 9.29.220. Reckless navigation.

It is unlawful for any person to navigate any water craft in a reckless manner in or upon the Big Arkansas River and Bank Area. Reckless navigation shall include, but shall not be limited to, operating a water craft in such a manner which unnecessarily interferes with the free and proper use of the navigable waters of the river or unnecessarily endangers other water craft therein, or the life and limb of any person.
(Ord. No. 41-434 § 22)

Sec. 9.29.230. Throwing objects.

It is unlawful for any person to throw any object from the bank, any bridge or water craft located in or upon the Big Arkansas River and Bank Area unless prior written approval has been obtained from the director. Casting a fishing line or use of a safety rope shall not be considered as throwing an object.
(Ord. No. 41-434 § 23; Ord. No. 50-265 § 13, 6-21-16)

Sec. 9.29.235. Jumping from bridges—Prohibited.

It is unlawful for any person to jump or dive or otherwise throw themselves from any bridge that crosses the Big Arkansas River.
(Ord. No. 50-265 § 14, 6-21-16)

Sec. 9.29.240. Overloading.

It is unlawful for any person to operate any water craft in or upon the Big Arkansas River and Bank Area while such water craft is loaded with passengers and/or cargo beyond its safe carrying capacity. All water craft must meet all federal and state safety specification for the loading of water craft.
(Ord. No. 41-434 § 24)

Sec. 9.29.250. Placement of buoys—Where prohibited.

The placement of buoys or floating markers of any description in or upon the Big Arkansas River and Bank Area by any organization, person, firm or corporation is strictly prohibited, except by written consent of the director.
(Ord. No. 41-434 § 25; Ord. No. 50-265 § 15, 6-21-16)

Sec. 9.29.255. Abandoned watercraft—Removal.

(a) It shall be unlawful for any person to abandon a watercraft in, upon or sunk in the Big Arkansas River and Bank Area without the prior written consent of the director. Abandoned watercraft may be removed by a law enforcement officer when any of the conditions exist as set forth in K.S.A. 32-1156(c), and any amendment thereto.

(b) If none of the conditions exist as set forth in subsection (a) herein, and the ownership of the abandoned or sunken watercraft can be ascertained, the owner shall be given written

notice to remove the abandoned or sunken watercraft within ten business days from the date of the notice. Notice shall be deemed sufficient if given to the owner personally or sent by United States mail. Any owner so notified who has not removed the abandoned or sunken watercraft shall be liable to the city for all costs incurred by its removal and for any subsequent storage fees. If the owner fails to claim the abandoned or sunken watercraft after its removal from the river by the city, the watercraft may be disposed of as set forth in K.S.A. 32-1157 and amendments thereto.
(Ord. No. 50-265 § 16, 6-21-16)

Sec. 9.29.260. Dangerous water conditions—Authority to close river.

In the event that the director of the department of park and recreation determines the presence of certain conditions make navigation and other activities in, upon and around the Big Arkansas River and Bank Area significantly dangerous to the public, the director is authorized to issue an order closing the river to the public. In making such a determination the director may consult with and gather input from the chief of police, the fire chief, the director of the department of public works any other necessary city staff. Conditions that will be considered significantly dangerous to the public can include, but are not limited to, high water levels, swift currents, the presence of debris in the river and along the river bank and the presence of harmful bacteria that impacts water quality. The director shall close all public boat ramps and all water craft and all water craft activities in and upon the river are prohibited during such times the ramps are closed. The director's order shall be disseminated to all local news media and all such other available means as are necessary may be utilized to inform the public by announcement of such order. All boat ramps providing public access to the river shall be posted and physical barricades may be used to block access to such ramps. Recession of the director's order shall be publicly announced in the local media and all postings and barriers shall be removed.
(Ord. No. 50-265 § 17, 6-21-16)

Editor's note—Ord. No. 50-265 § 17, adopted June 21, 2016, repealed the former section 9.29.260, and enacted a new section as set out herein. The former section 9.29.260 pertained to high-water level and derived from Ord. No. 41-434 § 26.

Sec. 9.29.265. Violation of dangerous water conditions order—Unlawful, exceptions.

(a) It is unlawful for any person to enter into or to operate any water craft in or upon the Big Arkansas River and Bank Area during any time an order that has been issued by the director closing the river due to dangerous water conditions is in effect.

(b) This provision shall not apply to authorized emergency personnel in the performance of their official duties.

(c) Any person violating any of the provisions of this section shall be guilty of a misdemeanor and punished as set forth in section 9.29.390 of this chapter.
(Ord. No. 50-265 § 18, 6-21-16)

Sec. 9.29.270. Swimming, wading and bathing—Where prohibited.

No person shall place themselves, other persons, any objects or animals into or upon the waters of the Big Arkansas River and Bank Area in the area between the Lincoln Street dam and the Seneca Street bridge for the purpose of swimming, wading or bathing.
(Ord. 41-434 § 27)

Sec. 9.29.280. Fishing—Where prohibited, bowfishing prohibited.

It is unlawful for any person to attempt to capture, kill, or otherwise obtain fish from the Big Arkansas River within the city limits by any means while such person is on the Kellogg Avenue overpass/bridge, Lewis Street bridge, Douglas Street bridge, First Street railroad bridge or First Street bridge. It is unlawful for any person to attempt to capture, kill or otherwise obtain fish from the Big Arkansas River by any means while said person is an occupant of any watercraft placed on or within the Big Arkansas River and Bank Area between the Lincoln Street

dam and the Second Street Bridge. Bowfishing is prohibited in or upon all parts of the Big Arkansas River and Bank Area within the city limits.
(Ord. No. 50-265 § 19, 6-21-16)

Editor's note—Ord. No. 50-265 § 19, adopted June 21, 2016, repealed the former section 9.29.280, fishing—where prohibited, and enacted a new section as set out herein. The former section 9.29.280 pertained to similar subject matter and derived from Ord. No. 41-434 § 28.

Sec. 9.29.290. Power boating—Permit required.

The area between the Lincoln Street dam and the Seneca Street bridge is designated as a nonmotorized water craft area only, and the use of such area by power boats is prohibited except with written permission of the city, as set forth in Section 9.29.320 of this Code.
(Ord. No. 41-434 § 29)

Sec. 9.29.300. Power boating confined to designated area.

With the written permission of the city, the use, operation, launching and docking of power boats, including personal watercraft, in and upon the Big Arkansas River and Bank Area, shall be limited to and confined within the area between the Lincoln Street dam and the Seneca Street bridge.

Power boats shall confine their activities to the center portion of the river and shall not approach the bank except for the purpose of landing or entering the river. Slow moving water craft shall stay close to the bank of the river. Personal watercraft shall be confined to operation within the area between the Lincoln Street dam and the Kellogg Avenue overpass/bridge, and this area is hereby designated as the personal watercraft area. Power boats other than personal watercraft may operate within the designated personal watercraft area only when there are no personal watercraft being operated in the area, however, all power boats operating within the personal watercraft area must leave the area immediately when any personal watercraft enter such area. Personal watercraft are required to comply with all ordinances regulating power boats unless herein exempted.
(Ord. No. 41-434 § 30)

Sec. 9.29.310. Power boating—State registration.

All power boats operating in or upon the Big Arkansas River and Bank Area must be registered with the state and have current state registration numbers displayed upon said boat according to state regulations.
(Ord. No. 41-434 § 31)

Sec. 9.29.320. Power boating permit—Fee, presenting upon request.

Prior to the use, operation, launching or docking of any power boat or personal watercraft in or upon the Big Arkansas River and Bank Area, the power boat operator shall obtain written permission from the city, which shall be in the form of a daily permit.

A currently valid permit allows for operation of the designated power boat during the hours and days specified within the permit. Each and every power boat designated for operation requires a separate and individual permit, with the exception of a specialized multiple permit which may be obtained only by authorized boat dealers. An administrative fee will be charged for each and every permit issued. Permits are not transferable. A current and valid permit must remain on board the designated power boat during time of operation upon the said river, and must be shown to any law enforcement officer or any duly authorized representative of the department of park and recreation upon their request.
(Ord. No. 41-434 § 32)

Sec. 9.29.330. Power boating activities allowed.

No power boating activities other than aquaplaning and water skiing shall be allowed in or upon the Big Arkansas River and Bank Area between the Lincoln Street dam and the Seneca Street bridge, except with written permission of the city.
(Ord. No. 41-434 § 33)

Sec. 9.29.340. Number of power boats allowed.

The daily number of power boats allowed to operate by authorized permit in or upon the Big

Arkansas River and Bank Area between the Lincoln Street dam and the Seneca Street bridge shall not exceed ten, except by written consent of the city.
(Ord. No. 41-434 § 34)

Sec. 9.29.350. Hours and days of power boat operation.

Power boats and personal watercraft may be operated daily in or upon the Big Arkansas River and Bank Area between the Lincoln Street dam and the Seneca Street bridge from sunrise until sunset, subject to the provisions of Section 9.29.090.
(Ord. No. 41-434 § 35)

Sec. 9.29.360. Lighting on power boats.

It is unlawful for any power boat of any description to operate in or upon the Big Arkansas River and Bank Area between sunset and sunrise without written permission from the city. Every duly authorized power boat operating in or upon the Big Arkansas River and Bank Area between sunset and sunrise shall operate with lighting systems which are in complete compliance with all state and federal boating rules and regulations.
(Ord. No. 41-434 § 36)

Sec. 9.29.370. Mufflers required.

It is unlawful for any power boat to operate in or upon the Big Arkansas River and Bank Area without a muffler, or with a muffler open, except during races authorized in writing by the city. It is unlawful for any power boat to operate in or upon the Big Arkansas River and Bank Area with muffler exhaust noise in excess of eighty-six decibels when measured by a decibel meter at a distance of at least ten feet from the point of exhaust.
(Ord. No. 41-434 § 37)

Sec. 9.29.380. Water skiing activities allowed.

Water skiing activities allowed upon the Big Arkansas River and Bank Area shall be confined to the areas between the Lincoln Street dam and the Kellogg Avenue overpass/bridge, between the Lewis Street bridge and the Douglas Street bridge and between the Second Street bridge and the Seneca Street bridge. Water skiing activities thereon shall be limited to not more than two persons being pulled behind a single power boat while said persons are held atop the wake by their bare feet, water skis, knee boards, ski disks or inflatable tubes or sleds manufactured for that purpose. The use of kites and parachutes for water skiing activities upon the Big Arkansas River and Bank Area is strictly prohibited unless written permission is obtained from the city.
(Ord. No. 41-434 § 38)

Sec. 9.29.390. Violation and penalty.

It is a misdemeanor for any person to knowingly and willfully violate any provision of this chapter. Every person who is convicted of violating the provision of this chapter may be punished by a fine of not more than $500.00.
(Ord. No. 41-434 § 39; Ord. No. 50-265 § 20, 6-21-16)

Sec. 9.29.400. Written consent—Procedure.

Whenever the written approval, consent or permission of the director of the department of park and recreation is required either as a condition precedent to an action taken or to exempt a person from any of the provisions of this chapter, the same shall be obtained by submitting a request for such consent in writing to the department of park and recreation. Such request shall be submitted at least two business days in advance for recreational use of the river and thirty days in advance for special events. A request for written consent of the director under this chapter shall be subject to the provisions set forth in subsections (a) and (c) of section 9.03.080 and sections 9.03.090 through 9.03.190 of this code, pertaining to the provisions governing the issuance of park permits, including the standards for issuance and the process for appealing the denial thereof. Additionally, any written consent or permission required to be obtain from or granted by the director may be obtained from or granted by a designated representative of the director, unless this chapter expressly provides otherwise.

Any written consent issued or provided pursuant to this chapter shall be valid only for the date, time and duration and for the purpose(s) specifically set forth within the written consent and shall further be subject to an administrative fee to be set and collected by the department of park and recreation. In the director's discretion, approval may be given for a duration of up to one year at a time for recurring activities.
(Ord. No. 41-434 § 40; Ord. No. 50-265 § 21, 6-21-16)

CHAPTER 9.30. BALL PARK AND ATHLETIC FIELD REGULATIONS

Sec. 9.30.010. Unlawful acts.
Sec. 9.30.020. Animals.

Sec. 9.30.010. Unlawful acts.

It is unlawful for any person, while attending, viewing, observing, watching or while participating in any event, program, presentation, exhibition, game or similar occurrence at the stadium to commit any of the following acts:

(a) To bring, carry or in any other manner transport or to assist another person to bring, carry or in any other manner transpose into and upon the premises above described, food or beverage of any kind whatever, unless prior written approval is obtained from the director;

(b) While in or upon the premises, to have, possess, hold or in any other manner have in hand, on hand or at one's command or disposal, any food or beverage of any kind whatsoever contained in a glass bottle or other container of breakable material, or which is contained in a metal can or receptacle of any kind, unless prior written approval is obtained from the director;

(c) To toss, heave, hurl, cast or in any manner to throw or cause to be tossed, heaved, hurled, cast or in any manner to be thrown, any matter of any kind whatsoever in, onto or out of the stadium;

(d) Nothing herein contained shall be so construed as to prohibit any tradesman or supplier of a duly licensed concessionaire from delivering merchandise and supplies to said concessionaire at the stadium, notwithstanding the fact the merchandise and supplies are contained in glass or breakable or metal containers; further, nothing herein contained shall prohibit a concessionaire from serving food or beverages from glass or breakable containers or from metal containers so long as the food and beverage is served to the concessionaire's customer in paper or some soft material, nonbreakable container.

(e) Any person violating any of the provisions of this section shall be deemed to have committed a misdemeanor, and upon conviction thereof shall be punished in accordance with Section 1.04.060 of the Code of the City of Wichita, Kansas.

(Ord. No. 37-594 § 2)

Sec. 9.30.020. Animals.

(a) No person shall bring or cause to bring, carry or cause to be carried, lead or cause to be led or in any manner commit any act which results in any dog, cat, other animal or other pet to enter into the stadium except a service animal, which is guide dog, signal dog or other animal individually trained to Provide assistance to an individual with a disability, and except when the dog, cat, or other animal, or other pet is participating in a bona fide dog, cat, other animal or other pet show or animal, act or performance using the stadium with the permission of the city, and further except for animals used for law enforcement agency.

(b) Any person violating any of the provisions of this section shall be deemed to have committed a misdemeanor, and upon conviction thereof shall be punished in accordance with Section 1.04.06 of the Code of the City of Wichita, Kansas.

(Ord. No. 37-594 § 3; Ord. No. 45-539, § 3, 1-14-03)

CHAPTER 9.35. AIRPORTS*

Sec. 9.35.010. Definitions.
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Sec. 9.35.040. Enforcement.
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Sec. 9.35.490. Handling and disposal of sanitary waste from Aircraft.
Sec. 9.35.500. Smoking and other sources of open flame.
Sec. 9.35.510. Open-flame operations.
Sec. 9.35.520. Storage of material.
Sec. 9.35.530. Storage, handling, and records of hazardous material.
Sec. 9.35.540. Cleaning fluids.
Sec. 9.35.550. Leasehold cleanliness.
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Sec. 9.35.570. Classified Explosives, corrosives, poisons, compressed gases, and radiological materials.
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Sec. 9.35.640. Motor vehicle identification and ramp permits.
Sec. 9.35.650. Driver's license.
Sec. 9.35.660. Designated vehicular routes.
Sec. 9.35.670. AOA speed limits and traffic control.
Sec. 9.35.680. Reckless or careless driving.
Sec. 9.35.690. Operation of electronic devices while driving on the AOA.
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Sec. 9.35.710. Vehicle and equipment liability insurance requirements.
Sec. 9.35.720. Vehicle and equipment condition and safety requirements.
Sec. 9.35.730. Minimum vehicle and equipment requirements for operation on the AOA and Movement Areas.
Sec. 9.35.740. Night and low visibility operations.
Sec. 9.35.750. Radio/wireless communications systems.
Sec. 9.35.760. Emergency vehicles.
Sec. 9.35.770. Occupants of motor vehicles.
Sec. 9.35.780. Traffic control.
Sec. 9.35.790. Parking.
Sec. 9.35.800. Motor vehicle accidents.
Sec. 9.35.810. Contractor's access and operations on the Air Operations Area.
Sec. 9.35.820. Denial of departure.
Sec. 9.35.830. Tampering with aircraft.
Sec. 9.35.840. Interference with aircraft or flight or cabin crew operations.
Sec. 9.35.850. Inspection of certification.
Sec. 9.35.860. Waiver by the Director of Airports for Governmental Operations.
Sec. 9.35.870. Penalties.

*__Editor's note—__Ord. No. 49-273, § 89, adopted May 22, 2012, states that this chapter shall be included in the Code of the City of Wichita, Kansas, and shall be effective upon its passage and publication once of a summary of the ordinance, in the official city paper. Publication shall occur after July 1, 2012 and comply with the provisions of House Bill 2166(2012).

Sec. 9.35.010. Definitions.

For the purposes of this Chapter, the following words, terms and phrases shall have the meanings set forth below: (Note: words not specifically defined in this Section 1, which relate to aeronautical practices, processes, and equipment shall be construed according to their general usage in the aviation industry, or as defined by federal laws or advisory guidance documents.)

(a) *'Abandon'* means to forsake, desert, give up, and surrender one's claim or right.

(b) *'Access and identification media'* or *'ID media'* means any credential, card, badge, or other photo identification media issued by the Wichita Airport Authority for access and/or identification purposes. ID media does not include 'visitor' media issued to individuals who must be under Airport approved security escort to access the Security Identification Display Area (SIDA), Sterile Area, or the Air Operations Area (AOA) on a limited-time or limited-use basis.

(c) *'Aircraft'* shall mean any contrivance now known or hereafter designed, invented or used for navigation or flight in the air space, except a parachute or other contrivance used primarily as safety equipment.

(d) *'Air Operations Area'* or *'AOA'* means any area of the Airport identified by the Wichita Airport Authority and specified in the Airport Security Program, in which security measures specified in 49.

CFR Part 1500 and amendments thereto are carried out. This includes aircraft Movement Areas, aircraft parking areas, loading ramps, and safety areas used or intended to be used for landing, taking-off or surface maneuvering of aircraft. Such term does not include leasehold areas within or having direct access to the AOA which are subject to security requirements imposed on a lessee or tenant under appropriate federal regulations or which are incorporated into a signed lease agreement.

(e) *'Airport'* means the Wichita Dwight D. Eisenhower National Airport, Col. James Jabara Airport, and any other airport owned by and under the control and jurisdiction of the Wichita Airport Authority.

(f) *'Airport Authority'* means the Wichita Airport Authority as established by Section 2.12.1040 of the Code of the City of Wichita, Kansas.

(g) *'Airport motor vehicle parking facility'* means any surface or enclosed facility used or intended to be used for non-exclusive (public) use of revenue producing or non-revenue producing parking of private motor vehicles on Airport property. Such term does not include leased parking facilities under a tenant lease agreement.

(h) *'Airport property'* means any property, facilities, and improvements owned, leased and/or under the control and jurisdiction of the Wichita Airport Authority and roads and streets contained thereon.

(i) *'Airport Police and Fire Officer'* means a person holding a State of Kansas law enforcement commission who is a member of the Airport Police and Fire Division of the City of Wichita Airport Department established pursuant to Section 2.12.1051 of the Code of the City of Wichita, Kansas.

(j) *'Airport Security Program'* or *'ASP'* means a written program and procedures developed by the Airport Authority and approved by the Transportation Security Administration relative to the security of aircraft operations and users of the Airport and meeting the requirements of Transportation Security Regulation 1542.

(k) *'Airport tenant'* means any person holding an executed and current lease or license agreement with the Wichita Airport Authority for the lease of property and/or the conducting of certain specified commercial or non-commercial activities.

(l) *'ATA'* means Air Transport Association.

(m) *'Apron'* or *'ramp'* means that area of the Airport within the AOA designated for the loading, unloading, servicing or parking of aircraft.

(n) *'Authorized'* means acting under or pursuant to a written contract, permit, authorization or other evidence of right issued by the Director of Airports.

(o) *'City'* means the City of Wichita, Kansas.

(p) *'Code'* means the Code of the City of Wichita, Kansas and amendments thereto.

(q) *'Commercial'* or *'commercial activity'* means:

(1) the exchange, trading, buying, hiring or selling of commodities, goods, services or property of any kind on Airport property;

(2) engaging in any conduct on Airport property for revenue- producing purposes, whether or not currency, monetary exchange or other forms of monetary instruments ultimately are exchanged, obtained, or transferred on Airport property; or

(3) the offering or exchange of any service on Airport property as a part of, or condition to, other revenue-producing activities or services on or off Airport property; or

(4) intended for the purpose of securing revenue, earnings, income, and/or compensation (including exchange for service), and/or profit, whether or not such objectives are accomplished.

(r) *'Commercial ground transportation provider'* means any person or entity, including its drivers, employees, and representatives, using Airport roadways or operating motor vehicles upon the Airport, in furtherance of or in connection with providing 'on-demand', charter, or pre-arranged transportation to persons for hire.

(s) *'Commercial passenger terminal'* means any passenger terminal facility or facilities operated for the purpose of boarding and de- boarding of commercial air travelers, including tenant, concession, security, and other support facilities including all ramps, roadways, vehicular, and pedestrian circulation areas and parking facilities associated therewith.

(t) *'Common use area'* means any area, whether leased or non-leased, used in common with, concurrent or in conjunction with, and by multiple parties. Such term shall include 'non-exclusive area.'

(u) *'Control Tower'*, *'Air Traffic Control Tower'*, or *'ATCT'* means the Federal Aviation Administration's control tower and terminal radar air traffic control (TRACON) facilities that provide air traffic control services to aircraft and vehicles operating on the Movement Areas of the Airport and overlying airspace.

(v) *'Director'* means the Director of Airports of the City of Wichita or his or her duly authorized and designated representative(s).

(w) *'Escort'* means to accompany and monitor the activities and to maintain 'positive' and continuous visual and voice contact with any individual(s), under the escorting person's authority and responsibility, who do not have unescorted access authority into or within a Secured Area, SIDA, or AOA.

(x) *'Escort authority'* means the authority granted by the Wichita Airport Authority to a person authorized to escort individuals who do not have unescorted access authority into or within a Secured Area, SIDA, or AOA.

(y) *'Equipment'* means motorized mobile units, other than those commonly classified as motor vehicles, which are utilized in conjunction with the servicing of aircraft or the maintenance and operation of Airport facilities.

(z) *'Event'* means activities defined by the Standard Operating Procedures of the Airport Authority as an event.

(aa) *'Explosives'* means any chemical compound or mixture that has the property of yielding readily to combustion or oxidation upon application of heat, flame or shock, or any device, the primary purpose of which is to function by explosion. The term 'explosives' includes, but is not limited to, dynamite, nitroglycerine, trinitrotoluene, ammonium nitrate when combined with other ingredients to form an explosive mixture, or other high explosives, detonators, safety fuses, squibs, detonating cords, igniter cords, and igniters. For purposes of this part explosives shall not include shotgun shells, cartridges or ammunition for firearms, or pyrotechnic devices.

(bb) *'FAA'* means the Federal Aviation Administration.

(cc) *'Flammable liquids'* means any liquid which emits flammable vapor as set forth in National Fire Protection Association standards, including but not limited to combustible liquids currently used as aircraft or vehicle fuel.

(dd) *'Fueling vehicle'* means a vehicle operated for the purpose of storing and dispensing fuels.

(ee) *'Law enforcement officer'* means any person holding a State of Kansas law enforcement commission or other officer vested with the power of arrest under federal or state authority.

(ff) *'Motor vehicle'* means a device in, upon or by which a person or property may be propelled, moved, or drawn upon land, except a device moved by human or animal power and except aircraft or devices moved exclusively upon stationary rails or tracks. The term 'vehicle' shall include taxis, cars, buses, vans, shuttles, trucks, buses, limousines, and courtesy vehicles of any type or kind.

(gg) *'Movement Area'* means those portions of the AOA, such as runways and taxiways, used for taxiing, takeoff, and landing of aircraft, and in which all movement of aircraft and motor vehicles and equipment are at all times under the jurisdictional control and authority of the ATCT.

(hh) *'NFPA'* means National Fire Protection Association.

(ii) *'Object Free Area'* or *'OFA'* means an area on the ground centered on a runway or taxiway that is required by federal regulation to be free of all foreign objects, except for those objects that must be located in the OFA because of their function.

(jj) *'Operational need or necessity'* is defined as law enforcement, security, emergency response, maintenance, or operations activity that requires the use of such device or access to such areas to perform an official function or duty.

(kk) *'Operator'* means any person who is in actual physical control of an aircraft, equipment or motor vehicle.

(ll) *'Other authorized officer'* means any noncommissioned officer and authorized representative of the Director of Airports, including Airport Services Officers and Airport Operations Officers of the City of Wichita Airport Department.

(mm) *'Owner'* means a person in whose name the legal title of an aircraft or motor vehicle is held or vested. If any aircraft or motor vehicle is the subject of a conditional sale or lease, with the right of purchase upon performance of the conditions stated in the agreement, and with the immediate right of possession vested in the conditional vendee or lessee or anyone in possession of an aircraft or motor vehicle on the Airports, or in the event a mortgagor of an aircraft or motor vehicle is entitled to the possession, then the conditional vendee, lessee or mortgagor shall be deemed the owner for the purpose of this Chapter.

(nn) *'Park'* means to put, leave or let a motor vehicle or aircraft stand or stop in any location whether the operator thereof

leaves or remains in such vehicle or aircraft, when such standing or stopping is not required by traffic control or conditions beyond the control of the operator.

(oo) *'Person'* means any individual, firm, partnership, corporation, company, association or joint stock association, and includes any trustee, receiver, assignee or similar representative thereof.

(pp) *'Public area'* means any real estate, building or facility on Airport property, including grounds, roadways, streets and sidewalks which are not designated as an AOA, SIDA, Secured Area, Sterile Area or Restricted Area, not leased premises, or not specifically signed as a Restricted Area.

(qq) *'Restricted Area'* means any area of an Airport that is fenced, locked or posted by sign to prohibit or limit entry or access to only specific authorized persons.

(rr) *'Runway hold short position'* means the location on a taxiway where a pedestrian, pilot or operator of a motor vehicle or equipment is required by federal regulation to stop in the absence of receiving clearance onto a runway by the ATCT.

(ss) *'Runway'* means those Movement Areas of the Airport designated and used for the sole and specific purpose of takeoff and landing of aircraft.

(tt) *'Sanitary waste'* means liquid or solid wastes originating from humans and human activities, such as wastes collected from toilets, showers, wash basins, sinks used for cleaning domestic areas, sinks used for food preparation, clothes washing operations, and sinks or washing machines where food and beverage serving dishes, glasses, and utensils are cleaned. Such term includes legally permissible waste that is intended to be routed, deposited, and transported to/through a sanitary sewer system of the City of Wichita, including liquid and solid wastewater, sewage and/or industrial waste and not to which storm, surface, and ground water are intentionally admitted.

(uu) *'Screening location'* means a location or site at Wichita Dwight D. Eisenhower National Airport at which individuals and/or property are inspected for the presence of weapons and other prohibited items as defined by Transportation Security Regulations.

(vv) *'Security challenge'* or *'challenge'* means to verbally confront in a non-threatening, non-physical, and safe manner any person within the Secured Area, SIDA or Sterile Area of Airport property for the purpose of determining if such person is in possession of a current, correct, and appropriately issued access and identification media. Non-law enforcement personnel are not expected to place themselves or others in a dangerous or threatening situation resulting from a security challenge.

(ww) *'Secured Area'* means that designated portion of the Wichita Dwight D. Eisenhower National Airport Security Identification Display Area, encompassing the ramp footprint of the commercial passenger terminal concourse(s), aircraft loading bridges, aircraft parking, and baggage loading and unloading areas.

(xx) *'Security Identification Display Area(s)'* or *'SIDA'* means that designated portion of Wichita Dwight D. Eisenhower National Airport property designated by the Airport Authority, in accordance with Transportation Security Regulations, in which each individual in the area is required to display on his or her person the identification media issued by the Airport Authority or such other form of identification as approved or required by the Airport Authority.

(yy) *'Security access identification control system'* or *'computer controlled access system (CCAS)'* means the electronic system of computer and camera monitored access media readers, PIN pads, and/or

other such approved access control devices designed and used for the purpose of providing for secured access and verifying valid access authorization.

(zz) *'Security sensitive information'* or *'SSI'* means details of any security inspection or investigation of an alleged violation of aviation transportation security requirements of federal law that could reveal security vulnerabilities, including the identity of a federal special agent or other federal employee who conducted the inspection or audit and specific details of aviation transportation security measures, both operational and technical, whether applied directly by the federal government, the Airport Authority, or another person, including:

(1) Records created or obtained for the purpose of training persons employed by, contracted with, or acting for the federal government, the Airport Authority, or another person, to carry out aviation transportation security measures required or recommended by Department of Homeland Security or Department of Transportation;

(2) Any list identifying systems or assets, whether physical or virtual, so vital to the aviation transportation system that the incapacity or destruction of such assets would have a debilitating impact on transportation security.

(aaa) *'Solicit'* or *'solicitation'* means to directly or indirectly, actively or passively, openly or subtly, ask or endeavor to obtain by asking, requesting, imploring, pleading for or trying to obtain.

(bbb) *'Standard Operating Procedure'* or *'Airport Standard Operating Procedure'* means a written order, procedure or directive issued by the Director of Airports.

(ccc) *'Sterile Area'* means the enclosed concourse area of the Wichita Dwight D. Eisenhower National Airport commercial passenger terminal building used for passenger and airline crew boarding and de-boarding of commercial aircraft, and situated at and past the passenger security screening location that is subject to Transportation Security Administration security screening.

(ddd) *'Taxilane'* means any portion of the Airports authorized, designated and marked by the Airport Authority for the purpose of surface maneuvering of aircraft on portions of non-Movement Area aprons or ramps between taxiways and parking which are not under the jurisdiction and control of the ATCT.

(eee) *'Taxiway'* means those Movement Areas of the Airports designated and used for the sole and specific purpose of taxiing aircraft between aprons and runways.

(fff) *'Traffic'* means pedestrians and vehicles, either singly or together, while using the Airports.

(ggg) *'TSA'* means the Transportation Security Administration.

(hhh) *'Weapon'* means a blackjack, slingshot, metal knuckles, any explosive device, or any other like instrument capable of being utilized to coerce, intimidate, slay, or injure any individual.

(Ord. No. 49-273, § 1, 5-22-2012; Ord. No. 50-591, § 1, 9-26-17)

Sec. 9.35.020. Emergencies.

The Director is hereby authorized and empowered to take such action as deemed necessary when an emergency exists on any Airport property, leased or unleased, which, in the Director's judgment, presents an immediate threat to the health, security, safety or welfare of persons or property, to the operation of the Airports, or an immediate violation or potential violation of federal regulations exists or may exist if prompt and immediate action is not taken; provided, however, that in the exercise of such power the Director shall promptly notify the governmental agency(ies) having primary responsibility for the handling and resolution of such emergency, and provided further that the Director's power herein granted shall cease upon

the assumption of jurisdiction over such emergency by the governmental agency(ies) and such assumption of responsibility shall not be inconsistent with the requirements of any emergency procedure or program. No action shall knowingly be taken by the Director hereunder contrary to any regulation or order of the Federal Aviation Administration, Transportation Security Administration, or of any other federal, state or local agency having appropriate jurisdiction.
(Ord. No. 49-273, § 2, 5-22-2012)

Sec. 9.35.030. Violations not exclusive.

Violations of this Code are in addition to any other violation enumerated within the ordinances of the Code of the City of Wichita, Kansas, or Standard Operating Procedures of the Airport Authority. This Code in no way limits the penalties, actions or procedures which may be taken by the City or Airport Authority for a violation of this Chapter, which is also a violation of any other ordinance of the City, statute of the State of Kansas or regulation of the Airport Authority. This Code is intended to supplement and be consistent with all federal rules, regulations and laws. Should a conflict exist between this Code and any rules and regulations of the Federal Aviation Administration (FAA), the Transportation Safety Administration (TSA) or other federal regulatory agency holding preemptive authority the federal rules and regulations shall control.
(Ord. No. 49-273, § 3, 5-22-2012)

Sec. 9.35.040. Enforcement.

(a) The Chief of Police and Police Officers of the City of Wichita Police Department, Chief of Airport Police and Fire, Airport Police and Fire Officers, and as specially authorized by this Chapter, 'other authorized officers' of the City of Wichita Airport Department, are hereby authorized to enforce violations of this Chapter.

(b) Violations of Title 11 and Title 5 of the Code of the City of Wichita, Kansas, occurring on Airport property may only be enforced by commissioned law enforcement officers of the City of Wichita.
(Ord. No. 49-273, § 4, 5-22-2012)

Sec. 9.35.050. Commercial activity.

(a) No person, unless authorized in writing by the Director or as permitted under the conditions of the *Minimum Standards for Aeronautical Activities and Services* policies, shall, in or upon any Airport property:

(1) Engage in any business or commercial activity; or

(2) Sell, offer for sale or advertise, any merchandise, food, beverage, services, products, or other service; or

(3) Sell, offer for sale or advertise, any equipment, motor vehicle, or aircraft fuel products; or

(4) Sell, offer for sale or advertise, any aircraft maintenance, parts, components, or services; or

(5) Sell, offer for sale or advertise, any business or trade, including the air or ground transportation of persons, baggage, or goods; or

(6) Install or place any coin, currency, debit or credit card operated machine for the sale, vending or provision of any merchandise, food, beverage or service of any type or kind; or

(7) Engage in any commercial aeronautical activity or services contrary to or in violation of the *Minimum Standards for Aeronautical Activities and Services* policies of Wichita Dwight D. Eisenhower National Airport as adopted by the Wichita Airport Authority Board on June 8, 2010, or as may be amended.

(b) The following commercial activity shall be exempt from the requirements of this Section:

(1) Building and facility maintenance services when such services are provided and conducted on tenant leasehold property, required under lease agreement, and not requiring the application and issuance of a Building Permit as required under Title 18 of City Code; or

(2) FAA authorized pilot or maintenance examiners; or

(3) Independently employed contract pilots.

(c) No person authorized by the Director to perform services or engage in commercial activity on the Airport property shall refuse to perform such services or other commercial activity when requested by any orderly person to do so, except as authorized by federal or state law or regulations.
(Ord. No. 49-273, § 5, 5-22-2012; Ord. No. 50-591, § 2, 9-26-17)

Sec. 9.35.060. Commercial liability insurance.

(a) No person shall engage in commercial activity on Airport property, whether authorized to engage in such commercial activity or not, without securing and maintaining, without interruption, a commercial liability insurance policy in the limit(s) and coverage(s) specified by the Director and naming the Wichita Airport Authority and City of Wichita as additional insured.

(b) Proof of such insurance coverage in the form of a certificate shall be submitted to the Wichita Airport Authority.

(c) Any person required by this Section to obtain and maintain liability insurance shall, within five days of any change, cancellation or termination of such insurance, notify the Director in writing of the change or modification of insurance coverage.

(d) Insurance coverage shall not be cancelled or allowed to expire or lapse at anytime while engaged in commercial activity on Airport property.
(Ord. No. 49-273, § 6, 5-22-2012)

Sec. 9.35.070. Solicitation, Commercial Activity, Advertisements.

(a) No person shall:

(1) Solicit contributions of money or other articles of value, for religious, charitable, political or any other purpose, and receive money or other articles of value, whether in the form of cash, checks, credit or debit vouchers or any other form of negotiable instrument in public areas.

(2) Conduct or participate in any speechmaking, distributing of pamphlets, books or other written or graphic materials upon Airport property, without having delivered a written application to the Director requesting authorization to do so, and received a permit for the requested activity in accordance with Airport Standard Operating Procedures so that the Director may be fully informed of the activity proposed and take adequate precautions to protect the public health, safety and order, and to assure the efficient and orderly use of Airport property for its primary purpose and function, and to assure equal opportunity for the freedom of expression of others.

(3) Conduct at or on any Airport so as to willfully deny to any person, employee or invitee on such premises, the lawful rights of such person, employee, or invitee to enter, to use the facilities, or to leave, any such public building;

(4) Distribute, exhibit or post any signs, commercial handbills, circulars, leaflets or similar material on Airport property;

(5) Deposit, distribute or discard any handbills, circulars, leaflets or similar material onto the Airports, Airport roads, rights-of-way, streets, sidewalks or other Airport property.

(b) Distribution of noncommercial handbills, circulars, leaflets or similar material may be conducted only upon Airport public roads, rights-of-way, streets or sidewalks in accordance with Standard Operating Procedures.

(c) The speech content of the activity shall not be a consideration in determining if a permit is issued.
(Ord. No. 49-273, § 7, 5-22-2012)

Sec. 9.35.080. Commercial photography, film, and recordings.

(a) No person, unless authorized by the Director, shall take still, motion, or sound motion pictures or sound recordings of voices for commercial training, educational, promotional,

advertising, entertainment, or other commercial purposes, other than news coverage, in public areas of the commercial passenger terminal or other public areas of any facility under the administration of the Airport Authority.

(b) Still, motion video, or live broadcast of facilities, systems, equipment or procedures are prohibited that are considered by the Director to be SSI or otherwise could or may compromise the safety or security of the traveling public.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 8, 5-22-2012)

Sec. 9.35.090. Lost articles.

Any person finding lost articles on Airport property shall immediately deposit them with an authorized representative of the Airport Police and Fire Division. Articles unclaimed by the owner within three (3) months thereafter shall be, upon request, turned over to the finder, or otherwise be lawfully disposed of, in accordance with applicable law or Standard Operating Procedures. Nothing in this paragraph shall be construed to deny the right of Airport tenants to maintain 'lost and found' services for property of their passengers, invitees or employees. Articles to which the owner or finder is not entitled to lawful possession shall be forfeited to the Airport Authority for disposal in accordance with the provisions of applicable law and procedures of the Airport Authority.
(Ord. No. 49-273, § 9, 5-22-2012; Ord. No. 50-591, § 3, 9-26-17)

Sec. 9.35.100. Events.

(a) No person shall hold or stage an event on Airport property without prior written permission from the Director.

(b) All pickets, protests, demonstrations, assemblies, political activity, informational leafleting or other events shall comply with all rules, regulations, and Airport Standard Operating Procedures adopted by the Director for such activities.

(c) As a condition of authorization, the Airport Authority may require reimbursement for its costs of personnel, equipment, and/or supplies used in support of such activity, and may impose fair and reasonable rental rates for extended use of any space under the administration of the Airport Authority. In determining the appropriate amount of security for an event, the Director shall not consider the content of the applicant's speech, the measure of hostility likely to be created by the applicant's speech or the response of others who may oppose the event.
(Ord. No. 49-273, § 10, 5-22-2012)

Sec. 9.35.110. Weapons.

(a) No person other than law enforcement officers on duty, authorized and trained non-commissioned Airport employees, TSA Employees, or authorized and permitted contractors shall carry any weapon on Airport property. (b) No person shall discharge any firearm on Airport property, except in the performance of official duties requiring the discharge thereof, for purposes of wildlife hazard management, training, or in the lawful defense of life or property.

(b) Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 11, 5-22-2012; Ord. No. 50-591, § 4, 9-26-17)

Sec. 9.35.120. Building construction and improvement.

No person, without written authorization from the Director, shall construct or cause to be constructed any buildings or structures, including signs, utility connections or any improvements, modifications (excluding maintenance and repair of a minor nature), re-model, or additions

to any such buildings or structures, or any paving, excavations, removal of soil or fill material or other improvement to Airport property.
(Ord. No. 49-273, § 12, 5-22-2012)

Sec. 9.35.130. Payment of fees and charges.

The Director shall maintain a current schedule of fees and charges for the use of and access to any Airport property or facilities. Unless otherwise provided by agreement, no person shall use or access any Airport property or facilities, except areas open for use by the general public and used for non-commercial purposes, without the payment of the prescribed fees and charges and obtaining applicable permits and/or use or lease agreement with the Airport Authority.
(Ord. No. 49-273, § 13, 5-22-2012)

Sec. 9.35.140. Interference with aircraft operations.

No person shall within the city limits of the City of Wichita direct, aim, throw, shoot, launch or propel any object, light or laser in such manner as to interfere with or endanger the safe operation of any vehicle, or of any aircraft approaching, landing at, taking off from, departing or operating to/from/upon an Airport.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 14, 5-22-2012)

Sec. 9.35.150. Airport parking facilities.

(a) No person shall enter or use an Airport motor vehicle parking facility, parking space or area, contrary to its posted or restricted use.

(b) No person shall stop, park or leave a motor vehicle unattended in any Airport motor vehicle parking facility, parking space or area, without having parked the vehicle in a designated stall or area in such a manner as to not obstruct the proper movement of other vehicles in the parking facility or area or utilization by other motor vehicles of driveways or adjacent parking spaces.

(c) No person shall park or leave a motor vehicle in an Airport motor vehicle parking facility, open to the public, employees or invitees, without having secured a required vehicle parking permit, vehicle parking claim check or having paid the required parking fees.

(d) No person shall remove or attempt to remove any motor vehicle from an Airport motor vehicle parking facility without making payment of the parking charge established and posted by the Airport Authority, unless authorized by the Director.

(e) No person, unless authorized by the Director, shall remove or attempt to remove a vehicle parking claim check from an Airport motor vehicle parking facility claim check dispensing machine, other than as an operator or passenger of a motor vehicle entering an Airport motor vehicle parking facility, in which case, such person shall remove only one (1) claim check from the dispensing machine.

(f) No person shall remove a claim check or checks from, or otherwise operate, an Airport motor vehicle parking facility claim check dispensing machine for the purpose of avoiding or enabling another person to avoid payment of the charge for the use of the parking facilities.

(g) No person shall remove or attempt to remove a motor vehicle from an Airport motor vehicle parking facility by presenting a claim check other than the claim check originally dispensed to the operator of such motor vehicle at the time that vehicle entered the parking facility.

(h) No person shall present a parking claim check requiring payment of fees upon exiting a motor vehicle parking facility which does not indicate an accurate record of the length of time the motor vehicle was actually within the parking facility for which the time and charges have accrued.

(i) No person, unless authorized by the Director, shall park or operate a motor vehicle on any Airport motor vehicle parking facility established or authorized for the use of persons employed at the Airport without complying with all procedures established by the Airport Authority for the control of such motor vehicle and for the use of such parking facility including payment of applicable fees and charges.

(j) No person, unless authorized by the Director, shall enter such employee parking facilities or use the transportation service provided in sup-

port thereof unless possessing and displaying a valid vehicle employee parking permit issued or approved by the Airport Authority.

(k) No person shall loan, lend, sell, or otherwise permit the use of his or her vehicle employee parking permit and/or decal for use of any Airport public or employee parking facility or any employee transportation service.

(l) No person, unless authorized by the Director, shall park vehicles carrying or transporting materials classified as hazardous, including biological, chemical, or physical in Airport motor vehicle parking facilities unless such materials are used for the operation of the vehicle.

(m) The provisions of this Section may be enforced by any Airport Police and Fire Officer or other authorized officers of the City of Wichita Airport Department.
(Ord. No. 49-273, § 15, 5-22-2012)

Sec. 9.35.160. Commercial ground transportation.

(a) All persons or entities, including drivers, employees and representatives of a commercial ground transportation provider, using Airport roadways or operating motor vehicles upon Airport property shall comply with all Airport rules, regulations, ordinances of the City of Wichita, and Airport Standard Operating Procedures adopted by the Airport Authority and/or the City of Wichita for such commercial ground transportation providers.

(b) The provisions of this Section may be enforced by any Airport Police and Fire Officer or other authorized officers of the Airport Authority.

(c) The Director may deny the use of the Airport to any ground transportation carrier and/or operator who violates Airport rules and regulations, ordinances of the City of Wichita or Airport Standard Operating Procedures, who fails to pay fees and charges, or fails to make arrangements to pay fees and charges.

(d) The Director may deny the use of the Airports by any person, equipment, motor vehicle or aircraft if such use is reasonably determined to create a potential safety or security hazard. Examples of such hazards may include, but are not limited to, the transport of explosives, large quantities of combustible material, or hazardous material cargo.

Sec. 9.35.170. Traffic, stopping, and parking of vehicles.

The Director is hereby authorized to designate such portions of the streets, roadways, and Airport property as, in his or her judgment, will be most compatible with the public interest and the use of all Airport property in regulating traffic and the stopping and parking of motor vehicles. Whenever any such zone or area is established, it shall be appropriately designated and marked by painting on the curb or roadway or by a sign, or both, and when so designated or marked it is unlawful for any person to drive, stop or park or cause or permit to be driven, stopped or parked any motor vehicle contrary to such sign or marking.
(Ord. No. 49-273, § 17, 5-22-2012)

Sec. 9.35.180. Abandoned motor vehicles and equipment.

(a) No person shall abandon any motor vehicle or equipment on Airport property. Airport Police and Fire Officers or other law enforcement officers are authorized to remove or cause the removal, in accordance with applicable state and local regulations, of any abandoned motor vehicle or equipment. For the purposes of this Section, any motor vehicle or equipment, except one properly parked in an Airport motor vehicle parking facility, in a parking facility under the leasehold control of a tenant of the Airport Authority, or other area authorized by the Director, which shall have been left unattended for a period of forty-eight (48) hours or more shall be presumed to have been abandoned and may be considered and treated as abandoned.

(b) Excluding parking facilities under the leasehold of an Airport tenant, no person shall park or store a motor vehicle or equipment in any Airport motor vehicle parking facility, or other area authorized for public or employee parking by the Airport Authority, which shall have been left unattended upon the Airport for a period of thirty

(30) days or more without prior notification given to the Director of Airports, his or her authorized representative, or an authorized parking management contractor.

(c) No person shall park, store or leave a motor vehicle or equipment on Airport property which is wrecked, dismantled or inoperable, without the permission of the Director.

(d) Vehicles and equipment which are subject to being towed and impounded pursuant to this subsection under conditions that do not constitute an immediate obstruction to the normal and safe movement of traffic or snow removal operations and are determined to be abandoned shall not be towed or impounded until upon the motor vehicle has been placed, on its windshield or in another prominent location, a sticker or placard indicating the vehicle is in violation of this Chapter and shall be removed after forty-eight (48) hours from the time the sticker or placard was attached to the vehicle. The sticker or placard shall include such other information as the Chief of Airport Police and Fire determines is necessary.

(e) The provisions of Title 11 of this Code and state law will be complied with regarding the towing, impounding and disposition of motor vehicles towed pursuant to this Section.

(f) Equipment removed shall be disposed of in accordance with the Standard Operating Procedures and policies of the Authority.

(g) Motor vehicle(s) removed from Airport parking facilities shall be disposed of in accordance with the Standard Operating Procedures of the Authority.
(Ord. No. 49-273, § 18, 5-22-2012)

Sec. 9.35.190. Payment to avoid prosecution.

The owner or operator of any motor vehicle which is parked in violation of any of the provisions of this Chapter and to which a notice of violation has been issued by an officer authorized to enforce the provisions of this Chapter, may, within ten (10) days, pay to the Wichita Municipal Court a fine for and in full satisfaction of such violation, a sum as established by the municipal court judge. The failure of such owner or operator to make such payment within ten (10) days shall render such owner or operator subject to such additional penalties as set forth in Section 11.92.010 of the Code of the City of Wichita, Kansas.
(Ord. No. 49-273, § 19, 5-22-2012)

Sec. 9.35.200. Authority to close Airports or portions thereof.

The Director may close any Airport under the ownership, jurisdiction and control of the Wichita Airport Authority and any paved or unpaved surfaces thereon at any time and under any circumstances, whether leased or unleased, which is deemed by the Director to endanger persons or property.
(Ord. No. 49-273, § 20, 5-22-2012)

Sec. 9.35.210. Operation of gliders, glider towing, remote control, and other aeronautical devices.

The release, launch or operation of remote radio controlled aircraft, balloons, hot air balloons, kites, rockets, gliders/sailplanes, unmanned aerial vehicles, and the towing of banners at or from any Airport, Airport property, or property immediately adjacent to and bordering Airport property shall not be permitted without the prior written consent of the Director.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 21, 5-22-2012)

Sec. 9.35.220. Aircraft jet and propeller exhaust.

No aircraft shall be operated at any Airport or upon Airport property in any manner where the exhaust, jet 'blast' or propeller 'blast' may cause injury to person or persons or do damage to property. If it is impossible to operate such aircraft without compliance with the above, then the engine(s) must be shut off and the aircraft towed to the desired destination.
(Ord. No. 49-273, § 22, 5-22-2012)

Sec. 9.35.230. Taxiing or moving aircraft.

No aircraft shall be operated, including static engine run-up, at any Airport or upon Airport property unless a person holding a valid, current, and appropriate airman's certificate, or a mechanic properly trained and qualified to operate and/or taxi that particular type of aircraft shall be attending the brakes and controls.
(Ord. No. 49-273, § 23, 5-22-2012)

Sec. 9.35.240. Helicopters.

Helicopters shall not be started, operated, taxied, towed or otherwise moved on any Airport or upon Airport property with rotors turning unless there is a clear area of not less than fifty feet (50) from the outer tip of any main rotor. No helicopters shall be operated within two hundred (200) feet of any Airport or upon Airport property where unsecured light aircraft are parked. No helicopters shall be taxied on any Airport or upon Airport property by any person other than a person holding a valid, current, and appropriate airman's certificate for rotary-wing aircraft.
(Ord. No. 49-273, § 24, 5-22-2012)

Sec. 9.35.250. Crossing roads or highways.

No aircraft shall be operated upon or across any public road or street on any Airport or upon Airport property under its own power without prior consent of the Director.
(Ord. No. 49-273, § 25, 5-22-2012)

Sec. 9.35.260. Aircraft accidents and incidents.

(a) Any person operating an aircraft involved in an accident or incident as defined by 49 CFR 830 on Airport property which results in loss of life or injury to any person, or damage to any property, shall immediately bring to a halt such aircraft at the scene of such accident or incident, or as close thereto as possible so as to minimize the obstruction of other aircraft operations. The person operating the aircraft shall comply with all applicable Federal Aviation Administration (FAA) and National Transportation Safety Board (NTSB) notification regulations, including verbal and written directives. Unless injured, such person shall remain at the scene of the accident or incident until federal reporting requirements have been accomplished.

(b) Any person operating an aircraft involved in an accident or incident on Airport property, shall submit a report of such accident or incident to the Airport Police and Fire Division of the Airport Authority, including the names and addresses of the individuals involved, the description of the property and all aircraft involved, the registration and license number of all aircraft involved, names and addresses of any witnesses to the accident, and such other information relevant to the accident upon the request of any commissioned law enforcement officer of the Wichita Police Department or Airport Police and Fire Officer. The operator of any aircraft involved in such accident or incident shall, upon request of any commissioned law enforcement officer of the Wichita Police Department or Airport Police and Fire Division, produce an airman's certificate, photo identification, aircraft registration, or other documents relevant to such accident or the persons or property involved to any law enforcement officer investigating the same.

(c) The owner or operator of an aircraft involved in an accident or incident on Airport property shall not move such aircraft from the scene of the accident until authorized to do so by the appropriate federal agencies, law enforcement officers or Airport Police and Fire Officer."

(d) The operator of an aircraft involved in an accident or incident on Airport property shall, upon request of an appropriate federal agency, law enforcement officer or Airport Police and Fire Officer, submit to a test to indicate the alcohol concentration in the blood or breathe when:

(1) The law enforcement officer is authorized under state or local law to conduct such test or to have the test conducted; and

(2) The law enforcement officer is requesting submission to the test to investigate a suspected violation of state or local law.

(e) Such test results shall be released to the Federal Aviation Administration and National Transportation Safety Board upon request.

(f) Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 26, 5-22-2012)

Sec. 9.35.270. Removal of disabled aircraft.

(a) Aircraft owners and/or operators involved in an accident or incident on Airport property shall be responsible for the prompt removal of disabled aircraft and parts thereof, unless required or directed to delay or postpone such removal by the Director, an Airport Police and Fire Officer, or an authorized representative of a federal agency.

(b) When a disabled aircraft is blocking, delaying, or precluding the use of any portion of the AOA, the owner and/or operator of the aircraft shall take all reasonable actions to remove such aircraft, or make arrangements for removal as soon as directed or authorized to do so by the Director or an Airport Police and Fire Officer, and in concurrence with jurisdictional governmental agencies. In the event that removal of such disabled aircraft and parts thereof are not initiated as soon as possible, or is not progressing at a rate acceptable to the Director or his/her authorized designee, then the Airport Authority shall have the right to cause the removal of the aircraft at the sole expense and risk of the owner, and without liability to the Airport Authority.
(Ord. No. 49-273, § 27, 5-22-2012)

Sec. 9.35.280. Denial of use.

(a) The Director, following written notice, may deny the use of Airport property to any aircraft owner and/or operator, tenant, tenant employee, contractor, or other person who knowingly violates Airport rules, regulations, and Standard Operating Procedures, fails to pay fees and charges, or fails to make arrangements to pay fees and charges.

(b) The Director may deny the use of Airport property if such use is reasonably determined to create a potential safety or security risk, hazard or a potential violation of federal regulations.
(Ord. No. 49-273, § 28, 5-22-2012)

Sec. 9.35.290. Aircraft parking.

No person shall park an aircraft or leave the same standing on a runway, taxiway, ramp and apron area, public aircraft parking and storage or operational area on any Airport property except at such places as may be identified and permitted by the Director. When parked in such permitted areas, light aircraft of less than 5,000 pounds gross takeoff weight shall be properly and correctly tethered to the ground or otherwise secured in a safe and proper manner. The main landing wheels of heavy aircraft weighing at or in excess of 5,000 pounds gross takeoff weight shall be chocked with wheel blocks or other approved devices, except in cases where, in the opinion of the Director, proven procedures may be equally effective to secure the aircraft in a safe and proper manner. Helicopters shall have braking devices and/or rotor mooring blocks applied to the rotor blades.
(Ord. No. 49-273, § 29, 5-22-2012)

Sec. 9.35.300. Preservation of property.

No person shall, unless authorized by the Director:

(a) Destroy, injure, deface, disturb, or tamper with any building, sign, equipment, fixture, marker, or any other structure or property on Airport property;

(b) Injure, deface, remove, destroy, or disturb the trees, flowers, shrubs, or other vegetation on Airport property;

(c) Walk, drive or park on a posted lawn or seeded area of any Airport property; or

(d) Willfully abandon any personal property on Airport property.

(Ord. No. 49-273, § 30, 5-22-2012)

Sec. 9.35.310. Portable Storage Containers and Structures.

(a) Unless specifically approved in writing, and under conditions specified by the Director, no person shall place, or allow to be placed, upon Airport property any type of portable storage container, temporary structure, trailer, mobile home, unit, box, barrel, modular structure or device which is used to store merchandise and/or

equipment and supplies outside of an enclosed permanent building or structure, which does not qualify as a building or structure under Title 18 of the Code of the City of Wichita, Kansas.

(b) The Director will not withhold approval of such container(s) and structure(s), for a reasonable duration of time, if such is of a temporary nature for the purpose of supporting construction, alteration or improvement activity, or other approved project.
(Ord. No. 49-273, § 31, 5-22-2012)

Sec. 9.35.320. Interference with Airport operations.

(a) No person shall conduct any operation or engage in any activity on Airport property, nor permit the conduct of any activity, which shall materially or adversely affect the development, improvement, operation, or maintenance of the Airports or facilities thereupon.

(b) No person shall use or permit to be used in any manner any operation or activity which might interfere with the landing and take-off of aircraft from the Airports or otherwise constitute a safety or security hazard to the general public, or to tenants or the customers, agents, invitees, contractors, representatives, and employees of those tenants. The Director reserves the right to enter upon any Airport property, whether leased or unleased, and cause the abatement of such interference.

(c) No person shall allow any condition on Airport property, nor permit the conduct of any activity, which shall materially or adversely affect, infringe upon, block or interrupt the operations and business activity of other Airport tenants, customers, agents, invitees or employees.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 32, 5-22-2012)

Sec. 9.35.330. Snow and ice removal.

(a) No person shall pile, deposit, move, remove or displace snow, snow piles, windrows or other accumulations of frozen precipitation in such a fashion or manner as to:

(1) Be no closer than twenty five feet from any security fence;

(2) Block any access gates or controls;

(3) Block or impede any taxiway or taxi lane;

(4) Impose an obstruction within the object free area (OFA) of any taxiway or taxi lane; or

(5) Infringe upon, block or interrupt the business of an Airport tenant leasehold.

(b) Snow piles and accumulations requiring removal shall be stored on pre-approved/arranged paved or non-paved areas.

(c) Only FAA approved dry and liquid chemicals may be used for de-icing or snow removal on air-side paved surfaces (parking ramps, taxiways, runways), as set forth in Advisory Circular 150/5200-30, current edition, or as may be amended, Airport Winter Operations and Safety, Section 4-6 Approved Chemicals, current edition, or as may be amended.

(d) The use of snow and ice removal contractors may be authorized, with prior written approval by the Director, subject to acceptable completion of contractor employee training, maintenance of a general liability insurance policy and other reasonable safety requirements and standards as the Airport Authority may impose. Such requirements may include, but are not limited to, securing and maintaining a general liability insurance policy in limits acceptable to the Director and naming the Wichita Airport Authority and the City of Wichita as additional insured.
(Ord. No. 49-273, § 33, 5-22-2012)

Sec. 9.35.340. Protection of airspace.

(a) In the event future construction of a building, structure, or attachment thereto is planned on Airport property, or in the event of any planned modification or alteration of any pres-

ent or future building or structure situated on Airport property, all persons shall comply with the notification, review and approval requirements contained in 14 CFR Part 77 of the Federal Aviation Regulations, and Chapter 28.08 of the Code of the City of Wichita, Kansas. No person shall erect nor permit the erection of any structure or object, nor permit the growth of any tree on the Airport property which will exceed such maximum height as may be stipulated by the Airport Authority. Applicable federal, state and/or local laws, codes, regulations or directives concerning height restrictions shall govern the maximum allowed height. In the event any person fails to promptly comply with this Section, the Director, after notice to such person, shall have the right to enter upon any Airport property and to remove the offending tree, structure or object.

(b) Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 34, 5-22-2012)

Sec. 9.35.350. Entry to the Secured Area, Air Operations Area (AOA), Security Identification Display Area (SIDA), or Sterile Area.

No person shall enter the Secured Area, AOA, SIDA or Sterile Area of Wichita Dwight D. Eisenhower National Airport except:

(a) Persons who enter in accordance with security clearance pursuant to the TSA approved Airport Security Plan established or authorized by the Airport Authority; or

(b) Persons assigned duties on the Secured Area, AOA, SIDA or other Restricted Areas of Wichita Dwight D. Eisenhower National Airport bearing proper identification as approved and required herein.

(c) The provisions of this Section are enforceable by the Chief of Police, any law enforcement officer, Chief of Airport Police and Fire, Airport Police and Fire Officers and 'other authorized officers' of the Airport Authority.

(d) Any person violating any provision of this Section of the Code shall be punished by a fine of seventy-five ($75) dollars.
(Ord. No. 49-273, § 35, 5-22-2012; Ord. No. 50-591, § 5, 9-26-17)

Sec. 9.35.360. Vehicle Entry to and movement on the Secured Area, Air Operations Area (AOA), Security Identification Display Area (SIDA), or Sterile Area.

(a) No person shall enter or operate a motor vehicle or equipment upon the Secured Area, AOA, SIDA or Sterile Area of Wichita Dwight D. Eisenhower National Airport except:

(1) Pursuant to the TSA approved Airport Safety Program established or authorized by the Airport Authority; and

(2) Authorized persons with assigned duties requiring the operation of motor vehicles upon the Secured Area, AOA, SIDA or other Restricted Areas of Wichita Dwight D. Eisenhower National Airport, and the motor vehicle bearing a Vehicle Ramp Permit as approved and required herein; or

(3) Authorized persons with assigned duties requiring operating motor vehicles or equipment upon the Secured Area, AOA, SIDA or other Restricted Areas of Wichita Dwight D. Eisenhower National Airport and the motor vehicle bearing a permanent company/agency name and/or logo identifying such vehicle as the property of an Airport tenant or operator as approved and required herein;

(4) Authorized persons with assigned duties requiring operating motor vehicles upon the Secured Area or SIDA of Wichita Dwight D. Eisenhower National Airport and not operating a motor vehicle owned by and marked as an Airport tenant or operator shall be subject to and shall

consent to a motor vehicle security inspection prior to entering the Secured Area or SIDA.

(b) The provisions of this Section are enforceable by the Chief of Police, any law enforcement officer, Chief of Airport Police and Fire, Airport Police and Fire Officers and 'other authorized officers' of the Airport Authority.
(Ord. No. 49-273, § 36, 5-22-2012; Ord. No. 50-591, § 6, 9-26-17)

Sec. 9.35.370. Use and enjoyment of Airport premises.

No person(s) singly or in association with others shall by his or her conduct or by congregating with others obstruct, delay or unreasonably interfere with any other person or persons from the use and enjoyment of the Airports and its facilities or any Airport property, or seek to obstruct, delay, or unreasonably interfere with other person or persons from passage from place to place, or through entrances, exits or passageways on the Airports or Airport property.
(Ord. No. 49-273, § 37, 5-22-2012)

Sec. 9.35.380. Sanitation.

(a) No person shall dispose of garbage, papers, refuse, waste or other forms of trash, including grass clippings, brush and tree limbs, construction debris, cigarettes, cigars or matches on Airport property, except in receptacles provided for such purpose.

(b) No person shall dump or dispose of any fill, construction, demolition or building material or any other material on Airport property, or in any canal or drainage ditch serving the Airports, except with prior approval of the Director, and in such area and under such conditions as are specifically designated.
(Ord. No. 49-273, § 38, 5-22-2012)

Sec. 9.35.390. Animals.

(a) No person, other than a person with a disability accompanied by a service animal, or a trained dog used for law enforcement purposes and under the control of an authorized law enforcement officer, shall enter the Wichita Dwight D. Eisenhower National Airport commercial passenger terminal with an animal, unless such animal is to be or has been transported by air and is kept confined in a carriage device or cage so as to be completely under control and not pose a safety risk to other persons.

(b) Except for animals that are to be or have been transported by air, or are properly confined or restrained as required under this Section, no person shall permit any animal under his or her control or custody to enter Airport property.

(c) A service animal is one that performs a function or task for a person with a disability that such person cannot personally perform. The handler is solely responsible for the care, feeding and control of the service animal.

(d) A service animal shall have a harness, leash, or other tether, unless either the handler is unable because of a disability to use a harness, leash, or other tether, or the use of a harness, leash, or other tether would interfere with the service animal's safe, effective performance of work or tasks, in which case the service animal must be otherwise under the handler's control (*e.g.*, voice control, signals, or other effective means).

(e) A service animal may be removed from the Wichita Dwight D. Eisenhower National Airport commercial passenger terminal if:

(1) The animal is out of control and the animal's handler does not take effective action to control it; or

(2) The animal is not housebroken.

(f) If a service animal is excluded from the Wichita Dwight D. Eisenhower National Airport commercial passenger terminal, the person with a disability shall be given the opportunity to participate in the service, program, or activity without having the service animal on the premises.

(g) No person, other than officials acting pursuant to proper authority for purposes of wildlife or other animal hazard management shall hunt, pursue, trap, catch, injure, or kill any animal on Airport property.

(h) No person shall ride horse-back on Airport property without prior authorization of the Director.

(i) No person shall permit, either willfully or through failure to exercise due care or control, any animal to urinate or defecate upon the sidewalks of the Airports or upon the floor of the commercial passenger terminal or any other building used in common by the public on Airport property.

(j) No person shall feed or conduct any other action to encourage the habitation or congregation of birds or other wildlife on Airport property.
(Ord. No. 49-273, § 39, 5-22-2012; Ord. No. 50-591, § 7, 9-26-17)

Sec. 9.35.400. Foreign objects on AOA.

(a) The presence of foreign objects on any portion of the AOA presents a significant safety issue for aircraft, aircraft engines and persons and property. Foreign objects include natural or manmade items, trash, debris, plastic or metal items or pieces thereof, which may cause damage to aircraft engines or hulls either through intake of an engine, by reason of propeller or jet engine exhaust created by the engine, or else being wind-blown into an engine or against an aircraft hull.

(b) No person shall, either willfully or through failure to exercise due care or control, deposit, or cause to be placed or deposited on any area of the AOA, or on any leasehold area in close proximity to or adjoining the AOA, any foreign object defined in subsection (a).
(Ord. No. 49-273, § 40, 5-22-2012)

Sec. 9.35.410. False reports or threats.

No person shall make any physical, verbal or written threat involving aircraft, Airport facilities or operations at any Airport, or make a false report regarding the conduct of operations at or use of any Airport.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 41, 5-22-2012)

Sec. 9.35.420. Airport Access and Identification Media.

(a) Those persons authorized to enter the Secured Area, AOA, SIDA, Sterile Area or other Restricted Areas at Wichita Dwight D. Eisenhower National Airport in accordance with the provisions of this Section shall at all times possess an official access and identification media (ID media) issued and approved by the Airport Authority. ID media shall be worn and displayed conspicuously on the outer garment of the person, in plain view above the waist, unless otherwise authorized by the Airport Authority.

(b) In the event ID media issued by the Airport Authority is damaged, lost or stolen, the company which employs or sponsors the person to which such identification was issued shall comply with procedures established by the Airport Authority and give immediate notice of such occurrence to the Airport Police and Fire Division. A replacement ID media shall not be reissued until such notice is received by the Airport Police and Fire Division and either the employee or the employer has paid to the Airport Authority the established fee for the issuance of replacement Airport ID media.

(c) All persons issued ID media by the Airport Authority, or the company employing or sponsoring such persons, shall pay to the Airport Authority the established fee for the issuance of original, renewal or replacement Airport security ID media. The company employing or sponsoring persons holding ID media shall be responsible for the immediate return of the ID media of any employees or sponsored persons who have separated or transferred from their employment at the Airport, or whose ID media has been demanded by the Airport Authority, and for paying to the Airport Authority the established fee for the failure to return the ID media of the employees or sponsored persons.

(d) No person issued ID media by the Airport Authority for the purpose of entering a Secured Area, AOA, SIDA, Sterile Area or other Restricted Areas at Wichita Dwight D. Eisenhower National Airport or any other Airport shall loan or transfer such ID media to any other person or use ID media for personal purposes.

(e) No person issued ID media by the Airport Authority shall utilize such ID media for the purpose of allowing access for any other person to a Secured Area, AOA, SIDA, Sterile Area or other Restricted Areas if such other person has been issued ID media. This does not preclude or prevent the security Escort of persons not issued ID media and not having unescorted access authority.

(f) No person shall enter a Secured Area, AOA, SIDA, Sterile Area or other Restricted Areas at Wichita Dwight D. Eisenhower National Airport or any other Airport without possessing the appropriate color zone identification badge authorization for such access, unless otherwise specifically approved by the Airport Authority.

(g) No person shall enter a Secured Area, AOA, SIDA, Sterile Area or other Restricted Areas at Wichita Dwight D. Eisenhower National Airport or any other Airport using ID media issued to any other person. In the event a person is discovered wearing the access and identification media of another person, unless such other person has previously reported that his or her access and identification media has been lost or stolen, both persons shall be considered to have violated the provisions of this Section.

(h) It shall be the responsibility of all persons working in a Secured Area, AOA, SIDA, Sterile Area or other Restricted Areas at Wichita Dwight D. Eisenhower National Airport to ensure that all other persons approached within fifty (50) feet are properly displaying an appropriate Airport access and identification media at all times, in accordance with this Section. The failure of an authorized ID media holder to issue proper and appropriate security challenge to persons in a Secured Area, AOA, SIDA, Sterile Area or other Restricted Area who are not visibly displaying ID media shall be deemed in violation of this Section. A proper and appropriate security challenge shall be issued as defined in this Chapter. Persons found to be without current, correct and appropriate ID media or in an unauthorized area shall be immediately escorted from the area into a non-secured public area, and kept under visual observation until clear of the Secured Area, AOA, SIDA or Sterile Area and the challenging party shall immediately notify Airport Police and Fire. When a verbal challenge is not made due to fear or concern for personal safety, the location, name (if known), employer (if known) and physical description of the person must be immediately communicated to the Airport Police and Fire Division.

(i) Airport access and identification media issued by the Authority shall at all times remain the property of the Airport Authority. The Airport Authority shall have the right to confiscate the ID media of any person who violates the provisions of this Section, and to demand the return of the ID media of all persons employed or sponsored by a company violating this Section or whose lease, permit or license agreement with the Airport Authority allowing use of the Airport has expired, been cancelled or terminated. The Authority shall have the right to demand the return of and confiscate Airport Authority issued access and identification media for any violation by any person of Transportation Security Regulations, Security Directives, or the TSA approved Airport Security Plan.

(j) The following shall be exempt from the requirements of this Section:

(1) FAA Safety Inspectors authorized to carry and exercise the authority of FAA Form 110A credentials while conducting and discharging their official duties; or

(2) Transient pilots, flight crews, and cabin crews while moving in the immediate vicinity of the aircraft for which they are operating, and between the points of the aircraft and flight crew operations, flight office, airline operations office, fixed-base operation or equivalent and points immediately in-between; or

(3) Aircraft passengers while moving in the immediate vicinity of the aircraft, and between the aircraft and the terminal

boarding/de-boarding points, fixed-base operation or equivalent and points immediately in-between.

(Ord. No. 49-273, § 42, 5-22-2012; Ord. No. 50-591, § 8, 9-26-17)

Sec. 9.35.430. Security devices.

No unauthorized person shall remove, tamper, alter, interfere with, damage, destroy or impair a camera, lock, security mechanism or access control system of any door or gate at any Airport leading to a Secured Area, AOA, SIDA, Sterile Area or other Restricted Area that is not within a tenant exclusive leasehold and for which the Airport Authority has direct control.

(Ord. No. 49-273, § 43, 5-22-2012)

Sec. 9.35.440. Consent to inspection.

Any motor vehicle and the contents thereof, entering or operating upon a Secured Area, AOA, SIDA, Sterile Area or other Restricted Area, shall be subject to inspection by law enforcement officers and other authorized officers for the purposes of determining ownership of such motor vehicle and the contents thereof, and for examining the documentation relating thereto. The operation or use of a motor vehicle by any person into, from or within the Secured Area, AOA, SIDA, Sterile Area or other Restricted Area of the Airport shall constitute the consent of the owner, operator and/or user of such vehicle for such inspection.

(Ord. No. 49-273, § 44, 5-22-2012)

Sec. 9.35.450. Inspections.

(a) No person shall enter the Secured Area, AOA, SIDA, Sterile Area or other Restricted Area of the Airport, except persons who enter pursuant to Section 9.35.420 of the Code of the City of Wichita, Kansas, bearing the proper identification as authorized by the TSA in the Airport Security Program.

(b) No person entering or attempting to enter, operating upon, or departing from or attempting to depart the Secured Area, AOA, SIDA, Sterile Area or other Restricted Area of the Airport, shall refuse to produce for inspection at the request of law enforcement officers and other authorized officers, any access and identification media, or the contents, or both, of any vehicle, bag, case, parcel, box or container of any kind in his or her possession.

(c) Where the entry into or departure from the Restricted Area is by means of a motor vehicle, no person shall refuse to produce for inspection, after such request, a driver's license, proof of insurance, and an Airport issued vehicle ramp permit.

(d) No person shall refuse to produce, at the request of law enforcement officers and other authorized officers any document in his or her possession relating to the ownership or possession of cargo or freight upon entering, leaving or being within the Secured Area, AOA, SIDA, Sterile Area or other Restricted Area.

(e) No person entering or attempting to enter, operating upon, or departing from or attempting to depart the Secured Area, AOA, SIDA, Sterile Area or other Restricted Area of the Airport shall have in his or her vehicle or personal possession any weapon, explosives or explosive device unless such person is a law enforcement officer or other authorized officer permitted to be in possession of such items and such items are required in the performance of official Airport duties.

(Ord. No. 49-273, § 45, 5-22-2012)

Sec. 9.35.460. Protection of leased areas.

(a) No Airport tenant under whose leased premises and control are any motor vehicle or personnel gates, doors or any other means of ingress and egress to a Secured Area, AOA, SIDA, Sterile Area or other Restricted Area shall fail to keep the same secured or controlled at all times to prevent the access of unauthorized persons.

(b) Airport tenants shall be responsible for the control and prevention of unauthorized access through their leased premises to a Secured Area, AOA, SIDA, Sterile Area or other Restricted Area.

(c) No Airport tenant under whose control any motor vehicle or personnel gates, doors or other means of ingress or egress to or from a Secured Area, AOA, SIDA, Sterile Area or other

Restricted Area shall fail at all times to have in effect security access control procedures meeting the requirements of the Airport's security program. In no event shall tenant-controlled keys, lock combinations, proximity cards or the like be issued or permitted to be issued to non-employees and persons without an operational need and necessity for such keys, combinations or cards.

(d) Airport tenants under whose leased premises and control are any motor vehicle or personnel gates, doors or any other means of ingress and egress to a Secured Area, AOA, SIDA, Sterile Area or other Restricted Area shall, at all times, maintain an accurate record and accounting of persons to whom keys, lock combinations, proximity cards or the like have been issued. Upon the demand of an Airport Police and Fire Officer or other authorized officer of the Airport Authority, such Airport tenants shall provide reasonable documented proof of compliance with this subsection.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 46, 5-22-2012)

Sec. 9.35.470. Security Sensitive Information.

(a) No person, who has obtained details of an account of airplane piracy as a consequence of his or her official duties, shall divulge such information to persons other than those with an operational need and necessity to know, including:

(1) Information about the incident or efforts to resolve the incident, the disclosure of which may jeopardize the safety of persons involved;

(2) Information identified by officials of an agency of the U.S. Government as techniques and procedures used for resolving acts of airplane piracy and interference with aviation operations, the disclosure of which is likely to jeopardize the safety of international civil aviation.

(b) No person, who may have knowledge, information or documentation of information defined as SSI herein, or as defined by TSR 1520.5, may knowingly share, convey, transfer, distribute, or transmit such information to persons without proper security clearance and without an operational need and necessity to possess such information.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 47, 5-22-2012)

Sec. 9.35.480. Storage of property.

(a) Unless otherwise provided in a lease or other written agreement or permit, no person shall use any area of the Airports for storage of cargo, aircraft, vehicles, motor vehicles, mobile equipment, boats, recreational vehicles, campers, motorcycles, all terrain vehicles, or other property without prior permission of the Director. If persons use such areas for storage without first obtaining permission, the Airport Authority shall have such property removed from Airport property and stored at the expense of the owner or consignee thereof.

(b) No person shall load cargo on or unload cargo from an aircraft, other than in designated areas established by the Director, or in areas contained within an established leasehold for such activity.
(Ord. No. 49-273, § 48, 5-22-2012)

Sec. 9.35.490. Handling and disposal of sanitary waste from Aircraft.

(a) Sanitary waste removed from an aircraft shall be securely enclosed or covered while being transported to a legally permitted facility designed and designated for emptying and processing of such waste.

(b) The sanitary waste accumulated in the fixed waste retention tank on an aircraft shall be discharged through a flexible hose, with a watertight connection to a portable water-tight tank to avoid contamination of the surrounding area. Flushing of the retention tank shall not be accomplished by direct connection to any potable water distribution system.

(c) All connections in an aircraft sanitary waste discharge line or sanitary tank servicing equipment shall be equipped with positive seals to prevent spillage.

(d) All sanitary waste shall be properly disposed of in accordance with federal, state, and local laws, codes, and regulations. Sanitary waste shall not be disposed of or introduced into any sanitary or storm water system of the Airport, or onto Airport property including interior or exterior drains or plumbing fixtures or receptacles, except in a manner approved by the Airport Authority and meeting the requirements of all federal, state, and local environmental and health codes.
(Ord. No. 49-273, § 49, 5-22-2012)

Sec. 9.35.500. Smoking and other sources of open flame.

Smoking or carrying of cigarettes, cigars, pipes, striking of matches, operation of open flame lighters or other sources of open flame or ignition is prohibited:

(a) Within 100 feet of any aircraft; and

(b) Within 100 feet of any fuel storage facility, fuel storage tank, refueling vehicle, refueling station or Wichita Airport Authority owned storage building, facility or location containing flammable liquids or gasses; and

(c) Within 100 feet of the site of any flammable liquid spill; and

(d) On any aircraft parking ramp.
(Ord. No. 49-273, § 50, 5-22-2012)

Sec. 9.35.510. Open-flame operations.

No person shall conduct an open-flame operation in any area on Airport property, including but not limited to cutting, welding or other maintenance or construction activity, unless specifically permitted by the Airport Police and Fire Division. Any such activities, if authorized, shall be conducted in strict accordance with NFPA standards, and Airport Standard Operating Procedures.
(Ord. No. 49-273, § 51, 5-22-2012)

Sec. 9.35.520. Storage of material.

(a) No person shall keep, store or maintain material or equipment in such type or manner as to constitute a fire hazard or be in violation of applicable state and municipal fire codes, NFPA standards or the Standard Operating Procedures.

(b) All storage material in buildings shall be arranged in height not to extend above the lower or bottom cord of roof trusses and shall not be closer than eighteen (18) inches below sprinkler heads. Storage areas shall provide aisles adequate for passage of fire department personnel and equipment throughout the area and between such storage areas and all outside walls.
(Ord. No. 49-273, § 52, 5-22-2012)

Sec. 9.35.530. Storage, handling, and records of hazardous material.

(a) No person shall keep, store or maintain any flammable liquids, gases, explosives, signal flares, pyrotechnics, or other hazardous material on Airport property, except in containers and receptacles, and in structures or areas, specifically approved for such storage, in compliance with the requirements of NFPA standards, Federal Aviation Regulation, and federal, state and local fire and environmental codes.

(b) No person shall keep, store or maintain any hazardous material, including but not limited to, flammable liquids, gasses, explosives, signal flares, or pyrotechnics, in quantities greater than ten (10) gallons, or thirty (30) pounds without notifying the Airport Police and Fire Division and identifying the type, quantity, location and container marking/identification of such material. Hazardous materials defined as 'acutely' hazardous, regardless of quantity or volume, shall be reported.

(c) Notification shall be made to the Airport Police and Fire Division no later than fourteen (14) days following any addition of material quantity, change in material type, or change of material location.

(d) The Director or his authorized designee(s) shall have the right to enter upon any Airport property, whether leased or unleased, for the purpose of inspecting and verifying the type, quantity, and location of hazardous materials.
(Ord. No. 49-273, § 53, 5-22-2012)

Sec. 9.35.540. Cleaning fluids.

(a) No person shall use flammable substances for cleaning hangars or other buildings on Airport property.

(b) No person shall store flammable cleaning fluids on Airport property, except in containers with dispensing devices approved by NFPA standards and applicable federal, state, and local fire and environmental codes.

(c) No person shall transport flammable cleaning fluids on Airport property except in safety containers approved by NFPA standards and applicable federal, state, and local fire and environmental codes.
(Ord. No. 49-273, § 54, 5-22-2012)

Sec. 9.35.550. Leasehold cleanliness.

All Airport tenants shall keep all interior and exterior areas of the premises leased or used by them clean and free of oil, grease, and other flammable material. The floors of hangars and other buildings shall be kept clean and continuously kept free of rags, waste material or other flammable trash or debris.
(Ord. No. 49-273, § 55, 5-22-2012)

Sec. 9.35.560. Operating aircraft engines in hangars.

No person shall start or operate an aircraft engine, including on-board auxiliary power units (APU's), inside any hangar, other than the short duration starter rotation of jet engines without ignition.
(Ord. No. 49-273, § 56, 5-22-2012)

Sec. 9.35.570. Classified Explosives, corrosives, poisons, compressed gases, and radiological materials.

(a) No person shall store, keep, maintain, handle, use, dispense or transport at, to or from an Airport, any Class A explosive (as defined by the 'Hazardous Material Regulation of the Department of Transportation') without the prior approval of the Director.

(b) No person shall store, keep, maintain, handle, use, dispense or transport at, to or from the Airports any Class B or Class C explosive, Class A poison, or red label materials (as defined by the 'Hazardous Material Regulation of the Department of Transportation') in a manner other than in conformity with the applicable regulations of the Air Transport Association of America, the International Air Transport Association, the United States Department of Transportation, and the recommendations of the National Fire Protection Association.

(c) Other than for purposes approved by Federal Aviation Regulations (FARs), no person shall carry a compressed air or gas tank aboard a commercial aircraft, unless such tank is reduced to zero pressure, or is an integral component of the aircraft system.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 57, 5-22-2012)

Sec. 9.35.580. Fueling and defueling.

(a) No person shall fuel or defuel an aircraft while an engine of such aircraft is running. Fueling or defueling of an aircraft is not prohibited during aircraft APU operations, or when an operating jet engine is mounted at the rear of the aircraft or on the wing on the side opposite the fueling point. A single engine may be operated to provide aircraft electrical power during fueling, provided such operations are conducted in accordance with the aircraft manufacturer's

recommended procedures manual, are not contrary to the manufacturer's published aircraft limitations, and are not in violation of NFPA or ATA standards.

(b) All handling, maintenance, and storage of hazardous substances and materials by commercial fuel service providers, who provide fuel services to commercial airlines on Wichita Dwight D. Eisenhower National Airport, shall comply with the requirements of 14 CFR Part 139, Sub Part 321 as currently published, or as may be amended, changed, revised, and promulgated by the Federal Aviation Administration, the procedures for which is specifically set forth under the approved Airport Certification Manual, and ATA Spec 103 as currently published or as may be amended, changed or revised.

(c) In accordance with NFPA standards, no person shall place into operation any electrical appliance within fifty (50) feet of an aircraft when the aircraft is being fueled or defueled.

(d) No aircraft shall be fueled or defueled unless the aircraft and the fuel dispensing apparatus shall both be electrically grounded or bonded as required by FAR and NFPA standards.

(e) When a fuel spill of any quantity occurs, fueling operations shall immediately cease and the Airport Police and Fire Division shall be notified immediately, and if necessary and practical, shut-off valves shall be shut down. If the engine of the fueling vehicle is running at the time of the fuel spill, the vehicle shall be removed from the area unless contrary orders are issued by the senior Airport Police and Fire Officer at the scene. If the engine of a fueling vehicle is shut down at the time of the fuel spill, it shall remain shut down unless a fire has already started or until the senior Airport Police and Fire Officer at the scene authorizes or orders the vehicle moved. In no event shall fueling or defueling operations resume following a fuel spill until all areas upon which fuel has spilled or flowed over are contained and removed, and the senior Airport Police and Fire Officer at the spill site has issued an order permitting the resumption of fueling operations. The fueling agent or owner of the mobile fueling vehicle or static fueling device involved in an accidental fuel release shall be responsible for all costs associated with the clean-up, removal, remediation and lawful disposal of fuel, soils, and absorbent material as required by state or federal law.

(f) No passenger shall be permitted in any aircraft during fueling or defueling, unless a cabin attendant is present at or near the cabin door and a passenger boarding ramp or bridge is in place at the cabin door, and in accordance with ATA and NFPA standards.

(g) No person shall use any material within fifty (50) feet of the nearest point of an aircraft during fueling or defueling of the aircraft which may cause a static spark.

(h) No person shall engage in aircraft fueling and defueling operations without adequate fire extinguisher devices as recommended by NFPA and as required by FARs.

(i) No person shall start the engine of any aircraft when there is flammable liquid on the ground in the vicinity of such aircraft.

(j) No person shall fuel or defuel an aircraft with fueling hoses and other equipment or apparatus which are not in safe and serviceable condition in accordance with NFPA standards and FARs.

(k) All hoses, funnels, and appurtenances used in fueling and defueling operations shall be equipped with a positive grounding device in good order to prevent ignition of flammable liquids due to static spark.

(l) The fueling and defueling of aircraft shall be conducted at a distance of no less than fifty (50) feet from any building or structure unless at the commercial passenger terminal building aircraft loading/unloading gate, or fifty (50) feet from any combustion or ventilation air intake to any boiler, heater, or incinerator room in accordance with NFPA standards.

(m) Maintenance and testing of fuel storage, distribution, and delivery systems shall be conducted under controlled conditions, in strict compliance with NFPA 410(C) or subsequent replacement publications.

(n) Refueling vehicles shall be stored and maintained outdoors in areas authorized by the Airport Authority, except for minor adjustments or repairs necessary to move such units to the storage area. No fuel trucks, empty or otherwise, shall be brought into, kept or stored within any building or enclosed structure at an Airport, unless with prior notification and under such conditions as approved by the Airport Police and Fire Division.

(o) If a fire occurs in or near a fuel delivery device while servicing an aircraft, the Airport Police and Fire Division shall be notified immediately, fueling shall be discontinued immediately, emergency valves shall be shut down at once, and the fueling vehicles and equipment shall immediately be removed from the vicinity of the aircraft unless deemed unsafe to do so. Persons on board the aircraft shall be evacuated and other equipment removed from the area unless deemed unsafe to do so. Unless deemed unsafe to do so, the aircraft shall be towed to a position at a safe distance from structures and other aircraft.

(p) No airborne radar equipment shall be operated or ground tested on any Airport property where the directional beam of high intensity radar is within three hundred (300) feet, or the low intensity beam is within one hundred (100) feet of an aircraft fueling operation, aircraft mobile fueling vehicle, or aircraft fuel or flammable liquid storage facility.

(q) Aircraft mobile fueling vehicles shall be equipped with storage tanks which are sectionalized into compartments of not over two thousand (2,000) gallons capacity, or in lieu thereof shall be equipped and operated in accordance with alternate procedures approved, in writing, by the Airport Authority.

(r) No person shall vend, sell, broker, consign, or offer for sale on Airport property any petroleum fuel or lubricating product without written authorization, and a lease and/or operating permit issued by the Airport Authority, and under the requirements of this Code and rules and regulations of the Airport Authority.

(s) No person shall dispense any petroleum fuel or lubricating product to motor vehicles and equipment, for either commercial or non- commercial purposes, without written authorization, and a lease and/or operating permit issued by the Airport Authority, and under the requirements of this Code and rules and regulations of the Airport Authority.

(t) No person shall transport onto Airport property, other than by aircraft, any fuel or lubricating product, without written authorization, and a lease and/or operating permit issued by the Airport Authority, and under the requirements of this Code and rules and regulations of the Airport Authority.

(u) No person shall transport onto Airport property, other than by aircraft, any fuel product or flammable material unless in approved containers or vehicles.

(v) Notwithstanding the above, aircraft owners shall not be denied the right to bring fuel and lubricating products onto Airport property for the purpose of self-fueling, provided the transport and distribution of the fuel and lubricating products onto Airport property for such purposes are otherwise in compliance with this Code, applicable federal, state, and local fire and environmental codes, and as otherwise authorized by the lessee of the premises on which such self-fueling activity occurs.

(w) The applicable standards and recommendations of the National Fire Protection Association (NFPA), as they are amended from time to time, are incorporated herein by reference.
(Ord. No. 49-273, § 58, 5-22-2012; Ord. No. 50-591, § 9, 9-26-17)

Sec. 9.35.590. Common or non-exclusive use areas.

(a) No Airport tenant, operator or other authorized user shall utilize a common use or non-exclusive use area, including an aircraft gate position, in a manner or fashion which interferes with the use of the area by another or which departs from established and authorized procedures for the use of such area. No tenant, operator or user shall allow any condition, nor

permit the conduct of any activity, which shall materially or adversely affect, infringe upon, block or interrupt the operations and business activity of other Airport tenants, operators or users.

(b) No Airport tenant, operator or other authorized user shall utilize a common use or non-exclusive use area; including an aircraft gate position, unless properly trained and authorized personnel supplied by such tenant, operator or user are present for purposes of control and coordination during all periods of such use.

(c) Upon occupancy of any common or non-exclusive use aircraft gate position, the user assumes full responsibility for compliance with federal and local security requirements and shall be liable for all fines and penalties resulting from failure to perform or abide by the same.
(Ord. No. 49-273, § 59, 5-22-2012)

Sec. 9.35.600. Control of vehicular traffic on the Air Operations Area.

Authority to operate on the Air Operations Area. No person shall operate or cause to be operated any motor vehicle or equipment on the AOA unless its operational need and necessity is directly related to an aviation activity at the Airport, the business of the Airport Authority, or the business of an authorized tenant, authorized subtenant, or other authorized user or contractor of the Airport Authority.
(Ord. No. 49-273, § 60, 5-22-2012)

Sec. 9.35.610. Operating on runways, taxiways, and other protected areas.

(a) No person at Wichita Dwight D. Eisenhower National Airport shall, either as a pedestrian or while operating a motor vehicle or equipment, move beyond the Runway Holding Position and/or ILS Critical Area Holding Position markings of a runway other than as specified in the Airport Standard Operating Procedures, or as may subsequently be required by regulations, and without first having received an appropriate clearance to do so by the Air Traffic Control Tower. Movement upon and across runways and taxiways shall be made as expeditiously as practical.

(b) Other than an employee or agent of the Airport Authority or the FAA conducting official business, no person at Wichita Dwight D. Eisenhower National Airport shall, either as a pedestrian or while operating a motor vehicle or equipment, access, move or operate upon an active Movement Area, including runways and taxiways, without the prior authorization of the Wichita Airport Authority and only after receiving appropriate documented training from the Airport Authority in accordance with 14 CFR Part 139 and Airport Standard Operating Procedures.

(c) No person at Col. James Jabara Airport shall, either as a pedestrian or operating a motor vehicle or equipment, move beyond the Runway Holding Position markings of a runway, or closer to a taxiway than specified in the Airport Standard Operating Procedures, or as may subsequently be required by regulations, without first determining that no aircraft are on, approaching or departing, and transmitting his or her intentions on the appropriate common traffic advisory frequency (CTAF). Movement on and across runways and taxiways shall be made as expeditiously as practical.

(d) No person at Col. James Jabara Airport shall, either as a pedestrian or operating a motor vehicle or equipment, operate over, across, upon or points in-between the Runway, or Taxiways A, A1, A2 between A and the Runway, A3 between A and the Runway, A4, A5, or A7 without the prior authorization of the Airport Authority, and only after the successful completion of appropriate training and certification as required by Standard Operating Procedures.

(e) Other than an employee or agent of the Wichita Airport Authority or the FAA conducting official business, no person at Col. James Jabara Airport shall, either as a pedestrian or while operating a motor vehicle or equipment, operate over, across, upon or points in-between the Runway, or Taxiways A, A1, A2 between A and the Runway, A3 between A and the Runway, A4, A5, or A7 without the prior authorization of

the Wichita Airport Authority and only after receiving appropriate documented training from the Airport Authority.
(Ord. No. 49-273, § 61, 5-22-2012; Ord. No. 50-591, § 10, 9-26-17)

Sec. 9.35.620. Operations near aircraft.

(a) No person, other than the operator of an aircraft service or support vehicle, actively servicing an aircraft, shall operate a motor vehicle at an Airport so as to pass within twenty (20) feet of a parked aircraft, or contrary to any of the distance requirements specified in the Standard Operating Procedures. In the case of an aircraft being loaded or unloaded at ground level on the Wichita Dwight D. Eisenhower National Airport commercial passenger terminal apron, no vehicle shall be operated between said aircraft and the terminal concourses while passengers are enplaning or deplaning;

(b) No motor vehicle shall pass under any portion of a passenger loading bridge except those required for servicing the aircraft or the passenger loading bridge;

(c) No motor vehicle shall pass under any portion of a parked aircraft except those required for servicing the aircraft.
(Ord. No. 49-273, § 62, 5-22-2012; Ord. No. 50-591, § 11, 9-26-17)

Sec. 9.35.630. Two-way radio requirements.

(a) No person, other than a person holding a valid, current, and appropriate airman's certificate or mechanic properly trained and qualified and operating an aircraft, shall be permitted to operate and otherwise engage in two-way radio communications with the ATCT on Wichita Dwight D. Eisenhower National Airport without the prior authorization of the Airport Authority. Other than persons holding a valid, current, and appropriate airman's certificate or mechanic properly trained and qualified and operating an aircraft, two-way radio communications with the ATCT on Wichita Dwight D. Eisenhower National Airport is reserved for designated and authorized employees and contractors of the Airport Authority and Federal Aviation Administration trained and authorized to engage in such activities in the discharge of official duties on the AOA of Wichita Dwight D. Eisenhower National Airport.

(b) The authorized operator of a vehicle desiring clearance to operate upon or across a runway or taxiway at Dwight D. Eisenhower National Airport shall, in advance, by direct two-way radio communications with the ATCT, request and receive an appropriate clearance to operate upon or across such Movement Area, and continuously maintain such communication and follow the lawful clearances, directives and instructions issued by the ATCT until clear of the Movement Area. In the event a two-way radio is inoperable or unavailable, persons shall operate such vehicles only under the escort of an authorized motor vehicle and operator equipped with a two-way radio in communications and under the clearance of the ATCT. This requirement shall not apply to operators of vehicles authorized by the Airport Authority to receive pre-established visual signals or clearances, or to operators of vehicles following approved pre-established special procedures in accordance with a current letter-of-agreement with the Federal Aviation Administration.
(Ord. No. 49-273, § 63, 5-22-2012; Ord. No. 50-591, § 12, 9-26-17)

Sec. 9.35.640. Motor vehicle identification and ramp permits.

(a) No person shall operate a motor vehicle on the AOA of Wichita Dwight D. Eisenhower National Airport not displaying an official company name and/or logo, or Airport Authority issued vehicle ramp permit issued pursuant to and in accordance with the Airport Security Plan, and without the permit conspicuously displayed on the vehicle.

(b) Company-owned or tenant sponsored vehicles or authorized personal vehicles must hold and properly display an Airport Authority issued vehicle ramp permit when operating on the AOA, or be under escort by an authorized person and motor vehicle meeting the requirements of this Section.

(c) A vehicle ramp permit may be issued for motor vehicles having an operational need and necessity by the Airport Authority to operate on the AOA at Wichita Dwight D. Eisenhower National Airport on a regular and continuing basis, and may be renewed annually, semi-annually, or for such other period as may be determined by the Airport Authority in accordance with federal regulations.

(d) Vehicle ramp permits shall be prominently displayed in such location on the motor vehicle as designated by the Airport Authority. The operator of a motor vehicle for which a vehicle ramp permit has been issued shall at all times comply with the terms of the permit as established by the Airport Authority.

(e) Temporary vehicle ramp permits may be issued for temporary or limited access for motor vehicles used on the AOA of Wichita Dwight D. Eisenhower National Airport for contractors and others engaged in construction or other activities as approved by the Airport Authority.

(f) Temporary vehicle ramp permits shall be prominently displayed in such location on the motor vehicle as designated by the Airport Authority. The operator of a motor vehicle for which a temporary vehicle ramp permit has been issued shall at all times comply with the terms of the permit as established by the Airport Authority.

(g) Unless operating within a pre-authorized designated construction area, any motor vehicle bearing a temporary vehicle ramp permit shall, at all times, while on the AOA, remain under control and escort by a person and motor vehicle meeting the requirements of this Section, unless otherwise authorized by the Airport Authority.

(h) A temporary vehicle ramp permit may be issued for a limited pre- authorized designated area and time for motor vehicles which require occasional or 'one-time' access to a specific location on the AOA of Wichita Dwight D. Eisenhower National Airport. Temporary vehicle ramp permits shall be issued at the discretion of the Airport Authority, and shall be valid only for the length of time indicated on the permit. Temporary vehicle ramp permits shall be returned to the Airport Authority on or prior to the expiration of the time indicated on the permit.

(i) All vehicle ramp permits shall remain the property of the Airport Authority, and are not transferable.

(j) Lost or stolen vehicle ramp permits shall be immediately reported to the Airport Police and Fire Division.

(k) Vehicle ramp permits are issued to individuals holding current, valid and appropriate Airport Authority issued ID media and may only be used by the authorized individual. Vehicle ramp permits shall not be loaned, transferred or assigned to other persons.

(l) Motorized equipment not considered 'motor vehicles,' including but not limited to maintenance and construction equipment, tugs, belt loaders, tractors, and snow removal equipment shall be exempt from the requirements of this Section.
(Ord. No. 49-273, § 64, 5-22-2012; Ord. No. 50-591, § 13, 9-26-17)

Sec. 9.35.650. Driver's license.

No person shall operate a motor vehicle on the AOA of an Airport, unless such individual maintains in his or her possession at all times a current valid motor vehicle driver's license or temporary permit, with appropriate endorsements, for the type of vehicle being operated, issued in accordance with the statutes of the State of Kansas. The operation of motorized 'equipment' not considered 'motor vehicles,' including but not limited to maintenance and construction equipment, tugs, belt loaders, tractors, and snow removal equipment shall be exempt from the requirements of this Section.
(Ord. No. 49-273, § 65, 5-22-2012)

Sec. 9.35.660. Designated vehicular routes.

No person shall operate a motor vehicle or equipment on the AOA, other than emergency vehicles responding to an emergency, or authorized Airport Authority or FAA vehicles in the performance of official duties, unless such person operates on established vehicular routes only.
(Ord. No. 49-273, § 66, 5-22-2012)

Sec. 9.35.670. AOA speed limits and traffic control.

(a) No person shall operate a motor vehicle or equipment on the AOA, other than police, security, operations, and emergency vehicles responding to an emergency or urgent safety or security situation, at a speed in excess of fifteen (15) miles per hour, except as otherwise posted and authorized.

(b) No person shall operate any motor vehicle or equipment on the AOA in violation of any sign, barricade, traffic barricade or other traffic control device.
(Ord. No. 49-273, § 67, 5-22-2012)

Sec. 9.35.680. Reckless or careless driving.

No person shall operate a motor vehicle or equipment on the AOA in a reckless or careless manner, so as to present a willful or wanton disregard for the safety of persons or property, or in a careless manner, which is other than in a safe, careful and prudent manner, having regard for aircraft movement, width, grade, curves, corners, traffic, weather conditions, and all other attendant circumstances, so as not to endanger the life, limb or property of any person.
(Ord. No. 49-273, § 68, 5-22-2012)

Sec. 9.35.690. Operation of electronic devices while driving on the AOA.

No person shall operate an electronic communications device including, but not limited to cell

phone, lap-top PC, iPad, iPhone, audio or video players, or BlackBerry while maneuvering a moving motor vehicle or equipment on the AOA unless it is necessary to do so due to an operational need or necessity.
(Ord. No. 49-273, § 69, 5-22-2012)

Sec. 9.35.700. Operation or use of non-approved conveyance devices.

(a) No person shall use, ride or drive a unicycle, go-cart, roller skates, roller blades, Segway or a skateboard, and no person shall walk, drive a motorized vehicle, ride a bicycle, or ride a horse upon any area of the Airports made available to the public other than on roads, sidewalks, paths, trails, or rights-of-way provided for such purpose.

(b) No person shall use, ride or drive a motorcycle, bicycle, unicycle, go-cart, roller skates, roller blades, Segway, or skateboard on the AOA.
(Ord. No. 49-273, § 70, 5-22-2012)

Sec. 9.35.710. Vehicle and equipment liability insurance requirements.

Except for governmental vehicles and equipment, no motor vehicle shall enter or be operated upon the AOA that is not covered by a current and valid liability insurance policy as required by Kansas statute or company 'umbrella' policy written by a company authorized and licensed by the State of Kansas to issue such insurance policy.
(Ord. No. 49-273, § 71, 5-22-2012)

Sec. 9.35.720. Vehicle and equipment condition and safety requirements.

No person shall operate a motor vehicle or equipment on the AOA unless such motor vehicle or equipment is in good operating condition and repair for a unit of its type, and is equipped as required by applicable local, state and/or federal law.
(Ord. No. 49-273, § 72, 5-22-2012)

Sec. 9.35.730. Minimum vehicle and equipment requirements for operation on the AOA and Movement Areas.

(a) All motor vehicles and equipment operated on the AOA shall be in good, safe, working order.

(b) When operating on the AOA motor vehicles and equipment shall be equipped with and have operating the following systems and auxiliary equipment:

(1) Headlights;

(2) Mobile refueling vehicles - front, side, and tail clearance lights.

(b) When operating on Movement Areas, Airport Authority approved amber-colored beacon warning lights, certified SAE Type I or II, of rotating, strobe, halogen or LED type.

(c) Only security, law enforcement or emergency vehicles shall be equipped with and display red and/or blue warning lights.
(Ord. No. 49-273, § 73, 5-22-2012)

Sec. 9.35.740. Night and low visibility operations.

(a) For night (sunset to half an hour before sunrise) and low visibility conditions (visibility less than one thousand feet), all vehicles and motorized equipment equipped with headlights, taillights (or reflectors) and running or clearance lights operating on the AOA shall be functionally operable and operating.

(b) For night (sunset to half an hour before sunrise) and low visibility conditions (visibility less than one thousand feet), all vehicles and motorized equipment, equipped with amber warning beacons, shall operate such warning beacon while operating on the AOA.
(Ord. No. 49-273, § 74, 5-22-2012)

Sec. 9.35.750. Radio/wireless communications systems.

The Airport Authority retains the sole and exclusive right to approve or withhold approval of any installation or use of systems for the transmission of radio frequency signals on the Airport property. Revenue producing communication systems or systems not directly applicable to a tenant's primary operation on Airport property are prohibited except upon the specific approval of the Director.
(Ord. No. 49-273, § 75, 5-22-2012)

Sec. 9.35.760. Emergency vehicles.

Any person operating a motor vehicle or equipment on the AOA shall immediately stop and yield the right-of-way upon the approach of law enforcement, security, medical, firefighting and rescue, Airport Operations, or other vehicles responding to an emergency and giving an audible and/or visual warning signal, until emergency vehicles have stopped or passed, unless otherwise directed by a law enforcement officer, Airport Police and Fire Officer, or other authorized representative of the Director of Airports.
(Ord. No. 49-273, § 76, 5-22-2012)

Sec. 9.35.770. Occupants of motor vehicles.

No person shall, while on Airport property, ride on the running board of a moving motor vehicle, stand up in the body of a moving vehicle, ride on the outside of the body of a moving motor vehicle, or ride on such a vehicle with his arms or legs protruding from the body of the vehicle, unless required to do so in the performance of his duties.
(Ord. No. 49-273, § 77, 5-22-2012)

Sec. 9.35.780. Traffic control.

Persons operating motor vehicles or equipment on the AOA shall obey all posted regulatory signs, special signs, pavement markings, and traffic signals, and all instructions by ATCT, authorized employees, agents, and Airport Police and Fire Officers.
(Ord. No. 49-273, § 78, 5-22-2012)

Sec. 9.35.790. Parking.

(a) No person shall park a motor vehicle or equipment on the AOA in areas other than those designated or authorized by the Airport Authority, and in no manner contrary to any posted regulatory signs, traffic-control devices or pavement markings.

(b) No person shall park a motor vehicle or equipment on the AOA as to interfere with the access, ingress or egress to a facility, leasehold, or common-use area used by others, or prevent the passage or movement of aircraft, emergency vehicles, snow removal equipment, or motor vehicles.

(c) No person shall park a motor vehicle or equipment under passenger loading bridges, blocking access to any passenger loading bridge or blocking a passenger walkway.

(d) No person shall park a motor vehicle or equipment blocking access to any fire hydrant.

(e) No person shall park a motor vehicle or equipment blocking access to any terminal door, emergency access or baggage handling area.

(f) No person shall park a motor vehicle or equipment blocking an aircraft parking position, aircraft taxi-lane or vehicle driving lane.

(g) No person shall park a motor vehicle or equipment on the AOA in such a manner as to interfere with or prevent an aircraft fueling vehicle from being readily driven away from such aircraft in the event of an emergency.
(Ord. No. 49-273, § 79, 5-22-2012)

Sec. 9.35.800. Motor vehicle accidents.

(a) Any person operating a motor vehicle or equipment on the AOA which is involved in an accident resulting in injury to any person or damage to any property shall:

(1) Immediately stop such vehicle or equipment at the scene of such accident or as close thereto as possible;

(2) Notify the Airport Police and Fire Division; and

(3) Return to and/or remain at the scene of the accident until Airport Police and Fire personnel have arrived at the scene. Vehicle(s) involved in the accident shall be stopped and parked so as to minimize any obstructions to aircraft and other vehicles.

(b) Any person operating a motor vehicle or equipment on the AOA which is involved in an accident, and the owner of such vehicle or equipment, if other than the operator, shall make a full report of such accident to the Airport Police and Fire Division, including the names and addresses of the individuals involved, the registration and license number of the vehicle or vehicles involved, names and addresses of witnesses to the incident, and such other information relevant to the acci-

dent upon request of any Airport Police and Fire Officer investigating the accident. The operator of any motor vehicle or equipment involved in such accident shall, upon request, exhibit such licenses, registration or other documents relevant to such accident or the persons or property involved to any Airport Police and Fire Officer investigating the accident.

(c) In the event an Airport Police and Fire Officer investigating an accident has reason to believe that a mechanical failure in a vehicle or equipment involved in the accident was or may have contributed to the cause of such accident, the Airport Police and Fire Officer may temporarily impound such vehicle or equipment until such time that a mechanical failure can be ruled out as causing or contributing to the cause of the accident.
(Ord. No. 49-273, § 80, 5-22-2012)

Sec. 9.35.810. Contractor's access and operations on the Air Operations Area.

Ingress and egress from designated construction sites located on the AOA by motor vehicles and equipment belonging to or under the supervision of an authorized contractor, shall be made only by designated routes, gates, and at such times as may be established or approved by the Airport Authority. Construction equipment shall be operated and stored in accordance with procedures established or approved by the Airport Authority.
(Ord. No. 49-273, § 81, 5-22-2012)

Sec. 9.35.820. Denial of departure.

The Director may prohibit any aircraft from starting, taxiing, operating upon or departing from an Airport at any time, under any known circumstances, which in the judgment of the Director, may result in a safety or security hazard to persons or property on or off Airport property, or may violate local, state or federal laws or regulations with the exception of federal laws under the exclusive jurisdiction and pre-emptive authority of a federal agency.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 82, 5-22-2012)

Sec. 9.35.830. Tampering with aircraft.

No person shall interfere or tamper with any aircraft on Airport property, or put in motion such aircraft, or use or remove any aircraft, aircraft parts, instruments or auxiliary systems without positive evidence of ownership, or evidence of the owner's approval.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 83, 5-22-2012)

Sec. 9.35.840. Interference with aircraft or flight or cabin crew operations.

(a) No person while a passenger aboard an aircraft at an Airport shall disturb, interrupt or otherwise interfere with:

(1) The enplanement or deplanement of aircraft passengers;

(2) The departure or arrival of any aircraft; or

(3) Any member of a flight or cabin crew aboard an aircraft in the performance of his/her duties.

(b) No person, while a passenger aboard an aircraft at an Airport, shall refuse or fail to comply with the lawful directives of any flight or cabin crew member, or to observe and obey federal regulations relating to the safety and security of passengers or aircraft. While aboard an aircraft at an Airport, failure to comply with the lawful directives of any flight or cabin crewmember, or to observe and obey federal regulations relating to the safety and security of passengers or aircraft, shall constitute a disturbance, interruption, or interference with a member of a flight or cabin crew in performance of his or her duties.

(c) No person shall, while a passenger aboard an aircraft at an Airport, refuse to leave such aircraft when so directed by a flight or cabin crew member, an agent or representative of the owner or operator thereof, when such person has committed an act which is a breach of his or her contract of carriage under the terms and conditions set out in the air carrier's tariffs. Such acts shall include, but shall not be limited to: violations of the Federal Aviation Administration Regulations concerning fastening seat belts, observance of no smoking signs, placement of luggage, consumption of alcoholic beverages, intoxication, and obstruction of aisles and exits.

(d) No person shall, while a passenger aboard an aircraft at an Airport, assault, intimidate, threaten, or harass any other person, or commit any act which is defined by local, state or federal law as a breach of the peace, an act of intimidation, or a threat against any other person.

(e) No person shall, while a passenger aboard an aircraft at an Airport, refuse to leave such aircraft when so directed by a flight or cabin crew member, an agent or representative of the owner or operator thereof, when such person has committed an act aboard the aircraft which is defined by local, state, or federal law as an assault, a breach of the peace, an act of intimidation, or a threat against any other person.

Any person violating any provision of this Section of the Code is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars ($500.00) and/or an imprisonment of not more than six (6) months and/or both such fine and imprisonment.
(Ord. No. 49-273, § 84, 5-22-2012)

Sec. 9.35.850. Inspection of certification.

Any person who holds an airman certificate, medical certificate, or authorization must present it for inspection upon request of any commissioned law enforcement officer of the Wichita Police Department or Airport Police and Fire Division.
(Ord. No. 49-273, § 85, 5-22-2012)

Sec. 9.35.860. Waiver by the Director of Airports for Governmental Operations.

Notwithstanding any provisions, requirements or prohibitions set forth in this Chapter, the Director shall have the authority to waive any such provisions, requirements, or prohibition for any military branch of the United States Armed Forces operating on any Airport property to operate thereon in accordance with governmental requirements applicable to such operations, so long as such waiver(s) are not in violation of federal law or regulation, and such waiver(s) would not impose an unreasonable hazard or risk to the health, welfare, and safety of the flying and general public.
(Ord. No. 49-273, § 86, 5-22-2012)

Sec. 9.35.870. Penalties.

(a) Any person who violates the provisions of this Chapter is guilty of a misdemeanor.

(b) Every person who is convicted of violating the provisions of this Chapter may be punished by a fine of not more than five hundred dollars ($500) for each violation of this Chapter, and when specifically stated within certain Sections herein, an imprisonment of not more than six (6) months and/or both such fine and imprisonment.

(c) In addition to the penalties set forth in this Section, if the violator is authorized to access Secured Area, AOA, SIDA, Sterile Area or other Restricted Areas of the Airport, the Director may revoke or suspend the violator's access and identification media and access to the Secured Area, ASOA, SIDA, Sterile Area or other Restricted Areas of the Airport.
(Ord. No. 49-273, § 87, 5-22-2012)

CODE OF ORDINANCES

CITY OF

WICHITA, KANSAS

VOLUME II

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Title 10

STREETS AND SIDEWALKS*

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***Cross reference—**As to persons on foot using streets, etc., principally for advertising, see § 5.04.020 of this Code. As to placing advertising matter in or upon vehicles or handing to pedestrians upon streets or alleys, see § 3.66.080. As to billboards and sign devices generally, see Chapter 24.04. As to vehicular advertising, see Chapter 3.64. As to breaking animals and picketing animals on streets, see § 6.04.050. As to animals and fowl running at large generally, see § 6.04.050. As to awnings, canopies and marquees generally, see Chapter 23.04. As to collection and disposal of rubbish, trash, etc., see Chapter 7.08. As to consumption of alcoholic liquor upon streets, etc., see § 4.04.040. As to drunkenness on street, see § 4.04.050. As to motor vehicles and traffic, see Title 11. As to bicycles, see Chapter 11.48. As to removing dirt or earth from or placing on street, see § 5.66.040. As to wearing masks on streets, see § 5.50.010. As to loud and unnecessary noise on streets, see § 5.58.020. As to soliciting subscriptions, etc., on streets, see § 5.74.010. As to designation of streets, avenues and boulevards as park boulevards, see § 9.04.130. As to use of streets, etc., for purpose of collecting, removing or transporting dead animals, offal, etc., not disposed of as garbage, see § 7.12.050. As to sale of food and drink from streets, see § 7.16.030. As to restaurants displaying food for retail sale on streets, see § 7.20.300. As to railroads, see Chapter 12.04. As to backfilling sewer excavations in streets, see § 16.04.080. As to taxicabs and other vehicles for hire, see Chapters 3.84, 3.88, and 3.92. As to trees and shrubs, see Chapter 9.08.

CHAPTER 10.01. ENFORCEMENT PROCEDURES

Sec. 10.01.010. Enforcement procedures by city engineer.

Sec. 10.01.010. Enforcement procedures by city engineer.

(a) With the exception of Chapters 10.24 and 10.36, whenever an officer charged with enforcement of Title 10, determines that there has been a violation of any provision of this Title, he or she shall serve or cause to be served a notice upon such person, and, if different, the owner of record of the property, requiring compliance with the provisions of this code within no more than thirty (30) days of the date of such notice. Such notice(s) will be served through first-class mail, postage prepaid and certified, to the last known address of such person(s) or by personal service.

(b) Hearing. Any person affected by the assessment of an administrative fine or penalty by the City Engineer, as set forth in this Title, who believes that the assessment is contrary to the policies and regulations of the City, may request and shall be granted an informal hearing on the matter before the Director of Public Works and Utilities. Any request for a hearing shall be filed within ten days after the day that the notice of assessment of the penalty was served. At such informal hearing, the aggrieved person shall be given an opportunity to be heard and to show why such notice should be modified or withdrawn. The informal hearing shall be held no later than ten business days after the request for hearing was filed, unless a request to postpone the date has been made by the aggrieved party.

(c) After such hearing, the Director of Public Works and Utilities or his designated representative may sustain, modify or withdraw the assessment. Such determination shall be made in writing, within thirty (30) days of the hearing and be served upon the aggrieved party. If the Director or designated representative sustains or modifies such penalty, it shall be deemed to be an order.

(d) Appeal. Any person, official or governmental agency dissatisfied with any order or determination of the Director of Public Works and Utilities may appeal such order or determination to the City Council within ten (10) days of the issuance of the order. An appeal taken to the City Council shall conducted in accordance with the provisions of Section 2.04.235 of the Code of the City of Wichita.

(Ord. No. 50-333 § 1, 10-11-16)

CHAPTER 10.04. IN GENERAL*

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Sec. 10.04.290. Appeal of denial or revocation.

*__Editor's note—__Ord. No. 50-178 §§ 1—38, adopted April 26, 2016, amended Chapter 10.04 in its entirety to read as herein set out. Former Chapter 10.04 §§ 10.04.010—10.04.220, pertained to general provisions, and derived from Ord. No. 11-592, Art. 7 § 99 (part), §§ 102, 103; Ord. No. 14-491 § 2; Ord. No. 16-556 §§ 2—4; Ord. No. 33-071 (part); Ord. No. 35-100 (part); Ord. No. 36-369 § 1; Ord. No. 36-995 §§ 1—5; Ord. No. 38-095 §§ 1—3; Ord. No. 41-007 § 1; Ord. No. 41-521 § 1; Ord. No. 45-148 §§ 1—5; Ord. No. 46-209 § 1 (part); Ord. No. 47-029 § 1, adopted May 16, 2006; Ord. No. 47-048 § 1, adopted June 20, 2006; Ord. No. 48-757 § 15, adopted June 22, 2010, effective Jan. 1, 2011; Ord. No. 1872 § 1; Ord. No. 1884 § 1; and Ord. No. 2654 § 1.

Sec. 10.04.005. Definitions.

For the purposes of title 10, the following words and phrases shall have the following meanings:

(a) *City engineer* means the City of Wichita's city engineer or the city engineer's designee.

(b) *Person* means any real person, firm, partnership, association, corporation, company or organization of any kind.

(c) *Permittee* means the individual, corporation, business trust, partnership, association, or any other entity granted a current and valid permit.

(d) *Encroachment* means any object that has mass, takes up space, or exists in the right-of-way other than grass or living landscaping less than thirty-three inches in height when measured from the elevation of the gutter pan of the street except as allowed by permit under a specific city ordinance.

(e) *Right-of-way* means the area of real property in which the city has a dedicated or acquired interest in the real property. It includes the area on, below, or above present or future streets, alleys, avenues, roads, highways, or other paths dedicated or acquired for public access. Typically, the right-of-way extends beyond paved surfaces and includes sidewalk, when present.

(f) *Driveway* means a place on private property for the operation of automobiles and other vehicles.

(g) *Drive approach* means an area, construction or facility in the right-of-way intended to provide access for vehicles from the roadway of a public street to private property, including the curb return radius. For clarification, a drive approach must provide access to something definite on private property, such as a parking area, driveway or door at least seven feet wide that was intended and used for the entrance of vehicles.

(h) *Corner* means the point of intersection of the lines of two street curb faces extended into the street intersection.

(i) *Curb* means a barrier at the edge of paved road or driveway approach to allow a separation of water flow and those portions of the right-of-way not used for vehicular traffic.

(j) *Curb return* means the portion of a curb next to a drive approach which includes the curb return radius, or the ramp-type lug on commercial- or industrial-type pavements and which connects the drive approach to the street curb.

(k) *Public place* means any public street, way, grounds, place, alley, sidewalk, park, square, plaza or any other property owned or controlled by any governmental agency in a governmental capacity.

(l) *Excavation* means any opening in the surface or manipulation of the surface or subsurface of a public place made in any manner whatsoever; except as authorized by the applicable governmental entity.

(m) *Structure* means any pipe, conduit, duct, tunnel, manhole, vault, buried cable or wire, or any other object of any type whatsoever located on, above, or below the surface of any public place.

(Ord. No. 50-178 § 1, 4-26-16)

Sec. 10.04.010. Leaving obstructions, etc., on right-of-way, etc.—Permit required.

It is unlawful to place or leave any obstruction of any kind upon or over the streets, rights-of-way, or sidewalks of the city, including but not limited to, building materials, derricks, ropes, machinery, fences, wires, conduits, cables, gates, boxes, posts, planters, railroad ties, landscape timbers, rocks or boulders, without a written permit from the city engineer and compliance with the current version of the manual on uniform traffic control devices, including providing proper lighting and barricades. See section 10.04.125 of this code.

(Ord. No. 50-178 § 2, 4-26-16)

Sec. 10.04.020. Reserved.

Sec. 10.04.025. Removal of snow in the downtown business area.

(a) The owners, occupants or persons in charge of any parcels of land located in the downtown business area shall remove and clear the sidewalks that abut said property of all accumulations of snow and ice. All accumulations of snow and/or ice from a storm shall be removed and cleared according to the following schedule:

(1) For days other than Sundays or holidays;

a. If the storm ends on any day between 8:00 a.m. and noon, removal shall be accomplished by 5:00 p.m. of the same day.

b. If the storm ends between noon of one day and 8:00 a.m. of the next day, removal shall be accomplished by the following noon.

(2) For Sundays or holidays:

a. If the storm ends between noon on a Saturday or a regular business day preceding a holiday and 8:00 a.m. of the next regular business day, removal shall be accomplished by noon of said next regular business day.

For purposes of this section, the definition of a regular business day shall be

every day of the week except Sundays and holidays. The following days shall be defined as holidays for this section:

1. Veteran's Day.
2. Thanksgiving Day.
3. Day after Thanksgiving.
4. Christmas Day.
5. New Year's Day.
6. Martin Luther King Day.
7. President's Day.

For purposes of this section, the definition of downtown business area shall be the following streets or street segments and shall include both sides of said streets unless designated otherwise.

1. Central from the east curbline of Waco to the west curbline of Topeka.
2. Third from the east curbline of Waco to the west curbline of St. Francis.
3. Second from the east curbline of Waco to the west curbline of St. Francis.
4. First from the east line of the bridge over the Arkansas River to the west curbline of St. Francis.
5. Douglas from the east line of the bridge over the Arkansas River to the west side of the elevated tracks.
6. William from the east curbline of Main to the west curbline of St. Francis.
7. English from the north and east property lines of Wichita to the west curbline of Emporia.
8. Waterman from the east curbline of Water to the west curbline of Emporia.
9. Waco from the north curbline of Douglas to the south curbline of First.
10. The east side of Wichita from the north property line of First to the south curbline of Central.
11. Water from the east curbline of Wichita to the north curbline of Douglas.
12. Century II Drive from the south curbline of Douglas to the west curbline of Main.
13. Main from the south curbline of Elm to the north curbline of Lewis.
14. Market from the south curbline of Central to the north curbline of Lewis.
15. Broadway from the south curbline of Central to the north curbline of Kellogg.
16. Topeka from the south curbline of Third to the north curbline of Waterman.
17. Emporia from the south curbline of Third to the north curbline of Waterman.
18. St. Francis from the south curbline of Third to the north curbline of William.

For purposes of this section, the end of the snowstorm shall be the time that is designated as the end of the snow by the director of the department of public works and utilities. The determination shall be based upon existing accumulations and conditions and the forecast from the United States Weather Service at Mid-Continent Airport, that no additional accumulations or measurable amounts of snow (one-half inch or more accumulating on the ground) will occur within the time period allowed for snow removal.

(b) The city clerk shall give notice each year on the first day of November, December, January, February, March and April of the provisions of this section to the owners, occupants or persons in the possession of lots or pieces of land located adjacent to streets in the downtown business area of the city, by publication in the official newspaper of the following notice:

"Notice to property owners and persons in charge of property. All property owners and persons in charge or possession of any tracts, lots or pieces of land located adjacent to streets in the downtown business area of the city are hereby notified that all accumulations of snow and ice on sidewalks that abut said tracts, lots and pieces of land from a storm ending:

(1) For days other than Sundays or holidays:

a. On any day between 8:00 a.m. and noon that have not been removed and cleared from said sidewalk by 5:00 p.m.

b. On any day between noon of one day and 8:00 a.m. of the next day that have not been removed and cleared from said sidewalk by the following noon.

(2) For Sundays or holidays:

a. Between noon on a Saturday or a regular business day preceding a holiday and 8:00 a.m. of the next regular business day that have not been removed and cleared from said sidewalk by the following noon shall thereafter be declared to be a nuisance and that unless the owner, occupant or person in charge of any such property shall immediately abate the same by causing all accumulations of snow and ice and levy an assessment against the property for the cost of such abatement.

For purposes of this section, the definition of a regular business day shall be every day of the week except Sundays and holidays. The following days shall be defined as holidays for this section:

1. Veteran's Day.
2. Thanksgiving Day.
3. Day after Thanksgiving.
4. Christmas Day.
5. New Year's Day.
6. Martin Luther King Day.
7. President's Day.

For purposes of this section, the definition of downtown business area shall be the following streets or street segments and shall include both sides of said streets unless designated otherwise.

1. Central from the east curbline of Waco to the west curbline of Topeka.
2. Third from the east curbline of Waco to the west curbline of St. Francis.
3. Second from the east curbline of Waco to the west curbline of St. Francis.
4. First from the east line of the bridge over the Arkansas River to the west curbline of St. Francis.
5. Douglas from the east line of the bridge over the Arkansas River to the west side of the elevated tracks.
6. William from the east curbline of Main to the west curbline of St. Francis.
7. English from the north and east property lines of Wichita to the west curbline of Emporia.
8. Waterman from the east curbline of Water to the west curbline of Emporia.
9. Waco from the north curbline of Douglas to the south curbline of First.
10. The east side of Wichita from the north property line of First to the south curbline of Central.
11. Water from the east curbline of Wichita to the north curbline of Douglas.
12. Century II Drive from the south curbline of Douglas to the west curbline of Main.
13. Main from the south curbline of Elm to the north curbline of Lewis.
14. Market from the south curbline of Central to the north curbline of Lewis.
15. Broadway from the south curbline of Central to the north curbline of Kellogg.
16. Topeka from the south curbline of Third to the north curbline of Waterman.

17. Emporia from the south curbline of Third to the north curbline of Waterman.

18. St. Francis from the south curbline of Third to the north curbline of William.

For purposes of this section, the end of the storm shall be the time that is designated as the end of the snow by the director of the department of public works and utilities."

(c) The director of public works and utilities shall cause all accumulations of snow and ice to be removed and cleared from sidewalks that abut any tracts, lots or pieces of land in the downtown business area that still exist on said property:

(1) For days other than Sundays or holidays:

a. After 5:00 p.m. of any day where the storm has ended between 8:00 a.m. and noon of that same day.

b. After noon of a day where the storm has ended between noon of the immediately preceding day and 8:00 a.m. of the same day.

(2) For Sundays and holidays:

a. After noon on the first regular business day following a Sunday or holiday where the storm has ended between noon on a Saturday or a regular business day preceding a holiday and 8:00 a.m. of the first regular business day following the Sunday or holiday.

The charge for the removal and clearing of said snow shall be based on the length cleared per contiguous tract, lot or piece of property per separate ownership and shall be certified by the director of public works and utilities to the city clerk, who shall cause such charges to be assessed against the particular lots or pieces of land which abut the sidewalks from which the snow and ice were removed and cleared. The schedule of charges are:

Length of Tract (ft.)	*Charge*
0-50	$25.00
51-100	$40.00
101-150	$50.00
151-200	$60.00

Over two hundred continuous feet the cost shall be thirty cents per foot with the distance rounded to the nearest ten feet. Measurements shall be taken on the sidewalk in front of or abutting each tract, lot, or piece of property where snow was removed and shall be based on a linear foot measurement.

(d) The notice provision for removal of snow as it is set out at sections 10.04.110 and 10.04.120 of this code shall not apply to the downtown business area.
(Ord. No. 50-178 § 4, 4-26-16)

Sec. 10.04.030. Raking or sweeping leaves, paper, etc., into gutters or drainage ditches.

It is unlawful to rake, sweep or otherwise move leaves, grass, dirt, paper, debris, or any other material into the streets, gutters, drains or drainage ditches along the sides of any street or alley in the city.
(Ord. No. 50-178 § 5, 4-26-16)

Sec. 10.04.040. Placing snow on streets and sidewalks.

It is unlawful to place snow or ice onto the sidewalks, streets or alleys of the city.
(Ord. No. 50-178 § 6, 4-26-16)

Sec. 10.04.050. Damage to curbs or sidewalks.

It is unlawful to damage curbs, sidewalks, paved rights-of-way or other public infrastructure. It shall be a defense to this section if notice of such damage is provided to the city within twenty-four hours and a notice of financial responsibility for the costs of any such damage is filed with the city engineer within seventy-two hours.
(Ord. No. 50-178 § 7, 4-26-16)

Secs. 10.04.055—10.04.057. Reserved.

Editor's note—Ord. No. 50-334 §§ 1—3, adopted Oct. 11, 2016, repealed §§ 10.04.055—10.04.057, which pertained to same—repair by city; cost, same—notice to repair the paved right-of-way, and same—failure to comply with notice, and derived from Ord. No. 50-178 §§ 8—10, adopted April 26, 2016.

Sec. 10.04.060. Water running into streets, etc.

It is unlawful to cause or allow any water or waste to be discharged into any street, sidewalk, avenue, alley, or public place unless prevention of such drainage is deemed technically infeasible in writing by the city engineer. This section shall not apply to storm water runoff.
(Ord. No. 50-178 § 11, 4-26-16)

Sec. 10.04.065. Lawn irrigation; spraying of streets and sidewalks prohibited.

It is unlawful to directly spray water from a sprinkler system onto any sidewalk or onto the traveled portion of any street.
(Ord. No. 50-178 § 12, 4-26-16)

Sec. 10.04.070. Congregating on sidewalks, visibility of traffic.

No crowd, collection of persons, or any other obstruction shall be allowed upon the street right-of-way so as to impair vehicles' sight triangles as defined by "A Policy on Geometric Design of Highways and Streets," current edition, as published by the American Association of State Highway and Transportation Officials (AASHTO). It is unlawful to violate the provisions of this section or to refuse or fail to comply with the request of any police officer to move to clear such obstruction.
(Ord. No. 50-178 § 13, 4-26-16)

Sec. 10.04.080. Digging holes in public right-of-way.

It is unlawful to dig in any right-of-way without a permit from the city engineer or to leave any holes under such permit in an unfilled, uncovered, unsafe, or unsightly condition.
(Ord. No. 50-178 § 14, 4-26-16)

Sec. 10.04.100. Sidewalks and rights-of-way to be kept clean by abutting property owners or occupants.

It is unlawful for the owner or occupant of any parcel to allow paint, soil, grass, leaves, sand, gravel, rocks, dirt, filth, mud, papers, stone, snow, ice, refuse, rubbish, or any other material to accumulate and/or grow over the abutting sidewalk, alley, or right-of-way.
(Ord. No. 50-178 § 15, 4-26-16)

Sec. 10.04.105. Reserved.

Sec. 10.04.110. Notice to clean.

Whenever any person whose duty it is to keep clean the areas described in sections 10.04.030, 10.04.040 or 10.04.100 fails to do so, the city engineer or the city engineer's representative shall serve or cause to be served upon such person a notice requiring such person to comply with the requirements of section 10.04.030, 10.04.040 or 10.04.100. Such notice may be served by mailing the same, postage prepaid and certified, to the owner of record.
(Ord. No. 50-178 § 17, 4-26-16)

Sec. 10.04.120. Assignment of costs of cleaning.

The expense of any cleaning described in this chapter, including appropriate overhead, shall be charged against the abutting parcel and levied, certified, and collected as a special assessment tax.
(Ord. No. 50-178 § 18, 4-26-16)

Sec. 10.04.125. Obstruction of streets, sidewalks and the public right-of-way; penalty.

(a) It is unlawful to obstruct any street, alley, public area, public right-of-way or sidewalk in the city by depositing, piling, placing, maintaining, or allowing to remain thereon:

(1) Any basketball hoop, hockey or soccer net, skateboard ramps, or any other type of goal or hoop.

(2) Any dumpsters or garbage containers larger than one hundred gallons.

(3) Any boulder, rock, stone, or any other objects in excess of thirty pounds in the aggregate.

(4) Any tree, plant, grass, or any other object more than thirty-three inches above the lowest point of the gutter or street, whichever is lower in the sight triangle of any street, driveway, or alley as defined by "A Policy on Geometric Design of Highways and Streets," current edition, as published by the American Association of State Highway and Transportation Officials (AASHTO).

(5) Any storage device of any type weighing more than one hundred pounds.

(6) Any filth, litter, or waste.

(7) Any goods, wares, signs, or merchandise.

(8) Any buildings, structures, or fences.

(9) Any benches, seats or tables.

(10) Any wires, conduits, or cables.

(11) Any residential garbage bins except within twenty-four hours of a scheduled solid waste removal.

(12) Any other object, regardless of nature, that the city engineer or the city engineer's designee determines is unsafe.

(b) Any object shall not be considered an obstruction of the public right-of-way under the following conditions:

(1) The object is authorized by a community events permit issued pursuant to chapter 3.11 of this code.

(2) The object is authorized by a right-of-way use permit granted as provided in chapter 10.08.

(3) The object is regulated as short-term building construction by the building code as defined in title 18 of this code, unless deemed a hazard by the city engineer or the city engineer's designee.

(4) The object is allowed under a valid franchise agreement issued to a utility for use of the right-of-way.

(5) The object is allowed under a point-to-point agreement with the city for the specific use of defined right-of-way limits when the franchisee does not own the abutting parcel.

(6) Use of street permits issued to property owners or the property owner's designee for the use of the abutting right-of-way.

(7) Permit granted for exhibiting goods, wares, or merchandise as provided in section 10.04.131.

(8) If the city engineer or the city engineer's designee determines that such object is not an obstruction.

(Ord. No. 50-178 § 19, 4-26-16)

Sec. 10.04.126. Notice to remove obstructions; penalties.

(a) Whenever any Person obstructs the Right-of-Way as described in Section 10.04.125, the City Engineer or the City Engineer's representative shall serve or cause to be served a notice upon such Person, and, if different, the owner of record of the property, requiring compliance within no more than thirty (30) days of the date of such notice. Such notice(s) will be served through first-class mail, postage prepaid and certified, to the last known address of such Person(s) or by personal service.

(b) The City Engineer shall, charge such Person with a Right-of-Way usage fee in an amount not to exceed two hundred (200) dollars per day for the time period such obstruction was in the Right-of-Way following notification to remove the obstruction.

(Ord. No. 50-178 § 20, 4-26-16; Ord. No. 50-334 § 4, 10-11-16)

Sec. 10.04.127. Failure to comply with notice; penalties.

(a) If the Person noticed under Section 10.04.126 fails to comply with such notice, either through failure to remove the obstruction or failure to obtain compliance through Section

10.04.125(b), the City Engineer or the City Engineer's representative shall take action to remove such obstruction forthwith.

(b) When such Person noticed under Section 10.04.126 fails to remove such obstruction pursuant to the notice or fails to respond to the notice, such property shall be deemed abandoned after thirty (30) days and subject to removal by the City Engineer.

(c) Any costs associated with the removal and/or storage of the obstruction shall be charged against the Person creating the obstruction or, when such Person cannot be identified, against the abutting property and such tax shall be levied, certified, and collected in the same manner as special assessment taxes for the repair and construction of sidewalks.
(Ord. No. 50-178 § 21, 4-26-16; Ord. No. 50-334 § 5, 10-11-16)

Sec. 10.04.130. Reserved.

Sec. 10.04.131. Sidewalk café permits and applicable procedure.

(a) After application to the City Engineer's Office and upon notice and opportunity for comment from the public, a sidewalk café permit may be issued. Such permit will allow for the location of diverters, plantings, stands, tables, lighting, seating, devices for protection of patrons from the elements, and other devices for the sale and service of prepared meals and beverages. The sale, service and consumption of prepared meals and beverages including alcoholic liquor shall be allowed upon public sidewalks within the permitted area as provided under K.S.A. § 12-406a and K.S.A. § 41-719 (d). The application shall comply with the administrative requirements established by the City Engineer, and shall be referred to the City's Traffic Engineer, the MABCD and the Fire Department for their recommendations and determination that the sidewalk café operation as described in the application will not endanger or unduly inconvenience the public. If negative public comment is received, the City Engineer shall hold a public hearing and shall make a decision on the issuance of the permit. A permit denial may be appealed to the City Council in a writing delivered to the City Clerk within thirty (30) days of the decision by the City Engineer.
(Ord. No. 50-178 § 23, 4-26-16; Ord. No. 50-334 § 6, 10-11-16)

Sec. 10.04.132. Permit issuance.

On approval of the application and payment of the required fee the sidewalk café permit shall be issued by the City Engineer. This permit is in addition to any other license or permit required for the operation intended. The area encompassed by a valid sidewalk café permit may be included by the permit holder as part of the licensed premises submitted for any club or drinking establishment license issued by the State of Kansas.
(Ord. No. 50-178 § 25, 4-26-16; Ord. No. 50-334 § 7, 10-11-16)

Sec. 10.04.133. Permit renewal.

Renewals of permits may be granted upon payment of the annual permit fee and providing proof of liability insurance.
(Ord. No. 50-178 § 25, 4-26-16)

Sec. 10.04.134. Liability of permittee; hold city harmless and insure.

It shall be a condition of the permit that the permittee shall defend and hold the city, and its employees and agents harmless of any claim or action of any type or kind caused by the permittee or its employees or agents. The permit applicant shall provide evidence of liability insurance in a minimum coverage amount of $500,000.00, naming the city as additional insured. The insurance coverage must be in force for the duration of the permit, and provide coverage for all potential losses that could be incurred under the aforementioned defend and hold harmless obligation.
(Ord. No. 50-178 § 26, 4-26-16)

Sec. 10.04.135. Revocation of permit.

The permits which may be granted under this chapter are personal privileges which may be revoked by the issuing entity for violation of the ordinances in this chapter, for violations of any

regulations promulgated by the MABCD or city engineer for the uniform administration of the permitting and renewal process, or for the health, welfare or safety of the public. The city engineer shall establish policies governing the potential of reinstatement of the sidewalk cafe permit designed to discourage repeat offenses.
(Ord. No. 50-178 § 26, 4-26-16)

Sec. 10.04.137. Isolated sales.

(a) Isolated sales are allowed only in non-residential zoning districts. Such sales may include the location of stands, tables, racks and other devices for the sale and display of merchandise upon public sidewalks for a period not to exceed two (2) consecutive days per calendar month.

(b) The location of the display devices shall be made so that no more than one-half of the sidewalk area from front to back is occupied by the display racks, etc., but in no case shall the unobstructed sidewalk area be less than four (4) feet; furthermore, the placement of the display racks, et cetera, shall be limited so that each merchant shall display the merchandise only within the area of the sidewalk which immediately abuts each merchant's business.
(Ord. No. 50-334 § 8, 10-11-16)

Sec. 10.04.138. Temporary waiver of sidewalk café permit fees and approval of premises extensions.

a. Unless otherwise directed by the City Council, the City Treasurer is directed to waive all fees for new applications or application renewals for sidewalk café permits for applications submitted to City Licensing from the date of adoption of this ordinance until August 1, 2026.

b. The provisions of this section do not negate the responsibility of landowners to obtain sidewalk café permits when required or to comply with all applicable rules, regulations, and ordinances applicable to the permittees' activities and business operations occurring on City of Wichita sidewalks and/or public rights of-way.

c. The City Engineer, may, in his discretion, with the concurrence of the Traffic Engineer, MABCD representative and Fire Department, agree to the extension of licensed sidewalk café areas into private off-street parking, public parking spaces, public streets and public rights of way, when consistent with the provisions and requirements set forth in Sections 10.04.230 *et seq*. The permittee is not required to submit an additional application for such extension, but must provide a diagram of the proposed extension, a traffic control plan and a detailed description of proposed business activities to occur within the extended area, including any times for requested street closures.

d. Extensions of permitted premises must comply with all the administrative regulations contained in Section 10.04.270.

e. From the date of the adoption of this ordinance until August 1, 2026, the limitations contained in Section 10.04.137 will not be applicable to businesses with a valid sidewalk café permit.
(Ord. No. 51-335, § 1, 8-11-20; Ord. No. 51-566, § 1, 6-8-21)

Sec. 10.04.140. Permit required to erect poles in streets.*

It is unlawful for any person to erect any poles for the support of any utility in any public street or alley in the city unless the owners or users of such pole first obtain from the city council a permit for the privilege of erecting such poles.
(Ord. No. 50-178 § 28, 4-26-16)

Sec. 10.04.150. Utility poles be marked.

Whenever poles are in the city right-of-way, or any other property of the city, the owner of such pole shall be required to mark the poles so that the city can distinguish to whom they belong. Any entity required to mark poles shall provide an electronic database of the pole locations, both GIS and street address, and identification numbers to the city engineer. Such information shall include the date of installation, the watt-

*__Case law reference—__For case quoting and discussing the ordinance from which this section is derived, see Old Colony Trust Co. v. City of Wichita, 123 Fed. 762.

age and type of a streetlight (if attached), and an emergency contact name and phone number to be updated regularly.
(Ord. No. 50-178 § 29, 4-26-16)

Sec. 10.04.160. Reserved.

Sec. 10.04.170. House numbers—System to be used.

All houses and buildings, except accessory structures, which have access to public or officially recognized private streets or ways, avenues and highways in the city shall be numbered and designated as follows:

(1) *Streets, etc., running north and south.* On streets, avenues and highways running north and south, numbering shall commence with number one hundred at the northeast and southeast comers and with number one hundred one at the northwest and southwest comers of each street at its intersection with Douglas Avenue and shall increase north and south at the rate of:

a. One hundred numbers for each block or space between two streets; and

b. One number for each twenty-foot space along the building line of the street within each block with odd numbers being given to houses and buildings on the west side and even numbers to houses and buildings on the east side.

(2) *Streets, etc., running east and west.* On streets, avenues and highways running east and west, numbering shall commence with number one hundred at the northeast and northwest comers and with number one hundred one at the southeast and southwest comers of each street at its intersection with Main Street and shall increase east and west at the rate of:

a. One hundred numbers for each block or space between two streets; and

b. One number for each twenty-foot space along the building line of the street within each block with odd numbers being given to houses and buildings on the south side and even numbers to houses and buildings on the north side.

(Ord. No. 50-178 § 31, 4-26-16)

Sec. 10.04.180. Exceptions to system and correction of existing inconsistencies.

(a) The City Engineer and the MABCD are authorized, empowered, and directed to make such exceptions to the numbering system as may be made necessary by the irregular routing of streets, avenues or highways, by the use of named private streets; or by any other circumstance under which application of the numbering system set forth in Section 10.04.170 is impossible or produces a result which is not consistent with the orderly and uniform numbering of houses and buildings.

(b) The City Engineer and the MABCD are authorized, empowered, and directed to correct existing inconsistencies in house numbers assigned or otherwise in use by reassigning a street number consistent with Section 10.04.170 and 10.04.180 and requiring the property owner(s) to post such reassigned street numbers as provided in Section 10.04.190.

(c) Before making a reassignment of street numbers as provided in subsection (b) of this Section, the City Engineer shall notify the affected property owner in writing of such reassignment and said property owner may appeal a decision by the City Engineer reassigning a street number to the governing body of the city. Such appeal shall be in writing setting forth with sufficient particularity the decision appealed from and the reasons why such decision should be reviewed. An appealing party shall have the right to be heard and to present evidence at the hearing set for such purpose. Provided, however, that no such appeal shall be accepted or considered by the governing body unless notice of such appeal is given to the governing body within twenty days after the making of the decision appealed from.
(Ord. No. 50-178 § 32, 4-26-16; Ord. No. 50-334 § 9, 10-11-16)

Sec. 10.04.190. Duty of owner or occupant to place and size of house numbers.

The owner or occupant of every one or two family dwelling in the City is required to conspicuously place on the residence house numbers of at least three (3) inches in height. Painting house numbers on the Curb alone shall not be sufficient to comply with this Section.

Such numbers shall be consistent with Sections 10.04.170 and 10.04.180. Such numbers shall be of a contrast with their background such that police officers and firefighters can read the numbers from the abutting street. Any property owner failing to comply with this Section shall be punished by a fine of twenty five (25) dollars. Each day house numbers are not properly placed on the residence is a separate and distinct offense.
(Ord. No. 50-178 § 33, 4-26-16; Ord. No. 50-334 § 10, 10-11-16)

Sec. 10.04.200. Assignment of names to private streets.

(a) Any property owner may request that that portion of a private street running through said owner's property be named and that such name be officially recognized by the city. Such request shall be made to the metropolitan area planning department (MAPD) and shall be acted upon by the director of the MAPD consistent with a policy of maintaining uniformity and consistency in the names of streets and the numbering of housing and buildings within the city so as to ensure the ready and efficient location of houses and buildings by the fire department, police department, other emergency services and the public.

(b) In the event such a private street is named and such name is officially recognized by the city, it shall be the responsibility of the said property owner to erect and maintain a street sign or signs of the same type, size and color as street signs installed by the city on public streets. Such sign, by suffix or subsidiary sign element, shall identify the street by adding "Private Street." in a manner approved by the city traffic engineer.

(c) In the event the signs referred to in paragraph (b) above are not erected or maintained as provided in said subsection, the city is authorized to erect such signs and charge or assess the cost against the requesting party or parties or the abutting property owner or owners.

(d) When the name of a private street is officially recognized by the city and such street is not named and identified on the recorded subdivision within which it is located, it shall be the duty and responsibility of the person requesting recognition of such named street to file with the register of deeds of Sedgwick County, a copy of a site plan prepared with sufficient detail to locate such private street.
(Ord. No. 50-178 § 34, 4-26-16)

Sec. 10.04.210. Appeal.

Any applicant may appeal a decision by the Director of the MAPD refusing to approve the naming or numbering of a street to the Metropolitan Area Planning Commission (MAPC). Such appeal shall be in writing setting forth with sufficient particularity the decision being appealed and the reasons why such decision should be reviewed. Provided, however, no such appeal shall be considered by the MAPC unless written notice of the appeal is received by the MAPC no later than thirty (30) days after the decision being appealed is made.
(Ord. No. 50-178 § 35, 4-26-16; Ord. No. 50-334 § 11, 10-11-16)

Sec. 10.04.215. Enforcement.

The MABCD, the Wichita Fire Department, City Engineering, and the Wichita Police Department have the power to enforce any provision of this Chapter.
(Ord. No. 50-178 § 36, 4-26-16; Ord. No. 50-334 § 12, 10-11-16)

Sec. 10.04.220. Penalty.

Unless otherwise provided in this Title, a violation of the terms of this Title shall constitute a misdemeanor.
(Ord. No. 50-178 § 37, 4-26-16; Ord. No. 50-334 § 13, 10-11-16)

Sec. 10.04.230. Open Air ICT Temporary Use Permit.

Whereas, the City of Wichita must remain flexible to account for the evolving nature and scope of the unprecedented public health emergency posed by COVID-19, while also simultaneously safely, strategically and incrementally reopening businesses and facilitating economic recovery and revitalization; and

Whereas, it is the goal of the City of Wichita to continue the reopening of businesses in a safe and prudent manner and to provide existing and new businesses additional opportunities to utilize City outdoor spaces to accommodate required social distancing.

Whereas, based on those considerations, the City seeks to implement an Open Air ICT Temporary Use Permit.
(Ord. No. 51-335, § 2, 8-11-20)

Sec. 10.04.240. Application requirements.

a. Before any Open Air ICT Temporary Use Permit is issued by the City Engineer, an application for such permit must be filed with the City Engineer's office setting forth the following facts:

1. The name, address and telephone number and/or email where the applicant may be reached.
2. The location of the premises, which are requesting use of the City sidewalk, right-of-way, street, public parking spaces or private off-street parking spaces, including the legal description and/or dimensions of the area, sought to be utilized.
3. A statement that the applicant is the owner of the premises or has a leasehold interest in the property of not less than six (6) months in duration. If the extension is requested into private off-street parking spaces, the owner as well as the lessee must sign and approve the application.
4. A notarized statement that the permittee shall defend and hold the City harmless for any claims caused by the permittee or their employees.
5. A general description of the type of business seeking to be conducted in the City's right-of-way such as: restaurant, drinking establishment, microbrewery or retail sales.
6. A general site plan, which provides the following:
   A. Entrances to the business and other building entrances.
   B. Property lines, sidewalk width and all surface obstructions within 15 feet of the occupied area, i.e., fire hydrants, streetlights, parking meters, water meters and sewer manholes.
   C. Dimensions of the occupied area, approximate location of tables and chairs, merchandise tables, cash registers and other items including portable heaters, specialty lighting, planters, sound systems and their relative proximity to the 6-foot pedestrian clearance.
   D. Depicting open pedestrian bypass and ingress and egress areas as required by the Americans with Disabilities Act (ADA).
   E. Location of diverters, fences, planters or other temporary structures, which will be utilized to demark the public space to be utilized by the business.
   F. If any public parking area or street lanes are included within the application area, such application must include a traffic control plan, and a detailed description of the proposed activities to be conducted in the extended area, including times for any requested street closures. No request to utilize traffic lanes for an Open Air Temporary Use Permit will be approved for any street, highway or thoroughfare with a posted speed limit in excess of 35 mph.

G. If the applicant is requesting the use of off-street parking spaces to extend their business premises, in the Old Town Overlay District, the application must contain approval for such use by the Old Town Association Board as well, as proof that the applicant is current on assessed parking payments to the Old Town parking fund.

7. No fee shall be required for a temporary permit.

8. If the business is licensed as a drinking establishment, drinking establishment/ restaurant or entertainment establishment, a copy of the business's applicable license shall be attached to the application.

9. Proof of liability insurance for a minimum of $500,000, naming the City of Wichita as an additional insured. The insurance coverage must be in force for the duration of the permit.

(Ord. No. 51-335, § 3, 8-11-20; Ord. No. 51-566, § 2, 6-8-21)

Sec. 10.04.250. Permitted activities.

An Open Air ICT Temporary Use Permit will allow for the location of diverters, plantings, stands, tables, lighting, seating, devices for the protection of patrons from the elements, racks and other temporary structures to display merchandise, goods and wares and/or the sale, service and consumption of prepared meals and beverages, including alcoholic beverages. Consumption of alcoholic beverages shall not be allowed on any portion of an Open Air ICT Temporary Use Permit that includes a public street except as set forth in Section 10.04.270(b)(2) herein, and amendments thereto.
(Ord. No. 51-335, § 4, 8-11-20)

Sec. 10.04.260. Permit issuance.

a. The application and all accompanying documents shall be reviewed by the City Engineer, MABCD, Traffic Engineer, Zoning Administrator and the Fire Department for a determination that the application is complete, that all necessary licenses have been provided and that the business activities will not endanger or unduly inconvenience the public. If the requirements of this Chapter have been met, the permit shall be issued. This permit is in addition to any other license or permit required for the intended business.

b. The denial of any permit may be appealed to the City Council by filing a notice of appeal with the City Clerk within thirty (30) days of the decision by the City Engineer.
(Ord. No. 51-335, § 5, 8-11-20)

Sec. 10.04.270. Administrative procedures.

a. The City Engineer is hereby directed to implement all necessary administrative regulations as may be necessary to ensure the health and safety of the public.

b. In addition to any administrative regulations adopted by the City Engineer, any permittee shall be required to comply with the following regulations:

1. Any permittee who allows the sale, service or consumption of alcoholic liquor shall comply with all legal and statutory requirements as set forth in K.S.A. 12-406(a) and K.S.A. 41-719(d).

2. No alcoholic liquor or cereal malt beverage shall be consumed on the public streets unless such consumption is authorized by a common consumption permit issued pursuant to Chapter 4.08 of the Code of the City of Wichita. The public street must be closed with the proper authorization of the City Council to allow consumption of alcohol or cereal malt beverages in the street.

3. The permittee shall defend and hold the City, and its employees and agents harmless of any claim or action of any type or kind caused by the permittee or its employees or agents.

4. The permittee shall provide evidence of liability insurance in a minimum coverage amount of $500,000, naming the City of Wichita as an additional insured. The insurance coverage must be in force for

the duration of the permit, and provide coverage for all potential losses that could be incurred under the aforementioned defend and hold harmless obligation.

5. The permit issued pursuant to this Chapter shall not be transferred or assigned.

6. Permittee shall comply with all ordinances of the City of Wichita and the laws of the State of Kansas regarding the health, safety and welfare of patrons and staff.

7. If permittee allows the sale, service or consumption of alcoholic liquor or cereal malt beverage, such permittee shall comply with all applicable City ordinances and state statutes regulating the sale, service and consumption of alcoholic liquor or cereal malt beverages, with the exception of Sections 4.12.215(c) and (d) and Section 4.16.070(d) and amendments thereto.

8. Permittee's activities at all times shall comply with the City's noise ordinances set forth in Chapter 7.41 of the Code of the City of Wichita.

c. If the applicant is requesting to use existing private off-street parking spaces to extend their business premises, the provisions of Art. IV, Section IV-A(7) of the Unified Zoning Code shall not apply to the requested premises. The Zoning Administrator, in their discretion, may grant a temporary reduction of not more than fifty (50) percent of the private off-street parking provided by an existing business which seeks to utilize these outdoor spaces to display merchandise, goods and wares and/or the sale, service and consumption of prepared meals and beverages, including alcoholic beverages. Such reduction shall only be in effect for the length of time authorized by the permit.

d. During the length of the temporary permit, the limitations on isolated sales contained in Section 10.04.137 shall not be applicable to Open Air ICT Temporary Use Permit permittees.

e. Unless otherwise extended by the City Council, all such permits shall expire one year from the date of their issuance. All permits shall expire on August 1, 2026 regardless of the length of the permit approved.
(Ord. No. 51-335, § 6, 8-11-20; Ord. No. 51-566, § 3, 6-8-21)

Sec. 10.04.280. Revocation of permit.

a. Permits granted under this Chapter are personal privileges which may be revoked by the City Engineer for violation of the ordinances in this Chapter, violations of City ordinances and state statutes regarding alcoholic liquor or cereal malt beverages, violations of any regulations promulgated by the City Engineer for the uniform administration of the permitting and renewal process, or for the health, welfare or safety of the public.

b. The City Engineer shall provide written notice of the intent to revoke, suspend or deny an Open Air ICT Temporary Use Permit by personal service or by certified mail, return receipt requested. The notice shall be sent to the mailing address of the permittee on file with the City Treasurer. The notice shall provide the effective date of the revocation or suspension of the permit. Such notice shall detail the reasons or basis for the revocation, denial, or suspension of the permit. No revocation or suspension shall be imposed on less than five (5) business days' notice to the permittee, and shall specify the rights of the permittee to appeal any such denial, revocation or suspension.
(Ord. No. 51-335, § 7, 8-11-20)

Sec. 10.04.290. Appeal of denial or revocation.

a. Unless otherwise specified by this Chapter, any applicant or permittee aggrieved by the denial, suspension, or revocation may file with the City Clerk a written notice of appeal to the City Council within ten (10) business days of the decision by the City Engineer or his/her designee. The Notice of Appeal shall specify:

1. The name and address of the appellant;

2. The date of application;

3. The date of the denial, suspension, or revocation of additional conditions of the permit or application; and

4. The factual basis for the appeal.

b. Upon receipt of a complete and timely filed Notice of Appeal, the City Clerk shall schedule a hearing before the City Council, no later than thirty (30) days from the date of the filing of the Notice of Appeal with the City Clerk. Any appeal shall stay the suspension, modification or revocation of the permit until the matter is heard by the City Council.

c. The City Council may approve the denial, suspension, revocation, overrule the denial, suspension or revocation or imposition of additional conditions or modify the decision of the City Engineer.

d. In any hearing before the City Council pursuant to this section, a certified copy of a conviction from any local, state, or federal court for any violation is *prima facia* evidence of such violation of the provisions of the Code of the City of Wichita.

e. The Council's decision may be appealed to the Eighteenth Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101 and any amendments thereto. Any such appeal to the District Court shall not stay the denial, revocation, modification or suspension of the permit by the City Council.
(Ord. No. 51-335, § 8, 8-11-20)

CHAPTER 10.08. MINOR STREET PRIVILEGES*

Sec. 10.08.010. Definitions.
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Sec. 10.08.030. List of existing permits and permittees to be kept—Information to be shown.
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Sec. 10.08.130. Unauthorized use of permit in the easement or right-of-way, penalties.
Sec. 10.08.135. Notice of abandonment; consequences.
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Sec. 10.08.170. Annual permit fees for non-residential properties—Established.
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Sec. 10.08.230. Limitations on new encroachments.
Sec. 10.08.235. Mailboxes.
Sec. 10.08.240. Right of city to criminal action; restoration.
Sec. 10.08.250. Failure to obtain, maintain, or renew permit.
Sec. 10.08.300. Use of street permit.

*__Editor's note—__Ord. No. 50-177 §§ 1—33, adopted April 26, 2016, amended chapter 10.08 in its entirety to read as herein set out. Former chapter 10.08 §§ 10.08.010—10.08.240 pertained to similar subject matter and derived from Ord. No. 33-850 (part); Ord. No. 40-060 §§ 1—16, 18—21; Ord. No. 41-115 § 1; and Ord. No. 45-680 § 1.

__Note—__Prior ordinance history: Ord. Nos. 13-959, 20-161, 27-453, 27-978, 28-138, 30-074, 32-781.

Sec. 10.08.010. Definitions.

For the purposes of this chapter, the following words and phrases shall have the following meanings:

(a) *Easement use permit* means a permit to use the area on, under, or over dedications, or easements acquired by the city, separate and distinct from the general public use of such easements or dedications.

(b) *Point-to-point agreement* means a license to use the area on, under, or over public sidewalks, streets, alleys, public rights of way, or other municipally owned property where the applicant is not the owner or lessee of the adjacent private property and the applicant does not qualify as a utility operating under a franchise granted by the city.

(c) *Right-of-way use permit* means a license to use the right-of-way. As used in this chapter, the term shall not apply to the short-time use of public space in connection with building construction that is regulated by the building code as set out by Article 2 of the Wichita/Sedgwick County unified building and trade code, nor shall it apply to a public utility operating under a franchise granted by the city, nor shall it apply when the city engineer determines a permit is not necessary.

(d) *Use permit* is a right-of-way or easement use, not including a temporary use of street permit.
(Ord. No. 50-177 § 1, 4-26-16)

Sec. 10.08.020. Subject to regulations and permits as contained in this chapter.

Use permits and point-to-point agreements shall be subject to regulations and permits as set forth in this chapter.
(Ord. No. 50-177 § 2, 4-26-16)

Sec. 10.08.030. List of existing permits and permittees to be kept—Information to be shown.

The city engineer shall make a list of all existing use permits and point-to-point agreements and the permittees in possession thereof, arranged according to the street locations, together with all necessary data applicable to each right-of-way use and easement use permits, and point-to-point agreements. The city engineer shall have authority to call upon other city departments for assistance, at that other department's expense, in compiling such lists and carrying into effect the provisions of this chapter.
(Ord. No. 50-177 § 3, 4-26-16)

Sec. 10.08.040. Permits for new privileges—Application.

Application for Use Permits shall be submitted to the City Engineer with appropriate drawings, plans or photographs attached. The application shall be made only by the owner of land that holds an easement, or owner or the owner's agent of a property adjacent to a City owned easement, or the public Right of Way requested for use. The application shall contain a notarized certification that the owner or agent has the authority to utilize the property and request the Use Permit.
(Ord. No. 50-177 § 4, 4-26-16; Ord. No. 50-335 § 1, 10-11-16)

Sec. 10.08.050. Same—Approval of application—Issuance.

Upon approval of an application by the city engineer, the applicant shall record the permit with the office of the register of deeds of Sedgwick County in a form provided by the city. Upon payment of the requisite charges and copy of the permit as recorded, the permit shall be perfected. Such recording may be released by the city upon the satisfaction of the permit holder's obligations under the permit. Permit and application charges are non-refundable and shall not be pro-rated. The recording of the use permit may be waived in writing by the city engineer.
(Ord. No. 50-177 § 5, 4-26-16)

Sec. 10.08.060. Same—Authority of city engineer to renew permits.

The city engineer may renew permits on an annual basis upon payment of applicable fees and continuation in force of liability insurance for such permit.
(Ord. No. 50-177 § 6, 4-26-16)

Sec. 10.08.070. Liability of permittee—To save and hold city harmless.

It shall be a condition of any use permit that the permittee shall save, defend, and hold the city harmless of any and all liability, claims or expenses of any kind caused by, or growing out of, the construction, maintenance, operation, relocation, discontinuance or abatement of such use of the right-of-way or easement.

In the event that any public utility within the easement is planned or requires repair and/or maintenance and the same construction or repair is determined by the city to be impossible or impractical due to the presence of the encroachment, the owner or permittee shall be obligated to (a) allow the city to remove or damage any structure on the easement at the owner's or permittee's sole expense; (b) remove the encroachment; or (c) pay all additional costs required to accommodate the encroachment. If the owner or permittee wishes to remove the encroachment, the owner or permittee must do so within thirty days of notification of the planned activities.
(Ord. No. 50-177 § 7, 4-26-16)

Sec. 10.08.080. Same—Requirements as to liability insurance.

Whenever the construction, maintenance or abandonment of a use permit is attended with the possibility of damage or loss to the city, to other property owners, or to members of the public, the applicant for such permit shall furnish

and file with the city engineer's office proof of liability insurance in a minimum coverage amount of $300,000.00 per occurrence. Such insurance policy shall name the city as an additional insured and provide that the city will be given ten days prior notice of cancellation.
(Ord. No. 50-177 § 8, 4-26-16)

Sec. 10.08.081. Same—Exceptions to liability insurance requirements.

Liability insurance will not be required for underground irrigations systems, plants, monitoring wells, easement encroachment, or as determined by the city engineer. Notwithstanding this provision, no object of any type shall be allowed in the right-of-way if determined to be a sight hazard by the city traffic engineer.
(Ord. No. 50-177 § 9, 4-26-16)

Sec. 10.08.090. Emergency repair or restoration of easement or right-of-way.

If the condition of any easement or right-of-way is deemed by the city engineer to require immediate repair or restoration, the cost of all work, including but not limited to the cost of construction, maintenance, repair, operation, relocation, discontinuance, or abandonment, utility work, or any other effort or cost, regardless of nature, required to restore the easement or right-of-way shall be paid by the owner, adjacent property owner, and/or permittee.
(Ord. No. 50-177 § 10, 4-26-16)

Sec. 10.08.100. Termination by the city for failure to pay permit fee—Notice to permittee.

If any permittee fails to pay the annual fee, with accrued penalties, for any use permit within thirty days after the same is due, the city engineer shall terminate the use permit and cause a notice of termination to be mailed to the owner of record.
(Ord. No. 50-177 § 11, 4-26-16)

Sec. 10.08.110. Same—Permittee to arrange for restoration of property.

Upon termination of a permit, the permittee shall make all necessary arrangements for the discontinuance and abandonment of the encroachment and make or cause restoration of the property, as approved by the city engineer. All costs associated with removal of the encroachment and restoration of the property will be paid by the owner or permittee.
(Ord. No. 50-177 § 12, 4-26-16)

Sec. 10.08.120. Same—Failure of permittee to make restoration—Work to be done by city—Cost.

If the permittee fails to make arrangements as required by the preceding section, the city engineer is authorized to perform the necessary work and charge that expense to the permittee. In addition to the above cost, the permittee shall be charged with proportionate permit fees for the period up to the date on which the work or restoration is completed.
(Ord. No. 50-177 § 13, 4-26-16)

Sec. 10.08.130. Unauthorized use of permit in the easement or right-of-way, penalties.

The use of easement or Right of Way beyond that specified in the Use Permit is a misdemeanor.
(Ord. No. 50-177 § 14, 4-26-16; Ord. No. 50-335 § 2, 10-11-16)

Sec. 10.08.135. Notice of abandonment; consequences.

Any object placed or remaining in the easement or Right of Way without a required Use Permit shall be deemed abandoned and subject to removal after thirty (30) days' notice by certified mail to the owner of record.
(Ord. No. 50-177 § 15, 4-26-16; Ord. No. 50-335 § 3, 10-11-16)

Sec. 10.08.140. Control and supervision by city engineer—Generally.

When the public safety or welfare shall require the temporary or permanent discontinuance or

modification of a permit, the city engineer shall take all actions necessary for the public interest.
(Ord. No. 50-177 § 16, 4-26-16)

Sec. 10.08.150. Same—Rules and regulations.

The city engineer is authorized to prepare and enforce reasonable rules and regulations to govern the carrying out of the provisions of this chapter.
(Ord. No. 50-177 § 17, 4-26-16)

Sec. 10.08.160. Revocation of permit; fees non-refundable.

All use permits provided for in this chapter are revocable without refund or compensation to the permittee.
(Ord. No. 50-177 § 18, 4-26-16)

Sec. 10.08.170. Annual permit fees for non-residential properties—Established.

Any applicant desiring a use permit, shall, upon approval of application, pay a fee as required in section 10.34.030.
(Ord. No. 50-177 § 19, 4-26-16)

Sec. 10.08.175. Annual permit fees for residential properties—Established.

Any permittee desiring a use permit for use by a single-family residence shall, upon approval of application, pay a fee as required by section 10.34.030.
(Ord. No. 50-177 § 20, 4-26-16)

Sec. 10.08.176. Water vaults in public rights of way and easements prohibited.

Notwithstanding any other ordinance, provision, or directive, new vaults shall not be installed in the public right-of-way unless technically infeasible to be placed on private property. Any new vault installed in the right-of-way due to technical infeasibility shall have, in every circumstance, a use permit issued.
(Ord. No. 50-177 § 21, 4-26-16)

Sec. 10.08.177. Water vaults and lines in public rights of way and easements.

The permittee shall be responsible for any maintenance or repairs on water vaults or domestic or fire lines on public property from the property line to, but not including, the first valve located on public right-of-way. In no case, however, shall the city be responsible for repairs or maintenance closer than six feet from the supply-side exterior of the vault wall. The city may maintain, at its discretion, the water meter, pipe, and fittings between and including the inlet and outlet valves. The city engineer will determine the location of the water valve(s) during the plan review process.
(Ord. No. 50-177 § 22, 4-26-16)

Sec. 10.08.180. Processing charge—Designated—Required when.

Any use permit authorized under this chapter shall require payment of a processing charge as listed in section 10.34.010.
(Ord. No. 50-177 § 23, 4-26-16)

Sec. 10.08.190. Same—In addition to inspection, construction and other permit fees.

All processing charges and annual fees established for use permits shall be separate from and in addition to inspection, construction or other fees or charges.
(Ord. No. 50-177 § 24, 4-26-16)

Sec. 10.08.200. Fees—Payment and disposition.

Permit fees and processing charges, except for existing uses, shall be payable in advance prior to the issuance of the annual permit and shall be for a term of one year. The renewed permit shall be evidenced by the receipt of the annual permit.
(Ord. No. 50-177 § 25, 4-26-16)

Sec. 10.08.210. Same—Exception.

(a) With the exception of the processing charge as set forth in section 10.08.180, no annual permit fee shall be paid for a use permit when

the granting of such permit is coupled with and is a part of the public requirement or consideration for the taking of land by the city in connection with the city's approval of a plat or lot split.

(b) The processing charge shall accompany the application when a waiver of annual permit fee is requested. The application for a use permit shall state the reasons for the waiver and shall be accompanied by drawings, plans, or photographs showing all encroachments and describing their nature and specifications. Upon the approval of the use permit by the city engineer, the appropriate drawings, plans or photographs shall be made a part of the permit, and the recipient of the use permit, by acceptance of the use permit, shall be obligated to indemnify the city for any and all costs of removal of any unauthorized improvements not constructed according to the documents submitted and approved or not included in the use permit.

(c) With the exception of the processing charge as set forth in section 10.08.180, no annual permit fee shall be charged when the city engineer determines the project to be one involving public safety, public beautification or improvement of public property for public purposes.

(d) With the exception of the processing charge as set forth in section 10.08.180, no annual permit fee shall be charged for underground sprinkler systems or surface treatment on standard drive approaches.

(e) With the exception of the processing charge as set forth in section 10.08.180, no annual permit fee shall be charged for test/monitoring/recovery wells for a governmental agency.

(f) With the exception of the processing charge as set forth in section 10.08.180, the annual fee for an easement encroachment may be waived by the city engineer.

(g) Any person aggrieved by the action of the city engineer may appeal this ruling on the waiver to the city council by requesting a hearing before the council within thirty days of notification of the decision of the city engineer.
(Ord. No. 50-177 § 26, 4-26-16)

Sec. 10.08.220. Same—Penalty for failure to pay when due.

All use permits not paid within thirty days after the due date shall be subject to a penalty of ten percent of the amount of the permit fee, and ten percent of the amount of the permit fee shall be added for each additional thirty days from the due date.
(Ord. No. 50-177 § 27, 4-26-16)

Sec. 10.08.230. Limitations on new encroachments.

Nothing in this chapter shall require the issuance of a use permit for an encroachment not otherwise authorized under this code.
(Ord. No. 50-177 § 28, 4-26-16)

Sec. 10.08.235. Mailboxes.

For the purposes of this chapter, mailboxes complying with the United States Postal Service (USPS) requirements and the American Association of State Highway and Transportation Officials' (AASHTO's) "A Guide for Erecting Mailboxes on Highways," 1994, et. sec, do not require a right-of-way use permit. Any mailbox not complying with the applicable USPS regulations or the AASHTO Guide, including but not limited to, masonry structures, railroad ties, or similar hazards, shall be unlawful; and the city or any city agent shall not be subject to liability for any claims arising from any non-compliant mailbox installation. The city retains its authority to remove or raze a non-compliant mailbox installation without compensation to the owner. The costs of removal shall be billed to the property owner. If such costs are not paid within ninety days, such costs shall be assessed against the property.
(Ord. No. 50-177 § 29, 4-26-16)

Sec. 10.08.240. Right of city to criminal action; restoration.

It shall be unlawful for any permittee to fail to restore the easement or the right-of-way within thirty days of notice. Any permittee failing to

restore after thirty days shall be issued a criminal complaint under the authority of the city engineer or designee, or any city police officer.
(Ord. No. 50-177 § 30, 4-26-16)

Sec. 10.08.250. Failure to obtain, maintain, or renew permit.

If any Permittee fails to obtain, maintain, or renew a Use Permit, the City shall have the right to remove and dispose of any Encroachment on the easement or Right of Way. If the Encroachment is not an immediate hazard or nuisance, the Permittee may be given thirty (30) days written notice prior to the Encroachment's removal. No compensation for the value of any Encroachment removed by the City or at the City's direction shall be given under any circumstances. Any Encroachment existing on the easement or Right of Way without a valid Use Permit, for which the City Engineer has issued a notice to remove by certified mail, after thirty (30) days is deemed abandoned property, which may be disposed of by the City or any party at the City's direction.
(Ord. No. 50-177 § 31, 4-26-16; Ord. No. 50-335 § 4, 10-11-16)

Sec. 10.08.300. Use of street permit.

Any person desiring to temporarily use a street, sidewalk, or alley shall obtain a use of street permit, subject to the approval of the city traffic engineer, for which a fee shall be charged as listed in section 10.34.010, and, in addition, shall pay for the use of such space, a fee per square foot per day as listed in section 10.34.010.
(Ord. No. 50-177 § 32, 4-26-16)

CHAPTER 10.12. CONSTRUCTION

Sec. 10.12.010. To be constructed of concrete and in accordance with specifications.
Sec. 10.12.020. Plans and specifications for repair, etc., of sidewalks, wheelchair ramps, curbs, gutters and private drive approaches.
Sec. 10.12.030. License required to construct—Fee; term.
Sec. 10.12.040. Same—Qualifications of applicant to be shown—Bond required.
Sec. 10.12.050. Permit required to engage in construction; fee, etc.
Sec. 10.12.060. Refusal of permits and/or penalty for failure to obey rules and regulations.
Sec. 10.12.070. Concrete specifications.
Sec. 10.12.080. Width required of sidewalks; exceptions.
Sec. 10.12.090. Widening of existing sidewalks.
Sec. 10.12.100. Location and grade of sidewalks.
Sec. 10.12.110. Inspection of work—Notice to city engineer; acceptance or refusal.
Sec. 10.12.120. Same—Duty of sidewalk inspector.
Sec. 10.12.130. Same—Refusal of future permits until defects in construction are corrected.
Sec. 10.12.135. Responsibility of abutting property owner.
Sec. 10.12.136. Notice to construct in accordance with city specifications.
Sec. 10.12.137. Same—Failure to comply with notice.
Sec. 10.12.140. Requiring new sidewalks to be built—By resolution after petition.
Sec. 10.12.150. Same—Resolution to specify kind, width, length, etc.
Sec. 10.12.160. Same—Publication of resolution; notice.
Sec. 10.12.170. Same—Duty of abutting owner to build in accordance with resolution.
Sec. 10.12.180. Same—Failure of owner to construct after notice; estimate of cost to be made; work to be let by contract; costs.
Sec. 10.12.190. Same—Condemnation of existing sidewalks; construction of new sidewalks.

Sec. 10.12.010. To be constructed of concrete and in accordance with specifications.

All public sidewalks, wheelchair ramps, curbs, gutters and private drive approaches constructed in the city shall be of concrete unless otherwise ordered by the city council and shall be constructed according to specifications on file in the office of the city engineer for the purpose of giving the city, through its proper officers, supervision over the construction of such public sidewalks, wheelchair ramps, curbs, gutters and drive approaches. The city engineer shall have the authority to approve other materials for temporary situations or for non-standard sidewalks, curbs, gutters and private drive approaches.
(Ord. No. 45-681 § 1; Ord. No. 19-589 § 1; Ord. No. 50-179 § 1, 4-26-16)

Sec. 10.12.020. Plans and specifications for repair, etc., of sidewalks, wheelchair ramps, curbs, gutters and private drive approaches.

All sidewalks, wheelchair ramps, curbs, gutters and private drive approaches in the city shall be repaired or reconstructed in accordance with the official plans and specifications on file in the office of the city engineer. The city engineer may require temporary sidewalks and wheelchair ramps be constructed forthwith during the construction, reconstruction, maintenance, or otherwise of any sidewalk or wheelchair ramp.
(Ord. No. 50-179 § 2, 4-26-16)

Editor's note—Ord. No. 50-179 § 2, adopted April 26, 2016, repealed section 10.12.020 and enacted a new section as set out herein. The former section 10.12.020 pertained to plans and specifications for repair, etc., of sidewalks, and derived from Ord. No. 12-976 § 1.

Sec. 10.12.030. License required to construct—Fee; term.

Every person, before constructing any public sidewalk, wheelchair ramp, curb, gutter or drive approach, or before removing any curb or sidewalk for the purpose of constructing a private approach in the city, shall be required to obtain a license from the city engineer for which payment of a license fee as listed in section 10.34.010 authorizes the licensee to engage in such work for a period of twelve months.

Applicants for the license must first take and pass a test that is administered by the engineering division. There is a charge to take the test which allows applicants who don't pass the test the first time to retest after one week. The charge is listed in section 10.34.010.

All license renewals not paid within thirty-six days after the due date shall be subject to a penalty equal to the amount of the license, and all licenses not paid within sixty days after the due date shall be subject to a penalty equal to

double the amount of the license. Inactive contractors who do not renew their licenses within one year of the due date will be required to pay the charge to take and pass the test to renew.

The city engineer shall have the authority to waive the license requirement to allow contractors and/or property owners to perform gravel and asphalt work.
(Ord. No. 45-681 § 2: Ord. 40-058 § 1; Ord. No. 50-179 § 3, 4-26-16)

Sec. 10.12.040. Same—Qualifications of applicant to be shown—Bond required.

(a) Before a license shall be granted by the city engineer, under the provisions of the preceding section, the person applying for the same shall show, subject to the rules and regulations to be furnished by the city engineer, skill in constructing public sidewalks, wheelchair ramps, curbs, gutters, and private drive approaches, and cutting through such curbs and sidewalks.

(b) Before any concrete contractor's license is issued, the applicant therefore shall have filed with the city engineer's office a surety bond in the amount of $5,000.00, which shall be approved as to form by the city attorney. The condition of such bond shall be that the principal therein shall comply with all ordinances of the city relating to and regulating the construction of all public sidewalks, wheelchair ramps, curbs, gutters and private drive approaches, and hold and save the city harmless from any and all damage to persons or property resulting from or growing out of any opening or excavation made, material stored or placed upon any operation in the street, alley or public property, or from any other action by the principal therein. The bond renewal date shall be the same date as the license renewal date.
(Ord. No. 45-681 § 3; Ord. No. 33-578; Ord. No. 26-741 § 1; Ord. No. 50-179 § 4, 4-26-16)

Sec. 10.12.050. Permit required to engage in construction; fee, etc.

Contractors are required to obtain a permit(s) from the city engineer before constructing any public sidewalk, wheelchair ramp, curb, gutter or drive approach on the city right-of-way. The permit fees listed in section 10.34.010 shall apply whether the abutting property is commercial or residential.

Widening or replacement of existing drives shall be considered as a new drive approach in assessing of fees. Such permit shall state the location of the sidewalk, wheelchair ramp, curb, gutter or drive approach to be constructed, widened, replaced or removed.

Permits are nonrefundable and nontransferable.
(Ord. No. 45-681 § 4; Ord. No. 41-116 § 1; Ord. No. 50-179 § 5, 4-26-16)

Sec. 10.12.060. Refusal of permits and/or penalty for failure to obey rules and regulations.

The City Engineer shall refuse permits to contractors who fail or refuse to obey all rules and regulations necessary in the enforcement of this chapter. A penalty up to double the cost of the permit will be charged for failure to call for inspections or obtain a permit prior to the beginning of work that will be performed on city Right-of-Way. A revisit penalty will be charged per revisit if the inspector is required to revisit the site to complete the inspection or perform additional inspections at the fault or request of the contractor and that are not already accounted for by the approved permit.

All permits not paid within thirty-six (36) days after the due date shall be subject to a penalty equal to the amount of the permit fee, and all permits not paid within sixty (60) days after the due date shall be subject to a penalty equal to double the amount of the permit fee. Any amounts owed by the Permittee may be offset against any amounts due or payable from the City, including withholding funds of any awarded project to reimburse the City for any outstanding debts. All permits and penalties not paid within ninety (90) days of the due date will be turned over to the contractor's bond company.

Costs of penalties shall be determined based on charges listed in Sec. 10.34.010. Permit and license processing charges.
(Ord. No. 45-681 § 5; Ord. No. 19-589 § 4; Ord. No. 50-179 § 6, 4-26-16; Ord. No. 52-006, § 1, 12-27-22)

Sec. 10.12.070. Concrete specifications.

All concrete work shall comply, at a minimum, with city standard specifications as promulgated by the city engineer.
(Ord. No. 50-179 § 7, 4-26-16)

Editor's note—Ord. No. 50-179 § 7, adopted April 26, 2016, repealed section 10.12.070 and enacted a new section

as set out herein. The former section 10.12.070 pertained to special mixing and concreting operations during cold weather and derived from Ord. No. 45-681 § 6; and Ord. No. 19-589 § 5.

Sec. 10.12.080. Width required of sidewalks; exceptions.

All new public sidewalks constructed under the provisions of this chapter shall be, at a minimum, five feet in width unless otherwise authorized by the city engineer.
(Ord. No. 45-681 § 7; Ord. No. 19-589 § 3; Ord. No. 50-179 § 8, 4-26-16)

Sec. 10.12.090. Widening of existing sidewalks.

Any sidewalk may be widened at any time by directive of the city council or the city engineer.
(Ord. No. 19-589 § 3; Ord. No. 50-179 § 9, 4-26-16)

Sec. 10.12.100. Location and grade of sidewalks.

All sidewalks shall be constructed at the location and grade established by the city engineer.
(Ord. No. 19-589 § 3; Ord. No. 50-179 § 10, 4-26-16)

Sec. 10.12.110. Inspection of work—Notice to city engineer; acceptance or refusal.

Every contractor or other person constructing public sidewalks, wheelchair ramps, curbs or gutters or private drive approaches shall notify the city engineer when the work is ready for inspection so as to give ample time to make the inspection before the concrete is placed. If upon investigation and inspection by the city engineer, or the engineer's agent, the public sidewalk, wheelchair ramp, curb, gutter or drive approach is found to be out of compliance with the specifications provided for in the construction of such sidewalk, curb, gutter or drive approach, the city engineer may refuse to accept and approve the work and require that any errors in the construction be removed, repaired, or corrected to the satisfaction of the city engineer prior to the acceptance of the work.
(Ord. No. 45-681 § 8; Ord. No. 19-589 § 4; Ord. No. 50-179 § 11, 4-26-16)

Sec. 10.12.120. Same—Duty of sidewalk inspector.

For the purpose of making the inspection as provided for in this chapter, the sidewalk inspector in the city engineer's office shall make the inspection of sidewalks, wheelchair ramps, curbs, gutters and private drive approaches as provided for in this chapter, which inspection shall be made according to the rules and specifications furnished by the city engineer.
(Ord. No. 45-681 § 9; Ord. No. 19-589 § 6; Ord. No. 50-179 § 12, 4-26-16)

Sec. 10.12.130. Same—Refusal of future permits until defects in construction are corrected.

The city engineer shall refuse any contractor permits to build sidewalks, wheelchair ramps, curbs, gutters and private drive approaches until such defect in construction in previous work has been removed, replaced, or corrected to the satisfaction of the city engineer.
(Ord. No. 45-681 § 10; Ord. No. 19-589 § 4; Ord. No. 50-179 § 13, 4-26-16)

Sec. 10.12.135. Responsibility of abutting property owner.

Whenever the city engineer, or the engineer's agent, finds that the public sidewalk, wheelchair ramp, curb, gutter or drive approach is not in accordance with the specifications provided for in the construction of such sidewalk, curb, gutter or drive approach, or a temporary sidewalk or wheelchair ramp has not been provided as required in 10.12.020 and the entity responsible for the work cannot be identified, is not licensed and bonded, or is unwilling to pay for the work or repairs, the engineer may require that any errors in the construction be corrected forthwith by the abutting property owner.
(Ord. No. 50-179 § 14, 4-26-16)

Sec. 10.12.136. Notice to construct in accordance with city specifications.

Whenever any person whose duty it is to correct any errors in construction as described in section 10.12.135 shall fail to do so, the city engineer or the engineer's representative shall serve or cause to be served upon such person a notice requiring such person to comply with the requirements of section 10.12.135. Such notice may be served by mailing the same, postage prepaid and certified, to the last known address of such owner or occupant, or in cases in which such person cannot be found such notice may be posted in a conspicuous place upon the lot or piece of ground to be corrected.
(Ord. No. 50-179 § 15, 4-26-16)

Sec. 10.12.137. Same—Failure to comply with notice.

If the owner or occupant of a parcel fails to correct the errors after having been given the notice provided for in section 10.12.136, the repairs described in section 10.12.135 may be made under the direction of the city engineer or the engineer's representative and the expense thereof taxed against the abutting lot or piece of property and such tax shall be levied, certified and collected in the same manner as special assessment taxes for the repair and construction of sidewalks.
(Ord. No. 50-179 § 16, 4-26-16)

Sec. 10.12.140. Requiring new sidewalks to be built—By resolution after petition.

The city council may, by resolution passed at any meeting, require the building of any new sidewalk upon the signing of a petition by a majority of resident owners or by owners representing fifty-one percent or more of the area of the improvement district.
(Ord. No. 45-681 § 11; Ord. No. 19-589 § 8; Ord. No. 50-179 § 17, 4-26-16)

Sec. 10.12.150. Same—Resolution to specify kind, width, length, etc.

The resolution referred to in the preceding section shall specify the kind, width, and length of sidewalk to be built.
(Ord. No. 50-179 § 18, 4-26-16)

Editor's note—Ord. No. 50-179 § 18, adopted Apr. 26, 2016, repealed section 10.12.150 and enacted a new section as set out herein. The former section 10.12.150 pertained to requiring new sidewalks to be built—resolution to specify kind, width, length of time allowed, etc., and derived from Ord. No. 19-589 § 8.

Sec. 10.12.160. Same—Publication of resolution; notice.

Immediately upon the passage of the resolution by the city council ordering the sidewalk to be built, it shall be the duty of the city clerk to cause the publication of such resolution together with a notice stating the names of the streets upon which sidewalks are to be constructed, which resolution and notice shall be published in the official city paper as provided by law.
(Ord. No. 45-681 § 12; Ord. No. 19-589 § 8; Ord. No. 50-179 § 19, 4-26-16)

Sec. 10.12.170. Same—Duty of abutting owner to build in accordance with resolution.

It shall be the duty of the owner of any property abutting a sidewalk ordered to be built, to build such sidewalk in accordance with the resolution and notice as provided for in the preceding section.
(Ord. No. 19-589 § 9)

Sec. 10.12.180. Same—Failure of owner to construct after notice; estimate of cost to be made; work to be let by contract; costs.

If any sidewalk is not constructed as required by resolution, the city council may order such sidewalk to be constructed as hereinafter prescribed. An estimate of the cost thereof shall first be made under oath by the city engineer and submitted to the purchasing manager, who shall proceed with letting the contracts as provided in chapter 2.64.

The cost of constructing such sidewalk shall be assessed against the owner of the abutting property and the assessment levied against such property as provided by law.
(Ord. No. 50-179 § 20, 4-26-16)

Editor's note—Ord. No. 50-179 § 20, adopted April 26, 2016, repealed section 10.12.180 and enacted a new section as set out herein. The former section 10.12.180 pertained to requiring new sidewalks to be built—failure of owner to construct after notice; estimate of cost to be made; work to be let by contract to lowers bidder; costs; and derived from Ord. No. 45-681 § 13; Ord. No. 38-398 § 1; Ord. No. 49-816 § 6, adopted Aug. 26, 2014.

Sec. 10.12.190. Same—Condemnation of existing sidewalks; construction of new sidewalks.

The city council may at any time, by resolution, condemn any portion of any sidewalk whenever in its judgment it shall be deemed necessary and provide for the construction of a new sidewalk in accordance with the provisions of this chapter. The city council and/or the city engineer may provide for the removal of a sidewalk without providing for any new sidewalk in its stead.
(Ord. No. 45-681 § 14; Ord. No. 19-589 § 10; Ord. No. 50-179 § 20, 4-26-16)

CHAPTER 10.16. DRIVEWAYS AND CURB CUTS

Sec. 10.16.010. Definitions.
Sec. 10.16.020. Cutting, breaking or removing of curb.
Sec. 10.16.030. Approaches as parking spaces or areas.
Sec. 10.16.040. Subordination to section 10.08.
Sec. 10.16.050. Effect of granting permit.
Sec. 10.16.060. Reserved.
Sec. 10.16.070. Maximum width of approaches; exception.
Sec. 10.16.080. Curb-parking spaces between approaches.
Sec. 10.16.090. Sides, edges or curbs to be at right angles to street curb.
Sec. 10.16.100. Maximum width of curb cut.
Sec. 10.16.120. Residential drive approach and street corner distances.
Sec. 10.16.130. Curb return radius.
Sec. 10.16.140. Interference with street structures—Prohibited.
Sec. 10.16.150. Same—Removal by city; cost.
Sec. 10.16.151. Same—Notice to remove or reconstruct any drive approach or curb which is in violation of this chapter.
Sec. 10.16.152. Same—Failure to comply with notice.
Sec. 10.16.160. Cooperation between superintendent of the metropolitan area building and construction department (MABCD) and city engineer.
Sec. 10.16.170. Variances from strict application of chapter.
Sec. 10.16.180. Appeals.
Sec. 10.16.190. Curb numbering.
Sec. 10.16.200. Unsolicited curb numbering.
Sec. 10.16.210. House numbers on residence.

Sec. 10.16.010. Definitions.

Unless otherwise expressly stated or the context clearly indicates a different intention the following term shall, for the purpose of this chapter, have the meaning indicated in this section:

(a) *Outside sidewalk line.* "Outside sidewalk line" means a line lying along the edge of the sidewalk nearest the street roadway or curb; or where no sidewalk exists, a line in the street right-of-way parallel to and five feet from the line of the private property.

(Ord. No. 40-317 § 1; Ord. No. 50-180 § 1, 4-26-16)

Sec. 10.16.020. Cutting, breaking or removing of curb.

It shall be unlawful for any person to cut, break out, remove, or damage in any way any curb along a street or alley except as authorized by chapter 10.12.

(Ord. No. 16-935 § 2; Ord. No. 50-180 § 2, 4-26-16)

Sec. 10.16.030. Approaches as parking spaces or areas.

It shall be unlawful for any person to construct, alter, extend, permit, or cause to be constructed, altered or extended, any drive approach that can be used only as a parking space or area between the curb and private property.

(Ord. No. 50-180 § 3, 4-26-16)

Editor's note—Ord. No. 50-180 § 3, adopted April 26, 2016, repealed section 10.16.030 and enacted a new section as set out herein. The former section 10.16.030 pertained to approaches which can be used only as parking spaces or areas and derived from Ord. No. 16-935 § 2.

Sec. 10.16.040. Subordination to section 10.08.

This chapter shall be subordinate to section 10.08.

(Ord. No. 50-180 § 4, 4-26-16)

Editor's note—Ord. No. 50-180 § 4, adopted April 26, 2016, repealed section 10.16.040 and enacted a new section as set out herein. The former section 10.16.040 pertained to effect of chapter on Chapter 10.08 and derived from Ord. No. 16-935 § 2.

Sec. 10.16.050. Effect of granting permit.

The issuance or granting of a permit shall not be deemed or construed to be a permit for, or an approval of, any violation of this chapter.

(Ord. No. 16-935 § 11)

Sec. 10.16.060. Reserved.

Editor's note—Ord. No. 50-180 § 5, adopted April 26, 2016, repealed section 10.16.060, revocation of permits, and derived from Ord. No. 16-935 § 2.

Sec. 10.16.070. Maximum width of approaches; exception.

No drive approach shall exceed thirty feet in width unless such approach is approved in writ-

ing by the city engineer or the city engineer's designee. On streets marked as permanent state or federal highway routes, a drive approach may be constructed with a maximum width of forty feet upon written approval of the city engineer or the traffic engineer.
(Ord. No. 16-935 § 3; Ord. No. 50-180 § 6, 4-26-16)

Sec. 10.16.080. Curb-parking spaces between approaches.

Where more than one drive approach on a street front serves a single lot or tract of land, there shall be at least twenty feet between drive approaches.
(Ord. No. 16-935 § 3; Ord. No. 50-180 § 7, 4-26-16)

Sec. 10.16.090. Sides, edges or curbs to be at right angles to street curb.

The centerline of drive approaches shall be at a right angle to the street curb unless otherwise approved by the city engineer or the traffic engineer.
(Ord. No. 16-935 § 3; Ord. No. 50-180 § 8, 4-26-16)

Sec. 10.16.100. Maximum width of curb cut.

For the purpose of constructing a drive approach, the construction limits shall not exceed four feet beyond the drive approaches or to the nearest joint as directed by the city engineer.
(Ord. No. 16-935 § 4; Ord. No. 50-180 § 9, 4-26-16)

Sec. 10.16.120. Residential drive approach and street corner distances.

No portion of a Drive approach shall be constructed within four (4) feet of the projected straight line extension of the property line. In cases where the projected property line is less than fourteen (14) feet from the back of Curb of the perpendicular street, no portion of a Drive approach shall be constructed within eighteen (18) feet of the straight line extension of the back of the Curb of the perpendicular roadway. The City Engineer or Traffic Engineer shall have the right to allow exceptions to this section in the interest of public safety.
(Ord. No. 50-180 § 10, 4-26-16; Ord. No. 50-336 § 1, 10-11-16)

Editor's note—Ord. No. 50-180 § 10, adopted April 26, 2016, repealed § 10.16.120 and enacted a new section as set out herein. The former § 10.16.120 pertained to distance between driveway approach and corner and derived from Ord. No. 16-935 § 5.

Sec. 10.16.130. Curb return radius.

The radius of curvature of the curb return shall not exceed the distance between the curb and the outside sidewalk line unless approved by the city engineer or the city engineer's designee. However, in no case shall the radius intrude into the sidewalk. In cases where no such sidewalk exists, the radius of the curvature of the curb return shall not exceed the distance between the curb and five feet from the right-of-way line.
(Ord. No. 16-935 § 6; Ord. No. 50-180 § 11, 4-26-16)

Sec. 10.16.140. Interference with street structures—Prohibited.

No drive approach shall interfere with municipal facilities, including, but not limited to drainage structures, street-lighting poles, traffic-signal standards, signs, catch basins, hydrants, crosswalks, bus-loading platforms, utility poles, fire-alarm supports, underground pipes or ducts.
(Ord. No. 16-935 § 7; Ord. No. 50-180 § 12, 4-26-16)

Sec. 10.16.150. Same—Removal by city; cost.

The city engineer is authorized to order and affect the removal or reconstruction of any drive approach, curb or other structure which is in violation of this chapter or which now conflicts with street structures or which will conflict with street structures in the future. The cost of removing or reconstructing or relocating such drive approaches, curbs or any other structures shall be at the expense of the abutting property owner.
(Ord. No. 16-935 § 7; Ord. No. 50-180 § 13, 4-26-16)

Sec. 10.16.151. Same—Notice to remove or reconstruct any drive approach or curb which is in violation of this chapter.

Whenever it is determined that a drive approach, curb or other structure shall be removed or reconstructed at the expense of the abutting property owner as allowed in section 10.16.150, the city engineer or the engineer's representative, shall serve or cause to be served upon such person a notice requiring such person to comply with the requirements of section 10.16.150. Such notice may be served by mailing the same, postage prepaid and certified, to the owner of record.
(Ord. No. 50-180 § 14, 4-26-16)

Sec. 10.16.152. Same—Failure to comply with notice.

If the owner or occupant of a parcel fails to remove or reconstruct the drive approach, curb or other structure in accordance with the specifications on file with the city engineer, after having been given the notice provided for in section 10.16.151, the removal or reconstruction may be made by or under the direction of the city engineer or the engineer's representative, and the expense thereof taxed against the abutting parcel and such tax shall be levied, certified and collected in the same manner as special assessment taxes for the repair and construction of sidewalks.
(Ord. No. 50-180 § 15, 4-26-16)

Sec. 10.16.160. Cooperation between superintendent of the metropolitan area building and construction department (MABCD) and city engineer.

Any plans submitted to the director of MABCD for approval that include or involve unusual drive approaches or problems shall be referred by the director of the MABCD to the city engineer for approval before a building permit is issued.
(Ord. No. 50-180 § 16, 4-26-16)

Editor's note—Ord. No. 50-180 § 16, adopted April 26, 2016, repealed section 10.16.160 and enacted a new section as set out herein. The former section 10.16.160 pertained to cooperation between superintendent of the metropolitan area building and construction department (MABCD) and city engineer and derived from Ord. No. 16-935 § 8.

Sec. 10.16.170. Variances from strict application of chapter.

The city engineer is hereby authorized to grant, in writing, variances from the strict application of the provisions of this chapter; provided that one of the following conditions is present:

(1) The exception or variance desired arises from unique physical conditions not ordinarily existing in similar districts in the city or is due to the nature of the business or operation on the abutting property.

(2) The exception or variance desired is not against the public interest, particularly safety, convenience, and general welfare.

(3) The granting of the permit for the exception or variance will not adversely affect the rights of adjacent property owners or tenants.

(4) The strict application of the terms of this chapter will work unnecessary hardship on the property owner or tenant.

(Ord. No. 16-935 § 9; Ord. No. 50-180 § 17, 4-26-16)

Sec. 10.16.180. Appeals.

Any decision by the city engineer either granting or refusing to grant variances to the strict application of this chapter may be appealed in writing to the city council by the party adversely affected, provided such appeal is filed in writing with the city clerk within twenty days after the issuance of the adverse decision. The city clerk will docket the appeal for hearing before the city council.
(Ord. No. 27-897 § 1; Ord. No. 50-180 § 18, 4-26-16)

Sec. 10.16.190. Curb numbering.

No curb shall be lettered or numbered in any way except that residential street address

numbers may be painted on curbs in front of residential street addresses. Curb numbering must conform to the following standards:

(1) Numbers must be black on white background;

(2) Numbers must be in block print, four inches in height, three-fourths inch stroke, and there must be a space of at least one-fourth inch and no more than one inch in between numbers;

(3) No numbers may be painted in restricted zones, that is, where curbs are painted yellow or red or where parking is restricted;

(4) Numbers must be placed at the end of the curb return on the street on which the residence is addressed and which is closest to the center of the frontage of the property or residence.

The city may remove addresses for which the numbers are not in conformity with these standards. The city has no obligation to replace numbering damaged or removed in the process of street maintenance activities.
(Ord. No. 40-317 § 2; Ord. No. 50-180 § 19, 4-26-16)

Sec. 10.16.200. Unsolicited curb numbering.

It shall be unlawful for any person or agency to paint numbering on curbs in front of any residence without first securing the approval of the person living at such address or the owner of the premises and without first making arrangements with the owner or person who resides at the given address if and how payment is to be made for the lettering. Any person who paints numbers on curbs in violation of this section is guilty of a misdemeanor.
(Ord. No. 40-317 § 3)

Sec. 10.16.210. House numbers on residence.

The curb numbering as provided for herein is not in lieu of house numbers to be affixed to the residence as provided for in Section 10.04.190 of the Code of the City of Wichita, Kansas.
(Ord. No. 40-317 § 4)

CHAPTER 10.20. EXCAVATIONS*

Sec. 10.20.010. Reserved.
Sec. 10.20.020. Applicability of chapter.
Sec. 10.20.030. Permit required.
Sec. 10.20.040. Persons eligible for permits.
Sec. 10.20.050. Application for permit; fees, issuance.
Sec. 10.20.055. Refusal of permits and/or penalty for failure to obey rules and regulations.
Sec. 10.20.060. Manual on uniform traffic control devices; compliance required.
Sec. 10.20.070. Backfilling—Generally; removal of surplus material.
Sec. 10.20.080. Reserved.
Sec. 10.20.090. Same—Excavations within four feet of existing or planned pavement, etc.
Sec. 10.20.100. Same—Extra pavement removal required beyond edges of trenches or excavations.
Sec. 10.20.110. Same—With excavated material.
Sec. 10.20.120. Same—Duty of person making excavation.
Sec. 10.20.130. Work to continue without interruption where excavation made on expressways, freeways, arterial streets.
Sec. 10.20.140. Liability of permittee for negligent acts, etc.; city to be saved harmless.
Sec. 10.20.150. Traffic control.
Sec. 10.20.170. Contracting with paving contractor to do work.
Sec. 10.20.180. Warranty of restoration and repairs.
Sec. 10.20.190. Right of city to civil action to recover permit fees.

Sec. 10.20.010. Reserved.

Sec. 10.20.020. Applicability of chapter.

Any excavation shall be subject to the provisions of this chapter unless there is a written agreement otherwise.
(Ord. No. 50-182 § 2, 4-26-16)

Sec. 10.20.030. Permit required.

Except for licensed and bonded contractors holding contracts to do work for the city, it is unlawful for any person to make any excavation in any public place unless such person has first obtained a permit from the city engineer.
(Ord. No. 50-182 § 3, 4-26-16)

Sec. 10.20.040. Persons eligible for permits.

The following persons shall be eligible to secure permits to cut sidewalks or pavements, and to make excavations in the city right-of-way.

(1) *Corporations.* Any municipally operated utility or any corporation having a franchise or agreement to operate in the city;

(2) *Plumbers and drain layers.* Plumbers or master drain layers with the current applicable license and surety bond in the sum of $5,000.00 on file with the city engineer;

(3) *Other persons; bond, etc., required.* Any other person provided that such person shall first file and maintain with the city engineer, a surety bond in the sum of $5,000.00 as hereinafter provided. Such bond shall require the principal to comply with all applicable laws, rules and ordinances. Such bond shall also require the principal will defend and hold the city harmless from any and all damages. Such liability on the part of the principal and surety shall continue until a release has been received from the city as provided in this chapter.

(Ord. No. 50-182 § 4, 4-26-16)

Sec. 10.20.050. Application for permit; fees, issuance.

Permits required by this Chapter may be issued to any municipally operated utility or public utility corporations having a franchise or agreement to operate in the City, upon application and subject to approval by the City Engineer. Such Person will be invoiced by the City with payment due within thirty-six (36) days of the invoice.

Any other eligible Person, other than those expressly excepted in Section 10.20.030, desiring a permit shall first make application to the City

*__Editor's note—__Ord. No. 50-182 §§ 1—20, adopted April 26, 2016, amended chapter 10.20 in its entirety to read as herein set out. Former chapter 10.20 §§ 10.20.010—10.20.150 and §§ 10.20.170—10.20.190 pertained to similar subject matter and derived from Ord. No. 19-440 §§ 1, 2, 4, 5(part), 8; Ord. No. 28-940 §§ 1, 3, 4, 5; Ord. No. 33-011 (part); Ord. No. 33-011 §§ 1, 2, 6—10, 13; Ord. No. 33-103 §§ 2, 4—5; Ord. No. 33-630 (part); Ord. No. 33-631 (part); Ord. No. 34-482 (part); Ord. No. 41-114 § 1; and Ord. No. 45-682 §§ 1—9, 11.

Engineer and shall pay a processing fee per block for cutting a paved surface in City Right of way as listed in Section 10.34.010, plus any repair costs incurred by the City. The City Engineer may require Excavation by trenchless methods.

A surcharge fee is assessed when an Excavation is made in any paved street or alley on which the pavement or resurfaced pavement is less than five (5) years old. The surcharge fee is five (5) percent of the permit fee plus the repair costs for each un-elapsed month, or fraction thereof, of the five (5) year period.

The permit fee, including any applicable surcharge fee, combined with the costs to the City for permanently repairing the pavement cut, constitutes the total permit fee.

A processing fee as listed in Section 10.34.010 shall be required for a permit to excavate in any unpaved City Right of way for the purpose of laying, repairing, or removing any main pipes, underground wires or other conduits. One permit shall be required for each block or portion of a block if the work is done with continuity. For the purpose of connecting, repairing or removing service pipes, underground pipes, underground wires or other conduits, or for any other purpose not specifically mentioned herein, one permit shall be required for each connection unless such connection is made at the time of laying the main.

Permits are nonrefundable and nontransferable.
(Ord. No. 50-182 § 5, 4-26-16; Ord. No. 50-337 § 1, 10-11-16)

Sec. 10.20.055. Refusal of permits and/or penalty for failure to obey rules and regulations.

The city engineer shall refuse permits to contractors who fail or refuse to obey all rules and regulations necessary in the enforcement of this chapter. Any party, with or without a permit, shall be liable for all costs associated with the repair of the excavation, including exploratory excavation, when performed.

A penalty of double the cost of the permit will be charged for failure to obtain a permit prior to the beginning of work that will be performed on city right-of-way.

Any permits not paid within thirty-six days after the date of invoice shall be subject to a penalty equal to the amount of the original permit fee. All such amounts not paid within sixty days shall be subject to a penalty equal to four times the original permit fee. All such amounts not paid within ninety days will be turned over to the permittee's bonding company for the amount due plus four times the original permit fee.

Any costs for a repair of an excavation not paid within thirty-six days after the date of invoice shall be subject to a penalty of ten percent. Any repair costs not paid within sixty days shall be subject to another ten percent penalty. Any amounts owed by the permittee may be offset against any amounts due or payable from the city, including withholding funds of any awarded project to reimburse the city for any outstanding debts. All such amounts not paid within ninety days will be turned over to the permittee's bonding company for the amount due.
(Ord. No. 50-182 § 6, 4-26-16)

Sec. 10.20.060. Manual on uniform traffic control devices; compliance required.

Any person making excavations or performing any other work in public right-of-way shall comply with the latest edition of the "Manual on Uniform Traffic Control Devices," as published by the Federal Highway Administration, United States Department of Transportation.
(Ord. No. 50-182 § 7, 4-26-16)

Sec. 10.20.070. Backfilling—Generally; removal of surplus material.

All excavations where sidewalk or pavement has been cut shall either be backfilled with clean sand, which shall be flushed and vibrated into place, or shall be backfilled with excavated material dampened and thoroughly compacted in

six-inch layers until its density is equal to at least one hundred percent of the density of the adjacent undisturbed soil. For vehicular pavements, the excavation shall be compacted to within eight inches of the surface; for pedestrian pavements, the excavation shall be compacted to the bottom of the final sidewalk. Use of appropriate backfill material, including flowable fill, may be required by the city engineer.

Temporary patches shall have a thickness equal to the full depth of the adjacent pavement and shall be compacted flush with the adjacent surfaces. Within twenty-four hours, all surplus excavated material shall be removed from the location.
(Ord. No. 50-182 § 8, 4-26-16)

Sec. 10.20.080. Reserved.

Sec. 10.20.090. Same—Excavations within four feet of existing or planned pavement, etc.

Any excavation in the right-of-way that is less than four feet from any existing or planned pavement, curb, or sidewalk shall be backfilled and compacted to a density of at least one hundred percent of the adjacent undisturbed soil. Use of appropriate backfill material, including flowable fill, may be required by the city engineer.
(Ord. No. 50-182 § 10, 4-26-16)

Sec. 10.20.100. Same—Extra pavement removal required beyond edges of trenches or excavations.

The pavement repair of all street pavement cuts shall include additional pavement removal for a minimum distance of one foot beyond the edges of the dirt excavation. If such dirt cut is made within four feet of an existing pavement joint or patch, excavation shall extend to such joint or patch. Excavations should not include gutter pavement unless necessary. If gutter pavement is disturbed by actual excavation or from compromise of the subgrade/lateral support as determined by the engineer, such curb shall be replaced. Such excavation of pavement shall be done by use of a pavement saw and only after the previous dirt excavation has been backfilled. The dimensions of a pavement cut, as given on the permit, shall include the extra excavation of pavement beyond the edges of the dirt excavation. All material and workmanship shall conform to specifications on file in the office of the city engineer, including the requirements of full-depth sawing.
(Ord. No. 50-182 § 11, 4-26-16)

Sec. 10.20.110. Same—With excavated material.

All excavations in any used or traveled portion of any unimproved street or alley, except as provided in the preceding section, may be backfilled with the excavated material; provided, that it shall be consolidated by mechanical compactor in six-inch layers to a density no less than one hundred percent of the surrounding undisturbed soil. Surplus material shall be trimmed and removed.
(Ord. No. 50-182 § 12, 4-26-16)

Sec. 10.20.120. Same—Duty of person making excavation.

It shall be the duty of any person making an excavation to maintain all excavations in a safe condition. All excavations shall be marked by the person performing the excavation with a clearly identifiable contact name and telephone number. The person shall confirm the contact name and telephone number are still present at the excavation every five days. Each failure to comply with this section is a misdemeanor, which may be issued directly to any agent of the person performing or having the excavation performed.
(Ord. No. 50-182 § 13, 4-26-16)

Sec. 10.20.130. Work to continue without interruption where excavation made on expressways, freeways, arterial streets.

Any person having a project which requires an excavation in a paved street classified by the city as an expressway, freeway, or arterial street, shall work continuously and diligently, without interruption and without regard for regular hours

of work on the project, until the completion of the same, unless such interruption is approved by the traffic engineer before commencement of the project.
(Ord. No. 50-182 § 14, 4-26-16)

Sec. 10.20.140. Liability of permittee for negligent acts, etc.; city to be saved harmless.

Any person making excavations in the public right-of-way shall at all times be liable for damages concerning the excavation prior to the time the cut is permanently repaired and area restored, as provided for in this chapter. Such person shall defend and hold the city harmless from all suits, claims or judgments for damages growing out of any act of commission or omission on the part of any person performing work under this chapter.
(Ord. No. 50-182 § 15, 4-26-16)

Sec. 10.20.150. Traffic control.

Any person performing work in the right-of-way shall comply with the latest edition of the "Manual on Uniform Traffic Control Devices" until the city's contractor completes permanent repairs.
(Ord. No. 50-182 § 16, 4-26-16)

Sec. 10.20.170. Contracting with paving contractor to do work.

Any Person having a project necessitating an Excavation on any portion of paved City Right of way shall first obtain a pavement cut permit from the City Engineer. Permanent repair of the cut shall be done by the City's contractor under the inspection of the City Engineer, and all material and workmanship will conform to the specifications on file in the office of the City Engineer. The Person making the cuts shall be liable for the cost of repair of such cuts and for maintenance of traffic control as provided in the latest edition of the "Manual on Uniform Traffic Control Devices." The Person will also comply with all applicable provisions of the Americans with Disabilities Act.

The Person making the cut shall also be liable for a period of ten (10) years for the maintenance of the repair, including its complete removal and replacement if the condition of the repair is such, in the opinion of the City Engineer, as to constitute a threat to the integrity or usability of the paved surface.

The City Engineer may require the Person making the cuts to contract with a paving contractor for repair of such cuts. The repair will be under the inspection of the City Engineer and all material and workmanship will conform to the specifications on file in the office of the City Engineer. The Person making the cuts shall be liable for cost of repair of such cuts, the costs of inspection, and responsible for traffic control as provided in the latest edition of the "Manual on Uniform Traffic Control Devices." In no case shall any Person at any time or under any circumstance be allowed to perform any permanent repairs of any type or nature with regard to the repair of an Excavation without the written approval of the City Engineer.
(Ord. No. 50-182 § 17, 4-26-16; Ord. No. 50-337 § 2, 10-11-16)

Sec. 10.20.180. Warranty of restoration and repairs.

Any person performing any dirt cut or pavement cut shall be solely responsible for the performance of the backfill for a period of five or ten years, respectively, including all related costs.
(Ord. No. 50-182 § 18, 4-26-16)

Sec. 10.20.190. Right of city to civil action to recover permit fees.

In addition to the penalty prescribed in Section 1.04.060, the City may recover in a civil action in any court of competent jurisdiction, the amount of the permit fees, late fees, and charges for any damages. No property of such debtor shall be exempt from forced sale under any process of law such indebtedness, except such exemptions as allowed by the Constitution and the laws of this state.
(Ord. No. 50-182 § 19, 4-26-16; Ord. No. 50-337 § 3, 10-11-16)

CHAPTER 10.24. MOVING BUILDINGS*

Sec. 10.24.010. Definitions.
Sec. 10.24.020. Prerequisites to apply for a moving permit.
Sec. 10.24.030. Inspection of building.
Sec. 10.24.040. Approval of route by director of parks.
Sec. 10.24.050. Approval of route by maintenance engineer.
Sec. 10.24.060. Issuance of permit.
Sec. 10.24.070. License required.
Sec. 10.24.075. Licensing authority.
Sec. 10.24.080. Payment of cost of damages.
Sec. 10.24.090. Requirements during movement of building.
Sec. 10.24.095. Falsification of moving permit; invalidation.
Sec. 10.24.100. Duty to halt moving.
Sec. 10.24.110. Building being moved into city halted pending compliance.
Sec. 10.24.120. Use of license to secure permits for another.
Sec. 10.24.130. Private sewers and utilities to be sealed off and/or disconnected; duty of mover.
Sec. 10.24.140. Requirements as to small one-story structures, garages, accessory, structures.
Sec. 10.24.150. Exceptions as to construction offices or cook shacks.
Sec. 10.24.160. Compliance with chapter required.
Sec. 10.24.170. Maximum axle weights, damage.
Sec. 10.24.180. Planks may be placed under wheels.
Sec. 10.24.190. Driving stakes into pavement, etc.
Sec. 10.24.200. Moving over bridges, culverts, and other structures.
Sec. 10.24.210. Report of commencement and completion of moving.
Sec. 10.24.220. Prevention of unnecessary damage to paving.
Sec. 10.24.230. Inspection of route over which building moved; repair of damages.
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Sec. 10.24.260. Lights required from dusk to dawn.
Sec. 10.24.270. Compliance with the manual on uniform traffic control required.
Sec. 10.24.280. Interference with traffic; notice to emergency services; flaggers required.
Sec. 10.24.290. Blocking streets; prohibition.
Sec. 10.24.300. Interference with overhead infrastructure, etc.; notice to person owning or controlling; cost of repair.
Sec. 10.24.310. Compliance with chapter required; penalty.

*__Editor's note—__Ord. No. 50-181 §§ 1—33, adopted April 26, 2016, amended chapter 10.24 in its entirety to read as herein set out. Former chapter 10.24 §§ 10.24.010—10.24.300, pertained to similar subject matter and derived from Ord. No. 15-668 §§ 1, 2, 5—9; Ord. No. 19-152 § 20; Ord. No. 19-963 § 1; Ord. No. 22-815 § 1; Ord. No. 33-580; and Ord. No. 40-057 § 1.

Sec. 10.24.010. Definitions.

As used in this Chapter the following words and phrases shall have the meanings set forth below:

(a) Building. Means any Structure used or intended for supporting or sheltering any use or occupancy that is:

(1) Two hundred (200) square feet or more in floor space;

(2) Thirteen and a half (13.5) feet in loaded height; or

(3) Is not a house trailer as defined in Section 11.04.126.

(b) Moving Contractor. Means a contractor who has been licensed as required by Section 10.24.070 of this Chapter to obtain required permits for the moving of a Building over public streets, alleys, or rights of way.

(c) Moving Permit. Means the permit issued by the City permitting a Building to move over public streets, alleys, or rights of way, as provided in Section 10.24.030.

(d) Person. Means any individual, firm, association, company, partnership, or other legal entity.

(Ord. No. 50-181 § 1, 4-26-16; Ord. No. 50-338 § 1, 10-11-16)

Sec. 10.24.020. Prerequisites to apply for a moving permit.†

Before moving any Building over, along or upon any of the streets, alleys, or rights of way, a moving permit shall be obtained. The following prerequisites shall be required before such moving permit shall be obtained:

(a) File a permit bond with the City Clerk which shall be approved as to form by the City Attorney, in the sum of one hundred thousand (100,000) dollars, which bond shall be signed by a surety company which is authorized to transact business

†__Case law reference—__For case upholding authority of city to require such bond, see *Tandy v. City of Wichita,* 266 P. 930.

in the state. Such bond shall provide for compensation for all damages resulting from the moving of the Building.

(b) Provide a certificate of insurance of at least three hundred thousand (300,000) dollars from a company authorized to provide insurance in the State of Kansas and naming the City as an additional insured. Such insurance shall provide for compensation for all damages resulting from the moving of the Building, including but not limited to costs associated with the removal, cutting or raising of, and the replacement of wires, conduits, pipes or other equipment, all expenses or bills which may be incurred by reason of the damage, removal or relocation of such equipment to allow the passage of such Structure, and all necessary expenses which may be incurred by the Park Department (City of Wichita) in the furnishing of protection to the city trees for the moving of the Structure over, along or upon any streets, alleys, and right of ways of the City.

(c) Agree to indemnify, defend, and hold harmless the City from any and all claims, actions, suits, or demands for damages or injuries to persons or property, regardless of nature or character, resulting from the moving of the Building.

(d) File an application with the Metropolitan Area Building and Construction Department (MABCD), including a fee of one hundred (100) dollars, such application shall include a detailed description of the route for moving the Building, including the starting and ending points of such route, and for any Building being moved from outside the City, a report by a structural engineer licensed in the State of Kansas determining the Structure is safe and suitable to be moved, and including any special requirements necessary for such moving. Upon receipt of the application, the Director of the MABCD, or designee, shall inspect the Building to determine compatibility with the new location if such location is within the City and whether any other changes of any type should be made to such Building before or after moving.

(e) Agree to comply with any special conditions imposed by the Director of the MABCD for the safety and welfare of the public.

(f) Obtain a Building permit for the new location if the Building is to be relocated within the city limits of Wichita. The Building permit shall include any footing/foundation and require the updating of the electrical, plumbing and mechanical systems to the current Wichita/Sedgwick County Unified Building and Trade Code.

(Ord. No. 50-181 § 2, 4-26-16; Ord. No. 50-338 § 2, 10-11-16)

Sec. 10.24.030. Inspection of building.

Every person having complied with the requirements of Section 10.24.020, who desires to move any Building over, along or upon any of the streets, alleys, or rights of way of the City shall, before beginning the removal of such Building, file an application with MABCD for an inspection of the Building to be removed. Upon the filing of such application, such person shall pay a permit/inspection fee of one hundred (100) dollars. MABCD shall then inspect the Building to determine whether or not it is safe to move such Building, and also to determine if any structural changes should be made in such Building before or after moving. If it is unsafe to move such Building, the Director of MABCD, or designee, shall refuse to issue a removal permit, or if it is determined that certain changes are necessary before or after the Building is moved, a condition of the moving permit shall be an agreement that the permitee will comply with such conditions as may be imposed to protect the public. If the permit is denied, the applicant may appeal the Director's denial to the Board of Code Standard and Appeals, by filing a notice of appeal within ten days of the Director's decision.

(Ord. 50-181 § 3, 4-26-16; Ord. No. 50-338 § 3, 10-11-16)

Sec. 10.24.040. Approval of route by director of parks.

The Director of Parks or designee is authorized to require a route consistent with minimal damage to City trees and may require the planting of trees necessary to remediate any damage. The Director of Parks shall provide the moving contractor an estimate of costs for moving, modifying, or otherwise disturbing any existing City trees or related infrastructure.
(Ord. 50-181 § 4, 4-26-16; Ord. No. 50-338 § 4, 10-11-16)

Sec. 10.24.050. Approval of route by maintenance engineer.

Upon approval of the permit by the Director of MABCD, the Maintenance Engineer or designee shall review the proposed route to insure a route consistent with public safety and a minimum amount of damage. The Maintenance Engineer shall provide the moving contractor an estimate of costs for moving, modifying, or otherwise disturbing any existing City facilities. If the initial route proposed is determined by the Maintenance Engineer to not be feasible, the applicant shall be given an opportunity to submit an alternate route for review.
(Ord. 50-181 § 5, 4-26-16; Ord. No. 50-338 § 5, 10-11-16)

Sec. 10.24.060. Issuance of permit.

The moving permit shall be issued after approval has been granted by the Maintenance Engineer, the Director of MABCD and the Parks Director, the moving contractor has obtained a license under this Chapter and the moving contractor's annual license is current and valid.

Denial of the permit may be appealed to the City Council pursuant to the provisions set forth in Section 2.04.235 of the Code of the City of Wichita.
(Ord. 50-181 § 6, 4-26-16; Ord. No. 50-338 § 6, 10-11-16)

Sec. 10.24.070. License required.

It is unlawful for any Person to perform or cause to be performed any work as a moving contractor without first having obtained a moving contractor's license and the appropriate moving permit.
(Ord. 50-181 § 7, 4-26-16; Ord. No. 50-338 § 7, 10-11-16)

Sec. 10.24.075. Licensing authority.

The MABCD shall issue licenses to approved moving contractors as outlined in the Wichita/Sedgwick County Unified Building and Trade Code. Licenses may be revoked or suspended as outlined in the Wichita/Sedgwick County Unified Building and Trade Code. The moving contractor license shall entitle the holder thereof to contract for and perform any act as a moving contractor. The bi-annual license fee for a moving contractor shall be two hundred (200) dollars, which shall be valid for two calendar years and shall not be prorated.
(Ord. No. 50-181 § 8, 4-26-16; Ord. No. 50-338 § 8, 10-11-16)

Sec. 10.24.080. Payment of cost of damages.

The moving contractor shall be responsible for all damages caused by the moving of a Building. Damages to trees, property, infrastructure, or Right-of-Way shall be the responsibility of the moving contractor upon being presented with a statement by the Department of Public Works & Utilities and/or the Park Department, showing the cost of repairing such damage, which shall be paid within ninety (90) days of invoicing.
(Ord. No. 50-181 § 9, 4-26-16; Ord. No. 50-338 § 9, 10-11-16)

Sec. 10.24.090. Requirements during movement of building.

A copy of the moving permit shall accompany the Building being moved at all times and must be presented upon request. The Permittee shall notify emergency services (911) and Kansas One Call, prior to moving the Building.
(Ord. No. 50-181 § 10, 4-26-16; Ord. No. 50-338 § 10, 10-11-16)

Sec. 10.24.095. Falsification of moving permit; invalidation.

Falsification of a moving permit or deviation from any of the permit's conditions shall invalidate the permit.
(Ord. No. 50-181 § 11, 4-26-16)

Sec. 10.24.100. Duty to halt moving.

The City Manager, the Traffic Engineer, the Maintenance Engineer, the Director of Parks, the Director of MABCD, their agents, and any sworn law enforcement officer shall have the duty and power to stop the moving of any Building when a valid permit to move such Building is not presented upon request or when such moving is being done in a dangerous, careless or inefficient manner, likely to lead to serious damage to paving, curb, gutter or any other public Structures, due to a lack of proper equipment for such moving, inexperienced employees, lack of proper supervision, or from any other cause.
(Ord. 50-181 § 12, 4-26-16; Ord. No. 50-338 § 11, 10-11-16)

Sec. 10.24.110. Building being moved into city halted pending compliance.

All buildings being moved into the corporate limits of the city shall be halted outside the city limits until all provisions of this chapter have been satisfied.
(Ord. No. 50-181 § 13, 4-26-16)

Sec. 10.24.120. Use of license to secure permits for another.

No person shall allow another to use another's name or bond in securing permits to move any building.
(Ord. No. 50-181 § 14, 4-26-16)

Sec. 10.24.130. Private sewers and utilities to be sealed off and/or disconnected; duty of mover.

Before any Building is moved, it shall be the responsibility of the mover to ensure and verify all utilities are appropriately and safely disconnected. Sanitary sewer systems serving such Structures or Buildings shall be severed and sealed safely, subject to Section 16.04.020. The seal will be inspected by the Director of MABCD under the procedure established in Section 16.04.360.
(Ord. No. 50-181 § 15, 4-26-16; Ord. No. 50-338 § 12, 10-11-16)

Sec. 10.24.140. Requirements as to small one-story structures, garages, accessory, structures.

Whenever a Structure is moved that does not require a Building permit, the entities involved in moving such Structure, by moving the Structure, agree to indemnify, defend, and hold harmless the City from any and all claims, actions, suits, or demands for damages or injuries to persons or property, regardless of nature or character, resulting from the moving of the Structure. Such moving may require a City and/or State of Kansas oversize or overweight permit.

No permit or bond shall be required for the moving of any small one-story Structures not over thirteen feet (13) high, such as garages or accessory Buildings, when such Structures have less than two hundred (200) square feet of floor area and at least one dimension does not exceed twelve (12) feet. Every person shall before moving any such Structure, notify Sedgwick County Emergency Communications (911). Every person shall, when moving any such Structure, use a reasonable degree of care so that no damage results to any person or property. In case damage to persons or property results from such moving, the City shall not be held liable for any such damage.
(Ord. 50-181 § 16, 4-26-16; Ord. No. 50-338 § 13, 10-11-16)

Sec. 10.24.150. Exceptions as to construction offices or cook shacks.

No moving permit or bond shall be required for the moving of any construction office or cook shack when such Structure is permanently mounted upon a vehicle meeting the require-

ments of Title 11. Every person shall, when moving any such Building or Structure, use a reasonable degree of care so that no damage results to any person or property. In case damage to persons or property results from such moving, the City shall not be held liable for any such damage.
(Ord. No. 50-181 § 17, 4-26-16; Ord. No. 50-338 § 14, 10-11-16)

Sec. 10.24.160. Compliance with chapter required.

Every person, when moving any Structure over, upon or along the streets, alleys, or public right of ways, shall observe the rules and regulations contained in this Chapter.
(Ord. No. 50-338 § 15, 10-11-16)

Sec. 10.24.170. Maximum axle weights, damage.

The requirements of K.S.A. § 9-1911 et seq. shall apply to all vehicles used to move buildings with regards to a maximum axle loading. Loads shall be configured in such a manner as to minimize damage to the streets, gutters, curbs, and other property. Any entity causing damage to any property shall be liable for such damage.
(Ord. No. 50-181 § 19, 4-26-16)

Sec. 10.24.180. Planks may be placed under wheels.

The traffic engineer may specify the use of load-distributing devices when moving any building or structure. In general, such devices shall be at least nominal two-inch by twelve-inch lumber, a minimum of two times the supported tire diameter in length, and free of checks, splits, rough edges, splinters, or warping.
(Ord. No. 50-181 § 20, 4-26-16)

Sec. 10.24.190. Driving stakes into pavement, etc.

In no case shall any person moving any building drive any stake in the pavement. Stakes may be in the right-of-way, but not in such a position as may cause damage.
(Ord. No. 50-181 § 21, 4-26-16)

Sec. 10.24.200. Moving over bridges, culverts, and other structures.

No building shall be moved over any bridge, culvert, or other similar structure without first verifying the load capacity of the structure and obtaining specific written approval from the traffic engineer.
(Ord. No. 50-181 § 22, 4-26-16)

Sec. 10.24.210. Report of commencement and completion of moving.

Prior to moving any building, the mover shall give actual notice to the maintenance engineer and the MABCD of the time the building will be moved. Such notice shall be given during regular office hours. Arrival of the building at its final destination shall also be reported to the maintenance engineer and the MABCD within one business day.
(Ord. No. 50-181 § 23, 4-26-16)

Sec. 10.24.220. Prevention of unnecessary damage to paving.

Every person, when moving any Structure or Building over, along or upon the streets, alleys, or public right of ways of the City, shall use a reasonable degree of care to prevent any unnecessary damage, unless such damage is directed by the Maintenance or Traffic Engineer to expedite moving of the Building or Structure, to any paving, curb, gutter, sidewalk, catch basin or other public Structures.
(Ord. No. 50-338 § 16, 10-11-16)

Sec. 10.24.230. Inspection of route over which building moved; repair of damages.

The route over which a building has been moved shall be inspected by the maintenance engineer within two business days after the building is reported moved. The maintenance engineer shall ascertain what damage, if any, has been done to the paving or other public structures and shall proceed to repair the damage.
(Ord. No. 50-181 § 25, 4-26-16)

Sec. 10.24.240. Restriction as to hours of moving, etc., in certain areas and on certain streets.

No building shall be moved or left standing upon any city street except between the hours of 1:00 a.m. and 6:00 a.m. without written permission of the traffic engineer.
(Ord. No. 50-181 § 26, 4-26-16)

Sec. 10.24.250. Protection of trees; notice to director of parks.

Every Person moving any Building shall use reasonable care to prevent injury to trees. The Person or contractor shall notify the Director of Parks when moving of such Building begins in order that the Director of Parks may take the necessary steps for the protection of trees along the moving route, at the expense of the Person moving the Building.
(Ord. No. 50-181 § 27, 4-26-16; Ord. No. 50-338 § 17, 10-11-16)

Sec. 10.24.260. Lights required from dusk to dawn.

Every Person moving any Building shall keep amber lights on such Building and on the machinery used in moving the Building from dusk to dawn. A sufficient number of amber lights shall be used to make the obstruction safe.
(Ord. No. 50-181 § 28, 4-26-16; Ord. No. 50-338 § 18, 10-11-16)

Sec. 10.24.270. Compliance with the manual on uniform traffic control required.

All requirements of the current edition of the Manual on Uniform Traffic Control Devices regarding temporary traffic control must be followed.
(Ord. No. 50-181 § 29, 4-26-16)

Sec. 10.24.280. Interference with traffic; notice to emergency services; flaggers required.

If, at any time during the moving of any Building or Structure, it is unsafe for vehicles to pass by the Building or Structure or the public welfare is endangered, the Person moving the Building or Structure shall immediately inform Sedgwick County Emergency Communications by calling 911. The Person moving the Building or Structure shall also post flaggers at the intersecting streets ahead and behind of the Building to detour traffic.
(Ord. No. 50-181 § 30, 4-26-16; Ord. No. 50-338 § 19, 10-11-16)

Sec. 10.24.290. Blocking streets; prohibition.

No building shall be left in such a position as to block the entire roadway. Unless it is impossible to do so, a passage of at least ten feet on one side of the building shall be left at all times.
(Ord. No. 50-181 § 31, 4-26-16)

Sec. 10.24.300. Interference with overhead infrastructure, etc.; notice to person owning or controlling; cost of repair.

If any Building will not pass under any overhead infrastructure, including wires, cables, streetlights, signs, or signals, the Person moving such Building shall give at least seventy-two (72) hours' actual notice to the Person owning or controlling the infrastructure of the intention to move such Building and at least eight (8) hours' actual notice of the time of the actual moving of such Building. The Person owning or controlling such infrastructure shall then raise, cut, or remove the same for a reasonable length of time for such Building to pass. Such infrastructure shall then, at the infrastructure's owner's discretion, be repaired and put in as good condition as before the raising, cutting or removal at the expense of the Person moving such Building. The owner of any overhead infrastructure existing lower than specified by this Code or by any other ordinances of the City must reinstall such infrastructure to current code specifications without charge.
(Ord. No. 50-181 § 32, 4-26-16; Ord. No. 50-338 § 20, 10-11-16)

Sec. 10.24.310. Compliance with chapter required; penalty.

Failure to comply with any provision of this Chapter is a misdemeanor punishable by a fine up to five hundred (500) dollars and/or imprisonment up to six (6) months.
(Ord. No. 50-181 § 33, 4-26-16; Ord. No. 50-338 § 21, 10-11-16)

CHAPTER 10.28. SIDEWALK CLEANING

Sec. 10.28.010. Permit required—Bond—Insurance.
Sec. 10.28.020. Use of unmetered water.
Sec. 10.28.030. Application—Approval.
Sec. 10.28.040. Revocation.
Sec. 10.28.050. Hours of operation.
Sec. 10.28.060. Permit fee.
Sec. 10.28.070. Section 11.40.080 inapplicable.

Sec. 10.28.010. Permit required—Bond—Insurance.

Each person engaging in the business of mechanically washing or cleaning sidewalks shall first obtain a revocable permit from the city. Each applicant for a permit shall be required to provide a bond or insurance guaranteeing payment to the city for any and all damages to streets, pavement, sidewalks, curbs, gutters, trees, signs, meters, traffic devices and all other public improvements located on or adjacent to city sidewalks on which the person operates cleaning equipment. The bond or insurance will be in the amount of ten thousand dollars. In addition to the above, each applicant shall carry liability insurance naming the city of Wichita as an additional party insured with a requirement of ten days' advance notice to the city for cancellation of the policy. The policy shall be in the amounts of twenty-five thousand dollars for one person, fifty thousand dollars for one accident or occurrence, five thousand dollars for property damage. The insurance shall provide that the City of Wichita shall be held harmless from any and all claims, actions, suits or demands for damages or injuries to persons or property which may be caused by the operation of cleaning equipment or negligent acts or omissions of any servant, agent or employee of the applicant.
(Ord. No. 29-334 § 1)

Sec. 10.28.020. Use of unmetered water.

Any use of nonmetered city water is prohibited, unless a valid contract with the water department has been negotiated.
(Ord. No. 29-334 § 2)

Sec. 10.28.030. Application—Approval.

Each application for revocable permit will contain a description of the equipment to be used and its gross weight when fully loaded with water or other cleaning solutions. The approval of the city engineer shall be required prior to the issuance of any permit. Approval shall not be given when, in his opinion, the equipment is too heavy for use on city sidewalks.
(Ord. No. 29-334 § 3)

Sec. 10.28.040. Revocation.

Regardless of the issuance of a permit, when, in the opinion of the city engineer, excessive damage is occurring to public property, the permit may be revoked by the engineer, with the right to appeal the revocation to the board of city commissioners.
(Ord. No. 29-334 § 4)

Sec. 10.28.050. Hours of operation.

The operation and use of sidewalk cleaning equipment shall be limited to the hours between eight p.m. and seven a.m., and further, the operator may not operate the equipment, even in the permitted hours, when the sidewalks are heavily congested, and will cease and desist operation of the equipment if advised by the city.
(Ord. No. 29-334 § 5)

Sec. 10.28.060. Permit fee.

The fee for a permit shall be one hundred dollars per year.
(Ord. No. 29-334 § 6)

Sec. 10.28.070. Section 11.40.080 inapplicable.

The provisions of Section 11.40.080 are hereby waived and held not to apply to equipment permitted hereunder.
(Ord. No. 29-334 § 7)

CHAPTER 10.30. SURPLUS REAL ESTATE

Sec. 10.30.010. Purchase and sale of surplus real estate acquired in connection with public purposes.

Sec. 10.30.010. Purchase and sale of surplus real estate acquired in connection with public purposes.

(a) If the city council finds that it is in the public interest, the city may acquire real property for any immediate or future public purpose. Such purchase may, at the city's discretion, include parcels or remnants of parcels when such purchase is beneficial to the city. The city may issue general obligation bonds to finance the cost of such purchase under applicable home rule or statutory authority.

(b) Any conveyance of real property shall be subject to city policies and procedures. Whenever the city has acquired real property, the city may sell such property or any portion of such property. If acquisition of the property was made through tax-exempt financing, the sale of such property may impact the tax-exempt status of the outstanding debt obligations and should be considered prior to sale. Upon sale of said property, the city council shall authorize the mayor to execute a deed conveying said property.

(Ord. No. 38-412 § 1; Ord. No. 50-183 § 1, 4-16-16)

CHAPTER 10.32. RESERVED*

*__Editor's note—__Ord. No. 50-340, adopted Oct. 11, 2016, repealed chapter 10.32, §§ 10.32.010—10.32.160. The former chapter 10.32 pertained to landscaping and parking lot screening and derived from Ord. No. 41-510 §§ 14—18; Ord. No. 42-937 § 2; Ord. No. 43-658 §§ 1, 2; Ord. No. 42-494 §§ 1, 2, 5—8, 10, 11; Ord. No. 50-184 §§ 1—11, 13, adopted April 26, 2016. For similar provisions, the user's attention is directed to chapter 28.06.

CHAPTER 10.34. FEES

Sec. 10.34.010. Permit and license processing charges.
Sec. 10.34.020. Cost of inspections and permitting process.
Sec. 10.34.030. Annual permit fees for non-residential properties—Established.
Sec. 10.34.040. Same—Residential properties—Established.

Sec. 10.34.010. Permit and license processing charges.

In accordance with the provisions of Title 10, permit and license processing charges will be as established in the following table.

Permit or License	*Charge*
Use of right-of-way permit - one time processing charge	$125.00
Use of Easement Permit - one time processing charge	$330.00
Contractor License Exam	$ 70.00
Contractor License Fee (per year)	$ 60.00
Sidewalk permit - 20 feet or fewer (per address)	$ 95.00
Sidewalk permit - more than 20 feet (per address)	$110.00
Overweight Vehicle	$ 55.00
Wheel Chair ramp/Curb Cut/Flumes (per address)	$105.00
Dirt cut permit (per block)	$160.00
Pavement Cut permit (per block)	$105.00
Above Ground Structure Permit (each)	$255.00
Test well (each)	$100.00
Parking meter hood (per day, each)	$ 20.00
Use of street permit—Base Processing Charge (each)	$ 55.00
Use of street permit (per square foot)	$ 0.009
Temporary asphalt/unpaved permit (per address)	$ 60.00
Revisit penalty (per revisit)	$ 50.00

(Ord. No. 50-189 § 1, 4-26-16; Ord. No. 52-006, § 2, 12-27-22)

Sec. 10.34.020. Cost of inspections and permitting process.

The charges in this chapter are intended to offset the actual cost of inspections and the recovery of the costs of the permitting process. Beginning in 2016, the charges in Section 10.34.010 above and in Sections 10.34.030 and 10.34.040 below may be adjusted by applying an increase commensurate with a running average of the Consumer Price Index for all Urban Consumers (CPI-U) for the preceding three years; this charge and the adjustment thereof shall be determined by the city engineer and be adjusted in $5.00 increments except for the use of street permit charges, which shall be adjusted in $0.001 increments.

(Ord. No. 50-189 § 2, 4-26-16; Ord. No. 50-587, § 1, 9-12-17)

Sec. 10.34.030. Annual permit fees for non-residential properties—Established.

In accordance with the provisions of chapter 10.08, annual fees will be as established in the following tables.

Any applicant desiring a use permit, shall, upon approval of application, pay a fee as required by this section. The annual permit fees for use permits shall be as set forth in this section. Except as described in section 10.08.210 (e), the minimum annual permit fee for use permits shall be $25.00.

	Encroachment Description	*Annual Fee*
(1)	At-grade scales for vehicles.	$ 0.65 / square ft.
(2)	Ventilation and other ducts, sidewalk elevators, and similar structures.	$ 0.65 / square ft.
(3)	Bridges, roofs, canopies, and similar structures.	$ 0.30 / square ft.
(4)	Clocks, sculptures, and similar structures.	$25.00 / each
(5)	Fences, walls, retaining walls, and similar structures.	$ 1.00 / linear ft.
(6)	Overhead hoist beams and cranes.	$31.00 / each
(7)	Permanent flag poles and light poles supported by public property, (not permitted in footway).	$25.00 / each
(8)	Fire escapes, steps, docks, loading platforms, or landings.	$12.50 / square ft.
(9)	Tunnels for private use.	$ 0.25 / cubic ft.
(10)	Tanks under public property, including necessary connection pipes and other appurtenances. All tank installations shall be regulated by the international building code, the international fire code, and any applicable city e-zoning ordinances, and any other applicable regulations. No tank installation shall be used for storage of material with a flash point below 37.8ºC (100.0ºF), as listed on the material's MSDS sheet.	$ 0.15 / gallon of capacity
(11)	Manholes, coalholes, vaults or subsurface spaces other than tunnels. The space shall be measured from the private property line to the outside of the wall enclosing the space and from the floor of the space to the traffic surface.	$ 0.05 / cubic ft.
(12)	Car tracks (private, not operated by common carrier).	$ 2.50 / linear ft.
(13)	Pipe lines, wires, or conduits not exceeding five hundred feet in length and two feet in diameter that are not public utilities.	$ 1.50 / linear ft.
(14)	Pipes over two feet in diameter are not permitted except by special permission of the city engineer.	Determined by city engineer
(15)	Pipes exceeding five hundred feet in length.	$ 2.50 / linear ft.
(16)	Use of streets, alleys or other public right-of-way. This section is for any use not categorized including paved parking in the right-of-way.	
	(a)In the area bounded on the south by the centerline of Waterman Street, on the west by the centerline of the Arkansas River, on the north by the centerline of Central Street, and on the east by the centerline of Washington Street.	$ 1.00 / square ft.
	(b)In the remainder of the city the use of the five thousand square feet of land or less.	$ 0.50 / square ft.
	(c)In the remainder of the city, the use of five thousand square feet of land or more is subject to the approval of the city manager.	Determined by city manager
(17)	Use of drainage dedications or easements for purposes such as gardens or fenced-in areas.	$ 0.03 / square ft.
(18)	Wells, either supply or discharge, on public property, including necessary connection pipes and appurtenances.	$25.00 / each
(19)	Bollards.	$ 5.00 / each
(20)	Benches.	$25.00 / each
(21)	Open drainage structures of any type.	$ 0.50 / square ft.
(22)	Any other encroachment, including planters.	$10.00 / square ft.
(23)	"Sandwich board" signs with an area of twelve square feet or less (subject to approval by MABCD).	$25.00 / sign plus MABCD fees

	Encroachment Description	*Annual Fee*
(24)	All other signs, per square foot of sign face (one side only) (subject to approval by MABCD).	$ 1.00 / square ft. plus MABCD fees

(Ord. No. 50-189 § 2, 4-26-16)

Sec. 10.34.040. Same—Residential properties—Established.

Any permittee desiring a use permit for use by a single-family residence shall, upon approval of application, pay a fee as required by this section. The annual permit fees for use permit shall be as set forth in this section. The minimum annual permit fee for use permits shall be $25.00.

	Encroachment Description	*Annual Fee*
(1)	Brick pavers or colored/tinted/stamped/embossed concrete that complies with the requirements of the Americans with Disabilities Act.	$ 0.10 / square ft.
(2)	Fences, walls, retaining walls, and similar structures, provided any such structures are "good neighbor" structures, with the finished side facing the right-of-way or the adjacent property.	$ 0.25 / linear ft.
(3)	Drainage flumes, walkways, or any flatwork other than standard drive approaches or sidewalks that comply with the requirement of the Americans with Disabilities Act.	$ 0.10 / square ft.

(Ord. No. 50-189 § 2, 4-26-16)

CHAPTER 10.36. STREET PERFORMERS

Sec. 10.36.010. Purpose.
Sec. 10.36.020. Definitions.
Sec. 10.36.030. Performance restrictions.
Sec. 10.36.035. Performances requiring a permit.
Sec. 10.36.040. Integration with existing Code.
Sec. 10.36.050. Enforcement.
Sec. 10.36.060. [Exclusion.]
Sec. 10.36.070. Severability.

Sec. 10.36.010. Purpose.

The City Council finds that the existence in the City of street performers provides a public amenity that enhances the character of the City and seeks to encourage such performances in a manner consistent with the overall public interest. The City Council also recognizes that street performers seek to and do draw crowds for their performances. Such crowds can create serious safety problems by inhibiting the ability of pedestrians to move safely on sidewalks and through crosswalks and by impeding the response time of safety personnel. Such crowds can limit access to and egress from businesses and residences. This chapter imposes reasonable time, place, and manner restrictions on street performers engaged in First Amendment expression to the extent necessary to ensure the safety of performers, their audiences and the general public, the orderly movement of traffic, and to prevent unreasonable interference with residents' enjoyment and peace and quiet in their homes, or the ability of businesses to operate and conduct their businesses.
(Ord. No. 46-895, § 1, 3-2-06)

Sec. 10.36.020. Definitions.

For the purposes of this chapter, the following words or phrases shall have the meanings stated:

(a) Charge. To require someone to pay a fee or to set, negotiate or establish a fee for a performance. Seeking voluntary contributions through passing around a hat, leaving open an instrument case or other receptacle, or soliciting donations of any amount after a performance is not a charge.

(b) Entrance. Any point of entry into or egress from to a structure, whether by vehicle or pedestrian; or any point of entry into or egress from a defined, private, outdoor space, such as a permitted under City Code section 10.04.131 and amendments thereto. The entrance shall include the outer edge of all doors, vestibules, driveways and emergency exits.

(c) Handicrafts. Objects made either by hand or with the help of devices used to shape or produce the objects through such methods as weaving, carving, stitching, sewing, lacing, and beading, including, but not limited to, objects such as jewelry, pottery, silver work, leather goods, and trinkets. Handicrafts are not likely to communicate a message, idea, or concept to others, are often mass-produced or produced with limited variation, and often have functional utility apart from any communicative value they might have. Handicrafts do not include visual art.

(d) Perform. To engage in the following activities: playing musical instruments, singing, dancing, acting, pantomiming, puppeteering, acts of illusion, juggling, reciting, creating visual art in its entirety, or similar expressive conduct. "Perform" shall not include: the provision of personal services such as hair weaving or massage; the application of substances to others' skin, including, but not limited to, paints, dyes and inks; the creation of visual art which is mass produced or produced with limited variation or other activity that is primarily the creation handicrafts.

(e) Performer or Street Performer. An individual who performs in a public area, for the purpose of providing public entertainment or who creates visual art in its entirety, or engages in similar expressive conduct for the pleasure of passers-by.

(f) Public Areas. Sidewalks, parks, and all other outdoor, public spaces located in

the City. These areas are described in judicial opinions as traditional public fora.

(g) Residence. Any interior space within a structure that is designed for or actually used as a dwelling, whether or not currently occupied.

(h) Sculpture. A three dimensional work of art which is created through shaping solid material such as wood, stone, clay, plastic or metal by carving, modeling, or similar methods.

(i) Street. The entire width between the curb lines or the lateral lines of a roadway or every way publicly maintained when part thereof is open to the use of the public for purposes of vehicular traffic. As used in this chapter, the word "street" shall include any public road, highway, street, avenue, thoroughfare, trafficway, boulevard, alley, lane and any other public way for vehicular traffic, unless the context clearly indicates otherwise.

(j) Visual Art. Drawings, paintings, and constructions applied to paper, cardboard, canvas, or other similar medium through the use of brush, pastel, crayon, pencil or other similar object, and sculptures.

(Ord. No. 46-895, § 2, 3-2-06; Ord. No. 50-440, § 1, 4-25-17)

Sec. 10.36.030. Performance restrictions.

(a) No performer shall perform:

(1) Within 10 feet of any bus stop, or within the property of the Wichita Transit Center;

(2) Within 10 feet of any marked pedestrian crosswalk or any street corner, including the intersection of any two or more streets;

(3) Within 10 feet of any entrance of any structure during the hours that any business on the premises is open to the public or to persons having or conducting lawful business within those premises.

(4) Within 10 feet of any entrance to any parking lot or parking garage.

(5) Within 10 feet of any entrance to any building that contains one or more residences.

(6) Within 10 feet of any fire hydrant, standpipe connection or fire control sprinkler connection.

(7) Within any area of the Dwight D. Eisenhower National Airport property or Col. James Jabara Airport property designated by the Federal Aviation Agency or Transportation Security Agency as a secured zone. The Director of Airports may place additional, reasonable restrictions on street performers consistent with the non-public forum status of these properties.

(8) Within a street, unless the performer holds a valid parade license for the date and time coinciding with the performance, issued under Chapter 3.14 of this Code, or has written permission to participate in an ongoing parade from the holder of the permit issued under Chapter 3.14 for that parade.

(9) Within 50 feet of the boundaries of an approved community event or within 50 feet of any person participating in an event for which a permit has been issued by the Park and Recreation Department. This restriction shall extend for the duration of the approved or permitted period. This restriction shall not apply if the performer has written permission to perform within the area described in such permits from the approval holder or permit holder.

(10) Within 50 feet of another performer.

(b) A performer and the performer's equipment may not block or obstruct the free and safe movement of pedestrians. No performer shall place any object or position his or her person on a public sidewalk in a manner that causes there to be less than a four-foot width of clear space on that sidewalk for pedestrian passage. If a sufficient crowd gathers to observe a performer such that passage of the public through a public area is blocked or obstructed, a police officer, or

fire or parks official may disperse that portion of the crowd that is blocking or obstructing the passage of the public. Those refusing to disperse may be cited with a violation of Section 5.48.020 or Section 10.04.070 of this Code, as appropriate. If a performer cannot conduct a performance in a location without blocking or obstructing the passage of the public, a police officer or fire or parks official may cause the performer to leave the location or require that the performer relocate his or her equipment, but shall not prevent the performer from occupying another location in compliance with this Chapter.

(c) No performer shall construct, erect, or maintain any stage, platform, or similar elevated structure used to support any portion of a performer's body weight.

(d) No performer shall use any object or engage in any activity in a manner that can cause serious bodily injury to any person.

(e) No performer shall use any generator, storage battery, or any other power source in a manner that poses a fire or public safety hazard.

(f) No performer shall connect or maintain an electrical cord to a City power source without permission from the City Manager or the Manager's designee. It shall be the responsibility of a performer who utilizes any connection of an electrical cord to an adjacent building to ensure that the connection is safe and is maintained in such a manner as to prevent any tripping hazard.

(g) No performer shall litter his or her performance site.

(h) No performer shall use, or prevent the public from using, any public bench, waste receptacle, newspaper vending rack or enclosure, or other street furniture during the performance except for such items that are within the required safety perimeter.

(i) No performer shall attach any object to, or damage any streetlight, traffic light or utility pole, any sign or signposts, any tree, shrub or any landscaping or any statue, fountain or other item of pre-existing public art in a performance or use any such item as a standard, support or holder for any sign.

(j) No minor under the age of 16 shall perform unless the minor is at all times accompanied by a responsible adult 18 years of age or older.

(k) No performer shall perform in a public area between the hours of 11:00 p.m. and 8:00 a.m. Sunday through Thursday and 12:00 midnight and 8:00 a.m. on Friday and Saturday.

(l) No performer shall perform with more instruments, props, equipment, merchandise, or other items than the performer can reasonably transport or remove at one time.

(m) No performer shall place his or her instruments, props, equipment, merchandise, or other items in a public area for more than two hours without performing in accordance with the provisions of this chapter.

(n) No performer shall leave his or her instruments, props, equipment, merchandise, or other items unattended. Unattended items in a public area constitute a public nuisance, and are subject to removal as abandoned property.

(o) No performer shall perform so that any aspect of the performance creates a sound that is in violation of Chapter 7.41 of this Code.

(p) No performer shall block or obstruct a curb cut.

(q) No performer shall engage in unlawful advertising, as defined in Chapter 5.04 of this Code.

(r) No performer shall perform on any bike path without prior approval from the City Manager or the Manager's designee.
(Ord. No. 46-895, § 3, 3-2-06; Ord. No. 50-440, § 2, 4-25-17)

Sec. 10.36.035. Performances requiring a permit.

(a) A performer who performs for a charge or offers merchandise for sale upon public areas shall first obtain a street and sidewalk vending license and be subject to all applicable provisions of Chapter 3.97 of this Code and amendments

thereto, including restrictions pertaining to allowable locations for such vending. A performer who performs without charge, and does not offer merchandise for sale, shall not be required to obtain a street and sidewalk vending license. A performer may solicit voluntary contributions after a performance, and may receive them in any receptacle. A donation of a suggested amount solicited after a performance shall be considered a voluntary contribution.

(b) No performer shall use any torch, flame or caustic or flammable substances without having first obtained the required permit from the Wichita Fire Department.
(Ord. No. 50-440, § 3, 4-25-17)

Sec. 10.36.040. Integration with existing Code.

Any performer in compliance with the performance restrictions of this chapter shall not be deemed guilty of loitering under Chapter 5.48 of this Code nor guilty of soliciting in a park, under Section 9.04.060 of this Code, nor shall such performer be required to obtain a permit under Sections 9.04.030, 9.04.070, or 9.04.080 of this Code.
(Ord. No. 46-895, § 4, 3-2-06; Ord. No. 50-440, § 4, 4-25-17)

Sec. 10.36.050. Enforcement.

(a) Any person who is convicted of violating any of the performance restrictions or of failing to obtain any of the permits imposed or required by this chapter shall be guilty of a misdemeanor, which shall be punishable as follows:

(1) For a first offense, by a fine not less than $100, nor more than $250, or imprisonment for a definite term which shall not exceed thirty (30) days, or by both such fine and imprisonment;

(2) For a second offense, by a fine not less than $250, nor more than $500, or imprisonment for a definite term which shall not exceed three (3) months, or by both such fine and imprisonment;

(3) For a third and subsequent offense, by a fine of not less than $500, nor more than $1,000, or imprisonment for a definite term which shall not exceed six (6) months, or by both such fine and imprisonment.

(b) In addition to the penalties previously described in this section, the City may seek an injunction against any performer through civil action in any court of competent jurisdiction to enjoin further violations of the performance restrictions described in this chapter, or to enjoin street performance by a given performer entirely.
(Ord. No. 46-895, § 4, 3-2-06; Ord. No. 50-440, § 5, 4-25-17)

Sec. 10.36.060. [Exclusion.]

Except as otherwise provided in this Chapter, no public area shall be excluded from performances except by: (1) action of the City Council, or (2) by decision of the Chief of Police or his designee in the case of a public safety emergency, which decision shall be effective immediately for up to 7 consecutive days on up to two instances annually.
(Ord. No. 46-895, § 6, 3-2-06)

Sec. 10.36.070. Severability.

If any provision in this chapter shall be deemed to be unconstitutional or otherwise invalid, the validity of the remaining provisions within this chapter shall not be affected.
(Ord. No. 46-895, § 7, 3-2-06)

Title 11

TRAFFIC*

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***Case law reference—**For case relative to an ordinance requiring the operator of a vehicle which approached an intersection to yield the right-of-way to a vehicle which had first entered the intersection and providing that when two vehicles entered the intersection at the same time, the operator of the vehicle on the left should yield the right-of-way to the vehicle on the right, see *Jones v. McCullough,* 83 P. (2d) 669.

Case law reference—Case relative to city ordinance restricting speed, see *Order of United Commercial Travelers v. Tripp,* 63 Fed. (2d) 37.

Cross reference—As to taxicabs and other vehicles for hire, see Chapters 3.84, 3.88 and 3.92. As to trailers and trailer camps, see Chapter 26.04. As to placing of advertising matter in or upon vehicles, see § 3.66.080. As to vehicles used in collection of rubbish and trash, see Chapter 7.08. As to licenses for automobile wrecking establishments, see Chapter 3.48. As to transportation of liquor in open containers in vehicles, see § 4.04.030. As to consumption of alcoholic liquor within vehicles, see § 4.04.040. As to purchasing, wrecking and selling secondhand automobiles, see Chapter 3.48. As to breaking curbs or sidewalks by driving trucks over them, see § 10.04.050

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CHAPTER 11.04. DEFINITIONS*

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*__Note—__Ordinance history; Ord. No. 29-319 §§ 1, 10—14, Ord. No. 30-982 § 1.

Sec. 11.04.005. Generally.

The following words and phrases when used in this title shall, for the purpose of this title and

other traffic ordinances, have the meanings respectively ascribed to them in this chapter except when the context otherwise requires.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.007. All-terrain vehicle defined.

"All-terrain vehicle" means any motorized nonhighway vehicle 55 inches or less in width measured from the outside of one tire rim to the outside of the other tire rim, having a dry weight of 1,500 pounds or less and traveling on three or more nonhighway tires and having a seat designed to be straddled by the operator. As used in this section, "nonhighway tire" means any pneumatic tire six inches or more in width, designed for use on wheels with a rim diameter of 14 inches or less.
(Ord. No. 50-861, § 1, 9-25-18; Ord. No. 52-633, § 1, 3-25-25)

Sec. 11.04.010. Alley.

"Alley" means access to the rear or side lots or buildings in urban districts and not intended for the purpose of through vehicular traffic.
(Ord. No. 39-080 (part))

Sec. 11.04.012. Arterial street.

"Arterial street" means any U. S. or state numbered route, controlled access highway or other major radial or circumferential street or highway designated by local authorities within their respective jurisdictions as part of a major arterial system of streets or highways. (See Section 11.96.100 for a listing of arterial streets)
(Ord. No. 37-322 § 1)

Sec. 11.04.015. Authorized emergency vehicles.

"Authorized emergency vehicle" means such fire department vehicles, police vehicles and ambulances as are publicly owned and such other publicly owned vehicles as are designated by the Secretary of Transportation pursuant to K.S.A. 8-2010.
(Ord. No. 30-080 (part))

Sec. 11.04.020. Bicycle.

"Bicycle" means every vehicle propelled by human power upon which any person may ride having two or more wheels, any of which is more than twenty inches in diameter.
(Ord. No. 30-080 (part))

Sec. 11.04.025. Bus.

"Bus" means every motor vehicle designed for carrying more than ten passengers and used for the transportation of persons; and every motor vehicle, other than a taxicab, designed and used for the transportation of persons for compensation.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.030. Business district.

"Business district" means the territory contiguous to and including a highway when within any six hundred feet along such highway there are buildings in use for business or industrial purposes, including but not limited to hotels, banks, or office buildings, railroad stations and public buildings which occupy at least three hundred feet of frontage on one side or three hundred feet collectively on both sides of the highway.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.035. Bus loading zones.

"Bus loading zones" mean portions of streets described, designated and established by the traffic engineer as zones to be used exclusively for the expeditious loading and unloading of passengers into or from busses.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.040. Chauffeur.

"Chauffeur" means every person who is employed by another for the principal purpose of driving a motor vehicle and every person who drives a school bus transporting school children or any motor vehicle when in use for the transportation of persons or property for compensation.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.045. Chief of police.

"Chief of police" means the chief of police of the city, or any member of the police department of the city designated by the chief of police to act in his place.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.050. City manager.

"City manager" means the city manager of the city or any member of any department of the city designated by the city manager to act in his place and stead in carrying out the provisions of this title.
(Ord. No. 39-080; (part))

Sec. 11.04.055. Commission, Secretary, Department.

(a) "Commission" means the Secretary of Transportation;

(b) "Secretary" means the Secretary of Transportation;

(c) "Department" means the Department of Transportation.
(Ord. No. 39-080 (part))

Sec. 11.04.057. Community service officer.

"Community Service Officer" means an individual designated by the Chief of Police who is authorized to enforce the provisions of Title 11, direct traffic and impound vehicles.
(Ord. No. 50-948, § 1, 3-19-19)

Sec. 11.04.060. Congested area or district.

Congested area means all streets and portions of streets, excluding alleys, within the area described as follows: All the area bounded Central on the north including all property abutting Central on the north, Washington Street on the east, including all property abutting Washington to the east, the Arkansas River on the west, including all property abutting the Arkansas River on the west and Kellogg Drive on the south, including all property abutting Kellogg Drive on the south.
(Ord. No. 40-853 § 1; Ord. No. 50-642, § 1, 12-19-17)

Sec. 11.04.065. Controlled access highway.

"Controlled access highway" means every highway, street or roadway in respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the same except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.070. Crosswalk.

"Crosswalk" means:

(a) That portion of a roadway at an intersection included within the connections of the lateral lines of sidewalks on opposite sides of the highway measured from the curbs, or, in the absence of curbs, from the edges of the traversable roadway;

(b) Any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.080. Diagonal parking.

"Diagonal parking" means the standing or parking of a motor vehicle on a public street or municipal parking lot with the long axis of the vehicle extending away from the street, curb, roadway edge or municipal parking lot curb at an angle and the front of the vehicle next to the curb.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.082. Divided highway.

"Divided highway" means a highway divided into two or more roadways by leaving an intervening space or by a physical barrier or by a clearly indicated dividing section so constructed as to impede vehicular traffic.
(Ord. No. 39-080 (part))

Sec. 11.04.083. Dockless electric-assisted scooter sharing system.

Dockless Electric-Assisted Scooter Sharing System means an electric-assisted scooter share

program in which companies distribute electric-assisted scooters throughout a city to be rented per trip. These scooters can be locked at any lawful location and not at a set location. Scooters are tracked via GPS and can be located by users.
(Ord. No. 51-049, § 4, 6-18-19)

Sec. 11.04.085. Double parking.

"Double parking" means the standing or stopping of a vehicle in the line of traffic and (a) to the rear of a vehicle angle parked, or to the rear of a space where a vehicle may be parked at any angle to the curb or edge of the roadway, or (b) to the roadway side of a vehicle parked parallel with the curb or edge of the roadway or the roadway side of the space in which a vehicle may be parked parallel to the curb or edge of the roadway.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.087. Drag race.

"Drag Race" is defined as the operation of two or more vehicles from a point side by side at accelerating speeds in a competitive attempt to outdistance each other, or the operation of one or more vehicles over a common selected course, from the same point to the same point, for the purpose of comparing the relative speeds or power of acceleration of such vehicle or vehicles within a certain distance or time limit.
(Ord. No. 51-640, § 1, 9-28-21)

Sec. 11.04.090. Driver.

"Driver" means every person who drives or is in actual physical control of a vehicle.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.092. Driveway-towaway operation.

"Driveway-towaway operation" means any operation in which any motor vehicle, trailer or semitrailer, singly or in combination, new or used, constitutes the commodity being transported, when one set or more of wheels of any such vehicle are on the roadway during the course of transportation, whether or not any such vehicle furnishes the motive power.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.093. Electric-assisted scooter.

Electric-assisted scooter means a self-propelled vehicle which is part of a Dockless Electric-Assisted Scooter Sharing System that has at least two wheels in contact with the ground, an electric motor, handlebars, a brake and a deck that is designed to be stood upon by the user when riding. Electric-assisted scooter does not include a vehicle that is powered by gasoline; or a motorized skateboard as defined by this Title.
(Ord. No. 51-049, § 5, 6-18-19)

Sec. 11.04.095. Entrance to public or private driveway or roadway.

"Entrance to public or private driveway or roadway" means that portion of the driveway or roadway lying between the curb line or lateral lines of a roadway and the adjacent property line.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.097. Essential parts.

"Essential parts" means all integral and body parts of a vehicle of a type required to be registered hereunder, the removal, alteration or substitution of which would tend to conceal the identity of the vehicle or substantially alter its appearance, model, type or mode of operation.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.100. Exhibition of speed or acceleration.

"Exhibition of speed or acceleration" is defined as those acts which cause or create unnecessary rapid acceleration, unnecessary tire squeal, skid, smoke, or slide upon acceleration or stopping including the casting of tread, gravel, dirt or other road surface materials from the tires; acts that simulate a temporary race; acts that cause the vehicle to unnecessarily turn abruptly, sway or lose traction with the road surface, acts that include driving a vehicle at a higher rate of speed than other vehicles in the same position and abruptly cutting in and out of such slower traffic. Exhibition of speed includes motorcycle stunting such as standing on the seat while the motorcycle

is in motion and lifting the front wheel from the ground as the vehicle is in motion, also known as wheelies.
(Ord. No. 51-640, § 2, 9-28-21)

Sec. 11.04.105. Farm tractor.

"Farm tractor" means every motor vehicle designated and used primarily as a farm implement power unit operated with or without other attached farm implements in any manner consistent with the structural design of such power unit.
(Ord. No. 44-851 § 1)

Sec. 11.04.112. Foreign vehicle.

"Foreign vehicle" means every vehicle of a type required to be registered hereunder brought into this state from another state, territory or country other than in the ordinary course of business by or through a manufacturer or dealer and not registered in this state.
(Ord. No. 39-080 (part))

Sec. 11.04.115. Frontage road.

"Frontage road" means a highway, road or street which is auxiliary to and located on the side of another highway, road or street which is auxiliary to abutting property and adjacent areas and for control of access to another highway, road or street.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.117. Golf cart defined.

"Golf Cart" means a motor vehicle that has not less than three wheels in contact with the ground, an unladen weight of not more than 1,800 pounds, is designed to be and is operated at not more than 25 miles per hour and is designed to carry not more than four persons, including the driver. Such term shall not include All-Terrain Vehicles "ATV" as defined by Section 11.04.007 or K.S.A. 8-1402a, Micro Trucks as defined by Section 11.04.157 or K.S.A. 8-1494 or Work-site Utility Vehicle "UTV" as defined by Section 11.04.405 or K.S.A. 8-1493.
(Ord. No. 52-633, § 2, 3-25-25)

Sec. 11.04.120. Governing body.

"Governing body" means the board of city commissioners of the City of Wichita.
(Ord. No. 39-080 (part))

Sec. 11.04.125. Gross weight.

"Gross weight" means the weight of a vehicle without load, plus the weight of any load thereon.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.126. House trailer.

"House trailer" means:

(a) A trailer or semitrailer which is designed, constructed and equipped as a dwelling place, living abode or sleeping place, either permanently or temporarily, and is equipped for use as a conveyance on streets and highways; or

(b) A trailer or a semitrailer whose chassis and exterior shell is designed and constructed for use as a house trailer, as defined in paragraph (a), but which is used instead permanently or temporarily for the advertising, sales, display or promotion of merchandise or services, or for any other commercial purpose except the transportation of property for hire or the transportation of property for distribution by a private carrier.

(Ord. No. 31-232 § 1 (part))

Sec. 11.04.127. Identifying numbers.

"Identifying numbers" means the numbers, and letters if any, of a vehicle designated by the Division of Motor Vehicles for the purpose of identifying the vehicle.
(Ord. No. 39-080 (part))

Sec. 11.04.130. Implement of husbandry.

"Implement of husbandry" means every vehicle designed or adapted and used exclusively for agricultural operations and only incidentally moved or operated upon the highways. Such term shall include, but not be limited to, a fertilizer spreader, except as otherwise provided in this section, or any "nurse tank" used in connection therewith, regardless of ownership.

A truck-mounted fertilizer spreader used or manufactured principally to spread animal dung is not an implement of husbandry for the purpose of this chapter.
(Ord. No. 39-080 (part))

Sec. 11.04.135. Intersection.

"Intersection" means:

(a) The area embraced within the prolongation or connection of the lateral curb lines, or if none, then the lateral boundary lines of the roadways of two highways which join one another at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict;

(b) Where a highway includes two roadways thirty feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. In the event such intersecting highway also includes two roadways thirty feet or more apart, then every crossing of two roadways of such highways shall be regarded as a separate intersection.

(Ord. No. 31-232 § 1 (part))

Sec. 11.04.140. Laned roadway.

"Laned roadway" means a roadway which is divided into two or more clearly marked lanes for vehicular traffic.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.145. License collector.

"License collector" means the treasurer of the city or any other person designated to act in his stead.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.150. Loading zone.

"Loading zone" means portions of streets described, designated and established by the traffic engineer as zones to be used exclusively for the expeditious loading and unloading of passengers or merchandise into or from a motor vehicle.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.152. Mail.

"Mail" means to deposit in the United States mail properly addressed and with postage prepaid.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.155. Metal tire.

"Metal tire" means every tire the surface of which, in contact with the highway, is wholly or partly of metal or other hard nonresilient material.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.157. Micro utility truck defined.

"Micro utility truck" means any motor vehicle which is not less than 48 inches in width, has an overall length, including the bumper, of not more than 160 inches, has an unladen weight, including fuel and fluids, of more than 1,500 pounds, can exceed 40 miles per hour as originally manufactured and is manufactured with a metal cab. "Micro utility truck" does not include a work-site utility vehicle.
(Ord. No. 52-633, § 3, 3-25-25)

Sec. 11.04.160. Motorcycle.

"Motorcycle" means every motor vehicle having a seat or saddle for use of the rider and designed to travel on not more than three wheels in contact with the ground, but excluding a tractor.
(Ord. No. 31-231 § 1 (part))

Sec. 11.04.165. Motor-driven cycle.

"Motor-driven cycle" means every motorcycle, including every motor scooter or moped, with a motor which produces not to exceed five brake horsepower, and every bicycle with a motor attached.
(Ord. No. 39-080 (part))

Sec. 11.04.170. Motor vehicle.

"Motor vehicle" means every vehicle which is self-propelled and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.172. Motorized bicycle defined.

"Motorized bicycle" means every device having two tandem wheels or three wheels which may be propelled by either human power or helper motor, or by both, and which has:

(a) A motor which produces not more than 3.5 brake horsepower;

(b) a cylinder capacity of not more than 130 cubic centimeters;

(c) an automatic transmission; and

(d) the capability of a maximum design speed of no more than 30 miles per hour except a low power cycle.

(Ord. No. 50-861, § 2, 9-25-18)

Sec. 11.04.175. Municipal judge.

"Municipal judge" means the judge of the municipal court of the city.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.180. Nonresident.

"Nonresident" means every person who is not a resident of the city.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.185. No parking zones.

"No parking zones" mean portions of highways described, designated and established by the traffic engineer as zones within which parking is prohibited at all times.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.190. Official time standard.

Whenever certain hours are specified, they mean standard time or daylight savings time as may be in current use in this city.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.191. Official traffic control devices.

"Official traffic control devices" mean all signs, signals, markings and devices not inconsistent with this ordinance, placed or erected by authority of a public body or official having jurisdiction for the purpose of regulating, warning or guiding traffic; or for the purpose of regulating parking.
(Ord. No. 39-080 (part); Ord. No. 52-326, § 1, 1-9-24)

Sec. 11.04.195. Operator.

"Operator" means every person, other than a chauffeur, who drives or is in actual physical control of a motor vehicle upon a highway or who is exercising control over or steering a vehicle being towed by a motor vehicle.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.200. Owner.

"Owner" means a person who holds the legal title of a vehicle, or in the event a vehicle is the subject of an agreement for the conditional sale or lease thereof with the right of purchase upon performance of the conditions stated in the agreement, and with an immediate right of possession vested in the conditional vendee or lessee, or in the event a mortgagor of a vehicle is entitled to possession, then such conditional vendee or lessee or mortgagor shall be deemed the owner for the purpose of this title.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.205. Parallel parking.

"Parallel parking" means:

(a) On streets with curbs, the standing or parking of a motor vehicle, viewed from the rear, with the right hand wheels thereof parallel and within twelve inches of the right hand curb or roadway edge, subject to exceptions permitting left side parallel parking as hereinafter provided;

(b) On streets without curbs, the standing or parking of a motor vehicle, viewed from the rear, with the right hand wheels thereof parallel with the right edge of the

roadway and so that at least twenty feet of the width of the roadway remains for the free movement of vehicular traffic.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.210. Parking zone—Regulated.

"Parking zone-regulated" means all portions of a street or municipal parking lot described, designated and established by the City Council as zones within which the parking of motor vehicles shall be controlled and regulated with the aid of one or more timing devices, gates or meters herein collectively referred to as parking meters. The City Council delegates designation of regulated parking zones to the City Traffic Engineer pursuant to Section 11.52.010.
(Ord. No. 31-232 § 1 (part); Ord. No. 52-326, § 2, 1-9-24)

Editor's note—Ord. No. 52-326, § 2, adopted Jan. 9, 2024, amended the title of § 11.04.210 to read as herein set out. The former § 11.04.210 title pertained to parking meter zone.

Sec. 11.04.215. Park or parking.

"Park" or "parking" means the standing of a vehicle, whether occupied or not.
(Ord. No. 39-080 (part))

Sec. 11.04.217. Passenger car.

"Passenger car" means every motor vehicle, except motorcycles and motor-driven cycles, designed for carrying ten passengers or less and used for the transportation of persons.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.220. Pass, passing.

"Pass" and "passing" means the movement of a vehicle when it overtakes and proceeds past another vehicle moving in the same direction in the same lane or a parallel lane.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.225. Pedestrian.

"Pedestrian" means any person afoot.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.240. Pneumatic tire.

"Pneumatic tire" means every tire in which compressed air is designed to support the load.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.245. Pole trailer.

"Pole trailer" means any two-wheel vehicle used as a trailer with bolsters that support the load, and do not have a rack or body extending to the tractor drawing the load.
(Ord. No. 44-851 § 2)

Sec. 11.04.250. Police officer.

"Police officer" means every law enforcement officer authorized to direct or regulate traffic or make arrests for violations of traffic regulations.
(Ord. No. 39-080 (part))

Sec. 11.04.255. Private road or driveway.

"Private road or driveway" means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.257. Public right-of-way.

"Public right-of-way" means the entire width of the area from property line to property line including that area between the roadway and the abutting private property line.
(Ord. No. 41-522 § 1)

Sec. 11.04.259. Racing.

Racing is defined as the use of one or more vehicles in an attempt to outgain, outdistance or prevent another vehicle from passing, to arrive at a given destination ahead of another vehicle or vehicles, or to test the physical stamina or endurance of drivers over long distance driving routes.
(Ord. No. 51-640, § 3, 9-28-21)

Sec. 11.04.260. Railroad.

"Railroad" means a carrier of persons or property upon cars operated upon stationary rails.
(Ord. No. 39-080 (part))

Sec. 11.04.265. Railroad sign or signal.

"Railroad sign or signal" means any sign, signal or device erected by authority of a public body or official or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.270. Railroad train.

"Railroad train" means a steam engine, electric or other motor with or without cars coupled thereto, operated upon rails.
(Ord. No. 39-080 (part))

Sec. 11.04.271. Recreational vehicle.

"Recreational vehicle" means a vehicular-type unit built on or for use on a chassis and designed primarily as living quarters for recreational, camping, vacation or travel use and which has its own motive power and which has a body width not exceeding one hundred two inches and a boy length not exceeding forty-five feet. "Recreational vehicle" shall include converted buses, motor homes, and house boats.
(Ord. No. 44-851 § 3)

Sec. 11.04.272. Registration.

"Registration" means the registration certificate or certificates and registration plates issued under the laws of this state pertaining to the registration of vehicles.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.273. Required front yard.

"Required front yard" means either the platted front yard or the area between the innermost portion of a sidewalk or front property line and the face of a dwelling structure with a minimum distance of twenty-five feet and a maximum distance of thirty-five feet.
(Ord. No. 41-522 § 2)

Sec. 11.04.274. Required side yard.

"Required side yard" means either the platted side yard or a minimum six-foot area on a comer lot adjacent to the street right-of-way in the AA, A, RB, R5 and R6 residential districts or the platted or minimum five-foot area in B residential district.
(Ord. No. 41-522 § 3)

Sec. 11.04.275. Residence district.

"Residence district" means the territory contiguous to and including a highway not comprising a business district when the property on such highway for a distance of three hundred feet or more is in the main improved with residences or residences and buildings in use for business.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.280. Right-of-way.

"Right-of-way" means the right of one vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed and proximity as to give rise to danger of collision unless one grants precedence to the other.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.285. Road tractor.

"Road tractor" means every motor vehicle designed and used for drawing other vehicles and not so constructed as to carry any load thereon either independently or any part of the weight of a vehicle or load so drawn.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.290. Roadway.

"Roadway" means the portion of a highway improved, designed or ordinarily used for vehicular travel, exclusive of the berm or shoulder. In the event a highway includes two or more separate roadways, the term "roadway" as used herein shall refer to any such roadway separately, but not to all such roadways collectively.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.300. School bus.

"School bus" means every motor vehicle owned by a public or governmental agency and operated for the transportation of children to or from school, or to and from activities, or privately owned and operated for compensation for such transportation of children. The term "activities" as used herein mean school activities and contests in the field of athletics, music, forensics, dramatic and any other interschool extracurricular activities by pupils enrolled in any of the grades from seven to twelve, inclusive.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.305. School crossing.

"School crossing" means a crosswalk which is clearly marked by transverse lines across a roadway and is authorized by school children on their route to and from school. All school crossings are equipped with school crossing symbol signs and school advance symbol signs.
(Ord. No. 32-279 (part); Ord. No. 31-232 § 1 (part))

Sec. 11.04.310. School zone.

"School zone" means that roadway or portion thereof customarily used by students of a public or private school and which has been set aside and designated by the erection of plainly visible symbol signs indicating the extent of such zone.
(Ord. No. 36-285 (part))

Sec. 11.04.312. School speed zone.

"School speed zone" means that roadway or portion thereof customarily used by students of a public elementary or private elementary school which has been set aside and designated by:

(1) The erection of signs indicating reduced school speed limits; or

(2) Traffic signal devices having two alternating flashing yellow lenses, herein referred to as speed limit sign beacons; or

(3) Two-section yellow and red traffic signal which dwells in flashing yellow until activated, then changes to steady yellow followed by steady red with an advance sign indicating "school speed limit 20 when signal is operating."

(Ord. No. 36-285 (part))

Sec. 11.04.315. Semitrailer.

"Semitrailer" means every vehicle of the trailer type so designed and used in conjunction with a motor vehicle that some part of its weight and that of its load rests upon or is carried by another vehicle.
(Ord. No. 44-851 § 4)

Sec. 11.04.317. Sideshow.

"Sideshow" is defined as an informal demonstration of automotive stunts. Common activities at sideshows include doughnuts and ghost riding. The latter involves driving a car, opening the door and climbing out, sometimes onto the hood, sometimes standing or dancing next to the car while the car continues to roll.
(Ord. No. 51-640, § 4, 9-28-21)

Sec. 11.04.320. Sidewalk or sidewalk area.

"Sidewalk" or "sidewalk area" means that portion of a street between the curb lines, or the lateral lines of a roadway, and the adjacent property line, intended for use by pedestrians. Such area includes both any paved sidewalk and any unpaved area between the lateral lines of a roadway and the adjacent property line.
(Ord. No. 41-522 § 4)

Sec. 11.04.322. Skateboard.

"Skateboard" means a device for riding upon, either for sport or transportation, which is propelled by human power, consisting of an oblong piece of wood or other rigid material mounted upon wheels or rollers, but excluding wagons, scooters, strollers, carts and toy vehicles.
(Ord. No. 41-230 § 1)

Sec. 11.04.325. Reserved.
(Ord. No. 50-896, § 10, 11-27-18)

Sec. 11.04.330. Specially constructed vehicle.

"Specially constructed vehicle" means any vehicle which was not originally constructed under a distinctive name, make, model or type, or which, as originally otherwise constructed, has been materially altered by the removal of essential parts or by addition or substitution of essential parts, new or used, derived from other vehicles or makes of vehicles.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.332. Spectate.

"Spectate" means being present at an illegal motor vehicle speed contest, sideshow, motorcycle stunting or exhibition of speed, or at a location where preparations are being made for such activities, for the purpose of viewing, observing, watching, or witnessing the event as it progresses. Spectator includes any individual at the location of the event without regard to whether the individual arrived at the event by driving a vehicle, riding as a passenger in a vehicle, walking, or arriving by some other means. Unintentional witnesses or passersby to such events are not considered spectators, as a spectator is one who attends an event for the purpose of viewing it.
(Ord. No. 51-640, § 5, 9-28-21)

Sec. 11.04.335. Stand or standing.

"Stand" or "standing" means the halting of a vehicle, whether occupied or not.
(Ord. No. 39-080 (part))

Sec. 11.04.340. State.

"State" means the State of Kansas.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.345. Stop—Required.

"Stop" when required means complete cessation from movement.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.350. Stop or stopping—Prohibited.

"Stop" or "stopping" when prohibited means any halting even momentarily of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic control sign or signal.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.355. Street or highway.

"Street" or "highway" means the entire width between property lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic. Where the word "highway" or the word "street" is used in this title, it means street, avenue, boulevard, thoroughfare, trafficway, alley and any other public way for vehicular travel by whatever name unless the context clearly indicates otherwise.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.360. Taxicab stands.

"Taxicab stands" means portions of streets described, designated and established by the traffic engineer as zones used exclusively by taxicabs for the purpose of loading and unloading passengers.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.365. Through traffic.

"Through traffic" means vehicular traffic passing through a section of roadway without an origin or destination within such section of roadway or such that the origin or destination cannot be practicably accessed by another route.
(Ord. No. 39-080 (part); Ord. No. 50-896, § 1, 11-27-18)

Editor's note—Ord. No. 50-896, § 1, adopted Nov. 27, 2018, changed the title of § 11.04.365 from through highway to through traffic.

Sec. 11.04.370. Traffic.

"Traffic" means pedestrians, ridden or herded animals, vehicles and other conveyances either singly or together, while using any highway for purposes of travel.
(Ord. No. 39-080 (part))

Sec. 11.04.375. Traffic engineer, city.

"City traffic engineer" means the traffic engineer of the city, and any member of the traffic engineering division of the department of operations and maintenance designated by the city traffic engineer to act in his place and stead in carrying out this title.
(Ord. No. 39-080 (part))

Sec. 11.04.380. Trailer.

"Trailer" means every vehicle without motive power, designed for carrying persons or property wholly on its own structure and to be drawn by a motor vehicle.
(Ord. No. 44-851 § 5)

Sec. 11.04.385. Truck.

"Truck" means any vehicle with a gross vehicle weight rating (GVWR) of over fourteen thousand pounds (14,000 lbs.) or any vehicle required to register as a Commercial Motor Vehicle under State Law.
(Ord. No. 44-851 § 6; Ord. No. 50-896, § 2, 11-27-18)

Sec. 11.04.390. Truck loading zones.

"Truck loading zones" means portions of streets described, designated and established by the traffic engineer as zones to be used for the expeditious loading and unloading of merchandise during certain designated hours into or from trucks.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.395. Truck tractor.

"Truck tractor" means every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of the vehicle and load so drawn.
(Ord. No. 31-232 § 1 (part))

Sec. 11.04.400. Vehicle.

"Vehicle" means every device in, upon or by which any person or property is or may be transported or drawn upon a highway, except electric personal assistive mobility device or devices moved by human power or used exclusively upon stationary rails or tracks.
(Ord. No. 39-080 (part); Ord. No. 50-317 § 1, 9-13-16)

Sec. 11.04.405. Work-site utility vehicle defined.

"Work-Site Utility Vehicle" or "UTV" means any motor vehicle which is not less than 48 inches in width, has an unladen weight, including fuel and fluids, of more than 800 pounds and is equipped with four or more nonhighway tires, a steering wheel and bench or bucket-type seating allowing at least two people to sit side-by-side, and may be equipped with a bed or cargo box for hauling materials. "Work-site utility vehicle" does not include a micro utility truck.
(Ord. No. 52-633, § 4, 3-25-25)

CHAPTER 11.08. RESERVED*

*__Editor's note—__Ord. No. 50-948, § 6, adopted Mar. 19, 2019, repealed Ch. 11.08, §§ 11.08.010—11.08.40, 11.08.045, 11.08.050—11.08.070, which pertained to traffic division, and derived from Ord. No. 29-318 § 11; Ord. No. 29-319 §§ 6, 8, 9; Ord. No. 31-291, § 1; Ord. No. 32-939; Ord. No. 39-082 (part); Ord. No. 41-522, § 5; and Ord. No. 50-688, § 1, adopted Apr. 17, 2018.

CHAPTER 11.10. TRAFFIC ENGINEER

Sec. 11.10.010. Office established—Appointment.
Sec. 11.10.020. Duties.
Sec. 11.10.030. Approves traffic regulations.
Sec. 11.10.040. Tests traffic-control devices.

Sec. 11.10.010. Office established—Appointment.

The office of city traffic engineer is hereby established. The city traffic engineer shall be appointed by the city manager, and he shall exercise the powers and duties as provided in this title and other traffic ordinances of this city.
(Ord. No. 29-319 § 15(a))

Sec. 11.10.020. Duties.

It is the general duty of the traffic engineer to determine the installation and proper timing and maintenance of traffic-control devices, to measure, to conduct engineering investigation of traffic conditions and to cooperate with other city officials in the development of ways and means to improve traffic conditions, and to carry out the additional powers and duties imposed by the city manager or by this title and other traffic ordinances of this city.
(Ord. No. 29-319 § 15(b))

Sec. 11.10.030. Approves traffic regulations.

The chief of police by and with the approval of the city traffic engineer is hereby empowered to make regulations necessary to make effective the provisions of this title and other traffic ordinances of this city and to make and enforce temporary or experimental regulations to cover emergencies or special conditions. Such temporary regulations shall remain in effect until rescinded or codified into the Code of the City of Wichita.
(Ord. No. 39-083)

Sec. 11.10.040. Tests traffic-control devices.

The city traffic engineer may test traffic-control devices under actual conditions of traffic.
(Ord. No. 29-319 § 16(b))

CHAPTER 11.12. ACCIDENTS*

Sec. 11.12.010. Reserved.
Sec. 11.12.020. Reserved.
Sec. 11.12.030. Duty to give information and render aid: attended vehicle or property.
Sec. 11.12.040. Duty upon striking unattended vehicle or property.
Sec. 11.12.050. Reserved.
Sec. 11.12.060. Reserved.
Sec. 11.12.070. When driver unable to report.
Sec. 11.12.080. False information.
Sec. 11.12.090. Penalty.

Sec. 11.12.010. Reserved.

Editor's note—Ord. No. 50-858, § 5, adopted Sept. 25, 2018, repealed § 11.12.010, which pertained to accident involving death or personal injuries and derived from Ord. No. 32-940 (part); and Ord. No. 30-982 § 2.

Sec. 11.12.020. Reserved.

Editor's note—Ord. No. 50-858, § 5, adopted Sept. 25, 2018, repealed § 11.12.020, which pertained to accident involving damage to vehicle and derived from Ord. No. 30-982 § 3.

Sec. 11.12.030. Duty to give information and render aid: attended vehicle or property.

(a) The driver of any vehicle involved in an accident resulting in an injury to any person or damage to any attended vehicle or property shall:

(1) immediately stop such vehicle at the scene of such accident, or as close thereto as possible, but shall then immediately return to and in every event shall remain at the scene of the accident until the driver has fulfilled the requirements of 11.12.030 (a)(2); and

(2) shall give such driver's name, address and the registration number of the vehicle such person is driving, and upon request shall exhibit such person's driver's license or permit to drive, the name of the company with which there is in effect a policy of motor vehicle liability insurance covering the vehicle involved in the accident and the policy number of such policy to any person injured in such accident or to the driver or occupant of or person attending any vehicle or other property damaged in such accident, and shall give such information and upon request exhibit such license or permit and the name of the insurer and policy number, to any police officer at the scene of the accident or who is investigating the accident.

(3) Such driver, insofar as possible, shall immediately make efforts to determine whether any person involved in such accident was injured or killed, and shall render to any person injured in such accident reasonable assistance, including the carrying, or the making of arrangements for the carrying of such person to a physician, surgeon or hospital for medical or surgical treatment if it is apparent that such treatment is necessary, or if such carrying is requested by the injured person.

(b) If no police officer is present, the driver of any vehicle involved in such accident, or any occupant of such vehicle 18 years of age or older, shall immediately report such accident, by the quickest available means of communication, to the nearest office of a duly authorized police authority if:

(1) There is apparently property damage of $1,000 or more;

(2) any person involved in the accident is injured or killed; or

(3) the persons specified in subsection (a) are not present or in condition to receive such information.

(Ord. No. 50-858, § 1, 9-25-18)

Editor's note—Ord. No. 50-858, § 1, adopted Sept. 25, 2018, amended § 11.12.030 in its entirety to read as herein set out. Former § 11.12.030 pertained to duty to give information and render aid, and derived from Ord. No. 38-872 § 1.

*__Note—__Ordinance history; Ord. No. 19-139 §§ 14—17, 19; Ord. No. 25-195 § 1; Ord. No. 25-196 § 1.

Cross reference—For duties of traffic division as to accident investigations, studies, records, and reports, see §§ 11.08.040 through 11.08.080.

Sec. 11.12.040. Duty upon striking unattended vehicle or property.

The driver of any vehicle which collides with or is involved in an accident with any vehicle or other property which is unattended resulting in damage to such other vehicle or property, shall immediately stop and shall either locate and notify the operator or owner of such vehicle or other property of such driver's name and address and the registration number of the vehicle such driver was driving or shall attach securely in a conspicuous place in or on such vehicle or other property a written notice giving such driver's name and address and the registration number of the vehicle such driver was driving and without unnecessary delay shall notify the nearest office of a duly authorized police authority.
(Ord. No. 50-858, § 3, 9-25-18)

Editor's note—Ord. No. 50-858, § 3, adopted Sept. 25, 2018, amended § 11.12.040 in its entirety to read as herein set out. Former § 11.12.040 pertained to duty upon striking unattended vehicle, and derived from Ord. No. 39-084 (part).

Sec. 11.12.050. Reserved.

Editor's note—Ord. No. 50-858, § 5, adopted Sept. 25, 2018, repealed § 11.12.050, which pertained to duty upon striking fixtures upon a highway and derived from Ord. No. 30-982 § 6.

Sec. 11.12.060. Reserved.

Editor's note—Ord. No. 50-858, § 5, adopted Sept. 25, 2018, repealed § 11.12.060, which pertained to duty to report accidents and derived from Ord. No. 39-084 (part); Ord. No. 32-279 (part); and Ord. No. 30-982 § 7.

Sec. 11.12.070. When driver unable to report.

Whenever the driver of a vehicle is physically incapable of making a required accident report, and there was another occupant in the vehicle at the time of the accident capable of making a report, such occupant shall make or cause to be made said report.
(Ord. No. 30-982 § 8)

Sec. 11.12.080. False information.

It is unlawful for any person to give information in oral or written reports as required in this chapter knowing or having reason to believe that such information is false.
(Ord. No. 32-940 (part); Ord. No. 30-982 § 9)

Sec. 11.12.090. Penalty.

Any person convicted of a violation of any of the provisions of this chapter shall be punished by a fine of not more than $2,500 or by imprisonment for not more than one year, or by both such fine and imprisonment.
(Ord. No. 32-940 (part); Ord. No. 50-858, § 4, 9-25-18)

CHAPTER 11.13. MOTOR VEHICLE LIABILITY INSURANCE

Sec. 11.13.010. Motor vehicle liability insurance coverage required.
Sec. 11.13.020. False information.
Sec. 11.13.030. Proof of violation.
Sec. 11.13.040. Penalty.
Sec. 11.13.050. Exclusions.

Sec. 11.13.010. Motor vehicle liability insurance coverage required.

(a) Every owner of a motor vehicle shall provide motor vehicle liability insurance coverage in accordance with the Kansas Automobile Injury Reparations Act, K.S.A. 40-3101 et seq. and amendments thereto, for every motor vehicle owned by such person, unless such motor vehicle: (1) is included under an approved self-insurance plan as provided in K.S.A. 40-3104(f) and amendments thereto; (2) is used as a driver training motor vehicle, as defined in K.S.A. 72-5015, and amendments thereto, in an approved driver training course by a school district or an accredited nonpublic school under an agreement with a motor vehicle dealer, and such motor vehicle liability insurance coverage is provided by the school district or accredited nonpublic school; (3) is included under a qualified plan of self-insurance approved by an agency of the state in which such motor vehicle is registered and the form prescribed in subsection (b) of K.S.A. 40-3106; or (4) is expressly exempted under the laws of this state.

(b) An owner of an uninsured motor vehicle shall not permit the operation thereof upon street or highway or upon property open to use by the public within the city limits, unless such motor vehicle is expressly exempted from said requirements pursuant to the laws of this state.

(c) No person shall knowingly drive an uninsured motor vehicle upon a street or highway or upon property open to use by the public within the city limits, unless such motor vehicle is expressly exempted from said requirements pursuant to the law of this state.

(d) Any person operating a motor vehicle upon a street or highway or upon property open to use by the public within the city limits, shall display, upon demand, evidence of financial security, as provided in K.S.A. 40-3107 and amendments thereto, to a law enforcement officer. The law enforcement officer shall issue a notice to appear to any person who fails to display evidence of financial security upon such demand. The law enforcement officer shall attach a copy of the insurance verification form prescribed by the Secretary of Revenue to the copy of the citation or notice to appear forwarded to the court.

No citation or notice to appear shall be issued to any person for failure to provide proof of financial security when evidence of financial security meeting the standards of subsection (e) of this section is displayed upon demand of a law enforcement officer. Whenever the authenticity of such evidence is questionable, the law enforcement officer may initiate the preparation of the insurance verification form prescribed by the Secretary of Revenue by recording information from the evidence of financial security displayed, and shall immediately forward the form to the Department of Revenue.

(e) Unless the insurance company subsequently submits an insurance verification form indicating that insurance was not in force, no person charged with violating any of the provisions of this section shall be convicted if such person produces in court, within ten days of the date of arrest or receiving notice to appear, evidence of financial security for the motor vehicle operated, which was valid at the time of arrest, or issuance of the citation or notice to appear. For the purpose of this section, evidence of financial security shall be provided by a policy of motor vehicle liability insurance, an identification card or certificate of insurance issued to the policyholder by the insurer which provides the name of the insurer, the policy number and the effective and expiration dates of the policy, or a certificate of self-insurance signed by the commissioner of insurance.

Upon the production in court of evidence of financial security, the court shall record the information displayed thereon on the insurance verification form prescribed by the Secretary of Rev-

enue, immediately forward such form to the Department of Revenue, and stay further proceedings on the matter pending a request from the prosecuting attorney that the matter be set for trial.
(Ord. No. 44-457 § 1)

Sec. 11.13.020. False information.

(a) It is unlawful for the owner of a motor vehicle registered or required to be registered in the state to give false information concerning financial security for the operation of such motor vehicle as required by this chapter.

(b) It is unlawful for any person, firm or corporation to give false information concerning another's financial security for the operation of a motor vehicle registered or required to be registered in the state, knowing or having reason to believe that such information is false.
(Ord. No. 38-872 § 3)

Sec. 11.13.030. Proof of violation.

Evidence that a motor vehicle, registered or required to be registered in the state, has been operated within the city limits together with proof of records of the Division of Motor Vehicles indicating that the owner of such vehicle did not have financial security as required under this chapter, shall be prima facie evidence that the owner did, at the time and place alleged, operate or permit such motor vehicle to be operated without having in full force and effect financial security required by the provisions of this chapter.
(Ord. No. 38-872 § 4)

Sec. 11.13.040. Penalty.

Any person convicted of violating any of the provisions of this chapter shall be deemed guilty of a misdemeanor, and shall be punished by a mandatory fine of not less than three hundred dollars nor more than one thousand dollars or by imprisonment for not more than six months, or by both such fine and imprisonment. Any person convicted of violating any of the provisions of this chapter within three years of any such prior conviction shall be deemed guilty of a misdemeanor and shall be punished by a fine of not less than eight hundred dollars nor more than two thousand five hundred dollars or by imprisonment for not more than one year, or by both such fine and imprisonment.
(Ord. No. 44-457 § 2)

Sec. 11.13.050. Exclusions.

(a) This chapter shall not apply to motor carriers of property or passengers regulated by the corporation commission of the state.

(b) This chapter shall not apply to vehicle dealers, as defined in K.S.A. 8-2401 and amendments thereto, for vehicles being offered for sale by such dealers.
(Ord. No. 44-457 § 3)

CHAPTER 11.16. ENFORCEMENT*

Sec. 11.16.010. Title applicability—Exceptions.
Sec. 11.16.020. Obedience required.
Sec. 11.16.030. Reserved.
Sec. 11.16.040. Enforcement of traffic laws.
Sec. 11.16.045. Records of violations.
Sec. 11.16.047. Investigation of accidents.
Sec. 11.16.050. Obedience to police required.
Sec. 11.16.060. Public employees—Obedience to regulations required.
Sec. 11.16.070. Persons propelling pushcarts or riding bicycles or animals to obey traffic regulations.
Sec. 11.16.080. Coasters, roller skates—Use restricted.
Sec. 11.16.085. Skateboards—Use restricted.
Sec. 11.16.090. Real property owners—Noninterference of title.
Sec. 11.16.100. Duty of driver upon approach of authorized emergency vehicle.

Sec. 11.16.010. Title applicability—Exceptions.

The provisions of this title relating to the operation of vehicles refer exclusively to the operation of vehicles upon highways, except: (a) where a different place is specifically referred to in a given section; and (b) the provisions of Chapter 11.12 and Sections 11.24.020, 11.38.150, 11.38.155, 11.38.160 and 11.38.170 of this title shall apply upon highways and elsewhere throughout the city.
(Ord. No. 32-941 (part); Ord. No. 30-982 § 10; Ord. No. 50-948, § 2, 3-19-19)

Sec. 11.16.020. Obedience required.

It is unlawful for any person to do any act forbidden or fail to perform any act required in this title.
(Ord. No. 30-982 § 11)

Sec. 11.16.030. Reserved.

Editor's note—Ord. No. 50-948, § 6, adopted Mar. 19, 2019, repealed § 11.16.030, which pertained to police department enforcement duty, and derived from Ord. No. 30-982 § 12.

*__Note—__Ordinance history; Ord. No. 19-139 §§ 20, 21, 23-28; Ord. No. 19-563 § 3.

Sec. 11.16.040. Enforcement of traffic laws.

(a) As set forth in this Code, it is the duty of the police department to enforce the traffic ordinances of this city and all of the state traffic laws applicable to traffic in this city, to make arrests for traffic violations, to investigate accidents and to cooperate with the City Traffic Engineer and the City Manager's Office in the administration of the traffic and parking laws and in developing ways and means to improve traffic conditions.

(b) Police officers of the city shall at all times be empowered to enforce the provisions of this and other traffic ordinances of this city and temporary and emergency rules and regulations of the Chief of Police, and may at any time direct and control traffic in person or by visible or audible signals, provided, that any officer or Community Service Officer actively directing traffic in the event of a fire, temporary traffic congestion or other emergency, or to expedite the flow of traffic or to safeguard pedestrians, may by proper signal cause any vehicle or pedestrian to stop at or pass through any intersection whether the same be controlled by an official traffic control sign or device, or to disregard a sign otherwise provided by ordinance.

(c) The Chief of Police shall have the authority to designate special Community Service Officers to direct traffic, impound vehicles, and investigate traffic accidents. The Community Service Officer shall have authority to enforce traffic provisions under Title 11 and issue citations. Community Service Officers may issue citations pursuant to Title 11, but are not authorized to make arrests.

(d) The City Manager or a designee is authorized to appoint city employees or retain independent contractors as designated Parking Control Officers for the purpose of facilitating the enforcement of the city's parking ordinances and issuing citations for such violations. The Metropolitan Area Building and Construction Department is also authorized to enforce parking provisions of this Title.

(e) Whenever any motor vehicle is parked in violation of any of the provisions of this Title, a citation consisting of a notice of violation with the following information:

(1) The state license number of the vehicle in violation;

(2) The time at which such vehicle was in violation;

(3) The location, by the nearest street address, of the vehicle in violation, or the number of the parking meter and, if available, the number of the parking space indicating that the motor vehicle occupying that parking space is or has been parking in violation; and

(4) Other facts which are necessary to a thorough understanding of the circumstances attending such violation, shall be attached to every vehicle violating any parking provisions of this Title, instructing such owner or operator to answer the charges of said violation before the municipal court of the city.

(Ord. No. 50-948, § 3, 3-19-19; Ord. No. 52-326, § 3, 1-9-24)

Editor's note—Ord. No. 50-948, § 3, adopted Mar. 19, 2019, amended § 11.16.040 in its entirety to read as herein set out. Former § 11.16.040 pertained to police officer—duties generally, and derived from Ord. No. 30-92, § 13; and Ord. No. 45-492, § 1, adopted Nov. 5, 2002.

Sec. 11.16.045. Records of violations.

As required by state statute, the police department shall keep a record of all violations of traffic ordinances of this city or of the state traffic laws of which any person has been charged. The records shall be so maintained as to show the total and types of all violations.
(Ord. No. 50-948, § 4, 3-19-19)

Sec. 11.16.047. Investigation of accidents.

(a) It is the duty of the police department, to investigate traffic accidents and to arrest and assist in the prosecution of those persons charged with the violations of law causing or contributing to such accidents.

(b) The police department is required to investigate and prepare a written motor vehicle accident report of any motor vehicle accident occurring within the corporate limits of the city, and in which any one or more of the following incidents exist:

(1) The personal injury or death of any person has occurred,

(2) The driver of any vehicle involved in the accident fails to immediately stop such vehicle at the scene of the accident in accordance with Chapter 11.12,

(3) The driver of any vehicle involved in the accident is driving the vehicle while under the influence of intoxicating liquor or drugs contrary to Section 11.38.150 and 11.38.155 of this title,

(4) Where the total property damage resulting from the collision exceeds an apparent extent of more than $1,000.

(c) The police department shall cooperate with the city traffic engineer in conducting studies of accidents and determining remedial measures to reduce traffic accidents and promote public safety.

(d) The police department shall ensure the maintenance of a record of all traffic accidents, warnings, arrests, convictions and complaints reported for each driver is maintained.
(Ord. No. 50-948, § 5, 3-19-19)

Sec. 11.16.050. Obedience to police required.

(a) No person shall knowingly fail or refuse to comply with any lawful order or direction of any police officer or Community Service Officer of this city vested by law with authority to direct, control or regulate traffic and shall be guilty as provided by subsection (d)(1).

(b) No person shall disobey or drive around any traffic cones, or other traffic marking or directional devices, or an occupied or unoccupied police vehicle that is utilizing its emergency or hazard lights and has been placed in a position as to block vehicles from proceeding through a

lane of traffic, an accident scene, fire scene, crime scene or any other official law enforcement activity.

(c) (1) Any driver of a motor vehicle who knowingly fails or refuses to bring such driver's vehicle to a stop for a pursuing police vehicle or police bicycle, when given visual or audible signal to bring the vehicle to a stop, shall be guilty as provided by subsection (d)(2).

(2) Any driver of a motor vehicle who knowingly otherwise flees or attempts to elude a pursuing police vehicle or police bicycle, when given visual or audible signal to bring the vehicle to a stop, shall be guilty as provided by subsection (d)(2).

(3) It shall be an affirmative defense to any prosecution under subsection (c)(1) that the driver's conduct in violation of such paragraph was caused by such driver's reasonable belief that the vehicle or bicycle pursuing such driver's vehicle is not a police vehicle or police bicycle.

(d) (1) Every person convicted of violating subsections (a) and (b) is guilty of a misdemeanor and shall be punished in the manner provided in Section 1.04.060 of this Code.

(2) Every person convicted of violating subsection (c) is guilty of a misdemeanor and a first conviction is punishable by a maximum term of 6 months in jail, a $1,000 fine, or a combination of both. A second conviction is punishable by a maximum term of 12 months jail, a $2,500 fine, or a combination of both.

(e) The signal given by the police officer may be by hand, voice, emergency light or siren:

(1) If the officer giving such signal is within or upon an official police vehicle or police bicycle at the time the signal is given, the vehicle or bicycle shall be appropriately marked showing it to be an official police vehicle or police bicycle; or

(2) If the officer giving such signal is not utilizing an official police vehicle or police bicycle at the time the signal is given, the officer shall be in uniform, prominently displaying such officer's badge of office at the time the signal is given.

(f) For the purpose of this section:

(1) "Conviction" means a final conviction without regard to whether sentence was suspended or probation granted after such conviction. Forfeiture of bail, bond or collateral deposited to secure a defendant's appearance in court, which forfeiture has not been vacated, shall be equivalent to a conviction. For the purpose of determining whether a conviction is a first, second, third or subsequent conviction in sentencing under this section it is irrelevant whether an offense occurred before or after conviction for a previous offense.

(2) "Appropriately marked" official police vehicle or police bicycle shall include, but not be limited to, any police vehicle or bicycle equipped with functional emergency lights or siren or both and which the emergency lights or siren or both have been activated for the purpose of signaling a driver to stop a motor vehicle.

(Ord. No. 32-941 (part); Ord. No. 31-232 § 19; prior Ord. No. 30-982 § 14; Ord. No. 51-093, § 1, 9-10-19; Ord. No. 51-888, § 1, 6-28-22)

Sec. 11.16.060. Public employees—Obedience to regulations required.

(a) The provisions of this title applicable to the drivers of vehicles upon the highways shall apply to the drivers of all vehicles owned or operated by the United States, this state, or any county, city, town, district or any other political subdivision of the state, subject to such specific exceptions as are set forth in this title, or by state law with reference to authorized emergency vehicles.

(b) The driver of any authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law, or when responding to but not

upon returning from a fire alarm may exercise the privileges set forth in this section, but subject to the condition herein stated.

(c) The driver of an authorized emergency vehicle may:

(1) Park or stand irrespective of the provisions of this title;

(2) Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation, and in no event shall an ambulance operating under emergency conditions proceed through a red or stop signal or stop sign at a speed in excess of ten miles per hour;

(3) Exceed the maximum speed limits so long as he does not endanger life or property;

(4) Disregard regulations governing direction of movement or turning in specified directions.

(d) The exemptions herein granted to an authorized emergency vehicle shall apply only when such vehicle is making use of audible signals meeting the requirements of Section 11.60.130 of this title, and visual signals meeting the requirements of Section 11.60.200 of this title, except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a red light visible from in front of the vehicle.

(e) The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others.

(f) Unless specifically made applicable, the provisions of this title which relate to the operation of vehicles upon a highway, except those contained in Sections 11.16.050, 11.38.150 and 11.38.160 of this title, shall not apply to persons, teams, motor vehicles and other equipment while actually engaged in work upon the surface of a highway, but shall apply to such persons and vehicles when traveling to or from such work.
(Ord. No. 32-941 (part); Ord. No. 31-232 § 2; prior Ord. No. 30-982 § 15)

Sec. 11.16.070. Persons propelling pushcarts or riding bicycles or animals to obey traffic regulations.

Every person riding a bicycle or an animal or driving any animal drawing a vehicle upon a roadway shall be subject to the provisions of this title applicable to the driver of a vehicle, except those provisions of this title which by their nature can have no application.
(Ord. No. 30-982 § 16)

Sec. 11.16.080. Coasters, roller skates—Use restricted.

(1) No person upon roller skates, or riding in or by means of any coaster, toy vehicle or similar device shall go upon any roadway except while crossing a street on a crosswalk, and when so crossing such person shall be granted all of the rights and shall be subject to all of the duties applicable to pedestrians.

(2) The provisions of this section shall not apply to the use of skateboards, which is covered in Section 11.16.085 of this title.
(Ord. No. 41-230 § 2)

Sec. 11.16.085. Skateboards—Use restricted.

(1) It is unlawful within the city for any person upon a skateboard:

(a) To go upon any street or highway in the city except while crossing a street on a crosswalk, and when so crossing such person shall be granted all of the rights and shall be subject to all of the duties applicable to pedestrians.

(b) To go upon any property, whether publicly or privately owned, within the area bounded by the east bank of the Arkansas River from the point where the river flows under the Central Avenue Bridge

to the point where the river flows under the Kellogg Street Bridge, thence east along the north side of Kellogg Street to a point where the Kellogg Street overpass crosses above the west line of Washington Avenue, thence north to the north line of Third Street, thence west to the west line of Broadway Avenue, thence north to the north line of Central Avenue, and thence west to the east bank of the Arkansas River to the point of beginning.

This subsection shall not apply to:

(i) Paved areas within the bounded area described herein which are set aside for bicycle use and commonly referred to as bicycle paths, however, the use of ramps (portable or otherwise) or any similar device is prohibited upon all areas designated as bicycle paths within the city;

(ii) Property which is specifically intended for commercial skateboard use, such as a skateboard park or similar facility;

(iii) Property where the owner has given permission for the use of skateboards and such property is clearly and visibly marked by a sign or signs indicating that skateboard use is allowed hereon. Such signs shall have lettering of at least one and one-half inches high and one-half inch wide. For signs required hereunder, the provisions of Chapter 24.04 of this Code shall have no application.

(c) To go upon or in any city-owned parking lot or parking garage.

(d) To go upon any other parking lot, parking garage or property within the city when such property is clearly and visibly marked by a sign or signs indicating that skateboard use is prohibited thereon. Such signs shall have lettering of at least one and one-half inches high and one-half inch wide. For signs required hereunder, the provisions of Chapter 24.04 of this Code shall have no application. When such signs are present upon privately owned property, the police department shall be authorized thereby to enforce the provisions of this section.

(e) To coast or otherwise move upon a skateboard in a reckless manner on any public sidewalk within the city, or without exercising due care for the safety of others using the sidewalks, or to otherwise endanger or interfere with pedestrian traffic.

(2) Violation of any of the provisions of this section is a misdemeanor and shall be punished by a fine of not more than five hundred dollars.

(3) In addition to the penalty for violation of this section, any skateboard may be seized in connection with said violation and may, in the discretion of the trial court be released back to the rightful owner upon their appearance in court or may otherwise be destroyed by the chief of police when the property is no longer needed for evidence.
(Ord. No. 41-230 § 3)

Sec. 11.16.090. Real property owners—Noninterference of title.

Nothing in this title shall be construed to prevent the owner of real property used by the public for purposes of vehicular travel by permission of the owner and not as a matter of right from prohibiting such use, or from requiring other or different or additional conditions than those specified in this title, or otherwise regulating such use as may seem best by such owner.
(Ord. No. 30-982 § 18)

Sec. 11.16.100. Duty of driver upon approach of authorized emergency vehicle.

(a) Upon the immediate approach of an authorized emergency vehicle making use of audible and visual signals meeting the requirements of Sections 11.60.165, 11.60.200, and 11.60.230(d), of this title, and amendments thereto, or of a police vehicle properly and lawfully making use of an audible signal only,

the driver of every other vehicle shall do the following unless otherwise directed by a police officer:

(1) Yield the right-of-way;

(2) Immediately drive to a position parallel to and as close as possible to the right-hand edge or curb of the roadway clear of any intersection; and

(3) Stop and remain in such position until the authorized emergency vehicle has passed.

(b) The driver of a motor vehicle upon approaching a stationary authorized emergency vehicle, when the authorized emergency vehicle is making use of visual signals meeting the requirements of Sections 11.60.155(d) and 11.60.165 of this title, and amendments thereto, shall do either of the following:

(1) If the driver of the motor vehicle is traveling on a highway that consists of at least two lanes that carry traffic in the same direction of travel as that of the driver's motor vehicle, the driver shall proceed with due caution and, if possible and with due regard to the road, weather and traffic conditions, shall change lanes into a lane that is not adjacent to that of the stationary authorized emergency vehicle; or

(2) If the driver is not traveling on a highway of a type described in subsection (b)(1) of this section, or if the driver is traveling on a highway of that type but it is not possible to change lanes or if to do so would be unsafe, the driver shall proceed with due caution, reduce the speed of the motor vehicle and maintain a safe speed for the road, weather and traffic conditions.

(c) This section shall not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway.
(Ord. No. 45-956 § 1; Ord. No. 39-085)

CHAPTER 11.20. TRAFFIC-CONTROL DEVICES*

Sec. 11.20.010. Placement.
Sec. 11.20.020. Standards.
Sec. 11.20.030. Driver's obedience required.
Sec. 11.20.040. Unauthorized or interfering sign.
Sec. 11.20.050. Defacing prohibited.
Sec. 11.20.060. Lights.
Sec. 11.20.080. Flashing or dark traffic signals.
Sec. 11.20.090. Fire lane designation.
Sec. 11.20.120. Crosswalk and safety zone.
Sec. 11.20.150. Compliance to school and playground zones.
Sec. 11.20.160. No-passing zone designation.
Sec. 11.20.170. Truck routes designation.

Sec. 11.20.010. Placement.

The city traffic engineer shall place and maintain traffic-control signs, signals and devices when and as required under this title and other traffic ordinances of this city to make effective the provisions of this title and such ordinances, and may place and maintain such additional traffic-control devices as he may deem necessary to regulate traffic under this title and other traffic ordinances of this city or under state law, or to guide or warn traffic.
(Ord. No. 30-982 § 20)

Sec. 11.20.020. Standards.

All traffic-control signs, signals and devices shall conform to the "Manual on Uniform Traffic Control Devices" currently approved by the State Department of Transportation, or revisions thereto. All signs and signals required under this title for a particular purpose shall so far as practicable, be uniform as to type and location throughout the city. All traffic-controlled devices so erected and not inconsistent with the provisions of state law or this title shall be official traffic-control devices.
(Ord. No. 39-086 (part))

Sec. 11.20.030. Driver's obedience required.

(a) The driver of any vehicle shall obey the instructions of any official traffic-control device applicable thereto placed in accordance with the provisions of this title, unless otherwise directed by a police officer, subject to the exceptions granted the driver of an authorized emergency vehicle in this title.

(b) No provisions of this title for which official traffic-control devices are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official device is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that official traffic-control devices are required, such section shall be effective, even though no devices are erected or in place.

(c) Whenever official traffic-control devices are placed in position approximately conforming to the requirements of this title, such devices shall be presumed to have been so placed by the official act or direction of lawful authority, unless the contrary shall be established by competent evidence.

(d) Any official traffic-control device placed pursuant to the provisions of this title and purporting to conform to the lawful requirements pertaining to such devices shall be presumed to comply with the requirements of this title, unless the contrary shall be established by competent evidence.
(Ord. No. 31-232 § 3; Ord. No. 30-982 § 22)

Sec. 11.20.040. Unauthorized or interfering sign.

(a) No person shall place, maintain or display upon or in view of any highway any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal, and no person shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising. This shall not be deemed to prohibit the erection upon private property

*__Note—__Ordinance history; Ord. No. 39-319 §§ 17—33; Ord. No. 30-516.

adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

(b) Every such prohibited sign, signal or marking is hereby declared to be a public nuisance and the city traffic engineer is hereby empowered to remove the same or cause it to be removed without notice.
(Ord. No. 39-086 (part); Ord. No. 30-982 § 23)

Sec. 11.20.050. Defacing prohibited.

(a) No person shall without lawful authority attempt to or in fact, alter, deface, injure, knock down, or remove any official traffic-control device or any railroad sign or signal or any inscription, shield or insignia thereon, or any other part thereof.

(b) No person shall, without lawful authority, wilfully, intentionally or negligently attempt to or in fact alter, deface, injure, knock down or remove any traffic-control device placed in the roadway for the purpose of marking and identifying freshly painted traffic lines. No person shall drive any vehicle across freshly painted traffic lines so marked and so identified.
(Ord. No. 30-982 § 24)

Sec. 11.20.060. Lights.

Whenever traffic is controlled by traffic-control signals exhibiting different colored lights, or colored lighted arrows, successively one at a time or in combination, only the colors green, red and yellow shall be used, except for special pedestrian signals carrying a word legend, and said lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

(a) *Green Indication.*

(1) Vehicular traffic facing a circular green signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection at the time such signal is exhibited.

(2) Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow, or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

(3) Unless otherwise provided by a pedestrian control signal, as provided in section 11.20.070 of this chapter, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.

(b) *Steady Yellow Indication.*

(1) Vehicular traffic facing a steady yellow signal is thereby warned that the related green movement is being terminated or that a red indication will be exhibited immediately thereafter when vehicular traffic shall not enter the intersection.

(2) Pedestrians facing a steady yellow signal, unless otherwise directed by a pedestrian control signal as provided in section 11.20.070 of this chapter, are thereby advised that there is insufficient time to cross the roadway before a red indication is shown and no pedestrian shall then start to cross the roadway.

(c) *Steady Red Indication.*

(1) Vehicular traffic facing a steady red signal alone shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then before entering the intersection, and shall remain standing until an indication to proceed is shown, except as provided in subsection

(c)(2), (3) and (4) of this subsection. Any turn provided for in said paragraphs (2), (3) and (4) shall be governed by the applicable provisions of section 11.28.030 of the Code of the City of Wichita.

(2) Unless a sign is in place prohibiting a turn, vehicular traffic facing a steady red signal may cautiously enter the intersection to make a right turn after stopping as required by subsection (c)(1) of this section. After stopping, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time such driver is moving across or within the intersection or junction of roadways. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within the adjacent crosswalk and to other traffic lawfully using the intersection.

(3) Unless a sign is in place prohibiting a turn, vehicular traffic upon a roadway restricted to one-way traffic facing a steady red signal at the intersection of such roadway with another roadway restricted to one-way traffic which is proceeding to the left of such vehicular traffic, may cautiously enter the intersection to make a left turn after stopping as required by subsection (c)(1) of this section. After stopping, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time such driver is moving across or within the intersection or junction of roadways. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

(4) The driver of a motorcycle or a person riding a bicycle facing any steady red signal, which fails to change to a green light within a reasonable period of time because of a signal malfunction or because the signal has failed to detect the arrival of the motorcycle or bicycle because of its size or weight, shall have the right to proceed subject to the rules stated herein.

After stopping, the driver or rider shall yield the right-of-way to any vehicle in or near the intersection or approaching on a roadway so closely as to constitute an immediate hazard during the time such driver or rider is moving across or within the intersection or junction of roadways. Such motorcycle or bicycle traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

(5) Unless otherwise directed by a pedestrian-control signal as provided in K.S.A. 8-1509, and amendments thereto, pedestrians facing a steady circular red or red arrow signal alone shall not enter the roadway.

(d) *Steady Red with Green Arrow.*

(1) Vehicular traffic facing such signal may cautiously enter the intersection only to make the movement indicated by such arrow, but shall not interfere with other traffic or endanger pedestrians lawfully within a crosswalk.

(2) No pedestrian facing such signal shall enter the roadway.

(e) In the event an official traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this section shall be applicable except as to those provisions which by their nature can have no application. Any stop required shall be made,

but in the absence of any such sign or marking, the stop shall be made at the signal.

(Ord. No. 38-874 § 1; Ord. No. 49-031, § 1, 7-12-2011)

Sec. 11.20.080. Flashing or dark traffic signals.

(a) Unless directed by a police officer or an official traffic control device, whenever an illuminated flashing red or yellow light is used in a traffic signal or the traffic signal has no indication illuminated, it shall require obedience by vehicular traffic as follows:

(1) Flashing Red or Dark (Stop Signal). When a red lens is illuminated with rapid intermittent flashes or there are no lenses illuminated, drivers of vehicles shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic before entering it, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(2) Flashing Yellow (Caution Signal). When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

(b) This section shall not apply at railroad grade crossings. Conduct of drivers approaching railroad grade crossings shall be governed by the provisions set forth in Section 11.36.080 of this title.

(Ord. No. 50-642, § 2, 12-19-17)

Editor's note—Ord. No. 50-642, § 2, adopted Dec. 19, 2017, amended § 11.20.080 in its entirety to read as herein set out. Former § 11.20.080 pertained to flashing traffic signals and derived from Ord. No. 39-086 (part).

Sec. 11.20.090. Fire lane designation.

The city manager shall have the authority, upon the joint recommendation of the fire chief and the city traffic engineer, to designate fire lanes along which fire trucks and equipment shall proceed in making fire calls; provided, however, that in emergencies and as necessity requires, runs of fire equipment may be made on other than fire lane streets and alleys, in the discretion of the officer in charge of such equipment.

(Ord. No. 30-982 § 28)

Sec. 11.20.120. Crosswalk and safety zone.

The city traffic engineer is authorized:

(a) To designate and shall hereafter maintain, or cause to be maintained, by appropriate traffic-control devices, marks or lines upon the surface of the roadway, crosswalks at intersections where in his opinion there is particular danger to pedestrians crossing the roadway and at such other places as he may deem necessary;

(b) To establish safety zones or safety islands in the center of any crosswalk at an intersection wherever he deems such may be necessary for the protection of pedestrians and the design of such safety zones or safety islands shall be approved by the traffic engineer.

(Ord. No. 39-086 (part); Ord. No. 30-982 § 31)

Sec. 11.20.150. Compliance to school and playground zones.

(a) Where hand signs are being used by persons for the purpose of aiding school children in crossing streets, the driver of any vehicle upon the streets where such signs are used shall bring his vehicle to a complete stop when a sign is being waved, held out over the curbline or otherwise displayed so as to indicate a cessation of movement. The vehicle shall remain stationary while children are crossing the street. When said signs are withdrawn, the driver of such vehicle may proceed unless prohibited by other traffic-control devices.

(b) The driver of any vehicle, upon entering a posted school speed zone or a posted playground speed zone, shall reduce his speed to the posted

speed or less while within said zones during the periods of time such posted speed zones are in effect, which are as follows:

(1) In school speed zones which are designated by a sign indicating "School Speed Limit 20 When Children Are Present," the speed limit between seven-thirty a.m. and four-thirty p.m. shall be twenty miles per hour when:

(A) An elementary school child or children are occupying a marked crosswalk;

(B) An elementary school child or children are waiting at the curb or on

the shoulder of the roadway and are about to cross the roadway by way of the marked crosswalk;

(C) An elementary school child or children are present or walking along roadway, either on the adjacent sidewalk or, in the absence of sidewalks, on the shoulder within the posted school speed limit zone.

(2) In school speed zones which are designated by a sign that includes a flashing speed limit beacon, the speed limit shall be twenty miles per hour during all times when the flashing speed limit beacons are flashing.

(3) In school speed zones which are designated by a two-section yellow and red traffic signal and an advance sign indicating "School Speed Limit 20 When Signal Is Operating," the speed limit shall be twenty miles per hour during all times when the traffic signal is operating.

(4) In playground speed zones which are designated by a sign indicating "Playground, Speed Limit 20 When Children Are Present," the speed limit between eight-fifteen a.m. and nine-forty-five p.m. of any day commencing with Memorial Day and through Labor Day shall be twenty miles per hour.

(c) No driver of a vehicle shall pass another vehicle in a school or playground speed zone except on multilane roads where passing is permissible and then only if passing may be accomplished without changing lanes while within the school or playground speed zone.

(d) Whenever traffic is controlled by traffic-control signals exhibiting the colors yellow or red, the following regulations will be in effect:

(1) Flashing Yellow (Caution Signal). When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles shall proceed through the intersection or pass such signals with caution.

(2) Solid Yellow Alone When Shown Following Flashing Yellow or Caution Signal. Vehicular traffic facing the signal shall stop before entering the nearest crosswalk at the intersection. If the stop cannot be made in safety, a vehicle may be driven cautiously through the intersection or may cautiously pass such signals.

(3) Red Alone or "Stop." Vehicular traffic facing the signal shall stop before entering the nearest crosswalk or at such other point as may be indicated by a clearly visible line on the surface of the roadway and shall remain standing until flashing yellow or "caution" is shown alone.

(Ord. No. 39-086 (part); Ord. No. 37-891; Ord. No. 36-605; Ord. No. 36-285 (part))

Sec. 11.20.160. No-passing zone designation.

The traffic engineer is authorized to designate where overtaking and passing or driving to the left of the roadway would be especially hazardous and may, by appropriate signs or markings on the roadway, indicate the beginning and end of such zones, and when such signs or markings are in place and clearly visible to an ordinarily observant person, every driver of a vehicle shall obey the directions thereof.

(Ord. No. 31-232 § 6; Ord. No. 30-982 § 35)

Sec. 11.20.170. Truck routes designation.

The traffic engineer shall place and maintain appropriate signs on the portions of the streets designated as truck routes and at other points deemed advisable in order to route trucks and commercial vehicles over alternate or bypass routes.

(Ord. No. 30-982 § 36)

CHAPTER 11.22. INTERSECTIONS

Sec. 11.22.010. Obstructing view prohibited.
Sec. 11.22.020. Exceptions to Section 11.22.010.
Sec. 11.22.030. Applicability of chapter.
Sec. 11.22.040. Abatement notice—Time limit.
Sec. 11.22.050. Authority of the city engineer.
Sec. 11.22.060. Abatement by city—Assessment.
Sec. 11.22.070. Penalty.

Sec. 11.22.010. Obstructing view prohibited.

The traffic engineer or the traffic engineer's designee shall determine, based on engineering judgment, the AASHTO publication, "A Policy on Geometric Design of Highways and Streets," (current edition), and this section, if a sight obstruction exists. Sight obstructions shall be prohibited at controlled and uncontrolled intersections of public streets.

Uncontrolled intersections. In all areas, on private or public property at any corner formed by intersecting streets, it is unlawful to install, set out, maintain, allow to remain, or allow the installation, setting out or maintenance of any sign, fence, hedge, shrubbery, natural growth or any other obstruction to view, regardless of nature, within the vision triangle as determined by a triangle whose sides are ninety feet measured along the centerlines of the approach streets from their point of intersection.

Controlled intersections. In all areas, on private or public property, at any corner formed by intersecting streets where the right-of-way is assigned to the major street and the minor street is stop-controlled, it is unlawful to install, set out, maintain, allow to remain, or allow the installation, setting out or maintenance of any sign, fence, hedge, shrubbery, natural growth or any other obstruction to view, regardless of nature, within the vision triangle. This vision triangle shall have its shorter side equal to one-half the major street width plus fifteen feet and the longer side equal to distance determined in the following tables:

Required Sight Distance
Sight Restriction to the Left (ft.)

Approximate Width of Major Street (ft.)	*Major Street Number of Lanes*	*Major Street Parking*	*Major Street Speed Limit (mph)*						
			25	*30*	*35*	*40*	*45*	*50*	*55*
30	2	No	165	200	230	265	300	330	365
40	2	Yes	185	220	260	295	330	365	405
50	4	No	185	220	260	295	330	365	405
44	2	Yes	190	225	265	300	340	375	415
44	4	No	190	225	265	300	340	375	415
48	2	Yes	190	230	270	305	345	380	420
48	4	No	190	230	270	305	345	380	420
64	4	Yes	200	240	280	320	365	405	445
64	4	No	200	240	280	320	365	405	445

Required Sight Distance
Sight Restriction to the Right (ft.)

Approximate Width of Major Street (ft.)	*Major Street Number of Lanes*	*Major Street Parking*	*Major Street Speed Limit (mph)*						
			25	*30*	*35*	*40*	*45*	*50*	*55*
30	2	No	195	235	270	310	350	390	430
40	2	Yes	205	245	280	325	365	405	445
40	4	No	215	255	300	340	385	425	470
44	2	Yes	210	250	295	335	375	420	460
44	4	No	220	265	310	350	395	440	485
48	2	Yes	215	255	300	340	385	425	470
48	4	No	230	270	320	365	410	455	500
64	4	Yes	255	305	355	405	455	505	560
64	4	No	265	320	370	425	475	530	580

(Ord. No. 39-087; Ord. No. 50-188 § 1, 4-26-16)

Sec. 11.22.020. Exceptions to Section 11.22.010.

The provisions of Section 11.22.010 shall not apply to permanent buildings, public utility poles, hedges trimmed to a height of less than thirty-three inches above gutter grade, trees, the trunks of which are at all times kept trimmed of limbs and sucker growth to a height of at least six feet above the gutter grade or the limbs of which overhang the public street are at all times kept trimmed of branches to a height of at least thirteen feet six inches above the street level, or plant species, not planted in the form of hedge, which are so planted and trimmed as to leave at all times a clear and unobstructed crossview; ornamental fence not exceeding four feet in height, provided the ratio of the solid portion of the fence to the open shall not exceed one to four; supporting members appurtenant to permanent building existing on September 1, 1974; official warning signs or signals; places where the contour of the ground is such that there can be no cross-visibility at the intersection; or to signs mounted ten feet or more above the gutter grade whose supports do not constitute an obstruction.
(Ord. No. 33-421 (part))

Sec. 11.22.030. Applicability of chapter.

No obstruction to cross-visibility shall be determined to be excepted from the application of this chapter because of its being in existence on September 1, 1974, unless expressly exempt by the terms of this chapter.
(Ord. No. 33-421 (part))

Sec. 11.22.040. Abatement notice—Time limit.

(a) When, in the opinion of the traffic engineer, an obstruction to visibility exists, as prohibited in this chapter, it is his duty to give notice in writing by certified letter addressed to the property owner or owners complained against, provided that the notice shall specify in what manner a traffic hazard has been alleged to exist. The notice shall direct the removal by the property owner or owners of the structures, trees or other obstructions which constitute the traffic hazard. The notice shall provide that such structures, trees or other obstructions shall be removed within ten days.

(b) The property owner shall be allowed ten days in which to comply with the order of the traffic engineer; provided, however, that any

person or persons aggrieved by any such order may, within said ten-day period, submit a written request to the traffic engineer for a hearing before the city engineer wherein said person may appeal the traffic engineer's interpretation of Section 11.22.010 and/or Section 11.22.020 as these sections are being applied against them and/or further, may request that the city engineer grant a variance to the strict enforcement of Section 11.22.010 and/or Section 11.22.020.
(Ord. No. 34-243 (part); Ord. No. 50-642, § 3, 12-19-17)

Sec. 11.22.050. Authority of the city engineer.

(a) Appeals. The City Engineer shall have the power to hear and decide appeals where it is alleged that the Traffic Engineer's interpretation is in error in any order, requirement, decision or determination whereby the Traffic Engineer orders the abatement of a sight obstruction.

(b) Variances. The City Engineer may authorize, in specific cases, a variance from the specific terms of Section 11.22.010 which shall not be contrary to the public interest and where, owing to specific conditions, a literal enforcement of the conditions of Section 11.22.010, in an individual case, would result in unnecessary hardship; and provided, that the spirit of Section 11.22.010 shall be observed, public safety and welfare secured, and substantial justice done. A request for a variance may be granted upon the finding of the City Engineer that the following conditions have been met: (1) That the sight obstruction would not prevent a driver from taking evasive maneuvers to prevent an accident; (2) That a strict enforcement of Section 11.22.010 would result in an unnecessary hardship upon the individual requesting the variance; (3) That the existing alleged sight obstruction does not prevent a clear and unobstructed crossview of persons or objects approaching the intersection; and (4) That granting the variance desired will not be opposed to the general spirit and intent of Section 11.22.010.

(c) Appeal. Any Person, official or governmental agency dissatisfied with any order or determination of the City Engineer may appeal such order or determination to the City Council within ten (10) days of the issuance of the order. An appeal taken to the City Council shall be conducted in accordance with the provisions of Section 2.04.235 of the Code of the City of Wichita.

(d) Review of Existing Variances. Any variance to the sight obstruction ordinance that has been granted in the past shall be subject to review by the City Engineer at any time after a one-year (1) period has passed from the date the variance was granted. In said review, the City Engineer shall determine if all necessary conditions upon which the first variance was granted still exist. If the conditions necessary for granting the variance do not exist, the City Engineer shall withdraw the variance. The property owner shall thereafter remove the sight obstruction within twenty (20) days after the City Engineer withdraws the variance or shall appeal the City Engineer's ruling to the City Council within twenty (20) days after the City Engineer withdraws the variance. The property owner shall be given notice of the fact that a hearing is to be held to review the variance previously granted by the City Engineer in the same manner as described in Section 11.22.040(a) and said notice shall be given at least twenty (20) days in advance of the date the hearing is scheduled. The Traffic Engineer shall have the authority to request the City Engineer to review any variance previously granted.
(Ord. No. 50-188 § 2, 4-26-16; Ord. No. 50-339 § 1, 10-11-16)

Editor's note—Ord. No. 50-188 § 2, adopted Apr. 26, 2016, repealed the former section 10.22.050, and enacted a new section as set out herein. The former section 10.22.050 pertained to same—assessment and derived from Ord. No. 34-243 (part)).

Sec. 11.22.060. Abatement by city—Assessment.

(a) If, within ten days after the mailing of the notice by the Traffic Engineer, the owner or owners of the lot or parcel of land have failed, refused or neglected to remove the obstruction or have failed to request a hearing before the City Engineer as provided in Section 11.22.040, then the Traffic Engineer shall cause the sight obstruction to be removed.

(b) In the event the owner or owners request a hearing before the City Engineer and the City Engineer determines a sight obstruction exists and/or that a variance should not be granted, then the owner or owners shall remove the sight obstruction within twenty days from the date of hearing or shall file an appeal from the City Engineer to the City Council within twenty days of the hearing. The Traffic Engineer shall cause the sight obstruction to be removed if the owner or owners have failed to remove the obstruction or have failed to request a hearing before the City council within twenty days following the hearing.

(c) In the event the owner or owners request a hearing before the City Council and the City Council determines that the ruling or order of the City Engineer ordering the sight obstruction to be removed should be affirmed, then the owner or owners shall remove the sight obstruction within twenty days of the hearing before the City Council. The Traffic Engineer shall cause the sight obstruction to be removed if the owner or owners have failed to remove the sight obstruction within the twenty-day period following the hearing.

(d) The cost of removal of the sight obstruction shall be certified by the Traffic Engineer to the City Clerk, who shall cause the costs to be assessed against the particular lots or pieces of land in front of or abutting upon the street or alley or road right-of-way from which the obstructions were so removed.
(Ord. No. 34-243 (part); Ord. No. 50-896, § 3, 11-27-18)

Sec. 11.22.070. Penalty.

The failure of the owner to remove a sight obstruction after a final determination has been made that a sight obstruction exists and after the expiration of the appropriate removal time set out in Section 11.22.060 above shall constitute an offense punishable by a penalty of ten dollars and every day said owner fails to remove it shall be a separate and distinct offense.
(Ord. 34-243 (part))

CHAPTER 11.24. SPEED*

Sec. 11.24.010. Minimum speed.
Sec. 11.24.020. Maximum speed.
Sec. 11.24.030. Authorized emergency vehicle exempted.
Sec. 11.24.040. Speed limit on streets described in Section 11.96.010.
Sec. 11.24.050. Speed contest prohibited—Violation deemed misdemeanor.

Sec. 11.24.010. Minimum speed.

(a) No person shall drive a motor vehicle at such slow speed as to impede the normal and reasonable movement of traffic except when reduced speed is necessary for safe operation or in compliance with law.

(1) Movement of traffic is impeded when:

(A) Vehicles behind the slow-moving vehicle are forced to slow or stop when it would otherwise be lawful for them to proceed;

(B) Vehicles at a traffic signal are unable to proceed through on a green light due to the slow speed of the impeding vehicle.

(b) Whenever the governing body determines on the basis of an engineering and traffic investigation that slow speeds on any part of a highway consistently impede the normal and reasonable movement of traffic, the governing body may determine and declare a minimum speed limit below which no person shall drive a vehicle except when necessary for safe operation or in compliance with law.
(Ord. No. 39-088 (part); Ord. No. 30-982 § 37)

Sec. 11.24.020. Maximum speed.

(a) No person shall drive a vehicle on a highway at a speed greater than is reasonable and prudent under the conditions then existing. In every event, speed shall be so controlled as may be necessary to avoid colliding with any person, vehicle or other conveyance on or entering the highway in compliance with legal requirements and the duty of all persons to use due care.

(b) Except when a special hazard exists that requires lower speed, the limits specified in this section or established as hereinafter authorized shall be maximum lawful speeds and no person shall drive a vehicle on a highway at a speed in excess of such maximum limits.

(1) No driver, when passing through a school speed zone in a school zone or a playground speed zone in a playground zone shall, during the hours posted, operate any vehicle at a speed in excess of that which is posted.

(2) The following speed shall be lawful, but any speed in excess of such limits shall be unlawful: Thirty miles per hour on all streets within the city limits other than those listed in Section 11.96.010 of this title and subsection (1) above.

(3) The following speed shall be lawful, but any speed in excess of such limits shall be unlawful: Thirty miles per hour on all streets within the city limits other than those listed in Section 11.96.010 of this title, and subsections (1) and (2) above.

(c) The driver of every vehicle shall, consistent with the requirements of subsection (a) of this section, drive at an appropriate reduced speed when approaching and crossing an intersection, or railroad grade crossing, when approaching and going around a curve, when approaching a hill crest, when traveling upon any narrow or winding roadway, and when special hazard exists with respect to pedestrians or other traffic or by reason of weather or highway conditions.

(1) No person shall drive a vehicle in excess of a temporarily reduced speed limit posted for a hazardous work area in or on the street and established by a temporary regulation created pursuant to Section 11.10.030.

(d) In every charge of violation of this section, except charges for violations of subsections (a) and (c) of this section, the complaint, also the summons, warrants or notice to appear, shall

*__Note—__Ordinance history; Ord. No. 29-319 §§ 39—41.

specify the speed at which the defendant is alleged to have driven, also the speed limit applicable at the location.
(Ord. No. 40-562 § 1)

Sec. 11.24.030. Authorized emergency vehicle exempted.

The speed limitations set forth in this chapter and other traffic ordinances of this city shall not apply to authorized emergency vehicles when responding to emergency calls and the drivers thereof sound audible signal by bell, siren or exhaust whistle. This provision shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the street or highway, nor shall it protect the driver of any such vehicle from the consequences of a reckless disregard of the safety of others. In no event shall an ambulance be driven at a speed greater than fifteen miles per hour over the posted speed limit.
(Ord. No. 32-942 (part); Ord. No. 30-982 § 39)

Sec. 11.24.040. Speed limit on streets described in Section 11.96.010.

It is hereby determined, upon the basis of an engineering and traffic investigation, that the speed permitted by state law upon those streets or portions thereof described in Section 11.96.010, is greater or less than is necessary for safe operation of vehicles thereon by reason of the designation and sign-posting of such streets as through streets, or by reason of widely spaced intersections. It is hereby declared that the speed limit upon those streets or portions thereof described in Section 11.96.010, except as provided in Section 11.20.150, shall be therein stated, which speeds so declared shall be effective at the time specified therein when signs are erected giving notice thereof. Any driver exceeding the schedule and posted speed limit shall be guilty of an infraction and shall be fined in an amount not to exceed $500.
(Ord. No. 35-382 (part); Ord. No. 48-825, § 1, 9-21-10; Ord. No. 51-093, § 2, 9-10-19)

Sec. 11.24.050. Speed contest prohibited—Violation deemed misdemeanor.

(a) Purpose of Act.

(1) The City Council finds and declares that motor vehicle racing, speed contests, drag racing, sideshow and exhibitions of speed or acceleration conducted in the city limits of Wichita are dangerous and illegal.

(2) Drag racing, sideshows, stunting and exhibitions of speed and acceleration pose an immediate threat to the health and safety of the public, interfere with pedestrian and vehicular traffic, create a public nuisance, and inhibit private business owners from enjoying the use of their property within the city.

(3) Illegal street racers accelerate to high speeds endangering oncoming traffic, pedestrians, or vehicles parked or moving nearby. Several streets in Wichita are known to law enforcement and the community as a ground for street racing. The police department receives numerous complaints regarding this activity on streets and in parking lots. The mere presence of spectators at these events fuels the illegal street racing and creates an environment in which these illegal activities can flourish.

(4) This Chapter is adopted to prohibit racing activities and to prohibit spectators at illegal street races. By discouraging spectators, the acts of organizing and participating in illegal street races will be discouraged and public safety enhanced.

(b) No person shall drive any vehicle except on a designated track or area built for such activity:

(1) In any race, speed competition or contest, drag race or acceleration contest, test of physical endurance, or sideshow, and no person shall in any manner participate in any such race, competition, contest, test, or sideshow.

(2) In a manner to display an exhibition of speed or acceleration.

(c) No person shall knowingly spectate any race, speed competition, drag race, acceleration contest, test of physical endurance or sideshow.

(d) Exceptions.

(1) Nothing in this section prohibits law enforcement officers and/or their agents from being spectators at illegal motor vehicle drag races, speed contests, sideshows, motorcycle stunting, reckless driving, or exhibitions of speed in the course of their official duties.

(2) The provisions of this section shall not apply to races or sideshows which are part of a community event or festival license pursuant to Chapter 3.11 of the Code of the City of Wichita or to such activities which occur on public or private racetracks intentionally built and utilized for such activities.

(e) Penalty.

(1) Penalty for violation of Subsection (b)(1). Every person convicted of violating Subsection (b)(1) is guilty of a misdemeanor and upon conviction shall be punished by a fine of not more than one thousand five hundred dollars and/or six months imprisonment. Upon a first conviction of a violation of Subsection (b)(1), the court shall impose a fine not less than two hundred fifty dollars and mandatory monitored house arrest of not less than seven consecutive days. Upon a second conviction of a violation of Subsection (b)(1) or any equivalent of K.S.A. 8-1565, the court shall impose a fine of not less than five hundred dollars and a mandatory monitored house arrest of not less than 30 consecutive days. Upon a third or a subsequent conviction of a violation of Subsection (b)(1) or any equivalent of K.S.A. 8-1565, the court shall impose a fine of not less than one thousand dollars and a mandatory monitored house arrest sentence of not less than 90 consecutive days. The fines and minimum sentences are mandatory and may not be remitted or suspended by the court. At the judge's discretion the mandatory minimum sentence of house arrest may be served in the Sedgwick County Jail or work release.

(2) Penalty for violation of Subsection (b)(2). Every person convicted of violating Subsection (b)(2) is guilty of a misdemeanor and upon conviction shall be punished by a fine of not to exceed $1,500 dollars and not less than $250 and/or 6 months imprisonment.

(3) Penalty for violation of Subsection (c). Every person convicted of violating Subsection (c) of this section is guilty of an infraction and upon conviction shall be punished by a fine not to exceed $1,500 and not less than $250.

(f) Impound.

(1) The City of Wichita declares that any vehicle used during the commission of a violation of Section 11.24.050(b)(1) of the Code of the City of Wichita is a public nuisance per se, and while in the possession of driver, the vehicle constitutes a continuing danger to the comfort, repose, health or safety of City residents, visitors, businesses and neighborhoods, rendering them insecure in life and in the use of property. Due to the existence of such public nuisance, the City declares it is necessary to provide for the impoundment of such vehicle used by driver and to hold the vehicle from further use by the involved driver for the mandatory holding period provided for by this section. The purpose of such impoundment and mandatory holding period is to abate the public nuisance per se declared herein. The procedures for such impoundment are set forth in this section.

(2) If probable cause is found that a person engaged in a violation of Subsection (b)(1) of this section, the driver of the vehicle shall be arrested for the violation and transported to Sedgwick County Jail. If the arrested party has no prior convic-

tions for violations of this code or violations of racing in other jurisdictions, the vehicle shall be impounded and eligible for release after 72 hours. The driver and/or registered owner is responsible for all tow and impound fees as required by Section 11.97.030. As required by state law, the Wichita Police Department shall notify the driver at the time of arrest where the car is being impounded.

(3) Upon arrest following a prior conviction of Subsection (b)(1) of this Chapter, the driver of the vehicle shall be arrested for the violation and transported to Sedgwick County Jail. The offending vehicle shall be impounded for 20 consecutive days. The driver and/or registered owner is responsible for all tow, storage and impound fees as required by Section 11.97.030.

(4) If probable cause of a violation of Section 11.24.050(b)(1) exists, and the car is abandoned or the suspect was not apprehended, the vehicle shall be impounded and eligible for release after 72 hours. The registered owner is responsible for all tow and impound fees as required by Section 11.97.030. The owner will be notified of the impoundment by mail the following business day at the address listed on the vehicle registration.

(5) Upon a written request to the Municipal Court within five business days of the impound, the arrested driver or the registered owner of the vehicle may contest the impound and a hearing shall be held in accordance with the provisions of Section 11.97.040 of the Code of the City of Wichita. The impound shall be declared valid if there was probable cause of a violation of Subsection (b)(1) this Chapter. The judge may release the vehicle prior to the expiration of the mandatory impound if a substantial hardship is proven by the challenging party. If the court finds there was probable cause of a violation, the person retrieving the vehicle shall pay all costs associated with the impound prior to its release, even if the vehicle is released early.

(6) If the owner of the impounded vehicle fails to retrieve the vehicle from impound, the vehicle may be auctioned in accordance with K.S.A. 8-1101 et. seq.

(7) The final disposition of any criminal charge will not invalidate a tow or act as a basis for the return of any impound fees.

(g) Severability. The provisions of this Chapter are severable and should any such provision be declared unconstitutional or unenforceable, such declaration shall not affect any of the remaining provisions thereof.

(Ord. No. 39-088 (part); Ord. No. 51-640, § 6, 9-28-21)

CHAPTER 11.28. TURNING*

Sec. 11.28.010. "U" turns prohibited—Where.
Sec. 11.28.020. Disobedience of signs or signals prohibited.
Sec. 11.28.030. Required position and method of turning vehicles.
Sec. 11.28.040. Turning movements and required signals.
Sec. 11.28.050. Hand and arm signals—Lights.
Sec. 11.28.060. Left turn—Driver to yield.

Sec. 11.28.010. "U" turns prohibited—Where.

(a) It is unlawful for the driver of any vehicle to turn the vehicle so as to proceed in the opposite direction unless such movement can be made in safety and without interfering with other traffic.

(b) No vehicle shall be turned so as to proceed in the opposite direction:

(1) Upon any curve, or upon the approach to, or near the crest of a grade, where the vehicle cannot be seen by the driver of any other vehicle approaching from either direction within five hundred feet;

(2) At any other location when official traffic control devices giving notice of such prohibition are erected upon or at the entrances to the highway or part thereof affected as may be most appropriate.

(Ord. No. 41-413 § 1)

Sec. 11.28.020. Disobedience of signs or signals prohibited.

Whenever authorized signs are erected indicating that no right, left, through movement, no turns, or "U" turn is permitted, no driver of a vehicle shall disobey the directions of any such sign. When authorized marks, buttons or other indications are placed within an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the directions of such indications.

(Ord. No. 30-982 § 43)

*__Note—__Ordinance history; Ord. No. 29-319 §§ 42—49.

Sec. 11.28.030. Required position and method of turning vehicles.

(a) The driver of a vehicle intending to turn shall do so as follows:

(1) *Right turns.* Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

(2) *Left turns.* The driver of a vehicle intending to turn left shall approach the turn in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle. Whenever practicable, a left turn at an intersection shall be made to the left of the center of the intersection, and any left turn shall be made so as to leave the intersection or other location in the extreme left-hand lane lawfully available to traffic moving in the same direction as such vehicle on the roadway being entered.

(b) *Two-way left turn lanes.* Where a special lane for making left turns by drivers proceeding in opposite directions has been indicated by official traffic control devices: (1) A left turn shall not be made from any other lane; (2) a vehicle shall not be driven in the lane except when preparing for or making a left turn from or into the roadway or when preparing for or making a U-turn when otherwise permitted by the law.

(c) The governing body may cause official traffic control devices to be placed and thereby require and direct that a different course from that specified in this section be traveled by vehicles turning, and when such devices are so placed no driver of a vehicle shall turn a vehicle other than as directed and required by such device.

(Ord. No. 50-318 § 1, 9-13-16)

Editor's note—Ord. No. 50-318 § 1, Sept. 13, 2016, repealed the former section 11.28.030, and enacted a new section as set out herein. The former section 11.28.030 pertained to procedure at intersection and derived from Ord. No. 30-982 § 44.

Sec. 11.28.040. Turning movements and required signals.

(a) No person shall turn a vehicle or move right or left upon a roadway unless and until such movement can be made with reasonable safety, nor without giving an appropriate signal in the manner hereinafter provided.

(b) A signal of intention to turn or move right or left when required shall be given continuously during not less than the last one hundred feet traveled by the vehicle before turning.

(c) No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is opportunity to give such signal.

(d) The signals required on vehicles by Section 11.60.150 of this title, shall not be flashed on one side only on a disabled vehicle, flashed as a courtesy or "do pass" signal to operators of other vehicles approaching from the rear, nor be flashed on one side only of a parked vehicle except as may be necessary for compliance with this section.
(Ord. No. 31-232 § 10; prior Ord. No. 30-982 § 45; Ord. No. 49-184 § 1, 1-24-2012)

Sec. 11.28.050. Hand and arm signals—Lights.

(a) All signals herein required to be given by hand and arm shall be given from the left side of the vehicle in the following manner and such signals shall indicate as follows:

(1) *Left turn*—Hand and arm extended horizontally;

(2) *Right turn*—Hand and arm extended upward;

(3) *Stop or decrease of speed*—Hand and arm extended downward.

(b) When a motor vehicle is equipped with illuminated directional signal devices front and rear, and stop signal lamp or lamps on rear, such devices may be used in lieu of such hand and arm signals when in proper working order.

(c) Any stop or turn signal when required herein shall be given either by means of the hand and arm or by a signal lamp or lamps except as otherwise provided in subsection (d).

(d) Any motor vehicle in use on a highway shall be equipped with, and required signal shall be given by, signal lamps when the distance from the center of the top of the steering post to the left outside limit of the body, cab or load of such motor vehicle exceeds twenty-four inches, or when the distance from the center of the top of the steering post to the rear limit of the body or load thereof exceeds fourteen feet. The latter measurement shall apply to any single vehicle, also to any combination of vehicles.
(Ord. No. 31-232 § 11; prior Ord. No. 30-982 § 46)

Sec. 11.28.060. Left turn—Driver to yield.

The driver of a vehicle intending to turn left within an intersection or into any alley, private road or driveway shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection, or so close to the intersection, alley, private road or driveway as to constitute an immediate hazard.
(Ord. No. 39-089 (part))

CHAPTER 11.32. ONE-WAY STREETS AND ALLEYS*

Sec. 11.32.010. One-way roadway—Rotary traffic island.

Sec. 11.32.010. One-way roadway—Rotary traffic island.

(a) The governing body may designate any highway, roadway, part of a roadway or specific lanes, streets, alleys or other ways upon which vehicular traffic shall proceed in one direction at all or such times as shall be indicated by official traffic control devices.

(b) Upon a roadway so designated for one-way traffic, a vehicle shall be driven only in the direction designated at all or such times as shall be indicated by official traffic control devices.

(c) A vehicle passing around a rotary traffic island shall be driven only to the right of such island.
(Ord. No. 31-232 § 8; prior Ord. No. 30-982 § 49)

*__Note—__Ordinance history; Ord. No. 19-139 §§ 66—68.

CHAPTER 11.36. SPECIAL STOPS*

Sec. 11.36.010. Through streets designated.
Sec. 11.36.020. Signs at through streets.
Sec. 11.36.030. Other intersections where stop or yield required.
Sec. 11.36.040. Stop signs—Yield signs.
Sec. 11.36.050. Emerging from alley, driveway, building.
Sec. 11.36.060. Crossing railroad tracks.
Sec. 11.36.070. Entering intersection, crosswalk or railroad grade crossing.
Sec. 11.36.080. Obedience to signal indicating approach of train.

Sec. 11.36.010. Through streets designated.

Those streets and parts of streets described in Section 11.96.030 are hereby declared to be through streets.
(Ord. No. 30-982 § 50)

Sec. 11.36.020. Signs at through streets.

(a) The governing body may designate through highways and erect stop signs or yield signs at specified entrances thereto, or may designate any intersection as a stop intersection or as a yield intersection and erect stop signs or yield signs at one or more entrances to such intersection.

(b) Every stop sign and every yield sign shall be erected as near as practicable to the nearest line of the crosswalk on the near side of the intersection or, if there is no crosswalk, then as near as practicable to the nearest line of the intersecting roadway.

(c) Except when directed to proceed by a police officer or traffic-control signal, every driver of a vehicle approaching a stop intersection indicated by a stop sign shall stop before entering the crosswalk on the near side of the intersection or, in the event there is no crosswalk, shall stop at a clearly marked stop line, but if none, then at a point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering the intersection.

(d) The driver of a vehicle approaching a yield sign if required for safety to stop shall stop before entering the crosswalk, at a clearly marked stop line, but if none, then at a point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway.
(Ord. No. 32-279 (part); Ord. No. 30-982 § 51)

Sec. 11.36.030. Other intersections where stop or yield required.

The city traffic engineer is hereby authorized to determine and designate intersections where particular hazard exists upon other than through streets and to determine (a) whether vehicles shall stop at one or more entrances to any such intersection, in which event he shall cause to be erected a stop sign at every such place where a stop is required, or (b) whether vehicles shall yield the right-of-way to vehicles on a different street at such intersections, as prescribed in paragraph (a) of Section 11.36.040, in which event he shall cause to be erected a yield sign at every place where obedience thereto is required.
(Ord. No. 30-982 § 52)

Sec. 11.36.040. Stop signs—Yield signs.

(a) Preferential right-of-way may be indicated by stop signs or yield signs as authorized in Section 11.36.020.

(b) Except when directed to proceed by a police officer, every driver of a vehicle approaching a stop sign shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or, if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering it. After having stopped, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time when such driver is moving across or within the intersection, or junction of roadways. Such driver shall yield the right-of-way to pedestrians within an adjacent crosswalk.

*__Note—__Ordinance history; Ord. No. 29-319 §§ 51—60.

(c) The driver of a vehicle approaching a yield sign shall, in obedience to such sign, slow down to a speed reasonable for the existing conditions and, if required for safety to stop, shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or if none, than at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering it. After slowing or stopping, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time such driver is moving across or within the intersection, or junction of roadways. Such driver shall yield the right-of-way to pedestrians within an adjacent crosswalk. If a driver is involved in a collision with a vehicle in the intersection or junction of roadways or with a pedestrian in an adjacent crosswalk, after driving past a yield sign without stopping, such collision shall be deemed prima facie evidence of the driver's failure to yield the right-of-way.
(Ord. No. 30-982 § 53; Ord. No. 48-332, § 1, 6-2-09)

Sec. 11.36.050. Emerging from alley, driveway, building.

Every operator of a vehicle emerging from an alley, building or building entrance, private road or driveway shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across such alley, building or building entrance, road or driveway, or in the event there is no sidewalk area, shall stop at the point nearest the street to be entered where the driver has a view of approaching traffic thereon, and shall yield the right-of-way to all approaching vehicles and pedestrians who are so close as to constitute an immediate hazard.
(Ord. No. 31-232 § 14; Ord. No. 30-982 § 54)

Sec. 11.36.060. Crossing railroad tracks.

(a) The driver of any motor vehicle carrying passengers for hire, or of any school bus carrying any school child, or of any vehicle carrying explosive substances or flammable liquids as a cargo or part of a cargo, or of any vehicle designed and used for the carrying of flammable liquids, before crossing at grade any track or tracks of a railroad not equipped with visible electric or mechanical signal devices, crossing gates or human flagmen, shall stop such vehicle within fifty feet but not less than fifteen feet from the nearest rail of such railroad, and while so stopped shall listen and look in both directions along such track for any approaching train and for signals indicating the approach of a train, except as hereinafter provided, and shall not proceed until he can do so safely. After stopping as required herein and upon proceeding when it is safe to do so, the driver of any vehicle shall cross only in such gear of the vehicle that there will be no necessity for changing gears while traversing such crossing, and the driver shall not shift gears while crossing the track or tracks.

(b) No stop need be made at any such crossing where a police officer directs traffic to proceed.

(c) This section shall not apply to municipal buses or taxicabs.
(Ord. No. 39-090 (part); Ord. No. 32-943; Ord. No. 31-232 § 13; Ord. No. 30-982 § 55)

Sec. 11.36.070. Entering intersection, crosswalk or railroad grade crossing.

No driver shall enter an intersection or marked crosswalk, or drive onto any railroad grade crossing, unless there is sufficient space on the other side of the intersection, crosswalk or railroad grade crossing to accommodate the vehicle he is operating without obstructing the passage of other vehicles, pedestrians or railroad trains, notwithstanding any traffic control signal indication to proceed.
(Ord. No. 33-463)

Sec. 11.36.080. Obedience to signal indicating approach of train.

(a) Whenever any person driving a vehicle approaches a railroad grade crossing, the driver of such vehicle shall stop within fifty feet but not less than fifteen feet from the nearest rail of

such railroad, and shall not proceed until he can do so safely. The foregoing requirements shall apply when:

(1) A clearly visible electric or mechanical signal device gives warning of the immediate approach of a railroad train or other on-track equipment;

(2) A crossing gate is lowered or when a human flagman gives or continues to give a signal of the approach or passage of a railroad train or other on-track equipment;

(3) A railroad train or other on-track equipment approaching within approximately one thousand five hundred feet of the highway crossing emits a signal audible from such distance and such railroad train or other on-track equipment, by reason of its speed or nearness to such crossing, is an immediate hazard;

(4) An approaching railroad train or other on-track equipment is plainly visible and is in hazardous proximity to such crossing.

(b) No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed.
(Ord. No. 39-090 (part); Ord. No. 51-093, § 3, 9-10-19)

CHAPTER 11.37. TRAFFIC REGULATIONS FOR FUNERAL PROCESSIONS

Sec. 11.37.060. Funeral processions—Other drivers to yield right-of-way.
Sec. 11.37.070. Funeral processions—Right-of-way, exceptions.
Sec. 11.37.010. Funeral procession—Definition.
Sec. 11.37.020. Funeral escort vehicle—Designation as emergency vehicle required.
Sec. 11.37.030. Funeral escort vehicles and operators.
Sec. 11.37.040. Funeral processions—Number of escort vehicles required.
Sec. 11.37.050. Funeral processions—Lights and hazard warning lamps required.
Sec. 11.37.060. Funeral processions—Other drivers to yield right-of-way.
Sec. 11.37.070. Funeral processions—Right-of-way, exceptions.
Sec. 11.37.080. Duty of drivers leaving a funeral procession.
Sec. 11.37.090. Funeral processions—Speed.
Sec. 11.37.095. Funeral processions—Distance.
Sec. 11.37.100. Funeral processions prohibited during certain hours.
Sec. 11.37.110. Funeral escort vehicles—Reckless operation.

Sec. 11.37.010. Funeral procession—Definition.

For the purposes of this chapter, a funeral procession is defined as a group of vehicles moving along the roadway in an orderly manner in connection with funeral ceremonies.
(Ord. No. 46-202, § 1, 7-20-04)

Sec. 11.37.020. Funeral escort vehicle—Designation as emergency vehicle required.

No person shall engage in the operation of a vehicle while escorting a funeral procession within the corporate limits of the city unless such vehicle has been designated as an authorized emergency vehicle pursuant to the statutes of the State of Kansas, and unless such vehicle is equipped with the appropriate lighting and other equipment mandated for authorized emergency vehicles by state law. For the purposes of this chapter, a person will be deemed to be escorting a funeral procession if the person is hired to direct or control traffic for a funeral procession while escorting or accompanying the procession through the streets and highways of the city.
(Ord. No. 46-202, § 2, 7-20-04)

Sec. 11.37.030. Funeral escort vehicles and operators.

(a) Any vehicle being operated as a funeral escort vehicle shall be clearly and visibly marked with the words "Funeral Escort" in letters at least four (4) inches in height on both the driver's and passenger's side of said vehicle.

(b) No funeral escort vehicle shall be equipped with any decal, placard, sign or any insignia which is similar to, or which could be confused with, official police insignia, nor shall any such vehicle display the word "Police," "Official" or "Officer". Any vehicle used as a funeral escort vehicle shall be subject to inspection at any time by the chief of police or the chief's authorized designee.

(c) No operator or passenger of a vehicle which is escorting a funeral procession shall wear any uniform that is the same color or design as those worn by officers of the Wichita Police Department, nor any badge or cap that resembles an official police officer badge or cap, or displays the word "Police," "Official" or "Officer." Further, operators of funeral escort vehicles shall not carry firearms of any kind.
(Ord. No. 46-202, § 3, 7-20-04)

Sec. 11.37.040. Funeral processions—Number of escort vehicles required.

Every funeral procession shall have no less than three (3) funeral escort vehicles accompanying the procession through the streets and highways of the city.
(Ord. No. 46-202, § 4, 7-20-04)

Sec. 11.37.050. Funeral processions—Lights and hazard warning lamps required.

The driver of every vehicle in a funeral procession shall maintain lighted headlights and shall turn on the vehicle hazard warning lamps on

such driver's vehicle at all times the vehicle is being operated as a part of a funeral procession. (Ord. No. 46-202, § 5, 7-20-04)

Sec. 11.37.060. Funeral processions—Other drivers to yield right-of-way.

A funeral escort vehicle which is operating as an emergency vehicle pursuant to state law and as required by this Code shall have the right-of-way over all other vehicles as set forth in Section 11.16.100 of this Code and any amendments thereto. Upon the immediate approach of a funeral procession, the driver of every other vehicle shall yield the right-of-way, immediately drive to a position parallel to and as close as possible to the right-hand edge or curb of the roadway clear of any intersection and shall stop and remain in such position until the funeral procession has passed. No driver shall drive between, alongside nor pass the vehicles comprising a funeral procession while they are in motion, except as otherwise directed by a police officer. This provision shall not apply to authorized emergency vehicles as designated by state law, nor shall the passing prohibited in this subsection apply to limited access highways.
(Ord. No. 46-202, § 6, 7-20-04)

Sec. 11.37.070. Funeral processions—Right-of-way, exceptions.

(a) Each vehicle which is participating in a lawfully escorted funeral procession and is identified by lighted headlamps and flashing vehicle hazard warning lamps as required by this chapter shall have the right-of-way over all other vehicles at any intersection, regardless of official traffic control devices. However, no driver in a funeral procession shall proceed through a red light or operate contrary to any traffic control device unless directed to do so by the authorized funeral escort(s).

(b) Drivers of vehicles in funeral processions shall yield the right-of-way to all other emergency vehicles as required by law, and further, shall at all times be subject to and obey the lawful order of any police officer.

(c) Operators of vehicles in a funeral procession shall exercise due care when participating in a funeral procession and avoid colliding with any other vehicle or pedestrian in accordance with K.S.A. 8-1535 and amendments thereto; and

(d) Operators of vehicles in a funeral procession shall not have the right-of-way at an intersection if the vehicle is more than 300 feet behind the immediately preceding vehicle in the funeral procession.
(Ord. No. 46-202, § 7, 7-20-04; Ord. No. 51-887, § 1, 6-28-22)

Sec. 11.37.080. Duty of drivers leaving a funeral procession.

The driver of any vehicle leaving a funeral procession shall do so only by making a right hand turn, and only when such turn can be made safely. At no time shall a driver of a vehicle in a funeral procession leave such procession by making a left hand turn, unless directed to do so by any police officer or authorized funeral escort.
(Ord. No. 46-202, § 8, 7-20-04)

Sec. 11.37.090. Funeral processions—Speed.

Vehicles in a funeral procession shall proceed at a maximum speed of 10 miles per hour below the posted speed limit on any public street or highway, however, if a funeral procession is traveling on a highway or interstate with a posted minimum speed limit, the funeral procession shall proceed at the posted minimum speed limit.
(Ord. No. 46-202, § 9, 7-20-04)

Sec. 11.37.095. Funeral processions—Distance.

All vehicles in a funeral procession shall follow the proceeding vehicle in the funeral procession as closely as is practical and safe.
(Ord. No. 51-887, § 2, 6-28-22)

Editor's note—Ord. No. 51-887, § 2, adopted June 28, 2022, set out provisions intended for use as § 11.37.100. Inasmuch as there were already provisions so designated, and at the editor's discretion, these provisions have been included as § 11.37.095.

Sec. 11.37.100. Funeral processions prohibited during certain hours.

Funeral processions using any arterial street shall not start between the hours of 7:00 a.m. and 9:00 a.m. or between the hours of 4:30 p.m. and 6:30 p.m. on Monday through Friday of any week.
(Ord. No. 46-202, § 10, 7-20-04)

Sec. 11.37.110. Funeral escort vehicles—Reckless operation.

No driver of a funeral escort vehicle shall operate said vehicle in a reckless or negligent manner, which operation unreasonably endangers the safety of any person or the public at large, or causes an unreasonable risk of damage to either public or private property.
(Ord. No. 46-202, § 11, 7-20-04)

CHAPTER 11.38. DRIVING RULES AND REGULATIONS*

Sec. 11.38.010. Advertising vehicles.
Sec. 11.38.020. Obstructing driver's view, control.
Sec. 11.38.030. Following fire apparatus.
Sec. 11.38.040. Driving over fire hose.
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Sec. 11.38.270. Right-of-way intersections.
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Sec. 11.38.320. Liability of driver.
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Sec. 11.38.340. Vehicle door opening.
Sec. 11.38.350. Operation of snowmobiles on streets.
Sec. 11.38.355. Operation of all-terrain vehicles; where; when; exceptions.
Sec. 11.38.360. Televisions, headphones.
Sec. 11.38.370. Child passenger safety act.
Sec. 11.38.380. Loud sound amplification systems in vehicles prohibited—Penalty.
Sec. 11.38.390. Unlawful text messaging.

*__Note—__Ordinance history; Ord. No. 29-319 §§ 61—91.

Sec. 11.38.010. Advertising vehicles.

No person without a properly issued license by the license collector shall operate any vehicle on any street for the primary purpose of advertising. Such operation shall be in conformance with the provisions of Title 3.
(Ord. No. 30-982 § 58)

Sec. 11.38.020. Obstructing driver's view, control.

(a) No person shall drive a vehicle when it is so loaded as to obstruct the view of the driver to the front or sides of the vehicle or as to interfere with the driver's control of the driving mechanism of the vehicle.

(b) No passenger in a vehicle shall ride in such position as to interfere with the operator's view ahead or to the sides, or to interfere with his control of the driving mechanism of the vehicle.
(Ord. No. 30-982 § 59)

Sec. 11.38.030. Following fire apparatus.

(a) The driver of any vehicle other than one on official business shall not follow any fire apparatus traveling in response to a fire alarm closer than five hundred feet or drive into or park such vehicle within the block where fire apparatus has stopped in answer to a fire alarm.

(b) Every person convicted of violating any provision of this section is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars or by imprisonment for not more than one year, or by fine and imprisonment.
(Ord. No. 32-944 (part); Ord. No. 30-982 § 60)

Sec. 11.38.040. Driving over fire hose.

(a) No vehicle shall be driven over any unprotected hose of a fire department when laid down on any public street, private roadway or

private driveway, to be used at any fire or alarm of fire, without the consent of the fire department official in command.

(b) Every person convicted of violating the provisions of this section is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars, or by imprisonment for not more than one year, or by both such fine and imprisonment.
(Ord. No. 39-092 (part); Ord. No. 32-944 (part); Ord. No. 30-982 § 61)

Sec. 11.38.050. Street barriers.

Whenever any street or alley or part thereof is closed for repair, rebuilding, construction or reconstruction and suitable warning signs and barricades in accordance with "The Barricade Manual" published by the traffic engineering section of the engineering department of the City of Wichita, March, 1981, which is included herein by reference and made a part hereof, shall be erected at all intersections of the closed street or alley and all other streets and alleys or at any other locations as set out in said manual, it is unlawful for any person or operator without authority from the proper official to:

(a) Destroy or remove any barricade, warning sign, light or torch used to close the street or alley or warn the public of the closing;

(b) Drive on that portion of the street or alley that is closed; provided, however, that nothing in this section shall be construed as prohibiting the regular authorities of the city, state or federal government from having free access to the work at all times.

(Ord. No. 39-092 (part))

Sec. 11.38.060. Depositing harmful objects on streets.

(a) No person shall throw or deposit upon any highway any glass bottle, glass, nails, tacks, wire, cans or any other substance likely to injure any person, animal or vehicle upon such highway.

(b) Any person who drops, or permits to be dropped or thrown, upon any highway any destructive or injurious material shall immediately remove the same or cause it to be removed.

(c) Any person removing a wrecked or damaged vehicle from a highway shall remove any glass or other injurious substance dropped upon the highway from the vehicle.

(d) No vehicle shall be driven or moved on any highway unless the vehicle is so constructed or loaded as to prevent any of its load from dropping, sifting, leaking or otherwise escaping therefrom, except that sand may be dropped for the purpose of securing traction, or water or other substance may be sprinkled on a roadway in cleaning or maintaining such a roadway.

(e) Every person convicted of violating any provision of this section is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars, or by imprisonment for not more than one year, or by both such fine and imprisonment.
(Ord. No. 32-944 (part); Ord. No. 30-982 § 63)

Sec. 11.38.070. Backing vehicles.

(a) The driver of a vehicle shall not back the same unless such movement can be made with safety and without interfering with other traffic.

(b) The driver of any vehicle parked at an angle to the curb shall, subject to the limitations of this section, back such vehicle into the nearest travelled portion of the roadway so as not to obstruct oncoming traffic.

(c) The driver of a vehicle shall not back the same upon any shoulder or roadway of any controlled access highway.
(Ord. No. 39-092 (part); Ord. No. 30-982 § 64)

Sec. 11.38.080. Driving on sidewalk.

The driver of a vehicle shall not drive on any sidewalk or sidewalk area except at a permanent or temporary driveway open and suitable for the purpose.
(Ord. No. 39-092 (part))

Sec. 11.38.090. Attaching smaller vehicles to motor vehicles.

No person riding upon any motorcycle, moped, bicycle, coaster, sled, roller skates or any toy vehicle shall attach the same or himself to any moving vehicle upon any roadway.
(Ord. No. 39-092 (part))

Sec. 11.38.100. Avoidance of traffic-control devices.

No person shall utilize the entrance or driveway of any private property within one hundred fifty feet of any street intersection for the purpose of avoiding or circumventing a traffic-control device.
(Ord. No. 39-092 (part))

Sec. 11.38.110. Passengers—Unlawful when.

(a) It is unlawful for any person to ride on any vehicle or upon any portion thereof not designated or intended for the use of passengers when the vehicle is in motion. It is unlawful for the operator of any vehicle to allow any person to ride on any vehicle or upon any portion thereof not designed or intended for the use of passengers when the vehicle is in motion. This provision shall not apply to an employee engaged in necessary discharge of duty.

(b) It is unlawful for any person operating a motor-driven cycle to permit any person to ride with him on such vehicle as a passenger or rider except where the motor-driven cycle is equipped with a sidecar or tandem seat with a foot rest for a passenger. Further it is unlawful for more than one person to occupy or ride in the sidecar or tandem seat at any one time.
(Ord. No. 39-092 (part))

Sec. 11.38.130. Reserved.

Editor's note—Formerly, said section pertained to Funeral procession—Driving through prohibited and derived from Ord. No. 39-092 (part).

Sec. 11.38.140. Reserved.

Editor's note—Ord. No. 50-174 § 1, adopted April 19, 2016, repealed section 11.38.140, which pertained to refusals of alcohol testing and derived from Ord. No. 49-294 § 1, adopted June 26, 2012.

Sec. 11.38.150. Driving under the influence of alcohol and/or drugs unlawful—Penalty.

(a) No person shall operate or attempt to operate any vehicle within the city while:

(1) The alcohol concentration in the person's blood or breath, as measured within three hours of the time of operating or attempting to operate a vehicle is .08 or more;

(2) Under the influence of alcohol to a degree that renders the person incapable of safely driving a vehicle;

(3) The alcohol concentration in the person's blood or breath as shown by any competent evidence is .08 or more. For the purposes of this section, "any competent evidence" includes (1) Alcohol concentration tests obtained from samples taken three hours or more after the operation or attempted operation of a vehicle, and (2) readings obtained from a partial alcohol concentration test on a breath testing machine;

(4) Under the influence of any drug or combination of drugs to a degree that renders the person incapable of safely driving a vehicle; or

(5) Under the influence of a combination of alcohol and any drug or drugs to a degree that renders the person incapable of safely driving a vehicle.

(b) Violation of this section is a misdemeanor. Upon a first conviction of a violation of this section, a person shall be sentenced to not less than 48 consecutive hours nor more than six months imprisonment or, in the court's discretion, one hundred hours of public service, and fined not less than $750.00 nor more than $1,000.00. The person convicted shall serve at least 48 consecutive hours' imprisonment or 100 hours of public service either before or as a condition of any grant of probation or suspension, reduction of sentence or parole. The court may place the person convicted under a house arrest program to serve the remainder of the sentence only after such person has served 48 consecutive hours' imprisonment.

(c) On a second conviction of a violation of this section, a person shall be sentenced to not less than 90 days nor more than one year imprisonment and fined not less than $1,250.00 nor more than $1,750.00. The person convicted shall serve at least five consecutive days' imprisonment before the person is granted probation, suspension or reduction of sentence or parole or is otherwise released. The five days' imprisonment mandated by this subsection may be served in a work release program only after such person has served 48 consecutive hours' imprisonment; provided, such work release program requires such person to return to confinement at the end of the each day in the work release program. The person convicted, if placed into a work release program, shall serve a minimum of 120 hours of confinement. Such 120 hours of confinement shall be a period of at least 48 consecutive hours of imprisonment followed by confinement hours at the end of and continuing to the beginning of the offender's work day. The court may place the person convicted under a house arrest program, to serve the five days' imprisonment mandated by this subsection only after such person has served 48 consecutive hours' imprisonment. The person convicted, if placed under house arrest, shall be monitored by an electronic monitoring device, which verifies the offender's location. The offender shall serve a minimum of 120 hours of confinement within the boundaries of the offender's residence. Any exceptions to remaining within the boundaries of the offender's residence provided for in the house arrest agreement shall not be counted as part of the 120 hours.

(d) On a third offense, unless such person has a prior conviction which occurred within the preceding ten years, not including any period of incarceration, the person convicted shall be sentenced to not less than 90 days nor more than one year's imprisonment and fined not less than $1,750.00 nor more than $2,500.00. The person convicted shall not be eligible for release on probation, suspension or reduction of sentence or parole until the person has served at least 90 days' imprisonment. The 90 days' imprisonment mandated by this subsection may be served in a work release program only after such person has served 48 consecutive hours' imprisonment, provided such work release program requires such person to return to confinement at the end of each day in the work release program. The person convicted, if placed into a work release program, shall serve a minimum of 2,160 hours of confinement. Such 2,160 hours of confinement shall be a period of at least 48 consecutive hours of imprisonment followed by confinement hours at the end of and continuing to the beginning of the offender's work day. The court may place the person convicted under a house arrest program, to serve the 90 days imprisonment mandated by this subsection only after such person has served 48 consecutive hours imprisonment, the person convicted, if placed under house arrest, shall be monitored by an electronic monitoring device, which verifies the offender's location. The offender shall serve a minimum of 2,160 hours of confinement within the boundaries of the offender's residence. Any exceptions to remaining within the boundaries of the offender's residence provided for in the house arrest agreement shall not be counted as part of the 2,160 hours.

(e) In addition, prior to sentencing for any conviction, the court shall order the person to participate in an alcohol and drug evaluation conducted by a provider in accordance with K.S.A. 8-1008, and amendments thereto. The person shall be required to follow any recommendations made by the provider after such evaluation, unless otherwise ordered by the court.

(f) If a person is charged with a violation of this section involving drugs, the fact that the person is or has been entitled to use the drug under the laws of this state shall not constitute a defense against the charge.

(g) Any person 18 years of age or older convicted of violating this section who had one or more children under the age of 18 years in the vehicle at the time of the offense shall have such person's punishment enhanced by one month of imprisonment. This imprisonment must be served consecutively to any other minimum mandatory penalty imposed for a violation of this section. Any enhanced penalty imposed shall not exceed the maximum sentence allowable by law. During

the service of the enhanced penalty, the judge may order the person on house arrest, work release or other conditional release.

(h) The court may establish the terms and time for payment of any fines, fees, assessments and costs imposed pursuant to this section. Any assessment and costs shall be required to be paid not later than 90 days after imposed, and any remainder of the fine shall be paid prior to the final release of the defendant by the court.

(i) In lieu of payment of a fine imposed pursuant to this section, the court may order that the person perform community service specified by the court. The person shall receive a credit on the fine imposed in an amount equal to $5.00 for each full hour spent by the person in the specified community service. The community service ordered by the court shall be required to be performed not later than one year after the fine is imposed or by an earlier date specified by the court. If by the required date the person performs an insufficient amount of community service to reduce to zero the portion of the fine required to be paid by the person, the remaining balance of the fine shall become due on that date.

(j) The court shall electronically report every plea of guilty or conviction of a violation of this section and every diversion agreement entered into in lieu of further criminal proceedings or a complaint alleging a violation of this section to the Kansas Bureau of Investigation Central Repository, including any finding regarding the alcohol concentration in the offender's blood or breath. Prior to sentencing under the provisions of this section, the court shall request and shall receive from the Division and Kansas Bureau of Investigation, a record of all prior convictions obtained against such person for any violations of any of the motor vehicle laws of the state.

(k) For the purpose of determining whether a conviction is a first or second, in sentencing under this section:

(1) 'Conviction' includes (A) Entering into a diversion agreement in lieu of further criminal proceedings on a complaint alleging an offense described in this section, Section 11.38.155 of the Code of the City of Wichita, K.S.A. 8-1567 or K.S.A. 8-2,411 and (B) conviction of a violation of an ordinance of a city in this state, a resolution of a county in this state or any law of another jurisdiction that would constitute an offense that is comparable to the offense described in (k)(7);

(2) Multiple convictions of any crime described in this section arising from the same arrest shall only be counted as one conviction;

(3) Only convictions for violating this section or the provisions of K.S.A. 8-1567 and amendments thereto occurring on or after July 1, 2001 shall be taken into account when determining the sentence to be imposed for a first or second offender. Nothing in this provision shall be construed as preventing any court from considering any convictions or diversion occurring during the person's lifetime in determining the sentence to be imposed within the limits provided for a first or second offense;

(4) Any convictions for a violation of the following sections which occurred during a person's lifetime shall be taken into account, but only convictions occurring when such person was 18 years of age or older: (A) driving a commercial motor vehicle under the influence, K.S.A. 8-2,144, and amendments thereto, or Section 11.38.155 of the Code of the City of Wichita; (B) operating a vessel under the influence of alcohol or drugs, K.S.A. 32-1131, and amendments thereto; (C) involuntary manslaughter while driving under the influence of alcohol or drugs, K.S.A. 21-3442, prior to its repeal, or subsection (a)(3) of K.S.A. 2011 Supp. 21-5405, and amendments thereto; and (D) aggravated battery as described in K.S.A. 2017 Supp. 21-5413(b)(3) or (b)(4), and amendments thereto; and (E) aggravated vehicular homicide, K.S.A. 21-3405a, prior to its repeal, or vehicular battery, K.S.A. 21-3405b, prior to its repeal, if the crime was committed while committing a violation of K.S.A. 8-1567, and amendments thereto;

(5) It is irrelevant whether an offense occurred before or after conviction for a previous offense.

(6) A person may enter into a diversion agreement in lieu of further criminal proceedings for a violation of this section, and amendments thereto, or a state statute or ordinance which prohibits the acts of this section, and amendments thereto, only once during the person's lifetime.

(7) For the purposes of determining whether an offense is comparable, the following shall be considered: (A) the name of the out-of-jurisdiction offense; (B) the elements of the out-of-jurisdiction offense; and (C) whether the out-of-jurisdiction offense prohibits similar conduct to the conduct prohibited by the closest approximate City of Wichita or Kansas offense.

(l) Suspension, restriction or suspension and restriction of the driving privileges of a person convicted of a violation of this section should be done in accordance with the provisions of K.S.A. 8-1014 and 8-1015, and amendments thereto.

(m) The court shall be authorized to order any person convicted of a violation of this section to pay restitution to any victim who has suffered loss due to the violation for which the person was convicted.

(n) No plea bargaining agreement shall be entered into nor shall any judge approve a plea bargaining agreement entered into for the purpose of permitting a person charged with a violation of this section to avoid the mandatory penalties established by this section. For the purpose of this subsection, entering into a diversion agreement established pursuant to K.S.A. 12-4413 et seq. and amendments thereto, shall not constitute plea bargaining.

(o) The alternatives set out in subsection (a) of this section may be pleaded in the alternative, and the city may, but shall not be required to, elect one or more of such alternatives prior to submission of the case of the fact finder.

(p) For the purpose of this section:

(1) 'Alcohol concentration' means the number of grams of alcohol per 100 milliliters of blood or per 210 liters of breath;

(2) 'Imprisonment' includes any restrained environment in which the court and law enforcement agency intend to retain custody and control of a defendant and such environment has been approved by the City Council.

(3) 'Drug' includes toxic vapors.

(4) 'Toxic vapors' are defined as including the following substances or products containing such substances: (a) Alcohols, including methyl, isopropyl, propyl or butyl; (b) Aliphatic acetates, including ethyl, methyl, propyl or methyl cellosolve acetate; (c) acetone; (d) Benzene (e) Carbon tetrachloride; (f) Cyclohexane; (g) Freons, including freon 11 and freon 12; (h) Hexane; (i) Methyl ethyl ketone; (j) Methyl isobutyl ketone (k) Naptha; (l) Perchlorethylene; (m) Toluene; (n) Trichloroethane; and/or Xylene.

(q) Should any court declare any subsection, clause or provision of this section to be unconstitutional, such decision shall affect only such subsection, clause or provision so declared unconstitutional and shall not affect any other subsection, clause or provision of this section.

(r) The Municipal Court shall have jurisdiction over a violation of this section occurring prior to July 1, 2011, and on or after July 1, 2006, which is concurrent with the jurisdiction of the district court for violation of K.S.A. 8-1567, and amendments thereto, notwithstanding that the elements of this section are the same as the elements of K.S.A. 8-1567, and amendments thereto, that would constitute, and be punished as a felony.

(Ord. No. 45-347 § 1; Ord. No. 44-998 § 1; Ord. No. 47-507 § 1, 6-26-07; Ord. No. 49-023 § 1, 6-21-2011; Ord. No. 49-292 § 1, 6-26-2012; Ord. No. 50-806, § 1, 6-26-18)

Sec. 11.38.155. Driving a commercial vehicle while under the influence of alcohol and/or drugs illegal—Penalty—Testing and reporting.

(a) No person shall operate any commercial motor vehicle, as defined in K.S.A. 8-2,128, and amendments thereto, within the city while:

(1) The alcohol concentration in the person's blood or breath, as shown by any competent evidence, including other competent evidence, as defined in paragraph (1) of subsection (f) of K.S.A. 8-1013, and amendments thereto, is .04 or more;

(2) The alcohol concentration in the person's blood or breath, as measured within three hours of the time of driving a commercial motor vehicle, is .04 or more; or

(3) Committing a violation of section 11.38.150 or K.S.A. 8-1567(a), and amendments thereto.

(b) Upon a first conviction of a violation of this section, a person shall be sentenced to not less than 48 consecutive hours nor more than six months imprisonment or, in the court's discretion, 100 hours of public service, and fined not less than $750.00 nor more than $1,000.00. The person convicted must serve at least 48 consecutive hours' imprisonment or 100 hours of public service either before or as a condition of any grant of probation or suspension, reduction of sentence or parole.

(c) On a second conviction of a violation of this section, a person shall be sentenced to not less than 90 days nor more than one year's imprisonment and fined not less than $1,250.00 nor more than $1,750.00. The person convicted must serve at least five consecutive days' imprisonment before the person is granted probation, suspension or reduction of sentence or parole or is otherwise released. The five days' imprisonment mandated by this subsection may be served in a work release program only after such person has served 48 consecutive hours' imprisonment, provided such work release program requires such person to return to confinement at the end of the each day in the work release program. The person convicted, if placed into a work release program, shall serve a minimum of 120 hours of confinement. Such 120 hours of confinement shall be a period of at least 48 consecutive hours of imprisonment followed by confinement hours at the end of and continuing to the beginning of the offender's work day. The court may place the person convicted under a house arrest program, to serve five days' imprisonment mandated by this subsection only after such person has served 48 consecutive hours' imprisonment. The person convicted, if placed under house arrest shall be monitored by an electronic monitoring device, which verifies the offender's location. The offender shall serve a minimum of 120 hours of confinement within the boundaries of the offender's residence. Any exceptions to remaining within the boundaries of the offender's residence provided for in the house arrest agreement, shall not be counted as part of the 120 hours.

(1) In addition, prior to sentencing for any conviction, the court shall order the person to participate in an alcohol and drug evaluation conducted by a provider in accordance with K.S.A. 8-1008, and amendment thereto. The person shall be required to follow any recommendations made by the provider after such evaluation, unless otherwise ordered by the court.

(d) Any person 18 years of age or older convicted of a violation of this section who had one or more children under the age of 18 years in the vehicle at the time of the offense shall have such persons' punishment enhanced by one month of imprisonment. This imprisonment shall be served consecutively to any other minimum mandatory penalty imposed for a violation of this section. Any enhanced penalty imposed shall not exceed the maximum sentence allowable by law. During the service of the enhanced penalty, the judge may order the person on house arrest, work release or other conditional release.

(e) If a person is charged with a violation of this section involving drugs, the fact that the person is or has been entitled to use the drug under the laws of this state shall not constitute a defense against the charge.

(f) The court may establish the terms and time for payment of any fines, fees, assessments and costs imposed pursuant to this section. Any assessment and costs shall be required to be paid not later than 90 days after imposed, and any remainder of the fine shall be paid prior to the final release of the defendant by the court.

(g) In lieu of payment of a fine imposed pursuant to this section, the court may order that the person perform community service specified by the court. The person shall receive a credit on the fine imposed in an amount equal to $5.00 for each full hour spent by the person in the specified community service. The community service ordered by the court shall be required to be performed not later than one year after the fine is imposed or any an earlier date specified by the court. If by the required date the person performs an insufficient amount of community service to reduce to zero the portion of the fine required to be paid by the person, the remaining balance of the fine shall become due on that date.

(h) The court shall electronically report every conviction of a violation of this section to the division. Prior to sentencing under the provisions of the section, the court shall request and shall receive from the: (1) Division a record of all prior convictions obtained against such person for any violation of any of the motor vehicle laws of this state; and (2) Kansas Bureau of Investigation central repository all criminal history record information concerning such person.

(i) For the purpose of determining whether a conviction is a first, second, third or subsequent conviction in sentencing under this section:

(1) 'Conviction' includes (A) Entering into a diversion agreement in lieu of further criminal proceedings on a complaint alleging a violation of a crime described in this section, Section 11.38.150 of the Code of the City of Wichita, K.S.A. 8-1567 or K.S.A. 8-2,411 and (B) conviction of a violation of an ordinance of a city in this state, a resolution of a county in this state or any law of another jurisdiction that would constitute an offense that is comparable to the offense described in this chapter.

(2) Only convictions for violating Section 11.38.150 or the provisions of K.S.A. 8-1567 and amendments thereto occurring on or after July 1, 2001 shall be taken into account when determining the sentence to be imposed for a first or second offender. Nothing in this provision shall be construed as preventing any court from considering any convictions or diversion occurring during the person's lifetime in determining the sentence to be imposed within the limits provided for a first or second offense;

(3) It is irrelevant whether an offense occurred before or after conviction for a previous offense.

(4) Any convictions for a violation of the following sections which occurred during a person's lifetime shall be taken into account, but only convictions occurring when such person was 18 years of age or older: (A) driving a commercial motor vehicle under the influence, K.S.A. 8-2,144, and amendments thereto, or Section 11.38.155 of the Code of the City of Wichita; (B) operating a vessel under the influence of alcohol or drugs, K.S.A. 32-1131, and amendments thereto; (C) involuntary manslaughter while driving under the influence of alcohol or drugs, K.S.A. 21-3442, prior to its repeal, or subsection (a)(3) or (a) (5) of K.S.A. 2011 Supp. 21-5405, and amendments thereto; and (D) aggravated battery as described in K.S.A. 2017 Supp. 21-5413(b)(3) or (b)(4), and amendments thereto; and (E) aggravated vehicular homicide, K.S.A. 21-3405a, prior to its repeal, or vehicular battery, K.S.A. 21-3405b, prior to its repeal, if the crime was committed while committing a violation of K.S.A. 8-1567, and amendments thereto;

(5) For the purposes of determining whether an offense is comparable, the following shall be considered: A. The name of the out-of-jurisdiction offense; B. the elements of the out-of-jurisdiction offense; and C. whether the out-of-jurisdiction offense prohibits similar conduct to the

conduct prohibited by the closest approximate City of Wichita or Kansas offense.

(j) For the purpose of this section:

(1) 'Alcohol concentration' means the number of grams of alcohol per 100 milliliters of blood or per 210 liters of breach.

(2) 'Imprisonment' shall include any restrained environment in which the court and law enforcement agency intend to retain custody and control of a defendant and such environment has been approved by the City Council and

(3) 'Drug' includes toxic vapors as such term is defined in K.S.A. 21-36a12, and amendments thereto.

(k) The court shall be authorized to order any person convicted of a violation of this section to pay restitution to any victim who has suffered loss due to the violation for which the person was convicted.

(l) No plea bargaining agreement shall be entered into nor shall any judge approve a plea bargaining agreement entered into for the purpose of permitting a person charged with a violation of this section to avoid the mandatory penalties established by this section. For the purpose of this subsection, entering into a diversion agreement established pursuant to K.S.A. 12-4413 et seq. and amendments thereto, shall not constitute plea bargaining.

(m) The alternatives set out in subsection (a) of this section may be pleaded in the alternative, and the city may, but shall not be required to, elect one or more of such alternatives prior to submission of the case of the fact finder.
(Ord. No. 41-587 § 2; Ord. No. 47-053 § 1, 6-27-06; Ord. No. 49-023 § 2, 6-21-11; Ord. No. 49-292 § 2, 6-26-12; Ord. No. 50-806, § 2, 6-26-18)

Sec. 11.38.157. Reserved.

Editor's note—Ord. No. 50-687, § 1, adopted Apr. 17, 2018, repealed § 11.38.157, which pertained to refusal to submit to a preliminary breath test—penalty, and derived from Ord. No. 45-359 § 1; and Ord. No. 49-023 § 3, adopted June 21, 2011.

Sec. 11.38.158. Transportation of alcoholic beverages in opened containers upon a highway or street unlawful; exceptions; report of prior convictions.

(a) As used in this section, "alcoholic beverage" means any alcoholic liquor, as defined by Section 4.04.010(b) of the Code of the City of Wichita and amendments thereto, or any cereal malt beverage, as defined by Section 4.04.010(i) of the Code of the City of Wichita and amendments thereto.

(b) No person shall transport in any vehicle upon a public highway, street or alley, within the corporate limits of the city, any alcoholic beverage unless such beverage is:

(1) In the original unopened package or container, the seal of which has not been broken and from which the original cap, cork or other means of closure has not been removed;

(2) (A) In the locked rear trunk or rear compartment, or any locked outside compartment which is not accessible to any person in the vehicle while it is in motion; or

(B) If a motor vehicle is not equipped with a trunk, behind the last upright seat or in an area not normally occupied by the driver or a passenger; or

(3) In the exclusive possession of a passenger in a vehicle which is a recreational vehicle, as defined by Section 11.04.271 of the Code of the City of Wichita and amendments thereto, or a bus, as defined by Section 11.04.025 of the Code of the City of Wichita and amendments thereto, who is not in the driving compartment of such vehicle or who is in a portion of such vehicle from which the driver is not directly accessible.

(c) Violation of this section is a misdemeanor punishable by a fine of not more than $200 or by imprisonment for not more than six months, or both.

(d) Except as provided in subsection (f) upon conviction or adjudication of a second or subsequent violation of this section, the judge, in addition to any other penalty or disposition ordered pursuant to law, shall suspend the person's driver's license or privilege to operate a motor vehicle on the streets and highways of this state for one year.

(e) Upon suspension of a license pursuant to this section, the court shall require the person to surrender the license to the court, which shall transmit the license to the division of motor vehicles of the department of revenue, to be retained until the period of suspension expires. At that time, the licensee may apply to the division for return of the license. If the license has expired, the person may apply for a new license, which shall be issued promptly upon payment of the proper fee and satisfaction of other conditions established by law for obtaining a license unless another suspension or revocation of the person's privilege to operate a motor vehicle is in effect.

(f) As used in this section, "highway" and "street" have the meanings provided by Section 11.04.355 of the Code of the City of Wichita and amendments thereto.

(g) In lieu of suspending the driver's license or privilege to operate a motor vehicle on the highways of this state of any person convicted of violating this section, as provided in subsection (d), the judge of the court in which such person was convicted may enter an order which places conditions on such person's privilege of operating a motor vehicle on the highways of this state, a certified copy of which such person shall be required to carry any time such person is operating a motor vehicle on the highways of this state. Any such order shall prescribe the duration of the conditions imposed, which in no event shall be for a period of more than one year for a second violation.

Upon entering an order restricting a person's license hereunder, the judge shall require such person to surrender such person's driver's license to the judge who shall cause it to be transmitted to the division of vehicles, together with a copy of the order. Upon receipt thereof, the division of vehicles shall issue without charge a driver's license which shall indicate on its face that conditions have been imposed on such person's privilege of operating a motor vehicle and that a certified copy of the order imposing such conditions is required to be carried by the person for whom the license was issued any time such person is operating a motor vehicle on the highways of this state. If the person convicted is a nonresident, the judge shall cause a copy of the order to be transmitted to the division and the division shall forward a copy of it to the motor vehicle administrator, of such person's state of residence. Such judge shall furnish to any person whose driver's license has had conditions imposed on it under this section a copy of the order, which shall be recognized as a valid Kansas driver's license until such time as the division shall issue the restricted license provided for in this section.

Upon expiration of the period of time for which conditions are imposed pursuant to this subsection, the licensee may apply to the division for the return of the license previously surrendered by such licensee. In the event such license has expired, such person may apply to the division for a new license, which shall be issued immediately by the division upon payment of the proper fee and satisfaction of the other conditions established by law, unless such person's privilege to operate a motor vehicle on the highways of this state has been suspended or revoked prior thereto. If any person shall violate any of the conditions imposed under this subsection, such person's driver's license or privilege to operate a motor vehicle on the highways of this state shall be revoked for a period of not less than 60 days nor more than one year by the judge of the court in which such person is convicted of violating such conditions.

(h) It shall be an affirmative defense to any prosecution under this section that an occupant of the vehicle other than the defendant was in exclusive possession of the alcoholic liquor.

(i) The court shall report to the division every conviction of a violation of this section or of a city ordinance or county resolution that prohibits the acts prohibited by this section. Prior to sentencing under the provisions of this section, the court

shall request and shall receive from the division a record of all prior convictions obtained against such person for any violations of any of the motor vehicle laws of this state.

(j) For the purpose of determining whether a conviction is a first, second or subsequent conviction in sentencing under this section:

(1) "Conviction" includes being convicted of a violation of an ordinance of any city, or resolution of any county, which prohibits the acts that this section prohibits;

(2) Only convictions occurring in the immediately preceding five years, including prior to the effective date of this act, shall be taken into account, but the court may consider other prior convictions in determining the sentence to be imposed within the limits provided for a first, second or subsequent offender, whichever is applicable; and

(3) It is irrelevant whether an offense occurred before or after conviction for a previous offense.

(Ord. No. 47-057 § 1, 6-27-06; Ord. No. 51-886, § 1, 6-28-22)

Sec. 11.38.160. Reckless driving—Penalty.

(a) Any person who drives any vehicle in wilful or wanton disregard for the safety of persons or property is guilty of reckless driving.

(b) Every person convicted of reckless driving shall be punished upon a first conviction by imprisonment for a period of not less than five days nor more than ninety days, or pay a fine of not less than twenty-five dollars nor more than five hundred dollars, or by both such fine and imprisonment, and on a second or subsequent conviction shall be punished by imprisonment for not less than ten days nor more than six months, or by a fine of not less than fifty dollars nor more than five hundred dollars, or by both such fine and imprisonment.

(Ord. No. 30-982 § 73)

Sec. 11.38.170. Careless driving.

(a) No person shall operate or halt any vehicle in such a manner as to indicate a careless or heedless disregard for the rights or safety of others, or in such a manner as to endanger, or be likely to endanger, any person or property. Any driver who does so shall be considered to be prima facie in violation of this section; provided, however, that this section shall not apply to a vehicle driven by a person upon property owned by him.

(b) No driver while driving shall engage in any other activity which interferes with the safe control of his vehicle.

(c) No person shall engage in any activity or commit any act which interferes with a driver's safe operation of a vehicle.

(Ord. No. 39-092 (part); Ord. No. 32-944 (part); Ord. No. 30-982 § 74)

Sec. 11.38.175. Inattentive driving.

Any driver whose vehicle, because of his driving error or negligent inattention, collides with another vehicle, a person or fixed object, shall be deemed guilty of inattentive driving and in violation of this section.

(Ord. No. 32-944 (part))

Sec. 11.38.180. Driving on down grades.

(a) The driver of any motor vehicle when traveling upon a down grade shall not coast with the gears of such vehicle in neutral.

(b) The driver of a commercial motor vehicle when traveling upon a down grade shall not coast with the clutch disengaged.

(Ord. No. 30-982 § 75)

Sec. 11.38.190. Driving on right side of roadway required—Exceptions.

(a) Upon all roadways of sufficient width a vehicle shall be driven upon the right half of the roadway, except as follows:

(1) When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movements;

(2) When an obstruction exists making it necessary to drive to the left of center of the highway; provided, that any person so doing shall yield the right-of-way to all vehicles traveling in the proper direction upon the unobstructed portion of the highway within such distance as to constitute an immediate hazard;

(3) Upon a roadway divided into three marked lanes for traffic under the rules applicable thereon; or

(4) Upon a roadway restricted to one-way traffic.

(b) Upon all roadways any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic, or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction, or when preparing for a left turn at an intersection or into a private road or driveway.

(c) Upon any roadway having four or more lanes for moving traffic and providing for two-way movement of traffic, no vehicle shall be driven to the left of the centerline of the roadway, except when authorized by official traffic control devices designating certain lanes to the left of the center of the roadway for use by traffic not otherwise permitted to use such lanes, or except as permitted under subsection (a)(2) of this section: however, this subsection shall not be construed as prohibiting the crossing of the centerline in making a left turn into or from an alley, private road or driveway.
(Ord. No. 39-092 (part); Ord. No. 30-982 § 76)

Sec. 11.38.200. Passing—Rules.

The following rules shall govern the overtaking and passing of vehicles and bicycles proceeding in the same direction, subject to those limitations, exceptions and special rules hereinafter stated:

(a) The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle.

(b) Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle on audible signal and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

(c) (1) The driver of a vehicle overtaking a bicycle proceeding in the same direction shall pass to the left thereof at a distance of not less than three feet and shall not again drive to the right side of the roadway until safely clear of the overtaken bicycle.

(2) The driver of a vehicle may pass a bicycle proceeding in the same direction in a no-passing zone with the duty to execute the pass only when it is safe to do so.
(Ord. No. 30-982 § 77; Ord. No. 49-032 § 1, 7-12-11)

Sec. 11.38.210. Passing—On right.

(a) The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(1) When the vehicle overtaken is making or about to make a left turn;

(2) Upon a street or highway with unobstructed pavement of sufficient width for two or more lines of vehicles moving lawfully in the direction being traveled by the overtaking vehicle;

(3) Upon a one-way street, or upon any roadway on which traffic is restricted to one direction of movement, where the roadway is free from obstructions and of sufficient width for two or more lines of moving vehicles.

(b) The driver of a vehicle may overtake and pass another vehicle upon the right only under the conditions permitting such movement in safety. Such movement shall not be made by driving off the roadway.
(Ord. No. 39-092 (part); Ord. No. 31-232 § 5; prior Ord. No. 30-982 § 78)

Sec. 11.38.220. Driving across barrier prohibited—Exception.

Whenever any highway has been divided into two or more roadways by leaving an intervening space or by a physical barrier or clearly indicated dividing section so constructed as to impede vehicular traffic, every vehicle shall be driven only up the right-hand roadway unless directed or permitted to use another roadway by official traffic-control devices or police officers. No vehicle shall be driven over, across or within any such dividing space, barrier or section, except through an opening in such physical barrier or dividing section or space, or at a cross-over or intersection as established, unless specifically permitted by public authority.
(Ord. No. 30-982 § 79)

Sec. 11.38.230. Overtaking and passing—Vehicles proceeding in opposite direction.

Drivers of vehicles proceeding in opposite directions shall pass each other to the right, and upon roadways having width for not more than one line of traffic in each direction, each driver shall give to the other at least one-half of the main traveled portion of the roadway as nearly as possible.
(Ord. No. 39-092 (part))

Sec. 11.38.240. Three or more lanes—Driving rules.

Whenever any roadway which provides for vehicular traffic in two directions has been divided into three or more clearly marked lanes for traffic, the following rules, in addition to all others consistent herewith, shall apply:

(a) A vehicle shall be driven as nearly as practical entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety.

(b) Upon a roadway which is divided into three lanes a vehicle shall not be driven in the center lane except when overtaking and passing another vehicle where the roadway is clearly visible and such center lane is clear of traffic within a safe distance, or in preparation for a left turn or where such center lane is at the time allocated exclusively to traffic moving in the direction the vehicle is proceeding and is signposted to give notice of such allocation.

(c) Official traffic control devices may be erected directing specified traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway, and drivers of vehicles shall obey the directions of every such sign.

(Ord. No. 32-944 (part); Ord. No. 30-982 § 81)

Sec. 11.38.250. Driving on left side of roadway prohibited—Exception.

(a) No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless authorized by the provisions of this article and such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In every event the overtaking vehicle must return to an authorized lane of travel as soon as practicable and, in the event the passing movement involves the use of a lane authorized for vehicles approaching from the opposite direction, before coming within two hundred feet of any vehicle approaching from the opposite direction.

(b) No vehicle shall at any time be driven to the left side of the roadway under the following conditions:

(1) When approaching the crest of a grade or upon a curve in the highway where the driver's view is obstructed within such distance as to create a hazard in the event another vehicle might approach from the opposite direction;

(2) When approaching within one hundred feet of or traversing any intersection or railroad grade crossing;

(3) When the view is obstructed upon approaching within one hundred feet of any bridge, viaduct or tunnel;

(4) Where official signs are in place directing that traffic keep to the right, or a distinctive centerline is marked, which distinctive line also so directs traffic as declared in the sign manual adopted by the State Highway Commission.

(c) The foregoing limitations shall not apply upon a one-way roadway, nor under the conditions described in subsection (a)(2) of 11.38.190, nor to a driver of a vehicle turning left into or from an alley, private road or driveway.
(Ord. No. 39-092 (part); Ord. No. 30-982 § 82)

Sec. 11.38.260. Following another vehicle too closely.

(a) The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic upon and the condition of the highway.

(b) The driver of any truck or motor vehicle drawing another vehicle when traveling upon a roadway outside of a business or residence district and which is following another truck or motor vehicle drawing another vehicle shall leave sufficient space, whenever conditions permit, so that an overtaking vehicle may enter and occupy such space without danger, except that this shall not prevent a truck or motor vehicle drawing another vehicle from overtaking and passing any vehicle or combination of vehicles.

(c) Motor vehicles being driven upon any roadway outside of a business or residence district in a caravan or motorcade, whether or not towing other vehicles, shall be so operated as to allow sufficient space between each such vehicle or combination of vehicles so as to enable any other vehicle to enter and occupy such space without danger. This provision shall not apply to funeral processions.
(Ord. 39-092 (part))

Sec. 11.38.270. Right-of-way intersections.

(a) When two vehicles approach or enter an intersection from different highways or streets at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

(b) The right-of-way rule declared in subsection (a) is modified at through highways and streets and otherwise as stated in this chapter.

(c) Notwithstanding other provisions of this section, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any obviously confused or incapacitated person.
(Ord. No. 36-681)

Sec. 11.38.280. Driving in safety zone prohibited.

No vehicle shall at any time be driven through or within a safety zone.
(Ord. No. 30-982 § 85)

Sec. 11.38.285. Motor vehicle safety belt use.

(a) As used in this section "passenger car" means a motor vehicle, manufactured or assembled after January 1, 1968, or a motor vehicle manufactured or assembled prior to 1968 which was manufactured or assembled with safety belts, with motive power designed for carrying ten passengers or fewer, including vans, but does not include a motorcycle, or motor-driven cycle.

(b) Except as provided in Subsection (d), each occupant of a passenger car manufactured with safety belts in compliance with Federal Motor Vehicle Safety Standard No. 208, who is 18 years of age or older, shall have a safety belt properly fastened about such person's body at all times when the passenger car is in motion.

(c) Each occupant of a passenger car manufactured with safety belts in compliance with Federal Motor Vehicle Safety Standard No. 208, who is at least 14 years of age but less than 18 years of age, shall have a safety belt properly fastened about such person's body at all times when the passenger car is in motion.

(d) This section does not apply to:

(1) An occupant of a passenger car who possesses a written statement from a

licensed physician that such person is unable for medical reasons to wear a safety belt system;

(2) Carriers of United States mail while actually engaged in delivery and collection of mail along their specified routes;

(3) Newspaper delivery persons while actually engaged in delivery of newspapers along their specified routes.

(e) Law enforcement officers shall not stop drivers for violations of Subsection (b) by a back seat occupant in the absence of another violation of law. A citation for violation of Subsection (b) by a back seat occupant shall not be issued without citing the violation that initially caused the officer to effect the enforcement stop.

(f) Persons violating Subsection (b) and amendments thereto, shall be fined $30.00 and no court costs. Persons violating Subsection (c) and amendments thereto shall be fined $60.00 and no court costs.

(g) The municipal court shall not report violations of this act to the Department of Revenue.

(h) For violations of Subsection (b), the Municipal Court Clerk shall remit $20.00 from each fine imposed to the state treasurer in accordance with the provisions of K.S.A. 75-4215 and amendments thereto.

(i) If any provision of this section or the application thereof to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of the section which can be given effect without the invalid provisions or application, and to this end, the provisions of this section are severable.
(Ord. No. 40-731 § 1; Ord. No. 47-710 § 1, 12-11-07; Ord. No. 48-765 § 1, 7-13-10; Ord. No. 49-022 § 1, 6-21-11; Ord. No. 50-555, § 1, 7-11-17)

Sec. 11.38.290. Passing in "no passing" zones prohibited.

(a) Where signs or markings are in place to define a no-passing zone, as set forth in Section 11.20.160, no driver at any time shall drive on the left side of the roadway within such no-passing zone or on the left side of any pavement striping designed to mark such no-passing zone through its length.

(b) This section shall not apply when an obstruction exists making it necessary to drive to the left of center of the highway, nor shall it apply to the driver of a vehicle turning left into or from an alley, private road or driveway.
(Ord. No. 39-092 (part); Ord. No. 31-232 § 7; prior Ord. No. 30-982 § 86)

Sec. 11.38.300. State license plate required.

It is unlawful for any person to:

(a) Operate, or for the owner thereof to knowingly permit the operation, upon a street or highway of any vehicle which is not registered, or for which a certificate of title has not been issued or which does not have attached thereto and displayed thereon the license plate or plates assigned thereto by the division of motor vehicles for the current registration year, including any registration decal required to be affixed to any such license plate pursuant to K.S.A. 8-134, and amendments thereto, subject to the exemptions allowed in K.S.A. 8-135, 8-198 and 8-1751a and amendments thereto.

(b) Display, or cause or permit to be displayed, or to have in possession, any registration receipt, certificate of title, registration license plate or registration decal knowing the same to be fictitious or to have been canceled, revoked, suspended or altered. A violation of this subsection shall constitute a misdemeanor punishable by a fine of not less than one hundred dollars and forfeiture of the item. A mandatory court appearance shall be required of any person violating this subsection.

(c) Lend to or knowingly permit the use of, by one not entitled thereto, any registration receipt, certificate of title, registration license plate or registration decal issued to the person so lending or permitting the use thereof.

(d) Remove, conceal, alter, mask or deface the license number plate or plates, registration decal, or any other mark of identification upon any vehicle.

(e) Display any license plate assigned to the vehicle except as follows: The license plate assigned to the vehicle shall be attached to the rear thereof and shall be so displayed during the current registration year or years, and no Kansas registration plate for any other year shall appear on the front of the vehicle. Every license plate shall at all times be securely fastened to the vehicle to which it is assigned so as to prevent the plate from swinging, and at a height not less than twelve inches from the ground, measuring from the bottom of such plate, in a place and position to be clearly visible, and shall be maintained free from foreign materials and in a condition to be clearly legible.

The following classes of vehicles shall attach a license plate in the location or locations specifically stated:

1) The license plate issued for a truck tractor shall be attached to the front of the truck tractor;

2) The model year license plate issued for an antique vehicle or truck in accordance with K.S.A. 8-172, and amendments thereto, may be attached to the front of an antique vehicle;

3) A personalized license plate issued to a passenger vehicle or truck pursuant to K.S.A. 8-132(c), and amendments thereto, may be attached to the front of the passenger vehicle or truck;

4) The license plate issued for a motor vehicle used as a concrete mixer truck may be attached to either the front or rear of the vehicle; and

5) The license plate issued for a motor vehicle used as a dump truck with a gross weight of 26,000 pounds or more shall be attached to the front of the vehicle. The provisions of this paragraph shall not apply to such vehicle if such vehicle is registered as a farm truck.

(f) Carry or display a registered number plate or plates or registration decal upon any vehicle not lawfully issued for such vehicle.

Any person violating any of the provisions of paragraphs (a), (c), (d), (e) or (f) of this section shall be deemed guilty of a misdemeanor and shall be punished by a fine of not more than two thousand five hundred dollars, or by imprisonment for not less than thirty days nor more than six months, or by both such fine and imprisonment.
(Ord. No. 45-509 § 1; Ord. No. 43-348 § 1; Ord. No. 51-885, § 1, 6-28-22)

Sec. 11.38.310. Vehicle registration.

It is unlawful for any person to operate upon the public streets or alleys of the city any motor vehicle registered in the state, which has been registered in a county other than the one in which the owner resided or had his principal place of business at the time of the original registration for any calendar year.
(Ord. No. 30-982 § 88)

Sec. 11.38.320. Liability of driver.

(a) Any person driving or moving any vehicle upon any street, highway or highway structure shall be liable for all damage which such street, highway or highway structure or traffic-control devices erected thereon may sustain as a result of any illegal operation, driving or moving of such vehicle, or as a result of operating, driving or moving any vehicle weighing in excess of the maximum weight allowed by this title, but authorized by special permit issued as provided in this ordinance.

(b) Whenever such driver is not the owner of such vehicle, object or contrivance, but is so operating, driving or moving the same with the express or implied permission of such owner, the owner and driver shall be jointly and severally liable for any such damage.

(c) Such damage may be recovered in a civil action brought by the authorities in control of such highway or highway structure.
(Ord. No. 39-092 (part); Ord. No. 30-982 § 89)

Sec. 11.38.330. Overtaking and passing school bus.

(a) Every bus used for transportation of school children shall conform to the statutes of the state and all rules and regulations adopted by the Secretary of Transportation or other lawful authority relating to signs, colors and equipment.

(b) The driver of a vehicle meeting or overtaking from either direction any school bus stopped on the highway shall stop before reaching such school bus when there is in operation on said school bus flashing red lights and a stop signal arm, and said driver shall not proceed until such school bus resumes motion or said driver is signaled by the school bus driver to proceed or the flashing red lights and the stop signal arm are no longer actuated.

(c) Flashing red lights and stop signal arms may be actuated by the driver of said school bus whenever but only whenever such vehicle is stopped on the highway for the purpose of receiving or discharging school children. A school bus driver shall not actuate said special visual signals:

(1) At intersections or other places where traffic is controlled by traffic-control signals or police officers; or

(2) In designated school bus loading areas where the bus is entirely off the roadway.

(d) Every school bus shall bear upon the front and rear thereof plainly visible signs containing the words "school bus" in letters not less than eight inches in height. When a school bus is being operated upon a highway for purposes other than the actual transportation of children either to or from school or to or from interschool or intraschool functions or activities, or for maintenance, repair or storage purposes all markings thereon indicating "school bus" shall be covered or concealed.

(e) The driver of a vehicle upon a highway with separate roadways need not stop upon meeting or passing a school bus which is on a different roadway or when upon a controlled-access high-

way and the school bus is stopped in a loading zone which is a part of or adjacent to such highway and when pedestrians are not permitted to cross the roadway.
(Ord. No. 39-092 (part))

Sec. 11.38.340. Vehicle door opening.

No person shall open the door of a motor vehicle on the side available to moving traffic unless and until it is reasonably safe to do so, and can be done without interfering with the movement of other traffic, nor shall any person leave a door open on the side of a vehicle available to moving traffic for a period of time longer than necessary to load or unload passengers.
(Ord. No. 30-982 § 91)

Sec. 11.38.350. Operation of snowmobiles on streets.

No person shall operate a snowmobile on any controlled access street in the city. No person shall operate a snowmobile on any other street, except when crossing a street at a right angle, or when the use of the street by other motor vehicles is impossible because of snow, or when such operation is authorized by the authority having jurisdiction over the street.
(Ord. No. 33-466)

Sec. 11.38.355. Operation of all-terrain vehicles; where; when; exceptions.

(a) Except as provided in subsection (b), it shall be unlawful for any person to operate an all-terrain vehicle on any street or highway within the city limits.

(b) Notwithstanding the provisions of subsection (a), all-terrain vehicles may be operated on streets and highways:

1. If the all-terrain vehicle is owned and operated by a county department, or owned and operated by persons contracting with a county noxious weed department or the Kansas Department of Transportation; or
2. if the all-terrain vehicle is used by the Wichita Police Department or another department within the City of Wichita for official business; or
3. in accordance with Section 3.11.205 of the code of the City of Wichita.

(c) No all-terrain vehicle shall be operated on any public highway, street or road between sunset and sunrise unless equipped with lights as required by law for motorcycles.
(Ord. No. 50-859, § 1, 9-25-18)

Sec. 11.38.360. Televisions, headphones.

(a) No motor vehicle operated on the streets of this city shall be equipped with television-type receiving equipment so located that the viewer or screen is visible from the driver's seat.

(b) Subsection (a) does not prohibit the use of television-type receiving equipment used exclusively for safety or law enforcement purposes, if such use is approved by the superintendent of the Kansas Highway Patrol.
(Ord. No. 38-317 § 1)

Sec. 11.38.370. Child passenger safety act.

(a) Every driver as defined in K.S.A. 8-1416, and amendments thereto, who transports a child under the age of fourteen years in a passenger car as defined in subsection (e) of this section, within the city limits shall provide for the protection of such child by properly using:

(1) For a child under the age of four years an appropriate child passenger safety restraining system that meets or exceeds the standards and specifications contained in federal motor vehicle safety standard No. 213; or

(2) For a child four years of age, but under the age of eight years and who weights less than 80 pounds or is less than 4 feet 9 inches in height, an appropriate child passenger safety restraining system that meets or exceeds the standards and specifications contained in federal motor vehicle safety standard no. 213; or

(3) For a child eight years of age but under the age of fourteen years or who weighs more than 80 pounds or is more than 4 feet 9 inches in height, a safety belt manufactured in compliance with federal motor vehicle safety standard No. 208.

(b) If the number of children subject to the requirements of subsection (a) exceeds the number of passenger securing locations available for use by children affected by such requirements, and all of these securing locations are in use by children, then there is not a violation of this section.

(c) If a securing location only has a lap safety belt available, the provisions of subsection (a)(2) shall not apply and the child shall be secured in accordance with the provisions of subsection (a)(3).

(d) It is unlawful for any driver of a passenger car to violate the provisions of this section and upon conviction such driver shall be punished by a fine of sixty dollars. The failure to provide a child safety restraining system or safety belt for more than one child in the same passenger car at the same time shall be treated as a single violation.

(e) The $60 fine provided for in subsection (d) shall be waived if the driver convicted of violating subsection (a)(1) or (a)(2) of this section provides proof to the court that such driver has purchased or acquired the appropriate and approved child passenger safety restraining system. At the time of issuing the citation for a violation of subsection (a)(1) or (a)(2) of this section, the law enforcement officer shall notify the driver of the waiver provisions of this subsection.

(f) No driver charged with violating the provisions of this section shall be convicted if such driver produces proof in the municipal court that the child was fourteen years of age or older at the time the violation was alleged to have occurred.

(g) As used in this section "passenger car" means a motor vehicle, manufactured or assembled after January 1, 1968, or a motor vehicle manufactured or assembled prior to 1968 which was manufactured or assembled with safety belts, with motive power designed for carrying 10 passengers or fewer, including vans, but does not include a motorcycle, a trailer or a vehicle constructed either on a truck chassis registered for a gross weight or more than 12,000 pounds or a farm truck registered for a gross weight of more than 16,000 pounds.

(h) From and after the effective date of this section, and prior to July 1, 2007, a law enforcement officer shall issue a warning citation to anyone violating subsection (a)(2).
(Ord. No. 43-695 § 1; Ord. No. 47-043 § 1, 6-13-06)

Sec. 11.38.380. Loud sound amplification systems in vehicles prohibited—Penalty.

(a) No person operating a motor vehicle on a street, highway, alley, public park, parking lot, or driveway shall operate or permit the operation of any sound amplification system from within the vehicle so that the sound is plainly audible at a distance of fifty or more feet from the vehicle.

(b) "Sound amplification system" means any radio, tape player, compact disc player, loud speaker, or other electronic device used for the amplification of sound.

(c) "Plainly audible" means any sound produced by a sound amplification system from within the vehicle, which clearly can be heard at a distance of fifty feet or more. Measurement standards shall be by the auditory senses, based upon direct line of sight. Words or phrases need not be discernible and bass reverberations are included. The motor vehicle may be stopped, standing, parked or moving on a street, highway, alley, public park, parking lot, or driveway.

(d) It is an affirmative defense to a charge under this section that the operator was not otherwise prohibited by law from operating the sound amplification system, and that any of the following apply:

(1) The system was being operated to request medical or vehicular assistance or to warn of a hazardous road condition;

(2) The vehicle was an emergency or public safety vehicle;

(3) The vehicle was owned and operated by the city or a gas, electric, communications or refuse company;

(4) The system was used for the purpose of giving instructions, directions, talks, addresses, lecture or transmitting music to any persons or assemblages of persons in compliance with this Code; or

(5) The vehicle was used in authorized public activities, such as parades, fireworks, sports events, musical productions and other activities which have the approval of the department of the city authorized to grant such approval.

(e) Any person, individual, partnership, corporation or association who violates any of the provisions of this section is guilty of a misdemeanor, and upon conviction shall be punished by a mandatory fine of fifty dollars. The imposition of the fine established herein shall be mandatory and the court shall not waive, remit, suspend, parole or otherwise excuse the payment thereof, except that the court may order that the defendant perform community service specified by the court but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by Section 1.04.210(e) and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed.
(Ord. No. 43-461 § 1)

Sec. 11.38.390. Unlawful text messaging.

(a) As used in this section:

(1) *"Wireless communication device"* means any wireless electronic communication device that provides for voice or data communication between two or more parties, including, but not limited to, a mobile or cellular telephone, a text messaging device, a personal digital assistant that sends or receives messages, an audio-video player that sends or receives messages or a laptop computer. "Wireless communication device" does not include a device which is voice-operated and which allows the user to send or receive a text based communication without the use of either hand, except to activate or deactivate a feature or function.

(2) *"Write, send or read a written communication"* means using a wireless communication device to manually type, send or read a written communication, including, but not limited to, a text message, instant message, or electronic mail.

(b) Except as provided in subsections (c) and (d), no person shall operate a motor vehicle on a public road or highway while using a wireless communications device to write, send or read a written communication.

(c) The provisions of subsection (b) shall not apply to:

(1) A law enforcement officer or emergency service personnel acting within the course and scope of the law enforcement officer's or emergency service personnel's employment;

(2) A motor vehicle stopped off the regular traveled portion of the roadway;

(3) A person who reads, selects or enters a telephone number or name in a wireless communications device for the purpose of making or receiving a phone call;

(4) A person who receives an emergency, traffic or weather alert message; or

(5) A person receiving a message related to the operation or navigation of the motor vehicle.

(d) The provisions of subsection (b) shall not prohibit a person from using a wireless communications device while operating a moving motor vehicle to:

(1) Report current or ongoing illegal activity to law enforcement;

(2) Prevent imminent injury to a person or property; or

(3) Relay information between transit or for-hire operator and the operator's dispatcher, in which the device is permanently affixed to the motor vehicle.

(e) Upon conviction of a violation under this section, a fine of up to $500.00 shall be imposed. (Ord. No. 48-806 § 1, 8-24-2010)

CHAPTER 11.39. SNOW EMERGENCY

Sec. 11.39.010. Title.
Sec. 11.39.020. Definitions.
Sec. 11.39.030. Prohibition of parking.
Sec. 11.39.040. Stalled vehicles—Prohibited.
Sec. 11.39.050. Stalled vehicles—Removal from route.
Sec. 11.39.060. Announcement.
Sec. 11.39.070. Termination of parking prohibition.
Sec. 11.39.080. Precedence of chapter.
Sec. 11.39.100. Impoundment of vehicles.
Sec. 11.39.110. Violation—Summons.
Sec. 11.39.120. Violation—Misdemeanor.
Sec. 11.39.130. Snow emergency routes designated.

Sec. 11.39.010. Title.

This chapter shall be known and may be cited as the "snow emergency ordinance" of the City of Wichita, Kansas.
(Ord. No. 31-968 § 1)

Sec. 11.39.020. Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter.

(a) "Manager" means the city manager of the City of Wichita, or, in his absence, his duly designated and acting representative;

(b) "Roadway" means that portion of a street or highway improved, designed, or ordinarily used for vehicular travel, exclusive of the berm or shoulder;

(c) "Snow emergency routes" means those streets designated as such in accordance with the provisions of this chapter.

(d) "Snow tires" means tires mounted on drive wheels of motor vehicles which are especially designed to give effective traction on snow, mud, or ice covered streets by means of extra heavy duty tread with special high-traction patterns, except that no tire so defined shall be constructed to be a snow tire if it is damaged or worn to the extent that its performance would be substantially impaired;

(e) "Street, highway boulevard or avenue" means the entire width between property lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic;

(f) "Tire chains" means metal chains mounted on drive wheel tires of motor vehicles which cross the tread of each such tire laterally in at least three different places;

(g) "Vehicle" means every device in, upon or by which any person or property may be transported or drawn upon a highway, except devices moved by human power or used exclusively upon stationary rails or tracks.

(Ord. No. 41-756 § 1)

Sec. 11.39.030. Prohibition of parking.

Whenever the manager finds, on the basis of falling snow, sleet, or freezing rain, or on the basis of a forecast (by the U.S. Weather Bureau or other weather service) of snow, sleet or freezing rain, that weather conditions will make it necessary that motor vehicle traffic be expedited and that parking on city streets be prohibited or restricted for snow plowing and other purposes, the manager shall put into effect a parking prohibition on parts of or all snow emergency routes as necessary by declaring it in a manner prescribed in this chapter.

Once in effect, a prohibition under this section shall remain in effect until terminated by announcement of the manager in accordance with this chapter, except that any street area which has become substantially clear of snow and ice from curb to curb for the length of the entire block shall be automatically excluded therefrom. While the prohibition is in effect, no person shall park or allow to remain parked any vehicle on any portion of a snow emergency route to which it applies; however, nothing in this section shall be construed to permit parking at any time or place where it is forbidden by any other provision of law.
(Ord. No. 31-968 § 3)

Sec. 11.39.040. Stalled vehicles—Prohibited.

No person operating a motor vehicle on a snow emergency route on which there is a covering of snow, sleet, or ice shall allow such vehicle to

become stalled wholly or partly because the drive wheels thereof are not equipped with effective tire chains or snow tires.

No person operating a motor vehicle on a part of a snow emergency route on which there is a covering of snow, sleet, or ice or on which there is a parking prohibition in effect shall allow such vehicle to become stalled because the motor fuel supply is exhausted or the battery has become inoperative.
(Ord. No. 31-968 § 4)

Sec. 11.39.050. Stalled vehicles—Removal from route.

Whenever a vehicle becomes stalled for any reason, whether or not in violation of this chapter, on any part of a snow emergency route on which there is a covering of snow, sleet, or ice or which there is a parking prohibition in effect, the person operating such vehicle shall take immediate action to have the vehicle towed or pushed off the roadway of such snow emergency route onto the first cross street which is not a snow emergency route. No person shall abandon or leave his vehicle in the roadway of a snow emergency route (regardless of whether he indicates, by raising the hood or otherwise, that the vehicle is stalled), except for the purpose of securing assistance during the actual time necessary to go to a nearby telephone or to a nearby garage, gasoline station, or other place of assistance and return without delay.
(Ord. No. 31-968 § 5)

Sec. 11.39.060. Announcement.

The manager shall cause each declaration made by him pursuant to this chapter to be publicly announced by means of broadcasts or telecasts from stations with a normal operating range covering the city, and he may cause such declaration to be further announced in newspapers of general circulation when feasible. Each announcement shall include a declaration of the traffic emergency due to the hazardous conditions of the streets, the prohibition against parking or stalling of vehicles on snow emergency routes, the duty of the vehicle operator to remove stalled vehicles, and the right of the city to remove or impound vehicles parked or stalled in violation of this chapter. Each announcement shall describe the action taken by the manager including the time it became or will become effective. A parking prohibition regulation declared by the manager shall not go into effect until at least two hours after it has been declared.
(Ord. No. 32-234 (part); Ord. No. 31-968 § 6)

Sec. 11.39.070. Termination of parking prohibition.

Whenever the manager finds that some or all of the conditions which give rise to a parking prohibition in effect pursuant to this chapter no longer exist, he may declare the prohibition terminated, in whole or in part, in a manner prescribed by this chapter, effective immediately upon announcement.
(Ord. No. 31-968 § 7)

Sec. 11.39.080. Precedence of chapter.

Any provision of this chapter which becomes effective by declaration of the manager shall, while temporarily in effect, take precedence over other conflicting provisions of law normally in effect, except that it shall not take precedence over provisions of law relating to traffic accidents, emergency travel of authorized emergency vehicles, or emergency traffic directions by a police officer.
(Ord. No. 31-968 § 8)

Sec. 11.39.100. Impoundment of vehicles.

Members of the police department are authorized to remove or have removed a vehicle from a street to the nearest garage or other place of safety (including another place on a street), or to a garage designated or maintained by the police department, or otherwise maintained by this city, when:

(a) The vehicle is parked on a part of a snow emergency route on which a parking prohibition is in effect;

(b) The vehicle is stalled on a part of a snow emergency route on which there is a covering of snow, sleet, or ice on which there is a parking prohibition in effect and the person who was operating such vehicle

does not appear to be removing it in accordance with the provisions of this chapter;

(c) The vehicle is parked in violation of any parking ordinance or provision of law and is interfering or about to interfere with snow removal operations.

Upon any vehicle being removed and impounded as provided herein, such vehicle shall be surrendered to the duly identified owner as provided for in Chapter 11.97 of this Code.

In any proceeding for the violation of the provisions of this chapter, the registration plate displayed upon the vehicle in violation shall constitute in evidence a prima facie presumption that the owner of such vehicle was the person who parked or placed such vehicle at the place where the violation occurred.
(Ord. No. 37-832)

Sec. 11.39.110. Violation—Summons.

Whenever any motor vehicle without a driver is found parked or left in violation of any provision of this chapter, and is not removed and impounded as provided for in this chapter, a summons issued in accordance with this title shall be attached to such motor vehicle instructing the owner or operator to answer the charges of said violations before the municipal court of the city, Chapter 11.92, Arrests and Penalties, of this Code is made a part of this chapter.
(Ord. No. 31-968 § 11)

Sec. 11.39.120. Violation—Misdemeanor.

Violation of any provision of this chapter is a misdemeanor.
(Ord. No. 31-968 § 13)

Sec. 11.39.130. Snow emergency routes designated.

The following streets or portions of streets within the city are designated as snow emergency routes:

Amidon Avenue, from south bank Arkansas River north of 15th Street North to Womer;

Armour Street, from U.S. Highway 54 to Douglas Avenue;

Broadway Avenue, from south city limits to north city limits;

Central Avenue, from McLean Boulevard to west city limits;

Central Avenue, from Seneca Street to east city limits;

Century II Drive, from Douglas Avenue to Main Street;

Douglas Avenue, from Hoover to Woodlawn Boulevard;

Douglas Avenue, from east city limits of Eastborough to Webb Road;

Edgemoor, from Mt. Vernon to 13th Street North;

Edwards, from Maple to U.S. Highway 54;

Emporia Avenue, from Orme to 13th Street North;

English Street, from Main Street to St. Francis Avenue;

First Street, from McLean Boulevard to Grove Street;

Forty-seventh Street South, from west city limits to east city limits;

George Washington Boulevard, from Lincoln Street to south city limits;

Gold Street, from 31st Street South to MacArthur Road;

Grove Street, from Lincoln Street to Central Avenue;

Harry Street, from Airport Road to Lear Jet entrance;

Harry Street, from Millwood to east city limits;

Hillside Avenue, from 31st Street South to north city limits;

Hydraulic Avenue, from south city limits to Murdock Avenue;

Lark Lane, from U.S. Highway 54 to south city limits;

Lewis Street, from McLean Boulevard to St. Francis Avenue;

Lincoln Street, from McLean Boulevard to Rock Road;

MacArthur Road, from west city limits to east city limits;

Main Street, from Orme to Murdock Avenue;

All sections of Maize Road within the city limits;

Maple, from McLean Boulevard to west city limits;

Market Street, from Orme to Murdock Avenue;

McLean Boulevard, from 31st Street South to Arkansas River north of 15th Street North;

Meridian Avenue, from 47th Street to Central Avenue;

Mosley Avenue, from Murdock Avenue to 21st Street North;

Murdock Avenue, from Waco Avenue to Washington Avenue;

Oliver Street, from south city limits to north city limits;

One Hundred and Twenty-Seventh Street East, all sections within city limits;

Pawnee, from West Street to Kansas Turnpike;

Pawnee Avenue, from Rock Road to east city limits;

Pueblo Avenue, from Hoover Road to Airport Road;

Ridge Road, from Harry Street to north city limits;

All sections of Rock Road, within the city limits;

St. Francis Avenue, from Orme to 13th Street North;

Second Street, from McLean Boulevard to Grove Street;

Seneca Street, from 55th Street South to Central Avenue;

Southeast Boulevard, from Washington Avenue to south city limits;

Southwest Boulevard (K-42), from west city limits to on-ramp west-bound traffic U.S. Highway 54;

Third Street, from Riverview to Santa Fe;

Thirteenth Street North, from Hoover to east city limits;

Thirteenth Street North, from 119th to Big Slough;

Thirty-first Street South, from West Street to Broadway Avenue;

Thirty-first Street South, from Southeast Boulevard to east city limits;

Thirty-Seventh Street North, all sections within city limits;

Topeka Avenue, from Orme to Murdock Avenue;

Twenty-first Street North, from West Street to east city limits;

Twenty-ninth Street North, from Oliver to east city limits;

Tyler Road, from south city limits to north city limits;

U.S. Highway 54, from west city limits to east city limits;

Waco Avenue, from Douglas Avenue to 21st Street North;

Washington Avenue, from Southeast Boulevard to Murdock Avenue;

Water Street, from Orme to Waterman Street;

Water Street, from Douglas Avenue to Wichita Street;

Waterman Street, from Wichita Street to Hydraulic Avenue;

West Street, from south city limits to 21st Street North;

Westdale Drive, from Zoo Boulevard to West Street;

Wichita Street, from First Street to Central Avenue;

William Street, from Main Street to St. Francis Avenue;

Womer, from Amidon Avenue to Meridian Avenue;

Woodlawn Avenue from south city limits to Douglas Avenue;

Woodlawn Avenue from north city limits to Eastborough to north city limits;

Zoo Boulevard from Central Avenue to north city limits.
(Ord. No. 39-326 § 1)

CHAPTER 11.40. COMMERCIAL VEHICLES*

Sec. 11.40.010. Truck traffic prohibited.
Sec. 11.40.020. Through traffic prohibited.

Sec. 11.40.010. Truck traffic prohibited.

(a) It is unlawful for any person to drive a truck, as defined in 11.04.385, upon any portion of the streets described in Section 11.96.060 when designated by an official traffic control device prohibiting such trucks unless:

1. The truck is delivering or picking up at a location on said portion of street; or
2. Such truck is delivering or picking up at a location that cannot practicably be accessed by another route.

(b) Trucks shall use the most direct route between origin and destination using arterial streets whenever practicable.
(Ord. No. 50-896, § 4, 11-27-18)

Editor's note—Ord. No. 50-896, § 4, adopted Nov. 27, 2018, amended § 11.40.010 in its entirety to read as herein set out. Former § 11.40.010, pertained to trucks over one ton, and derived from Ord. No. 39-870, § 1.

Sec. 11.40.020. Through traffic prohibited.

It is unlawful for any person to drive a vehicle through the portion of a street where through traffic, as defined by this code, is prohibited by an official traffic control device.
(Ord. No. 50-896, § 5, 11-27-18)

*__Note—__Ordinance history; Ord. No. 29-319 §§ 92—95.

CHAPTER 11.42. DRIVER'S AND CHAUFFEUR'S LICENSES

Sec. 11.42.010. Licenses required.
Sec. 11.42.015. Failure to produce license upon demand.
Sec. 11.42.017. Persons exempt from license.
Sec. 11.42.020. Reserved.
Sec. 11.42.025. Unlawful use of driver's license or identification cards; other unlawful acts relating thereto.
Sec. 11.42.030. Driving while license suspended, canceled or revoked.
Sec. 11.42.035. Violating driver's license restrictions.
Sec. 11.42.037. Circumvention of ignition interlock device; penalty.
Sec. 11.42.040. Failure to comply with a traffic citation.

Sec. 11.42.010. Licenses required.

(a) No person, except those expressly exempted as set forth in Section 11.42.017, shall drive or operate any motor vehicle upon a street, highway or alley in the city unless such person has a valid driver's license. No person shall be permitted to have more than one valid license at any time.

(b) Any person operating a motor vehicle shall be the holder of a driver's license that is classified for the operation of such motor vehicle, and any person operating a motorcycle that is registered in this state shall be the holder of a class M driver's license.

(c) Motorized bicycle. No person shall drive any motorized bicycle upon a street or highway unless such person has a valid driver's license which entitles the licensee to drive a motor vehicle in any class or classes.

(d) Defense. It shall be a defense to any charge under this section that the person charged produce in the Municipal Court the appropriate class driver's license issued to such person that was valid at the time of such person's arrest or issuance of a citation.

(e) Penalty. Violation of this section is a misdemeanor, and such sentence shall include a term of imprisonment of not more than six months and/or a $1,000.00 fine or both such fine and imprisonment.
(Ord. No. 29-319 § 96; Ord. No. 50-861, § 3, 9-25-18; Ord. No. 51-090, § 1, 9-10-19)

Sec. 11.42.015. Failure to produce license upon demand.

(a) Every licensee shall have such person's driver's license in such person's immediate possession at all times when operating a motor vehicle. However, no person charged with violating this section shall be convicted if such person produces in the Municipal Court a driver's license issued to such person that was valid at the time of arrest or issuance of a citation.

(b) Every licensee operating a motor vehicle shall promptly deliver such person's driver's license upon demand of any officer of a court of competent jurisdiction or any peace officer when the license is in such person's immediate possession at the time of the demand.

(c) Penalty. Violation of this section is a misdemeanor, and such sentence shall include a term of imprisonment for not more than 90 days or a fine of not more than $500 or both such fine and imprisonment.
(Ord. No. 51-090, § 2, 9-10-19)

Sec. 11.42.017. Persons exempt from license.

(a) The following persons are exempt from the license requirements of the motor vehicle drivers' license act:

(1) A nonresident who is at least 16 years of age and who has in such person's immediate possession a valid license issued to such nonresident in such person's home state or country may operate in this state any motor vehicle in class C or M, as designated in K.S.A. 8-234b, and amendments thereto;

(2) A nonresident who is at least 18 years of age and who has in such person's immediate possession a valid license issued to such nonresident in such person's home state or country which authorizes such person to operate any motor vehicle in class A or class B, as designated in K.S.A. 8-234b, and amendments thereto, may operate any such motor vehicle in this state, subject to the age limits applicable in this state to the operation of any type or class of vehicle operated by such person;

(3) Any nonresident who is at least 18 years of age, whose home state or country does not require the licensing of drivers, may operate any motor vehicle in class C or class M, as designated in K.S.A. 8-234b, and amendments thereto, for a period of not more than 90 days in any calendar year, if the motor vehicle so operated is duly registered in the home state or country of such nonresident;

(4) Any person while driving or operating during the hours between sunrise and sunset any farm tractor or implement of husbandry, from the farm residence to a field farmed in connection with such farm residence, or from one farm field to another.

(b) No exemption granted by this section shall apply to any person while such person's license to operate a motor vehicle is under suspension or revocation.
(Ord. No. 51-090, § 3, 9-10-19)

Sec. 11.42.020. Reserved.

Editor's note—Ord. No. 51-090, § 4, adopted Sept. 10, 2019, repealed § 11.42.020, which pertained to issuance of driver's and chauffer's licenses to minors under sixteen, and derived from Ord. No. 29-319, § 97.

Sec. 11.42.025. Unlawful use of driver's license or identification cards; other unlawful acts relating thereto.

(a) It is unlawful for any person within the city to commit any of the following acts:

(1) To lend any driver's license or identification card to any other person or knowingly permit the use thereof by another;

(2) To display or to represent as the person's own any driver's license or identification card not issued to the person;

(3) To fail or refuse to surrender to the division upon its lawful demand any driver's license which has been suspended, canceled or revoked or any identification card which has been canceled;

(4) Permit any unlawful use of a driver's license or identification card issued to the person;

(5) Photograph, photostat, duplicate or in any way reproduce any driver's license or identification card or facsimile thereof in such a manner that it could be mistaken for a valid driver's license or identification card, or display or have in possession any such photograph, duplicate, reproduction or facsimile unless authorized by law;

(6) Display or possess any photograph, photostat, duplicate or facsimile of a driver's license or identification card unless authorized by law;

(7) Display, cause or permit to be displayed or have in possession any fictitious or fraudulently altered driver's license or identification card;

(8) Display or cause or permit to be displayed any canceled, revoked or suspended driver's license, or any canceled identification card.

(b) Violation of any of the provisions of subsection (a) is a misdemeanor and shall be punished by not more than one year's imprisonment or by a fine of not more than two thousand five hundred dollars, or by both such fine and imprisonment.

(c) It shall be unlawful for any person to:

(1) Lend any driver's license or identification card to or knowingly permit the use of any driver's license or identification card by any person under twenty-one years of age for use in the purchase of any alcoholic liquor;

(2) Lend any driver's license or identification card to or knowingly permit the use of any driver's license or identification card by a person under the legal age for consumption of cereal malt beverage for use in the purchase of any cereal malt beverage;

(3) Lend any driver's license, identification card, or other form of identification to aid

another person in wrongfully obtaining a driver's license or replacement driver's license, or an identification card or replacement identification card;

(4) Display or cause to be displayed or have in possession any fictitious or fraudulently altered driver's license or identification card by any person under twenty-one years of age for use in the purchase of any alcoholic liquor or cereal malt beverage.

(d) Violation of any of the provisions of subsection (c) is a misdemeanor and upon a first conviction, the court shall impose a sentence of not less than one hundred hours of community service and not more than one year's imprisonment, and a fine of not less than two hundred dollars nor more than five hundred dollars. On a second and subsequent conviction, a person shall be punished by not more than one year's imprisonment or by a fine of not more than two thousand five hundred dollars, or by both such fine and imprisonment.

(e) The provisions of this section shall apply to any driver's license, nondriver's identification card, identification card, or other form of identification whether issued under the laws of the state of Kansas or issued under the laws of another state or jurisdiction.
(Ord. No. 43-509 § 1)

Sec. 11.42.030. Driving while license suspended, canceled or revoked.

(A) It is unlawful for any person within the city to authorize or knowingly permit a motor vehicle owned by such person or under such person's control to be driven by any person who has no legal right to do so, or who does not have a valid driver's license.

(B) The Clerk of the Municipal Court shall forward to the division a record of conviction of any person convicted in such court as soon as possible after such conviction in compliance with K.S.A. 8-2115.

(C) Any person who drives a motor vehicle on any street and/or alley in this city at a time when such person's privilege to do so is canceled, suspended or revoked or while such person's privilege to obtain a driver's license is suspended or revoked pursuant to K.S.A. 8-252a, and amendments thereto, shall be guilty of a misdemeanor.

(D) No person shall be convicted under this section if such person was entitled at the time of arrest under K.S.A. 8-257 and amendments thereto, to the return of such person's driver's license.

(E) The penalty for convictions of Section (C) shall be as follows:

(1) Upon a first conviction except as provided by Section (G) punishment by confinement of not more than six months, and a fine of not more than one thousand five hundred dollars shall be imposed. Upon a first conviction, such person shall be sentenced to at least five days of confinement and fined at least one hundred dollars.

(2) Upon a second or subsequent conviction and except as provided by Section (G), punishment by confinement of not more than one year, and a fine of not more than two thousand five hundred dollars shall be imposed. Such person shall not be eligible for parole until completion of five days of confinement. Such mandatory fine imposed shall be at least one hundred dollars.

(3) Upon a third or subsequent conviction and except as provided by Section (G), punishment by confinement of not more than one year, and a fine of not more than two thousand five hundred dollars shall be imposed. The person convicted shall be sentenced to not less than ninety (90) days of confinement and fined not less than one thousand five hundred dollars, if such person's privilege to drive a motor vehicle is canceled, suspended or revoked:

(a) Because such person refused to submit and complete any test of

blood, breath or urine requested by law enforcement excluding the preliminary screening test as set forth in K.S.A. 8-1012, and amendments thereto;

(b) Because such person was convicted of violating the provisions of K.S.A. 40-3104, and amendments thereto, or similar ordinance of any city or resolution of any county or a law of another state, which ordinance or law prohibits the acts prohibited by that statute, relating to motor vehicle liability insurance coverage;

(c) Because such person was convicted of vehicular homicide, K.S.A. 21-3405 prior to its repeal, or K.S.A. 21-5406 and amendments thereto, involuntary manslaughter while driving under the influence of alcohol or drugs, K.S.A. 21-3442, prior to its repeal or K.S.A. 21-5405(a)(3) and amendments thereto, or any other murder or manslaughter crime resulting from the operation of a motor vehicle;

(d) Because such person was convicted of being a habitual violator, K.S.A. 8-287, and amendments thereto, or similar ordinance of any city or resolution of any county or a law of another state, which ordinance or law prohibits the acts prohibited by that statute, relating to driving while being a habitual violator; or

(e) Pursuant to K.S.A. 8-286 and amendments thereto.

(4) Any person convicted and sentenced pursuant to the provisions Subsection (E)(3) shall not be eligible for release on probation, suspension or reduction of sentence or parole until the person has served at least ninety days imprisonment. The ninety days of confinement mandated by this subsection may be served in a work release program only after such person has served forty-eight consecutive hours of confinement provided such work release program requires such person to return to confinement at the end of each day in the work release program. The Court may place the person convicted under a house arrest program to serve the remainder of the minimum sentence only after such person has served forty-eight consecutive hours of confinement.

(F) If a person:

(1) Is convicted of a violation of Section (C) committed while the person's privilege to drive or privilege to obtain a driver's license was suspended or revoked for a violation of Section 11.38.150 of this Code, and amendments thereto, Section 11.38.140, or Section 11.38.155 of this Code and any amendments thereto, K.S.A. 8-1567, K.S.A. 8-2,144 or K.S.A. 8-1014 and any amendments thereto or any law of the state, ordinance of any city or law of another state which ordinance or law prohibits the acts prohibited by these sections; and

(2) Is or has been convicted of a violation of Section 11.38.150, or Section 11.38.155 of the Code of the City of Wichita of this Code, and amendments thereto, K.S.A. 8-1567, K.S.A. 8-2144 or K.S.A. 8-1014 and any amendments thereto or of any law of this state, ordinance of any city or law of another state which ordinance or law prohibits the acts prohibited by these sections, committed while the person's privilege to drive or privilege to obtain a driver's license was so suspended or revoked, the person shall not be eligible for suspension of sentence, probation or parole until the person has served at least ninety days of confinement and any fine imposed on such person shall be in addition to such a term of confinement.

(G) Except as otherwise provided, the mandatory fine and mandatory period of confinement set forth in Section E shall not apply to any person convicted of a violation of Section C committed while the person's privilege to drive or privilege to obtain a driver's license was

suspended or revoked for a violation of K.S.A. 8-2110 and amendment thereto, or any ordinance of any city, resolution of any county or a law of another state that prohibits the acts prohibited by those statutes other than K.S.A. 8-2110 and amendments thereto.

(H) For the purposes of determining whether a conviction is a first, second, third, or subsequent conviction, conviction includes a conviction of a violation of any ordinance of any city or a law of this or any other state, or resolution of any county, which is in substantial conformity with Section (C).

(Ord. No. 44-997 § 1; Ord. No. 47-060, § 1, 6-27-06; Ord. No. 47-357, § 1, 2-27-07; Ord. No. 47-506, § 1, 6-26-07; Ord. No. 49-293, § 1, 6-26-2012; Ord. No. 52-203, § 1, 6-27-23)

Sec. 11.42.035. Violating driver's license restrictions.

(a) It is unlawful for any person within the city to operate a motor vehicle in violation of the restrictions on such person's driver's license.

(b) Upon a first conviction a fine of not more than two hundred fifty dollars ($250.00) shall be imposed. The court shall suspend such person's privileges to operate a motor vehicle for a period of not less than 30 days and not more than two years.

Upon a second or subsequent conviction, a fine of not more than five hundred dollars ($500.00) shall be imposed. The court shall suspend such person's privilege to operate a motor vehicle for not less than ninety (90) days and not more than two years.

(c) For the purposes of determining whether a conviction is a first, second, third, or subsequent conviction, a conviction includes a conviction of a violation of any ordinance of any city or a law of this or any other state, or resolution of any county which is in substantial conformity with the provisions of this section.

(Ord. No. 47-357, § 2, 2-27-07)

Sec. 11.42.037. Circumvention of ignition interlock device; penalty.

(a) No person shall:

(1) Tamper with an ignition interlock device, circumvent it or render it inaccurate or inoperative;

(2) request or solicit another to blow into an ignition interlock device, or start a motor vehicle equipped with such device, providing an operable motor vehicle to a person whose driving privileges have been restricted to driving a motor vehicle equipped with such device;

(3) blow into an ignition interlock device, or start a motor vehicle equipped with such device, providing an operable motor vehicle to a person whose driving privileges have been restricted to driving a motor vehicle equipped with such device; or

(4) operate a vehicle not equipped with an ignition interlock device while such person's driving privileges have been restricted to driving a motor vehicle equipped with such device.

(b) Any person who is convicted of this section shall be deemed guilty of a misdemeanor and shall be punished by a fine not to exceed $2,500.00, or by imprisonment for not more than one year, or by both such fine and imprisonment.

(c) In addition to any other penalties provided by law:

(1) (A) On a first conviction of a violation of subsection (a)(1) or (a)(2), the division shall extend the ignition interlock restriction period on the person's driving privileges for an additional 90 days; and

(B) On a second or subsequent conviction of a violation of subsection (a)(1) or (a)(2), the division shall restart the original ignition interlock restriction period on the person's driving privileges; and

(2) On a conviction of a violation of subsection (a)(4), the division shall restart the original ignition interlock restriction period on the person's driving privileges.

(Ord. No. 50-860, § 1, 9-25-18)

Sec. 11.42.040. Failure to comply with a traffic citation.

(a) Failure to comply with a traffic citation means failure either to:

(1) Appear before the municipal court in response to a traffic citation and pay any fine and court costs imposed as ordered by the court; or

(2) Otherwise comply with a traffic citation as provided by law.

Failure to comply with a traffic citation is a misdemeanor, regardless of the disposition of the charge for which such citation was originally issued.

(b) In addition to penalties set forth under subsection (a), when a person fails to comply with a traffic citation, except for any violations provided in subparagraph (d)(1), the court shall mail notice to the person that if the person does not appear in municipal court or pay all fines, court costs and any penalties as ordered by the court within thirty days from the date of mailing, the Division of Vehicles will be notified to suspend the person's driving privileges unless such person is eligible for restricted driving privileges as set forth in K.S.A. 8-2110. Upon the person's failure to comply within such thirty days, the court shall electronically notify the Division of Vehicles, to suspend the person's driving privileges unless the court has determined, pursuant to a written order, that the person shall fulfill any requirements set forth by the court prior to the suspension. Failure to abide by the terms of the order shall result in the court notifying the Division of Vehicles that the person's driving privileges shall be suspended for the failure to comply with the traffic citation. Upon the court determining that the person is in substantial compliance with the traffic citation, the court shall notify the Division of Vehicles to end any suspension of the person's driving privileges.

(c) When the municipal court notifies the Division of Vehicles of a failure to comply with a traffic citation pursuant to subsection (b), the court shall assess a reinstatement fee pursuant to K.S.A. 8-2110, as amended. Such reinstatement fee shall be in addition to any fine or other penalty assessed by the court, and in addition to those municipal court costs set forth in Section 1.04.070. The court shall remit all reinstatement fees pursuant to K.S.A. 8-2110, as amended.

(d) (1) Violations of the following ordinances and the state statutes listed in K.S.A. 8-2110(C)(i) shall not provide the basis for a violation of this section: Section 4.04.025, Section 4.16.130, Section 5.24.010, Section 5.44.050, Section 11.38.050, Section 11.38.060, Section 11.38.110, Section 11.44.010, Section 11.44.030, Section 11.44.040, Section 11.44.045, Section 11.44.070, Section 11.48.120, Section 11.48.130, Section 11.48.150, Section 11.48.160, Section 11.48.170, Chapter 11.50, Chapter 11.52, and Section 11.60.120 of the Code of the City of Wichita.

(2) The provisions of this paragraph shall be construed and applied retroactively. A person may petition the court if the citation(s) which they failed to comply led to suspension of their driving privileges and were for violations listed in subsection (d)(1). If the court determines that the person committed an offense listed in subsection (d)(1) that does not provide the basis for a violation of this section and suspension of the person's driving privileges, the court shall immediately electronically notify the Division of Vehicles to end any suspension of the person's driving privileges.

(e) (1) Any conviction for a failure to comply pursuant to this section shall not be considered by the court in determining suspended or restricted driving privileges if such conviction is more than five years old.

(2) The provisions of this subsection shall be construed and applied retroactively.

(f) As used in this section, "substantial compliance" or "substantially complied" means the person has followed the orders of the court involving payments of fines, court costs and any

penalties and has not failed substantially in making payments or satisfying the terms of the court order.
(Ord. No. 40-630 § 1; Ord. No. 52-604, § 1, 1-7-25)

CHAPTER 11.44. PEDESTRIANS

Sec. 11.44.010. Subject to traffic control signals.
Sec. 11.44.015. Congested area.
Sec. 11.44.020. Crossing streets at corners.
Sec. 11.44.030. Crossing roadway at location other than crosswalk.
Sec. 11.44.035. Drivers to exercise due care.
Sec. 11.44.040. Walking in right half of crosswalk.
Sec. 11.44.045. Walking on sidewalks required—Exceptions.
Sec. 11.44.050. Reserved.
Sec. 11.44.055. Pedestrians' right-of-way on sidewalks.
Sec. 11.44.057. Pedestrian must yield right-of-way to authorized emergency vehicle.
Sec. 11.44.060. Blind pedestrian right-of-way, when use of equipment unlawful.
Sec. 11.44.070. Pedestrian under the influence of alcohol or drugs.
Sec. 11.44.075. Obedience of pedestrian to bridge and railroad signals required.
Sec. 11.44.080. Preamble.
Sec. 11.44.090. Definitions.
Sec. 11.44.100. Entering or staying upon a designated roadway or impeding the flow of traffic is prohibited.
Sec. 11.44.110. Penalty.
Sec. 11.44.120. Severability.

Sec. 11.44.010. Subject to traffic control signals.

(a) A pedestrian shall obey the instructions of any official traffic control device specifically applicable to such pedestrian unless otherwise directed by a police officer.

(b) Pedestrians shall be subjected to traffic control signals at intersections as provided in Section 11.20.060.

(c) At all other places pedestrian shall be accorded the privileges and shall be subject to the restrictions stated in this title.
(Ord. No. 40-854 § 1)

Sec. 11.44.015. Congested area.

In the congested area defined in Section 11.04.060, a pedestrian shall not cross a roadway at any point other than within a marked crosswalk or other than at an unmarked crosswalk at intersections; for purposes of this section the junction of an alley with another roadway does not constitute an intersection.
(Ord. No. 40-854 § 2)

Sec. 11.44.020. Crossing streets at corners.

(a) When traffic control signals are not in place or in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield, to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the half of the roadway upon which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite half of the roadways to be in danger.

(b) Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any vehicle approaching from the rear shall not overtake and pass such stopped vehicle.

(c) No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close as to constitute an immediate hazard.

(d) Whenever pedestrian signals exhibiting indications of a WALKING PERSON (symbolizing WALK) and an UPRAISED HAND (symbolizing DONT WALK), such signals shall indicate as follows:

(1) A steady WALKING PERSON (symbolizing WALK) signal indication means that a pedestrian facing the signal indication is permitted to start to cross the roadway in the direction of the signal indication, possibly in conflict with turning vehicles. The pedestrian shall yield the right-of-way to vehicles lawfully within the intersection at the time that the WALKING PERSON (symbolizing WALK) signal indication is first shown.

(2) A flashing UPRAISED HAND (symbolizing DONT WALK) signal indication means that a pedestrian shall not start to cross the roadway in the direction of the signal indication, but that any pedestrian who has already started to

cross on a steady WALKING PERSON (symbolizing WALK) signal indication shall proceed to the far side of the traveled way of the street or highway, unless otherwise directed by a traffic control device to proceed only to the median of a divided highway or only to some other island or pedestrian refuge area.

(3) A steady UPRAISED HAND (symbolizing DONT WALK) signal indication means that a pedestrian shall not enter the roadway in the direction of the signal indication.

(e) Subsection (a) of this section shall not apply under the conditions stated in subsection (b) of Section 11.44.030.
(Ord. No. 40-854 § 3; Ord. No. 50-642, § 4, 12-19-17)

Sec. 11.44.030. Crossing roadway at location other than crosswalk.

(a) Every pedestrian crossing a roadway at any point other than within a marked crosswalk, or within an unmarked crosswalk at an intersection, shall yield the right-of-way to all vehicles upon the roadway.

(b) Any pedestrian crossing a roadway at a point where a pedestrian tunnel or an overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.

(c) Between adjacent intersections at which traffic-control signals are in operation or in the congested areas which are described in Section 11.04.060, a pedestrian shall not cross a roadway at any point except in a marked crosswalk, pedestrian lane, or unmarked crosswalk at such intersections.

(d) No pedestrian shall cross a roadway intersection diagonally unless authorized by official traffic-control devices; and, when authorized to cross diagonally, pedestrians shall cross only in accordance with the official traffic-control devices pertaining to such crossing movements.

(e) For the purposes of this section, the term "intersection" shall not include the juncture of an alley with another roadway.
(Ord. No. 40-854 § 4)

Sec. 11.44.035. Drivers to exercise due care.

Notwithstanding other provisions of this chapter, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any obviously confused or incapacitated person.
(Ord. No. 40-854 § 5)

Sec. 11.44.040. Walking in right half of crosswalk.

Pedestrians shall move, whenever practicable, upon the right half of the crosswalks.
(Ord. No. 40-854 § 6)

Sec. 11.44.045. Walking on sidewalks required—Exceptions.

(a) Where a sidewalk is provided and its use is practicable, it shall be unlawful for any pedestrian to walk along and upon an adjacent roadway.

(b) Where a sidewalk is not available, any pedestrian walking along and upon a highway shall walk only on a shoulder, as far as practicable from the edge of the roadway.

(c) Where neither a sidewalk nor a shoulder is available, any pedestrian walking along and upon a highway shall walk as near as practicable to an outside edge of the roadway, and, if on a two-way roadway, shall walk only on the left side of the roadway.

(d) Except as otherwise provided in this section, any pedestrian upon a roadway shall yield the right-of-way to all vehicles upon the roadway.
(Ord. No. 40-854 § 7)

Sec. 11.44.050. Reserved.

Editor's note—Ord. No. 50-642, § 7, adopted Dec. 19, 2017, repealed § 11.44.050, which pertained to soliciting rides, business or contributions prohibited—exceptions, and derived from Ord. No. 44-814 § 1.

Sec. 11.44.055. Pedestrians' right-of-way on sidewalks.

The driver of a vehicle shall yield the right-of-way to any pedestrian on a sidewalk.
(Ord. No. 40-854 § 9)

Sec. 11.44.057. Pedestrian must yield right-of-way to authorized emergency vehicle.

(a) Upon the immediate approach of an authorized emergency vehicle making use of an audible signal and visual signals meeting the requirements of 11.60.200 and 11.60.230 of this title, or of a police vehicle properly and lawfully making use of an audible signal only, every pedestrian shall yield the right-of-way to the authorized emergency vehicle.

(b) This section shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway nor from the duty to exercise due care to avoid colliding with any pedestrian.
(Ord. No. 40-854 § 10)

Sec. 11.44.060. Blind pedestrian right-of-way, when use of equipment unlawful.

(a) The driver of a vehicle shall yield the right-of-way to any pedestrian carrying a clearly visible white cane or accompanied by a guide dog.

(b) It is unlawful for any person, unless totally or partially blind or otherwise incapacitated, while on any public street or highway, to carry a cane or walking stick which is white in color or white tipped with red.
(Ord. No. 40-854 § 11)

Sec. 11.44.070. Pedestrian under the influence of alcohol or drugs.

A pedestrian who is under the influence of alcohol or any drug to a degree which render such pedestrian a hazard shall not walk or be upon a street or highway except on a sidewalk.
(Ord. No. 40-854 § 12)

Sec. 11.44.075. Obedience of pedestrian to bridge and railroad signals required.

(a) No pedestrian shall enter or remain upon any bridge or approach thereto beyond the bridge signal, gate or barrier after a bridge operation signal indication has been given.

(b) No pedestrian shall pass through, around, over or under any crossing gate or barrier at a railroad grade crossing or bridge while such gate or barrier is closed or is being opened or closed.
(Ord. No. 40-854 § 13)

Sec. 11.44.080. Preamble.

Whereas, the City Council hereby finds that the high volume of motor vehicles travelling on congested roadways in the City of Wichita makes mixing pedestrian and the moving, slowing or temporarily stopping of motor vehicles in the same space, at the same time, inherently dangerous. The City Council finds that pedestrians distracting drivers from the task of driving by approaching a stopped vehicle, attracting and/or attempting to attract the attention of the driver of a motor vehicle for the purpose of inducing that driver to slow or stop the vehicle to facilitate the transfer of anything from the driver or occupant of the vehicle to the pedestrian or the transfer of anything by the pedestrian to the driver or passenger is hazardous to public safety, both for occupants of motor vehicles and for pedestrians;

The City Council further finds that the prohibitions set forth in this chapter are narrowly tailored to serve the significant interest of promoting and protecting the public health, safety and welfare and that said prohibitions leave open ample alternative channels of communication throughout the City;

Whereas, it is the intent of this section to protect the health, safety and general welfare of the citizens of the City of Wichita, to assure the free, orderly, undisrupted movement of motor vehicles on designated highways within the City limits, and to provide for the safety and interests of pedestrians and of occupants of motor vehicles located on designated roadways within the City of Wichita and to reduce the number of pedestrian and motor vehicle accidents occurring within the City; and

Whereas, pedestrians are increasingly using highways and roadways in ways for which the roads were not designed or intended. These uses include approaching vehicles when stopped or in use or staying upon medians and in the public right of way for purposes other than crossing the highway. These activities create safety hazards for pedestrians and distract drivers, making automobile accidents more likely. This chapter is designed to decrease the safety hazards by restricting such activity. These safety concerns are most acute in the busiest streets within the City of Wichita, identified as arterial streets, main trafficways and those within a congested district.
(Ord. No. 50-642, § 8, 12-19-17)

Sec. 11.44.090. Definitions.

As used in this section the following words and phrases shall have the following meanings:

"Alley" shall be defined as set forth in Section 11.04.010.

"Arterial Street" shall be defined as set forth in Section 11.04.012 and include those streets designated in 11.96.100.

"Chief of Police" means the Chief of Police or his or her designee.

"Congested Area" shall be defined as set forth in Section 11.04.060.

"Crosswalk" shall be defined as set forth in Section 11.04.070.

"Designated Roadway" includes the roadways, shoulders, islands, public right-of-ways or medians of any:

(1) Arterial Street or Main Trafficway;

(2) Street within a Congested Area;

(3) Street with a posted speed limit of 40 mph or greater.

"Driver" shall be defined as set forth in Section 11.04.090.

"Intersection" shall be defined as set forth in Section 11.04.135.

"Island" or Median" means the paved or unpaved area between traffic lanes dividing a street or highway into separates lanes of traffic traveling in opposite directions, or in the case of left or right turn lanes, vehicles traveling in the same direction.

"Main Trafficways" shall include those roadways designated in Section 11.96.120.

"Motor Vehicle" shall be defined as set forth in Section 11.04.170.

"Pedestrian" shall be defined as set forth in Section 11.04.225.

"Private Road" shall be defined as set forth in Section 11.04.255.

"Public Right of Way" shall be defined as set forth in Section 11.04.257.

"Roadway" shall be defined as set forth in Section 11.04.290.

"Sidewalk" shall be defined as set forth in Section 11.04.320.
(Ord. No. 50-642, § 9, 12-19-17)

Sec. 11.44.100. Entering or staying upon a designated roadway or impeding the flow of traffic is prohibited.

(a) It shall be unlawful for any person to go upon any designated roadway and enter onto such roadway or approach a vehicle stopped on the roadway or at an intersection for the purpose of inducing the driver of the motor vehicle to remain stopped, slow or stop the vehicle to facilitate a transfer of anything from the driver or occupant of the vehicle to the pedestrian or the transfer of anything by the pedestrian to the driver or occupant.

(b) Except in an emergency, it shall be unlawful for any person to be upon a public roadway to impede or disrupt the flow of traffic, or act in any manner that tends to impede or disrupt the flow of traffic, whether or not such traffic is actually present.

For purposes of this section, actions "tends to impede or disrupt the flow of traffic" if a pedestrian's presence or action creates a dangerous condition upon the roadway or otherwise interrupts the free flow of vehicles and/or pedestrians, except as already permitted upon areas designated for pedestrian crossing.

(c) No person, parent or legal guardian shall knowingly allow or permit an individual under the age of eighteen years of age to violate the provisions of Subsections (a) or (b).

(d) No person shall activate a pedestrian crosswalk signal for any purpose other than to stop traffic to allow such person to cross the roadway.

(e) It is *prima facie* evidence of a violation of Subsection (d) if the person stays at the intersection through two consecutive opportunities to legally cross the roadway. This may include a change in the traffic control signal or lack of traffic. After two such consecutive opportunities, such person shall not be considered to be "using the crosswalk" for purposes of the exceptions set forth below.

(f) No driver or operator of a motor vehicle shall park, stop or leave standing a vehicle on a designated roadway or suddenly decrease the speed of such vehicle or deviate from a traffic lane for the purpose of responding to persons violating Subsections (a), (b) or (d).

(g) Exceptions.

This chapter does not apply to:

(1) Persons in or upon public or private parking lots, alleys or private roads;

(2) Persons using a crosswalk to cross the roadway;

(3) Persons engaged in law enforcement, emergency or rescue activities, including providing assistance to an injured or disabled vehicle or person;

(4) Persons entering a vehicle as an invited passenger where it is lawful to do so, including, but limited to: activity permitted under Chapter 3.84 (taxis), Chapter 3.85 (limousines) and Chapter 3.88 (airport limousines) or other "for hire" transportation services, including public transportation services;

(5) Persons engaged in the repair or maintenance activities of the highway under the direction of the City of Wichita or State of Kansas;

(6) Streets or portions thereof that have been closed pursuant to express authorization from the City to include, but not be limited to: community events licensed pursuant to Chapter 3.11, parades licensed pursuant to Chapter 3.14 of the Code of the City of Wichita or Use of Right-of-Way or Use of a Street permit issued pursuant to Chapter 10.08 of the Code of the City of Wichita; and

(7) Persons entering the roadway for the purpose of conducting business with a food truck properly licensed pursuant to Chapter 3.15 or an ice cream vendor properly licensed pursuant to Chapter 3.89 of the Code of the City of Wichita.

(h) A violation of this ordinance is a traffic infraction. Individuals who are fourteen years or older may be charged with violation of this ordinance.

(Ord. No. 50-642, § 10, 12-19-17; Ord. No. 52-601, § 1, 1-7-25)

Editor's note—Ord. No. 52-601, § 1, adopted Jan. 7, 2025, amended the title of § 11.44.100 to read as herein set out. The former § 11.44.100 title pertained to entering or staying upon a designated roadway prohibited.

Sec. 11.44.110. Penalty.

Any person who violates the provisions of Section 11.44.100 is guilty of a misdemeanor. Upon a conviction, a person shall be sentenced to

a fine not to exceed five hundred (500) dollars and/or imprisonment not to exceed thirty (30) days.
(Ord. No. 50-642, § 11, 12-19-17)

Sec. 11.44.120. Severability.

If any section, subsection, sentence, clause or phrase of this ordinance is for any reason held invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this chapter.
(Ord. No. 50-642, § 12, 12-19-17)

CHAPTER 11.48. BICYCLES*

Sec. 11.48.010. Definitions.
Sec. 11.48.090. Lamps, brakes and other equipment on bicycles.
Sec. 11.48.100. Subject to traffic-control devices and traffic regulations.
Sec. 11.48.120. Riding on roadways and bicycle paths.
Sec. 11.48.130. Riding upon bicycles and carrying passengers.
Sec. 11.48.150. Hitching to moving vehicles.
Sec. 11.48.160. Bicycles and human-powered vehicles on sidewalks.
Sec. 11.48.170. Parking of bicycles.
Sec. 11.48.175. Impounding bicycles.
Sec. 11.48.180. Sale of unclaimed or impounded bicycles.
Sec. 11.48.190. Bicycling under the influence of drugs and/or alcohol.
Sec. 11.48.200. Penalties for violation of this Chapter.

Sec. 11.48.010. Definitions.

(a) *Bicycle.* "Bicycle" means every vehicle propelled by human power upon which any person may ride having two or more tandem wheels, any of which is more than fourteen inches in diameter, but does not include any mobility device as defined by the Americans with Disabilities Act.

(b) *Bike path.* "Bike path" or "bicycle path" means a paved route separated from car traffic and designated for bicycle use.

(c) *Bike lane.* "Bike lane" or "bicycle lane" means a portion of the roadway designated for bicycle use separated from autos by a paint stripe, raised divider, or marked by signs and/or paint on the roadway.

(d) *Bike route.* "Bike route" means a route designated on streets having low traffic volume, marked by signs and/or paint on the street.

(e) *Nighttime.* "Nighttime" as used in this Chapter means any time from a half hour after sunset to a half hour before sunrise, or at any other time when, due to insufficient light or unfavorable atmospheric conditions, persons and vehicles on the streets, highways or roadways are not clearly discernable at a distance of one thousand feet ahead.

The regulations of this Chapter applicable to bicycles shall apply whenever a bicycle is operated upon any sidewalk, street, roadway, highway, or public path set aside for the exclusive use of pedestrian and bicycle traffic, and shall also include all public parks and playgrounds or other property under the ownership, jurisdiction or control of the City, the Board of Park Commissioners or any other agency created to provide a public service in or adjacent to the City.

(Ord. No. 35-678 (part); Ord. No. 48-754 § 1, 6-22-2010)

Sec. 11.48.090. Lamps, brakes and other equipment on bicycles.

(a) Every bicycle when in use at nighttime shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred feet to the front and with a red reflector on the rear of a type approved by the Secretary of Transportation which shall be visible from all distances from one hundred feet to six hundred feet to the rear when directly in front of lawful lower beams of head lamps on a motor vehicle. A lamp emitting a red light visible from a distance of five hundred feet to the rear may be used in addition to the red reflector.

(b) Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheel skid on dry, level, clean pavement.

(c) No person shall sell a pedal for use on a bicycle, unless such pedal is equipped with a reflector of a type approved by the Secretary of Transportation which is visible from the front and rear of the bicycle to which it is attached during darkness from a distance of two hundred

*__Editor's note—__Ord. No. 48-754 § 8, adopted June 22, 2010, amended Ch. 11.48 in its entirety to read as herein set out. Formerly said chapter pertained to similar subject matter and derived from Ord. No. 35-678(part) and subsequent amendatory ordinances.

__Cross reference—__As to carrying another person upon handlebars, frame, etc., see § 11.40.100. As to brake on bicycle with motor, see § 11.60.180. As to siren or whistle on bicycle, see § 11.60.190.

feet, and no person shall sell a new bicycle, unless it is equipped with pedals in accordance with the provisions of this Section.
(Ord. No. 35-678 (part))

Sec. 11.48.100. Subject to traffic-control devices and traffic regulations.

Every person riding a bicycle upon a street, highway or roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this Code except as to special ordinances so designated and except to those provisions of this Code which by their nature can have no application.
(Ord. No. 35-678 (part); Ord. No. 48-754 § 2, 6-22-2010)

Sec. 11.48.120. Riding on roadways and bicycle paths.

(a) Every person operating a bicycle upon a street, highway or roadway at less than the normal speed of traffic at the time and place and under the conditions then existing shall ride as near to the right side of the street, highway, or roadway as practicable, except under any of the following situations when:

(1) Overtaking and passing another bicycle or vehicle proceeding in the same direction;

(2) Preparing for a left turn at an intersection or into a private road or driveway; or

(3) Reasonably necessary to avoid conditions including, but not limited to, fixed or moving objects, parked or moving bicycles, pedestrians, animals, surface hazards or narrow width lanes that make it unsafe to continue along the right-hand edge of the street, highway or roadway.

(b) Any person operating a bicycle upon a one-way street, highway or roadway with two or more marked traffic lanes may ride as near to the left side of the roadway as practicable.

(c) Persons riding bicycles upon a roadway shall not ride more than two abreast except on paths or parts of roadways set aside for the exclusive use of bicycles.

(d) Wherever a usable path for bicycles has been provided adjacent to a street, highway or roadway, bicycle riders shall use such path and shall not use the street, highway or roadway.

(e) For purposes of this Section, "narrow width lane" means a lane that is too narrow for a bicycle and a vehicle to travel safely side-by-side within the lane.
(Ord. No. 35-678 (part); Ord. No. 48-754 § 3, 6-22-2010)

Sec. 11.48.130. Riding upon bicycles and carrying passengers.

(a) A person riding a bicycle upon a street, highway, roadway, alley, bike path, bike lane or sidewalk of the City shall not ride other than upon or astride a permanent and regular seat attached thereto.

(b) No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped, provided, however, that a child who is less than five years of age may be carried on a bicycle by a person operating said bicycle if the following conditions are met:

(1) The person operating the bicycle must either be the parent or legal guardian of the child or have the consent of the parent or legal guardian;

(2) The child must be carried on a seat constructed on the rear of said bicycle, which seat must be a manufactured type that complies with the current Consumer Product Safety Commission Standards;

(3) An adult rider may carry a child in a wheeled child carrier designed for attachment to a bicycle.

(Ord. No. 35-678 (part); Ord. No. 48-754 § 4, 6-22-2010)

Sec. 11.48.150. Hitching to moving vehicles.*

It shall be unlawful for any person while riding a bicycle on the streets or highways of the City to hitch or otherwise attach himself onto other moving vehicles.
(Ord. No. 19-139 § 137)

*__Cross reference—__See also § 11.40.090.

Sec. 11.48.160. Bicycles and human-powered vehicles on sidewalks.

(a) A person operating a bicycle upon and along a sidewalk, or across a roadway upon and along a crosswalk, shall yield the right-of-way to any pedestrian and shall give an audible signal before overtaking and passing such pedestrian.

(b) A person operating a vehicle by human power upon and along a sidewalk or across a roadway upon and along a crosswalk, shall have all the rights and duties applicable to a pedestrian under the same circumstances.

(c) No bicycle shall be ridden upon sidewalks in the central business district except in designated areas.

(d) Subsections (a) and (c) of this Section shall not apply to members of the Wichita Police Department in and during the performance of their lawful duties.
(Ord. No. 42-489 § 1)

Sec. 11.48.170. Parking of bicycles.

It is unlawful for any person to park or leave a bicycle on public property where such bicycle blocks pedestrian travel or presents a traffic hazard.
(Ord. No. 35-678 (part); Ord. No. 48-754 § 5, 6-22-2010)

Sec. 11.48.175. Impounding bicycles.

Bicycles shall be impounded to the police department or to any other place of safety:

(a) When such bicycle is abandoned;

(b) When such bicycle is reported or determined to be stolen and is recovered; or

(c) When such bicycle is left parked on public property where that bicycle blocks pedestrian travel or presents a traffic hazard.

A bicycle impounded by the police department shall not be released until the bicycle has been investigated and the rightful owner is found and shows proof of ownership.
(Ord. No. 32-708 (part); Ord. No. 48-754 § 6, 6-22-2010)

Sec. 11.48.180. Sale of unclaimed or impounded bicycles.

Whenever a bicycle has been impounded for a period of thirty days and no claim of ownership or the right to possession thereof has been made and established to the satisfaction of the police department, such bicycle may be sold at public auction or distributed to benefit public welfare at the discretion of the police department after legal publication of the time, date and location of such sale or disposition.
(Ord. No. 32-708 (part); Ord. No. 48-754 § 7, 6-22-2010; Ord. No. 50-291 § 1, 7-26-16)

Sec. 11.48.190. Bicycling under the influence of drugs and/or alcohol.

(a) No person shall ride or attempt to ride a bicycle on any sidewalk, street, roadway, highway, or public path set aside for the exclusive use of pedestrian and bicycle traffic, including all public parks and playgrounds or other property under the ownership, jurisdiction or control of the city, the board of park commissioners or any other agency created to provide a public service, while under the influence of an alcoholic beverage or any drug, or under the combined influence of an alcoholic beverage and any drug to a degree which renders such person a hazard.

(b) Any person arrested for a violation of this section may request to have a chemical test made of the person's blood, breath, or urine for the purpose of determining the alcoholic or drug content of that person's blood, and, if so requested, the arresting officer shall have discretion as to the appropriate test to be performed.

(c) Any person, who, within the corporate limits of the city, violates any of the provisions of this chapter shall be guilty of a misdemeanor

and upon conviction shall be punished by a fine not to exceed $500.00, or by six months imprisonment, or by both such fine and imprisonment.
(Ord. No. 50-316 §§ 1, 2, 9-13-16)

Sec. 11.48.200. Penalties for violation of this Chapter.

Any person or representative of a firm covered by this Chapter, if convicted of a violation of any of the provisions of it, shall for the first conviction thereof be punished by a fine of not more than one hundred dollars; for a second such conviction within one year thereafter, such person shall be punished by a fine of not more than two hundred dollars; upon a third or subsequent conviction within one year after the first conviction, such person shall be punished by a fine of not more than five hundred dollars.
(Ord. No. 32-708 (part))

CHAPTER 11.50. ELECTRIC-ASSISTED SCOOTERS

Sec. 11.50.005. Preamble.
Sec. 11.50.010. Electric-assisted scooter operation.
Sec. 11.50.020. Operation of electric-assisted scooter while under the influence of drugs or alcohol.
Sec. 11.50.030. Prohibited parking of electric-assisted scooters
Sec. 11.50.040. Impoundment of electric-assisted scooters.
Sec. 11.50.080. Penalties.
Sec. 11.50.090. Severability.

Sec. 11.50.005. Preamble.

WHEREAS, pursuant to Art. 12, Section 5 of the Kansas Constitution, the City of Wichita is granted Home Rule Authority to pass ordinances not in conflict with the Constitution and laws of the State of Kansas or the law of the United States; and

WHEREAS, the City Council finds that this ordinance is not inconsistent with the provisions of the Constitution and laws of the United States and the State Kansas; and

WHEREAS, the City Council anticipates a profusion of shared electric-assisted scooters being deployed within the City by companies as part of the Dockless Electric-Assisted Scooter Sharing Systems; and

WHEREAS, such profusion and congestion of scooters, particularly in the City's Downtown areas, will produce unique safety and traffic concerns which are not present for scooters owned by private individuals; and

WHEREAS, currently there is no regulation or guidelines regarding the operation of such electric assisted scooters; and

WHEREAS, the City seeks to promote shared mobility in the short and long term to promote greater connectivity, access and quality of life and recognizes shared mobility is essential to improve air quality, reduce motor vehicle traffic and promote equitable and accessible systems of transportation; and

WHEREAS, the City Councils finds it is in the public's interest to establish policies and procedures for electric scooter sharing programs to improve mobility options while protections health, safety and general welfare of individuals and the community at large.
(Ord. No. 51-049, § 6, 6-18-19)

Sec. 11.50.010. Electric-assisted scooter operation.

(a) Except as set forth below, the operation of electric-assisted scooters shall be permitted upon a street, highway or roadway and on designated bicycle and multiuse paths and in designated areas.

(b) It shall be unlawful for any person to operate an electric-assisted scooter on the sidewalk.

(c) It shall be unlawful for any person to operate an electric-assisted scooter on a street with a posted speed limit of forty (40) miles per hour or higher unless there is a bike lane on such roadway.

(d) It shall be unlawful for any person to engage in any activity that interferes with the safe operation of the electric-assisted scooter.

(e) It shall be unlawful for any person to operate an electric assisted scooter in such a manner as to indicate a careless or heedless disregard for the rights or safety or others or in such a manner as to endanger or be likely to endanger any person or property.

(f) Every person riding an electric-assisted scooter upon a street, highway or roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this Title except as to special ordinances so designated and except to those provisions of this code which by their nature can have no application.

(g) Every person operating an electric-assisted scooter upon a street, highway or roadway at less than the normal speed of traffic shall ride as near to the right side of the street, highway or roadway as practicable except when:

(1) Preparing to make a left turn at an intersection or into a private drive or roadway; and

(2) Reasonably necessary to avoid conditions including, but not limited to, fixed or moving objects, parked or moving vehicles, bicycles, pedestrians, animals, surface hazards, or narrow width lanes that make it unsafe to continue along the right-hand edge of the street, highway or roadway.

For the purposes of this section, "Narrow width lane" means a lane that is too narrow for a bicycle or stand up electric-assisted scooter and a vehicle to travel safely side-by-side within the lane.

(h) Any person operating an electric-assisted scooter upon a one-way street, highway or roadway with two or more marked traffic lanes shall ride as near to the left side of the roadway as practicable.

(i) Persons riding electric-assisted scooters upon a street, highway, or roadway shall not ride more than two abreast except on paths or parts of roadways set aside for the exclusive use of bicycles or electric-assisted scooters.

(j) No electric-assisted scooter shall be used to carry more persons at one time than the number for which it is designed or equipped.

(k) It shall be unlawful for any person while riding an electric-assisted scooter on the streets, highways, bicycle or multiuse paths of the City, to hitch or otherwise attach him or herself onto other moving vehicles.

(l) A person operating an electric-assisted scooter across a street, highway or a roadway or along a crosswalk shall yield the right of way to any pedestrian and shall give the audible signal before overtaking and passing such pedestrian.

(m) Any person operating an electric-assisted scooter across a roadway or along a crosswalk shall have all the rights and duties applicable to a pedestrian under the same circumstances.

(n) It shall be unlawful for any person to operate an electric-assisted scooter at nighttime without operation of a lamp on the front which emits a white light visible from a distance of at least 500 (five hundred) feet to the front and with a red reflector on the rear of a type approved by the Secretary of Transportation which shall be visible from all distances from 100 (one hundred) feet to 600 (six hundred) feet to the rear when directly in front of lawful lower beams of headlamps on a motor vehicle. A lamp emitting a red light visible from a distance of 500 (five hundred) feet to the rear may be used in addition to the red reflector.

As used in this section, nighttime means any time from a half hour before sunrise, or at any other time when due to insufficient light or unfavorable atmospheric conditions, persons and vehicles on the streets, highway or roadways are not clearly discernable at a distance of 1000 (one thousand) feet ahead.

(o) It shall be unlawful for any person to operate an electric-assisted scooter at a speed in excess of twenty (20) miles per hour.

(p) Vehicle registration and driver's license shall not be required for operation of an electric-assisted scooter.
(Ord. No. 51-049, § 7, 6-18-19; Ord. No. 52-367, § 1, 4-23-24)

Sec. 11.50.020. Operation of electric-assisted scooter while under the influence of drugs or alcohol.

(a) No person shall ride or attempt to ride an electric-assisted scooter on any sidewalk, street, roadway, highway, or public path set aside for the exclusive use of pedestrian and bicycle traffic, including all public parks and playgrounds or other property under the ownership, jurisdiction or control of the city, the board of park commissioners or any other agency created to provide a public service, while under the influence of an alcoholic beverage or any drug, or under the combined influence of an alcoholic beverage and any drug to a degree which renders such person a hazard.

(b) Any person arrested for a violation of this section may request to have a chemical test made of the person's blood, breath, or urine for the purpose of determining the alcoholic or drug

content of that person's blood, and, if so requested, the arresting officer shall have discretion as to the appropriate test to be performed.

(c) Any person, who, within the corporate limits of the city, violates any of the provisions of this chapter shall be guilty of a misdemeanor and upon conviction shall be punished by a fine not to exceed $500.00, or by six months imprisonment, or by both such fine and imprisonment.
(Ord. No. 51-049, § 8, 6-18-19)

Sec. 11.50.030. Prohibited parking of electric-assisted scooters

(a) It is unlawful for any person to park or leave an electric-assisted scooter on public property where such electric-assisted scooter blocks pedestrian's travel or presents a traffic hazard.

(b) It is unlawful for any person to park or leave an electric-assisted scooter in the area adjacent to or within the following areas:

1. Transit zones, including bus stops, shelters, passenger waiting areas and bus layover and staging zones, except at existing bicycles racks;
2. Loading zones;
3. Disabled parking zones;
4. Curb ramps;
5. Driveways and driveway approaches;
6. Motor Vehicle parking spaces;
7. Motor vehicle driving lanes or bicycle lanes; and
8. Entrances to private property or driveways.

(c) It is unlawful for any person to park or leave an electric-assisted scooter in any manner or to impede or interfere with the access to or from any building.
(Ord. No. 51-049, § 9, 6-18-19)

Sec. 11.50.040. Impoundment of electric-assisted scooters.

Electric-assisted scooters may be impounded or taken to any other place of safety by the police department or another authorized city representative when:

(a) The electric-assisted scooter is reported or determined to be stolen and is recovered; or

(b) The electric-assisted scooter is abandoned; or

(c) The electric-assisted scooter is left on public property where that scooter blocks pedestrian travel or presents a traffic hazard.

An impounded electric-assisted scooter shall not be released by the City until all necessary impound fees have been paid and the rightful owner is found and shows proof of ownership.
(Ord. No. 51-049, § 10, 6-18-19)

Sec. 11.50.080. Penalties.

Except as otherwise provided, the Administrative Municipal Court Judge shall establish a schedule of fines to be imposed for violations of this Chapter.
(Ord. No. 51-049, § 11, 6-18-19)

Sec. 11.50.090. Severability.

The provisions of this ordinance are severable and should any such provision be declared unconstitutional or unenforceable, such declaration shall not affect any of the remaining provisions hereof.
(Ord. No. 51-049, § 11, 6-18-19)

CHAPTER 11.51. OPERATION OF GOLF CARTS

Sec. 11.51.010. Definitions.
Sec. 11.51.020. Golf cart operations prohibited.
Sec. 11.51.050. Valid driver's license required age restriction.
Sec. 11.51.060. Insurance required.
Sec. 11.51.070. Golf cart operation requirements.
Sec. 11.51.080. Exclusions.
Sec. 11.51.090. Penalty.

Sec. 11.51.010. Definitions.

The following words, as used in this Chapter, have the meanings set forth below:

(a) "Golf Cart" means a motor vehicle as defined by Section 11.04.117. Such term shall not include All-Terrain Vehicles "ATV" as defined by Section 11.04.007 or K.S.A. 8-1402a, Micro Trucks as defined by Section 11.04.157 or K.S.A. 8-1494 or Work-Site Utility Vehicle "UTV" as defined by Section 11.04.405 of K.S.A. 8-1493.

(b) "Roadway" means the portion of a highway improved, designed, or ordinarily used for vehicular travel, exclusive of the berm or shoulder. In the event a highway includes two or more separate roadways, the term "Roadway" as used herein shall refer to any such roadway separately, but not to all such roadways collectively.

(c) "Slow-Moving Vehicle Emblem" has the same meaning as contained in K.S.A. 8-1717, and amendments thereto for purposes of this ordinance.
(Ord. No. 52-633, § 5, 3-25-25)

Sec. 11.51.020. Golf cart operations prohibited.

It shall be unlawful for any person to operate a Golf Cart:

(a) On any state highway, federal highway, or interstate highway within the corporate limits of the City of Wichita, including but not limited to: Interstate Highway I-135, Interstate Highway I-35, Interstate Highway I-235, Kansas Highway 96, Kansas Highway 15, Kansas Highway 42, Kansas Highway 254, and Kansas Highway 54. A Golf Cart shall not be used to cross any such highway.

(b) On any street or roadway with a speed limit on such street or roadway which exceeds thirty (30) miles per hour or more.

(c) Golf carts may cross roadways with speed limits exceeding thirty (30) miles per hour, but only at controlled intersections.

(d) On any sidewalk, jogging path, trail, or any location normally used for pedestrian traffic.

(e) On any bike trail, or any on-street bike lane or other location which is marked in a manner to designate its use by bicyclists.

(f) On or across public or private property without permission of the owner(s).
(Ord. No. 52-633, § 6, 3-25-25)

Sec. 11.51.050. Valid driver's license required age restriction.

(a) No person shall operate a Golf Cart on any street or roadway within the corporate limits of the City unless such person has a valid non-restricted driver's license.

(b) No person shall operate a Golf Cart on any street, roadway or sidewalk unless the operator is sixteen (16) years of age or older.

(c) No person shall knowingly allow the operation of a Golf Cart by an individual under 16 years or age or an individual without a valid driver's license on any street or roadway within the corporate limits of the City.

(d) Violation of Subsection (a) is a misdemeanor. Any person convicted of a violation of Subsection (a) shall be sentenced to a term of imprisonment of not more than six months and/or a $1,000.00 fine or both such fine and imprisonment.
(Ord. No. 52-633, § 7, 3-25-25)

Sec. 11.51.060. Insurance required.

(a) Every owner, driver or operator of a Golf Cart operated upon the public highways, streets, roads and alleys within the corporate limits of the City of Wichita, Kansas, shall provide liability coverage in accordance with Section 11.13.010 of the Code of the City of Wichita, and amendments thereto, and the Kansas Automobile Injury Reparations Act, K.S.A. 40-3101 et seq., and amendments thereto, upon request to a law enforcement officer.

(b) Any person convicted of violating any of the provisions of this section shall be deemed guilty of a misdemeanor and shall be punished by a mandatory fine of not less than three hundred dollars nor more than one thousand dollars or by imprisonment for not more than six months, or by both such fine and imprisonment. Any person convicted of violating any of the provisions of this section within three years of any such prior conviction shall be deemed guilty of a misdemeanor and shall be punished by a fine of not less than eight hundred dollars nor more than two thousand five hundred dollars or by imprisonment for not more than one year, or by both such fine and imprisonment.
(Ord. No. 52-633, § 8, 3-25-25)

Sec. 11.51.070. Golf cart operation requirements.

It shall be unlawful for any operator of a Golf Cart to operate a Golf Cart on a city street:

(a) Between sunset and sunrise unless such vehicle is properly equipped with: (1) lights as required by state law for motorcycles and (2) a properly mounted slow-moving vehicle emblem as required by K.S.A. 8-1717 and amendments thereto. The Slow-Moving Vehicle Emblem shall be mounted and displayed in compliance with K.S.A 8-1717 and amendments thereto;

(b) Fail to operate a Golf Cart to the extreme right of the roadway;

(c) Fail to yield to all vehicular, bicycle and pedestrian traffic;

(d) Fail to comply with the provisions of Chapter 11 of the Code of the City of Wichita. Persons operating a Golf Cart on streets, roads, alleys or any roadway are subject to all the duties applicable to the driver of a vehicle by the traffic provisions of Title 11 applicable to the driver of a vehicle, except as to special regulations in this Chapter except as to those provisions of law and ordinances which by their nature are inapplicable to such persons.

(e) Utilize the Golf Cart as a taxi or bus or for the commercial carrying of passengers or the hauling of freight.

(f) The number of occupants allowed on a golf cart shall be limited to the number of seats which are factory installed. Bench seats shall be limited to three (3) people.

(g) Occupants may not ride or sit in an area not designated or intended for use of passengers when the vehicle is in motion. Passengers are not allowed to ride on the lap of the operator or another passenger.

(h) Operators shall not allow any passenger to ride or sit in an area not designated or intended for use of passengers when the vehicle is in motion.

(i) It shall be unlawful for any person to operate a Golf Cart on any public roadway within the corporate limits of the city unless such vehicle is equipped with safety equipment that meets the equipment requirements under Article 17 of Chapter 8 of the Kansas Statutes Annotated and amendments thereto including, but not limited to:

(1) Stop Lamps;

(2) Tail Lamps;

(3) Rear Reflector;

(4) Brakes; and

(5) At least one functioning rear view mirror.

(Ord. No. 52-633, § 9, 3-25-25)

Sec. 11.51.080. Exclusions.

(a) The provisions of this Chapter are not applicable to the operation of any Golf Cart, ATV, Micro-Utility Truck or Work-Site Utility Vehicle or "UTV" by governmental entities in the course of any authorized duties.

(b) The provisions of this Chapter are not applicable to the operation of Golf Carts, ATV, Micro-Utility Truck or Work-Site Utility Vehicle "UTV" which are being operated on a closed street, alley or roadway as part of a licensed community event authorized by Section 3.11.205 of the Code of the City of Wichita.

(c) The provisions of this Chapter are not applicable to the operation of Golf Carts utilized solely on personal property, including public and private golf courses, which are not operated on the streets of the City of Wichita.
(Ord. No. 52-633, § 10, 3-25-25)

Sec. 11.51.090. Penalty.

Unless otherwise specified, a violation of this Chapter is punishable by a fine of not more than two hundred dollars ($200).
(Ord. No. 52-633, § 11, 3-25-25)

CHAPTER 11.52. PARKING

Sec. 11.52.010. City Traffic Engineer—Powers.
Sec. 11.52.020. Unlawful parking—Exceptions.
Sec. 11.52.025. Enforcement of Section 11.52.020(25).
Sec. 11.52.030. Parking restrictions.
Sec. 11.52.035. Enforcement of Sections 11.52.020(4) and 11.52.030.
Sec. 11.52.040. Parallel parking—Where permitted.
Sec. 11.52.045. Stopping or parking on main trafficway streets prohibited.
Sec. 11.52.050. Diagonal parking—Restrictions.
Sec. 11.52.055. Parking in central core area.
Sec. 11.52.060. Requirements for leaving vehicle.
Sec. 11.52.070. Moving from parking space.
Sec. 11.52.080. Parking in police car zone.
Sec. 11.52.090. Parking in the City Hall parking garage and adjacent parking lot—Permit parking.
Sec. 11.52.110. Parking procedures in lots in the Twenty-First Street area.
Sec. 11.52.115. Parking procedures in lots in the Old Town district.
Sec. 11.52.120. Establishment, designation and posting of municipal parking zones.
Sec. 11.52.130. Unlawful parking within a municipal parking lot or garage within a parking zone-regulated—Penalties.
Sec. 11.52.140. Municipal parking zone regulated by parking meters.
Sec. 11.52.150. Issuance, fees, requirements and display of temporary permits; duties of city officers.
Sec. 11.52.160. Parking in reserved parking areas within parking zones-regulated—Permits.
Sec. 11.52.170. Collectors.
Sec. 11.52.180. Appointment of special officers by City Manager.

Sec. 11.52.010. City Traffic Engineer—Powers.

(1) The City Traffic Engineer is authorized and directed to designate no-parking zones and restricted parking zones, taxicab stands, police car parking zones and parking zones-regulated consistent with public interest, convenience and necessity upon the streets and alleys of the city.

(2) The City Traffic Engineer is further authorized and directed to establish and designate the times and dates of enforcement for the parking of motor vehicles in parking zones-regulated and the restrictions by time or otherwise to be placed upon restricted parking zones-regulated where the same is deemed to be in the public interest.

(3) The City Traffic Engineer is further authorized to establish and designate the appropriate fees for parking in on-street and municipal off-street parking spaces, parking lots and parking garages (parking zones-regulated). The City Traffic Engineer shall utilize and duly consider information and advice from any contracted parking consultant in developing appropriate fee schedules. Fee schedules and parking zones-regulated designated pursuant to this Title, shall be based in part upon the cost of installation, maintenance and regulation of the lot and shall be established by the City Traffic Engineer with approval by the City Manager. Said fee schedules shall remain in effect until modified by the City Council.

(4) The City Traffic Engineer shall appropriately post or cause to be posted by official traffic control devices the no-parking zones, restricted parking zones and parking zones-regulated and give notice of the parking fees and potential penalties for violations. The presence of a parking meter in any form shall be sufficient notice that the parking area at that location is a parking zone—regulated.

(5) The time limit or other restriction placed upon any parking area shall become effective when the time limit or other restriction on parking is designated by an official traffic control device or signs erected upon the street or alley affected. The time limit placed upon parking meters shall become effective when such limit is designated on the respective parking meter or meters.

(6) To be effective, the time limits or other restrictions placed upon any parking zone—regulated shall be posted on an official traffic control device or devices erected upon the street or alley affected. The time allowing authorized parking for any parking space shall start and end when such limits are designated on the respective parking meter or meters by dial and flag mechanisms, receipt, or other means.

(7) All actions of the City Traffic Engineer under this Chapter shall be subject to the review and approval of the City Manager.

(Ord. No. 39-098 § 1; Ord. No. 52-326, § 4, 1-9-24)

Editor's note—Ord. No. 52-326, § 4, adopted Jan. 9, 2024, amended the title of § 11.52.010 to read as herein set out. The former § 11.52.010 title pertained to time limits.

Sec. 11.52.020. Unlawful parking—Exceptions.

It is unlawful, except when necessary to avoid conflict with other traffic or in obedience to traffic regulations or the directions of traffic control devices or a police officer:

(1) For any person or operator to park on any street, or alley in the city without paying the posted fee or for a longer time than shown on an official traffic control device or parking meter stating the maximum period for parking. It is unlawful for any vehicle to be parked on the same side of the street in the same block for a period or periods of time, the total of which is greater than the period of time so designated for parking on such street;

(2) For any person or operator, other than the operator of a taxicab or U.S. postal vehicle, to park in any taxicab stand when the same has been designated and marked as such;

(3) For any person or operator to park on any street, parking lot, or parking structure, whether private or public, at any time in any zone designated as a no-parking zone or to park a vehicle other than the model authorized in any zone that prohibits a certain model or size of vehicle;

(4) For any person or operator to park a motor vehicle on a sidewalk or in a sidewalk area;

(5) For any person or operator to park a motor vehicle in front of or within the approach to a public or private driveway or alley, or within eight feet of the line formed by the extension of either edge of the public or private driveway or alley;

(6) For any person or operator to stand or park a motor vehicle within an intersection;

(7) For any person or operator to park a motor vehicle within fifteen feet of a fire hydrant, provided such place is not in a parking zone-regulated;

(8) For any person or operator to stand or park a motor vehicle on a crosswalk;

(9) For any person or operator to stand or park a motor vehicle within twenty feet of a crosswalk at an intersection, not in a parking zone—regulated;

(10) For any person or operator to stand or park a motor vehicle within thirty feet of the approach of any flashing beacon, stop sign or official traffic signal located at the side of a roadway, not in a parking zone—regulated;

(11) For any person or operator to stand or park a motor vehicle between a safety zone and the adjacent curb or within thirty feet of points on the curb immediately opposite the ends of a safety zone, unless the City Traffic Engineer indicates a different length by signs or markings;

(12) For any person or operator to park a motor vehicle within fifty feet of the nearest rail of a railroad crossing or to park on or within six feet of a railroad track lying within a street;

(13) For any person or operator to stand or park a motor vehicle within twenty feet of the driveway entrance to any fire station, or on the side of the street opposite the entrance to any fire station within seventy-five feet of such entrance when designated by an official traffic control device;

(14) For any person or operator to stand or park a motor vehicle alongside or opposite any street excavation or obstruction when such stopping, standing or parking would obstruct traffic;

(15) For any person or operator to stand or park a motor vehicle on the roadway side of any vehicle stopped or parked at the edge or curb of a street;

(16) For any person or operator to stand or park a motor vehicle upon any bridge or other elevated structure upon a highway or within a highway tunnel;

(17) For any person or operator to move a motor vehicle not owned by such person into any of the above prohibited areas, into a no-parking zone, or away from a curb when such distance is unlawful;

(18) For any person or operator to park a motor vehicle on any street, alley, or right of way in the city for the purpose of advertising;

(19) For any person or operator of a motor vehicle to stop, stand, or park such vehicle for the purpose of loading or unloading children where such children are going to or returning from school, except upon the side of the street where the school is located;

(20) (a) For any person or operator to stand or park a motor vehicle in an alley except in the case of a truck which shall be permitted to park in any alley while actually engaged in loading or unloading, or for a period of time not to exceed thirty minutes; provided, that such truck shall not be parked or permitted to stand in any alley in such a manner or under such conditions as to leave available less than ten feet of width of the alleyway for a free movement of vehicular traffic, except that in alleys with less than sixteen feet of width for the free movement of vehicular traffic, trucks shall be parked either with the right wheels within six inches of a curb, where there is a curb or the right side of the vehicle within six inches of abutting buildings or loading docks, where no curb is provided; and

(b) For any person or operator to stand or park a motor vehicle in the Old Town overlay zoning district in those alleys which are not designated for parking by the City Traffic Engineer by appropriate signs, provided that only one side of an alley may be designated for parking and, provided further, that such alleys may be closed from time to time under the same procedure as used for street closures;

(21) For any person or operator to stand, or park any motor vehicle upon a street other than an alley in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway for free movement of vehicular traffic;

(22) For any person or operator to park a motor vehicle on any street or alley in the City for the primary purpose of displaying it for sale;

(23) For any person or operator to park a motor vehicle on any street or alley in the City for the primary purpose of washing, greasing or repairing such vehicle except repairs necessitated by an emergency;

(24) For any person or operator, except when necessary for the loading or unloading of passengers, property, or merchandise, or the performance of services at a residence, to park a truck as defined in 11.04.385, a bus, recreational vehicle, tractor, road tractor, farm tractor, trailer, semitrailer or commercial vehicle as defined in Subsection (24)(a) of this section, on any street in a residential district, as defined in Section 11.04.275, for longer than two hours without having either a Use of Street Permit or a Use of Right of Way Permit issued under Chapter 10. In any twenty-four hour period, it is unlawful for any such vehicle to be parked on the same side of the street, in the same block, for a period or periods of time, the total of which is greater than two hours;

(a) As used in this section, "commercial vehicle" means any truck, van, panel truck, delivery van, trailer, semitrailer or pole trailer drawn by a motor vehicle, which vehicle is designed, used or maintained for the transportation of persons or the delivery of property for hire, compensation, profit or in the

furtherance of any commercial enterprise. The term "commercial vehicle" does not include vehicles typically used for passenger or commuting purposes which have a gross weight of twelve thousand pounds and under or motor vehicles which are licensed and registered as a passenger vehicle.

(25) (a)

(i) For any person or operator to stand or park a vehicle, as defined in K.S.A. 8-126 and amendments thereto, in any parking space designated as accessible parking without having on their person a current and valid disabled identification card or a state or county receipt for a temporary placard, and properly displaying a current and valid special license plate, permanent placard, disabled veteran license plate, or temporary placard issued pursuant to K.S.A. 8-161 or K.S.A. 8-1,125, and any amendments thereto, and such vehicle is actually being operated by or used for the transportation of a disabled person or disabled veteran. Only "Disabled Veteran" plates, not merely "Veteran" plates, are valid for using accessible parking.

(ii) For the purposes of this section, permanent or temporary placards must be suspended from the front windshield rearview mirror of a vehicle utilizing a parking space reserved for persons with disabilities so as to be maximally visible from the outside of the vehicle. Only when there is no rearview mirror shall the placard be displayed on the dashboard. Special license plates or disabled veteran license plates must be displayed on the vehicle in compliance with K.S.A. 8-133, and any amendments thereto.

(b) For any person or operator to stand or park a vehicle, as defined in K.S.A. 8-126 and amendments thereto, so that it blocks access to a designated accessible parking space, access aisle, or access area. For purposes of this subsection, "access aisle" shall be defined to be that area of whatever dimension or configuration immediately adjacent to a designated accessible parking space that is marked in any manner indicating it is to be used in conjunction with such designated disabled accessible parking space. "Access area" shall be defined to be that area of whatever dimension or configuration immediately adjacent to a designated accessible parking space that is marked in any manner indicating it is to be used in conjunction with such disabled accessible parking space.

(c) Violation of Subsections (25)(a) or (25)(b) of this Section is a misdemeanor punishable by a fine of not less than one hundred dollars.

(d) For any person or operator to stand or park a vehicle, as defined in K.S.A. § 8-126 and amendments thereto, in any parking space designated as accessible parking without properly displaying, as required by Subsection (25)(a)(ii) of this section, a current and valid special license plate, permanent placard, disabled veteran license plate, or temporary placard issued to such person or operator pursuant to K.S.A. § 8-161 or K.S.A. § 8-1,125, and any amendments thereto, and such vehicle is actually being

operated by or used for the transportation of a disabled individual or disabled veteran.

(e) Violation of Subsection (25)(d) of this section is a misdemeanor punishable by a fine of not less than fifty dollars.

(f) Persons operating vehicles that meet the requirements set forth in Subsection (25)(a) of this section may back into public parking spaces or park diagonally in two regular parking spaces if there are no accessible parking spaces available.

(g) Public and private accessible parking spaces shall conform to the requirements set forth in K.S.A. § 8-1,128, the Wichita Accessible Parking standards, and the federal Manual on Uniform Traffic Control, current edition.

(h) The provisions of Subsections (25) and (26) of this section shall be enforced on public and private property, and shall be applicable twenty-four hours a day. Private security personnel shall have authority to issue citations on private property that is under the control of such private security personnel's employer.

(i) Current and valid official identification devices issued to a person with a disability by any other state, district, territory or political subdivision in conformity with federal law shall be recognized as acceptable identification for purposes of Subsection (25)(a) of this section, except those issued to persons who have been residents of Kansas for at least sixty days. Identification devices issued by private entities shall not constitute acceptable identification for the purposes of Subsection (25)(a) of this Section.

(j) The imposition of the fine established in Subsections (25)(c), (25)(e) and (26)(d) of this section shall be mandatory and the court shall not waive, remit, suspend, parole or otherwise excuse or decrease the payment thereof, except that the court may order that the defendant perform community service specified by the court but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by Section 1.04.210(e) and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed.

(k) For purposes of this section, 11.52.020, "accessible parking space" shall be defined as set forth at K.S.A. § 8-1,128 and any amendments thereto. However, the terms "access ramp" and "access area" shall have the more broadly described definitions found within this Subsection (25) of 11.52.020.

(26) (a) For any person to utilize an accessible parking identification device which has expired or has been revoked or suspended by the secretary of revenue pursuant to Subsection (c) of K.S.A. § 8-1,125, and amendments thereto, or K.S.A. § 8-1,130b, and amendments thereto;

(b) For any person to utilize an accessible parking identification device issued to another person, agency or business, to park in any parking space designated as accessible parking or to otherwise utilize the parking privileges granted to persons with disabilities in K.S.A. 8-1,126, and amendments thereto, except when transporting or arriving to transport a person with a disability to whom or for whom the identification device was issued;

(c) For any person to display or cause or permit to be displayed, or to have

in possession any accessible parking placard or accessible parking identification card knowing the same to be fictitious or to have been canceled, revoked, suspended or altered;

(d) A violation of Subsection (26)(a), (26)(b) or (26)(c) of this section is a misdemeanor punishable by a fine of not less than one hundred dollars and no more than three hundred dollars.

(27) (a) For any person to abandon, park or leave unattended a vehicle on the property of another unless authorized by the owner or person in charge of such property to do so. Provided, however, that this subsection shall apply only when such property is clearly and visibly marked by a sign or signs having lettering of at least one and one-half inches high and one-half inch wide, specifically indicating that unauthorized parking is prohibited and further clearly and visibly marked by a sign or signs with lettering of at least one inch high and three-eighths inch wide indicating that unauthorized vehicles will be towed away at the owner's expense. For signs required hereunder, the provisions of Chapter 24.04 of this Code shall have no application.

(b) In any proceeding for the violation of this section, the registration plate displayed upon the motor vehicle in violation shall constitute in evidence a prima facie presumption that the owner of such motor vehicle was the person who parked or placed such motor vehicle at the place where the violation occurred.

(28) For any person to park in front of the entrance of any place where mail is received or within eight feet of a mailbox during the hours of 8:00 a.m. and 5:00 p.m., except Sundays.

(29) For any person to park in a parking zone—regulated with the vehicle backed into the parking space:

(a) Vehicles shall be parked with the front of the vehicle headed toward the front of the parking space;

(b) This Subsection 29 shall not apply to persons displaying and holding correct and valid disability identification as defined at Subsection 25(a)(i) of this Section.

(30) This section is specific only to parking citations and is not intended to limit when or how a private property owner shall remove unauthorized vehicles from private property.

(31) For any person to leave an unoccupied vehicle parked continuously upon any street of the city for forty-eight hours or more.

(a) The provisions of this section may not be defeated by a mere location change of any offending vehicle on the same side of the street within the same block;

(b) The offending vehicle may be ticketed for the violation or towed pursuant to Section 11.97.010(b).

(Ord. No. 46-550 § 1; Ord. No. 47-750, § 1, 2-5-08; Ord. No. 50-896, § 6, 11-27-18; Ord. No. 52-326, § 5, 1-9-24)

Sec. 11.52.025. Enforcement of Section 11.52.020(25).

(a) The City of Wichita accessible parking patrol is a volunteer program that is hereby created to assist the Wichita police department, identify violations pertaining to unlawful parking within accessible parking areas, as well as those who unlawfully block access zones, in violation of the Code of the City of Wichita, subsection (25) of Section 11.52.020, and amendments thereto.

(b) The City of Wichita accessible parking patrol program shall be maintained, supervised, and operated by the chief of police or his/her designee.

(c) The chief of police or his/her designee shall create policies and procedures for operation and supervision of the City of Wichita accessible parking patrol program.

(d) Volunteers of the City of Wichita accessible parking patrol program shall be given the authority to take photographs of violations pertaining to accessible parking areas and blocking access areas, in violation of the Code of the City of Wichita, subsection (25) of Section 11.52.020, in accordance with the policies and procedures adopted by the chief of police.

(e) Upon issuance of a citation by a law enforcement officer or special officer as provided in the Code of the City of Wichita, subsection (b) of Section 11.16.040, for a violation as contemplated by this section, service of the citation shall be by first class mail.

(f) A sum of one dollar of the fines collected for violation of subsection (25) of Section 11.52.020 and amendments thereto, shall be remitted to the Wichita police department for program expenses.
(Ord. No. 46-573 § 1)

Sec. 11.52.030. Parking restrictions.

(a) It is unlawful for any person or operator to park a motor vehicle on any portion of the required front yard of any lot within the city.

(b) It is unlawful for any person or operator to park a motor vehicle on any portion of the required side yard of any lot within the city.

(c) It is unlawful for any person or operator to park a motor vehicle on an unpaved surface.

(1) Parking surfaces shall be paved as required in Section 28.04.143 of this Code.

(Ord. No. 41-522 § 6)

Sec. 11.52.035. Enforcement of Sections 11.52.020(4) and 11.52.030.

In addition to law enforcement officers, the Office of Central Inspection of the City of Wichita, and the authorized representatives of such department shall be responsible for the enforcement of Sections 11.52.020(4) and 11.52.030 of the Code of the City of Wichita.
(Ord. No. 47-896, § 1, 5-20-08)

Sec. 11.52.040. Parallel parking—Where permitted.

On all streets, alleys and public ways of the city, except where diagonal parking is permitted by this title or other ordinance, motor vehicles shall be parked parallel to the curb in the manner set forth by Section 11.04.205, except that parallel parking of motor vehicles with the left-hand wheels within twelve inches of the left-hand curb is permitted on any street or portion of street which has been designated and established by this title or other ordinance as a one-way street.
(Ord. No. 29-319 § 112)

Sec. 11.52.045. Stopping or parking on main trafficway streets prohibited.

It is unlawful for any person or operator to stop or park a motor vehicle on any main trafficway as designated by Section 11.96.120 of this Code. For the purposes of this section no signs are required for enforcement of this section.
(Ord. No. 41-754 § 2)

Sec. 11.52.050. Diagonal parking—Restrictions.

(a) Diagonal parking of motor vehicles on the streets is permitted on cutbacks on streets not designated as through streets and as designated by official traffic control devices provided, however, that no motor vehicle which has an overall length of vehicle and load in excess of eighteen feet shall be parked diagonally upon such streets.

(b) Subject to 11.52.020(25)(f), parking of motor vehicles in parking zones-regulated shall be with the front wheels next to the curb at right angles;

provided, however, that no motor vehicle which has an overall length of vehicle and load exceeding eighteen feet shall be parked in parking zones-regulated.
(Ord. No. 50-642, § 5, 12-19-17; Ord. No. 52-326, § 6, 1-9-24)

Editor's note—Ord. No. 50-642, § 5, adopted Dec. 19, 2017, amended § 11.52.050 in its entirety to read as herein set out. Former § 11.52.050 pertained to diagonal parking—where permitted and derived from Ord. No. 40-855 § 1.

Sec. 11.52.055. Parking in central core area.

(a) The central core area shall include:

(1) The north and south sides of Douglas Avenue from the east bank of the Big Arkansas River on the west to the railroad overpass on the east;

(2) The east and west sides of St. Francis, Topeka, Emporia, and Broadway Avenues and Market and Main Streets from the south curb line of First Street to the north curb line of William Street; and

(3) The east and west sides of Civic Center Place and Waco Avenue from the south curb line of First Street to the north curb line of Douglas Avenue.

(b) All other provisions of this Code shall be in effect in the central core area and for the purposes of enforcement, the central core area shall be considered to a parking zone-regulated.

(c) The penalty for a violation of this section shall be as set forth in Section 11.92.040 of this Code, and any amendments thereto.
(Ord. No. 44-851 § 8; Ord. No. 52-326, § 7, 1-9-24)

Sec. 11.52.060. Requirements for leaving vehicle.

No person or operator shall leave a semi-trailer or trailer parked or standing on any street or alley in the city unless the trailer or semi-trailer is attached to a truck tractor or other motor vehicle that is capable of moving the trailer or semi-trailer.
(Ord. No. 45-963 § 1; Ord. No. 29-319 § 114)

Sec. 11.52.070. Moving from parking space.

No person shall move a vehicle from a parked position unless and until such movement can be made with due regard for the safety of persons and property.
(Ord. No. 29-319 § 115)

Sec. 11.52.080. Parking in police car zone.

It is unlawful, except when necessary to avoid conflict with other traffic or in obedience to traffic regulations or the directions of traffic-control devices or a police officer, for any person or vehicle operator, other than the operator of a police vehicle, to park in any police car parking zone when the same has been designated and marked as such.
(Ord. No. 31-285 § 1)

Sec. 11.52.090. Parking in the City Hall parking garage and adjacent parking lot—Permit parking.

(a) It is unlawful for any person to park in any parking space, within the City Hall parking garage, unless that person has a valid city parking permit that allows him or her to park in the designated area.

(b) It is unlawful for any person to park within any parking space located within the City Hall parking garage that is marked with a sign indicating use by a particular individual, office, vehicle or entity, unless that person is authorized to park in said marked and signed parking space. Such authorization is to be given by the property management department.

(c) Subject to 11.52.020(25)(f), whenever any parking space is marked with lines, it is unlawful for any person to park any vehicle on or across, or to extend any part of the vehicle over, any line or marking designating the parking space, or to park any vehicle in such a position that it is not entirely within the space designated by such lines or markings.

(d) It is unlawful for any person to park a motorcycle within the City Hall parking garage in any parking space which is not designated as motorcycle parking.

(e) It is unlawful for any person to park an automobile within the City Hall parking garage in any parking area which is designated as motorcycle parking.

(f) In those spaces located within a certain portion of the surface parking lot at City Hall located south of the City Hall parking garage, the property management department is authorized to issue parking permits to representatives of the news media upon payment of a fee of thirty dollars per year.

(g) In those spaces located within a certain portion of the surface parking lot at City Hall located south and west of the City Hall parking garage, it is unlawful for any person to park a vehicle in a parking space in an area reserved for official city vehicle parking or official police vehicle parking unless such person is authorized to park in said marked area. Signs shall be posted to notify the general public as to the areas where public parking is prohibited.

(h) It is unlawful for any person, who has been issued a City Hall parking garage permit, as provided in subsection (a) of this section, to park in any parking space within the portion of the surface lot at City Hall south and west of the City Hall parking garage which is designated as public parking.

(Ord. No. 43-196 § 1; Ord. No. 52-326, § 8, 1-9-24)

Editor's note—Ord. No. 52-326, § 8, adopted Jan. 9, 2024, amended the title of § 11.52.090 to read as herein set out. The former § 11.52.090 title pertained to parking in municipal parking garage and a certain parking lot—permit parking.

Sec. 11.52.110. Parking procedures in lots in the Twenty-First Street area.

The following requirements pertain to the parking lots owned and maintained by the city at 1411 East Twenty-First Street and on the northeast corner of Twenty-First Street and Market Street:

(1) Whenever any parking space is marked with lines designating that space, it shall be unlawful for any individual to park any vehicle on or across, or to extend any part of the vehicle over these lines or markings, or to park any vehicle in such a position that it is not entirely within the space designated by such lines or markings.

(2) Vehicles shall be parked with the front of the vehicle headed towards the front of the parking space and it shall be unlawful for any person to back any vehicle into any parking space.

(Ord. No. 35-005)

Sec. 11.52.115. Parking procedures in lots in the Old Town district.

The following requirements pertain in the parking lots owned and maintained by the city and on the streets and portions of the streets in the Old Town district. For purposes of this section, the Old Town district shall be the area bounded by the railroad right-of-way east of St. Francis Street and west of Washington Street on the west; Douglas Avenue on the south; Washington Street on the east: and Central on the north.

(a) Whenever any parking space is marked with lines designating or defining that space, it is unlawful for any person to park any vehicle on or across, or to extend any part of the vehicle over these lines or markings, or to park any vehicle in such a position that it is not entirely within the space designated or defined by such lines or markings.

(b) Vehicles shall be parked with the front of the vehicle facing towards the front of the parking space and it is unlawful for any person to back into any parking space.

(c) It is unlawful for any person to park at any time in any zone designated as a no-parking zone.

(d) (1) The city traffic engineer is authorized to establish and designate time limits or other restrictions for parking in the Old Town district. Any such time limits or other restrictions shall become effective when the same are set out on an official sign or signs erected in, on or adjacent to parking lots owned and maintained by the city or streets or portions of streets in the Old Town district.

(2) Whenever any parking lot owned and maintained by the city or any street or portion of a street in the Old Town district has been posted by the city traffic engineer with a sign or signs establishing time limits or other restrictions, it is unlawful for any person to park any motor vehicle in such lot or on such street or portion of a street for a period of time greater than the maximum time permitted by such sign or signs or in a manner contrary to any such restriction posted on such sign or signs.

(e) The city traffic engineer is authorized to establish loading and unloading zones for taxis, charter limousines and charter buses in the Old Town district. Any such zones shall be designated by the posting of an official sign or signs identifying the area as a loading zone for taxis, charter limousines and charter buses; prohibiting parking, loading or stopping in such zone by any other vehicles; and establishing the time periods when such restriction shall be in force. For purposes of this section, "charter limousine" shall mean any vehicle for hire which carries more than eight persons. It is unlawful for any person to stop or park any vehicle in a designated loading and unloading zone for taxis, charter limousines and charter buses during the time period established for such zone.

(f) A violation of subsection (e) of this section is a misdemeanor punishable by a fine of not less than one hundred dollars and no more than three hundred dollars.

(Ord. No. 46-609 § 1)

Sec. 11.52.120. Establishment, designation and posting of municipal parking zones.

(1) All lots designed for the parking of motor vehicles which are owned or leased by the City of Wichita at the time of passage of the ordinance codified in this section through 11.52.170, or which are subsequently acquired or developed, and which are not designated by other ordinances, are established as municipal parking zones.

(2) The city traffic engineer is authorized and directed to designate municipal parking zones consistent with the public interest, convenience and necessity.

(3) The city traffic engineer is further authorized and directed to establish and designate time limits, fee schedules, and other restrictions for municipal parking zones not inconsistent with this section through Section 11.52.170 where the same are deemed to be in the public interest. Fee schedules pursuant to this section shall be based in part upon the cost of installation, maintenance and regulation of the lot and shall be established by the city traffic engineer with approval by the city manager. Said fee schedules shall remain in effect until rescinded or codified into the Code of the City of Wichita.

(4) The city traffic engineer is authorized and directed to have lines or markings painted upon lots within municipal parking zones designating individual parking spaces to be used by motor vehicles.

(5) The city traffic engineer shall post or cause to be posted by official signs, the time limits, fees, and other restrictions as applicable in municipal parking zones.

(6) The time limits, fee schedules, and other restrictions placed upon any parking area within a municipal parking zone shall become effective

when said provisions are designated by an official sign or signs erected in, on or adjacent to a municipal parking zone.
(Ord. No. 39-837 § 1)

Sec. 11.52.130. Unlawful parking within a municipal parking lot or garage within a parking zone-regulated—Penalties.

It shall be unlawful for any person or operator to cause, allow, or permit any motor vehicle registered in such person's name, or operated or controlled by such person to:

(a) Park a motor vehicle within in a municipal parking lot or garage within a parking zone-regulated space, without paying the fee designated by the sign or signs, unless such person properly displays a current permit issued, pursuant to Section 11.52.150, and any amendments thereto, valid for the applicable lot; or

(b) Park a motor vehicle within a municipal parking lot or garage within a parking zone-regulated across any line or marking designating a parking space or park a motor vehicle in such a position that it is not entirely within the space designated by such lines or markings; or

(c) Park a motor vehicle within a municipal parking lot or garage in a parking zone-regulated parking space designated as reserved unless such person properly displays a permit issued pursuant to Section 11.52.160, and any amendments thereto, authorizing parking within the particular reserved section or space.

(Ord. No. 42-140 § 2; Ord. No. 52-326, § 9, 1-9-24)

Editor's note—Ord. No. 52-326, § 9, adopted Jan. 9, 2024, amended the title of § 11.52.130 to read as herein set out. The former § 11.52.130 title pertained to unlawful parking within a municipal parking zone—penalties.

Sec. 11.52.140. Municipal parking zone regulated by parking meters.

In any municipal parking zone or for any portion of a municipal parking zone regulated by parking meters, the provisions of Sections 11.68.030, 11.68.040, 11.68.060, 11.68.070, 11.68.080, 11.68.090, 11.68.100 and 11.68.110(b), are deemed to be effective and controlling.
(Ord. No. 39-837 § 3)

Sec. 11.52.150. Issuance, fees, requirements and display of temporary permits; duties of city officers.

(a) Upon payment of the required fee the City Traffic Engineer may issue or cause to be issued a temporary permit which would entitle the holder thereof to use any parking space not otherwise designated as reserved within a particularly described parking zone-regulated without paying the designated fee indicated by the parking meter regulating the authorized parking space. Said temporary permits shall be issued for a definite time period.

(b) Time restrictions and fee schedules for the temporary permits shall be determined by the City Traffic Engineer with approval by the City Manager and shall remain in effect until modified by the City Council.

(c) Temporary permits issued pursuant to this section shall describe the parking zone-regulated for which it is valid and shall be valid only in the so-described parking zone-regulated. Such permits shall be subject to available parking space and shall not in any manner be considered to guarantee the holder a parking space.

(d) The temporary permits issued pursuant to this section shall be displayed pursuant to rules established by the City Manager.
(Ord. No. 39-837 § 4; Ord. No. 52-326, § 10, 1-9-24)

Sec. 11.52.160. Parking in reserved parking areas within parking zones-regulated—Permits.

(a) The City Traffic Engineer with approval of the City Manager may, consistent with public interest, convenience or necessity, designate as reserved any or all parking spaces within a parking zone-regulated.

(b) It shall be unlawful to park in a parking space designated as reserved without the operator possessing and displaying a permit to do so. Signage describing this requirement and the fee for violation shall be adequate notice to the general public of this requirement.

(c) The City Manager may issue or cause to be issued parking permits granting the holder permission to park within a reserved area of a specific parking zone-regulated. Such permits shall identify the parking zone-regulated for which they are valid and may designate a particular parking space within the parking zone-regulated. If the permit designates a particular space within a reserved portion of a parking zone-regulated, the permit is valid for that space only.

(d) Permits issued pursuant to this section shall be displayed pursuant to rules established by the City Manager.

(e) Fee schedules for permits issued pursuant to this section shall be established by the City Manager, based in part upon the cost of installation, maintenance and regulation of the parking zone-regulated for which the permit is issued. Said fee schedules shall remain in effect until modified by the City Council.
(Ord. No. 39-837 § 5; Ord. No. 52-326, § 11, 1-9-24)

Editor's note—Ord. No. 52-326, § 11, adopted Jan. 9, 2024, amended the title of § 11.52.160 to read as herein set out. The former § 11.52.160 title pertained to parking in reserved parking areas of municipal parking areas of municipal parking zones—permits.

Sec. 11.52.170. Collectors.

The City Manager shall designate such collectors as are necessary to collect all moneys deposited in meter boxes or other receptacles designed for the collection of parking fees within parking zones-regulated. Said collectors may be city employees or independent contractors. Independent contractors shall carry commercial general liability insurance which covers any financial loss resulting from negligent or willful misconduct by an employee serving as a collector.
(Ord. No. 52-326, § 12, 1-9-24)

Sec. 11.52.180. Appointment of special officers by City Manager.

The City Manager is authorized to appoint as many Parking Control Officers as he or she may think proper for the purpose of facilitating the enforcement of the city's parking ordinances in parking zones-regulated. Such Parking Control Officers shall have the authority to issue parking citations and/or issue and swear out complaints relating to violations of the city's parking ordinances in and on said parking zones-regulated. The City Manager may only appoint such special officers who are employees and/or agents of any person or company which has a current contract with the city to manage and/or operate such parking zones-regulated and which person or company is obligated under said contract to indemnify the city from any and all liability arising out of its carrying out of said contract and also obligated to carry commercial general liability insurance, and such other coverages and in such amounts as, in the opinion of the City Attorney, reasonably protect the city's interests. Authorized agents of such persons or companies shall be entrusted with the authority given special officers in this Section 11.52.180 without additional action by the City Manager.
(Ord. No. 42-986 § 1; Ord. No. 52-326, § 13, 1-9-24)

CHAPTER 11.56. LOADING AND UNLOADING

Sec. 11.56.010. Establishing zones.
Sec. 11.56.020. How zones are to be used.

Sec. 11.56.010. Establishing zones.

The city traffic engineer is authorized and instructed to designate and establish loading zones and truck loading zones which he deems to be in the public interest and to abolish the same when no longer needed or illegally used. The establishment of such zones shall become effective when such zones are appropriately designated. (Ord. No. 39-099 § 1)

Sec. 11.56.020. How zones are to be used.

It is unlawful:

(1) For any person or operator, other than the operator of a bus or U.S. postal vehicle, to stop or park a motor vehicle in any designated loading zone;

(2) For any person or operator to stop or park in any designated truck loading zone, other than the operator of a truck; it is further unlawful for the operator of a truck to stop or park in such truck loading zone for a period of time longer than is necessary for the expeditious loading and unloading of merchandise, and in no event in excess of fifteen minutes; provided, however, that no loading or unloading of merchandise shall take place from streets located in the congested area of the city as defined in Section 11.04.060, between the hours of four-thirty p.m. and six p.m. on weekdays; provided further, that all motor vehicles may park in truck loading zones between the hours of seven p.m. and seven a.m., and on Sundays and legal holidays;

(3) For any person or operator to stop or park in any designated loading zone for a period of time longer than is necessary for an expeditious loading or unloading of passengers or merchandise, and in no event in excess of fifteen minutes;

(4) For the operator of any tractor-trailer combination or truck having an overall length in excess of twenty-five feet to load or unload in a designated truck loading zone located in the congested area.

(Ord. No. 39-099 § 2; Ord. No. 50-642, § 6, 12-19-17)

CHAPTER 11.60. EQUIPMENT*

Sec. 11.60.010. Driving without proper equipment unlawful.
Sec. 11.60.020. Headlamps.
Sec. 11.60.030. Lighting headlamps—When.
Sec. 11.60.040. Lights, reflectors on vehicles.
Sec. 11.60.045. Lights on trucks and other special vehicles.
Sec. 11.60.050. Lights on vehicles of excess width or length.
Sec. 11.60.060. Lights and colors.
Sec. 11.60.070. Reflector mounting.
Sec. 11.60.080. Size of reflectors.
Sec. 11.60.090. Combination of vehicles.
Sec. 11.60.100. Excessive load size.
Sec. 11.60.110. Lighting parked vehicles.
Sec. 11.60.120. Bicycle—Lighting.
Sec. 11.60.130. Animal-drawn vehicle lights.
Sec. 11.60.140. Spot lamps—Auxiliary driving, passing and fog lamps.
Sec. 11.60.150. Stop lamps—Turn signals—Flashing signals.
Sec. 11.60.155. Vehicle hazard warning lamps; warning lamps on police vehicles.
Sec. 11.60.160. Side, courtesy, backup and identification lamps.
Sec. 11.60.165. Lamps and lights on authorized emergency vehicles; alternately or simultaneously flashing head lamps.
Sec. 11.60.170. Directing beams.
Sec. 11.60.180. Head lamps; use of, exception.
Sec. 11.60.190. Number of lamps required.
Sec. 11.60.200. Prohibited lamps, exceptions for certain vehicles, including emergency vehicles and school, church, and day care buses.
Sec. 11.60.210. Highway maintenance equipment—Light requirements.
Sec. 11.60.220. Brakes.
Sec. 11.60.225. Compression brakes.
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Sec. 11.60.250. Mirrors.
Sec. 11.60.260. Windshield stickers—Wipers—Obstructions.
Sec. 11.60.265. One-way glass and other applications prohibited.
Sec. 11.60.270. Tires.
Sec. 11.60.280. Drawbars on towing vehicles.
Sec. 11.60.290. Motorcycles—Protective headgear, eye screens.
Sec. 11.60.300. Motorcycles—Riding position.
Sec. 11.60.310. Motorcycles—Operator rights and duties.
Sec. 11.60.320. Motorcycles—Driving rules.
Sec. 11.60.330. Reserved.

*__Cross references—__Ordinance history; Ord. No. 29-319 § 111; Ord. No. 29-378 §§ 1—26.

Sec. 11.60.010. Driving without proper equipment unlawful.

(a) It is a traffic infraction for any person to drive or move, or for the owner to cause or knowingly permit to be driven or moved on any highway, any vehicle or combination of vehicles which is in such unsafe condition as to endanger any person, or which does not contain those parts or is not at all time equipped with such lamps and other equipment in proper condition and adjustment as required in this chapter, or which is equipped in any manner in violation of this chapter, or for any person to do any act forbidden or fail to perform any act required under this chapter.

(b) Nothing contained in this chapter shall be construed to prohibit the use of additional parts and accessories on any vehicle not inconsistent with the provisions of this chapter.

(c) The provisions of this chapter with respect to equipment required on vehicles shall not apply to implements of husbandry, road machinery, road rollers or farm tractors except as specifically made applicable in this act.

(d) The provisions of this chapter with respect to equipment required on vehicles shall not apply to motorcycles or motordriven cycles, except as herein made applicable.
(Ord. No. 39-100 § 1)

Sec. 11.60.020. Headlamps.

(a) Every motor vehicle other than a motorcycle or motor-driven cycle shall be equipped with at least two white headlamps with at least one on each side of the front of the motor vehicle, which headlamps shall comply with the requirements and limitations set forth in this chapter.

(b) Every motorcycle and every motor-driven cycle shall be equipped with at least one and not more than two white headlamps which shall comply with the requirements and limitations set forth in this chapter, except that the headlamp of such motorcycle or motor-driven cycle shall be illuminated at all times while the vehicle is being operated on the streets of the city.

(c) Every headlamp upon every motor vehicle, including every motorcycle and motor-driven cycle, shall be located at a height of not more than fifty-four inches nor less than twenty-four inches to be measured as set forth in subsection (c) of Section 11.60.030, and shall not apply to vehicles mentioned in subsection (b) of Section 11.60.010. (Ord. No. 39-100 § 2)

Sec. 11.60.030. Lighting headlamps—When.

(a) Every vehicle, except as provided in subsection (b), upon a highway within this city shall at all times display lighted head and other lamps and illuminating devices as required for different classes of vehicles, subject to exceptions with respect to parked vehicles.

(1) From sunset to sunrise;

(2) When due to insufficient light or unfavorable atmospheric conditions, including smoke or fog, persons and vehicles on the street or highway are not clearly discernible at a distance of one thousand feet ahead; or

(3) When windshield wipers are in continuous use as a result of rain, sleet, or snow.

(b) Motorcycles, motor-driven cycles and motorized bicycles manufactured after January 1, 1978, shall display lighted head and tail lights at all times that such vehicles are operated on any street or highway.

(c) Whenever in this chapter requirement is declared as to the mounted height of lamps or devices, it means from the center of such lamp or device to the level ground on which the vehicle stands when such vehicle is without a load. (Ord. No. 33-459 (part); Ord. No. 50-319 § 1, 9-13-16)

Sec. 11.60.040. Lights, reflectors on vehicles.

(a) Every motor vehicle or trailer, semitrailer, pole trailer, and any other vehicle which is being drawn at the end of a combination of vehicles, shall be equipped with at least two taillamps mounted on the rear, which when lighted as required in Section 11.60.030, shall emit red light plainly visible from a distance of one thousand feet to the rear, except that passenger cars manufactured or assembled prior to July 1, 1959, shall have at least one taillamp. On a combination of vehicles, only the taillamps on the rearmost vehicle need actually be seen from the distance specified. On vehicles equipped with more than one taillamp, the lamps shall be mounted on the same level and as widely spaced laterally as practicable.

(b) Every taillamp upon every vehicle shall be located at a height of not more than seventy-two inches nor less than fifteen inches.

(c) Either a taillamp or a separate lamp shall be so constructed and placed as to illuminate with a white light the rear registration plate and render it clearly legible from a distance of fifty feet to the rear. Any taillamp or taillamps, together with any separate lamp or lamps for illuminating the rear registration plate, shall be so wired as to be lighted whenever the headlamps or auxiliary driving lamps are lighted.

(d) Every motor vehicle, trailer, semitrailer and pole trailer shall carry on the rear, either as a part of the taillamps or separately, two or more red reflectors meeting the requirements of this section; provided, that vehicles of the types mentioned in Section 11.60.050 shall be equipped with reflectors meeting the requirements of subsection (a) of Section 11.60.070 and subsection (a) of Section 11.60.080.

(e) Every such reflector shall be mounted on the vehicle at a height not less than fifteen inches nor more than sixty inches measured as set forth in subsection (c) of Section 11.60.030, and shall be of such size and characteristics and so mounted as to be visible from all distances within six hundred feet to one hundred feet from such vehicle when directly in front of lawful lower beams of headlamps, except that reflectors on vehicles manufactured or assembled prior to January 1, 1970, shall be visible at night from all distances within three hundred fifty feet to one hundred feet when directly in front of lawful upper beams of headlamps.
(Ord. No. 39-100 § 3)

Sec. 11.60.045. Lights on trucks and other special vehicles.

Sections 11.60.050, 11.60.060, 11.60.070, 11.60.080 and 11.60.090 relating to clearance lamps,

marker lamps and reflectors, shall apply as stated in said sections to vehicles of the type therein enumerated, namely buses, trucks, truck-tractors, motor homes, motor vehicles with mounted truck-campers, and trailers, semitrailers and pole trailers, respectively, when operated upon any highway, and said vehicle shall be equipped as required and all lamp equipment required shall be lighted at the times mentioned in Section 11.60.030. For purposes of the sections enumerated above, a truck-camper when mounted upon a motor vehicle shall be considered part of the permanent structure of that motor vehicle.
(Ord. No. 33-459 (part))

Sec. 11.60.050. Lights on vehicles of excess width or length.

In addition to other equipment required in this chapter, the following vehicles shall be equipped as herein stated:

(a) Buses, trucks, motor homes and motor vehicles with mounted truck-camper, eighty inches or more in overall width:

(1) On the front, two clearance lamps, one at each side, and on vehicles manufactured or assembled after July 1, 1959, three identification lamps meeting the specifications of subsection (f) hereof,

(2) On the rear, two clearance lamps, one at each side, and after July 1, 1959, three identification lamps meeting the specifications of subsection (f) hereof,

(3) On each side, two side marker lamps, one at or near the front and one at or near the rear,

(4) On each side, two reflectors, one at or near the front and one at or near the rear;

(b) Trailers and semitrailers eighty inches or more in overall width, except boat trailers and house trailers for which special permits are required, pursuant to K.S.A. 8-1911:

(1) On the front, two clearance lamps, one at each side,

(2) On the rear, two clearance lamps, one at each side, and on vehicles manufactured or assembled after July 1, 1959, three identification lamps meeting the specifications of subsection (f) hereof,

(3) On each side, two side marker lamps, one at or near the front and one at or near the rear,

(4) On each side, two reflectors, one at or near the front and one at or near the rear,

(c) Truck-tractors: On the front, two cab clearance lamps, one at each side, and on vehicles manufactured or assembled after July 1, 1959, three identification lamps meeting the specifications of subsection (f) hereof;

(d) Trailers, semitrailers and pole trailers thirty feet or more in overall length: On each side, one amber side marker lamp and one amber reflector, centrally located with respect to the length of the vehicle;

(e) Pole trailers:

(1) On each side, one amber side marker lamp at or near the front of the load,

(2) One amber reflector at or near the front of the load.

(3) On the rear-most support for the load, one combination marker lamp showing amber to the front and red to the rear and side, mounted to indicate maximum width of the pole trailer;

(f) Whenever required or permitted by this chapter, identification lamps shall be grouped in a horizontal row, with lamp centers spaced not less than six nor more than twelve inches apart and mounted on the permanent structure of the vehicle as close as practicable to the vertical centerline; provided, that where the cab of a vehicle is not more than forty-two inches wide at the front roof line, a single identification lamp at the center of the cab shall be deemed to comply with the requirements for front identification lamps;

(g) Boat trailers eighty inches or more in overall width:

(1) On each side, at or near the midpoint, one clearance lamp performing the function of both a front and rear clearance lamp,

(2) On each side, two side marker lamps, one at or near the front and one at or near the rear,

(3) On each side, two reflectors, one at or near the front and one at or near the rear.

(Ord. No. 39-100 § 4)

Sec. 11.60.060. Lights and colors.

(a) Front clearance lamps, identification lamps and those marker lamps and reflectors mounted on the front or on the side near the front of a vehicle shall display or reflect an amber color.

(b) Rear clearance lamps, identification lamps and those marker lamps and reflectors mounted on the rear or on the sides near the rear of a vehicle shall display or reflect a red color.
(Ord. No. 33-459 (part))

Sec. 11.60.070. Reflector mounting.

(a) Reflectors, when required by Section 11.60.050, shall be mounted at a height not less than twenty-four inches and not more than sixty inches above the ground on which the vehicle stands, except that if the highest part of the permanent structure of the vehicle is less than twenty-four inches, the reflector at such point shall be mounted as high as that part of the permanent structure will permit.

The rear reflectors on a pole trailer may be mounted on each side of the bolster or load.

Any required red reflector on the rear of a vehicle may be incorporated with the taillamp, but such reflector shall meet all the other reflector requirements of this chapter.

(b) Clearance lamps, so far as is practicable, shall be mounted on the permanent structure of the vehicle in such a manner as to indicate the extreme height and width of the vehicle, except that when rear identification lamps are required and are mounted as high as is practicable, rear clearance lamps may be mounted at optional height, and when the mounting of front clearance lamps results in such lamps failing to indicate the extreme width of the trailer, such lamps may be mounted at optional height, but must indicate as nearly as practicable the extreme width of the trailer. Clearance lamps on truck-tractors shall be located so as to indicate the extreme width of the truck-tractor cab. Clearance lamps and side marker lamps may be mounted in combination if illumination is given as required herein with reference to both.
(Ord. No. 33-459 (part))

Sec. 11.60.080. Size of reflectors.

(a) Every reflector upon any vehicle referred to in Section 11.60.050 shall be of such size and characteristics and so maintained as to be readily visible at nighttime from all distances within six hundred feet to one hundred feet from the vehicle when directly in front of lawful lower beams of headlamps, except that the visibility for reflectors on vehicles manufactured or assembled prior to January 1, 1970, shall be measured in front of lawful upper beams of headlamps. Reflectors required to be mounted on the sides of the vehicle shall reflect the required color of light to the sides, and those mounted on the rear shall reflect a red color to the rear.

(b) Front and rear clearance lamps and identification lamps shall be capable of being seen and distinguished under normal atmospheric conditions at the times lights are required at all distances between five hundred feet and fifty feet from the front and rear, respectively, of the vehicle.

(c) Side marker lamps shall be capable of being seen and distinguished under normal atmospheric conditions at the times lights are required at all distances between five hundred feet and fifty feet from the side of the vehicle on which mounted.
(Ord. No. 33-459 (part))

Sec. 11.60.090. Combination of vehicles.

Whenever motor and other vehicles are operated in combination during the time that lights

are required, any lamp except taillamps which, by reason of its location on a vehicle of the combination, would be obscured by another vehicle of the combination need not be lighted, but this shall not affect the requirement that lighted clearance lamps be displayed on the front of the foremost vehicle required to have clearance lamps, nor that all lights required on the rear of the rearmost vehicle of any combination shall be lighted.
(Ord. No. 33-459 (part))

Sec. 11.60.100. Excessive load size.

Whenever the load upon any vehicle extends to the rear four feet or more beyond the bed or body of such vehicle, there shall be displayed at the extreme rear end of the load at the times specified in Section 11.60.030 two red lamps visible from a distance of at least five hundred feet to the rear, two red reflectors visible at night from all distances within six hundred feet to one hundred feet to the rear when directly in front of lawful lower beams of headlamps and located so as to indicate maximum width, and on each side one red lamp visible from a distance of at least five hundred feet to the side and located so as to indicate maximum overhang. There shall be displayed at all other times on any vehicle having a load which extends beyond its sides or more than four feet beyond its rear, red flags not less than twelve inches square marking the extremities of such load at each point where a lamp would otherwise be required by this section.
(Ord. No. 33-459 (part))

Sec. 11.60.110. Lighting parked vehicles.

(a) Every vehicle shall be equipped with one or more lamps which, when lighted, shall display a white or amber light visible from a distance of one thousand feet to the front of the vehicle, and a red light visible from a distance of one thousand feet to the rear of the vehicle. The location of said lamp or lamps always shall be such that at least one lamp or combination of lamps meeting the requirements of this section is installed as near as practicable to the side of the vehicle which is closest to passing traffic.

(b) Whenever a vehicle is lawfully parked upon a street or highway during the hours between a half hour after sunset and a half hour before sunrise no lights need be displayed upon such parked vehicle.

(c) Whenever a vehicle is parked or stopped upon a roadway or shoulder adjacent thereof, whether attended or unattended, during the hours between a half hour after sunset and a half hour before sunrise and there is insufficient light to reveal any person or object within a distance of one thousand feet upon such highway, such vehicle so parked or stopped shall be equipped with and shall display lamps meeting the requirements of subsection (a) of this section.

(d) Any lighted headlamps upon a parked vehicle shall be depressed or dimmed.
(Ord. No. 39-100 § 5)

Sec. 11.60.120. Bicycle—Lighting.

Every bicycle operated upon the street or highway in the nighttime shall be equipped with a lamp on the front exhibiting a white light visible from a distance of at least five hundred feet to the front and with a lamp on the rear exhibiting a red light visible from a distance of five hundred feet to the rear; except that a red reflector meeting the requirements of this chapter may be used in lieu of a rear light.
(Ord. No. 30-982 § 114)

Sec. 11.60.130. Animal-drawn vehicle lights.

Every vehicle, including animal-drawn vehicles and vehicles referred to in subsection (c) of Section 11.60.020, not specifically required by the provisions of other sections of this chapter to be equipped with lamps or other lighting devices, shall be equipped at all times specified in Section 11.60.030 with at least one lamp displaying a white light visible from a distance of not less than one thousand feet to the front of the vehicle, and also shall be equipped with two lamps displaying red light visible from a distance of not less than one thousand feet to the rear of the vehicle or, as an alterative, one lamp displaying a red light visible from a distance of not less than one thousand feet to the rear and two red reflectors visible

from all distances of six hundred to one hundred feet to the rear when illuminated by the lawful lower beams of headlamps.
(Ord. No. 33-459 (part))

Sec. 11.60.140. Spot lamps—Auxiliary driving, passing and fog lamps.

(a) Spot Lamps. Any motor vehicle may be equipped with not to exceed two spot lamps, and every lighted spot lamp emitting a white light shall be so aimed and used that no part of the high intensity portion of the beam will strike the windshield, or any windows, mirror or occupant of another vehicle in motion. The limitations of this subsection shall not apply to a police vehicle used as an authorized emergency vehicle.

(b) Fog Lamps. Any motor vehicle may be equipped with not to exceed two fog lamps mounted on the front at a height not less than twelve inches nor more than thirty inches above the level surface upon which the vehicle stands and so aimed that when the vehicle is not loaded none of the high intensity portion of the light to the left of the center of the vehicle shall project, at a distance of twenty-five feet ahead, higher than a level of four inches below the level of the center of the lamp from which it comes. Lighted fog lamps meeting the above requirements may be used with lower headlamp beams as specified in subsection (a)(2) of Section 11.60.170.

(c) Auxiliary Passing Lamps. Any motor vehicle may be equipped with not to exceed two auxiliary passing lamps mounted on the front at a height not less than twenty-four inches nor more than forty-two inches above the level surface upon which the vehicle stands. The provisions of Section 11.60.170 shall apply to any combination of headlamps and auxiliary passing lamps.

(d) Auxiliary Driving Lamps. Any motor vehicle may be equipped with not to exceed two auxiliary driving lamps mounted on the front at a height not less than sixteen inches nor more than forty-two inches above the level surface upon which the vehicle stands. The provisions of Section 11.60.170 shall apply to any combination of headlamps and auxiliary driving lamps.
(Ord. No. 39-100 § 6)

Sec. 11.60.150. Stop lamps—Turn signals—Flashing signals.

(a) Any vehicle may be equipped and when required under this chapter shall be equipped with a stop lamp or lamps on the rear of the vehicle which shall display a red or amber light, or any shade of color between red and amber, visible from a distance of not less than three hundred feet to the rear in normal sunlight, and which shall be actuated upon application of the service or foot brake, and which may but need not be incorporated with one or more other rear lamps.

(b) Any vehicle may be equipped, and when required under this chapter shall be equipped, with electric turn signals which shall indicate an intention to turn by flashing lights showing to the front and rear of a vehicle or on a combination of vehicles on the side of the vehicle or combination toward which the turn is to be made. The lamps showing to the front shall be mounted on the same level and as widely spaced laterally as practicable, and when signaling shall emit amber light; provided, that on any vehicle manufactured prior to July 1, 1973, the lamps showing to the front may emit white or amber light, or any shade of light between white and amber. The lamps showing to the rear shall be mounted on the same level and as widely spaced laterally as practicable, and when signaling shall emit a red or amber light or any shade of color between red and amber. Turn signal lamps shall be visible from a distance of not less than five hundred feet to the front and rear in normal sunlight. Turn signal lamps may but need not be incorporated in other lamps on the vehicle.

(c) Every new motor vehicle sold within the city shall be equipped with turn signals meeting the requirements of subsection (b) of this section.
(Ord. No. 33-459 (part))

Sec. 11.60.155. Vehicle hazard warning lamps; warning lamps on police vehicles.

(a) Any vehicle may be equipped with lamps for the purpose of warning the operators of other vehicles of the presence of a vehicular traffic hazard requiring the exercise of unusual care in approaching, overtaking or passing.

(b) Every bus, truck, truck tractor, trailer, semitrailer or pole trailer eighty inches or more in overall width or thirty feet or more in overall length shall be equipped with lamps meeting the requirements of this section.

(c) Vehicular hazard warning signal lamps used to display such warning to the front shall be mounted at the same level and as widely spaced laterally as practicable, and shall display simultaneously flashing amber lights. On any vehicle manufactured prior to January 1, 1969, the lamps showing to the front may display simultaneously flashing white or amber lights, or any shade of color between white and amber. The lamps used to display such warning to the rear shall be mounted at the same level and as widely spaced laterally as practicable, and shall show simultaneously flashing amber or red lights, or any shade of color between amber and red. Such warning lights shall be visible from a distance of not less than five hundred feet in normal sunlight.

(d) Any police vehicle, when used as an authorized emergency vehicle, may be equipped with warning lamps mounted as widely spaced laterally as practicable, either inside such vehicle in front of the rear window or on the roof of such vehicle, and capable of displaying two alternately flashing amber lights to the rear of such vehicle. Such warning lamps may be used in lieu of or in combination with any other vehicular hazard signal lamps used to display such warning to the rear, and shall be visible from a distance of not less than five hundred feet in normal sunlight.
(Ord. No. 43-920 § 1)

Sec. 11.60.160. Side, courtesy, backup and identification lamps.

(a) Any motor vehicle may be equipped with not more than two side cowl or fender lamps which shall emit an amber or white light without glare.

(b) Any motor vehicle may be equipped with not more than one running board courtesy lamp on each side thereof which shall emit a white or amber light without glare.

(c) Any motor vehicle may be equipped with one or more backup lamps either separately or in combination with other lamps, but any such backup lamp or lamps shall not be lighted when the motor vehicle is in forward motion.

(d) Any vehicle eighty inches or more in overall width, if not otherwise required by Section 11.60.050, may be equipped with not more than three identification lamps showing to the front, which shall emit an amber light without glare and not more than three identification lamps showing to the rear which shall emit a red light without glare. Such lamps shall be mounted as specified in subsection (f) of Section 11.60.050.

(e) Any vehicle may be equipped with one or more side marker lamps and any such lamp may be flashed in conjunction with turn or vehicular hazard warning signals. Side marker lamps located toward the front of a vehicle shall be amber and side marker lamps located toward the rear shall be red.
(Ord. No. 33-459 (part))

Sec. 11.60.165. Lamps and lights on authorized emergency vehicles; alternately or simultaneously flashing head lamps.

(a) Except as provided in subsection (b) of this section, every authorized emergency vehicle, in addition to any other equipment required by this chapter, shall be equipped with signal lamps mounted as high and as widely spaced laterally as practicable, which shall be capable of displaying to the front two alternately flashing red lights located at the same level and to the rear two alternately flashing red lights located at the same level, or in lieu thereof, any such authorized emergency vehicle shall be equipped with at least one rotating or oscillating light, which shall be mounted as high as practicable on such vehicle and which shall display to the front and rear of such vehicle a flashing red light or alternate flashes of red and white lights or red and blue lights in combination. All lights required or authorized by this subsection shall have sufficient intensity to be visible at five hundred feet in normal sunlight. Every authorized emergency ve-

hicle may, but need not, be equipped with head lamps which alternately flash from high to low beam or simultaneously flash high to low beam.

(b) A police vehicle when used as an authorized emergency vehicle may, but need not, be equipped with:

(1) Head lamps which alternately flash from high to low beam or simultaneously flash from high to low beam;

(2) Flashing lights specified in subsection (a) of this section, but any flashing lights used on a police vehicle shall be red in color, other than the flashing lights specified in Section 11.60.155, and amendments thereto, rotating or oscillating lights, or alternately flashing head lamps or simultaneously flashing head lamps; or

(3) Rotating or oscillating lights, which may display a flashing red light or alternate flashes of red and blue lights in combination.

(Ord. No. 43-920 § 2)

Sec. 11.60.170. Directing beams.

(a) Except as hereinafter provided, the headlamps or the auxiliary driving lamp or the auxiliary passing lamp or combination thereof on motor vehicles shall be so arranged that the driver may select at will between distributions of light projected to different elevations, and in addition such lamps may be so arranged that such selection can be made automatically, subject to the following limitations:

(1) There shall be an uppermost distribution of light, or composite beam, so aimed and of such intensity as to reveal persons and vehicles at a distance of at least four hundred fifty feet ahead for all conditions of loading.

(2) There shall be a lowermost distribution of light, or composite beam, so aimed and of sufficient intensity to reveal persons and vehicles at a distance of at least one hundred fifty feet ahead; and on a straight level road under any condition of loading none of the high intensity portion of the beam shall be directed to strike the eyes of an approaching driver.

(b) Every new motor vehicle registered in this state which has multi-beam road-lighting equipment shall be equipped with a beam indicator which shall be lighted whenever the uppermost distribution of light from the headlamp is in use, and shall not otherwise be lighted. The indicator shall be so designed and located that when lighted it will be readily visible without glare to the driver of the vehicle so equipped.

(Ord. No. 33-459 (part))

Sec. 11.60.180. Head lamps; use of, exception.

Whenever a motor vehicle is being operated on a roadway or shoulder adjacent thereto during the times specified in Section 11.60.030, and any amendments thereto, the driver shall use a distribution of light, or composite beam, directed high enough and of sufficient intensity to reveal persons and vehicles at a safe distance in advance of the vehicle, subject to the following requirements and limitations:

(a) Whenever the driver of a vehicle approaches an oncoming vehicle within five hundred feet, such driver shall use a distribution of light, or composite beam, so aimed that the glaring rays are not projected into the eyes of the oncoming driver. The lowermost distribution of light or composite beam, specified in subsection (a)(2) of Section 11.60.170 and any amendments thereto, shall be dimmed to avoid glare at all times regardless of road contour and loading.

(b) Whenever the driver of a vehicle approaches another vehicle from the rear, within three hundred feet, except when engaged in the act of overtaking and passing, such driver shall use a distribution of light permissible under this chapter other than the uppermost distribution of light specified in subsection (a)(1) of Section 11.60.170 and any amendments thereto.

(c) The requirements of subsections (a) and (b) of this section shall not apply to autho-

rized emergency vehicles displaying alternately flashing or simultaneously flashing head lamps as provided in Section 11.60.165, and any amendments thereto.

(Ord. No. 43-920 § 3)

Sec. 11.60.190. Number of lamps required.

(a) At all times specified in Section 11.60.030, at least two lighted lamps shall be displayed, one on each side at the front of every motor vehicle except when such vehicle is parked subject to the regulations governing lights on parked vehicles.

(b) Whenever a motor vehicle equipped with headlamps as herein required is also equipped with any auxiliary lamps or a spot lamp or any other lamp on the front thereof projecting a beam of an intensity greater than three hundred candlepower, not more than a total of four of any such lamps on the front of a vehicle shall be lighted at any one time when upon a highway.

(Ord. No. 30-982 § 121)

Sec. 11.60.200. Prohibited lamps, exceptions for certain vehicles, including emergency vehicles and school, church, and day care buses.

(a) During the times specified in Section 11.60.030, and any amendments thereto, any lighted lamps or illuminating device upon a motor vehicle other than headlamps, spot lamps, auxiliary lamps, flashing turn signals, emergency vehicles warning lamps and school bus warning lamps which project a beam of light of an intensity greater than three hundred candlepower shall be so directed that no part of the high intensity portion of the beam will strike the level of the roadway on which the vehicle stands at a distance of more than seventy-five feet from the vehicle.

(b) Except as provided by subsection (e), Section 11.60.165, K.S.A. 8-1720 and K.S.A. 8-1730, and any amendments thereto, no person shall drive or move any vehicle or equipment upon any highway with any lamp or device thereon capable of displaying a red light visible from directly in front of the center thereof, nor shall any vehicle or equipment upon any highway have any lamp or device displaying any color of light visible from directly in front of the center thereof except white or amber or any shade of color between white and amber.

(c) Flashing lights are prohibited on motor vehicles, except as authorized or required in Sections 11.60.150, 11.60.155, 11.60.160(e), 11.60.165 and 11.60.210 of this Code, or in K.S.A. 8.1717,8-1720, 8-1721, 8-1722, 8-1723, 8-1730, 8-1730a, 8-1731 and any amendments thereto.

(d) The flashing lights described in Section 11.60.165 and in K.S.A. 8-1720, 8-1730 and 8-1730a, and any amendments thereto, shall not be used on any vehicle other than an authorized emergency vehicle, or a school bus, church bus or day care program bus, as defined in K.S.A. 8-1730a and any amendments thereto.

(e) A driver for a transportation network company who is logged on to the transportation network company's digital network may be equipped with a lighted device capable of displaying light visible from directly in front of the center of the vehicle. Such lighting device may display:

1. Steady light; and
2. Light of any color, except red.

(f) As used in this section, transportation network company means a corporation, partnership, sole proprietorship or other entity operating in Kansas that uses a digital network to connect transportation network company riders to transportation network company drivers who provide prearranged rides. A transportation network company shall not be deemed to control, direct or manage the personal vehicles or transportation network company drivers that connect to its digital network, except where agreed to by written contract.

(Ord. No. 43-920 § 4; Ord. No. 51-091, § 1, 9-10-19)

Sec. 11.60.210. Highway maintenance equipment—Light requirements.

It is unlawful to operate any snow removal and other highway maintenance and service

equipment on any highway unless the lamps thereon comply with and are lighted when and as required by the standards and specifications adopted by the State Highway Commission, as provided by K.S.A. 8-597a, as amended.
(Ord. No. 30-982 § 123)

Sec. 11.60.220. Brakes.

(a) Every motor vehicle or combination of vehicles other than a motorcycle, when operated upon a highway, shall be equipped with brakes adequate to control the movement of and to stop and hold such vehicle or combination of vehicles, including two separate means of applying the brakes, each of which means shall be effective to apply the brakes to at least two wheels. If these two separate means of applying the brake are connected in any way they shall be so constructed that failure to any one part of the operating mechanism shall not leave the motor vehicle without brakes on at least two wheels.

Every motorcycle, and bicycle with motor attached, when operated upon a highway shall be equipped with at least one brake, which may be operated by hand or foot.

(b) The service brakes upon any motor vehicle or combination of vehicles shall be adequate to stop such vehicle or vehicles when traveling twenty miles per hour within a distance of thirty feet when upon dry asphalt or concrete pavement surface free from loose material where the grade does not exceed one percent.

Under the above conditions the hand brake shall be adequate to stop such vehicle or vehicles within a distance of fifty-five feet and said hand brake shall be adequate to hold such vehicle or vehicles stationary on any grade upon which operated.

Under the above conditions, the service brakes upon a motor vehicle equipped with two-wheel brakes only, and when permitted hereunder, shall be adequate to stop the vehicle within a distance of forty feet and the hand brake adequate to stop the vehicle within a distance of fifty-five feet.

All braking distances specified in this section shall apply to all vehicles mentioned, whether such vehicles are not loaded or are loaded to the maximum capacity permitted under the state law.

All brakes shall be maintained in good working order and shall be so adjusted as to operate as equally as practicable with respect to the wheels on opposite sides of the vehicles.

Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheels slide on dry, level, clean pavement.
(Ord. No. 30-982 § 124)

Sec. 11.60.225. Compression brakes.

(a) It shall be unlawful for the driver of any motor vehicle to use or cause to be used or operated any compression release engine braking system without such motor vehicle being equipped with a muffler in accordance with K.S.A. 8-1739 and 11.60.240, and amendments thereto.

(b) As used in this section, "compression release engine braking system" means a hydraulically operated device that converts a power producing diesel engine into a power absorbing retarding mechanism.
(Ord. No. 51-194, § 1, 3-24-20)

Sec. 11.60.230. Horns—Sirens.

(a) Every motor vehicle when operated upon a highway shall be equipped with a horn in good working order and capable of emitting sound audible under normal conditions from a distance of not less than two hundred feet, but no horn or other warning device shall emit an unreasonably loud or harsh sound or a whistle. The driver of a motor vehicle shall, when reasonably necessary to insure safe operation, give audible warning with his horn, but shall not otherwise use such horn when upon a highway.

(b) No vehicle shall be equipped with nor shall any person use upon a vehicle any siren or bell, except as otherwise permitted in this section.

(c) Any vehicle may be equipped with a theft alarm signal device which is so arranged that it cannot be used by the driver as an ordinary warning signal. Such a theft alarm signal device may use a whistle, bell, horn or other audible signal but shall not use a siren.

(d) Any authorized emergency vehicle shall, in addition to any other equipment and distinctive marking required by state law, be equipped with a siren, whistle, or bell, capable of emitting sound audible under normal conditions from a distance of not less than five hundred feet and of an approved type, but such siren shall not be used except when such vehicle is operated in response to but not returning from an emergency call or in the immediate pursuit of an actual or suspected violator of the law in which said latter events the driver of such vehicle shall sound said siren when necessary to warn pedestrians and other drivers of the approach thereof.
(Ord. No. 39-100 § 7)

Sec. 11.60.240. Mufflers and the operation of loud vehicles.

(a) Every vehicle shall be equipped and maintained so as to prevent excessive or unusual noise. Every motor vehicle at all times shall be equipped with a muffler or other effective noise-suppressing system in good working order and in constant operation, and no person shall use a muffler cut-out, by-pass or similar device.

(b) The engine and power mechanism of every motor vehicle shall be so equipped and adjusted as to prevent the escape of excessive fumes or smoke. As used in this section, excessive fumes or smoke is smoke that is thick or does not immediately evaporate or that lingers after emission. This smoke is blue, grey or black in color and is often accompanied by an unpleasant burning odor.

(c) The operation of any vehicle in such a manner as to create any loud, unnecessary, or usual noise that is excessive, disruptive, injures or endangers the comfort, repose, health or safety and interferes with the use or enjoyment of property by any person of reasonable sensibilities is a nuisance and unlawful.

(d) Penalty.

1. Upon conviction of a violation under (a) or (b) of this section, a fine of up to $500 shall be imposed.
2. Upon conviction of a violation under (c) of this section, a fine of at least $250 but not to exceed $2,500 shall be imposed.

(Ord. No. 39-100 § 8; Ord. No. 52-810, § 10, 9-16-25)

Editor's note—Ord. No. 52-810, § 10, adopted Sept. 16, 2025, amended the title of § 11.60.240 to read as herein set out. The former § 11.60.240 title pertained to mufflers.

Sec. 11.60.250. Mirrors.

(a) After January 1, 1975, every motor vehicle shall be equipped with a mirror mounted on the left side of the vehicle and so located as to reflect to the driver a view of the highway for a distance of at least two hundred feet to the rear of such motor vehicle.

(b) Every motor vehicle, except a motorcycle, shall be equipped with an additional mirror mounted either inside the vehicle approximately in the center or outside the vehicle on the right side and so located as to reflect to the driver a view of the highway for at least two hundred feet to the rear of such motor vehicle.

(c) All mirrors required by this section shall be maintained in good condition.
(Ord. No. 33-459 (part))

Sec. 11.60.260. Windshield stickers—Wipers—Obstructions.

(a) No person shall drive any motor vehicle with any sign, poster or other nontransparent material upon the front windshield, sidewings, side or rear windows of such vehicle other than a certificate or other paper required to be so displayed by law.

(b) The windshield on every motor vehicle shall be equipped with a device for cleaning rain, snow or other moisture from the windshield, which device shall be so constructed as to be controlled or operated by the driver of the vehicle.

(c) No person shall operate any motor vehicle upon a public roadway when the windshield, rear window or side windows of such vehicle is

obscured with snow, ice, frost or moisture which in any manner obstructs the operator's vision to the front, side or rear when the motor vehicle is in motion.

(d) No person shall operate any motor vehicle upon a public roadway with a windshield, rear window or side window which is cracked or shattered in any manner which obstructs the operator's vision.
(Ord. No. 39-100 § 9)

Sec. 11.60.265. One-way glass and other applications prohibited.

(a) No motor vehicle required to be registered in this state shall be operated within the city equipped with one-way glass or sun-screening device on or in the front windshield, sidewings, side windows, or rear windows that do not meet the following requirements:

(1) A sun-screening device when used in conjunction with the windshield shall be non-reflective and shall not be red, yellow or amber in color. A sun-screening device shall be used only along the top of the windshield and shall not extend downward beyond the AS 1 line, which is clearly defined and marked.

(2) A sun-screening device when used in conjunction with the side wings or side windows located at the immediate right and left of the driver, the side windows behind the driver and the rear most window shall be non-reflective; and

(3) The total light transmission shall not be less than 35% when a sun-screening device is used in conjunction with other existing sun-screening devices, but this sub-section shall not apply to the window of a law enforcement vehicle. Subsection (a)(3) shall not apply to the window of a law enforcement vehicle.

(b) The provisions of subsection (a) shall not apply to the installation, affixation, or application of a clear, colorless and transparent material that may be installed, affixed or applied to the windshields, side wings, side windows, or rear windows of a motor vehicle if the following conditions are met:

(1) The material has a minimum visible light transmittance of 78%;

(2) The window glazing with the material meets all requirements of federal motor vehicle safety standard no. 205, including the specified minimum light transmittance of 70% and the abrasion resistance of AS-14 glazing, as specified in that federal standard;

(3) The material is designed and manufactured to enhance the ability of the existing window glass to block the sun's harmful ultraviolet A or B rays;

(4) The driver or occupant of the vehicle possess a signed statement from a licensed physician or licensed optometrist that:

(A) Identifies with reasonable specificity the driver or occupant of the vehicle; and

(B) States that, in the physician's or optometrist's professional opinion, the equipping of the vehicle with the material is necessary to safeguard the health of the driver or occupant of the vehicle; and

(5) If the material described in this subsection tears or bubbles, or is otherwise worn to prohibit clear vision, it shall be removed or replaced.

(c) Any driver who is issued a citation for failure to possess a signed statement pursuant to subsection (c)(4) shall have 60 days to either produce in court a signed statement or remove the material described in the subsection (c). If such driver produces the signed statement or submits proof to the satisfaction of the court that the material described in subsection (c) has been removed, then the court shall dismiss the citation.

(d) This section shall not prohibit labels, stickers or other informational signs that are required or permitted by state law.

(e) No motor vehicle required to be registered in this state shall be operated within the city equipped with headlamps that are covered with any sun-screening device, adhesive film or other glaze or application which when such lamps are not in operation is highly reflective or otherwise nontransparent.

(f) For the purposes of this section, the following terms are defined:

1. "Sun screening devices" means a film material or device that is designed to be used in conjunction with motor vehicle safety glazing materials for reducing the effects of the sun;
2. "Light transmission" means the ratio of the amount of total light to pass through a product or material including any safety glazing material to the amount of the total light falling on the product or material and the glazing;
3. "Luminous reflectants" means the ratio of the amount of total light that is reflected outward by the product or material to the amount of the total light falling on the product or material;
4. "Nonreflective" means a product or material designed to absorb light rather than to reflect it.

(g) Any person convicted of violating the provisions of this section shall be guilty of a misdemeanor punishable pursuant to Section 1.04.060 of this Code.
(Ord. No. 39-100 § 10; Ord. No. 51-091, § 2, 9-10-19)

Sec. 11.60.270. Tires.

(a) Every solid rubber tire on a vehicle shall have rubber on its entire traction surface at least one inch thick above the edge of the flange of the entire periphery.

(b) No person shall operate or move on any highway any motor vehicle, trailer or semitrailer having any metal tire in contact with the roadway.

(c) No tire on a vehicle moved on a highway shall have on its periphery any block, stud, flange, cleat or spike or any other protuberances of any material other than rubber which projects beyond the tread of the traction surface of the tire, except that it shall be permissible to use farm machinery with tires having protuberances which will not injure the highway, and except that it shall be permissible to use tire chains of reasonable proportions upon any vehicle when required for safety because of snow, ice or other conditions tending to cause a vehicle to skid, and except that the State Highway Commission is authorized to approve tires with metallic or nonmetallic studs which will not injure the highway and to issue and enforce regulations establishing standards and specifications for the approval of such studs.

(d) The city manager may, in his discretion, issue special permits authorizing the operation upon a highway of traction engines or tractors having movable tracks with transverse corrugations upon the periphery of such movable tracks or farm tractors or other farm machinery, the operation of which upon a highway would otherwise be prohibited under this chapter.

(e) It is unlawful for any person to operate a motor vehicle having one or more tires in an unsafe condition. A solid rubber tire shall be deemed to be in an unsafe condition if it does not comply with the provisions of subsection (a) of this section. A pneumatic tire shall be deemed to be in an unsafe condition if it has:

(1) Any part of the ply or cord exposed;

(2) Any bump, bulge or separation;

(3) A tread design depth of less than one-sixteenth of an inch measured in any two or more adjacent tread grooves, exclusive of tie bars, or for those tires with tread wear indicators worn to the level of the tread wear indicators in any two tread grooves;

(4) A marking "not for highway use" or "for racing purposes only" or "unsafe for highway use";

(5) Tread or sidewall cracks, cuts or snags deep enough to expose the body cord;

(6) Been regrooved or recut below the original tread design depth, excepting special taxi tires which have extra undertread rubber and are identified as such; or

(7) Such other conditions as may be reasonably demonstrated to render it unsafe.

(f) A person in the business of selling tires shall not sell or offer for sale for highway use any tire which is in an unsafe condition or which has a tread depth of less than two thirty-seconds inch measured as specified in subsection (e) of this section.
(Ord. No. 33-459 (part); Ord. No. 30-982 § 129)

Sec. 11.60.280. Drawbars on towing vehicles.

(a) When one vehicle is towing another, the drawbar or other connection shall be of sufficient strength to pull, stop and hold all weight towed thereby, and said drawbar or other connection shall not exceed fifteen feet from one vehicle to the other except the connection between any two vehicles transporting poles, pipe, machinery or other objects of structural nature which cannot readily be dismembered.

(b) In addition to the drawbar connections between any two such vehicles, there shall be provided an adequate safety hitch.

(c) When one vehicle is towing another and the connection consists of a chain, rope or cable, there shall be displayed upon such connection a white flag or cloth not less than twelve inches square.
(Ord. No. 30-982 § 130)

Sec. 11.60.290. Motorcycles—Protective headgear, eye screens.

(a) No person under the age of eighteen shall operate or ride upon a motorcycle or a motorized bicycle unless wearing a helmet which complies with the minimum guidelines established by the

National Highway Traffic Safety Administration pursuant to the National Traffic and Motor Vehicle Safety Act of 1966 for helmets designed for use by motorcyclists and other motor vehicle users.

(b) No operator of a motorcycle or a motorized bicycle shall allow any passenger under the age of eighteen years to: (1) operate a motorcycle or motorized bicycle or to ride as a passenger upon a motorcycle or motorized bicycle without being in compliance with the provisions of subsection (a); or (2) operate a motorcycle or to ride as a passenger upon a motorcycle without being in compliance with the provisions of subsection (c) and (d);

(c) No person shall operate a motorcycle unless such person is wearing an eye-protective device which shall consist of protective glasses, goggles or transparent face shields which are shatter proof and impact resistant, except when the motorcycle is equipped with a windscreen, which has a minimum height of ten inches measured from the center of the handlebars.

(d) No person under the age of 18 years shall ride as a passenger on a motorcycle unless such person is wearing an eye-protective device which shall consist of protective glasses, goggles or transparent face shields which are shatter proof and impact resistant.

(e) This section shall not apply to persons riding within an enclosed cab or on a golf cart, nor shall it apply to any person operating or riding any industrial or cargo-type vehicle having three wheels and commonly known as a truckster.
(Ord. No. 43-529 § 2; Ord. No. 48-802 § 1, 8-24-2010)

Sec. 11.60.300. Motorcycles—Riding position.

(a) A person operating a motorcycle or motor-driven cycle shall ride only upon the permanent and regular seat attached thereto, and such operator shall not carry thereon any other person nor shall any other person ride on a motorcycle or motor-driven cycle unless such vehicle is designed to carry more than one person in which event a passenger may ride upon the permanent and regular seat if designed for two persons, or upon another seat firmly attached to the rear or side of the operator.

(b) A person shall ride upon a motorcycle only while sitting astride the seat, facing forward, with one leg on each side of the motorcycle.

(c) No person shall operate a motorcycle while carrying any package, bundle or other article which prevents him from keeping both hands on the handlebars.

(d) No operator shall carry any person, nor shall any person ride, in a position that will interfere with the operation or control of the motorcycle or the view of the operator.
(Ord. No. 31-232 § 21; Ord. No. 30-982 § 132)

Sec. 11.60.310. Motorcycles—Operator rights and duties.

Every person operating a motorcycle shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of any other vehicle under this title, except as to special regulations in Sections 11.60.290, 11.60.300, 11.60.320 and 11.60.330 inclusive, and in Section 11.38.090, and except as to those provisions of this title, which by their nature can have no application.
(Ord. No. 31-232 § 20)

Sec. 11.60.320. Motorcycles—Driving rules.

(a) All motorcycles are entitled to full use of a lane and no motor vehicle shall be driven in such a manner as to deprive any motorcycle of the full use of a lane. This subsection shall not apply to motorcycles operated two abreast in a single lane.

(b) The operator of a motorcycle shall not overtake and pass in the same lane occupied by the vehicle being overtaken.

(c) No person shall operate a motorcycle between lanes of traffic or between adjacent lines or rows of vehicles.

(d) Motorcycles shall not be operated more than two abreast in a single lane.

(e) Subsections (b) and (c) shall not apply to police officers in the performance of their official duties.
(Ord. No. 31-232 § 22)

Sec. 11.60.330. Reserved.

Editor's note—Ord. No. 50-320 § 1, adopted Sept. 13, 2016, repealed section 11.60.330, which pertained to motorcycles—footrests and handlebars and derived from Ord. No. 39-100 § 12.

CHAPTER 11.64. RESERVED*

*__Editor's note—__Ord. No. 45-965, adopted December 30, 2003, repealed Ch. 11.64 in its entirety. Formerly said chapter pertained to unattended vehicles and derived from Ord. No. 29-151, §§ 1, 3; Ord. No. 39-101, § 1.

CHAPTER 11.68. PARKING METERS*

Sec. 11.68.010. Establishment of parking zones-regulated.
Sec. 11.68.020. Installation of meters and marking of spaces.
Sec. 11.68.030. Operation of meters.
Sec. 11.68.040. Reserved.
Sec. 11.68.060. Use of slugs, etc., prohibited.
Sec. 11.68.070. Tampering, etc., with meters; hitching animals to.
Sec. 11.68.080. Vehicles to be parked wholly within marked spaces.
Sec. 11.68.090. Extending time beyond legal parking time.
Sec. 11.68.100. Use of metered space when parking is prohibited.
Sec. 11.68.110. Overtime parking.
Sec. 11.68.111. Permit parking for Century II events.
Sec. 11.68.120. Exceptions to required operation of parking meters.
Sec. 11.68.130. Same—Contents of application; form required.
Sec. 11.68.140. Same—Issuance of permits; duties of city officers.
Sec. 11.68.150. Same—Required fees; exceptions; deposit of funds; no refund.
Sec. 11.68.160. Same—Unlawful acts; use of parking spaces, unauthorized covering of parking meters, possession of hoods.

Sec. 11.68.010. Establishment of parking zones-regulated.

(a) The portion of streets listed in Section 11.96.050 are established as parking zones-regulated;

(b) The portion of lots listed in Section 11.96.050 are established as parking zones-regulated;

(c) The central core area defined in Section 11.52.055 is established as a parking zone-regulated; and

(d) Any additional area designated now or added or modified in the future by the City Traffic Engineer with the approval of the City Manager under authority of Section 11.52.010 is also established as a parking zone-regulated.
(Ord. No. 43-196 § 2; Ord. No. 52-326, § 14, 1-9-24)

Editor's note—Ord. No. 52-326, § 14, adopted Jan. 9, 2024, amended the title of § 11.68.010 to read as herein set out. The former § 11.68.010 title pertained to Establishment of parking meter zones.

*__Cross reference—__For authority of traffic engineer to establish the time limit for parking in parking meter zones, see § 11.52.010.

Sec. 11.68.020. Installation of meters and marking of spaces.

In all parking zones-regulated established by this Title, or subsequently established by the City Traffic Engineer with the approval of the City Manager, the City Traffic Engineer is authorized and directed to install meters in such number and at such places as in his or her judgment may be necessary to regulate, control and inspect the parking of motor vehicles therein, including the reservation of loading zones for trucks. Parking meter technology may include individual meter heads, pay stations regulating a group of parking spaces, monitored or self-operating access gates, remote, computerized monitoring utilizing the operator's smartphone technology, or any other methodology the city traffic engineer determines to be accurate and reliable. The City Traffic Engineer is further authorized to have lines or markings painted upon the curb or street or parking surfaces, designating the parking space for which such meter is to be used and the space in which each motor vehicle may park.
(Ord. No. 43-196 § 3; Ord. No. 52-326, § 15, 1-9-24)

Sec. 11.68.030. Operation of meters.

Parking meters may be of a design to accept payment in any, several or all of the following forms: paper bills, coins, credit cards, debit cards, smartphone or other internet payment or validation. However, no parking privileges shall be granted to extend beyond the time limit specified on the face of the official traffic control devices designating the parking zone-regulated regardless of the amount of payment deposited.
(Ord. No. 19-139 § 145; Ord. No. 52-326, § 16, 1-9-24)

Sec. 11.68.040. Reserved.

Editor's note—Ord. No. 52-326, § 17, adopted Jan. 9, 2024, repealed § 11.68.040, which pertained to collectors, and derived from Ord. No. 19-139, § 146.

Sec. 11.68.060. Use of slugs, etc., prohibited.

It is unlawful for any person or operator to deposit or cause to be deposited in any parking meter any slug, device or substitute for a coin of the United States, or a bent or damaged coin.
(Ord. No. 19-139 § 148)

Sec. 11.68.070. Tampering, etc., with meters; hitching animals to.

It is unlawful for any unauthorized person to open, or for any person to deface, damage, tamper with or wilfully break, destroy or impair the usefulness of, any parking meter installed pursuant to this chapter, or for any person to attach any animal thereto.
(Ord. No. 19-139 § 148)

Sec. 11.68.080. Vehicles to be parked wholly within marked spaces.

It is unlawful for any person or operator to park any motor vehicle across any line or marking designating the parking meter space, or to park a motor vehicle in such a position that it is not entirely within the space designated by such lines or markings.
(Ord. No. 19-139 § 148)

Sec. 11.68.090. Extending time beyond legal parking time.

It is unlawful for any person or operator to deposit payment in a parking meter for the purpose of increasing the parking time of any motor vehicle beyond the legal maximum parking time as established for such parking zone-regulated.
(Ord. No. 19-139 § 148; Ord. No. 52-326, § 18, 1-9-24)

Sec. 11.68.100. Use of metered space when parking is prohibited.

It is unlawful for any person or operator to park any motor vehicle in a parking zone-regulated space at any time when parking in such space is prohibited.
(Ord. No. 19-139 § 148; Ord. No. 52-326, § 19, 1-9-24)

Sec. 11.68.110. Overtime parking.

(a) It is unlawful for any person or operator to cause, allow or permit any motor vehicle registered in his or her name, or operated and controlled by him or her to be within a parking zone-regulated for more than the maximum time indicated on the meter of such parking zone-regulated.

(b) It is unlawful for any person or operator to cause, allow or permit any motor vehicle registered in his or her name, or operated or controlled by him or her, to be within a parking zone-regulated space for more than the maximum time indicated on the face of any official traffic control device designating the parking zone-regulated, or any time during which the space is illegally in use.
(Ord. No. 43-196 § 4; Ord. No. 52-326, § 20, 1-9-24)

Sec. 11.68.111. Permit parking for Century II events.

(a) The City Manager or his or her designee is authorized to issue permits designed in such fashion as would entitle the holder thereof to use certain parking zone-regulated spaces within an area bounded by the south curb line of Douglas Avenue, the Arkansas River, the Kellogg Flyover, and the west curb line of Main Street without the necessity of depositing payment in the parking meter regulating such space.

(b) Exceptions. Such permits shall apply only to regulated parking zone-regulated spaces within City-owned or leased lots within the area designated in subsection (a) and shall not allow the use of parking zone-regulated spaces on public streets or within the parking lot abutting and directly to the south of the former Central Branch Library without payment. The issuance of said permits shall be limited to participants of events taking place at Century II pursuant to a lease agreement with the City of Wichita and commensurate with the terms of such lease agreement. The effective date(s) and time(s) shall be clearly stated on the face of the permit, which must be displayed on the dashboard of the vehicle occupying the regulated parking zone space. A vehicle parked or standing in a regulated parking zone space during any time outside the effective date(s) and or time(s) on the face of the

permit shall be subject to a citation for meter violation and punished as set forth in Section 11.92.040.
(Ord. No. 32-215; Ord. No. 49-391 § 1, 11-20-2012; Ord. No. 52-326, § 21, 1-9-24)

Sec. 11.68.120. Exceptions to required operation of parking meters.

The following provisions constitute exceptions to any other provisions of this Title and any ordinance of the city requiring the operating of parking meters in designated parking zones-regulated or off-street parking facilities of the city. Any parking meter or meters need not be placed in operation by payment when the following conditions have been satisfied and a permit issued for the hooding or covering of such meter as follows:

(1) ELIGIBLE APPLICANTS. Upon application to and approval of the City Traffic Engineer and payment of the permit fee hereinafter provided, any of the following persons may obtain a permit for the hooding or covering of any parking meter or meters:

(a) Persons having a permit from the Metropolitan Area Building and Construction Department to encumber any street or sidewalk in connection with any building or wrecking project;

(b) Persons having a permit from the Metropolitan Area Building and Construction Department to perform any plumbing, electrical, heating, sign hanging or other project in any public way or on premises adjacent to any street, alley or sidewalk;

(c) Persons engaged in any public improvement under contract with the city or engaged in any work under supervision of the City Engineer;

(d) Public utilities (private or municipal) engaging in construction and maintenance work in or adjacent to any public way;

(e) Persons engaged in the business of moving personal property and effects from and to residential or commercial buildings adjacent to any public way;

(f) Persons licensed as funeral directors and holding services in any funeral home or church;

(g) Persons engaged in the repair and maintenance of building service installations and office equipment;

(h) Persons requiring temporary parking space immediately adjacent to commercial and industrial establishments for loading or unloading of building and office equipment of immediate necessity;

(i) Persons acting under the authority or requirements of the police and fire departments to provide temporary special use parking zones-regulated.

(2) APPROVAL OF APPLICATION. The City Traffic Engineer shall determine the necessity for the hooding and covering of any parking meter, and upon his or her approval of the application therefor, shall authorize the required parking meter or meters to be hooded in accordance with the application as approved. Upon the hooding or covering of the face of any parking meter, as hereinafter provided, the same need not be placed in operation by the deposit of payment otherwise required by this Title.

(3) EXCEPTIONAL CASES. Exceptions to the foregoing rules and regulations and payment of required fees may be made in appropriate cases involving special circumstances not covered by this section upon an application and a showing that the hooding or covering of any parking meter serves the public convenience and safety, and is in harmony with the other provisions of this Code; provided, that such exceptions shall be approved in advance by the City Manager, or in his or

her absence, by the City Traffic Engineer, or his or her duly authorized representative.

(Ord. No. 39-102 § 2; Ord. No. 52-326, § 22, 1-9-24)

Editor's note—Ord. No. 52-326, § 22, adopted Jan. 9, 2024, amended the title of § 11.68.120 to read as herein set out. The former § 11.68.120 title pertained to exceptions to required operation of parking meters by deposit of coins.

Sec. 11.68.130. Same—Contents of application; form required.

The following rules and regulations shall govern the making of the application of the issuance of any permit hereinbefore authorized:

(1) TIME OF FILING APPLICATION. The application under this chapter for a permit shall be made in writing and filed at least seventy-two hours in advance of the time any parking meter is to be hooded and not placed in operation; provided, that this requirement may be waived by the City Traffic Engineer in unusual circumstances which require the authorized hooding of any parking meter for emergency occupancy of any parking space.

(2) FORM OF APPLICATION. The application shall be on a form prepared by the City Traffic Engineer. The failure or refusal of any applicant to furnish information requested in such application shall be sufficient grounds for denial by the City Traffic Engineer. The application will show: the name and business of the applicant; the reason for the hooding of the parking meter or meters; evidence that a permit for the encumbering of any street has been issued by the Metropolitan Area Building and Construction Department (when the same is required by ordinance); the location and number of parking meters desired to be hooded and the day or dates and the hours the same are to be covered; a description and license number of vehicles to be parked or allowed to occupy parking meter spaces under the permit applied for (except in cases where applicant agrees to supervise and control occupancy of the parking spaces described in the permit); and such other information as may be required in such application form.

(3) EXHIBIT OF PERMIT. In all cases any permit issued hereunder shall be kept by the permittee (or his or her agent) at the location of the parking meters authorized to be covered, and shall be exhibited to any officer or employee of the city upon demand.

(Ord. No. 23-995 § 1; Ord. No. 52-326, § 23, 1-9-24)

Sec. 11.68.140. Same—Issuance of permits; duties of city officers.

When the application for a permit has been approved, the City Traffic Engineer shall endorse such approval over his or her signature and upon payment of required fee, shall execute the permit on the application form, and issue or cause to be issued the number of parking meter hoods shown by the application; provided, however, that no permit issued hereunder shall be for a period in excess of thirty days; and provided, further, nothing herein contained shall prohibit the reapplication and reissuance of permits for successive periods not to exceed thirty days each. The City Traffic Engineer shall jointly establish suitable procedures for the issuance, removing and accounting, for parking, meter hoods and the covering of parking meters as herein authorized.

(Ord. No. 39-102 § 3; Ord. No. 52-326, § 24, 1-9-24)

Sec. 11.68.150. Same—Required fees; exceptions; deposit of funds; no refund.

The fee for the hooding of any parking meter for each authorized day (or fraction thereof) shall be listed in section 10.34.010, unless modified by the City Traffic Engineer, for the entire parking space controlled by each such meter provided, however, each application will pay the required fee per meter for the total number of parking zone-regulated spaces controlled by that meter.

Under no circumstances will the permit fee or any portion thereof be refunded to any applicant.
(Ord. No. 45-683 § 1; Ord. No. 39-102 § 4; Ord. No. 50-185 § 1, 4-26-16; Ord. No. 52-326, § 25, 1-9-24)

Sec. 11.68.160. Same—Unlawful acts; use of parking spaces, unauthorized covering of parking meters, possession of hoods.

(a) It is unlawful for any person other than a person having a valid permit issued under authority of the foregoing provisions of this chapter, his or her authorized agents or employees to park or stand any vehicle in the street parking zone-regulated space adjacent to any parking meter covered or hooded in compliance with the aforesaid provisions of this chapter.

(b) It shall be further unlawful for any unauthorized person to cover or hood any parking meter, or to remove, tamper with, damage or destroy any official parking meter cover or hood of the city, or for any person to have in his possession any cover, hood or other device designed for the purpose of masking, covering or hooding of any parking meter contrary to the provisions of the foregoing sections of this chapter.

(c) Any person violating the provisions of Subsections (a) and (b) of this Section is guilty of a misdemeanor and upon conviction shall be punished by a fine of not more than twenty-five hundred dollars for each violation.
(Ord. No. 23-995 § 1; Ord. No. 52-326, § 26, 1-9-24)

CHAPTER 11.80. SIZE, WEIGHT AND LOADS*

Sec. 11.80.010. Width of vehicles.
Sec. 11.80.020. Projecting loads on passenger vehicles.
Sec. 11.80.030. Height and length of vehicles.
Sec. 11.80.045. Securing loads on vehicles.
Sec. 11.80.050. Gross weight of vehicles and loads.
Sec. 11.80.055. Towing vehicles; connection and safety equipment.
Sec. 11.80.070. Special permits for oversize vehicles or overweight vehicles or loads—Appeal upon denial.
Sec. 11.80.080. Criminal penalties for violation of size and weight laws; exceptions.
Sec. 11.80.090. Enforcement of vehicle weight laws; officers may weigh vehicles; portable scales; required drive to stationary scales; off-loading or load redistribution required, when.

Sec. 11.80.010. Width of vehicles.

(a) The total outside width of any vehicle or the load thereon shall not exceed eight feet six inches, except as otherwise provided in this chapter, or as noted in Chapter 10.24, "Moving Buildings."

(b) The total outside width of a farm tractor shall not exceed ten feet.

(c) Whenever pneumatic tires, in substitution of the same type or other types of tires, are placed upon a vehicle the maximum width from the outside of one wheel and tire to the outside of the opposite wheel and tire shall not exceed eight feet six inches; but in such event, the outside width of the body of such vehicle or load thereon shall not exceed eight feet.

(d) The total outside width of the body of a bus, excluding all rearview mirrors, turn signal lamps and handholds equipment used in intercity transit operations or a bus used in local urban transit operations, shall not exceed eight feet six inches.

(e) (1) A vehicle may be loaded with bales of hay which shall not exceed twelve feet in width and a height as authorized by K.S.A. 8-1904, and amendments thereto.

(2) A farm vehicle may be loaded with bales of hay which shall not exceed twelve feet in width and a height as authorized by K.S.A. 8-1904, and amendments thereto. As used in this paragraph "farm vehicle" means a truck or truck-tractor registered under K.S.A. 8-143, and amendments thereto, as a farm truck or truck-tractor and used in combination with any type of trailer or semitrailer.

(3) Any such vehicles under subsection (e)(1) or (e)(2) of this section so loaded shall not be moved during the period beginning thirty minutes after sunset and ending thirty minutes before sunrise. Any vehicle loaded with bales of hay as authorized by the exception in this subsection, with the load extending beyond eight and one-half feet, shall have attached thereto a sign which states "OVERSIZE LOAD" and the dimensions of the sign shall be a minimum of seven feet long and eighteen inches high. Letters shall be a minimum of ten inches high with a brush stroke of not less than one and two-fifths inches. The sign shall be readily visible from a distance of five hundred feet and shall be removed when the vehicle or load does not exceed the legal width. Each vehicle shall be equipped with red flags on all four corners of the oversized load.

(Ord. No. 43-963 § 1; Ord. No. 40-560 § 1)

Sec. 11.80.020. Projecting loads on passenger vehicles.

No passenger type vehicle shall be operated on any highway with any load carried extending beyond the line of the fenders on the left side of such vehicle nor extending more than six inches beyond the line of the fenders on the right side thereof.

(Ord. No. 19-139 § 190)

*__Cross reference—__As to lamps or flags on projecting loads, see § 11.60.100 of this Code.

Sec. 11.80.030. Height and length of vehicles.

(a) No vehicle unladen or with load shall exceed a height of fourteen feet, except as otherwise provided in this chapter.

(b) No motor vehicle or single truck shall exceed a length of forty-five feet extreme overall dimensions, excluding the front and rear bumpers, except as provided in subsection (c).

(c) The maximum legal length of truck, truck-tractor and trailer combinations shall be according to K.S.A. 8-1904 for the maximum size of trucks and trailers on interstate and other highways.

(d) The limitations in this section governing maximum length of a truck-tractor and semi-trailer or other combination of vehicles coupled together shall not apply to vehicles operating in the daytime when transporting poles, pipe, machinery or other objects of a structural nature which cannot readily be dismembered, and vehicles transporting such objects operated at nighttime by a public utility when required for emergency repair of public service facilities or properties, or when operated under special permit as provided in Section 11.80.070, but in respect to such night transportation every such vehicle and the load thereon shall be equipped with a sufficient number of clearance lamps on both sides and marker lamps upon the extreme ends of any projecting load to clearly mark the dimensions of such load.

(e) The limitations of this section governing the maximum length of combinations of vehicles shall not apply to a combination of vehicles consisting of a truck tractor towing a house trailer, if such combination of vehicles does not exceed an overall length of ninety-seven feet.

(f) The length limitations of this section shall not apply to stinger-steered automobile or boat transporters, driveaway saddlemount vehicle transport combinations or one truck and one trailer vehicle combination, loaded or unloaded, used in transporting a combine to be engaged in farm custom harvesting operations, as defined in subsection (d) of K.S.A. 8-143j, and amendments thereto. A stinger-steered automobile or boat transporter, drive-away saddlemount vehicle transport combination or one truck and one trailer vehicle combination, loaded or unloaded, used in transporting a combine to be engaged in farm custom harvesting operations, as defined in subsection (d) of K.S.A. 8-143j, and amendments thereto, shall not exceed an overall length limit of seventy-five feet, exclusive of front and rear overhang.

(g) The load upon any vehicle operated alone, or the load upon the front vehicle of a combination of vehicles, shall not extend more than three feet beyond the front wheels of such vehicle or the front bumper of such vehicle if it is equipped with such a bumper.
(Ord. No. 44-722 § 1)

Sec. 11.80.045. Securing loads on vehicles.

(a) No vehicle shall be driven or moved on any highway unless such vehicle is so constructed or loaded as to prevent any of its load from dropping, sifting, leaking or otherwise escaping therefrom, except that this section shall not prohibit the necessary spreading of any substance in highway maintenance or construction operations.

(b) No person shall operate on any highway any vehicle with any load unless said load and any covering thereon is securely fastened so as to prevent said covering or load from becoming loose, detached or in any manner a hazard to other users of the highway.
(Ord. No. 39-104 § 3)

Sec. 11.80.050. Gross weight of vehicles and loads.

(a) No vehicle or combination of vehicles shall be moved or operated on any street or road with a gross weight thereof that exceeds the limit as specified by the law of the state as set forth in K.S.A. 8-1901, 8-1908 and 8-1909 except as provided in Section 11.80.070.

(b) No vehicle or combination of vehicles shall be moved or operated on any bridge within the city with a gross weight thereof that exceeds the gross weight limit as posted on such bridge.
(Ord. No. 40-157 § 3)

Sec. 11.80.055. Towing vehicles; connection and safety equipment.

(a) When one vehicle is towing another, the drawbar, towbar or other connections shall be of sufficient strength to pull, stop and hold all weight towed thereby, and so designed, constructed and installed as to insure that any vehicle or motor vehicle towed on a legal, smooth, paved surface will follow in the path of the towing vehicle when it is moving in a straight line. In addition to the drawbar connections between any two such vehicles, there shall be provided an adequate safety hitch.

(b) When one vehicle is towing another and the connection consists of a chain, rope or cable, there shall be displayed upon such connection a white flag or cloth not less than twelve inches square.

(c) Motor vehicles in transit may be transported in combination by means of towbar, saddlemount or fullmount mechanisms, utilizing the motive power of one of the motor vehicles in such combination, except that not more than two vehicles in any such combination of motor vehicles in transit may be connected by means of a towbar mechanism. Whenever motor vehicles are transported as authorized in this subsection, such motor vehicles shall be connected securely in combination in accordance with rules and regulations adopted by the Secretary of Transportation, and any combination of such motor vehicles shall comply with the limitations prescribed by 11.80.030.

(d) Except as otherwise provided in subsection (c), not more than three vehicles, including the towing vehicle, in any combination of vehicles may be connected by means of a towbar mechanism, and if the three such vehicles are connected by towbar mechanisms, the towbar mechanism between the towing vehicle and the first towed vehicle, shall be equipped with an antisway mechanism. In addition, the second towed vehicle of every combination of vehicles so connected shall be equipped with service brakes acting on the wheels of at least one axle, and which are of a type approved by the safety department of the department of transportation and of such character as to be applied automatically and promptly.
(Ord. No. 39-104 § 4)

Sec. 11.80.070. Special permits for oversize vehicles or overweight vehicles or loads—Appeal upon denial.

(a) The city manager, upon the recommendation of the director of public works, may issue special permits to operate oversize or overweight vehicles or loads upon the streets and roads of the City of Wichita, as contemplated by K.S.A. 8-1911 and amendments thereto.

(b) The city may charge a fee for the issuance of such a special permit and the governing body shall establish a fee schedule which specifies the permit fee to be charged.

(c) The city manager, together with the director of public works, shall establish a policy for the issuance of special permits and such policy may include requirements that persons requesting such permits agree to conditions regarding time, manner and place of operation thereunder.

(d) It shall be unlawful for any person to operate a vehicle or to permit a vehicle to be operated on the streets and roads of the City of Wichita in violation of the terms and conditions of a special permit issued under this section. For purposes of this section, a person to whom a special permit is issued shall be deemed to have permitted the operation of a vehicle subject to such permit if such vehicle is moved on the streets and roads of the City of Wichita.

(e) A violation of the provisions of subsection (d) of this section shall be punishable by a fine of not more than one thousand dollars, in addition to any penalties or fines for violation of other provisions of this chapter. Each day any such violation of said subsection continued shall constitute a separate offense.

(f) Any person aggrieved by a decision of the city manager in denying a special permit under this section may appeal such decision to the governing body. Such appeal shall be filed within ten days of the decision appealed from and shall be in writing.
(Ord. No. 40-157 § 4)

Sec. 11.80.080. Criminal penalties for violation of size and weight laws; exceptions.

(a) It shall be unlawful for any person to operate a vehicle or to permit a vehicle to be operated on the streets and roads of the City of Wichita in violation of Chapter 11.80 of the Code of the City of Wichita, Kansas.

(b) Any person violating any of the provisions of Chapter 11.80 of the code of the City of Wichita, Kansas, except for the provisions of Sections 11.80.050 and 11.80.070, shall, upon conviction thereof, be fined an amount not to exceed five hundred dollars.

(c) Any person violating any of the provisions of Section 11.80.050 shall, upon a first conviction thereof, be fined the applicable following amount from one, but not both of the following schedules for moving a gross vehicle or combination of vehicles weighing in excess of the lawful maximum gross weight for such vehicle or combination of vehicles or for any axle or tandem, triple or quad axles thereof:

GROSS WEIGHT OF VEHICLE OR COMBINATION

Pounds Overweight	*Rate of Fine*
Up to 1000	$25.00
1001 to 2000	.03 per pound
2001 to 5000	.05 per pound
5001 to 7500	.07 per pound
7501 and over	.10 per pound

GROSS WEIGHT ON ANY AXLE OR TANDEM, TRIPLE OR QUAD AXLES

Pounds Overweight	*Rate of Fine*
Up to 1000	$25.00
1001 to 2000	.03 per pound
2001 to 5000	.06 per pound
5001 to 7500	.07 per pound
7501 and over	.10 per pound

For a second violation of this subsection within a two-year period, such person, upon conviction, shall be fined one and one-half times the applicable amount from one, but not both, of the above schedules. For a third violation of this subsection within a two-year period, such person, upon conviction, shall be fined two times the applicable amount from one, but not both, of the above schedules. For a fourth and each succeeding violation of this subsection within a two-year period, such person, upon conviction, shall be fined two and one-half times the applicable amount from one, but not both of the above schedules.

(d) Except as otherwise specifically provided in this chapter and Chapter 10.24, the provisions governing size, weight and load shall not apply to fire apparatus, road machinery, farm tractors or to implements of husbandry temporarily moved upon a highway, or to a vehicle operated under the terms of a currently valid special permit issued in accordance with Section 11.80.070 or K.S.A. 8-1911 and any amendments thereto.

(e) As used in this section, "conviction" means a final conviction without regard to whether sentence was suspended or probation granted after such conviction, and a forfeiture of bail bond or collateral deposited to secure a defendant's appearance in court, which forfeiture has not been vacated, is equivalent to a conviction.
(Ord. No. 40-157 § 5)

Sec. 11.80.090. Enforcement of vehicle weight laws; officers may weigh vehicles; portable scales; required drive to stationary scales; off-loading or load redistribution required, when.

(a) Any police officer having reason to believe that the gross weight of a vehicle or combination of vehicles or the cross weight on any axle or tandem axle is unlawful is authorized to require the driver to stop and submit to a weighing of the same by means of either portable or stationary scales and may require that such vehicle be driven to any scales suitable for this purpose within five miles. When portable scales are used for weighing for the purpose of this section, the location of such portable scales shall not be more than ten miles from any stationary scales whose accuracy is certified in accordance with law.

(b) Whenever a police officer, upon weighing a vehicle or combination of vehicles, determines that the weight is unlawful, such officer may require the driver to stop the vehicle in a suitable place and remain standing until such portion of the load is removed as may be necessary to reduce the gross weight of such vehicle or combination of vehicles or remove or redistribute the gross weight on any axle or tandem axles to satisfy the legal load limitations. All material so unloaded shall be cared for by the owner, lessee or operator of such vehicle at the risk of such owner, lessee or operator.

(c) Any driver of a vehicle or combination of vehicles who fails or refuses to stop and submit such vehicle or combination of vehicles to weighing as provided in this section or who fails or refuses when directed by an officer to comply with the provisions of this section, shall be guilty of a misdemeanor.

(Ord. No. 40-157 § 6)

CHAPTER 11.84. CONTROLLED ACCESS FACILITIES

Sec. 11.84.010. Establishment of controlled access facilities.
Sec. 11.84.020. Establishment of frontage roads.
Sec. 11.84.030. Unlawful use of controlled access facilities.

Sec. 11.84.010. Establishment of controlled access facilities.

Pursuant to the authority granted under K.S.A. 68-1902, the streets or parts of streets as described in Section 11.96.070 are established as controlled access facilities.
(Ord. No. 39-105 § 1)

Sec. 11.84.020. Establishment of frontage roads.

Pursuant to the authority granted under K.S.A. 68-1905, the streets or parts of streets described in Section 11.96.080 are established as frontage roads.
(Ord. No. 39-105 § 2)

Sec. 11.84.030. Unlawful use of controlled access facilities.

It shall be unlawful for any person:

(a) To drive a vehicle over, upon or across any curb, central dividing section or other separation or dividing line on controlled access facilities;

(b) To make a left turn or a semicircular or "U" turn except through an opening provided for that purpose in the dividing curb section, separation or line;

(c) To drive any vehicle except in the proper lane provided for that purpose and in the proper direction and to the right of the central dividing curb, separation section or line;

(d) To drive any vehicle into the controlled access facility from a frontage road except through an opening provided for that purpose in the dividing curb, dividing section or dividing line which separates such frontage road from the controlled access facility proper.

(Ord. No. 19-139 § 197)

CHAPTER 11.88. PARKS, AIRPORTS AND PUBLIC PROPERTY

Sec. 11.88.010. Vehicles not to be driven on public grounds.
Sec. 11.88.015. Motor vehicle parking.
Sec. 11.88.020. Speed restrictions.
Sec. 11.88.040. Use of roads or drives by trucks.
Sec. 11.88.050. Mounted riders.

Sec. 11.88.010. Vehicles not to be driven on public grounds.

(a) It is unlawful for any person to drive or park any vehicle upon any portion of the public parks, municipal airports or other public grounds of the city other than upon the street, roads, drives and boulevards designated for that purpose; provided, that vehicles may be parked in such places as are designated for that purpose by the city council, the board of park commissioners or other city agencies responsible for the regulation and supervision of said public grounds.

(b) It is unlawful for any person to ride or propel a bicycle upon any portion of the public parks, municipal airports or other public grounds of the city other than upon the streets, roads, drives, boulevards or paths designated for that purpose, or in such areas as are designated for bicycling use by the city commission, the board of park commissioners or any other city agencies responsible for the regulation and supervision of said public grounds.

(c) It is unlawful for any person to leave or park a bicycle in any portion of the public parks, municipal airports or other public grounds of the city other than in a bicycle parking rack when such is provided and there is space available.

(d) Nothing herein contained shall prevent any employee of the city, the board of park commissioners or the employees of any other city agency responsible for the regulation and supervision of said public grounds from performing their official duties, or any other person or business entity from performing work on the public grounds for and on behalf of such city, board or agency.
(Ord. No. 39-106 § 1)

Sec. 11.88.015. Motor vehicle parking.

The following requirements pertain to all paved parking lots located in parks and at park recreation facilities including, but not limited to, golf courses, recreation centers, swimming pools, tennis centers and picnic areas:

(a) Whenever individual motor vehicle parking spaces shall have been established and designated on any such parking lot, whether by lines painted upon the lot surface or by some other means, it shall be unlawful for any person to park a motor vehicle upon such lot in other than a marked parking space. Further, it shall be unlawful for any individual to park any motor vehicle on or across, or to extend any part of the motor vehicle over these lines or markings, or to park any motor vehicle in such a position that it is not entirely within the space designated by such lines or markings.

(b) Motor vehicles shall be parked in such parking space with the front of the vehicle headed towards the front of the parking space and it shall be unlawful for any person to back any motor vehicle into any parking space.

(c) It is unlawful for any person or operator to park a motor vehicle in any space in a parking lot, properly designated and marked as described in Section 28.04.141(4) as being restricted to accessible parking, when the motor vehicle does not bear a license plate or disabled identification card issued by the Director of Vehicles of the State of Kansas or some other state indicating the vehicle belongs to a disabled individual or a person responsible for the transportation of such disabled individual; or, when bearing such license plates, the motor vehicle is not being used for the transportation of such disabled individual.

(Ord. No. 39-106 § 2; Ord. No. 50-896, § 7, 11-27-18)

Sec. 11.88.020. Speed restrictions.

It is unlawful for any person to drive or ride within the park system or municipal airports at

a speed greater than the posted speed limit and, within certain parks listed below, at a speed greater than fifteen miles per hour, and along or near any designated playground, picnic or recreational area where reduced speed signs of fifteen miles per hour are posted:

O.J. Watson Park

Municipal Airports, except where traffic signs permit of greater speed.
(Ord. No. 39-106 § 3)

Sec. 11.88.040. Use of roads or drives by trucks.

It is unlawful for any person to drive or haul along, whether loaded or not loaded, any wagon, threshing machine, car or vehicle used for business purposes or for commercial or heavy hauling or traffic, upon any boulevard, park drive, or park road in the city; provided, that the board of park commissioners may authorize the issuing of a permit for the driving of motor trucks over or on park roads, drives, or boulevards for the purpose of conveying passengers or picnickers, or for transporting food, supplies or other articles for use at a picnic, meeting or gathering, or for transporting materials and supplies for use in the park.
(Ord. No. 39-106 § 4)

Sec. 11.88.050. Mounted riders.

It is unlawful for any person to ride any horse or other animal upon any boulevard, road or drive in any park, the municipal airports or public ground in the city at a gait faster than eight miles per hour; provided, that at all places where special trails or bridle paths have been prepared especially for mounted riders, such trails and paths shall be used and the roads and drives intended for motor and other vehicles shall not be used by such mounted riders. Mounted riders shall be prohibited from riding any horse or other animal upon grassed areas of any public park, municipal airport or public property. This section shall not apply to members of the Wichita police department during the performance of their lawful duties.
(Ord. 42-488 § 1)

CHAPTER 11.92. ARREST AND PENALTIES*

Sec. 11.92.010. Penalties.
Sec. 11.92.030. Illegal operation of a vehicle.
Sec. 11.92.040. Payments to avoid prosecution—Schedule of fines.
Sec. 11.92.060. Registration deemed prima facie evidence of identity of violator.
Sec. 11.92.070. Prosecution of Juvenile traffic offenders; disposition.

Sec. 11.92.010. Penalties.

(a) It is unlawful for any person to violate any of the provisions of this title.

(b) Every person convicted of a violation of any of the provisions of this title for which another penalty is not provided shall, upon conviction, be fined in an amount of not more than five hundred dollars.
(Ord. No. 32-948; Ord. No. 30-982 § 133)

Sec. 11.92.030. Illegal operation of a vehicle.

It is unlawful for the owner, or any other person, employing or otherwise directing the driver of any vehicle, to require or knowingly to permit the operation of such vehicle upon a highway in any manner contrary to this title.
(Ord. No. 30-982 § 135)

Sec. 11.92.040. Payments to avoid prosecution—Schedule of fines.

(a) The owner or operator of any motor vehicle which is parked in violation of any of the provisions of this Title and to which vehicle a citation had been attached may, within ten days of the date of such violation pay to the Wichita Municipal Court, as a penalty for and in full satisfaction of such violation, a fine as ordered by the Municipal Court Judge, but not less than the amounts set forth in the following schedule:

(1) Meter violation on the street contrary to 11.68.110(a).... $35.00

(2) Meter violation on a city lot contrary to 11.68.110(b).... $35.00

(3) Overtime parking in a 1 or 2 hour zone contrary to 11.52.020(1)..... $35.00

(4) Overtime parking in the central core area contrary to 11.52.055(b)..... $35.00

(5) Unlawful parking—Municipal parking zone contrary to 11.52.130(a)—(d)..... $35.00

(6) Parking in a no-parking zone contrary to 11.52.020(3).... $50.00

(7) Parking in an alley contrary to 11.52.020(20) $50.00

(8) Parking in a truck zone contrary to 11.52.020(3).... $50.00

(9) Parking left wheel to curb contrary to 11.52.040 ..... $50.00

(10) Parking on a sidewalk area contrary to 11.52.020(4).... $50.00

(11) Parking not wholly within marked spaces contrary to 11.68.080 ..... $50.00

(12) Parking on a private lot contrary to 11.52.020(26) .. $50.00

(13) ¾-ton vehicle parked on residential street contrary to 11.52.020(24) $50.00

(14) Any other parking violations not listed in (1)—(13) above, or for which no other specific penalty is set forth elsewhere in this code $50.00

(b) The failure of an owner or operator to pay to the Wichita Municipal Courts within ten days from the date of violation the appropriate amount as set forth in Subsection (a) herein shall render such owner or operator subject to the penalty provided in Section 11.92.010, and any amendments thereto, for violation of the provisions of this Title and shall include a minimum fine of

*__Note—__Ordinance history; Ord. No. 19-139 §§ 198—200; Ord. No. 19-563 §§ 1—3; Ord. No. 24-964, § 1.

not less than the appropriate amount required under Subsection (a) herein plus an additional fifty dollars for each violation.

(c) The City Traffic Engineer is authorized to create and maintain a schedule of the currently applicable fees associated with parking violations that varies from the schedule established in subsection (a) above in all parking zone-regulated spaces in the city. If the City Traffic Engineer does so, he or she shall post such schedule on the city's website along with the effective date of such changes. In addition to posting such information on the city's website, the City Traffic Engineer shall provide to the Wichita Municipal Court any proposed fine changes no less than 30 days prior to any such changes being implemented. Any variation from the subsection (a) schedule shall also be described on the official traffic control device or parking meter regulating the parking zone-regulated spaces in which the violation occurred. In default of such posting, the subsection (a) schedule shall be enforced.
(Ord. No. 42-140 § 3; Ord. No. 52-326, § 27, 1-9-24)

Sec. 11.92.060. Registration deemed prima facie evidence of identity of violator.

In any proceeding for the violation of the provisions of this title, the registration plate displayed upon the motor vehicle in violation shall constitute in evidence a prima facie presumption that the owner of such motor vehicle was the person who parked or placed such motor vehicle at the place where the violation occurred.
(Ord. No. 30-982 § 138)

Sec. 11.92.070. Prosecution of juvenile traffic offenders; disposition.

(a) Subject to the provisions of this section and of K.S.A. 8-2117 and amendments thereto, the municipal court of the City of Wichita has jurisdiction to hear prosecutions of traffic offenses involving any child 14 or more years of age but less than 18 years of age. The court, upon hearing the prosecution, may impose any fine authorized by law for a traffic offense, including a violation of Section 11.38.150 and amendments thereto, and may order that the child be placed in a juvenile detention facility, as defined by K.S.A. 38-1602 and amendments thereto, for not more than 10 days. If the child is less than 18 years of age, the child shall not be incarcerated in a jail as defined by K.S.A. 38-1602 and amendments thereto. If the statute under which the child is convicted requires a revocation or suspension of driving privileges, the court shall revoke or suspend such privileges in accordance with that statute. Otherwise, the court may suspend the license of any person who is convicted of a traffic offense and who was under 18 years of age at the time of commission of the offense. Suspension of a license shall be for a period not exceeding one year, as ordered by the court. Upon suspending any license pursuant to this section, the court shall require that the license be surrendered to the court and shall transmit the license to the division of vehicles with a copy of the court order showing the time for which the license is suspended. The court may modify the time for which the license is suspended, in which case it shall notify the division of vehicles in writing of the modification. After the time period has passed for which the license is suspended, reinstatement of the license shall be in accordance with the provisions of K.S.A. 8-2117 and amendments thereto.

(b) Instead of suspending a driver's license pursuant to this section, the court may place restrictions on the child's driver's privileges pursuant to K.S.A. 8-292 and amendments thereto.

(c) Instead of the penalties provided in subsections (a) and (b), the court may place the child under a house arrest program, pursuant to K.S.A. 21-4603b and amendments thereto, and sentence the child to the same sentence as an adult traffic offender under the provisions of this code.

(d) As used in this section, "traffic offense" means a violation of any section of this code which prohibits acts which would constitute a violation of the uniform act regulating traffic on highways as set forth in state law, a violation of articles 1 and 2 of chapter 8 of the Kansas Statutes Annotated, or a violation of K.S.A.

41-3104 and amendments thereto, and any violation of a section of this code which prohibits acts which are not violations of state laws and which relate to the regulation of traffic on the roads, highways or streets or the operation of self-propelled or nonself-propelled vehicles of any kind.
(Ord. No. 47-054, § 1, 6-27-06)

CHAPTER 11.96. SCHEDULES*

Sec. 11.96.010. Speed limits.
Sec. 11.96.020. One-way streets.
Sec. 11.96.030. Stop intersections.
Sec. 11.96.050. Parking zones-regulated.
Sec. 11.96.060. Trucks.
Sec. 11.96.070. Controlled-access facilities.
Sec. 11.96.080. Frontage roads.
Sec. 11.96.090. Traffic direction change.
Sec. 11.96.100. Arterial street designation.
Sec. 11.96.120. Main trafficway designation.

Sec. 11.96.010. Speed limits.

In accordance with the provisions of Section 11.24.040 of this Code, and when signs are erected giving notice thereof, the maximum speed limits, except as provided for in Section 11.20.150, should be as set forth in this schedule upon those streets or portions thereof, or areas of street system and at the time specified herein. The maximum speed limit on other streets or segments thereof other than those listed below is thirty miles per hour and no signage is required for enforcement.

Except as listed below, no residential speed limit may be lower than thirty miles per hour. The speed limit of on- and off-ramps to access-controlled highways is the speed limit of the highway until otherwise posted by a regulatory sign or by crossing or merging onto any public street. Speed bumps or humps shall not be installed on residential streets.

Name of Street and Portion Affected	Maximum Speed Limit (Miles Per Hour)
School, Playground, and Safety Zones As provided in Section 11.20.150 or as otherwise posted by the City Traffic Engineer	
Airport Road:	
From Kellogg Avenue to Harry Street	40
Amidon Avenue:	
From Thirty-third Street North to the south abutment of the Amidon Bridge over the Arkansas River	40
Arkansas Avenue:	
1. From Twenty-ninth Street North to Forty-sixth Street North	35
2. From Forty-sixth Street North to the north City limits	40
Armour Drive:	
From Kellogg Avenue to Lincoln Street	35
Broadway Avenue:	
1. From the north City limits to Twenty-first Street North	40
2. From Pawnee Avenue to Patterson Avenue	35
3. From Patterson Avenue to Forty-seventh Street South	40
4. From Forty-seventh Street South to the south City limits	45
Central Avenue:	
1. From the east City Limits to Greenwich Road	40
2. From Greenwich Road to Webb Road (within City limits)	35
3. From Webb Road to Oliver Avenue	40

*__Note—__Ordinance history; Ord. No. 29-319 §§ 116, 117, 119—123; Ord. No. 30-358 §§ 1—4.

Name of Street and Portion Affected	Maximum Speed Limit (Miles Per Hour)
4. From Oliver Avenue to Washington Street	35
5. From McLean Boulevard to the west City limits	40
Cider Street:	
1. From Minnesota Avenue to Seventy First Street South	40
Douglas Avenue:	
1. From Webb Road to the Eastborough City limits	40
2. From Edgemoor Drive to Hillside Avenue	35
3. From Seneca Street to West Street	35
Edwards Avenue:	
From McCormick Avenue to Maple Street	35
Eisenhower Airport Parkway:	
1. From University Avenue to Kellogg Drive (south)	40
2. From Kellogg Drive (south) to south City limits	45
Fifty-fifth Street South:	
From Hydraulic Avenue to the west City limits	40
Fifty-third Street North:	
From the west City limits to the east City limits	40
Forty-fifth Street North:	
1. From Webb Road to the west City limits	40
2. From the East City limits to Webb Road	55
Forty-seventh Street South:	
From the east City limits to the west City limits	40
Forty-third Street North:	
From Webb Road to Lindberg Street	40
George Washington Boulevard:	
From Lincoln Street to Thirty-first Street South	40
Greenwich Road:	
From the north City limits to the south City limits	40
Grove Street:	
1. From Central Avenue to Kellogg Street	35
2. From Kellogg Street to Lincoln Street	40
3. From Sixty-third Street South to Cider Street	40
Harry Street:	
1. One-Hundred Fifty-ninth Street East to East Hydraulic Avenue	40
2. From Hydraulic Avenue to Southeast Boulevard	35
3. From Southwest Boulevard to West Street	40
4. From Airport Road to Woodchuck	40
Hillside Avenue:	
1. From the north City limits to Thirty-seventh Street North	45
2. From Thirty-seventh Street North to Twenty-seventh Street North	40
3. From Twenty-seventh Street North to Ninth Street North	35
4. From Central Avenue to Thirty-first Street South	35
Hoover Road:	
1. From the north City limits to Forty-fifth Street North	55
2. From Forty-fifth Street North to Twenty-nineth Street North	45
3. Twenty-nineth Street north to Twenty-first Street North	35

Name of Street and Portion Affected	Maximum Speed Limit (Miles Per Hour)
4. From Pueblo Drive to the south City limits	45
Hydraulic Avenue:	
1. From I-135 northbound on-off ramps to the north City limits	40
2. From Osie Street to Thirty-first Street South	35
3. From Thirty-first Street South to the south City limits	40
State Highway K-96:	
From the east City limits to 1/2 mile west of Hillside Avenue	65
From ½ mile west of Hillside Avenue to I-135	55
Kellogg Drive:	
1. From the east City limits to Oliver Avenue	40
2. From Hoover Road to Eisenhower Airport Parkway	35
3. From Eisenhower Airport Parkway to the west City limits	40
Learjet Way:	
From Eisenhower Airport Parkway to 2000' west of Eisenhower Airport Parkway	40
Lincoln Street:	
1. From Rock Road to Grove Street	35
2. From Grove Street to Hydraulic Avenue	40
3. From Hydraulic Avenue to Washington Street	35
4. From McLean Boulevard to Osage Street	35
Lindberg Street:	
From Thirty-seventh Street North to Forty-third Street North	40
MacArthur Road:	
From the west City limits to the Big Arkansas River	40
Maize Road:	
1. From the north City limits to Pawnee Avenue	40
2. From Pawnee Avenue to State Highway K-42	45
3. From State Highway K-42 to the south City limits	40
Maple Street:	
1. From Seneca Street to Sheridan Avenue	35
2. From Sheridan Avenue to One-Hundred Fifty First Street West	40
3. From One-Hundred Fifty First Street West to the west City Limits	45
McCormick Avenue:	
From Osage Street to West Street	35
McLean Boulevard:	
1. From the south abutment of the Amidon Bridge over the Arkansas River to Seneca Street	40
2. From Seneca Street to Douglas Avenue	35
3. From Maple Street to Taft Avenue	35
4. From Taft Avenue to Thirtieth Street South	40
Meridian Avenue:	
1. From the north City limits to Womer Street	45
2. From University Avenue (extended) to May Avenue	35
3. From May Avenue to the south City limits	40
Mosley Avenue:	
From Murdock Avenue to Twenty-first Street North	35

Name of Street and Portion Affected	Maximum Speed Limit (Miles Per Hour)
Mt. Vernon Road:	
1. From Woodlawn Avenue to Grove Street	35
2. From Grove Street to Hydraulic Avenue	40
3. From Hydraulic Avenue To Southeast Boulevard	35
Murdock Avenue:	
From Waco Avenue to Nims Avenue (Riverside Central Park)	20
Norman Avenue:	
From K-42 to MacArthur Road	35
Ninth Street North:	
From Grove Street to southbound ramps of I-135	35
Oak Knoll Street:	
From Rock Road to Pawnee Avenue	40
Ohio Avenue:	
From Thirty-seventh Street North to Twenty-sixth Street North	35
Oliver Avenue:	
1. From the north City limits to Seventeenth Street	40
2. From Seventeenth Street to Kinkaid Street	35
3. From Kinkaid Street to the south City limits	40
One-hundred Nineteenth Street West:	
From the north City limits to south City limits	40
One-hundred Twenty-seventh Street East:	
From the north City limits to the south City limits	40
One-hundred Thirty-fifth Street West:	
From the north City limits to the south City limits	40
One-hundred Fifty-first Street West:	
From the north City limits to the south City limits	40
Opportunity Drive:	
From Jardine to Twenty-first Street North (Boys and Girls Club)	20
Orient Boulevard:	
From Seneca Street to Meridian Avenue	35
Pawnee Avenue:	
1. From Maize Road to west City Limits	40
2. From West Street to Seneca Street	40
3. From Seneca Street to Hillside Avenue	35
4. From Hillside Avenue to the east City limits	40
Pueblo Drive:	
From Hoover Road to Airport Road	40
Ridge Road:	
1. From the north City limits to University Avenue	40
2. From K-42 to the south City limits	55
Rock Road:	
1. From the north City limits to Thirty-seventh Street North	35
2. From Thirty-seventh Street North to Pawnee Avenue	40
3. From Pawnee Avenue to the south City limits	45
Seneca Street:	
1. From Maple Street to Kellogg Street	35

Name of Street and Portion Affected	Maximum Speed Limit (Miles Per Hour)
2. From Kellogg Street to the south City limits	40
Seventeenth Street North:	
From Oliver Avenue to Grove Avenue	35
Seventy-first Street South:	
From the east City limits to Cider Street	40
Sixty-first Street North:	
From the east City limits to the west City limits	40
Southeast Boulevard (K-15):	
1. From the southeast City limits to Pawnee Avenue	50
2. From Pawnee Avenue to Zimmerly Street (extended)	45
Southwest Boulevard (K-42):	
1. From Kellogg (U.S. 54) to McCormick Avenue	35
2. From McCormick Avenue to the west City limits	50
Taft Avenue:	
From Eisenhower Airport Parkway to Julia Street	40
Thirteenth Street North:	
1. From the east City limits to Governeour Road	40
2. From Governeour Road to Mosley Avenue	35
3. From North River Boulevard to Zoo Boulevard	35
4. From Windmill Road to North Shore Boulevard	45
5. From North Shore Boulevard to the west City limits	40
Thirty-first Street South:	
1. From Oliver Avenue to K-15	40
2. From Broadway Avenue to West Street	35
Thirty-seventh Street North:	
1. From the east City limits to Woodlawn Avenue	40
2. From Oliver Avenue to a point 725 feet east of St. Francis	40
3. From a point 725 feet east of St. Francis to Broadway Avenue	35
4. From Broadway Avenue to Amidon Avenue	40
5. From Amidon Avenue to Womer Drive	35
6. From ½ mile west of Hoover Road to the west City limits	40
Thirty-ninth Street North:	
From Toben Street to Webb Road	40
Toben Street:	
From Thirty-ninth Street North to Thirty-seventh Street North	40
Towne East Drive Parkway:	
From Douglas Avenue to Kellogg Drive	35
Turnpike Drive:	
From Thirty-first Street South to the south City limits	35
Twenty-first Street North:	
1. From the east City limits to Hillside Avenue	40
2. From Hillside Avenue to Broadway Avenue	35
3. From Arkansas Avenue to Amidon Avenue	35
4. From Amidon Avenue to West Street	40
5. From West Street to the west City limits	40

Name of Street and Portion Affected	Maximum Speed Limit (Miles Per Hour)
Twenty-fifth Street North:	
From I-235 to Arkansas Avenue	35
Twenty-ninth Street North:	
1. From Webb Road to Oliver Avenue	40
2. From Hydraulic Avenue to Broadway Avenue	40
3. From Broadway Avenue to Amidon Avenue	35
4. From I-235 to the west City limits	40
Tyler Road:	
1. From the north City limits to Harry Street	40
2. From Harry Street to the south City limits	50
U.S. 54 (Kellogg):	
From the east City limits to the west City Limits	60
Washington Avenue:	
From Gilbert Street to Southeast Boulevard	35
Webb Road:	
1. From the north City limits to ½ mile south of Forty Fifth Street North	45
2. ½ mile south of Forty Fifth Street North to the south City limits	40
Westdale Drive:	
From Zoo Boulevard to West Street	40
West Street:	
1. From the north City limits to Twenty-first Street North	45
2. From Twenty-first Street North to the south City limits	40
Womer Drive:	
From Thirty-third Street North to Meridian Avenue	45
Woodlawn Avenue:	
1. From the north City limits to Thirteenth Street North	40
2. From Thirteenth Street North to the south City limits	35
Yosemite Drive:	
From Tyler Road to 400' east of Glacier Drive	40
Zoo Boulevard:	
From the north City limits to Central Avenue	40

Interstate System	Min.	Max.
I-135: From the north City limits to the south City limits	40	60
I-235: From the north City limits to the south City limits	40	65

(Ord. No. 41-178 § 1; Ord. No. 46-995, § 1, 3-28-06; Ord. No. 48-825, § 1, 9-21-10; Ord. No. 2012-287, § 1, 6-19-12; Ord. No. 50-896, § 8, 11-27-18; Ord. No. 51-370, § 1, 11-24-20; Ord. No. 52-282, § 1, 11-21-23; Ord. No. 52-587, § 1, 12-17-24)

Sec. 11.96.020. One-way streets.

(a) STREETS. In accordance with Section 11.32.010 of this code, and when properly posted, traffic shall move only in the direction indicated upon the following streets or portions of streets:

ATHENIAN STREET, WEST—on that portion between the south line of Second Street to the north line of Douglas Avenue, north to south;

ATHENIAN STREET, EAST—on that portion between the north line of Douglas Avenue to the south line of Second Street, south to north;

AVENUE A—on that portion lying between the west line of Waco Avenue and the east line of Rochester Avenue, east to west;

AVENUE C—on that portion lying between the east line of Rochester Avenue and the west line of Waco Avenue, west to east;

CENTURY II DRIVE—on that portion lying between the west line of Main Street and the south line of Douglas Avenue, east to north;

EMPORIA AVENUE—on that portion lying between the north line of Pawnee Avenue to the south side of Dewey Street, south to north;

EMPORIA AVENUE—on that portion lying between the north side of Tenth Street to the south side of Seventeenth Street, south to north;

FIRST STREET—on that portion lying between the west line of Edgemoor Street and the centerline of Wichita Street, west to east;

FOURTEENTH STREET—on the portion lying between the east line of Rochester Avenue and the west line of Waco Avenue, west to east;

GOVERNEOUR ROAD, WEST—on that portion between the north line of Orme Street to the north line of Castle Drive, north to south;

GOVERNEOUR ROAD, EAST—on that portion between the north line of Castle Drive to the north line of Orme Street, south to north;

JARDINE DRIVE, WEST—on that portion of Jardine Drive, west, lying between the south line of Twenty-third Street extended to the north line of Twenty-first Street, north to south;

JARDINE DRIVE, EAST—on that portion of Jardine Drive, east, lying between the north line of Twenty-first Street to the south line of Twenty-third Street, south to north;

JARDINE DRIVE—on that portion between the south line of Twenty-third Street to the south line of Twenty-fourth Street, north to south;

KELLOGG DRIVE, NORTH—between Washington Avenue and Laura, east to west;

KELLOGG DRIVE, SOUTH—between Washington Avenue and Laura, west to east;

MAIN STREET—on that portion of Main Street lying between the south line of Thirteenth Street and the north line of Murdock Avenue, north to south;

MAIN STREET—on that portion of Main Street lying between the south line of Kellogg Drive South and the north line of Pawnee, north to south;

MARKET STREET—on that portion lying between the north line of Pawnee Avenue and the south line of Kellogg Drive South, south to north;

MARKET STREET—on that portion lying between the north line of Murdock Avenue and the south line of Twentieth Street, south to north;

PARK PLACE—on that portion lying between the south line of Twentieth Street and the south line of Thirteenth Street, north to south;

ST. FRANCIS AVENUE—on that portion lying between the south line of Seventeenth Street and the north line of Tenth Street, north to south;

ST. FRANCIS AVENUE—on that portion lying between the south line of Lincoln Street and the north line of Pawnee Street, north to south;

SECOND STREET—on that portion lying between the west line of Edgemoor Drive to the centerline of Wichita Street, east to west;

TOPEKA AVENUE—on that portion lying between the north line of Pawnee Avenue and Kellogg Drive South, north to south;

TOPEKA AVENUE—on that portion lying between the north line of Tenth Street and the south line of Seventeenth Street, north to south;

WATER STREET—on that portion lying between the north line of Douglas to the east line of Wichita Street, north to south;

WICHITA STREET—on that portion lying between the north line of Second Street and to the south line of Third Street, south to north;

(b) ALLEYS. In accordance with Section 11.32.010 of this code, and when properly signed, traffic shall move only in the direction indicated upon the following alleys and portions of alleys:

NORTH-SOUTH ALLEY FROM FIRST STREET TO SECOND STREET, lying between Water Street and Main Street, north to south;

NORTH-SOUTH ALLEY FROM DOUGLAS AVENUE TO THIRD STREET, lying between Market Street and Broadway Avenue north to south;

NORTH-SOUTH ALLEY FROM FIRST STREET TO THIRD STREET, lying between Broadway Avenue and Topeka Avenue, north to south;

NORTH-SOUTH ALLEY FROM FIRST STREET TO SECOND STREET, lying between New York and Pennsylvania Avenue, south to north;

NORTH-SOUTH ALLEY FROM FIRST STREET TO SECOND STREET, lying between Topeka Avenue and Emporia Avenue, north to south;

NORTH-SOUTH ALLEY FROM FIRST EAST-WEST ALLEY NORTH OF DOUGLAS AVENUE TO SECOND STREET, lying between Emporia Avenue and St. Francis Avenue, north to south;

EAST-WEST ALLEY FROM MARKET STREET TO BROADWAY AVENUE AND THE EAST-WEST ALLEY FROM TOPEKA AVENUE TO THE FIRST NORTHSOUTH ALLEY EAST OF ST. FRANCIS AVENUE, lying between Douglas Avenue and First Street, west to east;

EAST-WEST ALLEY FROM MAIN STREET TO MARKET STREET, lying between Douglas Avenue and First Street, east to west;

NORTH-SOUTH ALLEY FROM FIRST EAST-WEST ALLEY NORTH OF DOUGLAS AVENUE TO THIRD STREET, lying between Main Street and Market Street, north to south;

EAST-WEST ALLEY FROM ST. CLAIR AVENUE TO ATHENIAN AVENUE, lying between First Street and Second Street, west to east;

NORTH-SOUTH ALLEY FROM LEWIS STREET TO ENGLISH STREET, lying between main Street and Market Street, south to north;

NORTH-SOUTH ALLEY FROM WILLIAM STREET TO FIRST EAST-WEST ALLEY SOUTH OF DOUGLAS AVENUE, lying between Main Street and Market Street, north to south;

NORTH-SOUTH ALLEY FROM LEWIS STREET TO WILLIAM STREET, lying between Market Street and Broadway Avenue, north to south;

NORTH-SOUTH ALLEY FROM LEWIS STREET TO WATERMAN STREET, lying between Broadway Avenue and Topeka Avenue, north to south;

NORTH-SOUTH ALLEY FROM FIRST EAST-WEST ALLEY NORTH OF WATERMAN STREET TO ENGLISH STREET, lying between Broadway Avenue and Topeka Avenue, south to north;

NORTH-SOUTH ALLEY FROM WILLIAM STREET TO FIRST EAST-WEST ALLEY SOUTH OF DOUGLAS AVENUE, lying between Broadway Avenue and Topeka Avenue, south to north

NORTH-SOUTH ALLEY FROM LEWIS STREET TO FIRST EAST-WEST ALLEY SOUTH OF DOUGLAS AVENUE, lying between Topeka Avenue and Emporia Avenue, north to south;

NORTH-SOUTH ALLEY FROM TWENTY-FIRST STREET TO TWENTY-SECOND STREET, lying between Market Street and Park Place, south to north;

NORTH-SOUTH ALLEY FROM WILLIAM STREET TO FIRST EAST-WEST ALLEY SOUTH OF DOUGLAS AVENUE, lying between Emporia Avenue and St. Francis Avenue, south to north;

EAST-WEST ALLEY FROM MAIN STREET TO MARKET STREET, lying between William Street and Douglas Avenue, east to west;

EAST-WEST ALLEY FROM 100 FEET WEST OF BROADWAY TO FIRST NORTH-SOUTH ALLEY EAST OF BROADWAY, lying between William Street and Douglas Avenue, west to east;

EAST-WEST ALLEY FROM TOPEKA STREET TO EMPORIA AVENUE, lying between William Street and Douglas Avenue, east to west.
(Ord. No. 39-108 § 2; Ord. No. 52-587, § 2, 12-17-24)

Sec. 11.96.030. Stop intersections.

In accordance with the provisions of Section 11.36.010 and when signs are erected giving notice thereof, drivers of vehicles shall stop at every intersection before entering any of the following streets or portions of streets:

Airport Road, from Kellogg to Harry Street;

Amidon Avenue, from Seventeenth Street to Thirty-third Street North;

Anna, from Maple Avenue to Ninth Street;

Arkansas Avenue, from the north city limits to Fifteenth Street;

Armour Street, from Central Avenue to Thirteenth Street;

Bennett Avenue, from Pawnee Avenue to Twenty-seventh Street South;

Bitting Avenue, from Thirteenth Street to Nims Avenue,

Bluff Street, from Kellogg Avenue to Lincoln Street;

Bluffview Drive, from Lincoln Street to Harry Street;

Broadview Avenue, from Kellogg to Lincoln Street, and from Thirteenth Street to Shocker Drive;

Broadway Avenue, from the north city limits to the south city limits;

Central Avenue, from Seneca Avenue to the east city limits;

Central Avenue, from McLean Boulevard to the west city limits;

Cleveland Avenue, from Thirteenth Street to Douglas Avenue;

Clifton Avenue, from Thirty-first Street South to the south city limits, from Kellogg Avenue to Central Avenue and from Morris Street to Mt. Vernon Road;

Coolidge Avenue from Thirteenth Street to Franklin Avenue;

Douglas Avenue, from Hoover to Webb Road;

Edgemoor Drive, from Thirteenth Street to Mt. Vernon Road;

Edwards Avenue, from Second Street to Southwest Boulevard (K-42);

Eighteenth Street, from Litchfield to Market Street;

Elder, from Central Avenue to Maple Street;

Eleventh Street, from Forest Avenue to Main Street and from St. Francis Avenue to Hillside Avenue;

Emporia Avenue to Pawnee Avenue to Seventeenth Street;

Estelle Avenue, from Twenty-first Street to Twenty-seventh Street North;

Fairmount Avenue, from Thirteenth Street to Seventeenth Street;

Fifteenth Street, from McLean Boulevard to West Street and from Garland Avenue to Woodland Avenue;

Fifty-fifth Street South, from the west city limits to Hydraulic Avenue;

First Street, from McLean Boulevard to Edgemoor Drive;

Fountain Avenue, from Shocker Drive to Seventeenth Street;

Forty-seventh Street South from the east city limits to the west city limits;

Franklin Avenue, from Perry Avenue to Nans Avenue;

Funston Street, from Oliver Street to Edgemoor Avenue;

Garland Avenue, from Twentieth Street to Thirteenth Street;

George Washington Boulevard, from Kellogg Street to Thirty-first Street South;

Glenn Avenue, from Pawnee Avenue to Twenty-seventh Street South;

Governeour Road, from Kellogg Street to Harry Street;

Governeour Road, from Thirteenth Street to Fairview Lane;

Greenway Boulevard, from Harry Street to Pawnee Avenue;

Greenwich Road, from south city limits to north city limits;

Grove Street, from Twenty-seventh Street North to Lincoln Street, and from Harry Street to Pawnee Avenue;

Halstead, from Sweetbriar Lane to Twenty-ninth Street North,

Harry Street, from Orient Boulevard to the east city limits, and from West Street to Orient Boulevard;

Harvest Lane, from Chipper Lane to Thirteenth Street;

High Street, from Thirteenth Street to Eighteenth Street;

Hillside Avenue, from the north city limits to Thirty-first Street South;

Holyoke Avenue, from Thirteenth Street to Seventeenth Street;

Hoover, from Kellogg to the south city limits;

Hydraulic Avenue from south city limits to Murdock;

Hydraulic Avenue from Ninth Street to Twentieth Street;

Hydraulic Avenue from Twenty-ninth Street North to north city limits;

Kellogg Street from the west city limits to the east city limits;

Lewis Street, from McLean Boulevard to St. Francis Avenue;

Lewis Street, from Washington to Hydraulic Avenue;

Lincoln Street, from Osage Avenue to Rock Road;

MacArthur Road, from the east city limits to the west city limits;

Main Street, from Pawnee Avenue to Thirteenth Street;

Maize Road, from north city limits to south city limits;

Maple Street, from the west city limits to McLean Boulevard;

Market Street, from Twenty-ninth Street North to Pawnee Avenue,

May Avenue, from Seneca Avenue to Meridian Avenue;

McCormick Avenue, from West Street to Osage Avenue;

McLean Boulevard, from Seventeenth Street extended to Thirty-first Street South;

Meridian Avenue, from the south city limits to Central Avenue, from McLean Boulevard to Sixteenth Street and from I-235 to the north city limits;

Minnesota, from Seventeenth Street to Twenty-first Street;

Morris Avenue, from Oliver Street to Hillside Avenue;

Mosley Avenue, from Twenty-first Street to Murdock Avenue;

Mt. Vernon Road. from Greenway Boulevard to Woodlawn Avenue;

Murdock Avenue, from Amidon Avenue to Litchfield Avenue, from Waco Avenue to Cleveland Avenue, and from Oliver Street to Edgemoor Drive;

Nims Avenue, from Bitting Avenue to Central Avenue;

Ninth Street, from Terrace Drive to east city limits, from West Street to McLean Boulevard and from Cleveland Avenue to Hillside Avenue;

North River Boulevard, from West River Boulevard to Thirteenth Street;

Oliver Street, from the north city limits to the south city limits;

Orient Boulevard, from Seneca Avenue to Meridian Avenue;

Palisade Avenue, from Harry Street to Greenway Boulevard;

Park Place from Thirteenth Street to Twenty-first Street;

Pattie Avenue, from Douglas Avenue to Harry Street and from Pawnee Avenue to Galena Avenue;

Pawnee Avenue, from West Street to the east city limits;

Perry Street, from Thirteenth Street to Porter Street;

Pinecrest Street, from Kellogg Street to Harry Street;

Porter Street, from Perry Street to Twentieth Street;

Ridge Road, from University Avenue to the north city limits;

Ridgewood Drive, from Mt. Vernon Road to Pawnee Avenue;

Rock Road, from the north city limits to the south city limits;

Ross Parkway, from Hillside Avenue to George Washington Boulevard;

Rutan Avenue, from Douglas Avenue to Murdock Avenue;

St. Francis Avenue, from Seventeenth Street to Pawnee Avenue;

St. Paul Avenue, from McLean Boulevard to Second Street;

Schweiter Drive, from Lincoln Street to Wilma Street;

Second Street, from Hoover to McLean Boulevard;

Second Street, from Waco to Patton;

Seneca Avenue, from Central Avenue to the south city limits;

Seventeenth Street from Arkansas Avenue to Oliver Street;

Shocker Drive, from Broadway Avenue to Fountain Avenue;

Southeast Boulevard (K-15), from Washington Avenue to the south city limits;

Southwest Boulevard (K-42), from Kellogg Avenue (U.S. 54) to the west city limits;

Sycamore, from Dayton Street to Second Street;

Taft Street, from West Street to Sheridan Street;

Terrace Drive, from Thirteenth Street to Central Avenue;

Thirteenth Street, from the east city limits to the west city limits;

Thirty-first Street South, from Broadway Avenue to the west city limits, and from Southeast Boulevard to the east city limits;

Thirty-seventh Street North, from Womer to the east city limits;

Thirty-third Street North, from Arkansas Avenue to Broadway Avenue;

Topeka Avenue, from Twenty-first Street to Pawnee Avenue;

Twentieth Street from Woodrow to Woodland Avenue;

Twenty-fifth Street North from Arkansas Avenue to Interstate 235 Interchange;

Twenty-first Street, from the west city limits to the east city limits;

Twenty-ninth Street North, from the west city limits to Hydraulic Avenue;

Twenty-seventh Street South, from Magnolia Street to Custer Avenue;

Tyler Road, from north city limits to south city limits;

University Avenue, from Seneca Avenue to Hiram Avenue;

Vassar Avenue, from Thirteenth Street to Seventeenth Street;

Vine Street, from McCormick Street to McLean Boulevard;

Waco Avenue, from Twenty-first Street to Douglas Avenue;

Walker Street, from Seneca Avenue to Meridian Avenue;

Washington Avenue, from Murdock Avenue to Galena Street;

Wassall Street, from Washington Street to K-15 Highway;

Water Street, from Lewis Street to Pawnee Avenue;

Waterman Street, from Minnesota Avenue to Wichita Street;

Westlink Avenue, from Central Avenue to Thirteenth Street;

West Dale Drive from Zoo Boulevard to Twenty-first Street North;

West Street, from West Dale Drive to the south city limits;

West River Boulevard from Murdock Avenue to North River Boulevard;

Wilma Street, from Schweiter Drive to George Washington Drive;

Womer, from Thirty-third Street north to I-235;

Woodland Avenue, from Twentieth Street to Thirteenth Street;

Woodlawn Avenue, from the north city limits to the south city limits;

Woodrow Avenue, from Thirteenth Street to Franklin Avenue;

Yale Avenue, from Central Avenue to Ninth Street.
(Ord. No. 39-108 § 3)

Sec. 11.96.050. Parking zones-regulated.

In accordance with the provisions of Section 11.68.010 of the Code, parking zones-regulated are established on the following streets, portions of streets or municipal parking lots No. 1 and 2:

BEACON LANE, south side from Market Street to the north-south alley between Market Street and Main Street;

BROADWAY AVENUE, both sides from Central Avenue to First Street;

BROADWAY AVENUE, west side from First Street to Douglas Avenue;

BROADWAY AVENUE, west side from William Street to English Street;

BROADWAY AVENUE, both sides from English Street to Lewis Street;

CIVIC CENTER PLACE, west side from Douglas to First Street;

DOUGLAS AVENUE, both sides from Main Street to Market Street;

DOUGLAS AVENUE, north side from the Big Arkansas River Bridge to Waco Street;

DOUGLAS AVENUE, both sides from Main Street to Market Street;

DOUGLAS AVENUE, north side from Broadway to Topeka Avenue;

DOUGLAS AVENUE, both sides from Topeka Avenue to Santa Fe;

ELM STREET, south side from Wichita Street to Water Street;

ELM STREET, north side from Water Street to Main Street;

ELM STREET, both sides from Main Street to Market Street;

EMPORIA AVENUE, both sides from Lewis Street to Central Avenue;

ENGLISH STREET, north side from Water Street to Main Street;

ENGLISH STREET, both sides from Main Street to St. Francis Avenue;

FIRST STREET, north side from Water Street to the railroad tracks;

FIRST STREET, both sides from Water Street to Main Street;

FIRST STREET, north side from Main Street to the north-south alley east of Emporia;

MAIN STREET, both sides from Elm Street to Murdock Street;

MAIN STREET, east side from Douglas Avenue to William Street;

MAIN STREET, both sides from William Street to Lewis Street;

MARKET STREET, both sides from First Street to Pine Street;

MARKET STREET, west side from Douglas Avenue to First Street;

MARKET STREET, both sides from English Street to Lewis Street;

ST. FRANCIS AVENUE, both sides from William Street to Third Street;

ST. FRANCIS AVENUE, west side from William Street to English Street;

SECOND STREET, north side from Main Street to St. Francis Avenue;

THIRD STREET, both sides from Waco Street to Emporia Avenue;

TOPEKA AVENUE, both sides from Lewis Street to Central Avenue;

WACO AVENUE, both sides from Douglas Avenue to Second Street;

WATER STREET, both sides from Elm Street to Pine Street;

WATER STREET, both sides from Douglas Avenue to Second Street;

WATER STREET, west side from Waterman Street to Lewis Street;

WATERMAN STREET, south side from Wichita Street to Main Street;

WATERMAN STREET, both sides from Main Street to St. Francis Avenue;

WICHITA STREET, west side from Central Avenue to Elm Street;

WILLIAM STREET, both sides from Main Street to Market Street;

WILLIAM STREET, south side from Market Street to Broadway Avenue;

WILLIAM STREET, both sides from Broadway Avenue to St. Francis Street;

MUNICIPAL PARKING LOT NO. 1, bounded on the north by Douglas Avenue, on the east by Main Street, on the south by Waterman Street, and on the west by the east bank of the Big Arkansas River;

MUNICIPAL PARKING LOT NO. 2, the portion of the surface lot at City Hall bounded on the north by City Hall, on the east by Main Street, on the south by Third Street, in which metered parking spaces are located.

(Ord. No. 43-196 § 5; Ord. No. 52-326, § 28, 1-9-24)

Editor's note—Ord. No. 52-326, § 28, adopted Jan. 9, 2024, amended the title of § 11.96.050 to read as herein set out. The former § 11.96.050 title pertained to parking meter zones.

Sec. 11.96.060. Trucks.

In accordance with the provisions of Section 11.40.010, and when signs are erected giving notice thereof, it is unlawful for any person to operate any truck upon the streets or parts of streets described below:

ANNA STREET, 600 feet south of Esthner Street to Pawnee Avenue;

BLECKLEY DRIVE, Central Avenue to Kellogg Street;

FIRST STREET, Grove Street to Edgemoor Street;

SECOND STREET, Grove Street to Edgemoor Street;

HOOVER AVENUE, Central Avenue to Thirteenth Street;

HYACINTH LANE, Twenty-first Street to Twenty-fifth Street;

LINCOLN STREET, Greenwich Road to One Hundred Twenty-seventh Street;

MARKET STREET, Tenth Street to Twenty-fourth Street;

McLEAN BOULEVARD, Central Avenue to Thirteenth Street;

MAIN STREET, Tenth Street to Thirteenth Street;

PARK PLACE, Thirteenth Street to Twenty-first Street;

PAWNEE AVENUE, Anna Street to Southwest Drive;

TOPEKA AVENUE, Tenth Street to Twenty-first Street;

EMPORIA STREET, Tenth Street to Twenty-first Street;

ST. FRANCIS STREET, Tenth Street to Seventeenth Street;

NIMS AVENUE, Central Avenue to Murdock Avenue;

NORTH RIVER BOULEVARD, Briggs Avenue to Thirteenth Street;

THIRTEENTH STREET, Hoover Road to Zoo Boulevard;

WEST RIVER BOULEVARD, Wiley Avenue to Briggs Avenue;

WEST CRAWFORD AVENUE, Custer Avenue to Meridian Avenue;

WEST HADDAN AVENUE, Custer Avenue to Meridian Avenue;

WEST SAVANNAH AVENUE, Custer Avenue to Meridian Avenue;

WEST MAXWELL AVENUE, Custer Avenue to Meridian Avenue;

SAINT PAUL AVENUE, W. 27th Street S. to Pawnee Avenue;

RICHMOND AVENUE, W. 27th Street S. to Pawnee Avenue;

WEST DALLAS STREET, S. St. Paul Street to S. Meridian Avenue; and

WEST ANITA STREET, S. St. Paul Street to S. Meridian Avenue.
(Ord. No. 39-108 § 5; Ord. No. 51-169, § 1, 1-14-20; Ord. No. 51-945, § 1, 9-20-22; Ord. No. 52-587, § 3, 12-17-24)

Sec. 11.96.070. Controlled-access facilities.

In accordance with the provisions of Section 11.84.010 of this code, the following streets or parts of streets are established as controlled-access facilities:

Interstate Route 235 from the south city limits to the north city limits;

Interstate Route 135 from the south city limits to the north city limits;

West Kellogg (U.S. Highway 54) from Main Street to the west city limits;

Southeast Boulevard (K-15) from Hydraulic Avenue to the south city limits;

Southwest Boulevard (K-42) from West Kellogg (U.S. 54) to the west city limits;

East Kellogg (U.S. 54) from Topeka Avenue to Roosevelt Avenue.
(Ord. No. 39-108 § 6)

Sec. 11.96.080. Frontage roads.

In accordance with the provisions of Section 11.84.020 of this code, the following streets or parts of streets are established as frontage roads:

(a) U.S. Highway 54 (Kellogg Avenue);

(1) From the west city limits (both sides) to the west line of the Wichita-Valley Center Flood Control Project;

(2) From the east line of Interstate 235 right-of-way (north side) to West Street;

(3) From the west line of Topeka Avenue (south side) to the north-south alley one-half block west of Topeka Avenue;

(4) From the east line of Edgemoor Street (south side) to the right bank of Gypsum Creek.

(5) From the west line of Ridgecrest Drive (north side) to the west line of Woodlawn Avenue;

(6) From the west line of Lakeside Drive (north side) to the right bank of Gypsum Creek,

(7) From the west side of Greenwich Road to a point approximately 2,000 feet west (south side);

(8) From a point approximately 2,000 feet east of Greenwich Road to a point approximately 1,000 feet west of the Kansas Turnpike crossing underneath U.S. Highway 54 (south side);

(9) From the east line of Greenwich Road to a point approximately 1,000 feet

west of the Kansas Turnpike crossing underneath U.S. Highway 54 (north side).

(b) George Washington Boulevard;

(1) From the south line of Bayley Avenue (both sides) to the north line of Harry Street;

(2) From the south line of Harry Street (west side) to the west line of Hillside Avenue;

(3) From the south line of Skinner Street (east side) to a point approximately 300 feet southeast of Hillside Avenue;

(4) From the north line of Clark Street to the south line of Kinkaid Avenue (west side);

(5) From the north line of Pawnee Avenue north to a point approximately 200 feet north of Elmwood Street (east side);

(6) From the north line of Pawnee Avenue to a point approximately 300 feet north of Pawnee Avenue (west side).

(c) West Central Avenue from the center line of Westlink Avenue (north side) to the west line of Caddy Lane.

(d) 47th Street South:

(1) From the east line of Seneca Street (north side) to a point approximately 200 feet east of LaClede Avenue.

(e) North Broadway from a point approximately 125 feet south of I-235 right-of-way to a point approximately 225 feet south of I-235 right-of-way (west side).

(f) Southwest Boulevard (K-42), (west side) from Harry Street to Young Street.

(Ord. No. 39-108 § 7)

Sec. 11.96.090. Traffic direction change.

(a) The city traffic engineer is authorized to determine and designate streets, parts of streets or specific lanes thereon upon which vehicular traffic shall proceed in one direction during one period and the opposite direction during another period of the day and shall place and maintain appropriate markings, signs, barriers or other devices to give notice thereof. The city traffic engineer may erect signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the centerline of the roadway.

(b) It is unlawful for any person to operate any vehicle in violation of such markings, signs, barriers or other devices so placed in accordance with this section.

(Ord. No. 30-982 § 148)

Sec. 11.96.100. Arterial street designation.

The following streets within the city limits are designated arterial streets:

Amidon Avenue from the north line of Seventeenth Street extended to Thirty-third Street North;

Arkansas Avenue, from Twenty-First Street north to north city limits;

Broadway Avenue, from south city limits to north city limits;

Central Avenue, from west city limits to McLean Boulevard;

Central Avenue, from Seneca Street to east city limits;

Century II Drive from Douglas Avenue to Main Street;

Douglas Avenue, from West Street to Woodlawn Avenue;

Douglas Avenue, from east city limits of Eastborough to Webb Road;

Edgemoor Drive, from Mt. Vernon Road to Ninth Street;

Emporia Avenue, from Pawnee Avenue to Seventeenth Street North;

English Street, from Main Street to St. Francis Avenue;

Fifty-Fifth Street South, from west city limits to Hydraulic Avenue;

First Street, from McLean Boulevard to Grove Street;

Forty-Seventh Street South, from west city limits to east city limits;

George Washington Boulevard, from Lincoln Street to south city limits;

Greenwich Road, from north city limits to south city limits;

Grove Street, from Lincoln Street to Twenty-First Street North;

Harry Street, from Seneca Avenue to east city limits;

Hillside Avenue, from Thirty-First Street South to north city limits;

Hoover Street, from Southwest Boulevard (K-42) to south city limits;

Hydraulic Avenue, from south city limits to Central Avenue;

Interstate 135, from north city limits to Interstate 235;

Interstate 235, from north city limits to Kansas Turnpike Authority;

Kellogg Street (U.S. 54), from east city limits to west city limits;

Lewis Street, from McLean Boulevard to St. Francis Avenue;

Lincoln Street, from McLean Boulevard to Rock Road;

MacArthur Road, from west city limits to east city limits;

Main Street, from Pawnee Avenue to Thirteenth Street North;

Maize Road, all sections within city limits;

Maple Street, from McLean Boulevard to west city limits;

Market Street, from Pawnee Avenue to Twenty-First Street North;

McCormick Avenue, from McLean Boulevard to West Street;

McLean Boulevard, from Thirty-First Street to Arkansas River north of Fifteenth Street North;

Meridian Avenue, from south city limits to Central Avenue;

Meridian Avenue, from I-235 to the north city limits;

Mid-Continent Drive, from Harry Street to University Avenue;

Mosley Avenue, from Murdock Avenue to Twenty-First Street North;

Mt. Vernon Road, from Woodlawn Avenue to Broadway Avenue;

Murdock Avenue, from Waco Avenue to Cleveland Avenue;

Ninth Street, from Cleveland Avenue to Hillside Avenue;

Oliver Street, from south city limits to north city limits;

One Hundred Nineteenth Street West, all sections within city limits;

Park Place, from Thirteenth Street North to Twenty-First Street North;

Pawnee Avenue, from west city limits to Tyler Road;

Pawnee Avenue, from West Street to Kansas Turnpike Authority;

Pawnee Avenue, from Rock Road to east city limits;

Ridge Road, from University Avenue to north city limits;

Rock Road, all sections within city limits;

St. Francis Avenue, from Pawnee to Seventeenth Street North;

Second Street, from Seneca Street to Grove Street;

Seneca Street, from south city limits to Central Avenue;

Southeast Boulevard, from Washington Avenue to south city limits;

Southwest Boulevard (K-42), from west city limits to on-ramp westbound traffic U.S. Highway 54 (Kellogg Street);

Seventeenth Street North, from Waco Avenue to Oliver Street;

Thirteenth Street North, from west city limits to 1100 feet east of Ridge Road;

Thirteenth Street North, from Zoo Boulevard to east city limits;

Thirty-First Street South, from West Street to Broadway Avenue;

Thirty-First Street South, from Southeast Boulevard to Oliver Street;

Thirty-Seventh Street North, all sections within city limits;

Topeka Avenue, from Pawnee Avenue to Seventeenth Street North;

Twenty-Fifth Street North, from Interstate 235 to Arkansas Avenue;

Twenty-First Street North, from West Street to east city limits;

Twenty-Ninth Street North, from Amidon Avenue to Hydraulic Avenue;

Twenty-Ninth Street North, from Oliver Street to east city limits;

Tyler Road, from south city limits to north city limits;

Waco Avenue, from Douglas Avenue to Twenty-First Street North;

Washington Avenue, from Southeast Boulevard to Murdock Avenue;

Water Street, from Lewis Street to Waterman Street;

Water Street, from Douglas Avenue to Second Street;

Waterman Street, from Wichita Street to Hydraulic Avenue;

Webb Road, all sections within city limits;

West Street, from south city limits to Twenty-First Street North,

West Street, from K-96 Highway to north city limits;

Wichita Street, from First Street to Central Avenue;

William Street from Main Street to St. Francis Avenue;

Womer, from Thirty-Third Street North to I-235;

Woodlawn Avenue, from north city limits of Eastborough to north city limits;

Zoo Boulevard, from Central Avenue to north city limits.
(Ord. No. 39-108 § 8)

Sec. 11.96.120. Main trafficway designation.

The following streets within the city limits are designated main trafficways:

Amidon Avenue from the north line of Seventeenth Street extended to Thirty-third Street North;

Arkansas Avenue, from Twenty-first Street North to north city limits;

Broadway Avenue, from south city limits to Patterson Avenue;

Broadway Avenue, from Thirteenth Street to north city limits;

Central Avenue, from west city limits to McLean Boulevard;

Central Avenue, from Seneca Street to east city limits;

Douglas Avenue, from Edgemoor to Woodlawn Avenue;

Douglas Avenue, from east city limits of Eastborough to Webb Road;

Fifty-fifth Street South, from west city limits to Hydraulic Avenue;

Forty-seventh Street South, from west city limits to east city limits;

George Washington Boulevard, from Lincoln Street to south city limits;

Greenwich Road, from north city limits to south city limits;

Grove Street, from Lincoln Street to Elm Street;

Harry Street, from Seneca Avenue to east city limits;

Harry Street, from West Street to Meridian Avenue;

Hillside Avenue, from Thirty-first Street South to north city limits;

Hoover Street, from Southwest Boulevard (K-42) to south city limits;

Hydraulic Avenue, from Twenty-ninth Street North to north city limits;

Hydraulic Avenue, from south city limits to Harry Street;

Kellogg Street (U.S. 54), from east city limits to west city limits;

Lincoln Street, from Osage Street to Rock Road;

MacArthur Road, from west city limits to east city limits;

Maize Road, all sections within city limits;

Maple Street, from Seneca Street to west city limits;

McCormick Avenue, from Osage Street to West Street;

McLean Boulevard, from Thirty-first Street South to Arkansas River north of Fifteenth Street North;

Meridian Avenue, from south city limits to Maple Street;

Meridian Avenue, from Interstate 235 to the north city limits;

Mid-Continent Drive, from Harry Street to University Avenue;

Mosley Avenue, from Murdock to Twenty-first Street North;

Mt. Vernon Road, from Woodlawn Avenue to Southeast Boulevard (K-15);

Murdock Avenue, from Waco Avenue to Cleveland Avenue;

Oliver Street, from south city limits to north city limits;

One Hundred Nineteenth Street West, all sections within city limits;

One Hundred Twenty-seventh Street East, all sections within city limits;

Pawnee Avenue, from West Street to Kansas Turnpike Authority;

Pawnee Avenue, from Rock Road to east city limits;

Ridge Road, from University Avenue to north city limits;

Rock Road, all sections within city limits;

Seneca Street, from south city limits to Central Avenue;

Southeast Boulevard (K-15), from Washington Avenue to south city limits;

Southwest Boulevard (K-42), from west city limits to U.S. Highway 54 (Kellogg Street);

Seventeenth Street North, from Hillside Avenue to Oliver Street;

Thirteenth Street North, from west city limits to 1,100 feet east of Ridge Road;

Thirteenth Street North, from Zoo Boulevard to east city limits;

Thirty-first Street South, from West Street to Broadway Avenue;

Thirty-First Street South, from Southeast Boulevard (K-15) to Oliver Street;

Thirty-ninth Street North, from Toben to Webb Road;

Thirty-seventh Street North, all sections within city limits;

Toben, from Thirty-seventh Street North to Thirty-ninth Street North;

Twenty-fifth Street North, from Interstate 235 to Arkansas Avenue;

Twenty-first street North, from West Street to east city limits;

Twenty-ninth Street North, from Amidon Avenue to Hydraulic Avenue;

Twenty-ninth Street North, from Oliver Street to east city limits;

Tyler Road, from south city limits to north city limits;

Washington Avenue, from Southeast Boulevard (K-15) to First Street;

Washington Avenue, from Central Avenue to Murdock Avenue;

Webb Road, all sections within city limits;

West Street, from south city limits to Twenty-first Street North;

West Street, from K-96 Highway to north city limits;

Womer Drive, from Thirty-third Street North to Interstate 235;

Woodlawn Avenue, from north city limits of Eastborough to north city limits;

Woodlawn Avenue, from south city limits to Kellogg Street (U.S. 54);

Zoo Boulevard, from Central Avenue to north city limits.
(Ord. No. 41-755 § 1)

CHAPTER 11.97. TOWING AND IMPOUNDMENT

Sec. 11.97.010. Authority to tow or impound without notice to owner.
Sec. 11.97.020. Notice after impoundment.
Sec. 11.97.030. Release procedures.
Sec. 11.97.040. Hearing procedures.
Sec. 11.97.050. Impoundment procedures—Nuisance vehicles.
Sec. 11.97.055. Establishment of payment plan program for assistance with payment of impound fees.
Sec. 11.97.060. Contract for towing and storage.
Sec. 11.97.070. Responsibilities of the contractor for towing and storage services.

Sec. 11.97.010. Authority to tow or impound without notice to owner.

(a) The police department, and all members thereof are authorized to remove and/or tow away, or have removed and towed away by commercial or city owned towing service to an impound lot or other safe place designated by the city, without notice to the owner or lawful custodian of such vehicle, all vehicles found under the hereinafter enumerated circumstances:

(1) When any vehicle upon a street, highway, bridge, or in any tunnel, is so disabled or unattended so as to constitute an obstruction to traffic and the person or persons in charge of the vehicle cannot safely operate the vehicle or are unable to provide for its custody or removal to a lawfully secure location; or

(2) When any vehicle is parked illegally in such a manner as to constitute a hazard or obstruction to the safe movement of traffic; or

(3) When the operator of any vehicle is arrested and taken into custody by the police department and such vehicle would thereby be left unattended and create a hazard or obstruction to the safe movement of traffic; or

(4) When any vehicle is found being driven on the streets and is not in proper or safe condition to be driven and cannot be removed safely to a lawfully secured location by the owner or operator; or

(5) When the driver is injured in an accident and is unable to provide for its custody or removal; or

(6) When a vehicle is parked on a snow emergency route or is otherwise in violation of Chapter 11.39 of this Code entitled "Snow Emergency", and amendments thereof; or

(7) When a vehicle is illegally parked in any area also designated by signs as a tow zone and to which a uniform traffic citation has been affixed to said vehicle or presented to the owner or operator of said vehicle; or

(8) When any vehicle is reported or determined to be stolen and is recovered; or

(9) When any vehicle is subject to seizure as evidence in a criminal prosecution; or

(10) When any vehicle is subject to seizure or forfeiture under the laws of this state or federal law.

(b) A vehicle is declared to be a public nuisance and any police officer or other authorized city employee may remove and impound such vehicle under the following circumstances:

(1) Whenever any unoccupied vehicle is left parked continuously upon any street of the city for forty-eight hours or more, and under these circumstances, it shall be the duty of the chief of police or the chief's designee to cause such motor vehicle to be removed and impounded. The provisions of this section may not be defeated by a mere location change of any offending vehicle on the same side of the street within the same block;

(2) When any unoccupied vehicle is found parked in or upon any regularly designated parking meter space, or in or upon any street, sidewalk or alley in

violation of any of the provisions of this title or any other traffic ordinance of the city.

(3) Vehicles which are subject to being towed and impounded pursuant to this subsection under conditions that do not constitute an immediate obstruction to the normal and safe movement of traffic and are determined to be abandoned shall not be towed or impounded until the motor vehicle has placed on its windshield or in another prominent location a sticker or placard indicating the vehicle is in violation of this chapter and shall be removed by the Wichita police department after forty eight hours from the time the sticker or placard was attached to the vehicle. The sticker or placard shall include such other information as the chief of police determines is necessary.

(c) A vehicle which is subject to being impounded under any other provision of this Code may not be towed until the owner or person entitled to lawful custody has been notified and given an opportunity to remove said vehicle within a reasonable time; provided, however, that where the owner or person entitled to custody cannot be located after a bona fide effort has been made to do so then such vehicle may be towed.
(Ord. No. 45-321 § 1; Ord. No. 42-460 § 1)

Sec. 11.97.020. Notice after impoundment.

(1) Whenever any motor vehicle is towed and impounded pursuant to the provisions of this Code, notice, if possible, shall be given for vehicles registered in Kansas to the registered owner, addressed to the address as shown on the certificate of registration, and to the lienholder of record, if any, in the county in which the title shows the owner resides, that such vehicle has been towed and impounded, the reasons for the tow, how the vehicle may be recovered to include the right of hearing set out in Section 11.97.040, and that unless the owner or lienholder takes action within fifteen days from the date of the mailing of the notice, proceedings may be instituted to sell the vehicle at auction or otherwise dispose of the vehicle to cover any costs accrued as a result of the towing and impounding. Said notice shall be by written notice provided to the owner of the motor vehicle at the time the motor vehicle is towed, provided the officer providing such notice has obtained written acknowledgment of receipt of the notice. In addition, said notice may be made by certified mail with return receipt requested. Notice by certified mail shall be mailed to the owner of vehicles displaying Kansas registration plates no later than close of business of the third business day after the towing. The police department shall use reasonable diligence in determining the title or registered owner of the vehicle. If the vehicle towed is registered in another state or country or bears no registration plate, then the police department shall initiate prompt action to apprise the owner of the vehicle's location and potential disposition.

(2) Any motor vehicle which has been impounded as provided in this section for thirty days or more shall be disposed of in the following manner:

If such motor vehicle has displayed thereon a registration plate issued by the division of vehicles and has been registered with the division, the public agency shall request verification from the division of vehicles of the last registered owner and any lienholders, if any. Such verification request shall be submitted to the division of vehicles not more than thirty days after such agency took possession of the vehicle. The public agency shall mail a notice by certified mail to the registered owner thereof, addressed to the address shown on the certificate of registration, and to the lienholder, if any, or record in the county in which the title show the owner resides, if registered in this state. The notice shall state that, if the owner or lienholder does not claim such motor vehicle and pay the removal and storage charges incurred by such public agency on it within fifteen days from the date of the mailing of the notice, it will be sold at public auction to the highest bidder for cash. The notice shall be mailed within ten days after receipt of verification of the last owner and any lienholders, if any, as provided in this subsection.

After fifteen days from date of mailing notice, the public agency shall publish a notice once a week for two consecutive weeks in a newspaper of general circulation in the county where such motor vehicle was abandoned and left, which notice shall describe the motor vehicle by name of maker, model, serial number, and owner, if known, and stating that it has been impounded by the public agency and that it will be sold at public action to the highest bidder for cash if the owner thereof does not claim it within ten days of the

date of the second publication of the notice and pay the removal and storage charges, and publication costs incurred by the public agency. If the motor vehicle does not display a registration plate issued by the division of vehicles and is not registered with the division, the public agency, after thirty days from the date of impoundment, shall request verification from the division of vehicles of the last registered owner and any lienholders, if any. Such verification request shall be submitted to the division of vehicles no more than thirty days after such agency took possession of the vehicle. The public agency shall mail a notice by certified mail to the registered owner thereof, addressed to the address as shown on the certificate of registration, and to the lienholder, if any, of record in the county in which the title shows the owner resides, if registered in this state. The notice shall state that if the owner or lienholder does not claim such motor vehicle and pay the removal and storage charges incurred by such public agency on it within fifteen days from the date of the mailing of the notice, it will be sold at public auction to the highest bidder for cash. The notice shall be mailed within ten days after receipt of verification of the last owner and any lienholders, if any, as provided in this subsection. After fifteen days from the date of mailing notice, the public agency shall publish a notice in a newspaper of general circulation in the county where such motor vehicle was abandoned and left, which notice shall describe the motor vehicle by name of maker, model, color and serial number and shall state that it has been impounded by said public agency and will be sold at public auction to the highest bidder for cash, if the owner thereof does not claim it within ten days of the date of the second publication of the notice and pay the removal charges incurred by the public agency.
(Ord. No. 46-553 § 1)

Sec. 11.97.030. Release procedures.

(A) All motor vehicles towed and impounded pursuant to the provisions of this Code shall be surrendered to the owner subject to the provisions of subsection (B) of this section, upon presentation of the following to the commercial or city tow service where the vehicle is impounded:

1. Proof of ownership of the vehicle by lawful title or other proof of lawful entitlement to the vehicle;
2. Proof of a driver's license or other valid photo identification;
3. Proof of valid registration; and
4. Payment of all storage charges and towing fees incurred in the towing and impounding of the vehicle must be made prior to release of the vehicle unless otherwise relieved of that requirement by application of the hearing provisions set forth in this chapter.

(B) Vehicles towed pursuant to subsection (a)(10) of Section 11.97.010 shall be disposed of pursuant to the Kansas Standard Asset Seizure and Forfeiture Act, K.S.A. 60-4101 et seq. and amendments thereto.
(Ord. No. 46-553 § 2)

Sec. 11.97.040. Hearing procedures.

(a) Owners or persons entitled to the lawful custody of impounded motor vehicles who wish to contest the validity of the motor vehicle tow may request a hearing for such purpose by notifying the Wichita municipal court clerk of the request in writing. The request shall state the grounds upon which the person requesting the hearing believes the impoundment invalid or unjustified. Absent exigent circumstances, such request must be made no later than five business days from impoundment of the vehicle or receipt of the notice of impoundment, whichever is later.

(b) A hearing for the purpose of determining the validity of the tow shall be held by the municipal court within seven days of receipt of proper request filed pursuant to this section, except where a vehicle has not yet been released from impoundment, in which case the court will set and conduct the hearing within three working days after such hearing is requested. The times of the hearing shall be set by the clerk of the municipal court.

(c) Pending such hearing, the owner or person lawfully entitled to custody of any impounded vehicle may retrieve the impounded vehicle upon payment of an amount equal to the towing and storage charges incurred by the vehicle. If such payment is made, the vehicle will be released immediately upon proof of entitlement thereof.

If the owner or person lawfully entitled to custody of any vehicle does not make advance payment of the charges, then such vehicle will remain in storage until a hearing is had.

(d) The owner(s) and any other person(s) who have an interest in the vehicle are only entitled to one hearing for each tow of that vehicle. Any person who fails to appear at the hearing without good cause will not be entitled to have such hearing rescheduled.

(e) If after hearing, the court determines that there was no factual basis for the impoundment of said vehicle, then the vehicle will be released to the owner or person lawfully entitled to custody thereof without costs, and any amount previously paid by such person for towing and storage charges will be returned to them by the wrecker service operator. If after hearing it is determined that the vehicle was lawfully towed, and towing and storage charges have been previously paid by the owner or person having lawful custody of the vehicle, then such payment may be retained by the wrecker service operator.

(f) If any owner or person lawfully entitled to custody of any impounded vehicle makes an advance payment of all towing and storage costs but does not appear at the designated time for hearing, such payment shall be forfeited to the wrecker service operator.

(g) Owners of vehicles which are stolen and impounded under the provisions of this title shall be responsible for payment of any charges in connection with towing or storage of any stolen vehicle.

(h) An appeal from an order of a municipal court judge made pursuant to this section of the code shall be directed to the Eighteen Judicial District Court of the State of Kansas pursuant to K.S.A. 60-2101(d) and amendments thereto.
(Ord. No. 45-321 § 4; Ord. No. 42-460 § 3)

Sec. 11.97.050. Impoundment procedures—Nuisance vehicles.

Whenever any vehicle is towed under the provisions of Sections 7.40.047 or 8.01.150 of this Code, and amendments thereto, disposition of such vehicle shall be in compliance with the procedures for impoundment, notice and public auction as set forth above, in compliance with K.S.A. 8-1102(a)(2), and amendments thereto. Following any sale by public auction of a vehicle determined to be a nuisance, the purchaser, or if none, the city, may obtain title to such vehicle pursuant to the procedures set forth in K.S.A. 12-1617e(b) and amendments thereto.
(Ord. No. 45-321 § 5; Ord. No. 42-460 § 4)

Sec. 11.97.055. Establishment of payment plan program for assistance with payment of impound fees.

a. Payment Plan for Impound Fees. The City Manager is authorized to establish an installment payment program for motor vehicle owners who are unable to pay fees incurred due to the impoundment of their motor vehicle pursuant to Section 11.97.010. Such program shall be consistent with the guidelines set forth below:

1. The owner (or renter) of the towed vehicle must be an individual. Businesses, including partnerships, trusts, for-profit corporations, and nonprofit corporations are not eligible to participate in the program.

2. All requests for assistance must be received within five (5) calendar days from the date of the tow or impound of the motor vehicle.
3. The owner must show proof of valid registration and ownership of the motor vehicle.
4. The owner must provide proof that they are economically disadvantaged.
5. The payment plan should provide for monthly installments of no more than twenty-five dollars ($25) for total amounts not to exceed six hundred dollars ($600). All fees should be paid within twenty-four (24) months.
6. The plan will limit repayment of the City's processing fee collected from impound contractors to five dollars ($5) or less for indigent persons.
7. Owners may only participate in one payment plan at any given time.

b. Homeless Fee Waiver.

1. The City Manager is also authorized to establish a program to provide a one-time waiver of impound fees, not to exceed $600, for individuals who are homeless.
2. Only individuals who are receiving homeless services and who are registered with the Homeless Management Information System at the time of impoundment of the motor vehicle are eligible for the waiver.

c. Reporting. A report regarding the number of payment plans approved, funds collected, and any funds waived will be submitted to the City Council in July 2023 so that Council may evaluate the continued need for and effectiveness of the program.
(Ord. No. 51-864, § 1, 6-7-22)

Sec. 11.97.060. Contract for towing and storage.

(a) The city may, after a competitive bid process, contract for the towing and storage of vehicles towed pursuant to the Code of the City of Wichita. Any such bid process shall be based on such specifications for towing and storage of vehicles as the city deems appropriate and in the public interest and the award of a contract for towing and storage of vehicles shall be based on the following factors:

(1) Amount of the bid;

(2) Integrity, skill and business judgment of the bidder;

(3) General experience in providing towing and storage services;

(4) Conduct and performance under previous towing/impound contracts with the City of Wichita or any other city as the same relates to honesty, promptness, skill, efficiency, and a satisfactory relationship with vehicle owners;

(5) Existing availability of equipment, facilities and personnel; and

(6) Financial ability and willingness to expand or improve available equipment, facilities and services.

(b) Upon the award of a contract under subsection (a) above, the contractor shall file with the city clerk a list setting out the name and location of each storage location of the contractor.
(Ord. No. 45-321 § 6; Ord. No. 48-758, § 3, 6-22-10)

Sec. 11.97.070. Responsibilities of the contractor for towing and storage services.

(a) Proof of Financial Responsibility. Any contract for towing and storage under the provisions of this chapter shall require the contractor to demonstrate proof of financial responsibility for any liability which the city may have as a result of any negligence, willful conduct, or breach of contract by the contractor, and for any damages which the owner of an impounded vehicle may sustain as a result of damages to or loss of the vehicle or its contents while in the custody of the contractor. Proof of financial responsibility shall be furnished by proof of insurance, by filing a surety bond, and/or by depositing cash in such amounts as the director of finance shall determine necessary.

(b) Notice to Owners. Any contract for towing and storage under provisions of this Chapter shall require the contractor to post conspicuous notice, at any location where vehicles are impounded, of the rights of vehicle owners under this chapter.
(Ord. No. 45-321 § 7)

CHAPTER 11.98. MOTOR-VEHICLE FUELS—DISABLED PERSONS*

Sec. 11.98.010. Dispensing of motor-vehicle fuels to disabled persons.

Sec. 11.98.010. Dispensing of motor-vehicle fuels to disabled persons.

Every dealer engaged in the retail sale of motor-vehicle fuels at any service station providing facilities for both self-service and full-service sales shall require any attendant whose duties include the dispensing of motor-vehicle fuels at full-service facilities to dispense motor-vehicle fuels into any motor vehicle parked at a self-service facility which displays a license plate issued to a disabled veteran pursuant to K.S.A. § 8-161, and amendments thereto, or a license plate or placard issued to a disabled individual pursuant to K.S.A. § 8-1.125, and amendments thereto, and such disabled veteran or disabled individual operating such motor vehicle is not accompanied by a person capable of dispensing motor-vehicle fuels. The price charged for such motor-vehicle fuel shall be the price charged the general public for motor-vehicle fuels dispensed at such self-service facility. Such service shall be provided only during hours in which full-service sales are offered to the general public and such attendant shall not be required to perform other services which are offered only at full-service facilities. The provisions herein set forth the policy of the City as to the dispensing of motor fuels to disabled individuals. The failure to comply with the provisions herein shall not be unlawful or punishable under Section 1.04.060 of the code of the City.
(Ord. No. 50-896, § 9, 11-27-18)

***Editor's note—**Ord. No. 50-896, § 9, adopted Nov. 27, 2018, amended Ch. 11.98 in its entirety to read as herein set out. Former Ch. 11.98, § 11.98,010, pertained to motor-vehicle fuels—handicapped persons, and derived from Ord. No. 40-051 § 1).

CHAPTER 11.99. PRIVATE TOWING REGULATIONS

Sec. 11.99.010. Purpose and intent.
Sec. 11.99.020. Definitions.
Sec. 11.99.030. Unlawful acts.
Sec. 11.99.040. Nonapplicability to governmental vehicles and tows.
Sec. 11.99.045. Fees for towing services.
Sec. 11.99.050. Penalty.

Sec. 11.99.010. Purpose and intent.

It is declared that the purpose and intent of this chapter is to protect the public and the rights of persons whose motor vehicles may be towed and stored by private towing services at the request of third parties.
(Ord. No. 46-552 § 1)

Sec. 11.99.020. Definitions.

As used in this chapter, the words and phrases defined in this section shall have the following meanings, unless the context otherwise requires:

A. "Towing" means the moving or removing or the preparation therefor of a motor vehicle for which a service charge is made, either directly or indirectly, of a motor vehicle from private property without the knowledge and actual consent of the owner or the person in legal possession of the vehicle.

B. "Tow truck" means any truck or other vehicle adapted or used for the purpose of towing, winching, carrying or otherwise removing another vehicle from a given location for commercial purposes.

C. "Storage" means the custody and control of a vehicle by a tow truck operator as a result of a third-party ordered tow.

D. "Tow operator" means any person engaged in the business of offering or providing a towing service for commercial purposes.

E. "Private property" means all property privately owned regardless of whether the property is open to public access.

F. "Person" means a natural person or a legal entity such as, but not limited to, an individual, firm, association, joint stock company, syndicate, partnership or corporation.
(Ord. No. 46-552 § 2)

Sec. 11.99.030. Unlawful acts.

It is unlawful and a violation of this chapter for any person to fail to comply with the following regulations when involved in the towing or request of towing of motor vehicles from private property:

A. Notification. The property owner or person requesting the towing of or the removal of a vehicle from private or public property shall, within one hour of completion of such towing or removal, notify the Wichita Police Department records bureau of the following information concerning the tow or removal:

(1) Vehicle make;

(2) Vehicle model;

(3) Vehicle year;

(4) Vehicle VIN;

(5) License plate number;

(6) Ultimate destination where vehicle is towed to and stored;

(7) Person ordering the tow;

(8) Address from which the vehicle is towed.

B. Notice and Sign Requirements. Except for property appurtenant to and obviously a part of a single-family residence, and except for instances when notice is personally given to the owner or other legally authorized person in control of the vehicle that the area in which that vehicle is parked is reserved or otherwise unavailable for unauthorized vehicles and thus are subject to being removed at the owner's or operator's expense, any property owner or person in legal possession of the property, prior to towing or removing any vehicle from private or public property without the consent of the owner or other legally authorized

person in control of that vehicle, must post a sign meeting the following requirements:

(1) The sign must be prominently placed at each driveway access or curb cut allowing vehicular access to the property, within five feet from the public right-of-way line. If there are no curbs or access barriers, the signs must be posted not less than one sign for each 25 feet of lot frontage;

(2) The sign must clearly indicate, in lettering of at least one and one-half inches high and one-half inch wide, that unauthorized parking is prohibited and further clearly marked with lettering of at least one inch high and three-eighths inch wide indicating that unauthorized vehicles will be towed away at the owner's expense;

(3) A business with twenty or fewer parking spaces satisfies the notice requirements of this section by prominently displaying a sign stating "Reserved parking for customers only. Unauthorized vehicles will be towed away at the owner's expense." in light-reflective letters on a contrasting background.

(Ord. No. 46-552 § 3)

Sec. 11.99.040. Nonapplicability to governmental vehicles and tows.

The provisions of this chapter shall not apply to law enforcement, firefighting, rescue squad, ambulance or other governmental vehicles which are marked as such, or to property owned by any governmental entity.

(Ord. No. 46-552 § 4)

Sec. 11.99.045. Fees for towing services.

As required by K.S.A. 8-1103(c), the following maximum fees for towing services, provided pursuant to this Chapter, shall be established as follows:

(a) *Towing.* There shall be a maximum charge of $120.00 for towing a vehicle from one point to another within the corporate limits of the City when requested by the owner of private property as provided for by this Chapter. Beginning on or after June 1, 2024, maximum towing charges will increase by four percent (4%) each year. Prices shall be rounded to the nearest dollar.

(b) *Heavy Duty Towing.* There shall be a maximum charge of $312 per hour, with a two hour minimum, for towing a vehicle weighing more than 10,000 pounds from one point to another within the corporate limits of the City when requested by the owner of private property as provided for by this Chapter. Beginning on or after June 1,2024, maximum heavy duty towing charges will increase each year by four percent (4%) each year. Prices shall be rounded to the nearest dollar.

(c) *Mileage.* In addition, mileage at the rate of $4.70 per mile from the point of hookup for each mile any vehicle is towed within the City may be charged. Towing shall be by way of the most reasonable direct route between the point of the tow's origination and its destination. Beginning on or after June 1, 2024, maximum towing charges will increase by four percent (4%) each year. Prices shall be rounded to the nearest tenth.

(d) *Storage Fee.* A maximum fee of $36.00 per day may be assessed for each 24-hour period or portion thereof for storage at the wrecker or tow company's facility. Beginning on or after June 1, 2024, maximum towing charges will increase by four percent (4%) each year. Prices shall be rounded to the nearest dollar.

(e) *Heavy Duty Storage Fee.* A maximum fee of $52.00 per day may be assessed for each 24-hour period or portion thereof for storage of vehicles weighing more than 10,000 pounds at the wrecker or tow company's facility. Beginning on or after June 1, 2024, the maximum heavy duty

storage charges will increase by four percent (4%) each year. Prices shall be rounded to the nearest dollar.

(f) Towing service companies shall provide to each owner or other responsible person an itemized bill indicating the amount for each service provided.

(Ord. No. 49-675, § 1, 3-25-14; Ord. No. 52-047, § 7, 4-4-23)

Sec. 11.99.050. Penalty.

Any person that violates the provisions of this chapter shall be fined not less than $100.00 nor more than $1,000.00. In addition to such fine the court may sentence any person convicted hereunder to no more than 30 days in jail.
(Ord. No. 46-552 § 5)

Title 12

RAILROADS

Ch. 12.04. In General

Ch. 12.08. Crossing Signals

CHAPTER 12.04. IN GENERAL*

Sec. 12.04.010. Duties of companies as to streets, etc., improvements—Generally.
Sec. 12.04.020. Duty of companies as to streets, etc., improvements—Payment of cost generally.
Sec. 12.04.030. Duty of companies as to streets, etc., improvements—Portion of street, etc., deemed used by companies.
Sec. 12.04.040. Duty of companies as to streets, etc., improvements—Procedure where railroad occupies space already occupied by another company.
Sec. 12.04.050. Duty of companies as to streets, etc., improvements—Cost to constitute lien if paid by city.
Sec. 12.04.055. Service of notice to comply.
Sec. 12.04.060. Penalty.
Sec. 12.04.065. Abandonment of tracks—Removal required.
Sec. 12.04.080. Reserved.
Sec. 12.04.090. Standing of cars near grade crossings.
Sec. 12.04.100. Erection and maintenance of railroad signals.
Sec. 12.04.110. Leaving vehicles on railroad property.
Sec. 12.04.120. Clinging to or climbing on trains, etc.
Sec. 12.04.130. Stealing rides.
Sec. 12.04.140. Applicability of Sections 12.04.110 and 12.04.120.

Sec. 12.04.010. Duties of companies as to streets, etc., improvements—Generally.

All railroad companies operating within the corporate limits of the city are required to keep the streets and alleys over which they run properly drained, and to light the same whenever directed by the city council, to construct, maintain and keep in repair to their full width all crossings over all streets, alleys and ditches used by them, to construct and maintain drains and culverts where crossed by any line of the railroad over all streets or alleys over which they run, and to comply with orders, of the city council, directing the laying and construction of railroad tracks, turnouts or switches and to regulate the grade of the same and requiring all such companies to conform to the grade of the streets and alleys of the city as they may be hereafter or are now established. Such crossings shall be constructed, maintained and repaired in accordance with specifications now on file in the department of public works.
(Ord. 40-061 § 1)

Sec. 12.04.020. Duty of companies as to streets, etc., improvements—Payment of cost generally.

Each of the railway companies referred to in Section 12.04.010 shall pay the cost of grading, paving, repaving, draining and repairing of streets and alleys used or occupied by each of such railway companies.
(Ord. No. 12-522 § 3)

Sec. 12.04.030. Duty of companies as to streets, etc., improvements—Portion of street, etc., deemed used by companies.

The portion of the street or alley used or occupied by railway companies, under the provisions of the two preceding sections, shall be deemed to be the space between their tracks and thirty inches on the outside of each of their rails and all of the space between two or more tracks, turnouts or switches.
(Ord. No. 40-061 § 2)

Sec. 12.04.040. Duty of companies as to streets, etc., improvements—Procedure where railroad occupies space already occupied by another company.

Any railway company occupying any street or alley already occupied by any company referred to in Section 12.04.010, in addition to paying for paving or repaving, as provided for in the preceding sections, shall pay one-half of the cost of

*__Case law reference—__For case relative to former ordinance of city (No. 9286) relative to railroads, see *City of Wichita vs. Wichita Union Terminal Railroad Co.* 127 Kans. 855, 275 P. 171.

__Cross reference—__As to exemption of railroads from provisions as to pyrotechnics, see § 15.08.070 of this Code. As to interference with railroad signs or signals, see § 11.20.050. For requirement that certain vehicles stop at all railroad grade crossings, see § 11.36.110. As to obedience to signal indicating approach of railroad train, see § 11.36.140.

paving or repaving between the tracks of the two roads when the distance between track centerlines is fifty feet or less.
(Ord. No. 40-061 § 3)

Sec. 12.04.050. Duty of companies as to streets, etc., improvements—Cost to constitute lien if paid by city.

The costs of improvement, as provided for in Section 12.04.010, in case the cost is paid by the city, shall be a lien upon the property and franchise of any such company and may be assessed and taxed against the property in the same manner as other taxes are levied as provided for under General Statutes 1949, Section 13-1904.
(Ord. No. 12-522 § 2)

Sec. 12.04.055. Service of notice to comply.

A railroad company that has constructed and is not maintaining a railroad crossing in a manner that is in compliance with the requirements set forth in Section 12.04.010 may be served with notice to comply by the city by serving written notice of such noncompliance upon the resident agent of the railroad company. Such written notice shall identify the location of the crossing that is not being maintained properly and such notice shall specify the condition that needs to be corrected to bring the same into compliance.
(Ord. No. 40-061 § 4)

Sec. 12.04.060. Penalty.

Any railroad company, after it has been served with notice in writing as provided in Section 12.04.055 to construct or maintain suitable grade crossings in compliance with 12.04.010 over its tracks at a public grade crossing and has failed, neglected or refused to commence the same within the space of ninety days after the service of such notice upon it, or thereafter fails, neglects or refuses to complete the same within one hundred eighty days after service of such notice upon it, shall, upon conviction thereof, be guilty of a misdemeanor. Each day that any violation of this chapter continues shall constitute a separate offense and shall be punishable as a separate violation.
(Ord. No. 37-591 § 3)

Sec. 12.04.065. Abandonment of tracks—Removal required.

(a) Railway companies, upon abandonment of use of railroad tracks located in streets, alleys and other public ways within the corporate limits of the city of Wichita, shall remove such railroad tracks and shall upon the removal of such railroad tracks repair the street, alley or other public way the railroad tracks are removed from to a condition that is equal to or better than the street, alley or other public way that is located on either side of the railroad track.

(b) The presence of railroad tracks in a street, alley or other public way after a railway company has abandoned the use of the railroad tracks is declared to be a public nuisance and the city attorney shall be authorized to bring appropriate legal action in the District Court of Sedgwick County, Kansas, to cause such railroad tracks to be removed and to take whatever other action is deemed to be appropriate.
(Ord. No. 37-625 § 1)

Sec. 12.04.080. Reserved.

Editor's note—Ord. No. 50-106, § 1, adopted Nov. 17, 2015, repealed § 12.04.080 which pertained to trains not to obstruct streets and derived from § 157 of Ord. No. 19-139.

Sec. 12.04.090. Standing of cars near grade crossings.

Whenever the tracks of a railroad cross a street or highway at a grade, it is unlawful to leave any railroad car or engine standing within thirty feet of the roadway unless the crossing is protected by a flagman.
(Ord. No. 19-139 § 158)

Sec. 12.04.100. Erection and maintenance of railroad signals.

At the railroad grade crossings listed in any schedule approved by the city council it shall be the duty of the designated railroad to maintain

and operate a clearly visible electrical or mechanical railroad signal of a type approved by the traffic engineer.
(Ord. No. 40-061 § 6)

Sec. 12.04.110. Leaving vehicles on railroad property.

It is unlawful for any person to drive or leave an automobile, truck or other vehicle upon the property of any railroad company, railroad trustee or railroad terminal company (each hereinafter referred to as railroad), in any area not established as a public road or crossing including areas adjoining any passenger, freight or terminal station or depot: (1) Except for such time as may be reasonably necessary, (a) for the purpose of then transacting business with or serving such railroad or tenant of such railroad or United States mail or railway express agency, at or on such station or depot property; or (b) for the purpose of then becoming a passenger or then taking, meeting or receiving freight, baggage or passengers at such station or depot; and (2) Except that this section shall not apply to tenants occupying space in or on such railroad property.
(Ord. No. 40-061 § 7)

Sec. 12.04.120. Clinging to or climbing on trains, etc.

Each person who climbs upon, holds to or in any manner attaches himself to any locomotive engine or freight or passenger car or train of any character, while the same is in motion or standing still is guilty of a misdemeanor.
(Ord. No. 3334 § 1)

Sec. 12.04.130. Stealing rides.

Every person who rides or attempts to ride upon any locomotive engine, railroad train of any character, or in or upon any part thereof, for the purpose of or with the intent of stealing a ride thereon, within the city, is guilty of a misdemeanor.
(Ord. No. 3334 § 1)

Sec. 12.04.140. Applicability of Sections 12.04.110 and 12.04.120.

Sections 12.04.110 and 12.04.120 shall not apply to any employee of a railroad company operating such train, locomotive or car, nor to any other person having business with or acting under legal authority of such railroad company.
(Ord. No. 40-061 § 8)

CHAPTER 12.08. CROSSING SIGNALS

Sec. 12.08.010. Purpose.
Sec. 12.08.020. Conformance to federal standards.
Sec. 12.08.030. Installation of signs required.
Sec. 12.08.070. Barricades.
Sec. 12.08.080. Street closure—Prior notification of traffic engineering section.
Sec. 12.08.090. Removal of sight obstructions.
Sec. 12.08.100. Violation—Fine.

Sec. 12.08.010. Purpose.

It is necessary for the safety, welfare and protection of the public that warning or protective devices be installed at all grade level intersections of streets and railroad tracks within the city as hereinafter provided.
(Ord. No. 31-670 § 1)

Sec. 12.08.020. Conformance to federal standards.

The installation, maintenance and/or operation of all grade crossing signs, signals and devices provided for herein shall, insofar as practical, be in accordance with the Manual on Uniform Traffic Control Devices, currently approved by the State Department of Transportation, or revisions thereto.
(Ord. No. 40-061 § 9)

Sec. 12.08.030. Installation of signs required.

Every railroad company maintaining a railroad track in or through the city, over which railroad trains are operated, and where no warning signs or protective devices exist as of the effective date of the ordinance codified in this chapter, shall install and maintain at each crossing where the streets of the city intersect such tracks at grade level reflectorized highway grade crossing signs. (W 10-2)(Cross-bucks)
(Ord. No. 40-061 § 10)

Sec. 12.08.070. Barricades.

When effecting any or all construction, railroad companies shall barricade all such construction projects in conformance with the manual entitled "Work Zone Traffic Control, Standards and Guidelines," published by the U.S. Department of Transportation, Federal Highway Administration, 1985 Edition, incorporated in this chapter by reference.
(Ord. No. 40-061 § 11)

Sec. 12.08.080. Street closure—Prior notification of traffic engineering section.

Railroad companies shall notify the traffic engineering section of the department of public works a minimum of one week prior to a proposed improvement which will require a full or partial street closing so that the traffic engineering section may provide any or all necessary notifications and design of detour routes and requiring signing. All construction and detour signing will be supplied by the railroad.
(Ord. No. 40-061 § 12)

Sec. 12.08.090. Removal of sight obstructions.

The city shall take any and all necessary action for the elimination of all removable sight obstructions.
(Ord. No. 40-061 § 13)

Sec. 12.08.100. Violation—Fine.

Every person or railroad company violating any of the provisions of Title 12 is guilty of a misdemeanor and, upon conviction, shall be fined a sum not to exceed one hundred dollars. Each violation shall constitute a separate offense.
(Ord. No. 40-061 § 14)

Title 13

(RESERVED)

Title 14

INDUSTRIES

Ch. 14.04. Self Regulation of Industries

Ch. 14.08. Industrial Districts

CHAPTER 14.04. SELF REGULATION OF INDUSTRIES

Sec. 14.04.010. Purpose—Policy.
Sec. 14.04.020. Definitions.
Sec. 14.04.030. Compliance—Certificate required.
Sec. 14.04.040. Conditions for qualification.
Sec. 14.04.050. Industrial compliance certificates.
Sec. 14.04.060. Renewal of industrial compliance, certificates.
Sec. 14.04.070. Inspection by central inspection superintendent—Revocation of industrial compliance certificate—Penalty for violations.
Sec. 14.04.080. Appeals.

Sec. 14.04.010. Purpose—Policy.

It is hereby declared to be the public policy of this city to provide the best possible climate for the operation of industry consistent with the city's duty to protect the health, safety and general welfare of the inhabitants. It is recognized that the enforcement procedures in the various technical codes were designed primarily for the guidance and regulation of the construction or remodeling of buildings, and that the application of such codes to the continuous technical activities of various industries who have adequate technical supervision of their own qualified to protect the interests of the public may become unduly burdensome and restrictive upon said industries. Accordingly, it is hereby declared necessary that such industries may, pursuant to the conditions of this chapter and after a showing of their willingness and ability to regulate themselves so as to protect public health and safety, qualify to supervise their own technical activities. (Ord. No. 26-262 § 1)

Sec. 14.04.020. Definitions.

For the purposes of this chapter, the following definitions shall apply:

The term TECHNICAL CODES shall refer to Chapters 15.12 and 16.08 and to Titles 18, 19, 21 and 22 of the Code of the City of Wichita which chapters and titles are commonly known respectively as the flammable liquids code, the drain layer's code, the building code, the electrical code, the plumbing and gas fitting code, and the air conditioning refrigeration and warm air heating code; and such terms shall include all amendments thereto.

The word INDUSTRY shall include every corporation, firm, and partnership which carries on a business within the city which is

(1) a public utility operating under a franchise or certificate of convenience and necessity from the city for the supplying of water, gas, steam, electricity, telephone service, or the transportation of passengers,

(2) a railroad operating under the control of the Interstate Commerce Commission, or

(3) a business included in the use regulations for the "E" light industrial district or the "F" heavy industrial district under Chapter 28.04 of the Code of the City of Wichita, as amended from time to time exclusive, however, of any business of a type included in such use regulations by reason of its being authorized under the use regulations pertaining to any other of the districts described in said Chapter 28.04.

The term QUALIFIED INDUSTRY shall mean any industry that has qualified under Section 14.04.040 hereof for self regulation of those activities and installations that would otherwise be subject to the technical codes.

The term TECHNICAL ACTIVITIES shall mean the doing of any work by the industry itself or under contract, or the use or installation of any materials, parts, or equipment which, except for the provisions of this chapter, would be subject to regulation of the city under one or more of the technical codes, and which is for the use of the industry itself in carrying on some other occupation.

The term ACCEPTABLE STANDARDS shall mean, as applied to any particular industry, any standards of materials or of performance contained in any of the following publications which are reasonably applicable to the technical activities of a particular industry's business operations: (1) those standards described and required by the National Building Code, 1955 Edition, together with the December 1957 amendments, published

by the National Board of Fire Underwriters; (2) those standards described and required by the Fire Prevention Code, 1960 Edition, published by said National Board of Fire Underwriters; or (3) those standards prescribed in the technical codes of the City of Wichita.

The term NEW CONSTRUCTION shall mean the erection of any new building or other facility either (1) detached from existing buildings or facilities, or (2) attached but constituting a substantial enlargement of ground surface area or cubical content of an existing building or facility.

All other words and phrases herein shall be given the same meaning as they would have under the provisions of the said technical codes.
(Ord. No. 26-262 § 2)

Sec. 14.04.030. Compliance—Certificate required.

A qualified industry shall comply with this chapter as to all its technical activities, and shall be regulated by the city under its technical codes only to the extent provided in this chapter, as long as such industry is the holder of a valid industrial compliance certificate issued pursuant to Section 14.04.050 hereof. Notwithstanding the terms of this chapter, however, a qualified industry shall be required to apply for and obtain a building permit as required by the technical codes before undertaking any new construction as above defined.
(Ord. No. 26-262 § 3)

Sec. 14.04.040. Conditions for qualification.

An industry shall be a qualified industry only when and so long as each of the following conditions is complied with to the reasonable satisfaction of the central inspection superintendent:

A. The industry's technical activities shall be covered by valid public liability insurance, written by a company (or companies) authorized to do business in the State of Kansas, with limits of not less than fifty thousand dollars for injury or death of any person, of not less than one hundred thousand dollars for property damage in any one occurrence, and of not less than three hundred thousand dollars in aggregate limits for any one occurrence.

B. The industry shall either:

1. have its technical activities covered by casualty insurance written by a company or companies which require compliance with national underwriting codes and which, to the satisfaction of the central inspection superintendent, enforce such compliance through inspections, which inspections are evidenced by written reports supplied to the industry, with reference to which the industry agrees (a) to file copies of such reports with the central inspection superintendent within ten days after their receipt by the industry, and (b) to comply with the requirements of such reports except as to any particular item which the central inspection superintendent finds to be unnecessary for compliance with acceptable standards; or

2. conduct its technical activities under the supervision of a licensed professional engineer who is a full time employee (or partner or owner) of the industry, or cause its technical activities to be checked periodically by an independent licensed professional engineer, qualified in the particular fields of such activities and licensed under the statutes of the State of Kansas as amended, who shall be responsible for certifying that such technical activities are being conducted in accordance with acceptable standards; or

3. cause its technical activities to be controlled by a full time employee (or partner or owner) who shall satisfy the respective board of examiners that he is reasonably capable by training and experience of interpreting and applying acceptable standards to the extent that the same are applicable to the operations of

the particular industry. There shall be on file with the central inspection superintendent at all times the name of such person, his residence address, and a statement signed by him setting forth in reasonable detail his qualifications and experience for said duties. If an industry uses separate individuals to supervise separate portions of the activities otherwise covered by the technical codes, separate statements shall be filed by each of the said supervising personnel.

C. The industry shall be the holder of a current industrial compliance certificate issued pursuant to Section 14.04.050 hereof.

(Ord. No. 26-262 § 4)

Sec. 14.04.050. Industrial compliance certificates.

Any industry desiring to become a qualified industry under Section 14.04.040 hereof shall file with the central inspection superintendent: (1) its application for an industrial compliance certificate on a form provided for that purpose by the central inspection superintendent, which form shall include an agreement that all its technical activities shall be conducted in accordance with acceptable standards, and an agreement that it will cause to be corrected any work found by the central inspection superintendent not to be in compliance, (2) an application fee of one hundred dollars, (3) a certificate or certificates of insurance showing the applicant's compliance with subsection A. of Section 14.04.040 hereof, and (4) such certificates or other proof reasonably necessary to show compliance with any one of conditions B(1), B(2), or B(3) of Section 14.04.040 hereof. Thereupon, the central inspection superintendent shall issue to such applicant an industrial compliance certificate evidencing the holder's compliance with this section.

In the interest of the protection of public health and safety prior to making a connection with any public facilities, including water, water lines, sewers and sewer lines, gas lines, or electric lines, the holder of an industrial compliance certificate shall first obtain a permit from the central inspection superintendent. As an alternative to obtaining a permit for a connection to such services, the holder may furnish to the central inspection superintendent, on a form to be provided by the central inspection superintendent, an account of the work done, material used, or equipment installed, including such as is still to be completed, by the industry and pertaining to such connection with such public facility. The information shall be delivered to the central inspection superintendent at least two business days prior to the proposed connection in order that the central inspection superintendent may exercise his right of inspection in accordance with the terms of this chapter. In the event the central inspection superintendent fails to inspect said work or installation within the time designated in the report submitted by the industry, the industry may proceed with the work or installation without the direct inspection of the central inspection superintendent, but all other requirements of this chapter shall be fully applicable thereto.

(Ord. No. 26-262 § 5)

Sec. 14.04.060. Renewal of industrial compliance, certificates.

At periodic intervals prescribed by the central inspection superintendent (which shall be not more often than semi-annually and not less often than bi-annually), each holder of an industrial compliance certificate shall file with the central inspection superintendent either (a) a current certificate of the chief inspector of a nationally recognized underwriting inspection bureau or a licensed professional engineer, or (b) such reasonable evidence as the central inspection superintendent may require, to the effect that the holder's plant continues to be operated in compliance with acceptable standards. Each industry holding a certificate hereunder shall annually pay, on or before the anniversary date of its industrial compliance certificate.

(Ord. No. 26-262 § 6)

Sec. 14.04.070. Inspection by central inspection superintendent—Revocation of industrial compliance certificate—Penalty for violations.

A. RIGHT OF ENTRY. The central inspection superintendent and the fire marshal shall at all reasonable times have the right of access to any

plant of a holder of an industrial compliance certificate for the purpose of making actual inspections to assure themselves that such holder is in compliance with the acceptable standards.

B. REVOCATION FOR NON-COMPLIANCE. Whenever the central inspection superintendent shall find, upon actual inspection, that a qualified industry's technical activities are not being conducted in general conformance with acceptable standards, then upon fifteen days' written notice to the holder the central inspection superintendent shall revoke said holder's industrial compliance certificate, unless within said fifteen days the industry shall bring its activities into conformance or shall appeal the ruling of the central inspection superintendent in accordance with Section 14.04.080 hereof. Upon final revocation of such a certificate an industry shall not be eligible to apply for re-issuance thereof for a period of ninety days, whereupon a new application may be filed in accordance with Section 14.04.050, hereof.

C. CORRECTIONS. If the central inspection superintendent shall find, upon actual inspection, that a qualified industry is in general compliance with acceptable standards but has failed to comply in some particular work in such a manner as may be dangerous to life or property, he shall by written order require the same to be corrected by the industry within such time as shall be reasonable under the circumstances. Neglect or refusal to comply with such order shall be grounds for revocation of the industry's certificate in accordance with paragraph B of this section, and the city may obtain relief by appropriate court action requiring correction of the matters out of compliance and may likewise seek in the police court of the City of Wichita the imposition of the penalty provisions of this chapter.

D. PENALTY. A breach of the foregoing paragraph (C) and failure to comply with the correction order of the central inspection superintendent shall constitute a breach of this chapter and shall subject the violator to penalties in the police court of the City of Wichita following a finding of guilty therein upon complaint of the central inspection superintendent. Such penalty shall be in the amount of five hundred dollars.
(Ord. No. 26-262 § 7)

Sec. 14.04.080. Appeals.

If any industry is aggrieved with any ruling, order, or decision of the central inspection superintendent made under this chapter, said industry may appeal the same to the appropriate board of examiners and appeals in the same manner and with the same effect as prescribed in the respective technical codes.
(Ord. No. 26-262 § 8)

CHAPTER 14.08. INDUSTRIAL DISTRICTS

Sec. 14.08.010. Purpose of chapter.
Sec. 14.08.020. Size—Zoning—Other criteria.
Sec. 14.08.040. Procedure of formation.
Sec. 14.08.050. Additions—Termination.
Sec. 14.08.055. Industrial compliance certificate.
Sec. 14.08.060. Severability.

Sec. 14.08.010. Purpose of chapter.

The purpose of this chapter shall be to promote, stimulate and develop the general economic welfare and prosperity of the City of Wichita through the promotion and advancement of industrial development in this city; to encourage and assist in the location of new industry and in the expansion of existing industrial development; and to promote the economic stability of this city by providing greater employment opportunities and diversification of industry, thus promoting the general welfare by authorizing the creation of an industrial district or districts and the enlargement thereof by an addition or additions thereto from time to time by the board of commissioners.
(Ord. No. 26-829 § 1)

Sec. 14.08.020. Size—Zoning—Other criteria.

Industrial districts shall contain at least one hundred sixty contiguous acres of land, located entirely within the corporate limits of the city of Wichita, more than one-half of which shall be zoned either "E," light industrial, or "F," heavy industrial, or a combination thereof, and which is developed for industrial purposes or held for future use for an industrial purpose. Further, the land within the industrial district shall not have had taxes levied against it for the payment of bonds and interest for bonds issued previously by the city. Industrial purposes, as used in this section, shall include those uses permitted in zoning districts "E," light industrial, or "F," heavy industrial.
(Ord. No. 36-926 (part))

Sec. 14.08.040. Procedure of formation.

Request for designation as an industrial district shall be submitted to the city manager for submission to the board of commissioners. The request shall be signed by the owners of at least fifty percent of the area proposed to be included in said district. Such request shall also include:

(a) A certified ownership list, prepared by a local abstract company, giving the owners of and legal description of all property owned by the persons submitting the aforementioned request for designation as an industrial district to the city manager.

(b) A description by metes and bounds, or by additions, of the total proposed district.

(c) Information, plot plans, and computations showing that this area meets the criteria established in Section 14.08.020 of this chapter.

(d) Aerial photographs or land use maps showing the location and nature of industrial activity located within said proposed district.

The city manager shall cause to have reviewed this information and shall submit his findings to the board of commissioners as to whether the request meets the requirements and criteria set forth in Section 14.08.020 of this chapter. Such findings and review shall be forwarded to the board of commissioners within thirty days from the receipt of such request. In the event such request meets the requirements and criteria of this chapter, the board of commissioners may create an industrial district as heretofore authorized.
(Ord. No. 26-829 § 4)

Sec. 14.08.050. Additions—Termination.

The board of city commissioners may approve the addition of any land to an industrial district formed under this chapter, if the land to be added to the industrial district is contiguous to the industrial district and meets the requirements and criteria established under this section of this chapter. No minimum acreage requirements shall apply to any addition added under this chapter.

Any time an industrial district does not meet the requirements of this section of this chapter, the board of city commissioners may terminate the industrial district.
(Ord. No. 36-926 (part))

Sec. 14.08.055. Industrial compliance certificate.

Any industry operating within an industrial district formed under this chapter shall be entitled to receive an industrial compliance certificate and to the benefits thereof under Chapter 14.04 of this code without being required to meet the conditions of Section 14.04.040 of said code if the industry meets the following requirements, and provided further that the industry will comply within one year after receiving temporary approval as set out herein:

(a) The industry maintains its home offices within the industrial district;

(b) The industry employs at least five hundred employees within the industrial district;

(c) The industry maintains valid public liability insurance, written by a company or companies authorized to do business in the state of Kansas, with limits of not less than fifty thousand dollars for injury or death of any person, of not less than one hundred thousand dollars for property damage in any one occurrence, and of not less than three hundred thousand dollars in aggregate limits for any one occurrence; and

(d) The industry submits an affidavit to the central inspection superintendent certifying that it meets requirements (a) through (c) of this section, and that its technical activities are conducted in compliance with acceptable standards, as defined at Section 14.04.020, and an application fee of one hundred dollars is submitted with the affidavit.

Thereupon, the central inspection superintendent shall issue to the industry a temporary industrial compliance certificate evidencing the industry's compliance with Chapter 14.04 of this code.

An industry holding an industrial compliance certificate under this chapter shall file annually a renewal fee of fifty dollars, and an affidavit stating that the industry continues to meet requirements (a) through (c) of this section. Failure to submit the affidavit and pay the fifty dollar renewal fee within thirty days after written notice of delinquency shall require the central inspection superintendent to cancel the industry's industrial compliance certificate.
(Ord. No. 36-926 (part))

Sec. 14.08.060. Severability.

If any clause, sentence or section of this chapter shall be held to be invalid, it shall not affect the remaining provisions of this chapter.
(Ord. No. 26-829 § 6)

Title 15

FIRE PROTECTION

Ch. 15.01. 2024 International Fire Code

Ch. 15.02. Smoke Detectors

CHAPTER 15.01. 2024 INTERNATIONAL FIRE CODE*

Sec. 15.01.010. Adoption of the International Fire Code.
Sec. 15.01.020. Chapter 1, Section 102.7 amended—Referenced Codes and Standards.
Sec. 15.01.030. Chapter 1, Section 103.2 amended—Appointment.
Sec. 15.01.040. Chapter 1, Section 105.1.1 amended—Permits required.
Sec. 15.01.050. Chapter 1, Section 105.1.1.1 Incorporated—Permit Fees Required.
Sec. 15.01.060. Chapter 1, Section 105.5.30 amended—LP-gas.
Sec. 15.01.070. Chapter 1 Section 105.5.36 amended—Open Burning.
Sec. 15.01.080. Chapter 1, Section 105.5.58 incorporated—Mandated inspection.
Sec. 15.01.090. Chapter 1, Section 105.6.26 incorporated—Alternate Surface Paving Material.
Sec. 15.01.100. Chapter 1, Section 108.1 amended—Fees.
Sec. 15.01.110. Chapter 1, Section 110.3.1. incorporated—Test and Inspection Records.
Sec. 15.01.120. Chapter 1, Section 110.6 amended—Overcrowding.
Sec. 15.01.130. Chapter 1, Section 113.4 amended—Violation penalties.
Sec. 15.01.140. Chapter 1, Section 114.4 amended—Failure to comply.
Sec. 15.01.150. Chapter 2, Section 202 incorporated—Alley.
Sec. 15.01.160. Chapter 3, Section 307.1.1 amended—Prohibited open burning.
Sec. 15.01.170. Chapter 3, Section 307.2 amended—Permit required.
Sec. 15.01.180. Chapter 3, Section 307.4 amended—Location.
Sec. 15.01.190. Chapter 3, Section 307.4.3 amended—Portable outdoor fireplaces.
Sec. 15.01.200. Chapter 5, Section 503.2.1 amended—Dimensions.
Sec. 15.01.210. Chapter 5, Section 503.2.3 amended—Surface.
Sec. 15.01.220. Chapter 5, Section 506.1 amended—Where required.
Sec. 15.01.230. Chapter 5, Section 507.5.1.1—-Hydrants for FDC (standpipe, sprinkler systems and remote connections).
Sec. 15.01.240. Chapter 5, Section 510.6.1 amended—Testing and proof of compliance.
Sec. 15.01.250. Chapter 9, Section 901.4 amended—Fire protection and life safety systems.
Sec. 15.01.260. Chapter 9, Section 901.4.4 amended—Fire areas.
Sec. 15.01.270. Chapter 9, 901.4.7.3 incorporated—Environment.
Sec. 15.01.280. Chapter 9, 903.2.1.2 amended—Group A-2.
Sec. 15.01.290. Chapter 9, Section 903.2.4.1 amended—Woodworking operations.
Sec. 15.01.300. Chapter 9, Table 903.2.8 amended—Group R.
Sec. 15.01.310. Chapter 9, Section 903.2.9 amended—Group S-1.
Sec. 15.01.320. Chapter 9, Section 903.2.10 amended—Group S-2 parking garages.
Sec. 15.01.330. Chapter 9, Section 903.2.11.1.1 amended—Opening dimension and access.
Sec. 15.01.340. Chapter 9, Section 903.2.11.3 amended—Buildings 55 feet or more in height.
Sec. 15.01.350. Chapter 9, Section 907.5.1 amended—Alarm activation and annunciation.
Sec. 15.01.360. Chapter 9, Section 910.2.1 amended—Group F-1 and S-1.
Sec. 15.01.370. Chapter 9, Section 912.2.1 amended—Visible location.
Sec. 15.01.380. Chapter 9, Section 912.5 amended—Signs.
Sec. 15.01.390. Chapter 9, Section 912.5.1 amended—Lettering.
Sec. 15.01.400. Chapter 9, Section 1003.5 amended—Elevation change.
Sec. 15.01.410. Chapter 10, Section 1008.2 amended—Illumination required.
Sec. 15.01.420. Chapter 10, Section 1008.3.2 amended—Illumination level under emergency power.
Sec. 15.01.430. Chapter 10, Section 1009.1 amended—Accessible means of egress required.
Sec. 15.01.440. Chapter 10, Section 1009.2.2 amended—Doors.
Sec. 15.01.450. Chapter 10, Section 1010.1.1 amended—Size of doors.
Sec. 15.01.460. Chapter 10, Section 1010.1.4 amended—Floor elevation.
Sec. 15.01.470. Chapter 10, Section 1010.2.2 amended—Hardware.
Sec. 15.01.480. Chapter 10, Section 1011.5.2 amended—Riser height and tread depth.
Sec. 15.01.490. Chapter 10, Section 1011.11 amended—Handrails.
Sec. 15.01.500. Chapter 10, Section 1012.1 amended—Scope.
Sec. 15.01.510. Section 1012.6.3 amended—Length.
Sec. 15.01.520. Chapter 10, Section 1012.6.4 amended—Change of direction.
Sec. 15.01.530. Chapter 10, Section 1012.6.5 amended—Doorways.
Sec. 15.01.540. Chapter 10, Section 1012.10 amended—Edge protection.
Sec. 15.01.550. Chapter 10, Section 1013.1 amended—Where required.
Sec. 15.01.560. Section 1015.2 amended—Where required.

*__Editor's note—__Ord. No. 52-878, §§ 1—73, adopted Jan. 13, 2026, repealed the former Ch. 15.01, §§ 15.01.010—15.01.580, 15.01.085, and 15.01.590—15.01.680, and enacted a new Ch. 15.01 as set out herein. The former Ch. 15.01 pertained to the 2018 International Fire Code, and derived from Ord. No. 51-552, §§ 1—68, adopted May 11, 2021; Ord. No. 52-175, §§ 1, 2, adopted May 23, 2023; Ord. No. 52-353, § 1, adopted Mar. 19, 2024; and Ord. No. 52-740, § 1, adopted May 27, 2025.

Sec. 15.01.570. Chapter 10, Section 1018.3 amended—Aisles in Groups B and M.
Sec. 15.01.580. Chapter 10, Section 1018.5 amended—Aisles in other than assembly spaces and Group B and M.
Sec. 15.01.590. Chapter 10, Section 1020.2 amended—Construction.
Sec. 15.01.600. Chapter 11, Section 1103.2 amended—Emergency responder communication enhancement in existing buildings.
Sec. 15.01.610. Chapter 28, Section 2810.6 amended—Outdoor storage of pallet at pallet manufacturing and recycling facilities.
Sec. 15.01.620. Chapter 28, Section 2810.7 amended—Outdoor storage of pallet at pallet manufacturing and recycling facilities.
Sec. 15.01.630. Chapter 28, Section 2810.8 amended—Outdoor storage of pallet at pallet manufacturing and recycling facilities.
Sec. 15.01.640. Chapter 41, Section 4106—Mobile Food Preparation Vehicles—Omitted.
Sec. 15.01.650. Chapter 56, Section 5601.3 amended—Fireworks.
Sec. 15.01.660. Chapter 56, Section 5601.2.4 amended—Financial responsibility.
Sec. 15.01.670. Chapter 56, Section 5608.2 amended—Permit applications.
Sec. 15.01.680. Chapter 61, Section 6104.2 amended—Maximum capacity within established limits.
Sec. 15.01.690. Appendix C, Section C103.2 amended—Average Spacing.
Sec. 15.01.700. Appendix D—Table D103.4 amended—Dead Ends.
Sec. 15.01.710. Appendix D, Section D103.5 amended—Fire apparatus access road gates.
Sec. 15.01.720. Appendix D, Section D107.1 amended—One or two family dwelling residential developments.
Sec. 15.01.730. Appendix D, Section D107.2 amended—Remoteness.

Sec. 15.01.010. Adoption of the International Fire Code.

The International Fire Code (IFC), as published by the International Codes Council, Inc., 2024 Edition, including Appendices B, C, D, E, F, G, H, I, J, K, N, and O are hereby adopted and incorporated herein by reference, subject to such amendments thereto as are set forth hereinafter.
(Ord. No. 52-878, § 1, 1-13-26)

Sec. 15.01.020. Chapter 1, Section 102.7 amended—Referenced Codes and Standards.

Chapter 1, Section 102.7 of the International Fire Code, 2024 Edition, is amended to read as follows:

102.7 Referenced Codes and Standards. The codes and standards referenced in this code shall be those that are listed in Chapter 80, and such codes and standards shall be considered to be part of the requirements of this code to the prescribed extent of each such reference and as further regulated in Sections 102.7.1 and 102.7.2. The fire code official has the authority to reference and enforce new or updated codes and standards.
(Ord. No. 52-878, § 2, 1-13-26)

Sec. 15.01.030. Chapter 1, Section 103.2 amended—Appointment.

Chapter 1, Section 103.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

103.2 Appointment The fire code official shall be appointed by the fire chief appointing authority of the jurisdiction. The fire code official shall not be removed from office except for cause and after full opportunity to be heard on specific and relevant charges by and before the appointing authority.
(Ord. No. 52-878, § 3, 1-13-26)

Sec. 15.01.040. Chapter 1, Section 105.1.1 amended—Permits required.

Chapter 1, Section 105.1.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

105.1.1 Permits required. Any property owner or authorized agent who intends to conduct an operation or business, or install or modify systems and equipment which is regulated by this Code, or to cause any such work to be done, shall first make application to the fire code official and obtain the required permit. Issued permits shall be kept on the premises designated therein at all times and

shall be readily available for inspection by the fire code official. In instances where laws or regulations are enforceable by departments other than the fire department, joint approval of the permit shall be obtained from all additional or necessary departments concerned.
(Ord. No. 52-878, § 4, 1-13-26)

Sec. 15.01.050. Chapter 1, Section 105.1.1.1 Incorporated—Permit Fees Required.

Chapter 1, Section 105.1.1.1 of the International Fire Code, 2024 Edition, is incorporated to read as follows:

105.1.1.1 Permit Fees Required. Permit fees shall be established by the fire code official with the approval of the City Manager. The schedule of fees shall be published and made available upon request by the fire code official.
(Ord. No. 52-878, § 5, 1-13-26)

Sec. 15.01.060. Chapter 1, Section 105.5.30 amended—LP-gas.

Chapter 1, Section 105.5.30 of the International Fire Code, 2024 Edition, is amended to read as follows:

105.5.30 LP-gas. An operational permit is required for:

1. Storage and use of LP-gas.

   Exception: A permit is not required for individual containers with a 125-gallon (473.1765 L) water capacity or less or multiple container systems having an aggregate quantity not exceeding 125 gallons (473.1765 L), serving occupancies in Group R-3.

2. Operation of cargo tankers that transport LP-gas.

Failure to obtain said permit could result in the fire code official ordering the removal of any tank over 125 gallons (473.1765 L) water capacity.
(Ord. No. 52-878, § 6, 1-13-26)

Sec. 15.01.070. Chapter 1 Section 105.5.36 amended—Open Burning.

Chapter 1, Section 105.5.36 of the International Fire Code, 2024 Edition, is amended to read as follows:

105.5.36 Open Burning: An operational permit is required for the kindling or maintaining of an open fire or a fire on any public street, alley, road, or other public or private ground. This includes fires in approved containers, incinerators, destructors, or those devices identified and approved by the fire code official. Instructions and stipulations of the permit shall be adhered to.

Exception: Recreational fires.
(Ord. No. 52-878, § 7, 1-13-26)

Sec. 15.01.080. Chapter 1, Section 105.5.58 incorporated—Mandated inspection.

Chapter 1, Section 105.5.58 of the International Fire Code, 2024 Edition, is incorporated to read as follows:

105.5.58 Mandated Inspections: An operational permit is required for mandated inspections. As mandated by any governing body by the public and/or private entity for the operation of the business.
(Ord. No. 52-878, § 8, 1-13-26)

Sec. 15.01.090. Chapter 1, Section 105.6.26 incorporated—Alternate Surface Paving Material.

Chapter 1, Section 105.6.26 of the International Fire Code, 2024 Edition, is incorporated to read as follows:

105.6.26 Alternate Surface Paving Material: A construction permit is required to install alternative surface paving material for fire apparatus access road.
(Ord. No. 52-878, § 9, 1-13-26)

Sec. 15.01.100. Chapter 1, Section 108.1 amended—Fees.

Chapter 1, Section 108.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

108.1 Fees. A permit shall not be issued until the fees have been paid, nor shall an amendment to a permit be released until the additional fee, if any, has been paid. Permit fees shall be established by the fire code official with the approval of the City Manager. The schedule of fees shall be published and made available upon request by the fire code official.

(Ord. No. 52-878, § 10, 1-13-26)

Sec. 15.01.110. Chapter 1, Section 110.3.1. incorporated—Test and Inspection Records.

Chapter 1, Section 110.3.1 of the International Fire Code, 2024 Edition, is hereby incorporated to read as follows: The following provisions shall be incorporated into and supplement the provisions of:

110.3.1 Test and inspection records. Required test and inspection records shall be available to the fire code official at all times or such records, as the fire code official designates, shall be filed with the fire code official. Contractors who perform inspection, testing and/or maintenance services on fire and life safety systems within the City of Wichita are required to electronically submit all compliant and non-compliant reports to the Wichita Fire Department via a method approved by the fire code official. The required test and inspection records shall be submitted to the fire code official within fourteen (14) days of testing and inspection. Any data management fees charged by third-party administrators to process, store and report such documentation, as approved, shall be the responsibility of the party submitting the report. Reports submitted other than in accordance with this section may not be accepted at the discretion of the fire code official.

(Ord. No. 52-878, § 11, 1-13-26)

Sec. 15.01.120. Chapter 1, Section 110.6 amended—Overcrowding.

Chapter 1, Section 108.6 of the International Fire Code, 2024 Edition, is amended to read as follows:

110.6 Overcrowding. No person shall permit overcrowding or admittance of any person beyond the approved capacity, as set forth in the International Building Code, of a building or a portion thereof. In determining whether the capacity of a building or any portion thereof has been exceeded, all persons within or upon the premises in question shall be considered, including patrons, guests, employees, entertainers and management personnel.

Upon finding any overcrowding conditions or obstructions in aisles, passageways or other means of egress, or any condition which constitutes a life safety hazard, the Fire Chief, the Chief's authorized agent, or any law enforcement officer shall be authorized to take such action as is necessary to ensure the safety of persons in and around the building or portion thereof, including causing the event or ongoing operation of business to be stopped until such condition or obstruction is corrected, or, upon approval of the Fire Chief, any Deputy Fire Chief or Fire Marshal, who may cause the premises to be locked until such condition is corrected.

In the event any building or portion thereof is ordered locked by the Fire Chief or the Chief's designee as provided herein, the owner or occupant of such building or portion thereof may appeal the order to the City Council within ten (10) calendar days from the date of the order. The appeal must be in writing and filed with the City Clerk and shall be heard promptly. Such an appeal shall stay the order locking the premises. In the event the order is upheld by the City Council, the owner or occupant of such building or portion thereof may appeal to the district court as provided by state law; however, such appeal shall not stay the order locking the premises.

Any person violating the provisions of this section shall be guilty of a misdemeanor and

in addition to the penalties provided herein, the court may, upon conviction, order the building or portion thereof in which the overcrowded conditions existed to be locked for a period not to exceed thirty (30) calendar days.

(Ord. No. 52-878, § 12, 1-13-26)

Sec. 15.01.130. Chapter 1, Section 113.4 amended—Violation penalties.

Chapter 1, Section 113.4 of the International Fire Code, 2024 Edition, is amended to read as follows:

113.4 Violation penalties. Persons who shall violate a provision of this Code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair or do work in violation of the approved construction documents or directive of the fire code official, or of a permit or certificate used under provisions of this Code, shall be deemed guilty of a misdemeanor, punishable by a fine of not less than $500 not more than $2,500 or by imprisonment not exceeding one year, or both such fine and imprisonment. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

(Ord. No. 52-878, § 13, 1-13-26)

Sec. 15.01.140. Chapter 1, Section 114.4 amended—Failure to comply.

Chapter 1, Section 114.4 of the International Fire Code, 2024 Edition, is amended to read as follows:

114.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be deemed guilty of a misdemeanor, punishable by a fine of not less than $500 or more than $2,500 or by imprisonment not exceeding one year, or both such fine and imprisonment.

(Ord. No. 52-878, § 14, 1-13-26)

Sec. 15.01.150. Chapter 2, Section 202 incorporated—Alley.

Alley means any public right-of-way or thoroughfare having a width of twenty (20) feet, intended to provide a secondary means of access to and from streets and lots.

(Ord. No. 52-878, § 15, 1-13-26)

Sec. 15.01.160. Chapter 3, Section 307.1.1 amended—Prohibited open burning.

Chapter 3, Section 307.1.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

307.1.1 Prohibited open burning. Open burning that is offensive or objectionable because of smoke or odor emissions or when atmospheric conditions or local circumstances make such fires hazardous, shall be prohibited. The fire code official is authorized to order the extinguishment by the permit holder or by the fire department of open burning that creates or adds to a hazardous or objectionable situation. Open burning shall be conducted between the hours of sunrise to sunset unless otherwise approved by the fire code official. Only firewood, limbs, and wood chips may be burned. Products such as paper, plastic, leaves, finished lumber, and rubbish are not allowed. Only onsite vegetation grown on the permit address can be burned.

Exception: Prescribed burning for the purpose of reducing the impact of wildland fire when authorized by the fire code official.

(Ord. No. 52-878, § 16, 1-13-26)

Sec. 15.01.170. Chapter 3, Section 307.2 amended—Permit required.

Chapter 3, Section 307.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

307.2 Permit required. A permit shall be obtained from the fire code official in accordance with Section 105.5.36 prior to kindling a fire for recognized silvicultural or range or wildlife management practices, open burning, use of an incinerator or destructor, prevention or

control of disease or pests, or a bonfire. Application for such approval shall only be presented by and permits issued to the owner, or the designee of the owner, of the land upon which the fire is to be kindled. Burn permit instructions and stipulations of the permit shall be adhered to.

(Ord. No. 52-878, § 17, 1-13-26)

Sec. 15.01.180. Chapter 3, Section 307.4 amended—Location.

Chapter 3, Section 307.4 of the International Fire Code, 2024 Edition, is amended to read as follows:

307.4 Location. The location for open burning shall not be less than 250 feet (76,200 mm) from any property line, structure or roadway, or within two (2) miles of any airport or flyway, or as approved by the fire code official, and provisions shall be made to prevent the fire from spreading to within 50 feet (15,240 mm) of any structure.

Exceptions:

1. Fires in approved containers that are not less than 15 feet (4,572 mm) from a structure with a pile size of 3 feet (914 mm) or less in diameter and 2 feet (610 mm) or less in height (i.e., outdoor fireplaces).

2. The minimum required distance from a structure shall be 25 feet (7,620 mm) when the pile size is 3 feet (914 mm) or less in diameter and 2 feet (610 mm) or less in height (i.e., recreational fires).

3. A variance to the distance requirement may be granted if a detailed fire control plan is presented for review and approval. The plan shall include but is not limited to: on-site water supply, burn pile size and location, signage to warn motorists, notification of nearby residents or building occupants, and constant supervision of burn site by a trained individual. Other conditions or requirements may be included due to other factors, such as proximity to occupied dwellings.

4. Fires in approved containers, incinerators, or destructors. Fires in containers, incinerators or destructors, or those approved by the fire code official and that are used per the manufacturer's instructions and are used for the destruction of wood waste, shall not be less than 150 feet (45,720 mm) from a property line, structure, roadway, airport or flyway, unless otherwise approved by the fire code official. A burn permit issued by the Wichita Fire Department, in compliance with Section 307.2 is required.

   Wood waste is defined as untreated wood and untreated wood products, including tree stumps (whole or chipped), trees, tree limbs (whole or chipped), bark, sawdust, chips, scraps, slabs, millings, and shavings. Wood waste does not include grass, grass clippings, bushes, shrubs, and clippings from bushes and shrubs from residential, commercial/retail, institutional, or industrial sources as part of maintaining yards or other private or public lands; construction, renovation, or demolition wastes, or clean lumber. Only firewood, limbs, and wood chips may be burned. Products such as paper, plastic, leaves, finished lumber and rubbish are not allowed. Only onsite vegetation grown on the permit address can be burned.

(Ord. No. 52-878, § 18, 1-13-26)

Sec. 15.01.190. Chapter 3, Section 307.4.3 amended—Portable outdoor fireplaces.

Chapter 3, Section 307.4.3 of the International Fire Code, 2024 Edition, is amended to read as follows:

307.4.3 Portable outdoor fireplaces. Portable outdoor fireplaces shall be used in accordance with the manufacturer's instructions and shall not be operated within 15 feet (3,048 mm) of a structure or combustible material. In addition, the following requirements shall be met:

1. Portable outdoor fireplaces shall be placed on a non-combustible surface and shall not be used on balconies or wood decks. **EXCEPTION**: Portable outdoor fireplaces used at one and two-family dwellings.

2. Portable outdoor fireplace use shall be discontinued when there is a ban or moratorium on burning issued by federal, state or local agencies. **EXCEPTION**: Portable outdoor fireplaces used at one and two-family dwellings.

3. Portable outdoor fireplaces shall not be used when the wind speed is in excess of 15 mph.

4. Portable outdoor fireplaces shall not be used within 500 feet (152,400 mm) of any shake shingle roof, unless provided with spark arrestor with a maximum ½ inch (12.7 mm) metal screen secured by metal wire, located on the vent/chimney.

5. Only firewood, limbs, and wood chips may be burned within the portable outdoor fireplace. Products such as paper, plastic, leaves, finished lumber and rubbish are not allowed.

(Ord. No. 52-878, § 19, 1-13-26)

Sec. 15.01.200. Chapter 5, Section 503.2.1 amended—Dimensions.

Chapter 5, Section 503.2.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

503.2.1 Dimensions. Fire apparatus access roads and alleys shall have an unobstructed width of not less than 20 feet (6,096 mm) drivable surface for single-family access and 24 feet (7,315 mm) for duplex and multi-family dwellings access, exclusive of shoulders, except for *approved* security gates in accordance with Section 503.6, and an unobstructed vertical clearance of not less than 13 feet 6 inches (4,115 mm).

(Ord. No. 52-878, § 20, 1-13-26)

Sec. 15.01.210. Chapter 5, Section 503.2.3 amended—Surface.

Chapter 5, Section 503.2.3 of the International Fire Code, 2024 Edition, is amended to read as follows:

503.2.3 Surface. Fire apparatus access roads shall be designed and maintained to support the imposed loads of fire apparatus and shall be surfaced with asphalt or concrete or as specified below so as to provide all-weather driving capabilities. Access roads shall be installed to one of the following criteria:

1. Asphalt - 8 inches (203.2 mm) or concrete - 8 inches (203.2 mm) thick; or

2. To city street standards.

   Minimum specified material thickness for a 6-month temporary access road shall be of concrete aggregate - 6 inches (152.4 mm) or AB3 rock - 6 inches (152.4 mm).

3. Alternate paving materials (Turfcrete/Grasscrete) - Alternative paving materials such as "Grass Crete" turf block or similar type materials may be used for Fire Department Access Roads under certain conditions. When submitting for permits the applicant shall include cut sheets of the proposed alternative material and the design criteria based upon the imposed load of fire apparatus weighing at least 75,000 pounds. The following conditions shall be met:

   a. A construction permit for the installation of the alternate paving material is required as specified in Section 105.6.26.

   b. Signs & Marking requirements shall be followed.

   c. Paving shall be structurally sound to preclude movement or disbanding with soil movement.

   d. The paving shall be field tested by the contractor in the presence of the Fire Code Official. Testing may include driving the access road by a

weight-verified vehicle. Prior to testing, the soil shall be soaked for three days in a row.

e. Prior to final approval, the engineer of record (civil or soils engineer) shall certify the installation.

f. Maximum distance of alternate paving material is 200 feet.

(Ord. No. 52-878, § 21, 1-13-26)

Sec. 15.01.220. Chapter 5, Section 506.1 amended—Where required.

Chapter 5, Section 501.6 of the International Fire Code, 2024 Edition, is amended to read as follows:

506.1 Where required: Where access to or within a structure or an area is restricted because for secured openings or where immediate access is necessary for life-saving or fire-fighting purposes, or where an automatic fire sprinkler system, fire alarm system or elevator(s) is/are present, the fire code official is authorized to require a key box to be installed in an approved location. The Knox Box brand is the only approved key box for the City of Wichita and shall contain keys to gain access as required by the fire code official.

(Ord. No. 52-878, § 22, 1-13-26)

Sec. 15.01.230. Chapter 5, Section 507.5.1.1—-Hydrants for FDC (standpipe, sprinkler systems and remote connections).

Chapter 5, Section 507.5.1.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

507.5.1.1 Hydrants for FDC (standpipe, sprinkler systems and remote connections). Buildings equipped with FDC's (standpipe, sprinkler system and/or remote connections) installed in accordance with Section 905 shall have a fire hydrant within 150 feet (45,720 mm) of the fire departments connection. The required hydrant shall be no closer than 40 feet (12,192 mm) to the structure. The required hydrant shall be no closer than 5 feet to the remote connection.

Exception: The distance shall be permitted to exceed 150 feet (45,720 mm) where approved by the fire code official.

(Ord. No. 52-878, § 23, 1-13-26)

Sec. 15.01.240. Chapter 5, Section 510.6.1 amended—Testing and proof of compliance.

Chapter 5, Section 510.6.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

510.6.1 Testing and proof of compliance. The owner of the building or owner's authorized agent shall have the in-building, two-way emergency responder communication coverage system inspected and tested annually or where structural changes occur including additions or remodels that could materially change the original field performance test. Testing shall consist of the following:

1. In-building coverage test as described in Section 510.5.4.

2. Signal boosters shall be tested to verify that the gain is the same as it was upon initial installation and the acceptance or set to optimize the performance of the system.

3. Backup batteries and power supplies shall be tested under load of a period of 1 hour to verify that they will properly operate during an actual power outage. If within the 1-hour test period the battery exhibits symptoms of failure, the test shall be extended for additional 1-hour periods until the integrity of the battery can be determined.

All active components shall be checked to verify operation within the manufacturer's specifications. At the conclusion of the testing, a report, which shall verify compliance with Section 510.5.4, shall be submitted to the fire code official in accordance with Section 110.3.

(Ord. No. 52-878, § 24, 1-13-26)

Sec. 15.01.250. Chapter 9, Section 901.4 amended—Fire protection and life safety systems.

Chapter 9, Section 901.4 of the International Fire Code, 2024 Edition, is amended to read as follows:

901.4 Fire protection and life safety systems. Fire protection systems shall be maintained in accordance with the original installation standards/codes for that system. Fire protection systems shall be extended, altered or modified as necessary to maintain and continue protection whenever the building is altered, remodeled or added onto. Installation and alterations to fire sprinkler systems shall be done in accordance with applicable standards and shall be performed by a person with a minimum of a NICET II or other approved equivalent certification. An approved City of Wichita licensed fire sprinkler contractor shall have a qualified person with a minimum NICET III certification in water-based fire protection systems layout or other approved equivalent certification. Installation and alterations to fire alarm systems shall be done in accordance with all applicable standards/codes and shall be performed by a person with a NICET II in fire alarm systems, or other approved equivalent certification. An approved City of Wichita licensed fire alarm contractor shall have a qualified person with a minimum NICET III in fire alarm systems or other approved equivalent certification.

(Ord. No. 52-878, § 25, 1-13-26)

Sec. 15.01.260. Chapter 9, Section 901.4.4 amended—Fire areas.

Chapter 9, Section 901.4.4 of the International Fire Code, 2024 Edition, is amended to read as follows:

901.4.4 Fire areas. Where buildings, or portions thereof, are divided into fire areas so as not to exceed the limits established for requiring a fire protection system in accordance with this chapter, such fire areas shall be separated by fire walls constructed in accordance with Section 706, fire barriers constructed in accordance with Section 707, or horizontal assemblies constructed in accordance with Section 711, or a combination thereof having a fire-resistance rating of not less than that determined in accordance with Section 707.3.10.

Exception: Building constructed prior to the adoption of the 2000 Edition of the International Building Code (April 2, 2002) and any building containing Group S-1 and F-1 Occupancies constructed prior to the adoption of the 2012 Edition of the International Building Code (May 1, 2016) may have a nonconforming fire area increased by not more than 25 percent of the fire area limitations, for the occupancy classification, as specified under Section 903.2 of the International Building Code. All additions to the fire area shall be considered as accumulative and subject to the limitations of the construction type.

(Ord. No. 52-878, § 26, 1-13-26)

Sec. 15.01.270. Chapter 9, 901.4.7.3 incorporated—Environment.

Chapter 9, Section 901.4.7.3 of the International Fire Code, 2024 Edition, is incorporated to read as follows:

901.4.7.3 Environment Automatic sprinkler system riser rooms and fire pump rooms shall be maintained at a temperature of not less than 40 degrees. Heating units shall be permanently installed (non-switched). Exterior riser rooms shall have low-temperature detection connected to the fire alarm system.

(Ord. No. 52-878, § 27, 1-13-26)

Sec. 15.01.280. Chapter 9, 903.2.1.2 amended—Group A-2.

Chapter 9, Section 903.2.1.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

903.2.1.2 Group A-2 An automatic sprinkler system shall be provided throughout stories containing Group A-2 occupancies and throughout all stories from the Group A-2 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 5,000 square feet (464 m^2).

2. The fire area has an occupant load of 100 or more.

   Exception: The fire area occupant load may go to 299 people if a 3rd exits in accordance with Section 1007.1.2 and Section 1016.2 and a manual fire alarm system that activates an occupant notification system in accordance with Section 907.5 is added that is approved by the fire code official or the building official or the plans examiner reviewing the project.

3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.

(Ord. No. 52-878, § 28, 1-13-26)

Sec. 15.01.290. Chapter 9, Section 903.2.4.1 amended—Woodworking operations.

Chapter 9, Section 903.2.4.1 of the International Fire Code, 2024 Edition is amended to read as follows:

903.2.4.1 Woodworking operations An automatic sprinkler system shall be provided throughout all Group F-1 occupancy fire areas that contain woodworking operations in excess of 2,500 square feet (232 m^2) in area that generate finely divided combustible waste or use finely divided combustible materials.

Exception: A room or the aggregate area of rooms containing woodworking operations within a fire area, as defined by the International Building and Fire Codes, where the area is 2,500 square feet (232 m^2) or less. Walls which define rooms containing a wood working operation shall be of non-combustible construction. All doors shall have self-closing devices and any windows shall be fixed closed. All openings shall be maintained closed.

(Ord. No. 52-878, § 29, 1-13-26)

Sec. 15.01.300. Chapter 9, Table 903.2.8 amended—Group R.

Chapter 9, Table 903.2.8 of the International Fire Code, 2024 Edition, is amended to read as follows:

903.2.8 Group R An *automatic sprinkler system* installed in accordance with Section 903.3 shall be provided throughout all *buildings* with a Group R *fire area*.

Exceptions:

1. One- or two-family dwelling unit.

2. Dwelling units in three- and four-family dwellings separated from each other by wall and/or floor assemblies having not less than a 2-hour fire-resistance rating. Fire resistance-rated floor/ceiling and wall assemblies shall extend to and be tight against an exterior wall, and wall assemblies shall extend from the foundation to the underside of the roof sheathing. The roof shall be a minimum of class C roof covering, and the roof decking or sheathing is of non-combustible materials or approved fire-retardant-treated wood for a distance of 4 feet (1,219 mm) on each side of the wall or walls. There shall be no penetrations through this area of the roof deck or sheathing. Where buildings, or portions thereof, are arranged above or below adjacent units, and automatic sprinkler system shall be provided throughout all units.

(Ord. No. 52-878, § 30, 1-13-26)

Sec. 15.01.310. Chapter 9, Section 903.2.9 amended—Group S-1.

Chapter 9, Section 903.2.9 of the International Fire Code, 2024 Edition, is amended to read as follows:

903.2.9 Group S-1 An *automatic sprinkler system* shall be provided throughout all *buildings* containing a Group S-1 occupancy where one of the following conditions exists:

1. A Group S-1 *fire area* exceeds 12,000 square feet (1,115 m^2).

   Exception: A Group II or III aircraft hangar, as defined by NFPA 409, used of storage of aircraft only when the fire area exceeds 18,000 square feet (1,672 m^2). See Section 412.3.6.2 for fire area allowances for ancillary uses.

2. A Group S-1 *fire area* is located more than three stories *above grade plane*.

3. The combined area of all Group S-1 *fire areas* on all floors, including any *mezzanines*, exceeds 24,000 square feet (2,230 m^2).

4. A Group S-1 *fire area* used for the storage of *commercial motor vehicles* where the *fire area* exceeds 5,000 square feet (464 m^2).

5. A Group S-1 *fire area* used for the storage of lithium-ion or lithium metal powered vehicles where the *fire area* exceeds 500 square feet (46.4 m^2).

(Ord. No. 52-878, § 31, 1-13-26)

Sec. 15.01.320. Chapter 9, Section 903.2.10 amended—Group S-2 parking garages.

Chapter 9, Section 903.2.10 of the International Fire Code, 2024 Edition, is amended to read as follows:

903.2.10 Group S-2 parking garages An *automatic sprinkler system* shall be provided throughout *buildings* classified as parking garages where any of the following conditions exists:

1. Where the *fire area* of the enclosed parking garage in accordance with Section 406.6 exceeds 12,000 square feet (1,115 m^2).

2. Where the enclosed parking garage in accordance with Section 406.6 is located beneath other groups.

Exception: Enclosed parking garages located beneath Group R-3 occupancies.

(Ord. No. 52-878, § 32, 1-13-26)

Sec. 15.01.330. Chapter 9, Section 903.2.11.1.1 amended—Opening dimension and access.

Chapter 9, Section 903.2.11.1.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

903.2.11.1.1 Opening dimension and access Openings shall have a minimum dimension of not less than 30 inches (762 mm) in width and 48 inches (1,219 mm) in height. Access to such openings shall be provided for the fire department from the exterior and shall not be obstructed in a manner such that firefighting or rescue cannot be accomplished from the exterior.

(Ord. No. 52-878, § 33, 1-13-26)

Sec. 15.01.340. Chapter 9, Section 903.2.11.3 amended—Buildings 55 feet or more in height.

Chapter 9, Section 903.2.11.3 of the International Fire Code, 2024 Edition, is amended to read as follows:

903.2.11.3 Buildings 55 feet or more in height An *automatic sprinkler system* shall be installed throughout *buildings* that have one or more *stories* with an *occupant load* of 30 or more located 55 feet (16,764 mm) or more above the lowest level of fire department vehicle access, measured to the finish floor.

Exceptions:

1. Open parking structures.

2. Occupancies in Group F-2.

(Ord. No. 52-878, § 34, 1-13-26)

Sec. 15.01.350. Chapter 9, Section 907.5.1 amended—Alarm activation and annunciation.

Chapter 9, Section 907.5.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

907.5.1 Alarm activation and annunciation. Upon activation, fire alarm systems and/or dedicated function sprinkler monitor-

ing systems shall initiate occupant notification and shall annunciate at the fire alarm control unit, or where allowed elsewhere by Section 907, at a constantly attended location.
(Ord. No. 52-878, § 35, 1-13-26)

Sec. 15.01.360. Chapter 9, Section 910.2.1 amended—Group F-1 and S-1.

Chapter 9, Section 910.2.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

910.2.1 Group F-1 and S-1 Smoke and heat vents installed in accordance with Section 910.3 or a mechanical smoke removal system installed in accordance with Section 910.4 shall be installed in *buildings* and portions there of used as Group F-1 or S-1 occupancy having more than 50,000 square feet (4,645 m^2) of undivided area. In occupied portions of a *building* equipped throughout with an *automatic sprinkler system* in accordance with Section 903.3.1.1 where the upper surface of the story is not a roof assembly, a mechanical smoke removal system in accordance with Section 910.4 shall be installed.

Exceptions:

1. Group S-1 aircraft repair hangars.
2. Areas completely separated by noncombustible partitions so that no one area exceeds 50,000 square feet (4,645 m^2). Openings shall be provided with approved automatic or self-closing devices to enclosure of the opening.

(Ord. No. 52-878, § 36, 1-13-26)

Sec. 15.01.370. Chapter 9, Section 912.2.1 amended—Visible location.

Chapter 9, Section 912.2.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

912.2.1 Visible location Fire department connections shall be located on the street side of *buildings* or facing approved fire apparatus access roads, fully visible and recognizable from the street, fire apparatus access road or nearest point of fire department vehicle access or as otherwise *approved* by the *fire code official*. In addition, a horn/strobe device shall be installed directly above the fire department connection and shall activate in conjunction with the fire alarm system to indicate water flow.
(Ord. No. 52-878, § 37, 1-13-26)

Sec. 15.01.380. Chapter 9, Section 912.5 amended—Signs.

Chapter 9, Section 912.5 of the International Fire Code, 2024 Edition, is amended to read as follows:

912.5 Signs. A metal sign with raised letters not less than 4 inch (101.6 mm) in size shall be mounted on all fire department connections serving automatic sprinklers, standpipes or fire pump connections. Such signs shall read: "AUTOMATIC SPRINKLERS," "STANDPIPES," "TEST CONNECTION," "STANDPIPE AND AUTOSPKR" or "AUTOSPKR AND STANDPIPE," or a combination thereof as applicable.
(Ord. No. 52-878, § 38, 1-13-26)

Sec. 15.01.390. Chapter 9, Section 912.5.1 amended—Lettering.

Chapter 9, Section 912.5.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

912.5.1 Lettering. Each fire department connection (FDC) shall be designated by a sign with letters not less than 4 inch (101.6 mm) in height. For manual standpipe systems, the sign shall also indicate that the system is manual and that it is either wet or dry.
(Ord. No. 52-878, § 39, 1-13-26)

Sec. 15.01.400. Chapter 9, Section 1003.5 amended—Elevation change.

Chapter 9, Section 1003.5 of the International Fire Code, 2024 Edition, is amended to read as follows:

1003.5 Elevation change Where changes in elevation of less than 12 inches (305 mm) exist in the *means of egress*, sloped surfaces

shall be used. Where the slope is greater than one unit vertical to in 20 units horizontal (5-percent slope), *ramps* complying with Section 1012 shall be used. Where the difference in elevation is 6 inches (152 mm) or less, the *ramp* shall be equipped with either *handrails* or floor finish materials that contrast with adjacent floor finish materials.

Exceptions:

1. Steps at exterior doors comply with Section 1010.1.4.
2. A *stair* with a single riser or with two risers and a tread is permitted at locations not required to be *accessible* by the Americans with Disabilities Act ("ADA") where the risers and treads comply with Section 1011.5, the minimum depth of the tread is 13 inches (330 mm) and not less than one *handrail* complying with Section 1014 is provided within 30 inches (762 mm) of the centerline of the normal path of egress travel on the *stair*.
3. A step is permitted in *aisles* serving seating that has a difference in elevation less than 12 inches (305 mm) at locations not required to be *accessible* by the Americans with Disabilities Act ("ADA"), provided the risers and treads comply with Section 1030.14 and the *aisle* is provided with a *handrail* complying with Section 1030.16.

   Throughout a story in a Group I-2 occupancy, any change in elevation in portions of the *means of egress* that serve non-ambulatory *persons* shall be by means of a *ramp* or sloped walkway.

(Ord. No. 52-878, § 40, 1-13-26)

Sec. 15.01.410. Chapter 10, Section 1008.2 amended—Illumination required.

Chapter 10, Section 1008.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

1008.2 Illumination required The *means of egress* serving a room or space shall be illuminated at all times that the room or space is occupied.

Exceptions:

1. Occupancies in Group U.
2. Self-service storage units 100 square feet (9.3 m^2) or less in area and accessed directly from the exterior of the *building*.
3. Aisle access ways in Group A.
4. *Dwelling units* and *sleeping units* in Groups R-1, R-2 and R-3.
5. *Sleeping units* of Group I occupancies.

(Ord. No. 52-878, § 41, 1-13-26)

Sec. 15.01.420. Chapter 10, Section 1008.3.2 amended—Illumination level under emergency power.

Chapter 10, Section 1008.3.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

1008.3.2 Illumination level under emergency power Emergency lighting *facilities* shall be arranged to provide initial illumination that is not less than an average of 1 foot-candle (11 lux) and a minimum at any point of 0.1 foot-candle (1 lux) measured along the path of egress at floor level. Illumination levels shall be permitted to decline to 0.6 foot-candle (6 lux) average and a minimum at any point of 0.06 foot-candle (0.6 lux) at the end of the emergency lighting time duration. A maximum-to-minimum illumination uniformity ratio of 40 to 1 shall not be exceed. In Group I-2 occupancies, failure of single lamp in a luminaire shall not reduce the illumination level to less than 0.2 foot-candle (2.2 lux).

Exception: Emergency lighting *facilities* shall be arranged at intervals not to exceed 50 feet (15,240 mm) on center or 25 feet (7,620 mm) in any one direction along the path or egress. Obstructions or changes in direction or exit travel shall be considered the conclusion of the emergency light *facility*.

(Ord. No. 52-878, § 42, 1-13-26)

Sec. 15.01.430. Chapter 10, Section 1009.1 amended—Accessible means of egress required.

Chapter 10, Section 1009.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

1009.1 Accessible means of egress required *Accessible means of egress* shall comply with this section. Accessible spaces shall be provided with not less than one *accessible means of egress*. Where more than one means of egress is required by Section 1006.2 or 1006.3 from any accessible space, each accessible portion of the space shall be served by not less than two *accessible means of egress*.

Exceptions:

1. One *accessible means of egress* is required from an *accessible mezzanine* level in accordance with Section 1009.3, 1009.4 or 1009.5, unless *accessible means of egress* is not required by Americans with Disabilities Act Accessibility Guidelines Sec. 206.2.3 or 206.2.4.
2. In assembly areas with ramped *aisles* or stepped *aisles,* one *accessible means of egress* is permitted where the *common path of egress travel* is accessible and meets the requirements in Section 1030.8.
3. At least one *accessible means of egress* shall connect each story and mezzanine in multi-story *buildings* and *facilities* per Americans with Disabilities Act Accessibility Guidelines Sec. 206.2.3.
4. At least one *accessible means of egress* shall connect accessible *building* or *facility* entrances will all accessible spaces and elements within the *building* or *facility* which are otherwise connected by a circulation path unless exempted by Americans with Disabilities Act Accessibility Sec. 206.2.3 Exceptions 1 through 7 per Americans Disabilities Act Accessibility Guidelines Sec. 206.2.4 including the exceptions.

(Ord. No. 52-878, § 43, 1-13-26)

Sec. 15.01.440. Chapter 10, Section 1009.2.2 amended—Doors.

Chapter 10, Section 1009.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

1009.2.2 Doors Where doors are part of an *accessible route* to provide access to an exit, *area of refuge* or exterior area of assisted rescue, maneuvering clearance shall be provided at such doors as required by Americans with Disabilities Act Accessibility Guidelines Sec. 404.2.4 in the direction of egress. Where doors lead to an *area of refuge* or exterior area for assisted rescue and reentry to the floor is possible, door maneuvering clearances shall be provided on both sides of the door.

Exception: Maneuvering clearances are not required a door to exit stairways for levels above and below the *level of exit discharge* where the exit enclosure does not include an *area of refuge*.

(Ord. No. 52-878, § 44, 1-13-26)

Sec. 15.01.450. Chapter 10, Section 1010.1.1 amended—Size of doors.

Chapter 10, Section 1010.1.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

1010.1.1 Size of doors The required capacity of each door opening shall be sufficient for the occupant load thereof and shall provide a minimum clear opening width of 32 inches (813 mm). The clear opening width of doorways with swinging doors shall be measured between the face of the door and the frame stop, with the door open 90 degrees (1.57 rad). Where this section requires a minimum clear opening width of 32 inches (813 mm) and a door opening includes two door leaves without a mullion, one leaf shall provide a minimum clear opening width of 32 inches (813 mm). In Group I-2, doors serving as means of egress doors where used for the movement of beds shall provide a minimum clear opening width

of 41½ inches (1,054 mm). The minimum clear opening height of doors shall be not less than 80 inches (2,032 mm).

Exceptions:

1. In Group R-2 and R-3 *dwelling* and *sleeping units* that are not required to be an *Accessible unit, Type A unit* or *Type unit,* the minimum width shall not apply to door openings that are not part of the required *means of egress.*

2. In Group I-3, door openings to resident sleeping units that are not required to be an Accessible unit shall have a minimum clear opening width of 32 inches (813 mm).

3. Door openings to storage closets less than 10 square feet (0.93 m^2) in area shall not be limited by the minimum clear opening width.

4. Door openings within a *dwelling unit* or *sleeping unit* shall have a minimum clear opening height of 78 inches (1,881 mm).

5. In *dwelling* and *sleeping units* that are not required to be *Accessible, Type A* or *Type B units*, exterior door openings other than the required exit door shall have a minimum clear opening height of 76 inches (1,930 mm).

6. In Groups I-1, R-2, R-3 and R-4, in *dwelling* and *sleeping units* that are not required to be *Accessible, Type A* or *Type B units,* the minimum clear opening widths shall not apply to interior egress doors.

7. Door openings required to be accessible with *Type B units* intended for user passage shall have a minimum clear opening width of 32 inches (813 mm).

8. Doors serving sauna compartments, toilet compartments or dressing, fitting or changing compartments that are not required to be accessible shall have a minimum clear opening width of 20 inches (508 mm).

(Ord. No. 52-878, § 45, 1-13-26)

Sec. 15.01.460. Chapter 10, Section 1010.1.4 amended—Floor elevation.

Chapter 10, Section 1010.1.4, of the International Fire Code, 2024 Edition, is amended to read as follows:

1010.1.4 Floor elevation There shall be a floor or landing on each side of a door. Such floor or landing shall be at the same elevation on each side of the door. Landings shall be level except for exterior landings, which are permitted to have a slope not to exceed 0.25 unit vertical in 12 unit's horizontal (2-percent slope).

Exceptions:

1. At doors serving individual *dwelling units* or *sleeping units* in R-2 and R-3, a door is permitted to open at the top step of an interior *flight* of stairs, provided that the door does not swing over the top step.

2. At exterior doors serving Groups F, H, R-2 and S and where such doors are not part of *accessible route,* the landing at an exterior door shall not be more than 7 inches (178 mm) below the landing on the egress side of the door, provided that the door, other than an exterior storm or screen door, does not swing over the landing.

3. At exterior doors serving Group U and individual *dwelling units* and *sleeping units* in Groups R-2 and R-3, and where such units are not required to be *Accessible units, Type A units* or *Type B units,* the landing at an exterior doorway shall be not more than 7¾ inches (197 mm) below the landing on the egress side of the door. Such doors, including storm or screen doors, shall be permitted to swing over either landing.

Exceptions:

1. Storm or screen doors are permitted to swing over exterior *flight* of stairs.

2. An exterior door is permitted to open at the top step of an exterior *flight* of stairs from a patio, provided there no more than four risers.

4. Variations in elevation due to differences in finish materials, but not more than ½ inch (12.7 mm).

5. Exterior decks, patios or balconies that are part of Type B *dwelling units* or *sleeping units,* that have impervious surfaces and that are not more than 4 inches (102 mm) below finish floor level of the adjacent interior space of the *dwelling unit* or *sleeping unit.*

6. Doors, gates, and panels that serve as access points to building equipment rooms that are not normally occupied, except where serving the following:

   6.1 Rooms containing electrical equipment rated 800 amperes or more that contain overcurrent devices, switching devices or control devices and where the exit or exit access door is less than 25 feet (7,620 mm) from the equipment working space as required by NFPA 70. See section 1010.2.8.2.

   6.2 Rooms or spaces having floor area larger than 1,000 square feet (93 m^2), containing a refrigerant evaporator and maintained at a temperature below 68°F (20°C). See Section 1006.2.2.3.

(Ord. No. 52-878, § 46, 1-13-26)

Sec. 15.01.470. Chapter 10, Section 1010.2.2 amended—Hardware.

Chapter 10, Section 1010.2.2. of the International Fire Code, 2024 Edition, is amended to read as follows:

1010.2.2 Hardware Door handles, pulls, latches, locks and other operating devices on doors required to be *accessible* by the Americans with Disabilities Act ("ADA") shall not require tight grasping, tight pinching or twisting of the wrist to operate.

(Ord. No. 52-878, § 47, 1-13-26)

Sec. 15.01.480. Chapter 10, Section 1011.5.2 amended—Riser height and tread depth.

Chapter 10, Section 1011.5.2 of the International Fire Code, 2024 Edition, is incorporated to read as follows:

1011.5.2 Riser height and tread depth Stair riser heights shall be 7 inches (178 mm) maximum and 4 inches (102 mm) minimum. The riser height shall be measured vertically between the *nosings* of adjacent treads or between the stairway landing and the adjacent tread. Rectangular tread depths shall be 11 inches (279 mm) minimum measured horizontally between the vertical planes of the foremost projection of adjacent treads and at a right angle to the tread's *nosing*. *Winder* treads shall have a minimum tread depth of 11 inches (279 mm) between the vertical planes of the foremost projection of adjacent treads at the intersections with the walk line and a minimum tread depth of 10 inches (254 mm) within the clear width of the stair.

Exceptions:

1. *Spiral stairways* in accordance with Section 1011.10.

2. *Stairways* connecting stepped *aisles* to cross *aisles* or concourses shall be permitted to use the riser/tread dimension in Section 1030.14.2.

3. In Group R-3 occupancies; within *dwelling units* in Group R-2 occupancies; and in Group U occupancies that are accessory to a Group R-3 occupancy or accessory to individual *dwelling units* in Group R-2 occupancies; the maximum riser height shall be 7¾ inches (197 mm); the minimum tread depth shall be 10 inches (254 mm); the minimum *winder* tread depth at the walk line shall be 10 inches (254 mm); and the minimum *winder* tread depth shall be 6 inches (152 mm). A

nosing projection not less than ¾ inches (19.1 mm) but not more than 1¼ inches (32 mm) shall be provided on *stairways* with solid risers where the tread depth is less than 11 inches (297 mm).

4. See Section 503.1 of the *International Existing Building Code* for the replacement of existing *stairways.*

5. In Group 1-3 *facilities, stairways* providing access to guard towers, observation stations and control rooms, not more than 250 square feet (23 m^2) in area, shall be permitted to have a maximum riser height of 8 inches (203 mm) and minimum tread of 9 inches (229 mm).

(Ord. No. 52-878, § 48, 1-13-26)

Sec. 15.01.490. Chapter 10, Section 1011.11 amended—Handrails.

Chapter 10, Section 1011.11 of the International Fire Code, 2024 Edition, is amended to read as follows:

1011.11 Handrails *Flights of stairways* shall have *handrails* on each side and shall comply with Section 1014. Where glass is used to provide the *handrail,* the *handrail* shall comply with Section 2407.

Exceptions:

1. *Flights of stairways* within *dwelling units* and *flights* of *spiral stairways* are permitted to have a *handrail* on one side only.

2. Decks, patios and walkways that have a single change in elevation where the landing depth on each side of the change of elevation is greater than what is required for a landing do not require *handrails.*

3. In Group R-3 occupancies, a change in elevation consisting of a single riser at an entrance or egress door does not require *handrails.*

4. Changes in room elevations of three or fewer risers within *dwelling units* and *sleeping units* in Groups R-2 and R-3 do not require *handrails.*

5. Where a platform lift is in a stationary position and the floor of the platform lift serves as the upper landing of a *stairway, handrails* shall not be required on the *stairway,* provided that all of the following criteria are met:

   5.1.1. The *stairway* contains not more than two risers.

   5.1.2. A handhold, positioned horizontally or vertically, is located on one side of the *stairway* adjacent to the top landing.

   5.1.3. The handhold is located not less than 34 inches (864 mm) and not more than 42 inches (1,067 mm) above the bottom landing of the *stairway.*

   5.1.4. The handhold gripping surface complies with Section 1014.4, and is not less than 4.5 inches (114 mm) in length.

6. Changes in elevations of only one riser do not require *handrails.*

(Ord. No. 52-878, § 49, 1-13-26)

Sec. 15.01.500. Chapter 10, Section 1012.1 amended—Scope.

Chapter 10, Section 1012.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

1012.1 Scope The provisions of this section shall apply to *ramps* used as a component of a *means of egress.*

Exceptions:

1. Ramped *aisles* within assembly rooms or spaces shall comply with the provisions in Section 1030.

2. Curb ramps shall comply with Americans with Disabilities Act Accessibility Guidelines Sec. 406.1.

3. Vehicle ramps in parking garages for pedestrian exit access shall not be required to comply with Sections 1012.3 through 1012.10 where they are not an *accessible*

route serving accessible parking spaces, other required accessible elements or part of an *accessible means of egress.*

(Ord. No. 52-878, § 50, 1-13-26)

Sec. 15.01.510. Section 1012.6.3 amended—Length.

Chapter 10, Section 1012.6.3 of the International Fire Code, 2024 Edition, is amended to read as follows:

1012.6.3 Length The landing length shall be 60 inches (1,525 mm) minimum.

Exceptions:

1. In Group R-2 and R-3 individual *dwelling* and *sleeping units*, landings are permitted to be 36 inches (914 mm) minimum.
2. Where the *ramp* is not part of an *accessible* route, the length of the landing shall not be required to be more than 48 inches (1219 mm) in the direction of travel.
3. The minimum clear opening width shall not apply to doors for nonassessable shower or sauna compartments.
4. The minimum clear opening width shall not apply to the doors for no accessible toilet stalls.

(Ord. No. 52-878, § 51, 1-13-26)

Sec. 15.01.520. Chapter 10, Section 1012.6.4 amended—Change of direction.

Chapter 10, Section 1012.6.4 of the International Fire Code, 2024 Edition, is amended to read as follows:

1012.6.4 Change in direction Where changes in direction of travel occur at landings provided between ramp runs, the landings shall be 60 inches by 60 inches (1,524 mm by 1,524 mm) minimum.

Exception: In Group R-2 and R-3 individually dwelling or sleeping units, landings are permitted to be 36 inches by 36 inches (914 mm by 914 mm) minimum.

(Ord. No. 52-878, § 52, 1-13-26)

Sec. 15.01.530. Chapter 10, Section 1012.6.5 amended—Doorways.

Chapter 10, Section 1012.6.5 of the International Fire Code, 2024 Edition, is amended to read as follows:

1012.6.5 Doorways Where doorways are located adjacent to a ramp landing, maneuvering clearances required by Americans with Disabilities Act Accessibility Guidelines Sec. 404.2.4 are permitted to overlap the required landing area.

(Ord. No. 52-878, § 53, 1-13-26)

Sec. 15.01.540. Chapter 10, Section 1012.10 amended—Edge protection.

Chapter 10, Section 1012.10 of the International Fire Code, 2024 Edition, is amended to read as follows:

1012.10 Edge protection Edge protection complying with Section 1012.10.1 or 1012.10.2 shall be provided on each side of ramp runs and at each side of ramp landings.

Exceptions:

1. Edge protection is not required on *ramps* that are not required to have *handrails,* provided they have flared sides that comply with the Americans with Disabilities Act Accessibility Guidelines Sec. 406.3.
2. Edge protection is not required on the sides of ramp landings serving an adjoining ramp run of *stairway.*
3. Edge protection is not required on the sides of ramp landings having a vertical drop off of not more than ½ inch (12.7 mm) within 10 inches (254 mm) horizontally of the required landing area.

(Ord. No. 52-878, § 54, 1-13-26)

Sec. 15.01.550. Chapter 10, Section 1013.1 amended—Where required.

Chapter 10, Section 1013.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

1013.1 Where required Exits and *exit access* doors shall be marked by an *approved*

exit sign readily visible from any direction of egress travel. The path of egress travel to *exits* and within *exits* shall be marked by readily visible exit signs to clearly indicate the direction of egress travel in cases where the exit or the path of egress travel is not immediately visible to the occupants. Intervening means of egress doors within *exits* shall be marked by exit signs. Exit sign placement shall be such that any point in an *exit access* corridor or *exit passageway* is within 100 feet (30,480) or the *listed* viewing distance of the sign, whichever is less, from the nearest visible *exit* sign. Exit signs required at doors shall not be located more than 12 feet (3,658 mm) above the finish floor, nor more than 2 feet (610 mm) from either edge of door.

Exceptions:

1. Exit signs are not required in rooms or areas that require only one *exit* or *exit access.*
2. Main exterior exit doors or gates that are obviously and clearly identifiable as *exits* need not have exit signs where *approved* by the *building official.*
3. Exit signs are not required in occupancies in Group U and individual *sleeping units* or *dwellings units* in Group R-1, R-2 or R-3.
4. Exit signs are not required in dayrooms, sleeping rooms or *dormitories* in occupancies in Group I-3.
5. In occupancies in Groups A-4 and A-5, exit signs are not required on the seating side of vomitories or openings into seating areas where exit signs are provided in the concourse that are readily apparent from the vomitories. Egress lighting to identify each vomitory or opening within the seating area in an emergency.

(Ord. No. 52-878, § 55, 1-13-26)

Sec. 15.01.560. Section 1015.2 amended—Where required.

Chapter 10, Section 1015.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

1015.2 Where required *Guards* shall be located along open-sided walking surfaces, such as *mezzanines, equipment platforms, aisles, stairs, ramps* and landings that are located more than 30 inches (762 mm) measured vertically to the floor or grade below at any point within 36 inches (914 mm) horizontally to the edge of the open side and at the perimeter of occupiable roofs. *Guards* shall be adequate in strength and attachment in accordance with Section 1607.9.

Exceptions: *Guards* are not required for the following locations:

1. On the loading side of loading docks or piers.
2. On the audience side of *stages* and raised *platforms,* including *stairs* leading up to the *stage* and raised *platforms.*
3. On raised *stage* and *platform* floor areas, such as runways, *ramps* and side *stages* used for entertainment or presentations.
4. At vertical openings in the performance area of *stages* and *platforms.*
5. At elevated walking surfaces appurtenant to *stages* and *platforms* for access to and utilization of special lighting or equipment.
6. Along vehicle service pits not accessible to the public.
7. In assembly seating areas at cross *aisles* in accordance with Section 1030.17.2.
8. On the loading side of station platforms on fixed guideway transit or passenger rail systems.
9. Portions of an *occupiable roof* located less than 30 inches (762 mm) measured vertically to adjacent unoccupiable roof areas where *approved guards* are present at the perimeter of the roof.
10. At portions of an *occupiable roof* where an *approved* barrier is provided.
11. At window wells a protective cover designed to meet the amended roof live load requirements of Chapter 16 of the International Building Code may be substituted for *guards.* The window well covers shall be provided with an

emergency egress hatch located above the ladder or *stairway,* with the minimum egress opening maintained. The force required to open the egress hatched shall not exceed 30 pounds (133.45 N). Window well covers and gates shall be constructed of materials approved for exterior use.

(Ord. No. 52-878, § 56, 1-13-26)

Sec. 15.01.570. Chapter 10, Section 1018.3 amended—Aisles in Groups B and M.

Chapter 10, Section 1018.3 of the International Fire Code, 2024 Edition, is amended to read as follows:

1018.3 Aisles in Groups B and M In Group B and M Occupancies, the minimum clear aisle width shall be determined by Section 1005.1 for the *occupant load* served, but shall be not less than that required for *corridors* by Section 1020.3.

Exception: Nonpublic *aisles* serving less than 50 people and not required to be *accessible* by the Americans with Disabilities Act ("ADA") need not exceed 28 inches (711 mm) in width.

(Ord. No. 52-878, § 57, 1-13-26)

Sec. 15.01.580. Chapter 10, Section 1018.5 amended—Aisles in other than assembly spaces and Group B and M.

Chapter 11, Section 1018.5 of the International Fire Code, 2024 Edition, is amended to read as follows:

1018.5 Aisles in other than assembly spaces and Group B and M In other than rooms or spaces used for assembly purposes and Group B and M occupancies, the minimum clear aisle capacity shall be determined by Section 1005.1 for the *occupant load* served, but the width shall be not less than that required for *corridors* by Section 1020.3.

Exception: Nonpublic *aisles* serving less than 50 people and not required to be *accessible* by the Americans with Disabilities Act ("ADA") need not exceed 28 inches (711 mm) in width.

(Ord. No. 52-878, § 58, 1-13-26)

Sec. 15.01.590. Chapter 10, Section 1020.2 amended—Construction.

Chapter 10, Section 1020.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

1020.2 Construction *Corridors* shall be fire-resistance rated in accordance with Table 1020.2. The *corridor* walls required to be fire-resistance rated shall comply with Section 708 for *fire partitions.*

Exceptions:

1. A *fire-resistance rating* is not required for *corridors* in an occupancy in Group E where each room that is used for instruction has not less than one door opening directly to the exterior and rooms for assembly purposes have not less than one-half of the required means of egress doors opening directly to the exterior. Exterior doors specified in this exception are required to be at ground level.
2. A *fire-resistance rating* is not required for *corridors* contained within a *dwelling unit* or *sleeping unit* in an occupancy in Groups I-1 and R.
3. A *fire-resistance rating* is not required for *corridors* in *open parking garages.*
4. A *fire-resistance rating* is not required for corridors in an occupancy in Group B that is a space requiring only single *means of egress* complying with Section 1006.2.
5. *Corridors* adjacent to the *exterior walls* of *buildings* shall be permitted to have unprotected openings on unrated *exterior walls* where unrated wall are permitted by Table 705.5 and unprotected openings are permitted by Table 705.9.
6. A *fire-resistance rating* is not required for *corridors* not exceeding 20 feet (6,096 mm) in length, when they provide direct, obvious and unobstructed means of travel to an *exit* or until egress is provided from the building, provide that all openings, except the entrance to the corridor, are protected with self-closing doors of non-

combustible construction or solid wood core, not less than 1 inch (335 mm) in thickness or fixed glazing. Use of rolling or sliding doors shall not be permitted, unless equipped with a closing device which operates with the actuation of an approved listed smoke detector.

(Ord. No. 52-878, § 59, 1-13-26)

Sec. 15.01.600. Chapter 11, Section 1103.2 amended—Emergency responder communication enhancement in existing buildings.

Chapter 11, Section 1103.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

1103.2 - Emergency responder communication enhancement in existing buildings. Existing buildings and/or remodels other than R-3 and R-4 that do not have approved in-building emergency responder communication enhancement for emergency responders in the building based on existing coverage levels of the public safety communication system are required to submit an in-building coverage test to the fire code official. The fire code official may require an in-building emergency responder communication enhancement system if it is necessary to promote public safety.

(Ord. No. 52-878, § 60, 1-13-26)

Sec. 15.01.610. Chapter 28, Section 2810.6 amended—Outdoor storage of pallet at pallet manufacturing and recycling facilities.

Chapter 28, Section 2810.6 of the International Fire Code, 2024 Edition, is amended to read as follows:

315.7 Outdoor pallet storage. Pallets stored outdoors shall comply with Sections 315.7 through 315.7.7. Pallets stored within a building shall be protected in accordance with Chapter 32.

315.7.1 Storage beneath overhead projections from buildings. Where buildings are equipped throughout with an automatic sprinkler system, the outdoor storage of pallets under eaves, canopies or other projections or over hangs are prohibited except where automatic sprinklers are installed under such eaves, canopies or other projections or overhangs.

315.7.2 Distance to lot line. Pallet storage shall not be located within 10 feet (3,048 mm) of a lot line.

315.7.3 Storage height. Pallet storage shall not exceed 20 feet (6,096 mm) in height.

315.7.4 Pallet pile stability and size. Pallet stacks shall be arranged to form stable piles. Individual pallet piles shall cover an area not greater than 400 square feet (37 m2).

315.7.5 Pallet types. Pallets shall be all wood, with slatted or solid top or bottom, with metal fasteners, or shall be plastic or composite pallets, listed and labeled in accordance with UL 2335 or FM 4996. Plastic pallets shall be both solid and gridded deck, independent of the pallet manufacturing process, type of resin used in fabrication or geometry of the pallet.

315.7.6 Pile separation distances. In addition to the other requirements of this section, pallet stacks and piles shall be separated in accordance with Sections 315.7.6.1 and 315.7.6.2.

315.7.6.1 Building separation. Pallet stacks and piles shall be separated from buildings in accordance with Table 315.7.6(1) for wood pallets and Table 315.7.6(2) for plastic pallets.

315.7.6.2 Separation from other pallets and on-site storage. Pallets shall be separated from other pallet piles and other storage in accordance with Table 315.7.6(3) for wood pallets and Table 315.7.6(4) for plastic pallets.

315.7.7 Prohibited locations. Pallets shall not be stored underneath high-voltage transmission lines, elevated roadways or elevated railways.

TABLE 315.7.6(1)
SEPARATION DISTANCE BETWEEN WOOD PALLET STACKS AND BUILDINGS

WALL CONSTRUCTION	OPENING TYPE	WOOD PALLET SEPARATION DISTANCE (feet)		
		≤ 50 Pallets	51 to 200 Pallets	>200 Pallets
Masonry	None	2	2	2
Masonry	Fire-rated glazing with open sprinklers	2	5	20
Masonry	Fire-rated glazing	10	5	20
Masonry	Plain glass with open sprinklers	10	5	20
Noncombustible	None	10	5	20
Wood with open sprinklers	—	10	5	20
Wood	None	15	30	90
Any	Plain glass	15	30	90

For SI: 1 foot = 304.8 mm.

TABLE 315.7.6(3)
SEPARATION FROM OTHER PALLET PILES AND ON-SITE STORAGE (WOOD PALLETS)

	WOOD PALLET SEPARATION DISTANCE (feet)		
	≤ 50 Pallets	51 to 200 Pallets	>200 Pallets
Between pallet piles	7.5	15	45
Other on-site storage	7.5	15	45

For SI: 1 foot = 304.8 mm.

TABLE 315.7.6(4)
SEPARATION FROM OTHER PALLET PILES AND ON-SITE STORAGE (PLASTIC PALLETS)

	PLASTIC PALLET SEPARATION DISTANCE (feet)		
	≤ 50 Pallets	51 to 200 Pallets	>200 Pallets
Between pallet piles	15	40	75
Other on-site storage	15	40	75

For SI: 1 foot = 304.8 mm.

(Ord. No. 52-878, § 61, 1-13-26)

Sec. 15.01.620. Chapter 28, Section 2810.7 amended—Outdoor storage of pallet at pallet manufacturing and recycling facilities.

Chapter 28, Section 2810.7 of the International Fire Code, 2024 Edition, is amended to read as follows:

315.7 Outdoor pallet storage. Pallets stored outdoors shall comply with Sections 315.7 through 315.7.7. Pallets stored within a building shall be protected in accordance with Chapter 32.

315.7.1 Storage beneath overhead projections from buildings. Where buildings are equipped throughout with an automatic sprinkler system, the outdoor storage of pallets under eaves, canopies or other projections or over hangs are prohibited except where automatic sprinklers are installed under such eaves, canopies or other projections or overhangs.

315.7.2 Distance to lot line. Pallet storage shall not be located within 10 feet (3,048 mm) of a lot line.

315.7.3 Storage height. Pallet storage shall not exceed 20 feet (6,096 mm) in height.

315.7.4 Pallet pile stability and size. Pallet stacks shall be arranged to form stable piles. Individual pallet piles shall cover an area not greater than 400 square feet (37 m2).

315.7.5 Pallet types. Pallets shall be all wood, with slatted or solid top or bottom, with metal fasteners, or shall be plastic or composite

pallets, listed and labeled in accordance with UL 2335 or FM 4996. Plastic pallets shall be both solid and gridded deck, independent of the pallet manufacturing process, type of resin used in fabrication or geometry of the pallet.

315.7.6 Pile separation distances. In addition to the other requirements of this section, pallet stacks and piles shall be separated in accordance with Sections 315.7.6.1 and 315.7.6.2.

315.7.6.1 Building separation. Pallet stacks and piles shall be separated from buildings in accordance with Table 315.7.6(1) for wood pallets and Table 315.7.6(2) for plastic pallets.

315.7.6.2 Separation from other pallets and on-site storage. Pallets shall be separated from other pallet piles and other storage in accordance with Table 315.7.6(3) for wood pallets and Table 315.7.6(4) for plastic pallets.

315.7.7 Prohibited locations. Pallets shall not be stored underneath high-voltage transmission lines, elevated roadways or elevated railways.

TABLE 315.7.6(1)
SEPARATION DISTANCE BETWEEN WOOD PALLET STACKS AND BUILDINGS

WALL CONSTRUCTION	OPENING TYPE	WOOD PALLET SEPARATION DISTANCE (feet)		
		≤ 50 Pallets	51 to 200 Pallets	>200 Pallets
Masonry	None	2	2	2
Masonry	Fire-rated glazing with open sprinklers	2	5	20
Masonry	Fire-rated glazing	10	5	20
Masonry	Plain glass with open sprinklers	10	5	20
Noncombustible	None	10	5	20
Wood with open sprinklers	—	10	5	20
Wood	None	15	30	90
Any	Plain glass	15	30	90

For SI: 1 foot = 304.8 mm.

TABLE 315.7.6(3)
SEPARATION FROM OTHER PALLET PILES AND ON-SITE STORAGE (WOOD PALLETS)

	WOOD PALLET SEPARATION DISTANCE (feet)		
	≤ 50 Pallets	51 to 200 Pallets	>200 Pallets
Between pallet piles	7.5	15	45
Other on-site storage	7.5	15	45

For SI: 1 foot = 304.8 mm.

TABLE 315.7.6(4)
SEPARATION FROM OTHER PALLET PILES AND ON-SITE STORAGE (PLASTIC PALLETS)

	PLASTIC PALLET SEPARATION DISTANCE (feet)		
	≤ 50 Pallets	51 to 200 Pallets	>200 Pallets
Between pallet piles	15	40	75
Other on-site storage	15	40	75

For SI: 1 foot = 304.8 mm.

(Ord. No. 52-878, § 62, 1-13-26)

Sec. 15.01.630. Chapter 28, Section 2810.8 amended—Outdoor storage of pallet at pallet manufacturing and recycling facilities.

Chapter 28, Section 2810.8 of the International Fire Code, 2024 Edition, is amended to read as follows:

315.7 Outdoor pallet storage. Pallets stored outdoors shall comply with Sections 315.7 through 315.7.7. Pallets stored within a building shall be protected in accordance with Chapter 32.

315.7.1 Storage beneath overhead projections from buildings. Where buildings are equipped throughout with an automatic sprinkler system, the outdoor storage of pallets under eaves, canopies or other projections or over hangs are prohibited except where automatic sprinklers are installed under such eaves, canopies or other projections or overhangs.

315.7.2 Distance to lot line. Pallet storage shall not be located within 10 feet (3,048 mm) of a lot line.

315.7.3 Storage height. Pallet storage shall not exceed 20 feet (6096 mm) in height.

315.7.4 Pallet pile stability and size. Pallet stacks shall be arranged to form stable piles. Individual pallet piles shall cover an area not greater than 400 square feet (37 m2).

315.7.5 Pallet types. Pallets shall be all wood, with slatted or solid top or bottom, with metal fasteners, or shall be plastic or composite pallets, listed and labeled in accordance with UL 2335 or FM 4996. Plastic pallets shall be both solid and gridded deck, independent of the pallet manufacturing process, type of resin used in fabrication or geometry of the pallet.

315.7.6 Pile separation distances. In addition to the other requirements of this section, pallet stacks and piles shall be separated in accordance with Sections 315.7.6.1 and 315.7.6.2.

315.7.6.1 Building separation. Pallet stacks and piles shall be separated from buildings in accordance with Table 315.7.6(1) for wood pallets and Table 315.7.6(2) for plastic pallets.

315.7.6.2 Separation from other pallets and on-site storage. Pallets shall be separated from other pallet piles and other storage in accordance with Table 315.7.6(3) for wood pallets and Table 315.7.6(4) for plastic pallets.

315.7.7 Prohibited locations. Pallets shall not be stored underneath high-voltage transmission lines, elevated roadways or elevated railways.

TABLE 315.7.6(1)
SEPARATION DISTANCE BETWEEN WOOD PALLET STACKS AND BUILDINGS

WALL CONSTRUCTION	OPENING TYPE	WOOD PALLET SEPARATION DISTANCE (feet)		
		≤ 50 Pallets	51 to 200 Pallets	>200 Pallets
Masonry	None	2	2	2
Masonry	Fire-rated glazing with open sprinklers	2	5	20
Masonry	Fire-rated glazing	10	5	20
Masonry	Plain glass with open sprinklers	10	5	20
Noncombustible	None	10	5	20
Wood with open sprinklers	—	10	5	20
Wood	None	15	30	90
Any	Plain glass	15	30	90

For SI: 1 foot = 304.8 mm.

TABLE 315.7.6(3)
SEPARATION FROM OTHER PALLET PILES AND ON-SITE STORAGE (WOOD PALLETS)

	WOOD PALLET SEPARATION DISTANCE (feet)		
	≤ 50 Pallets	51 to 200 Pallets	>200 Pallets
Between pallet piles	7.5	15	45
Other on-site storage	7.5	15	45

For SI: 1 foot = 304.8 mm.

TABLE 315.7.6(4)
SEPARATION FROM OTHER PALLET PILES AND ON-SITE STORAGE (PLASTIC PALLETS)

	PLASTIC PALLET SEPARATION DISTANCE (feet)		
	≤ 50 Pallets	51 to 200 Pallets	>200 Pallets
Between pallet piles	15	40	75
Other on-site storage	15	40	75

For SI: 1 foot = 304.8 mm.

(Ord. No. 52-878, § 63, 1-13-26)

Sec. 15.01.640. Chapter 41, Section 4106—Mobile Food Preparation Vehicles—Omitted.

Chapter 41, Section 4106 of the International Fire Code, 2024 Edition, related to Mobile Food Preparation Vehicles is hereby omitted. Mobile Food Vendors shall comply with the provisions of Chapter 3.15 of the Code of the City of Wichita. (Ord. No. 52-878, § 64, 1-13-26)

Sec. 15.01.650. Chapter 56, Section 5601.3 amended—Fireworks.

Chapter 56, Section 5601.3 of the International Fire Code, 2024 Edition, is amended to read as follows:

A. Definitions.

1. "Aerial Firework" means any Consumer Firework Aerial Firework which is a device designed to produce its effect(s) in the air; including but

not limited to devices which shoot flaming balls or objects, cake or mortal fireworks.

"Bottle Rocket" means any pyrotechnic device which is classified as a C explosive by the United State Department of Transportation under 49 C.F.R. § 173.53 (1990), which is mounted on a stick or wire, and projects into the air when ignited with or without reports and includes any device with the same configuration with or without reports, which may be classified as pipe or trough rocket.

"Consumer Firework" means any firework classified as a Division 1.4g firework by the United States Department of Transportation.

"Fire Code Official" means the Wichita Fire Department Fire Marshal.

"Hobbyist Manufacturer" means any person who manufactures consumer fireworks, display fireworks or articles pyrotechnic for their personal use.

"Manufacturer" means any person engaged in the manufacture of fireworks of any kind in the State of Kansas. Manufacturer shall also include any person engaged in the assembly of consumer fireworks or components parts into a finished item or assortment, but shall not include repackaging finished goods into an assortment.

"Permanent Retailer" means any person who is licensed by the State Fire Marshal to engage in the year-round retail sale of consumer fireworks, including the receipt and possession with intent to sell of consumer fireworks and the retail sale, delivery, consignment, gifting or other distributional retails of consumer fireworks to any person from a permanent structure at a permanent location with this state.

"Person" means any individual, partnership, firm, company, association, corporation, not-for-profit organization, or limited liability corporation.

"Safe and Sane Firework" means a Consumer Firework that does not leave the ground when ignited, including but not limited to: fountains, sparklers, smoke balls, snake-type fireworks, ground-spinning fireworks, pinwheels, most novelty fireworks, toy-trick noisemakers, and crackling fireworks.

Seasonal retailer means a person who receives consumer fireworks and sells, delivers, consigns, gives or other furnishes consumer fireworks only to the public for their personal use and only during the period set forth in Subsection E(2).

"Sky Lantern or Flying Lantern" means devices that require a heat source which produces heated air trapped in a balloon-type covering allowing the device to float in the air.

B. Fireworks Prohibited. It is unlawful for any person to:

1. Possess, handle, use, manufacture or store bottle rockets and Sky Lanterns.
2. Discharge, use or allow another to discharge or use any Safe and Sane Firework without permission from a Fire Code Official. Such restriction shall not apply during the period from 10:00 a.m. on June 27 through midnight on July 5. During such period, these fireworks may only be discharged during the hours of 10:00 a.m. to midnight.
3. Discharge, use or allow another to discharge or use any Aerial Firework

without permission from the Fire Code Official or designee. Such restriction shall not apply during the period from 10:00 a.m. on July 3 through midnight on July 5. During such period, these fireworks may only be discharged during the hours of 10:00 a.m. to midnight.

4. Discharge, use or allow another to discharge or use any class of firework on any day that a Fire Code Official has deemed them unsafe as a hazard posed to life or property.

5. Ignite or discharge fireworks into, under, or from a bicycle, motorcycle, electric scooter, car or any type of motor vehicle, whether moving or standing still or on a public roadway or the right-of-way adjoining a public roadway.

6. Discharge within 50 feet of any retail fireworks stand or facility where fireworks are stored or sold.

7. Possess, ignite or otherwise cause the discharge or allow another to possess, ignite or otherwise cause the discharge of any fireworks that are not Consumer Fireworks or any fireworks which are prohibited by Federal or State statutes or regulations.

C. Persons Responsible for Violations.

1. Minors: It shall be unlawful for an adult to allow or permit a person under the age of 18 to violate the provisions of Subsection B. For the purposes of this section, failure to supervise shall be synonymous with allow and/or permit. Adult is defined as any individual or person over the age of 18 years.

2. Owner/Occupant Responsibility: It is unlawful for an individual, owner, lessee, renter, proprietor, or any other person with control of the real property to allow, permit, host, consent to or facilitate a violation of Subsection B. An individual, owner, lessee, renter, proprietor, or any other person with control of the real property shall be presumed to have consented to the illegal use of fireworks on the property or adjacent right-of-way if law enforcement or fire officials observe and document the existence of the remnants of unlawful fireworks on the premises indicative of the use or display of such fireworks.

D. Enforcement.

1. Members of the Wichita Fire Department and Wichita Police Department are authorized to enforce this provision and all applicable provisions of Title 15 pertaining to the storage, use, handling, manufacture and possession of fireworks within the City of Wichita.

2. The sale of fireworks shall comply with requirements as determined by the City of Wichita Fire Marshal's Office and it shall be a violation of the law to fail to comply.

E. Permits.

1. Any person, individual or corporation desiring to sell fireworks within the corporate city limits of the City of Wichita shall obtain a permit from the Licensing Department authorizing the sale of such fireworks. An application shall be completed on a form provided by the Licensing Department. The fee for such permit shall be $1,500 per site payable to the City of Wichita. In addition to the fireworks permit, if sales are located within a tent, all firework sellers must comply with Chapter 1, Section 105.6.47, of the International Fire Code, 2024 Edition, including the payment of any applicable tent permit and inspection fees. In addition, sellers must comply with all administrative regulations set by the Kansas State Fire Marshal regarding the sale of

fireworks. The possession, storage, and sale of specific types of Division 1.4G fireworks shall comply with the following guidelines:

a. Fireworks shall comply with CPSC 16 CFR, Parts 1500-1507, and Dot 49 CFR, Parts 100-185 for Consumer Fireworks; and

b. Fireworks shall be classified as Class C and/or 1.4G.

2. Fireworks may be sold by Seasonal retailers from 10:00 a.m. to midnight, June 27 through July 4. It shall be unlawful to sell fireworks without a proper permit or outside the allowed hours of sale. The year round sale of consumer fireworks or the sale of consumer fireworks outside of the period referenced above by Permanent retailers, Seasonal Retailers or other firework licensees is prohibited within the corporate city limits of the City of Wichita.

3. At each sale location an informational sign approved by the Wichita Fire Department shall be posted in a conspicuous location and informational flyers shall be available so as to educate the public as to the firework ordinances in the City of Wichita. It shall be unlawful to sell fireworks from a location without posting the sign or having the flyers available to the public.

4. It is unlawful for any person to operate an outdoor display of fireworks, as required by Section 15.01.610 of this Code without first obtaining a license from the City of Wichita.

5. It is unlawful for any person to operate any indoor pyrotechnic article, as required by Section 15.01.620 of this Code without first obtaining a license from the City of Wichita.

6. It is unlawful for any Manufacturer or Hobbyist Manufacturer to manufacture or possess goods, fuses, ingredients or other compounds to manufacture consumer fireworks, display fireworks, or pyrotechnic articles without first obtaining a license from the office of the Kansas State Fire Marshal.

F. **Exceptions**. The provisions in this ordinance shall not apply to the following:

a. Toy smoke devices as defined in the American Pyrotechnic Association Standard No. 87-1, Section 3.2.3;

b. Toy paper caps as defined in the American Pyrotechnic Association Standard No. 87-1, Section 3.3;

c. The manufacture, storage, sale, or use of signals necessary for the safe operation of railroads or other classes of public or private transportation;

d. Fireworks, pyrotechnics or other explosive devices utilized by the military or naval forces of the United States or by any federal, state or local law enforcement officer; and

e. The sale or use of blank cartridges for ceremonial or theatrical or athletic events.

G. Penalties.

1. Any person convicted of violating the provisions of Subsections B or C of this ordinance shall be guilty of a misdemeanor punishable only by a fine of one thousand dollars ($1,000) or 60 hours of court ordered community service, or both, plus any applicable court costs. Any person convicted of a second offense of a violation of Subsections B or C shall be punished only by a fine of one thousand five hundred dollars ($1,500), and a conviction of a third or subsequent violation shall be punishable by only a fine of two thousand dollars ($2,000). The

municipal court may accept payment of such fine amount without an appearance by the person charged.

2. Any person violating any other provision of this ordinance shall be guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand five hundred dollars ($2,500) or by imprisonment for not more than one (1) year, or by both such fine and imprisonment. Such person shall be required to appear before the judge of the municipal court to answer for said charges.

H. Seizure of fireworks.

1. If fireworks are found to be stored, possessed or transported in violation of this Code, such fireworks may be seized by Wichita Police Department Officers or personnel of the Wichita Fire Department. Reasonable costs for the storage and destruction of such fireworks may be assessed against the party found to be in violation of the law, except that if an administrative hearing is requested, no person shall be assessed for storage costs incurred for more than 60 days after the completion of the hearing or the expiration of the time for seeking judicial review.

2. The owner of any fireworks seized may make written demand upon the Fire Marshal of the Wichita Fire Department for an administrative hearing. Where, after hearing, the Fire Marshal or a designee finds that there has been a violation of the provisions of the Code of the City of Wichita, the Wichita Fire Department may destroy or order the destruction of such fireworks or direct such other disposition of the fireworks as is deemed proper. Unless necessary to protect against a substantial threat to the public health, safety or welfare, the fireworks shall not be destroyed until the completion of the administrative hearing or expiration of the time for seeking judicial review. If the hearing officer finds there has been no violation, the fireworks shall be returned to their owner.

3. Where no claimant has appeared within 60 days of the seizure, demanded the return of the fireworks and proven, to the satisfaction of the Fire Marshal of the Wichita Fire Department, the claimant's title to and right of possession of such fireworks, the Wichita Fire Department may, without process and without liability, destroy or order the destruction of the fireworks or direct such other disposition thereof as is deemed proper.

4. Where the manufacture, condition, storage, packing or location of fireworks is such that their continued existence or transportation is an immediate danger to public safety, health or welfare, the Wichita Fire Department or a representative thereof may apply to the Sedgwick County District Court for an emergency ex parte order authorizing the Wichita Fire Department to destroy or dispose of the fireworks without liability to the owner thereof.

(Ord. No. 52-878, § 65, 1-13-26)

Sec. 15.01.660. Chapter 56, Section 5601.2.4 amended—Financial responsibility.

Chapter 56, Section 5601.2.4 of the International Fire Code, 2024 Edition, is incorporated to read as follows:

5601.2.4 Financial responsibility. Before a permit is issued, as required by Section 5601.2, the applicant shall file with the City Clerk a corporate surety bond in the principal sum of not less than $500,000 or a public liability insurance policy for the same amount,

for injury or death to persons or injury to property for the purpose of the payment of all damages to persons or property which arise from, or are caused by, the conduct of any act authorized by the permit upon which any judicial judgment results. The fire code official is authorized to specify a greater or lesser amount when, in his or her opinion, conditions at the location of use indicate a greater or lesser amount is required. Government entities shall be exempt from this bond or insurance requirement.

(Ord. No. 52-878, § 66, 1-13-26)

Sec. 15.01.670. Chapter 56, Section 5608.2 amended—Permit applications.

Chapter 56, Section 5608.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

5608.2 Permit Applications. Permits shall be required as set forth in Section 105.5 and regulated in accordance with this section. Permit application shall be made not less than fourteen (14) days prior to the scheduled date of the display. No permit shall be submitted more than sixty (60) days prior to the scheduled date of display unless a signed contract for such display is in the applicant's possession and presented at the time of application. The permit application shall include a diagram of the grounds on which the display is to be held showing the point or points at which the fireworks are to be discharged; the location of buildings, highways, and other lines of communication; the lines behind which the audience will be restrained; and the location of nearby trees, telegraph or telephone lines and other overhead obstructions. A plan establishing procedures to follow and actions to be taken in the event that a shell fails to ignite in, or discharge from, a mortar or fails to function over the fallout area or other malfunctions shall be provided to the fire code official. At the time of permit application, the fire code official shall be consulted regarding the requirements for a standby fire apparatus. After the permit has been issued, sale, possession, use and distribution of fireworks for such display shall be lawful for that purpose only. No permit shall be transferable. Permits shall be issued by the Treasurer after approval from the fire code official.

(Ord. No. 52-878, § 67, 1-13-26)

Sec. 15.01.680. Chapter 61, Section 6104.2 amended—Maximum capacity within established limits.

Chapter 61, Section 6104.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

6104.2 Maximum capacity within established limits. Within the limits established by law restricting the storage of liquefied petroleum gas for the protection of heavily populated or congested areas, the aggregate capacity of any one installation shall not exceed a water capacity of 125 gallons (473.1765 L). Containers greater than 125 gallons (473.1765 L) are prohibited within the city limits where public gas utilities are provided.

Exceptions:

1. In particular installations, this capacity limit shall be determined by the fire code official, after consideration of special features, such as topographical conditions, nature of occupancy, and proximity to buildings, capacity of proposed LP-gas containers, degree of fire protection to be provided and capabilities of the local fire department.
2. Pre-existing installations until said property changes ownership.
3. Storage of portable LP-gas containers awaiting use or resale. See section 6109.

(Ord. No. 52-878, § 68, 1-13-26)

Sec. 15.01.690. Appendix C, Section C103.2 amended—Average Spacing.

Appendix C, Section C103.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

Section C103.2 Average Spacing. The average spacing between fire hydrants shall be in accordance with Table C102.1.

Exceptions:

1. The average spacing shall be permitted to be increased by 10 percent where existing fire hydrants provide all or a portion of the required number of fire hydrants.
2. The spacing between fire hydrants in residential (one- and two-family dwellings) developments may be increased to 800 feet with approval of the fire code official.

(Ord. No. 52-878, § 69, 1-13-26)

Sec. 15.01.700. Appendix D—Table D103.4 amended—Dead Ends.

Appendix D, Table D103.4 of the International Fire Code, 2024 Edition, is amended to read as follows:

Table D103.4 Dead Ends. Dead-end fire apparatus access roads in excess of 150 feet (45,720 mm) shall be provided with width and turnaround provisions in accordance with Table D103.4.

Table 3—D103.4
Requirements for Dead-End
Fire Apparatus Access Roads

Length (feet)	Width (feet)	Turnaround Required
0—150	20	None required
151—500	20	120-foot Hammerhead, 60 foot "Y" or 96-foot diameter cul-de-sac in accordance with Figure D103.1*
501—800	26	120-foot Hammerhead, 60 foot "Y" or 96-foot diameter cul-de-sac in accordance with Figure D103.1*
Over 800		Special approval required

For SI: 1 foot = 304.8 mm.

*__Exception__: Dead ends in residential developments measuring 151—800 feet require a minimum 80-foot diameter (drivable surface) cul-de-sac. For the purpose of measurement, the length will be determined from the line of right-of-way in the street to the center of the radius in the cul-de-sac.

(Ord. No. 52-878, § 70, 1-13-26)

Sec. 15.01.710. Appendix D, Section D103.5 amended—Fire apparatus access road gates.

Appendix D, Section D103.5 of the International Fire Code, 2024 Edition, is amended to read as follows:

Appendix D, Section D103.5 Fire apparatus access road gates. Gates securing the fire apparatus access roads shall comply with all of the following criteria and Sections 105.6.12, 503.5, 503.6:

1. The minimum gate width shall be 20 feet (6,096 mm).
2. Gates shall be of the swinging or sliding type.
3. Gates shall be constructed of materials that allow all-weather manual operation by one person.
4. Gate components shall be maintained in an operative condition at all times and replaced or repaired when defective.
5. Electric gates shall be equipped with a means of opening the gate by fire department personnel for emergency access. The fire code official shall approve emergency opening devices and shall be operable in one of the following ways:
   a. Knox Gate & Key switch and Keypad with a universal code approved by the fire code official.
   b. Knox Gate & Key switch and Siren-operated solenoid (S.O.S).

6. Manual opening gates shall be locked with a padlock, or chain and padlock.
7. Locking device specifications shall be submitted for approval by the fire code official.
8. Fire department access gates shall have a sign, permanently attached, as approved by the fire code official.

(Ord. No. 52-878, § 71, 1-13-26)

Sec. 15.01.720. Appendix D, Section D107.1 amended—One or two family dwelling residential developments.

Appendix D, Section D107.1 of the International Fire Code, 2024 Edition, is amended to read as follows:

D107.1 One- or two-family dwelling residential developments. Developments of one- or two-family dwellings where the number of dwelling units exceeds 60 shall be provided with two separate and approved fire apparatus access roads.

Exceptions:

1. Where there are more than 60 dwelling units accessed from a single public or private fire apparatus access road and all dwelling units are equipped throughout with an approved automatic sprinkler system in accordance with Section 903.3.1.1, 903.3.1.2 or 903.3.1.3, access from two directions shall not be required.
2. The number of dwelling units accessed from a single fire apparatus access road shall not be increased unless fire apparatus access roads will connect with future development, as determined by the fire code official.

(Ord. No. 52-878, § 72, 1-13-26)

Sec. 15.01.730. Appendix D, Section D107.2 amended—Remoteness.

Appendix D, Section D107.2 of the International Fire Code, 2024 Edition, is amended to read as follows:

D107.2 Remoteness. Where two fire apparatus access roads are required, they shall be placed a distance apart equal to not less than one-third of the length of the maximum overall diagonal dimension of the property or area to be served, measured in a straight line between accesses.

(Ord. No. 52-878, § 73, 1-13-26)

CHAPTER 15.02. SMOKE DETECTORS

Sec. 15.02.010. Definitions.
Sec. 15.02.020. Smoke alarms required in residential occupancies.
Sec. 15.02.030. Required alarm location.
Sec. 15.02.040. Smoke alarm requirements for the deaf or hearing impaired.
Sec. 15.02.050. Power supply for smoke alarms.
Sec. 15.02.060. Owner responsibility.
Sec. 15.02.070. Tenant responsibility.
Sec. 15.02.080. Violation.
Sec. 15.02.090. Enforcement.
Sec. 15.02.100. Penalty.

Sec. 15.02.010. Definitions.

As used in this chapter:

'*Alarm*' means any audible or visible signal indicating existence of a fire or emergency requiring response and emergency action on the part of the firefighting service.

'*Approved*' means accepted or approved for its intended use by a nationally recognized testing laboratory. Acceptable to the authority having jurisdiction.

'*Alteration*' means any change, addition or modification in construction or occupancy.

'*Apartment*' means a room or suite of rooms occupied, or which is intended or designed to be occupied as the home or residence of one individual, family, or household for housekeeping purposes, including sleeping areas.

'*Apartment house*' means any building or portion thereof which contains three or more dwelling units and for the purpose of this code, includes residential condominiums. (Apartment House—See Apartment Building)

'*Audible signal*' means a device capable of producing a noise or sound, either coded or non-coded, or reproducing or conveying the sound of the human voice, for the purpose of warning building occupants of an event of fire. An audible signal may be incorporated into devices used for other purposes (i.e., smoke alarm, visible signal, public address speaker).

'*Authority having jurisdiction*' means the city fire marshal or his agents.

'*Automatic detecting device*' means a device or system providing an emergency function without the necessity of human intervention and activated as a result of a predetermined temperature, rate of rise of temperature or increase in the level of combustion products.

'*Basement*' means any floor level below the first story in a building, except that a floor level in a building having only one floor level shall be classified as a basement unless such floor level qualifies as a first story, as defined in the Building Code.

'*Bedroom*' means any room which is designed with the intent that it is to be used for sleeping purposes.

'*Building*' means any structure used or intended for supporting or sheltering any use or occupancy.

'*Cellar*' means a portion of a building located partly or wholly underground having an inadequate access to light and air from windows located partly or wholly below the level of the adjoining ground.

'*Corridor*' means a passage which connects parts of the dwelling unit.

'*Congregate residence*' means any building or portion thereof which contains facilities for living, sleeping and sanitation, as required by this code, and may include facilities for eating and cooking, for occupancy by other than a family. A congregate residence may be a shelter, convent, monastery, dormitory, fraternity or sorority house, but does not include jails, hospitals, nursing homes, hotels or lodging house.

'*Dwelling*' means any building or portion thereof which contains not more than two dwelling units.

'*Dwelling unit*' means any building or portion thereof which contains living facilities, including provisions for sleeping, eating, cooking and sanitation, as required by this code, for not more than one family, or a congregate residence for ten or less persons.

'*Governing body*' means the city council.

'*Habitable room*' means a space in a structure for living, sleeping, eating or cooking. Bathrooms, toilet compartments, closets, halls, storage or utility space, and similar areas, are not considered habitable space.

'*Hotel*' means any building containing six or more guest rooms intended or designed to be used, or which are used, rented or hired out to be occupied, or which are occupied for sleeping purposes by guests.

'*Householder*' means the occupant of multi-family dwellings, one- and two- family dwellings and mobile homes.

'*Landlord*' means the owner, lessor, or sublessor of a dwelling unit. A managing agent or leasing agent, whether residing or officing on-site or off-site, shall be considered the agent of the owner for purposes of notice and communications required or allowed under this chapter.

'*Lodging house*' means any building or portion thereof, containing not more than five guest rooms used for sleeping purposes where rent is paid. This definition shall include boarding and rooming houses.

'*Maintenance*' means the act or acts of following the manufacturer's recommended procedures for assuring proper operation of the smoke alarm.

'*Manufactured home*' means a dwelling structure not constructed on site.

'*Mobile home*' means a dwelling structure not having a fixed foundation.

'*Motel*' (See definition for hotel).

'*Multi-family dwellings*' shall include apartment buildings, dormitories, condominiums, lodging, rooming, or boarding houses with more than five dwellings.

'*Occupancy*' means the purpose for which a building or part thereof is used or intended to be used.

'*One / two family dwellings*' shall include those buildings containing not more than two dwelling units in which each living unit is occupied by members of a single family.

'*Owner*' means any person, corporation, or other legal entity who has legal title or control in whole or part, of any real property. Also, any duly authorized agent of the owner. Any such agent thus representing the owner shall be bound to comply with the provisions of this chapter.

'*Residential occupancies*' includes congregate residences, one- and two- family dwellings, apartment buildings, all hotel and motels having guest rooms for lease or rent, lodging, rooming, or boarding houses, manufactured homes, mobile homes, mixed occupancy buildings having one or more units in use as a dwelling, and any occupancy used for sleeping purposes. Smoke alarms shall be installed in accordance with the approved manufacturer's instructions.

'*Separate sleeping area*' means where bedrooms or rooms ordinarily used for sleeping purposes are separated by other use areas, such as kitchens or living rooms but not bathrooms or closets, they shall be considered separate sleeping areas.

'*Sleeping area*' means an area of a dwelling containing bedrooms which are separated from each other by no use area other than a bathroom or closet.

'*Smoke alarm*' means any approved device that senses visible or invisible particles of combustion.

'*Split level*' means adjacent levels with less than one full story separation between levels.

'*Story*' means that portion of a building included between the upper surface of a floor and upper surface of the floor or roof next above.

'*Tenant*' means any person who is entitled to occupy a dwelling to the exclusion of others and who is obligated to pay rent for the dwelling under a written or oral rental agreement.

'*Test of smoke alarm*' means the performance of the act or acts which the manufacturer of a smoke alarm recommends for that particular model of smoke alarm as a simple test of whether or not the smoke alarm is in good working order.

'*Unit*' means one or more rooms leased or rented to be used as a single dwelling. Also as in a suite.

'*Visible signal*' means a device capable of warning building occupants of an event of fire by direct viewing of an illuminated element. Such a device shall produce an intermittent or flashing signal (i.e., a strobe, flashlight or rotating beacon).
(Ord. No. 48-893, § 1, 11-9-2010)

Sec. 15.02.020. Smoke alarms required in residential occupancies.

All residential occupancies, new and existing, shall be provided with approved smoke alarms.
(Ord. No. 48-893, § 2, 11-9-2010)

Sec. 15.02.030. Required alarm location.

A. In dwellings, smoke alarms shall be mounted on the ceiling or wall at a point centrally located in the corridor or area giving access to each separate sleeping area. Where bedrooms are on an upper level, the alarm shall be placed directly above the stairway. In dwellings with split levels, an alarm need only be installed on the upper level provided the lower level is less than one full story below the upper level, except that if there is a door between levels an alarm is required to be installed on each level. Dwellings having a stairway which opens from the basement shall have an alarm installed in the basement. Such alarm shall be connected to a sounding device or other alarm to provide an alarm which will be audible in all sleeping areas.

B. In hotels, motels, or lodging houses, alarms shall be located on the ceiling or wall of each guest room. When guest rooms are on an upper level, the alarm shall be placed on the ceiling of the upper level in close proximity to the stairway.

C. When activated, required alarms shall provide an alarm which shall be clearly audible in all sleeping areas over background noise levels with all intervening doors closed.

D. A smoke alarm mounted on a wall shall not be mounted more than twelve inches below the ceiling or closer than four inches to the ceiling. A smoke alarm mounted on the ceiling shall not be closer than four inches from the wall.

E. Smoke alarms located in rooms with ceiling slopes greater than one foot rise per eight feet horizontally shall be located at the high side of the room.

F. Smoke alarms installed at the head of the stairway shall be so located as to assure that smoke rising in the stairwell cannot be prevented from reaching the alarm by an intervening door or obstruction.

G. In dwelling units where the ceiling height of a room open to the hallway serving the bedrooms exceeds that of the hallway by twenty-four inches or more, smoke alarms shall be installed in the hallway and in the adjacent room.
(Ord. No. 48-893, § 3, 11-9-2010)

Sec. 15.02.040. Smoke alarm requirements for the deaf or hearing impaired.

A. Where an occupancy is occupied by a person who is deaf or hearing impaired, an approved smoke alarm shall be provided.

(1) When activated, the approved smoke alarm shall provide a light signal sufficient to warn the deaf or hearing impaired individual(s).

(2) The owner must provide approved smoke alarms for the deaf or hearing impaired upon written request from the occupant.

(3) The owner or his authorized agent, may require a refundable deposit for smoke alarms for the deaf or hearing impaired, not to exceed the value of the smoke alarm.

B. All hotels and motels, regardless of the number of units, shall have available at least one smoke alarm for the deaf or hearing impaired for each fifty units or less.

(1) The owner or his authorized agent may require a refundable deposit for a portable smoke alarm not to exceed the value of the smoke alarm.

(Ord. No. 48-893, § 4, 11-9-2010)

Sec. 15.02.050. Power supply for smoke alarms.

Smoke alarms shall receive their primary power source from the building wiring when such wiring is served from a commercial source. Wiring shall be permanent and without a disconnecting switch other than those required for over-current protection. All smoke alarms within individual dwelling units shall be interconnected, so when one alarm is actuated, all alarms within that unit will sound an alarm.

A. No smoke alarm shall be directly connected (permanently wired) to the electrical system of the structure unless an electrical permit shall have first been obtained.

B. In all new one- and two-family dwellings, one hundred ten volt smoke alarms with a battery backup shall be required to be installed after January 1, 1994.

C. In existing one- and two-family dwellings constructed prior to 1976 battery-powered smoke alarms may be installed, and shall be deemed to be in compliance with this section provided that such alarms are maintained and in operable condition.

D. Any smoke alarm found to be defective or inoperable shall be replaced by a one hundred ten volt smoke alarm with battery backup. (Exception: one- and two-family owner occupied dwellings)

(Ord. No. 48-893, § 5, 11-9-2010)

Sec. 15.02.060. Owner responsibility.

A. It shall be the responsibility of the owner or his authorized agent to provide and install approved smoke alarms, in full operating condition, in every new and existing residential occupancy.

B. The owner or his authorized agent shall be responsible for repair or replacement of smoke alarms in seven days upon written notification from the tenant, of alarm malfunction or defective operation.

C. Upon tenant's possession of a dwelling, the owner or his authorized agent shall test the smoke alarm to verify that it is in good working order.

(1) If battery-powered smoke alarms are in use, the battery must be of full charge and smoke alarm fully operable.

D. The owner or his/her authorized agent shall provide to the tenant written instructions on proper use, maintenance, and testing of smoke alarm(s) installed in the occupancy, in accordance with approved manufacturer's instructions.

(Ord. No. 48-893, § 6, 11-9-2010)

Sec. 15.02.070. Tenant responsibility.

A. Tenants of residential occupancies, except hotels and motels, shall be responsible for regular maintenance and testing of smoke alarms, following the written instructions provided by the owner.

(1) If battery-powered smoke alarms are in use, maintenance shall include replacement of batteries.

B. In the event a tenant finds a smoke alarm to be malfunctioning or inoperable, he/she shall notify in writing the owner or his/her authorized agent of such malfunction or non-operation.

C. Neither tenant or owner shall remove or render a required smoke alarm inoperable.

(1) A tenant shall make entry to the residence available to the owner or his/her authorized agent upon notification for repair or replacement of smoke alarms.

(Ord. No. 48-893, § 7, 11-9-2010)

Sec. 15.02.080. Violation.

Any person, firm, partnership, corporation or association failing to install or maintain in operating condition, as required by this ordinance, a required smoke alarm, shall be in violation of this chapter. Anyone violating this chapter shall be

issued a violation warning and allowed fourteen days to comply. Failure to comply will result in issuance of a citation.

A. Failure to install or maintain in operation condition, smoke alarms shall deem the structure or non-complying portion of said structure uninhabitable.

B. Tampering with, removing, destroying, disconnecting, or removing the batteries from any required smoke alarm, except in the course of inspection, maintenance, or replacement of the alarm, shall be a violation of this chapter and punishable by the penalties provided herein.

(1) A citation may be issued without any violation warning for these violations.

(Ord. No. 48-893, § 8, 11-9-2010)

Sec. 15.02.090. Enforcement.

The enforcement of this chapter shall be carried out by the fire chief or his agents and by the building official or his agents.
(Ord. No. 41-584, § 9)

Sec. 15.02.100. Penalty.

Any person, individual, partnership, corporation or association who violates any of the provisions of this chapter is guilty of a misdemeanor, and upon conviction, shall be punished by a fine not to exceed five hundred dollars or by imprisonment of not more than six months, or by both such fine and imprisonment. Each day any violation hereof is found to exist or continues to exist shall be a separate offense and punishable as such hereunder.
(Ord. No. 41-584, § 10)

Title 16

SEWERS, SEWAGE DISPOSAL AND DRAINS*

Ch. 16.04. Construction, Maintenance and Cleaning

Ch. 16.12. Septic Tanks, Cesspools and Privies

Ch. 16.14. Sanitary Sewerage System Within the Corporate Boundaries

Ch. 16.20. Discharge of Wastes into Watercourse and Storm Sewers

Ch. 16.22. Municipal Wastewater and Treatment System

Ch. 16.24. Control of Fats, Oils, and Grease in Food Service

Ch. 16.30. Stormwater Utility

Ch. 16.32. Stormwater Pollution Prevention

*__Cross reference—__As to sealing off private sewers serving building which is to be moved, see § 10.24.130. As to sewer connections for trailer camps, see § 26.04.150. As to disposal of waste material from trailers, see § 26.04.160.

CHAPTER 16.04. CONSTRUCTION, MAINTENANCE AND CLEANING

Sec. 16.04.010. Definitions.
Sec. 16.04.020. Permits required.
Sec. 16.04.030. Easement.
Sec. 16.04.040. Permit fees.
Sec. 16.04.050. Inspection fee.
Sec. 16.04.055. Fees for incidental services of the sewer utilities.
Sec. 16.04.060. Payment of fees.
Sec. 16.04.070. Action to collect fees.
Sec. 16.04.080. General construction requirements.
Sec. 16.04.090. Information to be furnished by city engineer.
Sec. 16.04.100. Cases where available wyes cannot be used.
Sec. 16.04.110. Connections to sewer mains.
Sec. 16.04.120. Hole specifications before making tap or setting wye.
Sec. 16.04.130. Drains connected to storm sewers.
Sec. 16.04.150. Cooling water or water used for condensing.
Sec. 16.04.160. Additional connections to four-inch drain or sewer.
Sec. 16.04.170. Separate sewers and drains.
Sec. 16.04.180. Minimum diameter.
Sec. 16.04.190. Trap districts.
Sec. 16.04.200. Mobile home parks.
Sec. 16.04.210. Catch basins and floor drains.
Sec. 16.04.220. Prevention of harmful discharge.
Sec. 16.04.230. Drains to storm sewers.
Sec. 16.04.240. Air conditioning or refrigeration wastewater.
Sec. 16.04.250. Materials unlawful to discharge.
Sec. 16.04.260. (Reserved).
Sec. 16.04.270. Temperature of wastewater.
Sec. 16.04.280. Catch basin.
Sec. 16.04.290. Unlawful to discharge groundwater, surface water, etc.
Sec. 16.04.300. Sumps and sump pump pits.
Sec. 16.04.310. Enforcement of 16.04.290 and 16.04.300.
Sec. 16.04.320. Compliance with 16.04.290 and 16.04.300.
Sec. 16.04.330. Right of entry—Violation of 16.04.290 or 16.04.300.
Sec. 16.04.340. Compliance with plumbing code.
Sec. 16.04.350. Use of sewers for public purposes.
Sec. 16.04.360. Notice to inspector.
Sec. 16.04.370. Right of entry—Drain inspection.
Sec. 16.04.380. Duty of inspectors.
Sec. 16.04.390. Replacement of sewer broken open for inspection.
Sec. 16.04.400. Broken building sewer or drain—Repair.
Sec. 16.04.410. Board of appeals.
Sec. 16.04.420. Molesting sewer facilities.
Sec. 16.04.430. Sump at sewage treatment plant No. 1.
Sec. 16.04.440. Certificates, licenses, cancellations and permits.
Sec. 16.04.441. Insurance required.
Sec. 16.04.442. Truth in advertising requirements.
Sec. 16.04.450. Application for engaging in the business of drain laying.
Sec. 16.04.510. Issuance of new licenses.
Sec. 16.04.530. Request to see certificate, license and permit.
Sec. 16.04.540. Administrative penalties.
Sec. 16.04.550. Request for hearing and appeal.
Sec. 16.04.560. Legal action.
Sec. 16.04.570. Violation—Penalty.

Sec. 16.04.010. Definitions.

Unless otherwise expressly stated or the context clearly indicates a different intention, the following terms shall, for the purpose of this title, have the meanings indicated in this section:

(a) The "administrative authority" duly appointed to enforce this Code shall be the superintendent of central inspection.

(b) "Main" or "city sewer" means any sewer maintained and controlled by the city.

(c) "Building sewer" or "drain" or "private sewer" means a sewer maintained and controlled by private persons for the purpose of conveying sewage or stormwater to the city sewers. The building sewer shall begin at a point two feet outside the outer face of the building foundation wall.

(d) "Trap" means a device so constructed as to prevent the passage of air or gas through a pipe without materially affecting the flow of sewage or wastewater therein.

(e) "Saddle" is a short section of clay tile, aluminum alloy, poly vinyl chloride (commonly known as PVC plastic) or acrylonitrile-butadienestyrene (commonly known as ABS plastic) manufactured expressly for the purpose of overlapping a tap hole made in the main or city sewer for connection purposes.

(f) "Wye" is a fitting or a joint of tile having an opening on the side at an angle of approximately forty-five degrees to which the building sewer or drain is connected.

(g) "Connection to a sewer or drain" means and includes furnishing and laying sewer tile from a city sewer or private sewer to a building.

(h) "One ton of refrigeration in air-conditioning or refrigerating systems" is the unit of capacity or refrigeration equivalent to the removal of heat at the rate of twelve thousand BTU per hour. One compressor horsepower will be accepted as equivalent to one ton of refrigeration.

(i) "Master drain layer" is a person who is qualified, licensed by the city and equipped to properly serve the public on installations, repairs and maintenance of building sewers and their appurtenances. A licensed master plumber is deemed to be a master drain layer by definition.

(j) "Journeyman drain layer" is a person who holds a legal certificate issued by the city showing him to be qualified to install or repair sewers under the direction of a qualified master drain layer or a journeyman plumber who holds a legal certificate, who has passed a written examination as required in Section 16.04.450, and who has demonstrated his ability to lay drain pipe under the direction of a qualified master drain layer to the satisfaction of the superintendent of central inspection. A journeyman plumber is deemed to be a journeyman drain layer by definition.

(k) "Sewer cleaner" means any person licensed by the city to engage in the cleaning of building sewers, drains or private sewers.

(l) "Mobile home" means any portable structure or vehicle designed for highway travel which is used, or intended to be used for living, sleeping, cooking, and eating, and which includes a kitchen sink, a flush water closet, a lavatory, a bathtub or shower, a stove and a refrigerator.

(m) "Mobile home park" means land used or intended to be used by one or more occupied mobile homes.

(n) "Mobile home space" means a plot of ground within a mobile home park which is designated to accommodate one mobile home.

(Ord. No. 43-344 § 1)

Sec. 16.04.020. Permits required.

Before beginning work on any building or private sewer or drain, the licensed master drain layer, or his authorized employee, shall apply for a permit from the office of the superintendent of central inspection. Such permit shall be issued provided that all plumbing in the building has been inspected and approved by the central inspection division, that the applicant is a licensed master drain layer and has paid his permit fees and his work is in compliance with this Code. New connections authorized by the permit shall be started within one hundred twenty days and completed within one year of issuance. If the work is not commenced within one hundred twenty days or completed within one year from the date of issuance, the permit shall be canceled and all fees forfeited. All permits for repairs and seal offs shall be started at once and completed within two weeks from date of issuance unless an extension is granted by the superintendent of central inspection. Unless such conditions are met, the permit shall be canceled and all fees forfeited. A master drain layer allowing the use of his license for the purpose of obtaining a permit for another shall be sufficient cause for the revocation of the master drain layer's license. Permits shall not be transferable and shall be required as follows:

(1) CONNECTION PERMITS.

(a) Connection to existing work: for connection to any existing sewer with the plumbing in any building on a lot from which any previously connected building has been removed.

(b) Construction or reconstruction of sewer: for the construction or reconstruction of a sewer or drain extending from a wye, a tap or a manhole in the city sewer or private sewer to any building.

(c) Separate buildings: for each separate building where two or more buildings are connected at the same time to a private sewer or drain.

(d) Each connection: for each connection even when more than one connection is made from the same building.

(2) REPAIR OR EXTENSION PERMITS.

(a) Alteration or extension: for making any alteration in or extension to any private sewer or drain in connection with any building already served by a private sewer or drain and which does not involve any connection to any city sewer.

(b) Sealing off private sewer: for sealing off a private sewer when the house or building served by it is removed from the property.

A clean-out job for which no inspection is required shall include only those operations in which the private sewer or drain can be cleaned out by cables, rods, flushing or other means; and, in such cases, no permit shall be required; however, it is the duty of the master or journeyman drain layer or sewer cleaner to notify the office of the superintendent of sewer maintenance when any cleaning tools have been lost in the city's sewer.

The cost of recovering such tools shall be borne by the sewer cleaner. It shall be the duty of the sewer cleaner to remove all obstruction from a building sewer or drain when cleaning such building sewer or drain rather than to dislodge the obstruction into the city's sewer where a stoppage may be caused. If an obstruction is inadvertently dislodged which may cause a stoppage, the sewer cleaner shall notify the office of the superintendent of sewer maintenance.

When a building line must be opened for cleaning purposes, a cleanout and fittings manufactured of compatible material must be installed at the point where the opening was made.

Excavation and pavement permits shall be obtained from the department of operations and maintenance prior to performing any excavation work on public property, said permit to be obtained in accordance with the terms of Chapter 10.20 of this Code.

Emergency repairs and/or replacement after normal working hours may be made provided permits are obtained and inspections are made the next working day and before any portion is concealed from view.

A separate sewer permit shall be obtained for each building or structure or for any additional work other than authorized in the original permit.
(Ord. No. 37-624 § 2; Ord. No. 36-689 § 2)

Sec. 16.04.030. Easement.

A permit to connect to a city sewer does not include the right to construct a sewer or drain across the property belonging to some other person. Such right must be obtained from the owner of such property and should be in the form of a legal easement and shall be filed in the office of the register of deeds.
(Ord. No. 29-877 § 3)

Sec. 16.04.040. Permit fees.

(1) Before a permit is issued as provided for in Section 16.04.020, the following permit fees shall be paid:

(a)	For connecting to the city sewer	$60.00
(b)	For repair or extension permit	$60.00
(c)	For seal off permit	$60.00
(d)	Permit(s) shall be obtained as provided within Section 16.04.020 of this Code, and failure or unreasonable delay in obtaining such permit(s) shall mandate a double permit fee.	
(e)	Reinspection fee—Failure to comply with job readiness requirements	$30.00

(2) In addition to the above fees, there shall be added the following amounts for the following purposes:

(a) *In absence of assessment for lateral sewer.* When no assessment has been made for the lateral sewer against any property or premises to be connected to the city sewer, an amount as determined to be appropriate by the Director of the Public Works and Utilities Department and as set forth in Section 16.04.055.

(b) *In absence of assessment of lateral sewer and main sewer.* If the cost of neither lateral sewer nor main sewer has been assessed against the property to be connected, an amount as determined to be appropriate by the director of the public works and utilities department and as set forth in Section 16.04.055.

In determining the appropriateness of amounts to be assessed as set out in subsections (a) and (b) of this subsection (2), the director of the public works and utilities department shall utilize recent historical cost of constructing lateral and main sanitary sewers of similar or representative type to the system serving the building site to be connected to the sewerage system calculated on a square foot or frontage foot basis.

If, in the opinion of the director of the public works and utilities department, the use of the connecting property applying for connection under the terms of subsections (a) or (b) of this subsection (2) constitutes an extraordinary use of the sewerage system and/or shall potentially place extraordinary demand on the sewerage system, a charge commensurate with such use shall be determined by the director of the public works and utilities department and shall be assessed against the connecting property in lieu of the amount set out in subsections (a) and (b) of this subsection (2).

If the cost of sewer lateral and/or main sewer has been financed by a private entity and if the cost of such main or lateral has been included in the purchase price of the lot and improvements thereon, then the amounts set out in subsections (a) and (b) of this subsection (2) shall not be assessed.

The appropriateness of the application of the ordinance provision codified in this section shall be discretionary and shall be based on the interpretation of written policy guidelines by the director of the public works and utilities department and the director of planning and/or other parties as designated by the city manager.
(Ord. No. 43-769 § 1; Ord. No. 49-037, § 1, 7-19-2011; Ord. No. 51-963, § 1, 10-25-22)

Sec. 16.04.050. Inspection fee.

An inspection fee of six dollars shall be paid over and above the permit and inspection fees stipulated in the preceding section for each individual house trailer or mobile home.

An inspection fee shall be paid over and above the permit fees stipulated in the preceding section for any private sewer to be connected to the city sewer system, which is to be eight inches or larger in diameter, or which requires the use of manholes. Such inspections shall be made by the city engineering division pursuant to a contract entered into by the city and the private individual or entity seeking to have a private sewer connected to the city sewer system.
(Ord. No. 43-344 § 3)

Sec. 16.04.055. Fees for incidental services of the sewer utilities.

SCHEDULE OF USER FEES FOR INCIDENTAL SEWER SERVICES. On and after January 1, 2025, except as otherwise provided below, the schedule of fees as set forth below shall apply to the services and incidents described herein. Reference is made to Chapter 16 (Sewer) of the Code of the City of Wichita for additional information concerning the stated fees.

A. Utility Account Services. As authorized in Sec. 16.14.040, the following utility account service fees are hereby established:

Account Origination Fee	$53.00 per account
Convenience Fee	$1.00 per transaction
Insufficient Funds Debit and Returned Check Charge	$35.00 per transaction
Rejection of Payment via Telephone (Insufficient Funds)	$35.00 per transaction
Rejection of Payment Made Online (Insufficient Funds)	$35.00 per transaction

B. Wastewater Permits for Industrial Strength/Categorical Users. As authorized in Sec. 16.22.250, the following Wastewater Discharge Permit fees are hereby established:

Category: Average Gallons per Day (GPD) for Categorical Permit	**Cost**
Category I: 0—29,999 GPD	$358 per month
Category II: 30,000—59,999 GPD	$481 per month
Category III: 60,000—99,999 GPD	$562 per month
Category IV: 100,000—199,999 GPD	$847 per month
Category V: 200,000—499,999 GPD	$1,029 per month
Category VI: 500,000 or Greater GPD	$7,695 per month

C. Fats, Oils, and Grease Program. As authorized in Sec. 16.24.070, the following Fats, Oils, and Grease Program fees are hereby established:

Effective January 1, 2025, the annual grease discharge permit fee will be as shown in the table below.

ANNUAL FEE	**Effective January 1, 2023**	**Effective January 1, 2025**
Annual discharge permit fee (all users)	$225.00/year	

Effective January 1, 2025, the monthly grease maintenance fee will be as shown in the table below. The Standard Monthly Fees apply to all users with an automatic grease removal device (AGRD) or with no device except those who are approved for a Low Grease Discount as authorized in Section 16.24.070(b).

MONTHLY FEES	**Standard Monthly Fee**	**Low Grease Monthly Fee**
Users with Automatic Grease Removal Device	$40.00/month	$24.00/month
Users with no device	$100.00/month	$60.00/month

D. Miscellaneous Sewer Fees. As authorized in Sec. 16.04.110 (Sewer Tap and Saddle Fee), 16.04.290 (Groundwater Sewer Discharge Permit Fee), 16.22.070 (Special Use Sewer Discharge Fee), and 16.14.040, the following miscellaneous sewer fees are hereby established:

Sewer Tap and Saddle Fee (when required)	$344.00 per connection
Groundwater Sewer Discharge Permit Fee	$1,000 per year
Special Use Sewer Discharge Fee	$100 or actual cost if greater than $100
Sewer Line Clean-up	$115 per hour plus actual materials

SCHEDULE OF FEES FOR NEW SEWER SERVICES. On and after January 1, 2025, the schedule of fees as set forth below shall apply to the services described herein. Reference is made to Chapter 16, specifically sections 16.14.040 and 16.14.041, of the Code of the City of Wichita for additional information concerning the stated fees.

A. New Sewer Service. As authorized in Sec. 16.14.041, the following new sewer service fees are hereby established. The amount of the sewer equity fee shall be determined by the size of the water meter.

Water Meter Size	Sewer Equity Fee
1-inch tap, service line and meter	$1,350
2-inch tap, service line and meter	$4,320
2, 2-inch meters on 4-inch service	$8,640
3-inch meter on 4-inch service	$8,100
4-inch meter on 4-inch service	$13,500
6-inch meter on 6-inch service	$27,000
2, 3-inch meters on 6-inch service	$16,200
2, 4-inch meters on 6-inch service	$27,000
8-inch meter on 8-inch service	$43,200
2, 4-inch meters on 8-inch service	$27,000
2, 6-inch meters on 8-inch service	$54,000
12-inch meter on 12-inch service	$116,100
2, 6-inch meters on 12-inch service	$54,000

B. In Lieu of Assessment Fee. As authorized in Sec. 16.04.040, the following fee in lieu of assessments for sewer lines is hereby established:

Cost Per Front Foot	$56.00

In Lieu of Assessment Fee is a fee based on whether a specific property has ever participated in a water distribution or sewer lateral project. Staff must know the specific project location to determine if this fee is applicable to the parcel. The front footage amount is capped at 100 feet for residential properties.

C. Main Benefit Fee. As authorized in Sec. 16.04.040, the following Main Benefit Fee for water lines is hereby established:

Cost Per Square Foot of Land	$0.071

Main Benefit Fee is a fee based on whether a specific property has ever participated in a sewer transmission main extension project. Staff must know the specific project location to determine if this fee is applicable.
(Ord. No. 51-063, § 1, 7-23-19; Ord. No. 51-972, § 1, 11-22-22; Ord. No. 52-575, § 1, 12-10-24)

Sec. 16.04.060. Payment of fees.

(a) All permit and inspection fees as provided for in Section 16.04.040 shall be payable at the office of the superintendent of central inspection. Fees provided for in Section 16.04.040 2(a), 2(b), and 2(c) shall be credited to the sewer utility fund. Fees as provided for in Section 16.04.040 1(a), 1(b), 1(c), 1(e), and 1(f) shall be credited to the central inspection special revenue fund. Additional fees are to be levied and collected in accordance with the provisions of Sections 16.04.050 and 16.04.110.

The payment of any permit fees, inspection fees, or sewer service charges, as provided in this chapter, does not exempt any property or premises from its proportionate assessment for the construction of such sewers which normally would serve the property in question.

(b) Fee Refunds.

1. The superintendent of central inspection may authorize the refunding of any fee paid under this chapter which was erroneously paid or collected.

2. The superintendent of central inspection may authorize the refunding of not more than eighty percent of the permit fee (other than for tap fees) when no work has been done under a permit issued in accordance with this Code. The superintendent of central inspection shall not authorize

the refunding of any fee paid except upon written application filed by the original permittee not later than one hundred eighty days after the date of fee payment.
(Ord. No. 37-624 § 4; Ord. No. 36-689 § 5)

Sec. 16.04.070. Action to collect fees.

In addition to the penalty prescribed for the violation of this Code, the city may prove in a civil action in any court of competent jurisdiction the amount of the license fee or permit fee imposed by this title.
(Ord. No. 29-877 § 7)

Sec. 16.04.080. General construction requirements.

TO BE LAID IN STRAIGHT AND DIRECT LINE. In laying sewer pipes, the drain layer shall lay them in as straight and direct a line as possible from the opening in the main or city sewer to the end of the building drain. Offsets in a building sewer shall be permitted only to avoid permanent structures, trees or other immovable objects, which does not include dirt piles, sand piles or other movable construction materials. Plumbing drains shall be stubbed out of the building on the side of the building closest to the city main sewer.

CHANGES IN DIRECTION. All changes in direction shall be made with a wye or a one-eighth bend or by other methods approved by the superintendent of central inspection. If the connection with the wye in the city sewer is to be made with a bend, such bend shall be a one-eighth bend only. The building sewer shall commence two feet outside the foundation and any aggregate change of direction in excess of one hundred and thirty-five degrees shall require a cleanout be installed and extended to finish grade. This clean out is in addition to the required cleanout for each one hundred feet or portion thereof.

UNIFORM GRADE REQUIRED. All building sewers shall be laid with a one-fourth inch per foot grade from the end of the building drain to a point allowing no greater than a forty-five degree vertical drop to the main or city sewer. No horizontal line shall be laid with less than one-quarter inch fall per foot, except that with prior approval a building sewer may be laid with a fall of not less than one-eighth inch per foot; provided when laid on one-eighth inch per foot it shall be laid with surveying instruments.

SEWER PIPES. Sewer pipes shall be of the following types in accordance with specifications given and shall be free from defects and cracks; bowed or curved lengths shall be termed defective and not used. No part of any building sewer or drain shall be less than one foot below the surface of the ground, except replacement of existing building sewers.

(a) Vitrified glazed clay pipe conforming to the requirements of ASTM Designation, C200-64T and the latest revisions thereof with factory installed resilient couplings conforming to ASTM Designation C 425-64 and the latest revisions thereof. Lubricant sealer is to be used as recommended by the manufacturer.

(b) Service weight or extra heavy cast-iron bell and spigot soil pipe and fittings coated inside and out meeting Commercial Standard CS-188. Joints shall be firmly packed with picked oakum or hemp and secured with molten lead with at least twelve ounces of fine soft caulking lead being used for each inch of the pipe diameter for each joint, or the joints when properly applied to suitable cast-iron bell and spigot pipe and fittings shall be made with an approved neoprene gasket, which is compressed as the spigot is inserted into the bell of the pipe.

(c) ABS (acrylonitrile-butadiene-styrene) Schedule 40 conforming to ASTM D-2661 (current edition) and carrying the appropriate National Sanitation Foundation Seal of Approval for such pipe and fittings may be used.

(d) PVC (polyvinyl chloride) Schedule 40 conforming to ASTM D-2665 (current edition) and carrying appropriate National Sanitation Foundation Seal of Approval for such pipe and fittings may be used.

(e) Effective ninety days after the passage of the ordinance codified in this section, ABS

(acrylonitrile-butadiene-styrene) Schedule 40 plastic with a cellular core (ASTM-F628), PVC (polyvinyl chloride) Schedule 40 plastic with cellular core (ASTM F891) and PVC (polyvinyl chloride) SDR 35 (ASTM D-3034) will be prohibited for use as a material for building sewers.

DITCHES TO BE BOTTOMED TO UNIFORM GRADE. All ditches must be bottomed to a uniform grade before sewer pipe is laid. Bell holes shall be carefully hand-dug so that no part of the load is supported by the bells. The full load should rest on the barrel of the pipe. Bell holes shall be no larger than necessary. Trench widths shall be kept as narrow as is practically possible from the bottom to the level of the top of the pipe. Except in rock or water bearing earth, the mechanical excavation shall stop above the final invert grade. If over digging occurs, the loosened earth must be removed and replaced with granular material. In water bearing soils where dewatering with well points is not effective or in rock, the trench shall be excavated a minimum of four inches below the pipe barrel and the pipe bedded in crushed rock.

BUILDING SEWERS RUNNING PARALLEL TO BUILDING FOUNDATION OR BASEMENT WALL. No building sewer running parallel to a building foundation or basement wall shall be laid closer than two feet from the building foundation or basement wall, unless otherwise authorized by the superintendent of central inspection.

PIPES TO BE BACKFILLED AND BEDDED. All pipes shall be bedded and tamped with dirt or sand along the sides to a height equal to one half the diameter of the pipe being used. Bedding material shall not contain rocks, bricks, clods or frozen earth. No bridging or propping up the pipe on bricks, blocks, or clods of dirt. After inspection of the installation proper backfilling techniques shall be completed.

LAYING SEWERS ON MADE GROUND. No sewer shall be laid on filled or made ground in the bottom of the ditch, unless the backfilling shall be sand, properly and solidly tamped under, around, and over the top of the sewer.

EXCAVATIONS TO BE PROPERLY BACKFILLED. The master drain layer to whom a sewer permit has been issued shall, for the sewer excavation covered by the permit, and in accordance with the provisions of this Code and other ordinances of the city regulating excavations in streets, alleys and other public grounds, properly backfill all excavations on city property, remove all surplus material and debris and maintain all trenches or ditches in a safe condition until the backfilled material has reached final settlement. (For provisions as to excavations in streets, alleys and other public places, see Chapter 10.20 of this Code.)

REPLACEMENT OF PIPES, TRAPS, ETC., BROKEN IN MAKING REPAIR. Any sewer pipe broken in a building sewer or drain in making a repair of such building sewer or drain, or any pipe found to be broken when excavating for cleanout or repair, must be replaced with pipe of the same size as the original. Traps or other special fittings broken or found broken or defective shall be replaced with traps or other construction as provided in this chapter. All joints in repair or replacement work shall be the same as in new construction. When repairing a break, installing new lines or replacing the building sewer, a four-inch easily accessible cleanout shall be installed outside the building at grade within three feet of the outside wall or foundation; provided, however, that building sewers serving gravity drains which extend below a basement floor where such floor is four feet or more below grade at a point where the building drain extends outside the building are not required to install such a cleanout if there is an easily accessible four-inch cleanout in the basement for the building drain which is connected to the sewer. The outside cleanout shall consist of a twin cleanout.

WORK TO BE INSPECTED AND APPROVED PRIOR TO BEING COVERED; FAILURE TO COMPLY. No person shall cover, or cause to be covered, any building sewer or drain or other connection with any city or private sewer or any portion thereof which has been installed or repaired without inspection and approval of the same by the sewer inspector. EXCEPTION: Up to twenty feet of any building sewer (measured at finish grade) may be covered for equipment turnaround as long as both the house connection and the main connection are left open for proper

inspection including type of material, minimum grade and proper connections. If turn-around cannot be made in the twenty feet then the entire sewer shall be left open for inspection. If this provision is violated, the superintendent of central inspection shall require the necessary excavation to be made for the examination at the expense of the master drain layer whose license shall be suspended by the superintendent of central inspection until such excavation has been made. The master drain layer shall be subject to prosecution for violation of this title. The master or journeyman drain layer in charge of the ditch or an authorized employee of the master drain layer must be present when the work is inspected. He must have a good level and line, have all permits, and must give such necessary information as may be required of him.
(Ord. No. 43-344 § 4)

Sec. 16.04.090. Information to be furnished by city engineer.

Information concerning the location and depth of the city sewer will be furnished to any applicant by the city engineer. All reasonable care will be taken to insure the correctness of such information, but such information will not be guaranteed. Information as to the location of the wye will be guaranteed to the extent that if no wye is found within five feet in either direction from the location given, the city will furnish suitable connection at its own expense, provided, that in lieu of making the upstream exploration beyond the length of tile on which the measurement falls, the master drain layer may elect to have a tap made at his expense. No information as to the location of wyes shall be furnished except to a master drain layer or his agent at the time that the permit is issued.
(Ord. No. 36-689 § 7)

Sec. 16.04.100. Cases where available wyes cannot be used.

If the wyes available for any property cannot be used, making it necessary to provide a new location for the connection, such work shall be done at the expense of the master drain layer making the building sewer or drain installations under the following conditions:

SIX-INCH LINE. In any six-inch line a wye shall be set for a four-inch or six-inch connection.

FOUR-INCH CONNECTION. A tap shall be made and saddle used for a four-inch connection into any line eight inches or larger in diameter.

CONNECTIONS TO FOUR-INCH OR SIX-INCH BUILDING SEWER, ETC. For any connection to a four-inch or six-inch building sewer, drain or private sewer, a wye shall be set.

REQUIREMENTS WHERE TILE USED IN MAKING CONNECTION IS LARGER THAN WYE OPENING. If the tile used in making a connection is larger than the wye opening into the sewer, a tap shall be made and saddle used, or a wye shall be set the same size as the tile used in making the connection, in accordance with the above conditions. No reducer shall be used except when approved by the superintendent of central inspection.

USE OF JUNCTION MANHOLE. In all cases where the private sewer or drain is the same size or larger than the city sewer to which the private sewer or drain is to be connected, a junction manhole shall be built according to plans and specifications on file in the office of the city engineer.
(Ord. No. 36-689 § 8)

Sec. 16.04.110. Connections to sewer mains.

1. Sewer Maintenance to Make Tap and Maintain Mains and Wyes. The sewer maintenance division of the city shall make all taps in clay tile sewer mains. In all cases where a tap is to be made in clay tile mains or, at the licensed contractor's option, in PVC or ABS mains, sewer maintenance shall be notified and the work performed by the city division of sewer maintenance.

The saddle, manufactured of appropriate material, shall be furnished and installed by the city. In addition to the permit fees specified in Section 16.04.040, the charge for the sewer maintenance tap and saddle shall be seventy dollars, payable at the office of the superintendent of central inspection. The sewer tap fee shall be deposited in the sewer utility fund of the city.

2. Licensed contractors to make a tap in PVC or ABS mains. In all cases where a licensed contractor makes a tap in PVC or ABS mains, the superintendent of central inspection shall be no-

tified. The tap shall be made with the appropriate size hole saw with integral pilot bit. The saddle supplied by the contractor shall be installed per the manufacturer's standards and approved by the superintendent of sewer maintenance.

3. Transitions from saddle connections to building sewer must be from a recognized manufacturer for the specific application in which it is to be used.

4. No connection shall be made to a city sewer manhole without the express permission from the superintendent of sewer maintenance, and the proper forms filled out and returned to the office of sewer maintenance.
(Ord. No. 43-344 § 5)

Sec. 16.04.120. Hole specifications before making tap or setting wye.

No tap will be made, wye set, or repaired in the city sewers by the city division of maintenance unless the hole for making the tap, setting the wye, or repairing a wye is at least two feet by three and one-half feet without any tunneling. The hole shall be parallel to the city sewer for setting a wye and across the city sewer for making a tap. The hole shall extend approximately straight down from the top of the ground to the bottom of the sewer. The hole shall be adequately shored or sloped in compliance with OSHA Standards for safety to city employees entering therein for the purpose of inspection or for making a tap or setting a wye.
(Ord. No. 43-344 § 6)

Sec. 16.04.130. Drains connected to storm sewers.

No drains from roofs, paved areas, yards, courts or courtyards shall be permitted to connect to any city storm water sewer with pipe less than four inches in diameter and without prior approval of storm water management and shall be sized in accordance with the plumbing code.
(Ord. No. 43-891 § 1)

Sec. 16.04.150. Cooling water or water used for condensing.

Drains from air-conditioning or refrigeration units of three tons capacity or less, and similar equipment, when connected to any city storm sewer may be four-inch pipe, unless such drain also carries water from roofs, paved areas, yards, courts, or courtyards. Condensing water drains from air-conditioning units exceeding three tons or refrigeration units exceeding one ton capacity and similar equipment shall not be connected to a city sanitary sewer.

Car wash facilities will be required to connect to a city sanitary sewer and must be roofed. The floor elevation shall be such that no surface water can drain into the sanitary sewer.
(Ord. No. 43-891 § 2)

Sec. 16.04.160. Additional connections to four-inch drain or sewer.

An additional connection may be made to a four-inch building sewer, provided it is made with appropriate fittings, approved materials, and prior approval of the superintendent of central inspection.
(Ord. No. 36-689 § 11)

Sec. 16.04.170. Separate sewers and drains.

Each building on the same parcel of land shall have its own separate private sewer or drain connection to the city sewer unless otherwise authorized in this title or by the superintendent of sewer maintenance. All buildings located on a corner lot shall each have a separate sewer connection to the city sewer. A mobile home connection to a building sewer serving a building will not be allowed.
(Ord. No. 36-689 § 13)

Sec. 16.04.180. Minimum diameter.

No building sewer, drain or private sewer shall be less than four inches in diameter. Larger sizes shall be used when the expected volume of sewage will require larger sizes. The size shall be determined by the superintendent of central inspection, in accordance with Table 7-5 of the Uniform Plumbing Code, but in no case shall the diameter of the building sewer be less than that of the soil pipe stubbed out from the building.
(Ord. No. 43-344 § 8)

Sec. 16.04.190. Trap districts.

In sections of the city where the wye openings into the city sewer are four inches or larger and where trap districts have been established by the city engineer, traps shall be installed.

In sections of the city where the wye openings into the city sewer are four inches, the installation of traps is not necessary unless such installation is within a trap district as established by the city engineer and except as specified in Section 16.04.200.

All traps on building sewers or drains shall be four inches or larger.

All traps shall be placed inside of the property line, except where the space between buildings and the street, alley or public highway will not permit. If a riser is used, it shall be a four-inch pipe, extending up to approximately the surface of a public alley, street, or other public way. A riser shall be used when the trap is located under the paved surface of a public alley, street or other public way. The riser shall be protected by a cast-iron frame and cover conforming in size, weight and design to the standard plan and specifications on file in the office of the superintendent of sewer maintenance and the city engineer. The cast-iron frame and cover shall be set on a brick or a concrete foundation.

Building traps may be constructed on-site of materials which are approved for building sewers. When such traps are fabricated they shall be assembled as follows: The trap shall be constructed using four one-eighth bends and two sections of pipe to maintain a minimum of a four inch trap seal. The two sections of pipe shall be inserted between the two one-eighth bends forming the forty-five degree vertical sections of the inlet and outlet of the trap.
(Ord. 43-344 § 9)

Sec. 16.04.200. Mobile home parks.

CONNECTIONS GENERALLY. Connections for mobile homes located on a mobile home park may be available from a network of sewers on such mobile home park. In any network of sanitary sewer facilities on a mobile home park, all pipe used shall be as authorized in preceding sections, unless otherwise specified in this section. No pipe of less than four-inch diameter shall be used for individual mobile home connections and no pipe of less than six-inch diameter shall be used for the trunk lines in a sewer network, and a six-inch cleanout shall be provided at the upper terminal of any six-inch line.

SIZE OF TRAPS. A four-inch or larger trap shall be installed where connection is made from a network or individual mobile home service to the city sanitary sewer.

MOBILE HOME CONNECTION. Each mobile home space shall be provided with no less than a four inch sewer connection. Such individual connection shall be provided with suitable fittings so that a water-tight connection can be made between the mobile home and the sewer. The connection shall be so constructed that it can be and is closed when not connected to the mobile home. A four-inch cleanout shall be provided. The connection shall be of approved materials. The connection shall extend a minimum of four inches above ground or expected surface water, whichever is higher.
(Ord. 43-344 § 10)

Sec. 16.04.210. Catch basins and floor drains.

Every private or public washrack or floor or slab used for cleaning machinery or machine parts shall be adequately protected against storm or surface water by being elevated above the surrounding grade and be covered by a roof. Such facilities shall discharge through a mud and oil interceptor and connect to the sanitary sewer. Each interceptor shall be suitable trapped and vented according to the regulations and details in the office of the administrative authority.

Floor drains for automobile garages, public or private, automobile racks, stables or barn washracks, urinal receptacles in stables, drains in laundries or dry cleaning establishments or any drains where gasoline, oil or any volatile substance may enter the sanitary sewer they shall discharge into a mud and oil interceptor, suitably trapped and vented according to the regulations and details in the office of the administrative authority.
(Ord. 43-344 § 11)

Sec. 16.04.220. Prevention of harmful discharge.

The superintendent of sewer maintenance, or his authorized representative, shall have the power to stop and prevent from discharging into any sewer or drain substances which are likely to obstruct or clog or in any manner injure the city sewers. After five days' written notice to the owners or occupants of the premises, the superintendent of sewer maintenance, or his authorized representative, shall disconnect any private sewer or drain which discharges any such substances into the city sewer.
(Ord. No. 36-689 § 17)

Sec. 16.04.230. Drains to storm sewers.

No drains from roofs, paved areas, yards, courts or courtyards shall be permitted to connect to the city sanitary sewer, but the same may be connected to any available city stormwater sewer under the direction of the storm water management.
(Ord. 43-344 § 12)

Sec. 16.04.240. Air conditioning or refrigeration wastewater.

Wastewater from air conditioning or refrigerating units and similar equipment may be connected to the city stormwater sewers with the approval of the storm water management. Under no circumstances shall water from air conditioning or refrigerating units and similar equipment be permitted to drain into public gutters, streets, alleys or other public ground.
(Ord. 43-344 § 13)

Sec. 16.04.250. Materials unlawful to discharge.

It is unlawful for any person to discharge or cause to be discharged any of the following described materials and substances to any public sanitary sewer within or without the city either directly or indirectly.

(a) Any water or waste containing free, floating or insoluble oil.

(b) Any water or waste containing soluble oil or emulsified oil and grease exceeding on analysis an average of one hundred parts per million of either soluble matter.

(c) Any gasoline, benzine, naphtha, fuel oil, mineral oil, or other flammable or explosive liquid, solid, or gas.

(d) Any garbage that has not been shredded to such degree that all particles will be carried freely under the flow conditions normally prevailing to the public sewers, with no particle greater than one-half inch in any dimensions.

(e) Any ashes, cinders, sand, mud, straw, hay, shavings, metals, glass, rags, tar, plastics, wood, paunch manure in excess of five percent (wet weight) of that removed from animal paunches, hair and fleshings, blood, intestinal contents from horses, cattle, sheep, or swine; animal hoofs or toenails, animal intestines or stomach casings, bones, hog bristles, hides or parts thereof, animal fat or flesh in particles larger than will go through a quarter-inch screen; poultry entrails, heads, feet, or feathers; lime slurry or sludge, acetylene generation sludge, other sludges, chemical residues, or any other solid or viscous substance capable of causing obstruction to the flow in sewers or other interference with the proper operation of the sewers or the sewage treatment works.

(f) Any noxious or malodorous gas or substance, which either singularly or by interaction with other wastes, is capable of creating a public nuisance or hazard to life or which will prevent entry into sewers for their maintenance and repair.

(g) Any water or waste that contains more than ten parts per million by weight of the following gases: Sulfur dioxide, or oxides of nitrogen.

(h) Any water or waste that contains sulfides in excess of one part per million by weight as sulfur.

(i) Any water or waste that contains ammonia-nitrogen in excess of one hundred parts per million by weight as nitrogen.

(j) Any waters or wastes having a pH lower than 5.5 or higher than ten or having any other corrosive property capable of causing damage or hazard to structures, equipment and personnel of the city.

(k) The concentrated contents of any chemical tanks containing heavy metals or other materials harmful to the sewage works.

(l) Any long half-life (Over one hundred days) toxic radioactive isotopes without special permit; provided, that radioactive isotopes I131 and P32 used in hospitals are not prohibited, when properly diluted at the source.

(m) Any water or waste which by interaction with other water or waste in the public sewer system, releases toxic or obnoxious gases, or develops color of undesirable intensity, or forms suspended solids in objectionable concentration, or creates any other condition deleterious to structures and treatment processes.

(n) BOD and SS Limits. Any wastewater having: (1) a five-day BOD greater than two hundred fifty parts per million by weight; or (2) containing more than three hundred parts per million by weight of suspended solids; or (3) having an average daily flow greater than two percent of the average sewage flow of the city unless such discharge has had the review and approval of the director of water and water pollution control. Where necessary in the opinion of the director of water and water pollution control, the owner shall provide, at his expense, such preliminary treatment as may be necessary to: (1) reduce the BOD to two hundred fifty parts per million by weight; or (2) reduce the suspended solids to three hundred parts per million by weight; or (3) control the quantities and rates of discharge of such waters or wastes. Plans, specifications, and any other pertinent information relating to proposed preliminary treatment facilities shall be submitted for the approval of the director of water and water pollution control, and no construction of such facilities shall be commenced until said approvals are obtained in writing.

(o) Toxic Substances. Toxic substances which are not amenable to treatment or reduction by the wastewater treatment process employed, or are amenable to treatment only to such a degree that the wastewater treatment plant cannot meet the requirements of other agencies having jurisdiction over discharge to the receiving waters without first pretreating to a concentration acceptable to the city.

When wastewater containing any of the aforementioned materials is discharged into the sanitary sewer, and such wastes are not properly pretreated, the director of water and water pollution control may: (1) reject the waste and terminate the service to the sanitary sewer; (2) require control of the quantities and rates of discharge of such water; or (3) require payment of surcharges for excessive cost of treatment, provided such wastes are amenable to treatment by existing wastewater treatment plant facilities.

All analyses shall be made in accordance with the latest edition of "Standard Methods for the Examination of Water, Sewage and Industrial Wastes" as published by the American Public Health Association, New York, New York.
(Ord. No. 36-32 §§ 9, 10; Ord. No. 29-877 § 25)

Sec. 16.04.260. (Reserved).
(Ord. No. 29-877 § 26)

Sec. 16.04.270. Temperature of wastewater.

Wastewater when discharged into the city sewer shall be at a temperature no higher than one hundred forty degrees Fahrenheit. Where higher temperatures exist, cooling methods approved by the superintendent of central inspection and superintendent of sewer maintenance shall be provided.
(Ord. 43-344 § 14)

Sec. 16.04.280. Catch basin.

If, in the opinion of the city engineer, the superintendent of sewer maintenance, the superintendent of water pollution control or the superintendent of central inspection, any discharge into the city sewer from any slaughterhouse, rendering establishment, chemical works, steam engine or exhaust boiler or from any other plant or mechanism will injure, obstruct or interfere with the normal flow of the city sewer, or the normal operation of the sewage treatment process, such discharge or material shall not be delivered through a drain to the city sewer, except through a catch basin or mechanism which will prevent injury to such city sewer, or after passing through approved treatment.
(Ord. No. 36-689 § 21)

Sec. 16.04.290. Unlawful to discharge groundwater, surface water, etc.

It is unlawful for any person, either directly or indirectly, to discharge into the sanitary sewer system of the city any groundwater, surface water, subsurface drainage water, roof, yard, court or areaway water, condensing water from any refrigerating units having a capacity over one ton; or any water from any air conditioning unit having a capacity of over three tons; provided, however, that the director of the department of water and water pollution control may, in his/her sole discretion, grant a permit which allows a person to discharge any of the above-described water into the city's sanitary sewer system. Such a permit shall be issued pursuant to rules and regulations that have been adopted by the city council that address, among other items, preservation of sewer capacity for its intended purpose of handling sanitary sewage, protection of the sanitary sewer system from harmful solutions, protection of the health of employees and the public, and proper functioning of the city's sanitary sewer system and its appurtenances. A fee for obtaining a permit shall be established in the rules and regulations.
(Ord. No. 40-829 § 1)

Sec. 16.04.300. Sumps and sump pump pits.

It is unlawful for any open sump, sump pump pit or floor drain to be connected to or discharged into the city sanitary sewer system; provided, however, that such an open sump pump pit or floor drain shall not be considered to be unlawful under the provisions of this section if it receives only such flow as is permitted to be regularly discharged into the city sanitary sewer system under the provisions of this chapter and it receives no flow from foundation drainage systems or any other ground or surface water runoff.
(Ord. 43-344 § 15)

Sec. 16.04.310. Enforcement of 16.04.290 and 16.04.300.

It is the duty of the superintendent of sewer maintenance and superintendent of central inspection to enforce Sections 16.04.290 and 16.04.300. The superintendent of sewer maintenance shall have the right to disconnect from the city sanitary sewer system and/or the city water system any premises upon which a violation of Section 16.04.290 or 16.04.300 is found. Before any such disconnection, the superintendent of sewer maintenance shall first serve a notice in writing on the owner, agent for the owner or tenant in possession of such premises, which notice shall specify the violation(s) existing and provide a period of fifteen days from the date thereof within which the owner, agent for the owner or tenant in possession may abate such violation(s).
(Ord. No. 42-448 § 2)

Sec. 16.04.320. Compliance with 16.04.290 and 16.04.300.

The superintendent of central inspection shall not permit a reconnection or a new connection to be made to the city sanitary sewer system until satisfied that there is compliance with Sections 16.04.290 and 16.04.300 and Title 21, of this Code.
(Ord. No. 36-689 § 25)

Sec. 16.04.330. Right of entry—Violation of 16.04.290 or 16.04.300.

The superintendent of central inspection, the superintendent of sewer maintenance, or their authorized representatives shall have the right to enter any building or upon any premises at any

reasonable time for the purpose of making an inspection to determine whether any violation of Sections 16.04.290 or 16.04.300 exists or to prevent a violation of Sections 16.04.290 through 16.04.320. No adverse action will be taken against any property owner or resident who refuses to grant such right of entry.
(Ord. No. 42-625)

Sec. 16.04.340. Compliance with plumbing code.

To prevent extraneous inflow from all buildings under construction, no drain shall be finally completed so as to permit the waste of the building to reach the city or private sewer until the plumbing in the building to be connected has been approved by the plumbing inspector, as being in full accordance with the plumbing code.
(Ord. No. 36-689 § 26)

Sec. 16.04.350. Use of sewers for public purposes.

The city shall have the right at all times, through its city engineer, superintendent of sewer maintenance and superintendent of central inspection, to connect with, and use any city or private sewer, built upon any public street, alley, highway or other public grounds; to use the same for any public purpose or to reconstruct or close up or disconnect any private sewer or drain which from any cause has become a nuisance.
(Ord. No. 36-689 § 27)

Sec. 16.04.360. Notice to inspector.

The master or journeyman drain layer shall notify the superintendent of central inspection when the work is ready for inspection in accordance with the established scheduling policy of the Board of Examiners of Plumbers and Gas Fitters. Inspection shall be required on all work on all permits.
(Ord. 37-624 § 8)

Sec. 16.04.370. Right of entry—Drain inspection.

The superintendent of sewer maintenance, the superintendent of central inspection, or their authorized representatives, shall have the right and privilege to enter upon any property connected, or to be connected, to the city sewer, within reasonable hours, for the purpose of making inspections of the drain system, whether constructed or under construction on such property.
(Ord. No. 36-689 § 29)

Sec. 16.04.380. Duty of inspectors.

It is the duty of the superintendent of central inspection to inspect and approve each and every connection between the city sewer and any private sewer, from such point of connection to the building drain, to determine if such sewers are constructed in accordance with the requirements specified in this title.

It is also the duty of the superintendent of central inspection to inspect and approve each and every extension, repair or relaying of any building sewer or drain to determine if such work is done in accordance with the requirements specified in this title.
(Ord. No. 36-689 § 30)

Sec. 16.04.390. Replacement of sewer broken open for inspection.

The superintendent of sewer maintenance or the superintendent of central inspection shall have the right to take up, or break open any sewer, or part thereof, necessary to make a thorough and full inspection; provided, that if after such examination, such sewer is found to be properly constructed or repaired, it shall be replaced at the expense of the city. Otherwise, it shall be replaced at the expense of the master drain layer or property owner.
(Ord. No. 36-689 § 31)

Sec. 16.04.400. Broken building sewer or drain—Repair.

(a) Whenever a building sewer or drain is obstructed with tree roots or found broken, defective or disconnected so that the sewage or drainage escapes therefrom into the surrounding soil or into the adjoining premises, or so that damage may accrue to the city sewers, the superintendent of sewer maintenance may order it repaired or replaced at the expense of the property owner.

(b) No person shall molest, break or otherwise damage a city sewer or appurtenance thereto.
(Ord. No. 36-689 § 32)

Sec. 16.04.410. Board of appeals.

(a) The board of appeals of plumbers and gas fitters shall act as a board of appeals in making a determination of any appeal arising from the actions of the administrative authority. Appeals shall be made in writing, and the appellant may appear in person before the board or be represented by an attorney, and may introduce evidence to support his claims. Appeals shall be heard at reasonable times at the convenience of the board, but not later than thirty days after receipt thereof. The appellant shall cause to be made at his own expense, any tests or research required by the board to substantiate his claim.

(b) The board of appeals of plumbers and gas fitters shall, upon the request of the administrative authority, interpret sections of the sewer ordinance, as to the approval of drain and sewer materials and methods of installation allowed under said code.

(c) Where conditions exist on any drain-laying job which are not specifically provided for by this Code, or where it would be impracticable to follow its provisions, the board may grant a variance from the strict application of the provisions of this Code. The person or persons desiring such variance shall submit all data and information necessary or as may be required by the board to enable it to make its decision, and if after thorough study of the desired variance it determines that the granting of such request would not be counter to the welfare of the public, it shall have the authority to grant the variance.

(d) The board of appeals of plumbers and gas fitters may consider applications for the use of materials or methods of installation not specifically covered in this Code, or for a change in the grading or quality of materials or for a change in methods of installation as set forth in this Code and accept or reject the same as affording the same degree of safety, sanitation and performance as the materials or methods provided for herein. The board shall use established standards of nationally recognized laboratories and organizations in making its determination to accept or reject the application. The applicant shall submit to the board all necessary information as may be required by the board in order for it to make its determination, and any expense incurred for the payment of laboratory reports and tests shall be borne by the applicant. If, after a thorough study of the application and upon the basis of such study, it is determined that the public interest would be best served, that it would not be detrimental to the health and welfare of the public, and would not afford the same degree of safety and sanitation as elsewhere provided for in this Code, the board shall deny the application.

(e) Appeal. Any person, official or governmental agency dissatisfied with any order or determination of the board of appeals of plumbers and gas fitters may appeal such order or determination to the city council. An appeal taken to the city council shall be on the record of the hearing before the board of appeals of plumbers and gas fitters, and shall be in writing, and shall be filed with the city clerk and the administrative authority within ten days of the date of the hearing before the board of appeals of plumbers and gas fitters. The basis for the appeal must be set forth in the written appeal that is served upon the city clerk and the administrative authority.
(Ord. No. 41-420 § 1)

Sec. 16.04.420. Molesting sewer facilities.

No person, unless authorized by the superintendent of sewer maintenance or superintendent of central inspection, shall leave open or molest any city sewer or its connections thereto, manhole, cleanout, observation hole, flush tank or catch basin. No person shall cause to be made any opening into any city sewer or cause or permit any connection to be made to any city sewer without first obtaining a permit to do so, as provided in this title.
(Ord. 43-344 § 16)

Sec. 16.04.430. Sump at sewage treatment plant No. 1.

The sump provided for dumping of tank trucks at sewage treatment plant No. 1 should be considered a part of the sanitary sewer system. Only

materials which are acceptable for discharge to the sanitary sewer under terms of this chapter shall be discharged into this sump. Material discharged to this sump shall generally be restricted to material removed from septic tanks except by special permission of the superintendent of water pollution control. Travel trailer and recreational vehicle sanitary dump stations may be installed according to plans on file in the office of the superintendent of central inspection.
(Ord. No. 36-689 § 35)

Sec. 16.04.440. Certificates, licenses, cancellations and permits.

(a) It is unlawful for any person to engage in the business of drain laying, repairing, relaying or cleaning out of any private sewer or drain as a master drain layer or sewer cleaner in the city, unless and until a certificate has been obtained therefor, and a license has been issued for such business and a permit has been issued for such work, all in accordance with the provisions of this Code. Drain layer apprentices shall be permitted to work when accompanied by and under the supervision of a master or journeyman drain layer, who shall be responsible for the work being done by the apprentice.

(b) Any person engaging or desiring to engage in the business of drain laying, repairing, relaying or cleaning out of any private sewer shall, before obtaining any permit or transacting business, procure a license therefor from the office of the superintendent of central inspection, which license shall expire the 31st day of December of the year in which so issued. Any such person holding a current master drain layer's certificate shall be entitled to only one drain layer's license unless otherwise authorized by the board of appeals of plumbers and gas fitters and each such business shall obtain a license. No license shall be transferred from one person to another.

(c) A drain layer's license may be issued to any firm, copartnership or corporation of which at least one active member or officer who devotes full time to that firm, copartnership or corporation has been qualified as and has a drain layer's certificate. The fee for license is one hundred dollars. Each license shall be renewed annually by December 31st. Licensees who have not renewed their license by January 31st shall pay a penalty of ten percent for each month thereafter.

(d) Before a drain layer or sewer cleaner's license is issued, the applicant therefor shall file with the city clerk a surety bond in the amount of two thousand dollars which shall be approved as to form by the city attorney, the condition of such bond to be that the principal therein will comply with all the provisions of this Code and other ordinances of the city regulating plumbing and gas fitting, and to hold and save the harmless on any and all damages to persons or property resulting from or growing out of any opening or excavation made, material stored or placed upon, or any operation in any street, alley or public property.

Bond Exception. Section 16.04.440(d) shall not be applicable to any person who has given a bond as required by the plumbing code of the city as set out in Title 21 of this Code, where such bond is required by the plumbing code of the city from the acts of the person giving such bond in the laying, repairing, relaying and cleaning out of sewers and drains, in addition to the plumbing of buildings.
(Ord. 43-344 § 17)

Sec. 16.04.441. Insurance required.

Every drain layer or drain cleaner licensed under this title shall procure and maintain a policy of general liability insurance covering the activities of the drain layer or drain cleaner contractor while engaged in contracting hereunder. Such insurance policy shall be written with an insurance company licensed to do business in the state of Kansas and shall have minimum limits of coverage of three hundred thousand dollars per occurrence. In addition, every such drain layer or drain cleaner contractor shall procure and maintain worker's compensation insurance as required by law and automobile liability insurance as required by law. Every contractor licensed under this title shall, prior to the issuance of a license, file with the office of central inspection certificates of insurance evidencing the insurance coverage specified herein. All such certificates shall indicate that the City of Wichita shall be given at least thirty days' advance writ-

ten notice of any cancellation or material change in coverage of such insurance. Failure of a drain layer or drain cleaner contractor to either procure or maintain such insurance shall be a violation of law punishable as a general misdemeanor and shall be grounds for suspension or revocation of the drain layer or drain cleaner contractor's license and certificate.
(Ord. No. 42-119 § 1)

Sec. 16.04.442. Truth in advertising requirements.

On or after July 1, 1993, any person, firm or corporation required by this title to obtain a drain layer or drain cleaner contractor's license shall be subject to the following:

(a) It shall be unlawful for any such person, firm or corporation to advertise as a drain layer or drain cleaner contractor unless, at the time such advertisement occurs, such person, firm or corporation has a then valid drain layer or drain cleaner contractor's license issued under the provisions of this chapter;

(b) Any advertisement by such person, firm or corporation as a drain layer or drain cleaner contractor which is placed or published in any publication or other print medium circulated, displayed or distributed within the city limits or which is broadcast by radio or television or any other means to persons within the city limits shall include the full name of the licensed person, firm or corporation and the license number assigned by the office of central inspection to such person, firm or corporation.

(c) As used in this section, the words "advertised" or "advertisement" shall include, but not be limited to, a business card, contract bid proposal form, printed letterhead, any other printed or written material designed to inform persons of the services offered by the advertising person, firm or corporation and to solicit business from such persons, or any broadcast statement designed to inform persons of the services offered by the advertising person, firm or corporation and to solicit business from such persons. Such words are intended to include telephone directory display ads but not basic white and yellow page listings.
(Ord. No. 42-119 § 2)

Sec. 16.04.450. Application for engaging in the business of drain laying.

(a) Applications for examinations for either a master or journeyman drain layer's certificate shall be made to the office of central inspection and shall examine each applicant as to his or her particular knowledge of drain laying, repairing, relaying or cleaning out of any private sewer or drain, and if satisfied as to the competency of the applicant shall thereupon direct that such certificate be issued to the applicant, authorizing him to engage in the business or work at the trade of drain laying, repairing, relaying, or cleaning out of any private sewer or drain, either as a master drain layer or as a journeyman drain layer.

All such applicants shall make application to the central inspection division as provided for in the section and shall at such time and place as directed, be subjected to an examination as to his or her qualifications.

All applicants for master drain layer certificates shall have had two years of experience as a journeyman drain layer. All applicants for journeyman drain layer certificates shall have had two years of drain laying experience.

The fee for examination and original certificate or a master drain layer and sewer cleaner shall be established by the superintendent of central inspection division to cover the administrative costs of issuing such certificates.

All drain layer and sewer cleaner certificates shall be renewed annually upon payment of a fee established by the superintendent of central inspection division to cover the costs of issuing such certificates. All such certificates shall expire on the thirty-first day of December of each year, and no reduction shall be made for part of a year being elapsed. All holders of certificates not renewed by March 1st after their expiration may be required

to take examinations before receiving new certificates and shall be required to pay a ten percent per month penalty.

(b) The board of appeals of plumbers and gas fitters is authorized to cancel and recall the certificate of any master or journeyman drain layer or sewer cleaner and the license of any master drain layer or sewer cleaner for any of the following reasons:

1. Abandonment of any contract without legal cause;
2. Diversion of funds or property received for performance or completion of a specific contract, or for a specific purpose in the performance or completion of any contract, and the application or use for any other contract, obligation or purpose, or the failure, neglect or refusal to use such funds or property for the performance or completion of such contract;
3. The committing of any act in violation of any provisions of this Code or the failure or refusal to comply with any lawful order of the administrative authority;
4. Misrepresentation of a material fact by the applicant in obtaining a license;
5. The failure of any such master or journeyman drain layer or sewer cleaner to fully satisfy all claims for labor and materials used in the performance of any work for which he has been engaged and for which he has been paid;
6. Use of a license to obtain permits for another;
7. Carelessness or negligence in providing reasonable safety measures for the protection of workmen and the public;
8. Failure to obtain permits;
9. Unreasonable delay in performance and carrying out of any contract.

(Ord. No. 43-891 § 3)

Sec. 16.04.510. Issuance of new licenses.

No new license shall be issued to any person, under the provisions of this chapter, unless and until all permit, tap or other fees due the city for the previous license year have been paid in full and all completed jobs have been done in accordance with this title and approved by the superintendent of central inspection.
(Ord. No. 36-689 § 38)

Sec. 16.04.530. Request to see certificate, license and permit.

It is the duty of every person doing work as a drain layer or sewer cleaner in the city to show his certificate, license and permit to any officer of the city who shall request to see the same.
(Ord. No. 36-689 § 39)

Sec. 16.04.540. Administrative penalties.

Notwithstanding any other remedies or procedures available to the city, any user of the city's sanitary sewer system who is found to have violated any provision of this chapter may be assessed an administrative penalty of not to exceed one thousand dollars per violation. Each day on which a violation shall occur or continue shall be deemed a separate and distinct violation. Such assessment may be added to the user's next scheduled sewer service charge and the director of the water and sewer department shall have such other collection remedies as are available at law.
(Ord. No. 42-448 § 4)

Sec. 16.04.550. Request for hearing and appeal.

(a) Hearing. Any person affected by a penalty, order or directive of the city issued pursuant to this chapter may, within ten days of the issuance of such penalty, order or directive, request a hearing before the director of the water and sewer department to show cause why such should be modified or made to not apply to such person. Such request shall be in writing and addressed to the director at 455 N. Main Street, Wichita, Kansas. The director, or the director's designee, shall hold the requested hearing as soon as practical after receiving the request, at which time such person shall have the opportunity to be heard. At the conclusion of such hearing, the director, or the director's designee, shall issue a

written response to such person's request either affirming, modifying or rescinding the penalty, order or directive at issue.

(b) Appeal. Any person aggrieved by the decision of the director, or the director's designee, after the hearing provided for above, may appeal such decision to the city council within ten days of the receipt of such decision by filing a written notice of appeal with the city clerk. The city council shall hear such appeal on the record and may affirm, modify or reverse the decision of the director, or the director's designee.
(Ord. No. 42-448 § 5)

Sec. 16.04.560. Legal action.

Notwithstanding any other remedies or procedures available to the city, if any person discharges sewage, industrial wastes or other wastes or flow into the city's sanitary sewer system contrary to the provisions of this chapter, the city attorney may commence an action for appropriate legal or equitable relief, including damages and costs, in the District Court of Sedgwick County. Whenever a user of the city's sanitary sewer system has violated or continues to violate the provisions of this chapter, the city attorney may seek a preliminary injunction or permanent injunction, or both, as is necessary to assure abatement of any violation(s).
(Ord. No. 42-448 § 6)

Sec. 16.04.570. Violation—Penalty.

Any person, firm, partnership or corporation violating any provision of this chapter shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not to exceed five hundred dollars, or by imprisonment not to exceed thirty days, or both such fine and imprisonment.
(Ord. No. 36-689 § 40)

CHAPTER 16.12. SEPTIC TANKS, CESSPOOLS AND PRIVIES

Sec. 16.12.010. Required connection to sewers.
Sec. 16.12.020. Construction in certain areas prohibited.
Sec. 16.12.030. Plans and specifications to be submitted; information to be shown.
Sec. 16.12.040. Permit required prior to construction.
Sec. 16.12.045. Fees.
Sec. 16.12.050. To be abandoned as soon as sewer available.
Sec. 16.12.060. Abatement as nuisance; cost.
Sec. 16.12.070. Inspection of installations required; approval.
Sec. 16.12.080. Requirements as to outside vaults.
Sec. 16.12.090. Location with reference to wells, cisterns, water lines, etc.
Sec. 16.12.100. Requirements as to material and manner of construction.
Sec. 16.12.110. Cesspools prohibited.

Sec. 16.12.010. Required connection to sewers.

Every property owner who owns real property within the distance of one hundred fifty feet of any public main or lateral sewer shall, upon notice in writing to do so from the director of environmental health or his or her authorized representative, make proper and permanent connections to such sewer and remove or fill all privies and cesspools and abandon the use of any septic tank systems on-site waste water or alternative sewer systems. Any person owning such real property who after having sixty days' notice from the department of environmental health, shall fail to connect to such sewer and remove or fill up such privies, cesspools, abandoned septic tank systems, other on-site waste water or alternative sewer systems shall be guilty of a misdemeanor.
(Ord. No. 45-534 § 1; Ord. No. 4561 § 1)

Sec. 16.12.020. Construction in certain areas prohibited.

It is unlawful for any person to construct a septic tank system, on-site waste water, or alternative sewer systems except in those portions of the city not within one hundred fifty feet of any sanitary sewer.
(Ord. No. 45-534 § 2; Ord. No. 39-525 § 1)

Sec. 16.12.030. Plans and specifications to be submitted; information to be shown.

In the construction or modification of any septic tank system, on-site waste water or alternative sewer system plans and specifications for the same shall be submitted to the department of environmental health, showing the location and size of the same and the number of persons it is designed to serve.
(Ord. No. 45-534 § 3; Ord. No. 4561 § 2)

Sec. 16.12.040. Permit required prior to construction.

Before the construction of any septic tank system, on-site waste water or alternative sewer systems is begun, a permit therefore shall be obtained from the department of environmental health.
(Ord. No. 45-534 § 4; Ord. No. 4561 § 2)

Sec. 16.12.045. Fees.

The director of environmental health shall assess a fee for issuance of permits to construct or modify septic tank systems, on-site waste water, or alternative sewer systems. The property owner shall be responsible for all fee sufficient to cover the cost of permit issuance and inspection(s) of the completed system.
(Ord. No. 45-534 § 5)

Sec. 16.12.050. To be abandoned as soon as sewer available.

Septic tank systems, on-site waste water, or alternative sewer systems shall be abandoned and disconnected as soon as sanitary sewer connections are available and whenever there is a sanitary sewer within one hundred fifty feet of such real property, connections therewith must be made.
(Ord. No. 45-534 § 6; Ord. No. 4561 § 2)

Sec. 16.12.060. Abatement as nuisance; cost.

Should any septic tank system, on-site waste water or alternative sewer system, cesspool or privy become a nuisance, the same shall be abated by the owner and in the case of failure to be done

so, the department of public health may authorize the abatement of the nuisance. In such case the costs thereof shall be assessed against the property.
(Ord. No. 45-534 § 7; Ord. No. 4561 § 2)

Sec. 16.12.070. Inspection of installations required; approval.

When septic tank systems, on-site waste water or alternative sewer systems, and drains from buildings to such systems are installed and before such drains or systems are covered, the department of environmental health must be notified to make a final inspection of the same, and if approved by the department of environmental health, such drains and systems can be covered up.
(Ord. No. 45-534 § 8; Ord. No. 4561 § 2)

Sec. 16.12.080. Requirements as to outside vaults.

Outside vaults to be constructed or now in use in the city shall be governed by the same regulations as are applicable to septic tank system.
(Ord. No. 4561 § 2)

Sec. 16.12.090. Location with reference to wells, cisterns, water lines, etc.

Septic tank systems, on-site waste water or alternative sewer systems, and privies must in all cases be at least fifty feet from any well or cistern, ten feet from any water service line and at least five feet from any adjoining property line, streets or alley.
(Ord. No. 45-534 § 9; Ord. No. 4561 § 2)

Sec. 16.12.100. Requirements as to material and manner of construction.

Septic tank systems, on-site waste water or alternative sewer systems and privies must be constructed of such material and in a manner as approved by department of environmental health.
(Ord. No. 45-534 § 10; Ord. No. 4561 § 2)

Sec. 16.12.110. Cesspools prohibited.

No cesspool of any form whatever shall be permitted to be constructed within the city.
(Ord. No. 4561 § 2)

CHAPTER 16.14. SANITARY SEWERAGE SYSTEM WITHIN THE CORPORATE BOUNDARIES

Sec. 16.14.010. Authority to levy use charges.
Sec. 16.14.020. Classification of users.
Sec. 16.14.030. Basis of charges.
Sec. 16.14.040. Schedule of rates and charges.
Sec. 16.14.041. Payment of plant equity fees for connection of sewer service.
Sec. 16.14.045. Authority to collect fees, taxes and charges for other governmental entities.
Sec. 16.14.050. Bills—Rendering—Due date.
Sec. 16.14.060. Delinquent payments—Collection—Discontinuance of service—Interest.
Sec. 16.14.070. Sewer utility fund—Created—Use.
Sec. 16.14.080. City manager—Accounting for revenue in budget.
Sec. 16.14.090. City manager—Authority to make regulations.
Sec. 16.14.100. Right of entry, inspection and sampling.
Sec. 16.14.110. City's right to disconnect service—Notice.
Sec. 16.14.120. City's responsibility—Liability.
Sec. 16.14.130. Replacement fund.

Sec. 16.14.010. Authority to levy use charges.

There are levied on all persons, firms, corporations, organizations, political units and political subdivisions and all other entities now or hereafter connected to the sewerage system of the city, charges for the use of such system as hereinafter provided.
(Ord. No. 36-320 § 1)

Sec. 16.14.020. Classification of users.

All users of the sewerage system of the city are, for the purposes of this chapter, classified and all revenue received from sewer service charges shall be accounted for according to these customer classes. The classes are established as follows:

A. RESIDENTIAL: Residential means any structure housing one or two families and which has metered water consumption, supplied by one or two meters.

B. FLAT RATE RESIDENTIAL: Flat rate residential means any premises served upon which there is located any structure housing one or more families and which does not have metered water consumption.

C. EDUCATIONAL, RELIGIOUS, PUBLIC AND CHARITABLE: Educational, religious, public and charitable means:

(1) Public and parochial schools, colleges and universities;

(2) Churches;

(3) Public parks;

(4) Charitable institutions, the premises of which are declared by the Commissioner of Revenue and Taxation of the state to be exempt from the payment of ad valorem taxes.

D. COMMERCIAL AND INDUSTRIAL: All users other than those above classified.
(Ord. No. 36-320 § 2)

Sec. 16.14.030. Basis of charges.

There is levied on such sewerage system user having any sewer connection with the sewerage system of the city or otherwise discharging sewage, industrial waste, or other liquids, either directly or indirectly into the city's sewerage system which ultimately enter the sewerage system, a sewerage charge. Subject to the exceptions provided in this chapter, such charges shall be based upon the quantity of water used in or on the premises as the same is measured by a water or sewer meter or meters. All meters must be acceptable to the director of water and sewer. Additional charges for extra strength sewage will be levied where applicable.

The monthly sewage volume charges for residential, educational, religious, public and charitable classifications shall be based on the average of actual metered water consumption in the months of December, January, February, and March or the actual metered water consumption, whichever is less. Provided, however, that in no case shall the billed consumption based on the averaging of the above months be less than the actual metered water consumption or three thousand gallons, whichever is less.

For residential, educational, religious, public and charitable institution customer establishing a new service for which no metered consumption history exists, the monthly sewage volume charges for sewerage services shall be based upon the average monthly sewage volume for classes of similar customer and meter size until an average monthly sewage volume for such account is established in accordance with the preceding paragraph.

Commercial and industrial volume charges shall be based on one hundred percent of metered water consumption except as otherwise provided in Section 16.14.040. All such charges as delineated above shall be made in accordance with the schedule of rates set out in Section 16.14.040 of this chapter.
(Ord. No. 45-186 § 1; Ord. No. 42-259 § 1)

Sec. 16.14.040. Schedule of rates and charges.

I. SCHEDULE OF USE CHARGES:

Each user of the sewerage system of the City shall pay, for the use of such system, sewer charges at no less than monthly intervals based where possible upon the consumption of water by such user as recorded by each of the water meters or sewer meters serving the premises according to the classifications and schedule set forth in this section.

Where any commercial or industrial premises are connected with the City's sewerage system but are not served by the City's water utility system, the owner or occupant of such premises shall, at their own expense, install and maintain on such premises a water meter or meters of a type and at a location acceptable to the Utilities of the City, which shall measure all water received on said premises from all sources, and the sewer services charge of said premises as prescribed in this section shall be based upon such meter recording. The City shall install equipment to automate the reading of said meters. The City shall charge a one-time installation fee based upon meter size for the purpose of administrative and replacement costs. A sewage meter, as set forth in the following sub-section of this section, may be substituted for the water meter requirement.

II. SEWER SERVICE VOLUME BASE:

If a commercial or industrial user desires to establish eligibility for a sewer service volume base of less than one hundred percent (100%) of water consumption, said user must submit an application in writing to the Wichita Water Utility. Upon approval the customer shall authorize the City to install the following at the Customer's expense:

A sewage meter acceptable to the director of public works & utilities to measure the volume of liquid actually discharged into the sewerage system from their premises. Customers receiving credits through the use of water meters used for cooling towers, production credit, groundwater remediation and well water are responsible for the maintenance and calibration of said meters. If a credit is to be applied to the customer's account, the customer must have the meter tested and calibrated every two years by Wichita Water Utilities. The cost of the test will be borne by the customer at the current rate for meter testing. Further, the customer will be responsible for the removal and re-installment of the meter once testing has been completed. Sewer meters are required to be calibrated annually. Calibration must be provided through a recognized testing agency and certification of calibration must be provided to the Utilities upon completion. Calibration records shall be maintained by the City for a period of five years. No meter shall be installed on wastewater discharged until approval has been obtained from the director of public works & utilities or their duly authorized representative. Tampering with, injuring, or removing meters without written permission from the director of public works & utilities or their duly authorized representative is prohibited. In the event a sewage meter is installed, the rate schedule as set forth in this chapter shall be applied to the volume of sewage entering the sanitary sewer as measured by the meter. In the event of a meter malfunction, the customer shall be responsible for repairs. In the event that the metered amount of water consumption is less

than the amount of discharge, Customer Service staff will verify that the water meter is registering flow accurately. If the water meter appears to be operating correctly, the customer will be notified and corrective action by the customer must be taken before an adjustment or credit for discharge is given. Until such time as the meter is either repaired or replaced by the customer, billing for sewer services will be based on metered water consumption. In the event that that metered water consumption begins to increase over metered discharge or if the only metered service is sewer and metered waste drops more than ten percent, Customer Service staff will verify that the water meter is registering flow accurately and/or that the sewer meter is registering flow. If the water meter appears to be operating correctly and the sewer meter is registering flow, the customer will be notified and corrective action by the customer will be required before an adjustment or credit for discharge is given. Until such time as the meter is either repaired or replaced by the customer, billing for sewer services for those accounts with metered water service will be based on 125% of average metered water consumption. For those accounts that are metered sewer only accounts, bills will be estimated based on 125% of the average of the prior twelve months metered discharge.

In lieu of sewage meter(s), the user may request installation of auxiliary water meter(s) to measure the portion of water consumed which is diverted from entering the sanitary sewer. In the event an auxiliary water meter is installed, the volume of water metered by such meter(s) shall be deducted from the total volume of water consumed before the sewer service charge rate schedule is applied. Customers receiving credits through the use of water meters used for cooling towers, production credit, groundwater remediation and well water are responsible for the maintenance and calibration of the said meters. If a credit is to be applied to the customer's account, the customer must have the meter tested and calibrated every two years by Wichita Water Utilities. The cost of the test will be borne by the customer at the current rate for meter testing. Further, the customer will be responsible for the removal and re-installment of the meter once testing has been completed. The City may install meters and charge the customer for the meter, installation fees, and a monthly fee based on the size of the meter.

No credits for sewer use shall be given until the type and location of meters installed have been approved by the director of public works & utilities or their duly authorized representative.

Sewer volume credits established in accordance with the provisions of this Section for commercial and industrial users shall be prospective only.

III. EXTRA STRENGTH CHARGE:

Sewage discharged to the sanitary sewer system from each industrial or commercial user shall be subject to an extra strength charge when the biochemical oxygen demand (BOD) concentration exceeds two hundred fifty milligrams per liter, the suspended solids (SS) exceeds a concentration of three hundred milligrams per liter, or the oil and grease concentration exceeds one hundred milligrams per liter, as determined by Environmental Protection Agency Methodology stipulated in 40 CFR Part 136 analysis procedures. Sample collection methodology will be as specified by the director of public works & utilities. Extra strength charges shall be calculated according to the formula:

S = V (0.00832) (X(BOD-250) + Y(SS-300) + Z(O&G-100)

Where:

S	=	Extra strength charge in dollars
V	=	Sewage volume in thousands of gallons
0.00832	=	Conversion factor for thousands of gallons to million pounds
X	=	Applicable unit charge for BOD in dollars per pound from the schedule below
BOD	=	BOD strength index in parts per million by weight or mg/l
250	=	Allowable BOD strength under normal volume charges in parts per million by weight or mg/l

Y	=	Applicable unit charge for suspended solids in dollars per pound from the schedule below	Z	Applicable unit charge for oil and grease in dollars per pound from the schedule below
SS	=	Suspended solids strength index in parts per million by weight or mg/l	O&G	Oil and grease index in parts per million by weight or mg/l
300	=	Allowable suspended solids strength under normal volume charges in parts per million by weight or mg/l	100	Allowable oil and grease under normal volume charges in parts per million by weight or mg/l

As of January 1, 2026, extra strength unit charges are established as shown in schedule below:

	Charge per Pound	
Effective January 1, 2026 to December 31, 2026	**Inside City**	**Outside City**
BOD	$0.32	$0.53
Suspended Solids	0.29	0.47
Grease	4.78	7.65

	Charge per Pound	
Effective January 1, 2027 to December 31, 2027	**Inside City**	**Outside City**
BOD	$0.33	$0.55
Suspended Solids	0.31	0.50
Grease	4.92	7.87

	Charge per Pound	
Effective January 1, 2028 and thereafter	**Inside City**	**Outside City**
BOD	$0.34	$0.57
Suspended Solids	0.32	0.52
Grease	5.07	8.11

IV. TOXIC POLLUTANT CHARGE:

Discharging of any toxic pollutants is prohibited under City Code Section 16.22. If any such waters or wastes enter into the municipal sewer system which cause an increase in the cost of managing the effluent or the sludge from the City's treatment plants and/or collection system, the discharger shall pay for the increased costs, and will be subject to the penalties ascribed in Chapter 16.22.

V. WASTEWATER ANALYSIS:

Samples and measurements will be taken by the City, as required by the director of public works & utilities or their authorized representative. The strength of the sewage discharge by the industrial or commercial user will be determined by the analyses of said samples.

The user, at their expense, may be required at the sole discretion of the director of public works & utilities to provide monitoring and flow measurement facilities which coincide at the point at which effluent limits apply. Sampling locations must be safe, convenient, and accessible to the industrial user and Wichita Water Utilities personnel.

If any industrial or commercial user chooses not to accept the analytical determination made by the City for a billing period, such user shall, prior to the date on which payment of the charges for such billing is due, notify the director of public works & utilities in writing and, at their sole expense, employ an independent laboratory which is certified by the Kansas Department of Health and Environment and acceptable to the director of public works & utilities, to conduct sampling and analysis of their sewage.

The time period, location, and method for the collection of the samples shall be designated by the City. The City and the independent laboratory shall both preside over the collection of the samples and shall equally divide the samples so that duplicate analysis may be performed.

If results of the analysis of the sewage sample made by both the City and the independent laboratory are not comparable, the director of public works & utilities may appoint a second independent laboratory certified by the Kansas Department of Health and Environment to analyze the sewage. The sampling procedures used will be the same as those outlined above. The results of these analyses, together with the previous results, shall be used to determine the actual extra strength charges for the subject billing period. The fee for the second independent laboratory analyses shall be paid for by the user.

VI. MONITORING CHARGE:

When regulations, Federal, State or City, require monitoring of the waste from an industry, that industry shall pay a monitoring charge.

The monitoring charge shall consist of all costs for personnel, material and equipment used to collect and analyze samples from the user's wastewater. The exact charge shall be based on actual costs and shall be determined by the director of public works & utilities.

VII. REVIEW OF USER CHARGE RATE STRUCTURE:

The user charge rate schedule of the City shall be reviewed and adjusted at least biennially to:

a) Maintain the proportional distribution of operation, maintenance and replacement costs among user classes.

b) Provide adequate revenues to cover operation, maintenance and replacement and debt service costs.

VIII. SEWER RATES AND CHARGES:

On and after January 1, 2026, the schedule of rates and charges as set forth below shall apply to all categories of sewer customers.

A. BASE SERVICE CHARGES (Monthly charges based on water meter size)

Effective January 1, 2026 to December 31, 2026					
Meter Sizes	**Inside City Residential**	**Outside City Residential**	**Inside City Commercial**	**Outside City Commercial**	**Wholesale**
⅝ inch	$12.62	$20.22	$12.53	$20.09	$18.16
¾ inch	12.62	20.22	12.53	20.09	18.16
1 inch	12.62	20.22	12.53	20.09	18.16
1½ inch	20.39	32.63	20.26	32.41	29.30
2 inch	30.52	48.65	30.32	48.33	43.68
3 inch	88.23	141.18	87.65	140.25	126.76
4 inch	112.23	179.55	111.49	178.37	161.21
6 inch	212.29	339.66	210.90	337.43	304.96
8 inch	302.57	484.06	300.57	480.87	434.61
10 inch	466.63	746.61	463.56	741.69	670.32
12 inch	681.07	1,089.69	676.58	1,082.52	978.36

Effective January 1, 2027 to December 31, 2027					
Meter Sizes	**Inside City Residential**	**Outside City Residential**	**Inside City Commercial**	**Outside City Commercial**	**Wholesale**
⅝ inch	$13.43	$21.52	$13.28	$21.30	$18.79
¾ inch	13.43	21.52	13.28	21.30	18.79
1 inch	13.43	21.52	13.28	21.30	18.79
1½ inch	21.70	34.72	21.48	34.36	30.31
2 inch	32.48	51.77	32.15	51.24	45.19

Effective January 1, 2027 to December 31, 2027					
3 inch	93.89	150.24	92.93	148.70	131.15
4 inch	119.43	191.07	118.21	189.12	166.79
6 inch	225.91	361.46	223.61	357.76	315.51
8 inch	321.99	515.12	318.68	509.84	449.65
10 inch	496.58	794.52	491.49	786.37	693.52
12 inch	724.78	1,159.62	717.34	1,147.74	1,012.22

Effective January 1, 2028 and thereafter					
Meter Sizes	**Inside City Residential**	**Outside City Residential**	**Inside City Commercial**	**Outside City Commercial**	**Wholesale**
⅝ inch	$14.08	$22.57	$13.89	$22.28	$19.30
¾ inch	14.08	22.57	13.89	22.28	19.30
1 inch	14.08	22.57	13.89	22.28	19.30
1½ inch	22.76	36.41	22.47	35.94	31.13
2 inch	34.06	54.29	33.63	53.59	46.41
3 inch	98.46	157.56	97.19	155.52	134.69
4 inch	125.25	200.37	123.63	197.80	171.30
6 inch	236.91	379.06	233.87	374.18	324.03
8 inch	337.67	540.20	333.30	533.23	461.80
10 inch	520.76	833.21	514.04	822.45	712.25
12 inch	760.07	1,216.09	750.25	1,200.40	1,039.56

B. VOLUME CHARGES

Effective January 1, 2026 to December 31, 2026				
	Inside City Residential	**Outside City Residential**	**Inside City Commercial**	**Outside City Commercial**
Price per 1,000 gallons of metered water consumption	$4.98	$7.96	$4.94	$7.91

Effective January 1, 2027 to December 31, 2027				
	Inside City Residential	**Outside City Residential**	**Inside City Commercial**	**Outside City Commercial**
Price per 1,000 gallons of metered water consumption	$5.30	$8.47	$5.24	$8.39

Effective January 1, 2028 and thereafter				
	Inside City Residential	**Outside City Residential**	**Inside City Commercial**	**Outside City Commercial**
Price per 1,000 gallons of metered water consumption	$5.56	$8.88	$5.48	$8.77

C. FLAT RATE CHARGES

Effective January 1, 2026 to December 31, 2026	
Inside City	**Outside City**
$36.84	$58.92

Effective January 1, 2027 to December 31, 2027	
Inside City	**Outside City**
$39.20	$62.70

Effective January 1, 2028 and thereafter	
Inside City	*Outside City*
$41.11	$65.75

D. WHOLESALE RATES

Effective January 1, 2026 to December 31, 2026	
Monthly charge per 1,000 gallons	$3.53
Effective January 1, 2027 to December 31, 2027	
Monthly charge per 1,000 gallons	$3.65
Effective January 1, 2028 and thereafter	
Monthly charge per 1,000 gallons	$3.75

IX. GOVERNMENT MILITARY FACILITIES LOCATED OUTSIDE THE CITY

Government military facilities located outside the City of Wichita shall be charged inside city rates for sewer service.

X. MISCELLANEOUS CHARGES

Other charges and billing for special services, such as but not limited to administrative cost, account origination fees, collection cost, disconnect/reconnect fees, damages and/or vandalism to Utility infrastructure and appurtenances, etc., shall be determined by the director of public works & utilities and set forth in Section 16.04.055.

(Ord. No. 46-423 § 1; Ord. No. 46-650, § 1, 8-16-04; Ord. No. 47-110, § 1, 8-22-06; Ord. No. 47-983, § 1, 8-12-08; Ord. No. 48-409, § 1, 8-18-09; Ord. No. 48-761, § 1, 6-22-10; Ord. No. 48-762, § 1, 6-22-10; Ord. No. 49-165, § 1, 12-13-11, eff. 1-1-12; Ord. No. 49-402, § 1, 12-4-12, eff. 1-1-13; Ord. No. 49-610, § 1, 11-26-13; Ord. No. 49-912, § 1, 12-16-14, eff. 1-1-15; Ord. No. 50-136, § 1, 12-15-15, eff. 1-1-16; Ord. No. 50-383, § 1, 12-13-16; Ord. No. 50-917, § 1, 1-15-19; Ord. No. 51-158, § 1, 12-10-19; Ord. No. 51-382, § 1, 12-8-20; Ord. No. 51-681, § 1, 12-14-21; Ord. No. 51-972, § 2, 11-22-22; Ord. No. 52-575, § 1, 12-10-24; Ord. No. 52-846, § 1, 12-9-25)

Sec. 16.14.041. Payment of plant equity fees for connection of sewer service.

Each customer requesting a new service connection to the sewerage system shall pay a plant equity fee prior to connection as part of the approval process for new service connections.

Such plant equity fees shall be determined on the basis of the equity existing system customers have accumulated in the system as determined on the basis of a detailed analysis of plant assets and shall constitute a system buy in fee assessed to new connections. The meter size on which the fee schedule is based shall be in reference to the associated water meter size. Applications for sewer connections for which there is no associated water service application shall be calculated on the basis of projected flows from other sources, which would approximate flows, derived from a particular water service size.

The schedule of said plant equity fees shall be as follows:

Meter Size	2007 & Beyond
1" or less	$1,350
1½"	2,700
2"	4,320
3"	8,100
4"	13,500
6"	27,000
8"	43,200
10"	62,100
12"	116,100

Given the variations in uses which may accrue to services eight inches or larger in size, fees charged in relation to such service sizes may be adjusted by the Director of Utilities upon receipt of detailed estimates of projected usage characteristics supplied by the applicant for service.

At the discretion of the City Council, the above fees may be waived and/or modified in

relation to economic development projects, which, due to their unusual nature or magnitude, offer extraordinary benefits to the community.

Property owners required to make a payment for connecting to the sewer system as provided above may apply for a deferral of such payment on the basis that such payment would work an economic hardship on the owner(s). The criteria for the granting of such a deferral shall be the same as described in Sections 2.24.070 and 2.24.075 of the code. All other terms and conditions of any deferral hereunder shall be governed by the provisions of 2.24.070 and 2.24.075 except as otherwise noted herein. A deferral hereunder may be granted to owners of property located outside the City limits.
(Ord. No. 45-367 § 1; Ord. No. 43-631 § 1; Ord. No. 47-520, § 1, 7-17-07)

Editor's note—It should be noted that Ord. No. 47-520, § 3, provides for an effective date on and after Oct. 1, 2007.

Sec. 16.14.045. Authority to collect fees, taxes and charges for other governmental entities.

In addition to the rates and charges set forth in this chapter, the director of water and sewer, subject to the approval of the city council, shall have the authority to add to the bill of each customer the appropriate assessment of such sewer protection fees, taxes, and other fees and charges as the department is required to collect for or pay to any other governmental entity.
(Ord. No. 41-637 § 2)

Sec. 16.14.050. Bills—Rendering—Due date.

The department of water and sewer of the city shall render bills for sewer service charges to all flat rate residential customers and the owners of record of property connected to the city's sewerage system but not having metered water consumption at intervals of at least one month. Bills so rendered shall include a charge for each month the premises were connected to the sewer without regard to whether the premises were occupied or unoccupied during all or part of the billing period and whether or not water was actually discharged into the system during the billing period.

Bills for sewer service charges to all other customers shall be rendered by the department of water and sewer in conjunction with the regular water bills to the person or legal entity designated to receive the sewerage bill for sewer service.

An amount equal to one and one-half percent of the unpaid balance will be added to all bills not paid within twenty-five days of the date of issuance.
(Ord. No. 41-860 § 1)

Sec. 16.14.070. Sewer utility fund—Created—Use.

There is hereby created and ordered to be established in the treasury of the city a separate fund hereby designated as the "sewer utility fund." All revenues derived from the sewer service charges herein established including any investment earnings of such revenue shall, when received, be promptly paid into the "sewer utility fund." The moneys in the fund shall be used for the purposes and in the order following:

(a) Paying the cost and expense of the administration, operation, and maintenance of the sewerage system of the city;

(b) Paying the cost of alteration, reconstruction, repair, improvement, extension and enlargement of the sewerage system of the city when authorized specifically by the city council or as approved in the city's annual capital budget or annual operating budget;

(c) Paying the principal of and interest on any bonds that have been heretofore or may be hereafter authorized and issued for the purposes of improving or enlarging or extending main sewers, pumping stations, treatment works, and disposal works operated as a part of the city's sewerage system.

Such other accounts within the "sewer utility fund" may be established and maintained as are in the judgment of the city manager necessary for the proper administration of this city's sewerage system.
(Ord. No. 26-506 § 7)

Sec. 16.14.080. City manager—Accounting for revenue in budget.

The city manager shall, in establishing the city's budget, take into account the projected revenues from the sewerage service charges hereby levied to the end that the ad valorem tax for sewer purposes will be reduced to the fullest extent possible by the substitution of the sewerage service charge revenues.
(Ord. No. 26-506 § 8)

Sec. 16.14.090. City manager—Authority to make regulations.

The city manager is hereby authorized to promulgate such rules and regulations as shall be necessary to carry out the provisions of this chapter according to its term and intent.
(Ord. No. 26-506 § 9)

Sec. 16.14.100. Right of entry, inspection and sampling.

The director of water and sewer, or his authorized representatives, shall have the right to enter upon all premises served by the sewerage system of the city, for the purpose of inspecting, reading or otherwise examining all meters and appurtenances involved in the recording of water received on the premises or sewer wastes discharged therefrom, or to collect samples for analysis of wastewater discharged therefrom.
(Ord. No. 41-637 § 5)

Sec. 16.14.110. City's right to disconnect service—Notice.

Notwithstanding the granting of a permit, the city may, at any time, order or effect a disconnection from the sewerage system of the city of any property lying outside the corporate limits of the city by reason of discharge of sewerage harmful to the sewerage system, because of violations of the sewer or plumbing ordinance of the city, or because of violations of the rules and regulations prescribed by the city manager in accordance with the provisions of this chapter. Notice of the city's intention to disconnect shall be given where reasonably practicable by registered mail to the owner to the extent that the name and address of such owner can be obtained from the public records and also by posting a copy of such notice in a conspicuous place on the real estate being serviced, the mailing of such notice and posting of a copy of such notice to occur not less than sixty days prior to the time the city proposes to effect

such disconnection. All disconnections, except those for nonpayment of charges or for violation of the sewer or plumbing ordinance or for violations of the rules and regulations prescribed by the city manager hereunder, shall be made as of the end of the calendar year.
(Ord. No. 36-320 § 6)

Sec. 16.14.120. City's responsibility—Liability.

The city shall not in any way be liable for its failure to maintain sewer lines or sewage treatment plant or plants, for delayed maintenance, for acts of God or of the public enemy, or for any other cause beyond its control and shall be required only to use reasonable diligence in the disposal and treatment of said sewage. All persons, firms and corporations including the United States of America, the state, and all bureaus, departments and political subdivisions thereof, whose property is located outside the corporate limits of the city and which property is now connected to the sewerage system of the city, and all such persons, firms or corporations who hereafter may apply for sewerage service, are deemed to have consented to any officer or employee of the city going upon the premises at any and all reasonable times for the purpose of making inspections, for the purpose of effecting disconnections and for any other lawful purpose in connection herewith, and any and all persons, firms and corporations above described now using such sewerage system or who may hereafter apply for use of such system hereby waive for themselves and their agents, servants, employees, successors in interest any claim of any kind of character against the city and for themselves, their agents, servants, employees, successors in title and successors in interest, release the city of any claims of any kind or character arising out of or in any way connected with this chapter or the sewerage system of the city.
(Ord. No. 36-320 § 7)

Sec. 16.14.130. Replacement fund.

(Repealed by Ord. No. 42-142.)
(Ord. No. 36-320 § 8)

any kind or character arising out of or in any way connected with this chapter or the sewerage system of the city.
(Ord. No. 36-320 § 7)

Sec. 16.14.130. Replacement fund.

(Repealed by Ord. No. 42-142.)
(Ord. No. 36-320 § 8)

CHAPTER 16.20. DISCHARGE OF WASTES INTO WATERCOURSES AND STORM SEWERS

Sec. 16.20.010. Definitions.
Sec. 16.20.020. Discharge permit required; materials which may be discharged.
Sec. 16.20.030. Treatment facilities required.
Sec. 16.20.040. Sewer connection permit; permit to discharge prerequisite to issuance.
Sec. 16.20.050. Right of entry for inspection; operating records and surveys; analyses of discharges.
Sec. 16.20.060. Sewer or drainage ditches used in violation of chapter to be plugged or removed.
Sec. 16.20.070. Rules and regulations of director of public health.
Sec. 16.20.080. Administration and enforcement of chapter.
Sec. 16.20.090. Notices of violations and hearings thereon.
Sec. 16.20.100. Summary orders in cases of emergencies and hearings on such orders.
Sec. 16.20.110. Proceedings at hearings, findings, notices and orders to be made public records; appeal from final orders to board of commissioners.
Sec. 16.20.120. Application and construction of chapter.
Sec. 16.20.130. Penalty.
Sec. 16.20.140. Liability of officers and employees charged with enforcement; defense by department of law.

Sec. 16.20.010. Definitions.

For the purposes of this chapter and unless the context specifically indicates otherwise, the following terms shall have the meanings respectively ascribed to them by this section:

(a) HEALTH DEPARTMENT shall mean the Wichita-Sedgwick County Department of Public Health.

(b) INDUSTRIAL WASTE shall mean the liquid wastes from industrial processes as distinct from sanitary sewage.

(c) PERSON shall mean any individual, firm, company, association, society, corporation or group.

(d) SANITARY SEWAGE shall mean sewage discharging from the sanitary conveniences of dwellings (including apartment houses and hotels), office buildings, factories or institutions, and free from industrial wastes and unpolluted storm and surface water.

(e) SEWAGE shall mean a combination of the water-carried wastes from residences, business buildings, institutions and industrial establishments, together with such ground, surface and storm waters as may be present.

(f) SEWAGE TREATMENT PLANT OR FACILITIES shall mean any arrangement of devices and structures for treating sewage.

(g) STORM SEWER shall mean a sewer which carries storm and surface waters and drainage, but not designed or intended to carry sanitary sewage or industrial wastes.

(h) UNPOLLUTED WATER shall mean any water which is free of organic and chemical pollutants (free of excessive concentrations of dissolved, suspended, or floating organic materials, or dissolved or suspended inorganic chemicals, and free of excessive amounts of bacterial contamination or radio active materials) or any other harmful, or objectionable material detrimental to the public health of the inhabitants of the city, or detrimental to the plant, animal or aquatic life in the city. Essentially, unpolluted water shall be clear water to which no substances have been added.

(i) WASTE WATER shall mean any water, polluted or unpolluted, that shall be used for some purpose and then discharged on or from the premises where used or such water that has been permitted to escape with or without being used.

(j) WATERCOURSES shall mean a channel, natural or artificial (man made), in which a flow of water occurs either continuously or intermittently.

(Ord. No. 23-136 § 1)

Sec. 16.20.020. Discharge permit required; materials which may be discharged.

It shall be unlawful for any person to discharge, or for any person to permit, allow or suffer to be discharged, any sewage, industrial waste or

waste water into any watercourse or storm sewer, within the corporate limits of the city or within the police jurisdiction thereof, except as hereinafter provided:

(a) DISCHARGE PERMIT; APPLICATION, INVESTIGATION AND ISSUANCE. Any person discharging such sewage or wastes into such watercourses or storm sewers shall hold an appropriate and valid discharge permit from the health department. Before discharging such sewage or wastes into such watercourses or storm sewers, such person shall make application to the health department for a discharge permit authorizing all discharges. The health department shall, after appropriate investigation, either approve the application and issue a discharge permit or disapprove the application, stating the reasons therefor, and prohibit the proposed discharge. The application shall be made on forms provided by the health department and shall be signed by the property owner or the occupant of the property desiring such discharge permit. The application shall provide information concerning the source of the discharge, the amount likely to be discharged, the materials and substances that may be contained therein at any one time, the plans and specifications of any existing or proposed treatment facilities, and any other pertinent information that is needed and required by the health department; provided, that all persons making an application for a permit for such discharge shall be in compliance with the provisions of sections 65-164 and 65-165, General Statutes of Kansas, 1949, and any amendments thereto, and the applicable rules and regulations of the state board of health, before being issued a discharge permit by the health department.

(b) PERSONS DISCHARGING WASTES INTO WATERCOURSES OR STORM SEWERS ON OCTOBER 29, 1957. All persons discharging such sewage, industrial wastes or waste water into such watercourses or storm sewers on the effective date of this chapter* shall, within three months thereafter, register such discharges and make application for a proper discharge permit to the health department in accordance with subsection (a) of this section. In the event the application for a discharge permit is denied, the applicant shall comply with the provisions of this chapter or cease the discharge within a reasonable time as determined by the health department. When the application is approved, a discharge permit shall be issued by the health department.

(c) MATERIALS WHICH MAY BE DISCHARGED TO STORM SEWERS AND WATERCOURSES. The following materials and substances may be discharged to storm sewers, subject to the approval and issuance of a connection permit by the city engineer as provided in section 16.20.040 and to watercourses within the corporate limits of the city or within the police jurisdiction thereof in accordance with the provisions of this chapter:

(1) Unpolluted storm water or surface water.

(2) Unpolluted roof drainage.

(3) Unpolluted subsurface drainage or ground water.

(4) Unpolluted cooling water.

(5) Unpolluted industrial process water.

(6) Discharge from properly operated and maintained swimming pools but not including any sanitary sewage.

(7) Discharge from properly operated and maintained sand and oil traps serving automobile wash racks; provided, that the traps serving such wash racks shall not be used for the discharge of other wastes from garages, services stations and other establishments.

*__Note—__The ordinance comprising this chapter was adopted on October 29, 1957.

(8) Any other waters determined by the health department upon investigation and analysis to be unpolluted.

(d) ADDITIONAL MATERIALS WHICH MAY BE DISCHARGED TO WATERCOURSES. In addition to the discharge of those materials provided for in subsection (c) of this section, the following materials may be discharged to watercourses within the corporate limits of the city or within the police jurisdiction thereof in accordance with the provisions of this chapter:

(1) Sewage, industrial wastes and waste water treated in an approved sewage treatment plant designed, constructed and operated in accordance with the provisions of sections 65-164 and 65-165, General Statutes of Kansas, 1949, and any amendments thereto, and the rules and regulations of the state board of health pertaining thereto.

(Ord. No. 23-136 § 2)

Sec. 16.20.030. Treatment facilities required.

Any person discharging any sewage, industrial wastes or waste water into any watercourses or storm sewer within the corporate limits of the city or within the police jurisdiction thereof which is determined to be polluted shall provide treatment facilities as shall be necessary for adequate treatment of such discharges in compliance with the provisions of this chapter or cease the discharge within a reasonable time as determined by the health department.

(Ord. No. 23-136 § 3)

Sec. 16.20.040. Sewer connection permit; permit to discharge prerequisite to issuance.

No permit shall in any event be issued by the city engineer to make any connection to a storm sewer of the city until a discharge permit shall have been issued by the health department authorizing discharges to such storm sewer in accordance with the provisions of this chapter; provided however, that such discharge permit shall be presented to the city engineer within a reasonable time after issuance by the health department.

(Ord. No. 23-136 § 4)

Sec. 16.20.050. Right of entry for inspection; operating records and surveys; analyses of discharges.

Duly authorized representatives of the health department shall be permitted to enter upon all properties within the corporate limits of the city or within the police jurisdiction thereof for the purposes of inspection, observation, measurement, sampling and testing in accordance with the provisions of this chapter. The health department may require any person who is discharging sewage or wastes to watercourses or storm sewers within the corporate limits of the city or within the police jurisdiction thereof to keep and maintain such operating records as may be pertinent and any such records shall be available to the health department. Any persons discharging sewage or waste to such watercourses or storm sewers may be required at periodic intervals to conduct a survey concerning the discharge of the sewage or waste including the source, measurement of flow and the collection and analysis of proportionate composite samples or grab samples. All analyses of sewage and waste required to be made under the provisions of this chapter shall be made in accordance with the latest edition of "Standard Methods for the Examination of Water, Sewage and Industrial Wastes" as published by the American Public Health Association, New York, New York.

(Ord. No. 23-136 § 5)

Sec. 16.20.060. Sewer or drainage ditches used in violation of chapter to be plugged or removed.

Any sewer or drainage ditch found to carry discharges of sewage, industrial wastes or waste water into any storm sewer or watercourse within the corporate limits of the city or within the police jurisdiction thereof which is not being used or which is being used continuously or intermittently in violation of this chapter shall be plugged

at the discharge point or be physically removed by the owner of the premises on which the same is situated.
(Ord. No. 23-136 § 6)

Sec. 16.20.070. Rules and regulations of director of public health.

The director of public health is hereby authorized to make, adopt and promulgate such rules and written regulations as may be necessary for the proper administration and enforcement of the provisions of this chapter; provided, that such rules and regulations shall not be in conflict with the provisions of this chapter or the laws of the state. All such rules and regulations shall be subject to the approval of the board of commissioners of the city and shall be binding and effective when filed in the office of the city clerk.
(Ord. No. 23-136 § 7)

Sec. 16.20.080. Administration and enforcement of chapter.

The director of public health is hereby designated to administer and enforce this chapter.
(Ord. No. 23-136 § 11)

Sec. 16.20.090. Notices of violations and hearings thereon.

(a) NOTICE OF VIOLATION. Whenever the director of public health or his authorized representative determines that there has been a violation of any provision of this chapter, or of any rule or regulation adopted pursuant thereto, he shall give notice of such alleged violation to the person or persons responsible therefor as hereinafter provided. Such notice shall:

(1) Be in writing over the signature of the director of public health or his authorized representative;

(2) Particularize the violation or violations alleged to exist or to have been committed;

(3) Provide a reasonable time for the correction of the violations particularized; and

(4) Be addressed to and served upon the owner of the property or the occupant of the premises (if the occupant is or may be responsible for the violations found to exist); provided, that such notice shall be deemed to be properly served upon such owner or occupant if a copy is served upon him personally or if a copy thereof is sent by certified or registered mail to his last known post office address. Any such notice may contain an outline of remedial action which, if taken, will effect correction of the particularized alleged violations.

(b) HEARING GRANTED ON PETITION; NOTICE AND TIME OF HEARING. Any person affected by any notice which has been served upon him in connection with the enforcement of an provision of this chapter, or of any rule or regulation adopted pursuant thereto, who is aggrieved thereby, and who believes the same to be contrary to the ordinances or the regulations of the city, may request and shall be granted a hearing on the matter complained of before the director of public health or his designated representative; provided, that such person shall file in the office of the director of public health a brief statement of the grounds therefor, within fifteen days after the notice was served or received by him. Upon receipt of such petition the director of public health or his designated representative shall set a time and place for such hearing and shall given the petitioner written notice thereof. At such hearing, the petitioner shall be afforded an opportunity to be heard and show cause why such notice should be modified or withdrawn. The hearing shall be commenced within not more than fifteen days after the day on which the petition is filed; provided, that upon the application of the petitioner, the date of the hearing may be postponed for a reasonable time beyond such fifteen-day period, and in the judgment of the director of public health or his designated representative the petitioner has submitted a good and sufficient reason for such postponement.

(c) WHEN NOTICES DEEMED FINAL ORDERS. At such hearing, the director of public health or his designated representative may sustain, modify or withdraw the notice, depending upon his finding as to whether the provisions of this chapter and of the rules and regulations adopted pursuant thereto have been complied

with. If the director of public health or his designated representative sustains or modifies such notice, it shall be deemed to be a final order; provided, that any notice served pursuant to subsection (a) of this section shall become a final order if a written petition for a hearing is not filed in the office of the director of public health within fifteen days after such notice is served or received by the person upon which the same is served.

(d) WHEN PERMITS SUSPENDED BY NOTICES DEEMED REVOKED. After hearing in the case of any notice suspending the discharge permit required by this chapter and such notice has been sustained by the director of public health or his designated representative the permit shall be deemed to have been revoked; provided, that any such permit which has been suspended by a notice shall be deemed to be revoked if a petition for a hearing is not filed in the office of the director of public health within fifteen days after such notice is served or received.
(Ord. No. 23-136 § 8)

Sec. 16.20.100. Summary orders in cases of emergencies and hearings on such orders.

Notwithstanding the other provisions of this chapter, whenever the director of public health or his designated representative finds that an emergency exists by reason of the discharging of any sewage, industrial wastes or waste water which requires immediate action to protect the public health, he may, without notice or hearing, issue an order reciting the existence of such emergency and requiring that appropriate action be taken to meet the emergency so found. Any such order shall be effective immediately upon service of the same, and any person to whom such an order is directed shall comply therewith immediately; provided, that upon petition to the director of public health or his designated representative an opportunity for a hearing shall be afforded as soon as possible. After such hearing, depending upon his findings as to whether the provisions of this chapter and of the rules and regulations adopted pursuant thereto have been complied with, the director or his representative shall continue such order in effect, or modify it, or revoke it.
(Ord. No. 23-136 § 9)

Sec. 16.20.110. Proceedings at hearings, findings, notices and orders to be made public records; appeal from final orders to board of commissioners.

The proceedings at any hearing held pursuant to this section, including the findings and decision of the director of public health or his designated representative, shall be summarized, reduced to writing, and entered as a matter of public record in the office of the director of public health. Such records shall also include a copy of every notice or order issued in connection with the matter. Appeals from any final order of the director of public health or his designated representative may be made to the board of commissioners of the city within fifteen days after a copy of the same has been served upon or received by the petitioner. All such appeals shall be effective when a notice thereof specifying the grounds of the appeal shall have been filed in the office of the city clerk.
(Ord. No. 23-136 § 10)

Sec. 16.20.120. Application and construction of chapter.

This chapter shall be applicable to all premises now within the corporate limits of the city or hereafter incorporated therein, or being or coming within the police jurisdiction of the city; provided, that in the event of conflict of ordinances applicable to the subject matter of this chapter, the provisions of the city ordinance that establishes the higher standard for the promotion and protection of the health and safety of the inhabitants of the city shall prevail.
(Ord. No. 23-136 § 1)

Sec. 16.20.130. Penalty.

Any person violating any of the provisions of this chapter shall upon conviction thereof be adjudged to pay a fine of not less than twenty-five dollars nor more than five hundred dollars, or be confined in the city jail not less than ten days nor more than six months, or be both so fined and imprisoned. Each day that any violation hereof is found to exist or continues to exist shall be a separate offense and punishable as such hereunder.
(Ord. No. 23-136 § 12)

Sec. 16.20.140. Liability of officers and employees charged with enforcement; defense by department of law.

Any officer or employee of the city charged with the enforcement of this chapter shall not in the discharge of duties thereby render himself liable personally, and he is hereby relieved from any personal liability for any damage that may occur to persons or property, as a result of any act required or permitted by this chapter in the discharge of his duties; provided, that suit brought against any officer or employee of the city by reason of the performance of any duty under the provisions of this chapter shall be defended by the department of law until the final termination of the proceedings therein.
(Ord. No. 23-136 § 13)

CHAPTER 16.22. MUNICIPAL WASTEWATER AND TREATMENT SYSTEM

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Sec. 16.22.010. Purpose.

The purpose of this chapter is:

(1) To prevent the introduction of pollutants into the municipal wastewater system which could damage or interfere with the normal operation of the system, and/or contaminate the resulting sludge;

(2) To prevent the introduction of pollutants into the municipal wastewater system which could pass through the system, and be discharged into receiving waters or otherwise be incompatible with the system; and

(3) To improve the opportunity to recycle and reclaim wastewaters and sludges from the system.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 1)

Sec. 16.22.020. Policy.

This chapter provides for the regulation of contributors to the municipal wastewater system through the issuance of permits to certain nondomestic users and through enforcement of general requirements for the other users, authorizes monitoring and enforcement activities, requires user reporting, assumes that existing customer's capacity will not be preempted and provides for the setting of fees for the equitable distribution of costs resulting from the program established herein.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 2)

Sec. 16.22.030. Application.

This chapter shall apply within the city and to those persons outside the city who are users of the Wichita publicly owned treatment works (POTW). Except as otherwise provided herein, the director as defined in Section 16.22.040 shall administer, implement and enforce the provisions of this chapter.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 3)

Sec. 16.22.040. Definitions.

Unless otherwise indicated by specific context, the meanings of the terms in this chapter are as follows:

(1) "Act" or "the Act" means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. Section 1251, et seq.

(2) "Approval authority" means the Environmental Protection Agency (EPA), or if the pretreatment program has been formally delegated to the Kansas Department of Health and Environment (KDH&E), it shall mean the Director of the Division of Environment of KDH&E.

(3) "Authorized representative" shall be:

(a) A responsible corporate officer, if the industrial user is a corporation. For the purpose of this subsection (3), a responsible corporate officer means:

(i) A president, secretary, treasurer, or vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making function for the corporation, or

(ii) The manager of one or more manufacturing, production, or operations facilities employing more than two hundred fifty persons or having gross annual sales or expenditures exceeding twenty-five million dollars (in second-quarter 1980 dollars), if authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures;

(b) A general partner or proprietor if the industrial user is a partnership or proprietorship, respectively;

(c) A duly authorized representative of the individual designated in subsection (3)(a) or (3)(b) of this section if:

(i) The authorization is made in writing by the individual described in subsection (3)(a) or (3)(b) of this section,

(ii) The authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the industrial discharge originates, such as the position of plant manager, operator of a well, or well field superintendent, or a position of equivalent responsibility, or having overall responsibility of environmental matters for the company, and

(iii) The written authorization is submitted to the control authority;

(d) Such representative of a governmental entity as may be authorized by law.

(4) "Bioassay test" means a test used to evaluate the toxicity of a sample by comparing its effect on a living organism with the effect of a standard chemical preparation on the same type of organism.

(5) "Biochemical oxygen demand" or "BOD" means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedure in five days at twenty degrees centigrade, expressed in milligrams per liter.

(6) "Building sewer" means the extension from the building drain to the publicly owned sewer system or other place of disposal.

(7) "Bypass" means the intentional diversion of wastestreams from any portion of an industrial user's treatment facility.

(8) "City" means the city of Wichita, Kansas, which is the control authority for the purpose of administering this chapter, represented by the director of the water and sewer department, as approved by the EPA Regional Administrator or the State Director.

(9) "Chemical oxygen demand" or "COD" means the oxygen-consuming capacity of inorganic and organic matter present in wastewater expressed as the amount of oxygen consumed from a chemical oxidant as under standard laboratory procedure in milligrams per liter.

(10) "Combined sewer" means a sewer receiving the combination of surface runoff, wastewater, sewage and/or industrial wastes.

(11) "Composite sample" means a combination of individual samples of water or wastewater taken at selected intervals (generally hourly or some similar specified period), to minimize the effect of the variability of the individual sample. Individual samples may have equal volume or may be roughly proportional to the flow at time of sampling.

(12) "Cooling water" means the water discharged from any use such as air conditioning, cooling or refrigeration or to which the only pollutant added is heat.

(13) "Daily Discharge Flow" means the average volume of water discharged to the sanitary sewer by the industrial user. For the purposes of this Chapter, the average volume is calculated by taking the average monthly-metered wastewater recorded in a calendar year and divide by the industrial user average days of operation in a calendar month. At the discretion of the Director, in lieu of a calibrated wastewater meter, the average volume of water discharged may be calculated using the source water metered at the industrial user location.

(14) "Direct discharge" means the discharge of treated or untreated wastewater directly to the waters of the state.

(15) "Director" means the director of the water and sewer department.

(16) "Environmental Protection Agency" or "EPA" means the U.S. Environmental Protection Agency, or where appropriate, the term may also be used as a designation for the administrator or other duly authorized official of said agency.

(17) "Four-day average" means the mathematical average of daily sampling values for four consecutive monitoring days.

(18) "Governing body" means the city council of the city.

(19) "Grab sample" means a sample which is taken from a waste stream on a one-time basis with no regard to the flow in the waste stream and without consideration of time.

(20) "Holding tank waste" means any waste from holding tanks such as vessels, chemical toilets, campers, trailers, septic tanks and vacuum-pump tank trucks.

(21) "Indirect discharge" means the discharge or the introduction of nondomestic pollutants from any source regulated under Section 307(b) or (c) of the Act (33 USC Section 1317), into the POTW (including holding tank waste discharged into the system).

(22) "Industrial user" means any user contributing industrial wastes to the municipal sewer system.

(23) "Interference" means a discharge which, alone or in conjunction with a discharge or discharges from other sources:

(a) Inhibits or disrupts the POTW, its treatment processes or operations, or its sludge, processes, use or disposal; or

(b) Is a cause of a violation of any requirement of the POTW's NPDES permit (including an increase in the magnitude or duration of a violation) or (ii) prevents the use or disposal of sewage sludge in compliance with the following statutory provisions and regulations or permits issued thereunder: Section 405 of the Clean Water Act, the Solid Waste Disposal Act (SWDA) (and including state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the SWDA), Resource Conservation and Recovery Act (RCRA), the Clean Air Act, the Toxic Substances Control Act, the Marine Protection, Research and Sanctuaries Act, or more stringent state or local regulations.

(24) "Municipal sewer system" means sanitary sewers, pumping stations, sewage treatment plants, main sewers, interceptor sewers, outfall sewers, and works for the collection, transportation, pumping and treating of wastewater, sewage or industrial waste thereto, necessary in the maintenance and operation of the same.

(25) "National categorical pretreatment standard" or "pretreatment standard" means any (present or future) regulation containing pollutant discharge limits promulgated by the EPA in accordance with Section 307(b) and (c) of the Act (33 USC Section 1317) which applies to a specific category of industrial users.

(26) "National pollution discharge elimination system" or "NPDES permit" means a discharge permit issued by the approval authority pursuant to Section 402 of the Act (33 USC Section 1342).

(27) "National prohibitive discharge standard" or "prohibitive discharge standard" shall mean any (present or future) regulation developed under the authority of Section 307(b) of the Act.

(28) "New source" means any building, structure, facility, or installation from which there is or may be a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

(a) The building, structure, facility, or installation is constructed at a site at which no other source is located; or

(b) The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

(c) The production of wastewater generating process of the building, structure, facility, or installation is substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source should be considered.

(29) "Pass through" means a discharge which exits the POTW into waters of the state in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the POTWS's NPDES permit (including an increase in the magnitude or duration of a violation).

(30) "Person" means any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity or their legal representatives, agents or assigns. The masculine gender shall include the feminine; the singular shall include the plural where indicated by the context.

(31) "pH" means a negative logarithm of the hydrogen ion concentration measured in grams per liter of solution.

(32) "Pollution" means the manmade or man-induced alteration of the chemical, physical, biological and radiological integrity of water.

(33) "Pollutant" means any dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical waste, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt, and industrial, municipal and agricultural waste discharged into water.

(34) "Pretreatment" or "treatment" means the reduction of the amount of pollutants, the removal of pollutants or the alteration of

the nature of pollutant properties in wastewater to a less harmful state prior to or in lieu of discharging or otherwise introducing such pollutants into the municipal sewer system. The reduction or alteration can be obtained by physical, chemical or biological processes or process changes by other means, except by dilution as prohibited by federal regulation.

(35) "Pretreatment requirements" means any substantive or procedural requirement (present or future) relating to pretreatment, other than a national pretreatment standard imposed on an industrial user.

(36) "Pretreatment standard" means any (present or future) regulation containing pollutant discharge limits promulgated by the EPA in accordance with Section 307(b) and (c) of the Act, which applies to industrial users.

(37) "Publicly owned treatment works (POTW)" means a treatment works as defined by Section 212 of the Act (33 USC Section 1292), which is owned or operated in this instance by the city. This definition includes any sewers that convey wastewater to the POTW treatment plant, but does not include pipes, sewers or other conveyances not connected to a facility providing treatment. For the purposes of this chapter, "POTW" also includes any sewers that convey wastewaters to the POTW from persons outside the city who are users of the city's POTW.

(38) "POTW treatment plant" means that portion of the POTW designed to provide treatment to wastewater.

(39) "Sanitary sewer" means a sewer which carries wastewater, sewage and/or industrial wastes; and to which storm, surface and groundwaters are not intentionally admitted.

(40) "Severe property damage" means substantial physical damage to property, damage to the treatment facilities which cause them to become inoperable, or substantial or permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. It does not mean economic loss caused by delays in production.

(41) "Sewage" means a combination of the water-carried wastes from users together with such ground, surface and stormwaters as may be present.

(42) "Sewer" means a pipe or enclosed conduit through which sewage is transported to the POTW treatment plant.

(43) "Shall" is mandatory. "May" is permissive.

(44) "Significant industrial user" means:

(a) All industrial users subject to categorical pretreatment standards under 40 CFR 403.6 and 40 CFR Chapter I Subchapter N, Parts 400 — 471;

(b) Any noncategorical industrial user that:

(i) Discharges twenty-five thousand gallons per day or more of process wastewater ("process wastewater" excludes sanitary, noncontact cooling, and boiler blowdown wastewater), or

(ii) Contributes a process wastestream which makes up five percent or more of the average dry weather hydraulic or organic (BOD, TSS, etc.) capacity of the POTW, or

(iii) Has a reasonable potential in the opinion of the city or approval authority to adversely effect the POTW (inhibition, pass through of pollutants, sludge contamination or endangerment of POTW workers) or for violating any pretreatment standard or requirement (in accordance with 40 CFR 403.8(f)(6) and amendments thereof).

(45) "Slug" means any discharge of wastewater of a non-routine or episodic nature, including but not limited to an accidental

spill or noncustomary batch discharge which, in concentration of any given constituent or in quantity of flow, exceeds for any period of duration longer than fifteen minutes, and/or more than five times its average twenty-four hour concentration of flows, during normal operation.

(46) "Significant noncompliance" means that an industrial user meets one or more of the following criteria:

(a) Chronic violations of wastewater discharge limits, defined as those in which sixty-six percent or more of all the measurements taken during a six-month period exceed, by any magnitude, the daily maximum limit or the average limit for the same pollutant parameter;

(b) Technical review criteria (TRC) violations defined as those in which thirty-three percent or more of all the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the daily maximum limit or the average limit multiplied by the applicable TRC (TRC equals 1.4 for BOD, TSS, fats, oil and grease, and 1.2 for all other pollutants except pH);

(c) Any other violation of a pretreatment effluent limit (daily maximum or longer term average) alone or in combination with other discharges, that the city determines has caused interference or pass through (including endangering the health of POTW personnel or general public);

(d) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority under Section 16.22.070.

(e) Failure to meet, within ninety days after the schedule date, a compliance schedule milestone contained in the industrial user's wastewater discharge permit, or enforcement order for starting construction or attaining final compliance;

(f) Failure to provide, within thirty days after the due date, required reports such as baseline monitoring reports, ninety-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules;

(g) Failure to accurately report noncompliance;

(h) Any other violation or group of violations which the city determines will adversely affect the operation or implementation of the pretreatment program.

(47) "Spill prevention and control plan (SPCP)" means a plan prepared by the industrial user to minimize the likelihood of a spill and to expedite control and cleanup activities should a spill occur.

(48) "State" means state of Kansas.

(49) "Standard industrial classification (SIC)" means a classification pursuant to the most recent edition of the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget.

(50) "Storm sewer" or "storm drain" means a sewer which carries storm and surface waters and drainage, but excludes wastewater, sewage, and industrial wastes other than unpolluted cooling water.

(51) "Stormwater" means any flow occurring during or following any form of natural precipitation and resulting therefrom.

(52) "Suspended solids" means solids that either float on the surface of, or are in suspension in, water, sewage, or other liquids; and which are removable by laboratory filtering.

(53) "Total toxic organics" means the summation of all quantifiable values greater than 0.01 mg/L for the organic compounds listed in 40 CFR, Part 433.11(e).

(54) "Toxic pollutant" means any pollutant or combination of pollutants listed as toxic in (present or future) regulations promulgated by the Administrator of the Environmental Protection Agency under the provision of Section 307(a)(1) of the Act.

(55) "User" means any person who contributes, causes, or allows the contribution of wastewater into the city's POTW.

(56) "Wastewater" means the liquid and water-carried wastes from residences, business buildings, institutions, and industrial establishments either treated or untreated, together with such ground, surface, and stormwaters which are contributed into or permitted to enter the POTW.

(57) "Waters of the state" means all streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems, drainage systems and all other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through or border upon the state or any portion thereof.

(58) Unless the context of usage indicates otherwise, the meaning of terms in this chapter not defined in this section shall be as defined in the "Glossary: Water and Wastewater Control Engineering" prepared by Joint Editorial Board of the American Public Health Association, American Society of Civil Engineers, American Water Works Association and Water Pollution Control Federation, copyright 1969.

(59) Abbreviations have these designated meanings:

(a) BOD — Biochemical oxygen demand (five-day, unless otherwise noted as "Ultimate BOD")

(b) CFR — Code of Federal Regulations

(c) COD — Chemical oxygen demand

(d) EPA — Environmental Protection Agency

(e) KDH&E — Kansas Department of Health and Environment

(f) L — Liter

(g) lbs/da — Pounds per day

(h) mg — Milligrams

(i) mg/L — Milligrams per liter

(j) NPDES — National Pollutant Discharge Elimination System

(k) POTW — Publicly owned treatment works

(l) SPCP — Spill prevention and control plan

(m) TRC — Technical review criteria

(n) TSS — Total suspended solids.

(Ord. 43-772 §§ 1, 4 (part); Ord. No. 46-888, § 1, 2-14-06)

Sec. 16.22.050. Position created to administer regulations and ordinances.

There is created the position of pretreatment administrator within the water and sewer department of the city, to administer the provisions of the industrial pretreatment program including all regulations and ordinances as contained herein. The position, under the supervision of the department's superintendent of sewage treatment, shall have charge of the industrial wastewater discharge permit program, industrial user self-monitoring and reporting requirements, inspection and sampling program, and enforcement program as required to ensure compliance by industrial users with applicable laws, rules, regulations, resolutions and ordinances relative to industrial pretreatment. The position shall be responsible for all coordination between other departments of the city, county, state and federal governments, industries, and all other appropriate agencies and organizations.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 5)

Sec. 16.22.060. Prohibited discharges.

No person shall contribute or cause to be contributed, directly or indirectly, any pollutant or wastewater which will interfere with the operation or performance of the sewage collection and treatment facilities. These general prohibitions apply to all such users of the municipal sewer

system whether or not the user is subject to national categorical pretreatment standards or any other national, state or local pretreatment standards or requirements. A user shall not contribute the following substances:

(1) Any liquids, solids or gases which by reason of their nature or quantity are, or may be sufficient either alone or by interaction with other substances, to cause fire or explosion or be injurious in any other way to the municipal sewer system or to the operation of the sewage treatment plant, or which reasonably appear to present an imminent endangerment to the health or welfare of POTW workers and general public. At no time shall two successive readings on an explosion hazard meter, at the point of discharge into the system (or at any point in the system), be more than five percent nor any single reading over ten percent of the lower explosive limit (LEL) of the meter. Prohibited materials include, but are not limited to, gasoline, fuel oil, hexane, kerosene, naphtha, benzene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, carbides, hydrides, and sulfides;

(2) Any solids, natural or man-made fibers, insoluble or emulsified oils, fats, or greases, slurries or viscous materials of such character or in such quantity that may cause an obstruction to the flow in the sewer or otherwise interfere with the proper functioning of the sewage works such as, but not limited to, ashes, cinders, sand, mud, straw, shavings, metal, glass, rags, feathers, tar, plastics, wood, unground garbage, whole blood, paunch manure, hair and fleshings, entrails, paper dishes, cups, milk containers, bones, spent lime, stone and marble dust, grass clippings, rags, spent grains, spent hops, asphalt residues, residues from refining or processing of fuel or lubricating oils, and polishing wastes;

(3) Any waters, wastes, material or substances which are corrosive or irritating to human beings and/or animals, toxic or noxious, or which contain toxic or poisonous solids, liquids, or gases in sufficient quantity, either singly or by interaction with other wastes, to injure or interfere with the sewage treatment process, constitute a hazard to humans or animals, create a public nuisance, or create any hazard in the receiving waters of treated effluent or the sewage treatment plants;

(4) Substances, material, waters, or wastes, listed below, if it appears likely in the opinion of the director that such matter can harm either the sewers, sewage treatment process, or equipment, have an adverse effect on the receiving stream, or can otherwise endanger life, limb, public property, or constitute a nuisance. In forming his opinion as to the acceptability of these wastes, the director shall give consideration to such factors as the quantities of subject wastes in relation to flows and velocities in the sewers, materials of construction of the sewers, nature of the sewage treatment process, capacity of the sewage treatment plant, degree of treatability of wastes in the POTW, and other pertinent factors which reasonably appear to present an imminent endangerment to the health or welfare of POTW workers and general public;

(5) The substances prohibited are:

(a) Any wastewater having a temperature which shall inhibit biological activity in the treatment plant resulting in interference, but in no case wastewater from an indirect discharge with a temperature exceeding one hundred fifty degrees Fahrenheit (sixty-five degrees Centigrade), or which exceeds one hundred four degrees Fahrenheit (forty degrees Centigrade) at the POTW treatment plant,

(b) Any water or wastes which contain fats, wax, grease or oils, whether emulsified or not, or containing substances which may solidify, or become viscous, at temperatures be-

tween thirty-two degrees Fahrenheit and one hundred fifty degrees Fahrenheit (zero degrees to sixty-five degrees Centigrade), in quantities determined by the director that have a deleterious effect upon the POTW conveyance system, processes, and/or equipment, or in quantities which will pass through the POTW to the receiving waters, or impact the storage or disposal of the POTW biosolids. In addition, it is prohibited to discharge these substances in quantities that cause a sewer line blockage resulting in untreated sewage discharging to waters of the United States. The discharge must not be in quantities that present an imminent endangerment to the health and welfare of persons, or otherwise create or constitute a public nuisance. Wastewater contaminated with oils which include, but are not limited to, petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin, shall not exceed concentrations of one hundred mg/L of oil and grease,

(c) Any waters or wastes containing strong acid, iron pickling wastes, or concentrated plating solutions, whether neutralized or not,

(d) Any waters or wastes containing iron, chromium, copper, zinc and similar objectionable or toxic substances; or wastes exerting an excessive chlorine requirement, to such degree that any such material received in the composite sewage at the treatment works exceeds the limits established by the director for such materials, as shown in the table of limits, subsection (13) of this section,

(e) Any waters or wastes containing phenols or other taste or odor-producing substances, in such concentrations exceeding limits established by the director, after treatment of the composite sewage, as necessary to meet the requirements of local, state, federal or other public agencies of jurisdiction for such discharge to the receiving waters,

(f) Any waters or waste containing dissolved sulfide in excess of one mg/L at the point of discharge into the municipal sewer system;

(6) Any wastewater containing any radioactive wastes or isotopes of such half-life or concentration as may exceed limits established by the director in compliance with applicable local, state, or federal regulations;

(7) Any wastewater having a pH less than 5.5 or in excess of 12.0 or wastewater having any other corrosive property capable of causing damage or hazard to structures, equipment and/or personnel of the POTW,

(8) Any pollutants, including oxygen-demanding pollutants, (BOD, TSS, etc.) released at a flow rate and/or pollutant concentration which will cause interference with the POTW;

(9) Any wastewater with objectionable color not removed in the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions;

(10) Any wastewater of unusual volume of flow or concentration of wastes constituting "slugs";

(11) Pollutants which will cause a fire or explosion hazard in the POTW including, but not limited to, wastestreams with a closed cup flashpoint of less than one hundred forty degrees Fahrenheit (sixty degrees Centigrade) using the test methods specified in 40 CFR 261.21, or amendments thereof;

(12) Waters and wastes containing substances which are not amenable to treatment or reduction by the sewage treatment processes employed, or are amenable to treatment only to such degree that the sewage treatment plant effluent cannot meet the requirements of agencies having jurisdiction over discharge to the receiving waters, or any substance which may cause

the sewage treatment plant effluent or any other product of the municipal sewer system such as residues, sludges or scums to be unsuitable for reclamation and reuse or to interfere with the reclamation process. In no case shall a substance discharged to the municipal sewer system cause the sewage treatment plant to be in noncompliance with sludge use or disposal criteria, guidelines, or regulations developed under Section 405 of the Act; any criteria, guidelines or regulations affecting sludge use or disposal developed pursuant to the Solid Waste Disposal Act, the Clean Air Act, the Toxic Substances Control Act or state criteria applicable to the sludge management method being used;

(13) Any wastes contributed by users of the POTW which either singly or in conjunction with other significant industrial users cause the POTW influent to exceed the following limits:

Parameter Daily Maximum (lbs/day)	
Cyanide, total	7:23
Copper	56.21
Nickel	36.50
Chromium	84.72
Silver	24.26
Zinc	162.70
Lead	1.65
Cadmium	3.95
Mercury	.310
Arsenic	5.316
Molybdenum	5.39
Phenol compounds	80.5

Any waste exceeding the following limits:

ParameterDaily Maximum (mg/L)	
Sulfide	1.0

(14) The amounts of the listed pollutants calculated in pounds shall be allocated to each industrial user based on the industrial user's average daily discharge flow volume contributed to the municipal sewer system. The average shall be based upon the industrial user's daily discharge flow. It shall be calculated twice per year using the first six months average daily flow for the second half, and the last six months of the year for the following year. Concentration limits in milligrams per liter (mg/L) shall be applied to each industrial user based on the following discharge flow categories.

Industrial User
Daily Discharge Flow
Category
(gals/day)

1	0—10,000
2	10,001—20,000
3	20,001—30,000
4	30,001—60,000
5	60,001—100,000
6	100,001—200,000
7	200,001—500,000
8	Greater than 500,000

At least annually, the director shall determine which category applies to each industrial user and distribute the amounts of pollutants, calculated in pounds, applying a concentration limit in the industrial users wastewater discharge permit. If an industrial user significantly changes the amount of wastewater discharged to the sanitary sewer, causing the user to change categories, the user must notify the director at least thirty days prior to implementing the change;

(15) Any wastes which exhibit toxicity characteristics based on the bioassay test that causes a fifty percent reduction of the luminescent microorganisms light output (EC50). When using the Microtox bioassy test, the wastewater must not exhibit an EC50 toxicity value of less than 1.9 within the five minute test period, in two consecutive tests taken in a forty-eight hour period;

(16) All industrial and commercial facilities using silver in manufacturing or as a part of a process operation, including but not limited to, the development and/or print-

ing of photographic pictures or x-rays, precious metal plating, or any operation where silver is reasonably expected to be found in the facilities' wastewater, shall not discharge silver bearing wastewater to the POTW without first treating the wastewater to remove the silver or subjecting the wastewater to a silver recovery process, or disposing the silver bearing wastewater at an approved disposal location; These facilities shall follow the guidelines listed in the *City of Wichita Code of Management Practices for Silver and Mercury Dischargers.*

(17) Any substances, materials, water or wastes which will cause interference with or pass through the POTW;

(18) Substances, materials, water or wastes which are hazardous as defined by 40 CFR: Part 261.21 (ignitable), Part 261.22 (corrosive), Part 261.23 (reactive), Part 261.24 (EP toxic), Part 261.31 (hazardous waste from nonspecific source), and Part 261.32 (hazardous waste from specific source);

(19) Any trucked or hauled wastewater, except at discharge points designated by the POTW. All waste haulers shall conform to the regulations set forth in Chapter 7.08 of this Code;

(20) All industrial and commercial facilities using mercury in manufacturing, or as a part of a process operation, including but not limited to, the replacing and restoring dental amalgam fillings, using mercury compounds in laboratory reagents, or using mercury bearing measuring devices such as thermometers and sphygmomanometers, or any operation where mercury is reasonably expected to be found in the facilities' wastewater, shall not discharge mercury bearing wastewater to the POTW without first treating the wastewater to remove the mercury, or disposing the mercury-bearing wastewater at an approved disposal location; These facilities shall follow the guidelines listed in the *City of Wichita Code of Management Practices for Silver and Mercury Dischargers;*

(21) Any wastes containing Aqueous Fire Fighting Foam in the amount that results in foam in the collection system or the treatment process in quantities that result in POTW interference and or pass through and inhibits the nitrification process at the POTW.

(Ord. 43-772 §§ 2, 4 (part); Ord. No. 46-888, § 2, 2-14-06)

Sec. 16.22.070. Pretreatment requirement.

If any waters or wastes are discharged or are proposed to be discharged, into the municipal sewer system, which waters contain the substances or possess the characteristics enumerated in this chapter, and which in the judgment of the director may have a deleterious effect upon the sewerage works, sewage treatment processes, equipment or receiving waters, present an imminent endangerment to the health and welfare of persons, or which otherwise create or constitute a public nuisance, the director may, after informal notification to the user:

(1) Reject the waste or immediately take measures to halt or prevent any discharge of pollutants to the POTW;

(2) Require pretreatment to an acceptable condition for discharge;

(3) Require control over the quantities and rates of discharge; and/or

(4) Require payment to cover the added cost of handling and treating the wastes.

Any person notified of a suspension of the wastewater treatment service and/or the wastewater discharge permit shall be subject to the enforcement conditions set forth in this chapter.

If the director permits the pretreatment or equalization of waste flows, the design and installation of the plants and/or equipment shall be subject to the review and approval of the director. Plans and specifications shall be submitted for review and approval prior to beginning any building or construction, and subject to the require-

ments of all applicable local, state and federal laws, regulations, codes and ordinances. Where pretreatment or flow-equalizing facilities are provided for any waters or wastes, they shall be maintained continuously in satisfactory and effective operation by the owner at his expense.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 7)

Sec. 16.22.075. Bypass.

(a) A bypass of the industrial user's pretreatment facility is prohibited and upon occurrence, subject to the enforcement action described in Section 16.22.290, unless bypass did not violate applicable pretreatment standards and requirements and meets each of the following requirements:

(i) Bypass was unavoidable to prevent the loss of life, personal injury, or severe property damage;

(ii) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated waste or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and

(iii) The industrial user submitted notices as required by subsections (b) and (c) of this section.

(b) If an industrial user knows in advance of the need for a bypass, it shall submit prior notice to the city, if possible, at least ten days before the date of the bypass.

(c) An industrial user shall submit oral notice of an unanticipated bypass that exceeds applicable pretreatment standards to the city within twenty-four hours from the time the industrial user becomes aware of the bypass. A written submission shall be provided within five days of the time the industrial user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times; analytical results of the bypass effluent; if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. All analysis will be performed by a laboratory certified by KDH&E in accordance with procedures established by the approval authority pursuant to Section 304(g) of the Act and contained in 40 CFR Part 136 and amendments thereto. Notification does not preclude the industrial user from any penalties the city may seek if pretreatment standards are exceeded.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 8)

Sec. 16.22.080. Federal categorical pretreatment standards.

Upon the promulgation of the federal categorical pretreatment standards for a particular industrial subcategory, the federal standard, if more stringent than limitations imposed under this chapter for sources in that subcategory, shall immediately supersede the limitations imposed under this chapter. The director shall notify all affected users of the applicable reporting requirements under 40 CFR Section 403.12, as amended; and 40 CFR. Chapter I, Subchapter N, Parts 400—471.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 9)

Sec. 16.22.090. Compliance date report.

Within ninety days following the date for final compliance with applicable pretreatment standards or, in the case of a new source, following commencement of the introduction of wastewater into the POTW, any user subject to pretreatment standards and requirements shall submit to the director a report indicating the nature and concentration of all pollutants in the discharge from the regulated process which are limited by pretreatment standards and requirements and the average and maximum daily flow for these process units in the user's facility which are limited by such pretreatment standards or requirements. All sampling and analyses shall be performed by a laboratory certified by KDH&E in accordance with procedures established by the approval authority pursuant to Section 304(g) of the Act and contained in 40 CFR Part 136, and amendments

thereto, or with any other test procedures approved by the approval authority. The report shall state whether the applicable pretreatment standards or requirements are being met on a consistent basis and, if not, what additional operations and maintenance and/or pretreatment is necessary to bring the user into compliance with the applicable pretreatment standards or requirements. This statement shall be signed by an authorized representative of the industrial user, and certified to by a licensed professional engineer in the state.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 10)

Sec. 16.22.100. Periodic compliance report.

Any user subject to categorical pretreatment standards under 40 CFR Section 403.6 and 40 CFR, Chapter I, Subchapter N. Parts 400—471, or any significant industrial user, after the compliance date of a pretreatment standard or, in the case of a new source, after commencement of the discharge into the POTW, shall submit to the director during the months of June and December, unless required more frequently in the pretreatment standard or by the director, a report indicating the nature and concentration of pollutants in the effluent which are limited by such pretreatment standards. At the discretion of the director and in consideration of such factors as local high or low flow rates, holidays, budget cycles, etc., the director may agree to alter the months during which the above reports are to be submitted. The director may impose mass limitations on users, where the imposition of mass limitations are appropriate, to meet applicable pretreatment standards or requirements. All analysis shall be performed by a laboratory certified by KDH&E in accordance with procedures established by the approval authority pursuant to Section 304(g) of the Act and contained in 40 CFR, Part 136, and amendments thereto, or with any other test procedures approved by the approval authority. Sampling shall be performed in accordance with the techniques approved by the approval authority. If sampling performed by the industrial user indicates a violation, the user shall notify the city within twenty-four hours of becoming aware of the violation. The user shall also repeat the sampling and submit the results to the city within thirty days of becoming aware of the violation.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 11)

Sec. 16.22.110. Monitoring facilities.

The city shall require monitoring facilities to be provided and operated at the user's own expense and to allow inspection, sampling and flow measurement of the building sewer and/or internal drainage systems. The monitoring facility should normally be situated on the user's premises, but the city may, when such a location would be impractical or cause undue hardship on the user, allow the facility to be constructed in the public right-of-way and located so that it will not be obstructed by landscaping or parked vehicles. There shall be ample room in or near such sampling manhole or facility to allow accurate sampling and preparation of samples for analysis. The facility, sampling and measuring equipment shall be maintained at all times in a safe and proper operating condition at the expense of the user. Whether constructed on public or private property sampling and monitoring facilities shall be provided in accordance with the city's requirements and an applicable local construction standards and specification. Construction shall be completed within ninety days following written notification by the city.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 12)

Sec. 16.22.120. Inspection and sampling.

The city may inspect the facilities of any user to ascertain whether the purpose of this chapter is being met and all requirements are being complied with. Persons or occupants of premises where wastewater is created or discharged shall allow the city or its representatives ready access at all reasonable times to all parts of the premises for the purposes of inspection, sampling, records examination, or in the performance of any of their duties. The city shall have the right to copy any records relevant to sampling, monitoring activity, analytical results, or any other phase of pretreatment compliance. The city, KDH&E and the EPA shall have the right to install on the user's property such devices as are necessary to conduct sampling inspection, compliance monitoring and/or

metering operations. Where a user has security measures in force which would require proper identification and clearance before entry into their premises, the user shall make necessary arrangements with their security guards so that upon presentation of suitable identification, personnel from the city, KDH&E, and EPA will be permitted to enter, without delay, for the purposes of performing their specific responsibilities. All costs associated with this section shall be borne by the user.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 13)

Sec. 16.22.130. Excessive discharge, slug discharge, changed discharge, hazardous waste discharge, accidental discharge, and storage of dangerous materials.

(1) No user shall increase the use of process water or in any way attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the limitations contained in the federal categorical pretreatment standards, or in any other pollutant specific limitation developed by the city or state.

(2) The industrial user shall notify and receive permission from the city prior to discharging any slug or noncustomary batch discharge. Based on its evaluation, the city reserves the right to deny the request. The city will evaluate, at least every two years, the need for every industrial user to submit a spill prevention and control plan to prevent slug discharges. At a minimum, the plan shall include:

(a) Description of discharge practices, including nonroutine batch discharges;

(b) Description of stored chemicals;

(c) Procedure for immediately notifying the POTW of slug discharges, including any discharge that would violate a prohibition under Section 16.22.060, with procedures for follow-up written notification within five days as described in subsection (4)(a) of this section.

(d) Procedures to prevent adverse impact from accidental spills, including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site run-off, worker training, containment structures or equipment plans, toxic organic pollutants management plan, and measures and equipment for emergency response.

(3) All industrial users shall promptly notify the POTW in advance of any substantial change in the volume or characteristics of pollutants in their discharge. The industrial user shall notify the POTW, the EPA, and KDN&E hazardous waste authorities in writing of any discharge into the POTW of a substance, which, if otherwise disposed of, would be hazardous waste under 40 CFR Part 261. Such notification, at a minimum, shall include: the name of the hazardous waste as set forth in 40 CFR Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). The discharging of such wastes is prohibited without the approval of the director.

(4) In the case of an accidental discharge, it is the responsibility of the user to immediately notify the director of the incident. The notification shall include location of discharge, type of waste, concentration and volume and corrective actions. Each user, subject to the requirements of this chapter, may be required to provide protection from accidental discharge of prohibited materials or other substances regulated by this chapter. Facilities to prevent accidental discharge, if required, will be provided and maintained at the user's own cost and expense. Detailed plans, showing facilities and operating procedures to provide this protection, will be submitted to the city for review and approval before construction of the facility. Review and approval of such plans and operating procedures shall not relieve the user from the responsibility to modify the user's facility as necessary to meet the requirements of this chapter.

(a) Written Notice. Within five days following an accidental discharge the user shall submit to the director a detailed written report describing the cause of the discharge and the measures to be taken by the user to prevent similar future occur-

rences. Such notification shall not relieve the user of any expense, loss, damage or other liability which may be incurred as a result of damage to the municipal sewer system, fish kills or other damage to persons or property. Such notification shall not relieve the user of any fines, civil penalties or other liability which may be imposed by this or other applicable law.

(b) Notice to Employees. A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees whom to call in the event of a dangerous discharge. Employers shall ensure that all employees who may cause or suffer such a dangerous discharge to occur are advised of the emergency notification procedure.

(5) The storage of material in sewered areas or in areas draining into the municipal sewer system which, because of discharge or leakage from such storage, may create an explosion hazard in sewerage works or in any other way have a deleterious effect upon these works, treatment processes, or constitute a hazard to human health, animals, or the receiving stream, shall be subject to review of the director, who at his discretion may require reasonable safeguards to prevent discharge or leakage of such materials.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 14)

Sec. 16.22.140. Unlawful discharge.

No significant industrial user shall discharge any wastewater into the POTW contained within the jurisdiction of the city without a wastewater discharge permit.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 15)

Sec. 16.22.150. General permits.

All significant industrial users proposing to connect or contribute to the POTW shall obtain a wastewater discharge permit before connecting to or contributing to the POTW. All existing significant industrial users connected to or contributing to the POTW shall obtain a wastewater discharge permit within one hundred eighty days after the effective date of the ordinance codified in this chapter.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 16)

Sec. 16.22.160. Permit provisions.

Wastewater discharge permits shall be expressly subject to all provisions of this chapter and all other applicable state and federal regulations, and user charges and fees established by the city. Permits shall contain the following:

(1) Statement of duration, in no case more than five years;

(2) Statement of nontransferability without prior notification to the director and provision of a copy of the existing wastewater discharge permit to the new owner or operator;

(3) Limits on the average and maximum wastewater constituents and characteristics based on applicable pretreatment standards, categorical pretreatment standards, local limits, and state or local law;

(4) Limits on average and maximum rate and time of discharge or requirements for flow regulations and equalization;

(5) Requirements for installation and maintenance of inspection and sampling facilities;

(6) Specifications for monitoring programs which may include sampling locations, frequency of sampling, number, types and standards for tests and reporting schedule;

(7) Compliance schedules;

(8) Requirements for submission of technical reports or discharge reports, including reports encompassing self-monitoring, sampling, reporting, notification, and record keeping requirements;

(9) Requirements for maintaining and retaining plant records relating to wastewater discharge as specified by the director, and affording director access thereto;

(10) Requirements for notification of the director prior to any new introduction of wastewater constituents or any substantial change in the volume or character of the wastewater constituents being introduced into the municipal sewer system;

(11) Requirements for notification of slug discharge;

(12) Statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule;

(13) Other conditions as deemed appropriate by the director to ensure compliance with this chapter.

Other discharge limits may be established as determined by the director or resulting from modifications to current regulations. A new wastewater discharge permit shall be required if the character of waste is changed from that described on the permit application.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 17)

Sec. 16.22.170. Permit application.

Users required to obtain a wastewater discharge permit shall complete and file with the city an application in the form prescribed by the city. In support of the application, the user may be required to submit all of the following information:

(1) Name, address and location (if different from the address);

(2) SIC number according to the Standard Industrial Classification Manual, Bureau of the Budget, 1972, as amended;

(3) Wastewater constituents and characteristics including, but not limited to, those mentioned in this chapter as determined by an analytical laboratory certified by KDH&E; sampling and analysis shall be performed in accordance with the procedures established by the EPA pursuant to Section 304(g) of the Act and contained in 40 CFR, Part 136, as amended;

(4) Time and duration of contribution;

(5) Average daily and three-minute peak wastewater flow rates, including daily, monthly and seasonal variations if any;

(6) Site plans, floor plans, mechanical and plumbing plans and details to show all sewers, sewer connections and appurtenances by the size, location and elevation;

(7) Description of activities, facilities and plant processes on the premises including all materials which are or could be discharged,

(8) The nature and concentration of any pollutants in the discharge which are limited by any city, state or federal pretreatment standards and a statement regarding whether or not the pretreatment standards are being met on a consistent basis and if not, whether additional operations and maintenance (O&M) and/or additional pretreatment is required for the user to meet applicable pretreatment standards;

(9) If additional pretreatment and/or O&M will be required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard; and in addition, the following conditions shall apply to this schedule:

(a) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards (e.g., selecting a consulting engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, plant start-up, etc).

(b) No increment referred to in subsection (9)(a) of this section shall exceed nine months.

(c) Not later than fourteen days following each date in the schedule and the final date for compliance, the user shall submit a progress report to the director including, as a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for the delay, and the steps being taken by the user to return the construction to the schedule established. In no event shall more than nine months elapse between such progress reports to the director;

(10) Each product produced by type, amount, process or processes and rate of production;

(11) Type and amount of raw materials processed (average and maximum per day);

(12) Number and type of employees and hours of operation of plant and proposed or actual hours of operation of pretreatment system;

(13) Any other information as may be deemed by the city to be necessary to evaluate the permit application. The city will evaluate the data furnished by the user and may require additional information. After evaluation and acceptance of the data furnished, the city may issue a wastewater discharge permit subject to the terms and conditions provided herein.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 18)

Sec. 16.22.180. Permit issuance.

If, after examining the information contained in the wastewater discharge permit application, it is determined by the director that the characteristics of the existing or proposed discharge do not conflict with the provisions of this chapter and the permit fee is paid, a discharge permit shall be issued allowing the discharge of such wastes into the city sewers. Each discharge permit shall be issued for a time not longer than five years from the date of the permit. The user shall apply for permit reissuance a minimum of ninety days prior to the expiration of the user's existing permit. The terms and conditions of the permit may be subject to modification by the city during the term of the permit as limitations or requirements as identified in this chapter are modified or other just causes exist. The user shall be informed of any proposed changes in his permit at least thirty days prior to the effective date of change. Any changes or new conditions in the permit shall include a reasonable time schedule for compliance.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 19)

Sec. 16.22.190. Request for determination of categorical or subcategorical standard pursuant to 40 C.F.R. 403.6.a.

Within sixty days after the effective date of a pretreatment standard, for a subcategory under which a user may be included, the user may submit to the approval authority an application for determination of that particular category or subcategory. Each application shall contain:

(1) A statement describing the subcategories that may be applicable;

(2) Evidence and reasons why one or more subcategories are not applicable; and

(3) An oath stating the facts therein are true on the basis of the applicant's personal knowledge or to the best of the applicant's information and belief.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 20)

Sec. 16.22.200. Variance of categorical standard pursuant to 40 C.F.R. 403.13.

Within one hundred eighty days after the effective date of a pretreatment standard, for a subcategory under which a user may be included, the user may submit to the approval authority a variance request for the establishment of limits less stringent than required by the standard. The variance request shall be submitted on the basis of factors which are fundamentally different from

the factors considered during development of a categorical pretreatment standard. Each submission shall include:

(1) The name and address of the user;

(2) The specific categorical standards which are applicable;

(3) A list of each pollutant or pollutant parameter for which an alternative discharge limit is sought;

(4) The alternative discharge limits proposed; and

(5) A statement of facts clearly establishing why the variance request should be approved, including detailed support date, documentation, and evidence necessary to fully evaluate the merits of the request.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 21)

Sec. 16.22.210. Permit modifications.

Within nine months of the promulgation of a national categorical pretreatment standard, the wastewater discharge permit of the users subject to such standards shall be revised to require compliance with such standard within the time frame prescribed by such standard. Where a user, subject to a national categorical pretreatment standard, has not previously submitted an application for a wastewater discharge permit, the user shall apply for a wastewater discharge permit within one hundred eighty days after the promulgation of the applicable national categorical pretreatment standard. In addition, the user with an existing wastewater discharge permit shall submit to the director within one hundred eighty days after the promulgation of an applicable federal categorical pretreatment standard, the information required by the director to verify compliance.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 22)

Sec. 16.22.220. Permit transfer.

Wastewater discharge permits are issued to a specific user for a specific operation. A wastewater discharge permit shall not be reassigned or transferred or sold to a new owner, new user, different premises, or a new or changed operation without the approval of the director.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 23)

Sec. 16.22.230. Denial of application.

If it is determined by the director that the characteristics of the wastes are not in compliance with the provisions of this chapter, the application may be denied and the applicant advised by the director of steps which must be taken to ensure compliance with the provisions of this chapter.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 24)

Sec. 16.22.240. Revocation of permit.

Wastewater discharge permits may be revoked by the director under the procedures of this chapter if the discharge is not in compliance with the provisions of this chapter, upon giving the holder thirty days' written notice of the basis for the revocation. A holder may request a hearing prior to revocation under the procedures of Section 16.22.280. Failure of a user to factually report the characteristics of his discharges, or significant changes in operations, or wastewater constituents and characteristics, refusal of reasonable access to the user's premises for the purpose of inspection or monitoring, as well as violation of conditions of the permit may be grounds for permit revocation.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 25)

Sec. 16.22.250. Permit fees.

Processing fees for wastewater discharge permits, and renewal of such discharge permits shall be set by the director. The fees shall be based upon the cost of field, administrative, engineering, and clerical expenses involved, but shall not be less than one hundred dollars for each permit. If laboratory analyses under Section 16.22.120 are necessary to determine the industrial user's wastewater discharge pollutant concentration for permit status, those analytical costs shall be borne by the user, in addition to the permit fee.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 26)

Sec. 16.22.260. Emergency suspensions.

The city may suspend the wastewater treatment service or a wastewater discharge permit when such suspension is necessary, in the opinion of the director, in order to stop an actual or threatened discharge which presents or may present an imminent or substantial endangerment to the health or welfare of persons or to the environment, causes interference to the POTW, or causes the city to violate any condition of its NPDES permit.

Any person notified of a suspension of the wastewater treatment service and/or the wastewater discharge permit shall immediately stop or eliminate the contribution. In the event of a failure of the person to comply voluntarily with the suspension order, the city shall take such steps as deemed necessary, including immediate termination of water service to prevent or minimize damage to the POTW system or sewer connection, or endangerment to any individuals. The city shall reinstate the wastewater discharge permit and/or the wastewater treatment service when such conditions causing the suspension have passed or been eliminated. A detailed written statement submitted by the user describing the causes of the harmful contribution and the measures taken to prevent any future occurrence shall be submitted to the city within fifteen days of the date of occurrence.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 27)

Sec. 16.22.270. Administrative enforcement actions.

(a) Notice of Violation. Whenever the city finds that any user has violated or is violating this chapter, wastewater discharge permit, or any prohibition, limitation or requirements contained herein, the city may serve upon such user a written notice stating the nature of the violation. Within thirty days of the date of notice, a plan for the satisfactory correction thereof shall be submitted to the city by the user.

(b) Administrative Order. When the director finds that an industrial user has violated or continues to violate the provisions set forth in this chapter, or the user's permit or order issued thereunder, the director may issue an order for compliance to the industrial user responsible for the discharge. Orders may contain any requirements as might be reasonably necessary and appropriate to address the noncompliance, including, but not limited to, the installation of pretreatment technology, additional self-monitoring, and management practices.

(c) Consent Order. The director is empowered to enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with the industrial user responsible for noncompliance. Such orders will include specific action to be taken by the user to correct the noncompliance within a time period specified by the order. Consent orders shall have the same force and effect as administrative orders issued pursuant to subsection (b) of this section.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 28)

Sec. 16.22.275. Administrative penalties.

Notwithstanding any other remedies or procedures available to the city, any user who is found to have violated any provision of this chapter, or any permit or order issued hereunder, may be assessed an administrative penalty of not to exceed one thousand dollars per violation. Each day on which noncompliance shall occur or continue shall be deemed a separate and distinct violation. Such assessment may be added to the user's next scheduled sewer service charge and the director shall have such other collection remedies as are available at law.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 29)

Sec. 16.22.280. Request for hearing and appeal.

(a) Hearing. Any person affected by a penalty, order, or directive of the city issued pursuant to this chapter may, within ten days of the issuance of such penalty, order, or directive, request a hearing before the director to show cause why such should be modified or made to not apply to such person. Such request shall be in writing and addressed to the director at 455 North Main Street, Wichita, Kansas. The director or a designee shall hold the requested hearing as soon as practical after receiving the request, at which time the person affected shall have an opportu-

nity to be heard. At the conclusion of the hearing, the director shall issue a written response to the person requesting the hearing affirming, modifying, or rescinding the penalty, order, or directive at issue.

(b) Appeal. Any person aggrieved by the decision of the director may appeal such decision to the city council within ten days of the receipt of the decision by filing notice of appeal with the city clerk. Upon hearing, the city council may affirm, modify, or reverse the decision of the director. Any appeal of the council's decision shall be as provided by state law.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 30)

Sec. 16.22.290. Legal action.

Notwithstanding any other remedies or procedures available to the city, if any person discharges sewage, industrial wastes, or other wastes into the city's municipal sewer system contrary to the provisions of this chapter or any permit or order issued hereunder, the city attorney may commence an action for appropriate legal or equitable relief including damages and costs in the district court of Sedgwick County. Whenever a user has violated or continues to violate the provisions of this chapter or any permit or order issued hereunder, the city attorney may seek a preliminary or permanent injunction or both which restrains or compels the activities on the part of the user.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 31)

Sec. 16.22.300. Falsifying information.

Falsifying information is a separate offense and deemed a misdemeanor. Any person who knowingly makes any false statements, representation or certification in any application, record, report, plan, or other document filed or required to be maintained pursuant to this chapter or wastewater discharge permit, or who falsifies, tampers with or knowingly renders inaccurate any monitoring device or method required under this chapter, shall, upon conviction, be punished by a fine of not more than one thousand dollars or by imprisonment for not more than six months or by both.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 32)

Sec. 16.22.310. News release.

In June and December of each year, the city shall notify the public of industrial users which at any time during the previous six months were in significant noncompliance with the applicable pretreatment requirements. For the purposes of this section, an industrial user is in significant noncompliance as defined in Section 16.22.040. Such notice shall be in the largest daily newspaper published in the city. That notification will also summarize any enforcement actions taken against such industrial user during the same six-month period.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 33)

Sec. 16.22.320. Record keeping requirement.

(1) Any industrial user subject to the reporting requirements established in this chapter shall maintain records of all information resulting from any monitoring activities required by this chapter. Such records shall include for all samples:

(a) The date, exact place, method, and time of sampling and the names of the person or persons taking the sample;

(b) The dates analyses were performed;

(c) Who performed the analysis;

(d) The analytical techniques and methods used; and

(e) The results of such analysis.

(2) Any industrial user subject to the reporting requirements established in this chapter shall be required to retain for a minimum of three years any records of monitoring activities and results (whether or not such monitoring activities are required by this section) and shall make such records available for inspection and copying by the director and the regional administrator. This period of retention shall be extended during the course of any unresolved litigation regarding the industrial user or the POTW when requested by the director or the regional administrator.

(3) All records relating to compliance with pretreatment standards shall be made available to officials of the EPA or KDH&E upon request.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 34)

Sec. 16.22.330. Entrance to properties.

The director and other duly authorized employees of the city, KDH&E, and EPA, bearing proper identification shall be permitted to enter a user's premises for the purpose of inspection, observation, measurement, sampling and testing of wastewater in accordance with provisions of this chapter. Where a user has security measures in force which would require proper identification and clearance before entry onto the premises, the user shall make all necessary arrangements with their security personnel to ensure unrestricted access of authorized persons. Entry shall be made in such a manner as to cause minimal inconvenience to the persons in possession. In the event entry is denied or restricted, the director and/or duly authorized employees of the city shall obtain a search warrant for the purposes of this section from a court of competent jurisdiction. The director, his representatives, KDH&E and EPA shall have authority to inquire into any industrial process which is suspected of producing a solid, semisolid, or liquid waste in the user's discharge to the POTW that may be a violation of this chapter. While performing the necessary work on private properties referred to in this section, the director or duly authorized employees of the city, KDH&E, and EPA shall observe all safety rules applicable to the premises established by the user.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 35)

Sec. 16.22.340. Right to access over easement.

The director and other duly authorized employees of the city, KDH&E, and EPA bearing proper credentials and identification shall be permitted to enter all private properties through which the city holds an easement for the purposes of, but not limited to, inspection, observation, measurement, sampling, repair, operation and maintenance of any portion of the sewerage works (municipal sewer system) lying within said easement. All entry and subsequent work if any, on said easement, shall be done in full accordance with the terms of the easement pertaining to the private property involved.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 36)

Sec. 16.22.350. Use of confidential material.

Information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be available to the public without restriction unless the user specifically requests and is able to demonstrate to the satisfaction of the city that the release of such information would divulge information, processes or method of production entitled to protection as trade secrets of the user and qualifies for exemption from disclosure under the Kansas Open Records Acts. Such material exempt from disclosure shall be deemed confidential but shall be made available upon written request to governmental agencies for uses related to this chapter, the city's NPDES permit, or the pretreatment program and shall be available for use by any state or federal agency in judicial review or enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics will not be recognized as confidential information. Information, accepted by the city as confidential, shall not be transmitted to any governmental agency (excluding the approval authority who has immediate access to all information in the city's possession regarding all pretreatment activities relative to this chapter) or to the general public by the city until and unless a ten-day notification is given to the user.
(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 37)

Sec. 16.22.360. Reporting and signatory requirements.

(1) If additional pretreatment or operations and maintenance will be required to meet the pretreatment standards, the user shall submit to the city a compliance schedule by which the industrial user will provide such additional pretreatment. The completion date in this schedule shall not be later than the compliance standard established for the applicable pretreatment standard; and in addition, the following conditions shall apply to this schedule:

(a) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment re-

quired for the user to meet the applicable pretreatment standards (e.g., selecting a consulting engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, and plant start-up).

(b) The total time allowed for completion of all increments of progress in the schedule shall not exceed thirty months.

(c) Not later than fourteen days following each date in the schedule and the final day for compliance, the industrial user shall submit a progress report to the director including, as a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for the delay, and the steps by the industrial user to return the construction to the schedule established.

(2) Pursuant to the requirements of 40 CFR 403.12, as amended, the industrial user shall submit to the city all required reports, including baseline monitoring reports, compliance schedules, progress reports, permit application, ninety-day compliance reports, self-monitoring reports, or any other technical or discharge reports as directed by the city.

(3) All reports required under this section shall include a certification statement as set forth below, and shall be signed by an authorized representative of the industrial user:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violation.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 38)

Sec. 16.22.370. Criminal penalties.

Any person who shall be convicted of violating any provision of this chapter or any permit or order issued hereunder shall be deemed guilty of a misdemeanor and shall be punished by a fine of not more than one thousand dollars or by imprisonment for not more than six months or by both. Each day that any such violation occurs shall constitute a separate offense and shall be punishable as a separate violation. If upon trial of any person found guilty of a misdemeanor hereunder, it shall appear to the court that the violation complained of is continuing, the court shall enter such order as it shall deem appropriate to cause the violation to be abated. The provisions of this section are independent of and in addition to any administrative or other legal action that may be taken by the city under the provisions of this chapter.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 39)

Sec. 16.22.380. Separability.

If any part or parts of this chapter shall be held to be invalid, such invalidity shall not affect the remaining parts of this chapter. The governing body declares that it would have passed remaining parts of this chapter if it had known that such part or parts thereof would be declared invalid.

(Ord. No. 43-772 § 4 (part); Ord. No. 41-354 § 40)

CHAPTER 16.24. CONTROL OF FATS, OILS, AND GREASE IN FOOD SERVICE ESTABLISHMENTS*

Sec. 16.24.010. Definitions.
Sec. 16.24.020. General criteria—Waste discharge requirements.
Sec. 16.24.025. General criteria—Design and approval.
Sec. 16.24.030. General criteria—Location.
Sec. 16.24.040. General criteria—Gravity grease interceptor size.
Sec. 16.24.050. Installation requirements.
Sec. 16.24.060. Grease interceptor maintenance.
Sec. 16.24.070. Permit requirements.
Sec. 16.24.075. Administrative requirements.
Sec. 16.24.080. Monitoring, inspection and entry.
Sec. 16.24.090. Emergency suspension of services.
Sec. 16.24.100. Violation.
Sec. 16.24.105. Enforcement.
Sec. 16.24.110. Administrative penalty.
Sec. 16.24.120. Request for hearing and appeal.
Sec. 16.24.130. Authorization.
Sec. 16.24.140. Criminal penalties.
Sec. 16.24.150. Severability.

Sec. 16.24.010. Definitions.

Unless otherwise expressly stated, or the context clearly indicates a different intention, the following terms shall, for the purpose of this chapter, have the meaning indicated in this section:

(a) "Automatic grease removal device" means units, which use devices such as belts, wheels, or skimmers to actively remove the floatable grease from the waste stream. Typical devices include a moving belt entering and exiting a trapped volume of wastewater. The mechanism captures the grease, which is deposited into a separate holding container.

(b) "Building discharge line system" means a sewer line or lines maintained and controlled by private persons for the purpose of conveying sewage from the waste producing location to the sanitary sewer collection system.

(c) "Common grease interceptor" means an interceptor to which grease wastes are directed from more than one facility having different operators or type of operations, such as in a multi-tenant building.

(d) "Drainage fixture unit" (DFU) means a measurement unit for potential water use for a given plumbing fixture or appliance, as provided for in the International Plumbing Code and the Uniform Plumbing Code.

(e) "Director" means the director of Public Works & Utilities, or designee, who has been given the administrative authority to enforce this chapter.

(f) "Fats, oils, and grease program" means the division of Public Works & Utilities responsible for controlling the amount of grease contributed from food service establishments which may impact the POTW.

(g) "Food service establishment" means any facility which cuts, cooks, bakes, prepares or serves food, or which disposes of food-related wastes; including, but not limited to, food manufacturers and packagers, restaurants, grocery stores, bakeries, lounges, hospitals, hotels, nursing homes, churches, schools, festivals, and amusement parks.

(h) "Garbage grinder" means a device, which shreds or grinds up solid or semisolid waste materials into smaller portions for discharge into the sanitary sewer collection system.

(i) "Generator" means a user, by site, who produces wastes from the user's process operations. The generator is responsible for assuring that the produced waste is disposed of in accordance with all federal, state and local disposal regulations.

(j) "Gravity grease interceptor" means a device that is constructed to intercept

*__Editor's note—__Ord. No. 51-064, § 1, adopted July 23, 2019, repealed the former Ch. 16.24, §§ 16.24.010, 16.24.020, 16.24.025, 16.24.030—16.24.070, 16.24.075, 16.24.080—16.24.100, 16.24.105, 16.24.110—16.24.150, and enacted a new Ch. 16.24 as set out herein. The former Ch. 16.24 pertained to grease interceptor requirements for the sanitary sewer system. The historical notes of said sections have been preserved for reference purposes.

oily and greasy wastes from a food service establishment kitchen and food preparation area. Typical installation is located outside and in-ground as close to the kitchen fixtures as possible while allowing for accessibility for inspections and maintenance.

(k) "Grease" means a material composed primarily of fatty matter from animal or vegetable sources or from hydrocarbons of petroleum origins. The terms "oil and grease" or "oil and grease substances" shall be deemed as grease by definition.

(l) "Grease interceptor" means a plumbing appurtenance that is installed in a sanitary drainage system to intercept oily and greasy wastes from a wastewater discharge. The device is constructed as to intercept, separate and hold, free-floating oil and grease substances in order to keep oil and grease substances from entering the sanitary sewer collection system.

(m) "Multi-tenant building" means a facility with spaces for two or more tenants, including but not limited to strip centers, office buildings, and shopping malls.

(n) "NPDES" means National Pollution Discharge Elimination System under which the city's wastewater treatment plant is permitted.

(o) "POTW" means publicly owned treatment works or "treatment works" as defined by Part 40 Section 260.10 of the Code of Federal Regulations, which is owned or operated in this instance by the city. This definition includes any sewers or pipes that convey wastewater to the city sewage treatment plants.

(p) "Pretreatment administrator" means an individual employed by the Wichita Water-Utilities who is charged with the responsibility of administering the provisions of the pretreatment program to ensure compliance by users with applicable laws, rules, regulations, resolutions and ordinances relative to the concentration(s) of substances found in the waste stream of facilities connected to the POTW.

(q) "Sewage" means the liquid and water-carried domestic or industrial wastes from dwellings, commercial establishments, industrial facilities and institutions, whether treated or untreated. The terms "waste" and "wastewater" shall be deemed as sewage by definition.

(r) "Transporter" is a user who transfers waste from the site of a generator to an approved site for disposal or treatment. The transporter is responsible for assuring that all federal, state and local regulations are followed regarding waste transport.

(s) "Hydro mechanical grease interceptors" means a device placed under or in close proximity to sinks or other fixtures likely to discharge grease to intercept, separate, or hold oil and grease substances to prevent their entry into the sanitary sewer collection system. These interceptors are identified by flow rate, separation and retention efficiency.

(t) "User" means the owner or operator of a facility meeting or coming under the herein-described food service categories.

(u) "Waste" means the liquid and water-carried domestic or industrial wastes from dwellings, commercial establishments, industrial facilities and institutions, whether treated or untreated. Wastes may include but not be limited to discharges from scullery sinks, pot and pan sinks, dishwashing machines, soup kettles and floor drains located in areas where grease-containing materials may exist. The terms "sewage" and "wastewater" shall be deemed as waste by definition.

(Ord. No. 47-553, § 1, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.020. General criteria—Waste discharge requirements.

Waste discharge in food service establishments from fixtures and equipment which may

contain grease; including, but not limited to, scullery sinks, pot and pan sinks, pre-rinse/pre-wash sinks in dishwashing areas, wok stoves, self-cleaning stove ventilation/exhaust hood, dishwashers, soup kettles, mop sinks, food prep sinks, and floor drains located in areas where grease-containing materials may exist, may be discharged into the sanitary sewer collection system only under the conditions of this chapter.

When grease-containing materials are processed through garbage grinders, the waste from said garbage grinders should be directed to the grease interceptor. The director must approve garbage grinder disposal installations. An additional 30 percent of wetted volume will be added to the calculated size of the grease interceptor that is to receive garbage grinder waste.

Toilets, urinals, and other similar fixtures shall not discharge through the grease interceptor unless specifically approved, in writing, by the director.

All waste shall enter the grease interceptor through the inlet pipe only.
(Ord. No. 47-553, § 2, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.025. General criteria—Design and approval.

Grease interceptors shall be constructed in accordance with the design(s) approved by the director and shall have a minimum of two compartments with fittings designed for grease retention. Other grease removal devices or technologies not meeting the gravity grease interceptor definition in Section 16.24.010(j) shall be subject to the written approval of the director. Such approval shall be based on demonstrated removal efficiencies of the proposed technology. Hydro mechanical grease interceptors, also known as "Under the sink" grease interceptors, shall not be approved.

Access manholes, with a minimum diameter of 24 inches, shall be provided over each chamber and sanitary tee. The access manholes shall extend at least to finished grade and shall be designed and maintained to prevent water inflow or infiltration. The manholes shall also have readily removable traffic bearing covers to facilitate inspection, grease removal, and wastewater sampling activities.

There shall be an adequate number of access points for cleaning and inspecting all areas of the grease interceptor. Manhole covers shall be gas tight in construction. In areas where additional weight loads may exist, the grease interceptor shall be designed to have adequate load-bearing capacity.

Permission to use an automatic grease removal device (AGRD) as described in Section 16.24.010(a) must be approved by the director. Prior to using an automatic grease removal device, the permit holder shall submit an Application for Variance to the Pretreatment Administrator. Installation of the AGRD is subject to the approval of the director after examining the information contained in the Application for Variance. The device may be permitted in conjunction with, or in lieu of, a gravity grease interceptor. A solids separator or strainer of sufficient size shall be installed in-line prior to the wastewater entering the automated grease removal device or as an integral part of the device. All manufacturer installation guidelines must be adhered to.
(Ord. No. 47-553, § 3, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.030. General criteria—Location.

Each grease interceptor shall be so installed and connected that it shall be at all times easily accessible for inspection, cleaning and removal of the intercepted grease. A gravity grease interceptor may not be installed in any part of a building where food is handled. Location of the grease interceptor shall meet the approval of the director. Multiple gravity grease interceptors installed at a single location shall be installed in series.

All new construction multi-tenant buildings shall include a separate waste line for each leasable space that discharges to a common interceptor. This waste line shall be permanently marked to identify it as required by the director. When a space is leased, sold, or rented to a food service establishment, all kitchen drains and any other drains that may carry grease waste

shall be connected to this waste line; no domestic sewage may be connected to this line. The property owner shall be responsible for proper maintenance of this interceptor in accordance with the provisions of this ordinance. Festivals and amusement parks shall be considered a single facility for the purpose of this chapter.
(Ord. No. 47-553, § 4, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.040. General criteria—Gravity grease interceptor size.

Each food service establishment shall be served by an approved gravity grease interceptor(s) and sized by volume based on the maximum potential drainage fixture units. All fixtures with a potential to carry grease waste shall be plumbed to the gravity grease interceptor. The following DFUs shall be assigned to each individual fixture.

Table 1

Individual Fixture	DFU
Bar Sink	2
Dishwasher—(Commercial)	6
Floor Drain	3
Hand Wash Sink	1
Mop Sink	3
2 Compartment Sink*	2
3 or 4 Compartment Sink*	4
Service Sink (Utility, Janitorial)	3
Pre-Rinse Sink	4
Floor Drain (Emergency Shower)	0
Garbage Grinder	6
Wok Stove	4
Ice Maker	0
Clothes Washer (Domestic)	3

* Includes Food Prep and Pot washing sinks.

For Fixtures not listed above, use the following equivalents:

Table 2

Drain Size of Fixture	DFU
1¼ inch	1 Unit
1½ inch	3 Units
2 inch	4 Units
3 inch	6 Units
4 inch	8 Units

Interceptor Sizing: The volume of the interceptor shall be determined by adding the total number of DFUs from the grease waste fixtures listed in Tables 1 and 2, and using the following table. If the DFUs are not known, the interceptor shall be determined based on the maximum allowable DFUs for the pipe size connected to the inlet of the interceptor.

Table 3

DFUs	Interceptor Volume in Gallons
< 8	Eligible for interceptor exemption
8-20	500
21-34	750
35-89	1,000
90-171	1,250
172-215	1,500
216-306	2,000
307-341	2,500
342-427	3,000
428-575	4,000
576-719	5,000
720-2111	7,500
2112-2639	10,000
2640 and higher	15,000

(Ord. No. 47-553, § 5, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.050. Installation requirements.

(a) New Facilities: On or after the effective date of the ordinance codified in this chapter, all food service establishments which are newly proposed, constructed, undergoing a change of ownership, or existing facilities which shall be expanded or renovated to include a food service establishment where such facilities did not previously exist, shall be required to have an approved gravity grease interceptor. Such food service establishments shall submit drainage plumbing plans to the director or designee for approval prior to obtaining a building permit. The director shall approve the prerequisite for an approved, properly sized, type and location of the gravity grease interceptor.

Sizing calculations shall be in accordance to the tables listed herein and shall be installed prior to the opening or reopening of said facilities.

Establishments undergoing a change of ownership without expanding or renovating the facility may apply for permission to use an automatic grease removal device as described in Section 16.24.025.

(b) Existing Facilities: On or after the effective date of the ordinance codified in this chapter, all existing food service establishments shall be required to install an approved, properly operated and maintained gravity grease interceptor within 120 days of notification by the city that any of the following conditions exist:

(1) The facilities are found by the director to be contributing grease in quantities sufficient to cause sanitary sewer line stoppages or to necessitate increase maintenance on the sanitary sewer collection system in order to keep main line stoppages from occurring.

(2) Remodeling of the food preparation or kitchen waste plumbing facilities which are subject to a permit issued by the Metropolitan Area Building and Construction Department. The compliance date under this subsection (b), will be determined by the director.

(c) Extensions: Any requests for extensions to these required installation dates must be made in writing to the director at least seven days in advance of the compliance date. The written request shall include the reasons for the user's failure or inability to comply with the compliance date set forth, the additional time needed to complete the remaining work, and the steps to be taken to avoid future delays.
(Ord. No. 47-553, § 6, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.060. Grease interceptor maintenance.

(a) Pumping. All grease interceptors shall be maintained by the user at the user's expense. Maintenance shall include the complete removal of all contents, including floating materials, wastewater, and bottom sludge and solids. Decanting or discharging of removed waste back into the interceptor from which the waste was removed or any other grease interceptor, for the purpose of reducing the volume to be disposed, is prohibited.

(b) Pumping Frequency. Grease interceptors must be pumped out completely a minimum of once every 90 days, or more frequently as needed, to prevent carryover of grease into the sanitary sewer collection system, unless it can be demonstrated to the director that the pumping frequency can be extended past the three-month period. If the owner/operator wishes to extend the pumping period of the interceptor past 90 days, the facility owner/operator must complete a variance to the grease interceptor maintenance schedule. A variance request fee of not less than $50.00 may apply to recover the costs the city may incur for the variance study.

(c) Disposal of Grease Interceptor Pumpage. All waste removed from each grease interceptor must be disposed of at a facility permitted by the city to receive such waste in accordance with the provisions of this chapter. In no way shall the pumpage be returned to any private or public portion of the sanitary sewer collection system or the sewage treatment plants, without prior written approval from the director.

(d) Additives. Any additive(s) placed into the grease interceptor or building discharge line system on a constant, regular, or scheduled basis shall be reported to the director. Such additives shall include, but not be limited to, commercially available bacteria or other additives designed to absorb, purge, consume, treat or otherwise eliminate grease and oils. Additives containing enzymes are prohibited. The use of additives shall in no way be considered as a substitution to the maintenance procedures required herein.

(e) Physical integrity. All grease interceptors shall be maintained in operable condition and to meet the criteria described in Section 16.24.025 at all times. The integrity of the baffle wall separating the two compartments shall be maintained; rebar shall not be exposed, and grease interceptors with leaks or holes shall be repaired or replaced at the discretion of the director.
(Ord. No. 47-553, § 7, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.070. Permit requirements.

(a) Permit: It is unlawful for any facility producing grease to discharge waste into the sanitary sewer collection system without authorization from the director. Authorization shall be given in the form of a wastewater discharge permit within 30 days of the facility owner/operator becoming aware of the permit requirements, the owner/operator shall submit an application for a permit to the water utilities. In lieu of acquiring permit application information from the facility owner/operator, the utility may issue a conditional permit by acquiring permit application information from city departments. Within 30 days of receipt of the conditional permit and application, the owner/operator shall certify that all information contained in the application is true and correct. If a response is not received from the owner/operator within 30 days of receiving the conditional permit, the city will consider that the permit information is true and correct and will proceed with general permit issuance. If, after examining the information contained in the grease discharge permit application, it is determined by the director that the proposed discharge does not conflict with the provisions of this chapter, a general permit containing terms and conditions associated with food service establishments as described in this chapter shall be issued allowing the discharge of such wastes into the sanitary sewer collection system. Each grease discharge permit shall be issued for a time not longer than five years from the date of the permit. The terms and conditions of the permit may be subject to modification by the city during the term of the permit as limitations or requirements as identified in this chapter are modified or other just causes exist. The user shall be informed of any proposed changes in the issued permit at least 30 days prior to the effective date of the change(s). Any changes or new conditions in the permit shall include a reasonable time schedule for compliance.

As a condition precedent to the granting of a permit, the permittee under this section will agree to hold harmless the city and the city's employees from any liabilities arising from the permit holder's operations under this permit.

(b) Fees.

(1) Permit Fees: the fees for wastewater discharge permits shall be as set forth in Section 16.04.055. The fees shall be established to insure full cost recovery and shall include but not be limited to the cost of field, administrative, engineering and clerical expenses involved. The annual permit fee shall be applied to the permittee's August water utilities service bill and be paid in accordance to the schedule set forth in the billing document.

(2) Grease Maintenance Fee: every food service establishment which does not have an approved grease interceptor shall be subject to a grease maintenance fee which covers the costs associated with grease removal expenses incurred by the POTW. The costs shall be based upon removal and treatment of grease originating from food service establishments which is discharged to the POTW. The fee shall be applied to the water utilities service bill on a monthly frequency. The cost shall be as set forth in Section 16.04.055.

(3) Low Grease Discount for Grease Maintenance Fee: At the discretion of the Director, food service establishments may be eligible for a discounted Grease Maintenance Fee after review of menu, and food preparation and handling practices. The discounted grease maintenance fee shall be as set forth in Section 16.04.055. Facilities might be eligible for a low grease discount if they prepare and/or serve only baked goods, coffee, ice cream, or precooked foods that are stored in the original packaging until heated for service, such as hot dogs on a roller grill. Food preparation activities or situations which are ineligible for a discount include, but are not limited to, the following:

1. Frying, including donuts;
2. Cooking meat, poultry, seafood, or pizza;

3. Washing dishes from catered meals or foods prepared offsite;

4. Presence of a garbage grinder;

5. Any facility which has been found to be contributing grease in quantities sufficient to cause sanitary sewer line stoppages or to necessitate increased maintenance on the sanitary sewer collection system in order to keep main line stoppages from occurring.

(Ord. No. 47-553, § 8, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.075. Administrative requirements.

(a) Manifest. All pumpage from gravity grease interceptors must be tracked by a manifest, which confirms pumping, hauling and disposal of waste. This manifest shall contain the following information:

(1) Generator information:

Name
Address
Volume pumped
Date and time of pumping
Amount of floatable grease and settable solids in inches
Total liquid depth in inches, including grease and solids
Signature of generator verifying generator information

(2) Transporter information:

Company name
Address
Driver name and signature verifying transporter information

(3) Receiving facility information:

Facility name
Address
Date and time of receiving signature verifying receipt of waste

Upon receipt of the waste, the receiving facility shall send one copy of each manifest to the following address: Pretreatment Administrator, 2305 E. 57th Street South, Wichita, Kansas, 67216.

(b) Maintenance Log. A grease interceptor log shall be maintained for each grease interceptor, including automatic grease removal devices and hydro mechanical grease interceptors. This log shall include the date, time, amount pumped, hauler and disposal site, and monthly inspection results of the floatable grease and settable solids levels in inches and shall be kept in a conspicuous location for inspection. Said log shall be made immediately available to any representative of the Public Works & Utilities Department upon request.

(c) Reporting. The information required in the maintenance log must be submitted by the permitted food service representative to the water utility every 15th day of the month following each quarter-year period.

The report shall be submitted within fifteen days after the end of the reporting period to the pretreatment administration.
(Ord. No. 47-553, § 9, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.080. Monitoring, inspection and entry.

(a) Monitoring. When required for the purposes of this chapter, the user shall provide, operate and maintain, at user's expense, safe and accessible monitoring facilities (such as a suitable manhole) at all times to allow observation, inspection, sampling and flow measurement of the building sewer or internal drainage systems. When the physical location and hydraulic conditions are suitable, a manhole or similar facility existing on the sanitary sewer collection system may be utilized as the user's manhole when agreed to by both the user and the director.

(b) Inspection and Entry. Authorized personnel of the city, bearing proper credentials and identification, shall have the right to enter upon all properties subject to this chapter, at any reasonable time and without prior notification,

for the purpose of inspection, observation, measurement, sampling, testing or record review, in accordance with this chapter.
(Ord. No. 47-553, § 10, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.090. Emergency suspension of services.

The city may suspend water or sewer service when such suspension is necessary, in the opinion of the director, in order to stop an actual or threatened discharge which:

(1) Presents or may present an imminent or substantial endangerment to the health or welfare of persons or the environment;

(2) Causes stoppages, or excessive maintenance to be performed to prevent stoppages, in the sanitary sewer collection system;

(3) Causes interference to the POTW; or

(4) Causes the city to violate any condition of its NPDES permit. Any person notified of a suspension of the water or sewer service shall immediately stop or eliminate the discharge. In the event of a failure of the person to comply voluntarily with the suspension order, the city shall take such steps as deemed necessary, including immediate termination of water or sewer service, to prevent or minimize damage to the POTW system or sewer connection or endangerment to any individuals. The city shall reinstate the water or sewer service when such conditions causing the suspension have passed or been eliminated. A detailed written statement submitted by the user describing the cause(s) of the harmful discharge and the measure(s) taken to prevent any future occurrence shall be submitted to the Pretreatment Administrator within fifteen days of the date of occurrence.

(Ord. No. 47-553, § 11, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.100. Violation.

It is unlawful for any user to discharge into the sanitary sewer collection system in any manner that is in violation of this chapter or of any condition set forth in this chapter.
(Ord. No. 47-553, § 12, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.105. Enforcement.

The director shall have the administrative authority to enforce this chapter. Whenever the city finds that any user has violated or is violating this chapter, or any prohibition, limitation, or requirements contained herein, the director will implement the Fats, Oils, and Grease Program enforcement response plan. Enforcement response necessary to initiate corrective action may include but not be limited to the following:

(a) Notice of Violation. The city may serve upon any user a written notice stating the nature of violation. Within 15 days of the date of notice, a plan for the satisfactory correction thereof shall be submitted to the director by the user.

(b) Administrative Order. When the director finds that a user has violated or continues to violate the provisions set forth in this chapter, or the order issued there under, the director may issue an order for compliance to the user responsible for the discharge. Orders may contain any requirements as might be reasonable, necessary and appropriate to address the noncompliance; including, but not limited, to the installation of pretreatment not technology, additional self-monitoring and management practices.

(c) Consent Order. The director is empowered to enter into consent orders, assurances of voluntary compliance or other similar documents establishing an agreement with the user responsible for noncompliance. Such orders will include specific action to be taken by the user to correct the noncompliance within a time period specified by the order. Consent orders

shall have the same force and effect as administrative orders issued pursuant to subsection (b) of this section.

(Ord. No. 47-553, § 13, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.110. Administrative penalty.

Notwithstanding any other remedies or procedures available to the city, any user who is found by the Pretreatment Administrator or by the Fats, Oils, and Grease Program staff to have violated any provision of this chapter, or any permit or any order issued hereunder, may be assessed an administrative penalty of not to exceed $1,000.00 per violation. Each day on which noncompliance shall occur or continue shall be deemed a separate and distinct violation. Such assessment may be added to the user's next scheduled sewer service charge and the city shall have such other collection remedies as are available at law.

(Ord. No. 47-553, § 14, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.120. Request for hearing and appeal.

(a) Hearing. Any person affected by a penalty, order or directive of the city issued pursuant to this chapter may, within ten days of the issuance of such penalty, order, or directive, request a hearing before the director to show cause why such should be modified or made to not apply to such person. Such request shall be in writing and addressed to the director at 455 North Main Street, Wichita, Kansas. The director or a designee shall hold the requested hearing as soon as practical after receiving the request, at which time the person affected shall have an opportunity to be heard. At the conclusion of the hearing, the director shall issue a written response to the person requesting the hearing affirming, modifying or rescinding the penalty, order, or directive at issue.

(b) Appeal. Any person aggrieved by the decision of the director may appeal such decision to the city council within ten days of the receipt of the decision by filing notice of appeal with the city clerk. Upon hearing, the city council may affirm, modify or reverse the decision of the director. Any appeal of the city council's decision shall be as provided by state law.

(Ord. No. 47-553, § 15, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.130. Authorization.

The director is authorized to promulgate such rules and regulations as shall be reasonable and necessary to carry out the provisions of this chapter according to its terms and intent.

(Ord. No. 47-553, § 16, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.140. Criminal penalties.

Any person who shall be convicted of violating any provision of this chapter or any permit or order issued hereunder shall be deemed guilty of a misdemeanor and shall be punished by a fine of not more than $1,000.00 or by imprisonment for not more than six months or by both. Each day that any such violation occurs shall constitute a separate offense and shall be punishable as a separate violation. If upon trial of any person found guilty of a misdemeanor hereunder, it shall appear to the court that the violation complained of is continuing, the court shall enter such order as it shall deem appropriate to cause the violation to be abated. The provisions of this section are independent of and in addition to any administrative or other legal action that may be taken by the city under the provisions of this chapter.

(Ord. No. 47-553, § 17, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

Sec. 16.24.150. Severability.

If any part or parts of this chapter shall be held to be invalid, such invalidity shall not affect the remaining parts of this chapter. The governing body declares that it would have passed remaining parts of this chapter if it had known that such part or parts thereof would be declared invalid.

(Ord. No. 47-553, § 18, 8-24-2007; Ord. No. 51-064, § 1, 7-23-19)

CHAPTER 16.30. STORMWATER UTILITY

Sec. 16.30.010. Definitions.
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Sec. 16.30.090. Stormwater utility enterprise fund.
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Sec. 16.30.110. Ordinance components.
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Sec. 16.30.010. Definitions.

In addition to the words, terms and phrases elsewhere defined in this chapter, the following words, terms and phrases as used in this chapter shall have the following meanings:

(a) "Bonds" means revenue or general obligation bonds or notes heretofore or hereafter issued to finance the costs of improvements.

(b) "Certificate of occupancy" means a certificate issued by the office of central inspection that permits a newly constructed or a new addition to a residential developed property or nonresidential developed property to be occupied.

(c) "City" means City of Wichita, Sedgwick County, Kansas.

(d) "City council" means governing body of the city.

(e) "Costs of capital improvement" means costs incurred in providing capital improvements to the stormwater management system or any portion thereof including professional services and studies connected thereto; payment of principal and interest on bonds heretofore or hereafter issued, including payment of delinquencies of principal and interest due on bonds that are otherwise payable from special assessments; studies related to the operation of the system; and the costs of the rate study performed heretofore in relation to establishing rates for the stormwater utility and other start up costs of the stormwater utility; costs related to the National Pollution Discharge Elimination System Permit study as mandated by federal laws and regulations; and costs associated with purchasing equipment, computers, furniture, etc., that are necessary for the operation of the utility.

(f) "Debt service" means an amount equal to the sum of (i) all interests payable on bonds during a fiscal year, plus (ii) any principal installments payable on such bonds during such Fiscal Year.

(g) "Developed property" means real property other than undisturbed property.

(h) "Director" means the person appointed by the city manager to be the director of the stormwater utility.

(i) "Drainage fee" or "drainage fees" means a fee authorized by Charter Ordinance 147, this chapter and as set forth in a resolution heretofore adopted or hereafter amended by the city council that has been established to pay operation and maintenance, extension and replacement and debt service associated with the stormwater management system.

(j) "Dwelling unit" means a singular unit providing independent living facilities for one or more persons in a single-family, duplex, multifamily or condominium residential property.

(k) "Equivalent residential unit" (ERU) means the average impervious area of residential developed property per dwelling unit located within the city limits as established by city council resolution as provided herein.

(l) "Equivalent residential unit rate" or "ERU rate" means a drainage fee charged on each ERU as established by city council resolution as provided herein.

(m) "Exempt property" means public rights-of-way, public streets, public alleys and public sidewalks, and also means public ease-

ments upon which publicly owned and maintained storm drainage facilities are constructed.

(n) "Extension and replacement" means costs of extensions, additions and capital improvements to, or the renewal and replacement of capital units of, or purchasing and installing of equipment for, the stormwater management system, or land acquisition for the stormwater management system and any related costs thereto, or paying extraordinary maintenance and repairs, including the costs of capital improvements or any other expense that is not costs of operation and maintenance or debt service.

(o) "Fiscal year" means a twelve-month period commencing on the first day of January of any year.

(p) "Impervious area" means the number of square feet of hard surface areas which either prevent or retard the entry of water into soil mantle, as it entered under natural conditions as undisturbed property, and/or causes water to run off the surface in greater quantities or at an increased rate of flow from that present under natural conditions as undisturbed property, including, but not limited to, roofs, roof extensions, patios, porches, driveways, sidewalks, pavement, athletic courts, and compacted dirt or graveled areas.

(q) "In lieu of franchise fee" means a fee of not to exceed five percent of gross revenues of the utility that is imposed by the city council and that is paid to the city for use of public streets, alleys, sidewalks, and other public rights-of-way from revenues as if the utility was a person, firm or corporation using public rights of way pursuant to K.S.A. 12-2001 et seq.

(r) "Nonresidential developed property" means developed property other than residential developed property.

(s) "Operating budget" means the annual utility operating budget adopted by the city for the succeeding fiscal year.

(t) "Operations and maintenance" means without limitation the current expenses, paid or accrued, of operation, maintenance and current repair of the system, as calculated in accordance with sound accounting practice, and includes, without limiting the generality of the foregoing, insurance premiums, administrative expenses, equipment costs, in lieu of franchise fee payments, labor costs, and the cost of materials and supplies used for current operations.

(u) "Residential developed property" means developed property used for dwelling units.

(v) "Revenues" means all rates, fees, assessments, rentals or other charges or other income received by the stormwater utility in connection with the management and operation of the stormwater management system, including amounts received from the investment or deposit of monies in any fund or account, as calculated in accordance with sound accounting practice.

(w) "Stormwater management system," "sewer system" or "system" means storm sewers that exist at the time the ordinance codified in this chapter is adopted or that are hereafter established and all appurtenances necessary in the maintaining and operating of the same, including, but not limited to, pumping stations, lateral sewers, main sewers, interceptor sewers, outfall sewers, surface drains, channels, rivers, streams and other flood control facilities and works for the collection, transportation, pumping, treatment, and disposing of storm or surface water.

(x) "Stormwater utility" or "utility" means the utility created by this chapter to operate, maintain and improve the stormwater management system and for such other purposes as are set forth in this chapter.

(y) "Undisturbed property" means real property which has not been altered from its natural condition in a manner which disturbed or altered the topography or soils

on the property to the degree that the entrance of water into the soil mantle is prevented or retarded.

(Ord. No. 41-948, § 1)

Sec. 16.30.020. Creation of stormwater utility.

Pursuant to the provisions of K.S.A. 12-3101, et seq., as modified by city Charter Ordinance No. 147, the Wichita city council does establish a stormwater utility and stormwater management system and declares its intention to be responsible for the operation, construction, maintenance and repair of a stormwater management system and stormwater utility.

(Ord. No. 41-948 § 2)

Sec. 16.30.030. Findings and determinations.

It is found, determined, and declared that the elements of the stormwater management system which provides for the collection, treatment and disposal of stormwater are of benefit and provide services to property within the incorporated city limits. The beneficiaries of the system include all real properties within the city which benefit by the provisions, operation and improvement of the system. Such benefits may include, but are not limited to, the provision of adequate systems of collection, conveyance, detention, treatment and release of stormwater, the reduction of hazard to property and life resulting from stormwater runoff, improvement in general health and welfare through reduction of undesirable stormwater conditions, and improvement to the water quality in the storm and surface water system and its receiving waters.

(Ord. No. 41-948 § 3)

Sec. 16.30.040. Administration.

The stormwater utility, under the direction of the city manager or his/her designee, shall have the power to:

(a) Administer the acquisition, design, construction, maintenance and operation of the stormwater management system;

(b) Administer and enforce this chapter and all regulations and procedures adopted relating to the design, construction, maintenance, operation and alteration of the stormwater management system including, but not limited to, the quantity, quality and/or velocity of the stormwater conveyed thereby;

(c) Advise the city council on matters relating to the stormwater management system;

(d) Review plans concerning extensions and replacement of the stormwater management system and make recommendations to the city council;

(e) Make recommendations to the city council concerning establishing ordinances and regulations to protect and maintain water quality within the stormwater management system in compliance with water quality standards established by state, regional and/or federal agencies as now adopted or hereafter adopted or amended;

(f) Analyze the cost of services and benefits provided by the stormwater management system and the structure of fees, charges, fines and other revenues of the stormwater utility annually;

(g) Administer programs pursuant to guidelines hereafter adopted by the city council, that provide for credits and/or incentives that reduce drainage fees assessed against properties that utilize privately owned and maintained stormwater retention or detention facilities which reduce costs of the operating budget of the utility.

(Ord. No. 42-062 § 1)

Sec. 16.30.050. Operating budget.

The city shall, as part of its annual budget process, adopt an operating budget for the stormwater utility for the next following fiscal year. The operating budget shall be prepared in conformance with the State Budget Law, city policy and general accepted accounting practices. The initial operating budget commenced January 1, 1993, and ends December 31, 1993.

(Ord. No. 41-948 § 5)

Sec. 16.30.060. Drainage fee.

(a) Fee Established. Subject to the provisions of this chapter, there is imposed on each and every residential developed property and nonresidential developed property, other than property that is not serviced by the stormwater management system or exempt property, a drainage fee. Such drainage fee shall be determined and set by the provisions of this chapter in accordance with the base rate set forth in the following subsections and the ERU and ERU rate which has been established by resolution of the city council and that may be amended from time to time by the city council.

(b) Drainage Fee for Residential Developed Property. The drainage fee for residential developed property shall be a monthly base rate, beginning at $2.50 for 2026, plus the ERU rate multiplied by the numerical factor calculated by dividing the total impervious area of a residential developed property by the number of square feet in one ERU and rounded down to the nearest full number of ERUs. In the event this numerical factor is less than one ERU, it shall be deemed to be 0.50 ERU. The minimum drainage fee for any residential developed property shall be equal to the monthly base rate plus 0.50 ERU rate. In the event a formerly vacant property is improved by a newly constructed dwelling unit, the charge for the drainage fee attributable to that property shall commence upon the issuance of the certificate of occupancy for that dwelling unit, or if construction is at least fifty percent complete and is halted for a period of three months, then that dwelling unit shall be deemed complete and the drainage fee shall commence at the end of the three-month period.

(c) Drainage Fee for Nonresidential Developed Property.

(1) The drainage fee for nonresidential developed property shall be a monthly base rate, beginning at $2.50 for 2026, plus the ERU rate multiplied by the numerical factor calculated by dividing the total impervious area of a nonresidential developed property by the number of square feet in one ERU. The minimum drainage fee for any nonresidential developed property shall be equal to the monthly base rate plus one ERU rate. In the event of newly developed nonresidential developed property, the charge for the drainage fee attributable to that development shall commence, or increase in the case of additional development to property which is already developed property, upon the issuance of the certificate of occupancy for such additional development, or in the event that no certificate of occupancy will be issued for that development, or in the event development has halted, then on the date that the director or the director's designee determines in reasonable judgment that the development is substantially complete or has been halted for at least three months.

(2) In the event of separately metered nonresidential developed property with joint users of common impervious areas, the director shall calculate and allocate the pro rata drainage fee among the users. Any owner or nonowner user disagreeing with the director's calculation or allocation may appeal such determination to the director as provided in this section.

(d) Dwelling Unit and Impervious Surface Calculation. The director or director's designee shall initially, and from time to time, determine the existence of dwelling units located on residential developed property in order to establish the drainage fee provided by subsection (b) of this section. Nonresidential real property in the city shall have its square footage of impervious area calculated in order to establish the drainage fee provided by subsection (c) of this section. The director or the director's designee shall make the initial calculation and may from time to time change this calculation from such information and data deemed pertinent by the director or the director's designee.

(e) Drainage Fee Credit. The city council may by resolution adopt guidelines that establish credits and/or incentives that reduce the drainage fee that would otherwise be assessed against properties that utilize privately owned and

maintained retention or detention facilities, if it is determined that the existence of such retention or detention facilities results in a reduction in the operating budget of the utility.
(Ord. No. 42-062 § 2; Ord. No. 50-441, §§ 1—3, 4-25-17; Ord. No. 52-902, § 1, 2-24-26)

Sec. 16.30.070. Appeal procedure.

(a) Any persons disagreeing with the calculation of the Drainage Fee, disagreeing with whether their property is served by the Stormwater Utility or who believe they are entitled to a credit pursuant to guidelines adopted by the City Council, may appeal such calculation or finding to the Director. Appeals must be in writing. The Director or his/her designee shall thereafter hold an informal hearing. The Director or designee, prior to such hearing, may request that the appealing party provide information concerning the basis of the appeal, including a land survey prepared by a registered surveyor showing Dwelling Units, total property area, and Impervious Area as appropriate, if such information is deemed to be material by the Director or designee. Based on information provided, the Director or designee shall make a determination as to whether the Drainage Fee should be adjusted or eliminated for such property. The Director shall notify parties in writing of the Director's or his/her designee's decision.

(b) (1) A person shall have the right to appeal the decision of the director to the stormwater appeals board. Such appeal shall be made within twenty days of the date the director notifies the person of the director's decision in the informal proceedings. Such appeal shall be in writing and shall be filed with the director.

(2) The stormwater appeals board shall consist of the following members:

City manager or designee

Director of water and sewer or designee

Director of planning or designee

(3) A hearing on such appeal shall be held within thirty days from the date the notice of appeal is received and the applicant shall be given seven days' advance notice of the time and date the appeal hearing is to be held. At such hearing, the appellant shall present evidence concerning the drainage fee for the property in question and the director and/or his/her designee shall present evidence concerning their findings from the informal proceedings. The stormwater appeals board shall render a decision in writing that sets forth findings that support their decision within seven days of the hearing. The decision of the stormwater appeals board shall be final and any further appeal of such decision shall be to the Eighteenth Judicial District Court of the state of Kansas by way of the provisions of K.S.A. 60-2101(d).

(Ord. No. 42-062 § 3)

Sec. 16.30.080. Stormwater drainage fee collection.

(a) The drainage fee shall be billed and collected monthly with the monthly water and sewer utility bill for those properties utilizing other city utilities and shall be billed and collected separately at intervals as set by the director for those properties not utilizing other city utilities. The drainage fee for those properties utilizing other city utilities shall be part of a consolidated statement for utility customers which shall be paid by a single payment. In the event that a partial payment is received, the payment shall be applied to the water and sewer portion of the account first and then to the drainage fee portion of the account. Unless otherwise provided for herein, all bills for drainage fees shall become due and payable in accordance with sections of the code of the city and with rules and regulations that pertain to the Wichita water and sewer utility that relates to the collection of utility charges. Drainage fee bills for any given property shall initially be the responsibility of the person who is paying for water and/or sewer service for the property. If the property is not

using water and/or sewer services, then drainage fees shall be the responsibility of the person in possession of the property, unless other arrangements are made. If no person is in possession of the property, then the drainage fees shall be the responsibility of the property owner. The property owner is responsible for the drainage fees not paid by the occupant.

(b) Drainage fees shall be subject to a penalty for late payment which is the same as that imposed for late payment of water and sewer utility charges. In addition to any other remedies or penalties provided by this chapter or any other ordinance of the city, failure of any user of the stormwater management system to pay such charges promptly when due shall subject such user to discontinuance of water services and the city manager of the city, or the city manager's designee, is empowered and directed to enforce this provision as to any and all delinquent users in accordance with provision set forth in Chapter 17.12. Users shall be entitled to notice and shall have the right to a hearing in accordance with Chapter 17.12 before such users' water service is discontinued for failure to pay drainage fees.

(c) Drainage fees authorized to be charged in this chapter when delinquent may be certified by the clerk of the city to the county clerk of Sedgwick County to be placed on the tax roll for collection, subject to the same penalties and to be collected in like manner as other taxes, and such charges shall, thereafter, constitute a lien upon the real estate served by the stormwater utility and against which such charges were made, regardless of whether the drainage fees were incurred when a property owner was in possession of the property or a nonowner was in possession of the property.
(Ord. No. 41-948 § 8)

Sec. 16.30.090. Stormwater utility enterprise fund.

Drainage fees collected by the city shall be paid into an enterprise fund which is created, to be known as the "stormwater utility fund." Such fund shall be used for the purpose of paying the extension and replacement, operations and maintenance and debt service of the stormwater management system and to carry out all other purposes of the utility.
(Ord. No. 41-948 § 9)

Sec. 16.30.100. ERU rate.

The ERU and the ERU rate that is used to determine the charge for each residential developed property and nonresidential developed property shall be as established in a resolution heretofore adopted or hereafter amended by the city council.
(Ord. No. 41-948 § 10)

Sec. 16.30.110. Ordinance components.

Should any part of this chapter be declared invalid by a court of competent jurisdiction, the remaining portions hereof shall not be affected and shall remain in full force and effect.
(Ord. No. 41-948 § 11)

Sec. 16.30.120. Severability.

In the event that any portion or section of this chapter is determined to be invalid, illegal or unconstitutional by a court of competent jurisdiction, such decision shall in no manner affect the remaining portions or sections of this chapter which shall remain in full force and effect.
(Ord. No. 41-948 § 12)

CHAPTER 16.32. STORMWATER POLLUTION PREVENTION

Sec. 16.32.010. General provisions.
Sec. 16.32.020. General prohibition.
Sec. 16.32.030. Specific prohibitions and requirements.
Sec. 16.32.040. Release reporting and cleanup.
Sec. 16.32.050. Stormwater discharges from construction activities.
Sec. 16.32.060. Stormwater discharges associated with industrial activity.
Sec. 16.32.070. Ditches and ponds.
Sec. 16.32.080. Compliance monitoring.
Sec. 16.32.090. Subdivision development.
Sec. 16.32.091. Storm water quality management standards.
Sec. 16.32.092. Storm water quantity management standards.
Sec. 16.32.093. Other storm water management requirements.
Sec. 16.32.094. Waivers and exemptions from storm water management standards.
Sec. 16.32.095. General requirements for storm water design plans.
Sec. 16.32.096. Maintenance and inspection of storm water drainage paths and controls.
Sec. 16.32.097. Special provisions for open channels.
Sec. 16.32.098. Provisions for the offsite BMP program.
Sec. 16.32.100. Enforcement actions.
Sec. 16.32.110. Applicability of enforcement actions.
Sec. 16.32.120. Hearing and appeal.
Sec. 16.32.130. Enforcement personnel authorized.
Sec. 16.32.140. Other legal actions.
Sec. 16.32.150. Falsifying information.
Sec. 16.32.160. Supplemental enforcement actions.
Sec. 16.32.170. Severability.

Sec. 16.32.010. General provisions.

A. *Purposes.* The purpose and objective of this chapter are as follows:

1. To maintain and improve the quality of surface water and groundwater within the city;
2. To attenuate the discharge of contaminated storm water runoff from industrial, commercial, residential, and construction sites into the municipal separate storm sewer system (MS4) and natural waters within the city;
3. To promote public awareness of the hazards involved in the improper discharge of hazardous substances, petroleum products, household hazardous waste, industrial waste, sediment from construction sites, pesticides, herbicides, fertilizers, and other contaminants into the storm sewers of the city;
4. To encourage recycling of used motor oil and safe disposal of other hazardous consumer products;
5. To facilitate compliance with state and federal standards and permits by owners of industrial and construction sites within the city;
6. To enable the city to comply with all federal and state laws and regulations applicable to its NPDES permit for storm water discharges.
7. To regulate the management of storm water for purposes of public safety, welfare and quality of life;
8. To manage and maintain local floodplains; and,
9. To facilitate compliance with city standards and permits by owners of developed, redeveloped and undeveloped properties within the city.

B. *Administration.* Except as otherwise provided herein, the director, or his appointed representative, shall administer, implement, and enforce the provisions of this chapter.

C. *Authority.* The director may develop additional policies, criteria, specifications and standards in a Storm Water Manual and/or in other policy, master plans, watershed plans or guidance documents as necessary to effectively implement the requirements of this chapter. The policies, criteria and requirements of the Storm Water Manual and/or other policy, plans or guidance documents may be implemented and amended by the director, are referenced in this chapter when required, and shall be enforceable, consistent with the provisions contained in this chapter. A public meeting shall be held bi-annually to allow public comment on this chapter and the Storm Water Manual.

In the event that a violation of any provision of this chapter has occurred, or that work does

not have a required plan or permit, or that work does not comply with an approved plan or permit, the city may issue a Notice of Violation to the permittee, plan holder or property owner and/or any other person or entity having responsibility for the property or properties where the violation occurred under the provisions of subsection 16.32.100.B. of this chapter.

In the spirit of the purposes defined above for this chapter and in the administration of these requirements, the director may consider the cost-effectiveness of storm water management controls provided that such controls meet the water quality, channel erosion protection and flood protection requirements of this chapter or are waived or exempted in accordance with the criteria defined in this chapter.

D. *Regulatory or legal conflicts.* This chapter is not intended to repeal, abrogate, or impair any existing easements, covenants, deed restrictions, or existing ordinances and regulations, except as specifically noted in this chapter. However, where the provisions of this chapter and another regulation conflict or overlap, that provision which is more restrictive or imposes higher standards or requirements shall prevail.

E. *Abbreviations.* The following abbreviations when used in this chapter shall have the designated meanings:

BMP	Best Management Practices
CFR	Code of Federal Regulations
CLOMR	Conditional Letter of Map Revision
EPA	U.S. Environmental Protection Agency
FEMA	Federal Emergency Management Agency
HHW	Hazardous Household Waste
KAR	Kansas Administrative Regulations
KSA	Kansas Statutes Annotated
LOMR	Letter of Map Revision
mg/l	Milligrams per liter
MS4	Municipal Separate Storm Sewer System
NOI	Notice of Intent
NOT	Notice of Termination
NPDES	National Pollutant Discharge Elimination System
OCI	Office of Central Inspection
PST	Petroleum Storage Tank
SWP3	Storm Water Pollution Prevention Plan
TMDL	Total Maximum Daily Load
USC	United States Code

F. *Definitions.* Unless a provision explicitly states otherwise, the following terms and phrases, as used in this chapter, shall have the meanings hereinafter designated.

1. *As-built plan* means a drawing showing the actual state of permanent storm water facilities as installed.

2. *Best management practices (BMP)* means schedule of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce the pollution of waters of the United States or the city's MS4 and includes both temporary measures used during construction and permanent measures that are constructed in accordance with the provisions of this ordinance. Best management practices also include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage areas. The BMPs required in this chapter will be sufficient to prevent or reduce the likelihood of pollutants entering storm sewers, ditches, or ponds.

3. *City* means the City of Wichita.

4. *Commencement of construction* means the disturbance of soils associated with clearing, grading, or excavating activities or other construction activities.

5. *Commercial* means pertaining to any business, trade, industry or other activity engaged in for profit.

6. *Construction general permit* refers to the Kansas General Permit for Storm water Discharges from Construction Sites.

7. *Contractor* means any person or firm performing construction work at a construction site, including any general contractor and subcontractors. Also includes, but is not limited to, earthwork, paving, building, plumbing, mechanical, electrical, landscaping contractors, and material suppliers delivering materials to the site.

8. *Development* or *new development* means undisturbed property where improvements are planned or intended that will result in land disturbance activities or impervious areas either during or after construction.

9. *Director* means the person appointed to the position of public works and utilities director by the city manager of the city, or his/her duly authorized representative. Authorized representatives can include, but are not limited to, the city engineer, the storm water engineer, and others, as so authorized.

10. *Discharge* means any addition or introduction of any pollutant, storm water, or any other substance whatsoever into the municipal separate storm sewer system (MS4) or into waters of the United States.

11. *Discharger* means any person who causes, allows, permits, or is otherwise responsible for a discharge, including without limitation any owner of a construction site or industrial facility.

12. *Domestic sewage* means human excrement, gray water (From home clothes washing, bathing, showers, dishwashing, and food preparation), other wastewater from household drains, and waterborne waste normally discharged from the sanitary conveyances of dwellings (including apartment houses and hotels), office buildings, factories, and institutions, that is free from industrial waste.

13. *Drainage plan* refers to the detailed water quantity and quality calculations and plan that are required for final plat approval or for issuance of a building permit.

14. *Earthwork* means the disturbance of soils on a site associated with clearing, grading, or excavation activities.

15. *Environmental Protection Agency (EPA)* means the United States Environmental Protection Agency, the regional office thereof, any federal department, agency or commission that may succeed to the authority of the EPA, and any duly authorized official of EPA or such successor agency.

16. *Extremely hazardous substance* means any substance listed in the appendices to 40 CFR Part 355, Emergency Planning and Notification.

17. *Facility* means any building, structure, installation, process, or activity from which there is or may be discharge of a pollutant.

18. *Fertilizer* means a substance or compound that contains an essential plant nutrient element in a form available to plants and is used primarily for its essential plant nutrient element content in promoting or stimulating growth of a plant or improving the quality of a crop, or a mixture of two or more fertilizers.

19. *Final stabilization* means the status when all soil disturbing activities at a site have been completed. This would establish a uniform perennial vegetative cover with a density of seventy percent coverage for unpaved areas and those not covered by permanent structures or equivalent permanent stabilization measures (by employing riprap, gabions, or geotextiles).

20. *Fire protection water* means any water, and any substances or materials contained therein, used by any person to control or extinguish a fire, or to inspect or test fire equipment.

21. *Garbage* means putrescible animal and vegetable waste materials from the handling, preparation, cooking, or consumption of food, including waste materials from markets, storage facilities, and the handling and sale of produce and other food products.

22. *Harmful quantity* means the amount of any substance that will cause a violation of a state water quality standard or any adverse impact to the city's drainage system.

23. *Hazardous household waste (HHW)* means any material generated in a household (including single and multiple residences) by a consumer which, except for the exclusion provided in 40 CFR Section 261.4(b)(1), would be classified as a hazardous waste under 40 CFR Part 261.

24. *Hazardous substance* means any substance listed in Table 302.4 of 40 CFR Part 302.

25. *Hazardous waste* means any substance identified or listed as a hazardous waste by the EPA pursuant to 40 CFR Part 261.

26. *Hazardous waste treatment, disposal, and recovery facility* means all contiguous land, and structures, other appurtenances and improvements on the land used for the treatment, disposal, or recovery of hazardous waste.

27. *Impervious area* or *impervious cover* means the number of square feet of hard surface areas which either prevent or retard the entry of water into soil mantle, as it entered under natural conditions as undisturbed property, and/or causes water to run off the surface in greater quantities or at an increased rate of flow from that present under natural conditions as undisturbed property, including, but not limited to, roofs, roof extensions, patios, porches, driveways, sidewalks, pavement, athletic courts, and compacted dirt or graveled areas.

28. *Individual building sites* means and includes sites of building construction or earthwork activities that are not a part of a new subdivision development and any individual lot within a newly developing subdivision.

29. *Industrial general permit.* See "Kansas General Permit for Storm Water Discharges Associated with Industrial Activity."

30. *Industrial waste* means any waterborne liquid or solid substance that results from any process of industry, manufacturing, mining, production, trade or business.

31. *Industry* means and includes: (a) municipal landfills; (b) hazardous waste treatment, disposal, and recovery facilities; (c) industrial facilities that are subject to Section 313 of Title III of the Superfund Amendments and Reauthorization Act of 1986 (SARA) 42, U.S.C. Section 11023; industrial facilities required to obtain NPDES storm water discharge permits due to their Standard Industrial Classification or narrative description; and (d) industrial facilities that the director determines are contributing a substantial pollutant loading to the MS4, which are sources of storm water discharges associated with industrial activity.

32. *Kansas General Permit for Storm Water Discharges Associated with Industrial Activity (or industrial general permit)* means the industrial general permit issued by KDHE and any subsequent modifications or amendments thereto, including group permits.

33. *Kansas General Permit for Storm Water Discharges from Construction Sites (or construction general permit)* means the construction general permit issued by KDHE and any subsequent modifications on amendments thereto, including group permits.

34. *Land disturbance* means the disturbance of soils on a site associated with clearing, grading, excavation, new development or redevelopment activities.

35. *Landfill* means an area of land or an excavation in which municipal solid waste is placed for permanent disposal, and which is not a land treatment facility, a surface impoundment, or an injection well.

36. *Municipal separate storm sewer system (MS4)* means the system of conveyances, (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels, or storm drains) owned and operated by the city and designed or used for collecting or conveying storm water, and which is not used for collecting or conveying sewage.

37. *Municipal solid waste* means solid waste resulting from or incidental to municipal, community, commercial, institutional, or recreational activities, and includes garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles, and other solid waste other than industrial waste.

38. *NPDES permit* means for the purpose of this chapter, this is a permit issued by EPA or the state of Kansas that authorizes the discharge of storm water pollutants to waters of the United States, whether the permit is applicable on an individual, group, or general area-wide basis

39. *Nonpoint source* means the source of any discharge of a pollutant that is not a point source.

40. *Notice of intent (NOI)* means the notice of intent that is required by either the industrial general permit or the construction general permit.

41. *Notice of termination (NOT)* means the notice of termination that is required by either the industrial general permit or the construction general permit.

42. *Notice of violation* means a written notice provided to the owner or contractor detailing any violations of this chapter and any clean-up action expected of the violators.

43. *OCI* means office of central inspection and includes its superintendent and his or her authorized representatives.

44. *Offsite BMP program* is a voluntary storm water quality compliance program offered to existing property, new development and redevelopment that requires payment to the city of a monthly service fee instead of implementation of the on-site BMPs that would otherwise be required to be constructed and maintained to comply with section 16.32.091 of this chapter.

45. *Offsite BMP program fee* means a fee of $19.00 per year for each permitted acre of property registered in the offsite BMP program, as authorized by this chapter pursuant to Charter Ordinance 147 and K.S.A. 12-137, which fee has been established to pay or reimburse capital expenditures, maintenance costs, program administrative costs, discount rate and design life costs associated with the offsite BMP program.

46. *Oil* means any kind of oil in any form, including, but not limited to: petroleum, fuel oil, crude oil or any fraction thereof which is liquid at standard conditions of temperature and pressure, sludge, oil refuse, and oil mixed with waste.

47. *Outfall* or *storm water outfall* means the terminus of the storm water system for a development or redevelopment where the storm water runoff is released into a larger public or private storm water management system, or into a stream, waters of the United States or other water body.

48. *Owner* means the person who owns a facility, part of a facility, or land.

49. *Person* means any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, government entity, or any other legal entity; or their legal

representatives, agents, or assigns, including all federal, state, and local government entities.

50. *Pesticide* means a substance or mixture of substances intended to prevent, destroy, repel, or migrate any pest, or substances intended for use as a plant regulator, defoliant, or desiccant.

51. *Petroleum product* means a petroleum product that is obtained from distilling and processing crude oil and that is capable of being used as a fuel for the propulsion of a motor vehicle, or aircraft, including motor gasoline, gasohol, other alcohol blended fuels, aviation gasoline, kerosene, distillate fuel oil, and #1 and #2 diesel.

52. *Petroleum storage tank (PST)* means any one or combination of aboveground or underground storage tanks that contain petroleum product and any connecting underground pipes.

53. *Point source* means any discernable, confined, and discrete conveyance including, but not limited to: any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, rolling stock, concentrated animal feeding operation, landfill leachate collection system, vessel or other floating craft from which pollutants are or may be discharged. This term does not include return flows from irrigated agriculture or agricultural storm water runoff.

54. *Pollutant* means dredged spoil, spoil waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical waste, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, soil, yard waste, hazardous household wastes, used motor oil, anti-freeze, litter, and industrial, municipal, and agricultural waste discharged into water and/or any substance, debris, matter that may be carried downstream by storm water runoff, and/or any substance or matter that may be dissolved in storm water runoff.

55. *Pollution* means the alteration of the physical, thermal, chemical, or biological quality of, or the contamination of, any water in the state that renders the water harmful, detrimental, or injurious to humans, animal life, vegetation, or property, or public health, safety, or welfare, or impairs the usefulness or the public enjoyment of the water for any lawful or reasonable purpose.

56. *Qualified personnel* means persons who possess the required certification, license, or appropriate competence, skills, and ability as demonstrated by sufficient education, training, and/or experience to perform a specific activity in a timely and complete manner consistent with the regulatory requirements and generally accepted industry standards for such activity.

57. *Redevelopment* or *redevelopment site* means a change to previously existing improved property, including but not limited to the demolition or building structures, filling, grading, paving, or excavating.

58. *Release* means any spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping, or disposing into the municipal separate storm sewer system (MS4) or the waters of the United States.

59. *Reportable quantity (RQ)* means, for any hazardous substance, the quantity established and listed in Table 302.4 of 40 CFR Part 302; for any extremely hazardous substance, the quantity established in 40 CFR Part 355.

60. *Rubbish* means nonputrescible solid waste, excluding ashes, that consist of: (a) combustible waste materials, including paper, rags, cartons, wood, excelsior, furniture, rubber, plastics, yard trimmings, leaves, and similar materials; and (b) noncombustible waste materials, including grass, crockery, tin cans, aluminum cans, metal furniture, and similar materials that do not burn at

ordinary incinerator temperatures (one thousand six hundred to one thousand eight hundred degrees Fahrenheit).

61. *Sanitary sewer* means the system of pipes, conduits, and other conveyances which carry industrial waste and domestic sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, to the city sewage treatment plant (and to which storm water, surface water, and groundwater are not intentionally admitted).

62. *Septic tank waste* means any domestic sewage from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks.

63. *Service station* means any retail establishment engaged in the business of selling fuel for motor vehicles that is dispensed from pumps.

64. *Sewage* means the domestic sewage mid and/or industrial waste that is discharged into the city sanitary sewer system and passes through the sanitary sewer system to the city sewage treatment plant for treatment.

65. *Site* means the land or water area where development or redevelopment is physically located or being conducted, including lands adjacent to the development that is not subject to land disturbing activities but that is used as a staging area or for other uses in connection with the new development or redevelopment.

66. *Solid waste* means any garbage, rubbish, refuse, sludge from a waste treatment plant, water supply treatment plant, or air pollution control facility, and other discarded material including: solid, liquid, semi-solid, or contained gaseous material resulting from industrial, municipal, commercial, mining, agricultural operations, and community and institutional activities.

67. *State* means the state of Kansas.

68. *Storm water* means storm water runoff, snow melt runoff, and surface runoff and drainage.

69. *Storm water discharge associated with industrial activity* means the discharge from any conveyance which is used for collecting and conveying storm water and which is directly related to manufacturing, processing, or raw materials storage areas at an industrial plant which is listed as one of the categories of facilities in 40 CFR Section 122.26(b)(14), and which is not excluded from EPA's definition of the same term.

70. *Storm water management facility* or *storm water control* means any structure or installation used to manage storm water quality, flow rate, or volume.

71. *Storm Water Manual* refers to the latest version, as amended, of the document on file with the director of public works entitled City of Wichita/Sedgwick County Storm Water Manual.

72. *Storm water pollution prevention plan (SWP3)* means a plan required by an NPDES storm water permit and which describes and ensures the implementation of practices that are to be used to reduce the pollutants in storm water discharges associated with construction or other industrial activity.

73. *Subdivision development* means and includes activities associated with the platting of any parcel of land into two or more lots and includes all construction taking place thereon.

74. *Undisturbed property* means real property which has not been altered from its natural condition so that the entrance of water into the soil mantle is prevented or retarded through changes to the topography or soils.

75. *Used oil (or used motor oil)* means any oil that has been refined from crude oil a synthetic oil that, as a result of use, storage, or handling; has become unsuit-

able for its original purpose because of impurities or the loss of original properties.

76. *Water of the state (or water)* means any groundwater, percolating or otherwise, lakes, bays, ponds, impounding reservoirs, springs, rivers, streams, creeks, estuaries, marshes, inlets, canals, inside the territorial limits of the state, and all other bodies of surface water, natural or artificial, navigable or non-navigable, and including the beds and banks of all water courses and bodies of surface water, that are wholly or partially inside or bordering the state or inside the jurisdiction of the state.

77. *Water quality standard* means the designation of a body or segment of surface water in the state for desirable uses and the narrative and numerical criteria deemed by the state to be necessary to protect those uses.

78. *Waters of the United States* means all waters which are currently used, were used in the past, or may be susceptible to use in interstate or foreign commerce, including all waters which are subject to the ebb and the flow of the tide; all interstate waters, including interstate wetlands; all other waters the use, degradation, or destruction of which would affect or could affect interstate or foreign commerce; all impoundments of waters otherwise defined as waters of the United States under this definition; all tributaries of waters identified in this definition; all wetlands adjacent to waters identified in this definition; and any water within the federal definition of "waters of the United States" at 40 CFR Section 122.2; but not including any waste treatment systems, treatment ponds, or lagoons designed to meet the requirements of the Federal Clean Water Act.

79. *Watershed* means the cumulative area that drains to a common point.

80. *Watershed plan* means an engineering and planning study for the drainage system and/or land areas of a watershed that may include a plan for storm water management in the watershed. Watershed plans can include, but are not limited to, the analysis of flooding problems, water quality problems, potential storm water capital improvements, land use patterns, and regulatory issues for existing and potential future land use conditions and address solutions to these problems.

81. *Wetland* means any area that is inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances does support, a prevalence of vegetation typically adapted for life in saturated soil conditions. Wetlands generally include swamps, marshes, bogs, and similar areas.

82. *Yard waste* means leaves, grass clippings, yard and garden debris, and brush that results from landscaping maintenance and land-clearing operations.

(Ord. No. 44-123 § 1; Ord. No. 48-904 § 1, 11-16-2010; Ord. No. 50-266 § 1, 6-21-16)

Sec. 16.32.020. General prohibition.

A. No person shall introduce or cause to be introduced into the municipal separate storm sewer system (MS4) any discharge that is not composed entirely of stormwater, except as allowed in subsection B.

B. The following nonstormwater discharges are deemed acceptable and not a violation of this section:

1. A discharge authorized by, and in full compliance with, an NPDES permit (other than the NPDES permit for discharges from the MS4);

2. A discharge or flow resulting from emergency fire fighting;

3. A discharge or flow of fire protection water that does not contain oil or hazardous substances or materials;

4. A discharge from water line flushing;

5. A discharge or flow from lawn watering, landscape irrigation, or other irrigation water;
6. A discharge or flow from a diverted stream flow or natural spring;
7. A discharge or flow from uncontaminated pumped groundwater or rising groundwater;
8. Uncontaminated groundwater infiltration;
9. Uncontaminated discharge or flow from a foundation drain, crawl space pump, footing drain, or sump pump;
10. A discharge or flow from a potable water source not containing any harmful substance or material from the cleaning or draining of a storage tank or other container;
11. A discharge or flow from air conditioning condensation that is unmixed with water from a cooling tower, emissions scrubber, emissions filter, or any other source of pollutant;
12. A discharge or flow from individual residential car washing;
13. A discharge or flow from a riparian habitat or wetland or natural spring;
14. A discharge or flow from water used in street washing that is not contaminated with any soap, detergent, degreaser, solvent, emulsifier, dispersant, or any other harmful cleaning substance;
15. Stormwater runoff from a roof that is not contaminated by any runoff or discharge from an emissions scrubber or filter or any other source of pollutant;
16. Swimming pool water, excluding filter backwash; that has been dechlorinated so that it contains no harmful quantity of chlorine, muriatic acid or other chemical used

to cause, or does cause, a harmful quantity of the pesticide or fertilizer to enter the MS4 or waters of the United States.

G. Used Oil Regulation.

1. No person shall discharge used oil into the MS4 or a sewer, drainage system, septic tank, surface water, groundwater, or water course.

H. Cleanup. Should it be determined by the director that any person or business has allowed any pollutant into the MS4 or waters of the United States, immediate measures will be taken by the responsible party to remove the pollutants. If the pollutants are not removed within the time period specified by the director, the city may remove the pollutants and assess the cost thereof to the responsible party. The city may use any legal means to collect said cost, should the responsible party fail to pay said cost within forty-five days.
(Ord. No. 44-123 § 3)

Sec. 16.32.040. Release reporting and cleanup.

A. Any person responsible for any release of any hazardous material that may flow, leach, enter, or otherwise be introduced into the MS4 or waters of the United States shall comply with all state, federal, and any other local law requiring reporting, clean-up, containment, and any other appropriate remedial action in response to the release.

B. Within thirty days following such release, the Wichita fire department shall submit a written report to the public works department detailing spill information and the methods used to remedy the problem.
(Ord. No. 44-123 § 4)

Sec. 16.32.050. Stormwater discharges from construction activities.

A. General Requirements (All Sites).

1. The owners of construction sites shall ensure that best management practices are used to control and reduce the discharge of pollutants into the MS4 and waters of the United States to the maximum extent possible under the circumstances.

2. Qualified personnel (provided by the owner of the construction site) shall inspect disturbed areas that have not been finally stabilized, areas used for storage of materials that are exposed to precipitation, structural control measures, and locations where vehicles enter or exit the site, at least once every seven calendar days and within twenty-four hours of the end of a storm that is one-half inch or greater. All erosion and sediment control measures and other identified best management practices shall be observed in order to ensure that they are operating correctly and are effective in preventing significant impacts to receiving waters and the MS4. Based on the results of the inspection, the best management practices shall be revised as appropriate as soon as practicable. These inspections, along with a description of revisions, will be documented in writing and available for inspection by the director and OCI upon request.

3. Should it be found that soil or pollutants have already or may be carried into the MS4 or waters of the United States, immediate measures will be taken by the owner to remedy the violation and/or remove the pollutants. If the owner fails to remove pollutants within the time period prescribed in the notice of violation from the city, the city may remove the pollutants and assess the cost thereof to the responsible owner. Failure of the owner to pay said costs will be grounds for the denial of further approvals or the withholding of occupancy certificates.

4. When determined to be necessary for the effective implementation of this section, the director may require any plans and specifications that are prepared for the construction of site improvements to illustrate and describe the best management practices required by subsection A.1 of this section above that will be imple-

mented at the construction site. Should the proper BMP's not be installed or if the BMP's are ineffective, upon reasonable notice to the owner, the city may deny approval of any building permit, grading permit, subdivision plat, site development plan, or any other city approval necessary to commence or continue construction, or to assume occupancy.

5. The owner of a site of construction activity is responsible for compliance with the requirements in this subsection. In the case of new subdivisions, builders on individual lots can operate under the developers NPDES permit if the developer's SWP3 deals with individual lots and the contractors certification has been signed.

6. Any contractor on a construction site will also be required to use best management practices so as to minimize pollutants that enter into the MS4.

7. All persons shall avoid damaging BMP devices once in place. Any person damaging a BMP device shall be responsible for the repair of the damaged BMP device. Malicious destruction of a BMP device or failure of such responsible person to repair BMP device will be deemed a violation of this chapter.

B. Sites Requiring Federal and/or State NPDES Stormwater Discharge Permits. All owners of and contractors on sites of construction activity, that require a federal or state NPDES stormwater discharge permit, or that are part of a common plan of development or sale requiring said permit(s), shall comply with the following requirements (in addition to those in subsection A):

1. Any owner who intends to obtain coverage for stormwater discharges from a construction site under the Kansas General Permit for Stormwater Discharges From Construction Sites ("the construction general permit") shall submit a signed copy of its notice of intent (NOI) to OCI when a building permit application is made. If the construction activity is already underway upon the effective date of this chapter, [January 1, 1999] the NOI shall be submitted within thirty days. When ownership of the construction site changes, a revised NOI shall be submitted within fifteen days of the change in ownership.

2. A stormwater pollution prevention plan (SWP3) shall be prepared and implemented in accordance with the requirements of the construction general permit or any individual or group NPDES permit issued for stormwater discharges from the construction site, and with any additional requirement imposed by or under this chapter and any other city ordinance.

3. The SWP3 shall be prepared by a qualified person and shall comply with State NPDES requirements. The signature of the preparer shall constitute his/her attestation that the SWP3 fully complies with the requirements of the permit issued.

4. The SWP3 shall be completed prior to the submittal of the NOI to OCI and for new construction, prior to the commencement of construction activities. The SWP3 shall be updated and modified as appropriate and as required by the NPDES permit.

5. The director and/or OCI may require any owner who is required by subsection B.2 of this section to prepare a SWP3, to submit the SWP3, and any modifications thereto, to the Director and/or OCI for review at any time.

6. Upon the director's review of the SWP3 and any site inspection that he/she may conduct, if the SWP3 is not being fully implemented, the director may upon reasonable notice to the owner, deny approval of any building permit, grading permit, site development plan, final occupancy certificate, or any other city approval necessary to commence or continue construction. A stop work order may also be issued.

are used to control and reduce the discharge of pollutants into the MS4 and waters of the United States to the maximum extent possible under the circumstances.

2. Qualified personnel (provided by the owner of the construction site) shall inspect disturbed areas that have not been finally stabilized, areas used for storage of materials that are exposed to precipitation, structural control measures, and locations where vehicles enter or exit the site, at least once every seven calendar days and within twenty-four hours of the end of a storm that is one-half inch or greater. All erosion and sediment control measures and other identified best management practices shall be observed in order to ensure that they are operating correctly and are effective in preventing significant impacts to receiving waters and the MS4. Based on the results of the inspection, the best management practices shall be revised as appropriate as soon as practicable. These inspections, along with a description of revisions, will be documented in writing and available for inspection by the director and OCI upon request.

3. Should it be found that soil or pollutants have already or may be carried into the MS4 or waters of the United States, immediate measures will be taken by the owner to remedy the violation and/or remove the pollutants. If the owner fails to remove pollutants within the time period prescribed in the notice of violation from the city, the city may remove the pollutants and assess the cost thereof to the responsible owner. Failure of the owner to pay said costs will be grounds for the denial of further approvals or the withholding of occupancy certificates.

4. When determined to be necessary for the effective implementation of this section, the director may require any plans and specifications that are prepared for the construction of site improvements to illustrate and describe the best management practices required by subsection A.1 of this section above that will be implemented at the construction site. Should the proper BMP's not be installed or if the BMP's are ineffective, upon reasonable notice to the owner, the city may deny approval of any building permit, grading permit, subdivision plat, site development plan, or any other city approval necessary to commence or continue construction, or to assume occupancy.

5. The owner of a site of construction activity is responsible for compliance with the requirements in this subsection. In the case of new subdivisions, builders on individual lots can operate under the developers NPDES permit if the developer's SWP3 deals with individual lots and the contractors certification has been signed.

6. Any contractor on a construction site will also be required to use best management practices so as to minimize pollutants that enter into the MS4.

7. All persons shall avoid damaging BMP devices once in place. Any person damaging a BMP device shall be responsible for the repair of the damaged BMP device. Malicious destruction of a BMP device or failure of such responsible person to repair BMP device will be deemed a violation of this chapter.

B. *Sites Requiring Federal and/or State NPDES Stormwater Discharge Permits.* All owners of and contractors on sites of construction activity, that require a federal or state NPDES stormwater discharge permit, or that are part of a common plan of development or sale requiring said permit(s), shall comply with the following requirements (in addition to those in subsection A):

1. Any owner who intends to obtain coverage for stormwater discharges from a construction site under the Kansas General Permit for Stormwater Discharges From Construction Sites ("the construction general permit") shall submit a signed copy of its notice of intent (NOI) to OCI when a building permit application is made. If the construction activity is already under-

way upon the effective date of this chapter, [January 1, 1999] the NOI shall be submitted within thirty days. When ownership of the construction site changes, a revised NOI shall be submitted within fifteen days of the change in ownership.

2. A stormwater pollution prevention plan (SWP3) shall be prepared and implemented in accordance with the requirements of the construction general permit or any individual or group NPDES permit issued for stormwater discharges from the construction site, and with any additional requirement imposed by or under this chapter and any other city ordinance.

3. The SWP3 shall be prepared by a qualified person and shall comply with State NPDES requirements. The signature of the preparer shall constitute his/her attestation that the SWP3 fully complies with the requirements of the permit issued.

4. The SWP3 shall be completed prior to the submittal of the NOI to OCI and for new construction, prior to the commencement of construction activities. The SWP3 shall be updated and modified as appropriate and as required by the NPDES permit.

5. The director and/or OCI may require any owner who is required by subsection B.2 of this section to prepare a SWP3, to submit the SWP3, and any modifications thereto, to the Director and/or OCI for review at any time.

6. Upon the director's review of the SWP3 and any site inspection that he/she may conduct, if the SWP3 is not being fully implemented, the director may upon reasonable notice to the owner, deny approval of any building permit, grading permit, site development plan, final occupancy certificate, or any other city approval necessary to commence or continue construction. A stop work order may also be issued.

7. All contractors working on a site subject to an NPDES permit shall sign a copy of the following certification statement before beginning work on the site:

   I certify under penalty of law that I understand the terms and conditions of the National Pollutant Discharge Elimination System (NPDES) permit that authorizes the stormwater discharges associated with construction activity from the construction site identified as part of this certification and with the Stormwater Pollution Prevention Plan Chapter of the city, and I agree to implement and follow the provisions of the Stormwater Pollution Prevention Plan (SWP3) for the construction site;

   The certification must include the name and title of the person providing the signature; the name, address, and telephone number of the contracting firm; the address (or other identifying description) of the site; and the date the certification is made.

   All contractors will be responsible for their own activities to ensure that they comply with the owners' SWP3. Failure to comply with the SWP3 or malicious destruction of BMP devices is hereby deemed to be a violation of this chapter.

8. The SWP3 and the certifications of contractors required by subsection B.7 of this section, and with any modifications attached, shall be retained at the construction site or at a local office in Wichita from the date of construction commencement through the date of final stabilization.

9. The director may notify the owner at any time that the SWP3 does not meet the requirements of the NPDES permit issued or any additional requirement imposed by or under this chapter. Such notification shall identify those provisions of the permit or chapter which are not being met by the SWP3, and identify which provisions of the SWP3 require modification in order to meet such requirements. Within thirty days of such notification

from the director, the owner shall make the required changes to the SWP3 and shall submit to the director a written certification from the owner that the requested changes have been made.

10. The owner shall amend the SWP3 whenever there is a change in design, construction, operation, or maintenance, which has a significant effect on the potential for the discharge of pollutants to the MS4 or to the waters of the United States, and which has not otherwise been addressed in the SWP3, or if the SWP3 proves to be ineffective in eliminating or significantly minimizing pollutants, or in otherwise achieving the general objective of controlling pollutants in stormwater discharges.

11. Qualified personnel (provided by the owner of the construction site) shall inspect disturbed areas that have not been finally stabilized, areas used for storage of materials that are exposed to precipitation, structural control measures, and locations where vehicles enter or exit the site, at least once every seven calendar days and within twenty-four hours of the end of the storm that is one-half inch or greater. Disturbed areas and areas used for storage of materials that are exposed to precipitation shall be inspected for evidence of, or the potential for, pollutants entering the drainage system. Erosion and sediment control measures identified in the SWP3 shall be observed to ensure that they are operating correctly. Where discharge locations or points are accessible, they shall be inspected to ascertain whether erosion control measures are effective in preventing significant impacts to receiving waters or the MS4. Locations where vehicles enter or exit the site shall be inspected for evidence of off-site sediment tracking.

12. Based on the results of the inspections required by subsection B.11 of this section, the pollution prevention measures identified in the SWP3 shall be revised as appropriate. Such modifications shall provide for timely implementation of any changes to the SWP3 within ten calendar days following the inspection.

13. A report summarizing the scope of any inspection required by subsection B.11 of this section, and the names(s) and qualifications of personnel making the inspection, the date(s) of the inspection, major observations relating to the implementation of the SWP3, and actions taken in accordance with subsection B.12 of this section above shall be made and refined on site or at a local office in Wichita as part of the SWP3. Such report shall identify any incidence of noncompliance. Where a report does not identify any incidence of noncompliance, the report shall contain a certification that the facility is in compliance with the SWP3, the facility's NPDES permit, and this chapter. The report shall be certified and signed by the person responsible for making it.

14. The owner shall retain copies of any SWP3 and all reports required by this chapter or by the NPDES permit for the site, and records of all data used to complete the NOI for a period of at least three years from the date that the site is finally stabilized.

15. Upon final stabilization of the construction site, the owner shall submit written certification to the director and OCI that the site has been finally stabilized. The city may withhold the final occupancy or use permit for any premises constructed on the site until such certification of final stabilization has been filed and the director has determined, following any appropriate inspection, that final stabilization has occurred and that any required permanent structural controls have been completed.

(Ord. No. 44-123 § 5)

Sec. 16.32.060. Stormwater discharges associated with industrial activity.

A. All operators of: (1) municipal landfills; (2) hazardous waste treatment, disposal, and recovery facilities; (3) industrial facilities that are

subject to Section 313 of Title III of the Superfund Amendments and Reauthorization Act of 1986 (SARA) 42, U.S.C. Section 11023; industrial facilities required to obtain NPDES stormwater discharge permits due to their Standard Industrial Classification or narrative description; and (4) industrial facilities that the director determines are contributing a substantial pollutant loading to the MS4, which are sources of stormwater discharges associated with industrial activity, shall comply with the following requirements:

1. Any owner who intends, after the effective date of this chapter,* to obtain coverage for a stormwater discharge associated with industrial activity under the Kansas General Permit for Stormwater Discharges Associated With Industrial Activity ("the industrial general permit") shall submit a signed copy of its notice of intent (NOI) to the director.

2. When required by their NPDES permit, all industries listed in this section shall prepare a stormwater pollution prevention plan (SWP3) and implement said plan in accordance with the requirements of their state or federal NPDES permit.

3. The SWP3, when required, shall be prepared and signed by a qualified individual and will comply with all state NPDES requirements. The signature of the preparer shall constitute his/her attestation that the SWP3 fully complies with the requirements of the NPDES permit.

4. The SWP3, when required, shall be updated and modified as appropriate and as required by the NPDES permit and this chapter.

5. A copy of any NOI that is required by subsection A.1 of this section shall be submitted to the city in conjunction with any application for a permit or any other city approval necessary to commence or continue operation of the industrial facility.

6. The Director may require any operator who is required by subsection A.2 of this section to prepare a SWP3, to submit the SWP3, and any modifications thereto, to the director for review.

7. Upon the director's review of the SWP3 and any site inspection that he/she may conduct, the director may upon reasonable notice to the owner deny approval necessary to commence or continue operation of the facility, on the grounds that the SWP3 does not comply with the requirements of the NPDES permit, or any additional requirement imposed by or under this chapter. Also, if at any time the director determines that the SWP3 is not being fully implemented, upon reasonable notice to the owner, he/she may deny approval of any application for a permit or other city approval necessary to commence or continue operation of the facility.

8. The SWP3, if required, with any modifications attached, shall be retained at the industrial facility from the date of commencement of operations until all stormwater discharges associated with industrial activity at the facility are eliminated and the required notice of termination (NOT) has been submitted.

9. The director may notify the owner at any time that the SWP3 does not meet the requirements of the NPDES permit, or any additional requirement imposed by or under this chapter. Such notification shall identify those provisions of the permit or chapter which are not being met by the SWP3, and identify which provisions require modification in order to meet such requirements. Upon thirty days of such notification from the director, the owner shall submit to the director a written certification that the requested changes have been made.

10. The owner shall amend the SWP3, if required, whenever there is a change in design, construction, operation, or maintenance, which has a significant effect on

*__Editor's note—__Ordinance 44-123, which enacted Chapter 16.32, is effective on January 1, 1999.

the potential for the discharge of pollutants to the MS4 or to the waters of the United States, or if the SWP3 proves to be ineffective in eliminating or significantly minimizing pollutants, or in otherwise achieving the general objective of controlling pollutants in stormwater discharges.

11. As may be required by the facilities NPDES permit, qualified personnel (provided by the owner) shall inspect equipment and areas of the facility specified in the SWP3 at appropriate intervals or as may be specified in their NPDES permit. A set of tracking or follow up procedures shall be used to ensure that appropriate actions are taken in response to the inspections. Records of inspection shall be maintained.

12. Industrial facilities will implement a sampling and testing program as required by their individual NPDES permits. The director may require written reports of any such monitoring and testing to be submitted to him/her.

13. The owner shall retain the SWP3 and all sampling and testing reports until at least one year after stormwater discharges associated with industrial activity at the facility are eliminated, or the operator is no longer operating the facility, and a notice of termination (NOT) has been submitted.

14. For discharges subject to the semi-annual or annual monitoring requirements of the industrial general permit, in addition to the records-retention requirements of the paragraph above, owners are required to retain for a six year period from the date of sample collection, records of all sampling and testing information collected. Owners must submit such monitoring results, and/or a summary thereof, to the director upon his/her request.

15. After the effective date of this chapter,* no stormwater discharge shall contain any hazardous metals in a concentration that would result in the violation of any Kansas Surface Water Quality Standard.

(Ord. No. 44-123 § 6)

Sec. 16.32.070. Ditches and ponds.

A. Duty to Maintain. The owner of any private drainage ditch or pond that empties into the city's MS4 or the waters of the United States has a duty to use BMP's on the ditches or pond to minimize the pollutant levels downstream. Such BMP's include, but are not limited to, removing excessive build-up of silt, repairing bank erosion, maintaining vegetative cover, the cleaning of inlet and outlet works, and the like.

B. Inspection and Notice by City. The city will periodically inspect these privately owned ditches and ponds. Should conditions be found that cause the pollution of downstream receiving waters, the director shall so notify the owners, and state what actions are expected by the owners to remedy the problem.

C. Failure to Repair. Should the owners fail to make the necessary repair within one hundred twenty days after notice, the city is authorized to do the repairs at the expense of the owner. Should the owner fail to reimburse the city for the cost of the repairs upon demand, the city may assess the cost thereof to the owner and initiate any collection proceedings authorized by law.

(Ord. No. 44-123 § 7)

Sec. 16.32.080. Compliance monitoring.

A. *Right of entry.* The Director, the Superintendant of OCI and the City Health Officer, or their authorized representatives, shall have the right to enter the premises of any person discharging storm water to the municipal separate storm sewer system (MS4) or to waters of the United States at any reasonable time to determine if the discharger is complying with all requirements of this chapter, and with any state or federal discharge permit, limitation, or requirement. Dischargers shall allow the inspectors ready access to all parts of the premises for the purposes of inspection, sampling, records examination and copying, and for the performance of any additional duties.

*__Editor's note—__Ordinance 44-123, which enacted Chapter 16.32, is effective on January 1, 1999.

B. *Records.* Subject to the requirements of subsection A, dischargers shall make available, upon request, any SWP3's, modifications thereto, self-inspection reports, monitoring records, compliance evaluations, notice of intent, and any other records, reports, and other documents related to compliance with this chapter and with any state or federal discharge permit.

C. *Sampling.* The Director shall have the right to set up on the discharger's property such devices that are necessary to conduct sampling of storm water discharges.
(Ord. No. 44-123 § 8; Ord. No. 48-904, § 2, 11-16-2010)

Sec. 16.32.090. Subdivision development.

A. The developer of any subdivision requiring a federal or state NPDES stormwater discharge permit will be responsible for obtaining the required permit and developing and implementing an overall SWP3 for the subdivision. Said SWP3 shall include BMP's to be used on individual lot building sites.

B. City contractors installing public streets; water, sanitary sewer, storm sewer lines; and/or sidewalks will be required to comply with the developers SWP3's and sign the appropriate contractor certification statement. For work in public right-of-way or easements requiring a federal or state NPDES stormwater discharge permit, the city shall be responsible for obtaining the required permit and preparing and implementing the required SWP3's.

C. Any utility company installing utilities within a new subdivision will also be required to comply with the developers SWP3's and sign the appropriate contractor certification statement. For work in public rights-of-way or easements requiring a federal or state NPDES stormwater discharge permit, the utility company shall be responsible for obtaining the required permit and preparing and implementing the required SWP3's.

D. The purchasers or individual lots within the subdivision for construction purposes shall comply with the developers SWP3 and shall sign a certification statement agreeing to do so.
(Ord. No. 44-123 § 9)

Sec. 16.32.091. Storm water quality management standards

A. *Applicability.*

1. Water quality treatment and downstream channel protection shall be required of owners of new developments and redevelopments that cause a land disturbance greater than or equal to one acre, including projects that cause a land disturbance less than one acre that are part of a larger common plan of development or sale.

2. The requirements of 16.32.091 shall not apply to:

   i. new developments or redevelopments that have a construction plan approved by January 1, 2011 and will have completed construction of all storm water management facilities within 90 days of January 1, 2011. This does not exempt such new developments from water quality management regulations that may be required in the future by EPA or KDHE; or,

   ii. redevelopment projects that consist solely of ordinary maintenance activities, remodeling of buildings on the existing foundation, resurfacing (milling and overlay) of existing paved areas, and exterior changes or improvements.

B. *Water quality treatment standard for new developments.* Storm water runoff from applicable new developments must be treated for water quality prior to discharge from the development site in accordance with the storm water treatment standards and criteria provided in the Storm Water Manual.

C. *Water quality treatment standard for redevelopments.* Owners of applicable redevelopments must adhere to one of the following requirements.

1. The total impervious cover of the property after redevelopment shall be reduced by at least 20% from the total impervious cover of the property prior to the proposed redevelopment.

2. Storm water runoff from at least 30% of the site's existing impervious cover and for 100% of any new land disturbance that will result from the proposed redevelopment shall be treated for water quality prior to discharge from the redevelopment site in accordance with the storm water treatment standards and criteria provided in the Storm Water Manual.

3. The owner shall provide storm water controls at an alternative location in the same watershed as the proposed redevelopment. The level of storm water control provided shall be equivalent to what would have been provided at the proposed redevelopment for either requirement 1 or 2 above, at a minimum.

4. In agreement and partnership with the City of Wichita, the owner shall provide engineering design and/or construction activities to address one or more known downstream water quality or channel erosion issues located within the same watershed as the proposed redevelopment, through stream restoration and/or other off-site remedies approved by the Director.

5. The owner shall pay a fee in-lieu-of water quality control and channel protection control, in an amount to be determined by the city in accordance with the in-lieu-of fee schedule as adopted by the City Council of the City of Wichita per the watershed plan which covers the redevelopment.

6. Any combination of (1) through (5) above may be acceptable to the City of Wichita or other solution(s) approved by the Director that meets the intent of this chapter.

D. *Downstream stabilization standard.* Downstream long-term channel protection shall be provided for applicable new developments and redevelopments prior to discharge from the new/redevelopment site in accordance with the downstream stabilization standards and criteria provided in the Storm Water Manual.
(Ord. No. 48-904 § 3, 11-16-2010)

Sec. 16.32.092. Storm water quantity management standards.

A. *Applicability.* Storm water runoff peak discharge analysis and control shall be required for new developments and redevelopments that will create or add one acre or greater of impervious cover, including projects that have less than one acre in impervious cover that are part of a larger common plan of development or sale that will result in one acre or greater of impervious cover.

B. *Water quantity management standard.* Storm water runoff peak discharge analysis and control shall be required for applicable new developments or redevelopments in accordance with the storm water quantity standards and criteria provided in the Storm Water Manual.
(Ord. No. 48-904 § 4, 11-16-2010)

Sec. 16.32.093. Other storm water management requirements.

A. *Applicability.* Section 16.32.093 is applicable to new developments and redevelopments that are required to comply with section 16.32.091 and/or section 16.32.092.

B. *Alternative standards for individual watersheds.* Alternative storm water management standards, either lesser or greater than those specified in this chapter, may be required by the Director in those areas or watersheds where water quality, flooding or erosion problems are known to exist, or in individual watersheds where a watershed plan or storm water master plan, approved by the City Council of the City of Wichita, specifies such alternative standards.

C. *Other requirements for storm water discharges.*

1. Storm water discharges shall be managed in consideration of the erosion control measures detailed in the Storm Water Manual.

2. Any discharge of storm water runoff to groundwater must meet all applicable local, State and Federal requirements, permits, plans and programs. The owner

is responsible for complying with all local State and Federal permits that are applicable to the site.

D. *Requirement to stabilize banks.* Banks of all streams, channels, ditches and other earthen storm water conveyances shall be left in a stabilized condition upon completion of the new development or redevelopment. No actively eroding, bare or unstable vertical banks shall remain after completion of construction.

E. *Requirement to use the storm water manual.* All storm water facilities and systems, including those designed and constructed for water quality treatment, downstream channel stabilization, and peak discharge control shall be designed, constructed and maintained in accordance with the criteria, standards, and specifications presented in this chapter and in the Storm Water Manual. The standards for water quality treatment, downstream channel stabilization and peak discharge analysis and control shall be achieved through the use of one or more storm water quality management facilities that are designed and constructed in accordance with the design criteria, guidance, and specifications provided in the Storm Water Manual. Methods, designs or technologies for storm water quality management facilities that are not provided in the Storm Water Manual may be submitted for approval by the city if it is proven that such methods, designs or technologies will meet or exceed the storm water treatment standards set forth in the Storm Water Manual and this ordinance. Proof of such methods, designs, or technologies must meet the minimum testing criteria set forth in the Storm Water Manual.

F. *Storm water facilities on public property.* Storm water management facilities shall not be installed within public rights-of-way or on public property unless a permit has been issued by the city engineer.
(Ord. No. 48-904 § 5, 11-16-2010)

Sec. 16.32.094. Waivers and exemptions from storm water management standards.

A. *Exemptions.* Owners of properties where the following activities are undertaken are exempt from the requirements of sections 16.32.091, 16.32.092, 16.32.093 and 16.32.094 of this chapter.

1. Minor land disturbing activities at individual locations, such as gardening, building or grounds maintenance and landscaping, provided that the activity does not result in equal to or greater than one (1) acre of land disturbance;
2. Individual utility service connections, unless such activity is carried-out in conjunction with the clearing, grading, excavating, transporting, or filling of a lot or lots for which a grading permit would otherwise be required by regulation;
3. Installation, maintenance or repair of individual septic tank lines or drainage fields, unless such activity is carried out in conjunction with the clearing, grading, excavating, transporting, or filling of a lot or lots for which a grading permit would otherwise be required by the regulation;
4. Installation of posts or poles;
5. Farming activities;
6. Unplanned emergency work and emergency repairs necessary to protect life or property.

B. *Waivers.* All or some of the storm water management standards required in section 16.32.091 and/or 16.32.092 of this chapter may be waived by the Director under the following circumstances.

1. *Existing downstream facilities.* A waiver may be provided for one or more storm water management standards if the waived standard(s) are met by discharging the storm water runoff to an existing storm water management facility, whether public or private, that is:
   a. Provided in accordance with an existing watershed plan that is approved by the city; and,
   b. Already in existence, or will be in existence at the time of construction of the new development or redevelopment; and,

c. Designed, constructed and maintained to provide a level of storm water control that is equal or greater than that which would be afforded by on-site storm water management facilities.

d. If a waiver is provided for this reason, the owner of the new development or redevelopment will be required to pay a fee in-lieu-of water quality control, downstream channel stabilization and peak discharge control, in an amount to be determined by the city in accordance with an adopted in-lieu-of fee schedule as adopted by the City Council of the City of Wichita per the watershed plan which covers the new development or redevelopment.

2. *Adverse impact.* A waiver may be provided if engineering studies determine that installing a storm water management facility in order to meet the storm water management standard being considered for waiver will cause adverse impact to water quality, or cause increased channel erosion, or downstream flooding.

3. *Technical criterion.* A waiver may be provided if the technical criterion required to waive the storm water management standard, as presented in the Storm Water Manual, is met. In any case, a waiver is subject to satisfaction of the following requirements, which shall be shown in drainage plans submitted for the new development or redevelopment:

a. The waiver applicant shall provide an engineering study, as defined in 16.32.094.C that proves the adequacy of downstream or shared off-site storm water management facilities to offer equivalent or greater protection than the standard(s) for which a waiver is requested; and,

b. The waiver applicant obtains any necessary CLOMR prior to construction, and a LOMR upon completion of construction; and,

c. The waiver applicant obtains all State and Federal permits that may be applicable to the site.

4. *Offsite BMP program participation.* A waiver of the requirements of section 16.32.091 will be provided for all areas of new development, redevelopment or existing developed property: a) that are registered as participating in the offsite BMP program to offset water quality impacts from the development or redevelopment; and b) for which offsite BMP program fees have been paid when due.

Owner(s) of new development, redevelopment or existing developed property that wish to register all, or portions, of their property for participation in the offsite BMP program shall indicate this intent in the drainage plan as indicated in the storm water manual. Approval of the plan by the director shall serve as the registration of the property, or portions thereof, in the offsite BMP program.

In the event that an owner chooses to terminate the registration for a property, or if BMP program fees for a registered property become more than six months delinquent, and are not paid by the owner within thirty days following notice by the city, the waiver provided by this subsection shall lapse, and the city may require the owner to construct and maintain the on-site BMPs that would have been required to comply with section 16.32.091 of this chapter had a waiver never been effective.

C. *Engineering study required.* In the event that a waiver from storm water management control requirements is requested, the adequacy of downstream or shared off-site storm water management facilities to control storm water runoff shall be determined, reviewed and approved by an engineering study that is performed in accordance with the calculation methods presented in the Storm Water Manual. The engineering studies shall be performed at the expense of the owner(s) of the proposed new development or

redevelopment, unless a study has already been or is being performed by the city as part of a watershed plan or other land use plan.
(Ord. No. 50-266 §§ 1, 2, 6-21-16)

Editor's note—Ord. No. 50-266 § 2, adopted June 21, 2016, repealed the former section 16.32.094, and enacted a new section as set out herein. The former section pertained to waivers and exemptions from storm water management standards for new developments and derived from Ord. 48-904 § 6, adopted Nov. 16, 2010.

Sec. 16.32.095. General requirements for storm water design plans.

A. *[Design information.]* Storm water design information shall be submitted as part of the preliminary plat, final plat and construction plans, in accordance with the site development process established by the city.

B. *[Building permit.]* A building permit shall not be issued for the land development activity until the required storm water design information and corresponding plans are approved by the city.

C. *[Submission.]* At a minimum, the storm water design information submitted at each stage of the city development process shall include the specific required elements that are listed and/or described in the Storm Water Manual, and shall be prepared in accordance with the policies, guidance and calculation methods (unless equivalent methods are pre-approved by the city) presented in the Storm Water Manual. Additional storm water design information may be required as necessary to allow an adequate review of the existing or proposed site conditions.

D. The submittal of storm water design information shall be subject to the requirements set forth in the minimum subdivision regulations, zoning ordinance, or other city regulations.

E. *[Supervision.]* Storm water design information shall be prepared under the supervision of and stamped by a professional engineer licensed to practice in the State of Kansas.

F. *[Viability.]* The portions of the new development or redevelopment on which storm water management facilities and systems are located shall be shown on the preliminary and final plats for all residential subdivisions and recorded with the plat as permanent reserves or easements consistent with the policies stated in the Storm Water Manual. Non-residential plats and/or subdivisions having a total area less than or equal to 15 acres shall be required to demonstrate the viability of proposed storm water management facilities and systems. In such cases, the Director is authorized to allow contingent dedications for storm water facilities providing that the owner/developer enters into an agreement with the City guaranteeing the construction of the said facilities in accordance with a schedule approved in the said agreement.

G. *Conformity to the approved plans.*

1. Grading designs shown on approved master grading plans and the design of storm water facilities and controls shown on approved design plans shall be adhered to during grading and construction activities. Under no circumstance is the owner or operator of land development activities allowed to deviate from the approved plans without prior approval of a plan amendment by the city.
2. Grading and storm water design plans shall be amended to meet all local ordinances and standards if the proposed site conditions change after plan approval is obtained, or if it is determined by the city during the course of grading or construction that the approved plan is inadequate.

H. *Duty to provide an operations and maintenance plan.*

1. An Operations and Maintenance Plan shall be included with the storm water design information submitted with the construction plan. The Operations and Maintenance Plan shall include the required operation and maintenance provisions for each storm water management facility and water quality volume reduction area that is serving, or will serve, the development or redevelopment. The Operations and Maintenance Plan shall include all of the required elements that are listed and/or described

in the Storm Water Manual, and shall be prepared in accordance with the policies and guidance provided in the Storm Water Manual.

2. The Operations and Maintenance Plan shall include an executed legal document entitled "Restrictive Covenants for Storm Water Facilities" (Covenants). The property owner shall record the Covenants with the deed for the property. The location of the storm water management facility(s) and water quality volume reduction areas, the recorded location of the Covenants document, and inspection and maintenance guidance outlining the property owner's responsibility shall be shown on a plat that is recorded for the property

I. *Duty to provide storm water construction information on as-built drawings.*

1. Prior to the release of the performance bond, complete As-Built Drawings shall be provided to the Director, and shall include sufficient design information to show that the storm water facilities will operate as designed under the approved drainage plan.

2. The As-Built Drawings shall include the required elements that are listed and/or described in the Storm Water Manual, and shall be prepared in accordance with the policies and guidance provided in the Storm Water Manual.

3. The As-Built Drawings shall be prepared and stamped by a professional engineer licensed to practice in the State of Kansas.

(Ord. No. 48-904 § 7, 11-16-2010)

Sec. 16.32.096. Maintenance and inspection of storm water drainage paths and controls.

A. *Duty to inspect and maintain storm water systems and controls.* Property owners shall at all times properly maintain and shall at intervals in accordance with the Operations and Maintenance Plan inspect all storm water facilities, systems, conveyances, pipes, channels, ditches, swales, inlets, catchbasins, water quality volume credit areas, and other facilities and systems of storm water treatment and control (and related appurtenances) so that they operate at their full function. Maintenance and inspection of privately-owned storm water management facilities, systems, conveyances, pipes, channels, ditches, swales, inlets, catchbasins, water quality volume credit areas, and other facilities and systems of storm water treatment and control (and related appurtenances) shall be performed at the expense of the owner(s) of such facilities.

B. *Duty to provide inspection reports.* After construction of each storm water management facility on the property is complete, property owners shall provide to the Director on a bi-annual basis a completed and signed copy of the inspection report for each storm water management facility that is included with the Operations and Maintenance Plan for the property. The inspection report is due every two years no later than the date (month and day) of approval of the as-built plan for the property.

C. *Duty to preserve approved grading designs.* Re-grading an individual lot or lots, or portions of a lot or lots, in a manner that is in not accordance the approved master grading plan, such that the direction(s) of storm water runoff is altered from the direction that would occur under the approved master grading plan, shall be considered a violation of this chapter.

D. *Duty to preserve existing drainage paths.* Blockage of a channel, ditch, stream or any other drainage path or storm water system appurtenance that is located in a storm water easement or drainage easement shall be considered a violation of this chapter.

E. *Pollutant removal for maintenance.* The removal of pollutants, sediment and/or other debris for the purpose of maintenance of storm water management facilities shall be performed in accordance with all city, State, and Federal laws.

F. *Inspection during grading or construction.*

1. During grading or construction, the property owner or his/her appointed

designee shall conduct site inspections in accordance with the requirements stated in the Kansas General Permit for Storm Water Discharges from Construction Sites. The property owner will also ensure construction conformance with the approved drainage and construction plans. More stringent inspection requirements may be imposed as necessary for purposes of water quality protection and public safety and to pursue total conformance of the site with the approved plans.

2. The following areas and items must be inspected throughout grading and construction to ensure that land disturbance activities do not cause adverse impacts to the performance of storm water management facilities and/or water quality volume reduction areas:

   i. all unstabilized areas that drain to a permanent storm water facility or water quality volume reduction area;

   ii. temporary and permanent storm water management facilities; and,

   iii. all erosion prevention and sediment control measures.

G. *Inspection after construction.* Once the site has been stabilized and construction has ceased, the property owner or his/her appointed designee shall conduct routine inspections for the storm water management facilities and water quality reduction areas, based on the guidance provided in the Operations and Maintenance Plan and the requirements of the "Restrictive Covenants for Storm Water Facilities" for the property, as set forth in section 16.32.095.H.2. of this ordinance.

H. *Inspection records.* Property owners shall make available upon request any self-inspection reports, monitoring/maintenance records, compliance evaluations, notices of intent, and any other records, reports, receipts, and other documents related to compliance with this chapter and with any related local, State or Federal permit.

I. *Right-of-entry.* The Director or his/her designee shall have the right to enter the premises of any person discharging storm water to the MS4 or to waters of the United States at any reasonable time to determine if the discharger is complying with all requirements of this chapter, and with any State or Federal discharge permit, limitation, or requirement. Dischargers shall allow the Director or his/her designee ready access to all parts of the premises for the purposes of inspection, sampling, records examination and copying, and for the performance of any additional duties. Failure of a property owner to allow entry onto a property for the purposes set forth in this section shall be cause for the issuance of a stop work order, withholding of a certificate of occupancy, and/or civil penalties and/or damage assessments in accordance with the enforcement provisions of this chapter.

J. *Inspection and notice by city.* The city may periodically inspect these privately owned storm water controls. If the facility is not operating as shown in the approved As-Built Drawing, or should conditions be found that cause or may cause the pollution of downstream receiving waters or the erosion of downstream channels or the flooding of adjacent or downstream properties, the Director may issue a notice of violation in accordance with the enforcement provisions stated in this chapter and shall notify the property owner(s) of the potential violation(s). The Director may order the property owner(s) to perform corrective actions as are necessary to facilitate the proper operation of these facilities for the purposes of flood prevention, downstream channel stabilization, water quality treatment and/or public safety, and/or to ensure compliance with jurisdictional regulatory conditions.

K. *Failure to perform corrective actions.* If property owner(s) fail to make the necessary corrective actions in the timeframe specified in the enforcement provisions of this chapter, the city is authorized to perform the corrective actions at the expense of the owner(s). If the owner(s) fail to reimburse the city for the corrective actions upon demand, the city may assess the cost of the corrective actions to the owner and initiate any collection proceedings authorized by law.

L. *Access to adjacent properties.* This ordinance does not authorize access by a property owner or site operator to private property adjacent to or

downstream of the owner's property. Arrangements concerning removal of sediment or pollutants on adjoining property must be settled by the owner or operator with the adjoining landowner. (Ord. No. 48-904 § 8, 11-16-2010)

Sec. 16.32.097. Special provisions for open channels.

A. No structure or land shall hereafter be developed, redeveloped, located, extended, converted, or structurally altered without full compliance with the terms of this section, the City of Wichita Floodplain Management Ordinance (Chapter 27.06) and other applicable local, state or federal regulations.

B. Requirements for vegetative buffer zones or maintenance access areas that have been established in approved and adopted watershed plans have priority over the provisions of this section.

C. Closure of open channels. Existing or proposed open channels may be enclosed if a maintenance plan approved by the City is provided; if the closed conduit conforms to the design criteria set in the Storm Water Manual.

D. Access easement required. All open channels must have a minimum twenty (20) foot wide maintenance access on each side of the stream as measured from the top-of-bank on each side of the stream, except as required by KSA 24-126 as amended, and KAR 5-45-12 as amended for "streams" defined in KAR 5-45-1 as amended. (Ord. No. 48-904 § 9, 11-16-2010)

Sec. 16.32.098. Provisions for the offsite BMP program.

Owner(s) of properties registered in the offsite BMP program are subject to the following requirements.

A. *Offsite BMP program fee established.* Subject to the provisions of this chapter, there is imposed on each and every property, or portion of property registered in the offsite BMP program, an offsite BMP program fee. The fee shall be assessed at a yearly rate of $19.00 per acre on the permitted area of the registered property. The fee shall remain in effect for the property as long as the property remains registered in the offsite BMP program.

B. *Fee collection.* The offsite BMP program fee shall be billed and collected concurrently with the sewer utility bill, as part of a consolidated statement for utility customers which shall be paid by a single payment. In the event that a partial payment is received, the payment shall be applied to the water and sewer portion of the account first, then to the drainage fee portion of the account and then to the offsite BMP program fee portion of the account. Unless otherwise provided for herein, all bills for the offsite BMP program fee shall become due and payable in accordance with sections of this code and with rules and regulations that pertain to the water and sewer utility that relates to the collection of utility charges. The offsite BMP program fees for any given property shall initially be the responsibility of the person who is paying for water and/or sewer service for the property (the "customer"). If the property is not using water and/or sewer services, then the offsite BMP program fees shall be the responsibility of the person in possession of the property, unless other arrangements are made. If no person is in possession of the property, then the offsite BMP program fees shall be the responsibility of the property owner. In all cases, the property owner shall be ultimately responsible for the offsite BMP program fees not paid by the customer or occupant.

C. *Penalties for late payment or non-payment.* Offsite BMP program fees shall be subject to a penalty for late payment which is the same as that imposed for late payment of water and sewer utility charges. In addition to any other remedies or penalties provided by this chapter or any other ordinance of the city, failure of any of the person(s) designated in subsection B above to pay such charges promptly

when due shall subject such person(s) to discontinuance of water services and the city manager of the city, or the city manager's designee, is empowered and directed to enforce this provision as to any and all delinquent users in accordance with provision set forth in chapter 17.12. Users shall be entitled to notice and shall have the right to a hearing in accordance with chapter 17.12 before such users' water service is discontinued for failure to pay drainage fees.

Offsite BMP program fees authorized to be charged in this chapter when delinquent may be certified by the clerk of the city to the county clerk of Sedgwick County to be placed on the tax roll for collection, subject to the same penalties and to be collected in like manner as other taxes, and such charges shall, thereafter, constitute a lien upon the real estate served by the stormwater utility and against which such charges were made, regardless of whether the offsite BMP program fees were incurred when a property owner was in possession of the property or a non-owner was in possession of the property. Further, in the event that BMP program fees remain unpaid for the period referenced in section 16.32.094(B)(4), the city may require the property owner to construct and maintain on-site BMPs as therein provided.
(Ord. No. 50-266 § 4, 6-21-16)

Sec. 16.32.100. Enforcement actions.

A. The discharge of, or potential discharge of, any pollutant to the MS4 or waters of the United States and/or the failure to comply with the provisions of this chapter and/or the failure to comply with and directive, citation, or order issued under this chapter; are violations of this chapter for which enforcement action may be taken.

B. Prior to taking any enforcement action as specified in this section, a violator will be issued a notice of violation except when, in the opinion of the Director, an owner or contractor has repeatedly ignored the requirements of this chapter and has not made any reasonable intent to comply with these provisions. When issued, the notice of violation will detail the nature of the violation, actions to be taken to remedy the violation, actions to be taken to clean-up any pollutants, and any specific time periods within which to accomplish said actions. Failure to successfully comply with the notice of violation may result in enforcement action.

C. The enforcement actions to be taken under this chapter, as provided in Section 16.32.110 are as follows:

1. *Criminal penalty.* Any person violating any provision of this chapter is guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not more than one thousand dollars. Each and every day during which any violation of any provision of this chapter is committed, continue, or permitted is a separate violation.

2. *Stop work order.* Notwithstanding other penalties provided by this chapter, whenever the Director or OCI, or their designees, finds that any owner or contractor on a construction site has violated, or continues to violate, any provision of this chapter or any order issued thereunder, the Director or OCI may after reasonable notice to the owner or contractor issue a stop work order to the owner and contractors by posting such order at the construction site. Said order shall also be distributed to all city departments and divisions whose decisions may affect any activity at the site. Unless express written exception is made, the stop work order shall prohibit any further construction activity at building permit, grading permit, site development plan approval, or any other approval necessary to commence or to continue construction or to assume occupancy at the site. Issuance of a stop work order shall not be a bar against, or a prerequisite for, taking any other action against the violator. Failure to comply with the requirements of any stop work order is a violation of this chapter.

3. *Administrative penalty process.*

a. When the Director finds that any person has violated or continues to violate the provisions set forth in this chapter, or the person's NPDES permit or any order issued thereunder, the Director may issue an order for compliance to the person. Such orders may contain any requirements as might be reasonably necessary and appropriate to address noncompliance including, but not limited to, the installation of best management practices, additional self-monitoring, and/or disconnection from the MS4.

b. The Director is empowered to enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with any person responsible for noncompliance. Such orders shall include specific action to be taken by the person to correct the noncompliance within a time period specified by the order.

c. Notwithstanding any other remedies or procedures available to the city, any person who is found to have violated any provision of this chapter, or any NPDES permit or any order issued under this chapter, may be assessed an administrative penalty as follows:

1. The minimum administrative penalty for any violation shall be no less than $500.00 per day the violation is maintained and not more than $2,500.00 per day for each day the violation is maintained;

2. Failure to obtain required NPDES permit: up to $2,500.00 per violation;

3. Failure to prepare stormwater pollution prevention plan: up to $2,500.00 per violation;

4. Failure to install best management practices: up to $2,500.00 per violation;

5. Failure to maintain best management practices: up to $2,500.00 per violation;

6. Failure to perform required sampling and testing or provide testing reports: up to $1,000.00 per violation.

7. Commencement of construction without an approved drainage plan: up to $2,500.00 per day of noncompliance;

8. Failure to comply with approved drainage plan: up to $2,500.00 per day of noncompliance;

9. Failure to maintain storm water management facilities: up to $2,500.00 per day of noncompliance.

d. Each day on which noncompliance shall occur or continue shall be deemed a separate and distinct violation.

e. Separate but multiple violations (except for violations under subsection C.3.d) by the same person(s) on one or more sites within any period of twelve consecutive months shall be cause to double the amount of penalty assessed under section C.3.c above for each violation after the first.

f. Upon assessment of any administrative penalty, the city will bill the violator for said charge and the Director shall have such collection remedies as are available at law.

(Ord. No. 44-123 § 10; Ord. No. 48-904 § 10, 11-16-2010)

Sec. 16.32.110. Applicability of enforcement actions.

A. Illegal dumping will be subject to criminal penalties process.

B. Illegal connections will be subject to either the criminal or administrative penalty processes.

C. Industrial violations will be subject to the administrative penalty process.

D. Individual building sites not requiring a federal or state NPDES permit will be subject to the criminal penalty and the stop work order processes; however, any owner or contractor of such site found with multiple violations of this chapter will also be subject to the administrative penalty process.

E. Individual building sites requiring a federal or state NPDES permit will be subject to the administrative penalty process.

F. Subdivision developers in subdivisions not requiring a federal or state NPDES permit will be subject to the criminal penalty and stop work order processes; however, any such developer found with multiple violations of this chapter will also be subject to the administrative penalty process.

G. Subdivision developers of subdivisions requiring a federal or state NPDES permit will be subject to the administrative penalty process.

H. City contractors and utility companies working on projects not requiring a federal or State NPDES permit will be subject to the criminal penalty process.

I. City contractors and utility companies working on projects requiring federal or state NPDES permit will be subject to the administrative penalty process.

J. Property owners, subdivision developers, commercial and industrial developers, and city contractors working on new developments and redevelopments requiring compliance with the City of Wichita storm water quality or quantity management standards will be subject to the criminal penalty, stop work order and administrative penalty processes.

K. Owners of storm water management facilities and systems that are required to be maintained in accordance with an approved Operations and Maintenance Plan will be subject to the criminal penalty and administrative penalty processes.

(Ord. No. 44-123 § 11; Ord. No. 48-904 § 11, 11-16-2010)

Sec. 16.32.120. Hearing and appeal.

A. Persons who desire to appeal an administrative requirement, violation or penalty invoked under this chapter may request a hearing and appeal as follows:

1. Any party affected by a penalty, order, directive or determination issued or made, pursuant to this chapter may, within fourteen days of the issuance of such penalty, order, directive, or determination request a hearing before the Director to show cause why such should be modified or made to not apply to such person. Such request shall be in writing and addressed to the Director of Public Works and Utilities at 455 North Main Street, Wichita, Kansas, 67202. The Director or his designee shall hold the requested hearing as soon as practical after receiving the request, at which time the person affected shall have an opportunity to be heard. At the conclusion of the hearing, the Director shall issue a written response to the person requesting the hearing affirming, modifying, or rescinding the penalty, order, directive, or determination issued or made.

2. Any party aggrieved by the decision of the Director may appeal such decision to the City Council within fourteen days of receipt of the decision by filing notice of appeal with the city clerk. Upon hearing, the City Council may affirm, modify, or reverse the decision of the Director.

(Ord. No. 44-123 § 12; Ord. No. 48-904 § 12, 11-16-2010)

Sec. 16.32.130. Enforcement personnel authorized.

A. The following personnel employed by the city shall have the power to issue notices of violations, criminal citations and implement other enforcement actions under this chapter:

1. All deputies under the supervision of the Superintendent of the Office of Central Inspections;
2. All authorized personnel under the supervision of the Director of Public Works and Utilities;
3. All authorized personnel under the supervision of the City Health Officer.

(Ord. No. 44-123 § 13; Ord. No. 48-904 § 13, 11-16-2010)

Sec. 16.32.140. Other legal actions.

Notwithstanding any other remedies or procedures available to the city, if any person discharges into the MS4 in a manner that is contrary to the provisions of this chapter, or any NPDES permit or order issued hereunder, the city attorney may commence an action for appropriate legal and equitable relief including damages and costs in the district court of Sedgwick County. The city attorney may seek a preliminary or permanent injunction or both which restrains or compels the activities on the part of the discharger.
(Ord. No. 44-123 § 14)

Sec. 16.32.150. Falsifying information.

Falsifying information is a separate offense and deemed a misdemeanor. Any person who knowingly makes false statements, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this chapter or any NPDES permit, or who falsifies, or tampers with any monitoring device or method required under this chapter shall, upon conviction, be punished by a fine of not more than one thousand dollars or by imprisonment for not more than six months, or by both.
(Ord. No. 44-123 § 15)

Sec. 16.32.160. Supplemental enforcement actions.

A. Performance Bonds. Where necessary for the reasonable implementation of this chapter, the director may, by written notice, order any owner of a source of stormwater discharge associated with construction or industrial activity effected by this chapter to file a satisfactory bond, payable to the city, in a sum not to exceed a value determined by the director to be necessary to achieve consistent compliance with this chapter. The city may deny approval of any building permit, grading permit, subdivision plat, site development plan, or any other city permit or approval necessary to commence or continue construction or industrial activity at the site, or to assume occupancy, until such a performance bond has been filed.

B. Liability Insurance. Where necessary for the reasonable implementation of this chapter, the director may, by written notice, order any owner of a source of stormwater discharge associated with construction or industrial activity effected by this chapter to submit proof that it has obtained liability insurance, or other financial assurance, in an amount not to exceed a value reasonably determined by the director, that is sufficient to remediate, restore, and abate any damage to the MS4, the waters of the United States, or any other aspect of the environment that is caused by the discharge.
(Ord. No. 44-123 § 16)

Sec. 16.32.170. Severability.

If any provision of this chapter is invalidated by any court of competent jurisdiction, the remaining provisions shall not be affected and shall remain in full force and effect.
(Ord. No. 44-123 § 17)

Title 17

WATER*

Ch. 17.08. Lawn Sprinkling Systems

Ch. 17.10. Plumbing

Ch. 17.12. Water Service

Ch. 17.13. Permanent Spray Irrigation and Outdoor Water Use Restrictions

Ch. 17.14. Water Supply Emergency

Ch. 17.16. Department of Water and Water Pollution Control

*__Cross reference—__As to appropriating water, see § 5.86.020. As to wasting water, § 5.86.020. As to water which constitutes nuisance, see § 7.40.010. As to water supply for trailer camps, see § 26.04.140. As to sewers and drains, see Title 16. As to discharge of sewage, industrial wastes or waste water into watercourses, see Chapter 16.20. As to plumbing see Title 21.

CHAPTER 17.08. LAWN SPRINKLING SYSTEMS

Sec. 17.08.010. Definitions.
Sec. 17.08.015. Liability, certificates, examinations, cancellations, licenses and permits.
Sec. 17.08.016. Reserved.
Sec. 17.08.017. Truth in advertising requirements.
Sec. 17.08.020. Reserved.
Sec. 17.08.030. Reserved.
Sec. 17.08.040. Location, maintenance and installation of lines and heads.
Sec. 17.08.050. Backflow prevention.
Sec. 17.08.055. Responsibilities of water account holder.
Sec. 17.08.060. Violation—Penalty.

Sec. 17.08.010. Definitions.

"Administrative authority" for the purpose of this chapter, means the administrative authority duly appointed to enforce this Code, shall be the Metropolitan Area Building and Construction Department, and for unsanitary conditions of any plumbing system or portion thereof, including back-siphonage and cross connection, shall also include the Director of Public Works & Utilities. The administrative authority shall make decisions as are necessary to administer and enforce the code. The administrative authority shall have the authority to refer to the board of appeals of plumbers and gas fitters any matter relating to the approval of plumbing material and methods as the same relates to this Code.

"Apprentice" means any person who installs, alters, repairs or replaces lawn sprinkler systems under the direct on-job-site supervision of either a journeyman or master lawn sprinkler installer. An apprentice may repair or replace sprinkler heads only downstream of the backflow device.

"Certified installer/tester" for the purpose of this chapter, means any individual who has been duly qualified by the Director of Public Works & Utilities to install, alter, repair, replace and test approved backflow prevention devices.

"Contractor" for the purpose of this chapter means any individual who has been duly qualified by the Metropolitan Area Building and Construction Department to engage in or work at the trade of installing lawn sprinkler systems. A master and/or journeyman plumber is deemed to be a certified lawn sprinkler installer by definition.

"Director of Public Works & Utilities" means the Director of Wichita Public Works & Utilities, or the director's authorized representative.

"Excavation" for the purpose of this chapter means any opening in the surface of a public property made in any manner whatsoever.

"Journeyman lawn sprinkler installer" means any individual or person who has been approved by the Metropolitan Area Building and Construction Department showing him or her to be qualified to install, alter, repair or replace any lawn sprinkler system for a qualified master lawn sprinkler installer. He or she shall have a current certificate showing him/her to be so qualified.

"Master lawn sprinkler installer" means a person who has been approved by the Metropolitan Area Building and Construction Department showing him/her to be qualified to engage in the business of installing, altering, servicing, repairing, winterizing or replacing lawn sprinkler systems. He or she shall have a current certificate showing him/her to be so qualified.

"Public property" for the purpose of this chapter means portion of street right-of-way which is not intended for use by the traveling public for the passage of vehicles; and in areas which have been platted, that area which is indicated to the public for public purposes.

"Testable backflow preventers" are approved, pressure vacuum breakers, spill - resistant vacuum breakers, double check valve assemblies and reduced pressure principle type assemblies.

This chapter shall apply to the installation of lawn sprinkler systems or devices which are installed in a permanent manner and connected to the public water supply.
(Ord. No. 43-167 § 1; Ord. No. 49-403, § 1, 12-11-12)

Sec. 17.08.015. Liability, certificates, examinations, cancellations, licenses and permits.

(a) It is unlawful for any person to engage in the business or work at the trade of installing lawn sprinkler systems in the city unless and until a contractor's license and/or certificate has been obtained therefore.

(b) Each individual shall make application to the Metropolitan Area Building and Construction Department and shall at such time and place as directed be subject to an examination as to his or her qualifications, and if satisfied as to the competency of the applicant shall thereupon direct that said certificate be issued to the applicant. Examinations may be made in whole or in part in writing, but sufficiently broad to test the qualifications of the applicant. In order to qualify to sit for the journeyman examination one shall have a minimum of two years documented practical experience of working at the trade of installing, altering, repairing or replacing lawn sprinkler systems for a qualified master lawn sprinkler installer. In order to qualify to sit for the masters examination one shall have a minimum of two years documented practical experience of working at the trade of installing, altering, repairing or replacing lawn sprinkler systems as a journeyman lawn sprinkler installer. The fee for each examination and original certificate of a lawn sprinkler installer shall be established by the Director of the Metropolitan Area Building and Construction Department to cover the administrative costs of issuing such certificates.

All certificates shall be renewed annually upon payment of a fee established by the Director of the Metropolitan Area Building and Construction Department to cover the administrative costs of issuing such certificates. All such certificates shall expire on the thirty-first day of December of each year, and no reduction shall be made for part of the year being elapsed. All holders of certificates not renewed by March 1st after their expiration shall be subject to reexamination and/or board appearance prior to re-issuance of a certificate.

(c) Any person engaging or desiring to engage in the business of installing lawn sprinkler systems, before obtaining any permit or transacting business, shall procure a license therefore from the Director of the Metropolitan Area Building and Construction Department and a backflow certification registration card from the Director of Public Works & Utilities, which license and registration card shall expire on the thirty-first day of December of the year in which it was so issued. Any such person holding a current master lawn sprinkler installer's certificate shall be entitled to only one lawn sprinkler license unless otherwise authorized by the board of appeals of plumbers and gas fitters, and each such business shall obtain a license. No license shall be transferred from one person to another. Permits shall be obtained for such work as required in this Code and Article 3 of the Sedgwick County Code, and the same shall be issued to the person who possesses the lawn sprinkler license.

1. A lawn sprinkler license may be issued to any firm, association, limited liability company, partnership or corporation of which at least one active member or officer who devotes fulltime to that firm, association, limited liability company, copartnership or corporation has a master lawn sprinkler installer's certificate. The fee for such license shall be $100.00. Each license shall be renewed annually by December 31st.

(d) The board of appeals of plumbers and gas fitters is authorized to cancel and recall the certificate of any lawn sprinkler installer, and the license of any sprinkler contractor for any of the following reasons:

1. Abandonment of any contract without legal cause;

2. Division of funds or property received for performance or completion of a specific contract, or for a specified purpose in performance or completion of any other contract, obligation or purpose, or the failure, neglect or refusal to use such funds or property for the performance or completion of such contract;

3. The committing of any act in violation of any provisions of this Code or Article 3 of the Sedgwick County Code or the failure or refusal to comply with any lawful order of the administrative authority;
4. Misrepresentation of a material fact by the applicant in obtaining a license;
5. The failure of any such lawn sprinkler installer or lawn sprinkler contractor to fully satisfy all claims for labor and materials used in the performance of any work for which he has been engaged and for which he has been paid;
6. Use of license to obtain permits for another;
7. Carelessness or negligence in providing reasonable safety measures for the protection of workmen and the public;
8. Failure to obtain permits;
9. Unreasonable delay in the performance and carrying out of any contract.

(e) It is unlawful for any person to install or cause to be installed any connection to the public water supply and/or any testable backflow prevention device in a building or premises without first obtaining a permit from the administrative authority to do such work. Licensed lawn sprinkler contractors are the only persons to obtain such permits; provided, that the owner- occupant of a single-family dwelling may obtain such permits to install, replace, repair or maintain the existing lawn sprinkler system in such single-family dwelling occupied by him, so long as such owner-occupant performs all such work and that the work so performed is in accordance with this Code or Article 3 of the Sedgwick County Code as verified by an inspection request by such owner-occupant and performed by the administrative authority. Testing of backflow devices installed and registration of same shall be the responsibility of the owner of the device installed in accordance with this Code.

Owner-occupants applying for permits for installation as outlined above shall first qualify themselves by successfully passing a simplified open book examination dealing with relevant provisions of this title. The fee for said examination shall be established by the Director of the Metropolitan Area Building and Construction Department to cover the administrative costs for administering such examination. Such owner-occupants shall be required to have necessary testable backflow prevention device(s) installed by a duly certified installer/tester as required by the current codes of the city.

Prior to permit approval, the owner-occupant shall also submit a plan of the installation drawn in a format acceptable to and drawn in sufficient detail as to satisfy the Director of the Metropolitan Area Building and Construction Department of the overall code compliance of the anticipated installation. The fee for such plan review shall be established by the Director of the Metropolitan Area Building and Construction Department to cover the administrative costs of said plan review.

Plans submissions requiring extensive revision and/or modification shall be billed at the rate established by the Director of the Metropolitan Area Building and Construction Department for each additional half-hour or portion thereof beyond the original half-hour upon notification of the owner-occupant of such additional charges.

Permits for owner-occupant installations shall be limited to one in three years to each owner-occupant unless a waiver is obtained, upon written application, from the Metropolitan Area Building and Construction Department.

Minor street privilege permits shall be obtained from the Director of Public Works & Utilities-Engineering prior to performing any excavation and installation work on public property, said permit to be obtained in accordance with the terms of Chapters 10.20 and 10.08 of the Code of the City of Wichita, Kansas.

1. A separate permit shall be obtained for each connection to public water supply or for any additional work other than authorized in the permit.
2. No licensed contractor shall allow any person to do or cause to be done any work under a permit secured by the permittee except persons in his/her employ.

(Ord. No. 44-797 § 1; Ord. No. 49-403, § 2, 12-11-12)

Sec. 17.08.016. Reserved.

Editor's note—Ord. No. 49-403, § 41, adopted December 11, 2012, repealed § 17.08.016, which pertained to insurance required and derived from Ord. No. 42-120, § 1.

Sec. 17.08.017. Truth in advertising requirements.

Any person, firm, association, limited liability company or corporation required by this title to obtain a lawn sprinkler system contractor's license shall be subject to the following:

(a) It is unlawful for any such person, firm, association, limited liability company or corporation to advertise as a lawn sprinkler system contractor unless, at the time such advertisement occurs, such person, firm or corporation has a then valid lawn sprinkler system contractor's license issued under the provisions of this chapter;

(b) Any advertisement by such person, firm, association, limited liability company or corporation as a lawn sprinkler system contractor which is placed or published in any publication or other print medium circulated, displayed or distributed within the city limits or which is broadcast by radio or television or any other means to persons within the city limits shall include the full name of the licensed person, firm, association, limited liability company or corporation and the license number assigned by the Metropolitan Area Building and Construction Department to such person, firm, association, limited liability company or corporation.

(c) As used in this section, the words "advertised" or "advertisement" shall include, but not be limited to, a business card, contract bid proposal form, printed letterhead, any other printed or written material designed to inform persons of the services offered by the advertising person, firm or corporation and to solicit business from such persons, or any broadcast statement designed to inform persons of the services offered by the advertising person, firm, association, limited liability company or corporation and to solicit business from such persons. Such words are intended to include telephone directory display ads but not basic white and yellow page listings.

(Ord. No. 42-120 § 2; 49-403, § 3, 12-11-12)

Sec. 17.08.020. Reserved.

Editor's note—Ord. No. 49-403, § 41, adopted December 11, 2012, repealed § 17.08.020, which pertained to permits and derived from Ord. No. 43-343, § 2.

Sec. 17.08.030. Reserved.

Editor's note—Ord. No. 49-403, § 41, adopted December 11, 2012, repealed § 17.08.030, which pertained to inspections and derived from Ord. No. 43-167, § 4.

Sec. 17.08.040. Location, maintenance and installation of lines and heads.

(a) Sprinkler heads shall be located and maintained in the manner provided for in Section 17.10 of the code of the city of Wichita and Article 3 of the Sedgwick County Code so as not to spray over any public sidewalk or street pavement, and further, so not in any manner to constitute a nuisance or hazard to the public. Any sprinkler system or any part thereof, located in or on a public right-of-way, shall be removed therefrom at the owner's expense, upon notice from the city.

(b) Installation. All water piping shall be adequately supported to the satisfaction of the administrative authority. Burred ends shall be reamed to the full bore of the pipe. Changes in direction shall be made by the appropriate use of fittings, except that changes in direction in copper, PE (3406) and polybutylene tubing may be made with bends having a radius of not less than six diameters of the tubing, providing that such bends are made by the use of forming equipment which does not deform or create a loss in cross-sectional area of the tubing. The depth of the water service line shall be at least 36 inches below finished grade, and shall be inspected before being covered. Such service shall not be less than five feet from any tree on public property. The water service pipe shall be laid in a ditch separate from other underground pipes

or conduits. There shall be not less than 18 inches of solid undisturbed earth between water service pipes and other underground pipes and conduits. All piping, equipment appurtenances, and devices shall be installed in a workmanlike manner in conformity with the provisions and intent of the code.

Water pipe and fittings shall be of brass, copper, cast iron, galvanized steel, asbestos-cement, PE(3406), PVC (sch. 40), or polybutylene manufactured to recognized standards for use outside a building. All materials used in the water supply system, except valves and similar devices, shall be of a like material except where otherwise approved by the administrative authority. The connection of galvanized steel piping to a copper water meter setter is prohibited.

(c) Backflow prevention devices, control valves, and other appurtenances and their enclosures, with the exception of points of connection to domestic water supply lines and the manual shutoff valve, shall not be installed in the public right-of-way without prior approval of the Director of Public Works & Utilities or his/her designee. (Ord. No. 43-167 § 5; Ord. No. 49-403, § 4, 12-11-12)

Sec. 17.08.050. Backflow prevention.

No person shall install any water-operated equipment or mechanism, or use any water treating chemical or substance if it is found that such equipment, mechanism or substance may cause pollution of the domestic water supply. Such equipment or mechanism may be permitted only when equipped with an approved backflow prevention device. Said backflow prevention device shall be installed by a certified installer/tester. All backflow and/or cross-connections shall be eliminated and/or protected by means of an airgap or backflow preventer as determined and required by the Director of Public Works & Utilities. Such airgaps or backflow preventers shall be of such arrangement, location and design as determined by and subject to approval of the Director of Public Works & Utilities and Table 4 in Chapter 17.10 of the code of the City of Wichita. If any backflow and/or cross-connection is not adequately protected, the Director of Public Works & Utilities shall discontinue such water service. Water service may be reinstated upon determination that the hazard has been eliminated or adequately protected. The Director of Public Works & Utilities may supplement this Code with guidelines to provide information for typical backflow prevention and/or cross-connection control and acceptable methods of eliminating and/or protecting such connections which are in accordance with the intent and requirements of Section 17.10 and Article 3 of the Sedgwick County Code. Lawn sprinkler systems shall be equipped with an approved backflow prevention device. Pressure type vacuum breakers shall be installed at least 12 inches above the highest sprinkler head and all downstream piping.
(Ord. No. 43-167 § 6; Ord. No. 49-403, § 5, 12-11-12)

Sec. 17.08.055. Responsibilities of water account holder.

(a) 1. Every water account holder shall be responsible to maintain in good working condition backflow devices as required by this Chapter and Chapter 17.10.

2. Every water account holder shall be responsible for the inspections of such backflow devices as required by Section 17.10.120. Any backflow preventer which has failed to be tested, or which testing has exceeded the 1-year testing interval or required test date by more than 60 days shall be considered to be in violation of this section.

3. The Administrative Authority shall have the right to inspect such devices and if found defective or inoperative shall require the repair or replacement of the same by the water account holder.

4. Any water account holder, who, after proper notice, neglects to service and/or repair a backflow device whether such condition was caused by a former owner or occupant, shall be responsible for violation of this Section.

(b) Notice To Account Holder. Upon determination by the Administrative Authority that there has been a violation of any provision of this Chapter or Chapter 17.10, the Administrative Authority shall give notice to the water account holder of the backflow prevention device violation.

Such notices shall:

(1) Be in writing;

(2) Describe the violations alleged to exist or have been committed;

(3) Provide a reasonable time, not exceeding 10 days from the date of the notice, for correction of the violation;

(4) Be addressed to and served upon the water account holder.

Such notice shall be deemed properly served upon such account holder, if a copy is served upon him or her personally or if a copy thereof is sent by certified mail to his or her last known address.

The Administrative Authority may grant a one 10-day extension if the water account holder demonstrates that due diligence is being exercised in servicing, testing or repairing the backflow prevention device.

(c) Backflow prevention device notice of violation; assessment and collection.

(1) If the recipient of the notice of violation fails to comply with the notice within the period designated in the notice, or fails to remedy the violation, the City may assess an administrative penalty according to Table 1 below. Such penalty may be assessed for each billing cycle until the backflow prevention device is serviced or the connection to the City water system is terminated by complete removal of the backflow prevention device. All penalties shall be the responsibility of the water account holder.

(2) An administrative penalty may be assessed to irrigation, mechanical, containment, and fire backflow preventers per device to the water account holder for each billing cycle until the backflow prevention devices are found to be in compliance with the requirements of this Chapter and Chapter 17.10. Such administrative penalties shall be the responsibilities of the water account holder.

Table 1
Administrative Penalties According to Backflow Preventer Device Size

½" to 1 ½"	One Hundred dollars ($100)
2" to 2 ½"	Two Hundred Dollars ($200)
3"	Three Hundred Dollars ($300)
4"	Four Hundred Dollars ($400)
6"	Six Hundred Dollars ($600)
8"	Eight Hundred Dollars ($800)
10" and larger	One Thousand Dollars ($1000)

(c) Request for hearing and appeal.

(1) Hearing. Any person affected by a penalty, order or directive issued pursuant to this chapter may, may within ten days of the issuance of such penalty, order, or directive, request a hearing before the Administrative Authority to show cause why such should be modified or made to not apply to such person. Such request shall be in writing and addressed to the Director of Public Works at 455 N. Main Street, Wichita, Kansas. The director, or the director's designee, shall hold the requested hearing as soon as practical after receiving the request, at which time such person shall have the opportunity to be heard. At the conclusion of such

hearing, the director, or the director's designee, shall issue a written response to such person's request either affirming, modifying, or rescinding the penalty, order, or directive at issue.

(2) Appeal. Any person aggrieved by the decision of the director, or the director's designee, after the hearing provided for above, may appeal such decision to the city council within ten days of the receipt of such decision by filing a written notice of appeal with the city clerk. The city council shall hear such appeal on the record and may affirm, modify, or reverse the decision of the director, or the director's designee.

(Ord. No. 52-586, § 1, 12-17-24)

Sec. 17.08.060. Violation—Penalty.

Any person, firm, association, limited liability company, partnership, or corporation violating any provision of this chapter or any part thereof, shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not to exceed $500, or by imprisonment not to exceed 30 days, or by both such fine and imprisonment.

Notwithstanding the remedies set forth above, any user of the city's water distribution system found to have violated any provision of this chapter may be assessed an administrative penalty not to exceed those set forth in Table 1. Each billing cycle during which a violation exists shall be deemed a separate and distinct violation. Such penalty may be added to each subsequent billing cycle of the account holder. The Director of Public Works and Utilities shall have such other collection remedies as are available at law.

(Ord. 38-631 § 7; Ord. No. 49-403, § 6, 12-11-12; Ord. No. 52-586, § 2, 12-17-24)

CHAPTER 17.10. WICHITA/SEDGWICK UNIFIED BUILDING AND TRADE CODE

Sec. 17.10.010. Definitions.
Sec. 17.10.020. General requirements.
Sec. 17.10.030. Prohibited connections of fixtures and equipment.
Sec. 17.10.040. Refrigerating unit condensers and cooling jackets.
Sec. 17.10.050. Approval of devices.
Sec. 17.10.060. Installation of devices.
Sec. 17.10.070. Protective devices required.
Sec. 17.10.080. Barometric loop.
Sec. 17.10.090. Double check valves.
Sec. 17.10.100. Other devices.
Sec. 17.10.110. Maintenance requirements, general.
Sec. 17.10.120. Testing of backflow devices.
Sec. 17.10.130. Testing devices, approval.
Sec. 17.10.140. Cessation of water delivery to avoid contamination.
Sec. 17.10.150. Hazard to potable water supply.
Sec. 17.10.160. Automatic fire suppression systems.
Sec. 17.10.170. Existing fire suppression systems.
Sec. 17.10.180. Construction water services.
Sec. 17.10.190. Penalty.

Sec. 17.10.010. Definitions.

In addition to those terms defined in the Chapter 17.08 of the code of the City of Wichita as adopted in this Code, for the purpose of this chapter, the following terms shall be defined to mean:

"Air gap" means a physical separation between a supply and the flood level rim of the receptor, of at least twice the supply outlet diameter, but never less than one inch.

"Backflow" means the unwanted reverse flow of water, other liquids, gases, mixtures or other substances into the distributing pipes of a potable water supply from any source or sources. For specific conditions of backflow, see "back-siphonage" and "back-pressure."

"Backflow preventer, reduced pressure principle type" means an assembly of two internally loaded, specially designed, and independently operated check valves including an intermediate relief valve specially designed to maintain a zone of reduced pressure between these check valves, with an automatically open spillage port to the atmosphere. This assembly is also incomplete without tightly closing, resilient seating shutoff valves immediately upstream and downstream of the device (i.e.; ball valve shutoffs, resilient wedge gate or butterfly valves).

"Back-pressure" means pressure in a plumbing system higher than the supply pressure which causes a reversal of flow. (Example- pumps, thermal expansion from boilers.)

"Back-siphonage" means a backflow resulting from negative or sub-atmospheric pressures in the distributing pipes of a potable water supply.

"Barometric loop" means a loop of pipe rising at least 34 feet, at its topmost point, above the highest fixture it supplies.

"Board" means the board of appeals of plumbers and gas fitters of the City of Wichita & Sedgwick County.

"Certified installer/tester," for the purpose of this chapter, means any individual who has been duly certified by the Director of Public Works & Utilities to install, alter, repair, replace and test approved testable backflow prevention devices.

"Contaminant" means any substance that, upon entering a potable water supply, would render it a danger to life and health, as determined by the Director of Public Works & Utilities.

"Cross-connection" means any physical connection or arrangement between two otherwise separate piping systems, one of which contains potable water, and the other, water of unknown or questionable safety, or steam, gases or chemicals, whereby there may be a flow from one system to the other. (Note: No physical cross-connection shall be permitted between public and private water distribution systems without prior approval of the board, approval of the director of water utilities and protection by an approved backflow prevention device.)

"Director of Public Works & Utilities" means the Director of Public Works & Utilities department or the director's authorized representative.

"Double check valve assembly" means a device consisting of two independently acting, internally loaded soft seated check valves with resilient seated, positive shutoff valves (ball valve, resil-

ient wedge gate or butterfly valves) on both upstream and downstream ends, and properly located test ports.

"Free water surface" means a water surface that is at atmospheric pressure.

"Plumbing" means the practice, materials and fixtures used in the installation, maintenance, extension and alteration of all piping fixtures, appliances and appurtenances in connection with any of the following: sanitary drainage, venting system, storm drainage facilities, and the on-site water supply systems, within or beyond the supply point to any building, structure or conveyance; also, the practice and materials used in the installation, maintenance, extension, or alteration of storm water, liquid waste or sewage, and water supply systems of any premises to their connection with any point of public disposal or other acceptable terminal.

"Pollutant" means any foreign substance (organic, inorganic, radiological or biological) in water that tends to degrade its quality, but does not constitute a health hazard, as determined by the Director of Public Works & Utilities.

"Pressure vacuum breaker" means a device consisting of both upstream and downstream resilient seated shutoff valves, and at least one tight-seating check valve with an air inlet to atmosphere. The valve member opening to atmosphere shall be gravity or spring loaded to open under backsiphonage conditions.

"Spill-resistant vacuum breaker" means a device consisting of both upstream and downstream resilient seated shutoff valves, and at least one tight-seating check valve with an air inlet atmosphere. The valve member opening to atmosphere shall be gravity or spring loaded to open under backsiphonage conditions.

"Testable backflow preventers" are approved, pressure vacuum breakers, spill resistant vacuum breakers, double check valve assemblies, and reduced pressure principle type assemblies.

"Vacuum" means any absolute pressure less than that exerted by the atmosphere.

"Vacuum breaker" means a device that permits air into a water supply distribution line to prevent back-siphonage.
(Ord. No. 49-403, § 7, 12-11-2012)

Sec. 17.10.020. General requirements.

The potable water supply system of the City of Wichita and the potable water system of private users shall be designed, installed and maintained to best prevent contamination or pollution by non-potable liquids, solids or gases from being introduced into the potable water supply through cross-connections or any other piping connections to the system. Any water being directly provided by Wichita water utilities will fall under the rules and regulations of the cross-connection program. All public or private users being supplied city water directly shall conform to standards set by the City of Wichita.
(Ord. No. 49-403, § 8, 12-11-2012)

Sec. 17.10.030. Prohibited connections of fixtures and equipment.

Connection to the potable water supply system for the following is prohibited unless protected against backflow:

(1) Bidets;

(2) Operating, dissection, embalming and mortuary tables or similar equipment. In such installation the hose connected to the public water supply shall terminate at least 12 inches away from every point of the table or attachments;

(3) Pumps for non-potable water, chemicals or other substances. Priming connections shall be made through an air gap or an approved reduced pressure principle assembly;

(4) Building drainage, sewer or vent systems;

(5) Commercial buildings or industrial plants using a contaminating or polluting s substance;

(6) Any other fixture of similar hazard.
(Ord. No. 49-403, § 9, 12-11-2012)

Sec. 17.10.040. Refrigerating unit condensers and cooling jackets.

(1) That except when potable water provided for a refrigerator condenser or cooling jacket is entirely outside the piping or tank containing a toxic refrigerant, the inlet connection shall be provided with an approved high hazard backflow preventer. Heat exchangers used to heat water for potable purposes shall be of the double wall type.

(2) Where a commercial ice machine, which has a refrigerant volume not to exceed two pounds and is water-cooled, a dual check valve with intermediate atmospheric vent may be used as isolation protection of the potable water line. Devices, in excess of the two-pound limit, shall require a reduced pressure principal assembly (RP) backflow prevention device or air gap to protect the potable water.
(Ord. No. 49-403, § 10, 12-11-2012)

Sec. 17.10.050. Approval of devices.

Before any device for the prevention of backflow or back-siphonage is installed, it shall have first been certified by a recognized testing laboratory acceptable to the board. Devices installed in a building potable water supply distribution system for protection against backflow shall be maintained in good working condition by the person responsible for the maintenance of the system. The Director of Public Works & Utilities or his designated representative shall inspect such devices and if found defective or inoperative shall require the repair or replacement thereof. Upon installation of a reduced pressure principle assembly, double check valve assembly or pressure vacuum breaker, the installer shall inform the Director of Public Works & Utilities department. The Director of Public Works & Utilities or his/her designated representative will then register the device for scheduled testing.
(Ord. No. 49-403, § 11, 12-11-2012)

Sec. 17.10.060. Installation of devices.

Devices for the prevention of backflow shall be installed as follows:

(1) Vacuum Breakers. Atmospheric vacuum breakers (AVB) shall be installed with the critical level at least six inches above all downstream piping and the flood level rim of the fixture they serve and on the discharge side of the last control valve to the fixture. No shutoff valve or automatic control valves shall be installed in downstream piping after an atmospheric vacuum breaker.

Pressure vacuum breakers and spill-resistant vacuum breakers shall be installed with the critical level at least 12 inches above all downstream piping and the flood level rim but may have control valves downstream of the vacuum breaker. Pressure vacuum breakers should only be installed in locations where adequate drainage is provided and property damage as a result of spillage can be avoided. Spill-resistant vacuum breakers shall be installed with the critical level at least 12 inches above all downstream piping and the flood level rim, but may have control valves downstream of the vacuum breaker. Spill-resistant vacuum breakers should be installed in locations where adequate drainage is provided and property damage as a result of spillage can be minimized.

(2) Reduced Pressure Principle Backflow Preventer. A reduced pressure principle type backflow preventer may be installed subject to full static pressure at least 12 inches above grade and no more than 60 inches above grade unless an approved permanent platform or dedicated access device is provided as approved by the Director of Public Works & Utilities.

(3) Devices for Domestic Service. Backflow and back-siphonage preventing devices shall be accessibly located preferably in the same room with the fixture they serve. Installation in the utility or service spaces, provided they are readily accessible, is also permitted. No installation shall be made in pits or any other location not properly drained, unless approved by the Director of Public Works & Utilities.
(Ord. No. 49-403, § 12, 12-11-2012)

Sec. 17.10.070. Protective devices required.

(1) Installation. Approved devices to protect against backflow back-siphonage shall be installed at all fixtures and equipment where

backflow or back-siphonage may occur and where a minimum air gap cannot be provided between the water outlet to the fixture or equipment and its flood-level rim.

(2) Connections not Subject to Backpressure. Where a water connection is not subject to backpressure, an atmospheric vacuum breaker shall be installed on the discharge side of the last valve on the line serving the fixture or equipment. A list of some conditions requiring protective devices of this kind is given in Table 1, Cross-Connections Where Protective Devices Are Required and Critical Level (C-L) Settings for Atmospheric Vacuum Breakers.

Table 1

CROSS-CONNECTIONS WHERE PROTECTIVE DEVICES ARE REQUIRED AND CRITICAL LEVEL (C-L) SETTINGS FOR ATMOSPHERIC VACUUM BREAKERS:

Fixture or Equipment	*Method of Installation*
Aspirators and ejectors	C-L at least 6 inches above flood level of receptacle served.
Dental units	On models without built-in vacuum breakers—C-L at least 6 inches above flood level rim of bowl.
Dishwashing machines	C-L at least 6 inches above flood level of machines. Install on both hot and cold water supply line.
Garbage can cleaning machines	C-L at least 6 inches above flood level of machine. Install on both hot and cold water supply lines.
Fixture or Equipment (cont'd)	Method of Installation (Cont'd)
Hose outlets	C-L at least 6 inches above highest point on hose line.
Laundry machines	C-L at least 6 inches above flood level of machine. Install on both hot and cold water supply lines.
Steam tables	C-L at least 6 inches above flood level.
Tanks and vats	C-L at least 6 inches above flood level rim or line.
Trough urinals	C-L at least 30 inches above perforated flush pipe.
Fixture urinals	C-L at least 6 inches above top of urinal fixture.
Flush tanks	Equip with Approved Anti - Siphon Ball Cock, installed according to manufacturer's instructions.
Hose bibs	C-L at least 6 inches above flood level of receptacle served.
Critical level (C-L) is defined as the level to which the vacuum breaker may be submerged before backflow will occur. Where C-L is not shown on the preventer, the bottom of the device shall be taken as the C-L.	

(3) Connections Subject to Backflow. Where a potable water connection is made to a line, fixture, tank, vat, pump or other equipment with a hazard of backpressure or backsiphonage, and an air gap cannot be installed, the Director of Public Works & Utilities may require the use of an approved reduced pressure principle backflow preventer assembly or double check valve assembly. A partial list of such connections is shown in Table 2.

Table 2

PARTIAL LIST OF CROSS-CONNECTIONS WHICH MAY BE SUBJECT TO BACKFLOW TABLE INSET:

Chemical lines	Pumps
Dock water outlets	Steam lines
Individual water supplies	Swimming pools
Industrial process water lines	Tanks and vats—Bottom inlets
Pressure tanks	Hose bibbs

The following is a partial list but not limited to those facilities where backflow protection will be required at the service connection as well as within the building, due to extreme hazard, to both the public and private piping system:

1. Hospitals—RP
2. Funeral homes, morgues and mortuaries—RP
3. Medical and dental clinics*—RP
4. Industrial, medical and institutional laboratories—RP

5. Plating and chemical plants—RP
6. Metal manufacturing, cleaning and fabricating—RP
7. Oil and gas production, storage and transmission facilities—RP
8. Breweries and beverage bottling plants—RP
9. Radioactive materials plants—Air Gap
10. Aircraft plants—RP
11. Plastic injection and molding plants—RP
12. Multi-storied buildings with booster pump—DC
13. Fire Systems:
    Contamination hazard—RP
    Pollution hazard—DC
14. Car wash facilities—RP
15. Restricted, classified or other closed facilities—RP
16. Facilities in which the piping system cannot be traced—RP

    * Dental Clinics may submit to professional review approved by the Director of Public Works & Utilities for exception to this requirement if facilities convert to modern dry connections for x-ray, suction, and dental chair applications provided that a professional compliance review shall be completed annually at standard inspection rates.

    Note:

    RP = Reduced pressure backflow assembly

    DC = Double check valve assembly

(4) Air gap requirements are contained in Table 3.

Table 3
AIR GAP REQUIREMENTS:

Fixture	*When not Affected by Near Wall (a), (inches)*	*When Affected by Near Wall (b), (inches)*
Lavatories and other fixtures with effective opening not greater than ½ inch diameter.	1	1½
Sink, laundry trays, gooseneck back, faucets and other fixtures with effective openings not greater than ¾ inch diameter.	1 ½	2½
Over rim bath fillers and other fixtures with effective openings not greater than 1 inch.	2	3
Drinking water fountains, single orifice not greater than 7/16 inch diameter or multiple orifices having total area of 0.150 square inches (area of circle 7/16 inch diameter).	1	1 ½
Effective openings greater than one inch.	2 × diameter of effective opening	3 × diameter of effective opening

a. Side walls, ribs or similar obstructions do not affect air gaps when spaced from inside edge of spout opening a distance greater than three times the diameter of the effective opening for a single wall, or a distance greater than four times the diameter of the effective opening for two intersection walls.

b. Vertical walls, ribs or similar obstructions extending from the water surface to or above the horizontal plane of the spout opening require a greater air gap when spaced closer to the nearest inside edge of spout opening than specified in Note (a) above. In the case of three or more such vertical walls or ribs, the air gap shall be measured from the top of the wall.

(5) Backflow prevention devices which are acceptable for the prevention of cross-connection hazards are contained in Table 4.

Table 4

BACKFLOW PREVENTION DEVICES ACCEPTABLE FOR THE PREVENTION OF CROSS-CONNECTION HAZARDS:

Potential Type of Cross Connection	Degree of Hazard		ACCEPTABLE PROTECTION				
	High	Low	AIR GAP	Reduced Pressure Zone	Double Check Valve	Atmospheric Vacuum Breaker	Pressure/ Spill Resistant Vacuum Breaker
Direct Water Connections Subject to Back Pressure 1. Tanks and lines:							
a. Sewage and lethal substances	X		X	X(3)			
b. Toxic substances(1)	X		X	X(3)			
c. Non-toxic substance(2)		X	X	X	X		
d. Water connection to boiler	X		X	X			
Not Subject to Back Pressure (Back siphonage only)							
1. Water connected to receptacles containing toxic substances(1)	X		X	X(3)		X(3)	X(3)
2. Water connected to receptacles containing non-toxic substances(2)		X	X	X	X	X	X
3. Water connected to open tanks used for non-potable purposes		X	X		X	X	X
4. Lawn sprinkler systems	X		X	X			X
5. Coils or jackets used as heat exchangers in compressors, degreasers or other equipment:							
a. For waste lines	X		X	X			
b. For toxic substances(1)	X		X	X		X(3)	X(3)
c. For non-toxic substances(2)			X	X	X	X	X
6. Flush valve toilets & urinals	X		X			X	
7. Tank toilet and urinal tanks	X		X			X	
8. Valved outlets or fixtures with hose attachments which may constitute a cross-connection:							
a. Toxic substances(1)	X		X	X		X*	
b. Non-toxic substances(2)		X	X	X		X*	X

*Non-removable Type.

Footnotes to Table 4

(1) Toxic Substance: Materials containing contaminants.

(2) Non-toxic Substance: Materials containing pollutants.

(3) Subject to prior approval.

(Ord. No. 49-403, § 13, 12-11-2012)

Sec. 17.10.080. Barometric loop.

Water connections where an actual or potential back-siphonage hazard exists may in lieu of devices specified in Section 17.10.060 be provided with a barometric loop. Barometric loops shall precede the point of connection. There shall be no source of backpressure on a barometric loop.
(Ord. No. 49-403, § 14, 12-11-2012)

Sec. 17.10.090. Double check valves.

The Director of Public Works & Utilities may authorize installation of approved double check valve assemblies with test cocks as protective devices against backflow in connections between a potable water system and other fluid systems

which present no significant health hazard in the judgment of the Director of Public Works & Utilities.
(Ord. No. 49-403, § 15, 12-11-12)

Sec. 17.10.100. Other devices.

No other devices may be used for the prevention of backflow or backsiphonage unless approved by the board, as being in their judgment equally effective.
(Ord. No. 49-403, § 16, 12-11-12)

Sec. 17.10.110. Maintenance requirements, general.

It shall be the responsibility of building and premise owners to maintain all backflow preventers and vacuum breakers within the building or on the premises in good working order and to make no piping or other arrangements for the purpose of bypassing or removing backflow devices.
(Ord. No. 49-403, § 17, 12-11-12)

Sec. 17.10.120. Testing of backflow devices.

The City of Wichita and the Metropolitan Area building and Construction Department shall verify proper installation of backflow prevention devices, and refer them to the Director of Public Works & Utilities for registration. Program costs will be recovered from the device owner in accordance with a fee schedule as set forth in Section no. 17.12.080. Testing intervals shall not exceed one year beginning with testing on the date of installation, and overhaul (rebuild) intervals shall not exceed five years. The testing procedures shall be in accordance with the manufacturer's instructions and nationally accepted practices. Testing and repair of the backflow devices will be done by certified installer/testers that meet the requirements set up by the board. Maintenance workers, trained and certified as installers/testers can service backflow preventers in their place of employment. All installer/testers shall have completed a course approved by the board and be registered by the Wichita Public Works & Utilities department. Certified installer/testers shall be tested and recertified every three years. Recertification tests shall be to the latest accepted practice methods. Administrative costs will be assessed to the installer/tester applicant in accordance with a fee schedule as set forth in Section 17.12.080, through issuance of a Public Works & Utilities department registration card. All installer/tester registration cards shall be renewed annually upon payment of the fee as set forth in Section no. 17.12.080. All such registration cards shall expire on the 31st of December of each year, and no reduction shall be made for part of the year being elapsed.
(Ord. No. 49-403, § 18, 12-11-12; Ord. No. 50-957, § 4, 4-23-19)

Sec. 17.10.130. Testing devices, approval.

All testing devices shall be approved by the Director of Public Works & Utilities, and shall be compared for accuracy at least once per year and recalibrated every three years.
(Ord. No. 49-403, § 19, 12-11-12)

Sec. 17.10.140. Cessation of water delivery to avoid contamination.

The Director of Public Works & Utilities may refuse to deliver water through pipes and mains to any premises where a condition exists which might lead to the contamination of the public water supply system and may continue to refuse the delivery of water to the premises until the condition is remedied.
(Ord. No. 49-403, § 20, 12-11-12)

Sec. 17.10.150. Hazard to potable water supply.

If the Director of Public Works & Utilities determines that the condition of the plumbing constitutes an extreme hazard to the potable water supply, the director shall notify the owner of the premises of the hazardous conditions. Immediate action, within 24 hours, to correct that condition shall be taken or water service will be shut off until that condition no longer exists. In the event of any addition, repair, replacement, or alteration, other than routine maintenance, the entire system shall be brought into compliance with provisions of this chapter.
(Ord. No. 49-403, § 21, 12-11-12)

Sec. 17.10.160. Automatic fire suppression systems.

All new installations of automatic fire suppression systems of 30 heads or more, or having a fire department connection, other than dry systems, shall be protected from backflow with an approved double check valve assembly. Any portion of a fire suppression system into which toxic chemicals of any type (corrosion, antibacterial, etc.) are added, shall be individually protected with an approved reduced pressure principle assembly in addition to proper fire service line protection. All piping upstream of the backflow preventer or unprotected fire suppression system shall be of material approved for contact with potable water.
(Ord. No. 49-403, § 22, 12-11-12)

Sec. 17.10.170. Existing fire suppression systems.

All existing fire suppression systems shall be retro-fitted by licensed fire protection systems contractors within five years of the passage of this ordinance to meet the requirements provided herein. Flow rates shall be recalculated to ensure compliance with Wichita Fire Department requirements if the backflow device is of smaller line size than the underground supply.
(Ord. No. 49-403, § 23, 12-11-12)

Sec. 17.10.180. Construction water services.

All temporary water services for projects under construction shall be protected from backflow. Services for two or less story buildings may be protected with an approved double check valve assembly. Buildings of three or more stories shall have an approved reduced pressure principle backflow preventer installed on the construction water service.
(Ord. No. 49-403, § 24, 12-11-12)

Sec. 17.10.190. Penalty.

Any corporation, railway, common carrier, company or individual violating any of the provisions of this chapter is guilty of a misdemeanor, and upon conviction, shall be punished by a fine not to exceed Five Hundred Dollars ($500.00) or by imprisonment of not more than six (6) months, or by both such fine and imprisonment. Each day any violation hereof is found to exist or continues to exist shall be a separate offense and punishable as such hereunder.
(Ord. No. 49-403, § 25, 12-11-12)

CHAPTER 17.12. WATER SERVICE

Sec. 17.12.010. Definitions.
Sec. 17.12.030. Form and contents of application for water service.
Sec. 17.12.040. Requirements of applicants for new service.
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Sec. 17.12.110. Authority to change rates, charges and regulations.
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Sec. 17.12.130. Approval of consumer's service line by plumbing inspector required.
Sec. 17.12.150. Testing of meters.
Sec. 17.12.160. Adjustment of charges when meter found to be measuring inaccurately.
Sec. 17.12.170. Time of billing for water and water service.
Sec. 17.12.180. Private service line leaks.
Sec. 17.12.190. When water service to a consumer may be shut off without notice.
Sec. 17.12.200. When flow of water in mains may be shut off, City not liable for necessary interruptions of service.
Sec. 17.12.210. City not liable for failure to maintain specific water pressure.
Sec. 17.12.220. Use of water from fire hydrants for flushing of streets and sewers, dust control measure, etc.
Sec. 17.12.240. Use of water or waterworks system without permission unlawful.
Sec. 17.12.250. Only authorized persons permitted to shut off or turn on City water.
Sec. 17.12.255. Irrigation connections to the water meter service.
Sec. 17.12.260. Authority to refuse to deliver water when contamination of supply may result.
Sec. 17.12.270. Extension or enlargement of waterworks system—Application and deposit for extension of main.
Sec. 17.12.290. Same—Title to mains vested in City.
Sec. 17.12.300. Same—Plans for extensions or enlargements to be submitted to planning department and City engineer.
Sec. 17.12.320. Penalty for violation of Sections 17.12.120, 17.12.130, 17.12.240 and 17.12.250.
Sec. 17.12.330. Rules and regulations.

Sec. 17.12.010. Definitions.

Unless the context specifically indicates otherwise, the following terms shall, for the purpose of this chapter, have the meanings indicated in this section:

(a) *Customer* means a person, firm, corporation, or governmental unit furnished water by the department.

(b) *Customer's service line* means a supply pipe installed, maintained and owned by the customer extending from the meter setting to the premises served.

(c) *Department service line* means a pipe with appurtenances connected to a water main for the purpose of controlling the flow of water and extending from the water main to the inlet side of the meter yoke.

(d) *Master meter* means one meter measuring the water furnished to serve two or more premises.

(e) *Meter* means a mechanical device which measures and records the quantity of water furnished to a customer.

(f) *Meter setting* means a box, vault or tile, with covering, containing a meter, meter yoke and connecting appurtenances.

(g) *Pigtail* means that portion of the meter service connection extending from the meter setter out from the meter vault for the purpose of connection to private consumer plumbing.

(h) *Premises* means an inhabited building or buildings on a tract of land.

(i) *Special acquisition service area* means any area whereby the Water Utility acquires the right to provide water and/or sanitary sewer services by purchase, release, or any other mean and in which

the City or Water Utility pays compensation to another governmental, quasi-governmental, or private entity for such service area directly or indirectly through reduced rates or in-kind services.

(j) *Special acquisition service area fees* means the fees assessed to property owners or customers in a Special Acquisition Service Area in order for the City or Water Utility to recover all or part of the costs of acquiring the right to provide water and/or sanitary sewer services to the area.

(k) *Special service* means any water service that involves the installation of facilities and equipment other than designated as standard service in subsection (i) of this section or which involves a use of water other than for normal residential, commercial or industrial purposes.

(l) *Standard service* means facilities normally installed for residential, commercial or industrial usage not requiring special or unusual methods of installation, construction and engineering.

(m) *Water utilities* (hereinafter called department) means an administrative unit consisting of City personnel headed by the Director of Public Works & Utilities designated by the City manager to conduct all operations in connection with the supplying and furnishing of water, and sewer service by the City to customers in the City and environs pursuant to the provisions of this chapter.

(n) *Water main* means a water pipe owned by the City, located in public right-of-way or utility easement, to which department service lines may be connected.

(o) *Water service connection* means that portion of the consumer plumbing where connection is made to the public utility meter box connection for the purpose of supplying water to the consumer's premises.

(Ord. No. 33-269 (part) ; Ord. No. 48-139 § 1, 12-16-08; Ord. No. 49-403 § 26, 12-11-12)

Sec. 17.12.030. Form and contents of application for water service.

Applications for water service shall be made at the office of the water department by or on behalf of the customer requesting water and water service. The application shall be in such form as shall be prescribed by the department. Every customer using water from the waterworks system shall be deemed to have consented and agreed to the terms and provisions of this chapter and all reasonable rules and regulations as shall be promulgated by the Director of Public Works & Utilities in implementation of this chapter. In all instances where the Director of Public Works & Utilities shall deem it necessary, customers shall make a deposit of monies with the department as security for service to be furnished that customer.

(Ord. No. 33-269 (part); Ord. No. 49-403 § 27, 12-11-12)

Sec. 17.12.040. Requirements of applicants for new service.

If an application is for water service to premises not previously served, the following requirements shall be met:

(a) *Meter settings and service lines in areas served by existing water mains.* In areas where water mains exist adjacent to property to be served, the applicant, upon submission of information to the water department (the "department") as to the location and nature of the premises, will be provided with information as to the proposed location of the meter setting. If the customer's service line has been installed prior to the application for service, it shall be the applicant's responsibility to clearly mark the location thereof. The department shall have sole jurisdiction, however, to determine the location of the department service line, and the feasibility of a connection to the customer's service line. It shall be the applicant's responsibility at applicant's expense to run applicant's service line from the premises being served to the meter setting at or near the curb line. The department service line meter set-

ting and meter shall be placed within public right-of-way or such other locations as determined by the director of public works and utilities, and will be installed and maintained by the department and kept within its exclusive control.

(b) *Areas not served by existing water mains.* Applications for service in areas not served by existing water mains shall be governed by the provisions of section 17.12.270 of this Code.

(c) *Installation and maintenance of customer's service line.* The customer shall be responsible for the maintenance, repair, and any leakage in the piping from the meter to place of use. Installation of the customer's service line shall be done by a master plumber and in accordance with the Wichita/Sedgwick uniform building and trade code.

(d) *Size of meters.* The department shall determine the size of the meter to be installed, based upon information furnished by the applicant. Any change in meter size requested by a customer after the initial meter installation shall be granted insofar as is reasonable but the entire cost shall be borne by the customer unless determined otherwise by the director of the department. In cases of dispute as to meter size, the department shall have sole jurisdiction.

(e) *Size of department service line.* The size of the department service line shall be determined by the department, based upon information furnished by the applicant. However, in no case shall the department service line be the same size or any greater size than the water main to which it is connected. Any change in size or location of the department service line after the original installation shall be done at customer's expense unless determined otherwise by the director of the department.

(f) *Special vaults to house meters—Cost of construction; location of meter settings and vaults.* In cases where the size of the meter is one and one-half inches or larger, or other special circumstances make it necessary to construct a special vault in which to house the meter, all costs of construction of such vault shall be borne by the applicant. Outside building meter settings and vaults shall be installed whenever possible and inside building meter installations must be approved in writing by the director of the department.

(g) *Same—Responsibility of customer for installation, maintenance, etc.* With respect to all premises served by the department, whether located within or without the corporate limits of the city, it shall be the responsibility of the customer to install or have installed thereon, such special vaults as are prescribed by the department according to and in conformity with specifications and drawings which shall be furnished the applicant by the department. All such special vaults so constructed and installed on the customer premises, adjacent to the property line shall be the property of the customer. The customer shall be responsible for all maintenance and adjustment to grade of the special vault.

In instances where circumstances necessitate the location of special vaults in a public right-of-way for street, alley or similar public uses, the construction and installation of the special vault shall be accomplished by the customer at locations approved by the city engineer.

(h) *Connection fees.* Prior to the installation of a standard service, the applicant shall pay in advance a connection fee for the installation by the department of the standard service line. The connection fee shall be as set forth in Section 17.12.080, and shall be based on the actual costs of similar installation work.

For a standard service line four inches or larger, the connection fee will be based upon an estimate of cost prepared by the department.

(Ord. No. 37-144 (part); Ord. No. 33-269 (part); Ord. No. 49-403 § 28, 12-11-12; Ord. No. 49-806 § 1, 8-12-14; Ord. No. 50-186 § 1, 4-26-16; Ord. No. 50-957, § 5, 4-23-19)

Sec. 17.12.050. Measurement of water furnished.

All water furnished to consumers shall be metered, except in cases where the director of public works and utilities shall determine that the nature of a particular usage necessitates a measurement by other means.
(Ord. No. 23-125 § 3; Ord. No. 49-403 § 28, 12-11-12)

Sec. 17.12.060. Specifications for installation of meters and department service lines.

The installation of meters and department service lines shall be in accordance with the following specifications and requirements:

(a) *Number of installations for each premise.* One department service line, meter setting and meter shall be installed for each premise. Additional meters, meter settings, department service lines and other appurtenances may be installed as approved by the director of public works and utilities and all such additional costs shall be borne by the applicant unless determined otherwise by the director of public works and utilities.

(b) *Location of department service lines; obstruction to installations.* Department service lines shall be at right angles to the water main and shall not be installed by the department unless sufficient footage of water main exists adjacent to the premises requesting service to allow meter setting installation free of obstructions such as fences, trees, driveways, culverts, mail boxes, etc.

(c) *Ownership of meters; location of meters; obstructing access to prohibited.* All meters now in service and hereafter installed shall remain the sole property of the department. Meters other than those in special vaults shall be installed only in public ways and it shall be unlawful for any person to obstruct access thereto by the department.

(d) *Separate service and meter required for each unit: with certain exceptions; exception as to existing meters.* Each and every unit, business or place of business, shall be on a separate service and meter. The department shall permit no master metering of water except for the following conditions:

(1) A building or group of buildings under single ownership and consisting of family units;

(2) A multi-story building used for commercial or industrial purposes;

(3) Rural water districts;

(4) Any other structure or structures, public or private, where due to unusual circumstances approval is given by the director of public works and utilities.

Where water has been supplied through one service to more than one premise, the director of public works and utilities may, at his/her discretion, refuse to furnish water until separate services are provided.
(Ord. No. 33-269 (part); Ord. No. 49-403 § 30, 12-11-12)

Sec. 17.12.061. Payment of plant equity fees for connection of water service.

Each customer requesting a new service connection to the water distribution system shall pay a plant equity fee prior to connection (or shall agree, prior to connection, to pay such fee as otherwise provided below) as part of the approval process for new service connections.

Such plant equity fees shall be determined on the basis of the equity existing system customers have accumulated in the system as determined on the basis of a detailed analysis of plant assets and shall constitute a system buy in fee assessed to new connections. The meter size on which the fee schedule is based shall be in reference to the associated water meter size.

The schedule of said plant equity fees shall be as set forth in Section 17.12.080.

At the discretion of the City Council, the above fees may be waived and/or modified in relation to economic development projects, which, due to their unusual nature or magnitude, offer extraordinary benefits to the community.

Property owners required to make a payment for connecting to the water system as provided above may apply for a deferral of such payment on the basis that such payment would work an economic hardship on the owner(s). The criteria for the granting of such a deferral shall be the same as described in Sections 2.24.070 and 2.24.075 of the code. All other terms and conditions of any deferral hereunder shall be governed by the provisions of 2.24.070 and 2.24.075 except as otherwise noted herein. A deferral hereunder may be granted to owners of property located outside the City limits.
(Ord. No. 45-368 § 1; Ord. No. 43-630 § 1; Ord. No. 47-521, § 1, 7-17-07)

Editor's note—It should be noted that Ord. No. 47-521, § provides for an effective date on and after Oct. 1, 2007.

Sec. 17.12.065. Payment for connection to water system for properties not included in benefit districts.

Properties not included in a benefit district which request connection to the water system shall pay an amount as determined to be appropriate by the director of water and sewer and the city engineer. This amount shall be representative of the recent historical costs of constructing water service lines of a similar or representative type as those serving the connecting property, calculated on a square foot or frontage foot basis.

If, in the opinion of the director of water and sewer, the connecting property constitutes an extraordinary use and/or is likely to place an extraordinary demand on the water system, the director is empowered to calculate an appropriate charge commensurate with this extraordinary use or demand and to assess this charge against the connecting property.

If the cost of the connection to the water system has been financed by a private entity, and if the cost of the connection has been included in the purchase price of the lot and improvements thereon, then no fees as called for in this section shall be assessed.

The appropriateness of the application of the ordinance provision codified in this section shall be discretionary and shall be based on the interpretation of written policy guidelines by the director of water and sewer, the city engineer, and the director of planning and/or other parties as designated by the city manager.
(Ord. No. 43-770 § 1)

Sec. 17.12.070. Requirements of applicants for special service.

Application for special service shall be made in the same manner as required for standard service and shall, in addition, conform to the following requirements:

(a) Private Fire Service Connections. Applications for private fire service connections shall have attached a sketch showing pipes, valves, hydrants, tanks, openings and appurtenances contemplated. The applicant shall be required to pay the entire cost of the installation, including the connection to the main and necessary appurtenances. All new private fire service connections with the exception of the so-called "dry-type" may be metered or require the installation of a detector check valve. All materials shall be approved by the department, and all fire service lines must be provided with a suitable control valve on the customer's side of the property line. The valve installed at the water main shall be under the exclusive control of the department. All fire service lines shall be used exclusively for extinguishment of fires and no connection for any other use may be attached thereto. All installations of fire service connections shall be accomplished in such manner as shall be approved by the department. In the event a main extension is required for private fire service connection, the cost of the same shall be borne by the applicant subject to the provisions of Section 17.12.270.

(b) Miscellaneous Special Service. All miscellaneous special service shall be installed and maintained at the sole cost of the applicant and an advance of the estimated costs of installation shall be required as a condition precedent to the granting of the application. The billing for such service shall be as determined by the director of water.

(Ord. No. 33-269 (part))

Sec. 17.12.075 Special acquisition service areas fees.

(a) The provisions of this Section are intended to establish a Special Acquisition Service Area Fee as that term is defined in Section 17.12.010. Upon acquisition of a Special Acquisition Service Area or when a customer requests new service in such Area, the Director of Utilities will determine by appropriate calculation the Special Service Area Fees for the Area and for each customer, based upon the compensation paid for such Area and any action of the governing body in approving such acquisition. The Special Acquisition Service Area Fee shall be assessed to the property owners or customers in the Special Service Area and shall be in addition to and not a substitute for other fees or charges required by this Code. Payment or appropriate agreement for payment of the Special Service Area Fee will be a condition precedent to receiving service from the Water Utility or Sewer Utility.

(b) At the discretion of the City Council, the above fees may be waived and/or modified in relation to economic development projects, which, due to their unusual nature or magnitude, offer extraordinary benefits to the community.

(c) Property owners or customers required to make a payment for connecting to the water or sewer system as provided above may apply for a deferral of such payment on the basis that such payment would work an economic hardship on the owner or customer. The criteria for the granting of such a deferral shall be the same as described in Sections 2.24.070 and 2.24.075 of the code. All other terms and conditions of any deferral hereunder shall be governed by the provisions of 2.24.070 and 2.24.075 except as otherwise noted herein. A deferral hereunder may be granted to owners of property or customers located outside the City limits.

(Ord. No. 48-139, § 2, 12-16-08)

Sec. 17.12.090. Water rates and charges.

WATER RATES AND CHARGES. On and after January 1, 2010, the schedule of rates and charges as set forth below shall apply to all categories of water customers with metered, flat rate or fire protection services:

I. *MINIMUM WATER SERVICE CHARGES.* Minimum water service charges per monthly billing period, based on water service sizes, shall be assessed to all customers who have service availability at any time during a billing period as shown below. An individual is deemed to have service available if the private water service system, at the individual's residence or business, has been connected to the City of Wichita's water system at any time during a billing period. The minimum charge is to be applied regardless of whether or not any water volume passed from the City to private water systems during a billing period. Water service connections deemed inactive by the Director of Water & Sewer shall not be assessed minimum water service charges.

A. Metered water services.

INSIDE CITY
MINIMUM MONTHLY

WATER METER SIZES	*2010 & Beyond*
5/8 inch	$9.63
3/4 inch	9.69

Sec. 17.12.080. Schedule of user fees for incidental water services.

On and after January 1, 2025, the schedule of fees as set forth below shall apply to the services and incidents described herein. Reference is made to Chapter 17 (Water) of the Code of the City of Wichita for additional information concerning the stated fees.

A. Utility Account Services. As authorized in Sec. 17.12.090, the following utility account service fees are hereby established:

Account Origination Fee	$53.00 per account
Convenience Fee	$1.00 per transaction
Insufficient Funds Debit and Returned Check Charge	$35.00 per transaction
Rejection of Payment via Telephone (Insufficient Funds)	$35.00 per transaction
Rejection of Payment Made Online (Insufficient Funds)	$35.00 per transaction

B. Meter Maintenance and Testing Services. As authorized in Sec. 17.12.090, the following meter maintenance and testing service fees are hereby established:

Angle Valve Charge	$628.00 per valve
Additional Trip Charge (services other than shut off for non-payment)	$72.00 per trip
Inspection Charge	$61.00 per trip
Meter Confiscation Charge	$54.00 per meter
Meter Confiscation Reset Charge	$54.00 per meter
Meter Test Charge - In-house (1" or smaller)	$94.00 per meter
Meter Test Charge - In-house (2"—6")	$237.00 per meter
Meter Test Charge - In-field (8"—10")	$440.00 per meter

C. Meter Connection and Disconnection Services. As authorized in Sec. 17.12.090, the following meter disconnection fees are hereby established:

Shut Off for Non-Payment	$42.00 per meter
Shut Off for Non-Payment Additional Trip	$46.00 per meter
Lawn Service Connection or Disconnection	$56.00 per trip
Plug Lock Use Charge - 1-inch	$95.00 per lock
Plug Lock Use Charge - ¾-inch	$88.00 per lock
Plug Lock Use Charge - ⅝-inch	$73.00 per lock
Plug Lock Missing Charge (any size)	$95.00 per lock
No Foundation Charge	$255.00 per incident

D. Meter Damage. As authorized in Sec. 17.12.090, the following meter damage fees are hereby established:

Cut Lock Charge	$60.00 per lock
Lock Chamber	$60.00 per lock
Damaged Setter Charge	$1,008.00 per setter
Missing ERT Charge	$129.00 per ERT
Missing Meter and ERT Charge	$333.00 per meter
Meter Box / ERT Damage	$255.00 per occurrence
Contractor Damaged Service Repairs	$2,046.00 per service

E. Hydrant Related Services. As authorized in Sec. 17.12.090 and 17.12.240, the following hydrant related service fees are hereby established:

Hydrant Permit - ¾" for 30 days	$100 for 30 days

Hydrant Permit - 3" for 10 days	$100 for 10 days
Hydrant Permit - 3" for 30 days	$300 for 30 days
Hydrant Permit - Additional Meter	$50 per meter per month
Hydrant - Damaged Meter	$50.00 per hour plus materials
Hydrant Flow Test	$92.00 per test (each trip)
Wrench Not Returned	$50.00 per wrench

F. Water Plant Laboratory. As authorized in Sec. 17.12.090, the following water plant laboratory fees are hereby established:

Bacteria Test for New Water Main	$50.00 per test
Lead Lab Test Fee	$120.00 per test

G. Backflow Protection. As authorized in Sec. 17.12.090, 17.10.120, and 17.12.240, the following backflow protection fees are hereby established:

Registered Backflow Device	$11.00 per device per year
Licensed Backflow Tester Registration	$14.00 per person per year
Bulk Water Truck Permit	$14.00 per truck per year

SCHEDULE OF FEES FOR NEW WATER SERVICES. On and after July 1, 2025, the schedule of fees as set forth below shall apply to the services described herein. Reference is made to Chapter 17 of the Code of the City of Wichita for additional information concerning the stated fees.

A. New Water Services. As authorized in Sec. 17.12.040 (Connection Fees) and 17.12.061 (Water Plant Equity Fees), the following new water service fees are hereby established:

Complete installation by City staff or City contractor:

Service Description	Connection Fee	Water Plant Equity Fee
1-inch tap, service line and meter setting	$1,812	$1,520
2-inch tap, service line and meter setting	$5,068	$4,860

Cost includes meter and installation in customer's vault:

Meter and Service Description	Connection Fee	Water Plant Equity Fee
2, 2-inch meters on 4-inch service	per bid	$9,720
3-inch meter on 4-inch service	per bid	$9,120
4-inch meter on 4-inch service	per bid	$15,200
6-inch meter on 6-inch service	per bid	$30,400
2, 3-inch meters on 6-inch service	per bid	$18,240
2, 4-inch meters on 6-inch service	per bid	$30,400
8-inch meter on 8-inch service	per bid	$48,640
2, 4-inch meters on 8-inch service	per bid	$30,400
2, 6-inch meters on 8-inch service	per bid	$60,800
12-inch meter on 12-inch service	per bid	$130,720

Meter and Service Description	Connection Fee	Water Plant Equity Fee
2, 6-inch meters on 12-inch service	per bid	$60,800

Water tap only (not applicable to concrete pipe):

Tap Size	Connection Fee
2-inch tap	$1,768
4-inch tap	$3,434
6-inch tap	$4,069
8-inch tap	$4,414
12-inch tap	$7,272

The customer or contractor must have the water main ready for an immediate tap. Therefore, these prices do not include any excavation cost, pavement cut or removal costs. The customer or contractor must submit professional engineered plans to Public Works Engineering for approval to construct service line. A tap work order will not be issued until the Wichita Water Utilities verifies the approved plans, appropriate payments, and bonding. Street cuts, excavation, thrust blocking, backfilling, pavement reconstruction, and all other incidental costs are the responsibility of the contractor.

Water Service Relocation, Replacement, or Other:

Service Description	Connection Fee
Replace or relocate 1-inch or smaller service and/or meter set	$1,812
Relocate 1-inch or smaller set only	$906
Cut and plug 2-inch or larger service	$906 plus pavement cut permit fee if applicable (See Sec. 10.34.010)
Fire Service Leak Detection Meter	$223.59

B. In Lieu of Assessment Fee. As authorized in Sec. 17.12.065, the following fee in lieu of assessments for water lines is hereby established:

Cost per Front Foot	$31.00

In Lieu of Assessment Fee is a fee based on whether a specific property has ever participated in a water distribution project. Staff must know the specific project location to determine if this fee is applicable to the parcel. The front footage amount is capped at 100 feet for residential properties.

C. Main Benefit Fee. As authorized in Ordinance No. 48-103 and Sec. 17.12.065, the following Main Benefit Fee for water lines is hereby established:

Cost per Square Foot of Land	$0.032

Main Benefit Fee is a fee based on whether a specific property has ever participated in a water transmission main extension project. Staff must know the specific project location to determine if this fee is applicable.

The fees described herein and other charges and billing for special services are subject to review, modification, and exception by the Director of Public Works & Utilities, City Manager, and/or City Council where permitted by the code of the City of Wichita.
(Ord. No. 50-957, §§ 1, 3, 4-23-19; Ord. No. 51-973, § 1, 11-22-22; Ord. No. 52-576, § 1, 12-10-24)

Sec. 17.12.090. Water rates and charges.

On and after January 1, 2026, the schedule of rates and charges as set forth below shall apply to all categories of water customers with metered, flat rate or fire protection services:

I. MINIMUM WATER SERVICE CHARGES

Minimum water service charges per meter, per monthly billing period, based on water service sizes, shall be assessed to all customers who have service availability at any time during a billing period as shown below. An individual is deemed to have service available if the private water service system, at the individual's residence or business, has been connected to the City of Wichita's water system at any time during a billing period. The minimum charge is to be applied regardless of whether or not any water volume passed from the City to private water systems during a billing period. Water service connections deemed inactive by the director of public works & utilities shall not be assessed minimum water service charges.

A. METERED AND WHOLESALE WATER SERVICES

Effective January 1, 2026 to December 31, 2026					
Water Meter Sizes	**Residential Inside City**	**Commercial Inside City**	**Residential Outside City**	**Commercial Outside City**	**Wholesale**
⅝ inch	$22.08	$24.07	$35.35	$38.53	$37.60
¾ inch	22.08	24.07	35.35	38.53	37.60
1 inch	22.08	24.07	35.35	38.53	37.60
1½ inch	28.71	31.31	45.92	50.08	48.86
2 inch	36.54	39.86	58.51	63.79	62.25
3 inch	61.53	67.09	98.49	107.39	104.79
4 inch	81.71	89.11	130.82	142.65	139.18
6 inch	123.74	134.93	198.09	216.01	210.76
8 inch	165.42	180.38	264.81	288.76	281.74
10 inch	211.64	230.78	338.83	369.49	360.50
12 inch	293.88	320.45	470.45	512.99	500.52
16 inch					1,132.16

Effective January 1, 2027 to December 31, 2027					
Water Meter Sizes	**Residential Inside City**	**Commercial Inside City**	**Residential Outside City**	**Commercial Outside City**	**Wholesale**
⅝ inch	$23.71	$26.47	$37.96	$42.38	$40.87
¾ inch	23.71	26.47	37.96	42.38	40.87
1 inch	23.71	26.47	37.96	42.38	40.87
1½ inch	30.83	34.44	49.31	55.08	53.11
2 inch	39.24	43.84	62.83	70.16	67.67
3 inch	66.07	73.79	105.76	118.11	113.91
4 inch	87.74	98.01	140.48	156.89	151.30
6 inch	132.88	148.40	212.72	237.58	229.11
8 inch	177.63	198.39	284.36	317.59	306.27
10 inch	227.27	253.82	363.85	406.38	391.88
12 inch	315.58	352.44	505.19	564.21	544.09
16 inch					1,230.71

Effective January 1, 2028 and thereafter					
Water Meter Sizes	**Residential Inside City**	**Commercial Inside City**	**Residential Outside City**	**Commercial Outside City**	**Wholesale**
⅝ inch	$25.47	$29.07	$40.79	$46.54	$44.41

Effective January 1, 2028 and thereafter					
Water Meter Sizes	Residential Inside City	Commercial Inside City	Residential Outside City	Commercial Outside City	Wholesale
¾ inch	25.47	29.07	40.79	46.54	44.41
1 inch	25.47	29.07	40.79	46.54	44.41
1½ inch	33.12	37.82	52.98	60.49	57.71
2 inch	42.16	48.15	67.51	77.05	73.54
3 inch	70.99	81.04	113.63	129.72	123.78
4 inch	94.27	107.64	150.94	172.31	164.42
6 inch	142.77	162.98	228.55	260.93	248.97
8 inch	190.85	217.88	305.53	348.80	332.82
10 inch	244.19	278.76	390.93	446.31	425.85
12 inch	339.07	387.07	542.79	619.65	591.25
16 inch					1,337.39

B. FIRE PROTECTION FLAT MONTHLY CHARGES

Effective January 1, 2026 to December 31, 2026		
PIPE SIZES	Inside City	Outside City
⅝ inch	$6.77	$10.88
¾ inch	6.98	11.19
1 inch	7.78	12.43
1½ inch	9.25	14.84
2 inch	11.25	17.98
3 inch	21.21	33.92
4 inch	28.13	45.03
6 inch	43.71	69.97
8 inch	58.65	93.88
10 inch	76.10	121.74
12 inch	102.75	164.40

Effective January 1, 2027 to December 31, 2027		
PIPE SIZES	Inside City	Outside City
⅝ inch	$7.08	$11.37
¾ inch	7.30	11.70
1 inch	8.13	12.99
1½ inch	9.67	15.51
2 inch	11.76	18.80
3 inch	22.17	35.46
4 inch	29.41	47.07
6 inch	45.69	73.14
8 inch	61.31	98.14
10 inch	79.55	127.26
12 inch	107.41	171.86

Effective January 1, 2028 and thereafter		
PIPE SIZES	Inside City	Outside City
⅝ inch	$7.41	$11.90
¾ inch	7.64	12.25
1 inch	8.51	13.60
1½ inch	10.12	16.24

Effective January 1, 2028 and thereafter		
PIPE SIZES	**Inside City**	**Outside City**
2 inch	12.31	19.68
3 inch	23.21	37.13
4 inch	30.79	49.28
6 inch	47.84	76.58
8 inch	64.19	102.75
10 inch	83.29	133.24
12 inch	112.46	179.93

II. WATER VOLUME CHARGES

Charges for any volume of water passing from the City of Wichita water system to a private water system shall be billed to the individual residing at the residence or business. Volume charges shall not apply to flat rate services which have been properly established with the Wichita Water Utilities.

A. AVERAGE WINTER CONSUMPTION

Average winter consumption (AWC) shall be defined as the arithmetic mean of monthly consumption computed by adding the metered consumption on bills rendered during the months of December, January, February, and March and then dividing this sum by the number of billings rendered during these same months. Each customer's AWC shall be recalculated in April of each year. Metered consumption charges for the ensuing twelve months shall be computed utilizing the AWC as calculated each April, apportioning usage among the applicable rate blocks as designated below. In those instances where no consumption data exists for the calculation of an AWC for particular customers, the director of public works & utilities shall determine the most appropriate method of establishing average winter consumptions for such circumstances. The minimum monthly AWC for any metered service sized one (1) inch or less shall be 6,000 gallons. If a billing period of greater than one month (defined as days of service within twenty eight to thirty one days) is used, the actual or minimum AWC shall be adjusted accordingly on a daily basis.

B. RETAIL VOLUME CHARGES

		Rates Per 1,000 Gallons			
Effective January 1, 2026 to December 31, 2026		**Residential Inside City**	**Commercial Inside City**	**Residential Outside City**	**Commercial Outside City**
Block 1:	Metered Consumption through 110% of AWC	$3.51	$3.83	$5.62	$6.14
Block 2:	Metered Consumption between 111% and 310% of AWC and from Fire Services	12.26	13.36	19.63	21.40
Block 3:	Metered Consumption above 310% of AWC	17.93	19.55	28.71	31.31

Effective January 1, 2027 to December 31, 2027		Rates Per 1,000 Gallons			
		Residential Inside City	Commercial Inside City	Residential Outside City	Commercial Outside City
Block 1:	Metered Consumption through 110% of AWC	$3.77	$4.21	$6.03	$6.75
Block 2:	Metered Consumption between 111% and 310% of AWC and from Fire Services	13.17	14.69	21.08	23.54
Block 3:	Metered Consumption above 310% of AWC	19.25	21.50	30.83	34.44

Effective January 1, 2028 and thereafter		Rates Per 1,000 Gallons			
		Residential Inside City	Commercial Inside City	Residential Outside City	Commercial Outside City
Block 1:	Metered Consumption through 110% of AWC	$4.05	$4.62	$6.48	$7.41
Block 2:	Metered Consumption between 111% and 310% of AWC and from Fire Services	14.15	16.13	22.65	25.85
Block 3:	Metered Consumption above 310% of AWC	20.68	23.61	33.12	37.82

RETAIL VOLUME CONSERVATION CONTRACT RATES

In order to obtain significant reductions in customers' annual water use, through more efficient use of Wichita's water resources, the director of public works & utilities is empowered to negotiate and execute contracts with retail customers which provide for a significant annual water savings by customers in return for charging all water use at the retail volume conservation contract rate. The director of public works & utilities is further empowered to establish such rules and regulations in contract terms as may be necessary to most equitably carry out the intent of this section. Rules and regulations shall be promulgated based on the needs of the City of Wichita as demonstrated in its water conservation plan and programs to address the requirements of the State of Kansas. In all circumstances, customers seeking to qualify for the conservation contract rate must make written application to the director of public works & utilities, detailing methods to be employed to conserve water, the time frame for implementing such conservation methods and the expected annual water savings in gallons per year to be derived from implementing such conservation plans. Each January, customers who have entered into conservation contract rate agreements shall report the results of

their conservation initiatives to the director of public works & utilities. If the director of public works & utilities determines that any customer did not meet the goal, then a billing will be rendered to the customer to reconcile charges for the proportion of the customer's prior year total annual consumption volume that did not qualify for the retail conservation contract rate as determined by the formula below:

(PRIOR YEAR'S RETAIL VOLUME CHARGE BLOCK 2 RATE - PRIOR YEAR'S RETAIL VOLUME CONSERVATION CONTRACT RATE) x ((PRIOR YEAR'S ANNUAL WATER USE/1,000) x (1 - (PRIOR YEAR'S ACTUAL ANNUAL GALLONS OF WATER SAVED / PRIOR YEAR'S PROJECTED ANNUAL GALLONS OF WATER SAVED)))

Customers exceeding their water conservation goals may use such excess savings in gallons as a credit toward the next year's water savings goal. This rate shall only be made available to customers who can demonstrate potential water savings that would be considered economically significant to the City of Wichita as determined by the director of public works & utilities.

	Conservation Contract Rates	
Effective January 1, 2026 to December 31, 2026	**Inside City**	**Outside City**
All Metered Consumption: Price per 1,000 gallons	$9.94	$15.91

	Conservation Contract Rates	
Effective January 1, 2027 to December 31, 2027	**Inside City**	**Outside City**
All Metered Consumption: Price per 1,000 gallons	$10.93	$17.50

	Conservation Contract Rates	
Effective January 1, 2028 and thereafter	**Inside City**	**Outside City**
All Metered Consumption: Price per 1,000 gallons	$12.00	$19.22

C. WHOLESALE VOLUME RATES

Effective January 1, 2026 to December 31, 2026		**Rates Per 1,000 Gallons**
Block 1:	Metered Consumption through 110% of AWC	$4.33
Block 2:	Metered Consumption between 111% and 310% of AWC and from Fire Services	22.41
Block 3:	Metered Consumption above 310% of AWC	33.57

Effective January 1, 2027 to December 31, 2027		**Rates Per 1,000 Gallons**
Block 1:	Metered Consumption through 110% of AWC	$4.71
Block 2:	Metered Consumption between 111% and 310% of AWC and from Fire Services	24.36
Block 3:	Metered Consumption above 310% of AWC	36.49

Effective January 1, 2028 and thereafter		**Rates Per 1,000 Gallons**
Block 1:	Metered Consumption through 110% of AWC	$5.12
Block 2:	Metered Consumption between 111% and 310% of AWC and from Fire Services	26.47
Block 3:	Metered Consumption above 310% of AWC	39.65

D. UNIFORM WHOLESALE VOLUME RATES

Effective January 1, 2026 to December 31, 2026		
All Metered Consumption	$6.00	per 1,000 gallons
Effective January 1, 2027 to December 31, 2027		
All Metered Consumption	$6.52	per 1,000 gallons
Effective January 1, 2028 and thereafter		
All Metered Consumption	$7.09	per 1,000 gallons

E. NON POTABLE VOLUME RATES

Effective January 1, 2026 to December 31, 2026		
All Metered Consumption	$1.94	per 1,000 gallons
Effective January 1, 2027 to December 31, 2027		
All Metered Consumption	$2.11	per 1,000 gallons
Effective January 1, 2028 and thereafter		
All Metered Consumption	$2.29	per 1,000 gallons

III. ASSOCIATION OF LAWN SERVICES

In all cases where practical and appropriate, lawn service accounts shall be associated with the primary service account at a particular service location. The individual consumption amounts for the primary service account and the lawn service accounts shall be added together and the total consumption for the billing period shall be allocated to the appropriate water volume charge rate blocks and volume charges calculated therefor. The consumption as recorded on billings rendered in the months of December, January, February and March for both the primary and lawn service accounts shall be used to calculate the average winter consumption used in apportioning water usage among the volume rate blocks whenever lawn service accounts are associated with primary service accounts.

IV. LATE CHARGES

An amount equal to one and one-half percent of the unpaid balance will be added to all bills not paid within twenty-five (25) days of the date of issuance.

V. MISCELLANEOUS CHARGES

When termination of water service has been ordered by the department for any cause, the customer shall be charged a fee to cover costs of arranging such termination. In instances where the service is actually terminated and later reinstated, the customer shall be charged an additional fee to cover costs of reinstating the service.

If a customer requests inspection and testing of a meter a testing fee shall be paid. If upon such examination and test conducted in the presence of the customer, or the customer's representative, the meter is found to be inaccurate according to the standards of the American Water Works Association, a meter will be substituted and the adjustment of the water bill for the preceding billing period shall include a credit for the testing fee.

Where water service is turned on and shut off in a period of less than one billing period, the billing shall be computed as if service was rendered for an entire billing period. Any customer desiring to discontinue water service temporarily must make request therefor at the office of

the department not less than two working days prior to the date on which the service is desired to be discontinued. After the effective date of such discontinuance, all charges for such water and water service shall cease for the period during which the service shall be shut off; provided, that the period of such discontinuance shall not be less than thirty days.

A fee shall be required for the disconnection of a lawn service when the customer of record requests disconnection without concurrently requesting disconnection of the associated service account at the service location. An additional fee shall be required for the reconnection of the lawn service at the same location.

The fees authorized in this section, and other charges and billing for special services, such as but not limited to administrative costs, account origination fees, collection costs, damages and/or vandalism to Utility infrastructure and appurtenances, etc., shall be as set forth in Section 17.12.080.

VI. GOVERNMENT MILITARY FACILITIES LOCATED OUTSIDE THE CITY

Government military facilities located outside the City of Wichita shall be charged inside city rates for water service.
(Ord. No. 46-422 § 1; Ord. No. 47-111, 8-22-06; Ord. No. 47-124 § 1, 9-19-06; Ord. No. 47-345 § 1, 2-13-07; Ord. No. 47-519 § 1, 7-17-07; Ord. No. 47-984 § 1, 8-12-08; Ord. No. 48-324 § 1, 5-12-09; Ord. No. 48-379 § 1, 7-21-09; Ord. No. 48-410 § 1, 8-18-09; Ord. No. 48-759 § 1, 6-22-10; Ord. No. 48-760 § 1, 6-22-10; Ord. No. 49-164 § 1, 12-13-11, eff. 1-1-12; Ord. No. 49-397 § 1, 12-4-12, eff. 1-1-13; Ord. No. 49-609 § 1, 11-26-13; Ord. No. 49-911 § 1, 12-16-14, eff. 1-1-15; Ord. No. 50-135 § 1, 12-15-15, eff. 1-1-16; Ord. No. 50-384, § 1, 12-13-16; Ord. No. 50-918, § 1, 1-15-19; Ord. No. 50-957, § 8, 4-23-19; Ord. No. 51-157, § 1, 12-10-19; Ord. No. 51-383, § 1, 12-8-20; Ord. No. 51-682, § 1, 12-14-21; Ord. No. 51-973, § 2, 11-22-22; Ord. No. 52-576, § 2, 12-10-24; Ord. No. 52-632, § 1, 3-18-25; Ord. No. 52-847, § 1, 12-9-25)

Sec. 17.12.091. Rural districts—Liability.

All water so sold shall be resold by such purchaser to customers through distribution lines owned and operated by such purchaser, metered by such purchaser, billed and collected by such purchaser and the department shall have no responsibility or liability for any such water or water service after such water has passed through the department water meter.
(Ord. No. 33-269 (part))

Sec. 17.12.092. Rural districts—Written agreement.

No water shall be sold as provided in Section 17.12.091 unless and until a written agreement shall have been negotiated between the City, acting by its governing body or by the delegate of such governing body and such rural water district and no right to City water shall arise unless and until such a written contract shall have been entered into.
(Ord. No. 30-577 § 2)

Sec. 17.12.095. Authority to collect fees, taxes and charges for other governmental entities.

In addition to the rates and charges set forth in this chapter, the Director of Public Works & Utilities and water pollution control, subject to the approval of the City council, shall have the authority to add to the bill of each customer the appropriate assessment of such water protection fees, taxes, and other fees and charges as the department is required to collect for or pay to any other governmental entity.
(Ord. No. 40-703 § 2; Ord. No. 49-403 § 33, 12-11-12)

Sec. 17.12.100. Rendering and payment of bills—Delinquent accounts.

(a) All water bills shall be paid at the office of the treasury division of the City or at such other places designated by the City treasurer. The Director of Public Works & Utilities shall render bills for water service charges to all flat rate residential customers or the owners of record of property connected to the water system. Bills so rendered shall include a charge for each month

the premises were connected to the water system without regard to whether the premises were occupied or unoccupied during all or part of the billing period. All water bins rendered in accordance with the regular schedule of meter rates and flat rates are due and payable when rendered and shall be deemed delinquent if not paid on or before 25 days thereafter.

(b) A delinquency and termination notice shall be issued five days after a bill is delinquent. The delinquency and termination notice shall provide the customer of record with the following information:

(1) The amount due on the unpaid balance plus interest;

(2) The customer's right to a hearing before the department;

(3) Notice that service will be terminated in five days if the bill remains unpaid.

If the customer of record is not the occupant where water service is provided then the department shall provide similar notice to the occupant. The request for a hearing must be no later than three working days before the date of discontinuance. Such hearings shall be conducted by one or more of the following persons: Director of Public Works & Utilities, assistant to the director, customer service manager, customer services supervisor, or such other representative of similar management grade as may be appointed by the Director of Public Works & Utilities. The department is authorized to discontinue and disconnect water service for any customer who is delinquent in the payment of bills. Customers are responsible for furnishing the department with their correct addresses for billing purposes. Until paid, flat rate delinquent bills shall constitute a lien against the property served and collected in the same manner as other special assessments are collected.
(Ord. No. 41-692 § 2; Ord. No. 49-403 § 34, 12-11-12)

Sec. 17.12.110. Authority to change rates, charges and regulations.

The City council retains continuing jurisdiction and authority to change from time to time the schedule of rates and charges and the regulations provided in this chapter as such changes shall be determined expedient and necessary.
(Ord. No. 23-125 § 4)

Sec. 17.12.120. Tampering with, injuring or removing meters prohibited.

It is unlawful for any person to open, interfere with, injure, deface or in any way impair the working of any water meter. It is also unlawful for any person, other than a duly authorized representative of the water department, to remove any meter from its setting.
(Ord. No. 23-125 § 5)

Sec. 17.12.130. Approval of consumer's service line by plumbing inspector required.

No meter shall be installed or water used through a new consumer's service line until approval therefor has been obtained from the office of the City plumbing inspector.
(Ord. No. 23-125 § 5)

Sec. 17.12.150. Testing of meters.

The water department shall have the right at any time to test meters, but if such testing is not in pursuance of request of the consumer it shall be without charge.
(Ord. No. 23-125 § 5)

Sec. 17.12.160. Adjustment of charges when meter found to be measuring inaccurately.

Whenever the department shall find a meter not measuring accurately according to standards of the American Water Works Association, an adjustment of charges for the preceding billing period shall be made by averaging the water used for the corresponding billing period of the past twelve months or if such records are not extant, from the best other method practicable.
(Ord. No. 33-269 (part))

Sec. 17.12.170. Time of billing for water and water service.

All billing for water and water service shall be rendered not more frequently than monthly, with the exception of miscellaneous accounts, the billing for which shall be rendered at such times as shall be determined by the director of water in each separate instance.
(Ord. No. 23-125 § 6)

Sec. 17.12.180. Private service line leaks.

(a) Water leaks in private water service lines are declared to be a public nuisance which must be repaired according to the terms of this section. It is unlawful for any water customer and/or occupant of private property to fail to repair a service line leak upon proper notice to do so.

(b) Upon discovery of a leak in a private water service line the Public Works & Utilities department shall serve a notice to repair the leak within seven days of the date on the notice. Such notice shall be served upon the water customer or occupant personally or by registered mail. Failure to repair the leak within seven days as directed will result in the disconnection of water service. Service shall not be reconnected until the leak is repaired and a disconnect/reconnect fee has been paid. Any person wishing to contest the notice of repair has the right to a hearing before the department. Such hearing must be requested in writing and the request must be received no later than three working days prior to the seven-day deadline for repair.

(c) Director of Public Works & Utilities department has the right to disconnect water service without notice if a leak has been discovered and (1) the water is flowing beyond the private property line in such a way that a hazard to public safety exists; or (2) a water emergency has been declared pursuant to Section 17.14.020. A notice of disconnection shall be left at the property. In addition, a notice of repair shall be given according to the requirements of subsection (b). Service shall not be reconnected until the leak has been repaired. However, no disconnect/reconnect fee will be charged for disconnection pursuant to this subsection.

(d) Failure to repair a water leak in a private water service line as required herein shall not be a criminal violation of the City Code.
(Ord. 41-270 § 1; Ord. No. 49-403 § 35, 12-11-12)

Sec. 17.12.190. When water service to a consumer may be shut off without notice.

Water service may also be shut off to any consumer by the water department without notice if such consumer shall tamper or in any way interfere with any meter, connections, service pipes, valves or other appurtenances belonging to the water department or for any violation by a consumer of the terms of this chapter or any other applicable ordinance of the City or of the statutes of the state.
(Ord. No. 23-125 § 6)

Sec. 17.12.200. When flow of water in mains may be shut off, City not liable for necessary interruptions of service.

In instances where the public health, safety or welfare so requires, the water department shall have the right to shut off the flow of water in its mains without notice but will endeavor insofar as possible to notify consumers affected of the intention to so interrupt the service. Interruption of service under such conditions shall not give rise to any claim on the part of any consumer against the water department or the City.
(Ord. No. 23-125 § 6)

Sec. 17.12.210. City not liable for failure to maintain specific water pressure.

The water department does not guarantee to maintain any specific water pressure for its service and no complaint concerning the pressure shall give any right of claim against the City or the water department.
(Ord. No. 23-125 § 6)

Sec. 17.12.220. Use of water from fire hydrants for flushing of streets and sewers, dust control measure, etc.

Water necessary for municipal uses or public improvements may be obtained from fire hydrants, provided that authority therefore shall first have been obtained from the director of water.
(Ord. No. 33269 (part))

Sec. 17.12.240. Use of water or waterworks system without permission unlawful.

It is unlawful for any person to use water from any part of the waterworks system of the City without proper permit or other authority therefor from the water department. The fee for such permit shall be as set forth in Section 17.12.080.
(Ord. No. 23-125 § 8; Ord. No. 50-957, § 8, 4-23-19)

Sec. 17.12.250. Only authorized persons permitted to shut off or turn on City water.

It is unlawful for any person, other than an authorized representative of the water department or of the fire department of the City, to shut off or turn on water from any part of the City's waterworks system, including fire hydrants; provided however, that nothing in this section contained shall be construed as prohibiting plumbing certificate holders, duly licensed under this Code or other ordinance of the City, from turning on or shutting off water service if such is necessary in the course of the work in which they are engaged or as required in the event of an emergency.
(Ord. No. 23-125 § 8; Ord. No. 49-403 § 36, 12-11-12)

Sec. 17.12.255. Irrigation connections to the water meter service.

(a) Dedicated irrigation water meters shall have a shut-off/isolation valve downstream of the water meter and before the backflow prevention valve installed 36" below grade. Using the Water Utility meter angle valve as the shut-off/isolation valve for a sprinkler system shall be prohibited and tampering with water meter connections is expressly prohibited. Composition of the shut-off valve should be of brass/bronze or ductile iron material. The shutoff/isolation valve may be located in the public right of way so long as it is not installed within 18 inches of the water meter vault, is located after the water meter pig tail, and the outgoing side of the shut-off/isolation valve is point toward the owner's property. Any other installation method shall not be allowed without the prior approval of the Director of Public Works & Utilities or his/her designee.

(b) Service connections to the water meter service shall be installed after the services pigtail on the consumer line connection.
(Ord. No. 49-403 § 37, 12-11-12)

Sec. 17.12.260. Authority to refuse to deliver water when contamination of supply may result.

The water department, pursuant to the provisions of K.S.A. 65-163(a) and amendments thereof, may refuse to deliver water to any premises whereon any condition exists which might lead to the contamination of the public water supply and may continue to refuse such delivery of water to any such premises until such condition is remedied.
(Ord. No. 23-125 § 9; Ord. No. 49-403 § 38, 12-11-12)

Sec. 17.12.270. Extension or enlargement of waterworks system—Application and deposit for extension of main.

Whenever the owner of real property desires a main to be extended to furnish water to such property, he shall make application to the water department and deposit in cash the estimated cost of extending such main or request an extension in accordance with the provisions K.S.A. 12-6a01 through 12-6a18, as amended, and according to the terms designated in this section.

THE EXTENSION PLAN:

(a) ASCERTAINMENT OF LENGTH OF EXTENSION. The length of the requested extension shall be ascertained by actual field measurement from the terminus of the nearest water main of adequate capaCity to the furthest point on the tract of land to be served, plus such additional footage as is deemed necessary by the water department in order to avoid obstructions, such as culverts, trees, shrubs, etc.

(b) DETERMINATION OF DIAMETER OF MAIN. The diameter of the main to be installed shall be determined by the water department, based upon a consideration of the following factors: Provision of adequate service to prospective customers; possible and contemplated future extensions of the main to be installed and fire protection needs existing or anticipated in the area to be served.

(c) METHOD OF ESTIMATING COST OF PROPOSED EXTENSION. The total estimated cost of the proposed main extension shall be determined by a field survey and a detailed cost estimate based on water department experience records, reflecting labor, material and other costs of main extensions.

(d) CASH DEPOSIT OF ESTIMATED COST OR PROPOSED SPECIAL ASSESSMENTS. The cash deposit of the estimated cost or the proposed special assessment for each water main extension shall be based on the actual size diameter of pipe installed not to exceed a maximum size diameter of eight inches. For mains in excess of eight inches in diameter, the deposit shall be based on the ratio of the cost of an equivalent eight inch main to the main being installed. The estimated cost of an equivalent eight inch main shall be based on records maintained by the water department.

(e) AMOUNT DEPOSITED OVER ACTUAL COST TO BE REFUNDED. NO ADDITIONAL CHARGE IF DEPOSIT IS INSUFFICIENT. ACTUAL COST USED TO DETERMINE SPECIAL ASSESSMENT. After the installation of such main extension has been completed, if the total actual cost thereof is less than the estimated costs, a refund of the difference shall be made to the applicant. If the actual cost is greater than the estimated cost, the applicant shall not be required to make any additional deposit. The actual costs shall also be used to determine all special assessments insofar as they are in accordance with K.S.A. 12-6a01 through 12-6a18, as amended.

(Ord. No. 33-198 § 1)

Sec. 17.12.290. Same—Title to mains vested in City.

Anything to the contrary herein provided notwithstanding, the full title, ownership and

right of exclusive possession to all mains installed under such deposit or special assessment arrangements pursuant to the extension plan, or otherwise, shall be vested in the City through its water department.
(Ord. No. 33-198 § 2)

Sec. 17.12.300. Same—Plans for extensions or enlargements to be submitted to planning department and City engineer.

In instances where he deems it necessary, the Director of Public Works & Utilities shall, before ordering any main extension or other enlargement of the City waterworks system, first submit plans therefor to the Wichita-Sedgwick County metropolitan area planning department for review and comment concerning the effort on contemplated future street, highway and other public improvements and to the City engineer for the establishment of the proper grade and location for the proposed installations which will conform to and avoid interferences with existing and future planned curbs, streets and drainage, and sewer facilities in the area.
(Ord. No. 23-872 § 1 (part) ; Ord. No. 49-403 § 39, 12-11-12)

Sec. 17.12.320. Penalty for violation of Sections 17.12.120, 17.12.130, 17.12.240 and 17.12.250.

Any person violating the provisions of Sections 17.12.120, 17.12.130, 17.12.240 or 17.12.250 shall, upon conviction be deemed guilty of a misdemeanor and fined in a sum of not more than one hundred dollars.
(Ord. No. 33-269 (part))

Sec. 17.12.330. Rules and regulations.

The Director of Public Works & Utilities is authorized to promulgate such rules and regulations as shall be reasonably necessary to carry out the provisions of this chapter according to its terms and intent.
(Ord. No. 33-269 (part); Ord. No. 49-403 § 40, 12-11-12)

CHAPTER 17.13. PERMANENT SPRAY IRRIGATION AND OUTDOOR WATER USE RESTRICTIONS*

Sec. 17.13.010. Definitions.
Sec. 17.13.020. Restrictions on watering.
Sec. 17.13.030. Restrictions on watering by spray irrigation.
Sec. 17.13.040. Variances.
Sec. 17.13.050. Violations and penalties.
Sec. 17.13.060. Application to wholesale customers.

Sec. 17.13.010. Definitions.

The following words and phrases, whenever used in this Chapter, shall be construed as defined in this section:

(A) "Customer" means a person or persons, firm, corporation, or governmental unit furnished potable water by the City of Wichita's water utility.

(B) "Customer premise" means the metered location at which a retail customer is furnished potable water by the City of Wichita's water utility.

(C) "Director" means the City's Director of Public Works and Utilities.

(D) "Retail customer" means the customer(s) of record on the water utility account at any given customer premise.

(D) "Variance" means an exception from the restrictions in this Chapter, applied for and granted through an online process as approved by the Director.

(E) "Water" means potable water furnished through the distribution system of the City of Wichita's water utility, and accordingly, does not include water drawn by customers from their own wells or water accumulated by customers from rainfall or natural storm runoff in rain barrels, cisterns, tanks, channels, basins, ponds or similar storage structures.

(F) "Watering" means outdoor use of water for irrigation, including irrigation with container, hose, drip or spray irrigation mechanisms.

(G) "Watering by spray irrigation" means a method of applying water through a network that may consist of pumps, valves, pipes, and sprinklers in a controlled manner so that it is distributed similar to rainfall.

(Ord. No. 52-840, § 2, 11-25-25)

Sec. 17.13.020. Restrictions on watering.

When no broader restrictions are in effect due to a drought emergency response, it shall nevertheless be unlawful for any customer to engage in or to permit another person to engage in watering at such customer's customer premises between the hours of 10:00 AM and 6:00 PM on any day.

(Ord. No. 52-840, § 3, 11-25-25)

Sec. 17.13.030. Restrictions on watering by spray irrigation.

When no broader restrictions are in effect due to a drought emergency response, it shall nevertheless be unlawful for any customer to engage in or to permit another person to engage in watering by spray irrigation at such customer's customer premises:

(a) Between the hours of 10:00 AM and 6:00 PM on any day;

(b) On a Monday;

(c) If the last numerical character in the address of the customer's metered customer premises is an odd number, on a Tuesday, Thursday or Saturday; and

(d) If the last numerical character in the address of the customer's metered customer premises is an even number, on a Wednesday, Friday or Sunday.

(Ord. No. 52-840, § 4, 11-25-25)

Sec. 17.13.040. Variances.

The Director is hereby authorized and directed to establish criteria for granting variances from

*__Editor's note—__Ord. No. 52-840, § 1, adopted Nov. 25, 2025, repealed the former Ch. 17.13, §§ 17.13.010—17.13.060, and enacted a new Ch. 17.13 as set out herein. The former Ch. 17.13 pertained to similar subject matter, and derived from Ord. No. 52-798, §§ 2—7, 8-26-25.

the restrictions in this chapter in cases where special circumstances attendant upon isolated and infrequent activity (such as seeding or sodding) may reasonably necessitate a limited period of daily watering by spray irrigation, and is further directed to establish an online application system by which customers can request such variances. Provided, however, no such variances may be granted when drought emergency restrictions are in effect.
(Ord. No. 52-840, § 5, 11-25-25)

Sec. 17.13.050. Violations and penalties.

(a) Upon violation of any water use restrictions imposed pursuant to Section 17-13.020 or Section 17.13.030 this chapter, written notice of the violation shall be affixed to the property where the violation occurred and the customer of record and any other person known to city enforcement personnel who is responsible for the violation or its correction shall be provided with either actual or mailed notice. Said notice shall describe the violation and order that it be corrected, cured or abated immediately or within such specified time as the city manager or the city manager's designee determines is reasonable under the circumstances. If the order is not complied with, the city manager or the city manager's designee may assess an administrative fee to the customer in accordance with the standards in subsection (b), below, subject to the following procedures:

(1) The city shall give the customer notice by mail or actual notice that an administrative fee will be assessed due to the violation and that the customer will have the opportunity to appeal the administrative fee by requesting a hearing scheduled before the city manager or a person designated as a hearing officer by the city manager;

(2) If such a hearing is requested by the customer charged with the violation by the specified date, he or she shall be given a full opportunity to be heard before the fee is assessed;

(3) The city manager or hearing officer shall make findings of fact and order whether a fee should be assessed;

(b) Upon the first violation of any water use restrictions imposed pursuant to Section 17.13.020 or Section 17.13.030 of this chapter, a written warning shall be issued. A second violation will result in an administrative fee of $50. Subsequent violations will be punishable with an administrative fee of $100 per violation.

(c) All administrative fees shall be subject to the same terms of payment that are set forth in Section 17.12.100 for regularly scheduled water meter charges, following the completion of the procedures in subsection (a), above.
(Ord. No. 52-840, § 6, 11-25-25)

Sec. 17.13.060. Application to wholesale customers.

Each customer that purchases water from the City of Wichita's water utility via a wholesale supply connection will be called upon to impose the foregoing water use restrictions and penalties upon the users of its system under its respective wholesale supply contract, as conservation measures adopted by the City of Wichita.
(Ord. No. 52-840, § 7, 11-25-25)

CHAPTER 17.14. WATER SUPPLY EMERGENCY*

Sec. 17.14.010. Purpose.
Sec. 17.14.020. Definitions.
Sec. 17.14.030. Declaration of drought stages.
Sec. 17.14.040. Stage 1 measures.
Sec. 17.14.050. Stage 2 measures.
Sec. 17.14.060. Stage 3 measures.
Sec. 17.14.070. Stage 4 measures.
Sec. 17.14.080. Regulations.
Sec. 17.14.090. Enforcement.
Sec. 17.14.100. Violations, disconnections and penalties.
Sec. 17.14.110. Emergency restriction and termination.
Sec. 17.14.120. Notification required with sprinkler systems.
Sec. 17.14.130. Exemptions—watering from wells—sign required.
Sec. 17.14.140. Severability.
Sec. 17.14.140A. Mandatory lawn watering rotation schedule.

Sec. 17.14.010. Purpose.

The purpose of this chapter is to provide for the actions in response to drought conditions and include the declaration of four stages of drought response. It also provides for the implementation of the drought response plan and voluntary and mandatory water conservation measures throughout the city in the event such a drought stage is declared.
(Ord. No. 49-585, § 1, 10-22-13)

Sec. 17.14.020. Definitions.

(a) "Customer," as the term is used in this chapter means the customer of record using water for any purpose from the city's water distribution system and for which a regular charge is made.

(b) "Drought response plan" shall be the city's drought action plan, as may be supplemented or amended from time to time, on file with the city clerk.

(c) "Outdoor water," as the term is used in this chapter includes, but is not limited to: any water used through an irrigation system, an outdoor hose, or hand watering container outside of a physical structure.

(d) "Water," as the term is used in this chapter, means water available to the city for treatment by virtue of its water rights or any treated water introduced by the city into its water distribution system.

(e) The following stages of drought response are established:

Stage 1: Triggered when the 12-month moving average of Cheney Reservoir's conservation pool level is between 70% and 89%.

Stage 2: Triggered when the 12-month moving average of Cheney Reservoir's conservation pool level is between 50% and 69%.

Stage 3: Triggered when the 12-month moving average of Cheney Reservoir's conservation pool level is between 35% and 50%.

Stage 4: Triggered when the 12-month moving average of Cheney Reservoir's conservation pool level is between 0% and 34%.

(f) For purposes of determining drought response stages, the term "conservation pool level" means the percentage of the conservation pool that is filled
(Ord. No. 49-585, § 1, 10-22-13)

Sec. 17.14.030. Declaration of drought stages.

The 12-month average of the conservation pool level in Cheney Reservoir is the basis for establishing drought stages, according to the levels provided in Section 17.14.020. The public works and utilities director shall monitor the lake level in Cheney Reservoir. When the 12-month moving average of Cheney's conservation pool level indicates the existence of a drought response stage in accordance with Section 17.14.020, the City Manager shall be empowered to issue a public declaration of such drought response stage. Should the lake level at Cheney Reservoir subsequently exceed the maximum threshold of Stage 1 as provided in Section 17.14.020, the City Manager shall be empowered to issue a public declaration that previously

*__Editor's note—__Ord. No. 49-585, §§ 1, 2, adopted Oct. 22, 2013, repealed the former Ch. 17.14, §§ 17.14.010—17.14.150A, and enacted a new Ch. 17.14 as set out herein. The former Ch. 17.14 pertained to the same subject matter. See the Code Comparative Table for complete derivation.

declared drought response measures are terminated. Factors that may be considered at the City Manager's discretion, but not all inclusive to the declaration of drought response stage include the utility's ability to reliably treat and deliver potable water, Cheney Lake levels, the condition of other available water supplies, emerging water demands and weather trends, shall be empowered to current conservation efforts, financial impacts and economic conditions.
(Ord. No. 49-585, § 1, 10-22-13; Ord. No. 52-508, § 1, 6-25-24)

Sec. 17.14.040. Stage 1 measures.

Upon the declaration of a Stage 1 drought response stage as provided in Section 17.14.030, the city manager will call on all water consumers to employ voluntary water conservation measures to limit or eliminate water use. The city shall offer incentives or rebates to encourage indoor and outdoor water conservation. The city shall implement conservation measures in its own operations, in accordance with the drought response plan.
(Ord. No. 49-585, § 1, 10-22-13)

Sec. 17.14.050. Stage 2 measures.

Upon the declaration of a Stage 2 drought response stage as provided in Section 17.14.030, the city manager will implement the mandatory water conservation measures set forth below. Food producing gardens utilizing drip irrigation or hand watering shall be Stage 2 exempt. Businesses that generate their core economic activity from usage of outdoor water shall be Stage 2 exempt. Such businesses include, but are not limited to, golf courses, car washes, nurseries, sod suppliers, and others identified by the city manager. The city shall implement water conservation measures in its own operations, including measures in the drought response plan and shifting some of the water allocation from Cheney Reservoir to other sources. Mandatory water conservation measures include the following and noncompliance by customers who are not Stage 2 exempt shall be subject to the penalties provided in Section 17.040.100:

(a) Restricting outdoor water usage to one day per week, in accordance with (b), below;

(b) Customers at real properties northwest of the Central & Broadway intersection may use outdoor water on Mondays; customers at real properties northeast of Central & Broadway may use outdoor water on Tuesdays; customers at real properties southwest of Central & Broadway may use outdoor water on Wednesdays; customers at real properties southeast of Central & Broadway may use outdoor water on Thursdays; no outdoor water can be used on Fridays, Saturdays, or Sundays by customers who are not Stage 2 exempt;

(c) Prohibiting all customers who are not Stage 2 exempt from using outdoor water from 10:00am until 8:00pm.

(Ord. No. 49-585, § 1, 10-22-13)

Sec. 17.14.060. Stage 3 measures.

Upon the declaration of a Stage 3 drought response stage as provided in Section 17.14.030, the city manager will prohibit all usage of outdoor water by customers who are not Stage 3 exempt. Food producing gardens utilizing drip irrigation or hand watering shall be Stage 3 exempt. Businesses that generate their core economic activity from usage of outdoor water shall be Stage 3 exempt. Such business include, but are not limited to, golf courses, car washes, nurseries, sod suppliers, and others identified by the city manager. The city shall implement water conservation measures in its own operations, in accordance with the drought response plan. Any use of outdoor water outdoors by customers who are not Stage 3 exempt shall be subject to the penalties provided in Section 17.040.100.
(Ord. No. 49-585, § 1, 10-22-13)

Sec. 17.14.070. Stage 4 measures.

Upon the declaration of a Stage 4 drought response stage as provided in Section 17.14.030, the city manager will implement mandatory water conservation measures for all customers, including prohibition of usage of outdoor water. No exemptions shall be provided from the prohibition on usage of outdoor water. The city shall implement all possible water conservation measures in its own operations. All customers,

except those specifically exempted below, are required to reduce their water usage by 15% from their Average Winter Consumption, as defined in Section 17.12.090, as it was most recently calculated as of the declaration of the Stage 4 drought response stage. Any noncompliance with the provisions of this section shall be subject to the penalties

provided in Section 17.040.100. The following customers are exempt from the requirement to reduce water usage by 15% from their Average Winter Consumption.

(a) Wesley Medical Center

(b) Galichia Heart Hospital

(c) Wesley West Hospital

(d) Via Christi Hospital - St. Francis

(e) Via Christi Hospital - St. Joseph

(f) Via Christi Hospital - St. Teresa

(g) Via Christi Rehabilitation Hospital

(h) Kansas Medical Center

(i) Robert J. Dole VA Medical Center

(j) Kansas Spine Hospital

(k) Select Specialty Hospital

(Ord. No. 49-585, § 1, 10-22-2013)

Sec. 17.14.080. Regulations.

During the effective period of any drought response stage as provided for in Section 17.14.030, the city manager is empowered to promulgate such regulations consistent with the provisions of this chapter as may be necessary to carry out and enforce the restrictions and penalties in effect for that drought response stage.

(Ord. No. 49-585, § 1, 10-22-2013)

Sec. 17.14.090. Enforcement.

Whenever a drought response stage is declared to exist as set forth in this chapter, in addition to all law enforcement officers, the following personnel employed by the city shall have the power to enforce the provisions of this chapter:

(a) Commissioned officers of the Wichita Fire Department;

(b) Parking control checkers;

(c) Traffic service officers;

(d) All deputies under the supervision of the director of the metropolitan area building and construction department;

(e) Any employee of the public works & utilities department as designated by the director.

Such personnel shall have the power of a law enforcement officer for the purpose of signing a complaint and serving such complaint and a notice to appear upon any person where there is probable cause to believe such person has or is violating a section of this chapter.

(Ord. No. 49-585, § 1, 10-22-2013)

Sec. 17.14.100. Violations, disconnections and penalties.

(a) Upon violation of any water use restrictions imposed pursuant to Sections 17.14.050, Section 17.14.060, or 17.14.070 of this chapter, written notice of the violation shall be affixed to the property where the violation occurred and the customer of record and any other person known to city enforcement personnel who is responsible for the violation or its correction shall be provided with either actual or mailed notice. Said notice shall describe the violation and order that it be corrected, cured or abated immediately or within such specified time as the city manager or the city manager's designee determines is reasonable under the circumstances. If the order is not complied with, the city manager or the city manager's designee may assess an administrative fee or restrict water service to the customer in accordance with the standards in subsection (b), below, subject to the following procedures:

(1) The city shall give the customer notice by mail or actual notice that an administrative fee will be assessed or water service will be restricted within a specified time due to the violation and that the customer will have the opportunity to appeal the administrative fee or restriction by requesting a hearing scheduled before the city manager or a person designated as a hearing officer by the city manager;

(2) If such a hearing is requested by the customer charged with the violation by the specified date, he or she shall be given a full opportunity to be heard before the fee is assessed or the restriction or termination is ordered;

(3) The city manager or hearing officer shall make findings of fact and order whether a fee should be assessed or service should continue or be restricted;

(4) In the event no hearing is requested by the specified date, full water service shall be reinstated when the city is no longer in a Stage 4 drought response stage, as provided in Section 17.14.100(e) and all administrative fees have been paid.

(b) Upon the first violation of any water use restrictions imposed pursuant to Section 17.14.050 of this chapter, a written warning shall be issued. A second violation will result in an administrative fee of $50. Subsequent violations will be punishable with an administrative fee of $100 per violation.

(c) Upon the first violation of any water use restrictions imposed pursuant to Section 17.14.060 of this chapter, a written warning shall be issued. A second violation will result in an administrative fee of $250. Subsequent violations will be punishable with an administrative fee of $500 per violation.

(d) Upon the first violation of the outdoor water prohibition imposed pursuant to Section 17.14.070 of this chapter, a written warning shall be issued. A second violation will result in an administrative fee of $250. Subsequent violations will be punishable with an administrative fee of $500 per violation and installation of a water flow restrictor. The flow restrictor will decrease the amount of water flowing through the meter to a customer and will not be removed until the city is no longer in a Stage 4 drought response stage.

(e) Upon the first violation of the required 15% reduction imposed pursuant to Section 17.14.070 of this chapter, a written warning shall be issued. A second violation will result in an administrative fee of $250. Subsequent violations will be punishable with an administrative fee of $500 per violation and installation of a water flow restrictor. The flow restrictor will decrease the amount of water flowing through the meter to a customer and will not be removed until the city is no longer in a Stage 4 drought response stage.

(f) All administrative fees shall be subject to the same terms of payment that are set forth in Section 17.12.100 for regularly scheduled water meter charges, following the completion of the procedures in subsection (a), above.

(g) In addition to disconnection/reconnection fees provided by Section 17.12.090, a fee of two hundred dollars shall be paid for the reconnection of any water service restricted pursuant to this chapter.
(Ord. No. 49-585, § 1, 10-22-2013)

Sec. 17.14.110. Emergency restriction and termination.

(a) Nothing in this chapter shall limit the ability of any properly authorized city official from restricting or terminating the supply of water to any or all customers upon the determination of such city official that emergency restriction or termination of water service is required to protect the health and safety of the public.
(Ord. No. 49-585, § 1, 10-22-2013)

Sec. 17.14.120. Notification required with sprinkler systems.

Installers of lawn watering irrigation or sprinkling water systems, upon installing a lawn watering irrigation or sprinkling system, shall provide a copy of this chapter to the owner of the lawn watering irrigation or sprinkling system.
(Ord. No. 49-585, § 1, 10-22-2013)

Sec. 17.14.130. Exemptions—watering from wells—sign required.

(a) Persons using water from a well for any class of use as defined in this chapter shall be exempt from the penalties of this chapter, pursuant to Section 17.14.130(b).

(b) To qualify for the exemption, persons using water from a well as set forth in subsection (a) shall, while engaged in such use(s), display a sign with the words "well water" upon it in a location that is readily visible to the general public.
(Ord. No. 49-585, § 1, 10-22-2013)

Sec. 17.14.140. Severability.

If any provision of this chapter is declared unconstitutional, or the application thereof to any person or circumstance is held invalid, the constitutionality of the remainder of the chapter and its applicability to other persons and circumstances shall not be affected thereby.
(Ord. No. 49-585, § 1, 10-22-2013)

Sec. 17.14.140A. Mandatory lawn watering rotation schedule.

(a) In addition to the other procedures of this chapter, and whether or not any drought response stage has been declared, the city council may establish mandatory restrictions on lawn watering for water conservation, water conservation education, or peak water use demand purposes. Such restrictions may include, but not be limited to, the establishment of a mandatory lawn watering rotation schedule.

Whenever the city council directs that mandatory restrictions on lawn watering be imposed, the city manager shall cause a notice of such restrictions to be given through the general news media and by publication in the official city newspaper. The restrictions shall be effective upon publication for the duration and in the manner set forth in the notice.

(b) Upon the imposition of mandatory restrictions under this section, any violation of the provisions of this section and the notice given under the authority of this section shall be deemed a misdemeanor. All enforcement and procedural provisions of Sections 17.14.090 and 17.14.100(a) apply to the provisions of this section, but the penalties for violation of the provisions of this section shall be an administrative fee of $250 per violation.
(Ord. No. 49-585, § 1, 10-22-2013)

CHAPTER 17.16. DEPARTMENT OF WATER AND WATER POLLUTION CONTROL

Sec. 17.16.010. Water department operation.
Sec. 17.16.020. Payment to city.
Sec. 17.16.030. Payments in lieu of other fees.
Sec. 17.16.040. Records required.

Sec. 17.16.010. Water department operation.

The department of water and water pollution control of the city, its successors and assigns (herein referred to as "water department"), shall continue to operate its water system and all business incidental to and connected with the conducting of a water utility business and system in the city. The waterlines and appurtenances used in or incident to the giving of water service and to the maintenance of a water system by the water department in the city shall remain as now constructed, subject to such changes as may be considered necessary by the city in the proper exercise of its inherent powers and by the water department in the conducting of its business, and the water department shall continue to exercise and maintain its water system along, across, on, over, through, above and under all the public streets, avenues, alleys, bridges and the public grounds and places within the limits of the city as the same from time to time may be established.
(Ord. No. 28-816 § 1)

Sec. 17.16.020. Payment to city.

For the year 1981, the water department shall pay to the city, in lieu of franchise taxes, an amount equal to five hundred forty thousand dollars. Each year thereafter, payment shall be five hundred sixty-six thousand dollars.
(Ord. No. 37-555)

Sec. 17.16.030. Payments in lieu of other fees.

The payments herein provided shall be in lieu of all other licenses, taxes, charges, fees or impositions which might be imposed by the city under authority conferred by law.
(Ord. No. 28-816 § 3)

Sec. 17.16.040. Records required.

The water department shall provide annually such records to establish an accounting of payments required as set out in Section 17.16.020 of this chapter.
(Ord. No. 28-816 § 4)

Title 18

BUILDING CODE*

Ch. 18.04. Reserved

Ch. 18.05. Reserved

Ch. 18.06. Reserved

Ch. 18.08. Reserved

Ch. 18.10. Board of Code Standards and Appeals

Ch. 18.12. Reserved

Ch. 18.14. Parking Lot Striping

Ch. 18.16. Dangerous and Unfit Buildings

Ch. 18.17. Casualty Insurance Proceeds (Fire Insurance Proceeds)

Ch. 18.24. Reserved

Ch. 18.32. Reserved

Ch. 18.36. Reserved

Ch. 18.40. Nonresidential Premises Standards

Ch. 18.44. Reserved

Ch. 18.45 Reserved

Ch. 18.50 Reserved

Ch. 18.51 Reserved

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*__Editor's note—__To ascertain the requirements for any contemplated building improvement, the zoning restrictions applicable to the location should first be determined. For these restrictions, see Title 28 of this Code.

__Cross references—__As to billboards and sign devices, see Title 24. As to awnings, canopies and marquees generally, see Title 23; As to sewers, sewage disposal and drains, see Title 16; As to approval of trailer before connection with city sewer, see § 16.04.200; As to electric wiring, see Title 19; As to plumbing and gas fitting regulations, see Title 21; As to refrigeration, air conditioning and warm air heating, see Title 22.

CHAPTER 18.04. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.04, § 18.04.020. The former Ch. 18.04 pertained to Uniform Building Code and derived from Ord. No. 45-794, § 2; Ord. No. 41-498, § 2. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.05. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.05. The former Ch. 18.05 derived from Ord. No. 45-199, §§ 1—78, 80—119; Ord. No. 45-381, §§ 1, 4, 6—12; Ord. No. 46-578, §§ 1, 3—26; Ord. No. 47-548, § 134, adopted August 21, 2007. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.06. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.06. The former Ch. 18.06 derived from Ord. No. 45-199, §§ 120—154; Ord. No. 45-381, §§ 13—16; Ord. No. 46-248, § 1; Ord. No. 47-549, § 75, adopted August 21, 2007. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.08. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.08, §§ 18.08.010—18.08.033. The former Ch. 18.08 pertained to permits and derived from Ord. No. 41-502, § 2; Ord. No. 45-199, §§ 155—157; Ord. No. 41-502, §§ 1, 3; Ord. No. 47-550, § 1, adopted August 21, 2007; Ord. No. 48-881, § 1, October 26, 2010. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.10. BOARD OF CODE STANDARDS AND APPEALS

Sec. 18.10.010. Creation of Board of Code Standards and Appeals.
Sec. 18.10.020. Board of Code Standards and Appeals—Advisory agency.
Sec. 18.10.030. Board of Code Standards and Appeals—Meetings.
Sec. 18.10.040. Board of Code Standards and Appeals—Powers.

Sec. 18.10.010. Creation of Board of Code Standards and Appeals.

(a) The Board of Code Standards and Appeals is hereby created and shall consist of the Director of the Metropolitan Area Building and Construction Department (Director) or the duly authorized representative, who shall serve as the secretary for the Board, and nine other members, as follows:

(1) One architect (appointed by the City);

(2) One architect (appointed by the County);

(3) One structural engineer (appointed by the City);

(4) One Class A contractor (appointed jointly);

(5) One Class B Contractor (appointed by the County);

(6) One Class C Contractor (appointed by the City);

(7) One member representing real estate (appointed by the County);

(8) One public at large member (appointed by the City);

(9) One public at large member (appointed by the County).

The Board shall elect a chairperson and make such rules as are necessary to conduct the Board's business.

(b) All appointments shall comply with the provisions of Article 1, Section 5 of the Unified Building and Trade Code.
(Ord. No. 52-861, § 1, 12-16-25)

Sec. 18.10.020. Board of Code Standards and Appeals—Advisory agency.

The Board of Code Standards and Appeals shall act in an advisory capacity to the City Council in the amending and revision of housing, building and maintenance codes, act as the appeals board from decisions resulting from informal hearings conducted by the Director of Metropolitan Area Building and Construction Department/Code Official and to review any decision, finding, order or interpretation by the Director.
(Ord. No. 52-861, § 2, 12-16-25)

Sec. 18.10.030. Board of Code Standards and Appeals—Meetings.

The Board shall adopt reasonable procedures, provided such procedures are not inconsistent with this Code or state law, for conducting its meetings and investigations and shall render all decisions and findings in writing to the Director with a duplicate copy to the appellant, and as otherwise provided.
(Ord. No. 52-861, § 3, 12-16-25)

Sec. 18.10.040. Board of Code Standards and Appeals—Powers.

The Board of Code Standards and Appeals conducting hearings as provided in this Code:

1. Has the authority to administer oaths, affirmations, examine witnesses, and receive evidence;

2. May consider the findings of the Director and fire inspector as to facts, if supported by conclusive evidence;

3. The rules of evidence are not controlling in hearings before the Board;

4. In a hearing on an appeal from the Director's informal hearings, the Board may sustain, modify, or withdraw the Director's order depending upon its finding as to whether the standards of the Code have been complied with;

5. The Director, Fire Chief, and the City Attorney, or their designated representa-

tives, may attend all Board meetings and advise and consult with the Board in matters pertaining to the enforcement of all applicable codes; and

6. The Board shall keep minutes of its proceedings, showing the vote of each member upon each question, or if absent or failing to vote, indicate such fact and shall keep a record of its meeting and other official actions, all of which shall be a public record.

(Ord. No. 52-861, § 4, 12-16-25)

CHAPTER 18.12. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.12, §§ 18.12.010—18.12.170. The former Ch. 18.12 pertained to contractors and derived from Ord. No. 28-251 § 15; Ord. No. 41-942 § 1; Ord. No. 41-502 §§ 4, 5, 12, 15, 16; Ord. No. 41-951 §§ 1—3; Ord. No. 42-574 §§ 2, 3; Ord. No. 43-564 §§ 1—5, 7—9; Ord. No. 43-888 § 56; Ord. No. 44-121 §§ 1—3; Ord. No. 45-199 § 158; Ord. No. 47-856, §§ 1, 2, adopted March 25, 2008. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.14. PARKING LOT STRIPING

Sec. 18.14.010. Parking lot striping defined.
Sec. 18.14.020. Responsibilities.
Sec. 18.14.030. Striping contractor's license—When required.
Sec. 18.14.040. Qualifications of applicant to be shown—Bond required.
Sec. 18.14.050. Application; fee.
Sec. 18.14.060. Suspension and subsequent revocation of license—Notice of hearing.
Sec. 18.14.070. Requirements to stripe; striping without a license.
Sec. 18.14.080. Enforcement.
Sec. 18.14.090. Remediation.
Sec. 18.14.100. Service of notice to appear.
Sec. 18.14.110. Penalty.

Sec. 18.14.010. Parking lot striping defined.

Parking lot striping, within the meaning of this Chapter, is the use of any material on the lot surface to install, alter, repair, or modify the layout and arrangement of parking stalls within a parking lot. Parking lot striping also includes any work done if such work alters signage or other aspect of existing accessible parking to be in violation of statute, ordinance, or code requirement. The regulations of this Chapter apply to any parking lot, whether on public or private property, if the parking lot is available for use by, or rent to, the general public.
(Ord. No. 49-524, § 1, 6-25-2013)

Sec. 18.14.020. Responsibilities.

(a) Nothing in this Section shall be interpreted to require modification of any existing parking lot beyond parking lot striping as defined in this Chapter.

(b) Because no building permit is required, nothing in this Section shall be interpreted to require improvements to the accessible path of travel or the parking surface.

(c) For any new construction, reconstruction, resurfacing, resealing, mill-and-overlay, or restriping of any existing parking lot, accessible parking spaces shall be 132 inches wide minimum and shall have an adjacent access aisle 60 inches wide minimum; provided, however, that where such striping is not readily achievable as defined in 28 CFR § 36.104, the ADA Coordinator may grant a waiver in writing to allow the striping to provide for an accessible parking space 96 inches wide minimum with an adjacent access aisle 96 inches wide minimum or other equivalent facilitation.

(d) Accessible parking spaces that complied with the 1991 ADAAG Standards and Sec. 18.14.020 effective July 1, 2008, are not required to be restriped in order to comply with Sec. 18.14.020(a), unless parking lot striping is performed on the lot.

(e) All accessible parking signage shall consist of, at a minimum, signage compliant with the Federal "Manual on Uniform Traffic Control Devices," such as the R7-8 "Reserved Parking" sign. Such sign shall be at least 12 inches wide and 18 inches tall. Such sign shall contain the international symbol of accessibility in blue on white and shall contain wording as to designate the stall as reserved for accessible parking.

(f) Parking lot striping shall be consistent with the Federal Manual on Uniform Traffic Control Devices, except that striping of parking stalls may be either white or yellow, whichever provides better contrast. The international symbol of accessibility may, when striped on the parking lot stall, be either white or yellow.

(g) Accessible parking spaces shall be located on the shortest possible accessible route of travel from adjacent parking to an accessible building entrance. In parking facilities that do not serve a particular building, accessible parking spaces shall be located on the shortest accessible route to an accessible pedestrian entrance to the parking facility. Where buildings have multiple accessible entrances with adjacent parking, accessible parking spaces shall be dispersed and located near all accessible entrances. In no case shall the provisions of Section 208 of the Department of Justice's current ADA Standards for Accessible Design, 28 CFR 35.151, be reduced or eliminated.

(h) Nothing in this Section shall be interpreted to permit striping of accessible parking spaces less stringent than that provided for in current ADA Standards for Accessible Design and 28 CFR Parts 35 and 36 or to reduce any obligation of the

owner, renter, general contractor, subcontractor, or any other agent under any other applicable law, rule, or ordinance.
(Ord. No. 49-524, § 2, 6-25-2013)

Sec. 18.14.030. Striping contractor's license—When required.

Any person or entity, whether as principal, agent, or employee, engaged in the business of striping a parking lot in the City of Wichita shall be required to obtain a striping contractor's license from the City Engineer's Office. When striping is performed by or under the direct supervision of a property owner or renter, or such owner's or renter's agent, such individual shall be deemed to be a licensed striping contractor for the purposes of striping such property.
(Ord. No. 49-524, § 3, 6-25-2013)

Sec. 18.14.040. Qualifications of applicant to be shown—Bond required.

(a) Before any striping contractor's license is issued, the applicant therefore shall have filed with the City Engineer's Office a surety bond in the amount of $5,000.00 which shall be approved as to form by the City Attorney. The condition of such bond shall be that the principal therein shall comply with all ordinances of the City relating to and regulating the striping of parking lots, and hold and save the City harmless from any and all damage to persons or property resulting from or growing out of any action or inaction by the principal therein.

(b) Prior to application, the person applying for the license shall pass a comprehensive exam covering ADA standards for accessible parking developed by the City Engineer's Office and the ADA Coordinator.

(c) No striping contractor's license or renewal thereof shall be granted to:

1. Any person who is not a citizen of the United States or in possession of a valid United States Permanent Residence Card, or an entity, if it does not have such a qualified person as a member or controlling shareholder;
2. Any person who has his license revoked for cause under the provisions of the City's Building Code or Wichita-Sedgwick County Unified Zoning Code;
3. Any person who is not at least 18 years of age;
4. Any person, who at the time of application for renewal of any license issued hereunder, would not be eligible for such license upon a first application;
5. Any person or entity who is unable to provide documentation that the applicant has satisfactorily completed the licensing exam for ADA Standards for accessible parking;
6. Any person who has failed to comply with a remediation agreement under Section 18.14.090.

(d) No bond shall be required if the striping is performed by or under the direct supervision of the property owner or renter or such property's owner's or renter's agent.
(Ord. No. 49-524, § 4, 6-25-2013)

Sec. 18.14.050. Application; fee.

(a) All persons shall make application for a striping contractor's license with the City Engineer's Office. The application for such license will be made on forms provided by the City Engineer's Office and shall be in writing and contain, at a minimum, the following information:

1. The full name and place of residence of the applicant. If the applicant is a sole proprietor, partnership, or limited liability company, the application shall give the full name, including all previous names and aliases, and the places of residence of the applicant, including each partner or member. If the applicant is a corporation, the applicant shall give the name and addresses of each stockholder possessing 20 percent or more of the stock of the corporation;
2. The name and address under which the applicant intends to conduct his/her business;

3. Proof the applicant has filed a bond with the City Engineer's Office as required in Section 18.14.040(a);

4. A copy of the applicant's workers compensation insurance policy or proof of waiver with statutorily required coverage;

5. Documentation that the applicant, all employees of the applicant or other persons who intend to participate in parking lot striping for the applicant's service have satisfactorily met all the requirements of Section 18.14.040.

(b) A striping contractor's license shall be issued for one year. The fee shall be $100.00, paid at the time of application. No fee shall be required if the striping is performed by or under the direct supervision of the property owner or renter.

(c) The City Engineer's Office shall develop any additional rules and regulations necessary for the issuance or annual renewal of striping contractors' licenses.
(Ord. No. 49-524, § 5, 6-25-2013)

Sec. 18.14.060. Suspension and subsequent revocation of license—Notice of hearing.

(a) Upon five business days' written notice served by first-class mail or personal delivery to the person holding a striping contractor's license, or to the striping contractor's agent at the site of the striping, the City Engineer or the City Engineer's designee shall have the authority to suspend such license for a period not to exceed 90 days, for any violation of the provisions of this Chapter.

(b) The City Engineer may suspend a license on the following conditions:

1. A willful, deliberate, or continual disregard and violation of any provision of the Wichita City Code, the Wichita-Sedgwick County Zoning Code, or failure to comply with any lawful order of the ADA Coordinator or the City Engineer;

2. Misrepresentations of a material fact submitted to the City of Wichita during the application process in obtaining a license;

3. Failure to pay the annual license fee;

4. Failure to maintain the eligibility requirements for a license;

5. Failure to maintain a current valid mailing address with the City Engineer's Office.

(c) Unless remedied within 30 days, a suspended license shall be revoked. The City Engineer shall give separate notice of such revocation. No new license shall be issued to such licensee, or to any person acting for or on his or her behalf, for a period of at least three years after revocation.

(d) The licensee may appeal such an order of suspension or revocation in writing to the City Council within 30 days from the date of such order. An appeal taken from an order of suspension or revocation shall not suspend the order of revocation or suspension during the pendency of such appeal. Any appeal from a decision of the City Council shall be heard pursuant to K.S.A. 60-2101(d).

(e) No striping work shall be performed by any licensed striping contractor who has received notice of suspension or revocation.
(Ord. No. 49-524, § 6, 6-25-2013)

Sec. 18.14.070. Requirements to stripe; striping without a license.

(a) The property owner, renter, general contractor, subcontractor, and any other agent striping a parking lot or causing such striping to be performed shall require any parking lot striping work to be performed by a striping contractor licensed under this Chapter.

(b) When striping begins, the striping contractor shall post a conspicuous notice at the location to be striped, to remain conspicuous for no less than seven days after striping is completed. The notice shall be in a form prescribed by the ADA Coordinator and shall contain, at a minimum, the striping contractor's name and license number or, if the striping contractor is the property owner or renter, the notice shall contain that entity's contact information. Alternatively, the striping contractor may submit a list of lots striped to the

City's ADA Coordinator within seven days containing such information required in the above notice.

(c) It is unlawful for any person to perform parking lot striping in the City without being a licensed striping contractor or to fail to place a conspicuous notice under 18.14.070(b).
(Ord. No. 49-524, § 7, 6-25-2013)

Sec. 18.14.080. Enforcement.

Any person may file a complaint alleging new parking lot striping does not conform to either the provisions of Section 18.14.020 or the current ADA Standards for Accessible Design with the City's ADA Coordinator; such complaint need not be in writing. The City's ADA Coordinator shall then investigate, and if probable cause exists to support the complaint, issue a citation and notice to appear pursuant to Section 18.14.100 or enter into a remediation agreement pursuant to Section 18.14.090.
(Ord. No. 49-524, § 8, 6-25-2013)

Sec. 18.14.090. Remediation.

(a) The City's ADA Coordinator may enter into a remediation agreement with the person or entity responsible for performing or causing to be performed non-compliant striping. Such agreement will require the curing of any parking lot striping defects and make arrangements for an inspection to assure compliance, all at such responsible party's expense. Such agreement may further require the responsible party to complete an educational program administered by the ADA Coordinator or the Coordinator's agent.

(b) It is unlawful to fail to follow such remediation agreement.

(c) Prosecution for failure to follow a remediation agreement shall be prosecuted without regard to any remediation action previously taken.
(Ord. No. 49-524, § 9, 6-25-2013)

Sec. 18.14.100. Service of notice to appear.

The City's ADA Coordinator shall, at all times, be empowered to enforce the provisions of this Chapter and other accessible parking ordinances. Such authority shall include the enforcement authority to issue citations for violations of this Chapter and for violations of Section 11.52.020(25). Citations and notices to appear issued under this Section shall:

(a) Particularize the violation alleged to exist or to have been committed or state a remediation agreement has been breached;

(b) Be addressed to and served upon the striping contractor or, when striping has not been performed by a striping contractor, the property owner, or renter. A striping contractor may be served at the address provided on the most recent contractor license application on file with the City of Wichita. The property owner may be served at the property owner's mailing address on record with Sedgwick County. A renter may be served at the address serviced by the lot striped.

(Ord. No. 49-524, § 10, 6-25-2013)

Sec. 18.14.110. Penalty.

Any person violating any of the provisions of this Chapter shall, upon conviction, be punished by a fine of not more than $1,000.00 or by imprisonment for not more than 30 days or by both such fine and imprisonment.
(Ord. No. 49-524, § 11, 6-25-2013)

CHAPTER 18.15. WICHITA/SEDGWICK UNIFIED BUILDING AND TRADE CODE

Sec. 18.15.010. Incorporated by reference.

Sec. 18.15.010. Incorporated by reference.

The Wichita/Sedgwick Unified Building and Trade Code is by reference incorporated in and by this publication made part of this title and chapter as fully as though set out at length herein and is adopted as the building and trade regulations for the City of Wichita.
(Ord. No. 49-404, § 1, 12-11-2012)

CHAPTER 18.16. DANGEROUS AND UNFIT BUILDINGS

Sec. 18.16.010. Central inspection division.
Sec. 18.16.020. Unsafe buildings defined—Nuisance—Hearing.
Sec. 18.16.030. Posting of notice.
Sec. 18.16.040. Defects deemed unsafe.
Sec. 18.16.050. Resolution to repair or remove.
Sec. 18.16.060. Owner to pay permit fee.
Sec. 18.16.070. Failure of owner to remove.
Sec. 18.16.080. Assessment to pay costs.
Sec. 18.16.090. Action without notice.
Sec. 18.16.100. Waiver of special assessments imposed for the costs to raze and remove a dangerous and unsafe structure.

Sec. 18.16.010. Central inspection division.

There is hereby established in the Cty of Wichita the "central inspection division" which shall be under the jurisdiction of the superintendent of central inspection who is hereby designated as the building official.
(Ord. No. 28-251 § 3)

Sec. 18.16.020. Unsafe buildings defined—Nuisance—Hearing.

All buildings or structures which are structurally unsafe or not provided with adequate egress, or which constitute a fire hazard, or are otherwise dangerous to human life, or which in relation to existing use constitute a hazard to safety or health or public welfare, by reason of inadequate maintenance, dilapidation, obsolescence, fire hazard, or abandonment, as specified in this code or any other effective ordinance, are, for the purpose of this section, unsafe buildings. All such unsafe buildings are declared to be public nuisances and shall be abated as hereinafter provided. Whenever the central inspection superintendent shall file with the governing body a statement in writing that any structure, describing the same and where located, is unsafe or dangerous the governing body shall, by resolution, fix a time and place at which the owner, his agent, any lienholder of record and any occupant of such structure may appear and show cause why such structure should not be condemned and ordered repaired or demolished. Such resolution shall be published once each week for two consecutive weeks on the same day of each week. At least thirty days shall elapse between the last publication and the date set for the hearing. A copy of the resolution shall be mailed by certified mail within three days after its first publication to each owner, agent, lienholder and occupant, at his or its last known place of residence, and shall be marked "deliver to addressee only."
(Ord. No. 41-236 § 1)

Sec. 18.16.030. Posting of notice.

Upon filing of such statement in writing with the governing body, the central inspection superintendent shall place a notice on the particular buildings or structures found by him to be unsafe or dangerous, reading as follows:

> "This building has been found to be unsafe or dangerous by the central inspection superintendent of the city of Wichita. This notice is to remain on this building until it is repaired or demolished in accordance with the notice which has been given the owner, his agent, any lienholder of record, and any occupant of this building."

(Ord. No. 28-251 § 5)

Sec. 18.16.040. Defects deemed unsafe.

All buildings or structures or portions thereof which have any or all of the following defects shall be deemed dangerous buildings:

(a) Those structurally unsafe and liable to fall or collapse or those having vertical structural members or supports that lean, list or buckle to an extent that safety is questionable.

(b) Those which show thirty-three percent or more of damage or deterioration of the supporting members or fifty percent or more of damage or deterioration of the nonsupporting enclosing or outside walls or covering.

(c) Those which have improperly distributed loads upon the floors or roof or in which the same are overloaded or which have insufficient to be reasonably safe for the purpose used.

(d) Those which have been damaged by fire, wind, want of repair, or other causes so as to have become dangerous to life, safety, morals or the general health and welfare of the occupant or the people of the city.

(e) Those which have become or are so dilapidated, decayed, unsafe, unsanitary or which so utterly fail to provide the necessities to decent living that they are unfit for human habitation, or are likely to cause sickness or disease, so as to work injury to the health, morals, safety or general welfare of those living therein.

(f) Those having light, air, and sanitation facilities which are inadequate to protect the health, safety or general welfare of human beings who live or may live therein.

(g) Those having inadequate facilities for egress in case of fire or panic or those having insufficient stairways, fire escapes, elevators or other means of communications.

(h) Those having parts thereof which are so attached that they may fall and injure other property or the public.

(i) Those open to unauthorized persons or those permitted to be attractive to loiterers, vagrants, or children.

(j) Those whose use, equipment or want of good housekeeping constitutes a decided fire or safety hazard to the property itself or its occupants or which presents a decided fire or safety hazard to surrounding property or a menace to the public safety and general welfare.

All dangerous buildings within the terms of the foregoing provisions are hereby declared to be public nuisances and shall be repaired or demolished as herein provided.
(Ord. No. 28-251 § 6)

Sec. 18.16.050. Resolution to repair or remove.

On the date set for hearing or any adjournment thereof, the governing body shall hear all evidence submitted by the owner, his agent, lienholders of record, and occupants having an interest in such structure, as well as evidence submitted by the central inspection superintendent, and shall make findings by resolution. If the governing body of the city shall find that such structure is unsafe or dangerous, such resolution shall direct the structure to be repaired or removed and the premises made safe and secure. Such resolution shall be published once in the official city paper and a copy mailed to the owners, agents, lienholders of record and occupants in the same manner provided for the notice of hearing. The resolution shall fix a reasonable time within which the repair or removal of such structure shall be commenced and a statement that if the owner of such structure fails to commence the repair or removal of such structure within the time stated or fails to diligently prosecute the same until the work is completed, the governing body will cause the structure to be razed and removed.
(Ord. No. 28-251 § 7)

Sec. 18.16.060. Owner to pay permit fee.

The owner of any building or other structure to be demolished or removed from its location shall comply with the pertinent provisions of the building code and pay or cause to be paid a wrecking permit fee. Upon removing such structure, the owner, wrecker or licensed contractor shall seal the sanitary sewer connection in the manner set forth in Section 10.24.130 of the City Code. In addition, the owner or licensed contractor shall fill any basement or other excavation located upon the premises and take such other action necessary to leave the premises in a safe condition.
(Ord. No. 28-251 § 8)

Sec. 18.16.070. Failure of owner to remove.

If the owner of any structure has failed to commence the repair or removal of such structure within the time stated in the resolution or has failed to diligently prosecute the same thereafter, the central inspection superintendent may proceed to raze and remove such structure, make the premises safe and secure, or let the same to contract. The central inspection superintendent shall keep an account of the cost of such work and may sell the salvage from such structure and

apply the proceeds or any necessary portion to pay the cost of removing such structure and making the premises safe and secure. All moneys in excess of that necessary to pay such costs shall, after the payment of all costs, be paid to the owner of the premises upon which the structure was located. If there is no salvage material or if moneys received from the sale of salvage is insufficient to pay the cost of such work, such costs or any portion thereof in excess of the amount received from the sale of salvage shall be assessed as a special assessment against the lot or parcel of land on which the structure was located and the city clerk shall at the time of certifying other city taxes, certify the unpaid portion of the aforesaid costs and the county clerk shall extend the same on the tax rolls of the county against the lot or parcel of land.

Whenever any structure shall be removed from any premises under the provisions of this chapter, the city clerk shall certify to the county assessor that such structure, describing the same, has been so removed.
(Ord. No. 30-293 § 1; prior Ord. No. § 28-251 § 9)

Sec. 18.16.080. Assessment to pay costs.

In the event there is no salvage material growing out of the razing and removal of such building or structure as provided above, or if the moneys received from the sale of salvage is insufficient to pay the costs of the work, such costs or any portion thereof in excess of that received from the sale of salvage may be financed until the assessment is paid out of the general fund, or by issuance of no-fund warrants. Whenever no-fund warrants are issued hereunder, a tax levy shall be made at the first tax levying period for the purpose of paying such warrants and the interest thereon. All such tax levies shall be in addition to all other levies authorized or limited by law and shall not be subject to the aggregate tax levy prescribed in K.S.A., Article 19 of Chapter 79, and amendments thereto. Such warrants shall be issued, registered, redeemed, and bear interest in the manner and in the form prescribed by K.S.A. 79-2940, except they shall not bear the notation required by said section and may be issued without the approval of the state board of tax appeals. All moneys received from special assessments levied under the provisions of this section shall, when and if paid, be placed in the general fund of the city.
(Ord. No. 28-251 § 10)

Sec. 18.16.090. Action without notice.

When in the opinion of the central inspection superintendent any structure is in such condition as to constitute an immediate hazard requiring immediate action to protect the public, such officer may erect barricades or cause the property to be vacated, taken down, repaired, shored or otherwise made safe without delay and such action may, under such circumstances, be taken without prior notice to or hearing of the owners, agents, lienholders and occupants. The cost of any such action shall be assessed against the property and paid in the manner provided above.
(Ord. No. 28-251 § 11)

Sec. 18.16.100. Waiver of special assessments imposed for the costs to raze and remove a dangerous and unsafe structure.

In order to enhance the possibility that certain properties within the city of Wichita will be developed or rehabilitated, the waiver of the City's special assessments for lot clean-up, mowing, board-up, and liens from judgments is hereby authorized. In order to obtain a waiver of said special assessments, an applicant must file a completed application form provided by the City Treasurer with the City Treasurer's Office. The applicant will establish all of the following requirements in order for the assessment to be waived: (1) The applicant must have a 501(c)(3) designation and have had such designation for at least five years; (2) the real property upon which the waiver is being requested must be located within the City of Wichita's designated Local Investment Area; (3) the new or rehabilitated home must be sold to an individual or individuals who will occupy the home as his/her/their primary residence, and (4) the new or rehabilitated home must be sold by the applicant to an individual or individuals with a gross annual household income between 30—80 percent of the median income for Sedgwick County, Kansas. Following approval of the application by the City Treasurer's Office, it

will be presented to Council for consideration. Upon review and approval by the City Council, the assessments shall be waived and the appropriate documentation forwarded to the Sedgwick County Appraiser's Office by the City Treasurer. If the application is denied by the City Treasurer's Office, the applicant shall have the right of appeal from the denial by filing a written request with the City Clerk within ten days of the denial. The hearing on such appeal shall be heard by the City Council.
(Ord. No. 49-885, § 1, 11-25-14)

CHAPTER 18.17. CASUALTY INSURANCE PROCEEDS (FIRE INSURANCE PROCEEDS)

Sec. 18.17.010. Scope and application.
Sec. 18.17.020. Lien created.
Sec. 18.17.030. Encumbrances.
Sec. 18.17.040. Procedure.
Sec. 18.17.050. Fund created; deposit of moneys.
Sec. 18.17.060. Removal of structure; disposition of funds.
Sec. 18.17.070. Repair of structure; disposition of funds.
Sec. 18.17.080. Effect upon insurance policies.
Sec. 18.17.090. Insurers; liability.
Sec. 18.17.100. Insurance proceeds; proof of repairing or rebuilding.
Sec. 18.17.110. Failure to pay insurance proceeds or to obtain a certificate in lieu of payment proceeds.

Sec. 18.17.010. Scope and application.

Except as otherwise specified below, the City is hereby authorized to utilize the procedures established by K.S.A. 40-3901 *et seq.,* such that if fire, explosion, windstorm, or other casualty causes damage to a building or structure that is covered by insurance and the covered claim payment is in excess of seventy-five percent (75%) of the face value of the policy covering the building or structure, then the insurance provider shall be required to pay to the City an amount not to exceed fifteen percent (15%) of the proceeds of such policy, as set forth in this Chapter.
(Ord. No. 52-862, § 1, 12-16-25)

Sec. 18.17.020. Lien created.

The City Council creates a lien in favor of the City on the proceeds of any insurance policy based upon a covered claim payment made for damage or loss to a building or other structure located within the City, where the amount recoverable for all the loss or damage to the building or other structure under all policies is in excess of seventy-five percent (75%) of the face value of the policies covering such building or other insured structure. The lien arises upon any unpaid tax, special ad valorem levy, or any other charge imposed upon real property by or on behalf of the city which is an encumbrance on real property, whether or not evidenced by written instrument, or such tax, levy, assessment, expense or other charge that has remained undischarged for at least one year prior to the filing of a proof of loss.
(Ord. No. 52-862, § 2, 12-16-25)

Sec. 18.17.030. Encumbrances.

Prior to final settlement on any claim, the insurer shall contact the City Treasurer to determine whether any such encumbrances are presently in existence. If the same are found to exist, the insurer shall execute and transmit in an amount equal to that owing under the encumbrances a draft payable to the City Treasurer.
(Ord. No. 52-862, § 3, 12-16-25)

Sec. 18.17.040. Procedure.

The following procedure shall apply in the implementation of this section:

(a) When final settlement on a covered claim has been agreed to or arrived at between the named insured and the insurer, and the final settlement exceeds seventy-five percent (75%) of the face value of the policy covering any building or other insured structure, and when all amounts due the holder of a first real estate mortgage against the building or other structure, pursuant to the terms of the policy and endorsements thereto, shall have been paid, the insurance company shall execute a draft payable to the City Treasurer in an amount equal to the sum of fifteen percent (15%) of the covered claim payment, unless the Director of the Metropolitan Area Building and Construction Department (Director) or other designated official of the city has issued a certificate to the insurance company that the insured has removed the damaged building or other structure, as well as all associated debris, or repaired, rebuilt, or otherwise made the premises safe and secure in compliance with all applicable building, housing and health codes of the City of Wichita.

(b) Such transfer of funds shall be on a pro rata basis by all companies insuring the

building or other structure. Policy proceeds remaining after the transfer to the City shall be disbursed in accordance with the policy terms.

(c) Upon the transfer of the funds as required by this section, the insurance company shall provide the City with the name and address of the named insured, the total insurance coverage applicable to the building or other structure, and the amount of the final settlement agreed to or arrived at between the insurance company or companies and the insured. The City Treasurer shall then notify the MABCD Director, or his designee, that fire insurance proceeds have been received and are deposited. This notification shall include the name of the insured, date of loss, claim number, amount of proceeds and any of the insured's contact information made available by the insurance company.

(Ord. No. 52-862, § 4, 12-16-25)

Sec. 18.17.050. Fund created; deposit of moneys.

(a) The City Treasurer is authorized and shall create a fund to be known as the "Insurance Proceeds Fund." All money received by the City Treasurer as provided for by this section shall be placed in the fund and deposited in an interest-bearing account.

(b) Upon receipt of such funds, the City Treasurer shall immediately notify the Director or other designated code official or enforcing officer of the receipt, and transmit all documentation received from the insurance company to such official.

(Ord. No. 52-862, § 5, 12-16-25)

Sec. 18.17.060. Removal of structure; disposition of funds.

If the Director or other designated code official or enforcing officer, with regard to a building or other structure damaged, determines that it is necessary to act under K.S.A. 12-1750 *et seq.*, any proceeds received by the City Treasurer under the authority of this Chapter relating to that building or other structure shall be used to reimburse the city for any expenses incurred by the City in proceeding under K.S.A. 12-1750 *et seq*. Upon reimbursement from the insurance proceeds, the Director or other designated code official or enforcing officer shall immediately affect the release of the lien resulting therefrom. Should the expenses incurred by the City exceed the insurance proceeds paid over to the City Treasurer under this Chapter, the Director or other designated code official or enforcing officer shall publish a new lien as authorized by K.S.A. 12-1750 *et seq.*, in an amount equal to such excess expenses incurred.

(Ord. No. 52-862, § 6, 12-16-25)

Sec. 18.17.070. Repair of structure; disposition of funds.

If the property owner of a building or other structure damaged by fire, explosion, windstorm, or other casualty determines, in conjunction with the Director or other designated code official or enforcing officer, determines that it is feasible to repair and rehabilitate the structure, rather than to raze it, funds shall be released after repairs are substantially and properly completed in accordance with applicable building, housing and health codes of the City of Wichita including the proper permitting and inspection of any work completed.

(Ord. No. 52-862, § 7, 12-16-25)

Sec. 18.17.080. Effect upon insurance policies.

This Chapter shall not make the City a party to any insurance contract, nor is the insurer liable to any party for any amount in excess of the proceeds otherwise payable under its insurance policy.

(Ord. No. 52-862, § 8, 12-16-25)

Sec. 18.17.090. Insurers; liability.

Insurers complying with this section or attempting in good faith to comply with this section shall be immune from civil and criminal liability and such action shall not be deemed in violation of K.S.A. 40-2404 and any amendments thereto, including withholding payment of any insurance

proceeds pursuant to this section, or releasing or disclosing any information pursuant to this section.
(Ord. No. 52-862, § 9, 12-16-25)

Sec. 18.17.100. Insurance proceeds; proof of repairing or rebuilding.

In lieu of the payment of insurance proceeds, the insured may present satisfactory proof to the Director or other designated code official or enforcing officer that the insured has or will remove debris and repair, rebuild or otherwise make the premises safe and secure in compliance with all applicable building, housing and health codes of the City of Wichita.

Upon presentation of such sufficient evidence, the Director or other designated code official or enforcing officer, along with the City Clerk, shall certify that adequate proof of repairing or rebuilding has been given and that the payment of insurance proceeds to the city shall not be paid, subject to any lien created by the city should the insured fail to rebuild, repair, or secure the property as presented. The insured shall be responsible for presenting such certificate to the insurer. The insured, in seeking such certificate, shall present a timetable showing when repairs or rebuilding will be completed; render architectural or engineering plans, subject to approval by the Director, showing the method, manner and materials to be used in repairing or rebuilding; and any other evidence deemed necessary by the Director to demonstrate that the repairs or rebuilding will be completed in a timely and lawful manner. Failure of the insured to comply with the certificate shall result in the institution of continuation of proceedings for abatement.
(Ord. No. 52-862, § 10, 12-16-25)

Sec. 18.17.110. Failure to pay insurance proceeds or to obtain a certificate in lieu of payment proceeds.

It is unlawful for any person to fail to provide the payment of insurance proceeds as required by this Chapter unless a certificate in lieu of payment of proceeds has been obtained through the City.
(Ord. No. 52-862, § 11, 12-16-25)

CHAPTER 18.24. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.24, §§ 18.24.040, 18.24.050. The former Ch. 18.24 pertained to construction standards, and derived from Ord. No. 28-251, § 2; Ord. No. 45-684, § 1. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.32. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.32, § 18.32.010. The former Ch. 18.32 pertained to enforcement, and derived from Ord. No. 41-502, § 20. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.36. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.36, § 18.36.010. The former Ch. 18.36 pertained to tents, grandstands and air-supported structures used for places of assembly, and derived from Ord. No. 41-502, § 21. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.40. NONRESIDENTIAL PREMISES STANDARDS

Sec. 18.40.010. Definitions.
Sec. 18.40.020. Short title—Purpose.
Sec. 18.40.030. Administrative authority.
Sec. 18.40.040. Rules and regulations.
Sec. 18.40.050. Inspection authority.
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Sec. 18.40.510. Light and ventilation.
Sec. 18.40.520. Cleanliness and sanitation.
Sec. 18.40.530. Accessory or minor structure maintenance.
Sec. 18.40.540. Occupancy.

Sec. 18.40.010. Definitions.

As used in this chapter:

"Accessory structure" means a structure the use of which is incidental to that of the main building and which is attached thereto or located on the same premises.

"Building" means a structure adapted to permanent or continuous occupancy or use for public, institutional, business, industrial or storage purposes.

"Building manager" means any person who manages or owns a building and may be either agent for or owner of a building.

"Building occupant" means any person who leases, rents or owns a building or portion thereof and who physically occupies or has possession of a building or portion thereof.

"Fire hazard" shall be defined as follows:

(a) Any device or condition likely to cause fire and which is so situated as to endanger either persons or property;

(b) The creation, maintenance, or continuance of any physical condition by reason of which there exists a use, accumulation or storage of combustible or explosive material sufficient in amount or so located or in such a manner as to put in jeopardy in event of ignition, either person or property;

(c) The obstruction to or of fire escapes, ladders which may be used as escape, stairways, aisles, exits, doors, windows, passageways or halls likely in the event of fire to interfere with the operations of the fire department or of the safety and ready egress of occupants.

"Infestation" means the presence of insects, rodents, vermin or other pests on the premises which constitute a health hazard.

"Notice" means a written report issued to the owner and/or his agent by the superintendent of central inspection or his designated representa-

tive stating in detail the improvements and/or corrections required to be accomplished on a premises or building which will bring such into compliance with this Code.

"Order" means a directive issued to the owner and/or his agent by the superintendent of central inspection or the board of code standards and appeals after such hearings as required by this Code stating that the owner shall make improvements and/or corrections to a premises or building to bring such into compliance with this Code or to remove the building and clear the premises.

"Owner" means a person who alone or jointly or severally with others:

(a) Shall have record legal title to any property or structure thereon with or without accompanying actual possession thereof, or

(b) Shall have charge, care or control of any property or structure thereon as owner or as executor, executrix, administrator, administratrix, trustee, or guardian of the estate of the owner.

"Person" means a natural person or a legal entity such as, but not limited to, an individual, firm, association, joint stock company, syndicate, partnership or corporation.

"Premises" means a lot, plot or parcel of land including structures located thereon.

"Structure" means that which is built or constructed, an edifice or building of any kind or any piece of work artificially built up or composed of parts joined together in some definite manner.
(Ord. No. 41-502 § 22)

Sec. 18.40.020. Short title—Purpose.

This chapter shall be known as the "Premises Maintenance Standards for Existing Buildings."

Every portion of a building or premises shall comply with the provisions of this chapter. The chapter provides for minimum standards for the continued use and occupancy of all buildings and does not replace standards under which a structure was constructed and equipped. Repair and alterations shall be approved providing such work results in a general improved condition of the structure and does not diminish the safety of the structure or occupants.

The purpose of this chapter is to protect the public health, safety of the citizens of the city, by establishing minimum standards governing the maintenance of all structures and premises; fixing certain responsibilities and duties of owners, agents, and occupants of all structures unfit for human use, occupancy, and habitation, and fixing penalties for the violation of the provisions of this chapter. This chapter is declared to be remedial and essential to the public interest, and it is intended that this chapter be liberally construed to serve the purposes as stated above; provided, however, that the intent of this chapter shall, in addition, be to assist and further the restoration and preservation of those sites, buildings, structures and objects which have been entered or may be eligible for entry on the National Register of Historic Places, pursuant to Title 16, United States Code. Section 470(a) or other appropriate legislation, or as designated by the Historic Wichita Board or the Kansas Historical Society, and those sites, buildings and structures which contribute to the integrity of location, design, setting, feeling and association of any such designated or eligible historic place, it being recognized that such structures cannot and will not be restored and preserved if they are required to conform to building codes and other regulations promulgated subsequent to their construction, and it is further intended that this chapter be liberally construed to serve the purposes as stated above and to further such restoration and preservation.
(Ord. No. 41-502 § 23)

Sec. 18.40.030. Administrative authority.

The superintendent of central inspection is designated to administer and enforce this chapter. This chapter shall be applicable to all structures now in existence or hereinafter constructed or moved in the city, and all structures which become incorporated into the city because of annexation; provided that the construction of new structures and remodeling, repairing or moving of existing structures in the city shall comply with

the provisions of this chapter and with the provisions of all other applicable codes and ordinances of the city.
(Ord. No. 41-502 § 24)

Sec. 18.40.040. Rules and regulations.

The superintendent of central inspection is authorized to make and adopt such rules and written regulations as may be necessary for the proper enforcement of the provisions of this chapter, provided that such rules and written regulations shall not be in conflict with the provisions of this chapter. All such rules and written regulations as the superintendent of central inspection may deem necessary for proper and effective enforcement of the provisions of this chapter shall be subject to the approval of the council and shall be binding and effective when filed in the office of the city clerk.
(Ord. No. 41-502 § 25)

Sec. 18.40.050. Inspection authority.

The superintendent of central inspection is authorized and directed to make, or cause to be made, inspections to determine the condition of all structures and premises located within the city, in order that he may perform his duty of safeguarding the welfare and safety of the occupants of structures and of the general public in order that he may ascertain that the standards for structures as set forth in this chapter are properly maintained. For the purpose of making such inspection, the superintendent of central inspection or his designated representative is hereby authorized to enter, examine, and survey at any reasonable time all structures and premises. The owner, agent, and occupant of every structure shall give the superintendent of central inspection or his designated representative free access to such structure and its premises at all reasonable times for the purpose of such inspection, examination, and survey. In the event of necessity, the superintendent of central inspection shall procure right of entry and inspection by application to and proper orders from a court of competent jurisdiction. Every occupant of a structure shall give the owner thereof, or his agent or employee, access to any part of such structure, or its premises at all reasonable times for the purpose of making such repairs or alterations that are necessary to effect compliance with the provisions of this chapter or with lawful rule or regulation adopted or any lawful order issued pursuant to the provisions of this chapter.
(Ord. No. 32-419 § 5)

Sec. 18.40.060. Enforcement.

Any officer or employee of the city charged with the enforcement of this chapter shall not, in the discharge of his duties, thereby render himself liable personally for any damage that may occur. Any suit brought against any officer or employee of the city because of such act performed by him in the enforcement of any of the provisions of this chapter shall be defended by the department of law until the final termination of the proceedings therein.

Inspectors and authorized personnel of the department of central inspection shall be supplied with official identification and upon request shall exhibit such identification to the owner or agent when entering any structure or premises.
(Ord. No. 32-419 § 6)

Sec. 18.40.070. Notice of violation.

Whenever the superintendent of central inspection determines that there has been a violation of any provision of this chapter, or of any use or written regulation adopted pursuant thereto, he shall give notice of such alleged violation to the person or persons responsible therefor as hereinafter provided. Such notice shall:

(a) Be in writing;

(b) Particularize the violations alleged to exist or to have been committed;

(c) Provide a reasonable time for the correction of the violation particularized;

(d) Be addressed to and served upon the owner of the property and the agent of the owner or the occupant of the property concerned if the occupant is or may be responsible for the violation; provided that such notice shall be deemed to be properly served upon such owner, operator or occu-

pant if a copy thereof is served upon him personally or if a copy thereof is sent by certified mail to his last known address.

Any notice served pursuant to this section, shall become an order if a written petition for a hearing is not filed in the office of the superintendent of central inspection within ten days after such notice is served.
(Ord. No. 43-888 § 57)

Sec. 18.40.080. Placard erection.

In addition to giving notice of alleged violations of this chapter, and after a reasonable time for correction of violations and such appeals as provided for in this chapter, the superintendent of central inspection may appropriately placard such structures that have been determined to be in violation of any provisions of this chapter. The placard shall include but not be limited to a statement that the structure is in violation of provisions of the premises maintenance standards of the city. The superintendent of central inspection shall remove such placard whenever the violations particularized in the notice have been corrected. No unauthorized person shall deface, remove or obscure.
(Ord. No. 43-888 § 58)

Sec. 18.40.090. Informal hearing.

Any person affected by any notice which has been issued in connection with the enforcement of any provisions of this chapter, or of any rule or regulation adopted pursuant thereto, who is aggrieved thereby, and who believes the same to be contrary to the policies or regulations of the city, may request and shall be granted an informal hearing on the matter before the superintendent of central inspection or his designated representative; provided that such person shall file in the office of the superintendent of central inspection a written request for such informal hearing and setting forth a brief statement of the grounds therefor, within ten days after the day notice was served. Upon receipt of such petition, the superintendent of central inspection set a time and place for such informal hearing and shall give the petitioner written notice thereof. At such informal hearing, the petitioner shall be given an opportunity to be heard and to show why such notice should be modified or withdrawn. The informal hearing shall be commenced not later than ten days after the day on which the petition was filed; provided that upon application of the petitioner, the superintendent of central inspection may postpone the date of the informal hearing for a reasonable time beyond such ten-day period, if in his judgment the petitioner has submitted a good and sufficient reason for such postponement.

After such informal hearing as provided for, the superintendent of central inspection or his designated representative may sustain, modify or withdraw the notice, depending upon his finding as to whether the provisions of this chapter and of the rules and regulations adopted pursuant thereto have been complied with. If the superintendent of central inspection or his designated representative sustains or modifies such notice, it shall be deemed to be an order. The petitioner may appeal any order to the board of code standards and appeals as stated in Section 18.40.110.
(Ord. No. 41-502 § 27)

Sec. 18.40.100. Action without notice.

When in the opinion of the superintendent of central inspection any structure is in such condition as to constitute an immediate hazard requiring immediate action to protect the public, such officer may erect barricades or cause the property to be vacated, taken down, repaired, shored or otherwise made safe without delay and such action may, under such circumstances, be taken without prior notice to or hearing of the owners, agents, lienholders and occupants. The cost of any such action shall be assessed against the property and paid in the manner provided above.
(Ord. No. 32-419 § 10)

Sec. 18.40.110. Board of code standards and appeals—Advisory agency.

The board of code standards and appeals as established in Section 18.04.020 shall act in an advisory capacity to the council in the amending and revision of this chapter, and act as a board of appeals from the hearings conducted by the superintendent of central inspection.
(Ord. No. 41-502 § 28)

Sec. 18.40.120. Board of code standards and appeals—Meetings.

The board shall adopt reasonable procedures, provided that such procedures are not inconsistent with this chapter or state law, for conducting its meetings and investigations and shall render all decisions and findings in writing to the superintendent of central inspection with a duplicate copy to the appellant, and as otherwise provided.
(Ord. No. 41-502 § 29)

Sec. 18.40.130. Board of code standards and appeals—Powers.

The board of code standards and appeals conducting hearings as provided in this chapter:

(a) Shall have the authority to administer oaths, affirmations, examine witnesses, and receive evidence;

(b) Shall consider the findings of the superintendent of central inspection, health officer and fire inspector as to facts, if supported by evidence conclusive.

The rules of evidence prevailing in courts of law or equity shall not be controlling in hearings before the board.

In a hearing on an appeal from the superintendent of central inspection's hearings, the board may sustain, modify, or withdraw the superintendent of central inspection's order depending upon its finding as to whether the standards of this chapter have been complied with. The superintendent of central inspection, the health officer, the fire chief, and the city attorney, or their designated representatives, shall attend all board meetings and advise and consult with the board in matters pertaining to the enforcement of the premises maintenance standards. The board shall keep minutes of its proceedings, showing the vote of each member upon each question or if absent or failing to vote indicating such fact and shall keep a record of its meeting and other official actions, all of which shall be a public record.
(Ord. No. 43-888 § 59)

Sec. 18.40.140. Variance.

A variance to the standards of this chapter shall not be made by the board except for a variance of the literal interpretation of a standard, provided that such variance would result in compliance with the intent of the standard, provided that the board may make a variance to the standard of this chapter based on a request and recommendation by the staff advisors from the office of central inspection, the Wichita-Sedgwick County department of community health, and fire department for a specific time which may be extended.
(Ord. No. 43-888 § 60)

Sec. 18.40.150. Appeal—Hearing.

The board shall hold a public hearing on all appeals made to it and written notice of such public hearing shall be sent to the applicant. Such notice shall be given not less than ten days before the date set for hearing. Such notice may be served by certified mail.
(Ord. No. 43-888 § 61)

Sec. 18.40.160. Hearing—Evidence.

At a public hearing relative to any appeal, any interested party may appear in person, by his agent or by his attorney and present evidence.
(Ord. No. 32-419 § 16)

Sec. 18.40.170. Appeal—Stay of proceedings.

An appeal shall stay all proceedings in furtherance of the action appealed from unless the superintendent of central inspection certifies to the satisfaction of the board that by reason of facts stated in the certificate, a stay would, in his opinion, cause imminent peril to life or property.
(Ord. No. 32-419 § 17)

Sec. 18.40.180. Designation of unfit structures.

The designation of structures as unfit for use or human habitation and the procedure for correction of such unfit structures shall be carried out in compliance with the following requirements:

(a) The superintendent of central inspection may determine that a structure is unfit for use or human habitation if he finds that conditions exist in such structure which are dangerous or injurious to the health, welfare or safety of the occupants

of such structure; the occupants of neighboring structures, dwellings or other residents of the city. Such conditions may include the following without limitation: Defects therein increasing the hazard of fire, accidents or other calamities; lack of adequate ventilation; air pollution; light or sanitary facilities; dilapidation; disrepair, structural defects; uncleanliness; overcrowding; inadequate ingress and egress; dead and dying trees, limbs or other natural growth; illegally stored or parked material, equipment, supplies, machinery, trucks, or automobiles or parts thereof, vermin infestation; inadequate drainage; or, any violation of health, fire, building, or zoning regulations; or, any other laws or regulations relating to the use of the land and the use and occupancy of buildings and improvements.

The determination that a building is unfit for use or human habitation shall be predicated on the fact that such defects as aforestated are a serious hazard to the health, welfare, or safety of the occupants or of the public. The health officer and fire chief shall cooperate with the superintendent of central inspection in determining that a structure is unfit for use or human habitation where health or fire regulations are applicable;

(b) Whenever a petition is filed with the superintendent of central inspection signed by at least five residents of the city, charging that any structure is unfit for use or human habitation or whenever the health officer or the fire chief allege in writing to the superintendent of central inspection, that a structure is unfit for use or human habitation or whenever it appears to the superintendent of central inspection (on his own motion) that any structure is unfit for use or human habitation he shall, if his investigation discloses a basis for such charges, issue and cause to be served upon the record owner, every mortgagee of record, and all parties in interest in such structure (including persons in possession) a notice stating the charges in that respect. Such notice shall include a statement that a hearing will be held before the board of code standards and appeals at a place therein fixed not less than fifteen days nor more than forty-five days after the serving of such notice; that the owner, mortgagee, and parties in interest shall be given the right to file an answer to the notice and to appear in person or otherwise, and give testimony at the place and time fixed in the notice; and the rules of evidence prevailing in courts of law or equity shall not be controlling in hearings before the board;

(c) If after such notice and hearing, the board determines that the structure under consideration is unfit for use or human habitation, such board shall state in writing its findings of fact in support of such determination and shall issue and cause to be served upon the owner thereof an order which:

(1) Requires the owner within the time specified in the order to repair, alter or improve such structure to render it fit for use or human habitation; or to vacate and close the structure until conformance with the standards of this chapter; or

(2) Requires the owner within the time specified in the order to remove or demolish such structure, if such structure cannot be made fit for human use or occupancy;

(3) Owner has the option to repair to conform with the code or to demolish the structure;

(d) If the owner falls to comply with an order to repair, alter, or improve or to vacate and close a structure, the superintendent of central inspection may cause such structure to be removed or demolished;

(e) The amount of cost of such repairs, alterations or improvements or vacating and closing or removal or demolition by the superintendent of central inspection shall be a lien against the real property upon which such cost was incurred and such

lien, including as a part thereof allowance of his costs and the necessary attorney's fees, may be foreclosed in judicial proceedings in a manner provided or authorized by law for loans secured by liens on real property. If the structure is removed or demolished by the superintendent of central inspection, he shall sell the materials of such structure and shall credit the proceeds of such sale against the cost of the removal or demolition, and if there is any balance remaining, it shall be paid to the parties entitled thereto as determined by proper judicial proceedings, including his necessary attorney's fees incurred therein, as determined by the court.

(Ord. No. 41-502 § 32)

Sec. 18.40.190. Correction of unfit structures.

The owner of any structure which has been designated as unfit for use or human habitation and vacated pursuant to an order by the board shall make such structure safe and secure in whatever manner the board may reasonably require. Any vacant building open at the doors and windows, if unguarded, shall be deemed dangerous to human life and a nuisance within the meaning of these provisions. Buildings that are partially occupied and which have unoccupied areas that have been declared unsafe or unfit for use or habitation, separate or apart from the occupied or other portions of the building, shall be corrected or demolished for all portions of the building so declared.

(Ord. No. 32-419 § 19)

Sec. 18.40.200. Savings clause.

Nothing in this chapter shall be deemed to abolish or impair any existing remedies of the city or its officers or agencies relating to the removal or abatement of nuisances or to the removal or demolition of any buildings which are deemed to be dangerous, unsafe, or unsanitary.

(Ord. No. 32-419 § 20)

Sec. 18.40.210. Serving and filing of notices.

(a) The serving and filing of notices and orders and the filing of affidavits pursuant to this section shall be as follows:

(1) Notices and orders shall be served upon all persons entitled thereto, either personally or by certified mail, but if the whereabouts of such persons is unknown and the same cannot be ascertained in the exercise of reasonable diligence, an affidavit shall be made to that effect;

(2) Serving of such notice and order upon such persons shall be made by publishing the same once each week for two consecutive weeks in the official city newspaper.

(b) In the event the final order is not complied with then:

(1) A copy of such notice and order shall be posted in a conspicuous place on the premises affected by the complaint and order;

(2) A copy of such notice, order, affidavit and publications shall also be filed with the clerk of the district court of Sedgwick County, Kansas, and such filing of the notice and order shall have the same force and effect as other lis pendens notices provided by law.

(Ord. No. 43-888 § 62)

Sec. 18.40.220. Appeal to the city council.

Appeals from the decision of the board of code standards and appeals may be made to the city council by requesting in writing to the city clerk, within fifteen days after receiving such decision, a hearing before such board. Such appeal shall be heard, with three day's written rectification as to time and place given such appellant, within fifteen days after receipt of the written request.

The proceedings at informal hearings, including the findings and decision of the superintendent of central inspection or his designated representative, shall be reduced to writing, and entered as a matter of public record in the office of the superintendent of central inspection.

The record shall include a copy of every notice or order issued in connection with the matter. Appeals from the decision of the superintendent of central inspection or his designated representative may be made to the board of code standards and appeals by requesting in writing to the superintendent of central inspection, within fifteen days after receiving such decision, a hearing before the board. The appeal shall be heard, with three days written notification as to time and place given such appellant, within fifteen days after receipt of written request.
(Ord. No. 41-502 § 34)

Sec. 18.40.230. Notice of infraction.

Whenever an order has been issued for any infraction of this chapter, the superintendent of central inspection or the board of code standards and appeals may file a statement that this chapter has been violated in the office of the county clerk to be filed in the deed records. Such recording shall constitute sufficient notice of the impending action to any subsequent purchaser, transferee, grantee, mortgagee, or lessee of the property affected. Once compliance with the chapter has been established the superintendent of central inspection shall certify such compliance in the office of the county clerk to be filed in the deed records.
(Ord. No. 41-502 § 35)

Sec. 18.40.240. Action by city attorney.

The city attorney shall upon complaint of the superintendent of central inspection or upon his own motion, institute appropriate action to restrain, prevent, enjoin, abate, correct, or remove such violation and to take such other legal action as is necessary to carry out the terms and provisions of this chapter. The remedies provided for herein shall be cumulative and exclusive and shall be in addition to any other remedies provided by the law; any and all remedies may be pursued concurrently or consecutively, and the pursuit of any remedy shall not be construed as an election or the waiver of the right to pursue any and all of the others.
(Ord. No. 32-419 § 24)

Sec. 18.40.250. Severability.

If any section or provision of this chapter should be held invalid for any reason whatsoever, such invalidity shall not affect the remaining portion of this chapter which shall remain in full force and effect and the provisions of this chapter are declared to be severable.
(Ord. No. 32-419 § 25)

Sec. 18.40.260. Violation—Penalty.

Any person who wilfully and knowingly violates any provision of this chapter, or any provision of any rule or regulation adopted by the superintendent of central inspection pursuant to authority granted by this chapter, shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not more than five hundred dollars or by imprisonment in the city jail, for a period of not exceeding six months, or by both such fine and imprisonment. Each day that any violation of this chapter continues shall constitute a separate offense and shall be punishable hereunder as a separate violation.
(Ord. No. 40-094 § 1)

Sec. 18.40.270. Land area requirements.

All land areas, improved and unimproved, shall be reasonably free from holes and excavations, sharp protrusions, and other objects or conditions which might be a potential cause of personal injury.

All wells, cesspools, or cisterns shall be securely closed. Trees, limbs, shrubs or other plant life that constitute a hazard shall be removed.

All land areas shall be kept free from organic and inorganic material that might become a health, accident, or fire hazard. All land areas, improved and unimproved, shall be kept clean at all times.
(Ord. No. 32-419 § 27)

Sec. 18.40.280. Structural requirements.

The structural components of a structure and the exterior and interior of structures and all appurtenances thereto shall be kept in good re-

pair and maintained in a condition that is not a fire hazard or a menace to the health or safety of the occupants of such property.

Doors, windows, corridors, stairways, fire escapes, ramps, and passageways, serving as ordinary or emergency exit routes shall be free of stored, discarded or extraneous material, and in no case shall such routes be obstructed or locked to persons within the building.

Floors, interior wags and ceilings and all appurtenances thereto such as baseboards, moldings, door frames, etc., shall be secure and free from holes, cracks, breaks, dampness, loose or peeling paint, plaster or wallpaper sags, bulges, and unevenness in which there exists insects and/or rodents or which would cause injury by tripping or by falling loose building materials.

Clean and sanitary condition shall be deemed as freedom from filth, debris, litter, decayed organic matter, grease and anything that may serve as an attractant or harborage of vermin.

Sound condition and good repair shall be deemed the cessation or reversal of the destructive effects of damage by water, weather, wear, settling, or damage by persons, vermin, or building senescence, and the protection where possible from damage by these same factors by waterproofing, painting, glazing, carpentry, stuccoing, tuckpointing and masonry work and other techniques executed in acceptable manner as approved by the superintendent of central inspection.
(Ord. No. 32-419 § 28)

Sec. 18.40.290. Vermin and infestation prohibited.

All premises shall be kept reasonably free from sources of vermin, rodent and insect breeding, harborage, and infestation. Where these conditions are found to exist, such areas, harborage, or infestation shall be eliminated.
(Ord. No. 32-419 § 29)

Sec. 18.40.300. Utility maintenance.

Every supplied facility, piece of equipment or utility which is required under this chapter shall be so constructed and installed that it will function safely and effectively and shall be maintained in satisfactory working condition.
(Ord. No. 32-419 § 30)

Sec. 18.40.310. Standing water prohibited.

Water shall not be allowed to puddle or stand in a manner so as to create a health or structural hazard or provide a source of mosquito infestation.

All drainage facility shall carry waters to the nearest practicable drainageway approved by the superintendent of central inspection.
(Ord. No. 32-419 § 31)

Sec. 18.40.320. Trash and garbage requirements.

Every structure whose occupancy results in an accumulation of garbage shall have adequate garbage disposal facilities or garbage containers, whose type and location are approved by ordinance and the health officer.

The interior of every structure shall be maintained free from garbage, rubbish and other refuse that might become a health, accident or fire hazard.
(Ord. No. 41-502 § 36)

Sec. 18.40.330. Lighting and wiring requirements.

Every hall, corridor, exit doorway or change of direction leading from a structure shall be adequately lighted and shall be marked with exit signs when required by the building code.

Electrical wiring and devices shall be so designed, installed and maintained as not to be a potential source of ignition of combustible material or an electrical hazard.

The rating or setting of overcurrent devices shall not be in excess of the carrying capacity of the circuit conductor. Defective or unsafe wiring and equipment shall be repaired or replaced. No temporary wiring shall be installed as a permanent method of wiring. Only the approved electric cords shall be run directly from portable electric fixtures or appliances to outlets and shall not lie

under floor covering or extend through doorways, transoms or other openings through structural elements. When the capacity of circuits within a building is insufficient to carry the load imposed by normal use of appliances and fixtures as indicated by the name plate rating of such appliance, additional circuits shall be provided or the use of excessive appliances discontinued.

Each outlet and electrical fixture shall be deemed to be installed in an approved manner only if provision is made for a service entrance capacity sufficient for typical loads to such outlets and fixtures.

Frayed and exposed wiring, wiring unprotected by proper covering, fixtures in disrepair, and wiring or fixture repairs in makeshift fashion shall all be deemed unsafe and not in good working condition.
(Ord. No. 41-502 § 37)

Sec. 18.40.340. Heating requirements.

All heating equipment shall be installed in an approved manner, and maintained in safe and good working condition.

All heating equipment burning fuels shall be connected to a chimney or flue and fuel supply line in an approved manner. Heating equipment shall be installed in a manner which will avoid the dangerous concentration of fumes and gases. Heating equipment shall not be forced to operate beyond the safe capacity for which it was designed. Where necessary, as required by the superintendent of central inspection, exposed heating risers, heating ducts, and hot water lines shall be covered with an insulating material or guard.

Every heating device shall be so maintained and operated as to be free from fire, health, and accident hazards. All fuel burning equipment, components, and accessories shall be free from leaks and obstructions and function properly.

Boilers or furnaces shall be equipped with approved safety devices arranged to limit high steam pressures, or water temperatures, or air temperatures in warm air furnaces. Each fuel fired boiler shall be equipped with a low water cut-off.
(Ord. No. 41-502 § 38)

Sec. 18.40.350. Water supply.

All structures which are required to have water service shall be supplied with a potable water supply. There shall be adequate water supply and pressure at all connected hot and cold water outlets. The supply and pressure shall be sufficient at all times for the operation of all connected plumbing fixtures and equipment. Where water is not supplied from a public source, the source and system utilized shall be approved by the health officer.

Discharge of inadequately treated sewage shall not be permitted upon the surface of the ground or into natural or artificial surface drainageways.

All gas or oil burning water-heating equipment shall be connected to a chimney or flue and fuel supply line in an approved manner.

Water beating equipment shall be installed in a manner which will avoid the dangerous concentration of fumes and gases.

Approved safety relief valves shall be provided for all water heating equipment.

Water heating equipment shall not be forced to operate beyond the safe capacity for which it was designed. Every water heating device shall be so maintained and operated as to be free from fire, health and accident hazards.
(Ord. No. 41-502 § 39)

Sec. 18.40.360. Plumbing.

All connected plumbing fixtures shall be in good working condition and properly connected to a water system and to a sewerage system approved by the health officer.

Every plumbing fixture and water and waste pipe shall be maintained in good sanitary working condition, free from defects, leaks, and obstructions.

All structures shall have plumbing maintained to all the applicable requirements of the health code, plumbing code and the building code.

Every stack, waste line, and sewer line located in a structure and connecting sewer line shall be maintained as to function properly and not be a source of structural deterioration or a health

hazard. All stacks, waste lines, and sewer lines shall be kept free from obstructions, leaks, and defects.
(Ord. No. 41-502 § 40)

Sec. 18.40.370. Supporting structural members.

Supporting structural members of every structure shall be structurally sound and capable of bearing the imposed load safely. Supporting structural members shall be considered to be structurally sound if such members are capable of bearing imposed live and dead loads safely and if there is no evidence of deterioration that seriously degrades its structural capacity.
(Ord. No. 32-419 § 37)

Sec. 18.40.380. Weatherproofing.

Every structure shall be so maintained that it will be reasonably weather and water-tight. Exterior walls, roofs, and all openings around doors, windows, chimneys, and all other parts of the structure shall be so maintained as to keep water from entering the structure. Damaged materials must be repaired or replaced. All parts of the structure that show evidence of dry rot or deterioration shall be repaired or replaced and refinished to be in conformity with the rest of the structure.

All exterior wood surfaces of a structure that are not of a species inherently resistant to decay shall be treated periodically with a protective coating or other preservative to prevent structural deterioration. Exterior wood surfaces shall be adequately protected against deterioration through the periodic application of protective coatings designed for that purpose.

All cornices, entablatures, belt courses, corbels, terracotta trim, wall facings, and similar decorative features shall be maintained in good repair with proper anchorage and in a safe condition.

Requirements herein shall pertain to both accessory and primary structures. Accessory structures shall be kept structurally sound and in good repair or removed from the premises. The exterior of such structures shall be made weather-resistant through the use of decay-resistant materials or the application of paint or other preservatives.
(Ord. No. 32-419 § 38)

Sec. 18.40.390. Hard surface slabs.

All hard surface slabs shall be reasonably free from deterioration, cracks, holes, sharp protrusions, slopes and other conditions which are hazardous to health, safety or a structure.
(Ord. No. 32-419 § 39)

Sec. 18.40.400. Foundation requirements.

Every foundation shall be substantially weathertight, and rodentproof, and shall be considered to be in good repair and structurally sound if found free from damage or defects and capable of bearing imposed loads.
(Ord. No. 32-419 § 40)

Sec. 18.40.410. Exterior walls.

Every exterior wall shall be substantially weathertight, and rodentproof, and shall be kept in sound condition and good repair; provided that all wood, composition or metal siding shall be surface-coated as required to prevent deterioration; provided further that structures with one or more totally or partially open ends or sides and whose occupancy and use is not required, by any Wichita Code or ordinance, to be protected by a total enclosure, shall not be required to provide a weathertight, watertight, and rodentproof protection for such partially enclosed area. Exterior walls shall be considered to be in sound condition and good repair if found capable of bearing all live, dead, and imposed loads.

Existing windows and/or doors located in exterior walls, that are not required for egress or light and ventilation, may be removed by the owner of the structure, provided that the opening(s) are closed with the same kind of wall material.
(Ord. No. 43-888 § 63)

Sec. 18.40.420. Roof requirements.

Every roof shall be substantially weathertight, watertight and rodentproof and shall be kept in sound condition and good repair; provided that roofs of all structures with one or more ends or

sides totally or partially open shall not be required to provide rodentproof protection for the partially enclosed area.

A roof shall be considered to be in sound condition and good repair if found to be capable of bearing all live, dead, and imposed loads.
(Ord. No. 32-419 § 42)

Sec. 18.40.430. Basements and cellars.

Basements and cellars in every structure shall be reasonably free from dampness to prevent conditions conducive to decay or deterioration of the structure.

No basement or cellar space shall be used as a habitable room unless it complies with the following requirements:

(a) The floor and walls shall be protected against leakage of underground and runoff water and are free from excessive dampness;

(b) The facilities for ventilation in each room are equal to at least the minimum required by this chapter;

(c) Crawl spaces in every structure shall be reasonably free from dampness to prevent conditions conducive to decay or deterioration of the structure.

(Ord. No. 32-419 § 43)

Sec. 18.40.440. Floors.

Every interior and exterior floor shall be kept in sound condition and good repair, and constructed of a building material recognized for that purpose.

Floors shall be considered to be in sound condition and good repair if found capable of bearing all live, dead and imposed loads.

Every floor surface in kitchens, toilet rooms, bathrooms and shower rooms and floor surface in areas where interior water dispensing plumbing fixtures are located shall be constructed and maintained so as to be reasonably impervious to water and so as to permit such floor to be easily kept in a clean and sanitary condition.
(Ord. No. 32-419 § 44)

Sec. 18.40.450. Walls and ceilings.

Every interior wall and protective wall covering or finish shall be kept in sound condition and good repair, and constructed of a building material recognized for that purpose.

Walls shall be considered to be structurally sound and in good repair when reasonably clean, free from dangerous cracks, breaks, loose plaster and similar conditions.

Interior walls and counter tops subject to splash from water dispensing plumbing fixtures shall be covered or finished and maintained in such a manner so as to be reasonably impervious to water and water seepage.

Walls of every structure shall be maintained in a reasonably clean and sanitary condition.

Every interior ceiling shall be kept in sound condition and good repair and constructed of a building material recognized for that purpose.

Ceilings shall be considered to be structurally sound and in good repair when reasonably clean, free from dangerous cracks, breaks, loose plaster, and similar conditions.

Ceilings of every structure shall be maintained in a reasonably clean and sanitary condition.
(Ord. No. 32-419 § 45)

Sec. 18.40.460. Porches and balconies.

Every porch or balcony and every appurtenance thereto shall be so constructed as to be safe to use and capable of supporting the load that normal use may cause to be placed thereon, and shall be kept in sound condition and good repair.
(Ord. No. 32-419 § 46)

Sec. 18.40.470. Guardrails and handrails.

The railings of every structure shall be kept in good repair and structurally sound.

Guardrails shall be balustraded or shall have intermediate rails in conformance with the code under which they were built, but in no case shall the spacing of intermediate rails or ornamental pattern be such that a sphere nine inches in diameter can pass through.

Guardrails shall be provided when there is clear danger of accident or personal injury.

Guardrails shall be provided for balconies, landings or porches which are more than thirty inches above grade.

Guardrails shall be provided for roofs used for other than service of the building.

Handrails shall be provided for all steps or stairways having four risers or more.

Handrails shall be provided for pedestrian ramps with a slope exceeding one foot in ten feet.

Handrails shall be placed not less than thirty inches nor more than thirty-eight inches above the tread level.
(Ord. No. 43-888 § 64)

Sec. 18.40.480. Stairs and ramps.

Every inside and outside stair landing and step and every appurtenance thereto shall be so constructed as to be safe to use and capable of supporting the load that normal use may cause to be placed thereon, and shall be kept in sound condition and good repair.

Treads or risers that evidence excessive wear or are broken, warped, or loose shall be repaired.

The slope of a pedestrian ramp shall not exceed one foot in eight feet. Ramps shall be roughened or shall be of approved noslip material.

Elevators, shafts, ducts and other vertical openings shall be enclosed as required for stairways in Section 18.40.500. Doors shall be noncombustible or as approved by the building official.

Stairs (except fire escapes as provided in Section 18.40.500) shall have steps with a minimum run of nine inches and a maximum rise of eight inches, and a minimum net width between handrails of thirty inches.
(Ord. No. 34-772 (part))

Sec. 18.40.490. Chimneys and towers.

All chimneys, cooling towers, smoke stacks, and similar appurtenances shall be maintained structurally safe, sound, and in good repair. All exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weathercoating material such as paint or similar surface treatment.

All chimneys, flues and flue connectors shall be maintained in a safe condition, shall be structurally sound and free from defect, performing the function for which they are designed and are used. Chimneys, flues, gas vents, or other draft-producing equipment shall provide sufficient draft to develop the rated output of the connected equipment. Chimneys, flue linings, flue connectors, flues, gas vents, and their supports shall be structurally safe, durable, smoke-tight and capable of withstanding the action of flue gases.

All vent pipe connections to a masonry chimney or flue shall be made with a slip joint, the thimble to be cemented into the chimney and not to extend into the chimney beyond the chimney lining. Single-walled metal vents or flues shall be not less than six inches from combustible materials and shall not pass through walls, floors, ceilings, or partitions. There shall be one inch of clearance for Type B double-walled metal pipe. A gas appliance vent pipe may be connected to the vent pipe of another gas appliance through a suitable "Y" junction fitting provided proper increase in vent size is made to accommodate the increased volume of flue gases.
(Ord. No. 32-419 § 49)

Sec. 18.40.500. Exits.

Every building or structure designed for human occupancy shall be provided with exits of kinds, numbers, location and capacity appropriate to the individual building or structure, with due regard to the character of the occupancy, the number of persons exposed, the fire protection available, and the height and type of construction of the building or structure, to afford all occupants convenient facilities for escape in case of fire or other emergency.

Existing nonconforming buildings in which an additional exit or other means of egress is required may be altered in a manner as hereinafter described, or as provided in Chapter 1 in the

Appendix of the code, or as may be approved by the building official without meeting requirements in the code for new buildings.

Doors, windows, corridors, stairways, fire escapes, ramps, and passageways, serving as ordinary or emergency exit routes shall be free of stored, discarded or extraneous material, and in no case shall such routes be obstructed or locked to persons within the building.

Every building or usable portion thereof shall have at least one exit.

Two or more separate routes of exit shall be available at all times to occupants on the first floor of a building with an occupancy of fifty or more and for each occupied second floor of a building, with an occupancy of ten or more, provided that one of said routes may be for emergency use only. Occupants on floors above the second floor and in basements shall have access to not less than two separate exits. Basements used exclusively for service of the building and storage, laundry and maintenance rooms riot exceeding three hundred square feet in floor area may be provided with only one exit.

Both of said routes shall be equipped in such a manner as to eliminate the necessity of jumping or dropping to the ground in the event of fire, and shall lead to safe and open space at ground level which is accessible to a public street or alley. If two or more exits are required, not more than one-half of the exits may be of the fire escape stairs type.

Every story or usable portion thereof, having an occupant load of five hundred to nine hundred ninety-nine shall have not less than three exits.

Every story or usable portion thereof, having an occupant load of one thousand or more shall have not less than four exits.

The total width of exits in feet shall not be less than the total occupant load served divided by fifty, such width of exits shall be divided approximately equally among the separate exits.

Every required exit doorway shall be of a size as to permit the installation of a door not less than twenty-eight inches in width.

Exit doors shall be capable of opening at least ninety degrees.

No leaf of an exit door shall exceed four feet in width.

Exit doors shall swing in the direction of exit travel when serving any hazardous area or when serving an occupant load of fifty or more.

Exit doors shall not be located so as to require passage through kitchens, store rooms, closets or space used for similar purposes.

If two or more exits are required, they shall be arranged a reasonable distance apart so that if one becomes blocked others will be available.

An interior stairway connecting three floors or more shall be enclosed with walls of not less than one-hour fire-resistive construction.

Where existing partitions form part of a stairwell enclosure, wood lath and plaster in good condition will be acceptable in lieu of one-hour fire-resistive construction. Doors to such enclosures shall be protected by a self-closing door equivalent to a solid wood door not less than one and three-fourths inches thick.

Enclosures shall include landings between flights and any corridors, passageways, or public rooms necessary for continuous exit to the exterior of the building.

Enclosures shall not be required if an automatic fire-extinguishing system is provided for all portions of the building.

Existing fire escapes may be used as one means of egress, if the pitch does not exceed sixty degrees, the width is not less than eighteen inches, the treads are not less than four inches wide, and they extend to the ground or are provided with counter-balanced stairs reaching to the ground. Access shall be by an opening having a minimum dimension of twenty-nine inches when open. The sill shall not be more than thirty inches above the floor and landing.
(Ord. No. 41-502 § 42)

Sec. 18.40.510. Light and ventilation.

Buildings which are customarily inhabited by people and which were constructed, altered or

repaired prior to the effective date of the ordinance codified herein shall provide and maintain provisions for light and ventilation that were required by the building code in force at the time the building was constructed, altered or repaired. Buildings which were constructed, enlarged, repaired or otherwise altered prior to 1941 and which, in the judgement of the superintendent of central inspection, are considerably deficient in the minimum provisions for light and ventilation compared to what is considered reasonable for health and decency, shall be corrected upon the written order of the superintendent.
(Ord. No. 32-419 § 51)

Sec. 18.40.520. Cleanliness and sanitation.

Every owner of a nonresidential structure shall be responsible for maintaining in a clean and sanitary condition all of the structure and the premises thereof except as otherwise provided between any occupant and owner.
(Ord. No. 32-419 § 52)

Sec. 18.40.530. Accessory or minor structure maintenance.

Every owner of a structure shall be responsible for maintaining all accessory or minor structures on the premises in a clean and sanitary manner and so as not to constitute a fire hazard. It shall be the responsibility of the owner to correct or remove such auxiliary or minor buildings, if they constitute a nuisance because of one of the aforestated conditions, except as otherwise provided between any occupant and owner.

Every occupant of a structure shall keep all plumbing fixtures designated for his exclusive use in a clean and sanitary condition, free from filth, debris, garbage, litter, decayed organic matter, garden soil grease, and anything offensive to sight or smell, or anything that attracts or harbors vermin, and shall be responsible for the exercise of reasonable care in the proper use and operation thereof except as otherwise provide between occupant and owner.

The owner shall be responsible for the extermination of all rodents and insects within every vacant structure, area of a structure or premises before any occupancy or use of the structure or premise is commenced.

The occupant shall be responsible for the extermination of all insects, other than termites, in every nonresidential structure.
(Ord. No. 32-419 § 53)

Sec. 18.40.540. Occupancy.

No owner shall occupy or permit occupancy by any other occupant any vacant structure, area of a structure or premises unless it is clean, sanitary and fit for human occupancy and unless it complies with all applicable provisions of this chapter.

Nothing in this chapter shall prevent an owner, manager, or occupant from shifting the responsibility of the one to the other, provided that the primary and final responsibility in every case shall remain upon the person designated in the applicable section or paragraph.
(Ord. No. 32-419 § 54)

CHAPTER 18.44. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.44. The former Ch. 18.44 derived from Ord. No. 44-966, § 1; Ord. No. 47-565, § 56, adopted August 28, 2007. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.45. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.45, §§ 18.45.010—18.45.550. The former Ch. 18.45 pertained to International Existing Building Code, and derived from Ord. No. 47-565, §§ 1—55, adopted August 28, 2007. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.50. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.50, §§ 18.50.010—18.50.1330. The former Ch. 18.50 pertained to International Building Code, and derived from Ord. No. 47-548, §§ 1—133, adopted August 21, 2007; Ord. No. 48-879, §§ 1—37, adopted October 26, 2010. The user's attention is directed to Ch. 18.15, § 18.15.010.

CHAPTER 18.51. RESERVED*

*__Editor's note—__Ord. No. 49-404, § 2, adopted December 11, 2012, repealed the former Ch. 18.51, §§ 18.51.010—18.51.750. The former Ch. 18.51 pertained to International Residential Code, and derived from Ord. No. 47-549, §§ 1—74, adopted August 21, 2007; Ord. No. 48-880, §§ 1—31, adopted October 26, 2010; Ord. No. 49-085, §§ 1—10, adopted September 20, 2011. The user's attention is directed to Ch. 18.15, § 18.15.010.

Title 19

ELECTRICITY*

Ch. 19.01.	**Wichita/Sedgwick Unified Building and Trade Code**
Ch. 19.04.	**Reserved**
Ch. 19.08.	**Reserved**
Ch. 19.12.	**Reserved**
Ch. 19.16.	**Reserved**
Ch. 19.20.	**Reserved**
Ch. 19.22.	**Reserved**
Ch. 19.24.	**Reserved**
Ch. 19.28.	**Reserved**

*__Cross reference—__For requirement that electric motors, etc., installed in gasoline, service or filling stations comply with National Electrical Code, see § 15.12.130 of this code. As to appropriating electricity, see § 5.86.010. As to electric wires passing through or near trees, see §§ 9.08.050, 9.08.060.

CHAPTER 19.01. WICHITA/SEDGWICK UNIFIED BUILDING AND TRADE CODE

Sec. 19.01.010. Incorporated by reference.

Sec. 19.01.010. Incorporated by reference.

The Wichita/Sedgwick Unified Building and Trade Code is by reference incorporated in and by this publication made part of this title and chapter as fully as though set out at length herein and is adopted as the building and trade regulations for the City of Wichita.
(Ord. No. 49-405, § 1, 12-11-2012)

CHAPTER 19.04. RESERVED*

*__Editor's note—__Ord. No. 49-405, § 2, adopted December 11, 2012, repealed the former Ch. 19.04, §§ 19.04.010—19.04.160. The former Ch. 19.04 pertained to general provisions, administration and enforcement, and derived from Ord. No. 26-912, §§ 1, 5—8, 47, 48; Ord. No. 33-275 (part); Ord. No. 40-095, § 1; Ord. No. 41-242, §§ 3, 5; Ord. No. 41-449, §§ 1—4; Ord. No. 46-824, §§ 1—6, adopted November 22, 2005; Ord. No. 47-051, § 1, adopted June 20, 2006; Ord. No. 48-908, § 1, November 23, 2010. The user's attention is directed to Ch. 19.01, § 19.01.010.

CHAPTER 19.08. RESERVED*

*__Editor's note—__Ord. No. 49-405, § 2, adopted December 11, 2012, repealed the former Ch. 19.08, §§ 19.08.005—19.08.180. The former Ch. 19.08 pertained to certificates, permits and licenses, and derived from Ord. No. 26-912 §§ 27, 29, 31; Ord. No. 35-560 (part); Ord. No. 41-243 § 3; Ord. No. 41-455 § 6; Ord. No. 41-943 §§ 1, 2; Ord. No. 42-249 § 2; Ord. No. 43-702 § 1; Ord. No. 44-113 §§ 1—4; Ord. No. 44-483 § 1; Ord. No. 46-678 §§ 1—3; Ord. No. 46-824, §§ 7—19, 20—25, adopted November 22, 2005; Ord. No. 47-051, § 2—5, adopted June 20, 2006; Ord. No. 48-102, §§ 1—9, adopted October 28, 2008; Ord. No. 48-753, § 19, adopted June 15, 2010; Ord. No. 48-908, §§ 2—4, 6, adopted November 23, 2010; Ord. No. 49-152, §§ 1—4, adopted November 22, 2011. The user's attention is directed to Ch. 19.01, § 19.01.010.

CHAPTER 19.12. RESERVED*

*__Editor's note—__Ord. No. 49-405, § 2, adopted December 11, 2012, repealed the former Ch. 19.12, §§ 19.12.010—19.12.230. The former Ch. 19.12 pertained to wiring installation regulations, and derived from Ord. No. 26-912 §§ 9, 10, 44; Ord. No. 28-887 § 5; Ord. No. 35-560 (part); Ord. No. 37-551 § 4, 6; Ord. No. 40-114 § 10; Ord. No. 43-380 §§ 3, 4, 8; Ord. No. 44-425 §§ 2, 3; Ord. No. 46-678 §§ 5, 7, 8—12; Ord. No. 46-824, §§ 26, 27, 29, 30, 32—41, 11-22-05; Ord. No. 48-102, §§ 10—12, 15—18, 20—22, 24—28, 10-28-08, eff. 1-1-09; Ord. No. 48-908, §§ 7, 8, 11-23-2010; Ord. No. 49-152, §§ 6, 8—11, 11-22-2011. The user's attention is directed to Ch. 19.01, § 19.01.010.

CHAPTER 19.16. RESERVED*

*__Editor's note—__Ord. No. 49-405, § 2, adopted December 11, 2012, repealed the former Ch. 19.16, §§ 19.16.010—19.16.110. The former Ch. 19.16 pertained to mobile homes, and derived from Ord. No. 20-764, § 6; Ord. No. 46-824, §§ 46—48, adopted November 22, 2005; Ord. No. 47-051, §§ 7—16, adopted June 20, 2006; Ord. No. 48-102, § 29, adopted October 28, 2008. The user's attention is directed to Ch. 19.01, § 19.01.010.

CHAPTER 19.20. RESERVED*

*__Editor's note—__Ord. No. 49-405, § 2, adopted December 11, 2012, repealed the former Ch. 19.20, §§ 19.20.010—19.20.050. The former Ch. 19.20 pertained to prefabricated assemblies, and derived from Ord. No. 33-470 (part); Ord. No. 20-777, §§ 1—3. The user's attention is directed to Ch. 19.01, § 19.01.010.

CHAPTER 19.22. RESERVED*

*__Editor's note—__Ord. No. 49-405, § 2, adopted December 11, 2012, repealed the former Ch. 19.22, §§ 19.22.010—19.22.290. The former Ch. 19.22 pertained to elevators and escalators, and derived from Ord. No. 46-824, §§ 49—75, adopted November 11, 2005; Ord. No. 47-051, §§ 17, 19, 20, June 20, 2006; Ord. No. 48-102, §§ 30—39, adopted October 28, 2008; Ord. No. 48-908, §§ 9, 10, adopted November 23, 2010; Ord. No. 49-152, §§ 12—16, adopted November 22, 2011. The user's attention is directed to Ch. 19.01, § 19.01.010.

CHAPTER 19.24. RESERVED*

*__Editor's note—__Ord. No. 49-405, § 2, adopted December 11, 2012, repealed the former Ch. 19.24, §§ 19.24.010—19.24.120. The former Ch. 19.24 pertained to elevators in commercial buildings for persons with disability, and derived from Ord. No. 42-578 §§ 1, 3, 5, 7—10; Ord. No. 43-380, §§ 9—12; Ord. No. 46-824, §§ 76—82, adopted November 22, 2005; Ord. No. 47-051, §§ 21—23, adopted June 20, 2006; 6-20-06; Ord. No. 48-102, § 40, adopted October 28, 2008; Ord. No. 48-908, § 11, adopted November 23, 2010. The user's attention is directed to Ch. 19.01, § 19.01.010.

CHAPTER 19.28. RESERVED*

*__Editor's note—__Ord. No. 49-405, § 2, adopted December 11, 2012, repealed the former Ch. 19.28, §§ 19.28.010—19.28.120. The former Ch. 19.28 pertained to freight type elevators in commercial buildings, and derived from Ord. No. 43-702, §§ 6—15; Ord. No. 46-824, §§ 83—86, adopted November 22, 2005; Ord. No. 48-908, § 12, adopted November 23, 2010. The user's attention is directed to Ch. 19.01, § 19.01.010.

Title 20

HOUSING

Ch. 20.04. Housing Code

Ch. 20.08. Alternative Correctional Housing

Ch. 20.12. Fair Housing Practices

CHAPTER 20.04. HOUSING CODE

Sec. 20.04.005. Purpose.
Sec. 20.04.010. Definitions.
Sec. 20.04.020. Enforcement of chapter—Applicability of chapter.
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Sec. 20.04.080. Roominghouses.
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Sec. 20.04.130. Same—Sustaining, modifying or withdrawing notices.
Sec. 20.04.150. Records to be kept—Appeals to board of code standards and appeals.
Sec. 20.04.160. Reserved.
Sec. 20.04.170. Emergency orders; hearings.
Sec. 20.04.180. Designation of unfit dwellings and procedure for correction.
Sec. 20.04.190. Adoption of rules and regulations.
Sec. 20.04.200. Penalty.

Sec. 20.04.005. Purpose.

The purpose of the Housing Code is to promote safe, sanitary and quality housing within Wichita, the health, safety and welfare of its residents and to protect neighborhoods and the city's housing stock against physical, visual and economic deterioration.
(Ord. No. 52-863, § 1, 12-16-25)

Sec. 20.04.010. Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

Whenever the words 'dwelling', 'dwelling unit', 'roominghouse', 'rooming unit', 'premises' are used in this chapter, they shall be construed as though they were followed by the words 'or any part thereof.'

(1) 'Accessory structure' means a structure, the use of which is incidental to that of the main building and which is attached thereto or located on the same premises.

(2) 'Apartment building' means a residential building designed or used for three or more dwelling units, including hallways, laundry facilities, common use areas and means of ingress and egress to such dwelling or dwelling units.

(3) 'Basement' means that portion of a dwelling between floor and ceiling which is partly below and partly above grade.

(4) 'Building Code' means the Wichita-Sedgwick County Unified Building and Trade Code.

(5) 'City' means the City of Wichita, Kansas.

(6) 'Deterioration' means the condition or appearance of a building characterized by holes, breaks, rot, crumbling, cracking, peeling, rusting or other evidence of physical decay or neglect, excessive use or lack of maintenance.

(7) 'Director'' means the Director of MABCD and/or his or her designee.

(8) 'Dwelling' means any building, apartment building, mobile home or manufactured home which is wholly or partly used or intended to be used for living or sleeping by human occupants.

(9) 'Dwelling unit' means any room or group of rooms located within a dwelling and forming a single habitable unit with facilities that are used or intended to be used for living, sleeping, cooking, eating and part of which is exclusively or occasionally used for cooking.

(10) 'Efficiency Dwelling Unit' is a dwelling unit containing only one habitable room and meeting the requirements of 20.04.060(1)(a) of this code.

(11) 'Electrical Code' means the edition of the National Electrical Code and any amendments as adopted by Sedgwick County and the City of Wichita.

(12) 'Electrical Inspector' means a person employed in the Metropolitan Area Building and Construction Department, for the purpose of inspecting electrical installations.

(13) 'Extermination' means the control and elimination of insects, rodents or other pests and termites by eliminating their harborage places; by removing or making inaccessible materials that may serve as their food; by poisoning, spraying, fumigating, trapping or by any other recognized and approved pest elimination method.

(14) 'Fire Chief' means the Director of the Fire Department of the City or his/her authorized representative.

(15) 'Good state of repair' means sound, stable, free of deterioration, and performing the function for which intended.

(16) 'Good working condition' means the item is fully operable for the use for which it was intended.

(17) 'Guardrail' means a system of building components located near the open sides of elevated walking surfaces for the purpose of minimizing the possibility of an accidental fall from the walking surface to the lower level.

(18) 'Habitable room' means a room or enclosed floor space used or intended to be used for living, sleeping, cooking or eating purposes, excluding bathrooms, water closet rooms, laundries, pantries, foyers, communicating corridors, closets, storage spaces and basement rooms used only for recreational purposes.

(19) 'Handrail' means a railing provided for grasping with the hand for support.

(20) 'Hotel.' See 'Roominghouse.'

(21) 'Hot Water' means the water supply to plumbing fixtures heated to a temperature of not less than 110°F.

(22) 'Infestation' means the presence, within a structure, of any insects, rodents or other pests which may be harmful to the health or safety of the occupants or the soundness of the structure.

(23) 'Manufactured Home' means a structure consisting of one or more mobile components manufactured to the standards embodied in the National Manufactured Home Construction and Safety Standards Act generally known as the HUD Code established pursuant to 42 U.S.C. § 5403. Such units shall provide all the accommodations necessary to be a dwelling unit and shall be connected to all utilities in conformance with applicable regulation.

(24) 'Mechanical Code' means edition of the International Mechanical Code and any amendments as adopted by Sedgwick County and the City of Wichita.

(25) 'Mechanical Equipment' means gas-burning equipment and appliances;

(26) 'Mobile home' for purposes of this chapter, means a moveable detached single-family dwelling unit that was manufactured prior to 1976 and is not in conformance to the National Manufactured Home Construction and Safety Standards Act, or HUD Code, and licensed and located in accordance with Chapter 26 of the Code of the City of Wichita.

(27) 'Motel'. See 'Roominghouse.'

(28) 'Occupant' means any person, with or without the knowledge or consent of the owner, who has actual possession of a dwelling unit or rooming unit and who is living, sleeping, cooking or eating within the dwelling unit or rooming unit.

(29) 'Operator' means any person who has charge, care or control of a building, or part thereof, with or without the knowledge or consent of the owner, in which dwelling units or rooming units are let.

(30) 'Owner' means any person who is a holder of any legal or equitable interest in the premises, and alone or jointly or severally with others.

(A) Has record legal title to any dwelling or dwelling unit with or without accompanying actual possession thereof; or

(B) Has charge, care or control of any dwelling or dwelling unit which may include all persons who have an interest in a structure and any who are in possession or control thereof as owner or agent of the owner, contract purchaser, or as executor, executrix, administrator, administratrix, trustee or guardian of the estate of the owner;

In the absence of substantial evidence to the contrary, records of the Sedgwick County Clerk's Office, Register of Deeds, certified copies of court records or judgments of any court, copies of lease agreements, contracts for deed, mortgages, tax records, rental agreements and other financial documents related to the property shall be conclusive evidence of the ownership of the property.

(31) 'Person,' as used in this chapter, means any individual, firm, association, company, syndicate, partnership, or other legal entity, or a natural person for the purposes of the occupancy standards hereof.

(32) 'Plumbing' means and includes all of the following supplied facilities and equipment: gas pipes, water heaters, water pipes, garbage disposal units, waste pipes, water closets, sinks, installed dishwashers, lavatories, bathtubs, shower baths, installed clothes-washing machines, catch basins, drains, vents, and any other similar supplied fixtures, together with all connections to water, sewer or fuel lines, including water pipes and lines utilized in connection with air-conditioning equipment.

(33) 'Plumbing Code' means the edition of the Uniform Plumbing Code and any amendments as adopted by Sedgwick County and the City of Wichita.

(34) 'Premises' shall mean a lot, plot or parcel of land including the dwellings and structures located thereon.

(35) 'Resident Agent' means a natural person residing within 60 miles of the corporate city limits of the City of Wichita, or a company or agency with a manager or agent that resides within 60 miles of the corporate city limits of the City of Wichita authorized to make or order repairs, service to units and receive notices on behalf of the owner.

(36) 'Roominghouse' means any dwelling, or that part of any dwelling, containing one or more rooming units, in which space is available and used, or intended to be used, by five or more persons, none of whom are the legal spouse, offspring, parent, or sibling of the owner or operator.

(37) 'Rooming unit' means any room or group of rooms forming a single habitable unit, used or intended to be used for living and sleeping, but no part of which is exclusively or occasionally used for cooking.

(38) 'Safe and Sanitary' for purposes of this chapter shall mean free from conditions that are dangerous or could cause injury and free from elements such as filth, black mold or bacteria that endanger health.

(39) 'Sewer Code' means the City of Wichita Sewer, Sewage Disposal and Drains Code as adopted by the City of Wichita.

(40) 'Structurally Sound' means free of imperfections and/or deterioration which affect the intended use of a structure or the integrity of the footing, foundation, wall, roof, chimney, arch, window, door or porch/deck support systems.

(41) 'Supplied' means paid for, furnished or provided by or under the control of the owner or operator.

(42) 'Temporary housing' means any tent, trailer or motor home used for human shelter which is designed to be transportable and which is not attached to the ground, to another structure or to any utilities system for up to thirty (30) consecutive days.

(43) 'Workmanlike manner' means installation or repair which meets the minimum recommended installation and maintenance requirements of the product manufacturer and meets all applicable code requirements.

(Ord. No. 44-967 § 1; Ord. No. 47-302, § 1, 11-21-06; Ord. No. 52-863, § 2, 12-16-25)

Sec. 20.04.020. Enforcement of chapter—Applicability of chapter.

The Director is designated to administer and enforce this chapter. This chapter shall be applicable to all dwellings now in existence or hereinafter constructed in the city, and to all dwellings which become incorporated into the city because of annexation. The construction of new dwellings and the remodeling of existing dwellings in the city shall comply with the provisions of this chapter and with the provisions of all other applicable codes and ordinances of the city. In the event of a conflict of ordinances applicable to such construction, remodeling or existing dwellings, the provision of the city ordinance that establishes the higher standard for the protection of the welfare and safety of the people shall prevail. After the adoption of this chapter, the Director shall ascertain at the time a building permit is issued for a proposed new dwelling or for the proposed major remodeling or an existing dwelling and during the construction of such new dwelling or remodeling that such new dwelling or remodeling shall comply with the applicable minimum standards contained in this chapter and other applicable city ordinances. The intent of this chapter shall be to assist and further the restoration and preservation of those sites, buildings, structures and objects which have been entered or may be eligible for entry on the National Register of Historic Places, pursuant to Title 16, United States Code, Section 470(a) or other appropriate legislation, or as designated by the Historic Wichita Board or the Kansas Historical Society, and those sites, buildings and structures which contribute to the integrity of location, design, setting, feeling and association of any such designated or eligible historic place, it being recognized that such structures cannot and will not be restored and preserved if they are required to conform to building codes and other regulations promulgated subsequent to their construction, and it is further intended that this ordinance be liberally construed to serve the purposes as stated above and to further such restoration and preservation.

(Ord. No. 32-469; Ord. No. 52-863, § 3, 12-16-25)

Sec. 20.04.025. Procedure manual.

(a) The Metropolitan Area Building and Construction Department shall create a housing code enforcement policy and procedure manual. The manual shall include policies and procedures which provide for:

(1) Equal enforcement of the housing code regardless of whether the unit is tenant-occupied or owner-occupied;

(2) Courteous treatment of citizens by inspectors;

(3) Search and seizure methods which follow Fourth Amendment principles;

(4) In-service training of inspectors on the requirements of the manual;

(5) Definitions of the terms "vacant," "emergency" and "abandoned," and a process for differentiating between such terms;

(6) Prosecution of interior and exterior housing code violations visible from either private or public property;

(7) Requesting and receiving permission to inspect for code violations;

(8) Written notice to the property owner of violations and the process for obtaining additional information about or appealing such notice of violations;

(9) Inspections of dangerous, abandoned structures;

(10) Obtaining administrative search warrants when inspection is refused;

(11) Use of placarding guidelines;

(12) Guidelines for declaration of a dwelling as unfit for habitation; and

(13) A detailed extension policy.

(b) No changes may be made to the policy and procedure manual without the prior review of such changes by the law department and approval by the Board of Code Standards and Appeals. The Metropolitan Area Building and Construction Department may appeal the denial of approval to the city council for the final decision on changes to the policy and procedure manual.

(c) All requests for information pursuant to the Freedom of Information Act shall be reviewed and timely responded to pursuant to Chapter 2.76 of the Code of the City of Wichita.
(Ord. No. 41-946 § 1; Ord. No. 52-863, § 4, 12-16-25)

Sec. 20.04.030. Minimum standards for basic equipment and facilities.

No owner or operator shall occupy as owner-occupant or permit another to occupy any dwelling or dwelling unit, for the purpose of living, sleeping, cooking, or eating therein, which does not comply with the following requirements:

(1) Every dwelling or dwelling unit shall contain a kitchen sink;

(2) Every dwelling or dwelling unit shall contain a room, separate from the habitable rooms, which affords privacy to a person within such room and which is equipped with a flush water closet and a lavatory basin. Such lavatory basin may be located outside the room containing the flush water closet provided it is convenient to such room and such location is approved by the Director or his/her designee;

(3) Every dwelling or dwelling unit shall contain a room, separate from the habitable rooms, which affords privacy to a person within such room and is equipped with a bathtub or shower;

(4) Every kitchen sink, lavatory basin, and bathtub or shower required under the provisions of paragraphs (1), (2) and (3) of this section shall be properly connected to both hot and cold water lines. The hot water lines shall be properly connected with supplied water-heating facilities which are properly installed, are maintained in safe and good working condition, and are capable of heating water to such a temperature as to permit an adequate amount of hot water to be drawn at required kitchen sink, lavatory basin and bathtub or shower, even when the heating facilities required by this chapter (paragraph (5), Section 20.04.040 of this chapter) are not in operation;

(5) All plumbing fixtures required by this section, or otherwise provided, shall be in good working condition and properly connected to a water system and to a sewerage system approved by the Director;

(6) Every dwelling or dwelling unit shall be provided with adequate trash storage facilities whose type and location are approved by the Director;

(7) Every dwelling or dwelling unit shall have adequate garbage disposal facilities or garbage storage containers, whose type and location are approved by the Director;

(8) Every dwelling or dwelling unit shall have approved, safe, unobstructed direct means of egress leading to safe and open space at ground level, which is accessible to a public street or alley;

(9) Every dwelling or dwelling unit shall have cabinets and/or shelves for the storage of eating, drinking and cooking equipment and utensils and of food that does not under ordinary summer conditions require refrigeration for safe keeping; and a counter or table of sound construc-

tion furnished with surfaces that are easily cleanable and that will not import any toxic or deleterious effect to food, with a minimum counter top area of eleven square feet, provided that vinyl-type floor coverings shall not be allowed to be used as a countertop surface;

(10) Every dwelling or dwelling unit shall have a stove, or similar device, for cooking food and a refrigerator, or similar device, for safe storage of food at temperatures less than forty-five degrees Fahrenheit but more than thirty-two degrees Fahrenheit under ordinary maximum summer conditions, which are properly installed with all necessary conditions for safe, sanitary and efficient operation; provided that such stove, refrigerator and/or similar devices need not be installed when a dwelling unit is not occupied and when the occupant is expected to provide same on occupancy, and that sufficient space and adequate connections for the safe and efficient installation and operation of said stove, refrigerator and/or similar devices are provided;

(11) Every dwelling or dwelling unit shall have a suitable cabinet for storage of drugs, and a suitable facility for the safe storage of household poisons and other hazardous products;

(12) Every dwelling or dwelling unit shall be provided with a kitchen sink, cooking appliance and refrigeration facilities, each having a clear working space of not less than thirty inches in front;

(13) Every dwelling or dwelling unit shall be equipped with safe, functioning locking devices on all exterior doors and ground floor windows of the dwelling or dwelling unit; and

(14) All existing installations and/or repairs made to conform to this and all other applicable city codes, must be installed in a workmanlike manner.

(Ord. No. 44-967 § 2; Ord. No. 47-302, § 2, 11-21-06; Ord. No. 52-863, § 5, 12-16-25)

Sec. 20.04.040. Minimum standards for light, ventilation, electricity and heating.

No owner or operator shall occupy as owner-occupant or permit another to occupy, any dwelling or dwelling unit, for the purpose of living therein, which does not comply with the following requirements:

(1) Every habitable room shall have at least one window facing directly to the outdoors with a minimum total window area, measured between stops, for every habitable room with an area of not less than one-twelfth of the floor area of such room; provided that the Director may accept less total window area if it can be reasonably demonstrated that adequate natural daylight illumination will be available, provided, further, that positive mechanical ventilation equal to eight changes of air per hour may be provided in lieu of such windows for kitchens in buildings two or more stories in height containing four or more dwelling units. Any window with an outside vertical light obstruction, located within three feet of and facing the window and extending above the window, shall not be deemed to face directly to the outdoors and shall not be included as contributing to the required minimum total window area;

(2) Every habitable room shall have at least one window which can easily be opened and such openable window space shall equal at least forty-five percent of the minimum window area required in paragraph (1); or provided that positive mechanical ventilation or such other device as will adequately ventilate the room may be approved by the Director in lieu of such openable window;

(3) Every bathroom and water closet room shall comply with the light and ventilation requirements for habitable rooms contained in paragraphs (1) and (2) of this section, except that no window shall be required in bathrooms and water closet rooms equipped with a ventilation system

which is installed in accordance with the building code. An openable skylight, approved by the superintendent of central inspection, may be used in lieu of a window in bathrooms and water closet rooms; and

(4) Every dwelling or dwelling unit shall be connected to an electrical supply, provided by an electrical utility company. Every habitable room of any existing dwelling shall contain at least three separate wall type electric convenience duplex outlets or two such convenience duplex outlets and one ceiling electric light fixture.

Exception: This requirement may be reduced to at least two separate wall type electric convenience duplex outlets or one such convenience duplex outlet and one ceiling light fixture if the Director or his/her designee determines that the existing occupant load of the dwelling unit and/or the use or load of electric appliances, equipment, lights, and/or fixtures in any habitable room does not pose a safety problem or hazardous condition. Every toilet room, bathroom, laundry room, furnace room, private and public hall shall contain at least one ceiling electric light fixture or wall-type electric light fixture. Every such outlet and fixture shall be properly installed and shall be maintained in good and safe working condition, and shall be connected to the source of electric power in a safe manner;

(a) The minimum capacity of the electrical service supply and the main disconnect switch shall be sufficient to adequately carry the total load required in accordance with the city electrical code.

(b) Where the determination is made by the electrical inspector, upon examination of the existing electrical service supply, that the electrical service supply is being used in such manner as would constitute a hazard to the occupants or would otherwise constitute a hazard to life and property, such as but not limited to, overloading of circuits, unsafe wiring or inadequate wiring, then such conditions shall be corrected by a licensed electrical contractor of the city in conformance to the city electrical code.

Exception: If the owner-occupant of a detached single-family dwelling desires to install any electrical installations on the load side of the service panelboard in the main structure or in the usual accessory buildings thereto, the owner occupant shall obtain an electrical permit as required by the city electrical code upon fulfillment of exam and plan review requirements as administered by the electrical section of the Metropolitan Area Building and Construction Department. The owner obtaining said permit shall personally purchase all materials and shall personally perform all labor in connection with the permitted project. The owner shall call for all inspections and otherwise be responsible to comply with all the applicable provisions of the city electrical code.

(c) Extension cords shall not be used as a substitute for the fixed wiring of a structure if such cord runs through holes in walls, ceilings, floors, doorways, windows, or similar openings, is attached to building surfaces, or is concealed behind building walls, ceilings, or floors.

(d) Smoke Detectors. Every dwelling shall have smoke detectors installed in accordance with Section 15.02 of this code.

(5) Every dwelling or dwelling unit shall have heating facilities which are properly installed, are maintained in safe and good working condition, and are capable of safely and adequately heating all habitable rooms, bathrooms and water closet rooms located therein to a temperature of at least seventy degrees Fahrenheit.

Such heating equipment shall be operated as reasonably necessary to allow maintenance of a temperature in all habitable rooms of seventy degrees Fahrenheit at a point three feet above the floor;

(6) From April 1st to November 30th of each year, every door opening directly from a dwelling to outdoor space, used for ventilation, shall have a supplied screen door and a self-closing device; and every window or other direct opening to outdoor space from the dwelling, used for ventilation, shall likewise be supplied with screens; provided that screens shall not be required in windows or other openings above the third floor of any dwelling. All screens shall be adequate to exclude insects and of a type approved by the Director or his/her designee;

(7) Every basement window used for ventilation, and every other opening to a basement which might provide an entry for rodents, shall be supplied with a screen or other such device as may be determined by the Director to effectively prevent their entrance;

(8) Every public hall and stairway in or leading into a multiple dwelling shall be adequately lighted at all times so as to provide in all parts thereof at least six foot candles of light at the tread or floor level by natural or artificial means. Every public hall and stairway in structures containing not more than two dwelling units shall be supplied with conveniently located light switches controlling an adequate lighting system which may be turned on when needed, or automatic lighting system, instead of full time lighting;

(9) There shall not be any unvented or improperly vented space and/or room heaters in any dwelling unit. Space and/or room heaters shall be of a type listed for vented use, and shall be connected to a vent approved for use with such appliance. If such space and/or room heaters are equipped with a pilot light, it shall be an approved automatic safety type device. Vented freestanding space and/or room heaters shall be installed with provisions for supplying sufficient combustion air and with clearance from combustible material as listed on the appliance, and in compliance with the mechanical code;

(10) Every residential structure shall contain ceiling insulation material that meets the requirements of Federal Specification HH-I-515C including a flame spread factor of fifty or less and that achieves a minimum rating factor of R-19 as approved by the Director. Any ceiling insulation material that is installed hereafter in an existing residential structure shall meet the requirements of Federal Specification HH-I-515C including a flame spread factor of fifty or less as approved by the Director, and shall, in addition, contain an R rating factor label. The ceiling insulation material shall be installed in accordance with the manufacturers specifications and in a manner that achieves a minimum rating factor of R-19. R shall be defined for purposes of this section as that term is defined by the American Society of Heating, Refrigeration and Air Conditioning;

(11) All existing installations and/or repairs made to conform to this and all other applicable codes, must be installed in a workmanlike manner.

(Ord. No. 44-967 § 3; Ord. No. 47-302, § 3, 11-21-06; Ord. No. 52-863, § 6, 12-16-25)

Sec. 20.04.050. General requirements relating to the safe and sanitary maintenance of parts of dwellings and dwelling units.

No owner or operator shall occupy as owner-occupant or permit another to occupy any dwelling or dwelling unit, for the purposes of living therein, which does not comply with the following requirements:

(1) *Foundations.* Every footing, foundation, foundation wall and foundation support

shall be substantially weathertight, watertight, and rodentproof, and shall be maintained in structurally sound condition and good repair, free of cracks, and/or loose or missing mortar;

(2) *Structural Supporting Members.* Supporting structural members are to be maintained in a structurally sound condition and in good repair, free of deterioration and rot, capable of bearing imposed live and dead loads in a safe manner;

(3) *Chimney and Towers.* All chimneys and towers shall be maintained in structurally sound condition and good repair, free of cracks and loose and/or missing mortar;

(4) *Exterior walls.* All exterior walls and wall coverings shall be maintained in sound condition and good repair, free of deterioration and rot, substantially weathertight, watertight and rodentproof, and free of missing and/or loose mortar. New wall coverings shall be installed in a workmanlike manner using building materials recognized for that purpose in compliance with the building code;

(5) *Roof Covering.* Roofs shall have a covering free of holes, cracks or excessively worn surfaces, which will prevent the entrance of moisture into the structure and provide reasonable durability, shall be substantially weathertight and watertight, and shall conform to the requirements of the building code. Metal roofs showing signs of corrosion shall be painted with an approved product applied in accordance with the manufacturer's specifications or protected using materials recognized for that purpose. Gutters and downspouts, where in existence, shall be maintained in a good state of repair;

(6) *Soffits, Fascias and Exterior Trim.* All soffits, fascias and exterior trim shall be maintained in sound condition and good repair, substantially free of deterioration and rot. New soffits, fascias and exterior trim shall be installed in a workmanlike manner using materials recognized for that purpose in compliance with the building code;

(7) *Stairs, Porches and Appurtenances.* Every inside and outside stair, every porch, and every appurtenance thereto shall be so constructed as to be safe to use and capable of supporting the load that normal use may cause to be placed thereon, and shall be maintained in structurally sound condition and good repair; substantially free of deterioration and/or rot. Each stairway shall have uniform risers and treads, the greatest riser height within any flight of stairs shall not exceed the smallest by more than one-half inch. No stair riser shall exceed nine inches and no stair tread shall be less than eight inches, provided that the tread is at least equal to the rise, and further provided that any new stair construction shall meet the requirements of the building code;

(8) *Handrails and Guardrails.* Structurally sound handrails shall be provided, on at least one side, on any stairway having five or more risers. Stairways with open sides having any tread five feet or higher above adjacent grade shall have intermediate rails or ornamental closures on both sides of the stairs that will not allow passage of an object six inches or more in diameter. Porches and/or balconies located more than five feet higher than the adjacent area shall have structurally sound protective guardrails at least thirty inches high and, if unenclosed, shall be protected as required for stairways with open sides. No ladders shall be permitted. New stairs, porches and appurtenances shall be installed in a workmanlike manner using materials recognized for that purpose in compliance with the building code;

(9) *Windows, Doors and Hatchways.* Every window and exterior door and basement hatchway shall be reasonably weathertight, watertight and rodentproof, and shall be maintained in sound working

condition, maintained without cracks or holes and in a good state of repair. All windows intended for ventilation must be equipped with fully operable hardware;

(10) *Floors, Interior Walls and Ceilings.* Every floor, interior wall and ceiling shall be maintained in sound condition and good repair, free of holes and cracks, and constructed of a building material recognized for that purpose;

(11) *Plumbing.* Every plumbing fixture and water and waste pipe shall be properly installed and maintained in good sanitary working condition, free from defects, leaks and obstruction;

(12) *Utilities.* Every supplied facility, piece of equipment, or utility shall be so constructed and installed that it will function safely and effectively and shall be maintained in satisfactory working condition, or it shall be removed, replaced and/or repaired in accordance with the applicable codes;

(13) *Kitchen, Water Closet Room and Bathroom Floors.* Every kitchen floor surface and every water closet room floor surface and bathroom floor surface, except where constructed of materials impervious to moisture, shall be covered with asphalt, vinyl-plastic, rubber tile, ceramic tile, terrazzo or linoleum or other durable waterproof, nonabsorptive material and maintained so as to be reasonable impervious to water and so as to permit such floor to be easily kept in a clean and sanitary condition. Existing carpet will be allowed provided that it has been maintained in a clean and sanitary manner;

(14) *Paint and/or Surface-Coating.* The exterior of all structures, including accessory buildings and fences, shall be protected from the elements by the application of paint or other approved protective material and shall be maintained in a good state of repair. All paint and other approved protective materials shall be applied in accordance with the manufacturer s specifications provided, however, wood of natural decay resistance, recognized as not needing finish, does not require surface coating provided one has never been applied;

(15) Maintenance. All structures, accessory structures, appurtenances and fences shall be free of deterioration and maintained in a good state of repair and such that the appearance of the premises and structures shall not constitute a blighting factor for adjoining property;

(16) *Mobile Homes.* Mobile homes shall be properly blocked and anchored as provided in Chapter 26 and shall be solid skirted with an approved fire resistive material;

(17) *Sanitary Premises.* No person, owner or operator shall occupy or let to any other occupant any vacant dwelling, dwelling unit or rooming unit unless it is clean, sanitary and fit for human occupancy and unless it complies with all provisions of this chapter;

(18) *Installations.* All existing installations and/or repairs made to conform to this and all other applicable city codes must be installed in a workmanlike manner.

(Ord. No. 44-967 § 4; Ord. No. 47-302, § 4, 11-21-06)

Sec. 20.04.055. Minimum requirements for maintaining vacant dwellings.

The owner or operator of any vacant dwelling, or part of a dwelling, shall maintain the premises in a secure, clean and sanitary manner, complying with the following standards:

(1) *Foundations*—Every footing, foundation, foundation wall and foundation support shall be substantially weathertight, watertight, and rodent proof and shall be maintained in structurally sound condition and good repair free of cracks, and/or loose or missing mortar.

(2) *Windows and exterior doors*—Every window and exterior door shall be reasonably weathertight, watertight, and rodent

proof and shall be maintained in good repair, and be equipped with locking devices in accordance with the provisions contained in Section 20.04.055(11).

(3) *Structural supporting members*—Supporting structural members are to be maintained in structurally sound condition and good repair, free of deterioration and rot, capable of bearing imposed live and dead loads in a safe manner.

(4) *Chimneys and towers*—All chimneys and towers shall be maintained in structurally sound condition and good repair, free of cracks and loose and/or missing mortar.

(5) *Exterior walls*—All exterior walls and wall coverings shall be maintained in sound condition and good repair, free of deterioration and rot, substantially weathertight, watertight and rodent proof, and free of missing and/or loose mortar. New wall coverings shall be installed in a workmanlike manner using building materials recognized for that purpose in compliance with the Building Code.

(6) *Roof covering*—Roofs shall have a covering free of holes, cracks or excessively worn surfaces, which will prevent the entrance of moisture into the structure and provide reasonable durability, shall be substantially weathertight and watertight and shall conform to the requirements of the Building Code. Metal roofs showing signs of corrosion shall be painted with an approved product applied in accordance with the manufacturer's specifications or protected using materials recognized for that purpose. Gutters and downspouts, where in existence, shall be maintained in a good state of repair.

(7) *Soffits, fascias and exterior trim*—All soffits, fascias and exterior trim shall be maintained in sound condition and good repair, substantially free of deterioration and rot. New soffits, fascias and exterior trim shall be installed in a workmanlike manner using materials recognized for that purpose in compliance with the Building Code.

(8) *Stairs, porches and appurtenances*—Every outside stair, every porch, and every appurtenance thereto shall be so constructed as to be safe to use and capable of supporting the load that normal use may cause to be placed thereon, and shall be maintained in sound condition and good repair, substantially free of deterioration and/or rot. Each stairway shall have uniform risers and treads the greatest riser height within any flight of stairs shall not exceed the smallest by more than ½ inch. No stair riser shall exceed nine (9) inches and no stair tread shall be less than eight (8) inches, provided that the tread is at least equal to the rise, and further provided that any new stair construction shall meet the requirements of the Building Code.

(9) *Handrails and Guardrails*—Structurally sound handrails shall be provided, on at least one side, on any stairway having five or more risers. Stairways with open sides having any tread five feet or higher above adjacent grade shall have intermediate rails or ornamental closures which will not allow passage of an object six (6) inches or more in diameter. Porches and/or balconies located more than five feet higher than the adjacent area shall have structurally sound protective guardrails at least thirty inches high and, if unenclosed, shall be protected as required for stairways with open sides. No ladders shall be permitted. New stairs, porches and appurtenances shall be installed in a workmanlike manner using materials recognized for that purpose in compliance with the Building Code.

(10) *Accessory Structures* —Accessory structures shall be kept in sound condition and good repair. The exterior of such structures shall be made weather resistant through the use of decay-resistant materials, or the application of paint or other approved preservatives.

(11) *Vacant Structures* —Every vacant dwelling, dwelling unit or accessory structure or vacant portion thereof shall be

maintained in a secure condition to prevent entry by children, vagrants, or any unauthorized person. Buildings that are boarded at windows and/or doors shall be boarded with a minimum of ⅜" exterior grade plywood, cut to fit the opening, securely fastened to the window and/or door frames with nails and/or screws, and/or bolted in a manner approved by the Director. All plywood used to board windows and/or doors shall be protected from the elements by the application of paint matching the predominant color of the structure and shall be maintained in a good state of repair.

(12) *Paint and/or Surface-coating*—The exterior of all structures, including accessory buildings and fences, shall be protected from the elements by the application of paint or other approved protective material and shall be maintained in a good state of repair. All paint and other approved protective materials shall be applied in accordance with the manufacturer's specifications provided; however, wood of natural decay resistance, recognized as not needing finish, does not require surface coating, providing one has never been applied.

(13) *Sanitary Premises*—The owner or operator of any vacant dwelling or dwellings shall maintain the premises in a clean and sanitary manner, free of junk, debris and stored material.

(14) *Installations*—All existing installations and/or repairs made to conform to this and all other applicable City Codes, must be installed in a workmanlike manner.

(Ord. No. 44-967 § 5; Ord. No. 47-302, § 5, 11-21-06; Ord. No. 52-863, § 7, 12-16-25)

Sec. 20.04.060. Minimum space, use, etc., requirements.

No owner or operator shall occupy or permit another to occupy any dwelling or dwelling unit, for the purpose of living therein, which does not comply with the following requirements:

(1) Except as set forth below, every dwelling or dwelling unit shall contain at least one hundred fifty square feet of floor space for the first occupant thereof and at least one hundred additional square feet of floor space for every additional occupant thereof, the floor space to be calculated on the basis of total habitable room area;

(a) Nothing in this section shall prohibit the use of an efficiency living unit within an apartment building meeting the following requirements:

1. The unit shall have a living room of not less than two hundred twenty square feet of superficial floor area. An additional one hundred square feet of superficial floor area shall be provided for each occupant of such unit in excess of two;

2. The unit shall be provided with a separate closet;

3. The unit shall be provided with a kitchen sink, cooking appliance and refrigeration facilities, each having a clear working space of not less than thirty inches in front. Light and ventilation conforming to this code shall be provided;

4. The unit shall be provided with a separate bathroom containing a water closet, lavatory and bathtub or shower.

(2) Every room occupied for sleeping purposes shall contain at least seventy square feet of floor space for the first occupant, one hundred square feet for two occupants, and at least fifty square feet of floor space for each additional occupant thereof. Every egress or rescue window from a sleeping room must have a minimum net clear opening of 3.3 square feet with minimum net clear opening dimensions of seventeen inches by twenty-four inches, and a minimum overall breakout area (including frame) of five square feet.

(3) No basement space shall be used as a habitable room or dwelling unit unless it complies with the following requirements:

(a) The floor and walls are impervious to leakage of underground and runoff water and are free from dampness;

(b) The window area in each room is equal to the minimum window area required in Section 20.04.040(1) of this chapter and such required window area is located entirely above the grade of the ground adjoining such window area; provided, that window area below grade may be acceptable when the window well is so designed that a plane of forty-five degrees with the horizontal will not obstruct the window area; provided further that every basement room used for continual sleeping purposes which was constructed and designed for such continual sleeping purposes must have at least one window or door which can be used for egress or rescue. Every egress or rescue window from a sleeping room must have a minimum net clear opening of 3.3 square feet with minimum net clear opening dimensions of seventeen inches by twenty-four inches, and a minimum overall breakout area (including frame) of five (5) square feet. Where windows are provided as a means of egress or rescue, they shall have a sill height of not more than forty-four inches above either the floor or the highest tread of no more than two (2) permanently installed steps or a step and platform where the rise of each step does not exceed eight (8) inches, with each step or platform having a minimum depth of nine (9) inches from the interior edge of the step or platform to the wall surface under the egress or rescue window, and a minimum width of twenty-four inches. The above requirements must be determined to be readily achievable by the Director or his/her designee. Alternative egress window installations with respect to the minimum sill height requirement may also be requested in writing and approved in writing by the Director or his/her designee. Existing window wells which are not designed with horizontal dimensions which allow the window to be fully opened, will have to be reconstructed to comply with requirements of the building code.

(c) The facilities for ventilation in each room are equal to at least the minimum as required under Section 20.04.040(2) of this chapter;

(4) Every dwelling unit shall have at least four square feet of floor-to-ceiling height closet space for the personal effects of each permissible occupant.

(5) All existing installations and/or repairs made to conform to this and all other applicable city codes, must be installed in a workmanlike manner.

(Ord. No. 44-967 § 6; Ord. No. 47-302, § 6, 11-21-06; Ord. No. 52-863, § 8, 12-16-25)

Sec. 20.04.070. Responsibility of owners and occupants generally.

(1) Every owner of a dwelling containing two or more dwelling units shall be responsible for maintaining in a clean and sanitary condition the shared or public areas of the dwelling and premises thereof.

(2) Every occupant of a dwelling or dwelling unit shall keep in a clean and sanitary condition that part of the dwelling, dwelling unit and premises thereof which he/she occupies and controls.

(3) Every occupant of a dwelling unit shall dispose of all his/her trash in a clean and sanitary manner by placing it in the trash containers required by Section 20.04.030(6) of this chapter.

(4) Every occupant of a dwelling or dwelling unit shall dispose of all his/her garbage and any other organic waste in a clean and sanitary manner, by placing it in the garbage disposal facilities or garbage storage containers required by Section 20.04.030(7) of this chapter. If garbage disposal facilities are not provided, it shall be the responsibility of the owner to supply proper garbage storage containers for all dwelling units in a dwelling containing two or more dwelling units which are located on one premises. In all other cases it shall be the responsibility of the occupant to furnish such containers.

(5) Every owner of a dwelling shall be responsible for maintaining all accessory or minor structures on the premises in sound condition and good repair. The exterior of such structures shall be made weather resistant through the use of decay resistant materials, or the application of paint or other approved preservatives. They shall be maintained in a clean and sanitary manner so as not to constitute a health or fire hazard. It shall be the responsibility of the owner to correct or remove such accessory buildings, if they constitute a nuisance because of one of the previously stated conditions.

(6) Every owner of a dwelling or dwelling unit shall be responsible for supplying screens as required under the provisions of this chapter or of any rule or regulation adopted pursuant thereto. Maintenance or replacement of screens once installed in any one season, becomes the responsibility of the occupant.

(7) Every occupant of a dwelling unit shall keep all plumbing fixtures therein in a clean and sanitary condition and shall be responsible for the exercise of reasonable care in the proper use and operation thereof.

(8) Every owner of a dwelling located on property where fencing has been constructed whether for purpose of utility to provide a physical barrier or of decorative screening for visual separation shall be responsible for maintaining such fence or screen in sound condition. Fencing and screening shall include, but not be limited to, constructions of metal, wood, masonry or wire. Retaining walls, twelve inches or more in height, shall be maintained in sound condition.

(9) The occupant of a single family dwelling shall be responsible for the extermination of any insects, rodents or other pests therein or on the premises, and every occupant of a dwelling unit in a dwelling containing more than one dwelling unit shall be responsible for such extermination whenever his dwelling unit is the only one infested. Whenever infestation exists in two or more of the dwelling units in any dwelling, extermination thereof shall be the responsibility of the owner.

(10) It shall be the responsibility of the owner to effectively correct any conditions of termite infestation. In cases of extreme visible damage to structural members of the dwelling, treatment must be done by a licensed and certified exterminator.

(11) Every occupant of a dwelling unit shall be responsible for maintaining existing supplied smoke detectors in working condition, provided that if the smoke detector is hard wired, the electrical wiring shall remain the responsibility of the owner.

(12) All existing installations and/or repairs made to conform to this and all other applicable city codes, must be installed in a workmanlike manner.
(Ord. No. 44-967 § 7; Ord. No. 52-863, § 9, 12-16-25)

Sec. 20.04.080. Roominghouses.

No person shall operate a roominghouse or shall occupy or let to another for occupancy any rooming unit in any roominghouse, except in compliance with all the applicable provisions of this chapter and the following provisions:

(1) There shall be supplied at least one flush water closet, lavatory basin and bathtub or shower, properly connected to a water system and a sewerage system approved by the health office and in a good working condition for each six persons residing within a roominghouse, including members of the operator's family wherever they share the use of such facilities provided that in a roominghouse where rooms are let only to males, flush urinals may be substituted for not more than

one-half the required number of water closets. All such facilities shall be so located within the dwelling so as to be reasonably accessible from a common hall or passageway to all persons sharing such facilities. Every lavatory basin or bathtub or shower shall be supplied with hot water at all times.

(2) The operator of every rooming house shall supply and change bed linen and towels at least once each week and prior to the letting of any room to any occupant. The operator shall be responsible for the maintenance of all supplied bedding in a clean and sanitary manner.

(3) Every room occupied for sleeping purposes by one person shall contain at least seventy square feet of floor space, and every room occupied for sleeping purposes by more than one person shall contain at least fifty square feet of floor space for each additional occupant thereof.

(4) Every rooming unit shall have approved, safe, unobstructed, direct means of egress leading to safe and open space at ground level which is accessible to a public street or alley.

(5) The operator of every roominghouse shall be responsible for the maintenance of all parts of the roominghouse and the premises thereof in a clean and sanitary condition.

(6) Every provision of this chapter which applies to rooming houses shall also apply to hotels and motels; provided that motel units containing cooking facilities or kitchens shall be deemed to be dwelling units and shall comply with the applicable provisions of this chapter.

(Ord. No. 44-967 § 8)

Sec. 20.04.090. Inspection of dwellings, dwelling units, rooming units and premises.

1. The Director is hereby authorized and directed to make inspections to determine the condition of dwellings, dwelling units, rooming units, and premises located within the city, in order that he may perform his duty of safeguarding the welfare and safety of the occupants of dwellings and of the general public and in order that he may ascertain that the standards for dwellings as set forth in this chapter are properly maintained. For the purpose of making such inspection the Director is hereby authorized to enter, examine, and survey at any reasonable time all dwellings, dwelling units, rooming units and premises. The owner, operator, and occupant of every dwelling, dwelling unit and rooming unit shall give the Director free access to such dwelling, dwelling unit, rooming unit and its premises at all reasonable times for the purpose of such inspection, examination and survey. In the event of necessity, the Director shall procure right of entry and inspection by application to and proper orders from a court of competent jurisdiction. Every occupant of a dwelling or dwelling unit shall give the owner thereof, or his agent or employee, access to any part of such dwelling unit or its premises at all reasonable times for the purpose of making such repairs or alterations that are necessary to effect compliance with the provisions of this chapter or with any lawful rule or regulation adopted or any lawful order issued pursuant to the provisions of this chapter.

2. Any officer or employee of the city charged with the enforcement of this chapter shall not, in the discharge of his duties, thereby render himself liable personally. Any suit brought against any officer or employee of the city because of such act performed by him in the enforcement of any of the provisions of this chapter shall be defended by the department of law until the final termination of the proceedings therein.

(Ord. No. 27-902 § 9; Ord. No. 52-863, § 10, 12-16-25)

Sec. 20.04.100. Service of notice of violations upon persons responsible therefor; when notice to become an order.

Whenever the Director determines that there has been a violation of any provision of this chapter, except Section 20.04.180 hereof, or of any use or regulation adopted pursuant thereto,

he shall give notice of such alleged violation to the person or persons responsible therefore as hereinafter provided. Such notice shall:

1. Be in writing;
2. Particularize the violations alleged to exist or to have been committed;
3. Provide a reasonable time for the correction of the violation particularized;
4. Be addressed to and served upon the owner or the operator of the building, or the occupant of the dwelling unit or rooming unit concerned if the occupant is or may be responsible for the violations; provided that such notice shall be deemed to be properly served upon such owner, operator or occupant if a copy thereof is served upon him personally or if a copy thereof is sent by certified mail to his last known address. If the notice cannot be served as set forth above, service of the notice may be made upon such person or persons by posting the notice in a conspicuous place in or about the dwelling affected by the notice; in which event the Director shall make a statement for inclusion in the record as to why such posting was necessary. Such notice may contain an outline of remedial action which if taken, would correct the alleged violations.

Any notice served pursuant to this section, shall become an order if a written petition for a hearing is not filed with MABCD within ten days after such notice is served.
(Ord. No. 27-902 § 10; Ord. No. 47-302, § 7, 11-21-06; Ord. No. 52-863, § 11, 12-16-25)

Sec. 20.04.110. Placarding dwellings, dwelling units, etc., in violation of chapter.

In addition to giving notice of alleged violations as provided for in Sections 20.04.100 and 20.04.180 of this chapter, the Director may placard such dwellings, dwelling units and rooming units that have been determined to be in violation of any provisions of this chapter. The placard shall include but not be limited to a statement that the dwelling, dwelling unit or rooming unit is in violation of provisions of the Housing Code of the city. The Director shall remove such placard affixed under the provisions of this section. If the dwelling, dwelling unit or rooming unit is vacant at the time of placarding, or becomes vacant after placarding, it shall not be used for human habitation until the violations in the notice have been corrected and written approval secured from and the placard removed by the Director.

(1) It shall be unlawful for any person other than the Director or his authorized representative to remove the placard from a dwelling, dwelling or rooming unit.

(2) Any person found in violation of the terms of this section shall be guilty of a misdemeanor. Upon conviction, a fine of not less than $1,000 nor more than $2,500 and/or a term of imprisonment not exceeding twelve months, or by both such fines and imprisonment shall be imposed by the court.

(3) The imposition of the fines established in paragraph (2) shall be mandatory and the court shall not waive, remit, suspend, parole or otherwise excuse the payment thereof except that the court may order that the defendant perform community service specified by the court but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by Section 1.04.210(e) and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed herein.

(4) In addition the court shall order that the owner register such building, dwelling or dwelling unit with the Director pursuant to Chapter 30 of the Code of the City of Wichita.

(5) Further, the Court may order that the property be re-inspected by the Director to insure that the provisions of this Code have been met and that the property is

habitable. If the owner or occupant denies entry, the Director shall take all necessary and prudent actions to obtain an administrative warrant to inspect such premises.

(Ord. No. 44-967 § 9; Ord. No. 47-302, § 8, 11-21-06; Ord. No. 52-863, § 12, 12-16-25)

Sec. 20.04.120. Hearings—Right of person aggrieved by service of notices, etc.; filing of petition; setting time and place; postponement.

Any person affected by any notice which has been issued in connection with the enforcement of any provisions of this chapter, except Section 20.04.180 hereof, or of any rule or regulation adopted pursuant thereto, who is aggrieved thereby, and who believes the same to be contrary to the policies or regulations of the city, may request and shall be granted an informal hearing on the matter before the Director or his designated representative. Such person shall file with the Director a written petition requesting an informal hearing and setting forth a brief statement of the grounds therefor, within ten days after the day notice was served. Upon receipt of such petition, the Director shall set a time and place for such informal hearing and shall give the petitioner written notice thereof. At the informal hearing, the petitioner shall be given an opportunity to be heard and to show why such notice should be modified or withdrawn. The informal hearing shall be commenced not later than ten days after the day on which the petition was filed; provided that upon application of the petitioner, the Director may postpone the date of the informal hearing for a reasonable time beyond such ten day period, if in his judgment the petitioner has submitted a good and sufficient reason for such postponement.

(Ord. No. 27-902 § 12; Ord. No. 52-863, § 13, 12-16-25)

Sec. 20.04.130. Same—Sustaining, modifying or withdrawing notices.

After such informal hearing as provided for in Section 20.04.120, the Director or his designated representative may sustain, modify or withdraw the notice, depending upon his findings as to whether the provisions of this chapter and of the rules and regulations adopted pursuant thereto have been complied with. If the Director or his designated representative sustains or modifies such notice, it shall be deemed to be an order.

(Ord. No. 27-902 § 13; Ord. No. 52-863, § 14, 12-16-25)

Sec. 20.04.150. Records to be kept—Appeals to board of code standards and appeals.

The proceedings at informal hearings, as provided for in Section 20.04.120, including the findings and decision of the Director or his designated representative, shall be reduced to writing, and entered as a matter of public record in the office of the Director. The record shall also include a copy of every notice or order issued in connection with the matter. Appeals from the decision of the Director or his designated representative may be made to the Board of Code Standards and Appeals by requesting in writing to the Director, within ten days after receiving such decision, a hearing before the board. The appeal shall be heard, with written notification as to time and place given such appellant, within forty-five days after receipt of written request.

(Ord. No. 40-736 § 2; Ord. No. 47-302, § 9, 11-21-06; Ord. No. 52-863, § 15, 12-16-25)

Sec. 20.04.160. Reserved.

Editor's note—Ord. No. 52-863, § 16, adopted Dec. 16, 2025, repealed § 20.04.160, which pertained to the board of code standards and appeals, and derived from Ord. No. 40-736, § 3.

Sec. 20.04.170. Emergency orders; hearings.

Whenever the Director or his designated representative finds that an emergency exists which requires immediate action to protect the public, he may, without notice or hearing, issue an order reciting the existence of such an emergency and requiring that such action be taken as he deems necessary to meet the emergency. Notwithstanding the other provisions of this chapter, such order shall be effective immediately. Any person to whom such order is

directed shall comply therewith immediately, but upon petition to Director shall be afforded an informal hearing as soon as possible. After such hearing, depending upon his findings as to whether the provisions of this chapter and of the rules and regulations adopted pursuant thereto have been complied with, the Director shall continue such order in effect, or modify it, or revoke it.
(Ord. No. 27-902 § 16; Ord. No. 52-863, § 17, 12-16-25)

Sec. 20.04.180. Designation of unfit dwellings and procedure for correction.

The designation of dwellings as unfit for human habitation and the procedure for correction of such unfit dwellings shall be carried out in compliance with the following requirements:

(1) The Director may determine that a dwelling is unfit for human habitation, if he finds that conditions exist in such dwelling which are dangerous or injurious to the health, welfare, safety, or morals of the occupants of such dwelling; the occupants of neighboring dwellings or other residents of the city; or which have a blighting influence on properties in the area. Such conditions may include the following without limitation: Defects therein increasing the hazard of fire, accidents or other calamities; lack of adequate ventilation; air pollution; light or sanitary facilities; dilapidation; disrepair; structural defects; uncleanliness; overcrowding; inadequate ingress and egress; dead and dying trees, limbs or other unsightly natural growth; unsightly appearances that constitute a blight to adjoining properties, the neighborhood, or the city; walls, siding or exteriors of a quality and appearance not commensurate with the character of the properties in the neighborhood; unsightly stored or parked material, equipment, supplies, machinery, trucks, or automobiles or parts thereof; vermin infestation; inadequate drainage; or any violation of health, fire, building or zoning regulations; or any other laws or regulations relating to the use of land and the use and occupancy of buildings and improvements. The determination that a building is unfit for human habitation shall be predicated on the fact that such effects as aforesaid are a serious hazard to the health, welfare, safety of the occupants or of the public, or that such defects constitute violations of four or more of the standards in the other sections of this chapter; or are continued violations of such standards. The fire chief shall cooperate with the Director in determining that a dwelling is unfit for human habitation where health or fire regulations are applicable.

(2) Whenever a petition is filed with the Director signed by at least five residents of the city, charging that any dwelling is unfit for human habitation, or whenever the fire chief alleges in writing to the Director that a dwelling is unfit for human habitation, or whenever it appears to the Director (on his own motion) that any dwelling is unfit for human habitation he shall, if his preliminary investigation discloses a basis for such charges, issue and cause to be served upon the record owner, every mortgagee of record, and all parties in interest in such dwelling (including persons in possession) a complaint stating the dwelling is unfit for habitation. Such complaint shall contain a notice that a hearing will be held before the Board of Code Standards and Appeals at a place therein fixed not less than ten days nor more than thirty days after the serving of such complaint. The owner, mortgagee, and parties in interest shall be given the right to file an answer to the complaint and to appear in person and give testimony at the place and time fixed in the complaint. The rules of evidence prevailing in courts of law or equity shall not be controlling in hearings before the Board of Code Standards and Appeals.

(3) If, after such notice and hearing, the Board of Code Standards and Appeals determines that the dwelling is unfit for human habitation, the board shall state in writing its findings of fact in support of such determination and shall issue and cause to be served upon the owner thereof an order which:

(a) If the repair, alteration or improvement of the dwelling can be made at a cost of less than two hundred percent of the assessed value of the dwelling as recorded in the county assessor's office of Sedgwick County, Kansas; requires the owner within the time specified in the order to repair, alter or improve such dwelling to render it fit for human habitation; or to vacate and close the dwelling until conformance with the standards of this chapter; or

(b) If the repair, alteration or improvement of the dwelling cannot be made at a cost of less than two hundred percent of the assessed value of the dwelling as recorded in the county assessor's office at Sedgwick County, Kansas; requires the owner within the time specified in the order to remove or demolish such dwelling.

(4) If the owner fails to comply with an order to repair, alter, or improve or to vacate and close a dwelling, the Director may cause such dwelling to be repaired, altered or improved or to be vacated or closed; or if the owner fails to comply with an order to remove or demolish the dwelling, the Director may cause such dwelling to be removed or demolished.

(5) The amount of cost of such repairs, alterations or improvements, or vacating and closing or removal or demolition by Director shall be a lien against the real property upon which such cost was incurred and such lien, including as a part thereof allowance of his costs and the necessary attorneys' fees, may be foreclosed in a manner provided or authorized by law for loans secured by liens on real property. If the dwelling is removed or demolished by the Director, he shall sell the materials of such dwelling and shall credit the proceeds of such sale against the cost of the removal or demolition, and if there by any balance remaining, it shall be paid to the parties entitled thereto as determined by proper judicial proceedings, including his necessary attorneys' fees incurred therein, as determined by the court.

(6) Complaints and orders issued pursuant to this section shall be served upon all persons entitled thereto, either personally or by restricted mail, but if the whereabouts of such persons is unknown and cannot be ascertained in the exercise of reasonable diligence, an affidavit shall be made to that effect, then the serving of such complaint or order upon such persons may be made by publishing the same once each week for two consecutive weeks in the official city newspaper. A copy of such complaint and order shall be posted in a conspicuous place on the premises affected by the complaint or order. A copy of such complaint or order shall also be filed with the clerk of the district court of Sedgwick County, Kansas and such filing of the complaint or order shall have the same force and effect as other lis pendens notices provided by law.

(7) Appeals from the decision of the Board of Code Standards and Appeals may be made to the city council by requesting in writing to the city clerk, within ten days after receiving such decision, a hearing before such city council. Such appeal shall be heard, with three days written notification as to time and place given such appellant, within fifteen days after receipt of the written request.

(Ord. No. 30-065 § 2; prior Ord. No. 27-902 § 17; Ord. No. 52-863, § 18, 12-16-25)

Sec. 20.04.190. Adoption of rules and regulations.

The Director is hereby authorized to make and adopt such rules and written regulations as

may be necessary for the proper enforcement of the provisions of this chapter; provided that such rules and regulations shall not be in conflict with the provisions of this chapter. All such rules as the Director may deem necessary for the proper and effective enforcement of the provisions of this chapter shall be subject to the approval of the city council and shall be binding and effective when filed in the office of the city clerk. (Ord. No. 27-902 § 18; Ord. No. 52-863, § 19, 12-16-25)

Sec. 20.04.200. Penalty.

(a) Unless otherwise provided, any person who violates any of the provisions of this chapter, shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by the following:

(1) Upon a first conviction, a fine of not less than three hundred dollars and more than one thousand dollars;

(2) Upon a second conviction, a fine of not less than five hundred dollars nor more than one thousand dollars;

(3) Upon a third conviction, a fine of not less than one thousand dollars nor more than two thousand dollars;

(4) Upon a fourth or subsequent conviction, a fine of not less than two thousand dollars nor more than two thousand five hundred dollars;

In addition to the preceding fines such person may be punished by a term of imprisonment which shall not exceed twelve months, or by both such fines and imprisonment.

(b) The imposition of the fines established in subparagraph (a) herein shall be mandatory and the court shall not waive, remit, suspend, parole or otherwise excuse the payment thereof except that the court may order that the defendant perform community service specified by the court but such an order shall be entered only after the court has required the defendant to file an affidavit of such defendant's financial condition as required by Section 1.04.210(e) and amendments thereto, and the court has found from the information contained in the affidavit that the defendant is financially unable to pay the fines imposed herein.

(c) In determining the appropriate fine or term of imprisonment for any violation of this chapter, the Court in utilizing its discretion to determine the appropriate sentence shall consider all relevant facts and circumstances regarding the offense. Such considerations include:

1. The nature, seriousness, and duration of the violation(s);

2. The degree of risk or actual harm posed by the violation(s) to occupants, tenants, neighbors or the public;

3. The impact of the conduct on an occupants, tenants or the public health and safety of citizens or neighbors;

4. The resources of the defendant, including the size, scale, and profitability of the defendant's rental operations (if applicable), as well as the feasibility and cost of abatement in light of the defendant's available resources;

5. The actions of the defendant to make timely and reasonable efforts to correct the violation(s);

6. The actions of the defendant to cooperate with city officials;

7. The presence or absence of prior violations, warnings, or enforcement actions;

8. Recommendations of the code official; and

9. Any mitigating circumstances including the mental capacity of the defendant;

Consideration of these factors is intended to ensure that penalties are proportionate to the circumstances of each case, allowing the Court to impose enhanced sanctions against chronic or egregious offenders while avoiding undue hardship on responsible property owners who make genuine efforts to maintain safe and clean premises and habitable housing.

(d) For the purposes of determining whether a conviction is a first or subsequent conviction in sentencing under this section:

(1) conviction includes being convicted of a violation of this section, and it is irrelevant whether an offense occurred before or after conviction for a previous offense.

(2) conviction includes being convicted of a violation of this chapter or entering into a diversion agreement in lieu of further criminal proceedings on a complaint alleging a violation of this section.

(3) any convictions occurring during the five years prior to the date of the occurrence shall be taken into account when determining the sentence to be imposed.

(4) Prior convictions on any property, dwelling or dwelling unit owned, managed or operated by the same individual or entity, or a prior entity owned. operated or controlled by the defendant shall be considered as a prior conviction for sentencing purposes.

(e) Each day that any violation of this ordinance continues shall constitute a separate offense and be punishable hereunder as a separate violation.

(f) In addition to the penalties set forth above, the Judge of the Wichita Municipal Court may, in his or her discretion, require that the owner register such dwelling or dwelling unit with the Director pursuant to Chapter 30 of the Code of the City of Wichita.

(g) Further, the Court may order that the property be re-inspected by the Director to insure that the property has been brought into compliance with the provisions of this Code. If the owner or occupant denies entry, the Director shall take all necessary and prudent actions to obtain an administrative warrant to inspect such premises.

(Ord. No. 27-902 § 19; Ord. No. 47-302, § 10, 11-21-06; Ord. No. 52-863, § 20, 12-16-25)

CHAPTER 20.08. ALTERNATIVE CORRECTIONAL HOUSING

Sec. 20.08.010. Definitions.
Sec. 20.08.015. Enforcement of chapter.
Sec. 20.08.050. Correctional placement residence—License required.
Sec. 20.08.060. Correctional placement residence—Licensing procedure.
Sec. 20.08.070. Correctional placement residence—Term of license, fees.
Sec. 20.08.080. Correctional placement residence—License renewal and changed information.
Sec. 20.08.090. Correctional placement residence—License—Criminal records check.
Sec. 20.08.100. Correctional placement residence—License—Program audit.
Sec. 20.08.110. Correctional placement residence—License—Minimum standards.
Sec. 20.08.115. Right of entry and inspection of licensed premises.
Sec. 20.08.120. Correctional placement residence—License—Spacing requirements.
Sec. 20.08.125. Additional standards for existing licensed facilities with sex offender populations.
Sec. 20.08.130. Correctional placement residence—License—Appeals and hearings.
Sec. 20.08.140. Correctional placement residence—License—Revocation.
Sec. 20.08.150. Violation—Penalty.
Sec. 20.08.160. Savings clause and severability.

Sec. 20.08.010. Definitions.

As used in this chapter, the following words, terms, and phrases shall have the meanings set out below:

(a) "Alternative correctional housing" means residential or day reporting facilities for individuals or offenders who require a more structured, supervised residential living environment than independent living. This community-based living arrangement is an alternative to incarceration in either state penal institutions or the Sedgwick County jail. Such facilities meeting the definition of correctional placement residence are subject to regulation by this chapter.

(b) "Board" means the Wichita alternative correctional housing board.

(c) "Client" or "resident" means the residents of a facility for whom the facility and its programs are operated and shall not include those staff persons employed by the license holder who reside on the premises only as a condition of employment.

(d) "Correctional placement residence" means a facility for individuals or offenders that provides residential and/or rehabilitation services for those who reside or have been placed in such facilities due to any one of the following situations: (1) prior to, or instead of, being sent to prison; (2) received a conditional release prior to a hearing; (3) as a part of a local sentence of not more than one year; (4) at or near the end of a prison sentence, such as a state operated or franchised work release program, or a privately operated facility housing parolees; (5) received a deferred sentence and placed in facilities operated by community corrections; or (6) require court-ordered guidance services for alcohol or chemical dependence. Such facilities will comply with the regulatory requirements of a federal, state or local government agency as well as the licensure requirements of this chapter. This definition shall also include day reporting facilities that provide non-residential community supervision services to individuals or offenders who are under supervision of the court and any of whom are required to report to the facilities for three or more days per week for six or more hours per day. Facilities operated by a unit of government are not subject to the provisions of this Code and will not be used for the purpose of calculating spacing requirements.

(e) "Facility" means a correctional placement residence.

(f) "Governing body" means the city council of the City of Wichita.

(g) "License holder" means the owner or operator of a facility in whose name the application is made or the license granted. The license holder shall be responsible for compliance with all provisions of this chapter.

(h) "Minimum standards" means those minimum operation practices and standards for a facility as defined by this chapter.

(i) "Premises" means a zoning lot as defined by the Unified Zoning Code on which a facility seeking a license is located.

(Ord. No. 44-970 § 1)

Sec. 20.08.015. Enforcement of chapter.

The superintendent of central inspection and deputies under the superintendent's supervision are designated to administer and enforce this chapter, and while carrying out such enforcement activities, shall have all the powers set forth in Section 1.04.200 of this Code.

(Ord. No. 44-819 § 10)

Sec. 20.08.050. Correctional placement residence—License required.

(a) A license shall be required of all facilities existing on January 1, 1997, and of all facilities established or annexed into the city after that date. No license shall be granted to any facility until it has complied with the licensing requirements of this chapter.

(b) The license shall be granted for a one year period. Each facility must reapply for a license annually and pay the renewal fee.

(Ord. No. 43-218 § 5)

Sec. 20.08.060. Correctional placement residence—Licensing procedure.

(a) Application Form. Application for a facility license shall be made to the city treasurer on forms provided for such purpose. The application must include the following, except that requirements pertaining to program audits shall not apply to day reporting facilities:

(1) Names and addresses of owners, managers or operators, and facility;

(2) Description of the types of services provided at the facility including population served (felonies and misdemeanors), the number of clients and full-time staff to be housed or served at the facility, and the location of the facility. The description of services and population shall include whether the facility plans to house or provide services to sex offenders, and an estimate of the approximate number of such offenders who will be housed at or served by the facility. Changes in the facility's services and/or population, especially with respect to the facility's sex offender population shall be considered to be a material change and shall require notification of the city as set forth in Section 20.08.080(b). Day reporting facilities shall provide a copy of the contract under which the facility will operate that sets forth the services to be provided by the facility.

(3) A written program of services, which program will be subject to a program audit. Technical assistance will be provided by the program auditor if needed;

(4) Approval signature blocks for city staff or auditors that will show that there has been approval of a life, safety, and health inspection of facility premises, a program audit, appropriate zoning, criminal records check, and proof of licensing by the Kansas Department of Social and Rehabilitation Services Substance Abuse Treatment and Recovery (SATR) [formerly Alcohol and Drug Abuse Services (ADAS)], if applicable;

(5) Proof of licensing by the Kansas Department of Social and Rehabilitation Services Substance Abuse Treatment and Recovery (SATR) [formerly Alcohol and Drug Abuse Services (ADAS)] or substantial equivalent if such is required for the program offered or to be offered at the facility;

(6) Other information as may be required to determine compliance with the requirements for licensing.

(b) Requirements for Licensing. The following requisites must be met for a facility to be licensed by the city, except that numbers (4), (5), (6) and (9) shall not apply to day reporting facilities:

(1) The facility is located in an appropriate zoning district, including being a legal

nonconforming use. If appropriate zoning does not exist at the time of license application, the applicant must show that application has been made for conditional use approval, if allowed by the zoning code, or for rezoning to an appropriate zoning classification. In the event that appropriate zoning does not exist at time of application, the application will be considered pending until there is a decision on the application for conditional use or rezoning;

(2) Life, safety, and health inspections of the facility premises to show that the facility complies with appropriate code requirements. The superintendent of central inspection will initiate the inspections and secure those inspections that must be performed by other agencies such as fire and health. The application will be considered pending until any remedial acts are performed to cure deficiencies found by the inspections;

(3) Satisfactory completion of a criminal record check of owners and management staff as provided in this chapter;

(4) The applicant shall notify the police department when the facility houses any client convicted of a sex offense or a child molestation offense for which the client is required to register as provided by the Kansas offender registration act, K.S.A. 22-4901 et seq., and amendments thereto. If the housing of such a client or clients is provided subsequent to the approval of the application, the applicant shall be required to provide a supplemental notification containing that information;

(5) The applicant shall notify neighborhood residents, businesses, churches and schools when the facility houses any client convicted of a sex offense or a child molestation offense for which the client is required to register as provided by the Kansas offender registration act, K.S.A. 22-4901 et seq., and amendments thereto. The applicant will also make prudent and reasonable efforts to determine if the facility houses any client who has ever been convicted of a sex offense or a child molestation offense, and shall include such clients in the required notification. To be in compliance with this licensing requirement, the notification to the neighborhood shall be in writing and shall be mailed or hand-delivered to all neighborhood residents, businesses and churches within two blocks in any direction from the facility; the principal of any neighborhood school within eight blocks in any direction from the facility; and the president of the neighborhood association representing the area in which the facility is located. A facility must make this required notification of the neighborhood within five days of accepting placement of any sexual offender as defined herein. After initial notification of the neighborhood has been made as required herein, the facility shall repeat the required notification of the neighborhood process at least every three months thereafter, unless the facility has not housed sexual offenders for the previous three-month period. If the facility has not housed sexual offenders for at least three months and does not provide quarterly notification to the neighborhood as required, a notification to the neighborhood will have to be provided within five days of acceptance of any sexual offender. The written notice form shall be deemed sufficient if it is in substantially the following form:

NOTICE

According to Section 20.08.060 of the Code of the City of Wichita, a correctional placement residence is required to notify its neighborhood when it houses a client or clients who have been convicted of a sexual offense or a child molestation offense.

This is to provide notice to the neighborhood that Facility name) located at (Address) has_____(#) client/s who is/are CONVICTED SEXUAL OFFENDERS. It is estimated that this/these individuals will remain at this facility for _____ (Duration Month/Year).

Should the offender/s remain at this facility longer than this date, renotification will occur.

The average daily placements of sexual offenders during the past three months has been_____(#).

Should you need additional information please contact the Sedgwick Co, ;comment; Department or refer to their Internet website. Other questions can be directed to the facility contact person who is _____, (Name) who can be reached at _____ (Phone number).

This facility as an acceptor of Sexual Offenders, will notify neighborhood residents, businesses, schools and churches within a two block area of the facility, either by mail or a hand delivered notice, within five calendar days of its first sexual offender placement. Providers will make prudent and reasonably efforts to determine if clients have ever been convicted of a felony level sex offense and/or child molestation. Such notification will be issued within five calendar days of such placement. Subsequent notification shall be made on a quarterly basis only if any convicted sexual offender remains housed at the facility. The notification shall include the average daily placements for the quarter. A copy of the notification will be provided to the City of Wichita Superintendent of Central Inspection.

Additional notification will be made to:

_____ The principal of a neighborhood school(s) within an eight block area _____

The president of any Neighborhood Association/s

The Alternative Correctional Housing Advisory Board through the Office of Central Inspection, City of Wichita, 7th Floor City Hall, 455 North Main, Wichita, Kansas 67202.

(6) Completion of a program audit and compliance with the minimum standards as further provided in this chapter;

(7) The facility shall comply with the spacing requirements established by this chapter;

(8) The applicant will be responsible for paying the license fee when the application is initiated;

(9) The applicant shall attend a training session or view a videotape of the training session as a condition of licensure.

(c) Application Pending. A new facility shall not commence operations until the licensing requirements defined in this chapter have been satisfactorily met. The application is considered pending until that time. Existing facilities are given ninety days from the date of application to comply with life, health and safety codes, minimum standards, and zoning requirements.

(d) Grant or Denial of License. Upon satisfactory completion of the requirements for licensing, the city shall grant a license to the applicant. If the applicant fails to meet all the requirements within the time provided by the superintendent of central inspection, the license shall be denied.

(Ord. No. 44-170 § 2)

Sec. 20.08.070. Correctional placement residence—Term of license, fees.

(a) Term. The license shall be granted for a one year period from the date of approval and grant of the license. The facility must reapply for a license annually and pay the renewal fee.

(b) Fees. The license fee shall accompany the application for a new facility and for renewal. The amount of the fee shall be the sum recommended by the board and approved by the governing body. If the application is denied, one-half of the fee shall be returned to the applicant.

(c) Program Audit Fees. The applicant must pay the program audit fees upon completion of the audit and prior to the grant of the license.

(Ord. No. 43-218 § 7)

Sec. 20.08.080. Correctional placement residence—License renewal and changed information.

(a) Renewal. The city shall mail a license renewal application form to all licensed facilities annually. The facilities must comply with all of

the requirements for licensing set forth in this chapter, and the applicant must arrange for all inspections and the program audit to be completed within sixty days of the date of the notice of renewal.

(b) Changed Information. A licensed facility shall notify the city within ten days in writing of any change in the information required to be provided with the application. Such information shall be provided to the superintendent of central inspection who shall notify the license holder if such changes are considered material and affect the grant of the license. If deemed material, the superintendent of central inspection may revoke the license under the procedures of this chapter, may treat the new information as a renewal application, or may require additional inspections or audits of the facility.
(Ord. No. 44-819 § 3)

Sec. 20.08.090. Correctional placement residence—License—Criminal records check.

(a) Criminal Records Check. The application information shall be forwarded to the police department for a records check on the owners and management staff of the facility. The owner, manager or operator of a correctional placement residence and its employees must meet requirements in terms of past criminal activity for the facility to be licensed or relicensed.

(b) Standards. A license will be denied if any owner, manager or operator of the facility meet any one of the following conditions:

(1) Are currently under supervision or have a felony case pending;

(2) Have been convicted of five or more misdemeanor cases in the five-year period immediately preceding the application date;

(3) Have been convicted of, or have been on court ordered supervision or parole for, any felony violation for the five-year period immediately preceding the date of application; or

(4) Have been convicted of any felony violation involving sex offenses or child molestation.

(c) Employment Policies. In addition to the records check for owners and managers of the facility, the facility must establish a personnel policy which prohibits employment of paid or unpaid supervisory persons who:

(1) Have been convicted of any violation involving sex offenses or child molestation;

(2) Have felony charges pending; or

(3) Are currently under the supervision of any federal, state or local court.

(Ord. No. 44-819 § 4)

Sec. 20.08.100. Correctional placement residence—License—Program audit.

(Repealed.)
(Ord. No. 44-970 § 3)

Sec. 20.08.110. Correctional placement residence—License—Minimum standards.

(a) The facility must meet minimum standards that define operational practices and services provided before a license is granted, except that these standards shall not apply to day reporting facilities. These standards shall include:

(1) Insurance. General liability insurance will be carried on the licensed premises, naming the city as an additional insured. The amount of insurance coverage will be one million dollars. In addition, workers' compensation coverage will be maintained in amounts required by law.

(2) Local Zoning. The facility will be in compliance with all applicable zoning ordinances, or is attempting to comply with, or change such laws, codes, or zoning ordinances through legal means.

(3) Facility. The building will conform to applicable building, housing, sanitation and health codes, except as follows: Sleeping space with a minimum of twenty unencumbered square feet per person will be provided. Telephone facilities will be maintained at each building for emergency access by residents. Vermin, pest control

and trash removal agreements will be available for review. The facility and surrounding area will remain clean and in good repair.

(4) Exclusion of Contraband. Reasonable and prudent efforts will be made to routinely search the facility and personal property to discourage introduction of contraband.

(5) Fire Prevention. Written policy and procedure will specify the facility's fire prevention regulations and practices to ensure the safety of staff, clients and visitors. These include, but are not limited to:

A. An adequate fire protection system will be provided;

B. A quarterly system of fire inspections and equipment testing will be established;

C. An annual inspection by local fire officials will be conducted; and

D. Fire protection equipment will be accessible in identified locations.

At a minimum, written emergency procedures will include instructions for the following:

A. Immediate notification of the fire department;

B. Alerting and/or evacuating occupants;

C. Controlling or extinguishing the fire; and

D. Evacuation routes/procedures.

New staff will be trained on the procedures prior to shift coverage and all staff will review them annually. Additionally, diagramed evacuation routes are to be posted in a conspicuous location on every occupied floor. Evacuation drills will be conducted monthly during hours when most residents are present in the facility. Smoking policies will be posted and smoking areas clearly identified.

(6) Food Service. Food service provided at the facility will comply with all sanitation and health codes enacted by state or local authorities. At no time can meals be denied to residents as a disciplinary measure. The facility may require that residents pay for meals, if applicable, or that residents sign up for meals within a reasonable time.

(7) Interagency Communication. The license holder will document communications with other components of the criminal justice system in an effort to further promote the public welfare and safety, especially those with the referring and/or supervising authority.

(8) Counseling. The license holder will provide proof of licensing by the Kansas State Department of Social and Rehabilitation Services Substance Abuse Treatment and Recovery (SATR) [formerly Alcohol and Drug Abuse Services (ADAS)], if the facility is providing substance abuse treatment.

(9) Accommodations. Each resident will be provided with a sleeping area that includes, at least a bed, mattress, pillow, supply of bed linen, chair and locked storage space for personal belongings.

(10) Linen Exchange. A written policy and procedure will be developed and followed for the issuance of clean, usable bedding, linen, and towels to new residents, including the provision for exchange or laundering on at least a weekly basis.

(11) Staffing. The staffing pattern of the facility will concentrate staff at the times when most residents are in the facility. The facility will provide a work schedule for all supervision and program staff.

(12) Facility Supervision. At least one paid or unpaid staff person who meets the criminal record requirements for employees will be available at the facility premises and responsive to the residents' needs twenty-four hours a day.

The facility will ensure reasonable and prudent standards of supervision (staff to

client ratio) to ensure public safety. Standards for supervision will be based upon, but not limited to, the following factors:

A. The physical layout of the facility including the number of buildings, exits, rooms, floors and common space in the facility;

B. Use of an electronic monitoring system to monitor entry, egress, and internal movement within the facility;

C. The number of employees available per shift; and

D. The maximum number of residents the facility is licensed to house.

(13) Authority. Written policy will prohibit any resident from being in a position of control or authority over other residents.

(14) Absconders. A written procedure will be established, reviewed annually, and updated as necessary for the prevention, detection and pursuit of absconders. In addition to providing services to the resident, the facility also has a responsibility for the safety of the community. The procedure should provide for prompt reporting of the situation to appropriate authorities. If a resident placed at the facility for the commission of any crime of violence against a person absconds, operators should make an effort to facilitate notification of the victim(s) by working with the supervising agency.

(15) Supervision of Resident Movement. In accordance with written policy and procedure, the staff will monitor movements of residents into and out of the facility. The license holder will maintain a written procedure and a system of accounting for the whereabouts of residents at all times. There will be procedures for periodic counts of residents, sign-in and sign-out procedures, and procedures for locating and verifying the presence of residents, such as requiring them to leave a telephone number and/or location at which they may be reached when not in the facility. Staff will monitor and control the access to the facility's sign in/out log and determine the identity of all visitors.

(16) Personnel. The owner, manager and/or operator and supervisory staff must pass the criminal record check requirements. The facility will establish a personnel policy that prohibits employment of paid or unpaid supervisory persons with any of the following:

A. A previous conviction of any violation involving sex offenses or child molestation;

B. A current felony charge or charges pending; or

C. Is currently under the supervision of any federal, state, or local court.

The facility will maintain documentation that each employee is informed regarding the standards of employee conduct, including but not limited to the following:

A. No favoritism will be shown towards any group or individual residents;

B. Professional relationships will be maintained;

C. Employees will have no business relationship with residents;

D. No criminal conduct will be engaged in by staff; and

E. No sexual harassment will be engaged in by staff.

Training on emergency procedures will be conducted for each staff person prior to assuming shift coverage. Documentation of the training will be maintained. The facility will maintain a written policy concerning equal opportunity for all job applicants as well as a written policy to prevent conflicts of interest. The facility will maintain a current organizational chart, a current written operations manual, and will document regular staff meetings.

(17) Operations Manual. The license holder will maintain an operating manual specifying approved methods of implementing

the license holder's policies and providing details for daily operations. The manual will be available to all staff and volunteers. Operations manuals are to be reviewed annually and updated as needed.

(18) Program Rules. Each resident will receive a copy of the program policy stating rules and regulations, including disciplinary procedures appropriate for staff to utilize. The policy will be read, signed, and dated by each resident upon admission to the facility.

(19) Posting of Rules. All program rules and regulations pertaining to residents will be conspicuously posted in the facility.

(20) Grievances. Written policy and procedure will provide for a grievance process for residents. A copy of the grievance policy and procedure will be posted in a conspicuous place on the premises of every licensed facility. The grievance information will also be transmitted to the party requesting, without alteration, interference, or delay. In the event of a grievance, a written report documenting the final disposition will be prepared and filed in the resident's case record. The resident will also receive a copy of the final report.

(21) Termination of Services. Written policy and procedure concerning the removal of any resident from the program at the facility will be developed. Reasonable and prudent action will be taken on the part of the facility to ensure that a resident's dismissal does not threaten the safety of the resident or the community.

(22) Reimbursements. Written policy and procedure for the facility's reimbursement by residents will be developed. The policies will include at least the method for calculating payments, acceptable method of payment, dates or times that payments are due, and the exact services being purchased. These policies and procedures will be delivered in writing to each resident upon admission.

(23) Discipline. Written policy and procedure prohibiting the use of personal abuse and corporal punishment will be developed. All facility rules will be posted in a conspicuous place as well as included in the client handbook. Any system employed to reward resident behavior with greater freedom or privileges will be maintained in writing and provided to the resident upon intake. Any disciplinary actions available for use by staff with residents will be in writing and provided to the resident upon intake. Any disciplinary action taken will be documented in a written report filed in the resident's case record. The facility will have a written policy on the use of force.

(24) Case Management. The license holder will maintain a case record for each person residing in the facility. The record will include all significant decisions and events relating to the resident. The facility will have written policies and procedures governing resident referral and intake, and the contents of each case file. Confidentiality of case records is essential and policies and procedures will be in place to ensure that confidentiality is maintained. The facility will develop a network of community resources and services in an attempt to fulfill each resident's basic needs.

(25) Programs. All program privileges will be written and delivered to the resident upon intake. Any revisions will be documented and forwarded to the resident prior to implementation. There will be a written policy concerning passes and curfews. In-house recreation such as television viewing, table games and exercise equipment will be made available to residents. Written policies and procedures will be in place concerning the testing of residents for substance abuse. Written policies and procedures will also address sanctions available to the facility for substance abuse infractions. A private area of the facility will be available for counseling. All residents will have access to religious services.

(26) Medical Services. Written procedures will be in place to address emergency medical needs. At a minimum, one staff person per shift will be trained in emergency first aid and cardiopulmonary resuscitation. The facility will have basic first aid supplies on site at all times. The facility will have written policies and procedures regarding the control and dispensing of residents' prescribed medication and over-the-counter drugs. The facility will have written procedures providing for prompt detection and appropriate treatment for instances of serious injury or illness, and for the prompt reporting of instances of death.

(27) Transportation. The facility will be located within one mile of public transportation or other means of transportation will be available.

(28) Referral Agency Emergency Contacts. License holders will maintain a list of all referring agencies, with designated contact persons who can be notified at all times and who can assist when critical decisions are necessary relevant to residents and/or public safety.

(Ord. No. 45-786 § 1; Ord. No. 44-970 § 4)

Sec. 20.08.115. Right of entry and inspection of licensed premises.

Every facility licensed under this chapter shall admit to any and every part of the premises designated in the license at any time any duly authorized officer or agent of the city or any law enforcement officer for inspection of the premises to assure compliance with the regulations of the city. The right of entry to and inspection of any premises licensed under this chapter shall be a condition on which every license hereunder is issued. The application for and acceptance of any license or temporary permit shall conclusively be deemed to be the consent of the applicant and licensee to such entry and inspection, and such consent shall not be revocable during the term of the license. Refusal of such entry and inspection shall be grounds for revocation of the license.

(Ord. No. 44-052 § 5)

Sec. 20.08.120. Correctional placement residence—License—Spacing requirements.

(a) A license shall not be issued to any new facility, nor shall any existing facility be relicensed that has any sex offender population, as that term is defined in this chapter, when such facility is within one thousand two hundred feet of an existing facility or any of the other following uses: day care centers or facilities; public parks or playgrounds; private businesses that primarily serve children and/or youth under the age of eighteen; public or private preschools, elementary, middle and high schools; residences or agencies that provide on-site services to persons suffering from developmental, physical or mental disabilities; taverns or drinking establishments; adult entertainment establishments; and residential zoning districts. This prohibition shall not apply to the licensing or relicensing of facilities in existence on May 1, 2001, which apply for a license in accordance with this chapter, if such facility does not have any sex offender population, nor shall it apply to the location of any licensed facility that is in existence and has a sex offender population on the effective date of this ordinance, when such facility complies with the provisions set forth in Section 20.08.125 of this Code. For the purposes of this section, a facility will be deemed to have a sex offender population if the sex offender population was reported to the office of central inspection as required by Section 20.08.060(b)(5) of this Code, and which report covers the date of January 1, 2002. If the license of a facility in existence at a particular location on May 1, 2001, subsequently expires for a period exceeding ninety days or the premise are used for another type of business, then this provision on spacing shall also apply to the licensing of any facility at the same location, whether the facility is new or is a formerly existing facility.

(b) If a new facility seeking a license can show that the existing facility is not licensed or is not being used as a correctional placement residence, the superintendent of central inspection may grant the license in his or her discretion upon finding that the intent of the spacing requirements are being met.

(c) The distances in this section shall be measured from the nearest portion of the exterior of the specific portion of the building subject to the application to the nearest portion of the exterior of the specific portion of the building already being used as a correctional placement residence or to the property line of any of the other uses set forth in subsection (a) herein. If a request is made on behalf of a facility seeking a license, the superintendent of central inspection may waive up to twenty-five percent of the spacing requirement in a specific application upon a finding that (1) the intent of the spacing requirement is being met through the existence of major barriers or the presence of alternative features or factors that mitigate the reduction in spacing distance, or (2) strict application of the spacing requirements will work an injustice due to unique configurations of buildings or other matters unique to the location of the existing or applicant facilities. The decisions of the superintendent of central inspection under this section are subject to appeal as provided by this chapter.

(d) An appeal may be taken from the application of any of the provisions of this section by following the procedure set forth in Section 20.08.130 of the code, except that the appeal shall be assigned to the alternative correctional housing advisory board for review, rather than a three-person investigative panel. The board shall conduct a public hearing and shall comply with all of the notice requirements as set forth in Subsection 20.08.130(a), after which a recommendation shall be made to the city council. The city council shall hear the matter on the record and shall have the authority to reduce or waive specific provisions of this section pertaining to the location and spacing of correctional placement facilities.
(Ord. No. 45-369 § 1; Ord. No. 44-970 § 5)

Sec. 20.08.125. Additional standards for existing licensed facilities with sex offender populations.

Licensed facilities which are in existence on the effective date of this ordinance and have a sex offender population at a location which does not meet the spacing requirements as set forth in Section 20.08.120 may continue to house a sex offender population if the facility is in compliance with the following requirements:

(a) The operator, owner, and/or manager of any facility that contracts with any government agency for placement of sex offenders shall be required to implement a security plan approved by the contracting agency. If a facility does not contract with a government agency, the operator, owner, and/or manager of such facility shall be required to demonstrate that his or her facility is in reasonable compliance with the following:

1. To the extent possible, design and placement of the physical features of a facility will be in such a manner as to maximize visibility.
2. Placement of gathering areas should be in locations that maximize surveillance and access control possibilities and when possible, away from the view of surrounding occupants.
3. Minimum lighting standards should be maintained that provide for nighttime illumination of parking lots, walkways, entrances, exits and related areas to promote a safe environment.
4. Sidewalks, pavement, gates, lighting and landscaping should be used to clearly designate entrances and exits.
5. Gates, fences, walls, landscaping and lighting should be used to minimize dark or unmonitored areas.
6. Lighting fixtures should be maintained properly to prescribed standards.
7. Landscaping should be maintained to prescribed standards.
8. Conflicts between surveillance and landscaping such as ground cover, shrubs and trees should be minimized as such plants mature.

In addition to the foregoing requirements, a facility that does not contract with a

government agency for placement of sex offenders will be subject to announced program audits as provided in Section 20.08.100 of this Code. To further ensure compliance with all of the provisions of this chapter such a facility shall also be subject to unannounced audits and/or random checks by the program auditor, by any duly authorized officer or agent of the city, or by any law enforcement officer, as allowed by Section 20.08.115 of this Code.

(b) Facility operators, owners and/or managers must show a commitment to work with the surrounding neighborhood and the Wichita police department to engage neighbors in community education and dialogue relating to personal safety, and to inform neighbors of all existing education, training, and personal safety programs offered by the police department, including but not limited to Neighborhood Watch, Neighborhood Patrol, home and business security surveys, business safety and crime prevention problems such as robbery and shoplifting prevention, Operation Identification, and child identification programs.

(c) Facility operators, owners, and/or managers must show a commitment to maintain continued communication with police officers assigned to the neighborhood, encourage periodic visits to the facility and surrounding businesses by such police officers, and facilitate training and education programs provided by police for neighborhood audiences.

(d) The population of sex offenders at such facilities shall be limited to fifty percent of the facility's total licensed capacity at any given point in time. The facility shall maintain at all times a current list of residents who are sex offenders. The list shall be submitted on a monthly basis to the office of central inspection in accordance with the rules and regulations governing such submissions, and to the chief of police, or the chief's designee. A copy of this list shall also be maintained on the premises of the facility at all times and shall be made available upon request to the program auditor, any duly authorized officer or agent of the city, or any law enforcement officer.

(e) Facility operators, owners, and/or managers shall be responsible for disclosing to the neighborhood residents and businesses the plan for supervision of sex offenders housed in such facility.

(f) Compliance with the provisions of this section shall be monitored by any or all of the following: the superintendent of central inspection or any of the superintendent's duly authorized deputies, officers of the Wichita police department, the program auditor, or private contractor.

(g) Facilities will be given ninety days from the effective date of this ordinance to comply with the requirements set forth in this section.

(Ord. No. 45-369 § 2)

Sec. 20.08.130. Correctional placement residence—License—Appeals and hearings.

(a) Appeals. Appeals may be taken to the city manager from the grant or denial of a license, from the interpretation of the license standards in a specific application, or from a decision to revoke a licensee by filing a notice with the city manager within twenty days of the decision to be appealed. The city manager shall appoint a three-person investigative committee to review the decision or decisions which have been appealed. The investigative committee shall designate one member as chairperson and shall hold a public hearing on all appeals after giving notice in writing to the applicant, person appealing, and any other person requesting such notice in writing. At the hearing, any interested party may appear in person or by its agent or attorney and present evidence. The rules of evidence prevailing in courts of law or equity shall not be controlling in hearing before the investigative committee.

Within ten days of the hearing, the investigative committee will make a recommendation to the city manager to reverse or affirm, in whole or

in part, or modify the grant or denial of a license, the interpretation of the license standards applicable to the appeal in question, or the decision to revoke a license hereunder. The city manager then has ten days to affirm, deny or modify the recommendation of the investigative committee, and shall communicate the decision in writing to the person who filed the appeal, and any other person requesting notice of the decision in writing.

(b) Person Aggrieved. Any person aggrieved who may file an appeal under this section shall include, for purposes of this chapter, the applicant, any person impacted by a decision of the superintendent of central inspection or the city manager (which shall include at least persons within the calculation of notice requirements under the zoning code), and any governmental agency or official affected by such decision.

(c) Appeal to City Council. Any person aggrieved by the decision of the city manager may file an appeal with the city clerk within ten days of the date of the decision. The city council shall hear the matter on the record and may reverse or affirm, in whole or in part, modify the grant or denial of a license or the interpretation of the license standards applicable to the appeal in question, or the decision to revoke a license hereunder. The decision of the city council shall be final.
(Ord. No. 44-819 § 8)

Sec. 20.08.140. Correctional placement residence—License—Revocation.

(a) Any license granted under this chapter may be revoked by the superintendent of central inspection upon ten days' written notice to the license holder, for any of the following reasons:

(1) Violations set forth in Section 3.04.070 of this Code;

(2) Failure to maintain minimum standards required by this chapter;

(3) Material changes to the information provided in the application which is not reported to the superintendent of central inspection or which, if reported, is deemed to disqualify the facility for a license as provided in Section 20.08.060;

(4) Failure of any facility to comply with, or meet any of the requirements for licensing applicable to it, as set forth in Subsection 20.08.060(b).

(b) The revocation shall be stayed if the license holder requests a hearing in writing prior to the effective date of the revocation. A hearing shall be held as provided in Section 20.08.130.

(c) Any decision on revocation made after hearing may be appealed to the city council in the manner provided in Section 20.08.130.
(Ord. No. 44-170 § 6)

Sec. 20.08.150. Violation—Penalty.

Any person who shall own, operate, or manage a facility or any premises within the corporate limits of the city in violation of this chapter, in violation of a license granted under this chapter, or without a license when a license is required by this chapter, shall be deemed guilty of a misdemeanor and upon conviction shall be punished by a fine or not more than one thousand dollars. Each day that any violation of this chapter continues shall constitute a separate offense and shall be punishable hereunder as a separate violation.

In addition to the penalty described in this section, the city may seek injunctive relief, administrative penalties or revocation of a license as further provided in this chapter.
(Ord. No. 43-218 § 15)

Sec. 20.08.160. Savings clause and severability.

Nothing in this chapter shall be deemed to abolish or impair any existing remedies of the city or its officers or agencies relating to code enforcement or abatement of nuisances.

If any section or provision of this chapter should be held invalid for any reason whatsoever, such invalidity shall not affect the remaining

portion of this chapter which shall remain in full force and effect and the provisions of this chapter are declared to be severable.
(Ord. No. 43-218 § 16)

CHAPTER 20.12. FAIR HOUSING PRACTICES

Sec. 20.12.010. Policy.
Sec. 20.12.020. Definitions.
Sec. 20.12.030. Unlawful acts.
Sec. 20.12.040. Enforcement.
Sec. 20.12.050. Actions deemed not retaliatory.
Sec. 20.12.060. Penalties.

Sec. 20.12.010. Policy.

The Governing Body recognizes the fact that many tenants hesitate to defend their right to a clean, safe and sanitary dwelling unit due to fear of eviction. It is hereby declared to be the public policy of the City that a tenant in good standing should not be evicted from their dwelling unit where the eviction is motivated by the tenant's exercise of a legal right to complain, in good faith, to a landlord or government agency that the dwelling unit endangers or impairs the health and safety of the tenant.
(Ord. No. 52-325, § 1, 1-9-24)

Sec. 20.12.020. Definitions.

Any term used in this title that is not defined herein shall have the same meaning and definition as set forth in K.S.A. Chapter 58 and amendments thereto.

(a) *'Dwelling unit'* means a structure or the part of a structure that is used as a home, residence or sleeping place by one person who maintains a household or by two or more persons who maintain a common household.

(b) *'Good standing'* means that a tenant is not in arrears in the payment of rent and is in compliance with the duties of a tenant enumerated in K.S.A. 58-2555 and amendments thereto.

(c) *'Retaliate'* or *'retaliatory eviction'* shall include but not be limited to any of the following actions by a landlord when the conditions Section 20.12.030 of the City Code are met:

(1) Commencement of eviction;

(2) Increasing the rent; and

(3) Reduction of services required to be provided by the landlord pursuant to the rental agreement and/or K.S.A. 58-2553 and amendments thereto.

(d) *'Tenant'* means a person entitled under a rental agreement to occupy a dwelling unit.
(Ord. No. 52-325, § 2, 1-9-24)

Sec. 20.12.030. Unlawful acts.

(a) It shall be unlawful for a landlord to retaliate against a tenant if the following conditions are met:

(1) The tenant has organized or has become a member of a tenant's union or similar organization; or the tenant has submitted a complaint, in writing and in good faith, either to the landlord or to a governmental agency charged with responsibility for enforcement of statutes, ordinances or regulations pertaining to the maintenance of safe and sanitary dwellings, of conditions in or affecting the tenant's dwelling unit which constitute a violation of any statute, ordinance or regulation pertaining to the maintenance of safe and sanitary dwellings; and

(2) The violation in subsection (a)(1) of this Section imposes responsibility on the landlord; and

(3) The landlord retaliated against the tenant within six months of either (i) the date the tenant organized or joined a tenant's union or similar organization, or (ii) the date the tenant submitted the complaint.
(Ord. No. 52-325, § 3, 1-9-24)

Sec. 20.12.040. Enforcement.

(a) A tenant subjected to unlawful retaliation as defined by 20.12.030 of the City Code may file a written complaint and affidavit with the City Clerk alleging unlawful retaliation by the landlord. The written complaint and affidavit may be filed personally or through an attorney (or if a minor, through the minor's parent, legal guardian or attorney) and shall be completed on forms provided by the City. The complaint form shall state the

names and contact information of the tenant, the individual(s) and/or entity/entities alleged to have committed the unlawful retaliation alleged, and a description of the alleged unlawful retaliation, and all other information as may be required by the form provided by the City. The complaint form shall only be considered complete if all information required by the City's form has been provided to the extent such information is reasonably available to the tenant.

(b) The written complaint and affidavit forms must be filed within one hundred eighty (180) days of the alleged unlawful retaliation, unless the act complained of constitutes a continuing pattern or practice of unlawful retaliation, in which event, it must be filed within one hundred eighty (180) days of the last act of unlawful retaliation.

(c) The complaint may be referred to a mediator designated by the City Manager from a list of mediators approved in advance by the City Council. Mediation costs will be paid by the City.

(d) If mediation is not successfully completed within sixty (60) days of the referral, or a party chooses not to pursue mediation, the complaint shall be referred to the Investigator, who is designated by the City Manager.

(e) Upon receipt of a completed complaint, the Investigator shall notify the landlord respondent(s) of the complaint, providing sufficient details related to the complaint so the respondent(s) may respond. Notification shall be sent to the landlord respondent by certified mail, return receipt requested, to the address listed for the landlord on the lease, to the address provided on the complaint (if different than that on the lease) and to the address of the leased premises. Upon receipt of a completed complaint, the complainant shall be provided with information on community resources from the Sedgwick County District Court's Eviction Resolution Program. The Investigator shall give the respondent(s) thirty (30) days to file a written answer to the complaint, and to provide any documentation or evidence related to the complaint. The Investigator may, at the request of respondent(s), extend the answer period an additional thirty (30) days. If the respondent accused of violating the provisions of this Chapter is the City, the City will engage an independent Investigator who shall not otherwise be an Employee, agent, or contractor of the City. If the respondent is the City, nothing in this Chapter shall affect the employee grievance processes in contract or policy.

(f) Following the conclusion of the answer period, the Investigator may initiate an investigation period, requesting that the tenant and/or landlord respondent(s) provide additional information, documentation, statements or testimony as needed to facilitate the investigation of the complaint. This investigation period shall be concluded within a reasonable period of time following the submission of additional information, documentation, or testimony.

(g) Upon conclusion of the investigation period, the Investigator shall forward all evidence and other information received during the investigation to the Law Department. The Law Department will make a determination whether probable cause exists that: (i) the landlord respondent(s) committed unlawful retaliation, and (ii) imposition of a penalty pursuant to this Chapter:

(1) Would not constitute an unlawful burden of a person's right to exercise of religion pursuant to Section 7 of the Kansas Constitution Bill of Rights or the Kansas Preservation of Religious Freedom Act (K.S.A. 60-5301 et seq., and amendments thereto), or an unlawful burden of a person's freedom of speech, expression, or association (as protected by the First Amendment of the United States Constitution or the Kansas Constitution); or

(2) If imposition of a penalty would constitute a burden, application of such burden to the person would be in furtherance of a compelling governmental interest and such application would be the least restrictive means of furthering that compelling governmental interest.

(h) If the Law Department finds that probable cause does not exist, then the Law Department shall notify the tenant and the landlord respondent(s) within a reasonable period of time,

and this notification shall be considered a final order and no further action shall be taken by the City.

(i) If the Law Department finds probable cause does exist, the Law Department shall notify the tenant and the landlord respondent(s) and request conciliation and settlement. If a party refuses to participate in conciliation and settlement, or if a settlement agreement is not executed within sixty (60) days of the date of the finding of probable cause (unless such time is extended by the Law Department for good cause and with the agreement of all parties), the matter shall be referred to a Municipal Court judge of the City for review, who shall sit as an Administrative Judge for purposes of this Chapter.

(j) Upon referral to the Administrative Judge, the Administrative Judge shall schedule a hearing on the complaint. The parties shall be given ten (10) days' written notice via certified mail of the date, time, and place of the hearing. At such hearing, the parties and the Law Department shall be entitled to call witnesses and to present such other evidence as appropriate. The hearing shall be conducted in accordance with such procedures as may be established by the Administrative Judge, but the rules of evidence used in courts of law need not be strictly enforced.

(k) Any determination of the Administrative Judge that the landlord respondent(s) committed unlawful retaliation shall be issued in writing within sixty (60) days of the hearing, shall be based upon the preponderance of the evidence, and shall set forth the essential elements and facts of the determination. If the Administrative Judge finds that a civil violation of this Chapter has occurred, the Administrative Judge may impose penalties as described in Section 20.12.060 of the City Code, including, in the Administrative Judge's discretion and upon good cause, awarding a portion of the fine to the complainant as direct damages. The prevailing party is free to pursue their reasonable and necessary costs and fees accrued during the case. Any fines collected under this section shall be used to offset the costs of enforcement of this Chapter. Hearings shall be recorded or transcribed by a court reporter, and transcripts of hearings shall be maintained by Municipal Court. Records of convictions under this Chapter shall be available through the Kansas Open Records Act and shall be published on the City of Wichita website for no less than two (2) years.

(l) The filing of a complaint for the alleged violation of this Chapter or a response thereto shall in no way preclude any party from seeking other relief under state or federal law. Appeals from any final determination of the Administrative Judge shall be made pursuant to K.S.A. 60-2101(d) and its amendments.
(Ord. No. 52-325, § 4, 1-9-24)

Sec. 20.12.050. Actions deemed not retaliatory.

(a) Notwithstanding Section 20.12.030 of the City Code, a landlord may maintain an action to recover possession of the dwelling unit if:

(1) The tenant is using the dwelling unit for an illegal purpose or for a purpose which is in violation of the rental agreement or if tenant is not fulfilling a material term of their lease or for nonpayment of rent;

(2) The complaint was caused by the willful actions of the tenant, the tenant's invitee or another person in the tenant's household; or

(3) The landlord seeks to recover possession on the basis of a notice to terminate a periodic tenancy, which notice was given to the tenant before the tenant's complaint; or

(4) The landlord must comply with the applicable building or housing code that requires alteration, remodeling or demolition which would effectively deprive the tenant of use of the dwelling unit, though such action to recover possession does not release the landlord from liability for material noncompliance with the rental agreement or K.S.A. 58-2553.

(b) Notwithstanding Section 20.12.030 of the City Code, a landlord may increase rent if:

(1) The rent increase does not conflict with the rental agreement; and

(2) The increase is made in good faith to compensate the landlord for expenses incurred as a result of acts of God, public utility service rate increases, property tax increases or other increases in costs of operation.

(Ord. No. 52-325, § 5, 1-9-24)

Sec. 20.12.060. Penalties.

(a) Punishment for a violation of Section 20.12.030 of the City Code shall be as follows:

(1) Upon any conviction, a fine of not less than $1,000 and not more than $2,500.

(b) Each day that any violation of this chapter continues shall constitute a separate offense and may be punishable hereunder as a separate violation.

(Ord. No. 52-325, § 1, 1-9-24)

Title 21

PLUMBING AND GAS FITTING CODE*

Ch. 21.04. Uniform Plumbing Code

Ch. 21.12. Backflow and Back-Siphonage Prevention and Cross-Connection Control

Ch. 21.14. Interpretation and Enforcement

Ch. 21.24. Prefabricated Assemblies

Ch. 21.28. Enforcement

*__Case law reference—__**Case law reference—**For case relative to former plumbing ordinance of city, see *Kleinhein v. Wichita,* 157 P. 1190.

Cross reference—As to appropriating gas, see § 5.86.010 of this Code. As to wasting gas, see § 5.86.020. As to plumbing in restaurants see § 7.20.150. As to toilet facilities in restaurants see § 7.20.210.

CHAPTER 21.01 WICHITA/SEDGWICK UNIFIED BUILDING AND TRADE CODE*

Sec. 21.01.010. Incorporated by reference.

Sec. 21.01.010. Incorporated by reference.

The Wichita/Sedgwick Unified Building and Trade Code is by reference incorporated in and by this publication made part of this title and chapter as fully as though set out at length herein and is adopted as the building and trade regulations for the City of Wichita.
(Ord. No. 49-406, § 1, 12-11-2012)

*__Editor's note—__Ord. No. 49-406, § 1, adopted December 11, 2012, repealed the former Ch. 21.01,, §§ 21.01.010—21.01.260, and enacted a new Ch. 21.01 as set out herein. The former Ch. 21.01 pertained to Uniform Plumbing Code and derived from Ord. No. 49-331, §§ 1—4, 6—9, 11—14, 16—19, 21—24, 26, adopted August 21, 2012.

CHAPTER 21.02. RESERVED*

*__Editor's note—__Ord. No. 49-406, § 2, adopted December 11, 2012, repealed the former Ch. 21.02, §§ 21.02.010—21.02.240. The former Ch. 21.02 pertained to plumbing code—general provisions and derived from Ord. No. 49-331, §§ 27—30, 32—35, 37—40, 42—45, 47—50, 8-21-2012. The user's attention is directed to Ch. 21.01, § 21.01.010.

CHAPTER 21.04. UNIFORM PLUMBING CODE

Sec. 21.04.010. Adopted.
Sec. 21.04.020. Section 102.1 amended.
Sec. 21.04.035. Definitions.
Sec. 21.04.040. Certificates, examinations, cancellations, licenses and permits.
Sec. 21.04.041. Plumbing work performed by owner-occupants of owner-occupied or to be owner-occupied detached single-family dwellings.
Sec. 21.04.042. Insurance required.
Sec. 21.04.043. Truth in advertising requirements.
Sec. 21.04.045. Contractors—Marking of vehicles.
Sec. 21.04.050. Section 103.4.1 Schedule of fees amended.
Sec. 21.04.070. Board of appeals of plumbers and gas fitters.
Sec. 21.04.080. Section 202.0 amended.
Sec. 21.04.090. Section 701.1 amended.
Sec. 21.04.135. Section 712.1 amended.
Sec. 21.04.140. Section 709.0 amended.
Sec. 21.04.145. Section 710.13 amended.
Sec. 21.04.150. Section 804.1 amended.
Sec. 21.04.170. Section 908.0 amended.
Sec. 21.04.185. Battery drainage system.
Sec. 21.04.190. Table 10-1 amended.
Sec. 21.04.204. Section 412.1 amended.
Sec. 21.04.205. Section 411.0 amended.
Sec. 21.04.210. Section 603.0, first paragraph, amended.
Sec. 21.04.220. Section 604.1 amended.
Sec. 21.04.225. Section 608.2 amended.
Sec. 21.04.230. Section 608.5 amended.
Sec. 21.04.240. Section 609.1 amended.
Sec. 21.04.250. Section 609.2 amended.
Sec. 21.04.265. Section 1204.0 amended.
Sec. 21.04.267. 1204.3.1 Rough piping inspection.
Sec. 21.04.270. Reserved.
Sec. 21.04.273. Section 1210.6 created.
Sec. 21.04.275. Section 1211.9.5 created.
Sec. 21.04.280. Section 1211.3 amended.
Sec. 21.04.295. Section 1014.1 amended.
Sec. 21.04.296. Section 1014.2 amended.
Sec. 21.04.298. Section 1014.4 amended.
Sec. 21.04.299. Section 1014.5 amended.
Sec. 21.04.300. Section 1014.6 amended.
Sec. 21.04.305. Section 1014.10 amended.
Sec. 21.04.310. Section 1015.0 amended.

Sec. 21.04.010. Adopted.

The Uniform Building Code, published by the International Association of Plumbing and Mechanical Officials (IAPMO), 2000 Edition, including the Appendix and Installation Standards thereto except Table No. 1-1, Plumbing Permit Fees, Chapter 7, Part II Building Sewers, Sections 1210.1.1, 1211.8, 1211.9, 1211.9.1, 1211.9.2, 1211.9.3, and 1211.9.4, Appendices G, H, J, K, and L, and Installation Standards Number IS-2, IS-4, and IS-16, and except for amendments set forth in this chapter, is by reference incorporated herein and by this publication made a part of this title as though set forth at length herein, and is hereby adopted as the Plumbing Code of the City of Wichita, Kansas.
(Ord. No. 45-200 § 1; Ord. No. 43-889 § 1)

Sec. 21.04.020. Section 102.1 amended.

Section 102.1 of the Uniform Plumbing Code, as adopted by reference herein, shall be amended to read as follows:

Administrative Authority. The administrative authority duly appointed to enforce this Code shall be the Superintendent of the Office of Central Inspection, and for unsanitary conditions of any plumbing system or portion thereof, shall also include the Health Officer and for back siphonage and cross-connection shall be the Director of the Water and Sewer Department. The administrative authority shall make decisions as are necessary to administer and enforce the Code. The administrative authority shall have the authority to refer to the Board of Appeals of Plumbers and Gas Fitters any matter that relates to the approval of plumbing material and methods as the same relate to this Code. All plumbing inspectors shall have had a minimum of five years of practical plumbing experience as a journeyman and/or master plumber. Persons in the employ of the City who are duly certified as combination inspectors or plumbing inspectors by the International Conference of Building Officials, International Code Council or International Association of Plumbing and Mechanical Officials shall also be qualified as plumbing inspectors for the inspection of installations in one-and two-family residential structures.
(Ord. No. 42-576 § 2; Ord. No. 47-883, § 1, 5-13-08)

Sec. 21.04.035. Definitions.

Unless otherwise specified, the following terms, as used in this chapter, mean as follows:

'*Apprentice*' means an individual, who works as an employee in training under the direct supervision of a journeyman or master, who is

responsible for the layout, installation, maintenance, repair or connection of plumbing piping, or plumbing equipment such as toilets, sinks, bathtubs or showers. An apprentice is not a certified individual.

'*Board*' means that board appointed for each licensed trade for the purpose of reviewing code interpretations taken by the building code enforcement division, granting variances from the code, reviewing license applications and license suspensions and revocation.

'*Code*' means the International or Uniform Plumbing Code as adopted by the city, as the context of this article may require.

'*Direct supervision*' means that the apprentice is working on the same structure and/or building site as the journeyman or master, or where the apprentice is within five hundred feet of where the journeyman or master is working.

'*Journeyman Plumber*' means an individual that holds a journeyman certificate issued pursuant to this article evidencing such person to be qualified to lay out, install, maintain and repair work in his area of expertise. A journeyman is responsible for the supervision of any apprentice assigned to work with him.

'*Licensed contractor*' means a person that engages in the business of plumbing or gas fitting.

'*Licensed trade*' or '*trade*' means the mechanical, electrical, plumbing or gas fitting trade, as the context of this article may require.

'*Master Plumber*' means an individual that holds a master certificate issued pursuant to this article evidencing such person to be qualified to layout, install, maintain and repair work in his area of expertise. A master is responsible for the supervision of any apprentice assigned to work with him.

'*Master Plumber, Qualified*' means an individual who holds a contractor license issued pursuant to this article evidencing such person to be qualified to control and have authority of all technical work performed under the authority of the licensed contractor's enterprise and assures quality control and is responsible for complying with all applicable laws, codes and regulations. (Ord. No. 47-883, § 2)

Sec. 21.04.040. Certificates, examinations, cancellations, licenses and permits.

(a) It is unlawful for any person to engage in the business of plumbing, plumbing repair or gas fitting either as a master plumber or master gas fitter, or to do plumbing work, plumbing repair or gas fitting in the city, unless and until a certificate has been obtained therefore, and a license has been issued for such business and a permit has been issued for such work, all in accordance with the provisions of this Code.

(b) Plumbers' apprentices shall be permitted to work when accompanied by and under the direct supervision of a master or journeyman plumber, who shall be responsible for the plumbing work done by the apprentice. There shall be a maximum of four apprentices per one master or journeyman plumber. The on-site master or journeyman shall be responsible for maintaining the ratio of master/journeyman plumbers to apprentices as required by this section. If an apprentice works without the required direct supervision, the qualified master, on-site master or journeyman plumber, and/or the apprentice may be held responsible for violation of this section."

(c) It shall be unlawful for any qualified master to allow or permit an uncertified individual to engage in the business of plumbing, plumbing repair or gas fitting.

(d) Applications for examinations shall be made to the office of central inspection and each applicant shall be examined as to his or her particular knowledge and if satisfied as to the competency of the applicant shall thereupon direct that said certificate be issued to the applicant, authorizing him to engage in or work at the business of plumbing or gas fitting, either as a master plumber or master gas fitter, to do plumbing work, plumbing repair or gas fitting. In order to sit for examination, the applicant must meet the following practical experience requirements:

Practical experience requirements:

Journeyman plumber: two years as apprentice

CHAPTER 21.12. RESERVED*

*__Editor's note—__Ord. No. 49-403, § 41, adopted December 11, 2012, repealed the former Ch. 21.12, §§ 21.12.010—21.12.190. The former Ch. 21.12 pertained to backflow and back-siphonage prevention and cross-connection control, and derived from Ord. No. 3g-540, § 19; Ord. No. 40-856, §§ 3, 4, 10, 11; Ord. No. 43-168, §§ 1—14. The user's attention is directed to Ch. 21.01, § 21.01.010.

CHAPTER 21.14. INTERPRETATION AND ENFORCEMENT

Sec. 21.14.010. Definitions.
Sec. 21.14.020. Certificate - Examination Required.
Sec. 21.14.030. Certificate—Classification.
Sec. 21.14.040. Certificates—Fees—Expiration—Duration.
Sec. 21.14.050. Application of related provisions of this Code and additional codes adopted by reference.
Sec. 21.14.060. Insurance.
Sec. 21.14.070. Contractors—Marking of vehicles.
Sec. 21.14.080. Installations.
Sec. 21.14.090. Violation—Penalty.

Sec. 21.14.010. Definitions.

(a) *Technician* means an individual who performs maintenance or repair of residential, commercial and industrial water conditioning equipment. A Technician is not a Certified Installer. Unless directly supervised by a Certified Installer, a Technician may not install or replace residential, commercial and industrial water conditioning equipment.

(b) *Certified Installer* means an individual who holds a certificate, issued pursuant to this title, evidencing such person to be qualified to install, service, maintain, repair and replace residential, commercial and industrial water conditioning equipment.

(c) *Master Water Conditioner Installer* means an individual who holds a master certificate, issued pursuant to this title, evidencing such person to be qualified to install, service, maintain and replace residential, commercial and industrial water conditioning equipment.

(d) *Qualified, Master* means a person who holds a masters Water Conditioning Installer's Certificate and has the control and authority of all technical work performed under the authority of the Licensed Water Conditioning Contractor's enterprise and assures quality control and is responsible for complying with all applicable laws, codes and regulations.

(e) *Licensed Water Conditioning Contractor* means any person, partnership, association, limited liability company or corporation which engages in the business of installing, servicing, maintaining or repairing residential, commercial and industrial water conditioning equipment. This term shall include the alteration, exchange or maintenance of residential, commercial and industrial water conditioning equipment.

(f) *Water conditioning equipment* means any water conditioning device, such as filters, softeners, carbon filters, reverse osmosis systems, hydochlorinators, aerators, chemical feeders, and other similar equipment used for the conditioning of water for residential, commercial and industrial purposes. Such term shall not include point of use filters which do not require a drain.

(g) *Direct supervision* means that the Technician is working in the same structure and/or building as the Certified Installer.
(Ord. No. 48-369, § 1, 7-21-09)

Sec. 21.14.020. Certificate - Examination Required.

(a) It is unlawful for any person to engage in the business of installing or replacing water conditioning equipment unless and until a certificate has been obtained, a license has been issued for such business and a permit has been issued for such work. Permits and inspections shall be obtained as required by this title. The permit fee shall be the minimum permit fee established by Section 21.04.050 of this code.

(b) It shall be unlawful for any Qualified Master, Certified Installer or Licensed Water Conditioner Contractor to allow or permit an uncertified individual to engage in the business of installing or replacing water conditioning equipment.

(c) Any person desiring to engage in or work at the business of installing or replacing water conditioning equipment shall make application to the Office of Central Inspection for a Water Conditioner Installer Certificate.

(d) No Water Conditioner Installer Certificate shall be issued to any individual:

(1) Who is not currently certified by the Water Quality Association as a Certified Installer; or

(2) Who has knowingly given any false statement in his or her application for a certificate;

(e) No Master Water Conditioner Installer Certificate shall be issued to any individual with less than two years experience in the installation, service, replacement or repair of water conditioning equipment and who is not certified by the Water Quality Association as a Certified Installer.

(f) No Water Conditioning Contractor's License shall be issued to any person, partnership, association, limited liability company or corporation who:

(1) Has been convicted of a felony or any crime involving moral turpitude or fraud, deception or misrepresentation; For purposes of this chapter moral turpitude means those charges involving prostitution, pimping, indecent exposure, illegal use, possession or sale of narcotics or non-narcotic drugs, sodomy, incest, gambling, illegal cohabitation, adultery, bigamy and crimes against nature.

(2) Has not complied with the provisions of subsection 21.14.060 regarding insurance requirements;

(3) Has been refused a certificate or license in another jurisdiction;

(4) Any partnership, limited liability company or corporation, unless all partners, members or majority shareholders of such partnership, limited liability company or corporation are qualified to obtain a license.

(g) Any license issued pursuant to this section shall expire on the thirty-first day of December of the year in which it was issued.

(h) Any person holding a current Master Water Conditioning Installer Certificate shall be entitled to only one contractor's license unless authorized by the Board of Appeals of Plumbers and Gas Fitters, and each such business shall obtain a license; provided, however, that such person shall be entitled to obtain additional licenses and act as the qualified person for up to two businesses that are wholly owned corporate subsidiaries of the business in which he or she is an active member or corporate officer.

(i) No license shall be transferred from one person to another person, partnership, limited liability company or corporation.

(j) A Water Conditioning Contractor's license may be issued to any person, partnership, limited liability company or corporation which has at least one active member or officer who has been qualified as and has a Master Water Conditioning Certificate.

(k) Persons currently engaging in the business of installing, servicing, repairing or replacing water conditioning equipment shall have two years from the date of publication of this ordinance to obtain certification from the Water Quality Association as a Certified Installer.

(l) Individuals holding a journeyman or master's plumbing certificate are not required to obtain a Water Conditioning Certificate in order to install, service, repair, alter, replace or exchange water conditioning equipment.

(m) It is unlawful for any person to install or replace or cause to be installed or replaced any water conditioning equipment in a building or premises without first obtaining a permit to do such work from the Superintendent of Central Inspection. Master Certified Installers are the only persons entitled to obtain such permits.

(n) It is unlawful for any Water Conditioning Licensed Contractor to allow or permit any person to do or cause to be done any work under a permit secured by the contractor unless such person is employed by such contractor.
(Ord. No. 48-369, § 2, 7-21-09)

Sec. 21.14.030. Certificate—Classification.

The certificate issued to an individual wishing to install or replace water conditioning equipment shall be known as a class "W-C installer" certificate and shall authorize such individual, to engage in such activities.
(Ord. No. 48-369, § 3, 7-21-09)

CHAPTER 21.24. RESERVED*

*__Editor's note—__Ord. No. 49-406, § 2, adopted December 11, 2012, repealed the former Ch. 21.24, §§ 21.24.010—21.24.050. The former Ch. 21.24 pertained to prefabricated assemblies, and derived from Ord. No. 3g-540, §§ 1—5. The user's attention is directed to Ch. 21.01, § 21.01.010.

CHAPTER 21.28. RESERVED*

*__Editor's note—__Ord. No. 49-406, § 2, adopted December 11, 2012, repealed the former Ch. 21.28, § 21.28.010. The former Ch. 21.28 pertained to enforcement, and derived from Ord. No. 40-096, § 1. The user's attention is directed to Ch. 21.01, § 21.01.010.

Title 22

AIR CONDITIONING, REFRIGERATION AND WARM AIR HEATING CODE

Ch. 22.01. Reserved

Ch. 22.02. Reserved

Ch. 22.04. Reserved

Ch. 22.05. Reserved

Ch. 22.06. Reserved

Ch. 22.08. Mobile Homes

Ch. 22.10. Wichita/Sedgwick Unified Building and Trade Code

Ch. 22.12. Reserved

Ch. 22.16. Reserved

CHAPTER 22.01. RESERVED*

*__Editor's note—__Ord. No. 49-407, § 2, adopted December 11, 2012, repealed the former Ch. 22.01, §§ 22.01.010—22.01.270. The former Ch. 22.01 pertained to International Mechanical Code (2006), and derived from Ord. No. 48-882, §§ 1—24, adopted October 26, 2010. The user's attention is directed to Ch. 22.10, § 22.10.010.

CHAPTER 22.02. RESERVED*

*__Editor's note—__Ord. No. 49-407, § 2, adopted December 11, 2012, repealed the former Ch. 22.02, §§ 22.02.010—22.02.270. The former Ch. 22.02 pertained to International Mechanical Code, and derived from Ord. No. 48-882, §§ 25—48, adopted October 26, 2010. The user's attention is directed to Ch. 22.10, § 22.10.010.

CHAPTER 22.04. RESERVED*

*__Editor's note—__Ord. No. 49-407, § 2, adopted December 11, 2012, repealed the former Ch. 22.04. The former Ch. 22.04 derived from Ord. No. 48-882, adopted October 26, 2010. The user's attention is directed to Ch. 22.10, § 22.10.010.

CHAPTER 22.05. RESERVED*

*__Editor's note—__Ord. No. 49-407, § 2, adopted December 11, 2012, repealed the former Ch. 22.05. The former Ch. 22.05 derived from Ord. No. 48-882, adopted October 26, 2010. The user's attention is directed to Ch. 22.10, § 22.10.010.

CHAPTER 22.06. RESERVED*

*__Editor's note—__Ord. No. 49-407, § 2, adopted December 11, 2012, repealed the former Ch. 22.06, §§ 22.06.010—22.06.066. The former Ch. 22.06 pertained to solid fuel-burning equipment, and derived from Ord. No. 42-096, §§ 1—3, 5; Ord. No. 42-121, §§ 1, 2; Ord. No. 42-577, § 22; Ord. 43-340, § 1; Ord. No. 48-093, §§ 1—8, adopted October 21, 1008. The user's attention is directed to Ch. 22.10, § 22.10.010.

CHAPTER 22.08. MOBILE HOMES

Sec. 22.08.010. Mobile home mechanical serviceman—Defined.
Sec. 22.08.020. Certificate—Examination required.
Sec. 22.08.030. Certificate—Classification.
Sec. 22.08.040. Certificate—Fees—Duration.
Sec. 22.08.050. Certificate—Issuance without examination.
Sec. 22.08.060. Licenses and bonds.
Sec. 22.08.065. Insurance required.
Sec. 22.08.066. Truth in advertising requirements.

Sec. 22.08.010. Mobile home mechanical serviceman—Defined.

Any person, firm or corporation engaged in the business of installing, repairing or altering any warm air heating equipment and/or refrigerated air conditioning equipment up to and including five ton cooling capacity in or on a mobile home shall be defined as a mobile home mechanical serviceman.
(Ord. No. 30-765 § 1)

Sec. 22.08.020. Certificate—Examination required.

Any person desiring to engage in or work at the business of mobile home mechanical serviceman either as a contractor or as a journeyman shall make application to the office of central inspection for a certificate and shall at such time and place as directed, be subjected to an examination as to his qualifications.

The minimum qualifications shall be the same as required for a journeyman mechanic.

Exception: Any person possessing a valid master's or journeyman's certificate Class "A-C" as provided for under provisions of this title shall be permitted to perform any act set forth in this section.
(Ord. No. 42-577 § 23)

Sec. 22.08.030. Certificate—Classification.

The certificate issued to an individual who is to engage in the business of a mobile home mechanical serviceman either as a contractor or as a journeyman as provided for in Section 22.08.020 shall be authorized to so engage upon his complying with Section 22.04.240 regarding licenses and bonds.

After August 27, 1969 it shall be unlawful for any individual, as a contractor or as a journeyman, to do such work in the city, unless and until a certificate has been obtained therefor and a license has been issued for such business and a permit has been issued for such work, all in accordance with the provisions of the code of the city.
(Ord. No. 30-765 § 3)

Sec. 22.08.040. Certificate—Fees—Duration.

The fee for each examination and original certificate of a mobile home mechanical serviceman shall be established by the superintendent of the office of central inspection to cover the administrative costs of issuing such certificates. All such certificates shall be renewed annually upon payment of a fee established by the superintendent of the office of central inspection to cover the administrative costs of issuing such certificates.
(Ord. No. 42-577 § 24)

Sec. 22.08.050. Certificate—Issuance without examination.

Any person submitting satisfactory proof to the Board of Appeals of having been engaged in the business as a mobile home mechanical serviceman, either as a contractor or as a journeyman for a period of three years of the previous five prior to effective date of this Code, shall upon payment of the regular fee and otherwise complying with this Code, without taking an examination, be granted a mobile home mechanical serviceman license or certificate to expire on December 31 of the year in which it is issued and the same may be renewed as provided for in Section 22.04.220.
(Ord. No. 41-249 § 2)

Sec. 22.08.060. Licenses and bonds.

Anyone engaging or desiring to engage in the business of mobile home mechanical serviceman, and who has been qualified and approved to do so by the office of central inspection as required by this Code, shall before obtaining any permit or

transacting any business, procure a license therefor, from the license collector of the city, which license shall expire on December 31st of the year in which it was issued. No license shall be transferred from one person to another. The fee for such license shall be one hundred dollars. Bonding shall be required under the terms set forth in Section 22.04.240.
(Ord. 43-341 § 1)

Sec. 22.08.065. Insurance required.

Every mobile home mechanical serviceman contractor licensed under this title shall procure and maintain a policy of general liability insurance covering the activities of the mobile home mechanical serviceman contractor while engaged in contracting hereunder. Such insurance policy shall be written with an insurance company licensed to do business in the state of Kansas and shall have minimum limits of coverage of three hundred thousand dollars per occurrence. In addition, every such mobile home mechanical service contractor shall procure and maintain worker's compensation insurance as required by law and automobile liability insurance as required by law. Every contractor licensed under this title shall, prior to the issuance of a license, file with the office of central inspection certificates of insurance evidencing the insurance coverage specified herein. All such certificates shall indicate that the City of Wichita shall be given at least thirty days advance written notice of any cancellation or material change in coverage of such insurance. Failure of a mobile home mechanical serviceman contractor to either procure or maintain such insurance shall be a violation of law punishable as a general misdemeanor and shall be grounds for suspension or revocation of the mobile home mechanical serviceman contractor's license and certificate
(Ord. No. 42-122 § 1)

Sec. 22.08.066. Truth in advertising requirements.

On or after July 1, 1993, any person, firm or corporation required by this title to obtain a mobile home mechanical serviceman contractor's license shall be subject to the following:

(a) It shall be unlawful for any such person, firm or corporation to advertise as a mobile home mechanical serviceman contractor unless, at the time such advertisement occurs, such person, firm or corporation has a then valid mobile home mechanical serviceman contractor's license issued under the provisions of this chapter;

(b) Any advertisement by such person, firm or corporation as a mobile home mechanical serviceman contractor which is placed or published in any publication or other print medium circulated, displayed or distributed within the city limits of which is broadcast by radio or television or any other means to persons within the city limits shall include the full name of the licensed person, firm or corporation and the license number assigned by the office of central inspection to such person, firm or corporation;

(c) As used in this section, the words "advertised" or "advertisement" shall include, but not be limited to, a business card, contract bid proposal form, printed letterhead, any other printed or written material designed to inform persons of the services offered by the advertising person, firm or corporation and to solicit business from such persons, or any broadcast statement designed to inform persons of the services offered by the advertising person, firm or corporation and to solicit business from such persons. Such words are intended to include telephone directory display ads but not basic white and yellow page listings.

(Ord. No. 42-122 § 2)

CHAPTER 22.10 WICHITA/SEDGWICK UNIFIED BUILDING AND TRADE CODE

Sec. 22.10.010. Incorporated by reference.

Sec. 22.10.010. Incorporated by reference.

The Wichita/Sedgwick Unified Building and Trade Code is by reference incorporated in and by this publication made part of this title and chapter as fully as though set out at length herein and is adopted as the building and trade regulations for the City of Wichita.
(Ord. No. 49-407, § 1, 12-11-2012)

CHAPTER 22.12. RESERVED*

*__Editor's note—__Ord. No. 49-407, § 2, adopted December 11, 2012, repealed the former Ch. 22.12, §§ 22.12.010—22.12.050. The former Ch. 22.06 pertained to prefabricated assemblies, and derived from Ord. No. 30-779, §§ 1—3; Ord. No. 33-472 (part); Ord. No. 36-699, § 21. The user's attention is directed to Ch. 22.10, § 22.10.010.

CHAPTER 22.16. RESERVED*

*__Editor's note__—Ord. No. 49-407, § 2, adopted December 11, 2012, repealed the former Ch. 22.16, § 22.16.010. The former Ch. 22.16 pertained to enforcement, and derived from Ord. No. 40-101, § 1. The user's attention is directed to Ch. 22.10, § 22.10.010.

Title 23

AWNINGS, CANOPIES AND MARQUEES*

Ch. 23.04. Regulations

Ch. 23.08. Enforcement

*__Cross references—__As to projecting signs, see § 24.04.270; as to temporary signs attached to fixed canopies, see § 24.04.300; as to licensing, see Chapter 3.52.

CHAPTER 23.04. REGULATIONS

Sec. 23.04.010. Definitions.
Sec. 23.04.020. Permit for erection, etc., over streets and sidewalks—Required; fees.
Sec. 23.04.030. Same—Revocation.
Sec. 23.04.040. Construction and maintenance regulations.
Sec. 23.04.050. Advertising, etc.
Sec. 23.04.060. Interference with fire escapes or public utilities.
Sec. 23.04.070. Height above alleys.
Sec. 23.04.080. Effect of chapter on existing awnings, canopies and marquees.

Sec. 23.04.010. Definitions.

The following words and phrases when used in this chapter shall for the purpose of this chapter have the meanings respectively ascribed to them in this section:

AWNING. A roof-like shelter carried by a supporting frame or arms attached to a building and so arranged that the shelter and frame may be folded or rolled up to the face of the building to which it is attached.

MARQUEE. An overhanging flat roof-like protection or covering of rigid material and construction.

PERMANENT AWNING. A sloping roof-like protection of lightweight, rigid construction supported from a building without posts and used for the outside protection of a door, window or other opening.

Any construction, erected primarily for shade or protection from the elements and which projects into any public area or is liable to endanger persons using public streets or alleys, and which is not mentioned or defined specifically herein or about which there is any question, shall be classified by the building inspection superintendent.

SUPPORTED CANOPY. A covering of canvas or other combustible material used solely for temporary shelter for a door or walk and carried by a frame supported by the ground or sidewalk.

SUSPENDED CANOPY. A covering of canvas or other combustible material rigidly supported by a metal frame attached to a building and suspended from the building solely for a shelter or for protection.

VENETIAN AWNING. An awning, shutter or louver of metal, wood or other rigid material fabricated into sheets, strips or slats somewhat similar to a venetian blind, erected to shade or form an outside protection to a window, door or other building opening.
(Ord. No. 15-054 § 1)

Sec. 23.04.020. Permit for erection, etc., over streets and sidewalks—Required; fees.

No suspended canopy, permanent awning or marquee shall be added to, altered or erected over the streets or alleys of the city until a permit has been secured from the building inspection superintendent. The fee for such permit shall be five dollars plus the sum of seven cents per square foot of area for each canopy, permanent awning, or marquee. The permit fee for supported canopies shall be five dollars. All fees as provided above shall be paid prior to the issuance of the permit or the erection of the canopy, permanent awning, marquee or supported canopy.
(Ord. No. 19-962 § 1)

Sec. 23.04.030. Same—Revocation.

Any permit granted to erect awnings, permanent awnings, canopies or marquees or portions thereof so as to project into a public street or alley is revocable by the city when in the judgment of the board of commissioners it is for the best interest of the city that such permits be revoked.
(Ord. No. 15-054 § 8)

Sec. 23.04.040. Construction and maintenance regulations.

The following regulations shall apply to all construction and maintenance of awnings, permanent awnings, venetian awnings, suspended canopies, supported canopies and marquees:

AWNINGS GENERALLY. Awnings over public areas in the city shall be arranged without posts and shall provide a clearance of not less than seven feet from sidewalk to the lowest point of the

framework, and no part of such awning cover, including any fringe, apron, skirt, valance or drop, shall be less than six feet, six inches above the surface of the sidewalk immediately below when the awning is lowered for use, except the bottom of awning covers enclosing the ends of awnings shall be six feet, eight inches above the surface of the sidewalk. No awning less than thirteen feet above the street, alley or sidewalk shall be closer to the vertical plane of the curb than two feet and in no case shall any awning project from the face of the building more than eight feet. All awnings shall be covered with substantial material.

All fixtures such as lateral arms, center supports, gears and pin ends shall be fastened to steel backing where available, by drilling and bolting through from the back when possible, or drilling, tapping and fastening with not less than three-eighths inch machine bolts. Where wood backing only is available, bolt through from the back wherever possible, using large washers under heads of bolts; otherwise use lag screws from the front at least four inches long. When anchorage is to be made in brick, stone or terra cotta, approved expansion bolts shall be used. Lock washers shall be used on all bolts.

Every awning shall be rolled or folded against the building except when serving as a protection from sun, rain, snow or other inclement weather.

FABRIC-COVERED AWNING CONSTRUCTION. Pipe rollers shall be no less than one and one-half inches inside diameter galvanized steel pipe, or one and one-half inches outside diameter seamless steel tubing. On pipe rollers over twenty feet in length where it becomes necessary to join two or more sections together, splicing must be effected by using cast steel gudgeons, roller ends to be properly riveted to the same. This also applies to pin end gudgeons. Metal rollers shall be drilled or perforated with holes of a size to make a driving fit with roofing nails (about one-eighth inch). These soles shall be spaced not over three inches center to center for the first three holes on each end, spacing between to be approximately six inches center to center. Fabric covering shall be attached to a metal roller by means of large-headed roofing nails fitted solidly into these holes.

When using steel rollers, no center supports shall be necessary on awnings under twenty feet. Over twenty feet, center supports shall be spaced as follows:

Awning lengths	*Number of supports necessary*
20 to 30 ft.	1
30 to 40 ft.	2
40 to 60 ft.	3

One additional center support for each additional fifteen feet or fraction thereof.

On awnings having an extension of four feet or more from the point of fastening on the building, three-fourths inch inside diameter galvanized pipe extension arms shall be used. No extension bars shall be used less than five-eighths inch in diameter and shall be galvanized.

Two arms shall be used for awnings not over twenty feet in length. On awnings over twenty feet, a center arm must be provided for each additional eight feet or fraction thereof added to the length of the awning.

Awnings suspended on lateral arms shall require the number of arms as per the following schedule:

Awning lengths	*Number of arms required*
0 to 22 ft.	2
22 to 30 ft.	3
30 to 40 ft.	4

One additional arm for each ten feet or fraction thereof thereafter.

Wherever possible an even number of lateral arms shall be used.

Front bars shall be galvanized one inch inside diameter or grade "A" clear fir or comparable timber dressed to size 2 inches × 3 inches and corners properly leveled.

Roller awnings shall be operated by self-locking, steelcut, wormtype gear fixtures.

Roller sprocket wheels and link chains shall not be permitted.

The design, construction and erection details of all awnings, other than those herein specifically provided for, shall be submitted to the building inspection superintendent for approval before erection work is started.

VENETIAN AWNINGS. No awning, shutter or louver of metal, wood or other rigid material shall be erected or maintained in such a way that it will impede the entrance into the building of members of the fire department, or in such a manner that it will bar the way of persons seeking to escape from fire or panic in a building, and no shutter or louver of this type shall be placed in any opening giving access to a fire escape or other intended means of escape. No fixed frame shall be placed on any window or door opening in an assembly hall or public hallway in an apartment or hotel building, but nothing shall prohibit the erection of such an awning on these openings provided they can be opened as provided in the following paragraph:

Any awning, shutter or louver of metal, wood or other rigid material attached to the windows of a building above the first story shall be arranged in such a manner that it may be easily opened so as to afford easy ingress and egress, and such awning, shutter or louver shall be constructed so that it may be easily opened from both the inside and outside without any special tool and without special knowledge or skill. No awning, shutter or louver of metal, wood or other rigid material weighing over one pound per square foot shall be attached to the wood jambs, frames or other wood members of a building (frame buildings excepted) when such building is within ten feet of public property. All venetian awnings erected above the first story shall be equipped with at least one safety chain securely fastened to the awning and frame.

SUSPENDED CANOPIES shall be supported throughout by metal framework. They may extend over public sidewalks or parking portions of a public street to a distance of not to exceed seven feet; provided, that a suspended canopy not over ten feet in width measured parallel to the building may extend a distance not to exceed twelve feet. In no case, however, shall the outer edge of the canopy extend closer to the vertical plane of the curb than two feet nor shall it come within two feet of the property line (extended toward the curb). All such suspended canopies shall be securely and rigidly supported and maintained so that no part of the framework of such suspended canopy shall be less than eight feet above the surface of the sidewalk immediately below and no part of such canopy covering, including any fringe, apron, skirt, valance or drop shall be less than seven feet above the surface of the sidewalk immediately below.

A SUPPORTED CANOPY may be erected for a period not to exceed seven days when approved by the building inspection superintendent: provided, that the fee is paid and the permit is secured: provided further, however, that a supported canopy may be erected for a period of not to exceed twenty-four hours and no permit or fee will be required. All supported canopies shall be adequately supported and braced and shall be safely maintained and well lighted at night, and the abutting property owners shall save the city harmless from all claims of every kind or nature arising out of the erection, use and dismantling of such canopy over public property.

MARQUEES, extending over public property, shall have their main framework and support of noncombustible material and shall be designed by a structural engineer and approved by the building inspection superintendent. They shall have a clearance of at least ten feet above public property, shall not extend closer to the vertical plane of the face of the curb than two feet, nor shall they come within two feet of the adjoining side property line, extended toward the curb. Marquees extending not further than two feet from the front building line may have a clearance above public property of not less than eight feet and, except in fire zone No. 1 as set forth in the building code as set out in Title 18 of this code, may be built of combustible materials. Such marquees may also extend to the side property line. The roofs of all marquees shall be so drained as not to discharge water upon the public sidewalk.

PERMANENT AWNINGS, extending over public property shall be of rigid construction, of either combustible or noncombustible material, so designed that the roof portion shall be partly open to

insure release of air pressure built up under the awning. All parts of the roof shall have a slope of not less than fifteen degrees with the horizontal. The structure shall be well braced and securely fastened with bolts or lagscrews to the building to which it is attached. The method of construction and attachment shall be approved by the building inspection superintendent. No part of any permanent awning shall be closer to the public walkway below than seven feet nor shall it extend more than seven feet from the face of the building to which it is attached. No awning of this description within thirteen feet of the walkway shall be closer than two feet from the vertical plane of the curb.
(Ord. No. 15-054 § 3)

Sec. 23.04.050. Advertising, etc.

No awning, permanent awning, suspended canopy or supported canopy shall have upon it any advertising whatsoever except the firm name or the street number. "1940 Joe Doe Grocery 1940" is an example of permitted advertising.

Every awning, permanent awning, suspended canopy and supported canopy erected over any sidewalk in the city shall bear the name and address, on a tag or stencil not exceeding thirty-six square inches, of the person erecting or installing the same.
(Ord. No. 15-054 § 4)

Sec. 23.04.060. Interference with fire escapes or public utilities.

Provisions shall be made that suspended or supported canopies, permanent awnings or marquees shall not interfere with fire escapes or with public utilities.
(Ord. No. 15-054 § 5)

Sec. 23.04.070. Height above alleys.

All awnings, canopies and marquees which project over public alleys shall, in addition to complying with the requirements provided for in Section 23.04.020, be at least thirteen feet above the surface of the alley immediately below.
(Ord. No. 15-054 § 6)

Sec. 23.04.080. Effect of chapter on existing awnings, canopies and marquees.

The provisions of this chapter shall not apply to awnings, marquees or canopies heretofore erected*, but when recovers, renewals, replacements, repairs or structural changes are made to such awnings, canopies or marquees, they shall be brought into full compliance with the provisions of this chapter.
(Ord. No. 15-054 § 7)

*__Editor's note—__The ordinance of which this section is a part was adopted January 27, 1941.

CHAPTER 23.08. ENFORCEMENT

Sec. 23.08.010. Violation—Penalty.

Sec. 23.08.010. Violation—Penalty.

Any person who violates any of the provisions of this title is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred dollars or by imprisonment of not more than six months or both such fine and imprisonment.
(Ord. No. 40-097 § 1)

Title 24

BILLBOARDS AND SIGNS*

Ch. 24.04. Sign Regulations and Standards

*Cross reference—As to advertising on awnings or canopies, see § 23.04.050. As to traffic sign or signal bearing commercial advertising, see § 11.20.040. As to using vehicles for primary purpose of advertising, see § 11.40.010. As to advertising drugs, etc., for prevention of conception or venereal disease, see § 5.18.020. As to distribution of advertising matter in parks, see § 9.04.020. As to handbills, posters, etc., in parks, see § 9.04.080. As to advertising on exterior of taxicab, see § 3.84.050. As to advertising on outside of municipal airport vehicles, see § 3.88.040. As to affixing advertisements to trees, see § 9.08.110.

CHAPTER 24.04. SIGN REGULATIONS AND STANDARDS

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Sec. 24.04.194. Signs permitted in the "G" Manufactured Home District.
Sec. 24.04.195. Signs permitted in the "LC" Limited Commercial District.
Sec. 24.04.196. Signs permitted in the "GC" General Commercial and "LI" Limited Industrial districts.
Sec. 24.04.197. Signs permitted in the "CBD" Central Business District.
Sec. 24.04.198. Signs permitted in the "GI" General Industrial District.
Sec. 24.04.199. Signs permitted in the "OW" Office/Warehouse and the "IP" Industrial Park Districts.
Sec. 24.04.200. Prohibited locations—General requirements.
Sec. 24.04.210. Reserved.
Sec. 24.04.215. Signs in the Right-of-Way or on Public Property.
Sec. 24.04.220. General requirements.
Sec. 24.04.221. Specific regulations—On-Site Ground or Pole Signs as referred to in subsections 24.04.195, 24.04.196, 24.04.197, and 24.04.198.
Sec. 24.04.222. Specific regulations—Off-site signs when permitted in the "LC" limited commercial, "GC" general commercial, "LI" limited industrial or "GI" general industrial districts.
Sec. 24.04.223. Reserved.
Sec. 24.04.225. Special review approval for Off-Site Billboard Sign Permits.
Sec. 24.04.228. Specific historic preservation requirements.
Sec. 24.04.230. Temporary signs.
Sec. 24.04.235. Balloon Signs.
Sec. 24.04.240. Reserved.
Sec. 24.04.250. Variances.
Sec. 24.04.251. Sign code adjustments.
Sec. 24.04.252. Appeals from the Board of Zoning Appeals.
Sec. 24.04.260. Penalty for violation of Title, rule or order.
Sec. 24.04.270. Amendments.
Sec. 24.04.280. Severability.

Sec. 24.04.010. Title.

This Title shall be known as the Sign Code of the City of Wichita, Kansas.
(Ord. No. 40-963 (part); Ord. No. 50-439, § 1, 4-25-17)

Sec. 24.04.020. Purpose.

The purpose of this Title is to create a comprehensive and balanced system of content and viewpoint-neutral regulation of signs to facilitate easy and efficient communication between people while protecting the First Amendment Rights of individuals and businesses, to avoid visual clutter harmful to traffic and pedestrian safety, and to preserve and promote property values, business opportunities and community appearance.
(Ord. No. 40-963 (part); Ord. No. 50-439, § 2, 4-25-17)

Sec. 24.04.025. Findings of City Council.

The Governing Body of the City of Wichita finds that:

(a) Sign regulations impact First Amendment Rights and these rights are important constitutional rights that must be protected;

(b) Unregulated signage has direct and secondary effects that are harmful to the safety and general welfare of the City as a whole and to its individual citizens;

(c) These direct and secondary effects result from the visual clutter that occurs as a result of unregulated installation and lack of required maintenance of signs;

(d) These direct and secondary effects include harm to traffic and pedestrian safety, decreased property values within the City, decreased business opportunities for individuals and businesses, community blight and an overall less pleasing appearance of the community;

(e) Because of these direct and secondary effects, the City has a compelling interest in regulating signs;

(f) The purpose of this Title is to provide content and viewpoint-neutral, reasonable time, place and manner restrictions that directly advance the interests of the City;

(g) The scope of these regulations is proportionate to the City's interests and narrowly tailored to achieve the City's stated objectives;

(h) A primary and compelling interest of the City is the ability of the City, other governmental entities and utilities to erect official signs and other warnings so that the information is conveyed to the public in order to protect the public safety and welfare; and

(i) A primary and compelling interest of the City is the ability of first responders to easily identify residents or addresses in emergency situations, therefore necessitating that residents and businesses erect Identification Signs and Nameplate Signs to serve that interest.

(Ord. No. 50-439, § 3, 4-25-17)

Sec. 24.04.030. Applicability.

The provisions of this Title shall apply to the erection, construction, reconstruction, remodeling, relocation, alteration, hanging, use, location and maintenance of all signs located outdoors and to those signs painted on any part of a building. No sign shall be erected, constructed, reconstructed, remodeled, relocated, altered, hung, affixed or created by painting that would be contrary to the provisions of this Code. These provisions shall be considered together with the provisions of the Wichita-Sedgwick County Unified Building and Trade Code (UBTC) and Wichita Sedgwick County Unified Zoning Code (UZC), and shall regulate the size, height, location, number, setback, Sign Surface area and type of signs otherwise permitted.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 4, 4-25-17)

Sec. 24.04.040. Exemptions from this Title.

The provisions of this Title shall not apply to:

1. Flags, symbols or emblems, when displayed by the owner on private property;

2. Official Signs as defined by this Title;

3. Address numbers not exceeding three (3) square feet in area;

4. Window Displays and On-Site Signs placed in or upon windows of a building, whether painted or attached;

5. Signs designed as an integral part of vending machines and dispensing equipment, or merchandise display racks, and similar merchandise and advertising displays. No such sign shall be located on the public Right of Way. This provision shall in no way be deemed to permit the display or storage of merchandise, vending machines or equipment not otherwise permitted by the provisions of this Code;

6. Traffic control devices on private or public property when erected and maintained in compliance with the Manual on Uniform Traffic Control Devices;

7. Temporary Decorations or displays on private property;

8. Signs on a truck, bus, trailer or other vehicle when the purpose or function of such vehicle is not primarily the display of such signs; and

9. Scoreboard structures in Athletic Stadiums, the face of which is not clearly visible from any residence or public street.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 5, 4-25-17)

Sec. 24.04.045. Definitions.

(a) 1. **A-frame or Sandwich Sign** means any sign supported from the ground utilizing one or more supporting braces in which a combination of sign and support forms the letter "A."

2. **Abandoned Sign** means any sign or any building, structure or premises which has been vacated for a six-month period or longer.

3. **Abutting** means touching or directly contiguous to.

4. **Adjacent** means no farther than one hundred fifty (150) linear feet unless otherwise provided by this Code.

5. **Animated Sign** means an Electronic Message Sign depicting action, motion, light or color changes through electrified or mechanical means. Although technologically similar to flashing signs, the animated sign emphasizes graphics and artistic displays and may include video displays.

6. **Athletic Stadium** is an open, partially enclosed or fully enclosed facility used or intended to be used primarily for spectator sports or the viewing of sporting events.

7. **Balloon Sign** is a Sign that is inflated and exceeds five (5) square feet in area. Balloons may be tethered or mounted to a structure.

8. **Banner** means a Sign of lightweight fabric or similar non-rigid material with no fully enclosed framework and designed to be attached securely at each end or corner of the Banner to a wall, canopy, post(s) or stakes. Flags shall not be considered a Banner.

9. **Billboard** means a Junior or Standard Billboard Sign. Billboards do not include Off-Site Signs that meet the criteria set forth in Sections 24.04.190(2), 24.04.190(6), 24.04.190(10), 24.04.190(18) or 24.04.251.2(j) of this Code.

10. **Board of Code Standards and Appeals** means the Metropolitan Board of Code Standards and Appeals established by the Wichita-Sedgwick County Unified Building and Trade Code (UBTC).

11. **Board of Zoning Appeals** means the Board of Zoning Appeals as designated by the City Council of the City of Wichita.

12. **Building Sign** is an On-Site Sign attached to or painted on a wall, awning, canopy, building or structure or that is attached to, but not painted on, a roof structure or roof surface, the height of which shall not exceed the height of the roof or wall parapet, or any of the following: (1) the highest point of the coping of a flat roof; (2) the deck line of a mansard roof; (3) the average height between the eaves and ridge line of a gable, hip or gambrel roof; or (4) three (3) feet above the finished roof deck if the average height of a gable, hip or gambrel roof is less than three (3) feet above the bottom or lowest edge of the roofline; except that of a building or structure that was constructed prior to May 4, 1990 that does not have an area at least three (3) feet tall and twenty (20) feet wide above a glazed portion of the building elevation, the bottom of which is at least seven (7) feet above grade, may have a Building Sign which shall not exceed four (4) feet, six (6) inches above the roof or parapet.

13. **Commercial Sign** means any Sign that directly or indirectly names, advertises or calls attention to a business, product, service or both, or other commercial activity.

14. **Directional Sign** means any Sign that provides direction for the safe and efficient flow of vehicular or pedestrian traffic and shall include signs marking entrances, exits, parking areas, loading areas or other operational features of the premises.

15. **Director** means the Director of the Metropolitan Area Building and Construction Department (MABCD) or designee.

16. **Directory Sign** means an On-Site Sign containing information in a list or map form of the individual components making up a planned unit development, master plan development, shopping center or other development.

17. **Election Period** shall mean the forty-five (45) days prior to and the two (2) day period following any election. Such period shall also include the time period between any primary and general election.

18. **Electronic Message Sign** means a Variable Message Sign that utilizes computer-generated messages or some other electronic means of changing copy. These signs include displays using incandescent lamps, LEDs, LCDs or a flipper matrix, and may also enable changes to be made to messages from locations other than at the sign. Electronic Message Signs shall be classified as animated, flashing or moving signs when the rate of copy and/or graphic changes is more than one change per second.

19. **Flashing Sign** means a Sign that contains flashing lights or exhibits noticeable changes in light intensity with a basic on-off of the same light source or display pattern, or that includes the illusion of intermittent or flashing light by means of animation, or an externally-mounted intermittent light source. Generally, the sign's message, copy or flashing pattern is constantly repeated.

20. **Ground Sign** means a Sign placed upon or supported by the ground independently of any building or structure on the property.

21. **Identification Signs** mean any Sign or set of numbers, letters or characters with respect to streets or to those homes or buildings around a principal building.

22. **Institution** means the building, group of buildings, place of confinement or use of an established organization or foundation.

23. **Junior Billboard** means an Off-Site Sign with a Sign Surface not greater than three hundred (300) square feet in area, and not exceeding ten (10) feet in height and thirty (30) feet in length, plus any allowed extensions.

24. **Menu Board Sign** means an On-Site Sign designed and used for the display of menu items and pictures and/or prices of menu items.

25. **Metropolitan Area Planning Commission** means the Wichita-Sedgwick County Metropolitan Area Planning Commission (MAPC) as established by a joint resolution/ordinance between Sedgwick County and the City of Wichita.

26. **Monument Sign** means a detached Ground Sign for which the width of the widest part of the base, pole or pylon cover of the sign is at least one-half the width of the widest part of the Sign Surface or for which the Sign or Sign Cabinet supports consist of visible poles or pylon supporting a Sign Cabinet and the height of the base is not more than two (2) feet above the average grade of the ground.

27. **Moving Sign** is a Sign that includes motion or movement or the illusion of motion or movement.

28. **Nameplate Sign** means any single-faced, non-illuminated Wall Sign that displays information regarding the person or persons occupying space in a building. Nameplate Signs may be incorporated within a Wall Sign and shall otherwise be subject to regulations restricting Wall Signs.

29. **Nit** means a unit of luminance equal to one candela (one candle) per square meter.

30. **Noncommercial Sign** means any sign that is not a Commercial Sign.

31. **Nonconforming Sign** means any sign that does not comply with the provisions of this Title or any other ordinance of the City of Wichita.

32. **Official Sign** means any Sign installed, authorized or erected by a governmental body or agency, public utility or railroad such as traffic signs, signals, regulatory devices or warnings, signs designating properties or structures officially designated by the federal, state or local government as being of historical significance or other similar signs.

33. **Off-Site Sign** means a Sign delivering a message or advertisement which is unrelated to the activities conducted on the premises or the products sold or manufactured thereon.

34. **On-Site Sign** means a Sign which conveys a message or advertisement directly related to the lawful use of the premises on which it is located.

35. **Owner** means the property owner of record, manager, leasee, designated agent or any person exercising control over the sign.

36. **Pennant** means a Sign constructed of fabric or any non-rigid material with no enclosed framework, and designed to be attached securely to a permanent pole or post.

37. **Permanent Sign** means a Sign designated and intended for long-term use which is placed on private property and is attached to a wall, building, roof or to the ground by poles, metal braces or masonry.

38. **Planning Director** means the Director of the Metropolitan Area Planning Department.

39. **Pole, Pylon Cover** or **Wrap** means an enclosure for concealing and/or decorating poles or other structural supports of a Ground or Pole Sign.

40. **Pole** or **Pylon Sign** means a free-standing Sign supported by uprights, braces, columns, poles or other vertical members that are not attached to a building.

41. **Portable Sign** means a temporary On-Site Sign designated in such a manner as to be readily moveable and not permanently attached to the property; such as A-Frames, trailer signs, signs placed on vehicles, beacon lights and other similar signs. Any such sign shall not exceed a height of ten (10) feet above grade and shall not exceed sixty (60) square feet per side in gross surface area.

42. **Projecting Sign** means an On-Site Sign suspended from or supported by a building or structure and projecting therefrom a distance exceeding one (1) foot from the face of the building or structure to which it is attached.

43. **Public Property** for the purposes of this Title means:

    (1) Any public building or premises owned by a governmental entity;

    (2) Any sidewalk, public bridge, crosswalk, curb, paved portion of any street, highway, alley or the median strip of any divided street or highway;

    (3) The paved or unpaved area between the street lines of any street adjacent to a tract of land;

    (4) Any street sign, traffic sign or signal;

    (5) Any telephone, electric wire, powerline, street lamppost or any other utility pole or fire hydrant located in the public Right-of-Way;

    (6) Any tree or other vegetation on public property, including without limitation, those in the public Right-of-Way; and

(7) Any public park, open space, bench, drinking fountain or other property owned or leased by a governmental entity and used for governmental purposes.

44. **Right-of-Way** means the area on, below or above the present and future City streets, alleys, bridges, bikeways, parkways and sidewalks that is owned or controlled by the City, county, state or federal government.

45. **Roof Sign** means a Sign erected, constructed and maintained fully upon or over the roof or parapet of a building or structure and having the roof or parapet as its principal means of support that does not meet the definition of a Building Sign.

46. **Rotating Sign** is a Sign that turns, spins on or around a pole or other similar axis point.

47. **Scrolling Sign** means an Electronic Message Sign that includes a message transition where the message that is leaving or appearing to move horizontally, vertically or diagonally across the sign display surface.

48. **Sign** means any device, object or surface, constructed, installed or painted, the purpose of which is to visually deliver a message of either a commercial or noncommercial nature, by attracting attention to the device, object or item.

49. **Sign Alteration** means the replacement, enlargement, reduction, reshaping, changing or adding to a Sign or Sign Structure or supporting members.

50. **Sign Cabinet** means the structural frame that encloses one or more Sign Surfaces.

51. **Sign Structure** means the support, poles, upright bracing or brackets and framework for any sign that is mounted on or affixed to a building, structure or the ground.

52. **Sign Surface** means the entire area within a square, circle, rectangle, triangle or combination thereof that encompasses the extreme limits of the writing, representation, or other display, together with any material or color forming an integral part of the background of the display or used to differentiate the sign from the backdrop of structure against which it is placed.

53. **Special Event** means a seasonal or temporary event lasting no longer than thirty (30) days occurring on private property.

54. **Standard Billboard** means an Off-Site Sign with a Sign Surface greater than three hundred (300) square feet in area, but not exceeding fourteen (14) feet in height and forty-eight (48) feet in length plus any allowed extension.

55. **Street Frontage** means the linear feet of a zoning lot directly adjacent to an adjoining street or street Right-of-Way. In determining Street Frontage, one-half the width of an adjoining alley may be considered as frontage.

56. **Temporary Decoration(s)** means displays erected on a seasonal or temporary basis that are not intended to be permanent in nature and that do not constitute Commercial Signs.

57. **Temporary Sign** means any sign intended to be displayed for a limited period of time which is supported by any means other than by a person and is typically constructed from nondurable materials, including but not limited to paper, cardboard, cloth, plastic or wallboard. Temporary Decorations, Banners, Portable Signs, Balloons or Window Signs shall be regulated by specific provisions set forth in this Title. Unless otherwise limited by specific provisions of this Title, or by the terms of any required permit, a Temporary Sign shall not be displayed for more than ninety (90) days. Temporary Signs shall be removed from a property for not less than thirty (30) days at the end of the

maximum time period as set forth in this Title before another Temporary Sign can be located on a property.

58. **Variable Message Sign** means a Sign that includes the electronic or mechanical means for message or copy changes. These signs may include changeable messages or copy with letters and/or numbers mounted in or on a track system, Electronic Message Signs, and signs with rotating sections or panels (i.e., tri-vision and similar type displays).

59. **Wall** means the exterior or surface of a building or structure. For the purposes of this Title, walls shall include mansard-type or sloped-roof structures.

60. **Wall Sign** means a Sign attached to and erected parallel to and within one (1) foot of the face or wall of a building.

61. **Window Sign** means on On-Site Sign either temporary or permanent that is placed on the inside of a window or upon the windowpanes and is visible from the exterior of the window.

62. **Zoning Administrator** means the Director of the Wichita-Sedgwick County Metropolitan Area Planning Department (MAPD) or their designee.

63. **Zoning District** means the zoning classifications established in the Wichita-Sedgwick County Unified Zoning Code (UZC).

64. **Zoning Lot** means a parcel of land that is designated by its Owner or developer, at the time of applying for a building permit as one lot, all of which is to be used, developed or built upon as a unit under single ownership. As long as it satisfies the requirement of the above and the requirements of the Subdivision Rules and Regulations of the MAPC, such lot may consist of (1) a single lot of record, (2) a portion of a lot of record, or (3) a combination of complete lots of record, complete lots and portions of lots of record, or portions of lots of record. For purposes of this Title, approved Community Unit Plans, Planned Unit Developments or "P-O" Protective Overlays, as defined in the Wichita-Sedgwick County Unified Zoning Code (UZC), shall be considered as a single Zoning Lot.

(b) To the extent they are not inconsistent with this Title, the definitions adopted by the Unified Zoning Code (UZC), as amended, shall apply to the terms used in this Title.

(c) Whenever a Sign could be subject to more than one classification, the Zoning Administrator shall determine the most appropriate classification and apply all applicable regulations.
(Ord. No. 50-439, § 6, 4-25-17; Ord. No. 52-192, § 1, 6-13-23)

Sec. 24.04.050. Permits required.

Except as otherwise provided in this Title it is unlawful for any person to place, locate, erect, construct, reconstruct, remodel, relocate, alter, hang, affix or create by painting, a sign within the City without first obtaining a permit from the Director who shall issue permits for the following:

(a) **Permanent Sign Permit.** This permit shall be required for all new Permanent Signs erected, constructed, reconstructed, remodeled, relocated, altered, hung, affixed or created by painting, or for signs altered to increase the height or area. A Permanent Sign Permit shall not have an expiration date.

(b) **Temporary Sign Permit.** The Owner of any Temporary Sign shall obtain a Temporary Sign Permit under the conditions set forth by Section 24.04.070. Temporary Sign Permits shall have an expiration date and shall be valid only for the duration of time noted on the permit and subject all the other applicable provisions of the City ordinances.

(c) **Exemption from Permits and Fees.** All provisions of this Title shall apply to the following signs, except that permits or permit fees shall not be required for:

(1) Temporary, non-illuminated, signs, not more than eight (8) square feet in area as authorized by Section 24.04.190(5);

(2) Temporary On-Site Signs displayed during a licensed miscellaneous sale, not exceeding four (4) square feet in area, and located on private property;

(3) Directional On-Site Signs, not exceeding three (3) square feet in area;

(4) Identification and Nameplate Signs, not exceeding three (3) square feet in area, that are painted or attached to the windows, doors or walls of a building or accessory to a dwelling;

(5) Balloon Signs not exceeding five (5) square feet in area as measured at the largest cross-section; and

(6) Temporary signs as authorized by Section 24.04.190(10).

(Ord. No. 43-717 § 1; Ord. No. 50-439, § 6, 4-25-17)

Sec. 24.04.060. Permit application and issuance.

(a) Application for permits shall be made to the Director upon forms provided by the City and shall be accompanied by such information as may be required to assure compliance with all appropriate regulations. The application shall include drawings of the sign, location, dimensions, height, construction and structural design for the sign. If deemed necessary, the Director may also require that a licensed engineer furnish information concerning structural design of the sign and the proposed attachments.

(b) The Director shall issue a permit for a sign when an application has been made and the sign complies with all applicable regulations of the City.

(c) A Permanent Sign Permit issued under the provisions of this Title shall expire and become null and void if the work authorized by such permit is not commenced within one hundred eighty (180) days from the date of issuance of such permit, or if the work authorized by such permit is suspended or abandoned for a period of one hundred twenty (120) days or more at any time after the work is commenced. The Director may grant extensions to these time limitations when a request is made in writing due to unusual circumstances. Before such work can be commenced or resumed thereafter, a new permit shall first be obtained and the fee therefore shall be one-half the amount required for a new permit for such work; provided no changes have been made in the original design of the sign, and provided further that such suspension or abandonment has not exceeded one (1) year.

(d) Only licensed and bonded sign hangers may place, locate, erect, construct, reconstruct, remodel, relocate, alter, hang, affix or create by painting any sign requiring a permit.

Exceptions:

(1) Temporary Signs as set forth in Section 24.04.230, except for Balloon Signs, provided that the Director may require such a sign hanger when the location or nature of such sign requires such sign hanger in the determination of the Director;

(2) Maintenance and repairing of existing signs by the Owner when no structural changes are made to a sign;

(3) Portable Signs.

(e) No permit for a sign issued under this Title shall be deemed to constitute permission or authorization to maintain a public or private nuisance, nor shall any permit issued hereunder constitute a defense in an action to abate a nuisance.

(f) No permit shall be issued for a new sign or the reconstruction, relocation or expansion of a Non-Conforming Sign, when the issuance of the permit would be contrary to this Title.

(g) Applications for Electronic Message Signs shall be accompanied by the following information:

(1) Specifications from the sign manufacturer providing the maximum Nit rating of the sign;

(2) Information from the sign manufacturer indicating the type of dimming control

that will be provided with the sign to ensure the sign is appropriately dimmed at night;

(3) A signed letter from the property or business owner for whom the sign is being installed that acknowledges the

property or business owner's agreement to abide by this Title governing dimming of the sign at night; and

(4) The provisions of Subsections (g)(2) and (g)(3) set forth above shall not be required for Electronic Message Signs that have a maximum brightness and/or light intensity rating of 3,000 Nits or less.

(Ord. No. 43-717 § 2; Ord. No. 47-542 § 1, 8-14-07; Ord. No. 50-439, § 8, 4-25-17)

Sec. 24.04.070. Permit fees.

The fee as set forth in this Section must be paid to the City before any such permit is issued. Every sign, except those signs exempt from these regulations by Section 24.04.040 or from permits by Section 24.04.050, requires a permit. The fees set forth in this Section may be modified by such fee schedule as may be established by resolution or ordinance of the City Council. Such new or modified fees shall become effective upon publication.

(a) **Permanent Sign Permit Fee:**

(1) For each Permanent Sign that is placed, located, erected, constructed, reconstructed, remodeled, relocated, altered, hung, affixed, or created by painting, the sign permit fee shall be twenty-five (25) dollars, plus six (6) dollars per each ten (10) square feet in gross surface area or fraction thereof.

(2) For each existing Permanent Sign that is altered to increase the area or height of the sign, a sign permit fee of twenty-five (25) dollars plus six (6) dollars per ten (10) square feet of increase in gross surface area of the sign or fraction thereof.

(3) For each existing Permanent On-Site Sign of which the copy is altered or changed by painting or replacing Sign Surfaces where no increase in height or area occurs, and does not involve structural changes, a sign permit fee of twenty-five (25) dollars shall be paid. This fee shall not apply when a change is made to add an additional face to a single face sign. Further, no permit is required for mere repainting or replacement of a damaged Sign Surface when there is no substantive change or alteration to existing copy and no increase in the height or area of the sign.

(4) For each sign that is placed, located, erected, constructed, reconstructed, remodeled, relocated, altered, hung, affixed or created by painting without first obtaining a Permanent Sign Permit, the fee shall be twice the amount specified above.

(5) For temporary signs as described in Section 20.04.190(5) which exceed eight (8) square feet but are not greater than forty (40) square feet, the sign permit fee shall be fifteen (15) dollars, plus four (4) dollars for each ten (10) square feet in gross surface area or fraction thereof.

(b) **Temporary Sign Permit Fees:**

(1) For Banner Signs permitted by Section 24.04.190 of this Code, a Temporary Sign Permit fee of five (5) dollars, plus four (4) dollars for each ten (10) square feet in gross surface area or fraction thereof, in excess of one hundred (100) square feet gross surface area of all Banners, streamers, posters or other similar devices, shall be paid, with a maximum time limit of thirty (30) days.

(2) For Balloon Signs requiring a permit, the Balloon Sign Permit fee shall be fifteen (15) dollars for each five (5) day permit issued under the requirements of Section 24.04.235. Such Balloon Sign Permits shall be obtained by a licensed sign hanger.

(3) For all other Temporary Signs requiring a permit, the permit fee shall be five (5) dollars plus one (1) dollar for each fifty (50) square feet, or frac-

tion thereof, shall be paid for each sign, with a time limitation as set forth in this Title.

(4) For any Temporary Sign placed on any property without securing a permit and paying the fee therefor, the fee shall be twice the amount set forth above.

(5) For Portable Signs permitted by this Code, a Temporary Sign Permit of ten (10) dollars shall be paid for each thirty (30) days the sign remains on a Zoning Lot.

Exception:

Portable Signs for which an annual Temporary Sign Permit has been obtained, as set forth in subsection (6) of this Section, need not have a separate Temporary Sign Permit; provided, however, the sign company placing any such sign shall notify the Director of the location of any sign, within twenty-four (24) hours of the placement of the sign, on a form furnished for such purpose.

(6) For Portable Signs that are individually owned, leased or loaned to any business, institution or individual that are to be located in the City, an annual Temporary Sign Permit shall be obtained for each individual sign. Such annual Temporary Sign Permit shall be one hundred (100) dollars. Any such sign for which such permit is obtained shall bear a decal showing the expiration date of the permit and shall also have the name of the Sign Owner located on the sign.

(c) **Double Fee:**

The payment of a double fee for failing to obtain the appropriate permit prior to the placement, location, erection, construction, reconstruction, remodeling, relocation, alteration, hanging, affixing or creation by painting a sign shall not relieve any person from complying with other provisions of this Title or from the penalties prescribed herein.

(Ord. No. 43-717 § 3; Ord. No. 50-439, § 9, 4-25-17)

Sec. 24.04.080. Requirements for maintenance of signs.

(a) All signs, together with all their supports, braces, connections, anchors and any appurtenance thereto shall be kept in good repair and in proper state of preservation. The Sign Surfaces of all signs shall be kept neatly painted or posted at all times. Every sign and the immediate surrounding premises shall be maintained by the Owner or person in charge thereof in a safe, clean, and sanitary condition, and shall be kept free and clear of all rubbish and weeds.

(b) Any crazing, fading, chipping, peeling of flaking of paint, plastic or glass, or any mechanical, electrical or structural defect shall be corrected within thirty (30) days upon notice by the Director or the sign shall be removed by the Owner.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 10, 4-25-17)

Sec. 24.04.085. Nonconforming Signs.

(a) Any Permanent Sign in existence on May 4, 1990 which does not conform to the provisions of this Title, but which was erected, constructed, reconstructed, remodeled, relocated, altered, hung, affixed or created by painting in compliance with all previously applicable regulations shall be regarded as a Nonconforming Sign and may continue to exist as a Nonconforming Sign, except as hereafter provided.

(b) Any Permanent Sign in existence on December 13, 1974, which did not conform to the then existing provisions of the sign regulations, but which was erected, constructed, reconstructed, remodeled, relocated, altered, hung, affixed or created by painting in compliance with all previously applicable regulations, shall be regarded as a Nonconforming Sign and may continue to exist as a Nonconforming Sign, except as hereafter provided.

(c) The following signs must be removed or conform to all applicable provisions of this Title within fifteen (15) years from the first date of non-conformance:

(1) Off-site signs which are within six hundred sixty (660) feet of the established bank lines of the Big or Little Arkansas Rivers; and

(2) Signs which are projecting over public Rights of Way in a manner prohibited by Section 24.04.200.

(Ord. No. 41-828 § 1; Ord. No. 47-542 § 2, 8-14-07; Ord. No. 50-439, § 11, 4-25-17)

Sec. 24.04.090. Signs hereafter rendered nonconforming.

Any sign which becomes nonconforming subsequent to the effective date of the ordinance codified herein, either by reason of annexation to the City of the Zoning Lot upon which the sign is located or the amendment of this Title so as to render such sign nonconforming, shall be subject to the provisions of this Title. The period within which any sign required by this Title to be removed or conformed shall commence to run upon the effective date of the annexation, amendment or the date upon which the sign otherwise becomes nonconforming.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 12, 4-25-17)

Sec. 24.04.100. Alteration and repair of nonconforming signs.

No alteration or repair shall be made to any Nonconforming Sign unless such sign is brought into conformance with the provisions of this Title except for the following:

(a) Altering or changing the copy of any Off-Site Sign, and the copy of On-Site Signs for another business on the Zoning Lot, and may include replacing the sign panels when no structural modifications of the sign are made, and such alteration does not increase the height of the sign or area of the Sign Surface;

(b) Structural alterations or repairs to any Nonconforming Sign shall be limited to signs damaged by fire, explosion, act of God, traffic accident or other similar accident, and when the damage does not exceed fifty (50) percent of its structural value;

(c) Normal maintenance and repairs required by Section 24.04.080 of this Code; and

(d) Building Signs on a multi-tenant structure that became nonconforming on May 4, 1990 because they extend above the height of the roof or parapet may be altered or replaced by other such signs, on a building facade on which all the other existing Building Signs for other tenants occupying the building also extend above the height of the roof or parapet.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 13, 4-25-17)

Sec. 24.04.120. Abandoned signs.

Any sign which is located on a property which becomes vacant and unoccupied for a period of thirty (30) days, or any sign which was erected for an occupant or business unrelated to the present occupant or his business shall be deemed to have been abandoned. Permanent Signs of a business temporarily suspended because of a change of ownership or management of such business shall not be deemed abandoned unless the property remains vacant for a period of six (6) months or more. An abandoned sign is prohibited and shall be removed within thirty (30) days after notification by the Director or Zoning Administrator.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 14, 4-25-17)

Sec. 24.04.130. Removal of signs.

(a) The Zoning Administrator or Director shall remove or cause to be removed any abandoned, dangerous, defective, illegal or prohibited sign subject to removal under the provisions of this Title which has not been removed within the time period specified in this Title, or any other sign maintained in violation of the provisions of this Title. The Zoning Administrator or Director shall prepare a notice which shall describe the sign and specify the violation involved and which

shall state that if the sign is not removed or the violation is not corrected within thirty (30) days, the sign shall be removed in accordance with the provisions of this Title;

(b) The notice shall be mailed or given to the Owner of the sign, or the occupant of the property upon which the sign is located or their employee or representative, or to the Owner of the property on which the sign is located as shown on the records of the Register of Deeds;

(c) In addition, any Temporary Sign placed on private property in violation of any provision of this Title may be removed and impounded by the Zoning Administrator or Director. The Zoning Administrator or Director shall prepare a notice and specify the violation involved which shall state that if the sign is not removed or the violation not corrected within seventy-two (72) hours, the sign shall be impounded. This notice shall be served upon the Owner. Such sign shall be retained by the Zoning Administrator or Director for a period of thirty (30) days, after which it may be disposed of in any manner deemed appropriate by the Zoning Administrator or Director. Such sign may be recovered by the Owner within thirty (30) days upon payment of a service charge of twenty-five (25) dollars per sign;

(d) Notwithstanding the above, in cases of emergency, the Director or Zoning Administrator may cause the immediate removal of a dangerous or defective sign without prior notice. Notice of removal shall be given to the Owner within seventy-two (72) hours of removal; and

(e) The Owner may appeal the determination of the Director or Zoning Administrator ordering removal or compliance by filing a written notice of appeal.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 15, 4-25-17)

Sec. 24.04.135. Appeals.

Any aggrieved person may appeal the determination of the Director or Zoning Administrator as set forth in Section 24.04.130 by filing a notice of appeal. Such notice shall be filed in writing within ten (10) days of the determination by the Director or Zoning Administrator.

(a) All appeals, involving determinations arising under the UBTC, shall be referred by the Director to the Board of Code Standards and Appeals for hearing on the matter in dispute.

(b) All appeals on all other matters arising under this Title shall be filed with the Board of Zoning Appeals for hearing. The Board of Zoning Appeals is hereby granted jurisdiction to hear such appeals in the same manner as all other appeals to such body.

(Ord. No. 40-963 (part); Ord. No. 49-335 § 1, 8-28-12; Ord. No. 50-439, § 16, 4-25-17)

Sec. 24.04.140. Cost of sign removal.

Any sign removed by the Zoning Administrator or Director may be disposed of in any manner deemed appropriate by the Zoning Administrator or Director. The cost of abatement or removal shall include any and all incidental expenses incurred by the City in connection with the sign abatement or removal. The Owner shall receive notice of such costs, and if unpaid after thirty (30) days, these costs shall be certified to the City Clerk, who shall assess the costs as a special assessment against the lot or parcel of land on which the sign was located in the manner provided by law.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 17, 4-25-17)

Sec. 24.04.150. License to engage in business of sign hanger.

All persons engaged in the business of hanging or installing signs, including Balloon Signs, which involves in whole or part the placement, location, erection, construction, reconstruction, remodeling, relocation, alteration, hanging, affixing or creation by painting of such signs shall be required to obtain a license from the City to conduct such business. This shall be an annual license and the fee therefor shall be one hundred (100) dollars.

(Ord. No. 43-717 § 4; Ord. No. 50-439, § 18, 4-25-17)

Sec. 24.04.160. Bond required.

No license shall be issued to any sign hanger until a bond shall have been filed with the City Clerk in the sum of two thousand (2,000) dollars, such bond to be approved as to form by the City Attorney. Such bond shall be conditioned for the construction and erection of signs in accordance with the ordinances of the City, the provisions of this Title and the laws of the state, and to protect and save the City harmless from any and all claims or demands by reason of any negligence of the sign hanger or the sign hanger's agents, servants or employees by reason of the erection, demolition, construction, maintenance, repair, removal or defects in or collapse of any sign erected by or under the direction of the sign hanger named in such bond. This obligation shall be a continuing obligation and shall remain in full force and effect until canceled by the principal or surety after having given thirty (30) days' written notice to the City. Such notice of cancellation shall be given to the Director.
(Ord. No. 40-963 (part); Ord. No. 50-439, § 19, 4-25-17)

Sec. 24.04.170. Liability for safe maintenance.

The granting of a permit by the Director shall not relieve the Owner of the sign or the owner, tenant or lessee of the premises upon which or to which the sign is attached, from the responsibility of safely maintaining such sign.
(Ord. No. 40-963 (part); Ord. No. 50-439, § 20, 4-25-17)

Sec. 24.04.175. Revocation of permits.

The Director or Zoning Administrator may revoke any permit under the provisions of this Title or stop the work or order the removal of any sign for any of the following reasons:

(a) Whenever there is a violation of any of the provisions of this Title or any other ordinance relating to signs;

(b) Whenever the continuance of any work becomes dangerous to life or property;

(c) Whenever there is any violation of any condition on which the permit was based;

(d) Whenever, in the opinion of the Director or Zoning Administrator, the person having charge of such work is not in compliance with all applicable codes;

(e) Whenever any false statement or misrepresentation has been made on the application on which the issuance of the permit was based;

(f) Whenever the Owner has failed to maintain a sign in conformance with this Title; and

(g) Whenever the Owner has changed the Zoning Lot to make a sign nonconforming.

The notice to stop work or order for removal of a sign shall be as set forth in Section 24.04.130.
(Ord. No. 40-963 (part); Ord. No. 50-439, § 21, 4-25-17)

Sec. 24.04.180. Inspections—Right of entry.

The Director and Zoning Administrator or an authorized representative shall inspect all signs regulated by this Title. He or she may also enter any building or upon any premises at any reasonable time for the purpose of inspection or to prevent a violation of this Title upon presentation of the proper credentials.
(Ord. No. 40-963 (part); Ord. No. 50-439, § 22, 4-25-17)

Sec. 24.04.185. Reserved.

Editor's note—Ord. No. 50-439, § 23, adopted April 25, 2017, repealed § 24.04.185, which pertained to classifications and definitions and derived from Ord. No. 43-717 § 5, Repealing the Originals of said amended section by Ord. No. 45-975. Adopted February 3, 2004, Amended by Ord. No. 46-396, adopted November 2, 2004; Ord. No. 46-396, Amended, Feb. 3, 2005; 45-975, Amended, July 1, 2004; Ord. 40-963, Amended, March 24, 1998, Ord. 43-717 Published March 27, 1998; Ord. No. 47-542 § 3, adopted August 14, 2007.

Sec. 24.04.190. Signs permitted in all Zoning Districts.

The following signs shall be permitted in all Zoning Districts:

1. Directional On-Site Signs, not exceeding six (6) square feet in area, displayed on private property for the convenience of the public.

2. Permanent markers located on private property for the convenience of the public in the identification of a subdivision or the streets therein; provided, that they shall first have been submitted to the Planning Director for approval. The markers shall be determined to be in keeping with the general design of the area and the size shall be limited in height and area dependent upon their location on the property.

3. Identification Signs when consisting of letters fifteen (15) inches or less in height, carved into or securely attached in such a way that they are an architectural detail of the building or entrance way, and; provided further, they are not illuminated apart from the building or entrance way, are not made of reflecting material and do not project more than two (2) inches from the surface to which they are attached.

4. During the time that property is under construction, additional temporary signs may be displayed subject to the following limitations:

   (a) One sign per Street Frontage;

   (b) Gross surface area per sign - thirty-two (32) square feet in "SF-10", "SF-5" and "TF-3" districts, one hundred twenty-eight (128) square feet in all other districts; and

   (c) Sign may include illustration of project under construction.

5. During the time that a property is listed for sale, lease or rent, additional temporary signs may be displayed with the following limitations:

   (a) Any such sign shall be unlighted and all lettering shall be permanently affixed to the sign;

   (b) The maximum gross surface area per sign, in all residential Zoning Districts, except "B" multifamily, is eight (8) square feet; in all other Zoning Districts, including "B" multifamily, it is forty (40) square feet;

   (c) There shall be only one sign per Street Frontage per listing in "MF-29" multifamily and more restrictive Zoning Districts, provided, that there shall be no more than two (2) Temporary Signs per Zoning Lot in all "MF-29" multifamily and more restrictive Zoning Districts; and

   (d) In all Zoning Districts other than "MF-29" Multi Family and more restrictive Zoning Districts, there shall be no more than two (2) Temporary Signs per Street Frontage unless the signs can be separated by a minimum distance of 150'. In no event shall there be more than four (4) Temporary Signs per Zoning Lot in Zoning Districts other than "MF-29" multifamily and more restrictive Zoning Districts.

6. During the time that a construction project is being marketed, developed or is under construction, additional Temporary Signs with the following limitations, unless otherwise indicated in an approved Community Unit Plan:

   (a) Time period, two (2) years; however, the Zoning Administrator may grant extensions every six (6) months until all lots in the subdivision are sold provided the sign is adequately maintained;

   (b) Unlighted or indirectly lighted from an external source only and constructed with neither reflective nor luminous materials;

   (c) Permit issued only after the final subdivision plat has been duly recorded; except that a permit may be issued for a property which is governed by an approved Community Unit Plan or for which a preliminary subdivision plat has been approved, for a period of six (6)

months, and then may be extended as provided for in subsection a. above if the final plat has been recorded;

(d) Located at or near entrances to tract sections under construction;

(e) Not more than two (2) Sign Structures shall be maintained in any one subdivision less than forty (40) acres in size. For each additional forty (40) acres or major fraction thereof, one additional sign may be erected;

(f) Maximum area of two hundred (200) square feet for each sign;

(g) Maximum height of twenty (20) feet; and

(h) Up to two (2) Temporary Signs to direct the public to the project may be permitted off-site, subject to the limitations set forth above and the following additional limitations:

(1) Must be located on a vacant lot or tract that is at least five hundred (500) feet, and no more than one mile, from the project.

(2) May not be located within one hundred and fifty (150) feet of a residential structure, or from any other sign facing the same direction of travel, or in a location prohibited by Section 24.04.200 of this Code.

(3) Off-Site Signs permitted under this subsection are not required to be placed on a single pole.

(4) This provision is not intended to further limit the number or location of Off-Site Signs as established in Subsection 24.04.222 or other Sections of this Code.

7. Nameplate Signs with a maximum area of three (3) square feet.

8. Temporary Banner Signs shall not exceed a total of sixty-four (64) square feet. Banner Signs shall be limited to one banner per business or location. Banners shall only be temporarily displayed. Such Banners shall not be displayed for more than thirty (30) days and shall be limited to being on display only on property during special events occurring on such property.

9. Temporary Signs displayed during a licensed miscellaneous sale not to exceed four (4) square feet in area, when located in a residential district, and not on public property.

10. (a) No more than one (1) Temporary Sign per fifteen (15) linear feet of street frontage or portion thereof may be located on private property with the permission of the Owner or tenant.

(b) Such signs shall not exceed eight (8) square feet in area, no more than five (5) feet in height and be located no closer than eight (8) linear feet to a side property line. Such signs may not be lighted or illuminated.

(c) The provisions of subsection (a) shall not be applicable to signs displayed during any Election Period, as defined by Section 24.04.045 of the Code of the City of Wichita.

11. Signs for an Institution only, not exceeding twenty-five (25) square feet gross area, which may be lighted by direct or internal illumination of white light only except that Institutions located along designated collector, arterial or expressway streets may have one sign for each collector, arterial or expressway frontage, not exceeding forty-eight (48) square feet in size for each sign. Exception: Institutions located along designated collector, arterial or expressway streets with two hundred (200) feet or more of frontage along such street may have one sign for each collector, arterial or expressway frontage, not exceeding one hundred (100) square feet in size for each sign, or up to two (2) signs for which the combined total sign area does not exceed one

hundred (100) square feet, and where such signs are separated by a minimum distance of one hundred fifty (150) linear feet.

12. Building Sign unlighted and not exceeding two (2) square feet in area when allowed by UZC IV.E.

13. Portable Sign for an Institution, provided only one Portable Sign shall be permitted on a Zoning Lot. Any such sign shall not be located closer than one hundred fifty (150) feet to any other Ground or Portable Sign, and shall be located in accordance with all other applicable regulations including, but not limited to, the location of the Portable Sign in relation to the street Right-of-Way line and the distance from driveway approaches. Any Portable Sign permitted by this Section shall not exceed sixty (60) square feet in Sign Surface per side.

14. Banners are permitted, except in the "SF-5" or "SF-10" Single Family or "TF-3" Two-Family Zoning Districts subject to the following limitations:

    Only one Banner shall be permitted for each building elevation, any such building elevation shall be required to have any one of the following:

    (a) Street Frontage;

    (b) Be adjacent to an "NO" Neighborhood Office, "GO" General Office, "NR" Neighborhood Retail, "LC" Limited Commercial, "GC" General Commercial, "CBD" Central Business District, "OW" Office Warehouse, "IP" Industrial Park, "LI" Limited Industrial or "GI" General Industrial Zoning District; or

    (c) If adjacent to a residential use or Zoning District, there must be a parking, loading or open space area with a depth of one hundred fifty (150) feet or more as measured from the sign surface to the property line which adjoins the Residential Zoning District or use.

    No Banners shall exceed thirty (30) square feet of Sign Surface area except as otherwise allowed by subsection (8) of Section 24.04.190, and shall be securely attached to a building, wall or fence.

15. Menu Board Signs, except in any residential Zoning District or any "NO" Neighborhood Office, "GO" General Office or "NR" Neighborhood Retail Zoning District, provided that any Ground Menu Board Sign is located no closer to a front property line than the front wall elevation of the principal use structure, and no closer to a rear or side property line than the building or compatibility setback allowed by the (UZC) or a special purpose or overlay Zoning District standard or requirement. Menu Board Signs shall be limited to a maximum of two (2), fifty (50) square foot signs per business, or one (1) maximum one hundred (100) square foot sign per business. Smaller Signs of up to six (6) square feet may be located at individual parking stalls without meeting the building or compatibility setback requirements outlined above.

16. Pennant Signs, except in the "SF-5" Single Family, "SF-10" Single Family, or "TF-3" Two-Family Zoning Districts, with the following limitations:

    (a) Limited to a maximum area per Pennant of twenty-four (24) square feet;

    (b) Limited to two (2) Pennants for each permanent pole, provided the total area of the Pennants does not exceed twenty-four (24) square feet per pole;

    (c) Limited to a minimum horizontal separation between Pennants, or between dual Pennants as set forth above where attached to poles, of fifty (50) feet;

(d) Limited to a minimum height of ten (10) feet above adjacent grade at the lowest part of the Pennant;

(e) Limited to a maximum height of thirty (30) feet above adjacent grade at the highest part of the Pennant; and

(f) If along an undesignated street which is adjacent to residential use or zoning, every Pennant must be set back a minimum of fifty (50) feet from the property line.

17. Other Signs which the Zoning Administrator may determine fall within the intent and purpose of this Section.

(Ord. No. 45-975 § 2; Ord. No. 50-439, § 24, 4-25-17; Ord. No. 52-192, § 2, 6-13-23)

Sec. 24.04.191. Signs permitted in the MF-18, MF-29 and "B" Residential Zoning Districts.

Ground or Pole Signs for multifamily dwellings and other major offices and Institutions. Such signs shall not exceed twenty-five (25) square feet in area except along designated collector, arterial or expressway streets where the maximum sign area shall be forty-eight (48) square feet. Said signs shall be no more than twenty (20) feet in height, and shall be limited to indirect or internal illumination of white light only.

(Ord. No. 50-439, § 25, 4-25-17)

Editor's note—Ord. No. 50-439, § 25, adopted April 25, 2017, repealed the former § 24.04.191 and enacted a new § 24.04.191 as set out herein. The former § 24.04.191 pertained to signs permitted in the "RB," "R-5," "R-6" and "B" residential zoning districts and derived from Ord. No. 40-963 (part).

Sec. 24.04.192. Signs permitted in the "U" University District.

1. Ground or Pole Signs, provided no individual sign shall exceed thirty-two (32) square feet of Sign Surface area or exceed a height of twenty-five (25) feet. Only one Ground or Pole Sign shall be permitted for any office or business; provided, however, when more than one business is located on a Zoning Lot additional signs may be permitted when a distance separation of one hundred fifty (150) feet along the Street Frontage is maintained. When the distance separation of one hundred fifty (150) feet does not permit each individual business a sign, the business shall share the use of the permitted number of signs. Under no circumstance shall the total Sign Surface area of all Ground or Pole Signs on a Zoning Lot exceed one-half (1/2) square foot per lineal foot of Street Frontage; provided, however, a Zoning Lot with sixty-four (64) feet or less Street Frontage shall be permitted a sign of thirty-two (32) square feet of Sign Surface area. No Ground or Pole Sign shall be located closer than fifteen (15) feet to an adjacent property. Any sign permitted by this Section shall be limited to indirect or internal illumination of white light only and without flashing or moving images.

2. Notwithstanding the provisions of Section 24.04.190 of this Code, Portable Signs shall not be permitted.

3. Building Signs not exceeding thirty-two (32) square feet in area or thirty (30) feet in height, and be limited to one for each major use in the building. Such signs shall be limited to indirect or internal illumination of white light only and without flashing or moving images.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 26, 4-25-17)

Sec. 24.04.193. Signs permitted in the "NO" Neighborhood Office, "NR" Neighborhood Retail, and "GO" General Office districts.

1. Ground or Pole Signs, provided no sign shall exceed thirty-two (32) square feet of Sign Surface area on a single-tenant Zoning Lot. Multi-tenant lots sharing the same Sign Structure may have up to twenty-four (24) square feet each not to exceed a total of ninety-six (96) square feet on the Zoning Lot. Sign height shall not exceed twenty-two (22) feet. Only one Ground or Pole Sign shall be permitted for any office or business; provided, however, when more than one business is located on a Zoning Lot, additional signs may be permitted when a distance separa-

tion of one hundred fifty (150) feet along the Street Frontage is maintained. When the distance separation of one hundred fifty (150) feet does not permit each individual business a sign, the businesses shall share the use of the permitted number of signs. Under no circumstance shall the total Sign Surface area of all Ground or Pole Signs on a Zoning Lot exceed one-half (1/2) square foot per linear foot of Street Frontage; provided however, a Zoning Lot with sixty-four (64) feet or less frontage shall be permitted a sign of thirty-two (32) square feet of Sign Surface area. No Ground or Pole Sign shall be located closer than fifteen (15) feet to an adjacent property. Any sign permitted by this Section shall be limited to indirect or internal illumination of white light only and without flashing or moving images.

2. Portable Signs shall not be allowed except for an Institution as specifically set out in Section 24.04.190.

3. Building Signs provided that the building elevation to which any sign is to be attached shall have one of the following:

a) Street Frontage;

b) Be adjacent to a nonresidential Zoning District; or

c) If adjacent to a residential Zoning District, there must be a parking, loading or open space area with a depth of one hundred fifty (150) feet or more as measured from the Sign Surface to the property line which adjoins the residential Zoning District line or use.

The sum of all Sign Surfaces for each business shall be limited in total area to ten (10) percent of each tenant space elevation with no sign exceeding two hundred (200) square feet in area, and there shall be no more than one (1) sign for each tenant or business on each building elevation.

Such signs shall be limited to direct or internal illumination of white light only and without flashing or moving images.
(Ord. No. 43-013 § 1; Ord. No. 50-439, § 27, 4-25-17)

Sec. 24.04.194. Signs permitted in the "G" Manufactured Home District.

Signs for a manufactured home park. Such sign shall not exceed twenty (20) feet in height or exceed sixty-four (64) square feet in area, and shall be limited to indirect or internal illumination of white light only.
(Ord. No. 40-963 (part); Ord. No. 50-439, § 28, 4-25-17)

Sec. 24.04.195. Signs permitted in the "LC" Limited Commercial District.

1. Illuminated On-Site Ground or Pole Signs as permitted by Section 24.04.221;

2. Illuminated Building Signs, provided that any building elevation on which such sign is placed shall be required to have or comply with any one of the following:

a) Street Frontage;

b) Be adjacent to an "NO" Neighborhood Office, "GO" General Office, "NR" Neighborhood Retail, "LC" Limited Commercial, "GC" General Commercial, "CBD" Central Business District, "OW" Office Warehouse, "IP" Industrial Park, "LI" Limited Industrial or "GI" General Industrial Zoning District; or

c) If adjacent to a residential use or Zoning District, there must be a parking, loading or open space area with a depth of one hundred fifty (150) feet or more as measured from the Sign Surface to the property line which adjoins the residential Zoning District or use.

The sum of all Sign Surfaces for each business shall be limited in total area to twenty (20) percent of each tenant space elevation with no sign exceeding four hundred (400) square feet in area, and there shall be no more than three (3) signs for each tenant or business on each building elevation.

If adjacent to a residential use or Zoning District, building elevations not having Street Frontage, but facing onto parking or loading

areas exceeding fifty (50) feet but less than one hundred fifty (150) feet in depth, may provide Identification Signs for each place of business having an entrance therefrom, providing such

signs shall not exceed fifteen (15) square feet in area nor be more than twelve (12) feet above grade at their highest point.

3. Illuminated Off-Site Signs as permitted by Section 24.04.222.

4. Portable Signs; provided, however, only one sign shall be permitted for an individual business. Any such sign shall be located in accordance with all other applicable regulations including, but not limited to, the area and spacing limitations for Pole and Ground Signs, the location of the sign in relation to the street Right of Way line and the distance from driveway approaches. Such signs may be illuminated; however, strobe lights or flashing bulbs and flashing or moving images shall not be permitted. Any sign permitted by this Section shall not exceed sixty (60) square feet in Sign Surface area or exceed a height of ten (10) feet above grade.

5. Balloon Signs as permitted by Section 24.04.235.
(Ord. No. 45-975 § 3; Ord. No. 50-439, § 29, 4-25-17)

Sec. 24.04.196. Signs permitted in the "GC" General Commercial and "LI" Limited Industrial districts.

1. Illuminated On-Site Ground or Pole Signs as permitted by Section 24.04.221;

2. Illuminated Off-Site Signs as permitted by Section 24.04.222;

3. Illuminated Building Signs, provided that these signs shall be limited in total area to twenty (20) percent of each building elevation, and no individual sign shall exceed four hundred (400) square feet;

4. Roof Signs, except for Balloon Signs, shall not be permitted except by a variance approved by the Board of Zoning Appeals;

5. Portable Signs; provided, however, only one sign shall be permitted for an individual business. Any such sign shall be located in accordance with all other applicable regulations; including but not limited to, the area and spacing limitations for Pole and Ground Signs, the location of the sign in relation to the street Right of Way line and the distance from driveway approaches. Such signs may be illuminated; however, strobe lights or flashing bulbs and flashing or moving images shall not be permitted. Any sign permitted by this Section shall not exceed sixty (60) square feet in Sign Surface area; and

6. Balloon Signs as permitted by Section 24.04.235.
(Ord. No. 43-717 § 7; Ord. No. 50-439, § 30, 4-25-17)

Sec. 24.04.197. Signs permitted in the "CBD" Central Business District.

1. Illuminated On-Site Ground or Pole Signs as permitted by Section 24.04.221;

2. Illuminated Building Signs, provided that these signs shall be limited in total area to twenty (20) percent of each building elevation, and no individual sign shall exceed four hundred (400) square feet in area;

3. Roof Signs, except for Balloon Signs, shall not be permitted except by a variance approved by the Board of Zoning Appeals; and

4. Balloon Signs as permitted by Section 24.04.235.
(Ord. No. 43-717 § 8; Ord. No. 50-439, § 31, 4-25-17)

Sec. 24.04.198. Signs permitted in the "GI" General Industrial District.

1. Illuminated On-Site Ground or Pole Signs as permitted by Section 24.04.221;

2. Illuminated Off-Site Signs as permitted by Section 24.04.222;

3. Illuminated Building Signs; provided that these signs shall be limited in total area to twenty (20) percent of each building elevation, and no individual sign shall exceed four hundred (400) square feet in area;

4. Roof Signs, except for Balloon Signs, shall not be permitted except by a variance approved by the Board of Zoning Appeals;

5. Portable Signs; provided, however, only one sign shall be permitted for an individual business. Any such sign shall be located in accordance with all other applicable regulations including, but not limited to, the area and spacing limitations for Pole and Ground Signs, the location of the sign in relation to the street Right of Way line and the distance from driveway approaches. Such signs may be illuminated; however, strobe lights or flashing bulbs and flashing or moving images shall not be permitted. Any sign permitted by this Section shall not exceed sixty (60) square feet in Sign Surface area; and

6. Balloon Signs as permitted by Section 24.04.235.
(Ord. No. 43-717 § 9; Ord. No. 50-439, § 32, 4-25-17)

Sec. 24.04.199. Signs permitted in the "OW" Office/Warehouse and the "IP" Industrial Park Districts.

1. On-Site Ground or Pole Signs shall be allowed under the following provisions:

a. **Number Permitted.** The number of Ground or Pole Signs permitted on a Zoning Lot shall be determined by the linear feet of Street Frontage of the Zoning Lot. Where a Zoning Lot has Street Frontage on more than one street, the provisions of this Section shall apply to each Street Frontage; provided, however, signs permitted by a Street Frontage must be adjacent to, and face the direction of travel along said street.

Exception: On Zoning Lots adjoining designated collector or arterial streets or expressways to which the Zoning Lot has no direct, legal vehicular access, one Ground or Pole Sign not exceeding sixty-four (64) square feet in area and twenty (20) feet maximum height above grade shall be permitted along such collector or arterial street or expressway; provided that any such Ground or Pole Sign shall only be permitted in lieu of Building Signs otherwise allowed on the building elevation facing the same street.

One Ground or Pole Sign shall be permitted for any Street Frontage; provided, however, additional Ground or Pole Signs may be permitted when a distance separation of one hundred fifty (150) feet along the Street Frontage is maintained between Ground or Pole Signs. When the distance separation of one hundred fifty (150) feet does not permit each individual business a sign, the businesses shall share the use of the permitted number of signs.

Under no circumstance shall the total gross surface area of all Ground or Pole Signs on a Zoning Lot Street Frontage exceed the table of areas maximum square feet of all signs per linear foot of Street Frontage set forth in subsection (1)(b) of this Section.

b. **Size Permitted.** The size of an On-Site Ground or Pole Sign shall not exceed the maximums set forth in the Table of Areas below; provided, however, the total sign area of all on-site Ground or Pole Signs on the Zoning Lot shall not exceed the total permitted area in square feet of all signs per linear foot of Street Frontage adjacent to Street Frontage providing legal, direct vehicular access onto the Zoning Lot.

TABLE OF AREAS

Maximum Permitted Areas for On-Site Ground or Pole Signs in "OW" and "IP" Districts

*Type of Street**	*Maximum Area of Individual Sign in Square Feet*	*Total Permitted Area in Square Feet of All Signs per Linear Foot of Street Frontage*
Undesignated	50	0.5
Collector	100	0.5
Arterial	150	0.80
Expressway	150	0.80

*As designated on Figure 11 of the 2020 Transportation Plan, an element of the comprehensive plan.

Exception: A Zoning Lot with sixty-four (64) feet or less of linear frontage shall be

permitted a Ground or Pole Sign of up to thirty-two (32) square feet of Sign Surface area.

c. **Height Limit.** No Ground or Pole Sign shall exceed a height of twenty (20) feet except when the number of permitted Ground or Pole Signs along a Street Frontage of the Zoning Lot which is adjacent to an arterial street or expressway, as set forth in subsection (1)(a) in this Section, is not utilized. If one or more allowed Ground or Pole Signs along an arterial street or expressway are not utilized, one Ground or Pole Sign along the same arterial or expressway may be increased by five (5) feet in height, or to a maximum of twenty-five (25) feet, provided that the number of businesses on the Zoning Lot exceeds the number of Ground or Pole Signs otherwise allowed in this Section.

d. **Location on Property.** On-site Ground or Pole Signs shall not project over public Right of Way, and shall be located not closer to an adjacent property line than one-third the frontage of the Zoning Lot or fifteen (15) feet, whichever is less. The centerline of an alley shall be considered an adjacent property line. When more than one Ground or Pole Sign is permitted on a Zoning Lot, there shall be maintained a minimum horizontal distance between signs of one hundred fifty (150) feet, along the same Street Frontage.

Exception: A sign located within fifty (50) feet of the intersection of two (2) streets on a corner lot may be placed so that it may face both directions of travel, such as a sign being erected on an angle. When this occurs, it shall be considered a sign adjacent to each street, and one-half of the sign area shall be charged against the total permitted sign area of each Street Frontage.

Exception: The Zoning Administrator may vary these minimum horizontal distances up to thirty (30) percent when circumstances related to the physical features of the Zoning Lot prevent the installation of the sign at the minimum horizontal distances. The reduction of these minimums shall in no way change the number of signs permitted on a Zoning Lot.

2. Portable Signs shall only be allowed for Institutions as specifically set out in Section 24.04.190.

3. Building Signs not exceeding one hundred fifty (150) square feet in area and thirty (30) feet in height above grade, and limited to one per building elevation for each major use in the building; provided that the total amount of building signage per building elevation shall be limited in total area to ten (10) percent of the building elevation, or a total of three hundred (300) square feet, whichever is less. The building elevation to which any sign is to be attached shall have one of the following:

a) Street Frontage;

b) Be adjacent to a nonresidential Zoning District; or

c) If adjacent to a residential Zoning District, there must be a parking, loading or open space area with a depth of one hundred fifty (150) feet or more as measured from the Sign to the property line which adjoins the residential Zoning District.

4. Any sign permitted by this Section shall be limited to direct or internal illumination of white light only. Signs shall not rotate or have flashing or moving images.

5. For industrial parks within "IP" Industrial Park Districts, Directory Signs and Temporary Signs as allowed by Section 24.04.190(6) shall be allowed with the following limitations:

a. Exclusively for the businesses located within the industrial park in which the sign is located;

b. Direct or internal illumination of white light only or reflective or luminous materials. Signs shall not rotate or have flashing or moving images;

c. Not more than one Directory Sign shall be maintained in any one industrial park less than forty (40) acres in size. For each additional forty (40) acres or fraction thereof, one additional Directory Sign may be erected.

d. Maximum area shall be as shown in Subsection (1)(b) of this Section under the table of areas "Maximum Area of Individual Sign in Square Feet," regardless of amount of linear Street Frontage.

e. Maximum height of Directory Signs shall be twenty (20) feet.

f. Directory Signs must be separated by a minimum distance of three hundred thirty (330) feet from any other Temporary or Directory Sign for the industrial park, and by a minimum distance of one hundred fifty (150) feet from any other on-site Pole or Ground Sign within the industrial park.

6. For purposes of this Section, "Street Frontage" shall be the linear feet of Street Frontage directly adjacent to an adjoining street or street Right of Way from which there is direct, legal vehicular access to the zoning lot. In determining Street Frontage, one-half the width of an adjoining alley may be considered as frontage. (Ord. No. 43-013 § 2; Ord. No. 50-439, § 33, 4-25-17)

Sec. 24.04.200. Prohibited locations—General requirements.

(a) **Obstructing Windows, Doors, Etc.** No sign shall be placed or erected across or so as to obstruct in any way the use of any window, door, exit or entrance or, to or from any building, whether occupied or not, but this provision shall not prohibit placing a sign across a transom. No sign of any kind shall be attached to or placed upon a building in such a manner as to obstruct any fire escape, nor shall any sign be attached to any fire escape.

(b) **Interfering with Public Safety and Convenience.** No sign shall be erected, constructed, reconstructed, remodeled, relocated, altered, hung, affixed or created by painting, or maintained in any way that will interfere with public safety and convenience or with the proper and convenient operation of the Fire Department for protection of property.

(c) **Across Streets or Alleys.** No sign shall be suspended or constructed across any street or alley, except as provided in this Title.

(d) **Use of Public Property.** No sign, except as provided in Subsection (f) of Section 24.04.230, shall be supported in any way by public property. No sign shall project over public Right of Way except Projecting Signs permitted on buildings located within eight (8) feet of a Right of Way line. No part of any Projecting Sign extending over any public property shall be less than ten (10) feet from the surface immediately below, except signs not exceeding four (4) square feet in area and not projecting more than two (2) feet may be hung not less than eight (8) feet from the surface of the public property immediately below. No part of any sign permitted to extend over any alley or public roadway, however, shall be less than fifteen (15) feet from the surface immediately below. In no case shall the outer edge of a Projecting Sign extend closer to the vertical plane of a street curb than two (2) feet, unless the bottom of such sign is thirteen (13) feet, six (6) inches or more from the sidewalk immediately below. Any permit for a sign over public property issued under the provisions of this Title, or any previous ordinance, shall be revocable at the will of the City Council, upon notice and opportunity for hearing before the City Council.

(e) **Interfering with Traffic.** No sign of any kind shall be erected or maintained in such a manner as to interfere with, mislead or confuse traffic or to obstruct the line of sight of any traffic signal, or traffic device as may be determined by the Traffic Engineer.

(f) **Near Residences.** No Off-Site Sign shall be located within fifty (50) feet of a residential structure.

(g) **Close to Rivers, Parks.** No Off-Site Sign shall be located closer than six hundred sixty (660) feet to the established bank lines of the Big Arkansas or the Little Arkansas Rivers, to any

park or recreation area under the jurisdiction of any public body including the Board of Park Commissioners of the City.

Off-Site Signs may be erected within six hundred sixty (660) feet of the established bank lines of the Big Arkansas or the Little Arkansas Rivers or of any such park or recreation area when such Off-Site Signs are located in athletic field facilities owned or operated by a public body.

(h) **Near Highways.** No Off-Site Sign shall be located closer than six hundred sixty (660) feet to any portion of the existing or designated Right of Way of State Highway K-96 between Interstate 135 and the east City limits.

(i) **Near Driveway Approach.** No Ground Sign exceeding a height of three (3) feet, permanent or temporary, shall be located within a triangle, the sides of which are formed by the property line, the edge of the driveway as extended from the street, and a line from a point on the property line twenty-five (25) feet from the driveway to a point on the edge of the driveway six (6) feet behind the property line.

(j) **Posting on Utility Poles.** Except for Official Signs as defined by this Title and Temporary Signs erected by public utilities placed on such utility poles, no sign, notice, poster or other paper or device calculated to attract the attention of the public shall be posted on any lamppost, public utility pole, or traffic control device located in the public Right of Way.
(Ord. No. 45-322 § 1; Ord. No. 40-963 (part); Ord. No. 50-187 § 1, 4-26-16; Ord. No. 50-439, § 34, 4-25-17)

Sec. 24.04.210. Reserved.

Editor's note—Ord. No. 49-335 § 3, adopted August 28, 2012, repealed § 24.04.210 in its entirety. Formerly said section pertained to removal of signs placed upon public property and derived from Ord. No. 45-322 § 2; Ord. No. 40-963 (part).

Sec. 24.04.215. Signs in the Right-of-Way or on Public Property.

(a) An unauthorized Temporary Sign in the Right-of-Way or on public property which is not supported or held by a person or persons is hereby declared to be a nuisance.

(b) The following acts are prohibited:

(1) No person shall place or cause the placement of a Temporary Sign in the Right-of-Way or on Public Property, including but not limited to any street, sidewalk, park, tree or utility poles. The act of placement will be deemed to continue until such sign is removed.

(2) Any Temporary Sign placed or installed in the Right-of-Way will be deemed an unlawful sign and an abandoned sign and will be subject to immediate removal by the City of Wichita, or as authorized herein.

(3) The existence of a Temporary Sign in the Right-of-Way or on Public Property directing attention to a person is prima facie evidence that such person has caused the placement of such sign in the Right-of-Way or on Public Property.

(4) The existence of a Temporary Sign in the Right-of-Way or on Public Property directing attention to a business, product or service is prima facie evidence that the Owner or the agent for the Owner of that business, product or service caused the placement of such sign in the Right-of-Way or on Public Property.

(5) The existence of a Temporary Sign in the Right-of-Way or on Public Property directing attention to an event is prima facie evidence that the promoter of that event or the agent for the promoter caused the placement of such sign in the Right-of-Way or on Public Property.

(c) (1) The provisions of Subsection (a) shall not be applicable to signs which have an installed height not exceeding thirty inches from the ground and which are less than four (4) square feet placed in the public rights-of-way during an Election Period as defined by Section 24.04.045.

(2) Temporary Signs placed during an election period may not be displayed in center medians between roadways, attached to traffic control devices or attached to or

displayed on city bridges or overpasses or in any manner or location which, in the opinion of the City Engineer, creates a vehicle or pedestrian traffic safety concern due to impeded sight lines or sight distance or which obstructs a sidewalk or cross walk in violation of the Americans With Disabilities Act.

(3) Temporary Signs placed during an election period are prohibited in areas adjacent to or on any other public property.

(4) Temporary Signs placed during an election period which cause an obstruction to automobile or pedestrian traffic or to the use of such public property for its designated public purpose or which are contrary to the provisions of this subsection, constitute a nuisance and may be removed as set forth below.

(5) All Temporary Signs placed during an election period must be removed from the rights-of-way immediately following such Election Period.

(6) The owner(s) and tenant(s) of property where such signs are displayed in violation of this section shall be jointly and individually liable for such violation. The person, party, or parties responsible for the placement or distribution of a political sign shall be jointly and individually liable for the removal of such signs.

(c) Exception. Temporary Signs installed by any of the following and directly related to the use of the Right-of-Way or Public Property, including the control and direction of traffic shall be exempted from the provisions of subsections (a) and (b):

(1) City, county or state government entities;

(2) Any road construction work;

(3) Any public utility with a franchise or other agreement with the City of Wichita; or

(4) Any other government entity or person expressly authorized by local, state or federal law or contract to install a sign in the Right-of-Way.

(d) Enforcement.

(1) Penalties. Any violation of this Section may be prosecuted as a misdemeanor in municipal court. The penalty for the first violation of this Section shall be fifty (50) dollars. The penalty for the second or subsequent violation of this Section shall be a fine of not less than fifty (50) dollars but not more than one thousand (1,000) dollars for each sign.

(2) Other remedies and enforcement powers.

(a) The City, or its authorized representative as described herein, may remove any unauthorized sign in the Right-of-Way at any time.

(b) The City may notify the presumed Owner of the sign through the contact information on the sign (or through any other available information) that the Owner has seventy-two (72) hours (or three (3) business days) to remove the sign before a citation may be issued. This seventy-two (72) hour (or three (3) business days) enforcement delay will not be offered to any person or business that has previously been notified regarding the sign at issue or any other sign.

(c) Any Temporary Sign removed pursuant to which is six (6) square feet or larger and composed entirely of metal or wood shall be kept by the City or other department designated to remove such sign for a period of twenty (20) days, after which it may be disposed of in any manner deemed appropriate by the City. All other signs removed pursuant to these provisions may be disposed of in any manner deemed appropriate by the City.

(d) Any such metal or wooden sign removed pursuant to these provisions may be recovered by the Owner within twenty (20) days upon payment of a service charge of twenty-five (25) dollars per sign.

The City may seek such other remedies and use such other enforcement powers as allowed by law.

(3) Citizen enforcement.

(a) For any Temporary Sign posted in violation of this Section, any individual authorized by the Zoning Administrator, after appropriate training provided by the City of Wichita, may:

(i) Remove the sign; and

(ii) Either:

(A) Discard the sign in an appropriate manner; or

(B) Submit the sign to the Zoning Administrator for further enforcement proceedings.

(b) A submission to the Zoning Administrator for further enforcement proceedings must be accompanied by an affidavit, in the form required by the Zoning Administrator that describes the circumstances of the violation and removal of the sign.

(4) Right of adjacent property owner to remove signs. Any property owner or tenant may remove an unauthorized Temporary Sign which is placed in the Right-of-Way when such Right-of-Way immediately abuts or is adjacent to the owner or tenant's property in compliance with Sections 10.04.100 or 10.04.125 of the Code of the City of Wichita.

(Ord. No. 49-335 § 2, 8-28-12; Ord. No. 50-439, § 35, 4-25-17; Ord. No. 52-192, § 3, 6-13-23)

Sec. 24.04.220. General requirements.

The signs regulated by this Title shall be subject to all applicable ordinances, conditions and special requirements as may be specified herein.

(a) All signs shall comply with the provisions of the Wichita/Sedgwick County Unified Building and Trade Code relating to the design, structural members, connections and subject to all required permits therein.

(b) All signs shall comply with the limitations of height, area, type, and illumination requirements as set forth in this Title.

(c) No signs, except for Pennant Signs, shall be erected that will allow the sign to swing or rotate due to wind action. All signs shall be securely fastened so that movement in any direction is prevented.

(d) Every sign, except for Banners or Pennant Signs, shall be erected level and plumb and be constructed of galvanized metal or otherwise protected from corrosion.

(e) No Ground or Pole Sign of combustible material shall be erected closer to a property line or to a building than the distance required by the UBTC for type VN construction, except for Temporary Signs.

(f) Sign Structures shall be fabricated of noncombustible materials and supported by concrete foundations or anchored with metallic connections to the supporting structure. All electrically illuminated signs shall be constructed as set forth in the UBTC; however, signs may be constructed of heavy timber or faced with combustible materials upon approval of the Director.

(g) Wall signs shall not extend beyond the top or ends of the wall surface on which the sign is placed without the approval of the Zoning Administrator.

(h) No Projecting Sign shall be erected closer to an adjacent property than the distance the sign projects from its support. All Projecting Signs shall be constructed entirely of incombustible material.

(i) Signs erected on, attached to or made a part of a canopy or marquee projecting over public Right of Way shall be considered Projecting Signs.

(j) Roof Signs shall be constructed of incombustible material and shall be so located as not to interfere with the drainage of the roof, or to prevent access onto any portion of the roof. A permit for any Roof Sign shall be issued only after compliance by the applicant with the following provisions:

(1) The applicant shall give a bond in the sum of five thousand (5,000) dollars to save and hold the City free and harmless from all damages which may be occasioned by the erection and maintenance of such sign; the bond is to be signed by the sureties acceptable to the City and to be approved as to form by the City Attorney.

(2) In lieu of this bond of five thousand (5,000) dollars for each Roof Sign permitted under this Section, it shall be permissible to file with the City Clerk a blanket surety bond to cover all roof signs erected and maintained by a person within the City.

(3) Such bond shall be of such nature as to cover such Roof Sign erected and maintained, in the amount of five thousand (5,000) dollars. Such blanket surety bond shall be conditioned to save and hold the City free and harmless for any and all damages, claims or demands which may be occasioned by the erection and maintenance of such sign. Such bond shall be signed by sureties acceptable to the City and shall be approved as to form by the City Attorney.

(k) Each sign, except Temporary Signs for which permits have been issued for thirty (30) days or less, shall have the name of the sign Owner affixed to the sign in a manner approved by the Zoning Administrator.

(l) Sign Surface of an On-Site Sign. The Sign Surface area of a sign shall be the sum of all surface areas of all the Sign Surfaces, except that Ground or Pole Signs designed as double-faced signs, with both faces parallel and when the distance between the faces does not exceed three (3) feet, then only one face of the sign shall be considered in determining the sign area.

In determining the surface of a sign, each face of a sign may be broken down into two (2) areas. Each surface area shall include the total area within a single continuous perimeter enclosing the extreme limits of the sign elements. Such perimeters need not include any structural elements lying outside the limits of such sign when they do not form an integral part of the display, nor shall it include either: (i) architectural embellishments when such do not contain any advertising or printed copy, are not lighted and do not exceed ten (10) percent of the permitted sign area; or (ii) a sign Pole or pylon cover or aesthetic wrap when such does not contain any advertising or printed copy and is not internally lighted.

(m) **Limitations.** Limitations apply to the type, height, setback, number, and gross surface area of signs on each Zoning Lot.

(n) **Height of Sign.** Sign height shall be measured from grade at the base of the sign to the highest portion of the Sign Structure.

(o) **Illuminated Signs.** Signs shall be shaded wherever necessary to avoid casting bright light upon property located in any Residential Zoning District or upon any public street. Any Illuminated Sign located on a lot adjacent to or across the street from any Residential Zoning District, which sign is visible and within two hundred (200) feet of any Residential Zoning District, shall not be illuminated between the hours of eleven (11) p.m. and seven (7) a.m. Signs may not be illuminated unless so designated to permit same.

(p) **Electronic Message Signs.** No Electronic Message Sign shall be erected or installed without dimming controls to ensure the sign is appropriately dimmed at night. Acceptable dimming controls include automated light sensing devices (photocells) and/or programmable controls that are set by the user to automatically dim the sign at night. Generally, the maximum nighttime brightness and/or light intensity shall not exceed 3,000 Nits (or equivalent). For Electronic Message Signs that have a maximum brightness and/or light intensity of 3,000 Nits or less (or equivalent), dimming controls shall not be required.

(q) **Flashing or Moving Signs.** No Flashing Signs, Rotating or Moving Signs, animated signs, signs with moving lights, or signs which create the illusion of movement shall be permitted in a Residential Zoning District, or in the "NO" Neighborhood Office District, "GO" General Office District, "NR" Neighborhood Retail District, "OW" Office/Warehouse District, or the "IP" Industrial Park District.

(r) **Facing Direction of Travel.** A sign shall be considered facing the direction of travel when it is visible from any lane of traffic proceeding along a street and the face of such sign is a plane within thirty (30) degrees of a line perpendicular to the centerline of the street. A sign shall be considered facing both directions of travel along a street if the angle exceeds the thirty (30) degrees as described above. Exception: A sign located within two hundred fifty (250) feet of an intersection of arterials or expressways, or combination thereof, shall be considered facing the line of traffic it is more directed

toward providing the face of the sign is in a plane within thirty (30) degrees of a line perpendicular to the centerline of that street.

(s) **Distance between Off-Site Signs.** Distance between Off-Site Signs facing a direction of travel shall be measured at the centerline of a street at the points where lines are projected perpendicular to the center line of the street to the center of the signs.

(t) No portion of a sign that is located within the triangle formed by the imaginary intersection of curb lines at the intersection of two streets, and extending for a distance of fifty (50) feet each way from that imaginary intersection of a curb line of any corner lot, shall be permitted to extend closer than ten (10) feet to grade of adjacent roadway surface.

(u) Any sign authorized in this Title is allowed to contain noncommercial copy in lieu of any other copy.

(v) Alternative or additional requirements concerning the type, size, height, and location of signs may be established on specific sites by the requirements of a Planned Unit Development (PUD) or any Zoning Overlay District in accordance with procedures set forth therein.

(Ord. No. 45-975 § 4; Ord. No. 47-542 § 4, 8-14-07; Ord. No. 50-439, § 36, 4-25-17)

Sec. 24.04.221. Specific regulations—On-Site Ground or Pole Signs as referred to in subsections 24.04.195, 24.04.196, 24.04.197, and 24.04.198.

1. **Number Permitted.** The number of Ground or Pole Signs permitted on a Zoning Lot shall be determined by the linear feet of Street Frontage of the Zoning Lot. Where a Zoning Lot has frontage on more than one public Right of Way or street, the provisions of this Section shall apply to each frontage; provided, however, signs permitted by a Street Frontage must be adjacent to, and face the direction of travel along said street. (Exception: signs located within fifty (50) feet of the intersection of two streets on a corner lot may be placed so that it may face both directions of travel, such as a Rotating Sign or be erected on an angle. When this occurs, it shall be considered a sign adjacent to each street, and one-half of the sign area shall be charged against the total permitted sign area of each Street Frontage). Every Zoning Lot shall be permitted one Ground or Pole Sign. Whenever more than one On-Site Ground or Pole Sign is permitted, it shall be determined by the required minimum horizontal distance from any adjacent property line and the minimum horizontal distance between On-Site Ground or Pole Signs on the Zoning Lot as set forth in subsection (6) of this Section. This will permit two (2) signs on an interior Zoning Lot of one hundred eighty (180) feet or more, and two (2) signs on a corner lot of one hundred sixty-five (165) feet or more. For each additional one hundred fifty (150) feet of frontage above these minimums, one additional sign may be erected. In determining lot frontage, one-half the width of an adjoining alley may be considered as Street Frontage.

EXCEPTION: Whenever a Zoning Lot of less than three hundred thirty (330) feet of Street Frontage, contains a greater number of separate leasehold tenants than the number of permitted On-Site Ground or Pole Signs as set forth above, the following provisions may apply:

a. No individual business shall be permitted more than one On-Site Ground or Pole Sign, nor in any event, shall the distance between signs be less than seventy-five (75) feet.

b. No individual business shall install a sign with a Sign Surface area greater than that permitted by the "Table of Areas" set forth in Subsection (4) of this Section based on that frontage of the building occupied by the leasehold tenant. Whenever the building is more than one story, the frontage shall be divided by the number of floors involved.

c. Whenever the number of permitted On-Site Ground or Pole Signs based on the seventy-five (75) foot separation require-

ment does not allow one sign per business, it shall be necessary for tenants to share space on the same pole or base.

d. Any sign permitted by this exception shall not exceed a height of thirty (30) feet.

2. **Size Permitted.** The size of an On-Site Sign shall not exceed the maximum permitted square feet of sign area as set forth in the Table of Areas of Subsection (4) of this Section; provided, however, the total sign area of all On-Site Ground or Pole Signs on the Zoning Lot shall not exceed the total square feet of area along a Street Frontage as permitted by Subsection (4) of this Section.

3. **Height Limit.** No Ground or Pole Sign shall exceed a height of twenty-five (25) feet except when the number of permitted signs along a Street Frontage of the Zoning Lot, as set forth in paragraph one, is not fully utilized. For each sign that is not utilized along a Street Frontage, one sign may be increased five (5) feet in height. The use of this method shall not permit any sign to exceed a height of thirty-five (35) feet. Unused signs otherwise permitted along an undesignated street shall not be used to increase the height of a sign on another Street Frontage on the same Zoning Lot.

4. **Maximum Area.** The maximum permitted area of an individual Ground or Pole Sign shall not exceed the square feet shown in the following table; provided, however, under no circumstance shall the total sign area of all Ground or Pole Signs on a Zoning Lot exceed the area per lineal foot of Street Frontage adjacent to said street Right of Way.

(**EXCEPTION:** When only one sign is permitted by the frontage of a Zoning Lot, it shall be permitted an area of one hundred (100) square feet when adjacent to an arterial or expressway; fifty (50) square feet when adjacent to a collector street; or twenty-five (25) square feet when adjacent to an undesignated street.)

TABLE OF AREAS
MAXIMUM PERMITTED AREAS FOR
ON-SITE GROUND OR POLE SIGNS

*Type of Street**	*Maximum Area of Individual Sign in Square Feet*	*Total Permitted Area in Square Feet of All Signs Per Lineal Foot of Street Frontage*
Undesignated**	50	0.5
Collector***	150	0.5
Arterial	300	0.80****
Expressway	300	0.80****

* As designated on the official zoning map.

** When an undesignated street is located in an area such that both sides of the street, between intersecting streets, are zoned entirely as a Commercial or Industrial District, the limitations of a collector street shall then apply. Undesignated Street Frontage shall not be used to increase the size of signs permitted in other streets bordering the same Zoning Lot.

*** When a collector street is located in an area such that both sides of the street, between intersecting streets, are zoned entirely as a Commercial or Industrial District, the limitations of an arterial street shall then apply.

**** 1.0 square feet per lineal foot for multi-tenant lots with less than 330 feet of frontage.

5. **Rotating Signs.** Rotating Ground or Pole Signs are permitted only in Commercial or Industrial Zoning Districts.

6. **Location on Property.** On-Site Ground or Pole Signs shall not project over the public Right of Way, and shall be located not closer to an adjacent property line than one-third the frontage of the Zoning Lot or fifteen (15) feet, whichever is less. The centerline of an alley shall be considered an adjacent property line. When more than one Ground or Pole Sign is permitted on a Zoning Lot, there shall be maintained a minimum horizontal distance of one hundred fifty (150) feet, along the same Street Frontage from another Ground or Pole Sign on the same Zoning Lot. Except as provided in Subsection (1), this shall apply to all on-site Ground or Pole Signs within thirty-five (35) feet of the street Right of Way line.

(**EXCEPTION:** The Zoning Administrator may vary these minimum horizontal distances up to thirty (30) percent when circumstances related to the physical features of the Zoning Lot prevent the installation of the sign at the minimum horizontal distances. The reduction of these minimums shall in no way change the number of signs permitted on a Zoning Lot.)

(Ord. No. 40-963 (part); Ord. No. 50-439, § 37, 4-25-17)

Sec. 24.04.222. Specific regulations—Off-site signs when permitted in the "LC" limited commercial, "GC" general commercial, "LI" limited industrial or "GI" general industrial districts.

1. **Special Review Approval Required.** New Off-Site Billboard Signs or replacement Off-Site Billboard Signs that increase the height or size of an existing Off-Site Sign that are closer to residentially zoned and buildable lots or to residential structures or uses than allowed by subsection (4)(d) of this Section, must obtain a special review approval as outlined in Section 24.04.225.

2. **Number Permitted.** The number of Off-Site Signs facing a direction of travel within any designated mile shall be determined by the linear measurement in feet, along the centerline of the street Right of Way, that is within or adjacent to any "LC" Limited Commercial, "GC" General Commercial, "LI" Limited Industrial or "GI" General Industrial Zoning District; provided, however, such signs shall only be permitted in the Zoning Districts as set forth in Sections 24.04.195, 24.04.196 and 24.04.198. Except in the "GC," "LI" or "GI" Zoning Districts, no Zoning District shall be considered for linear measurement unless it is adjacent to an arterial street or expressway. No Zoning District or zoning shall be considered for linear measurement if it is included within an approved Community Unit Plan, Planned Unit Development, P-O Protective Overlay or Protective Overlay District, except when such Community Unit Plan, Planned Unit Development, P-O Protective Overlay or Protective Overlay District specifically allows Off-Site Billboard Signs. For the purposes of measurement, zoning shall be considered to extend to the centerline of all streets. A designated mile shall be the length of the centerline of a street between mile section lines, even though the linear measurement may exceed five thousand two hundred eighty (5,280) feet. Any mile not completely within the City limits shall be treated on a percentage basis. The number of signs allowed shall be in direct proportion to the percentage of the designated mile that lies within the City limits boundary. There shall be permitted not more than one Off-Site Sign facing a direction of travel for each five hundred (500) linear feet of street having "GC," "LI" or "GI" zoning adjacent thereto; provided, however, under no circumstances shall there be erected more than five (5) Off-Site Signs facing a direction of travel in a designated mile in the "GC" and "LI" Zoning Districts and eight (8) per mile in the "GI" Zoning District.

Off-Site Signs may be permitted in the "LC" Limited Commercial Zoning District but only when a designated mile has at least fifteen hundred (1,500) linear feet of "LC," "GC," "LI" or "GI" zoning adjacent thereto. When there is at

least three thousand (3,000) linear feet of appropriate zoning adjacent to a designated mile, a second Off-Site Sign may be permitted.

Whenever an Off-Site Billboard Sign is located on an "LC" Zoning Lot that abuts or fronts a designated arterial street, such Off-Site Billboard Sign must meet the criteria for an Off-Site Junior Billboard Sign Extensions beyond the three hundred (300) square foot Sign Surface area maximum for Sign Surfaces of an Off-Site Junior Billboard in an "LC" Zoning District are not allowed. When Off-Site Billboard Signs are located on "LC" Zoning Lots that abut or front a designated arterial street, no more than two (2) Off-Site Billboard Signs may be permitted within a designated mile in "LC" Zoning Districts.

3. **Maximum Size and Height Permitted.** In "LC" Limited Commercial, "GC" General Commercial, "LI" Limited Industrial or "GI" General Industrial Zoning Districts or lots, the Sign Surface area of an Off-Site Billboard Sign Surface facing the direction of travel shall not exceed eight hundred twenty-five (825) square feet, including any extensions. Extensions may not extend more than five and one-half (5 1/2) feet above the normal upper rectangular lineage of the Sign Surface, nor more than two (2) feet beyond any of the other three (3) sides. Maximum rectangular dimensions of any Off-Site Billboard Sign Surface, excluding extensions, shall be fourteen (14) feet in height by forty-eight (48) feet in length. No Off-Site Billboard Sign, Sign Structure or Sign Cabinet shall exceed thirty (30) feet in height at the top of the maximum rectangular dimension, which does not include the permitted extensions.

In "LC" Limited Commercial Zoning Districts or lots, the Sign Surface area of any Off-Site Sign Surface facing the direction of travel along a designated arterial street shall not exceed three hundred (300) square feet, and shall meet the criteria for an Off-Site Junior Billboard Sign. No extensions beyond the maximum three hundred (300) square foot Sign Surface area are allowed for Off-Site Junior Billboard Signs located in or upon "LC" Zoning Districts or lots. In the "LC" Zoning District, no Off-Site Sign shall exceed thirty (30) feet in height at the top of the Sign, Sign Structure or Sign Cabinet.

EXCEPTIONS: Off-Site Billboard Signs, Sign Structures or Sign Cabinets located adjacent to an elevated portion of a highway structure may be erected to a maximum height of fourteen (14) feet above the top of the railing or barrier along the traffic deck. Off-Site Signs that cantilever over the roof or roof parapet of a one-story building shall maintain eight (8) feet of vertical clearance between the bottom of the sign and the roof or parapet and shall not exceed twenty-six (26) feet in height above the roof or parapet. For purposes of enforcement, no Off-Site Sign permit for additional height above a roof or roof parapet shall be issued until the building over which the Off-Site Sign is to be cantilevered has been created.

4. **Prohibited Locations.** No Off-Site Billboard Sign shall be erected on a property when any of the following conditions exist:

a. No Off-Site Billboard Sign shall be erected on a Zoning Lot of less than one hundred fifty (150) feet of frontage, that has more than two (2) On-Site Ground or Pole Signs totaling more than two hundred fifty (250) square feet Sign Surface area facing a direction of travel that are located within thirty-five (35) feet of the street Right of Way line;

b. No Off-Site Billboard Sign shall be erected that would obscure the view of any On-Site Sign. This shall be determined by establishing a sight point at the centerline of the street one hundred fifty (150) feet in either direction, then no On-Site Sign within one hundred fifty (150) feet of the Off-Site Sign shall be obscured from view;

c. No Off-Site Billboard Sign shall be erected within three hundred thirty (330) feet of another Off-Site Sign facing the same direction of travel along the same street;

d. Except as permitted by Section 24.04.225, no Off-Site Billboard Sign shall be erected

closer than three hundred (300) feet from a platted and residentially zoned lot on which a primary residential structure can be legally erected or to a residential structure or use. This distance shall be measured from the nearest lot line of such platted and residentially zoned lot or residential structure or use to the closest part of the Off-Site Billboard Sign. This minimum distance may be reduced to one hundred fifty (150) feet when any platted and residentially zoned lot or residential structure or use is fully screened from view of the proposed Off-Site Billboard Sign by a nonresidential building. Such view shall be from the closest minimum building setback line (as established for residentially zoned lots in the Wichita-Sedgwick County Unified Zoning Code) of the residentially zoned lot or residential structure or use;

e. No Off-Site Billboard Sign shall be located on any property in the "LC" Limited Commercial Zoning District that is not a part of at least three hundred (300) linear feet of continuous Commercial or Industrial Zoning; and

f. No Off-Site Billboard Sign shall be located closer than six hundred sixty (660) feet to the established bank lines of the Big Arkansas or the Little Arkansas Rivers, or to any park or recreation area under the jurisdiction of any public body including the Board of Park Commissioners of the City.

Off-Site Billboard Signs may be erected within six hundred sixty (660) feet of the established bank lines of the Big Arkansas or Little Arkansas Rivers or any such park or recreation area when such Off-Site Signs are located in athletic field facilities owned or operated by a public body.

5. **Setback.** Off-Site Signs shall comply with all building setback lines.

6. **Type.** Off-Site Signs may be Ground or Pole or Wall Signs, but shall not be erected upon or over the roof of any one story building, except as provided in subsection (3) of this Section. Each Off-Site Sign may contain only one panel per facing with a message or advertisement; however, this panel or a portion thereof may be a Variable Message Sign. No Off-Site Pole Signs may be supported by more than one pole.
(Ord. No. 46-396 § 2; Ord. No. 50-439, § 38, 4-25-17)

Sec. 24.04.223. Reserved.

Editor's note—Ord. No. 50-439, § 39, adopted April 25, 2017, repealed § 24.04.223, which pertained to specific historic preservation requirements and derived from Ord. No. 47-542 § 5, adopted Aug. 14, 2007.

Sec. 24.04.225. Special review approval for Off-Site Billboard Sign permits.

This section sets out the required special review procedures for new or enlarged Off-Site Billboard Signs.

1. **Authority.**

   (a) An application for a permit for installation of a new or enlarged (size or height) Off-Site Billboard Sign located closer to a residentially zoned lot or use than allowed by Subsection (4)(d) of Section 24.04.222 shall require a public hearing and approval by the MAPC or, if forwarded to the Wichita City Council for final action, shall require approval by the Wichita City Council.

   (b) The Metropolitan Area Planning Commission (MAPC) is designated and granted authority to hear and make recommendations on Off-Site Billboard Signs under this section. In exercising such authority and functions, the MAPC shall operate under this Title, and not under the Unified Zoning Code or any zoning statutes. The MAPC shall use its by-laws and other procedures and rules now existing or hereafter amended in such matters.

2. **Initiation.** An application for a new or enlarged Off-Site Billboard Sign shall be filed upon request of both the Owner(s)

of the subject property on which the Off-Site Sign is to be located and the Owner of the proposed sign.

3. **Application.** A complete application for a new or enlarged Off-Site Billboard Sign shall be submitted to the Planning Director in a form established by the Planning Director, along with a nonrefundable fee that has been established by the Wichita City Council to defray the cost of processing the application. No application shall be processed until the application is complete and the required fee has been paid. Each application for a new or enlarged Off-Site Billboard Sign shall be accompanied by a site plan that, at a minimum, includes the following information:

   a. A detailed graphic presentation of the subject property site, including property parcel dimensions;

   b. The location of any other buildings or structures on the site;

   c. The location, size and type of any other Ground Signs on the site;

   d. The distance of the proposed sign from any buildings, structures or other signs on the site;

   e. A detailed representation of the proposed sign, including Sign Structure and Sign Surface dimensions, total height of the sign and any related appurtenances such as catwalks.

4. **Establishment of Hearing Date—Publication of Notice.**

   a. Promptly upon determining that an application is complete, the Planning Director shall schedule a public hearing before the MAPC and shall notify the applicant of the meeting and hearing date. The initial public hearing before the MAPC shall be scheduled for the next meeting date for which it is practicable to give at least twenty (20) days' notice.

   b. Notice required pursuant to this Section shall be published in the City's official newspaper and shall indicate the time and place of the public hearing and a general description of the application. The subject property shall be designated by legal description or a general description sufficient to identify the property under consideration.

   c. Notice required pursuant to this Section shall be mailed to all owners of record of real property within the area covered by the application and to all owners of record of real property within at least two hundred (200) feet of the property lines of the parcel or lot on which the proposed Billboard Sign is to be located. The written notice required in this Section shall be placed in the mail with the postmark to be not less than twenty (20) days prior to the date of the public hearing.

5. **Report of Planning Director.** The Planning Director shall prepare a staff report that reviews the proposed application for a new or enlarged Off-Site Billboard Sign in light of the general requirements of this Title and that addresses the following additional elements as they may be appropriate for the review of the application:

   a. The zoning, uses and character of the neighborhood;

   b. The suitability of the subject property for the proposed Off-Site Sign;

   c. The conformance of the requested Off-Site Sign to the adopted or recognized comprehensive plan or other plans or policies being utilized by the City;

   d. Opposition or support of neighborhood residents;

   e. A consideration of the recommendations of professional staff.

The applicant shall have the burden of demonstrating that the application meets the applicable review criteria.

The Planning Director shall provide a copy of the report to the MAPC in its agenda packet and shall send a copy of the report to the applicant by first-class mail, pre-paid, at least five (5) days before the scheduled MAPC hearing.

6. **Action by the Planning Commission.** The MAPC, in a public hearing, shall review the proposed new or enlarged Off-Site Billboard Sign for compliance with the requirements outlined in subsection (5) of this section. In the course of such review, the MAPC may approve modifications to the application and/or site plan as a condition of approval for the Off-Site Sign. Based on that review, the MAPC shall act to approve, approve with conditions or modifications, or deny the application for a new or enlarged Off-Site Billboard Sign. This provision specifically contemplates that it may be necessary for the MAPC to attach additional special conditions to a proposed approval in order to ensure that it complies fully with the criteria of this Code. This action by the MAPC shall be the final action on the Off-Site Billboard application except when any one or more of the following exist: (1) the applicant appeals the action of the MAPC; (2) one or more valid protest petitions are filed opposing the action of the MAPC; or (3) an appeal is filed by anyone with standing to appeal, which shall include the applicant, the Planning Director, the Zoning Administrator, or any Owner of land that is within two hundred (200) feet of the application area and property in question.

   When any one or more of these exceptions exist, the MAPC's action shall be in the form of a recommendation that is forwarded to the Wichita City Council for final action. Protest petitions and appeals shall be filed within fourteen (14) days of the conclusion of the MAPC hearing. If the MAPC fails to make a recommendation on an Off-Site Billboard Sign request, or its motion results in a tie vote, the MAPC shall be deemed to have made a recommendation of disapproval.

7. **Action by the Wichita City Council.** If the Off-Site Billboard Sign application is forwarded to the Wichita City Council for one of the reasons listed in subsection (6) of this section, along with the MAPC's recommendation and any District Advisory Board recommendation, the City Council shall consider the application(s) and may, at its discretion, hold a public hearing. The Off-Site Billboard application may be approved, approved with conditions or modifications, or denied by the City Council. In acting on the application, the City Council may:

   a. Adopt the MAPC's recommendation;

   b. Override the MAPC's recommendation by a two-thirds majority vote of the membership of the City Council; or

   c. Return such recommendation to the MAPC with a statement specifying the basis for the City Council's failure to approve or disapprove.

   If the City Council returns the MAPC recommendation, the MAPC, after considering the same, may resubmit its original recommendation giving the reasons therefore or submit a new and amended recommendation. Upon the receipt of such recommendation, the City Council, by a simple majority thereof, may adopt, may revise or amend and adopt such recommendation. If the MAPC fails to deliver its recommendation to the City Council following the MAPC's next regular meeting after receipt of the City Council's report, the City Council shall consider such course of inaction on the part of the MAPC as a resubmission of the original recommendation and proceed accordingly. If the City Council approves the application or the application as modi-

fied or with conditions, the Director shall issue a permit to the applicant consistent with the action of the City Council.

(Ord. No. 46-396 § 3; Ord. No. 50-439, § 40, 4-25-17)

Sec. 24.04.228. Specific historic preservation requirements.

When otherwise permitted by this Title, the following conditions apply for Electronic Message Signs on individual buildings or properties listed on an historic register, or on buildings or properties within a designated historic district:

1. No Electronic Message Signs shall be permitted except on or for theater buildings. Applications for Electronic Message Signs for theaters shall be considered by the City of Wichita Historic Preservation Board;
2. Electronic Message Signs on or for theater buildings shall comprise only a portion of the overall marquee and/or signage design package for the theater.

(Ord. No. 50-439, § 41, 4-25-17)

Sec. 24.04.230. Temporary signs.

No Temporary Sign shall be placed on any property without first obtaining a Temporary Sign permit as required by Section 24.04.050. Such permit shall be subject to the following requirements:

(a) No Temporary Sign shall exceed the size or area allowed by Section 24.04.190 or as permitted in subsection (f) of this Section.

(b) No Temporary Sign shall extend over or into any street, alley or sidewalk or other public Right of Way except for those attached to permanent canopies or marquees. No Temporary Sign suspended from or attached to a canopy or marquee shall extend closer to the sidewalk than seven (7) feet.

(c) All Temporary Signs shall be substantially constructed and adequately weighted or anchored to prevent movement or overturning by the wind.

(d) All Temporary Signs of rigid construction exceeding seventy-two (72) square feet, and all Temporary Signs on private structures over any public Right of Way shall be erected, affixed or placed by a licensed and bonded sign hanger.

(e) A permit for a Temporary Sign shall be subject to all applicable regulations and the sign for which the permit was secured shall be removed within twenty-four (24) hours of the expiration of the permit.

(f) Temporary Signs on Private Structures Over Public Space. Permits for the placing of Temporary Signs, upon privately owned structures, located over or upon public streets, alleys or other public place spaces, may be issued for not to exceed thirty (30) days, subject to the following requirements:

(1) The applicant shall submit a signed statement from the Owner, agent or lessee of the structure, granting permission for the erection of the sign.

(2) The sign shall not be over two hundred (200) square feet in area.

(3) The Owner of the sign shall file with the City Clerk a surety bond or letter of credit approved as to form by the City Attorney, for each sign in the amount of fifteen thousand (15,000) dollars, or any other equivalent security the City Council may approve, to save and hold the City free and harmless from all damages which may be occasioned by the erection and maintenance of such sign.

(4) Where applicable, obtain a use of street permit as required by Section 10.08.300 of the Code of the City of Wichita.

(g) Electrical Portable Signs shall not be connected to any electrical power source except during the hours of the business for which the sign is located is open.

(h) Electrical lines for Portable Signs shall not be permitted to lay on the ground where vehicular traffic is permitted. Use of extension cords for Portable or Temporary Signs is prohibited.

(i) Temporary Signs shall be removed from a property for not less than thirty (30) days at the end of the maximum time period as set forth in this Title before another Temporary Sign can be located on a property.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 42, 4-25-17)

Sec. 24.04.235. Balloon Signs.

Balloon Signs as permitted in the Zoning Districts as set forth in Sections 24.04.195, 24.04.196, 24.04.197 and 24.04.198, shall be permitted with the following limitations:

(a) Balloon Signs shall be limited to one (1) balloon sign per Zoning Lot at any given time.

(b) Balloon Signs shall be limited to a maximum of one hundred sixty (160) square feet in area as measured at the largest cross-Section.

(c) Balloon Signs shall be limited to seven (7) day permits issued no more than four (4) times per calendar year through the MABCD.

(d) Balloon signs shall be limited in height to a maximum of forty-five (45) feet above grade when mounted or tethered on a roof or structure, and to twenty-five (25) feet above grade when mounted on or tethered to the Ground.

(e) Balloon Signs shall be located no closer than one hundred (100) feet to the nearest lot line of any SF-5, SF-10, SF-20, or TF-3 Zoning Districts.

(f) Balloon Signs must be anchored and/or tethered in accordance with the commercial Balloon Sign manufacturer's recommendations.

(g) Balloon Signs must be deflated and properly secured when wind speeds exceed forty (40) miles per hour or the manufacturer's maximum wind speed, whichever is less.

(h) Balloon Signs shall be located no closer than five hundred (500) feet to any hospital helicopter landing pad.

(i) Balloon Signs shall be located in accordance with all applicable Federal Aviation Administration regulations.

(j) Any gas used in Balloon Signs must be noncombustible.

(k) Balloon Signs shall be fire retardant.

(l) Balloons Signs shall be located no closer than the height of the balloon plus ten (10) feet from any electric power transmission line.

(Ord. No. 43-717 § 10; Ord. No. 50-439, § 43, 4-25-17)

Sec. 24.04.240. Reserved.

Editor's note—Ord. No. 50-439, § 44, adopted April 25, 2017, repealed § 24.04.240, which pertained to special displays and derived from Ord. No. 40-963 (part).

Sec. 24.04.250. Variances.

The Board of Zoning Appeals is hereby granted authority to authorize in specific cases a variance from the specific terms of this Title which will not be contrary to the public interest and where, because of special conditions, a literal enforcement of the provisions of this Title will result in unnecessary hardship. Provided that the spirit of this Title shall be observed, public safety and welfare secured, and substantial justice done. Variances under this Title shall be granted under the same procedures and conditions as set forth in subsection (b) of Section 2.12.590.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 45, 4-25-17)

Sec. 24.04.251. Sign code adjustments.

1. **Authority.** The Planning Director, with the concurrence of the Zoning Administrator, shall have the authority to approve applications for Sign Code Adjustments.

2. **Types of Adjustments Allowed.** Sign Code Adjustments shall be limited to the following:

a. Reducing the minimum allowed distance required between On-Site Ground, Monument or Pole Signs by up to one-third;

b. Increasing the maximum allowed height of On-Site Ground, Monument or Pole Signs, or of Building or Wall Signs, by up to twenty-five (25) percent;

c. Increasing the maximum allowed size of individual building or wall signs or of the total allowed Building Sign wall elevation coverage by up to twenty-five (25) percent;

d. Increasing the maximum number of allowed Building or Wall Signs per any elevation by up to one (1) in the NO, GO, NR, OW or IP Zoning Districts, or up to two (2) such signs per any elevation in the LC Zoning District.

e. Reducing the minimum allowed depth of parking, loading or open space area required in the LC Zoning District for Building or Wall Signs on elevations not having Street Frontage;

f. Allowing structurally altered legal Non-Conforming On-Site Pole, Ground or Monument Signs to be structurally altered at their existing base or pole structure location provided that the extent of Non-Conforming Sign height or sign size is reduced;

g. Allowing legal Non-Conforming Off-Site Pole, Ground or Monument Signs to be structurally altered to an extent exceeding fifty (50) percent of the sign's structural value or to an extent that includes repairs or modifications exceeding fifty (50) percent of the of the sign's structure, at their existing base or pole structure location provided the number of main support poles or pylons are reduced to a single support pole or pylon, or the extent of Non-Conforming Sign height or sign size is reduced;

h. Increasing the maximum allowed height of Ground, Monument or Pole Signs for On-Site or Off-Site Signs located within seventy-five (75) feet of a Zoning Lot line that directly abuts the Right of Way of an elevated portion of a highway structure to a height at the top of the sign that does not exceed twenty (20) feet above the height of the top of the highest railing or barrier along the traffic deck or decks within the Right of Way at a point perpendicular the sign.

i. Allowing Variable Message or Electronic Message Signs for Institutions located in any residential Zoning District, or in any "NO", "GO", "NR", "OW" or "IP" Zoning Districts.

j. Allowing Off-Site Signs that do not exceed one hundred (100) square feet in area or twenty-five (25) feet in height, provided that the sign for the business being advertised is located on a Zoning Lot that abuts or is adjacent to the Zoning Lot on which the advertised business is located, and on which the proposed Off-Site Sign would otherwise be allowed by the On-Site Sign regulations set forth in Sections 24.04.193, 24.04.199 or 24.04.221.

k. Increasing the maximum distance that a Temporary Sign may be placed from a subdivision, as set forth in Section 24.04.190.6.i.(1), by up to twenty-five (25) percent.

l. Increasing the maximum night time brightness and/or light intensity of allowed Electronic Message Signs, as set forth in Section 24.04.220(p), up to a maximum of 4,000 Nits.

3. For signs not located within an approved Community Unit Plan (CUP), Planned Unit Development (PUD) or Protective Overlay (PO), or located within a CUP, PUD or PO wherein the CUP, PUD or PO provisions and/or conditions refer only to signs as allowed or permitted by the Sign Code, the applicant requesting a sign adjustment may file a variance request to the Board of Zoning Appeals pursuant to Art. V.G of the Wichita-Sedgwick County Unified Zoning Code if

the adjustment request is denied, or when such adjustment request has been approved with conditions or modifications that are unacceptable to the applicant. The filing fee for any sign adjustment shall be applied toward the filing fee for any variance request.

4. For signs located within an approved Community Unit Plan (CUP), Planned Unit Development (PUD) or Protective Overlay (PO) wherein the CUP, PUD or PO provision and/or conditions set forth specific sign requirements for the CUP, PUD or PO, the applicant requesting a sign adjustment may file an amendment to the CUP, PUD or PO pursuant to Art. V.C or V.E of the Wichita-Sedgwick County Unified Zoning Code (UZC) if the adjustment request is denied or when such adjustment request has been approved with conditions or modifications that are unacceptable to the applicant. The filing fee for any sign adjustment shall be applied toward the filing fee for any amendment request.

5. Appeals of approved sign adjustments by other than the sign adjustment applicant and/or property Owner may be taken to the Board of Zoning Appeals by filing an appeal with the Board of Zoning Appeals' Secretary within the time limit specified by the rules of the Board of Zoning Appeals, and in accordance with Art. V.F of the Wichita-Sedgwick County Unified Zoning Code (UZC).

6. **Sign Code Adjustment criteria.** The Planning Director shall not approve a Sign Code Adjustment if the Planning Director finds that the proposed development:

a. Creates more adverse impacts on existing uses in surrounding areas than those that might reasonably result from development of the site in strict compliance with the adjusted standard;

b. Would not be compatible with existing or permitted uses on abutting sites, in terms of adjusted sign height or size, number of signs, sign bulk and scale, or minimum allowed depth of parking, loading or open space area required;

c. Will be detrimental to the public health, safety or welfare or materially injurious to properties or improvements in the immediate vicinity for reasons specifically articulated by the Planning Director.

(Ord. No. 45-975 § 6; Ord. No. 47-542 § 6, 8-14-07; Ord. No. 50-439, § 46, 4-25-17)

Sec. 24.04.252. Appeals from the Board of Zoning Appeals.

Any person, official or governmental agency dissatisfied with the decision of the Board of Zoning Appeals may bring an action in the District Court of the Eighteenth Judicial District to determine the reasonableness of such decision. Such appeal shall be filed within thirty (30) days of the final decision of the Board of Zoning Appeals.

(Ord. No. 50-439, § 47, 4-25-17)

Sec. 24.04.260. Penalty for violation of Title, rule or order.

(a) Except as otherwise provided, any person violating any of the provisions of this Title or any reasonable rule or order of the Director or Zoning Administrator, or causing, or permitting the same to be done, is guilty of a misdemeanor and shall be punished by a fine of not more than five hundred (500) dollars or by imprisonment of not more than six (6) months or both such fine and imprisonment.

(b) The issuance or granting of a permit shall not be deemed or construed to be a permit for or an approval of any violation of any of the provisions of this Title. No permit presuming to give authority to violate or cancel the provisions of this Title shall be valid, except insofar as the work or use which it authorizes is lawful.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 48, 4-25-17)

Sec. 24.04.270. Amendments.

Any amendments to this Title shall be forwarded to the Wichita-Sedgwick County Metropolitan Area Planning Commission (MAPC) for their review and comment.

(Ord. No. 40-963 (part); Ord. No. 50-439, § 49, 4-25-17)

Sec. 24.04.280. Severability.

If any Section or provision of this Title is for any reason held illegal, invalid, or unconstitutional, such action shall not affect the remaining provisions of this Title which shall remain valid to the extent possible.
(Ord. No. 40-963 (part); Ord. No. 50-439, § 50, 4-25-17)

Title 25

OIL AND GAS WELLS

Ch. 25.04. Oil and Gas Wells

CHAPTER 25.04. OIL AND GAS WELLS

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Sec. 25.04.200. Revocation of permits, licenses or other authorizations.
Sec. 25.04.210. Notices required to be given superintendent of central inspection.
Sec. 25.04.220. Use of abandoned well.
Sec. 25.04.230. Orders to stop work.
Sec. 25.04.240. Same—Appeals.

Sec. 25.04.010. "Well" defined.

A "well" or "wells" for the purposes of this chapter means any well drilled, or to be drilled, or used, for the production of oil, natural gas or the disposal of waste liquids produced therefrom. "Oil" means crude oil or petroleum and shall include all waste oil.
(Ord. No. 37-873 § 1)

Sec. 25.04.015. Drilling prohibited except in oil and gas well district.

Well drilling shall be prohibited in all areas within the corporate limits of the city except those areas defined by ordinance and shown on the Oil and Gas Well District Map. It is unlawful to drill a well in any area not permitted.
(Ord. No. 37-873 § 2)

Sec. 25.04.020. Oil and gas well district map.

The metropolitan area planning department shall cause to be prepared a map describing the areas in which the drilling and operation of wells may be lawful. Such map is to be marked "Oil and Gas Well District Map" and shall be kept and maintained by the metropolitan area planning department as provided in Section 28.04.1813 and shall be available for inspection and examination by members of the public at all reasonable times.
(Ord. No. 37-873 § 3)

Sec. 25.04.030. Special permit and drilling permit—Required.

It is unlawful for any person to drill or commence operations for the drilling of a well, at any place where otherwise lawful within the corporate limits of the city without first having obtained a special permit from the board of commissioners of the city and a drilling permit as hereinafter provided. Application for the special permit shall be made as provided in Section 28.04.181-3.
(Ord. No. 37-873 § 4)

Sec. 25.04.040. Drilling permit—Filing application with superintendent of central inspection; deposit.

After approval of the special permit by the board of commissioners, the applicant for a permit, as provided for in the preceding section, shall file with the superintendent of central inspection an application for a drilling permit in writing conforming to the further provisions of this chapter, and shall at such time deposit with the superintendent of central inspection a fee of five hundred dollars which shall, upon the granting of the drilling permit, be paid into the city treasury to the credit of the general operating fund.
(Ord. No. 37-873 § 5)

Sec. 25.04.050. Same—Issuance; conditions generally; completion.

The superintendent of central inspection shall, upon determination that the application for a well drilling permit conforms to the conditions of this chapter, authorize the issuance of a permit granting authority to drill the proposed well. Such drilling permit shall be conditioned to conform to the special permit as approved by the board of commissioners; provided, that upon the completion of the well, the permittee shall file a completion report with the central inspection division showing the drilled depth of the well, the depth of the surface casing and the producing horizon being developed. Not more than one well shall be completed in the same producing horizon in a drilling unit.
(Ord. No. 37-873 § 6)

Sec. 25.04.060. Same—Information and evidence to be submitted as condition for granting permit.

The applicant for any permit to drill a well in the city shall submit the following information and evidence as a condition for the granting of a drilling permit hereunder:

1. Evidence that all owners of record of mineral interests or oil and gas leasehold interests in the area attributable or which might be attributed by unitization or declaration to drill-unit, where it is proposed to drill a well, have had an opportunity to join in the execution of the oil and gas lease of the applicant covering the land excluded in such unit or attributed areas, and that such owners of mineral interests or oil and gas leasehold interests have been notified in writing that the applicants propose to seek a permit for the drilling of a well on the unit described in such notice. In the event that such owners cannot with reasonable diligence be located, then affidavits setting forth the facts thereof may be substituted for the required proof of written notice;
2. Statements that the applicant has a valid oil and gas lease executed by persons owning at least fifty-one percent of the mineral interest included in the unit or attributed thereto, exclusive of streets and alleys, subject, however, to the provisions of the zoning ordinances relating to drilling of wells;
3. Statements that the lease provide or is accompanied by an agreement in writing providing substantially as follows: that a royalty of at least one-eighth of the gross production of the well shall be distributed to the respective owners of the minerals rights within the unit pro rata;
4. Statements that any lease with any governmental subdivision of the state, quasi-municipal corporation, public agency, or other entity as defined in K.S.A. 55-211a, or any amendments thereto, contains a provision for spacing of producing wells in accordance with rules and regulations of the Kansas Corporation Commission;
5. Agreements or statements showing reasonable and adequate plans for the handling and disposal, in accordance with all applicable state laws and city ordinances, of all drilling fluids, basic sediment, brines and other deleterious substances and wastes that may be produced in connection with the drilling and operation of the proposed well;
6. Plans and drawings showing the facilities for the handling or storing of production of the proposed well;
7. Statements of agreement that in the event the well is either nonproductive or abandoned, within sixty days after the determination thereof, that all tools, equipment, and machinery used in connection with the drilling of the well shall be removed, and that the premises shall be fully restored to their original condition as soon as practicable and in no case more than sixty days after such determination;
8. Statements of agreement that if such well is productive, only the tools, machinery, structures and equipment necessary for the operation thereof shall be maintained at such well and that the premises sur-

rounding the same shall be restored to their original condition as nearly as practicable and within sixty days after completion of the well;

9. Statements of agreement that all drilling wastes shall be removed from storage facilities within thirty days of completion of the well.

All of the preceding information and evidence shall be in a form satisfactory to the superintendent of central inspection and shall be in addition to information required for a special permit by Section 28.04.181-3.
(Ord. No. 37-873 § 7)

Sec. 25.04.070. Permits—Duration.

The permits authorized by this chapter shall be valid only in the event and for so long as the permittee shall faithfully comply with the conditions of this chapter, and of the permits authorized in accordance therewith, and only so long as there is production from or other lawful use made of the well.
(Ord. No. 37-873 § 8)

Sec. 25.04.080. Same—Nonassignable.

No permit, authorized by this chapter, shall be assignable or assigned without the approval of the board of commissioners.
(Ord. No. 37-873 § 9)

Sec. 25.04.090. Authorization to lay pipelines in streets, etc., required.

If any applicant or any other party shall desire to lay pipelines in the streets, public grounds, or alleys in the city for transmission of oil or gas or any waste fluid from any well or drilling location within the boundaries of the city, authorization therefor, as provided by law, shall be obtained from the board of commissioners and as a prerequisite to such authorization. The person seeking same shall provide detailed plans and specifications for constructing and maintaining such pipelines and for restoration, so far as practicable, of streets, grounds and alleys, wherever damaged by such construction, to as good condition as existed immediately prior to the damage, which plans and specifications shall be approved by the director of operations and maintenance prior to granting such authorization.
(Ord. No. 37-873 § 10)

Sec. 25.04.100. Surety bonds required.

(a) The applicant shall at the time of filing an application for a drilling permit, submit for approval a corporate surety bond executed by some bonding or surety company authorized to do business in the state, or a personal surety bond, in the amount of one hundred thousand dollars payable to the city, conditioned for the full and faithful compliance with all the terms and provisions of this chapter and the conditions of the permit authorized thereby, and to save and hold the city free and harmless from all suits or damages sustained by the city in the event that any claim for damage or injury is maintained against the city as a result of the activities of the applicant in drilling or operating a well. A copy or certificate of the bond shall be deposited with the city clerk. All such bonds shall be renewed immediately prior to their termination and shall remain in force and be binding upon the principal and surety unless canceled by giving thirty days' notice in writing to the city clerk, and the surety shall not be liable for any loss after the expiration of thirty days from the date specified in the notice, except for loss occurring while the bond is in full force and effect. Upon the expiration of any such bond, a new bond shall be filed by the principal in such amount as in the case of an original bond.

(b) In the event that any permittee shall have furnished such bond as required for a permit and there shall be no unsatisfied claim upon such bond at the time of the application for a subsequent permit to drill a well, no further bond shall be required for any subsequent permit, but in such event there shall be endorsed on the bond the identification of the subsequent permit for which the bond is made applicable; provided, that if there shall be an unsatisfied claim against the existing bond at the time of the application for a subsequent permit, the board of commissioners, at its discretion, may require an additional bond in the aforesaid amount or any lesser amount as may be determined.

(c) The amount of the surety bond heretofore may be reduced to ten thousand dollars from and after the completion of any well upon filing a new or amended bond conditioned and approved as in the case of the original bond, except for the amount. Such bond shall be renewed and filed during the continued operation of the well and for a period of six months thereafter or until the premises have been cleared of obstructions and restored to their original condition as required by this chapter.
(Ord. No. 37-873 § 11)

Sec. 25.04.110. Indemnity or casualty insurance required.

The applicant for a drilling permit shall submit a policy of indemnity or casualty insurance, issued by some responsible insurance company authorized to do business in the state, and naming the city as coinsured, insuring against injuries, loss or damage for which the applicant may be liable as the result of the drilling, operation or maintenance of any well or any structure or machinery appurtenant thereto. Such insurance coverage shall be in the following amounts: five hundred thousand dollars for injury to any one person in any occurrence; five hundred thousand dollars for injury to more than one person in any occurrence; one hundred thousand dollars for loss or damage to property in any one occurrence; and additional excess coverage in the amount of two million dollars.

A copy or certificate of the policy shall be deposited with the city clerk, together with a certificate by the insurance company that such insurance is in force and shall not be canceled without thirty days' written notice thereof to the city. Such insurance shall be renewed immediately prior to the end of the term thereof and shall be maintained during the entire period of drilling or operation of a well.
(Ord. No. 37-873 § 12)

Sec. 25.04.120. Drilling units—Establishment; production unit.

The board of commissioners shall, from time to time as drilling requirements develop, in connection with the oil and gas well drilling map, determine and establish units for the drilling of wells. Where practicable, in so doing, the board of commissioners shall establish units of forty contiguous acres when allowed by state law and regulation; and provided, that the board of commissioners may waive this requirement as to drilling units of wells permitted or commenced prior to the effective date of this chapter; and provided further, that intervening rights of way, streets and alleys within such units and to the centerline of the same on the perimeter thereof shall be included in determining such acreage. The territory in such units shall be attributed to the well, for the drilling of which a permit may be granted. Each unit shall be appropriately numbered and the number thereof entered on any drilling permit granted for the unit.

The production unit shall be coterminous with the drilling unit.
(Ord. No. 37-873 § 13)

Sec. 25.04.130. Same—Location of wells.

Each well commenced or drilled in the corporate limits shall, as nearly as practicable, be drilled in the center of a drilling unit, heretofore provided and established, but the board of commissioners at the time of granting a special permit may authorize such variation therefrom as may be deemed necessary depending upon the location of streets, alleys, residences and other buildings relative to the proposed drill site, geographical and topographical factors, and the size and shape of the unit and available attributable areas; provided, however, that the well location shall otherwise be in accordance with the provisions of Section 28.04.181-3. The approved location of the well shall be described in the permit.
(Ord. No. 37-873 § 14)

Sec. 25.04.140. Applicability of state laws and regulations.

Unless otherwise set forth specifically by city ordinance, all wells shall be spaced, located, drilled, operated, and maintained in accordance with applicable state laws and regulations.
(Ord. No. 37-873 § 15)

Sec. 25.04.150. Specific drilling and production regulations.

The issuance and continued validity of a permit and the authorization for the drilling or operation of a well, authorized thereby, shall be conditioned upon compliance by the permittee with the following rules and regulations and any departure therefrom shall constitute a violation of this chapter:

(1) The surface pipe must be run and set at least ten feet into the Wellington Shale and in no event less than three hundred feet into the ground.

(2) The surface pipe must be solidly cemented from top to bottom on the outside of the pipe.

(3) Adequate precautions shall be taken and necessary well head safety devices be used at all times during the drilling and completion of the well; and all drill stem tests shall be reverse circulated to confine fluids to pits in accordance with the most acceptable practices.

(4) Locations and equipment shall at all times during drilling operations be fenced by either a temporary portable type snow fencing at least four feet high or other fencing equally acceptable.

(5) Upon completion of a well the pumping unit, tank battery and other permanent production equipment shall be enclosed in accordance with the special permit approved by the board of commissioners.

(6) All drilling fluids shall be contained in portable tanks at the drilling site.

(7) All waters produced from any well shall be disposed of underground in accordance with regulations of the Kansas Corporation Commission or the state board of health.

(8) At no time shall fluids of any kind be run into or stored in earthen pits. No saltwater or other waste fluids shall be disposed of in waterways or the sanitary sewer system unless approved by the director of health and the inspector of water and water pollution control.

(9) All pumping units shall be set on a steel or concrete base and the surface of the ground around the well shall be graded to surrounding ground.

(10) All pumping units must be electrically driven and equipped with belt safety guards.

(11) All oil separator, petroleum and brine storage tanks shall be covered. No gas, odors, fumes from any storage tank, oil separator or casing head shall be vented into the open air without being filtered through a pollution control device containing activated carbon. Such devices shall be maintained on a scheduled basis to maintain their effectiveness. Burning of gases or fumes by use of flares from wells or storage facilities is not allowable without a specific permit from the environmental health director.

(12) All storage tanks shall be located within a diked area not less than two feet in height covering an area sufficient to contain and hold one and one-half times the entire liquid capacity of all tanks therein. Rainwater or other fluids shall not be allowed to accumulate within the dikes and shall be removed periodically. Unless tested and approved for disposal by sanitary sewer, the fluids shall be considered as contaminated and disposed of in accordance with regulations of the Kansas Corporation Commission or the state board of health.

(13) All production equipment, structures and premises shall at all times be maintained and kept in a clean, sanitary and tidy condition; and all structures shall be of incombustible materials.

(14) Storage tanks shall be equipped with automatic shut-off devices linked to the fluid level in the tank to prevent overfilling and spillage. In addition, a single overflow tank shall be provided to contain the overflow from the oil or brine storage

tanks in the event that the shutoff devices fail. The capacity of the overflow tank shall be sufficient to hold twenty-four hours' production from the well or wells.

(15) The owners and operators of drilling, pumping or storage equipment shall be responsible for the immediate clean-up and disposal of any spillage of oil or brine at the well site.

(16) All wells shall be equipped with a blowout prevention device of the double ram type.

(Ord. No. 37-873 § 16)

Sec. 25.04.160. Additional requirements by board of commissioners.

At the time of granting any permit, under the provisions of this chapter, the board of commissioners may make requirements, in addition to those contained therein, as may be reasonably necessary for protection of persons and property in the city.

(Ord. No. 37-873 § 17)

Sec. 25.04.170. Licenses.

(a) A license fee is levied upon the owner or operator of every completed and operated well in the corporate limits in the following amounts:

(1) Producing oil or gas wells . . $150.00

(2) Salt water disposal wells . . . 75.00.

Such fees shall be paid to the city license collector within not more than twenty days after completion of any well. The license collector shall thereupon issue a license which shall be valid for a period of twelve calendar months from and after the completion date of such well. The license shall not be transferable nor prorated for any unused period. The fees so paid shall be deposited in the city treasury to the credit of the general operating fund and budgeted for the payment of the costs of administration of this chapter.

(b) The license herein required shall be renewed annually and the fee therefor paid at twelve month intervals from the date of the first license and until the operation of any well so licensed shall be discontinued, the well abandoned, and the premises cleared as provided in this chapter.

(Ord. No. 37-873 § 18)

Sec. 25.04.180. Well inspection; duties.

It shall be the duty of the central inspection division to inspect wells and drilling sites and to otherwise generally administer and enforce, in conjunction with other concerned departments of the city, the provisions of this chapter on drilling and operation of wells in the city.

(Ord. No. 37-873 § 19)

Sec. 25.04.190. Preparation and supplying applications, permits, notices, etc.

The central inspection division may prepare and supply such applications, permits, notices, licenses and other forms as may be required by this chapter and upon request supply copies of this chapter to applicants for any permit or license.

(Ord. No. 37-873 § 20)

Sec. 25.04.200. Revocation of permits, licenses or other authorizations.

Upon any substantial violation of the conditions of any permit, license, authorization or of any provisions of this chapter, the board of commissioners may, upon a hearing after five days' written notice by mail or personal service, to the permittee or licensee, or if the address of the permittee or licensee is unknown and the permittee or licensee cannot be found in the city, after the expiration of five days from the date of publication of notice of any such hearing in a newspaper authorized to publish legal notices in the city, revoke such permit, license or authorization; provided, however, that if in the judgment of the board of commissioners restitution is made for any damage occasioned by such violation together with adequate provisions to prevent any further violations by such permittee or licensee, the board of commissioners may waive revocation of any

permit or license, but the same shall not affect any penalty otherwise provided for the violation of this chapter.
(Ord. No. 37-873 § 21)

Sec. 25.04.210. Notices required to be given superintendent of central inspection.

It shall be the duty of every permittee or licensee, as the case may be, to give the superintendent of central inspection notice of the commencement of any drilling of a well, the setting and cementing of the surface casing of any well and of the beginning of other stages of the drilling or operation or abandonment of any well, as may be required by regulations to be approved by the superintendent of central inspection. The date of completion or abandonment of any well and pertinent information shall be entered of record.
(Ord. No. 37-873 § 22)

Sec. 25.04.220. Use of abandoned well.

All abandoned wells which shall not be used and equipped for disposal purposes, shall be filled and plugged in accordance with applicable rules of the agencies of the state having jurisdiction thereof.
(Ord. No. 37-873 § 23)

Sec. 25.04.230. Orders to stop work.

The inspectors of the central inspection division shall be authorized to order any work stopped or corrected which shall not conform to the conditions required by this chapter. A copy of such order shall be filed with the well permit and preserved as a permanent record open to public inspection.
(Ord. No. 37-873 § 24)

Sec. 25.04.240. Same—Appeals.

Any person aggrieved by any inspection order to stop or correct any work may forthwith appeal to the superintendent of central inspection for a hearing and determination of the matter complained of; and may, within ten days from the decision of the superintendent, file an appeal in writing with the city clerk to be submitted to the board of commissioners at its next meeting for a hearing and a determination thereof. The decision of the board of commissioners shall be final and conclusive.
(Ord. No. 37-873 § 25)

Title 26

TRAILERS AND TRAILER CAMPS*

Ch. 26.04. Mobile Homes and Mobile Home Park Regulations

*__Note—__Prior ordinance history; Ord. No. 30-346; Ord. No. 27-552.

CHAPTER 26.04. MOBILE HOMES AND MOBILE HOME PARK REGULATIONS

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Sec. 26.04.010. Definitions.

As used in this chapter:

Camp means a recreational vehicle campground.

Health officer means the Director of Environmental Services or his or her authorized representative.

House trailer.—See 'Recreational vehicle.'

Inspection officer means the superintendent of central inspection, or his or her authorized representative.

Licensed Manufactured Home Installer means a contractor who has been licensed by the State of Kansas pursuant to the Manufactured Housing Act, K.S.A. 58-4202, et seq. and amendments thereto.

Manufactured home means a structure which is subject to the National Manufactured Housing Construction and Safety Standards Act of 1974, 42 U.S.C. §4501, et seq., when erected on site, is 320 or more square feet; and which is built on a permanent chassis and designed to be used as a dwelling, with or without permanent foundation, when connected to the required utilities, and includes the plumbing, heating, air conditioning and electrical systems contained therein.

Manufactured home subdivision means a subdivision within the 'MH' manufactured housing zoning district which is platted for development as individual home sites for manufactured homes, modular homes, or residential-design manufactured homes and site-built single-family dwellings, to be placed on permanent foundations as required for permanent structures.

Mobile home means a movable detached single-family dwelling unit that was manufactured prior to 1976 and is not subject to the National Manufactured Home Construction and Safety Standards Act of 1974, 42 U.S.C. §5401,et seq. and amendments thereto, or HUD code. Such units shall provide all of the accommodations necessary to be a dwelling unit and shall be connected to the utilities in conformance with all of the applicable regulations. The term 'manufactured home' or 'mobile home' does not include a recreational vehicle.

Manufactured home park means a parcel of land, which has been planned and improved in some manner, and used or intended to be used

by one or more occupied mobile homes or manufactured homes not placed on permanent foundations. The term manufactured home park does not include sales lots on which unoccupied mobile or manufactured homes, whether new or used, are parked for the purposes of storage, inspection or sale.

Manufactured home space means a plot of ground within a manufactured home park or non conforming mobile home park which is to accommodate one manufactured home or mobile home and which provides service facilities for water, sewage and electricity.

Modular home means a structure consisting of one or more components manufactured offsite in conformance to the standards of the building code of the city and related technical codes and moved to the construction site for final assembly as a dwelling unit, and placed on permanent foundations as required for permanent structures.

Non-conforming use means the use of any land, building or structure that does not comply with the use regulations of the zoning district in which such use is located, but that complied with the use regulations in effect at the time the use was established.

Occupy, occupancy, or *occupied* means the use of any mobile home, manufactured home or recreational vehicle by any person for living, sleeping, cooking or eating purposes for any period of four or more consecutive days.

Operator means the person or business that has charge, care or control of a licensed or unlicensed manufactured home park, nonconforming manufactured or mobile home park, or camp or portion thereof, and/or the person or business that holds the license for a manufactured home park, a nonconforming mobile home park, or camp.

Park means manufactured home or nonconforming mobile home park.

Person means any individual, firm, trust, partnership, association or corporation.

Recreational vehicle means a unit designed as temporary living quarters for recreational, camping or travel use; units may have their own power, or be designed to be drawn or mounted on an automotive vehicle. Recreational vehicle shall include motor homes, travel trailers, truck campers, camping trailers, converted buses, house boats or other similar units as determined by the superintendent of central inspection.

Recreational vehicle campground means a lot, tract or parcel of land designed for occupancy by recreational vehicles for temporary or transient living purposes, including the use of camping spaces for tents.

Residential-design manufactured home means a manufactured home on a permanent foundation which has minimum dimensions of twenty-two body feet in width, a pitched roof, and siding and roofing materials which are customarily used on site-built homes, and complies with the architectural and aesthetic standards specified in Section IV-D of the Unified Zoning Code, Title 28 of the Code of the city of Wichita. A residential-design manufactured home shall be considered a single-family dwelling.

Roadway means any private street located within a park or camp and providing for the general vehicular and pedestrian circulation within the park or camp.

Self-contained recreational vehicle means a recreational vehicle which was originally designed and manufactured for utilization as a recreational vehicle and which is less than fifteen years old. A self-contained recreational vehicle shall be equipped with a fully functioning toilet with a self-contained waste collection tank; a shower or bathtub; one or more sinks, each with connections to an on-board potable water supply with both hot and cold running water and a water refuse tank and/or ground connections for gray water and waste water disposal installed in accordance with manufacturer's instructions and as per city approved design standard.

Service building means a building housing all of the following: separate toilet facilities for men and women, laundry facilities and separate bath or shower accommodations. Such

building may also include other associated uses such as an office and recreational facilities for the camp or park.

Trailer camp.—See 'Recreational vehicle campground.'

(Ord. No. 43-648 § 1; Ord. No. 47-050, § 1, 6-2-06; Ord. No. 48-417, § 1, 9-15-09)

Sec. 26.04.020. Location of manufactured homes, mobile homes and recreational vehicles.

It is unlawful for any person to occupy a manufactured home or mobile home in the city unless such manufactured home or mobile home is located in a manufactured home park or a nonconforming mobile home park in conformance with all regulations for a manufactured home park or a nonconforming mobile home park; and it is also unlawful for any person to occupy a recreational vehicle in the city unless such recreational vehicle is located in a camp.

Exceptions:

(a) A manufactured home may be occupied at a construction site by a night watchman or construction project workmen when approved by the superintendent of central inspection when deemed necessary for security and/or construction purposes. Such permission may be canceled by the superintendent of central inspection upon three days written notice, when in his opinion the intent of this section is being violated.

(b) A manufactured home may be occupied other than within a park for a period not to exceed thirty days when a permit is secured in accordance with Section 26.04.060(c).

(c) A recreational vehicle may be occupied other than within a camp for a period not to exceed thirty days when a permit is secured in accordance with Section 26.04.060(c).

(d) A recreational vehicle may occupy a manufactured home space or mobile home space in a park for a period not to exceed thirty days, provided a service building as required for a camp is within two hundred feet of the space so occupied. Under no circumstances shall the number of manufactured home spaces and/or mobile home spaces within a park be occupied by recreational vehicles or self-contained recreational vehicles in excess of five percent of the total number of manufactured home spaces and/or mobile home spaces provided, or a total of two, whichever is larger.

(e) A self-contained recreational vehicle may occupy a manufactured home space or mobile home space in a park for a period not to exceed one hundred eighty days, without providing a service building as required for a camp, provided that an approved sewage system connection is available for each self-contained recreational vehicle. If no approved sewage system connection is available for each self-contained recreational vehicle, then an approved gray water and waste water dump station which connects to an approved sewage system shall be provided. Under no circumstances shall the number of manufactured home spaces and/or mobile home spaces within a park be occupied by self-contained recreational vehicles or recreational vehicles in excess of five percent of the total number of manufactured home spaces and/or mobile home spaces provided, or a total of two, whichever is larger.

(f) A manufactured home may be occupied on a lot in a manufactured home subdivision provided it is placed on a permanent foundation and a building permit is obtained for construction and conversion to a permanent structure.

(g) A manufactured home may be occupied as a one-family dwelling as a residence for a watchman, caretaker or guard for an industrial use in the "LI" or "GI" industrial zoning districts, provided such home is placed on a permanent foundation.

(Ord. No. 43-648 § 2; Ord. No. 47-050, § 2, 6-2-06; Ord. No. 48-417, § 1, 9-15-09)

Sec. 26.04.025. Installation or relocation of mobile homes prohibited.

Mobile homes, as defined in these regulations, may not be moved into, relocated or installed within the City of Wichita.
(Ord. No. 43-648 § 3)

Sec. 26.04.030. Park license.

All persons operating parks shall obtain a park license, upon the expiration of their existing license, with such new license being issued only after review of the application pursuant to 26.04.035 and 26.04.070 and payment of the required fee. All persons developing new parks shall obtain a park license before occupancy of such park, with such license being issued only after review of the application pursuant to 26.04.035 and 26.04.080 and payment of the required fee. Said park licenses for both existing and new parks shall be renewed annually, twelve months from the date of the previous license, after approval by the inspection officer and health officer and after the payment of the required fee. It shall be unlawful for any person or operator to operate a park without a current park license.
(Ord. No. 30-782 § 3; Ord. No. 47-050, § 3, 6-2-06)

Sec. 26.04.035. License—Refusal to issue or renew.

The Superintendent of Central Inspection shall refuse to approve issuance or renewal of a manufactured home park or camp license for one or more of the following reasons:

(1) The making of any false statement as to any material fact in an application for a license or a license renewal;

(2) Violation by the licensee, applicant, operator or any employee of the licensee or applicant of a provision of this chapter;

(3) If the applicant, or any partner, spouse or corporate officer of the applicant has had a manufactured home park license issued under this chapter and the same has been revoked within 18 months prior to the application."

(Ord. No. 47-050, § 4, 6-2-06)

Sec. 26.04.036. Service of notice of violations.

Whenever the superintendent of central inspection determines that there has been a violation of any provision of this chapter or of any use or regulation adopted pursuant thereto, he shall give notice of such alleged violation to the person or persons responsible therefore as hereinafter provided. Such notice shall:

1. Be in writing;
2. Particularize the violations alleged to exist or to have been committed;
3. Provide a reasonable time for the correction of the violation particularized;
4. Be addressed to and served upon the licensee of the property or the operator of the park, provided that such notice shall be deemed to be properly served upon such owner or operator if a copy thereof is served upon him personally or if a copy thereof is sent by certified mail to his last known address. Such notice shall contain an outline of remedial action which if taken, will effect correction of the particularized alleged violations.

The licensee or operator shall be given a period of not less than thirty (30) days to remedy any alleged violation, prior to a criminal complaint being filed against the licensee or operator.
(Ord. No. 47-050, § 5, 6-2-06)

Sec. 26.04.038. Appeal from refusal to issue or renew.

If the Superintendent of Central Inspection refuses to issue or renew a license under this chapter, such action is final unless the applicant or licensee, within ten business days after the date of the refusal to renew a license, files a written appeal with the city council setting forth specific grounds for the appeal. While the appeal is pending before the city council, the licensee shall be allowed to operate any existing manufactured home park. The city council shall, within thirty days, grant a hearing to consider the action and may sustain, reverse or modify the action appealed.
(Ord. No. 47-050, § 6, 6-2-06)

Sec. 26.04.040. Camp license.

All persons operating camps shall obtain a camp license, upon the expiration of their existing park license, with such new license being issued only after approval by the inspection officer and the health officer and only after payment of the required fee. All persons developing new camps shall obtain a camp license before occupancy of such camp, with such license being issued only after compliance with, and in accordance to, the same procedure as described in Section 26.04.030 for issuance of a park license involving approval by appropriate officers, annual renewal and payment of the required fee. No person shall operate a camp without an approved current license.
(Ord. No. 30-782 § 4; Ord. No. 47-050, § 7, 6-2-06)

Sec. 26.04.041. Permits required for installation of manufactured homes.

A manufactured home building permit shall be obtained from the office of central inspection for every manufactured home which is installed or relocated within the city of Wichita. Manufactured home building permits may only be obtained by a licensed manufactured home installer or by the owner of the manufactured home. Permits and inspections for any building, electrical, plumbing, sewer or mechanical construction work must be obtained as required by the city of Wichita building, electrical, plumbing, sewer and mechanical codes (Titles 18, 19, 21, 16 and 22 of the Code of the city of Wichita).
(Ord. No. 43-648 § 4; Ord. No. 47-050, § 8, 6-2-06)

Sec. 26.04.042. Reserved.

Editor's note—Ord. No. 47-050, § 9, adopted 6-2-06, repealed § 26.04.042 in its entirety. Formerly said section pertained to license required and derived from Ord. No. 43-648 § 5.

Sec. 26.04.043. Reserved.

Editor's note—Ord. No. 47-050, § 10, adopted 6-2-06, repealed § 26.04.043 in its entirety. Formerly said section pertained to licensing authority and derived from Ord. No. 43-648 § 6.

Sec. 26.04.050. Permits for individual manufactured homes and recreational vehicles located other than within a park or camp.

Prior to occupying a manufactured home or a recreational vehicle located other than within a park or camp, a permit shall be obtained as permitted by Sections 26.04.020(b) and 26.04.020(c) with such permit being issued only after approval of the required application by the inspection officer and after payment of the required fee, and after obtaining permits as required by Section 26.04.041.

Any person desirous of locating a manufactured home or recreational vehicle in accordance with Sections 26.04.020(b) and 26.04.020(c) shall make an application to the inspection officer for a temporary permit. Such application shall be in writing, signed by the applicant and shall include the following: the name, address and telephone number of the applicant; the location and legal description of property where the mobile home or recreational vehicle is requested to be located; and shall provide all other applicable information as follows:

(a) Those applications requested in accordance with Sections 26.04.020(b) and 26.04.020(c) shall give the reason such application is being applied for, the number of days the manufactured home or recreational vehicle is intended to be parked which in no event shall exceed thirty, the application area, location of existing buildings, and the location of where the manufactured home or recreational vehicle will be parked;

(b) The connection of the manufactured home or recreational vehicle to any utility shall be in accordance with all applicable regulations of this Code.

(Ord. No. 43-648 § 7)

Sec. 26.04.060. License and permit fees.

(a) The annual fees for any park shall be as follows:

One manufactured home space . .	$60.00
Two manufactured home spaces .	90.00
Three to fifteen manufactured home spaces	100.00
Sixteen to twenty-five manufactured home spaces	120.00
Twenty-six to fifty manufactured home spaces	160.00
Fifty-one to seventy-five manufactured home spaces	220.00
Seventy-six to one hundred fifty manufactured home spaces	420.00
Over one hundred fifty manufactured home spaces	420.00

Plus twenty dollars for each ten manufactured home spaces, or major fraction thereof, over one hundred fifty.

(b) The annual fees for a camp shall be as follows:

Two recreational vehicle spaces . .	$90.00
Three to fifteen recreational vehicle spaces	100.00
Sixteen to twenty-five recreational vehicle spaces	120.00
Over twenty-five recreational vehicle spaces	120.00

Plus twenty dollars for each ten recreational vehicle spaces, or major fraction thereof, over twenty-five.

(c) A temporary permit may be issued for a mobile home or house trailer to be occupied other than within a park or camp, permitted in accordance with Section 26.04.020(b) and 26.04.020(c) for a period not to exceed thirty days, upon the

payment of a fee of five dollars. There shall not be more than two such permits issued for the placement of a mobile home or house trailer in accordance with Section 26.04.020(b) and 26.04.020(c) on the same property in any twelve-month period. (Ord. No. 39-250 § 12; Ord. No. 47-050, § 11, 6-2-06)

Sec. 26.04.070. Existing parks.

All persons operating existing parks shall obtain the appropriate license as required by Section 26.04.030 or 26.04.040 upon the expiration of the current park license. The inspection officer shall determine the appropriate classification for each park based on the records that have been filed with the various departments of the city in the applications for the existing license. Such license applications shall include: the name, address and telephone number of the applicant; the location and legal description of the park or camp; including a plot plan showing the park or camp dimensions; number and location of manufactured home or house-trailer spaces.

All persons operating parks existing on September 20, 1969, that have been developed after March 3, 1964, in accordance with all the standards of Ordinance No. 27-552, shall be permitted to be licensed annually as nonconforming, providing such parks are maintained in compliance with all the provisions of said ordinance. Failure to license any such park for a period of 24 months shall constitute abandonment of the nonconforming use.

In addition to complying with the applicable provisions of Ordinance no. 27-552 as stated above, all existing parks shall comply with Sections 26.04.200 and 26.04.210. Only those existing parks that comply with all the requirements for new manufactured home parks will be eligible for the "MH" manufactured housing district under the Unified Zoning Code, Title 28 of the Code of the City of Wichita.

No addition shall be made to any existing park after January 1, 1970, except as permitted by Section 26.04.080 for a new park.
(Ord. No. 43-648 § 8; Ord. No. 47-050, § 12, 6-2-06)

Sec. 26.04.080. Applications for license for new parks and camps.

All persons developing new parks and camps after September 20, 1969, shall make an application to the inspection officer for the appropriate park or camp license. Applications for manufactured home parks may be made only after a development plan has been approved by the director of the Wichita-Sedgwick County metropolitan area planning department or his authorized representative in accordance with the Unified Zoning Code, Title 28 of the Code of the City of Wichita. When platting is required, the development plan shall be submitted at the preliminary platting stage and when approved shall constitute approval by the director of the Wichita-Sedgwick County metropolitan area planning department. When platting is not required, a sketch plan showing the relationship of the manufactured home spaces to the roadways, parking, open space and other information affecting the overall environment of the park may be submitted at any time for approval by the director of the Wichita-Sedgwick County metropolitan area planning department.

The application to the inspection officer shall be in triplicate, in writing, signed by the applicant and shall include the following: the name, address and telephone number of the applicant; the location and legal description of the park or camp; at least three complete sets of plans showing compliance with all applicable provisions of this chapter, including a plot plan drawn to scale, at not less than one inch equal to one hundred feet, showing the park or camp dimensions; number and location of manufactured home or house-trailer spaces; location and width of roadways, sidewalks, off-street parking and easements; location, size and specifications of buildings, sewers, water lines and gas lines; the location and specifications of any sewage disposal system and water supply system; the existing topography and a drainage grading plan. The submitted plans may be approved by the inspection officer for construction only after they have been reviewed and approved by the director of the Wichita-Sedgwick County metropolitan area planning department and the health officer. Approval and issuance of a park license for such new parks, and

of a camp license for such new camps, shall not be made until construction in accordance with the approved plans has been completed.

An application for any addition to an existing park shall be processed as an application for a new park. Only those existing parks determined to be nonconforming parks as set forth in Section 26.04.070(b) or existing parks complying with this chapter may be expanded. Such application, in addition to the information required above, shall designate the portion of the park that is nonconforming or nonstandard. The expansion of any park shall conform to this chapter and under no circumstances shall the total park area be less than the area required for a new park.
(Ord. No. 43-648 § 9; Ord. No. 47-050, § 13, 6-2-06)

Sec. 26.04.100. Application for temporary permit for placement of individual manufactured home or recreational vehicle.

Any person desirous of locating a manufactured home or recreational vehicle in accordance with Sections 26.04.020(b) and 26.04.020(c) shall make an application to the inspection officer for a temporary permit. Such application shall be in writing, signed by the applicant and shall include the following: the name, address and telephone number of the applicant; the location and legal description of property where the manufactured home or recreational vehicle is requested to be located; and shall be provided all other applicable information as follows:

(a) Those applications requested in accordance with Sections 26.04.020(b) and 26.04.020(c) shall give the reason such application is being applied for, and shall give the number of days the manufactured home or recreational vehicle is intended to be parked which in no event shall exceed thirty. The application shall be accompanied by a plot plan drawn to scale showing title legal description and boundaries of the application area, location of existing buildings, and the location of where the manufactured home or recreational vehicle will be parked;

(b) The connection of the manufactured home or recreational vehicle to any utility shall be in accordance with all applicable regulations of this Code.

(Ord. No. 43-648 § 10)

Sec. 26.04.110. Park and camp location.

All parks and camps shall be located in accordance with the provisions of the Unified Zoning Code, Title 28 of the Code of the City of Wichita, and shall be located on a well drained site property graded to insure adequate drainage and freedom from stagnant pools of water. Plans and specifications for the drainage and grading system, including roadways, storm sewers and appurtenances, and general drainage and grading shall be prepared by a licensed professional engineer.
(Ord. No. 43-648 § 11)

Sec. 26.04.115. Enforcement and inspection.

The Superintendent of Central Inspection, or his designee, and the Director of Environmental Health, or his/her designee, is authorized to inspect and approve the licensee's premises and to insure compliance with all the ordinances of the City of Wichita governing public health, safety and welfare.
(Ord. No. 47-050, § 14, 6-2-06)

Sec. 26.04.117. License—Revocation.

(a) The city council, upon five days' written notice to the licensee shall have the authority to revoke a manufactured home park license for one or more of the following reasons:

(1) The making of a false statement as to a material matter in an application for a license or license renewal;

(2) Violation of any of the provisions of this chapter by the licensee, operator or any employee of the licensee;

In case of the revocation of a license of any license, no new license shall be issued to such person or to any other person acting for or on such person's behalf, for a period of 18 months after the revocation becomes effective.

(b) The order of revocation shall set forth the time period allowed for the licensee to cease park operations. Notice of the revocation shall also be served by the Office of Central Inspection to each manufactured home occupant of the manufactured home park by regular mail, hand delivery or posting of the order on manufactured homes within the park.

(c) Within thirty (30) days after the order revoking any license, the licensee may appeal from such order to the district court of the county in the manner provided by law; provided, that any appeal taken from an order revoking any such license shall suspend the order or revocation during the pendency of such appeal.
(Ord. No. 47-050, § 15, 6-2-06)

Sec. 26.04.119. Reserved.

Editor's note—Ord. No. 47-050, § 16, adopted 6-2-06, repealed § 26.04.009 in its entirety. Formerly said section pertained to appeals and derived from Ord. No. 43-648 § 12.

Sec. 26.04.120. Park and camp layouts.

(a) *Area* — Manufactured home parks shall contain the minimum area as required by the Unified Zoning Code, Title 28 of the Code of the City of Wichita. Trailer camps shall contain a minimum of one thousand five hundred square feet for each camping space.

(b) *Setbacks* — All mobile homes and manufactured homes shall comply with the setbacks and clearances as set forth for manufactured home parks in Article III, Section III.B(10) of the Unified Zoning Code, Title 28 of the Code of the City of Wichita.

Exceptions to accessory structure setback requirements.

1. Accessory structures of noncombustible construction which do not exceed one hundred square feet in area and have no electrical power may be located closer than three feet to the main use structure or other appropriately located accessory structures on the same manufactured or mobile home park lot. Such accessory structures must be located at least ten feet from main use structures on any adjoining lot and at least six feet from any accessory structure on any adjoining lot.
2. Accessory structures exceeding one hundred square feet in area, of combustible construction or with electrical power may be located as close as six feet to the main use structure and as close as three feet to other appropriately located accessory structures on the same manufactured or mobile home park lot. Such accessory structures must be located at least ten feet from all structures on any adjoining lot. If an accessory structure greater than one hundred square feet in area is open on all sides and is constructed of noncombustible materials, such accessory structure may be closer than six feet to the main use structure on the same lot or may even abut the main use structure on the same lot. For such accessory structure, the minimum separation to an adjoining lot structure which is also constructed of noncombustible materials may be reduced from ten feet to six feet by the superintendent of central inspection.

   All recreational vehicles shall be so located as to maintain a set back no less than ten feet from any side or rear boundary line when such boundary is not common to any public street or highway right-of-way.

(c) *Roadway and Sidewalks* — All manufactured home spaces, mobile home spaces or recreational vehicle spaces shall abut upon a park or camp roadway, with no manufactured home, mobile home or recreational vehicle having its direct access from a public street or highway. Roadway widths shall be measured back to back of curbs for new manufactured home parks developed or expanded after January 1, 2007, Roadways where no parking is permitted shall not be less than twenty-four feet. When parking is permitted on one side of the roadway, roadways shall not be less than thirty feet. When parking is permitted

on both sides of the roadways, roadways shall not be less than forty-two feet. It shall be the responsibility of the park operator to post the roadways where parking is prohibited and enforce the limitations. Sidewalks within a park or camp shall be installed as required by the city sidewalk ordinance (Ordinance No. 36-327). All roadways shall have unobstructed access to a public street or highway, with all dead-end roadways being provided an adequate vehicular turnaround (cul-de-sac) with a diameter of not less than seventy feet, or shall have an alternate turnaround area such as hammerheads, etc., as may be approved by the planning department as providing service equal to the cul-de-sac. All park and camp roadways shall be surfaced with concrete, asphaltic concrete, asphalt or other comparable surfacing.

(d) *Storage Lockers* — A storage locker of at least one hundred twenty cubic feet shall be provided for each manufactured home or mobile home space. Storage lockers shall be designed in a manner that will enhance the park and shall be constructed of suitable weather-resistant materials.

(e) *Off-Street Parking* — Surfaced off-street parking shall be provided for each manufactured home, mobile home and recreational vehicle space and any additional parking as required by the Unified Zoning Code, Title 28 of the Code of the City of Wichita. No portion of the park roadways shall be used to provide the required off-street parking.

(f) *Identification of Roadways and Spaces* — All park and camp roadways and manufactured home, mobile home or recreational vehicle spaces shall be clearly identified with letters or numerals of a light-reflecting material. Such letters or numerals are to be a minimum of two inches in height. Such identification shall be in complete agreement with the plan prepared under Section 26.04.070.

(g) *Recreation Space* — Each manufactured home park or expanded nonconforming manufactured home park shall devote at least eight percent of its gross area to recreation space for the use and enjoyment of the occupants of the park. Each such recreational space shall not be less than ten thousand square feet of land area. Required setbacks and clearances and the roadways and off-street parking spaces, shall not be considered as recreational space.

(h) *Screening* — Screening of new or expanded manufactured home parks or expanded nonconforming manufactured home parks must be provided as required by the Unified Zoning Code, Title 28 of the Code of the City of Wichita.

(i) *Lighting* — All park and camp roadways shall be lighted at night with seven-thousand-lumen 1 amps at a maximum interval of two hundred feet located approximately twenty feet from the ground, or friendship lights (gas or electric), with lighting equal to forty watts, and lighted automatically from dusk to dawn, shall be provided for each mobile home space adjacent to the park roadways, or at a maximum interval of seventy-five feet adjacent to camp roadways.

(j) *Landscaping* — Landscaping of new or expanded manufactured home parks or expanded nonconforming manufactured home parks must provide required landscaping in accordance with Chapter 10.32 of the Code of the City of Wichita. (Ord. No. 43-648 § 13; Ord. No. 47-050, § 17, 6-2-06)

Sec. 26.04.130. Service buildings.

Each park serving or intended to serve one or more recreational vehicles, and all camps, shall be provided with one or more service buildings which shall:

(a) Be located no nearer than ten feet from a mobile home or recreational vehicle in a park, nor nearer than ten feet from a recreational vehicle in a camp;

(b) Be so located that any recreational vehicle which it serves shall not be parked more than two hundred feet from it;

(c) Be of permanent type construction and be adequately lighted;

(d) Be of moisture resistant material to permit frequent washing and cleaning;

(e) Have one flush type toilet, one lavatory and one shower or bathtub for females; and one flush type toilet, one lavatory, one shower or bathtub for males for up to nine

recreational vehicles. One additional unit of the above plumbing facilities shall be provided for each sex for each ten additional recreational vehicles served or major fraction thereof. All lavatories, bathtubs and showers shall be connected with both hot and cold running water;

(f) Have adequate heating facilities to maintain a temperature of seventy degrees Fahrenheit in the building and provide hot water (one hundred forty degrees Fahrenheit) at a minimum rate of eight gallons per hour for the required fixture units;

(g) Have an accessible, adequate, safe and potable water supply of cold water;

(h) Have all rooms well ventilated with all openings effectively screened;

(i) Have at least one slop water closet or other facility suitable for the cleaning and sanitizing of bedpans or other waste receptacles;

(j) Comply with all applicable chapters of this Code, regarding the construction of buildings and the installation of electrical, plumbing, heating and air-conditioning systems;

(k) Be maintained in a clean sanitary condition and kept free of any condition that will menace the health of any occupants of the public or constitute a nuisance.

(Ord. No. 38-550 (part))

Sec. 26.04.135. Mobile home park shelters.

(a) *General Requirements.* Every mobile home park of ten or more mobile home spaces which is constructed after April 15, 1994, shall be provided with above-grade or below-grade storm shelters which shall:

(1) Have a minimum floor area of ten square feet for each mobile home space in said mobile home park;

(2) Be designed by a licensed structural engineer or architect and built in accordance with plans sealed by said structural engineer or architect;

(3) Be designed and constructed to meet all Federal Emergency Management Agency (FEMA) requirements and guidelines if the shelter is located in a floodplain;

(4) Be designed and constructed to meet the minimum lighting, ventilation and exiting requirements of the city's currently adopted editions of the Uniform Building Code, Uniform Mechanical Code, Uniform Plumbing Code and National Electrical Code where applicable;

(5) Be designed and constructed to meet all applicable requirements of the Americans with Disabilities Act (ADA);

(6) Be located no farther than one thousand three hundred twenty linear feet from the furthest mobile home space in the mobile home park;

(7) Be designed with a perimeter drainage tile system and sump pump to remove water from the storm shelter (below grade shelter only); and

(8) Be designed with an electrical service for lighting with emergency lights. All one hundred twenty-five volt electrical receptacles shall have ground fault circuit interrupter protection, except single outlet receptacles for sump pump or specified equipment are not required to have ground fault circuit interrupter protection.

(9) Be marked in such a manner that the shelter is clearly visible to park residents. Signs shall state "storm shelter" with lettering at least six (6) inches in height.

(b) *Additions to Existing Parks.* For any addition of ten or more mobile home spaces to any existing mobile home park, a storm shelter which complies with the general requirements of subparagraph (a) of this section shall be provided to serve such additional spaces. For any addition of fewer than ten mobile home spaces to an existing mobile home park which otherwise complies with the requirements of subparagraph (a) or (e) of this section, there is no requirement that an additional shelter be provided to serve such additional spaces; provided, however, that when two or more such additions of fewer than ten mobile home

spaces results in a cumulative addition of ten or more mobile home spaces to a mobile home park which otherwise complies with the requirements of subparagraph (a) or (e) of this section, a storm shelter which complies with the general requirements of subparagraph (a) hereof shall be provided to serve such additional spaces.

(1) Restroom Facilities. Restroom facilities in required storm shelters shall be optional. Toilets may be either flush-type operating from normal water supply, chemical or other types as approved by the Wichita-Sedgwick County health department.

(2) Access to Shelters. The mobile home park owner, or such owner's designated agent or representative, shall be responsible for making the storm shelter accessible and usable in times of need. Such shelters must be accessible whenever the City of Wichita is in a severe thunderstorm or tornado warning issued by the National Weather Service. It is unlawful for any required storm shelter to be used for storage purposes if such storage reduces the minimum floor area available for shelter of persons below the requirements of subparagraph (a) of this section.

(c) *Existing Nonconforming Mobile Home Parks.*

(1) Any mobile home park of ten or more mobile home spaces which has an existing above-grade or below-grade storm shelter as of April 15, 1994, which does not conform with the requirements of this section shall be deemed a nonconforming mobile home park with regard to the requirements for storm shelters and may continue to exist as a nonconforming mobile home park for so long as said existing shelter remains in place and usable; provided, however, that any mobile home spaces added to such park after April 15, 1994, shall require storm shelters as provided in subparagraph (b) of this section.

(2) Any mobile home park of twenty or more spaces which existed prior to April 15, 1994, and which had no above-grade or below-grade storm shelter on the mobile home park site as of April 15, 1994, shall be required to provide a storm shelter which complies with the requirements of this section by April 15, 1999; provided, however, that any mobile home spaces added to such park after April 15, 1994, shall require storm shelters as provided in subparagraph (b) hereof,

(d) *Registration of Existing Shelters.* By August 1, 1994, every owner or operator of any mobile home park of ten or more spaces shall submit a site plan and a written statement setting out the number of mobile home spaces in such park and a description of any storm shelters which existed on-site prior to April 15, 1994. This submission shall be made on forms provided by the office of central inspection and shall be annually updated with the mobile home park license renewal to show changes in the number of mobile home spaces and a description of any storm shelters constructed to serve such park.
(Ord. No. 44-699 § 1; Ord. No. 47-050, § 18, 6-2-06)

Sec. 26.04.140. Water supply.

(a) Required—An accessible, safe and potable supply of water as approved by the health officer shall be provided in each park or camp. If city water is available to the park or camp, it shall be used.

(b) Layout—The size and location of water mains and fire hydrants shall be designed by a licensed professional engineer from either the Wichita water department or by others and shall be in accordance with the requirements of the water department and fire department of the city.

When city water is available, a utility easement for the distribution system shall be granted to the Wichita water department for operation and maintenance purposes. The distribution system shall become the property of the city.

(c) Service Connections—Individual water service connections shall be provided at each mobile home space. Such connections shall be located at least four inches above ground surface, at least three-quarters inch in diameter and equipped with a three-quarters inch valve outlet. The outlet shall be protected from surface water flooding

and all pipes shall be protected against freezing. Below ground shutoff valves may be used but stop and waste valves shall not be used. When service connections are provided for recreational vehicle spaces they shall comply with the above requirements.

(d) Private Water Supply—When a private water supply is provided, it shall provide an adequate water supply with minimum flow rates of four gallons per minute for each of the first five mobile home or recreational vehicle spaces and an additional two gallons per minute for each additional space for the next ten spaces and an additional one and one-half gallons per minute for each additional space for the next twenty-five spaces and an additional one gallon per minute for each additional space. Such system shall provide a minimum of twenty pounds per square inch of pressure at all connections provided.
(Ord. No. 38-550 (part))

Sec. 26.04.150. Sewage disposal.

(a) Individual Sewer Connections—Sewer connections shall be provided for each mobile home space in accordance with Section 16.04.200 of this Code. If individual connections are provided for recreational vehicles, they shall be of similar construction.

(b) Design—Any sewage system connecting to the city sewer system shall be in accordance with all applicable requirements of Chapter 16 of this Code. All sewage systems shall be designed by a licensed professional engineer and shall be submitted for approval by the superintendent of sewer maintenance and the city engineer or their authorized representatives.

(c) Treatment Plant—When the sewer lines of the park or camp are not connected to a public sewer, a sewage treatment plant or sewage disposal system approved by the health officer shall be provided. The design of such facilities for new parks and camps shall be based on their ultimate maximum capacity. The approval of the health officer shall be obtained on the type of treatment proposed and on the design of the facility prior to the construction.

(d) Camps shall provide sanitary stations for the sole purpose of removing and disposing of wastes from holding tanks in a clean, efficient and convenient manner. Sanitary stations shall be approved by the health officer, connected to the sewage system, located not less than fifty feet from any space or other residential area, and be screened from other activities by visual barriers such as fences, walls or natural growth.
(Ord. No. 38-550 (part))

Sec. 26.04.160. Garbage and refuse.

Provisions for garbage and refuse storage, collection and disposal shall be maintained by the operator for licensed manufactured home parks, nonconforming or nonstandard mobile home parks, or camps so as to create no health hazards, rodent harborage, insect breeding areas, accident hazards or air pollution. Such provisions shall comply with the requirements of Chapters 7.08 and 7.40 of the Code of the City of Wichita.
(Ord. No. 43-648 § 14)

Sec. 26.04.170. Rodents and insects.

(a) Maintenance Free from Infestation—Mobile home parks and recreational vehicle campgrounds shall be maintained free of excessive insect or rodent infestation.

(b) Preventive Environmental Maintenance—The mobile home park or recreational vehicle campground management shall keep all areas outside of the confines of the individual mobile homes or recreational vehicles reasonably free of breeding, harboring and feeding places for rodents and insects. Such areas shall be kept free of litter, trash, salvage material, junk and weeds or other obnoxious vegetation growths in excess of twelve inches in height. Individual mobile home or recreational vehicle occupants shall be responsible for the extermination of any insect or rodent infestations occurring within individual mobile homes or recreational vehicles.
(Ord. No. 38-550 (part))

Sec. 26.04.180. Electricity.

A weatherproof electrical outlet supplying at least one hundred ten volts shall be provided for each mobile home or recreational vehicle space.

All electrical wiring shall comply with applicable provisions of the electrical code of the city. No power lines shall be permitted to lie on the ground or to be suspended less than fifteen feet above the ground over any roadway, parking or service area. (Ord. No. 38-550 (part))

Sec. 26.04.190. Fuel gas.

(a) Liquefied Petroleum Gas—When liquefied petroleum gas is used, containers for such gas shall not hold more than twenty-five gallons water capacity; shall be the liquefied petroleum gas containers approved by the Interstate Commerce Commission for its intended purpose; and shall be integrally attached to the mobile home or recreational vehicle in a manner approved by the Liquefied Petroleum Gas Association, Inc. In the absence of the heretofore mentioned installation, aboveground or underground containers may be connected to mobile homes if such containers are located on a firm fire resistive base no closer to a mobile home or building as set forth in Chapter 15.02 of this Code. Such containers shall be connected to a mobile home as required by this Code for any permanent structure and shall be equipped with an excess flow valve at the discharge valve of the container. Gas lines shall be buried a minimum of eighteen inches below grade from the container to a point at or below the mobile home.

(b) Natural Gas—Natural gas may be connected to mobile homes under the following conditions:

(1) All gas lines supplying mobile homes or recreational vehicles shall be of adequate size to provide a sufficient supply of gas that will allow all appliances in the mobile home to operate at their normal rate of capacity;

(2) Where a gas utility company supplies gas to individual mobile homes the service line to the mobile home shall be sized as required by the utility serving the same and a meter loop shall be made in accordance with the requirements of said utility company;

(3) All gas lines including gas service lines serving the mobile home shall be buried not less than eighteen inches below grade to a point at or below the mobile homes and otherwise be installed in accordance with Chapter 21.16 of this Code;

(4) For each individual mobile home there shall be a gas stop cock and an American Gas Association approved flexible connector.

(Ord. No. 38-550 (part))

Sec. 26.04.200. Register.

(a) It shall be the duty of the person operating each park and camp to keep a register containing a record of all mobile home, manufactured home and recreational vehicle owners and tenants located within each park and camp. The register shall contain the name and address of each occupant; the make, model, year and manufacturer of each mobile home, manufactured home or recreational vehicle; the owner of record of each mobile home, manufactured home or recreational vehicle; the dates of arrival and departure of each mobile home, manufactured home or recreational vehicle; including the name of the contractors responsible for connections to the utilities. The person operating each park or camp shall keep the register available for inspection at all reasonable hours by law enforcement officers, assessor, public health officials and other officials whose duties necessitate acquisition of the information contained in the register. The original records of the register shall not be destroyed for a period of three years following the date of registration.

(b) It shall be the duty of the person operating each manufactured home park and camp to notify the inspection officer of every new or relocated mobile home installed within five business days of installation.

(Ord. No. 47-050, § 19, 6-2-06)

Sec. 26.04.210. Alterations and additions to manufactured homes or mobile homes in manufactured home parks or nonconforming or nonstandard mobile home parks.

(a) Alterations and additions to manufactured homes or mobile homes which are affected by provisions contained in this chapter, within or to

a park and facilities, shall be made only after application to the inspection officer and in conformity with all of the sections of this Code.

(b) No additions of any kind shall be built onto or become a part of any manufactured home, mobile home or recreational vehicle.

Exception: Accessory structures not exceeding an area of one hundred square feet of enclosed space, carports and residential patio structures may be attached to or become a part of a manufactured home or mobile home if such structure complies in all respects to the applicable provisions of the building code and other related technical codes and permits are secured from central inspection.

Skirting of manufactured homes or mobile homes is permissible only with noncombustible material; however skirting shall not permanently attach the manufactured home or mobile home to the ground, provide a harborage for rodents or create a fire hazard.

(Ord. No. 38-550(part); Ord. No. 43-648, § 15, 12-9-97)

Sec. 26.04.212. Additions and alterations to homes in a manufactured home subdivision.

Additions and alterations may be made to any manufactured home or modular home in a manufactured home subdivision. Such additions or alterations shall also be placed on a permanent foundation as required by the building code of the city. Whenever any manufactured home or modular home does not have a continuous perimeter foundation, continuous perimeter skirting shall be installed. Such skirting shall be of noncombustible material and resistant to deterioration due to weather.

(Ord. No. 38-550(part))

Sec. 26.04.215. Manufactured home ground anchors.

Every new or relocated manufactured home installed after the effective date of this ordinance codified in this section and regulated by this chapter shall be anchored in accordance with the manufacturer's printed instructions complying with the National Manufactured Home Construction and Safety Standards Act and any regulations promulgated thereunder. It shall be the responsibility of the manufactured home installer to demonstrate compliance with this anchoring requirement, and in the event the owner or licensed manufactured home installer is unable to do so, the manufactured home shall be anchored in the following manner:

(a) Ground anchors shall be attached both to the frame and to straps or cables that pass from one side over the top and down the opposite side.

(b) Ground anchors shall be clearly marked with identification as required by K.S.A. § 75-1228, and as noted on approved certificates issued by the Director of Architectural Services Division of the State Department of Administration.

(c) Each ground anchor shall be capable of withstanding a vertical pull force of 4,750 pounds in place.

(d) The number of anchors required shall be: Three on each lengthwise side for mobile homes not less than 32 feet nor more than 50 feet in length; 4 on each lengthwise side for mobile homes more than 50 feet or not more than 70 feet in length; and 5 on each lengthwise side for mobile homes more than 70 feet in length. Anchors shall be spaced such that each anchor will resist approximately the same force as the others.

(Ord. No. 34-190(part); Ord. No. 43-648, § 16, 12-9-97)

Sec. 26.04.216. Manufactured home anchorage.

Every new or relocated manufactured home installed after the effective date of this ordinance codified in this section and regulated by this chapter shall be anchored in accordance with the manufacturer's printed instructions complying with the National Manufactured Home Construction and Safety Standards Act and any regulations promulgated thereunder. It shall be the responsibility of the manufactured home owner or li-

censed manufactured home installer to demonstrate compliance with this [these] anchoring requirements and in the event the owner or licensed manufactured home installer is unable to do so, the manufacturing [manufactured] home shall be anchored in the following manner:

(a) Strap or cable tie-downs used to connect the mobile home to its anchors shall be of a type that is marked with identification as required by K.S.A § 75-1228, and as noted on approval certificates issued by the Director of Architectural Services Division of the State Department of Administration.

(b) Corner roof protectors shall be used with over-the-top cables or straps which are not factory-installed with the manufactured home.

Ord. No. 34-190(part); Ord. No. 43-648, § 17, 12-9-97)

Sec. 26.04.217. Manufactured home foundations.

Every new or relocated manufactured home installed after the effective date of the ordinance codified in this section and regulated by this chapter shall have a support system in accordance with the manufacturer's printed instructions complying with the National Home Construction and Safety Standards Act and any regulations promulgated thereunder. It shall be the responsibility of the manufactured home owner or licensed manufactured home installer to demonstrate compliance with this requirement and in the event the owner or licensed manufactured home installer is unable to do so, the manufactured home shall be mounted on masonry piers in the following manner:

(a) Foundation footings for piers shall be installed directly under the main frame or chassis of the manufactured home. Foundation footings shall be placed on stable, undisturbed soil from which grass or organic material has been removed, or in controlled fill free of organic material compacted to a minimum load-bearing capacity of 1,000 pounds per square foot. Foundation footings shall consist of no less than one (1) 4-inch thick by 16-inch thick by 16-inch wide by 16-inch long solid concrete block[s] or two (2) 4-inch thick by 8-inch wide by 16-inch long solid concrete blocks with the long dimensions of each block parallel with the steel I-Beam frame. Foundation footings shall have a minimum load-bearing capacity of 2,000 pounds per square foot. Alternate footing materials or designs which have been engineered and tested by an approved testing agency may be authorized by the Superintendent of Central Inspection.

(b) Piers less than 30 inches in height, measured from the top of the foundation footing to the bottom of the I-Beam, shall be constructed of either open cell or solid concrete blocks each of which shall be 8 inches wide, 8 inches high and 16 inches long. Open cell blocks shall be installed with the open cells aligned vertically. A solid wood or concrete cap plate of at least one (1) inch nominal thickness and not greater than 4 inches nominal thickness, 8 inches nominal width and 16 inches long shall be placed on the top of each pier, with weather proof shims when needed, fitted and driven tightly between the wood or concrete cap plate and the main frame I-Beam. Such shims shall not exceed one (1) inch in nominal thickness and shall be at least 4 inches nominal width and 6 inches long. Piers shall be installed perpendicular to the I-Beam. Piers shall not be spaced further apart than 8 feet on centers. The main frame shall not extend further than one (1) foot beyond the center line of the end of the piers. Piers shall be spaced so as not [to] be located directly under the axle mounting(s).

For any pier over 30 inches in height, measured from the top of the foundation footing to the bottom of the I-Beam, the pier shall be double-tiered with blocks interlocked and capped with solid concrete block[s]. The cap plate shall consist of one (1) 4-inch thick by 16-inch wide by 16-inch long solid concrete block or two (2) 4-inch thick by 8-inch wide by 16-inch long

solid concrete blocks. The gap between the cap plate and the main frame may be filled with a piece of solid wood at least one (1) inch in nominal thickness but not greater than two (2) inches nominal thickness, 8 inches nominal width and 16 inches long, centered under the I-Beam. The solid concrete cap [plate] or solid wood piece shall be installed with weather-proof shims, as needed, fitted and driven tightly between the wood or concrete cap plate and the main frame I-Beam. Such shims shall not exceed one (1) inch in nominal thickness and shall be at least 4 inches nominal width and 6 inches in length.

Piers shall not exceed 48 inches in height, unless designed and sealed by a registered professional engineer or architect.

Substitute footing and pier foundation materials may be approved by the Superintendent of Central Inspection if approved by and installed as required by K.S.A § 75-1231.

(Ord. No. 43-648, § 18, 12-9-97)

Sec. 26.04.220. Penalty.

Any person who violates any provision of this chapter is guilty of a misdemeanor and shall be punished by a fine of not more than $500.00 or by imprisonment in the city jail for a period not exceeding one year or by both such fine and imprisonment. Each day that a violation of this chapter occurs constitutes a separate offense and is punishable hereunder as a separate violation.

(Ord. No. 30-782, § 22)

Title 27

FLOOD DAMAGE PREVENTION

Ch. 27.04. Reserved

Ch. 27.06. Floodplain Management

CHAPTER 27.04. RESERVED*

*__Editor's note—__Ord. No. 47-346, § 22, adopted February 13, 2007, repealed the former Ch. 27.04, §§ 27.04.010—27.04.200. The former Ch. 27.04 pertained to similar subject matter and derived from Ord. No. 39-524, §§ 1, 2, 4—9, 11, 19, 20; Ord. No. 40-973, §§ 2—9; Ord. No. 41-515, § 1; Ord. No. 45-291, §§ 1—4. The users' attention is directed to Ch. 27.06 for similar provisions.

CHAPTER 27.06. FLOODPLAIN MANAGEMENT

Sec. 27.06.010. Statement of purpose.
Sec. 27.06.020. Definitions.
Sec. 27.06.030. Applicability.
Sec. 27.06.040. Compliance.
Sec. 27.06.050. Abrogation and greater restrictions.
Sec. 27.06.060. Interpretation.
Sec. 27.06.070. Warning and disclaimer of liability.
Sec. 27.06.080. Designation of Floodplain Administrator; duties and responsibilities.
Sec. 27.06.090. Floodplain development permit.
Sec. 27.06.100. Application for floodplain development permit.
Sec. 27.06.110. Recording of minimum pad elevation information.
Sec. 27.06.120. General standards.
Sec. 27.06.130. Storage of material and equipment.
Sec. 27.06.140. Nonconforming uses.
Sec. 27.06.150. Specific standards.
Sec. 27.06.160. Manufactured homes.
Sec. 27.06.170. Areas of shallow flooding (AO and AH zones).
Sec. 27.06.180. Floodway.
Sec. 27.06.190. Recreational vehicles.
Sec. 27.06.200. Variance procedures.
Sec. 27.06.210. Penalties.

Sec. 27.06.010. Statement of purpose.

It is the purpose of this chapter to promote the public health, safety, and general welfare; to minimize loss of life and property; to establish or maintain the community's eligibility for participation in the National Flood Insurance Program (NFIP) as defined in 44 Code of Federal Regulations (CFR) 59.22(a)(3); to meet the requirements of 44 CFR 60.3(d); K.S.A. 12-741 et seq., and 12-766 by applying the provisions of this chapter to:

1. Restrict or prohibit uses that are dangerous to health, safety, or property in times of flooding or cause undue increases in flood heights or velocities;
2. Require uses vulnerable to floods, including public facilities that serve such uses, be provided with flood protection at the time of initial construction; and
3. Protect individuals from buying lands that are unsuited for the intended development purposes due to the flood hazard.

(Ord. No. 47-346, § 1, 2-13-07; Ord. No. 49-258, § 1, 4-10-2012)

Sec. 27.06.020. Definitions.

Unless specifically defined below, words or phrases used in this chapter shall be interpreted so as to give them the same meaning they have in common usage and to give this chapter it's most reasonable application.

"100-year Flood." See "base flood."

"500-year Flood" has a 0.2% annual chance of flooding in any given year.

"Accessory structure" means the same as "appurtenant structure."

"Actuarial rates." See "risk premium rates."

"Administrator" means the Federal Insurance Administrator.

"Agency" means the Federal Emergency Management Agency (FEMA).

"Appeal" means a request for review of the Floodplain Administrator's interpretation of any provision of this chapter or a request for a variance.

"Appurtenant structure" means a structure that is on the same parcel of property as the principle structure to be insured and the use of which is incidental to the use of the principal structure.

"Area of shallow flooding" means a designated AO or AH zone on a community's Flood Insurance Rate Map (FIRM) with a one percent or greater annual chance of flooding to an average depth of one (1) to three (3) feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

"Area of special flood hazard" is the land in the floodplain within a community subject to a one percent or greater chance of flooding in any given year.

"Base flood" means the flood having a one percent chance of being equaled or exceeded in any given year.

"Base Flood Elevation" or "BFE" means the computed elevation to which floodwater is anticipated to rise during the base flood.

"Basement" means any area of the structure having its floor subgrade (below ground level) on all sides.

"Building." See "structure."

"Chief Engineer" means the Chief Engineer of the Division of Water Resources, Kansas Department of Agriculture.

"Chief Executive Officer" or "Chief Elected Official" means the official of the community who is charged with the authority to implement and administer laws, ordinances, and regulations for that community.

"Community" means any State or area or political subdivision thereof, which has authority to adopt and enforce floodplain management regulations for the areas within its jurisdiction.

"Development" means any man-made change to improved or unimproved real estate, including but not limited to buildings or other structures, levees, levee systems, mining, dredging, filling, grading, paving, excavation or drilling operations, or storage of equipment or materials.

"Elevated building" means for insurance purposes, a non-basement building which has its lowest elevated floor raised above ground level by foundation walls, shear walls, posts, piers, pilings, or columns.

"Eligible community" or "participating community" means a community for which the Administrator has authorized the sale of flood insurance under the National Flood Insurance Program (NFIP).

"Existing Construction" means for the purposes of determining rates, structures for which the "start of construction" commenced before the effective date of the FIRM or before January 1, 1975, for FIRMs effective before that date. "Existing construction" may also be referred to as "existing structures."

"Existing manufactured home park or subdivision" means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.

"Expansion to an existing manufactured home park or subdivision" means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

"Flood" or "flooding" means a general and temporary condition of partial or complete inundation of normally dry land areas from: (1) the overflow of inland waters; (2) the unusual and rapid accumulation or runoff of surface waters from any source; and (3) the collapse or subsidence of land along the shore of a lake or other body of water as a result of erosion or undermining caused by waves or currents of water exceeding anticipated cyclical levels or suddenly caused by an unusually high water level in a natural body of water, accompanied by a severe storm, or by an unanticipated force of nature, such as a flash flood, or by some similarly unusual and unforeseeable event which results in flooding as defined above in item (1).

"Flood elevation determination" means a determination by the Administrator of the water surface elevations of the base flood, that is, the flood level that has a one percent or greater chance of occurrence in any given year.

"Flood Elevation Study" means an examination, evaluation and determination of flood hazards.

"Flood fringe" means the area outside the floodway encroachment lines, but still subject to inundation by the regulatory flood.

"Flood Insurance Rate Map (FIRM)" means an official map of a community, on which the Administrator has delineated both the special flood hazard areas and the risk premium zones applicable to the community.

"Flood Insurance Study (FIS)" means an examination, evaluation and determination of flood hazards and, if appropriate, corresponding water surface elevations.

"Floodplain" or "flood-prone area" means any land area susceptible to being inundated by water from any source (see "flooding").

"Floodplain management" means the operation of an overall program of corrective and preventive measures for reducing flood damage, including but not limited to emergency preparedness plans, flood control works, and floodplain management regulations.

"Floodplain management regulations" means zoning ordinances, subdivision regulations, building codes, health regulations, special purpose ordinances (such as floodplain and grading ordinances) and other applications of police power. The term describes such state or local regulations, in any combination thereof, that provide standards for the purpose of flood damage prevention and reduction.

"Floodproofing" means any combination of structural and nonstructural additions, changes, or adjustments to structures that reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, or structures and their contents.

"Floodway" or "regulatory floodway" means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one foot.

"Floodway encroachment lines" means the lines marking the limits of floodways on Federal, State and local floodplain maps.

"Freeboard" means a factor of safety usually expressed in feet above a flood level for purposes of floodplain management. "Freeboard" tends to compensate for the many unknown factors that could contribute to flood heights greater than the height calculated for a selected size flood and floodway conditions, such as bridge openings and the hydrological effect of urbanization of the watershed.

"Functionally dependent use" means a use that cannot perform its intended purpose unless it is located or carried out in close proximity to water. This term includes only docking facilities and facilities that are necessary for the loading and unloading of cargo or passengers, but does not include long- term storage or related manufacturing facilities.

"Highest adjacent grade" means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

"Historic structure" means any structure that is (a) listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register; (b) certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district; (c) individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or (d) individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either (1) by an approved state program as determined by the Secretary of the Interior or (2) directly by the Secretary of the Interior in states without approved programs.

"Lowest floor" means the lowest floor of the lowest enclosed area, including basement. An unfinished or flood-resistant enclosure, usable solely for parking of vehicles, building access, or storage, in an area other than a basement area, is not considered a building's lowest floor, provided that such enclosure is not built so as to render the structure in violation of the applicable flood-proofing design requirements of this ordinance.

"Manufactured home" means a structure, transportable in one or more sections, that is built on a permanent chassis and is designed for use with or without a permanent foundation when attached to the required utilities. The

term "manufactured home" does not include a "recreational vehicle." "Manufactured home park or subdivision" means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

"Map" means the Flood Hazard Boundary Map (FHBM), Flood Insurance Rate Map (FIRM), or the Flood Boundary and Floodway Map (FBFM) for a community issued by the Federal Emergency Management Agency (FEMA).

"Market value" or "fair market value" means an estimate of what is fair, economic, just and equitable value under normal local market conditions.

"Mean sea level" means, for purposes of the National Flood Insurance Program (NFIP), the National American Vertical Datum (NAVD) of 1988 or other datum, to which base flood elevations shown on a community's Flood Insurance Rate Map (FIRM) are referenced.

"New construction" means, for the purposes of determining insurance rates, structures for which the "start of construction" commenced on or after the effective date of an initial FIRM or after December 31, 1974, whichever is later, and includes any subsequent improvements to such structures. For floodplain management purposes, "new construction" means structures for which the "start of construction" commenced on or after the effective date of the floodplain management regulations adopted by a community and includes any subsequent improvements to such structures.

"New manufactured home park or subdivision" means a manufactured home park or subdivision for which the construction of facilities for servicing the lot on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by the community.

"(NFIP)" means the National Flood Insurance Program (NFIP).

"Participating community" also known as an "eligible community," means a community in which the Administrator has authorized the sale of flood insurance.

"Permit" means a signed document from a designated community official authorizing development in a floodplain, including all necessary supporting documentation such as: (1) the site plan; (2) an elevation certificate; and (3) any other necessary or applicable approvals or authorizations from local, State or Federal authorities.

"Person" includes any individual or group of individuals, corporation, partnership, association, or any other entity, including Federal, State, and local governments and agencies.

"Principally above ground" means that at least 51 percent of the actual cash value of the structure, less land value, is above ground.

"Reasonably safe from flooding" means base flood waters will not inundate the land or damage structures to be removed from the SFHA and that any subsurface waters related to the base flood will not damage existing or proposed buildings.

"Recreational vehicle" means a vehicle which is (a) built on a single chassis; (b) 400 square feet or less when measured at the largest horizontal projections; (c) designed to be self-propelled or permanently able to be towed by a light-duty truck; and (d) designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

"Remedy a violation" means to bring the structure or other development into compliance with Federal, State, or local floodplain management regulations; or, if this is not possible, to reduce the impacts of its noncompliance.

"Risk premium rates" means those rates established by the Administrator pursuant to individual community studies and investigations, which are undertaken to provide flood insurance in accordance with Section 1307 of the National Flood Disaster Protection Act of 1973

and the accepted actuarial principles. "Risk premium rates" include provisions for operating costs and allowances.

"Special flood hazard area." See "area of special flood hazard."

"Special hazard area" means an area having special flood hazards and shown on an FHBM, FIRM or FBFM as zones (unnumbered or numbered) A, AO, AE, or AH.

"Start of construction" includes substantial improvements, and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition placement, or other improvements were within 180 days of the permit date. The "actual start" means either the first placement of permanent construction of a structure on a site, such as the pouring of slabs or footings, the installation of piles, the construction of columns, any work beyond the stage of excavation, or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling, the installation of streets and/or walkways, excavation for a basement, footings, piers, foundations, the erection of temporary forms, nor installation on the property of accessory structures, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvements, the "actual start of construction" means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

"State coordinating agency" means the Division of Water Resources, Kansas Department of Agriculture, or other office designated by the governor of the state or by state statute at the request of the Administrator to assist in the implementation of the National Flood Insurance Program (NFIP) in that state.

"Structure" means, for floodplain management purposes, a walled and roofed building, including a gas or liquid storage tank, that is principally above ground, as well as a manufactured home. "Structure" for insurance purposes, means a walled and roofed building, other than a gas or liquid storage tank that is principally above ground and affixed to a permanent site, as well as a manufactured home on a permanent foundation. For the latter purpose, the term includes a building while in the course of construction, alteration or repair, but does not include building materials or supplies intended for use in such construction, alteration or repair, unless such materials or supplies are within an enclosed building on the premises.

"Substantial damage" means damage of any origin sustained by a structure whereby the cost of restoring the structure to pre-damaged condition would equal or exceed fifty (50) percent of the market value of the structure before the damage occurred.

"Substantial improvement" means any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds 50 percent of the market value of the structure before "start of construction" of the improvement. This term includes structures, which have incurred "substantial-damage," regardless of the actual repair work performed. The term does not, however, include either (1) any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications that have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions, or (2) any alteration of a "historic structure," provided that the alteration will not preclude the structure's continued designation as a "historic structure."

"Variance" means a grant of relief by the community from the terms of a floodplain management regulation. Flood insurance requirements remain in place for any varied use or structure and cannot be varied by the community.

"Violation" means the failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required by this chapter is presumed to be in violation until such time as that documentation is provided.

"Water surface elevation" means the height, in relation to the North American Vertical Datum (NAVD) of 1988 (or other datum where specified) of floods of various magnitudes and frequencies in the floodplain.
(Ord. No. 47-346, § 2, 2-13-07; Ord. No. 49-258, § 2, 4-10-12; Ord. No. 50-381, § 1, 12-13-16)

Sec. 27.06.030. Applicability.

This chapter shall apply to all lands within the City of Wichita identified as special flood hazard area (SFHA), A, AE, AO, AH and AR Zones, on the Flood Insurance Rate Map (FIRM) panels dated December 22, 2016 and the Flood Insurance Study (FIS) as referenced on the associated FIRM index dated December 22, 2016, and any future revisions thereto except where noted in this chapter.
(Ord. No. 47-346, § 3, 2-13-07; Ord. No. 49-258, § 3, 4-10-12; Ord. No. 50-381, § 2, 12-13-16)

Sec. 27.06.040. Compliance.

No development located within the special flood hazard areas of this community shall be located, extended, converted, or structurally altered without full compliance with the terms of this chapter and other applicable regulations.
(Ord. No. 47-346, § 4, 2-13-07)

Sec. 27.06.050. Abrogation and greater restrictions.

It is not intended by this ordinance to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where this chapter imposes greater restrictions, the provisions of this chapter shall prevail. All other ordinances inconsistent with this chapter are hereby repealed to the extent of the inconsistency only.
(Ord. No. 47-346, § 5, 2-13-07)

Sec. 27.06.060. Interpretation.

In their interpretation and application, the provisions of this ordinance shall be held to be minimum requirements, shall be liberally construed in favor of the governing body, and shall not be deemed a limitation or repeal of any other powers granted by Kansas statutes.
(Ord. No. 47-346, § 6, 2-13-07)

Sec. 27.06.070. Warning and disclaimer of liability.

The degree of flood protection required by this chapter is considered reasonable for regulatory purposes and is based on engineering and scientific methods of study. Larger floods may occur on rare occasions or the flood heights may be increased by man-made or natural causes, such as ice jams and bridge openings restricted by debris. This chapter does not imply that areas outside the floodway and flood fringe or land uses permitted within such areas will be free from flooding or flood damage. This chapter shall not create a liability on the part of the City of Wichita, any officer or employee thereof, for any flood damages that may result from reliance on this chapter or any administrative decision lawfully made there under.
(Ord. No. 47-346, § 7, 2-13-07)

Sec. 27.06.080. Designation of Floodplain Administrator; duties and responsibilities.

(a) The Superintendent of the Office of Central Inspection is hereby appointed to administer and implement the provisions of this ordinance.

(b) The Floodplain Administrator shall have the authority to administer and implement the provisions of this ordinance in accordance with the effective Flood Insurance Rate Maps (FIRMs) and any future revisions thereto, or with best available data when accessible.

(c) Duties of the Floodplain Administrator shall include, but not be limited to:

(1) Review of all applications for floodplain development permits to assure that sites are reasonably safe from flooding and that the floodplain development permit requirements of this ordinance have been satisfied;

(2) Review of all applications for floodplain development permits for proposed develop-

ment to assure that all necessary permits have been obtained from Federal, State, or local governmental agencies from which prior approval is required by Federal, State, or local law;

(3) Review all subdivision proposals and other proposed new development, including manufactured home parks or subdivisions, to determine whether such proposals will be reasonably safe from flooding;

(4) Issue floodplain development permits for all approved applications;

(5) Notify adjacent communities and the Division of Water Resources, Kansas Department of Agriculture, prior to any alteration or relocation of a watercourse, and submit evidence of such notification to the Federal Emergency Management Agency (FEMA);

(6) Assure that the flood-carrying capacity is not diminished and shall be maintained within the altered or relocated portion of any watercourse; and

(7) Verify and maintain a record of the actual elevation (in relation to mean sea level) of the lowest floor, including basement, of all new or substantially improved structures;

(8) Verify and maintain a record of the actual elevation (in relation to mean sea level) that the new or substantially improved non-residential structures have been floodproofed;

(9) When floodproofing techniques are utilized for a particular non-residential structure, the floodplain administrator shall require certification from a registered professional engineer or architect;

(10) Where interpretation is needed as to the exact location of the boundaries of the areas of special flood hazards (for example, where there appears to be a conflict between a mapped boundary and actual field conditions), the city engineer shall make the necessary interpretation.

(Ord. No. 47-346, § 8, 2-13-07; Ord. No. 50-381, § 3, 12-13-16)

Sec. 27.06.090. Floodplain development permit.

A floodplain development permit shall be required for all proposed construction or other development, including the placement of manufactured homes, in the areas described in section 27.06.030. No person, firm, corporation, or unit of government shall initiate any development or substantial improvements or cause the same to be done without first obtaining a separate floodplain development permit for each structure or other development.

(Ord. No. 47-346, § 9, 2-13-07)

Sec. 27.06.100. Application for floodplain development permit.

To obtain a floodplain development permit, the applicant shall first file an application in writing on a form furnished for that purpose. Every floodplain development permit application shall:

1. Describe the land on which the proposed work is to be done by lot, block and tract, house and street address, or similar description that will readily identify and specifically locate the proposed structure or work;

2. Identify and describe the work to be covered by the floodplain development permit;

3. Indicate the use or occupancy for which the proposed work is intended;

4. Indicate the assessed value of the structure and the fair market value of the improvement;

5. Specify whether development is located in designated flood fringe or floodway;

6. Identify the existing base flood elevation and the elevation of the proposed development;

7. Give such other information as reasonably may be required by the floodplain administrator;

8. Be accompanied by plans and specifications for proposed construction; and

9. Be signed by the permittee or his authorized agent who may be required to submit evidence to indicate such authority.

(Ord. No. 47-346, § 10, 2-13-07)

Sec. 27.06.110. Recording of minimum pad elevation information.

For every development permit issued hereunder, the Administrator shall cause an affidavit to be filed and recorded with the register of deeds of Sedgwick County, Kansas, which affidavit shall contain the following information:

1. The legal description of the subject land;
2. Elevation in relation to mean sea level of the lowest floor (including basement) of all structures;
3. Elevation in relation to mean sea level to which any nonresidential structure is to be floodproofed; and
4. The name or names of the record owners of the subject land.

The cost of the recording of such affidavit shall be at the expense of the applicant for the development permit.

(Ord. No. 47-346, § 11, 2-13-07)

Sec. 27.06.120. General standards.

(a) No permit for floodplain development shall be granted for new construction, substantial improvement, and other improvements, including the placement of manufactured homes, within any numbered or unnumbered A zones, AE, AO, and AH zones, unless the conditions of this Section are satisfied.

(b) All areas identified as unnumbered A zones on the FIRM are subject to inundation of the 100-year flood; however, the base flood elevation is not provided. Development within unnumbered A zones is subject to all provisions of this ordinance. If Flood Insurance Study data is not available, the community shall obtain, review, and reasonably utilize any base flood elevation or floodway data currently available from Federal, State, or other sources.

(c) Until a floodway is designated, no new construction, substantial improvement, or other development, including fill, shall be permitted within any unnumbered or numbered A zones, or AE zones on the FIRM, unless it is demonstrated that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one (1) foot at any point within the community.

(d) All new construction, subdivision proposals, substantial improvement, prefabricated structures, placement of manufactured homes, and other developments shall require:

(i) Design or adequate anchorage to prevent flotation, collapse, or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy;

(ii) Construction with materials resistant to flood damage;

(iii) Utilization of methods and practices that minimize flood damages;

(iv) All electrical, heating, ventilation, plumbing, air-conditioning equipment, and other service facilities be designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding;

(v) New or replacement water supply systems and/or sanitary sewage systems be designed to minimize or eliminate infiltration of flood waters into the systems and discharges from the systems into flood waters, and on-site waste disposal systems be located so as to avoid impairment or contamination; and

(vi) Subdivision proposals and other proposed new development, including manufactured home parks or subdivisions, located within special flood hazard areas are required to assure that:

(aa) All such proposals are consistent with the need to minimize flood damage;

(bb) All public utilities and facilities, such as sewer, gas, electrical, and water systems are located and constructed to minimize or eliminate flood damage;

(cc) Adequate drainage is provided so as to reduce exposure to flood hazards; and

(dd) All proposals for development, including proposals for manufactured home parks and subdivisions, of greater than five (5) acres or fifty (50) lots, whichever is lesser, include within such proposals base flood elevation data.

(Ord. No. 47-346, § 12, 2-13-07; Ord. No. 50-381, § 4, 12-13-16)

Sec. 27.06.130. Storage of material and equipment.

The storage or processing of materials within the special flood hazard area that are in time of flooding buoyant, flammable, explosive, or could be injurious to human, animal, or plant life is prohibited. Storage of other material or equipment may be allowed if not subject to major damage by floods, if firmly anchored to prevent flotation, or if readily removable from the area within the time available after a flood warning. (Ord. No. 47-346, § 13, 2-13-07)

Sec. 27.06.140. Nonconforming uses.

A structure, or the use of a structure or premises that was lawful before the passage or amendment of the ordinance, but which is not in conformity with the provisions of this chapter, may be continued subject to the following conditions:

1. If such structure, use, or utility service is discontinued for twenty-four (24) consecutive months, any future use of the building shall conform to this ordinance.

2. If any nonconforming use or structure is destroyed by any means, including flood, it shall not be reconstructed if the cost is more than fifty (50) percent of the predamaged market value of the structure. This limitation does not include the cost of any alteration to comply with existing state or local health, sanitary, building, safety codes, regulations or the cost of any alteration of a structure listed on the National Register of Historic Places, the State Inventory of Historic Places, or local inventory of historic places upon determination.

3. Uses or adjuncts thereof which are or become nuisances shall not be entitled to continue as nonconforming uses."

(Ord. No. 47-346, § 14, 2-13-07)

Sec. 27.06.150. Specific standards.

In all special flood hazard areas identified as numbered and unnumbered A zones, AE, and AH zones, where base flood elevation data have been provided, as set forth in section 27.06.120(b), the following provisions are required:

(a) New construction or substantial improvements of any residential structures, including manufactured homes, shall have the lowest floor, including basement, elevated a minimum of two (2) feet above base flood elevation. The elevation of the lowest floor shall be certified by a licensed land surveyor or professional engineer.

(b) New construction or substantial improvements of any commercial, industrial, or other non-residential structures, including manufactured homes, shall have the lowest floor, including basement, elevated a minimum of two (2) feet above the base flood elevation or, together with attendant utility and sanitary facilities, be floodproofed so that below two (2) feet above the base flood elevation the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer or architect shall certify that the standards of this subsection are satisfied. The elevation of the lowest floor shall be certified by a licensed land

surveyor or professional engineer. Such certification shall be provided to the Floodplain Administrator as set forth in Section 27.06.080(b)(7,)(8), and (9).

(c) For all new construction and substantial improvement of fully enclosed areas below lowest floor which are used solely for parking of vehicles, building access, or storage in an area other than a basement and that are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of flood waters. Designs for meeting this requirement must either be certified by a registered professional engineer or architect or meet or exceed the following minimum criteria:

(1) A minimum of two (2) openings having a total net area of not less than one (1) square inch for every square foot of enclosed area subject to flooding shall be provided; and

(2) The bottom of all openings shall be no higher than one (1) foot above grade. Openings may be equipped with screens, louvers, valves, or other coverings or devices provided that they permit the automatic entry and exit of flood waters.

(Ord. No. 47-346, § 15, 2-13-07; Ord. No. 49-258, § 4, 4-10-12; Ord. No. 50-381, § 5, 12-13-16)

Sec. 27.06.160. Manufactured homes.

(a) All manufactured homes to be placed within all unnumbered and numbered A zones, AE, and AH zones, on the community's FIRM shall be required to be installed using methods and practices that minimize flood damage. For the purposes of this requirement, manufactured homes must be elevated and anchored to resist flotation, collapse, or lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors.

(b) All manufactured homes that are placed or substantially improved within unnumbered or numbered A zones, AE, and AH zones, on the community's FIRM on sites (1) outside of a manufactured home park or subdivision; (2) in a new manufactured home park or subdivision; (3) in an expansion to and existing manufactured home park or subdivision; or (4) in an existing manufactured home park or subdivision in which a manufactured home has incurred substantial damage as the result of a flood, shall be elevated on a permanent foundation such that the lowest floor of the manufactured home is elevated a minimum of two (2) feet above the base flood elevation and be securely attached to an adequately anchored foundation system to resist flotation, collapse, and lateral movement. The elevation of the lowest floor shall be certified by a licensed land surveyor or professional engineer.

(c) All manufactured homes that are placed or substantially improved on sites in an existing manufactured home park or subdivision within all unnumbered and numbered A zones, AE and AH zones, on the community's FIRM that are not subject to the provisions of subparagraph (b) herein shall be elevated so that either:

(1) The lowest floor of the manufactured home is a minimum of two (2) feet above the base flood level; or

(2) The chassis is supported by reinforced piers or other foundation elements of at least equivalent strength that are no less than thirty-six (36) inches in height above grade and that are securely attached to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

The elevation of the lowest floor shall be certified by a licensed land surveyor or professional engineer.

(Ord. No. 47-346, § 16, 2-13-07; Ord. No. 49-258, § 5, 4-10-12)

Sec. 27.06.170. Areas of shallow flooding (AO and AH zones).

Located within the areas of special flood hazard as described herein are areas designated as AO zones and AH zones. These areas have special flood hazards associated with base flood depths of one (1) to three (3) feet where a clearly defined

channel does not exist and where the path of flooding is unpredictable and indeterminate. The following provisions apply:

(a) *In AO Zones.*

(1) All new construction and substantial improvements of residential structures, including manufactured homes, shall have the lowest floor, including basement, elevated above the highest adjacent grade at least two (2) feet above the depth number specified in feet on the community's FIRM (at least three (3) feet if no depth number is specified).

(2) All new construction and substantial improvements of any commercial, industrial, or other non-residential structures, including manufactured homes, shall have the lowest floor, including basement, elevated above the highest adjacent grade at least as high as two (2) feet above the depth number specified in feet on the community FIRM (at least three (3) feet if no depth number is specified) or together with attendant utilities and sanitary facilities be completely floodproofed to that so that the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy.

(3) Adequate drainage paths shall be required around structures on slopes, in order to guide floodwaters around and away from proposed structures.

(b) *In AH Zones.*

(1) The specific standards for all areas of special flood hazard where base flood elevation has been provided shall be required as set forth in section 27.06.150.

(2) Adequate drainage paths shall be required around structures on slopes, in order to guide floodwaters around and away from proposed structures."

(Ord. No. 47-346, § 17, 2-13-07)

Sec. 27.06.180. Floodway.

Located within areas of special flood hazard as defined herein are areas designated as floodways. Since the floodway is an extremely hazardous area due to the velocity of floodwaters that carry debris and potential projectiles, the following provisions shall apply:

(a) The community shall select and adopt a regulatory floodway based on the principle that the area chosen for the regulatory floodway must be designed to carry the waters of the base flood without increasing the water surface elevation of that flood more than one (1) foot at any point.

(b) The community shall prohibit any encroachments, including fill, new construction, substantial improvements, and other development within the adopted regulatory floodway unless it has been demonstrated through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that the proposed encroachment would not result in any increase in flood levels within the community during the occurrence of the base flood discharge.

(c) All new construction and substantial improvements shall comply with all applicable flood hazard reduction provisions contained herein.

(d) In unnumbered A zones, the community shall obtain, review, and reasonably utilize any base flood elevation or floodway data currently available from Federal, State, or other sources as set forth herein".

(Ord. No. 47-346, § 18, 2-13-07)

Sec. 27.06.190. Recreational vehicles.

Recreational vehicles placed on sites within all unnumbered and numbered A Zones, AE, AH, and AO Zones on the FIRM shall either:

(1) Be on the site for fewer than 180 consecutive days, or

(2) Be fully licensed and ready for highway use; or

(3) Meet the permitting, elevation, and anchoring requirements for manufactured homes as set forth herein.

A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick-disconnect type utilities and security devices, and has no permanently attached additions.
(Ord. No. 47-346, § 19, 2-13-07)

Sec. 27.06.200. Variance procedures.

(a) The Floodplain Administrator shall hear and decide appeals and requests for variances from the floodplain management requirements of this ordinance. Applications for variance shall be in writing and on forms provided by the Administrator. A nonrefundable processing fee of one hundred dollars shall be paid to the Administrator at the time of the filing of a request for variance.

(b) The subdivision committee of the Metropolitan Area Planning Commission, the first Appeal Board shall hear appeals from any decision or determination made by the Administrator in the enforcement or administration of this chapter. Such appeals shall be in writing and shall specify the grounds for appeal. Such appeals shall be filed with the secretary of the Metropolitan Area Planning Commission within thirty days of the decision or determination appealed from. The secretary of the Metropolitan Area Planning Commission shall fix a reasonable time for the hearing of appeals, giving notice to the appealing party or parties at least fifteen days prior to such hearing. Appeals shall be decided within a reasonable time. At appeal hearings, any party may appear in person, by agent or by attorney. The subdivision committee may reverse or affirm, in whole or in part or modify the decision or determination appealed from and may make such order, requirement, decision or determination as may be appropriate under the circumstances.

(c) Any person aggrieved by the decision or determination of the subdivision committee may appeal such decision or determination to the Metropolitan Area Planning Commission, the second Appeal Board. The procedure for such appeals shall be as set forth above in subsection (a) for appeals from decisions by the Floodplain Administrator.

(d) Any person aggrieved by the decision or determination of the Metropolitan Area Planning Commission may appeal such decision or determination to the city council, the third Appeal Board. The city council will review such decision or determination in the manner provided above for appeals from decisions by the Administrator, except that such appeals shall be filed with the city clerk and the notice to the appealing party or parties shall be provided at least five days prior to such hearing.

(e) In passing upon such applications for variances, the Administrator and Appeal Boards shall consider all technical data and evaluations, all relevant factors, standards specified in other sections of this ordinance, and the following criteria:

(1) Danger to life and property due to flood damage and erosion damage;

(2) Danger that materials may be swept onto other lands to the injury of others;

(3) Susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

(4) Importance of the services provided by the proposed facility to the community;

(5) Necessity of the facility of a waterfront location, where applicable;

(6) Availability of alternative locations, not subject to flood damage, for the proposed use;

(7) Compatibility of the proposed use with existing and anticipated development;

(8) Relationship of the proposed use to the comprehensive plan and floodplain management program for that area;

(9) Safety of access to the property in times of flood for ordinary and emergency vehicles;

(10) Expected heights, velocity, duration, rate of rise and sediment transport of the flood water, if applicable, expected at the site; and,

(11) Costs of providing governmental services during and after flood conditions, including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, and water systems; streets; and bridges;

(f) Variances may be issued for new construction and substantial improvement to be erected on a lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level, providing items one (1) through five (5) below have been fully considered. As the lot size increases beyond the one-half acre, the technical justification required for issuing the variance increases.

(1) Variances may be issued for the reconstruction, rehabilitation, or restoration of structures listed on the National Register of Historic Places, the State Inventory of Historic Places, or local inventory of historic places upon determination, provide the proposed activity will not preclude the structure's continued historic designation.

(2) Variances shall not be issued within any designated floodway if any increase in flood discharge would result.

(3) Variances shall only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.

(4) Variances shall only be issued upon: (a) showing of good and sufficient cause, (b) determination that failure to grant the variance would result in exceptional hardship to the applicant, and (c) determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

(5) The City of Wichita shall notify the applicant in writing that: (a) the issuance of a variance to construct a structure below base flood level will result in increased premium rates for flood insurance up to amounts as high as $25.00 for $100.00 of insurance coverage (b) such construction below the base flood level increases risks to life and property. Such notification shall be maintained with the record of all variance actions as required by this ordinance.

(Ord. No. 47-346, § 20, 2-13-07; Ord. No. 49-258, § 6, 4-10-12; Ord. No. 50-381, § 6, 12-13-16)

Sec. 27.06.210. Penalties.

Violation of the provisions of this chapter or failure to comply with any of its requirements (including violations of conditions and safeguards established in connection with granting of variances) shall constitute a misdemeanor. Any person who violates this chapter or fails to comply with any of its requirements shall, upon conviction thereof, be fined not more than $500.00 for each such violation. Each day any such violation continues, shall be considered a separate offense. Nothing herein contained shall prevent the City of Wichita or other appropriate authority from taking such other lawful action as is necessary to prevent or remedy any violation of this chapter. (Ord. No. 47-346, § 21, 2-13-07)

Title 28

ZONING*

Ch. 28.04. Zoning Code

Ch. 28.05. Subdivision Regulations

Ch. 28.06. Landscaping and Parking Lot Screening

Ch. 28.07. Airport Overlay Districts

Ch. 28.08. Airport Hazard Zoning Code

***Case law reference—**For case upholding validity of former zoning ordinance of city, see *Ware v. City of Wichita,* 214 P. 99. See also, *West v. City of Wichita,* 234 P. 979. For case in connection with former zoning ordinance, see *City of Wichita v. Schwertner,* 286 P. 266. For case upholding authority of city to bring an action in equity to enforce a zoning ordinance, and holding that the fact that certain city officials had permitted the ordinance to be violated for a number of years did not stop the city from bringing an action to enforce the ordinance, see *Leigh v. City of Wichita,* 83 P. (2d) 644.

Cross reference—As to planning commission, see § 2.12.380.

CHAPTER 28.04. ZONING CODE*

Sec. 28.04.010. Adopted.

Sec. 28.04.010. Adopted.

The Wichita-Sedgwick County Unified Zoning Code, October 28, 1999 Edition, prepared by the Wichita-Sedgwick County Metropolitan Area Planning Commission (MAPC), is by reference incorporated in and by this publication made part of this title and chapter as fully as though set out at length herein and is adopted as the zoning regulations for the City of Wichita. Said Unified Zoning Code as recommended by the MAPC at public hearing on October 28, 1999, incorporates all amendments to the June 19, 1997 Edition of the Unified Zoning Code including the amended screening and buffering requirements for new multi-family and manufactured home park developments as adopted by Ordinance No. 43-659, the amended cleanup amendments as adopted by Ordinance No. 43-721, the amended revisions to the tattoo and body piercing parlors as adopted by Ordinance No. 44-098, and numerous cleanup amendments as adopted by Ordinance No. 44-308.

(Ord. No. 46-113 §§ 1—2; Ord. No. 44-714 § 1; Ord. No. 44-427 § 1; Ord. 44-116 §§ 1—7; Ord. No. 43-559)

Editor's note—The Wichita-Sedgwick County Unified Zoning Code incorporated by reference herein can be found online at https://library.municode.com/ks/wichita-sedgwick_county_unified/codes/unified_zoning_code.

*__Cross reference—__As to sale of alcoholic liquor at premises located in areas zoned for a more restricted or higher use than "LC"—light commercial, see § 4.04.020. As to zoning restrictions for amusement parks, see § 3.20.030.

CHAPTER 28.05. SUBDIVISION REGULATIONS

Sec. 28.05.010. Adopted—Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition.
Sec. 28.05.020. Section 7-103 (A).
Sec. 28.05.025. Section 7-103 (E).
Sec. 28.05.030. Section 7-106.
Sec. 28.05.035. Section 7-204 (N).
Sec. 28.05.040. Section 8-102.
Sec. 28.05.045. Section 8-103 (F).
Sec. 28.05.050. Section 8-103 (K).
Sec. 28.05.055. Section 9-103 (G).
Sec. 28.05.060. Section 11-102.
Sec. 28.05.010. Adopted—Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition.

Sec. 28.05.010. Adopted—Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition.

The Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition, prepared by the Wichita-Sedgwick County Metropolitan Area Planning Commission is by reference incorporated in and by this publication made part of this title and chapter as fully as though set out at length herein and is adopted as the Subdivision Regulations for the City of Wichita.

(Ord. No. 44-212; Ord. No. 48-180, § 1, 2-10-09; Ord. No. 48-415, § 1, 9-15-09)

Editor's note—Ord. No. 48-180, §§ 1, 2, adopted February 10, 2009, repealed Ch. 28.05, §§ 28.05.010—28.05.026, in their entirety. Formerly, said sections pertained to the Wichita-Sedgwick County Subdivision Regulations, January 28, 1999 Edition Amendments and derived from Ord. No. 44-850; Ord. No. 45-498, § 1.

Sec. 28.05.020. Section 7-103 (A).

Section 7-103 (A) of "The Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition" as adopted by reference in Section 28.05.010 of the Code of the City of Wichita as amended by Ordinance No. 48-180 is hereby amended to read as follows:

(A) Special Flood Hazard Areas mapped on Flood Insurance Rate Maps produced by the Federal Emergency Management Agency (FEMA) are under the provisions of Chapter 27.06 of the City of Wichita Code or Chapter 13 of the Sedgwick County Code, which establishes requirements for the lowest floor elevation of residential structures as established by the Federal Flood Insurance Study. For each development in such Special Flood Hazard Areas, a Development Permit must be obtained from the local code enforcement agency. In addition, service facilities shall be elevated or floodproofed above the Base Flood Elevation in compliance with Chapter 27.06 of the City of Wichita Code. Land in Special Flood Hazard Areas may be subdivided or developed into platted lots or unplatted tracts or parcels subject to the provisions of the applicable code.

(Ord. No. 48-415, § 1, 9-15-09)

Sec. 28.05.025. Section 7-103 (E).

Section 7-103 (E) of "The Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition" as adopted by reference in Section 28.05.010 of the Code of the City of Wichita as amended by Ordinance No. 48-180 is hereby amended to read as follows:

(E) All plats should be designated in North American Vertical Datum of 1988 (NAVD 88) to conform to the National Flood Insurance Program Studies.

(Ord. No. 48-415, § 2, 9-15-09)

Sec. 28.05.030. Section 7-106.

Section 7-106 of "The Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition" as adopted by reference in Section 28.05.010 of the Code of the City of Wichita as amended by Ordinance No. 48-180 is hereby amended to read as follows:

7-106. Erosion Stormwater and Soil Control: Mitigation Plans to Control Pollution. The City or County Engineer will require mitigation plans to control pollution of storm water, in accordance with the applicable Stormwater Pollution Prevention ordinance or federal or state regulations, as part of the development plan for the subdivision. Any mitigation plans for the control of pollution of stormwater required by federal, state or local law, statute, regulation, ordinance, or resolution; or by any local Na-

tional Pollution Discharge Elimination System permit, must be included as part of the development plan for the subdivision. On land subject to excessive soil movement by the forces of wind and/or water and that may cause environmental health hazards, appropriate preventive measures shall be a part of the development plan for the subdivision.

(Ord. No. 48-415, § 3, 9-15-09)

Sec. 28.05.035. Section 7-204 (N).

Section 7-204 (N) of "The Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition" as adopted by reference in Section 28.05.010 of the Code of the City of Wichita as amended by Ordinance No. 48-180 is hereby amended to read as follows:

(N) For lots abutting local platted floodways, or in areas of inadequate drainage, the platting of a minimum building opening elevation shall be required. For lots in or abutting the mapped floodplain, the platting of the lowest floor elevation shall be required. The minimum building opening elevation shall be expressed in North American Vertical Datum of 1988 (NAVD 88). The elevation requirement shall be indicated on the face of the plat as well as referenced in the plattor's text.

(Ord. No. 48-415, § 4, 9-15-09)

Sec. 28.05.040. Section 8-102.

Section 8-102 of "The Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition" as adopted by reference in Section 28.05.010 of the Code of the City of Wichita as amended by Ordinance No. 48-180 is hereby amended as follows:

In the list of Improvements, replace "Roadways, Alley, Curbs and Gutters, Sidewalks and Street Drainage Facilities" with "Roadways, Alley, Curbs and Gutters, Sidewalks" and also replace "Storm Sewer Systems/Storm Water Management" with "Storm Sewer Systems/ Storm Water Management Facilities/Street Drainage Facilities".

In Column A, replace "Storm Water Engineer" with "City Engineer**".

After the chart, add the following, "**The City's Storm Water Engineer shall have oversight over all stormwater quality matters, requirements of the NPDES program, stormwater management plans, subdivision grading/drainage plans and watershed planning."

(Ord. No. 48-415, § 5, 9-15-09)

Sec. 28.05.045. Section 8-103 (F).

Section 8-103 (F) of "The Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition" as adopted by reference in Section 28.05.010 of the Code of the City of Wichita as amended by Ordinance No. 48-180 is hereby amended to read as follows:

(F) Storm Drainage System. For urban subdivisions, a storm drainage system that is both separate and independent of the sanitary sewer system and meets all of the specifications and requirements of the appropriate engineer shall be required. Plans for mitigating stormwater pollution may be required by the engineer. The engineer shall use structural and nonstructural methods that prevent the degradation of stormwater quality to create a long-term, positive impact on the quality of stormwater runoff. Storm sewers shall be connected to the existing storm drainage system of the City where the subdivision is located, the system of the nearest city or to the nearest major water channel. If such connections are not available, other adequate means for the discharge of the storm drainage system shall be provided by the subdivider.

(Ord. No. 48-415, § 6, 9-15-09)

Sec. 28.05.050. Section 8-103 (K).

Section 8-103 (K) of "The Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition" as adopted by reference in Section 28.05.010 of the Code of the City of Wichita as amended by Ordinance No. 48-180 is hereby amended to read as follows:

(K) Best Stormwater Management Practices. The subdivider shall take measures during construction to minimize soil erosion

and sedimentation by wind or water, and to mitigate stormwater pollution as required by the City Engineer, Stormwater Engineer, County Engineer, and/or Chapter 16.32 of the City Code.

(Ord. No. 48-415, § 7, 9-15-09)

Sec. 28.05.055. Section 9-103 (G).

Section 9-103 (G) of "The Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition" as adopted by reference in Section 28.05.010 of the Code of the City of Wichita as amended by Ordinance No. 48-180 is hereby amended to read as follows:

(G) All plans shall be based on North American Vertical Datum of 1988 (NAVD 88) for vertical control.

(Ord. No. 48-415, § 8, 9-15-09)

Sec. 28.05.060. Section 11-102.

Section 11-102 of "The Wichita-Sedgwick County Subdivision Regulations, December 4, 2008 Edition" as adopted by reference in Section 28.05.010 of the Code of the City of Wichita as amended by Ordinance No. 48-180 is hereby amended by replacing the definitions for Abut, Alley, Benchmark, City, Comprehensive Development Plan, County, Lot line, Manufactured Home Park, Owner, Screening, Setback line, Street, and Topography with the following:

ABUT: Touching, adjoining or contiguous; as distinguished from lying near to or adjacent.

ALLEY: A public right-of-way along the side of or in the rear of lots intended to provide a secondary means of access to and from streets and the lots. An alley is not intended for general traffic circulation.

BENCHMARK: Surveying mark made in some object that is permanently fixed in the ground, showing the height of that point in relation to North American Vertical Datum of 1988 (NAVD 88).

CITY: The City is defined as the City of Wichita, Kansas, unless the context clearly indicates that another city is being referenced.

COMPREHENSIVE DEVELOPMENT PLAN: Preparing for Change: The Wichita-Sedgwick County Comprehensive Plan, as adopted by the Sedgwick County Board of Commissioners and the Wichita City Council in June 1993, the 2005 Update to the Wichita-Sedgwick County Comprehensive Plan: Preparing for Change, as adopted by the Sedgwick County Board of Commissioners and Wichita City Council in May 2005, and as amended from time to time.

COUNTY: The County is defined as unincorporated Sedgwick County, Kansas, unless the context clearly indicates that another meaning is intended.

LOT LINE: A line bounding a lot.

MANUFACTURED HOME PARK: A parcel of land that has been planned and improved in some manner, and used or intended to be used by occupied manufactured homes not placed on permanent foundations. The term "manufactured home park" does not include sales lots where unoccupied manufactured homes, whether new or used, are parked for the purposes of storage, inspection or sale; nor does it include a tract of land where a manufactured home as a second dwelling unit has been permitted on a temporary basis as a conditional use in accordance with the Wichita-Sedgwick County Unified Zoning Code.

OWNER: The property owner of record.

SCREENING: Decorative fencing, walls, vegetation or landscaped earth berms maintained for the purpose of concealing from view the area behind such fence, wall, vegetation or berms.

SETBACK LINE: The line that is the distance that is required by the Wichita-Sedgwick County Unified Zoning Code between a principal structure or accessory structure and the property line of the lot on which the structure is located. Also known as building setback line or yard line.

STREET: A public thoroughfare of such width to conform to these Regulations.

TOPOGRAPHY: The configuration of a surface area showing North American Vertical Datum of 1988 (NAVD 88).

(Ord. No. 48-415, § 9, 9-15-09)

CHAPTER 28.06. LANDSCAPING AND PARKING LOT SCREENING

Sec. 28.06.010. Purpose.
Sec. 28.06.020. Definitions.
Sec. 28.06.030. Required landscaped street yard.
Sec. 28.06.040. Required buffers.
Sec. 28.06.050. Parking lot screening and landscaping.
Sec. 28.06.060. Percentage of living materials.
Sec. 28.06.070. Other landscape regulations.
Sec. 28.06.080. Maintenance.
Sec. 28.06.090. Exceptions and modifications.
Sec. 28.06.100. Water conservation measures; rain shut-off devices required.
Sec. 28.06.110. Enforcement/assurances for installation and completion.
Sec. 28.06.120. Administrative remedies.
Sec. 28.06.130. Penalties.
Sec. 28.06.140. Appeals.
Sec. 28.06.150. Amendments.
Sec. 28.06.160. Severability.

Sec. 28.06.010. Purpose.

The purpose of this Chapter is to enhance the attractiveness of the community through the establishment of landscape requirements for urban development projects. The standards herein shall apply to all new development and certain levels of redevelopment, renovation and/or additions within the corporate boundaries of the City, except single-family residences and duplexes. Parking lot screening and landscaping, but not Landscaped Street Yard requirements, shall apply to development occurring on property in the "CBD" Central Business District as described in the Wichita / Sedgwick County Unified Zoning Code (UZC).

Properly established and maintained landscaping can improve the livability of neighborhoods, enhance the appearance of commercial areas, increase property values, improve relationships between incompatible uses, screen undesirable views, soften the effects of structural features, and contribute to a positive overall image of the community.
(Ord. No. 50-340 § 1, 10-11-16)

Sec. 28.06.020. Definitions.

As used in this Chapter:

"Average Lot Depth" means the horizontal distance between the front and rear lot lines measured along the median between the Side Lot Lines. For multiple-frontage lots, the average Lot Depth measured from each street shall be divided by the total number of streets to obtain one average depth for the lot.

"Berm(s)" means an earthen mound designed to provide visual interest, screen undesirable views and/or decrease noise.

"Board of Zoning Appeals" means the Wichita Board of Zoning Appeals.

"Conifer Tree" means an evergreen tree, usually of the pine, spruce or juniper genus, bearing cones and generally used for its screening qualities. For purposes of these regulations, a Conifer Tree shall be considered a shade tree if it is at least five (5) feet tall when planted and is one of the Evergreen Trees listed in the Kansas Forest Service's publication titled "Preferred Tree Species for South Central Kansas" and will obtain a mature height of twenty (20) feet or greater.

"Deciduous Trees" means trees and shrubs that shed their leaves annually.

"Evergreen" means trees and shrubs that do not shed their leaves annually.

"Ground Cover" means living Landscape Materials or low-growing plants, other than turf grasses, installed in such a manner so as to provide a continuous cover of the ground surface, and which upon maturity normally reach the average maximum height of not greater than twenty-four (24) inches.

"Landscape Materials" means living plants, such as trees, shrubs, vines, ground cover, flowers and grasses. It may include such nonliving features as bark, wood chips, rock, brick, stone or similar materials (monolithic paving not included) and structural and/or decorative features such as fountains, pools, gazebos, walls, fences, benches, light fixtures, sculpture pieces, and earthen Berms, terraces and mounds.

"Landscaping" means the product of careful planning and installation using any combination of Landscape Materials subject to the limitations set out in this Chapter which results in the softening of building lines, the modification of

environmental extremes, the definition of separate functional spaces and the presentation of a pleasing visual effect on the premises.

"Metropolitan Area Building and Construction Department (MABCD)" means the Wichita-Sedgwick County Metropolitan Area Building and Construction Department.

"Mulch" means nonliving organic, inorganic or synthetic materials customarily used in landscape design and maintenance to retard soil erosion, retain moisture, insulate soil against temperature extremes, suppress weeds, deter soil compaction and provide visual interest.

"Ornamental Tree" means a Deciduous Tree possessing qualities such as flowers or fruit, attractive foliage, bark or shape, with a mature height generally under forty (40) feet. Trees listed in the Kansas Forest Service's publication titled "Preferred Tree Species for South Central Kansas" or the Wichita Landscape Ordinance Guidebook as small Deciduous Trees and medium Deciduous Trees will be classified as ornamental trees for purposes of this Chapter.

"Parking Lot" means an area not within a building or other structure where motor vehicles may be stored for the purpose of temporary, daily or overnight off-street parking. This definition shall include vehicle queuing or holding areas such as at car washes, drive-up windows, gasoline pumps, etc., but shall not include vehicle storage and display area for new and used vehicle sales lots or parking for one-family and two-family dwellings.

"Shade Tree" means usually a Deciduous Tree—rarely an Evergreen—planted primarily for its high crown of foliage or overhead canopy. Trees listed in the Kansas Forest Service's publication titled "Preferred Tree Species for South Central Kansas" or the Wichita Landscape Ordinance Guidebook as large Deciduous Trees and very large Deciduous Trees will be classified as Shade Trees for purposes of this Chapter.

"Shrub" or "Shrubbery" means a deciduous or evergreen woody plant smaller than a tree and larger than ground cover, consisting of multiple stems from the ground or small branches near the ground, which attains a height of twenty-four (24) inches or more.

"Site Specific" means that the plant material chosen to be used on a site is particularly well suited to withstand the physical growing conditions which are normal for that location.

"Street Frontage" means the length of the property abutting on one side of a street measured along the dividing line between the property and the street.

"Street Wall" means any building wall facing a street.

"Street Wall Line" means a line that extends from the building parallel to the Street Wall until it intersects a side or rear lot line or a wall line of another building.

"Street Yard" means the area of a lot which lies between the property line abutting a street and the Street Wall Line of the building. If a building has a rounded Street Wall or if the building is on an irregular-shaped lot, street wall lines extending parallel to the street wall from the points of the Street Wall closest to the side property lines shall be used to define the limits of the Street Yard.

"Unified Zoning Code (UZC)" means the Wichita-Sedgwick County Unified Zoning Code.

"Xeriscape" means water conservation through creative landscaping which applies the following seven principles:

(1) Plan and design carefully;

(2) Improve the soil water-holding capacity through use of soil amendments;

(3) Use efficient irrigation methods and equipment;

(4) Select Site-Specific, hardy plant materials, and then group all plants according to their sun and moisture needs;

(5) Use turf grass appropriately in locations where it provides functional benefits;

(6) Mulch;

(7) Give appropriate and timely maintenance.

"Zoning Lot" means a parcel of land that is designated by its owner or developer at the time of applying for an occupancy certificate as a tract, all of which is to be used, developed or built upon as a unit under single ownership. Such lot may consist of

(1) A single lot of record; or

(2) A portion of a lot of record; or

(3) A combination of complete lots of record, complete lots and portions of lots of record, or portions of lots of record.

(Ord. No. 50-340 § 2, 10-11-16)

Sec. 28.06.030. Required landscaped street yard.

A. The minimum amount of Landscaped Street Yard for all uses except single-family, two-family and neighborhood swimming pools, as defined by the UZC, which are adjacent to at-grade expressway or freeway frontage roads, arterial or collector streets designated in the Kansas Department of Transportation Functional Classification Map, or which are adjacent to local streets when across from residential districts, except as provided for in Subsections (A)(4) and (A)(5) of this Section, shall be as follows:

Average Lot Depth (ft.)	*Square Footage Factor (ft^2 / linear foot)*
175.00 or less	8
175.01—275.00	10
275.01—375.00	15
Greater than 375.00	20

1. The square footage per linear foot of Street Frontage may be reduced twenty (20) percent if the minimum planting size of materials specified in Subsections (C)(3) and (C)(4) of this Section is increased by one hundred (100) percent or more.

2. Plants, installation and maintenance techniques meeting the principles of Xeriscape shall be utilized for landscaping required by these regulations.

3. On a Zoning Lot with frontage on two or more streets, each of which requires a Landscaped Street Yard, the Landscaped area requirement shall be based on the sum of the Street Frontages, less the greatest perpendicular distance between the property line abutting a street and the Street Wall Line, multiplied by the factor based on average Lot Depth as referenced above. On multiple-frontage lots where the use of the average Lot Depth, as defined by the Chapter, would require more Landscaped Street Yard than would be required if each Street Frontage were calculated individually, the lesser of the calculations may be used. Although the required amount of Landscaped Street Yard does not have to be equally distributed to the various street frontages, there shall be no less than twenty (20) percent of the total required landscaping within any Street Yard.

4. On collector streets with industrial zoning on both sides of the street, the requirement for a Landscaped Street Yard shall be automatically waived.

5. In the "CBD" Central Business District, no Landscaped Street Yard shall be required.

6. No Landscaped Street Yard shall be required for "vehicle and equipment sales" as defined by the UZC.

B. Minimum number of trees within Street Yards:

There shall be a minimum of one (1) shade tree or two (2) ornamental trees for every five hundred (500) square feet or fraction thereof of the required minimum Landscaped Street Yard.

C. Design standards for Landscaped Street Yards and required trees:

1. Trees shall be located in planter areas of sufficient size and design to accommodate the growth of the trees and protected to prevent damage to the trees by vehicles. A minimum of twenty-five (25) square feet of permeable ground surface area per tree is recommended.

2. The required trees may be clustered along a particular façade or boundary of the project. Trees need not be spaced evenly, although it is permissible to do so, provided adequate distance is maintained between individual specimens. Minimum spacing for ornamental trees is recommended to be fifteen (15) feet and forty (40) or more feet for Shade Trees. The trees shall be selected from a list of tree types that are commonly known to grow in the Wichita area and are listed in the publication prepared by the Kansas Forest Service and titled "Preferred Tree Species for South Kansas" or the Wichita Landscape Ordinance Guidebook.

3. The minimum size at the time of planting of required trees shall be as follows: Shade Trees—two (2) inch or greater caliper measured at a height of six (6) inches above the ground; ornamental trees—one (1) inch or greater caliper measured six (6) inches above the ground; Conifer Trees five (5) feet or more in height.

4. Shrubbery may be substituted for up to one-third (1/3) of the required trees at the rate of ten (10) Shrubs for one (1) required Shade Tree. Substitute Shrubbery shall be of a Site-Specific type that attains a mature height of at least two (2) feet and shall be no less than two (2) gallon container size at the time of planting.

5. The required trees (Shade Trees or ornamental trees but not Conifers) and/or Shrubs may be located in part or in total in adjacent public right of way area if approved as to location by a Right-of-Way Use Permit issued by the Traffic Engineer and approved as to type of tree by the superintendent of landscape and forestry and no conflicts exist with utility locations. Trees and Shrubs should be located no closer than six (6) feet to the Curb line of adjacent streets. Trees should also be located no closer than six (6) feet to either side of a sidewalk unless root barrier materials are installed at the sidewalk on the tree side.

6. Fences which are twenty-five (25) percent or more opaque in design shall be constructed no higher than four (4) feet above the finished grade in a required Landscaped Street Yard when located within a right triangle, the sides of which are formed by a line extending twenty-five (25) feet toward the shrubbery, wall or fence from any vehicular access point along the street right-of-way line and a line extending six (6) feet away from and perpendicular to the street right-of-way line from the same access point.

   Shrubbery and walls which are twenty-five (25) percent or more opaque in design shall be constructed no higher thirty three (33) inches above the bottom of the gutter or the lowest point of the traveled surface of the roadway in a required Landscaped Street Yard when located within a right triangle, the sides of which are formed by a line extending twenty-five (25) feet toward the shrubbery, wall or fence from any vehicular access point along the street right-of-way line and a line extending six (6) feet away from and perpendicular to the street right-of-way line from the same access point.

   Shrubbery, walls, fences, or other obstructions located near the intersection of streets shall maintain sight visibility clearance as specified in Chapter 11.22 of the City Code. All opaque fences shall be located toward the private property side of required Landscaped Street Yards along street right of way to maintain a landscaped appearance along the street.

7. The intent of the Landscaped Street Yard is to visually soften the masses of building and parking lots and to separate building areas from parking areas through the use of plantings. Paved plazas may be credited to a maximum of fifty (50) percent of required Street Yard Landscaping area if such plazas have trees and/or

Shrubbery which provide(s) visual relief to those building elevations forming the major public views of the project. Paved walkways and bike paths connecting public sidewalks to buildings located on private property within a Landscaped Street Yard may also be credited to a maximum of fifty (50) percent of the required Landscaped Street Yard.

(Ord. No. 50-340 § 3, 10-11-16)

Sec. 28.06.040. Required buffers.

A. Buffers between Nonresidential and Residential Development:

1. Where Required. A buffer is required along the common property line of any nonresidential project in any zoning district where such project is adjacent to a residential district.

2. Design Standards. There shall be a minimum of one (1) Shade Tree or two (2) ornamental trees for every forty (40) feet or fraction thereof of lot line abutting the residential district. The trees should generally be evenly spaced, but may be located in a manner to achieve maximum screening benefit. Trees shall be within fifteen (15) feet of the property line common to the residential district. If utility and/or drainage easements occupy this fifteen (15) foot perimeter area, the trees may be located outside the easements. Each tree shall be in a planting area having a minimum permeable ground surface of twenty-five (25) square feet. The minimum size at the time of planting of required trees shall be as follows: Shade Trees—two (2) inch or greater caliper measured at a height of six (6) inches above the ground; ornamental trees—one (1) inch or greater caliper measured at a height of six (6) inches above the ground; Conifer Trees—five (5) feet or more in height. These trees shall be in addition to any screening required by Wichita/Sedgwick County Unified Zoning Code.

B. Buffers between adjacent Multi-Family Residential or Manufactured Home Parks and Single-Family/Two-Family Residential Projects:

1. Where Required. A buffer is required along the side and/or rear lot line of any multi-family project (a project with three or more dwelling units in one building) or manufactured home park in any zoning district where such a project is adjacent to a single-family or two-family zoning district.

2. Design Standards. The required buffer shall be a minimum of fifteen (15) feet in width. There shall be a minimum of one (1) Shade Tree or two (2) ornamental trees and five (5) Shrubs for every thirty (30) feet of the length of the buffer; alternatively, a minimum of one (1) Shade Tree or two (2) ornamental trees for every twenty (20) feet of length of the buffer may be used. A minimum of one-third (1/3) of the trees and Shrubs shall be evergreen. The minimum size at the time of planting of required trees shall be as follows: Shade Tree —two (2) inch or greater caliper measured at a height of six (6) inches above the ground; ornamental trees—one (1) inch or greater caliper measured at a height of six (6) inches above the ground; Conifer Trees—five (5) feet or more in height. The minimum size of Shrubs shall be two (2) gallon containers. The width of the required buffer may be reduced to twelve (12) feet if the minimum planting size of materials is increased by one hundred (100%) percent or more. Parking shall be screened from adjacent residential areas in accordance with the parking lot screening requirements listed below. Required screening may be located within the buffer area. Parking may not be located within the buffer area.

(Ord. No. 50-340 § 4, 10-11-16)

Sec. 28.06.050. Parking lot screening and landscaping.

A. Required Screening. All new parking lots or additions to parking lots shall be continuously screened from view from adjacent residential

districts and certain types of streets when within one hundred fifty (150) feet thereof (measured from the property line adjacent to the street), except at points of vehicular and/or pedestrian ingress and egress, to a minimum height of three (3) feet above the parking surface by the use of Berms and/or plantings, with the following exemptions: (1) open parking lots in one-family and two-family residential projects in any zoning district and (2) open parking lots in industrial districts located on collector streets with industrial zoning on both sides of the street. Walls and fences may be used in combination with Berms and plantings but may not be used as the sole means of screening a parking lot, except in the Central Business District where walls and fences may be used as the sole screening if they are compatible (i.e., similar in color, texture and pattern) with the architectural character of adjacent buildings and if it can be demonstrated that Berms or plantings would result in loss of parking spaces. This requirement shall apply to all at-grade expressway, freeway, and arterial and collector Street Frontages and to all local streets when parking is across from residential zoning districts. On corner lots where parking is within one hundred fifty (150) feet of two (2) or more streets but not all the Street Frontages require parking lot screening (due either to type of street or zoning district across the street), the parking lot screening shall wrap around the corner of the lot from the frontage which does require screening for a distance of not less than one hundred (100) feet.

1. Walls or fences used in combination with Berms and/or plantings shall avoid a blank and monotonous appearance by such measures as architectural articulation and placement of vines, shrubs and/or trees.

2. All screening and landscape elements may be located within and be substituted for required landscape buffers and Street Yards, provided sight clearances are maintained as specified in this Chapter and provided further that the minimum number of trees otherwise required in the yard or buffer are established in the Street Yard. Shrubs used in meeting screening requirements shall not be substituted for required trees.

3. Where walls and fences are to be combined with vines and shrubs to create the screening effect, they should be located in a planting strip with a minimum width of no less than three (3) feet from the edge of any adjacent sidewalk. Landscape Materials shall be located on the public right-of-way side of the wall or fence.

4. Where shrubs, trees and other landscape materials are used exclusively to create the screening effect, they should be located in a planting strip with a minimum width of no less than five feet from the edge of the parking lot paving to the edge of any adjacent sidewalk.

5. Where Berms are to be combined with trees, lawn, turf, grasses, shrubs, walls or fences to create the screening effect, they should be located in a planting strip with a minimum width of no less than ten (10) feet from the edge of the parking lot paving to the edge of any adjacent sidewalk.

6. Planting strips associated with parking lot screening may be located in whole or in part on public street right-of-way on the basis of an approved landscape plan, provided adequate public right of way exists, there is no less than fourteen and one-half feet of right-of-way between the property line and the curb, no conflict exists with public utilities, and the location of Berms, walks, irrigation fixtures and other permanent landscape features is subject to a Right of Way Use Permit granted by the City Engineer.

7. The minimum size at the time of installation of plant materials used for parking lot screening shall be as follows: Shade Trees—two (2) inch or greater caliper measured at a height of six (6) inches above the ground; ornamental trees—one (1) inch or greater caliper measured six (6) inches above the ground; Conifer

Trees—five (5) feet or more in height; Shrubs—eighteen-inch (18) height. Shrubs used for parking lot screening shall be expected to obtain a height of at least thirty-six (36) inches within the third year after planting. Spacing between shrubs will depend upon the type of Shrub but shall be close enough to achieve a visual screen when the plants reach maturity.

8. Evergreen and/or deciduous plant materials may be used, provided a solid screening effect is maintained on at least two-thirds (2/3) of the treated street frontage during all seasons of the year.

9. All screening materials and landscape features shall be protected from vehicular damage or encroachment by appropriately located curbs or wheel stops.

B. Required Landscaping. All new parking lots or additions to parking lots which create twenty (20) or more spaces and which are required to provide screening in accordance with this Chapter shall also be required to provide at least one (1) shade tree or two (2) ornamental trees for each twenty (20) parking spaces or fraction thereof over twenty (20) spaces. Vehicle queuing and holding areas shall not be counted when determining the number of spaces in a lot. Up to one-half (1/2) of all trees required by the Landscaped Street Yard calculations may be used to satisfy these parking lot landscaping requirements. The trees shall be located within and around the parking lot to enhance the appearance of the lot and to reduce the deleterious effect of large expanses of paved areas. In parking lots containing fifty (50) spaces or more with two (2) or more drive aisles and three (3) or more parking bays, all of which are contiguous, at least one-half (1/2) of the required trees shall be planted in interior planting islands with each tree having a minimum permeable ground surface area of twenty-five (25) square feet. Trees shall be protected from possible damage caused by vehicle bumpers by the use of bumper blocks, raised curbs or other protective means. Whenever this requirement results in loss of potential spaces to the extent that the number of parking spaces required by the UZC cannot then be provided, an adjustment in the number of parking spaces shall automatically be granted without having to receive Board of Zoning Appeals' approval. The minimum acceptable tree size at the time of installation shall be a two (2) inch caliper for a shade tree and a one (1) inch caliper for an ornamental tree, both measured at a height of six inches above the ground.
(Ord. No. 50-340 § 5, 10-11-16)

Sec. 28.06.060. Percentage of living materials.

Unless otherwise specified, required landscape area shall consist of a minimum of fifty-five (55) percent in ground surface covering by living grass or other plant materials. The foliage crown of trees that may extend over monolithic paved surfaces beyond the required landscaped area or over nonliving surfaces within the required landscaped area shall not be used in the fifty-five (55) percent or other required percentage calculation. The remaining forty-five (45) percent of the required landscape area may be covered with bark, wood chips, rock, bricks, stone, or similar materials (monolithic paving not included). An effective weed barrier shall be required in nonliving landscaped areas. The use of nonliving materials in required landscape areas for other than mulching around trees, shrubs and planting beds shall be on the basis of a landscape plan submitted for approval to the planning department.
(Ord. No. 50-340 § 6, 10-11-16)

Sec. 28.06.070. Other landscape regulations.

A. Landscaping shall not conflict with the traffic visibility requirements in Chapter 11.22 of this Code.

B. The use of artificial trees, shrubs, vines, turf, or other plants as an outside Landscape Material is not allowed.

C. The planting of Ulmus pumila (Siberian elm) in required landscape areas is not allowed.

D. The planting of female or cotton-bearing cottonwood trees is not allowed in any required landscaped area.

E. Clumped or multi-trunked trees, where used, instead of single-trunk trees, shall be credited as only one of the required trees.

F. Landscaping shall not interfere with the general function, safety or accessibility of any gas, electric, water, sewer, telephone, or other utility easement. Landscaping shall be limited to an eight (8) inch mature height within three (3) feet of a fire hydrant, traffic sign, traffic signal or utility structure.

G. The existing indigenous vegetation on a site is encouraged to be retained in a development project and may be credited toward required landscaping in this Chapter, provided this vegetation is adequately protected during construction to insure long-term survival.

H. Where a calculation of a requirement results in a fractional number (such as 14.2 required trees), the requirement shall be considered the next greatest whole number (such as fifteen (15) required trees).

I. Landscaping in the right of way of a state highway shall be approved by the district engineer, where applicable.

J. Prior to Excavation for screening or landscape purposes within public right-of-way or easements, the location of all underground utilities shall be determined by calling the Kansas One-Call System and physically locating such utilities.

K. Berms, irrigation systems, street furniture, entry monuments, fountains, statuary or similar landscape features may be located within public street rights of way, provided adequate right-of-way exists and a Right-of-Way Use Permit is granted by the City Engineer.

L. Walls on permanent foundations and fences over eight (8) feet in height require a building permit. Walls shall not be constructed within utility easements or street right of way; provided, however, that wall segments on column footings may be permitted across easements if determined appropriate by the City Engineer.

M. Landscape plans shall be submitted showing the location of all Landscape Materials and shall be drawn to scale with the scale and north arrow indicated, as well as names of all adjacent streets, the lot dimensions, the location of all utility and drainage easements, and the legal description of the Zoning Lot. The plans shall contain a listing of the proposed plant materials indicating their numbers, names (both botanical and common) and sizes at the time of planting. The plans shall also state how water is to be provided to plant materials. Copies of the plans shall be submitted to the Metropolitan Area Planning Department in the quantity required by current policy. Statements setting out requirements I, J, K and L above should be included on the landscape plan if they apply to the project. The number of parking spaces within parking lots shall be shown. Calculations of the amount of required Landscaped Street Yard and number of parking lot trees, as well as the amount and number actually provided, shall be included as part of the landscape plan.

N. No more than seventy-five (75) percent of the required landscape areas shall be covered by turf grasses unless the grass is buffalo grass. In addition to required shrubs and trees, a landscape plan may not provide for more than eight-five (85) percent buffalo grass;

O. Plants shall be high quality nursery-grown stock which meets the American Association of Nurserymen standards as specified by the American National Standards Institute in ANSI Z60.1-2014 *et seq*.
(Ord. No. 50-340 § 7, 10-11-16)

Sec. 28.06.080. Maintenance.

A. The landowner is responsible for the maintenance of all Landscaping Materials and shall keep them in a proper, neat and orderly appearance free from refuse and debris at all times.

B. Maintenance shall include mowing, trimming, weeding, cultivation, mulching, tightening and repairing of guys and stakes, resetting plants to proper grades and upright position, restoration of planting saucer, fertilizing, pruning, disease and insect control and other necessary operations.

C. All landscaped areas, except those in the Central Business District "CBD", shall be provided with a readily available permanent water supply; provided, however, that landscaped areas utilizing drought-tolerant plants may use a temporary above ground system and shall be required to provide irrigation for the first two (2) growing seasons only. Irrigation shall not be required for established trees and natural areas that remain undisturbed by development activities. Irrigation systems shall be designed and operated in a manner to avoid water on impervious surfaces and public streets. Long, narrow landscaped areas are difficult to irrigate efficiently, therefore landscaped areas less than five (5) feet in any dimension shall not be irrigated with overhead spray sprinklers. Drip irrigation is acceptable.

D. Disturbed soil between trees and Shrubs in the planting beds shall be mulched, planted or otherwise treated to prevent wind and water erosion.

E. Plants which die shall be replaced within sixty (60) days or, if weather prohibits replanting within that time, then replanting shall occur within the first thirty (30) days of the next planting season.
(Ord. No. 50-340 § 8, 10-11-16)

Sec. 28.06.090. Exceptions and modifications.

The provisions of this Chapter may be modified and/or trade-offs permitted with respect to dimension or location within a property boundary. Permitted forms of modification and exception are identified as follows:

A. For purposes of application of this Chapter, no buffer or screening requirement located on an adjacent property may be utilized unless written permission is granted by the adjacent property owner to utilize existing screening or to allow permission for screening to be planted on the adjacent property, as a portion of a required buffer or screen, nor allowed to be used in a trade-off or modification of a standard.

B. The change in use or redevelopment of a site utilizing all or parts of an existing building(s) shall not be required to meet the landscaping requirements of this Chapter, except as follows:

1. When the value of the new addition, renovation or redevelopment exceeds fifty (50) percent of the value of the existing development, as determined by the County Appraiser's office; or
2. When there is more than a thirty (30) percent increase of the gross floor area on the site.

New parking lots and additions to parking lots which are required to provide landscaping and/or screening in accordance with this Chapter, shall do so even if there is no increase in gross floor area or value.

C. Lots or tracts of land abutting the rights of way of a railroad zoned for residential use and held by title separate from all abutting lands shall not be required to provide landscaped buffers along the common property line.

D. In those instances where a development site abuts a public park or other permanent public open space and where at least one hundred (100) feet of undisturbed natural foliage exists along the common lot line, a landscaped buffer requirement along the common property line is not required; provided, however, loading docks, trash containers, and storage areas on the development site along the common line shall be screened as provided within the UZC.

E. For purposes of this Section, the Planning Director shall have the authority to interpret the language and modify the provisions of this Section in such a manner and extent that is appropriate for the public interest and consistent with the purposes and intent of this Chapter. Appeals of the decisions of Planning Director shall be filed with the Board of Zoning Appeals. If in the opinion of the Planning Director there exists extraordinary conditions of topography, existing vegetation, land ownership, site

boundaries and dimensions, adjacent development characteristics or other circumstances not provided for in this Section, the Planning Director may modify or vary the strict provisions of this Section in such a manner and to such an extent as is deemed appropriate to the public interest, provided that the purposes and intent of this Chapter are maintained through such modification or variance.

F. No property owner obtaining a permit for a project involving a new building or building addition shall be required to expend more than four (4) percent of the total construction cost for materials and installation costs associated with landscaping and parking lot screening required by this ordinance. No property owner obtaining a permit for a project involving only a new or expanded parking lot, with no building construction, shall be required to expend more than eight (8) percent of the total construction cost for materials and installation costs associated with parking lot landscaping and screening required by the ordinance codified in this Section. In order to qualify for this exception, the property owner must submit a bona fide bid from a licensed contractor for the total project construction cost, and a bona fide bid from a licensed contractor or nurseryman for materials and installation costs for an approved landscape plan. The bid for landscaping must distinguish those items which are required by the ordinance from any other items which are not required. If the total cost of required landscaping items exceeds the applicable percentage as specified above, then the property owner may select items at his discretion to delete from the approved plan, and submit the list of items to be deleted as an addendum to the approved plan.

G. The preservation and protection from construction damage of each existing tree of six (6) or more inches in trunk diameter (measured six (6) inches above the ground) within the Street Yard, parking lot, or perimeter buffer area of a site shall account for the equivalent two (2) trees required in that Landscaped Street Yard, parking lot, or perimeter buffer area of the site.

(Ord. No. 50-340 § 9, 10-11-16)

Sec. 28.06.100. Water conservation measures; rain shut-off devices required.

When meeting the landscape requirements outlined in this Chapter, property owners are encouraged to use water in the most efficient way possible. A number of principles for effective water usage are found in the accepted approach to landscaping called Xeriscape. Property owners are encouraged to take advantage of the water-saving practices set out in these principles.

Regardless of the extent to which the principles of Xeriscape are applied automatic irrigation systems installed in association with the landscaping requirements of this Section shall be equipped with moisture-sensing devices or automatic rain shut-off devices that forestall scheduled watering cycles when moisture adequate to sustain healthy plant life is present.

(Ord. No. 50-340 § 10, 10-11-16)

Sec. 28.06.110. Enforcement/assurances for installation and completion.

Prior to the issuance of a certificate of occupancy for any structure where Landscaping is required, except when a certificate of occupancy is obtained by providing acceptable assurance to the City guaranteeing the completion of such landscaping, all work as indicated on a landscaping plan shall be inspected and approved by the MABCD. At the time of inspection, the landowner shall possess a copy of the approved landscaping plan for use by the MABCD.

At the time of inspection, MABCD shall check the quantities and locations of Landscape Materials. At the time of such inspection, the landowner shall warrant that the completed landscaping complies with the requirements of this Section. Such warranty shall include the quantities, locations, species and sizes of plants and other

landscape materials used for compliance. In the event that an inspection is not conducted by the MABCD prior to the issuance of a certificate of occupancy because acceptable assurance has been provided to the City guaranteeing the completion of such Landscaping, such inspection shall be done by the MABCD subsequent to the installation of such Landscaping but prior to the release or expiration of the acceptable assurance.

A landowner may obtain a final certificate of occupancy for a structure prior to the completion of required Landscaping work if the completion is not possible, due to seasonal or weather conditions, and if the landowner submits the necessary assurances to the MABCD for the completion of the Landscaping. The acceptable assurance guaranteeing the completion of the landscaping, such as an irrevocable letter of credit, certified check, or other acceptable assurance, shall be equal to one hundred twenty-five (125) percent of the cost of the Landscaping work, and shall be accompanied by a written assurance that such landscaping will be completed to the satisfaction of the MABCD.
(Ord. No. 50-340 § 11, 10-11-16)

Sec. 28.06.120. Administrative remedies.

Until the provisions of this Chapter, including the conditions of any permits issued thereunder, have been fully met, the City may withhold issuance of any building permit, certificate of occupancy or inspection required under the current Unified Trade and Building Code or the UZC or the City may issue cease and desist orders for further development.
(Ord. No. 50-340 § 12, 10-11-16)

Sec. 28.06.130. Penalties.

Any person, individual, partnership, corporation or association who violates any of the provisions of this Chapter and who fails to correct such a violation upon which a citation has been served is guilty of a misdemeanor and, upon conviction, shall be punished by a fine not to exceed one thousand dollars ($1,000) or by imprisonment of not more than six (6) months, or by both such fine and imprisonment. Each day any violation hereof is found to exist or continues to exist shall be a separate offense and shall be punishable as provided for by this Section.
(Ord. No. 50-340 § 13, 10-11-16)

Sec. 28.06.140. Appeals.

Any person aggrieved by the administration or interpretation of any of the terms or provisions of this Chapter may appeal to the Board of Zoning Appeals which, after hearing and with notice to the applicant and adjoining property owners as provided by Sections 2.12.590 through 2.12.610 of the City Code, may reverse, affirm or modify, in whole or in part, the order, requirement, decision or determination as ought to be made, and to that end shall have the powers of the department or official from whom the appeal is taken.
(Ord. No. 50-340 § 14, 10-11-16)

Sec. 28.06.150. Amendments.

Any amendments to this Chapter, shall be forwarded to the Wichita-Sedgwick County Metropolitan Area Planning Commission for their review and comment.
(Ord. No. 50-340 § 15, 10-11-16)

Sec. 28.06.160. Severability.

If any Section or provision of this Chapter is for any reason held illegal, invalid, or unconstitutional, such action shall not affect the remaining provisions of this ordinance, which shall remain valid to the extent possible.
(Ord. No. 50-340 § 16, 10-11-16)

CHAPTER 28.07. AIRPORT OVERLAY DISTRICTS

Sec. 28.07.010. Title.
Sec. 28.07.020. Intent and purpose.
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Sec. 28.07.110. Validity.

Sec. 28.07.010. Title.

Chapter 28.07 of the code of the city shall be known and may be cited as the "McConnell Airport Overlay Districts."
(Ord. No. 41-495 § 1)

Sec. 28.07.020. Intent and purpose.

The intent and purpose of the airport overlay districts is to specify land use controls in addition to those in the underlying zoning district classifications that will ensure a compatible relationship between air force base operations and other land uses in the vicinity of these operations. These districts will protect both the public and the airport by reducing to a minimum, land uses that concentrate large numbers of persons underneath runway takeoff and approach paths, where aircraft accidents are most likely to occur and noise levels are inappropriate for urban-density residential and high intensity nonresidential uses. The area protected falls into both airport hazard zones and accident potential zones.

Based upon the January, 1987 Air Installation Compatible Use Zone Study (AICUZ) for McConnell Air Force Base and based upon the revised accident data for the proposed 1990 AICUZ reports, the governing body finds and determines that airport overlay districts defined herein are areas in significant danger of aircraft accidents because such areas are beneath airspace (takeoffs and approach paths) where the potential for aircraft accidents is likely to occur. The measurements for these districts in this chapter are subject to amendment as changes occur in the takeoff and approach paths, and as types of aircraft operations change.

All uses shall be in compliance with the airport hazard zoning code (Chapter 28.08). In the event of conflict between any airport zoning regulations and any other city regulation applicable to the same property, the more stringent limitation or regulation shall govern and prevail.
(Ord. No. 41-495 § 2)

Sec. 28.07.030. Definitions.

This chapter incorporates the definitions as adopted by reference in Chapter 28.04, and for the purpose of this chapter, the following terms are defined as follows:

ACCIDENT POTENTIAL ZONE (APZ): Land area identified by the Air Installation Compatible Use Zone Study (AICUZ), McConnell AFB, Kansas (January 1987), to be in significant danger of aircraft accidents by being beneath that airspace (takeoff and approach paths) where the potential for aircraft accidents is most likely to occur.

AIRPORT HAZARD ZONE: Any area of land or water where manmade structures, trees or use of land can obstruct the airspace required for the flight of aircraft in landing and taking off at any airport.

AIRPORT OVERLAY DISTRICT: An additional level of zoning requirements providing an extra layer of protection for those parcels of lands within the accident potential zones.

FLOOR AREA RATIO (FAR): The relative comparison of building area to land area determined by dividing the total floor area of all buildings on a platted lot or tract by the total area of the lot or tract.

UNDERLYING ZONE: The existing zoning district classification beneath the airport overlay zone.
(Ord. No. 41-495 § 3)

Sec. 28.07.040. Districts.

The districts of this chapter are in addition and supplemental to those contained in Chapter 28.04. The airport overlay districts for McConnell Air Force are identified as:

AOD II-N-Airport Overlay District II-North

AOD III-N-Airport Overlay District III-North

These airport overlay districts shall be shown on the official map. For the purposes of establishing the map, the following measurements shall be used:

Airport Overlay District II-North (AOD II-N): This district begins three thousand seven hundred fifty feet from the ends of the McConnell Air Force Base parallel runways (19R and 19L) and measures four thousand two hundred fifty feet in length to the northeast. The width of AOD R-N is three thousand eight hundred feet which comprises of an overlap of two three-thousand-foot widths centered upon each of the two parallel runways centerlines which, in turn, are separated by eight hundred feet on centerline.

Airport Overlay District III-North (AOD III-N): This district extends northeast from AOD II-N six thousand feet in length, three thousand eight hundred feet in width.

In the event of conflicts between the official map and these measurements, boundaries established by the map shall control.

Where property is unplatted or undeveloped, only such portions of that land actually within the boundary lines of any airport overlay district shall be considered included therein.

Whenever the boundary line of any airport overlay district divides a platted lot or a building, that entire lot or building is deemed to be within the overlay district.

If a platted lot or building is located within two overlay districts, that entire lot or building is deemed to be within the more restrictive district.

In the event the city shall annex any land included in the McConnell Airport overlay districts established by Sedgwick County, such annexed land shall be subject to this chapter under the procedures of Section 28.04.160A and shall continue to be classed according to and subject to the regulations of the county resolution until the zoning districts or regulations are changed by ordinance.
(Ord. No. 41-495 § 4)

Sec. 28.07.050. official map.

The location and boundaries of the districts shall be shown as specified on the "Official Zoning Map, City of Wichita, Kansas" (Section 28.04.200).
(Ord. No. 41-495 § 5)

Sec. 28.07.060. Use regulations—AOD II-N.

No use shall be allowed in this district except those permitted by this chapter.

PERMITTED USES are all uses permitted by the underlying zoning district, except for the following list of prohibited uses.

1. Residential uses with less than five acres of lot area per dwelling unit;
2. Transient lodging, hotels, motels, recreational vehicle parks;
3. Restaurants, drinking establishments, taverns, private clubs;
4. Retail food stores with gross floor area exceeding three thousand square feet;
5. Hospitals, sanitariums, nursing homes;
6. Day care centers (adults and children) and halfway houses and group homes;
7. Public and private schools (all levels), libraries, museums;
8. Churches and related facilities;
9. Correctional facilities;
10. All indoor/outdoor entertainment and/or recreational facilities that would attract more than twenty-five spectators and/or participants per acre at any one time.

(Ord. No. 41-495 § 6)

Sec. 28.07.070. Use regulations—AOD III-N.

No use shall be allowed in this district except those permitted by this chapter.

PERMITTED USES are all uses permitted by the underlying zoning district, except for the following list of prohibited uses:

1. Residential units with less than six thousand square feet of lot area per dwelling unit.
2. All uses prohibited in AOD II-N, 2 through 10.

(Ord. No. 41-495 § 7)

Sec. 28.07.080. General use regulations.

The following regulations apply to all districts.

1. All regulations of the underlying zone will apply except where specifically modified by this chapter.
2. No lot or tract devoted to retail trade, service or office uses shall exceed 0.2 FAR.
3. No land area used in a building permit that has maximized the FAR allowed may be used in another building permit.
4. All uses legally established on a parcel or tract prior to the effective date of the ordinance codified in this chapter which do not otherwise meet the special requirements of these overlay districts shall be considered permitted uses under this regulation, subject to the following requirements:
   a. The reconstruction, relocation, or conversion of any use or building must be for the same use, similar use, or use of lesser intensity (as determined by maximum occupancies permitted in the building code).
   b. The relocation of any use or building within the districts must be to a location on the same lot or tract or on an adjacent lot or tract that is under the same ownership, and shall not be to a more restrictive district or subdistrict. In the event a use or building is relocated, the use of the vacated building, lot or tract shall no longer be considered a permitted use under this subsection 4.
   c. Any use or building may be expanded so long as the total expansion of the use or building or lot area:
      (1) Does not exceed twenty-five percent of the use or building or lot area at the time of adoption of these regulations;
      (2) Does not violate the height limitations established in the airport hazard zoning code;
      (3) Is intended as an accessory use for storage, warehousing, or other similar low occupancy use; and
      (4) Does not result in an expansion into a more restrictive district or subdistrict.

      For purposes of this subsection 4e, increases in floor areas within an existing building or expansion outside the boundaries of these districts shall not be considered an expansion.
   d. Existing dwelling units may be expanded without any floor area limitation in accordance with the underlying zoning.
   e. The designation of any prior nonconforming use shall not be affected by this subsection 4.
      (5) Administrative offices, engineering offices, computer operations, and similar uses which are accessory to a main use of an industrial or manufacturing nature and are on the same lot or tract or one adjacent to the lot or tract containing the main use shall be considered as part of the industrial or manufacturing use.

(Ord. No. 41-495 § 8)

Sec. 28.07.090. Variance.

The board of zoning appeals is authorized to hear and decide appeals on the interpretation of

these provisions, and to review requests for variances in accordance with the code of the city, Section 2.12.590A and B.
(Ord. No. 41-495 § 9)

Sec. 28.07.100. Violation and penalty.

Any person who shall violate, neglect or refuse to comply with, or who shall maintain, use or construct any building or premises in violation of any of the provisions of this chapter shall, upon conviction be punished by a fine not to exceed five hundred dollars or by imprisonment of not more than six months or both such three and imprisonment, and in addition to the above penalty such actions at law or suits in equity may be maintained by the city or any interested persons, as may be authorized by law.
(Ord. No. 41-495 § 10)

Sec. 28.07.110. Validity.

Should any section, clause or provision of this chapter be declared by any court of competent jurisdiction to be invalid, the same shall not affect the validity of this chapter as a whole, or any part thereof, other than the part so declared to be invalid.
(Ord. No. 41-495 § 11)

CHAPTER 28.08. AIRPORT HAZARD ZONING CODE*

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Sec. 28.08.010. Title and authority.

Created by the City of Wichita and Sedgwick County, the Wichita-Sedgwick County Airport Hazard Zoning Code shall regulate and restrict the height of structures, objects, natural vegetation growth, and other natural or constructed hazards to air navigation within the vicinity of Airports covered under this Code. Creation of appropriate zones and surfaces, establishment of the boundaries thereof, and provision for changes in the restrictions and boundaries of such zones are set forth in this Code.

The Wichita-Sedgwick County Airport Hazard Zoning Map and all notations, references, elevations, data, zone boundaries, and other information thereon are hereby adopted and incorporated into and made part of this Code. It is intended that such restrictions will be coordinated with the restrictions existing under the Wichita-Sedgwick County Unified Zoning Code, including the Airport Overlay District (A-O) contained therein. The official Wichita-Sedgwick County Airport Hazard Zoning Map may be amended from time to time, as provided for in this Code. (Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.020. Statement of purpose and findings.

(A) The Public-Use Airports (Wichita Dwight D. Eisenhower National Airport and Colonel James Jabara Airport) are acknowledged as public facilities that are essential to the local community.

(B) The McConnell Air Force Base is a Military Airport acknowledged as having a long history in Wichita and Sedgwick County, and it is essential to the local community.

(C) The Beech Factory and Cessna Aircraft Field Airports are acknowledged as private facilities, and their continued viability is essential to the local community.

(D) The creation or establishment of an Airport Hazard is a public nuisance and poses a potential concern to the surrounding communities served by the Airports.

(E) There shall be no creation or establishment of a hazard that endangers public health, safety, or welfare; impacts an individual's quality of life; or prevents the safe movement of aircraft at the Airports.

(F) For the protection of public health, safety, and general welfare, and for the promotion of the most appropriate use of land, it is necessary to prevent the creation or establishment of Airport Hazards.

(G) The prevention of Airport Hazards shall be accomplished, to the extent legally possible, by proper exercise of the police power of each respective jurisdiction.

(H) The prevention of new Airport Hazards and the elimination, removal, alteration, mitigation, or marking and lighting of existing Airport Hazards, are considered to be a public purpose for which the City of Wichita and/or Sedgwick

*__Editor's note—__Ord. No. 52-814, § I, adopted Sept. 23, 2025, repealed the former Ch. 28.08, §§ 28.08.010—28.08.260, and enacted a new Ch. 28.08 as set out herein. The former Ch. 28.08 pertained to similar subject matter, and derived from Ord. No. 43-719 §§ 1—26.

County may raise and expend public funds, as an incident to the operation of Airports, to acquire property interest therein.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.030. Applicability.

This Code encompasses the prescribed areas defined in this Code around the Airports, as shown on the officially adopted Wichita-Sedgwick County Airport Hazard Zoning Map.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.040. Definitions.

For the purposes of this Code, words and terms defined in this section shall be given the meanings set forth here. All other words shall be given their common, ordinary meanings, as the context may reasonably suggest.

In case of a dispute over the meaning of a term not defined here or over the application of a definition set forth here, the Zoning Administrator shall give a written interpretation in accordance with Section 28.08.150.

The intent of this Code is to capitalize or enclose in quotations the defined terms, but in those situations where this capitalization or punctuation is omitted, this does not override construing these terms in accord with their defined meanings.

(A) "Aircraft" means a device that is used or intended to be used for flight in the air, including but not limited to: fixed-wing airplanes (single-engine, multi-engine, jet, turbine and/or piston), rotorcraft (including helicopters), gliders, drones, airships, balloons, powered parachutes, and seaplanes.

(B) "Airport" means any area of land or water designed and set aside for the landing and taking-off of Aircraft. The term Airport includes Heliports set aside for the landing and taking-off of rotary wing Aircraft.

(C) "Airport Elevation" means the established Airport Elevation in feet above mean sea level, of the highest point on the landing area which is used or intended to be used for takeoff and landing operations.

(D) "Airport Hazard" means regardless of Height, any natural or constructed hazards to air navigation which may result in glare, visual impairment, wildlife attractants, or other hazards to pilots.

(E) "Airport Hazard Zoning Map" means the *Wichita-Sedgwick County Airport Hazard Zoning Map* compiled from the criteria in Title 14 Code of Federal Regulations Part 77 (14 CFR Part 77), *Objects Affecting Navigable Airspace.* It shows the Airport Hazard Zones, and five (5) Airport Overlay Surfaces and includes the layout of Runways, Airport boundaries, elevations, and area topography. Applicable height limitation areas are shown in detail.

(F) "Airport Overlay Surfaces" means surfaces intended to place height and land use conditions on land impacted by airport operations while retaining the existing underlying zone(s). The (14 CFR Part 77) surfaces and Runway protection zones have been combined to create five (5) overlay surfaces for each Airport identified in this Code. The five (5) specific surfaces create a comprehensive area focused on maintaining compatible land use around Airports.

(G) "Airport Reference Point" means a point at the approximate center of the Airport landing area as shown on the *Wichita-Sedgwick County Airport Hazard Zoning Map.*

(H) "Approach Surface" means a surface longitudinally centered on the extended Runway centerline; extending outward and upward from the end of the Primary Surface and at the same slope as the Approach Surface Height limitation slope set forth in Sections 28.08.050 through 28.08.100 of this Code. In plan view, the perimeter of the Approach Surface coincides with the perimeter of the approach.

(I) "Civilian Airport" means any Airport, public or private, that is not owned or operated by the government of the United States and used for military purposes.

(J) "Conical Surface" means the surface extending upward and outward from the periphery of the Horizontal Surface at a slope of twenty (20) feet horizontally for every one (1) foot vertically (twenty to one, 20:1) for a distance of four thousand (4,000) feet for Civilian Airports and seven thousand (7,000) feet for Military Airports. It is the outermost surface of the overlay areas and has the least number of land use restriction considerations.

(K) "Drone" means an unmanned Aircraft that is operated without the possibility of direct human intervention from within or on the Aircraft.

(L) "FAA" means the Federal Aviation Administration.

(M) "Governing Body" means the Wichita City Council within its incorporated limits and the Sedgwick County Commission for the remainder of unincorporated Sedgwick County.

(N) "Hard Surface" means a Runway consisting of an asphalt or concrete pavement. This does not include Runways consisting of grass or dirt surfaces.

(O) "Height" means the datum means sea level elevation unless otherwise specified, for the purpose of determining the maximum object Height limits in all zones set forth in this Code and shown on the *Wichita-Sedgwick County Airport Hazard Zoning Map.*

(P) "Heliport" means an area on land, water or upon a Structure set aside and used for the landing and takeoff of rotary wing Aircraft and additional facilities that may be provided for the fueling, refueling, repair and storage of rotary wing Aircraft.

(Q) "Horizontal Surface" means for Civilian Airports, the horizontal plane located one hundred fifty (150) feet above the established Airport Elevation, and which begins at the edge of the Transitional Surface and Primary Surface for a distance of five thousand (5,000) feet for Visual Approach Runways, or ten thousand (10,000) feet for all other Runways. For Military Airports, the inner Horizontal Surface is a horizontal plane one hundred fifty (150) feet above the established Airport Elevation, the perimeter of which in plan coincides with the perimeter of the inner Horizontal Surface. For Military Airports, the outer Horizontal Surface is a horizontal plane five hundred (500) feet above the established Airport Elevation, the perimeter of which in plan coincides with the perimeter of the outer Horizontal Surface.

(R) "Larger Than Utility Runway" means a Runway that is constructed for and intended to be used by propeller driven Aircraft of greater than twelve thousand five hundred (12,500) pounds maximum gross weight, and jet-powered Aircraft.

(S) "Manager" means at Wichita Dwight D. Eisenhower National Airport (KICT) and Colonel James Jabara Airports (KAAO), the Director of Airports of the Wichita Airport Authority; at McConnell Air Force Base (KIAB), the Wing Commander; and at Beech Factory Airport (KBEC) and Cessna Aircraft Field (KCEA), the person designated as such by the respective company.

(T) "Military Airport" means an Airport that is owned or operated by the government of the United States and used for military purposes.

(U) "Natural Vegetation" means any tree or other object of natural growth.

(V) "Nonconforming Use" means any preexisting Structure, object of natural growth, or use of land which is inconsistent with the provisions of this Code.

(W) "Non-Precision Instrument Runway" means a Runway with an existing instru-

ment approach procedure utilizing air navigation facilities with only horizontal guidance, or area type navigation equipment, for which a straight-in non-precision instrument approach procedure has been approved or planned, and for which no precision approach facilities are planned or indicated on an FAA planning document or Military Airport planning document.

(X) "Non-Public Use Airport" means any Airport designated for private or restricted use only; not open to the general public.

(Y) "Planning Commission" means the Wichita-Sedgwick County Metropolitan Area Planning Commission.

(Z) "Person" means an individual, firm, partnership, corporation, company, association, joint stock association or governmental entity; includes a trustee, receiver, assignee or similar representative of any of them.

(AA) "Precision Instrument Runway" means a Runway with an existing instrument approach procedure utilizing an instrument landing system (ILS) or precision approach radar (PAR). It also means a Runway for which a precision approach system is planned and is so indicated by an FAA-approved Airport layout plan, a military service-approved Military Airport layout plan, any other FAA planning document, or a military service Military Airport planning document.

(BB) "Primary Surface" means the surface that is longitudinally centered on a Runway. When the Runway has a specially prepared hard surface, the Primary Surface extends two hundred (200) feet beyond each end of that Runway. When the Runway has no specially prepared hard surface, the Primary Surface ends at each end of that Runway. The width of the Primary Surface is two hundred fifty (250) feet, or fifty (50) feet beyond the marked edge of a turf Runway, for Utility Runways with only visual approaches, and five hundred (500) feet for Utility Runways with non-precision instrument approaches. For other than Utility Runways, the width of the Primary Surface is five hundred (500) feet for Visual Runways with only visual approaches; five hundred (500) feet for Non-Precision Instrument Runways with visibility minimums greater than three-fourths (¾) statute mile; one thousand (1,000) feet for a Non-Precision Instrument Runway with a non-precision instrument approach with visibility minimums as low as three-fourths (¾) statute mile and for Precision Instrument Runways. The width of the Primary Surface of a Runway will be that width prescribed in 14 CFR Part 77 Subpart Section 77.19 for the most precise approach existing or planned for either end of that Runway. For Military Airports, Primary Surface means a surface longitudinally centered on each Runway with the same length as the Runway. The width of the Primary Surface for Runways is two thousand (2,000) feet. The elevation of any point on the Primary Surface is the same as the nearest point on the Runway centerline. For Heliports, Primary Surface means an area that coincides in size and shape with the designated takeoff and landing area of a Heliport. This surface is a horizontal plane at the elevation of the established Heliport elevation (see Airport Elevation).

(CC) "Public-Use Airport" means an Airport that is available for use by the general public without a requirement for prior approval of the Airport owner or operator.

(DD) "Runway" means a defined area on an Airport prepared for landing and takeoff of Aircraft along its length.

(EE) "Runway Approach Surface" means the critical overlay surface that reflects the approach and departure areas for each Runway at an Airport. The Runway Approach Surface is longitudinally centered on the extended Runway centerline and extends outward and upward

from the end of the Runway. The approach slope is twenty to one (20:1) for a distance of five thousand (5,000) feet for Visual Runways; thirty-four to one (34:1) for a distance of ten thousand (10,000) feet for all Non-Precision Instrument Runways other than utility; and fifty to one (50:1) for ten thousand (10,000) feet with an additional forty thousand (40,000)feet at a slope of forty to one (40:1) for all Precision Instrument Runways.

(FF) "Runway Protection Surface" means the area off the end of the Runway that is designed to provide a clear area, free of aboveground obstructions including Structures, objects and Natural Vegetation, to enhance the protection of people and property on the ground. This surface is intended to provide a clear area that is free of any above ground obstructions.

(GG) "Structure" means an object, including a mobile object, constructed or installed by man, including, but without limitation buildings, towers, smokestacks, poles, pole lines, light poles, signs, earth formations and overhead transmission lines.

(HH) "Transitional Surface" means the surface extending outward and upward at right angles to the Runway centerline and which extends at a slope of seven (7) feet horizontally for each one (1) foot vertically (seven to one, 7:1) from the sides of the Primary and Runway Approach Surfaces. The Transitional Surfaces extend to the point at which they intercept the Horizontal Surface at a height of one hundred fifty (150) feet above the established Airport Elevation. For those portions of the Precision Approach Surface which project through and beyond the limits of the Conical Surface, the Transitional Surfaces extend a distance of five thousand (5,000) feet measured horizontally from the edge of the Approach Surface and at right angles to the Runway centerline.

(II) "Utility Runway" means a Runway that is constructed for and intended to be used by propeller driven Aircraft of twelve thousand five hundred (12,500) pounds maximum gross weight and less.

(JJ) "Vertiport" means an area of land, water, or a structure used, or intended to be used, to support the landing, takeoff, taxiing, parking, and storage of powered-lift Aircraft.

(KK) "Visual Approach" means an approach to an Airport that is conducted with visual reference to the terrain.

(LL) "Visual Runway" means a Runway that is intended solely for the operation of Aircraft using Visual Approach procedures, with no straight-in instrument approach procedure and no instrument designation indicated on an FAA-approved Airport layout plan or a military service-approved Military Airport layout plan, or by any planning document submitted to the FAA by a competent authority.

(MM) "Zoning Administrator" means the individual appointed by the Director of the Wichita-Sedgwick County Metropolitan Area Planning Department to enforce the provisions of this Code.

(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.050. Airport overlay surfaces.

Airport Overlay Surfaces established by this Code include all the land lying beneath the Runway Protection Surface, Runway Approach Surfaces, Transitional Surfaces, Horizontal Surfaces, and Conical Surfaces of the Airports. These surfaces are as defined under Section 28.08.040, which are more specifically described in 28.08.060 through 28.08.100, and as shown on the Wichita-Sedgwick County Airport Hazard Zoning Map.

(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.060. Wichita Dwight D. Eisenhower National Airport.

(A) Airport Elevation. The established Airport Elevation is one thousand three hundred thirty-two (1,332) feet above mean sea level.

(B) Airport Surfaces and Height Limits. The various surfaces and Height limits for Wichita Mid-Continent Airport are shown on sheet one of the Wichita-Sedgwick County Airport Hazard Zoning Map, and are created and defined as follows:

(1) Runway Larger Than Utility With a Visibility Minimum Greater Than Three-fourths (¾) Mile Non-Precision Instrument Approach Surface (Runways 14 and 32). The inner edge of this Approach Surface coincides with the width of the Primary Surface and is five hundred (500) feet wide. The Approach Surface expands outward uniformly to a width of three thousand five hundred (3,500) feet at a horizontal distance of ten thousand (10,000) feet from the end of the Primary Surface of each Runway. Its centerline is the continuation of the centerline of the Runway. The applicable Height limitation slopes one (1) foot upward for each forty (40) feet outward, beginning at the end of, and at the same elevation as, the Primary Surface and extending to a horizontal distance of ten thousand (10,000) feet along the Runway centerline.

(2) Precision Instrument Runway Approach Surface. (Runways 1L, 19R, 1R and 19L) The inner edge of this Runaway Approach Surface coincides with the width of the Primary Surface and is one thousand (1,000) feet wide. The Runway Approach Surface expands outward uniformly to a width of sixteen thousand (16,000) feet at a horizontal distance of fifty thousand (50,000) feet from the end of the Primary Surface of each Runway. Its centerline is the continuation of the centerline of the Runway. The applicable Height limitation slopes one (1) foot upward for each fifty (50) feet outward, beginning at the end of, and at the same elevation as, the Primary Surface and extending to a horizontal distance of ten thousand (10,000) feet along the extended Runway centerline; thence slopes one (1) foot upward for each forty (40) feet outward to an additional horizontal distance of forty thousand (40,000) feet along the extended Runway centerline.

(3) Transitional Surfaces. The applicable Height limitation slopes one (1) foot upward for each seven (7) feet outward, beginning at the sides of, and at the same elevation as, the Primary Surface and the Runway Approach Surface, and extending to a Height of one hundred fifty (150) feet above the Airport Elevation. In addition to the foregoing, there are established Height limits sloping one (1) foot upward for each seven (7) feet outward beginning at the sides of, and at the same elevation as the Runway Approach Surface and extending to where they intersect the Conical Surface. Where Precision Instrument Runway Approach Surfaces project beyond the Conical Surfaces, there are established Height limits sloping one (1) foot upward for each seven (7) feet outward beginning at the sides of, and the same elevation as the approach surface, and extending a horizontal distance of five thousand (5,000) feet measured at ninety-degree (90°) angles to the extended Runway centerline.

(4) Horizontal Surface. The Horizontal Surface is established by swinging arcs of five thousand (5,000) feet radii for all Runways designated utility or visual and ten thousand (10,000) feet radii for all other Runways from the center of each end of the Primary Surface of each Runway and connecting the adjacent arcs by drawing lines tangent to those arcs. The radii of the arcs for each end of the Runway shall be the same and the radius used shall be the longest determined for either end. The applicable Height limitation is established at one hundred fifty (150) feet above the established Airport Elevation.

(5) Conical Surface. The Conical Surface is established as that area that commences at the periphery of the Horizontal Surface and extends outward for a horizontal

distance of four thousand (4,000) feet. The applicable Height limitation slopes one (1) foot upward for each twenty (20) feet outward beginning at the periphery of the Horizontal Surface and at one hundred fifty (150) feet above the established Airport Elevation and extending to a Height of three hundred fifty (350) feet above the Airport Elevation.

(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.070. Colonel James Jabara Airport.

(A) Airport Elevation. The established Airport Elevation is one thousand four hundred twenty (1,420) feet above mean sea level.

(B) Airport Surfaces and Height Limits. The various surfaces and Height limits for Colonel James Jabara Airport are shown on sheet one of the Wichita-Sedgwick County Airport.

(1) Runway Larger Than Utility With a Visibility Minimum as Low as Three-fourths (¾) Mile Non-Precision Instrument Approach Surface (Runway 36). The inner edge of this Runway Approach Surface coincides with the width of the Primary Surface and is one thousand (1,000) feet wide. The Runway Approach Surface extends outward uniformly to a width of four thousand (4,000) feet at a horizontal distance of ten thousand (10,000) feet from the end of the Primary Surface. Its centerline is the continuation of the centerline of the Runway. The applicable Height limitation slopes one (1) foot upward for each forty (40) feet outward, beginning at the end of, and at the same elevation as, the Primary Surface and extending to a horizontal distance of ten thousand (10,000) feet along the extended Runway centerline.

(2) Precision Instrument Runway Approach Surface (Runway 18). The inner edge of this Runway Approach Surface coincides with the width of the Primary Surface and is one thousand (1,000) feet wide. The Runway Approach Surface extends outward uniformly to a width of sixteen thousand (16,000) feet at a horizontal distance of fifty thousand (50,000) feet from the end of the Primary Surface. Its centerline is the continuation of the centerline of the Runway. The applicable Height limitation slopes one (1) foot upward for each fifty (50) feet outward, beginning at the end of, and at the same elevation as, the Primary Surface and extending to a horizontal distance of ten thousand (10,000) feet along the extended Runway centerline; thence slopes one (1) foot upward for each forty (40) feet outward to an additional horizontal distance of forty thousand (40,000) feet along the extended runway Centerlines.

(3) Transitional Surfaces. The applicable Height limitation slopes one (1) foot upward for each seven (7) feet outward, beginning at the sides of, and at the same elevation as, the Primary Surface and the Runway Approach Surface, and extending to a Height of one hundred fifty (150) feet above the Airport Elevation. In addition to the foregoing, there are established Height limits sloping one (1) foot upward for each seven (7) feet outward beginning at the sides of, and at the same elevation as the Runway Approach Surface, and extending to where they intersect the Conical Surface. Where Precision Instrument Runway Approach Surfaces project beyond the Conical Surface, there are established Height limits sloping one (1) foot upward for each seven (7) feet outward beginning at the sides of, and at the same elevation as the Runway Approach Surface and extending a horizontal distance of five thousand (5,000) feet measured at ninety-degree (90°) angles to the extended Runway centerline.

(4) Horizontal Surfaces. The Horizontal Surface is established by swinging arcs of five thousand (5,000) feet radii for all Runways designated utility or visual and ten thousand (10,000) feet radii for all other Runways from the center of each end of the Primary Surface of each

Runway and connecting the adjacent arcs by drawing lines tangent to those arcs. The radii of the arcs for each end of the Runway shall be the same and the radius shall be the longest determined for either end. The applicable Height limitation is established at one hundred fifty (150) feet above the established Airport Elevation.

(5) Conical Surfaces. The Conical Surface is established as that area that commences at the periphery of the Horizontal Surface and extends outward for a horizontal distance of four thousand (4,000) feet. The applicable Height limitation slopes one (1) foot upward for each twenty (20) feet outward, beginning at the periphery of the Horizontal Surface and at one hundred fifty (150) feet above the established Airport Elevation and extending to a Height of three hundred fifty (350) feet above the Airport Elevation.

(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.080. McConnell Air Force Base.

(A) Airport Elevation. The established Airport Elevation is one thousand three hundred seventy-one (1,371) feet above mean sea level.

(B) Airport Surfaces and Height Limits. The various surfaces and Height limits are shown on sheet one of the Wichita-Sedgwick County Airport Hazard Zoning Map, and are created and defined as follows:

(1) Military Runway Approach Surface (Runways 19L, 1R, 19R, and 1L). The inner edge of this Runway Approach Surface coincides with the width of the Primary Surface and is two thousand (2,000) feet wide for both ends of the Primary Surface of each Runway. The Runway Approach Surface expands uniformly to a width of sixteen thousand (16,000) feet at a horizontal distance of fifty thousand (50,000) feet from both ends of the Primary Surface of each Runway. Its centerline is the continuation of the centerline of the Runway. The applicable Height limitation slopes one (1) foot upward for each fifty (50) feet outward, beginning at the end of, and at the same elevation as, the Primary Surface, extending along the extended Runway centerline until it reaches a Height of five hundred (500) feet above the established Airport Elevation. It then continues horizontally at this elevation to a point fifty thousand (50,000) feet from the point of beginning.

(2) Transitional Surfaces. The applicable Height limitation slopes one (1) foot upward for each seven (7) feet outward, beginning at the end of, and at the same elevation as, the Primary Surface and the Runway Approach Surface, and extending to a Height of one hundred fifty (150) feet above the Airport Elevation. In addition to the foregoing, there are established Height limits sloping one (1) foot upward for each seven (7) feet outward beginning at the sides of, and at the same elevation as the Runway Approach Surfaces, and extending to where they intersect the Conical Surface, or outer Horizontal Surface for Military Airports.

(3) Inner Horizontal Surfaces. For Military Airports the Inner Horizontal Surface is established by describing arcs with radii seven thousand five hundred (7,500) feet from the center of each end of the Primary Surface of each Runway and connecting the adjacent arcs by drawing lines tangent to those arcs. The Inner Horizontal Surface does not include the Runway Approach and Transitional Surfaces. The applicable Height limitation is established at one hundred fifty (150) feet above the established Airport Elevation.

(4) Outer Horizontal Surfaces. For Military Airports the Outer Horizontal Surface is established by constructing a line thirty thousand (30,000) feet from the periphery of the Conical Surface, but does not include Runway Approach Surfaces or Transitional Surfaces. The applicable

Height limitation is established at five hundred (500) feet above the established Airport Elevation.

(5) Conical Surfaces. The Conical Surface is established as the area that commences at the periphery of the Inner Horizontal Surfaces and extends outward for a horizontal distance of seven thousand (7,000) feet to a Height of five hundred (500) feet where it intersects the Outer Horizontal Surfaces. The applicable Height limitation slopes one (1) foot upward for each twenty (20) feet outward, beginning at the periphery of the Inner Horizontal Surface and at one hundred fifty (150) feet above the established Airport Elevation and extending to a Height of five hundred (500) feet above the Airport Elevation.

(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.090. Beech Factory Airport.

(A) Airport Elevation. The established Airport Elevation is one thousand three hundred ninety-eight (1,398) feet above mean sea level.

(B) Airport Surfaces and Height Limits. The various surfaces and Height limits for Beech Factory Airport are shown on sheet one of the Wichita-Sedgwick County Airport Hazard Zoning Map, and are created and defined as follows:

(1) Precision Instrument Runway Approach Surface (Runways 1, 19). The inner edge of this Runway Approach Surface coincides with the width of the Primary Surface and is one thousand (1,000) feet wide. The Runway Approach Surface extends outward uniformly to a width of sixteen thousand (16,000) feet at a horizontal distance of fifty thousand (50,000) feet from the end of the Primary Surface. Its centerline is the continuation of the centerline of the Runway. The applicable Height limitation slopes one (1) foot upward for each fifty (50) feet outward, beginning at the end of, and at the same elevation as, the Primary Surface and extending to a horizontal distance of ten thousand (10,000) feet along the extended Runway centerline; thence slopes one (1) foot upward for each forty (40) feet outward to an additional horizontal distance of forty thousand (40,000) feet along the extended Runway centerline.

(2) Transitional Surfaces. The applicable Height limitation slopes one (1) foot upward for each seven (7) feet outward, beginning at the end of, and at the same elevation as, the Primary Surface and the Runway Approach Surface, and extending to a Height of one hundred fifty (150) feet above the Airport Elevation. In addition to the foregoing, there are established Height limits sloping one (1) foot upward for each seven (7) feet outward beginning at the sides of, and at the same elevation as the Runway Approach Surface and extending to where they intersect the Conical Surface. Where Precision Instrument Runway Approach Surfaces project beyond the Conical Surface, there are established Height limits sloping one (1) foot upward for each seven (7) feet outward beginning at the sides of, and at the same elevation as the Runway Approach Surface and extending a horizontal distance of five thousand (5,000) feet measured at ninety-degree (90°) angles to the extended Runway centerline.

(3) Horizontal Surfaces. The Horizontal Surface is established by swinging arcs of five thousand (5,000) feet radii for all Runways designated utility or visual and ten thousand (10,000) feet radii for all other Runways from the center of each end of the Primary Surface of each Runway and connecting the adjacent arcs by drawing lines tangent to those arcs. The radii of the arcs for each end of the Runway shall be the same and the radius shall be the longest determined for either end. The applicable Height limitation is established at one hundred fifty (150) feet above the established Airport Elevation.

(4) Conical Surfaces. The Conical Surface is established as that area that commences

at the periphery of the Horizontal Surface and extends outward for a horizontal distance of four thousand (4,000) feet. The applicable Height limitation slopes one (1) foot upward for each twenty (20) feet outward, beginning at the periphery of the Horizontal Surface and at, one hundred fifty (150) feet above the established Airport Elevation and extending to a Height of three hundred fifty (350) feet above the Airport Elevation.

(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.100. Cessna Aircraft Field.

(A) Airport Elevation. The established Airport Elevation is one thousand three hundred seventy-eight (1,378) feet above mean sea level.

(B) Airport Surfaces and Height Limits. The various surfaces and Height limits for Cessna Airport are shown on sheet one of the Wichita-Sedgwick County Airport Hazard Zoning Map, and are created and defined as follows:

(1) Runway Larger Than Utility, Visibility Minimum Greater Than Three-fourths (¾) Miles, Non-Precision Instrument Approach Surface (Runways 17 and 35). The inner edge of this Runway Approach Surface coincides with the width of the Primary Surface and is five hundred (500) feet wide. The Runway Approach Surface expands outward uniformly to a width of three thousand five hundred (3,500) feet at a horizontal distance of ten thousand (10,000) feet from the Primary Surface. Its centerline is the continuation of the centerline of the Runway. The applicable Height limitation slopes one (1) foot upward for each forty (40) feet outward, beginning at the end of, and at the same elevation as, the Primary Surface and extending to a horizontal distance of ten thousand (10,000) feet along the extended Runway centerline.

(2) Transitional Surfaces. The applicable Height limitation slopes one (1) foot upward for each seven (7) feet outward, beginning at the end of, and at the same elevation as, the Primary Surface and the Runway Approach Surface, and extending to a Height of one hundred fifty (150) feet above the Airport Elevation. In addition to the foregoing, there are established Height limits sloping one (1) foot upward for each seven (7) feet outward beginning at the sides of, and at the same elevation as, the Runway Approach Surface and extending to where they intersect the Conical Surface.

(3) Horizontal Surfaces. The Horizontal Surface is established by swinging arcs of five thousand (5,000) feet radii for all Runways designated utility or visual and ten thousand (10,000) feet radii for all other Runways from the center of each end of the Primary Surface of each Runway and connecting the adjacent arcs by drawing lines tangent to those arcs. The radii of the arcs for each end of the Runway shall be the same and the radius shall be the longest determined for either end. The applicable Height limitation is established at one hundred fifty (150) feet above the established Airport Elevation.

(4) Conical Surfaces. The Conical Surface is established as that area that commences at the periphery of the Horizontal Surface and extends outward for a horizontal distance of four thousand (4,000) feet. The applicable Height limitation slopes one (1) foot upward for each twenty (20) feet outward, beginning at the periphery of the Horizontal Surface and at one hundred fifty (150) feet above the established Airport Elevation and extending to a Height of three hundred fifty (350) feet above the Airport Elevation.

(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.110. Spacing adjacent airports.

(A) No new Airport shall be established, nor shall any existing Airport be improved with approach guidance equipment, to enhance instrument flight rule (IFR) capabilities, any portion of a proposed or existing boundary will be under an Airport Overlay Zone established by this Code or

within a radius of eight (8) miles from an Airport Reference Point of an Airport established on the date of this Code, unless a permit has been granted in accordance with the provisions of this Code. Prior to granting any such permit, the Governing Body shall for the purpose of study, comment and recommendation, refer the matter to the Federal Aviation Administration, the manager of each Airport included within this Code, the Wichita-Sedgwick County Metropolitan Area Planning Department and to any other local planning body having either planning or land use control jurisdiction within the area affected.

(B) Exceptions to the spacing requirements provided herein may be granted by the Governing Body when all of the following conditions have been met:

1. Receipt of a proper application;
2. Referral of the matter to FAA, all Airports referenced in this Code, MAPC, and any other local planning body for study, comment, and recommendation;
3. A public hearing is held; and
4. A finding that special conditions exists which makes literal enforcement of the spacing requirements an unnecessary hardship and that an exception would not be contrary to public interest.

(C) If any of the aforementioned entities to whom the matter shall have been referred does not, within sixty (60) days, transmit a report to the Governing Body, then it shall be deemed to have approved the proposal; provided, however, that upon request of any such entity, the Governing Body shall grant a reasonable extension of such time.

(D) In granting such exception, the Governing Body shall impose special conditions which will ensure that public interest, existing public and private investment in Airports, and air safety are maintained.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.120. Airport height limitations and lighting requirements.

Unless otherwise provided for in this Code, no Structure, object, Natural Vegetation, or terrain shall be erected, altered, allowed to grow, or be maintained within any Airport Hazard Zone as specified in Section 28.08.170, or any Airport Overlay Surface established by this Code to a Height in excess of the applicable Height limitations established by 14 CFR Part 77, *Imaginary Surfaces,* as depicted on the Wichita-Sedgwick County Airport Hazard Zoning Map. Where two (2) or more surfaces overlap, the more restrictive limitation or requirement shall govern and prevail.

Lighting and marking requirements will be determined through an FAA 7460-1 airspace analysis. The owner of any Structure, object, Natural Vegetation, or terrain shall install, operate, and maintain such markers, lights, and other navigational aids necessary to indicate the presence of an Airport Hazard to Aircraft operators. Any permit or variance granted may, - if such action is deemed advisable to effectuate the purpose of this Code and is reasonable in the circumstances - be so conditioned as to require the owner of the Structure, object, or Natural Vegetation in question to install, operate, and maintain, at the owner's expense, such markings and lighting as specified by the standards in the most current version of FAA Advisory Circular (AC) 70/7460-1. If deemed necessary by the Governing Body, this condition may be modified to require the owner to permit the installation, operation, and maintenance of the necessary markings and lighting in accordance with the standards in the most current version of FAA AC 70/7460-1, at the expense of the owner(s) of the affected Airport.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.130. Use limitations within airport hazard zones and airport overlay surfaces.

Notwithstanding any other provision of this Code, no use may be made of land or water within any Airport Overlay Zones or any Airport Overlay Surfaces established by this Code in such manner as to make it difficult for pilots to

distinguish between airfield lights and other lights, result in glare in the eyes of the pilots using the Airports, create smoke, impair visibility, create bird strike hazards or otherwise in any way, endanger or interfere with the landing, takeoff or maneuvering of Aircraft intending to use the Airport.

A shield that reduces the amount of light visible from above and directs the light downward shall be required for all outdoor lights, except those incidental to residential uses, installed after the effective date of this Code, within the limits of the Horizontal, Inner-Horizontal, Transitional or Runway Approach Surfaces.

Nothing in this Code shall be construed as prohibiting the construction or maintenance of any Structure or growth of any Natural Vegetation to a Height of twenty-five (25) feet above the surface of the land.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.140. Nonconforming uses.

(A) Regulations Not Retroactive. The regulations prescribed by this Code shall not be construed to require the removal, lowering or other changes or alteration of any Structure or tree not conforming to the regulations as of the effective date of this Code or to otherwise interfere with the continuance of a nonconforming use. Nothing contained in this Code shall require any change in the construction, alteration or intended use of any Structure, the construction or alteration of which was begun prior to the effective date of this Code, and diligently prosecuted.

(B) Marking and Lighting. Notwithstanding the preceding provision of this section, the owner of any existing nonconforming Structure or tree shall operate and maintain such markers and lights in accordance with standards as set forth in the FAA Circular "Obstruction Marking and Lighting" (No. AC70/74609-1 F) to indicate to the operators of Aircraft in the vicinity of the Airports the presence of Airport Hazards. The maintenance, operation and installation of such markers and lights on such nonconforming Structures and trees, shall be the responsibility of the owner or owners of the affected Airport.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.150. Code administration and enforcement.

It shall be the duty of the Zoning Administrator to administer and enforce the regulations prescribed herein, including the authority to make written interpretations of this Code. Applications for Airport Hazard Zoning Permits, variances and written interpretations shall be made to the Zoning Administrator upon forms furnished by the Zoning Administrator. Airport Hazard Zoning Permit applications shall be either granted or denied by the Zoning Administrator in accordance with the regulations prescribed herein. Any variance shall be done in accordance with Section 28.08.180 and any appeal shall be done in accordance with Section 28.08.190. In addition, the Zoning Administrator may cause to be instituted in any court of competent jurisdiction an action to prevent, restrain, correct or abate any violation of this Code, or of any order or ruling made in connection therewith as provided by law.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.160. Airport hazard zoning maps.

The officially adopted Wichita-Sedgwick County Airport Hazard Zoning Map is to be kept on file in the office of the Zoning Administrator and the Metropolitan Area Planning Department. The map shall be amended as described in Section 28.08.200, when changes occur within the jurisdictional boundaries of the map.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.170. Airport hazard zoning permits.

Any tower, Structure, or object which transmits a signal requires an Airport Hazard Zoning Permit without exception. Any other Structure, object or Natural Vegetation which exceeds the Height limits specified in the Airport Hazard Zoning Map requires an Airport Hazard Zoning Permit, except as provided below.

Exceptions:

(1) In the area lying within the boundaries of Zone A shown on sheet two of the Wichita-Sedgwick County Airport Hazard

Zoning Map, no permit shall be required under this section for any Structure less than twenty-five (25) feet of vertical Height above the ground.

(2) In the area lying within the boundaries of Zone B shown on sheet two of the Wichita-Sedgwick County Airport Hazard Zoning Map, no permit shall be required under this section for any Structure less than fifty (50) feet of vertical Height above the ground, except when, because of terrain, land contour or topographic features, such Structure would extend above the Height limits prescribed for Runway Approach, Conical, Transitional or Horizontal Surfaces.

(3) In the area lying within the boundaries of Zone C shown on sheet two of the Wichita-Sedgwick County Airport Hazard Zoning Map, no permit shall be required under this section for any Structure less than one hundred (100) feet of vertical Height above the ground, except when, because of terrain, land contour, or topographic features, such Structure would extend above the Height limits prescribed for Runway Approach, Conical, Transitional or Horizontal Surfaces.

(4) In the area lying within the boundaries of Zone D shown on sheet two of the Wichita-Sedgwick County Airport Hazard Zoning Map, no permit shall be required under this section for any Structure less than two hundred (200) feet of vertical Height above the ground, except when, because of terrain, land contour, or topographic features, such Structure would extend above the Height limits prescribed for Runway Approach, Conical, Transitional or Horizontal Surfaces.

The applicant proposing any Structure, object or Natural Vegetation which exceeds the Height limits specified in the Airport Hazard Zoning Map, or a tower, Structure, or object of any Height which transmits a signal, shall utilize the FAA's Notice Criteria Tool. After utilizing the FAA Notice Criteria Tool, the following shall be submitted to the Zoning Administrator for review:

(1) A letter from the FAA Notice Criteria Tool that no Form 7460-1 is requested or required to be filed; or

(2) An FAA Obstruction Evaluation/Airport Airspace Analysis (OE/AAA) Determination.

It shall be the duty of the applicant to provide the Zoning Administrator with sufficient information to evaluate the proposed action. This information shall include, but not be limited to, the following:

- Contact information
- Structure information
- Site information
- Drawing information
- Effective radiated power (ERP) and frequencies emitted from the structure (if any), proximity to navigation facilities and potential impact to the assurance of navigation signal reception
- Identification of current and potential compatibility concerns
- FAA Obstruction Evaluation/Airport Airspace Analysis (OE/AAA) Determination (response to submittal of FAA Form 7460-1, *Notice of Proposed Construction or Alteration*). If, through use of the FAA's Notice Criteria Tool, it is determined that submittal of Form 7460-1 is not requested or required, documentation indicating this result must be provided.

The Zoning Administrator shall evaluate the proposal based on information provided by the applicant. The Zoning Administrator shall approve the permit if, after evaluation, the proposed project is found to be adequately compatible, in accordance with the provisions of this Code. Should the FAA issue a determination of air hazard or any other adverse or negative determination affecting Airport operations or if the proposed project is found to be incompatible after review, the Zoning Administrator shall

deny the permit. Should the permit be denied, the applicant may request an appeal or a variance, as prescribed in this Code.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.180. Variances.

(A) Any person desiring to erect or increase the Height of any Structure, or permit the growth of any Natural Vegetation, or use their property not in accordance with the regulations prescribed in this Code, may apply to the Governing Body for a variance from such regulations. The Governing Body may refer the application to the Planning Commission for study and recommendations. The application for variance shall be accompanied by a determination from the Federal Aviation Administration as to the effect of the proposal on the operation of air navigation facilities and the safe, efficient use of navigable airspace. Such variances may be allowed where it is duly found that literal application or enforcement of the regulations will result in unnecessary hardship and relief granted will not be contrary to the public interest, will not create a hazard to air navigation, will do substantial justice and be in accordance with the spirit and intent of this Code.

(B) No application for variance to the requirements of this Code shall be furnished by the Governing Body unless a copy of the application has been furnished to the Manager of the affected Airport(s) for comment as to the aeronautical effects of the variance. If the Manager of the affected Airport(s) does not respond to the Governing Body within fifteen (15) days after receipt, the Governing Body may act on its own to grant or deny the application.

(C) Any person aggrieved by any final decision of the Governing Body may appeal to any court of competent jurisdiction in Sedgwick County, Kansas as provided by law.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.190. Appeals.

(A) Any person aggrieved or affected by a decision of the Zoning Administrator made in administration of this Code, may appeal to the Governing Body.

(B) All appeals under this chapter must be made within thirty (30) days by filing with the Zoning Administrator a notice of appeal specifying the grounds thereof. The Zoning Administrator shall forthwith transmit to the Governing Body all papers constituting the record on which the action appealed was taken.

(C) An appeal shall stay all proceedings in furtherance of the action appealed from, unless the Zoning Administrator certifies to the Governing Body, after the notice of appeal has been filed, that by reason of the facts stated in the certificate, a stay would - in the opinion of the Zoning Administrator - cause imminent peril to life or property. In such a case, proceedings shall not be stayed except by order of the Governing Body and upon due cause shown.

(D) The Governing Body shall fix a reasonable time for the hearing of appeals, giving public notice by publication once in its official paper a minimum of fifteen (15) days prior to the hearing and due notice to the parties in interest, and shall decide the same within a reasonable time. Upon the hearing, any party may appear in person, by agent, or by attorney.

(E) The Governing Body may reverse or affirm, in whole or in part, or modify the order, requirement, decision, or determination appealed from and may make such order, requirement, decision, or determination as may be appropriate under the circumstances.

(F) The vote of a majority of the members of the Governing Body shall be sufficient to revise any order, requirement, decision, or determination of the Zoning Administrator, or to decide in favor of the applicant on any matter upon which it is required to pass under this Code, or to effect any variation in this Code.

(G) Any person aggrieved by any final decision of the Governing Body may appeal to any court of competent jurisdiction in Sedgwick County, Kansas as provided by law.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.200. Amendments.

Amendment or repeal of all or part of this Code shall be done in accordance with the

procedure prescribed by law for the adoption, amendment and repeal of Airport zoning regulations (K.S.A. 3-705). Any change in an Airport zoning classification shall be accomplished in the manner provided by law, after public hearing by the Planning Commission and public hearing and action of the Governing Body. Any change shall be noted on the particular Airport Hazard Zoning Map affected by such change which is on file in the office of the Zoning Administrator and in the office of the Wichita-Sedgwick County Metropolitan Area Planning Department, so that all such Airport Hazard Zoning Maps shall at all times reflect the current Airport zoning classification of land within such zones and surfaces.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.210. Penalties.

Notwithstanding any provision in this Code regarding the enforcement of the provisions of this Code by civil or other extraordinary provisions of law, each violation of this Code or any regulation, order or ruling promulgated under this Code, shall constitute a misdemeanor. Any violation occurring within the City shall constitute a misdemeanor with penalties not to exceed five hundred (500) dollars or imprisonment for not more than six (6) months for each offense, or both such fine and imprisonment. For any violation occurring within the unincorporated County, criminal penalties shall not exceed five hundred (500) dollars and any violation shall be a class H violation, with prosecution pursuant to Chapter 8 of the Sedgwick County Code. For purposes of these penalties, each day a violation continues to exist shall constitute a separate offense.
(Ord. No. 52-814, § I, 9-23-25)

Sec. 28.08.220. Conflicting regulations.

Where there exists a conflict between any of the regulations or limitations prescribed in this Code and any other regulations applicable to the same area (including 14 CFR Part 77, *Objects Affecting Navigable Airspace*), whether the conflict be with respect to Height or Structures, the use of land, or any other matter, the more stringent limitation or requirement shall govern and prevail.
(Ord. No. 52-814, § I, 9-23-25)

Title 29

SOLAR ENERGY

Ch. 29.04. Solar Energy Installations

CHAPTER 29.04. SOLAR ENERGY INSTALLATIONS

Sec. 29.04.010. Adoption.
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Sec. 29.04.040. Section 108 amended.
Sec. 29.04.050. Certificates, examinations, cancellations, licenses and bonds.
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Sec. 29.04.110. Section 318.1 amended.
Sec. 29.04.120. Section 401.1 amended.
Sec. 29.04.130. Section 403.4 amended.
Sec. 29.04.140. Section 406 amended.
Sec. 29.04.150. Section 406 amended.
Sec. 29.04.160. Section 417.1 amended.
Sec. 29.04.170. Section 420.1 amended.
Sec. 29.04.180. Section 504.3 amended.
Sec. 29.04.190. Section 504.5 amended.
Sec. 29.04.200. Section 505.1 amended.
Sec. 29.04.210. Section 603.1 amended.
Sec. 29.04.220. Section 603.4 amended.
Sec. 29.04.230. Section 603.6 amended.
Sec. 29.04.240. Section 606.3 amended.
Sec. 29.04.250. Section 703 amended.
Sec. 29.04.260. Section 704 amended.
Sec. 29.04.270. Section 802 amended.
Sec. 29.04.280. Section 803 amended.
Sec. 29.04.290. Section 903 amended.
Sec. 29.04.300. Appendix A amended.

Sec. 29.04.010. Adoption.

The Guidelines for Solar Energy Installations, published by the International Conference of Building Officials, 1984 Edition, including Appendix A thereto, except Appendix B, Section 107.4, the last paragraph of Section 107.5, Section 318, Section 403.3, Section 403.5, Section 404, Section 602, Section 602.1, Section 602.2, Section 602.3, and except for amendments set forth in this chapter, is by reference incorporated herein and by this publication made a part of this title as though set forth at length herein, and is hereby adopted as the solar energy installation code of the City of Wichita, Kansas.
(Ord. 39-287 (part))

Sec. 29.04.020. Section 107.2 amended.

Section 107.2 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"Plans and Specifications. Plans, specifications and other data shall be submitted in one or more sets with each application for permit when required by the Building Official.

"Plans and specifications shall indicate the full scope of proposed work, including, but not limited to, location of components with respect to site boundaries, structural support and mounting details, piping, control wiring, connections to existing structural, mechanical, plumbing and/or electrical systems, and provisions for discharge of fluids."
(Ord. No. 39-287 (part))

Sec. 29.04.030. Section 107.3 amended.

Section 107.3 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"Permit fees. The fee for each solar permit shall be established in Table No. 107.3.

TABLE NO. 107.3—FEE SCHEDULE

Domestic Water-Heating and Active Space-Conditioning Systems

1. For not more than two site inspections for final approval: $40.00.
2. For each additional site inspection: $15.00.
3. Any person who shall commence any work for which a permit is required by this Code without first having obtained a permit therefor shall, if subsequently permitted to obtain a permit, pay double the permit fee by this section for such work."

(Ord. No. 39-287 (part))

Sec. 29.04.040. Section 108 amended.

Section 108 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"Energy Advisory Board

"a. The Energy Advisory Board shall act as a board of appeals in making a determination of any appeal arising from the actions of the Administrative Authority. Appeals shall be made in writing, and the appellant may appear in person before the Board or be represented by an attorney, and may introduce evidence to support his claim. Appeals shall be heard at reasonable times at the convenience of the Board, but not later than thirty (30) days after receipt thereof. The appellant shall cause to be made at his expense, any tests or research required by the Board to substantiate his claims.

"b. The Energy Advisory Board shall, upon the request of the Administrative Authority, interpret sections of the Code as to the approval of solar energy materials and methods allowed under said code.

"c. Where conditions exist on any solar energy installation job which are not specifically provided for by this Code, or where it would be impracticable to follow its provisions, the Board may grant a variance from the strict application of the provisions of this Code. The person or persons desiring such variance shall submit all data and information necessary or as may be required by the Board to enable it to make its decision, and if after thorough study of the granting of such request would not act in contravention to the welfare of the public, it shall have the authority to grant the variance.

"d. The Energy Advisory Board may consider applications for the use of materials or methods of installations not specifically covered in the Code, or quality of materials or for a change in methods of installation as set forth in this Code, and accept or reject the same as affording the same degree of safety, and performance as the materials or methods provided for herein. The Board may use established standards of nationally recognized laboratories and research organizations in making its determination to accept or reject the application: The applicant shall submit to the Board all necessary information as may be required by the Board in order for it to make its determination, and any expense incurred for the payment of laboratory reports and tests shall be borne by the applicant. If after a thorough study of the application and upon the basis of such study, it is determined that the public interest would be best served, would not be detrimental to the health and welfare of the public and would afford the same degree of safety as elsewhere provided for in this Code, the Board shall approve the application; or should it be determined that it is against public interest, would be detrimental to the health and welfare of the public, would not afford the same degree of safety as elsewhere provided for in this Code, the Board shall deny the application.

"e. Appeal. Any person, official or governmental agency dissatisfied with any order or determination of the Energy Advisory Board may appeal such order or determination to the Board of City Commissioners. An appeal taken to the Board of City Commissioners shall be on the record of the hearing before the Board and shall be in writing, and shall be filed with the City Clerk and the Administrative Authority within ten (10) days of the date of the hearing before the Energy Advisory Board. The basis for appeal must be set forth in the written appeal that is served upon the City Clerk and the Administrative Authority."

(Ord. No. 39-287 (part))

Sec. 29.04.050. Certificates, examinations, cancellations, licenses and bonds.

a. It shall be unlawful for any person to engage in the business of installing, repairing, replacing, altering, or maintenance of a solar energy system in the city, unless and until a certificate has been obtained therefor, and a license has been issued for such business and a permit has been obtained for such work, all in accordance with the provisions of this Code. Solar energy installers' appren-

tices shall be permitted to work when accompanied by and work under the direct supervision of a master or journeyman installer, who shall be responsible for work done by the apprentice.

b. The energy advisory board shall meet and designate the times and place for examination of all applicants desiring to engage in or work at the business of installing, repairing, replacing, altering, or maintenance of a solar energy system in the city. Such board shall examine each applicant as to his or her particular knowledge of solar energy systems and if satisfied as to the competency of the applicant shall thereupon direct that said certificate be issued to the applicant, authorizing him or her to engage in or work at the business of installing, repairing, replacing, altering or maintenance of a solar energy system, either as a master installer or journeyman installer. Examinations may be made in whole or in part in writing, but sufficiently broad to test the qualifications of the applicant as the board may deem necessary. All applicants for a journeyman installer certificate shall have had a minimum of one year practical experience at the trade to prove his ability, or such other qualifications as the board may require. All applicants for a master installers certificate shall have had a minimum of two years practical experience at the trade as a journeyman installer or three years written documentation on company letterhead of proof of field installation experience at the trade, or such other qualifications as the board may require.

The fee for each examination and original certificate of a master installer shall be twelve dollars and fifty cents; for each examination and original certificate of a journeyman installer the fee shall be seven dollars and fifty cents.

All solar energy installers certificates shall be renewed annually upon payment of a fee of three dollars. All such certificates shall expire on the 31st of December of each year, and no reduction shall be made for part of the year being elapsed. All holders of certificates not renewed within thirty (30) days after their expiration may be required to take a new examination before receiving a new certificate and shall be required to pay a ten percent per month penalty.

c. Any person engaging or desiring to engage in the business of installing, repairing, replacing, altering or maintenance of a solar energy system shall, before obtaining any permit or transacting any business, obtain a license therefor from the superintendent of central inspection, which license shall expire on the 31st day of December of the year in which it was so issued. Any such person holding a current master installers certificate may apply for a solar energy installers license. No license shall be transferred from one person to another. Permits shall be obtained for such work as required in this Code, and the same shall be issued to the person who possesses the master installers certificate.

Before a solar energy installers' license is issued, the applicant therefor shall file with the city clerk a surety bond in the amount of two thousand dollars, which shall be approved as to form by the city attorney, the conditions of such bond to be that the principle therein will comply with all provisions of the Code and other ordinances of the city regulating solar energy installations, and to hold and save the city harmless on any and all damages to persons or property resulting from or growing out of any opening or excavation made, material stored or placed upon, or any operation in any street, alley or public property.

A solar energy installers license may be issued to any firm, copartnership or corporation of which at least one active member or officer who devotes full time to that firm, copartnership or corporation has been qualified as and has a current master installers certificate. The fee for a license to engage in the solar energy installations shall be twenty dollars. Each license shall be renewed annually by December 31st. Licensees who have not renewed their license by January 31st shall pay a penalty of ten percent per month thereafter.

d. The energy advisory board is hereby authorized to cancel and recall the certificate of any master installer, journeyman installer or the license of any master installer for any of the following reasons:

1. Abandonment of any contract without legal cause.
2. Diversion of funds or property received for performance or completion of a specific

contract, or for a specific purpose in the performance or completion of any contract, and the application or use for any other contract, obligation or purpose or the failure, neglect or refusal to use such funds or property for the performance or completion of such contract.

3. The committing of any act in violation of any provisions of this Code of the failure or refusal to comply with any lawful order of the administrative authority.

4. Misrepresentation of a material fact by the applicant in obtaining a license.

5. The failure of any such master installer or journeyman installer to fully satisfy all claims for labor and materials used in the performance of any work for which he has been engaged and for which he has been paid.

6. Use of a license to obtain permits for another.

7. Carelessness or negligence in providing reasonable safety measures for the protection of workmen and the public.

8. Failure to obtain permits.

9. Unreasonable delay in the performance and carrying out of any contract.

(Ord. No. 39-287 (part))

Sec. 29.04.060. Repairs, replacements and maintenance.

The owner-occupant of a detached, single-family dwelling may be issued a permit to repair, replace or maintain the existing solar energy system in such single-family dwelling provided such owner-occupant performs all such work and that work so performed is in accordance with this Code as verified by an inspection requested by the owner-occupant and performed by the superintendent of central inspection.

New Installations. The owner-occupant of a detached single-family dwelling may obtain a permit to install solar energy systems in the main-use structure and/or accessory structure thereto. The owner-occupant shall perform all such work personally and shall verify code compliance by calling for all inspections required by this Code.

Owner-occupants applying for permits for installations as outlined above shall first qualify themselves by successfully passing a simplified open-book examination dealing with relevant provisions of this Code. The fee for said examination shall be five dollars. Successful passage of the examination shall qualify the applicant for future permits until the time of the adoption of another edition of this Code by the City of Wichita, Kansas.

Prior to permit approval, the applicant shall also submit a plan of the installation drawn in a format acceptable to the board and drawn in sufficient detail as to satisfy the superintendent of central inspection of the overall code compliance of the anticipated installation. The fee for such plan review shall be fifteen dollars. Plan submissions requiring extensive revision and/or modification shall be billed at the rate of fifteen dollars for each additional half hour or portion thereof beyond the original half hour upon prior notification of the applicant of such additional charges.

Permit fees shall be as set forth elsewhere in this Code provided, however, that such additional inspection owing to detected code deficiencies requiring correction shall be billed at the rate of fifteen dollars each.

Permits for solar energy installations in completely new residences and/or total remodel permits shall be limited to one in three years to each applicant unless a waiver is obtained, upon written application, from the board.

(Ord. No. 39-287 (part))

Sec. 29.04.070. Violation—Penalty.

Any person, firm, partnership or corporation violating any provision of this Code shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be punished by a fine of not to exceed five hundred dollars, or by imprisonment not to exceed thirty days, or by both such fine and imprisonment.

(Ord. No. 39-287 (part))

Sec. 29.04.080. Section 202 amended.

Section 202 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Definitions.* Building Official is the Administrative Authority. The Administrative Authority duly appointed to enforce this Code shall be the Superintendent of Central Inspection. The Administrative Authority shall make decisions as are necessary to administer and enforce this Code.

"*Collector.* A collector is a component intended for absorbing solar radiation and converting it into useful thermal energy.

"1. A low-temperature collector shall be considered as any flat-plate, non-glazed collector.

2. A medium-temperature collector shall be considered as any flat-plate glazed collector.

3. A high-temperature collector shall be considered as any form of linear tracking concentrating collector."

(Ord. No. 39-287 (part))

Sec. 29.04.090. Section 310 amended.

Section 310 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"Protection against water penetration around openings and extensions of solar components through the roof, floors and walls shall be in accordance with:

"1. All non-masonry roof and wall penetrations shall be sealed using silicone sealant compatible with the existing material and having a minimum five (5) year exterior life expectancy.

2. All masonry roof and wall penetrations shall be sealed using an appropriate sealant having a minimum five (5) year exterior life expectancy."

(Ord. No. 39-287 (part))

Sec. 29.04.100. Section 316 amended.

Section 316 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"Solar energy systems, either by inherent design features or by equipping the system with the necessary controls, shall prevent the addition of energy to thermal storage when the maximum allowable temperature of the storage subsystem has been reached. The maximum allowable temperature is defined as the solar storage subsystem manufacturer's recommended maximum temperature.

"All solar domestic hot water delivery systems shall incorporate either tempering apparatus or high-limit protection."

(Ord. No. 39-287 (part))

Sec. 29.04.110. Section 318.1 amended.

Section 318.1 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"A permanent, clearly visible label shall be affixed to the heat exchanger assembly or to the storage assembly, containing the following information:

"1. The exact chemical name of the heat-transfer material, including the relative proportion of each ingredient other than water or air.

2. Whether the heat-transfer material is hazardous, toxic or nontoxic.

3. First-aid instructions for the type of heat-transfer material used.

4. If the heat-transfer material is hazardous, or toxic, a cautionary statement regarding the poisonous characteristics of the material.

5. The manufacturer's and/or installer's recommended heat-transfer material change interval.

6. A warning against the use of hazardous or toxic heat-transfer material in systems not designed and installed for their use.

7. The proper disposal method for the heat-transfer material used in the system."

(Ord. No. 39-287 (part))

Sec. 29.04.120. Section 401.1 amended.

Section 401.1 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Approved Materials.* Piping materials shall conform to Appendix A and the manufacturer's recommendations for their intended use. All collector-loop piping and all piping within three (3) feet of the heat-exchanger assembly and/or within three (3) feet of the thermal storage shall be copper in medium-temperature and high-temperature systems. For medium-temperature systems, a minimum of Type M copper shall be used. For high-temperature systems a minimum of Type L copper shall be used."

(Ord. No. 39-287 (part))

Sec. 29.04.130. Section 403.4 amended.

Section 403.4 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"The collector array and storage tank(s) of hydronic solar energy systems shall be capable of being drained. Systems which incorporate more than one fluid-filled loop shall be piped to permit drainage and flushing of each fluid-filled loop."

(Ord. No. 39-287 (part))

Sec. 29.04.140. Section 406 amended.

Section 406 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Joints and Connections.* Joints shall be of a type approved for the piping material being used and shall conform to the manufacturer's recommendations and Appendix A. All solder joints in copper piping where copper piping is required by this Code shall be a minimum of type 95-5 solder."

(Ord. No. 39-287 (part))

Sec. 29.04.150. Section 406 amended.

Section 406 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"Joints between dissimilar material shall conform to the manufacturer's recommendations and Appendix A. Dielectric devices may be installed at locations where piping connections involve two dissimilar metals which are subject to corrosion."

(Ord. No. 39-287 (part))

Sec. 29.04.160. Section 417.1 amended.

Section 417.1 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Gravity Drainage.* Systems which rely upon drainage for freeze protection shall be piped so that all piping has a slope to facilitate complete drainage by gravity. Systems using pipe of 2 inches or greater diameter or nonpressurized systems using plastic pipe are exempt from this requirement."

(Ord. No. 39-287 (part))

Sec. 29.04.170. Section 420.1 amended.

Section 420.1 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Required Pressure Differential.* Closed-loop solar systems shall include an expansion tank, and be designed and installed to ensure that the operating pressure of the closed-loop portion of the system is lower than the operating pressure of the remainder of the system. The pressure-relief valve on the closed-loop portion shall open at a lower pressure than the pressure-relief valves in the remainder of the system to assure that the pressure differential is maintained."

(Ord. No. 39-287 (part))

Sec. 29.04.180. Section 504.3 amended.

Section 504.3 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Covered Openings.* All openings into tanks, except vents, shall be tightly covered and secured in place."

(Ord. No. 39-287 (part))

Sec. 29.04.190. Section 504.5 amended.

Section 504.5 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Collection and Disposal of Leakage.* For solar systems with storage tanks located in attics or other locations where leakage might result in damage to the structure, a drip pan shall be installed under the storage tank. The discharge from the drip pan shall be directed to a point where it will not inflict property damage or physical harm to building occupants but where it will attract attention to the leakage. The drain for the drip pan shall be piped with ½ inch or larger diameter pipe and shall terminate not less than 6, or more than 24, inches above the ground. The pipe shall not terminate with a threaded end or a trap. All such storage tanks shall be installed and supported to conform to the structural loading requirements of Appendix A."

(Ord. No. 39-287 (part))

Sec. 29.04.200. Section 505.1 amended.

Section 505.1 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Water and Intrusion Proofing.* The containment structure for dry thermal storage systems shall be constructed to prevent the infiltration of water or moisture. All openings to ambient atmosphere shall have a screen or filter of not greater than ¼ inch mesh opening."

(Ord. No. 39-287 (part))

Sec. 29.04.210. Section 603.1 amended.

Section 603.1 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Sealants.* Flashing and/or roof jacks shall be used at all points of penetration of the roof. Flashing and roof jacks shall be sealed with a sealant which is in accordance with the requirements of Section 310 of this Code."

(Ord. No. 39-287 (part))

Sec. 29.04.220. Section 603.4 amended.

Section 603.4 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Collector Gravity Drainage.* Collectors shall be installed to provide positive and complete drainage of the collector array."

(Ord. No. 39-287 (part))

Sec. 29.04.230. Section 603.6 amended.

Section 603.6 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Dielectric Devices.* Dielectric devices may be used at points of contact between component parts of the system where dissimilar metals which are subject to corrosion are in direct connect."

(Ord. No. 39-287 (part))

Sec. 29.04.240. Section 606.3 amended.

Section 606.3 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"Collector Anchoring. Collector installations shall securely anchor the collector array to the roof. Racks and spacers for collectors which are not parallel to the roof slope or which are raised above the roof surface allowing greater than six (6) inches of space between the collector array and the roof surface, shall be bolted through the roofing material and sheathing into a structural member supported between two or more parallel rafters and which incor-

porates a structural brace between the structural support member and the interior sheathing surface.

"Racks and spacers for collectors which are both parallel to the roof surface and six (6) inches or less from the roof surface may be secured using lag bolts which penetrate the roofing and sheathing material and penetrate directly into a rafter to a minimum depth of two (2) inches.

"Threaded bolts or lag bolts of less than ⅜ inch diameter shall not be permitted.

"Lag bolting into the roofing material and/or sheathing only is not sufficient to fulfill this requirement."

(Ord. No. 39-287 (part))

Sec. 29.04.250. Section 703 amended.

Section 703 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Piping Insulation.* All pipes in a solar system which carry heated water shall be insulated to a minimum value of R-3, except as prohibited by Section 308 of this Code. Insulation on pipes shall be protected with weather and ultraviolet resistant material."

(Ord. No. 39-287 (part))

Sec. 29.04.260. Section 704 amended.

Section 704 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Duct Insulation.* The air-distribution system ducts shall be insulated to a minimum of R-6, using material having a perm rating not exceeding 0.5 perm. All joints shall be sealed with an appropriate sealer. All duct insulation shall be in accordance with Table 704."

"Table No. 704 INSULATION OF DUCTS

Duct Location	*Insulation Types Mechanically Cooled*	*Insulation Types Heating Only*
On Roof, On Exterior of Building	C, V* and W	B and W
Attics, Garages and Crawl Space	A and V*	A
In Walls**, Within Floor Ceiling Spaces**	A and V*	A
Within the Conditioned Space or in Basements; Return Ducts and Plenums	None Required	None Required
Cement Slab or Within Ground	None Required	None Required

NOTE: Where ducts are used for both heating and cooling, the minimum insulation shall be as required for the most restrictive condition. These requirements based on 4501 to 8000 D.D.

* Vapor barriers shall be installed on conditioned air supply ducts in spaces vented to the outside in geographic areas where the average July, August and September mean dew point temperature exceeds 60°F.

** Insulation may be omitted on that portion of a duct which is located within a wall-or a floor-ceiling space where:

a. Both sides of the space are exposed to conditioned air.

b. The space is not ventilated.

c. The space is not used as a return plenum.

d. The space is not exposed to unconditioned air.

Ceilings which form plenums need not be insulated.

INSULATION TYPES:

A. 1-inch, 0.60 lb./cu.ft. mineral fiber blankets and felt, rock, slab or glass.

½-inch, 1.5 to 3 lb./cu.ft. blanket duct liner, rock, slag or glass.

½ inch, 3 to 10 lb./cu.ft. board mineral fiber, rock, slag or glass or equivalent to provide an installed conductance = 0.48.

B. 2-inch, 0.60 lb./cu.ft. mineral fiber blanket

1-inch, 1.5 to 3 lb./cu.ft. board, mineral blanket (duct liner)

1-inch, 3 to 10 lb./cu.ft. mineral fiber board or equivalent to provide an installed conductance = 0.24

C. 3-inch, 0.60 lb./cu.ft. mineral fiber blanket

1 ½-inch, 1.5 to 3 lb./cu.ft. mineral blanket (duct liner)

1 ½-inch, 3 to 10 lb./cu.ft. mineral fiberboard or equivalent to provide an installed conductance = 0.16

V. Vapor Barrier: Material with a perm rating not exceeding 0.5 perm. All joints to be sealed.

W. Approved weatherproof barrier."

(Ord. No. 39-287 (part))

Sec. 29.04.270. Section 802 amended.

Section 802 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*Required Filters.* Air filters may be installed in the air distribution system. Air filters shall be accessible for cleaning and/or replacement."

(Ord. No. 39-287 (part))

Sec. 29.04.280. Section 803 amended.

Section 803 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended by adding Section 803.3 to read as follows:

"*Backflow Dampers.* Dampering devices shall be installed between the collector array and the habitable area so as to prevent backflow."

(Ord. No. 39-287 (part))

Sec. 29.04.290. Section 903 amended.

Section 903 of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"*System Controls—Domestic Hot-Water Systems.* The temperature of solar-heated water entering the storage or backup tank shall not exceed the tank manufacturer's recommended maximum temperature."

(Ord. No. 39-287 (part))

Sec. 29.04.300. Appendix A amended.

Appendix A of the Guidelines for Solar Energy Installations, 1984 Edition, is hereby amended to read as follows:

"APPENDIX A

REFERENCED SECTIONS OF ONE AND TWO FAMILY DWELLING CODE, PUBLISHED BY THE COUNCIL OF AMERICAN BUILDING OFFICIALS, 1983 EDITION

Guidelines for Solar Energy Installations	*One- and Two-Family Dwelling Code, 1983*	*National Electrical Code, 1981*
106.4	R106, P2001.3	
108	R108, R108.2	
Chapter 2—Definitions	R114, M1002, P2020	100
302		110-16
310	M1511, M1707.3, P2003.8	300-6
	M1506	346-4
		725-14
		725-37
		725-40
311.1	R202.3, R202.4	
	R202, R601, R701	
	R202.2, R201, R404	
312	R409, R410, R402	300-4
	R402.5, P2003, R604, R705, R806	
313	R219, R203, R205, R401, P2101	300-21
401.1	P2105, P2104.1	
	P2104.2.2, P2016	
401.3	P2101	
402	P2006	
405	P2007	
406	P2007	
407	P2016	
408	P2006, P2007	
409	P2003	
410		
412.1	R301, R304.2, P2003.3, P2004	
413.2(a)		
415.5	R111	
504.2	P2402	
607.1(a)	R701	
701	M1603	
704	M1603	
801	M1601	
804	M1601	
901.1		301 90-4
901.2		110-3
901.4		110-21
902.4		210
		220
		442.16
905		250
906		110-14

Guidelines for Solar Energy Installations	*One- and Two-Family Dwelling Code, 1983*	*National Electrical Code, 1981*
907		110-11 300-5 300-6 310-8 310-9 310-10 346-3 346-4 347-2 402-3 725-14
908		300-22 (b)(c)"

(Ord. No. 39-287 (part))

Title 30

NEGLECTED BUILDINGS

Ch. 30.01. Registration of Neglected Buildings

CHAPTER 30.01 REGISTRATION OF NEGLECTED BUILDINGS

Sec. 30.01.010. Purpose.
Sec. 30.01.020. Public nuisance.
Sec. 30.01.030. Enforcement of chapter—Applicability of chapter.
Sec. 30.01.040. Violation not exclusive.
Sec. 30.01.050. Inspection of property.
Sec. 30.01.060. Definitions.
Sec. 30.01.070. Duty to register neglected building or dwelling.
Sec. 30.01.080. Registration fee.
Sec. 30.01.090. Resident agent.
Sec. 30.01.105. Registration penalty.
Sec. 30.01.108. Procedures for registration penalty.
Sec. 30.01.110. Reinspection.
Sec. 30.01.120. Removal from registration.
Sec. 30.01.130. Registration nontransferable.
Sec. 30.01.140. Duty to file statement of intent for neglected buildings.
Sec. 30.01.150. Neglected unoccupied building penalty.
Sec. 30.01.160. Procedures for neglected unoccupied building penalty.
Sec. 30.01.170. Appeals to board of code standards and appeals.
Sec. 30.01.180. Failure to pay penalties.

Sec. 30.01.010. Purpose.

Neglected buildings and dwellings are a major cause and source of blight in both residential and non-residential neighborhoods, especially when the owner of the building or dwelling fails to actively maintain and manage the building or dwelling to ensure that it does not become a liability to the neighborhood. Neglected buildings or dwellings and/or substandard or unkempt buildings or dwellings discourage economic development and retard appreciation of property values. It is the responsibility of property owners to prevent buildings or dwellings from becoming a burden to the neighborhood and community and a threat to the public health, safety, and welfare. A neglected building or dwelling that is not well maintained and managed can be the core and source of spreading blight.

Such buildings or dwellings constitute a nuisance, and to adequately protect public health, safety and welfare, the establishment and enforcement of a registration system to monitor such buildings or dwellings and to develop a means to decrease the number of neglected buildings or dwellings within the city is necessary.
(Ord. No. 47-301, § 1, 11-21-06; Ord. No. 52-864, § 1, 12-16-25)

Sec. 30.01.020. Public nuisance.

Neglected buildings or dwellings shall constitute a public nuisance.
(Ord. No. 47-301, § 2, 11-21-06; Ord. No. 52-864, § 2, 12-16-25)

Sec. 30.01.030. Enforcement of chapter—Applicability of chapter.

The Director of the Metropolitan Area Building and Construction Department is designated to administer and enforce this chapter.
(Ord. No. 47-301, § 3, 11-21-06; Ord. No. 52-864, § 3, 12-16-25)

Sec. 30.01.040. Violation not exclusive.

Violations of this chapter are in addition to any other violations enumerated within the ordinances of the Code of the City of Wichita. This chapter in no way limits the penalties, actions or abatement procedures which may be taken by the City for a violation of this chapter which is also a violation of any other ordinance of the City or statute of the State of Kansas.
(Ord. No. 47-301, § 4, 11-21-06)

Sec. 30.01.050. Inspection of property.

(1) All officers authorized to enforce this chapter are hereby authorized and directed to make inspections to determine the condition of property located within the city, in order that he or she may perform his/her duty of safeguarding the welfare and safety of the general public and in order that he/she may ascertain that property as set forth in this title are properly maintained.

(2) Any officer or employee of the City charged with the enforcement of this title shall not, in the discharge of his/her duties, thereby render himself/herself liable personally. Pursuant to Section 2.62.130 of the Code of the City of Wichita, any suit brought against an officer of employee of the city because such act performed by him or her in

the enforcement of any of the provisions of this title will be defended by the Department of Law until the final termination of the proceedings therein.
(Ord. No. 47-301, § 5, 11-21-06)

Sec. 30.01.060. Definitions.

(1) 'Boarded' means that some or all of the building's doors or windows have been covered with plywood, wood or metal sheeting, paneling or other similar materials, for the purpose of preventing entry into the building by persons, animals or the elements of weather.

(2) 'Building' means a building or dwelling, accessory structure or other structure adapted to permanent or continuous occupancy or use for residential, public, institutional, business, industrial or storage purposes.

(3) 'City' means the City of Wichita, Kansas.

(4) 'Deterioration' means the condition or appearance of a building characterized by holes, breaks, rot, crumbling, cracking, peeling, rusting or other evidence of physical decay or neglect, excessive use or lack of maintenance.

(5) 'Director' means the Director of the Metropolitan Area Building and Construction Department or his or her representative.

(6) 'Dwelling' means any building, apartment building, mobile home or manufactured home which is wholly or partly used or intended to be used for living or sleeping by human occupants.

(7) 'Dwelling unit' means any room or group of rooms located within a building and forming a single habitable unit with facilities that are used or intended to be used for living, sleeping, cooking, and eating.

(8) 'Good state of repair' means sound, stable, free of deterioration, and performing the function for which intended.

(9) 'Good working condition' means the item is fully operable for the use for which it was intended.

(10) 'Neglected building' means a 'Neglected occupied building', 'Neglected unoccupied building', a 'Neglected occupied dwelling' and a 'Neglected unoccupied dwelling.'

(11) 'Neglected occupied building' means an occupied building in which one or more of the following events have occurred within the preceding eighteen months:

a. The building or dwelling is the subject of two or more Uniform Criminal Complaints filed in Wichita municipal court regarding violations of the provisions of Chapter 18, Chapter 20 or the provisions of this chapter of the Code of the City of Wichita and the owner has failed to demonstrate that due diligence is being exercised in abating the violation; or

b. The building or dwelling has been declared to be a criminal nuisance pursuant to K.S.A. 22-3901, *et seq.;* or

c. The owner has failed to appear and a warrant has been issued in municipal court for a violation of Chapter 18, Chapter 20, or the provisions of this chapter of the Code of the City of Wichita; or

d. The owner has refused to accept service of notices of violations of Chapter 18, Chapter 20, or the provisions of this chapter of the Code of the City of Wichita; or

e. The building or dwelling has sustained substantial deterioration due to lack of maintenance; or

f. The building or dwelling has been placarded as unfit for habitation pursuant to Section 20.04.110 of the Code of the City of Wichita and the property owner has failed to take reasonable and necessary steps to promptly remedy the violation(s); or

g. The building or dwelling has building or housing code violations which have not been corrected following adjudication of such violations by the Municipal Court.

(12) 'Neglected unoccupied building' means an unoccupied building or dwelling (whether or not boarded) in which one or more of the following events have occurred:

a. Within the last eighteen months, the property is the subject of two or more Uniform Criminal Complaints filed in Wichita Municipal Court regarding violations of Chapter 18, Chapter 20 or the provisions of this chapter of the Code of the City of Wichita and the owner has failed to demonstrate that due diligence is being exercised in abating the violation; or

b. The building or dwelling is unsecured; or

c. The building or dwelling has sustained significant fire, wind or water damage and is uninhabitable; or

d. The building or dwelling has been declared a criminal nuisance pursuant to K.S.A. 22-3901, *et seq.;* or

e. The building or dwelling has been boarded for a period of more than ninety days; or

f. The building or dwelling has sustained substantial deterioration due to lack of maintenance; or

g. The owner has failed to appear and a warrant has been issued in municipal court for a violation of Chapter 18 or Chapter 20 of the Code of the City of Wichita; or

h. The owner has refused to accept service of notices of violations of Chapter 18 or Chapter 20 of the Code of the City of Wichita; or

i. The building or dwelling has been placarded as unfit for habitation pursuant to Section 20.04.110 of the Code of the City of Wichita and the property owner has failed to take reasonable and necessary steps to promptly remedy the violation(s); or

j. The building or dwelling has building or housing code violations which have not been corrected following adjudication of the violations by the Municipal Court.

(13) 'Occupancy' the purpose for which a building or dwelling or portion thereof is utilized or occupied.

(14) 'Operator' means any person who has charge, care or control of a building or dwelling, or part thereof, in which dwelling units or rooming units are let.

(15) 'Owner' means any person who is a holder of any legal or equitable interest in the premises, and alone or jointly or severally with others.

a. Has record legal title to any dwelling or dwelling unit with or without accompanying actual possession thereof; or

b. Has charge, care or control of any dwelling or dwelling unit which may include all persons who have an interest in a structure and any who are in possession or control thereof as owner or agent of the owner, contract purchaser, or as executor, executrix, administrator, administratrix, trustee or guardian of the estate of the owner.

In the absence of substantial evidence to the contrary, records of the Sedgwick County Clerk's Office, Registrar of Deeds, certified copies of court records or judgments of any court, copies of lease agreements, contracts for deed, mortgages, tax records, rental agreements and other financial documents related to the property shall be conclusive evidence of the ownership of the property.

(16) 'Person,' as used in this chapter, means any individual, firm, association, company, syndicate, partnership, or other legal entity, or a natural person for the purposes of the occupancy standards hereof.

(17) 'Premises' shall mean a lot, plot or parcel of land including the buildings and structures located thereon.

(18) 'Resident Agent' means a natural person residing within sixty miles of the corporate city limits of the City of Wichita or a company or agency with a manager or agent who resides within sixty miles of the corporate city limits of the City of Wichita who is authorized to make or

order repairs, to order or oversee service to dwellings and dwelling units, and to receive notices on behalf of the owner.

(19) 'Safe and Sanitary' for purposes of this chapter shall mean free from conditions that are dangerous or could cause injury and free from elements such as filth, black mold, or bacteria that endanger health.

(20) 'Structurally Sound' means free of imperfections and/or deterioration that affect the intended use of a structure or the integrity of the footing, foundation, wall, roof, chimney, arch, window, door or porch/deck support systems.

(21) 'Supplied' means paid for, furnished or provided by or under the control of the owner or operator.

(22) 'Unoccupied building' means a building that is unattended and is not actively used as a place of residence or business or is frequently open or unsecured so that unauthorized admittance may be gained without damaging any portion of the property.

(23) 'Unsecured' means that access to the building or dwelling may be obtained through open, unlocked, broken or missing doors or windows of such building or dwelling.

(24) 'Workmanlike manner' means installation or repair which meets the minimum recommended installation and maintenance requirements of the product manufacturer and meets all applicable code requirements.
(Ord. No. 47-301, § 6, 11-21-06; Ord. No. 52-864, § 4, 12-16-25)

Sec. 30.01.070. Duty to register neglected building.

a. The owner or operator of a neglected building or dwelling shall be required, after written notification from the Director of the Metropolitan Area Building and Construction Department, to apply for registration of such building or dwelling with the Metropolitan Area Building and Construction Department within thirty days of the date of notification from the Director. Such notification shall be served on the owner or resident agent by personal service or by certified mail, return receipt requested. If the owner is a non-resident, such notice shall be sent by certified mail, return receipt requested, to the last known address of the owner.

b. The registration shall include the following information:

1. A description of the premises;
2. The names and addresses of the owner or owners;
3. The names and addresses of all known lienholders and all other parties with a legal or equitable ownership interest in the building or dwelling;
4. The name address, phone number and other contact information of the resident agent designated to act on behalf of the owner to accept legal processes and notices and to authorize repairs as required; and
5. If such building or dwelling is unoccupied, the period of time the building or dwelling is expected to remain unoccupied and/or a plan and timetable to comply with applicable city codes.

(Ord. No. 47-301, § 7, 11-21-06; Ord. No. 52-864, § 5, 12-16-25)

Sec. 30.01.080. Registration fee.

A registration fee of one hundred dollars ($100) per building or dwelling shall be collected, at the time of application, by the Metropolitan Area Building and Construction Department. If a building or dwelling contains more than one dwelling unit, a fee of $100 shall be assessed for each neglected occupied or neglected unoccupied dwelling unit.
(Ord. No. 47-301, § 8, 11-21-06; Ord. No. 52-864, § 6, 12-16-25)

Sec. 30.01.090. Resident agent.

(a) The owner or operator of any neglected building or dwelling, which is subject to the registration requirements of Section 30.01.070, shall designate a resident agent for the building or dwelling. Any owner who lives within sixty

miles of the corporate city limits of the City of Wichita may designate himself or herself as the resident agent.

(b) The owner of any neglected building or dwelling who lives more than sixty miles of the corporate city limits of the City of Wichita shall name a resident agent who lives within or whose place of business is within sixty miles of the corporate city limits of the City of Wichita.

(c) The designation of resident agent shall constitute an authorization by the owner to act on behalf of the owner with regard to all requirements under this chapter and may accept all notices, including all notices pursuant to the Code of the City of Wichita, all notices of proposed abatements and all compliance orders and administrative orders.

(d) The owner's designation of a resident agent shall not relieve the owner or operator of any obligation to comply with the provisions of this chapter or any other provisions of the Code of the City of Wichita or laws of the state of Kansas.
(Ord. No. 47-301, § 9, 11-21-06; Ord. No. 52-864, § 7, 12-16-25)

Sec. 30.01.105. Registration penalty.

(a) Any owner or operator who fails to register a neglected building or dwelling, as required by this chapter, may be liable for a civil penalty not to exceed five hundred dollars ($500).

(b) If the building or dwelling continues to meet the definition of a neglected building or dwelling for a period of ninety (90) calendar days, and the owner fails or refuses to register such building or dwelling, the Director may continue to assess a penalty not to exceed five hundred dollars ($500) for each ninety (90) calendar day period the building or dwelling continues to be unregistered. At no time may the amount of the assessment exceed five thousand dollars ($5,000) per building or dwelling in a calendar year.

(c) All penalties assessed shall be payable directly to the Metropolitan Area Building and Construction Department. The Director shall develop policies and procedures for the implementation of this penalty.
(Ord. No. 47-301, § 10, 11-21-06; Ord. No. 52-864, § 8, 12-16-25)

Sec. 30.01.108. Procedures for registration penalty.

(a) Whenever the owner or operator of a neglected building or dwelling does not register such building or dwelling, a Notice of Registration Penalty may be issued to the owner or operator.

(b) A separate Notice of Registration Penalty shall be issued for each subsequent penalty that may be assessed pursuant to Section 30.01.105.

(c) The Notice of Registration Penalty shall be served upon the owner or operator by certified mail or personal service.
(Ord. No. 47-301, § 11, 11-21-06; Ord. No. 52-864, § 9, 12-16-25)

Sec. 30.01.110. Reinspection.

The Director may periodically reinspect neglected buildings or dwellings to ensure compliance of this chapter and all applicable court and administrative orders made by the municipal or district courts.
(Ord. No. 47-301, § 12, 11-21-06; Ord. No. 52-864, § 10, 12-16-25)

Sec. 30.01.120. Removal from registration.

A neglected building or dwelling shall be removed from the registration requirements of this chapter by the Director upon such building or dwelling:

1. Being brought into compliance with all health and safety standards set forth in the codes of the City of Wichita;
2. Being removed or demolished by the owner;
3. Being abated or demolished by the City of Wichita, if such structure is unsafe or unfit for habitation.

(Ord. No. 47-301, § 13, 11-21-06; Ord. No. 52-864, § 11, 12-16-25)

Sec. 30.01.130. Registration nontransferable.

If the neglected building or dwelling is required to be registered pursuant to Section 30.01.070, a new registration shall be required for each change

of ownership of the building or dwelling. The owner or operator of a neglected building or dwelling which is registered with the Metropolitan Area Building and Construction Department pursuant to this Chapter shall notify the Metropolitan Area Building and Construction Department within ten business days of the sale or transfer of any registered property.
(Ord. No. 47-301, § 14, 11-21-06; Ord. No. 52-864, § 12, 12-16-25)

Sec. 30.01.140. Duty to file statement of intent for neglected buildings.

(a) The Director shall create and make available a form entitled 'Statement of Intent' to be completed by the owner, operator or resident agent of any neglected unoccupied building or dwelling required to be registered pursuant to this chapter.

(b) The owner, operator or resident agent of a neglected unoccupied building or dwelling shall complete the information required on the standard Statement of Intent and submit the Statement to the Metropolitan Area Building and Construction Department within thirty (30) days of the date the Director orders that the structure be registered.

(c) The Director shall determine whether a submitted Statement of Intent is complete and may require an owner to provide more complete information.

(d) When a submitted Statement of Intent does not meet with the Director's approval, the owner or registered agent shall, within ten business days, correct and resubmit the Statement of Intent.

(e) The Statement of Intent shall include information as to:

(1) Expected period that the building or dwelling will remain unoccupied;

(2) A plan for regular maintenance during the period that the building or dwelling is unoccupied; and

(3) A reasonable plan and time line for the lawful occupancy, rehabilitation or demolition of the building or dwelling; and

(4) Any additional information required by the Director.

(f) The provisions of Section 30.01.140 shall not be applicable to neglected occupied buildings or dwellings.
(Ord. No. 47-301, § 15, 11-21-06; Ord. No. 52-864, § 13, 12-16-25)

Sec. 30.01.150. Neglected unoccupied building penalty.

(a) Any owner or operator who fails to submit a Statement of Intent or refuses to supplement or modify a Statement of Intent which does not meet with the approval of the Director or otherwise comply with the requirements of Section 30.01.140, may be liable for a civil penalty not to exceed one thousand dollars ($1,000).

(b) Any owner or operator of a neglected unoccupied building or dwelling that remains as a neglected unoccupied building or dwelling for a period of ninety (90) consecutive calendar days may be liable for a civil penalty in the amount of five hundred dollars ($500) per building or dwelling, not to exceed five thousand dollars ($5,000) per calendar year unless:

(1) A Statement of Intent has been filed and approved by the Director; and

(2) One of the following applies:

(A) The owner is proceeding diligently in good faith to complete the repair or rehabilitation; or,

(B) The building or dwelling is the subject of an active building permit for repair or rehabilitation; or

(C) The building or dwelling is maintained in compliance with this chapter and is actively being offered for sale, lease or rent; or,

(D) The property owner can demonstrate that he or she made a diligent and good faith effort to implement the actions set forth in the approved

Statement of Intent within the timeline contained within the Statement of Intent.

(c) If the building or dwelling continues to meet the definition of neglected unoccupied building or dwelling as provided in this chapter beyond the initial ninety (90) calendar days, and if the owner does not meet any of the exceptions set forth in this section, the Director may continue to assess a penalty of five hundred dollars ($500) for each ninety (90) calendar day period the building or dwelling continues to constitute a neglected unoccupied building or dwelling. At no time may the amount of the assessment exceed five thousand dollars ($5,000) per building or dwelling in a calendar year.

(d) All penalties assessed shall be payable directly to the Metropolitan Area Building and Construction Department.

(e) The Director shall develop policies and procedures for the implementation of this penalty.
(Ord. No. 47-301, § 16, 11-21-06; Ord. No. 52-864, § 14, 12-16-25)

Sec. 30.01.160. Procedures for neglected unoccupied building penalty.

(a) Whenever the Director determines that a building or dwelling meets the definition of a neglected unoccupied building or dwelling as defined by this chapter for a period of more than ninety (90) consecutive calendar days, and the owner does not meet any of the exceptions set forth in Section 30.01.150, a Notice of Neglected Unoccupied Building Penalty may be issued to the owner or operator.

(b) A separate Notice of Neglected Unoccupied Building Penalty shall be issued for each subsequent penalty that may be assessed pursuant to Section 30.01.150.

(c) The Notice of Neglected Unoccupied Building Penalty shall be served upon the owner or operator or his or her registered agent by certified mail or personal service.
(Ord. No. 47-301, § 17, 11-21-06; Ord. No. 52-864, § 15, 12-16-25)

Sec. 30.01.170. Appeals to board of code standards and appeals.

a. Appeals from the decision of the Director or his or her designee, of the registration requirements or the assessment of a registration or neglected building penalty, as provided for by this chapter, may be made by requesting, in writing, to the Director, within ten days after receiving such decision or penalty, a hearing before the Board of Code Standards and Appeals.

b. The appeal must be heard by the Board within forty-five (45) days of receipt of the written request. The board may affirm, reverse or modify the penalty assessed.

c. Appeals from the decision of the Board of Code Standards and appeals may be made to the City Council by requesting in writing to the city clerk, within ten (10) days after receiving such decision, a hearing before such City Council. Such appeal shall be heard, with written notification as to time and place given such appellant, within forty-five (45) days after receipt of the written request.
(Ord. No. 47-301, § 18, 11-21-06; Ord. No. 52-864, § 16, 12-16-25)

Sec. 30.01.180. Failure to pay penalties.

The failure of any person to pay the Registration or Neglected Building penalty as set forth in this chapter may result in the Director using any legal means to recover the civil penalties assessed including actions in District Court to enforce payment of such penalties, utilization of the State Set-off Program, and assessing such unpaid fees by special assessment, if authorized by State law or the Code of the City of Wichita.
(Ord. No. 47-301, § 19, 11-21-06; Ord. No. 52-864, § 17, 12-16-25)

Title 31

WICHITA LAND BANK

Ch. 31.01. Wichita Land Bank

CHAPTER 31.01. WICHITA LAND BANK

Sec. 31.01.010. Purpose.
Sec. 31.01.020. Definitions.
Sec. 31.01.030. Land Bank Board of Trustees; appointment, terms and dissolution.
Sec. 31.01.040. Land Bank Board; organization.
Sec. 31.01.050. Land Bank Board; powers and duties.
Sec. 31.01.060. Land Bank Board; operational requirements.

Sec. 31.01.010. Purpose.

The Wichita Land Bank is hereby established pursuant to K.S.A. 12-5901 *et seq*. The Wichita Land Bank is an independent agency and instrumentality of the City with the primary responsibility and authority to acquire, hold, manage, and convey property, located within the Established Central Area as defined in the Wichita: Places for People Comprehensive Plan Amendment of 2019, and other abandoned, tax-foreclosed, or otherwise underutilized or distressed property within the City of Wichita in order to convert such properties to productive use.
(Ord. No. 51-558, § 1, 5-25-21)

Sec. 31.01.020. Definitions.

For the purpose of this Title the words set forth in this Section shall have the following meanings:

City means the City of Wichita, Kansas.

Board means the Board of Trustees of the Wichita Land Bank established pursuant to this Title.

Land Bank means the Wichita Land Bank established pursuant to this Title.
(Ord. No. 51-558, § 2, 5-25-21)

Sec. 31.01.030. Land Bank Board of Trustees; appointment, terms and dissolution.

A. There is hereby established a Wichita Land Bank Board of Trustees ("Board"). The Board shall be composed of seven members. Each member of the governing body shall appoint one member who resides in Sedgwick County, Kansas with the goal of having expertise in land development, construction, development finance, real estate sales or marketing, real estate law, neighborhood growth and development, surveying or expertise related to the responsibilities of the Land Bank operation. Members of the Board shall not receive compensation nor shall they be reimbursed for personal expenses.

B. The Board may establish separate neighborhood or city advisory committees on an hoc basis consisting of persons living or owning property within the county, city or neighborhood. In the case of neighborhood advisory committees, the Board shall determine the boundaries of each neighborhood. The Board shall consult with each neighborhood or advisory committee as needed to review the operations and activities of the Land Bank concerning any matter which comes before that particular committee.

C. The term of office of the Board members shall be as set forth in Section 2.12.020(2) of the Code of the City of Wichita.

D. The Board members are subject to the provisions of Sections 2.12.010, 2.12.020 and 2.12.030 of the Code of the City of Wichita, except as otherwise stated herein.

E. Primary staff support to the Board will be provided by the City Manager or designee. City staff will provide technical and professional support for Land Bank operations.

F. The Land Bank may be dissolved by ordinance of the City Council. In such case, all property of the Land Bank shall be transferred to and held by the City and may be disposed of as otherwise provided by law.
(Ord. No. 51-558, § 3, 5-25-21)

Sec. 31.01.040. Land Bank Board; organization.

A. The Board shall select, annually, from its membership, a chairperson, a vice-chairperson and a treasurer.

B. The Board shall fix the time and place at which its meetings shall be held. Meetings shall be held within the City and shall be subject to the Kansas Open Meeting Act, K.S.A. 75-4317 *et seq.*, and amendments thereto.

C. A majority of the Board shall constitute a quorum for the transaction of business. No action of the Board shall be binding unless taken at a meeting at which at least a quorum is present.

D. The members of the Board shall be subject to the provisions of the laws of the State of Kansas which relate to conflicts of interest of city officers and employees, including, but not limited to, K.S.A. 75-4301 *et seq.*, and amendments thereto.

E. Subject to the provisions of the Kansas Tort Claims Act, K.S.A. 75-6101 *et seq.*, and amendments thereto, if any action at law or equity, or other legal proceeding, shall be brought against any member of the Board for any act or omission arising out of the performance of duties as a member of the Board, such member shall be indemnified in whole and held harmless by the City for any judgment or decree entered against such member and, further, shall be defended at the cost and expense of the City in any such proceeding.
(Ord. No. 51-558, § 4, 5-25-21)

Sec. 31.01.050. Land Bank Board; powers and duties.

The Land Bank Board shall have the following powers and duties:

A. To sue and be sued.

B. To enter into contracts.

C. Recommend to the City Council the transfer, sale or acquisition of real property by purchase, gift or devise, and convey any real property, including easements and reversionary interest, and personal property, subject to the provisions of this Section. The Board may accept or refuse to accept any property offered to the Land Bank. The transfer of any property pursuant to this subsection shall not be subject to any bidding requirements and shall be exempt from any provisions of law requiring a public sale.

D. The Board shall assume possession and control of any property acquired by it under this Section and shall hold and administer such property. In the administration of property, the Board shall:

1. Manage, maintain and protect or temporarily use for a public purpose such property in the manner the Board deems appropriate;
2. Work with City staff to compile and maintain a written inventory of all such property. The inventory shall be available for public inspection and distribution at all times;
3. Study, analyze and evaluate potential, present and future uses for such property which would provide for the effective reutilization of such property;
4. Plan for and use the Board's best efforts to consummate the sale or other disposition of such property at such times and upon such terms and conditions deemed appropriate;
5. Work with City Finance Department to establish and maintain records and accounts reflecting all transactions, expenditures and revenues in relation to the Land Bank's activities, including separate itemizations of all transactions, expenditures and revenues concerning each individual parcel of property acquired.

E. To exercise any other power which may be delegated to the Land Bank by the City Council.

F. To exercise any other incidental power which is necessary to carry out the purpose of the Land Bank or this Section.
(Ord. No. 51-558, § 5, 5-25-21)

Sec. 31.01.060. Land Bank Board; operational requirements.

The Land Bank shall be subject to the following requirements:

A. The Land Bank shall be subject to the provisions of the Cash Basis Law, K.S.A. 10-1101 *et seq.*, and amendments thereto.

B. The budget of the Land Bank shall be prepared, adopted and published as provided by law for other political subdivisions of the State of Kansas. No budget shall be adopted by the Board until it has been submitted to, reviewed and approved by the City Council. If the City Council elects not to ratify the budget, it must reject the plan in its entirety and remand it back to the Board with specific recommendations for reconsideration.

C. All records and accounts shall be subject to public inspection pursuant to K.S.A. 45-216 *et seq.*, and amendments thereto.

D. The Land Bank shall make an informal and unaudited annual report to the City Council on or before April 15 of each year, showing receipts and disbursements from all funds under its control and showing all property transactions occurring in each year. Such report shall include an inventory of all property held by the Land Bank, and shall be published in the official city newspaper.

E. The Board, without competitive bidding, may sell any property acquired by the Board at such times, to such persons, and upon such terms and conditions, and subject to such restrictions and covenants deemed necessary or appropriate to assure the property's effective reutilization. Notice of said sale will be published thirty (30) days prior to the sale.

F. The sale of any real property by the Board, under the provisions of this Section, on which there are delinquent special assessments to finance public improvements shall be conditioned upon the approval of the governing body which levied the special assessments.

G. The Board, for the purpose of land disposition, may cause to be consolidated, assembled or subdivided individual parcels of property acquired by the Land Bank.

H. Pursuant to K.S.A. 12-5909, until sold or otherwise disposed of by the Land Bank, and except for special assessments levied by the City to finance public improvements, any property acquired by the Land Bank shall be exempt from the payment of ad valorem taxes levied by the State of Kansas and any other political or taxing subdivision of the state.

(i) Pursuant to K.S.A. 12-5909(b), except for special assessments levied by the City to finance public improvements, when the Board acquires property pursuant to this Section, the Sedgwick County Treasurer shall remove from the tax rolls all taxes, assessments, charges, penalties and interest that are due and payable on the property at the time of acquisition by the Board.

(ii) Pursuant to K.S.A. 12-5909(c), property held by the Land Bank shall remain liable for special assessments levied by the City for public improvements, but no payment thereof shall be required until such property is sold or otherwise conveyed by the Land Bank.

(iii) Pursuant to K.S.A. 12-5909(d), the City Council may abate part or all of any lien assessments which it has levied on property acquired by the Land Bank. Any lien assessments that are abated shall be removed from the tax rolls by the County Treasurer as of the effective date of the abatement.

I. Any moneys derived from the sale of property by the Land Bank shall be retained by the Land Bank for the purposes and operations thereof; provided, however, that the Board may use all or part of the proceeds from such sale to reimburse the City for delinquent special assessments due on such property.

(Ord. No. 51-558, § 6, 5-25-21)

APPENDIX A
FRANCHISES

ARTICLE I. CABLE TV (BROADBAND)

Multimedia Cablevision Franchise (Appendix) Ord. No. 42-264

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Sec. 2. Franchise Granted.
Sec. 3. Facilities.
Sec. 4. Use of Right-of-Way.
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Sec. 7. Termination and Forfeiture of Franchise.
Sec. 8. Review or Re-negotiation.
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Sec. 10. Programming.
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Sec. 13. City Rights.
Sec. 14. Grantee's Property—Abandonment.
Sec. 15. Indemnity and Hold Harmless.
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Sec. 17. Liability Insurance Policy.
Sec. 18. Right of Inspection.
Sec. 19. Installation Requirements.
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Sec. 21. Joint Use Agreement.
Sec. 22. Acceptance.
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ARTICLE II. ELECTRIC

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Sec. 1. Definitions.
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Sec. 6. Work by Others.
Sec. 7. Underground Requirements.
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Sec. 9. Regulatory Provisions.
Sec. 10. Street Lighting.
Sec. 11. Assignment and Transfer.
Sec. 12. Termination and Forfeiture of Franchise.
Sec. 13. Rights and Duties of Company Upon Expiration or Termination of Franchise.
Sec. 14. Acceptance.
Sec. 15. Conditions of Franchise.
Sec. 16. Reservation of Rights.
Sec. 17. Notices.
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Kansas Gas and Electric Company Franchise Ord. No. 49-913

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Section 3. Term.
Section 4. Compensation to the City.
Section 5. Payment and Charges.
Section 6. Use of Right-of-Way.
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Section 8. Right of Assignment.
Section 9. Option to Acquire.
Section 10. Termination and Forfeiture of Franchise.
Section 11. Acceptance of Terms by Company.
Section 12. Conditions of Franchise.
Section 13. Reservation of Rights.
Section 14. Notices.
Section 15. Non-Waiver Provision.
Section 16. Invalidity of Ordinance.
Section 17. Governing Law; Venue.
Section 18. Effective Date of Ordinance.
Section 19. Repeal of Conflicting Ordinances.

Sedgwick County Electric Cooperative Association, Inc. Ord. No. 50-868

Section 1. Definitions.
Section 2. Grant.
Section 3. Term.
Section 4. Compensation to the City.
Section 5. Use of Right-of-Way.
Section 6. Work by Others.
Section 7. Underground Requirements.
Section 8. Indemnity and Hold Harmless; Liability; Insurance; Surety Bond.
Section 9. Regulatory Provisions.
Section 10. Street Lighting.
Section 11. Assignment and Transfer.
Section 12. Termination and Forfeiture of Franchise.
Section 13. Rights and Duties of Company Upon Expiration or Termination of Franchise.
Section 14. Acceptance
Section 15. Conditions of Franchise.
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Section 2. Grant of non-exclusive franchise.
Section 3. Term.
Section 4. Compensation to the City.
Section 5. Payments and charges.
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Section 7. Indemnity and hold harmless.
Section 8. Copies of tariffs and filings.
Section 9. Right to assign.
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Section 11. Rights and duties of Company upon expiration of franchise.
Section 12. Acceptance of terms by Company.
Section 13. Conditions of franchise.
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Kansas Gas Service Ord. No. 50-840

Section 1. Extension.
Section 2. Conditions of Franchise.
Section 3. Payment of Costs.

Black Hills/Kansas Gas Utility Company, LLC Ord. No. 51-189

Section 1. Definitions.
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Section 4. Compensation to the City.
Section 5. Payments and charges.
Section 6. Use of right-of-way.
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Section 8. Copies of tariffs and filings.
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Section 11. Rights and duties of Company upon expiration of Franchise.
Section 12. Acceptance of terms by Company.
Section 13. Conditions of Franchise.
Section 14. Invalidity of ordinance.
Section 15. Effective date of ordinance.
Section 16. Repeal of conflicting ordinances.

ARTICLE IV. TELECOMMUNICATIONS (LOCAL EXCHANGE SERVICE)

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Sec. 3. Use of Right-of-Way.
Sec. 4. Indemnity and Hold Harmless.
Sec. 5. Regulation of Rates and Service.
Sec. 6. Payments and Charges.
Sec. 8. Attachment to Poles.
Sec. 9. Forfeiture of Franchise.
Sec. 10. Rights and Duties of Grantee Upon Expiration of Franchise.
Sec. 11. Term and Termination Date.
Sec. 12. Acceptance of Terms by Adelphia Business Solutions.
Sec. 13. Right to Assign.
Sec. 14. Participation in Utility Location Coordination Council.

Sec. 15. Conditions of Franchise.
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Kansas Fiber Network, L.L.C.
Ord. No. 52-332

Sec. 1. Definitions.
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Sec. 4. Term.
Sec. 5. Compensation.
Sec. 6. Use of Public Right-of-Way.
Sec. 7. Indemnity and Hold Harmless.
Sec. 8. Insurance Requirement and Performance Bond.
Sec. 9. Non-discrimination.
Sec. 10. Transfer and Assignment.
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Sec. 12. Notices.
Sec. 13. Confidentiality.
Sec. 14. Conditions of Franchise.
Sec. 15. Acceptance.
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Sec. 17. Failure to Enforce.
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Southwestern Bell Telephone L.P.
Ord. No. 51-663

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Sec. 3. Use of Public Right-of-Way.
Sec. 4. Compensation to the City.
Sec. 5. Indemnity and Hold Harmless.
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Sec. 12. Notices.
Sec. 13. Transfer and Assignment.
Sec. 14. Confidentiality.
Sec. 15. Acceptance of Terms.
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Sec. 17. Force Majeure.
Sec. 18. Repeal.

Ord. No. 45-677
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ARTICLE V.

TELECOMMUNICATIONS (FIBER OPTIC)

AT&T Communications, Inc.
Ord. No. 40-505

Sec. 1. Definitions.
Sec. 2. Grant.
Sec. 3. Use of right-of-way.
Sec. 12. Acceptance of Terms by Grantee.
Sec. 13. Conditions of Franchise.
Sec. 14. Invalidity of Ordinance.
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Kin Network, Inc. Ord. No. 43-504

Sec. 1. Definitions.
Sec. 2. Grant.
Sec. 3. Use of Right-of-Way.
Sec. 4. Grant of Easements.
Sec. 5. Indemnity and Hold Harmless.
Sec. 6. Payments and Charges.
Sec. 7. Compensation to City.
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WTG-West, Inc.
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Sec. 1. Definitions.
Sec. 2. Grant.
Sec. 3. Use of Right-of-Way.
Sec. 4. Grant of Easements.
Sec. 5. Indemnity and Hold Harmless.
Sec. 6. Payments and Charges.
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Sec. 10. Rights and Duties of Grantee Upon Expiration of Ordinance.
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Sec. 13. Participation in Utility Location Coordination Council.
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Wildflower Telecommunications, LLC Ord. No. 49-749

Sec. 1. Installation of the network.
Sec. 2. Term and termination.
Sec. 3. Removal and relocation.
Sec. 4. Maintenance and repair.
Sec. 5. Taxes.
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Level 3 Communications, LLC Ord. No. 50-392

Section 1. Definitions.
Section 2. Grant of Franchise.
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Section 11. Insurance.
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Verizon Wireless (VAW) LLC d/b/a Verizon Wireless Ord. No. 50-612

Section 1-A. Definitions.
Section 1. Installation of the network.
Section 2. Term and termination.
Section 3. Removal and relocation.
Section 4. Power, maintenance and repair.
Section 5. Attachment to municipal structures.
Section 6. Indemnification.
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Section 8. Default.
Section 9. Interference.
Section 10. Miscellaneous provisions.
Exhibit A Form of Supplement (for attachment to municipal structures)

Cox Wireless Access, LLC, Ord. No. 51-565

Section 1. Installation of the Network.
Section 2. Term and Termination.
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Section 6. Transfer of Ownership.
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ARTICLE I. CABLE TV (BROADBAND)

MULTIMEDIA CABLEVISION FRANCHISE (APPENDIX) Ordinance No. 42-264

AN ORDINANCE AMENDING ORDINANCE NO. 41-266 OF THE CITY OF WICHITA, KANSAS, GRANTING A FRANCHISE TO MULTIMEDIA CABLEVISION, INC. TO CONSTRUCT, OPERATE AND MAINTAIN A BROADBAND TELECOMMUNICATIONS NETWORK WITHIN THE CITY OF WICHITA; PROVIDING TERMS AND CONDITIONS FOR THE OPERATION OF SUCH SYSTEM; AND PROVIDING FEES THEREFOR; AND REPEALING THE ORIGINAL OF SAID ORDINANCE.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

Section 1. Definitions. For the purpose of this ordinance, the following terms, phrases, words, abbreviations and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number.

(a) "Broadband Telecommunication Network" ("BTN") or "System" shall mean all of the component, physical, operational and programming elements of any network of cable, optical electrical or electronic equipment, designed, constructed, wired or used for the purpose of producing, receiving, amplifying and transmitting by coaxial cable, fiber optics, microwave or other means audio and/or audio/visual electrical impulses of television, radio and other intelligences either analog or digital, including the cable television system, for sale or use by the inhabitants and businesses of the City, including without limitation antenna, cable, fiber, wires, lines, towers, amplifiers, conductors, converters, equipment, and facilities.

(b) "City" shall mean the City of Wichita, Kansas, a municipal corporation of the State of Kansas, in its present incorporated form or in any later reorganized, consolidated, enlarged, or reincorporated form.

(c) "Council" shall mean the present governing body of the City or any future board constituting the legislative body of the City.

(d) "Franchise" shall mean and include any authorization granted hereunder to construct, operate and maintain a BTN in the City.

(e) "Grantee" shall mean Multimedia Cablevision, Inc. or any subsequent provider of cable television service governed by the provisions of this franchise.

(f) "Facilities" shall mean cable lines, conduits, wires, cables, fiber, pipes, poles, towers, vaults and appliances, either under or above ground.

(g) "Right-of-way" shall mean present and future streets, alleys, rights-of-way and public easements, including easements dedicated in plats of the City of Wichita, Kansas.

(h) "Street right-of-way" shall mean the entire width between property lines of land, property or an interest therein of every way publicly maintained where any part thereof is open to the use of the public for purposes of vehicular traffic, including street, avenue, boulevard, highway, expressway, alley or any other public way for vehicular travel by whatever name.

(i) "Property of grantee" shall mean all property owned, installed or used by the grantee in the conduct of a BTN in the City under the authority of this franchise.

(j) "Cable" shall mean a cable television system as hereinafter defined.

(k) "Cable Television System" shall mean a system of antennae, coaxial cables, wires, wave guides or other conductors, equipment or facilities designed, constructed

or used for the purpose of providing television or FM radio service by wire, cable, fiber, or through its facilities as herein contemplated, all of which will be used to regularly supply the public with a service and which property, by the acceptance of this ordinance, Grantee will devote to the public use.

(l) "Subscriber" shall mean any person or entity receiving for any purpose the cable service of Grantee.

(m) "Gross Annual Receipts" shall mean any and all compensation and other consideration derived directly or indirectly by the Grantee, its affiliates, subsidiaries and parents, from the operation or use of all or part of the BTN operating within the City and franchised to the Grantee pursuant to this Ordinance, including, but not limited to, revenue from: subscribers who are residents of the City, service fees, auxiliary service fees, installation and reconnection fees, leased channel fees or other charges for any third party's use of the system, converter and other equipment rentals, personnel fees, studio rental and production equipment fees paid by residents of the City, interest income and extraordinary revenues, late payment charges or forfeited discounts, advertising revenues and other revenues from the operation of the BTN; provided, however, that this shall not include (i) revenues derived by any third party from its use of the system; or (ii) any taxes on services

furnished by the grantee imposed directly on any subscriber or user by any city, state or other governmental unit and collected by the Grantee on behalf of such governmental unit.

(n) "Transfer" shall mean the sale, forced, involuntary, or voluntary; lease; assignment; disposition of, in whole or in part; merger or consolidation of Grantee; or the transfer of 25% or more of the beneficial ownership, stock ownership, or right to control the Grantee, either directly or indirectly during the term of this franchise, either in a single transaction or a series of transactions, to a single person or group of persons acting in concert, none of whom owned, beneficially or otherwise, ten percent (10%) or more of the Grantee at the time this franchise ordinance was approved.

Section 2. Franchise granted. A franchise be and hereby is granted to Multimedia Cablevision, Inc., hereinafter referred to as Grantee, and Grantee is authorized to engage in the business of operating and providing a BTN in the City, and for that purpose to erect, install, construct, repair, replace, reconstruct, maintain and retain in, on, over, under, upon, across and along any public street, such poles, wires, fiber, cable conductors, ducts, conduit, vaults, manholes, amplifiers, appliances, attachments and other property as may be necessary and appurtenant to the BTN; and in addition, so to use, operate and provide similar facilities or properties rented or leased from other persons, firms or corporations, including but not limited to any public utility or other grantee franchised or permitted to do business in the City.

Section 3. Facilities.

(a) The Grantee shall use existing poles, towers or other existing facilities wherever possible and it shall be the sole responsibility of the Grantee to negotiate and enter into any and all contracts with the owner of such facilities to secure the necessary space thereon or therein for its operation under this franchise, and the Grantee shall permit any other utility or utilities by appropriate contract or agreement negotiated by the parties to use any and all facilities constructed or erected by the Grantee. All said agreements and installations shall be subject to all existing and future ordinances and regulations of the City.

(b) The Grantee will not erect a separate system of poles in the City or on the street right-of-way therein, but may erect poles where shown to be necessary when the necessity, the location, and the style of pole have been approved by the City Engineer. The erection of poles shall be subject to the provisions of Section 4 and all existing and future ordinances and regulations of the City applicable thereto.

(c) The Grantee shall not install or erect any facilities or apparatus in or on other public property, places or rights-of-way, or within any privately-owned area within the City which has not yet become a public street but is designated or delineated as a proposed public street on any tentative subdivision map approved by the City, except those installed or erected upon public facilities now existing, without obtaining the prior written approval of the City Engineer.

Section 4. Use of Right-of-Way. In the use of right-of-way under this franchise, the Grantee shall be subject to all rules, regulations, policies, resolutions and ordinances of general applicability now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power. In addition, the Grantee shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City relating to permits and fees, sidewalk and pavement cuts, utility location, construction coordination, beautification, and other requirements on the use of the right-of-way and shall comply with the following:

(a) The Grantee's use of right-of-way shall in all matters be subordinate to the City's use of the right-of-way for any public purpose. The Grantee shall coordinate the placement of its facilities in a manner which minimizes adverse impact on public improvements, as reasonably determined by the City. Where placement is not otherwise regulated, the facilities shall be placed with adequate clearance from

such public improvements so as not to impact or be impacted by such public improvement.

(b) All earth, materials, sidewalks, paving, crossings, utilities, public improvements, or improvements of any kind injured or removed by the Grantee in its activities under this franchise shall be fully repaired or replaced promptly by the Grantee at its sole expense and to the reasonable satisfaction of the City or owner thereof.

(c) All facilities constructed, replaced, or relocated in the right-of-way after the date hereof shall be placed underground unless otherwise agreed to by the City. In those areas and portions of the City where the Grantee is using facilities of other utilities which are not placed underground, Grantee may continue to use such aboveground facilities until such time as the other utility places them underground. Where there are obstructions in the right-of-way such as trees, shrubs, other utilities, commercial signs, man-made structures, or other like obstructions which make the cost of such underground burial unreasonable, the Grantee may request waiver of this requirement, in which event the City will not unreasonably withhold consent. Any amplifiers, vaults, boxes, pedestals, and similar facilities placed above ground in street right-of-way shall be located behind the sidewalk where feasible. Underground facilities shall be placed in appropriate size and type of rigid conduit under paving and under proposed paving as set forth in the Year 2000 Transportation Plan as on file with the Metropolitan Area Planning Commission except where otherwise agreed by the City and the Grantee. For purposes of this subsection, "underground" shall include a partial underground system, e.g., streamlining, so long as it meets the other requirements of this ordinance.

(d) The Grantee shall keep and maintain accurate records and as-built drawings depicting accurate horizontal and vertical location of all facilities constructed, reconstructed, or relocated in the street right-of-way of arterial streets after the date hereof. Such facilities shall be horizontally and vertically located at least every 100 feet and at any other alignment change. All points of facilities shall be horizontally located from street centerline, or section or quartersection lines or corners. Vertical locations or all points of facilities shall consist of elevations in either City datum or United States Geological Survey datum.

(e) The Grantee shall notify the City not less than three (3) working days in advance (such notice to be adequate for timely notice on the governing body agenda under City procedures) of any construction, reconstruction, repair, or relocation of facilities which would require any street closure which reduces traffic flow to less than two lanes of moving traffic. Except in the event of an emergency, as reasonably determined by the Grantee, no such closure shall take place without prior authorization from the City. In addition, all work performed in the traveled way or which in any way impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected. Such signing shall be in conformance with the latest edition of the Federal Highway Administration's Standards and Guideline for Work Zone Traffic Control, unless otherwise agreed to by the City.

(f) The Grantee shall cooperate promptly and fully with the City and take all reasonable measures necessary to provide accurate and complete information upon request from the City regarding the nature and horizontal and vertical location of its facilities located within right-of-way when requested by the City or its authorized agents for a public project. Such location and identification shall be at the sole expense of the Grantee without expense to the City, its employees, agents, or authorized contractors. The Grantee shall designate and maintain a local agent, familiar with the facilities, who is respon-

sible for satisfying information needs of the City and other users of the right-of-way.

(g) The Grantee shall promptly remove, relocate, or adjust any facilities located in right-of-way if reasonably necessary and directed by the City for a public project including those required by reason of traffic conditions, public safety, street vacation, freeway and street construction, change or establishment of street grade installation of sewers, drains, water pipes, power lines, signal lines and tracts of any other type of structures or improvements by public agencies. Such removal, relocation, or adjustment for a particular public project shall be performed by the Grantee once at its sole expense without expense to the City, its employees, agents, or authorized contractors and shall be specifically subject to rules and regulations of the City pertaining to such. If additional removal, relocation, or adjustment is the result of the inaccurate or mistaken information of the Grantee, the Grantee shall be responsible for such at its sole expense.

(h) Upon failure of the Grantee to commence, pursue, or complete any work required by law or by the provisions of any City ordinance or by its franchise to be done in any street right-of-way or other public place, within the time prescribed, and to the satisfaction of the City Engineer, the City Engineer, at his or her option, may cause such work to be done and the Grantee shall pay to the City the cost thereof in the amounts reported by the City Engineer, plus ten percent to the City within thirty days after receipt of such itemized report.

(i) It shall be the responsibility of the Grantee to take adequate measures to protect and defend its facilities in the right-of-way from harm or damage. If the Grantee fails to accurately or timely locate facilities when requested, it has no claim for costs or damages against the City and its authorized contractors unless such party is solely responsible for the harm or damage by its negligence or intentional conduct. Grantee shall be responsible to the City and its agents, representatives, and authorized contractors for all damages including, but not limited to, delay damages, repair costs, down time, construction delays, penalties or other expenses of any kind arising out of the failure of the Grantee to perform any of its obligations under this agreement unless the damaged party is solely responsible for the harm or damage by its negligence or intentionally caused harm. However, the City and its authorized contractors shall be responsible to take reasonable precautionary measures including calling for utility locations and observing marker posts when working near Grantee facilities.

(j) The Grantee, on the request of any applicant, shall remove or raise or lower its wires temporarily to permit the moving of houses or other structures. The expense of such temporary removal, raising or lowering of wires shall be paid by the party or parties requesting the same, and the Grantee may require such payment in advance. The Grantee shall be given not less than fifteen (15) days' written notice from the applicant detailing the time and location of the moving operations, and not less than twenty-four (24) hours, advance notice from the applicant advising of the actual operation.

(k) Permission is hereby granted to the Grantee to trim trees upon and overhanging streets, alleys, sidewalks and public places of said City so as to prevent the branches of such trees from coming in contact with the wires and cables of the Grantee, all of said trimming to be done under the supervision and direction of any City officials to whom said duties have been or may be designated.

(l) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the facilities in the right-of-way shall be in accordance with applicable present and future federal, state, and

City law and regulation, including but not limited to the most recent editions of the National Electrical Code, the National Electrical Safety Code, and the Fiber Optic Cable Installation Standard of the Telecommunications Industry Committee, or such substantive equivalents as may hereafter be adopted or promulgated. It is understood that the standards established in this paragraph are minimum standards and the requirements established or referenced in this ordinance may be additional to or stricter than such minimum standards. It is further understood that notwithstanding such standards the Grantee shall have the right to wire and install its own power supplies.

Section 5. Rates and Service. The parties recognize that under federal statutes and regulations in existence at the time of the enactment of this ordinance, the City is limited in its ability to control or regulate rates for Cable Television Service. The City reserves the right to regulate rates and services in the event that changes in the law or in competition should allow such regulation. In such event, either the City or the Grantee may request negotiation of the provisions providing for such regulation.

Section 6. Term. The rights, privileges, and franchise granted by this ordinance shall, unless this franchise is sooner terminated as herein provided, be and remain in full force and effect for a period of fifteen (15) years from the effective date hereof.

Section 7. Termination and Forfeiture of Franchise. This franchise may be terminated prior to its date of expiration in the event that:

(a) The Grantee has failed to comply with any material provision of this ordinance, or has, by act of omission, materially violated any term or condition of any franchise or permit issued hereunder; or

(b) Any provision of this ordinance has become invalid or unenforceable, and the parties are unable to reach agreement on a substitute provision, and the City further finds that such provision constitutes a consideration material to the grant of said franchise; or

(c) The City acquires the system property of Grantee as set forth herein.

Upon such termination, all rights and privileges granted by this ordinance and all rights hereunder shall cease, terminate, and become null and void, provided that said forfeiture shall not take effect until the City shall carry out the following proceedings.

Before the City proceeds to terminate this franchise, it shall make written demand that the Grantee comply with the provisions of this ordinance or correct any action deemed cause for termination. If such failure to comply or take appropriate corrective action continues for a period of thirty (30) days following such written demand, the City may serve a written notice upon Grantee setting forth the grounds upon which it proposes to terminate the franchise and setting a public hearing before the Council at least thirty (30) days following such notice. After notice and such public hearing, wherein Grantee shall have the right to present evidence justifying its actions, the Council may immediately terminate the franchise upon a finding of the existence of any of the events of this Section as set forth in the notice.

Section 8. Review or Re-negotiation. Recognizing that the field of telecommunications is rapidly changing in the areas of regulation, technology, financing, marketing, and law, therefore, in order to provide maximum flexibility in this franchise and to help achieve a continued advanced and modern system, the following provisions are established for review and re-negotiation of the franchise hereby granted:

(a) In the event of a change in federal or state law materially affecting such provisions and upon request by either the City or the Grantee to the other, the parties shall re-negotiate the provisions of this ordinance pertaining to regulation of rates and services (Section 5), compensation (Section 9), or programming (Section 10).

(b) The City shall review the entire franchise operation within 30 days of every fifth anniversary of the franchise hereby granted to determine to the extent permitted by federal or state law if any changes are needed in the service rate structures; free or discounted services; application of new technologies; system performances; services provided; programming offered; customer complaints; privacy in human rights; amendments to this ordinance; undergrounding progress; and judicial and Federal Communication Commission rulings.

(c) Special review and re-negotiation sessions may be held at any time during the term of the franchise on the request of either the City or the Grantee with such request to specify the topics to be reviewed and renegotiated including any proposals therefor.

(d) Nothing contained in subsection (b) or (c) of this section, however, shall be construed as requiring either the City or grantee to negotiate a new franchise, or modify or extend an existing franchise.

Section 9. Compensation to the City. Grantee hereby contracts and is hereby obligated during the terms of this franchise ordinance to pay to the City a sum equal to five percent (5%) of the gross annual receipts of the Grantee, provided that the parties may re-negotiate this provision in the event that federal or state statutes or regulations allow or mandate a higher or lower amount. Any payments made by the Grantee to the City in connection with franchise renewal proceedings, transfer of ownership, or as compensation for costs incurred by the City in connection with the franchise shall not be deemed as any portion of a franchise fee.

Such payments shall be made in monthly installments, based upon actual receipts, 30 days after the end of the month to which such payments shall apply. True-up payments shall be made when necessary at the end of each calendar year this ordinance is in effect, payable within 60 days. Grantee shall also provide such annual accounting reports as may be reasonably requested by the City in addition to monthly supporting data in order for the City to properly verify compliance with this ordinance.

The City or its authorized representative shall have the right to periodically audit the books and records of the Grantee to verify that compensation has been correctly computed and paid. The Grantee agrees to reimburse the City for the reasonable costs of such audit if the audit discloses that the Grantee has paid 98% or less of the compensation due the City for the period of such audit. In the event the accounting rendered to the City by the Grantee herein is found to be incorrect, then payment shall be made on the corrected amount within thirty (30) days of written notice, it being agreed that the City may accept any amount offered by the Grantee but the acceptance thereof by the City shall not be deemed a settlement of such item if the amount is in dispute or is later found to be incorrect. The Grantee agrees that all of its relevant books, records and documents and all of its contracts and agreements shall at all reasonable times be open to the inspection and examination of the officers of the City and the duly authorized agents, auditors and employees of the City for the purpose of verifying said report, or for any other lawful purpose.

The Grantee shall correctly code all customers and receipts from service within the corporate limits of the City. Such coding shall be updated to reflect annexation and other changes in City boundaries, customers, and receipts from service within thirty (30) days of notice or reasonable knowledge of any such change or modification. In the event of large annexations, the Grantee may request additional time in writing which request will not be unreasonably denied by the City.

Section 10. Programming. Grantee agrees to provide at least the same mix, quality, and level of cable television services as existed at the time of the original grant of franchise to the Grantee. Grantee shall provide free and adequate channel capacity for educational and governmental access and use as set forth in Section 19. In the event that the City shall be granted programming control by federal or state law or regulation during

the term of this franchise, either party may request that such programming provisions be renegotiated.

Section 11. Conditions.

(a) This franchise shall be nonexclusive.

(b) No privilege or exemption is hereby granted or conferred by this franchise except those specifically prescribed herein.

(c) Any privilege claimed under this franchise by the Grantee in any street right-of-way or other public property shall be subordinate to any prior lawful occupancy of the streets or other public property.

(d) Time shall be of the essence for this franchise granted hereunder. The Grantee shall not be relieved of its obligation to comply promptly with any of the provisions of this ordinance or by any failure of the City to enforce prompt compliance.

(e) Any right or power in, or duty impressed upon, any officer, employee, department or board of the City shall be subject to transfer by the City to any other officer, employee, department or board of the City.

(f) The Grantee shall have no recourse whatsoever against the City for any loss, cost, expense or damage arising out of any provision or requirement of this ordinance, except to the extent such is caused by the negligence of the City or its agents.

(g) Except as otherwise provided herein, the Grantee shall be subject to all applicable requirements of City ordinance, rules, regulations and specifications heretofore or hereafter enacted or established.

(h) This franchise does not relieve the Grantee of any obligation involved in obtaining pole space from any department of the City, utility company or from others maintaining poles in streets.

(i) This franchise shall be in lieu of any and all other rights, privileges, powers, immunities and authorities owned, possessed, controlled or exercisable by Grantee, or any successor to any interest of Grantee, of or pertaining to the construction, operation or maintenance of any system in the City; and the acceptance hereof shall operate, as between Grantee and the City, as an abandonment of any and all of such rights, privileges, powers, immunities and authorities within the City, to the effect that, as between Grantee and the City, any and all construction, operation and maintenance by Grantee of its system in the City shall be, and shall be deemed and construed in all instances and respects to be, under and pursuant to said franchise, and not under or pursuant to any other right, privilege, power, immunity or authority whatsoever.

(j) Once service is established, the Grantee shall be required to provide continuous service to each customer in return for payment of the established fee. If the Grantee overbuilds, rebuilds, modifies or sells the system, or the City revokes or fails to renew this franchise, or the City elects to acquire the system, the Grantee is required as part of this franchise to continue to operate the system providing all service at existing levels until an orderly change of operation is effectuated. In the event the Grantee fails to operate the system for five consecutive days without prior approval of the City, or willfully withholds service for any reason without just cause, the City or its agent shall have the right to operate the system until such time as a new operator is selected. If the City is required to fulfill this obligation for the Grantee, Grantee shall reimburse the City for any costs or damages which are the result of Grantee's failure to perform.

(k) Grantee shall diligently proceed to extend service into newly annexed areas of the City when the population density reaches 20 homes per mile of cable. This requirement may be waived by the City upon written request and good cause shown.

Section 12. Transfer. This franchise shall be a privilege to be held in personal trust by the original Grantee. It cannot in any event be transferred without the prior consent of the Council expressed by ordinance and then only under such conditions as may therein be prescribed. Any such transfer or assignment shall be made only by an instrument in writing, a duly executed copy of which shall be filed in the office of the City Clerk within thirty (30) days after any such transfer or

assignment. The said consent of the Council may not be arbitrarily refused; provided, however, the proposed assignee must show financial responsibility and must agree to comply with all provisions of this ordinance; and provided, further, that no such consent shall be required for a transfer in trust, mortgage or other hypothecation as a whole, to secure an indebtedness.

Grantee shall give the City at least ninety (90) days advance notice of any proposed transfer, which notice shall set forth the pertinent details of the proposed transfer and provide complete information concerning the transferee's financial and operational qualifications.

Grantee shall be required to compensate the City for all reasonable costs incurred in evaluating the merits of a proposed transfer and the financial and operational qualifications of the proposed transferee, regardless of whether approval to such transfer is granted.

Section 13. City rights.

(a) Nothing herein shall be deemed or construed to impair or affect, in any way, to any extent, the right of the City to acquire the property of the grantee by purchase, termination, or through the exercise of the right of eminent domain. Upon non-renewal or termination of the franchise, the City shall have the right to purchase the system at a fair and just value, which shall not include any amount for the franchise itself or for any of the rights or privileges granted, and considering the harm to the community arising from actions of Grantee's resulting in non-renewal or termination. The price of purchase shall be the fair market value determined by standard appraisal provisions established by two independent appraisers. If the price set by the appraisers differs by less than 10%, the price shall be determined by an average of the two. If the price set by the appraiser differs by more than 10%, a third independent appraiser, appointed by the two and acceptable to both Grantee and City, shall make an appraisal and the three prices averaged to determine the purchase price. Nothing herein contained shall be construed to contract away or to modify or abridge, either for a term or in perpetuity, the City's right of eminent domain, to the extent applicable under appropriate federal and state laws.

(b) There is hereby reserved to the City every right and power which is required to be reserved or provided by any ordinance of the City of general applicability, and the Grantee, by its acceptance of this franchise, agrees to be bound thereby and to comply with any action or requirements of the City in its exercise of such rights or power, heretofore or hereafter enacted or established.

(c) Neither the granting of this franchise nor any of the provisions contained herein shall be construed to prevent the City from granting any identical, or similar, franchise to any other person, firm or corporation, within all or any portion of the City. In the event the City enters into a cable television franchise with any other party, which franchise contains terms more favorable or less burdensome to such party than the provisions of the Grantee's Franchise, including but not limited to, franchise fees, access channels, financial commitment to the City, or universal service requirements, then, upon written notice to the City delivered by the Grantee not less than thirty (30) days after the City grants such other franchise, the City and the Grantee shall commence attempting to reach a mutually acceptable, good faith determination that any such term is more favorable or less burdensome. In the event that such mutually acceptable determination is reached by the City and the Grantee, then this ordinance shall be amended to include such provisions. In the event that no such determination is reached, the Grantee shall continue to comply with the terms and conditions of this Franchise to the extent reasonably possible. In the event that Grantee fails to give timely notice to the City as provided hereinabove, all rights of Grantee under this paragraph shall immediately cease and terminate.

(d) Neither the granting of this franchise nor any provision hereof shall constitute a waiver or bar to the exercise of any governmental right or power of the City.

(e) When the City has reason to believe that the signals being received by individual subscribers do not meet the Federal Communications

Commission standards (as set forth in 47 CFR § 76.605(a)(1) to (a) (10) or as enumerated therein until substitute standards are agreed by the parties in the event of repeal of said sections) for such signals, on request of the City, Grantee will conduct tests of its system to these individual subscribers to determine whether the signals received by these subscribers comply with these standards. Should such tests indicate noncompliance with this section grantee will immediately take such steps as are required to meet said standards and will furnish to the City test results proving compliance with these standards in either event. The Grantee shall measure system performance at least annually, bring any deviations from the standards to the City's attention, and advise the City of a timetable and plan of action for correcting observed deficiencies.

(f) The City shall have the right to receive basic cable service at buildings and locations owned or operated by the City or its boards and agencies without charge for installation or service. This service shall be provided at those locations now served or those hereafter reasonably requested for service in writing by the City Manager.

Section 14. Grantee's Property—Abandonment.

(a) In the event that the use of any part of the BTN system is discontinued for any reason for a continuous period of twelve months, or in the event such system or property has been installed in any street or public place without complying with the requirements of this franchise, or the franchise has been terminated, canceled, or has expired, the Grantee shall promptly, upon being given ten days' notice, remove from the streets or public place all such property and poles of such system other than any which the City Engineer may permit to be abandoned in place. In the event of such removal, the Grantee shall promptly restore the street or other area from which such property has been removed to a condition satisfactory to the City Engineer.

(b) Any property of the Grantee remaining in place one hundred and eighty (180) days after the termination or expiration of the franchise shall be considered permanently abandoned. The City Engineer may extend such time not to exceed an additional thirty days.

(c) Any property of the Grantee to be abandoned in place shall be abandoned in such manner as the City Engineer shall prescribe. Upon permanent abandonment of the property of the Grantee in place, the property shall become that of the City, and the Grantee shall submit to the City Engineer an instrument in writing to be approved by the City Attorney, transferring to the City the ownership of such property.

Section 15. Indemnity and Hold Harmless. The Grantee shall hold and save the City, its officers, employees, agents, and authorized contractors, harmless from and against all claims, damages, expense, liability, and costs including attorney fees, which may be occasioned in any manner, solely or in part by the Grantee's occupancy of right-of-way, or provision of service under this franchise except to the extent caused by the negligence of the City or its agents. In the event a claim shall be made or an action shall be instituted against the City growing out of such occupancy of the right-of-way by facilities of the Grantee, then upon notice by the City to the Grantee, the Grantee will assume liability for the defense of such actions at the cost of the Grantee, subject to the option of the City to appear and defend, at its own cost, any such case.

Section 16. Corporate surety bond.

(a) The Grantee shall, concurrently with the filing of an acceptance of award of this franchise, file with the City Clerk and at all times thereafter maintain in full force and effect for the term of such franchise or any renewal thereof, at Grantee's sole expense, a corporate surety bond in a company and a form approved by the City Attorney, in the amount of One Hundred Thousand Dollars ($100,000.00), renewable annually, and conditioned upon the faithful performance of Grantee, and upon the further condition that in the event Grantee shall fail to comply within a reasonable time after notice that it is not in compliance with any one or more of the provisions of this franchise issued to the Grantee, there shall be recoverable jointly and severally from the principal and surety

of such bond any damages or loss suffered by the City as a result thereof, including the full amount of any compensation, indemnification, or cost of removal or abandonment of any property of the Grantee as prescribed hereby which may be in default, plus a reasonable allowance for attorney's fees and costs, up to the full amount of the bond; said condition to be a continuing obligation for the duration of such franchise, and any renewal thereof and thereafter until the Grantee has liquidated all of its obligations with the City that may have arisen from the acceptance of said franchise or renewal by the Grantee or from its exercise of any privilege therein granted. The bond shall provide that thirty days' prior written notice of intention not to renew, cancellation, or material change be given to the City.

(b) Neither the provisions of this section or any bond accepted by the City pursuant hereto, nor any damages recovered by the City thereunder, shall be construed to excuse faithful performance by the Grantee or limit the liability of the Grantee under any franchise issued hereunder or for damages, either to the full amount of the bond or otherwise.

Section 17. Liability Insurance Policy.

(a) The Grantee shall, concurrently with the filing of an acceptance of award of this franchise, furnish to the City and file with the City Clerk, and at all times during the existence of any franchise granted hereunder, maintain in full force and effect, at its own cost and expense, a liability insurance policy in the amount of Two Million Dollars ($2,000,000.00), in a company licensed to do business in the State of Kansas, and in a form satisfactory to the City Attorney, indemnifying and saving harmless the City, its officers and employees from and against any and all claims, demands, actions, suits and proceedings by others, against all liability to others, including but not limited to any liability for damages by reason of or arising out of any failure by the Grantee to secure consents from the owners, authorized distributors or licensees of programs to be delivered by the Grantee's system, and against any loss, cost, expense, and damages resulting therefrom, or from any violation or infringement of any copyright, trademark, franchise or similar right; because of any breach of the right of privacy; from violation of any copyright or trademark statute or law; because of any unfair competition; including reasonable attorney's fees, arising out of the exercise or enjoyment of its franchise, irrespective of the amount of the comprehensive liability insurance policy required hereunder.

(b) The Grantee shall, concurrently with the filing of an acceptance of an award of this franchise, furnish to the City and file with the City Clerk and at all times during the existence, of any franchise granted hereunder, maintain in full force and effect, at its own cost and expense, a general comprehensive liability insurance policy, in protection of the City, at its officers, boards, commissions, agents, and employees, in a company licensed to do business in the State of Kansas and a form satisfactory to the City Attorney, protecting the City and all persons against liability for loss or damage for personal injury, death and property damage, occasioned by the operations of Grantee under such franchise, with minimum liability limits of $500,000 per single occurrence. In addition, the Grantee shall maintain a policy of comprehensive automobile liability insurance in a combined single limit of not less than $500,000 and a Worker's Compensation and Employer's Liability policy for limits of not less than the statutory requirement for Worker's Compensation, and $500,000 Employer's Liability. Grantee agrees that in the event of future changes in law and upon notice by the City, the minimum levels of insurance and scope of coverage required by this paragraph may be increased within the bounds of commercial reasonableness to the amount that may be required to provide coverage of the events of this paragraph.

(c) The policies mentioned in the foregoing paragraphs shall name the City, its officers, boards, commissions, agents and employees, as additional insured, and shall contain a provision that a written notice of cancellation or reduction in coverage of said policy shall be delivered to the City ten days in advance of the effective date thereof; if such insurance is provided by a policy which also covers Grantee or any other entity or

person other than those above named, then such policy shall contain the standard cross-liability endorsement.

Section 18. Right of Inspection.

(a) At all reasonable times, the Grantee shall permit any duly authorized representative of the City to examine all property of the Grantee, together with any appurtenant property of the Grantee situated within or without the City, and to examine and transcribe any and all maps and other records kept or maintained by the Grantee or under its control which deal with the operations, affairs, transactions, or property of the Grantee with respect to its franchise. If any such maps or records are not kept in the City, or upon reasonable request made available in the City, and if the Council shall determine that an examination thereof is necessary or appropriate, then all travel and maintenance expense necessarily incurred in making such examination shall be paid by Grantee.

(b) The Grantee shall prepare and furnish to the City Engineer and the City Manager at the times and in the form prescribed by either of said officers, such reports with respect to its operations, affairs, transactions or property, as may be reasonably necessary or appropriate to the performance of any of the rights, functions, or duties of the City or any of its officers in connection with the franchise.

(c) The Grantee shall file with the City Engineer, on or before the last day in March of each year, a current map or set of maps drawn to scale, showing all cable system equipment installed and in place in street rights-of-way and other public places of the City.

Section 19. Installation Requirements.

The system shall be installed and maintained in accordance with the highest and best accepted standards of the industry to the effect that subscribers shall receive the highest possible service. In determining the satisfactory extent of such standards, the following, among others, shall be considered:

(a) That the system be installed using all band equipment capable of passing the entire VHF and FM spectrum, and that it have the further capability of converting UHF for distribution to subscribers on the VHF band;

(b) That the system, as installed, be capable of passing standard color TV signals without the introduction of material degradation on color fidelity and intelligence;

(c) That the system and all equipment be designed and rated for twenty-four hours per day continuous operation;

(d) One channel or band is to be reserved for the use of the City. The City will pay for any special equipment necessary to feed into the system, such as TV cameras, fire alarm boxes, etc., and will pay for the maintenance for such special equipment.

(e) Two channels or bands are to be reserved for the use of public learning institutions. Specifically one channel or band is to be reserved for the use of The Wichita State University and one channel or band is to be reserved for the use of Unified School District #259. Such learning institutions shall pay for any special equipment necessary to feed into the system and will pay for the maintenance for such special equipment.
(Amended Ord. No. 47-125, § 1, 9-19-06)

Section 20. Grantee Requirements.

(a) When not otherwise prescribed herein, all matters herein required to be filed with the City shall be filed with the City Clerk.

(b) The Grantee shall pay to the City a sum of money sufficient to reimburse it for all publication expenses incurred by it in connection with the granting of a franchise. Such payment shall be made within thirty days after the City furnishes the Grantee with a written statement of such expenses.

(c) The Grantee shall maintain an office within the City limits or at a location which subscribers may call without incurring added message or toll charges so that cable maintenance service shall be promptly available to subscribers at all times.

(d) Inquiries or complaints from subscribers shall be received during normal business hours. Monday through Friday. All complaints and inquiries will be investigated, responded to, or acted upon as promptly as practical. Written notice of this complaint procedure, including the identity

of the City office responsible for receiving unresolved complaints, shall be given to each subscriber at the time of initial subscription to the cable system. Upon request, Grantee shall allow inspection of complaint files or provide the City with periodic reports listing the number and nature of subscriber complaints and actions taken to resolve them.

(e) Upon the request of a subscriber, Grantee shall provide a pro rata billing abatement to any subscriber who is without service through no fault of the subscriber for a period of over 24 hours.

(f) No persons, firm, or corporation in the existing service area of the Grantee shall be arbitrarily refused service and no resident of the City or group of residents will be denied service because of the income of the residents of the local area in which such resident or group resides; provided, however, that the Grantee shall be not required to provide service to any subscriber who does not pay the applicable connection fee or monthly service charge.

(g) Grantee shall remain a member of and participate in the Utility Location and Coordination Council established by Sections 2.12.1093 through 2.12.1097 of the Code of the City of Wichita, Kansas, and any amendment thereto and shall participate in joint funding with other utilities.

Section 21. Joint Use Agreement. When any portion of the cable system is to be installed on existing utility poles and facilities certified copies of the agreements for such joint use of poles and facilities shall be filed with the City Clerk. Said agreement shall indicate all charges therefor.

Section 22. Acceptance.

(a) This franchise shall not become effective unless and until all things required in this Section and Sections 16, 17(a), and 17(b) hereof are done and completed, all of such things being hereby declared to be conditions precedent to the effectiveness of any such franchise granted hereunder. In the event any of such things are not done and completed in the time and manner required, the Council may declare the franchise null and void.

(b) Within sixty days after the adoption date of the ordinance awarding a franchise, the Grantee shall file with the City Clerk its written acceptance, in form satisfactory to the City Attorney, of the franchise, together with the bond and insurance policies required by Sections 16, 17(a), and 17(b) hereof, respectively, and its agreement to be bound by and to comply with and do all things required of it by the provisions of this franchise. Such acceptance and agreement shall be acknowledged by the Grantee before a notary public, and shall in form and content be satisfactory to and approved by the City Attorney.

Section 23. Repeal. The original of Ordinance No. 41-266 is hereby repealed.

Section 24. Severability. If any section, subsection, sentence, clause, or phrase of this ordinance is for any reason held illegal, invalid, or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions hereof. The Council hereby declares that it would have passed this ordinance and each section, subsection, sentence, clause, or phrase hereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses, or phrases be declared illegal, invalid, or unconstitutional. The invalidity of any portion of this ordinance shall not abate, reduce or otherwise affect any consideration or other obligation required of the Grantee of any franchise granted hereunder.

Section 25. Governing Law. The provisions of this franchise shall be subject to applicable federal statutes, rules and regulations, including but not limited to the Communications Act of 1934, as amended. In the event of any conflict between the provisions of this franchise and such federal law, the latter shall prevail. In all other matters, this franchise shall be governed according to the laws of the State of Kansas.

Section 26. Effective Date. This ordinance shall not take effect or become in force until it

shall have been read in full at three regular weekly meetings of the City Council of the City of Wichita, nor until and immediately after its final passage it shall be published in the official city paper once each week for two consecutive weeks, and such ordinance shall not take effect or be in force until and after the expiration of sixty days from the date of its final passage, nor if, pending the final passage and taking effect of said ordinance, an election shall be called as provided by law, in which event said ordinance shall not take effect or become in force until the same shall have been duly approved.

ARTICLE II. ELECTRIC

BUTLER RURAL ELECTRIC COOPERATIVE ASSOCIATION, INC. Ordinance No. 52-337*

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS, GRANTING TO BUTLER RURAL ELECTRIC COOPERATIVE ASSOCIATION, INC., ITS SUCCESSORS AND ASSIGNS, AN ELECTRIC, LIGHT, HEAT, AND POWER FRANCHISE AND PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. DEFINITIONS.

For purposes of this franchise, the following words and phrases shall have the meanings given herein:

"Arterial Streets"—shall mean those portions of Rights-of-Way designated as arterial streets by City of Wichita Code § 11.96.100.

"Business Day"—shall mean a day which is not a Saturday, Sunday, or any day designated as a holiday by the Congress of the United States, by the State of Kansas, or by the City of Wichita.

"City"—shall mean the City of Wichita, Kansas.

"Company"—shall mean Butler Rural Electric Cooperative Association, Inc.

"Customer" or "Consumer"—shall mean any person, firm, partnership, association, corporation, company or organization of any kind served by Company hereunder within the City.

"Electric Utility Service"—shall mean and include:

(i) all sales of electricity to all Customers at retail within the corporate limits of the City;

(ii) ancillary or unbundled electric services provided to all Customers at retail within the corporate city limits of the City when sold separately from kWh which shall include, but not be limited to:

(a) reactive supply and voltage control,

(b) scheduling,

(c) system control and dispatch,

(d) regulation and frequency response,

(e) energy imbalance,

(f) operating reserves,

(g) supplemental reserves, and

(h) spinning reserves; and

(iii) transmission and distribution of electricity when sold separately from energy to any person located within the city limits of the City.

"Electric Utility System" or "System"—shall mean an electric power system installed and operated in the City in compliance with applicable rules and regulations of the Federal Energy Regulatory Commission (FERC) and Kansas Corporation Commission (KCC), and their successors, which shall include, but not be limited to, the generation, transmission and distribution facilities, equipment and administrative services necessary to provide electric service for any use in the City, and such extensions, additions or reductions as may hereafter be made.

"Emergency"—shall mean a reasonably unforeseen occurrence with a potential to endanger personal safety or health, or cause substantial damage to property, that calls for immediate action.

"Facilities"—shall mean electric light and power lines, together with all necessary or desirable appurtenances, including underground conduits, poles, towers, wires and other appurtenances.

"Gross Receipts"—shall mean all revenues received by the Company from providing Electric Utility Service within the corporate limits of the City but shall not include any administrative or non-recurring charges associated with the provision of Electric Utility Service within the corporate limits of the City.

*__Editor's note—__Ch. Ords. 46-206 and 49-755 have been removed by the editor, inasmuch as the franchise agreements set out therein have expired and appear to be superseded by Ch. Ord. No. 52-337.

"Person"—shall mean any individual, firm, partnership, association, corporation, company or organization of any kind.

"Public Project"—shall mean any project planned or undertaken by the City or any other governmental entity for construction, reconstruction, maintenance, or repair of public facilities or improvements, including without limitation streets, alleys, sidewalks, sewer system, water system, drainage system, Right-of-Way improvement, or any other purpose of a public nature.

"Public Project for Private Development"—shall mean a Public Project, or that portion thereof, arising solely from a request or requirement of a third party primarily for the benefit and use of a third party.

"Retail Wheeling"—shall mean the use of the Company's transmission, distribution, and associated Facilities of its Electric Utility System to deliver electricity purchased by end use Customers located within the City from electric suppliers other than the Company.

"Right-of-Way"—shall mean only the area of real property in which the City has a dedicated or acquired right-of-way interest in the real property. It shall include the area on, below, or above the present and future streets, alleys, avenues, roads, highways, or boulevards dedicated or acquired as rights-of-way. The term does not include the airwaves above a right-of-way with regard to wireless telecommunications or other nonwire telecommunications or broadcast service, easements obtained by utilities, or private easements in platted subdivisions or tracts. The term does not include property owned or held by the City that is typically not considered right-of-way, including, but not limited to, undeveloped road right-of-way in City parks, reserves and in or around City buildings.

SECTION 2. GRANT.

(a) There is hereby granted to Company the non-exclusive right, privilege, and franchise to construct, maintain, extend, operate, reconstruct, and replace Facilities for its Electric Utility System in, through, and along the Right-of-Way of the City for the provision of Electric Utility Services to the City, the inhabitants thereof, and persons and corporations beyond the limits thereof, for the full term of this franchise under the terms and conditions herein set forth.

(b) This franchise does not authorize the Company to use its existing Facilities, or to construct new Facilities, in order to provide cable television service, telecommunications service, network access service, internet access service, leased fiber optic services, video programming service, or any other telecommunications or telephone service to existing or potential customers, and such services are not permitted under this franchise.

(c) The Company must revise its franchise fee payments due to any expansion or reduction by annexation or contraction within a reasonable time after receipt of notice from the City, but in no event later than thirty (30) calendar days after receipt of such notice.

SECTION 3. TERM.

(a) The term of this franchise shall be for a period of ten (10) years from the effective date hereof.

(b) If the rate of compensation is changed by City Ordinance, the City shall notify the Company with written notice and the new rate of compensation shall become effective and applied to this franchise upon notification. The rate of compensation, if changed by City Ordinance, is not a negotiable item; however, any increase in compensation/fee shall be in compliance with the public notification procedures set forth in K.S.A. 12-2001.

(c) Upon written request of either the City or the Company, this franchise shall be reopened and renegotiated at any time upon any of the following events:

(i) changes in federal, state, or local laws, regulations, or orders that materially affect any rights or obligations of either the City or Company, including but not limited to the scope of the franchise granted to the Company or the compensation to be received by the City, hereunder;

(ii) changes in the structure or operation of the electrical power industry that materially affect any rights or obligations of either the City or the Company, including but not limited to: (A) the scope of the franchise granted to the Company, (B) the compensation to be received by the City hereunder, (C) the institution of Retail Wheeling or customer choice of electric supplier, or (D) the unbundling and separate pricing of the generation, transmission or distribution of Electric Utility Service; and

(iii) any other material and unintended change or shift in the economic benefit that either the City or the Company reasonably relied upon and reasonably anticipated upon entering into this franchise.

(d) In any negotiation properly commenced pursuant to Section 3(b), the City and the Company shall negotiate in good faith in an effort to agree upon mutually satisfactory amendment(s). Failure of the City and Company to successfully renegotiate the materially affected provisions of this franchise under Section 3(b) shall give either party the right to terminate this franchise by giving written notice of termination within sixty (60) days of the event giving rise to the negotiations under subsection (b), in which case the franchise shall terminate 60 days after such notice is given. If neither party gives notice of termination within such time period, the franchise shall remain in effect according to its then existing terms.

(e) Amendments under this Section, if any, shall be made by ordinance as prescribed by statute. The franchise shall remain in effect according to its terms pending completion of any renegotiation provided by subsections (b) and (c).

SECTION 4. COMPENSATION TO THE CITY.

(a) In consideration of, and as compensation for, the franchise and privilege hereby granted, Company shall make an accounting to the City once each month of all its Gross Receipts during the preceding month. Such accounting shall be submitted by the fifteenth (15th) day of the month following the calendar month that is the subject of the accounting, and shall be accompanied by a report of the Company's Gross Receipts for the preceding month upon which fees are calculated.

(b) The Company shall pay to the City, at the time of making such report, an amount equal to six percent (6%) of the Gross Receipts of the Company during such preceding month. Such payments shall be made to the City under such additional procedures as are mutually agreed to by the Company and the City.

(c) In the event the accounting rendered to the City by the Company is found to be incorrect, then an adjustment shall be promptly made on the corrected amount. The City may accept any amount offered by the Company, but the acceptance thereof by the City shall not be deemed a settlement of such item if the amount is in dispute or later found to be incorrect. Such of the Company's books, records, documents, contracts and agreements as may be reasonably necessary for an audit of the Company's performance under this ordinance shall at all reasonable times and upon reasonable request be opened to the inspection and examination by the officers of the City and its duly authorized agents, auditors, and employees for the purpose of verifying said accounting. For purposes of this provision, the Company shall maintain appropriate records for three past years plus the current year.

(d) For each and every month, or any part thereof, that the compensation provided for by this franchise remains unpaid after the same becomes due and payable to the City, there shall be added to such payment, as a late charge, a sum equivalent to the statutory rate for interest on the unpaid amount. Such late charge shall be applicable to sums that are delinquent as well as any sums due the City as the result of an audit or review of the Company's records.

(e) Except as provided herein, the payments and compensation herein provided shall be in lieu of all other licenses, taxes, charges, and fees

imposed by the City. Company shall continue to be responsible for and subject to the following licenses, taxes, charges and fees:

(i) the usual general property taxes and special ad valorem property taxes;

(ii) sales and excise taxes;

(iii) any permit fees and charges for pavement cuts or other permit fees and charges based on restoring premises to their previous condition; and

(iv) charges made for privileges which are not in any manner connected with the provision of Electric Utility Service, as such.

(f) In the event that either state or federal governmental entities authorize or require, or Company on its own initiative engages in: (1) Retail Wheeling or customer choice of electric supplier; or (2) the unbundling and separate pricing of the generation, transmission or distribution of Electric Utility Service(s), then the revenues obtained by Company from these activities from service provided within the corporate limits of the City shall be included in Company's Gross Receipts for the purpose of calculating fees due to the City hereunder.

SECTION 5. USE OF RIGHT-OF-WAY.

(a) *Rules and Regulations.* In its use of Right-of-Way under this franchise, the Company shall be subject to all rules, regulations, policies, resolutions and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power. In addition, the Company shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City relating to permits, fees, sidewalk and pavement cuts, utility location, construction coordination, screening, and other requirements on the use of the Right-of-Way in the reasonable exercise of its police power, provided, however, that nothing contained herein shall constitute a waiver of or be construed as waiving the right of the Company to oppose, challenge, or seek judicial review of, in such manner as is now or may hereafter be provided by law, any such rules, regulation, policy, resolution, or ordinance proposed, adopted, or promulgated by the City.

(b) *Subordinate to City Use.* The Company's use of Right-of-Way shall in all matters be subordinate to the City's use of the Right-of-Way for any public purpose. The Company shall coordinate the installation of its Facilities in the Right-of-Way in a manner that minimizes adverse impact on Public Projects, as reasonably determined by the City. Where installation is not otherwise regulated, the Facilities shall be placed with adequate clearance from such Public Projects so as not to conflict with such Public Projects.

(c) *Restoration.* All earth, materials, sidewalks, paving, crossings, utilities, Public Projects, or improvements of any kind located within the Right-of-Way that are damaged or removed by the Company in its activities under this franchise shall be fully repaired or replaced promptly by the Company at its sole expense, however, which such activity is a joint project of utilities or franchise holders, the expenses thereof shall be prorated among the participants, and to the reasonable satisfaction of the City in accordance with the ordinances and regulations of the City pertaining thereto.

(d) *Public Project for Private Development.* The Company shall not be responsible for the expenses of relocation to accommodate any new Public Project for Private Development initiated after the effective date of this ordinance. The expenses attributable to such a project shall be the responsibility of the third party upon the request and appropriate documentation of the Company. Before such expenses may be billed to the third party, the Company shall be required to coordinate with the third party and the City on the design and construction to ensure that the work required is necessary and done in a cost effective manner. Upon the request of the Company or the third party, the allocation of expenses attributable to the project shall be made in the reasonable determination of the City. Eligible third parties may request to have the City specially assess those expenses billed by the Company under this section.

(e) *Exclusion of Certain Locations/Facilities.* Prior to the Company's installation of any Facilities in the Right-of-Way and after it provides the City with its proposed plans for the Facilities, the City may in its reasonable discretion designate certain locations or Facilities in the Right-of-Way to be excluded from use by Company for its Facilities, including but not limited to any Facility or location that in the reasonable judgment of the City Engineer is incompatible with the proposed Facilities or would be rendered unsafe or unstable by the installation. The City Engineer may further exclude certain other Facilities that have been designated or planned for other use or are not otherwise available for use by the Company due to engineering, technological, proprietary, aesthetics, or legal limitations or restrictions as may be reasonably determined by the City. The City shall provide a written explanation for any denial for a particular location and shall work with the Company to identify other suitable routes.

(f) *Location, Type and Design of Facilities Subject to Approval.*

(i) The design, location, and nature of all Facilities to be placed in the Right-of-Way shall be subject to the reasonable review and approval of the City Engineer. This is a means to properly manage and control all Right-of-Way usage in the City, and to protect the public health, safety, and welfare, which includes aesthetics. The review and approval is to ensure efficient coordination relating to Right-of-Way use relating to public and private utilities and to evaluate the configuration and size of Facilities that may be located in the Right-of-Way.

(ii) When the Company is allowed to place Facilities above ground in accordance with Section 7, the Company may attach its Facilities to an existing utility pole pursuant to a properly executed agreement with the pole owner, provided, however, that any necessary replacement of the pole in order to accommodate the attachment shall be subject to the proper exercise of the City's police powers, and in no instance shall the Company erect an additional pole within an existing aerial pole line absent the City's prior authorization.

(iii) Above-ground pedestals, above-ground vaults, cabinets, poles or other similar above-ground Facilities, may be installed only if approved by the City where alternative underground Facilities are not feasible or where underground requirements are otherwise waived pursuant to Section 7. Such above-ground Facilities shall generally be located behind the sidewalk where feasible and when placed along arterial streets shall be screened from public view by ornamental grasses or the equivalent when requested by the City. The Company shall be responsible for the installation or restoration of such screening; the City shall be responsible for routine maintenance.

(g) *Right-of-Way Management Code.* The City reserves its rights to adopt a right-of-way management and construction standards ordinance of general applicability pursuant to its public health, safety and welfare, which includes aesthetics, authority which shall apply to this franchise except where inconsistent with a material term of this franchise and the Company reserves its rights to recover such costs to the extent provided by applicable law.

(h) *Permit Requirements.*

(i) Any request for permits shall be complete, including a written description of work with applicable maps and aerials having routs clearly marked and proper dimensions shown.

(ii) This franchise establishes the general rules and scope of authority for the Company to construct and maintain its Electric Utility System within the Right-of-Way. The Company is still required to obtain individual permitting approval from the City Engineer prior to engaging in actual construction of its specific Facilities within the Right-of-Way.

(iii) Except in the case of an emergency situation, prior to any excavation within the

Right-of-Way, the Company shall obtain a permit, pay all applicable fees, and perform such work in accordance with applicable provisions of the City Right-of-Way Management Code, and any ordinances or regulations that may be adopted by the City regarding excavation work.

(i) *Construction Plans.* At least ten (10) business days before the beginning of any installation, removal or relocation of its Facilities greater in length than 660 feet, the Company shall submit detailed plans of the proposed action to the City Engineer. The City Engineer shall, within ten (10) business days of receipt of such plans, either approve the plans or inform the Company of the reasons for disapproval. The Company shall designate a responsible contact person with whom representatives of the City Engineer can communicate on all matters relating to Facilities installation and maintenance.

(j) *As-Built Drawings.* The Company shall keep and maintain accurate records and as-built drawings, in electronic format, of all underground Facilities (except customer service lines) constructed, reconstructed, or relocated in the Right-of-Way commencing six (6) months after the effective date hereof. Such Facilities shall be horizontally and vertically located at least every 100 feet and at any alignment change. All points of Facilities shall be horizontally located from street centerline, or section or quarter section lines or corners. Vertical locations on all points of Facilities shall consist of elevations in either City datum or United States Geological Survey datum. The Company shall cooperate promptly and fully with the City and take all reasonable measures necessary to provide accurate and complete information regarding the nature and horizontal and vertical location of its existing Facilities located within Right-of-Way when requested by the City or its authorized agents for a Public Project. Such location and identification shall be at the sole expense of the Company without expense to the City, its employees, agents, or authorized contractors.

(k) *Wires.* Where practicable, wires shall be placed nineteen (19) feet or more above the level of the street, except new wires shall be placed up to twenty-two (22) feet above the level of the street where reasonably requested by the City. Where practicable, any poles placed in the street Right-of-Way shall be located on the lot line and six (6) feet inside the curb line.

(l) *Street Closure.* Except in the case of an emergency situation, the Company shall notify the City not less than twenty (20) working days in advance (such notice to be adequate for timely notice on the governing body agenda under City procedures) of any construction, reconstruction, repair, or relocation of Facilities that would require any street closure that reduces traffic flow to less than two lanes of moving traffic. Except in the event of an Emergency, no such closure shall take place without prior authorization from the City. In addition, all work performed in the traveled way or which in any way impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected in conformance with the latest edition of the Manual of Uniform Traffic Control Devices unless otherwise agreed to by the City.

(m) *Relocation for Public Projects.* The Company shall coordinate with the City on the design and placement of Facilities in the Right-of-Way during and for the design of Public Projects. At the request and sole expense of the Company, the City may include design for Facilities in the design of Public Projects. Upon request by the City and within the time period specified in the City's request, the Company shall locate, remove, relocate, or adjust any Facilities located in Right-of-Way if reasonably necessary for a Public Project. Such location, removal, relocation, or adjustment for a particular Public Project shall be performed by the Company once without expense to the City, its employees, agents, or authorized contractors and shall be specifically subject to rules and regulations of the City pertaining to such. Such relocation or adjustment shall be completed as soon as possible within the time set forth in any request by the City for such relocation or adjustment. If additional location, removal, relocation, or adjustment becomes necessary as a result of inaccurate or mistaken information provided by the Company or City, the party which provided such inaccurate or mistaken information shall be

responsible for costs associated with such additional location, removal, relocation, or adjustment without expense to the other party. The City will use its best efforts, but is not required, to continue to provide a location in the Right-of-Way for the Company's Facilities as part of a Public Project, provided that the Company has cooperated promptly and fully with the City in the design of its Facilities as part of the Public Project.

(n) *Protect Facilities.* It shall be the responsibility of the Company to take adequate measures to protect and defend its Facilities in the Right-of-Way from harm or damage. If the Company fails to accurately locate Facilities when requested, it shall have no claim for costs or damages against the City or its authorized contractors except to the extent the City or its authorized contractors are responsible for the harm or damage by their gross negligence or intentional conduct. The Company shall be responsible to the City and its agents, representatives, and authorized contractors for all damages, including but not limited to delay damages, repair costs, down time, construction delays, penalties or other expenses of any kind, arising out of the failure of the Company to perform any of its obligations under this franchise except to the extent another party is responsible for the harm or damage by its negligence or intentionally caused harm. The above general provisions notwithstanding, the City and its authorized contractors shall take reasonable precautionary measures including calling for utility locations through Kansas One Call and exercising due caution when working near Company Facilities.

(o) *ULCC.* The Company shall become and remain a member of and participate in the Utility Location and Coordination Council established by ordinance of the City.

(p) *Technical Standards.* All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the Facilities in the Right-of-Way shall be in accordance with applicable present and future federal, state, and City law and regulation, including but not limited to the most recent standards of the Kansas Corporation Commission and the Kansas Department of Transportation, or such substantive equivalents as may hereafter be adopted or promulgated. The standards established in this paragraph are minimum standards and the requirements established or referenced in this franchise may be in addition to or stricter than such minimum standards.

(q) *Conservation of Right-of-Way.* The City encourages the conservation of Right-of-Way by the sharing of space by all utilities. Notwithstanding any provision of this franchise prohibiting third party use, to the extent required by federal or state law, the Company will permit any other franchised entity, by appropriate contract or agreement negotiated by the parties to use any and all Facilities constructed or erected by the Company.

(r) *Structure Moving.* On the request of any applicant, the Company shall remove or raise or lower its wires temporarily to permit the moving of houses or other structures. The expense of such temporary removal, raising or lowering of wires shall be paid by the applicant, and the Company may require such payment in advance. The Company shall be given not less than fifteen (15) calendar days' written notice from the applicant detailing the time and location of the moving operations, and not less than twenty-four (24) hours' advance notice from the applicant advising of the actual operation. However, the City shall not be liable for any such expense for the moving of houses or structures by the City or its contractors.

(s) *Conduit.* If the Company, in its sole discretion, determines that it has spare ducts in its underground conduits, or spare pins, crossarms, or space on any of its poles not then necessary for the provision of Electric Utility Service, and not needed for future anticipated load growth or Emergencies, the Company may permit the City to use one such duct in each conduit, or reasonable spaces on poles, or both, for the City's police and fire alarm wires, traffic control wires or cable, fiber-optic lines connecting City facilities, or other similar, appropriate non-commercial uses, provided that such use by the City is in compliance with the National Electric Safety

Code and at the expense of the City. If the Company constructs or extends additional conduits or erects additional poles, the City, at the City's sole expense, may require the Company to provide one such duct in each conduit, or reasonable space on poles, or both, for the City's own use as aforesaid.

(t) *Commercial Purposes.* City shall not sell, lease or otherwise make available its rights to use the Company's Facilities as set forth herein to any third party for commercial purposes. Such rights are provided solely for the non-commercial use of the City or other governmental entity. However, this restriction shall not prevent the City from using the services of a third party commercial entity to manage or operate the City's facilities on behalf of the City, so long as no resale or other commercial use of such facilities shall occur.

SECTION 6. WORK BY OTHERS.

(a) The City reserves the right to lay, and permit to be laid, storm sewer, gas, water, wastewater and other pipelines, cables, and conduits, and to do and permit to be done any underground or overhead work that may be necessary or proper in, across, along, over, or under the Right-of-Way occupied by the Company. The City also reserves the right to change, in any manner, any curb, sidewalk, highway, alley, public way or street. In permitting such work to be done, the City shall not be liable to the Company for any damage so occasioned, but nothing herein shall relieve any other Person from responsibility for damages to the Facilities of the Company.

(b) If the City shall require the Company to adapt or conform its Electric Utility System, or in any way or manner to alter, relocate, or change its property to enable any other Person to use, or use with greater convenience, said Right-of-Way, the Company shall not be bound to make any such changes until such other Person shall have undertaken, with good and sufficient bond, to reimburse the Company for any cost, loss, or expense which will be caused by, or arise out of such change, alteration, or relocation of the Company's property. Provided, however, that the City shall never be liable for such reimbursement due to the Company from such Person.

SECTION 7. UNDERGROUND REQUIREMENTS.

(a) The Company shall use commercially reasonable efforts to provide that all Facilities constructed, replaced, or relocated in the Right-of-Way after the date hereof shall be placed underground unless, because of the nature of the Facility or the standard construction or operating practices of the Company, the Company requests approval for such Facilities to be placed above ground. Upon receipt of such request, the City Engineer shall review and approve the plans for the above ground placement of Facilities in accordance with reasonable procedures established by the City, and subject to such reasonable conditions as the City may establish for public safety, appearance, or coordination with Public Projects. Where there are obstructions in the Right-of-Way, such as trees, shrubs, other utilities, commercial signs, man-made structures, or other like obstructions that make the cost of such underground burial unreasonable, the Company may request waiver of this requirement, in which event the City will not unreasonably withhold consent.

(b) All new Facilities installed in the Downtown Area shall be installed underground. Additionally, all replacement or upgrading of Facilities in the Downtown Area shall be installed underground.

(c) The City may require any portions of Company's Facilities in the Downtown Area that are not presently underground to be placed underground. The City shall provide reasonable written notice to the Company of the City's request that such Facilities be placed underground. The Company shall promptly undertake the removal and replacement of such Facilities to underground locations at no cost to the City.

(d) Except as may otherwise be provided by other applicable ordinances of the City, where reasonable and appropriate and where adequate Right-of-Way exists, the Company shall place

above-ground Facilities underground in conjunction with City capital improvement projects and/or at specific locations requested by the City provided that such placement is practical, efficient, and economically feasible.

(e) Where not otherwise required to be placed underground by this franchise, the Company's Facilities shall be located underground at the request of the adjacent property owner, provided the placement of such Facilities shall be consistent with the Company's construction and operating standards and provided that property owner making the request pays the Company for such undergrounding pursuant to the Company's applicable tariffs and terms and conditions.

(f) When undertaking a project of undergrounding, the City and the Company shall, to the extent practicable, work with other utilities or companies that have their lines overhead to have all lines undergrounded as part of the same project. When other utilities or companies are placing their lines underground, the Company shall cooperate with these utilities and companies and undertake to underground Company's Facilities as part of the same project where feasible; provided, however, the Company shall not be required to pay the costs of any other utility or company.

(g) The Company shall use commercially reasonable efforts to coordinate its installation of new underground Facilities with preexisting underground facilities of other companies. The underground requirements of this subsection shall not apply to the maintenance and repair of existing Facilities, as determined by the City Engineer, except as may be required in Section 7(b).

SECTION 8. INDEMNITY AND HOLD HARMLESS; LIABILITY; INSURANCE; SURETY BOND.

(a) The Company shall hold and save the City, its officers, employees, agents, and authorized contractors, harmless from and against all claims, damages, expense, liability, and costs including attorney fees, to the extent occasioned in any manner by the Company's occupancy of Right-of-Way, except to the extent that such were caused by the negligence or intentional conduct of the City, its officers, employees, agents, or authorized contractors. In the event a claim shall be made or an action shall be instituted against the City growing out of such occupancy of the Right-of-Way by Facilities of the Company, then upon notice by the City to the Company, the Company will assume responsibility for the defense of such actions at the cost of the Company, subject to the option of the City to appear in and defend, at its own cost, any such case. However, the Company shall have no duty to defend any such action to the extent that such action has resulted from the negligence or intentional conduct of the City, its officers, employees, agents, or authorized contractors.

(b) The Company shall maintain throughout the term of this franchise insurance insuring the City and the Company with regard to all damages set forth in paragraph (a) of this section, in the minimum amounts of:

(i) $1,000,000 for bodily injury or death to a person;

$3,000,000 for property damage resulting from any one accident;

(ii) $50,000 for property damage resulting from any one accident;

(iii) $1,000,000 for all other types of liability.

Should Company elect to self-insure for this purpose, the Company shall possess a certificate of authority from the Kansas Insurance Commissioner.

(c) On or before the Effective Date of this franchise (or the date of first use of the Right-of-Way under this franchise, if later), and as a condition precedent to the effectiveness of the franchise, the Company shall deposit with the City a surety bond in the amount of $100,000, payable to the City and securing the payment of repair or maintenance costs incurred as a result of any defects, impairments, or substandard condition in the Right-of-Way caused by the work of the Company or resulting from the Company's activities in the Right-of-Way. The required surety bond must be with good and sufficient sureties, issued by a surety company

authorized to transact business in the State of Kansas, and satisfactory to the City Attorney in form and substance.

SECTION 9. REGULATORY PROVISIONS.

(a) Nothing contained in this section shall be construed as waiving the rights of either the City or the Company to review in the courts, in such manner as is now or may hereafter be provided by law, any rules, findings, or orders of a regulatory body, the Company, or the City.

SECTION 10. STREET LIGHTING.

The City shall have the option at any time after the taking effect of this franchise, to acquire title to the wiring, poles, conduits, lamps, and other appurtenances (exclusive of the power house and generating equipment) which may be at said time used or useful exclusively in any street lighting of the City. Such property and facilities shall be sold to the City by Company, its successors or assigns, at the fair cash value of the physical properties. In the event of the exercise of the option by the City to take over said street lighting property, there shall be no allowance to the Company, its successors or assigns, for any element or item of intangible value, blue sky, nor any good will or going concern value, nor any "Severance Damages," or stranded costs or stranded value. Nothing herein shall be construed to in any manner preclude or prevent the City from acquiring title by any means authorized by law to any part, portion or all of the electric property of the Company, its successors or assigns or preclude or prevent Company from selling its street lighting system to a third party or give City a right of first refusal or option of any kind in connection with such a transaction. In the event Company sells its said street lighting system to a third party, the provisions of this Section shall be null and void and of no further effect.

SECTION 11. ASSIGNMENT AND TRANSFER.

This franchise shall be assignable only in accordance with the laws of the State of Kansas, as the same may exist at the time when any assignment is made, provided, however, that the franchise may be assigned by the Company without action by the City to any entity which succeeds to all or substantially all of the electric utility business of the Company. Provided, however, in the event that the Company is no longer required to obtain the approval of the Kansas Corporation Commission for an assignment, such assignment shall be subject to the consent of the City, which consent shall not be unreasonably withheld. In the event of an assignment to a successor, the Company shall be released from all obligations which are assumed in writing by such successor and the assignee shall have executed an assumption of the franchise being assigned.

SECTION 12. TERMINATION AND FORFEITURE OF FRANCHISE.

(a) In addition to all other rights and powers retained by the City under this franchise, the City reserves the right to terminate the franchise and all rights and privileges of the Company hereunder, in the event of a material failure on the part of the Company, its successors or assigns, to comply with any of the provisions of this ordinance, or if the Company, its successors or assigns, should do or cause to be done any material act or thing prohibited by or in violation of the terms of this ordinance. In such event, the Company, its successors and assigns, shall forfeit all rights and privileges granted by this ordinance and all rights hereunder shall cease, terminate and become null and void, provided that said forfeiture shall not take effect until the City shall carry out the following proceedings:

(i) Before the City terminates the franchise, it shall first serve a written notice upon the Company, and upon the trustee or trustees in any deed of trust securing bonds of the Company of record in Sedgwick County, Kansas, or the office of the Secretary of State of Kansas, by mailing notice to the Company and to such trustee or trustees to the address designated in such trust deed, setting forth in detail in such notice the neglect or failure complained of.

(ii) The Company shall have sixty (60) calendar days thereafter in which to comply with the conditions of this franchise.

(iii) If, at the end of such sixty day period, the City determines that the conditions of such franchise have not been complied with by the Company and that such franchise is subject to termination by reason thereof, the City, in order to terminate such franchise, shall enact an ordinance setting out the grounds upon which the franchise is to be terminated.

(iv) If within thirty (30) calendar days after the effective date of said ordinance the Company shall not have instituted an action, either in the District Court of Sedgwick County, Kansas, or some other court of competent jurisdiction to determine whether or not the Company has violated the terms of this franchise and that the franchise is subject to termination by reason thereof, such franchise shall be terminated at the end of such thirty day period.

(v) If within such thirty day period the Company does institute an action, as above provided, to determine whether or not Company has violated the terms of this franchise and that the franchise is subject to termination by reason thereof and prosecutes such action to final judgment with due diligence, then, in that event, in case the court finds that the franchise is subject to termination by reason of the violation of its terms, this franchise shall terminate thirty (30) calendar days after such final judgment is rendered.

(b) In the event of a final adjudication of bankruptcy of the Company under Title 11 of the United States Code, the City shall have full power and authority to terminate, revoke, and cancel any and all rights granted under this franchise.

(c) The failure of the Company to comply with any of the provisions of this franchise or the doing or causing to be done by the Company of anything prohibited by or in violation of the terms of this franchise shall not be a ground for the termination thereof when such act or omission on the part of the Company is due to any cause or delay beyond the control of the Company, its successors and assigns, or bona fide legal proceedings.

SECTION 13. RIGHTS AND DUTIES OF COMPANY UPON EXPIRATION OR TERMINATION OF FRANCHISE.

Upon expiration of this franchise, whether by lapse of time, by agreement between Company and City, or by forfeiture thereof, the Company shall have the right to remove any and all of its Facilities used in its Electric Utility Service within a reasonable time after such expiration or termination, unless the City notifies the Company in writing that the City or a third party intends to purchase the Facilities. In the event the City notifies the Company that the Facilities are to be purchased, the Facilities shall be sold to the City or the third party by Company, its successors or assigns, for the compensation provided by applicable law. In the event the City notifies the Company that the Facilities can be removed by the Company, it shall be the duty of the Company, immediately upon such removal, to restore the streets, avenues, alleys, parks and other public ways and grounds from which said Facilities are removed to as good condition as the same were before said removal was effected.

SECTION 14. ACCEPTANCE.

Prior to the effective date of this ordinance the Company shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this ordinance, which acceptance shall be duly acknowledged before an officer authorized by law to administer oaths. When so accepted the ordinance and acceptance shall constitute a contract between the City and the Company subject to the provisions of the laws of the state of Kansas.

SECTION 15. CONDITIONS OF FRANCHISE.

This contract, franchise, grant and privilege is granted and accepted under and subject to all

applicable laws and under and subject to all of the orders, rules, and regulations now or hereafter adopted by governmental bodies now or hereafter having jurisdiction, and each and every provision hereof shall be subject to acts of God, fires, strikes, riots, floods, war and other causes beyond Company's control.

SECTION 16. RESERVATION OF RIGHTS.

(a) The City specifically reserves its right and authority as a Customer of the Company and as a public entity with responsibilities towards its citizens, to participate to the full extent allowed by law in proceedings concerning the Company's rates and services to ensure the rendering of efficient Electric Utility Service at reasonable rates, and the maintenance of the Company's property in good repair and the Company reserves its right to resist such participation.

(b) In granting its consent hereunder, the City does not in any manner waive its regulatory or other rights and powers under and by virtue of the laws of the State of Kansas as the same may be amended, nor any of its rights and powers under or by virtue of present or future ordinances of the City.

SECTION 17. NOTICES.

Except in Emergencies, all notices by either the City or the Company to the other shall be made by either depositing such notice in the U.S. Mail, Certified Mail, return receipt requested, or by facsimile. Any notice served by Certified Mail, return receipt requested, shall be deemed delivered five (5) calendar days after the date of such deposit in the U.S. Mail unless otherwise provided. Any notice given by facsimile is deemed received by the next business day. Emergency notices shall be provided by telephone, with written notice immediately following by facsimile. All notices shall be addressed to the City as follows:

City Clerk
City Hall - 13th Floor
455 N. Main Street
Wichita, KS 67202-1635

Notice to Company shall be addressed to the Company as follows:

Butler Rural Electric Cooperative Association, Inc.
Attn: Sarah Madden
P.O. Box 1242
El Dorado, KS 67042

Notice shall be given as required by the terms of this ordinance and for all Emergencies. Notice shall be provided to the above-named addressees unless directed otherwise in writing by City or Company.

SECTION 18. NON-WAIVER PROVISION.

The failure of either party to insist in any one or more instances upon the strict performance of any one or more of the terms or provisions of this ordinance shall not be construed as a waiver or relinquishment for the future of any such term or provision, and the same shall continue in full force and effect. No waiver or relinquishment shall be deemed to have been made by either party unless said waiver or relinquishment is in writing and signed by the parties.

SECTION 19. SEVERABILITY.

If any clause, sentence, or section of this ordinance, or any portion thereof, shall be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of the remainder, as a whole or any part thereof, other than the part declared to be invalid; provided, however, the City may elect to declare that the entire agreement is invalidated if the portion declared invalid is, in the judgment of the City, an essential part of this ordinance.

This ordinance shall be included in the Code of the City of Wichita, Kansas, and shall be effective upon its passage and publication once in the official city paper.

PASSED by the governing body of the City of Wichita, Kansas, this 13th day of February 2024.

/s/ Lily Wu
Mayor

ATTEST:

/s/ Karen Sublett
City Clerk

Approved as to Form:

/s/ Jennifer Magaña
City Attorney and
Director of Law

BUTLER RURAL ELECTRIC
COOPERATIVE ASSOCIATION, INC.,
a Kansas corporation

/s/ _____

Print Name:

Title:

KANSAS GAS AND ELECTRIC COMPANY FRANCHISE ORDINANCE NO. 49-913

AN ORDINANCE OF THE CITY OF WICHITA, GRANTING TO KANSAS GAS AND ELECTRIC COMPANY, A KANSAS CORPORATION, DOING BUSINESS AS WESTAR ENERGY, AN ELECTRIC FRANCHISE INCLUDING THE RIGHT TO CONSTRUCT, OPERATE AND MAINTAIN ELECTRIC TRANSMISSION, DISTRIBUTION AND STREET LIGHTING FACILITIES WITHIN THE CORPORATE LIMITS OF THE CITY OF WICHITA, KANSAS.

THEREFORE BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. DEFINITIONS.

(a) For purposes of this Franchise, the following words and phrases shall have the meanings given herein:

City as the Grantor—shall mean the City of Wichita, Kansas.

Company as the Grantee—shall mean Kansas Gas and Electric Company, doing business as Westar Energy.

Distributed or Distribution—shall mean all sales, distribution, or transportation by the Company or by others through the Facilities of the Company in the Right-of-Way to any consumer for use within the City.

Downtown Area—shall mean the area described as follows: Starting at a point on the east bank of the Arkansas River at Douglas, thence northerly along said bank of the River to Second Street; thence northeasterly to Greenway Boulevard; following said boulevard northerly to Central; following Central northeasterly to its junction with Waco; thence north on Waco to Pine, east on Pine to Market. south on Market to Central, east on Central to Washington, south on Washington to Waterman, west on Waterman to St. Francis, south on St. Francis to Kellogg, West on Kellogg to the east bank of the River; thence northerly following the east bank of the River to the point of beginning on Douglas.

Electric Utility Service—shall mean and include:

(i) all sales of electricity to all Customers at retail within the corporate limits of the City;

(ii) ancillary or unbundled electric services provided to all Customers at retail within the corporate city limits of the City when sold separately from kWh which shall include, but not be limited to: reactive supply and voltage control; scheduling; system control and dispatch; regulation and frequency response; energy imbalance; operating reserves; supplemental reserves, and spinning reserves; and

(iii) transmission and distribution of electricity when sold separately from energy to any person located within the city limits of the City.

Electric Utility System or *System*—shall mean an electric power system installed and operated in the City in compliance with applicable rules and regulations of the Federal Energy Regulatory Commission (FERC) and Kansas Corporation Commission (KCC), and their successors, which shall include, but not be limited to, the generation, transmission and distribution facilities, equipment and administrative services necessary to provide electric service for any use in the City, and such extensions, additions or reductions as may hereafter be made.

Facilities—shall mean all electric distribution lines, substations, works, and plants together with all necessary appurtenances thereto.

Gross receipts—shall mean any and all compensation and other consideration derived by the Company from any Distribution of Electric Utility Service to a consumer for any use within the City, including domestic, commercial and industrial purposes, through

charges as provided in tariffs filed and approved, and including without limitation interruptible sales and single sales; and all revenues from any operation or use of any or all of the Facilities in the Right-of-Way by others. Such term shall not include revenues from certain miscellaneous charges and accounts, including but not limited to delayed or late payment charges, connection and disconnection fees, reconnection fees, customer project contributions, returned check charges, and temporary service charges.

Public Improvement—shall mean any existing or contemplated public facility, building, or capital improvement project, financed by the City, including without limitation, streets, alleys, sidewalks, sewer, water, drainage, Right-of-Way improvement, and Public Projects.

Public Project—shall mean any project planned or undertaken and financed by the City or any governmental entity for construction, reconstruction, maintenance, or repair of public facilities or improvements, or any other purpose of a public nature.

Public Project for Private Development—shall mean a Public Project, or that portion thereof, arising solely from a request or requirement of a third (3rd) party that primarily benefits a third (3rd) party.

Right-of-Way—shall mean present and developed streets, alleys, rights-of-way dedicated or acquired right-of-way interest in the real property that is developed, and public easements, including easements dedicated to the City in plats of the City for streets and alleys but not including any Utility Easement.

Street Right-of-Way—shall mean the entire width between property lines of land, property, or an interest therein of every way publicly maintained, dedicated right-of-way where any part thereof is open to the use of the public for purposes of vehicular traffic, including street, avenue, boulevard, highway, expressway, alley, or any other public way for vehicular travel by whatever name.

Utility Easement—shall mean an easement owned by or dedicated to the City for the purpose of providing the Company and other utilities access to customers and users of any utility service.

(b) Definitions maintained in the parties' prior agreement, Franchise Ordinance 45-987, shall apply to any terms of dispute that are not specifically defined herein.

SECTION 2. GRANT. There is hereby granted to Company, the non-exclusive right, privilege, and franchise to construct, maintain, extend, and operate its Facilities in, through, and along the Right-of-Way of the City for the purpose of supplying electric energy to the City and the inhabitants thereof for the full term of this Franchise; subject, however, to the terms and conditions herein set forth. Nothing in this grant shall be construed to franchise or authorize the use of the Company's Facilities or the Right-of-Way by the Company or others, for any purpose not related to the provision of electric energy. The Company may not allow a subsidiary, affiliate, or a third (3rd) party to acquire rights to occupy the Rights-of-Way under this Franchise; provided, that nothing in this section shall prevent Company from allowing the use of its Facilities by others when such use is compensated to the City under the provisions of a franchise granted by the City to any such third party.

The Company must revise its franchise fee payments due to any expansion or reduction by annexation or contraction within a reasonable time after receipt of notice from the City, but in no event later than thirty (30) calendar days after receipt of such notice.

SECTION 3. TERM.

a. The term of this Franchise shall be twenty (20) years from the effective date of this Ordinance.

b. Upon 60 days advance written notice by the City, the franchise fee percentage rate may be changed on the fifth, tenth or fifteenth anniversary of the effective date of this Ordinance.

c. Upon written request of either the City or the Company, the franchise shall be reopened and renegotiated at any time upon any of the following events:

1. Change in federal, state, or local law, regulation, or order which materially affects any rights or obligations of either the City or the Company, including but not limited to the scope of the grant to the Company or the compensation to be received by the City; or
2. Change in the structure or operation of the electrical energy industry or the City which materially affects any rights or obligations of either the City or the Company, including but not limited to the scope of the grant to the Company or the compensation to be received by the City;
3. Any new or amended contract entered into by either party that materially affects this franchise agreement;
4. Any other material and unintended change or shift in the economic benefit to the City or a change the Company did not anticipate upon accepting the grant of this Franchise; or
5. Any other mutually agreed upon reason.

d. Amendments under this section, if any, shall be made by ordinance as prescribed by statute. The franchise shall remain in effect according to its terms pending completion of any review or renegotiation pursuant to subsection (c).

SECTION 4. COMPENSATION TO THE CITY.

a. In consideration of and as compensation for the franchise hereby granted to the Company by the City, the Company shall make an accounting on a monthly basis of all Gross Receipts it has earned within City Limits during the preceding month. The Company shall pay the City:

A monthly sum equal to six percent (6%) of the Gross Receipts received for the preceding month; and the above sum shall be adjusted for uncollectible receivables and for receivables which are later collected.

b. Payment of the compensation above shall be effective on the first day of the first month after final passage and approval by the City and acceptance by the Company. Prior to that date, payments shall continue to be calculated and be paid in the manner previously provided in Ordinance 45-987. Such payments shall be made to the City under procedures, which are mutually agreed to by the Company and the City within thirty (30) days of the last day of the month to which such accounting shall apply.

c. Notwithstanding anything to the contrary in this Franchise, the fee provided for in this Section 4 shall not become effective within any area annexed by the City until 30 days after the City provides the Company with a certified copy of the annexation ordinance, proof of publication as required by law and a map of the city detailing the annexed area.

d. Company will use commercially reasonable efforts to ensure the accuracy of its records and of the determination of the amount of Gross Receipts subject to the fee provided for in this Section 4. In the event and to the extent the accounting rendered to the City by the Company is found to be incorrect due to Company's failure to use commercially reasonable efforts as provided herein, then payment shall be made on the corrected amount within 30 days of discovery of the mistake, it being agreed that the City may accept any amount offered by the Company, but the acceptance thereof by the City shall not be deemed a settlement of such item if the amount is in dispute or later found to be incorrect. The Company agrees that all of its books, records, documents, contracts and agreements as may be reasonably necessary for an effective compliance review of this Ordinance shall upon reasonable notice and at all reasonable times be opened to the inspection and examination of the officers of the City and its duly authorized agents, auditor, and employees for the purpose of verifying said accounting. Notwithstanding the obligation herein, the Company shall have the right to require the reasonable protection of proprietary information of the Company.

e. Both parties have a mutual interest in increasing the quality and quantity of appropriate trees in the City right-of-way, while reducing

reoccurring line clearance pruning and educating and improving communications with landowners and Westar customers concerning areas where street ROW and Westar utility easement are in the same location.

The City shall put forth a good faith effort to utilize 1% of the Gross Receipts towards its tree maintenance program through the City of Wichita Parks and Recreation Forestry and Reforestation Department. To accomplish this good faith effort, the City Forestry section will commit to the utilization of the 1% of the Gross Receipts to hiring employees, purchasing, planting, and all maintenance of trees that follow the "Right Tree, Right Place" principals when the tree location is within a utility easement and/or right-or-way. Should funds from the 1% of Gross Receipts exceed the commitment referenced above, trees and other maintenance projects for other ROW or publicly controlled property under the jurisdiction of Park and Recreation will be selected as deemed appropriate by the Forestry section.

SECTION 5. PAYMENT AND CHARGES. The payments and compensation herein provided shall not be in lieu of all other licenses, permits, taxes, charges, and fees. Additionally, the usual general property taxes and special ad valorem property assessments, sales and excise taxes, or charges made for privileges which are not connected with the electric energy business, will be imposed on the Company and are not covered by the payments herein.

SECTION 6. USE OF RIGHT-OF-WAY.

a. The use of the Right-of-Way under this Franchise by the Company shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power relating to use, placement, location, or management of utilities located in the City's Right-of-way. In addition, the Company shall be subject to all laws, rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power relating to permits, fees, sidewalk and pavement cuts, utility location, construction coordination, screening, and other requirements on the use of the Right-of-Way; provided, however, that nothing contained herein shall constitute a waiver of or be construed as waiving the right of the Company to oppose, challenge, or seek judicial review of, in such manner as is now or may hereafter be provided by law, any such rules, regulation, policy, resolution, or ordinance proposed, adopted, or promulgated by the City. Further, the Company shall comply with the following:

b. The Company's use of the Right-of-Way shall in all matters be subordinate to the City's use of the Right-of-Way for any public purpose. The Company shall coordinate the installation of its Facilities in the Right-of-Way in a manner which minimizes adverse impact on Public Improvements, as reasonably determined by the City. Where installation is not otherwise regulated, the Facilities shall be placed with adequate clearance from such Public Improvements so as not to conflict with such Public Improvement.

c. All earth, materials, sidewalks, paving, crossings, utilities, Public Improvements, or improvements of any kind located within the Right-of-Way damaged or removed by the Company in its activities under this Franchise shall be fully repaired or replaced promptly by the Company without cost to the City, however, when such activity is a joint project of utilities or franchise holders, the expenses thereof shall be prorated among the participants, and to the reasonable satisfaction of the City in accordance with the ordinances and regulations of the City pertaining thereto.

d. Except in the event of an emergency, as reasonably determined by the Company, the Company shall comply with all laws, rules, regulations, policies, resolutions, or ordinances now or hereinafter adopted or promulgated by the City relating to any construction, reconstruction, repair, or relocation of Facilities which would require any street closure which reduces traffic flow.

Except in the event of an emergency, the Company is required to obtain individual permitting approval from the City Engineer prior to engaging in actual construction of its specific Facilities within the Right-of-Way. City shall

provide a response to the permit request within 10 days of the date the request is made. Notwithstanding the foregoing exception all work, including emergency work performed in the traveled way or which in any way impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected.

e. The Company shall cooperate promptly and fully with the City and take all reasonable measures necessary to provide accurate and complete information regarding the location of its Facilities located within the Right-of-Way when requested by the City or its authorized agents for a Public Project. Such location and identification shall be promptly communicated in writing to the City without cost to the City, its employees, agents, or authorized contractors. The Company shall designate and maintain an agent, familiar with the Facilities, who is responsible for providing timely information needed by the City for the design and replacement of Facilities in the Right-of-Way during and for the design of Public Improvements. At the request of the Company, the City may include design for Facilities in the design of Public Projects. Also at the request of the Company, the City and/or its contractor(s) or agent(s) shall provide accurate and timely field locations of proposed Public Projects in the event the Company is required to install new and/or relocate its Facilities.

f. The Company shall promptly locate, remove, relocate, or adjust any Facilities located in the Right-of-Way if notified by the City for a Public Project. Such location removal, relocation, or adjustment for a particular Public Project shall be performed by the Company without expense to the City, its employees, agents, or authorized contractors, and shall be specifically subject to rules and regulations of the City pertaining to such. If additional location, removal, relocation, or adjustment is the result of the inaccurate or mistaken information of the Company, the Company shall be responsible for costs associated with such without expense to the City. Likewise, if additional location, removal, relocations or adjustment is the result of inaccurate or mistaken information of the City, the City shall reimburse the Company for any additional expense necessarily incurred by the Company directly due to such inaccurate or mistaken information. The Company shall only be responsible for removal, relocation, or adjustment of Facilities located in the Right-of-Way at the Company's sole cost once each five (5) years for that particular facility. The City shall reimburse the Company for the removal, relocation, or adjustment of the Company's Facilities located in the Right-of-Way if required before the expiration of five (5) years from the date of the last relocation, removal, or adjustment of that particular facility.

g. The Company shall not be responsible for the expenses of relocation to accommodate any new Public Project for Private Development initiated after the effective date of this Ordinance. The expenses attributable to such a project shall be the responsibility of the third (3rd) party upon the request and appropriate documentation of the Company. Before such expenses may be billed to the third (3rd) party, the Company shall be required to coordinate with the third (3rd) party and the City on the design and construction to ensure that the work required is necessary and done in a cost effective manner.

h. The City shall continue to provide a location in the Right-of-Way for the Company's Facilities as part of a Public Project, assuming the space is available and practical for use, provided that the Company has cooperated promptly and fully with the City in the design of its Facilities as part of the Public Project. If space is not available or practical for use, City shall use good faith efforts to provide a location in an alternate Right-of-Way for the Company's Facilities.

i. Prior to the Company's installation of Facilities in the Right-of-Way and after it provides the City with its proposed plans for the Facilities, the City may in its reasonable discretion designate certain locations or Facilities in the Right-of-Way to be excluded from use by Company for its Facilities, if in the reasonable judgment of the City Engineer the Facility or location is incompatible with the proposed Facilities or would be rendered unsafe or unstable by the installation. The City Engineer may further exclude certain other Facilities that have been designated or planned for use by the Company due to engineering, technological, proprietary, aesthetics, or legal

limitations or restrictions as may be reasonably determined by the City. The City shall provide a written explanation for any denial for a particular location and shall work with the Company to identify suitable alternatives.

At least ten (10) business days before the beginning of any installation, removal or relocation of its Facilities greater in length than 660 feet the Company shall submit detailed plans of the proposed action to the City Engineer. The City Engineer shall, within ten (10) business days of receipt of such plans, either approve the plans or inform the Company of the reasons for disapproval. The Company shall designate a responsible contact person with whom representatives of the City Engineer can communicate on all matters relating to Facilities installation and maintenance.

j. It shall be the responsibility of the Company to take adequate measures to protect and defend its Facilities in the Right-of-Way from harm or damage. If the Company fails to accurately locate Facilities when requested, it shall have no claim for costs or damages against the City. The Company shall be responsible to the City and its agents, representatives, and authorized contractors for all damages including, but not limited to, delay damages, repair costs, down time, construction delays, penalties or other expenses of any kind arising out of the failure of the Company to perform any of its obligations under this Ordinance. The above general provisions notwithstanding, the City and its authorized contractors shall take reasonable precautionary measures including calling for utility locations through Kansas One Call and exercising due caution when working near the Company's Facilities.

k. All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the Facilities in the Right-of-Way shall be in accordance with applicable present and future federal, state, and City laws and regulations, including but not limited to the most recent standards of the Kansas Corporation Commission and U.S. Department of Transportation. It is understood that the standards established in this paragraph are minimum standards and the requirements established or referenced in this Franchise may be additional to or stricter than such minimum standards.

l. The City encourages the conservation of the Right-of-Way by the sharing of space by all utilities. Notwithstanding provisions of this Franchise prohibiting third (3rd) party use, to the extent required by federal or state law, the Company will permit any other franchised entity by an appropriate grant, or a contract, or agreement negotiated by the parties, to use any and all Facilities constructed or erected by the Company.

m. Permission is hereby granted to the Company to trim trees upon and overhanging the right-of-way and utility easements. The Company shall perform line clearance work in accordance with regulations established under OSHA 29 CFR 1910.269. All pruning operations shall be performed by personnel qualified to perform the work and in accordance with the latest versions of ANSI Z133.1 (Safety Requirements for Pruning, Repairing, Maintaining and Removing Trees, and Cutting Brush) and ANSI A300 (Part 1) (Standard Practices for Tree, Shrub, and Other Woody Plant Maintenance). For routine trimming operations, customers shall be contacted at least one (1) week in advance by either personal contact or by informational door hanger.

n. The design, location, and nature of all Facilities to be placed in the Right-of-Way shall be subject to the reasonable review and approval of the City Engineer. Anything placed onto the Facilities is subject to reasonable review and approval of the City Engineer. This is a means to properly manage and control all Right-of-Way usage in the City, and to protect the public aesthetics, health, safety, and welfare. The review and approval is to ensure efficient coordination relating to Right-of-Way use relating to public and private utilities and to evaluate the configuration and size of Facilities that may be located in the Right-of-Way.

o. All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the Facilities in the Right-of- Way shall be in accordance with applicable present and future federal, state, and City law and regulation, including but

not limited to the most recent standards of the Kansas Corporation Commission and the Kansas Department of Transportation, or such substantive equivalents as may hereafter be adopted or promulgated. The standards established in this paragraph are minimum standards and the requirements established or referenced in this franchise may be in addition to or stricter than such minimum standards.

p. If the Company, in its sole discretion, determines that it has spare ducts in its underground conduits, or spare pins, crossarms, or space on any of its poles not then necessary for the provision of Electric Utility Service, and not needed for future anticipated load growth or Emergencies, the Company may permit the City to use one such duct in each conduit, or reasonable spaces on poles, or both, for the City's police and fire alarm wires. traffic control wires or cable, fiber-optic lines connecting City facilities, or other similar, appropriate non-commercial uses, provided that such use by the City is in compliance with the National Electric Safety Code and at the expense of the City. If the Company constructs or extends additional conduits or erects additional poles, the City, at the City's sole expense, may require the Company to provide one such duct in each conduit, or reasonable space on poles, or both, for the City's own use as aforesaid.

q. The City reserves the right to lay, and permit to be laid, storm sewer, gas, water, wastewater and other pipe lines, cables, and conduits, and to do and permit to be done any underground or overhead work that may be necessary or proper in, across, along, over, or under the Right-of-Way occupied by the Company. The City also reserves the right to change, in any manner, any curb, sidewalk, highway, alley, public way or street. In permitting such work to be done, the City shall meet all applicable codes. The City shall not be liable to the Company for any damage so occasioned, but nothing herein shall relieve any other Person from responsibility for damages to the Facilities of the Company due to negligence.

r. All new electric distribution facilities installed in the Downtown Area shall be installed underground. Additionally, all replacement or upgrading of electric distribution facilities in the Downtown Area shall be installed underground. The City may request any portions of Company's electric distribution facilities in the Downtown Area that are not presently underground to be placed underground at no cost to the City. The City shall provide reasonable written notice to the Company of the City's request that such electric distribution facilities be placed underground. Upon mutual agreement between the City and the Company regarding the request, the Company shall undertake the removal and replacement of such electric distribution facilities to underground locations on a schedule and under terms mutually agreed to by the City and Company.

s. For Facilities installed in any new subdivision within the City, Westar shall follow any applicable City Ordinance regarding installation of above-ground or underground Facilities.

SECTION 7. INDEMNITY AND HOLD HARMLESS.

a. The Company shall indemnify and hold and save the City, its officers, employees, agents, and authorized contractors, harmless from and against all claims, damages, expense, liability, and costs including reasonable attorney fees, to the extent occasioned in any manner by the Company's occupancy of the Right-of-Way. In the event a claim shall be made or an action shall be instituted against the City growing out of such occupancy of the Right-of-Way by Facilities of the Company, then upon notice by the City to the Company, the Company shall assume responsibility for the defense of such actions at the cost of the Company, subject to the option of the City to appear and defend.

b. The Company shall maintain throughout the term of this franchise insurance insuring the City and the Company with regard to all damages set forth in paragraph (a) of this section, in the minimum amounts of:

(i) $1,000,000 for bodily injury or death to a person, $3,000,000 for property damage resulting from any one accident;

(ii) $50,000 for property damage resulting from any one accident;

(iii) $1,000,000 for all other types of liability.

Should Company elect to self-insure for this purpose, the Company shall possess a certificate of authority from the Kansas Insurance Commissioner.

SECTION 8. RIGHT OF ASSIGNMENT. This Franchise shall be assignable only in accordance with the laws of the State of Kansas, as the same may exist at the time when any assignment is made.

SECTION 9. OPTION TO ACQUIRE. The City shall have the option at any time after the taking effect of this franchise, to acquire title to the wiring, poles, conduits, lamps, and other appurtenances (exclusive of the power house and generating equipment) which may be at said time used or useful exclusively in any street lighting of the City. Such property and facilities shall be sold to the City by Company, its successors or assigns, at a price determined by the formula identified in K.S.A. 66-1,176(c). Nothing herein shall be construed to in any manner preclude or prevent the City from acquiring title by any means authorized by law to any part, portion or all of the electric property of the Company, its successors or assigns or preclude or prevent Company from selling its street lighting system to a third party or give City a right of first refusal or option of any kind in connection with such a transaction. In the event Company sells its said street lighting system to a third party, the provisions of this Section shall be null and void and of no further effect.

SECTION 10. TERMINATION AND FORFEITURE OF FRANCHISE. The City reserves the right to terminate the franchise and all rights and privileges of the Company hereunder, in the event of a material failure on the part of the Company, its successors or assigns, to comply with any of the provisions of this ordinance, or if the Company, its successors or assigns, should do or cause to be done any material act or thing prohibited by or in violation of the terms of this ordinance. In such event, the Company, its successors and assigns, shall forfeit all rights and privileges granted by this ordinance and all rights hereunder shall cease, terminate and become null and void, provided that said forfeiture shall not take effect until the City shall carry out the following proceedings:

(a) Before the City terminates the franchise, it shall first serve a written notice upon the Company, and upon the trustee or trustees in any deed of trust securing bonds of the Company of record in Sedgwick County, Kansas, or the office of the Secretary of State of Kansas, by mailing notice to the Company and to such trustee or trustees to the address designated in such trust deed.

(b) The Company shall have sixty (60) calendar days thereafter in which to comply with the conditions of this franchise.

(c) If, at the end of such sixty day period, the City determines that the conditions of such franchise have not been complied with by the Company and that such franchise is subject to termination by reason thereof the City, in order to terminate such franchise, shall enact an ordinance setting out the grounds upon which the franchise is to be terminated.

(d) If within thirty (30) calendar days after the effective date of said ordinance the Company shall not have instituted an action, either in the District Court of Sedgwick County, Kansas, or some other court of competent jurisdiction to determine whether or not the Company has violated the terms of this franchise and that the franchise is subject to termination by reason thereof, such franchise shall be terminated at the end of such thirty day period.

(e) If within such thirty day period the Company does institute an action, as above provided, to determine whether or not Company has violated the terms of this franchise and that the franchise is subject to termination by reason thereof and prosecutes such action to final judgment with due diligence, then, in that event, in case the court finds that the franchise is subject to termination by reason of the viola-

tion of its terms, this franchise shall terminate thirty (30) calendar days after such final judgment is rendered.

In the event of a final adjudication of bankruptcy of the Company under Title 11 of the United States Code, the City shall have full power and authority to terminate, revoke, and cancel any and all rights granted under this franchise.

SECTION 11. ACCEPTANCE OF TERMS BY COMPANY. Within thirty (30) days after the final passage and approval of this Ordinance, the Company shall file with the City Clerk of the City its acceptance in writing of the provisions, terms and conditions of this Ordinance. This Ordinance shall constitute a non-exclusive contract between the City and the Company.

SECTION 12. CONDITIONS OF FRANCHISE. This non-exclusive franchise, grant, and privilege is granted under and subject to all applicable laws and under and subject to all of the orders, rules, and regulations now or hereafter adopted by governmental bodies now or hereafter having jurisdiction.

SECTION 13. RESERVATION OF RIGHTS. The City specifically reserves its right and authority as a Customer of the Company and as a public entity with responsibilities towards its citizens, to participate to the full extent allowed by law in proceedings concerning the Company's rates and services to ensure the rendering of efficient Electric Utility Service at reasonable rates, and the maintenance of the Company's property in good repair and the Company reserves its right to resist such participation.

In granting its consent hereunder, the City does not in any manner waive its regulatory or other rights and powers under and by virtue of the laws of the State of Kansas as the same may be amended, nor any of its rights and powers under or by virtue of present or future ordinances of the City.

SECTION 14. NOTICES. Except in Emergencies, all notices by either the City or the Company to the other shall be made by either depositing such notice in the U.S. Mail, Certified Mail, return receipt requested, or by facsimile. Any notice served by Certified Mail, return receipt requested, shall be deemed delivered five (5) calendar days after the date of such deposit in the U.S. Mail unless otherwise provided. Any notice given by facsimile is deemed received by the next business day. Emergency notices shall be provided by telephone, with written notice immediately following by facsimile. All notices shall be addressed to the City as follows:

City Clerk
455 N. Main Street
Wichita, Kansas 67202-1635

Notice to Company shall be addressed to the Company as follows:

Vice President, Customer Relations
818 S. Kansas Ave.
Topeka, KS 66612

Notice shall be given as required by the terms of this ordinance and for all Emergencies. Notice shall be provided to the above-named addressees unless directed otherwise in writing by City or Company.

SECTION 15. NON-WAIVER PROVISION. The failure of either party to insist in any one or more instances upon the strict performance of any one or more of the terms or provisions of this ordinance shall not be construed as a waiver or relinquishment for the future of any such term or provision, and the same shall continue in full force and effect. No waiver or relinquishment shall be deemed to have been made by either party unless said waiver or relinquishment is in writing and signed by the parties.

SECTION 16. INVALIDITY OF ORDINANCE. If any clause, sentence, or section of this Ordinance shall be held to be invalid, it shall not affect the remaining provisions of this Ordinance.

SECTION 17. GOVERNING LAW; VENUE.

a. Nothing in this franchise shall be considered as a surrender by the City of its right and power to use and relocate the use of its Right-of-Way.

b. The obligations and undertakings of both parties hereto shall be performed at Wichita, Sedgwick County. Kansas. In the event that any legal proceeding is brought to enforce the terms of this franchise, the same shall be brought in State or Federal courts, as appropriate, having jurisdiction for Sedgwick County, Kansas.

SECTION 18. EFFECTIVE DATE OF ORDINANCE. This Ordinance shall take effect and be in force on the first day of the first month after its passage and approval by the City, acceptance by the Company, and publication in the official city newspaper.

SECTION 19. REPEAL OF CONFLICTING ORDINANCES. Ordinance No. 45-987, which heretofore granted a non-exclusive franchise to the Company, and which became a contract between the City and the Company in accordance with its terms, and all other ordinances and resolutions or parts thereof inconsistent or in conflict with the terms hereof, are hereby canceled, annulled, repealed, and set aside.

PASSED and APPROVED by the Governing Body on the 16th day of December, 2014.

/s/ _____
Mayor Carl Brewer

ATTEST:

/s/ _____
Karen Sublett, City Clerk

APPROVED AS TO FORM:

/s/ _____
Sharon Dickgrafe,
Interim Director of Law

[The next page is App. A-41]

SEDGWICK COUNTY ELECTRIC COOPERATIVE ASSOCIATION, INC. ORDINANCE NO. 50-868

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS, GRANTING TO SEDGWICK COUNTY ELECTRIC COOPERATIVE ASSOCIATION, INC., ITS SUCCESSORS AND ASSIGNS, AN ELECTRIC, LIGHT, HEAT, AND POWER FRANCHISE AND PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. DEFINITIONS. For purposes of this franchise, the following words and phrases shall have the meanings given herein:

"Arterial Streets"—shall mean those portions of Rights-of-Way designated as arterial streets by City of Wichita Code § 11.96.100.

"Business Day"—shall mean a day which is not a Saturday, Sunday, or any day designated as a holiday by the Congress of the United States, by the State of Kansas, or by the City of Wichita.

"City"—shall mean the City of Wichita, Kansas.

"Company"—shall mean Sedgwick County Electric Cooperative Assn., Inc.

"Customer" or "Consumer"—shall mean any person, firm, partnership, association, corporation, company or organization of any kind served by Company hereunder within the City.

"Electric Utility Service"—shall mean and include:

(i) all sales of electricity to all Customers at retail within the corporate limits of the City;

(ii) ancillary or unbundled electric services provided to all Customers at retail within the corporate city limits of the City when sold separately from kWh which shall include, but not be limited to:

(a) reactive supply and voltage control,

(b) scheduling,

(c) system control and dispatch,

(d) regulation and frequency response,

(e) energy imbalance,

(f) operating reserves,

(g) supplemental reserves, and

(h) spinning reserves; and

(iii) transmission and distribution of electricity when sold separately from energy to any person located within the city limits of the City.

"Electric Utility System" or "System"—shall mean an electric power system installed and operated in the City in compliance with applicable rules and regulations of the Federal Energy Regulatory Commission (FERC) and Kansas Corporation Commission (KCC), and their successors, which shall include, but not be limited to, the generation, transmission and distribution facilities, equipment and administrative services necessary to provide electric service for any use in the City, and such extensions, additions or reductions as may hereafter be made.

"Emergency"—shall mean a reasonably unforeseen occurrence with a potential to endanger personal safety or health, or cause substantial damage to property, that calls for immediate action.

"Facilities"—shall mean electric light and power lines, together with all necessary or desirable appurtenances, including underground conduits, poles, towers, wires and other appurtenances.

"Gross Receipts"—shall mean all revenues received by the Company from providing Electric Utility Service within the corporate limits of the City but shall not include any administrative or non-recurring charges associated with the provision of Electric Utility Service within the corporate limits of the City.

"Person"—shall mean any individual, firm, partnership, association, corporation, company or organization of any kind.

"Public Project"—shall mean any project planned or undertaken by the City or any other governmental entity for construction, reconstruction, maintenance, or repair of public facilities or improvements, including without limitation

streets, alleys, sidewalks, sewer system, water system, drainage system, Right-of-Way improvement, or any other purpose of a public nature.

"Public Project for Private Development"—shall mean a Public Project, or that portion thereof, arising solely from a request or requirement of a third party primarily for the benefit and use of a third party.

"Retail Wheeling"—shall mean the use of the Company's transmission, distribution, and associated Facilities of its Electric Utility System to deliver electricity purchased by end use Customers located within the City from electric suppliers other than the Company.

"Right-of-Way"—shall mean only the area of real property in which the City has a dedicated or acquired right-of-way interest in the real property. It shall include the area on, below, or above the present and future streets, alleys, avenues, roads, highways, or boulevards dedicated or acquired as rights-of-way. The term does not include the airwaves above a right-of-way with regard to wireless telecommunications or other nonwire telecommunications or broadcast service, easements obtained by utilities, or private easements in platted subdivisions or tracts. The term does not include property owned or held by the City that is typically not considered right-of-way, including, but not limited to, undeveloped road right-of-way in City parks, reserves and in or around City buildings.

SECTION 2. GRANT.

(a) There is hereby granted to Company the non-exclusive right, privilege, and franchise to construct, maintain, extend, operate, reconstruct, and replace Facilities for its Electric Utility System in, through, and along the Right-of-Way of the City for the provision of Electric Utility Services to the City, the inhabitants thereof, and persons and corporations beyond the limits thereof, for the full term of this franchise under the terms and conditions herein set forth.

(b) This franchise does not authorize the Company to use its existing Facilities, or to construct new Facilities, in order to provide cable television service, telecommunications service, network access service, internet access service, leased fiber optic services, video programming service, or any other telecommunications or telephone service to existing or potential customers, and such services are not permitted under this franchise.

(c) The Company must revise its franchise fee payments due to any expansion or reduction by annexation or contraction within a reasonable time after receipt of notice from the City, but in no event later than thirty (30) calendar days after receipt of such notice.

SECTION 3. TERM.

(a) The term of this franchise shall be for a period of ten (10) years from the effective date hereof.

(b) If the rate of compensation is changed by City Ordinance, the City shall notify the Company with written notice and the new rate of compensation shall become effective and applied to this franchise upon notification. The rate of compensation, if changed by City Ordinance, is not a negotiable item; however, any increase in compensation/fee shall be in compliance with the public notification procedures set forth in K.S.A. 12-2001.

(c) Upon written request of either the City or the Company, this franchise shall be reopened and renegotiated at any time upon any of the following events:

(i) changes in federal, state, or local laws, regulations, or orders that materially affect any rights or obligations of either the City or Company, including but not limited to the scope of the franchise granted to the Company or the compensation to be received by the City, hereunder;

(ii) changes in the structure or operation of the electrical power industry that materially affect any rights or obligations of either the City or the Company, including but not limited

to: (A) the scope of the franchise granted to the Company, (B) the compensation to be received by the City hereunder, (C) the institution of Retail Wheeling or customer choice of electric supplier, or (D) the unbundling and separate pricing of the generation, transmission or distribution of Electric Utility Service; and

(iii) any other material and unintended change or shift in the economic benefit that either the City or the Company reasonably relied upon and reasonably anticipated upon entering into this franchise.

(d) In any negotiation properly commenced pursuant to Section 3(b), the City and the Company shall negotiate in good faith in an effort to agree upon mutually satisfactory amendment(s). Failure of the City and Company to successfully renegotiate the materially affected provisions of this franchise under Section 3(b) shall give either party the right to terminate this franchise by giving written notice of termination within sixty (60) days of the event giving rise to the negotiations under subsection (b), in which case the franchise shall terminate 60 days after such notice is given. If neither party gives notice of termination within such time period, the franchise shall remain in effect according to its then existing terms.

(e) Amendments under this Section, if any, shall be made by ordinance as prescribed by statute. The franchise shall remain in effect according to its terms pending completion of any renegotiation provided by subsections (b) and (c).

SECTION 4. COMPENSATION TO THE CITY.

(a) In consideration of, and as compensation for, the franchise and privilege hereby granted, Company shall make an accounting to the City once each month of all its Gross Receipts during the preceding month. Such accounting shall be submitted by the fifteenth (15th) day of the month following the calendar month that is the subject of the accounting, and shall be accompanied by a report of the Company's Gross Receipts for the preceding month upon which fees are calculated.

(b) The Company shall pay to the City, at the time of making such report, an amount equal to six percent (6%) of the Gross Receipts of the Company during such preceding month. Such payments shall be made to the City under such additional procedures as are mutually agreed to by the Company and the City.

(c) In the event the accounting rendered to the City by the Company is found to be incorrect, then an adjustment shall be promptly made on the corrected amount. The City may accept any amount offered by the Company, but the acceptance thereof by the City shall not be deemed a settlement of such item if the amount is in dispute or later found to be incorrect. Such of the Company's books, records, documents, contracts and agreements as may be reasonably necessary for an audit of the Company's performance under this ordinance shall at all reasonable times and upon reasonable request be opened to the inspection and examination by the officers of the City and its duly authorized agents, auditors, and employees for the purpose of verifying said accounting. For purposes of this provision, the Company shall maintain appropriate records for three past years plus the current year.

(d) For each and every month, or any part thereof, that the compensation provided for by this franchise remains unpaid after the same becomes due and payable to the City, there shall be added to such payment, as a late charge, a sum equivalent to the statutory rate for interest on the unpaid amount. Such late charge shall be applicable to sums that

are delinquent as well as any sums due the City as the result of an audit or review of the Company's records.

(e) Except as provided herein, the payments and compensation herein provided shall be in lieu of all other licenses, taxes, charges, and fees imposed by the City. Company shall continue to be responsible for and subject to the following licenses, taxes, charges and fees:

(i) the usual general property taxes and special ad valorem property taxes;

(ii) sales and excise taxes;

(iii) any permit fees and charges for pavement cuts or other permit fees and charges based on restoring premises to their previous condition; and

(iv) charges made for privileges which are not in any manner connected with the provision of Electric Utility Service, as such.

(f) In the event that either state or federal governmental entities authorize or require, or Company on its own initiative engages in: (1) Retail Wheeling or customer choice of electric supplier; or (2) the unbundling and separate pricing of the generation, transmission or distribution of Electric Utility Service(s), then the revenues obtained by Company from these activities from service provided within the corporate limits of the City shall be included in Company's Gross Receipts for the purpose of calculating fees due to the City hereunder.

SECTION 5. USE OF RIGHT-OF-WAY.

(a) *Rules and Regulations.* In its use of Right-of-Way under this franchise, the Company shall be subject to all rules, regulations, policies, resolutions and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power. In addition, the Company shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City relating to permits, fees, sidewalk and pavement cuts, utility location, construction coordination, screening, and other requirements on the use of the Right-of-Way in the reasonable exercise of its police power, provided, however, that nothing contained herein shall constitute a waiver of or be construed as waiving the right of the Company to oppose, challenge, or seek judicial review of, in such manner as is now or may hereafter be provided by law, any such rules, regulation, policy, resolution, or ordinance proposed, adopted, or promulgated by the City.

(b) *Subordinate to City Use.* The Company's use of Right-of-Way shall in all matters be subordinate to the City's use of the Right-of-Way for any public purpose. The Company shall coordinate the installation of its Facilities in the Right-of-Way in a manner that minimizes adverse impact on Public Projects, as reasonably determined by the City. Where installation is not otherwise regulated, the Facilities shall be placed with adequate clearance from such Public Projects so as not to conflict with such Public Projects.

(c) *Restoration.* All earth, materials, sidewalks, paving, crossings, utilities, Public Projects, or improvements of any kind located within the Right-of-Way that are damaged or removed by the Company in its activities under this franchise shall be fully repaired or replaced promptly by the Company at its sole expense, however, which such activity is a joint project of utilities or franchise holders, the expenses thereof shall be prorated among the participants, and to the reasonable satisfaction of the City in accordance with the ordinances and regulations of the City pertaining thereto.

(d) *Public Project for Private Development.* The Company shall not be responsible for the expenses of relocation to accommodate any new Public Project for Private

Development initiated after the effective date of this ordinance. The expenses attributable to such a project shall be the responsibility of the third party upon the request and appropriate documentation of the Company. Before such expenses may be billed to the third party, the Company shall be required to coordinate with the third party and the City on the design and construction to ensure that the work required is necessary and done in a cost effective manner. Upon the request of the Company or the third party, the allocation of expenses attributable to the project shall be made in the reasonable determination of the City. Eligible third parties may request to have the City specially assess those expenses billed by the Company under this section.

(e) *Exclusion of Certain Locations/Facilities.* Prior to the Company's installation of any Facilities in the Right-of-Way and after it provides the City with its proposed plans for the Facilities, the City may in its reasonable discretion designate certain locations or Facilities in the Right-of-Way to be excluded from use by Company for its Facilities, including but not limited to any Facility or location that in the reasonable judgment of the City Engineer is incompatible with the proposed Facilities or would be rendered unsafe or unstable by the installation. The City Engineer may further exclude certain other Facilities that have been designated or planned for other use or are not otherwise available for use by the Company due to engineering, technological, proprietary, aesthetics, or legal limitations or restrictions as may be reasonably determined by the City. The City shall provide a written explanation for any denial for a particular location and shall work with the Company to identify other suitable routes.

(f) *Location, Type and Design of Facilities Subject to Approval.*

(i) The design, location, and nature of all Facilities to be placed in the Right-of-Way shall be subject to the reasonable review and approval of the City Engineer. This is a means to properly manage and control all Right-of-Way usage in the City, and to protect the public health, safety, and welfare, which includes aesthetics. The review and approval is to ensure efficient coordination relating to Right-of-Way use relating to public and private utilities and to evaluate the configuration and size of Facilities that may be located in the Right-of-Way.

(ii) When the Company is allowed to place Facilities above ground in accordance with Section 7, the Company may attach its Facilities to an existing utility pole pursuant to a properly executed agreement with the pole owner, provided, however, that any necessary replacement of the pole in order to accommodate the attachment shall be subject to the proper exercise of the City's police powers, and in no instance shall the Company erect an additional pole within an existing aerial pole line absent the City's prior authorization.

(iii) Above-ground pedestals, above-ground vaults, cabinets, poles or other similar above-ground Facilities, may be installed only if approved by the City where alternative underground Facilities are not feasible or where underground requirements are otherwise waived pursuant to Section 7. Such above-ground Facilities shall generally be located behind the sidewalk where feasible and when placed along arterial streets shall be screened from public view by ornamental grasses or the equivalent when requested by the City. The Company shall be responsible for the installation or restoration of such screening; the City shall be responsible for routine maintenance.

(g) *Right-of-Way Management Code.* The City reserves its rights to adopt a right-of-way management and construction standards ordinance of general applicability pursuant to its public health, safety and welfare, which includes aesthetics, authority which shall apply to this franchise except where inconsistent with a material term of this franchise and the Company reserves its rights to recover such costs to the extent provided by applicable law.

(h) *Permit Requirements.*

(i) Any request for permits shall be complete, including a written description of work with applicable maps and aerials having routs clearly marked and proper dimensions shown.

(ii) This franchise establishes the general rules and scope of authority for the Company to construct and maintain its Electric Utility System within the Right-of-Way. The Company is still required to obtain individual permitting approval from the City Engineer prior to engaging in actual construction of its specific Facilities within the Right-of-Way.

(iii) Except in the case of an emergency situation, prior to any excavation within the Right-of-Way, the Company shall obtain a permit, pay all applicable fees, and perform such work in accordance with applicable provisions of the City Right-of-Way Management Code, and any ordinances or regulations that may be adopted by the City regarding excavation work.

(i) *Construction Plans.* At least ten (10) business days before the beginning of any installation, removal or relocation of its Facilities greater in length than 660 feet, the Company shall submit detailed plans of the proposed action to the City Engineer. The City Engineer shall, within ten (10) business days of receipt of such plans, either approve the plans or inform the Company of the reasons for disapproval. The Company shall designate a responsible contact person with whom representatives of the City Engineer can communicate on all matters relating to Facilities installation and maintenance.

(j) *As-Built Drawings.* The Company shall keep and maintain accurate records and as-built drawings, in electronic format, of all underground Facilities (except customer service lines) constructed, reconstructed, or relocated in the Right-of-Way commencing six (6) months after the effective date hereof. Such Facilities shall be horizontally and vertically located at least every 100 feet and at any alignment change. All points of Facilities shall be horizontally located from street centerline, or section or quarter section lines or corners. Vertical locations on all points of Facilities shall consist of elevations in either City datum or United States Geological Survey datum. The Company shall cooperate promptly and fully with the City and take all reasonable measures necessary to provide accurate and complete information regarding the nature and horizontal and vertical location of its existing Facilities located within Right-of-Way when requested by the City or its authorized agents for a Public Project. Such location and identification shall be at the sole expense of the Company without expense to the City, its employees, agents, or authorized contractors.

(k) *Wires.* Where practicable, wires shall be placed nineteen (19) feet or more above the level of the street, except new wires shall be placed up to twenty-two (22) feet above the level of the street where reasonably requested by the City. Where practicable, any poles placed in the street Right-of-Way shall be located on the lot line and six (6) feet inside the curb line.

(l) *Street Closure.* Except in the case of an emergency situation, the Company shall notify the City not less than twenty (20) working days in advance (such notice to be adequate for timely notice on the

governing body agenda under City procedures) of any construction, reconstruction, repair, or relocation of Facilities that would require any street closure that reduces traffic flow to less than two lanes of moving traffic. Except in the event of an Emergency, no such closure shall take place without prior authorization from the City. In addition, all work performed in the traveled way or which in any way impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected in conformance with the latest edition of the Manual of Uniform Traffic Control Devices unless otherwise agreed to by the City.

(m) *Relocation for Public Projects.* The Company shall coordinate with the City on the design and placement of Facilities in the Right-of-Way during and for the design of Public Projects. At the request and sole expense of the Company, the City may include design for Facilities in the design of Public Projects. Upon request by the City and within the time period specified in the City's request, the Company shall locate, remove, relocate, or adjust any Facilities located in Right-of-Way if reasonably necessary for a Public Project. Such location, removal, relocation, or adjustment for a particular Public Project shall be performed by the Company once without expense to the City, its employees, agents, or authorized contractors and shall be specifically subject to rules and regulations of the City pertaining to such. Such relocation or adjustment shall be completed as soon as possible within the time set forth in any request by the City for such relocation or adjustment. If additional location, removal, relocation, or adjustment becomes necessary as a result of inaccurate or mistaken information provided by the Company or City, the party which provided such inaccurate or mistaken information shall be responsible for costs associated with such additional location, removal, relocation, or adjustment without expense to the other party. The City will use its best efforts, but is not required, to continue to provide a location in the Right-of-Way for the Company's Facilities as part of a Public Project, provided that the Company has cooperated promptly and fully with the City in the design of its Facilities as part of the Public Project.

(n) *Protect Facilities.* It shall be the responsibility of the Company to take adequate measures to protect and defend its Facilities in the Right-of-Way from harm or damage. If the Company fails to accurately locate Facilities when requested, it shall have no claim for costs or damages against the City or its authorized contractors except to the extent the City or its authorized contractors are responsible for the harm or damage by their gross negligence or intentional conduct. The Company shall be responsible to the City and its agents, representatives, and authorized contractors for all damages, including but not limited to delay damages, repair costs, down time, construction delays, penalties or other expenses of any kind, arising out of the failure of the Company to perform any of its obligations under this franchise except to the extent another party is responsible for the harm or damage by its negligence or intentionally caused harm. The above general provisions notwithstanding, the City and its authorized contractors shall take reasonable precautionary measures including calling for utility locations through Kansas One Call and exercising due caution when working near Company Facilities.

(o) *ULCC.* The Company shall become and remain a member of and participate in the Utility Location and Coordination Council established by ordinance of the City.

(p) *Technical Standards.* All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and

dismantling of the Facilities in the Right-of-Way shall be in accordance with applicable present and future federal, state, and City law and regulation, including but not limited to the most recent standards of the Kansas Corporation Commission and the Kansas Department of Transportation, or such substantive equivalents as may hereafter be adopted or promulgated. The standards established in this paragraph are minimum standards and the requirements established or referenced in this franchise may be in addition to or stricter than such minimum standards.

(q) *Conservation of Right-of-Way.* The City encourages the conservation of Right-of-Way by the sharing of space by all utilities. Notwithstanding any provision of this franchise prohibiting third party use, to the extent required by federal or state law, the Company will permit any other franchised entity, by appropriate contract or agreement negotiated by the parties to use any and all Facilities constructed or erected by the Company.

(r) *Structure Moving.* On the request of any applicant, the Company shall remove or raise or lower its wires temporarily to permit the moving of houses or other structures. The expense of such temporary removal, raising or lowering of wires shall be paid by the applicant, and the Company may require such payment in advance. The Company shall be given not less than fifteen (15) calendar days' written notice from the applicant detailing the time and location of the moving operations, and not less than twenty-four (24) hours' advance notice from the applicant advising of the actual operation. However, the City shall not be liable for any such expense for the moving of houses or structures by the City or its contractors.

(s) *Conduit.* If the Company, in its sole discretion, determines that it has spare ducts in its underground conduits, or spare pins, crossarms, or space on any of its poles not then necessary for the provision of Electric Utility Service, and not needed for future anticipated load growth or Emergencies, the Company may permit the City to use one such duct in each conduit, or reasonable spaces on poles, or both, for the City's police and fire alarm wires, traffic control wires or cable, fiber-optic lines connecting City facilities, or other similar, appropriate non-commercial uses, provided that such use by the City is in compliance with the National Electric Safety Code and at the expense of the City. If the Company constructs or extends additional conduits or erects additional poles, the City, at the City's sole expense, may require the Company to provide one such duct in each conduit, or reasonable space on poles, or both, for the City's own use as aforesaid.

(t) *Commercial Purposes.* City shall not sell, lease or otherwise make available its rights to use the Company's Facilities as set forth herein to any third party for commercial purposes. Such rights are provided solely for the non-commercial use of the City or other governmental entity. However, this restriction shall not prevent the City from using the services of a third party commercial entity to manage or operate the City's facilities on behalf of the City, so long as no resale or other commercial use of such facilities shall occur.

SECTION 6. WORK BY OTHERS.

(a) The City reserves the right to lay, and permit to be laid, storm sewer, gas, water, wastewater and other pipe lines, cables, and conduits, and to do and permit to be done any underground or overhead work that may be necessary or proper in, across, along, over, or under the Right-of-Way occupied by the Company. The City also reserves the right to change, in any manner, any curb, sidewalk, highway, alley, public way or street. In permitting such work to be done, the City shall not be liable to the Company for any damage

so occasioned, but nothing herein shall relieve any other Person from responsibility for damages to the Facilities of the Company.

(b) If the City shall require the Company to adapt or conform its Electric Utility System, or in any way or manner to alter, relocate, or change its property to enable any other Person to use, or use with greater convenience, said Right-of-Way, the Company shall not be bound to make any such changes until such other Person shall have undertaken, with good and sufficient bond, to reimburse the Company for any cost, loss, or expense which will be caused by, or arise out of such change, alteration, or relocation of the Company's property. Provided, however, that the City shall never be liable for such reimbursement due to the Company from such Person.

SECTION 7. UNDERGROUND REQUIREMENTS.

(a) The Company shall use commercially reasonable efforts to provide that all Facilities constructed, replaced, or relocated in the Right-of-Way after the date hereof shall be placed underground unless, because of the nature of the Facility or the standard construction or operating practices of the Company, the Company requests approval for such Facilities to be placed above ground. Upon receipt of such request, the City Engineer shall review and approve the plans for the above ground placement of Facilities in accordance with reasonable procedures established by the City, and subject to such reasonable conditions as the City may establish for public safety, appearance, or coordination with Public Projects. Where there are obstructions in the Right-of-Way, such as trees, shrubs, other utilities, commercial signs, man-made structures, or other like obstructions that make the cost of such underground burial unreasonable, the Company may request waiver of this requirement, in which event the City will not unreasonably withhold consent.

(b) All new Facilities installed in the Downtown Area shall be installed underground. Additionally, all replacement or upgrading of Facilities in the Downtown Area shall be installed underground.

(c) The City may require any portions of Company's Facilities in the Downtown Area that are not presently underground to be placed underground. The City shall provide reasonable written notice to the Company of the City's request that such Facilities be placed underground. The Company shall promptly undertake the removal and replacement of such Facilities to underground locations at no cost to the City.

(d) Except as may otherwise be provided by other applicable ordinances of the City, where reasonable and appropriate and where adequate Right-of-Way exists, the Company shall place above-ground Facilities underground in conjunction with City capital improvement projects and/or at specific locations requested by the City provided that such placement is practical, efficient, and economically feasible.

(e) Where not otherwise required to be placed underground by this franchise, the Company's Facilities shall be located underground at the request of the adjacent property owner, provided the placement of such Facilities shall be consistent with the Company's construction and operating standards and provided that property owner making the request pays the Company for such undergrounding pursuant to the Company's applicable tariffs and terms and conditions.

(f) When undertaking a project of undergrounding, the City and the Company shall, to the extent practicable, work with other utilities or companies that have their lines overhead to have all

lines undergrounded as part of the same project. When other utilities or companies are placing their lines underground, the Company shall cooperate with these utilities and companies and undertake to underground Company's Facilities as part of the same project where feasible; provided, however, the Company shall not be required to pay the costs of any other utility or company.

(g) The Company shall use commercially reasonable efforts to coordinate its installation of new underground Facilities with preexisting underground facilities of other companies. The underground requirements of this subsection shall not apply to the maintenance and repair of existing Facilities, as determined by the City Engineer, except as may be required in Section 7(b).

SECTION 8. INDEMNITY AND HOLD HARMLESS; LIABILITY; INSURANCE; SURETY BOND.

(a) The Company shall hold and save the City, its officers, employees, agents, and authorized contractors, harmless from and against all claims, damages, expense, liability, and costs including attorney fees, to the extent occasioned in any manner by the Company's occupancy of Right-of-Way, except to the extent that such were caused by the negligence or intentional conduct of the City, its officers, employees, agents, or authorized contractors. In the event a claim shall be made or an action shall be instituted against the City growing out of such occupancy of the Right-of-Way by Facilities of the Company, then upon notice by the City to the Company, the Company will assume responsibility for the defense of such actions at the cost of the Company, subject to the option of the City to appear in and defend, at its own cost, any such case. However, the Company shall have no duty to defend any such action to the extent that such action has resulted from the negligence or intentional conduct of the City, its officers, employees, agents, or authorized contractors.

(b) The Company shall maintain throughout the term of this franchise insurance insuring the City and the Company with regard to all damages set forth in paragraph (a) of this section, in the minimum amounts of:

(i) $1,000,000 for bodily injury or death to a person

$3,000,000 for property damage resulting from any one accident;

(ii) $50,000 for property damage resulting from any one accident;

(iii) $1,000,000 for all other types of liability.

Should Company elect to self-insure for this purpose, the Company shall possess a certificate of authority from the Kansas Insurance Commissioner.

(c) On or before the Effective Date of this franchise (or the date of first use of the Right-of-Way under this franchise, if later), and as a condition precedent to the effectiveness of the franchise, the Company shall deposit with the City a surety bond in the amount of $100,000, payable to the City and securing the payment of repair or maintenance costs incurred as a result of any defects, impairments, or substandard condition in the Right-of-Way caused by the work of the Company or resulting from the Company's activities in the Right-of-Way. The required surety bond must be with good and sufficient sureties, issued by a surety company authorized to transact business in the State of Kansas, and satisfactory to the City Attorney in form and substance.

SECTION 9. REGULATORY PROVISIONS.

(a) Nothing contained in this section shall be construed as waiving the rights of either the City or the Company to review in the courts, in such manner as is now

or may hereafter be provided by law, any rules, findings, or orders of a regulatory body, the Company, or the City.

SECTION 10. STREET LIGHTING. The City shall have the option at any time after the taking effect of this franchise, to acquire title to the wiring, poles, conduits, lamps, and other appurtenances (exclusive of the power house and generating equipment) which may be at said time used or useful exclusively in any street lighting of the City. Such property and facilities shall be sold to the City by Company, its successors or assigns, at the fair cash value of the physical properties. In the event of the exercise of the option by the City to take over said street lighting property, there shall be no allowance to the Company, its successors or assigns, for any element or item of intangible value, blue sky, nor any good will or going concern value, nor any "Severance Damages," or stranded costs or stranded value. Nothing herein shall be construed to in any manner preclude or prevent the City from acquiring title by any means authorized by law to any part, portion or all of the electric property of the Company, its successors or assigns or preclude or prevent Company from selling its street lighting system to a third party or give City a right of first refusal or option of any kind in connection with such a transaction. In the event Company sells its said street lighting system to a third party, the provisions of this Section shall be null and void and of no further effect.

SECTION 11. ASSIGNMENT AND TRANSFER. This franchise shall be assignable only in accordance with the laws of the State of Kansas, as the same may exist at the time when any assignment is made, provided, however, that the franchise may be assigned by the Company without action by the City to any entity which succeeds to all or substantially all of the electric utility business of the Company. Provided, however, in the event that the Company is no longer required to obtain the approval of the Kansas Corporation Commission for an assignment, such assignment shall be subject to the consent of the City, which consent shall not be unreasonably withheld. In the event of an assignment to a successor, the Company shall be released from all obligations which are assumed in writing by such successor and the assignee shall have executed an assumption of the franchise being assigned.

SECTION 12. TERMINATION AND FORFEITURE OF FRANCHISE.

(a) In addition to all other rights and powers retained by the City under this franchise, the City reserves the right to terminate the franchise and all rights and privileges of the Company hereunder, in the event of a material failure on the part of the Company, its successors or assigns, to comply with any of the provisions of this ordinance, or if the Company, its successors or assigns, should do or cause to be done any material act or thing prohibited by or in violation of the terms of this ordinance. In such event, the Company, its successors and assigns, shall forfeit all rights and privileges granted by this ordinance and all rights hereunder shall cease, terminate and become null and void, provided that said forfeiture shall not take effect until the City shall carry out the following proceedings:

(i) Before the City terminates the franchise, it shall first serve a written notice upon the Company, and upon the trustee or trustees in any deed of trust securing bonds of the Company of record in Sedgwick County, Kansas, or the office of the Secretary of State of Kansas, by mailing notice to the Company and to such trustee or trustees to the address designated in such trust deed, setting forth in detail in such notice the neglect or failure complained of.

(ii) The Company shall have sixty (60) calendar days thereafter in which to comply with the conditions of this franchise.

(iii) If, at the end of such sixty day period, the City determines that the conditions of such franchise have

not been complied with by the Company and that such franchise is subject to termination by reason thereof, the City, in order to terminate such franchise, shall enact an ordinance setting out the grounds upon which the franchise is to be terminated.

(iv) If within thirty (30) calendar days after the effective date of said ordinance the Company shall not have instituted an action, either in the District Court of Sedgwick County, Kansas, or some other court of competent jurisdiction to determine whether or not the Company has violated the terms of this franchise and that the franchise is subject to termination by reason thereof, such franchise shall be terminated at the end of such thirty day period.

(v) If within such thirty day period the Company does institute an action, as above provided, to determine whether or not Company has violated the terms of this franchise and that the franchise is subject to termination by reason thereof and prosecutes such action to final judgment with due diligence, then, in that event, in case the court finds that the franchise is subject to termination by reason of the violation of its terms, this franchise shall terminate thirty (30) calendar days after such final judgment is rendered.

(b) In the event of a final adjudication of bankruptcy of the Company under Title 11 of the United States Code, the City shall have full power and authority to terminate, revoke, and cancel any and all rights granted under this franchise.

(c) The failure of the Company to comply with any of the provisions of this franchise or the doing or causing to be done by the Company of anything prohibited by or in violation of the terms of this franchise shall not be a ground for the termination thereof when such act or omission on the part of the Company is due to any cause or delay beyond the control of the Company, its successors and assigns, or bona fide legal proceedings.

SECTION 13. RIGHTS AND DUTIES OF COMPANY UPON EXPIRATION OR TERMINATION OF FRANCHISE. Upon expiration of this franchise, whether by lapse of time, by agreement between Company and City, or by forfeiture thereof, the Company shall have the right to remove any and all of its Facilities used in its Electric Utility Service within a reasonable time after such expiration or termination, unless the City notifies the Company in writing that the City or a third party intends to purchase the Facilities. In the event the City notifies the Company that the Facilities are to be purchased, the Facilities shall be sold to the City or the third party by Company, its successors or assigns, for the compensation provided by applicable law. In the event the City notifies the Company that the Facilities can be removed by the Company, it shall be the duty of the Company, immediately upon such removal, to restore the streets, avenues, alleys, parks and other public ways and grounds from which said Facilities are removed to as good condition as the same were before said removal was effected.

SECTION 14. ACCEPTANCE. Prior to the effective date of this ordinance the Company shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this ordinance, which acceptance shall be duly acknowledged before an officer authorized by law to administer oaths. When so accepted the ordinance and acceptance shall constitute a contract between the City and the Company subject to the provisions of the laws of the state of Kansas.

SECTION 15. CONDITIONS OF FRANCHISE. This contract, franchise, grant and privilege is granted and accepted under and subject to all applicable laws and under and subject to all of the orders, rules, and regulations now or hereafter adopted by governmental bodies

now or hereafter having jurisdiction, and each and every provision hereof shall be subject to acts of God, fires, strikes, riots, floods, war and other causes beyond Company's control.

SECTION 16. RESERVATION OF RIGHTS.

(a) The City specifically reserves its right and authority as a Customer of the Company and as a public entity with responsibilities towards its citizens, to participate to the full extent allowed by law in proceedings concerning the Company's rates and services to ensure the rendering of efficient Electric Utility Service at reasonable rates, and the maintenance of the Company's property in good repair and the Company reserves its right to resist such participation.

(b) In granting its consent hereunder, the City does not in any manner waive its regulatory or other rights and powers under and by virtue of the laws of the State of Kansas as the same may be amended, nor any of its rights and powers under or by virtue of present or future ordinances of the City.

SECTION 17. NOTICES. Except in Emergencies, all notices by either the City or the Company to the other shall be made by either depositing such notice in the U.S. Mail, Certified Mail, return receipt requested, or by facsimile. Any notice served by Certified Mail, return receipt requested, shall be deemed delivered five (5) calendar days after the date of such deposit in the U.S. Mail unless otherwise provided. Any notice given by facsimile is deemed received by the next business day. Emergency notices shall be provided by telephone, with written notice immediately following by facsimile. All notices shall be addressed to the City as follows:

City Clerk
City Hall - 13th Floor
455 N. Main Street
Wichita, Kansas 67202-1635

Notice to Company shall be addressed to the Company as follows:

Sedgwick County Electric Cooperative Assn., Inc.
Attn: Scott Ayres
P.O. Box 220
Cheney, Kansas 67025

Notice shall be given as required by the terms of this ordinance and for all Emergencies. Notice shall be provided to the above-named addressees unless directed otherwise in writing by City or Company.

SECTION 18. NON-WAIVER PROVISION. The failure of either party to insist in any one or more instances upon the strict performance of any one or more of the terms or provisions of this ordinance shall not be construed as a waiver or relinquishment for the future of any such term or provision, and the same shall continue in full force and effect. No waiver or relinquishment shall be deemed to have been made by either party unless said waiver or relinquishment is in writing and signed by the parties.

SECTION 19. SEVERABILITY. If any clause, sentence, or section of this ordinance, or any portion thereof, shall be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of the remainder, as a whole or any part thereof, other than the part declared to be invalid; provided, however, the City may elect to declare that the entire agreement is invalidated if the portion declared invalid is, in the judgment of the City, an essential part of this ordinance.

This ordinance shall be included in the Code of the City of Wichita, Kansas, and shall be effective upon its passage and publication once in the official city paper.

PASSED by the governing body of the City of Wichita, Kansas, this 9th day of October, 2018.

/s/ Jeff Longwell
Mayor

ATTEST:

/s/ Karen Sublett
City Clerk

Approved as to Form:

/s/ Jennifer Magaña
City Attorney and Director of Law

ARTICLE III. NATURAL GAS

KANSAS GAS SERVICE COMPANY, A Division of One Gas, Inc. Ordinance No. 51-166*

AN ORDINANCE GRANTING TO KANSAS GAS SERVICE COMPANY, A DIVISION OF ONE GAS, INC., ITS SUCCESSORS AND ASSIGNS, A NATURAL GAS FRANCHISE AND THE RIGHT TO CONSTRUCT, OPERATE, MAINTAIN, AND EXTEND A NATURAL GAS PLANT AND DISTRIBUTING SYSTEM IN THE CITY OF WICHITA, KANSAS; PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO; AND REPEALING ORDINANCE 47-956.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS;

Section 1. Definitions.

For purposes of this franchise ordinance, the following words and phrases shall have the meanings given herein:

"City" means the City of Wichita, Kansas.

"Company" means Kansas Gas Service Company, a Division of ONE Gas, Inc.

"Distributed" or "Distribution" means all sales, distribution, or transportation of natural gas to any consumer or user within the City by the Company or by others through the Facilities of the Company in the Right-of-Way.

"Facilities" means natural gas mains, pipes, boxes, reducing and regulating stations, laterals, conduits and service extension, together with all necessary appurtenances thereto.

"Franchise" means the grant of authority by the City to transport, distribute or sell natural gas to the inhabitants of the City and to operate and maintain the Company's distribution system and facilities within Right-of-Way as defined herein.

"Franchise Fee" means the charges to consumers and compensation to the City as prescribed in Section 4 of this Franchise Ordinance.

"Gross receipts" means any and all compensation and other consideration received derived directly or indirectly by Company from any Distribution of natural gas to a consumer for any use, including, but not limited to, residential, commercial, industrial and transportation purposes, and including without limitation interruptible sales and single sales; and shall include revenues from any operation or use of any or all of the Facilities in the Right-of-Way by the Company or others including charges as provided in tariffs filed and approved by the Kansas Corporation Commission; but such term shall not include revenue received by Company from consumers as franchise fee reimbursement, funds from customer project contributions, certain miscellaneous charges and accounts as set forth in the Terms and Conditions of Gas Service on file and approved by the Kansas Corporation Commission, including but not limited to, connection and disconnection fees, reconnection fees, returned check charges, and delayed or late payment charges as such terms are used in tariffs filed and approved. Additionally, Gross Receipts shall not include credit extended, nor Volumetric Rate Fees collected by Company and remitted to City in accordance with Section 4 of this Ordinance.

"MCF" means a measurement of natural gas equal to one thousand cubic feet. One MCF equals 1,000,000 British Thermal Units (BTUs).

"Public Improvements" means any existing or contemplated public facilities, buildings, or capital improvement project, including without limitation streets, alleys, sidewalks, sewer, water, drainage, Right-of-Way improvement, and Public Projects.

"Public Project" means any project planned or undertaken by the City or any governmental entity for construction, reconstruction,

*__Editor's note—__Ord. No. 51-166, §§ 1—16, adopted on Jan. 7, 2020 repealed and replaced Ord. No. 47-956 in its entirety. The former ordinance pertained to similar subject matter. See also the Code Comparative Table.

maintenance, or repair of public facilities or improvements, or any other purpose of a public nature paid for with public funds.

"Right-of-Way" means present and future streets, alleys, rights-of-way, and public easements, including easements dedicated in plats of the City for streets, and alleys.

"Settlement Prices" means the settlement prices for natural gas futures contracts traded on the New York Mercantile Exchange (NYMEX) on the 15th day of each month or the first trading day thereafter.

"Street Right-of-Way" means the entire width between property lines of land, property or an interest therein of every way publicly maintained where any part thereof is open to the use of the public for purposes of vehicular traffic, including street, avenue, boulevard, highway, expressway, alley or any other right of way for vehicular travel by whatever name.

"Transport Gas" means all natural gas transported by the Company or by others, but not sold by the Company, to any consumer or user within the City through the Facilities of the Company in the Right-of-Way.

"Volumetric Rate" means the rate (measured in cents) applicable to each MCF of Transport Gas distributed to customers transporting gas within the City. The rate shall be the sum of the average Settlement Prices based on the twelve-month period beginning on 15th day of July of the second preceding year and ending on the 15th day of June of the preceding year and calculated as illustrated in the Volumetric Rate Calculation Form, attached hereto as Attachment A. For each 15th day of each month During said twelve-month period, the Settlement Prices on the 15th day of each month (or where necessary, for the following business day) for the next twelve months will be summed and divided by twelve to determine an average Settlement Price. The average Settlement Prices for each of the twelve months shall then be summed and divided by twelve and multiplied by 6.1817% to obtain the Volumetric Rate to be effective January 1 of the next succeeding year. The Volumetric Rate shall be calculated by the Company in accordance with the procedures in this paragraph, as illustrated in Attachment A and forwarded annually on or before July 31 to the Wichita, Kansas, City Clerk. Such annual adjustment shall not be considered an amendment to this franchise ordinance. The initial Volumetric Rate shall be $0.1764 per MCF of Transport Gas distributed in the City.

Section 2. Grant of non-exclusive franchise.

(a) There is hereby granted to Company, the non-exclusive right, privilege, and franchise to construct, maintain, extend, and operate its Facilities in and along the Right-of-Way of the City for the purpose of supplying natural gas to the City and the inhabitants and through City and beyond the limits thereof; to obtain natural gas from any source available; and to do all things necessary and proper to carry on the business of a natural gas utility for the full term of this franchise; subject to the terms and conditions herein. Nothing in this grant shall be construed to franchise or authorize the use of the Company's Facilities or the Right-of-Way, by the Company or others, for any purpose other than the provision of natural gas. The Company will not allow a subsidiary, affiliate, or a third party to acquire rights to occupy the Right-of-Way under this franchise; provided, that nothing in this section shall prevent Company from allowing the use of its Facilities by others when such use is compensated to the City under the provisions of this franchise.

(b) Company shall not enter into or continue any arrangement by which natural gas owned by any party other than Company shall be transported, distributed, or sold through any portion of Company's Facilities in the Right-of-Way for delivery to any person within the City unless the City is compensated for such use by the Company, transporter, consumer, or some other party.

(c) By this franchise, the Company is granted the authority to collect on behalf of the City the compensation to be made to the City by other parties using the Company's Facilities for Distribution of Transport Gas. The Company

agrees to collect such sums for the City and to submit such payments in the manner provided in Section 4. Nothing in this Section allowing the transportation of natural gas owned by others shall relieve Company from the responsibility of maintaining a franchise for the placement of its Facilities in the Right-of-Way.

Section 3. Term.

(a) The term of this franchise shall be twenty (20) years from the Effective Date of this franchise ordinance.

(b) Upon written request of either the City or the Company, the franchise may be reviewed after ten (10) years from the effective date of this franchise ordinance upon and/or after the 10th anniversary of the effective date of this Ordinance, either the City or the Company may propose amendments to any provision of this franchise by giving thirty days written notice to the other of the amendment(s) desired. The City and the Company shall negotiate in good faith in an effort to agree upon mutually satisfactory amendment(s).

(c) Upon written request of either the City or the Company, the franchise shall be reopened and renegotiated at any time upon any of the following events:

1. Change in federal, state, or local law, regulation, or order which materially affects any rights or obligations of either the City or Company, including but not limited to the scope of the grant to the Company or the compensation to be received by the City.
2. Change in the structure or operation of the natural gas industry which materially affects any rights or obligations of either the City or Company, including but not limited to the scope of the grant to the Company or the compensation to be received by the City.
3. Any other material and unintended change or shift in the economic benefit the City or the Company relied upon and anticipated upon approval of this franchise ordinance.

(d) Grantor agrees that the franchise fee percentage rate as set forth in Section 4 below, shall in no event exceed the percentage rate hereafter approved to calculate any fee paid to Grantor by any other person or entity for use of the Public Ways, if such fee or volumetric rate paid to Grantor by any other person or entity for use of the Public Ways is based in any way on the amount of revenues or gross receipts from the transportation, distribution, or sale of natural gas or electric energy (excluding any municipally-owned electric utility), by such other person or entity to ultimate consumers within the Town. Further, if at any time after the effective date of this Ordinance the fee or rate required to be paid by another is less than the percentage rate set for herein, the Franchise Fee set forth in Section 4 below, shall be reduced to equal such lesser percentage rate on the date such lesser percentage rate becomes effective and without any further action by the City.

(e) The use of Right-of-Way provision of this franchise shall be reopened and renegotiated if energy consumers within the City have access to alternative natural gas suppliers or other suppliers of energy through pipelines who use the Right-of-Way and do not have requirements on the use of Right-of-Way substantially equivalent to the requirements of this franchise, which results in a material and unfair disadvantage to the Company. Upon any such event, the City shall have up to 180 days after written request of the Company in which to restore competitive neutrality, provided that any adjustment in compensation resulting from renegotiations under this Subsection (d) shall be effective no later than 90 days after such notice.

(f) Failure of the City and Company to successfully renegotiate the materially affected provisions of the franchise under subsection (c), (d) or (e) shall give rise to dispute resolution as follows: At the expiration of 180 days from the date of the written request (or sooner if requested by both the City and the Company) the City and the Company shall each select a representative who shall jointly select a third representative. The three representatives shall hear the positions of the City and Company and shall determine the matters in disagreement by majority vote. Such

decision shall be presented to City and the Company as the renegotiated language under subsection (c), (d) or (e). Rejection of the dispute resolution by either the City or the Company shall give rise to the remedies provided by Section 10, or at the option of the parties, the franchise shall remain in effect according to its then existing terms.

(g) Amendments under this Section, if any, shall be made by ordinance as prescribed by statute. The franchise shall remain in effect according to its terms pending completion of any review or renegotiation provided by subsections (b), (c), (d), or (e).

Section 4. Compensation to the City.

In consideration of and as compensation for the franchise hereby granted to Company by the City, the Company shall make an accounting to the City of all natural gas that has been distributed on a monthly basis. The Company shall pay the City:

(a) ?A sum equal to six percent (6.1817%) of the Gross Receipts received from the Distribution of natural gas; and,

(b) ?A sum equal to the Volumetric Rate multiplied by the number of MCF of Transport Gas.

Payments shall be made to the City under procedures which are mutually agreed to by the Company and the City within 30 days of the last day of the month to which such accounting shall apply.

In the event the accounting rendered to the City by the Company is found to be incorrect, then payment shall be made on the corrected amount, it being agreed that the City may accept any amount offered by the Company, but the acceptance thereof by the City shall not be deemed a settlement of such item if the amount is in dispute or later found to be incorrect. The Company agrees that all of its books, records, emails, and any other documents—regardless of nature—and all of its contracts and agreements as may be reasonably necessary for an effective compliance review of this franchise ordinance shall at all reasonable times be opened to the inspection and examination of the officers of the City and its duly authorized agents, auditor, and employees for the purpose of verifying said accounting, or for any other lawful purpose. Notwithstanding the obligation herein, the Company shall have the right to request the reasonable protection of proprietary information and to require the City or its agents to enter into such agreements pertaining to confidentiality as may reasonably protect the proprietary information of the Company, but which do not unreasonably frustrate the purposes of this subsection.

Following 30 days from the date of notice from the City or alternatively discovery by Company that the compensation provided for by this franchise remains unpaid after the same becomes due and payable to the City, there shall be added to such payment, as a late charge, a sum equivalent to the statutory rate for interest on the unpaid amount. Such late charge shall be applicable to sums that are delinquent as well as any sums due the City as the result of an audit or review of the Company's records.

Nothing in this Section shall limit the amount or time for the City to collect for any incorrect calculations on behalf of the Company.

Section 5. Payments and charges.

The payments and compensation herein provided shall be in lieu of all other licenses and taxes, except that the usual general property taxes and special ad valorem property taxes, sales and excise taxes are not covered by the payment of the compensation referenced herein. Further, from and after the date hereof, the permit fees required of the Company pursuant to Wichita Municipal Excavation Code designated as § 10.20 *et. seq.*, (or any ordinance hereafter adopted) for a permit to excavate in dirt, any unpaved street, alley, or other public place and any other costs associated with the Company's use of the Public way is hereby incorporated into and is a part of the compensation paid to the City (as specified in Section 4 above) and shall not otherwise be separately assessed or collected by the City. Nothing in this provision shall be interpreted as a waiver of either the requirement of notice to the City or of other procedural

requirements contained in the City's excavation ordinance(s). The Company remains subject to the terms, and requirements of the Wichita Municipal Code, unless otherwise specified herein.

Section 6. Use of right-of-way.

The use of the Right-of-Way under this Franchise by the Company shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power relating to use, placement, location, or management of utilities located in the City's Right-of-Way. In addition, the Company shall be subject to all laws, rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power relating to permits, sidewalk and pavement cuts, utility location, construction coordination, screening, and other requirements on the use of the Right-of-Way; provided, however, that nothing contained herein shall constitute a waiver of or be construed as waiving the right of the Company to oppose, challenge, or seek judicial review of, in such manner as is now or may hereafter be provided by law, any such rules, regulation, policy, resolution, or ordinance proposed, adopted or promulgated by the City. Moreover, in the event of a conflict between a City Ordinance or regulation and this agreement, the City and Company agree that the terms of this agreement shall take precedent. Further, the Company shall comply with the following:

(a) The Company's use of the Right-of-Way shall in all matters be subordinate to the City's use of the Right-of-Way for any public purpose. The Company shall coordinate the installation of its Facilities in the Right-of-Way in a manner which minimizes adverse impact on Public Improvements, as reasonably determined by the City. Where installation is not otherwise regulated, the Facilities shall be placed with adequate clearance from such Public Improvements so as not to conflict with such Public Improvement.

(b) All earth, materials, sidewalks, paving, crossings, utilities, Public Improvements, or improvements of any kind located within the Right-of-Way damaged or removed by the Company in its activities under this Franchise shall be fully repaired or replaced promptly by the Company without cost to the City; however, when such activity is a joint project of utilities or franchise holders, the expenses thereof shall be prorated among the participants, and to the reasonable satisfaction of the City in accordance with the ordinances and regulations of the City pertaining thereto.

(c) Except in the event of an emergency, as reasonably determined by the Company, the Company shall comply with all laws, rules, regulations, policies, resolutions, or ordinances now adopted or promulgated by the City relating to any construction, reconstruction, repair, or relocation of Facilities which would require any street closure which reduces traffic flow. Except in the event of an emergency, the Company is required to obtain individual permitting approval from the City Engineer prior to engaging in actual construction of its specific Facilities within the Right-of-Way. City shall provide a response to the permit request within 10 days of the date the request is made. Notwithstanding the foregoing exception, all work (including emergency work) performed in the traveled way or which in any way impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected.

(d) The Company shall cooperate promptly and fully with the City and take all reasonable measures necessary to provide accurate and complete information regarding the location of its Facilities located within the Right-of-Way when requested by the City or its authorized agents for a Public Project. Such location and identification shall be promptly communicated in writing to the City without cost to the City, its employees, agents or authorized contractors. The Company shall designate and maintain an agent,

familiar with the Facilities, who is responsible for providing timely information needed by the City for the design and replacement of Facilities in the Right-of-Way during and for the design of Public Improvements. At the request of the Company, the City may include design for Facilities in the design of Public Projects. Also, at the request of the Company, the City and/or its contractor(s) or agent(s) shall provide accurate and timely field locations of proposed Public Projects in the event the Company is required to install new and/or relocate its Facilities.

(e) The Company shall promptly locate, remove, relocate, or adjust any Facilities located in the Right-of-Way if notified by the City for a Public Project. Such location removal, relocation, or adjustment for a particular Public Project shall be performed by the Company without expense to the City, its employees, agents, or authorized contractors, and shall be specifically subject to rules and regulations of the City pertaining to such. If additional location, removal, relocation, or adjustment is the result of inaccurate or mistaken information of the Company, the Company shall be responsible for costs associated with such without expense to the City. Likewise, if additional location, removal, relocations or adjustment is the result of inaccurate or mistaken information of the City, the City shall reimburse the Company for any additional expense necessarily incurred by the Company directly due to such inaccurate or mistaken information. The Company shall only be responsible for removal, relocation, or adjustment of Facilities located in the Right-of-Way at the Company's sole cost once each five (5) years for that particular facility. The City shall reimburse the Company for the removal, relocation, or adjustment of the Company's Facilities located in the Right-of-Way if required before the expiration of five (5) years from the date of the last relocation, removal, or adjustment of that particular facility.

(f) The Company shall not be responsible for the expenses of relocation to accommodate any new Public Project for Private Development initiated after the effective date of this franchise ordinance. The expenses attributable to such a project shall be the responsibility of the third (3rd) party upon the request and appropriate documentation of the Company. Before such expenses may be billed to the third (3rd) party, the Company shall be required to coordinate with the third (3rd) party and the City on the design and construction to ensure that the work required is necessary and done in a cost-effective manner.

(g) The City shall continue to provide a location in the Right-of-Way for the Company's Facilities as part of a Public Project, assuming the space is available and practical for use, provided that the Company has cooperated promptly and fully with the City in the design of its Facilities as part of the Public Project. If space is not available or practical for use, City shall use good faith efforts to provide a location in an alternate Right-of-Way for the Company's Facilities.

(h) Prior to the Company's installation of Facilities in the Right-of-Way and after it provides the City with its proposed plans for the Facilities, the City may in its reasonable discretion designate certain locations or Facilities in the Right-of-Way to be excluded from use by Company for its Facilities, if in the reasonable judgment of the City Engineer the Facility or location is incompatible with the proposed Facilities or would be rendered unsafe or unstable by the installation. The City Engineer may further exclude certain other Facilities that have been designated or planned for use by the Company due to engineering, technological, proprietary, aesthetics, or legal limitations or restrictions as may be reasonably

determined by the City. The City shall provide a written explanation for any denial for a particular location and shall work with the Company to identify suitable alternatives.

At least ten (10) business days before the beginning of any installation, removal or relocation of its Facilities greater in length than 660 feet the Company shall submit detailed plans of the proposed action to the City Engineer. The City Engineer shall, within ten (10) business days of receipt of such plans, either approve the plans or information the Company of the reasons for disapproval. The Company shall designate a responsible contact person with whom representatives of the City Engineer can communicate on all matters relating to Facilities installation and maintenance.

(i) It shall be the responsibility of the Company to take adequate measures to protect and defend its Facilities in the Right-of-Way from harm or damage. If the Company fails to accurately locate Facilities when requested, it shall have no claim for costs or damages against the City. The Company shall be responsible to the City and its agents, representatives, and authorized contractors for all damages including, but not limited to, delay damages, repair costs, down time, construction delays, penalties or other expenses of any kind arising out of the failure of the Company to perform any of its obligations under this franchise ordinance. The above general provisions notwithstanding, the City and its authorized contractors shall take reasonable precautionary measures including calling for utility locations through Kansas One Call and exercising due caution when working near the Company's Facilities.

(j) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the Facilities in the Right-of-Way shall be in accordance with applicable present and future federal, state, and City laws and regulations, including but not limited to the most recent standards of the Kansas Corporation Commission and U.S. Department of Transportation. It is understood that the standards established in this paragraph are minimum standards and the requirements established or referenced in this Franchise may be additional to or stricter than such minimum standards.

(k) The design, location, and nature of all Facilities to be placed in the Right-of-Way shall be subject to the reasonable review and approval of the City Engineer. Anything placed onto the Facilities is subject to reasonable review and approval of the City Engineer. This is a means to properly manage and control all Right-of-Way usage in the City, and to protect the public aesthetics, health, safety, and welfare. The review and approval is to ensure efficient coordination relating to Right-of-Way use relating to public and private utilities and to evaluate the configuration and size of Facilities that may be located in the Right-of-Way.

(l) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the Facilities in the Right-of-Way shall be in accordance with applicable present and future federal, state, and City law and regulation not in conflict with federal or state law, including but not limited to the most recent standards of the Kansas Corporation Commission and the Kansas Department of Transportation, or such substantive equivalents as may hereafter be adopted or promulgated. The standards established in this paragraph are minimum standards and the requirements established or referenced in this franchise may be in addition to or stricture than such minimum standards.

(m) The City reserves the right to lay, and permit to be laid, storm sewer, gas, water, wastewater and other pipe lines, cables, and conduits, and to do and permit to be

done any underground or overhead work that may be necessary or proper in, across, along, over, or under the Right-of-Way occupied by the Company. The City also reserves the right to change, in any manner, any curb, sidewalk, highway, alley, public way or street. In permitting such work to be done, the City shall meet all applicable codes. The City shall not be liable to the Company for any damage so occasioned, but nothing herein shall relieve any other Person from responsibility for damages to the Facilities of the Company due to negligence.

(n) For Facilities installed in any new subdivision within the City, Company shall follow any applicable City Ordinance regarding installation of above-ground or underground Facilities.

(o) If the Company has any open cut or bore more than 500' long, the Company shall notify the City and where can be accomplished safely, Company shall place up to two or more conduits for the City at a cost agreed upon by the City. The Company shall provide to the City a map showing existing empty or nearly empty conduits. The Company shall allow the City to place fiber-optic cable whenever practicable.

Section 7. Indemnity and hold harmless.

The Company shall hold and save the City, its officers, employees, agents, and authorized contractors, harmless from and against all claims, damages, expense, liability, and costs, including but not limited to, attorney fees, to the extent occasioned in any manner by the Company's occupancy of Right-of-Way, except to the extent that such were caused by the negligence or intentional conduct of the City, its officers, employees, agents, or authorized contractors. In the event a claim shall be made or an action shall be instituted against the City growing out of such occupancy of the Right-of-Way by Facilities of the Company, then upon notice by the City to the Company, the Company will assume responsibility for the defense of such actions at the cost of the Company, subject to the option of the City to appear and defend, at its own cost, any such case; provided, that the Company shall have no duty to defend any such action to the extent that such action has resulted from the negligence or intentional conduct of the City, its officers, employees, agents, or authorized contractors.

Section 8. Copies of tariffs and filings.

The Company shall maintain an up-to-date file of all tariffs, rules, regulations, and policies approved by the Kansas Corporation Commission (KCC) pertaining to the franchise. The Company shall timely provide the City with electronic copies of: all tariffs, notice of filings for tariffs, and copies of the initial filings of Company's tariff application and rate applications filed before the KCC affecting rates and services relating to municipal use or otherwise impacting the City. In addition, the Company will provide the City, upon the City's request, electronic copies of other filings which it makes with the KCC, including, but not limited to, its annual report, advice letters, and pre-filed testimony and exhibits. Receipt of any such matters by the City shall not constitute service of documents otherwise required by law nor shall such receipt constitute any entry of appearance by the City or acknowledgment of jurisdiction over the City in such matters.

Section 9. Right to assign.

The Company shall have the right to assign, sell, lease, or otherwise transfer in any manner whatsoever to any third party not affiliated with Company the rights and privileges granted under this Ordinance as hereinafter provided. Any assignment, sale, lease, or other transfer by the Company of the franchise granted herein to any third party not affiliated with the Company shall be ineffective and void unless:

(1) The assignment, sale, lease or transfer shall be in writing; and

(2) The assignee, buyer, lessee or other transferee shall agree in writing to accept and become responsible for full

performance of all conditions, covenants, obligations, and liabilities contained in this Ordinance; and

(3) Such writing shall be submitted to the City Clerk of the City.

This provision shall not apply to the use of any portion of the Company's distribution system for the transportation, distribution or sale to any customer purchasing, receiving and using natural gas outside the municipal corporate limits of the City.

Section 10. Termination and forfeiture of franchise.

In case of failure on the part of said Company, its successors and assigns, to comply with any of the provisions of this franchise ordinance, or if said Company, its successors and assigns, should do or cause to be done any act or thing prohibited by or in violation of the terms of this franchise ordinance, said Company, its successors and assigns, shall forfeit all rights and privileges granted by this franchise ordinance and all rights hereunder shall cease, terminate and become null and void, provided that said forfeiture shall not take effect until the City shall carry out the following proceedings: (1) Before City proceeds to forfeit said franchise, as in this section prescribed, it shall first serve a written notice upon the manager of said Company, at its principal office in City, and upon the trustee or trustees in any deed of trust securing bonds of said Company of records in Sedgwick County, Kansas, or the office of the Secretary of State of Kansas, by mailing notice to such trustee or trustees to the address designated in such trust deed, setting forth in detail in such notice the neglect or failure complained of, providing said Company shall have ninety (90) days thereafter in which to comply with the conditions of this franchise; (2) If at the end of such ninety-day period the City deems that the conditions of such franchise have not been complied with by the Company and that such franchise is subject to cancellation by reason thereof, the City, in order to terminate such franchise, shall enact an ordinance setting out the grounds upon which said franchise or agreement is to be canceled or terminated. (3) If within thirty (30) days after the effective date of said ordinance the Company shall not have instituted an action, either in the District Court of Sedgwick County, Kansas, or some other court of competent jurisdiction to determine whether or not the Company has violated the terms of this franchise and that the franchise is subject to cancellation by reason thereof, such franchise shall be canceled and terminated at the end of such thirty-day period. However, if within such thirty-day period the Company does institute an action, as above provided, to determine whether or not Company has violated the terms of this franchise and that the franchise is subject to cancellation by reason thereof and prosecutes such action to final judgment with due diligence, then, in that event, in case the court finds that the franchise is subject to cancellation by reason of the violation of its terms, this franchise shall terminate thirty (30) days after such final judgment is rendered. Provided, however, that the failure of said Company to comply with any of the provisions of this franchise ordinance or the doing or causing to be done by said Company of anything prohibited by or in violation of the terms of this franchise ordinance shall not be a ground for the forfeiture thereof when such act or omission on the part of the said Company is due to any cause or delay beyond the control of said Company, its successors and assigns, or bona fide legal proceedings.

Section 11. Rights and duties of Company upon expiration of franchise.

Upon expiration of this franchise, whether by lapse of time, by agreement between Company and City, or by forfeiture thereof, the Company shall have the rights to remove any and all of its mains and pipes, laterals, appurtenances, and equipment used in its said business within a reasonable time after such expiration, but in such event, it shall be the duty of the Company, immediately upon such removal, to restore the streets, avenues, alleys, parks and other Rights of Way and grounds from which said pipes, laterals and other equipment are removed to as good condition as the same were before said removal was effected.

Section 12. Acceptance of terms by Company.

Within thirty (30) days after the final passage and approval of this franchise ordinance, Company shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this franchise ordinance, which acceptance shall be duly acknowledged before some officer authorized by law to administer oaths; and when so accepted the ordinance and acceptance shall constitute a contract between City and Company subject to the provisions of the laws of the state of Kansas.

Section 13. Conditions of franchise.

This contract, franchise, grant and privilege is granted and accepted under and subject to all applicable laws and under and subject to all of the orders, rules, and regulations now or hereafter adopted by governmental bodies now or hereafter having jurisdiction, and each and every provision hereof shall be subject to acts of God, fires, strikes, riots, floods, war and other causes beyond Company's control. This franchise shall not be exclusive.

Section 14. Invalidity of ordinance.

If any clause, sentence, or section of this franchise ordinance shall be held to be invalid, it shall not affect the remaining provisions of this franchise ordinance.

Section 15. Effective date of ordinance.

This franchise ordinance shall take effect and be enforced following its passage, acceptance and publication as required by law.

Section 16. Repeal of conflicting ordinances.

Ordinance No. 47-956, which was heretofore granted to this Company, and all other such ordinances and resolutions or parts thereof inconsistent or in conflict with the terms hereof, shall be canceled, annulled, repealed, and set aside.

PASSED AND APPROVED by the governing body of Wichita, Kansas, this 7th day of January, 2020.

THE CITY OF WICHITA, KANSAS

/s/ Jeff Longwell
Mayor

ATTEST:

/s/ Karen Sublett
City Clerk

Approved as to form:

/s/ Jennifer Magaña
City Attorney and
Director of Law

KANSAS GAS SERVICE
Ordinance No. 50-840

AN ORDINANCE PERTAINING TO KANSAS GAS SERVICE, A DIVISION OF ONE GAS, INC. AND ITS SUCCESSORS AND ASSIGNS, EXTENDING THE TERM OF THE CURRENT NATURAL GAS FRANCHISE DUE TO EXPIRE ON AUGUST 22, 2018, PURSUANT TO ORDINANCE 47-956.

WHEREAS, the parties hereto wish to extend the existing natural gas franchise with Kansas Gas Service, a division of ONE Gas, Inc., through November 1, 2018 in order to provide the parties additional time to process a new franchise.

NOW, THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Extension.

The existing Franchise between the parties, as set forth in Ordinance No. 47-956 shall be extended until November 1, 2018.

SECTION 2. Conditions of Franchise.

That in consideration of the benefits to be derived by the City and its inhabitants, the benefits to be derived by Grantee, and the desire of the parties to have additional time in which to discuss possible modifications to the Franchise between the parties, the existing Franchise is hereby reaffirmed and extended until November 1, 2018 at which time said Franchise shall expire.

SECTION 3. Payment of Costs.

Kansas Gas Service, a Division of ONE Gas, Inc. will pay all costs and fees for the publication of this Ordinance.

This Ordinance shall take effect and be in force from and after its passage and publication in the official City newspaper.

PASSED by the governing body this 4th day of September, 2018.

CITY OF WICHITA, KANSAS

/s/ Jeff Longwell
Mayor

(Seal)

ATTEST:

/s/ Karen Sublett
City Clerk

Approved as to Form:

/s/ Jennifer Magaña
City Attorney and Director of Law

BLACK HILLS/KANSAS GAS UTILITY COMPANY, LLC
Ordinance No. 51-189*

AN ORDINANCE GRANTING TO BLACK HILLS ENERGY/KANSAS GAS UTILITY COMPANY, LLC, A KANSAS CORPORATION, ITS SUCCESSORS AND ASSIGNS, A NATURAL GAS FRANCHISE AND THE RIGHT TO CONSTRUCT, OPERATE, MAINTAIN, AND EXTEND A NATURAL GAS PLANT AND DISTRIBUTING SYSTEM IN THE CITY OF WICHITA, KANSAS; PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO; AND REPEALING ORDINANCE 47-955.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS;

Section 1. Definitions.

For purposes of this franchise ordinance, the following words and phrases shall have the meanings given herein:

"City" means the City of Wichita, Kansas.

"Company" means Black Hills/Kansas Gas Utility Company, LLC.

"Distributed" or "Distribution" means all sales, distribution, or transportation of natural gas to any consumer or user within the City by the Company or by others through the Facilities of the Company in the Right-of-Way.

"Facilities" means natural gas mains, pipes, boxes, reducing and regulating stations, laterals, conduits and service extension, together with all necessary appurtenances thereto.

"Franchise" means the grant of authority by the City to transport, distribute or sell natural gas to the inhabitants of the City and to operate and maintain the Company's distribution system and facilities within Right-of-Way as defined herein.

"Franchise Fee" means the charges to consumers and compensation to the City as prescribed in Section 4 of this Franchise Ordinance.

"Gross receipts" means any and all compensation and other consideration received derived directly or indirectly by Company from any Distribution of natural gas to a consumer for any use, including, but not limited to, residential, commercial, industrial and transportation purposes, and including without limitation interruptible sales and single sales; and shall include revenues from any operation or use of any or all of the Facilities in the Right-of-Way by the Company or others including charges as provided in tariffs filed and approved by the Kansas Corporation Commission; but such term shall not include revenue received by Company from consumers as franchise fee reimbursement, funds from customer project contributions, certain miscellaneous charges and accounts as set forth in the Terms and Conditions of Gas Service on file and approved by the Kansas Corporation Commission, including but not limited to, connection and disconnection fees, reconnection fees, returned check charges, and delayed or late payment charges as such terms are used in tariffs filed and approved. Additionally, Gross Receipts shall not include credit extended, nor Volumetric Rate Fees collected by Company and remitted to City in accordance with Section 4 of this Ordinance.

"MCF" means a measurement of natural gas equal to one thousand cubic feet. One MCF equals 1,000,000 British Thermal Units (BTUs).

"Public Improvements" means any existing or contemplated public facilities, buildings, or capital improvement project, including without limitation streets, alleys, sidewalks, sewer, water, drainage, Right-of-Way improvement, and Public Projects.

"Public Project" means any project planned or undertaken by the City or any governmental entity for construction, reconstruction,

*__Editor's note—__Ord. No. 51-189, §§ 1—16, adopted on Feb. 21, 2020 repealed and replaced Ord. No. 47-955 in its entirety. The former ordinance pertained to similar subject matter. See also the Code Comparative Table.

maintenance, or repair of public facilities or improvements, or any other purpose of a public nature paid for with public funds.

"Right-of-Way" means present and future streets, alleys, rights-of-way, and public easements, including easements dedicated in plats of the City for streets, and alleys.

"Settlement Prices" means the settlement prices for natural gas futures contracts traded on the New York Mercantile Exchange (NYMEX) on the 15th day of each month or the first trading day thereafter.

"Street Right-of-Way" means the entire width between property lines of land, property or an interest therein of every way publicly maintained where any part thereof is open to the use of the public for purposes of vehicular traffic, including street, avenue, boulevard, highway, expressway, alley or any other right of way for vehicular travel by whatever name.

"Transport Gas" means all natural gas transported by the Company or by others, but not sold by the Company, to any consumer or user within the City through the Facilities of the Company in the Right-of-Way.

"Volumetric Rate" means the rate (measured in cents) applicable to each MCF of Transport Gas distributed to customers transporting gas within the City. The rate shall be the sum of the average Settlement Prices based on the twelve-month period beginning on 15th day of July of the second preceding year and ending on the 15th day of June of the preceding year and calculated as illustrated in the Volumetric Rate Calculation Form, attached hereto as Attachment A. For each 15th day of each month During said twelve-month period, the Settlement Prices on the 15th day of each month (or where necessary, for the following business day) for the next twelve months will be summed and divided by twelve to determine an average Settlement Price. The average Settlement Prices for each of the twelve months shall then be summed and divided by twelve and multiplied by 6.1817% to obtain the Volumetric Rate to be effective January 1 of the next succeeding year. The Volumetric Rate shall be calculated by the Company in accordance with the procedures in this paragraph, as illustrated in Attachment A and forwarded annually on or before July 31 to the Wichita, Kansas, City Clerk. Such annual adjustment shall not be considered an amendment to this franchise ordinance. The initial Volumetric Rate shall be $0.1474 per MCF of Transport Gas distributed in the City.

Section 2. Grant of non-exclusive franchise.

(a) There is hereby granted to Company, the non-exclusive right, privilege, and franchise to construct, maintain, extend, and operate its Facilities in and along the Right-of-Way of the City for the purpose of supplying natural gas to the City and the inhabitants and through City and beyond the limits thereof; to obtain natural gas from any source available; and to do all things necessary and proper to carry on the business of a natural gas utility for the full term of this franchise; subject to the terms and conditions herein. Nothing in this grant shall be construed to franchise or authorize the use of the Company's Facilities or the Right-of-Way, by the Company or others, for any purpose other than the provision of natural gas. The Company will not allow a subsidiary, affiliate, or a third party to acquire rights to occupy the Right-of-Way under this franchise; provided, that nothing in this section shall prevent Company from allowing the use of its Facilities by others when such use is compensated to the City under the provisions of this franchise.

(b) Company shall not enter into or continue any arrangement by which natural gas owned by any party other than Company shall be transported, distributed, or sold through any portion of Company's Facilities in the Right-of-Way for delivery to any person within the City unless the City is compensated for such use by the Company, transporter, consumer, or some other party.

(c) By this franchise, the Company is granted the authority to collect on behalf of the City the compensation to be made to the City by other parties using the Company's Facilities for Distribution of Transport Gas. The Company

agrees to collect such sums for the City and to submit such payments in the manner provided in Section 4. Nothing in this Section allowing the transportation of natural gas owned by others shall relieve Company from the responsibility of maintaining a franchise for the placement of its Facilities in the Right-of-Way.

Section 3. Term.

(a) The term of this franchise shall be twenty (20) years from the Effective Date of this franchise ordinance.

(b) Upon written request of either the City or the Company, the franchise may be reviewed after ten (10) years from the effective date of this franchise ordinance. Upon and/or after the 10th anniversary of the effective date of this Ordinance, either the City or the Company may propose amendments to any provision of this franchise by giving thirty days written notice to the other of the amendment(s) desired. The City and the Company shall negotiate in good faith in an effort to agree upon mutually satisfactory amendment(s).

(c) Upon written request of either the City or the Company, the franchise shall be reopened and renegotiated at any time upon any of the following events:

1. Change in federal, state, or local law, regulation, or order which materially affects any rights or obligations of either the City or Company, including but not limited to the scope of the grant to the Company or the compensation to be received by the City.
2. Change in the structure or operation of the natural gas industry which materially affects any rights or obligations of either the City or Company, including but not limited to the scope of the grant to the Company or the compensation to be received by the City.
3. Any other material and unintended change or shift in the economic benefit the City or the Company relied upon and anticipated upon approval of this franchise ordinance.

(d) City agrees that the franchise fee percentage rate as set forth in Section 4 below, shall in no event exceed the percentage rate hereafter approved to calculate any fee paid to City by any other person or entity for use of the Public Ways, if such fee or volumetric rate paid to City by any other person or entity for use of the Public Ways is based in any way on the amount of revenues or gross receipts from the transportation, distribution, or sale of natural gas or electric energy (excluding any municipally-owned electric utility), by such other person or entity to ultimate consumers within the City. Further, if at any time after the effective date of this Ordinance the fee or rate required to be paid by another is less than the percentage rate set for herein, the Franchise Fee set forth in Section 4 below, shall be reduced to equal such lesser percentage rate on the date such lesser percentage rate becomes effective and without any further action by the City.

(e) The use of Right-of-Way provision of this franchise shall be reopened and renegotiated if energy consumers within the City have access to alternative natural gas suppliers or other suppliers of energy through pipelines who use the Right-of-Way and do not have requirements on the use of Right-of-Way substantially equivalent to the requirements of this franchise, which results in a material and unfair disadvantage to the Company. Upon any such event, the City shall have up to 180 days after written request of the Company in which to restore competitive neutrality, provided that any adjustment in compensation resulting from renegotiations under this Subsection (e) shall be effective no later than 90 days after such notice.

(f) Failure of the City and Company to successfully renegotiate the materially affected provisions of the franchise under subsection (c), (d) or (e) shall give rise to dispute resolution as follows: At the expiration of 180 days from the date of the written request (or sooner if requested by both the City and the Company) the City and the Company shall each select a representative who shall jointly select a third representative. The three representatives shall hear the positions of the City and Company and shall determine the matters in disagreement by majority vote. Such

decision shall be presented to City and the Company as the renegotiated language under subsection (c), (d) or (e). Rejection of the dispute resolution by either the City or the Company shall give rise to the remedies provided by Section 10, or at the option of the parties, the franchise shall remain in effect according to its then existing terms.

(g) Amendments under this Section, if any, shall be made by ordinance as prescribed by statute. The franchise shall remain in effect according to its terms pending completion of any review or renegotiation provided by subsections (b), (c), (d), or (e).

Section 4. Compensation to the City.

In consideration of and as compensation for the Franchise hereby granted to Company by the City, the Company shall make an accounting to the City of all natural gas that has been distributed on a monthly basis. The Company shall pay the City:

(a) ?A sum equal to six percent (6.1817%) of the Gross Receipts received from the Distribution of natural gas; and,

(b) ?A sum equal to the Volumetric Rate multiplied by the number of MCF of Transport Gas.

Payments shall be made to the City under procedures which are mutually agreed to by the Company and the City within 30 days of the last day of the month to which such accounting shall apply.

In the event the accounting rendered to the City by the Company is found to be incorrect, then payment shall be made on the corrected amount, it being agreed that the City may accept any amount offered by the Company, but the acceptance thereof by the City shall not be deemed a settlement of such item if the amount is in dispute or later found to be incorrect. The Company agrees that all of its books, records, emails, and any other documents—regardless of nature—and all of its contracts and agreements as may be reasonably necessary for an effective compliance review of this franchise ordinance shall at all reasonable times be opened to the inspection and examination of the officers of the City and its duly authorized agents, auditor, and employees for the purpose of verifying said accounting, or for any other lawful purpose. Notwithstanding the obligation herein, the Company shall have the right to request the reasonable protection of proprietary information and to require the City or its agents to enter into such agreements pertaining to confidentiality as may reasonably protect the proprietary information of the Company, but which do not unreasonably frustrate the purposes of this subsection.

Following 30 days from the date of notice from the City or alternatively discovery by Company that the compensation provided for by this Franchise remains unpaid after the same becomes due and payable to the City, there shall be added to such payment, as a late charge, a sum equivalent to the statutory rate for interest on the unpaid amount. Such late charge shall be applicable to sums that are delinquent as well as any sums due the City as the result of an audit or review of the Company's records.

Nothing in this Section shall limit the amount or time for the City to collect for any incorrect calculations on behalf of the Company.

Section 5. Payments and charges.

The payments and compensation herein provided shall be in lieu of all other licenses and taxes, except that the usual general property taxes and special ad valorem property taxes, sales and excise taxes are not covered by the payment of the compensation referenced herein. Further, from and after the date hereof, the permit fees required of the Company pursuant to Wichita Municipal Excavation Code designated as § 10.20 *et. seq.*, (or any ordinance hereafter adopted) for a permit to excavate in dirt, any unpaved street, alley, or other public place and any other costs associated with the Company's use of the Public way is hereby incorporated into and is a part of the compensation paid to the City (as specified in Section 4 above) and shall not otherwise be separately assessed or collected by the City. Nothing in this provision shall be interpreted as a waiver of either the requirement of notice to the City or of other procedural

requirements contained in the City's excavation ordinance(s). The Company remains subject to the terms, and requirements of the Wichita Municipal Code, unless otherwise specified herein.

Section 6. Use of right-of-way.

The use of the Right-of-Way under this Franchise by the Company shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power relating to use, placement, location, or management of utilities located in the City's Right-of-Way. In addition, the Company shall be subject to all laws, rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power relating to permits, sidewalk and pavement cuts, utility location, construction coordination, screening, and other requirements on the use of the Right-of-Way; provided, however, that nothing contained herein shall constitute a waiver of or be construed as waiving the right of the Company to oppose, challenge, or seek judicial review of, in such manner as is now or may hereafter be provided by law, any such rules, regulation, policy, resolution, or ordinance proposed, adopted or promulgated by the City. Moreover, in the event of a conflict between a City ordinance or regulation and this agreement, the City and Company agree that the terms of this agreement shall take precedent. Further, the Company shall comply with the following:

(a) The Company's use of the Right-of-Way shall in all matters be subordinate to the City's use of the Right-of-Way for any public purpose. The Company shall coordinate the installation of its Facilities in the Right-of-Way in a manner which minimizes adverse impact on Public Improvements, as reasonably determined by the City. Where installation is not otherwise regulated, the Facilities shall be placed with adequate clearance from such Public Improvements so as not to conflict with such Public Improvement.

(b) All earth, materials, sidewalks, paving, crossings, utilities, Public Improvements, or improvements of any kind located within the Right-of-Way damaged or removed by the Company in its activities under this Franchise shall be fully repaired or replaced promptly by the Company without cost to the City; however, when such activity is a joint project of utilities or franchise holders, the expenses thereof shall be prorated among the participants, and to the reasonable satisfaction of the City in accordance with the ordinances and regulations of the City pertaining thereto.

(c) Except in the event of an emergency, as reasonably determined by the Company, the Company shall comply with all laws, rules, regulations, policies, resolutions, or ordinances now adopted or promulgated by the City relating to any construction, reconstruction, repair, or relocation of Facilities which would require any street closure which reduces traffic flow. Except in the event of an emergency, the Company is required to notify the City Engineer of actual construction of its specific Facilities within the Right-of-Way. Company may submit permit requests for all construction to be engaged in during a particular week. City shall provide a response to the permit request within 10 days of the date the request is made. Notwithstanding the foregoing exception, all work (including emergency work) performed in the traveled way or which in any way impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected.

(d) The Company shall cooperate promptly and fully with the City and take all reasonable measures necessary to provide accurate and complete information regarding the location of its Facilities located within the Right-of-Way when requested by the City or its authorized agents for a Public Project. Such location and identification shall be promptly communicated in writing to the City without cost to the City, its employees, agents or authorized contractors. The Company

shall designate and maintain an agent, familiar with the Facilities, who is responsible for providing timely information needed by the City for the design and replacement of Facilities in the Right-of-Way during and for the design of Public Improvements. At the request of the Company, the City may include design for Facilities in the design of Public Projects. Also, at the request of the Company, the City and/or its contractor(s) or agent(s) shall provide accurate and timely field locations of proposed Public Projects in the event the Company is required to install new and/or relocate its Facilities.

(e) The Company shall promptly locate, remove, relocate, or adjust any Facilities located in the Right-of-Way if notified by the City for a Public Project. Such location removal, relocation, or adjustment for a particular Public Project shall be performed by the Company without expense to the City, its employees, agents, or authorized contractors, and shall be specifically subject to rules and regulations of the City pertaining to such. If additional location, removal, relocation, or adjustment is the result of inaccurate or mistaken information of the Company, the Company shall be responsible for costs associated with such without expense to the City. Likewise, if additional location, removal, relocations or adjustment is the result of inaccurate or mistaken information of the City, the City shall reimburse the Company for any additional expense necessarily incurred by the Company directly due to such inaccurate or mistaken information. The Company shall only be responsible for removal, relocation, or adjustment of Facilities located in the Right-of-Way at the Company's sole cost once each five (5) years for that particular facility. The City shall reimburse the Company for the removal, relocation, or adjustment of the Company's Facilities located in the Right-of-Way if required before the expiration of five (5) years from the date of the last relocation, removal, or adjustment of that particular facility.

(f) The Company shall not be responsible for the expenses of relocation to accommodate any new Public Project for private development initiated after the effective date of this franchise ordinance. The expenses attributable to such a project shall be the responsibility of the third (3rd) party upon the request and appropriate documentation of the Company. Before such expenses may be billed to the third (3rd) party, the Company shall be required to coordinate with the third (3rd) party and the City on the design and construction to ensure that the work required is necessary and done in a cost-effective manner.

(g) The City shall continue to provide a location in the Right-of-Way for the Company's Facilities as part of a Public Project, assuming the space is available and practical for use, provided that the Company has cooperated promptly and fully with the City in the design of its Facilities as part of the Public Project. If space is not available or practical for use, City shall use good faith efforts to provide a location in an alternate Right-of-Way for the Company's Facilities.

(h) Prior to the Company's installation of Facilities in the Right-of-Way and after it provides the City with its proposed plans for the Facilities, the City may in its reasonable discretion designate certain locations or Facilities in the Right-of-Way to be excluded from use by Company for its Facilities, if in the reasonable judgment of the City Engineer the Facility or location is incompatible with the proposed Facilities or would be rendered unsafe or unstable by the installation. The City Engineer may further exclude certain other Facilities that have been designated or planned for use by the Company due to engineering, technological, proprietary, aesthetics, or legal limitations or restrictions as may be reasonably

determined by the City. The City shall provide a written explanation for any denial for a particular location and shall work with the Company to identify suitable alternatives.

At least ten (10) business days before the beginning of any installation, removal or relocation of its Facilities resulting in partial or complete closure of streets, the Company shall submit detailed plans of the proposed action to the City Engineer. The City Engineer shall, within ten (10) business days of receipt of such plans, either approve the plans or information the Company of the reasons for disapproval. The Company shall designate a responsible contact person with whom representatives of the City Engineer can communicate on all matters relating to Facilities installation and maintenance.

(i) It shall be the responsibility of the Company to take adequate measures to protect and defend its Facilities in the Right-of-Way from harm or damage. If the Company fails to accurately locate Facilities when requested, it shall have no claim for costs or damages against the City. The Company shall be responsible to the City and its agents, representatives, and authorized contractors for all damages including, but not limited to, delay damages, repair costs, down time, construction delays, penalties or other expenses of any kind arising out of the failure of the Company to perform any of its obligations under this franchise ordinance. The above general provisions notwithstanding, the City and its authorized contractors shall take reasonable precautionary measures including calling for utility locations through Kansas One Call and exercising due caution when working near the Company's Facilities.

(j) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the Facilities in the Right-of-Way shall be in accordance with applicable present and future federal, state, and City laws and regulations, including but not limited to the most recent standards of the Kansas Corporation Commission and U.S. Department of Transportation. It is understood that the standards established in this paragraph are minimum standards and the requirements established or referenced in this Franchise may be additional to or stricter than such minimum standards.

(k) The design, location, and nature of all Facilities to be placed in the Right-of-Way shall be subject to the reasonable review and approval of the City Engineer. Anything placed onto the Facilities is subject to reasonable review and approval of the City Engineer. This is a means to properly manage and control all Right-of-Way usage in the City, and to protect the public aesthetics, health, safety, and welfare. The review and approval is to ensure efficient coordination relating to Right-of-Way use relating to public and private utilities and to evaluate the configuration and size of Facilities that may be located in the Right-of-Way.

(l) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the Facilities in the Right-of-Way shall be in accordance with applicable present and future federal, state, and City law and regulation not in conflict with federal or state law, including but not limited to the most recent standards of the Kansas Corporation Commission and the Kansas Department of Transportation, or such substantive equivalents as may hereafter be adopted or promulgated. The standards established in this paragraph are minimum standards and the requirements established or referenced in this Franchise may be in addition to or stricture than such minimum standards.

(m) The City reserves the right to lay, and permit to be laid, storm sewer, gas, water, wastewater and other pipe lines, cables, and conduits, and to do and permit to be

done any underground or overhead work that may be necessary or proper in, across, along, over, or under the Right-of-Way occupied by the Company. The City also reserves the right to change, in any manner, any curb, sidewalk, highway, alley, public way or street. In permitting such work to be done, the City shall meet all applicable codes. The City shall not be liable to the Company for any damage so occasioned, but nothing herein shall relieve any other person from responsibility for damages to the Facilities of the Company due to negligence.

(n) For Facilities installed in any new subdivision within the City, Company shall follow any applicable City ordinance regarding installation of above-ground or underground Facilities.

(o) If the Company has any open cut or bore more than 500' long, the Company shall notify the City. The Company shall place up to two or more conduits for the City at a cost agreed upon and paid for by the City where such placement can be accomplished safely. The Company shall provide to the City a map showing existing empty or nearly empty conduits. The Company shall allow the City to place fiber-optic cable whenever practicable.

Section 7. Indemnity and hold harmless.

The Company shall hold and save the City, its officers, employees, agents, and authorized contractors, harmless from and against all claims, damages, expense, liability, and costs, including but not limited to, attorney fees, to the extent occasioned in any manner by the Company's occupancy of Right-of-Way, except to the extent that such were caused by the negligence or intentional conduct of the City, its officers, employees, agents, or authorized contractors. In the event a claim shall be made or an action shall be instituted against the City growing out of such occupancy of the Right-of-Way by Facilities of the Company, then upon notice by the City to the Company, the Company will assume responsibility for the defense of such actions at the cost of the Company, subject to the option of the City to appear and defend, at its own cost, any such case; provided, that the Company shall have no duty to defend any such action to the extent that such action has resulted from the negligence or intentional conduct of the City, its officers, employees, agents, or authorized contractors.

Section 8. Copies of tariffs and filings.

The Company shall timely provide the City with electronic copies of: all tariffs, notice of filings for tariffs, and copies of the initial filings of Company's tariff application and rate applications filed before the KCC affecting rates and services relating to municipal use or otherwise impacting the City. In addition, the Company will provide the City, upon the City's request, electronic copies of other filings which it makes with the KCC, including, but not limited to, its annual report, advice letters, and pre-filed testimony and exhibits. Receipt of any such matters by the City shall not constitute service of documents otherwise required by law nor shall such receipt constitute any entry of appearance by the City or acknowledgment of jurisdiction over the City in such matters.

Section 9. Right to assign.

The Company shall have the right to assign, sell, lease, or otherwise transfer in any manner whatsoever to any third party not affiliated with Company the rights and privileges granted under this franchise ordinance as hereinafter provided. Any assignment, sale, lease, or other transfer by the Company of the Franchise granted herein to any third party not affiliated with the Company shall be ineffective and void unless:

(1) The assignment, sale, lease or transfer shall be in writing; and

(2) The assignee, buyer, lessee or other transferee shall agree in writing to accept and become responsible for full performance of all conditions, covenants, obligations, and liabilities contained in this franchise ordinance; and

(3) Such writing shall be submitted to the City Clerk of the City.

This provision shall not apply to the use of any portion of the Company's distribution system for the transportation, distribution or sale to any customer purchasing, receiving and using natural gas outside the municipal corporate limits of the City.

Section 10. Termination and forfeiture of franchise.

In case of failure on the part of Company, its successors and assigns, to comply with any of the provisions of this franchise ordinance, or if Company, its successors and assigns, should do or cause to be done any act or thing prohibited by or in violation of the terms of this franchise ordinance, Company, its successors and assigns, shall forfeit all rights and privileges granted by this franchise ordinance and all rights hereunder shall cease, terminate and become null and void, provided that said forfeiture shall not take effect until the City shall carry out the following proceedings: (1) Before City proceeds to forfeit said franchise, as in this section prescribed, it shall first serve a written notice upon the manager of Company, at its principal office in City, and upon the trustee or trustees in any deed of trust securing bonds of Company of records in Sedgwick County, Kansas, or the office of the Secretary of State of Kansas, by mailing notice to such trustee or trustees to the address designated in such trust deed, setting forth in detail in such notice the neglect or failure complained of, providing Company ninety (90) days thereafter in which to comply with the conditions of the Franchise; (2) If at the end of such ninety-day period the City deems that the conditions of the Franchise have not been complied with by the Company and that such Franchise is subject to cancellation by reason thereof, the City, in order to terminate such Franchise, shall enact an ordinance setting out the grounds upon which said Franchise is to be canceled or terminated. (3) If within thirty (30) days after the effective date of this franchise ordinance the Company shall not have instituted an action, either in the District Court of Sedgwick County, Kansas, or some other court of competent jurisdiction to determine whether or not the Company has violated the terms of the Franchise and that the Franchise is subject to cancellation by reason thereof, the Franchise shall be canceled and terminated at the end of such thirty-day period. However, if within such thirty-day period the Company does institute an action, as above provided, to determine whether or not Company has violated the terms of this Franchise and that the Franchise is subject to cancellation by reason thereof and prosecutes such action to final judgment with due diligence, then, in that event, in case the court finds that the Franchise is subject to cancellation by reason of the violation of its terms, this Franchise shall terminate thirty (30) days after such final judgment is rendered. Provided, however, that the failure of Company to comply with any of the provisions of this franchise ordinance or the doing or causing to be done by said Company of anything prohibited by or in violation of the terms of this franchise ordinance shall not be a ground for the forfeiture thereof when such act or omission on the part of the said Company is due to any cause or delay beyond the control of said Company, its successors and assigns, or bona fide legal proceedings.

Section 11. Rights and duties of Company upon expiration of Franchise.

Upon expiration of the Franchise, whether by lapse of time, by agreement between Company and City, or by forfeiture thereof, the Company shall have the rights to remove any and all of its mains and pipes, laterals, appurtenances, and equipment used in its said business within a reasonable time after such expiration, but in such event, it shall be the duty of the Company, immediately upon such removal, to restore the streets, avenues, alleys, parks and other Rights of Way and grounds from which said pipes, laterals and other equipment are removed to as good condition as the same were before said removal was effected.

Section 12. Acceptance of terms by Company.

Within thirty (30) days after the final passage and approval of this franchise ordinance, Company shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this franchise

ordinance, which acceptance shall be duly acknowledged before some officer authorized by law to administer oaths; and when so accepted the ordinance and acceptance shall constitute a contract between City and Company subject to the provisions of the laws of the state of Kansas.

Section 13. Conditions of Franchise.

This contract, franchise, grant and privilege is granted and accepted under and subject to all applicable laws and under and subject to all of the orders, rules, and regulations now or hereafter adopted by governmental bodies now or hereafter having jurisdiction, and each and every provision hereof shall be subject to acts of God, fires, strikes, riots, floods, war and other causes beyond Company's control. This Franchise shall not be exclusive.

Section 14. Invalidity of ordinance.

If any clause, sentence, or section of this franchise ordinance shall be held to be invalid, it shall not affect the remaining provisions of this franchise ordinance.

Section 15. Effective date of ordinance.

This franchise ordinance shall take effect and be enforced on the 1st day of January, 2020 following its passage, acceptance and publication as required by law.

Section 16. Repeal of conflicting ordinances.

Ordinance No. 47-955, which was heretofore granted to this Company, and all other such ordinances and resolutions or parts thereof inconsistent or in conflict with the terms hereof, shall be canceled, annulled, repealed, and set aside.

PASSED AND APPROVED by the governing body of Wichita, Kansas, this 21st day of February, 2020.

THE CITY OF WICHITA, KANSAS

/s/ Brandon J. Whipple
Mayor

ATTEST:

/s/ Karen Sublett
City Clerk

Approved as to form:

/s/ Jennifer Magaña
City Attorney and
Director of Law

ARTICLE IV. TELECOMMUNICATIONS (LOCAL EXCHANGE SERVICE)

ADELPHIA BUSINESS SOLUTIONS
Ordinance No. 45-163

AN ORDINANCE GRANTING TO ADELPHIA BUSINESS SOLUTIONS, ITS SUCCESSORS AND ASSIGNS, A FRANCHISE AND THE RIGHT TO CONSTRUCT, OPERATE, MAINTAIN AND EXTEND A TELECOMMUNICATION SYSTEM IN THE CITY OF WICHITA, KANSAS, PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO.

WHEREAS, the City of Wichita has adopted an ordinance authorizing the grant of franchises to telecommunications and open video system providers to construct, operate, and maintain communications systems using the right-of-way in the City of Wichita, Kansas, and prescribing the terms and conditions of said grants (Ordinance No. 44-845); and

WHEREAS, by L. 2001, Ch. 135, Sec. 3, the Kansas Legislature has attempted to establish a moratorium on franchise and right-of-way ordinances which substantially modify the relationship between certain telecommunications providers and municipalities but allows new franchises consistent with the terms of ordinances in existence with other telecommunications providers prior to December 31, 2001; and

WHEREAS Adelphia Business Solutions desires the grant of a franchise consistent ordinance no. 44-845 and under the terms of the legislative moratorium;

NOW THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

Section 1. Definitions. For purposes of this ordinance, the following words and phrases shall have the meanings given herein:

"Access lines"-shall mean the following billed main lines and trunks, whether provided on a retail or wholesale basis: residential lines; business lines; ISDN lines (channels); PBX trunks; Centrex or Centrex-like stations; simulated exchange access lines provided by a central office based switching arrangement where all stations served by such simulated exchange access lines are used by a single customer of the provider of such arrangement; where stations are served by simulated exchange access lines provided by a central office based switching arrangement and the stations served are not used by a single customer of the provider of such arrangement, each station shall constitute an access line; and pay phone lines. "Access line" shall include wireless telecommunications services subject to 47 C.F.R. Part 24. "Access line" shall not include the following: wireless telecommunications services subject to 47 C.F.R. Part 22; unbundled loop facilities; and special access services.

"City"-The City of Wichita, Kansas.

"Facilities"-Telephone and telecommunication lines, conduits, wires, cables, pipes, poles, towers, vaults, and appliances, either under or above ground.

"Public improvement"-Any existing or contemplated public facility, building, or capital improvement project, including without limitation streets, alleys, sidewalks, sewer, water, drainage, right-of-way improvement, and public projects.

"Public project"-Any project planned or undertaken by the City or any governmental entity for construction, reconstruction, maintenance, or repair of public facilities or improvements, or any other purpose of a public nature.

"Right-of-way"-Present and future streets, alleys, rights-of-way, and public easements, including easements dedicated in plats of the City of Wichita, Kansas.

"Street right-of-way"-The entire width between property lines of land, property or an interest therein of every way publicly maintained where any part thereof is open to the use of the public for purposes of vehicular traffic, including street, avenue, boulevard, highway, expressway, alley or any other public way for vehicular travel by whatever name.

"Telephone Company"-Adelphia Business Solutions, its successors and assigns.

"Telecommunications"-The transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received.

"Telecommunications service"-The offering of telecommunications for a fee directly to the public, or to such classes of users as to be effectively available directly to the public, regardless of the facilities used.

Section 2. Grant.

(a) There is hereby granted to Telephone Company the right, privilege and franchise to construct, maintain, extend, and operate its facilities, in, through and along the right-of-way for the purpose of supplying telecommunication service to the City and the inhabitants thereof for the full term of this franchise subject to the terms and conditions herein set forth. Nothing in this franchise is intended to preclude the City from seeking, or authorize the City to seek, a franchise from any subsidiary, affiliate, or third party providing telecommunications services.

(b) This franchise does not provide the Telephone Company the right to provide "Cable Service" to City and inhabitants thereof. For purposes of this ordinance, "Cable Service" is defined as the one-way transmission to subscribers of video programming or other programming services, and subscriber interaction, if any, which is required for the selection of such video programming or other programming service; but "Cable Service" does not include point to point, point to multi-point, and switched video services that Telephone Company has historically offered or other similar services that Telephone Company may in the future offer. Nothing in this franchise is intended to preclude the City from seeking, or authorize the City to seek, a franchise from any subsidiary, affiliate, or third party providing "Cable Services." Telephone Company and City agree that nothing in this franchise is intended to authorize the City to seek from Telephone Company nor to require Telephone Company to obtain a franchise to offer "Open Video Systems" as that term is used in section 653 of the Telecommunications Act of 1996 (codified at 47 U.S.C. 573). Telephone Company and City further agree, however, that this ordinance does not authorize Telephone Company to offer "Open Video Systems" without paying the fee on the gross revenues of the system operator for the provision of cable service in lieu of a franchise fee, pursuant to and in the manner described in 47 U.S.C. 573(c)(2)(b) and without complying with FCC regulations promulgated pursuant to 47 U.S.C. 573.

(c) Upon written request from Telephone Company, the City agrees to begin negotiations in good faith with Telephone Company within thirty (30) days to provide Telephone Company a franchise to provide "Cable Service" to the City and inhabitants thereof on terms no more burdensome than the franchise(s) granted to other providers of "Cable Service" with the City.

(d) The grant of this franchise shall be subject to the provisions of Ordinance No. 44-845, to the extent allowed by law and to the extent not inconsistent with the other provisions of this franchise. Nothing in this subsection shall be deemed to preclude Telephone Company from objecting to the provisions of said ordinance or pursuing other rights and remedies that might exist by law.

Section 3. Use of Right-of-Way. In the use of right-of-way under this franchise, the Telephone Company shall be subject to all rules, regulations, policies, resolutions and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power. In addition, the Telephone Company shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City relating to pennits and fees, sidewalk and pavement cuts, utility location, construction coordination, beautification, and other requirements on the use of the right-of-way and shall comply with the following:

(a) The Telephone Company's use of right-of-way shall in all matters be subordinate to the City's use of the right-of-way for any public purpose. The Telephone Company shall coordinate the placement of its facilities in a manner that minimizes adverse impact on public improvements, as reasonably determined by the City. Where

placement is not otherwise regulated, the facilities shall be placed with adequate clearance from such public improvements so as not to impact or be impacted by such public improvement.

(b) All earth, materials, sidewalks, paving, crossings, utilities, public improvements, or improvements of any kind injured or removed by the Telephone Company in its activities under this franchise shall be fully repaired or replaced promptly by the Telephone Company at its sole expense and to the reasonable satisfaction of the City or owner thereof.

(c) All facilities constructed, replaced, or relocated in the right-of-way after the date hereof shall be placed underground unless otherwise agreed to by the City. Where there are obstructions in the right-of-way such as trees, shrubs, other utilities, commercial signs, man-made structures, or other like obstructions which make the cost of such underground burial unreasonable, the Telephone Company may request waiver of this requirement, in which event the City will not unreasonably withhold consent. Any vaults, boxes, pedestals, and similar facilities placed above ground in street right-of-way shall be located behind the sidewalk where feasible. Underground facilities shall be placed in appropriate size and type of rigid conduit under paving and under proposed paving as set forth in the Year 2000 Transportation Plan as on file with the Metropolitan Area Planning Commission except where otherwise agreed by the City and the Telephone Company. Where reasonable and appropriate and where adequate public right-of-way exists, the Telephone Company will place above-ground facilities underground in conjunction with City capital improvement projects and/or at specific locations requested by the City provided that such placement is practical, efficient, and economically feasible. By way of illustration and not limitation, Telephone Company may establish that such placement is not economically feasible by showing that the present value of the future maintenance savings of such placement does not exceed all of the costs associated with such placement.

(d) The Telephone Company shall keep and maintain accurate records and as-built drawings depicting accurate horizontal and vertical location of all facilities constructed, reconstructed, or relocated in the street right-of-way after the date hereof and provide location information regarding specific future project locations to the City upon request. Where such information is available electronically, upon request from the City, Telephone Company agrees to provide such information in an electronic format. (City agrees to use information only to locate utility facilities in connection with municipal projects and further agrees not to disclose such information to anyone other than City employees requiring such information to locate utility facilities in connection with municipal projects, except as required by law. Telephone Company and City agree that such information is confidential and proprietary and agree that such information shall remain the sole property of the Telephone Company and agree that pursuant to K.S.A. 45-221(12), (18), as amended, such information does not constitute public records subject to K.S.A. 45-218, as amended. In the event that City is required by law to disclose such information, City shall provide the Telephone Company seven (7) days advance notice of its intended disclosure of such information and shall take such action as may be reasonably required to cooperate with the Telephone Company to safeguard such information. The Telephone Company agrees to indemnify and hold the City harmless from any and all penalties or costs, including attorney's fees, arising from the actions of the Telephone Company, or of the City at the written request of the Telephone Company, in seeking to safeguard the confidentiality of information provided by Telephone Company to City under this section. In the event such

information is required by force of law to be publicly disclosed, the Telephone Company shall have no further obligation under this section to provide the City with such information.) Such facilities shall be horizontally and vertically located at least every 100 feet and at any other alignment change. All points of facilities shall be horizontally located from street centerline, or section or quarter section lines or corners. Vertical locations or all points of facilities shall consist of elevations in either City datum or United States Geological Survey datum.

(e) The Telephone Company shall notify the City not less than three (3) working days in advance (such notice to be adequate for timely notice on the governing body agenda under City procedures) of any construction, reconstruction, repair, or relocation of facilities which would require any street closure which reduces traffic flow to less than two lanes of moving traffic. Except in the event of an emergency, as reasonably determined by the Telephone Company, no such closure shall take place without prior authorization from the City. In addition, all work performed in the traveled way or which in any way impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected. Such signing shall be in conformance with the latest edition of the Federal Highway Administration's Standards and Guideline for Work Zone Traffic Control, unless otherwise agreed to by the City.

(f) The Telephone Company shall cooperate promptly and fully with the City and take all reasonable measures necessary to provide accurate and complete information regarding the nature and horizontal and vertical location of its facilities located within right-of-way when requested by the City or its authorized agents for a public project. Such location and identification shall be at the sole expense of the Telephone Company without expense to the City, its employees, agents, or authorized contractors. The Telephone Company shall designate and maintain a local agent, familiar with the facilities, who is responsible for satisfying information needs of the City and other users of the right-of-way.

(g) The Telephone Company shall promptly remove, relocate, or adjust any facilities located in right-of-way if reasonably necessary and directed by the City for a public project. Such removal, relocation, or adjustment for a particular public project shall be performed by the Telephone Company once at its sole expense without expense to the City, its employees, agents, or authorized contractors and shall be specifically subject to rules and regulations of the City pertaining to such. If additional removal, relocation, or adjustment is the result of the inaccurate or mistaken information of the Telephone Company, the Telephone Company shall be responsible for such at its sole expense.

(h) It shall be the responsibility of the Telephone Company to take adequate measures to protect and defend its facilities in the right-of-way from harm or damage. If the Telephone Company fails to accurately or timely locate facilities when requested, it has no claim for costs or damages against the City and its authorized contractors unless such party is solely responsible for the harm or damage by its negligence or intentional conduct. Telephone Company shall be responsible to the City and its agents, representatives, and authorized contractors for all damages including, but not limited to, delay damages, repair costs, down time, construction delays, penalties or other expenses of any kind arising out of the failure of the Telephone Company to perform any of its obligations under this agreement unless the damage party is solely responsible for the harm or damage by its negligence or intentionally caused harm. However, the City and its authorized contractors shall be responsible to take reasonable precautionary measures

including calling for utility locations and observing marker posts when working near Telephone Company facilities.

(i) The Telephone Company, on the request of any applicant, shall remove or raise or lower its wires temporarily to permit the moving of houses or other structures. The expense of such temporary removal, raising or lowering of wires shall be paid by the party or parties requesting the same, and the Telephone Company may require such payment in advance. The Telephone Company shall be given not less than fifteen (15) days' written notice from the applicant detailing the time and location of the moving operations, and not less than twenty-four (24) hours' advance notice from the applicant advising of the actual operation. The City shall not be liable for any such expense or notice requirement for the moving of houses or structures by the City or its contractors.

(j) Permission is hereby granted to the Telephone Company to trim trees upon and overhanging streets, alleys, sidewalks and public places of said City so as to prevent the branches of such trees from coming in contact with the wires and cables of the Telephone Company, all of said trimming to be done under the supervision and direction of any City officials to whom said duties have been or may be designated.

(k) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the facilities in the right-of-way shall be in accordance with applicable present and future federal, state, and City law and regulation, including but not limited to the most recent editions of the National Electrical Code, the National Electrical Safety Code, and the Fiber Optic Cable Installation Standard of the Telecommunications Industry Committee, or such substantive equivalences as may hereafter be adopted or promulgated. It is understood that the standards established in this paragraph are minimum standards and the requirements established or referenced in this ordinance may be additional to or stricter than such minimum standards.

(l) The Telephone Company will not allow a subsidiary, affiliate, or a third party providing a wireless communications system to acquire rights to occupy the right-of-way under this Agreement. To the extent this provision is deemed inapplicable to third parties, it also shall be deemed inapplicable to subsidiaries and affiliates of Telephone Company. Nothing in this subsection shall prevent Telephone Company from providing Telecommunications Services to any third party, subsidiary or affiliate even though such services may involve the Telephone Company facilities in the right-of-way within the City limits.

(m) The City encourages the conservation of right-of-way by the sharing of space by all utilities. To the extent required by Federal or State law, the Telephone Company shall permit any other franchised entity by appropriate contract or agreement negotiated by the parties to use any and all facilities constructed or erected by the Telephone Company. All said agreements and installations shall be subject to all existing and future ordinances and regulations of the City.

(n) The provisions of this franchise shall be subject to any existing or future adopted right-of-way management and construction standards ordinance of general applicability pursuant to the public health, safety, and welfare authority of the City. Nothing in this subsection shall be deemed to preclude Telephone Company from objecting to the provisions of said ordinance or pursuing other rights and remedies that might exist by law.

Section 4. Indemnity and Hold Harmless. The Telephone Company shall hold and save the City, its officers, employees, agents, and authorized contractors, harmless from and against all claims, damages, expense, liability, and costs including attorney fees, to the extent occasioned in

any manner by the Telephone Company's occupancy of right-of-way, except to the extent otherwise specified in paragraph 3(h). In the event a claim shall be made or an action shall be instituted against the City growing out of such occupancy of the right-of-way by facilities of the Telephone Company, then upon notice by the City to the Telephone Company, the Telephone Company will assume liability for the defense of such actions at the cost of the Telephone Company, subject to the option of the City to appear and defend, at its own cost, any such case.

Section 5. Regulation of Rates and Service. The rates to be charged and exacted from the City of Wichita and its inhabitants, and the rules and regulations with reference to the character and quality and standards of service to be furnished by said Telephone Company shall be under the jurisdiction and control of such regulatory body, municipal or otherwise, as may from time to time during the term of this ordinance be vested by law with authority and jurisdiction thereover; PROVIDED, that if at any time there shall be no such regulatory body vested by law with the exclusive jurisdiction of the rates, regulations and quality and standards of service to be supplied by said Telephone Company, and if by the law the jurisdiction thereover shall be optional, with the sole discretion in the City, then the right and power to fix and determine rates and to prescribe standards and quality of service shall be vested in the Governing Body of the City of Wichita, Kansas.

PROVIDED, FURTHER, that nothing herein contained shall be construed as waiving the rights of either the City or the Telephone Company to review in the courts, in such manner as is now or may hereafter be provided by law, the findings or order of said regulatory body.

Section 6. Payments and Charges. The payments herein provided shall be in lieu of all other licenses, taxes, charges, fees or impositions, except that the usual general property taxes and special ad valorem property taxes, and any charges for pavement cuts or other charges based on restoring premises to their same condition, or charges made for privileges which are not in any way connected with telephone business, as such, will be imposed on the Telephone Company, and are not covered by the payments herein. The Telephone Company shall have the privilege of crediting such sums payable hereunder with any unpaid balance due said Telephone Company for telephone service rendered or facilities furnished to said City; PROVIDED, that said balance due is liquidated and uncontested.

(a) In consideration of the franchise granted to Telephone Company by City, Telephone Company agrees to pay to City during the term of this ordinance a sum of One Dollar and Eighty-one Cents ($1.81) per month for each access line served by Telephone Company for local service within the city limits of the City. The number of access lines as of month end shall be used to calculate payments due City for the following month. The payment to City for amounts owed for such month shall be made within thirty (30) days of the last day of such month.

(b) If during the term of this ordinance any entity provides local telecommunications service in City and provides compensation to City at an amount less than One Dollar and Eighty-One Cents ($1.81) per month for each access line served by such entity for local service within the city limits of City or provides no compensation to City for each such access line, this ordinance shall require compensation no greater than such amounts, if any, during such time remaining of the term of this ordinance that the lesser compensation, if any, is paid by such other entity.

(c) The parties agree that if federal law or state law is enacted setting forth a maximum allowable level of compensation for franchise rights and if such maximum allowable level is less than the level of compensation required by this ordinance, this ordinance shall require Telephone Company to pay the reduced level required by law for the remainder of the term of this ordinance.

(d) if during the term of this ordinance, Telephone Company believes that it is entitled to reduction in compensation pursuant to subsections (b) and (c) above, Telephone Company agrees to notify City in writing and agrees that it will continue to pay City at a rate of One Dollar and Eighty-one Cents ($1.81) per month for each access line served by Telephone Company for local service within the city limits of City until sixty (60) days following such notice to City.

Section 8. Attachment to Poles. Nothing in this ordinance shall be construed to require or permit any telephone, electric light or power wire attachments by either the City or the Telephone Company on the poles of the other. If such attachments are desired by the City or the Telephone Company, then a separate non-contingent agreement shall be prerequisite to such attachments.

Section 9. Forfeiture of Franchise. In case of failure on the part of Adelphia Business Solutions, its successors and assigns, to comply with any of the provisions of this ordinance, or if Adelphia Business Solutions, its successors and assigns, should do or cause to be done any act or thing prohibited by or in violation of the terms of this ordinance, Adelphia Business Solutions, its successors and assigns, shall forfeit all rights and privileges granted by this ordinance and all rights hereunder shall cease, terminate and become null and void, provided that said forfeiture shall not take effect until the City of Wichita shall carry out the following proceedings. Before the City of Wichita proceeds to forfeit said franchise, as in this section prescribed, it shall first serve a written notice upon the manager of Adelphia Business Solutions at its principal office in the City of Wichita, and upon the trustee or trustees in any deed of trust securing bonds of Adelphia Business Solutions of record in Sedgwick County, Kansas, by mailing notice to such trustee or trustees to the address designated in such trust deed, setting forth in detail in such notice the neglect or failure complained of, and Adelphia Business Solutions shall have ninety days thereafter in which to comply with the conditions of this franchise. If at the end of such ninety-day period the City of Wichita deems that the conditions of such franchise have not been complied with by Adelphia Business Solutions and that such franchise is subject to cancellation by reason thereof, the City of Wichita, in order to terminate such franchise, shall enact an ordinance setting out the grounds upon which said franchise or agreement is to be canceled or terminated. If within thirty days after the effective date of said ordinance Adelphia Business Solutions shall not have instituted an action, either in the District Court of Sedgwick County, Kansas, or some other court of competent jurisdiction to determine whether or not Adelphia Business Solutions has violated the terms of this franchise and that the franchise is subject to cancellation by reason thereof, such franchise shall be canceled and terminated at the end of such thirty-day period. If within such thirty-day period Adelphia Business Solutions does institute an action, as above provided, to determine whether or not Adelphia Business Solutions has violated the terms of this franchise and that the franchise is subject to cancellation by reason thereof and prosecutes such action to final judgment with due diligence, then, in that event, in case the court finds that the franchise is subject to cancellation by reason of the violation of its terms, this franchise shall terminate thirty days after such final judgment is rendered. PROVIDED, however, that the failure of Adelphia Business Solutions to comply with any of the provisions of this ordinance or the doing or causing to be done by Adelphia Business Solutions of anything prohibited by or in violation of the terms of this ordinance shall not be a ground for the forfeiture thereof when such act or omission on the part of Adelphia Business Solutions is due to any cause or delay beyond the control of Adelphia Business Solutions, its successors and assigns, or to bona fide legal proceedings.

Section 10. Rights and Duties of Grantee Upon Expiration of Franchise. Upon expiration of this franchise, whether by lapse of time, by agreement between Adelphia Business Solutions and the City of Wichita, or by forfeiture thereof, Adelphia Business Solutions shall have the right to remove from public property any and all of its lines, poles, towers and other appurtenances and equipment used in its said business within a

reasonable time after such expiration, but in such event, it shall be the duty of Adelphia Business Solutions, immediately upon such removal, to restore the streets, avenues, alleys, parks and other public ways and grounds from which said lines, poles, towers, other appurtenances and other equipment are removed to as good condition as the same were before said removal was effected.

Section 11. Term and Termination Date. The term of this franchise shall be until July 1, 2002, or until the expiration of Ordinance No. 43-128 (Southwestern Bell Telephone Company), whichever event occurs first.

Section 12. Acceptance of Terms by Adelphia Business Solutions. The Telephone Company shall have sixty (60) days after the final passage and approval of this ordinance to file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this ordinance, which acceptance shall be duly acknowledged before some officer authorized by law to administer oaths; and when so accepted the ordinance and acceptance shall constitute a contract between the City of Wichita and Adelphia Business Solutions subject to the provisions of the laws of the state of Kansas.

Section 13. Right to Assign. This franchise shall be assignable only in accordance with the laws of the state of Kansas, as the same may exist at the time when any assignment is made.

Section 14. Participation in Utility Location Coordination Council. Adelphia Business Solutions shall remain a member of and participate in the Utility Location and Coordination Council established by Sections 2.12.1093 through 2.12.1097 of the Code of the City of Wichita, Kansas, and any amendment thereto and shall participate in joint funding with other utilities.

Section 15. Conditions of Franchise. This contract, franchise, grant and privilege is granted and accepted under and subject to all applicable laws and under and subject to all of the orders, rules and regulations now or hereafter adopted by governmental bodies now or hereafter having jurisdiction, and each and every provision hereof shall be subject to Acts of God, fires, strikes, riots, floods, war and other causes beyond Adelphia Business Solution's control. This franchise shall not be exclusive.

Section 16. Invalidity of Ordinance. If any clause, sentence, or section of this ordinance shall be held to be invalid, it shall not affect the remaining provisions of this ordinance.

Section 17. Effective Date. This ordinance shall not take effect or become in force until it shall have been read in full at three regular weekly meetings of the governing body of the City of Wichita nor until and immediately after its final passage it shall be published in the official city paper once each week for two consecutive weeks, and such ordinance shall not take effect or be in force until and after the expiration of sixty days from the date of its final passage, nor if, pending the final passage and taking effect of said ordinance, an election shall be called as provided by law, in which event said ordinance shall not take effect or become in force until the same shall have been duly approved by the electorate. The Telephone Company shall have sixty days from and after its passage and approval to file its written acceptance of this ordinance with the City Clerk.

PASSED AND APPROVED by the governing body of the City of Wichita, Kansas this date January 8, 2002.

Bob Knight, Mayor

ATTEST: (SEAL)

Pat Burnett, City Clerk

Approved as to Form:

Gary E. Rebenstorf, City Attorney

KANSAS FIBER NETWORK, L.L.C.
Ordinance No. 52-332

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS, GRANTING TO KANSAS FIBER NETWORK, L.L.C., A KANSAS LIMITED LIABILITY COMPANY, A TELECOMMUNICATIONS LOCAL EXCHANGE SERVICE PROVIDER, A CONTRACT FRANCHISE FOR THE PROVIDING OF LOCAL EXCHANGE SERVICE IN THE CITY OF WICHITA; PRESCRIBING THE TERMS OF SAID GRANT AND OTHER CONDITIONS RELATING THERETO.

SECTION 1. Definitions. For the purposes of this contract franchise ordinance, the following words and phrases shall have the following meanings:

(1) "Communications system" or "System" means the cables, wires, lines, optic fiber, and any associated converters, equipment, or other facilities designed, constructed or occupied by a Provider or others for the purpose of producing, receiving, amplifying or distributing Telecommunications Service to or from locations within the City.

(2) "City" means the City of Wichita, Kansas, the franchisor herein.

(3) "Facilities" means any portion of a System located in, along, over, upon, under, or through the Public Right-of-Way.

(4) "Franchise fee" means the Access Line Fee or fee on Gross Receipts or fee on gross revenues established under this ordinance.

(5) "Local exchange service" means local switched telecommunications service within any local exchange service area approved by the state corporation commission, regardless of the medium by which the local telecommunications service is provided. The term local exchange service shall not include wireless communication services.

(6) "Provider" means a local exchange carrier as defined in subsection (h) of K.S.A. 66-1,187 and amendments thereto, or a telecommunications carrier as defined in subsection (m) of K.S.A. 66-1,187, and amendments thereto.

(7) "Public right-of-way" means only the area of real property in which the City has a dedicated or acquired right-of-way interest in the real property. It shall include the area on, below or above the present and future streets, alleys, avenues, roads, highways, parkways or boulevards dedicated or acquired as right-of-way. The term does not include the airwaves above a right-of-way with regard to wireless telecommunications or other non-wire telecommunications or broadcast service, easements obtained by utilities or private easements in platted subdivisions or tracts.

(8) "Kansas Fiber Network, L.L.C." or "Company", means the franchisee herein.

(9) "Telecommunications local exchange service provider" means a local exchange carrier as defined in subsection (h) of K.S.A. 66-1,187, and amendments thereto, and a telecommunications carrier as defined in subsection (m) of K.S.A. 66-1,187, and amendments thereto, which does, or in good faith intends to, provide local exchange service. The term telecommunications local exchange service provider does not include an interexchange carrier that does not provide local exchange service, competitive access provider that does not provide local exchange service or any wireless telecommunications local exchange service provider.

(10) "Telecommunications services" means providing the means of transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received. For the avoidance of doubt, a "broadband internet access service" (or "BIAS") is a telecommunications service under this ordinance.

SECTION 2. Intent. It is understood and agreed that the intent of Kansas Fiber Network, L.L.C., is to provide telecommunication services to retail customers within the corporate boundaries of the City. In the event Kansas Fiber Network, L.L.C., does not provide such service, Kansas Fiber Network, L.L.C., forfeits its contract franchise and the contract franchise ordinance is terminated.

SECTION 3. Grant.

(a) This contract franchise ordinance hereby grants to Kansas Fiber Network, L.L.C., a Telecommunications Local Exchange Service Provider providing Local Exchange Service within the City, the non-exclusive contract, right, privilege, and franchise to construct, maintain, and operate Facilities along, across, upon and under the Public Right-of-way for the purpose of providing telecommunications services to retail customers within the City.

(b) This contract franchise ordinance shall not convey title, equitable or legal, in the Public Right-of-Way, and gives only the right to occupy Public Right-of-Way, for the purposes and for the period stated herein.

(c) This contract franchise ordinance does not provide Kansas Fiber Network, L.L.C., the right to provide "Cable Service" to the City and inhabitants thereof. For purposes of this ordinance, "Cable Service" is defined as the one-way transmission to subscribers of video programming or other programming services, and subscriber interaction, if any, which is required for the selection of such video programming or other programming service; but "Cable Service" does not include point to point, point to multipoint, and switched video services, or similar services that Kansas Fiber Network, L.L.C., has offered or may in the future offer. Nothing in this contract franchise ordinance is intended to preclude the City from seeking, or authorize the City to seek, a franchise from any subsidiary, affiliate, or third party providing "Cable Services." Kansas Fiber Network, L.L.C., and City agree that nothing in this franchise is intended to authorize the City to seek from Kansas Fiber Network, L.L.C. nor to require Kansas Fiber Network, L.L.C. to obtain a franchise to offer "Open Video Systems" as that term is used in section 653 of the Telecommunications Act of 1996 (codified at 47 U.S.C. 573). Kansas Fiber Network, L.L.C., and City further agree, however, that this ordinance does not authorize Kansas Fiber Network, L.L.C. to offer "Open Video Systems" without paying a franchise fee on the gross revenues of the system operator for the provision of cable service in lieu of a franchise fee, pursuant to and in the manner described in 47 U.S.C. 573(c)(2)(b) and without complying with FCC regulations promulgated pursuant to 47 U.S.C. 573.

SECTION 4. Term.

(a) This contract franchise ordinance shall be effective for a term of three (3) years from the effective date of this contract franchise ordinance. Thereafter, this contract franchise ordinance will renew for three (3) additional three (3) year term, unless either party notifies the other party of its intent to terminate the contract franchise ordinance prior to one hundred and eighty (180) days before the termination of the then current term. The additional term shall be deemed a continuation of this franchise and not as a new franchise or amendment.

(b) Upon written request of either the City or Kansas Fiber Network, L.L.C., this contract franchise ordinance shall be renegotiated at any time in accordance with the requirements of K.S.A. 12-2001, as amended, upon any of the following events: Changes in federal, state, or local laws, regulations, or orders that materially affect any rights or obligations of either the City or Kansas Fiber Network, L.L.C., including but not limited to the scope of the contract franchise ordinance granted to the Kansas Fiber Network, L.L.C. or the compensation to be received by the City hereunder.

(c) Amendments under this Section, if any, shall be made by contract ordinance as prescribed by statute. The contract franchise ordinance shall remain in effect according to its terms pending completion of any review or renegotiation provided by this section.

SECTION 5. Compensation.

(a) In consideration of this contract franchise ordinance, Kansas Fiber Network, L.L.C. agrees to remit to the City a franchise fee in the amount of .10 cents per linear foot of fiber laid in the right-of-way by Kansas Fiber Network, L.L.C. or currently in the amount of $1,418.75 per month. Kansas Fiber Network, L.L.C. agrees that this amount will change accordingly in the event additional fiber is installed.

(b) The first Franchise Fee payment shall be due and payable thirty (30) calendar days after the effective date of this agreement and upon a monthly basis thereafter due on the 15th of the month, or if the 15th falls on a weekend or holiday, the first business day following. If any Franchise Fee, or any portion thereof, is not postmarked or delivered on or before the due date, interest thereon shall accrue from the due date until received, at the applicable statutory interest rate.

(c) The Franchise Fee is compensation for use of the Public Right-of-Way and shall in no way be deemed a tax of any kind.

(d) The Franchise Fee is in addition to, and not in lieu of, the City's Telecommunications Service Occupation Tax under Wichita City Code Section 3.01.020. Kansas Fiber Network, L.L.C. shall receive credit toward total Franchise Fee payment pursuant to Wichita City Code Section 3.93.350 for occupation tax paid.

(e) The City or its designated representatives shall have the right to examine, upon written notice to Kansas Fiber Network, L.L.C. no more often than once per calendar year, those records necessary to verify the correctness of the Franchise Fees.

SECTION 6. Use of Public Right-of-Way.

(a) Pursuant to K.S.A. 17-1902, as amended, Kansas Fiber Network, L.L.C. shall have the right to construct, maintain and operate poles, conduit, cable, switches and related appurtenances and facilities along, across, upon and under the Public Right-of-Way. Such appurtenances and facilities shall be so constructed and maintained as not to obstruct or hinder the usual travel or public safety on such public ways or obstruct the legal use by other utilities.

(b) Nothing in this contract franchise ordinance shall be interpreted as granting Kansas Fiber Network, L.L.C. the authority to construct, maintain or operate any facility or related appurtenance on property owned by the City outside of the Public Right-of-Way.

(c) The authority of Kansas Fiber Network, L.L.C. to use and occupy the Public Right-of-Way shall always be subject and subordinate to the reasonable public health, safety and welfare requirements and regulations of the City. The City may exercise its home rule powers in its administration and regulation related to the management of the Public Right-of-Way provided that any such exercise must be competitively neutral and may not be unreasonable or discriminatory.

(d) The City shall have the authority to prohibit the use or occupation of a specific portion of Public Right-of-way subject to the procedures of K.S.A. 17-1902, as amended.

(e) If there is an emergency necessitating response work or repair, Kansas Fiber Network, L.L.C. may begin that repair or emergency response work or take any action required under the circumstances, provided that Kansas Fiber Network, L.L.C. notifies the City promptly after beginning the work and timely thereafter meets any permit or other requirement had there not been such an emergency.

(f) Kansas Fiber Network, L.L.C. shall repair all damage to the Public Right-of-Way caused by the activities of Kansas Fiber Network, L.L.C., or of any agent affiliate, employee, or subcontractor of Kansas Fiber Network, L.L.C., while occupying, installing, repairing or maintaining facilities in a Public Right-of-way and to return the Public Right-of-Way to its functional equivalence before the damage pursuant to the reasonable requirements and specifications of the City. If Kansas Fiber Network, L.L.C. fails to make the repairs required by the City, the City may affect those repairs and charge Kansas Fiber Network, L.L.C. the cost of those repairs. If the City incurs

damages as a result of a violation of this subsection, then the City shall have the remedies provided in K.S.A. 17-1902, as amended.

(g) When requested by the City, in order to accomplish construction and maintenance activities directly related to improvements for the health, safety and welfare of the public, Kansas Fiber Network, L.L.C. promptly shall remove its facilities from the Public Right-of-way or shall relocate or adjust its facilities within the Public Right-of-way at no cost to the City. Such relocation or adjustment shall be completed as soon as reasonably possible within the time set forth in any request by the City for such relocation or adjustment. Any damages suffered by the City or its contractors as a result of Kansas Fiber Network, L.L.C. failure to timely relocate or adjust its facilities shall be borne by Kansas Fiber Network, L.L.C.

(h) Kansas Fiber Network, L.L.C. shall coordinate the placement of its Facilities in Public Right-of-Way in a manner that minimizes adverse impact on public improvements, as reasonably determined by the City Engineer.

(i) In granting this contract franchise ordinance the City makes no express or implied representation or warranty regarding its rights to authorize the installation or construction of Facilities on any particular segment of the Public Right-of-Way. The burden and responsibility for making all such determinations in advance of construction or installation shall be entirely upon Kansas Fiber Network, L.L.C.

(j) Except as may otherwise be provided by other applicable ordinances of the City, where reasonable and appropriate and where adequate Public Right-of-Way exist; Kansas Fiber Network, L.L.C. shall place above-ground Facilities underground in conjunction with City capital improvement projects and/or at specific locations requested by the City provided that such placement is practical, efficient, and economically feasible.

(k) When Kansas Fiber Network, L.L.C. is allowed to place Facilities above ground under this section, Kansas Fiber Network, L.L.C. may attach its Facilities to an existing utility pole pursuant to a properly executed agreement with the pole owner, provided, however, that any necessary replacement of the pole in order to accommodate the attachment shall be subject to the proper exercise of the City's police powers, and in no instance shall a Franchisee erect a new pole within an existing aerial pole line absent the City's prior authorization. Above-ground pedestals, vaults, or other above-ground Facilities, may be installed only if approved by the City where alternative underground facilities are not feasible or where underground requirements are otherwise waived pursuant to this Section, and shall generally be located behind the sidewalk where feasible and shall be screened from public view. Facilities in rear lot easements shall be exempt from the screening requirements except when they are within fifty feet of a street or highway. The underground requirements of this subsection shall not apply to the maintenance and repair of existing Facilities, as determined by the City Engineer.

(l) Kansas Fiber Network, L.L.C. shall take all reasonable measures necessary to maintain accurate as completed records in electronic format, of all Facilities constructed, reconstructed, or relocated in the Public Right-of-Way of arterial streets (as designated by City of Wichita Code § 11.96.100) after the date hereof. Such Facilities shall be horizontally and vertically located at least every 100 feet and at any other alignment change. All points of Facilities shall be horizontally located from street centerline, or section or quarter section lines or corners. Vertical locations on all points of Facilities shall consist of elevations in either City datum or United States Geological Survey datum. Kansas Fiber Network, L.L.C. shall cooperate promptly and fully with the City and take all reasonable measures necessary to provide accurate and complete information regarding the nature and horizontal and vertical location of its Facilities located within Right-of-Way when requested by the City or its authorized agents for a Public Project. Such location and identification shall be at the sole expense of Kansas Fiber Network, L.L.C. without expense to the City, its employees, agents, or authorized contractors.

SECTION 7. Indemnity and Hold Harmless.

(a) It shall be the responsibility of Kansas Fiber Network, L.L.C. to take adequate measures to protect and defend its Facilities in the Public Right-of-Way from harm or damage. If Kansas Fiber Network, L.L.C. fails to accurately or timely locate Facilities when requested, it has no claim for costs or damages against the City and its authorized contractors unless such party is responsible for the harm or damage by its negligence or intentional conduct. The City and its authorized contractors shall be responsible to take reasonable precautionary measures including calling for utility locations and observing marker posts when working near Kansas Fiber Network, L.L.C. Facilities.

(b) Kansas Fiber Network, L.L.C. shall indemnify and hold the City and its officers and employees harmless against any and all claims, lawsuits, judgments, costs, liens, losses, expenses, fees (including reasonable attorney fees and costs of defense), proceedings, actions, demands, causes of action, liability and suits of any kind and nature, including personal or bodily injury (including death), property damage or other harm for which recovery of damages is sought, to the extent that it is found by a court of competent jurisdiction to be caused by the negligence of the provider, any agent, officer, director, representative, employee, affiliate or subcontractor of the provider, or their respective officers, agents, employees, directors or representatives, while installing, repairing or maintaining facilities in a Public Right-of-way. The indemnity provided by this subsection does not apply to any liability resulting from the negligence of the City, its officers, employees, contractors or subcontractors. If Kansas Fiber Network, L.L.C., and the City are found jointly liable by a court of competent jurisdiction, liability shall be apportioned comparatively in accordance with the laws of this state without, however, waiving any governmental immunity available to the City under state law and without waiving any defenses of the parties under state or federal law. This section is solely for the benefit of the City and Kansas Fiber Network, L.L.C., and does not create or grant any rights, contractual or otherwise, to any other person or entity. Kansas Fiber Network, L.L.C. or the City shall promptly advise the other in writing of any known claim or demand against Kansas Fiber Network, L.L.C. or the City related to or arising out of the Kansas Fiber Network, L.L.C. activities in a Public Right-of-way.

SECTION 8. Insurance Requirement and Performance Bond.

(a) During the term of this Franchise, Kansas Fiber Network, L.L.C. shall obtain and maintain insurance coverage at its sole expense, with financially reputable insurers that are licensed to do business in the state of Kansas. Should Kansas Fiber Network, L.L.C. elect to use the services of an affiliated captive insurance company for this purpose, that company shall possess a certificate of authority from the Kansas Insurance Commissioner. Kansas Fiber Network, L.L.C. shall provide not less than the following insurance:

(1) Workers' compensation as provided for under any worker's compensation or similar law in the jurisdiction where any work is performed with an employers' liability limit equal to the amount required by law.

(2) Commercial general liability, including coverage for contractual liability and products completed operations liability on an occurrence basis and not a claims made basis, with a limit of not less than Two Million Dollars ($2,000,000) combined single limit per occurrence for bodily injury, personal injury, and property damage liability. The City shall be included as an additional insured with respect to liability arising from Kansas Fiber Network, L.L.C. operations under this ordinance.

(b) As an alternative to the requirements of subsection (a), Kansas Fiber Network, L.L.C. may demonstrate to the satisfaction of the City that it is self-insured and as such Kansas Fiber Network, L.L.C. has the ability to provide coverage in an amount not less than one million dollars ($1,000,000) per occurrence and two mil-

lion dollars ($2,000,000) in aggregate, to protect the City from and against all claims by any person whatsoever for loss or damage from personal injury, bodily injury, death or property damage occasioned by Kansas Fiber Network, L.L.C., or alleged to so have been caused or occurred.

(c) Kansas Fiber Network, L.L.C. shall, as a material condition of this Franchise, prior to the commencement of any work and prior to any renewal thereof, deliver to the City a certificate of insurance or evidence of self-insurance, satisfactory in form and content to the City, evidencing that the above insurance is in force and will not be cancelled or materially changed with respect to areas and entities covered without first giving the City thirty (30) days prior written notice. Kansas Fiber Network, L.L.C. shall make available to the City on request the policy declarations page and a certified copy of the policy in effect, so that limitations and exclusions can be evaluated for appropriateness of overall coverage.

(d) Kansas Fiber Network, L.L.C. shall, as a material condition of this Franchise, prior to the commencement of any work and prior to any renewal thereof, deliver to the City a performance bond in the amount of one hundred thousand dollars ($100, 000,) payable to the City to ensure the appropriate and timely performance in the construction and maintenance of facilities located in the right-of-way. Said bond shall be maintained in full force and effect for the term of such franchise and any renewal thereof. In the event Kansas Fiber Network, L.L.C. fails within a reasonable time after notice that it is not in compliance with one or more of the provisions of this franchise issued to it, the City shall recover, jointly and severally from the principal and surety of such bond, any damages or loss suffered by the City as a result thereof, including the full amount of any compensation, indemnification, or cost of removal or abandonment of any property of Kansas Fiber Network, L.L.C. as prescribed hereby which may be in default, plus a reasonable allowance for attorney's fees and costs up to the full amount of the bond. The required performance bond must be with good and sufficient sureties, issued by a surety company authorized to transact business in the State of Kansas, and satisfactory to the City Attorney in form and substance.

SECTION 9. Non-discrimination. Kansas Fiber Network, L.L.C. will not, on the grounds of race, color, sex, religion, national origin, ancestry, disability, or age, discriminate or permit discrimination against any person in the use of the Public Right-of-Way or in activities under this Franchise.

SECTION 10. Transfer and Assignment. This Franchise shall be assignable in accordance with the laws of the State of Kansas. Kansas Fiber Network, L.L.C. shall provide the City written notice of any transfer or assignment within thirty (30) days, including notice of the name and address of the assignee and contact information.

SECTION 11. Expiration or Termination of Contract Franchise Ordinance. Upon expiration of this contract franchise ordinance, whether by lapse of time, by agreement between Kansas Fiber Network, L.L.C. and City, or by forfeiture thereof, Kansas Fiber Network, L.L.C. shall have the right to remove any and all of its Facilities within a reasonable time after such expiration or termination or to transfer any and all of its Facilities to another entity authorized to place Facilities in the Public Right-of-Way. It shall be the duty of the Company, immediately upon any such removal, to restore the Public Right-of-Way from which said Facilities are removed to as good a condition as the same were before said removal was effected.

SECTION 12. Notices. Except in emergencies, all notices by either the City or the Company to the other shall be made by personal delivery, depositing such notice in the U.S. Mail, Certified Mail, return receipt requested, or by facsimile. Any notice served by Certified Mail, return receipt requested, shall be deemed delivered five (5) calendar days after the date of such deposit in the U.S. Mail unless otherwise provided. Any notice given by facsimile is deemed received by the next business day. "Business day" for purposes of this section shall mean Monday through Friday,

City and Kansas Fiber Network, L.L.C. observed holidays excepted. Emergency notices shall be provided by telephone, with written notice immediately following by facsimile.

Notices shall be addressed to the City as follows:

City Clerk
City Hall - 13th Floor
455 N. Main Street
Wichita, Kansas 67202-1635

Notice to Kansas Fiber Network, L.L.C. shall be addressed to the Company as follows:

Kansas Fiber Network, L.L.C.
Attn: Brian Cornish, VP of Network Development
10875 Benson Dr, Ste 130
Overland Park, KS 66210

Notice shall be given as required by the terms of this contract franchise ordinance. Notice shall be provided to the above-named addressees unless directed otherwise in writing by City or Kansas Fiber Network, L.L.C. Both Kansas Fiber Network, L.L.C. and the City shall provide to the other contact information with telephone and facsimile number for use in emergencies.

SECTION 13. Confidentiality. Information provided to the City by Kansas Fiber Network, L.L.C. under K.S.A. 12-2001 and/or this contract franchise ordinance shall be governed by confidentiality procedures in compliance with K.S.A. 45-215 and 66-1220a, et seq., and amendments thereto. In the event the City is required by law to disclose such information, the City shall provide Kansas Fiber Network, L.L.C. ten (10) days advance notice of its intent to disclose such information and shall take such action as may be reasonably necessary to cooperate with Kansas Fiber Network, L.L.C. to safeguard such information. Kansas Fiber Network, L.L.C. agrees to indemnify and hold the City harmless from any and all penalties or costs, including attorney's fees, arising from the actions of Kansas Fiber Network, L.L.C., or of the City at the written request of Kansas Fiber Network, L.L.C., in seeking to safeguard the confidentiality of information provided by Kansas Fiber Network, L.L.C. to the City under this contract franchise ordinance.

SECTION 14. Conditions of Franchise. This contract franchise ordinance is granted and accepted under and subject to all applicable laws and under and subject to all of the orders, rules, and regulations now or hereafter adopted by governmental bodies now or hereafter having jurisdiction, including all permit requirements, fee payments, and all other City codes and ordinances in effect as of the date of this Ordinance or hereinafter adopted to the extent not in contravention of state or federal law. Each and every provision hereof shall be subject to acts of God, fires, strikes, riots, floods, war and other causes beyond Kansas Fiber Network, L.L.C. or the City's control.

SECTION 15. Acceptance. Prior to the effective date of this ordinance Kansas Fiber Network, L.L.C. shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this ordinance, which acceptance shall be duly acknowledged before an officer authorized by law to administer oaths. When so accepted the ordinance and acceptance shall constitute a contract between the City and Kansas Fiber Network, L.L.C. subject to the provisions of the laws of the state of Kansas.

SECTION 16. Reservation of Rights.

(a) The City specifically reserves its right and authority as a public entity with responsibilities towards its citizens, to participate to the full extent allowed by law in proceedings concerning the Company's rates and services to ensure the rendering of efficient Telecommunications Service at reasonable rates, and the maintenance of the Company's property in good repair.

(b) In granting its consent hereunder, the City does not in any manner waive its regulatory or other rights and powers under and by virtue of the laws of the State of Kansas as the same may be amended, its Home Rule powers under the Constitution of the State of Kansas, nor any of its rights and powers under or by virtue of present or future ordinances of the City.

(c) In granting its consent hereunder, Kansas Fiber Network, L.L.C. does not in any manner waive its regulatory or other rights and powers

under and by virtue of the laws of the State of Kansas as the same may be amended, or under the Constitution of the State of Kansas, nor any of its rights and powers under or by virtue of present or future ordinances of the City.

SECTION 17. Failure to Enforce. The failure of either party to insist in any one or more instances upon the strict performance of any one or more of the terms or provisions of this contract franchise ordinance shall not be construed as a waiver or relinquishment for the future of any such term or provision, and the same shall continue in full force and effect. No waiver or relinquishment shall be deemed to have been made by either party unless said waiver or relinquishment is in writing and signed by the parties.

SECTION 18. Severability. If any clause, sentence, or section of this contract franchise ordinance, or any portion thereof, shall be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of the remainder, as a whole or any part thereof, other than the part declared to be invalid; provided, however, the City or Kansas Fiber Network, L.L.C. may elect to declare that the entire agreement is invalidated if the portion declared invalid is, in the judgment of the City or Kansas Fiber Network, L.L.C., an essential part of this contract franchise ordinance.

SECTION 19. Governing Law and Venue.

(a) The contract franchise ordinance and the rights herein granted are subject to the provisions of existing federal and state laws and those hereafter enacted pertaining to the granting of franchises.

(b) The obligations and undertakings of both parties hereto shall be performed at Wichita, Sedgwick County, Kansas. In the event that any legal proceeding is brought to enforce the terms of this franchise, the same shall be brought in State or Federal courts, as appropriate, having jurisdiction for Sedgwick County, Kansas.

SECTION 20. Effective Date of Ordinance. This contract franchise ordinance shall be effective _____, 2024, upon its final passage and publication once in the official City paper.

PASSED AND APPROVED by the governing body of Wichita, Kansas, this 23rd day of January, 2024.

CITY OF WICHITA, KANSAS

/s/ Lily Wu
Mayor

ATTEST:

/s/ Jamie Buster
City Clerk

APPROVED AS TO FORM:

/s/ Jennifer Magaña
City Attorney and
Director of Law

KANSAS FIBER NETWORK, LLC

/s/ _____

Print Name:

Title:

SOUTHWESTERN BELL TELEPHONE L.P.
ORDINANCE NO. 51-663

AN ORDINANCE GRANTING TO SOUTHWESTERN BELL TELEPHONE COMPANY D/B/A AT&T KANSAS, A CONTRACT FRANCHISE FOR THE PROVISION OF TELECOMMUNICATIONS SERVICES IN THE CITY OF WICHITA, KANSAS AND PRESCRIBING THE TERMS OF SAID CONTRACT FRANCHISE.

NOW THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA:

SECTION 1. DEFINITIONS.

For the purposes of this Ordinance the following words and phrases shall have the meaning given herein. When not inconsistent within the context, words used in the present tense include the future tense and words in the single number include the plural number. The word "shall" is always mandatory, and not merely directory.

a. "Access line" - shall mean and be limited to retail billed and collected residential lines; business lines; ISDN lines; PBX trunks and simulated exchange access lines provided by a central office based switching arrangement where all stations served by such simulated exchange access lines are used by a single customer of the provider of such arrangement. Access line may not be construed to include interoffice transport or other transmission media that do not terminate at an end user customer's premises, or to permit duplicate or multiple assessment of access line rates on the provision of a single service or on the multiple communications paths derived from a billed and collected access line. Access line shall not include the following: Wireless telecommunications services, the sale or lease of unbundled loop facilities, special access services, and lines providing only data services without voice services processed by a telecommunications local exchange service provider or private line service arrangements.

b. "Access line count" - means the number of access lines serving consumers within the corporate boundaries of the City on the last day of each month.

c. "Access line fee" - means a fee determined by the City, up to a maximum as set out in K.S.A. 2017 Supp. 12-2001(c)(2), and amendments thereto, to be used by Grantee in calculating the amount of Access line remittance.

d. "Access line remittance" - means the amount to be paid by Grantee to City, the total of which is calculated by multiplying the Access line fee, as determined in the City, by the number of Access lines served by Grantee within the City for each month in that calendar quarter.

e. "City" means the City of Wichita, Kansas.

f. "Contract franchise" - means this Ordinance granting the right, privilege and franchise to Grantee to provide telecommunications services within the City.

g. "Facilities" means telephone and telecommunications lines, conduits, manholes, ducts, wires, cables, pipes, poles, towers, vaults, appliances, optic fiber, and all equipment used to provide telecommunications services.

h. "Grantee" means Southwestern Bell Telephone Company d/b/a AT&T Kansas, an electing carrier and telecommunications service provider providing local exchange service and/or operating Facilities within the City. References to Grantee shall also include, as appropriate, any and all successors and assigns.

i. "Gross Receipts" - shall mean only those receipts collected from within the corporate boundaries of the City and that are derived from the following: (1) Recurring local exchange service for business and residence which includes basic exchange service, touch tone, optional

calling features and measured local calls; (2) Recurring local exchange access line services for pay phone lines provided by Grantee to all pay phone service providers; (3) Local directory assistance revenue; (4) Line status verification/busy interrupt revenue; (5) Local operator assistance revenue; (6) Nonrecurring local exchange service revenue which shall include customer service for installation of lines, reconnection of service and charge for duplicate bills; and (7) Revenue received by Grantee from resellers or others which use Grantee's Facilities. All other revenues, including, but not limited to, revenues from extended area service, the sale or lease of unbundled network elements, nonregulated services, carrier and end user access, long distance, wireless telecommunications services, lines providing only data service without voice services processed by a telecommunications local exchange service provider, private line service arrangements, internet, broadband and all other services not wholly local in nature are excluded from gross receipts. Gross receipts shall be reduced by bad debt expenses. Uncollectible and late charges shall not be included within gross receipts. If Grantee offers additional services of a wholly local nature which if in existence on or before July 1, 2002 would have been included with the definition of Gross Receipts, such services shall be included from the date of the offering of such services within the City.

j. "Local exchange service" - means local switched telecommunications service within any local exchange service area approved by the state Corporation Commission, regardless of the medium by which the local telecommunications service is provided. The term local exchange service shall not include wireless communication services.

k. "Public right-of-way" - means only the area of real property in which the City has a dedicated or acquired right-of-way interest in the real property. It shall include the area on, below or above the present and future streets, alleys, avenues, roads, highways, parkways or boulevards dedicated or acquired as right-of-way. The term does not include the airwaves above a right-of-way with regard to wireless telecommunications or other non-wire telecommunications or broadcast service, easements obtained by utilities or private easements in platted subdivisions or tracts.

l. "Telecommunication local exchange services provider" - means a local exchange carrier as defined in subsection (h) of K.S.A. 2017 Supp. 66-1,187 and amendments thereto, and/or a telecommunications carrier as defined in subsection (m) of K.S.A. 2017 Supp. 66-1,187 and amendments thereto, which does, or in good faith intends to, provide local exchange service. The term shall not include an interexchange carrier or competitive access provider that does not provide local exchange service, or any wireless communication services provider.

m. "Telecommunications services" - means providing the means of transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received.

SECTION 2. GRANT OF CONTRACT FRANCHISE.

a. Subject to the provisions of K.S.A. 2017 Supp. 12-2001, and amendments thereto, there is hereby granted to Grantee this nonexclusive Contract franchise to provide telecommunications services to the consumers or recipients of such service located within the corporate boundaries of the City, for the term of this Contract franchise, subject to the terms and conditions of this Contract franchise.

b. The grant of this Contract franchise by the City shall not convey title, equitable or legal, in the Public right-of-way. This Contract franchise does not:

(1) Grant the right to use Facilities or any other property, telecommunications

related or otherwise, owned or controlled by the City or a third-party, without the consent of such party;

(2) Grant the authority to construct, maintain or operate any Facility or related appurtenance on property owned by the City outside of the Public right-of-way, specifically including, but not limited to, parkland property, City Hall property or public works facility property; or,

(3) Excuse Grantee from obtaining appropriate access or attachment agreements before locating its Facilities on property or facilities owned or controlled by the City or a third-party.

c. As a condition of this grant, Grantee is required to obtain and is responsible for any necessary permit, license, certification, grant, registration or any other authorization required by any appropriate governmental entity, including, but not limited to, the City, the FCC or the Kansas Corporation Commission (KCC). Grantee shall also comply with all applicable laws, statutes and/or city regulations (including, but not limited to those relating to the construction and use of the Public right-of-way or other public property).

d. Grantee shall not provide any additional services for which a franchise is required by the City without first obtaining a separate franchise from the City or amending this Contract franchise, and Grantee shall not knowingly allow the use of its Facilities by any third party in violation of any federal, state or local law. In particular, this Contract franchise does not provide Grantee the right to provide cable service as a cable operator (as defined by 47 U.S.C. § 522 (5)) within the City. Grantee agrees that this franchise does not permit it to operate an open video system without payment of fees permitted by 47 U.S.C. § 573(c)(2)(B) and without complying with FCC regulations promulgated pursuant to 47 U.S.C. § 573.

e. Access to the Public right-of-way shall be granted in a competitively neutral and nondiscriminatory basis and not in conflict with state or federal law.

SECTION 3. USE OF PUBLIC RIGHT-OF-WAY.

a. Pursuant to K.S.A. 2017 Supp. 17-1902, and amendments thereto, and subject to the provisions of this Contract franchise, Grantee has the right to construct, maintain and operate its Facilities along, across, upon and under the Public right-of-way. Such Facilities shall be so constructed and maintained as not to obstruct or hinder the usual travel or public safety on such public ways or obstruct the legal use of such public ways by other utilities.

b. Grantee's use of the Public right-of-way shall always be subject and subordinate to the reasonable public health, safety and welfare requirements and regulations of the City. The City may exercise its home rule powers in its administration and regulation related to the management of the Public right-of-way; provided that any such exercise must be competitively neutral and may not be unreasonable or discriminatory. Grantee shall be subject to all applicable laws and statutes, and/or rules, regulations, policies, resolutions and ordinances adopted by the City, relating to the construction and use of the Public right-of-way.

c. City shall, pursuant to Section 12 of this Contract franchise, provide reasonable advanced notice of the consideration and/or adoption of any rule, regulation, policies, resolutions and ordinances relating to the construction in or use of the Public right-of-way, inasmuch as such adoption affects Grantee's use of the Public right-of-way.

d. If requested by the City, in order to accomplish construction and maintenance activities directly related to improvements for the health, safety and welfare of the public, Grantee shall remove, relocate or adjust its Facilities within the Public right-of-way at no cost to the City, providing such request similarly binds all users of such public right-of-way. Such removal, relocation, or adjustment shall be completed as soon as reasonably possible within the time set forth in any written request by the City for such relocation or adjustment, provided that the City shall provide Grantee with a minimum of one hundred eighty (180) days advance written notice

to comply with any such removal, relocation or adjustment. Grantee shall designate one (1) person within its organization by his/her employment position to whom relocation notices shall be sent and with whom rests the responsibility to facilitate all necessary communications within Grantee's various areas.

e. When the City requests removal, relocation or adjustment of Grantee's Facilities within the Public right-of-way for construction or maintenance activities related to improvements that are in whole or in part, for private benefit, the City shall require, as a condition of its approval of any request from any private party or parties for alteration of the Public right-of-way, that such private party or parties reimburse Grantee for the cost of removal, relocation or adjustment, in an amount equal to the percentage of the private benefit received. Grantee shall not be obligated to commence the removal, relocation or adjustment until receipt of funds for the costs from such private party or parties. For purposes of this paragraph, a mixed purpose public/private project shall be subject to a presumption of a private benefit of no less than 50 percent. Further, Grantee shall have no liability for delays caused by a private party's failure to reimburse costs. Grantee understands, however, that the City has no obligation to collect such reimbursement.

f. Grantee shall participate in the Kansas One Call utility location program.

SECTION 4. COMPENSATION TO THE CITY.

a. In consideration of this Contract franchise, Grantee agrees to remit to the City a franchise fee of 5% of Gross Receipts. To determine the franchise fee, Grantee shall calculate the Gross Receipts and multiply such receipts by 5%. Thereafter, subject to subsection (b) hereafter, compensation for each calendar year of the remaining term of this Contract franchise shall continue to be based on a sum equal to 5% of Gross Receipts, unless the City notifies Grantee prior to ninety days (90) before the end of the calendar year that it intends to switch to an Access line fee in the following calendar year; provided, such Access line fee shall not exceed the maximum Access line fee allowed by Kansas Statute. In the event the City elects to change its basis of compensation, nothing herein precludes the City from switching its basis of compensation back; provided the City notifies Grantee prior to ninety days (90) before the end of the calendar year.

b. Beginning January 1, 2004, and every 36 months thereafter, the City, subject to the public notification procedures set forth in K.S.A. 2017 Supp. 12-2001(m), and amendments thereto, may elect to adopt an increased Access line fee or gross receipts fee subject to the provisions and maximum fee limitations contained in K.S.A. 2017 Supp. 12-2001, and amendments thereto, or may choose to decline all or any portion of any increase in the Access line fee.

c. Grantee shall pay on a monthly basis without requirement for invoice or reminder from the City, and within 45 days of the last day of the month for which the payment applies franchise fees due and payable to the City. If any franchise fee, or any portion thereof, is not postmarked or delivered on or before the due date, interest thereon shall accrue from the due date until received, at the applicable statutory interest rate.

d. Upon written request by the City, but no more than once per quarter, Grantee shall submit to the City a certified statement showing the manner in which the franchise fee was calculated.

e. No acceptance by the City of any franchise fee shall be construed as an accord that the amount paid is in fact the correct amount, nor shall acceptance of any franchise fee payment be construed as a release of any claim of the City. Any dispute concerning the amount due under this Section shall be resolved in the manner set forth in K.S.A. 2017 Supp. 12-2001, and amendments thereto. Subject to any limitations of Kansas Statute, Grantee's payment obligations shall survive the expiration or termination of this Contract franchise.

f. The City shall have the right to examine, upon written notice to Grantee no more often than once per calendar year, those records necessary to verify the correctness of the franchise fees paid by Grantee.

g. Unless previously paid, within sixty (60) days of the effective date of this Contract franchise, Grantee shall pay to the City a one-time application fee of Five Thousand Dollars ($5,000.00). The parties agree that such fee reimburses the City for its reasonable, actual and verifiable costs of reviewing and approving this Contract franchise.

h. The franchise fee required herein pursuant to K.S.A. 2017 Supp. 12-2001(j) and amendments thereto, shall be in addition to, not in lieu of, all taxes, charges, assessments, licenses, fees and impositions otherwise applicable that are or may be imposed by the City under K.S.A. 2017 Supp. 12-2001 and K.S.A. 2017 Supp. 17-1902, and amendments thereto. The franchise fee shall in no way be deemed a tax of any kind.

i. Grantee shall remit an access line (franchise) fee or a gross receipts (franchise) fee to the City on those access lines that have been resold to another telecommunications local exchange service provider, but in such case the City shall not collect a franchise fee from the reseller service provider and shall not require the reseller service provider to enter a contract franchise ordinance. Such Access line (franchise) fee or Gross Receipts (franchise) fee shall be in the same amount or percentage as the franchise fee set forth in subsection 4 a. hereinabove.

SECTION 5. INDEMNITY AND HOLD HARMLESS.

a. It shall be the responsibility of Grantee to take adequate measures to protect and defend its Facilities in the Public right-of-way from harm or damage. If Grantee fails to accurately or timely locate Facilities when requested, in accordance with the Kansas Underground Utility Damage Prevention Act, K.S.A. 66-1801 et seq., and amendments thereto, it has no claim for costs or damages against the City and its authorized contractors unless such parties are responsible for the harm or damage caused by their negligence or intentional conduct. The City and its authorized contractors shall be responsible to take reasonable precautionary measures including calling for utility locations and observing marker posts when working near Grantee's Facilities.

b. Grantee shall indemnify and hold the City and its officers and employees harmless against any and all claims, lawsuits, judgments, costs, liens, losses, expenses, fees (including reasonable attorney fees and costs of defense), proceedings, actions, demands, causes of action, liability and suits of any kind and nature, including personal or bodily injury (including death), property damage or other harm for which recovery of damages is sought, to the extent that it is found by a court of competent jurisdiction to be caused by the negligence of Grantee, any agent, officer, director, representative, employee or subcontractor of Grantee, while installing, repairing or maintaining Facilities in the Public right-of-way.

c. The indemnity provided by this subsection does not apply to any liability resulting from the negligence of the City, its officers, employees, contractors or subcontractors. If Grantee and the City are found jointly liable by a court of competent jurisdiction, liability shall be apportioned comparatively in accordance with the laws of this state without, however, waiving any governmental immunity available to the City under state law and without waiving any defenses of the parties under state or federal law. This section is solely for the benefit of the City and Grantee and does not create or grant any rights, contractual or otherwise, to any other person or entity. Notwithstanding the foregoing, nothing herein shall in any way obligate Grantee for the negligence of any other third party or any portion of any harm caused by the same.

d. Grantee or City shall promptly advise the other in writing of any known claim or demand against Grantee or the City related to or arising out of Grantee's or the City's activities in the Public right-of-way.

SECTION 6. INSURANCE REQUIREMENT AND PERFORMANCE BOND

a. During the term of this Contract franchise, Grantee shall obtain and maintain insurance coverage at its sole expense, with insurers rated

at least A-VII by AM Best and that are eligible or permitted to do business in the state of Kansas. Grantee shall provide the following insurance:

(1) Workers' compensation as provided for under any worker's compensation or similar law in the jurisdiction where any work is performed with an employers' liability limit for bodily injury of $1,000,000 each accident, by disease policy limits and by disease each employee.

(2) Commercial general liability, written on Insurance Services Office (ISO) policy form CG 00 01 or its equivalent, including coverage for contractual liability and products completed operations liability on an occurrence basis and not a claim made basis, with a limit of Two Million Dollars ($2,000,000) combined single limit per occurrence and in the aggregate for bodily injury, personal injury, and property damage liability. The City shall be included as an additional insured with respect to liability arising from Grantee's operations under this Contract franchise.

b. As an alternative to the requirements of subsection (a), Grantee may self-insure and, as such, Grantee has the ability to provide coverage in an amount of One Million Dollars ($1,000,000) per occurrence and Two Million Dollars ($2,000,000) in aggregate, to protect the City from and against claims by any person for loss or damage from personal injury, bodily injury, death or property damage occasioned by Grantee, or alleged to so have been caused or occurred as respects this Contract franchise. In the event Grantee elects to self-insure its obligation to include City as an additional insured, the following provisions shall apply:

(1) City shall promptly and no later than thirty (30) days after notice thereof provide Grantee with written notice of any claim, demand, lawsuit or the like, for which it seeks coverage pursuant to the section and provide Grantee with copies of any demands, notices, summonses or legal papers received in connection with such claim, demand, lawsuit or the like;

(2) City shall not settle any such claim, demand, lawsuit or the like without the prior written consent of Grantee; and,

(3) City shall fully cooperate with Grantee in the defense of the claim, demand, lawsuit or the like.

c. Grantee shall, as a material condition of this Contract franchise, prior to the commencement of any work and prior to any renewal thereof, deliver to the City a certificate of insurance or evidence of self-insurance, satisfactory in form and content to the City, evidencing that the above insurance is in force. Grantee shall timely notify the City if the insurance is cancelled or non-renewed and not replaced.

d. Grantee shall, as a material condition of this Contract franchise, prior to the commencement of any work and prior to any renewal thereof, deliver to the City a construction bond in the amount of Fifty Thousand Dollars ($50,000), payable to the City to ensure the appropriate and timely performance in the construction and maintenance of Facilities located in the Public right-of-way. The required construction bond must be, issued by a surety company authorized to transact business in the state of Kansas, and satisfactory to the City Attorney in form and substance.

SECTION 7. REVOCATION AND TERMINATION.

a. In case of failure on the part of Grantee to comply with any of the provisions of this Contract franchise, or if Grantee should do or cause to be done any act or thing prohibited by or in violation of the terms of this Contract franchise, Grantee shall forfeit all rights, privileges and franchise granted herein, and all such rights, privileges and franchise hereunder shall cease, terminate and become null and void, and this Contract franchise shall be deemed revoked or terminated, provided that said revocation or termination, shall not take effect until the City has completed the following procedures:

(1) Before the City proceeds to revoke and terminate this Contract franchise, it shall first serve a written notice, pursuant to Section 12 of the Contract franchise,

upon Grantee, setting forth in detail the neglect or failure complained of, and Grantee shall have sixty (60) days thereafter in which to comply with the conditions and requirements of this Contract franchise;

(2) If at the end of such sixty (60) day period the City deems that the conditions have not been complied with, the City shall take action to revoke and terminate this Contract franchise by an affirmative vote of the City Council present at the meeting and voting, setting out the grounds upon which this Contract franchise is to be revoked and terminated; provided, to afford Grantee due process, Grantee shall first be provided, pursuant to Section 12 of this Contract franchise, reasonable notice of the date, time and location of the City Council's consideration, and shall have the right to address the City Council regarding such matter.

(3) Upon any determination by the City Council to revoke and terminate this Contract franchise, Grantee shall have thirty (30) days to appeal such decision to the District Court of Sedgwick County, Kansas. This Contract franchise shall be deemed revoked and terminated at the end of this thirty (30) day period, unless Grantee has instituted such an appeal. If Grantee does timely institute such an appeal, such revocation and termination shall remain pending and subject to the court's final judgment. Provided, however, that the failure of Grantee to comply with any of the provisions of this Contract franchise or the doing or causing to be done by Grantee of anything prohibited by or in violation of the terms of this Contract franchise shall not be a ground for the revocation or termination thereof when such act or omission on the part of Grantee is due to any cause or delay beyond the control of Grantee or to bona fide legal proceedings.

b. Nothing herein shall prevent the City or Grantee from invoking any other remedy that may otherwise exist at law.

SECTION 8. RESERVATION OF RIGHTS.

a. The City and Grantee hereby acknowledge that the City, in accordance with 47 U.S.C. § 253, may not prohibit or have the effect of prohibiting the ability of any entity to provide interstate or intrastate telecommunication service. To the extent permitted by law, the City specifically reserves its right and authority as a public entity with responsibilities towards its citizens, to participate to the full allowed by law in proceedings concerning Grantee's rates and services to ensure the rendering of efficient Telecommunications service and any other services at reasonable rates, and the maintenance of Grantee's property in good repair.

b. In granting its consent hereunder, the City does not in any manner waive its regulatory or other rights and powers under and by virtue of the laws of the State of Kansas as the same may be amended, its Home Rule powers and other authority established pursuant to the Constitution of the State of Kansas, nor any of its rights and powers under or by virtue of present or future ordinances of the City.

c. In granting its consent hereunder, Grantee does not in any manner waive its regulatory or other rights and powers under and by virtue of: the laws of the State of Kansas or applicable federal laws and regulations as the same may be amended; under the Constitution of the State of Kansas; nor, any of its rights and powers under or by virtue of present or future ordinances of the City.

d. In entering into this Contract franchise, neither the City's nor Grantee's present or future legal rights, positions, claims, assertions or arguments before any administrative agency or court of law are in any way prejudiced or waived. By entering into the Contract franchise, neither the City nor Grantee waive any rights, but instead expressly reserve any and all rights, remedies, and arguments the City or Grantee may have at law or equity, without limitation, to argue, assert, and/or take any position as to the legality or appropriateness of the Contract franchise or any present or future laws, non-franchise ordinances and/or rulings that may be the basis for parties entering into this Contract franchise.

SECTION 9. FAILURE TO ENFORCE.

The failure of either the City or Grantee to insist in any one or more instances upon the strict performance of any one or more of the terms or provisions of this Contract franchise shall not be construed as a waiver or relinquishment for the future of any such term or provision, and the same shall continue in full force and effect. No waiver or relinquishment shall be deemed to have been made by the City or Grantee unless said waiver or relinquishment is in writing and signed by both the City and Grantee.

SECTION 10. TERM AND TERMINATION DATE.

a. This Contract franchise shall be effective for a term beginning on the effective date of this Contract franchise and ending on December 31, 2021 Thereafter, this Contract franchise will automatically renew for up to eight (8) additional two (2) year terms, unless either party notifies the other party of its intent to terminate the Contract franchise at least ninety (90) days before the termination of the then current term. The additional term shall be deemed a continuation of this Contract franchise and not as a new franchise or amendment.

b. Upon written request of either the City or Grantee, this Contract franchise shall be renegotiated at any time in accordance with the requirements of state law upon any of the following events: changes in federal, state, or local laws, regulations, or orders that materially affect any rights or obligations of either the City or Grantee, including but not limited to the scope of the Contract franchise granted to Grantee or the compensation to be received by the City hereunder.

c. If any clause, sentence, section, or provision of K.S.A. 2017 Supp. 12-2001, and amendments thereto, shall be held to be invalid by a court or administrative agency of competent jurisdiction, provided such order is not stayed, either the City or Grantee may elect to terminate the entire Contract franchise. In the event of such invalidity, if Grantee is required by law to enter into a Contract franchise with the City, the parties agree to act in good faith in promptly negotiating a new Contract franchise.

d. Amendments under this Section, if any, shall be made by contract franchise ordinance as prescribed by statute. This Contract franchise shall remain in effect according to its terms, pending completion of any review or renegotiation provided by this section.

e. In the event the parties are actively negotiating in good faith a new contract franchise ordinance or an amendment to this Contract franchise upon the termination date of this Contract franchise, the parties by written mutual agreement may extend the termination date of this Contract franchise to allow for further negotiations. Such extension period shall be deemed a continuation of this Contract franchise and not as a new contract franchise ordinance or amendment.

SECTION 11. MOST FAVORED NATION.

Pursuant to K.S.A. 2017 Supp. 12-2001 and K.S.A. 2017 Supp. 17-1902, and amendments thereto, City represents and warrants that all benefits, terms and conditions in this Contract franchise and relative to Grantee's deployment of network Facilities and services in the City are and, during the term of this Contract franchise, will continue to be no less favorable to Grantee in the same or similar circumstances than those currently being offered to or that may be offered and agreed to by City and any other local exchange carrier, telecommunications carrier, network based broadband or video services provider, competitive infrastructure provider or Internet Protocol services provider, regardless of the form or nature of the agreement with any such other carrier or provider, and that the City shall treat Grantee in a competitively neutral, non-discriminatory manner.

SECTION 12. NOTICES.

All notices between the parties shall be in writing and shall be made by personal delivery, depositing such notice in the U.S. Mail, Certified Mail, return receipt requested, or by facsimile. Any notice served by U.S. Mail or Certified Mail,

return receipt requested, or overnight delivery by a nationally recognized courier. All written notices shall be deemed delivered upon actual receipt or refusal of delivery:

The City:	**Grantee:**
The City of Wichita 455 N Main, 13th Floor Wichita, Kansas 67202 Attn: City Clerk	Office of the President Southwestern Bell Telephone Company d/b/a AT&T Kansas 220 SE 6th St. Room 500 Topeka, Kansas 66603

or to replacement addresses that may be later designated in writing.

SECTION 13. TRANSFER AND ASSIGNMENT.

This Contract franchise is granted solely to Grantee and shall not be transferred or assigned without the prior written approval of the City; provided that such transfer or assignment may occur without written consent of the City to: a wholly owned parent or subsidiary; between wholly owned subsidiaries; or to an entity with which Grantee is under common ownership or control, upon written notice to the City. City and Grantee acknowledge that said City consent shall only be with regard to the transfer or assignment of this Contract franchise and that, in accordance with Kansas law, the City does not have the authority to require City approval of transfers of ownership or control of the business or assets of Grantee. In the event of any transfer or assignment of either this Contract franchise or Grantee's business or assets, Grantee shall: timely notify the City of the successor entity; provide a point of contact for the successor entity; and advise the City of the effective date of the transfer or assignment. Additionally, Grantee's obligations under this Contract franchise with regard to indemnity, bonding and insurance shall continue until the transferee or assignee has taken the appropriate measures necessary to assume and replace the same, the intent being that there shall be no lapse in any coverage as a result of the transfer or assignment.

SECTION 14. CONFIDENTIALITY.

Information provided to the City under K.S.A. 2017 Supp. 12-2001, and amendments thereto, shall be governed by confidentiality procedures in compliance with K.S.A. 45-215 and K.S.A. 66-1220a, et seq., and amendments thereto. Grantee agrees to indemnify and hold the City harmless from any and all penalties or costs, including attorney's fees, arising from the actions of Grantee, or of the City at the written request of Grantee, in seeking to safeguard the confidentiality of information provided by Grantee to the City under this Contract franchise.

SECTION 15. ACCEPTANCE OF TERMS.

Grantee shall have sixty (60) days after the final passage and approval of this Contract franchise to file with the City Clerk its acceptance in writing of the provisions, terms and conditions of this Contract franchise, which acceptance shall be duly acknowledged before some officer authorized by law to administer oaths; and when so accepted, this Contract franchise and acceptance shall constitute a contract between the City and Grantee subject to the provisions of the laws of the State of Kansas, and shall be deemed effective on the later of the date Grantee files acceptance with the City or publication of this Contract franchise in accordance with Statute (the "Effective Date").

SECTION 16. SEVERABILITY.

If any clause, sentence, or section of this Contract franchise, or any portion thereof, shall be held to be invalid by a court of competent jurisdiction, such decision shall not affect the validity of the remainder, as a whole or any part thereof, other than the part declared invalid; provided, however, the City or Grantee may elect to declare the entire Contract franchise is invalidated if the portion declared invalid is, in the judgment of the City or Grantee, an essential part of the Contract franchise.

SECTION 17. FORCE MAJEURE.

Each and every provision hereof shall be reasonably subject to acts of God, fires, strikes, riots, floods, war, terrorism and other disasters beyond Grantee's or the City's control.

SECTION 18. REPEAL.

City Ordinance No. 45-677 and Ordinance 47-118, contract franchises issued to Southwestern Bell Telephone L.P. d/b/a SBC Kansas are hereby repealed.

PASSED by the City Council this 9th day of November, 2021.

APPROVED by the Mayor this 9th day of November, 2021.

CITY OF WICHITA, KANSAS

_____

Brandon Whipple, Mayor

ATTEST:

_____

Karen Sublett, City Clerk

APPROVED AS TO FORM:

_____

Jennifer Magaña, City Attorney

KANSAS FIBER NETWORK, LLC
Ordinance No. 48-982

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS, GRANTING TO KANSAS FIBER NETWORK, LLC, A KANSAS LIMITED LIABILITY COMPANY, A TELECOMMUNICATIONS LOCAL EXCHANGE SERVICE PROVIDER, A CONTRACT FRANCHISE FOR THE PROVIDING OF LOCAL EXCHANGE SERVICE IN THE CITY OF WICHITA; PRESCRIBING THE TERMS OF SAID GRANT AND OTHER CONDITIONS RELATING THERETO.

SECTION 1. Definitions. For the purposes of this contract franchise ordinance, the following words and phrases shall have the following meanings:

(1) "Communications system" or "System" means the cables, wires, lines, optic fiber, and any associated converters, equipment, or other facilities designed, constructed or occupied by a Provider or others for the purpose of producing, receiving, amplifying or distributing Telecommunications Service to or from locations within the City.

(2) "City" means the City of Wichita, Kansas, the franchisor herein.

(3) "Facilities" means any portion of a System located in, along, over, upon, under, or through the Public Right-of-Way.

(4) "Franchise fee" means the Access Line Fee or fee on Gross Receipts established under this ordinance.

(5) "Gross receipts" means only those receipts collected from within the corporate boundaries of the City and which are derived from the following: (A) Recurring local exchange service for business and residence which includes basic exchange service, touch tone, optional calling features and measured local calls; (B) recurring local exchange access line services for pay phone lines provided by a telecommunications local exchange service provider to all pay phone service providers; (C) local directory assistance revenue; (D) line status verification/busy interrupt revenue; (E) local operator assistance revenue; and (F) nonrecurring local exchange service revenue which shall include customer service for installation of lines, reconnection of service and charge for duplicate bills. All other revenues, including, but not limited to, revenues from extended area service, the sale or lease of unbundled network elements, non-regulated services, carrier and end user access, long distance, wireless telecommunications services, lines providing only data service without voice services processed by a telecommunications local exchange service provider, private line service arrangements, internet, broadband and all other services not wholly local in nature are excluded from gross receipts. Gross receipts shall be reduced by bad debt expenses.

Uncollectible and late charges shall not be included within gross receipts. If a telecommunications local exchange service provider offers additional services of a wholly local nature which if in existence on or before January 1, 2011, would have been included with the definition of gross receipts, such services shall be included from the date of the offering of such services in the City.

(6) "Local exchange service" means local switched telecommunications service within any local exchange service area approved by the state corporation commission, regardless of the medium by which the local telecommunications service is provided. The term local exchange service shall not include wireless communication services.

(7) "Provider" means a local exchange carrier as defined in subsection (h) of K.S.A. 66-1,187 and amendments thereto, or a telecommunications carrier as defined in subsection (m) of K.S.A. 66-1,187, and amendments thereto.

(8) "Public right-of-way" means only the area of real property in which the City has a dedicated or acquired right-of-way interest in the real property. It shall include the area on, below or above the present and future streets, alleys, avenues, roads, highways, parkways or boulevards dedicated or acquired as right-of-way. The term does not include the airwaves above a right-of-way with regard to wireless telecommunications

or other non-wire telecommunications or broadcast service, easements obtained by utilities or private easements in platted subdivisions or tracts.

(9) "Kansas Fiber Network, L.L.C." or "Company", means the franchisee herein.

(10) "Telecommunications local exchange service provider" means a local exchange carrier as defined in subsection (h) of K.S.A. 66-1,187, and amendments thereto, and a telecommunications carrier as defined in subsection (m) of K.S.A. 66-1,187, and amendments thereto, which does, or in good faith intends to, provide local exchange service. The term telecommunications local exchange service provider does not include an interexchange carrier that does not provide local exchange service, competitive access provider that does not provide local exchange service or any wireless telecommunications local exchange service provider.

(11) "Telecommunications services" means providing the means of transmission, between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received.

SECTION 2. Intent. It is understood and agreed that the intent of Kansas Fiber Network, L.L.C., is to provide telecommunication services to retail customers within the corporate boundaries of the City, In the event Kansas Fiber Network, L.L.C., does not provide such service and does not generate gross receipts, Kansas Fiber Network, L.L.C., forfeits its contract franchise and the contract franchise ordinance is terminated.

SECTION 3. Grant. (a) This contract franchise ordinance hereby grants to Kansas Fiber Network, L.L.C., a Telecommunications Local Exchange Service Provider providing Local Exchange Service within the City, the non-exclusive contract, right, privilege, and franchise to construct, maintain, and operate Facilities along, across, upon and under the Public Right-of-way for the purpose of providing telecommunications services to retail customers within the City.

(b) This contract franchise ordinance shall not convey title, equitable or legal, in the Public Right-of-Way, and gives only the right to occupy Public Right-of-Way, for the purposes and for the period stated herein.

(c) This contract franchise ordinance does not provide Kansas Fiber Network, L.L.C., the right to provide "Cable Service" to the City and inhabitants thereof. For purposes of this ordinance, "Cable Service" is defined as the one-way transmission to subscribers of video programming or other programming services, and subscriber interaction, if any, which is required for the selection of such video programming or other programming service; but "Cable Service" does not include point to point, point to multi-point, and switched video services, or similar services that Kansas Fiber Network, L.L.C., has offered or may in the future offer. Nothing in this contract franchise ordinance is intended to preclude the City from seeking, or authorize the City to seek, a franchise from any subsidiary, affiliate, or third party providing "Cable Services." Kansas Fiber Network, L.L.C., and City agree that nothing in this franchise is intended to authorize the City to seek from Kansas Fiber Network, L.L.C. nor to require Kansas Fiber Network, L.L.C. to obtain a franchise to offer "Open Video Systems" as that term is used in section 653 of the Telecommunications Act of 1996 (codified at 47 U.S.C. 573). Kansas Fiber Network, L.L.C., and City further agree, however, that this ordinance does not authorize Kansas Fiber Network, L.L.C. to offer "Open Video Systems" without paying a franchise fee on the gross revenues of the system operator for the provision of cable service in lieu of a franchise fee, pursuant to and in the manner described in 47 U.S.C. 573(c)(2)(b) and without complying with FCC regulations promulgated pursuant to 47 U.S.C. 573.

SECTION 4. Term. (a) This contract franchise ordinance shall be effective for a term of three (3) years from the effective date of this contract franchise ordinance. Thereafter, this contract

franchise ordinance will renew for three (3) additional three (3) year term, unless either party notifies the other party of its intent to terminate the contract franchise ordinance prior to one hundred and eighty (180) days before the termination of the then current term. The additional term shall be deemed a continuation of this franchise and not as a new franchise or amendment.

(b) Upon written request of either the City or Kansas Fiber Network, L.L.C., this contract franchise ordinance shall be renegotiated at any time in accordance with the requirements of K.S.A. 12-2001, as amended, upon any of the following events: Changes in federal, state, or local laws, regulations, or orders that materially affect any rights or obligations of either the City or Kansas Fiber Network, L.L.C., including but not limited to the scope of the contract franchise ordinance granted to the Kansas Fiber Network, L.L.C. or the compensation to be received by the City hereunder.

(c) Amendments under this Section, if any, shall be made by contract ordinance as prescribed by statute. The contract franchise ordinance shall remain in effect according to its terms pending completion of any review or renegotiation provided by this section.

SECTION 5. Compensation. (a) In consideration of this contract franchise ordinance, Kansas Fiber Network, L.L.C. agrees to remit to the City a franchise fee of five percent (5%) of Gross Receipts. To determine the Franchise Fee, Kansas Fiber Network, L.L.C. shall calculate the Gross Receipts and multiply such receipts by 5%. Thereafter, compensation for each calendar year of the remaining term of the contract franchise ordinance shall continue to be based on a sum equal to 5% of Gross Receipts.

(b) Beginning January 1, 2004, and every 36 months thereafter, the City, subject to the public notification procedures set forth in K.S.A. 12-2001 (l) and (m), as amended, may elect to adopt an increased gross receipts fee subject to the provisions and maximum fee limitations contained in K.S.A. 12-2001, as amended, or may choose to decline all or any portion of any increase in the access line fee.

(c) The Franchise Fee shall be due and payable on a monthly basis within thirty (30) calendar days after the end of the remittal period. If any Franchise Fee, or any portion thereof, is not postmarked or delivered on or before the due date, interest thereon shall accrue from the due date until received, at the applicable statutory interest rate.

(d) Franchise Fee payments shall be accompanied by a 9K2 (gross receipts) statement showing the manner in which the Franchise Fee was calculated on a quarterly basis. No acceptance by the City of any Franchise Fee shall be construed as an accord that the amount paid is, in fact the correct amount, nor shall acceptance of any Franchise Fee payment be construed as a release of any claim of the City. Any dispute concerning the amount due under this Section shall be resolved in the manner set forth in K.S.A. 12-2001, as amended.

(e) The City or its designated representatives shall have the right to examine, upon written notice to Kansas Fiber Network, L.L.C. no more often than once per calendar year, those records necessary to verify the correctness of the Franchise Fees.

(f) Within sixty (60) days of the effective date of this contract franchise ordinance, Kansas Fiber Network, L.L.C. shall pay to the City a one-time application fee of One Thousand Dollars ($1,000.00). The parties agree that such fee reimburses the City for its reasonable, actual and verifiable costs of reviewing and approving this contract franchise ordinance. Kansas Fiber Network, L.L.C. shall additionally pay the publications costs of this ordinance.

(g) The Franchise Fee required herein shall be in addition to, not in lieu of, all taxes, charges, assessments, licenses, fees and impositions otherwise applicable that are or may be imposed by the City under K.S.A. 12-2001 and 17-1902, as amended. The Franchise Fee is compensation for use of the Public Right-of-Way and shall in no way be deemed a tax of any kind.

SECTION 6. Use of Public Right-of-Way. (a) Pursuant to K.S.A. 17-1902, as amended, Kansas Fiber Network, L.L.C. shall have the right to construct, maintain and operate poles, conduit, cable, switches and related appurtenances and facilities along, across, upon and under the Public Right-of-Way. Such appurtenances and facilities shall be so constructed and maintained as not to obstruct or hinder the usual travel or public safety on such public ways or obstruct the legal use by other utilities.

(b) Nothing in this contract franchise ordinance shall be interpreted as granting Kansas Fiber Network, L.L.C. the authority to construct, maintain or operate any facility or related appurtenance on property owned by the City outside of the Public Right-of-Way.

(c) The authority of Kansas Fiber Network, L.L.C. to use and occupy the Public Right-of-Way shall always be subject and subordinate to the reasonable public health, safety and welfare requirements and regulations of the City. The City may exercise its home rule powers in its administration and regulation related to the management of the Public Right-of-Way provided that any such exercise must be competitively neutral and may not be unreasonable or discriminatory.

(d) The City shall have the authority to prohibit the use or occupation of a specific portion of Public Right-of-way subject to the procedures of K.S.A. 17-1902, as amended.

(e) If there is an emergency necessitating response work or repair, Kansas Fiber Network, LLC may begin that repair or emergency response work or take any action required under the circumstances, provided that Kansas Fiber Network, L.L.C. notifies the City promptly after beginning the work and timely thereafter meets any permit or other requirement had there not been such an emergency.

(f) Kansas Fiber Network, L.L.C. shall repair all damage to the Public Right-of-Way caused by the activities of Kansas Fiber Network, L.L.C., or of any agent affiliate, employee, or subcontractor of Kansas Fiber Network, L.L.C., while occupying, installing, repairing or maintaining facilities in a Public Right-of-way and to return the Public Right-of-Way to its functional equivalence before the damage pursuant to the reasonable requirements and specifications of the City. If Kansas Fiber Network, L.L.C. fails to make the repairs required by the City, the City may affect those repairs and charge Kansas Fiber Network, L.L.C. the cost of those repairs. If the City incurs damages as a result of a violation of this subsection, then the City shall have the remedies provided in K.S.A, 17-1902, as amended.

(g) When requested by the City, in order to accomplish construction and maintenance activities directly related to improvements for the health, safety and welfare of the public, Kansas Fiber Network, L.L.C. promptly shall remove its facilities from the Public Right-of-way or shall relocate or adjust its facilities within the Public Right-of-way at no cost to the City. Such relocation or adjustment shall be completed as soon as reasonably possible within the time set forth in any request by the City for such relocation or adjustment. Any damages suffered by the City or its contractors as a result of Kansas Fiber Network, L.L.C. failure to timely relocate or adjust its facilities shall be borne by Kansas Fiber Network, L.L.C.

(h) Kansas Fiber Network, L.L.C. shall coordinate the placement of its Facilities in Public Right-of-Way in a manner that minimizes adverse impact on public improvements, as reasonably determined by the City Engineer.

(i) In granting this contract franchise ordinance the City makes no express or implied representation or warranty regarding its rights to authorize the installation or construction of Facilities on any particular segment of the Public Right-of-Way. The burden and responsibility for making all such determinations in advance of construction or installation shall be entirely upon Kansas Fiber Network, L.L.C.

(j) Except as may otherwise be provided by other applicable ordinances of the City, where reasonable and appropriate and where adequate Public Right-of-Way exist; Kansas Fiber Network, L.L.C. shall place above-ground Facilities underground in conjunction with City capital improvement projects and/or at specific locations

requested by the City provided that such placement is practical, efficient, and economically feasible.

(k) When Kansas Fiber Network, L.L.C. is allowed to place Facilities above ground under this section, Kansas Fiber Network, L.L.C. may attach its Facilities to an existing utility pole pursuant to a properly executed agreement with the pole owner, provided, however, that any necessary replacement of the pole in order to accommodate the attachment shall be subject to the proper exercise of the City's police powers, and in no instance shall a Franchisee erect a new pole within an existing aerial pole line absent the City's prior authorization. Above-ground pedestals, vaults, or other above-ground Facilities, may be installed only if approved by the City where alternative underground facilities are not feasible or where underground requirements are otherwise waived pursuant to this Section, and shall generally be located behind the sidewalk where feasible and shall be screened from public view. Facilities in rear lot easements shall be exempt from the screening requirements except when they are within fifty feet of a street or highway. The underground requirements of this subsection shall not apply to the maintenance and repair of existing Facilities, as determined by the City Engineer.

(l) Kansas Fiber Network, L.L.C. shall take all reasonable measures necessary to maintain accurate as completed records in electronic format, of all Facilities constructed, reconstructed, or relocated in the Public Right-of-Way of arterial streets (as designated by City of Wichita Code § 11.96.100) after the date hereof. Such Facilities shall be horizontally and vertically located at least every 100 feet and at any other alignment change. All points of Facilities shall be horizontally located from street centerline, or section or quarter section lines or corners. Vertical locations on all points of Facilities shall consist of elevations in either City datum or United States Geological Survey datum. Kansas Fiber Network, L.L.C. shall cooperate promptly and fully with the City and take all reasonable measures necessary to provide accurate and complete information regarding the nature and horizontal and vertical location of its Facilities located within Right-of-Way when requested by the City or its authorized agents for a Public Project. Such location and identification shall be at the sole expense of Kansas Fiber Network, L.L.C. without expense to the City, its employees, agents, or authorized contractors.

SECTION 7. Indemnity and Hold Harmless. (a) It shall be the responsibility of Kansas Fiber Network, L.L.C. to take adequate measures to protect and defend its Facilities in the Public Right-of-Way from harm or damage. If Kansas Fiber Network, L.L.C. fails to accurately or timely locate Facilities when requested, it has no claim for costs or damages against the City and its authorized contractors unless such party is responsible for the harm or damage by its negligence or intentional conduct. The City and its authorized contractors shall be responsible to take reasonable precautionary measures including calling for utility locations and observing marker posts when working near Kansas Fiber Network, L.L.C. Facilities.

(b) Kansas Fiber Network, L.L.C. shall indemnify and hold the City and its officers and employees harmless against any and all claims, lawsuits, judgments, costs, liens, losses, expenses, fees (including reasonable attorney fees and costs of defense), proceedings, actions, demands, causes of action, liability and suits of any kind and nature, including personal or bodily injury (including death), property damage or other harm for which recovery of damages is sought, to the extent that it is found by a court of competent jurisdiction to be caused by the negligence of the provider, any agent, officer, director, representative, employee, affiliate or subcontractor of the provider, or their respective officers, agents, employees, directors or representatives, while installing, repairing or maintaining facilities in a Public Right-of-way. The indemnity provided by this subsection does not apply to any liability resulting from the negligence of the City, its officers, employees, contractors or subcontractors. If Kansas Fiber Network, L.L.C., and the City are found jointly liable by a court of competent jurisdiction, liability shall be apportioned comparatively in accordance with the laws of this state without, however, waiving any

governmental immunity available to the City under state law and without waiving any defenses of the parties under state or federal law. This section is solely for the benefit of the City and Kansas Fiber Network, L.L.C., and does not create or grant any rights, contractual or otherwise, to any other person or entity. Kansas Fiber Network, L.L.C. or the City shall promptly advise the other in writing of any known claim or demand against Kansas Fiber Network, L.L.C. or the City related to or arising out of the Kansas Fiber Network, L.L.C. activities in a Public Right-of-way.

SECTION 8. Insurance Requirement and Performance Bond. (a) During the term of this Franchise, Kansas Fiber Network, L.L.C shall obtain and maintain insurance coverage at its sole expense, with financially reputable insurers that are licensed to do business in the state of Kansas. Should Kansas Fiber Network, L.L.C. elect to use the services of an affiliated captive insurance company for this purpose, that company shall possess a certificate of authority from the Kansas Insurance Commissioner. Kansas Fiber Network, L.L.C. shall provide not less than the following insurance:

(1) Workers' compensation as provided for under any worker's compensation or similar law in the jurisdiction where any work is performed with an employers' liability limit equal to the amount required by law.

(2) Commercial general liability, including coverage for contractual liability and products completed operations liability on an occurrence basis and not a claims made basis, with a limit of not less than Two Million Dollars ($2,000,000) combined single limit per occurrence for bodily injury, personal injury, and property damage liability. The City shall be included as an additional insured with respect to liability arising from Kansas Fiber Network, L.L.C. operations under this ordinance.

(b) As an alternative to the requirements of subsection (a), Kansas Fiber Network, L.L.C. may demonstrate to the satisfaction of the City that it is self-insured and as such Kansas Fiber Network, L.L.C. has the ability to provide coverage in an amount not less than one million dollars ($1,000,000) per occurrence and two million dollars ($2,000,000) in aggregate, to protect the City from and against all claims by any person whatsoever for loss or damage from personal injury, bodily injury, death or property damage occasioned by Kansas Fiber Network, L.L.C., or alleged to so have been caused or occurred.

(c) Kansas Fiber Network, L.L.C. shall, as a material condition of this Franchise, prior to the commencement of any work and prior to any renewal thereof, deliver to the City a certificate of insurance or evidence of self-insurance, satisfactory in form and content to the City, evidencing that the above insurance is in force and will not be cancelled or materially changed with respect to areas and entities covered without first giving the City thirty (30) days prior written notice. Kansas Fiber Network, L.L.C. shall make available to the City on request the policy declarations page and a certified copy of the policy in effect, so that limitations and exclusions can be evaluated for appropriateness of overall coverage.

(d) Kansas Fiber Network, L.L.C. shall, as a material condition of this Franchise, prior to the commencement of any work and prior to any renewal thereof, deliver to the City a performance bond in the amount of one hundred thousand dollars ($100, 000,) payable to the City to ensure the appropriate and timely performance in the construction and maintenance of facilities located in the right-of-way. Said bond shall be maintained in full force and effect for the term of such franchise and any renewal thereof. In the event Kansas Fiber Network, L.L.C. fails within a reasonable time after notice that it is not in compliance with one or more of the provisions of this franchise issued to it, the City shall recover, jointly and severally from the principal and surety of such bond, any damages or loss suffered by the City as a result thereof, including the full amount of any compensation, indemnification, or cost of removal or abandonment of any property of Kansas Fiber Network, L.L.C, as prescribed hereby which may be in default, plus

a reasonable allowance for attorney's fees and costs up to the full amount of the bond. The required performance bond must be with good and sufficient sureties, issued by a surety company authorized to transact business in the State of Kansas, and satisfactory to the City Attorney in form and substance.

SECTION 9. Non-discrimination. Kansas Fiber Network, L.L.C. will not, on the grounds of race, color, sex, religion, national origin, ancestry, disability, or age, discriminate or permit discrimination against any person in the use of the Public Right-of-Way or in activities under this Franchise.

SECTION 10. Transfer and Assignment. This Franchise shall be assignable in accordance with the laws of the State of Kansas. Kansas Fiber Network, L.L.C. shall provide the City written notice of any transfer or assignment within thirty (30) days, including notice of the name and address of the assignee and contact information.

SECTION 11. Expiration or Termination of Contract Franchise Ordinance. Upon expiration of this contract franchise ordinance, whether by lapse of time, by agreement between Kansas Fiber Network, L.L.C. and City, or by forfeiture thereof, Kansas Fiber Network, L.L.C. shall have the right to remove any and all of its Facilities within a reasonable time after such expiration or termination or to transfer any and all of its Facilities to another entity authorized to place Facilities in the Public Right-of-Way. It shall be the duty of the Company, immediately upon any such removal, to restore the Public Right-of-Way from which said Facilities are removed to as good a condition as the same were before said removal was effected.

SECTION 12. Notices. Except in emergencies, all notices by either the City or the Company to the other shall be made by personal delivery, depositing such notice in the U.S. Mail, Certified Mail, return receipt requested, or by facsimile. Any notice served by Certified Mail, return receipt requested, shall be deemed delivered five (5) calendar days after the date of such deposit in the U.S. Mail unless otherwise provided. Any notice given by facsimile is deemed received by the next business day. "Business day" for purposes of this section shall mean Monday through Friday, City and Kansas Fiber Network, L.L.C. observed holidays excepted. Emergency notices shall be provided by telephone, with written notice immediately following by facsimile.

Notices shall be addressed to the City as follows:

City Clerk
455 N. Main Street
Wichita, Kansas 67202-1635

Notice to Kansas Fiber Network, L.L.C. shall be addressed to the Company as follows:

Kansas Fiber Network, L.L.C.
Attn: Steven Dorf, President and General Manager
121 N. Mead, Suite 200
Wichita, KS 67202

Notice shall be given as required by the terms of this contract franchise ordinance. Notice shall be provided to the above-named addressees unless directed otherwise in writing by City or Kansas Fiber Network, L.L.C. Both Kansas Fiber Network, L.L.C. and the City shall provide to the other contract information with telephone and facsimile number for use in emergencies.

SECTION 13. Confidentiality. Information provided to the City by Kansas Fiber Network, L.L.C. under K.S.A. 12-2001 and/or this contract franchise ordinance shall be governed by confidentiality procedures in compliance with K.S.A. 45-215 and 66-1220a, et seq., and amendments thereto. In the event the City is required by law to disclose such information, the City shall provide Kansas Fiber Network, L.L.C. ten (10) days advance notice of its intent to disclose such information and shall take such action as may be reasonably necessary to cooperate with Kansas Fiber Network, L.L.C. to safeguard such information. Kansas Fiber Network, L.L.C. agrees to indemnify and hold the City harmless from any and all penalties or costs, including attorney's fees, arising from the actions of Kansas Fiber Network, L.L.C., or of the City at the written request of Kansas Fiber Network, L.L.C., in seeking to safeguard the confidentiality of informa-

tion provided by Kansas Fiber Network, L.L.C. to the City under this contract franchise ordinance.

SECTION 14. Conditions of Franchise. This contract franchise ordinance is granted and accepted under and subject to all applicable laws and under and subject to all of the orders, rules, and regulations now or hereafter adopted by governmental bodies now or hereafter having jurisdiction, including all permit requirements, fee payments, and all other City codes and ordinances in effect as of the date of this Ordinance or hereinafter adopted to the extent not in contravention of state or federal law. Each and every provision hereof shall be subject to acts of God, fires, strikes, riots, floods, war and other causes beyond Kansas Fiber Network, L.L.C. or the City's control.

SECTION 15. Acceptance. Prior to the effective date of this ordinance Kansas Fiber Network, L.L.C. shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this ordinance, which acceptance shall be duly acknowledged before an officer authorized by law to administer oaths. When so accepted the ordinance and acceptance shall constitute a contract between the City and Kansas Fiber Network, L.L.C. subject to the provisions of the laws of the state of Kansas.

SECTION 16. Reservation of Rights. (a) The City specifically reserves its right and authority as a public entity with responsibilities towards its citizens, to participate to the full extent allowed by law in proceedings concerning the Company's rates and services to ensure the rendering of efficient Telecommunications Service at reasonable rates, and the maintenance of the Company's property in good repair.

(b) In granting its consent hereunder, the City does not in any manner waive its regulatory or other rights and powers under and by virtue of the laws of the State of Kansas as the same may be amended, its Home Rule powers under the Constitution of the State of Kansas, nor any of its rights and powers under or by virtue of present or future ordinances of the City.

(c) In granting its consent hereunder, Kansas Fiber Network, L.L.C. does not in any manner waive its regulatory or other rights and powers under and by virtue of the laws of the State of Kansas as the same may be amended, or under the Constitution of the State of Kansas, nor any of its rights and powers under or by virtue of present or future ordinances of the City.

SECTION 17. Failure to Enforce. The failure of either party to insist in any one or more instances upon the strict performance of any one or more of the terms or provisions of this contract franchise ordinance shall not be construed as a waiver or relinquishment for the future of any such term or provision, and the same shall continue in full force and effect. No waiver or relinquishment shall be deemed to have been made by either party unless said waiver or relinquishment is in writing and signed by the parties.

SECTION 18. Severability. If any clause, sentence, or section of this contract franchise ordinance, or any portion thereof, shall be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of the remainder, as a whole or any part thereof, other than the part declared to be invalid; provided, however, the City or Kansas Fiber Network, L.L.C. may elect to declare that the entire agreement is invalidated if the portion declared invalid is, in the judgment of the City or Kansas Fiber Network, L.L.C., an essential part of this contract franchise ordinance.

SECTION 19. Governing Law and Venue. (a) The contract franchise ordinance and the rights herein granted are subject to the provisions of existing federal and state laws and those hereafter enacted pertaining to the granting of franchises.

(b) The obligations and undertakings of both parties hereto shall be performed at Wichita, Sedgwick County, Kansas. In the event that any legal proceeding is brought to enforce the terms of this franchise, the same shall be brought in State or Federal courts, as appropriate, having jurisdiction for Sedgwick County, Kansas.

SECTION 20. Effective Date of Ordinance. This contract franchise ordinance shall be effective April 12, 2011, upon its final passage and publication once in the official City paper.

PASSED AND APPROVED by the governing body of Wichita, Kansas, this date April 12, 2011.

ATTEST:

/s/ Carl Brewer
Mayor

/s/ Karen Sublett
City Clerk

APPROVED AS TO FORM:

/s/ Gary E. Rebenstorf
Director of Law

KANSAS FIBER NETWORK, LLC
Ordinance No. 50-426

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS MODIFYING ORDINANCE 48-982, GRANTING KANSAS FIBER NETWORK, LLC, A KANSAS LIMITED LIABILITY COMPANY, A FIBER OPTIC CABLE FRANCHISE THE TERMS OF SAID GRANT AND RELATING THERETO.

BE IT ORDERED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

MODIFICATION OF FRANCHISE AGREEMENT

Franchise Ordinance 48-982, dated April 15, 2011, is modified as follows:

SECTION 1. Definitions. (4) "Franchise Fee" means the Access Line Fee, fee on Gross Receipts or fee on gross revenues established under this ordinance.

(11) "Telecommunications Service" means providing the means of transmission between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information as sent and received. For the avoidance of doubt, a "broadband internet access service" (or, "BIAS") is a Telecommunications service under this ordinance.

SECTION 5. Compensation. (a) In consideration of Contract Franchise Ordinance 48-982, Kansas Fiber Network, LLC shall remit to the City of Wichita a Franchise Fee in the amount of, the greater of (A) five percent (5%) of gross revenues derived from services provided within the corporate boundaries of the City of Wichita which include: (i) recurring revenue derived from Kansas Fiber Network's Voice over Internet Protocol ("VoIP") service for business and residence; (ii) recurring revenue for broadband internet access service ("BIAS") for business and residence; and, (iii) recurring revenue derived from leasing Kansas Fiber Network's dark fiber and indefeasible rights of use ("IRU") fees; or (B) $1,418.75 per month.

(b) The first Franchise Fee payment shall be due and payable sixty-one (61) calendar days after the effective date of this agreement and upon a monthly basis thereafter due on the 15th of the month, or if the 15th falls on a weekend or holiday, the first business day following. If any Franchise Fee, or any portion thereof, is not postmarked or delivered on or before the due date, interest thereon shall accrue from the due date until received, at the applicable statutory interest rate.

(c) Kansas Fiber Network, L.L.C. shall remit Franchise Fees in the amount of $51,075.00 as Franchise Fee payment under franchise ordinance 48-982 for years 2014, 2015, 2016. This payment is due and payable sixty-one (61) calendar days after the effective date of this modification of franchise agreement.

(d) The Franchise Fee is compensation for use of the Public Right of Way and shall in no way be deemed a tax of any kind.

(e) The Franchise Fee is in addition to, and not in lieu of, the City's Telecommunications Service Occupation Tax under Wichita City Code section 3.90.020. Kansas Fiber Network, LLC shall receive credit toward total Franchise Fee payment pursuant to Wichita City Code section 3.93.350 for occupation tax paid.

(f) The City or its designated representatives shall have the right to examine, upon written notice to Kansas Fiber Network, LLC no more often than once per calendar year, those records necessary to verify the correctness of the Franchise Fees.

All other provisions and terms in Franchise Ordinance 48-982 are unchanged and remain in effect.

IN WITNESS WHEREOF, the undersigned have caused this Franchise Agreement to be executed as of the date noted above.

CITY OF WICHITA

/s/ _____
Jeff Longwell-Mayor

APPROVED AS TO FORM:

/s/ _____
Jennifer Magaña
City Attorney and Director of Law

ATTEST:

/s/ _____

Karen Sublett
City Clerk

KANSAS FIBER NETWORK, LLC

/s/ _____

Bob Wallentine
Vice President of Network Planning & Development

(Ord. No. 50-426, 3-10-2017)

ARTICLE V. TELECOMMUNICATIONS (FIBER OPTIC)

AT&T COMMUNICATIONS, INC. Ordinance No. 40-505

AN ORDINANCE GRANTING TO AT&T COMMUNICATIONS, INC., THE RIGHT AND PRIVILEGE TO CONSTRUCT, OPERATE, AND MAINTAIN A FIBER OPTIC TELECOMMUNICATION SYSTEM IN THE CITY OF WICHITA, KANSAS, PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO.

WHEREAS, AT&T Communications, Inc., as agent for the American Telephone and Telegraph Company and for AT&T Communications of the Southwest, Inc., hereinafter referred to as "AT&T," desires to use certain public right-of-way of the City of Wichita for the purpose of construction, maintenance, and operation of a fiber optic telecommunication system pursuant to the provisions of the laws of the State of Kansas; and

WHEREAS, the City of Wichita finds such use to be in the public interest and is willing to enter into an agreement to allow AT&T to use the public right-of-way for such purpose; and

WHEREAS, the Agreement giving such right and privilege is to be granted by ordinance pursuant to K.S.A. 12-2001, et seq.,

NOW THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

Section 1. Definitions. For purposes of this ordinance, the following words and phrases shall have the meanings given herein:

"AT&T" or "Company"—AT&T Communications, Inc., as agent for American Telephone and Telegraph Company and AT&T Communications of the Southwest, Inc.

"City"—the City of Wichita, Kansas.

"Facilities"—telephone and telecommunication lines, conduits, wires, cables, pipes, poles, towers, vaults, and appliances, either under or above ground.

"Public improvement"—any existing or contemplated public facility, building, or capital improvement project, including without limitation streets, alleys, sidewalks, sewer, water, drainage, right-of-way improvements, and public projects.

"Right-of-way"—present and future streets, alleys, rights-of-way, and public easements, including easements dedicated in plats, of the City of Wichita, Kansas.

Section 2. Grant. This ordinance shall pertain to AT&T's construction, maintenance, and operation of its facilities in, through and along that right-of-way which is part of the route described in Attachment "A" hereto for the purpose of supplying telecommunications service on a non-exclusive basis in the City and to the inhabitants thereof for the full term hereof; subject, however, to the terms and conditions herein set forth.

Section 3. Use of right-of-way. In the use of right-of-way under this ordinance, AT&T shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power and is subject to all applicable laws, orders, rules and regulations adopted by governmental bodies now or hereafter having jurisdiction. In addition, AT&T shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City relating to permits and fees, sidewalk and pavement cuts, utility location, construction coordination, beautification, and other requirements on the use of the right-of-way and shall comply with the following:

(a) AT&T's use of right-of-way shall in all matters be subordinate to the City's use of the right-of-way for any public purpose. AT&T shall coordinate the placement of its facilities in a manner which minimizes adverse impact on public improvements, as reasonably determined by the City. Where placement is not otherwise regulated, the facilities shall be placed with adequate clearance from such public improvements so as not to impact or be impacted by such public improvement.

(b) All earth, materials, sidewalks, paving, crossings, utilities, public improvements, or improvements of any kind injured or removed by AT&T in its activities under this ordinance shall be fully repaired or replaced promptly by AT&T at its sole expense and to the reasonable satisfaction of the City or owner thereof.

(c) All facilities constructed, reconstructed, or relocated in the right-of-way after the date hereof shall be placed underground unless otherwise agreed to by the City and in steel conduit in the right-of-way and rigid conduit when otherwise within the corporate limits of the City.

(d) AT&T shall keep and maintain accurate records and as-built drawings depicting accurate hori-

Section 12. Acceptance of Terms by Grantee. Within sixty (60) days after the final passage and approval of this ordinance, Grantee shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this ordinance, which acceptance shall be duly acknowledged before some officer authorized by law to administer oaths; and when so accepted the ordinance and acceptance shall constitute a contract between Grantor and Grantee subject to the provisions of the laws of the state of Kansas.

Section 13. Conditions of Franchise. This contract, franchise, grant and privilege is granted and accepted under and subject to all applicable laws and under and subject to all of the orders, rules, and regulations now or hereafter adopted by governmental bodies now or hereafter having jurisdiction, and each and every provision hereof shall be subject to acts of God, fires, strikes, riots, floods, war and other causes beyond Grantee's control. This franchise shall not be exclusive.

Section 14. Invalidity of Ordinance. If any clause, sentence, or section of this ordinance shall be held to be invalid, it shall not affect the remaining provisions of this ordinance.

Section 15. Effective Date of Ordinance. This ordinance shall take effect and be in force from and after its passage and publication as required by law.

Section 17. Repeal of Conflicting Ordinances. Ordinance No. 38-076, which was heretofore granted to this Grantee, and all other such ordinances and resolutions or parts thereof inconsistent or in conflict with the terms hereof, shall be canceled, annulled, repealed, and set aside, provided further, that this ordinance shall not take effect or be in force until it shall have been read in full at three regular weekly meetings of the governing body of the City of Wichita, nor until and immediately after its final passage it shall be published in the official city paper once each week for two consecutive weeks, and such ordinance shall not take effect or be in force until and after the expiration of sixty (60) days from the date of its final passage nor if, pending the final passage and taking effect of said ordinance, an election shall be called as provided by law, then said ordinance shall not take effect or become in force until the same shall have been duly approved as by law provided.

PASSED AND APPROVED by the governing body of Wichita, Kansas, this September. 29, 1998.

Bob Knight, Mayor

ATTEST: (SEAL)

Pat Burnett, City Clerk

Approved as to Form:

Gary E. Rebenstorf, Director of Law

KIN NETWORK, INC.
Ordinance No. 43-504

AN ORDINANCE GRANTING TO KIN NETWORK, INC., THE RIGHT AND PRIVILEGE TO CONSTRUCT, OPERATE, AND MAINTAIN A FIBER OPTIC TELECOMMUNICATION SYSTEM IN THE CITY OF WICHITA, KANSAS, AND PRESCRIBING THE TERMS OF SAID GRANT.

WHEREAS, The City of Wichita is the owner of certain public right-of-way; and

WHEREAS, KIN Network, Inc., hereinafter referred to as "KINNET," desires to use certain public right-of-way of the City of Wichita for the purpose of construction, maintenance, and operation of a fiber optic telecommunication system pursuant to the provisions of the laws of the State of Kansas; and

WHEREAS, the City of Wichita finds such use to be in the public interest and is willing to enter into an agreement to allow KINNET to use the public right-of-way for such purpose;

NOW THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

Section 1. Definitions. For purposes of this ordinance, the following words and phrases shall have the meanings given herein:

"KINNET" or "Company"-KIN Network, Inc.

"City"-The City of Wichita, Kansas.

"Facilities"-Telephone and telecommunication lines, conduits, wires, cables, pipes, poles, towers, vaults, and appliances, either under or above ground.

"Public improvement"-Any existing or contemplated public facility, building, or capital improvement project, including without limitation streets, alleys, sidewalks, sewer, water, drainage, right-of-way improvement, and public projects.

"Public project"-Any project planned or undertaken by the City or any governmental entity for construction, reconstruction, maintenance, or repair of public facilities or public improvements, or any other purpose of a public nature.

"Right-of-way"-Present and future streets, alleys, rights-of-way, and public easements, including easements dedicated in plats of the City of Wichita, Kansas.

Section 2. Grant. This ordinance shall pertain to KINNET's construction, maintenance, and operation of its facilities for a fiber optic telecommunication system in the City in, through and along that right-of-way which is part of the route described in Attachment "A" hereto as contemplated by this ordinance on a non-exclusive basis for the full term hereof; subject, however, to the terms and conditions herein set forth.

The grant under this ordinance specifically excludes the right to provide local "telephone exchange service" as defined by 47 U.S.C. § 153(47) and open video systems or cable service as defined by the Telecommunications Act of 1996 to customers within the City, and further excludes the right within the City to provide local telecommunications services for a fee directly to the public or to such classes of users as to be effectively available directly to the public. In the event that KINNET shall in the future provide such service or derive revenue from such service within the City of Wichita, KINNET shall apply to the City for the right and privilege to provide such service in accordance with the laws of the State of Kansas. KINNET represents that at the present time it is not providing such excluded services in the City of Wichita.

Section 3. Use of Right-of-Way. In the use of right-of-way under this ordinance, KINNET shall be subject to all rules, regulations, policies, resolutions and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power and is subject to all applicable laws, orders, rules and regulations adopted by governmental bodies now or hereafter having jurisdiction. In addition, KINNET shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City relating to permits and fees, sidewalk and pavement cuts, utility location, construction coordination, beautification, and other requirements on the use of the right-of-way and shall comply with the following:

(a) KINNET's use of right-of-way shall in all matters be subordinate to the City's use of

the right-of-way for any public purpose. KINNET shall coordinate the placement of its facilities in a manner which minimizes adverse impact on public improvements, as reasonably determined by the City. Where placement is not otherwise regulated, the facilities shall be placed with adequate clearance from such public improvements so as not to impact or be impacted by such public improvement.

(b) All earth, materials, sidewalks, paving, crossings, utilities, public improvements, or improvements of any kind injured or removed by KINNET in its activities under this ordinance shall be fully repaired or replaced promptly by KINNET at its sole expense and to the reasonable satisfaction of the City or owner thereof.

(c) All facilities constructed, reconstructed, or relocated in the right-of-way after the date hereof shall be placed underground unless otherwise agreed to by the City and in steel conduit in the right-of-way and rigid conduit when otherwise within the corporate limits of the City.

(d) KINNET shall keep and maintain accurate records and as-built drawings depicting accurate horizontal and vertical location of all facilities constructed, reconstructed, or relocated in the street right-of-way after the date hereof. All points of facilities shall be horizontally located from street centerline, or section or quarter section lines or corners. Vertical locations on all points of facilities shall consist of elevations in either City datum or United States Geological Survey datum.

(e) Prior to construction, reconstruction or relocation of any facilities in the right-of-way, KINNET shall submit to the City Engineer for approval plans and specifications of the proposed installation. Such approval shall not be unreasonably withheld, delayed or conditioned.

(f) KINNET shall cooperate promptly and fully with the City and take all measures necessary to provide accurate and complete information regarding the nature and locations, both horizontal and vertical, of its facilities located within right-of-way when requested by the City or its authorized agents for a public project. Such location and identification shall be at the sole expense of KINNET without expense to the City, its employees, agents, or authorized contractors. KINNET shall have a person familiar with the facilities who is responsible for timely satisfying information needs of the City and other users of the right-of-way.

(g) KINNET shall promptly relocate or adjust any facilities located in right-of-way for a public project. Such relocation or adjustment shall be performed by KINNET at its sole expense without expense to the City, its employees, agents, or authorized contractors and shall be specifically subject to rules and regulations of the City not inconsistent with this ordinance pertaining to such.

(h) It shall be the sole responsibility of KINNET to take adequate measures to protect and defend its facilities in the right-of-way from harm or damage. If KINNET fails to accurately or timely locate facilities when requested, it has no claim for costs or damages against the City and its authorized contractors or any other party authorized to be in the right-of-way except to the extent such party is responsible for the harm or damage caused by its negligence or intentional conduct.

(i) KINNET shall notify the City not less than three (3) working days in advance of any construction, reconstruction, repair, or relocation of facilities which would require any street closure which reduces traffic flow to less than two lanes of moving traffic. Except in the event of an emergency, as reasonably determined by KINNET, no such closure shall take place without such notice and prior authorization from the City. The City shall follow its policies in the grant or denial of such authority, which shall not be unreasonably delayed. In addition, all work performed in the traveled way or which in

any way impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected. Such signing shall be in conformance with the latest edition of the Federal Highway Administration's Standards and Guideline for Work Zone Traffic Control, unless otherwise agreed to by the City.

(j) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the facilities in the right-of-way shall be in accordance with applicable present and future federal, state, and City law and regulation, including but not limited to the most recent editions of the National Electrical Code, the National Electrical Safety Code, and the Fiber Optic Cable Installation Standard of the Telecommunications Industry Committee, or such substantive equivalents as may hereafter be adopted or promulgated. It is understood that the standards established in this paragraph are minimum standards and the requirements established or referenced in this ordinance may be additional to or stricter than such minimum standards.

(k) KINNET shall not lease or sublease (including but not limited to the lease of conduit space) or otherwise make available any of the facilities in the right-of-way to any other entity without the express written consent of the City, except KINNET may make the capacity of its facilities available to other entities in the ordinary conduct of its business as a fiber optic telecommunications company. The purpose of this provision is to allow and encourage the sharing of space in the right-of-way so long as sublessees or users are authorized by the City to use the right-of-way.

Nothing in this section is intended or shall be interpreted to eliminate KINNET's right to use the right-of-way for the purposes of this ordinance.

Section 4. Grant of Easements. As partial consideration for this ordinance, KINNET agrees to grant to the City without additional cost, as may be reasonably required by the City for public projects, such easements as KINNET may have in property that has been or hereafter is conveyed to the City. When necessary, the City shall provide KINNET with new locations within the right-of-way for KINNET's facilities located in such easements, which relocation shall be at no cost to the City. It is understood that such grant or relocation and the costs associated therewith are the responsibility of KINNET but the costs thereof may be borne by others in accordance with the Subdivision Regulations of the City or by agreement between KINNET and parties owning or conveying property. KINNET shall not be required to make the payments herein relative to any easement granted under this section but shall be subject to all other provisions of this ordinance.

Section 5. Indemnity and Hold Harmless. KINNET shall hold and save the City, its officers, employees, agents, and authorized contractors on public improvements, harmless from and against all claims, damages, expense, liability, and costs including attorney fees, which may be occasioned by KINNET in any manner, solely or in part by KINNET's occupancy of right-of-way, except to the extent otherwise specified in paragraph 3(h). In the event a claim shall be made or an action shall be instituted against the City growing out of such occupancy of the right-of-way by facilities of KINNET, then upon notice by the City to KINNET, KINNET will assume liability for the defense of such actions at the cost of KINNET, subject to the option of the City to appear and defend, at its own cost, any such case.

Section 6. Payments and Charges. The payments herein provided shall be in lieu of all other licenses, taxes, charges, fees or impositions, except that the usual general property taxes and special ad valorem property taxes, permits and fees including charges for pavement cuts or other charges based on restoring premises to their same condition, or charges outside the scope of this ordinance which are not in any way connected with telecommunications business, as such, will be imposed on KINNET, and are not covered by the payments herein.

Section 7. Compensation to City. KINNET shall pay to the City as compensation for the right and privilege granted in this ordinance the amount of Three Thousand and no/100 Dollars ($3,000), one time on the effective date of this ordinance. In addition, KINNET shall pay an annual sum equal to the rate of Two and 50/100 Dollars ($2.50) per linear foot for the right-of-way described in Attachment "A". Such annual payments shall be made on the effective date of the ordinance and on the anniversary date each year thereafter. All payments shall include an additional charge of one and one-half percent (11/2%) per month compounded daily retroactive to the date payment was due when made more than thirty days after the date due. The City and KINNET may hereafter establish such periodic payment procedure as the parties mutually agree.

Section 8. Attachment to Facilities. Nothing in this ordinance shall be construed to require or permit any telephone, electric light or power wire attachments by either the City or KINNET on the facilities of the other. If such attachments are desired by the City or KINNET, then a separate non-contingent agreement shall be prerequisite to such attachments.

Section 9. Forfeiture of Grant and Privilege. In case of failure on the part of KINNET, its successors and assigns, to comply with any of the provisions of this ordinance, or if KINNET, its successors and assigns, should do or cause to be done any act or thing prohibited by or in violation of the terms of this ordinance, KINNET, its successors and assigns, shall forfeit all rights and privileges granted by this ordinance and all rights hereunder shall cease, terminate and become null and void, provided that said forfeiture shall not take effect until the City of Wichita shall carry out the following proceedings. Before the City proceeds to forfeit said ordinance, as in this section prescribed, it shall first serve a written notice upon KINNET, setting forth in detail in such notice the neglect or failure complained of, and KINNET shall have ninety days thereafter in which to comply with the conditions of this grant and privilege. If at the end of such ninety-day period the City deems that the conditions have not been complied with and that the ordinance is subject to cancellation by reason thereof, the City shall enact a repealing ordinance setting out the grounds upon which said grant and privilege is to be canceled or terminated. If within thirty days after the effective date of said repealing ordinance KINNET shall not have instituted an action, either in the District Court of Sedgwick County, Kansas, or some other court of competent jurisdiction to determine whether or not KINNET has violated the terms of this ordinance and that the ordinance is subject to cancellation by reason thereof, this ordinance shall be canceled and terminated at the end of such thirty-day period. If within such thirty-day period KINNET does institute an action, as above provided, to determine whether or not KINNET has violated the terms of this ordinance and that the ordinance is subject to cancellation by reason thereof and prosecutes such action to final judgment with due diligence, then, in that event, in case the court finds that the ordinance is subject to cancellation by reason of the violation of its terms, this ordinance shall terminate thirty days after such final judgment is rendered. PROVIDED, however, that the failure of KINNET to comply with any of the provisions of this ordinance or the doing or causing to be done by KINNET of anything prohibited by or in violation of the terms of this ordinance shall not be a ground for the forfeiture thereof when such act or omission on the part KINNET is due to any cause or delay beyond the control of KINNET, its successors and assigns, or to bona fide legal proceedings.

Section 10. Rights and Duties of Grantee Upon Expiration of Ordinance. Upon expiration of this ordinance, whether by operation of law, by lapse of time, by agreement between KINNET and the City, or by forfeiture thereof, KINNET shall have the right to remove from public property any and all of its facilities used in its said business within a reasonable time after such expiration, but in such event, it shall be the duty of KINNET immediately upon such removal, to restore the right-of-way from which said facilities are removed to as good condition as the same were before said removal was effected.

Section 11. Term and Termination Date. This ordinance shall be and remain in full force and effect for a period of five (5) years from the

effective date hereof, unless sooner terminated as herein provided. KINNET is granted the option to renew the rights granted in this ordinance for two (2) additional five (5) year terms subject to the re-negotiation of the provisions including conditions of use and compensation. KINNET shall give notice of the exercise of the option at least nine (9) months prior to the expiration of the term. The renewal is subject to the provision of Section 16.

Section 12. Right to Assign. The rights granted by this ordinance inure to the benefit of KINNET, and any parent, subsidiary, affiliate or successor entity now or hereafter existing. The rights shall not be assignable without the express written consent of the governing body of the City, except KINNET may assign its rights under this ordinance to a parent, subsidiary, affiliate or successor entity without such consent. Any required consent is to be evidenced by an ordinance or resolution of the governing body of the City that fully recites the terms and conditions, if any, upon which consent is given.

Section 13. Participation in Utility Location Coordination Council. KINNET shall become a member of and participate in the Utility Location and Coordination Council established by Sections 2.12.1093 through 2.12.1097 of the Code of the City of Wichita, Kansas, and any amendment thereto and shall participate in joint funding with other utilities.

Section 14. Force Majeure. Each and every provision hereof shall be subject to Acts of God, fires, strikes, riots, floods, war and other causes beyond KINNET's control.

Section 15. Invalidity of Ordinance. If any clause, sentence, or section of this ordinance shall be held to be invalid, it shall not affect the remaining provisions of this ordinance.

Section 16. Effectiveness and Acceptance of Ordinance. This ordinance shall not take effect or become in force until it shall have been read in full at three regular weekly meetings of the governing body of the City of Wichita nor until and immediately after its final passage it shall be published in the official city paper once each week for two consecutive weeks, and such ordinance shall not take effect or be in force until and after the expiration of sixty days from the date of its final passage, nor if, pending the final passage and taking effect of said ordinance, an election shall be called as provided by law, in which event said ordinance shall not take effect or become in force until the same shall have been duly approved by the electorate.

Within sixty (60) days after the final passage and approval of this ordinance, KINNET shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this ordinance, which acceptance shall be duly acknowledged before some officer authorized by law to administer oaths; and when so accepted the ordinance and acceptance shall constitute a contract between the City and KINNET subject to the provisions of the laws of the State of Kansas.

PASSED AND APPROVED by the City Council of the City of Wichita, Kansas, this 17th day of June, 1997.

Bob Knight, Mayor

ATTEST: (SEAL)

Pat Burnett, Deputy City Clerk

Approved as to Form:

Gary E. Rebenstorf, Director of Law

ATTACHMENT A

Kinnets route begins at 37th St N and the Union Pacific railroad right-of-way; thence south westerly along said railroad and the Missouri Pacific railroad right-of-way to 9th and Wichita; thence south along Wichita to 1st Street; thence east along 1st to Market & 1st.

The above described route is in the right-of-way where it crosses or is within the following streets and alleys.

25th

Ohio

Alley

Wabash

24th
Alley
Washington
21st
18th
Emporia
17th
Arnold
Topeka
16th
15th
Broadway
14th
Market
13th
Main & 12th
11th
10th
Wichita
1st

ORDINANCE NO. 46-433

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS, GRANTING TO KIN NETWORK, INC., D/B/A ALLTEL COMMUNICATIONS, THE RIGHT AND PRIVILEGE TO CONSTRUCT, OPERATE, AND MAINTAIN A FIBER OPTIC TELECOMMUNICATION SYSTEM IN THE CITY OF WICHITA; AND PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO; INCORPORATING ORDINANCE NO. 43-504 AS AMENDED.

WHEREAS, by Ordinance No. 43-504, passed and approved June 17, 1997, the City of Wichita granted to KIN Network, Inc., the right and privilege to construct, operate, and maintain a fiber optic telecommunication system in the City, and KIN Network, Inc., d/b/a ALLTEL Communications, has exercised its option to renew the rights granted under the ordinance for an additional five (5) year term; and

WHEREAS, KIN Network, Inc., d/b/a ALLTEL Communications, desires to amend its route in the City;

NOW THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

Section 1. This ordinance duplicates and incorporates herein all provisions of Ordinance No. 43-504, including the term of said Ordinance No. 43-504, except as specifically provided herein.

Section 2. The definition of "KINNET" or "Company" shall mean KIN Network, Inc., d/b/a ALLTEL Communications.

Section 3. Attachment "A" shall mean the route as described in Attachment "A" hereto, which replaces Attachment "A" to Ordinance No. 43-504.

Section 4. Ordinance No. 43-504 as incorporated into this ordinance shall remain in full force and effect until August 17, 2007. With the exercise of this first option, the Company retains an option to one additional five (5) year term under the provisions of Section 11 of Ordinance No. 43-504.

Section 5. Prior to the effective date of this ordinance, the Company shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this ordinance, which acceptance shall be duly acknowledged before an officer authorized by law to administer oaths. When so accepted the ordinance and acceptance shall constitute a contract between the City and Company subject to the provisions of the laws of the state of Kansas.

Section 5[6]. This ordinance shall be effective upon its final passage and publication once in the official City paper.

PASSED AND APPROVED by the governing body of Wichita, Kansas, this date 01-04-05.

/s/ CARLOS MAYANS
Mayor

ATTEST:

/s/ KAREN SUBLETT
Clerk

APPROVED AS TO FORM:

/s/ GARY E. REBENSTORF
Director of Law

ATTACHMENT A

ALLTEL route begins at 37th St and the Union Pacific railroad right-of-way. Route goes southwest along UP railroad and Missouri Pacific railroad right-of-way. Along the route, the fiber crosses: 29th street, 25th street, Washington, E 21st, Mead, E 18th street, E 17th street, E Arnold, N Topeka, E 16th street, E 15th street.

The rest of the route is all on city right-of-way and crosses the following streets: Going southwest from N Broadway, crossing the intersections of E 14th street, N Market, E 13th street, E 12th street, N Main, W 11th street, W 10th street.

Going south on N Wichita, crossing the intersections of W 9th street, W 8th street, N Wichita, W Murdock, W Pine, W Elm, W Central, W 3rd street, W 2nd street, W 1st street.

Going east on W 1st street from Wichita street, crossing the intersections of N Water, N Main and enters building at 155 N Market on 1st street between N Main and N Market.

The total length of the route is 7,499'

11/10/03

PUBLISHED IN THE DERBY REPORTER ON 1-2-04

WTG-WEST, INC.
Ordinance No. 41-442

AN ORDINANCE GRANTING TO WTG-WEST, INC. THE RIGHT AND PRIVILEGE TO CONSTRUCT, OPERATE, AND MAINTAIN A FIBER OPTIC TELECOMMUNICATION SYSTEM IN THE CITY OF WICHITA, KANSAS, PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO.

WHEREAS, WTG-West, Inc., hereinafter referred to as "WTG," desires to use certain public right-of-way of the City of Wichita for the purpose of construction, maintenance, and operation of a fiber optic telecommunication system pursuant to the provisions of the laws of the State of Kansas; and

WHEREAS, the City of Wichita finds such use to be in the public interest and is willing to enter into an agreement to allow WTG to use the public right-of-way for such purpose; and

WHEREAS, the Agreement giving such right and privilege is to be granted by ordinance pursuant to K.S.A. 12-2001, et seq.,

NOW THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

Section 1. Definitions. For purposes of this ordinance, the following words and phrases shall have the meanings given herein:

"WTG" or "Company"—WTG-West, Inc.

"City"—the City of Wichita, Kansas.

"Facilities"—Telephone and telecommunication lines, conduits, wires, cables, pipes, poles, towers, vaults, and appliances, either under or above ground.

"Public improvement"—Any existing or contemplated public facility, building, or capital improvement project, including without limitation streets, alleys, sidewalks, sewer, water, drainage, right-of-way improvements, and public projects.

"Public project"—any project planned or undertaken by the City or any governmental entity for construction, reconstruction, maintenance, or repair of public facilities or public improvements, or any other purpose of a public nature.

"Right-of-way"—present and future streets, alleys, rights-of-way, and public easements, including easements dedicated in plats of the City of Wichita, Kansas.

Section 2. Grant. This ordinance shall pertain to WTG's construction, maintenance, and operation of its facilities in, through and along that right-of-way which is part of the route described in Attachment "A" hereto for the purpose of supplying telecommunications service on a non-exclusive basis in the City and to the inhabitants thereof for the full term hereof; subject, however, to the terms and conditions herein set forth.

Section 3. Use of right-of-way. In the use of right-of-way under this ordinance, WTG shall be subject to all rules, regulations, policies, resolutions and ordinances now or hereafter adopted or promulgated by the City in the reasonable exercise of its police power and is subject to all applicable laws, orders, rules and regulations adopted by governmental bodies now or hereafter having jurisdiction. In addition, WTG shall be subject to all rules, regulations, policies, resolutions, and ordinances now or hereafter adopted or promulgated by the City relating to permits and fees, sidewalk and pavement cuts, utility location, construction coordination, beautification, and other requirements on the use of the right-of-way and shall comply with the following:

(a) WTG's use of right-of-way shall in all matters be subordinate to the City's use of the right-of-way for any public purpose. WTG shall coordinate the placement of its facilities in a manner which minimizes adverse impact on public improvements, as reasonably determined by the City. Where placement is not otherwise regulated, the facilities shall be placed with adequate clearance from such public improvements so as not to impact or be impacted by such public improvement.

(b) All earth, materials, sidewalks, paving, crossings, utilities, public improvements,

or improvements of any kind injured or removed by WTG in its activities under this ordinance shall be fully repaired or replaced promptly by WTG at its sole expense and to the reasonable satisfaction of the City or owner thereof.

(c) All facilities constructed, reconstructed, or relocated in the right-of-way after the date hereof shall be placed underground unless otherwise agreed to by the City and in steel conduit in the right-of-way and rigid conduit when otherwise within the corporate limits of the City.

(d) WTG shall keep and maintain accurate records and as-built drawings depicting accurate horizontal and vertical location of all facilities constructed, reconstructed, or relocated in the street right-of-way after the date hereof. All points of facilities shall be horizontally located from street centerline, or section or quartersection lines or comers. Vertical locations or all points of facilities shall consist of elevations in either City datum or United States Geological Survey datum.

(e) Prior to construction, reconstruction or relocation of any facilities in the right-of-way, WTG shall submit to the City Engineer for approval plans and specifications of the proposed installation. Such approval shall not be unreasonably withheld, delayed or conditioned.

(f) WTG shall cooperate promptly and fully with the City and take all measures necessary to provide accurate and complete information regarding the nature and locations, both horizontal and vertical, of its facilities located within right-of-way when requested by the City or its authorized agents for a public project. Such location and identification shall be at the sole expense of WTG without expense to the City, its employees, agents, or authorized contractors. WTG shall have a person familiar with the facilities who is responsible for timely satisfying information needs of the City and other users of the right-of-way.

(g) WTG shall promptly relocate, or adjust any facilities located in right-of-way for a public project. Such relocation or adjustment shall be performed by WTG at its sole expense without expense to the City, its employees, agents, or authorized contractors and shall be specifically subject to rules and regulations of the City not inconsistent with this ordinance pertaining to such.

(h) It shall be the sole responsibility of WTG to take adequate measures to protect and defend its facilities in the right-of-way from harm or damage. If WTG fails to accurately or timely locate facilities when requested, it has no claim for costs or damages against the City and its authorized contractors or any other party authorized to be in the right-of-way except to the extent such party is responsible for the harm or damage caused by its negligence or intentional conduct.

(i) WTG shall notify the City not less than three (3) working days in advance of any construction, reconstruction, repair, or relocation of facilities which would require any street closure which reduces traffic flow to less than two lanes of moving traffic. Except in the event of an emergency, as reasonably determined by WTG, no such closure shall take place without such notice and prior authorization from the City. The City shall follow its policies in the grant or denial of such authority, which shall not be unreasonably delayed. In addition, all work performed in the travelled way or which in any way impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected. Such signing shall be in conformance with the latest edition of the Federal Highway Administration's Standards and Guideline for Work Zone Traffic Control, unless otherwise agreed to by the City.

(j) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the facilities in the right-of-

way shall be in accordance with applicable present and future federal, state, and City law and regulation, including but not limited to the most recent editions of the National Electrical Code, the National Electrical Safety Code, and the Fiber Optic Cable Installation Standard of the Telecommunications Industry Committee, or such substantive equivalents as may hereafter be adopted or promulgated. It is understood that the standards established in this paragraph are minimum standards and the requirements established or referenced in this ordinance may be additional to or stricter than such minimum standards.

Nothing in this section is intended or shall be interpreted to eliminate WTG's right to use the right-of-way for the purposes of this ordinance.

Section 4. Grant of easements. As partial consideration for this ordinance, WTG agrees to grant to the City without additional cost, as may be reasonably required by the City for public projects, such easements as WTG may have in property that has been or hereafter is conveyed to the City. When necessary, the City shall provide WTG with new locations within the right-of-way for the WTG's facilities located in such easements, which relocation shall be at no cost to the City. It is understood that such grant or relocation and the costs associated therewith are the responsibility of WTG but the costs thereof may be borne by others in accordance with the Subdivision Regulations of the City or by agreement between WTG and parties owning or conveying property. WTG shall not be required to make the payments herein relative to any easement granted under this section but shall be subject to all other provisions of this ordinance.

Section 5. Indemnity and hold harmless. WTG shall hold and save the City, its officers, employees, agents, and authorized contractors on public improvements, harmless from and against all claims, damages, expense, liability, and costs including attorney fees, which may be occasioned by WTG in any manner, solely or in part by WTG's occupancy of right-of-way, except to the extent otherwise specified in paragraph 3(h). In the event a claim shall be made or an action shall be instituted against the City growing out of such occupancy of the right-of-way by facilities of WTG, then upon notice by the City to WTG, WTG will assume liability for the defense of such actions at the cost of WTG, subject to the option of the City to appear and defend, at its own cost, any such case.

Section 6. Payments and charges. The payments herein provided shall be in lieu of all other licenses, taxes, charges, fees or impositions, except that the usual general property taxes and special ad valorem property taxes, permits and fees including charges for pavement cuts or other charges based on restoring premises to their same condition, or charges outside the scope of this ordinance which are not in any way connected with telecommunications business, as such, will be unposed on WTG, and are not covered by the payments herein.

Section 7. Compensation to City. WTG shall pay to the City as compensation for the right and privilege granted in this ordinance the amount of $2,500, one time on the effective date of this ordinance. In addition, WTG shall pay an annual sum equal to the rate of $2.00 per linear foot for the right-of-way described in Attachment "A." Such annual payments shall be made on the effective date of the ordinance and on the anniversary date each year thereafter. The City and WTG may hereafter establish such periodic payment procedure as the parties mutually agree.

Section 8. Attachment to facilities. Nothing in this ordinance shall be construed to require or permit any telephone, electric light or power wire attachments by either the City or WTG on the facilities of the other. If such attachments are desired by the City or WTG, then a separate noncontingent agreement shall be prerequisite to such attachments.

Section 9. Forfeiture of grant and privilege. In case of failure on the part of WTG, its successors and assigns, to comply with any of the provisions of this ordinance, or if WTG, its successors and assigns, should do or cause to be done

any act or thing prohibited by or in violation of the terms of this ordinance, WTG, its successors and assigns, shall forfeit all rights and privileges granted by this ordinance and all rights hereunder shall cease, terminate and become null and void, provided that said forfeiture shall not take effect until the City of Wichita shall carry out the following proceedings. Before the City proceeds to forfeit said ordinance, as in this section prescribed, it shall first serve a written notice upon WTG, setting forth in detail in such notice the neglect or failure complained of, and WTG shall have ninety days thereafter in which to comply with the conditions of this grant and privilege. If at the end of such ninety-day period the City deems that the conditions have not been complied with and that the ordinance is subject to cancellation by reason thereof, the City shall enact a repealing ordinance setting out the grounds upon which said grant and privilege is to be canceled or terminated. If within thirty days after the effective date of said repealing ordinance WTG shall not have instituted an action, either in the District Court of Sedgwick County, Kansas, or some other court of competent jurisdiction to determine whether or not WTG has violated the terms of this ordinance and that the ordinance is subject to cancellation by reason thereof, this ordinance shall be canceled and terminated at the end of such thirty-day period. If within such thirty-day period WTG does constitute an action, as above provided, to determine whether or not WTG has violated the terms of this ordinance and that the ordinance is subject to cancellation by reason thereof and prosecutes such action to final judgment with due diligence, then, in that event, in case the court finds that the ordinance is subject to cancellation by reason of the violation of its terms, this ordinance shall terminate thirty days after such final judgment is rendered. PROVIDED, however, that the failure of WTG to comply with any of the provisions of this ordinance or the doing or causing to be done by WTG of anything prohibited by or in violation of the terms of this ordinance shall not be a ground for the forfeiture thereof when such act or omission on the part of WTG is due to any cause or delay beyond the control of WTG, its successors and assigns, or to bona fide legal proceedings.

Section 10. Rights and duties of grantee upon expiration of ordinance. Upon expiration of this ordinance, whether by lapse of time, by agreement between WTG and the City, or by forfeiture thereof, WTG shall have the right to remove from public property any and all of its facilities used in its said business within a reasonable time after such expiration, but in such event, it shall be the duty of WTG immediately upon such removal, to restore the right-of-way from which said facilities are removed to as good condition as the same were before said removal was effected.

Section 11. Term and termination date. This ordinance shall be and remain in full force and effect for a period of five (5) years from the effective date hereof, unless sooner terminated as herein provided. WTG is granted the option to renew the rights granted in this ordinance for three additional five (5) year terms subject to the renegotiation of the provisions including conditions of use and compensation. WTG shall give notice of the exercise of the option at least nine (9) months prior to the expiration of the term. The renewal is subject to the provision of Section 16.

Section 12. Right to assign. The rights granted by this ordinance inure to the benefit of WTG, and any parent, subsidiary, affiliate or successor entity now or hereafter existing. The rights shall not be assignable without the express written consent of the governing body of the City, except WTG may assign its rights under this ordinance to a parent, subsidiary, affiliate or successor entity without such consent. Any required consent is to be evidenced by an ordinance or resolution of the governing body of the City that fully recites the terms and conditions, if any, upon which consent is given.

Section 13. Participation in Utility Location Coordination Council. WTG shall become a member of and participate in the Utility Location and Coordination Council established by Section 2.12.1093 through 2.12.1097 of the Code of the City of Wichita, Kansas, and any amendment thereto, and shall participate in joint funding with other utilities.

Section 14. Force majeure. Each and every provision hereof shall be subject to Acts of God, fires, strikes, riots, floods, war and other causes beyond WTG's control.

Section 15. Invalidity of ordinance. If any clause, sentence, or section of this ordinance shall be held to be invalid, it shall not affect the remaining provisions of this ordinance.

Section 16. Effectiveness and acceptance of ordinance. This ordinance shall not take effect or become in force until it shall have been read in full at three regular weekly meetings of the governing body of the City of Wichita nor until and immediately after its final passage it shall be published in the official city paper once each week for two consecutive weeks, and such ordinance shall not take effect or be in force until and after the expiration of sixty days from the date of its final passage, nor if, pending the final passage and taking effect of said ordinance, an election shall be called as provided by law, in which event said ordinance shall not take effect or become in force until the same shall have been duly approved by the electorate.

Within sixty (60) days after the final passage and approval of this ordinance, WTG shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this ordinance, which acceptance shall be duly acknowledged before some officer authorized by law to administer oaths; and when so accepted the ordinance and acceptance shall constitute a contract between the City and WTG subject to the provisions of the laws of the State of Kansas.

PASSED AND APPROVED by the City Council of the City of Wichita, Kansas, this 18th day of June, 1991.

FRANK M. OJILE
Vice Mayor

ATTEST: (SEAL)

PATRICIA L. BURNETT
Deputy City Clerk

ATTACHMENT A

WTG's route will enter the corporate city limits of Wichita Kansas in Section 28, T-26-S, RIE along the BNI Railroad right-of-way; thence south along said right-of-way to the intersection with Oklahoma Kansas and Texas Railroad; thence southwesterly along the Oklahoma Kansas and Texas Railroad to the intersection with MP Railroad; thence southerly along the MP right-of-way to North 1st Street. Thence east along North 1st Street to Market; thence south to 155 N. Market.

City streets to be crossed are as follows:

37th Street North	12th Street North
29th Street North	11th Street North
26th Street North	10th Street North
21st Street North	9th Street North
18th Street North	Wichita Street
17th Street North	8th Street North
Topeka	Murdock
16th Street North	Pine
North Broadway	Elm
14th Street North	Central
Market	3rd Street North
13th Street North	2nd Street North
Main Street	Wichita
	1st Street North

WILDFLOWER TELECOMMUNICATIONS, LLC
Ordinance No. 49-749

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS, GRANTING TO WILDFLOWER TELECOMMUNICATIONS, LLC, ITS SUCCESSORS AND ASSIGNS, A DISTRIBUTED ANTENNA SYSTEMS FACILITY FRANCHISE AND PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

This Franchise Agreement ("Agreement") is entered into as of May 13th, 2014 ("Effective Date") by and between the City of Wichita, a municipal corporation (the "City"), and Wildflower Telecommunications, LLC ("Wildflower"), a wholly-owned subsidiary of IdeaTek Systems, Inc., a Kansas corporation.

RECITALS

A. Wildflower owns, maintains, operates and/or controls, in accordance with regulations promulgated by the Federal Communications Commission and the Kansas Corporation Commission (hereinafter "KCC"), telecommunications networks serving Wildflower's wireline customers through advanced fiber optic facilities and other wireless carrier customers through fiber-fed distributed antenna system facilities. Such facilities are in public rights-of-way (hereinafter "ROW"), among other locations, in the State of Kansas.

B. Wildflower seeks to enter the City of Wichita's (the "City") ROW, and other real property of the City, to install, maintain and operate a fiber network and distributed antenna system(s) (the "Network"), so that Wildflower and/or its underlying customers (the "Customers") may provide data and telecommunications services to the residents and visitors of the City (the "Services").

C. Some features of the Network include, without limitation, antenna nodes, poles, equipment cabinets, underground and above ground fiber optic cable, fiber handholes and enclosures, fiber repeaters and related equipment, and will include other equipment as technology evolves, in a configuration and at locations to be filed and identified through the City permit process ("Facility" or "Facilities").

D. Certain distributed antenna systems ("DAS Facility" or "DAS Facilities") which are specific part or type of the Facilities may be located on streetlights, stand-alone poles, third party utility poles, and other structures located on or within the Public ROW or City owned property as permitted under this Agreement.

E. Wildflower desires to obtain from City as permitted by law, and City is willing to grant to Wildflower as required by law, the right to access the Public ROW to locate, place, attach, install, operate, use, control, repair, replace, upgrade, enhance and maintain the Facilities and the DAS Facilities in a manner consistent this Agreement.

In consideration of the Recitals set forth above, the terms and conditions of this Agreement and other valuable consideration, the adequacy of which is hereby acknowledged, the parties agree as follows:

Section 1. Installation of the network.

1.1 Permitted Installation. Wildflower may at Wildflower's sole cost and expense and during the term of this Agreement, locate, construct, place, attach, install, operate, use, control, repair, replace, upgrade, enhance and maintain the Facilities subject to the terms and conditions of this Agreement. Wildflower shall undertake and perform any work authorized by this Agreement in a skillful and workmanlike manner.

1.1.1 Installation Specifications. The installation of the Facilities shall be made in accordance with plans and specifications as may be approved by the City and after obtaining all necessary permits for all work in the ROW and/or on City property. Such approval review shall be made no later than forty-five days (45) days from application date, and under exceptional circumstances the time may be extended an additional forty-five (45) days upon agreement of the Parties. The Parties understand and agree that Facilities outside of the Public ROW may require additional easements for underground fiber to

connect to Network within the Public ROW. Such additional easements shall be located so as not to interfere with the City's use of its property. The location, depth of the fiber underground, and any other requirements shall be approved in writing by the City prior to construction of the Facilities at that specific location, approval of which shall not be unreasonably withheld, conditioned or delayed. Approval of plans and specifications and the issuance of any permits by the City shall not release Wildflower from the responsibility for, or the correction of, any errors, omissions or other mistakes that may be contained in the plans, specifications and/or permits. Wildflower shall be responsible for notifying the City and all other relevant parties immediately upon discovery of such omissions and/or errors and with obtaining any amendments for corrected City-approved permits, as may be necessary. Wildflower shall be responsible for all costs associated with the permitting process, including, but not limited to, repairs and replacement of City ROW. Such permits and approval requirements detailed in this section shall not be unreasonably withheld, conditioned or delayed by the City and any conditions or requirements shall be in accordance with federal, state, and local laws.

1.1.2 Temporary Construction. The installation of the Facilities shall be performed in accordance with traffic control plans for temporary construction work that are approved by the City, which approval shall not unreasonably be withheld, conditioned or delayed.

1.1.3 Construction Schedule. If requested by the City, at least ten (10) days prior to the installation of the Facilities, Wildflower shall deliver to the City a schedule for the proposed work related to the construction of the Facilities, as well as a list of the names of all agents and contractors of Wildflower authorized by Wildflower to access the City ROW and City owned property on Wildflower's behalf.

1.1.4 Coordination of Work. Wildflower shall be responsible for coordination of work to avoid any interference with existing utilities, substructures, facilities and/or operations within the City's ROW. Wildflower shall be the City's point of contact and all communications shall be through Wildflower. Wildflower shall be solely responsible for communicating with Kansas One-Call.

1.1.5 Inspection by City. The City shall have commercially reasonable access to inspect any work conducted by Wildflower during the installation, maintenance and/or repairs of the Facilities.

1.1.6 Other Utility Providers. When necessary, Wildflower shall coordinate with other utility providers for other needed utility services. Wildflower and the City will reasonably cooperate with the other utility providers regarding the location of any meter, pole, and other apparatuses required for each Site.

1.1.7 Existing Utility Poles. Wildflower may attach its Facilities to an existing utility pole pursuant to a properly executed agreement with the pole owner, provided, however, that any necessary replacement of the pole in order to accommodate the attachment shall be subject to the proper exercise of the City's police powers, and in no instance shall Wildflower erect a new pole within an existing aerial pole line absent the City's prior authorization.

1.2 Compliance with Laws. This Agreement is subject to the terms and conditions of all applicable federal, state and local Laws and the Parties shall comply with any such Laws in the exercise of their rights and performance of their obligations under this Agreement. "Laws" or "Law" as used in this Agreement means any and all statutes, constitutions, ordinances, resolutions, regulations, judicial decisions, rules, permits, approvals or other applicable requirements of the City or other governmental entity or agency having joint or several jurisdiction over the Parties' activities under this Agreement or having jurisdiction that is applicable to any aspect of this Agreement that

are in force on the Effective Date and as they may be enacted, issued or amended during the term of this Agreement.

1.2.1 Zoning Regulations. Zoning regulations shall not apply to installations within the Public ROW.

1.3 Permits. Wildflower shall obtain all ministerial permits (the "Permits") and pay those fees associated therewith relating to the installation of the Network as currently allowed by Law.

1.3.1 Encroachment Permits. Wildflower shall obtain any necessary encroachment permits from the City for the installation of the Network and for any other work within the City's ROW or other real property of the City, if required by the City's Municipal Code ("'Code").

1.3.2 Building Permits. Wildflower shall obtain any necessary building permits from the City for the installation of the Network and for any other work within the City's ROW or other real property of the City, if required by the Code or State Law.

1.3.3 Compliance with Permits. All work within the City's ROW or other real property of the City shall be performed in strict compliance with all applicable Permits and all applicable regulatory requirements.

1.3.4 Fee Increases. If prior to the second anniversary of the date hereof, the City increases the permitting fees described in the Sections above, and if with respect to all similarly situated franchisee license agreements executed by the City in such 2-year period the franchisee or licensee is subject to a similar fee provision, then Wildflower will pay to the City the increased fees as if the increased fee schedule had been in effect as of the date hereof upon being billed therefor by the City.

1.4 Placement of Facilities. Wildflower shall coordinate the placement of its Facilities in the Public ROW in a manner that minimizes adverse impact on public improvements, as reasonably determined by the City Engineer.

1.5 New Streetlight Poles and other City Facilities. It is understood that Wildflower may build new streetlight poles or other such facilities required for the installation of the Facilities which would comply with all encroachment and building permits, applicable City, state and federal specifications, and Laws ("New Poles"). The Parties agree that in areas where there are existing poles, Wildflower will work with the owner of that existing pole to collocate the DAS Facility but only when the pole owner is willing to allow such attachment and where such attachment is feasible from a safety, technical, and engineering (structural and radio frequency coverage) perspective.

1.5.1 City Use of New Poles. The Parties understand and agree that the City may use any New Poles for City purposes, including but not limited to streetlights and other lighting so long as such use does not interfere Wildflower's use of its Network or Facilities. Wildflower shall reasonably cooperate with the City when using the New Poles.

1.5.2 City-Owned Lights. Except for the installation of the lights and ancillary equipment on or in the New Poles and/or as set forth in section 1.5.3, below, Wildflower shall not be responsible for maintenance, repair, or replacement of City-owned lights, light bulbs and equipment or equipment owned by third parties authorized by the City on the New Poles.

1.5.3 Damage to New Poles. If a New Pole falls or is damaged such that there is an imminent threat of harm to persons or property, then the City may cause the New Pole to be removed to the side of the street or a location that City believes reasonably eliminates the risk of such imminent threat of harm to persons or property. Wildflower shall, after written notice from the City that any New Pole has been damaged or removed, cause the New Pole to be repaired or replaced within thirty (30) days after the City's written notice. The cost to repair and/or replace any New Pole, including the replacement City streetlight, bulb and ancillary equipment shall be paid by Wildflower; provided, however,

that if the New Pole is damaged or destroyed by the City or a third party user that the City has given the right to use the New Pole, then the City and/or its third party user shall pay the cost to repair and/or replace the New Pole. To the extent that Wildflower seeks reimbursement for a third party either directly or through applicable insurance, the City shall assign to Wildflower any rights the City may have against such third party for such claim.

1.6 Franchise and Permit Fees. Wildflower is solely responsible for the payment of all lawful franchise and permit fees in connection with Wildflower's performance under this Agreement.

1.6.1 5% Franchise Fee for all Gross Revenues. In consideration of this Franchise Agreement, Wildflower agrees to remit to the City a franchise fee of five percent (5%) of Gross Revenues ("Franchise Fee"). "Gross revenues" means only those revenues derived from services provided within the corporate boundaries of the City which include: (A) Recurring local exchange service for business and residence which includes basic exchange service, touch tone, optional calling features and measured local calls; (B) recurring local exchange access line services for pay phone lines provided by a telecommunications local exchange service provider to all pay phone service providers; (C) local directory assistance revenue; (D) line status verification/ busy interrupt revenue; (E) local operator assistance revenue; (F) nonrecurring local exchange service revenue which shall include customer service for installation of lines, reconnection of service and charge for duplicate bills; and (G) RF telecommunications service revenue or any other operating revenue derived from leasing Wildflower's dark fiber and indefeasible rights of use ("IRU") fees. All other revenues, including, but not limited to, revenues from extended area service, the sale or lease of unbundled network elements, nonregulated services, carrier and end user access, long distance, wireless telecommunications services, lines providing only data service without voice services processed by a telecommunications local exchange service provider, private line service arrangements, internet, broadband and all other services not wholly local in nature are excluded from gross revenues. Gross revenues shall be reduced by bad debt expenses that are attributable to Sections (A) through (G) as referenced within this Section 1.6.1. Uncollectible and late charges shall not be included within gross revenues. Wildflower shall pay its Franchise Fee on the 15th day of the second month following the month in which the Gross Revenue is received.

1.6.2 DAS Facility Permit Fee. A one-time permit and license fee of $1,000.00 for each DAS Facility installed within the Public Right of Way of the City, up to 125 DAS Facilities shall be paid by Wildflower. After the 125th installation, the fee will be the then current fee charged by the City for similar access, with a minimum fee of $1,000.00 for each Facility. Wildflower shall pay the DAS Facility Permit Fee the 15th day following the month after each DAS Facility is installed within the public ROW.

1.6.3 Ministerial Application Fees. A one-time application fee to recover the City's costs associated with the review and approval of the installation of each Facility provided that such application fee reimburses the City for its reasonable, actual and verifiable costs of reviewing and approving the application to install the particular Facility. This application fee must be competitively neutral and may not be unreasonable or discriminatory.

1.6.4 Accounting Matters. Wildflower shall keep accurate books of account at its principal office in Buhler, Kansas, or such other location of its choosing for the purpose of determining the amounts due to the City under §1.6 above. No more than once per year, the City may inspect Wildflower's books of account relative to the application of the franchise fees required under

subsection 1.6.1 of this Agreement any time during regular business hours on thirty (30) days' prior written notice and may audit the books from time to time at the City's sole expense, but in each case only to the extent necessary to confirm the accuracy of payments due under § 1.6 - 1.7 above. The City agrees to hold in confidence any non-public information it learns from Wildflower to the fullest extent permitted by Law.

1.7 Access to the Facilities.

1.7.1 Wildflower Access to Facilities for Repair. Wildflower will be given reasonable access to each of the Facilities in the City ROW or City owned property for the purposes of routine installation, repair, maintenance or removal of Facilities. If any such maintenance activities have the potential to result in an interruption of any City services at the Facility, Wildflower shall provide the City with a minimum of three (3) days prior written notice of such maintenance activities. Such maintenance activities shall, to the extent feasible, be done with minimal impairment, interruption, or interference to City services.

1.7.2 City Observation. Wildflower shall allow a representative of the City to observe any repair, maintenance or removal work performed at the Facilities.

Section 2. Term and termination.

2.1 Term. This Franchise Agreement shall be effective from the effective date for ten (10) years thereafter. Thereafter, this Agreement shall automatically renew for three (3) additional consecutive five (5) year terms unless Wildflower notifies the City of its intent to terminate the Agreement or unless the City notifies Wildflower of its intent to renegotiate terms due to changes in local, state or federal law and/or the City has negotiated different terms with similarly situated entities. But, in no event, shall the City be permitted to terminate Wildflower's right under this Agreement to place Facilities in the ROW unless terms of the Agreement are breached and/or local, state, or federal law permit.

2.1.1 90-Day Remedy Period. If the Agreement is breached by Wildflower, then Wildflower shall have no more than ninety (90) days from written notice of the breach to either remedy the breach or remove its equipment and restore the Facilities, as set forth in Section 3, below and in the Wichita-Sedgwick County Metropolitan Area Planning Department Wireless Ordinance. Wildflower shall pay to City a prorated Rent and Additional Rent (if any) for any period beyond the effective expiration or revocation date until Wildflower completes its obligation to remove its equipment and restore the locations.

2.2 Termination of Use. Notwithstanding Section 2.1 above, Wildflower may terminate its use of any or all of the Network by providing the City with ninety (90) days prior written notice. In the event of any such termination, Wildflower's payment obligations to the City shall terminate simultaneously with the termination of use, provided Wildflower removes its equipment and restores the Facilities, as set forth in Section 3, below and in the Wireless Ordinance, prior to the termination date.

Section 3. Removal and relocation.

3.1 Removal Due to Public Project. Upon receipt of a written demand from the City pursuant to this Section 3, Wildflower, at its sole cost and expense, shall remove and relocate any part of the Network, constructed, installed, used and/or maintained by Wildflower under this Agreement, whenever the City reasonably determines that the removal and/or relocation of any part of the Network is needed for any of the following purposes: (a) due to any work proposed to be done by or on behalf of the City or any other governmental agency, including but not limited to, any change of grade, alignment or width of any street, sidewalk or other public facility, installation of curbs, gutters or landscaping and installation, construction, maintenance or operation of any underground or aboveground facilities such as sewers, water mains, drains, storm drains, pipes, gas mains, poles,

power lines, telephone lines, cable television lines and tracks; (b) because any part of the Network is interfering with or adversely affecting the proper operation of City-owned light poles, traffic signals, or other City facilities; or (c) to protect or preserve the public health and safety. The City shall cooperate with Wildflower in relocating any portion of the Network removed pursuant to this Section 3.1 in a manner that allows Wildflower to continue providing service to its customers, including, but not limited to, expediting approval of any necessary permits required for the relocation of that portion of the Network relocated under this Section 3.1. No permitting or other fees may be charged by the City for a removal occurring under this Section.

3.2 Removal Due to Termination. No later than ninety (90) days after termination of this Agreement pursuant to the provisions of this Agreement, Wildflower shall, at its sole cost and expense, remove the Network or the terminated portion thereof and, if such removal disturbs the locations or adjacent property (including City ROW or City real property), restore each Facility and its adjacent property to its original condition, reasonable wear and tear excepted, and further excepting landscaping and related irrigation equipment, or other aesthetic improvements made by Wildflower to the Facility or adjacent property, or as otherwise required by the City. For New Poles, Wildflower shall install a new streetlight or facility as directed by City's Public Works Director, or his or her designee. Alternatively, the City may allow Wildflower, in the City's sole and absolute discretion, to abandon the Network, or any part thereof, in place and convey it to the City.

3.3 Abandonment. In the event Wildflower ceases to operate and abandons the Network, or any part thereof, for a period of ninety (90) days or more, Wildflower shall, at its sole cost and expense and within the time period specified in Section 3.2, vacate and remove the Network or the abandoned part thereof. If such removal disturbs the Facility or adjacent property (including City ROW or City real property), Wildflower shall also, at its sole cost and expense, restore the Facility or adjacent property to its original condition, reasonable wear and tear excepted, and further excepting landscaping and related irrigation equipment, or other aesthetic improvements made by Wildflower to the Facility or adjacent property. Alternatively, the City may allow Wildflower, in the City's sole and absolute discretion, to abandon the Network, or any part thereof, in place and convey it to the City.

3.4 No Relocation Compensation. The parties understand and agree that neither the City nor Wildflower are entitled to compensation for any relocation of its Network that may be required under Section 3.1. Wildflower acknowledges that Wildflower is not entitled to relocation assistance or any other compensation or benefits under the Uniform Relocation Assistance Act or any other applicable provision of law upon termination of this Agreement.

Section 4. Maintenance and repair.

4.1 Electricity Use. Wildflower shall pay for the electricity and other utilities services it consumes in its operations at the rate charged by the servicing utility company.

4.2 Maintenance and Repair. Wildflower shall, at Wildflower's sole cost and expense, perform all maintenance and repairs reasonably needed to maintain the Network in good condition and neat and orderly appearance, and in compliance with all applicable Laws. In the event any part of the Network requires replacement because such part cannot be repaired, Wildflower shall, at Wildflower's sole cost and expense, replace the irreparable part of the Network. Wildflower shall not cause rubbish, garbage or debris on or around its Network or the Facilities and shall not permit any rubbish, garbage or debris to accumulate on or around in any enclosed areas around the Facilities. If the City gives Wildflower written notice of a failure by Wildflower to maintain the Facilities, Wildflower shall use its best efforts to remedy such failure within forty-eight (48) hours after receipt of such written notice.

4.3 Appearance. Wildflower shall cooperate with the City on all issues of aesthetics and appearance. Wildflower shall follow all legally binding City policies, state and local ordinances with respect to aesthetics. This includes, but is not limited to, historic site and/or locations of significant importance, in areas such as Downtown Old

Town and College Hill. All locations of DAS systems must be aesthetically approved by the City Engineering Department, in a manner consistent with other approvals within these Restrictions.

4.4 Repair of ROW. Wildflower shall be responsible for any damage, ordinary wear and tear excepted, to street pavement, existing facilities and utilities, curbs, gutters, sidewalks, landscaping, and all other public or private facilities, to the extent caused by Wildflower's construction, installation, maintenance, access, use, repair, replacement, relocation, or removal of the Network in the City's ROW. Wildflower shall promptly repair such damage and return the City's ROW and any affected adjacent property to a safe and satisfactory condition to the City in accordance with the City's applicable street restoration standards or to the property owner if not the City. Wildflower's obligations under this Section 4.4 shall survive for one (1) year past the completion of such reparation and restoration work and return of the affected part of the City's ROW by Wildflower to the City.

4.5 Bond. Wildflower shall provide a bond in an amount determined by the City to represent the estimated cost of Wildflower's obligations under Sections 3 and 4 of this Agreement, which the City may require Wildflower to increase from time to time to reflect the reasonable estimated cost of performing such obligations, to secure performance of Wildflower's obligations under Sections 3 and 4, not to exceed $100,000.

Section 5. Taxes.

5.1 Taxes. Wildflower agrees that it will be solely responsible for the payment of any and all applicable taxes, fees and assessments levied on its ownership, use and maintenance of the Network and this Agreement. Pursuant to Section 79-5(a)(26) of the Kansas Revenue and Taxation Code, the City hereby advises, and Wildflower recognizes and understands, that Wildflower's use of the City's ROW, the New Poles, and /or other non-ROW city property and facilities may create a possessory interest subject to real property taxation and that Wildflower may be subject to, and responsible for, the payment of real property taxes levied on such interest. Wildflower will cooperate with the Sedgwick County Assessor in providing any information necessary for the Assessor to make a property tax determination. Wildflower reserves the right to challenge any such assessment, and the City agrees to cooperate with Wildflower in connection with any such challenge.

Section 6. Indemnification.

6.1 Indemnity. Wildflower shall indemnify, defend, and hold harmless the City, its councilmembers, officers employees, agents, and contractors, from and against liability, claims, demands, losses, damages, fines, charges, penalties, administrative and judicial proceedings and orders, judgments, and the costs and expenses incurred in connection therewith, including reasonable attorneys' fees and costs of defense to the extent resulting from activities undertaken by Wildflower pursuant to this Agreement, except to the extent arising from or caused by the gross negligence or willful misconduct of the City, its councilmembers, officers, employees, agents, or contractors. The City shall promptly notify Wildflower of any claim, action or proceeding covered by this Section 6.1.

6.2 Waiver of Claims. Wildflower waives all claims, demands, causes of action, and rights it may assert against the City on account of any loss, damage, or injury to any portion of the Network, or any loss or degradation of the services provided by the Network resulting from any event or occurrence except for any loss, damage, or injury to any portion of the Network, or any loss or degradation of the services provided by the Network resulting from the gross negligence or willful misconduct of the City.

6.3 Limitation of City's Liability. The City will be liable, if at all, only for the cost of repair to damaged portions of the Facilities arising from the gross negligence or willful misconduct of City, its employees, agents, or contractors. The City, its agents, officers, employees, or contractors, shall not be liable for any damage from any cause whatsoever to the Facilities, specifically including, without limitation, damage, if any, resulting from the City's maintenance operations adjacent to the Facilities or from vandalism or unauthor-

ized use of the Facilities, except to the extent such damage is caused by the gross negligence or willful misconduct of City, its agents, officers, employees or contractors. The City will in no event be liable for indirect or consequential damages.

6.4 Limitation of Wildflower's Liability. In no event shall Wildflower be liable for indirect or consequential damages in connection with or arising from this Agreement, or its use of the Network, New Poles, and ROW or other City real property.

Section 7. Insurance.

7.1 Minimum Insurance Requirements. Wildflower shall obtain and maintain at its sole cost and expense for the duration of this Agreement insurance pursuant to the terms and conditions described in this Section.

(a) Minimum Insurance. Wildflower shall at all times during the term of this Agreement carry, maintain, and keep in full force and effect, insurance as follows:

(i) General Liability: A policy or policies of Comprehensive General Liability Insurance, with minimum limits of $2,000,000 combined single-limit per-occurrence for bodily injury, personal injury, death, loss and property damage resulting from wrongful or negligent acts by Wildflower. If Commercial General Liability Insurance or other form with a general aggregate limit is used, either the general aggregate limit shall apply separately to this project/location or the general aggregate limit shall be twice the required occurrence limit.

(ii) Automobile Liability: A policy or policies of Comprehensive Vehicle Liability Insurance covering personal injury and property damage, with minimum limits of $1,000,000 combined single-limit per-accident for bodily injury and property damage covering any vehicle utilized by Wildflower in performing the work covered by this Agreement

(iii) Workers' Compensation and Employer's Liability: Workers' compensation limits as required by the Labor Code, and Employer's Liability limits of $1,000,000 per accident.

(b) Deductibles and Self-Insured Retentions. Any deductibles or self-insured retentions shall not exceed $25,000; provided, however, if Wildflower's insurance policy expressly provides (i) that the insurer is required to pay covered claims with no deduction for all or any part of the Wildflower's deductible, and (ii) insurer's obligation to pay covered claims is triggered irrespective of whether or not the insured pays the deductible, then Wildflower's deductible shall not exceed $100,000 for Comprehensive General Liability Insurance, $100,000 for Comprehensive Vehicle Liability Insurance and $250,000 for Workers' Compensation and Employer's Liability coverage.

(c) Other Insurance Provisions. The policies shall contain, or be endorsed to contain, the following provisions:

(i) General Liability and Automobile Liability Coverage.

(1) The City, and its elected and appointed council members, board members, commissioners, officers and officials (the "Insureds") shall be named as additional insureds on all required insurance policies, except for Workers' Compensation and Employer's Liability policies.

(2) Wildflower's insurance coverage shall be primary insurance as respects the Insureds with respect to the matters covered by this Agreement. Any insurance or self-insurance maintained by the Insureds shall be in excess of Wildflower's insurance and shall not contribute with it.

(3) Any failure of Wildflower to comply with reporting provisions of the policies shall not affect coverage provided to the Insureds.

(4) Wildflower's insurance shall apply separately to each of the Insureds against whom a claim is made or suit is brought, except with respect to the limits of the insurer's liability. Each of the Insureds is subject to all policy terms and conditions and has an obligation, as an Insured, to report claims made against them to the insurance carrier.

(ii) Worker's Compensation and Employers Liability Coverage. The insurer shall agree to waive all rights of subrogation against the Insureds for losses arising from work performed by Wildflower in the City's ROW.

(iii) All Coverages. Except for non-payment of premium, each insurance policy required by this clause shall be endorsed to state that coverage shall not be cancelled or reduced in coverage or limits by the insurer except after thirty (30) days' prior written notice has been given to the City. If for any reason insurance coverage is canceled or reduced in coverage or in limits, Wildflower shall within two (2) business days of notice from the insurer, notify the City by phone or fax of the changes to or cancellation of the policy and shall confirm such notice via certified mail, return receipt requested.

(d) Acceptability of Insurers. Insurance shall be placed with insurers with an A.M. Best rating of no less than A-:VII.

(e) Verification of Coverage. Wildflower shall furnish the City with certificates of insurance required by this Section 7. The certificates for each insurance policy are to be signed by a person, either manually or electronically, authorized by that insurer to bind coverage on its behalf. All certificates are to be received and approved by the City before work commences.

(f) Secondary Parties. In the event Wildflower hires any subcontractors, independent contractors or agents ("Secondary Parties") to locate, place, attach, install, operate, use, control, replace, repair or maintain the Network, Wildflower shall require the Secondary Parties to obtain and maintain insurance commensurate to the work such Secondary Parties perform.

Section 8. Default.

8.1 Default.

8.1.1. Defined. A "Default" shall be deemed to have occurred under this Agreement if a party fails to cure such within thirty (30) days after written notice specifying such breach, provided that if the breach is of a nature that it cannot be cured within thirty (30) days, a default shall not have occurred so long as the breaching party has commenced to cure within said time period and thereafter diligently pursues such cure to completion.

8.1.2. Remedies. Upon the failure of a party to timely cure any breach after notice thereof from the other party and expiration of the above cure periods, then the non-defaulting party may, subject to the terms of Section 6.3 (Limitation of Liability), terminate this Agreement and pursue all remedies provided for in this Agreement and/or any remedies it may have under applicable law or principles of equity relating to such breach.

8.2 City Termination Right. In addition to the remedies set forth in Section 8.1.2, the City shall have the right to terminate this Agreement if (i) the City is mandated by law, a court order or decision, or the federal or state government to take certain actions that will cause or require the removal of the Facilities from the public right of way: or (ii) if Wildflower's licenses are terminated, revoked, expired, or otherwise abandoned. Such

termination rights shall be subject to Wildflower's rights to just compensation, if any, for any taking of a protected property right.

8.3 No Waiver. A waiver by either party at any time of any of its rights as to anything herein contained shall not be deemed to be a waiver of any breach of covenant or other matter subsequently occurring.

8.4 Interest. If Wildflower fails to make any payment under this Agreement when due, such amounts shall accrue interest from the date such payment is due until paid, including accrued interest, at an annual rate of ten percent (10%) or, if lower, the highest percentage allowed by law.

Section 9. Interference.

9.1 Non-Interference with Non-Public Safety Communications Systems. Wildflower shall operate the Network in a manner that will not cause interference with City non-public safety communications systems and to the services and facilities of other licensees or lessees of City property located at or near the Facilities that were in operation prior to the installation of the Network or that are in operation prior to any modifications Wildflower may make to the Network.

9.2 Non-Interference with Public Safety Communications Systems. Wildflower's Network and Facilities shall not cause interference with public safety communications systems operated by City or any other public agency, regardless of the date such systems or any components thereof have been placed in service. Nor shall Wildflower's Network and Facilities cause interference with the City's use of the New Poles for their intended purpose as streetlights, traffic lights, and/or standalone light poles.

9.3 Correction of Interference. If such interference with the Facilities described in Sections 9.1 and 9.2 occur, Wildflower shall, upon receipt of written notice thereof from City, immediately commence commercially reasonable, diligent, efforts to correct or eliminate such interference. If such interference cannot be corrected by-Wildflower to the reasonable satisfaction of City within the cure period set forth for in the City's notice, which notice shall not be less than 30 days absent an emergency or danger to public health and safety requiring shorter notice, such interference shall be deemed a material breach under this Agreement and City may terminate this Agreement. Interference caused by actions of Wildflower's Customer(s) remain the responsibility of Wildflower.

Section 10. Miscellaneous provisions.

10.1 Nonexclusive Use. Wildflower acknowledges that this Agreement does not provide Wildflower with exclusive use of the City's ROW or any municipal facility and that City retains the right to permit other providers of communications services to install equipment or devices in the City's ROW and on municipal facilities.

10.2 Most Favored Nation. All of the benefits and terms granted by the City herein are at least as favorable as the benefits and terms granted by the City to any future franchisee of the public ROW engaged in the same or similar business described in this Franchise Agreement. Should the City enter into any subsequent agreement of any kind no matter what nomenclature is attached thereto with any other franchisee during the term of this Franchise Agreement, which Agreement provides for benefits or terms more favorable than those contained in this Franchise Agreement, then this Franchise Agreement shall be deemed to be modified effective as of the date of such more favorable agreement to provide Wildflower with those more favorable benefits and terms. The City shall notify Wildflower promptly of the existence of such more favorable benefits and terms and Wildflower shall have the right to receive the more favorable benefits and terms immediately. If requested in writing by Wildflower, the City shall amend this Franchise Agreement to contain the more favorable terms and conditions.

10.2.1 Most-Favored Municipality. Should Wildflower after the Parties' execution and delivery of this Agreement enter into a franchise agreement with another municipality of the same size or smaller than the City in this State, which agreement contains financial benefits for such municipality which, taken as a whole and balanced with the other terms of such agree-

ment, are in the City's opinion substantially superior to those in this Franchise Agreement, the City shall have the right to require that Wildflower modify this Franchise Agreement to incorporate the same or substantially similar superior benefits.

10.3 Notices. All notices which shall or may be given pursuant to this Agreement shall be in writing and served by (1) electronic mail; and (2) personally served or transmitted through first class United States mail, or by express mail providing for overnight delivery, postage prepaid, to the following address or such other address of which a party may give written notice:

City: City of Wichita

455 N. Main

Wichita, KS 67202

Attention: City Clerk

With a copy to:

Arline Sokolowski

Deputy City Attorney

455 N. Main, 13th Fl.

Wichita, KS 67202

asokolowski@wichita.gov

Wildflower: Wildflower Networks, LLC

102 N. Main Street

Buhler, KS 67522

Attention: Daniel Friesen

With copies to:

Harvey Sorensen

Foulston Siefkin

1551 N. Waterfront Pkwy, Suite 100

Wichita, KS 67228

hsorensen@foulston.com

Such notice shall be deemed made when personally delivered; if mailed via first class U.S. Mail, such notice shall be deemed made three (3) calendar days after the date of deposit in the U.S. Mail; if mailed via express/overnight mail, such notice shall be deemed made two (2) calendar days after the date of deposit in a designated overnight delivery mailbox or other like facility. Actual notice shall be deemed adequate notice on the date actual notice occurred, regardless of the method of service.

10.4 Sublease/Assignment. If Wildflower assigns, sublets, enters into a franchise license or concession agreement, changes ownership of the Network or voting control of Wildflower, mortgage, encumber, pledge, hypothecate or other transfer (including any transfer by operation of law this Agreement or any interest therein) Wildflower will provide notice of a transfer within a reasonable time.

10.5 Binding Effect. This Agreement shall be binding upon and inure to the benefit of the parties and their respective heirs, legal representatives, successors, assigns and transferees.

10.6 Entire Agreement; Modification; Waiver. This Agreement constitutes the entire agreement between the parties relating to the subject matter hereof. All prior and contemporaneous agreements, representations, negotiations, and understandings of the parties, oral or written, relating to the subject matter hereof are merged into and superseded by this Agreement. Any modification or amendment to this Agreement shall be of no force and effect unless it is in writing and signed by the parties. No waiver of any of the provisions of this Agreement shall be deemed, or shall constitute, a waiver of any other provision, whether or not similar. No waiver or consent shall constitute a continuing waiver or consent or commit either party to provide a waiver in the future except to the extent specifically set forth in writing. No waiver shall be binding unless executed in writing by the party making the waiver.

10.7 Severability. If any one or more of the provisions of this Agreement shall be held by a court of competent jurisdiction in a final judicial action to be void, voidable, or unenforceable, such provision or provisions shall be deemed separable from the remaining provisions of this Agreement and shall in no way affect the validity of the remaining portions of this Agreement.

10.8 Governing Law. This Agreement shall be interpreted and enforced according to, and the parties' rights and obligations governed by, the

domestic law of the State of Kansas or applicable federal law, without regard to laws regarding choice of applicable law. Any proceeding or action to enforce this Agreement, or otherwise directly related to this Agreement shall occur in the federal court with jurisdiction over Sedgwick County or the state courts located in Sedgwick County, Kansas.

10.9 Survival of Terms. All of the terms and conditions in this Agreement related to payment, removal due to termination or abandonment, indemnification, limits of City's liability, attorneys' fees and waiver shall survive termination of this Agreement.

10.10 Captions and Paragraph Headings. Captions and paragraph headings used herein are for convenience only. They are not a part of this Agreement and shall not be used in construing this Agreement.

10.11 Drafting. The parties agree that this Agreement is the project of joint draftsmanship and that should any of the terms be determined by a court, or in any type of quasi-judicial or other proceeding, to be vague, ambiguous and/or unintelligible, that the same sentences, phrases, clauses or other wording or language of any kind shall not be construed against the drafting party.

10.12 Execution in Counterparts. This Agreement may be executed in one or more identical counterparts and all such counterparts together shall constitute a single instrument for the purpose of the effectiveness of this Agreement.

10.13 Authority to Execute This Agreement. Each person or persons executing this Agreement on behalf of a party, warrants and represents that he or she has the full right, power, legal capacity and authority to execute this Agreement on behalf of such party and has the authority to bind such party to the performance of its obligations under this Agreement without the approval or consent of any other person or entity.

10.14 No Warranty by the City. The City makes no representations or warranties regarding the suitability, condition or fitness of the locations for the installation, maintenance or use of the New Poles or the Facilities.

10.15 Agreement Applicable Only to the Facilities. This Agreement shall not be construed to permit construction, installation, maintenance or use of Facilities on any property other than the Facilities.

10.16 No Abrogation of Legal Responsibilities. The City's execution of this Agreement shall not abrogate, in any way, Wildflower's responsibility to comply with all permitting requirements or to comply with all Laws with respect to its performance of the activities permitted under this Agreement.

10.17 Contractual Interpretation. In the interpretation and application of its rights under this Franchise Agreement, the City will act in a reasonable, non-discriminatory, and competitively neutral manner in compliance with all applicable federal, state, and local laws and regulations.

10.18 Effective Date of Ordinance. This Ordinance shall be effective upon its final passage and publication as required by law.

IN WITNESS WHEREOF, the parties have signed this Agreement as of the date stated in the introductory clause.

City of Wichita, a municipal corporation
By: _____
Carl Brewer - Mayor

ATTEST:

Wildflower Telecommunications, LLC
By: _____

Name: _____
Title: _____

By: _____
Name: _____

_____ Title: _____
City Clerk

APPROVED AS TO FORM:

By: _____
Gary E. Rebenstorf
City Attorney and Director of Law

APPROVED AS TO FORM:

By: _____
Name: _____
Attorney for Wildflower Telecommunications, LLC

LEVEL 3 COMMUNICATIONS, LLC
Ordinance No. 50-392

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS GRANTING TO LEVEL 3 COMMUNICATIONS, LLC, A DELAWARE LIMITED LIABILITY COMPANY, ITS SUCCESSORS AND ASSIGNS, A FIBER OPTIC CABLE FRANCHISE AND PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO.

BE IT ORDERED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

FRANCHISE AGREEMENT

This Franchise Agreement is made this 13th day of December, 2016, by and between the City of Wichita, Kansas, a municipal corporation (City), and Level 3 Communications, LLC, a Delaware limited liability corporation Franchised to do business in the State of Kansas (Level 3).

WHEREAS, pursuant to the laws of the State of Kansas and the ordinances of the City of Wichita, Kansas, the authority to use the public rights of way within the City of Wichita, Kansas, is vested in the reasonable police powers of the City; and

WHEREAS, Level 3 wishes to place and maintain fiber optic lines in certain portions of the City's rights of way.

NOW, THEREFORE, in light of the mutual promises and obligations contained herein, and in exchange for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged by the parties, the parties agree as follows:

SECTION 1. Definitions. For the purposes of this Franchise Agreement, the following words and phrases shall have the meanings given herein:

(a) "City" shall mean the City of Wichita, Kansas. References to the City shall also include, as appropriate, any and all successors and assigns.

(b) "Facilities" shall mean fiber optic lines and all appurtenances and improvements thereto, whether existing above or below ground.

(c) "Franchise" shall mean a grant conveying the right, privilege, and authority to construct, operate and maintain facilities in, through and along the City's right of way for the purposes of supplying communications services.

(d) "Level 3" shall mean Level 3 Communications, LLC, a Delaware limited liability company certified by the Kansas Corporation Commission (KCC) as a competitive local exchange carrier on October 27, 1999 and an interexchange carrier on May 14, 1999. References to Level 3 shall also include, as appropriate, any and all successors and assigns.

(e) "Private party" means a non-governmental entity.

(f) "Public Improvement" shall mean any existing or contemplated public facility, building, or capital improvement project, including but not limited to streets, alleys, sidewalks, sewers, water mains, drainage conduits, telecommunication conduits, rights of way improvements, and other Public Projects.

(g) "Public Project" shall mean any project planned or undertaken by the City or any other governmental entity for the construction, reconstruction, maintenance, or repair of public facilities or Public Improvements, or for any public purpose.

(h) "Public Rights of Way" shall mean only those areas of real property in which the City has dedicated or acquired rights of way interests in the real property. It shall include the area on, below, or above the present and future streets, sidewalks, alleys, avenues, roads, highways, parkways, boulevards, or bridges dedicated or acquired as rights of way. The term does not include the airwaves above rights of way with regard to wireless telecommunications, other non-wire

telecommunications, or broadcast service, easements obtained by utilities, or private easements in platted subdivisions or tracts.

(i) "Telecommunications Services" shall mean providing the means of transmission between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information sent and received.

All definitions not specifically defined herein shall have the meaning ascribed to them by applicable federal, state or local law.

SECTION 2. Grant of Franchise. (a) For and in recognition of the mutual consideration set forth in this Franchise Agreement, the satisfaction of which is hereby acknowledged by both parties, Level 3, as successor in interest pursuant to City of Topeka Contract No. 29704 to do business in the State of Kansas is hereby granted a nonexclusive Franchise to construct, place, replace, repair, maintain, extend, and operate its facilities along, across, upon, under, or in the City's Public Rights of Way, for the purpose of providing a fiber optic network to provide digital data and/or voice transport.

The City may, in writing, approve amendments to the locations and to the routes of Level 3's fiber optic facilities, which approval shall not be unreasonably withheld, conditioned or delayed.

(b) This Franchise Agreement does not grant Level 3 the authority or right to provide end user "Cable Service." For the purposes of this agreement, "Cable Service" is defined as the one-way transmission to subscribers of video programming or other programming services, and subscriber interaction, if any, which is required for the selection of such video programming or other programming service.

(c) The grant of this Franchise Agreement shall not convey title, equitable or legal, to Level 3 in the Public Rights of Way of the City and shall only give to Level 3 the right to occupy the Public Rights of Way of the City for the purposes and for the time stated in this Franchise Agreement. The Franchise Agreement does not:

(1) Grant Level 3 the right to use Facilities or any other property, telecommunications-related or otherwise, owned or controlled by the City or a third party, without the valid written consent of the City or the third party.

(2) Grant Level 3 the authority to construct, to operate, or to maintain any Facilities and any related appurtenances and improvements thereto on any property owned by the City outside a Public Right of Way, including but not limited to public parks, City Hall, public works facilities, or other public property. The parties agree that the City and Level 3 shall—if it becomes necessary—enter into separate agreements for the placement of Facilities and any related appurtenances and improvements thereto on any City-owned property not located in a Public Right of Way.

(3) Excuse Level 3 from obtaining appropriate access or attachment agreements before locating its Facilities and any related appurtenances and improvements thereto on any property or facilities owned or controlled by the City or by any third party.

(d) As noted in subsection (b), Level 3 shall not provide any additional services for which a separate franchise is required by the City without first obtaining a separate franchise or amending this Franchise Agreement. In particular, this Franchise Agreement does not grant Level 3 the right to provide cable service as a cable operator (as defined by 47 U.S.C. § 522(5)) within the City. Level 3 also agrees that this Franchise Agreement does not permit it to operate an open video system without the payment of fees contemplated by 47 U.S.C. § 573(c)(2)(B) and without complying with all FCC regulations promulgated pursuant to 47 U.S.C. § 573. Level 3 shall not knowingly allow the use of its Facilities by any third party in violation of this subsection or of any federal, state, or local laws.

(e) Nothing in this Franchise Agreement shall be construed as giving Level 3 any exclusive rights or privileges.

(f) Level 3 or Level 3's contractor shall, prior to commencing any construction of Level 3's Facilities in a Public Right of Way, post a payment bond an amount equal to the estimated construction costs assuring that the construction of Level 3's Facilities in the Public Right of Way will be constructed without the attachment of any construction liens. Such payment bond will be returned by the City and cancelled upon Level 3 providing reasonable proof of payment for the construction.

(g) Notwithstanding anything herein to the contrary, Level 3 reserves all rights it may have under applicable federal, state and local laws affecting this Franchise Agreement, including but not limited to K.S.A. 12-2001.

SECTION 3. Use of Public Rights of Way. In using Public Rights of Way under this Franchise Agreement, Level 3 shall be subject to all applicable ordinances, resolutions, rules, regulations, and policies now or hereafter adopted or promulgated by the City in the reasonable exercise of its police powers and shall be subject to all applicable laws, statutes, ordinances, regulations, orders, and rules adopted or promulgated by any governing body now or hereafter having appropriate jurisdiction. As a condition of this Franchise Agreement, Level 3 shall obtain and shall be responsible for obtaining and maintaining any necessary permits, licenses, certifications, grants, registrations, or other authorizations required by any appropriate governmental entity, including but not limited to the FCC, the KCC, or the City, subject to Level 3's right to challenge in good faith such requirement. In addition, Level 3 shall be subject to all applicable ordinances, resolutions, rules, regulations, and policies now or hereafter adopted or promulgated by the City relating to the use of Public Rights of Way, including but not limited to permits, sidewalk and pavement cuts, utility location, construction coordination, "Complete Streets" policies, beautification, tree care, and other requirements affecting the use of Public Rights of Way. Level 3 shall also comply with the following:

(a) Level 3's use of the Public Rights of Way shall in all matters be subject and subordinate to the City's use of the Public Rights of Way for any public purpose or for any purpose relating to the health, safety, and welfare of the City. Level 3 shall coordinate the placement of its Facilities in a manner that minimizes adverse impact on Public Improvements as reasonably determined by the City. Where placement is not otherwise regulated, the Facilities shall be placed with adequate clearance from such Public Improvements so as not to impact or be impacted by such Public Improvements.

(b) All earth, materials, sidewalks, paving, crossings, utilities, Public Improvements, or improvements of any kind that are injured, damaged, or removed by Level 3, while engaging in any activity under this Franchise Agreement, shall be fully repaired or replaced within a reasonable time by Level 3 at its sole cost and expense and to the reasonable satisfaction of the City.

(c) Level 3 shall keep and maintain accurate records and as-built drawings depicting the accurate location of all Facilities constructed, reconstructed, located, or relocated in the Public Rights of Way of the City after the date hereof and shall provide that information to the City upon its request. Such location and identification shall be at the sole cost and expense of Level 3, without any such cost or expense to the City or its authorized agents and contractors.

The City agrees to use any information obtained under this subsection only to locate utility facilities in connection with Public Projects and further agrees not to disclose such information to anyone other than City employees requiring such information to locate utility facilities in connection with Public Projects, except as may otherwise be required by law. The City and Level 3 agree that such information is confidential and proprietary. The City and Level 3 also agree that such information shall remain the sole property of Level 3. The City and Level 3 further

agree that such information shall not constitute an open public record as that term is defined by the Kansas Open Records Act, codified as amended at K.S.A. 45-215 et seq. In the event that the City shall be required to disclose such information, the City shall provide Level 3 advance written notice of its intended disclosure of such information and shall take such action as may be reasonably required to cooperate with Level 3 in safeguarding such information.

Level 3 agrees to indemnify and to hold the City harmless from any and all penalties or costs, including reasonable attorneys' fees, incurred by the City, at the written request of Level 3, in seeking to safeguard the confidentiality of information provided to the City by Level 3 under this section.

In the event that such information is required by law to be publicly disclosed, then Level 3 shall have no further obligation under this section to provide the City with such information.

(d) Except in cases of emergency, a minimum of fourteen (14) days prior to construction, reconstruction, location, or relocation of any Facilities in a Public Right of Way, Level 3 shall submit to the City Engineer, or his or her designee, for approval, plans and specifications related to the proposed construction, reconstruction, location, or relocation. The City shall not unreasonably withhold, delay, or condition approval of said plans and specification. The City's review of the plans and specifications shall be confined to matters impacting the interests of the City in managing the Public Rights of Way of the City.

(e) As reasonably necessary to accommodate City projects (not to include private parties), Level 3 shall relocate or adjust any of its Facilities located in a Public Right of Way for a Public Project upon forty-five (45) days written notice from the City. Such relocation or adjustment shall be performed by Level 3 at its sole cost and expense, without any cost or expense to the City or its authorized agents and Contractors and shall be subject specifically to the rules and regulations of the City.

Notwithstanding Section 3(e), Level 3 shall not be responsible for the expenses of relocation to accommodate any private party installation initiated installation of its Facilities. The expenses attributable to such a project shall be the responsibility of the private party upon the request and appropriate documentation of Level 3. Before such expenses may be billed to the private party, Level 3 shall coordinate with the private party and the City on the design and construction to ensure that the work required is necessary and done in a cost effective manner. Level 3 may require payment in advance of estimated costs or relocation prior to undertaking any work required to accommodate any installation initiated after the effective date of this Agreement.

(f) It shall be the sole responsibility of Level 3 to take adequate measures to protect and defend its Facilities in the Public Rights of Way from harm and damage. If Level 3 fails to accurately or timely locate its Facilities when requested, then Level 3 has no claim for costs or damages against the City or its authorized agents and Contractors or any other party authorized to be in the Public Rights of Way, except to the extent that such harm or damage is caused by such party's negligent or intentional conduct. The City and its authorized agents and Contractors agree to take reasonable precautionary measures, including but not limited to calling for utility locations and observing marker posts, when working near Level 3's Facilities.

(g) Except in cases of emergency, Level 3 shall notify the City not less than ten (10) days in advance of any construction, reconstruction, repair, location, or reloca-

tion of Facilities that would require any street closure or that would reduce the traffic flow to less than two lanes of moving traffic. The City shall follow its policies in the approval or denial of such authority, neither of which shall be unreasonably denied nor delayed. Except in cases of emergency, no such closure shall take place without the prior authorization of the City.

In addition, all work performed in the traveled Public Rights of Way that, in any way, impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected. For all work performed within the Public Rights of Way, Level 3 shall comply with the City's regulations, rules, and orders regarding the placement of signs, barricades, and other safeguards.

(h) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the facilities in the Public Rights of Way shall be in accordance with applicable present and future federal, state, and local laws and regulations.

(i) The City shall have the authority to prohibit Level 3's use or occupation of a specific portion of any Public Right of Way that is environmentally sensitive, as defined by federal, state, or local law or regulation, or that lies within a previously designated historic district as defined by federal, state, or local law, provided such prohibition in applied in a competitively neutral, non-discriminatory manner.

SECTION 4. Compensation to the City. (a) Level 3 is solely responsible for the payment of all lawful franchise and permit fees in connection with Level 3's performance under this Agreement.

(b) In consideration of this Franchise Agreement, Level 3 agrees to remit to the City a franchise fee of five percent (5%) of Gross Revenues ("Franchise Fee"). As defined in Wichita City Code 3.93.040, "gross receipts" means all revenues received directly or indirectly by a franchisee or its affiliates for communications services that either originate or terminate within the corporate limits of the city, and all revenue derived from the use of facilities. If a telecommunications local exchange service provider offers additional services of a wholly local nature which if in existence on or before July 1, 2002, would have been included with the definition of gross receipts, such services shall be included from the date of the offering of such services in the City. Such gross receipts means only those receipts collected from within the corporate boundaries of the City and which are derived from the following: (1) recurring local exchange service revenues from businesses and residences which includes basic telephone exchange service, touch tone, optional calling features and measured local calls; (2) recurring local exchange access line services for pay phone lines provided by a telecommunications local exchange service provider to all pay phone service providers; (3) local directory assistance (411); (4) line status verification/ busy interrupt; (5) local operator assistance; (6) nonrecurring local exchange service revenue, which shall include customer service charges for installation of lines, reconnection of service and charge for duplicate bills.. All other revenues, including, but not limited to, revenues from extended area service, the sale or lease of unbundled network elements, nonregulated services, carrier and end user access, long distance or interexchange services, wireless telecommunications services, lines providing only data service without voice services processed by a telecommunications local exchange service provider, private line service arrangements, internet, broadband and all other services not wholly local in nature are exclude from gross receipts. Additionally, "gross receipts" shall not include revenues from cable services subject to a cable services franchise, or bad or uncollected debt and late charges, and any federal, state or local taxes or franchise fees separately stated on a customer's bill, provided, that a franchisee shall include uncollected debt in gross receipts at the time it is actually collected.

(c) The franchise fee is compensation for the use of the right of way and shall in no way be deemed a tax of any kind. The franchise fee is in addition to, and not in lieu of, the City's Telecommunications Service Occupation Tax under Wichita City Code section 3.90.020. Level 3 will receive credit toward total franchise fee payment pursuant to Wichita City Code section 3.93.350 for occupation tax paid.

(d) In accordance with section 3.93.310 of the Wichita City Code, each franchise fee payment shall be accompanied by a statement showing the manner in which the franchise fee was calculated. The franchise fee payment should also specify occupation tax credit as identified in section 4(c) above.

(e) The franchise fee shall be due on a quarterly basis. The first payment shall be due on the first day of the month following the date on Page 1 of this Franchise Agreement, without the City being responsible for submitting an invoice. Any franchise fee not postmarked or delivered by the due date shall accrue interest from the due date until received, at the applicable statutory interest rate, as defined in K.S.A. 16-201.

SECTION 5. Indemnification. (a) It shall be the responsibility of Level 3 to take adequate measures to protect and defend its Facilities in the Public Rights of Way from harm or damage. If Level 3 fails to accurately or timely locate its Facilities, when requested, in accordance with the Kansas Underground Utility Damage Prevention Act, K.S.A. 66-1801 et seq., then it has no claim for costs or damages against the City or its authorized Contractors, except to the extent such harm or damage is caused by such party's negligence or intentional conduct.

(b) Level 3, and any successor or assign, agrees to indemnify, defend, save, and hold harmless the City, its officers, agents, employees, grantees, and assigns, from and against all claims, actions, liabilities, damages, costs, expenses, and judgments, including reasonable attorneys' fees, on account of any injury to persons (including death) or damage to property to the extent caused by Level 3's activities in the Public Rights of Way under the terms of this Franchise Agreement. This indemnification clause shall not apply to any injury or damage caused by the City's own negligence or intentional conduct or that of its employees, agents, or Contractors. This indemnity provision shall extend beyond the termination or expiration of this Franchise Agreement.

(c) The City and Level 3 shall promptly advise the other in writing of any known claim or demand against Level 3 or the City related to or arising out of the Level 3's activities in the Public Rights of Way.

SECTION 6. Transfer and Assignment. (a) Pursuant to the written permission of the City, which shall not unreasonably be withheld, conditioned or delayed, Level 3 shall have the right to assign this Franchise Agreement and the rights and privileges hereby granted to any person, firm, or corporation, and any such assignee, who by accepting such assignment shall be bound by the terms and provisions of this Franchise Agreement. If Level 3 should seek approval to assign this Franchise Agreement, Level 3 shall notify the City in writing. All such assignments shall be in writing and authenticated copies thereof shall be filed with the City Clerk. This Franchise Agreement shall be assignable only in accordance with the laws of the State of Kansas.

(b) This prohibition shall not apply, and the City's prior consent shall be not required, in the case of sale, assignment, transfer, or lease by Level 3 to an affiliated entity or to a successor in interest to the merger, consolidation, sale or acquisition of Level 3; nor shall it apply to assignments made or security interests granted in order to secure financing. The City shall have the discretion to review the qualifications of any entity acquiring this Franchise Agreement.

SECTION 7. Notice. All notices, requests, demands, or other communications hereunder shall be in writing and shall be deemed given if personally delivered or mailed, certified mail,

return receipt requested, or by a recognized overnight delivery service, to the following addresses:

If to City:

City of Wichita, Kansas
Attn: City Clerk
455 North Main Street, 13th Floor
Wichita, Kansas 67202

With a copy to:

City Attorney
455 North Main Street, 13th Floor
Wichita, Kansas 67202

If to Level 3:

Level 3 Communications, LLC
Attn: Network Infrastructure Services
1025 Eldorado Boulevard
Broomfield, CO 80021

With a copy to:

Level 3 Communications, LLC
Attn: General Counsel
1025 Eldorado Boulevard
Broomfield, CO 80021

Any such Notice shall be deemed effective upon actual receipt or refusal of receipt as shown on any return receipt obtained under this Section.

SECTION 8. Term and Termination Date. (a) This Franchise Agreement shall be effective for a term of ten (10) years from the effective date of this Franchise Agreement. Thereafter, this Franchise Agreement will renew for one (1) additional ten (10) year term, unless either party notifies the other party in writing of its intent to terminate or renegotiate this Franchise Agreement not less than one hundred eighty (180) days before the termination of the then-current term. The additional term shall be deemed a continuation of the Franchise Agreement and not a new Franchise Agreement or amendment.

(b) Upon written request of the City or Level 3, this Franchise Agreement shall be renegotiated at any time upon either of the following events: (i) any change in federal, state, or local laws, ordinances, regulations, orders, or rules that materially affects any rights or obligations of either the City or Level 3 under this Franchise Agreement; or (ii) notice is given not less than one hundred eighty (180) days before the termination of the then-current term.

(c) If any clause, sentence, section, or provision of K.S.A. 17-1901 et seq., and any amendments thereto, shall be held to be invalid by any court or administrative agency of competent jurisdiction, provided such order is not stayed, either the City or Level 3 may elect to request an amendment to the Franchise Agreement to be consistent with the order, unless the Franchise Agreement cannot be reasonably amended to remain a valid agreement in light of the order, in which event either the City or Level 3 may elect to terminate the entire Franchise Agreement. In the event of such invalidity and termination, if either the City or Level 3 is required by law to enter into a new agreement or an Ordinance Franchise with the other, the parties agree to act in good faith to promptly negotiate a new agreement or an Ordinance Franchise.

SECTION 9. Termination or Forfeiture of Agreement. (a) In case of failure on the part of Level 3, its successors or assigns, to comply with any of the provisions of this Franchise Agreement, or if Level 3, its successor or assigns, should do or cause to be done any act or thing prohibited by or in violation of the terms of this Franchise Agreement, then Level 3, its successors or assigns, shall forfeit all rights and privileges granted by the Franchise Agreement and all rights hereunder shall cease, terminate, and become null and void, provided that said forfeiture shall not take effect until the City shall complete the following:

Before the City may proceed to terminate this Franchise Agreement, it shall first serve a written notice as provided by the Notice provisions of this Franchise Agreement, setting forth in detail the conditions of neglect, default, or failure complained of, and Level 3 shall have ninety (90) days after the receipt of such notice in which to comply with the conditions of this Franchise Agreement. If, at the end of such ninety (90) day period, the City deems that the conditions of the Franchise Agreement have not been met and that such Franchise Agreement is subject to

cancellation thereunder, then the City shall terminate the Franchise Agreement, unless compliance with the conditions cannot be reasonably accomplished within said ninety (90) day period, in which event Level 3 shall have such additional time as is reasonably necessary provided Level 3 has commenced the cure within said ninety (90) day period and diligently prosecutes the cure to completion.

(b) Level 3, its successors or assigns, may terminate this Franchise Agreement by notifying the City of its intent to terminate not less than thirty (30) days prior to the annual anniversary date of this execution of this Franchise Agreement.

(c) In the event of forfeiture or termination of the Franchise Agreement under this Section, Level 3 agrees that all compensation paid theretofore to the City shall be forfeited.

SECTION 10. Rights and Duties upon Termination of Agreement. Upon termination of this Franchise Agreement, whether by lapse of time, agreement by the parties, or by forfeiture, Level 3 shall have the right to abandon in place or, at its option, to remove its Facilities from the Public Rights of Way within a reasonable time after such termination. In the case of the latter event, it shall be the duty of Level 3 immediately upon removal to restore the Public Rights of Way from which said Facilities are removed to as good condition as the same were before said removal was effected, ordinary wear and tear and damages not caused by Level 3 excepted, without cost to the City. In the case of the former event, abandonment by Level 3 shall operate to vest in the City all title, rights, and ownership of the abandoned facilities in their AS-IS, WHERE-IS condition with no warranties or guarantees of any kind.

SECTION 11. Insurance. (a) During the initial term, the renewal term, or any other extension of this Franchise Agreement, Level 3 shall obtain and maintain insurance coverage, at its sole cost and expense, with financially reputable insurers that are licensed to do business in the State of Kansas. Should Level 3 elect to use the services of an affiliated captive insurance company for this purpose, Level 3 shall obtain and possess a certificate of authority from the Kansas Insurance Commissioner. Level 3 shall provide not less than the following insurance:

(1) Worker's compensation as provided for under any workers' compensation or similar law in the jurisdiction where any work is performed with an employers' liability limit equal to the amount required by law.

(2) Commercial general liability, including coverage for contractual liability and products completed operations liability on an occurrence basis and not a claims made basis, with a limit of not less than Two Million Dollars ($2,000,000.00) combined single limit per occurrence for bodily injury, personal injury, and property damage liability. The City shall be named as an additional insured with respect to liability arising from Level 3's operations under this Franchise Agreement. Level 3 may utilize a combination of primary and umbrella liability insurance policies to satisfy the insurance policy limit requirements herein.

(b) As an alternative to the requirements of Section 11(a), supra, Level 3 may demonstrate to the satisfaction of the City that it is self-insured and that it has the wherewithal to provide coverage in an amount no less than One Million Dollars ($1,000,000.00) per occurrence and Two Million Dollars ($2,000,000.00) in aggregate to protect the City from and against all claims by any person for loss or damage from death, personal injury, bodily injury, or property damage occasioned by Level 3 or so alleged to have been caused or to have occurred.

(c) Level 3 shall, as a material condition of this Franchise Agreement, prior to the commencement of any work, deliver to the City a certificate of insurance or evidence of self-insurance evidencing that the above insurance is in force and will not be cancelled without first giving the City thirty (30) days prior written notice. Level 3 shall make available to the City, on request, the policy declarations page and a certified copy of

the policy in effect so that limitations and exclusions can be evaluated for appropriateness of overall coverage.

(d) Level 3 shall, as a material condition of this Franchise Agreement, prior to the commencement of any work hereunder, deliver to the City satisfactory evidence of a performance bond in the amount of Twenty Thousand Dollars ($20,000.00) payable to the City. The bond shall be used to ensure the appropriate and timely performance in the construction and maintenance of Facilities located in the Public Rights of Way and must be issued by a surety company authorized to transact business in the State of Kansas and satisfactory to the City Attorney or to the City's Legal Department in form and substance. The performance bond shall remain in effect the entire term of the Ordinance to ensure the ongoing performance of the terms and obligations of the franchise as well as any future phases of construction and/or repair work. Notwithstanding the foregoing sentence, the City reserves the right to require Level 3 to provide additional financial assurance for future phases of construction and/or repair work, as reasonably determined by the City.

SECTION 12. Reservation of Rights. In entering into this Franchise Agreement, neither the City's nor Level 3's present or future legal rights, positions, claims, assertions, or arguments, before any administrative body or court of law are in any way prejudiced or waived. By entering into this Franchise Agreement, neither the City nor Level 3 waive any rights, but instead expressly reserve any and all rights, remedies, and arguments the City or Level 3 may have at law or equity, without limitation, to argue, assert and/or take any position as to the legality or appropriateness of this Franchise Agreement or any present or future laws, ordinances, or rulings that may be the basis for the City or Level 3 entering into this Franchise Agreement.

SECTION 13. Failure to Enforce. The failure of either the City or Level 3 to insist in any one or more instances upon the strict performance of one or more of the terms or provisions of this Franchise Agreement shall not be construed as a waiver or relinquishment of any right in the future to enforce such term or provision, and the same shall continue in full force and effect. No waiver or relinquishment of any term or provision of this Franchise Agreement shall be deemed to have been made by the City or Level 3 unless said waiver or relinquishment is in writing and signed by both the City and Level 3.

SECTION 14. Force Majeure. No party shall be liable for any failure to perform its obligations where such failure is a result of acts of God, fire, strikes, riots, floods, war, and other disasters or events beyond the City's or Level 3's reasonable control.

SECTION 15. Severability. If any provision, section, or subsection of this Franchise Agreement or the application thereof to any person or circumstance is declared invalid by a competent court of law, such invalidity shall not affect other provisions, sections, subsections, or applications of this Franchise Agreement that can be given effect without the invalid provision, section, subsection, or application, and to this end the provisions, sections, subsection, or applications of this Franchise Agreement are hereby declared to be severable.

SECTION 16. Governing Law. The terms of this Franchise Agreement shall be governed by the laws of the State of Kansas.

IN WITNESS WHEREOF, the undersigned have caused this Franchise Agreement to be executed as of the date noted above.

CITY OF WICHITA

/s/ _____
Jeff Longwell-Mayor

APPROVED AS TO FORM:

/s/ _____
Jennifer Magaña
City Attorney and Director of Law

ATTEST:

/s/ _____
Karen Sublett
City Clerk

LEVEL 3 COMMUNICATIONS, LLC

/s/ _____
Print Name and Title
(Ord. No. 50-392, 12-13-2016)

VERIZON WIRELESS (VAW) LLC D/B/A VERIZON WIRELESS ORDINANCE NO. 50-612

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS, GRANTING TO VERIZON WIRELESS (VAW) LLC D/B/A VERIZON WIRELESS, A DELAWARE LIMITED LIABILITY COMPANY, ITS SUCCESSORS AND ASSIGNS, A CONTRACT FRANCHISE AND MUNICIPAL STRUCTURE USE AGREEMENT AND PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

This Contract Franchise and Municipal Structure Use Agreement ("Agreement") is entered into as of 11/21, 2017 ("Effective Date") by and between the City of Wichita, a municipal corporation (the "City"), and Verizon Wireless (VAW) LLC d/b/a Verizon Wireless ("Verizon").

RECITALS

A. Verizon Wireless (VAW) LLC d/b/a Verizon Wireless is a Wireless Services Provider regulated by the Federal Communications Commission (FCC).

B. Verizon seeks to enter the City's Public Rights-of-Way (the "ROW"), and other real property of the City, to install, maintain and operate certain Equipment, Ground Equipment, and New Poles so that Verizon may provide Telecommunications Services to its customers.

C. Equipment may be located on Municipal Structures, Ground Equipment may be located within the ROW adjacent to third-party utility poles and other structures located within the ROW, and New Poles may be installed in the ROW, as permitted under this Agreement and applicable Laws.

D. Verizon desires to obtain from City, as permitted by law, and City is willing to grant to Verizon, as required by law, the right to access the ROW to locate, place, attach, install, operate, use, control, repair, replace, upgrade, enhance and maintain its Equipment, Ground Equipment, and New Poles in a manner consistent this Agreement.

In consideration of the Recitals set forth above, the terms and conditions of this Agreement and other valuable consideration, the adequacy of which is hereby acknowledged, the parties agree as follows:

SECTION 1-A DEFINITIONS

For the purposes of this Agreement the following words and phrases shall have the meaning given herein.

a. "Commenced Installation" shall mean the date that Verizon commences to install its Equipment, or any expansion thereof, in the City's ROW.

b. "Equipment" means the equipment cabinets, antennae, utilities and fiber optic cables, wires, and related equipment, whether referred to singly or collectively, to be installed and operated by Verizon under a particular Supplement and that comprise a Small Cell installation. "Equipment" does not include "Ground Equipment", as defined below.

c. "Ground Equipment" means the equipment cabinets, utilities, and related equipment, whether referred to singly or collectively, to be installed on the ground within the ROW as part of an attachment of a Wireless Facility to a pole or structure owned and/or operated by third parties.

d. "Laws" means any and all laws, regulations, ordinances, resolutions, judicial decisions, rules, permits and approvals applicable to the subject matter of this Agreement. This Agreement does not limit any rights Verizon may have in accordance with Laws to install its own poles in the ROW or to attach Verizon's Wireless Facilities to third-party poles located in the ROW. This Agreement shall in no way limit or waive either party's present or future rights under Laws. If, after the date of this Agreement, the rights or obligations of either party are

materially preempted or superseded by changes in Laws, the parties agree to amend this Agreement to reflect the change in Laws.

e. "Municipal Structures" means Poles, lighting fixtures, electroliers, or other structures owned and/or leased by the City and located within the ROW, and may refer to such structures in the singular or plural, as appropriate to the context in which used.

f. "Network" or collectively "Networks" means the telecommunications network operated by Verizon, and located within the Public Rights-of-Way, to serve its customers.

g. "New Pole(s)" means a pole, or other "wireless support structure" as that term is defined in K.S.A. § 66-2019(b)(21) and amendments thereto, owned or operated by Verizon.

h. "Poles" means any utility and/or lighting poles that are owned and/or leased by the City.

i. "Public Rights-of-Way" or "ROW" means only the area of real property in which the City has a dedicated or acquired right-of-way interest in the real property. It shall include the area on, below or above the present and future streets, alleys, avenues, roads, highways, parkways or boulevards dedicated or acquired as right-of-way. The term does not include easements obtained by utilities or private easements in platted subdivisions or tracts. The term also does not include infrastructure located within the Public Rights-of-Way owned by the City or other third-parties, such as Poles, ducts or conduits.

j. "Small Cell" means the Equipment at a particular location that comprises part of the Network.

k. "Supplement" shall mean each separate agreement, entered into between the City and Verizon with regard to specific Small Cell installations, the form of which shall be in substantially the same form as attached hereto as Exhibit A, which shall be subject to the terms and conditions of this Agreement.

l. "Telecommunications Services" has the same meaning as that term is defined in the United States Code, 47 U.S.C. § 153(53), or any other use authorized by and licensed to Verizon by the FCC, including, without limitation, Wireless Services.

m. "Wireless Facility" or "Wireless Facilities" has the same meaning as that term is defined under K.S.A. § 66-2019(b)(18) and amendments thereto.

n. "Wireless Services" has the same meaning as that term is defined under K.S.A. § 66-2019(b)(19) and amendments thereto.

o. "Wireless Services Provider" means a provider of Wireless Services as defined in K.S.A. § 66-2019(b)(24) and amendments thereto.

SECTION 1
INSTALLATION OF THE NETWORK

1. 1 Permitted Installation. Verizon may, at Verizon's sole cost and expense, and during the term of this Agreement, locate, construct, place, attach, install, operate, use, control, repair, replace, upgrade, enhance and maintain Equipment, Ground Equipment, and New Poles subject to the terms and conditions of this Agreement. Verizon shall undertake and perform any work authorized by this Agreement in a skillful and workmanlike manner.

1.1.1 **Installation Specifications.** The installation of Equipment, Ground Equipment, and New Poles shall be made in accordance with plans and specifications as may be approved by the City, such approval not to be unreasonably withheld, conditioned, or delayed, and after obtaining all necessary Permits for all work in the ROW and/or on City property. Such approval review shall be made no later than forty-five days (45) days from application date, unless applicable Laws require a shorter approval period. The location, depth of the fiber underground in the ROW, and any other requirements, shall be approved in writing by the City prior to construction of Equipment, Ground Equipment or New Poles at each specific location, approval of which shall not be unreasonably withheld, conditioned or delayed. Approval of plans and specifications and the issuance of any Permits by the City shall not release Verizon from the responsibility for, or the

correction of, any errors, omissions or other mistakes that may be contained in the plans, specifications and/or Permits. Verizon shall be responsible for notifying the City immediately upon discovery of such omissions and/or errors and with obtaining any amendments for corrected City-approved permits, as may be necessary. Verizon shall be responsible for all duly enacted and lawfully imposed costs associated with the permitting process, including, but not limited to, repairs and replacement of the affected ROW. Such Permits and approval requirements detailed in this section shall not be unreasonably withheld, conditioned or delayed by the City, and any such conditions or requirements shall be in applicable Laws. Attachment to Municipal Structures must follow the procedures utilized in Section 5.

1.1.2 **Temporary Construction.** If the installation of Verizon's Equipment, Ground Equipment, and New Poles will require Verizon to obstruct or otherwise interfere with the portion of the ROW designated for vehicular traffic, then such installation shall be performed in accordance with traffic control plans for temporary construction work that are approved by the City, which approval shall not unreasonably be withheld, conditioned or delayed.

1.1.3 **Construction Schedule.** If requested by the City, at least ten (10) days prior to the installation of Equipment, Ground Equipment, and New Poles, Verizon shall deliver to the City a schedule for the proposed work related to the construction of same, as well as a list of the names of all agents and contractors of Verizon authorized by Verizon to access the City ROW and City owned property on Verizon's behalf.

1.1.4 **Coordination of Work.** Verizon shall be responsible for coordination of work to avoid any material interference with existing utilities, substructures, facilities and/or operations within the City's ROW. Verizon shall be the City's point of contact and all communications shall be through Verizon. Verizon shall be solely responsible for communicating with Kansas One-Call.

1.1.5 **Inspection by City.** The City shall have commercially reasonable access to inspect any work conducted by Verizon during the installation, maintenance and/or repairs of Equipment, Ground Equipment, and New Poles.

1.1.6 **Other Utility Providers.** When necessary, Verizon shall coordinate with other utility providers for other needed utility services and, subject to the provisions of Section 4.1, Verizon and the City will reasonably cooperate with the other utility providers regarding the location of any meter, pole, and other apparatuses required for each Small Cell installation.

1.1.7 **Existing Utility Poles.** If Verizon attaches a Wireless Facility to an existing utility pole pursuant to a properly executed agreement with the pole owner, any necessary replacement of the pole in order to accommodate the attachment shall be subject to the proper exercise of the City's police powers, and in no instance shall Verizon erect a New Pole within an existing aerial pole line absent the City's prior authorization, as determined by the City in accordance with applicable Laws.

1.2 Compliance with Laws. This Agreement is subject to the terms and conditions of all applicable Laws and the parties shall comply with any such Laws in the exercise of their rights and performance of their obligations under this Agreement.

1.2.1 **Zoning Regulations.** Zoning regulations shall not apply to installations of Equipment, Ground Equipment, and New Poles within the ROW.

1.3 Permits. Verizon shall obtain all necessary ministerial permits required by any appropriate governmental entity, including the City, including, without limitation, any encroachment or building permits (the "Permits"), and shall pay those fees associated therewith relating to the installation of the Network as currently allowed by Law. For each Small Cell (or group of associated Small Cells) installed in the ROW, Verizon will pay to the City a one-time application fee to recover the City's costs associated with the review and approval of the installation

of each Small Cell, provided that such application fee is established as the amount necessary to reimburse the City for its reasonable, actual and verifiable costs of reviewing and approving the application to install the particular Small Cell.

1.3.1 **Intentionally Omitted.**

1.3.2 **Intentionally Omitted.**

1.3.3 **Compliance with Permits.** All work within the City's ROW or other real property of the City shall be performed in strict compliance with all applicable Permits and all applicable Laws.

1.3.4 **Intentionally Omitted.**

1.4 Placement of Equipment, Ground Equipment and New Poles. Verizon shall coordinate the placement of its Equipment, Ground Equipment, and New Poles in the ROW in a manner that minimizes adverse impact on public improvements, as reasonably determined by the City.

1.4.1 **Pole Height.** The height of any New Pole (defined in Section 1.5) should not exceed forty (40) feet above ground level unless specifically authorized by the City, or unless otherwise allowed by applicable Laws.

1.5 New Poles. It is understood that Verizon may build New Poles or other wireless support structures required for the installation of its "wireless facilities" (as that term is defined under K.S.A. § 66-2019(b)(18) and amendments thereto) which would comply with applicable Laws ("New Poles").

1.5.1 **Intentionally Omitted.**

1.5.2 **Intentionally Omitted.**

1.5.3 **Damage to New Poles.** If a New Pole falls or is damaged such that there is an imminent threat of harm to persons or property, then the City may cause the New Pole to be removed to the side of the street or a location that City believes reasonably eliminates the risk of such imminent threat of harm to persons and/or property. Verizon shall, after written notice is received by Verizon from the City that any New Pole has been damaged or removed, cause the New Pole to be repaired, removed, and/or replaced within thirty (30) days after the City's written notice is received by Verizon. The cost to repair, remove and/or replace any New Pole shall be paid by Verizon; provided, however, that if the New Pole is damaged or destroyed by the City, then the City shall pay the cost to repair, remove, and/or replace the New Pole. To the extent that Verizon seeks reimbursement for damages caused by a third party, either directly or through applicable insurance, the City shall assign to Verizon any rights the City may have against such third party for such claim.

1.6 Compensation to the City. Verizon is solely responsible for the payment of all lawful Permit fees and other applicable charges in connection with Verizon's performance under this Agreement. Unless previously paid, within sixty (60) days of the Effective Date, Verizon shall pay to the City a one-time, non-refundable, application fee of Five-Thousand Dollars ($5,000.00) in accordance with Wichita City Code 3.93.260, with said one-time application fee serving as a means to allow the City to recover its reasonable costs associated with the review and administration of this Agreement. This one-time application fee only applies to this Agreement, and is not required for any Supplement, or application for a Supplement, entered into under this Agreement.

1.6.1 **Attachment Fees.** As compensation to City for use of the Municipal Structures, Verizon shall, at the commencement of each Supplement Term (as defined in Section 2.2 herein), pay to the City, on an annual basis during the Supplement Term, an attachment fee equal to $100.00 for each attachment of a Small Cell to a Municipal Structure (including all related Equipment placed on the ground near the Municipal Structure) ("Attachment Fee").

1.6.2 **New Pole Fee.** Verizon shall pay to the City, on an annual basis during the Agreement Term, upon invoicing by the City in the manner provided for in Section 1.6.5, the amount of $125.00 per year for each New Pole that it installs in the ROW ("New Pole Fee"). Any New Pole Fee shall commence upon the

date that the City issues the final Permit required for the construction of the corresponding New Pole.

1.6.3 **ROW Ground Space Fee.** As compensation to City for use of the ROW where Verizon is not utilizing Municipal Structures or installing a New Pole, but Verizon requires the placement of Ground Equipment, Verizon shall pay to the City, on an annual basis during the Agreement Term, upon invoicing by the City in the manner provided for in Section 1.6.5, a fee in the amount of $100.00 per third-party pole or other structure upon which Verizon has attached a Small Cell (the "ROW Ground Space Fee"). The amount of the ROW Ground Space Fee is intended to approximate the City's cost to manage access to the ROW and to reflect Verizon's limited use of the ROW for its Ground Equipment. Any ROW Ground Space Fee shall commence upon the date that the City issues the final Permit required for the construction of the corresponding Ground Equipment.

1.6.4 **Payment of Annual Attachment Fees.** Verizon shall make the first payment of the annual Attachment Fee under any Supplement within ninety (90) days of the Acknowledgement (as defined in Section 2.2 herein). Thereafter, the annual Attachment Fee shall be paid in advance on or before each annual anniversary of the Commencement Date during the Supplement Term (each as defined in Section 2.2 herein).

1.6.5 **Payment of New Pole Fees and ROW Ground Space Fees.** Verizon shall pay the full undisputed amount of any invoice it receives from the City for New Pole Fees and ROW Ground Space Fees within forty-five (45) days after the City delivers the invoice to Verizon, with supporting documentation reasonably necessary to substantiate the amount invoiced.

1.6.6 **Payment Procedures.** All Attachment Fees, New Pole Fees, and ROW Ground Space Fees shall be paid by check made payable to City and mailed or delivered to City at the address provided in Section 10.3. The address for the delivery of payments may be changed at any time by City upon 45 days' prior written notice to Verizon. Mailed payments shall be deemed paid upon the date such payment is officially postmarked by the United States Postal Service. Notwithstanding the foregoing, upon agreement by the parties, Verizon may pay any one or more of such fees by electronic funds transfer and, in such event, City agrees to provide to Verizon bank routing information for such purpose.

1.6.7 **Taxes.** Verizon agrees that it will be solely responsible for the payment of any and all applicable taxes, fees and assessments levied on its ownership, use and maintenance of the Network. Pursuant to Section 79-5(a)(26) of the Kansas Revenue and Taxation Code, the City hereby advises, and Verizon recognizes and understands, that Verizon's use of the City's ROW and Municipal Structures may create a possessory interest subject to real property taxation and that Verizon may be subject to, and responsible for, the payment of real property taxes levied on such interest. Verizon will cooperate with the Sedgwick County Assessor in providing any information necessary for the Assessor to make a property tax determination. Verizon reserves the right to challenge any such assessment, and the City agrees to cooperate with Verizon in connection with any such challenge.

1.6.8 **Fee Documentation.** For any party to whom annual Attachment Fees, New Pole Fees, and ROW Ground Space Fees payments are to be made, the City or any successor-in-interest of the City hereby agrees to provide to Verizon (i) a completed, current version of Internal Revenue Service Form W-9, or equivalent; (ii) complete and fully executed state and local withholding forms, if required; and (iii) other documentation to verify the City's or such other party's right to receive payment of such fees as is reasonably requested by Verizon. Such fees shall accrue in accordance with this Agreement, but Verizon shall have no obligation to deliver fee payments until the requested documentation has been received

by Verizon. Upon receipt of the requested documentation, Verizon shall deliver the accrued fee payments as directed by the City.

1.7 Access to the Equipment, Ground Equipment and New Poles.

1.7.1 **Verizon Access to Equipment for Repair.** Verizon will be given reasonable access to each of the Municipal Structures and the ROW for the purposes of routine installation, repair, maintenance or removal of its Equipment, Ground Equipment, and New Poles. If any such maintenance activities have the potential to result in an interruption of any City services at the Municipal Structure, Verizon shall provide the City with a minimum of three (3) days prior written notice of such activities. Such activities shall, to the extent feasible, be done with minimal impairment, interruption, or interference to City services. Notwithstanding the forgoing, Verizon shall have reasonable, unfettered 24/7 access to the ROW, 365 days a year.

1.7.2 **City Observation.** At City's request, Verizon shall allow a representative of the City to observe any installation, repair, maintenance or removal work performed at the Municipal Structure and/or in the ROW.

SECTION 2
TERM AND TERMINATION

2.1 Term. This Agreement shall be effective as of the Effective Date, as defined in the preamble to this Agreement, and shall continue for ten (10) years thereafter ("Initial Term"). Thereafter, this Agreement shall automatically renew for three (3) additional 5-year terms ("Renewal Terms") unless Verizon notifies the City of its intent to terminate the Agreement at least 90 days prior to the end of the then-current term. The Initial Term and all Renewal Terms shall be collectively referred to herein as the "Agreement Term." In no event shall the City be permitted to terminate Verizon's right under this Agreement, or any Supplement, to place Equipment, Ground Equipment, and New Poles in the ROW unless material terms of the Agreement are breached, and Verizon fails to cure such breach within the applicable cure period. Notwithstanding anything herein, after the expiration or termination of this Agreement, its terms and conditions shall survive and govern with respect to all remaining Ground Equipment and/or New Poles as long as such Ground Equipment and/or New Poles remain in use, until their respective termination.

2.2 Supplement Term. The initial term for each particular Supplement shall commence the first day of the month following the date Verizon has Commenced Installation of its Equipment at a particular location under a Supplement (the "Commencement Date") and shall be for an initial term of ten (10) years (the "Supplement Initial Term"). The City and Verizon shall acknowledge in writing the Commencement Date (the "Acknowledgment"). Each Supplement shall automatically be extended for three (3) successive five (5) year renewal terms (each, a "Supplement Renewal Term") unless Verizon notifies the City in writing of Verizon's intent not to renew the Supplement at least thirty (30) days prior to the expiration of the then-current term. The Supplement Initial Term and all Supplement Renewal Terms shall be collectively referred to herein as the "Supplement Term." Notwithstanding anything herein, after the expiration or termination of this Agreement, its terms and conditions shall survive and govern with respect to each remaining Supplement in effect until its respective expiration or termination.

2.3 Extension of Termination Date. In the event the parties are actively negotiating in good faith a new agreement to replace this Agreement, or an amendment to extend the Agreement Term, the parties by written mutual agreement may extend the termination date of this Agreement to allow for further negotiations. Such extension period shall be deemed a continuation of this current Agreement and not as a new agreement.

2.4 Termination of Use. Notwithstanding Section 2.1 above, Verizon may terminate its use of any or all of the Municipal Structures and/or the ROW by providing written notice to the City in the manner provided in Section 10.3. In the event of any such termination, Verizon's payment obligations to the City shall terminate

simultaneously with the specified date of such termination, provided Verizon removes its Equipment, Ground Equipment, and New Poles, and restores the Municipal Structure and/or ROW, as set forth in Section 3, below, and in the Wireless Ordinance, prior to the specified termination date.

SECTION 3
REMOVAL AND RELOCATION

3.1 Removal Due to Public Project. Pursuant to K.S.A. § 66-2019 and amendments thereto, Verizon shall relocate its Equipment, Ground Equipment, and New Poles, at no cost to City, within the time set forth in the City's written request provided that the City provides a minimum of 180 days advance written notice, unless circumstances beyond the City's control require a shorter period of advance notice, whenever the City reasonably determines that the relocation of such Equipment, Ground Equipment, and New Poles are needed for any of the following purposes: (a) due to any work proposed to be done by or on behalf of the City or any other governmental agency, including but not limited to, any change of grade, alignment or width of any street, sidewalk or other public facility, installation of curbs, gutters or landscaping and installation, construction, maintenance or operation of any underground or aboveground facility such as sewers, water mains, drains, storm drains, pipes, gas mains, poles, power lines, telephone lines, cable television lines and tracks; (b) because any part of the Network is interfering with or adversely affecting the proper operation of Poles, traffic signals, or other City facility; or (c) to protect or preserve the public health and safety. The City shall cooperate with Verizon in relocating any Equipment, Ground Equipment, and New Poles removed pursuant to this Section 3.1 in a manner that allows Verizon to continue providing service to its customers, including, but not limited to, expediting approval of any necessary Permits required for the relocation of any Equipment, Ground Equipment, and New Poles relocated under this Section 3.1, and/or placing a temporary communications facility in a location as mutually approved by the parties.

3.2 Removal Due to Termination. No later than ninety (90) days after termination of this Agreement, or Supplement hereunder, pursuant to the provisions of this Agreement, Verizon shall, at its sole cost and expense, remove the applicable Equipment, Ground Equipment, and New Poles and, if such removal disturbs the Municipal Structure, ROW, and/or City real property, restore each Municipal Structure, ROW, or City real property to its original condition, reasonable wear and tear and damage by casualty excepted, and further excepting landscaping and related irrigation equipment, or other aesthetic improvements made by Verizon to the Municipal Structure, adjacent City ROW, and/or City real property. Alternatively, the City may allow Verizon, in the City's sole and absolute discretion, to abandon the Network, or any part thereof, in place and convey it to the City.

3.3 Abandonment. In the event Verizon ceases to operate a Small Cell and abandons the Small Cell for a period of ninety (90) consecutive days or more, the Small Cell shall be deemed abandoned after 30 days written notice to Verizon. In the event that Verizon has not reinstated use of the Small Cell, or provided the City with written notice confirming the Small Cell is not abandoned, within said 30-day notice period, Verizon shall, at its sole cost and expense, vacate and remove the abandoned Small Cell within 180 days from the date the Small Cell is deemed abandoned. If such removal disturbs the Municipal Structure, adjacent ROW, and/or City real property, Verizon shall also, at its sole cost and expense, restore the Municipal Structure, ROW or City real property as required by Section 3.2 of this Agreement. Alternatively, the City may allow Verizon, in the City's sole and absolute discretion, to abandon the Small Cell, or any part thereof, in place and convey it to the City.

3.4 No Relocation Compensation. The parties understand and agree that neither the City nor Verizon are entitled to compensation for any removal and/or relocation of Verizon's Equipment, Ground Equipment, and New Poles due to public projects that may be required under Section 3.1. If relocation is for private benefit, Verizon is not responsible for the cost of the relocation to the extent of such private benefit

and Verizon shall not be obligated to commence relocation until receipt of funds for such relocation. Verizon acknowledges that Verizon is not entitled to relocation assistance or any other compensation or benefits under the Uniform Relocation Assistance Act or any other applicable provision of law upon termination of this Agreement.

SECTION 4
POWER, MAINTENANCE AND REPAIR

4.1 Power. Verizon's power consumption may be metered, sub-metered, or unmetered at any specific Municipal Structure site as mutually determined by the parties in consideration of the requirements of the local utility provider for each Municipal Structure site.

4.1.1 **Metered Service.** If Verizon's power consumption is metered or sub-metered and billed directly by the utility to Verizon, Verizon shall pay the utility directly for its power consumption. If not billed directly by the utility, all invoices for power consumption shall be sent by the City to Verizon at M/S 3846, P.O. Box 2375, Spokane, WA 99210-2375, or sent by electronic delivery by email to livebills@ecova.com, or such other physical or email address as directed by Verizon in writing, and Verizon shall pay the City within thirty (30) days after receipt of such invoice. Such invoices shall be delivered to Verizon no less frequently than annually, and shall indicate the usage amount upon which the invoice is based and the method used for determining the usage (whether based on an actual sub-meter readings or an average consumption if unmetered). All invoices for power consumption shall be sent by the City to Verizon within ninety (90) days following the conclusion of the calendar year (the "Invoice Period") in which the utility provider's invoices for power consumption were received by the City, and shall be accompanied by copies of such invoices, documentation of the sub-meter readings, or the City's determination of Verizon's average consumption for such calendar year. If the City fails to deliver an invoice for power consumption, with the required supporting documentation, to Verizon within the Invoice Period for any Supplement, the City waives any right to collect any payment from Verizon for such costs for the calendar year at issue.

4.1.2 **Unmetered Service.** In the event that Verizon's power consumption for a particular Municipal Structure site cannot be metered or sub-metered, the charges for such power consumption shall be addressed in the applicable Supplement.

4.1.3 **Back Up Power.** Verizon shall be permitted at any time during the Agreement Term or the applicable Supplement Term, to install, maintain and/or provide access to and use of, as necessary (during any power interruption at any Municipal Structure site, Ground Equipment site, or New Pole sites), a temporary emergency power source, and all related appurtenances within or adjacent to such site to the extent the City has the authority to permit the installation of a temporary emergency power source. Such temporary emergency power installation and power sources shall be in compliance with all applicable Laws. Notwithstanding the foregoing, no interruption or discontinuance of such electrical power will render the City liable to Verizon for damages or relieve Verizon of any of its obligations hereunder, except to the extent it results from the negligence or willful misconduct of the City.

4.2 Maintenance and Repair. Verizon shall, at Verizon's sole cost and expense, perform all maintenance and repairs reasonably needed to maintain its Small Cells in good condition and neat and orderly appearance, and in compliance with all applicable Laws. In the event any part of a Small Cell requires replacement because such part cannot be repaired, Verizon shall, at Verizon's sole cost and expense, replace the irreparable part of its Small Cell. Verizon shall not cause rubbish, garbage or debris on or around its Network or the Small Cells and shall not permit any rubbish, garbage or debris to accumulate on or around in any enclosed areas around the Small Cells. If the City gives Verizon written notice of a failure by Verizon to maintain its Small Cells, Verizon shall use commercially

reasonable efforts to remedy such failure within forty-eight (48) hours after receipt of such written notice.

4.3 Appearance. Verizon shall reasonably cooperate with the City on all issues of aesthetics and appearance. Verizon shall follow all legally binding City policies, state and local ordinances with respect to aesthetics. This includes, but is not limited to, historic site and/or locations of significant importance, in areas such as Downtown, Old Town and College Hill.

4.4 Repair of ROW. Verizon shall be responsible for any damage, ordinary wear and tear and damage by casualty excepted, to street pavement, existing facilities and utilities, curbs, gutters, sidewalks, landscaping, and all other public or private facilities, to the extent caused by Verizon's construction, installation, maintenance, access, use, repair, replacement, relocation, or removal of its Small Cells in the City's ROW. The City's pavement cut contractor shall promptly repair such damage and return the City's ROW to a safe and satisfactory condition in accordance with the City's applicable street restoration standards. The City shall charge Verizon for the actual costs incurred by the City in performing such repair work. Upon the receipt of a demand for payment by the City, Verizon shall, within thirty (30) days of such receipt, reimburse the City for such costs. Verizon shall promptly repair any damage to property adjacent to the ROW, to the extent caused by Verizon's construction, installation, maintenance, access, use, repair, replacement, relocation, or removal of its Small Cells in the City's ROW, to the reasonable satisfaction of the City or adjacent property owner, as applicable. Verizon's obligations under this Section 4.4 shall survive for 45 days past the completion of such reparation and restoration work and return of the affected part of the City's ROW by Verizon to the City.

4.5 Bond. Verizon shall, prior to the commencement of any work under this Agreement, deliver to the City a performance bond in the amount of $50,000, payable to the City to ensure the appropriate and timely performance in the installation, removal, relocation, maintenance, and repair of Equipment, Ground Equipment, and New Poles located in the ROW. The required performance bond must be with good and sufficient sureties, issued by a surety company authorized to transact business in the State of Kansas, and reasonably satisfactory to the City Attorney in form and substance.

SECTION 5
ATTACHMENT TO MUNICIPAL STRUCTURES

5.1 Verizon will submit to the authorized representative of the City a proposed design for all proposed Equipment installations on Municipal Structures that will include the Equipment and Municipal Structures Verizon proposes to use. All approved Equipment installations shall be included as part of the applicable Supplement.

(a) In addition to attachments to Municipal Structures in the manner provided for under this Agreement, Verizon may, in its sole discretion, install its Wireless Facilities on other poles in the ROW that are lawfully owned and operated by third-parties, pursuant to an agreement with any such third-parties, or on its New Poles that are installed pursuant to the requirements of applicable Laws.

(b) Subject to the requirements, conditions and approvals required by this Agreement and applicable Laws, the City hereby authorizes, consents, and permits Verizon to enter upon the ROW and to locate, place, attach, install, operate, maintain, control, remove, reattach, reinstall, relocate, and replace Equipment in or on identified Municipal Structures (including, at Verizon's sole discretion, in or on its New Poles or other structures, or poles or other wireless support structures owned by third-parties) for the purposes of operating the Equipment and providing Telecommunications Services.

(c) To reduce the disruption to Municipal Structures, Verizon may power its Equipment by using the power sources that service the existing Municipal Structure and its components. The power used by Verizon's Equipment shall be determined

on an individual site-by-site basis. All electrical work and installations related to the power sharing authorized by this Subsection 5.1(c) shall be performed by a licensed contractor that is approved by the City, and in a manner that is approved by the City. Verizon shall make all requests for power sharing arrangements pursuant to this Subsection 5.1(c) in advance and in writing. Verizon shall reimburse the City, as provided in Section 4.1.2, for the increased power costs that the City incurs as a result of any power sharing authorized by this Subsection 5.1(c).

(d) An application for the attachment of Equipment to Municipal Structures may only be denied for reasons reasonably related to capacity, safety, reliability or engineering concerns, or if the proposed attachment would violate applicable Laws of general applicability related to building codes, electrical codes, or related standards, or the requirements of this Agreement. Except as otherwise provided for by applicable Laws, no denial shall be based upon the size, quantity, shape, color, weight, configuration, or other physical properties of Verizon's Equipment, except that Equipment must conform as closely as practicable with the design and color of the Municipal Structure. The City shall document the basis for any denial, including the specific provisions of the Laws on which the denial was based (if applicable), and send the documentation to the Verizon on or before the day that it denies an application. Verizon may cure any deficiencies identified by the City and resubmit an application with thirty (30) days of the date of any denial without paying an additional application fee. The City shall approve or deny any resubmitted application within the earliest timeframe prescribed by applicable Laws.

(e) If Verizon selects a Municipal Structure that is structurally inadequate to accommodate Equipment, Verizon may at its sole cost and expense replace the Municipal Structure (a "Replacement Structure") with one that is acceptable to and approved by the City and dedicate such Replacement Structure to the City.

(f) Verizon shall install both remote and manual shut-off switches at each Municipal Structure on which it has installed Equipment such that the applicable Equipment at such Municipal Structure can be safely and immediately powered off by City's personnel when necessary. In the event of an emergency or to protect the public health or safety, prior to the City accessing or performing any work on a Municipal Structure on which Verizon has installed Equipment, the City may require Verizon to deactivate or power down such Equipment if any of the City's employees or agents must move closer to the Equipment than the recommended one foot minimum distance. In such case, the City will contact Verizon at the contact telephone number referenced in Section 9.3 herein to request the Equipment be powered down or deactivated. If Verizon fails to power down or deactivate the Equipment, the City's personnel may utilize the manual shut off switch to power off Verizon's Equipment, provided such personnel immediately notify Verizon at the contact telephone number referenced in Section 9.3 herein.

SECTION 6
INDEMNIFICATION

6.1 Indemnity. Subject to Section 7 of this Agreement, Verizon shall indemnify, defend, and hold harmless the City, its councilmembers, officers, employees, agents, and contractors, from and against liability, claims, demands, losses, damages, fines, charges, penalties, administrative and judicial proceedings and orders, judgments, and the costs and expenses incurred in connection therewith, including reasonable attorneys' fees and costs of defense, to the extent resulting from activities undertaken by Verizon pursuant to this Agreement, except to the extent

resulting from or caused by the negligence or willful misconduct of the City, its council members, officers, employees, agents, or contractors. The City shall promptly notify Verizon, in writing, of any claim, action or proceeding covered by this Section 6.1.

6.2 Limitation of Liability. Except for indemnification pursuant to Section 6.1 above, or a violation of law, neither party shall be liable to the other, or any of their respective agents, representatives, employees for any lost revenue, lost profits, loss of technology, rights or services, incidental, punitive, indirect, special or consequential damages, loss of data, or interruption or loss of use of service, even if advised of the possibility of such damages, whether under theory of contract, tort (including negligence), strict liability or otherwise.

SECTION 7
INSURANCE

7.1 Commercial General Liability. Verizon shall obtain and maintain, at all times during the term of this Agreement, Commercial General Liability insurance with a limit of $1,000,000 per occurrence for bodily injury (including death) and property damage and $2,000,000 general aggregate including premises-operations, contractual liability, personal injury and products completed operations; and Commercial Automobile Liability insurance covering all owned non-owned and hired vehicles with a limit of $1,000,000 each accident for bodily injury and property damage. The Commercial General Liability insurance policy shall include the City, its councilmembers, officers, and employees as additional insured as their interests may appear under this Agreement as respects any covered liability arising out of Verizon's performance of work under this Agreement. Coverage shall be in an occurrence form and in accordance with the limits and provisions specified herein. Upon receipt of notice from its insurer, Verizon shall use commercially reasonable efforts to provide the City with thirty (30) days prior written notice of cancellation. Verizon shall be responsible for notifying the City of such change or cancellation.

7.2 Filing of Certificates and Endorsements. Prior to the commencement of any work pursuant to this Agreement, Verizon shall file with the City the required certificate(s) of insurance with blanket additional insured endorsements, which shall state the following:

(a) the policy number; name of insurance company; name and address of the agent or authorized representative; name and address of insured; project name; policy expiration date; and specific coverage amounts;

(b) that Verizon's Commercial General Liability insurance policy is primary as respects any other valid or collectible insurance that the City may possess, including any self-insured retentions the City may have; and any other insurance the City does possess shall be considered excess insurance only and shall not be required to contribute with this insurance; and

(c) that Verizon's Commercial General Liability insurance policy waives any right of recovery the insurance company may have against the City.

The certificate(s) of insurance with endorsements and notices shall be mailed to the City at the address specified in Section 10.3 below.

7.3 Workers' Compensation Insurance. Verizon shall obtain and maintain at all times during the term of this Agreement statutory workers' compensation and employer's liability insurance in an amount of One Million Dollars ($1,000,000) each accident/disease/policy limit and shall furnish the City with a certificate showing proof of such coverage.

7.4 Insurer Criteria. Any insurance provider of Verizon shall be authorized or permitted to do business in the State of Kansas and shall carry a minimum rating assigned by A.M. Best & Company's Key Rating Guide of "A-" Overall and a Financial Size Category of "VII."

(a) **Severability of Interest.** "Severability of interest" or "separation of insureds"

clauses shall be made a part of the Commercial General Liability and Commercial Automobile Liability policies.

SECTION 8
DEFAULT

8.1 Default.

8.1.1 **Defined.** A "Default" shall be deemed to have occurred under this Agreement, or any Supplement hereunder, if a party fails to cure a breach of any condition or obligation imposed hereunder within thirty (30) days after written notice specifying such breach, provided that if the breach is of a nature that it cannot be cured within thirty (30) days, a Default shall not have occurred so long as the breaching party has commenced to cure within said thirty (30) day period and thereafter diligently pursues such cure to completion.

8.1.2 **Remedies.** Upon the failure of a party to timely cure any breach after notice thereof from the other party and expiration of the above cure periods, then the non-defaulting party may, subject to the terms of Section 6.2 (Limitation of Liability), terminate this Agreement, or any Supplement hereunder, and pursue all remedies provided for in this Agreement and/or any remedies it may have under applicable law or principles of equity relating to such breach; provided, however, that if a Default by Verizon relates to one or more Small Cells, but not the entire Network, then the City's remedies under Section 8.1.2 shall be limited to the specific Supplement(s) covering such Small Cells, and if a Default by Verizon relates to one or more locations in the ROW occupied by Ground Equipment and/or New Poles, but not the entire Network, then the City's remedies under Section 8.1.2 shall be limited to the ROW locations permitted by the City for such Ground Equipment and/or New Poles.

8.2 City Termination Right. In addition to the remedies set forth in Section 8.1.2, the City shall have the right to terminate this Agreement, or any Supplement hereunder, if (i) the City is mandated by law, a court order or decision, or the federal or state government to take certain actions that will cause or require the removal of Verizon's Equipment, Ground Equipment, and New Poles from the Public Right-of-Way, or (ii) if Verizon's FCC licenses required for the operation of its Network are terminated, revoked, expired, or otherwise abandoned, and Verizon has not commenced actions to seek the reinstatement or replacement of such FCC licenses. Such termination rights shall be subject to Verizon's rights to just compensation, if any, for any taking of a protected property right.

8.3 No Waiver. A waiver by either party at any time of any of its rights as to anything herein contained shall not be deemed to be a waiver of any breach of covenant or other matter subsequently occurring.

8.4 Interest. If the City does not receive payment for any amount owed under this Agreement within forty-five (45) days after it delivers written notice of non-payment to Verizon, Verizon shall pay interest to the City, at an annual rate of ten percent (10%), on the amount due.

SECTION 9
INTERFERENCE

9.1 Non-Interference with Non-Public Safety Communications Systems. Verizon shall operate its Equipment in a manner that will not cause harmful interference which is measurable in accordance with the then-existing industry standards to any City non-public safety communications systems, or to the communications facilities of other licensees or lessees of City property located at or near the Equipment that were in operation prior to the installation of such Equipment, or that are in operation prior to any modifications Verizon may make to such Equipment. The City agrees that after Verizon has attached Equipment to a specific Municipal Structure, the City and/or any other tenants, licensees, or Municipal Structure users who currently have or in the future take possession of space on the same Municipal Structure will be permitted to install only such equipment that is of the type and frequency which will not cause harmful interference which is measurable in accordance with then-existing industry standards to the then-existing Equipment of Verizon.

9.2 Non-Interference with Public Safety Communications Systems. Verizon's Equipment shall not cause interference with public safety communications systems operated by City or any other public agency, regardless of the date such systems or any components thereof have been placed in service, nor shall Verizon's Equipment cause interference with the City's use of its streetlights, traffic lights, and/or stand-alone light poles.

9.3 Correction of Interference. If interference as described in Sections 9.1 and 9.2 occurs, and after the City has notified Verizon of such interference by a written communication and a call to Verizon's Network Operations Center ("NOC") (at (800) 264-6620/(800) 621-2622), Verizon will take all commercially reasonable steps necessary to correct and eliminate the interference including, but not limited to, at Verizon's option, powering down the Equipment causing the interference and later powering up such Equipment for intermittent testing. With regard to interference with public safety communications systems operated by the City or any other public agency, if Verizon is unable or refuses to eliminate such interference within 30 days of notice to Verizon's NOC (or such shorter time as may be specified in the written notice in the event of an emergency or danger to public health and safety requiring such shorter notice), the City may terminate Verizon's use of or right to use the Municipal Structure upon which such interfering Equipment is located, and Verizon shall promptly remove the Equipment from the Municipal Structure.

SECTION 10
MISCELLANEOUS PROVISIONS

10.1 Nonexclusive Use. Verizon acknowledges that this Agreement does not provide Verizon with exclusive use of the City's ROW or any Municipal Structures and that City retains the right to permit other providers of communications services to install equipment or devices in the City's ROW and on Municipal Structures.

10.2 Intentionally Omitted.

10.3 Notices. All notices which shall or may be given pursuant to this Agreement or any Supplement shall be in writing and served by (1) electronic mail; and (2) personally served or transmitted through first class United States mail, or by express mail providing for overnight delivery, postage prepaid, to the following address or such other address of which a party may give written notice:

City: City of Wichita
455 N. Main
Wichita, KS 67202
Attention: City Clerk

With a copy to:

Jennifer Magana
City Attorney
455 N. Main, 13th Fl.
Wichita, KS 67202
jmagana@wichita.gov

Verizon: Verizon Wireless (VAW) LLC
d/b/a Verizon Wireless
Attn: Network Real Estate
180 Washington Valley Road
Bedminster, New Jersey 07921

Such notice shall be deemed made when personally delivered; if mailed via first class U.S. Mail, such notice shall be deemed made three (3) days after the date of deposit in the U.S. Mail; if mailed via express/overnight mail, such notice shall be deemed made two (2) days after the date of deposit in a designated overnight delivery mailbox or other like facility.

10.4 Sublease/Assignment. This Agreement may be assigned by Verizon without any approval or consent of the City to Verizon's principal, affiliates, subsidiaries of its principal or to any entity which acquires all or substantially all of Verizon's assets in the market defined by the FCC in which the ROW is located by reason of a merger, acquisition or other business reorganization; provided, however, that such assignee is bound by all of the terms and conditions of this Agreement. As to other parties, this Agreement may not be sold or assigned by Verizon without the written consent of the City, which shall not be unreasonably withheld, conditioned or delayed. In the event of any transfer or assignment of this

Agreement, Verizon shall timely notify the City of the successor entity, provide an emergency point of contact for the successor entity, and advise the City of the effective date of the transfer or assignment. If Verizon assigns or sublets any interest in its Equipment, Ground Equipment, and New Poles, whether or not the City's consent is required, Verizon will provide notice of the transfer within a reasonable time.

10.5 Binding Effect. This Agreement shall be binding upon and inure to the benefit of the parties and their respective heirs, legal representatives, successors, assigns and transferees.

10.6 Entire Agreement; Modification; Waiver. This Agreement constitutes the entire agreement between the parties relating to the subject matter hereof. All prior and contemporaneous agreements, representations, negotiations, and understandings of the parties, oral or written, relating to the subject matter hereof are merged into and superseded by this Agreement. Any modification or amendment to this Agreement shall be of no force and effect unless it is in writing and signed by the parties. No waiver of any of the provisions of this Agreement shall be deemed, or shall constitute, a waiver of any other provision, whether or not similar. No waiver or consent shall constitute a continuing waiver or consent or commit either party to provide a waiver in the future except to the extent specifically set forth in writing. No waiver shall be binding unless executed in writing by the party making the waiver.

10.7 Severability. If any one or more of the provisions of this Agreement shall be held by a court of competent jurisdiction in a final judicial action to be void, voidable, or unenforceable, such provision or provisions shall be deemed separable from the remaining provisions of this Agreement and shall in no way affect the validity of the remaining portions of this Agreement.

10.8 Governing Law. This Agreement shall be interpreted and enforced according to, and the parties' rights and obligations governed by, the domestic law of the State of Kansas or applicable federal law, without regard to laws regarding choice of applicable law. Any proceeding or action to enforce this Agreement, or otherwise directly related to this Agreement shall occur in the federal court with jurisdiction over Sedgwick County, Kansas, or the state courts located in Sedgwick County, Kansas.

10.9 Survival of Terms. All of the terms and conditions in this Agreement related to payment, removal due to termination or abandonment, indemnification, limits of City's liability, attorneys' fees and waiver shall survive termination of this Agreement.

10.10 Captions and Paragraph Headings. Captions and paragraph headings used herein are for convenience only. They are not a part of this Agreement and shall not be used in construing this Agreement.

10.11 Drafting. The parties agree that this Agreement is the project of joint draftsmanship and that should any of the terms be determined by a court, or in any type of quasi-judicial or other proceeding, to be vague, ambiguous and/or unintelligible, that the same sentences, phrases, clauses or other wording or language of any kind shall not be construed against the drafting party.

10.12 Intentionally Omitted.

10.13 Authority to Execute This Agreement. Each person or persons executing this Agreement on behalf of a party, warrants and represents that he or she has the full right, power, legal capacity and authority to execute this Agreement on behalf of such party and has the authority to bind such party to the performance of its obligations under this Agreement without the approval or consent of any other person or entity.

10.14 No Warranty by the City. The City makes no representations or warranties regarding the suitability, condition or fitness of the Municipal Structures for the installation, maintenance or use of the Small Cells.

10.15 Agreement Applicable Only to the Municipal Structures. This Agreement shall not be construed to permit the construction, installation, maintenance or use of Equipment on any property other than the Municipal Structures, except as explicitly provided herein.

10.16 No Abrogation of Legal Responsibilities. The City's execution of this Agreement shall not abrogate, in any way, Verizon's responsibility to comply with all permitting requirements or to comply with all Laws with respect to its performance of the activities permitted under this Agreement.

10.17 Contractual Interpretation. In the interpretation and application of its rights under this Agreement, the City will act in a reasonable, non-discriminatory, and competitively neutral manner in compliance with all applicable federal, state, and local laws and regulations.

10.18 Effective Date of Ordinance. This Ordinance shall be effective upon its final passage and publication as required by law.

10.19 Public Records. Verizon acknowledges that information submitted to the City may be open to public inspection and disclosure under the provisions of Kansas' Open Records Act, codified at K.S.A. § 45-215 through § 45-223. Verizon may identify information, such as trade secrets, proprietary financial records, customer information or technical information, submitted to the City as confidential. Verizon shall prominently mark any information for which it claims confidentiality with the word "Confidential" on each page of such information prior to submitting such information to the City. The City shall treat any information so marked as confidential until the City receives any request for disclosure of such information. The City shall provide Verizon with written notice of the request, including a copy of the request, to Verizon at Verizon Wireless - West Territory, Attention: Real Estate Manager, 10740 Nall Ave., Suite 400, Overland Park, Kansas 66211, within three (3) working days of receiving the request. Verizon shall then provide a written response to the City within three (3) working days, by either authorizing the disclosure or advising of its election to seek a protective order. If Verizon chooses to seek an appropriate protective order, the City will refrain from disclosing such information (unless legally compelled to do so) until the request for a protective order is resolved, and will then comply with any validly-issued protective order. The City retains the final discretion to determine whether to release the requested confidential information, in accordance with applicable Laws.

[Signatures Begin on Following Page]

EXECUTED to be effective as of the last date shown below.

CITY:

City of Wichita, Kansas

By: /s/ Jeff Longwell

Name: Jeff Longwell

Title: Mayor

Date: 11-21-17

[City Seal]

Approved as to Form

By: /s/ Jennifer Magaña
City Attorney

Date: 11-6-2017

GRANTEE:

Verizon Wireless (VAW) LLC
d/b/a Verizon Wireless

By: /s/ Rick Goldschmidt

Name: Rick Goldschmidt

Title: Director Network Field Engineering

Date: 10/20/17

EXHIBIT A

FORM OF SUPPLEMENT (FOR ATTACHMENT TO MUNICIPAL STRUCTURES)

SUPPLEMENT

This Supplement ("Supplement"), made this 21st day of Nov., 2017 ("Supplement Effective Date") between the City of Wichita, a political subdivision of the State of Kansas, hereinafter designated "City", and Verizon Wireless (VAW) LLC d/b/a Verizon Wireless, with its principal

offices at c/o Verizon Wireless, One Verizon Way, Mail Stop 4AW100, Basking Ridge, New Jersey 07920, hereinafter designated "Verizon":

1. Supplement. This is a Supplement as referenced in that certain Contract Franchise and Municipal Structure Use Agreement between City and Verizon, dated _____, ____ ("Agreement"). All of the terms and conditions of the Agreement are incorporated hereby by reference and made a part hereof without the necessity of repeating or attaching the Agreement. In the event of a contradiction, modification or inconsistency between the terms of the Agreement and this Supplement, the terms of this Supplement shall govern. Capitalized terms used in this Supplement shall have the same meaning described for them in the Agreement, unless otherwise indicated herein.

2. Project Description and Locations. Verizon shall have the right to install, construct, operate, repair and replace one or more Small Cells on the Municipal Structures in the ROW as further described in Attachment 1 attached hereto.

3. Equipment. The Small Cells to be installed on the Municipal Structures are described in Attachment 1 attached hereto.

4. Term. The Supplement Term of this Supplement shall be as set forth in Section 2.2 of the Agreement.

5. Commencement Date. The first day of the month following the date Verizon has Commenced Installation of its Equipment on the Municipal Structures, as evidenced by the Acknowledgement required under Section 2.2 of the Agreement.

6. Fees. The annual Attachment Fees for the Supplement Term shall be $100.00 per Equipment, or group of associated Equipment, as determined in accordance with Section 1.6.1 of the Agreement.

7. Power Consumption. **[Verizon's power consumption for its Equipment shall be metered or sub-metered and billed to Verizon as provided in Section 4.1 of the Agreement.]**

[City and Verizon acknowledge that power consumption for the Equipment sites covered by this Supplement cannot be metered or sub-metered, and that Verizon will power the Equipment using power sources that service the Municipal Structures. Verizon shall pay the City for the increased power costs at a rate of $_____ per Equipment, per year (the "Power Charge"). The annual Power Charge shall commence and be payable concurrently with the Annual Attachment Fee payable pursuant to Section 6 of this Supplement.]

8. Approvals/Fiber. It is understood and agreed that Verizon's ability to use the Municipal Structures is contingent upon its obtaining all of the certificates, permits and other approvals (collectively the "Governmental Approvals") that may be required by any Federal, State or Local authorities, as well as satisfactory fiber optic cable and electrical connections which will permit Verizon's use of the Municipal Structures as set forth above. In the event that (i) any of such applications for such Governmental Approvals should be finally rejected; (ii) any Governmental Approval issued to Verizon is canceled, expires, lapses, or is otherwise withdrawn or terminated by governmental authority; (iii) Verizon determines that any of such Governmental Approvals may not be obtained in a timely manner; (iv) Verizon determines that it will be unable to obtain in a satisfactory manner, or maintain any fiber or power connection; or (v) Verizon determines that one or more of the Municipal Structures is no longer technically compatible for its use, Verizon shall have the right to: (1) terminate this Supplement; or (2) terminate the applicable Small Cells sites under this Supplement. Notice of Verizon's exercise of its right to terminate shall be given to the City in writing as required by Section 10.3 of the Agreement, and shall be effective upon the mailing of such notice by Verizon, or upon such later date as designated by the City. All fees paid to said termination date shall be retained by the City. Upon termination of the Supplement in its entirety, this Supplement shall be of no further force or effect except to the extent of the representations, warranties and indemnities made

by each party to the other hereunder. Otherwise, Verizon shall have no further obligations for the payment of fees to the City.

9. Miscellaneous. **[to be deleted if not applicable]**

[Signature Page Follows]

EXECUTED to be effective as of the last date shown below.

CITY:

City of Wichita, Kansas

By: /s/ Jeff Longwell

Name: Jeff Longwell

Title: Mayor

Date: 11-21-17

VERIZON:

Verizon Wireless (VAW) LLC
d/b/a Verizon Wireless

By:_____

Name:_____

Title:_____

Date:_____
(Ord. No. 50-612, 11-21-17)

COX WIRELESS ACCESS, LLC, ORDINANCE NO. 51-565

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS, GRANTING TO COX WIRELESS ACCESS, LLC, A DELAWARE LIMITED LIABILITY COMPANY, A FRANCHISE AUTHORIZED TO DO BUSINESS IN KANSAS, ITS SUCCESSORS AND ASSIGNS, A COMMUNICATION FRANCHISE AND PRESCRIBING THE TERMS OF SAID GRANT RELATING THERETO.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

This Franchise Ordinance (herein "Ordinance") is entered into as of June 8, 2021 ("Effective Date") by and between the City of Wichita, a municipal corporation (the "City"), and Cox Wireless Access, LLC (herein "Franchisee"), together herein, the "Parties".

RECITALS

A. Franchisee or its affiliates will own, maintain, manage, operate and/or control, in accordance with regulations promulgated by the Federal Communications Commission and the Kansas Corporation Commission (hereinafter "KCC"), telecommunications networks serving Franchisee's wireline customers through advanced fiber optic facilities and other wireless carrier customers through fiber-fed small cell or distributed antenna system facilities. Such facilities are in public rights-of-way (hereinafter "ROW"), among other locations, in the State of Kansas.

B. Franchisee seeks to enter the City's ROW and other real property of the City to install, maintain, and operate a fiber network, a small cell, and/or distributed antenna system(s) (the "Network"), so that Franchisee and/or its underlying customers (the "Customers") may provide data and telecommunications services (the "Services") to the residents and visitors of the City.

C. Some features of its Network include, without limitation, antenna nodes, small cell antennae, utility poles, equipment cabinets, underground and above ground fiber optic cable, fiber handholes and enclosures, fiber repeaters and related equipment, and will include other equipment as technology evolves, in a configuration and at locations to be filed and identified through the City permit process ("Facility" or "Facilities").

D. Certain distributed antenna systems ("DAS Facility" or "DAS Facilities") or ("Small Cells") which are a specific part or type of the Facilities may be located on streetlights, stand-alone poles, third party utility poles, and other structures located on or within the ROW or City owned property as permitted under this Franchise.

E. Franchisee desires to obtain from City as permitted by law, and City is willing to grant to Franchisee as required by law, the right to access the ROW to locate, place, attach, install, operate, use, control, repair, replace, upgrade, enhance and maintain the Facilities and the DAS Facilities in a manner consistent with this Franchise.

For the purposes of this Agreement the following words and phrases shall have the meaning given herein.

a. "Commenced Installation" shall mean the date that Franchisee commences to install its equipment, or any expansion thereof, in the City's ROW.

b. "Equipment" means the equipment cabinets, antennae, utilities and fiber optic cables, wires and related equipment, whether referred to singly or collectively, to be installed and operated by Franchisee under a particular Supplement and that comprise a Small Cell installation.

c. "Ground Equipment" means the equipment cabinets, utilities, and related equipment, whether referred to singly or collectively, to be installed on the ground within the ROW as part of an attachment of a Wireless Facility to a pole or structure owned and/or operated by third parties.

d. "Laws" means any and all laws, regulations, ordinances, resolutions, judicial decisions, rules, permits and approvals applicable to the subject matter of this

Agreement. This Agreement does not limit any rights Franchisee may have in accordance with Laws to install its own poles in the ROW or to attach Wireless Facilities to third-party poles located in the ROW. This Agreement shall in no way limit or waive either party's present or future rights under Laws. If, after the date of this Agreement, the rights or obligations of either party are materially preempted or superseded by changes in Laws, the parties agree to amend this Agreement to reflect the change in Laws.

e. "Municipal Structures" means Poles, lighting fixtures, electroliers, or other structures owned and/or leased by the City and located within the ROW, and may refer to such structures in the singular or plural, as appropriate to the context in which used.

f. "Network" or collectively "Networks" means the telecommunications network operated by Franchisee and located within the Public Rights of Way, to serve its customers.

g. "New Pole(s)" means a pole, or other wireless support structure as that term is defined in K.S.A. 66-2019(b)(21) and amendments thereto, owned or operated by Franchisee.

h. "Poles" means any utilities and/or lighting poles that are owned and/or leased by the City.

i. "Public Rights-of-Way" or "ROW" means only the area of real property in which the City has a dedicated or acquired right-of-way interest in the real property. It shall include the area on, below or above the present and future streets, alleys, avenues, roads, highways, parkways or boulevards dedicated or acquired as rights-of-way. The term does not include easements obtained by utilities or private easements in platted subdivisions or tracts. The term also does not include infrastructure located within the Public Rights-of-Way owned by the City or other third parties, such as Poles, ducts or conduits.

j. "Small Cell" means the Equipment at a particular location that comprises part of the Network.

k. "Small Wireless Facilities" includes facilities that satisfy the following conditions: (i) each antennae is no more than 3 cubic feet; (ii) all associated equipment is no more than 28 cubic feet; (iii) any of the following height criteria are met: (A) mounted on structures measuring 40 feet in height or less; (B) mounted on structures that are no more than 10 percent taller than other adjacent structures; or (C) does not extend existing structures on which they are located to a height of more than 40 feet or by more than 10 percent, whichever is greater.

l. "Supplement" shall mean each separate agreement, entered into between the City and Franchisee with regard to specific Small Cell installations, the form of which shall be in substantially the same form as attached hereto as Exhibit A, which shall be subject to the terms and conditions of this Agreement.

m. "Telecommunications Services" has the same meaning as that term is defined in the United States Code 47 U.S.C. 153(53), or any other use authorized by and licensed to Franchisee by the FCC, including, without limitation, Wireless Services.

n. "Wireless Facility" or "Wireless Facilities" has the same meaning as that term is defined under K.S.A. 66-2019(b)(18) and amendments thereto.

o. "Wireless Services" has the same meaning as that term is defined under K.S.A. 66-2019(b)(19) and amendments thereto.

p. "Wireless Services Provision" means a provider of Wireless Services as defined in K.S.A. 66-2019(b)(24) and amendments thereto.

In consideration of the Recitals set forth above, the terms and conditions of this Franchise, and other valuable consideration, the adequacy of which is hereby acknowledged, the parties agree as follows:

SECTION 1
INSTALLATION OF THE NETWORK

1.1 **Permitted Installation.** Franchisee may, at Franchisee's sole cost and expense and during the term of this Franchise, locate, construct, place, attach, install, operate, use, control, repair, replace, upgrade, enhance and maintain the Facilities subject to the terms and conditions of this Franchise. Franchisee shall undertake and perform any work in a skillful and workmanlike manner.

1.1.1 **Installation Specifications.** The installation of the Facilities shall be made in accordance with plans and specifications as may be approved by the City and after obtaining all necessary permits for all work in the ROW and/or on City property. Such approval review shall be made no later than forty-five days (45) days from application date, and under exceptional circumstances the time may be extended an additional forty-five (45) days upon agreement of the Parties. The Parties understand and agree that Facilities outside of the ROW may require additional easements for underground fiber to connect to Network within the ROW. Such additional easements shall be located so as not to interfere with the City's use of its property. The location, depth of the fiber underground, and any other requirements shall be approved in writing by the City prior to construction of the Facilities at that specific location, approval of which shall not be unreasonably withheld, conditioned or delayed. Approval of plans and specifications and the issuance of any permits by the City shall not release Franchisee from the responsibility for, or the correction of, any errors, omissions or other mistakes that may be contained in the plans, specifications and/or permits. Franchisee shall be responsible for notifying the City and all other relevant parties immediately upon discovery of such omissions and/or errors and with obtaining any amendments for corrected City-approved permits, as may be necessary. Franchisee shall be responsible for all costs associated with the permitting process, including, but not limited to, repairs and replacement of ROW. Such permits and approval requirements detailed in this Section shall not be unreasonably withheld, conditioned or delayed by the City and any conditions or requirements shall be in accordance with federal, state, and local laws.

1.1.2 **Temporary Construction.** The installation of the Facilities shall be performed in accordance with traffic control plans for temporary construction work that are approved by the City, which approval shall not unreasonably be withheld, conditioned or delayed.

1.1.3 **Construction Schedule.** If requested by the City, at least ten (10) days prior to the installation of the Facilities, Franchisee shall deliver to the City a schedule for the proposed work related to the construction of the Facilities, as well as a list of the names of all agents and contractors of Franchisee authorized by Franchisee to access the ROW and City-owned property on Franchisee's behalf.

1.1.4 **Coordination of Work.** Franchisee shall be responsible for coordination of work to avoid any interference with existing utilities, substructures, facilities and/or operations within the ROW. Franchisee shall be the City's point of contact and all communications shall be through Franchisee. Franchisee shall be solely responsible for communicating with Kansas One-Call.

1.1.5 **Inspection by City.** The City shall have commercially reasonable access to inspect any work conducted by Franchisee during the installation, maintenance and/or repairs of the Facilities.

1.1.6 **Other Utility Providers.** When necessary, Franchisee shall coordinate with other utility providers for other needed utility services. Franchisee and the City will reasonably cooperate with the other utility providers regarding the location of any meter, pole, and other apparatuses required for each Facility.

1.1.7 **Existing Utility Poles.** Franchisee may attach its Facilities to an existing utility pole pursuant to a properly executed agreement with the pole owner, provided, however, that any necessary replacement of the pole in order to accommodate the attachment shall be subject to the proper exercise of the City's police powers, and in no instance shall Franchisee erect a new pole within an existing aerial pole line absent the City's prior authorization.

1.2 **Compliance with Laws.** This Ordinance is subject to the terms and conditions of all applicable federal, state and local Laws and the Parties shall comply with any such Laws in the exercise of their rights and performance of their obligations under this document. "Laws" or "Law" as used in this document means any and all statutes, constitutions, ordinances, resolutions, regulations, judicial decisions, rules, permits, approvals or other applicable requirements of the City or other governmental entity or agency having joint or several jurisdiction over the Parties' activities under this Franchise, or having jurisdiction that is applicable to any aspect of this Franchise, that are in force on the Effective Date and as they may be enacted, issued or amended during the term of this Franchise.

1.2.1 **Zoning Regulations.** Zoning regulations shall not apply to installations within the ROW.

1.3 **Permits.** Franchisee shall obtain all permits (the "Permits") and pay those fees associated therewith relating to the installation of its Network as currently allowed by Law.

1.3.1 **Encroachment Permits.** Franchisee shall obtain any necessary encroachment permits from the City for the installation of its Network and for any other work within the ROW or other real property of the City, if required by the City's Municipal Code ("Code").

1.3.2 **Building Permits.** Franchisee shall obtain any necessary building permits from the City for the installation of its Network and for any other work within the ROW or other real property of the City, if required by the Code or State Law.

1.3.3 **Compliance with Permits.** All work within the ROW or other real property of the City shall be performed in strict compliance with all applicable permits and all applicable regulatory requirements.

1.3.4 **Fee Increases.** If prior to the second anniversary of the date hereof, the City increases the permitting fees described in the Sections above, and if with respect to all similarly situated franchisee license agreements executed by the City in such 2-year period the franchisee or licensee is subject to a similar fee provision, then Franchisee will pay to the City the increased fees as if the increased fee schedule had been in effect as of the date hereof upon being billed therefor by the City.

1.4 **Placement of Facilities.** Franchisee shall coordinate the placement of its Facilities in the ROW in a manner that minimizes adverse impact on public improvements or area aesthetics, as reasonably determined by the City Engineer.

1.4.1 **Collocation of Facilities.** The Parties agree that in areas where there are existing poles, Franchisee will work with the owner of that existing pole to collocate the Small Cell or DAS Facility. When the pole owner is willing to allow such attachment and where such attachment is feasible from a safety, technical, engineering, aesthetic, and structural perspective.

1.5 **New Streetlight Poles and other City Facilities.** It is understood that Franchisee may build new streetlight poles or other such facilities required for the installation of the Facilities which would comply with all encroachment and building permits, applicable City, state and federal specifications, and Laws ("New Poles"). The City retains the right to determine the type, size, configuration, and, when the City deems appropriate, camouflage of the Facilities.

1.5.1 **City Use of Poles.** The Parties understand and agree that the City may use any Facility for City purposes, including but not limited to the installation of streetlights and other lighting so long as such use does not interfere Franchisee's use of its Network or

Facilities. Franchisee shall reasonably cooperate with the City when the City desires to collocate.

1.5.2 **City-Owned Lights.** Except for the installation of the lights and ancillary equipment on or in Franchisee's Facilities and/or as set forth in Section 1.5.3, Franchisee shall not be responsible for maintenance, repair, or replacement of City-owned lights, light bulbs, or equipment, including equipment owned by third parties, as authorized by the City on the Facilities.

1.5.3 **Damage to Poles.** If any portion of Franchisee's Facilities fall or are damaged such that there is an imminent threat of harm to persons or property, the City may cause the Facility, or any portion thereof, to be removed to a location that City believes reasonably eliminates the risk of such imminent threat of harm to persons or property. Franchisee shall replace or repair any Facility or portion thereof as soon as practicable. The cost to repair and/or replace any pole, including the replacement City streetlight, bulb and ancillary equipment, shall be paid by Franchisee; provided, however, that if the Facility is damaged or destroyed by the City or a third party user to whom the City has given the right to use the Facility, then the City and/or its third party user, respectively, shall pay the cost to repair and/or replace the pole. To the extent that Franchisee seeks reimbursement from a third party either directly or through applicable insurance, the City shall assign to Franchisee any rights the City may have against such third party for such claim.

1.6 **Franchise and Permit Fees.** Franchisee is solely responsible for the payment of all lawful franchise and permit fees in connection with Franchisee's performance under this Franchise.

1.6.1 **Non-Recurring Application Fees.** Franchisee shall pay fees of the current amount of "presumptive compliance" with the Communications Act (47 U.S.C. §§ 253 and 332 et. seq.). The amount of presumptive compliance is hereby determined to be competitively neutral and is not unreasonable or discriminatory. Current proposed one-time amounts are:

A. Up to five (5) small wireless facilities	$500
B. Each additional facility on the same application	$100 / facility
C. Each new pole (not a collocation) intended to support one or more SWF or DAS	$1,000
D. To the extent not already covered by the Application Fee in Section 1.6.1(A), a one-time permit fee to recover the City's costs associated with the review and approval of the installation of each facility, provided that such permit fee reimburses the City for its reasonable actual and verifiable costs, including overhead, and review and approval of the application	$ Per City ordinance

1.6.2 **Compensation to the City.** In consideration of and as compensation for the franchise hereby granted to Franchisee by the City, the Franchisee shall pay an initial fee of Two Hundred Seventy Dollars ($270.00) per attachment for the attachment of wireless equipment to support DAS or SWF installations within the City. If Franchisee causes or in any way has multiple attachments on City-owned infrastructure, then Franchisee shall pay an additional Two Hundred Seventy Dollars ($270.00) per attachment for the first year. Franchisee shall not be obligated to pay a franchise fee to the City for new strand mount DAS or SWF installations which are placed on Franchisee's affiliate Cox Communications Kansas, LLC owned existing overhead fiber strand located within the City's right of way. Both franchise fees referenced herein are subject to the recurring fee as set forth in Section 1.6.3.

1.6.3 **Recurring Annual Fees.** Franchisee will pay the City the amount of presumptive compliance, currently $270 / year, for each pole or attachment as anticipated in paragraphs 1.5 and 1.6.2 of the Franchise. These fees are in addition to the City's standard permit fees for dirt cuts, pavement cuts, and utility cuts, as well as any permits required by federal,

state, county, or municipal law. This fee also includes all other recurring fees, except franchise fees, including any right-of-way access fees or fees for attaching facilities to municipally owned structures in the right of way.

1.6.4 **Accounting Matters.** Franchisee shall keep accurate books of account at its principal office, or such other location of its choosing for the purpose of determining the amounts due to the City under Section 1.6. No more than once per year, the City or the City's contractor may inspect Franchisee's books of account relative to the application of the franchise fees required under Subsection 1.6.1 of this Franchise at any time during regular business hours upon thirty (30) days' prior written notice and may audit the books from time to time at the City's sole expense, but in each case only to the extent necessary to confirm the accuracy of payments due under Section 1.6. The City agrees to hold in confidence any non-public information it learns from Franchisee to the fullest extent permitted by Law.

1.7 **Franchisee Access to Facilities for Repair.** Franchisee will be given reasonable access to each of the Facilities in the ROW or City owned property for the purposes of routine installation, repair, maintenance or removal of Facilities. If any such maintenance activities have the potential to result in an interruption of any City services at the Facility, Franchisee shall provide the City with a minimum of three (3) days prior written notice of such maintenance activities. Such maintenance activities shall, to the extent feasible, be done with minimal impairment, interruption, or interference to City services. Notwithstanding the foregoing, Franchisee shall have reasonable unfettered 24/7 access 365 days a year.

1.7.1 **City Observation.** Franchisee shall allow a representative of the City to observe any repair, maintenance or removal work performed at the Facilities.

1.7.2 **Conduit.** The Franchisee shall notify the City when the Franchisee will be installing underground conduit more than three hundred (300) feet in total length, so that the City has the option to co-locate. For these runs of conduit, the Franchisee shall install in the same trench or out of the same bore pit a three (3) inch empty conduit for the City's permanent use at no cost to the City. The Franchisee shall notify the City prior to any work being performed at the site so that the City can request that the conduit not be installed. This clause is essential to this Agreement.

SECTION 2
TERM AND TERMINATION

2.1 **Term.** This Franchise shall be effective for ten (10) years from the Effective Date. Thereafter, this Franchise may renew for three (3) additional five (5) year terms unless one of the Parties notifies the other of its intent to terminate or renegotiate the Franchise or unless the City notifies Franchisee of its intent to renegotiate terms due to changes in local, state or federal law and/or the City has negotiated different terms with similarly situated entities. But, in no event, shall the City be permitted to terminate Franchisee's right under this Franchise to place Facilities in the ROW unless terms of this Franchise are breached.

2.1.1 **90-Day Remedy Period.** If this Franchise is breached by Franchisee, then Franchisee shall have no more than ninety (90) days from written notice of the breach to either remedy the breach or remove its equipment, as set forth in Section 3. Franchisee shall pay to City a prorated Rent and Additional Rent (if any) for any period beyond the effective expiration or revocation date until Franchisee completes its obligation to remove its equipment and restore the locations.

2.2 **Termination of Use.** Notwithstanding Section 2.1, Franchisee may terminate its use of any or all of its Network by providing the City with ninety (90) days prior written notice. In the event of any such termination, Franchisee's payment obligations to the City shall terminate simultaneously with the termination of use and final billing to customers, provided Franchisee removes its equipment and restores all of its Facilities.

SECTION 3
REMOVAL AND RELOCATION

3.1 **Removal Due to Public Project.** City shall provide Franchisee no less than one hundred eighty (180) days written notice of its intent to require Franchisee to move or remove part of its Facilities. Franchisee, at its sole cost and expense, shall remove and relocate any part of its Network, constructed, installed, used and/or maintained by Franchisee under this Franchise, whenever the City reasonably determines that the removal and/or relocation of any part of its Network is needed for any of the following purposes: (a) due to any work proposed to be done by or on behalf of the City or any other governmental agency, including but not limited to, any change of grade, alignment or width of any street, sidewalk or other public facility, installation of curbs, gutters or landscaping and installation, construction, maintenance or operation of any underground or aboveground facilities such as sewers, water mains, drains, storm drains, pipes, gas mains, poles, power lines, telephone lines, cable television lines and tracks; (b) because any part of its Network is interfering with or adversely affecting the proper operation of City-owned light poles, traffic signals, or other City facilities; or (c) to protect or preserve the public health and safety. The City shall cooperate with Franchisee in relocating any portion of its Network removed pursuant to this Section 3.1 in a manner that allows Franchisee to continue providing service to its customers, including, but not limited to, expediting approval of any necessary permits required for the relocation of that portion of its Network relocated under this Section 3.1. Franchisee shall remove or relocate within one hundred eighty (180) days of receiving said notice; if the Franchisee fails to do so, the City reserves the right to remove any or all equipment—regardless of nature—and Franchisee shall pay any reasonable costs incurred by the City. The City reserves the right to retain or destroy any or all equipment after the expiration of the remove/relocate deadline or by written agreement between the parties.

3.2 **Removal Due to Termination.** No later than ninety (90) days after termination of this Franchise pursuant to the provisions of this Franchise, Franchisee shall, at its sole cost and expense, remove its Network or the terminated portion thereof and, if such removal disturbs the locations or adjacent property (including ROW or City real property), restore each Facility and its adjacent property to its original condition, reasonable wear and tear excepted, and further excepting landscaping and related irrigation equipment, or other aesthetic improvements made by Franchisee to the Facility or adjacent property, or as otherwise required by the City. For New Poles, Franchisee shall install a new streetlight or facility as directed by City Engineer, or his or her designee. Alternatively, the City may allow Franchisee, in the City's sole and absolute discretion, to abandon its Network, or any part thereof, in place and convey it to the City.

3.3 **Abandonment.** In the event Franchisee ceases to operate and abandons its Network, or any part thereof, for a period of ninety (90) days or more, Franchisee shall, at its sole cost and expense and within the time period specified in Section 3.2, vacate and remove its Network or the abandoned part thereof. If such removal disturbs the Facility or adjacent property (including ROW or City real property), Franchisee shall also, at its sole cost and expense, restore the Facility or adjacent property to its original condition, reasonable wear and tear excepted, and further excepting landscaping and related irrigation equipment, or other aesthetic improvements made by Franchisee to the Facility or adjacent property. Alternatively, the City may allow Franchisee, in the City's sole and absolute discretion, to abandon its Network, or any part thereof, in place and convey it to the City.

3.4 **No Relocation Compensation.** The Parties understand and agree that neither the City nor Franchisee are entitled to compensation for any relocation of its Network that may be required under Section 3.1. Franchisee acknowledges that Franchisee is not entitled to relocation assistance or any other compensation or benefits under the Uniform Relocation Assistance Act or any other applicable provision of law upon termination of this Franchise.

SECTION 4
MAINTENANCE AND REPAIR

4.1 **Electricity Use.** Franchisee shall pay for the electricity and other utilities services it consumes in its operations at the rate charged by the servicing utility Franchisee.

4.2 **Maintenance and Repair.** Franchisee shall, at Franchisee's sole cost and expense, perform all maintenance and repairs reasonably needed to maintain its Network in good condition and neat and orderly appearance, and in compliance with all applicable Laws. In the event any part of its Network requires replacement because such part cannot be repaired, Franchisee shall, at Franchisee's sole cost and expense, replace the irreparable part of its Network. Franchisee shall not cause rubbish, garbage or debris on or around its Network or the Facilities and shall not permit any rubbish, garbage or debris to accumulate on or around any enclosed areas around the Facilities. If the City gives Franchisee written or e-mail notice of a failure by Franchisee to maintain the Facilities, Franchisee shall use its best efforts to remedy such failure within forty-eight (48) hours after receipt of such written notice. If Franchisee is unable to remedy such failure within such time, the City shall have the right to remedy such failure and bill Franchisee for the costs.

4.3 **Appearance.** Franchisee shall cooperate with the City on all issues of aesthetics and appearance. Franchisee shall follow City policies and state and local ordinances with respect to aesthetics. Any aesthetic treatment shall be at the sole cost of the Franchisee. This includes, but is not limited to, historic site and/or locations of significant importance, in areas such as Downtown, Old Town and College Hill. All locations of facilities must be aesthetically approved by the City Engineering Department, in a manner consistent with other approvals within these restrictions.

4.4 **Repair of ROW.** Franchisee shall be responsible for any damage, ordinary wear and tear excepted, to street pavement, existing facilities and utilities, curbs, gutters, sidewalks, landscaping, and all other public or private facilities, to the extent caused by Franchisee's construction, installation, maintenance, access, use, repair, replacement, relocation, or removal of its Network in the ROW. Franchisee shall promptly repair such damage and return the ROW and any affected adjacent property to a safe and satisfactory condition to the City in accordance with the City's applicable street restoration standards or to the property owner if not the City. Franchisee's obligations under this Section 4.4 shall survive for one (1) year past the completion of such reparation and restoration work and return of the affected part of the ROW by Franchisee to the City.

4.5 **Bond.** Franchisee shall provide a bond in an amount determined by the City to represent the estimated cost of Franchisee's obligations under Sections 3 and 4 of this Franchise. The City may require Franchisee to increase the amount from time to time to reflect the reasonable estimated cost of performing such obligations, and to secure performance of Franchisee's obligations under Sections 3 and 4. Such bond amount shall not exceed $100,000.

SECTION 5
TAXES

5.1 **Taxes.** Franchisee agrees that it will be solely responsible for the payment of any and all applicable taxes, fees and assessments levied on its ownership, use and maintenance of its Network and this Franchise. Pursuant to Section 79-5(a)(26) of the Kansas Revenue and Taxation Code, the City hereby advises, and Franchisee recognizes and understands, that Franchisee's use of the ROW, the New Poles, and/or other non-ROW city property and facilities may create a possessory interest subject to real property taxation and that Franchisee may be subject to, and responsible for, the payment of real property taxes levied on such interest. Franchisee will cooperate with the Sedgwick County Assessor in providing any information necessary for the Assessor to make a property tax determination. Franchisee reserves the right to challenge any such assessment, and the City agrees to cooperate with Franchisee in connection with any such challenge.

SECTION 6
INDEMNIFICATION

6.1 **Indemnity.** Franchisee shall indemnify, defend, and hold harmless the City, its councilmembers, officers, employees, agents, and contractors, from and against liability, claims, demands, losses, damages, fines, charges, penalties, administrative and judicial proceedings and orders, judgments, and the costs and expenses incurred in connection therewith, including reasonable attorneys' fees and costs of defense to the extent resulting from activities undertaken by Franchisee pursuant to this Franchise, except to the extent arising from or caused by the gross negligence or willful misconduct of the City, its councilmembers, officers, employees, agents, assigns, or contractors. The City shall promptly notify Franchisee of any claim, action or proceeding covered by this Section 6.1.

6.2 **Waiver of Claims.** Franchisee waives all claims, demands, causes of action, and rights it may assert against the City on account of any loss, damage, or injury to any portion of its Network, or any loss or degradation of the services provided by its Network resulting from any event or occurrence except for any loss, damage, or injury to any portion of its Network, or any loss or degradation of the services provided by its Network resulting from the gross negligence or willful misconduct of the City.

6.3 **Limitation of City's Liability.** The City will be liable, if at all, only for the cost of repair to damaged portions of the Facilities arising from the gross negligence or willful misconduct of City, its employees, agents, or contractors. The City, its agents, officers, employees, or contractors, shall not be liable for any damage from any cause whatsoever to the Facilities, specifically including, without limitation, damage, if any, resulting from the City's maintenance operations adjacent to the Facilities or from vandalism or unauthorized use of the Facilities, except to the extent such damage is caused by the gross negligence or willful misconduct of City, its agents, officers, employees or contractors. The City will in no event be liable for indirect or consequential damages.

6.4 **Limitation of Franchisee's Liability.** In no event shall Franchisee be liable for indirect or consequential damages in connection with or arising from this Franchise, or its use of its Network, New Poles, and ROW or other City real property.

SECTION 7
INSURANCE

7.1 **Minimum Insurance Requirements.** Franchisee shall obtain and maintain, at its sole cost and expense for the duration of this Franchise, insurance as required by applicable law. The City, and its elected and appointed council members, board members, commissioners, officers and officials (the "Insureds") shall be named as additional insureds on all required insurance policies, except for Workers' Compensation and Employer's Liability policies. However, the Franchisee shall maintain a policy or policies of Comprehensive General Liability Insurance of at least $2,000,000.

7.2 **Secondary Parties.** In the event Franchisee hires any subcontractors, independent contractors or agents ("Secondary Parties") to locate, place, attach, install, operate, use, control, replace, repair or maintain its Network, Franchisee shall require the Secondary Parties to obtain and maintain insurance commensurate to the work such Secondary Parties perform.

SECTION 8
DEFAULT

8.1 **Default.** A "Default" shall be deemed to have occurred under this Franchise if a party fails to cure such within thirty (30) days after written notice specifying such breach, provided that if the breach is of a nature that it cannot be cured within thirty (30) days, a default shall not have occurred so long as the breaching party has commenced to cure within said time period and thereafter diligently pursues such cure to completion.

8.1.1. **Remedies.** Upon the failure of a party to timely cure any breach after notice thereof from the other party and expiration of the above cure periods, then the non-defaulting party may, subject to the terms of Sections

6.3 and 6.4 (Limitation of Liability), terminate this Franchise and pursue all remedies provided for in this Franchise and/or any remedies it may have under applicable law or principles of equity relating to such breach.

8.2 **City Termination Right.** In addition to the remedies set forth in Section 8.1.1, the City shall have the right to terminate this Franchise if: (i) the City is mandated by law, a court order or decision, or the federal or state government to take certain actions that will cause or require the removal of the Facilities from the public right of way; or (ii) if Franchisee's licenses are terminated, revoked, expired, or otherwise abandoned. Such termination rights shall be subject to Franchisee's rights to just compensation, if any, for any taking of a protected property right.

8.3 **No Waiver.** A waiver by either party at any time of any of its rights as to any matter herein contained shall not be deemed to be a waiver of any breach of covenant or other matter subsequently occurring.

8.4 **Interest.** If Franchisee fails to make any payment under this Franchise when due, such amounts shall accrue interest from the date such payment is due until paid, including accrued interest, at an annual rate of ten percent (10%) or, if lower, the highest percentage allowed by law.

SECTION 9
INTERFERENCE

9.1 **Non-Interference with Non-Public Safety Communications Systems.** Franchisee shall operate its Network in a manner that will not cause interference with City non-public safety communications systems and to the services and facilities of other licensees or lessees of City property located at or near the Facilities that were in operation prior to the installation of its Network or that are in operation prior to any modifications Franchisee may make to its Network.

9.2 **Non-Interference with Public Safety Communications Systems.** Franchisee's Network and Facilities shall not cause interference with public safety communications systems operated by City or any other public agency, regardless of the date such systems or any components thereof have been placed in service. Nor shall Franchisee's Network and Facilities cause interference with the City's use of the New Poles for their intended purpose as streetlights, traffic lights, and/or stand-alone light poles.

9.3 **Correction of Interference.** If such interference with the Facilities described in Sections 9.1 and 9.2 occur, Franchisee shall, upon receipt of written notice thereof from City, immediately commence commercially reasonable, diligent, efforts to correct or eliminate such interference. If such interference cannot be corrected by Franchisee to the reasonable satisfaction of City within the cure period set forth in the City's notice, which notice shall not be less than thirty (30) days absent an emergency or danger to public health and safety requiring shorter notice, such interference shall be deemed a material breach under this Franchise and City may terminate this Franchise. Interference caused by actions of Franchisee's Customer(s) remain the responsibility of Franchisee.

SECTION 10
MISCELLANEOUS PROVISIONS

10.1 **Nonexclusive Use.** Franchisee acknowledges that this Franchise does not provide Franchisee with exclusive use of the ROW or any municipal facility and that City retains the right to permit other providers of communications services to install equipment or devices in the ROW and on municipal facilities.

10.2 **Most-Favored Clause.** Should Franchisee, after the Parties' execution and delivery of this Franchise, enter into a similar franchise agreement with another municipality of the same size or smaller than the City in this State, which agreement contains financial benefits for such municipality which, taken as a whole and balanced with the other terms of such agreement, are in the City's opinion substantially superior to those in this Franchise, the City shall have the right to require that Franchisee modify this Franchise to incorporate the same or substantially similar superior benefits. Should

City, after the Parties' execution and delivery of this Franchise, enter into a similar agreement with a telecommunications company or wireless infrastructure provider, which agreement contains financial benefits for such telecommunications company or wireless infrastructure provider which, taken as a whole and balanced with the other terms of such agreement, are in the Franchisee's opinion substantially superior to those in this Agreement, the Franchisee shall have the right to require that City modify this Franchise to incorporate the same or substantially similar superior benefits.

10.3 **Notices.** All notices which shall or may be given pursuant to this Franchise shall be in writing and served by (1) electronic mail; and (2) personally served or transmitted through first class United States mail, or by express mail providing for overnight delivery, postage prepaid, to the following address or such other address of which a party may give written notice:

City: City of Wichita
455 N. Main
Wichita, KS 67202
Attention: City Clerk

With a copy to:

Jennifer Magana
City Attorney
455 N. Main, 13th Fl.
Wichita, KS 67202
jmagana@wichita.gov

Franchisee: Cox Wireless Access, LLC
Attn: Cox Business
901 S. George Washington Blvd.
Wichita, KS 67211

With copies to:

Cox Communications
6205B Peachtree-Dunwoody Road
Atlanta, GA 30328
Attn: VP of Government Affairs

Such notice shall be deemed made when personally delivered; if mailed via first class U.S. Mail, such notice shall be deemed made three (3) calendar days after the date of deposit in the U.S. Mail; if mailed via express/overnight mail, such notice shall be deemed made two (2) calendar days after the date of deposit in a designated overnight delivery mailbox or other like facility. Actual notice shall be deemed adequate notice on the date actual notice occurred, regardless of the method of service.

10.4 **Sublease/Assignment.** If Franchisee assigns, enters into a franchise license or concession agreement, changes ownership of its Network or voting control of Franchisee, mortgage, encumber, pledge, hypothecate or other transfer (including any transfer by operation of law this Franchise or any interest therein) Franchisee will provide notice of said transfer within ninety (90) days.

10.5 **Binding Effect.** This Franchise shall be binding upon and inure to the benefit of the parties and their respective heirs, legal representatives, successors, assigns and transferees.

10.6 **Entire Franchise; Modification; Waiver.** This Franchise constitutes the entire agreement between the parties relating to the subject matter hereof. All prior and contemporaneous agreements, representations, negotiations, and understandings of the parties, oral or written, relating to the subject matter hereof are merged into and superseded by this Franchise. Any modification or amendment to this Franchise shall be of no force and effect unless it is in writing and signed by the Parties. No waiver of any of the provisions of this Franchise shall be deemed, or shall constitute, a waiver of any other provision, whether or not similar. No waiver or consent shall constitute a continuing waiver or consent or commit either party to provide a waiver in the future except to the extent specifically set forth in writing. No waiver shall be binding unless executed in writing by the party making the waiver.

10.7 **Severability.** If any one or more of the provisions of this Franchise shall be held by a court of competent jurisdiction in a final judicial action to be void, voidable, or unenforceable, such provision or provisions shall be deemed

separable from the remaining provisions of this Franchise and shall in no way affect the validity of the remaining portions of this Franchise.

10.8 **Governing Law.** This Franchise shall be interpreted and enforced according to, and the Parties' rights and obligations governed by, the domestic law of the State of Kansas or applicable federal law, without regard to laws regarding choice of applicable law. Any proceeding or action to enforce this Franchise, or otherwise directly related to this Franchise, shall occur in the federal court with jurisdiction over Sedgwick County or the state courts located in Sedgwick County, Kansas.

10.9 **Survival of Terms.** All of the terms and conditions in this Franchise related to payment, removal due to termination or abandonment, indemnification, limits of City's liability, attorneys' fees and waiver shall survive termination of this Franchise.

10.10 **Captions and Paragraph Headings.** Captions and paragraph headings used herein are for convenience only. They are not a part of this Franchise and shall not be used in construing this Franchise.

10.11 **Drafting.** The parties agree that this Franchise is the project of joint draftsmanship and that should any of the terms be determined by a court, or in any type of quasi-judicial or other proceeding, to be vague, ambiguous and/or unintelligible, that the same sentences, phrases, clauses or other wording or language of any kind shall not be construed against the drafting party.

10.12 **Execution in Counterparts.** This Franchise may be executed in one or more identical counterparts and all such counterparts together shall constitute a single instrument for the purpose of the effectiveness of this Franchise.

10.13 **Authority to Execute This Franchise.** Each person or persons executing this Franchise on behalf of a party, warrants and represents that he or she has the full right, power, legal capacity and authority to execute this Franchise on behalf of such party and has the authority to bind such party to the performance of its obligations under this Franchise without the approval or consent of any other person or entity.

10.14 **No Warranty by the City.** The City makes no representations or warranties regarding the suitability, condition or fitness of the locations for the installation, maintenance or use of the New Poles or the Facilities.

10.15 **Franchise Applicable Only to the Facilities.** This Franchise shall not be construed to permit construction, installation, maintenance or use of Facilities on any property other than the Facilities.

10.16 **No Abrogation of Legal Responsibilities.** The City's execution of this Franchise shall not abrogate, in any way, Franchisee's responsibility to comply with all permitting requirements or to comply with all Laws with respect to its performance of the activities permitted under this Franchise.

10.17 **Contractual Interpretation.** In the interpretation and application of its rights under this Franchise, the City will act in a reasonable, non-discriminatory, and competitively neutral manner in compliance with all applicable federal, state, and local laws and regulations.

10.18 **Effective Date of Franchise Ordinance.** This Franchise Ordinance shall be effective upon its final passage and publication as required by law.

[Signatures Begin on Following Page]

IN WITNESS WHEREOF, the parties have signed this Franchise Ordinance as of the date stated in the introductory clause.

City of Wichita, a Kansas municipal corporation	Cox Wireless Access, LLC, a Delaware limited liability company on behalf of itself and its affiliates
By:_____	By:_____
Brandon Whipple, Mayer	Name:_____
	Title:_____
	By:_____
	Name:_____
	Title:_____

ATTEST:

_____
Karen Sublett, City Clerk

APPROVED AS TO FORM:

By:_____
Jennifer Magana, City Attorney and Director of Law

APPROVED AS TO FORM:

By:_____
Name:_____
Attorney for Cox Wireless Access, LLC

(Ord. No. 51-565, 6-8-21)

MCIMETRO ACCESS TRANSMISSION SERVICES, LLC
d/b/a VERIZON ACCESS TRANSMISSIONS SERVICES
Ordinance No. 52-019

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS GRANTING TO MCIMETRO ACCESS TRANSMISSION SERVICES, LLC, A DELAWARE LIMITED LIABILITY COMPANY, ITS SUCCESSORS AND ASSIGNS, A FIBER OPTIC CABLE FRANCHISE AND PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO.

BE IT ORDERED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

FRANCHISE AGREEMENT

This Franchise Agreement is made this 3rd day of January, 2023, by and between the City of Wichita, Kansas, a municipal corporation (City), and MCImetro Access Transmission Services, LLC d/b/a Verizon Access Transmission Services, a Delaware limited liability company authorized to do business in the State of Kansas (Franchisee).

WHEREAS, pursuant to the laws of the State of Kansas and the ordinances of the City of Wichita, Kansas, the authority to use the public rights of way within the City of Wichita, Kansas, is vested in the reasonable police powers of the City; and

WHEREAS, Franchisee is a Telecommunications carrier as defined in K.S.A. 66-1,187(m) with authority under K.S.A. 17-1902 to occupy the public right-of-way subject and subordinate to the reasonable public health, safety and welfare requirements and regulations of the City.

WHEREAS, Franchisee wishes to place and maintain communication Facilities in certain portions of the City's rights of way.

NOW, THEREFORE, in light of the mutual promises and obligations contained herein, and in exchange for good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged by the parties, the parties agree as follows:

SECTION 1. - Definitions.

For the purposes of this Franchise Agreement, the following words and phrases shall have the meanings given herein:

(a) "City" shall mean the City of Wichita, Kansas. References to the City shall also include, as appropriate, any and all successors and assigns.

(b) "Facilities" shall mean poles, conduit, cable, switches and related appurtenances and facilities, all appurtenances and improvements thereto, whether existing above or below ground.

(c) "Franchise" shall mean a grant conveying the right, privilege, and authority to construct, operate and maintain facilities in, through and along the City's right of way for the purposes of supplying communications services.

(d) "Private party" means a non-governmental entity.

(e) "Public Improvement" shall mean any existing or contemplated public facility, building, or capital improvement project, including but not limited to streets, alleys, sidewalks, sewers, water mains, drainage conduits, telecommunication conduits, rights of way improvements, and other Public Projects.

(f) "Public Project" shall mean any project planned or undertaken by the City or any other governmental entity for the construction, reconstruction, maintenance, or repair of public facilities or Public Improvements, or for any public purpose.

(g) "Rights of Way" shall mean only those areas of real property in which the City has dedicated or acquired rights of way interests in the real property. It shall include the area on, below, or above the present and future streets, sidewalks, alleys, avenues, roads, highways, parkways, boulevards, or bridges dedicated or acquired as rights of way. The term does not include the airwaves above rights of way with regard to wireless telecommunications, other non-wire

telecommunications, or broadcast service, easements obtained by utilities, or private easements in platted subdivisions or tracts.

All definitions not specifically defined herein shall have the meaning ascribed to them by applicable federal, state or local law.

SECTION 2. - Grant of Franchise.

(a) For and in recognition of the mutual consideration set forth in this Franchise Agreement, the satisfaction of which is hereby acknowledged by both parties, Franchisee is hereby granted a nonexclusive Franchise to construct, place, replace, repair, maintain, extend, and operate its facilities along, across, upon, under, or in the City's Rights of Way, for the purpose of providing a fiber optic network to provide digital data and/or voice transport.

The City may, in writing, approve amendments to the locations and to the routes of Franchisee's fiber optic facilities, which approval shall not be unreasonably withheld, conditioned or delayed.

(b) This Franchise Agreement does not grant Franchisee the authority or right to provide end user "Cable Service." For the purposes of this agreement, "Cable Service" is defined as the one-way transmission to subscribers of video programming or other programming services, and subscriber interaction, if any, which is required for the selection of such video programming or other programming service.

(c) The grant of this Franchise Agreement shall not convey title, equitable or legal, to Franchisee in the Rights of Way of the City and shall only give to Franchisee the right to occupy the Rights of Way of the City for the purposes and for the time stated in this Franchise Agreement. The Franchise Agreement does not:

(1) Grant Franchisee the right to use Facilities or any other property, telecommunications-related or otherwise, owned or controlled by the City or a third party, without the valid written consent of the City or the third party.

(2) Grant Franchisee the authority to construct, to operate, or to maintain any Facilities and any related appurtenances and improvements thereto on any property owned by the City outside a Right of Way, including but not limited to public parks, City Hall, public works facilities, or other public property. The parties agree that the City and Franchisee shall—if it becomes necessary—enter into separate agreements for the placement of Facilities and any related appurtenances and improvements thereto on any City-owned property not located in a Right of Way.

(3) Excuse Franchisee from obtaining appropriate access or attachment agreements before locating its Facilities and any related appurtenances and improvements thereto on any property or facilities owned or controlled by the City or by any third party.

(d) As noted in subsection (b), Franchisee shall not provide any additional services for which a separate franchise is required by the City without first obtaining a separate franchise or amending this Franchise Agreement. In particular, this Franchise Agreement does not grant Franchisee the right to provide cable service as a cable operator (as defined by 47 U.S.C. § 522(5)) within the City. Franchisee also agrees that this Franchise Agreement does not permit it to operate an open video system without the payment of fees contemplated by 47 U.S.C. § 573(c)(2)(B) and without complying with all FCC regulations promulgated pursuant to 47 U.S.C. § 573. Franchisee shall not knowingly allow the use of its Facilities by any third party in violation of this subsection or of any federal, state, or local laws.

(e) Nothing in this Franchise Agreement shall be construed as giving Franchisee any exclusive rights or privileges.

(f) Notwithstanding anything herein to the contrary, Franchisee reserves all rights it may have under applicable federal, state and local laws affecting this Franchise Agreement, including but not limited to K.S.A. 12-2001.

SECTION 3. - Use of Rights of Way.

In using Rights of Way under this Franchise Agreement, Franchisee shall be subject to all applicable ordinances, resolutions, rules, regulations, and policies now or hereafter adopted or promulgated by the City in the reasonable exercise of its police powers and shall be subject to all applicable laws, statutes, ordinances, regulations, orders, and rules adopted or promulgated by any governing body now or hereafter having appropriate jurisdiction. As a condition of this Franchise Agreement, Franchisee shall obtain and shall be responsible for obtaining and maintaining any necessary permits, licenses, certifications, grants, registrations, or other authorizations required by any appropriate governmental entity, including but not limited to the FCC, the KCC, or the City, subject to Franchisee's right to challenge in good faith such requirement. In addition, Franchisee shall be subject to all applicable ordinances, resolutions, rules, regulations, and policies now or hereafter adopted or promulgated by the City relating to the use of Rights of Way, including but not limited to permits, sidewalk and pavement cuts, utility location, construction coordination, "Complete Streets" policies, beautification, tree care, and other requirements affecting the use of Rights of Way. Franchisee shall also comply with the following:

(a) Franchisee's use of the Rights of Way shall in all matters be subject and subordinate to the City's use of the Rights of Way for any purpose relating to the health, safety, and welfare and regulations of the City. Franchisee shall coordinate the placement of its Facilities in a manner that minimizes adverse impact on Public Improvements as reasonably determined by the City. Where placement is not otherwise regulated, the Facilities shall be placed with adequate clearance from such Public Improvements so as not to impact or be impacted by such Public Improvements.

(b) All earth, materials, sidewalks, paving, crossings, utilities, Public Improvements, or improvements of any kind that are injured, damaged, or removed by Franchisee, while engaging in any activity under this Franchise Agreement, shall be fully repaired or replaced within a reasonable time by Franchisee at its sole cost and expense and to the reasonable satisfaction of the City.

(c) Franchisee shall keep and maintain accurate records and as-built drawings depicting the accurate location of all Facilities constructed, reconstructed, located, or relocated in the Rights of Way of the City after the date hereof and shall provide that information to the City upon its request. Such location and identification shall be at the sole cost and expense of Franchisee, without any such cost or expense to the City or its authorized agents and contractors.

The City agrees to use any information obtained under this subsection only to locate utility facilities in connection with Public Projects and further agrees not to disclose such information to anyone other than City employees requiring such information to locate utility facilities in connection with Public Projects, except as may otherwise be required by law. The City and Franchisee agree that such information is confidential and proprietary. The City and Franchisee also agree that such information shall remain the sole property of Franchisee. The City and Franchisee further agree that such information shall not constitute an open public record as that term is defined by the Kansas Open Records Act, codified as amended at K.S.A. 45-215 et seq. In the event that the City shall be required to disclose such information,

the City shall provide Franchisee advance written notice of its intended disclosure of such information and shall take such action as may be reasonably required to cooperate with Franchisee in safeguarding such information.

Franchisee agrees to indemnify and to hold the City harmless from any and all penalties or costs, including reasonable attorneys' fees, incurred by the City, at the written request of Franchisee, in seeking to safeguard the confidentiality of information provided to the City by Franchisee under this section.

In the event that such information is required by law to be publicly disclosed, then Franchisee shall have no further obligation under this section to provide the City with such information.

(d) Except in cases of emergency, a minimum of fourteen (14) days prior to construction, reconstruction, location, or relocation of any Facilities in a Right of Way, Franchisee shall submit to the City Engineer, or his or her designee, for approval, plans and specifications related to the proposed construction, reconstruction, location, or relocation. The City shall not unreasonably withhold, delay, or condition approval of said plans and specification. The City's review of the plans and specifications shall be confined to matters impacting the interests of the City in managing the Rights of Way of the City.

(e) As reasonably necessary to accommodate City projects (not to include private parties), Franchisee shall relocate or adjust any of its Facilities located in a Right of Way for a Public Project upon forty-five (45) days written notice from the City. Such relocation or adjustment shall be performed by Franchisee at its sole cost and expense, without any cost or expense to the City or its authorized agents and Contractors and shall be subject specifically to the rules and regulations of the City.

Notwithstanding Section 3(e), Franchisee shall not be responsible for the expenses of relocation to accommodate any private party-initiated relocation of its Facilities. The expenses attributable to such a project shall be the responsibility of the private party upon the request and appropriate documentation of Franchisee. Before such expenses may be billed to the private party, Franchisee shall coordinate with the private party and the City on the design and construction to ensure that the work required is necessary and done in a cost-effective manner. Franchisee may require payment in advance of estimated costs or relocation prior to undertaking any work required to accommodate any installation initiated after the effective date of this Agreement.

(f) It shall be the sole responsibility of Franchisee to take adequate measures to protect and defend its Facilities in the Rights of Way from harm and damage. If Franchisee fails to accurately or timely locate its Facilities as required under K.S.A. 66-1801 et seq. and City law and regulation, then Franchisee has no claim for costs or damages against the City or its authorized agents and Contractors or any other party authorized to be in the Rights of Way, except to the extent that such harm or damage is caused by such party's negligent or intentional conduct. The City and its authorized agents and Contractors agree to take reasonable precautionary measures, including but not limited to calling for utility locations and observing marker posts, when working near Franchisee's Facilities.

(g) Except in cases of emergency, Franchisee shall notify the City not less than ten (10) days in advance of any construction, reconstruction, repair, location, or relocation of Facilities that would require any street closure or that would reduce the traffic flow to less than two lanes of moving traffic. The City shall follow its policies in the approval or denial of such authority, neither of which shall be unreasonably denied nor delayed. Except

in cases of emergency, no such closure shall take place without the prior authorization of the City.

In addition, all work performed in the traveled Rights of Way that, in any way, impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected. For all work performed within the Rights of Way, Franchisee shall comply with the City's regulations, rules, and orders regarding the placement of signs, barricades, and other safeguards.

(h) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the facilities in the Rights of Way shall be in accordance with applicable present and future federal, state, and local laws and regulations.

(i) The City shall have the authority to prohibit Franchisee's use or occupation of a specific portion of any Right of Way that is environmentally sensitive, as defined by federal, state, or local law or regulation, or that lies within a previously designated historic district as defined by federal, state, or local law, provided such prohibition is applied in a competitively neutral, non-discriminatory manner.

SECTION 4. - Compensation to the City.

(a) Franchisee is solely responsible for the payment of all lawful franchise and permit fees in connection with Franchisee's performance under this Agreement.

(b) In consideration of this Franchise Agreement, Franchisee agrees to remit to the City a Franchise Fee of five percent (5%) of Gross Receipts as defined in K.S.A. 12-2001(c)(6), and in addition, any other Gross Receipts as defined in Wichita City Code 3.93.040 to the extent permitted by state and federal law, (together the "Franchise Fee").

(c) The franchise fee is compensation for the use of the right of way and shall in no way be deemed a tax of any kind. The franchise fee is in addition to, and not in lieu of, the City's Telecommunications Service Occupation Tax under Wichita City Code Section 3.01.020. Franchisee will receive credit regardless of whether it is an end-user in the City limits toward total franchise fee payment pursuant to Wichita City Code Section 3.93.350 for occupation tax paid.

(d) In accordance with Section 3.93.310 of the Wichita City Code, each franchise fee payment shall be accompanied by a statement showing the manner in which the franchise fee was calculated. The franchise fee payment should also specify occupation tax credit as identified in Section 4(c) above.

(e) The franchise fee shall be due on a quarterly basis. The first payment shall be due on the first day of the month following the date on Page 1 of this Franchise Agreement, without the City being responsible for submitting an invoice. Any franchise fee not postmarked or delivered by the due date shall accrue interest from the due date until received, at the applicable statutory interest rate, as defined in K.S.A. 16-201.

SECTION 5. - Indemnification.

(a) It shall be the responsibility of Franchisee to take adequate measures to protect and defend its Facilities in the Rights of Way from harm or damage. If Franchisee fails to accurately or timely locate its Facilities, when requested, in accordance with the Kansas Underground Utility Damage Prevention Act, K.S.A. 66-1801 et seq., then it has no claim for costs or damages against the City or its authorized contractors, except to the extent such harm or damage is caused by such party's negligence or intentional conduct.

(b) Franchisee, and any successor or assign, agrees to indemnify, defend, save, and hold harmless the City, its officers, agents, employees, grantees, and assigns, from and against all claims, actions, liabilities,

damages, costs, expenses, and judgments, including reasonable attorneys' fees, on account of any injury to persons (including death) or damage to property to the extent caused by Franchisee's activities in the Rights of Way under the terms of this Franchise Agreement. This indemnification clause shall not apply to any injury or damage caused by the City's own negligence or intentional conduct or that of its employees, agents, or contractors. This indemnity provision shall extend beyond the termination or expiration of this Franchise Agreement.

(c) The City and Franchisee shall promptly advise the other in writing of any known claim or demand against Franchisee or the City related to or arising out of the Franchisee's activities in the Rights of Way.

SECTION 6. - Transfer and Assignment.

(a) Pursuant to the written permission of the City, which shall not unreasonably be withheld or delayed, Franchisee shall have the right to assign this Franchise Agreement and the rights and privileges hereby granted to any person, firm, or corporation, and any such assignee, who by accepting such assignment shall be bound by the terms and provisions of this Franchise Agreement. If Franchisee should seek approval to assign this Franchise Agreement, Franchisee shall notify the City in writing. All such assignments shall be in writing and authenticated copies thereof shall be filed with the City Clerk. This Franchise Agreement shall be assignable only in accordance with the laws of the State of Kansas.

SECTION 7. - Notice.

All notices, requests, demands, or other communications hereunder shall be in writing and shall be deemed given if personally delivered or mailed, certified mail, return receipt requested, or by a recognized overnight delivery service, to the following addresses:

If to City:

City of Wichita, Kansas
Attn: City Clerk
455 North Main Street, 13th Floor
Wichita, Kansas 67202

With a copy to:

City Attorney
455 North Main Street, 13th Floor
Wichita, Kansas 67202

If to Franchisee:

MCImetro Access Transmissions Service LLC
d/b/a Verizon Access Transmission Services
600 Hidden Ridge
Irving, TX 75038
Attn: Franchise Manager

With copy to (except for invoices) (which copy will not constitute notice):
Verizon Legal Department
Attn: Network Legal Team
1300 I Street, NW
5th Floor
Washington, DC 20005

Any such Notice shall be deemed effective upon actual receipt or refusal of receipt as shown on any return receipt obtained under this Section.

SECTION 8. - Term and Termination Date.

(a) This Franchise Agreement shall be effective for a term of ten (10) years from the effective date of this Franchise Agreement. Thereafter, this Franchise Agreement will renew for one (1) additional ten (10) year term, unless either party notifies the other party in writing of its intent to terminate or renegotiate this Franchise Agreement not less than one hundred eighty (180) days before the termination of the then-current term. The additional term shall be deemed a

continuation of the Franchise Agreement and not a new Franchise Agreement or amendment.

(b) Upon written request of the City or Franchisee, this Franchise Agreement shall be renegotiated at any time upon either of the following events: (i) any change in federal, state, or local laws, ordinances, regulations, orders, or rules that materially affects any rights or obligations of either the City or Franchisee under this Franchise Agreement; or (ii) notice is given not less than one hundred eighty (180) days before the termination of the then-current term.

(c) If any clause, sentence, section, or provision of K.S.A. 17-1901 et seq., and any amendments thereto, shall be held to be invalid by any court or administrative agency of competent jurisdiction, provided such order is not stayed, either the City or Franchisee may elect to request an amendment to the Franchise Agreement to be consistent with the order, unless the Franchise Agreement cannot be reasonably amended to remain a valid agreement in light of the order, in which event either the City or Franchisee may elect to terminate the entire Franchise Agreement. In the event of such invalidity and termination, if either the City or Franchisee is required by law to enter into a new agreement or an Ordinance Franchise with the other, the parties agree to act in good faith to promptly negotiate a new agreement or an Ordinance Franchise.

SECTION 9. - Termination or Forfeiture of Agreement.

(a) In case of failure on the part of Franchisee, its successors or assigns, to comply with any of the provisions of this Franchise Agreement, or if Franchisee, its successor or assigns, should do or cause to be done any act or thing prohibited by or in violation of the terms of this Franchise Agreement, then Franchisee, its successors or assigns, shall forfeit all rights and privileges granted by the Franchise Agreement and all rights hereunder shall cease, terminate, and become null and void, provided that said forfeiture shall not take effect until the City shall complete the following:

Before the City may proceed to terminate this Franchise Agreement, it shall first serve a written notice as provided by the Notice provisions of this Franchise Agreement, setting forth in detail the conditions of neglect, default, or failure complained of, and Franchisee shall have ninety (90) days after the receipt of such notice in which to comply with the conditions of this Franchise Agreement. If, at the end of such ninety (90) day period, the City deems that the conditions of the Franchise Agreement have not been met and that such Franchise Agreement is subject to cancellation thereunder, then the City shall terminate the Franchise Agreement, unless compliance with the conditions cannot be reasonably accomplished within said ninety (90) day period, in which event Franchisee shall have such additional time as is reasonably necessary provided Franchisee has commenced the cure within said ninety (90) day period and diligently prosecutes the cure to completion.

(b) Franchisee, its successors or assigns, may terminate this Franchise Agreement by notifying the City of its intent to terminate not less than thirty (30) days prior to the annual anniversary date of the execution of this Franchise Agreement.

(c) In the event of forfeiture or termination of the Franchise Agreement under this Section, Franchisee agrees that all compensation paid theretofore to the City shall be forfeited.

SECTION 10. - Rights and Duties upon Termination of Agreement.

Upon termination of this Franchise Agreement, whether by lapse of time, agreement by the parties, or by forfeiture, Franchisee shall have the right to abandon in place or, at its

option, to remove its Facilities from the Public Rights of Way within a reasonable time after such termination. In the case of the latter event, it shall be the duty of Franchisee immediately upon removal to restore the Public Rights of Way from which said Facilities are removed to as good condition as the same were before said removal was effected, ordinary wear and tear and damages not caused by Franchisee excepted, without cost to the City. In the case of the former event, abandonment by Franchisee shall operate to vest in the City all title, rights, and ownership of the abandoned facilities in their AS-IS, WHERE-IS condition with no warranties or guarantees of any kind.

SECTION 11. - Insurance.

(a) During the initial term, the renewal term, or any other extension of this Franchise Agreement, Franchisee shall obtain and maintain insurance coverage, at its sole cost and expense, with financially reputable insurers that are licensed, authorized or permitted to do business in the State of Kansas. Should Franchisee elect to use the services of an affiliated captive insurance company for this purpose, Franchisee shall obtain and possess a certificate of authority from the Kansas Insurance Commissioner. Franchisee shall provide not less than the following insurance:

(1) Worker's compensation as provided for under any workers' compensation or similar law in the jurisdiction where any work is performed with an employers' liability limit of $1,000,000 each accident/disease/policy limit equal to the amount required by law.

(2) Commercial general liability, including coverage for contractual liability and products completed operations liability on an occurrence basis and not a claims made basis, with a limit of Two Million Dollars ($2,000,000.00) per occurrence for bodily injury and property damage liability and Two Million Dollars ($2,000,000.00) general aggregate including personal and advertising injury. The City shall be included as an additional insured as their interest may appear under this Agreement with respect to liability arising from Franchisee's operations under this Franchise Agreement. Franchisee may utilize a combination of primary and umbrella liability insurance policies to satisfy the insurance policy limit requirements herein.

(b) As an alternative to the requirements of Section 11(a), supra, Franchisee may demonstrate to the satisfaction of the City that it is self-insured and that it has the wherewithal to provide coverage in an amount One Million Dollars ($1,000,000.00) per occurrence and Two Million Dollars ($2,000,000.00) in aggregate to protect the City from and against all claims by any person for loss or damage from death, personal injury, bodily injury, or property damage occasioned by Franchisee or so alleged to have been caused or to have occurred.

(c) Franchisee shall, as a material condition of this Franchise Agreement, prior to the commencement of any work, deliver to the City a certificate of insurance or evidence of self-insurance evidencing that the above insurance is in force. Upon receipt of notice from its insurer(s) Franchisee will provide the City thirty (30) days prior written notice of cancellation of any required coverage.

(d) Franchisee shall, as a material condition of this Franchise Agreement, prior to the commencement of any work hereunder, deliver to the City satisfactory evidence of a performance bond in the amount of Twenty Thousand Dollars ($20,000.00) payable to the City. The bond shall be used to ensure the appropriate and timely performance in the construction and maintenance of Facilities located in the Public Rights of Way and must be issued by a surety company authorized to

transact business in the State of Kansas and satisfactory to the City Attorney or to the City's Legal Department in form and substance. The performance bond shall remain in effect the entire term of the Ordinance to ensure the ongoing performance of the terms and obligations of the franchise as well as any future phases of construction and/or repair work. Notwithstanding the foregoing sentence, the City reserves the right to require Franchisee to provide additional financial assurance for future phases of construction and/or repair work, as reasonably determined by the City.

SECTION 12. - Reservation of Rights.

In entering into this Franchise Agreement, neither the City's nor Franchisee's present or future legal rights, positions, claims, assertions, or arguments, before any administrative body or court of law are in any way prejudiced or waived. By entering into this Franchise Agreement, neither the City nor Franchisee waive any rights, but instead expressly reserve any and all rights, remedies, and arguments the City or Franchisee may have at law or equity, without limitation, to argue, assert and/or take any position as to the legality or appropriateness of this Franchise Agreement or any present or future laws, ordinances, or rulings that may be the basis for the City or Franchisee entering into this Franchise Agreement.

SECTION 13. - Failure to Enforce.

The failure of either the City or Franchisee to insist in any one or more instances upon the strict performance of one or more of the terms or provisions of this Franchise Agreement shall not be construed as a waiver or relinquishment of any right in the future to enforce such term or provision, and the same shall continue in full force and effect. No waiver or relinquishment of any term or provision of this Franchise Agreement shall be deemed to have been made by the City or Franchisee unless said waiver or relinquishment is in writing and signed by both the City and Franchisee.

SECTION 14. - Force Majeure.

No party shall be liable for any failure to perform its obligations where such failure is a result of acts of God, fire, strikes, riots, floods, war, and other disasters or events beyond the City's or Franchisee's reasonable control.

SECTION 15. - Severability.

If any provision, section, or subsection of this Franchise Agreement or the application thereof to any person or circumstance is declared invalid by a competent court of law, such invalidity shall not affect other provisions, sections, subsections, or applications of this Franchise Agreement that can be given effect without the invalid provision, section, subsection, or application, and to this end the provisions, sections, subsection, or applications of this Franchise Agreement are hereby declared to be severable.

SECTION 16. - Governing Law.

The terms of this Franchise Agreement shall be governed by the laws of the State of Kansas.

SECTION 17. - Most Favored Provider.

All of the benefits and terms granted by the City herein are at least as favorable as the benefits and terms granted by the City to any future franchisee of the public ROW engaged in the same or similar business described in this Franchise Agreement. Should the City enter into any subsequent agreement of any kind no matter what nomenclature is attached thereto with any other franchisee during the term of this Franchise Agreement, which Agreement provides for benefits or terms more favorable than those contained in this Franchise Agreement, then this Franchise Agreement shall be deemed to be modified effective as of the date of such more favorable agreement to provide Franchisee with those more favorable benefits and terms. The City shall notify Franchisee promptly of the existence of such more favorable benefits and terms and Franchisee shall have the right to receive the more favorable benefits and terms immediately. If requested in writing by Franchisee, the City shall amend this Franchise Agreement to contain the more favorable terms and conditions.

SECTION 18. - Most-Favored Municipality.

Most-Favored Municipality. Should Franchisee after the Parties' execution and delivery of this Agreement enter into a franchise agreement for the same type and scope of services and right-of-way use as in this Franchise Agreement with another municipality of the same or similar size as the City in this State, which agreement contains financial benefits for such municipality which, taken as a whole and balanced with the other terms of such agreement, are in the City's reasonable opinion substantially superior to those in this Franchise Agreement, the City shall have the right to require that Franchisee, and all other similarly situated providers, modify their franchise agreements to incorporate the same or substantially similar superior benefits. All modifications to franchise agreements under this Section 18 shall be competitively neutral and not unreasonable or discriminatory in any way.

IN WITNESS WHEREOF, the undersigned have caused this Franchise Agreement to be executed as of the date noted above.

CITY OF WICHITA

_____

Brandon Whipple, Mayor

MCIMETRO ACCESS TRANSMISSION SERVICES, LLC d/b/a VERIZON ACCESS TRANSMISSION SERVICES

_____

Dina Dye, Sr. Manager - Network Reg/RE

ATTEST:

_____

Jamie Buster, City Clerk

Approved as to form:

_____

Jennifer Magaña, City Attorney and Director of Law

(Ord. No. 52-019, 1-3-23)

BUTLER RURAL ELECTRIC COOPERATIVE ASSOCIATION, INC.
Ordinance No. 52-338

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS GRANTING TO BUTLER RURAL ELECTRIC COOPERATIVE ASSOCIATION, INC., ITS SUCCESSORS AND ASSIGNS, A FIBER OPTIC CABLE FRANCHISE AND PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Definitions.

For the purposes of this Franchise Agreement, the following words and phrases shall have the meanings given herein:

(a) "City" shall mean the City of Wichita, Kansas. References to the City shall also include, as appropriate, any and all successors and assigns.

(b) "Facilities" shall mean fiber optic lines and all appurtenances and improvements thereto, whether existing above or below ground.

(c) "Franchise" shall mean a grant conveying the right, privilege, and authority to construct, operate and maintain facilities in, through and along the City's right of way for the purposes of supplying communications services.

(d) "Private party" means a non-governmental entity.

(e) "Public Improvement" shall mean any existing or contemplated public facility, building, or capital improvement project, including but not limited to streets, alleys, sidewalks, sewers, water mains, drainage conduits, telecommunication conduits, rights of way improvements, and other Public Projects.

(f) "Public Project" shall mean any project planned or undertaken by the City or any other governmental entity for the construction, reconstruction, maintenance, or repair of public facilities or Public Improvements, or for any public purpose.

(g) "Public Rights of Way" shall mean only those areas of real property in which the City has dedicated or acquired rights of way interests in the real property. It shall include the area on, below, or above the present and future streets, sidewalks, alleys, avenues, roads, highways, parkways, boulevards, or bridges dedicated or acquired as rights of way. The term does not include the airwaves above rights of way with regard to wireless telecommunications, other non-wire telecommunications, or broadcast service, easements obtained by utilities, or private easements in platted subdivisions or tracts.

(h) "Telecommunications Services" shall mean providing the means of transmission between or among points specified by the user, of information of the user's choosing, without change in the form or content of the information sent and received.

All definitions not specifically defined herein shall have the meaning ascribed to them by applicable federal, state or local law.

SECTION 2. Grant of Franchise.

(a) For and in recognition of the mutual consideration set forth in this Franchise Agreement, the satisfaction of which is hereby acknowledged by both parties, Franchisee is hereby granted a nonexclusive Franchise to construct, place, replace, repair, maintain, extend, and operate its facilities along, across, upon, under, or in the City's Public Rights of Way, for the purpose of providing a fiber optic network to provide digital data and/or voice transport.

The City may, in writing, approve amendments to the locations and to the routes of Franchisee's fiber optic facilities, which approval shall not be unreasonably withheld, conditioned or delayed.

(b) This Franchise Agreement does not grant Franchisee the authority or right to provide end user "Cable Service." For the purposes of this

agreement, "Cable Service" is defined as the one-way transmission to subscribers of video programming or other programming services, and subscriber interaction, if any, which is required for the selection of such video programming or other programming service.

(c) The grant of this Franchise Agreement shall not convey title, equitable or legal, to Franchisee in the Public Rights of Way of the City and shall only give to Franchisee the right to occupy the Public Rights of Way of the City for the purposes and for the time stated in this Franchise Agreement. The Franchise Agreement does not:

(1) Grant Franchisee the right to use Facilities or any other property, telecommunications-related or otherwise, owned or controlled by the City or a third party, without the valid written consent of the City or the third party.

(2) Grant Franchisee the authority to construct, to operate, or to maintain any Facilities and any related appurtenances and improvements thereto on any property owned by the City outside a Public Right of Way, including but not limited to public parks, City Hall, public works facilities, or other public property. The parties agree that the City and Franchisee shall—if it becomes necessary—enter into separate agreements for the placement of Facilities and any related appurtenances and improvements thereto on any City-owned property not located in a Public Right of Way.

(3) Excuse Franchisee from obtaining appropriate access or attachment agreements before locating its Facilities and any related appurtenances and improvements thereto on any property or facilities owned or controlled by the City or by any third party.

(d) As noted in subsection (b), Franchisee shall not provide any additional services for which a separate franchise is required by the City without first obtaining a separate franchise or amending this Franchise Agreement. In particular, this Franchise Agreement does not grant Franchisee the right to provide cable service as a cable operator (as defined by 47 U.S.C. § 522(5)) within the City. Franchisee also agrees that this Franchise Agreement does not permit it to operate an open video system without the payment of fees contemplated by 47 U.S.C. § 573(c)(2)(B) and without complying with all FCC regulations promulgated pursuant to 47 U.S.C. § 573. Franchisee shall not knowingly allow the use of its Facilities by any third party in violation of this subsection or of any federal, state, or local laws.

(e) Nothing in this Franchise Agreement shall be construed as giving Franchisee any exclusive rights or privileges.

(f) Franchisee or Franchisee's contractor shall, prior to commencing any construction of Franchisee's Facilities in a Public Right of Way, post a payment bond an amount equal to the estimated construction costs assuring that the construction of Franchisee's Facilities in the Public Right of Way will be constructed without the attachment of any construction liens. Such payment bond will be returned by the City and cancelled upon Franchisee providing reasonable proof of payment for the construction.

(g) Notwithstanding anything herein to the contrary, Franchisee reserves all rights it may have under applicable federal, state and local laws affecting this Franchise Agreement, including but not limited to K.S.A. 12-2001.

SECTION 3. Use of Public Rights of Way.

In using Public Rights of Way under this Franchise Agreement, Franchisee shall be subject to all applicable ordinances, resolutions, rules, regulations, and policies now or hereafter adopted or promulgated by the City in the reasonable exercise of its police powers and shall be subject to all applicable laws, statutes, ordinances, regulations, orders, and rules adopted or promulgated by any governing body now or hereafter having appropriate jurisdiction. As a condition of this Franchise Agreement, Franchisee shall obtain and shall be responsible for obtaining and maintaining any necessary permits, licenses, certifications, grants, registrations, or other authorizations required by any appropriate

governmental entity, including but not limited to the FCC, the KCC, or the City, subject to Franchisee's right to challenge in good faith such requirement. In addition, Franchisee shall be subject to all applicable ordinances, resolutions, rules, regulations, and policies now or hereafter adopted or promulgated by the City relating to the use of Public Rights of Way, including but not limited to permits, sidewalk and pavement cuts, utility location, construction coordination, "Complete Streets" policies, beautification, tree care, and other requirements affecting the use of Public Rights of Way. Franchisee shall also comply with the following:

(a) Franchisee's use of the Public Rights of Way shall in all matters be subject and subordinate to the City's use of the Public Rights of Way for any public purpose or for any purpose relating to the health, safety, and welfare of the City. Franchisee shall coordinate the placement of its Facilities in a manner that minimizes adverse impact on Public Improvements as reasonably determined by the City. Where placement is not otherwise regulated, the Facilities shall be placed with adequate clearance from such Public Improvements so as not to impact or be impacted by such Public Improvements.

(b) All earth, materials, sidewalks, paving, crossings, utilities, Public Improvements, or improvements of any kind that are injured, damaged, or removed by Franchisee, while engaging in any activity under this Franchise Agreement, shall be fully repaired or replaced within a reasonable time by Franchisee at its sole cost and expense and to the reasonable satisfaction of the City.

(c) Franchisee shall keep and maintain accurate records and as-built drawings depicting the accurate location of all Facilities constructed, reconstructed, located, or relocated in the Public Rights of Way of the City after the date hereof and shall provide that information to the City upon its request. Such location and identification shall be at the sole cost and expense of Franchisee, without any such cost or expense to the City or its authorized agents and contractors.

The City agrees to use any information obtained under this subsection only to locate utility facilities in connection with Public Projects and further agrees not to disclose such information to anyone other than City employees requiring such information to locate utility facilities in connection with Public Projects, except as may otherwise be required by law. The City and Franchisee agree that such information is confidential and proprietary. The City and Franchisee also agree that such information shall remain the sole property of Franchisee. The City and Franchisee further agree that such information shall not constitute an open public record as that term is defined by the Kansas Open Records Act, codified as amended at K.S.A. 45-215 et seq. In the event that the City shall be required to disclose such information, the City shall provide Franchisee advance written notice of its intended disclosure of such information and shall take such action as may be reasonably required to cooperate with Franchisee in safeguarding such information.

Franchisee agrees to indemnify and to hold the City harmless from any and all penalties or costs, including reasonable attorneys' fees, incurred by the City, at the written request of Franchisee, in seeking to safeguard the confidentiality of information provided to the City by Franchisee under this section.

In the event that such information is required by law to be publicly disclosed, then Franchisee shall have no further obligation under this section to provide the City with such information.

(d) Except in cases of emergency, a minimum of fourteen (14) days prior to construction, reconstruction, location, or relocation of any Facilities in a Public Right of Way, Franchisee shall submit to the City Engineer, or his or her designee, for

approval, plans and specifications related to the proposed construction, reconstruction, location, or relocation. The City shall not unreasonably withhold, delay, or condition approval of said plans and specification. The City's review of the plans and specifications shall be confined to matters impacting the interests of the City in managing the Public Rights of Way of the City.

(e) As reasonably necessary to accommodate City projects (not to include private parties), Franchisee shall relocate or adjust any of its Facilities located in a Public Right of Way for a Public Project upon forty-five (45) days written notice from the City. Such relocation or adjustment shall be performed by Franchisee at its sole cost and expense, without any cost or expense to the City or its authorized agents and Contractors and shall be subject specifically to the rules and regulations of the City.

Notwithstanding Section 3(e), Franchisee shall not be responsible for the expenses of relocation to accommodate any private party initiated installation of its Facilities. The expenses attributable to such a project shall be the responsibility of the private party upon the request and appropriate documentation of Franchisee. Before such expenses may be billed to the private party, Franchisee shall coordinate with the private party and the City on the design and construction to ensure that the work required is necessary and done in a cost-effective manner. Franchisee may require payment in advance of estimated costs or relocation prior to undertaking any work required to accommodate any installation initiated after the effective date of this Agreement.

(f) It shall be the sole responsibility of Franchisee to take adequate measures to protect and defend its Facilities in the Public Rights of Way from harm and damage. If Franchisee fails to accurately or timely locate its Facilities when requested, then Franchisee has no claim for costs or damages against the City or its authorized agents and Contractors or any other party authorized to be in the Public Rights of Way, except to the extent that such harm or damage is caused by such party's negligent or intentional conduct. The City and its authorized agents and Contractors agree to take reasonable precautionary measures, including but not limited to calling for utility locations and observing marker posts, when working near Franchisee's Facilities.

(g) Except in cases of emergency, Franchisee shall notify the City not less than ten (10) days in advance of any construction, reconstruction, repair, location, or relocation of Facilities that would require any street closure or that would reduce the traffic flow to less than two lanes of moving traffic. The City shall follow its policies in the approval or denial of such authority, neither of which shall be unreasonably denied nor delayed. Except in cases of emergency, no such closure shall take place without the prior authorization of the City.

In addition, all work performed in the traveled Public Rights of Way that, in any way, impacts vehicular or pedestrian traffic shall be properly signed, barricaded, and otherwise protected. For all work performed within the Public Rights of Way, Franchisee shall comply with the City's regulations, rules, and orders regarding the placement of signs, barricades, and other safeguards.

(h) All technical standards governing construction, reconstruction, installation, operation, testing, use, maintenance, and dismantling of the facilities in the Public Rights of Way shall be in accordance with applicable present and future federal, state, and local laws and regulations.

(i) The City shall have the authority to prohibit Franchisee's use or occupation

of a specific portion of any Public Right of Way that is environmentally sensitive, as defined by federal, state, or local law or regulation, or that lies within a previously designated historic district as defined by federal, state, or local law, provided such prohibition in applied in a competitively neutral, non-discriminatory manner.

SECTION 4. Compensation to the City.

(a) Franchisee is solely responsible for the payment of all lawful franchise and permit fees in connection with Franchisee's performance under this Agreement.

(b) In consideration of this Franchise Agreement, Franchisee agrees to remit to the City a franchise fee of five percent (5%) of Gross Revenues ("Franchise Fee"). As defined in Wichita City Code 3.93.040, "gross receipts" means all revenues received directly or indirectly by a franchisee or its affiliates for communications services that either originate or terminate within the corporate limits of the city, and all revenue derived from the use of facilities. If a telecommunications local exchange service provider offers additional services of a wholly local nature which if in existence on or before July 1, 2002, would have been included with the definition of gross receipts, such services shall be included from the date of the offering of such services in the City. Such gross receipts means only those receipts collected from within the corporate boundaries of the City and which are derived from the following: (1) recurring local exchange service revenues from businesses and residences which includes basic telephone exchange service, touch tone, optional calling features and measured local calls; (2) recurring local exchange access line services for pay phone lines provided by a telecommunications local exchange service provider to all pay phone service providers; (3) local directory assistance (411); (4) line status verification/ busy interrupt; (5) local operator assistance; (6) nonrecurring local exchange service revenue, which shall include customer service charges for installation of lines, reconnection of service and charge for duplicate bills.. All other revenues, including, but not limited to, revenues from extended area service, the sale or lease of unbundled network elements, nonregulated services, carrier and end user access, long distance or interexchange services, wireless telecommunications services, lines providing only data service without voice services processed by a telecommunications local exchange service provider, private line service arrangements, internet, broadband and all other services not wholly local in nature are exclude from gross receipts. Additionally, "gross receipts" shall not include revenues from cable services subject to a cable services franchise, or bad or uncollected debt and late charges, and any federal, state or local taxes or franchise fees separately stated on a customer's bill, provided, that a franchisee shall include uncollected debt in gross receipts at the time it is actually collected.

(c) The franchise fee is compensation for the use of the right of way and shall in no way be deemed a tax of any kind. The franchise fee is in addition to, and not in lieu of, the City's Telecommunications Service Occupation Tax under Wichita City Code section 3.90.020. Franchisee will receive credit toward total franchise fee payment pursuant to Wichita City Code section 3.93.350 for occupation tax paid.

(d) In accordance with section 3.93.310 of the Wichita City Code, each franchise fee payment shall be accompanied by a statement showing the manner in which the franchise fee was calculated. The franchise fee payment should also specify occupation tax credit as identified in section 4(c) above.

(e) The franchise fee shall be due on a quarterly basis. The first payment shall be due on the first day of the month following the date on Page 1 of this Franchise Agreement, without the City being responsible for submitting an invoice. Any franchise fee not postmarked or delivered by the due date shall accrue interest from the due date until received, at the applicable statutory interest rate, as defined in K.S.A. 16-201.

SECTION 5. Indemnification.

(a) It shall be the responsibility of Franchisee to take adequate measures to protect and defend its Facilities in the Public Rights of Way from

harm or damage. If Franchisee fails to accurately or timely locate its Facilities, when requested, in accordance with the Kansas Underground Utility Damage Prevention Act, K.S.A. 66-1801 et seq., then it has no claim for costs or damages against the City or its authorized Contractors, except to the extent such harm or damage is caused by such party's negligence or intentional conduct.

(b) Franchisee, and any successor or assign, agrees to indemnify, defend, save, and hold harmless the City, its officers, agents, employees, grantees, and assigns, from and against all claims, actions, liabilities, damages, costs, expenses, and judgments, including reasonable attorneys' fees, on account of any injury to persons (including death) or damage to property to the extent caused by Franchisee's activities in the Public Rights of Way under the terms of this Franchise Agreement. This indemnification clause shall not apply to any injury or damage caused by the City's own negligence or intentional conduct or that of its employees, agents, or Contractors. This indemnity provision shall extend beyond the termination or expiration of this Franchise Agreement.

(c) The City and Franchisee shall promptly advise the other in writing of any known claim or demand against Franchisee or the City related to or arising out of the Franchisee's activities in the Public Rights of Way.

SECTION 6. Transfer and Assignment.

(a) Pursuant to the written permission of the City, which shall not unreasonably be withheld, conditioned or delayed, Franchisee shall have the right to assign this Franchise Agreement and the rights and privileges hereby granted to any person, firm, or corporation, and any such assignee, who by accepting such assignment shall be bound by the terms and provisions of this Franchise Agreement. If Franchisee should seek approval to assign this Franchise Agreement, Franchisee shall notify the City in writing. All such assignments shall be in writing and authenticated copies thereof shall be filed with the City Clerk. This Franchise Agreement shall be assignable only in accordance with the laws of the State of Kansas.

(b) This prohibition shall not apply, and the City's prior consent shall be not required, in the case of sale, assignment, transfer, or lease by Franchisee to an affiliated entity or to a successor in interest to the merger, consolidation, sale or acquisition of Franchisee; nor shall it apply to assignments made or security interests granted in order to secure financing. The City shall have the discretion to review the qualifications of any entity acquiring this Franchise Agreement.

SECTION 7. Notice.

All notices, requests, demands, or other communications hereunder shall be in writing and shall be deemed given if personally delivered or mailed, certified mail, return receipt requested, or by a recognized overnight delivery service, to the following addresses:

If to City:

City of Wichita, Kansas
Attn: City Clerk
455 North Main Street, 13th Floor
Wichita, KS 67202

With a copy to:

City Attorney
455 North Main Street, 13th Floor
Wichita, KS 67202

If to Franchisee:

Butler Rural Electric Cooperative Association, Inc.
Attn: Sarah Madden
PO Box 1242
El Dorado, KS 67042

Any such Notice shall be deemed effective upon actual receipt or refusal of receipt as shown on any return receipt obtained under this Section.

SECTION 8. Term and Termination Date.

(a) This Franchise Agreement shall be effective for a term of ten (10) years from the effective date of this Franchise Agreement. Thereafter, this Franchise Agreement will renew for one (1) additional ten (10) year term, unless either party

notifies the other party in writing of its intent to terminate or renegotiate this Franchise Agreement not less than one hundred eighty (180) days before the termination of the then-current term. The additional term shall be deemed a continuation of the Franchise Agreement and not a new Franchise Agreement or amendment.

(b) Upon written request of the City or Franchisee, this Franchise Agreement shall be renegotiated at any time upon either of the following events: (i) any change in federal, state, or local laws, ordinances, regulations, orders, or rules that materially affects any rights or obligations of either the City or Franchisee under this Franchise Agreement; or (ii) notice is given not less than one hundred eighty (180) days before the termination of the then-current term.

(c) If any clause, sentence, section, or provision of K.S.A. 17-1901 et seq., and any amendments thereto, shall be held to be invalid by any court or administrative agency of competent jurisdiction, provided such order is not stayed, either the City or Franchisee may elect to request an amendment to the Franchise Agreement to be consistent with the order, unless the Franchise Agreement cannot be reasonably amended to remain a valid agreement in light of the order, in which event either the City or Franchisee may elect to terminate the entire Franchise Agreement. In the event of such invalidity and termination, if either the City or Franchisee is required by law to enter into a new agreement or an Ordinance Franchise with the other, the parties agree to act in good faith to promptly negotiate a new agreement or an Ordinance Franchise.

SECTION 9. Termination or Forfeiture of Agreement.

(a) In case of failure on the part of Franchisee, its successors or assigns, to comply with any of the provisions of this Franchise Agreement, or if Franchisee, its successor or assigns, should do or cause to be done any act or thing prohibited by or in violation of the terms of this Franchise Agreement, then Franchisee, its successors or assigns, shall forfeit all rights and privileges granted by the Franchise Agreement and all rights hereunder shall cease, terminate, and become null and void, provided that said forfeiture shall not take effect until the City shall complete the following:

Before the City may proceed to terminate this Franchise Agreement, it shall first serve a written notice as provided by the Notice provisions of this Franchise Agreement, setting forth in detail the conditions of neglect, default, or failure complained of, and Franchisee shall have ninety (90) days after the receipt of such notice in which to comply with the conditions of this Franchise Agreement. If, at the end of such ninety (90) day period, the City deems that the conditions of the Franchise Agreement have not been met and that such Franchise Agreement is subject to cancellation thereunder, then the City shall terminate the Franchise Agreement, unless compliance with the conditions cannot be reasonably accomplished within said ninety (90) day period, in which event Franchisee shall have such additional time as is reasonably necessary provided Franchisee has commenced the cure within said ninety (90) day period and diligently prosecutes the cure to completion.

(b) Franchisee, its successors or assigns, may terminate this Franchise Agreement by notifying the City of its intent to terminate not less than thirty (30) days prior to the annual anniversary date of this execution of this Franchise Agreement.

(c) In the event of forfeiture or termination of the Franchise Agreement under this Section, Franchisee agrees that all compensation paid theretofore to the City shall be forfeited.

SECTION 10. Rights and Duties upon Termination of Agreement.

Upon termination of this Franchise Agreement, whether by lapse of time, agreement by the parties, or by forfeiture, Franchisee shall have the right to abandon in place or, at its option, to remove its Facilities from the Public Rights of Way within a reasonable time after such termination. In the case of the latter event, it shall be the duty of Franchisee immediately upon removal to restore the Public Rights of Way from which said Facilities are removed to as good condition as the same were before said removal

was effected, ordinary wear and tear and damages not caused by Franchisee excepted, without cost to the City. In the case of the former event, abandonment by Franchisee shall operate to vest in the City all title, rights, and ownership of the abandoned facilities in their AS-IS, WHERE-IS condition with no warranties or guarantees of any kind.

SECTION 11. Insurance.

(a) During the initial term, the renewal term, or any other extension of this Franchise Agreement, Franchisee shall obtain and maintain insurance coverage, at its sole cost and expense, with financially reputable insurers that are licensed to do business in the State of Kansas. Should Franchisee elect to use the services of an affiliated captive insurance company for this purpose, Franchisee shall obtain and possess a certificate of authority from the Kansas Insurance Commissioner. Franchisee shall provide not less than the following insurance:

(1) Worker's compensation as provided for under any workers' compensation or similar law in the jurisdiction where any work is performed with an employers' liability limit equal to the amount required by law.

(2) Commercial general liability, including coverage for contractual liability and products completed operations liability on an occurrence basis and not a claims made basis, with a limit of not less than Two Million Dollars ($2,000,000.00) combined single limit per occurrence for bodily injury, personal injury, and property damage liability. The City shall be named as an additional insured with respect to liability arising from Franchisee's operations under this Franchise Agreement. Franchisee may utilize a combination of primary and umbrella liability insurance policies to satisfy the insurance policy limit requirements herein.

(b) As an alternative to the requirements of Section 11(a), supra, Franchisee may demonstrate to the satisfaction of the City that it is self-insured and that it has the wherewithal to provide coverage in an amount no less than One Million Dollars ($1,000,000.00) per occurrence and Two Million Dollars ($2,000,000.00) in aggregate to protect the City from and against all claims by any person for loss or damage from death, personal injury, bodily injury, or property damage occasioned by Franchisee or so alleged to have been caused or to have occurred.

(c) Franchisee shall, as a material condition of this Franchise Agreement, prior to the commencement of any work, deliver to the City a certificate of insurance or evidence of self-insurance evidencing that the above insurance is in force and will not be cancelled without first giving the City thirty (30) days prior written notice. Franchisee shall make available to the City, on request, the policy declarations page and a certified copy of the policy in effect so that limitations and exclusions can be evaluated for appropriateness of overall coverage.

(d) Franchisee shall, as a material condition of this Franchise Agreement, prior to the commencement of any work hereunder, deliver to the City satisfactory evidence of a performance bond in the amount of Twenty Thousand Dollars ($20,000.00) payable to the City. The bond shall be used to ensure the appropriate and timely performance in the construction and maintenance of Facilities located in the Public Rights of Way and must be issued by a surety company authorized to transact business in the State of Kansas and satisfactory to the City Attorney or to the City's Legal Department in form and substance. The performance bond shall remain in effect the entire term of the Ordinance to ensure the ongoing performance of the terms and obligations of the franchise as well as any future phases of construction and/or repair work. Notwithstanding the foregoing sentence, the City reserves the right to require Franchisee to provide additional financial assurance for future phases of construction and/or repair work, as reasonably determined by the City.

SECTION 12. Reservation of Rights.

In entering into this Franchise Agreement, neither the City's nor Franchisee's present or future legal rights, positions, claims, assertions,

or arguments, before any administrative body or court of law are in any way prejudiced or waived. By entering into this Franchise Agreement, neither the City nor Franchisee waive any rights, but instead expressly reserve any and all rights, remedies, and arguments the City or Franchisee may have at law or equity, without limitation, to argue, assert and/or take any position as to the legality or appropriateness of this Franchise Agreement or any present or future laws, ordinances, or rulings that may be the basis for the City or Franchisee entering into this Franchise Agreement.

SECTION 13. Failure to Enforce.

The failure of either the City or Franchisee to insist in any one or more instances upon the strict performance of one or more of the terms or provisions of this Franchise Agreement shall not be construed as a waiver or relinquishment of any right in the future to enforce such term or provision, and the same shall continue in full force and effect. No waiver or relinquishment of any term or provision of this Franchise Agreement shall be deemed to have been made by the City or Franchisee unless said waiver or relinquishment is in writing and signed by both the City and Franchisee.

SECTION 14. Force Majeure.

No party shall be liable for any failure to perform its obligations where such failure is a result of acts of God, fire, strikes, riots, floods, war, and other disasters or events beyond the City's or Franchisee's reasonable control.

SECTION 15. Severability.

If any provision, section, or subsection of this Franchise Agreement or the application thereof to any person or circumstance is declared invalid by a competent court of law, such invalidity shall not affect other provisions, sections, subsections, or applications of this Franchise Agreement that can be given effect without the invalid provision, section, subsection, or application, and to this end the provisions, sections, subsection, or applications of this Franchise Agreement are hereby declared to be severable.

SECTION 16. Governing Law.

The terms of this Franchise Agreement shall be governed by the laws of the State of Kansas.

SECTION 17. Effective Date of Ordinance.

This ordinance shall be effective upon its final passage and publication once in the official city paper.

PASSED AND APPROVED by the governing body of Wichita, Kansas this 13th day of February 2024.

CITY OF WICHITA

/s/ Lily Wu
Mayor

ATTEST:

/s/ Jamie Buster
City Clerk

Approved as to form:

/s/ Jennifer Magaña
City Attorney and
Director of Law

ARTICLE VI. SKYWALK BRIDGE

FIRST NATIONAL BANK
Ordinance No. 40-534

AN ORDINANCE GRANTING TO THE FIRST NATIONAL BANK IN WICHITA, KANSAS, THE AUTHORITY, RIGHT, LICENSE, FRANCHISE AND PRIVILEGE TO CONSTRUCT, MAINTAIN AND OPERATE A SKYWALK BRIDGE FOR PEDESTRIAN TRAFFIC OVER AND ABOVE MAIN STREET BETWEEN TWO BUILDINGS LOCATED AT THE NORTHWEST CORNER AND NORTHEAST CORNER OF MAIN STREET AND DOUGLAS STREET IN THE CITY OF WICHITA, KANSAS, AND THE ALLEYS ABUTTING SAID BUILDINGS ON THE NORTH, AND FIXING THE TERMS AND CONDITIONS OF SUCH GRANT.

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

Section 1. Grant. The license, franchise, authority, right and privilege is hereby granted to the First National Bank in Wichita, Kansas (Grantee) to construct, maintain and operate a pedestrian skywalk bridge over, above and across Main Street and the alleys, between two buildings located at the northeast comer and the northwest comer of Main Street and Douglas Street in Wichita, Kansas. The location and height of such skywalk bridge is to be in compliance with the description set forth in "Exhibit A" hereto.

Section 2. Architectural control. The skywalk bridge shall be designed to have an appearance that respects the historical character of the two existing buildings that it will connect, and shall be designed to recognize the historical importance of the intersection of Main Street and Douglas Street. Structural support for the skywalk bridge shall be provided within the walls of the existing buildings if feasible and if found to be within the application of sound engineering principles.

Section 3. Skywalk components and design standards. The skywalk bridge to be constructed by the Grantee shall, in addition to any other requirements set forth herein, encompass components in accordance with the following standards:

(a) Bridge. The skywalk bridge between the two buildings shall be built at a minimum width of twelve (12) feet or as determined by Grantee and the City to be appropriate for architectural compatibility. The bridge shall have a minimum of thirty (30) feet vertical clearance above the existing street grade at the centerline of main street and at the existing tops of the east and west curbs of said street, and the skywalk bridge shall appear to maintain a horizontal alignment and not an inclined alignment.

(b) Vertical Access Facilities. A vertical access facility shall provide access to the skywalk bridge from the street through a ground-level corridor within each building that the skywalk is connected to and may consist of either one or more stairway, elevator or escalator, or a combination thereof.

(c) Climate Control. The skywalk bridge shall be enclosed so as to be protected from the effects of natural elements and shall be maintained at a temperature reasonably comparable to that of the encompassing or connected buildings.

(d) Graphics. At such time that the skywalk system operated by Grantee is connected to other skywalk systems then skywalk bridge graphics will have a consistent design and location as follows:

(1) Logo. A logo will be developed by the city which shall be used to identify access to the skywalk system through the buildings that will connect to the skywalk bridge. The logo will be placed on doors which serve or lead to vertical access to the skywalk bridge.

(2) Directional Signs. Directional signs shall be provided that point the way from a ground level access to each building to the skywalk bridge and from the skywalk bridge to the ground

level exit of the other building. All directional signs will be attached to concourse ceilings in a perpendicular fashion and will be illuminated if necessary. Such signs shall be longlasting and easy to clean and maintain and shall establish a consistent pattern among common components and enhance the attractiveness of surrounding areas.

(3) City Furnishes. Logo and directional signs will be furnished by the City.

(e) Flooring. The skywalk bridge shall contain permanent, hard-surfaced floors of material or material carpeting that is maintained by Grantee in good condition. Flooring for any ramp that is required shall be of a nonslip material and the incline shall be no greater than 8.3 percent (one foot vertically for every 12 feet horizontally).

(f) Lighting. Minimum ceiling height shall be eight (8) feet and no objects other than directional signs shall be suspended from the ceiling. Lighting fixtures shall be recessed or attached in immediate proximity to the ceiling. Artificial lighting intensity shall be a minimum of 20 f.c. at the floor and supplied by a circuit which is not susceptible to total interruption.

(g) Walls. The skywalk bridge shall be enclosed with glass panels sufficient to provide at least sixty percent (60%) transparency, excluding structural framing members, distributed evenly along the span so as to achieve an open character and reveal pedestrian use of the structure.

(h) Public Access Requirements. The public shall have the right to use the skywalk bridge and the vertical accesses thereto for purposes of ingress and egress of pedestrian transit without limitation during the hours that Grantee bank's operation is open to the public for business within the First National Bank Building. At such time that the skywalk system constructed under this franchise is connected to other skywalk systems, then the hours of operation for access of the public to the skywalk bridge shall be open during the normal operating business hours of the connected buildings.

(i) Plans and Specifications. Plans and specifications for the enclosed skywalk bridge and vertical accesses from groundlevel of both buildings to the skywalk bridge shall be prepared in accordance with the design standards and requirements contained herein. Such plans and specifications shall be provided to the City of Wichita prior to the commencement of construction. The construction of such skywalk bridge shall not commence until the plans and specifications have been approved by the City. The City shall review the plans and specifications in accordance with the design standards and requirements contained herein and approval shall not be unreasonably withheld. Construction of the skywalk bridge shall be in accordance with plans and specifications filed with and approved by the City, and shall comply with the applicable building and fire codes in effect at the time of approval.

Section 4. Connecting links. The Grantee agrees to cooperate with the City and other building owners to allow connections from other skywalk systems to the skywalk system connecting One Main Place Building to the First National Bank Building during the time specified in Section 3(h).

Section 5. Maintenance. The skywalk bridge and the vertical accesses from the street to the buildings shall at all times be properly maintained and be in a safe, dependable and a sanitary condition, heated and air conditioned during the proper season and shall be in all respects in compliance with the City ordinances and the laws of the State of Kansas.

Section 6. Indemnification. The Grantee assumes, and shall, at all times, assume full responsibility for the operation and maintenance of the skywalk bridge, and shall at all times defend, indemnity, and hold harmless the City from any and all losses, damages, suits, claims and de-

mands arising from or growing out of the operation and maintenance of the skywalk bridge by the Grantee pursuant to the terms of this Ordinance, or resulting from the exercise by the Grantee of any of the privileges granted hereunder. The Grantee shall, at its own cost, defend against all such actions either in its own name or in the name of the City.

Notwithstanding anything to the contrary herein contained, Grantee does not assume responsibility for any negligence of City's agents, employees or contractors.

Section 7. Insurance. The Grantee shall and covenants and agrees that it will, throughout the life of this franchise, at its sole cost and expense, maintain all necessary insurance for the skywalk bridge vertical access facilities and the corridors located within the facilities owned or operated by the Grantee, in accordance with Grantee's customary insurance practices and shall specifically, prior to or concurrently with the start of commencement of construction, obtain general accident and comprehensive general liability insurance in an amount not less than maximum liability of a governmental entity for claims arising out of single occurrences provided by the Kansas Tort Claims Act or other similar future Kansas law (currently $500,000 per occurrence). The City shall be named as an additional insured under said policies as its interest may appear and such policies shall properly protect and indemnity the City in amounts not less than aforesaid. The policy of said insurance shall contain a provision that such insurance may not be canceled by the issuer thereof without at least thirty (30) days advance written notice to City and Grantee. Such policies or copies or certificates thereof shall be furnished to the City. For purposes of this franchise, policies of insurance shall be defined to be the insurance contract issued by a nationally recognized responsible insurance company qualified under the laws of the state of Kansas to assume the risks covered therein. Each policy of insurance herein above referred to may be subject to a reasonable deductible amount in an amount not to exceed $10,000.00 per occurrence. Anything in this franchise to the contrary notwithstanding, Grantee shall be liable to City pursuant to the provisions of this franchise or otherwise, as to any loss or damage to the City which may have been caused by the Grantee, its agents, employees, or contractors.

Section 8. Forfeiture of franchise. In case of failure on the part of the Grantee, its successors and assigns, to comply with any of the provisions of this ordinance, and such failure shall continue for sixty (60) days after written or printed notice to Grantee by the governing body of the City of Wichita, said Grantee shall forfeit all rights and privileges granted herein.

Section 9. Assigning franchise to another. Grantee shall not at any time sell or assign its franchise privilege under this ordinance to any other person, firm or corporation without the written consent of the governing body of the City, which consent shall not be unreasonably withheld, and such assignment shall not become effective until such Assignee shall file an acceptance in writing with the City Clerk and shall agree in writing to become responsible for a full performance of all conditions, liabilities, covenants and obligations of Grantee contained in this ordinance.

Section 10. Severability. Each section of this ordinance, and each part of each section hereof, is hereby declared to be an independent section or part of section and the holding of any section or any part thereof to be unconstitutional, void, illegal, ineffective or contrary to the laws of Kansas or of the United States, for any reason, shall not affect any other section or part of this ordinance.

Section 11. Franchise charge. The franchise fee shall be sixty-five cents per square foot of public area occupied by the skywalk bridge. Such amount shall be paid annually. The occupied area shall be that area of the skywalk bridge that extends over and across public right-of-way, i.e., from the property line on the east to the property line on the west, plus such part of any public alleys so occupied. Such payment shall be due and payable on the first day of January each year this franchise agreement is in effect.

Section 12. Filing. Within ten (10) days after the effective date of this franchise ordinance, Grantee shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms, and conditions of this ordinance, which acceptance shall be duly acknowledged before some official authorized by law to administer oaths; and when so accepted by Grantee, the ordinance and acceptance shall constitute the franchise contract and grant between the City of Wichita and Grantee, subject to the provisions of Article 20, Chapter 12 of K.S.A., and shall be binding upon Grantee's successors and assigns.

Section 13. Terms and termination date. The rights, privileges and franchises hereby granted to and conferred upon the Grantee shall, unless this franchise be sooner terminated as herein provided, be and remain in full force and effect for a period of fifty (50) years from the effective date hereof. However, Grantee may terminate this franchise by Grantee electing within a two (2) year period commencing with the effective date of this Ordinance not to construct the proposed skywalk bridge, or by Grantee electing to demolish the skywalk bridge at any time during the term of the franchise and by restoring the connected buildings to the same condition in which they were before adoption of this Ordinance by the City of Wichita, with any such demolition to be at Grantee's sole risk and expense.

Section 14. Effective date of ordinance. This Ordinance shall take effect and be in force sixty (60) days after the date of its final passage and its publication during said period as provided by law.

PASSED AND APPROVED By the City Council of the City of Wichita, Kansas, at Wichita, Kansas, this 10th day of January, 1989.

SHELDON KAMEN
Mayor

ATTEST: (SEAL)

JOHN MOIR
City Clerk/Director of Finance

ARTICLE VII. TREATED WASTEWATER FRANCHISE

TREATED WASTEWATER FRANCHISE
Ordinance No. 45-958

AN ORDINANCE OF THE CITY OF WICHITA, KANSAS, GRANTING TO THE CITY OF BEL AIRE, KANSAS, A FRANCHISE FOR THE PLACEMENT OF FACILITIES FOR TREATED WASTEWATER; AND PRESCRIBING THE TERMS OF SAID GRANT AND RELATING THERETO

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF WICHITA, KANSAS:

SECTION 1. Definitions. For the purposes of this franchise ordinance, the following words and phrases shall have the following meanings:

A. "City" or "Franchisor" shall mean the City of Wichita, Kansas.

B. "Facilities" means any portion of a treated wastewater pipeline, associated subsurface piping, and other associated equipment located in, along, over, upon, under, or through the Right-of-Way.

C. "Franchise fee" means the Linear Foot fee and fee on Gross Receipts established under this ordinance.

D. "Franchisee" or "Provider" means the City of Bel Aire, Kansas, when acting as the owner, operator, or user of the Facilities franchised herein.

E. "Gross receipts" means all revenue derived by Franchisee from provision or sale of treated wastewater whether at wholesale or retail within the corporate boundaries of the City.

F. "Linear Foot" — means the length in feet of the Right-of-Way along which is occupied by Facilities of the Provider that are not currently used to provide treated waste water to customers on which Gross Receipts are determined.

G. "Public Project" means any project planned or undertaken by the City or any governmental entity (except Provider) for construction, reconstruction, maintenance, or repair of public facilities or improvements, or any other purpose of a public nature.

H. "Right-of-Way" means only the area of real property in which the City has a dedicated or acquired right-of-way interest in the real property. It shall include the area on, below or above the present and future streets, alleys, avenues, roads, highways, parkways or boulevards dedicated or acquired as right-of-way. The term does not include the airwaves above a right-of-way with regard to wireless telecommunications or other nonwire telecommunications or broadcast service or easements obtained by utilities or private easements in platted subdivisions or tracts.

SECTION 2. AUTHORITY TO USE RIGHT-OF-WAY

A. Grant. This franchise ordinance hereby grants to Franchisee the right, privilege and authority to construct, operate, and maintain Facilities in, through and along the City's Right-of-Way, as shown in Attachment A, for the purposes, and pursuant to the terms and conditions, herein set forth. This grant limits, but does not require, Franchisee to service those customers shown in Attachment B. Any changes in Attachment A or B must be made by amendment to this Franchise as provided herein. Any service contract or rate schedule applied by Franchisee to customers shall not preclude a customer from discontinuing its receipt of treated wastewater from Franchisee and receiving such service from any other person authorized to provide such service, all without penalty or surcharge to the customer.

B. Nature of Grant. The grant under this Franchise shall not convey title, equitable or legal, in the Right-of-Way, and gives only the right to occupy Right-of-Way, for the purposes and for the period stated in this Franchise. The Franchise gives no right of access or use to facilities of a third party. Nothing in this Franchise shall be interpreted as granting Franchisee the ability to construct, maintain or operate any facility or related appurtenance on property owned by the City outside of the Public Right-of-Way.

C. Franchise Non-Exclusive. This Franchise shall be nonexclusive. The City specifically reserves the right to grant to any other person, including itself, and at any time, franchises, permits, or other rights to use the Right-of-Way for any purpose and to serve any customers, including customers of Franchisee, as it deems appropriate, subject to applicable federal and State law.

SECTION 3. TERM AND AMENDMENT.

A. Term. This franchise ordinance shall be effective from its effective date for a term of five (5) years. Thereafter, upon option of the Franchisee, this franchise ordinance will renew for three (3) additional five (5) year terms, subject to the right of either party to renegotiate any provision of the Franchise by giving notice at least one hundred and eight (180) days before the termination of the then current term. The additional terms shall be deemed a continuation of this franchise and not as a new franchise or amendment.

B. Amendment.

(1) Upon written request of either the City or Franchisee, the Franchise may be reviewed at any time after the effective date and either the City or Franchisee may propose amendments to any provision of the Franchise by giving thirty days written notice to the other of the amendment(s) desired. The City and Franchisee shall negotiate in good faith in an effort to agree upon mutually satisfactory amendment(s).

(2) Upon written request of either the City or Franchisee, the Franchise shall be reopened and renegotiated upon notice of the exercise of an option under Section 3(A) or at any time upon any change in federal, state, or local law, regulation, or order which materially affects any rights or obligations of either the City or Franchisee, including but not limited to the scope of the grant to the Franchise or the compensation to be received by the City.

(3) Amendments to this Franchise, if any, shall be made by ordinance as prescribed by statute. The franchise ordinance shall remain in effect according to its terms pending completion of any review or renegotiation provided by this section.

SECTION 4. USE OF RIGHT-OF-WAY.

A. Use of Right-of-Way; Police Powers; Franchisee's Use Subordinate. Facilities shall be placed with adequate clearance from existing public or private utilities in the Right-of-Way so as not to impact or be impacted by such public or private utilities or improvements. Franchisee shall construct and maintain its Facilities in accordance with all applicable federal, state and local laws, including all State-approved work plans or permits, and all other City codes and ordinances in effect as of the date of this Franchise or hereinafter adopted to the extent not in contravention of state or federal law. The Franchise does not in any way impact the continuing authority of the City through the proper exercise of its Home Rule powers to adopt and enforce ordinances necessary to provide for the health, safety and welfare of the public. In entering this Franchise, the City makes no express or implied representation or warranty regarding its rights to authorize the installation or construction of Facilities on any particular segment of the Right-of-Way. The burden and responsibility for making all such determinations in advance of construction or installation shall be entirely upon Franchisee. The use of the Right-of-Way authorized by this Franchise shall in all matters be subordinate to the City's use and rights therein. Franchisee shall coordinate the placement of its Facilities in a manner that minimizes adverse impact on public and private improvements, as reasonably determined by the City Engineer.

B. No Interference. Franchisee shall construct and maintain its Facilities so as not to interfere with other users of the Right-of-Way. All construction and maintenance by Franchisee or its subcontractors shall be performed in accordance with industry standards.

C. Exclusion of Certain Locations. Prior to Franchisee's installation of any Facilities in the Right-of-Way, and after it provides the City with its proposed plans for the Facilities, the City may in its reasonable discretion designate certain lo-

cations or improvements in the Right-of-Way to be excluded from use by Franchisee for its Facilities, including, but not limited to any location or improvement that in the reasonable judgment of the City Engineer is incompatible with the proposed Facilities, or would be rendered unsafe or unstable by the installation. The City Engineer may further exclude certain other locations or improvements that have been designated or planned for other use, or are not otherwise available for use by Franchisee due to engineering, technological, proprietary, legal, or other limitations or restrictions as may be reasonably determined by the City. The City shall provide a written explanation for any denial for a particular location and shall work with Franchisee to identify other suitable routes.

D. Location, Type and Design of Facilities Subject to Approval. The design, location, and nature of all Facilities shall be subject to the reasonable review and approval of the City Engineer. This is a means to properly manage and control all Right-of-Way usage in the City, and to protect the public health, safety, and welfare. The review and approval is to ensure efficient coordination relating to Right-of-Way use relating to public and private utilities and to evaluate the configuration and size of Facilities that may be located in the Right-of-Way or other public or private property.

All Facilities constructed by Franchisee shall be placed underground unless otherwise agreed to by the City.

E. Right-of-Way Management Code. The City reserves its rights to adopt a Right-of-Way management and construction standards ordinance of general applicability pursuant to its public health, safety and welfare authority which shall apply to this Franchise except where inconsistent with a material term of the Franchise.

F. Underground Facility Locating Service. Franchisee shall cooperate with and participate fully in providing reputable underground facility locating services to insure that damage and/or interference with other underground facilities occupants is minimized. This shall include, but not be limited to, participation with the Kansas One Call.

G. Permit Requirements. While this Franchise establishes the general rules and scope of authority for Franchisee to construct and maintain its Facilities within the Right-of-Way, Franchisee is still required to obtain individual permitting approval from the City Engineer prior to engaging in actual construction of its specific Facilities within the Right-of-Way. At least fifteen (15) days before the beginning of any installation, removal or relocation of its Facilities, Franchisee shall submit detailed plans of the proposed action to the City Engineer. The City Engineer shall, within fifteen (15) days of receipt of such plans, either approve the plans or inform Franchisee of the reasons for disapproval. Franchisee shall designate a responsible contact person with whom representatives of the City Engineer can communicate with on all matters relating to facilities installation and maintenance. Prior to any excavation within the Right-of-Way, Franchisee shall obtain a permit, pay all applicable fees, and perform such work in accordance with applicable provisions of the City Code, and any ordinances or regulations that may be adopted by the City regarding excavation work.

H. As Built Drawings. Franchisee shall keep and maintain accurate records and as-built drawings, in both paper and electronic format, of all Facilities constructed, reconstructed, or relocated in the Right-of-Way after the date hereof. Such Facilities shall be horizontally and vertically located at least every 100 feet and at any other alignment change. All points of Facilities shall be horizontally located from street centerline, or section or quarter section lines or corners. Vertical locations on all points of Facilities shall consist of elevations in either City datum or United States Geological Survey datum. Franchisee shall cooperate promptly and fully with the City and take all reasonable measures necessary to provide accurate and complete information regarding the nature and horizontal and vertical location of its Facilities located within Right-of-Way when requested by the City or its authorized agents for a Public Project. Such location and identification shall be at the sole expense of Franchisee without expense to the City, its employees, agents, or authorized contractors.

I. Relocation of Facilities. Franchisee shall, within a reasonable time, relocate or adjust any Facilities located in Right-of-Way if reasonably necessary and requested by the City for a Public Project. Such relocation or adjustment for a particular Public Project shall be performed by Franchisee without expense to the City, its employees, agents, or authorized contractors and shall be specifically subject to rules and regulations of the City pertaining to such; provided, that if Franchisee demonstrates to the satisfaction of the City that the Facility was originally established in a private easement that thereafter became part of the Right-of-Way, the relocation or adjustment shall be without expense to Franchisee.

J. Agent. Franchisee shall designate and maintain an agent, familiar with the Facilities, who is responsible for timely satisfaction of the information needs of the City and other users of the Right-of-Way.

SECTION 5. FEES AND COMPENSATION.

A. Franchise Fee. In consideration for this franchise ordinance, Franchisee shall pay to the City a Franchise Fee as follows:

(1) Five per cent (5%) of Gross Receipts; and

(2) Two Dollars and fifty cents ($2.50) per year for each Linear Foot of the Right-of-Way occupied by Franchisee's Facilities plus five cents ($.05) per cubic foot for space occupied by any underground equipment vault, provided that this Linear Foot fee shall not apply to any Facilities serving customers for which the Gross Receipts fee is paid by Franchisee.

B. Timing of Payment of Fees. Franchisee shall give the City written notice at the time that payment is due whenever there is a change in the use of any Facilities that are subject to Gross Receipt or Linear Foot payments. Unless otherwise agreed by the parties, the Franchise Fee on Gross Receipts shall be due and payable on a monthly basis within thirty (30) calendar days after the end of the remittal period. The Linear Foot fee shall be due annually on the anniversary date of this ordinance. Linear Foot fee payments shall be prorated based upon date of installation of the Facilities or the date the Facilities become subject to Gross Receipt payments. If any Franchise Fee, or any portion thereof, is not delivered on or before the due date, interest thereon shall accrue from the due date until received, at the applicable statutory interest rate.

C. Audit. The City or its designated representatives shall have the right to examine, upon written notice to Franchisee no more often than once per calendar year, those records (including meter readings) necessary to verify the correctness of the Franchise Fees.

SECTION 6. TRANSFER OF OWNERSHIP.

A. Franchisee shall not sell, transfer, lease, assign, sublet, or dispose of, in whole or in part, either by forced or involuntary sale, or by ordinary sale, consolidation, or otherwise, this Franchise or any of the rights or privileges granted by such Franchise, without the prior written consent of the City. Such consent shall not be unreasonably withheld, delayed or denied. The City reserves the right to be reimbursed for its reasonable costs relating to a transfer of ownership.

B. Any assignment or transfer shall not require consent of the City when the Franchise is assigned, sold or transferred between wholly-owned subsidiaries of a parent corporation, provided that Franchisee provides advance written notice to the City. In all such instances, the assignee or new owner shall be responsible for all Franchise requirements and obligations.

SECTION 7. GENERAL CONDITIONS.

A. Compliance With Laws. The Franchisee shall comply with all applicable federal, state and local laws, ordinances, regulations and policies, including, but not limited to, all laws, ordinances, regulations and policies relating to construction and use of public property.

B. Enforcement; Attorneys' Fees. The City and Franchisee shall be entitled to enforce this Franchise through all remedies lawfully available, and shall pay to the other reasonable attorneys' fees in the event that it is determined judicially to have violated the terms of this Franchise.

C. Advertising, Signs or Extraneous Markings. Franchisee shall not place, or cause to be placed, any sort of signs, advertisements or other extraneous markings, whether relating to Franchisee or any other person or entity on the public Right-of-Way, except such necessary minimal markings as approved by the City as are reasonably necessary to identify the Facilities for service, repair, maintenance or emergency purposes, or as may be otherwise required to be affixed by applicable law or regulation.

D. Removal of Facilities. Upon expiration of this Franchise, whether by lapse of time, by Franchise between Franchisee and the City, or by forfeiture thereof, Franchisee shall remove, at its sole cost, from public property any and all of its Facilities that are the subject of this Franchise within a reasonable time after such expiration, and it shall be the duty of Franchisee promptly upon such removal to restore the Right-of-Way from which the Facilities are removed to as good condition as the same were before the removal was effected and as required by the City. Notwithstanding the foregoing, upon request of Franchisee, the City may allow underground Facilities to be left in place when it is not practical or desirable to require removal.

SECTION 8. LIABILITY AND INDEMNIFICATION.

A. It shall be the responsibility of Franchisee to take adequate measures to protect and defend its Facilities in the Right-of-Way from harm or damage. If Franchisee fails to accurately or timely locate Facilities when requested, it has no claim for cost or damages against the City and its authorized contractors unless such party is responsible for the harm or damage by its negligence or intentional conduct. Franchisee shall be responsible to the City and its agents, representatives and authorized contractors for all damages including, but not limited to, delay damages, repair costs, down time, construction delays, penalties or other expenses of any kind arising out of the failure of Franchisee to perform any of its obligations under this Franchise except to the extent the damaged party is responsible for the harm or damage by its negligence or intentional conduct. Provided, however, the City and its authorized contractors shall be responsible to take reasonable precautionary measures including calling for utility locations and observing marker posts when working near the Facilities.

B. Franchisee shall hold and save and defend the City, its officers, employees, agents, and authorized contractors, harmless from and against all claims, damages, expense, liability, and costs including attorney fees, to the extent occasioned in any manner by the failure of Franchisee to perform any of its obligations under this Franchise, except to the extent the City, its officers, employees, agents, and authorized contractors are responsible for the harm or damage as a result of its negligence or intentional conduct. In the event a claim shall be made or an action shall be instituted against the City growing out of any such failure by Franchisee to perform its obligations under this Franchise then, upon notice by the City to Franchisee, Franchisee shall assume liability for the defense of such actions at the cost of Franchisee, subject to the option of the City to appear and defend, at its own cost, any such case.

C. Franchisee agrees that it will conduct its activities in the Right of Way in compliance with all applicable environmental laws. Franchisee agrees to defend, indemnity, and hold the City harmless from and against any and all claims, causes of action, demands, and liability, including, but not limited to damages, costs, expenses, assessments, penalties, fines, losses, judgments, and attorney fees that the City may suffer due to the possible existence or the discovery of any hazardous substance in the Right of Way or the migration of any hazardous substance to other property or released into the environment to the extent such arises out of Franchisee's past, present, or future negligent or unlawful activities in the Right of Way. This Paragraph shall survive the termination of this Lease.

SECTION 9. INSURANCE.

A. During the term of this Franchise, unless specified otherwise, Franchisee shall obtain and maintain at its sole expense, with financially reputable insurers that are licensed to do business in the state of Kansas, naming the City as Certificate Holder, not less than the following

insurance: Commercial general liability, including coverage for contractual liability and products completed operations liability on an occurrence basis and not a claims made basis, with a limit of not less than One Million Dollars ($1,000,000) combined single limit per occurrence for bodily injury, personal injury, and property damage liability, naming the City as Certificate Holder. Alternatively the Franchisee may demonstrate to the reasonable Satisfaction of the City that the Franchisee is adequately self-insured.

B. Nothing contained in this Franchise shall limit Franchisee's liability to the City to the limits of insurance certified or carried.

SECTION 10. INVALIDITY AND REMEDIES.

A. The invalidity in whole or in part of any provision of this Franchise shall not affect the validity of any other provision.

B. The right and remedies of the Parties under this Franchise shall be cumulative and in addition to any other rights and remedies provided by law or equity. A waiver of a breach of any provision thereof shall not constitute a waiver of any other breach. The laws of the State of Kansas shall govern this Franchise and any rights granted hereunder.

SECTION 11. ACCEPTANCE. Prior to the effective date of this ordinance Franchisee shall file with the City Clerk of the City of Wichita its acceptance in writing of the provisions, terms and conditions of this ordinance, which acceptance shall be duly acknowledged before an officer authorized by law to administer oaths. When so accepted the ordinance and acceptance shall constitute a contract between the City and Franchisee subject to the provisions of the laws of the state of Kansas.

SECTION 12. GOVERNING LAW AND VENUE.

A. The franchise ordinance and the rights herein granted are subject to the provisions of existing federal and state laws, including K.S.A. 12-2001, and those hereafter enacted pertaining to the granting of franchises.

B. The obligations and undertakings of both parties hereto shall be performed at Wichita, Sedgwick County, Kansas. In the event that any legal proceeding is brought to enforce the terms of this franchise, the same shall be brought in State or Federal courts, as appropriate, having jurisdiction for Sedgwick County, Kansas.

SECTION 13. EFFECTIVE DATE OF ORDINANCE. This franchise ordinance shall be effective upon its final passage and publication once in the official City paper.

PASSED AND APPROVED by the governing body of Wichita, Kansas this date 12-16-03

CITY OF WICHITA, KANSAS

/s/ Carlos Mayans
Mayor

ATTEST:

/s/ Karen Schofield
City Clerk

Approved as to Form:

/s/ Gary E. Rebenstorf
City Attorney

ATTACHMENT A
TREATED WASTEWATER FRANCHISE
City of Bel Aire, Kansas
Route Description

Commencing at the intersection of 53rd Street North and Woodlawn, thence east along 53rd Street North to Rock Road, thence south along Rock Road to Mullberry.

ATTACHMENT B
TREATED WASTEWATER FRANCHISE
City of Bel Aire, Kansas
Customer Listing

Willow Bend Golf Course

Willow Bend Home Owners Association

Office building located on Thorn Drive east of Rock Road

CODE COMPARATIVE TABLE

Note—This is a chronological and/or numerical listing of the ordinances adopted commencing with the Republication of this Code. Repealed or superseded laws and any omitted materials are not reflected in this table.

Ordinance No.	Adoption Date	Section		Section this Code
44-895	3-20-01	9	Added	2.12.1130
45-492	11- 5-02	1		11.16.040
45-677	3-25-03	1		App. A, Ord. No. 45-677
45-958	12-16-03		Added	App. A, Ord. No. 45-958
45-987	2-10-04			App. A, Ord. No. 45-987
45-988	2-10-04			App. A, Ord. No. 45-988
46-119	4- 6-04	1		7.30.010—7.30.065
46-202	7-20-04	1—11	Added	11.37.010—11.37.110
		12	Rpld	11.38.130, 11.38.140
46-206	7-20-04			App. A, Ord. No. 46-206
46-418	12-21-04	48	Rpld	Ch. 15.01
		1—47	Added	Ch.15.01, 15.1.010—15.1.470
46-433	1- 4-05	1—5		App. A, Ord. No. 43-504
46-649	8-16-05	1		17.12.090
46-566	3-22-05	1		2.24.075
46-650	8-16-04	1		16.14.040
46-655	9-20-05	1		2.28.180
46-824	11-22-05	1		19.04.020
		2		19.04.035
		3		19.04.040
		4		19.04.070
		5		19.07.080
		6		19.04.090
		7		19.08.010
		8		19.08.015
		9		19.08.030
		10		19.08.050
		11		19.08.061
		12		19.08.070
		13	Rpld	19.08.085
		14—18	Rpld	19.08.090—19.08.110
		19	Added	19.08.145
		20		19.08.150
		21	Rpld	19.08.155
		22		19.08.170
		23		19.08.171
		24		19.08.172
		25		19.08.180
		26		19.12.010
		27		19.12.020
		28	Rpld	19.12.035
		29		19.12.040

Ordinance No.	Adoption Date	Section		Section this Code
		30		19.12.050
		31	Added	19.12.060
		32		19.12.080
		33		19.12.090
		34	Added	19.12.110
		35	Added	19.12.130
		36—41	Added	19.12.150—19.12.210
		42		19.16.010
		43		19.16.030
		44	Added	19.16.040
		45		19.16.070
		46	Rpld	19.16.080
		47	Added	19.16.090
		48	Added	19.16.100
		49—75	Added	Ch. 19.22, 19.22.010—19.22.280
		76	Added	19.24.025
		77	Added	19.24.035
		78		19.24.040
		79		19.24.060
		80		19.24.090
		81		19.24.110
		82	Added	19.24.120
		83		19.28.040
		84		19.28.090
		85		19.28.100
		86		19.28.120
46-888	2-14-06	1		16.22.040
		2		16.22.060
46-895	2-28-06	1—7	Added	Ch. 10.36, 10.36.010—10.36.070
		8		5.48.040
46-998	3-28-06	1		11.96.010
47-026	5-16-06	1—14	Added	Ch. 3.94, 3.94.010—3.94.150
47-028	5-16-06	1		9.04.030
		2		9.04.040
		3		9.04.080
		4		9.04.180
		5		9.04.190
47-029	5-16-06	1		10.04.130
47-030	5-16-06	1		7.41.030
		2—4	Added	7.41.042, 7.41.043, 7.41.045
47-040	6- 6-06	1		5.66.010
47-041	6- 6-06	1		5.42.035
47-043	6-13-07	1		11.38.370
47-046	6-20-06	1—22	Added	Ch. 3.11, 3.11.010—3.11.220
47-047	6-20-06	1		9.04.030
		2		9.04.190
47-048	6-20-06	1		10.04.130

Ordinance No.	Adoption Date	Section		Section this Code
47-050	6-20-06	1		26.04.010
		2		26.04.020
		3		26.04.030
		4		26.04.035
		5		26.04.036
		6		26.04.038
		7		26.07.040
		8		26.04.041
		9, 10	Rpld	26.04.042, 26.04.043
		11		26.04.060
		12		26.04.070
		13		26.04.080
		14	Added	26.04.115
		15	Added	26.04.117
		16	Rpld	26.04.119
		17		26.04.120
		18		26.04.135
		19		26.04.200
47-051	6-20-06	1		19.04.090
		2		19.08.020
		3	Added	19.08.028
		4		19.08.030
		5		19.08.180
		6		19.12.010
		7—11	Rpld	19.16.010—19.16.050
		12		19.16.060
		13	Rpld	19.16.070
		14		19.16.090
		15	Rpld	19.16.100
		16		19.16.110
		17		19.22.040
		18		19.22.190
		19		19.22.240
		20		19.22.280
		21		19.24.020
		22		19.24.070
		23		19.24.080
47-053	6-27-06	1		11.38.155
47-054	6-27-06	1		11.92.070
47-055	6-27-06	1	Added	4.04.017
		2		4.04.025
		3		4.16.130
		4	Rpld	4.12.025
47-056	6-27-06	1		4.16.135
		2		4.16.155
47-057	6-27-06	1	Added	11.38.158
			Rpld	4.12.197
47-059	6-27-06	1		6.04.035
47-060	6-27-06	1		11.42.030
47-066	7-11-06	1		1.04.070
47-079	7-18-06	1		5.68.260
47-081	7-25-06	1		5.10.010
		2		5.10.035
47-082	7-25-06	1	Rpld	5.24.030
47-083	7-25-06	1		5.40.010
47-084	7-25-06	1		5.42.060
47-085	7-25-06	1		5.64.010

Ordinance No.	Adoption Date	Section		Section this Code
47-086	7-25-06	1		5.66.030
47-087	7-25-06	1		5.68.140
		2		5.68.200
		3		5.68.220
47-088	7-25-06	1		5.72.010
47-089	7-25-06	1		5.82.010
47-090	7-25-06	1		5.82.010
				5.83.010
47-093	8- 8-06	1	Rpld	1.04.155
47-110	8-22-06	1		16.14.040
47-111	8-22-06	1		17.12.090
47-118	9-19-06	1		Ord. No. 45-677, § 3
47-124	9-19-06	1		17.12.090
47-125	9-19-06	1		App. A, Ord. No. 42-264, § 19
47-285	11-14-06	1—14	Added	Ch. 3.09, §§ 3.09.010—3.09.140
		15	Rpld	3.08.040
47-286	11-14-06	1—7		6.08.010—6.08.070
47-287	11-14-06	1		5.10.035
47-288	11-14-06	1		5.88.010
47-301	11-21-06	1—19	Added	Ch. 30.01, §§ 30.01.010—30.01.180
47-302	11-21-06	1		20.04.010
		2, 3		20.04.030, 20.04.040
		4		20.04.050
		5		20.04.055
		6		20.04.060
		7		20.04.100
		8		20.04.110
		9		20.04.150
		10		20.04.200
47-321	12-19-06	1		5.88.040
47-322	12-16-06	1		5.88.050
47-345	2-13-07	1		17.12.090
47-346	2-13-07	1—21	Added	27.06.010—27.06.210
		22	Rpld	Ch. 27.04
47-357	2-27-07	1		11.42.030
		2	Added	11.42.035
47-451	3-27-07	1		2.28-020
		2		2.28.090
		3		2.28.100
		4		2.28.110
		5		2.28.140
		6		2.28.160
		7		2.28.200
		8		2.28.230
		9		2.28.240
		10		2.28.250
47-455	4-10-07	1		5.38.010
		2		5.38.020
47-466	4-24-07	1		4.12.110
		2		4.04.020
47-471	5- 1-07	1		4.04.020
		2		4.12.110
47-479	5-15-07	1	Added	15.01.480

Ordinance No.	Adoption Date	Section		Section this Code
47-486	5-15-07	1		9.04.060
		2		9.04.180
47-503	6-26-07	1	Rpld	5.88.040
47-504	6-26-07	1	Rpld	5.88.050
47-505	6-26-07	1		5.88.010
47-506	6-26-07	1		11.42.030
47-507	6-26-07	1		11.38.150
47-519	7-17-07	1		17.12.090
47-520	7-17-07	1		16.14.041
47-521	7-17-07	1		17.12.061
47-542	8-14-07	1		24.04.060
		2		24.04.085
		3		24.04.185
		4		24.04.220
		5	Added	24.04.223
		6		24.04.251
47-548	8-21-07	1—133		18.50.010—18.50.1330
		134	Rpld	Ch. 18.05
47-549	8-21-07	1—74	Added	18.51.010—18.51.750
		75	Rpld	Ch. 18.06
47-550	8-21-07	1		18.08.010
47-553	8-24-07	1—18		16.24.010—16.24.150
47-565	8-28-07	1—55	Added	18.45.010—18.45.550
		56	Rpld	Ch. 18.44
47-580	9-25-07	1		1.04.070
47-695	12- 4-07	1—28		6.04.010—6.04.220
47-709	12-11-07	1		5.26.030
47-710	12-11-07	1		11.38.285
47-723	12-18-07	1	Added	7.25-010—7.25.080
47-736	1-15-08	1		22.04.010
		2		22.04.022
		3		22.04.031
		4		22.04.034
		5		22.04.036.16
		6	Added	22.04.036.20
47-737	1-15-08	1—5	Added	22.05.010—22.05.050
47-750	2- 5-08	1		11.52.020
47-856	3-25-08	1		18.12.130
		2		18.12.160
47-857	3-25-08	1	Added	22.04.070
		2		22.04.100
		3		22.04.130
		4		22.04.220
47-858	3-28-08	1—48		2.04.005—2.04.410
47-871	4-22-08	1—4	Added	18.14.010—18.14.040
47-872	4-22-08	1		5.68.215
47-883	5-13-08	1		21.04.020
		2	Added	21.04.035
		3		21.04.040
		4		21.04.043
		5		21.04.045
47-884	5-13-08	1		3.49.040
		2		3.49.130
47-892	6- 3-08	1—9		7.56.010—7.56.070
47-894	5-20-08	1		8.01.010
		2		8.01.040

Ordinance No.	Adoption Date	Section		Section this Code
		3		8.01.050
		4	Added	8.01.052
		5	Added	8.01.055
		6		8.01.060
		7	Added	8.01.065
		8		8.01.070
		9		8.01.130
		10	Added	8.01.135
		11	Added	8.01.175
		12		8.01.180
47-895	8-12-08	1		5.37.060
47-896	5-20-08	1	Added	11.52.035
47-918	6-24-08	1—36		3.72.010—3.72.340
47-937	7-22-08	1		17.12.090
47-948	8-12-08	1		1.04.070
47-956	8-19-08	1—16		App. A, Ord. No. 47-956
47-955	8-19-08	1—16		App. A, Ord. No. 47-955
47-965	8-26-08	1		2.28.230
		2		2.28.240
47-983	8-12-08	1		16.14.040
47-984	8-12-08	1		17.12.090
48-093	10-21-08	1—8		22.06.010—22.06.066
48-101	10-21-08	1		2.12.1135
		2		2.12.1136
		3		2.12.1137
		4		2.12.1138
48-102	10-28-08	1	Added	19.08.005
		2		19.08.010
		3		19.08.015
		4		19.08.020
		5	Added	19.08.025
		6		19.08.030
		7		19.08.050
		8		19.08.150
		9		19.08.071
		10		19.12.010
		11		19.12.040
		12		19.12.050
		13		19.12.060
		14	Added	19.12.085
		15		19.12.090
		16		19.12.100
		17	Added	19.12.125
		18	Added	19.12.135
		19		19.12.150
		20	Added	19.12.165
		21		19.12.170
		22	Added	19.12.175
		23		19.12.180
		24		19.12.185
		25		19.12.190
		26		19.12.195
		27		19.12.200
		28	Added	19.12.220
		29		19.16.110

Ordinance No.	Adoption Date	Section		Section this Code
		3		2.12.1137
		4		2.12.1138
48-139	12-16-08	1		17.12.10
		2		17.12.175
48-180	2-10-09	1		28.05.010
		2	Rpld	28.05.011-28.05.026
48-198	3-10-09	1—5	Added	5.36.010—5.36.050
		6	Rpld	Ch. 5.36
48-199	3-10-09	1		5.30.020
48-200	3-10-09	1	Rpld	5.55.010, 5.55.020
48-300	3-24-09	1		6.04.010
		2		6.04.020
		3		6.04.025
		4		6.04.035
		5		6.04.036
		6		6.04.040
		7		6.04.045
		8		6.04.046
		9		6.04.048
		10	Added	6.04.052
		11		6.04.055
		12		6.04.060
		13		6.04.110
		14		6.04.120
			Rpld	6.04.130
		15		6.04.140
		16		6.04.155
		17		6.04.156
		18	Added	6.04.157
		19	Added	6.04.158
		20	Added	6.04.159
		21	Added	6.04.165
		22		6.04.170
		23	Added	6.04.171
		24	Added	6.04.172
		25	Added	6.04.173
		26	Added	6.04.175
		27	Added	6.04.176
		28	Added	6.04.177
		29		6.04.190
		30		6.04.210
		31	Added	6.04.215
		32	Added	6.04.218
		34	Rpld	Ch. 6.12, 6.16
48-301	3-24-09	1		2.12.1015
		2		2.12.1016
		3		2.12.1018
		4		2.12.1019
		5		2.12.1019.1
		6		2.12.1020
		7		2.12.1021
		8		2.12.1021.1
		9		2.12.1022
		10		2.12.1023
		11		2.12.1024
		12		2.12.1024.1
		13		2.12.1024.2

Ordinance No.	Adoption Date	Section		Section this Code
		14	Added	2.12.1024.3
		15	Added	2.12.1024.5
		16		2.12.1025
48-324	5-12-09	1		17-12.090
48-332	6- 2-09	1		11.36.040
48-352	6-23-09	1		3.08.030
		2		3.28.028
		3—19	Added	Ch. 3.30, 3.30.010—3.30.170
48-353	6-23-09	1		3.11.020
		2	Added	3.11.065
		3		3.11.150
		4	Added	3.11.155
		5		4.04.010
		6		4.04.040
		7		4.04.045
		8		4.04.050
		9		4.12.140
		10		4.12.150
		11		4.16.070
		12	Added	4.16.075
		13	Added	4.16.085
		14	Added	4.16.087
		15		4.16.090
		16		4.16.100
		17		4.16.120
		18		4.16.130
		19		4.16.135
48-355	6-23-09	1	Added	21.04.273
		2	Added	21.04.275
		3	Rpld	21.04.270
48-366	7-14-09	1		2.05.010
48-367	7-14-09	1		2.02.020
48-369	7-21-09	1-9	Added	Ch. 21.14, 21.14.010—21.14.090
48-379	7-21-09	1		17.12.090
48-386	7-28-09	1		1.04.070
48-387	7-28-09	1	Added	1.04.075
48-409	8-18-09	1		16.14.040
48-410	8-18-09	1		17.12.090
48-415	9-15-09	1—9	Added	28.05.020—28.05.060
48-417	9-15-09	1		26.04.010
		2		26.04.020
48-418	9-15-09	1	Added	Ch. 1.07, 1.07.010

Ordinance No.	Adoption Date	Section		Section this Code
48-379	7-21-09	1		17.12.090
48-386	7-28-09	1		1.04.070
48-387	7-28-09	1	Added	1.04.075
48-409	8-18-09	1		16.14.040
48-410	8-18-09	1		17.12.090
48-415	9-15-09	1—9	Added	28.05.020—28.05.060
48-417	9-15-09	1		26.04.010
		2		26.04.020
48-418	9-15-09	1	Added	Ch. 1.07, 1.07.010
48-548	12- 1-09	1		3.11.020
		2		3.11.065
		3		3.11.150
		4		3.30.050
		5		3.30.070
		6		3.30.080
		7	Added	3.30.180
		8	Added	3.30.190
		9		4.04.040
		10		4.04.045
		11		4.12.195
		12		4.16.120
48-580	12-22-09	1		5.88.010
48-583	12-22-09	1		6.04.010
		2		6.04.040
		3		6.04.045
		4		6.04.046
		5		6.04.048
		6		6.04.052
		7		6.04.060
		8		6.04.070
		9		6.04.140
		10		6.04.155
		11		6.04.157
48-610	2- 9-2010	1—17	Added	3.91.010—3.91.170
48-690	3-23-2010	1	Added	3.90.005
		2		3.90.010
		3		3.90.020
		4		3.90.030
		5		3.90.050
		6		3.90.090
		7	Added	3.90.095
		8		3.90.100
		9		3.90.110
		10	Added	3.90.115
		11	Added	3.90.118
		12		3.90.130
		13	Added	3.90.135
		14		3.90.140
		15	Added	3.90.141
		16	Added	3.90.142
		17	Added	3.90.144
		18		3.90.150
		19	Added	3.90.151
		20	Added	3.90.153
		21	Added	3.90.154
		22	Added	3.90.156

Ordinance No.	Adoption Date	Section		Section this Code	
		23		3.90.160	
		24	Rpld	3.90.120	
48-706	4-13-2010	1		1.04.150	
48-709	4-13-2010	1—54	Added	9.03.010—9.03.540	
		55	Rpld	9.04.010—9.04.220	
48-718	4-20-2010	1	Added	5.26.005	
		2		5.26.020	
		3		5.26.030	
		4	Added	5.26.035	
		5		5.26.040	
48-753	6-15-2010	1		3.40.020	
		2		3.40.030	
		3		3.40.035	
		4	Added	3.40.038	
		5	Added	3.40.048	
		6		3.40.040	
		7		3.40.050	
		8		3.40.060	
		9	Added	3.40.061	
		10	Added	3.40.063	
		11	Added	3.40.065	
		12		3.40.070	
		13		3.40.090	
		14		3.40.100	
		15	Added	3.40.115	
		16	Added	3.40.118	
		17		3.40.135	
		18	Added	3.40.145	
		19		19.08.050	
		20	Rpld	3.40.105	
48-754	6-22-2010	1		11.48.010	
		2		11.48.100	
		3		11.48.120	
		4		11.48	130
		5		11.48.170	
		6		11.48.175	
		7		11.48.180	
		8	Rpld	11.48.020—11.48.080, 11.48.110, 11.48.190	
48-757	6-22-2010	1		3.11.020	
		2	Added	3.11.035	
		3	Added	3.11.038	
		4		3.11.040	
		5		3.11.050	
		6		3.11.060	
		7		3.00.065	
		8		3.11.070	
		9		3.11.080	
		10		3.11.090	
		11	Added	3.11.105	
		12		3.11.110	
		13		3.11.150	
		14		3.11.210	
		15		10.04.130	
48-758	6-22-2010	1		3.49.020	
		2		3.49.030	
		3		11.97.060	

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48-759	6-22-2010	1		17.12.090
48-760	6-22-2010	1		17.12.090
48-761	6-22-2010	1		16.14.040
48-762	6-22-2010 eff. 1-1-2011	1		16.14.040
48-765	7-13-2010	1		11.38.285
48-766	7-20-2010	1		3.11.020
		2		3.11.060
		3		3.11.090
48-767	7-20-2010	1—12	Added	3.14.010—3.14.130
		15	Rpld	3.13.010—3.13.120
48-789	8-10-2010	1		3.20.010
		2	Added	3.20.015
		3		3.20.020
		4, 5	Added	3.20.022, 3.20.023
		6—9		3.20.025—3.20.060
		10, 11	Added	3.20.065, 3.20.067
		12—14		3.20.070—3.20.090
		15	Added	3.20.095
		16		3.20.100
		17	Rpld	3.20.010—3.20.100
48-791	8-10-2010	1		4.04.045
48-795	8-17-2010	1	Rpld	2.12.800, 2.12.810, 2.12.1010, 2.12.1012, 2.12.1014, 2.12.1085, 2.12.1086—2.12.1088, 2.12.1150, 2.12.1155, 2.12.1157, 2.12.1170, 2.12.1172
		2		2.12.1008
		3		2.12.1120
		4		2.12.1122
		5		2.12.1124
		6		2.12.1126
		7		2.12.1128
		8		2.12.1200
		9		2.12.1201
48-802	8-24-2010	1		3.72.160
48-803	8-24-2010	1		5.37.010
		2	Added	5.37.033
		3	Added	5.37.035
		4	Added	5.37.038
		5	Added	5.37.150
		6	Rpld	5.37.010, 5.37.030
48-805	8-24-2010	1		11.60.290
48-806	8-24-2010	1	Added	11.38.390
48-820	9-14-2010	1		1.04.070
48-824	9-21-2010	1	Added	9.08.000
		2		9.08.001
		3		9.08.002
		4		9.08.005
		5		9.08.010
		6		9.08.020
		7		9.08.030
		8		9.08.050
		9		9.08.060

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		10		9.08.070
		11		9.08.080
		12		9.08.090
		13	Added	9.08.095
		14	Added	9.08.098
		15		9.08.100
		16		9.08.110
		17		9.08.120
		18		9.08.130
		19		9.08.140
		20		9.08.150
		21		9.08.160
		22	Rpld	9.08.001—9.08.160
48-825	9-21-2010	1		11.24.040, 11.96.010
48-826	9-21-2010	1		5.88.010
48-851	10-19-2010	1	Rpld	7.56.010—7.56.030
		2		7.56.040
		4	Rpld	7.56.050—7.56.070
48-879	10-26-2010	1		18.50.130
		2		18.50.170
		3		18.50.200
		4		18.50.290
		5	Added	18.50.315
		6		18.50.360
		7	Added	18.50.365
		8		18.50.380
		9		18.50.400
		10	Added	18.50.475
		11	Added	18.50.535
		12	Added	18.50.585
		13	Added	18.50.588
		14	Added	18.50.673
		15	Added	18.50.676
		16	Added	18.50.685
		17		18.50.690
		18	Added	18.50.703
		19	Added	18.50.705
		20	Added	18.50.707
		21	Added	18.50.735
		22	Rpld	18.50.740
		23	Added	18.50.795
		24	Added	18.50.805
		25	Added	18.50.810
		26		18.50.820
		27		18.50.980
		28		18.50.990
		29		18.50.1050
		30	Added	18.50.1053
		31	Added	18.50.1055
		32		18.50.1110
		33		18.50.1180
		34		18.50.1200
		35		18.50.1210
		36	Added	18.50.1280
		37	Added	18.50.1290
48-880	10-26-2010	1		18.51.030
		2		18.51.070

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		3	Added	18.51.112
		4	Added	18.51.115
		5		18.51.150
		6		18.51.170
		7		18.51.220
		8	Added	18.51.402
		9	Added	18.51.424
		10		18.51.440
		11		18.51.510
		12		18.51.540
		13	Added	18.51.572
		14	Added	18.51.602
		15	Added	18.51.604
		16	Rpld	18.51.620
		17		18.51.630
		18		18.51.650
		19		18.51.700
		20	Added	18.51.702
		21	Added	18.51.704
		22		18.51.706
		23	Added	18.51.708
		24		18.51.710
		25	Added	18.51.712
		26	Added	18.51.714
		27	Added	18.51.715
		28	Added	18.51.716
		29	Added	18.51.718
		30		18.51.730
		31	Added	18.51.750
48-881	10-26-2010	1		18.08.010
48-882	10-26-2010	1—24	Added	Ch. 22.01, 22.01.010—22.01.270
		25—48	Added	22.02.010—22.02.270
			Rpld	22.04.010—22.04.310
			Rpld	22.05.010—22.05.050
48-892	11- 9-2010	1—70		15.01.010—15.01.690
48-893	11- 9-2010	1		15.02.010
		2		15.02.020
		3		15.02.030
		4		15.02.040
		5		15.02.050
		6		15.02.060
		7		15.02.070
		8		15.02.080
		9	Rpld	15.02.010—15.02.080
48-895	11-16-2010	1	Added	2.12.1160
		2	Added	2.12.1161
		3	Added	2.12.1162
		4	Added	2.12.1163
48-904	11-16-2010	1		16.32.010
		2		16.32.080
		3—9	Added	16.32.091—16.32.097
		10		16.32.100
		11		16.32.110
		12		16.32.120
		13		16.32.130
48-908	11-23-2010	1		19.04.020

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		2		19.05.005
		3		19.08.020
		4		19.08.030
		5	Rpld	19.08.060
		6		19.08.172
		7	Added	19.12.025
		8	Added	19.12.166
		9	Added	19.22.170
		10		19.22.270
		11		19.24.090
		12		19.28.090
48-915	12-14-2010	1		5.37.010
		2	Added	5.37.033
		3	Added	5.37.035
		4	Added	5.37.038
		5	Added	5.37.150
		6	Rpld	5.37.030
48-918	12-21-2010	1		2.28.090
		2		2.28.400
48-921	12-28-2010	1		3.40.115
48-937	1-25-2011	1		3.97.010
48-945	2-15-2011	1		5.37.033
		2		5.37.035
48-982	4-12-2011	1—20		App. A, Ord. No. 48-982
48-950	3- 8-2011	1—9	Added	Ch. 3.26, 3.26.010—3.26.090
48-984	4-12-2011	1		2.04.390
48-995	4-26-2011	1		5.88.010
49-002	5-10-2011	1		4.12.020
49-010	5-24-2011	1		6.04.010
		2		6.04.020
		3		6.04.025
		4		6.04.035
		5		6.04.036
		6		6.04.040
		7		6.04.045
		8		6.04.046
		9		6.04.047
		10		6.04.048
		11		6.04.050
		12		6.04.052
		13		6.04.070
		14		6.04.080
		15		6.04.090
		16		6.04.100
		17		6.04.110
		18		6.04.140
		19		6.04.155
		20		6.04.157
		21		6.04.158
		22		6.04.159
		23		6.04.160
		24		6.04.170
		25		6.04.172
		26		6.04.173
		27		6.04.175

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		28	6.04.176
		29	6.04.210
		30	6.04.215
		31	6.04.218
49-010	7-11-2011	1	6.04.010
Corr. Copy			
		2	6.04.020
		3	6.04.025
		4	6.04.035
		5	6.04.036
		6	6.04.040
		7	6.04.045
		8	6.04.046
		9	6.04.047
		10	6.04.048
		11	6.04.050
		12	6.04.052
		13	6.04.070
		14	6.04.080
		15	6.04.090
		16	6.04.100
		17	6.04.110
		18	6.04.140
		19	6.04.155
		20	6.04.157
		21	6.04.158
		22	6.04.159
		23	6.04.160
		24	6.04.170
		25	6.04.172
		26	6.04.173
		27	6.04.175
		28	6.04.176
		29	6.04.210
		30	6.04.215
		31	6.04.218
49-011	5-24-2011	1	6.08.010
		2	6.08.030
		3	6.08.060
		4	6.08.070
49-011	7-11-2011	1	6.08.010
Corr. Copy			
		2	6.08.030
		3	6.08.060
		4	6.08.070
49-017	6- 7-2011	1	2.30.150
49-022	6-21-2011	1	11.38.285
49-023	6-21-2011	1	11.38.150
		2	11.38.155
		3	11.38.157
49-031	7-12-2011	1	11.20.060
49-032	7-12-2011	1	11.38.200
49-036	7-19-2011	1	2.28.090
		2	2.28.110
49-037	7-19-2011	1	16.04.040

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49-042	8-16-2011	1		3.22.010
		2	Added	3.22.015
		3		3.22.020
		4	Added	3.22.035
		5		3.22.040
		6		3.22.060
		7	Added	3.22.062
		8	Added	3.22.065
		9	Added	3.22.067
		10		3.22.070
		11	Added	3.22.080
		12	Added	3.22.090
		13	Rpld	3.22.050
49-077	9-13-2011	1		2.05.010
49-078	9-13-2011	1		2.05.020
49-085	9-20-2011	1	Added	18.51.113
		2		18.51.115
		3	Added	18.51.382
		4	Added	18.51.383
		5	Added	18.51.384
		6		18.51.390
		7		18.51.400
		8	Added	18.51.401
		9		18.51.402
		10		18.51.420
49-095	9-27-2011	1		1.04.070
49-107	10-18-2011	1		3.51.040
		2		3.51.050
		3		3.51.060
		4		7.08.140
49-108	10-25-2011	1	Rpld	Ch. 3.68
				3.68.005—3.68.190
49-152	11-22-2011	1		19.04.020
				19.04.035
		3		19.08.150
		4	Added	19.08.155
		5		19.12.010
		6		19.12.040
		7	Rpld	19.12.060
		8	Added	19.12.186
		9	Added	19.12.193
		10		19.12.219
		11	Added	19.12.230
		12		19.22.095
		13	Added	19.22.096
		14		19.22.100
		15	Added	19.22.105
		16		19.22.190
49-164	12-13-2011	1		17.12.090
49-165	12-13-2011	1		16.14.040
49-174	12-20-2011	1		3.49.020
49-177	1-10-2012	1		3.30.020
		2		3.30.060
		3		3.30.070
49-184	1-24-2012	1		11.28.040
49-207	2-28-2012	1		3.49.010
		2		3.49.020

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		3		3.49.030
		4		3.49.040
		5		3.49.070
		6		3.49.080
		7		3.49.090
		8		3.49.100
		9		3.49.110
		10	Added	3.49.125
		11		3.49.130
		12		3.49.140
		13		3.49.160
		14	Rpld	3.49.120, 3.49.150, 3.49.170, 3.49.180, 3.49.220, 3.49.230
49-242	3-20-2012	1		2.12.1068
		2		2.12.1068
		3		2.12.1069
		4		2.12.1071
		5		2.12.1072
		6		2.12.1077
		7	Rpld	2.12.1073
49-254	4-10-2012	1	Added	1.04.023
		2	Added	1.04.025
		3	Added	1.04.027
		4	Added	1.04.028
		5		1.04.160
		6		1.04.180
		7		1.06.010
49-255	4-10-2012	1		4.04.025,
		2		4.12.200
49-257	4-10-2012	1		6.04.035
		2		6.04.040
		3	Added	6.04.058
49-258	4-10-2012	1		27.06.010
		2		27.06.020
		3		27.06.030
		4		27.06.150
		5		27.06.160
		6		27.06.200
49-263	4-24-2012	1		4.04.045
49-267	5- 8-2012	1		3.94.060
		2		3.94.100
		3		3.94.130
49-273	5-22-2012	1—87	Added	Ch. 9.35, 3.35.010—9.35.870
		88	Rpld	Ch. 9.20, 9.22
49-278	5-22-2012	1		3.84.010, Ch. 3.84(tit.)
		2	Added	3.84.025
		3		3.84.030
		4	Added	3.84.035
		5		3.84.040
		6—11		3.84.050—3.84.100
		12	Added	3.84.105
		13	Added	3.84.108
		14		3.84.110
		15—17		3.84.130—3.84.150

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		18	Added	3.84.155
		19—24		3.84.160—3.84.210
		25	Added	3.84.215
		26—28		3.84.220—3.84.250
		29		3.84.300
		30		3.84.320
		31	Added	3.84.323
		32		3.84.330
		33		3.84.340
		34		3.84.360
		35		3.84.370
		36		3.84.390
		37—41		3.84.410—3.84.450
		42—44		3.84.480—3.84.500
		45		3.84.520
		46		3.84.530
		47		3.84.570
		48		3.84.580
		49	Rpld	3.84.280, 3.84.310, 3.84.320, 3.84.350
49-282	6-19-2012	1—9	Added	Ch. 2.10, 2.10.010—2.10.080
49-287	6-19-2012	1		11.96.010
49-292	6-26-2012	1		11.38.150
		2		11.38.155
49-293	6-26-2012	1		11.42.030
49-294	6-26-2012	1	Added	11.38.140
49-295	6-26-2012	1		4.04.010
		2		4.04.040
		3		4.04.060
		4		4.12.110
		5		4.16.155
		6	Rpld	4.16.070
49-308	7-17-2012	1—12	Added	9.12.010—9.12.120
		13	Rpld	9.12.130—9.12.210
49-309	7-17-2012	1	Added	5.88.010
49-312	7-24-2012	1—6		3.91.020—3.91.120
49-331	8-21-2012		Rpld	Ch. 21.04, 21.04.010—21.04.310
		1—26	Added	Ch. 21.01, 21.01.010—21.01.240
		27—50	Added	Ch. 21.02, 21.02.010—21.02.240
49-335	8-28-2012	1		24.04.135
		2	Added	24.04.215
		3	Rpld	24.04.210
49-336	8-28-2012	1		1.04.070
49-360	10-16-2012	1		3.97.110
		2		4.16.087
		3		3.30.070
		4	Added	3.30.075
49-353	10-16-2012	1		9.03.010
		2		9.03.500
49-391	11-20-2012	1		11.68.111
49-396	12- 4-2012	1—4		18.14.010—18.14.040
		5—11	Added	18.14.050—18.14.110
49-397	12- 4-2012	1		17.12.090

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49-402	12- 4-2012	1		16.14.040
49-403	12-11-2012	1		17.08.010
		2		17.08.015
		3		17.08.017
		4		17.08.040
		5		17.08.050
		6		17.08.060
		7—25	Added	17.10.010—17.10.190
		26		17.12.010
		27		17.12.030
		28		17.12.040
		29		17.12.050
		30		17.12.060
		31		17.12.065
		32		17.12.070
		33		17.12.095
		34		17.12.100
		35		17.12.180
		36		17.12.250
		37	Added	17.12.255
		38		17.12.260
		39		17.12.300
		40		17.12.330
		41	Rpld	17.08.016, 17.08.030, 17.08.030, Ch. 21.12
49-404	12-11-2012	1	Added	18.15.010
		2	Rpld	18.04.020, Ch. 18.05, Ch.18.06, 18.08.010—18.08.033, 18.12.010—18.12.170, 18.14.010—18.14.040, 18.17.010—18.12.170, 18.24.040, 18.24.050, 18.32.010, 18.36.010, Ch. 18.44, 18.45.010—18.45.550, 18.60.010—18.50.1530, 18.51.010—18.51.750
49-405	12-11-2012	1	Added	19.01.010
		2	Rpld	19.04.010—19.04.160, 19.08.005—19.08.180, 19.16.010—19.16.110, 19.20.010—19.20.050, 19.22.010—19.22.290, 19.24.010—19.24.120,

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				19.28.010—19.28.120
49-406	12-11-2012	1	Rpld	21.01.010—21.01.260
			Added	21.01.010
		2	Rpld	Ch. 21.04, 21.14.010—21.14.090, 21.24.010—21.24.050, 21.28.010
49-407	12-11-2012	1	Added	22.10.010
		2	Rpld	22.01.010—22.01.270, 22.02.010—22.02.270, Ch. 22.04, Ch. 22.05, 22.06.010—22.06.066, 22.12.010—22.12.050, 22.16.010
49-441	2-12-2013	1—5	Added	2.12.1140—2.12.1144
49-487	4-23-2013	1—3		3.11.070—3.11.090
		4		3.11.150
		5	Added	3.11.055
		6	Added	4.16.070
49-256	5- 8-2012	1		5.01.020
		2—4		5.10.010—5.10.025
		5		5.10.035
		6		5.15.010
		7		5.24.010
		8		5.24.040
		9		5.26.020
		10	Added	5.26.038
		11	Added	5.26.039
		12		5.28.010
		13		5.30.020
		14		5.32.010
		15		5.36.030
		16	Added	5.37.030
		17		5.38.036
		18	Added	5.42.005
		19—21		5.42.010—5.42.020
		22		5.42.035
		23		5.42.060
		24	Added	5.42.065
		25		5.44.040
		26		5.66.010
		27		5.66.050
		28		5.66.055
		29, 30		5.68.020, 5.68.030
		31, 32		5.68.110, 5.68.120
		33, 34		5.68.140, 5.68.150
		35, 36		5.68.155, 5.68.156
		37—40		5.68.170—5.68.200
		41		5.68.220
		42		5.68.215

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		43		5.72.010
		44		5.73.050
		45		5.75.010
		46		5.75.020
		47		5.82.010
		48	Added	5.85.010
		49	Added	5.85.020
		50		5.88.020
		51		5.88.030
49-513	6-11-2013	1	Added	3.72.005
		2—8		3.72.010—3.72.055
		9—11		3.72.120—3.72.140
		12		3.72.160
		13		3.72.210
		14—17		3.72.230—3.72.260
		18—22		3.72.290—3.72.330
		23	Added	3.72.205
		24—26	Added	3.72.285—3.72.287
49-515	6-18-2013	1—6	Added	5.20.010—5.20.060
49-516	6-18-2013	1	Added	5.68.165
49-522	6-25-2013	1		5.88.010
49-523	6-25-2013	1		5.88.020
49-524	6-25-2013	1—11	Added	18.14.010—18.14.110
49-526	6-25-2013	1		1.06.010
		2		1.06.060
49-552	8-13-2013	1		Ch. 5.68(title)
		2		5.68.010
		3		5.68.020
		4		5.68.110
		5		5.68.210
		6		5.68.215
		7		5.68.218
		8		5.68.030, 5.68.170—5.68.190
49-573	9-17-2013	1		1.04.070
49-585	10-22-2013	1	Added	17.14.010—17.14.140A
		2	Rpld	17.14.010—17.14.150A
49-607	11-26-2013	1		7.22.030
49-608	11-26-2013	1		7.60.030
49-609	11-26-2013	1		17.12.090
49-610	11-26-2013	1		16.14.040
49-628	12-10-2013	1		3.11.155
49-675	3-25-2014	1	Added	11.99.045
49-679	4-15-2014	1		2.64.020
49-749	5-13-2014	1—10		App. A, Ord. No. 49-749
49-751	5-20-2014	1		3.30.020
		2		3.30.070
		3		3.30.075
		4—7	Added	5.05.010—5.05.040
		8	Added	5.48.035
		9	Added	5.48.038
		10		5.48.050
49-755	6- 3-2014	1—21	Added	App. A, Ord. No. 49-755

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49-762	6-17-2014	1	Rpld	3.72.005
		2		3.72.010
		3		3.72.015
		4		3.72.130
		5		3.72.160
		6—13	Rpld	3.72.210—3.72.280
49-763	6-17-2014	1		5.88.010
		2	Rpld	5.88.030
		3—7	Rpld	5.89.010—5.89.050
49-785	7-22-2014	1—25	Added	3.41.010—3.41.150
49-806	8-12-2014	1		17.12.040
		2		17.12.061
49-816	8-26-2014	1		2.04.060
		2		2.04.090
		3		2.64.010
		4		2.64.020
		5	Added	2.64.040
		6		10.12.180
49-840	10-14-2014	1		4.04.045
49-885	11-25-2014	1	Added	18.16.100
49-886	11-25-2014	1		3.49.030
		2		3.49.100
		3		3.49.110
		4		3.49.130
		5		3.49.140
		6	Added	3.49.215
		7	Added	3.49.220
		8	Added	3.49.225
		9	Added	3.49.230
		10	Added	3.49.235
		11	Added	3.49.240
		12	Added	3.49.245
		13	Added	3.49.250
		14	Added	3.49.255
		15	Added	3.49.260
		16	Added	3.49.265
		17	Added	3.49.270
		18	Rnbd as	3.49.240 3.49.275
49-887	11-25-2014	1—4		2.26.010—2.26.040
49-911	12-16-2014	1		17.12.090
49-912	12-16-2014	1		16.14.040
49-913	12-16-2014	1—18	Added	App. A, Ord. No. 49-913
		19	Rpld	App. A, Ord. No. 45-987
49-954	3-24-2015	1	Added	6.02.010
		2	Added	6.02.020
		3	Added	6.02.030
		4	Added	6.02.040
50-032	7-14-2015	1	Rpld	Ch. 3.90, 3.90.005—3.90.170
50-033	7-14-2015	1		2.04.180
50-039	7-21-2015	1		3.11.020
		2		3.11.038
		3		3.11.040

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		4		3.11.180
		5	Added	3.11.185
50-040	7-21-2015	1		5.38.020
		2		5.38.035
		3	Rpld	5.38.040
50-081	9-22-2015	1		5.36.010
50-088	10-13-2015	1—5	Added	3.70.010—3.70.050
		6	Rpld	2.12.1026
50-106	11-17-2015	1	Rpld	12.04.080
50-119	12- 8-2015	1		2.56.030
50-120	12- 8-2015	1		2.04.010
50-135	12-15-2015	1		17.12.090
50-136	12-15-2015	1		16.14.040
50-146	1-26-2016	1	Added	2.04.235
50-154	2-23-2016	1		1.04.070
		2		1.04.075
50-159	3-15-2016	1		Ch. 4.04(title)
		2		4.04.010
		3		4.04.017
		4		4.04.020
		5		4.04.025
		6		4.04.040
		7		4.04.045
		8		4.04.070
		9	Added	4.04.075
			Rpld	4.04.035
50-160	3-15-2016	1	Added	4.12.045
		2		4.12.050
		3		4.12.090
		4		4.12.110
		5		4.12.150
		6		4.12.190
		7		4.12.220
		8	Rpld	4.12.040
			Rpld	4.12.135
			Rpld	4.12.145
			Rpld	4.12.160, 4.12.170
			Rpld	4.12.200
50-161	3-15-2016	1		Ch. 4.16(title)
		2		4.16.040
		3	Added	4.16.050
		4	Added	4.16.055
		5	Added	4.16.060
		6	Added	4.16.065
		7	Added	4.16.068
		8		4.16.070
		9		4.16.080
		10		4.16.090
		11		4.16.095
		12		4.16.130
		13		4.16.150
		14—16	Added	4.16.152—4.16.154
		17		4.16.155
		18	Added	4.16.160
		19	Added	4.16.165
		20	Added	4.16.175
		21		4.16.180

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		22		4.16.190
		23	Rpld	4.16.020, 4.16.030
			Rpld	4.16.075
			Rpld	4.16.170
50-174	4-19-2016	1	Rpld	11.38.140
50-176	4-26-2016	1		1.04.060
		2	Added	1.04.205
50-177	4-26-2016	1—8		10.08.010—10.08.080
		9	Added	10.08.081
		10—14		10.08.090—10.08.130
		15	Added	10.08.135
		16—19		10.08.140—10.08.170
		20—22	Added	10.08.175—10.08.177
		23—28		10.08.180—10.08.230
		29	Added	10.08.235
		30		10.08.240
		31	Added	10.08.250
		32	Added	10.08.300
50-178	4-26-2016	1	Added	10.04.005
		2		10.04.010
		3	Rpld	10.04.020
		4		10.04.025
		5—7		10.04.030—10.04.050
		8—10	Added	10.04.055—10.04.057
		11		10.04.060
		12	Added	10.04.065
		13—14		10.04.070, 10.04.080
		15		10.04.100
		16	Rpld	10.04.105
		17—18		10.04.110, 10.04.120
		19—21	Added	10.04.125—10.04.127
		22	Rpld	10.04.130
		23—27		10.04.131—10.04.135
		28—29		10.04.140, 10.04.150
		30	Rpld	10.04.160
		31—35		10.04.170—10.04.210
		36	Added	10.04.215
		37		10.04.220
50-179	4-26-2016	1—13		10.12.010—10.12.130
		14—16	Added	10.12.135—10.12.137
		17—19		10.12.140—10.12.160
		20		10.12.180, 10.12.190
50-180	4-26-2016	1—4		10.16.010—10.16.040
		5	Rpld	10.16.060
		6—9		10.16.070—10.16.100
		10—13		10.16.120—10.16.150
		14, 15	Added	10.16.151, 10.16.152
		16—19		10.16.160—10.16.190
50-181	4-26-2016	1—7		10.24.010—10.20.070
		8	Added	10.24.075
		9, 10		10.24.080, 10.24.090
		11	Added	10.24.095
		12—17		10.24.100—10.24.150
		18	Rpld	10.24.160
		19—23		10.24.170—10.24.210
		24	Rpld	10.24.220
		25—32		10.24.230—10.24.300

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		33	Added	10.24.310
50-182	4-26-2016	1	Rpld	10.20.010
		2—5		10.20.020—10.20.050
		6	Added	10.20.055
		7, 8		10.20.060, 10.20.070
		9	Rpld	10.20.080
		10—16		10.20.090—10.20.150
		17—19		10.20.170—10.20.190
50-183	4-16-2016	1		10.30.010
50-184	4-26-2016	1		10.32.010
		2, 3		10.32.030, 10.32.040
		4—11		10.32.070—10.32.140
		12	Rpld	10.32.150
		13	Rpld	10.32.160
		13	Added	10.32.150
50-185	4-26-2016	1		11.68.150
50-186	4-26-2016	1		17.12.040
50-187	4-26-2016	1		24.04.200
50-188	4-26-2016	1		11.22.010
		2		11.22.050
50-189	4-26-2016	1, 2	Added	10.34.010—10.34.040
50-248	4-26-2016	1—25	Added	3.55.010—3.55.080, 3.55.085, 3.55.090—3.55.240
50-262	6-21-2016	1		5.42.010
		2		5.42.065
		3		5.42.070
50-265	6-21-2016	1		9.29.030
		2	Added	9.29.035
		3		9.29.060
		4, 5		9.29.080, 9.29.090
		6		9.29.110
		7, 8		9.29.140, 9.29.150
		9		9.29.170
		10		9.29.175
		11		9.29.180
		12		9.29.200
		13		9.29.230
		14	Added	9.29.235
		15		9.29.250
		16	Added	9.29.255
		17		9.29.260
		18		9.29.265
		19		9.29.280
		20		9.29.390
		21		9.29.400
50-266	6-21-2016	1		16.32.010
		2		16.32.094
		4		16.32.098
50-267	6-14-2016	1		4.04.045
50-269	7-12-2016	1		5.69.010
50-271	7-12-2016	1		4.16.130
50-290	7-26-2016	1		2.20.030
50-291	7-26-2016	1		11.48.180
50-306	8-23-2016	1—13	Added	Ch. 9.05, 9.05.010—9.05.120
		14	Rpld	9.03.250

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50-308	8-23-2016	1		6.02.020
		2		6.02.030
50-316	9-13-2016	1		11.48.190(title)
		2	Added	11.48.190
50-317	9-13-2016	1		11.04.400
50-318	9-13-2016	1		11.28.030
50-319	9-13-2016	1		11.60.030
50-320	9-13-2016	1	Rpld	11.60.330
50-327	9-27-2016	1—3		Ch. 3.44, 3.44.100—3.44.120
		4	Added	3.44.130
50-332	10-11-2016	1		1.04.060
50-333	10-11-2016	1	Added	Ch. 10.01, 10.01.010
50-334	10-11-2016	1—3	Rpld	10.04.055—10.04.057
		4, 5		10.04.126, 10.04.127
		6, 7		10.04.131, 10.04.132
		8	Added	10.04.137
		9, 10		10.04.180, 10.04.190
		11		10.04.210
		12		10.04.215
		13		10.04.220
50-335	10-11-2016	1		10.08.040
		2		10.08.130
		3		10.08.135
		4		10.08.250
50-336	10-11-2016	1		10.16.120
50-337	10-11-2016	1		10.20.050
		2		10.20.170
		3		10.20.190
50-338	10-11-2016	1—10		10.24.010—10.24.090
		11		10.24.100
		12—15		10.24.130—10.24.160
		16	Added	10.24.220
		17, 18		10.24.250, 10.24.260
		19		10.24.280
		20, 21		10.24.300, 10.24.310
50-339	10-11-2016	1		11.22.050
50-340	10-11-2016	1—16	Added	Ch. 28.06, 28.06.010—28.06.160
		17	Rpld	Ch. 10.32, 10.32.010—10.32.160
50-341	10-18-2016	1		2.12.640
50-357	12- 6-2016	1—12	Added	Ch. 8.02, 8.02.010—8.02.120
50-381	12-13-2016	1, 2		27.06.020, 27.06.030
		3		27.06.080
		4		27.06.120
		5		27.06.150
		6		27.06.200
50-382	12-13-2016	1—5	Added	Ch. 315, 3.15.010—3.15.140
		16		3.95.030
		17		3.97.020
50-383	12-13-2016	1		16.14.040
50-384	12-13-2016	1		17.12.090
50-392	12-13-2016		Added	App. A
50-395	1- 3-2017	1		2.12.1122

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		2		2.12.1124
50-404	1-10-2017	1		7.40.070
50-405	1-10-2017	1, 2		6.04.040, 6.04.050
50-409	1-17-2017	1, 2		3.30.010, 3.30.020
		3		3.30.070
		4, 5		3.30.080, 3.30.090
		6	Added	3.30.095
		7		3.30.100
		8		3.30.120
		9	Added	3.30.125
		10		3.30.130
		11		3.30.160
		12	Added	3.30.200
50-410	1-17-2017	1		15.01.110
50-426	3-10-2017			App. A Ord. No. 50-426
50-439	4-25-2017	1, 2		24.04.010, 24.04.020
		3	Added	24.04.025
		4, 5		24.04.030, 24.04.040
		6	Added	24.04.045
		7—22		24.04.050—24.04.180
		23	Rpld	24.04.185
		24—34		24.04.190—24.04.200
		35—38		24.04.215—24.04.222
		39	Rpld	24.04.223
		40		24.04.225
		41	Added	24.04.228
		42, 43		24.04.230, 24.04.235
		44	Rpld	24.04.240
		45, 46		24.04.250, 24.04.251
		47	Added	24.04.252
		48—50		24.04.260—24.04.280
50-440	4-25-2017	1, 2		10.36.020, 10.36.030
		3	Added	10.36.035
		4, 5		10.36.040, 10.36.050
50-441	4-25-2017	1—3		16.30.060
50-427	3-21-2017	1		2.12.560
50-530	5- 9-2017	1—74	Added	15.01.010—15.01.740
50-540	6-13-2017	1		5.26.040
		2	Added	5.26.050
50-553	7-18-2017	1		3.11.030
		2		3.11.035
		3		3.11.038
		4, 5		3.11.040, 3.11.050
		6		3.11.055
		7		3.11.065
		8, 9	Added	3.11.062, 3.11.063
		10	Added	3.11.205
		11		3.95.040
50-555	7-11-2017	1		11.38.285
50-576	8-15-2017	1		2.12.020
50-587	9-12-2017	1		10.34.020
50-591	9-26-2017	1		9.35.010
		2		9.35.050
		3		9.35.090
		4		9.35.110
		5		9.35.350

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		6		9.35.360
		7		9.35.390
		8		9.35.420
		9		9.35.580
		10—13		9.35.610—9.35.640
50-600	10-10-2017	1		6.04.010
		2		6.04.040
		3—6		6.04.045—6.04.048
		7		6.04.060
		8		6.04.190
		9		6.04.210
		10		Ch. 6.08 (tit.)
		11—14		6.08.010—6.08.040
		15, 16		6.08.070, 6.08.080
50-602	10-17-2017	1—8		7.60.010—7.60.080
		9	Added	7.60.100
50-603	10-17-2017	1—11	Rpld	2.10.010—2.10.080
			Added	2.10.010—2.10.090
50-642	12-19-2017	1		11.04.060
		2		11.20.080
		3		11.22.040
		4		11.44.020
		5		11.52.050
		6		11.56.020
		7	Rpld	11.44.050
		8—12	Added	11.44.080—11.44.120
		13	Rpld	3.26.010—3.26.090
50-643	12-19-2017	1—5	Added	5.50.010-05.50.050
		6	Rpld	5.48.040
50-665	1-23-2018	1—10	Added	4.08.010—4.08.090
50-666	1-23-2018	1		4.04.010
		2, 3		4.04.040, 4.04.045
50-670	2- 6-2018	1		3.11.155
50-612	11-21-2017		Added	App. A
50-626	11-28-2017	1		2.26.010—2.26.040
50-687	4-17-2018	1	Rpld	11.38.157
50-688	4-17-2018	1		11.08.020
50-789	5- 8-2018	1		15.01.650
50-796	5-22-2018	1		4.16.130
50-804	6-26-2018	1		4.04.045
50-805	6-26-2018	1		4.16.120
50-806	6-26-2018	1		11.38.150
		2		11.38.155
50-835	8-28-2018	1	Added	2.04.045
50-840	9- 4-2018			App. A
50-858	9-25-2018	1		11.12.030
		3		11.12.040
		4		11.12.090
		5	Rpld	11.12.010, 11.12.020
				11.12.050, 11.12.060
50-859	9-25-2018	1	Added	11.38.355
50-860	9-25-2018	1	Added	11.42.037
50-861	9-25-2018	1	Added	11.04.007
		2	Added	11.04.172
		3		11.42.010
50-862	9-25-2018	1	Rpld	Ch. 7.20, 7.20.010—7.20.025

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50-863	9-25-2018	1—20	Added	Ch. 3.06, 3.06.010—3.06.190
50-870	10-16-2018	1		7.60.030
50-868	10- 9-2018		Rpld	App. A, Ord. No. 45-988
			Added	App. A, Ord. No. 50-868
50-881	11-13-2018	1		2.04.190
		2		2.04.195
50-886	11-20-2018	1		2.04.010
50-897	11-27-2018	1	Rpld	Ch. 7.22, 7.22.010—7.22.160
50-912	1- 8-2019	1		2.10.040
		2		2.10.045
		3—5		2.10.050—2.10.070
		6		2.10.090
50-917	1-15-2019	1		16.14.040
50-918	1-15-2019	1		17.12.090
50-935	3-22-2019	1		4.04.010
		2		4.04.045
		3	Added	4.12.010
		4, 5		4.12.020, 4.12.030
		6		4.12.045
		7		4.12.050
		8—11		4.12.080—4.12.110
		12		4.12.115
		13	Added	4.12.118
		14—17		4.12.120—4.12.150
		18, 19		4.12.180, 4.12.190
		20		4.12.215
50-936	3-19-2019	1—9	Added	Ch. 1.08, 1.08.010—1.08.090
50-957	4-23-2019	1, 3	Added	17.12.080
		4		17.10.120
		5		17.12.040
		6		17.12.061
		7		17.12.065
		8		17.12.090
		9		17.12.240
51-049	6-18-2019	1		9.03.010
		2		9.03.400
		3	Added	9.03.405
		4	Added	11.04.083
		5	Added	11.04.093
		6—12	Added	Ch. 11.50, 11.50.005—11.50.040, 11.50.080, 11.50.090
50-896	11-27-2018	1		11.04.365
		2		11.04.385
		3		11.22.060
		4		11.40.010
		5	Added	11.40.020
		6		11.52.020
		7		11.88.015
		8		11.96.010
		9		Ch. 11.98, 11.98.010

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		10	Rpld	11.04.325
50-932	3- 5-2019	1		2.05.010
50-933	3- 5-2019	1		2.05.020
50-948	3-19-2019	1	Added	11.04.057
		2		11.16.010
		3		11.16.040
		4	Added	11.16.045
		5	Added	11.16.047
		6	Rpld	Ch. 11.08, 11.08.010—11.08.070
51-042	5-21-2019	1		4.04.045
51-043	5-28-2019	1		3.11.030
		2		3.11.040
		3		3.11.150
51-044	5-28-2019	1	Added	4.04.046
51-059	6-25-2019	1		4.12.020
		2		4.12.195
51-063	7-23-2019	1	Added	16.04.055
51-064	7-23-2019	1	Rpld	Ch. 16.24, 16.24.010, 16.24.020 16.24.025 16.24.030—16.24.070 16.24.075 16.24.080—16.24.100 16.24.105 16.24.110—16.24.150
			Added	Ch. 16.24, 16.24.010, 16.24.020 16.24.025 16.24.030—16.24.070 16.24.075 16.24.080—16.24.100 16.24.105 16.24.110—16.24.150
51-090	9-10-2019	1		11.42.010
		2	Added	11.42.015
		3	Added	11.42.017
		4	Rpld	11.42.020
51-091	9-10-2019	1		11.60.200
		2		11.60.265
51-092	9-10-2019	1		9.03.400
51-093	9-10-2019	1		11.16.050
		2		11.24.040
		3		11.36.080
51-094	8-20-2019	1		6.04.040
51-127	11-12-2019	1		4.04.045
51-144	11-19-2019	1, 2	Rpld	Ch. 5.82, 5.82.010
			Added	Ch. 5.82, 5.82.010
51-153	12-10-2019	1		2.04.190
51-157	12-10-2019	1		17.12.090
51-158	12-10-2019	1		16.14.040
51-165	1- 7-2020	1		2.12.1122
		2		2.12.1124
		3—15	Added	Ch. 2.15, 2.15.010—2.15.050 2.15.055 2.15.060—2.15.120

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51-166	1- 7-2020	1—16	Added	App. A
51-169	1-14-2020	1		11.96.060
51-189	2-21-2020	1—16	Added	App. A
51-194	3-24-2020	1	Added	11.60.225
51-209	4-21-2020	1	Rpld	Ch. 3.20, 3.20.010 3.20.015 3.20.020 3.20.022, 3.20.023 3.20.025 3.20.030, 3.20.040 3.20.060 3.20.065 3.20.067 3.20.070—3.20.090 3.20.095 3.20.100
51-295	6-16-2020	1		7.60.040
51-335	8-11-2020	1	Added	10.04.138
		2—8	Added	10.04.230—10.04.290
51-352	10-13-2020	1		3.49.010
		2		3.49.030
		3—5		3.49.060—3.49.080
		6	Rpld	3.49.090
		7	Rpld	3.49.245
		8		3.49.270
51-370	11-24-2020	1		11.96.010
51-382	12- 8-2020	1		16.14.040
51-383	12- 8-2020	1		17.12.090
51-400	12-22-2020	1	Added	Ch. 2.11, 2.11.010
		2	Added	2.11.015
		3—5	Added	2.11.020—2.11.040
		6	Added	2.11.045
		7—10	Added	2.11.050—2.11.080
51-411	2- 9-2021	1		2.04.190
51-552	5-11-2021	1—68	Added	Ch. 15.01, 15.01.010—15.01.680
		69	Rpld	Ch. 15.01, 15.01.010—15.01.530 15.01.550—15.01.740
51-553	5-18-2021	1		7.60.040
51-558	5-25-2021	1—6	Added	Tit. 31, 31.01.010—31.01.060
51-565	6- 8-2021			App. A
51-566	6- 8-2021	1		10.04.138
		2		10.04.240
		3		10.04.270
51-588	7-13-2021	1		4.04.010
		2		4.04.020
		3		4.04.040
		4—8		4.08.020—4.08.060
		9		4.12.020
		10		4.12.030
		11		4.12.050
		12		4.12.110
		13		4.12.190
		14		4.16.040

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		15, 16		4.16.050, 4.16.055
		17		4.16.065
		18		4.16.070
		19		4.16.080
		20		4.16.110
		21, 22		4.16.120, 4.16.130
		23		4.16.135
		24		4.16.150
		25—28		4.16.152—4.16.155
		29		4.16.160
		30		4.16.165
		31		4.16.180
		32	Added	4.16.140
		33	Added	4.16.158
		34	Rpld	4.04.046
51-589	7-13-2021	1		1.04.070
		2		1.04.075
		3		1.04.080
51-620	8-17-2021	1—14	Added	Ch. 2.76, 2.76.010—2.76.140
51-621	8-10-2021	1—9	Added	Ch. 2.77, 2.77.010—2.77.090
51-626	9-14-2021	1		2.12.010
		2—8	Added	2.12.660—2.12.666
51-639	9-28-2021	1		6.04.045
		2		6.04.210
51-640	9-28-2021	1	Added	11.04.087
		2	Added	11.04.100
		3	Added	11.04.259
		4	Added	11.04.317
		5	Added	11.04.332
		6		11.24.050
51-654	10-12-2021	1—8	Added	Ch. 2.06, 2.06.010—2.06.080
51-663	11- 9-2021	1—18		App. A
51-681	12-14-2021	1		16.14.040
51-682	12-14-2021	1		17.12.090
51-716	2-22-2022	1		3.49.020
51-723	3- 8-2022	1		2.11.045
		2, 3		2.11.050, 2.11.060
51-729	4- 5-2022	1—3		2.10.030—2.10.050
		4		2.10.090
51-738	4-19-2022	1		2.04.235
		2	Added	2.04.237
51-739	4-19-2022	1—5	Added	2.12.1180—2.12.1184
51-745	4-26-2022	1		3.49.020
51-855	5-10-2022	1		3.49.020
		2		3.49.040
		3, 4		3.49.130, 3.49.140
		5	Added	3.49.150
51-864	6- 7-2022	1	Added	11.97.055
51-875	6-21-2022	1		2.30.020
				2.30.040—2.30.090
				2.30.101
				2.30.120
				2.30.140—2.30.200
51-884	6-28-2022	1		4.12.050

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		2		4.16.060
		3		4.16.154
51-885	6-28-2022	1		11.38.300
51-886	6-28-2022	1		11.38.158
51-887	6-28-2022	1		11.37.070
		2	Added	11.37.095
51-888	6-28-2022	1		11.16.050
51-889	6-28-2022	1		5.26.005
51-890	6-28-2022	1		5.42.080
51-891	6-28-2022	1		1.06.010
51-892	6-28-2022	1		5.68.220
51-893	6-28-2022	1		3.30.075
51-894	6-28-2022	1		5.68.200
51-898	7-12-2022	1—5	Added	2.12.1190—2.12.1194
51-938	9-13-2022	1		2.64.020
51-945	9-20-2022	1		11.96.060
51-946	9-20-2022	1	Rpld	5.26.010
		2		5.26.030
51-962	10-25-2022	1—3	Added	Ch. 5.22, 5.22.010—5.22.030
51-963	10-25-2022	1		16.04.040
51-972	11-22-2022	1		16.04.055
		2		16.14.040
51-973	11-22-2022	1, 2		17.12.080, 17.12.090
52-006	12-27-2022	1		10.12.060
		2		10.34.010
52-019	1- 3-2023	1—18		App. A
52-047	4- 4-2023	1		3.49.010
		2, 3		3.49.030, 3.49.040
		4		3.49.070
		5, 6		3.49.130, 3.49.140
		7		11.99.045
52-051	3-21-2023	1		7.04.010
		2	Rpld	7.04.020—7.04.070
			Rpld	7.04.090
		3		7.04.080
		4, 5		7.60.010, 7.60.020
		6	Added	7.60.025
		7		7.60.030
		8	Added	7.60.035
		9	Rpld	7.60.040
		10, 11		7.60.050, 7.60.060
		12	Added	7.60.075
		13		7.60.080
52-175	5-23-2023	1	Added	15.01.585
		2		15.01.590
52-183	5-23-2023	1		4.08.040
52-184	6-13-2023	1		4.04.010
		2		4.16.050
		3		4.16.055
		4	Added	4.16.088
		5	Added	4.16.145
		6		4.16.155
		7		4.16.158

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52-192	6-13-2023	1		24.04.045
		2		24.04.190
		3		24.04.215
52-203	6-27-2023	1		11.42.030
52-217	7-18-2023	1—17	Added	Ch. 3.31, 3.31.010—3.31.160
52-239	8- 8-2023	1, 2	Added	5.68.275, 5.68.276
52-244	8-15-2023	1, 2		7.60.050, 7.60.060
		3	Added	7.60.065
52-245	8-15-2023	1	Rpld	3.30.040
		2		3.30.080
		3		3.30.090
		4		3.30.095
		5		3.30.100
52-246	8-15-2023	1		4.12.030
		2	Added	4.12.035
		3	Rpld	4.12.090
		4		4.12.150
		5	Added	4.12.160
		6	Added	4.12.225
		7	Added	4.16.057
		8	Rpld	4.16.068
		9	Added	4.16.077
		10		4.16.085
		11		4.16.090
		12		4.16.095
		13	Added	4.16.195
52-248	8-15-2023	1		2.04.237
		2	Added	2.04.238
52-265	9-19-2023	1—20	Added	Ch. 3.40, 3.40.010—3.40.200
52-279	10-24-2023	1		2.06.010
		2		2.06.030
		3		2.04.050
52-282	11-21-2023	1		11.96.010
52-289	11-28-2023	1—4		3.06.020—3.06.050
		5		3.06.080
		6	Rpld	3.06.190
52-315	12-26-2023	1		3.11.020
		2		3.11.030
		3		3.11.038
		4		3.11.040
		5		3.11.055
		6		3.11.060
		7		3.11.080
		8		3.11.150
		9		3.11.185
		10		3.95.030
		11		3.95.080
		12	Rpld	3.08.030
			Rpld	3.08.060
			Rpld	3.08.080
			Rpld	3.08.090
			Rpld	3.08.130
			Rpld	3.08.200

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			Rpld	Ch. 3.12, 3.12.010—3.12.060
			Rpld	Ch. 3.24, 3.24.010—3.24.110
			Rpld	Ch. 3.28, 3.28.010—3.28.190
			Rpld	Ch. 3.32, 3.32.010 3.32.015 3.32.110
			Rpld	Ch. 3.36, 3.36.010—3.36.200
			Rpld	Ch. 3.66, 3.66.010—3.66.090
			Rpld	Ch. 3.88, 3.88.010—3.88.040 3.88.045 3.88.050—3.88.100 3.88.105 3.88.110 3.88.115 3.88.120—3.88.220 3.88.225 3.88.230—3.88.280
			Rpld	Ch. 3.91, 3.91.010—3.91.170
			Rpld	Ch. 3.98, 3.98.010, 3.98.020
52-325	1- 9-2024	1—6	Added	Ch. 20.12, 20.12.010—20.12.060
52-326	1- 9-2024	1		11.04.191
		2		11.04.210
		3		11.16.040
		4, 5		11.52.010, 11.52.020
		6		11.52.050
		7		11.52.055
		8		11.52.090
		9		11.52.130
		10—13		11.52.150—11.52.180
		14—16		11.68.010—11.68.030
		17	Rpld	11.68.040

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		18—20		11.68.090—11.68.110
		21		11.68.111
		22—26		11.68.120—11.68.160
		27		11.92.040
		28		11.96.050
52-332	1-23-2024	1—20	Added	App. A, Art. IV, Ord. No. 52-332
52-337	2-13-2024	1—19	Added	App. A, Art. II, Ord. No. 52-337
			Rpld	App. A, App. A, Ord. No. 46-206
			Rpld	App. A, App. A, Ord. No. 49-755
52-338	2-13-2024	1—17	Added	App. A, Art. V, Ord. No. 52-338
52-348	2-27-2024	1		2.04.180
52-353	3-19-2024	1		15.01.570
52-355	3-19-2024	1, 2		2.56.020, 2.56.030
		3		2.56.050
52-362	4- 9-2024	1		2.04.005
		2		2.04.040
		2		2.04.270
52-367	4-23-2024	1		11.50.010
52-490	5-21-2024	1, 2		3.15.010, 3.15.020
		3—6		3.15.040—3.15.070
		7	Added	3.15.085
		8, 9		3.15.100, 3.15.110
		10		3.15.130
52-493	5-28-2024	1		15.01.590
52-508	6-25-2024	1		17.14.030
52-536	8-20-2024	1		6.04.010
		2		6.04.040
		3, 4		6.04.045, 6.04.046
		5		6.04.060
		6		6.04.110
		7		6.04.150
		8		6.04.157
		9		6.04.190
52-539	8-27-2024	1		2.04.190
52-540	8-27-2024	1		3.40.030
		2	Added	3.40.055
		3		3.40.170
52-541	8-27-2024	1	Added	4.04.030
52-544	9-10-2024	1—5	Added	Ch. 5.08, 5.08.010—5.08.050

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52-549	9-17-2024	1—6	Added	Ch. 2.07, 2.07.010—2.07.060
		7	Rpld	2.04.050
		8		2.04.070
52-561	10-15-2024	1		1.04.200
		2	Added	4.04.015
		3		5.24.010
52-568	11-19-2024	1		2.04.180
		2		2.04.200
52-569	11-19-2024	1		2.04.195
52-575	12-10-2024	1		16.04.055
		2		16.14.040
52-576	12-10-2024	1, 2		17.12.080, 17.12.090
52-577	12-10-2024	1		2.04.195
52-586	12-17-2024	1	Added	17.08.055
		2		17.08.060
52-587	12-17-2024	1, 2		11.96.010, 11.96.020
		3		11.96.060
52-588	12-17-2024	1		2.04.190
52-600	1- 7-2025	1		5.20.010
		2	Added	5.20.015
		3		5.20.020
		4, 5	Added	5.20.022, 5.20.023
		6	Added	5.20.025
		7, 8	Added	5.20.027, 5.20.028
		9	Rpld	5.20.030
		10	Added	5.20.035
		11		5.20.050
		12	Added	5.20.055
		13		5.20.060
		14	Rpld	9.03.240
52-601	1- 7-2025	1		11.44.100
52-602	1- 7-2025	1	Rpld	9.03.240
		2		9.03.400
52-603	1- 7-2025	1	Rpld	5.50.010
52-604	1- 7-2025	1		11.42.040
52-632	3-18-2025	1		17.12.090
52-633	3-25-2025	1		11.04.007
		2	Added	11.04.117
		3	Added	11.04.157
		4	Added	11.04.405
		5—11	Added	Ch. 11.51, 11.51.010, 11.51.020 11.51.050 11.51.090
52-634	3-25-2025	1—9	Added	Ch. 1.10, 1.10.010—1.10.090
52-731	5-20-2025	1—4		2.26.010—2.26.040

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52-739	5-27-2025	1—7	Added	2.12.1030—2.12.1036
52-740	5-27-2025	1		15.01.590
52-747	6-17-2025	1		2.76.080
		2, 3		2.77.020, 2.77.030
		4		2.77.070
52-753	6-24-2025	1, 2		5.12.020, 5.12.030
52-754	6-24-2025	1	Added	11.38.215
52-760	7-15-2025	1—5		4.08.010—4.08.050
		6		4.08.090
52-797	8-26-2025	1		4.08.030
		2	Added	4.08.045
		3	Added	4.08.085
52-798	8-26-2025	1—7	Added	Ch. 17.13, 17.13.010—17.13.060
52-807	9-16-2025	1		5.05.030
52-808	9-16-2025	1		5.68.218
52-809	9-16-2025	1, 2		5.44.010, 5.44.020
		3, 4		5.44.040, 5.44.050
		5	Added	5.44.070
52-810	9-16-2025	1—9	Added	Ch. 5.63, 5.63.010—5.63.090
		10		11.60.240
		11	Rpld	Ch. 7.41, 7.41.010—7.41.040, 7.41.042, 7.41.043, 7.41.045, 7.41.050, 7.41.060
52-814	9-23-2025	I	Rpld	Ch. 28.08, 28.08.010—28.08.260
			Added	Ch. 28.08, 28.08.010—28.08.220
52-834	10-28-2025	1—3		Ch. 6.02 (title), 6.02.010—6.02.030
52-835	11-25-2025	1—16	Added	Ch. 3.23, 3.23.010—3.23.150
52-840	11-25-2025	1	Rpld	Ch. 17.13, 17.13.010—17.13.060
		2—7	Added	Ch. 17.13, 17.13.010—17.13.060
52-846	12- 9-2025	1		16.14.040
52-847	12- 9-2025	1		17.12.090

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52-859	12-16-2025	1	Rpld	1.04.150
52-860	12-16-2025	1—3		8.01.010—8.01.030
		4, 5		8.01.050, 8.01.060
		6		8.01.065
		7, 8		8.01.100, 8.01.110
		9		8.01.130
		10		8.01.175
		11		8.01.180
52-861	12-16-2025	1—4	Added	Ch. 18.10, 18.10.010—18.10.040
52-862	12-16-2025	1—11	Added	Ch. 18.17, 18.17.010—18.17.110
52-863	12-16-2025	1	Added	20.04.005
		2, 3		20.04.010, 20.04.020
		4		20.04.025
		5, 6		20.04.030, 20.04.040
		7		20.04.055
		8, 9		20.04.060, 20.04.070
		10—14		20.04.090—20.04.130
		15		20.04.150
		16	Rpld	20.04.160
		17—20		20.04.170—20.04.200
52-864	12-16-2025	1—3		30.01.010—30.01.030
		4—7		30.01.060—30.01.090
		8		30.01.105
		9		30.01.108
		10—17		30.01.110—30.01.180
52-878	1-13-2026	1—73	Rpld	Ch. 15.01, 15.01.010—15.01.580, 15.01.085, 15.01.590—15.01.680
			Added	Ch. 15.01, 15.01.010—15.01.730
52-885	1-20-2026	1.1, 2		2.12.1069
		1.2, 2		2.12.1071
		1.3, 2		2.12.1077
52-886	1-20-2026	1		2.12.1069
		2		2.12.1071
		3		2.12.1077
52-900	2-24-2026	1—7		2.12.1300—2.12.1306

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52-902	2-24-2026	1		16.30.060
52-907	3-10-2026	1		8.02.040
		2—6		8.02.060—8.02.100
		7	Rpld	8.02.120

STATUTORY REFERENCES FOR KANSAS CITIES

The statutory references listed below refer the code user to state statutes applicable to Kansas cities, current through May 21, 2020.

General Provisions

Corporate powers generally
K.S.A. 12-101

Home rule powers
Ks. Const. Art. 12, § 5

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K.S.A. 13-101, 14-101, 15-101

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K.S.A. 12 517 et seq.

Wards and precincts
K.S.A. 14 103, 14-207, 80-1404

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K.S.A. 26-201 et seq.

Ordinance enactment and form
K.S.A. 12-3001 et seq., 12-3301 et seq.

Ordinance compilation, revision and codification
K.S.A. 12 3014 et seq.

Initiative and referendum ordinances
K.S.A. 12-3013

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Kansas Const. Art. 4 and K.S.A. 25-2101 et seq.

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K.S.A. 25 106, 25 2111

Employment of city prisoners
K.S.A. 22 4603

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K.S.A. 12-10a01 et seq.

City manager
K.S.A. 12-1001 et seq.

City council meetings—First class cities
K.S.A. 13-1410

Filling of vacancies in offices of mayor or councilman in first class cities
K.S.A. 13-513

Other officers in first class cities
K.S.A. 13-502 et seq.

Commission form of government for second class cities
K.S.A. 14-1101 et seq.

Mayors in second class cities
K.S.A. 14-301 et seq.

Elective officers of second class cities
K.S.A. 14-201 et seq.

Commission form of government for third class cities
K.S.A. 15-1201 et seq.

Mayors in third class cities
K.S.A. 15-301 et seq.

Officers of third class cities
K.S.A. 15-201 et seq.

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K.S.A. 25 2101 et seq.

Oaths and bonds
K.S.A. 25 2120, 12 1008, 12 1036b, 14 205, 15 1404; 15 11b08, 54-106

Treasurer
K.S.A. 12-1608, 12-1609

Planning commission
K.S.A. 12 744 et seq.

Parks commission
K.S.A. 14 537 et seq.

Municipal courts
K.S.A. 12-1109, 12 4101 et seq.

Administrative departments in commission-manager plan cities
K.S.A. 12 1015

Records
K.S.A. 12-120 et seq.

Libraries
K.S.A. 12 1215 et seq.

Social security
K.S.A. 40 2301 et seq.

Kansas League of Municipalities
K.S.A. 12 1610c et seq.

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Tourism
K.S.A. 12-1692 et seq.

Historical collection and museums
K.S.A. 12-1658 et seq., 12-1681 et seq.

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K.S.A. 13-460 et seq.

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K.S.A. 15-11b01 et seq.

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K.S.A. 12-105b

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K.S.A. 12-1692 et seq.

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K.S.A. 41 101 et seq.

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K.S.A. 41 2701 et seq.

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K.S.A. 58 1014 et seq.

Farm products
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K.S.A. 66-1302 et seq.

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K.S.A. 12 1617

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K.S.A. 41 2601 et seq.

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K.S.A. 21 2801 et seq.

Pawnbrokers and precious metal dealers
K.S.A. 16-706 et seq.

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K.S.A. 74-50,181 et seq.

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K.S.A. 21 6419 et seq.

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K.S.A. 41 2701 et seq.

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K.S.A. 21-6201 et seq.

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K.S.A. 21-5801 et seq.

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K.S.A. 75-7c20

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K.S.A. 21-5401 et seq.

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K.S.A. 8 2101 et seq.

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K.S.A. 8-1001 et seq.

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K.S.A. 8 2005

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K.S.A. 8-1557 et seq.

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K.S.A. 8 2002(a)(1)

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K.S.A. 12 685 et seq.

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*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

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